SUPPLEMENT NO. 23
VOLUMES I AND II
May 2026

CODE OF ORDINANCES

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14450, enacted March 12, 2026.

See the Code Comparative Table for further information.

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CHT:37—CHT:39	CHT:37—CHT:40
CHTCT:5, CHTCT:6	CHTCT:5, CHTCT:6
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CD2:103—CD2:112	CD2:103—CD2:112.5
CD10:1, CD10:2	CD10:1, CD10:2
CD10:14.53—CD10:14.56	CD10:14.53—CD10:14.56
CD10:45—CD10:63	CD10:45—CD10:69
CD13:3—CD13:10	CD13:3—CD13:10.1
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SUPPLEMENT NO. 22
VOLUMES I AND II
March 2026

CODE OF ORDINANCES

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14405, October 23, 2025.

See the Code Comparative Table for further information.

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	VOLUME I
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xiii—xxiii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7, SH:8
CHT:1, CHT:2	CHT:1, CHT:2
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CD18:1—CD18:4.1	CD18:1—CD18:4.1
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SUPPLEMENT NO. 21
VOLUMES I AND II
August 2025

CODE OF ORDINANCES

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14370, June 17, 2025.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 20
VOLUMES I AND II
July 2025

CODE OF ORDINANCES

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14366, May 8, 2025.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 19
VOLUMES I AND II
November 2024

CODE OF ORDINANCES

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14299, adopted July 25, 2024.

See the Code Comparative Table for further information.

Included in the Charter is:

Resolution No. 22-0262, adopted July 28, 2022.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 18
VOLUMES I AND II
July 2024

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14282, adopted May 9, 2024.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 17
VOLUMES I AND II
January 2024

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14229, adopted November 16, 2023.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 16
VOLUMES I AND II
August 2023

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14182, adopted June 8, 2023.

See the Code Comparative Table for further information.

Included in the Charter is:

Resolution No. 22-0262, adopted July 28, 2022.

See the Charter Comparative Table for further information.

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CD54:1—CD54:5	CD54:1—CD54:5
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SUPPLEMENT NO. 15
VOLUMES I AND II
April 2023

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14142, adopted February 9, 2023.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 14
VOLUMES I AND II
November 2022

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14115, adopted October 13, 2022.

See the Code Comparative Table for further information.

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CD18:3, CD18:4	CD18:3, CD18:4
CD18:11, CD18:12	CD18:11—CD18:12.1
CD18:56.1—CD18:56.3	CD18:56.1—CD18:56.3
CD31:37—CD31:40.3	CD31:37—CD31:40.4
VOLUME I I	
xiii—xxiii	xiii—xxiii
CD38:1—CD38:4	CD38:1—CD38:4
CD38:12.1	CD38:12.1, CD38:12.2
CD38:33—CD38:36	CD38:33—CD38:36
CD50:1—CD50:2.1	CD50:1—CD50:2.1
CD50:5—CD50:8.1	CD50:5—CD50:8.1
CD50:12.1, CD50:12.2	CD50:12.1, CD50:12.2
CD54:45, CD54:46	CD54:45, CD54:46
CD62:79, CD62:80	CD62:79, CD62:80
CCT:77	CCT:77
SLT:3, SLT:4	SLT:3—SLT:4.1
CDi:9, CDi:10	CDi:9, CDi:10
CDi:18.1—CDi:20	CDi:19, CDi:20

Remove Old Pages	*Insert New Pages*
CDi:29, CDi:30	CDi:29—CDi:30.1
CDi:37—CDi:38.1	CDi:37—CDi:38.1
CDi:56.1—CDi:58	CDi:57—CDi:58.1
CDi:71, CDi:72	CDi:71, CDi:72
CDi:85, CDi:86	CDi:85, CDi:86

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SUPPLEMENT NO. 13
VOLUMES I AND II
July 2022

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14075, adopted June 23, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xxiii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD2:7, CD2:8	CD2:7, CD2:8
CD2:69—CD2:72.1	CD2:69—CD2:72.1
CD2:93, CD2:94	CD2:93, CD2:94
CD2:114.1—CD2:116	CD2:115—CD2:116.2
CD2:133—CD2:136	CD2:133—CD2:136.1
CD10:1, CD10:2	CD10:1, CD10:2
CD10:11—CD10:13	CD10:11—CD10:13
CD13:13—CD13:16	CD13:13—CD13:16.1
CD18:1, CD18:2	CD18:1, CD18:2
CD18:9—CD18:14.1	CD18:9—CD18:14.1
CD18:45, CD18:46	CD18:45—CD18:46.1
	VOLUME I I
xiii—xxiii	xiii—xxiii
CD35:38.1—CD35:38.3	CD35:38.1—CD35:38.3
CD38:1—CD38:3	CD38:1—CD38:4
CD38:12.1	CD38:12.1
CD38:39	CD38:39, CD38:40
CD40:37—CD40:40	CD40:37—CD40:40
CD40:61—CD40:80.1	CD40:61—CD40:79
CD42:7—CD42:16.1	CD42:7—CD42:16.1
CD54:47, CD54:48	CD54:47, CD54:48
CD62:40.1—CD62:46	CD62:41—CD62:46.1
CCT:75, CCT:76	CCT:75—CCT:77
SLT:1—SLT:7	SLT:1—SLT:7

Remove Old Pages	*Insert New Pages*
CDi:7, CDi:8	CDi:7, CDi:8
CDi:17, CDi:18	CDi:17—CDi:18.1
CDi:29, CDi:30	CDi:29, CDi:30
CDi:37, CDi:38	CDi:37—CDi:38.1
CDi:55—CDi:56.1	CDi:55—CDi:56.1

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SUPPLEMENT NO. 12
VOLUMES I AND II
May 2022

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14054, adopted March 10, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
v	v
xiii—xxiii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
CD2:15—CD2:18	CD2:15—CD2:18
CD20:1—CD20:17	CD20:1—CD20:16
CD22.5:1, CD22.5:2	CD22.5:1, CD22.5:2
CD22.5:9—CD22.5:16	CD22.5:9—CD22.5:16.2
	VOLUME I I
xiii—xxiii	xiii—xxiii
CD35:1—CD35:4	CD35:1—CD35:4
CD35:21, CD35:22	CD35:21—CD35:22.1
CD35:35, CD35:36	CD35:35—CD35:36.4
CD36:3—CD36:7	CD36:3—CD36:7
CD37:1	CD37:1
CD37:19, CD37:20	CD37:19—CD37:21
CD38:1—CD38:3	CD38:1—CD38:3
CD38:12.1	CD38:12.1
CD40:61, CD40:62	CD40:61—CD40:62.1
CD40:77, CD40:78	CD40:77, CD40:78
CD40:103—CD40:108	CD40:103—CD40:108
CD40:117—CD40:118.1	CD40:117—CD40:118.1
CD40:129—CD40:132	CD40:129—CD40:132
CD54:3—CD54:5	CD54:3—CD54:5
CD54:22.3—CD54:24.1	CD54:23—CD54:24.2
CD54:42.1, CD54:42.2	CD54:42.1—CD54:42.2.1
CD54:60.1—CD54:78	CD54:61—CD54:78.5
CD55:11—CD55:14	CD55:11—CD55:14.1

Remove Old Pages	*Insert New Pages*
CD62:39—CD62:40.1	CD62:39—CD62:40.1
CD62:73—CD62:76	CD62:73—CD62:76.1
CCT:75	CCT:75, CCT:76
SLT:1—SLT:7	SLT:1—SLT:7
CDi:1—CDi:50.1	CDi:1—CDi:50.3
CDi:55—CDi:56.1	CDi:55—CDi:56.1
CDi:61—CDi:86	CDi:61—CDi:86

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SUPPLEMENT NO. 11
VOLUMES I AND II
January 2022

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14031, adopted October 14, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
xiii—xxiii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD2:5, CD2:6	CD2:5, CD2:6
CD2:69—CD2:72.1	CD2:69—CD2:72.1
CD2:97, CD2:98	CD2:97—CD2:98.1
CD10:31, CD10:32	CD10:31, CD10:32
CD22:41—CD22:46.1	CD22:41—CD22:46
CD31:1, CD31:2	CD31:1, CD31:2
CD31:43	CD31:43—CD31:48
	VOLUME I I
Title page	Title page
xiii—xxiii	xiii—xxiii
CD36:3—CD36:6	CD36:3—CD36:7
CD38:1—CD38:3	CD38:1—CD38:3
CD38:11—CD38:12.1	CD38:11—CD38:12.1
CD54:49—CD54:60	CD54:49—CD54:60.1
CCT:75	CCT:75
SLT:3—SLT:6	SLT:3—SLT:7
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:5—CDi:12	CDi:5—CDi:12.1
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:30.1—CDi:32	CDi:31—CDi:32.1
CDi:37—CDi:44	CDi:37—CDi:44.1
CDi:56.1	CDi:56.1
CDi:67—CDi:68.1	CDi:67—CDi:68.1

Remove Old Pages	*Insert New Pages*
CDi:73, CDi:74	CDi:73—CDi:74.1

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hSUPPLEMENT NO. 10
VOLUMES I AND II
September 2021

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14011, adopted July 8, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xxiii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD2:7, CD2:8	CD2:7, CD2:8
CD2:65—CD2:72.1	CD2:65—CD2:72.1
CD2:107—CD2:114	CD2:107—CD2:114.2
CD4:1—CD4:4	CD4:1—CD4:4.1
CD4:13	CD4:13, CD4:14
CD10:3	CD10:3, CD10:4
CD10:55. CD10:56	CD10:55—CD10:64
CD18:1—CD18:4	CD18:1—CD18:4
CD18:26.1—CD18:34	CD18:27—CD18:34.4
CD18:45—CD18:48	CD18:45—CD18:48.1
CD18:55—CD18:56.1	CD18:55—CD18:56.3
CD22.5:1, CD22.5:2	CD22.5:1, CD22.5:2
CD22.5:21—CD22.5:25	CD22.5:21—CD22.5:28
CD23:9—CD23:12.1	CD23:9—CD23:12.1
CD23:17—CD23:32.1	CD23:17—CD23:32.1
CD31:39—CD31:40.1	CD31:39—CD31:40.3
	VOLUME I I
xiii—xxiii	xiii—xxiii
CD35:1—CD35:4	CD35:1—CD35:4
CD35:21, CD35:22	CD35:21, CD35:22
CD35:31—CD35:38.1	CD35:31—CD35:38.3
CD38:1—CD38:3	CD38:1—CD38:3
CD38:11—CD38:12.1	CD38:11—CD38:12.1
CD46:3, CD46:4	CD46:3—CD46:4.1

Remove Old Pages	*Insert New Pages*
CCT:71—CCT:75	CCT:71—CCT:75
SLT:1—SLT:6	SLT:1—SLT:6
CDi:1—CDi:14	CDi:1—CDi:14.1
CDi:21—CDi:30.1	CDi:21—CDi:30.1
CDi:35, CDi:36	CDi:35, CDi:36
CDi:45—CDi:50	CDi:45—CDi:50.1
CDi:55, CDi:56	CDi:55—CDi:56.1
CDi:62.1—CDi:68	CDi:63—CDi:68.1
CDi:81—CDi:86	CDi:81—CDi:86

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SUPPLEMENT NO. 9
VOLUMES I AND II
May 2021

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13984, adopted March 25, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xxii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
CD2:6.1—CD2:10	CD2:7—CD2:10.1
CD2:93—CD2:98	CD2:93—CD2:98
CD2:111, CD2:112	CD2:111—CD2:112.5
CD2:137—CD2:141	CD2:137—CD2:141
CD2:155	CD2:155—CD2:159
CD10:3	CD10:3
CD10:5—CD10:14	CD10:4.1—CD10:13
CD10:51, CD10:52	CD10:51, CD10:52
CD17:5—CD17:8	CD17:5—CD17:8.1
CD17:15—CD17:22	CD17:15—CD17:22.1
CD17:27—CD17:30	CD17:27—CD17:30
CD20:5—CD20:12	CD20:5—CD20:12.1
CD23:5—CD23:12	CD23:5—CD23:12.1
CD23:17—CD23:32	CD23:17—CD23:32.1
CD29:1, CD29:2	CD29:1, CD29:2
CD29:9—CD29:14	CD29:9—CD29:18
VOLUME II	
xiii—xxii	xiii—xxiii
CD38:11—CD38:12.1	CD38:11—CD38:12.1
CD40:5, CD40:6	CD40:5—CD40:6.1
CD50:1, CD50:2	CD50:1—CD50:2.1
CD50:11, CD50:12	CD50:11—CD50:12.2
CD54:21, CD54:22	CD54:21—CD54:22.3
CD54:37—CD54:40	CD54:37—CD54:40.1

Remove Old Pages	*Insert New Pages*
CD54:63, CD54:64	CD54:63—CD54:64.1
CD62:1—CD62:5	CD62:1—CD62:5
CD62:13—CD62:14.1	CD62:13, CD62:14
CD62:21—CD62:26.1	CD62:21—CD62:26.7
CD62:39, CD62:40	CD62:39—CD62:40.1
CD62:69, CD62:70	CD62:69—CD62:70.2
CCT:73, CCT:74	CCT:73—CCT:75
SLT:1—SLT:6	SLT:1—SLT:6
CDi:5—CDi:8	CDi:5—CDi:8.1
CDi:24.1—CDi:28	CDi:25—CDi:28.1
CDi:37—CDi:40	CDi:37—CDi:40
CDi:45—CDi:48.1	CDi:45—CDi:48.1
CDi:55—CDi:62.1	CDi:55—CDi:62.1
CDi:67—CDi:72	CDi:67—CDi:72

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SUPPLEMENT NO. 8
VOLUMES I AND II
February 2021

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13951 adopted December 10, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
v	v
xiii—xxii	xiii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD1:7	CD1:7
CD2:1—CD2:4	CD2:1—CD2:4
CD2:31—CD2:38	CD2:31—CD2:38.2
CD2:67—CD2:72	CD2:67—CD2:72.1
CD2:77—CD2:80	CD2:77—CD2:80.4
CD2:87—CD2:90.1	CD2:87—CD90.2
CD10:1—CD10:14.2	CD10:1—CD10:14.3
CD10:31, CD10:32	CD10:31, CD10:32
CD10:55	CD10:55. CD10:56
CD14:1, CD14:2	CD14:1, CD14:2
CD14:13—CD14:16	CD14:13—CD14:16
CD18:9—CD18:14	CD18:9—CD18:14.1
CD18:21—CD18:26	CD18:21—CD18:26.1
CD18:46.1—CD18:52	CD18:47—CD18:52.1
CD22.5:19, CD22.5:20	CD22.5:19, CD22.5:20
CD25:1—CD25:4	CD25:1—CD25:5
VOLUME I I	
xiii—xxii	xiii—xxii
CD36:1—CD36:5	CD36:1—CD36:6
CD38:1, CD38:2	CD38:1, CD38:2
CD38:11—CD38:12.1	CD38:11—CD38:12.1
CD39:1—CD39:36	CD39:1—CD39:18
CD42:11—CD42:16	CD42:11—CD42:16.1

Remove Old Pages	*Insert New Pages*
CD42:21—CD42:24	CD42:21—CD42:29
CD49:1—CD49:3	CD49:1—CD49:3
CD54:1—CD54:12.1	CD54:1—CD54:12.3
CD54:29—CD54:42.1	CD54:29—CD54:42.6
CD54:51—CD54:97	CD54:51—CD54:102
CD55:3—CD55:35	CD55:3—CD55:37
CD62:1—CD62:2.1	CD62:1—CD62:2.1
CD62:7—CD62:8.1	CD62:7—CD62:8.3
CD62:13, CD62:14	CD62:13—CD62:14.1
CD62:23—CD62:26	CD62:23—CD62:26.1
CCT:69—CCT:72	CCT:69—CCT:74
SLT:1—SLT:6	SLT:1—SLT:6
CDi:5—CDi:22	CDi:5—CDi:22.1
CDi:32.1—CDi:48	CDi:33—CDi:48.1
CDi:55—CDi:62	CDi:55—CDi:62.1
CDi:67—CDi:87	CDi:67—CDi:86

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SUPPLEMENT NO. 7
VOLUMES I AND II
September 2020

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13911 adopted July 9, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xxii	xiii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD2:5, CD2:6	CD2:5—CD2:6.1
CD2:89, CD2:90	CD2:89—CD2:90.1
CD31:37—CD31:40	CD31:37—CD31:40.1
	VOLUME II
xiii—xxii	xiii—xxii
CD35:3, CD35:4	CD35:3, CD35:4
CD35:31—CD35:36	CD35:31—CD35:36
CD37:1	CD37:1
CD37:19	CD37:19, CD37:20
CD54:49, CD54:50	CD54:49, CD54:50
CD54:59, CD54:60	CD54:59—CD54:60.1
CD56:1, CD56:2	CD56:1, CD56:2
CD56:9—CD56:13	CD56:9, CD56:10
CCT:59, CCT:60	CCT:59—CCT:60.1
CCT:71, CCT:72	CCT:71, CCT:72
SLT:3—SLT:6	SLT:3—SLT:6
CDi:3—CDi:10	CDi:3—CDi:10
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:47—CDi:50	CDi:47—CDi:50
CDi:55, CDi:56	CDi:55, CDi:56
CDi:65—CDi:70	CDi:65—CDi:70.1
CDi:75, CDi:76	CDi:75, CDi:76
CDi:81—CDi:87	CDi:81—CDi:87

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SUPPLEMENT NO. 6
VOLUMES I AND II
June 2020

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13900 adopted April 9, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
v	v
xiii—xxii	xiii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD2:1—CD2:22	CD2:1—CD2:20
CD2:97—CD2:102	CD2:97—CD2:102.1
CD2:153	CD2:153—CD2:155
CD4:1	CD4:1
CD4:13	CD4:13
CD6:3, CD6:4	CD6:3—CD6:4.1
CD18:1—CD18:4	CD18:1—CD18:4
CD18:55—CD18:56.1	CD18:55—CD18:56.1
CD18:71—CD18:76.1	CD18:71—CD18:76.1
CD22:11, CD22:12	CD22:11—CD22:12.1
CD22:17, CD22:18	CD22:17—CD22:18.1
CD22:29, CD22:30	CD22:29—CD22:30.1
CD22:49, CD22:50	CD22:49—CD22:50.1
CD22.5:1, CD22.5:2	CD22.5:1, CD22.5:2
CD22.5:19, CD22.5:20	CD22.5:19—CD22.5:25
VOLUME I I	
xiii—xxii	xiii—xxii
CD54:23, CD54:24	CD54:23—CD54:24.1
CCT:71, CCT:72	CCT:71, CCT:72
SLT:1—SLT:6	SLT:1—SLT:6
CDi:1—CDi:6	CDi:1—CDi:6
CDi:13, CDi:14	CDi:13—CDi:14.1
CDi:23—CDi:30	CDi:23—CDi:30.1

Remove Old Pages	*Insert New Pages*
CDi:35, CDi:36	CDi:35—CDi:36.1
CDi:41—CDi:44	CDi:41—CDi:44.1

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SUPPLEMENT NO. 5
VOLUMES I AND II
March 2020

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13887 adopted December 12, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
v	v
xiii—xxii	xiii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
CD2:5—CD2:10	CD2:5—CD2:10
CD2:15—CD2:20	CD2:15—CD2:20
CD2:63—CD2:98	CD2:63—CD2:98.1
CD2:105—CD2:126	CD2:105—CD2:119
CD2:141—CD2:144	CD2:141
CD2:151—CD2:154	CD2:151—CD2:153
CD4:9, CD4:10	CD4:9—CD4:10.1
CD14:3—CD14:6	CD14:3—CD14:6
CD17:9—CD17:10.1	CD17:9—CD17:10.1
CD18:73—CD18:76.1	CD18:73—CD18:76.1
VOLUME II	
xiii—xxii	xiii—xxii
CD38:1—CD38:3	CD38:1—CD38:3
CD38:11—CD38:12.1	CD38:11—CD38:12.1
CD40:61—CD40:66	CD40:61—CD40:66
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SUPPLEMENT NO. 4
VOLUMES I AND II
November 2019

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13862 adopted September 26, 2019.

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SUPPLEMENT NO. 3
VOLUMES I AND II
July 2019

CHARTER AND CODE

City of

MIAMI, FLORIDA

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13842 adopted June 13, 2019.

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VOLUMES I AND II
May 2019

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13832, adopted March 28, 2019.

See the Code Comparative Table for further information.

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See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 1
VOLUMES I AND II
February 2019

CHARTER AND CODE

City of

MIAMI, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13788, adopted September 27, 2018.

See the Code Comparative Table for further information.

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CHARTER

AND

CODE

CITY OF

MIAMI, FLORIDA

VOLUME I

Adopted: March 20, 1997
Effective: April 18, 1997

Republished in 2018 by Order of City Commission Resolution R-18-0261

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OFFICIALS

of the

CITY OF

MIAMI, FLORIDA

AT THE TIME OF THIS CODIFICATION

Joe Carollo
Mayor

Tomas Regalado
Vice Mayor

J. L. Plummer, Jr.
Humberto Hernandez
Wifredo (Willy) Gort
Commissioners

A. Quinn Jones, III
City Attorney

Edward Marquez
City Manager

Walter Foeman
City Clerk

CURRENT OFFICIALS

of the

CITY OF

MIAMI, FLORIDA

Eileen Higgins
Mayor

Miguel Angel Gabela, District 1
Damian Pardo, District 2
Rolando Escalona, District 3
Ralph "Rafael" Rosado, District 4
Christine King, District 5
Commissioners

George K. Wysong III
City Attorney

James Reyes
City Manager

Todd B. Hannon
City Clerk

PREFACE

This Code constitutes a complete republication of the general and permanent ordinances of the City of Miami, Florida. The republication includes the codification of Ord. No. 13676, the gender neutralization ordinance. Ord. No. 13676, adopted April 27, 2017, amended the City Code to modify any and all masculine and/or feminine language to gender neutral pronouns. The Code Comparative Table for Ord. No. 13676 identifies all of the sections of the City Code that were changed.

Source materials used in the preparation of the Code during the 2018 republication were the 1967 Code as recodified in 1980 and in 1996, and ordinances subsequently adopted by the City Commission. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of this Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1967 Code, the 1980 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included in the same manner. If the new material is to be included between chapters 12 and 13, it will be designated as chapter 12.5, or new chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

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Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted

according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The 1996 codification of the Charter and Code publication was under the direct supervision of Alyce A. Whitson, Supervising Editor, and Jody Wilson, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Matty Hirai, former City Clerk, Walter Foeman, City Clerk, A. Quinn Jones, City Attorney, Rafael O. Dias, Deputy City Attorney, Warren Bitner, Assistant City Attorney, Lisa Malamud, Ana Maria Pando, Assistant City Attorney, Frank May, Assistant to the City Manager, Jim Kay, Deputy Director of Public Works Department, Lourdes Slazyk, Planner, and the other members of the city staff for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

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The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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CD62:49, CD62:50	OC	CCT:29, CCT:30	OC
CD62:51, CD62:52	OC	CCT:31, CCT:32	OC
CD62:53, CD62:54	OC	CCT:33, CCT:34	OC
CD62:55, CD62:56	OC	CCT:35, CCT:36	OC
CD62:57, CD62:58	OC	CCT:37, CCT:38	OC
CD62:59, CD62:60	OC	CCT:39, CCT:40	OC
CD62:61, CD62:62	OC	CCT:41, CCT:42	OC
CD62:63, CD62:64	15	CCT:43, CCT:44	OC
CD62:65, CD62:66	15	CCT:45, CCT:46	OC
CD62:67, CD62:68	23	CCT:47, CCT:48	OC
CD62:68.1	23	CCT:49, CCT:50	OC
CD62:69, CD62:70	20	CCT:51, CCT:52	OC
CD62:71, CD62:72	20	CCT:53, CCT:54	OC
CD62:73, CD62:74	20	CCT:55, CCT:56	OC
CD62:75, CD62:76	20	CCT:57, CCT:58	OC
CD62:77, CD62:78	20	CCT:59, CCT:60	7
CD62:79, CD62:80	20	CCT:60.1	7
CD62:81, CD62:82	20	CCT:61, CCT:62	OC
CD62:83, CD62:84	23	CCT:63, CCT:64	OC
CD62:85	23	CCT:65, CCT:66	1
CDA:1	OC	CCT:67, CCT:68	2
CDB:1	OC	CCT:69, CCT:70	8
CDB:3	OC	CCT:71, CCT:72	10
CCTCCL:1, CCTCCL:2	OC	CCT:73, CCT:74	10
CCT:1, CCT:2	OC	CCT:75, CCT:76	13
CCT:3	OC	CCT:77, CCT:78	16
CCT:5, CCT:6	OC	CCT:79, CCT:80	20
CCT:7, CCT:8	OC	CCT:81, CCT:82	23
CCT:9, CCT:10	OC	CCT:83	23
CCT:11, CCT:12	OC	SLT:1, SLT:2	23
CCT:13, CCT:14	OC	SLT:3, SLT:4	23

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SLT:4.1	23	CDi:67, CDi:68	23
SLT:5, SLT:6	20	CDi:69, CDi:70	23
SLT:7	20	CDi:71, CDi:72	23
CHTi:1, CHTi:2	23	CDi:73, CDi:74	23
CHTi:3	23	CDi:75, CDi:76	23
CDi:1, CDi:2	23	CDi:77, CDi:78	23
CDi:3, CDi:4	23	CDi:79, CDi:80	23
CDi:5, CDi:6	23	CDi:81, CDi:82	23
CDi:7, CDi:8	23	CDi:83, CDi:84	23
CDi:9, CDi:10	23	CDi:85, CDi:86	23
CDi:11, CDi:12	23	CDi:87, CDi:88	23
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CDi:15, CDi:16	23		
CDi:17, CDi:18	23		
CDi:19, CDi:20	23		
CDi:21, CDi:22	23		
CDi:23, CDi:24	23		
CDi:25, CDi:26	23		
CDi:27, CDi:28	23		
CDi:29, CDi:30	23		
CDi:31, CDi:32	23		
CDi:33, CDi:34	23		
CDi:35, CDi:36	23		
CDi:37, CDi:38	23		
CDi:39, CDi:40	23		
CDi:41, CDi:42	23		
CDi:43, CDi:44	23		
CDi:45, CDi:46	23		
CDi:47, CDi:48	23		
CDi:49, CDi:50	23		
CDi:51, CDi:52	23		
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CDi:55, CDi:56	23		
CDi:57, CDi:58	23		
CDi:59, CDi:60	23		
CDi:61, CDi:62	23		
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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

By adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
13711	11-16-17	Included	1
13712	11-16-17	Included	1
13733	1-11-18	Included	1
13734	1-25-18	Included	1
13744	2- 8-18	Included	1
13745	2-22-18	Included	1
13746	2-22-18	Included	1
13748	3- 8-18	Included	1
13749	3- 8-18	Included	1
13750	3-22-18	Included	1
13751	3-22-18	Included	1
13752	3-22-18	Included	1
13761	4-12-18	Included	1
13762	4-12-18	Included	1
13763	4-12-18	Included	1
13766	5-10-18	Included	1
13767	5-10-18	Included	1
13768	6-14-18	Included	1
13769	6-28-18	Included	1
13770	6-28-18	Included	1
13771	6-28-18	Included	1
13772	6-28-18	Included	1
13773	6-28-18	Included	1
13774	7-12-18	Included	1
13775	7-26-18	Included	1
13777	7-26-18	Included	1
13783	7-26-18	Included	1
13784	9-13-18	Included	1
13785	9-13-18	Included	1
13786	9-13-18	Included	1
13788	9-27-18	Included	1
18-0232 (Res.)	6- 8-18	Included	2
18-0309 (Res.)	7-18-18	Included	2

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
13792	10-11-18	Included	2
13793	10-11-18	Included	2
13794	10-11-18	Included	2
13795	10-11-18	Included	2
13796	10-11-18	Included	2
13797	10-11-18	Included	2
13798	10-25-18	Included	2
13799	10-25-18	Included	2
13800	10-25-18	Included	2
13801	10-25-18	Included	2
13806	11-15-18	Included	2
13809	11-15-18	Included	2
13810	11-15-18	Included	2
13811	12-13-18	Included	2
13812	12-13-18	Included	2
13813	12-13-18	Included	2
13814	12-13-18	Included	2
13818	1-10-19	Included	2
13819	1-10-19	Included	2
13820	1-10-19	Included	2
13821	1-10-19	Included	2
13832	3-28-19	Included	2
13833	4-25-19	Included	3
13834	4-25-19	Included	3
13835	4-25-19	Included	3
13840	5-23-19	Included	3
13841	5-23-19	Included	3
13842	6-13-19	Included	3
13854	7-25-19	Included	4
13857	9-12-19	Included	4
13858	9-12-19	Included	4
13859	9-12-19	Included	4
13862	9-26-19	Included	4
13826	3-14-19	Included	5
13852	7-11-19	Included	5
13863	10-10-19	Included	5
13864	10-10-19	Included	5
13871	11-21-19	Included	5
13872	11-21-19	Included	5
13873	11-21-19	Included	5
13874	11-21-19	Included	5
13881	12-12-19	Included	5
13882	12-12-19	Included	5
13883	12-12-19	Included	5
13884	12-12-19	Included	5
13885	12-12-19	Included	5

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
13886	12-12-19	Included	5
13887	12-12-19	Included	5
13889	1-23-20	Included	6
13891	2-13-20	Included	6
13892	2-13-20	Included	6
13893	2-13-20	Included	6
13894	2-13-20	Included	6
13895	2-13-20	Included	6
13896	4- 9-20	Included	6
13897	3-12-20	Included	6
13898	3-12-20	Included	6
13899	4- 9-20	Included	6
13900	4- 9-20	Included	6
13399	7-11-13	Included	7
13901	5-14-20	Included	7
13904	6-11-20	Included	7
13908	6-25-20	Included	7
13909	6-25-20	Included	7
13911	7- 9-20	Included	7
13843	6-13-19	Included	8
13907	6-25-20	Included	8
13913	7-23-20	Included	8
13915	9-24-20	Included	8
13916	9-24-20	Included	8
13917	9-24-20	Included	8
13918	9-24-20	Included	8
13919	9-24-20	Included	8
13920	9-24-20	Included	8
13927	10- 8-20	Included	8
13928	10- 8-20	Included	8
13929	10- 8-20	Included	8
13930	10- 8-20	Included	8
13933	10-22-20	Included	8
13934	10-22-20	Included	8
13935	10-22-20	Included	8
13936	10-22-20	Included	8
13939	11-19-20	Included	8
13940	11-19-20	Included	8
13941	11-19-20	Included	8
13947	12-10-20	Included	8
13948	12-10-20	Included	8
13949	12-10-20	Included	8
13950	12-10-20	Included	8
13951	12-10-20	Included	8
13963	2-11-21	Included	9
13964	2-11-21	Included	9

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
13965	2-11-21	Included	9
13966	2-25-21	Included	9
13967	2-25-21	Included	9
13968	2-25-21	Included	9
13969	2-25-21	Included	9
13970	2-25-21	Included	9
13971	2-25-21	Included	9
13979	3-25-21	Included	9
13980	3-25-21	Included	9
13981	3-25-21	Included	9
13982	3-25-21	Included	9
13983	3-25-21	Included	9
13984	3-25-21	Included	9
13912	7-23-20	Included	10
13988	4- 8-21	Included	10
13990	4-22-21	Included	10
13991	4-22-21	Included	10
13992	4-22-21	Included	10
13993	4-22-21	Included	10
13994	5-13-21	Included	10
13995	5-13-21	Included	10
13996	5-13-21	Included	10
14004	6-10-21	Included	10
14005	6-10-21	Included	10
14006	6-10-21	Included	10
14007	6-10-21	Included	10
14008	6-10-21	Included	10
14011	7- 8-21	Included	10
14012	7-22-21	Included	11
14013	7-22-21	Included	11
14014	7-22-21	Included	11
14017	9-13-21	Included	11
14020	9-23-21	Included	11
14021	9-23-21	Included	11
14022	9-23-21	Included	11
14028	10-14-21	Included	11
14031	10-14-21	Included	11
14032	10-28-21	Included	12
14033	11-18-21	Included	12
14035	11-18-21	Included	12
14036	11-18-21	Included	12
14037	11-18-21	Included	12
14038	12- 9-21	Included	12
14039	12- 9-21	Included	12
14040	12- 9-21	Included	12
14042	1-13-22	Included	12

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
14043	1-13-22	Included	12
14045	2-10-22	Included	12
14047	2-10-22	Included	12
14053	3-10-22	Included	12
14054	3-10-22	Included	12
14057	3-10-22	Included	13
14059	4-14-22	Included	13
14060	4-28-22	Included	13
14061	4-28-22	Included	13
14062	4-28-22	Included	13
14066	5-12-22	Included	13
14067	5-12-22	Included	13
14068	5-12-22	Included	13
14069	6- 9-22	Included	13
14070	6- 9-22	Included	13
14071	6- 9-22	Included	13
14074	6-23-22	Included	13
14075	6-23-22	Included	13
14076	7-28-22	Included	14
14077	7-28-22	Included	14
14078	7-28-22	Included	14
14085	9-13-22	Included	14
14086	9-13-22	Included	14
14087	9-13-22	Included	14
14088	9-13-22	Included	14
14089	9-13-22	Included	14
14109	10-13-22	Included	14
14111	10-13-22	Included	14
14112	10-13-22	Included	14
14113	10-13-22	Included	14
14114	10-13-22	Included	14
14115	10-13-22	Included	14
14116	10-27-22	Included	15
14117	10-27-22	Included	15
14118	10-27-22	Included	15
14120	11-17-22	Included	15
14121	11-17-22	Included	15
14122	11-17-22	Included	15
14123	11-17-22	Included	15
14128	1-12-23	Included	15
14129	1-12-23	Included	15
14130	1-12-23	Included	15
14131	1-12-23	Included	15
14137	1-26-23	Included	15
14138	2- 9-23	Included	15
14139	2- 9-23	Included	15

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
14140	2- 9-23	Included	15
14141	2- 9-23	Included	15
14142	2- 9-23	Included	15
22-0262 (Res.)	7-28-22	Included	16
14150	2-23-23	Included	16
14151	2-23-23	Included	16
14152	2-23-23	Included	16
14153	2-23-23	Included	16
14161	4-13-23	Included	16
14163	4-27-23	Included	16
14164	4-27-23	Included	16
14165	4-27-23	Included	16
14172	5-25-23	Included	16
14173	5-25-23	Included	16
14174	5-25-23	Included	16
14180	6- 8-23	Included	16
14181	6- 8-23	Included	16
14182	6- 8-23	Included	16
14192	7-27-23	Included	17
14193	7-27-23	Included	17
14194	7-27-23	Included	17
14206	9-28-23	Included	17
14207	9-28-23	Included	17
14208	9-28-23	Included	17
14216	10-12-23	Included	17
14220	10-26-23	Included	17
14221	10-26-23	Included	17
14222	10-26-23	Included	17
14223	10-26-23	Included	17
14229	11-16-23	Included	17
14213	10-12-23	Included	18
14239	12-14-23	Included	18
14240	12-14-23	Included	18
14248	1-11-24	Included	18
14249	1-11-24	Included	18
14256	2- 8-24	Included	18
14264	4-11-24	Included	18
14266	4-11-24	Included	18
14267	4-11-24	Included	18
14278	4-25-24	Included	18
14280	5- 9-24	Included	18
14282	5- 9-24	Included	18
22-0180 (Res.)	5-21-22	Included	19
14279	5- 9-24	Included	19
14281	5- 9-24	Included	19
14283	5-23-24	Included	19

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
14284	5-23-24	Included	19
14289	6-18-24	Included	19
14295	7-11-24	Included	19
14296	7-11-24	Included	19
14299	7-25-24	Included	19
24-0153 (Res.)	4-25-24	Included	20
24-0154 (Res.)	4-25-24	Included	20
14292	6-27-24	Included	20
24-0280 (Res.)	7-25-24	Included	20
24-0281 (Res.)	7-25-24	Included	20
24-0282 (Res.)	7-25-24	Included	20
24-0283 (Res.)	7-25-24	Included	20
14307	9-26-24	Included	20
14308	9-26-24	Included	20
14317	9-26-24	Included	20
14319	10-15-24	Included	20
14320	10-15-24	Included	20
14330	11-21-24	Included	20
14331	11-21-24	Included	20
14332	11-21-24	Included	20
14337	12-12-24	Included	20
14338	12-12-24	Included	20
14339	12-12-24	Included	20
14340	12-12-24	Included	20
14351	2-13-25	Included	20
14352	2-13-25	Included	20
14353	2-13-25	Included	20
14356	3-13-25	Included	20
14357	3-13-25	Included	20
14358	3-13-25	Included	20
14359	3-13-25	Included	20
14361	4-10-25	Included	20
14364	4-24-25	Included	20
14366	5- 8-25	Included	20
14368	6-17-25	Included	21
14369	6-17-25	Included	21
14370	6-17-25	Included	21
14377	7-10-25	Included	22
25-0243 (Res.)	7-10-25	Included	22
14383	7-24-25	Included	22
14391	9-11-25	Included	22
14395	9-25-25	Included	22
14396	9-25-25	Included	22
14397	9-25-25	Included	22
14399	10- 9-25	Included	22
14400	10- 9-25	Included	22

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
14401	10- 9-25	Included	22
14402	10- 9-25	Included	22
14403	10-23-25	Included	22
14405	10-23-25	Included	22
R-25-0244 (Res.)	7-10-25	Included	23
R-25-0322 (Res.)	7-24-25	Included	23
14404	10-23-25	Included	23
14413	11-20-25	Included	23
14414	11-20-25	Included	23
14415	11-20-25	Included	23
14423	12-11-25	Included	23
14424	12-11-25	Included	23
14429	1- 8-26	Included	23
14430	1- 8-26	Included	23
14431	1- 8-26	Included	23
14432	1- 8-26	Included	23
14433	1- 8-26	Included	23
14434	1- 8-26	Included	23
14435	1- 8-26	Included	23
14438	1-22-26	Included	23
14439	1-22-26	Included	23
14441	2-12-26	Included	23
14442	2-12-26	Included	23
14443	2-12-26	Included	23
14445	2-26-26	Included	23
14447	3-12-26	Included	23
14448	3-12-26	Included	23
14449	3-12-26	Included	23
14450	3-12-26	Included	23

PART I

CHARTER AND RELATED LAWS*

Subpart A

THE CHARTER†

	Citizens' Bill of Rights
Sec. 1.	Creation and existence.
Sec. 2.	Corporate limits.
Sec. 3.	Powers.
Sec. 4.	Form of government; nomination and election.
Sec. 5.	The initiative.
Sec. 6.	The referendum.
Sec. 7.	Election of city commissioners and mayor.
Sec. 8.	Form of ballots.
Sec. 9.	Declaration of election; how tie vote decided.
Secs. 10, 11.	[Reserved.]
Sec. 12.	Filling vacancies for mayor and commission.
Sec. 13.	Redistricting.
Sec. 14.	Commission may investigate official transactions, acts and conduct.
Sec. 15.	City manager—Qualifications; appointment; term; salary; sickness or absence; removal.
Sec. 16.	Same—Powers and duties.
Sec. 17.	Same—Examination of affairs of departments, officers or employees.
Sec. 18.	Departments established.
Sec. 19.	Creation of new departments; discontinuance of departments.
Sec. 19-A.	[Reserved.]
Sec. 20.	Directors of departments.
Sec. 21.	Department of law.
Secs. 22—22-C.	[Reserved.]
Sec. 23.	Department of off-street parking; off-street parking board.
Sec. 24.	Department of public safety.
Sec. 25.	Supervision in divisions of police and fire.

*__Editor's note—__Part I of this volume sets forth, for the reference of the user, the charter and related legislation deemed advisable for inclusion by the city. Also included in this part is a listing of special acts relating to the city.

†__Editor's note—__The present charter of the City of Miami, excepting the later amendments and additions thereto, was prepared and proposed by a charter board of 15 citizens elected at a charter board election, held January 21, 1921. The charter prepared and proposed by such board was adopted by the electors of the city at an election held May 17, 1921; and Laws of Fla., ch. 9024(1921) validated, legalized and confirmed the proceedings in the election of the charter board and the adoption of the city charter, but did not enact the charter in full. The charter was amended by the legislature in its regular session in 1923, and the amendment was confirmed by the electorate of the city at an election held July 17, 1923. At the session of the legislature in 1925, the entire charter was reenacted as contained in Laws of Fla., ch. 10847(1925). The charter as contained in Laws of Fla., ch. 10847(1925) has been amended at subsequent sessions of the legislature, and by the electorate pursuant to the provisions of section 5.03 of the Dade County Charter. This version of the charter represents the text as amended by Ord. No. 9861 and approved by referendum on September 4, 1984, which amended the charter in its entirety, and as approved by final judgment in the case of the Rolle v. City of Miami Circuit Court Case No. 84-07522.

Amendments to the charter are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original. Obvious misspellings have been corrected without notation. For stylistic purposes, a uniform system of headings, catchlines and citations to state statutes has been used. Additions made for clarity are indicated by brackets.

__County Charter reference__—Municipal charters, § 5.03.

__State law references—__Home rule powers of municipalities generally, F.S. § 166.021; charter amendments, F.S. § 166.031.

Sec. 26. Suspension and removal of chief of police and fire chief.
Sec. 27. Finance, department of finance.
Secs. 27-A—28. [Reserved.]
Sec. 29-A. Contracts for, unified development projects, and real property; safeguards.
Sec. 29-B. City-owned property sale or lease—Generally.
Sec. 29-C. Same—Watson Island.
Sec. 29-D. City-owned waterfront property; leases with nonprofit organizations; authorization to waive competitive bidding and referendum requirements; terms of lease.
Secs. 30—35. [Reserved.]
Sec. 36. Civil service.
Sec. 37. Pension funds.
Sec. 38. City planning and zoning board.
Sec. 39. [Reserved.]
Sec. 40. Subdivisions.
Secs. 41, 42. [Reserved.]
Sec. 43. Continuity.
Sec. 44. [Reserved.]
Sec. 45. General provisions.
Sec. 46. Charter Review Commission.
Sec. 47. [Reserved.]
Sec. 48. [Reserved.]
Sec. 49. Office of the city clerk.
Sec. 50. Certain former Charter provisions to become ordinances.
Sec. 51. Civilian investigative panel.
Sec. 52. Office of independent inspector general.

Citizens' Bill of Rights

(A) This government has been created to protect the governed, not the governing. In order to provide the public with full and accurate information, to promote efficient administrative management, to make government more accountable, and to insure to all persons fair and equitable treatment, the City of Miami adopts the provisions of the Miami-Dade County Citizens' Bill of Rights as applied to municipal governments located within Miami-Dade County and guarantees the following additional rights to its Citizens:

1. To Be Governed By The Rule of Law. The City of Miami Charter is the Constitution of the City of Miami and the City shall abide by all of its express provisions.

2. Religion and Conscience. The City shall not interfere with the freedom of each person in the city to follow the dictates of his or her own conscience concerning religious worship, nor shall the city support any religion.

3. Speech, Assembly and Press. The City shall not interfere with the rights: (i) of freedom of speech; (ii) of freedom of the press; (iii) to petition the government, or (iv) to peaceable assembly.

4. Unreasonable Searches and Seizures. The City shall not authorize any unreasonable search or seizure.

5. Nondiscrimination. The City shall not, directly or indirectly, discriminate among persons because of race, color, creed, religion, sex, domestic relationship status, parental status, familial status, sexual orientation, national origin, political affiliation, gender identity and expression, or racial profiling. Nothing herein shall prevent the City of Miami from remedying present discrimination or the present effects of past discrimination by a race-conscious affirmative action program which is in compliance with the Constitution and laws of the United States of America and the State of Florida.

6. Environmental Protection. The City shall promote the right of the people to clean air, pure water, freedom from excessive and unnecessary noise, and the natural, scenic, historic and aesthetic qualities of the environment.

7. Natural Resources and Scenic Beauty. It shall be the policy of the City to conserve and protect its natural resources and scenic beauty, which policy shall include the abatement of air and water pollution, and excessive and unnecessary noise.

(B) The foregoing enumeration of citizens' rights vests large and pervasive powers in the citizenry of the City of Miami. Such power necessarily carries with it responsibility of equal magnitude for the successful operation of government in the City. The orderly, efficient and fair operation of government requires the intelligent participation of individual citizens exercising their rights with dignity and restraint so as to avoid any sweeping acceleration in the cost of government because of the exercise of individual prerogatives, and for individual citizens to grant respect for the dignity of public office.

(C) Remedies for violations. Residents of the City shall have standing to bring legal actions to enforce the City Charter, the Citizens' Bill of Rights, and the Miami-Dade County Citizens' Bill of Rights as applied to the City. Such actions shall be filed in Miami-Dade County Circuit Court pursuant to its general equity jurisdiction and, if successful, the plaintiff shall be entitled to recover costs, but not attorney's fees, as fixed by the court. Any public official, or employee who is found by the court to have willfully violated this section shall forthwith forfeit his or her office or employment.

(D) Construction. All provisions of this article shall be construed to be supplementary to and not in conflict with the general laws of Florida or the provisions of the Florida Constitution. If any part of this article shall be declared invalid, it shall not affect the validity of the remaining provisions.

(Res. No. 07-0625, § 2, 10-25-07; Res. No. 16-0352, § 2, 7-29-16)

LAWS OF FLORIDA, CHAPTER 10847

An act to amend and reenact the Charter of the City of Miami, in the County of Dade, and to fix the boundaries and provide for the government, powers and privileges of said city and means for exercising the same; and to authorize the imposition of penalties for the violation of ordinances; and to ratify certain acts and proceedings of the commission and of the officers of the city.

Be It Enacted by the Legislature of the State of Florida:

Sec. 1. Creation and existence.

The inhabitants of the City of Miami, Florida, within the boundaries hereinafter designated, or within such boundaries as may hereafter be established, shall continue to be a body politic and corporate under the name the "City of Miami," and as such shall have perpetual succession and may use a common seal.
(Res. No. 01-843, § 2, 8-9-01)

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, amended § 1 in its entirety to read as herein set out. Formerly, § 1 pertained to body politic and corporate; name; seal; right to contract, sue, and be sued, and derived from original codification.

Case law reference—The city is a governmental entity created by the state. It is a public institution designed to promote the common interests of the inhabitants in their organized capacity as a local government, and its objects are governmental, not commercial. Miami Water Works Local No. 654 v. City of Miami, 157 Fla. 445, 26 So. 2d 194, 165 A.L.R. 967.

The city is a municipal corporation and is not exempt from paying interest on its obligations. Highway Construction Co. v. City of Miami, 126 F.2d 777.

Sec. 2. Corporate limits.

The corporate limits of the City of Miami shall include all the territory and inhabitants within the following area, and no other:

[For the latest legal description of the city boundaries, the user is referred to exhibit A of this Charter, on file in the office of the city clerk.]
(Res. No. 01-843, § 2, 8-9-01)

Editor's note—The territorial limits of the City of Miami were fixed pursuant to Laws of Fla., ch. 15687(1931). Further special acts extending, enlarging, or otherwise changing the corporate limits include Laws of Fla., ch. 15821(1931); Laws of Fla., ch. 18685(1937); Laws of Fla., chs. 21393, 21396(1941); Laws of Fla., chs. 23405, 23409(1945); Laws of Fla., ch. 26021(1949); Laws of Fla., ch. 57-1583.

The board of county commissioners of Dade County further extended the boundaries of the city (Primrose Park) by Dade County Ordinance No. 63-6, adopted March 5, 1963.

County Charter reference—Method of changing city boundaries, § 5.04.

State law reference—Municipalities within Dade County to adopt annexation or contraction ordinances pursuant to provisions of county home rule charter, F.S. § 171.071.

Sec. 3. Powers.

The City of Miami shall have the governmental, corporate, and proprietary powers to enable it to conduct municipal government, perform municipal functions and render municipal services and may exercise any power for municipal purposes, except when expressly prohibited by law.

The city shall have the extraterritorial powers granted to the city by general and special law and including Laws of Florida, ch. 10847 (1925), as amended.

The City of Miami shall have power to:

(a)—(e). [Reserved.]

(f) *Acquisition and disposition of property and services:*

(i) To acquire by purchase, gift, devise, condemnation or otherwise, real or personal property or any estate or interest therein, inside or outside the city, for any of the purposes of the city; and to improve, sell, lease, mortgage, pledge, or otherwise dispose of such property or any part thereof.

(ii) To acquire or dispose of services inside or outside the city, by purchase, gift, or otherwise for any purposes of the city.

(iii) To lease to or contract with entities for the management of any of the city's waterfront property, but only in compliance with the other requirements of this charter and on condition that:

(A) the terms of the contract allow reasonable public access to the water and reasonable public use of the

property, and comply with other charter waterfront setback and view-corridor requirements; and

(B) the terms of the contract result in a fair return to the city based on two independent appraisals; and

(C) the use is authorized under the then existing master plan of the city;

(D) the procurement methods prescribed by ordinances are observed;

(E) the contract does not exceed five years and does not contain an automatic renewal or termination penalty.

Any such lease or management agreement or proposed extension or modification of an existing such lease or management agreement which does not comply with each of the above conditions shall not be valid unless it has first been approved by a majority of the voters of the city.

Nothing herein contained shall in any manner affect or apply to any project the financing of which has been provided by the authorization of bonds to be issued by the city.

(g)—(l). [Reserved.]

(m) *Harbor and shipping facilities:* To establish, construct, maintain, and operate, both inside and outside the city, public landings, wharves, docks, and warehouses; to dredge or deepen harbors and rivers, or any branch or portion thereof; to install turning basins, build jetties, and otherwise improve the harbor and shipping facilities of the city, inside and outside the city and inside and outside harbor lines where such improvements outside of harbor lines are approved by the United States Government or its proper agencies; to acquire by condemnation or otherwise all lands, riparian, and other rights and easements [necessary for the purposes aforesaid; to lay and collect] reasonable duties or fees on vessels coming through or using said landings, wharves, docks or warehouses; to regulate the manner of using other landings, wharves, docks, and warehouses within the city; to prescribe and enforce reasonable rules and regulations for the protection and use of said property; to advance to the Government of the United States, with or without interest, funds to be expended in harbor improvements to be made by the government in or near the city, or directly affecting the city within Miami Harbor and the approaches thereto, if such work has been duly authorized by laws of the United States; and to issue bonds or notes to obtain funds for such advances.

(n)—(ll). [Reserved.]

(mm) *Building and zoning:*

(i) To provide by ordinance building, planning, and zoning regulations and restrictions governing the height, number of stories, method of construction, type, and size of buildings and other structures; the percentage and portion of the lot or site that may be occupied; the size of the front, rear, and side yards, courts, and other open spaces; the location, use of buildings, structures, and land for trade, industry, residences, apartment houses, and other purposes; and the widening and future widening of streets in zoned street areas that the city may establish. Such regulations may provide that a board of appeals or the city commission may determine and vary the application of building, planning, or zoning ordinances in harmony with their general purpose and intent.

(ii) In order to preserve the city's natural scenic beauty, to guarantee open spaces, and to protect the waterfront, anything in this Charter or the ordinances of the city to the contrary notwithstanding, neither the city nor any of its agencies shall issue building permits for any surface parking or enclosed structures located on Biscayne Bay or the Miami River from its mouth to the N.W. 5th Street Bridge,

(A) which are not set back at least 50 feet from the seawall (where the

depth of the lot is less than 200 feet, the setback shall be at least 25 percent of the lot depth), and

(B) which do not have average side yards equal in aggregate to at least 25 percent of the water frontage of each lot based on average lot width.

(iii) The above setback and side-yard requirements may be modified by the city commission after design and site-plan review and public hearing only if the city commission determines that the modifications requested provide public benefits such as direct public access, public walkways, plaza dedications, covered parking up to the floodplain level, or comparable benefits which promote a better urban environment and public advantages, or which preserve natural features. Wherever setback, side-yard, or site-plan review requirements of zoning ordinances are greater than the foregoing requirements, such greater requirements shall govern.

(iv) These requirements shall not apply to docks and appurtenant structures, single-family residences and appurtenant structures, and waterfront industrial uses along the Miami River and at the Port of Miami. Nothing herein contained shall in any manner affect or apply to: the City of Miami/University of Miami James L. Knight International Center and hotel facility, including all improvements thereon, or to lands and projects which the city commission has approved prior to September 18, 1979, by development order pursuant to F.S. ch. 380 of a planned area development pursuant to article XXI-1, City of Miami Comprehensive Zoning ordinance or which have received site and development plan approval, including Plaza Venetia, Phase II, Resolution No. 72-113, April 20, 1972; Resolution No. 72-114, April 20, 1972; and Resolution No. 72-416, July 20, 1972.

(Res. No. 01-841, § 2, 8-9-01; Res. No. 01-843, § 2, 8-9-01)

Editor's note—The department of neighborhood rehabilitation of the city and all functions involved therein were abolished pursuant to Ord. No. 7576, § 1, adopted July 17, 1967, and effective on the date of transfer of said department to Dade County. At the direction of the city, § 3(vv), added to the charter by Char. Amend. No. 2, effective Jan. 1, 1963, is not set forth herein.

Sec. 4. Form of government; nomination and election.

(a) *General description.* The form of government of the City of Miami, Florida, provided for under this Charter shall be known as the "mayor-city commissioner plan," and the city commission shall consist of five citizens, who are qualified voters of the city and who shall be elected from districts in the manner hereinafter provided. The city commission shall constitute the governing body with powers (as hereinafter provided) to pass ordinances adopt regulations and exercise all powers conferred upon the city except as hereinafter provided. The mayor shall exercise all powers conferred herein and shall appoint as provided in section 4(g)(6) of this Charter a chief administrative officer to be known as the "city manager."

(b) *Election of mayor and city commission; terms of office; recall.* There shall be elected by the qualified electors of the city at large a mayor who shall be a qualified elector residing within the city at least one (1) year before qualifying as provided in subsection (c) of this section of the Charter and must maintain a residence in the city for the duration of his or her term. The mayor shall not serve as a member of the city commission.

The city commission shall consist of five members who shall be elected from districts within the city, numbered 1 through 5. All persons desiring to run for the office of city commissioner shall file in the district, numbered 1 through 5, for which they are qualified as provided in subsection (c) of this section of the Charter. City commissioners in districts numbered 3 and 5 shall be elected at the general municipal election or runoff election to be held in the year 2001 and at the general municipal election or runoff election each four years thereafter. City commissioners in districts numbered 1, 2, and 4 shall be elected at the general municipal election or runoff election

to be held in the year 2003 and at the general municipal election or runoff election each four years thereafter. The term of office of the City Commissioners shall be four (4) years.

The mayor shall be elected at large by the electors of the city and shall hold office for a term of four years.

The mayor and all city commissioners [are] to hold office from twelve o'clock noon five days after the canvass of the vote by the supervisor of elections and the declaration of the result of either 1) the general municipal election or 2) runoff election and until their successors are elected and qualified. Commencing with the election to be held in November 2001, and all elections subsequent thereto, the lifetime term limit for the Mayor and Commissioners shall be two (2) four-year terms, measured retroactively from their first elections, and said terms shall include any time served as a result of having been appointed to fill a vacancy in the Office of Mayor or Commissioner pursuant to Section 12 of this Charter which such service shall be considered as a full term for purposes of this section. However, said lifetime term shall not include any time served as a result of having been elected to fill a vacancy pursuant to Section 12 of this Charter. The mayor and all other members of the city commission shall be subject to recall. Vacancies shall be filled as provided in section 12 of the Charter.

If a candidate for office of mayor or city commissioner receives a majority of votes in the general municipal election for that office, the candidate shall be considered elected upon and after the canvass of the vote and the declaration of the result of the election as provided. If no candidate receives a majority of the votes for that office, the two candidates for the respective office who received the greatest number of votes for that office in the general municipal election shall be placed on the ballot at the runoff election. The candidate receiving the greatest number of votes in the runoff election, shall be considered elected to the office for which the candidate has qualified.

(c) *Qualifications of mayor and city commission; mayor, city commissioners, and other officers and employees not to be interested in contracts, etc.; franks, free tickets, passes or service.* Candidates for mayor shall be residents of the city and shall have continuously resided in the city for a minimum of one (1) year immediately preceding the date of qualifying and shall be electors therein. Further, candidates for the city commission shall have continuously resided within the district boundaries in effect at the time of qualifying for a minimum of one (1) year immediately preceding the date of qualifying and be electors in that district, and shall maintain residence in that district for the duration of their term of office. The mayor, city commissioners, and other officers and employees shall not be interested in the profits or emoluments of any contract, job, work or service for the municipality. The mayor or any city commissioner who shall cease to possess any of the qualifications herein required shall forthwith forfeit his or her office, and any such contract in which any member is or may become interested may be declared void by the city commission.

No mayor, city commissioner, or other officer or employee of said city shall accept any frank, free ticket, pass or service directly or indirectly, from any person, firm or corporation upon terms more favorable than are granted to the public generally. Any violation of the provisions of this section shall be a misdemeanor. Such prohibition of free service shall not apply to police or fire personnel in uniform or wearing their official badges, where same is provided by ordinance.

(d) *City commission to be judge of its own elections; neither mayor nor city commission nor any committees nor members thereof to dictate appointments by or interfere with city manager.* The city commission shall be the judge of the election and qualifications of the mayor and its own members, subject to review by the courts. Neither the mayor nor the city commission, nor any committees nor members thereof shall direct, request, take part in or dictate the appointment or removal of any person in office or employment by the city manager or subordinates or in any manner interfere with the city manager or prevent

the city manager from exercising his/her own judgment in the appointment of officers and employees in the administrative service. Except for the purpose of inquiry and as may be necessary as provided in section 14, the mayor, the city commission, any committees and members thereof shall deal with the administrative service solely through the city manager, and neither the mayor nor the city commission, nor any committees nor members thereof shall give orders to any of the subordinates of the city manager, city attorney, city clerk, and Independent Inspector General, either publicly or privately. Any such dictation, prevention, orders or other interference or violation of this section on the part of the mayor or a member of the city commission or committees shall be deemed to be violation of the Charter, and upon conviction before a court of competent jurisdiction any individual so convicted shall be subject to a fine not exceeding five hundred dollars ($500.00) or imprisonment for a term of not exceeding sixty days or both, and in the discretion of the court shall forfeit his or her office. Any willful violation of the provisions to this section by the mayor or any city commissioner shall be grounds for his or her removal from office by an action brought in the Circuit Court by the state attorney of this county.

(e) *Election of officers by city commission; rules of city commission; quorum.* The city commission shall elect a city clerk and a city attorney. No member of the city commission or the mayor shall be chosen as city manager or as a member of the civil service board or appointed to any other city office or employment. The city commission may determine its own rules of procedure, may punish its own members for misconduct and may compel attendance of members. A majority of all the members of the city commission shall constitute a quorum to do business, but a smaller number may adjourn from time to time.

(f) *Meetings of city commission; ordinance to be read by title only.* At twelve o'clock noon on the day the mayor or city commissioners take office, they shall meet at the city hall. Thereafter, the city commission shall meet at such time and place as may be prescribed by ordinance or resolution. The meetings of the city commission and all sessions of committees of the city commission shall be public. Ordinances shall be read by title only. No member shall be excused from voting except on matters involving the consideration of his or her own official conduct, or where his or her financial interests are involved.

(g) *Powers and duties of mayor.* The mayor shall serve as the chief executive officer and head of the city government with the following specific powers and duties:

(1) The mayor shall be the presiding officer of the city commission with the authority to designate another member of the city commission to serve as presiding officer.

(2) The mayor shall be recognized as the official head of the city for all ceremonial purposes, by the courts for the purpose of serving civil process, and by the governor for military purposes.

(3) In time of public danger or emergency, the mayor may declare a state of emergency as provided in state law and may with the consent of the city commission, take command of the police and maintain order and enforce the laws.

(4) During the temporary absence or disability, the mayor shall appoint a member of the city commission to perform the duties of the mayor. However, in the event that the mayor does not or is unable to make such designation, the city commission shall designate a member of the city commission to perform the duties of the mayor during the temporary absence or disability of the mayor by a four-fifths vote of the city commissioners then in office.

(5) The mayor shall, within ten days of final adoption by the city commission, have veto authority over any legislative, quasi-judicial, zoning, master plan or land use decision of the city commission, including the budget or any particular component contained therein which was approved by the city commission; provided, however that if any revenue item is vetoed, an expenditure item in the same or greater dollar amount must also be

vetoed. The city commission may, at its next regularly scheduled or special meeting after the veto occurs, override that veto by a four-fifths vote of the city commissioners present, notwithstanding any provisions to the contrary contained in the Charter and city code. Said veto power shall include actions pursuant to sections 29-B through 29-D of the Charter.

(6) When one person succeeds another in the position of mayor, the successor shall have the right to appoint the city manager, subject to the approval within 14 days of a majority of the city commissioners then in office. In the event of a vacancy in the office of city manager, the mayor shall appoint the city manager, subject to the approval within 14 days of a majority of the city commissioners then in office. The mayor may remove the city manager subject to the city commission's conducting a hearing within 10 days of said removal and the city commission's overriding the mayor's action by a four-fifths vote of those city commissioners then in office. Additionally, the city commission by a four-fifths vote of those city commissioners then in office shall be able to remove the city manager.

(7) The mayor shall establish and appoint the members of all standing and special committees of the city commission and the chairperson and vice-chairperson of each committee. There shall be as many standing and special committees of the city commission as deemed necessary by the Mayor. Standing or special committees of the city commission shall mean those comprised of city commission members only.

(8) The mayor shall prepare and deliver a report on the state of the city to the people of the city between November 1 and January 31 annually. Such report shall be prepared after consultation with the city commissioners and the city manager.

(9) The mayor shall prepare and deliver a budgetary address annually to the people of the city between July 1 and September 30. Such report shall be prepared after consultation with the city manager.

(h) *Salaries of the mayor and commission.* Effective on November 4, 2003, there shall be paid to the city commissioners the sum of $58,200, which is equal to sixty percent of the mayor's salary in effect on July 16, 2003. Such salary shall be paid per year for each commissioner, in twelve equal installments. The compensation of the mayor shall be determined by the commission.

(Laws of Fla., ch. 15344(1931); Laws of Fla., ch. 23401(1945); Laws of Fla., ch. 26022(1949); Laws of Fla., ch. 31000(1955); Char. Amend. No. 2, § 1, 1-1-60; Char. Amend. No. 1, 12-1-63; Char. Amend. No. 1, 12-1-65; Ord. No. 88-541, § 2a, 6-9-88/9-6-88; Res. No. 97-447, § 2, 7-3-97; Res. No. 99-613, § 3, 8-2-99; Res. No. 01-843, § 2, 8-9-01; Res. No. 03-918, § 3, 9-5-03; Res. No. 24-0153, § 3, 4-25-24; Res. No. 24-0154, § 3, 4-25-24; Res. No. 24-0283, § 3, 7-25-24; Res. No. 25-0244, § 3, 7-10-25)

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, amended § 4 in its entirety to read as herein set out. Formerly, § 4 pertained to form of government. The historical notation has been retained for reference purposes.

Case law reference—Officials provided for in subsection (e) shall be elected and none of them shall hold office at the will of the city commission when elected, but the city manager when appointed shall hold office subject to the will of the commission. State v. Bloodworth, 134 Fla. 369, 184 So. 1.

Where resolution adopted by the city commission appointing the city clerk failed to fix or state the period of time he was to hold the said office, clerk was entitled to hold office until the next regular city election provided for in this charter unless lawfully removed. *Id.* See also, State v. Bloodworth, 135 Fla. 525, 185 So. 339.

Sec. 5. The initiative.

(a) *Power to adopt ordinances.* The electors shall have power at their option to adopt ordinances, excluding ordinances relating to subjects that would be precluded by law and to adopt the same at the polls, such power being known as the "initiative". A petition meeting the requirements hereinafter provided and requesting the city commission to pass an ordinance

therein set forth or attached shall be termed an "initiative petition" and shall be acted upon as hereinafter provided.

Any five registered voters may commence initiative proceedings by filing with the city clerk an affidavit stating they will constitute the committee of the petition and be responsible for circulating the petition and filing it in proper form. The affidavit shall state the names and addresses of the members of the committee of the petition and shall specify the name and address of the member to whom all notices are to be sent. The affidavit shall set out in full the proposed initiative ordinance.

(b) *Preparation of initiative petition; affidavit of genuineness of signatures.* Signatures of 10 percent of the electors of the city registered at the last general municipal election are required for initiative petitions. The signatures need not all be on one paper, but must be in ink or indelible pencil and include the printed name and residence address of each signer and date signed. The proposed ordinance in full should be attached to the petition for review of the signer. The circulator of every such paper shall make an affidavit on each page in substantially the following form:

STATE OF FLORIDA)

ss.

COUNTY OF MIAMI-DADE)

_____ being duly sworn, deposes and says that he or she is the circulator of the foregoing petition paper containing signatures, and that said signatures were made in his or her presence and are the signatures of the persons whose names they purport to be.

(Signed) _____

Subscribed and sworn to before me this _____ day of _____ 19____.

_____

Notary Public

All papers pertaining to any one ordinance shall be filed in the office of the City Clerk as one instrument and shall have written or printed thereon the names and addresses of the committee of the petition who shall be officially regarded as filing the petition and who shall constitute the committee of the petition for the purposes hereinafter named.

(c) *Filing of petitions.* Within 20 days after the filing of a petition, the city clerk shall ascertain by examination the number of registered voters in the city whose signatures are appended thereto and whether said number is at least 10 percent of the total number of registered voters as shown by the registration records. The city clerk shall attach to said petition a certificate showing the result of said examination and give notice thereof in writing to one or more of the members of the committee of the petition. If the number of signatures supporting the petition is shown to be insufficient, the petition may be amended once within 10 days from the date of said certificate by the filing of additional signatures.

The city clerk shall, with 10 days after such amendments, make examination of the amended petition. The final finding of the insufficiency of a petition shall not prejudice the filing of a new petition for the same purpose.

(d) *Submission of petition to city commission.* Upon ascertaining that a petition is supported by a sufficient number of signatures, the city clerk shall so certify, and the city clerk shall submit the proposed ordinance to the city commission at its next meeting. Upon receiving the proposed, the city commission shall proceed to consider it and shall take final action thereon within 30 days from the date the petition is certified by the city clerk.

(e) *Election on initiated ordinances.* If the city commission fails to pass the proposed ordinance, or if it passes it in a form different from that set forth in the petition, then the ordinance shall be submitted in its original form by the city commission to the vote of the electors at the next election occurring not fewer than 30 days from the date of the final action by the city commission. If no election is to be held within six months from such date, the city commission

shall call a special election to be held not fewer than 30 days nor more than 120 days from such date.

(f) *Initiative ballots.* The ballots used when voting upon any such proposed ordinance shall state the substance thereof in clear, concise

language, without argument or prejudice, and shall provide only for a vote "for the ordinance" or "against the ordinance". If a majority of the electors voting on any such ordinance vote in favor thereof, it shall thereupon become an ordinance of the city. When a ordinance proposed by initiative petition is passed by the city commission, but not in its original form, the ordinance as passed by the city commission shall not take effect until after the vote of the electors; if the ordinance so submitted is approved by a majority of electors voting thereon, it shall thereupon become an ordinance of the city, and the ordinance as passed by the city commission shall be deemed repealed.

The following title shall be substantially the form of the ballot:

TITLE OF WITH GENERAL
STATEMENT OF SUBSTANCE THEREOF

_____

FOR THE ORDINANCE.

_____

AGAINST THE ORDINANCE.

(g) *Number of ordinances to be initiated.* Any number of proposed ordinances may be voted upon at the same election in accordance with the provisions of this Charter.
(Res. No. 01-843, § 2, 8-9-01)

Sec. 6. The referendum.

(a) *Power of referendum.* The electors shall have power at their option to approve or reject at the polls any measure passed by the city commission or measure submitted by the city commission to a vote of the electors excluding measures relating to subjects that would be precluded by law. Such power shall known as the "referendum". Measures submitted to the city commission by initiative petition and passed by the city commission without change or passed in an amended form shall be subject to the referendum in the same manner as other measures.

Any five registered voters may commence referendum proceedings by filing with the city clerk an affidavit stating they will constitute the committee of the petition and be responsible for circulating the petition and filing it in proper form. The affidavit shall state the names and addresses of the members of the committee of the petition and shall specify the name and address of the member to whom all notices are to be sent. The affidavit shall set out in full the referred measure.

(b) *Referendum petition.* If within not less than ten days nor more than 30 days after the final passage of any measure by the city commission, a petition signed by 15 percent of the total number of voters registered at the last general municipal election as shown by the city registration records, is filed with the city clerk requesting that such measure or any part thereof be repealed or be submitted to a vote of the electors, that measure or part shall not, except in the case of an emergency measure, become operative until the steps indicated herein have been taken.

(c) *Signatures to petition.* The signatures of the 15 percent of the electors of the city registered at the last general municipal election are required for referendum petitions. The referred measure in full shall be attached to the petition for review of the signer. The signatures of referendum petitions need not all be on one paper, but the circulator of every such paper shall make an affidavit that each signature appended thereto is the genuine signature of the person whose name it purports to be. Each signature shall be in ink or indelible pencil and shall include the date signed, the printed name and address of the signer. All such papers shall be filed in the office of the city clerk as one instrument. A referendum petition need not contain the text of the measure or part of which repeal is sought, but shall briefly describe the ordinance or part sought to be repealed and such measure shall be attached to the petition for review of the signer.

The circulator of every such paper shall make an affidavit on each page in substantially the following form:

STATE OF FLORIDA)

ss.

COUNTY OF MIAMI-DADE)

_____ being duly sworn, deposes and says that he (or she) is the circulator of the foregoing petition paper containing _____ signatures, and that said signatures were made in his (or her) presence and are the signatures of the persons whose names they purport to be.

(Signed) _____

Subscribed and sworn to before me this _____ day of _____ 20____.

_____
Notary Public

All papers pertaining to any one measure shall be filed in the office of the city clerk as one instrument and shall have written or printed thereon the names and addresses of the committee of the petition who shall be officially regarded as filing the petition and who shall constitute the committee of the petition for the purposes hereinafter named.

(d) *Certification of petition.* Within 20 days after the filing of the petition, the city clerk shall ascertain by examination the number of registered voters whose signatures are appended thereto and whether said number is at least 15 percent of the total number of registered voters as shown by the city registration records. The city clerk shall attach to such petition his or her certificate showing the result of such examination and give notice thereof in writing to the person designated to receive notices by the committee of the petition. If the number of signatures supporting the petition is shown to be insufficient, the petition may be amended once within 10 days from the date of said certificate by the filing an amended petition with additional signatures. The city clerk shall, within 10 days after such amendment, make examination of the amended petition.

(e) *Referendum election.* If the petition is found sufficient, the city commission shall proceed to reconsider such measure or such section thereof as the petition shall specify. If upon such reconsideration such measure, or such part thereof, is not repealed or amended as demanded in the petition, the city commission shall provide for submitting the same, by the method herein provided, to a vote of the electors at the next general municipal election occurring not less than thirty days after the receipt by the city commission of the city clerk's certificate, and such measure, or such part thereof, shall thereupon be suspended from going into effect until said election and shall then be deemed repealed unless approved by a majority of those voting thereon. The city commission by a four-fifths vote may submit such measure or part thereof with like effect to the electors at a special election to be called by said city commission not less than thirty days after the receipt of the city clerk's certificate.

(f) *Limitations on enforcement of ordinances.* No measure shall go into effect until thirty days after its passage unless it is declared in such ordinance to be an emergency measure on the ground of urgent public need for the preservation of peace, health, safety, or property and the measure being passed by a vote of not less than four-fifths of the members of the city commission. No measure amending or repealing any measure adopted by the people at the polls or by the city commission in compliance with an initiative petition shall be regarded as an emergency measure.

(g) *Form of ballot.* The ballots used when voting upon such referendum shall state the substance of the measure in clear, concise language, without argument or prejudice, and shall specify whether the measure is being submitted for approval or for repeal. If the measure is being submitted for approval, the ballot shall provide only for a vote "for the measure" or "against the measure". If the measure is being submitted for repeal, the ballot shall provide only for a vote "for repeal" or "against repeal".

(h) *Emergency measures.* Measures passed as emergency measures shall be subject to referendum like other measures, except that they shall not be suspended from going into effect while referendum proceedings are pending. An emergency measure subsequently repealed shall be deemed sufficient authority for any payment made or expense incurred in accordance with the measure previous to the repeal.

(i) *Conflict of referred measures.* If two or more measures adopted or approved at the same election conflict with respect to any of their provisions, all nonconflicting provisions shall go into effect. The provisions of the measure receiving the highest affirmative vote shall prevail over the conflicting provisions of other measures.

(j) *Adoption or repeal.* If a majority of the electors voting on any referendum vote to adopt or repeal any measure or part thereof, such measure or part shall thereupon be deemed adopted or repealed, as the case may be.
(Res. No. 01-843, § 2, 8-9-01)

Sec. 7. Election of city commissioners and mayor.

A general municipal election for the mayor and city commissioners shall be held on the first Tuesday after the first Monday in November in odd-numbered years. A runoff election for the mayor and city commissioners shall be held on the second Tuesday in December, in odd-numbered years. All elections held in said city shall be conducted and held according to the provisions of the general election laws of the State of Florida, except as otherwise provided for in the Charter. The name of any person qualified as provided in section 4 of this Charter shall be printed upon the ballot as a candidate for the office of mayor or city commissioner upon paying to the City of Miami the sum as prescribed by ordinance to be accepted by the city clerk as a qualifying fee along with the sum for election assessment as prescribed by state law during the qualifying period as prescribed in this Charter prior to the date of such general municipal election or special election to fill a vacancy. Any person qualified to run for mayor or city commissioner shall file an affidavit of candidacy in the form provided by the city clerk including his or her name, address, occupation and willingness to serve if elected, accompanied by the requisite documents and fees as provided in state law and section 7 of this Charter. An affidavit of candidacy shall be filed not earlier than 60 days and not later than 45 days prior to the date of the general municipal election or during the qualifying period for a special election to fill a vacancy.

All such qualifying documents and fees shall be deposited with the city clerk no later than 6:00 pm. on the forty-fifth day prior to the general municipal election or the last day for qualifying in a special election to fill a vacancy.
(Laws of Fla., ch. 15339(1931); Laws of Fla., ch. 19974(1939); Laws of Fla., ch. 21387(1941); Laws of Fla., ch. 22395(1943); Laws of Fla., ch. 23408(1945); Char. Amend. No. 1, 3-14-72; Char. Amend. No. 6, 11-6-73; Res. No. 97-447, § 2, 7-3-97; Res. No. 01-843, § 2, 8-9-01; Res. No. 16-0350, § 2, 7-29-16; Res. No. 24-0280, § 3, 7-25-24)

Editor's note—Res. No. 01-843, § 1, adopted August 9, 2001, amended § 7 in its entirety to read as herein set out. Formerly, § 7 pertained to regular and primary elections of commissioners. The historical notation has been retained for reference purposes.

Sec. 8. Form of ballots.

All ballots used in any general municipal election, runoff election or special election to fill a vacancy held under authority of this Charter shall be without party mark or designation and without any insignia or mark of any association or organization thereon, and shall be substantially in the same form as the election ballot used in all general state elections.
(Laws of Fla., ch. 15339(1931); Res. No. 97-447, § 2, 7-3-97; Res. No. 01-843, § 2, 8-9-01)

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, amended § 8 in its entirety to read as herein set out. Formerly, § 8 pertained to form of ballots; what candidates in primary election for mayor and commissioners placed on ballot. The historical notation has been retained for reference purposes.

Sec. 9. Declaration of election; how tie vote decided.

At any runoff election or special election to fill a vacancy held under the provisions of this Charter, the candidates for the office of city commissioner, who shall have received the greatest number of votes cast, shall be declared elected after the canvass of the vote by the supervisor of elections as provided in section 4. A tie between two or more candidates for the office of city commissioner shall be decided by lot under the supervision of the chair of the canvassing board in the presence of the candidates.

At any runoff election or election to fill a vacancy for the office of mayor held under the provisions of this Charter, the candidate for the office of mayor, who shall have received the greatest number of votes cast, shall be declared elected after the canvass of the vote by the supervisor of elections as provided in Section 4. A tie between the candidates for the office of mayor shall be decided by lot under the supervision of the chair of the canvassing board in the presence of the candidates.
(Res. No. 97-447, § 2, 7-3-97; Res. No. 01-843, § 2, 8-9-01)

Secs. 10, 11. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed §§ 10, 11 in their entirety. Formerly, §§ 10, 11 pertained to distinction between general and special municipal election and the recall, respectively, and derived from Laws of Fla., ch. 14616(1929); Res. No. 97-47, § 2, adopted July 3, 1997.

Sec. 12. Filling vacancies for mayor and commission.

(a) A vacancy on the city commission or in the office of mayor caused by death, resignation, forfeiture, suspension, removal, or other action or causes shall be filled within ten days after such vacancy occurs by a majority of the remaining city commissioners. The person appointed must meet the qualifications of the office as required in section 4 of this Charter. The term of office of the person so appointed, except in the circumstances detailed in section (c) below, shall be until the successor in office is elected and qualified at whichever of the following occurs first:

(1) the odd-year general municipal election for mayor and city commissioners held pursuant to section 4 of the Charter, or

(2) the even-year State of Florida general election, at which election national, state and county offices are filled,

The candidates for such election shall be qualified as provided in section 4 of this Charter and the qualifying period and requirements for such election shall be as provided in section 7 of this Charter. The person elected as provided in (a)(1) or (a)(2) of this Section shall serve for the remainder of the unexpired term of that office.

(b) If the remaining city commissioners shall fail or refuse to fill such vacancy within ten days after it occurs, as provided herein, the city commission shall call a special election to fill the vacancy to be held at a date not less than thirty-eight or more than forty-five days after the expiration of the ten-day period and the five day qualifying period. The qualifying period for such special election shall be for the five days not including Saturday, Sunday or legal holidays before the thirty-eighth day before the date of the election and the procedure for the election not otherwise provided for in this section shall be as provided in section 7 of this Charter. Except in the circumstances detailed in section (c), effective November 7, 2017, the person who receives the greatest number of votes for the office in said special election is elected to fill the vacancy for the remainder of the unexpired term of that office.

(c) If a vacancy in any elected office is caused by forfeiture, suspension, or removal, the vacancy shall be filled in the same manner as described in sections (a) and (b) above, provided that if the elected official who has so vacated his or her seat is later absolved of the allegations of wrongdoing, that elected official shall be entitled to resume his or her elected position for the remainder of the unexpired term, if any. The term of the individual who assumed the position previously vacated by that elected official shall automatically terminate upon the restoration to office of the original seat-holder.

(d) If the city commissioners shall fail to comply with their duties as set forth in this section, then, and in that event, the court is hereby empowered and authorized to enforce compliance with this act or to call an election itself to fill such vacancy or vacancies on the city commission or in the office of mayor.
(Laws of Fla., ch. 22393(1943); Laws of Fla., ch. 27724(1951); Ord. No. 8287, 11-5-74; Res. No. 97-447, § 2, 7-3-97; Res. No. 01-843, § 2, 8-9-01; Res. No. 17-0318, § 2, 7-13-17)

Sec. 13. Redistricting.

(a) *Appointment.* There shall be a citizens' redistricting committee, which shall be empaneled in each year following the decennial census and at any other time redistricting is required by law. The city clerk shall develop and publish an application for members of the committee and set deadlines for the submission of applications, appointment of committee members, and development and proposal of plans pursuant to subsection (d). The city commissioners and the mayor shall each appoint one committee member.

(b) *Qualifications.* Each committee member shall be a city resident with an outstanding reputation of integrity, responsibility, and commitment to community service. No person may serve on the committee if they have, within two years from the date of application, held or been a candidate for elected office or been a registered lobbyist with the city. No person may serve on the committee if they or an immediate family member have, within two years from the date of application, served as an employee of the city commission, a city commissioner, or the mayor. For the purposes of this section, "immediate family" means a person's spouse or the parent, child, grandparent, grandchild, or sibling of the person or the person's spouse.

(c) *Tenure, Removal, and Vacancies.* Each committee member's term of office expires the later of (1) one year after the committee adopts a redistricting plan, or (2) when all pending legal challenges to the committee's redistricting plan are resolved. A committee member may be removed for good cause and after proper hearing by a three-fourths vote of either the committee or city commission. Vacancies shall be filled by the remaining committee members.

(d) *Duties.*

(1) The committee shall have the power to draw the city commission districts after each decennial census and at any other time required by law, pursuant to this section. The committee shall be staffed by the city attorney, city clerk, and any redistricting experts selected by the committee.

(2) The committee shall conduct an open and transparent process enabling full public consideration of and comment on the drawing of district lines. The committee shall solicit and accept input from the public as part of the drafting process.

(3) The committee shall propose one or more initial redistricting plans to the city commission. The city commission may (a) reject all initial plans and transmit its objections thereto to the committee, (b) adopt an initial plan without changes, (c) adopt an initial plan with changes, provided the changes do not move more than two percent of the population of any proposed district, or (d) after voting on each initial plan and rejecting them all, adopt its own plan by the vote of at least four city commissioners.

(4) If the city commission fails to adopt a redistricting plan pursuant to paragraph (3), the committee shall propose one or more revised redistricting plans to the city commission. The city commission may (a) accept a revised plan without changes, (b) adopt a revised plan with changes, provided the changes do not move more than two percent of the population of any proposed district, or (c) after voting on each revised plan and rejecting them all, adopt its own plan by the vote of at least four city commissioners.

(e) *Standards for Districts.* No redistricting plan or district may be drawn with the intent to favor or disfavor a candidate or incumbent. This subsection shall apply to any districts drawn after it is approved by the voters.

(Res. No. 25-0243, § 3, 7-10-25)

Editor's note—Prior to the reenactment of section 13 by Res. No. 25-0243, adopted July 10, 2025, Res. No. 01-843, § 2, adopted August 9, 2001, repealed section 13 in its entirety. Formerly, section 13 pertained to election when terms of four or more commissioners expire simultaneously, and derived from Laws of Fla., ch. 22393(1943), and Laws of Fla., ch. 27724(1951).

Sec. 14. Commission may investigate official transactions, acts and conduct.

The mayor, city commission, or any committee thereof may investigate the financial transac-

tions of any office or department of the city government and the official acts and conduct of any city official, and by similar investigations may secure information upon any matter. In conducting such investigations the mayor, city commission, or any committee thereof, may require the attendance of witnesses and the production of books, papers and other evidence, and for that purpose may issue subpoenas which shall be signed by the presiding officer of the city commission or the chair of such committee, as the case may be, which may be served and executed by any police officer.
(Res. No. 97-447, § 2, 7-3-97; Res. No. 01-843, § 2, 8-9-01)

Sec. 15. City manager—Qualifications; appointment; term; salary; sickness or absence; removal.

The city manager shall be the head of the administrative branch of the city government. The city commission shall fix the city manager's compensation, and the city manager shall serve as provided in section 4(g). The city manager shall be chosen on the basis of the city manager's executive and administrative qualifications. At the time of the city manager's appointment the city manager need not be a resident of the state. Neither the mayor nor any city commissioner shall be eligible for the position of city manager during or within two years after the expiration of their respective terms.

The mayor, subject to the approval of the city commission, may designate a qualified administrative officer of the city to assume the duties and authority of the city manager during periods of temporary absence or disability of the city manager.

The city manager shall be responsible for the administration of all units of the city government under the city manager's jurisdiction, and for carrying out policies adopted by the city commission. The city manager or designee shall execute contracts and other instruments, sign bonds and other evidences of indebtedness.
(Char. Amend. No. 2, 1-1-62; Res. No. 97-447, § 2, 7-3-97; Res. No. 01-843, § 2, 8-9-01)

Sec. 16. Same—Powers and duties.

The powers and duties of the city manager shall be to:

(a) See that the laws and ordinances are enforced.

(b) Appoint and remove, except as otherwise provided in this Charter, all directors of the departments and all subordinate officers and employees in the departments in both the classified and unclassified service; all appointments to be upon merit and fitness alone, and in the classified service all appointments and removals to be subject to the civil service provisions of this Charter.

(c) Exercise control over all departments and divisions created herein or that may be hereafter created by the city commission.

(d) Attend all meetings of the city commission with the right to take part in the discussion but having no vote.

(e) Recommend to the mayor and city commission for adoption such measures as the city manager may deem necessary or expedient.

(f) Keep the mayor and city commission fully advised as to the financial condition and needs of the city; and

(g) Perform such other duties as may be prescribed by this Charter or be required by the mayor or ordinance or resolution of the city commission.

(Res. No. 97-447, § 2, 7-3-97; Res. No. 01-843, § 2, 8-9-01)

Editor's note—As to removal and suspension of chief of police, see annotation to charter § 26.

Case law reference—It was the intention of the legislature to make the city manager at all times hold office subject to the will of the commission upon whom rested the administrative affairs of the city government, which could be speedily checked and corrected if necessary at the will of the commission by a change in the office of the city manager. State v. Bloodworth, 134 Fla. 369, 184 So. 1.

Subsection (b)—The phrase "except as herein provided," employed in subsection (b) of this section, qualifies or limits every provision of the city charter providing for removals in

specific cases, and such other provisions must be construed with the subsection. Bryan v. Landis, 106 Fla. 19, 142 So. 650.

The city manager has no summary power of appointment under civil service rules, and all appointments and promotions by the city manager must be within the requirements of such rules. Bloodworth v. Suggs, 60 So. 2d 768.

Police officers may be demoted during probationary period after accepting probationary promotion in rank. Clarke v. City of Miami, 81 So. 2d 217.

The city manager is not required as a matter of law to promote civil service employees when a vacancy occurs. His refusal to fill vacancies due to economic conditions is a matter within his discretion. City of Miami v. Elmore, 131 So. 2d 517.

Where city manager opts to utilize advisory group to directly assist him in the decision-making process to select a new police chief, the advisory group is a "board" within the meaning of F.S. § 286.011, the city manager is an "agency" within the meaning of said statute, and meetings of the advisory group must be open meetings pursuant to said statute. State v. Krause, 47 Fla. Supp. 36, *aff'd* Krause v. Reno, 366 So. 2d 1244.

Sec. 17. Same—Examination of affairs of departments, officers or employees.

The city manager may, without notice, cause the affairs of any department or the conduct of any officer or employee to be examined. Any person or persons appointed by the city manager to examine the affairs of any department or the conduct of any officer or employee shall have the same right to require the attendance of witnesses and production of books and papers and other evidence as is conferred upon the mayor and city commission by this Charter.
(Res. No. 01-843, § 2, 8-9-01)

Sec. 18. Departments established.*

The following administrative departments are hereby established by this Charter:

(1) Department of law.

(2) Reserved.

(3) Reserved.

(4) Department of public safety.

(5) Department of finance.
(Res. No. 01-843, § 2, 8-9-01)

*__Note—__Pursuant to authority granted in section 19 of this charter, the departments of public service, public welfare and public safety have been discontinued and numerous new departments have been created by ordinance. The user's attention is directed to ch. 2 of the Code of Ordinances for existing departments and functions thereof.

Sec. 19. Creation of new departments; discontinuance of departments.

The city commission may, by ordinance adopted by vote of at least three members of the city commission, create new departments or discontinue any department and determine, combine, and distribute the functions and duties of departments and subdivisions thereof.
(Laws of Fla., ch. 21391(1941); Res. No. 01-843, § 2, 8-9-01)

Sec. 19-A. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed § 19-A in its entirety. Formerly, § 19-A pertained to authority to create and discontinue departments by ordinance not limited to other charter provisions and derived from Laws of Fla., ch. 21391(1941).

Sec. 20. Directors of departments.

The city manager shall appoint a director for each department and, in the city manager's discretion, may consolidate two departments under one director. Each such director shall serve until removed by the city manager or until a successor has been appointed and qualified, shall conduct the affairs of his or her department in accordance with rules and regulations made by the city manager, shall be responsible for the conduct of the officers and employees of his or her department, for the performance of its business, and for the custody and preservation of the

books, records, papers and property under its control, and, subject to the supervision and control of the city manager in all matters, shall manage the department. None of the provisions of this section, however, shall be applicable to the department of law, city clerk, or Office of the Independent Inspector General.*
(Laws of Fla., ch. 21388(1941); Res. No. 01-843, § 2, 8-9-01; Res. No. 24-0153, § 4, 4-25-24; Res. No. 24-0154, § 4, 4-25-24)

Sec. 21. Department of law.

The city attorney shall be the director of the department of law and an attorney-at-law admitted to the practice in the State of Florida. The city attorney shall be the legal advisor of and attorney and counsel for the city, and for all officers and departments thereof in matters relating to their official duties. The city attorney shall prosecute and defend all suits for and in behalf of the city, and shall prepare all contracts, bonds and instruments in writing in which the city is concerned and shall endorse on each approval of the form and correctness thereof.

The city attorney shall be the prosecuting attorney of the municipal court. The city attorney shall have such number of assistants as the city commission by ordinance may authorize. The city attorney shall prosecute all cases brought before such court and perform the same duties, so far as they are applicable thereto, as are required of the prosecuting attorney of the county.

When required to do so by the resolution of the city commission, the city attorney shall prosecute or defend for and in behalf of the city all complaints, suits and controversies in which the city is a party, and such other suits, matters and controversies as he shall, by resolution or ordinance, be directed to prosecute or defend.

The mayor, city commission, the city manager, the director of any department, or any officer or board not included within a department, may require the opinion of the city attorney upon any question of law involving their respective powers and duties.

The city attorney shall be a full-time governmental employee; shall not engage in the private practice of law; and upon his or her election by the city commission shall serve until the time for the election of the city officials specified in section 4 of the Charter which follows the next general municipal election.
(Char. Amend. No. 1, 11-6-73; Res. No. 97-447, § 2, 7-3-97; Res. No. 01-843, § 2, 8-9-01)

Secs. 22—22-C. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed §§ 22—22-C in their entirety. Formerly, §§ 22—22-C pertained to department of public service, department of water and sewers; water and sewer board, department of public welfare, and board of trustees of Jackson Memorial Hospital, respectively.

Sec. 23. Department of off-street parking; off-street parking board.

(a) There is hereby created and established as an agency and instrumentality of the City of Miami, a new department to be named and known as the "Department of Off-Street Parking of the City of Miami" (hereinafter sometimes called the "department of off-street parking" or the "department"), and by that name it may sue and be sued, plead and be impleaded, contract and be contracted with and have an official seal; provided, however, that the department shall not commence business or exercise any of the powers granted by this act unless and until the city commission of the City of Miami shall by ordinance declare the need for the department and for the off-street parking board of the City of Miami hereinafter created. The department, which shall operate and function under the supervisory control of the board created and established in subsection (b) hereof, shall consist of a chief executive officer to be known as the "director of the department of off-street parking" (hereinafter sometimes called the "director of the department" or the "director") and such other officers and employees as shall be necessary to exercise the powers and perform the duties and functions of the department.

(b) There is hereby created and established a board to be known as the "Off-Street Parking Board of the City of Miami" (hereinafter

*__Note—__Transfer of the operations of the city's department of water and sewers to Metropolitan Dade County was authorized by Res. No. 73-225, adopted March 22, 1973.

sometimes called the "off-street parking board" or the "board") which shall consist of five members. Each member of the board shall either reside or have his or her principal place of business in the city and shall be an individual of outstanding reputation for integrity, responsibility and business ability, but no officer or employee of the city shall serve as a member of the board while employed as such officer or employee of the city.

Within thirty days after the city commission shall have adopted an ordinance declaring the need for the department and for the board, it shall appoint the members of the board, two of whom shall hold office for a term of two years, two of whom shall hold office for a term of three years, and one of whom shall hold office for a term of four years, and thereafter each member shall be appointed for a term of five years, as herein provided.

At least twenty days prior to the date of expiration of the term of any member of the board, or within ten days after the death, resignation or removal of any such member, such member's successor shall be named and appointed by the remaining members of the board, subject to confirmation by the city commission of the city. In the event that any appointment so made shall not be confirmed by the city commission within ten days after notice of such appointment has been served upon the city commission, the appointment shall be null and void, and thereupon the remaining members of the board shall make a new appointment, or appointments, which shall likewise be subject to confirmation by the city commission and each member of the board shall be eligible for reappointment. The successor in each case shall be appointed and shall hold office for a term of five years from the date of expiration of the term of his or her predecessor, except that any person appointed to fill a vacancy shall serve only for the unexpired term.

Upon the effective date of his or her appointment, or as soon thereafter as practicable, each member of the board shall enter upon his or her duties, but before doing so he or she shall take the oath prescribed by law and shall execute a bond in the penal sum of ten thousand dollars ($10,000.00) payable to the department and conditioned upon the faithful performance of the duties of his or her office, which bond shall be approved by the city commission of the city and filed with the city clerk, the cost of the premium on any such bond to be treated as part of the cost of operating the department.

The members of the board shall each be paid a salary of fifty dollars ($50.00) per annum, or such larger sum as the city commission may establish by ordinance, payable in monthly installments.

Any member of the board may be removed by the city commission of the city for good cause and after proper hearing by the city commission, but if so removed, may apply to the Circuit Court of the Eleventh Judicial Circuit in and for Dade County, Florida, for a review of the action of the city commission.

(c) The board shall have the powers, duties and responsibilities customarily invested in the board of directors of a private corporation, and shall exercise supervisory control over the operation of the off-street parking facilities of the city, and all acts of the department and of the director with respect to such facilities shall be subject to the approval of the board. The board shall elect one of its members to serve as chair of the board, shall make appropriate rules and regulations for its own government and procedure, and shall hold a regular meeting at least once a month and such special meetings as it may deem necessary, and all such meetings shall be open to the public.

(d) From and after the date of appointment of the first member of the board, the department shall operate, manage and control the off-street parking facilities of the city and all properties pertaining thereto now owned or hereafter acquired or constructed by the city or by the department and shall succeed to and exercise all powers vested in and succeed to and perform all functions and duties imposed upon the department of off-street parking of the city by and under the provisions of this act.

Upon the adoption by the city commission of an ordinance declaring the need for the department and the board, all powers, functions and

duties relating to such off-street parking facilities and properties pertaining thereto then vested in the city or any of its departments officers, including but not limited to the exercise of the power of eminent domain, shall be and are hereby transferred to the department, and all books, records and papers now existing or hereafter acquired in the operation and maintenance of said facilities or relating thereto shall be the property of and under the jurisdiction and control of the department; provided, however, that nothing contained in this section shall be deemed to vest in the department the power to establish and fix rates and charges for off-street parking service furnished by the off-street parking facilities of the city or the power to issue revenue bonds. The department shall have full power and authority to acquire, own, use, hire, lease, operate and dispose of real property and personal property and of any interest therein, including the power to acquire by eminent domain proceedings lands or any interest therein and rights-of-way and easements upon, in, along or across any public street, road or highway for the purpose of constructing, maintaining or operating off-street parking facilities as shall be necessary in the judgment of the off-street parking board, and to make and enter into all contracts necessary or incidental to the exercise of its powers and the performance of its duties and functions with respect to the operation, management and control of said facilities, and to promulgate and enforce appropriate rules and regulations governing the utilization of the services of the off-street parking facilities of the city.

(e) The director shall be appointed by and shall hold office at the will of the board. Such person shall be of good moral character and have an excellent reputation for integrity, responsibility and business ability, but no member of the board shall be eligible for appointment as director. The director shall receive such salary, payable to him or her in equal semi-monthly installments, as shall be fixed by the board. Before entering upon his or her duties, the director shall take any oath and execute any bond prescribed by law. The director shall act as the chief executive officer of the department, shall devote his or her entire time and attention to the duties of his or her office and shall not engage actively in any other business or profession. Subject to the direction and approval of the board, the director shall have general supervision over and be responsible for the operation and maintenance of the off-street parking facilities of the city and shall exercise the powers vested in and perform the functions and duties imposed upon him or her as herein provided. The director shall attend all meetings of the board, shall furnish to the board and the city commission of the city a monthly report with respect to the operation, maintenance and financial condition of the department of off-street parking, and shall from time to time have prepared and shall furnish such reports, audits and other information relating to said facilities as may be required by the board.

In the event that the director shall for any reason be temporarily incapable of exercising the powers and of performing the duties and functions of his or her office, the board may appoint an acting director to exercise such powers and to perform such functions and duties until such incapacity of the director shall be terminated.

(f) Subject to the approval of the board, the director shall employ such additional executive and operating assistance, including engineering and other experts and professional assistance, as shall be necessary to provide for the efficient operation of the department. Included in the personnel to be employed, there shall be the following subordinate officers whose positions shall be in the unclassified service of the city:

(1) A treasurer, who shall perform the functions and duties customarily performed by the treasurer of a private corporation. The treasurer shall be responsible for all funds of the department, for all accounts and accounting records relating to the department and its operation, and for the preparation of all checks and vouchers requisite to the operation of the department.

(2) A secretary, who shall perform the functions and duties customarily performed by the secretary of a private corporation. The secretary shall have charge and custody of the official seal and of all books, records, documents and papers of the department other than those required to be in the custody of the treasurer. He or she shall attend in person all meetings of the board, and shall keep a correct record of all the proceedings of the board, and shall perform such other duties as may be assigned to him or her as secretary by the board.

(g) The city attorney shall act as general counsel for the department and for the board in all matters of law which may arise, and shall prosecute or defend all suits brought by or against the city or the department or the board which relate to the off-street parking facilities of the city. Special counsel as shall be deemed necessary by the city attorney may be employed by the director subject to the approval of the board, city attorney and city commission. Such special counsel shall serve under the direct supervision and control of the city attorney.

(h) All budgets, funds and accounts pertaining to the off-street parking facilities of the city shall be segregated from all other budgets, funds and accounts of the city and shall be so kept that they shall reflect the financial condition and the operation of each off-street parking facility of the city separately. Not later than one month before the end of each fiscal year the director, with the approval of the board, shall prepare and submit to the city commission of the city a budget estimate of expenditures and revenues for the ensuing fiscal year in the same form and like manner as all other departments of the city for approval by the city commission with the exception, however, that such budget estimate will be submitted directly to the city commission of the city for its approval.

(i) All expenses incurred by the department and by the board in exercising their powers and performing their functions and duties shall be paid solely from the revenues of the off-street parking facilities of the city and no liability or obligation not payable from the revenues of said facilities shall at any time be incurred in connection with the operation thereof.

(j) Should there occur in any fiscal year an excess of revenue over expenditures required for operation, maintenance, required reserves and debt service, then such excess revenues shall, subject to the provisions of any ordinance of the city commission of the city authorizing the issuance of parking facilities revenue bonds of the city, and to the provisions of any trust indenture or trust agreement securing such bonds, be paid into the general funds of the city.

(k) All powers and rights conferred by this section shall be in addition and supplemental to those conferred by any other general or special law and shall be liberally construed to effectuate the purposes hereof; and the department and the board shall have power, in addition to exercising the powers expressly conferred in and by this section, to do all things necessary or convenient to carry out the purposes hereof.
(Laws of Fla., ch. 30997(1955); Res. No. 88-535, 6-9-88/9-6-88; Res. No. 01-843, § 2, 8-9-01)

Sec. 24. Department of public safety.

The head of the department of public safety shall be known as the director of public safety.

Subject to the supervision and control of the city manager in all matters, the head of the department of public safety shall be the executive head of the division of police and fire. He or she shall be the chief administrative authority in all matters pertaining to the erection, maintenance, repair, removal, razing, occupancy and inspection of buildings under such regulations as may be ordained by the city commission.

(a) *Division of police.* The police force shall be composed of a chief and such officers and other employees as the city manager may determine. The chief of police shall have the immediate direction and control of the police force, subject to the supervision of the director of public safety, and to such rules, regulations and orders as the said director may prescribe, and through the chief of police, the director of public safety shall promulgate all orders,

rules and regulations for the government of the police force. The chief of police shall devote his or her entire time to the discharge of his or her official duties and shall not be absent from the city except in the performance of his or her official duties, unless granted a written leave of absence by the city manager. His or her office shall be kept open at all hours, day or night, and either the chief of police or a subordinate shall be in constant attendance. In case of the disability of the chief of police by reason of sickness, absence from the city or other cause, the director of public safety shall designate one of the captains or lieutenants of police to act as chief of police during such disability, and the officer so designated shall serve without additional compensation. The members of the police force, other than the chief, shall be selected from the list of eligibles prepared by the civil service board, and in accordance with such rules as the said board may prescribe; provided, that in case of riot or emergency, the director of public safety may appoint additional patrolmen for temporary service, who need not be in the classified service. Each member of the police force, both rank and file, shall have receive a warrant of appointment signed by the city manager, in which the date of the appointment shall be stated, and such shall be that member's commission.

No person, except as otherwise provided by general law or this Charter, shall act as special police or special detective except upon written authority from the director of public safety. Such authority, when conferred, shall be exercised only under the direction and control of the chief of police and for a time specified in the appointment.

The members of the police force of said city shall be invested with all the power and authority necessary for enforcing the ordinances of said city.

The chief of police or any police officer of the City of Miami, may arrest without warrant, any person violating any of the ordinances of the city committed in the presence of such officer, and when knowledge of the violation of any ordinance of said city shall come to the said chief of police or police officer, not committed in his or her presence, he or she shall make affidavit before the judge or clerk of municipal court against the person charged with such violation, whereupon, said judge or clerk shall issue a warrant for the arrest of such person.

(b) *Division of fire.* The fire force shall be composed of a chief and such other officers, firemen and employees as the city manager may determine. The fire chief shall have immediate direction and control of the said department, subject to the supervision of the director of public safety and to such rules, regulations and orders as the said director may prescribe and through the fire chief the director of public safety shall promulgate all orders, rules and regulations for the government of the fire department.

The members of the fire department, other than the chief, shall be appointed from the list of eligibles prepared by the civil service board and in accordance with such rules and regulations as may be prescribed by said board; provided, that in case of riot, conflagration or emergency, the director of public safety may appoint additional firemen and officers for temporary service who need not be in the classified service.

The chief of the fire department and his or her assistants are authorized to exercise the powers of police officers while going to, attending or returning from any fire or alarm of fire. The fire chief and each of his or her assistants shall have issued to him or her a warrant of appointment signed by the city manager, in which the

date of his or her appointment shall be stated, and such warrant shall be his or her commission.

Whenever any building in said city shall be on fire, it shall be lawful for the chief of the fire department to order and direct such building or any other building which he or she may deem hazardous and likely to communicate fire to other buildings, or any part of such buildings, to be pulled down or destroyed and no action shall be maintained against said chief or any person acting under his or her authority therefor.

(Res. No. 01-843, § 2, 8-9-01)

Editor's note—This section and sections 25 and 26 were purportedly repealed by chapter 27719, Special Acts of 1951. However, that act, together with chapters 27720 and 27721, which established the departments of police and fire, was held invalid in the case of City of Miami v. Headley, 61 So. 2d 321, and, consequently, this section and sections 25 and 26 remained in effect. Also, chapter 27722, Special Acts of 1951, which added a section creating the department of communications, is deemed to have been held invalid by implication by the same case and has been omitted.

Although this section has never been expressly repealed, the department of public safety and all divisions thereof were discontinued pursuant to the exercise of the authority contained in the provisions of charter section 19 (Laws of Fla., ch. 21391(1941)) by the adoption of ordinances establishing separate departments of fire, police and communications.

Sec. 25. Supervision in divisions of police and fire.

The chief of police and fire chief shall have the right and power to suspend any of the officers and employees in their respective division who may be under their management and control for incompetence, neglect of duty, immorality, drunkenness, failure to obey orders given by proper authority, or for any other just and reasonable cause. If any officer or employee be suspended as herein provided, the chief of the division concerned shall forthwith in writing certify the fact together with the cause of suspension, to the director of public safety, who shall render judgment thereon, which judgment, if the charge be sustained, may be a reprimand, fine, suspension, reduction in rank or dismissal.

The director of public safety in any investigation shall have the power to administer oaths and secure the attendance of witnesses and the production of books and papers.

The employee shall be allowed the same appeal procedure as set forth in section 36(f) of the Charter, provided, however, in the event the offices of city manager and director of public safety are held by the same person, the city manager-director of public safety, before passing upon the guilt or innocence of the person suspended, may authorize the civil service board to conduct a hearing upon the suspension charges preferred by the chiefs of fire or police and to report its findings and recommendations back to said city manager-director of public safety. The city manager-director of public safety then shall pass judgment upon the person suspended, after considering the findings and recommendations of the civil service board.

(Laws of Fla., ch. 24695(1947); Res. No. 01-843, § 2, 8-9-01)

Editor's note—See the editor's note following § 24. Also, although this section has never been expressly repealed, the department of public safety and all divisions thereof were discontinued pursuant to the exercise of the authority contained in the provisions of charter section 19 (Laws of Fla., ch. 21391(1941)) by the adoption of ordinances establishing separate departments of fire, police and communications.

Case law reference—In Rosenfelder v. Huttoe, 156 Fla. 682, 24 So. 2d 108, a mandamus proceeding by a civil service member of the police force, arising before the amendment, to cancel an order dismissing him from the division of police, it was held that while a court might not under all circumstances substitute its judgment for that of the director, it was competent to determine whether jurisdictional charges were brought against accused and whether or not the requirements of the charter preliminary to his suspension were complied with.

Sec. 26. Suspension and removal of chief of police and fire chief.

The city manager shall have the exclusive right to suspend the chief of police and fire chief for incompetence, neglect of duty, immorality, drunkenness, failure to obey orders given by proper authority, or for any other just and reasonable cause. If either of such chiefs be so suspended the city manager shall forthwith certify the fact, together with the cause of suspension, to the commission who within five (5) days from the

date of receipt of such notice, shall proceed to hear such charges and render judgment thereon, which judgment shall be final.

Editor's note—See note to § 24.

Case law reference—This section provides the sole and exclusive means for suspending and removing the chief of police. Bryan v. Landis, 106 Fla. 19, 142 So. 650, 653.

The chief of police may be suspended by the city manager only for one or more of the causes enumerated in this section, and when such suspension has been certified to the city commission and the cause thereof examined by them and found after a full hearing to be well grounded, then the commission enters its affirmative judgment which is final. When the affirmative judgment of the commission is entered, the suspension of the chief of police *eo instante* becomes a removal, but, if the judgment of the commission is in the negative, the suspension ceases, and he is *eo instante* reinstated. Bryan v. Landis, 106 Fla. 19, 142 So. 650, 653.

The city manager may not summarily remove from office the chief of police without notice or opportunity to be heard in his defense. Bryan v. Landis, 106 Fla. 19, 142 So. 650, 651.

Pursuant to charter section 19 the department of public safety and the divisions thereof, police and fire, were discontinued. Subsequent ordinances established a department of police and department of fire with each department having a director. Section 16 of this charter authorizes the city manager to remove all department directors in accordance with the provisions set forth in this charter.

Sec. 27. Finance, department of finance.

(a) *Department director.* Subject to the supervision and control of the city manager, the director of finance shall have charge of the department of finance and shall administer the financial affairs of the city, including the keeping and supervision of all accounts, the levy, assessment and collection of revenues, the making and collection of special assessments, the custody and disbursement of city funds and monies, the control over expenditures, and such other duties as the city manager may direct.

(b) *Form and manner of keeping accounts and making reports.* Accounts shall be kept by the department of finance showing the financial transactions of all departments and offices of the city. The forms of all such accounts and the financial reports rendered to or by the department of finance shall be prescribed by the director of finance with the approval of the city manager. The accounts and accounting procedure of the city shall be consistent with the pronouncements of the Governmental Accounting Standards Board and accounting principles as generally accepted in the United States.
(Res. No. 01-843, § 2, 8-9-01)

Secs. 27-A—28. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed §§ 27-A—28 in their entirety. Formerly, §§ 27-A—28 pertained to limitation as to levy of ad valorem taxes for public library and library systems; levy of taxes; tax assessor; board of equalization; assessor to have power of county assessor, general assessment roll; signing and endorsing general assessment roll, return and presumption of validity; copy of assessment roll annexed to warrant commanding collection; state law as to taxes applies; discounts if taxes paid before certain time; when taxes become delinquent, interest rates on delinquent taxes; tax certificates, interest rate thereon; and chief procurement officer, respectively.

Sec. 29-A. Contracts for, unified development projects, and real property; safeguards.

(a) *Unified development projects.* A unified development project shall mean a project where an interest in real property is owned or is to be acquired by the city, is to be used for the development of improvements, and as to which the city commission determines that for the development of said improvements it is most advantageous to the city to procure from a private person, as defined in the Code of the City of Miami, one or more of the following integrated packages:

(1) planning and design, construction, and leasing; or

(2) planning and design, leasing, and management; or

(3) planning and design, construction, and management; or

(4) planning and design, construction, leasing, and management.

So long as the person from whom the city procures one of the above-mentioned integrated packages provides all of the functions listed for that package, such person need not provide each listed function for the entire unified development project nor for the same part of the unified development project.

As many members of the public having expertise in the field of real estate development or in other relevant technical areas or who reside within the vicinity of a proposed unified development project site as deemed appropriate by the city manager shall be invited by the city manager to provide input during the preparation of documents for competitive processes of the unified development project.

If deemed appropriate by the city manager, the unified development project process shall include a request for qualifications process prior to the issuance of a request for proposals. Qualifications shall be evaluated by the city manager or designee(s) and only those deemed qualified in accordance with the specified evaluation criteria shall be invited to participate in the subsequent request for proposal process for said unified development project.

Requests for proposals for unified development projects shall generally define the nature of the uses the city is seeking for the unified development project and the estimated allocations of land for each use. They shall also state the following:

(1) the specific parcel of land contemplated to be used or the geographic area the city desires to develop pursuant to the unified development project;

(2) the specific evaluation criteria to be used by the below-mentioned certified public accounting firm;

(3) the specific evaluation criteria to be used by the below-mentioned review committee;

(4) the extent of the city's proposed commitment of funds, property, and services;

(5) the definitions of the terms "substantial increase" and "material alteration" that will apply to the project pursuant to subsection (e)(4) hereof; and

(6) a reservation of the right to reject all proposals and of the right of termination referred to in subsection (e)(4), below.

After public notice there shall be a public hearing at which the commission shall consider:

(1) the contents of the request for proposals for the subject unified development project;

(2) the selection of a certified public accounting firm, which shall include at least one member with previous experience in the type of development in question; and

(3) the recommendations of the city manager for the appointment of persons to serve on the review committee. Said review committee shall consist of an appropriate number of city officials or employees and an equal number plus one of members of the public, whose names shall be submitted by the city manager no fewer than five days prior to the above-mentioned public hearing.

At the conclusion of the public hearing the city commission shall authorize the issuance of a request for proposals, select a certified public accounting firm, and appoint the members of the review committee only from among the persons recommended by the city manager.

The procedure for the selection of an integrated package proposals shall be as follows:

(1) all proposals shall be analyzed by a certified public accounting firm appointed by the commission based only on the evaluation criteria applicable to said certified public accounting firm contained in the request for proposals. Said certified public accounting firm shall render a written report of its findings to the city manager.

(2) the review committee shall evaluate each proposal based only on the evaluation criteria applicable to said review committee contained in the request for proposals. Said review committee shall render a written report to the city manager of its evaluation of each proposal, including any minority opinions.

(3) taking into consideration the findings of the aforementioned certified public

accounting firm and the evaluations of the aforementioned review committee, the city manager shall recommend one or more of the proposals for acceptance by the city commission, or alternatively, the city manager may recommend that all proposals be rejected. If there are three or more proposals and the city manager recommends only one, or if the city manager recommends rejection of all proposals, the city manager shall state in writing the reasons for such recommendation.

In transmitting his or her recommendation or recommendations to the commission, the city manager shall include the written reports, including any minority opinions, rendered to by the aforementioned certified accounting firm and review committee.

(4) all contracts for unified development projects shall be awarded to the person whose proposal is most advantageous to the city, as determined by the city commission.

The commission may accept any recommendation of the city manager by an affirmative vote of a majority of its members. In the event the commission does not accept a proposal recommended by the city manager or does not reject all proposals, the commission shall seek recommendations directly from the aforementioned review committee, which shall make a recommendation or recommendations to the commission taking into account the report of the aforementioned certified public accounting firm and the evaluation criteria specified for the review committee in the request for proposals.

After receiving the direct recommendations of the review committee, the commission shall, by an affirmative vote of a majority of its members:

(1) accept any recommendation of the review committee; or

(2) accept any previous recommendation of the city manager; or

(3) reject all proposals.

All contracts for unified development projects shall be signed by the city manager or designee after approval thereof by the commission. The city manager or designee shall be responsible for developing a minority procurement program as may be prescribed by ordinance and permitted by law in conjunction with the award of contracts for unified development projects. The provisions of this charter section shall supersede any other charter or code provision to the contrary.

(b) *Sales and leases of real property; prohibition.* Except as otherwise provided in this section, there shall be no sale, conveyance, or disposition of any interest, including any leasehold, in real property owned by the city, the department of off-street parking, or the downtown development authority, unless there has been prior public notice and a prior opportunity given to the public to compete for said real property or interest. Any such sale, conveyance, or disposition shall be conditioned upon compliance with: the provisions of this section; such procurement methods as may be prescribed by ordinance; and any restrictions that may be imposed by the city, the department of off-street parking, or the downtown development authority, as appropriate. Further, no right, title, or interest shall vest in the transferee of such property unless the sale, conveyance, or disposition is made to the highest responsible bidder, as is determined by the city commission, or the off-street parking board, or the downtown development authority board of directors. The city commission or the off-street parking board or the downtown development authority board of directors, as appropriate, may by resolution waive the requirement of sale, conveyance, or disposition to the highest responsible bidder by means of the following procedure: the city manager, the director of the off-street parking authority, or the director of the downtown development authority, as appropriate, must make a written finding that a valid emergency exists, which finding must be ratified by an affirmative vote of two-thirds of the city commission after a properly advertised public hearing. When the requirement of sale, conveyance, or disposition to the highest responsible bidder is waived, other procurement methods as may be prescribed by ordinance shall be fol-

lowed. The city or the department of off-street parking or the downtown development authority shall have the power to reject all offers. All invitations for bids, requests for proposals, or other solicitations shall contain a reservation of the foregoing right to reject all offers. This section shall not apply to transfers to the United States or any department or agency thereof, to the State of Florida, or to any political subdivision or agency thereof.

(c) *Safeguards.*

(1) All persons contracting with the city under this section shall be required to certify their compliance with the antitrust laws of the United States and of the State of Florida and to hold harmless, defend, and indemnify the city for any noncompliance by said persons with the above laws.

(2) All persons contracting with the city under this section shall be obligated to pay whichever is the greater of the following: (i) all applicable ad valorem taxes that are lawfully assessed against the property involved or (ii) an amount to be paid to the city equal to what the ad valorem taxes would be if the property were privately owned and used for a profit-making purpose. Such taxes shall not be credited against any revenues accruing to the city under any contract that may be awarded under this section.

(3) Any proposal by a potential bidder or contractor that contemplates more than the estimated extent of the city's proposed commitment of funds, property, or services shall be ineligible for acceptance by the city commission.

(4) Any substantial increase in the city's commitment of funds, property, or services, or any material alteration of any contract awarded under subsection (c) of this section shall entitle the city commission to terminate the contract after a public hearing. Prior to such public hearing, the city commission shall seek and obtain a report from the city manager and from the review committee that evaluated the proposals for the project, concerning the advisability of exercising that right.

(Char. Amend. No. 3, 11-6-79; Ord. No. 9507, § 1, 10-28-82/11-2-82; Res. No. 86-656, § 2.a, 7-24-86/11-4-86; Res. No. 87-678, § 2(a), 7-9-87/11-3-87; Res. No. 01-841, § 2, 8-9-01; Res. No. 01-843, § 2, 8-9-01)

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, amended § 29-A in its entirety to read as herein set out. Formerly, § 29-A pertained to contracts for personal property, public works or improvements, unified development projects, and real property; safeguards. The historical notation has been retained for reference purposes.

Ord. No. 9489, adopted by the commission on Sept. 17, 1982, set forth Charter Amendment No. 1 for approval/rejection at election on Nov. 2, 1982. On Oct. 28, 1982, Ord. No. 9507 amended the language of subsections (a) and (c) of § 53 as proposed by Ord. No. 9489. The election was to approve the language of Charter Amendment No. 1, as amended by Ord. No. 9507. Subsequently, in light of Charter Amendment No. 2 of Nov. 3, 1987, the city attorney directed the codifier to delete paragraph (ii) of subsection (d) as superseded by § 29-B.

Case law reference—For case decided prior to enactment by Charter Amendment No. 3 of 1979 of a competitive-bidding requirement for disposition of city property, see Mahoney v. Givens, 64 So. 2d 926. Said case held that competitive bidding is not required to lease city real estate.

Material variance between plans bid upon and plans submitted and adopted renders contract void, Glatstein v. City of Miami, 399 So. 2d 1005.

Sec. 29-B. City-owned property sale or lease—Generally.

Notwithstanding any provision to the contrary contained in this Charter or the City Code, and except as provided below, the city commission is prohibited from favorably considering any sale or lease of property owned by the city unless there is a return to the city of fair market value under such proposed sale or lease. The city commission is also prohibited from favorably considering any sale or lease of city-owned property unless (a) there shall have been, prior to the date of the city commission's consideration of such sale or lease, an advertisement soliciting proposals for said sale or lease published in a daily newspaper of general paid circulation in the city, allowing not less than ninety (90) days for the city's receipt of proposals from prospective purchasers or lessees, said advertisement to be no less than one-fourth (¼) page and the

headline in the advertisement to be in a type no smaller than 18-point and, (b) except as provided below, there shall have been at least three (3) written proposals received from prospective purchasers or lessees; however, if there are less than three (3) such proposals received and if the guaranteed return under the proposal whose acceptance is being considered is equal to fair market value the city commission determines that the contemplated sale or lease will be in the city's best interest then, subject to the approval of a majority of the votes cast by the electorate at a referendum, the sale or lease may be consummated. Any lease for the development of improvements of city-owned property which has been approved by voter referendum shall require additional voter referendum approval for a development on City-owned property where the developer has not obtained the necessary building permits within four (4) years of the effective date of the lease. Such section shall not be applicable when the delay in the performance of any obligation is as a result of force majeure, or litigation that questions the validity of the vote, or the City Commission action to place the question for referendum, then the performance of such obligation shall be extended by the length of the delay. In the case of city-owned property which is not waterfront, when the value of such property to be sold or leased (individual leaseholds within a single city-owned property shall not be considered as a single parcel of property for such valuation purposes) is five hundred thousand dollars ($500,000) or less, based on an appraisal performed by a state-certified appraiser, the city commission, by a 4/5ths affirmative vote, may sell or lease said city-owned property after compliance with the advertisement requirements set forth above but without the necessity of a referendum.

The above provisions and any other city requirements for competitive bidding shall not apply when:

(a) conveying property to implement housing programs or projects which are intended to benefit persons or households with low and/or moderate income, the criteria of which to be provided for by federal and/or state law or by the city commission;

(b) conveying property to implement projects authorized under the Florida Community Redevelopment Act of 1969, as amended;

(c) conveying property to implement projects of any governmental agency or instrumentality;

(d) disposing of property acquired as a result of foreclosure;

(e) disposing of property acquired in connection with delinquent taxes which properties were conveyed to the city by the Miami-Dade board of county commissioners under the provisions of Section 197.592 Florida Statutes, as amended; and

(f) disposing of non-waterfront property to the owner of an adjacent property when the subject property is 7,500 square feet or less or the subject non-waterfront property is non-buildable.

Notwithstanding anything herein to the contrary, the city commission, by a 4/5ths affirmative vote, may:

(a) grant a lessee of city-owned property a one-time extension during the last five years of its lease, without the necessity of a referendum, for the purpose of funding additional capital improvements. The extended term shall not exceed twenty-five percent of the original term or ten years, whichever is less. The granting of such an extension is subject to the lessee paying fair market rent as determined by the city at the time of such extension and not being in default of its lease with the city nor in arrearage of any monies due the city; and

(b) amend the Lease Agreement between the City of Miami and Biscayne Bay Restaurant Corp., d/b/a Rusty Pelican, dated February 13, 1970, as amended, to (i) extend the lease for an additional term of fifteen (15) years, with the option to renew for two (2) additional five (5) year periods, (ii) increase the amount of

the minimum guarantee to the City to at least $360,000 per lease year effective upon execution of the lease amendment, and (iii) require Rusty Pelican to complete capital improvements to the property, including a public baywalk, in the amount of not less than $3 Million, within twenty-four (24) months of the effective date of the lease amendment; and

(c) waive competitive bidding and execute a lease with Dade Heritage Trust, Inc. for the City-owned building located at 190 Southeast 12th Terrace, for a term of thirty (30) years, with two (2) thirty (30) year renewals, for minimum annual rent of $600.00 with Consumer Price Index adjustments, with restrictions, reversions, and retention by the City of all other rights; and

(d) waive competitive bidding and execute a Fifth Amendment to the Lease Agreement with Aligned Bayshore Marina, LLC, also known as Monty's, to extend the current lease term by an additional term of approximately thirty-two (32) years (to expire May 31, 2067), with two (2) ten (10) year options to renew for a total term of fifty-two (52) years (to expire May 31, 2087); which will increase minimum rent payment by an additional two hundred thousand dollars ($200,000.00) per lease year, for a minimum of ten million dollars ($10,000,000.00) over the base term of the amended Lease Agreement, or one and three quarters percent (1.75%) of gross rent receipts from the Property, whichever is greater, as additional rent due to the City and, commencing January 1, 2019, minimum annual total rent (inclusive of the additional minimum rent) shall be one million five hundred thousand dollars ($1,500,000.00), plus an additional twenty five thousand dollars ($25,000.00) to be paid on an annual basis for the full amended term to a special fund to be established by the City for the benefit of low income housing renovation; further providing capital improvements to the Property of a minimum of seven million five hundred thousand dollars ($7,500,000.00) to be spent within three (3) years of the electorate's approval of the Fifth Amendment to the Lease Agreement; further creating a capital account requiring a minimum additional investment in the Property of four million dollars ($4,000,000.00) over the amended Lease term, inclusive of the renewal options; requiring a Transfer Fee payment to the City if the Property is transferred or assigned; and further requiring a Refinancing Fee payment to the City should the Property be refinanced after the initial refinancing.

(e) waive competitive bidding and approve the Fifth Modification to the Lease with ESJ JI Leasehold, LLC, which modifies the remaining term of approximately forty three (43) years and extends the Term from the year 2060 to the year 2099 and includes a Fifteen (15) year option to extend the Lease to the year 2114; providing an additional annual rent payment of Two Hundred Fifty Thousand Dollars ($250,000.00) increasing, once the proposed hotel has stabilized, to the greater of One Million Two Hundred Twenty Thousand Dollars ($1,220,000.00) or Five Percent (5%) of annual hotel gross revenues from a new privately funded hotel development with a minimum cost of Fifty Million Dollars ($50,000,000.00) with a maximum of Three Hundred (300) rooms and a maximum height of One Hundred Thirty (130) feet, at ESJ's expense and option, and a design subject to City approval and successful land use and zoning changes, as necessary, with said rent being in addition to the currently received greater of annual rent of Five Hundred Two Thousand One Hundred Sixty Eight Dollars ($502,168.00) and percentage rent from Jungle Island revenue; with parking spaces sufficient to meet zoning ordinance requirements; ancillary improvements consisting of retail and/or restaurant space of up to ten thousand (10,000) square feet and meet-

ing room space of up to thirty thousand (30,000) square feet; with an aggregate payment of Seven Hundred Thousand Dollars ($700,000.00) towards the Ichimura-Miami Japanese Gardens for construction of a walkway to Jungle Island and necessary repairs and maintenance of the Ichimura-Miami Japanese Gardens; payments totaling Seven Hundred Fifty Thousand Dollars ($750,000.00) over a ten (10) year period to be used for affordable housing; establishing a reserve account for capital repairs of Two Hundred Thousand Dollars ($200,000.00) per year; implementing a transfer fee of Three Percent (3%) of gross sales proceeds if the Property is transferred or assigned; implementing a refinancing fee of One Percent (1%) of refinancing loan proceeds if the Property is refinanced after the initial refinancing.

(f) waive competitive bidding to negotiate and execute a Ground Lease and Master Development Agreement with Miami Freedom Park, LLC, for a total lease term of ninety-nine (99) years, for approximately seventy-three (73) acres of City-owned property located generally at 1400 Northwest 37th Avenue, Miami, Florida 33125, also known as Melreese County Club, with a minimum annual base rent payable to the City equal to the greater of (a) fair market value as determined by state certified appraisers or (b) five percent (5.0%) of rent from the retail, office, and hotel development within the Demised Property, but annual base rent of no less than three million five hundred seventy-seven thousand three hundred sixty-five dollars ($3,577,365.00), in addition to a contribution to the City of twenty million dollars ($20,000,000.00) payable over thirty (30) years in annual installments, and any rent increases and/or additional rents negotiated by the parties; authorizing the use of the Demised Property for a soccer stadium; with at least one (1) million square feet of art and entertainment center including food and beverage venues, offices, retail, and a hotel with at least 750 units and conference center with ancillary commercial uses, guaranteeing a living wage for all on-site employees, further requiring MFP to undertake the remediation and Site development for a public park of approximately fifty-eight (58) acres to be developed on property adjacent to the Demised Property as MFP's sole cost, with any restrictions, reversions, and retention by the City of all other rights including at least a one (1%) transfer fee payable to the City, with such Lease and Master Development Agreement requiring City Commission approval by a four-fifths (⅘ths) vote.

Note—See editor's note at the end of this section.

(g) waive competitive bidding and approve an amendment to the Lease with Riverside Wharf LLC, to grant Riverside Wharf LLC one or more renewal options to extend the existing term by an additional term not to exceed fifty (50) years, to increase rent by fifty percent (50%) or, if greater, fair market rent, to require a private investment of at least 30 Million Dollars ($30,000,000), and also requiring that the tenant construct the project consistent with zoning, and resiliency requirements and construct a new seawall and publicly accessible riverwalk at its sole expense and at no cost to the city.

(h) waive competitive bidding and approve an amended and restated Lease with HRM Owner LLC, to grant HRM Owner LLC a term not to exceed ninety-nine (99) years, to include the adjacent James L. Knight Center property, for fair market value rent, including the greater of participation rent of 2.5% of gross revenues and increased annual rent from $250,000.00 to $2,500,000.00, and also requiring that the tenant redevelop the property and include, at minimum, a 615-key hotel, 188,000 square feet convention/meeting space, 682 apartments, parking, a $25,000,000.00 affordable housing contribution to the City, additional public

green space and an expanded Riverwalk at its sole expense and at no cost to the City.

Notwithstanding anything in this Charter to the contrary, the City may enter into leases or management agreements, for any City-owned submerged lands, with entities having a possessory or ownership interest in the abutting riparian uplands for building marinas, docks or like facilities, using methods adopted by ordinance on the condition that such leases or management agreements result in a return to the City of at least fair market value.

(Res. No. 87-678, § 2(a), 7-9-87/11-3-87; Res. No. 01-841, § 2, 8-9-01; Res. No. 01-843, § 2, 8-9-01; Res. No. 03-855, § 2, 7-24-03; Res. No. 14-0184, § 1, 5-8-14; Res. No. 14-0225, § 1, 6-12-14; Res. No. 16-0348, § 3, 7-29-16; Res. No. 17-0351, § 3, 7-27-17; Res. No. 18-0232, § 3, 6-8-18; Res. No. 18-0309, § 3, 7-18-18; Res. No. 22-0180, § 3, 5-31-22; Res. No. 22-0262, § 3, 7-28-22)

Editor's note—Res. No. 18-0309, § 3, adopted July 18, 2018, enacted provisions intended for use as subsection (e). Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as subsection (f).

Res. No. 22-0262, § 3, adopted July 28, 2022, enacted provisions intended for use as subsection (g). Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as subsection (h).

Sec. 29-C. Same—Watson Island.

Notwithstanding any provision to the contrary contained in the Charter or Code of the City of Miami, no sale, conveyance, lease or management agreement may be entered into for the management, occupancy or use of the area known as Watson Island for periods greater than one year unless (1) there shall have been, prior to the date of the city commission's consideration of such sale, lease, management agreement, an advertisement soliciting proposals for said sale, lease or management agreement, published in a daily newspaper of general paid circulation in the city, allowing not less than ninety (90) days for the city's receipt of proposals from prospective purchasers or lessees, said advertisement to be no less than one-fourth page and the headline in the advertisement to be in a type no smaller than 18-point; and, (2) the proposed transaction be approved by a majority of the votes cast by the electorate at a referendum. The procedures for selection of proposals shall be those provided by Charter section 29-A(c) or (d) as appropriate and/or by applicable City Code provisions. Nothing herein shall affect the existing rights or privileges, if any, of any lessee, permittee, licensee or concessionaire currently situated in said area; however, any enlargement, amendment, transfer, or increase in those rights or privileges as may be in existence at the time this amendment is adopted shall require compliance with the provisions of this amendment. This Charter Amendment shall not affect the city's use or occupancy of the area, nor shall it apply to contracts for the construction of any city facilities or improvements in the area; further, nothing contained herein shall apply to projects of any governmental agency or instrumentality.

The city commission, by a $^{4}/_{5}^{ths}$ affirmative vote, may authorize issuance of a license or concession agreement for a period not exceeding one (1) year, without the necessity of a referendum, for the use of Watson Island.

Notwithstanding anything herein to the contrary, the City Commission, by a ⅘ths affirmative vote, may:

(a) waive competitive bidding and execute amendments ("Amendments") to certain documents ("Agreements") governing the property on Watson Island located at 888 Macarthur Causeway, Miami, Florida ("Property"), with the existing tenant, BH3 IG Developer LLC and its subsidiaries ("Tenant"), to extend the term of certain of the leases by 24 years, to sell the City's position in certain of the leases to Tenant, consisting of approximately 3.2 acres, for fair market value not less than $25,000,000, to provide additional community benefits including a $9,000,000 contribution to affordable housing, infrastructure improvements, an expanded public waterfront and pedestrian promenade along Biscayne Bay, to permit fee simple condominium form of ownership, and to provide for office

space as a permitted use, and retention by the City of all other existing City rights.

(b) waive competitive bidding and approve the sale and/or lease of approximately 5.4 acres of that certain property located at 1111 Parrot Jungle Trail based upon fair market value of $135,000,000 to Ecoresiliency Miami LLC for residential and commercial uses pursuant to applicable zoning, waiving competitive bidding and requiring cancellation of the existing theme park and hotel lease, reverting approximately thirteen (13) acres to the City to construct a new public waterfront park at no cost to the City, and contributing $15,000,000 for affordable housing, infrastructure, and other public benefits.

(Res. No. 87-677, § 2(a), 7-9-87/11-3-87; Res. No. 01-841, § 2, 8-9-01; Res. No. 01-843, § 2, 8-9-01; Res. No. 24-0281, § 3, 7-25-24; Res. No. 24-0282, § 3, 7-25-24)

Sec. 29-D. City-owned waterfront property; leases with nonprofit organizations; authorization to waive competitive bidding and referendum requirements; terms of lease.

Notwithstanding any provision to the contrary contained in the Charter or Code of the City of Miami, the city commission is authorized to waive all competitive bidding and referendum requirements, if applicable, when entering into a lease or extending an existing lease with a nonprofit, noncommercial, water-dependent organization which provides or seeks to provide marine-recreational services and/or activities to the community at any city-owned waterfront property, provided all of the following conditions are met:

(A) The terms of the lease allow reasonable public access to the water and reasonable public use of the property, and complies with all waterfront setback and view-corridor requirements set forth in the Charter and Code;

(B) The use is authorized under the then existing comprehensive plan of the city;

(C) The terms of the lease require that the property be used for public purposes only;

(D) The terms of the lease result in a return to the city based on fair market value pursuant to two (2) independent appraisals; and

(E) The terms of the lease comply with all requirements pertaining to membership prescribed by ordinance for organizations using city facilities.

(Res. No. 93-485, § 2, 7-22-93; Res. No. 01-841, § 2, 8-9-01; Res. No. 01-843, § 2, 8-9-01)

Secs. 30—35. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed §§ 30—35 in their entirety. Formerly, §§ 30—35 pertained to local improvements, temporary bonds, general bonds, bond anticipation notes, execution of bonds, and municipal court, respectively.

Sec. 36. Civil service.

(a) *Creation of board; appointment; terms of office; vacancies; rules and regulations.* A civil service board of the city is hereby created and established. There shall be five members constituting the said civil service board. Three shall be appointed by the city commission, and two shall be elected by the employees of the city with civil service status, from said employees with such civil service status. The two so elected shall become members of the board when confirmed by the city commission. All members of the said civil service board shall serve for two years, and they shall take office as soon as appointed and qualified. The city commission may remove any member of the board for cause, upon stating in writing the reasons for the removal, after allowing him or her to be heard by the city commission in his or her own defense. Any vacancy shall be filled by the city commission for the unexpired term. The city manager shall be authorized to prescribe the rules, regulations, and procedure for the holding of election for the purpose of electing the two members of the civil service board by the city employees with civil service status.

(b) *Chairperson; examiner; subordinates.* Immediately after appointment, the board shall organize by electing one of its members chairperson. The board shall appoint a chief examiner who shall be a member of the board and who shall also act as secretary. The board may appoint such other subordinates as may by appropriation be provided for.

(c) *Unclassified and classified service.* The civil service of the city is hereby divided into the unclassified and the classified service.

(1) The unclassified service shall include:

(A) The city manager, his or her assistants, and secretarial staff;

(B) The heads of departments, members of appointive boards, judges of the city court, the city clerk, chief of police, chief of fire division, and the superintendent of communications division;

(C) Assistants to department heads:

Assistant chiefs of the police division;

All ranks in the police division above the classified position of police captain;

Assistant chiefs of the fire division;

Chief of fire prevention;

Director of training in the fire division;

Battalion chiefs;

Chief of fire rescue;

Assistant to the superintendent of the division of communications;

Director of corrections.

(D) All attorneys employed by the city. The city attorney shall be the supervisor of all attorneys employed by the city. The city attorney shall have exclusive authority regarding, but not limited to appointment, removal and salary as to assistant city attorneys. The foregoing provisions of subsection (D) shall not apply to those attorneys in the classified service of the city on November 1, 1972.

Attorneys with permanent civil service rights appointed by the city attorney to any applicable unclassified position above, shall retain civil service rights in the position from which selected as may have accrued.

(E) All employees employed by the City and working within the Office of the Independent Inspector General.

Personnel with permanent civil service rights appointed by the city manager to unclassified positions shall retain said civil [service] rights in the position from which selected as may have accrued.

(2) The classified services shall include all positions not specifically included by this Charter in the unclassified service. There shall be in the classified service three classes, to be known as the competitive class, noncompetitive class, and labor class.

(A) The competitive class shall include all positions and employment for which it is practicable to determine the merit and fitness of applicants by competitive examinations.

(B) The noncompetitive class shall consist of all positions requiring peculiar and exceptional qualifications of a scientific, city managerial, professional, or educational character, as may be determined by the rules of the board.

(C) The labor class shall include ordinary unskilled labor.

(d) *Rules; examinations; eligible lists; certification of vacancies.* Subject to the approval of the city commission, the board shall adopt, amend, and enforce a code of rules and regulations which shall have the force and effect of law providing for appointment and employment in all positions in the classified service, based on merit, efficiency, character, and industry; shall make investigations concerning the enforcement and effect of

this article and of the rules adopted; and shall make an annual report to the city commission. The chief examiner shall provide examinations in accordance with regulations of the board and maintain lists of eligibles of each class of the services of those meeting the requirements of said regulations. Positions in the classified service shall be filled from such eligible lists upon requisition from and after consultation with the city manager. When positions are filled, the employment officer shall so certify, by proper and prescribed form, to the director of finance and to the director of the department in which the vacancy exists.

(e) *Promotion.* The board shall provide uniform rules for promotion to all positions in the classified service.

(f) *Power of suspension, removal, fine, or demotion.*

(1) Any officer or employee in the classified service may be removed, suspended, fined, laid off, or demoted by the city manager or by the head of the department in which such person is employed, for any cause which will promote the efficiency of the service; but such person must be furnished with a written statement of the reasons therefor within five days from the date of the removal, suspension, fine, layoff, or demotion, and be allowed a reasonable time for answering such reasons in writing, which answer shall be made a part of the records of the board, with the suspension to take effect as of the date that such written statement is furnished. No trial or examination of witnesses shall be required except in the discretion of the city manager or the head of the department. Any employee in the classified service who deems that he or she has been suspended, removed, fined, laid off, or demoted without just cause may, within 15 days of such action, request in writing a hearing before the civil service board to determine the reasonableness of the action. The board shall, within 30 days after appeal of the employee disciplined, proceed to hear such appeal. After hearing and considering the evidence for and against the employee, the board shall report in writing to the city manager its findings and recommendations. The city manager shall then sustain, reverse, or modify the action of the department director. Any member of the civil service board and the director of personnel may administer an oath to witnesses appearing before said board or before said director in an investigation, disciplinary or appeal proceedings, and they shall have the power to issue witness subpoenas and to compel the attendance of witnesses.

(2) The civil service board shall also have the right to remove or demote any official or employee in the classified service upon written charges of misconduct made by any citizen, but only after reasonable notice to the officer or employee and after a full hearing. It shall also be the duty of the board to fix a minimum standard of conduct and efficiency for each grade in the service. Whenever it appears from the reports of efficiency made to said board for a period of six months that the conduct or efficiency of any employee has fallen below such minimum standard, that employee shall be called before the board to show cause why he or she should not be disciplined. If upon hearing no reason is shown satisfactory to the board, the employee shall be removed, suspended, or demoted, as the board may determine.

(g) *Present employees.* All persons in the employ of the city holding positions in the classified service, as established by this Charter, at the time it takes effect, shall, unless their position is abolished, retain same until discharged, demoted, promoted, or transferred, in accordance herewith.

(h) *Certificate of board on payroll account necessary before payment of classified service member.* The treasurer or other public disbursing officer shall not pay any salary or compensation for service to any person holding a position in the classified service unless the payroll or account for such salary or compensation bears the certificate of the board, by its secretary, that

the persons named therein have been appointed or employed and are performing service in accordance with the provisions of this Charter and of the rules established thereunder.

(i) *Investigations and hearings.* In any investigation conducted by the board, it shall have the power to subpoena and require the attendance of witnesses and the production thereby of books and papers pertinent to the investigation and to administer oaths to such witnesses.

(j) *No discrimination in classified service.* No person in the classified service or seeking admission thereto shall be appointed, demoted, removed, or in any way favored or discriminated against because of political opinions or affiliations. No person holding a position in the classified service shall take part in political management or affairs or in political campaigns during city working hours or with personal property belonging to the city.

(k) *Penalties.* The civil service board, subject to the approval of the city commission, shall determine the penalties for the violation of the civil service provisions of this Charter.

(l) *Salaries of board and employees.* The salaries of the civil service board and its employees shall be determined by the city commission, and a sufficient sum shall be appropriated each year to carry out the civil service provisions of this Charter.
(Res. No. 01-843, § 2, 8-9-01; Res No. 17-0319, § 2, 7-13-17; Res. No. 24-0153, § 5, 4-25-24; Res. No. 24-0154, § 5, 4-25-24)

Sec. 37. Pension funds.

(a) The city commission shall establish a fund or funds for the relief or pension of persons in the classified service of the city. The city commission, on behalf of the city, may receive gifts, devises, and bequests of money or property for the benefit of such fund or funds; may make contributions of public money thereto on such terms and conditions as it may see fit; and shall make rules and regulations for the management, investment, and administration of such fund or funds.

(b) The city commission shall have power to make contracts of insurance with any insurance company authorized to transact business in this state, insuring its employees or any class or classes thereof under a policy or policies of group insurance covering life or health or accident insurance or any two or more of such classes of insurance and may contract with any company granting annuities or pensions and authorized to transact business within the state for the pensioning of such employees or any class or classes thereof; for any and all such purposes the city commission may appropriate the funds necessary to pay premiums or charges incident to the carrying on of such policies or contracts.
(Res. No. 01-843, § 2, 8-9-01)

Sec. 38. City planning and zoning board.

(a) *Comprehensive planning.* The city commission is empowered to plan for the future development of the city and, as an integral part of the planning process, to take all lawful actions necessary to implement plans made.

In furtherance of this authority, the city commission may undertake continuing comprehensive planning programs and may adopt comprehensive plans to guide the future development of the city in order to preserve and enhance the present advantages of the city, to overcome present handicaps, and to prevent or minimize future problems. Continuing comprehensive planning programs and comprehensive plans that may be adopted may include, but are not to be deemed as limited to:

(1) principles and policies to be followed in future development of the city;

(2) location, relocation, and character of the various uses of land and water;

(3) location, relocation, and character of public and private open spaces for recreation, amenity, and cultural life;

(4) modes and means of travel and transportation;

(5) location and character of public buildings, services, and facilities;

(6) provision of necessary utilities;

(7) conservation, rehabilitation, or replacement of housing;

(8) density of population;

(9) methods and policies for encouragement of cooperation of private persons and groups in the accomplishment of adopted comprehensive plans;

(10) taxing and financial arrangements and long-range capital improvement programs deemed necessary to implement the planning program; and

(11) land-use control and regulatory measures and other instruments deemed necessary to accomplish the aims and objectives of adopted comprehensive plans.

(b) *Authority to implement comprehensive plans.* The city commission is authorized to use all lawful powers conferred upon the city to implement comprehensive plans that may be adopted and to provide for the status of such adopted plans. Particularly, but not in limitation thereof, the city commission is authorized to adopt and enforce:

(1) controls on the use of lands and waters;

(2) zoning of lands and waters;

(3) regulations for the development or subdivision of land;

(4) building, plumbing, electrical, gas, fire, safety, sanitary, and other codes; and

(5) minimum housing codes.

(c) *Creation of implementing boards.* The city commission shall by ordinance create such appropriate board or boards as it may deem necessary to carry out the functions as set out in subsections (a) and (b) above.

The city commission may by ordinance provide for the establishment and method of composition of the board or boards; the number of members; the qualifications of members; the staggering of terms to insure board continuity; the method of filling vacancies; the method of removal; the compensation, if any; the participation of alternate members, if any, in board business; the general rules of organization, procedures, and conduct of business; the giving of notice and necessary public hearings on matters relating to the functions of the board or boards; and other matters deemed necessary by the city commission to the proper functioning of such board or boards.

The city commission may by ordinance make provision for the functions, responsibility, advisory or quasijudicial duties, and authority of the board or boards created by the city commission. The city commission may by ordinance set out the standards and limitations under which such board or boards shall operate; the relationship of the board or boards to each other, to the city commission, or to the courts as provided by law; and the method of review of any decisions of such board or boards.

(d) *Administrative support and appropriations.* The city commission shall provide such administrative arrangements, support, and appropriations as it may deem necessary to enable the board or boards established under this section properly to perform their functions and meet their responsibilities and to insure that proper and necessary liaison is maintained between them and with the city commission.

(e) *Task forces or committees.* The city commission may by resolution appoint task forces or committees to serve as advisory or recommendatory agents to the board or boards established under this section on particular problems relating to the areas of responsibility and authority of the particular board.
(Res. No. 01-843, § 2, 8-9-01)

Sec. 39. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed § 39 in its entirety. Formerly, § 39 pertained to franchises and public utilities—Ordinance requires four-fifths vote of commission; approval of ordinance by voters; limitation on duration of grant.

Sec. 40. Subdivisions.

(a) *Plat requirements.* Any owner of lots or grounds within the city who subdivides same for sale shall cause to be made an accurate plat of said subdivision describing with certainty all grounds laid out or granted for streets or other public uses. Lots intended for sale shall be numbered by progressive numbers or described

by the squares in which situated, and the precise length and width shall be given of each lot sold or intended for sale; such plat shall be subscribed by the owner, acknowledged before an officer authorized to take the acknowledgement of deeds, approved by the director of public works, and recorded in the office of the clerk of circuit court in and for Dade County, Florida. No such plat shall be approved unless it clearly gives an accurate description of the property showing section corners or quarter-section corners or at least tying the property to one or more sections or quarter-section corners or government monuments.

(b) *Supervisor of plats.* The director of public works shall be supervisor of plats of the city and shall provide regulations governing the platting of all lands so as to require all streets and alleys to be of proper width, to be coterminous with adjoining streets and alleys, and otherwise to conform to the regulations prescribed. Whenever said director shall deem it expedient to plat any portion of territory within the city limits, within which the necessary streets or alleys have not already been accepted by the city, so as to become public streets or alleys, or when any person plats land within the corporate limits or within two miles thereof, the director of public works shall, if such plats are in accordance with the prescribed regulation, endorse his or her written approval thereon. No plat subdividing lands within the corporate limits of the city or within two miles thereof shall be entitled to record in the office of the clerk of the circuit court in and for Dade County, Florida, without such written approval.

(c) *Streets or alleys not accepted unless laid down on plat.* No streets or alleys except those laid down on the plats referred to in this section and bearing the approval of the director of public works, as hereinbefore provided for, shall subsequently in any way be accepted as public streets or alleys by the city, nor shall any public funds be expended in the repair or improvement of streets and alleys subsequently laid out and not on such plat. This restriction shall not apply to a street or alley laid out by the city nor to streets, alleys, or public grounds laid out on a plat by or with the approval of the director of public works.

(d) *Acceptance and confirmation of street or alley dedication.* No streets or alleys hereafter dedicated to public use by the owner of ground in the city shall be deemed a public street or alley, or under the care and control of the city commission, unless the dedication be provided in the plat or by warranty deed or other instrument of grant; unless the grant be accepted and confirmed by resolution passed for that purpose; and unless the provisions of this Charter relating to subdivisions shall have been complied with.
(Res. No. 01-843, § 2, 8-9-01)

Secs. 41, 42. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed §§ 41 and 42 in their entirety. Formerly, §§ 41 and 42 pertained to conduct of a city business, compensation, duties, and oaths or officers and employees and power to appoint boards or commissions of citizens, respectively, and derived from Res. No. 97-447, § 2, adopted July 2, 1997.

Sec. 43. Continuity.

(a) All city ordinances, resolutions, and regulations in force at the time this Charter takes effect, and not inconsistent with the provisions hereof, are hereby continued in force until the same shall be duly amended or repealed.

(b) *Present officers and powers.* All persons holding office in or employed by the city at the time this charter goes into effect shall continue in such office or employment and in the performance of their duties until provisions shall have been otherwise made in accordance with the provisions of this charter for the performance or discontinuance of the duties of any such office or employment. When such provisions are made the term of any such officer shall expire, and the office shall be abolished. The powers which are conferred and the duties which are imposed upon any officer, board, commission, or department of the city under the laws of the state, shall, if such officer, board, commission, or department is abolished by this charter, be thereafter exercised and discharged by the officer, board, or department upon whom are imposed corresponding functions, duties, and powers under the provisions of this charter.

(c) *Present contracts and proceedings.* All rights, actions, proceedings, prosecutions, and contracts of the city or of any of its departments or officers, pending or unexecuted when this charter goes into effect, and not inconsistent therewith, shall be enforced, continued, or completed, in all respects, as though begun or executed hereunder.

(d) *Present titles and rights.* The title, rights, and ownership of property, uncollected taxes, dues, claims, judgments, decrees, and choses in action held or owned by the city at the time of the adoption of this Charter shall continue.

(e) *Acts under former charters.* All acts and proceedings of the commission or of any officer of the city done or taken pursuant to the provisions of the previous city charter are hereby ratified. (Res. No. 01-843, § 2, 8-9-01)

Sec. 44. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed § 44. Formerly, § 44 pertained to suits against the city.

Sec. 45. General provisions.

(a) *Codification of ordinances.* The city commission may at any time appoint a person or persons and authorize them to arrange and codify the ordinances of the city and to publish such codification in appropriate volume or volumes, which shall become the laws of the city upon adoption by ordinance; provided, that in the exercise of the power by the city commission to adopt said codification, it shall not be necessary to publish said codification, the publication of the ordinance adopting the same being sufficient to make said publication binding as the law of the city.

(b) *Record of ordinances; evidence.* It shall be the duty of the city clerk to record all ordinances adopted by the city commission within 10 days after their passage in a book kept for that purpose, properly indexed. A copy of any ordinance therefrom, certified by the city clerk under the seal of the city, shall be received in evidence in all courts of this state.

(c) *Ordaining clause.* The ordaining clause of every ordinance shall be as follows: "Be It Ordained by the City Commission of the City of Miami".

(d) *Enumeration of powers not exclusive.* The enumeration of particular powers in this Charter shall not be deemed or held to be exclusive, but additional to the powers enumerated herein, implied thereby, or appropriate to the exercise thereof; the city shall have and may exercise all other powers which are now, or may hereafter be, possessed or enjoyed by cities under the constitution and general laws of this state; and all the powers of the city, whether express or implied, shall be exercised and embraced in the manner prescribed in this Charter, or when not so prescribed, then in such manner as may be provided by ordinance or resolution of the city commission.

(e) *General laws to apply.* All general laws of the state, applicable to municipal corporations, heretofore or hereafter enacted and which are not in conflict with the provisions of this Charter or with ordinances or resolutions hereafter enacted by this city commission pursuant to authority conferred by this Charter shall be applicable to the city; provided, however, that nothing contained in this Charter shall be construed as limiting the power of the city commission to enact any ordinance or resolution not in conflict with the constitution of the state or with the express provisions of this Charter.

(f) *Effect of state law and present ordinances.* Nothing in this act shall be so construed as to alter, abolish, affect or amend any of the laws of this state now in force or which may hereafter be enacted relative to towns and cities of the state incorporated under the general law, nor any of the ordinances of the city now in force, except such as are in conflict with the provisions of this Charter; all such laws and ordinances are hereby declared to be in full force and effect.

(g) *Unconstitutionality of part of Charter.* If any section or part of this Charter is declared invalid or unconstitutional, such declaration shall not be held to invalidate or impair the validity, force, or effect of any other section or part of this Charter, unless it clearly appears that such

other section or part is wholly and necessarily dependent for its operation upon the section or part declared invalid or unconstitutional.

(h) *Effective Date.* This Charter shall take effect immediately upon being approved by a majority of the electors of the city voting at an election called for the purpose of approving this Charter.
(Res. No. 01-843, § 2, 8-9-01)

State law reference—Minimum procedural requirements for adoption of ordinances, F.S. § 166.041.

Sec. 46. Charter Review Commission.

(A) *Creation and Recurrence.* There is established by this Charter a recurring Charter Review Commission ("CRC"). For each federal decennial census, the City Commission shall, by resolution adopted within one (1) year after certification of that census, appoint members to the CRC in accordance with the provisions of this section. A CRC created under this subsection shall stand dissolved upon delivery of its final report to the City Commission. However, nothing herein shall prevent the City Commission from appointing a new CRC following any subsequent decennial census or at any other time the City Commission chooses.

(B) *Composition.* The CRC shall consist of one (1) qualified elector of the City appointed by each of the following internal stakeholders: the Mayor, each City Commissioner then in office, excluding any vacancies that may exist at the time of appointment, and the City Manager. If the number of City Commissioners changes, the size of the CRC shall adjust automatically. Members shall serve without compensation.

(C) *Staffing.* The CRC shall be supported by professional staff as provided by resolution. The City Manager shall provide any necessary administrative assistance, and the City Attorney shall provide legal counsel.

(D) *Powers and Duties.* The CRC is authorized to:

a. Conduct a comprehensive review of the City Charter;

b. Engage the public through publicly noticed hearings and additional outreach, including written surveys or digital platforms to obtain input from residents, community groups, and stakeholders;

c. Request and obtain from City departments any information, documents, or assistance necessary to complete its review; and

d. Submit to the City Commission a final written report containing proposed Charter amendments, explanatory commentary, and recommended implementing ordinances no later than twelve (12) months after its first meeting.

(E) *Dissolution.* The CRC shall dissolve upon delivery of its final report to the City Commission or after 365 days, whichever occurs first. Dissolution of a CRC created for one decennial census shall not affect the automatic creation of a new CRC after each subsequent federal decennial census.

(F) *Implementing Legislation.* The City Commission may adopt such additional ordinances or resolutions necessary to implement this Section.
(Res. No. 25-0322, § 3, 7-24-25)

Sec. 47. [Reserved.]

Editor's note—Res. No. 01-843, § 2, adopted August 9, 2001, repealed § 47 in its entirety. Formerly, § 47 pertained to credit to prisoners for work, costs in criminal prosecutions.

Sec. 48. [Reserved.]

Editor's note—Res. No. 24-0154, § 6, adopted April 25, 2024, repealed the former section 48 in its entirety, which pertained to the office of the independent auditor general and derived from Res. No. 99-608, § 2, adopted August 2, 1999; Res. No. 01-843, § 2, adopted August 9, 2001, and Res. No. 17-0320, § 2, adopted July 13, 2017.

Sec. 49. Office of the City Clerk.

(a) There is established the office of the city clerk. The director of the office of the city clerk shall be the city clerk. The city clerk shall be appointed as provided in Charter section 4(e). The city clerk shall be the custodian of the seal of the city.

(b) The office of the city clerk shall have the following duties:

(1) Prepare and distribute notice of all public meetings as required by law and the minutes of such meetings;

(2) Be custodian of inactive, archived and vital records of the city and maintain a records management system;

(3) Conduct, supervise and certify all city elections;

(4) Be custodian of all legislation, lobbyist registration, contracts and bids;

(5) Perform such other duties as required in this Charter or as directed by the city commission.

(Res. No. 01-843, § 2, 8-9-01)

Sec. 50. Certain former Charter provisions to become ordinances.

All provisions of the present charter, Laws of Florida, ch. 10847 (1925), as amended and as compiled and printed in the Code of Ordinances, 1996, which are not included in this Charter or amended by or inconsistent with this Charter shall become ordinances of the city and continued in effect as ordinances and not new enactments and shall be subject to amendment or repeal in the same manner as other ordinances of the city. The provisions of this Charter where they are the same as the provisions in the former charter are to be considered continuations of the former charter provisions and not new enactments.

(Res. No. 01-843, § 2, 8-9-01)

Sec. 51. Civilian investigative panel.

The city commission shall, by ordinance, create and establish a civilian investigative panel to act as independent citizens' oversight of the sworn police department, to be:

(A) Composed of: (i) twelve (12) civilian members who shall be nominated by the civilian investigative panel and approved by the city commission and (ii) a thirteenth (13th) member who shall be an appointee of the Chief of Police who is not a City of Miami Police Officer;

(B) Staffed with professional personnel, including but not limited to: (i) an executive director who shall serve as chief executive officer and (ii) an independent legal counsel who is an experienced and competent member of the Florida Bar with at least seven years membership in the Florida Bar and is generally knowledgeable in municipal law, both of whom shall be appointed by and subject to removal by the panel with the approval of the City Commission;

(C) Operated on an annual budget established by the City Commission, by ordinance, that will allow the panel to maintain its independence and perform its Charter mandated functions, with sufficient professional staff, while taking into account the City Manager's declaration of a fiscal emergency, a financial urgency, or financial emergency in the City;

(D) Authorized by vote of the CIP and in "consultation" with the state attorney of Miami-Dade County, to issue subpoenas for allegations which are criminal in nature, provided that the CIP may not confer immunity and must advise all city employees appearing before it that no adverse employment consequences will result from the valid exercise of their right to be free from self-incrimination, and, further, that no actions of the CIP may interfere with any pending or potential criminal investigation or prosecution; and

(E) Authorized to:

(1) Conduct independent investigations of allegations of police misconduct and police uses of force resulting in death or great bodily harm to a person;

(2) Conduct independent investigations of other matters pertaining to repeated issues of conduct by City of Miami Police Officers;

(3) Review police department policies and practices; and

(4) Make written requests and recommendations regarding the CIP's reviews and investigations to the city manager and the police chief, to which the Police shall issue a written response within forty-five (45) days.

(Res. No. 01-844, § 2, 8-9-01; Res. No. 16-0351, § 2, 7-29-16)

Sec. 52. Office of independent inspector general.

There is hereby created and established an Office of the Independent Inspector General. The Inspector General shall head the Office of the Inspector General. The minimum qualifications, term, powers, duties and responsibilities of the Inspector General as well as the organization of the Office of the Inspector General shall be set forth by Ordinance. Such Ordinance shall, at a minimum, provide that: (1) the Office of the Independent Inspector General be sufficiently independent to assure that no interference or influence external to the Office adversely affects the independence and objectivity of the Inspector General; (2) the Office of the Independent Inspector General be empowered to perform investigations, audits, reviews and oversight of City contracts, programs, projects, abuse, waste and mismanagement as well as City-funded contracts, programs and projects; (3) the Office of the Inspector General be empowered to provide inspector general services to other City agencies and authorities upon the approval of a request to provide such services by a majority of the of City Commission; and (4) The Inspector General will have the power to issue subpoenas.

(Res. No. 24-0153, § 5, 4-25-24)

CHARTER COMPARATIVE TABLE

LAWS OF FLORIDA

This table shows the location of the Special Acts enacting the basic Charter and any amendments enacted by special act.

Chapter	Section
10847(1925)	1—47
13098(1927)	35
14234(1929)	3
	22-C
14616(1929)	10
15339(1931)	7, 8
15344(1931)	4
15687(1931)	2
15821(1931)	2
16561(1933)	3
18685(1937)	2
19974(1939)	7
21387(1941)	7
21388(1941)	20
	22-A
21391(1941)	19
	19-A
	24, 25
21393(1941)	2
21394(1941)	27-A
21396(1941)	2
22392(1943)	35
22393(1943)	12, 13
22395(1943)	7
23400(1945)	22-A
23401(1945)	4
23402(1945)	27-A
23403(1945)	35
23405(1945)	2
23408(1945)	7
23409(1945)	2
24694(1947)	36
24695(1947)	25
24702(1947)	22-A
24703(1947)	3
24705(1947)	27-A
26021(1949)	2
26022(1949)	4
27719(1951)	24
27720(1951)	24
27721(1951)	24
27722(1951)	24
27724(1951)	12, 13
30997(1955)	23
31000(1955)	4
31001(1955)	36
57-1583	2

CHARTER COMPARATIVE TABLE

INITIATIVE/REFERENDUM

This table shows the amendments to the basic Charter adopted by initiative and referendum.

Election Date	Amendment Number	Section this Charter
1- 1-60	No. 1	3
1- 1-60	No. 2	4
1- 1-62	No. 2	15
1- 1-63	No. 2	3
12- 1-63	No. 1	4
	No. 2	36
12- 1-65	No. 1	4
3-14-72	No. 1	7
10- 7-72	No. 2	36
11- 6-73	No. 1	21
	No. 6	7
12- 1-74	No. 1	36
	No. 3	36
11- 4-75	No. 1	36
11- 6-79	No. 3	29-A
11-28-82	No. 1	29-A

CHARTER COMPARATIVE TABLE

ORDINANCES/RESOLUTIONS

This table shows the location in the sections of the basic Charter of any amendments adopted by ordinances or resolutions thereto.

Resolution/ Ordinance Number	Adopted Date	Election Date	Resolution or Ordinance Section Amendment Number		Section this Charter
7576	7-17-67(Ord.)		1		3
42709	7-22-71(Res.)				27-A
8287	11- 5-74(Ord.)				12
9489	9-17-82(Ord.)				29-A
9507	10-28-82(Ord.)	11- 2-82	1		29-A
9881	6-28-84(Ord.) (Court Order 11-2-87)	9- 4-84	1—47		1—47
86-656	7-24-86(Res.)	11- 4-86	2.a		29-A
87-677	7- 9-87(Res.)	11- 3-87	2(a)		29-C
87-678	7- 9-87(Res.)	11- 3-87	2(a)		29-A, 29-B
88-541	6- 9-88(Ord.)	9- 6-88	2a		4
88-535	6- 9-88(Res.)	9- 6-88			23
93-485	7-22-93(Res.)		2		29-D
97-447	7- 3-97(Res.)	9- 4-97	2		4
					7—10
					12
					14—16
					21
					42
99-608	8- 2-99(Res.)	11- 2-99	2		48
99-613	8- 2-99(Res.)	11- 2-99	3		4
01-841	8- 9-01(Res.)	11- 6-01	2		3(f)(iii)
					29-A(c), (d)
					29-B—29-D
01-843	8- 9-01(Res.)	11- 6-01	2		1—9
				Rpld	10, 11
					12
				Rpld	13
					14—17
				Rpld	18(2), (3)
					19
				Rpld	19-A
					20, 21
				Rpld	22—22-C
					23—25
					27(a), (b)
				Rpld	27(c)—(u)
				Rpld	28
					29-A—29-D
				Rpld	30—35
					39—38
				Rpld	39
					40(d)
				Rpld	41, 42

Resolution/ Ordinance Number	Adopted Date	Election Date	Resolution or Ordinance Section Amendment Number		Section this Charter
					43(a), (d)
				Rpld	44
				Rpld	46, 47
					48(b)—(d)
				Added	49, 50
01-844	8- 9-01(Res.)	11- 6-01	2	Added	51
03-855	7-24-03(Res.)	11- 4-03	2		29-B
03-918	9- 5-03(Res.)	11- 4-03	2		4(h)
07-0625	10-25-07(Res.)	1-29-08	2	Added	52
14-0184	5- 8-14(Res.)	8-26-14	1		29-B
14-0225	6-12-14(Res.)	8-26-14	1		29-B
16-0348	7-29-16(Res.)	11- 8-16	3		29-B
16-0350	7-29-16(Res.)	11- 8-16	2		7
16-0351	7-29-16(Res.)	11- 8-16	2		51
16-0352	7-29-16(Res.)	11- 8-16	2		52
17-0318	7-13-17(Res.)	11- 7-17	2		12
17-0319	7-13-17(Res.)	11- 7-17	2		36
17-0320	7-13-17(Res.)	11- 7-17	2		12
17-0351	7-27-17(Res.)	11- 7-17	3		29-B
18-0232	6- 8-18(Res.)	8-28-18	3		29-B
18-0309	7-18-18(Res.)	11- 6-18	3		29-B
22-0180	5-21-22(Res.)	8-23-22	2		29-B
22-0262	7-28-22(Res.)	11- 8-22	3		29-B
24-0153	4-25-24(Res.)	11- 5-24	3		4(d)
			4		20
			5		36(c)(1)(E)
			6	Added	52
24-0154	4-25-24(Res.)	11- 5-24	3		4(d)
			4		20
			5	Rpld	36(c)(1)(E)
			6	Rpld	48
24-0280	7-25-24(Res.)	11- 5-24	3		7
24-0281	7-25-24(Res.)	11- 5-24	3		29-C
24-0282	7-25-24(Res.)	11- 5-24	3		29-C
24-0283	7-25-24(Res.)	11- 5-24	3		4(b), (c)
25-0243	7-10-25(Res.)	11- 4-25	3	Added	13
25-0244	7-10-25(Res.)	11- 4-25	3		4(b)
25-0322	7-24-25(Res.)	11- 4-25	3	Added	46

Subpart B

SPECIAL ACTS*

Article I. Schedule of Special Acts Relating to City

Article II. City Employees' Pensions

Sec. 1. Authority to create fund; receipt of gifts, etc.; contribution of public funds; rules and regulations for management of fund; taxation for benefit of fund.
Sec. 2. Authority to contract with insurance companies.
Sec. 3. Existing provisions to continue in effect.
Sec. 4. Effective date.

*__Editor's note—__Included in subpart B of part I of this volume are special acts of the legislature, not included in the charter, which the city has deemed advisable for inclusion herein.

ARTICLE I. SCHEDULE OF SPECIAL ACTS RELATING TO CITY*

Year	*Chapter*	*Purpose*
1925	10847	Amends and reenacts the Charter adopted by the electorate of the city on May 17, 1921.
1925	11616	Grants certain submerged lands in Biscayne Bay to the city.
1925	11618	Validates acts and proceedings of city in extending its territorial limits to include the territory within the Town of Buena Vista and validates one hundred thousand dollars ($100,000.00) outstanding bonds of said town.
1927	13095	Validates certain certificates of indebtedness of the city; authorizes refunding of the indebtedness by issuing other certificates of indebtedness; and authorizes exchange of the refunding certificates for the certificates validated by this act.
1927	13096	Authorizes amendment of existing contracts and proceedings for storm sewer construction.
1927	13097	Authorizes borrowing of money in anticipation of collection of delinquent taxes and issuance of "tax secured notes" to evidence loan.
1927	13099	Validates certain local improvement proceedings.
1929	14230	Authorizes extension of certain taxes upon city assessment roll and issuance of notes in anticipation of collection of such taxes.
1929	14231	Validates all permits to Seaboard All-Florida Railway to construct and operate a commercial railway line, in, upon, across and along certain streets in the city.
1929	14232	Validates certain local improvements.
1929	14233	Authorizes settlement and adjustment of tax sale certificates or deeds held by the city for 1927 or earlier.
1929	14235	Ratifies investment of capital funds of the city in bonds of the city and authorizes the sale of said investment.
1931	15338	Creates pension and retirement fund for members of the police and fire divisions of the city.
1931	15340	Provides for establishment of public recreation system of city and creation of park and recreation board.
1931	15342	Authorizes settlement and adjustment of tax liens of 1928 or earlier.
1931	15343	Ratifies, confirms and validates certain refunding bonds and authorizes levy of taxes for payment when due.
1931	15686	Authorizes refunding bonds of the city.
1931	15687	Fixes territorial limits of the city.

*__Editor's note—__Article I of subpart B lists special acts which relate to the City of Miami, beginning with the enactment of the entire city charter by the legislature in 1925, which are not included in the charter as amendments or additions thereto.

Year	*Chapter*	*Purpose*
1931	15821	Extends and enlarges corporate limits of the city and gives jurisdiction over new territory.
1933	16554	Authorizes adjustment of delinquent taxes and improvement liens outstanding and unpaid against any property when it appears that such delinquent taxes and liens, together with outstanding and unpaid state and county taxes, are out of proportion to the values of such property.
1933	16556	Authorizes improvements to waterworks and issuance of bonds of city for cost thereof.
1933	16557	Exempts electors of city from payment of poll taxes for city elections in 1933.
1933	16559	Authorizes city to receive municipal bonds of the city in payment of taxes assessed prior to 1932.
1933	16560	Authorizes municipal improvement liens heretofore assessed by the city to be paid by the surrender and cancellation of any of the bonds of the city previously issued, to be accepted by the city at par value, plus accrued interest.
1935	17594	Grants certain lands submerged and partly submerged in Biscayne Bay to city.
1937	18685	Extends corporate limits of city.
1937	18687	Authorizes new refunding certificates of indebtedness in exchange for like amounts of other certificates heretofore or hereafter issued for refunding interest on bonded indebtedness of the city or issued under or validated by the provisions of this act.
1937	18689	Authorizes establishment of general pension and retirement fund for city employees.
1937	18690	Authorizes exchange of refunding bonds held as an investment of capital funds of the city for new refunding bonds of the city and sale of such new refunding bonds.
1939	19980	Authorizes municipal projects and issuance of self-liquidating bonds for the cost thereof.
1939	19982	Authorizes municipal projects and issuance of self-liquidating bonds for the cost thereof.
1941	21384	Provides for deputy city clerks and fixes their powers.
1941	21386	Relates to procedure in the municipal court.
1941	21392	Exempts property used for water service and airports from all taxes, as being city property.
1941	21393	Extends the corporate limits of the city.
1941	21396	Reduces the corporate limits of the city.

Year	*Chapter*	*Purpose*
1943	22389	Authorizes the construction of a sewage disposal system and other sewer improvements and exempts all bonds and sewers and waterworks system from taxation. (Amended by Laws of Fla., ch. 22397(1943).)
1943	22391	Provides for the publication by the city of notice of sale of real estate for nonpayment of past-due municipal taxes when such sale is otherwise authorized by law.
1943	22394	Authorizes the city to appropriate and maintain postwar public works reserve funds and to formulate and develop schedules for long-range postwar programs of public works projects and to make plans and surveys therefor.
1943	22397	Authorizes the construction of a sewage disposal system and other sewer improvements, and exempts all bonds and sewers and waterworks systems from taxation.
1945	23404	Authorizes lease or sale of Jackson Memorial Hospital.
1945	23405	Extends the corporate limits of the city.
1945	23406	Authorizes construction of sidewalk improvements under section 56 of the city charter and financing of such improvements by issuance of warrants payable from special assessments on abutting property.
1945	23407	Authorizes construction and financing of a sewage disposal system and other sewer improvements.
1945	23409	Extends the corporate limits of the city.
1947	24696	Relates to creation of general pension and retirement fund.
1947	24697	Authorizes ownership and operation of yacht basins and issuance of revenue certificates of indebtedness in payment therefor.
1947	24699	Authorizes acquisition and maintenance of municipal golf courses.
1947	24700	Authorizes acquisition and operation of parking facilities.
1947	24706	Limits number of licenses which may be issued in city for sale of beverages containing alcohol more than fourteen (14) percent by weight.
1947	24707	Authorizes financing of sewer improvements constructed in conformity with Laws of Fla., ch. 23407(1945).
1947	24708	Grants city power of eminent domain over railroad properties.
1949	26017	Provides for disposition of unexpended funds.
1949	26019	Authorizes the city commissioners to fix the compensation to be paid to members of the planning board of the City of Miami.
1949	26021	Extends the corporate limits of the city.

Year	*Chapter*	*Purpose*
1949	26022	Fixes compensation to be paid to the city commissioners and an additional sum to the mayor-commissioner.
1951	27711	Authorizes the City of Miami to maintain hurricane or disaster fund.
1951	27712	Authorizes the director of finance to invest funds of the City of Miami in United States Government and United States Treasury bonds.
1951	27717	Prohibits building or moving into Bayfront Park any additional buildings or structures.
1951	27723	Authorizes the City of Miami to do all things necessary to attract new industries.
1951	27725	Confers additional powers on the City of Miami authorizing the empowering the said city to acquire, construct, improve, extend, enlarge, and reconstruct parking facilities.
1951	27727	Provides for the disposition by the City of Miami of unspent balances remaining in certain bond funds.
1951	27728	Authorizes and empowers the City of Miami to erect, own and operate garbage disposal or incinerator unit.
1953	28997	Provides that no municipal limits of any municipality in Dade County shall be extended, except pursuant to special or local law enacted hereafter.
1955	30683	Provides for the maximum number of one hundred twenty (120) duty hours in any two (2) calendar weeks for municipal firemen of Dade County in cities having a population of ten thousand (10,000) or more according to the 1950 Federal Census.
1955	30684	Provides that any condition or impairment of health of municipal firemen in Dade County, caused by tuberculosis, hypertension or heart disease resulting in total or partial disability or death, shall be presumed to have been accidentally suffered in the line of duty.
1955	30688	Prohibits the pumping of sand, rock or earth from and the construction of islands on Biscayne Bay without expressed authorization from certain authorities.
1955	30989	Provides that police officers shall not be required to remain on duty more than forty (40) hours in one (1) calendar week.
1955	30990	Authorizes the City of Miami to convey or sell the Graves Tract to Inter-American Center Authorities.
1955	30993	Authorizes the City of Miami to replace mutilated, destroyed or lost bonds, notices, certificates of indebtedness or obligations of the City of Miami.
1957	57-1583	Extends and enlarges the corporate limits of the City of Miami.

Year	*Chapter*	*Purpose*
1957	57-1584	Confers additional powers upon the City of Miami with relation to harbor and boat facilities.
1957	57-1585	Authorizes the City of Miami to provide for the acquisition of, and enforcement of liens against, also custody, storage, sale or other disposition of lost, captured, abandoned, stolen or wrecked property.
1957	57-1586	Rectifies and confirms proceedings of the commission of the City of Miami in connection with the construction of local improvements or the making of special assessments therefor.

ARTICLE II. CITY EMPLOYEES' PENSIONS*

LAWS OF FLORIDA, CHAPTER 18689

An act to authorize the commission of the City of Miami, Florida, to establish a fund or funds for the relief or pension of persons in the classified and unclassified service of said city; providing for the receiving of gifts, devises and bequests of money or property for the benefit of such fund or funds; providing for the power to raise by taxation amounts not to exceed two mills on the dollar for such purpose; and to provide that, until the commission shall establish a fund or funds for the relief or pension of persons in the classified or unclassified service as provided in this act, existing laws and existing funds for the relief or pension of persons employed by the City of Miami shall continue in full force and effect.

Be It Enacted by the Legislature of the State of Florida:

Sec. 1. Authority to create fund; receipt of gifts, etc.; contribution of public funds; rules and regulations for management of fund; taxation for benefit of fund.

The commission of the City of Miami, a municipal corporation organized and existing under the laws of the State of Florida, shall establish a fund or funds for the relief or pension of persons in the classified and unclassified service of said city; may receive gifts, devises and bequests of money or property for the benefit of such fund or funds; may make contributions or [of] public moneys thereto on such terms and conditions as it may see fit; and shall make rules and regulations for the management, investment and administration of such fund or funds; and shall have the right to raise by taxation such amount as may be necessary for such purpose, not to exceed four (4) mills on the dollar of the assessed value of all property in said city, both real and personal.
(Laws of Fla., ch. 24696(1947))

Sec. 2. Authority to contract with insurance companies.

The commission of said city shall have power to make contracts of insurance with any insurance company, authorized to transact business in this state, insuring its employees or any class or classes thereof under a policy or policies of group insurance of any two (2) or more of such classes of insurance and may contract with any company granting annuities or pensions and authorized to transact business within the State of Florida, for the pensioning of such employees or any class or classes thereof; and for any and all such purposes may appropriate out of its treasury any money necessary to pay premiums or charges incident to the carrying of such policies or contracts.

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*__Editor's note—__Printed in article II of subpart B is Laws of Fla., ch. 18689(1937), as amended by Laws of Fla., ch. 24696(1947). Catchlines have been added by the editor to facilitate indexing and reference. Obvious misspellings have been corrected without notation. For stylistic purposes, a uniform system of headings, catchlines and citations to state statutes has been used. Additions made for clarity are indicated by brackets.

Case law reference—Division to other uses of funds assessed by chs. 18689, 24696 for pension held improper. City of Miami v. Gates, 393 So. 2d 586.

Sec. 3. Existing provisions to continue in effect.

Until the commission of the City of Miami shall establish a fund or funds for the relief or pension of persons in the classified and unclassified service of the said city as provided in this act, the existing laws and the existing funds for the relief or pension of persons employed by the City of Miami shall continue in full force and effect.

Sec. 4. Effective date.

This act shall become effective immediately on becoming a law.

Editor's note—Laws of Fla., ch. 18689(1937), was approved by the governor June 2, 1937, and filed in the office of the secretary of state June 2, 1937.

SPECIAL ACTS COMPARATIVE TABLE

LAWS OF FLORIDA

This table shows the location of the Special Acts in effect in the city and any amendments.

Chapter	Section	Location in Subpt. B
18689(1937)	1—4	Art. II
24696(1947)	1	Art. II

Subpart C

RELATED GENERAL LAWS OF LOCAL APPLICATION WHICH HAVE ASSUMED ORDINANCE STATUS*

Article I. Downtown Development

Sec. 1.	Authorization to create downtown development authority.
Sec. 2.	Definitions.
Sec. 3.	Determination of necessity; resolution of intent to create authority; publication of resolution; public hearing; adoption of ordinance creating authority and defining downtown district.
Sec. 4.	Board—Supervision and control of board; membership; appointment, term of office and filling of vacancies of members.
Sec. 5.	Same—Qualifications, oath and bond of members; nomination of new members; meetings; adoption of rules and regulations.
Sec. 6.	Description of downtown area under domain of authority; more than one authority permitted; overlapping of authorities prohibited.
Sec. 7.	Powers of board generally.
Sec. 8.	Specific powers and duties of board.
Sec. 9.	Employees.
Sec. 10.	Annual budget; financing operations of authority.
Sec. 11.	Levy of additional ad valorem taxes in downtown district; limitations on use of additional levy; limitations on use of public funds.
Sec. 12.	Assessment against funds of authority for handling and auditing of authority's funds by city.
Sec. 13.	Conflicts of interest by members and employees of board.
Sec. 14.	Declaration of policy of state.
Sec. 15.	Act supplemental to other powers of municipalities.
Sec. 16.	Real property within central business district subject to ad valorem taxes.
Sec. 17.	Liberal construction; severability of provisions.
Sec. 18.	Effective date.

Article II. Police Powers

Sec. 1.	Certain powers designated, penalty for violations prescribed.
Sec. 2.	Provisions cumulative to charter.
Sec. 3.	Effective date.

*__Editor's note—__Included in subpart C of part I of this volume are general laws of local application which have assumed ordinance status pursuant to the provisions of Laws of Fla., ch. 71-29, and which have been deemed advisable for inclusion herein by the city. For a listing of general laws of local application which have been converted to ordinances of the city, the user is referred to Laws of Fla., ch. 71-29, and to *An Alphabetical Compilation of Population Acts Current Through Special Session, October 9, 1970,* prepared by the Legislative Index Service of the Legislative Service Bureau of the State of Florida. Obvious misspellings have been corrected without notation. For stylistic purposes, a uniform system of headings, catchlines and citations to state statutes has been used. Additions made for clarity are indicated by brackets.

ARTICLE I. DOWNTOWN DEVELOPMENT*

LAWS OF FLORIDA, CHAPTER 65-1090

Sec. 1. Authorization to create downtown development authority.

The governing body having legislative powers, by whatever name known, of every municipality in the state having a population in excess of two hundred fifty thousand (250,000), according to the most recent official census of population, is granted the power to create and establish a downtown development authority, pursuant to the provisions of this act, which authority shall have all the powers herein provided, and which, when established, shall be a body corporate with the power to sue and may be sued in all the courts of this state; and with power to adopt and use a corporate seal.

Sec. 2. Definitions.

As used herein the following terms shall have the meanings herein ascribed to them unless the context shall clearly require otherwise:

Authority: The downtown development authority of the city of its creation, being a municipality of the State of Florida having a population in excess of two hundred fifty thousand (250,000).

Board: The governing body of the authority selected as herein provided.

Director: The chief executive officer of the authority selected by the board as herein provided.

Downtown: A specifically defined area or zone of the city in the central business district, established by the governing body of the municipality.

Planning board: The department or agency of a city creating an authority, by whatever name such department or agency may be known, which is chiefly responsible for community planning, and if no such agency or department exists as such, then "planning board" shall mean the governing body of the municipality.

Central business district: The area in a municipality establishing an authority zoned and used principally for business.

Governing body: The elected body of a municipality, having legislative powers.

Public facility: Any street, park, parking lots, playground, right-of-way, structure, waterway, bridge, lake, pond, canal, utility lines or pipes, building, including access routes to any of the foregoing, designed and dedicated to use by the public generally, or used by any public agency with or without charge, whether or not the same is revenue-producing.

Sec. 3. Determination of necessity; resolution of intent to create authority; publication of resolution; public hearing; adoption of ordinance creating authority and defining downtown district.

Whenever the governing body of a municipality having a population in excess of two hundred fifty thousand (250,000) according to the latest official census shall determine that it is necessary for the public health, safety and welfare that property value deterioration in the principal area or areas of the city zoned for business, and the causes of such deterioration subject to remedy hereunder shall be halted by the use of means authorized in this act, it shall, by resolution, declare its intention to create a downtown development authority for the city, and make provision for its operation.

In the resolution of intent, the governing body shall set a date for the holding of a public hearing on the adoption of an ordinance creating the authority and describing the downtown area. Upon the adoption of the resolution, the governing body shall cause a notice of the public hearing to be published in a newspaper of general circulation published in the city, which notice shall be published one (1) time not less than thirty (30) nor more than sixty (60) days from the date of the hearing. The notice shall set forth the

*__Editor's note—__Included herein as article I of subpart C is Laws of Fla., ch. 65-1090. For purposes of facilitating indexing and reference, catchlines have been added by the editors.

date, time and place of the hearing and shall describe the boundaries of the downtown district. Any citizen, taxpayer or property owner shall have the right to be heard in opposition to the establishment of the authority and the creation of the downtown district. After the public hearing, if the governing body shall intend to proceed with the establishment of a downtown development authority, it shall, in the manner authorized by its Charter, adopt an ordinance establishing the authority and defining the downtown district. The governing body shall not incorporate land into the district not included in the description contained in the resolution and the notice of public hearing, but it may eliminate any lands from the district, as published, in the final determination of the boundaries. From and after the effective date of the ordinance creating the authority, it shall have existence as provided in section 1 hereof. The governing body may from time to time, by the procedure herein provided, alter or amend the boundaries of the downtown district by the inclusion of additional territory or the exclusion of lands from the limits of the district.

Sec. 4. Board—Supervision and control of board; membership; appointment, term of office and filling of vacancies of members.

The affairs of the authority, when created, shall be under the direct supervision and control of a board of five (5) members, four (4) of whom shall be appointed by the governing body to serve for staggered terms. Appointment of the original members to the board shall be recommended by the mayor and subject to approval by the governing body.

The mayor shall be chairperson of the board and the fifth member. One (1) member shall be appointed for a term expiring June 30 of the year following the creation of the authority. One (1) member shall be appointed for a term expiring June 30 of the second year following the creation of this authority; one (1) member shall be appointed for a term expiring June 30 of the third year following the creation of the authority; and one (1) member shall be appointed for a term expiring June 30 of the fourth year following the creation of the authority.

Thereafter, members shall be appointed as herein provided, for terms of four (4) years from the expiration date of the terms of their predecessors. A member shall hold office until his successor has been appointed and qualified. Appointments to fill vacancies shall be for the unexpired term only.

Sec. 5. Same—Qualifications, oath and bond of members; nomination of new members; meetings; adoption of rules and regulations.

Each appointed member of the board shall reside in or have his/her principal place of business in the city. He/she shall be an individual of outstanding reputation for integrity, responsibility, and business ability and acumen. No officer or employee of the city other than the mayor shall be eligible to serve as a member of the board while holding other offices in the city or while employed by the city. Not less than thirty (30) days prior to the expiration of a term, or within thirty (30) days of the existence of a vacancy, the remaining members of the board shall nominate a successor and submit the name to the governing board for its confirmation of appointment.

In the event an appointment is not confirmed by the governing body by the final adjournment of the first regular meeting thereof occurring more than ten (10) days after the submission of the nomination to it, the board shall make a new nomination and submit same to the governing body for confirmation by it within the time limited therein. The making of nominations, as herein provided shall be a continuing obligation of the board until membership on the board is completed by confirmation by the governing body. Before assuming the duties of the office each appointed member shall qualify by taking and subscribing to the oath of office required of officials of the city, and by posting a bond in the penal sum of ten thousand dollars ($10,000.00) payable to the city for use and benefit of the authority, to be approved by the governing body

and filed with the city clerk. The premium on such bond shall be deemed an operating expense of the authority, payable from funds available to it for expenses of operation.

The board shall adopt and promulgate rules governing its procedures subject to approval by the governing body and shall hold regular meetings no less often than one (1) each month. Special meetings may be held when called in the manner provided in the rules of the board. All meetings of the board shall be open to the public. Each member of the board shall serve without compensation.

Pursuant to notice and an opportunity to be heard, an appointed member of the board may be removed for cause by the governing body. Any such removal shall be subject to review by the circuit court of the circuit having jurisdiction.
(Ord. No. 13676, § 2, 4-27-17)

Sec. 6. Description of downtown area under domain of authority; more than one authority permitted; overlapping of authorities prohibited.

In the ordinance creating the authority, the governing body shall in general terms describe the central business district, and shall by metes and bounds, or other method clearly defining the boundaries, establish the downtown area within which the authority shall exercise its powers, and in which a special tax to finance the powers herein authorized shall be assessed, levied and collected by the governing body for the use and benefit of the authority. The governing body shall not be limited to the creation of a single authority to exercise the powers herein conferred; except, that no authority may be created with boundaries that overlap an existing authority.

Sec. 7. Powers of board generally.

The board, subject to the provisions hereof and subject to other applicable provisions of law, shall have all powers customarily vested in the board of directors of a corporation for profit. It shall exercise supervisory control over the activities of the director and the staff of the authority in carrying out the functions authorized hereby.

Sec. 8. Specific powers and duties of board.

It shall be the duty of the board, and it shall have the power to:

(a) Appoint a director and other staff members who shall be employed upon recommendation of the director; prescribe their duties, and fix their compensation which shall be paid from funds available to the authority.

(b) Prepare an analysis of economic changes taking place in the central business district of the city;

(c) Study and analyze the impact of metropolitan growth upon the central business district;

(d) Plan and propose, within the downtown area, public improvements of all kinds, including renovation, repair, remodeling, reconstruction or other changes in existing buildings which may be necessary or appropriate to the execution of any such plan which in the opinion of the board will aid in the economic growth of the downtown area;

(e) To implement as herein provided any plan of development in the downtown area as shall be necessary to carry out its functions, except that when funds are required other than those provided under section 11 of this act, the approval of the governing body is required.

(f) In cooperation with the planning board of the city and the planning department of the city develop long-range plans designed to halt the deterioration of property values in the central business district, and take such steps as may be necessary to persuade property owners to implement such plans to the fullest extent possible;

(g) Retain and fix the compensation of legal counsel to advise the board in the proper performance of its duties. The general counsel of the authority appointed as authorized herein shall be a practicing attorney with not less than ten (10) years' experience in the practice of law in

Florida. He/she shall represent the authority in all suits or actions brought by or against the authority involving the jurisdiction, power, duties, functions or activities of the authority, or of the city, under the terms of this act.

(h) To make and enter into all contracts necessary or incidental to the exercise of its powers and the performance of its duties.

(i) Borrow money on a short-term basis to pay expenses of operation pending the assessment, levy and collection of the tax herein authorized, and to issue evidences of indebtedness for such loans to be signed by the chairperson and the secretary of the authority. The rate of interest to be paid by the authority on any such debt, shall be the lowest rate of interest available not to exceed six (6) percent per annum. The authority shall hold the city harmless with respect to any debt created hereunder.

(Ord. No. 13676, § 2, 4-27-17)

Sec. 9. Employees.

The board shall employ and fix the compensation, subject to the approval of the governing body, of the following who shall serve at the pleasure of the board:

(a) A director, who shall be a person of good moral character and possessed of a reputation for integrity, responsibility and business ability. No member of the board shall be eligible to hold the position of director. Before entering upon the duties of his/her office, the director shall take and subscribe to the oath and furnish bond as required of members of the board. He/she shall be the chief executive officer of the authority and shall devote his/her entire time and attention to the duties of his/her office. He/she shall not while serving as director engage in any other business or profession. Subject to the approval of the board, and direction by it when necessary, he/she shall have general supervision over and be responsible for the preparation of plans and the performance of the functions of the authority in the manner authorized herein. He/she shall attend all meetings of the board and shall render to the board and to the governing body a monthly report covering the activities and financial condition of the authority. In the absence or disability of the director, the board may designate a qualified person to perform the duties of the office as acting director. The director shall furnish the board with such information or reports governing the operation of the authority as the board may from time to time require.

(b) A treasurer, who shall keep the financial records of the authority and who, together with the director, shall approve all vouchers for the expenditure of funds of the authority. He/she shall perform such other duties as may be delegated to him/her by the board.

(c) A secretary, who shall maintain custody of the official seal and of all records, books, documents or other papers not required to be maintained by the treasurer. He/she shall attend all meetings of the board and keep a record of all its proceedings. He/she shall perform such other duties as may be delegated to him/her by the board.

(d) Upon recommendation of the director, such clerical, technical, and professional assistance including but not limited to engineering, planning, economic research and other fields as shall in the opinion of the board be necessary to provide for the efficient performance of the functions of the board.

(Ord. No. 13676, § 2, 4-27-17)

Sec. 10. Annual budget; financing operations of authority.

In time for submission to the governing body as required of all departments of the city, the director shall prepare and submit for the approval of the board a budget for the operation of the authority for the ensuing fiscal year. The budget

shall be prepared in the manner and contain the information required of all departments. However when approved by the board it shall not require approval of any officer or body of the city other than the governing body. No funds of the city may be included in the budget of the authority except those funds herein authorized. The operations of the authority shall be principally financed from the following sources and such other sources as may be approved by the governing body:

(a) Donations to the authority for the performance of its functions.

(b) Proceeds of an ad valorem tax, not exceeding one-half mill per dollar valuation of property in the downtown area designated by the governing body.

(c) Monies borrowed and to be repaid from other funds received under the authority of this act.

Sec. 11. Levy of additional ad valorem taxes in downtown district; limitations on use of additional levy; limitations on use of public funds.

The governing body is authorized to levy an additional ad valorem tax on all real and personal property in the downtown district not exceeding one-half mill on the dollar valuation of such property for the purpose of financing the operation of the authority. This levy of one-half mill per dollar ad valorem tax shall be in addition to the regular ad valorem taxes and special assessments for improvements imposed by the governing body of the city. The tax collector shall transmit funds so collected to the appropriate officer of the city responsible for the handling of the public money, who shall deposit same in the city treasury to the credit of the authority. Such money shall be used for no purpose other than those purposes authorized herein and upon approval of the board, pursuant to vouchers signed by the director and the treasurer of the authority. The funds of the authority shall be secured as other public funds are secured. Other monies received by the authority shall forthwith be deposited in the city treasury to the credit of the authority, subject to disbursement as herein authorized. The city shall not obligate itself nor shall it ever be obligated to pay any sums from general public funds or from any public funds, other than monies received pursuant to section 10, hereof, for or on account of any of the activities of the authority.

Sec. 12. Assessment against funds of authority for handling and auditing of authority's funds by city.

The governing body shall have the power to assess against the funds of the authority for the use and benefit of the general fund of the city, a reasonable pro rata share of such funds for the cost of handling and auditing, which assessment when made shall be paid annually by the board pursuant to an appropriate item in its budget.

Sec. 13. Conflicts of interest by members and employees of board.

No board member nor any employee of the board shall vote or otherwise participate in any matter in which he/she has a financial interest, either direct or indirect. When such interest shall appear, it shall be the duty of the board member, or employee, to make such interest known and he/she shall thenceforth refrain from voting on or otherwise participating in the particular transaction involving such interest. Wilful violation of the provisions hereof shall constitute malfeasance on the part of a member of the board, and shall be grounds for instant dismissal of any employee. The governing body may, in the ordinance, provide for automatic forfeiture of office by a board member for violation hereof. Any transaction involving a conflict of interest, wherein a violation of this section is involved, may be rendered void at the option of the board.
(Ord. No. 13676, § 2, 4-27-17)

Sec. 14. Declaration of policy of state.

In addition to any other methods or procedures authorized, it is the policy of the State of Florida to make it possible for municipal corporations to preserve property values by preventing deterioration found in the central business district of large communities, those having a population in excess of two hundred fifty thousand (250,000)

and by a system of self-help to correct the blight of such deterioration; to provide the vehicle whereby property owners who will benefit directly from the results of such program will bear the cost thereof, and whereby local problems will be solved on the local level through the use of machinery provided by local government.

Sec. 15. Act supplemental to other powers of municipalities.

All powers conferred upon municipal corporations by this act are and shall be supplemental and in addition to those conferred by any other general or special law and shall be liberally construed to effectuate the purposes hereof. This act shall be construed to be an alternative method of accomplishing its purposes independent of any other powers conferred upon municipal corporations electing to exercise the authority herein granted.

Sec. 16. Real property within central business district subject to ad valorem taxes.

All real property located within the central business district shall be subject to ad valorem taxes to pay the principal and interest on all existing general obligation debts of the city and any future debts which may be authorized by law.

Sec. 17. Liberal construction; severability of provisions.

The provisions hereof shall be liberally construed to accomplish the purposes expressed herein and if any section, paragraph, sentence, clause, phrase or word, or the application of any of them to any persons, facts or circumstances, shall be held to be void and unconstitutional, such holding shall not affect the remainder of this act, or the application hereof to other persons, facts or circumstances, it being the intent of the legislature to have enacted this act without such void section, paragraph, sentence, clause, phrase, word or application.

Sec. 18. Effective date.

This act shall take effect immediately upon its becoming a law.

Editor's note—Laws of Fla., ch. 65-1090, became a law without the governor's approval, and was filed in office of the secretary of state June 25, 1965.

ARTICLE II. POLICE POWERS*

LAWS OF FLORIDA, CHAPTER 67-853

An act relating to the police powers of municipalities in all counties of the state having a population of more than four hundred thousand (400,000), according to the latest decennial census; providing that municipal governments are enabled to pass ordinances and impose penalties for the violation thereof; providing the maximum penalty for an offense made punishable by said ordinances; providing for its cumulative effect; providing an effective date.

Be It Enacted by the Legislature of the State of Florida:

Sec. 1. Certain powers designated, penalty for violations prescribed.

In all counties of the state having a population of more than four hundred thousand (400,000), according to the latest decennial census, the city or town council or the governing body of any municipality whether incorporated under the provisions of F.S. ch. 165 or created by a special or local act of the legislature or incorporated pursuant to the provisions of section 11 of article VIII, of the constitution of this state whether the ratification or approval of the charter of said municipality was the subject of a referendum election, may pass all such ordinances and laws as may be expedient and necessary for the preservation of the public peace and morals, for the suppression of riots and disorderly assemblies and for the order and government of the municipality, for the purpose of exercising the powers conferred by its charter, the constitution of this state or by any general law and to impose

*__Editor's note—__Included herein as article II of subpart C is Laws of Fla., ch. 67-853. For purposes of facilitating indexing and reference, catchlines have been added by the editors.

such pains, penalties and forfeitures as may be needed to carry the same into effect. Provided, that such ordinances shall not be inconsistent with the constitution and laws of the United States or of this state; and provided, further, that for no one (1) offense made punishable by the ordinances and laws of said municipality shall a fine of more than one thousand dollars ($1,000.00) be assessed, nor imprisonment at hard labor in the streets or other works of said municipality for a period of time greater than one (1) year, but said punishment may include both fine and imprisonment.

Sec. 2. Provisions cumulative to charter.

This act shall be deemed cumulative and supplemental to the provisions of any municipal charter, whether created by general law or special law or referendum election.

Sec. 3. Effective date.

This act shall take effect immediately upon becoming a law.

Editor's note—Laws of Fla., ch. 67-853, became a law without the governor's approval, and was filed in the office of the secretary of state July 1, 1967.

CHARTER AND RELATED LAWS CASE LAW TABLE

This table of charter case law references shows the section location of case annotations in the Charter and Related Laws set forth in part I of this volume.

PART A. CHARTER

Case Name	Location of Annotation
Bloodworth v. Suggs, 60 So. 2d 768	16
Bryan v. Landis, 106 Fla. 19, 142 So. 650	16, 26
City of Miami v. Bus Benches Co., 174 So. 2d 49	39(b)
City of Miami v. Elmore, 131 So. 2d 517	16
City of Miami v. South Miami Coach Lines, 59 So. 2d 52	39(b)
Clarke v. City of Miami, 81 So. 2d 217	16
Coast Cities Coaches v. Miami Transit Co, 41 So. 2d 644	39(b)
Glatstein v. City of Miami, 399 So. 2d 1005	29
Highway Construction Co. v. City of Miami, 126 F.2d 777	1
Mahoney v. Givens, 64 So. 2d 926	29
Miami Water Works Local No. 654 v. City of Miami, 157 Fla. 445, 26 So. 2d 194	1
Reese v. Golden, 209 So. 2d 490	41(d)
Rolle v. City of Miami, 408 So. 2d 642	39(b)
Rosenfelder v. Huttoe, 156 Fla. 682, 24 So. 2d 108	25
State v. Bloodworth, 134 Fla. 369, 184 So. 1	4
State v. City of Miami, 379 So. 2d 651	39(b)
State v. Krause, 47 Fla. Supp. 36, *aff'd* 366 So. 2d 1244	16

PART B. RELATED LAWS

Case Name	Location of Annotation Art./Sec.
City of Miami v. Gates, 393 So. 2d 586	II

GENERAL LAWS OF LOCAL APPLICATION COMPARATIVE TABLE

LAWS OF FLORIDA

This table shows the location of the General Laws of Local Application in effect in the city and any amendments.

Chapter	Section	Location in Subpt. C
65-1090	1—18	Art. I
67-853	1—3	Art. II
71-29	1	Arts. I, II

PART II

THE CODE*

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.
Sec. 1-2. Definitions.
Sec. 1-3. Catchlines of sections.
Sec. 1-4. History notes.
Sec. 1-5. References to chapters or sections.
Sec. 1-6. References and editor's notes.
Sec. 1-7. Certain ordinances not affected by Code.
Sec. 1-8. Amendments to Code.
Sec. 1-9. Supplementation of Code.
Sec. 1-10. Continuation of prior ordinances; effect of provisions of Code.
Sec. 1-11. Effect of repeal of ordinances.
Sec. 1-12. Severability of parts of Code.
Sec. 1-13. General penalty.
Sec. 1-14. Computation of time.
Sec. 1-15. Public clocks to use official time.
Sec. 1-16. City seal.

*__Charter reference—__Authority for codification of ordinances, § 3(jj).

__Law review references—__Articles as to regulatory ordinances in Florida, 8 Miami L. Q. 264; 10 Miami L. Q. 239.

Sec. 1-1. How Code designated and cited.

The ordinances embraced in the following chapters and sections shall constitute, be designated as, and be cited as the "Code of the City of Miami, Florida, as amended" ("Code").
(Code 1967, § 1-1; Code 1980, § 1-1; Ord. No. 13748, § 2, 3-8-18)

Charter reference—Authority for codification of ordinances, §§ 3(ff), 104.

Sec. 1-2. Definitions.

This section provides definitions of terms to be used throughout the Code, as defined herein, unless inconsistent with the manifest intent of the city commission or the context of this Code:

Charter. The term "Charter" shall mean the Charter of the City of Miami, Florida, as amended, as printed in part I of this Code.

City. The term "city" shall mean the City of Miami, in Miami-Dade County and the State of Florida.

City commission or *commission.* The terms "city commission" or "commission" shall mean the city commission of the City.

City manager. The term "city manager" shall mean the head of the administrative branch of the city government or his or her designee.

Code. The term "Code" shall mean the Code of the City of Miami, Florida, as amended.

County. The term "county" shall mean Miami-Dade County, in the State of Florida.

State law reference—Dade County, F.S. § 7.13.

Following. The term "following" shall mean immediately next.

F.S. The term "F.S." shall mean the official Florida Statutes and all amendments and latest supplements.

Mayor. The term "mayor" shall mean the mayor of the city.

Month. The term "month" shall mean a calendar month.

Office, officer, board, committee, etc. The terms "office", "officer", "board", "committee", and similar terms shall mean of the city and includes any person authorized by law to perform the duties of such office, officer, board, committee, etc.

Owner. the word "owner," shall mean any part owner, joint owner, tenant in common, joint tenant, or tenant by the entirety, of the whole or of a part of such building or land.

Person. The term "person" shall mean a corporation, firm, partnership, association, organization, or any other group acting as a unit, as well as a natural person.

Preceding. The term "preceding" shall mean immediately before.

Rendition. The term "rendition" shall mean the filing of the referenced item with the clerk of the board.

State. The term "state" shall mean the State of Florida.

Tenant; occupant. The terms "tenant" and "occupant," shall mean any person who occupies the whole or a part of such building or land, either alone or with others.

Ways; streets; highways. The terms "ways," "streets," and "highways," shall mean any way, street, and highway and include but not be limited to boulevards, avenues, courts, lanes, alleys, squares, places, terraces, and sidewalks, so far as the same are public; and each of these words includes every other of them.
(Code 1967, § 1-2; Code 1980, § 1-2; Ord. No. 11564, § 3, 10-28-97; Ord. No. 13748, § 2, 3-8-18)

State law reference—State law definitions of terms generally, F.S. § 1.01.

Sec. 1-3. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the sections and shall not be deemed or taken to be the titles of such sections nor as any part of the sections nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

Sec. 1-4. History notes.

The history notes appearing in parentheses after sections of this Code are not intended to have any legal effect, but are merely intended to indicate the source of matter contained in the section.

Sec. 1-5. References to chapters or sections.

All references to chapters or sections are to the chapters and sections of this Code, unless otherwise specified.

Sec. 1-6. References and editor's notes.

References and editor's notes following certain sections are inserted as an aid and guide to the reader and are not controlling or meant to have any legal effect.

Sec. 1-7. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of any of the following when not inconsistent with this Code:

(1) Any offense or act committed or done or any penalty or forfeiture incurred before the effective date of this Code.

(2) Any ordinance or resolution promising or guaranteeing the payment of money for the city or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness or any contract, right, agreement, lease, deed or other instrument or obligation assumed by the city.

(3) Any administrative ordinances or resolutions of the city not in conflict or inconsistent with this Code.

(4) Any right or franchise granted by any ordinance.

(5) Any ordinance or resolution dedicating, naming, establishing, locating, relocating, opening, paving, widening, repairing, vacating, etc., any street or public right-of-way in the city.

(6) Any appropriation ordinance.

(7) Any ordinance levying or imposing taxes.

(8) Any ordinances prescribing through streets, parking and traffic regulations, speed limits, one-way traffic, limitations on load of vehicles or loading zones.

(9) Any ordinances regarding building codes, land use, zoning, rezoning, or amendment to the zoning map.

(10) Any ordinance establishing and prescribing the street grades of any street in the city.

(11) Any ordinance providing for local improvements and assessing taxes therefor.

(12) Any ordinance dedicating or accepting any plat or subdivision in the city.

(13) Any ordinance annexing territory or excluding territory or any ordinance extending the boundaries of the city.

(14) Any ordinance establishing positions, classifying positions, or benefits or setting salaries of city officers and employees or any personnel regulations.

(15) Any temporary or special ordinances.

(16) Any ordinance calling elections or prescribing the manner of conducting the election in accordance with state law.

All such ordinances are recognized as continuing in full force and effect to the same extent as if set out at length in this Code and are on file in the city clerk's office.
(Ord. No. 13748, § 2, 3-8-18)

Sec. 1-8. Amendments to Code.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of this Code and printed for inclusion in the Code. When subsequent ordinances repeal any chapter, article, division, section, subsection or any portion thereof, such repealed portions may be excluded from the Code by omission from reprinted pages.

(b) Amendments to any of the sections of this Code may be made by amending such sections by specific reference to the section number of this Code in substantially the following language: "That section _____ of the Code of the City of Miami, Florida, as amended, is hereby amended to read as follows: . . . ." The new section shall then be set out in full as desired.

(c) If a new section not existing prior to the adoption of this Code is to be added, the following language may be used: "That the Code of the City of Miami, Florida, as amended, is hereby amended by adding a section to be numbered _____, which section reads as follows: . . . ." The new section may then be set out in full as desired.

(d) Every subsection, section, division, article or chapter desired to be repealed must be specifically repealed by subsection, section, division, article or chapter number, as the case may be.
(Ord. No. 13748, § 2, 3-8-18)

State law reference—Minimum procedure and requirements for enactment of ordinances, F.S. § 166.041.

Sec. 1-9. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed by the city commission during the period covered by the supplement and all changes made thereby in the Code and shall also include all amendments to the Charter during the period. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission of the portions from reprinted pages.

(c) When preparing a supplement to this Code, the codifier, meaning the person, agency or organization authorized to prepare the supplement, may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate catchlines, headings, or titles for sections and other subdivisions of the Code printed in the supplement and make changes in catchlines, headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ through _____." The inserted section numbers will indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code; and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

(Ord. No. 13748, § 2, 3-8-18)

Sec. 1-10. Continuation of prior ordinances; effect of provisions of Code.

So far as the provisions of this Code are the same in effect as those of previously existing provisions of the Code of the City of Miami, Florida, 1980, or other city ordinances, they shall be construed as a continuation of such Code or other ordinances. They shall not affect any act done; any right accrued; any penalty incurred;

any suit, prosecution, or proceeding pending; or the tenure of office of any person holding office at the time they take effect.
(Code 1967, § 1-3; Code 1980, § 1-3; Ord. No. 13748, § 2, 3-8-18)

Sec. 1-11. Effect of repeal of ordinances.

(a) The repeal of an ordinance shall not revive any ordinance in force before or at the time the ordinance repealed took effect.

(b) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, or any suit, prosecution or proceeding pending at the time of the repeal, for an offense committed under the ordinance repealed.
(Code 1967, § 1-4; Code 1980, § 1-4)

Sec. 1-12. Severability of parts of Code.

It is hereby declared to be the intention of the city commission that the sections, paragraphs, sentences, clauses, and phrases of this Code are severable, and, if any phrase, clause, sentence, paragraph, or section of this Code shall be declared unconstitutional or otherwise invalid by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs or sections of this Code, since the same would have been enacted by the city commission without the incorporation in this Code of any such unconstitutional or invalid phrase, clause, sentence, paragraph or section.
(Code 1967, § 1-5; Code 1980, § 1-5; Ord. No. 13748, § 2, 3-8-18)

Sec. 1-13. General penalty.

Any person violating the provisions of any section of this Code or any other ordinance, where no other penalty is prescribed, shall, upon conviction, be fined not more than $500.00, imprisoned for not more than 60 days, or shall be both fined and imprisoned. Each day that such violation shall continue (or, in the case of shows and exhibitions illegally conducted, each performance) shall constitute a separate offense.
(Code 1967, § 1-6; Code 1980, § 1-6; Ord. No. 13748, § 2, 3-8-18)

Charter reference—Authority to impose penalties for ordinance violations, limitation on penalties, § 3(z).

State law references—Penalty for violation of ordinances, F.S. § 162.22; fines and forfeitures collected in county court for violations of municipal ordinances payable to municipality, F.S. § 34.191; punishment for misdemeanors, F.S. §§ 775.082, 775.083.

Sec. 1-14. Computation of time.

In computing any period of time prescribed or allowed by this Code, the day of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included unless it is a Saturday, Sunday, or legal holiday, in which event the period shall run until the end of the next day which is neither a Saturday, Sunday, nor legal holiday. When the period of time prescribed or allowed is less than seven days, intermediate Saturdays, Sundays, and legal holidays shall be excluded in the computation.
(Ord. No. 13748, § 2, 3-8-18)

Sec. 1-15. Public clocks to use official time.

All clocks or other timepieces in or upon public buildings or other premises maintained at the expense of the city shall be set and run according to the official time as provided by the Congress of the United States, unless otherwise modified by the legislature of the state. It is hereby made the duty of the officer or other person having control and charge of such building or premises to see that such clocks or other timepieces are set and run in accordance with official time.
(Code 1967, § 1-8; Code 1980, § 1-7; Ord. No. 13748, § 2, 3-8-18)

Editor's note—Ord. No. 13748, § 2, adopted March 8, 2018, redesignated the former section 1-14 as section 1-15. The historical notation has been preserved for reference purposes.

Federal law reference—Provisions establishing standard time throughout the United States, but permitting states to exempt themselves from daylight saving time, 15 USC 260—267.

State law reference—Legal time, F.S. § 1.02.

Sec. 1-16. City seal.

(a) City seal. As used herein, the city seal shall mean the graphical seal as depicted below and comprised of a round seal with the words "The City of Miami" and "Florida" arranged in a semicircular form, constituting the border and the design of the Royal Palm Tree in an upright position in the center of the seal, with the inscription "Incorporated 1896" inserted just below the center of the seal. Said city seal shall be the official seal of the city.



(b) Unauthorized use of the city seal. It shall be unlawful and a violation of this section to manufacture, use, display, or otherwise employ any facsimile or reproduction of the city seal, except by city officials or employees in their official duties, without the express approval of the city commission. Such unauthorized use shall constitute a violation of this section and may be punished by a court of competent jurisdiction up to the maximum penalty permitted by law as provided by section 1-13 of this Code and F.S. § 165.043.

(c) Alternate seal. The city commission may approve by resolution, on limited occasions, an alternate city seal or logo. The alternate seal may include modernized design updates or color highlights of the aforementioned seal design.

(d) All seals previously used or adopted by the city are solely reserved for use by the city, its agencies, and instrumentalities, which shall maintain all rights authorized and provided for pursuant to F.S. § 165.043.
(Ord. No. 13750, § 2, 3-22-18; Ord. No. 13930, § 2, 10-8-20)

Chapter 2

ADMINISTRATION*

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Sec. 2-2. Hearings and investigations—Authority of city officers to issue subpoenas, require attendance of witnesses, etc.
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Sec. 2-33. Order of business and rules of procedure.
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Sec. 2-66. Appointment, qualifications of the independent auditor general.
Sec. 2-67. Duties and powers of the independent auditor general.
Sec. 2-68. Staffing.
Sec. 2-69. Operating procedures and responsibilities.

***City Code cross references—**Downtown development authority board, § 14-52 et seq.; elections, ch. 16; finance, ch. 18; personnel, ch. 40; police, ch. 42; historic and environmental preservation board, § 62-26 et seq.

State law reference—Intergovernmental programs, F.S. ch. 163.

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Sec. 2-160. Office of the inspector general.
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Sec. 2-202. Director—Appointment.
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Sec. 2-205. Divisions of department; directors.
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Sec. 2-207. Zoning certificate of use required; annual reinspection of buildings and premises; fees for inspections and issuance of certificates.
Sec. 2-208. New permits prohibited, non-homestead properties.
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Secs. 2-1345—2-1349. Reserved.

Division 25. Lesbian, Gay, Bisexual, Transgender, Queer ("LGBTQ") Advisory Board

Sec. 2-1350. Creation.
Sec. 2-1351. Composition; membership.
Sec. 2-1352. Meetings; quorum and voting; attendance requirements; parliamentary authority; rules of procedure; minutes; assignment of staff; legal counsel; and notices and filing of records.
Sec. 2-1353. Powers and duties.
Secs. 2-1354—2-1359. Reserved.

Division 26. Reserved

Secs. 2-1360—2-1368. Reserved.

Article XII. Reserved

ARTICLE I. IN GENERAL

Sec. 2-1. City offices to be closed on Saturdays; exceptions.

Saturday of each week is hereby designated a legal holiday, and the public offices of the city shall be closed on Saturday, except those offices whose personnel render services essential to the health, safety, and general welfare of the citizens of the city including but not limited to the police, fire-rescue, and general services administration departments.

(Code 1967, § 2-1; Code 1980, § 2-1; Ord. No. 13749, § 2, 3-8-18)

Charter reference—Authority of city to establish hours for city offices to be open, § 41(b).

State law reference—Holidays, F.S. § 683.01.

Sec. 2-2. Hearings and investigations—Authority of city officers to issue subpoenas, require attendance of witnesses, etc.

Every officer of the city who is authorized in and by any provisions of the City Charter to conduct hearings or investigations is hereby authorized and empowered to issue subpoenas which shall require the attendance of witnesses and the production of books, papers, records, and other evidence, and is further authorized and empowered to administer to any person the oath usually administered to witnesses and to require such person to make a full and fair disclosure of all facts within the witness' knowledge which are properly relevant to the subject matter of any such hearing or investigation.

(Code 1967, § 2-2; Code 1980, § 2-2; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13749, § 2, 3-8-18)

City Code cross reference—Investigations of possible violation of lobbying regulations, § 2-657.

Sec. 2-3. Same—Right of person subject to hearing or investigation to require attendance of witnesses, production of books, papers, etc.

Every person whose conduct or activities are the subject of any hearing or investigation by an officer of the city shall have the right to require subpoenas to be issued in his or her behalf to require the attendance of witnesses and the production of books, papers, records, or other evidence. For the purpose of exercising such right, such person shall file a praecipe for the issuance of witness subpoenas with the officer conducting such hearing or investigation, setting forth in such praecipe the name and the address of each person upon whom a subpoena is to be served and describing with adequate clearness any books, papers, records, or other evidence to be produced at such hearing or investigation, and, contemporaneously with the filing of such praecipe, shall deposit with such officer the amount provided for in section 2-5 as witness fees for one day for each person, other than members of the city commission or officers or employees of the city, upon whom a subpoena is to be served. Upon the filing of such praecipe and the deposit of such witness fees, the subpoenas covered thereby shall be issued forthwith by the officer conducting such hearing or investigation, and they shall be served and returns shall be made in accordance with the provisions of the relevant sections of this article.

(Code 1967, § 2-3; Code 1980, § 2-3; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13749, § 2, 3-8-18)

Sec. 2-4. Same—Contents, service and return of subpoenas.

Each subpoena issued pursuant to sections 2-2 and 2-3 shall set forth the general purpose of the hearing or investigation to which the subpoena pertains; shall bear the signature of the officer issuing the same; shall command the person named therein to be present at the time and place therein stated; and, in the event that such person is to be required to produce books, papers, records, or other evidence at such time and place, shall describe with adequate clearness the books, papers, records, or other evidence to be so produced. The process server charged with the duty of serving any such subpoena shall make a written return to the officer issuing the subpoena, setting forth in such return whether service was duly completed and, if so, the time, place, and manner thereof.

(Code 1967, § 2-4; Code 1980, § 2-4; Ord. No. 13749, § 2, 3-8-18)

Sec. 2-5. Same—Witnesses' fees.

(a) Every person upon whom a subpoena shall be served as provided in sections 2-3 and 2-4, and who is not a member of the city commission

or an officer or an employee of the city shall be entitled to receive, upon demand of the witness and in advance, witness fees at the rate of $3.50 per diem if the witness resides within the municipal boundaries of the city, and at the rate of $4.00 per diem if the witness resides outside the municipal boundaries of the city, for each day upon which the witness' attendance at any such hearing or investigation is required, and it shall be the duty of such person to attend such hearing or investigation from day to day until the witness is discharged from further attendance by the officer conducting the same, provided that, if the witness shall demand payment in advance of such witness fees and such payment is not made in compliance with the witness' demand, the witness shall not be required to attend that session of such hearing or investigation to which such demand applied; and the witness shall not be entitled to demand in advance at any one time payment of an amount in excess of the witness fees payable to the witness under this section for attending the next scheduled daily session of such hearing or investigation.

(b) All amounts paid as witness fees to persons subpoenaed upon the initiative of the officer conducting such hearing or investigation shall constitute and be recognized as municipal expenses and shall be made available and paid in such manner as the city manager shall prescribe.

(c) All amounts paid as witness fees to persons subpoenaed as the result of the filing of the praecipe described in section 2-3 shall be advanced by and shall constitute an expense of the person filing such praecipe, unless the officer conducting such hearing or investigation should otherwise direct.

(Code 1967, § 2-5; Code 1980, § 2-5; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13749, § 2, 3-8-18)

Sec. 2-6. Same—Failure to attend hearing or give testimony.

No person regularly served with a subpoena under the provisions of sections 2-2 through 2-5 shall fail to attend a hearing or investigation as directed in such subpoena; refuse to be sworn as a witness; or refuse to testify, give evidence, or answer fully and fairly any proper question propounded to the witness.

(Code 1967, § 2-6; Code 1980, § 2-6; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13749, § 2, 3-8-18)

Sec. 2-7. Service charge on refused checks.

At any time the city is in possession of a check, draft, or order which has been refused by the drawee because of lack of funds or credit, a service charge for the handling of such instrument is hereby imposed upon the drawer and/or last endorser of the instrument, not to exceed maximum as provided by state law.

(Code 1967, § 2-6.1; Code 1980, § 2-7; Ord. No. 13749, § 2, 3-8-18)

State law reference—Dishonored check fee, F.S. § 166.251.

Sec. 2-8. Disclosure requirement.

(a) Each person or entity requesting approval, relief, or other action from the city commission or any of its boards, authorities, agencies, councils, or committees regarding any issue, shall disclose, at the commencement (or continuance) of the public hearing on the issue, any consideration provided or committed, directly or on its behalf, for an agreement to support or withhold objection to the requested approval, relief, or action.

(b) The disclosure shall:

(1) Be in writing;

(2) Indicate to whom the consideration has been provided or committed;

(3) Describe the nature of the consideration, and specify the amount of any funds paid or committed;

(4) Describe what is being requested in exchange for the consideration; and

(5) Be read into the record by the requesting person or entity prior to submission to the secretary/clerk of the respective board.

(c) Upon determination by the city commission, board, authority, agency, council, or committee as applicable that the foregoing disclosure

requirement was not timely satisfied by the person or entity requesting approval, relief, or other action as provided above, then:

(1) The application or order, as applicable, shall immediately be void without further force or effect, and

(2) No application from said person or entity for the subject of the request shall be reviewed or considered by the applicable board(s) until expiration of a period of one year after the nullification of the application or order.

(d) The validity of any action or determination of the city commission or any of its boards, authorities, agencies, councils, or committees shall not be affected by the failure of any person or entity to comply with the provisions of this section unless a challenge is presented to the city commission or any of its boards, authorities, agencies, councils, or committees at the first regularly scheduled meeting of such board authority agency, council, or committee following the date such violation of the disclosure requirement is alleged to have occurred.

(e) "Consideration" shall be defined to include any gift, payment, contribution, donation, fee, commission, promise, or grant of any money, property, service, credit, or financial assistance of any kind or value, whether direct or implied, or any promise or agreement to provide any of the foregoing in the future.

(f) It shall be unlawful to employ any device, scheme, or artifice to circumvent the disclosure requirements of this section and such circumvention shall be deemed a violation of the disclosure requirements of this section.

(g) The provisions of this article shall not apply to or affect individuals retained or employed by a principal as lobbyist as defined in section 2-653.
(Ord. No. 12918, § 1, 5-10-07; Ord. No. 13749, § 2, 3-8-18)

Secs. 2-9—2-30. Reserved.

ARTICLE II. MAYOR AND CITY COMMISSION*

Sec. 2-31. Election and general powers.

The mayor and members of the city commission shall be elected as provided in Section 4 of the City Charter and shall exercise the powers and duties prescribed in Section 3 and other sections of the Charter.
(Code 1967, § 2-7; Code 1980, § 2-11; Ord. No. 11564, § 4, 10-28-97; Ord. No. 13769, § 2, 6-28-18)

Sec. 2-32. Time and place of meeting.

(a) City hall, located at 3500 Pan American Drive, Miami, Florida, is hereby designated as the meeting place for the city commission. All meetings of the city commission shall be held on the first floor of city hall. The city commission may designate alternate meeting places and times from time to time as may appear appropriate by resolution. Such resolution shall specify the date, time, and place and shall be limited to one city commission meeting per resolution. The date so specified shall be not sooner than 30 days subsequent to the effective date of the resolution.

(b) Regular meetings of the city commission shall be held on the second and fourth Thursdays of each month beginning at 9:00 a.m. except the months of August, November, and December and unless otherwise provided by city commission action. During the month of November, the regular meeting shall be held on the third Thursday at 9:00 a.m. During the month of December, the regular meeting shall be held on the second Thursday at 9:00 a.m. The city commission shall be in recess during the month of August.

(c) The city commission may, by resolution, designate a substitute day or time upon which regular city commission meetings shall be held whenever, in the opinion of a majority of the members of the city commission, there is good cause for such substitution.

*__Editor's note—__Ord. No. 11564, § 4, adopted Oct. 28, 1997, changed the title of art. II from City Commission to Mayor and City Commission.

(d) Notwithstanding the foregoing, the mayor, the presiding officer/chair, or three city commissioners may cancel a regular city commission meeting at any time provided that written notice of the cancellation is delivered to the city clerk at least 72 hours in advance. The city clerk shall then notify the mayor, each member of the commission, the city manager, the city attorney, and the public of the cancellation. Cancelled meetings shall be rescheduled pursuant to subsection 2-33(o) of the City Code.

(Code 1967, § 2-8; Ord. No. 9294, § 1, 7-9-81; Code 1980, § 2-12; Ord. No. 11530, § 2, 7-24-97; Ord. No. 11580, § 1, 12-9-97; Ord. No. 11865, § 2, 11-14-99; Ord. No. 12074, § 1, 5-24-01; Ord. No. 13348, § 1, 10-25-12; Ord. No. 13769, § 2, 6-28-18; Ord. No. 13885, § 2, 12-12-19; Ord. No. 14400, § 2, 10-9-25; Ord. No. 14447, § 2, 3-12-26)

Editor's note—Miami 21, the zoning ordinance, is published in a separate volume.

Charter reference—Place and time of commission meetings, § 4(f).

City Code cross reference—Zoning and planning, ch. 62.

Sec. 2-33. Order of business and rules of procedure.

(a) The rules and regulations regarding the procedure of the city commission at all regular meetings are hereby established and adopted.

(b) The first order of business shall be the approval of the minutes of the previous meeting. A copy of said minutes shall be distributed to the mayor and each of the commissioners prior to the meeting to enable the mayor and each commissioner to review the contents thereof.

(c) After approval of the minutes of the previous meeting(s), all business that shall come before the city commission shall be taken up in the order as such items of business appear on the city commission agenda in accordance with the following provisions:

(1) The agenda shall be prepared by the city manager in an appropriate form approved, from time to time, by the city commission. Matters may be placed on the agenda by the mayor, any member of the city commission, the city manager, the city attorney, the city clerk, and a city board as defined in section 2-882 of this Code. Notwithstanding subsections 2-33(d) and 2-33(e) of the City Code, an elected official may place an item on the city commission agenda at any time up to noon seven business days before the city commission meeting. An elected official who desires to sponsor or co-sponsor any such matter must submit such a request in writing to the agenda office or direct his or her chief of staff to do the same.

(2) Any member of the public shall be entitled to speak on any proposition before the city commission in which the city commission may take any action through the presiding officer. Unless further time to speak is granted by the presiding officer of the city commission, any person addressing the commission shall limit his or her address to two minutes. A speaker may receive the donation of speaking time from no more than two members of the public for a total speaking time of five minutes unless extended for a maximum of seven minutes by a supermajority of the city commission members present. However, the chair may allow a representative of a group on a proposition to address the commission, rather than all members of such group, at meetings in which a large number of individuals wish to be heard and grant such group representative a reasonable time to speak. The opportunity to be heard need not occur at the same meeting at which the city commission takes official action on the proposition, if the opportunity occurs at a meeting that is during the decision making process and is within reasonable proximity in time before the meeting at which the city commission takes official action. This does not prohibit the city commission from maintaining orderly conduct or proper decorum in a public meeting.

(3) The requirements of subsection (c)(2) shall not apply to:

a. An official act that must be taken to deal with an emergency situation

affecting the public health, welfare, or safety, if compliance with the above requirements would cause an unreasonable delay in the ability of the city commission to act; or

b. A ministerial act, including but not limited to, approval of minutes and ceremonial proclamations.

(4) Any member of the public shall be entitled to be scheduled on the agenda of a regular meeting of the city commission for presentation of information and material to be considered by the commission within the scope of the jurisdiction of the city commission after the city manager has communicated with the member of the public and reviewed or investigated the member's issue, unless otherwise directed by the mayor or a member of the city commission. If the city manager is able to resolve or remedy the concerns of the member of the public, the member of the public may elect to withdraw the request to appear before the city commission. If the matter is not or cannot be resolved or remedied by the city manager, then, at the will of the member of the public, the request for appearance shall be scheduled on the next available agenda and the city manager shall submit a report in the agenda packet detailing actions taken to resolve or remedy the matter and administrative recommendations.

(5) The total number of items that may be scheduled on a regular city commission agenda shall not exceed 60 items. All matters on the consent agenda shall count as one item.

(6) The lunch recess shall begin:

a. At 12:00 noon;

b. At the conclusion of deliberations of the agenda item being considered at 12:00 noon;

c. At the conclusion of statements made by the person who has been recognized to address the commission immediately prior to 12:00 noon; or

d. At any time deemed appropriate by the city commission.

(7) The city commission meetings, shall adjourn:

a. At the conclusion of deliberation of the agenda item being considered at 10:00 p.m., unless the time is extended by unanimous agreement of the members of the city commission then present, or

b. At the conclusion of the regularly scheduled agenda, whichever occurs first. This rule does not apply to city commission meetings required for annual budget hearings.

(8) Any vote of the city commission pertaining to the establishment of a rescue mission, the continuation of a rescue mission, or action relating to a rescue mission in the city that arises pursuant to the zoning ordinance or comprehensive plan requires the concurrence of four affirmative votes.

(9) The city commission may, when it deems necessary, create legislative pilot programs for a limited period of time not to exceed one year regulating any area within the city commission's powers set forth in Section 4 of the City Charter. Any such pilot program may be reinstated for one additional year. The motorized scooter pilot program established in chapter 8, article II of the City Code is hereby exempted from the duration requirements of this subsection.

(d) A copy of requests, petitions, and applications shall be placed before the mayor and each member of the city commission, supported by administrative memoranda and such information as may be necessary to enable the city commission to reach a decision. All such requests, petitions, and applications, except in cases of extreme emergency, shall be in the hands of the city manager for a period of at least 21 days prior

to a regular meeting, to enable the administration to prepare necessary memoranda, data, or reports.

(e) All resolutions and ordinances except land use changes, zoning changes, board and committee appointments, and election results shall be reviewed by the office of management and budget for any fiscal impact prior to placement on any agenda.

(f) A copy of each agenda item including each resolution and ordinance and all attachments and back-up material shall be furnished to the mayor and members of the city commission at least five full business days before each regular city commission meeting with the exception of veto items. This rule shall be deemed suspended unless invoked by a commissioner before the commission takes action on the resolution or ordinance in question. Once the rule is invoked, no action can be taken on the resolution or ordinance unless the rule is suspended by majority vote of the commissioners present. Nonscheduled ("pocket") items may be introduced for consideration at a city commission meeting by the mayor, a commissioner, the city manager, or the city attorney provided that the city commission by a majority vote deems such resolution or ordinance to be of an emergency nature.

(g) Consistent with the time frame requirements set forth in subsection (e) above, the following shall be posted on the internet:

(1) The city commission agenda simultaneous with its distribution;

(2) The supplemental agenda and any information related to the upcoming agenda simultaneous with its distribution; and

(3) The city clerk's report and annotations to the agenda immediately after its release by the city clerk subsequent to the city commission meeting to which it applies.

(h) All notices of all intentions to ask questions, together with a copy of such questions, shall be given to the city manager five days before each regular meeting. In all questions of policy presented to the city commission by the mayor, the city manager, or any departmental head, notice thereof, together with a copy of questions supported by memorandum setting forth the rules of action by the city commission, shall be filed three days before the meeting and given to the mayor and each member of the city commission.

(i) All ordinances shall be read by title only prior to passage by the city attorney. All resolutions shall be briefly described upon a printed agenda.

(j) The agenda portion entitled "consent agenda" shall be scheduled among the initial items for city commission consideration. Consent agenda items that are removed from the agenda prior to city commission consideration shall automatically be scheduled as a regular agenda item at the next regularly scheduled meeting of the city commission, unless, by an unanimous vote of all commissioners present, the city commission considers such consent item as a regular item at the same meeting.

(k) Any scheduled agenda item not considered prior to the adjournment of a city commission meeting shall be perfunctorily regarded as a deferred item and scheduled on the next regular city commission agenda.

(l) Nothing in this section shall prohibit either the mayor, the commissioner designated as the presiding officer of the city commission, or three city commissioners from calling special meetings at any time provided that written notice of the request for a special meeting is delivered to the city clerk at least 72 hours in advance. The city clerk shall then notify the mayor, each member of the commission, the city manager, the city attorney, and the public of the special meeting including the business to be considered at the special meeting. No business shall be conducted or a vote taken at a special city commission meeting on business other than the subject(s) for which the special meeting is called unless the city commission by a majority vote deems such resolution or ordinance to be of an emergency nature and such resolution or ordinance has been reviewed by the office of management and budget for any fiscal impact.

(m) Any commissioner who so desires may be a signatory on city proclamations. Any such proclamations or other protocol items may be presented at a city commission meeting or, in the discretion of the presiding officer, may be presented prior to the commencement of any city commission meeting. Nothing herein shall prevent a proclamation from being presented at a non-city commission meeting.

(n) If the engagement of an executive director, regardless of title, of any board as defined in section 2-882 of this chapter, is required to be approved, ratified, or confirmed by the city commission, prior to such approval, ratification, or confirmation, the individual proposed to be engaged by a board shall make every reasonable attempt to meet with each member of the city commission.

(o) Whenever a scheduled city commission meeting is cancelled or is not held due to a lack of a quorum or other emergency, a special city commission meeting will be automatically scheduled for the Tuesday immediately following the cancelled meeting. All of the scheduled agenda items from that cancelled meeting shall automatically be scheduled as an agenda item at the special city commission meeting. The city clerk shall then notify the mayor, each member of the city commission, the city manager, and the city attorney. The city clerk shall also notify the public of the special meeting that is to take place by placing a notice of the special city commission meeting at the entrance of city hall and the city's main administrative building, placing a notice on the city's website, and, if feasible, placing an ad in a newspaper of general circulation before the special meeting on the immediately following Tuesday. There shall be no additional notice by publication required for any such scheduled agenda item that is moved to the special city commission meeting.

(Code 1967, § 2-9; Ord. No. 8857, § 1, 9-28-78; Ord. No. 11114, § 1, 1-13-94; Ord. No. 11120, § 1, 2-17-94; Code 1980, § 2-13; Ord. No. 11293, § 2(2-13), 9-14-95; Ord. No. 11532, § 2, 7-24-97; Ord. No. 11564, § 4, 10-28-97; Ord. No. 11642, § 2, 4-14-98; Ord. No. 11654, § 2, 5-12-98; Ord. No. 11723, § 1, 11-17-98; Ord. No. 11724, § 1, 11-17-98; Ord. No. 11786, § 1, 4-27-99; Ord. No. 11865, § 2, 11-14-99; Ord. No. 11942, § 1, 7-20-00; Ord. No. 12074, § 2, 5-24-01; Ord. No. 12134, § 1, 10-11-01; Ord. No. 12310, § 1, 12-12-02; Ord. No. 12352, § 1, 4-10-03; Ord. No. 12409, § 1, 9-25-03; Ord. No. 12498, § 1, 2-26-04; Ord. No. 12586, § 1, 9-9-04; Ord. No. 13182, § 1, 6-10-10; Ord. No. 13438, § 2, 3-13-14; Ord. No. 13768, § 2, 6-14-18; Ord. No. 13769, § 2, 6-28-18; Ord. No. 13832, § 2, 3-28-19; Ord. No. 13883, § 2, 12-12-19; Ord. No. 13894, § 2, 2-13-20; Ord. No. 13897, § 2, 3-12-20; Ord. No. 14043, § 2, 1-13-22; Ord. No. 14087, § 2, 9-13-22; Ord. No. 14088, § 2, 9-13-22; Ord. No. 14151, § 2, 2-23-23)

Editor's note—Ord. No. 12498, § 1, adopted February 26, 2004, enacted provisions intended for use as subsection (c)(7). Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as subsection (c)(8).

Charter reference—Authority of commission to determine its own rules of procedure, § 4(e).

Editor's note—Ord. No. 12352, § 1, adopted April 10, 2003, enacted provisions intended for use as subsection (m). Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as subsection (n).

Sec. 2-34. Presiding officer; vacancy.

(a) In accordance with provisions of Section 4(g)(1) of the City Charter, the mayor shall be the presiding officer of the city commission unless the mayor designates another member of the city commission to serve as presiding officer.

(b) The mayor, as presiding officer, shall not move, second, debate, or vote on any matter that comes before the city commission. If the presiding officer is a member of the city commission, the presiding officer, upon relinquishing the chair, may move, second, debate, and vote on any matter that comes before the city commission, subject only to such limitations as are imposed on all members of the city commission.

(c) In the event of a vacancy in the office of mayor as contemplated in Section 12 of the City Charter, the city commissioner designated as the presiding officer/chair, or, in the absence of same, the city commissioner designated as the vice chair, or, in the absence of both, a city commissioner appointed by a majority vote of the city commission then in office shall serve as the

ceremonial head of city government until the mayoral vacancy is filled pursuant to the provisions of the City Charter.
(Code 1967, § 2-10; Ord. No. 10927, § 1, 10-3-91; Code 1980, § 2-14; Ord. No. 11564, § 4, 10-28-97; Ord. No. 11642, § 2, 4-14-98; Ord. No. 13769, § 2, 6-28-18)

Charter reference—Duties of mayor to be performed by member of city commission elected for that purpose during disability or absence of mayor, § 4(g).

Sec. 2-35. Terms of elected officials as members of any authority, board, or committee; annual review.

In accordance with the provisions of law and with the provisions of this section, the appointment of the mayor and/or any city commissioner currently serving as a member of any authority, board, or committee created by resolution or ordinance shall be subject to the review of the city commission on an annual basis at the commission's first meeting in February. It is the intent of the city commission that the mayor and each commissioner be considered for appointment to an authority, board, or committee before the mayor or any one commissioner shall have served a consecutive term; however, there shall be no prohibition against the mayor or any commissioner from being reappointed to serve consecutive terms.
(Ord. No. 10715, § 1, 3-8-90; Code 1980, § 2-15; Ord. No. 11564, § 4, 10-28-97; Ord. No. 13769, § 2, 6-28-18; Ord. No. 14414, § 2, 11-20-25; Ord. No. 14414, § 2, 11-20-25)

Sec. 2-36. Mayoral veto and commission override.

The veto provisions of Section 4(g)(5) of the City Charter shall be exercised exclusively in accordance with the terms and conditions herein:

(1) Each ordinance and resolution adopted by the commission shall contain a place for noting mayoral approval or veto, and commission override, if applicable. The mayor may indicate approval of any ordinance or resolution by signing it in the place provided, or the mayor may permit the item to become effective in accordance with its terms by allowing ten days to elapse without exercising a veto.

(2) If the mayor determines to veto an ordinance, resolution, motion, or budget line item, the mayor shall personally sign a copy of the form set forth herein in the place so provided and shall indicate with specificity the reason(s) for the veto. The form shall be stated substantially as follows:

OFFICE OF THE MAYOR
MIAMI, FLORIDA
VETO AND VETO MESSAGE

To:

Honorable Members of the City Commission
Miami, Florida

From:

[Signature of the Mayor] Mayor,
Miami, Florida

Pursuant to the authority vested in me under the provisions of Section 4(g)(5) of the Charter of the City of Miami, Florida, I hereby veto:

[State ordinance, resolution, motion, or budget line item]

Veto message:

(3) The completed form shall be submitted to the city clerk on or before 4:30 p.m. on the tenth calendar day following final commission enactment or adoption thereof. The city clerk's official date and time recorder stamp on the completed form shall conclusively determine compliance or noncompliance within the ten-day time frame.

(4) The city clerk shall place any item(s) vetoed by the mayor, together with the completed veto forms, on the next regularly scheduled commission agenda as the first substantive item(s) for commission consideration.

(5) Notwithstanding any other rule of the commission, items vetoed by the mayor shall not be subject to the "5 day rule" as provided in section 2-33; not be deferred to a future meeting; not require committee review; not be subject to a motion to reconsider, except at the same meeting; not require first reading; not require publication or additional public hearings; or not be amended if the item required special publication or a public hearing to be originally adopted or enacted. Members of the public shall have a reasonable opportunity to speak on vetoed items consistent with F.S. § 286.0114, and subsection 2-33(c)(2) of the City Code.

(6) A motion to override a mayoral veto shall be stated substantially as follows:

a. "I move that [the ordinance, resolution, or motion] be adopted and become effective notwithstanding the veto of the mayor"; or

b. "I move that [the specific line item in the budget] be restored and become effective notwithstanding the veto of the mayor."

(7) If four-fifths of all commissioners present vote in favor of a resolution to override a mayoral veto as provided in subsection (6) above, the commission action in question shall be deemed enacted or adopted and effective in accordance with its terms; otherwise, the mayoral veto shall be deemed sustained.

(8) The provisions of this rule shall not be waived.

(Ord. No. 11564, § 4, 10-28-97; Ord. No. 13646, § 2, 11-17-16; Ord. No. 13769, § 2, 6-28-18)

Sec. 2-37. Removal of the city manager by mayor; effective date.

The removal of the city manager by the mayor, pursuant to section 4(g)(6) of the City Charter shall take effect at 5:00 p.m. on the tenth day after the manager is notified of said removal by the mayor unless said removal is overridden by a four-fifths vote of the commissioners then in office.

(Ord. No. 11851, § 2, 10-26-99; Ord. No. 13769, § 2, 6-28-18)

Sec. 2-38. Ethics requirement.

The mayor, city commissioners, city manager, chief of operations, chief financial officer, chief information officer, chief of fire, chief of police, department directors and those with equivalent positions, executive directors of boards or committees and all appointed board members are required to have completed an ethics course within 90 days of taking office or within at least one year prior to taking office or employment. The city manager, city attorney, and city clerk shall coordinate and present or cause to be presented an ethics course and make such course available at least quarterly. Any person in violation of this section shall be subject to the penalties provided in section 1-13.

(Ord. No. 13125, § 2, 1-14-10; Ord. No. 13769, § 2, 6-28-18)

Sec. 2-39. Recall of elected officials.

No recall petition may be certified for the recall of an elected official in the city within one year after a recall petition against him/her is defeated.

(Ord. No. 13898, § 2, 3-12-20)

Secs. 2-40—2-60. Reserved.

ARTICLE III. OFFICERS*

DIVISION 1. CITY MANAGER

Sec. 2-61. Powers and duties in general.

The city manager shall be appointed pursuant to and shall have the powers and duties enumerated in the laws of the state, the City Charter, and this Code.
(Ord. No. 13770, § 2, 6-28-18)

Sec. 2-62. Assistant city manager and administrative assistant to the city manager—Positions created.

The city manager shall employ such number of assistant city managers and administrative assistants necessary for the city manager to perform his/her duties as required by the laws of the state, the City Charter, and this Code.
(Ord. No. 13770, § 2, 6-28-18)

DIVISION 2. CITY ATTORNEY

Sec. 2-63. Supervision and control of attorneys employed by city.

(a) All attorneys at law retained or employed by the city including all boards, authorities, and agencies, regardless of the nature or kind of service performed or the title or designation under which such attorney renders legal service for the city, are hereby placed under the direct supervision and control of the city attorney.

(b) The city attorney may engage such outside counsel necessary to ensure compliance with the Rules Regulating The Florida Bar.

(c) The mayor may engage special counsel for the specific purpose of providing advice to the mayor and the mayor's office. The compensation and funding for such engagement shall be subject to the advice, consent, and approval of the city commission. Any subsequent special counsel vacancy shall be filled in this manner and subject to the advice, consent, and approval of the city commission.
(Ord. No. 13770, § 2, 6-28-18)

Sec. 2-64. Charter amendments, method of drafting; approval by city commission; submission to electorate.

(a) The city attorney shall draft, with the assistance of any individual the city attorney deems necessary, a Charter amendment within 120 days after the city commission adopts a resolution directing the city attorney to prepare such amendment or after the certification of a petition of ten percent of the qualified electors of the city requesting such amendment.

(b) The Charter amendment drafted by the city attorney shall be approved in final form by the city commission in a resolution calling for a special election upon the amendment. The resolution calling for the special election shall include the text of the amendment draft approved by the city commission, and such draft shall be deemed submitted to the electorate by the adoption of said resolution.

(c) A special election upon said amendment shall occur not less than 60 nor more than 120 days after the draft is submitted.
(Ord. No. 13770, § 2, 6-28-18)

Sec. 2-65. Public records.

(a) The city attorney shall act as the public records coordinator for all public records requests submitted to the city.

*__Editor's note—__Ord. No. 13770, § 2, adopted June 28, 2018, amended article III in its entirety to read as herein set out. Formerly, article III pertained to similar subject matter, and derived from the Code of 1967, §§ 2-11—2-13, 2-15—2-17; Ord. No. 9638, § 1, adopted June 9, 1983; the Code of 1980, §§ 2-31—2-33, 2-41, 2-46—2-48; Ord. No. 10116, § 1, adopted June 12, 1986; Ord. No. 11159, § 1, adopted June 9, 1994; Ord. No. 11564, § 4, adopted October 28, 1997; Ord. No. 11575, § 1, adopted November 26, 1997; Ord. No. 12106, § 2, adopted September 13, 2001; Ord. No. 12154, § 1, adopted November 15, 2001; Ord. No. 12175, § 1, adopted January 10, 2002; Ord. No. 12431, § 1, adopted November 13, 2003; Ord. No. 12893, § 2, adopted March 8, 2007; Ord. No. 13142, § 2, adopted February 11, 2010; Ord. No. 13289, § 1, adopted October 13, 2011, and Ord. No. 13676, § 2, adopted April 27, 2017.

(b) For purposes of this section, the following definitions shall apply:

Exemption means a provision of general law which provides that a specified record, or portion thereof, is not subject to the access requirements of F.S. § 119.07(1) or § 286.011, as amended, or Section 24, Article I of the Florida Constitution.

Public records means any and all documents, papers, letters, maps, books, tapes, photographs, sound recordings, data processing software, or other material, regardless of the physical form, characteristics, or means of transmission, made or received pursuant to law or ordinance or in connection with the transaction of official business of the city.

(c) In accordance with the provisions of F.S. § 119.07, as may be amended or revised from time to time, with respect to public records requests, the city is permitted and may charge the following fees:

(1) The city may collect a "per copy" fee or the actual cost for materials and supplies used to duplicate public records as established in F.S. § 119.07, as may be amended or revised from time to time.

(2) The city may charge an "extensive use fee" whenever extraordinary time constraint is designated by the person requesting copies or research of public records requiring extraordinary expenditure of time by the applicable records custodian. To comply with the request, the records custodian may collect the cost of providing such extraordinary services (i.e. the "extensive use fee") in advance and in addition to the fees set forth in this section. For purposes of this section, "extraordinary expenditure of time" shall mean 20 minutes or more. The extensive use fee shall be calculated using the hourly wage of the employee performing such services and shall not exceed the amounts permitted by law.

(3) For the certification of any public record, the city may collect a fee of $1.00 for each document certified plus the maximum fee(s) as provided pursuant to Florida Statutes for duplication of the public record.

(d) All city officials and department directors shall:

(1) Manage all record management functions within their respective departments and act in close coordination with the city attorney.

(2) With the advice and assistance of the city attorney, inventory all public records for disposition scheduling and transfer action in accordance with all applicable laws.

(3) Consult with any other personnel responsible for creation or maintenance of specific records within his/her department regarding records retention and transfer recommendations.

(4) Review established record retention schedules at least annually to ensure compliance.

(e) City officials and city department directors shall annually certify and file with the city clerk the departmental/office records disposition compliance authorization form provided by the city clerk within seven days after the end of each fiscal year. The foregoing procedure is established to ensure compliance with the provisions of F.S. §§ 119.041(1) and 257.36(6), as may be amended or revised from time to time, and Rule 1B-24.002, Florida Administrative Code, as may be amended or revised from time to time.
(Ord. No. 13770, § 2, 6-28-18)

DIVISION 3. INDEPENDENT AUDITOR GENERAL

Sec. 2-66. Appointment, qualifications of the independent auditor general.

The city commission shall appoint an independent auditor general ("IAG") pursuant to Section 48(b) of the City Charter. The IAG shall be qualified by education and have broad experience in auditing, accounting, and management.
(Ord. No. 13770, § 2, 6-28-18)

Sec. 2-67. Duties and powers of the independent auditor general.

(a) The IAG, subject to the control and direction of the city commission, pursuant to Section 48(c) of the City Charter, and upon requests from the city manager or any elected official shall be empowered to perform all internal audit functions.

(b) The IAG shall file written reports pursuant to Section 48(c) of the City Charter with the city commission reporting the results of individual audits undertaken in conformity with this section with copies to the mayor, city manager, and city attorney. Said reports shall, at a minimum, state:

(1) The subject of the audit;

(2) The findings of the audit; and

(3) The recommendations for action as a result of the audit, if any.

(c) The IAG shall file the annual audit report within 30 days from the end of the third quarter of the fiscal year.
(Ord. No. 13770, § 2, 6-28-18)

Sec. 2-68. Staffing.

The IAG shall employ such professional assistants and support personnel as shall be designated by the IAG and as are approved in the city's annual budget, as may be amended from time to time by the city commission. All employees of the IAG are placed under the direct supervision and control of the IAG.
(Ord. No. 13770, § 2, 6-28-18)

Sec. 2-69. Operating procedures and responsibilities.

Audits to be performed by the IAG shall be requested by the city commission, any member of the city commission, the mayor, the city manager, the city attorney, or the city clerk at a public meeting. The city commission may, by majority vote, direct the IAG not to conduct any such requested audit.
(Ord. No. 13770, § 2, 6-28-18)

Sec. 2-70. Special assignments.

The IAG, subject to specific authorization and direction by the city commission, is authorized to execute special audits and assignments in matters not expressly set forth herein including, but not limited to:

(1) Assistance to any independent auditor of the city, and

(2) Cooperation with the city's audit advisory committee.

(Ord. No. 13770, § 2, 6-28-18)

Secs. 2-71—2-140. Reserved.

DIVISION 4. CITY CLERK

Sec. 2-141. Recordation and indexing of ordinances.

The city clerk shall procure a suitably bound book, in which the city clerk shall record, within ten days after their passage, all ordinances adopted by the city commission, and the city clerk shall make and keep a proper index to such ordinance book.
(Ord. No. 13770, § 2, 6-28-18)

Sec. 2-142. Fees for copies of ordinances and other records.

(a) For the preparation and issuance of photocopies of resolutions, ordinances, and all other official records of the city prepared and issued through the city clerk's office, the city clerk shall collect the maximum fee as provided by law.

(b) For the preparation and issuance of copies of resolutions, ordinances, and all other official records on microfilm, the city clerk shall collect the maximum fee as provided by law.

(c) For the service of duplicating cassette tapes from original tapes used by the city clerk in the voice recording of city commission meetings, the city clerk shall collect a fee as provided by law for such service, provided the person requesting such service furnishes his or her own cassette; if the city clerk furnishes the cassette, the city clerk shall collect a fee of $8.50. For the

service of duplicating digital voice recordings in compact disc form of city commission proceedings, the city clerk shall collect a fee not greater than $15.75 to cover the costs associated with providing such service.

(d) For the certification of any document, the city clerk shall collect a fee of $1.00 for each document certified, plus the maximum fee(s) as provided pursuant to Florida Statutes for duplication of the public record.
(Ord. No. 13770, § 2, 6-28-18)

Secs. 2-143—2-159. Reserved.

DIVISION 5. OFFICE OF THE INSPECTOR GENERAL

Sec. 2-160. Office of the inspector general.

(a) *Created and established.* There is hereby created and established the office of the inspector general. The inspector general shall head the office. The organization and administration of the office of the inspector general shall be sufficiently independent to assure that no interference or influence external to the office adversely affects the independence and objectivity of the inspector general.

(b) *Minimum qualifications, appointment and term of office.*

(1) Minimum qualifications. The inspector general shall be a person who:

a. Has at least ten years of experience in any one, or combination of, the following fields:

1. As a federal, state or local law enforcement officer;

2. As a federal or state court judge;

3. As a federal, state or local government attorney;

4. Progressive supervisory experience in an investigative public agency similar to an inspector general's office;

b. Has managed and completed complex investigations involving allegations of fraud, theft, deception and conspiracy;

c. Has demonstrated the ability to work with local, state and federal law enforcement agencies and the judiciary;

d. Has broad experience in auditing, accounting, and management;

e. Has a four-year degree from an accredited institution of higher learning; and

(2) The applicant shall pass a level II background screening and financial background check.

(3) Appointment. The inspector general shall be appointed by the ad hoc inspector general selection committee ("selection committee"), except that before any appointment shall become effective, the appointment must be approved by a majority of the city commission at the next regularly scheduled city commission meeting after the appointment. In the event that the appointment is disapproved by the city commission, the appointment shall become null and void, and the selection committee shall make a new appointment, which shall likewise be submitted for approval by the city commission. The selection committee shall be composed of five members selected as follows:

a. The State Attorney of the Eleventh Judicial Circuit for Miami-Dade County or a designee of the office;

b. The Public Defender of the Eleventh Judicial Circuit for Miami-Dade County or a designee of the office;

c. The chairperson of the Miami-Dade Commission on Ethics and Public Trust or a designee of the office;

d. The president of the Miami-Dade Police Chief's Association or a designee of the office; and

e. The special agent in charge of the Miami Field Office of the Florida Department of Law Enforcement or a designee of the office.

The members of the selection committee shall elect a chairperson who shall serve as chairperson until the inspector general is appointed. The selection committee shall select the inspector general from a list of qualified candidates submitted by the city human resources department.

(4) Term. The inspector general shall be appointed for a term of four years. In case of a vacancy in the position of inspector general, the chairperson of the city commission may appoint the deputy inspector general, assistant inspector general, or other inspector general's office management personnel as interim inspector general until such time as a successor inspector general is appointed in the same manner as described in subsection (b)(2) above. The city commission may, by majority vote of members present, disapprove of the interim appointment made by the chairperson at the next regularly scheduled city commission meeting after the appointment. In the event such appointment shall be disapproved by the city commission, the appointment shall become null and void and, prior to the next regularly scheduled commission meeting, the chairperson shall make a new appointment which shall likewise be subject to disapproval as provided in this subsection (3). Any successor appointment made by the selection committee as provided in subsection (b)(2) shall be for a full four-year term.

Upon expiration of the term, the city commission may, by majority vote of members present, reappoint the inspector general to another term. In lieu of reappointment, the city commission may reconvene the selection committee to appoint a new inspector general in the same manner as described in subsection (b)(2). The incumbent inspector general may submit his or her name as a candidate to be considered for selection and appointment.

(5) Staffing of selection committee. The city human resources department shall provide staffing to the selection committee and, as necessary, will advertise the acceptance of resumes for the position of inspector general and shall provide the selection committee with a list of qualified candidates. The city human resources department shall also be responsible for ensuring that background checks are conducted on the slate of candidates selected for interview by the selection committee. The city human resources department may refer the background checks to another agency or department. The results of the background checks shall be provided to the selection committee prior to the interview of candidates.

(c) *Contract.* The director of the human resources department shall, in consultation with the city attorney, negotiate a contract of employment with the inspector general, except that before any contract shall become effective, the contract must be approved by a majority of commissioners present at a regularly scheduled commission meeting.

(d) *Functions, authority and powers.*

(1) The office shall have the authority to make investigations of city affairs and the power to review past, present and proposed city programs, accounts, records, contracts and transactions.

(2) The office shall have the power to require reports from the mayor, city commissioners, manager, city agencies and instrumentalities, city officers and employees and any independent agencies with ties to the city and its officers and employees regarding any matter within the jurisdiction of the inspector general.

(3) The office shall have the power to subpoena witnesses, administer oaths and require the production of records. In the case of a refusal to obey a subpoena

issued to any person, the inspector general may make application to any circuit court of this state which shall have jurisdiction to order the witness to appear before the inspector general and to produce evidence if so ordered, or to give testimony touching on the matter in question. Prior to issuing a subpoena, the inspector general shall notify the State Attorney and the U.S. Attorney for the Southern District of Florida. The inspector general shall not interfere with any ongoing criminal investigation of the State Attorney or the U.S. Attorney for the Southern District of Florida where the State Attorney or the U.S. Attorney for the Southern District of Florida has explicitly notified the inspector general in writing that the inspector general's investigation is interfering with an ongoing criminal investigation;

(4) The office shall have the power to report and/or recommend to the board of city commissioners whether a particular project, program, contract or transaction is or was necessary and, if deemed necessary, whether the method used for implementing the project or program is or was efficient both financially and operationally. Any review of a proposed project or program shall be performed in such a manner as to assist the city commission in determining whether the project or program is the most feasible solution to a particular need or problem. Monitoring of an existing project or program may include reporting whether the project is on time, within budget and in conformity with plans, specifications and applicable law;

(5) The office shall have the power to analyze the need for, and the reasonableness of, proposed change orders. The inspector general shall also be authorized to conduct any reviews audits, inspections, investigations or analyses relating to departments, offices, boards, activities, programs and agencies of the city or with ties to the city.

(6) The inspector general may, on a random basis, perform audits, inspections and reviews of all city contracts. The cost of random audits, inspections and reviews shall, except as provided in subsections a.—n. in this subsection (6) be incorporated into the contract price of all contracts and shall be one-quarter of one percent of the contract price (hereinafter "IG contract fee"). The IG contract fee shall not apply to the following contracts:

a. IPSIG contracts;

b. Contracts for legal services;

c. Contracts for financial advisory services;

d. Auditing contracts;

e. Facility rentals and lease agreements;

f. Concessions and other rental agreements;

g. Insurance contracts;

h. Revenue-generating contracts;

i. Contracts where an IPSIG is assigned at the time the contract is approved by the commission;

j. Professional service agreements under $1,000.00;

k. Management agreements;

l. Small purchase orders;

m. Federal, state and local government-funded grants; and

n. Interlocal agreements.

Notwithstanding the foregoing, the commission may by resolution specifically authorize the inclusion of the IG contract fee in any contract. Nothing contained in this subsection (c)(6) shall in any way limit the powers of the inspector general provided for in this section to perform audits, inspections, reviews and investigations on all city contracts including, but not limited to, those contracts specifically exempted from the IG contract fee.

(7) Where the inspector general detects corruption or fraud, he or she must notify

the appropriate law enforcement agencies. Subsequent to notifying the appropriate law enforcement agency, the inspector general must assist the law enforcement agency in concluding the investigation. When the inspector general detects a violation of the Miami-Dade Code of Ethics, he or she may file a complaint with the Miami-Dade Commission on Ethics and Public Trust.

(8) The inspector general shall have the power to audit, investigate, monitor, oversee, inspect and review the operations, activities and performance and procurement process including, but not limited to, project design, establishment of bid specifications, bid submittals, activities of the contractor, its officers, agents and employees, lobbyists, city staff and elected officials in order to ensure compliance with contract specifications and detect corruption and fraud.

(9) The inspector general shall have the power to review and investigate any sworn, non-anonymous complaints, on a form acceptable to the inspector general, regarding city programs, agencies, contracts or transactions, officials or employees. Such sworn complaint must be based upon personal knowledge or information other than hearsay and signed under oath or affirmation by any person.

(10) The inspector general may exercise any of the powers contained in section 2-160 upon his or her own initiative.

(11) The inspector general shall be notified in writing prior to any meeting of a selection or negotiation committee where any matter relating to the procurement of goods or services by the city is to be discussed. The notice required by this subsection (11) shall be given to the inspector general as soon as possible after a meeting has been scheduled, but in no event later than 24 hours prior to the scheduled meeting. The inspector general may, at his or her discretion, attend all duly noticed city meetings relating to the procurement of goods or services as provided herein, and, in addition to the exercise of all powers conferred by section 2-160, may pose questions and raise concerns consistent with the functions, authority and powers of the inspector general. An audio recorder shall be utilized to record all selection and negotiation committee meetings.

(12) The inspector general shall have the authority to retain and coordinate the services of Independent Private Sector Inspectors General (IPSIG) or other professional services, as required, when in the inspector general's discretion he or she concludes that such services are needed to perform the duties and functions enumerated in subsection (d) herein.

(13) Examine city audit functions and accounting systems, provide budget and legislative analysis, conduct financial, operational, compliance, single act and performance audits of city government, officials, and independent agencies, with reports submitted to the city commission as deemed necessary by the inspector general, from time to time, and copied to the administration.

(14) Review and approve outside employment requests for the mayor, commissioners, and appointed officers of the city. The office shall also review and provide comments on outside employment requests of employees prior to final approval by the city manager.

(15) Perform spot reviews of financial disclosure forms and gift disclosure forms.

(16) Upon receipt of a sworn written statement challenging the qualifications of a candidate for election, the office shall have ten days to conduct an investigation as to the allegations in the statement. If the inspector general determines that the candidate does not meet the qualifications of the office for which he or she has qualified, the inspector general is authorized and directed to file and

prosecute an appropriate action in circuit court with an attorney other than the city attorney.

(e) *Physical facilities and staff.*

(1) The city shall provide the office of the inspector general with appropriately located office space and sufficient physical facilities together with necessary office supplies, equipment and furnishings to enable the office to perform its functions.

(2) The inspector general shall have, subject to budgetary allocation by the city commission, the power to appoint, employ, and remove such assistants, employees and personnel and establish personnel procedures as deemed necessary for the efficient and effective administration of the activities of the office.

(f) *Audit reports.* The inspector general shall file written reports reporting the results of individual audits undertaken in conformity with this section with copies to the city commissioners, the mayor, the city manager, and the city attorney. Said reports shall, at a minimum, state:

(1) The subject of the audit;

(2) The findings of the audit; and

(3) The recommendations for action as a result of the audit, if any.

(g) *Procedure for finalization of reports and recommendations which make findings as to the person or entity being reviewed or inspected.* Notwithstanding any other provision of this Code, whenever the inspector general concludes a report or recommendation which contains findings as to the person or entity being reported on or who is the subject of the recommendation, the inspector general shall provide the affected person or entity a copy of the report or recommendation and such person or entity shall have 15 working days to submit a written explanation or rebuttal of the findings before the report or recommendation is finalized, and such timely submitted written explanation or rebuttal shall be attached to the finalized report or recommendation. The requirements of this subsection (f) shall not apply when the inspector general, in conjunction with the state attorney, determines that supplying the affected person or entity with such report will jeopardize a pending criminal investigation.

(h) *Reporting.* The inspector general shall annually prepare and submit to the mayor and city commission a written report concerning the work and activities of the office including, but not limited to, statistical information regarding the disposition of closed investigations, audits and other reviews. The audit report shall be filed within 30 days from the end of the third quarter of the fiscal year.

(i) *Removal.* The inspector general may be removed from office upon the affirmative vote of four-fifths of the city commission.
(Ord. No. 14320, § 2, 10-15-24)

Secs. 2-161—2-180. Reserved.

ARTICLE IV. DEPARTMENTS*

DIVISION 1. GENERALLY

Secs. 2-181—2-200. Reserved.

DIVISION 2. PLANNING, BUILDING AND ZONING DEPARTMENT

Sec. 2-201. Created.

There is hereby created a department to be known as the planning, building and zoning department.
(Code 1967, § 2-19; Ord. No. 8742, § 1, 1-11-78; Ord. No. 10089, § 2, 3-27-86; Code 1980, § 2-69)

Sec. 2-202. Director—Appointment.

The city manager is hereby authorized to appoint the director of the planning, building and zoning department.
(Code 1967, § 2-20; Ord. No. 10089, § 2, 3-27-86; Code 1980, § 2-70)

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*__Charter references__—Authority of city commission to create new departments or change duties or discontinue existing departments, §§ 19, 19-A; department of law, § 21.

__City Code cross references__—Downtown development authority, § 14-26 et seq.; police department, ch. 42.

Sec. 2-203. Same—Supervision and control of department.

Subject to the supervision and control of the city manager in all matters, the director shall administer the affairs of the planning, building and zoning department.
(Code 1967, § 2-21; Ord. No. 10089, § 2, 3-27-86; Code 1980, § 2-71)

Sec. 2-204. Functions of department.

The functions of the planning, building and zoning department shall include the management and supervision of all functions and personnel of the planning, building, electrical, plumbing, and zoning functions, and boiler and elevator inspection.
(Code 1967, § 2-22; Ord. No. 10089, § 2, 3-27-86; Code 1980, § 2-72)

Sec. 2-205. Divisions of department; directors.

(a) The planning, building and zoning department shall have two divisions, the division of planning and zoning and the building division. Each division shall have a director.

(b) Under the supervision of the city manager, the director of the planning and zoning division shall be responsible for, among other things:

(1) Preparation of neighborhood plans in order to complement the metropolitan master planning responsibilities.

(2) Conducting studies of the city's population, land use, facilities, resources, needs and other factors which influence the city's development and redevelopment, and, on the basis of such studies, prepare official and other maps and reports.

(3) Preparation for the review and public hearing by the department of administration for planning advisory board and zoning board, and for adoption by the city commission of zoning, subdivision and related regulations for the city.

(4) Conducting special surveys and studies and reporting thereon, at the direction of the mayor, city commission and the city manager.

(5) Promoting public understanding of an interest in the master plan and orderly community development.

(6) Sitting on and cooperating with the plat committee of the city and making recommendations on all proposed plats and local area developments.

(7) Coordinating planning activities with the county's planning department so as to complement the efforts of that agency as the agencies may overlap or affect each other with regard to urban renewal, redevelopment, public housing and related matters.

(8) Formulating city guides and standards establishing minimum guidelines and standards for the administrative review of off-street parking lots, garages and related landscaping; landscaping generally; urban plazas, throughout the city; Latin Quarter district, all in conjunction with the zoning ordinance; and bay/riverwalks in conjunction with the zoning ordinance and section 3(mmm) of the Charter. The city guides and standards, upon approval by the city commission, shall be administered by the planning, building and zoning department and recorded and kept on file for public inspection in the city clerk's office.

(c) The functions of the planning and zoning division shall include, but not to be limited to, the following:

(1) Reviewing and making recommendations regarding the city capital improvements program, but shall not assume the responsibility of the financial planning to fund the program.

(2) Preparation and making of staff findings and recommendations for the planning advisory board and zoning board for those requests that are scheduled for public hearing.

(3) Providing staff support for the planning advisory board and zoning board.

(4) Preparation of the comprehensive plan for the welfare, recreational, economic and physical development of the city pursuant to F.S. ch. 163 and under the direction of the city manager and with the advice of the planning advisory board and zoning board.

(Code 1967, §§ 2-61—2-69; Ord. No. 9612, § 1, 4-28-83; Ord. No. 10430, § 1, 4-28-88; Code 1980, §§ 2-135—2-139; Ord. No. 11564, § 4, 10-28-97)

Sec. 2-206. Fees for extraordinary services in connection with reproduction of records, plans and maps, including those on microfilm.

A fee is established for furnishing services in connection with the reproduction of records, plans and maps, including those on microfilm, of the planning, building and zoning department. The fee shall be the maximum permitted in state law, if applicable, and is on file in the offices of the department.

(Code 1967, § 2-24; Ord. No. 8866, § 1, 10-24-78; Ord. No. 9615, § 1, 5-12-83; Ord. No. 10089, § 4, 3-27-86; Ord. No. 10452, § 1, 7-14-88; Code 1980, § 2-74)

State law reference—Cost of duplicating public records, F.S. § 119.07(1).

Sec. 2-207. Zoning certificate of use required; annual reinspection of buildings and premises; fees for inspections and issuance of certificates.

(a) *Inspection and service fees for certificate of use.* All persons applying for a certificate of use shall pay a $50.00 application fee, which shall be credited towards any final fees upon completion of the certificate of use application process, as well as the following inspection and service fees:

(1) *Residential, other than single-family residence or two-family housing, as defined by Miami 21.*

a. Three to 12 units: $313.00

b. Each additional unit: $25.00

(2) *Lodging as defined by Miami 21.*

a. First 12 units or less: $313.00

b. Each additional unit: $25.00

(3) *Office as defined by Miami 21.*

a. First 2,000 square feet or less: $313.00

b. Each additional 1,000 square foot or part thereof in excess 2,000 square feet: $63.00

(4) *Commercial as defined by Miami 21.*

a. First 2,000 square feet or less: $313.00

b. Each additional 1,000 square foot or part thereof in excess of 2,000 square feet: $63.00

(5) *Civic as defined by Miami 21.*

a. First 1,000 square feet or less: $63.00

b. Each additional 1,000 square foot or part thereof in excess 2,000 square feet: $31.00

(6) *Civil support as defined by Miami 21.*

a. First 2,000 square feet or less: $313.00

b. Each additional 1,000 square foot or part thereof in excess 2,000 square feet: $63.00

(7) *Educational as defined by Miami 21.*

a. First 1,000 square feet or less: $125.00

b. Each additional 1,000 square foot or part thereof in excess 2,000 square feet: $31.00

(8) *Industrial as defined by Miami 21.*

a. First 2,000 square feet or less: $313.00

b. Each additional 1,000 square foot or part thereof in excess 2,000 square feet: $63.00

(9) *Miscellaneous.* All uses not previously covered by this section shall be assessed a fee as provided for in "Commercial," subsection (a)(4).

(10) *Sharing by a sublessee office space approved under an existing certificate of use (excluding sharing a coworking or virtual office):* $125.00

(11) *Amendment to an existing CU not requiring inspections:* $125.00

(12) If a certificate of use is revoked, the building, unit or space in which the revocation occurs is subject to a fee of $500.00 prior to approval of a new certificate of use.

(13) Certificates of use shall include the following information: the specific address, business name, corporate name, and the type(s) of business for which it was issued.

In the event of a new certificate of use, which requires city field inspections, the full fees outlined in City Code, section 2-207 shall apply. These fees are applicable in the following circumstances:

a. Changes in the business name, ownership, use, address, folio number, or Federal Employer Identification Number (FEIN).

b. Expansion or reduction of the square footage occupied by the business.

c. Inclusion of additional uses or the exclusion of previously approved uses, regardless of any approved use that still remains.

d. Any changes to the structure that have been approved by a final building inspection.

(14) Issuance of a temporary certificate of use shall be subject to a fee of $250.00. Renewal of a temporary certificate of use shall be subject to a fee of $50.00 per renewal.

(b) *Certificates of use for new buildings and premises and for change of use.*

(1) No new buildings or premises or part thereof and no existing building or premises when there has been a change of use in said building or premises, except one- and two-family residences, shall be occupied until a zoning certificate of use shall have been issued by the zoning office. Certificates of use shall not be issued until the premises have been inspected and found to comply with all code requirements of the zoning office, fire-rescue department and such other agencies as may have jurisdiction. All applications for certificates of use shall expire 90 working days from the date of application if approval is not received for issuance of a certificate, unless the space is under construction with a valid building permit and approvals cannot be made until work is completed.

a. Buildings designed or proposed to be used as office buildings shall require one zoning certificate of use for each separate office tenant and one for each commercial use activity contained therein, provided that for coworking or virtual offices, only one certificate of use is required. Each separate office tenant in existing office buildings not having an individual certificate of use on the effective date of this section must obtain one prior to the renewal of its city local business tax receipt.

b. Apartment buildings, hotels, and other multiple-residential occupancies containing three or more units and occupied only by residential tenants shall require one zoning certificate of use per building.

c. Apartment buildings, hotels, and other residential occupancies containing commercial tenants shall require additional zoning certificates of use for each commercial use activity contained therein.

d. Industrial buildings containing one tenant shall require a single zoning certificate of use.

e. Industrial and commercial buildings containing more than one tenant shall require a zoning certificate of use for each tenant.

f. Buildings with common areas including, but not limited to, hallways, elevators, and lobbies, shall have a separate shell certificate of use.

(2) Upon the issuance of a zoning certificate of use for a building or premises, an annual inspection schedule will be established and annual inspections will be conducted thereafter.

(3) Annual inspections will be conducted to determine that each building or premises complies with the regulations established in the city zoning ordinance, building code, fire code, health regulations, and such other regulations that may apply to the particular building or premises.

(c) *Annual reinspection of buildings and premises.*

(1) Annual reinspection certificates will be issued, and each existing use or premises shall be inspected annually to determine that it complies with the provisions of applicable ordinances and regulations.

(2) The owner will be notified of any deficiencies noted, and appropriate reinspections may be made to determine that the deficiencies have been corrected.

(3) With the exception of life-safety facilities (which may be from time to time required to be upgraded by the provisions of the Florida Building Code or the Florida Fire Prevention Code), only those regulations which were in effect at the time a particular occupancy or use was established will be applicable.

(4) The invoice for the issuance of the annual reinspection certificate will be billed during the fiscal year and said fees are herein fixed as follows:

a. *Residential, other than single-family residence and two-family housing, as defined by Miami 21:*

1. Three to 12 units: $63.00
2. 13 to 50 units: $88.00
3. Each additional unit: $3.00

b. *Lodging as defined by Miami 21:*

1. First 12 units or less: $63.00
2. 13 to 50 units: $88.00
3. Each additional unit: $3.00

c. *Office as defined by Miami 21:*

1. Less than 500 square feet: $50.00
2. 500 square feet or more but less than 2,500 square feet: $63.00
3. 2,500 square feet or more but less than 5,000 square feet: $75.00
4. 5,000 square feet or more but less than 15,000 square feet: $88.00
5. 15,000 square feet or more but less than 25,000 square feet: $100.00
6. 25,000 square feet or more but less than 50,000 square feet: $113.00
7. 50,000 square feet or more: $125.00

d. *Commercial as defined by Miami 21:*

1. Less than 500 square feet: $50.00
2. 500 square feet or more but less than 2,500 square feet: $63.00
3. 2,500 square feet or more but less than 5,000 square feet: $75.00
4. 5,000 square feet or more but less than 15,000 square feet: $88.00
5. 15,000 square feet or more but less than 25,000 square feet: $100.00
6. 25,000 square feet or more but less than 50,000 square feet: $113.00
7. 50,000 square feet or more: $125.00

e. *Civic as defined by Miami 21:* $94.00

f. *Civil support, other than hospitals, as defined by Miami 21:*

1. Less than 20,000 square feet: $63.00
2. 20,000 square feet or more but less than 50,000 square feet: $75.00
3. 50,000 square feet or more: $125.00

g. *Hospitals:*

1. 100 beds or less: $156.00
2. Each bed over 100: $2.10

h. *Educational as defined by Miami 21:*

1. Less than 10,000 square feet: $94.00
2. 10,000 square feet or more but less than 50,000 square feet: $125.00
3. 50,000 square feet or more: $156.00

i. *Industrial as defined by Miami 21:*

1. Less than 500 square feet: $50.00
2. 500 square feet or more but less than 2,500 square feet: $63.00
3. 2,500 square feet or more but less than 5,000 square feet: $75.00
4. 5,000 square feet or more but less than 15,000 square feet: $88.00
5. 15,000 square feet or more but less than 25,000 square feet: $100.00
6. 25,000 square feet or more but less than 50,000 square feet: $113.00
7. 50,000 square feet or more: $125.00

j. *Miscellaneous.* All uses not previously covered by this section shall be assessed a fee as provided for under "Commercial," subsection (c)(4)d.

(5) When a reinspection is required due to continued life safety violations after the second inspection by the department of fire-rescue, there shall be charged a fee of $63.00.

(6) Any renewal fee specified in subsection (c)(4) above, which is not paid by the due date specified, will be considered delinquent and assessed a penalty of ten percent of the current renewal fee plus an additional five-percent penalty for each month of delinquency thereafter, until paid. However, the total delinquency penalty shall not exceed 25 percent of the certificate of use fee for any annual period.

(d) *Fees for accessory use certificates.*

(1) All persons desiring to have a home office as defined in Miami 21 shall apply to the zoning office for an accessory use certificate, which shall be granted upon payment of an annual fee of $94.00 to the city and when issued shall be valid through the following September 30. In instances where a person 65 years of age or over is engaged in the conduct of home occupation, there shall be no required payment of an accessory fee in conjunction with the issuance of an accessory use certificate or the subsequent renewal of such certificate. All renewals of accessory use certificates shall be made on the subsequent renewal of such certificate or before October 1 of each calendar year.

(2) Those owners of private pleasure craft and housebarges on the Miami River shall apply to the zoning office for a housebarge/private pleasure craft accessory use certificate, which subject to inspection and compliance with applicable regulations, shall be granted upon the payment of an annual fee of $313.00; all required renewals shall be made on or before October 1 of each year hereafter.

(e) *Zoning inspection.*

(1) The city will provide, upon request of the owner or owner's agent, an on-site inspection of properties within the city by the code compliance department to ascertain whether zoning violations openly exist on the real property.

(2) The following fee shall be paid prior to each such inspection for each folio number: zoning inspection fee, $100.00.

(3) A report on the results of each such inspection will be issued to the owner or owner's agent and shall only constitute prima facie evidence of compliance/noncompliance with the city's zoning ordinance and shall not be conclusive proof of compliance/noncompliance with said zoning ordinance.

(4) Should a zoning violation be observed by a city zoning inspector during the course of an on-site inspection, the property owner will be required to appear before the code enforcement board of the city in regard to such violation no sooner than 30 days after said inspection, except as provided in subsection 2-814(c).

(f) There is hereby established a schedule of fees for reviewing plans on new construction and inspecting new construction performed by the department of fire-rescue, except for single-family and duplex residents:

(1) *Minimum fee:* $63.00

(2) *New building or additions:*

Each 100 square feet or fractional part of floor area: $1.80

(3) *New construction other than as specified herein (water towers, pylons, bulk storage-tank foundations, seawalls, bulkheads, unusual limited-use buildings, freestanding rigid canopies, marquees and similar construction):*

Each $1,000.00 of estimated cost or fractional part: $1.80

(4) *Alterations and repairs to buildings and other structures:*

Up to $1,000.00 of estimated cost or fractional part: $6.00

Each additional $1,000.00 of estimated cost or fractional part: $1.80

(5) *Expedited plan review service:*

Reviews conducted by external entity: Actual cost plus 20 percent.

Reviews conducted internally: Per every four hours of review or fraction thereof: $313.00

(Code 1967, § 2-24.1; Ord. No. 8686, § 1, 9-8-77; Ord. No. 8985, § 1, 9-27-79; Ord. No. 9161, § 1, 9-15-80; Ord. No. 9345, § 1, 11-12-81; Ord. No. 10089, § 5, 3-27-86; Ord. No. 10158, § 1, 10-7-86; Ord. No. 10225, § 1, 2-26-87; Ord. No. 10397, § 1, 3-10-88; Ord. No. 10453, § 1, 7-14-88; Ord. No. 10596, § 1, 6-7-89; Ord. No. 10607, § 1, 7-13-89; Ord. No. 10737, § 1, 5-24-90; Ord. No. 10766, § 1, 7-26-90; Ord. No. 10890, § 1, 6-20-91; Ord. No. 10931, § 1, 10-24-91; Ord. No. 11077, § 2, 7-22-93; Ord. No. 11085, § 1, 9-7-93; Code 1980, § 2-75; Ord. No. 11353, § 2, 4-25-96; Ord. No. 11721, § 2, 11-17-98; Ord. No. 12803, § 2, 5-11-06; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13108, § 2, 10-8-09; Ord. No. 13347, § 2, 10-25-12; Ord. No. 13711, § 2, 11-16-17; Ord. No. 14216, § 2, 10-12-23; Ord. No. 14280, § 2, 5-9-24; Ord. No. 14431, § 2, 1-8-26)

City Code cross reference—Schedule of zoning and planning fees, § 62-22.

Sec. 2-208. New permits prohibited, non-homestead properties.

Permits may not be issued for a non-homestead property with any outstanding building department violations except that permits required to cure life safety issues, permits which are required to bring outstanding violations into compliance, permits for units within buildings to which such violations or monies owed are not attributable to the permit applicant or permits for any properties owned by a governmental entity are exempted from this prohibition. If a permit required to cure an existing violation has been applied for, with a complete application that is being reviewed by the appropriate department, additional permits

may be issued for the property that is the subject of violations or monies owed. Additional permits issued are conditioned to prohibit the issuance of a certificate of occupancy or completion (including temporary or partial certificates of occupancy or completion) until the permit to cure the original outstanding building violation has been finalized and closed and all monies owed, inclusive of costs, to the city are paid. Any exemption listed herein may not be utilized for multi-unit structures wherein the violation has created a life safety issue for either the adjacent units or the structure in its entirety.

(Ord. No. 13717, § 2, 12-14-17; Ord. No. 14078, § 2, 7-28-22; Ord. No. 14283, § 2, 5-23-24)

Editor's note—Prior to the reenactment of section 2-208 by Ord. No. 13717, § 2, adopted December 14, 2017, Ord. No. 13311, § 2, adopted February 23, 2012, repealed the former section 2-208 in its entirety, which pertained to the fee for inspections and examinations of plans for compliance with the provisions of the City of Miami zoning ordinance, and derived from the Code of 1967, § 2-24.2; Ord. No. 8687, § 1, adopted September 8, 1977; Ord. No. 9189, § 1, adopted October 30, 1980; Ord. No. 9345, § 1, adopted November 12, 1981; Ord. No. 10089, § 6, adopted March 27, 1986; Ord. No. 10158, § 1, adopted October 7, 1986; Ord. No. 10397, § 1, adopted March 10, 1988; Ord. No. 10453, § 1, adopted July 14, 1988; Ord. No. 11007, § 1, adopted October 8, 1992; Ord. No. 11077, § 3, adopted July 22, 1993; the Code of 1980, § 2-76; Ord. No. 11353, § 3, adopted April 25, 1996, and Ord. No. 13108, § 2, adopted October 8, 2009.

Sec. 2-209. Bond required for the moving of buildings.

(a) *Authorization.* The director of the planning, building and zoning department is authorized to require that a bond be posted in connection with the moving of buildings to assure that any property damage caused during transportation is repaired.

(b) *Amount of bond.* Amount of required bond will be determined as follows: $0.50 per square foot of building to be moved. Bond may be from a surety company or a cashier's check, payable to the "City of Miami," or cash.

(c) *Release of bond.*

(1) When the moving of any building for which a permit has been granted is completed and all damage, if any, to public streets or other public property has been repaired to the satisfaction of the director of the resilience and public works department and all costs of repairing the damages have been paid, any portion of the bond then remaining shall be returned. Should the cost, however, of repairing damages and/or performing other work as may be required hereunder exceed the total amount of the bond, the person or firm to whom said permit was granted shall be held liable for the amount of damages and/or other costs which are in excess of the bond proceeds.

(2) Prior to release of bond or return of unused monies, the fee set forth in the then-existing permit fee schedule for reinspections shall be paid or deducted from said bond proceeds for each required inspection or reinspection.

(d) *Retention of unclaimed bond.* All right, title and interest in bond proceeds which have been or which may be deposited with the city by reason of building moving activity, unless claimed by the person or firm submitting the same within 90 days from the date that notice has been sent by the city via certified mail to the last known address of the said person or firm, shall be vested in the city, and shall be promptly paid into the city treasury.

(Ord. No. 9466, § 1, 7-22-82; Ord. No. 10089, § 7, 3-27-86; Code 1980, § 2-89; Ord. No. 13792, § 1, 10-11-18)

Sec. 2-210. Phased design and construction (east track).

(a) *Procedures and guidelines.* Procedures and guidelines for requests by owner/developer or owner shall be in accordance with those maintained as required by the department of fire-rescue, and the planning, building and zoning department, and attached hereto, but not reproduced at length herein and on file in the offices of the respective departments.

(b) *Application and agreements.* Application for approval and required agreement of design and construction procedure shall be as outlined in the aforementioned procedures and guidelines.

(c) *Fees.* Fees shall be as paid in accordance with fee schedule as provided in Ordinance No. 6145 as amended, section 5d.(24) [adopting the South Florida Building Code, on file in the office of the city clerk].
(Ord. No. 9913, § 1, 10-10-84; Code 1980, § 2-90)

Sec. 2-211. Denial or revocation of certificate of use.

(a) The zoning administrator may deny the issuance or renewal of a certificate of use when there are any outstanding city liens or invoices due and owing.

(b) Denial or revocation of certificate of use. The zoning administrator may deny the issuance or renewal, or revoke a certificate of use only for any of the following reasons:

(1) The applicant provided a material false statement in the application or in the supplemental or additional statements of fact or studies required by the city.

(2) There is a failure to comply with the terms or conditions of the certificate of use.

(3) There is a violation of the provisions of this division.

(4) The certificate of use holder subsequent to being issued a certificate of use, has been convicted of, or has pled guilty to, a violation of a law of Florida, or ordinance of Miami-Dade County or the city, which violation resulted from actions relating to the terms or conditions of the certificate of use.

(5) The certificate of use holder is engaging or has engaged in an activity from the proposed premises that is not in compliance with a zoning ordinance or other city ordinance.

(6) The business tax receipt ("BTR") for the certificate of use holder has been denied, suspended or revoked.

(7) In the event that the unsafe structures panel determines the existence of an unsafe structure violation pursuant to chapter 10 of the City Code, any occupied structure which requires a certificate of use for itself and/or tenants shall be required to provide a letter from a Florida licensed engineer or architect stating the structure is safe for occupancy in order to obtain and/or maintain a certificate of use. Without such letter, a certificate of use shall be revoked or denied. This letter must be updated a minimum of every 12 months until the violation has been complied. If there is an order to demolish the structure by the unsafe structure panel or it is determined by the building official that there is actual or immediate danger of the failure or collapse of a structure, the building official or designee shall refer the violation to the zoning department and the zoning administrator shall then initiate the revocation of any active certificates of use and deny any subsequent applications for a certificate of use until such time as the violation has been complied.

(c) The zoning administrator shall send written notice of the revocation, reason for the revocation and the effective date of the revocation to the holder of the certificate of use at the address of record on file with the city.

(d) Appeal. If a certificate of use is denied or revoked, the applicant or an aggrieved party who resides, occupies, or owns property within 500 feet of the property may file an appeal with the office of hearing boards within 15 days of the decision to deny or revoke the certificate of use. The appeal shall be heard at the next available regular meeting of the planning, zoning and appeals board. The decision of the planning, zoning and appeals board regarding a certificate of use may be appealed to the city commission by an applicant, an aggrieved party who resides, occupies or owns property within 500 feet of the affected property, or the planning and zoning department.
(Ord. No. 13264, § 2, 5-12-11; Ord. No. 13587, § 2, 1-28-16; Ord. No. 13612, § 2, 6-23-16; Ord. No. 13936, § 2, 10-22-20; Ord. No. 14283, § 2, 5-23-24; Ord. No. 14383, § 2, 7-24-25)

Sec. 2-212. Reserved.

Editor's note—Pursuant to Ord. No. 13280, adopted July 28, 2011; modified by Ord. No. 13539, adopted July 23, 2015; modified by Ord. No. 13660, adopted February 23, 2017; and modified by Ord. No. 13684, adopted May 25, 2017; the program previously known as the "Nonconforming Use Pilot Program" codified in section 2-212 was to automatically terminate on August 1, 2017. Accordingly, the language for this program was deleted from the Code in September 2017.

Sec. 2-213. Reserved.

Editor's note—Pursuant to Ord. No. 13468, adopted July 24, 2014, the program previously known as the "Pilot Program for Distressed Development Sites" codified in section 2-213 was to automatically terminate on August 1, 2015. Accordingly, the language for this program was deleted from the Code in September 2017.

Sec. 2-214. Ancillary dwelling unit (ADU) compliance.

(a) *Registration process for rented ADUs.*

(1) *Registration requirements.* In order to rent an ADU, the property owner or their authorized agent shall obtain:

a. An approved building permit, including a notarized "ADU owner disclosure statement"; and

b. An approved "certificate of occupancy (CO)"; and

c. An approved "ADU registration certificate".

(2) *Initial registration process.*

a. At the time of building permit, the property owner or their authorized agent shall submit a notarized "ADU owner disclosure statement" to the office of zoning. The statement describes the terms of the ADU program, owner responsibilities, and rental provisions.

1. Structures that were legally permitted prior to the establishment of this section and are intended to be rented ADUs shall provide the disclosure statement at registration.

2. If a change in ownership occurs, the new owner or authorized agent will be required to submit an "ADU owner disclosure statement".

b. Once a valid "certificate of occupancy (CO)" has been obtained, the property owner or their authorized agent shall, prior to renting, register the ADU with the office of zoning and obtain an "ADU registration certificate".

c. The property owner or their authorized agent shall provide proof of homestead exemption for the property.

d. The registration process shall include a virtual or physical inspection of the ADU for compliance with any applicable codes and regulations.

(3) *Annual renewal process.*

a. The "ADU registration certificate" shall be renewed on an annual basis.

b. As part of the renewal process, the property owner or their authorized agent shall provide proof of current homestead exemption for the property.

c. The renewal process shall include a virtual or physical inspection of the ADU for compliance with any applicable codes and regulations.

d. The office of zoning shall have the authority to revoke any "ADU registration certificate" if there is evidence of non-compliance with the provisions of this section or the Miami 21 Zoning Code or failure to pay the associated fee.

(b) *Homestead exemption requirement.*

(1) Homestead means the property is designated as the primary residence of the owner and qualifies for a homestead exemption under Florida law.

(2) If homestead status lapses or changes, the property owner shall notify the office

of zoning within 30 days. Failure to maintain or disclose changes in homestead status may result in denial or revocation of the ADU registration certificate and/or shall result in a violation of the Miami 21 Zoning Ordinance and penalties applied to the property pursuant to article X of chapter 2 of the City Code.

(c) *Predominately permanent housing.* In accordance with the provision stated in the Miami 21 Zoning Code, ADUs shall only be used as predominately permanent housing.

(d) *Time periods.*

(1) An "ADU registration certificate" remains valid for the fiscal year in which it is issued unless otherwise stated in the provisions of this section.

(2) An application for an "ADU registration certificate" shall expire 90 business days after submission, if not approved. An application may continue beyond 90 days if a valid building permit with an active process number is submitted to address any deficiencies found at the time of inspection. In such cases, the period may extend until work is completed. Applications without a permit shall be deemed abandoned and require reapplication with all necessary fees.

(3) "ADU registration certificate" renewals are issued at the start of the fiscal year.

(e) *Inspections.*

(1) *General requirements.*

a. All initial ADU registration applications and annual renewals shall include an inspection to ensure ongoing compliance with applicable regulations.

b. The purpose of the inspection is to verify compliance with the ADU standards as set forth in the Miami 21 Zoning Ordinance and other applicable codes. The inspection shall include a virtual assessment of the interior and exterior of the ADU, or alternatively, an in-person inspection at the request of the city.

(2) *Annual renewal inspection requirements.*

a. Annual inspections shall be completed within eight months of the most a recently renewed ADU registration certificate.

b. It shall be the responsibility of the property owner to ensure that the inspection is completed within the required timeframe.

c. Failure to complete the annual inspection may result in the expiration or revocation of the ADU registration certificate and may result in a violation of the Miami 21 Zoning Ordinance.

(3) *Notification of deficiencies and re-inspection.*

a. In the event the property fails an inspection, the property owner or authorized agent shall be provided with a notice of deficiency.

b. The owner shall have 60 days from the date of the notice to correct all deficiencies and schedule a re-inspection. If a valid building permit has been applied for and an active process number has been issued to address the deficiencies, the 60-day period may be extended until the permitted work is completed and finalized.

c. Re-inspections shall be subject to the applicable reinspection fees as outlined in this section. No more than three re-inspections shall be permitted. If, after the third re-inspection, the property remains noncompliant, the application shall be administratively closed, and any pending renewal of the "ADU registration certificate" shall be revoked.

d. The property owner or authorized agent shall be required to submit a new application and pay all associated fees in order to start a new registration process.

(f) *Fees.*

(1) The following fees are hereby established:

a. Initial registration and inspection: $300.00

b. Annual renewal and inspection: $250.00

c. Subsequent re-inspections: $75.00

(2) Fees shall be paid prior to inspection for each ADU.

(3) Properties which are found to be operating an ADU without an approved ADU registration certificate shall be subject to double the fees specified as well as a violation of the Miami 21 Zoning Code.

(g) *Denials and revocations.* The zoning administrator may deny the initial registration or subsequent renewals, or revoke an ADU registration certificate at any time for any of the following reasons:

(1) Failure to comply with Article 3, Section 3.18, titled "Ancillary Dwelling Unit (ADU) Standards" of the Miami 21 Zoning Code or the requirements of the City Code related to ADUs. (Property owners must remain up to date with the registration process and requirements of the City Code, the Miami 21 Zoning Code standards, and any other associated regulations).

(2) The property owner or authorized agent fails to provide access to the premises for a requested inspection within the required time.

(3) The property has lost its homestead status but the owner continues to rent the ADU.

(4) The ADU is rented as transient or temporary lodging if it is not used as predominately permanent housing.

(5) The applicant provided a materially false statement or supporting evidence in the ADU initial registration or renewal process.

(6) If there is an order to demolish the structure by the unsafe structure panel or it is determined by the building official or designee that there is actual or immediate danger of failure or collapse of a structure, the building official or designee shall refer the violation to zoning. Zoning shall then initiate the revocation of any active ADU registration certificate(s) and deny any subsequent ADU registration certificate until such time as the violation has been rectified.

(7) Failure to register, renew, or maintain or disclose changes in status may result in denial or revocation of the ADU registration certificate and/or shall result in a violation of the Miami 21 Zoning Ordinance.

(h) *Appeals.*

(1) If an ADU registration certificate is denied or revoked, the owner or authorized agent may file an appeal with the office of hearing boards within 15 days of the decision.

(2) The appeal shall be heard at the next available regular meeting of the planning, zoning and appeals board ("PZAB"). The decision of the PZAB regarding an ADU registration certificate may be appealed to the city commission by an applicant; an aggrieved party who resides, occupies, or owns property within 500 feet of the affected property; or the planning department and office of zoning.

(3) Revocation shall be effective upon written notice to the property owner and shall remain in effect until all violations are corrected and the owner or authorized agent submits a new application and pays all associated fees in order to reinitiate the registration process.

(i) *Enforcement.* Any violation of this section shall be subject to enforcement proceedings as provided for in chapter 2, article X of the City Code. No one method of enforcement shall preclude another.
(Ord. No. 14377, § 2, 7-10-25)

Secs. 2-215—2-230. Reserved.

DIVISION 3. DEPARTMENT OF FIRE-RESCUE*

Sec. 2-231. Established.

There is hereby established a department to be known as the department of fire-rescue.
(Ord. No. 10744, § 3, 6-28-90; Ord. No. 11101, § 1, 11-23-93; Code 1980, § 2-81)

Sec. 2-232. Director—Appointment.

(a) The city manager is hereby authorized to appoint a director of the department of fire-rescue who shall serve subject to the supervision and control of the city manager. The fire chief shall be the director of the department of fire-rescue, and appointed in accordance with the provisions set forth in the City Charter.

(b) The city manager shall have the exclusive right to suspend the fire chief for incompetence, neglect of duty, immorality, drunkenness, failure to obey orders given by proper authority, or for any other just and reasonable cause. If such chief be so suspended, the city manager shall forthwith certify the fact, together with the cause of suspension, to the commission who, within five days from the date of receipt of such notice, shall proceed to hear such charges and render judgment thereon, which judgment shall be final.

(c) If the chief is arrested for felony or for a misdemeanor related to the duties of office or is indicted or informed against for the commission of a federal felony or misdemeanor or state felony or misdemeanor, the provisions of F.S. § 112.51(2) shall apply.
(Ord. No. 10744, § 3, 6-28-90; Code 1980, § 2-82)

Sec. 2-233. Same—Powers and duties, functions.

Subject to the supervision and control of the city manager in all matters, the director of the department of fire-rescue shall administer the affairs of the department, which shall include the immediate direction and control of the fire force, and is charged with responsibilities for the prevention, control and suppression of fire, and providing emergency medical and rescue service in the city. The responsibilities of the department shall include, but not be limited to, the activities of fire administration, fire training, fire prevention, firefighting, maintenance and operation of fire equipment and coordination of the installation of new fire hydrants as well as maintenance of existing fire hydrants.
(Ord. No. 10744, § 3, 6-28-90; Code 1980, § 2-83)

Sec. 2-234. Emergency medical transportation service fee.

(a) There is hereby established a schedule of fees for use of the emergency medical transportation services of the department of fire-rescue. Such fees shall be charged to each person receiving basic and advance life support transportation service and shall be collected according to a procedure recommended by the city manager and approved by the city commission; such schedule of fees being as follows:

(1)	Basic life support—Base rate	$135.00
(2)	Advance life support—Base rate	235.21
(3)	Oxygen	22.00
(4)	Mileage, per mile	6.60
(5)	IV solution	22.00
(6)	Cardiac monitoring	22.00
(7)	Cervical collar	22.00
(8)	Special handling (extrication, antishock trousers, non-breathing patients and hare-	

*__Charter reference—__Authority of city to establish, regulate and control a fire department or division, § 3(r).

__City Code cross reference—__Fire protection, ch. 19.

traction splints) 22.00

(9) Nonresidents of the City of Miami will be assessed a surcharge of. 100.00

(b) The city manager shall increase the charges for services as set forth in this section when necessary to reasonably cover the cost of providing such services. Whenever such charges are to be increased, the city manager shall file a list of the new charges which shall become effective no earlier than 30 days after such filing with the city clerk.
(Ord. No. 10079, § 1, 2-13-86; Ord. No. 10596, § 1, 6-7-89; Ord. No. 10767, § 1, 7-26-90; Ord. No. 11007, § 1, 10-8-92; Code 1980, § 2-83.1)

City Code cross reference—Vehicles for hire, ch. 57.

Sec. 2-235. Fire prevention bureau.

(a) The fire code of the city shall be enforced by the fire prevention bureau in the department of fire-rescue, which is hereby established and which shall be operated under the supervision of the director of the department of fire-rescue.

(b) The chief in charge of the fire prevention bureau shall be appointed from the officers of the department of fire-rescue by the director of the department of fire-rescue subject to the approval of the city manager, and such chief of fire prevention shall be known as the fire marshal. The position of fire marshal shall be a noncompetitive position in the city, and the holder thereof, while so engaged, shall not forfeit the civil service status which he/she held prior to such appointment.

(c) The director of the department of fire-rescue may detail such members of the department of fire-rescue as inspectors as shall from time to time be necessary.

(d) A report of the fire prevention bureau shall be made annually and transmitted to the city manager. It shall contain all proceedings under this chapter and the fire code, with such statistics as the director of the department of fire-rescue may wish to include therein. The director of the department of fire-rescue shall also recommend any amendments to the fire code which, in his/her judgment, shall be desirable.
(Code 1967, § 2-36; Code 1980, § 2-84; Ord. No. 13676, § 2, 4-27-17)

Secs. 2-236—2-260. Reserved.

DIVISION 4. RESILIENCE AND PUBLIC WORKS DEPARTMENT*

Sec. 2-261. Created.

There is hereby created a department to be known as the resilience and public works department.
(Code 1967, § 2-79; Code 1980, § 2-91; Ord. No. 13792, § 1, 10-11-18)

Sec. 2-262. Director—Head of department.

The head of the resilience and public works department shall be known as the director of resilience and public works.
(Code 1967, § 2-80; Code 1980, § 2-92; Ord. No. 13792, § 1, 10-11-18)

Sec. 2-263. Same—Appointment.

The city manager is hereby authorized to appoint the director of resilience and public works.
(Code 1967, § 2-81; Code 1980, § 2-93; Ord. No. 13792, § 1, 10-11-18)

Sec. 2-264. Same—Duties generally.

Subject to the supervision and control of the city manager in all matters, the director of resilience and public works shall administer the affairs of the resilience and public works department.
(Code 1967, § 2-82; Code 1980, § 2-94; Ord. No. 13792, § 1, 10-11-18)

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*__Editor's note—__Ord. No. 13792, § 1, adopted October 11, 2018, changed the title of division 4 from "Public works department" to "Resilience and public works department."

Cross references—Trees and shrubs on public property, § 17-71 et seq.; landfills and waterfront improvements, ch. 29; sewers and sewage disposal, ch. 49; streets and sidewalks, ch. 54.

Sec. 2-265. Same—Duty to establish minimum standards for public works.

The director of resilience and public works is hereby authorized and directed to promulgate rules and regulations establishing minimum standards pertaining to the construction, improvement, repair, maintenance of streets, sidewalks, alleys, lanes, bridges, viaducts and other public highways, stormwater management system, drains, ditches, culverts, canals, streams, watercourses, seawalls, boulevards, squares and other public places and grounds belonging to the city or dedicated to public use or owned by the city as an easement or any other right of use whatsoever, and to establish, amend, publish and enforce uniform and comprehensive minimum standards, plans, drawings, specifications and control of the design, construction, development, improvement, repair and location of all public works under his/her authority, whether on or above or below the surface of the land or water, whether financed or constructed by any federal or state political subdivision or private person, firm or corporation.
(Code 1967, § 2-82.1; Code 1980, § 2-95; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13915, § 2, 9-24-20)

Sec. 2-266. Functions of department—Generally.

The functions of the department of resilience and public works shall include the permitting, oversight, inspection, management, and supervision of all public works, including those public works projects carried on in the public right-of-way, right-of-way permitting, transit and mobility functions, and all duties and functions heretofore a part of the department of engineering and the division of streets, bridges and sewers heretofore a part of the department of public service. These functions and duties are hereby transferred to the department of resilience and public works and shall be carried on by such department.
(Code 1967, § 2-83; Code 1980, § 2-96; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13915, § 2, 9-24-20)

Sec. 2-267. Same—Enumeration.

Subject to the supervision and control of the city manager in all matters, the director of resilience and public works shall administer the affairs of the department, which shall include reviewing proposed street developments and improvements to determine their adequacy as to traffic safety and capacities, performing additional duties in traffic planning as assigned from time to time, and determining the best routings and terminal locations for buses to serve the community needs and to coordinate these with other traffic.

The director of the resilience and public works department is authorized to execute and issue license agreements, without the necessity of further approvals, in a form acceptable to the city attorney, with willing property owners to allow the city, itself or by a duly licensed contractor, to make minimal improvements, such as sloping, grading, and tying-in, on such private property when required for transition or harmony with city right-of-way improvements.
(Code 1967, § 2-84; Code 1980, § 2-97; Ord. No. 12616, § 1, 11-18-04; Ord. No. 13792, § 1, 10-11-18)

Sec. 2-268. Fee for preparation of documents containing covenants to run with the land, right-of-way dedication deeds, quitclaim deeds, waiver of fee; fee for preparation of documents allowing the use of public right-of-way by private entities; recording fee.

(a) For the preparation and processing of any legal document running with the land covenanting the construction or postponement of construction of a public works improvement either in the public right-of-way or on private property, a fee of $495.00 shall be collected by the director of resilience and public works. The fee required under this subsection may be waived for governmental entities and agencies.

(b) Except as more specifically described in this section, for the preparation and processing of legal documents, including, but not limited to,

subdivision improvement bonds and hold harmless agreements, quitclaim deeds with the city as grantor, and any agreement allowing the use of public right-of-way by private entities, excluding permits, a fee of $3,375.00 shall be collected by the director of resilience and public works.

(c) For the preparation and processing of a right-of-way dedication deed, the fee shall be as follows:

(1)	Properties that receive a homestead exemption pursuant to Article VII, Section 6(a) of the Florida Constitution with the right-of-way being enlarged by the dedication not part of the county or state road system	$0.00
(2)	All other properties	$1,125.00

(d) Review of covenant in-lieu of unity of title or unity of title for a project pursuant to article 7 of the Miami 21 Zoning Code $350.00

(e) For the preparation and processing of a right-of-way dedication waiver $150.00

(f) In addition to the above fees, the party proffering the legal document shall also pay the recording fee, as established by Miami-Dade County.

(Code 1967, § 2-82.C2; Ord. No. 9004, § 1, 10-17-79; Ord. No. 9513, § 1, 11-4-82; Ord. No. 10658, § 1, 10-12-89; Code 1980, § 2-98; Ord. No. 13108, § 2, 10-8-09; Ord. No. 13195, § 2, 9-27-10; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13798, § 2, 10-25-18; Ord. No. 13915, § 2, 9-24-20; Ord. No. 14193, § 2, 7-27-23; Ord. No. 14433, § 2, 1-8-26)

Editor's note—Ord. No. 13915, § 2, adopted September 24, 2020, changed the title of section 2-268 from "Fee for preparation of documents containing covenants to run with the land, waiver of fee; fee for preparation of documents allowing the use of public right-of-way by private entities; recording fee" to "Fee for preparation of documents containing covenants to run with the land, right-of-way dedication deeds, quitclaim deeds, waiver of fee; fee for preparation of documents allowing the use of public right-of-way by private entities; recording fee." The historical notation has been preserved for reference purposes.

Sec. 2-269. Checking and recording plats and alley closures and vacations—Fee schedule; waiver of fee.

(a) The fees to be charged by the resilience and public works department for platting determinations, processing tentative plats, reviewing and processing certain platting exception approvals, and recording plats submitted for approval of the city, including the inspection of the permanent reference monuments set in the field, are hereby fixed as follows:

(1)	Platting determination or determination on folio separation	$1,100.00
(2)	Platting exception submittal pursuant to subsection 55-10(c) of the City Code ...	$1,100.00
(3)	Recording plat.	
	a. For submittal of tentative plat without closure and vacation/release of one or more right(s)-of-way or easement(s)	$3,200.00
	b. For submittal of tentative plat with closure and vacation/release of one or more right(s)-of-way or easement(s) ...	$5,500.00
	c. For resubmittal of tentative plat for an extension of time	$2,400.00
	d. For resubmittal of tentative plat by different owner	$2,400.00
	e. For resubmittal of tentative plat with new boundary without closure and vacation/release of one or more right(s)-of-way or easement(s)	$3,200.00
	f. For resubmittal of tentative plat with new boundary with closure	

and vacation/release of one or more right(s)-of-way or easement(s) . . . $5,000.00

g. To accompany final plat when submitted for recording. $3,700.00

(4) Extending subdivision improvement time limit. For each time limit extension granted for completion of subdivision improvements required in conjunction with a recorded plat $295.00

or, five percent of the subdivision improvement bond amount, whichever is greater.

(b) The processing fees required by subsection (a) may be waived for governmental entities and agencies.

(c) The fees to be charged for an expedited review for processing final plats and recording plats submitted for approval of the city, including inspection of the permanent reference monuments set in the field, are fixed as follows*:

Final plat review expedite fee (in addition to final plat submittal fee):

List of requirements	Base fee $250.00	Plus fee per tract/ lot	$100.00
Mylar review	Base fee $1,000.00	Plus fee per tract/ lot	500.00

* Expedited review is within the sole discretion of the director of resilience and public works to authorize, subject to staff availability.

(d) Fees to be charged pursuant to subsections 55-15(i) and 55-15(j) providing for an alternative method for the closure and vacation of alleys which abut parcels of land zoned solely residential.

Application fee $2,350.00

Recording fee . . . . . ***

Publication fee . . . . . ***

Vacation and alley closure fee pursuant to subsection 62-156(6): Not applicable

*** These fees shall be contingent upon fees charged by the newspaper and Miami-Dade County recorder's office at time of publication and recordation.

(e) Notwithstanding the above, combined resubmittal, tentative plat, and final plat fees pursuant to subsection 2-269(a)(3) to be charged for a plat consisting solely of property or properties that receive a homestead exemption(s) pursuant to Article VII, Section 6(a) of the Florida Constitution shall not exceed $1,800.00

(f) Fees to be charged pursuant to subsection 55-15(e) providing for an alternate method for the closure or vacation of a platted easement . . $2,000.00

(g) Fees to be charged pursuant to subsection 55-15(l) providing for an alternate method for the closure or vacation of emergency access easement. $2,350.00

(h) Fees to be charged pursuant to subsection 54-4.1(b) providing for a release of utility easement reservation $2,350.00

(i) Processing fee for tolling and extensions of tentative plat approvals $275.00

(Code 1967, § 2-85; Ord. No. 9004, § 2, 10-17-79; Ord. No. 9513, § 1, 11-4-82; Ord. No. 10658, § 1, 10-12-89; Code 1980, § 2-99; Ord. No. 12453, § 2, 12-18-03; Ord. No. 12643, § 1, 1-13-05; Ord. No. 13108, § 2, 10-8-09; Ord. No. 13195, § 2, 9-27-10; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13798, § 2, 10-25-18; Ord. No. 13915, § 2, 9-24-20; Ord. No. 14193, § 2, 7-27-23; Ord. No. 14433, § 2, 1-8-26)

Editor's note—Ord. No. 14433, § 2, adopted Jan. 8, 2026, amended § 2-269 and in doing so changed the title of said section from "Checking and recording plats and alley closures or vacations—Fee schedule; waiver of fee" to "Checking and recording plats and alley closures and vacations—Fee schedule; waiver of fee," as set out herein.

Sec. 2-270. Same—Finding material errors, additional fee; waiver of fee.

(a) If, in the process of the first check of a proposed record plat, material errors are found, the plat shall be returned to the engineer or surveyor who made it, for correction without

further checking by the resilience and public works department. For all subsequent office checking, the director of resilience and public works shall collect a fee of $21.00 per man-hour.

(b) The fee required under this section shall be waived for governmental entities and agencies.
(Code 1967, § 2-86; Ord. No. 9513, § 1, 11-4-82; Code 1980, § 2-100; Ord. No. 13142, § 2, 2-11-10; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13798, § 2, 10-25-18)

Sec. 2-271. Same—Permanent reference monuments not properly placed, additional fee; waiver of fee.

(a) If, in the process of the first check of a proposed plat, it is found that the permanent reference monuments are not properly placed on the ground, the engineer or surveyor who made the plat shall be notified, and all subsequent trips to the subdivision for the purpose of checking permanent reference monuments shall be charged for at the rate of $21.00 per hour, such charges to be collected by the director of resilience and public works. If it should be necessary to use a survey party in such subsequent checking of permanent reference monuments, the director of resilience and public works shall collect a fee of $52.50 for each hour such survey party is used.

(b) The fee required under this section may be waived by the director of resilience and public works for governmental entities and agencies.
(Code 1967, § 2-87; Ord. No. 9513, § 1, 11-4-82; Ord. No. 10658, § 1, 10-12-89; Code 1980, § 2-101; Ord. No. 13142, § 2, 2-11-10; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13798, § 2, 10-25-18)

Sec. 2-272. Plan review fee.

(a) The fees to be charged by the department of resilience and public works for processing and reviewing private development plans submitted for approval of the city are hereby fixed as follows:

(1)	Fence, wall, slab, or sign . . .	$50.00
(2)	Underground tank.	$155.00
(3)	Single-family or duplex residential construction, reconstruction, remodeling, renovation, repair, or addition.	$268.00
(4)	Multi-family residential and all nonresidential construction, reconstruction, remodeling, renovation, repair, or addition:	
	New multi-family residential (<½ acre)	$1,335.00
	New commercial (<½ acre) .	$1,535.00
	New multi-family residential (≥½ acre and <1 acre)	$1,995.00
	New commercial (≥½ acre and <1 acre)	$2,155.00
	Large development (residential/commercial ≥1 acre).	$3,500.00
(5)	Subdivision improvement engineering plan	$2,500.00
(6)	Review and marking of base building line.	
	On signed/sealed boundary survey	$125.00
	For planning/zoning applications.	$285.00
(7)	Underground utility installation	$295.00
(8)	Underground utility service connection, utility structure placement.	$95.00
(9)	Monitoring wells, soil borings, coring/sampling, utility locates, minor non-utility excavations	$420.00
(10)	Building construction/ maintenance (scaffolding, crane, dumpster)	$265.00
(11)	Interim parkin	$650.00
(12)	Right-of-way closure (temporary traffic control, temporary construction	

fence) $75.00

(13) As-built plan.

a. Stormwater $750.00

b. Line and grade, pavement, sidewalk, curb, and gutter $480.00

c. Underground utilities . $800.00

d. Above ground utilities $430.00

e. Non-standard improvements (pavers, lighting, irrigation, tree grates, etc.). $430.00

(14) Dry run plan.

a. Stormwater $585.00

b. Line and grade, pavement, sidewalk, curb, and gutter $585.00

c. Underground utilities . $585.00

d. Aboveground utilities . $430.00

e. Non-standard improvements (pavers, lighting, irrigation, tree grates, etc.)$355.00

(b) The fees to be charged by the department of resilience and public works for processing and reviewing plans for work in the right-of-way that is not related to a private development submitted for approval of the city are hereby fixed as follows:

(1) Underground utility installation $295.00

(2) Underground utility service connection, utility structure placement. $75.00

(3) Monitoring wells, soil borings, coring/sampling, utility locates, minor non-utility excavations $350.00

(4) Street construction (sidewalk repair, sidewalk construction, curb and gutter, roadway paving, roadway resurfacing) $225.00

(5) Building construction/ maintenance (scaffolding, crane, dumpster) $225.00

(6) Right-of-way closure (temporary traffic control, temporary construction fence) $105.00

(7) As-built plan.

a. Stormwater $750.00

b. Line and grade, pavement, sidewalk, curb, and gutter $480.00

c. Underground utilities . $800.00

d. Aboveground utilities . $430.00

e. Non-standard improvements (pavers, lighting, irrigation, tree grates, etc.). $430.00

(8) Dry run plan.

a. Stormwater $585.00

b. Line and grade, pavement, sidewalk, curb, and gutter $585.00

c. Underground utilities . $585.00

d. Aboveground utilities . $430.00

e. Non-standard improvements (pavers, lighting, irrigation, tree grates, etc.). $355.00

(c) Expedited plan review service for special projects. A "special project" is defined as a project having a development order, or any other project as determined by the city manager, or designee, as having special interest to the city. The services will cover the resilience and public works department expedited review and shall be in addition to any and all other applicable permit fees. Outside source review will be the preferred method.

Outside source review fee: Actual cost plus 15 percent*

*Fifteen percent is the administrative fee to cover the cost of processing.

In-house review fee not to exceed four hours: $350.00

(d) Trip generation statement fee pursuant to comprehensive plan policy.

Policy TR-1.3.3: $1,350.00

(e) The administrative fee in connection with the administration of the independent traffic studies shall be in the amount of 15 percent of the estimated expenses for the services of the provider set to perform the independent study. The nonrefundable administrative fee is in addition to and shall be paid separately from expenses for the services of the provider and will be due at time of contract execution with the independent traffic engineering study provider.

(f) The fee required under this section may be waived by the city manager for governmental entities and agencies.
(Ord. No. 10658, § 1, 10-12-89; Code 1980, § 2-102; Ord. No. 12642, § 1, 1-13-05; Ord. No. 13142, § 2, 2-11-10; Ord. No. 13195, § 2, 9-27-10; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13798, § 2, 10-25-18; Ord. No. 13915, § 2, 9-24-20; Ord. No. 14139, § 2, 2-9-23; Ord. No. 14433, § 2, 1-8-26)

Editor's note—Ord. No. 13915, § 2, adopted September 24, 2020, changed the title of section 2-272 from "Construction plan checking fee" to "Plan review fee." The historicl notation has been preserved for reference purposes.

Sec. 2-273. Turning money over to finance department.

All money so collected by the director of resilience and public works pursuant to sections 2-269, 2-270, 2-271 and 2-272 shall be turned over to the finance department.
(Code 1967, § 2-88; Ord. No. 10658, § 1, 10-12-89; Code 1980, § 2-103; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13798, § 2, 10-25-18)

Secs. 2-274—2-300. Reserved.

DIVISION 5. OFF-STREET PARKING DEPARTMENT*

Sec. 2-301. Determination of need for department and board; ratification of acts and proceedings of department and board.

(a) The city commission has determined and does hereby declare that there is an urgent need for the department of off-street parking of the city and for the off-street parking board of the city which were created and established by section 23 of the Charter.

(b) All acts and proceedings of the department of off-street parking and of the off-street parking board which were created and established by Ordinance Number 5461, passed and adopted by the city commission on November 2, 1955, as amended by Ordinance Numbers 5556 through 5560, inclusive, all passed and adopted on March 7, 1956, are hereby validated, ratified and confirmed.
(Code 1967, § 2-55; Code 1980, § 2-110)

Secs. 2-302—2-325. Reserved.

DIVISION 6. GENERAL SERVICES ADMINISTRATION DEPARTMENT†

Sec. 2-326. Created.

There is hereby created a department to be known as the general services administration department.
(Code 1967, § 2-89; Ord. No. 8742, § 1, 1-11-78; Ord. No. 10068, § 2, 1-9-86; Code 1980, § 2-116)

Sec. 2-327. Director—Appointment.

(a) The head of the general services administration department shall be known as the director of the general services administration department.

***Charter reference—**Department of off-street parking, off-street parking board, § 23.

City Code cross reference—Public off-street facilities, § 35-121 et seq.

†**City Code cross reference—**Garbage and other solid waste, ch. 22.

(b) The city manager is hereby authorized to appoint the director of the general services administration department.
(Code 1967, §§ 2-90, 2-91; Ord. No. 10068, § 2, 1-9-86; Code 1980, §§ 2-117, 2-118)

Sec. 2-328. Same—Duties generally.

Subject to the supervision and control of the city manager in all matters, the director of the general services administration department shall administer the affairs of the general services administration department which shall include the immediate direction and control of all staff personnel; management and supervision of all functions and responsibilities, including functions and personnel of the garage, motor pool, property maintenance, print shop, communication services, including telecommunication systems, purchasing, including an "office of minority and women business affairs and procurement" which office is to be created by the city manager, and including property and lease management.
(Code 1967, §§ 2-92, 2-93; Ord. No. 10068, § 2, 1-9-86; Code 1980, §§ 2-119, 2-120, 2-263)

City Code cross reference—City manager's office to implement minority and women business affairs and procurement program, § 18-138.

Secs. 2-329—2-355. Reserved.

DIVISION 7. REAL ESTATE AND ASSET MANAGEMENT DEPARTMENT*

Sec. 2-356. Created.

There is hereby created a department to be known as the real estate and asset management department.
(Ord. No. 8741, § 1, 1-11-78; Code 1980, § 2-166; Ord. No. 13818, § 2, 1-10-19)

*__Editor's note—__Ord. No. 13818, § 2, adopted January 10, 2019, changed the title of division 7 from "Conferences and conventions and public facilities department" to "Real estate and asset management department."

City Code cross references—Downtown development, ch. 14; stadiums and convention centers, ch. 53.

Sec. 2-357. Appointment, duties of director.

The city manager is hereby authorized to appoint a director of the real estate and asset management department. The director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters. The director of the department will be the director of the City of Miami/University of Miami James L. Knight International Center.
(Ord. No. 8741, § 2, 1-11-78; Code 1980, § 2-167; Ord. No. 13818, § 2, 1-10-19)

Sec. 2-358. Organization of department.

The functions and duties of the real estate and asset management department are to be carried out by the office of the director of the department and the following divisions:

(1) *Conference center development division.* The conference center development division shall complete the development and construction process of the City of Miami/University of Miami James L. Knight International Center (sometimes referred to as the city's "downtown convention center"). The aforesaid division shall also forthwith begin the process of booking

conventions into the facility in conjunction with the University of Miami's Conference Center.

(2) *Convention services division.* The convention services division shall henceforth perform, for the entire community, the activities of convention research, solicitation and servicing.

(3) *Public facilities division:* The public facilities division shall have the planning, development, management, maintenance and supervision of the day-to-day operations of the city marinas and the Miami Marine Stadium, including the coordination and management of planning, development, and construction efforts at all city facilities. The division shall have the duty of planning and management of promotions, negotiations, and bookings of special events such as concerts, sports, and other exhibitions and competitions, and other forms of entertainment as appropriate in those public facilities.

(Ord. No. 8740, § 3, 1-11-78; Ord. No. 10125, § 4, 7-10-86; Code 1980, §§ 2-168, 2-189(b); Ord. No. 11998, § 2, 11-16-00; Ord. No. 12184, § 2, 2-14-02; Ord. No. 13818, § 2, 1-10-19)

Secs. 2-359—2-380. Reserved.

DIVISION 8. DEPARTMENT OF DEVELOPMENT AND HOUSING CONSERVATION

Sec. 2-381. Created.

A department to be known as the department of development and housing conservation is hereby created.

(Ord. No. 10105, § 2, 5-22-86; Code 1980, § 2-171)

Sec. 2-382. Appointment, duties of director.

(a) The city manager is hereby authorized to appoint a director of the department of development and housing conservation. The director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters.

(b) The department director, subject to specific authorization by the city manager, is also empowered to carry out special assignments in matters not expressly set forth in this division.

(c) The city manager may, from time to time, issue directives setting forth operating procedures to be followed and responsibilities to be discharged by the department director.

(Ord. No. 10105, § 2, 5-22-86; Code 1980, §§ 2-172, 2-174, 2-175)

Sec. 2-383. Division of housing conservation created, functions, duties.

The division of housing conservation, hereby created, subject to the control and direction of the city manager, shall be empowered to perform the following duties:

(1) Develop, implement and manage all programs related to providing housing assistance initiated by the city commission, not including public housing;

(2) Evaluate and recommend priorities for an annual housing assistance plan, provide for staff review and the evaluation and coordination of said review;

(3) Plan and implement projects to preserve, improve and expand the city's housing stock including but not limited to the utilization of resources provided by the federal, state and county government;

(4) Assist private developers in preserving, improving and expanding the city's housing stock; and

(5) Develop and coordinate the implementation of citywide housing improvement strategies and recommend programs to further the goals of the strategy.

(Ord. No. 10105, § 2, 5-22-86; Code 1980, § 2-173)

Sec. 2-384. Division of development created, functions, duties.

(a) *Created.* A division to be known as the division of development is hereby created.

(b) *Appointment, duties of director.* The city manager is hereby authorized to appoint a director of the division of development. The director shall administer the affairs of the division subject to the supervision and control of the city manager in all matters. The director, subject to specific authorization by the city manager, is also empowered to carry out special assignments in matters not expressly set forth herein. The city manager may, from time to time, issue directives setting forth operating procedures to be followed and responsibilities to be discharged by the director.

(c) *Functions, duties.* The division of development, subject to the control and direction of the city manager, shall be empowered to perform the following duties:

(1) Development implementation, project management, and construction administration of major development projects initiated by the city commission, administration and departments;

(2) Evaluate and recommend priorities for major capital improvement projects, provision of staff review, evaluation and coordination of same;

(3) Plan and implement community redevelopment and revitalization projects;

(4) Facilitate and administer programs for expansion, attraction and retention of local businesses and business investments;

(5) Facilitate and administer programs to attract international businesses and business investments in the city; and

(6) Promote the city as a trade center.

(Ord. No. 10070, § 2, 1-23-86; Code 1980, §§ 2-206—2-210)

Secs. 2-385—2-410. Reserved.

DIVISION 9. HOUSING AND COMMUNITY DEVELOPMENT*

Sec. 2-411. Created.

A department to be known as housing and community development is hereby created.

(Ord. No. 13491, § 2, 11-20-14; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-412. Appointment, duties of director.

The city manager is hereby authorized to appoint a director of housing and community development. The director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters.

(Ord. No. 13491, § 2, 11-20-14; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-413. Functions and duties of the department.

The functions and duties of housing and community development are to:

(1) Provide or cause to be developed programs designed to identify and remove physical, social, economic, employment and cultural barriers which preclude vulnerable persons from enhancing the quality of their lives.

(2) Provide recommendations for funding and/or coordinate services to city citizens and neighborhood-based organizations of a social service, economic or community development nature, which funding may

*__Editor's note—__Ord. No. 13491, § 2, adopted November 20, 2014, amended division 9 in its entirety to read as herein set out. Formerly, division 9, §§ 2-411—2-413 pertained to the community development department, and derived from Ord. No. 8740, §§ 1—3, adopted January 11, 1978; Ord. No. 9034, § 1, adopted December 5, 1979; the Code of 1980, §§ 2-176—2-178; Ord. No. 10105, § 1, adopted May 22, 1986, and Ord. No. 11904, § 2, adopted March 9, 2000.
Subsequently, Ord. No. 14338, § 2, adopted December 12, 2024, changed the title of division 9 from "Community and economic development department" to "Housing and community development."

be allocated after an advertised public hearing and authorization by the city commission.

(3) Administer the community development block grant and adult/youth job training programs, recommend projects for funding and coordinate the planning and implementation of such projects which funding may be allocated only after an advertised public hearing and authorization by the city commission.

(4) Establish, maintain, and administer programs that will ensure grassroots citizen participation.

The advertisements required by subsections (2) and (3) above shall include the time, date, and place of the meeting and a description of the proposed funding allocation and shall be published in a newspaper of general paid circulation in the city.
(Ord. No. 13491, § 2, 11-20-14; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-414. Affordable housing notice to residents of the city and city elected and appointed officials.

Legislative intent. Any developer with a project that receives affordable or workforce housing incentives or benefits from the city, its departments, instrumentalities or community redevelopment agencies, including but not limited to, financing, grants in kind or other grants, impact fee waivers or deferrals, parking waivers or reductions, etc., shall provide notice to residents of the city and elected and appointed officials simultaneous to their regular notices of lease outs, sales, conveyances, or similar dispositions.
(Ord. No. 13491, § 2, 11-20-14)

Sec. 2-415. Notice.

Prior to the initial leasing and/or sales period, developers shall deliver written notice to the directors of housing and community development and the planning and zoning department, respectively, simultaneous to their regular notices of the availability of these affordable units so that city elected and appointed officials can notify residents of the city of the availability of these units. The notice shall include the number of available units, street address, and contact information for the development.
(Ord. No. 13491, § 2, 11-20-14; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-416. Definitions.

Affordable housing, solely for purposes of this article, shall mean owner-occupied and/or rental housing with a purchase cost, value, or monthly rental, as applicable, equal to or less than the amounts established by the applicable standards for those individuals whose income is between 30 percent to 80 percent of area median income as published annually by the United States Department of Housing and Urban Development ("HUD").

City resident(s), solely for purposes of this article, shall mean an individual or household which has resided within the City of Miami designated boundaries for the immediate past 12 consecutive months.

Preference, solely for purposes of this article, shall mean the developer, manager, operator, or owner of units shall make all reasonable efforts to first enroll eligible city residents prior to leasing or selling to non-city residents. If there are no city residents available to lease or sell preference units, then the developer, manager, operator or owner of the units may lease or sell units to non-city residents.

Restricted unit, solely for purposes of this article, shall mean housing made only available to individuals or household families which meet the income and sale/rent qualifications respective to the applicable area median income as published annually by HUD.

Workforce housing, solely for purposes of this article, shall mean owner-occupied and/or rental housing with a purchase cost, value, or monthly rental, as applicable, equal to or less than the amounts established by the applicable standards for those individuals whose income is between 80 percent to 140 percent of area median income as published annually by HUD.
(Ord. No. 13645, § 2, 10-27-16)

Sec. 2-417. City resident preference.

(a) *Affordable housing developments.* Affordable housing developments receiving any city benefits, including but not limited to financing, density bonuses, impact fee deferrals, parking waivers or reductions, building permit fee deferrals, or any funds provided by the city, regardless of the source of such funds, shall first provide city residents preference to all restricted units, unless otherwise prohibited by law.

(b) *Workforce housing developments.* Workforce housing developments receiving any city benefits, including but not limited to financing, density bonuses, impact fee deferrals, parking waivers or reductions, building permit fee deferrals, or any funds provided by the city, regardless of the source of funds, shall first provide city residents, or those employed within the city's boundaries. Preference to all restricted units, unless otherwise prohibited by law.
(Ord. No. 13645, § 2, 10-27-16)

Sec. 2-418. City sole local government lender preference.

Notwithstanding any of the provisions in this article, developments in which the city is the sole local government lender to develop affordable housing and/or workforce housing through financing, regardless of the source of said funds, shall provide city residents preference to all restricted units of the development.
(Ord. No. 13645, § 2, 10-27-16)

Secs. 2-419—2-435. Reserved.

DIVISION 10. DEPARTMENT OF PARKS AND RECREATION

Sec. 2-436. Created.

There is hereby created a department to be known as the department of parks and recreation.
(Ord. No. 10125, § 1, 7-10-86; Code 1980, § 2-186)

Sec. 2-437. Appointment of director.

The city manager is hereby authorized to appoint a director of the department of parks and recreation. The director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters.
(Ord. No. 10125, § 3(a), 7-10-86; Code 1980, § 2-188)

Sec. 2-438. Functions, duties and responsibilities of department.

The functions, duties and responsibilities of the department of parks and recreation shall include the following:

(1) Planning, development, maintenance, management and supervision of the operations of the city parks, cemetery, and golf courses, including the coordination and management of planning and development efforts at said city properties.

(2) Management, supervision, and provision of recreation activities and programs for all age groups within the community emphasizing educational, cultural and recreational activities.

(3) Such other duties as may be prescribed by ordinance, and the enforcement of all laws, ordinances, and regulations relative to the above powers and duties.

(Ord. No. 10125, § 4, 7-10-86; Code 1980, § 2-189)

Secs. 2-439—2-465. Reserved.

DIVISION 11. FINANCE DEPARTMENT*

Sec. 2-466. Director as disbursing officer.

The director of finance is hereby declared to be the disbursing officer in the paying of salaries or compensation to all employees of the city, and in addition to his/her other duties he/she shall arrange for the payment of salaries and compensa-

*__Charter reference—__Department of finance generally, § 27 et seq.

__City Code cross references—__Finance, ch. 18; local business tax receipts, ch. 31; taxation, ch. 56.

tion to all employees of the city through the department of finance, in accordance with the provisions of the Charter.
(Code 1967, § 2-32; Code 1980, § 2-218; Ord. No. 11727, § 2, 11-17-98)

Sec. 2-467. Responsibilities of the director relating to the Anti-Deficiency Act.

The director of finance shall be responsible for the provisions relating to the Anti-Deficiency Act, in sections 18-500 through 18-503, as follows:

(1) To provide monthly reports to department directors reflecting actual year-to-date and month-to-date expenditures by line item, annual budget per line item, percentage of budget used by line item and remaining balance per line item.

(2) To provide monthly notification in writing to the city manager and department directors of any over expenditure by line item.

(3) To provide monthly reports to the city manager and department directors of overtime expenditures for each department.

(4) To prepare portions of the monthly status report and any other requested information to the city manager and department directors.

(5) To implement procedures necessary to assist the departments in reducing the potential of over expending line items as it relates to the disbursing function.

(6) To assist and respond to questions from departments and offices as it relates to the disbursing function.

(7) To assist the director of management and budget with the roll forward of prior year fund balance to appropriate these funds for open encumbrances and/or purchase orders which exist at year end and payable in the following year.

(8) To establish a financial account structure software package in accordance with generally accepted accounting principles.

(9) To provide regularly scheduled accounts payable check run along with procedures to facilitate the departments in expediting the payment of obligations originated by said departments.

(Ord. No. 11727, § 2, 11-17-98; Ord. No. 11890, § 3, 2-10-00)

Secs. 2-468—2-490. Reserved.

DIVISION 12. MANAGEMENT AND BUDGET DEPARTMENT*

Sec. 2-491. Created.

There is hereby created a department to be known as the management and budget department.
(Code 1967, § 2-98; Ord. No. 8742, § 1, 1-11-78; Code 1980, § 2-226)

Sec. 2-492. Director—Head of department.

The head of the management and budget department shall be known as the director of management and budget.
(Code 1967, § 2-99; Code 1980, § 2-227)

Sec. 2-493. Same—Appointment; duties generally.

The city manager is hereby authorized to appoint the director of the management and budget department, who shall administer the affairs of such department, subject to the supervision and control of the city manager in all matters.
(Code 1967, § 2-100; Code 1980, § 2-228)

Sec. 2-494. Same—Management, supervision and control of department; services provided by department generally.

Subject to the supervision and control of the city manager, the director of the management

*__City Code cross references—__Finance, ch. 18; local business tax receipts, ch. 31; taxation, ch. 56.

and budget department shall manage, supervise, control and administer the affairs of the department. The department shall provide revenue/grants management services, budget management services, and such other similar services as the city manager may direct.
(Code 1967, § 2-100.1; Code 1980, § 2-229)

Sec. 2-495. Department organization; assistant department head and revenue administrator to head each section.

There shall be included in the management and budget department a budget management section, and a revenue/grants management section. Each section shall be headed by an assistant department head and a revenue administrator.
(Code 1967, §§ 2-100.2, 2-100.7; Ord. No. 8742, § 1, 1-11-78; Ord. No. 9467, § 1(b), 7-22-82; Code 1980, §§ 2-230, 2-241)

Sec. 2-496. Duties of revenue administrator—Revenue/grants management section.

Subject to the supervision and control of the director of the management and budget department, the revenue administrator shall forecast actual and projected revenue, identify potential new sources of revenue and perform the city's grant management function by establishing a comprehensive citywide grants management system.
(Code 1967, § 2-100.3; Code 1980, § 2-231)

Sec. 2-497. Same—Budget management section.

Subject to the supervision and control of the director of the management and budget department, the assistant department director in charge of budget services shall provide the services of a budget office, which shall include the formulation, preparation and evaluation of the city budget; the provision of budgetary control through constant monitoring of current fiscal operations, and the forecasting of future fiscal operations for all funds; and the functions which shall include: expenditure control of the financial management information system; citywide position control; monitoring all legislation authorizing appropriations through its verification of the availability of funds; undertaking special fiscal management studies as requested by the mayor, city commission and/or by the city manager; written analysis of the budgetary impact of all proposed legislation prior to consideration by the city commission; providing through the city manager to the city commission a written budget impact analysis for all "pocket" agenda items; and performing such allied duties and functions as the department director may specify.
(Code 1967, § 2-100.4; Code 1980, § 2-232; Ord. No. 11564, § 4, 10-28-97; Ord. No. 11727, § 2, 11-17-98)

Sec. 2-497.1. Responsibilities of the director of management and budget relating to the Anti-Deficiency Act.

The director of management and budget shall be responsible for the provisions relating to the Anti-Deficiency Act, as set forth in sections 18-500 through 18-503, as follows:

(1) To prepare a written budgetary impact analysis for city commission review prior to adoption of a resolution presented for changes or deviations of the approved budget.

(2) To prepare a written budgetary impact analysis for city commission review prior to adoption of a resolution presented for ratification, approval and confirmation as a result of an emergency.

(3) To monitor departmental overtime budgets and provide monthly status reports to assist departments in verifying the availability of funds.

(4) To monitor departmental budgets and provide monthly status reports to assist departments in verifying the availability of funds.

(5) To notify the department director and the city manager in writing of any deficiency, the cause of the deficiency, the amount of the deficiency and the recommended remedial action to cure the

deficiency. The city manager shall, within 24 hours, transmit copies to the mayor, the city commission, city clerk and city attorney.

(6) To submit a comprehensive monthly status report, for distribution to the mayor and members of the city commission.

(Ord. No. 11727, § 2, 11-17-98; Ord. No. 11890, § 3, 2-10-00)

Sec. 2-498. Duties of computers division.

Subject to the supervision and control of the city manager in all matters, the deputy director of computers shall manage, supervise, control and administer the affairs of the computers division. The computers division shall assist and support city departments by providing and coordinating computer-based, integrated information systems, planning and development services and assist and support city departments in the monitoring of the operations of such systems. The computers division shall coordinate the acquisition of hardware and software to develop such systems and shall prepare capital budgets and administer the capital funds from whatever sources for such acquisition and administer all contracts and agreements related to such acquisitions. Coordination and review of the computers division services shall be with such persons, departments or groups as the city manager may direct. The computers division shall also provide such other allied services to support and assist city departments as the city manager may direct.

(Code 1967, §§ 2-100.8—2-100.11; Ord. No. 9467, § 1, 7-22-82; Code 1980, §§ 2-242—2-245)

Sec. 2-499. Service fees.

Expenses to be incurred by the city in connection with the administration of local business tax receipts and permits have been determined and shall be reimbursed to the city through the imposition of a service charge in the amount of $3.50. This nonrefundable service charge is in addition to and shall be paid separately from any assessment, and shall be payable at the time of application or request for services provided pursuant to the following sections of the City Code: 2-207; 2-234; 2-269; 3-23; 3-29; 3-59; 18-4; 18-40; 18-293; 19-2; 19-6; 22-12; 31-50; 38-11; 38-12; 42-6; 54-3; 54-43; 54-305; and 62-156.

(Ord. No. 11287, § 4, 7-13-95; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13142, § 2, 2-11-10)

Secs. 2-500—2-525. Reserved.

DIVISION 13. DEPARTMENT OF ECONOMIC INNOVATION AND DEVELOPMENT*

Sec. 2-526. Created.

There is hereby created a department to be known as the department of economic innovation and development.

(Ord. No. 14338, § 2, 12-12-24)

Sec. 2-527. Director—Appointment and duties.

(a) The head of the department of economic innovation and development shall be known as the director of the department of economic innovation and development.

(b) The city manager is hereby authorized to appoint the director of the department of economic innovation and development.

(c) Subject to the supervision and control of the city manager in all matters, the director of the department of economic innovation and development shall administer the affairs of the department of economic innovation and development.

(Ord. No. 14338, § 2, 12-12-24)

Sec. 2-528. Functions of the department generally.

The department shall develop and implement policies, programs, and strategies for the retention, expansion, and relocation of existing business and industry and for the attraction of new industry; coordinate, monitor and evaluate all

*__Editor's note—__Prior to the reenactment of division 13 by Ord. No. 14338, § 2, adopted December 12, 2024, Ord. No. 13770, § 2, adopted June 28, 2018, repealed the former division 13, sections 2-526—2-531 in its entirety, which pertained to the office of independent auditor general, and derived from Ord. No. 12351, § 3, adopted April 10, 2003.

municipal programs and procedures relating to economic innovation and development; and provide technical assistance to business, industry, and local organizations regarding the availability of sites for development, public and private financing for development, and municipal procedures and programs regarding land use and land assembly for economic innovation and development.
(Ord. No. 14338, § 2, 12-12-24)

Secs. 2-529—2-555. Reserved.

DIVISION 14. HUMAN RESOURCES*

Sec. 2-556. Created.

There is hereby created a department to be known as human resources.
(Ord. No. 8526, § 1, 2-26-76; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-266; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-557. Appointment, duties of director.

The city manager is authorized to appoint a director of human resources. The director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters.
(Ord. No. 8526, § 2, 2-26-76; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-267; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-558. Functions and duties of department.

The functions and duties of human resources are to:

(1) Provide basic personnel information and support services to all city employees.

(2) Identify, design and administer training courses and formal educational programs for the development of employees in their current or potential positions.

(3) Review and evaluate the manpower requirements necessary to perform the assigned functions of the various departments in an efficient and effective manner, assist the department directors and the civil service board to define and identify the skills needed to satisfy the requirements, perform the administrative procedures and fieldwork required to define and keep current data on position descriptions.

(4) Establish procedures and facilities for the creation, retrieval and preservation of employee personnel records; maintain records of all personnel actions, including, but not limited to, those related to employment or promotion processing.

(5) Establish and maintain medical services which shall include medical examination of employees and potential employees, a preventive medical program and liaison with the medical profession.

(6) In coordination and cooperation with the civil service board, establish and maintain a program to ensure recruitment of an adequate supply of qualified applicants for employment by the city.

(7) Develop job-related standards of efficiency for submission to the civil service board for their consideration.

(8) Ensure that standards of efficiency fixed by the civil service board are applied to employees and that reports of employee performance are prepared and submitted in accordance with civil service rules and regulations.

(Ord. No. 8526, § 3, 2-26-76; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-268; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-559. Department not to abridge civil service board authority or interfere with civil service policies in specified areas.

It is declared to be the legislative intent of this body that implementation of human resources shall not abridge the policy-making authority of

*__Editor's note—__Ord. No. 14338, § 2, adopted December 12, 2024, changed the title of division 14 from "Personnel management department" to "Human resources."

__Cross reference—__Personnel, ch. 40.

the civil service board and shall not impede, deter or interfere with civil service policies in the areas of establishing, maintaining and enforcing in-hiring standards and qualifications; preparation, administration, certification, and supervision of all in-hiring and promotional examinations; judicial review of all disciplinary actions and procedures; approval of employee performance evaluation standards, and review of all personnel actions pursuant to civil service board rules.
(Ord. No. 8526, § 4, 2-26-76; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-269; Ord. No. 14338, § 2, 12-12-24)

Secs. 2-560—2-580. Reserved.

DIVISION 15. EQUAL OPPORTUNITY AND DIVERSITY PROGRAMS*

Sec. 2-581. Creation of the office of equal opportunity and diversity programs.

(a) Notwithstanding any provision in this Code to the contrary, the office of equal opportunity and diversity programs is created. The management, supervision, and control of the equal opportunity function to be performed on behalf of the city shall be the responsibility of the office of equal opportunity and diversity programs.

(b) All funds, personnel, records, and equipment currently budgeted in the department of employee relations for the division of equal opportunity and diversity programs are transferred and assigned to the office of equal opportunity and diversity programs.
(Ord. No. 13086, § 2, 9-10-09)

Sec. 2-582. Appointment, reporting and qualifications of the administrator.

The equal opportunity and diversity programs administrator, shall be appointed by and report to the city manager, and the position shall be in the unclassified service. The administrator shall be responsible for the functions of the city office of equal opportunity and diversity programs and shall be qualified by education and experience in the area of equal opportunity compliance as determined by generally accepted standards within the field of practice. The equal opportunity and diversity programs administrator is also designated as the city's equal employment opportunity (EEO) officer, also known as affirmative action officer.
(Ord. No. 13086, § 2, 9-10-09)

Sec. 2-583. Staffing.

The office of equal opportunity and diversity programs shall be staffed by professional and support personnel as designated by the city manager and approved by the city commission in the city's budget process, as may be amended periodically by the city commission, upon recommendation by the city manager.
(Ord. No. 13086, § 2, 9-10-09)

Sec. 2-584. General duties, powers and responsibilities.

Subject to the direction of the city manager, the equal opportunity and diversity programs administrator shall:

(1) Represent the city manager in all matters of affirmative action, and equal opportunity in employment;

(2) Monitor compliance with the city's administrative policies and laws related to the prohibition of employment discrimination including, but not limited to the following:

a. Title VII of the Civil Rights Act of 1964 with amendments;

b. Civil Rights Act of 1991;

c. Pregnancy Discrimination Act;

d. Family Medical Leave Act;

e. Equal Pay Act;

f. Age Discrimination in Employment Act;

g. Florida Civil Rights Act;

*__Editor's note—__Ord. No. 13086, § 2, adopted September 10, 2009, amended division 15 in its entirety to read as herein set out. Formerly, division 15, §§ 2-581 and 2-582, pertained to similar subject matter, and derived from the Code of 1980, §§ 2-235, 2-236.1, and Ord. No. 10071, §§ 2, 4(b), adopted January 23, 1986.

h. Americans with Disabilities Act of 1990 with amendments;

i. Vocational Rehabilitation Act of 1973.

(3) Investigate complaints involving employment discrimination;

(4) Prepare reports to internal and external sources relevant to compliance with EEO laws, and issues involving diversity and equal employment opportunity;

(5) Develop and implement instructional programs relevant to equal employment opportunity and diversity issues for city employees;

(6) Work in direct coordination with the EEO advisory board in the preparation, conduct, review, and implementation of the city's continuing affirmative action program;

(7) Provide staff support to the EEO advisory board thus empowering the board to:

a. Review and recommend to the city commission, through the appropriate administrative channels, the adoption of, amendment and revisions to the city's affirmative action plan, for meeting present and possible future requirements;

b. Review employment policies and practices of the city and make recommendations to the department of employee relations that will serve to ensure the city's compliance with EEO laws, guidelines and best practices;

c. Conduct monthly meetings, open to the public, for discussion of the city's affirmative action program, review of specific complaints of alleged discrimination properly brought before the board, and receipt of reports from the office of equal opportunity and diversity programs.

(Ord. No. 13086, § 2, 9-10-09)

Secs. 2-585—2-590. Reserved.

DIVISION 16. RESILIENCE AND SUSTAINABILITY*

Sec. 2-591. Created.

There is hereby created a department to be known as resilience and sustainability.
(Ord. No. 12910, § 2, 4-26-07; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-592. Appointment, duties of director.

The city manager is authorized to appoint a director of resilience and sustainability. The director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters.
(Ord. No. 12910, § 2, 4-26-07; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-593. Functions and duties of the department.

The functions and duties of the office of resilience and sustainability are to:

(1) Establish and maintain programs that provide the city and its residents with economic and quality of life benefits such as reduced energy bills, green space preservation, air quality improvements, reduced traffic congestion, improved transportation choices, and economic development and job creation through energy conservation and new energy technologies.

(2) Develop and administer a baseline emissions inventory and timetable by calculating greenhouse gas emissions for a base year and a forecast year, capturing emissions levels from all municipal operations and from all community related activities.

(3) Propose resolutions establishing emission reduction targets for the city.

*__Editor's note—__Ord. No. 14338, § 2, adopted December 12, 2024, changed the title of division 16 from "Miami office of sustainable initiatives" to "Resilience and sustainability."

(4) Coordinate the cooperation of city departments to take action to reduce global warming pollution by striving to meet or exceed Kyoto Protocol targets.

(5) Ensure that sustainable initiatives set by this department are administered and followed by city departments.

(6) Facilitate communication between environmental experts and city departments for the adoption and enforcement of environmentally sustainable initiatives.

(Ord. No. 12910, § 2, 4-26-07; Ord. No. 14338, § 2, 12-12-24)

Secs. 2-594—2-610. Reserved.

ARTICLE V. CONFLICTS OF INTEREST*

Sec. 2-611. Applicability of article.

This article shall be applicable to and binding upon every officer, official and employee of the city, including every member of any board, commission or agency of the city.

(Code 1967, § 2-101; Code 1980, § 2-301)

Sec. 2-612. Transacting business with city; appearances before city boards; post-employment restrictions; participation in the award of certain contracts under the procurement ordinance; penalties, etc.

(a) No person included in section 2-611 shall enter into any contract or transact any business with the city or any person or agency acting for the city, or shall appear in representation of any third party before any board, commission or agency of which such person is a member. No employee shall appear in any capacity on behalf of any third party before any board, commission or agency of the city. Any such contract or agreement entered into or appearance made in violation of this section shall render the transaction voidable. However this section shall not apply to an employee participating in federal economic development programs, the community development block grant assisted single family rehabilitation loan program, or the various affordable housing programs assisted through the home investment partnership program and state housing initiatives partnership program administered by the department of community development provided that the employee meets all criteria of the program and provided that the city manager approves the participation of the employee and that the employee is identified as being an employee of the city in applicable documents.

(b) The word "person" appearing in subsection (a) of this section shall include officers, officials and employees as set forth in section 2-611 hereof and the following family members of such "person": spouse, son, daughter, parent, brother or sister.

(c) The prohibition upon activity which is set forth in subsections (a) and (b) of this section shall remain in effect for a period of two years after the officer, official, or employee has left city service or terminated city employment.

(d) The director of the department and/or his/her designee and/or the members of the selection committee who are city employees recommending a contract award of not less than $500,000.00, shall be restricted for a two-year period, after the director and/or his/her designee and/or the member has left city service or terminated city employment, from receiving compensation or employment from any contractual party when the director and/or his/her designee and/or the member participated in the award of the contract subject to the procurement ordinance of the city, including without limitation waivers, with the following conditions and definitions:

(1) The word "member" as used in this section shall include all city employees who are members of the selection committee which has recommended a contract award;

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*__Charter reference—__City officers and employees prohibited from having interest in profits, etc., of contracts, jobs, etc., performed for the city, § 4(c).

__City Code cross reference—__Conflicts of interest in regard to members, employees, etc., of downtown development board, § 14-62.

__Law review reference—__Note as to conflicts of interest of municipal officers, 20 Miami L. Rev. 472.

(2) The word "director" shall mean the director, or his/her designee, of any city department, division, authority, board, or office recommending a contract award, and with respect to the boards referenced in section 18-72, the executive director of such board, or his/her designee, providing, however, that this section shall not apply to the community redevelopment agency;

(3) The word "director" shall exclude the city manager and the chief procurement officer as defined in section 18-73;

(4) This section shall not preclude the member or director, or his/her designee, from working for the contractual party on an entirely unrelated contract. The phrase "contractual party" is defined in section 18-73. The employment or contractual relationship cannot relate directly to the contract that was recommended by the selection committee in which the member participated and/or that was recommended by the director or his/her designee.

(e) Penalties. A violation of this ordinance may be punished by imposition of the maximum fine and/or penalties allowed by law. Additionally, violations may be considered by and subject to action by the Miami-Dade County Commission on Ethics.

(Code 1967, § 2-102; Ord. No. 9015, § 1, 11-8-79; Ord. No. 10823, § 2, 1-10-91; Code 1980, § 2-302; Ord. No. 11755, § 2, 2-9-99; Ord. No. 11816, § 2, 7-13-99; Ord. No. 11908, § 2, 4-13-00; Ord. No. 12401, § 1, 9-11-03; Ord. No. 12892, § 2, 3-8-07; Ord. No. 13676, § 2, 4-27-17)

Editor's note—Ord. No. 12892, § 2, adopted March 8, 2007, changed the title of § 2-612 from "Transacting business with the city; appearances before city boards, etc." to "Transacting business with city; appearances before city boards; post-employment restrictions; participation in the award of certain contracts under the procurement ordinance; penalties, etc."

State law reference—Doing business with one's agency, F.S. § 112.313(13), (14).

Sec. 2-613. Accepting gifts, etc., from persons contracting, etc., with city.

Every officer, official or employee of the city, including every member of any board, commission or agency of the city, is expressly prohibited from accepting, directly or indirectly, from any person, company, firm or corporation to which any purchase order or contract is or might be

deficiency. The city manager shall, within 24 hours, transmit copies to the mayor, the city commission, city clerk and city attorney.

(6) To submit a comprehensive monthly status report, for distribution to the mayor and members of the city commission.

(Ord. No. 11727, § 2, 11-17-98; Ord. No. 11890, § 3, 2-10-00)

Sec. 2-498. Duties of computers division.

Subject to the supervision and control of the city manager in all matters, the deputy director of computers shall manage, supervise, control and administer the affairs of the computers division. The computers division shall assist and support city departments by providing and coordinating computer-based, integrated information systems, planning and development services and assist and support city departments in the monitoring of the operations of such systems. The computers division shall coordinate the acquisition of hardware and software to develop such systems and shall prepare capital budgets and administer the capital funds from whatever sources for such acquisition and administer all contracts and agreements related to such acquisitions. Coordination and review of the computers division services shall be with such persons, departments or groups as the city manager may direct. The computers division shall also provide such other allied services to support and assist city departments as the city manager may direct.
(Code 1967, §§ 2-100.8—2-100.11; Ord. No. 9467, § 1, 7-22-82; Code 1980, §§ 2-242—2-245)

Sec. 2-499. Service fees.

Expenses to be incurred by the city in connection with the administration of local business tax receipts and permits have been determined and shall be reimbursed to the city through the imposition of a service charge in the amount of $3.50. This nonrefundable service charge is in addition to and shall be paid separately from any assessment, and shall be payable at the time of application or request for services provided pursuant to the following sections of the City Code: 2-207; 2-234; 2-269; 3-23; 3-29; 3-59; 18-4; 18-40; 18-293; 19-2; 19-6; 22-12; 31-50; 38-11; 38-12; 42-6; 54-3; 54-43; 54-305; and 62-156.
(Ord. No. 11287, § 4, 7-13-95; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13142, § 2, 2-11-10)

Secs. 2-500—2-525. Reserved.

DIVISION 13. DEPARTMENT OF ECONOMIC INNOVATION AND DEVELOPMENT*

Sec. 2-526. Created.

There is hereby created a department to be known as the department of economic innovation and development.
(Ord. No. 14338, § 2, 12-12-24)

Sec. 2-527. Director—Appointment and duties.

(a) The head of the department of economic innovation and development shall be known as the director of the department of economic innovation and development.

(b) The city manager is hereby authorized to appoint the director of the department of economic innovation and development.

(c) Subject to the supervision and control of the city manager in all matters, the director of the department of economic innovation and development shall administer the affairs of the department of economic innovation and development.
(Ord. No. 14338, § 2, 12-12-24)

Sec. 2-528. Functions of the department generally.

The department shall develop and implement policies, programs, and strategies for the retention, expansion, and relocation of existing business and industry and for the attraction of new industry; coordinate, monitor and evaluate all

*__Editor's note—__Prior to the reenactment of division 13 by Ord. No. 14338, § 2, adopted December 12, 2024, Ord. No. 13770, § 2, adopted June 28, 2018, repealed the former division 13, sections 2-526—2-531 in its entirety, which pertained to the office of independent auditor general, and derived from Ord. No. 12351, § 3, adopted April 10, 2003.

municipal programs and procedures relating to economic innovation and development; and provide technical assistance to business, industry, and local organizations regarding the availability of sites for development, public and private financing for development, and municipal procedures and programs regarding land use and land assembly for economic innovation and development.
(Ord. No. 14338, § 2, 12-12-24)

Secs. 2-529—2-555. Reserved.

DIVISION 14. HUMAN RESOURCES*

Sec. 2-556. Created.

There is hereby created a department to be known as human resources.
(Ord. No. 8526, § 1, 2-26-76; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-266; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-557. Appointment, duties of director.

The city manager is authorized to appoint a director of human resources. The director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters.
(Ord. No. 8526, § 2, 2-26-76; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-267; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-558. Functions and duties of department.

The functions and duties of human resources are to:

(1) Provide basic personnel information and support services to all city employees.

(2) Identify, design and administer training courses and formal educational programs for the development of employees in their current or potential positions.

(3) Review and evaluate the manpower requirements necessary to perform the assigned functions of the various departments in an efficient and effective manner, assist the department directors and the civil service board to define and identify the skills needed to satisfy the requirements, perform the administrative procedures and fieldwork required to define and keep current data on position descriptions.

(4) Establish procedures and facilities for the creation, retrieval and preservation of employee personnel records; maintain records of all personnel actions, including, but not limited to, those related to employment or promotion processing.

(5) Establish and maintain medical services which shall include medical examination of employees and potential employees, a preventive medical program and liaison with the medical profession.

(6) In coordination and cooperation with the civil service board, establish and maintain a program to ensure recruitment of an adequate supply of qualified applicants for employment by the city.

(7) Develop job-related standards of efficiency for submission to the civil service board for their consideration.

(8) Ensure that standards of efficiency fixed by the civil service board are applied to employees and that reports of employee performance are prepared and submitted in accordance with civil service rules and regulations.

(Ord. No. 8526, § 3, 2-26-76; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-268; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-559. Department not to abridge civil service board authority or interfere with civil service policies in specified areas.

It is declared to be the legislative intent of this body that implementation of human resources shall not abridge the policy-making authority of

*__Editor's note—__Ord. No. 14338, § 2, adopted December 12, 2024, changed the title of division 14 from "Personnel management department" to "Human resources."

__Cross reference—__Personnel, ch. 40.

the civil service board and shall not impede, deter or interfere with civil service policies in the areas of establishing, maintaining and enforcing in-hiring standards and qualifications; preparation, administration, certification, and supervision of all in-hiring and promotional examinations; judicial review of all disciplinary actions and procedures; approval of employee performance evaluation standards, and review of all personnel actions pursuant to civil service board rules.
(Ord. No. 8526, § 4, 2-26-76; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-269; Ord. No. 14338, § 2, 12-12-24)

Secs. 2-560—2-580. Reserved.

DIVISION 15. EQUAL OPPORTUNITY AND DIVERSITY PROGRAMS*

Sec. 2-581. Creation of the office of equal opportunity and diversity programs.

(a) Notwithstanding any provision in this Code to the contrary, the office of equal opportunity and diversity programs is created. The management, supervision, and control of the equal opportunity function to be performed on behalf of the city shall be the responsibility of the office of equal opportunity and diversity programs.

(b) All funds, personnel, records, and equipment currently budgeted in the department of employee relations for the division of equal opportunity and diversity programs are transferred and assigned to the office of equal opportunity and diversity programs.
(Ord. No. 13086, § 2, 9-10-09)

Sec. 2-582. Appointment, reporting and qualifications of the administrator.

The equal opportunity and diversity programs administrator, shall be appointed by and report to the city manager, and the position shall be in the unclassified service. The administrator shall be responsible for the functions of the city office of equal opportunity and diversity programs and shall be qualified by education and experience in the area of equal opportunity compliance as determined by generally accepted standards within the field of practice. The equal opportunity and diversity programs administrator is also designated as the city's equal employment opportunity (EEO) officer, also known as affirmative action officer.
(Ord. No. 13086, § 2, 9-10-09)

Sec. 2-583. Staffing.

The office of equal opportunity and diversity programs shall be staffed by professional and support personnel as designated by the city manager and approved by the city commission in the city's budget process, as may be amended periodically by the city commission, upon recommendation by the city manager.
(Ord. No. 13086, § 2, 9-10-09)

Sec. 2-584. General duties, powers and responsibilities.

Subject to the direction of the city manager, the equal opportunity and diversity programs administrator shall:

(1) Represent the city manager in all matters of affirmative action, and equal opportunity in employment;

(2) Monitor compliance with the city's administrative policies and laws related to the prohibition of employment discrimination including, but not limited to the following:

a. Title VII of the Civil Rights Act of 1964 with amendments;

b. Civil Rights Act of 1991;

c. Pregnancy Discrimination Act;

d. Family Medical Leave Act;

e. Equal Pay Act;

f. Age Discrimination in Employment Act;

g. Florida Civil Rights Act;

*__Editor's note—__Ord. No. 13086, § 2, adopted September 10, 2009, amended division 15 in its entirety to read as herein set out. Formerly, division 15, §§ 2-581 and 2-582, pertained to similar subject matter, and derived from the Code of 1980, §§ 2-235, 2-236.1, and Ord. No. 10071, §§ 2, 4(b), adopted January 23, 1986.

h. Americans with Disabilities Act of 1990 with amendments;

i. Vocational Rehabilitation Act of 1973.

(3) Investigate complaints involving employment discrimination;

(4) Prepare reports to internal and external sources relevant to compliance with EEO laws, and issues involving diversity and equal employment opportunity;

(5) Develop and implement instructional programs relevant to equal employment opportunity and diversity issues for city employees;

(6) Work in direct coordination with the EEO advisory board in the preparation, conduct, review, and implementation of the city's continuing affirmative action program;

(7) Provide staff support to the EEO advisory board thus empowering the board to:

a. Review and recommend to the city commission, through the appropriate administrative channels, the adoption of, amendment and revisions to the city's affirmative action plan, for meeting present and possible future requirements;

b. Review employment policies and practices of the city and make recommendations to the department of employee relations that will serve to ensure the city's compliance with EEO laws, guidelines and best practices;

c. Conduct monthly meetings, open to the public, for discussion of the city's affirmative action program, review of specific complaints of alleged discrimination properly brought before the board, and receipt of reports from the office of equal opportunity and diversity programs.

(Ord. No. 13086, § 2, 9-10-09)

Secs. 2-585—2-590. Reserved.

DIVISION 16. RESILIENCE AND SUSTAINABILITY*

Sec. 2-591. Created.

There is hereby created a department to be known as resilience and sustainability.
(Ord. No. 12910, § 2, 4-26-07; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-592. Appointment, duties of director.

The city manager is authorized to appoint a director of resilience and sustainability. The director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters.
(Ord. No. 12910, § 2, 4-26-07; Ord. No. 14338, § 2, 12-12-24)

Sec. 2-593. Functions and duties of the department.

The functions and duties of the office of resilience and sustainability are to:

(1) Establish and maintain programs that provide the city and its residents with economic and quality of life benefits such as reduced energy bills, green space preservation, air quality improvements, reduced traffic congestion, improved transportation choices, and economic development and job creation through energy conservation and new energy technologies.

(2) Develop and administer a baseline emissions inventory and timetable by calculating greenhouse gas emissions for a base year and a forecast year, capturing emissions levels from all municipal operations and from all community related activities.

(3) Propose resolutions establishing emission reduction targets for the city.

*__Editor's note—__Ord. No. 14338, § 2, adopted December 12, 2024, changed the title of division 16 from "Miami office of sustainable initiatives" to "Resilience and sustainability."

(4) Coordinate the cooperation of city departments to take action to reduce global warming pollution by striving to meet or exceed Kyoto Protocol targets.

(5) Ensure that sustainable initiatives set by this department are administered and followed by city departments.

(6) Facilitate communication between environmental experts and city departments for the adoption and enforcement of environmentally sustainable initiatives.

(Ord. No. 12910, § 2, 4-26-07; Ord. No. 14338, § 2, 12-12-24)

DIVISION 17. GRANTS DEPARTMENT

Sec. 2-594. Created.

A department to be known as the grants department is hereby created.
(Ord. No. 14403, § 2, 10-23-25)

Sec. 2-595. Purpose.

The grants department (grants) identifies funding and partnership opportunities from federal, state, local governments, foundations, and private funding sources to maximize revenue generating opportunities. Grants' purpose is to complete and submit high-quality competitive grant applications that enhance the quality of life of residents and promote city initiatives and priorities.

Grants coordinates and oversees all aspects related to the writing, planning, proposal writing, application preparation, and submission of grant applications and funding applications. Grants provides technical support to facilitate the implementation of policies and practices in compliance with federal, state, and local laws, regulations, and contract stipulations. In addition, grants provides expertise in assessing changes, regulatory compliance, and grant management that may impact funding. These functions advance the city's strategies to enhance services for residents and businesses.
(Ord. No. 14403, § 2, 10-23-25)

Sec. 2-596. Director—Appointment and duties.

(a) The city manager shall appoint a grants director as the authorized official designated with the purpose of applying, drafting applications and completing necessary forms and documents required for the submittal of federal, state, local or other grants on behalf of the city. The grants director shall administer the affairs of the department subject to the supervision and control of the city manager in all matters. The grants director provides leadership, direction and operational oversight of the department.

(b) The grants director shall coordinate and oversee all aspects of the development of grant proposals and submittals to maximize revenue-generating opportunities; provide technical assistance to ensure that the city maintains compliance with applicable programmatic and administrative federal, state, and local grant requirements; offers leadership and direction to departmental staff; prepares and manages the departmental budget; performs administrative functions as required; and, directs the implementation of citywide initiatives. The grants director is the authorized official designee to submit grant applications on behalf of the City of Miami.
(Ord. No. 14403, § 2, 10-23-25)

Sec. 2-597. Functions and duties.

Functions and duties of the department:

(1) Review and identify funding opportunities from federal, state, local governments, foundations, and private funding sources.

(2) Collaborate with city departments to disseminate information on grant opportunities aligning with city priorities.

(3) Identify projects and initiatives to align them with funding opportunities.

(4) Develop and submit grant applications on behalf of the city.

(5) Facilitate communication between administration, departments, and external partners for the purpose of preparing and submitting grant applications.

(6) Provide technical support and expertise on grant requirements, regulations, allowable expenditures and regulations.

(7) Grants shall also manage and administer grant funded programs for citywide initiatives.

(Ord. No. 14403, § 2, 10-23-25)

Secs. 2-598—2-610. Reserved.

ARTICLE V. CONFLICTS OF INTEREST*

Sec. 2-611. Applicability of article.

This article shall be applicable to and binding upon every officer, official and employee of the city, including every member of any board, commission or agency of the city.

(Code 1967, § 2-101; Code 1980, § 2-301)

Sec. 2-612. Transacting business with city; appearances before city boards; post-employment restrictions; participation in the award of certain contracts under the procurement ordinance; penalties, etc.

(a) No person included in section 2-611 shall enter into any contract or transact any business with the city or any person or agency acting for the city, or shall appear in representation of any third party before any board, commission or agency of which such person is a member. No employee shall appear in any capacity on behalf of any third party before any board, commission or agency of the city. Any such contract or agreement entered into or appearance made in violation of this section shall render the transaction voidable. However this section shall not apply to an employee participating in federal economic development programs, the community development block grant assisted single family rehabilitation loan program, or the various affordable housing programs assisted through the home investment partnership program and state housing initiatives partnership program administered by the department of community development provided that the employee meets all criteria of the program and provided that the city manager approves the participation of the employee and that the employee is identified as being an employee of the city in applicable documents.

(b) The word "person" appearing in subsection (a) of this section shall include officers, officials and employees as set forth in section 2-611 hereof and the following family members of such "person": spouse, son, daughter, parent, brother or sister.

(c) The prohibition upon activity which is set forth in subsections (a) and (b) of this section shall remain in effect for a period of two years after the officer, official, or employee has left city service or terminated city employment.

(d) The director of the department and/or his/her designee and/or the members of the selection committee who are city employees recommending a contract award of not less than $500,000.00, shall be restricted for a two-year period, after the director and/or his/her designee and/or the member has left city service or terminated city employment, from receiving compensation or employment from any contractual party when the director and/or his/her designee and/or the member participated in the award of the contract subject to the procurement ordinance of the city, including without limitation waivers, with the following conditions and definitions:

(1) The word "member" as used in this section shall include all city employees who are members of the selection committee which has recommended a contract award;

(2) The word "director" shall mean the director, or his/her designee, of any city department, division, authority, board, or office recommending a contract award, and with respect to the boards referenced in section 18-72, the executive director of such board, or his/her designee, provid-

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*__Charter reference—__City officers and employees prohibited from having interest in profits, etc., of contracts, jobs, etc., performed for the city, § 4(c).

__City Code cross reference—__Conflicts of interest in regard to members, employees, etc., of downtown development board, § 14-62.

__Law review reference—__Note as to conflicts of interest of municipal officers, 20 Miami L. Rev. 472.

ing, however, that this section shall not apply to the community redevelopment agency;

(3) The word "director" shall exclude the city manager and the chief procurement officer as defined in section 18-73;

(4) This section shall not preclude the member or director, or his/her designee, from working for the contractual party on an entirely unrelated contract. The phrase "contractual party" is defined in section 18-73. The employment or contractual relationship cannot relate directly to the contract that was recommended by the selection committee in which the member participated and/or that was recommended by the director or his/her designee.

(e) Penalties. A violation of this ordinance may be punished by imposition of the maximum fine and/or penalties allowed by law. Additionally, violations may be considered by and subject to action by the Miami-Dade County Commission on Ethics.
(Code 1967, § 2-102; Ord. No. 9015, § 1, 11-8-79; Ord. No. 10823, § 2, 1-10-91; Code 1980, § 2-302; Ord. No. 11755, § 2, 2-9-99; Ord. No. 11816, § 2, 7-13-99; Ord. No. 11908, § 2, 4-13-00; Ord. No. 12401, § 1, 9-11-03; Ord. No. 12892, § 2, 3-8-07; Ord. No. 13676, § 2, 4-27-17)

Editor's note—Ord. No. 12892, § 2, adopted March 8, 2007, changed the title of § 2-612 from "Transacting business with the city; appearances before city boards, etc." to "Transacting business with city; appearances before city boards; post-employment restrictions; participation in the award of certain contracts under the procurement ordinance; penalties, etc."

State law reference—Doing business with one's agency, F.S. § 112.313(13), (14).

Sec. 2-613. Accepting gifts, etc., from persons contracting, etc., with city.

Every officer, official or employee of the city, including every member of any board, commission or agency of the city, is expressly prohibited from accepting, directly or indirectly, from any person, company, firm or corporation to which any purchase order or contract is or might be awarded, any rebate, gift, money or anything of value whatsoever, except where given for the use and benefit of the city.
(Code 1967, § 2-103; Code 1980, § 2-303)

Sec. 2-614. Waiver of requirements of article.

(a) The requirements of this article may be waived for a particular transaction or transactions only by an affirmative vote of four-fifths of the members of the city commission or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation after public hearing. Such waiver may be effected only after findings by four-fifths of the members of the city commission, or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation as follows:

(1) An open-to-all sealed competitive bid has been submitted by a city person as set forth in section 2-611 hereof; or

(2) The bid has been submitted by a person or firm offering services within the scope of practice of architecture, landscape architecture, professional engineering or registered land surveying, as defined by the laws of the state and pursuant to provisions of the Consultant's Competitive Negotiation Act as are now in force and as may be hereinafter enacted, and when the bid has been submitted by a city person as set forth in section 2-611 hereof; or

(3) The property or services to be involved in the proposed transaction are unique and the city cannot avail itself of such property or services without entering into a transaction which would violate this section but for waiver of its requirements; and

(4) The proposed transaction will be to the best interest of the city.

(b) Such findings shall be spread on the minutes of the commission. This section shall be applicable only to prospective transactions, and the commission may in no case ratify a transaction entered in violation of this section.

(c) This section shall be taken to be cumulative and shall not be construed to amend or repeal any other section or ordinance pertaining to the same subject matter.
(Code 1967, § 2-104; Code 1980, § 2-304; Ord. No. 13170, § 1, 5-13-10)

State law reference—Consultants' competitive negotiation, F.S. § 287.055.

Sec. 2-615. List of real estate owned—Required of certain officials.

(a) All the following enumerated elective and appointive officers or employees of the city:

Mayor;

City commissioners;

City attorney;

City clerk;

City manager;

Civil service board;

Retirement plan board;

Retirement system board;

Members of planning, zoning and appeals board;

Members of the nuisance abatement board;

Executive director of downtown development authority;

Director of off-street parking department;

Executive secretary of civil service board;

Fire chief;

Chief of police;

Members of downtown development authority;

Members of off-street parking board;

Directors of all departments;

shall, within 30 days from the effective date of sections 2-615 through 2-617, submit to the city clerk a complete itemized list of all real property owned by he or she, whether the title be either legal or equitable, whether owned in whole or in part, including corporate real property in which he/she has a controlling interest or is an officer of such corporation, and shall include the following information as to each parcel of land:

(1) The legal description and common address;

(2) The municipal or county zoning classification wherein the property is located;

(3) The manner in which the property is presently being utilized.

(b) The itemized list shall be verified under oath. Only those real properties that are located within the corporate limits of the city or those properties located 500 feet beyond the corporate limits of the city are required to be listed on a form provided by the city clerk.

(c) All the elective and appointive officers or employees enumerated in subsection (a) who are currently appointed or appointed subsequent to the effective date of amended sections 2-615 through 2-617 shall, within 30 days of their election or appointment, submit an itemized list verified under oath of real estate holdings as provided herein.
(Code 1967, § 2-105; Ord. No. 10966, § 2, 4-2-92; Code 1980, § 2-305; Ord. No. 13245, § 1, 1-13-11; Ord. No. 13676, § 2, 4-27-17)

Sec. 2-616. Same—To be renewed annually.

All those elective and appointive officers and employees as described in section 2-615 shall, between November 1 and December 1, 1967, and each succeeding year thereafter, submit new itemized lists of real estate holdings as required under section 2-615 subject to the terms and conditions as contained in section 2-615.
(Code 1967, § 2-106; Code 1980, § 2-306)

Sec. 2-617. Same—Penalty for violation of sections 2-615, 2-616.

Any elective or appointive officer or employee violating sections 2-615 and 2-616 shall be removed from office in accordance with the law.
(Code 1967, § 2-108; Code 1980, § 2-307)

Sec. 2-618. Disclosure of parties in interest by persons making presentations, requests, etc., to city commission or boards.

(a) All parties making any presentation, formal request or petition to the city commission or any city board with respect to any real property are required to make full disclosure in writing, on a form supplied by the clerk of the city commission or secretary to the board, of all parties having a financial interest, either direct or indirect, in the subject matter of said presentation, formal request or petition. Such disclosure shall include, but not be limited to, disclosure of all natural persons having an ownership interest, direct or indirect, in the subject real property.

(b) The disclosure required by subsection (a) hereof must be made or updated, as may be necessary, in order to ensure that the information disclosed is accurate at the time of filing and at all times thereafter within a reasonable time after any change in the disclosure information required and is accurate as of the time of each vote by the city commission or applicable board.

(c) Where the disclosure required by subsection (a) hereof is not made, the city commission or applicable board shall not consider the presentation, formal request or petition nor shall such petition be accepted for filing.
(Ord. No. 9419, §§ 1, 2, 5-27-82; Ord. No. 9798, § 1, 2-9-84; Code 1980, § 2-308)

Sec. 2-619. Financial disclosure.

(a) Reporting requirement:

(1) In addition to the financial disclosure requirements of state law and county Code, the mayor and city commissioners are required to provide the following information to the city clerk in writing by July 1 of each year:*

a. Description of all assets which have a value in excess of $5,000.00 including household goods.

b. All liabilities which exceed $5,000.00 including the name and address of all creditors including debts or money owed in excess of $5,000.00 including credit card and retail installment accounts, taxes owed, indebtedness on a life insurance policy and accrued income taxes on net unrealized appreciation.

c. All sources of income due a business entity in excess of ten percent of the gross income of a business entity in which the reporting person held a material interest and from which he/she received an amount which was in excess of ten percent of his/her gross income during the disclosure period and which exceeds $1,500.00. The period for computing the gross income of the business entity is the fiscal year of the business entity which ended on, or immediately prior to, the end of the preceding calendar year.

d. Net worth, i.e., the difference between total assets and total liabilities.

(2) An affidavit of the person reporting shall be executed attesting to the accuracy of the disclosures.

(b) As an alternative to the requirements set forth in subsection (a) above, a copy of the reporting person's filed return for the current year's federal income tax return may be provided.

(c) Any elected official who is a partner in a law firm or a stockholder in a professional association must disclose, in writing, to the city clerk the name of any client whose representation results in a contribution of ten percent or more of the gross income:

(1) To the law firm in which said official is a partner;

*__Note—__The reporting requirement applies to all persons serving in the designated capacities on December 31, 1986 and on December 31 of succeeding years. Information required to be reported by July 1 shall be the information in existence as of December 31 of the preceding calendar year.

(2) To the professional association in which said official is a stockholder or has an ownership interest; or

(3) To the elected official directly.

(d) Every person who is convicted of a violation of this section shall be punished as provided in section 1-13.
(Ord. No. 10219, § 1, 2-12-87; Code 1980, § 2-309)

Secs. 2-620—2-650. Reserved.

ARTICLE VI. LOBBYISTS

Sec. 2-651. Reserved.

Editor's note—Ord. No. 14399, § 2, adopted October 9, 2025, repealed the former section 2-651 in its entirety, which pertained to applicability and derived from Ord. No. 10087, § 1, adopted March 18, 1986; the Code of 1980, § 2-311, and Ord. No. 13718, § 2, adopted December 14, 2017.

Sec. 2-652. Penalty.

Violations of this section shall be enforced by the Miami-Dade County Commission on Ethics and Public Trust ("COE"). A finding by the COE that a person has violated this chapter shall subject the person to a $500.00 civil penalty. The COE may additionally provide other penalties such as admonition and public reprimand, as well as prohibitions from registering as a lobbyist or engaging in lobbying activities before the city.
(Ord. No. 10087, § 3, 3-18-86; Code 1980, § 2-312; Ord. No. 14399, § 2, 10-9-25)

City Code cross reference—General penalty, § 1-13.

Sec. 2-653. Definitions and exceptions.

The definitions and exceptions used in Section 2-11.1(s)(1), (2) and (5) of the Code of Ordinances of Miami-Dade County, Florida, as amended ("County Code") shall be applicable to this article. References in Section 2-11.1 of the County Code to county personnel shall, therefore, be applicable to city personnel who serve in comparable capacities to the county personnel referred to therein.
(Ord. No. 10087, § 2(a)(1), (2), 3-18-86; Ord. No. 10181, § 1, 11-13-86; Ord. No. 10478, § 1, 9-8-88; Code 1980, § 2-313; Ord. No. 11469, § 2, 3-20-97; Ord. No. 11527, § 2, 7-24-97; Ord. No. 11564, § 4, 10-28-97; Ord. No. 13718, § 2, 12-14-17; Ord. No. 14399, § 2, 10-9-25)

City Code cross references—Code enforcement board, § 2-812 et seq.; civil service board, § 40-66 et seq.

Sec. 2-654. Registration; ethics; fee; disclosure requirements; log of registered lobbyists; exemptions from payment of fee; failure to register.

(a) A person may not lobby a city official, a city board member, the city manager, or city staff, until such person has registered as a lobbyist with the city clerk and submitted a certificate of completion, of an ethics course provided by the Miami-Dade County Commission on Ethics Public Trust completed within 60 days after registering. Such registration shall be due within five business days of being retained as a lobbyist by a principal, prior to engaging in any type of lobbying activities, and shall be renewed on a yearly basis thereafter. The annual registration fee for each lobbyist shall be $525.00 as an initial registration fee, plus an additional fee of $105.00 for each principal represented for each issue lobbied on behalf of any one principal. The registration fees required by this section shall be deposited by the city clerk into a separate account and shall be expended for purposes of recording, transcription, administration, and/or any other associated costs incurred in maintaining these records for availability to the public. Any person who is required to pay the registration fee and who is unable to pay the registration fee without imposing an undue burden on personal resources or on resources otherwise available to him or her shall, upon written certification of such inability given under oath to the city clerk, be exempt from paying the registration fee. Regardless of the date of the initial registration, all lobbyists' registrations shall expire December 31 of each calendar year, and shall be renewed on a calendar year basis.

(b) Each lobbyist shall, within 60 days after registering as a lobbyist, submit to the city clerk a certificate of completion of an ethics course offered by the Miami-Dade County Commission on Ethics and Public Trust ("ethics course").

Lobbyists who have completed the initial ethics course mandated by the preceding sentence and who have continuously registered as a lobbyist thereafter shall be required to complete a refresher ethics course every two years. Each lobbyist who has completed a refresher ethics course shall submit to the city clerk a certificate of completion within 60 days after registering as a lobbyist.

(c) Within five business days of being retained as a lobbyist or before engaging in any lobbying activities, whichever comes first, every person required to register as a lobbyist shall:

(1) Register on forms prepared by the city clerk;

(2) Pay an initial registration fee of $525.00, plus an additional fee of $105.00 for each principal represented and for each issue the lobbyist has been retained to lobby on behalf of any one principal; and

(3) Disclose, under oath, the following information:

a. Lobbyist's name and business address;

b. Name and business address of each principal represented;

c. The specific issue on which he or she has been retained to lobby; and

d. If the lobbyist represents a corporation, partnership or trust, the name and business address of the chief officer, partner or beneficiary of the corporation, partnership or trust and the names and addresses of all persons holding, directly or indirectly, at least five percent ownership interest in said corporation, partnership or trust. A separate registration form shall be filed by the lobbyist and an additional fee of $105.00 shall be paid for each principal represented and for each issue the lobbyist has been retained to lobby on behalf of any one principal. Such issue shall be described with as much detail as is practical, including, though not limited to: a specific description (where applicable) of a pending request for proposals, invitation to bid, ordinance, resolution, or a given item on the agenda. The city clerk or the clerk's designee shall reject any registration statement which does not provide a clear description of the specific issue on which such lobbyist has been retained to lobby.

(4) Submit a certificate of completion of the ethics course as provided under subsection 2-654(b).

(d) In addition, every registrant shall be required to state under oath the existence of any direct or indirect business association, partnership, or financial relationship with the mayor, any member of the city commission, any member of a city board, the city manager, or a member of the city staff before whom he or she lobbies, or intends to lobby.

(e) Lobbyists shall file amendments to their registration forms within 15 days of any change of information required to be set forth on their registration forms.

(f) The city clerk shall maintain a log, which shall be updated on a quarterly basis by April 15, July 15, October 15 and January 15 of each year, reflecting the lobbyist registrations filed in accordance with this section and shall be distributed to the mayor, the city commission, and the city manager.

(g) The mayor, all members of the city commission, all members of city boards, the city manager, and city staff shall be diligent to ascertain that persons required to register pursuant to this section have complied, and if necessary, request a record of compliance from the city clerk. The mayor, members of the city commission, of city boards, the city manager, and city staff may not knowingly permit a person who is not registered pursuant to this section to lobby.

(h) Each person who withdraws as a lobbyist for a particular principal shall file an appropriate notice of withdrawal concerning representa-

tion for that principal within 30 days after ceasing lobbying activities. There shall be no fee required for filing a notice of withdrawal.

(i) The validity of any action or determination of the city commission or any other city board or committee shall not be affected by the failure of any person to comply with the provisions of this section.

(j) The following persons shall be required to register but will be exempt from paying the registration fee:

(1) A person who, pursuant to the terms of a collective bargaining agreement, has been designated and is so recognized by the city as a representative of a collective bargaining unit composed of city employees;

(2) Those persons identified in Section 2-11.1(s) of the County Code.

(k) All registration forms shall be open to the public upon the filing thereof.
(Ord. No. 10087, § 2(a)(3), (b)—(d), 3-18-86; Ord. No. 10181, § 1, 11-13-86; Code 1980, § 2-314; Ord. No. 11469, § 2, 3-20-97; Ord. No. 11564, § 4, 10-28-97; Ord. No. 13125, § 2, 1-14-10; Ord. No. 13141, § 1, 2-11-10; Ord. No. 13142, § 2, 2-11-10; Ord. No. 13718, § 2, 12-14-17; Ord. No. 14399, § 2, 10-9-25)

Editor's note—Ord. No. 13718, § 2, adopted December 14, 2017, changed the title of section 2-654 from "Registration; fee; disclosure requirements; log of registered lobbyists; exemptions from payment of fee; failure to register" to "Registration; ethics; fee; disclosure requirements; log of registered lobbyists; exemptions from payment of fee; failure to register." The historical notation has been preserved for reference purposes.

Sec. 2-655. Annual expenditures report.

A lobbyist shall annually submit to the city clerk's office a signed statement under oath, as provided herein, listing all lobbying expenditures and the sources from which funds for making lobbying expenditures have come. The lobbying expenditures shall include, but not be limited to: meals, entertainment, travel, lodging, and gifts for public officers and employees for the preceding calendar year. Lobbying expenditures shall not include the lobbyist's own personal expenses for lodging, meals, travel, salary, and office expenses. Such statement of expenditures for the preceding calendar year, entitled "Annual Expenditures Report" shall be due on January 15 of each year. Such statement shall be rendered on the form provided by the city clerk's office and shall be open to public inspection. If the lobbyist had no expenditures in the preceding calendar year, then he or she shall not be required to submit an annual expenditures report.
(Ord. No. 10087, § 2(e), 3-18-86; Ord. No. 10611, § 1, 7-13-89; Code 1980, § 2-316; Ord. No. 11469, § 2, 3-20-97; Ord. No. 13718, § 2, 12-14-17)

Sec. 2-656. Advisory opinions.

(a) A lobbyist, when in doubt about the applicability and interpretation of this article in a particular context, shall submit in writing the facts for an advisory opinion by the city attorney. The city attorney shall render advisory opinions to any lobbyist who seeks advice as to whether the facts in a particular case would constitute a violation of this section. All advisory opinions of the city attorney shall be numbered, dated and furnished to the city clerk's office and shall be open to public inspection.

(b) The city clerk's office shall keep all advisory opinions of the city attorney relating to lobbyists and lobbying activities, as well as a current list of registered lobbyists and their respective reports required under this article, all of which shall be open for public inspection.
(Ord. No. 10087, § 2(f), (g), 3-18-86; Code 1980, § 2-317)

Sec. 2-657. Penalties for violations.

(a) Any lobbyist who fails to file the annual expenditures report by the January 15 deadline each calendar year shall be subject to a fine of $50.00 per day for reports filed after the due date.

(b) The city clerk shall notify any lobbyist who fails to timely file an expenditure report, and said lobbyist shall be subject to the fine imposed in subsection 2-657(a) of this Code. The name of any lobbyist who fails to comply with said requirement shall be automatically removed from the list of active lobbyists. Should said

person wish to re-register as a lobbyist, he or she shall submit a new registration form accompanied by a $525.00 registration fee plus any and all outstanding fines accrued prior to re-registration.

(c) The city clerk shall submit a report to the city commission as to those lobbyists who have failed to comply with registration and/or the annual filing requirement of this section.
(Ord. No. 10087, § 2(h), 3-18-86; Code 1980, § 2-318; Ord. No. 11469, § 2, 3-20-97; Ord. No. 13246, § 2, 1-13-11; Ord. No. 13718, § 2, 12-14-17; Ord. No. 14399, § 2, 10-9-25)

Sec. 2-658. Contingency fees.

(a) No person shall retain or employ a lobbyist for compensation based on a contingency fee, and no person shall accept any such employment or render any service for compensation based on a contingency fee.

(b) As used herein, "contingency fee" means a fee, bonus, commission, or nonmonetary benefit as compensation which is dependent on or in any way contingent on the lobbying activities.
(Ord. No. 11469, § 2, 3-20-97; Ord. No. 14399, § 2, 10-9-25)

Secs. 2-659—2-690. Reserved.

ARTICLE VII. AFFIRMATIVE ACTION POLICY*

Sec. 2-691. Definitions.

For the purpose of this article, the following terms, phrases, words and their derivatives shall have the following meanings:

Affirmative action means all actions in recruitment, hiring, upgrading and other areas which are designed to eliminate the effects of past discrimination.

Affirmative action plan means the written plan by which the city sets forth the specific affirmative actions by which it will eliminate and remedy the underrepresentation and/or underutilization of minorities and women. The affirmative action plan shall contain goals and timetables.

Discrimination means any act or acts which may adversely affect the employment opportunities of individuals because of race, color, religion, sex, national origin or other factors that, by law, may not be considered as a basis for employment actions.

Goals and timetable means the projections an employer makes of the numerical representation of minorities and women likely to be achieved in those positions in which they have been underutilized.

Labor market means the standard by which the employment participation of women and

*__City Code cross references—__Affirmative action advisory board, § 2-976 et seq.; affirmative action plan required of bidders on city contracts, § 18-136 et seq.

minorities is measured, based upon their respective incidence in the City of Miami civilian labor force.

Underrepresentation means the condition which exists when the participation rate of a group by number and/or percentage of an employer's work force is substantially less than the representation of said group in the relative labor market.

Underutilization means the condition which results from the employment participation rate of a group by job category being considerably less than the availability of said group in the labor market.
(Ord. No. 10111, § 2, 6-12-86; Code 1980, § 2-321)

Sec. 2-692. Declaration of policy.

(a) The City of Miami hereby adopts an affirmative action policy recognizing not only an obligation, but also an ethical and moral responsibility to provide fair and equitable consideration of applicants and employees, without regard to race, color, religion, sex, age, national origin, place of birth, marital status or physical or mental handicap.

(b) The City of Miami hereby publicly reaffirms its commitment to a policy of nondiscrimination and affirmative action in all agencies of city government in order to enlarge and expand the employment opportunities of all qualified persons.
(Ord. No. 10111, § 1, 6-12-86; Code 1980, § 2-322)

Secs. 2-693, 2-694. Reserved.

Editor's note—Ord. No. 13086, § 2, adopted September 10, 2009, repealed the former sections 2-693 and 2-694 in their entirety, which pertained to the implementation of plan; affirmative action division established; designation of officer, and duties and powers of officer, respectively, and derived from the Code of 1980, §§ 2-323, 2-234; Ord. No. 10111, §§ 3, 4, adopted June 12, 1986; Ord. No. 11564, § 4, adopted October 28, 1997, and Ord. No. 11995, § 2, adopted November 16, 2000.

Sec. 2-695. Policy objective; promotional goals for minorities and women; clause in city contracts, lease agreements, etc.

(a) Until changed by ordinance, the objective of the city is to achieve as its long-term goal the participation at all levels throughout its work force of blacks, Hispanics and women approximating their respective proportions in the city's labor force as determined by the United States Bureau of the Census.

(b) Promotional goals shall be established for minorities and women on a departmental basis, with each department having as its yearly goals, either parity with the Miami city government work force population statistics or the percentage of minorities currently employed in the department, whichever is smaller.

(c) All City of Miami contracts, lease agreements, use permits or subcontractual arrangements shall contain an affirmative action clause prohibiting discrimination on the basis of race, sex, national origin or handicap.
(Ord. No. 10111, § 5, 6-12-86; Code 1980, § 2-325)

Sec. 2-696. Term of policy; annual review.

The affirmative action policy established hereby shall be in effect until such time as the effects of prior discrimination against minorities and women have been compensated for, and parity achieved, at which time the goals provided for herein shall no longer be observed. There shall be a yearly review by the city commission to determine the continued need for said affirmative action policy.
(Ord. No. 10111, § 6, 6-12-86; Code 1980, § 2-326)

Secs. 2-697—2-725. Reserved.

ARTICLE VIII. IMPROVEMENT DISTRICTS

DIVISION 1. GENERALLY

Secs. 2-726—2-745. Reserved.

DIVISION 2. SAFE NEIGHBORHOOD IMPROVEMENT DISTRICTS

Sec. 2-746. Creation approved.

The creation of one or more safe neighborhood improvement districts within the city by three

optional methods: a local government neighborhood improvement district per F.S. § 163.506; a property owners' association neighborhood improvement district per F.S. § 163.508; a special neighborhood improvement district per F.S. § 163.511; all in accordance with the provisions of F.S. §§ 163.501—163.522, referred to as the "Safe Neighborhood Act," as hereby authorized.
(Ord. No. 10405, § 1, 11-12-88; Code 1980, § 2-346)

Secs. 2-747—2-775. Reserved.

ARTICLE IX. CITY-OWNED PROPERTY*

Sec. 2-776. Rental of city-owned equipment.

(a) The city manager is hereby authorized to rent any city-owned equipment which may be spared from city departments, at fair and adequate rental rates, and all revenues derived from the rental of the equipment herein referred to shall be deposited in a special fund.

(b) All revenues derived from rental of equipment, as referred to in the preceding paragraph, are hereby appropriated for the purchase of replacements or new equipment or for repairs which may be needed from time to time by the city departments.
(Code 1967, § 2-14; Code 1980, § 2-361)

Sec. 2-777. Investigation of applicants for use, lease, rental, etc., of city-owned facilities and other municipal property.

(a) The commission finds that in order to protect the morals, health, safety and welfare of the citizens of the city, prior to the use of any city-owned facility or other municipal property for events, an investigation shall be made to properly determine the fitness of the event activities to be presented and of the promoters, including, but not limited to, the moral character and the type of events previously promoted or participated in, to ensure that there will be no corruption of the morals of the community and that when minors are admitted to these events no immoral, lewd or lascivious acts will be viewed.

Prior to any person, firm, partnership or organization using any facility or property of the city for events, the applicant, lessee, designee, on an appropriate form prepared by the city manager, shall supply such information as the city manager deems in the best interest of the city to require for the protection of the morals, health, safety and welfare of its inhabitants; and the use of, license, permit, lease or contract for the facility shall be authorized and/or issued by the facility manager only after approval for such use or issuance is given by the city manager following a recommendation for the use and/or issuance to the city manager by the facility manager. To allow the city manager adequate time for careful consideration of the facts presented in the application forms submitted in requests for use of city-owned facilities or property, and to provide time for responses to the facility manager or operator of the city facility or property, application forms must be submitted to the facility manager a minimum of 20 days prior to the proposed commencement date and must be then submitted to the city manager a minimum of ten days prior to the proposed commencement date of the event or events described by the application forms. Such application shall contain the following:

(1) The name, address, place of birth and date of birth of the person making the application and the name of the person, firm, corporation or organization he/she represents.

(2) The names, addresses, places of birth and dates of birth of the persons who are to appear at such facility for the purpose of staging such event (in the case of performers).

(3) The names, addresses, places of birth and dates of birth of the owners or corporate officers of the organization requesting use of the facility.

*__City Code cross references—__Finance, ch. 18; sale or lease of realty, § 18-176 et seq.; public off-street parking facilities, § 35-121 et seq.; parks and recreation, ch. 38; city golf courses, § 38-176 et seq.; stadiums and convention centers, ch. 53.

(4) Will solicitation of contributions be made at any time in connection with this event?

(5) The name of the state or states in which the corporation is chartered.

(6) The names and addresses of the locations where the performers have appeared for the five performances immediately prior to the performance to be booked at the city-owned facility.

(7) Have any of the performers or applicants ever been denied use of any other public or private facilities? If so, where, when and what were the circumstances?

(8) State approximately how long the performers have been engaged in such profession, and whether they operate under any other name, and if so, give the other name.

(9) Has the applicant, any officer of the corporation or organization represented by the applicant, or any persons either presenting or performing in the event applied for, ever been convicted in any court of record of an offense or crime involving moral turpitude or any violation, other than traffic offenses, under either the name being used in connection with this event or any other name previously used? If yes, what name or names and what crime or crimes?

(10) A copy of the contract between the promoter and performers shall be submitted to the city manager upon request.

(11) Explain briefly the nature of the event and the actions to take place in the facility for which application is being made.

(12) What is the estimated number of persons expected to attend each performance? State the number of performances each day, the hours at which each performance will take place, and the dates.

(13) Has the applicant or promoter of the event obtained a city local business tax receipt as required by City Code section 31-26?

Yes _____ No _____

(14) Has it been necessary in the past performances to provide police protection at the facility used? If so, why? Explain briefly.

(b) The above application shall be required prior to use of any facilities or properties of the city for events, including those facilities which are either under a long-term or short-term lease. Such form shall contain the following verbiage:

"The permit, lease or contract for the use of the facility or other municipal property for which this application is being made shall not be effective or of any force and effect until this form is completed to the satisfaction of the city manager or his/her designee. The use of, license, permit, lease, or contract for the facility shall be authorized and/or issued by the facility manager only after approval for such use or issuance is given by the city manager following a recommendation for the use and/or issuance to the city manager by the facility manager. The decision of the city manager, or his/her designee, shall be final and conclusive."

(c) Such application shall be signed, and the address of the applicant, both as to his/her business and residence, shall be given, and he/she shall state that the information contained in such application is true and correct.

(d) The city manager, or his/her designee, may waive the requirement of completing the application if he, after necessary information is obtained from the applicant, promoter, performer, lessee, user or licensee, finds that such event applied for does not involve immoral acts and is not lewd or lascivious, nor is to be presented nor performed by any person having a prior conviction in any court of record of an offense or crime involving moral turpitude.

(e) Any person who falsifies the information required in subsection (a) of this section shall, upon conviction, be punished as provided in section 1-13.

(Code 1967, § 39-37; Code 1980, § 2-362; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13676, § 2, 4-27-17)

City Code cross references—Amusements, ch. 5; parks and recreation, ch. 38; application form to be completed by applicants for certain park permits, § 38-73; stadiums and convention centers, ch. 53.

Sec. 2-778. Affirmative action clause and minority procurement clause to be part of lease of city-owned property.

(a) Notwithstanding any City Code provision to the contrary, in all future leases of city-owned property to private clubs and organizations, the lease agreements shall contain the following language that mandates adoption and implementation of an affirmative action plan by such club or organization:

AFFIRMATIVE ACTION PLAN

An affirmative action plan requires that action be taken to provide equal opportunity, as in hiring or admission, for members of previously disadvantaged groups, such as women and minorities, and often involves specific goals and timetables.

Lessee, in furtherance of providing equal opportunity for previously disadvantaged groups such as minorities, shall institute an affirmative action plan. The minority membership of the lessee club or organization representative of the City of Miami's population shall consist of no less than ten percent of the total membership after the first year of this lease agreement.

Lessee shall then increase its minority membership five percent per year thereafter until such time as said total club or organization membership reflects the minority percentages representative of the City of Miami's population.

Lessee shall provide a minimum of six public service functions for minorities at the club or organization facilities, which shall include three for Hispanics and three for Blacks. Four of the six public service functions shall be scheduled during the summer months of June, July, and August of each year and shall include two for Hispanics and two for Blacks.

(b) There shall also be a provision in every such lease agreement referring to Ordinance No. 10062 related to minority procurement [codified as section 18-136 et seq.] and incorporating such Ordinance No. 10062 within all such agreements thereby mandating the adoption and implementation of the annual goal of 51 percent minority/women business participation in the procurement of goods and services by lessees; further, every such lease agreement shall contain a provision requiring that lessees report annually to the city's office of minority/women business affairs on the attainment of such goals.

(Ord. No. 10540, § 1, 1-12-89; Code 1980, § 2-363)

City Code cross reference—Discrimination by lessees of city-owned property, §§ 18-188—18-190.

Sec. 2-779. Outdoor advertising signs on city-owned property.

(a) Notwithstanding any provision to the contrary elsewhere in the Code or the zoning ordinance of the city, as amended, a permit may be obtained for the erection of outdoor advertising signs on a principal building located on certain city-owned properties identified in this section. Currently, these properties identified herein are venues for large assemblies, performances, exhibitions, or events, having a capacity in excess of 1,000 patrons, and are operated by the city or a 501(c)(3) corporation in which the revenues generated by the activities held at the venue and support its operation. Subject to compliance with any applicable federal, state or county, regulations, or restriction and as may be permitted under any existing lease or management agreement, outdoor advertising signs as described in this section, shall be allowed only at the following three venues:

(1) The James L. Knight Center (400 Southeast 2nd Avenue, Miami, Florida);

(2) The Olympia Theater and Building/Gusman Center for the Performing Arts (174 East Flagler Street, Miami, Florida); and

(3) Miami Children's Museum (980 MacArthur Causeway, Miami, Florida).

(b) Definitions.

Outdoor advertising signs: Sign, in which the size of the sign shall not exceed 672 square feet plus embellishment for a total of 750 square feet per sign, where the sign copy does not pertain solely to the use of the property, a product sold,

or the sale or lease of the property on which sign is displayed and which does not solely identify the place of business as purveyor of the merchandise or services advertised on the sign.

Outdoor advertising sign operator: Entity that constructs and/or operates the outdoor advertising sign.

Permit holder: Permit holder is the outdoor advertising sign operator and the lessee in the case of city-owned property that is subject to a leasehold interest or a licensee in the case of a city-owned property that is subject to a license agreement, or the property manager in the case of city-owned property that is subject to a management agreement.

Sign: A sign, for purposes of this section, is any identification, description, illustration, or device, illuminated or non-illuminated, that is visible from a public right-of-way or is located on city-owned property and visible to the public and which directs attention to a product, place, activity, person, institution, business, message or solicitation, including any permanently installed or situated merchandise, with the exception of window displays, and any letter, numeral, character, figure, emblem, painting, banner, pennant, placard, or temporary sign designed to advertise, identify or convey information.

For purposes of this section, a sign can be an outdoor advertising sign where the sign copy does not pertain to the use of the property, a product sold, or the sale or lease of the property on which the sign is displayed and which does not identify the place of business as purveyor of the merchandise or services advertised. Any sign authorized pursuant to this section is permitted as an accessory use to a principal commercial use.

Sign, animated: Any sign or part of a sign which changes physical position by any movement, or rotation, or which gives the visual impression of such movement or rotation.

Sign face: The entire face(s) of the sign including all text, artwork, and commercial sponsorship messages incorporated into a sign.

Sign, flashing: A sign which gives the effect of constant intermittent movement, or which changes to give more than one visual effect in less than eight seconds.

Sign, ground or freestanding: Any non-movable sign not affixed to a building, a self-supporting sign. Ground signs shall be construed as including signs mounted on poles, or posts in the ground, signs on fences, signs on walls other than the walls of buildings, signs on sign vehicles, portable signs for placement on the ground (A-frame, inverted T-frame and the like), signs on or suspended from tethered balloons or other tethered airborne devices, and signs created by landscaping.

Sign, revolving or whirling: A revolving or whirling sign is an animated sign, which revolves and turns, or has external sign elements that revolve or turn. These signs may be power-driven or propelled by the force of wind or air.

(c) Criteria for approving the erection of outdoor advertising signs on city-owned property. Signs authorized under this section may be internally illuminated, but shall not be animated, revolving, whirling, or flashing signs. Moreover, any change of copy must not take place at intervals more frequent than eight seconds. The sign shall be integrated into the architecture or wall of the building, and shall not be a ground or freestanding sign or cantilever from the building. The design of the sign shall be consistent with the operation of the underlying venue, as determined by the directors of planning and zoning.

Spacing between signs on city-owned [property]. A sign shall not be located within 1,000 feet of another legally permitted sign oriented towards the same side of a street or the state highway, as applicable. The distance shall be measured in accordance with Rule 14-10.006(4), Florida Administrative Code ("F.A.C.")(2012) (i.e. measured along the edge of pavement of the main traveled way).

Illumination on Virginia Key Beach Park. The illumination of a sign on Virginia Key Beach Park shall only be by indirect lighting and shall only be permitted from 6:00 p.m. to midnight

Standard Time and 7:00 p.m. to midnight Day Light Savings Time, and only in accordance with Miami-Dade County Code Sections 33-96 and 33-107, as amended. Lumens need to be compliant with environmental standards for nesting sea turtles and other endangered animals.

(d) Process for obtaining an outdoor advertising sign permit for city-owned property. Locations listed in subsection 2-779(a) are appropriate for an outdoor advertising sign. If under the existing lease, management agreement or license, the lessee, property manager and/or licensee is authorized under the existing agreement to erect a sign, such permit shall be reviewed and approved and a permit issued by the directors of planning and zoning, pursuant to the criteria stated herein:

(1) The size of any outdoor advertising sign will comply with the size limitations placed by the Miami-Dade County Code, as amended, and shall not exceed 672 square feet plus embellishment for a total of 750 square feet per sign.

(2) Outdoor advertising signs may be internally illuminated, but flashing, intermittent, rotating, or moving lights are prohibited. Lighting which causes glare or impairs the vision of the driver of any motor vehicle, or which otherwise interferes with any driver's operation of a motor vehicle is prohibited. Furthermore, a sign may not be illuminated so that it interferes with the effectiveness of, or obscures, an official traffic sign, signal or device.

(3) Mechanically changeable and digital display panels are allowed provided the static display time is at least eight seconds, and the time to change from one message to another is no greater than two seconds.

(4) The specific size, configuration and location of the sign and its supporting structure must comply with all criteria set forth above and the director of planning and zoning shall also evaluate the proposed sign for compliance with the criteria set forth herein and in Article 4, Table 12, design review criteria of the zoning ordinance of the city, as applicable.

(5) The outdoor advertising sign operator must be a co-applicant with the lessee, manager, or licensee.

(6) In addition to a permit issued pursuant to this section, the permit holder must obtain all other necessary permits to construct and operate the sign in compliance with City Code and state and federal law.

(e) Permit fee for the erection of an outdoor advertising sign on city-owned property.

(1) Permit fee. Any entity that collects rent, fees, or income from a sign on city property, including, but not limited to the permit holder and the outdoor advertising sign operator, shall pay to the city the permit fee described herein.

The annual permit fee shall be an amount equal to $7.00 per square foot of sign face multiplied by 12 months per year for each sign, provided that such annual permit fee shall be no less than the minimum $48,000.00 or greater than $63,000.00 per annum (the "permit fee"). The initial permit fee shall be due in its entirety upon the issuance of a temporary certificate of occupancy or certificate of occupancy for the structure upon which the sign is to be erected, whichever is issued first. In any event, the annual permit fee must be paid prior to placing any advertising on the sign. In the event any permit fee is not paid in its entirety, the city may exercise any of the remedies set forth in subsection 2-779(f). Fees shall be prorated based on the date of issuance of the TCO or CO, or in any event, no later than the date of the first advertisement on the sign, calculated by calendar year.

(2) Renewal of permit fees. The permit holder shall pay or cause the annual permit fee to be paid in quarterly installments until such time it is paid in full. Sign permits shall be void if quarterly payments are not received within ten business days

after each quarterly payment is due. The payment year shall run on a calendar year.

Along with the first quarter permit fee each permit holder shall submit demonstration of up to date documentation of public liability insurance as approved by the department of risk management, and continued effectiveness of a bond or letter of credit in the amount of $50,000.00. Any payments made more than ten days after the date due shall be considered late and shall accrue interest at the rate of 18 percent for 45 days. If payment is not received by the 45th day, the city shall immediately rescind the sign permit.

(3) Revenue sharing agreements allowing for a percentage of gross revenues between the city as one party and any lessee, manager or licensee of a city-owned property or the outdoor advertising sign operator must be approved by the city commission.

(f) Termination, revocation, or rescission of outdoor advertising sign permit.

(1) Any sign permit issued under this section constitutes the exercise by the city of its proprietary authority, and is subject to termination and revocation for any cause in the best interest of the city. Any sign that is permitted on city-owned property under this section which is found to be in violation of the conditions of the sign permit or any federal, state, or county regulation or restriction is subject to removal by the city at the permit holder's expense.

(2) The issuance of a sign permit under this section shall be conditioned upon the permit holder, or in the case of city-owned property that is subject to a management agreement, the sign company, executing a hold-harmless and indemnification, approved by the office of the city attorney, that will acknowledge that the sign permit does not confer any vested rights and hold the city and its officials, employees, contractors, agents or assigns harmless from any loss or damage to the sign if it is removed by the city. The permit holder will expressly agree as a condition of the permit that the sole recourse against the city and its officials, employees, contractors, agents or assigns will be the return of the sign, if available, in whatever condition it is found.

(3) If in any event the outdoor advertising sign operator fails to utilize the permitted structure for outdoor advertising for a period of more than six months, the city manager shall rescind the outdoor advertising sign permit.

(4) The city may immediately rescind a sign permit for non-compliance with any provision of the City Code, including but not limited to, subsection 2-779(e).

(5) Upon rescission of a sign permit, if the permit holder fails to remove the sign, the city may:

a. Remove the structure, equipment or improvements related to the sign and may draw upon the bond or letter of credit to ensure the same; or

b. Retain ownership of any sign or structure on the property.

(g) Opt-out provision. The city opts out of Chapter 33, Article 6 of the Miami-Dade County Code of Ordinances, as amended, per Section 33-121.11 as applicable to these signs. The city has adopted the rules contained in this article, to regulate these signs in proximity to expressways.

(h) Restrictions on signs.

(1) *Hours of operation*. The sign face may operate only during the hours of 6:00 a.m. to 11:00 p.m. Notwithstanding the foregoing, if an event is taking place in Downtown Miami, the sign face may operate only during the hours of 6:00 a.m. to 12:00 a.m. When the sign face is not in operation, the screen shall be

black but an unobtrusive logo listing the name of the venue located at the site can be present.

(2) *Modulation and ambient lighting.*

a. From sunset to sunrise, sign face shall be modulated so that the brightness does not exceed 500 nits.

b. The time of sunset to sunrise shall be established by the Miami Office of the National Weather Service.

c. The sign face must have ambient light monitors to automatically adjust the brightness level of the sign face based upon the ambient lighting conditions.

d. The maximum increase to ambient lighting shall be less than 0.3 footcandles at 250 feet from the sign face.

(Ord. No. 13321, § 2, 5-24-12; Ord. No. 13536, § 2, 7-23-15; Ord. No. 14128, § 2, 1-12-23; Ord. No. 14140, § 2, 2-9-23; Ord. No. 14284, § 2, 5-23-24)

Editor's note—Prior to the reenactment of section 2-779 by Ord. No. 13321, § 2, adopted May 24, 2012, Ord. No. 12623, § 4, adopted December 9, 2004, repealed section 2-779 in its entirety, which pertained to the property and asset review committee and derived from Ord. No. 11130, § 7, adopted March 24, 1994; the Code of 1980, § 2-364, and Ord. No. 11564, § 4, adopted October 28, 1997.

Subsequently, Ord. No. 14284, § 2, adopted May 23, 2024, changed the title of section 2-779 from "Outdoor advertising signs and on-site signage on government-owned property" to "Outdoor advertising signs on city-owned property." The historical notation has been preserved for reference purposes.

Sec. 2-780. Gambling prohibition required in leases of city-owned property.

For purposes of this section, the following word shall be defined as provided herein:

Gambling shall be the act of playing or engaging in any game of cards, keno, roulette, faro or other game of chance, at any place, by any device whatsoever, for money or any other thing of value.

The city commission is prohibited from favorably considering any lease or proposed amendment of an existing lease of city-owned property if the lease or lease amendment does not contain language prohibiting gambling and other games of chance from occurring on the property. Nothing in this section shall be construed as altering or impairing existing leases of city-owned property that contain language contemplating the possibility of future gambling on the leased property. (Ord. No. 13417, § 2, 11-21-13)

Secs. 2-781—2-810. Reserved.

ARTICLE X. CODE ENFORCEMENT*

Sec. 2-811. Definitions.

For the purposes of this article, the following terms shall have the meanings respectively ascribed to them by this section:

Board means any of the code enforcement boards or special magistrate(s), when serving in lieu of the board, appointed pursuant to the applicable provisions of this Code.

Code means the provisions of technical codes in the city, including but not limited to local business tax receipts, fire, building, zoning and sign codes. "Code" also includes past and future duly adopted amendments to existing city technical codes and also includes technical codes and standards which have been or may be expressly incorporated, approved or adopted by reference in any city technical code together with all past and future duly amended provisions of such technical codes and standards.

Code inspector means the authorized agent or employee of the city so designated in section 2-813 whose duty it is to ensure code compliance.

Petitioner means the city.

Repeat violation means a violation of a provision of a code or ordinance by a person who has been previously found through a code enforcement board or any other quasi-judicial or judicial process, to have violated or who has admitted

*__County Code cross references—__Code enforcement, ch. 8cc.

State law reference—Municipal code enforcement boards act, F.S. §§ 162.01—162.12.

violating the same provision within five years prior to the violation, notwithstanding the violations occur at different locations.

Special magistrate(s) means a person(s) appointed by the city commission, or pursuant to city commission authorization, to preside over the code enforcement hearings in the same capacity as the code enforcement board. As many special magistrates as deemed necessary by the city manager shall be appointed. The special magistrate(s) shall have the same status as an enforcement board, pursuant to Florida Statute Chapter 162. The special magistrate(s) shall be an attorney at law admitted to the practice law in the state, a member in good standing of the Florida Bar, shall possess outstanding reputations for civic pride, interest, integrity, responsibility and business or professional ability, and have significant knowledge of the City Code enforcement matters and City Code. For purposes of this chapter, and all actions taken pursuant to its provisions, whenever a special magistrate serves, instead of the enforcement board, including, but not limited to, holding hearings and assessing fines, costs, and liens, the terms "special magistrate" shall be synonymous with the term "board."

(Ord. No. 9224, § 1, 12-17-80; Ord. No. 9470, § 1, 7-29-82; Ord. No. 10720, § 1, 3-22-90; Code 1980, § 2-391; Ord. No. 11722, § 2, 11-17-98; Ord. No. 12547, § 2, 6-24-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 12902, § 2, 3-22-07; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-812. Code enforcement board composition; terms; organization; role of city attorney.

(a) The city commission may appoint one or more seven-member code enforcement boards. The city commission may appoint up to two alternate members for each code enforcement board to serve on the board in the absence of board members and to assure a quorum at every meeting. Members of the boards shall be residents of the city. Appointments shall be made in accordance with the City Charter on the basis of experience or interest in the subject matter jurisdiction of the boards. The membership of the boards shall whenever possible consist of an architect, a businessperson, an engineer, a general contractor, a subcontractor, and a realtor.

(b) The initial appointments to each code enforcement board shall be as follows:

(1) Two members appointed for a term of one year.

(2) Three members appointed for a term of two years.

(3) Two members appointed for a term of three years.

(4) One alternate member shall be appointed to each code enforcement board for an initial term of two years, the other alternate member shall be appointed to an initial term of one year. Thereafter all members and alternate members shall serve terms of three years each.

Any member or alternate member may be reappointed from term to term upon approval of a majority vote of the city commission. Appointments to fill any vacancy on any code enforcement board shall be for the remainder of the unexpired term of office. If a member fails to attend three successive meetings or a total of more than four meetings within a calendar year, the member shall automatically forfeit his/her appointment. The city clerk shall inform the city commission in writing of such forfeiture, and the city commission shall promptly fill such vacancy. The members shall serve in accordance with the City Charter and may be suspended and removed by the city commission for good cause shown. An alternate member may be reappointed from term to term by a majority vote of the city commission. Any alternate may be appointed as a member of the seven member board upon the expiration of the term of a full-time member, or may be appointed to fill the remainder of the unexpired term of a full-time board member should a vacancy be created. When a vacancy is created for an alternate position, a new alternate member shall be promptly appointed to fill such vacancy for the remainder of the alternate term or for an initial term if the alternate term has expired.

(c) The members of the board shall elect a chairperson, who shall be a voting member, from among the members of the board. The presence of four or more members shall constitute a quorum of the board, and said four members may include alternate board members. Members shall serve without compensation, but may be reimbursed for such travel, mileage, and per diem expenses as may be authorized by the city commission or as otherwise provided by law.

(d) The city attorney, an assistant city attorney or the city attorney's designee acting by and through the city attorney shall represent the city by presenting cases before the board.

(e) No certificate of use shall be issued or renewed for a specific location or unit thereof which is the subject of an ongoing enforcement procedure pursuant to sections 2-814 and 2-823, if the subject violation is for illegal construction activity at said specific site. The certificate of use shall be withheld by the zoning administrator until such time as said violation is corrected and all attendant fines are paid in full, or the code enforcement board or special magistrate or a court of competent jurisdiction issues an order determining that the subject construction activity is not illegal under applicable law. For purposes of this section, illegal construction activity shall mean the construction, erection, alteration, or repair of any building, structure, or property, including signage, demolition, excavation, or removal of any element thereof, without first obtaining the requisite permit therefor from the city.

(Ord. No. 9224, § 2, 12-17-80; Ord. No. 9470, § 1, 7-29-82; Ord. No. 10370, § 1, 1-14-88; Ord. No. 10720, § 1, 3-22-90; Ord. No. 11130, § 8, 3-24-94; Ord. No. 11148, § 2, 5-5-94; Code 1980, § 2-392; Ord. No. 11722, § 2, 11-17-98; Ord. No. 12230, § 1, 5-9-02; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-813. Code inspector.

The city manager and his/her designated agents, acting by and through him/her, are hereby authorized and it is his/her duty to ensure code compliance.

(Ord. No. 9224, § 3, 12-17-80; Ord. No. 9470, § 1, 7-29-82; Ord. No. 10370, § 1, 1-14-88; Ord. No. 11213, § 2, 2-9-95; Code 1980, § 2-393)

Sec. 2-814. Enforcement procedure.

(a) It shall be the duty of the individuals designated in section 2-813 to initiate enforcement proceedings of the various code violations. Neither the board, nor any individual member of the board, nor a special magistrate shall have the power to initiate such enforcement proceedings.

(b) Except as provided in subsection (c) hereof, if a violation of the code is found, the code inspector shall notify the violator in writing and give him or her a reasonable time to correct the violation. Should the violation continue beyond the time specified for correction, the code inspector shall request a hearing in writing pursuant to the procedure outlined in section 2-815 hereof. If approved by the city attorney, the violation will be scheduled for a hearing and written notice shall be given to said violator as provided herein. If the violation is corrected and then recurs or if the violation is not corrected by the time specified for correction by the code inspector, the case may be presented to the board or special magistrate, even if the violation has been corrected prior to the hearing, and notice shall so state.

(c) If a violation is found to have been repeated by a violator pursuant to F.S. § 162.04(5), or who admitted to violating the same provision within five years prior to the violation, the code inspector shall notify the violator that the violation must be cured immediately. The code inspector, upon notifying the violator of the repeated violation, shall then notify the code enforcement board or special magistrate by requesting an immediate hearing. The code enforcement board or special magistrate, through its clerical staff, shall promptly schedule a hearing before the board or special magistrate and shall provide notice pursuant to F.S. § 162.12. The case may then be presented to and sanctioned by the enforcement board or special magistrate even if the repeated violation has been corrected prior to the hearing, and notice shall so state. Upon finding that the same violation has been repeated by the same violator(s), the board or special magistrate may order the violator(s) to pay a fine of not more than provided for in section 2-817 for each day the repeated violation continues beginning with the date the repeat violation is found to have occurred by the code inspector.

(d) If the code inspector has reason to believe that a violation presents a serious threat to the public health, safety and welfare or if the violation is irreparable or irreversible in nature, the code inspector shall make a reasonable effort to notify the violator and may immediately notify

the board or special magistrate and request a hearing. The code inspector, with the approval of the city attorney, may proceed directly with the procedure outlined in section 2-815 without following the procedures of subsection (b), above.
(Ord. No. 9224, § 4, 12-17-80; Ord. No. 9470, § 1, 7-29-82; Ord. No. 10370, § 1, 1-14-88; Ord. No. 10720, § 1, 3-22-90; Code 1980, § 2-394; Ord. No. 12547, § 2, 6-24-04; Ord. No. 12902, § 2, 3-22-07; Ord. No. 12984, § 2, 4-10-08; Ord. No. 13103, § 2, 10-8-09; Ord. No. 13881, § 2, 12-12-19; Ord. No. 13992, § 2, 4-22-21)

Sec. 2-815. Conduct of hearing.

(a) The chairperson of the board or special magistrate may call hearings. Hearings may also be called by written notice signed by at least three members of the seven-member enforcement board or by two members of the board and one alternate member or by the special magistrate. The board or special magistrate at any hearing may set a future hearing date. The board shall meet at least once every month, but may meet more often as the demand necessitates. The special magistrate shall hold hearings as necessary. Minutes shall be kept of all hearings. All hearings and proceedings shall be open to the public. The city commission, by and through the city manager, shall provide all necessary clerical and administrative staff support to the board or special magistrate, including space and necessary expenses which may be reasonably required by the board or special magistrate for the proper performance of its duties.

(b) The chairperson of the board or special magistrate, prior to hearing the cases on the agenda of the day shall entertain special business or announcements forthcoming from the city attorney. Announcements or special business may include a request to reopen a case over which the board or special magistrate still retains jurisdiction, and/or a request for an extension of time on a compliance date. All special business cases presented to the board or special magistrate shall be reviewed by the city attorney or his/her assistants prior to the hearing.

(c) Each case before the board or special magistrate shall be presented by the city attorney, an assistant city attorney or the city attorney's designee acting by and through the city attorney after he/she determined that there is a legally sufficient case to be presented. If the city attorney or assistant city attorney or the city attorney's designee prevails in prosecuting the case before the board or special magistrate, the city attorney may be entitled to recover all prosecution costs incurred and such costs may be included in the lien authorized under section 2-817.

(d) The board or special magistrate shall proceed to hear the cases on the agenda for that day. All testimony shall be under oath and shall be recorded by a video or audio recording device. The board or special magistrate shall take testimony from the code inspector and other witnesses necessary to the case. The alleged violator(s) and owner(s) of the subject property shall be given an opportunity to testify if desired but may not be compelled to offer testimony or any evidence whatsoever. As in any administrative hearing, formal rules of evidence shall not apply but fundamental due process shall be observed and govern said proceedings.

(e) At the conclusion of the hearing, the board or special magistrate shall issue findings of fact, based upon the evidence presented and made part of the record and conclusions of law, and shall issue an order affording the proper relief consistent with the powers granted herein. If the hearing is before the board, the findings shall be by motion approved by a majority of those members and alternate members present and voting, except that at least four members of the board must vote in order for the action to be official, and said four members may include alternate board members. Any motion failing to obtain the above-required vote shall preclude the relief requested by the petitioner before the board as to the administrative remedies afforded in this article. If the hearing is before the special magistrate, the special magistrate shall issue the findings at the time of the hearing or within 15 days of the hearing. If an appeal is taken, the record shall be presented to the court on appeal and shall be subject to review. The order may include a notice that it must be complied with by a specified date and that a fine may be imposed if the order is not complied with by said date. If the order is not complied with by said date, a

certified copy of such order shall be recorded in the public records of the county and shall constitute notice to any subsequent purchasers, successors in interest, or assigns that the violation concerns real property, and the findings therein are binding upon them as well as the violator and as such, constitutes a lien on said property. If an order is issued pursuant to this subsection and is complied with before or by the date specified in the order, the enforcement board or special magistrate shall acknowledge compliance with such order and no notice shall be recorded in the public records. An affidavit acknowledging compliance shall be issued to the violator and to the board or special magistrate. No hearing shall be required by the board or special magistrate to acknowledge compliance.

(f) Once the alleged violator(s) has been properly noticed as to the hearing before the board or special magistrate and if the violator(s) fails to appear, the board or special magistrate may proceed with a hearing on the merits of the alleged violation. Any findings or orders resulting from such hearing are valid and binding upon said violator(s) if a violation is found to exist.

(g) Once the owner(s) of the property at which the alleged violation has occurred has been properly notified of the hearing before the board or special magistrate and fails to appear, the board or special magistrate may proceed with a hearing on the merits of the alleged violation and any findings or orders are valid and binding against said owner(s).

(h) If a corporation is either the violator or the owner of the property, notice as outlined herein shall be effected upon the designated registered agent. If the corporation is a foreign corporation that has failed to comply with F.S. § 48.091, notice shall be permitted to be served upon any employee at the corporation's place of business or any agent transacting business for it in this state.

(Ord. No. 9224, § 5, 12-17-80; Ord. No. 9470, § 1, 7-29-82; Ord. No. 10370, § 1, 1-14-88; Ord. No. 10720, § 1, 3-22-90; Code 1980, § 2-395; Ord. No. 12230, § 1, 5-9-02; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13323, § 1, 6-14-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-816. Powers of the code enforcement board and special magistrate; miscellaneous administrative directions.

(a) The board and the special magistrate shall have the power to:

(1) Adopt rules for the conduct of hearings pursuant to this article.

(2) Subpoena witnesses and documents to appear at its hearings; notify violators to appear before the board or special magistrate. Subpoenas may be served by the sheriff of the county or the police department of the city.

(3) Subpoena evidence.

(4) Take testimony under oath.

(5) Issue orders having the force of law commanding whatever steps are necessary to bring a violation into compliance.

(b) At the hearing before the board or the special magistrate, the alleged violator and owner of the subject property shall be given the opportunity to be represented by an attorney, to call witnesses, to present documentary evidence, and to otherwise properly present his/her position or defense.

(c) All forms, notices, etc., required by this article are to be drawn up and approved by the city attorney.

(d) All initial notices to violators and owners pursuant to this article shall be sequentially numbered by the clerk of the board or special magistrate. Each department shall keep records of all cases initiated by that department.

(e) The board or special magistrate shall have a clerk appointed by the city manager who shall be designated clerk of the code enforcement board or special magistrate. Among other duties, the clerk shall be custodian of all cases and documents pertaining thereto and shall have the authority to certify orders and other documents

issued by the board or special magistrate and to issue subpoenas in the name of the board or special magistrate for service of process. The clerk shall ensure that fines are recorded in the public record, if they are not timely paid, and shall notify the city attorney of any lien that has not been paid after the expiration of two years from the date of filing such lien. The clerk may notify the city attorney that a lien has not been paid at any time after a lien has been filed.
(Ord. No. 9224, § 6, 12-17-80; Ord. No. 9470, § 1, 7-29-82; Ord. No. 10370, § 1, 1-14-88; Code 1980, § 2-396; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13881, § 2, 12-12-19)

Editor's note—Ord. No. 13881, § 2, adopted December 12, 2019, changed the title of section 2-816 from "Powers of the code enforcement board and special master; miscellaneous administrative directions" to "Powers of the code enforcement board and special magistrate; miscellaneous administrative directions." The historical notation has been preserved for reference purposes.

Sec. 2-817. Administrative costs, fines; liens.

(a) The board or special magistrate, upon notification by the code inspector that an order has been complied with within the time specified in the order, shall accept such notification as acknowledgment of compliance and no fines shall be imposed.

(b) The board or special magistrate, upon notification by the code inspector or city attorney that an order of the board or special magistrate has not been complied with by the set time for compliance, may order the violator(s) to pay a fine as follows:

(1) Residential properties. By the board and/or special magistrate for not more than $250.00 per day that continues past the date of the order for compliance by the notice of violation and not more than $500.00 per day for a repeat violator.

(2) Non-residential/commercial properties. By the board only for not more than $1,000.00 per day per violation that continues past the date of the order for compliance and not more than $5,000.00 per day per violation for a repeat violator. Non-residential shall also mean any residential property being used outside the scope of its allowable use pursuant to Ordinance No. 13114, the zoning ordinance of the city, as amended ("Miami 21 Code").

(3) If the violation, whether the property is homestead, non-homestead, or commercial and is a violation of chapter 4 of the City Code, titled "Alcoholic beverages," chapter 17, article I of the City Code, titled "Environmental protection/tree protection in general," chapter 22 of the City Code, titled "Garbage and other solid waste," or chapter 62, article XIII, division 5 of the City Code, titled "Planning and zoning/planning and zoning approval for temporary uses and occupancies; permit required/murals," then the fine issued by the board shall not exceed $1,000.00 per day per violation for a first time offender and not more than $5,000.00 per day per violation for a repeat violator, and up to $15,000.00 per violation if the code enforcement board or special magistrate finds the violation to be irreparable or irreversible in nature in accordance with the criteria set forth in subsection (c) below.

(c) In determining the amount of the fine, if any, the board or special magistrate shall consider the following factors:

(1) The gravity of the violation.

(2) Any actions taken by the violator to correct the violation; and

(3) Any previous violations committed by the violator.

(d) Upon request by a property owner/violator, an outstanding fine/lien imposed by the code enforcement board or special magistrate may be mitigated based upon the chart below.

(1) The code enforcement board or special magistrate may consider any other criteria it deems relevant other than as listed in subsection 2-816(c) to determine whether the mitigated amount will be no less

than the minimum or no more than a maximum amount as stated in the chart below:

Minimum Mitigation Amount	Property Type/Use
$5,000.00	Single Family—Homestead/Owner Occupied
$5,000.00	Duplex—Homestead/Owner Occupied
$7,500.00	Vacant Lot
$10,000.00	Single Family—Non Homestead
$10,000.00	Duplex—Non Homestead
$15,000.00	Triplex/Fourplex; Apartment Building, Condominium, all other Commercial
Reduction to $0.00	May only be accomplished through Unanimous Vote at a Hearing by the Code Enforcement Board for Single-Family or Duplex Properties
Maximum Mitigation Amount	**Type of Violation**
20% of total fine/lien	Non-Repeat Violation
30% of total fine/lien	Repeat Violation

(2) If the subject fine/lien is reduced and a violator fails to pay said reduced fine no later than 30 days from the date the mitigation order is entered, then the original fine/lien shall be reinstated. In addition to daily fines, violators shall pay cost(s) of prosecution as ordered by the code enforcement board, if any, which have been incurred by the city with respect to such violation. The mitigated amount may not be paid installments.

(3) Exceptions. The above chart and restrictions shall not apply to:

a. 501(c)(3) and eleemosynary organizations and single-family and duplex residential properties which are now vacant land but whose past, immediate use was as a single family or duplex residential property shall be allowed to obtain mitigation in the same manner as properties under subsection (d)(1). Eleemosynary is defined as a private corporation created for charitable and benevolent purposes, and

b. Vacant land whose immediate, past use was as a single-family or duplex residential property shall be allowed to obtain mitigation in the same matters as properties pursuant to subsection (d)(1).

A maximum mitigation percent greater than 31 percent or denial of mitigation by the code enforcement board or special magistrate shall be made with specific findings as it relates to a repeat violation, or a violation that created a danger to the health, safety and welfare of persons or property, or a flagrant, intentional violation of the City Code.

(4) Any property owner may request in writing to the city manager or designee the ability to mitigate to the maximum amount as prescribed in the subsection 2-817(d)(1) chart. The request shall state with specificity the reason for the request. The request shall be presented to the code enforcement board or special magistrate at a regularly scheduled meeting for approval. If the code enforcement board or special magistrate denies the request, the property owner may still seek a mitigation hearing before the code enforcement board or special magistrate as set forth herein.

(e) A certified copy of an order imposing a fine shall be recorded in the public records and thereafter shall constitute a lien against the land on which the violation exists and upon any other real or personal property owned by the violator and upon petition to the circuit court such order may be enforced in the same manner as a court judgment by the sheriffs of this state, including levy against personal property, but

shall not be deemed otherwise to be a judgment of a court except for enforcement purposes. Any fine imposed pursuant to this part shall continue to accrue until the violator comes into compliance or until judgment is rendered in a suit to foreclose on a lien filed pursuant to this section, whichever occurs first. After three months from filing of any such lien which remains unpaid, the city attorney shall be automatically authorized by the board or the special magistrate to foreclose on the lien and the city shall make a determination within 45 days whether to proceed with foreclosure action. Once a determination to foreclose has been made, the city attorney shall promptly institute foreclosure proceedings. No lien created pursuant to F.S. ch. 162 may be foreclosed on real property which is a homestead under section 4, article X of the state constitution. The city attorney shall report to the board or special magistrate at each meeting with respect to any foreclosure actions that have been instituted as well as any decision not to foreclose with respect to a lien.

(f) No lien provided by the Local Government Code Enforcement Boards Act shall continue for a longer period than 20 years after the certified copy of an order imposing a fine has been recorded, unless within that time an action to foreclose on the lien is commenced in a court of competent jurisdiction. In an action to foreclose a lien, the prevailing party is entitled to recover all costs, including a reasonable attorney's fee, that it incurs in the foreclosure. The continuation of the lien affected by the commencement of the action shall not be good against creditors or subsequent purchasers for valuable consideration without notice, unless a notice of lis pendens is recorded.

(g) The board or special magistrate may issue an order requiring payment of such administrative costs not to exceed $52.50 when said costs are found to have been incurred as a result of necessary actions taken by the petitioner to bring about code compliance.

(h) (1) Notwithstanding any other provision contained in the Code, the city manager may authorize a subordinate lien position on loans for the finance or refinance of construction improvements, or release or satisfy any lien placed on a property by the city or by any of its agencies and instrumentalities if:

(i) The property is used for the development or rehabilitation of affordable homeownership or rental housing projects by a project sponsor that has been allocated funds by the city commission or the city housing and commercial loan committee for such project, or

(ii) The property is located in a neighborhood development zone or its equivalent as defined within the effective community development block grant program approved by the city and accepted by the United States Department of Housing and Urban Development, as may be amended, and is used for the development or rehabilitation of affordable homeownership or rental housing projects in accordance with the city's five-year consolidated plan, as amended.

(2) City liens which may be subordinated, released or satisfied include but are not limited to: demolition liens, lot clearing liens, solid waste liens, code enforcement liens and nuisance abatement liens.

(3) (i) The lien or liens on the property shall not be released or satisfied, but may be subordinated, unless all certificates of occupancy required for the project, or their equivalent, are issued. The lien or liens on the property shall not be subordinated, released or satisfied if, in the judgment of the city manager, circumstances relating to the project make the release or satisfaction inappropriate or unwarranted.

(ii) If a certificate of occupancy for an affordable housing project is not issued within 24 months of the lien or liens being subordinated, the subordination of the lien or liens shall become null and void unless

the city manager approves an extension for the certificate of occupancy to be issued.

(4) The city shall record any subordination, release or satisfaction in the public records of the county.

(5) The city shall not release or satisfy any lien on a property owned by the person whose actions resulted in the lien being placed on the property. The city shall not release or forgive any lien on a property owned by an immediate family member or a firm, corporation, partnership or business entity of a person whose actions resulted in the lien being placed on the property. For purposes of this section, the term "person" shall mean any individual, business, corporation partnership, firm, organization or other type of entity or association. For purposes of this section, the term "immediate family member" shall mean spouse, child, parent, niece, nephew, aunt, uncle, grandparent, grandchild or anyone having one of these relationships by law.

(6) Release or subordination of a lien under this section shall not prohibit the city from collecting the underlying fine/sum due by other legal means. Release of a lien pursuant to this section shall not be deemed to mean that a violation underlying the lien has been cured.

(Ord. No. 9224, § 7, 12-17-80; Ord. No. 9470, § 1, 7-29-82; Ord. No. 10370, § 1, 1-14-88; Ord. No. 10720, § 1, 3-22-90; Ord. No. 11214, § 2, 2-9-95; Code 1980, § 2-397; Ord. No. 12272, § 2, 8-22-02; Ord. No. 12360, § 1, 5-8-03; Ord. No. 12500, § 2, 3-11-04; Ord. No. 12547, § 2, 6-24-04; Ord. No. 12902, § 2, 3-22-07; Ord. No. 12984, § 2, 4-10-08; Ord. No. 13103, § 2, 10-8-09; Ord. No. 13142, § 2, 2-11-10; Ord. No. 13225, § 1, 11-18-10; Ord. No. 13881, § 2, 12-12-19; Ord. No. 13950, § 2, 12-10-20; Ord. No. 13992, § 2, 4-22-21; Ord. No. 14017, § 2, 9-13-21; Ord. No. 14057, § 2, 3-10-22; Ord. No. 14123, § 2, 11-17-22; Ord. No. 14319, § 2, 10-15-24)

Sec. 2-818. Appeal.

An aggrieved party, including the city, may appeal a final administrative order of the board or special magistrate to the circuit court of the eleventh judicial circuit of Florida. Such an appeal shall not be a hearing de novo but shall be limited to appellate review of the record created before the board or special magistrate. An appeal shall be filed within 30 days of the execution of the order to be appealed.

(Ord. No. 9224, § 8, 12-17-80; Ord. No. 9470, § 1, 7-29-82; Ord. No. 10370, § 1, 1-14-88; Code 1980, § 2-398; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-819. Notices.

(a) All notices required by this article shall be in writing and furnished by certified mail, return receipt requested or by hand delivery by the sheriff or other law enforcement officer, code inspector, or designated agent acting by and through the code inspector. In all cases the owner of the subject property may be notified in addition to anyone else anyone else also charged with an alleged violation occurring on the subject property. If notice is furnished by hand delivery, the notice can be left at the violator's usual place of abode with any person residing therein who is 15 years of age or older and informing that person of its contents. If the violator is a corporation, the notice can be delivered to the registered agent.

(b) In addition to providing notice as set forth in subsection (a) hereof, at the option of the code enforcement board or special magistrate, notice may also be served by publication, or posting, as follows:

(1) Such notice shall be published once during each week for four consecutive weeks (four publications being sufficient) in a newspaper of general circulation in Miami-Dade County. The newspaper shall meet such requirements as are prescribed under F.S. ch. 50, for legal and official advertisements.

(2) Proof of publication shall be made as provided in F.S. §§ 50.041 and 50.051.

(3) Proof of posting shall be verified by affidavit of the person posting the notice, which affidavit shall include a copy of the notice posted and the date and places of

its posting. Such notice shall be posted for at least ten days in at least two locations, one of which shall be the property upon which the violation is alleged to exist and the other of which shall be City Hall.

(4) Notice by publication or posting may run concurrently with, or may follow, an attempt or attempts to provide notice by hand delivery or by mail as required under subsection (a).

(c) Evidence that an attempt has been made to hand deliver or mail notice as provided in subsection (a), together with proof of publication or posting as provided in paragraphs (2) and (3) of subsection (b) hereof, shall be sufficient to show that the notice requirements of this article have been met, without regard to whether or not the alleged violator actually received such notice.
(Ord. No. 9224, § 9, 12-17-80; Ord. No. 10370, § 1, 1-14-88; Ord. No. 10798, § 1, 10-18-90; Code 1980, § 2-399; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-820. Non-exclusivity of remedy.

The provisions of this article are not the exclusive remedy or means for enforcement of the Code of the city. The city's access to the courts of the state is neither precluded nor prohibited by the enactment of this article.
(Ord. No. 9224, § 10, 12-17-80; Code 1980, § 2-400; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-821. Civil offenses and penalties.

The violation of any provision of any city ordinance or City Code section shall constitute a civil offense and be punishable by civil penalty in the amount as prescribed in section 2-829, or in an amount deemed appropriate by a special magistrate upon review and a finding that the violation exists or existed.
(Ord. No. 10954, § 1, 3-12-92; Code 1980, § 2-401; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-822. Reserved.

Editor's note—Ord. No. 12547, § 2, adopted June 24, 2004, repealed § 2-822 in its entirety, which pertained to qualifications, appointment and removal of hearing officers and derived from Ord. No. 10954, § 1, adopted March 12, 1992; the Code of 1980, § 2-402, and Ord. No. 12230, § 1, adopted May 9, 2002.

Sec. 2-823. Civil infraction enforcement procedures.

(a) Code inspectors shall have the authority to initiate enforcement proceedings as listed below. No special magistrate shall have the power to initiate such proceedings.

(b) Prior to issuing a citation, a code inspector who after personal investigation, finds a violation of the sections of this Code as amended and/or other ordinances adopted by this Code as amended, from time to time, shall provide written notice of violation to the person that the person has committed a violation of a code or ordinance and shall establish a reasonable time period within which the person must correct the violation. Such time period shall be no more than 30 days. If the inspector has reason to believe that the violation presents a serious threat to the public health, safety, or welfare, or if the violation is irreparable or irreversible, the code inspector does not have to provide the person with a reasonable time period to correct the violation.

(c) If, upon personal investigation an inspector finds that the person has not corrected the violation within the time period, the inspector shall issue a civil infraction notice to the violator. Service shall be effected by delivering the civil infraction notice to the violator, or his/her agents, or by leaving the civil infraction notice at the violator's usual place of abode with any person residing therein who is 15 years of age or older and informing that person of its contents, or the civil violation notice may be sent by certified mail, return receipt requested. In addition to providing notice as set forth above, at the option of the inspector, notice may be served by posting. Such notice shall be posted for at least ten days in at least two locations, one of which shall be the property upon which the violation is alleged to exist and the other of which shall be City Hall. Proof of posting shall be verified by affidavit of the agent who posted the notice. Evidence that an attempt has been made to hand deliver or

mail notice together with proof of posting shall be sufficient that notice requirements have been met.

(d) The civil infraction notice shall include but not be limited to the following:

(1) Date and time of issuance.

(2) Name of code inspector and division or department issuing the notice.

(3) Name and address of the violator.

(4) Section number of the code section or city ordinance that has been violated.

(5) Brief description of the nature of the violation, including location, date, and time of violation.

(6) The applicable civil penalty if the person elects to contest the violation.

(7) The applicable civil penalty if the person elects not to contest the violation.

(8) Instructions and due date for paying the civil fine or filing for an administrative hearing before a special magistrate to appeal the civil fine.

(9) Notice that failure to request an administrative hearing within ten days after service of the civil infraction notice shall constitute a waiver of the violator's right to an administrative hearing before the special magistrate, and that such waiver shall constitute an admission of violation and that a penalty may be entered against the violator for an amount up to maximum civil penalty.

(10) Notice that the violator may be liable for the reasonable costs of the administrative hearing should he/she be found guilty of the violation.

(Ord. No. 10954, § 1, 3-12-92; Ord. No. 11213, § 2, 2-9-95; Code 1980, § 2-403; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-824. Civil penalties.

(a) Penalties for violations of the provisions of any city ordinances or City Code section, as amended, enforced by this article shall be in the amount as prescribed in the schedule of civil penalties in section 2-829 or in an amount deemed appropriate by a special magistrate.

(b) Civil penalties assessed pursuant to this article are due and payable to the city on the last day of the period allowed for the filing of an administrative hearing before a special magistrate, or if proper appeal is made, when the appeal has been finally decided adversely to the named violator.

(Ord. No. 10954, § 1, 3-12-92; Ord. No. 11213, § 2, 2-9-95; Code 1980, § 2-404; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-825. Rights of violators; payment of fine; right to appeal; failure to pay and correct.

(a) A violator who has been served with a civil infraction notice shall elect either to:

(1) Pay the civil penalty in the manner indicated on the infraction notice, and correct the violation; or

(2) Request an administrative hearing before a special magistrate to appeal the determination of the inspector which resulted in the issuance of the civil infraction notice.

(b) An appeal for administrative hearing shall be accomplished by filing a request in writing to set the hearing for review and mailing to the address indicated on the notice or online via the city website, as available, not later than 30 days after the posting of the civil infraction on the property cited or receipt, in person, by those cited for non-folio related violations or from date of mailing for non-folio related violations for those not present when the violation is observed.

(c) If the named violator, after notice, fails to pay the civil penalty and correct the violation (within the time specified), or fails to timely request an administrative hearing before a special magistrate, such failure shall constitute a waiver of the violator's right to an administrative hearing before a special magistrate. A waiver of the right to administrative hearing shall be treated as an admission of the violation and penalties may be assessed accordingly.

(d) Failure to correct the violation or file for an appeal as provided for in subsection (b) will result in the case being forwarded to the code enforcement board or appropriate special magistrate for further action.
(Ord. No. 10954, § 1, 3-12-92; Ord. No. 11213, § 2, 2-9-95; Code 1980, § 2-405; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13881, § 2, 12-12-19; Ord. No. 14308, § 2, 9-26-24)

Sec. 2-826. Conduct of administrative hearing.

(a) Upon receipt of a named violator's timely request for an administrative hearing, the code enforcement clerk or his/her designee shall set the matter down for hearing on the next available regularly scheduled hearing date or as soon as possible.

(b) The code enforcement clerk or his/her designee shall send a notice of hearing by certified mail to the violator at his/her last known address. The notice of hearing shall include but not be limited to the following:

(1) Name of the inspector who issued the notice;

(2) Factual description of the alleged violation;

(3) Date of alleged violation;

(4) Section of the Code allegedly violated;

(5) Place, date and time of hearing;

(6) Right of violator to be represented by an attorney;

(7) Right of violator to present witnesses and evidence; and

(8) Notice that failure of violator to attend a hearing may result in civil penalty being assessed against him/her.

(c) The special magistrate shall conduct hearings on a regularly scheduled monthly basis or more frequently upon request of the city manager or his/her designee. No hearing shall be set sooner than 20 days from the date of service of the civil infraction.

(d) All hearings before the special magistrate shall be open to the public. All testimony shall be under oath. Upon proper notice, a hearing may proceed in the absence of the named violator.

(e) The proceedings at the hearing shall be recorded electronically and/or by a stenographer, and if recorded by a stenographer, such recording may be transcribed at the expense of the party requesting the transcript.

(f) The city manager, or his/her designee, shall provide clerical and administrative personnel to facilitate the proper issuance of civil infraction notices, processing and review of cases as may be reasonably required, and for the proper performance of clerical and special magistrate's duties.

(g) Each case before a special magistrate shall be presented by the inspector or representative of the department which issued the violation.

(h) The hearing need not be conducted in accordance with formal rules of evidence and those relating to witnesses. Any relevant evidence shall be admitted if the special magistrate finds it competent and reliable, regardless of the existence of any common law or statutory rule to the contrary.

(i) Each party shall have the right to call and examine witnesses, to introduce exhibits, to cross examine opposing witnesses on any matter relevant to the issues even though that matter was not covered in the direct examination, to impeach any witness regardless of which party first called him/her to testify, and to rebut the evidence against him.

(j) The special magistrate shall make findings of fact based on the evidence in the record alone. In order to make a finding upholding an inspector's determination that a violation exists, the special magistrate must find that a preponderance of the evidence indicates that the violator was legally responsible for the infraction of the relevant section of the city ordinance or City Code as cited, and that a violation does/did in fact exist.

(k) The prescribed time for correction of the violation given to the named violator and contained in the notice of violation shall be

presumed to have been a reasonable time for correction. Upon presentation of relevant evidence by the named violator that the time for correction was not reasonable, the special magistrate may make a redetermination as to the reasonableness of the time for correction contained in the notice of violation, if the time was less than 30 days.

(l) If the named violator is found guilty of the violation, he/she may be held liable for the costs of the prosecution.

(m) The fact-finding determination of the special magistrate shall be limited to whether the alleged violation did in fact occur and, if so, whether the person named in the civil infraction is legally responsible for that violation. The special magistrate shall either affirm or reverse the determination of the inspector as to the responsibility of the named violator for the correction of the city ordinance or City Code violation. If the special magistrate reverses the determination of the inspector and finds the named violator not responsible for the alleged violation in the civil infraction, absent a successful appeal of the special magistrate's ruling by the city, the named violator shall not be liable for the payment of any civil penalty. If the decision of the special magistrate is to affirm the inspector's determination of violation, then the following elements shall be included in the decision.

(1) Amount of civil penalty; and

(2) Costs of prosecution.

(3) Verbal warning that failure to comply with date by which violation must be corrected will result in an automatic referral to the code enforcement board or appropriate special magistrate.

(n) The special magistrate shall have the power to:

(1) Adopt procedures for the conduct of hearings;

(2) Subpoena alleged violators and witnesses for hearings; subpoenas may be served by either the city police department or by the staff of the special magistrate;

(3) Subpoena evidence;

(4) Take testimony under oath; and

(5) Assess and order the payment of civil penalties as provided herein.

(o) A special magistrate shall not conduct a hearing if the named violator, prior to the scheduled hearing date, properly files, with a duly authorized city or county board of appropriate jurisdiction for an administration interpretation of the legal provision(s) on which the alleged violation was based. Upon exhaustion of the administrative review, finalization of the administrative order by such board or body, and the lapse of time for review of said interpretation, the special magistrate may exercise all powers granted to him/her by this article.

(p) The special magistrate shall be bound by the interpretations and decisions of the duly authorized city and county boards of appropriate jurisdiction concerning the provisions within their respective jurisdictions. In the event that such a board or body finds that the cited violation of the city ordinance or City Code has not been properly interpreted, that provision upon which the violation is based, shall prohibit a special magistrate from proceeding with the enforcement of the alleged violation.
(Ord. No. 10954, § 1, 3-12-92; Ord. No. 11213, § 2, 2-9-95; Code 1980, § 2-406; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-827. Recovery of unpaid civil penalties; penalty to constitute a lien; foreclosure.

The city may institute proceedings in a court of competent jurisdiction to compel payment of civil penalties.
(Ord. No. 10954, § 1, 3-12-92; Ord. No. 11213, § 2, 2-9-95; Code 1980, § 2-407)

Sec. 2-828. Appeals of orders of hearing officers.

(a) The violator or the city may appeal an order of a special magistrate by filing a petition for appeal with the Eleventh Judicial Circuit in and for Miami-Dade County. Such appeal shall be filed within 30 days of the issuance of the order by the special magistrate. A violator shall have the right to a de novo appeal provided that all other administrative remedies have been exhausted.

(b) In the absence of reversal of a special magistrate's ruling by an appellate court of competent jurisdiction, the findings of the special magistrate shall be conclusive as to a determination of responsibility for the city ordinance or City Code violation, and such findings shall be admissible in any proceeding not to collect unpaid penalties. If the violation is not corrected within ten days of the final order of the court, the case will be forwarded to the code enforcement board or appropriate special magistrate.

(c) Nothing contained in this article shall prohibit the city from enforcing its city ordinance or City Code by any other means. The enforcement procedures outlined herein are cumulative to all others and shall not be deemed to be prerequisites to filing suit for the enforcement of any section of this Code.
(Ord. No. 10954, § 1, 3-12-92; Ord. No. 11213, § 2, 2-9-95; Code 1980, § 2-408; Ord. No. 12547, § 2, 6-24-04; Ord. No. 13881, § 2, 12-12-19)

Sec. 2-829. Schedule of civil penalties.

(a) The table contained herein in subsection (b) lists the sections of city ordinances or the City Code, as they may be amended, from time to time, which may be enforced pursuant to the

provisions of this article; and prescribes the dollar amount of civil penalty for the violation of these sections. For all contested tickets, an additional ten percent will be charged.

(b) The "descriptions of violations" below are for informational purposes only and the civil penalties attached are meant only as proposed figures not intended to limit the nature, number of or amount of fines to be imposed for the violations which may be cited in this section. To determine the exact nature of the activity prescribed or required by this Code, the relevant Code section, ordinance or treatise cited in the specific violation must be examined.

CITY CODE OF THE CITY OF MIAMI, FLORIDA, AS AMENDED

Code Section	*Description of Violation*	*Civil Penalty*
2-207	Failure to have a valid certificate of use.	$105.00
2-265	Construction in right-of-way, nonconforming with public works standards.	210.00
10-63	Maintaining a vacant, blighted, unsecured or abandoned structure	1,050.00
17-72	Failure to obtain permit to trim trees located in the public right-of-way.	52.50
17-72	Failure to obtain required permit for removal of trees located in the public right-of-way.	525.00
17-73	Failure to obtain permit to break, deface, cut, disturb, or interfere in any way with the roots of any tree, shrub, or vine in a public highway or park.	210.00
17-76	Failure to place guards around all nearby trees, shrubs or vines in a public highway or park during construction of a building.	210.00
17-77	Placing injurious substances on or near tree roots.	525.00
19-2.1	Failure to have valid fire safety permit.	105.00
19-3	Failure to obtain public assembly permit.	105.00
19-4	Obstructing a required means of egress.	105.00
19-5	Failure to obtain flammable combustible liquids permit.	105.00
19-5(d)	Failure to obtain required inspection of flammable liquids tanks/devices.	105.00
19-6	Failure to obtain explosives permit.	105.00
19-7	Failure to obtain fireworks permit.	105.00
19-26	Violation orders not corrected.	105.00

Code Section	*Description of Violation*	*Civil Penalty*
22-19	Failure by multi-family residential establishment having up to 25 units to provide a recycling program in compliance with the requirements of section 22-19.	300.00
22-19	Failure by multi-family residential establishment having between 26 units and 100 units to provide a recycling program in compliance with the requirements of section 22-19.	650.00
22-19	Failure by multi-family residential establishment having 101 or more units to provide a recycling program in compliance with the requirements of section 22-19.	950.00
22-20	Failure by commercial establishment having up to and including 3,000 square feet to provide a recycling program in compliance with the requirements of section 22-20.	300.00
22-20	Failure by commercial establishment having more than 3,000 and less than 10,000 square feet to provide a recycling program in compliance with the requirements of section 22-20.	650.00
22-20	Failure by commercial establishment having more than 10,000 square feet to provide a recycling program in compliance with the requirements of section 22-20.	950.00
22-116, 22-117	Failure to maintain lot in a safe, clean condition not allowing accumulation of debris, trash or a dense growth of grass.	210.00
22-146	Abandoned property on private property in the city.	525.00
29-1	Landfill—Permit required.	210.00
29-1	Failure to obtain fill permit prior to obtainment of building permit.	210.00
29-1	Filling land with unsuitable material.	525.00
29-4	Failure to level stockpiled material within a reasonable period of time.	210.00
29-4	Failure to protect against excess erosion of filling material.	210.00
29-4	Filling dedicated or undedicated public right-of-way with unsuitable material.	525.00
29-5	Failure to notify resilience and public works department 24 hours prior to start of filling operation.	210.00
29-53	Failure to obtain mandatory inspections for filling land in Biscayne Bay.	210.00
29-53	Failure to obtain final inspection for filling land in Biscayne Bay.	525.00
29-54	Filling in Biscayne Bay in violation of the provisions of this article.	210.00
29-83	Failure to obtain waterfront improvement permit.	210.00
29-93 and 29-94	Failure to obtain required inspections for waterfront improvements.	210.00

Code Section	*Description of Violation*	*Civil Penalty*
29-95	Failure to maintain waterfront improvements.	525.00
31-26	Failure to have a valid local business tax receipt.	262.50
35-10	Parking for certain purposes prohibited:	
	(a) No person shall park a vehicle upon any street or within the public right-of-way for the unlawful purposes as per subsections (a)(1), (2), (3), (4) and (5).	210.00
	(b) No person shall park a commercial vehicle, bus, trailer or semi-trailer upon any street or within the public right-of-way in any zoned residential district.	105.00
	(c) No person shall park upon any street or within the public right-of-way in any zoned residential district of the city a truck of unlawful size.	105.00
	(d) Unlawful parking of construction equipment such as earth moving machines, excavators, cranes and the like within the public right-of-way in any zoned residential district.	105.00
	(e) Unlawful parking of major recreational equipment such as travel trailers, pickup campers, tents, boats and boat trailers, combination thereof and other similar equipment, whether occupied by such equipment or not upon any street or within the public right-of-way.	105.00
35-25 et seq.	Violation of the dangerous intersection safety article:	
	First offense.	131.25
	Second offense.	262.50
	Each additional offense.	525.00
49-2	Unlawful discharge of petroleum products into city storm-water management system.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
49-3	Unlawful discharge of human excreta.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee

Code Section	*Description of Violation*	*Civil Penalty*
49-4	Unlawful discharge of wastewater from construction excavation into city stormwater management system.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
49-5	Discharge or dumping of septic tank contents into city stormwater management system.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-3	Failure to obtain permit to obstruct street, or sidewalk or impede traffic or failure to pay usage fee. Daily usage fee will be required to be paid in addition to payment of the applicable penalty	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-3	Failure to comply with conditions set forth by such permit, each violation.	250.00 plus costs as determined by the city manager or designee
54-8	Unlawful use of street or sidewalk for advertising or display purposes.	250.00 plus costs as determined by the city manager or designee
54-8	Failure to obtain permit for lawful advertising or display in the public right-of-way.	250.00 plus costs as determined by the city manager or designee
54-9	Placing signs on street or sidewalk surface.	250.00 plus costs as determined by the city manager or designee
54-12	Placing glass or other injurious substances on streets.	52.50
54-14	Failure to remove utility facilities to permit improvement of streets.	250.00 plus costs as determined by the city manager or designee
54-41	Failure to notify public works 24 hours prior to commencing construction.	250.00 plus costs as determined by the city manager or designee

Code Section	*Description of Violation*	*Civil Penalty*
54-42	Disturbing, cutting, digging or excavating any portion of the public right-of-way without a permit.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-44	Failure to construct sidewalk with standard material.	250.00 plus costs as determined by the city manager or designee
54-47	Failure to obtain approval of location and construction of driveway.	250.00 plus costs as determined by the city manager or designee
54-48	Refusing to allow inspection.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-48	Failure to comply with stop work order.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-51	Failure to obtain proper street grade and lines.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-52	Failure to lay sewers, water and gas mains, telephone and electrical conduits prior to street improvements.	250.00 plus costs as determined by the city manager or designee

Code Section	*Description of Violation*	*Civil Penalty*
54-54	Allowing sidewalks to remain in dangerous condition.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-56	Failure to construct, reconstruct, or repair the street improvements.	250.00 plus costs as determined by the city manager or designee
54-57	Obstructing streets or sidewalks with trash lumber or other obstructions.	250.00 plus costs as determined by the city manager or designee
54-86	Failure to obtain proper permits or authorization for placement of a bench or a shelter upon public right-of-way.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-91	Failure to maintain proper clearances for placement of a bus bench or shelter.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-92	Failure to properly maintain a bench and/or shelter.	250.00 plus costs as determined by the city manager or designee
54-93	Failure to comply with bench and/or shelter size requirements.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-94	Failure to properly display name/address, and local telephone number of bench and/or shelter company.	52.50 plus costs as determined by the city manager or designee

Code Section	*Description of Violation*	*Civil Penalty*
54-132	Failure to properly affix numbering to building as required.	105.00 plus costs as determined by the city manager or designee
54-134	Unlawful placement of any sign designating street, avenue or other public place by a different name than by which it is generally and legally known.	500.00 or as determined by the city manager
54-135	Defacing or removal of any street signs posted in the city.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-193	Unlawful construction or installation of an encroachment within the dedicated right-of-way or within the undedicated right-of-way.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-221	Operating a sidewalk cafe without a permit.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee
54-263	Placing, maintaining, or operating newsrack on any public right-of-way without a permit.	250.00 plus costs as determined by the city manager or designee
54-266	Installation, use and/or maintenance of nonconforming newsracks.	250.00 plus costs as determined by the city manager or designee
54-268	Allowing a newsrack to remain in a state of abandonment.	250.00 plus costs as determined by the city manager or designee

Code Section	*Description of Violation*	*Civil Penalty*
54-300	Failure to obtain telecommunications permit agreement.	500.00 or as determined by the city manager plus costs as determined by the city manager or designee

FLORIDA FIRE PREVENTION CODE, AS AMENDED

Section	*Description of Violation*	*Civil Penalty*
5-207(a)	Blocking/parking in emergency access/fire lane(s).	$105.00
5-208	Required address number missing.	105.00
5-301(a)	Fire extinguisher(s) missing.	105.00
5-302(a)(b)	Fire suppression systems need service.	105.00
5-302(c)	Fire extinguisher needs service.	105.00
6.201	Excessive combustible trash exterior of building.	105.00
6.401(a)	Nonconforming extension cord.	105.00
8.110(a)	Room capacity is not posted.	105.00
8.110(b)	Number of occupants exceeds approved capacity.	210.00
14-62	Refusal to allow inspector to make inspection.	105.00
42.101	Elevator key box missing.	105.00
42.101	"Do not use elevator" sign missing.	105.00
42.101	Electric rooms missing door signs.	105.00
42.101	LP gas meter not identified.	105.00
42.101	LP gas shutoff valve damaged/missing.	105.00
42.101	LP gas container and/or gas meter not protected.	105.00
42.101	Electric meters not identified.	105.00
42.101	Violations of dangerous or hazardous conditions not corrected.	105.00
42.101	Nonconforming spray finish operation.	210.00
42.101(c)	Excess combustible trash interior of building.	105.00
42.101(f)	Second means of escape obstructed.	210.00

NFPA, AS AMENDED

Chapter/ Section	*Description of Violation*	*Civil Penalty*
Chapter 2	Nonconforming storage of flammable and combustible liquids.	$210.00
2-3.5.1	Nonconforming vent pipes.	210.00
4-1.2	Emergency shutoff for all dispensers is not remote.	210.00
4-2.5	Dispensing units are not protected.	210.00
4-2.6	Dispenser hose exceeds approved length.	210.00
4-2.6	Nonconforming dispenser hose.	210.00

Chapter / Section	*Description of Violation*	*Civil Penalty*
4-2.6	Automatic hose retractors not operable.	210.00
4-3.6	Emergency shutoff valve needs annual test.	105.00
8-1.1	Nonconforming hose nozzle valve.	105.00

Chapter / Section	*Description of Violation*	*Civil Penalty*
8-4.8	Warning signs not posted.	105.00

Section	*Description of Violation*	*Civil Penalty*
2-8.8.1	Required self-closers/latching devices missing.	$105.00

Section	*Description of Violation*	*Civil Penalty*
5-2.1.4.1	Stairway/exit doors do not swing in the way of exit travel.	$105.00
5-2.1.5.3	Nonconforming locking device on exit doors.	105.00
5-2.1.8	Stairway/exit doors are secured in the open position.	105.00
5-2.2.3.4	Nonconforming storage room under interior stairs.	105.00
5-2.2.5.2	Exit doors locked from stairway side.	105.00
5-10.3.1	Exit signs are not properly illuminated.	105.00
7-5.2	Laundry chute is not properly self-closing and latching.	105.00
7-5.2	Laundry chute room door is not properly self-closing and latching.	105.00
7-5.2	Rubbish chute is not properly self-closing and latching.	105.00
7-5.2	Waste chute room door is not properly self-closing and latching.	105.00
9-2.4.1	Inadequate number of exits (class A).	105.00
9-2.4.2	Inadequate number of exits (class B).	105.00
9-2.4.3	Inadequate number of exits (class C).	105.00
9-2.5.1	Required exits are not remote from each other.	105.00
9-2.5.5.9	Width of required aisles is not properly maintained.	105.00
9-2.6	Nonconforming travel distance.	105.00
9-2.7.1	Nonconforming exit discharge.	105.00
9-2.8.1	Lighting inadequate for means of egress.	105.00
9-2.9	Emergency lighting is not provided.	105.00
9-2.10	Required exit signs are not provided.	105.00
9-2.11.1	Panic hardware not provided.	105.00
9-3.1	Vertical opening is not protected or enclosed.	105.00
11-1.7.1	Occupant load exceeds approved capacity.	105.00
11-2.3.3.1	Exit access corridor width is nonconforming.	210.00
11-2.4.1	Inadequate number of exits.	210.00
11-2.6	Nonconforming travel distance.	105.00
11-2.7	Exit discharge is nonconforming.	105.00
11-2.8	Exit lighting inadequate.	105.00
11-2.11.5	Emergency rescue or ventilation window not provided.	210.00
11-2.11.5	Window from classroom is not provided (12 or more clients).	210.00
11-3.1.1	Vertical openings are not enclosed or protected.	210.00
11-3.3.1	Interior finish is not conforming.	210.00
11-3.4	No fire alarm system.	210.00
11-3.6.1	Nonconforming interior corridor.	210.00

Section	*Description of Violation*	*Civil Penalty*
11-3.6.1	Inadequate fire rating of exit corridor (12 or more clients).	210.00
11-7.1.2	Nonconforming separation between day care and other occupancy.	210.00
11-7.2.4.1	Inadequate number of exits.	210.00
11-7.2.6.2	Nonconforming travel distance.	210.00
11-7.2.9	Emergency lighting is not provided (12 or more clients).	105.00
11-7.2.10	Exit signs are not provided (12 or more clients).	105.00
11-7.2.11.1	Nonconforming latch on closet door.	105.00
11-7.2.11.2	Nonconforming lock on bathroom door.	105.00
11-7.3.1	Vertical openings are not protected.	210.00
11-7.3.2	Hazardous areas are not properly protected (12 or more clients).	105.00
11-7.3.3.1	Interior finish is not conforming.	210.00
11-7.3.4.1	Fire alarm system missing/nonconforming.	210.00
11-7.5.1.2	Protective covers for electrical receptacles are not provided.	105.00
11-8.3.4.1	Smoke detectors are not provided (7—12 clients).	105.00
11-8.3.4.2	No smoke detection system in corridors (7—12 clients).	105.00
17-2.4.1	Inadequate number of exits.	210.00
17-2.7.1	Nonconforming exit discharge.	210.00
17-2.7.2	Exit discharges through interior of building.	210.00
17-3.1.1	Vertical opening is not enclosed or protected.	210.00
17-3.2.2	Hazardous areas are not properly protected.	105.00
17-3.4.4	Single station smoke detectors required in guestrooms.	105.00
17-3.6.2	Nonconforming door between guestroom and interior corridor.	210.00
17-3.6.3	Doors between guestrooms and corridors are not self-closing.	105.00
19-2.4.1	Inadequate number of exits.	210.00
19-2.7.1	Nonconforming exit discharge.	210.00
19-2.7.2	Nonconforming exit (buildings three stories or less).	210.00
19-2.7.2	Nonconforming exit (buildings four stories or less).	210.00
19-2.9.1	Emergency lighting is not provided.	105.00
19-2.10.1	Exit signs are not provided.	105.00
19-3.1.1	Vertical opening not protected (buildings four stories or more).	210.00
19-3.1.1	Vertical opening not protected (buildings three stories or less).	210.00
19-3.2.1	Hazardous area not protected or separated.	210.00
19-3.4.1	Fire alarm system required.	210.00
19-3.4.4.1	Single station smoke detectors required in all living units.	210.00
19-3.6.1	Exit access corridor not protected.	210.00
19-3.6.2	Doors between living units and corridors not self-closing and latching.	210.00
19-3.6.3	Doors between living units and corridors not fire rated.	210.00
19-3.7.1	Smoke barrier in exit access corridor not provided.	210.00
19-26	Violation orders not corrected.	105.00
20-2.1.2	No second means of escape or alternate protection.	210.00

Section	*Description of Violation*	*Civil Penalty*
20-3.1.1	Vertical opening not enclosed or protected.	210.00
20-3.3.2	No fire alarm system.	210.00
20-3.3.4	No single or multiple station smoke detectors.	210.00
20-3.4	Transfer grills, transoms, louvers in exit corridors.	105.00
20-3.4	Guestroom doors to corridors not self-closing and latching.	105.00
25-2.4.1	Inadequate number of exits for class A and class B stores.	210.00
25-2.4.2	Inadequate number of exits from class C stores.	210.00
25-2.5.5	Required aisle width inadequate.	105.00
25-2.5.6	Inadequate aisle width for class A store.	105.00
25-2.5.6	No automatic sprinkler system.	525.00
25-2.6	Nonconforming travel distance.	210.00
25-2.7	Nonconforming exit discharge.	210.00
25-2.8	Exit illumination is inadequate.	105.00
25-2.9	Emergency lighting is not provided for class A and class B stores.	105.00
25-2.10	Exit signs are not provided.	105.00
25-3.1	Vertical openings are not protected or enclosed.	210.00
25-3.2.1	Hazardous area is not protected or separated.	105.00
27-2.4	Inadequate number of exits.	210.00
27-2.5.2	Common path of travel or dead-end corridor exceeds 50 feet.	105.00
27-2.6	Nonconforming travel distances.	210.00
27-2.7.1	Nonconforming exit discharge.	210.00
27-2.7.2	Exit discharges through interior of building.	210.00
27-2.8	Exit lighting is inadequate.	105.00
27-2.9.1	Emergency lighting is not provided.	105.00
27-2.10	Exit sign is not provided.	105.00
27-3.1.1	Vertical opening is not protected or enclosed.	210.00
27-3.2.1	Hazardous area is not protected or separated.	105.00
27-3.4.1	Fire alarm system required.	210.00
27-4.2.1	No approved sprinkler system for building over 75 feet.	525.00
28-2.4.1	Inadequate number of exits.	210.00
28-2.6.1	Nonconforming travel distance.	210.00
28-2.7	Nonconforming exit discharge.	210.00
28-2.7.2	Exit discharges through interior of building.	210.00
28-2.9.1	Emergency lighting is not provided.	105.00
28-2.10.1	Exit signs are not provided.	105.00
28-3.1.1	Vertical openings are not protected or enclosed.	210.00
29-2.4.1	Inadequate number of exits.	210.00
29-2.6.1	Nonconforming travel distance.	210.00
29-2.7	Nonconforming exit discharge.	210.00
29-2.7.2	Exit discharges through interior of building.	210.00
29-2.8.1	Exit lighting is inadequate.	105.00

Section	*Description of Violation*	*Civil Penalty*
29-2.9.1	Emergency lighting is not provided.	105.00
29-2.10	Exit signs are not provided.	105.00
29-3.1.1	Vertical opening is not enclosed or protected.	210.00
31-1.2.1	Means of egress is obstructed.	105.00
31-1.3.1	Single/multiple station smoke detector needs servicing/replacing.	105.00
31-1.3.1	Emergency lighting is not operable.	105.00
31-1.3.1	Required self-closers/latching devices inoperative.	105.00
31-1.3.1	Fire escape stairs need maintenance.	105.00
31-1.6	Excessive storage of flammable liquids.	105.00
31-1.6	Improper storage of flammable liquids.	105.00
31-3.1.2	Fire drills not conducted.	105.00
31-3.4.4	Wastebaskets/waste containers are nonconforming.	105.00
31-6.4.1	Emergency exit diagram missing.	105.00

Section	*Description of Violation*	*Civil Penalty*
4-2.5.1	Inadequate clearance below sprinkler heads.	$105.00

Chapter / Section	*Description of Violation*	*Civil Penalty*
Chapter 8	Dangerous accumulation of combustible residue inside spray booth.	$210.00
8-6	Metal waste cans required.	105.00
8-11	"No smoking" signs missing.	105.00

Section	*Description of Violation*	*Civil Penalty*
4-1	Department of fire-rescue connections obstructed/need caps.	$105.00

Chapter / Section	*Description of Violation*	*Civil Penalty*
Chapter 2	Nonconforming storage of flammable and combustible liquids.	$210.00

Section	*Description of Violation*	*Civil Penalty*
8-2.1	Extinguishing system for kitchen hood not serviced.	$105.00

STATE FIRE MARSHAL UNIFORM RULE

TRANSIENT PUBLIC LODGING ESTABLISHMENTS

Section	*Description of Violation*	*Civil Penalty*
4A-36.102	Inadequate staffing ratio.	$210.00
4A-36.103(13)	Number of occupants exceeds approved capacity.	210.00
4A-36.302(11)	Nonconforming locks.	105.00
4A-36.302(12)	Fire evacuation plans and fire drills are not provided.	105.00

Section	*Description of Violation*	*Civil Penalty*
4A-36.302(13)	Day care located on a floor above the height permitted for the type of construction.	210.00
4A-43.010	No sprinkler system.	525.00
4A-43.011	No standpipe and hose system.	525.00
4A-43-009	No automatic smoke detection.	525.00
4A-48	Electrically supervised fire alarm system needs service.	105.00

CONVENIENCE STORES

FLORIDA STATUTES—CHAPTER 812

Section	*Description of Violation*	*Civil Penalty*
90-346	Drop safe or cash management device missing.	$105.00
90-346	Parking area lighting report required.	105.00
90-346	Cash limitations sign missing.	105.00
90-346	Excessive window signage.	105.00
90-346	Excessive window tinting.	105.00
90-346	No height marker at entrance.	105.00

ZONING ORDINANCE 11000 OR EQUIVALENT UNDER MIAMI 21 CODE

Article	*Section*	*Description of Violation*	*Civil Penalty*
9	917.12	Parking/storage of inoperable vehicles.	$ 52.50
9	920.3	Illegal parking of commercial vehicles in residential zone.	105.00
21	2102	Working without a permit, building and/or roofing, etc.	525.00
4	401	Illegal mechanical repairs prohibited.	210.00
4	401	Outside sales not permitted.	210.00
9	917.3	Parking on unimproved surfaces.	52.50
9	917.12	Outside storage of miscellaneous materials, equipment and/or debris.	210.00
9	908.11	Provide vision clearance.	525.00
21	2103.1	No certificate of use.	525.00
9	925.2	No sign permit.	525.00
9	920.2.2	Boat in front yard and/or major recreational vehicle.	105.00
4	401	Illegal units.	525.00
9	917.3	Removal of required landscape or failure to maintain required landscaping.	210.00
9	906.5, 2103.3	Use of home as office without certificate of use.	525.00
9	401	Use of home as a business prohibited.	525.00

Article	*Section*	*Description of Violation*	*Civil Penalty*
4	401	More than three unrelated adults in one dwelling unit.	525.00
9	920.2.3	Recreational vehicle used as living quarters.	210.00
9	920.4	Parking/storage of construction equipment prohibited in residential zone.	105.00
9	908.8	Hedge/fence higher than eight feet in residential zone other than with required visibility triangle.	210.00
9	908.5, 908.6	Carport, awning and/or canopy without permit.	525.00
4	401	Encroaching in required yards/open space.	525.00
4	401	Tree removal without permit (environmental).	525.00
4	401	Tree removal without permit (nonenvironmental).	525.00
4	401	Keeping vacant—Unsecured structure which is considered a "public nuisance."	525.00
6	612	Failure to provide six-foot high C.B.S. wall.	525.00
4	401	Schedule of district regulations—Illegal rooming-house.	525.00
_____	62-624—62-630	Illegal garage sale.	50.00
4	401	Occupying a live-aboard vessel (houseboat or house-barge).	525.00
4	908.8	Barbed wire adjacent to residential.	210.00
9	925.3.12	Temporary political campaign signs.	105.00
9	937.1 937.3	Adult entertainment closer than 600 feet to residential zoned property.	525.00
4	401	Adult entertainment not permitted in C-1 zoned property.	525.00
9	920.1	Mobile homes parking prohibited.	525.00
4	401	Illegal mixed use.	210.00
9	_____	Parking truck(s) used as storage space.	210.00
9	917.12	No required off-street parking to be used as storage of materials or supplies.	210.00
4	401	Illegal C.B.R.F. without certificate of use.	525.00
4	401	Illegal shed.	210.00
4	401	Illegal roominghouse without a certificate of use.	525.00
9	917.13	Eliminating or reducing off-street parking spaces.	210.00
9	917.1	Failure to provide required off-street parking.	525.00
9	920.1.2	Illegal office trailer.	525.00
9	917.3	Removal of handicapped sign.	210.00
9	908.8	Improperly located fence, wall or hedge.	52.50
4	401	Unlawfully establishing an unusual or new use without prior approval at public hearing.	78.75
9	917.12	Illegally maintaining or depositing junk or trash.	52.50

Article	*Section*	*Description of Violation*	*Civil Penalty*
9	920.2.3	Recreational vehicle used as living quarters.	210.00
9	920.4	Parking/storage of construction equipment prohibited in residential zone.	105.00
9	908.8	Hedge/fence higher than eight feet in residential zone other than with required visibility triangle.	210.00
9	908.5, 908.6	Carport, awning and/or canopy without permit.	525.00
4	401	Encroaching in required yards/open space.	525.00
4	401	Tree removal without permit (environmental).	525.00
4	401	Tree removal without permit (nonenvironmental).	525.00
4	401	Keeping vacant—Unsecured structure which is considered a "public nuisance."	525.00
6	612	Failure to provide six-foot high C.B.S. wall.	525.00
4	401	Schedule of district regulations—Illegal rooming-house.	525.00
_____	62-624—62-630	Illegal garage sale.	50.00
4	401	Occupying a live-aboard vessel (houseboat or house-barge).	525.00
4	908.8	Barbed wire adjacent to residential.	210.00
9	925.3.12	Temporary political campaign signs.	105.00
9	937.1 937.3	Adult entertainment closer than 600 feet to residential zoned property.	525.00
4	401	Adult entertainment not permitted in C-1 zoned property.	525.00
9	920.1	Mobile homes parking prohibited.	525.00
4	401	Illegal mixed use.	210.00
9	_____	Parking truck(s) used as storage space.	210.00
9	917.12	No required off-street parking to be used as storage of materials or supplies.	210.00
4	401	Illegal C.B.R.F. without certificate of use.	525.00
4	401	Illegal shed.	210.00
4	401	Illegal roominghouse without a certificate of use.	525.00
9	917.13	Eliminating or reducing off-street parking spaces.	210.00
9	917.1	Failure to provide required off-street parking.	525.00
9	920.1.2	Illegal office trailer.	525.00
9	917.3	Removal of handicapped sign.	210.00
9	908.8	Improperly located fence, wall or hedge.	52.50
4	401	Unlawfully establishing an unusual or new use without prior approval at public hearing.	78.75
9	917.12	Illegally maintaining or depositing junk or trash.	52.50
9	920.2.3	Improperly using recreational vehicle or camping equipment.	105.00

Article	*Section*	*Description of Violation*	*Civil Penalty*
4	401	Maintaining a structure encroaching in required setbacks.	52.50
9	925.2	Erection, construction, posting, etc., of a sign without a permit.	105.00
9	926.5.2	Illegally maintaining blinking or flashing lights, streamer lights, pennants, etc.	105.00
9	926.6	Illegal revolving or rotating sign.	105.00
9	926.5	Illegal use of sign which uses word "stop" or "danger."	105.00
4	401	Illegal neon sign.	105.00
4	401	Failure to provide adequate number of off-street parking spaces.	105.00
9	917.3	Failure to provide proper surface for parking area.	105.00
4	401	Improper use of parking area as commercial parking lot.	105.00
4	401	Illegally operating a business in a residential zone.	262.50
_____	_____	Illegal sale of fruit or merchandise from open stands or vacant lots.	262.50
4	401	Failure to conduct a business from a completely enclosed building.	262.50
4	401	Illegal storage of materials or products or illegal storage of materials above the height of a wall or fence.	262.50
9	905.2	Failure to maintain the wall required to separate business from residential property.	262.50

FLORIDA BUILDING CODE VIOLATIONS

Section	*Description of Violation*	*Civil Penalty*
105.1(A)	Failure to maintain a building or structure in a safe condition; failure to maintain devices or safeguards in good working order.	$105.00
105.2	Failure to remove debris equipment, materials, or sheds.	105.00
105.3, 305.5, 3324	Failure to secure buildings and equipment.	525.00
201.1(e), 201.3(e)	Failure to comply with lawful work stop order.	525.00
304.1	Failure to display permit card.	52.50
305.2	Failure to obtain mandatory inspection.	262.50
307.5	Unlawfully connecting utility service.	525.00
515	Failure to provide required handicapped accessibility.	52.50
3302.2	(a) Exceeding allowable obstruction of the public right-of-way with construction and/or demolition.	52.50

Section		*Description of Violation*	*Civil Penalty*
		(b) Allowing materials to obstruct fire hydrant, fire alarm box, manhole, catchbasin and restriction of water flow to gutters.	52.50
3302.3		Failure to provide temporary sidewalk which is properly guarded and not less than five feet wide	52.50
3302.4		Illegal obstruction of an alley or portion thereof in connection with construction or demolition.	52.50
3302.5		Failure to protect sidewalks and pavements from damage incidental to construction work.	52.50
3306.1		Sidewalk shed—Failure to provide sidewalk shed per S.F.B.C.—Subsections (a), (b), (c) and (d).	52.50
3306.2		Failure to provide construction fence per S.F.B.C.	52.50
3318.8		Failure to prevent the falling of paint or debris over public sidewalks or other places of public use.	52.50
4601		It shall be unlawful to allow sewer or any sanitary waste to be discharged onto the ground creating a nuisance and/or health hazard	105.00
4611.1			
	(a)	Unlawful discharge of rainwater or other liquid wastes or allowing same to be disposed onto or across adjoining private or public property or sidewalk.	52.50
8-1	301	Failure of contractor to get permit.	262.50
8-1	301	Failure of homeowner to get permit.	210.00
8-1		All other Florida Building Code violations	210.00

(c) Any violation of the code that is not specified within this section, or any other section of the code or zoning ordinance, shall be assessed a civil penalty of $262.50.

(Ord. No. 10954, § 1, 3-12-92; Ord. No. 11166, § 1, 7-14-94; Ord. No. 11213, § 2, 2-9-95; Code 1980, § 2-409; Ord. No. 11434, § 2, 1-16-97; Ord. No. 12547, § 2, 6-24-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 12974, § 3, 2-28-08; Ord. No. 12977, § 2, 3-13-08; Ord. No. 13032, § 3, 10-16-08; Ord. No. 13142, § 2, 2-11-10; Ord. No. 13194, § 3, 9-27-10; Ord. No. 13449, § 2, 4-24-14; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13881, § 2, 12-12-19; Ord. No. 13915, § 3, 9-24-20)

Sec. 2-830. Alternate code enforcement board system.

(a) The city establishes, pursuant to F.S. § 162.03(2), which is deemed as being incorporated by reference herein, an alternate code enforcement system which gives code enforcement boards, special magistrates designated by the local governing body, or both the authority to hold hearings and assess fines, costs, liens, and other noncriminal penalties against violators of the City Code and/or zoning ordinance.

(b) In appointing special magistrates, the city commission will consider the qualified applicants submitted from the city manager who shall meet the criteria for their selection as set forth in section 2-811 of the City Code and through a request for qualifications issued by the procurement department.

(c) The special magistrate(s) will serve for a term of two years with the reappointment of one additional one-year term upon approval of the majority vote of the city commission. The special magistrate(s), if they have a residence in the city,

shall not have any open code violations; shall possess such qualifications as required by this chapter; shall be subject to appointment and removal, with or without cause, by the city commission; and shall be compensated as set forth by city commission resolution. Any of these requirements may be waived through a four-fifths affirmative vote of the city commission.

(d) The city attorney, an assistant city attorney, or the city attorney's designee acting by and through the city attorney shall represent the city by presenting cases before the special magistrate.

(e) Commencing with the calendar year 2020 and in coordination with the city attorney's office and the office of management and budget, each special magistrate shall prepare bi-annual reports to the city manager and to the city commission in the following manner: By January 15, 2021, and thereafter by January 15 and July 15 of each subsequent year, each special magistrate shall submit a report setting forth the following information regarding the meetings over which the special magistrate presided: (1) number of cases heard by case type and the dates heard; (2) dollar amount of mitigations, as applicable; (3) average length of extensions of time provided; (4) list of the special magistrate's accomplishments, trainings, and continuing education that assists the special magistrate with carrying out his or her duties; and (5) whether the ordinance creating the alternate enforcement system should be amended to better enable the special magistrate(s) to serve for the purpose for which it was created.

(f) The following time-sensitive violations will be set for a hearing before a special magistrate only in the event that the code enforcement board cannot hear the case within 30 days from the date of the violation being issued: Failure to maintain a lot in a safe, clean condition, not allowing accumulation of debris, trash, or dense growth of grass; use not allowed in transect zone; vacant, blighted, unsecured or abandoned structure; illegal rooming house; failure to obtain a warrant; obstruction of required vision clearance at an intersection; failure to protect a tree during development.

(g) The special magistrate(s) shall have the authority to hear all cases in the same manner as the board; however, the city, through the city manager, shall have the authority to set the parameters of the types of cases to be heard by the special magistrates based upon the type and current number of cases and motions pending. These parameters may be updated from time to time as necessary.

(h) This section shall automatically sunset on December 31, 2021 unless earlier repealed by the city commission.
(Ord. No. 13881, § 2, 12-12-19; Ord. No. 13950, § 2, 12-10-20)

Secs. 2-831—2-860. Reserved.

Editor's note—Ord. No. 13774, § 2, adopted July 12, 2018, repealed the former section 2-830 in its entirety, which pertained to alternate code enforcement system created, and derived from Ord. No. 12547, § 2, adopted June 24, 2004.

ARTICLE XI. BOARDS, COMMITTEES, COMMISSIONS

DIVISION 1. GENERALLY

Sec. 2-861. Administrative support services to be provided by the office of the city clerk.

The office of the city clerk shall provide administrative services to boards, committees, and commissions ("boards") at varying levels of support as set forth, delineated and categorized hereinbelow. The assignment of the specific category for each board, committee, and commission shall be determined and designated by resolution of the city commission based upon the level of services required.

(1) Support services to be provided by the city clerk for "Category A" designated boards:

Post action reports of all meetings; audio record meeting proceedings, set-up communication equipment, provide meeting proceedings support, including audio tape inventory, verbatim transcripts, proofreading and corrections for same, maintain

attendance logs, provide for public notices and financial reporting, mark and number official actions, and prepare special transcripts upon request.

(2) Support services to be provided by the city clerk for "Category B" designated boards:

Coordinate and assist with the conduct of board elections, election manual document preparation, etc. for advisory boards only; provide for public notices, provide record keeping (filing of bond indenture requirement, if legally imposed), maintain attendance logs and minutes book; verify residency status, monitor address/ telephone confidentiality status of certain board members, advise members of appropriate requirements for each board (financial disclosures pursuant to state law, Sunshine Law, dual office prohibitions, oaths, residency and/or employment requirements), serve as custodian of records for filing of said forms (including statement of financial interest, source of income, corporate real property, real property disclosures), provide notary services, provide filing and applicable rules and regulations governing Government in the Sunshine, and pertinent advisory legal opinions affecting appointed officials, notify the commission of vacancies, administer required "oaths of office," and update the state commission on ethics regarding boards' status, and prepare minority composition.

(3) Support services to be provided by the city clerk for "Category C" designated boards:

Public notices for meetings, provide record keeping services (filing of bond indenture requirement, if legally imposed), maintain attendance logs and minutes book, verify residency status, monitor address/ telephone confidentiality status of certain board members, advise members of appropriate requirements of each board (financial disclosures pursuant to state law, Sunshine Law, dual office prohibitions, oaths, residency and/or employment requirements), serve as custodian of records for filing of said forms (including Statement of financial interest, source of income, corporate real property, real property disclosures), provide notary services, provide filing and applicable rules and regulations governing Government in the Sunshine, and pertinent advisory legal opinions affecting appointed officials, administer required "oaths of office", update the state commission on ethics regarding boards' status and prepare minority composition reports.

(Ord. No. 11915, § 2, 4-13-00)

Sec. 2-862. Funding; revenue-producing boards, committees and commissions.

(a) *Funding.* A portion of revenues generated by revenue-producing boards, committees, and commissions shall be dedicated to the general operating budget of the office of the city clerk to defray operational expenses for the provision of administrative support to boards, committees and commissions as designated in section 2-861 herein, in an amount not to exceed the cost of providing such administrative support.

(b) *Definitions.* The term "revenue-producing boards, committees, and commissions" shall mean every agency, advisory board, regulatory board, quasi judicial board, or semi-autonomous entity committee that derives, directly or indirectly, any and all revenue from any source determined according to general accepted accounting principles.

(Ord. No. 11915, § 2, 4-13-00)

Sec. 2-863. City staff attendance.

(a) Whenever the city commission adopts legislation requiring the city manager or designee to attend public hearings or meetings of a city board, commission, or committee, the city manager shall require the appropriate designee to attend such public hearing or meeting. The city manager's designee shall be prepared to furnish relevant information to the board, commission, or committee; make a presentation as may be

warranted or requested; and answer questions related to the agenda item(s) posed by the board members.

(b) This attendance requirement is an essential duty and responsibility of the city manager including the following instances:

(1) When a quasi-judicial board is deciding on a land development permit, violation, or other approval or will be making a recommendation to the city commission regarding any application, violation, or approval in any instance where the city is an owner, the applicant, or is among the applicants or owners;

(2) A project, development, financing, borrowing, or similar matter that will have a significant financial, fiscal, or budgetary impact on the city; or

(3) A contract, borrowing, purchase, or sale is involved in which the city is a party or will be a party to such contract, borrowing, purchase, or sale or the board, committee, or commission will make an official recommendation to the city commission regarding any of these transactions.

(Ord. No. 13904, § 2, 6-11-20)

Secs. 2-864—2-880. Reserved.

DIVISION 2. STANDARDS FOR CREATION AND REVIEW OF BOARDS GENERALLY

Sec. 2-881. Requirements.

All of the requirements contained in this division shall apply to all boards of the City of Miami unless there is any statutory or City Charter provision to the contrary, or unless otherwise specifically provided in this article.

(Ord. No. 11130, § 5, 3-24-94; Ord. No. 11188, § 2, 10-27-94; Code 1980, § 2-425; Ord. No. 11538, § 2, 9-9-97)

City attorney's note—As of the effective date of Ord. No. 11188 (30 days from Oct. 27, 1994), the following city boards are governed by City Charter or statutory provisions; therefore, application of the standards contained in this article shall be limited by said provisions:

1. Civil service board.
2. Off-street parking board of the City of Miami.
3. Code enforcement board.
4. Planning advisory board.
5. Zoning board.

Sec. 2-882. Definition of board.

The term "board" is defined to include every agency, authority, advisory board, regulatory board, quasijudicial board, semiautonomous instrumentality, committee, task force or any other citizens' group created and funded in whole or in part by the city commission. The foregoing notwithstanding, this division shall not apply to citizen groups created for specific advisory purposes where such group's existence is limited to a period of less than one year nor to the firefighters' and police officers' retirement trust or the general employees' and sanitation employees' retirement trust boards. Except as otherwise provided herein or in the City Charter, city boards and citizens' advisory groups shall only be created by action of the city commission, and only the city commission, as a body, may appoint the members to such boards and groups.

(Ord. No. 11130, § 5, 3-24-94; Code 1980, § 2-426)

Sec. 2-883. Creation of new boards.

(a) All city boards created after the effective date of this division shall be created by ordinance or resolution. Such ordinance or resolution shall set forth the board's purpose, function, power, responsibility, jurisdiction, membership requirements and restrictions, terms and conditions of appointment to or removal from the board, and the specific staff support, if any, to be provided to the board. The ordinance or resolution shall also provide for an annual report, either oral or written, to the city commission.

(b) After passage on first reading of an ordinance creating a new board and prior to the second reading of said ordinance, or prior to the presentation of a resolution creating a board to the city commission, the city manager shall

submit to the city commission a report setting forth the following information concerning the proposed new board:

(1) For boards other than advisory boards, whether the establishment of the board will create sufficient betterment to the community to justify the city commission's delegation of a portion of its authority.

(2) Whether another board or agency, either public or private, which is already in existence could serve the same purpose.

(3) The costs, both direct and indirect, of establishing and maintaining the board.

(4) Whether the board is necessary to enable the city to obtain state or federal grants or other financing.

(5) For boards other than advisory boards, whether the board should have bonding authority.

(6) For boards other than advisory boards, whether the board should have the final authority to enter into contracts and spend city funds, or whether its contracts and expenditures must be ratified by the city commission.

(7) Whether the creation of a new board is the best method of achieving the benefit desired.

For boards created by ordinance, the second reading shall be held no earlier than 15 days after passage on first reading of the ordinance creating said board.

(d) All boards existing prior to the effective date of this amendment, and which meet the definition of a board in section 2-882, regardless of the manner in which said board was created, shall continue to be a city board under this division.
(Ord. No. 11130, § 5, 3-24-94; Code 1980, § 2-427; Ord. No. 13502, § 1, 3-12-15)

Sec. 2-884. Membership on boards.

(a) Unless otherwise specifically provided in the Charter or the Code, all members of city boards shall be permanent residents of the city, or own real property in the city, or work or maintain a business in the city, and shall have good reputations for integrity and community service. In addition, all board members should have demonstrated an interest in the field, activity or sphere covered by the board. Each board shall include at least one member whose livelihood does not depend on the area regulated, administered or dealt with by the board.

(b) Unless the city commission by four-fifths vote of its membership or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation waives the requirement that board members either reside in the city, own real property in the city or maintain a business in the city, any member of a city board who ceases to be a resident of the city and/or ceases to work, own real property or maintain a business in the city during the term of his or her office shall immediately advise the city clerk. The city clerk shall inform the city commission whenever a board member has ceased to be in compliance with said eligibility requirements for board membership and said board member shall be automatically removed from the board. The city clerk shall then inform the city commission in writing that the position has been declared vacant. Upon being advised by the city clerk of such circumstances, the city commission shall promptly fill the vacant position.

(c) The primary consideration in appointing board members shall be to provide the board with the needed technical, professional, financial, business or administrative expertise. The membership of each board should be representative of the community at large and should reflect the racial, ethnic and cultural makeup of the community.

(d) No member of any city board shall become a candidate for elective political office during his or her term. Should any member of a city board become a candidate for elective political office, as detailed in subsections (1), (2), or (3), below, such action shall be deemed a tender of resignation

from such board. The board member's resignation shall be effective upon whichever occurs first:

(1) At the time such board member receives contributions or makes expenditures, or gives his or her consent for any other person to receive contributions or make expenditures, with a view to bringing about his or her nomination or election to public office;

(2) At the time such board member appoints a campaign treasurer and designates a primary depository; or

(3) At the time such board member files qualification papers and subscribes to a candidate's oath as required by law.

However, any individual that is required to resign from a city board under the circumstances described above may be reappointed to his or her city board position by a simple majority vote of the city commission.

None of the above provisions in subsection 2-884(d), relating to resignation from city boards upon candidacy for elective office, shall apply to a sitting city commissioner or mayor.

When a sitting city commissioner or mayor becomes a candidate for office, and is, therefore, required to resign from his or her presently held seat under state law, if the city commission appoints that individual to serve the remainder of the term for his or her presently held seat until the election, then that individual shall also automatically be deemed reappointed to his or her position(s) on any city board. If, however, that individual is not appointed by the city commission to serve the remainder of his or her presently held seat until the election, then that individual's resignation from his or her presently held seat shall be deemed a tender of resignation for his or her position(s) on any and all city boards.

The provisions of subsection 2-884(d), as detailed above, shall not apply in the event of any conflict with state law.

(e) Except as specifically provided in the Charter or the Code, an employee of Miami-Dade County, Florida, or any municipality therein other than a city employee, shall not serve on or be appointed to any board of the city, unless the city commission waives this restriction by a four-fifths affirmative vote of its membership and the employee is a resident of the city.
(Ord. No. 11130, § 5, 3-24-94; Ord. No. 11188, § 3, 10-27-94; Code 1980, § 2-428; Ord. No. 11538, § 2, 9-9-97; Ord. No. 11581, § 1, 12-30-97; Ord. No. 11619, § 1, 3-10-98; Ord. No. 12059, § 1, 5-10-01; Ord. No. 12906, § 2, 4-12-07; Ord. No. 13170, § 1, 5-13-10; Ord. No. 13618, § 1, 7-14-16; Ord. No. 14060, § 2, 4-28-22)

Sec. 2-885. Terms of office; term limit waiver.

(a) Unless otherwise specifically provided in the charter or the Code, the terms of office of the members of each board shall be:

(1) One year;

(2) Until the nominating commissioner leaves office; or

(3) Until recommended for removal, at the will of the nominating commissioner, voted upon by the members of the city commission, whichever occurs first. When the nominating commissioner leaves office the board member's term shall expire. Vacancies on boards shall be filled by the commission for the unexpired term. Board members shall continue to serve until their successors have been appointed and qualified. The provisions of this section shall not apply to the downtown development authority.

(b) Unless otherwise specifically provided in the Charter or the Code, no board member shall serve more than eight consecutive years on any one board. The provisions of this section shall be applied prospectively to current board members. Nothing set forth in the subsection above shall prohibit any individual from being reappointed to a city board after a hiatus of two years.

(c) Unless otherwise specifically provided in the Charter or the Code, the eight-consecutive-years limitation contained in subsection (b) of this section may be waived for a particular board member who has completed eight consecutive years to permit such board member to be reconsidered annually for an additional one-year term by a unanimous vote of the members of the city commission.

(Ord. No. 11130, § 5, 3-24-94; Code 1980, § 2-429; Ord. No. 11373, § 5, 6-27-96; Ord. No. 11538, § 2, 9-9-97; Ord. No. 12016, § 1, 1-11-01; Ord. No. 12378, § 2, 6-12-03; Ord. No. 12695, § 1, 6-9-05; Ord. No. 12906, § 2, 4-12-07)

Editor's note—Ord. No. 12378, § 2, adopted June 12, 2003, changed the title of § 2-885 from "Terms of office" to "Terms of office; term limit waiver." The historical notation has been retained for reference purposes.

Sec. 2-886. Attendance requirement.

(a) Notwithstanding any other provision of this Code, any board member shall be automatically removed if, in a given calendar year:

(1) He or she is absent from three consecutive meetings;

(2) He or she is absent from four of the board's meetings; or

(3) Provided that regardless of their compliance with subsection (a)(1) and (2) hereinabove, members must attend at least 50 percent of all the board meetings held during a year.

(b) A member of a city board shall be deemed absent from a meeting when he or she is not present at the meeting at least 75 percent of its duration.

(c) The provisions of this section may only be waived once by a four-fifths vote of the members of the full city commission.

(d) The provisions of this section shall not apply to municipal board members, as defined in F.S. § 112.501, as amended, and to those individuals who are members of city boards and who are:

(1) Reservists in the United States Armed Forces or members of the Florida National Guard, and have been ordered to active military duty for national, state, or homeland defense and due to such duty cannot attend board meetings;

(2) Employees of agencies whose services are considered essential for national, state, or homeland defense and due to such services cannot attend board meetings;

(3) Employees who have taken a leave of absence from their employment pursuant to the terms of the Family Medical Leave Act (FMLA); or

(4) Granted an absence waiver by a supermajority of the municipal board members present at the meeting.

(Ord. No. 11130, § 5, 3-24-94; Code 1980, § 2-430; Ord. No. 12201, § 1, 3-14-02; Ord. No. 12906, § 2, 4-12-07; Ord. No. 13608, § 1, 5-12-16)

Sec. 2-887. Quorum requirements; exceptions.

(a) Except for those boards listed in subsection (b) hereinbelow or where provided elsewhere in this Code, a quorum for all boards' meetings, shall consist of fifty percent (50%) plus one of the board's total membership. The decision of a majority of the board members present and voting at a meeting at which a quorum is present shall be the decision of the board.

(b) The following boards are subject to quorum requirements as provided for elsewhere in this Code.

Affordable Housing Advisory Committee

Audit Advisory Committee

Bayfront Park Management Trust

Downtown Development Authority

Equal Opportunity Advisory Board

Historic and Environmental Preservation Board

Miami Arts and Entertainment Council

Miami Forever Bond Program Citizens' Oversight Board

Parks and Recreation Advisory Board

Urban Development Review Board

(Ord. No. 11130, § 5, 3-24-94; Code 1980, § 2-431; Ord. No. 11348, § 2, 3-14-96; Ord. No.

11801, § 2, 6-8-99, Ord. No. 11833, § 2, 9-21-99; Ord. No. 11850, § 2, 10-26-99; Ord. No. 11982, § 2, 10-26-00; Ord. No. 11995, § 2, 11-16-00; Ord. No. 12179, § 1, 1-10-02; Ord. No. 12364, § 1, 5-8-03; Ord. No. 12386, § 2, 7-17-03; Ord. No. 12471, § 2, 1-8-04; Ord. No. 12519, § 2, 4-8-04; Ord. No. 12623, § 7, 12-9-04; Ord. No. 12743, § 2, 11-17-05; Ord. No. 12906, § 2, 4-12-07; Ord. No. 12967, § 3, 2-14-08; Ord. No. 13172, § 1, 5-13-10; Ord. No. 13517, § 3, 5-14-15; Ord. No. 13752, § 2, 3-22-18; Ord. No. 13801, § 2, 10-25-18; Ord. No. 13863, § 2, 10-10-19; Ord. No. 13965, § 2, 2-11-21; Ord. No. 13967, § 2, 2-25-21; Ord. No. 14074, § 2, 6-23-22; Ord. No. 14351, § 2, 2-13-25)

Sec. 2-888. Notice to city clerk of board meetings.

All city boards shall provide the city clerk written notice of their meetings at least seven days prior to such meetings, except in the case of emergency meetings.
(Ord. No. 11130, § 5, 3-24-94; Code 1980, § 2-432)

Sec. 2-889. City clerk to keep records of boards.

The city clerk or his/her designee shall serve as liaison between the city commission and all city boards. He/she shall prepare a standard form to be used by all boards to report their members' attendance to their meetings. All city boards shall submit copies of the minutes of their meetings and records of their members' attendance to said meetings to the city clerk within five days after each meeting. The city clerk shall inform the city commission whenever a board member has resigned from a board or has exceeded the number of permissible absences and said board member will be automatically removed from the board. The city clerk shall then inform the city commission in writing that the position has been declared vacant and a successor member must be promptly appointed to fill the vacancy.
(Ord. No. 11130, § 5, 3-24-94; Ord. No. 11188, § 4, 10-27-94; Code 1980, § 2-433)

Sec. 2-890. Annual report.

Commencing with the year 1995, each city board and committee shall report in the following manner: By January 15, 1995, and thereafter by January 15 of each subsequent year, its chairperson shall submit a report, approved by the board, to the city manager setting forth the following information concerning the board:

(1) Whether the board is serving the purpose for which it was created.

(2) Whether the board is serving current community needs.

(3) A list of the board's major accomplishments.

(4) Whether there is any other board, either public or private, which would better serve the function of the board.

(5) Whether the ordinance creating the board should be amended to better enable the board to serve the purpose for which it was created.

(6) Whether the board's membership requirements should be modified.

(7) The cost, both direct and indirect, of maintaining the board.

(Ord. No. 11130, § 5, 3-24-94; Code 1980, § 2-434)

Sec. 2-891. Reserved.

Editor's note—Ord. No. 14138, § 2, adopted February 9, 2023, repealed the former section 2-891 in its entirety, which pertained to the NET administrator as liaison to boards, and derived from Ord. No. 11130, § 5, adopted March 24, 1994; Ord. No. 11888, § 5, adopted October 27, 1994, and the Code of 1980, § 2-435.

Sec. 2-892. "Sunset" review of boards.

Commencing with the year 1995, each city board shall be reviewed in the following manner:

(1) By February 15 of the year in which a board is to be reviewed, the city manager shall deliver to the city commission the report submitted by the chairperson of each board pursuant to section 2-890

hereinabove, together with any recommendation or comments the city manager desires to submit.

(2) During the month of March of each year in which a board is to be reviewed, the chairperson shall make an oral presentation to the city commission. Said presentation shall be based on the report set forth in section 2-890 above. At the conclusion of the oral presentation by the board's chairperson, any individual commissioner may request the formation of a special purpose board, (hereinafter referred to as the "SPB"), consisting of five members appointed by the city commission. The SPB shall evaluate the chairperson's report, the city manager's recommendations and any other information it deems relevant to determine whether the board being reviewed shall continue in its present form. The SPB shall make a report to the full commission within 90 days.

(3) At the conclusion of this review process, the city commission shall determine whether to abolish, continue, consolidate or modify the board for the ensuing four years thereafter. Nothing contained herein shall be construed to authorize the abolition, consolidation or modification of any multijurisdictional board.

(4) The following boards shall initially be reviewed in the following years and shall be reviewed every four years thereafter:

a. 1995:
   1. Bayfront Park management trust.
   2. Citywide community development advisory board.
   3. Civil service board.
   4. Code enforcement boards.
   5. Equal opportunity advisory board.

b. 1996:
   1. Committee on ecology and beautification.

c. 1997:
   1. Reserved.
   2. Audit advisory committee.
   3. Urban development review board.
   4. Nuisance abatement board.

d. 1998:
   1. Historical and environmental preservation board.
   2. Waterfront advisory board.

e. 1999:
   1. Little Havana Special Events District.

f. 2000:
   1. Reserved.
   2. Virginia Key Beach Park trust.

g. 2002:
   1. Reserved.
   2. City of Miami arts and entertainment council.

h. Reserved.

i. Reserved.

j. Reserved.

k. Reserved.

l. 2010:
   1. Overtown Advisory Board/Overtown Community Oversight Board.
   2. Liberty City Community Revitalization Trust.
   3. Education advisory board.
   4. Planning, zoning, and appeals board.

m. 2011:
   1. Parks and recreation advisory board.

n. Reserved.

o. 2013:
   1. Housing and commercial loan committee.

p. Reserved.

q. 2019:

1. Senior citizens' advisory board.

(5) All boards created after the effective date of this division shall be placed in the appropriate area under subsection (4) hereinabove, and shall be reviewed in accordance therewith.

(Ord. No. 11130, § 5, 3-24-94; Code 1980, § 2-436; Ord. No. 11722, § 3, 11-17-98; Ord. No. 11716, § 2, 10-27-98; Ord. No. 11710, § 2, 10-13-98; Ord. No. 11735, § 2, 12-8-98; Ord. No. 11742, § 2, 1-12-99; Ord. No. 11797, § 2, 5-11-99; Ord. No. 11800, § 2, 6-8-99; Ord. No. 11833, § 2, 9-21-99; Ord. No. 11849, § 2, 10-26-99; Ord. No. 11857, § 2, 11-16-99; Ord. No. 11982, § 2, 10-26-00; Ord. No. 11995, § 2, 11-16-00; Ord. No. 11998, § 3, 11-16-00; Ord. No. 12003, § 2, 12-14-00; Ord. No. 12077, § 2, 6-14-01; Ord. No. 12082, § 2, 7-10-01; Ord. No. 12086, § 2, 7-10-01; Ord. No. 12177, § 2, 1-10-02; Ord. No. 12192, § 4, 3-7-02; Ord. No. 12227, § 1, 5-9-02; Ord. No. 12234.1, § 2, 6-13-02; Ord. No. 12235, § 2, 6-13-02; Ord. No. 12356, § 2, 4-10-03; Ord. No. 12386, § 2, 7-17-03; Ord. No. 12404, § 3, 9-11-03; Ord. No. 12408, § 2, 9-25-03; Ord. No. 12564, § 1, 7-22-04; Ord. No. 12623, § 7, 12-9-04; Ord. No. 12698, § 1, 6-23-05; Ord. No. 12748, § 2, 12-15-05; Ord. No. 12858, § 3, 10-12-06; Ord. No. 12859, § 3, 10-12-06; Ord. No. 12938, § 2, 8-1-07; Ord. No. 12967, § 4, 2-14-08; Ord. No. 12982, § 2, 4-10-08; Ord. No. 12994, § 2, 5-8-08; Ord. No. 13012, § 2, 7-24-08; Ord. No. 13030, § 2, 10-16-08; Ord. No. 13059, § 2, 3-12-09; Ord. No. 13066, § 3, 5-14-09; Ord. No. 13296, § 1, 12-15-11; Ord. No. 13322, § 1, 6-14-12; Ord. No. 13376, § 2, 4-11-13; Ord. No. 13419, § 1, 12-12-13; Ord. No. 13476, § 3, 9-11-14; Ord. No. 13497, § 2, 2-26-15; Ord. No. 13517, § 4, 5-14-15; Ord. No. 13534, § 2, 7-9-15; Ord. No. 13801, § 2, 10-25-18; Ord. No. 13863, § 2, 10-10-19; Ord. No. 13965, § 2, 2-11-21; Ord. No. 14351, § 2, 2-13-25)

Sec. 2-893. Oath of office.

All members of the city boards who receive remuneration from the city shall, before entering upon the duties of office, take and subscribe to an oath or affirmation, to be filed and kept in the office of the city clerk, that he or she will support, protect and defend the constitution and laws of the United States of America and of the State of Florida.

(Ord. No. 11356, § 2(2-437), 4-25-96)

Sec. 2-894. Meetings.

Notwithstanding any other provisions to the contrary contained in this Code and absent express approval of the city commission, no meetings of any city boards, commissions, committees, or task forces shall occur on any holiday recognized by the city or by the Florida Supreme Court.

(Ord. No. 13895, § 2, 2-13-20)

Sec. 2-895. Continuances/deferrals by city boards.

Notwithstanding anything to the contrary in the City Code or Ordinance No. 13114, the Zoning Ordinance of the City of Miami, Florida, as amended, any board as defined in section 2-882 of the City Code, other than the city commission, acting in its advisory capacity and making recommendations to the city commission that has the authority to continue or defer an item may only defer or continue an item as follows:

The board may defer an item to the next scheduled meeting date, which at no time will be more than 30 days, with a simple majority vote.

The board must specify reasons for the deferral or continuance. If a board does not or is unable to act on an item within the above time period, the item shall be considered a denial and/or will result in the item moving on to the city commission with a recommendation of denial from the lower board, as applicable.

This requirement may be waived by mutual consent of the board and the applicant, whether the applicant is the city, a private party, or any other applicant. The above time period shall not apply if the board meeting is cancelled due to an emergency, such as a state of emergency due to a

natural disaster. The board shall be afforded one meeting cancellation due to quorum that will not count toward the above time period.
(Ord. No. 14012, § 2, 7-22-21; Ord. No. 14122, § 2, 11-17-22)

Sec. 2-896. Appointment of members.

(a) Unless otherwise specifically provided in the Charter or the City Code, appointment of board members shall be placed on a city commission agenda on a quarterly basis. The placement shall occur on the first regular scheduled city commission meeting for the months of March, June, September, and December, respectively.

(b) Subsection (a) above shall apply to all board member appointments, unless, a written request is submitted to the city clerk for a time-sensitive appointment. Should such request be made, the board appointment shall be placed on the next available city commission agenda, pursuant to the procedures for appointment of members.
(Ord. No. 14361, § 2, 4-10-25)

Secs. 2-897—2-920. Reserved.

DIVISION 3. RESERVED*

Secs. 2-930—2-945. Reserved.

DIVISION 4. AUDIT ADVISORY COMMITTEE†

Sec. 2-946. Created; number of members; function.

A Miami audit advisory committee is hereby created consisting of five persons. The basic function of the committee is to assist the mayor, city commission and the city manager in fulfilling their fiduciary responsibilities relating to accounting, auditing and financial reporting. The committee shall:

(1) Review the annual audit of city accounts performed by the independent external auditor.

(2) Review the annual management letter developed by the independent external auditor.

(3) Review the systems of internal controls utilized by the city.

(4) Review the city's compliance with the GASB (Government Accounting Standards Board) guidelines and requirements.

(5) Review internal audit reports where it is felt by the internal auditor that fraud or criminal conduct may be involved, to the extent that it does not compromise criminal investigations.

(6) Review the audit selection committee's recommendations for selection of an independent external auditor if requested by or directed by the city commission.

(7) Review such other financial matters as requested by the city manager or as directed by resolution of the city commission.

(Ord. No. 9245, § 1, 2-26-81; Ord. No. 9575, § 1, 3-18-83; Ord. No. 9699, § 2, 10-25-83; Code 1980, § 2-237; Ord. No. 11564, § 4, 10-28-97; Ord. No. 11979, § 2, 10-12-00; Ord. No. 13899, § 2, 4-9-20)

Sec. 2-947. Composition; terms.

(a) The composition of the Miami audit advisory committee shall be as follows:

(1) Each city commissioner shall recommend one member subject to appointment by the city commission.

(2) All members appointed by the city commission shall serve for a period of one year or until the nominating commissioner leaves office, whichever occurs first.

*__Editor's note—__Ord. No. 14351, § 2, adopted February 13, 2025, repealed the former division 3, sections 2-921—2-929 in its entirety, which pertained to the mayor's council on global competitiveness and derived from Ord. No. 12386, § 4, adopted July 17, 2003; Ord. No. 12520, § 1, adopted April 8, 2004; Ord. No. 12743, § 2, adopted November 17, 2005; Ord. No. 13147, § 2, adopted March 11, 2010; Ord. No. 13532, § 2, adopted July 9, 2015, and Ord. No. 13863, § 2, adopted October 10, 2019.

†__County Code cross reference—__Audit review committee to work with Miami-Dade Water and Sewer Authority Department, § 2-346.

(3) The independent auditor general and the director of finance shall not be members of the committee but shall be informed of and invited to attend each committee meeting.

(4) All members shall be qualified and distinguished by their education, experience and attainments in the accounting profession, the practice of law, banking or business management. Members of the committee shall be selected from among the following:

a. A controller or chief financial officer of a large commercial enterprise (with size measured by dollar sales/revenue volume).

b. A commercial or investment banker associated with a large financial institution.

c. A practicing certified public accountant (if not a certified public accountant, then an accountant who shall have managed an accounting practice employing at least ten individuals).

(b) All committee members shall continue to serve until their successors are duly appointed.
(Ord. No. 9245, § 2, 2-26-81; Ord. No. 9575, § 1, 3-18-83; Ord. No. 9699, § 2, 10-25-83; Ord. No. 11130, § 6, 3-24-94; Code 1980, § 2-238; Ord. No. 11373, § 2, 6-27-96; Ord. No. 13899, § 2, 4-9-20)

Sec. 2-948. Organization; quorum.

(a) The committee shall be convened for its first organizational meeting by the city manager as soon as is practical after designation of its members by the city commission. At that meeting, the committee shall:

(1) Elect a chairperson for a two-year term from the date of such election.

(2) Establish operating procedures to govern the committee's operations and deliberations.

(3) Establish an annual work program and schedule of actions to be accomplished.

(4) Conduct such other business as is deemed necessary to carry out the committee's duties and obligations.

Subsequent annual organizational meetings shall be convened by the chairperson, for the above purposes, prior to the expiration of his or her term as chairperson.

(b) The committee shall elect its own chairperson who shall:

(1) Call and conduct all meetings.

(2) Be responsible to ensure that notes of all meetings are maintained.

(3) Be responsible that the notes of all meetings are forwarded to the mayor, the city commission and the city manager in a timely fashion.

(c) Quorum. Three members constitute a quorum to convene a meeting of the audit advisory committee. An affirmative vote of the majority of the members present and voting at a meeting at which a quorum is present is required for any action to be taken by the members.
(Ord. No. 9245, § 3, 2-26-81; Ord. No. 9575, § 1, 3-18-83; Ord. No. 9699, § 2, 10-25-83; Code 1980, § 2-239; Ord. No. 11564, § 4, 10-28-97; Ord. No. 12471, § 2, 1-8-04)

Sec. 2-949. Liaison and support services.

It shall be the duty of the city manager to provide liaison with the committee and support service from the administration.
(Ord. No. 9245, § 4, 2-26-81; Ord. No. 9575, § 1, 3-18-83; Ord. No. 9699, § 2, 10-25-83; Code 1980, § 2-239.1)

Sec. 2-950. Duties.

The duties of the committee shall include but not be limited to:

(1) Recommending to the mayor and city commission specifications and performance standards to be utilized in the audit selection committee's issuing of solicitations pursuant to sections 18-122 and 18-542(12)(a) of the City Code to qualified independent external auditors

to perform annual independent audit services for the city pursuant to F.S. § 218.39, as amended.

(2) Assisting the city by having one or more members of the committee serve on the audit selection committee for the independent external auditor as requested by the chair of the audit selection committee or his or her designee.

(3) Recommending selection of an independent auditor general to the city commission. Such selection shall be based upon a review and analysis of responses to invitations issued by the committee on behalf of the city. Review and analysis by the committee shall consist of such measures as are considered appropriate by the committee including, but not limited to, interviews, negotiations and investigation of prior audit engagements.

(4) Maintaining liaison with the selected respective independent external auditor and the independent auditor general including, but not limited to, monitoring of both the independent external auditor's and independent auditor general's respective work progress, and reviewing preliminary and final reports issued by the independent external auditor and the independent auditor general.

(Ord. No. 9245, § 5, 2-26-81; Ord. No. 9575, § 1, 3-18-83; Ord. No. 9699, § 2, 10-25-83; Code 1980, § 2-239.2; Ord. No. 11564, § 4, 10-28-97; Ord. No. 13899, § 2, 4-9-20)

Sec. 2-951. Factors for consideration in decisions.

In its deliberations and actions, the committee shall be guided by the following:

(1) The requirements of the statutes of the state as they now, or in the future may, pertain to annual audit services for the city.

(2) Accounting and auditing standards as they are now, or in the future may be, issued by the National Council on Governmental Accounting, the Governmental Accounting Standards Board, and the American Institute of Certified Public Accountants.

(3) Quarterly closings of the city's financial books and records.

(4) Quarterly audit reviews by the independent auditor general.

(Ord. No. 9245, § 6, 2-26-81; Code 1980, § 2-239.3; Ord. No. 13899, § 2, 4-9-20)

Secs. 2-952—2-975. Reserved.

DIVISION 5. EQUAL OPPORTUNITY ADVISORY BOARD*

Sec. 2-976. Established; members, terms of office.

(a) There is hereby established a board to be known as the city equal opportunity advisory board, hereinafter called the "board." The board shall consist of 14 members, ten members to be appointed by the city commission, and four members, one each, to be selected by each certified bargaining representative of city employees, as follows:

(1) Fraternal Order of Police, Miami Lodge No. 20.

(2) International Association of Firefighters, Local No. 587.

(3) Laborers' International Union of North America, Local No. 800.

(4) Miami General Employees, American Federation of State and County Municipal Employees, Local No. 1907.

(b) Persons so selected shall become members of the board when confirmed by the city commission.

(c) The terms of the board members shall be of one year or until the nominating commissioner leaves office, whichever occurs first.

*__Note—__Ord. No. 11995, § 2, adopted Nov. 16, 2000, changed the title from Affirmative Action Advisory Board to Equal Opportunity Advisory Board.

(d) The city commission may remove any member of the board for cause, upon stating in writing the reasons for removal, allowing him or her to be heard by the city commission in his or her own defense.

(e) Any vacancy on the board shall be filled by the commission for the unexpired term; provided, however, that members of the board shall continue to serve until their successors have been selected and qualified.
(Ord. No. 8725, § 1(1), 11-10-77; Ord. No. 9139, § 1(1), 7-24-80; Ord. No. 11130, 3-24-94; Code 1980, § 2-276; Ord. No. 11373, § 3, 6-27-96; Ord. No. 11995, § 2, 11-16-00)

Sec. 2-977. Election of officers; establishment, availability of rules of procedure.

(a) The board shall choose from among themselves a chairperson and vice-chairperson to serve for terms of one year each, and shall choose other officers as they deem appropriate.

(b) The board shall establish rules of procedure for governing and conducting its affairs. These rules should be available in writing upon request from the public.
(Ord. No. 8725, § 1(4), 11-10-77; Ord. No. 9139, § 1(4), 7-24-80; Code 1980, § 2-277)

Sec. 2-978. Designation of executive secretary.

The director of equal opportunity diversity programs, hereinafter referred to as "director" in this division, shall be the executive secretary for the board.
(Ord. No. 8725, § 1(5), 11-10-77; Ord. No. 9139, § 1(5), 7-24-80; Code 1980, § 2-278)

Sec. 2-979. Meetings—Generally.

(a) *Scheduling.* The board shall hold at least one regularly scheduled meeting each month, except during the month of August, on days to be determined by the board. Upon ten days' notice, the chairperson of the board may cancel and/or reschedule any meeting. Other meetings may be scheduled by the board or be held at the call of the chairperson; however, ten days' written notice to each member is required, except where the city manager and board chairperson agree to call an emergency meeting. The board, its established committees, and specially appointed officers shall have the power to take testimony under oath.

(b) *Minutes.* The board shall keep minutes of its proceedings, showing the vote of each member, or his or her absence or failure to vote.

(c) *Quorum, majority vote requirement.* A majority of the members present shall constitute a quorum for the purpose of convening any meeting of the board. A majority vote of those present and voting shall decide any question properly brought before the board.
(Ord. No. 8725, § 1(6)—(8), 11-10-77; Ord. No. 9139, § 1(6)—(8), 7-24-80; Ord. No. 10160, § 1, 10-7-86; Code 1980, § 2-279; Ord. No. 11801, § 2, 6-8-99)

Sec. 2-980. Same—Authority to require attendance of department representatives.

Upon a minimum of ten days' notice from the executive secretary of the board, a city department head requested to attend a meeting of the board shall so attend or may appoint and direct a representative of that department to attend.
(Ord. No. 8725, § 1(10), 11-10-77; Ord. No. 9139, § 1(10), 7-24-80; Code 1980, § 2-280)

Sec. 2-981. Disqualification of members.

(a) *Residency.* With the exception of those board members selected by certified bargaining representatives of city employees, all board members shall be permanent residents of the city in order to serve on the board.

(b) *Conflicts of interest.* Board members shall not vote on matters which involve their personal or private interests. If a majority of the other board members sitting vote to disqualify a member from voting on a given matter because they determine that a conflict of interest exists, that member shall not be permitted to vote. No board member shall be permitted to represent any other person before the board or the city commission in any matter concerning employment or affirmative action.

(c) *Nonattendance of meetings.* Failure of a board member to attend three consecutive meetings, as determined and recorded by the chairperson, shall automatically disqualify said member from holding office.
(Ord. No. 8725, § 1(9), 11-10-77; Ord. No. 9139, § 1(9), 7-24-80; Ord. No. 9348, § 1, 11-12-81; Code 1980, § 2-281)

Sec. 2-982. Duties generally.

The board shall provide advice and recommendations regarding affirmative action. The director or his or her designee shall represent the city manager in all matters of affirmative action and shall provide all staff support to the board. With the assistance of the director, the board shall perform the following duties and functions:

(1) Review and recommend to the mayor and the city commission the adoption of amendments and revisions to the city's affirmative action program plan, for meeting present and possible future requirements.

(2) Review employment policies and practices of the city and make recommendations to the personnel management department through the director.

(3) Conduct monthly meetings, open to the public, for discussion of the city's affirmative action program, review of specific complaints of alleged discrimination properly brought before the board, and receipt of reports from the director.

(4) Recommend to the mayor and city commission ordinances, resolutions, and other proposals relating to the affirmative action program.

(5) Serve with the director and the personnel management department as an instrument for informing the mayor, city commission, city departments and agencies and the public of the continuing affirmative action program and its purposes.

(6) Make recommendations or reports to the mayor and city commission directly as deemed appropriate by the board.

(Ord. No. 8725, § 1(3), 11-10-77; Ord. No. 9139, § 1(3), 7-24-80; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-282; Ord. No. 11564, § 4, 10-28-97)

Sec. 2-983. Formulation, adoption of affirmative action plan.

(a) *Coordination by director.* Under the authority of the city manager, the director shall work in direct coordination with the board and other city boards and departments in the preparation, conduct, review, and implementation of the continuing affirmative action program.

(b) *Review, submission by board for commission approval.* The board shall review any plan relating to the city's affirmative action program as prepared and submitted by the director. This review shall be conducted in meetings open to the public and in full compliance with F.S. ch. 286, the government-in-the-sunshine law. Upon completion of public hearings and review by the board, the board shall submit to the commission through the director and the city manager its comments and recommendations concerning the plan or modifications to the plan. The civil service board of the city shall receive a copy of the plan and the board's recommendations at the same time they are submitted to the city manager.

(c) *Consideration by city commission.* The city commission, upon receiving the proposed affirmative action plan or any changes thereto, shall set a date for a public hearing, said date not being less than 30 days from the date the commission received the report from the board through appropriate administrative channels. At the conclusion of this public hearing, the city commission may adopt, reject or modify the plan or any portion thereof. No affirmative action program or plan shall become effective until its adoption by the city commission. The city commission's adoption of the plan or modifications to the plan shall take the form of a resolution wherein the commission resolves to concur with the city manager's adoption of the plan and/or modifications thereto. The city commission may, from

time to time, resolve to concur with or support statements of policy formulated by the board and/or the city administration.
(Ord. No. 8725, § 1(11)—(13), 11-10-77; Ord. No. 9139, § 1(11)—(13), 7-24-80; Ord. No. 10076, § 1, 1-23-86; Code 1980, § 2-283)

Sec. 2-984. Periodic review of affirmative action plan.

The board shall review and make comments or recommendations annually, or as directed by the city commission, concerning the city's affirmative action plans and programs. These comments and recommendations shall be presented to the city commission.
(Ord. No. 8725, § 1(14), 11-10-77; Ord. No. 9139, § 1(14), 7-24-80; Code 1980, § 2-284)

Sec. 2-985. Hearing and review of discrimination complaints.

(a) The board may hear or review grievances concerning alleged discrimination in employment policies and practices of the city when a specific grievance or complaint is referred by the director to the board.

(b) Following such referral by the director, the board may appoint a committee or a single hearing officer to hear these complaints and to report findings and make recommendations to the full board.
(Ord. No. 8725, § 1(2), 11-10-77; Ord. No. 9139, § 1(2), 7-24-80; Ord. No. 9348, § 2, 11-12-81; Code 1980, § 2-285)

Secs. 2-986—2-1010. Reserved.

DIVISION 6. EDUCATION ADVISORY BOARD

Sec. 2-1011. Education advisory board establishment; purpose.

There is hereby created and established the education advisory board, and herein referred to as "board," to function as a forum for dialogue among community-based education stakeholders, city officials, and Miami-Dade County Public School District representatives to identify needs, concerns, and opportunities for collaboration. The board may be presented with requests, by Miami-Dade County public schools located within the City of Miami for official city support through funding, sponsorships regarding public events, public programming, capital improvements, and other non-curriculum assistance.

The board will also serve as a venue for issues requiring intergovernmental coordination, including public facility conditions, safety concerns, and proposed capital projects and long-term capital plans to facilitate timely communication, responsiveness, and advisory input by appropriate school district and city personnel.
(Ord. No. 14449, § 2, 3-12-26)

Sec. 2-1012. Powers and duties.

(a) *Powers and duties.* The board shall:

(1) Hold public hearings to receive public and expert input regarding: public programming of joint use public facilities, public events involving Miami-Dade County Public Schools located within city geographical boundaries, coordinate and advise on conditions of public facilities and capital improvement projects;

(2) Encourage the fullest and most active participation and coordination of intergovernmental agencies for capital improvement needs of Miami-Dade County Public Schools' public facilities located within the city's geographical limits;

(3) Create, coordinate, and manage policies and procedures for events related to the board's purpose;

(4) The education advisory board may, by majority vote, sponsor advisory items for placement on the city commission agenda, provided such items are sponsored by a city commissioner, the mayor, or the city manager and are submitted in accordance with established city commission agenda procedures. All sponsored city commission agenda items shall be advisory in

nature and shall have no binding effect unless formally adopted by the city commission;

(5) Make recommendations to the Mayor, the city commission, and the city manager regarding public education needs of Miami-Dade County Public Schools located within the city's limits;

(6) Any resolution of the board making recommendations to the city commission shall be submitted to all city commissioners by the board liaison and liaison shall solicit sponsorship by city commissioner for the item to be placed on the next feasible city commission agenda as a discussion item with the board resolution and any corresponding supporting documentation approved by the board at the time the resolution was adopted by the board.

(7) Notwithstanding any provisions to the contrary, the board shall exercise only such powers and duties as are granted pursuant to this article.

(Ord. No. 14449, § 2, 3-12-26)

Sec. 2-1013. Composition; appointment and terms of office of members; filling of vacancies.

(a) *Composition and qualifications.* The board shall consist of seven voting members, who shall be city residents and must either: have a child attending a Miami-Dade County Public School located within the City of Miami or serve as a member of a Parent Teacher Advisory Board of a Miami-Dade County Public School located within the City of Miami. In addition, there shall be one non-voting member that must be an employee of Miami-Dade County Public Schools. The board shall be comprised of eight members in total.

(b) *Appointment of members.* The eight members shall be appointed to the Board as follows:

(1) Each of the five city commissioners shall appoint one voting member.

(2) The mayor shall appoint one voting member

(3) The city manager shall appoint one voting member.

(4) The Miami-Dade County Public School Superintendent, or their designee, shall appoint one non-voting member.

(5) No alternates shall be appointed.

(c) *Term.* The terms of office for board members shall be for two years from the date of appointment.

(d) *Minimum attendance requirements.* The minimum attendance requirements as provided in section 2-886 of the City Code shall apply.

(e) *Removal.* The mayor and each city commissioner shall have the power to remove, at any time and for any reason, his/her respective appointee without a finding of cause. The city commission shall have the power to remove, at any time, any board member by a majority vote of the city commission without a finding of cause.

(f) *Resignation.* Members may resign by submitting a signed letter of resignation to the city clerk. The city clerk shall immediately notify the appointing official of the vacancy. It shall be the obligation of each board member to notify the city clerk if the member ceases to meet the qualification criteria set forth in subsection (a) above.

(g) *Vacancies.* In the event a vacancy occurs on the board, whether automatically, by vote of the city commission, by removal by the mayor or the city commissioner who appointed such member, by resignation of the member, or for any other reason, the mayor for mayoral appointees and the city commissioner for their respective appointees may appoint a qualified person to fill the remaining term of the vacant position. Only notice of such appointment by the appointing city official on the agenda of the next regularly scheduled meeting of the city commission or as soon as practicable thereafter is required and no action is required of the city commission except for the at-large member. All such appointments shall be consistent with the membership requirements stated in subsection (a) above.

(h) *Waiver.* The city commission shall have the power to waive any of the requirements of subsection (a) above by four-fifths vote of the members of the full city commission.
(Ord. No. 14449, § 2, 3-12-26)

Sec. 2-1014. Officers.

(a) The board shall have a chair and vice-chairperson of the board.

(b) At the first meeting of each calendar year for the board, the members of the board shall select and designate a chairperson and vice-chairperson from among the members of the board. Chairperson and vice-chairperson shall serve one-year terms as those respective officers of the board.
(Ord. No. 14449, § 2, 3-12-26)

Sec. 2-1015. Meetings; parliamentary authority; rules and regulations; quorum.

(a) *Procedure.* The board may adopt its own order of business, rules of procedure, and bylaws to govern its meetings and actions not inconsistent with the provisions set forth herein, which shall be filed with the city clerk. Unless and until the board adopts its own rules of procedure, it shall follow Robert's Rules of Order (current edition) except that the provisions set forth herein shall control in case of conflict.

(b) *Notice and public participation.* All meetings and workshops of the board shall be noticed and open to the public as required by the State of Florida's Sunshine Law. In addition, the public shall be encouraged to submit oral and written comments to the board at all meetings.

(c) *Minutes.* The minutes of each meeting and workshop shall be taken by applicable staff and shall promptly be provided to the city clerk as the official record of each such meeting. Such records shall be open to public inspection. Copies of minutes of all board meetings shall be furnished to the mayor, city commissioners, city attorney, and city manager.

(d) *Quorum.* A minimum of three of the members shall constitute a quorum for the purpose of convening any meeting. An affirmative vote of no fewer than two of the members present at any meeting is required for any action to be taken by the board.
(Ord. No. 14449, § 2, 3-12-26)

Sec. 2-1016. Legal counsel.

The office of the city attorney shall provide an attorney to serve as legal counsel to the board and shall provide legal advice on all matters considered by the board.
(Ord. No. 14449, § 2, 3-12-26)

Sec. 2-1017. Liaisons to board and assignment of staff.

Notwithstanding any provisions to the contrary contained in the City Code, the city manager shall designate the administration's liaison to the board, at least one of which shall be from the city's department of innovation and technology. It shall be the duty of the city manager to provide administrative support to the board, which shall include the services of an individual to maintain board correspondence, post meeting notices with the city clerk, file reports, and perform all other necessary administrative support functions. In addition to any administration liaisons assigned to the board, the city manager shall designate representatives from the departments of housing and economic development and finance and the offices of management and budget and city manager to attend all meetings. Upon the board's request, the mayor and the city manager may also participate in deliberations of the board and may offer technical and policy advice.
(Ord. No. 14449, § 2, 3-12-26)

Secs. 2-1018—2-1050. Reserved.

DIVISION 7. OVERTOWN ADVISORY BOARD/OVERTOWN COMMUNITY OVERSIGHT BOARD*

Sec. 2-1051. Establishment and purpose.

There is hereby created and established the Overtown Advisory Board/Overtown Community Oversight Board, to be known as the Overtown Community Oversight Board, to encourage and support housing, job creation, economic and business development, educational opportunities and historic and cultural preservation. The board shall provide written recommendations to the city commission regarding activities, developments and improvements within, or substantially impacting the residents of, the Overtown Area. As used herein, the "Overtown area" is that area approximately bounded on the north by Northwest 20th Street from Florida East Coast Railroad to Northwest 3rd Avenue to Northwest 5th Avenue; on the west by I-95 Expressway from Northwest 21st Terrace to 836 Expressway and State Road 836 (East-West) Expressway from I-95 to the Miami River; on the south by Northwest 3rd Street from Florida East Coast Railroad to Northwest 7th Avenue and the Miami River from Northwest 7th Avenue to 836 Expressway; and on the east by Florida East Coast Railroad right-of-way. (Note: All boundaries are to be construed expansively, incorporating the breadth of described streets, avenues, expressways, and railroad property.)
(Ord. No. 12858, § 2, 10-12-06)

Sec. 2-1052. Membership.

(a) *Generally.* The Overtown Community Oversight Board shall consist of five voting members (other than youth board members), all of whom shall be appointed, as hereinafter set forth. In addition, there shall be one non-voting youth member of the Overtown Community Oversight Board, to be appointed by the commissioner representing district five.

(b) *Qualifications.* Members of the Overtown Community Oversight Board shall be persons of knowledge, experience, mature judgment and background, having ability and desire to act in the public interest in order to make informed and equitable decisions concerning the Overtown area.

(1) Each person seeking membership on the Overtown Community Oversight Board who is not seeking appointment as a youth board member shall be deemed qualified if he/she is 18 years of age or older, and:

   a. Resides in the Overtown area;

   b. Owns property in the Overtown area;

   c. Is an employee or board member of a community based organization or community development corporation located in or providing services to the Overtown area; or

   d. Owns or is an employee of a business in the Overtown area.

(2) Each person seeking membership on the Overtown Community Oversight Board who is seeking appointment as a youth board member shall be deemed qualified if he/she is more than 14 and less than 19 years of age; and

   a. Resides in the Overtown area, and

   b. Attends an accredited educational institution in the Overtown area.

(c) *Procedure for appointment of members.*

(1) The district five city commissioner shall appoint four members to the Overtown Community Oversight Board, and the city manager shall appoint one member, all of whom shall be confirmed by the city commission. In addition, the district five city commissioner shall appoint one youth board member and preference shall be given to qualified youth board member candidates attending Booker T. Washington Senior High School.

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*__Editor's note—__Ord. No. 12858, § 2, adopted October 12, 2006, amended division 7, §§ 2-1051—2-1056, in its entirety to read as herein set out. Formerly, division 7 pertained to the Overtown Advisory Board and derived from the Code of 1980, §§ 2-451—2-456; Ord. No. 11211, §§ 1—6, adopted January 12, 1995; Ord. No. 11326, § 2, adopted November 16, 1995; Ord. No. 11403, § 2, adopted October 10, 1996; Ord. No. 11605, § 2, adopted February 10, 1998; Ord. No. 11681, § 2, adopted July 14, 1998.

__Cross reference—__Historic preservation, ch. 23.

(2) No appointment shall be made until notice has been given in a newspaper of general circulation in the city of the appointments to be made to the Overtown Community Oversight Board at least 30 days prior to the making of an appointment, which shall have solicited and encouraged the public and professional or citizen organizations within the Overtown area having interest in and knowledge of the Overtown area to submit names of persons and their qualifications for consideration as prospective appointees of the Overtown Community Oversight Board. At least ten days prior to the making of any appointment, the district five city commissioner and city manager shall cause to have available to the public, and shall publicly make announcement, that the list of names thus submitted, together with a short statement of the qualifications of each person, is prepared and available for public inspection and consideration. In reaching decision on appointments, the district five city commissioner and the city manager shall give due consideration to the names thus submitted.

(3) In addition, the district five city commissioner and the city manager shall, at least ten days prior to the making of any appointment, cause to have available to the public, and shall publicly make announcement that the names of prospective appointees submitted by the district five city commissioner and the city manager and a short statement of qualifications of such persons are available for public inspection and consideration. No person shall be appointed to membership on the Overtown Community Oversight Board whose name and qualifications have not been made publicly available in the manner set out herein.

(d) *Terms of office.* The members of the Overtown Community Oversight Board shall serve for two-year terms, expiring during the month of September. Notwithstanding the above, members of the board may continue to serve until the city commission's ratification of the new board members held following the expiration of a term.

(e) *Vacancies.* Vacancies in the membership of the Overtown Community Oversight Board shall be filled in the manner set forth in subsection (c).

(f) *Removal.* Members of the Overtown Community Oversight Board may be removed for cause by vote of not less than three members of the city commission upon written charges after a public hearing, unless the member charged waives such public hearing in writing. However, whenever any member has had within a calendar year, three consecutive absences or four absences within a calendar year from the regularly scheduled meetings, the chairperson of the board shall certify same to the city clerk. The city clerk shall then inform the district five city commissioner and the city manager in writing that the position has been declared vacant and a successor member must be appointed to fill the vacancy.

(h) *Disqualification of members.* If any member has a conflict of interest on a particular matter coming before the Overtown Community Oversight Board, he/she shall, prior to the opening of the discussion on the matter, disqualify himself/herself from all participation whatsoever in the cause; or he/she may be disqualified by a vote of not less than a majority of the voting membership of the Overtown Community Oversight Board present, not including the member about whom the question for disqualification has been raised.

(i) *Assignment of tasks.* The city manager shall provide for necessary staffing to assist the Overtown Community Oversight Board. Such staff shall:

(1) Provide and perform necessary administrative duties including providing assistance to the Overtown Community Oversight Board regarding the scheduling of meetings of the Overtown Community Oversight Board, preparing agendas, and ensuring that proper notice is provided for such meetings.

(2) Work with other city departments, public agencies, and private groups, as required,

to provide information to the Overtown Community Oversight Board on activities, developments, or improvements in, or substantially impacting the residents of, the Overtown Area.

(3) Submit the adopted minutes of each Overtown Community Oversight Board meeting to the city clerk and the district five city commissioner.

(4) Prepare summary reports of board actions for review by the board prior to delivery of the same to the city manager or his/her designee for delivery to the city commission.

(5) Review the board's budgets.

(6) Coordinate the research, development and preparation of reports and policies for projects initiated by the Overtown Community Oversight Board.

(7) Serve as the community liaison between the city, the Overtown Community Oversight Board and the residents of the Overtown area.

(8) Channel the issues and concerns of Overtown area residents, businesses and community groups to the attention of the Overtown Community Oversight Board or the appropriate city department for resolution, or to the appropriate public or private agency for action.

(9) Reestablish and maintain the Overtown resource directory.

(10) Follow through with the implementation of all decisions and actions approved by the Overtown Community Oversight Board.

(11) Share information with community organizations and receive input regarding ongoing or proposed projects and activities in the Overtown area.

(12) Schedule the use of the Overtown Community Oversight Board facilities by community organizations.

(13) Reestablish and coordinate publication and distribution of the Overtown newsletter.

(14) Coordinate projects of the Overtown Community Oversight Board with other community organizations and governmental agencies.

(15) Coordinate with the Southeast Overtown/Park West Community redevelopment agency to relate its activities to the community and community organizations, public agencies and the private business sector.

(16) Coordinate his/her activities and the activities of the Overtown Community Oversight Board with the activities of the Southeast Overtown/Park West Community redevelopment agency.

(Ord. No. 12858, § 2, 10-12-06; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13273, § 1, 6-9-11; Ord. No. 13676, § 2, 4-27-17; Ord. No. 14011, § 2, 7-8-21; Ord. No. 14138, § 2, 2-9-23)

Sec. 2-1053. Proceedings.

(a) *Officers.* The Overtown Community Oversight Board shall select a chairperson and vice-chairperson from among its members to serve for a one-year term and may create and fill such other offices as it may deem necessary or desirable.

(b) *Rules of procedure.* The Overtown Community Oversight Board shall establish rules of procedure necessary to its governing and the conduct of its affairs, in keeping with the applicable provisions of the City Charter, ordinances and resolutions. Such rules of procedure shall be available in written form to persons appearing before the board and to the public upon request.

(c) *Meetings.* A regular meeting of the Overtown Community Oversight Board shall convene at least once per month, except during the month of August. All meetings shall be open to the public.

(d) *Voting; quorum.* At all meetings of the Overtown Community Oversight Board, a majority of the voting membership (excluding vacan-

cies) shall constitute a quorum. All recommendations of the Overtown Community Oversight Board shall require a concurring vote of a majority of the members present. In case of a tie vote such vote shall be construed as a denial.
(Ord. No. 12858, § 2, 10-12-06; Ord. No. 14011, § 2, 7-8-21)

Sec. 2-1054. Compensation.

Members of the Overtown Community Oversight Board shall serve without compensation but shall be reimbursed for expenses necessarily incurred in the performance of their duties, subject to the prior approval of the city manager.
(Ord. No. 12858, § 2, 10-12-06)

Sec. 2-1055. Financial disclosure.

All members of the Overtown Community Oversight Board shall file annual financial disclosure reports pursuant to law.
(Ord. No. 12858, § 2, 10-12-06)

Sec. 2-1056. Functions, powers and duties generally.

The Overtown Community Oversight Board is hereby authorized to:

(1) Review and recommend to the city commission approval, approval with conditions or disapproval of activities, developments, or improvements in, or substantially impacting the residents of, the Overtown area.

(2) Require submission to the Overtown Community Oversight Board of any information requested for the Overtown Community Oversight Board to evaluate activities, developments, or improvements, including eminent domain, in, or substantially impacting the residents of, the Overtown area.

(3) Recommend from time to time to the city commission and the Southeast Overtown/Park West Community Redevelopment Agency, modifications and/or amendments to the Southeast Overtown/Park West Community Redevelopment Plan.

(4) Recommend to the Community Development Citywide Advisory Board activities, developments, or improvements for the Overtown area.

(5) Adopt and amend its rules and procedures.
(Ord. No. 12858, § 2, 10-12-06)

Secs. 2-1057—2-1100. Reserved.

DIVISION 8. AFFORDABLE HOUSING ADVISORY COMMITTEE*

Sec. 2-1101. Establishment and purpose.

Pursuant to F.S. § 420.9076, there is hereby created and established a board to be known as the "Affordable Housing Advisory Committee" ("advisory committee") for the following purposes:

(1) To serve as the advisory committee required by the Florida State Housing Initiatives Partnership ("SHIP") Program; and

(2) To provide oversight and ongoing recommendations on affordable housing issues.
(Ord. No. 13967, § 3, 2-25-21)

Sec. 2-1102. Functions, powers, and duties generally.

The advisory committee is hereby authorized to:

(1) Review the established policies, procedures, ordinances, land development regulations, and Miami Comprehensive Neighborhood Plan ("MCNP") of the city on an annual basis and recommend specific actions or initiatives to encourage or facilitate affordable housing while protecting the ability of the property to appreciate in value. The

*__Editor's note—__Prior to the reenactment of division 8 by Ord. No. 13967, § 3, adopted February 25, 2021, Ord. No. 13864, § 3, adopted October 10, 2019, repealed the former division 8, sections 2-1101—2-1105 in its entirety, which pertained to the Miami commission on the status of women, and derived from Ord. No. 11982, § 2, adopted October 26, 2000.

For current provisions pertaining to similar subject matter, the user's attention is directed to division 6 of this article.

recommendations of the advisory committee may include the modification or repeal of existing policies, procedures, ordinances, regulations, or plan provisions; the creation of exceptions applicable to affordable housing; or the adoption of new policies, procedures, regulations, ordinances, or plan provisions, including recommendations to amend the MCNP and corresponding regulations, ordinances, and other policies. At a minimum, the advisory committee shall submit an annual report to the city commission and to the entity providing statewide training and technical assistance for the affordable housing catalyst program which includes recommendations on the implementation of affordable housing incentives in the following areas:

a. The processing of approvals of development orders or permits for affordable housing projects is expedited to a greater degree than other projects as provided in F.S. § 163.3177(6)(f)(3);

b. All allowable fee waivers provided for the development or construction of affordable housing;

c. The allowance of flexibility in densities for affordable housing;

d. The reservation of infrastructure capacity for housing for very-low-income persons, low-income persons, and moderate-income persons;

e. Affordable accessory residential units;

f. The reduction of parking and setback requirements for affordable housing;

g. The allowance of flexible lot configurations, including zero-lot-line configurations for affordable housing;

h. The modification of street requirements for affordable housing;

i. The establishment of a process by which the city considers, before adoption, policies, procedures, ordinances, regulations, or plan provisions that increase the cost of housing;

j. The preparation of a printed inventory of locally owned public lands suitable for affordable housing; and

k. The support of development near transportation hubs and major employment centers and mixed-use developments.

(2) The advisory committee's recommendations may also include other affordable housing incentives identified by the advisory committee. The advisory committee may perform other duties at the request of the city commission, including:

a. The provision of mentoring services to affordable housing partners including developers, banking institutions, employers, and others to identify available incentives, assist with applications for funding requests, and develop partnerships between various parties, and

b. The creation of best practices for the development of affordable housing in the community.

(3) The approval by the advisory committee of its local housing incentive strategies recommendations and its review of the city's implementation of previously recommended strategies must be made by affirmative vote of a majority of the membership of the advisory committee taken at a public hearing. Notice of the time, date, and place of the public hearing of the advisory committee to adopt its evaluation and final local housing incentive strategies recommendations must be published in a newspaper of general circulation in Miami-Dade County. The notice must contain a short and concise summary of the evaluation and local housing incentives strategies recommendations to be considered by the advisory committee. The notice must state the public place where a copy of the

evaluation and tentative advisory committee's recommendations can be obtained by interested persons. The final report, evaluation, and recommendations shall be submitted to the Florida Housing Finance Corporation ("corporation").

(4) Within 90 days after the date of receipt of the evaluation and local housing incentive strategies recommendations from the advisory committee, the city commission shall adopt an amendment to its local housing assistance plan to incorporate the local housing incentive strategies to be implemented by the city. The amendment must include, at a minimum, the local housing incentive strategies required by F.S. § 420.9071(16). The city commission must consider the strategies specified in subsections (1)a.—k. above as recommended by the advisory committee.

(5) The city shall notify the corporation by certified mail of its adoption of an amendment of its local housing assistance plan to incorporate local housing incentive strategies, which shall include a copy of the approved amended plan.

(6) The city commissioner serving on the advisory committee, or a locally elected designee, must attend biannual regional workshops convened and administered under the Affordable Housing Catalyst Program as provided for in F.S. § 420.531(2).

(Ord. No. 13967, § 3, 2-25-21)

Sec. 2-1103. Governing body—Composition and appointments; terms of office and vacancies; membership qualifications; procedures for appointment of members including the public advocate; officers; quorum and voting; meetings; and attendance requirements.

(a) *Governing body—Composition and appointments.* The advisory committee shall consist of 11 members. Pursuant to F.S. § 420.9076, the advisory committee shall consist of one city commissioner serving in an ex officio capacity and the remaining ten members shall be appointed by the city commission with one representative from at least six of the categories below:

(1) An individual who is actively engaged in the residential home building industry in connection with affordable housing.

(2) An individual who is actively engaged in the banking or mortgage banking industry in connection with affordable housing.

(3) An individual who is a representative of those areas of labor actively engaged in home building in connection with affordable housing.

(4) An individual who is actively engaged as an advocate for low-income persons in connection with affordable housing.

(5) An individual who is actively engaged as a for-profit provider of affordable housing.

(6) An individual who is actively engaged as a not-for-profit provider of affordable housing.

(7) An individual who is actively engaged as a real estate professional in connection with affordable housing.

(8) An individual serving in an ex officio capacity who actively serves on the local planning agency pursuant to F.S. § 163.3174.

(9) An individual who resides within the jurisdiction of the city.

(10) An individual who represents employers within the city.

(11) An individual who represents essential services personnel as defined in the local housing assistance plan.

(b) *Terms of office and vacancies.* Members shall be appointed for a term of four years. Except as hereinafter provided, the city commission shall appoint an individual to fill a vacancy due to the death, resignation, or removal of any member of the advisory committee, which person shall serve only for the remainder of the unexpired

term. A vacancy in the chairperson shall be filled in the same manner as provided above for the appointment of those advisory committee members. Nothing set forth herein shall prohibit any individual from being reappointed subject to the provisions of section 2-885 of the City Code.

(c) *Membership qualifications.* All advisory committee members shall be 18 years of age or older.

Each member of the advisory committee shall be an individual of outstanding reputation for integrity, responsibility, and commitment to serving the community and is expected to participate actively in the functioning of the advisory committee.

Except as provided in subsection (a)(1), members of the advisory committee shall not be required to be permanent residents of the city, own real property in the city, or work or maintain a business in the city.

(d) *Procedure for appointment of members.* No appointment to the advisory committee shall be made until notice has been given in a newspaper of general circulation in the city of the appointments to be made at least 15 days prior to making the appointment, which notice shall have solicited and encouraged the public and organizations within the city having interest to submit names of persons and their qualifications for consideration. The qualifications of those to be considered as prospective members of the advisory committee, except for the chairperson and the city commissioner, shall be evaluated by the department of housing and community development. The department of housing and community development shall recommend appointees to the city commission for final appointment, except for the chairperson and the city commissioner.

(e) *Officers.* The chairperson shall be nominated by the mayor and appointed by city commission. The advisory committee shall elect from its members a vice-chairperson and may designate a secretary and such other officers as deemed necessary. The chairperson of the advisory committee shall have the power to appoint all members serving on the various subcommittees which the advisory committee may establish from time to time.

(f) *Quorum and voting.* At all meetings of the advisory committee, a minimum of five members shall constitute a quorum for the transaction of business and each member shall have one vote on every issue submitted to a vote of the advisory committee. The act of a majority of the members present at a meeting at which a quorum is present shall be the act of the advisory committee. The members of the advisory committee may make and adopt bylaws and rules for the advisory committee's governance which much be filed with the office of the city clerk.

(g) *Meetings.* The advisory committee shall hold meetings on an as-needed basis in the sole discretion of the director of the department of housing and community development or his/her designee. All meetings of the advisory committee shall be public meetings. Written minutes of the proceedings of all actions taken at the meetings of the advisory committee shall be properly recorded and maintained.

(h) *Attendance requirements.*

(1) Any advisory committee member shall be automatically removed if:

   a. He or she is absent from three consecutive meetings; or

   b. He or she is absent from four of the advisory committee's meetings;

   c. Provided that regardless of their compliance with subsections (1)a. and b., members must attend at least 50 percent of all the advisory committee meetings held during each calendar year.

(2) A member of the advisory committee shall be deemed absent from a meeting when he or she is not present at the meeting at least 75 percent of its duration.

(3) The provisions of this section may be waived by a vote of the members of the advisory committee if, prior to removal for failing to meet the attendance require-

ments hereinabove, a member requests a waiver of the same providing the member's reasons supporting such request.

(i) Members of the advisory committee may be removed with or without cause by a vote of not less than three members of the city commission. Following said removal, the city commission shall fill the vacancy pursuant to subsection (b) above.
(Ord. No. 13967, § 3, 2-25-21)

Sec. 2-1104. Staff liaison; assignment, qualifications, general powers, and responsibilities.

There shall be an individual or individuals who shall be specifically assigned to the advisory committee by the city manager to facilitate the advisory committee's activities. The employee assigned by the city manager shall act as the liaison to the advisory committee and the city's administration and shall have general supervision over and be responsible for the management and operation of all advisory committee activities. The employee shall attend all meetings of the advisory committee and shall, from time to time, prepare and furnish such reports, audits, and other information relating to the duties of the advisory committee as may be requested by the advisory committee, the city's administration, or the department of housing and community development. In the event that the employee is for any reason temporarily incapable of exercising the powers and performing the duties and assigned functions, the city manager shall designate an employee to perform such functions and duties until such incapacity of the permanently assigned employee ceases.
(Ord. No. 13967, § 3, 2-25-21)

Sec. 2-1105. Counsel.

The city attorney's office shall provide legal counsel to the advisory committee as may be necessary and requested by the advisory committee.
(Ord. No. 13967, § 3, 2-25-21)

Sec. 2-1106. Administrative support services.

The advisory committee is hereby designated as a category "C" advisory committee as it relates to the administrative support services to be provided by the office of the city clerk.
(Ord. No. 13967, § 3, 2-25-21)

Sec. 2-1107. Sunset review of the advisory committee.

Notwithstanding the provisions contained in section 2-892 of the City Code, the advisory committee shall be initially reviewed in 2025. Thereafter, the advisory committee shall be reviewed every four years.
(Ord. No. 13967, § 3, 2-25-21)

Sec. 2-1108. Abolition of the advisory committee.

The city commission may, by an affirmative four-fifths vote, abolish the advisory committee, at which time the powers and duties of the advisory committee shall revert to the city.
(Ord. No. 13967, § 3, 2-25-21)

Secs. 2-1109—2-1120. Reserved.

DIVISION 9. INTERFAITH ADVISORY COUNCIL

Sec. 2-1121. Interfaith advisory council establishment; purpose.

There is hereby created and established the interfaith advisory council, and herein referred to as "council," to function as an advisory forum for dialogue among faith leaders, religious professionals, community stakeholders, and city officials to identify opportunities for collaboration, address community needs, and provide guidance on matters where faith-based institutions intersect with public life. The council may consider and provide feedback and policies on legislative and policy matters that may impact faith-based communities, including, but not limited to, zoning, land use, housing, community development, public safety, and social service coordination.

The council is a venue for the exchange of ideas and information related to community services, emergency response coordination, social support networks, cultural understanding, and initiatives that promote unity, compassion, and mutual respect across all faiths, denominations, and spiritual traditions. Through this council, faith-based organizations may present recommendations, share community concerns, and collaborate with city leadership on initiatives that enhance quality of life for residents while fostering inclusivity and shared civic responsibility.
(Ord. No. 14450, § 2, 3-12-26)

Sec. 2-1122. Powers and duties.

(a) *Powers and duties.* The council shall:

(1) Hold public hearings to receive public and expert input regarding: community services (faith-based or secular), emergency response coordination, support networks among the city, cultural understanding and initiatives that promote unity and respect across all faith traditions;

(2) Encourage the fullest and most active participation and coordination of interfaith agencies for capital improvement needs of Miami-Dade County Public Schools' public facilities located within the city's geographical limits;

(3) Create, coordinate, and manage policies and procedures for events related to the council's purpose;

(4) The interfaith advisory council may, by majority vote, sponsor advisory items for placement on the city commission agenda, provided such items are sponsored by a city commissioner, the mayor, or the city manager and are submitted in accordance with established city commission agenda procedures. All sponsored city commission agenda items shall be advisory in nature and shall have no binding effect unless formally adopted by the city commission;

(5) Make recommendations to the mayor, the city commission, and the city manager regarding policies that may affect any faith-based organizations, congregations, and surrounding communities such as zoning, housing, community development, social service coordination, and safety;

(6) Any resolution of the council making recommendations to the city commission shall be submitted to all city commissioners by the council liaison, the council liaison shall solicit sponsorship by city commissioner for the item to be placed on the next feasible city commission agenda as a discussion item with the council resolution and any corresponding supporting documentation approved by the council at the time the resolution was adopted by the council; and

(7) Notwithstanding any provisions to the contrary, the council shall exercise only such powers and duties as are granted pursuant to this article.
(Ord. No. 14450, § 2, 3-12-26)

Sec. 2-1123. Composition; appointment and terms of office of members; filling of vacancies.

(a) *Composition and qualifications.* The council shall consist of seven voting members, with seven alternates, who shall be city residents and must be employed or involved in the religious or theological field representing any faith tradition or city residents that have a demonstrable interest in religious or interfaith engagement, not specific to any one religion or denomination. The council shall have non-sectarian and inclusive of all faith traditions and spiritual communities represented within the city.

(b) *Appointment of members.* The seven voting members shall be appointed to the council as follows:

(1) Each of the five city commissioners shall appoint one voting member.

(2) The mayor shall appoint one voting member

(3) The city manager shall appoint one voting member.

(4) Each city commissioner, the mayor, and the city manager may appoint one non-voting alternate to serve in addition to their voting appointee. The non-voting alternates may participate in discussions and serve in the absence of the voting member but shall not vote unless formally designated to serve in the absent member's place by a simple majority of the council members present.

(c) *Term.* The terms of office for council members shall be for two years from the date of appointment.

(d) *Minimum attendance requirements.* The minimum attendance requirements as provided in section 2-886 of the City Code shall apply.

(e) *Removal.* The mayor and each city commissioner shall have the power to remove, at any time and for any reason, his/her respective appointee without a finding of cause. The city commission shall have the power to remove, at any time, any council member by a majority vote of the city commission without a finding of cause.

(f) *Resignation.* Members may resign by submitting a signed letter of resignation to the city clerk. The city clerk shall immediately notify the appointing official of the vacancy. It shall be the obligation of each council member to notify the city clerk if the member ceases to meet the qualification criteria set forth in subsection (a) above.

(g) *Vacancies.* In the event a vacancy occurs on the council, whether automatically, by vote of the city commission, by removal by the mayor or the city commissioner who appointed such member, by resignation of the member, or for any other reason, the mayor for mayoral appointees and the city commissioner for their respective appointees may appoint a qualified person to fill the remaining term of the vacant position. Only notice of such appointment by the appointing city official on the agenda of the next regularly scheduled meeting of the city commission or as soon as practicable thereafter is required and no action is required of the city commission except for the at-large member. All such appointments shall be consistent with the membership requirements stated in subsection (a) above.

(h) *Waiver.* The city commission shall have the power to waive any of the requirements of subsection (a) above by four-fifths vote of the members of the full city commission.
(Ord. No. 14450, § 2, 3-12-26)

Sec. 2-1124. Officers.

(a) The council shall have a chair and vice-chairperson of the council.

(b) At the first meeting of each calendar year for the council, the members of the council shall select and designate a chairperson and vice-chairperson from among the voting members of the council. Chairperson and vice-chairperson shall serve one-year terms as those respective officers of the council.
(Ord. No. 14450, § 2, 3-12-26)

Sec. 2-1125. Meetings; parliamentary authority; rules and regulations; quorum.

(a) *Procedure.* The council may adopt its own order of business, rules of procedure, and bylaws to govern its meetings and actions not inconsistent with the provisions set forth herein, which shall be filed with the city clerk. Unless and until the council adopts its own rules of procedure, it shall follow Robert's Rules of Order (current edition) except that the provisions set forth herein shall control in case of conflict.

(b) *Notice and public participation.* All meetings and workshops of the council shall be noticed and open to the public as required by the State of Florida's Sunshine Law. In addition, the public shall be encouraged to submit oral and written comments to the council at all meetings.

(c) *Minutes.* The minutes of each meeting and workshop shall be taken by applicable staff and shall promptly be provided to the city clerk as the official record of each such meeting. Such records shall be open to public inspection.

(d) *Quorum.* A minimum of three of the voting members shall constitute a quorum for the purpose of convening any meeting. An affirmative vote of no fewer than two of the members present at any meeting is required for any action to be taken by the council.
(Ord. No. 14450, § 2, 3-12-26)

Sec. 2-1126. Legal counsel.

The office of the city attorney shall provide an attorney to serve as legal counsel to the council and shall provide legal advice on all matters considered by the council.
(Ord. No. 14450, § 2, 3-12-26)

Sec. 2-1127. Liaisons to council and assignment of staff.

Notwithstanding any provisions to the contrary contained in the City Code, the city manager shall designate the administration's liaison to the council, at least one of which shall be from the city's department of innovation and technology. It shall be the duty of the city manager to provide administrative support to the council, which shall include the services of an individual to maintain council correspondence, post meeting notices with the city clerk, file reports, and perform all other necessary administrative support functions. In addition to any administration liaisons assigned to the council, the city manager shall designate representatives from the departments of housing and economic development and finance and the offices of management and budget and city manager to attend all meetings. Upon the council's request, the mayor and the city manager may also participate in deliberations of the council and may offer technical and policy advice.
(Ord. No. 14450, § 2, 3-12-26)

Secs. 2-1128—2-1139. Reserved.

DIVISION 10. CITY OF MIAMI ARTS AND ENTERTAINMENT COUNCIL*

Sec. 2-1140. Created and established.

A limited agency and instrumentality of the city to be known as the "City of Miami Arts and Entertainment Council ("council") is created and established.
(Ord. No. 12192, § 3, 3-7-02)

Sec. 2-1141. Purpose, powers and duties.

The purpose, powers and duties of the council are:

(1) To serve in an advisory capacity and make recommendations and guide the mayor, city commission and city manager regarding endorsement or support of specific art and entertainment special events, performance and productions.

(2) To make recommendations and guide the mayor, city commission and city manager in their determinations as to whether any specific art shall be accepted or acquired by the city by:

a. Evaluating the appropriateness of the design of proposed art;

b. Determining a proper location for such art;

c. Evaluating the costs for erection, construction, or installation and annual maintenance costs of such art;

***Editor's note—**Ord. No. 12192, §§ 2, 3, adopted March 7, 2002, repealed and reenacted div. 10 to read as herein set out. Formerly, div. 10 pertained to the cultural and fine arts board and derived from Ord. No. 11716, § 3, adopted October 27, 1998.

d. Determining responsibility for provision of indemnification and acquisition of permits for erection, construction, installation and maintenance;

e. Providing information to those making donations of the technical standards and types of permits required by the city for the erection, construction, or installation of such art;

f. Recommending acquisition of works of art by the city to be used and made available for the cultural betterment of the city; and

g. Coordinating activities with programs and support of museums in the city.

(3) To coordinate with city departments, as appropriate;

(4) To coordinate and originate cultural and entertainment activities within the city, and to approve the expenditure of funds in furtherance thereof;

(5) To qualify community events as being officially recognized;

(6) To advocate, seek and encourage public participation in all cultural, fine arts and entertainment events;

(7) To solicit and accept grants, contributions and financial and non-financial support from individuals, private business interests, the general public, governmental entities, corporations and organizations, foundations and other philanthropic entities;

(8) To appoint artists, entertainers or other knowledgeable individuals as honorary council members, who shall advise and assist the council in the furtherance of its duties.

(9) To serve as the city's official liaison with major arts and entertainment facilities and organizations to attract art and entertainment programs of other governmental, private or public agencies to the city, including, but not limited to:

a. Gusman Center for the Performing Arts

b. James L. Knight Center

c. Tower Theater

d. Manuel Artime Center

e. Coconut Grove Playhouse

f. New World School of the Arts

g. Miami Film Festival

h. Performing Arts Center

i. Miami City Ballet

j. Florida Philharmonic

k. New World Symphony

l. Florida Grand Opera

(Ord. No. 12192, § 3, 3-7-02; Ord. No. 12976, § 2, 3-13-08; Ord. No. 13309, § 2, 2-9-12; Ord. No. 14074, § 2, 6-23-22)

Sec. 2-1142. Membership and appointments; qualifications; officers; terms of office and vacancies.

(a) *Membership and appointments.* The council shall consist of 11 members who shall serve without compensation, but shall be reimbursed for necessary expenses incurred in official duties, as may be determined and approved by the city commission, composed as follows:

(1) Six members appointed by the mayor;

(2) Five members appointed by each city commissioner.

(b) *Qualifications.*

(1) The provisions set forth in section 2-884 of this article shall apply to all members of the council.

(2) In addition, each member of the council must possess some specific knowledge, experience, training or teaching in the field of art or entertainment; and

(c) *Officers.* The mayor may appoint the council's chairperson. If the mayor does not appoint the chairperson, the chairperson of the

city commission shall make such appointment. A chairperson of the council shall not serve more than four years as council chairperson. The chairperson of the city commission shall select and designate a vice-chairperson from among the council's members. The vice-chairperson shall serve as chairperson of the council during the chairperson's absence. Other officers as deemed necessary shall be designated and serve at the pleasure of the council.

(d) *Terms of office and vacancies.* The provisions set forth in section 2-885 of this article shall apply to all members of the Council.
(Ord. No. 12192, § 3, 3-7-02; Ord. No. 12976, § 2, 3-13-08)

Sec. 2-1143. Meetings; quorum and voting; attendance requirements; parliamentary authority; rules of procedure; minutes; assignment of staff; legal counsel; and notices and filing of records.

(a) *Meetings.* The council shall hold at least one regularly scheduled meeting each month, except during the month of August. Other meetings of the council may be scheduled at the call of the council's chairperson. All meetings shall be open to the public and are subject to the Florida Sunshine Law or Florida Public Records Law. The meetings shall be held at City Hall, located at 3500 Pan American Drive, Miami, Florida, unless the council elects to hold a meeting at another location and such location has been duly noticed.

(b) *Quorum and voting.* Three members present shall constitute a quorum for the purpose of convening a meeting. A majority of those present and voting is required for any action to be taken by the members.

(c) *Attendance requirements.* The provisions set forth in section 2-886 of this article shall apply to all members of the council.

(d) *Parliamentary authority; rules of procedure.* The council shall use Roberts Rules of Order (current edition) as its parliamentary authority, or may adopt its own order of business and rules of procedure governing its meetings, and actions on matters within its jurisdiction, not inconsistent with the provisions set forth herein, which rules of procedure shall be filed with the city clerk.

(e) *Minutes.* Copies of minutes of all council meetings shall be furnished to the mayor, commissioners and the city manager.

(f) *Assignment of staff.* It shall be the duty of the city manager to provide administrative support to the council, which shall include the services of an individual to keep minutes of meetings, maintain council correspondence, post meeting notices, file reports and perform all other necessary support functions.

(g) *Legal counsel.* The city attorney shall serve as legal counsel to the council.

(h) *Notices and filing of records.* The provisions set forth in section 2-888 of the City Code shall apply to the council. Notice of meetings shall be posted by the city clerk at city hall and other appropriate locations after being apprised by the council of an upcoming meeting(s). Advertised public notice of meetings are not required. It shall be the duty of the city clerk to comply with applicable laws related to filing of records and section 2-889 of the City Code.
(Ord. No. 12192, § 3, 3-7-02; Ord. No. 14074, § 2, 6-23-22)

Sec. 2-1144. Budget and finance.

(a) Effective immediately, the council shall establish a fiscal year which coincides with that of the city. The council shall submit to the city commission a budget, in a form acceptable to the city manager as soon as possible for the fiscal year beginning October 1, 2021, and no later than April 1 for fiscal years after 2021-2022, preceding the commencement of each subsequent fiscal year. Nothing contained herein shall be construed to prohibit the council from submitting a supplemental budget to the commission for approval. All funds not expended within a particular fiscal year shall rollover to the next fiscal year.

(b) No expenditure shall be made in any given year without approval by the city commission of the council's budget and any supplemental budget

thereto for that year and all expenditures shall comply with city procedures for acquisition of goods and services pursuant to the City Code.

(c) In conjunction with the submission of the budget, the council shall submit an annual master plan reflecting the proposed operations and activities for the forthcoming fiscal year in accordance with the council's purposes, powers, and duties as outlined in section 2-1141. Nothing contained herein shall be construed to prohibit the council from submitting a supplemental annual master plan to the city commission for approval. The city commission may review and deny any item contained in the annual master plan and in any supplemental annual master plan within 30 days from the date of its submission by the council.

(d) No provision contained in this division shall be construed to violate the Anti-Deficiency Act, as set forth in sections 18-500—18-503.

(e) There is hereby established a special revenue fund account line titled "City of Miami Arts and Entertainment Council" to be maintained and administered by the city.
(Ord. No. 14074, § 2, 6-23-22)

DIVISION 11. RESERVED*

Secs. 2-1145—2-1149. Reserved.

DIVISION 12. RESERVED†

Secs. 2-1150—2-1174. Reserved.

*__Editor's note—__Ord. No. 13864, § 4, adopted October 10, 2019, repealed the former division 11, sections 2-1144.1—2-1144.5 in its entirety, which pertained to the parks and recreation advisory board, and derived from Ord. No. 12967, § 2, adopted February 14, 2008, and Ord. No. 13792, § 1, adopted October 11, 2018.

†__Editor's note—__Ord. No. 14351, § 2, adopted February 13, 2025, repealed the former division 12, sections 2-1150—2-1153 in its entirety, which pertained to the community relations board and derived from Ord. No. 11742, § 3, adopted January 12, 1999; Ord. No. 11999, § 2, adopted November 16, 2000; Ord. No. 12016, § 1, adopted January 11, 2001; Ord. No. 12198, § 2, adopted March 7, 2002; Ord. No. 12434, § 1, adopted November 13, 2003; Ord. No. 12970, § 2, adopted February 14, 08, and Ord. No. 13626, § 2, adopted September 8, 2016.

DIVISION 13. RESERVED‡

Secs. 2-1175—2-1189. Reserved.

DIVISION 13.5. VIRGINIA KEY ADVISORY BOARD**

Sec. 2-1190. Established.

There is hereby established a board to be known as the "Virginia Key Advisory Board" which shall be hereinafter referred to as the "board."
(Ord. No. 13583, § 2, 1-14-16)

Sec. 2-1191. Membership, composition, appointments, qualifications, minimum attendance requirements, removal, appointment to fill vacancies, and term.

(a) *Membership, composition, appointment, and qualifications.* The board shall consist of 13 members as follows:

(1) The city commissioner of District 2 shall appoint one person to serve. Such person shall be a city resident, work in the city, or own real property in the city.

(2) One person shall be designated by the mayor. Such person shall be a city resident, work in the city, or own real property in the city.

(3) One person shall be the director of the department of real estate and asset management.

(4) One person shall be the director of the department parks and recreation.

‡__Editor's note—__Ord. No. 13864, § 5, adopted October 10, 2019, repealed the former division 13, sections 2-1175—2-1179 in its entirety, which pertained to the Miami beautification committee, and derived from Ord. No. 13557, § 2, adopted September 24, 2015, and Ord. No. 13792, § 1, adopted October 11, 2018.

**__Editor's note—__Prior to the reenactment of division 13.5 by Ord. No. 13583, § 2, adopted January 14, 2016, Ord. No. 12408, § 1, adopted September 25, 2003, repealed division 13.5 in its entirety, which pertained to the City of Miami district five historic preservation advisory board and derived from Ord. No. 12077, § 2, adopted June 14, 2001.

(5) One person shall be designated by the Village of Key Biscayne Village Council.

(6) One person shall be designated by the Miami-Dade County Commissioner for District 7.

(7) One person shall be designated by the Dade Heritage Trust.

(8) One person shall be designated by the National Trust for Historic Preservation.

(9) One person shall be appointed by the city commission at-large. In addition to the membership criteria in subsection 2-1191(a), such person shall have a demonstrable interest or expertise in recreational boating.

(10) One person shall be designated by the Urban Environment League of Greater Miami.

(11) One person shall be designated by the Tropical Audubon Society.

(12) One person shall be designated by the Sierra Club.

(13) One person shall be designated by the Historic Virginia Key Beach Park Trust.

All members, with the exception of those members appointed pursuant to subsections 2-1191(a)(3) and (4), shall be voting members and be invested or interested in the city and in Virginia Key and serve without compensation. With the exception of those members appointed pursuant to subsections 2-1191(a)(3) and (4), persons so selected shall become members of the board when confirmed by the city commission. Those enumerated city employee members in subsections 2-1191(a)(3) and (4) shall serve in an ex-officio capacity. No alternates shall be appointed.

(b) *Minimum attendance requirements.* It is expected that all members of the board shall attend every meeting. Absences and attendance requirements for city appointees shall be governed by section 2-886. The board shall meet every other month unless required to meet on a more frequent basis to fulfill the requirements of subsections 2-1192(i) or (j).

(c) *Removal.* The city commission shall have the power to remove any member by majority vote without a finding of cause.

(d) *Vacancies.* Any vacancy that occurs on the board, whether automatically, by vote of the city commission, or by resignation of the member, shall be filled pursuant to the terms of section 2-1191(a).

(e) *Waiver.* The city commission shall have the power to waive any of the requirements of section 2-1191 of this Code, as amended, by four-fifths vote of its membership or a unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation.

(f) *Term.* With the exception of the director of the department of real estate and asset management and the director of the department of parks and recreation, all members shall serve a term of two years. Board members shall continue to serve until their successors have been appointed and qualified.
(Ord. No. 13583, § 2, 1-14-16)

Sec. 2-1192. Purpose, powers, and duties.

The purpose, powers, and duties of the board, relative to the entirety of Virginia Key, are:

(1) To review any and consider all available information pertaining to the best mode of governance for Virginia Key;

(2) To review and consider what the short and long term vision will be for the Marine Stadium as to its restoration, development, function, use, role and contribution to the city and the community in general;

(3) To oversee and guide all island wide land in relation to recreation , thematic integration, sustainable transportation, impact of climate change, as well as natural and manmade features following the 2010 Master Plan;

(4) To review and consider the best business model for the Marine Stadium to operate in a manner which enriches the city and

the community in the arts, recreation, culture, sports and education while operating sustainably and generating sufficient revenues over expenses so that it will function like an enterprise fund which will not need to access the general operating budget of the city on a recurring basis;

(5) To review and consider the planning, maintenance, and operational challenges for Virginia Key in terms of the kinds of open spaces, events, shows, features, goals, objectives and promotions that are consistent with the 2010 Master Plan;

(6) To hold public hearings, public meetings or public workshops to receive and to discuss public input, and to formulate any recommendations, findings or recommendations of the board;

(7) To issue a written report that is made available to the public and make a presentation before the city commission by the board's chairperson at least once per year making recommendations regarding all or any of the foregoing matters and related issues and concerns;

(8) To serve in an advisory capacity to the city commission and recommend any changes to city laws, rules, regulations, practices, policies, or to help the city better promote the restoration, reopening, and success of Marine Stadium and Virginia Key;

(9) To review and recommend to the director of the planning and zoning department for approval or disapproval of applications for any zoning change or future land use plan ("FLUM") amendment to the comprehensive plan on Virginia Key; and

(10) Notwithstanding anything contrary in chapter 18 of the City Code, to review and recommend to the city manager for approval or disapproval of any procurement, as defined in section 18-73, as amended, that exclusively affects Virginia Key.

(Ord. No. 13583, § 2, 1-14-16)

Sec. 2-1193. Officers; rules of procedure; meeting; quorum; and public notice.

(a) At the initial organizational meeting, the members of the board shall select and designate a chairperson and vice-chairperson from among the members of the board who shall serve at the pleasure of the board. The chairperson shall reserve the right to appoint an executive committee and to delegate tasks to various subcommittees of the whole.

(b) The board shall use Robert's Rules of Order as the rules for the conduct of their official business, provided, that in addition, the Board may adopt its own order of business and rules of procedure governing its meetings, and take actions on matters within its jurisdiction, not inconsistent with the provisions set forth herein, which rules of procedure, if adopted, shall be filed with the city clerk. The board and any executive committee or subcommittee, if applicable, shall comply with all requirements of F.S. ch. 119 (Public Records) and F.S. ch. 286 (Sunshine Law). The minutes of each meeting shall be promptly made available by the city clerk and such records shall be open to public inspection.

(c) All meetings of the board shall be noticed and open to the public. The public shall be encouraged to submit oral and written comments to the board. At all meetings, a minimum of 50 percent plus one of the members who are present shall constitute a quorum for the purpose of convening any meeting or conducting any business. An affirmative vote of not less than 50 percent plus one of the members present at any meeting is required for any action to be taken by the members.

(Ord. No. 13583, § 2, 1-14-16)

Sec. 2-1194. Legal counsel.

The city attorney shall serve as legal counsel to the board and shall provide legal advice on all matters considered by the board.

(Ord. No. 13583, § 2, 1-14-16)

Sec. 2-1195. City manager.

It shall be the duty of the city manager to provide full cooperation and sufficient personnel for administrative necessary support to the board, including assignment of a particular person to act as liaison and secretary to the board. The city manager may participate in deliberations of the board and may give technical and policy advice to the board as requested.
(Ord. No. 13583, § 2, 1-14-16)

Secs. 2-1196—2-1200. Reserved.

DIVISION 14. RESERVED*

Secs. 2-1201—2-1214. Reserved.

DIVISION 15. RESERVED†

Secs. 2-1215—2-1230. Reserved.

DIVISION 16. RESERVED‡

Secs. 2-1231—2-1249. Reserved.

DIVISION 17. COCONUT GROVE BUSINESS IMPROVEMENT DISTRICT BOARD (BID BOARD)**

Sec. 2-1250. Establishment and purpose.

The "Coconut Grove Business Improvement District Board" of the city ("BID board") is re-established to stabilize and improve retail and other business in the areas described in sections 35-221 and 54-341 of the Code of the City of Miami, as amended ("Code"), and the assessed area known as the BID more particularly described in Resolution No. 18-0294 adopted on July 12, 2018, and later confirmed in Resolution No. 19-0024 adopted on January 10, 2019, through promotion, management, marketing, and other similar services, including but not limited to, coordination, funding, implementation and maintenance of infrastructure improvements, and other projects. These areas shall collectively be described herein as the "area."
(Ord. No. 13059, § 2, 3-12-09; Ord. No. 13833, § 2, 4-25-19)

Sec. 2-1251. Composition; appointment and terms of office of members; filling of vacancies.

(a) The BID board shall have nine voting members appointed as follows:

(1) The commissioner for district 2 shall be a voting member who shall not require confirmation.

(2) The chief executive officer of the Miami Parking Authority, or his/her designee, shall be a voting member who shall not require confirmation.

(3) One voting member shall be nominated by the owners of the property located at CocoWalk, 3015 Grand Avenue, Coconut Grove, FL 33133 and submitted to the district 2 commissioner for appointment and confirmation.

(4) One voting member shall be nominated by the owners of the property located at Mayfair in the Grove, 3390 Mary Street, Coconut Grove, FL 33133 and submitted to the district 2 commissioner for appointment and confirmation.

*__Editor's note—__Ord. No. 13517, § 2, adopted May 14, 2015, repealed the former division 14, §§ 2-1201—2-1207 in its entirety, which pertained to the homeland defense/neighborhood improvement bond program oversight board, and derived from Ord. No. 12177, § 3, adopted January 10, 2002; Ord. No. 12299, §§ 1, 2, adopted November 19, 2002; Ord. No. 12739, § 2, adopted November 3, 2005, and Ord. No. 13172, § 1, adopted May 13, 2010.

†__Editor's note—__Ord. No. 12408, § 1, adopted September 25, 2003, repealed division 15 in its entirety, which pertained to the City of Miami district three historic preservation advisory board and derived from Ord. No. 12234.1, § 2, adopted June 13, 2002.

‡__Editor's note—__Ord. No. 12386, § 3, adopted July 17, 2003, repealed division 16 in its entirety, which pertained to the sister cities coordinating council and derived from Ord. No. 12251, § 3, adopted July 9, 2002.

**__Editor's note—__Ord. No. 13059, § 2, adopted March 12, 2009, repealed and reenacted division 17 in its entirety to read as herein set out. Formerly, division 17, §§ 2-1250—2-1256, pertained to the Coconut Grove Business Improvement Committee (BIC), and derived from Ord. No. 12564, § 4, adopted July 22, 2004; Ord. No. 12781, § 1, adopted March 9, 2006; Ord. No. 12908, § 1, adopted April 12, 2007, and Ord. No. 12931, § 1, adopted July 10, 2007.

(5) The remaining five voting members will be seated through the following elective process enumerated in subsection (6). The remaining five voting members shall, to the extent practical, represent an area hotel, restaurant, office, retail, or property owner.

(6) The five voting members cited in subsection (5) above, will in accordance with the BID board by-laws, be selected for a slate created by the nominating committee of the board, then confirmed by the board by a 51 percent vote of approval, then elected by more than 50 percent of votes cast by the property owners of the BID for approval of the slate. Subsequent to election, the commissioner of district 2 will confirm the five new voting members.

(7) The commissioner for district 2 may appoint non-voting members as may be necessary from time to time, at the discretion of the district 2 commissioner, who shall not require confirmation.

(8) Nomination of initial members of the re-established BID board. The district 2 commissioner shall appoint a BID board nominating committee to solicit and screen applications, interview candidates and submit nominations to the district 2 commissioner for appointment to the initial term of the re-established BID board.

(9) Initial terms. The initial nine voting members shall serve terms as follows:

1	Commissioner district 2	No Term Limit
2	MPA Chief Executive Officer or designee	No Term Limit
3	CocoWalk representative	3 years
4	Mayfair representative	2 years
5	Representative of an area hotel, restaurant, office, retail property, or property owner(s)	1 year
6	Representative of an area hotel, restaurant, office, retail property, or property owner(s)	3 years
7	Representative of an area hotel, restaurant, office, retail property, or property owner(s)	2 years
8	Representative of an area hotel, restaurant, office, retail property, or property owner(s)	1 year
9	Representative of an area hotel, restaurant, office, retail property, or property owner(s)	3 years

(b) After the initial term as identified in subsection (a)(9) above, members shall serve terms of three years expiring on August 31 of the third year following their appointment. Members shall serve a maximum of nine consecutive years, provided that upon the unanimous vote of the BID board, the city commission may, by unanimous vote, extend the term of a member for one additional period of three years. Notwithstanding the foregoing, the initial nine voting members, or anyone appointed to fill a vacancy of a voting member during the initial term, shall not have their initial term, as identified in subsection (a)(9) above, counted against the maximum nine consecutive years. Members shall continue to serve until their successors have been nominated and appointed. Appointments to fill vacancies shall be for the unexpired term only. This subsection shall be inapplicable to the members identified in subsections 2-1251(a)(1) and (2).

(c) Quorum shall consist of a majority of the then appointed/elected voting members.

(d) The chairperson of the BID board shall have the power to appoint the members to the various committees which the chairperson shall have the power to establish from time to time.

(e) Protection from personal liability. The BID board shall maintain officers and director's liability insurance coverage at all times, in an amount and in a form satisfactory to the city's director of risk management. Nothing in this section shall be construed in any way to limit or waive sovereign immunity.

(Ord. No. 13059, § 2, 3-12-09; Ord. No. 13171, § 2, 5-13-10; Ord. No. 13255, § 2, 3-10-11; Ord. No. 13833, § 2, 4-25-19)

Sec. 2-1252. Qualifications of members.

(a) All members of the BID board shall:

(1) Reside;

(2) Work;

(3) Own (or be the designated representative of the owner of) a business; or

(4) Own (or be the designated representative of the owner of) real property in the city.

For purposes of this section, a person shall be deemed to "own real property" where the person is the owner of the fee simple title, or owns the leasehold interest on the property under a lease having an original term of at least 30 years. All members of the BID board shall be individuals of outstanding reputation for integrity, responsibility and business ability and acumen. No officer or employee of the city, other than the district 2 commissioner, shall be a member of the BID board.

(b) Before assuming the duties of the office, each member shall take and subscribe to the oath of office required of officials of the city.
(Ord. No. 13059, § 2, 3-12-09)

Sec. 2-1253. Meetings; parliamentary authority, rules and regulations; compensation of members.

The parliamentary authority of the BID board shall be Robert's Rules of Order (current edition) unless the BID board adopts its own order of business and rules of procedure governing its meetings, and actions, not inconsistent with the provisions set forth herein, which rules of procedure shall be filed with the city clerk. The BID board shall hold regular meetings no less often than once each quarter. Special meetings may be held when called in the manner provided in the rules of the BID board. All meetings of the BID board shall be open to the public. Each member of the BID board shall serve without remuneration.
(Ord. No. 13059, § 2, 3-12-09)

Sec. 2-1254. Removal of members.

Notwithstanding anything in the Code to the contrary, by resolution specifying facts sufficient to advise a BID board member as to the basis for his or her removal and after reasonable notice to the BID board member and an opportunity for the member to be heard, the BID board, by a 51 percent vote of the board, may remove a board member:

(1) For cause as defined in F.S. ch. 112;

(2) If the member ceases to meet the qualification criteria set forth in section 2-1252 or any additional qualifications set forth in the current BID board by-laws; or

(3) As otherwise provided by law.

For purposes of this section, being absent from three consecutive regular BID board meetings or committee meetings or from four regular BID board meetings or committee meetings during a calendar year shall constitute good cause for removal.
(Ord. No. 13059, § 2, 3-12-09; Ord. No. 13171, § 2, 5-13-10)

Sec. 2-1255. Powers and duties.

(a) The BID board shall have the power to:

(1) Subject to city commission approval, which approval shall not be unreasonably withheld, appoint an executive director and fix the terms of engagement and compensation of the executive director, which shall be paid from funds available to the BID board.

(2) Prepare an annual budget to be presented to the city commission for approval.

(3) Plan, propose, and implement programs and services for the purpose of stabilizing and improving the BID through promotion, management, marketing, and other similar services, such as streetscape improvements.

(4) Plan and propose to the city and the city commission, within the area, public improvements, including but not limited to renovation, repair, remodeling, reconstruction or other changes in existing buildings and streetscape which in the opinion of the BID board will aid in the economic growth of the area.

(5) Recommend to the city commission or the department of off-street parking, the acquisition by purchase or otherwise, of

any land and any other property, real or personal, or any rights or interests therein, which it may determine is reasonably necessary for any project or purpose of this article.

(6) Cooperate with any governmental agency or public body for the purposes authorized herein.

(7) Determine the appropriate expenditures from the Coconut Grove business district improvement trust fund as defined in section 35-221 of the City Code.

(8) Review special event applications in the Coconut Grove special events district and approve or reject such applications as set forth in section 54-341 of the City Code.

(9) Solicit and accept grants in cooperation with the city office of grants administration. The BID board shall contact the office of grants administration for assistance in project planning, proposal writing, application assembly, and monitoring financial and budgetary compliance with grantor agency guidelines. All grant applications shall be submitted to the office of grants administration for review and coordination prior to submission. The BID board shall be responsible for implementing and managing all of its grants. Any and all other contributions and financial support from individuals, private business interests, the general public, governmental entities, corporations and organizations, foundations and other philanthropic entities shall follow the approvals established by the city.

(10) Exercise all powers incidental to the effective and expedient exercise of the foregoing powers to the extent not in conflict or inconsistent herewith.

(b) The city manager retains sole authority to execute contracts and agreements subject to the limitations of chapter 18, article III, of the City Code. However, the city manager may delegate to the executive director the authority to execute contracts consistent with the provisions of chapter 18, article III, of the City Code, subject to BID board approval.

(Ord. No. 13059, § 2, 3-12-09; Ord. No. 13833, § 2, 4-25-19)

Sec. 2-1256. Employees generally.

(a) *Executive director.* The executive director shall serve at the pleasure of the BID board and shall be a person of good moral character and have a reputation for integrity, responsibility and business ability. No member of the BID board shall be eligible to hold the position of executive director. Before entering upon the duties of his/her office, the executive director shall take and subscribe to the oath as required of members of the BID board. He/she shall be the chief executive officer of the BID board and shall not, while serving as executive director, actively engage in any other business or profession. Subject to the approval of the BID board, and direction by it when necessary, he/she shall have general supervision over and be responsible for the preparation of plans and the performance of the functions of the BID board in the manner authorized in this article. He/she shall attend all meetings of the BID board and shall render to the BID board and the city manager a monthly report covering the activities and financial condition of the BID board. In the temporary absence or disability of the executive director, the BID board may designate a qualified person to perform the duties of the office as acting executive director. The executive director shall furnish the BID board with such information or reports governing the operation of the BID board as the board may from time to time require. At the time of the re-establishment of the BID, the executive director of the BID shall continue to be the individual the city commission approved in Resolution No. 18-0323 with the salary and benefits currently provided. The executive director shall have no civil service rights or privileges.

(b) *Staff.* Subject to the policy directives of the BID board and budget limitations, the executive director may engage such staff members as are necessary for the efficient operation of the BID board. Staff members shall have no civil service rights or privileges.

(Ord. No. 13059, § 2, 3-12-09; Ord. No. 13833, § 2, 4-25-19)

Sec. 2-1257. Annual budget; source of funds.

(a) The city commission approved the fiscal year 2018-2019 BID budget in Resolution No. R-18-0392 adopted on September 13, 2018. Commencing fiscal year 2019-2020, consistent with the city's budget process, the BID Board shall submit to the city manager a BID budget request pertaining to management, operation, and maintenance expenditures and delineating the financial responsibility of the city for certain categories including but not limited to insurance, security, utilities, and maintenance to be approved by the city commission. Nothing contained herein shall be construed to prohibit the BID board from submitting a supplemental budget to the city commission for approval.

(b) No expenditure shall be made in any given year without approval by the city commission of the BID board budget for that year and all expenditure shall comply with city procedures for acquisition of goods and services.

(c) In conjunction with the submission of the budget, the BID board shall submit a plan reflecting the proposed operations, activities, improvements, and maintenance plans for the forthcoming fiscal year. The city commission may review and deny any item contained in the plan within 30 days from the date of its submission by the BID board.

(d) No provision contained in this division shall be construed to violate the Anti-Deficiency Act, as set forth in sections 18-500—18-503 of the City Code.

(e) The operations of the BID board shall be principally financed from the following sources and such other sources as may be approved by the city commission:

(1) Contributions, gifts, and/or donations to the BID board for the performance of its functions.

(2) Proceeds of a special assessment as authorized by Resolution No. 18-0294, adopted July 12, 2018, and later confirmed in Resolution No. 19-0024, adopted on January 10, 2019.

(3) Parking waiver fees as authorized by section 35-224 of the City Code.

(4) Parking surcharge fees as authorized by section 35-342 of the City Code.

(5) Sidewalk cafe fees as authorized by section 54-223 of the City Code.

(6) Event supplemental fees as authorized by section 54-343 of the City Code.

(7) Banner fees as authorized by section 54-344 of the City Code.

(8) Grant proceeds.

(Ord. No. 13059, § 2, 3-12-09; Ord. No. 13833, § 2, 4-25-19)

Sec. 2-1258. Annual report and audit.

(a) The BID board shall submit to the mayor and city commission an annual report and an annual audit. The audit shall be performed by an external auditor who is a certified public accountant.

(b) Additionally, the city shall have the right to audit any books, accounts, expenditures, receivables, and contracts of the BID board at any time.

(Ord. No. 13059, § 2, 3-12-09)

Sec. 2-1259. Notices and filing of records.

The provisions set forth in section 2-888 of the City Code shall apply to the BID board.

(Ord. No. 13059, § 2, 3-12-09; Ord. No. 13833, § 2, 4-25-19)

Sec. 2-1260. Participation in BID programs.

Notwithstanding anything to the contrary, the members of the BID board and any of its committees shall have the right to participate in programs intended to comply with the requirements, purposes and reasons for the special assessment, including but not limited to cooperative advertising opportunities in the same way as may be available to their commercial peers in the Coconut Grove business community.

(Ord. No. 13059, § 2, 3-12-09)

Sec. 2-1261. Inapplicability of sunset provision.

The BID board shall not be subject to the provisions of section 2-892 of the City Code.
(Ord. No. 13059, § 2, 3-12-09; Ord. No. 13833, § 2, 4-25-19)

Sec. 2-1262. Transfer of assets.

Any and all personalty under the control of the Coconut Grove business improvement committee, shall transfer upon the creation of the BID board, to the BID board.
(Ord. No. 13059, § 2, 3-12-09)

Sec. 2-1263. Counsel.

The office of the city attorney shall provide legal services to the BID board as may be necessary and requested by the BID board.
(Ord. No. 13059, § 2, 3-12-09)

Secs. 2-1264—2-1270. Reserved.

DIVISION 18. CLIMATE RESILIENCE COMMITTEE*

Sec. 2-1271. Establishment and purpose.

The "Climate Resilience Committee" ("committee") shall serve in an advisory capacity to the city commission and shall have the following specific duties:

(1) The committee shall recommend changes to the City Code and any city policy necessary to help the city, its residents, businesses, institutions, and natural systems adapt to, prepare for, and thrive in the various stresses related to climate change, including but not limited to emissions of greenhouse gases, increasing flood risks, increasing groundwater levels, more intense storms resulting in high tides and storm surges, increasing high heat days, salt water intrusion, drought, extreme weather events, and water and vector-borne illnesses.

(2) The committee shall have the responsibility to review and evaluate issues related to the use, disposition, and/or development of city-owned waterfront property and shall provide advice to the city commission concerning those issues and only such other matters as are referred to it by the city commission in regard to city or public land abutting water. The city commission shall not be bound by any recommendation or advice received from the committee. The committee is expected to be aware of city policies concerning development and coordinate its endeavors with other city committees and boards which will be affected by the committee's recommendations. Nothing herein is intended to interfere with or conflict with any existing provisions in the City Charter or City Code setting forth procedures concerning the development and/or disposition of city-owned waterfront property.

(Ord. No. 13640, § 2, 10-13-16; Ord. No. 13857, § 2, 9-12-19)

Sec. 2-1272. Composition; appointment and terms of office of members; filling of vacancies.

Members of the committee formerly known as the sea level rise committee serving at the time of the establishment of the committee shall be appointed to serve as members of the committee subject to the terms contained herein.

(a) *Composition and qualifications.* The committee shall consist of nine voting members who shall be city residents, work in the city, own a business in the city, or own real property in the city. All voting members shall be invested in the city and serve without compensation. In addition:

(1) At least one member shall possess an expertise in civil engineering or architecture with a focus on infrastructure;

*__Editor's note—__Ord. No. 13857, § 2, adopted September 12, 2019, changed the title of division 18 from "Sea level rise committee" to "Climate resilience committee."

Prior to the reenactment of division 18 by Ord. No. 13640, § 2, adopted October 13, 2016, Ord. No. 13476, § 2, adopted September 11, 2014, repealed the former division 18, §§ 2-1271—2-1284 in its entirety, which pertained to the community technology advisory board, and derived from Ord. No. 12748, § 3, adopted December 15, 2005.

(2) At least one member shall possess an expertise in community and real estate development;

(3) At least one member shall possess an expertise in one or more of the following areas: climatology, geophysics, coastal management, oceanography, or coastal ocean science;

(4) At least one member shall possess an expertise in emergency management;

(5) At least one member shall possess an expertise in economics; and

(6) At least one member shall possess an expertise in advocating for vulnerable low-income communities.

(7) At least two members shall be 18 to 25 years of age and possess a strong interest in and background or education in climate resilience including but not limited to impacts on infrastructure, water supply and quality, ecosystem health, housing, socioeconomics, or advocacy for vulnerable low-income communities. Members appointed pursuant to this subsection may, but are not required to, satisfy one of the above categories. Notwithstanding any language to the contrary, the members appointed pursuant to this subsection shall be city residents.

(b) *Appointment of voting members.* The nine members shall be appointed to the committee as follows:

(1) Each of the five city commissioners shall appoint one voting member to be ratified by majority vote of the city commission;

(2) The mayor shall appoint one voting member to be ratified by majority vote of the city commission;

(3) The city manager shall appoint one voting member to be ratified by majority vote of the city commission;

(4) The city commission at-large shall appoint two members; and

(5) No alternates shall be appointed.

(c) *Automatic waiver for special counsel to the city and local government employees.* Any appointee contemplated in subsection (b) above (appointment of voting members) who may be currently serving as special counsel to the city by performing basic non-litigation legal services for the city may continue to do so and receive an automatic waiver from the commission to sit on the committee and continue assisting the city pursuant to City Code sections 2-612 and 2-614, as amended. Similarly, any appointee contemplated in subsection (b) above (appointment of voting members) who may be currently employed by Miami-Dade County, Florida, or any municipality therein, may receive an automatic waiver from the commission to sit on the committee and continue his or her government employment pursuant to section 2-884 of the City Code, as amended.

(d) *Term of voting members.* The voting members shall serve for a two-year term, but may continue to serve beyond the two-year term until a successor has been appointed and qualified. Membership shall be limited to three full, consecutive terms; however, this limitation shall not prohibit any individual from being reappointed to the committee after a hiatus of two years. Likewise, the limitation of membership to three full, consecutive terms may be waived for a particular voting member by a unanimous vote of the members of the city commission to permit the voting member to be reconsidered annually for an additional one-year term.

(e) *Minimum attendance requirements.* Voting members should attend each meeting. Any voting member who is absent from more than three meetings in a given calendar year shall automatically be deemed to have vacated his or her position, except that absences allowed pursuant to subsection 2-886(d) of the City Code shall not be counted. A voting member shall be deemed absent from a meeting when the member is not present at the meeting at least 75 percent of its duration. Nevertheless, the provisions of this subsection may be waived by a four-fifths vote of the members of the full city commission pursuant to subsection 2-886(c).

(f) *Removal.* The city commission shall have the power to remove any member by majority vote without a finding of cause. The voting members appointed by the mayor and the city manager may also be removed by the appointing official without a finding of cause subject to ratification by majority vote of the city commission.

(g) *Resignation.* Voting members may resign by submitting a signed letter of resignation to the city clerk. The city clerk shall immediately notify the appointing official of the vacancy. It shall be the obligation of each voting member to notify the city clerk if the member ceases to meet the qualification criteria set forth in subsection (a) above (composition and qualifications).

(h) *Vacancies.* In the event a vacancy occurs on the committee, whether automatically, by vote of the city commission, or by resignation of the member, the city commission may, by majority vote, appoint a qualified person to fill the remaining term of the vacant position. The appointment may be made at the next regularly scheduled meeting of the city commission or as soon as practicable thereafter. All such appointments shall be consistent with the membership requirements stated in subsection (a) above (composition and qualifications).

(i) *Waiver.* The city commission shall have the power to waive any of the requirements of subsection (a) above (composition and qualifications) by four-fifths vote of the members of the full city commission, or a unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation.
(Ord. No. 13640, § 2, 10-13-16; Ord. No. 13857, § 2, 9-12-19; Ord. No. 14067, § 2, 5-12-22)

Sec. 2-1273. Officers and subcommittees.

(a) At the initial organizational meeting, the members of the committee shall select and designate a chairperson and vice-chairperson from among the members of the committee who shall serve at the pleasure of the committee. The chairperson shall reserve the right to appoint an executive committee and to delegate tasks to various subcommittees of the whole.

(b) Subcommittees. The chairperson may establish subcommittees from time to time. Decisions of all subcommittees are subject to ratification by majority vote of the full committee, or a unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from removal, resignation, death, suspension, or physical incapacitation.
(Ord. No. 13640, § 2, 10-13-16)

Sec. 2-1274. Meetings, parliamentary authority, rules and regulations.

(a) *Procedure.* The committee shall adopt its own order of business, rules of procedure, and bylaws to govern its meetings and actions not inconsistent with the provisions set forth herein, which shall be filed with the city clerk. Until the committee adopts its own rules of procedure, it shall follow Robert's Rules of Order (current edition) except that the provisions set forth herein shall control in case of conflict.

(b) *Notice and public participation.* All meetings and workshops of the committee and any of its subcommittees shall be noticed and open to the public as required by the state's Sunshine Law. In addition, the public shall be encouraged to submit oral and written comments to the committee.

(c) *Minutes.* The minutes of each meeting and workshop shall be taken by applicable staff and promptly made available by the city clerk. Such records shall be open to public inspection.

Copies of minutes of all committee meetings shall be furnished to the mayor, city commissioners, city attorney, and city manager upon request.

(d) *Quorum.* A minimum of 50 percent plus one of the Committee's total voting members shall constitute a quorum for the purpose of convening any meeting. An affirmative vote of not less than 50 percent plus one of the voting members present at any meeting is required for any action to be taken by the members.
(Ord. No. 13640, § 2, 10-13-16; Ord. No. 13857, § 2, 9-12-19)

Sec. 2-1275. Powers.

(a) The committee shall have the power to:

(1) Hold public meetings to receive public and expert input;

(2) Review any and all available information pertaining to climate resilience, including but not limited to its impacts on infrastructure, public health, water supply and quality, ecosystem health, housing, and socioeconomics;

(3) Review any and all issues related to the use, disposition, and/or development of city-owned waterfront property. Nothing herein is intended to interfere or conflict with any existing provisions in the City Charter or City Code setting forth procedures concerning the development and/or disposition of city-owned waterfront property.

(4) Request reports regarding the above from city departments through the city manager's office or designee;

(5) Comment on reports from city departments through the city manager's office or designee regarding updates to city infrastructure that may relate to the city's ability to adapt to increasing flood, heat, and storm risks and mitigate causes of climate change;

(6) Comment on reports from city departments through the city manager's office or designee concerning changes to the city's zoning ordinance and other land development regulations, flood damage prevention, or historic or environmental preservation regulations that may relate to the city's ability to adapt to sea level rise and its adverse impacts;

(7) Review city recommendations for investment priorities related to city infrastructure, including but not limited to roads, transportation, solid waste facilities, storm water facilities, buildings, and communities and residences most at risk from climate change, sea level rise, and their adverse impacts;

(8) Review recommendations for applicable resilient design standards and best practices for adaptation, mitigation, and other considerations related to climate change, sea level rise, and their adverse impacts;

(9) Review staff recommendations for appropriate climate change and sea level rise projections to be used in city infrastructure projects and planning;

(10) Recommend, from time to time, matters pertaining to the city's ability to adapt to climate change, sea level rise, and their adverse impacts to be considered by the city's planning, zoning and appeals board; the city's historic and environmental preservation board; or other relevant city boards, committees, or commissions;

(11) Recommend any changes to the City Code, policies, guides, and standards, including but not limited to the matters listed herein, necessary to help the city and its residents adapt to and prepare for the adverse impacts of climate change and sea level rise;

(12) Undertake joint investigations or alliances regarding the above with educational, academic, not-for-profit, and other governmental entities and offices;

(13) Subject to city commission approval, which approval shall not be unreasonably withheld, engage experts who, as independent contractors, will provide analyses, reports, recommendations, and other resources, which shall be paid from funds available to the committee; and

(14) Prepare an annual budget to be presented to the city commission for approval.

(b) The city manager shall retain sole authority to execute contracts and agreements subject to the limitations of City Charter and City Code.

(c) Any resolution of the committee recommending changes to city policy to the city commission shall be placed on the next feasible city commission agenda as a discussion item.

(Ord. No. 13640, § 2, 10-13-16; Ord. No. 13857, § 2, 9-12-19)

Sec. 2-1276. Annual budget.

(a) *Procedure.* Upon the effective date of the enactment of the ordinance from which this division derives, the committee shall establish a fiscal year which coincides with that of the city. Within 60 calendar days following the effective date of the enactment of the ordinance from which this division derives, the committee shall submit to the city commission, in a form acceptable to the city manager, a mandatory annual budget for adoption and ratification by majority vote of the city commission. Nothing contained herein shall be construed to prohibit the committee from submitting a supplemental budget to the city commission for approval. All expenditures shall comply with city procedures for acquisition of goods and services.

(b) *Expenditures.* No expenditure shall be made in any given year without approval by the city commission of the committee budget for that year. In addition, the following shall apply:

(1) Expenditures shall primarily be made for the engagement of experts and consultants to provide analyses, reports, recommendations, and other resources or to implement programs to help the city and its residents adapt to and prepare for the adverse impacts related to sea level rise.

(2) No more than ten percent of the committee's budget shall be used to reimburse voting members or city employees for attendance at various conferences, seminars, and events. Voting members of the committee shall comply with the state's Sunshine Law when attending such conferences, seminars, and events.

(c) *No conflicts of interest.* Voting members of the committee shall comply with the conflict of interest provisions of the City Code, the conflict of interest and ethics ordinance of Miami-Dade County, and all other laws that may apply when preparing the annual budget and expenditures of the committee.

(d) *No deficiencies.* No provision contained in this division shall be construed to violate the Anti-Deficiency Act, as set forth in sections 18-500—18-503 of the City Code, as amended.
(Ord. No. 13640, § 2, 10-13-16)

Sec. 2-1277. Annual and quarterly reports.

(a) *Annual report.* The chairperson shall submit an annual report to the city manager on January 15 of each year pursuant to section 2-890 of the City Code, as amended.

(b) *Quarterly report.* The committee shall submit reports to the city commission and present the findings and recommendations of said reports at a meeting of the city commission on at least a quarterly basis.

(c) *Copies.* Copies of the committee's reports shall be made available online.
(Ord. No. 13640, § 2, 10-13-16)

Sec. 2-1278. Legal counsel.

The office of the city attorney shall provide an attorney to serve as legal counsel to the committee and shall provide legal advice on all matters considered by the committee.
(Ord. No. 13640, § 2, 10-13-16)

Sec. 2-1279. Liaison(s) to committee and assignment of staff.

Notwithstanding any provisions to the contrary contained in this Code, the city manager shall designate the administration's liaison(s) to the committee.
(Ord. No. 13640, § 2, 10-13-16; Ord. No. 13857, § 2, 9-12-19)

Secs. 2-1280—2-1300. Reserved.

Editor's note—Ord. No. 13857, § 2, adopted September 12, 2019, repealed the former section 2-1280 in its entirety, which pertained to the inapplicability of the sunset provision, and derived from Ord. No. 13640, § 2, adopted October 13, 2016.

DIVISION 19. HOUSING AND COMMERCIAL LOAN COMMITTEE

Sec. 2-1301. Establishment and purpose.

There is hereby created and established a board, to be known as the housing and commercial loan committee, for the following purposes:

(1) Approving or disapproving housing and commercial loans and grants to be provided by the city through any funds administered by the department of housing and community development, and

(2) Performing such other duties and responsibilities relative to affordable housing and small business development as may be set forth herein or incident thereto.

(Ord. No. 13030, § 3, 10-16-08; Ord. No. 13967, § 4, 2-25-21)

Sec. 2-1302. Functions, powers and duties generally.

The housing and commercial loan committee is hereby authorized to:

(1) Approve or disapprove housing and commercial loans and grants to be provided by the city through any funds administered by the department of housing and community development. Those funds include, but are not limited to, the following: Community Development Block Grant ("CDBG"), HOME Investment Partnerships ("HOME"), Housing Opportunities for People with AIDS ("HOPWA"), Florida State Housing Initiatives Partnership ("SHIP"), and the Affordable Housing Trust Fund ("AHTF").

In addition to the authority granted to the housing and commercial loan committee in subsection (1) of this section 2-1302 to approve, disapprove and restructure housing and commercial loans and grants, the city manager is also authorized to approve or disapprove housing loans and grants, and subordination agreements, restructuring plans and repayment plans for loans and grants, provided under the city's single family rehabilitation and homebuyers financing programs.

(Ord. No. 13030, § 3, 10-16-08; Ord. No. 13124, § 2, 1-14-10; Ord. No. 13967, § 4, 2-25-21)

Sec. 2-1303. Governing body-composition and appointments; terms of office and vacancies; membership qualifications; procedures for appointment of members including the public advocate; officers; quorum and voting; meetings; and attendance requirements.

(a) *Governing body-composition and appointments.* The board shall consist of 13 members.

(1) The following ten members shall be appointed by the city commission:

a. One member who is actively engaged in the residential home building industry in connection with affordable housing;

b. One member who is actively engaged in the banking or mortgage banking industry in connection with affordable housing;

c. One member who is a representative of those areas of labor actively engaged in home building in connection with affordable housing;

d. One member who is actively engaged as an advocate for low-income persons in connection with affordable housing;

e. One member who is actively engaged as a for-profit provider of affordable housing;

f. One member who is actively engaged as a not-for-profit provider of affordable housing;

g. One member who is actively engaged as a real estate professional in connection with affordable housing;

h. One member who resides within the city limits of the city;

i. One member who represents employers within the city; and

j. One member who represents essential services personnel, as defined in the local housing assistance plan;

If the city is unable to appoint a member actively engaged in these activities in connection with affordable housing, a member engaged in the activity without regard to affordable housing may be appointed.

(2) The following three members shall be appointed as follows:

a. One chairperson nominated by the mayor and appointed by city commission;

b. Two members from city administration nominated by the city manager and appointed by city commission. One of these two members shall actively serve on the city's planning department;

(b) *Terms of office and vacancies.* Members shall be appointed for a term of four years. Except as hereinafter provided, the city commission shall appoint an individual to fill a vacancy due to the death, resignation or removal of any member of the board, which person shall serve only for the remainder of the unexpired term. A vacancy in the chairperson or any of the two members appointed from city administration shall be filled in the same manner as provided above for the appointment of those board members. Nothing set forth herein shall prohibit any individual from being reappointed, subject to the provisions of section 2-885.

(c) *Membership qualifications.* All board members shall be 18 years of age or older.

Each member of the board shall be an individual of outstanding reputation for integrity, responsibility and commitment to serving the community, and is expected to participate actively in the functioning of the board.

Except as provided in subsection (a)(1), members of the board shall not be required to be permanent residents of the city, own real property in the city, or work or maintain a business in the city.

(d) *Procedure for appointment of members.* No appointment to the board shall be made until notice has been given in a newspaper of general circulation in the city of the appointments to be made at least 15 days prior to making the appointment, which notice shall have solicited and encouraged the public and citizen organizations within the city having interest to submit names of persons and their qualifications for consideration. The qualifications of those to be considered as prospective members of the board, except for the chairperson, shall be evaluated by the department of housing and community development. The department of housing and community development shall recommend appointees to the city commission for final appointment, except for the chairperson.

(e) *Officers.* The chairperson shall be appointed by the mayor. The board shall elect from its members a vice-chairperson, and may designate a secretary and such other officers as deemed necessary. The chairperson of the board shall have the power to appoint all members serving on the various committees which the board may establish from time to time.

(f) *Quorum and voting.* At all meetings of the board, a minimum of five members shall constitute a quorum for the transaction of business, and each member shall have one vote on every issue submitted to a vote of the board. The act of a majority of the members present at a meeting at which a quorum is present shall be the act of the board. The members of the board may make and adopt bylaws and rules for the board's governance.

(g) *Meetings.* The board shall hold regular monthly meetings, except in the month of August, and may hold such other meetings as it deems necessary. All meetings of the board shall be public meetings. Written minutes of the proceedings of all actions taken at the meetings of the board shall be properly recorded and maintained.

(h) *Attendance requirements.*

(1) Any board member shall be automatically removed if, in a given calendar year:

a. He or she is absent from three consecutive meetings; or

b. He or she is absent from four of the board's meetings;

c. Provided that regardless of their compliance with subsections (1)a. and b., members must attend at least 50 percent of all the board meetings held during each calendar year.

(2) A member of the board shall be deemed absent from a meeting when he or she is not present at the meeting at least 75 percent of its duration.

(3) The provisions of this section may be waived by a vote of the members of the board if, prior to removal for failing to meet the attendance requirements hereinabove, a member requests a waiver of the same providing the member's reasons supporting such request.

(Ord. No. 13030, § 3, 10-16-08; Ord. No. 13967, § 4, 2-25-21)

Sec. 2-1304. Staff liaison; assignment, qualifications, general powers and responsibilities.

There shall be an individual or individuals who shall be specifically assigned to the board by the city manager to facilitate its activities. The employee assigned by the city manager shall act as the liaison to the board and the administration and shall have general supervision over and be responsible for the management and operation of all board activities. The employee shall attend all meetings of the board, and shall from time to time prepare and furnish such reports, audits and other information relating to the duties of the board as may be requested by the board, the administration or the community development department. In the event that the employee is for any reason temporarily incapable of exercising the powers and performing the duties and assigned functions, the city manager shall designate an employee to perform such functions and duties until such incapacity of the permanently assigned employee ceases.
(Ord. No. 13030, § 3, 10-16-08)

Sec. 2-1305. Counsel.

The city attorney's office shall provide legal counsel to the board as may be necessary and requested by the board.
(Ord. No. 13030, § 3, 10-16-08)

Sec. 2-1306. Administrative support services.

The board is hereby designated as a category "C" board as it relates to the administrative support services to be provided by the office of the city clerk.
(Ord. No. 13030, § 3, 10-16-08)

Sec. 2-1307. Sunset review of the board.

Notwithstanding the provisions contained in section 2-892, the board shall be initially reviewed in 2013. Thereafter the board shall be reviewed every four years.
(Ord. No. 13030, § 3, 10-16-08)

Sec. 2-1308. Abolition of the board.

The city commission may, by an affirmative four-fifths vote, abolish the board, at which time the powers and duties of the board shall revert to the city.
(Ord. No. 13030, § 3, 10-16-08)

DIVISION 20. RESERVED*

Secs. 2-1309—2-1315. Reserved.

*__Editor's note—__Ord. No. 13864, § 6, adopted October 10, 2019, repealed the former division 20, sections 2-1309—2-1315 in its entirety, which pertained to the education advisory board, and derived from Ord. No. 13066, § 2, adopted May 14, 2009, and Ord. No. 13676, § 2, adopted April 27, 2017.

DIVISION 21. WYNWOOD BUSINESS IMPROVEMENT DISTRICT BOARD

Sec. 2-1316. Establishment and purpose.

The Wynwood Business Improvement District Board of the city ("BID board") is herewith established for a period of ten years to improve and strengthen the area known as the Wynwood Arts District as more particularly described in Resolution No. 13-0228 adopted on June 13, 2013 through promotion, management, marketing, and other similar services, including but not limited to, coordination, funding, implementation and maintenance of infrastructure improvements, and other projects. The Wynwood Arts District shall be described herein as the "area." The BID board shall be the board charged with managing the Wynwood Business Improvement District ("BID").
(Ord. No. 13404, § 2, 9-12-13; Ord. No. 13453, § 2, 5-8-14)

Sec. 2-1317. Composition of board; terms, filling of vacancies.

(a) The BID board shall have nine members, seven of which are voting members, two of which are non-voting. The seven voting BID board members must be commercial property owners in the district. Beyond the first year, all terms will be for two years. To ensure a voice for North Miami Avenue, at least one of the nine board seats shall be dedicated to a property owner from North Miami Avenue. The two non-voting members shall be either retail, cultural arts, office, or restaurant established business owners in the district.

(1) The BID board, on the recommendation of the current chair, will form a slate selection committee which will formulate a slate from among property owners who have been self-nominated or nominated by other property owners. After approval by the BID board, the slate will be put to an up-or-down as a whole vote by the commercial property owners of the BID, with one vote allowed per assessed folio. Guidelines will be issued by the BID staff which will give deadlines and acceptable manner for casting votes. The board shall be sworn and seated on or about the first day of the month of October.

(2) Selecting and seating of future board members beyond the first year of the BID. The BID board will finalize and establish the method for electing and seating of future BID board members in the by-laws developed by them for the BID in the first year of operations.

(b) At the first meeting of the BID board, the members will determine lengths of terms for the initial BID board. Three of the seven members will serve initial terms of one year. Four members will serve initial terms of two years. In years "two" and beyond of the BID, all terms will be for two years. Among the members of the board who serve an initial one-year term, the maximum time they may serve, if re-elected, is a total of seven years—either consecutively or intermittently. Among the members of the board who serve an initial two-year term, the maximum time they may serve, if elected, is a total of six years—either consecutively or intermittently.

(c) Members shall continue to serve until their successors have been elected and seated. Appointments to fill board vacancies shall be made by the chair and confirmed by a majority of the board for the unexpired term only.

(d) Quorum shall consist of a majority four of voting members.

(e) The BID board shall have the power to establish committees and appoint the members to the various committees, consistent with any standards for standing committees provided for explicitly in sections herein.

(f) Protection from personal liability. The BID board shall maintain officers and director's liability insurance coverage at all times, in an amount and in a form satisfactory to the city's director of risk management. Nothing in this section shall be construed in any way to limit or waive sovereign immunity.
(Ord. No. 13404, § 2, 9-12-13; Ord. No. 13453, § 2, 5-8-14; Ord. No. 13554, § 2, 9-24-15; Ord. No. 13835, § 2, 4-25-19)

Sec. 2-1318. Qualifications of members.

(a) All members of the BID board shall be "affected commercial property owners" in the area.

(b) All members of the BID board shall be individuals of outstanding reputation for integrity, responsibility and business ability and acumen.

(c) Convicted felons may not serve on the BID board.

(d) Before assuming the duties of the office, each member shall take and subscribe to the oath of office required of officials of the city.
(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1319. Meetings; parliamentary authority, rules and regulations; compensation of members.

The parliamentary authority of the BID board shall be Robert's Rules of Order for Small Boards and Associations. The BID board shall hold regular meetings no less often than once each quarter. Special meetings may be held when called in the manner provided in the by-laws of the BID. All meetings of the BID board shall be open to the public. Each member of the BID board shall serve without remuneration.
(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1320. Removal of members.

Notwithstanding anything in the Code to the contrary, by resolution specifying facts sufficient to advise a BID board member as to the basis for his or her removal and after reasonable notice to the BID board member and an opportunity for the member to be heard, the BID board, by a 51 percent vote of the board, may remove a board member, so long as the reason for removal is one or more of the following:

(1) If the member ceases to meet the qualifications and integrity criteria set forth herein or any additional qualifications set forth in the BID board by-laws;

(2) If the member is not current with timely payment of BID assessment(s) due;

(3) For purposes of this section, being absent from three regular BID board meetings or committee meetings—or a combination thereof—during a calendar year shall constitute good cause for removal; or

(4) For one or more violations of the Sunshine Law, as reviewed by the Board and the Miami-Dade County Commission on Ethics.

(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1321. Powers and duties.

(a) The BID board shall have the power to:

(1) Subject to city commission approval, which approval shall not be unreasonably withheld, appoint an executive director and fix the terms of engagement and compensation of the executive director.

(2) Prepare an annual budget to be presented to the city commission for approval.

(3) Plan, propose, and implement programs and services for the purpose of stabilizing and improving the BID through promotion, management, marketing, and other similar services, such as streetscape improvements.

(4) Plan and propose to the city and the city commission, within the area, land use and zoning policies, public improvements, including but not limited to renovation, repair, remodeling, reconstruction or other changes in existing buildings and streetscape which in the opinion of the BID board will aid in the economic growth of the area.

(5) Recommend to the city commission the acquisition by purchase or otherwise, of any land and any other property, real or personal, or any rights or interests therein, which it may determine is reasonably necessary for any project or purpose of this article.

(6) Cooperate with any governmental agency or public body for the purposes authorized herein.

(7) Solicit and accept grants in cooperation with the city office of grants administration. The BID staff shall contact the office of grants administration for assistance in project planning, proposal writing, application assembly, and monitoring financial and budgetary compliance with grantor agency guidelines. All grant applications shall be submitted to the office of grants administration for review and coordination prior to submission. The BID board shall be responsible for implementing and managing all of its grants. Any and all other contributions and financial support from individuals, private business interests, the general public, governmental entities, corporations and organizations, foundations and other philanthropic entities shall follow the approvals established by the city.

(8) Exercise all powers incidental to the effective and expedient exercise of the foregoing powers to the extent not in conflict or inconsistent herewith.

(9) The city manager may delegate to the executive director the authority to execute contracts consistent with the provisions of chapter 18, article III, subject to BID board approval.

(Ord. No. 13404, § 2, 9-12-13; Ord. No. 13554, § 2, 9-24-15)

Sec. 2-1322. Employees generally.

(a) *Executive director.* The executive director shall serve at the pleasure of the BID board and shall be a person of good moral character and have a reputation for integrity, responsibility and business ability. No member of the BID board shall be eligible to hold the position of executive director. Before entering upon the duties of his/her office, the executive director shall take and subscribe to the oath as required of members of the BID board. Subject to the approval of the BID board, and direction by it when necessary, he/she shall have general supervision over and be responsible for the preparation of plans and the performance of the functions of the BID in the manner authorized in this article. He/she shall attend all meetings of the BID board and shall render periodic reports covering the activities and financial condition of the BID. The executive director shall have no civil service rights or privileges.

(b) *Staff.* Subject to the specific policy directives and goals of the BID board, budget limitations, and the approval of the board, the executive director may engage such staff members as are necessary for the efficient operation of the BID. Staff members shall have no civil service rights or privileges.

(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1323. Annual budget; source of funds.

(a) The BID board shall establish a fiscal year which coincides with that of the city. Within 60 days following the effective date of the enactment of the ordinance from which this division derives, the BID board shall submit to the city commission, in a form acceptable to the city manager, a BID board budget for adoption and ratification by the city commission. Commencing with fiscal year 2014-2015, consistent with the city's budget process, the BID board shall submit to the city manager, a BID board budget pertaining to management, operation and maintenance expenditures and delineating the financial responsibility of the city for certain categories including but not limited to: insurance, security, utilities and maintenance to be approved by the city commission. Nothing contained herein shall be construed to prohibit the BID board from submitting a supplemental budget to the city commission for approval.

(b) As needed, the BID will revise budgets and submit these revisions to the city commission for approval. BID expenditures shall comply with city procedures for acquisition of goods and services.

(c) In conjunction with the submission of the budget, the BID board shall submit a plan reflecting the proposed operations, activities, improvements, and maintenance plans for the forthcoming fiscal year.

(d) No provision contained in this division shall be construed to violate the Anti-Deficiency Act, as set forth in sections 18-500—18-503.

(e) The operations of the BID board shall be principally financed from the following sources and such other sources as may be secured:

(1) Proceeds of a special assessment as authorized by resolution.

(2) Contributions, gifts, and/or donations to the BID board for the performance of its functions.

(3) Such parking waiver fees as are authorized.

(4) Such parking surcharge fees as are authorized.

(5) Such sidewalk cafe fees as are authorized.

(7) Such other fees as are authorized.

(8) Grant funds.

(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1324. Annual report and audit.

The BID board shall submit to the mayor and city commission an annual report and an annual audit. The audit shall be performed by an external auditor who is a certified public accountant.
(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1325. Notices and filing of records.

The BID shall publicly notice meetings of board and committees at the city. The BID shall keep a record of all motions passed at board and committee meetings.
(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1326. Sunshine.

The BID will be governed by the Sunshine Law and will schedule appropriate training for each member of the board and staff in this regard.
(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1327. Counsel.

The office of the city attorney shall provide legal services to the BID board as may be necessary and requested by the BID board.
(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1328. Inapplicability of sunset provision.

The BID board shall not be subject to the provisions of section 2-892 of the Code.
(Ord. No. 13404, § 2, 9-12-13)

Sec. 2-1328.1. Wynwood design review committee.

(a) *Establishment.* There is hereby established a standing committee of the BID, to be known as the Wynwood Design Review Committee ("WDRC"), for the purpose of recommending to the director of planning, the zoning administrator, and the Urban Development Review Board ("UDRB"), pursuant to the Wynwood NRD-1 and Miami 21, the zoning ordinance of the city, as amended or superseded. whether the design of developments and/or improvements to properties within the boundaries of the Wynwood NRD-1 are compatible with the cultural and architectural character of the Wynwood Arts District and guidelines that may be adopted from time to time.

(b) *Membership.*

(1) *Composition; appointment.* The WDRC shall consist of seven members and one alternate, to be appointed by the BID board, or any successor body designated by the city commission.

(2) *Qualifications.* It is intended that members of the WDRC shall be persons of experience, mature judgment and background; having knowledge of the Wynwood Arts District; and having the ability, special professional training and interest to act in the public interest in order to make informed and equitable decisions concerning art, architecture, urban, physical and site design for developments within the Wynwood NRD-1 boundaries. To that end, members shall

meet at least one of the following qualifications and each of the following qualifications shall be represented on the committee by at least one member:

a. BID members. At least one member shall be an individual who is a member of the BID. Each member shall have been living or working within the Wynwood NRD-1 boundaries for at least two years.

b. Professional members. At least two members shall be professionals, licensed by the State of Florida (or professional equivalent) as an architect, landscape architect, urban designer, planner, engineer, general contractor or attorney. Each member shall have been living or working in the city for at least two years.

c. Tenant/cultural member. At least one member shall be a tenant with an active lease within the Wynwood NRD-1 boundaries, artist, or cultural institution representative.

d. Alternate. The alternate member shall satisfy the qualifications set forth either in subsection (2)a. or b. above.

e. During the qualification process, members of the BID shall be encouraged to submit names of persons and their qualifications to the BID board through the BID's executive director.

(3) *Terms of office.* Members of the WDRC shall be appointed for a term of one year. Notwithstanding the above, individual WDRC members may serve until his/her successor is appointed. No member shall serve for more than four consecutive one-year terms.

(4) *Vacancies.* Vacancies in the membership of the WDRC shall be filled by the BID board, and shall be only for the unexpired term of the member affected.

(5) *Removal.* Members of the WDRC may be removed with or without cause by vote of not less than three members of the BID board; however, any member or alternate member of the WDRC who fails to comply with the attendance requirements contained in section 2-886 of this Code shall be automatically removed in the manner prescribed under section 2-889 of this Code. Following said removal, the BID board shall fill the vacancy pursuant to subsection (4) above.

(c) *Functions, powers and duties generally.* In addition to such other powers, duties and authority as may be set forth elsewhere in this City Code and in the zoning ordinance, the WDRC is hereby authorized to:

(1) Review and recommend to the director of planning and the zoning administrator for approval, approval with conditions, or disapproval of all applications within the Wynwood NRD-1 boundaries for which the WDRC is specifically designated for such role. Said review shall consider whether the design of developments and improvements to properties within the boundaries of the Wynwood NRD-1 are compatible with the cultural and architectural character of the Wynwood neighborhood and guidelines that may be adopted from time to time. In addition to Article 4; Table 12 "Design Review Criteria" of Ordinance No. 13114, the Zoning Ordinance of the City of Miami, as amended ("Miami 21 Code"), the WDRC shall emphasize the following design elements in their review purview:

a. Architectural styles and details including materials, colors and art that is reflective of the culture and character of the Wynwood neighborhood;

b. Articulated building facades including a pattern of doors, windows, architectural design treatments, and art that activates the street level, recognizes pedestrian continuity, and, at the upper levels, acknowledges long views of buildings;

c. Open space and cross-block connectivity that is usable, inviting, safe, and has convenient pedestrian access from the public realm;

d. Landscaping and hardscape that is in accordance with the Wynwood Streetscape Master Plan and enhances the building design, creates inviting open spaces, and contributes to a high-quality, pedestrian-friendly streetscape;

e. Signage design that integrates with and complements the building architecture and Wynwood neighborhood character.

(2) Require submission to the WDRC of all information as may be reasonably necessary for the WDRC to evaluate completely the proposed structure of improvement.

(3) To recommend, from time to time, to the director of planning and zoning amendments to the city guides and standards applicable to the Wynwood Arts District.

(4) Adopt and amend rules of procedure.

(5) Where the UDRB has jurisdiction to review projects, review and recommend to the Urban Design Review Board ("UDRB") such projects for approval, approval with conditions, or disapproval, with reasons for such recommendation stated in writing.

(6) In conformity with chapter 10 of the City Code, and other applicable regulations, recommend legislation for security screens and shutters in the Wynwood Arts District.

(d) *Proceedings.* The WDRC shall meet at least once each month, except for August, and all meetings shall be open to the public. The WDRC shall establish rules of procedure necessary to its governing and the conduct of its affairs, in keeping with the applicable provisions of the City Charter and City Code. Such rules of procedure shall be available in written form to persons appearing before the WDRC and to the public upon request. The WDRC shall not defer or continue an item before taking affirmative action to recommend approval, approval with conditions or disapproval, unless requested by an applicant or the director of planning and zoning.

(e) *Voting; quorum.* All decisions and recommendations of the WDRC shall require a concurring vote of a majority of the members present, except if the WDRC's action results in a tie vote, and there are no further motions put forth, the recommendation to the director of planning and zoning or UDRB, as applicable, shall reflect a tie vote. Three members shall constitute a quorum.
(Ord. No. 13554, § 2, 9-24-15; Ord. No. 14089, § 2, 9-13-22)

Editor's note—Ord. No. 13554, § 2, adopted September 24, 2015, enacted provisions intended for use as section 2-1329. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as section 2-1328.1.

DIVISION 22. RESERVED*

Secs. 2-1329—2-1331. Reserved.

DIVISION 23. RESERVED†

Secs. 2-1332—2-1337. Reserved.

DIVISION 24. MIAMI FOREVER BOND PROGRAM CITIZENS' OVERSIGHT BOARD

Sec. 2-1338. Established; sunset date.

There is hereby established for a period of ten years a city board to be known as the "Miami Forever Bond Program Citizens' Oversight Board," which shall hereinafter be referred to as the "board".
(Ord. No. 13752, § 3, 3-22-18)

***Editor's note—**Ord. No. 14351, § 2, adopted February 13, 2025, repealed the former division 22, sections 2-1329—2-1331 in its entirety, which pertained to the Stars of Calle Ocho advisory committee and derived from Ord. No. 13497, § 3, adopted February 26, 2105, and Ord. No. 13792, § 1, adopted October 11, 2018.

†**Editor's note—**Ord. No. 13864, § 7, adopted October 10, 2019, repealed the former division 23, sections 2-1332—2-1337 in its entirety, which pertained to the senior citizens' advisory board, and derived from Ord. No. 13534, § 3, adopted July 9, 2015, and Ord. No. 13676, § 2, adopted April 27, 2017.

Sec. 2-1339. Purpose, powers, and duties.

(a) The purpose, powers, and duties of the board are:

(1) To serve in an advisory capacity to the mayor, city commission, and city administration related to the monitoring of the expenditure of bond proceeds derived from the issuance of the general obligation bonds approved by the electorate on November 7, 2017 for capital projects to reduce flooding risks; improve stormwater infrastructure; enhance public safety; and improve affordable housing, economic development, parks, cultural facilities, streets, and infrastructure, commonly referred to as the "Miami Forever Bond" ("bond");

(2) To review and report to the mayor, city commission, and city administration on the proper and efficient use of all bond proceeds and request that vendors, contractors, consulting project managers, and any other entity or person receiving bond funding to appear before the board to answer questions regarding the status of such funded projects; and

(3) To review quarterly expenditure reports produced by the city to ensure that bond proceeds are expended on time, on schedule, and only for the purposes set forth in the ballot measure.

(b) The establishment of priorities, determinations of specific projects to be financed and constructed, and order of financing and construction for all projects shall be made by the city commission in its sole discretion.
(Ord. No. 13752, § 3, 3-22-18)

Sec. 2-1340. Membership; qualifications; terms of office and vacancies; officers.

(a) *Membership.* The board shall consist of seven voting members who shall serve without compensation or benefits, shall be confirmed by the city commission, and shall be composed as follows:

(1) One regular member nominated by the mayor;

(2) One regular member nominated by each of the five commissioners for a total of five regular members; and

(3) One at-large member nominated by each of the five commissioners for a one-year term, with nominations in rotating years in the following order: district 1, district 5, district 2, district 4, district 3. Thereafter, all members shall be appointed in the same order as above first established by appointments from commissioner districts.

(b) *Qualifications.*

(1) All members shall be permanent residents of the city and shall have good reputations for integrity and community service. In addition, all board members should have demonstrated an interest in the field, activity, or sphere covered by the board. All members shall also comply with the provisions of subsections 2-884(b), (c), (d), and (e) of this article.

(2) All members shall be qualified and distinguished by their education; experience; community advocacy or involvement; or attainments in public or private finance, professional engineering, project management, affordable housing, or resiliency and sustainability.

(3) No member shall have a conflict of interest with any project, vendor, contractor, consultant, or other entity or person receiving funding from the proceeds of the bond issuance or interest derived therefrom.

(c) *Terms of office and vacancies.* The provisions set forth in section 2-885 of this article shall apply to all members of the board except that the terms of office for each regular member of the board shall be two years, unless appointed pursuant to subsection (a)(3), with the terms of office for said at-large member being one year. There shall be no limitation on the number of consecutive years served.

(d) *Officers.* The mayor shall designate the chairperson of the board. The board shall elect from its members a vice-chairperson and such

other officers as may be deemed necessary who shall serve at the pleasure of the board. No chairperson shall serve more than two years. The vice-chairperson shall serve as chairperson in the absence of the chairperson.
(Ord. No. 13752, § 3, 3-22-18)

Sec. 2-1341. Meetings; quorum; attendance requirements; parliamentary authority; rules of procedure.

(a) *Meetings; quorum.* All meetings of the board shall be open to the public. A majority of the board's appointed and qualified members at such time shall constitute a quorum for the purpose of convening any meeting. An affirmative vote of not less than 50 percent plus one of the members present and voting at any meeting is required for any action to be taken by the members. The board shall hold regular quarterly meetings and may hold such other meetings as it deems necessary.

(b) *Attendance requirement.* The provisions set forth in section 2-886 of this article shall apply to all members of the board.

(c) *Parliamentary authority; rules of procedure.* The board shall use Roberts Rules of Order (current edition) as its parliamentary authority or may adopt its own order of business and rules of procedure governing its meetings and actions on matters within its jurisdiction not inconsistent with the provisions set forth herein, which rules of procedure shall be filed with the city clerk. Copies of minutes of all board meetings shall be furnished to the mayor, commissioners, and city manager.
(Ord. No. 13752, § 3, 3-22-18)

Sec. 2-1342. Assignment of staff.

(a) It shall be the duty of the city manager to provide full cooperation and sufficient personnel for necessary administrative support to the board including assignment of an individual to act as a liaison and secretary to the board as well as the assignment of individuals from city departments and offices, as may be necessary, to advise the board about ongoing and pending projects. It shall be the duty of the board liaison to keep minutes or cause said minutes to be taken at all meetings, maintain committee correspondence, post meeting notices with the city clerk, file reports, and perform all other necessary support functions.

(b) The city attorney shall serve as legal counsel to the board.
(Ord. No. 13752, § 3, 3-22-18)

Sec. 2-1343. Annual reports.

The provisions set forth in section 2-890 of this article shall apply related to the submittal of annual reports.
(Ord. No. 13752, § 3, 3-22-18)

Sec. 2-1344. Sunset provision.

The board shall not be subject to the provisions of section 2-892 of this article; however, the board shall sunset ten years after it is established.
(Ord. No. 13752, § 3, 3-22-18)

Secs. 2-1345—2-1349. Reserved.

DIVISION 25. LESBIAN, GAY, BISEXUAL, TRANSGENDER, QUEER ("LGBTQ") ADVISORY BOARD

Sec. 2-1350. Creation.

There is hereby created and established the Lesbian, Gay, Bisexual, Transgender, Queer ("LGBTQ") advisory board.
(Ord. No. 13891, § 2, 2-13-20)

Sec. 2-1351. Composition; membership.

(a) *Composition.* The LGBTQ advisory board shall be composed of seven voting members appointed by the mayor and city commissioners. Each city commissioner and the mayor may appoint one person to the LGBTQ advisory board. The city commission will make one at-large appointment.

(b) *Qualifications.* Each member of the LGBTQ advisory board shall be a permanent resident and duly qualified elector of the city, unless the city commission waives the residency requirement by a two-thirds vote of its membership, and shall be of an outstanding reputation of integrity,

responsibility, and commitment to serving the community. The membership of the LGBTQ advisory board shall be broadly representative of the various social, racial, religious, linguistic, cultural, economic, national origin and geographic groups comprising the population of the city. Each member shall have an outstanding reputation for community pride, interest, integrity, responsibility, and business or professional ability and a documented commitment to the LGBTQ community.

(c) *Vacancies.* Vacancies shall be filled in the same manner by which the original members were appointed, with a special emphasis on choosing persons who represent the demographic composition of the entire community.

(d) *Terms of office.* The provisions set forth in section 2-885 of this article shall apply to all members of the board.
(Ord. No. 13891, § 2, 2-13-20)

Sec. 2-1352. Meetings; quorum and voting; attendance requirements; parliamentary authority; rules of procedure; minutes; assignment of staff; legal counsel; and notices and filing of records.

(a) *Meetings.* The board shall hold at least one regularly scheduled meeting each month, except during the month of August. Other meetings of the board may be scheduled at the call of the board's chairperson. All meetings shall be open to the public and are subject to the Florida Sunshine Law or Florida Public Records Law. The meetings shall be held at City Hall, located at 3500 Pan American Drive, Miami, Florida, unless the board elects to hold a meeting at another location and such location has been duly noticed.

(b) *Quorum and voting.* The provisions set forth in section 2-887 of this article shall apply to all meetings of the board.

(c) *Attendance requirements.* The provisions set forth in section 2-886 of this article shall apply to all members of the board.

(d) *Parliamentary authority; rules of procedure.* The board shall use Roberts Rules of Order (current edition) as its parliamentary authority, or may adopt its own order of business and rules of procedure governing its meetings, and actions on matters within its jurisdiction, not inconsistent with the provisions set forth herein, which rules of procedure shall be filed with the city clerk.

(e) *Minutes.* Copies of minutes of all board meetings shall be furnished to the mayor, commissioners and the city manager.

(f) *Assignment of staff.* It shall be the duty of the city manager to provide administrative support to the board, which shall include the services of an individual to keep minutes of meetings, maintain board correspondence, post meeting notices, file reports and perform all other necessary support functions.

(g) *Legal counsel.* The city attorney shall serve as legal counsel to the board.

(h) *Notices and filing of records.* The provisions set forth in section 2-888 of the City Code shall apply to the board. Notice of meetings shall be posted by the city clerk at City Hall and other appropriate locations after being apprised by the board of an upcoming meeting(s). Advertised public notice of meetings are not required. It shall be the duty of the city clerk to comply with applicable laws related to filing of records and section 2-889 of the City Code.

(i) *Election of officers.* The board shall choose from among themselves a chairperson and vice-chairperson to serve for terms of one year each, and shall choose other officers as they deem appropriate.
(Ord. No. 13891, § 2, 2-13-20)

Sec. 2-1353. Powers and duties.

The LGBTQ advisory board shall have the following powers, duties, functions, and responsibilities:

(1) To serve as a vehicle for a systematic and periodic assessment of the quality of life of LGBTQ residents of and visitors to the city;

(2) To foster mutual understanding, tolerance, and respect for the LGBTQ community in the city;

(3) To cooperate in the development of educational programs dedicated to the improvement of the lives of LGBTQ residents and visitors by eliciting support from public and private entities engaged in the inculcation of ideals of tolerance, mutual respect and understanding for the LGBTQ community;

(4) To make recommendations to the city commission with respect to all issues affecting or relating to the LGBTQ community;

(5) To recommend solutions to the social, economic, cultural and political problems in the LGBTQ community, as well as to serve as liaison between the LGBTQ community and the city community at large;

(6) To encourage and attract LGBTQ businesses to the city, to assist LGBTQ businesses located in the city, and to promote economic development, especially job creation in the city;

(7) To promote positive images and concepts of the LGBTQ community as well as promote their many contributions to our society;

(8) To conduct studies through fact-finding and analysis of problems encountered by the LGBTQ community;

(9) To examine and recommend revisions in Miami policies and procedures having potentially negative consequences for LGBTQ individuals;

(10) To serve as a forum to which individuals and groups can express concerns related to issues of homophobia and transphobia;

(11) To continue to strengthen ties with the larger Miami community;

(12) To conduct outreach to other entities and the community, including but not limited to the city's LGBTQ community;

(13) To perform such other duties as may from time to time be assigned to it by the city commission.

(Ord. No. 13891, § 2, 2-13-20)

Secs. 2-1354—2-1359. Reserved.

DIVISION 26. RESERVED*

Secs. 2-1360—2-1368. Reserved.

ARTICLE XII. RESERVED†

*__Editor's note—__Ord. No. 14351, § 2, adopted February 13, 2025, repealed the former division 26, sections 2-1360—2-1368 in its entirety, which pertained to the Miami technology council and derived from Ord. No. 13965, § 3, adopted February 11, 2021.

†__Editor's note—__Ord. No. 11890, § 2, adopted Feb. 10, 2000, renumbered the former Art. XII, §§ 2-1145—2-1148, as Ch. 18, Art. IX, Div. 1, §§ 18-500—18-503. Art. XII pertained to the Anti-Deficiency Act. The historical notation has been retained with the amended provisions for reference purposes. See the Code Comparative Table for further information.

Chapter 3

ALARM SYSTEMS*

Article I. In General

Secs. 3-1—3-20. Reserved.

Article II. Burglary and Robbery Alarms

Sec. 3-21. Title.
Sec. 3-22. Definitions.
Sec. 3-23. Alarm permits required; fee; renewal; enforcement provisions.
Sec. 3-24. Application for alarm permit; emergency notification and reporting service information.
Sec. 3-25. Issuance of permit decals.
Sec. 3-26. Necessary items for alarm systems to qualify for an alarm user permit.
Sec. 3-27. Response to alarm; determination of validity.
Sec. 3-28. Appeals.
Sec. 3-29. False alarm service charges; enforcement provisions.
Sec. 3-30. Automatic telephone dialing alarm systems prohibited.

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Article III. Fire Alarms

Sec. 3-56. Definitions.
Sec. 3-57. Response to alarm; determination of validity.
Sec. 3-58. Appeals.
Sec. 3-59. Fee assessment for false alarms.
Sec. 3-60. Automatic telephone dialing alarm systems prohibited.

*__City Code cross references—__Fire protection, ch. 19; police, ch. 42.

ARTICLE I. IN GENERAL

Secs. 3-1—3-20. Reserved.

ARTICLE II. BURGLARY AND ROBBERY ALARMS*

Sec. 3-21. Title.

This article shall be known as the "burglary and robbery alarm ordinance."
(Ord. No. 9203, § 1, 11-26-80; Code 1980, § 3.5-21)

Sec. 3-22. Definitions.

Unless it is apparent from the context that another meaning is intended, the following words when used in this article shall have the meanings attributed to them by this section:

Alarm business means the business of any individual, partnership, corporation or other entity engaged in selling, leasing, maintaining, servicing, repairing, altering, replacing, moving or installing any alarm system or in causing any alarm system to be sold, leased, maintained, serviced, repaired, altered, replaced, moved or installed in or on any building, structure or facility. An alarm business shall be a burglar alarm specialty electrical contractor which shall have, as a qualifying agent, a State of Florida or Dade County company qualifier, meaning a person licensed as a Dade County master or journey-level burglar alarm specialty electrical contractor, Dade County master electrician, State of Florida alarm contractor, or State of Florida electrical contractor. An alarm business shall have a local business tax receipt issued by the city.

Alarm permit means a permit issued by the city allowing the operation of an alarm system within the city.

Alarm system means any assembly of equipment, mechanical or electrical, arranged to signal the occurrence of an illegal entry or other activity requiring urgent attention and to which the police department is expected to respond, but does not include alarms installed in conveyances or fire alarms.

Alarm user means the person, firm, partnership, association, corporation, company or organization of any kind in control of any building, structure or facility or portion thereof wherein an alarm system is maintained.

Automatic telephone dialing alarm system means the automatic dialing device or an automatic telephone dialing alarm system and shall include any system which, upon being activated, automatically transmits by telephone or telephone line to the Miami police department, a recorded message or code signal indicating a need for emergency response; or a system which, upon activation, connects to an answering service whose function it is to transmit to the Miami police department a need for emergency response.

False alarm means an alarm signal eliciting a response by police when a situation requiring a response by the police does not in fact exist; but this definition does not include an alarm signal caused by unusually violent conditions of nature nor does it include other extraordinary circumstances not reasonably subject to control by the alarm user.

Hearing officer means an employee of the city designated by the chief of police to act as an impartial arbitrator at hearings related to the enforcement of this article.
(Ord. No. 9203, § 1(2), 11-26-80; Ord. No. 10988, § 2, 6-11-92; Code 1980, § 3.5-22; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13676, § 2, 4-27-17)

Sec. 3-23. Alarm permits required; fee; renewal; enforcement provisions.

(a) It shall be unlawful for any person to operate an alarm system without a valid alarm user permit. Violation of this section shall be a misdemeanor of the second degree, punishable as provided for in F.S. ch. 775.

*__City Code cross reference__—Cable TV auxiliary service defined to include burglar alarm service, § 11-2.

__County Code cross references__—Automatic telephone dialing alarm system prohibited, § 8A-163; intrusion and burglary security generally, ch. 8C.

(b) Applications must be made to the City of Miami Alarm Unit which will issue permits to alarm users after payment of a $79.00 application fee.

(c) All alarm user permits will expire on September 30 of each year and must be renewed not later than October 1 of renewal year. Renewal permits will be issued after completion of an application form and the payment of a $79.00 renewal fee or a $26.50 renewal fee provided there have been no false alarms.

(d) Whenever the police respond to a location where no alarm permit has ever been issued or the alarm permit has expired for the alarm system generating a false alarm, a copy of section 3-23 entitled "Alarm permits required; fee; renewal; enforcement provisions," shall be sent to the alarm user along with written notification as follows:

(1) On nonpermitted accounts, a $79.00 renewal fee will be required, plus a $210.00 fine for a total of $289.00. There will be no police response to subsequent alarms until the fine and the permit fee are paid.

(2) A response to an alarm system where the permit has expired will result in a $79.00 renewal fee, plus a $157.50 fine for a total of $236.50. There will be no police response to subsequent alarms until the fine and the permit fee are paid.

(3) All expired permits will be charged a $26.50 late fee, plus a $79.00 renewal fee. All expired permits with no false alarms will require a $26.50 late fee, plus a $26.50 renewal fee.

(e) If a business has one or more alarm systems protecting two or more separate structures having different addresses, a separate permit will be required for each structure.

(f) To reinstate police service the alarm user must obtain a valid alarm permit pursuant to section 3-23(b) or (c) and pay all outstanding fines.

(g) Subsections (b) through (f) of this section shall not apply in those situations where alarm use permits have been revoked under section 3-29.

(Ord. No. 9203, § 1(3), 11-26-80; Ord. No. 10948, § 1, 2-13-92; Ord. No. 10988, §§ 1, 2, 6-11-92; Code 1980, § 3.5-23; Ord. No. 11424, § 1, 12-12-96; Ord. No. 13142, § 3, 2-11-10)

Sec. 3-24. Application for alarm permit; emergency notification and reporting service information.

(a) *Applications.* Applications for alarm permits shall be made on forms provided by the police department. The initial application shall be accompanied by a fee of $79.00. The application shall state the name, address and telephone number of the location where the alarm is installed. If the applicant's alarm is installed and serviced by an alarm company, then the alarm company must provide the city with their company name, address and telephone number and obtain the alarm user permit for the applicant prior to the installation of the alarm system. Noncompliance by the alarm company will incur a $262.50 fine. Each permit shall be valid until September of the renewal year. The permit will be valid for one year.

(b) *Emergency notification.* Each application shall list an emergency telephone number of the user or his/her representative to permit prompt notification of alarm calls and facilities assisting the police in the inspection of the property. Changes in emergency telephone numbers shall be kept current, and failure to provide updated information may constitute grounds for revocation of the permit.

(c) *Reporting service information.* Each holder of an alarm user permit shall immediately notify the police department in writing of any and all changes in the information on file with the city regarding such permit. Failure to do so shall constitute grounds for revocation of the permit.

(Ord. No. 9203, § 1(4), 11-26-80; Code 1980, § 3.5-24; Ord. No. 11424, § 1, 12-12-96; Ord. No. 13142, § 3, 2-11-10; Ord. No. 13676, § 2, 4-27-17)

Sec. 3-25. Issuance of permit decals.

A decal with the alarm user's permit number, name of business or residence owner's name, and permit address will be issued with the alarm user permit. This decal must be prominently posted on or near the front entrance to the premises so that the information provided on the decal is visible from the outside of the structure.
(Ord. No. 9203, § 1(5), 11-26-80; Code 1980, § 3.5-25)

Sec. 3-26. Necessary items for alarm systems to qualify for an alarm user permit.

(a) All alarm systems shall have a backup power supply that will become effective in the event of power failure or outage in the source of electricity from the utility company.

(b) All alarm systems will have an automatic reset which silences the annunciator within 30 minutes after activation and which will not sound again as a result of the same event that resulted in the original activation.
(Ord. No. 9203, § 1(6), 11-26-80; Code 1980, § 3.5-26)

Sec. 3-27. Response to alarm; determination of validity.

(a) Whenever an alarm is activated in the city, thereby requiring an emergency response to the location by the police department, and the police department does respond, a police officer on the scene of the activated alarm system shall inspect the area protected by the system and shall determine whether the emergency response was in fact required as indicated by the alarm system or whether in some way the alarm system malfunctioned and thereby activated a false alarm.

(b) If the police officer at the scene of the activated alarm system determines the alarm to be false, said officer shall cause a report to be generated of the false alarm. A notification shall be mailed or delivered to the alarm user, at the address of the said alarm system installation, advising the alarm user of the false alarm.

(c) The chief of police, or his/her designee, shall have the right to inspect any alarm system on the premises to which a response has been made and he/she may cause an inspection of such system to be made at any reasonable time thereafter to determine whether it is being used in conformity with the terms of this article.
(Ord. No. 9203, § 1(7), 11-26-80; Code 1980, § 3.5-27; Ord. No. 11424, § 1, 12-12-96; Ord. No. 13676, § 2, 4-27-17)

Sec. 3-28. Appeals.

(a) A hearing officer shall be appointed by the chief of police to hear appeals from alarm users on the issue of whether the alarm system in question activated a false alarm, as determined by a police officer at the scene of such activated alarm.

(b) Upon receipt of any false alarm report from the city, the alarm user shall have ten days, orally or in writing, to request a hearing before the said hearing officer.

(c) At the hearing, which must be scheduled and concluded within 15 days from the date the request for same is received, the alarm user shall have the right to present evidence and testimony.

(d) The hearing officer shall make written findings available to the alarm user and the chief of police within ten days from the date the hearing is concluded.

(e) A decision by the chief of police, or his/her designee, to uphold or to cancel the false alarm report which is the subject of the herein section must be made within ten days from the receipt of the above findings by the chief of police.

(f) Until all of the steps set forth in this section have been completed, the false alarm in question will be considered to have been genuine and will not be considered the basis for the prima facie presumption that the involved alarm system is malfunctioning.
(Ord. No. 9203, § 1(8), 11-26-80; Code 1980, § 3.5-28; Ord. No. 13676, § 2, 4-27-17)

Sec. 3-29. False alarm service charges; enforcement provisions.

(a) It is hereby found and determined that more than six false alarms within any permit year is excessive and constitutes a public nuisance.

(b) The activation of false alarms within a permit year will be handled according to the following escalating service fee schedule:

(1) The first and second false alarms will not be billed a service charge. The third false alarm will be billed a $52.50 service charge that shall be considered a bill owed by the alarm user to the city. Failure to make payment within 15 days of receipt of the bill shall result in a discontinuance of police response to alarms that may occur at the premises described in the alarm user's permit until payment is received. The fourth false alarm will be billed a $105.00 service charge and must be paid within 15 days of receipt or there will be no further police response. The fifth false alarm will be billed a $157.50 service charge and must be paid within 15 days of receipt or there will be no further police response. The sixth false alarm will be billed a $210.00 service charge and must be paid within 15 days of receipt or there will be no further police response.

(2) The seventh false alarm shall result in no police response and shall also result in revocation of the alarm user's permit in the following manner:

a. The alarm user shall be given ten days' advance written notification that the alarm user's permit will be revoked, which written notice shall set forth the reasons for such revocation.

b. The notice shall specify the specific date of revocation, and that the police department will discontinue responding to alarms that occur at the premises described in the revoked permit after the date of revocation.

c. False alarms occurring before the effective date of police response termination or while an appeal is pending pursuant to section 3-28 hereof, will continue to accumulate service charges which will be billed and handled in accordance with the provisions hereof.

d. Reinstatement of the permit and police service will be made upon receipt of a letter from an alarm company licensed in accordance with section 3-22 hereof [to the effect] that the alarm system is operating properly, that the permit holder has received alarm system user's retraining on how to properly operate the alarm system, and payment of a $157.50 reinstatement fee and all outstanding service charges.

(c) For the purposes of this section a permit year will extend from October 1 to September 30 of the following calendar year.
(Ord. No. 10988, §§ 1, 2, 6-11-92; Code 1980, § 3.5-29; Ord. No. 11424, § 1, 12-12-96; Ord. No. 13142, § 3, 2-11-10)

Sec. 3-30. Automatic telephone dialing alarm systems prohibited.

(a) It shall be unlawful for any person, natural or corporate, to sell, offer for sale, install, maintain, lease, operate or assist in the operation of an automatic telephone dialing alarm system over any telephone lines exclusively used by the public to directly request emergency service from the Miami police department.

(b) The chief of police, or his/her designee, when he/she has knowledge of the unlawful maintenance of an automatic telephone dialing alarm system, installed or operated in violation of subsection (a) of this section, shall, in writing, order the owner, operator or lessee to disconnect and cease operation of the system within 72 hours of receipt of the order.

(c) Any automatic telephone dialing system installed unlawfully, as set forth in subsection (a) hereof prior to the effective date of this article

January 1, 1981, shall be removed within 30 days of the order as contained in subsection (b) hereof.
(Ord. No. 9203, § 1(10), 11-26-80; Code 1980, § 3.5-30; Ord. No. 13676, § 2, 4-27-17)

Secs. 3-31—3-55. Reserved.

ARTICLE III. FIRE ALARMS

Sec. 3-56. Definitions.

Unless it is apparent from the context that another meaning is intended, the following words when used in this article shall have the following meanings:

Alarm system means any assembly of personnel or equipment, mechanical or electrical, so arranged to signal the occurrence of a possible fire requiring urgent attention, and to which the fire-rescue department is expected to respond, but does not include either alarms installed in conveyance or burglar alarms.

Alarm user means the person, firm, partnership, association, corporation, company organization of any kind in control of any building, structure or facility or portion thereof wherein an alarm system is maintained.

Automatic telephone dialing alarm system means an automatic dialing device or an automatic telephone dialing alarm system and shall include any system which, upon being activated, automatically transmits, by telephone or telephone line to the city fire-rescue department, a recorded message or code signal indicating a need for emergency response; the term also means a system which, upon activation, automatically connects with an answering service whose function it is to transmit to said department a need for emergency response.

Certified fire alarm company means fire alarm specialty electrical contractors or electrical contractors certified by the county or by the state, or individuals who are so certified.

False alarm means an electrical signal eliciting a response by the fire-rescue department when a situation requiring a response by the fire-rescue department does not in fact exist.

Hearing officer means an employee of the city designated by the city manager to act as an impartial arbitrator at hearings related to the enforcement of this article.
(Ord. No. 10073, § 1, 1-23-86; Code 1980, § 3.5-41)

Sec. 3-57. Response to alarm; determination of validity.

(a) Whenever an alarm system is activated, thereby requiring an emergency response to a location in the city by the fire-rescue department, and said department does respond, the fire officer in charge on the scene at said location shall inspect the area protected by the system and shall determine whether the emergency response was in fact required as indicated by the alarm system or whether the alarm system malfunctioned and thereby activated a false alarm.

(b) If the fire officer at the location of the activated alarm system determines the alarm to be false, said officer shall make a report of the false alarm, a notification of which shall be mailed or delivered to the alarm user, at the address of the said alarm installation location, advising the alarm user of the false alarm. A copy of this article shall also be included with the false alarm notification to the user.

(c) The director of the fire-rescue department, or designee thereof, shall have the right to inspect any alarm system on the premises to which a response has been made, and he/she may cause an inspection of such system to be made at any reasonable time thereafter to determine whether it is being used in conformity with the terms of this article.
(Ord. No. 10073, § 2, 1-23-86; Code 1980, § 3.5-42; Ord. No. 13676, § 2, 4-27-17)

Sec. 3-58. Appeals.

(a) A hearing officer shall be appointed by the city manager to hear appeals from alarm users on the issue of whether the alarm system in question activated a false alarm, as initially determined by a fire officer after his/her inspection at the location of a response to such activated alarm.

(b) Upon receipt of any false alarm report from the city, the alarm user shall have ten days, orally or in writing to request a hearing before the said hearing officer; if the request is in writing, said writing is to be mailed or delivered to the fire prevention bureau, 444 SW 2nd Avenue, 10th Floor.

(c) At the hearing, which must be scheduled within 15 days from the date the request for same is received, the alarm user shall have the right to present evidence and testimony.

(d) The hearing officer shall make written findings available to the alarm user, and to the chief of the fire prevention bureau, within ten days from the date the hearing is concluded.

(e) A decision by said bureau chief, or his/her designee, to uphold or to cancel the false alarm report which is the subject of the hearing, shall be made within ten days, from the receipt of the above findings by said bureau chief or designee.

(f) Pending completion of all of the steps set forth in this section, each fire alarm in question will be presumed to have been genuine.
(Ord. No. 10073, § 3, 1-23-86; Code 1980, § 3.5-43; Ord. No. 13196, § 2, 9-27-10; Ord. No. 13676, § 2, 4-27-17)

Sec. 3-59. Fee assessment for false alarms.

Notwithstanding references in this section to false alarms being activated within a period of 12 consecutive months, there shall be a six-month grace period following the issuance of an initial or temporary certificate of occupancy by the department of fire-rescue. Computation of the period of 12 consecutive months shall not include this initial grace period in order to permit the correction or adjustment of a newly installed alarm system in a building which has just been constructed. Following the completed installation of a new alarm system in a previously constructed building, there likewise shall be a six-month grace period commencing on the date such newly completed installation, after inspection by the department of fire-rescue, receives final approval of said department.

(1) It is hereby found and determined that more than two false alarms within a period of 12 consecutive months is excessive and constitutes a public nuisance and creates a prima facie presumption that the involved alarm system is malfunctioning.

(2) The activation of three or more false alarms in a period of 12 consecutive months will result in the following:

a. The third and fourth false alarms shall result in a charge of $250.00 per incident. This fee shall be payable to the city upon receipt of said invoice by the alarm user. The alarm user shall submit, within 30 days from the invoice date is mailed to the alarm user, a letter from a certified fire alarm company to the fire prevention bureau, certifying the alarm system is operating properly.

b. The fifth and any subsequent false alarm after that shall result in a charge of $500.00 per incident. This fee shall be payable to the city upon receipt of said invoice by the alarm user. The alarm user shall also submit, within 30 days from the date the herein charge invoice is mailed to the alarm user, a letter from a certified fire alarm company to the fire prevention bureau, certifying that the alarm system is operating properly. The alarm user will also be given written notice that the occurrence of another false alarm may be cause for revocation of any certificate of occupancy issued in connection with said building.

c. If there is a sixth or subsequent false alarm, the certificate of occupancy may be revoked unless an inspection of the alarm system by a fire prevention bureau representative, and a certified fire alarm company representative results in the finding by the chief of the fire prevention bureau that the alarm system is working properly.

(Ord. No. 10073, § 4, 1-23-86; Code 1980, § 3.5-44; Ord. No. 13142, § 3, 2-11-10; Ord. No. 13196, § 2, 9-27-10)

Sec. 3-60. Automatic telephone dialing alarm systems prohibited.

(a) It shall be unlawful for any person, natural or corporate, to sell, offer for sale, install, maintain, lease, operate or assist in the operation of an automatic telephone dialing alarm system over any telephone lines exclusively used by the public to directly request emergency service from the department of fire-rescue.

(b) The director of said department or his/her designee, when he/she has knowledge of the installation or operation of an automatic telephone dialing alarm system installed or operated in violation of subsection (a) of this section shall, in writing, order the alarm user to disconnect and cease operation of said system within 72 hours after service of the order, said service to be effected pursuant to chapter 19 of this Code.
(Ord. No. 10073, § 5, 1-23-86; Code 1980, § 3.5-45; Ord. No. 13676, § 2, 4-27-17)

Chapter 4

ALCOHOLIC BEVERAGES*

Sec. 4-1.	Consumption restricted.
Sec. 4-2.	Definitions.
Sec. 4-3.	Hours during which sales allowed; permits and public hearing required.
Sec. 4-4.	Distance separation.
Sec. 4-5.	Specialty districts.
Sec. 4-6.	Entertainment districts.
Sec. 4-7.	Permits and public hearings.
Sec. 4-8.	Certificate of use.
Sec. 4-9.	Employees not to mingle with customers.
Sec. 4-10.	Prohibiting sales, etc., during emergency.
Sec. 4-11.	Nightclub.
Sec. 4-12.	Violation of state law.
Sec. 4-13.	Enforcement.
Sec. 4-14.	Duty to report violations of chapter and law.

*__Editor's note—__Ord. No. 13734, §§ 2, 3, adopted January 25, 2018, repealed and reenacted chapter 4 in its entirety to read as herein set out. Formerly, chapter 4, articles I, II, pertained to similar subject matter. See the Code Comparative Table for a complete derivation.

__Case law references—__Any provisions of this chapter which attempt to exercise any power over those who obtain state or city licenses to engage in the businesses defined in F.S. chs. 561 and 562 are void, except those provisions which regulate the hours of business, regulate the location of the places of business and prescribe sanitary regulations for such places of business. City of Miami v. Kinchinko, 156 Fla. 128, 22 So. 2d 627; City of Miami v. State, 158 Fla. 56, 27 So. 2d 829.

City may regulate other phases of alcoholic beverage control which have not been preempted by state statutes. Nelson v. State, 157 Fla. 412, 26 So. 2d 60.

__City Code cross references—__Service to female employees of dancehalls, ballrooms, §§ 5-42, 5-43; minors prohibited in dancehalls and ballrooms when alcoholic beverages sold, § 5-46; possession and consumption of alcoholic beverages in city parks, § 38-69; special event wine/beer permit in city parks, § 38-70; consumption of alcoholic beverages on city marina premises, § 50-229; alcoholic and intoxicating beverages in Orange Bowl Stadium, § 53-87.

__State law references—__Liquors and beverages generally, F.S. § 561.01 et seq.; municipal taxation of alcoholic beverages prohibited, F.S. § 561.342(3); authority of municipality to regulate hours of sale, location of business, etc., F.S. §§ 562.14(1), 562.45(2); sales of malt beverages for off-premises consumption not subject to municipal zoning, F.S. § 563.02(1)(a).

Sec. 4-1. Consumption restricted.

Consuming alcoholic beverages on the public streets, in vacant lots, or in places solely licensed to vend alcoholic beverages for consumption off the premises is unlawful and strictly prohibited.

The city manager may declare an exemption from the prohibition of consuming alcoholic beverages as stated herein and declare the prohibitions inapplicable on special occasions. Such special occasions shall require a special event permit or temporary use permit, as applicable, with any associated notice and fees that may be required.
(Ord. No. 13734, § 3, 1-25-18)

Sec. 4-2. Definitions.

(a) For the purposes of this section, the following words and phrases shall have the meanings ascribed to them.

Alcoholic beverages means beer, wine, liquor, and any other beverage as defined in and regulated by Title XXXIV of the Florida Statutes, as amended.

Alcohol service establishment means any establishment that sells or offers for sale alcoholic beverages for consumption on the premises as a principal use. Alcohol service establishments may include, but are not limited to, bars, taverns, cocktail lounges, nightclubs, supper clubs, and microbreweries. Food service establishments where the sale of food is the primary use are excluded from the definition of alcohol service establishment.

Ancillary use means any use which is not the primary use of the establishment.

Bottle club means an establishment with a valid "bottle club" license issued by the state and where alcoholic beverages are not sold but where patrons are allowed to consume alcoholic beverages on the premises.

Cafe means an establishment in which coffee and light meals are served along with the sale of beer or wine for consumption on the premises and that may seat fewer than 20 patrons pursuant to a valid license issued by the state in connection with the operation of said food service establishment. Cafes must derive at least 60 percent of its gross food and beverage revenue from the sale of food and non-alcoholic beverages during the first 60-day operating period and each six-month operating period thereafter. Cafes may include, but are not limited to, Cafes, coffee shops, sandwich shops, and cafeterias. Cafes shall not sell alcoholic beverages after the hours of serving or consumption of food have elapsed.

Convenience store means a retail business opened primarily for the sale of products other than beer or wine and which may sell beer or wine in sealed containers only for consumption off premises. Grocery stores are considered to be convenience stores for purposes of this chapter.

Districts—Industrial. The following transect zones shall be considered districts—industrial for purposes of this chapter: D1, D2, and D3.

Districts—Mixed-use. The following transect zones shall be considered districts—mixed-use for purposes of this chapter: T4-L, T4-O, T5-L, T5-O, T6-L, T6-O, and CI-HD.

Districts—Residential. The following transect zones shall be considered districts—residential for purposes of this chapter: T3-R, T3-L, T3-O, T4-R, T5-R, and T6-R.

Entertainment district means a district within the Urban Central Business District ("UCBD") of the city which allows a high concentration of specialized entertainment alcohol service establishments.

Liquor package store means an establishment licensed by the state to sell alcoholic beverages in sealed containers only for consumption off the premises. Consumption on the premises is strictly prohibited.

Miami 21 Code means the zoning ordinance of the City of Miami, Florida, as amended.

Nightclub means an alcoholic service establishment where such business serves as a place of entertainment open at night providing music and space for dancing and often having a floor show. A nightclub shall provide floor space of at least 400 square feet located in one unit and on the same floor, suitably prepared for dancing,

free from tables, chairs, or other obstructions at all times, and generally exceeds 5,000 square feet of total gross floor area.

Pattern of racketeering activity means engaging in at least two incidents of racketeering conduct that have the same or similar intents, results, accomplices, victims, or methods of commission or that otherwise are interrelated by distinguishing characteristics and are not isolated incidents, provided that the last of such incidents occurred within five years after a prior incident of racketeering conduct.

Private club means a non-profit establishment whose character is that of a fraternal or social nature and that sells or offers to sell alcoholic beverages by the drink for consumption on the premises pursuant to a valid license issued by the state.

Racketeering activity means to commit, to attempt to commit, to conspire to commit, or to solicit, coerce, or intimidate another person to commit a violation of this chapter or a violation of F.S. ch. 562, relating to alcoholic beverages.

Restaurant means a food service establishment that meets all of the following requirements:

(1) Derives at least 51 percent of its gross food and beverage revenue from the sale of food and non-alcoholic beverages during the first 60-day operating period and each 12-month operating period thereafter;

(2) Licensed by the state's division of hotels and restaurants;

(3) Sells or offers for sale alcoholic beverages for consumption on the premises pursuant to a valid license issued by the state permitting such activity;

(4) Equipped to seat at least 20 patrons at one time; and

(5) Does not sell alcoholic beverages after the hours of serving or consumption of food have elapsed.

Retail specialty center means aa mixed-use development with a minimum of 50,000 square feet of net leasable area made up of a retail mixture of general commercial establishments and Restaurants. In addition to the above, the following are required:

(1) At least one of the following types of uses: lodging, residential, assembly hall, or office use;

(2) A unified plan of development which shall include, but not be limited to, plans providing for the different uses in the development to be physically integrated through direct access from one to the other;

(3) Parking provided by an on-site enclosed garage; and

(4) All project uses under common management.

Sale and *sell* means any transfer of an alcoholic beverage for consideration; any gift of an alcoholic beverage in connection with, or as a part of, a transfer of property other than an alcoholic beverage for a consideration; or the service of an alcoholic beverage pursuant to any license issued by the state pursuant to Florida Statutes.

Schools mean any elementary school, middle school, or secondary school.

Shopfront means a frontage of a building that is aligned close to the frontage line with the building entrance opening to the sidewalk or street.

Specialty district means a district within a unique and distinctive neighborhood in the city which allows a high concentration of alcohol service establishments.

Waterfront specialty center means a building or buildings with adjacent on-site parking spaces, under common ownership or common management, abutting or linked to a navigable water body, having a unified commercial plan of development, with a minimum of 50,000 square feet of leasable area, and containing a mixture of restaurants, entertainment facilities, and general commercial establishments.

(b) None of the preceding provisions shall be deemed to modify, repeal, amend, or supersede any of the provisions in the Miami 21 Code. (Ord. No. 13734, § 3, 1-25-18; Ord. No. 13995, § 2, 5-13-21)

Sec. 4-3. Hours during which sales allowed; permits and public hearing required.

(a) It shall be unlawful to sell, serve, offer to sell, allow to consume, or deliver any alcoholic beverage to any person, except during the following hours:

Establishment Type	*Hours of Operation*	*Notes*
Alcohol Service Establishment	Mon—Sat: 11:00 a.m.—3:00 a.m. Sun: 12:00 noon—3:00 a.m. Nightclub: 7:00 p.m.—3:00 a.m.	Extension of hours to 5:00 a.m. allowed by exception as outlined in section 4-7. Extension of hours to 5:00 a.m. allowed by right if located within the UCBD, Omni CRA, Central Design District, or Southeast Overtown/Park West CRA. Consumption on premises.
Bottle Club	Mon—Sun: 11:00 a.m.—3:00 a.m.	Consumption on premises.
Liquor Package Store	Mon—Sat: 9:00 a.m.—12:00 midnight. Sun: 9:00 a.m.—7:00 p.m.	Hours automatically extended to 10:00 p.m. on Sundays in December. Consumption off premises.
Convenience Store	Mon—Sun: 11:00 a.m.—10:00 p.m.	Convenience stores with a gross floor area that exceeds 10,000 square feet and/or that are ancillary uses to the sale of gasoline may sell beer or wine in sealed containers for consumption off the premises during such hours as the stores legally remain open for the sale of other goods. Consumption off premises.
Lodging (Ancillary Use)	Mon—Sun: 7:00 a.m.—3:00 a.m.	Consumption on premises.
Private Club	Mon—Sun: 7:00 a.m.—3:00 a.m.	Consumption on premises.
Restaurant	Mon—Sun: 7:00 a.m.—3:00 a.m.	Consumption on premises.
Cafe	Mon—Sun: 11:00 a.m.—10:00 p.m.	Consumption on premises.
Other Establishments	Mon—Sun: 7:00 a.m.—3:00 a.m.	Consumption on premises.

*Closing hours may be modified by sections 4-5 and 4-6 of this chapter.

(b) The city commission may extend the hours of sale for any alcohol service establishment for consumption on or off the premises on special occasions by resolution. The city manager shall have the authority to waive, until 12:00 a.m., alcohol consumption for events held in establishments or on private property where such consumption is required to end prior to and those same events shall have the ability to seek waiver from the city commission, by resolution, until 3:00 a.m.

(c) In the Coconut Grove Central Commercial District, the hours of sale for alcoholic service establishments are weekdays, including Saturday, from 11:00 a.m. to 3:00 a.m. on the following day and on Sunday, from 12:00 noon to 3:00 a.m. on the following day. The boundaries for the Coconut Grove Central Commercial District are set forth in Exhibit "P".
(Ord. No. 13734, § 3, 1-25-18; Ord. No. 14256, § 2, 2-8-24)

Sec. 4-4. Distance separation.

(a) For alcohol service establishments, liquor package stores, and bottle clubs. For purposes of this chapter, any distancing requirements set forth shall be measured from the front door of a licensed establishment to the front door of a proposed establishment with the same license type along the route of ordinary pedestrian traffic.

(b) From alcohol service establishments, liquor package stores, and bottle clubs to districts—residential, religious facilities, or schools. For purposes of this chapter, any distancing requirements set forth shall be measured from the front door of a licensed establishment to the nearest point on a parcel of land along the route of ordinary pedestrian traffic.

(c) Distance separation within the city's boundaries in districts—mixed-use and districts—industrial for licensed establishments under the laws of the state that allow for the consumption or sale of liquor on or off the premises and/or beer or wine for consumption on the premises shall be a minimum of 1,500 feet from a license of the same type.

(d) The specified districts as set forth below are subject to the following modifications to distancing and use requirements for alcohol service establishments only:

District	*Minimum Distance*	*Notes*
UCBD Exhibit "A"	500 feet	Restaurants and cafes are allowed by right. Alcohol service establishments are allowed by right in T6 transect zones.
Central Design District Exhibit "B"	500 feet	Restaurants and cafes are allowed by right.
Midtown Exhibit "C"	1,500 feet	Alcohol service establishments are allowed by right.
Omni CRA Exhibit "D"	1,500 feet unless within the UCBD where 500 feet shall apply	Alcohol service establishments are allowed by right in T6 transect zones.
Southeast Overtown/Park West CRA Exhibit "E"	1,500 feet unless within the UCBD where 500 feet shall apply	Alcohol service establishments are allowed by right in T6 transect zones.

(e) Existing establishments requiring distance requirements as set forth above may be moved to a distance not greater than 300 feet from the original location by right. If the alcohol service establishment prior to being moved is legal nonconforming to the provisions set forth under the section

identifying distancing requirements from specified uses to a school or a religious facility, the proposed location shall be located at a greater distance from a school or religious facility than the previous location of the alcohol service establishment.

(f) Distancing requirements from specified uses.

Specified Use	*Minimum Distance*	*Notes*
District—Residential	500 feet	Unless so constructed, arranged, or controlled as to prevent the emission of sounds, vibration, and odors. For consumption on premises only.
Religious facilities in UCBD*	300 feet	Does not apply to any licensed alcohol service establishment that precedes the establishment of a religious facility.
Schools in UCBD*	300 feet	Does not apply to any licensed alcohol service establishment that precedes the establishment of a school.
Religious facilities in districts—mixed-use* and districts—industrial*	300 feet	Does not apply to any licensed alcohol service establishment that precedes the establishment of a religious facility.
Schools in districts—mixed-use* and districts—industrial*	1,000 feet	Does not apply to any licensed alcohol service establishment that precedes the establishment of a school.

* Distance requirements may be modified by sections 4-5 and 4-6 of this chapter.

(g) Reductions in distance set forth above for consumption on premises establishments may be reduced by up to 50 percent by exception issued by the planning, zoning and appeals board ("PZAB") with approval by the city commission pursuant to criteria set forth in section 4-10 of this chapter and the requirements of the Miami 21 Code.

(h) The requirements as to distance limitations set forth above shall not apply to the following specified uses nor shall establishments meeting the following requirements count as distance impacts to other establishments:

Specified Use	*Notes*
Restaurants	• Restaurants that meet the state requirement for the issuance of a 4COP SFS license. A restaurant meeting the requirements of a 4COP SFS license may substitute said license with a 4COP quota license. • Restaurants not meeting the requirements set forth above shall be allowed the allocation of a 4COP quota license by warrant. • Restaurants with a 2COP license. • Restaurants shall have no signs advertising the sale of alcoholic beverages visible from the exterior. • Restaurants shall always be subject to audit and inspection by the city for the purpose of determining that such establishments are complying with the requirements set forth in this Code.
Cafes	• Cafes shall be allowed the use of a 2COP license by warrant. • Cafes shall always be subject to audit and inspection by the city for the purpose of determining that such establishments are complying with the requirements set forth in this Code.

Specified Use	*Notes*
Residential or Mixed-Use Buildings	• For mixed-use buildings with 100—299 dwelling units, one alcohol service establishment is allowed by exception. • For mixed-use buildings with 300—399 dwelling units, one alcohol service establishment is allowed by right and one additional alcohol service establishment is allowed by exception. • For mixed-use buildings with 400 or more dwelling units, two alcohol service establishments are allowed by right and one additional alcohol service establishment is allowed by exception. • Alcohol service establishments with shopfronts are not exempt from distance separation requirements.
Lodging	• One alcohol service establishment per 50 or more guestrooms or historic structures with one or more rooms as provided by Florida Statutes. • Alcohol service establishments with shopfronts not exempt from distance separation requirements.
Office or Work/Live	• One alcohol service establishment per 60,000 square feet devoted to and maintained for office space. • Alcohol service establishments with shopfronts are not exempt from distance requirements.
Private Clubs	• Must be chartered in the county for not less than three months.
Waterfront Specialty Center	• Must be located on city-owned property. • Allowed by exception with city commission approval. • Within any one waterfront specialty center, not more than 50 percent of the waterfront specialty center's establishments shall be issued certificates of use or temporary certificates of use as an alcohol service establishment. • If a waterfront specialty center is located within a specialty district or entertainment district, the alcohol service establishments within the waterfront specialty center shall not be counted against the total number of alcohol service establishments allowed within the specialty district or entertainment district.
Retail Specialty Center	• Shall not exceed one alcohol service establishment per 20,000 gross square feet of the retail component. • Shall not exceed five total alcohol service establishments. • If a retail specialty center is located within a specialty district or entertainment district, the alcohol service establishments within the retail specialty center shall not be counted against the total number of alcohol service establishments allowed within the specialty district or entertainment district. • One security guard per 100 seats when alcoholic beverages are served for consumption on the premises is required. • Retail specialty centers are designated by development agreement approved by the city commission or by determination of the zoning administrator as to the requirements set forth in section 4-2 of this chapter.

Specified Use	*Notes*
Special Uses for which special Alcoholic Beverage Licenses are issued by the State but for which Uses are not otherwise addressed herein	• Must meet state requirements for the corresponding license type. • Allowed as an ancillary use to the respective principal use with an active certificate of use or temporary certificate of use. • Including, but not limited to, the following state licenses: H, HBX, SBX, SPX, SAL, SCX, SCC, SA, IX, X, SL, PVP, 11-PA-C, 11PA-P, FEX, SWP, 11C, 11CG, 11CGPC, 13CT.

(Ord. No. 13734, § 3, 1-25-18)

Sec. 4-5. Specialty districts.

The restrictions as to distances between alcohol service establishments herein shall not be applicable within a specialty district as defined in section 4-2 of the City Code as designated by the city commission and pursuant to F.S. § 562.45(2)(a). Location of alcohol service establishments within a specialty district shall not be utilized when calculating distance requirements of religious facilities and alcohol service establishments located outside the specialty district, whether existing or new. The following specialty districts within the city are described below:

Specialty District	*Permit and Cap*	*Hours of Closing*	*Notes*
8th Street Exhibit "F"	Warrant No Cap	3:00 a.m.	• Shall not be located less than 500 feet from a school. • Shall not be located less than 300 feet from a religious facility.
Liberty City Exhibit "G"	Warrant 30 Total	3:00 a.m.	• Shall be closed during school hours. • Shall not be located less than 300 feet from a school. • Shall have no distance separation requirements from a religious facility.
Little Haiti Exhibit "H"	Warrant 20 Total	3:00 a.m.	• Shall be closed during school hours. • Shall not be located less than 300 feet from a school. • Shall have no distance separation requirements from a religious facility.
Orange Bowl Exhibit "I"	Warrant 8 Total	3:00 a.m.	• Shall not be located less than 1,000 feet from a school. • Extension of hours to 5:00 a.m. allowed by exception as outlined in section 4-7.
Wynwood Cafe Exhibit "J"	Warrant No Cap	3:00 a.m.	• Shall be closed during school hours. • Shall not be located less than 500 feet from a school. • Shall not be located less than 500 feet between other alcohol service establishments.
Flagler Exhibit "R"	By Right No Cap	5:00 a.m.	• Shall have no distance separation requirements from a School or religious facility.
Miami Riverside Exhibit "S"	Warrant 7 Total	5:00 a.m.	• Shall be closed during school hours.

(Ord. No. 13734, § 3, 1-25-18; Ord. No. 13886, § 2, 12-12-19)

Sec. 4-6. Entertainment districts.

The restrictions as to distances between alcohol service establishments herein shall not be applicable within entertainment districts as defined in section 4-2 of the City Code and as designated by the city commission. Location of alcohol service establishments within entertainment districts shall not be utilized when calculating distance requirements of religious facilities and alcohol service establishments located outside the entertainment district, whether existing or new. The following entertainment districts within the city are described below:

Entertainment District	*Permit and Cap*	*Hours of Closing*	*Notes*
Brickell Village Exhibit "K"	Warrant 6 Total	5:00 a.m.	• Shall not be located less than 300 feet from a religious facility or a school.
Brickell Riverside Exhibit "L"	Warrant 5 Total	5:00 a.m.	• Shall not be located less than 300 feet from a religious facility or a school.
Park West Exhibit "M"	Warrant 11 Total	N/A	• Shall not be located less than 300 feet from a religious facility or a school.
Media Exhibit "N"	Warrant 7 Total	5:00 a.m.	• Shall not be located less than 300 feet from a religious facility or a school.
Overtown Exhibit "O"	Warrant 12 Total	5:00 a.m.	• Shall not be located less than 300 feet from a school.

(Ord. No. 13734, § 3, 1-25-18; Ord. No. 14222, § 2, 10-26-23)

Sec. 4-7. Permits and public hearings.

(a) *Alcohol reservation.* Any applicant who wishes to open an alcohol service establishment within the city may submit an alcohol reservation letter request identifying the proposed location to the office of zoning for analysis along with a distance survey from a licensed and certified surveyor which addresses all distancing requirements from the proposed location within this chapter if necessary to establish the use and provide payment of $200.00 for processing. If the requirements as set forth in this chapter are met, an alcohol reservation letter may be issued by the zoning administrator. Said alcohol reservation letter shall be valid for three months from the date of issuance with the possibility of one-year extensions if the zoning administrator is presented with active building permits, submission of a warrant application, lease agreement, or any other documentation which the zoning administrator deems to be evidence of reasonable progress in acquiring a certificate of use for an alcohol service establishment at the proposed location. Each extension requires a letter of intent, the proposed evidence of reasonable progress, and $200.00 for processing. The alcohol reservation letter will reserve the location during the approved amount of time from encroachment of newly-proposed alcohol service establishments, religious facilities, or schools until the acquisition of a certificate of use from the office of zoning.

(b) *Warrant.* Where denoted in this chapter as necessary for approval, the property owner/applicant shall obtain a warrant as specified in the Miami 21 Code. In reviewing a warrant application, the director of planning shall apply the following supplemental review criteria in

addition to the standard criteria for warrants as specified in Article 4, Table 12 of the Miami 21 Code:

(1) Operational plan. An operational/business plan that addresses hours of operation, number of employees, menu items, business goals, and other operational characteristics pertinent to the application.

(2) Parking. Regardless of parking requirements specified in the Miami 21 Code, adaptive re-use of existing buildings for the use requested in the warrant shall not require any additional parking; however, new buildings utilizing this exemption shall be required to provide a parking plan which fully describes where and how the parking is to be provided and utilized, e.g., valet, self-park, shared parking, after-hour metered spaces, and the manner in which the parking is to be managed. By a separate warrant (in addition to the warrant required for the subject alcohol service establishment), 100 percent of the required parking may be located offsite within a distance of 600 feet from the subject alcohol service establishment if the proposed parking is to be "self-park" and a distance of 1,000 feet from the subject alcohol service establishment if the proposed parking is to be by "valet".

(3) For alcohol service establishments proposing capacities over 300 persons, an indoor/outdoor crowd control plan that addresses how large groups of people waiting to gain entry into the alcohol service establishment and already on the premises will be controlled.

(4) A security plan for the alcohol service establishment and any parking facility.

(5) For alcohol service establishments proposing capacities over 300 persons, a traffic circulation analysis and plan that details the impact of projected traffic on the immediate neighborhood and how this impact is to be mitigated.

(6) A sanitation plan which addresses on-site facilities as well as off-premises issues resulting from the operation of the alcohol service establishment.

(7) A plan depicting proximity of the proposed alcohol service establishment to districts—residential.

(8) If the proposed alcohol service establishment is within 200 feet of any residential use, a noise attenuation plan that addresses how noise will be controlled shall be required.

(c) *Exception.* Pursuant to the Miami 21 Code, all alcohol service establishments that require an exception shall be subject to approval by the PZAB, and when required, final approval by city commission. Alcohol service establishments requesting extensions of hours of operations or variance from distance requirements shall only be permitted by process of exception with final approval by the city commission.

In determining the appropriateness of such request, the PZAB and the city commission, as applicable, shall take into consideration the recommendation of the department of planning based on the following materials to be submitted by the applicant as criteria as well as the criteria listed in the Miami 21 Code:

(1) An operational/business plan that addresses hours of operation, number of employees, menu items, business goals, and other operational characteristics pertinent to the application.

(2) A parking plan which fully describes where and how the parking is to be provided and utilized, e.g., valet, self-park, shared parking, after-hour metered spaces, and the manner in which the parking is to be managed. The city commission or the PZAB, as applicable, may grant approval for 100 percent of the required parking to be located offsite within a distance of 600 feet from the subject alcohol service establishment if the proposed parking is to be "self-park"

and a distance of 1,000 feet from the subject alcohol service establishment if the proposed parking is to be by "valet."

(3) For alcohol service establishments proposing capacities over 300 persons, an indoor/outdoor crowd control plan that addresses how large groups of people waiting to gain entry into the alcohol service establishment and already on the premises will be controlled.

(4) A security plan for the alcohol service establishment and any parking facility.

(5) For alcohol service establishments proposing capacities over 300 persons, a traffic study and traffic circulation analysis and plan that details the impact of projected traffic on the immediate neighborhood and how this impact is to be mitigated.

(6) A sanitation plan which addresses on-site facilities as well as off-premises issues resulting from the operation of the alcohol service establishment.

(7) Proximity of the proposed alcohol service establishment to districts—residential.

(8) If the proposed alcohol service establishment is within 200 feet of any residential use, a noise attenuation plan that addresses how noise will be controlled shall be required, especially in the case of indoor/outdoor uses.

(Ord. No. 13734, § 3, 1-25-18)

Sec. 4-8. Certificate of use.

In addition to the requirements under chapter 2 of the City Code and Article 7 of the Miami 21 Code, if upon request by the city proof of an alcohol license issued by the state is not submitted to the city's zoning administrator within 60 days of the request, the alcohol service establishment's certificate of use, temporary certificate of use, and any approvals obtained under chapter 4 of the City Code or the Miami 21 Code may be revoked by the zoning administrator.

If it is found that an alcohol service establishment is in violation of any laws regarding health, safety, and welfare including but not limited to building codes, fire codes, the Miami 21 Code, or any health department regulations, the certificate of use or temporary certificate of use shall be suspended for a period of 30 days to allow the alcohol service establishment to come into compliance. If the alcohol service establishment fails to come into compliance within 30 days, the certificate of use or temporary certificate of use shall be revoked.

(Ord. No. 13734, § 3, 1-25-18)

Sec. 4-9. Employees not to mingle with customers.

It shall be unlawful for employees or entertainers in places dispensing alcoholic beverages for consumption on the premises to mingle or fraternize with the customers or patrons of such alcohol service establishment.

(Ord. No. 13734, § 3, 1-25-18)

Sec. 4-10. Prohibiting sales, etc., during emergency.

Whenever in the opinion and judgment of the Mayor, a public emergency shall be created or exist in the city causing or tending to cause public disorder, lawbreaking, and confusion, the city manager is hereby authorized and empowered to prohibit by and through the issuance of his official decree the sale, serving, or consumption of alcoholic beverages for and during a period of 24 hours or such longer period of time as may be described in such decree at all commercial establishments and at all other places in the city where alcoholic beverages are licensed to be sold, served, or otherwise dispensed. In the issuance of such decree, the city manager shall have the fact of the issuance and the contents of such decree broadcast by law enforcement communication device and by commercial radio stations and otherwise given publicity as quickly and as widely as shall be feasible. It is hereby declared to be illegal for any person operating, employed at, or otherwise controlling any of the establishments or other places described in this section to sell, serve, or permit the consumption on the premises of alcoholic beverages during the period described in the decree of the city manager provided for in this section. Each violation of or

noncompliance with any of the provisions of this section shall constitute a separate offense and shall subject every person guilty thereof to the penalty prescribed in section 1-13 of the City Code.
(Ord. No. 13734, § 3, 1-25-18)

Sec. 4-11. Nightclub.

The additional regulations set forth below shall be applicable to all alcoholic service establishments that have been designated as nightclubs.

(1) It shall be unlawful for any person to refuse or prevent or attempt to prevent reasonable inspection of any portion of any nightclub premises by any city official during any hour in which a nightclub is open for business.

(2) A nightclub business tax receipt issued by the city manager's designee is required in addition to any other requirement to qualify that the applicant is of good moral character. In making such determination, the applicant shall present to the city manager's designee the following qualifications:

a. *Certificate of use.* Issued by the office of zoning.

b. *State licensure.* Issued by the Florida Department of Business and Professional Regulation, Division of Alcoholic Beverages and Tobacco.

c. *Business tax receipt history.* Whether such applicant in previously operating in this or another state under a business tax receipt has had such business tax receipt revoked or suspended, and the reasons therefor.

d. *General personal history.* Such other facts relevant to the general personal history of the applicant as necessary to make a fair determination of the eligibility of the applicant.

(3) Nonrenewal for certain convictions during a preceding year.

a. No nightclub business tax receipt shall be issued, renewed, or allowed a business name change at any time during a business tax receipt year at the location of any nightclub that previously possessed a nightclub business tax receipt when the holder or any managing agent or employee of the holder of a nightclub business tax receipt at such location has been convicted of a violation of this chapter or the alcoholic beverage laws of the state during the then-current business tax year or during a one-year period to any application request therefor or during the city's tax year immediately preceding such new licensing year.

b. A designation of the conviction relied upon by the city under the foregoing paragraph may be obtained at or before the start of the business tax year or prior to the date such business tax receipt is sought by request made to the city manager or designee.

c. Any person subject to the foregoing provision may request and obtain a hearing before the city commission. After a public hearing, the city commission may authorize or deny the issuance or renewal of new nightclub business tax receipt to such person or grant or refuse the request for a change of name on a nightclub business tax receipt providing any applicable provision of section 31-35 is fulfilled relative to such request. A holder of a nightclub business tax receipt for the year preceding the new business tax year, subject to the provisions of this section, shall not be considered to be operating without a current nightclub business tax receipt pending the hearing.

(Ord. No. 13734, § 3, 1-25-18)

Sec. 4-12. Violation of state law.

It is intended that the provisions of this chapter shall apply solely to those beverages constituting alcoholic beverages under the laws

of the state. Every violation of the laws of the state relating to the sale of alcoholic beverages is hereby specifically made a violation of this chapter with the same force and effect as if the provisions of such laws were fully set forth herein.
(Ord. No. 13734, § 3, 1-25-18)

Sec. 4-13. Enforcement.

No alcohol service establishment shall be entitled to the waiver of any distance requirements provided in sections 4-4 through 4-6 of this City Code when the owner, agent, or employee of the alcohol service establishment has provided to the city an alcohol survey that is fraudulent or false.
(Ord. No. 13893, § 2, 2-13-20)

Sec. 4-14. Duty to report violations of chapter and law.

It shall be the duty of all employees of the city who are responsible for performing inspections of businesses licensed to serve alcoholic beverages to document and report to the city manager, or designee, and the chief of police, or designee any seeming violation of this chapter. Any such employees of the city who suspect or become aware of any violation of F.S. ch. 562, Alcoholic Beverages: Enforcement, as amended (chapter 562), or any racketeering activity or pattern of racketeering activity as proscribed in F.S. ch. 895, Offenses Concerning Racketeering and Illegal Debts, as amended, shall immediately report such activity to the chief of police, or designee. Persons committing violations of F.S. ch. 562, relating to alcoholic beverages, shall be arrested and prosecuted pursuant to F.S. ch. 562, as amended. Further investigation, as required by this section, shall determine the filing of felony racketeering charges.
(Ord. No. 13995, § 2, 5-13-21)

Chapter 5

AMUSEMENTS*

Article I. In General

Sec. 5-1. Pool rooms—Midnight closing; exceptions.
Sec. 5-2. Same—Minors prohibited; exceptions; permits for minors.
Sec. 5-3. Same—Order to minor to leave; calling police.
Secs. 5-4—5-30. Reserved.

Article II. Dancehalls and Ballrooms

Sec. 5-31. Definitions.
Sec. 5-32. Permit required for public dances; permit fee.
Sec. 5-33. License for dances, dancehalls, etc.—Required.
Sec. 5-34. Same—Application; issuance.
Sec. 5-35. Same—Revocation or refusal of renewal.
Sec. 5-36. Compliance with other laws, ordinances and regulations.
Sec. 5-37. Cleanliness, sanitation, lighting and windows.
Sec. 5-38. Inspection by police.
Sec. 5-39. Authority of police to order premises vacated for violations of law, etc.
Sec. 5-40. Closing hours.
Sec. 5-41. Solicitation agreements with taxicab owners, drivers prohibited.
Sec. 5-42. Employees not to be served drinks purchased by customers.
Sec. 5-43. Solicitation of dancing partners or purchase of refreshments prohibited.
Sec. 5-44. Sale of time by employees to customers prohibited; exception.
Sec. 5-45. Employees mingling with customers.
Sec. 5-46. Minors prohibited where alcoholic beverages are available for sale.

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*__Cross references—__Alcoholic beverages, ch. 4; amusement games or machines, ch. 12; offenses, ch. 37; parks and recreation, ch. 38; ships, vessels and waterways, ch. 50; stadiums and convention centers, ch. 53; permit for parades and processions, § 54-6; weapons, ch. 61.

__County Code cross reference—__Obscene performances, § 21-42.

ARTICLE I. IN GENERAL

Sec. 5-1. Pool rooms—Midnight closing; exceptions.

It shall be unlawful for any person to keep open, between the hours of 12:01 a.m. and 8:00 a.m. of any day, a room or saloon containing any billiard or pool tables, except such a room operated in conjunction with and incidental to a bowling establishment, or as a principal use in conjunction with an accessory restaurant (1,500 square foot minimum restaurant area) and where the main entrance is through the restaurant, and the billiard or pool room is not to be open for play unless the requisite restaurant is also open and serving food at the same time.
(Code 1967, § 4-1; Ord. No. 10640, § 1, 9-28-89; Code 1980, § 5-1)

City Code cross reference—License tax for poolrooms, § 31-50.

Sec. 5-2. Same—Minors prohibited; exceptions; permits for minors.

It shall be unlawful for any person, his/her servant or employee to permit anyone under the age of 18 years to visit or frequent or play in any billiard parlor in the city, provided that this shall not apply to any person on active duty in the armed services of the United States, or who has a written permit or card signed and notarized by his/her parent or guardian and filed in the establishment to which the permit or card is given by the parent or guardian of the minor involved, or a married minor, or when accompanied by parent or guardian. Such permit card shall be valid only in the establishment to which it is issued, and such permit card may be revoked at any time by the parent or guardian, or by the operator of such billiard parlor by returning the card to the parent or guardian, or by any law enforcement officer upon conviction of the party of a crime. No written permit shall be valid in any establishment which sells or permits consumption on its premises of intoxicating or alcoholic beverages.
(Code 1967, § 4-2; Code 1980, § 5-2; Ord. No. 13676, § 2, 4-27-17)

Sec. 5-3. Same—Order to minor to leave; calling police.

(a) In case any minor shall enter any pool or billiard room or parlor in violation of section 5-2, it shall be the duty of the person in charge of or owning or operating any such pool or billiard room or parlor to order such minor to vacate such place, and, in case the minor refuses to vacate such place, it shall be the duty of such person in charge of or owning or operating such pool or billiard room or parlor to call a police officer, whose duty it shall be to take such minor out of such place.

(b) In case any such minor is directed or ordered to vacate or move out of any such pool room or parlor by the person in charge of or owning or operating the same, unless such minor shall be excepted by the provisions of section 5-2, it shall be the duty of such minor to comply immediately with the order, direction or request of such person.
(Code 1967, § 4-3; Code 1980, § 5-3)

Secs. 5-4—5-30. Reserved.

ARTICLE II. DANCEHALLS AND BALLROOMS*

Sec. 5-31. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Dancehall or ballroom: Any room, place or space in which a public dance or public ball shall be held, and any room, hall or academy in which classes in dancing are held and instruction in dancing is given for hire.

Public dance or public ball: Any dance or ball conducted in connection with instruction in dancing for hire, and any dance or ball to which admission may be had by the payment of a fee or by the purchase, possession or presentation of a ticket or token, or in connection with which a charge is made for caring for clothing or other

*__County Code cross reference—__Public dancehalls, § 21-30.1.

property, and any dance or ball to which the public generally may gain admission with or without the payment of a fee.
(Code 1967, § 4-32; Code 1980, § 5-67)

Sec. 5-32. Permit required for public dances; permit fee.

(a) No person, society, club or corporation shall hold a public dance or public ball within the city without having first obtained a permit therefor from the chief of police, provided that such permit shall not be required for dances held and conducted by regularly established instructors in dancing in connection with such instruction.

(b) The fee for such permit, which shall be paid at the time of the issuing thereof, shall be $5.00 for each public dance or ball.
(Code 1967, § 4-33; Code 1980, § 5-68)

Sec. 5-33. License for dances, dancehalls, etc.—Required.

It shall be unlawful to hold or conduct any public dance or public ball, or to hold or conduct classes in dancing, or to give instructions in dancing for hire, in any hall, ballroom, studio or academy within the city, unless the dancehall, ballroom, studio or academy is duly licensed for such purpose, and the fee provided in chapter 31 has been paid.
(Code 1967, § 4-34; Code 1980, § 5-69)

City Code cross reference—License fees for dancehalls and ballrooms, § 31-50.

Sec. 5-34. Same—Application; issuance.

Application for licenses required by this article shall be made by the proprietor of such dancehall, ballroom, studio or academy to the chief of police, who is hereby authorized to issue the same.
(Code 1967, § 4-35; Code 1980, § 5-70)

Sec. 5-35. Same—Revocation or refusal of renewal.

The license of any public dancehall, ballroom, studio, or academy may be forfeited, revoked or annual renewal may be refused by the chief of police for disorderly or immoral conduct or ordinance violations on the premises, or upon proof that the dancehall, ballroom, studio or academy was frequented by disorderly or immoral persons, or for the violation of any of the rules, regulations, ordinances and laws governing or in any way applying to public dancehalls, ballrooms, studios, academies or public dances. If at any time the license of a public dancehall, ballroom, studio, or academy shall be forfeited or revoked or annual renewal shall be refused, at least three months shall elapse before another license or permit shall be granted for dancing on the same premises.
(Code 1967, § 4-36; Code 1980, § 5-71)

Sec. 5-36. Compliance with other laws, ordinances and regulations.

No license for a public dancehall, ballroom, studio or academy shall be issued until it shall be ascertained that the place for which it is issued complies with and conforms to all laws, ordinances, health and fire regulations applicable thereto, and is a safe and proper place for the purpose for which it is to be used.
(Code 1967, § 4-37; Code 1980, § 5-72)

Sec. 5-37. Cleanliness, sanitation, lighting and windows.

All public dancehalls, ballrooms, studios or academies shall be kept at all times in a clean, healthful and sanitary condition, and all stairways and other passages and all rooms connected with public dancehalls, ballrooms, studios or academies shall be kept open and well lighted. All windows shall, at all times, be clean and the glass shall be clear and transparent. The only thing that shall appear on such windows shall be the name and address of the dancehall in letters or figures not higher than eight inches.
(Code 1967, § 4-38; Code 1980, § 5-73)

Sec. 5-38. Inspection by police.

All public dancehalls, ballrooms, studios and academies shall be subject to inspection by the police department at all reasonable times and whenever they are open for dancing, instruction in dancing or for any other purpose.
(Code 1967, § 4-39; Code 1980, § 5-74)

Sec. 5-39. Authority of police to order premises vacated for violations of law, etc.

Any police officer of the city shall have the power to cause the place, hall or room where any public dance or ball is given to be vacated whenever any provision of any law or ordinance with regard to public dances and public balls is being violated, whenever any indecent act shall be committed or when any disorder of a gross, violent or vulgar character shall take place therein.
(Code 1967, § 4-40; Code 1980, § 5-75)

Sec. 5-40. Closing hours.

All public dances shall be discontinued and all dancehalls shall be closed between 12:01 a.m. and 8:00 a.m. on weekdays and between 1:00 a.m. and 9:00 p.m. on Sundays and holidays, provided that upon application of a bona fide organization or society and upon investigation, the chief of police may grant such organization or society a permit to continue a dance until 2:00 a.m.
(Code 1967, § 4-41; Code 1980, § 5-76)

Sec. 5-41. Solicitation agreements with taxicab owners, drivers prohibited.

It shall be unlawful for any taxicab owner or driver to have or make any contract or agreement with any dancehall owner, or with the agent or employee of such owner, by which such taxicab owner or driver agrees to solicit the patronage of any passenger for such dancehall.
(Code 1967, § 4-42; Code 1980, § 5-77)

Sec. 5-42. Employees not to be served drinks purchased by customers.

It shall be unlawful for any hostess, waitress, entertainer or employee in a dancehall or ballroom to be served any beverage, whether an alcoholic beverage or otherwise, for which a customer or patron in such establishment pays.
(Code 1967, § 4-43; Code 1980, § 5-78)

City Code cross reference—Employees in alcoholic beverage establishments not to mingle with customers, § 4-4.

Sec. 5-43. Solicitation of dancing partners or purchase of refreshments prohibited.

It shall be unlawful for any person in or about any dancehall or ballroom to solicit dancing partners on a commission basis, directly or indirectly, or to solicit the purchase of refreshments on a commission basis, directly or indirectly. It shall be unlawful for the owner, manager or other person connected with the operation of any dancehall or ballroom to permit or allow any such solicitation therein.
(Code 1967, § 4-44; Code 1980, § 5-79)

Sec. 5-44. Sale of time by employees to customers prohibited; exception.

It shall be unlawful for an employee in a dancehall or ballroom to sell time to a customer, other than for the purpose of giving dance instruction to such customer. It shall be unlawful for the owner, manager or other person connected with the operation of any dancehall or ballroom to permit or allow any sale of time by an employee to a customer other than for the purpose of giving dance instruction to such customer.
(Code 1967, § 4-45; Code 1980, § 5-80)

Sec. 5-45. Employees mingling with customers.

It shall be unlawful for employees or entertainers in dancehalls or ballrooms to mingle or fraternize with the customers or patrons of such establishments, except when actually providing dance instruction to such customers or patrons.
(Code 1967, § 4-46; Code 1980, § 5-81)

City Code cross references—Employees or entertainers in alcoholic beverage establishments not to mingle with customers, § 4-4; nightclub license holders not to permit entertainers to contact or associate with patrons, § 4-76.

Sec. 5-46. Minors prohibited where alcoholic beverages are available for sale.

It shall be unlawful for any owner, manager or person in charge of any dancehall or ballroom which provides hostesses or dance partners and has beverages, alcoholic or otherwise, available

for sale, to employ or permit any minor under the age of 18 years to frequent or be in or about such place.
(Code 1967, § 4-47; Code 1980, § 5-82)

Chapter 6

ANIMALS*

Article I. In General

Sec. 6-1. Restrictions on keeping poultry, fowl or grazing animals.
Sec. 6-2. Animals not to run at large; exceptions.
Sec. 6-3. Bird sanctuary established.
Sec. 6-4. Shooting, trapping, etc., birds prohibited; exception.
Sec. 6-5. Cruelty to animals; penalties.
Secs. 6-6—6-35. Reserved.

Article II. Dogs and Cats

Sec. 6-36. Definitions.
Sec. 6-37. Maintenance of kennels.
Sec. 6-38. Prohibited in food establishments.
Sec. 6-39. Noisy dogs.
Sec. 6-40. Vicious dogs.
Sec. 6-41. Cruelty to dogs; penalties.
Sec. 6-42. Abandonment of dogs prohibited.
Sec. 6-43. Stealing dogs.
Sec. 6-44. Refusal to surrender dog.
Sec. 6-45. Removal and proper disposition of animal fecal matter required when dog defecates on public and private property and fine schedule for violation.
Sec. 6-46. Sale or transfer of dogs and cats.
Secs. 6-47—6-70. Reserved.

Article III. Enforcement

Sec. 6-71. Citation system for animal control.

***Charter references—**Authority of city to collect and dispose of carcasses of dead animals, § 3(o); authority to regulate or prohibit the keeping of animals, poultry or other fowl, § 3(p); power to declare city a bird sanctuary, § 3(ff).

City Code cross references—Regulation of domestic animals in parks, § 38-57; restrictions on domestic pets in city marinas, § 50-234.

County Code cross reference—Animals and fowl, ch. 5.

ARTICLE I. IN GENERAL

Sec. 6-1. Restrictions on keeping poultry, fowl or grazing animals.

(a) For the purpose of this section, the terms hereinafter set forth shall be defined as follows:

Fowl: Live guineas, pea fowls, pheasants and pigeons, except carrier and racing pigeons, kept, harbored, bred and maintained exclusively for such purpose.

Grazing animals: Horses, cows, goats, sheep and rabbits.

Poultry: Live chickens, turkeys, ducks and geese.

Poultry markets: Commercial establishments or places properly zoned and licensed where live poultry or fowl are kept temporarily for the purposes of sale.

(b) Live poultry, fowl or grazing animals may be kept, harbored, bred or maintained in the city, subject to the following limitations and restrictions:

(1) No live poultry, fowl or grazing animals shall be kept, harbored, bred or maintained unless the person owning or leasing or occupying the premises on which the same are kept, harbored, bred or maintained secures, possesses and maintains a permit from the county health unit, authorizing the use of the premises for such purpose.

(2) In no event shall the owner or lessee or occupant of any premises keep, harbor, breed or maintain at any one time more than 15 hens and 30 growing chicks. No roosters shall be kept, harbored, bred or maintained at any time.

(3) No poultry, fowl or grazing animal pens or houses shall be situated less than 100 feet from any human dwelling, and no poultry, fowl or grazing animal shall be permitted to run at large.

(4) Poultry, fowl and grazing animal pens shall be kept free from odors and free from fly breeding.

(5) All food used for poultry, fowl and grazing animals shall be kept in suitable containers with tightfitting covers, so as to be inaccessible to rats.

(6) All poultry or fowl droppings shall be removed from the pens at least twice weekly, wrapped in paper and placed in covered garbage cans for removal. Droppings shall not be used for fertilizer unless first treated so as to destroy fly maggots.

(c) The limitations and restrictions set out in subsection (b) of this section shall not be applicable to poultry markets, provided that nothing herein contained shall be construed so as to authorize the operation of a poultry market in an insanitary manner and nothing contained in this section shall be construed to allow or permit the violation of any zoning ordinance of the city or to be in conflict therewith or prevent the rezoning of any property, provided the zone requirements are met and complied with.

(d) The limitations and restrictions contained in this section shall not be applicable to premises upon which guinea pigs, rabbits or chickens are kept, harbored, bred or maintained exclusively for clinical and medical research purposes, but this subsection shall not be construed so as to authorize the use of such premises in an unsanitary manner.

(Code 1967, § 5-1; Code 1980, § 6-1)

Case law reference—Case raising, but not deciding, the constitutionality of this section, Bratley v. Nelson, 67 F. Supp. 272. Section held valid, State ex rel. Lockwood v. Nelson, 28 So. 2d 264.

Sec. 6-2. Animals not to run at large; exceptions.

(a) No animal kept, harbored, maintained or possessed by any person in the city shall be permitted to run at large or to remain in or upon public or private property unless the animal is under the actual or direct control of its keeper by a rope, chain, leash or suitable device, or is kept within an enclosed area capable of preventing the animal from escaping therefrom. Any person owning, possessing or having control or custody of any animal shall be held strictly responsible for compliance with this section, and it shall be

no defense to a prosecution under this section that the defendant did not personally allow, permit or countenance the animal to run at large or roam in the city.

(b) This section shall have no application to dogs and cats, except as limited by section 38-57.
(Code 1967, § 5-2; Code 1980, § 6-2; Ord. No. 14206, § 2, 9-28-23)

State law reference—Livestock at large, F.S. § 588.12 et seq.

Sec. 6-3. Bird sanctuary established.

It is hereby declared that all territory embraced within the city shall be a bird sanctuary.
(Code 1967, § 5-7; Code 1980, § 6-3)

Charter reference—Authority of city to establish bird sanctuary, § 3(ff).

Sec. 6-4. Shooting, trapping, etc., birds prohibited; exception.

(a) It shall be unlawful for any person to shoot, trap, or in any manner kill or destroy birds within the city, except as provided in subsection 6-4(b).

(b) Nothing in this section shall prevent the following:

(1) The city shall have the authority to take any and all necessary remedial actions to address the proliferation of peafowl located within the city.

(2) Any peafowl trapped or relocated pursuant to subsection 6-4(b)(1) of the City Code from within the city shall be done so in a humane manner and be relocated to an appropriate sanctuary or other facility by a licensed trapper to ensure the safety of the peafowl.

(3) No trapped or relocated peafowl shall be released into the wild in another part of the state.

(4) The city shall implement a peafowl management plan to address the relocation of peafowl. The peafowl management plan shall be as described in Exhibit "A" to Ord. No. 13892, which may be amended by resolution of the city commission as needed from time to time.

(Code 1967, § 5-8; Code 1980, § 6-4; Ord. No. 13892, § 2, 2-13-20)

Sec. 6-5. Cruelty to animals; penalties.

(a) The following acts and all related acts as set forth in F.S. Ch. 828 and all amendments thereto, shall be as deemed cruelty to animals:

(1) Any person who shall overload, overdrive, torture, torment or deprive of necessary sustenance, or unnecessarily or cruelly beat or mutilate or kill any domestic animal, or cause or permit either of such offenses to be permitted within the city.

(b) An individual found to be in violation of this section shall be subject to all enforcement regulations as contained in this chapter and all penalties as set forth in F.S. Ch. 828, and all amendments thereto.
(Code 1967, § 5-9; Code 1980, § 6-5; Ord. No. 12092, § 1, 7-26-01)

City Code cross reference—Cruelty to dogs, § 6-41.

State law reference—Cruelty to animals, F.S. ch. 828.

Secs. 6-6—6-35. Reserved.

ARTICLE II. DOGS AND CATS*

Sec. 6-36. Definitions.

For the purpose of this article, the following words and phrases shall have the meanings respectfully ascribed to them by this section:

Animal rescue organization: A not for profit organization devoted to the rescue, care, or adoption of stray, abandoned, injured, or surrendered animals and which does not breed animals.

Animal shelter: A public animal shelter or duly incorporated not for profit organization,

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*__Editor's note—__**Editor's note—**Ord. No. 13696, § 2, adopted July 27, 2017, changed the title of article II from "Dogs" to "Dogs and cats."

County Code cross references—Dogs generally, § 5-3 et seq.; county license tags required, conditions for issuance, § 5-8.

operated as a bona-fide charitable organization under Section 501(c)(3) of the Internal Revenue Code, devoted to the rescue, care, or adoption of stray, abandoned, injured, or surrendered animals and which does not breed animals.

Breeder: Any person or entity that causes dogs or cats to reproduce regardless of the size or number of litters produced. Any person or entity offering male dogs or cats for stud purposes shall be classified as a breeder. It is provided, however, that this classification shall not apply to a hobby breeder as defined in this section or to a pet owner who breeds his or her own pet and keeps all of the offspring so long as the total number of dogs kept on the premises does not constitute a kennel. Any establishment used by a breeder for the breeding of dogs, except for a hobby breeder as defined in this section, shall be regulated as a kennel. Breeders that sell directly to the public shall also be subject to regulation as pet dealers.

Cat: An animal of the Felidae family of the order Carnivora.

Certificate of source: A document from the source declaring the origin of the dog or cat on

the premises to be sold or transferred, or offered for sale or transfer, by the pet store. The certificate of source shall include, at minimum:

(1) The name, address, telephone number, and electronic mail address of the source of the dog or cat;

(2) A brief description of the dog or cat, the original source of the dog or cat, and license information if the original source breeder is licensed by the United States Department of Agriculture; and

(3) Shall be signed by both the pet store certifying the accuracy of the certificate of source and by the purchaser or transferee of the dog or cat acknowledging receipt of the certificate of source.

Dog: An animal of the Canidae family of the order Carnivora.

Hobby breeder: A person or entity that is an active member of a national, state, or local breeder organization and that houses or breeds dogs or cats at or adjoining a private residence for the purpose of improving the breed; exhibiting dogs or cats at shows operated by a national, state, or local breeder organization; or raising service animals or animals used for law enforcement or other types of work. A hobby breeder may sell no more than two litters of puppies or kittens per year per household so long as the total number of dogs kept on the premises does not constitute a kennel as defined in this section. A hobby breeder that sells more than two litters per year per household shall be deemed to be a pet dealer.

Kennel: The following uses shall constitute a kennel:

(1) The keeping of any dog or dogs, regardless of number, for sale, boarding, or treatment purposes, except by a hobby breeder as defined in this section or as provided by law, in a dog hospital, dog beauty parlor, pet care center, pet shop, dog racing establishment, governmental agency, laboratory, or facility housing animals for medical research that is approved by a federal agency;

(2) The keeping of dogs six months of age or older on premises used for residential purposes in excess of:

a. Four dogs on property that is less than one acre in gross area or in any individual residence unit in a transect zone that allows multifamily uses;

b. Six dogs on property that is at least one acre but less than two acres in gross area; and

c. Eight dogs on property that is two acres or more in gross area; or

(3) The keeping of more than four guard dogs on vacant property or on property used for business or industrial purposes.

Owner: Any person owning, harboring, or keeping a dog or cat within the city.

Pet dealer: Any person that engages in the sale to the public of dogs or cats regardless of number. This classification shall include pet stores as well as breeders who sell directly to the consumer. Animal rescue organizations and hobby breeders shall be exempt from this classification.

Pet store: A pet shop, pet beauty parlor, animal grooming establishment, pet hospital, or other retail establishment open to the public and engaging in the business of selling pet supplies, services, or animals at retail or wholesale prices.

Pet store operator: A person who owns or operates a pet store.

Retail sale: The display, offer for adoption, barter, auction, give away, or other transfer of any dog or cat.
(Code 1967, § 5-10; Code 1980, § 6-20; Ord. No. 13696, § 2, 7-27-17)

Sec. 6-37. Maintenance of kennels.

Any owner of six or more dogs, each of which is not less than six months in age, and which are held for profit, breeding or exhibition purposes shall be deemed the operator of a commercial dog kennel. Such dog kennel shall be kept in a clean and sanitary condition at all times. The owner thereof shall operate the premises whereon dogs are held in such manner as to prevent annoyance

to the neighborhood or the general public created by reason of odors or loud, frequent, habitual barking, yelping or howling emanating therefrom.
(Code 1967, § 5-11; Code 1980, § 6-21)

Sec. 6-38. Prohibited in food establishments.

No dog, whether on leash or without leash, muzzled or unmuzzled, except a guide or service dog accompanying a physically impaired person, shall be permitted at any time to enter a store in the city where food for human consumption is sold or held for sale, and it shall be the duty of the owner or manager of such store to post a sign in a conspicuous place and manner apprising dog owners that no dogs are permitted within the premises.
(Code 1967, § 5-12; Code 1980, § 6-22)

State law reference—Right of physically impaired persons to be accompanied by guide dog when utilizing public facilities, F.S. § 413.08.

Sec. 6-39. Noisy dogs.

No person shall keep or harbor or own any dog in the city which indulges or engages in frequent or habitual barking, yelping or howling, thereby creating annoyance to the inhabitants of the neighborhood in which the dog is kept or to people passing to and fro upon the public streets.
(Code 1967, § 5-13; Code 1980, § 6-23)

Sec. 6-40. Vicious dogs.

It shall be unlawful for any person to keep or harbor any dog which is mean or vicious. Upon the conviction of any person owning or harboring a mean or vicious dog, the county judge may order the proper agency to destroy such dog.
(Code 1967, § 5-14; Code 1980, § 6-24)

Sec. 6-41. Cruelty to dogs; penalties.

(a) It shall be unlawful for any person keeping, harboring or owning a dog to be cruel and inhumane to the animal. "Cruelty" and "inhumaneness" shall include all provisions as set forth in F.S. Ch. 828, and all amendments thereto, including unnecessarily beating or torturing or mutilating or cruelly killing or failing or neglecting to provide suitable food or drink in sufficient quantities, together with adequate shelter for such dog.

(b) Tethering means to restrain a dog by tying the dog to any object or structure, including, but not limited to a house, tree, fence, post, garage, or shed, by any means, including, but not limited to a chain, rope, cord, leash or running line. This shall not include using a leash for walking purposes.

(c) It shall be unlawful for a responsible party to tether a dog while outdoors, except when all of the following conditions are met:

(1) The dog is visible to the responsible party at all times and the responsible party is outside with the dog;

(2) The tether is connected to the dog with a buckle-type collar or a body harness made of nylon or leather, not less than one inch in width;

(3) The tether has the following properties:

a. It must be at least five times the length of the dog's body, as measured from the tip of the nose to the base of the tail;

b. It terminates at both ends with a swivel;

c. It does not weigh more than one-eighth of the dog's weight; and

d. It is free of tangles.

(4) The dog is tethered so as to prevent injury, strangulation, or entanglement.

(5) The dog is not outside during extreme weather, including, but not limited to, extreme heat or near-freezing temperatures, thunderstorms, tornadoes, tropical storms, or hurricanes.

(6) The dog has access to water, shelter and dry ground.

(7) The dog is a least six months of age.

(8) The dog is not sick or injured.

(9) Pulley, running line or trolley systems are at least 15 feet in length and are less than seven feet above ground.

(10) If there are multiple dogs, each dog is tethered separately.

(d) An individual found to be in violation of this section shall be subject to all enforcement regulations as contained in this chapter and all penalties as set forth in F.S. Ch. 828, and all amendments thereto.
(Code 1967, § 5-15; Code 1980, § 6-25; Ord. No. 12092, § 1, 7-26-01; Ord. No. 12995, § 2, 5-8-08)

City Code cross reference—Cruelty to animals generally, § 6-5.

Sec. 6-42. Abandonment of dogs prohibited.

It shall be unlawful for any person to abandon an aged, sick, disabled or otherwise unwanted dog.
(Code 1967, § 5-16; Code 1980, § 6-26)

Sec. 6-43. Stealing dogs.

It shall be unlawful for any person to steal a dog within the city.
(Code 1967, § 5-17; Code 1980, § 6-27)

Sec. 6-44. Refusal to surrender dog.

It shall be unlawful for any person to refuse to deliver his/her dog to the proper agency when requested to do so under the provisions of this article.
(Code 1967, § 5-18; Code 1980, § 6-28; Ord. No. 13676, § 2, 4-27-17)

Sec. 6-45. Removal and proper disposition of animal fecal matter required when dog defecates on public and private property and fine schedule for violation.

(a) It shall be unlawful for any person owning, possessing, having the care, charge, control or custody of any dog(s) to not immediately remove and thereafter dispose of any fecal matter deposited by the dog(s) on public property or private property other than the private property of the owner or responsible party of the dog(s) unless the owner or person in lawful possession of the property has consented to such deposit. Public property includes, but is not limited to, parks, sidewalks, swales, and streets. For the purposes of this section, dog fecal matter shall be immediately removed by placing the matter in a closed or sealed container and thereafter disposing of it by depositing the matter in a trash receptacle, sanitary disposal unit, or other closed or sealed container. This section shall not apply to blind persons accompanied by a dog used for their assistance.

(b) Each violation of this section is a civil infraction. Each violation of this section shall constitute a separate offense and be punishable by civil penalty in the amount as prescribed in section 6-71.
(Ord. No. 12189, § 1, 2-14-02)

Sec. 6-46. Sale or transfer of dogs and cats.

(a) No pet store shall offer for retail sale any dogs or cats in the city on or after the effective date of this section unless the pet store is exempt pursuant to subsection 6-46(b).

(b) This section shall not apply to:

(1) A publicly operated animal control facility or animal shelter;

(2) A private, charitable, not for profit animal rescue organization;

(3) A publicly operated animal control agency or not for profit animal rescue organization that operates out of or in connection with, a pet store;

(4) A pet store that transitions into the sale of pets formerly from an animal shelter or a pet store that sells those pets acquired from an animal shelter or a locally regulated Miami-Dade County hobby breeder; or

(5) A hobby breeder.

(c) Certificate of source.

(1) A pet store shall post and maintain in a conspicuous place on or within three feet of each dog's or cat's kennel, cage, or enclosure a certificate of source of each dog or cat offered for retail sale and shall provide a copy of such certificate of source to the purchaser or transferee of any dog or cat offered for retail sale.

(2) Falsification of a certificate of source is hereby unlawful. A violation of this section shall be enforced pursuant to the provisions of section 6-71 below.

(d) Nothing in this section shall prevent a pet store, pet store operator, or employees of a pet store from providing space and appropriate care for animals owned by a publicly operated animal control agency or animal rescue organization and maintained at the pet store for the purpose of adopting or selling those animals to the public.

(e) Any person who violates this section shall be punished as provided in section 6-71 of the City Code; chapter 2, article X of the City Code; or any other remedy as provided by law.
(Ord. No. 13696, § 2, 7-27-17)

Secs. 6-47—6-70. Reserved.

ARTICLE III. ENFORCEMENT

Sec. 6-71. Citation system for animal control.

(a) For the purposes of this article, the terms hereinafter set forth shall be defined as follows:

Animal means any living dumb creature.

Animal control officer means any person employed or appointed by the city who is authorized to investigate, on public or private property, civil infractions relating to animal control or cruelty and to issue citations as provided in this article. An animal control officer is not authorized to bear arms or make arrests.

Citation means a written notice, issued to a person by an officer, that the officer has probable cause to believe that the person has committed a civil infraction in violation of this chapter and that the county court will hear the charge. The citation shall contain:

(1) The date and time of issuance.

(2) The name and address of the person.

(3) The date and time the civil infraction was committed.

(4) The facts constituting probable cause.

(5) The ordinance violated.

(6) The name and authority of the officer.

(7) The procedure for the person to follow in order to pay the civil penalty or to contest the citation.

(8) The applicable civil penalty if the person elects to contest the citation.

(9) The applicable civil penalty if the person elects not to contest the citation.

(10) A conspicuous statement that if the person fails to pay the civil penalty within the time allowed, or fails to appear in court to contest the citation, he/she shall be deemed to have waived his/her right to contest the citation and that, in such case, judgment may be entered against the person for an amount up to the maximum civil penalty.

Control means the regulation of the possession, ownership, care, and custody of animals.

Cruelty means any act of neglect, torture, or torment that causes unjustifiable pain or suffering of an animal.

Officer means any law enforcement officer defined in F.S. § 943.10 or any veterinarian defined in F.S. § 474.202.

(b) Any person violating any of the provisions of this chapter shall be deemed guilty of a civil infraction. During a one-year period, each violation of this chapter shall constitute a separate offense. Violations of this chapter shall be enforced as follows:

(1) For the first violation, by a civil penalty of $50.00, if the person who has committed the civil infraction does not contest the citation.

(2) For the first violation, by a civil penalty of $100.00, if the person who has committed the civil infraction does contest the citation and is found to have committed the violation.

(3) For the second violation, by a civil penalty of $200.00, if the person who has committed the civil infraction does not contest the citation.

(4) For the second violation, by a civil penalty of $300.00, if the person who has committed the civil infraction does contest the citation and is found to have committed the violation.

(5) For the third violation and each additional violation thereafter, by a civil penalty of $400.00, if the person who has committed the civil infraction does not contest the citation.

(6) For the third violation and each additional violation thereafter, by a civil penalty of $500.00, if the person who has committed the civil infraction does contest the citation and is found to have committed the violation.

(7) Any person who fails to pay the appropriate civil penalty within the time provided on the citation or who fails to appear in county court to contest the citation, shall be deemed to have waived his/her right to contest the citation and judgment may be entered against the person for an amount not to exceed $500.00.

(c) An officer may issue a citation if he/she has probable cause to believe that a person has committed an act in violation of a section in this chapter.

(d) Any person who has been issued a citation for committing an act in violation of a section of this chapter may contest the citation in the county court.

(e) Any person who willfully refuses to sign and accept a citation issued by an officer shall be guilty of a misdemeanor of the second degree, punishable as provided by F.S. § 775.082, 775.083, or 775.084.

(Ord. No. 10508, § 1, 11-3-88; Code 1980, § 6-29; Ord. No. 13676, § 2, 4-27-17)

Chapter 7

RESERVED

Chapter 8

BICYCLES, SKATEBOARDS, SCOOTERS AND OTHER SIMILAR DEVICES*

Article I. In General

Sec. 8-1. Definitions.
Sec. 8-2. Applicability of chapter.
Sec. 8-3. Bell or other warning device.
Sec. 8-4. Not to be rented unless chapter complied with.
Sec. 8-5. Parents and guardians not to permit violations of chapter; safe driving.
Sec. 8-6. Prohibitions on the sidewalks of Southwest 8th Street between 4th Avenue and Tamiami Canal Road.
Sec. 8-7. Penalties for violation of chapter.

Article II. Motorized Scooters

Sec. 8-8. Applicability, policy statement and purpose.
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Sec. 8-11. Application for pilot program license.
Sec. 8-12. Motorized scooter fee.
Sec. 8-13. Motorized scooter parking.
Sec. 8-14. Operations; remedies.
Sec. 8-15. Data sharing.
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Sec. 8-19. Expiration.

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*__Editor's note—__Ord. No. 12452, § 1, adopted December 18, 2003, changed the title of Chapter 8 from "Bicycles" to "Bicycles, Skateboards, Scooters and Other Similar Devices."

__City Code cross reference—__Motor vehicles, traffic control and parking generally, ch. 35.

__County Code cross references—__Bicycle regulations, §§ 30-263, 30-264; voluntary registration of bicycles, §§ 30-264.1—30-264.6; use of bicycle paths and bikeways by motor vehicles, etc., § 30-273.

__State law references—__Power of local authorities to regulate operation of bicycles, F.S. § 316.008(1)(h); bicycle regulations, F.S. § 316.2065; driving motor vehicles upon sidewalks or bicycle paths, F.S. § 316.1995, bicycle trails and footpaths along state roads, F.S. § 335.065.

ARTICLE I. IN GENERAL

Sec. 8-1. Definitions.

For the purposes of this chapter, the term "bicycle," "bicycle path," "moped," "pedestrian," "motorized scooter," "sidewalk," "street," and "vehicle," shall have the meanings ascribed to them in F.S. § 316.003, as amended. "Scooter" or "skateboard" shall mean any vehicle not having a seat or saddle for the use of the rider, designed for travel by human propulsion and "other similar devises" shall refer to any vehicle or apparatus intended to propel a person by either human power or an electrical, mechanical or other power source.

(Ord. No. 12452, § 1, 12-18-03)

Editor's note—Ord. No. 12452, § 1, adopted December 18, 2003, amended § 8-1 in its entirety to read as herein set out. Formerly, § 8-1 pertained to "Bicycle" defined, and derived from the Code of 1967, § 8-1, and the Code of 1980, § 8-1.

Sec. 8-2. Applicability of chapter.

This chapter shall apply whenever a bicycle, moped, motorized scooter, scooter, skateboard, or other similar devises are operated on specifically designated areas of the city set forth below and to the operation of bicycles upon any street, or upon any public path set aside for the exclusive use of bicycles, subject to those exceptions stated in this chapter.

(Code 1967, § 8-2; Code 1980, § 8-2; Ord. No. 12452, § 1, 12-18-03)

Sec. 8-3. Bell or other warning device.

No person shall operate a bicycle unless it is equipped with a bell or device capable of giving a signal audible for a distance of at least 100 feet, but no bicycle shall be equipped with, nor shall any person use upon a bicycle, any siren or whistle.

(Code 1967, § 8-3; Code 1980, § 8-3)

Sec. 8-4. Not to be rented unless chapter complied with.

No rental agency shall rent or offer any bicycle for rent unless such bicycle is as provided in this chapter.

(Code 1967, § 8-4; Code 1980, § 8-4)

Sec. 8-5. Parents and guardians not to permit violations of chapter; safe driving.

No parent of any minor child and no guardian of any minor ward shall authorize or knowingly permit any such minor child or ward to violate any of the provisions of this chapter.

All operators of motorized scooters as referenced in this chapter shall abide by applicable laws, ordinances, and regulations governing their operation. Motorized scooters will be operated in a safe and prudent manner and shall be operated defensively to avoid bicyclists, pedestrians, and any items, such as bus benches or trash receptacles, in the sidewalk furniture zone.

(Code 1967, § 8-5; Code 1980, § 8-5; Ord. No. 13795, § 2, 10-11-18)

Sec. 8-6. Prohibitions on the sidewalks of Southwest 8th Street between 4th Avenue and Tamiami Canal Road.

To continue to encourage a pedestrian friendly environment and provide for the safety of pedestrians using the sidewalks, it shall be unlawful for any person to operate a bicycle, moped, motorized scooter, scooter, skateboard, vehicle, or other similar devises, unless such devices are used to assist in transport of physically handicapped person, on the sidewalks of Southwest 8th Street between 4th Avenue and Tamiami Canal Road.

(Ord. No. 12452, § 1, 12-18-03)

Editor's note—See note at § 8-7.

Sec. 8-7. Penalties for violation of this chapter.

Every person guilty of a violation of any provisions of this chapter shall be punishable by a fine of not more than $25.00.

(Ord. No. 12452, § 1, 12-18-03)

Editor's note—Ord. No. 12452, § 1, adopted December 18, 2003, amended § 8-7 (formerly § 8-6) in its entirety to read as herein set out. Formerly, § 8-6 pertained to similar subject matter and derived from the Code of 1967, § 8-6, and the Code of 1980, § 8-6.

ARTICLE II. MOTORIZED SCOOTERS

Sec. 8-8. Applicability, policy statement and purpose.

This article is supplemental to the general laws of the State of Florida, including F.S. ch. 316, entitled "State Uniform Traffic Control." All definitions from F.S. §§ 316.003 and 316.2128, are incorporated herein by reference, including the definitions of "bicycle" and "motorized scooter." This article shall apply to any and all motorized scooters and motorized scooter services operating within the corporate limits of the City of Miami ("city"), as permitted. This article is intended to govern the operation of motorized scooters and motorized scooter services within the city to ensure that they are consistent with the safety and well-being of all bicyclists, pedestrians, and other users of the public rights-of-way. This article shall not apply to any sidewalk/sidewalk area funded by the Federal Government except as expressly allowed by United States Department of Transportation Secretary or as expressly allowed by 23 United States Code Section 217(h). The pilot program under this article shall apply to the area of the city within city commission district 2. Motorized scooters are not authorized by the pilot program under this article in any area of the city other than city commission district 2.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-9. Definitions.

As used in this article the following definitions apply:

Applicable state laws shall mean all general laws of the State of Florida relating to mobility devices and motorized scooters. This pilot program will operate in a manner consistent with and subject to applicable general laws of the state including, without limitation, F.S. §§ 316.003, 316.008, 316.2065, and 316.2128, and the entirety of F.S. ch. 316, the "Florida Uniform Traffic Control Law", as amended. The city in this article reserves all municipal home rule powers to impose more restrictive public safety, insurance, licensing, data sharing, parking, and similar requirements.

Application programming interface key (API Key) shall mean a code passed in by computer programs calling an application programming interface ("API") to identify the calling program, its developer, or its user to the web site.

Bicycle shall have the meaning ascribed to it in F.S. § 316.003, as amended.

Bicycle path (bike path) shall generally mean a bikeway separated from motorized traffic and dedicated to cycling or shared with pedestrians or other users, and additionally have the same meaning ascribed to it in F.S. § 316.003, as amended.

Bike lane shall mean a part of the road which is intended to be used in part by people riding bicycles.

License shall mean the document by which a privilege is granted by the city to authorize a person to operate a motorized scooter service within its corporate limits. Any license issued in accordance with this article shall be nonexclusive.

Micromobility device shall have the same meaning ascribed to it in F.S. § 316.003, as amended.

Motorized scooter(s) shall have the meaning ascribed to it in F.S. § 316.003, as amended. Motorized scooter(s) are further defined, in the context of this article, as a device, with an electric motor, designed to transport only one person, exclusively or in combination with the application of human power, which cannot attain a speed of more than 15 miles per hour in bike lanes or streets without the application of human power on a level surface; or more than seven miles per hour on any sidewalk, baywalk, or in parks.

Motorized scooter user shall mean a person driving a motorized scooter.

Motorized scooter service shall mean a system in which motorized scooters are made available for shared use to individuals on a short-term basis for a price or fee.

Operator shall mean an individual or company that has been issued a license pursuant to this article and/or pursuant to any appropriate procurement process, if approved by the city commission, as may be later determined by the city commission to be applicable, as outlined in chapter 18 of this Code.

Rebalance shall mean moving motorized scooters from an area of low demand to an area of high demand.

Sidewalk means that portion of the public right-of-way between the back of curb lines or the lateral lines of a non-driving lane separated by curb and the adjacent property lines, where a three-foot minimum clearance is available to pedestrians and intended for public use. There may also be a median strip or road verge (a strip of vegetation, grass or bushes or trees or a combination of these) either between the sidewalk and the roadway or between the sidewalk and the adjacent property line (also described as "right-of-way line" or "building baseline").

Sidewalk area includes bike lanes and bike path, as well as the sidewalk width perpendicular to the road times the sidewalk length along and parallel to the road.

Transit facility means a facility providing accommodations by public, private, or nonprofit entities for the conveyance of persons from one place to another by means of a transportation system, including but not limited to: bus terminal, railroad station, freight terminal, airport, helistop or seaport.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-10. Rules and regulations.

(a) The city manager, or his or her designee, may administratively issue, promulgate and establish additional rules and regulations, consistent with this article and applicable state and federal laws, as determined to affect the policy of this article. The rules may include standard operating procedures ("SOP") addressing issues with persons under the age of 18 operating motorized scooters in violation of this article. All additional rules and regulations shall be made available on the city's website.

(b) Pilot program. The city hereby continues the pilot program (the "pilot term"), as may be extended subject to section 2-33 of the City Code, for the continued operation of temporary pilot program licenses within the boundaries of commission district 2 or as authorized by ordinance.

(1) Operators shall have a maximum initial fleet of 100 motorized scooters. Operators participating in the first six months of the pilot program enacted by Ordinance 13795 may retain their current fleet size. operators commencing the pilot program on or after November 1, 2019 will have a maximum fleet size of 50 motorized scooters during the first two weeks of their participation, and thereafter 100 motorized scooters.

(2) The city shall allow operators to increase their fleet size on a monthly basis by a maximum of 25 percent if operator's usage data demonstrates that their fleet provides on average more than three rides per motorized scooter per day. The increase in vehicles on the street or sidewalk/sidewalk area shall not exceed the amount required to keep usage rates at or above three rides per motorized scooter per day. The city may also require operators to reduce their fleet size on a monthly basis by 25 percent if operator's usage data demonstrates that their fleet provides on average less than two rides per motorized scooter per day.

(3) Notwithstanding subsection (2), the city retains the right to require operators to reduce their fleet size, to impose a cap on fleet sizes or on the number of operators as is warranted, or cease operations in the event that operators repeatedly fail to timely rebalance or remove vehicles blocking the right of way or provide timely responses to complaints received by the city, each as may be warranted.

(4) During the duration of the pilot program, operators shall designate two local

operational staff who will be responsible for fielding complaints, addressing technical difficulties, coordinating the rebalancing and removal of scooters parked illegally, and providing public education.

(5) On or before the expiration of this pilot program, the city manager or his designee shall report to the city commission on the status of the pilot program. Following the city manager's report, the city commission will consider the city's options relative to the pilot program including: discontinuing, reinstating, or expanding the pilot program, authorizing the city manager to issue a competitive solicitation for a more permanent motorized scooter license program, or such other measures as determined to be in the city's best interests.

(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-11. Application for pilot program license.

(a) A person may not operate, or cause or permit the operation of, a motorized scooter service for the duration of the pilot program without first having obtained a valid pilot program license issued under this article.

(b) A person desiring to obtain a license shall make a written application in a form prescribed by the city manager, or his or her designee, with the applicant being the person who will own, control, or operate the proposed motorized scooter service.

(c) An applicant shall file with the city a verified application statement that, at a minimum, contains the following:

(1) The address of the applicant's operations center within the city, and the address of the applicant's corporate headquarters, if different from the address of the operations center;

(2) A witnessed signature of the applicant;

(3) Documentary evidence from an insurance company indicating that such insurance company has bound itself to provide the applicant with the insurance required by the article;

(4) Documentary evidence from a bonding or insurance company or a bank indicating that the bonding or insurance company or bank has bound itself to provide the applicant with the payment and performance bond or irrevocable letter of credit required by this article;

(5) Documentary evidence indicating that the applicant has applied for and received a current certificate of use, business tax receipt, occupational license, and similar permits and approvals, as applicable;

(6) An agreement to indemnify, hold harmless, and defend the city and the department of off-street parking, also referred to as the Miami Parking Authority ("MPA"), in a form acceptable to the city;

(7) The name of the person designated to receive any and all notices sent by the city to the operator, including their mailing address, telephone number, and e-mail address; and

(8) The name of the person designated to rebalance, remove, and/or relocate motorized scooter(s), including their mailing address, telephone number, and e-mail address.

(d) The application, including new applications and all applications in relation to any extension(s), renewal(s), or reinstatements of the pilot program, shall be accompanied by a non-refundable licensing fee of $50,000.00, which shall be used to offset any costs to the city and/or the department of off-street parking, also referred to as the MPA, related to enforcement of this section. Any excess licensing fees shall be designated for sidewalk/sidewalk area and/or street improvements within the pilot program area. Any extension, renewal or reinstatement of the pilot program will require all operators to comply with all requirements of the pilot program license, including payment of the fee, required insurance and bond.

(e) A pilot program license shall expire at the conclusion of the applicable pilot program.

(f) In the event that the pilot program is reinstated by vote of the city commission, pilot program license(s) may be renewed following the same process set forth in this section.

(g) The city manager, or his or her designee, reserves the right to cancel any license, if there is a violation of the article, violations involving public health, safety or general welfare, failure to maintain the required insurance or bonding or otherwise comply with this article, or for other good and sufficient cause as determined by the city manager in his or her sole discretion.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-12. Motorized scooter fee.

In addition to the non-refundable licensing fee set forth in section 8-11, operators shall remit to the city a motorized scooter fee in an amount of $1.00 per motorized scooter per day. The motorized scooter fee shall be calculated monthly based on the number of scooters authorized by the city of the current period. Payments shall be paid in full by the operators and received from the city within 30 days of when invoiced. During the duration of the pilot program, this motorized scooter fee shall be designated for sidewalk/sidewalk area, and/or street improvements within pilot program area.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-13. Motorized scooter parking.

(a) Motorized scooters must be parked on a sidewalk or other hard surface, beside a bicycle rack, or at a city-owned location. Motorized scooters may only be parked on private property with the permission of the property owner.

(b) Motorized scooters may not be parked at bicycle docking stations located on city and/or MPA property with an existing agreement.

(c) Motorized scooters must be upright while parked.

(d) Motorized scooters may not be parked in a manner that would impede normal and reasonable pedestrian access on a sidewalk or in any manner that would reduce the minimum clear width of a sidewalk to less than three feet.

(e) Motorized scooters may not be parked in a manner that would impede vehicular traffic.

(f) Motorized scooters may not be parked in a manner that would impose a threat to public safety or security.

(g) Motorized scooters may not be parked on a block where the sidewalk is at any point less than six feet in width, or on a block that does not have sidewalks.

(h) Motorized scooters may not be parked in a visibility triangle as defined in section 54-1 of this Code, measured in accordance with Section 3.8.4 of Miami 21 Code, the zoning ordinance of the City of Miami, Florida, as amended.

(i) Motorized scooters must be parked in a manner that is compliant with the applicable provisions of the Americans with Disabilities Act of 1990.

(j) Motorized scooters may not be parked in a way that blocks:

(1) Fire hydrants call boxes or other emergency facilities;

(2) Transit facilities;

(3) Loading spaces or zones;

(4) Passenger loading spaces or zones, or valet parking service areas;

(5) Railroad tracks or crossings;

(6) Disabled or prohibited parking zones;

(7) Street furniture that requires pedestrian access (for example, benches, parking pay stations, or bicycle/news racks);

(8) Window displays;

(9) Building entryways; or

(10) Vehicular driveways.

(k) Motorized scooters that are parked in an incorrect manner must be re-parked, removed and/or relocated by an operator within two hours of receiving notification from the city.

(l) The city or the MPA may identify designated motorized scooter parking zones in order to guide riders to preferred parking zones and assist with the orderly parking of motorized vehicles throughout the city.

(m) Motorized scooter users should provide a picture of the parked scooters at the end of their use so as to assure they are not blocking pedestrian walkways, parked in a hazardous manner, etc. In the event the city established any marked and designated motorized scooter parking corrals, scooters shall park in available spaces within such corrals.

(n) Parking violations, including disabled parking space violations, will be subject to remedies as are provided by state uniform traffic control laws, this article, and section 1-13 of the City Code, titled "General penalty." Violations may be issued to motorized scooter drivers or operators. Remedies are cumulative and not exclusive.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-14. Operations; remedies.

(a) No one under the age of 18 shall operate a motorized scooter. Persons under 18 years of age may not be motorized scooter users or passengers. No more than one person, 18 years of age or older, may ride a motorized scooter at any one time. There shall be a fine of $100.00 imposed for each instance that an unregistered person is found to be a user or passenger.

(b) Operators shall comply with all applicable rules, regulations, and laws, including any additional rules and regulations promulgated by the city manager, or his or her designee. Operators should encourage the use of a bicycle helmet that is properly fitted and is fastened securely upon the passenger's head by a strap, and that meets the federal safety standard for bicycle helmets, Final Rule, 16 C.F.R. Part 1203.

Motorized scooter users shall be subject to all rules, regulations, and laws, including any additional rules and regulations promulgated by the city manager, or his or her designee, applicable to motorized scooter user, except those which, by their very nature, can have no application. The city manager may consider the following factors in promulgating the rules: The National Association of City Transportation Officials recommendations, inclusive of, cities should require licensees/operators to come to agreement with the city on procedures and protocols for:

- Extreme weather (e.g. blizzards, hurricanes, floods)
- Emergencies (e.g. earthquakes, fires, etc.)
- Special events (e.g. marathons, events, parades, film shoots, etc.)
- Maintenance (e.g. debris and trash removal) for small vehicle parking zones. Operators shall at all times maintain a staffed operations center within the city;

(c) Operators shall maintain a 24-hour customer service phone number prominently posted on each motorized scooter for customers and citizens to report safety concerns, make complaints, ask questions, or request that a motorized scooter(s) be relocated.

(d) Operators shall provide the city with the contact information for someone who can rebalance, remove, and/or relocate motorized scooter(s). The operator shall rebalance, remove, and/or relocate a motorized scooter(s) within two hours of receiving notification from the city. An operator shall notify the city within 24 hours of a change in contact information.

(e) Any motorized scooter that is removed due to maintenance or safety issues shall be repaired before being returned to service.

(f) The city and/or MPA may, without prior notice to the operator or motorized scooter user, remove any motorized scooter(s) that is/are visibly damaged or non-functional, or blocking the public right-of-way, or located outside the pilot program area, and take it to a MPA or other city facility for storage, at the sole expense of an operator. The city and/or MPA shall charge a fee of not to exceed $25.00 per scooter for removal and storage. The city and/or the MPA shall

invoice the operator for the cost of removal and storage. Any motorized scooter that remains unclaimed with the city and/or MPA for five days is subject to sale pursuant to the procedures for abandoned or lost property set forth in F.S. § 705.103, or by any other method allowed by the laws of the State of Florida or the city.

(g) Motorized scooters must be well maintained and in good operating condition.

(h) Motorized scooters must be of a high quality and sturdily built to withstand the effects of weather and constant use for a period of no less than five years.

(i) Motorized scooters must be rebalanced on a daily basis.

(j) Motorized scooters shall not display any third-party advertising.

(k) Each motorized scooter shall be equipped with active global positioning system (GPS) technology.

(l) Each motorized scooter shall display the name of the operator, (and if it can be accommodated the local business address) along with a unique identification number. Each motorized scooter shall have an identification number ("ID NO. #") matching motorized scooter "QR code" and each digit within the ID NO. # must be at least two inches in height. Each ID NO. # must be placed on both sides of the vertical post of the scooter. This will aid reporting, monitoring, and compliance issues.

(m) Operators shall educate persons operating motorized scooters regarding the rules, regulations, and laws applicable to riding, operating, and parking a motorized scooter. An operator's mobile application must provide information notifying a motorized scooter user that:

(1) Motorized scooters may be operated on bike paths, bike lanes, including those within city parks, and the baywalk, streets, or sidewalks/sidewalk areas in a manner similar to bicycles;

(2) Motorized scooters are to be operated at a person's own risk, and that no representation is being made by the city as to the condition of any sidewalk, street, road, bike path, lane, baywalk, or sidewalk area;

(3) Motorized scooter users shall at all times yield to pedestrians and shall give an audible signal before overtaking and passing such pedestrian;

(4) The use of helmets while operating a motorized scooter is strongly encouraged;

(5) Operators will require every motorized scooter user to pass a motorized scooter safety education training as is provided by the operator;

(6) Operators will require every motorized scooter user to show or scan a photographic identification, which shall be a driver's license, a state identification, or a passport, which must indicate that every motorized scooter user is at least 18 years old;

(7) Operators must show every motorized scooter user a clear and legible map of the mandated geofenced areas within the city. For purposes of this article a geofenced area is simply a virtual fence or a perimeter around a physical location where motorized scooters are allowed to operate pursuant to this article; and

(n) Operators will implement marketing and targeted community outreach plans, at their own expense, and to the satisfaction of the city, to promote the use of motorized scooters, particularly in low-income communities, and provide education regarding the rules, regulations and laws applicable to riding, operating, and parking a motorized scooter, as well as safe, prudent, defensive, and courteous operation.

(o) Operators shall work with local businesses or other organizations to promote the use of helmets by persons operating motorized scooters through partnerships, promotional credits, and other incentives.

(p) Operators shall not place or attach any fixtures, structures, or personal property, other than a motorized scooter, in the public right-of-

way without the written permission of the city manager or his or her designee. Permission to place any items in the public right-of-way must be incorporated into the license.

(q) If the city, or MPA, incurs a cost in addressing or abating any violation of this article, or incurs any cost of repair or maintenance of any public property resulting from the use of motorized scooters, the operator shall reimburse the city for the full cost within 30 days of receiving written notification from the city.

(r) Motorized scooter users shall have all of the rights and duties applicable to a rider of a bicycle riders under F.S. § 316.2065, titled "Bicycle regulations," except the duties imposed by F.S. §§ 316.2065(2), (3)(b), and 3(c), which by their nature do not apply. However, this section may not be construed to prevent the city, through the exercise of its powers under F.S. § 316.008, from adopting an ordinance such as this article governing the operation of micromobility devices, motorized scooters on streets, highways, sidewalks, and sidewalk areas under the city's jurisdiction.

(s) Motorized scooter users, pursuant to subsection (r) above, who are in violation of this article, or in violation of applicable state laws including State Uniform Traffic Control Laws, will be subject to enforcement as provided by applicable Florida Laws, this article, and as set forth section 1-13 of the City Code, titled "General penalty." Remedies are cumulative and are not exclusive.

(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-15. Data sharing.

(a) Operators shall cooperate with the city in the collection and analysis of aggregated data concerning its operations. All data furnished under section 8-15 will be in a form reasonably acceptable to the chief information officer of the city. Operators shall provide the city with real-time information on all motorized scooters operating within its boundaries through a documented API. Operators shall provide the city manager, and his or her designee under section 8-15, the chief information officer, with the procedure and credentials to authenticate to the API.

(b) Operators shall publish to the API (1) the point location, and (2) identification number for each motorized scooter. The city shall be permitted to display real-time data provided via the API and may publish real-time motorized scooter availability data to the public.

(c) Operators shall also provide the following anonymized data for each trip record through the API:

Field Name	Format	Description
Company Name	[Company Name]	N/A
Trip Record Number	XXX0001, XXX0002, XXX0003, …	3-Letter Company Acronym + Consecutive Trip Number
Trip Duration	MM:SS	N/A
Trip Distance	Feet	N/A
Start Date	MM/DD/YYYY	N/A
Start Time	HH:MM:SS (00:00:00 -	N/A
End Date	MM/DD/YYYY	N/A
End Time	HH:MM:SS (00:00:00 -	N/A
Start Location	XY or Lat/Lon Coordinates XY or Lat/Lon Coordinates	N/A
End Location	XY or Lat/Lon Coordinates	N/A
Identification Number	xxxx1, xxxx2, …	Unique Identification for Every Motorized Scooter

Route: Licensee will create a GeoJSON Feature Collection where every observed point in the route, plus a time stamp, should be included. The route must include at least two points, a start point and end point. Additionally, it must include all possible GPS samples collected by a provider.

Standard Cost: The cost, in cents that it would cost to perform that trip in the standard operation of the system.

Actual Cost: The actual cost in cents paid by the user for the trip.

(d) Operators shall provide the city's department of innovation and technology with well-developed data through the mobility data standard ("MDS") in two different feeds: real-time/current information; and historical information. In-trip, route telemetry data is required for analysis in MDS Historical feeds, but may be excluded from the MDS Realtime feed. However, operators must provide scooter availability in real-time for enforcement purposes.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-16. Insurance requirements.

(a) An operator shall procure and keep in full force and effect no less than the insurance coverage required by this section through a policy or policies written by an insurance company or companies authorized to do business in Florida, who are rated A- (V) or better per A.M. Best's Key Rating Guide.

(b) The insured provisions of the policy or policies must list the city, the MPA, their officers and employees as additional insureds, and the coverage provisions must provide coverage for any loss or damage that may arise to any person or property by reason of the operation of a motorized scooter.

(c) An operator shall maintain the following insurance coverages:

(1) Commercial general liability with limits of $2,000,000.00 per occurrence, $5,000,000.00 policy aggregate affording coverage for claims resulting from bodily injury (including death) and property damage. The policy shall be written on a primary and noncontributory basis, and should insure against premises and operations, personal injury, and contingent and contractual exposures.

(2) Automobile/motorcycle liability affording coverage on all motor vehicles/scooters used in connection with the operations or activities contemplated under this article. The operator should furnish the city with a policy affording coverage on all owned autos and scooters, including coverage for hired and non-owned auto exposures, with a combined single limit for bodily injury (including death) and property damage of $2,000,000.00 per accident.

(3) Workers compensation subject to the statutory limits of the State of Florida.

(4) The city retains the right to require additional insurance coverage in connection with the activities performed by the operator under this article as may be determined by the city risk management director, considering the size of the fleet and other liability insurance related factors.

(5) Failure to maintain required insurance coverage is cause for immediate cancellation of the license by the city manager or his or her designee.

(d) Any insurance policy required by this section must be on file with the risk management department, in a form acceptable to the city manager, or his or her designee, prior to the issuance of a License under this article.

(e) Insurance required under this section must include a cancelation provision in which the insurance company is required to notify both the operator and city manager, or his or her designee, in writing not fewer than 30 days before cancelling any insurance policy or before making a reduction in coverage. An operator, upon receiving said notice, shall file with the risk management department, in a form acceptable to the city manager, or his or her designee, any and all replacement insurance policies prior to the cancelation or reduction of the same.

(f) An operator may not be self-insured.
(Ord. No. 13795, § 2, 10-11-18)

Sec. 8-17. Payment and performance bond or irrevocable letter of credit.

(a) An operator shall submit to the risk management department a payment and performance bond, in a format as prescribed in F.S. § 255.05, and in a form acceptable to the city manager, or his or her designee, prior to the issuance of a license under this article.

(b) Alternatively, an operator may post an irrevocable letter of credit issued by a bank authorized to transact business in Florida.

(c) The payment and performance bond or irrevocable letter of credit shall be in the sum of $50,000.00, and must list the operator as principal and be payable to the city.

(d) The payment and performance bond or irrevocable letter of credit must remain in effect for the duration of the license.

(e) Cancellation of the payment and performance bond or irrevocable letter of credit does not release the operator from the obligation to meet all requirements of this article and license. If the payment and performance bond or irrevocable letter of credit is cancelled, the license shall be suspended on the date of cancelation and the operator shall immediately cease operations until the operator provides the city manager, or his or her designee, with a payment and performance bond or irrevocable letter of credit that meets the requirements of this section.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-18. Indemnification.

Operators shall indemnify, defend, and hold harmless the city, the MPA, jointly and severally, and their respective officers, employees, agents and instrumentalities from any and all liability, losses or damages, including any and all attorneys' fees and costs of defense, which the city and its officers, employees, agents and instrumentalities may incur as a result of claims, demands, suits, causes of actions or proceedings of any kind or nature including, but not limited to, personal injury or wrongful death, property loss or damage, the conditions and features on all sidewalks and sidewalk areas, bike lanes or bike paths, streets, bay walks, or other areas within the city on which a motorized scooter is operated, to the extent arising out of or in any way connected with the operation of the motorized scooter service or use of a motorized scooter. Operators shall pay all claims and losses in connection therewith and shall investigate and defend all claims, suits or actions of any kind or nature in the name of the city, where applicable, including administrative, trial, and appellate proceedings, and shall pay all costs, judgments, and attorneys' fees which may issue thereon. Operators shall expressly understand and agree that any insurance protection required by this article, or otherwise provided or secured by an operator, shall in no way limit the responsibility to indemnify, defend and hold harmless the city, the MPA, or their officers, employees, agents and instrumentalities as required by this section. The obligation to indemnify, defend, and hold harmless will survive the revocation, cancellation, or expiration of a license. The operators will acknowledge on the license application form, which will include this indemnification in substantially the language provided by this section, that the granting of the license is, in part, conditioned on the granting of this indemnification which is knowingly and voluntarily given by the operators.

Motorized scooters are only authorized to be used in the pilot program area of commission district 2. Motorized scooter use outside the pilot program area is not lawful, is not authorized and operators shall defend, hold harmless and indemnify the city and MPA for every, any, and all liabilities, losses or damages, including any and all attorneys' fees and costs of defense, which the city and its officers, employees, agents and instrumentalities may incur as a result of claims, demands, suits, causes of actions or proceedings of any kind or nature for motorized scooters operating outside the pilot program area including, without limitation, those listed in this section and the impoundment, seizure, and possible sale of motorized scooters operating anywhere outside of the pilot program area in

the city. In addition to other remedies available the city may make a claim against the payment and performance bond or letter of credit submitted by the operator and/or effectuate a revocation of their license.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Sec. 8-19. Expiration.

The motorized scooter pilot program will, by virtue of this two-month extension, commence on November 1, 2019 and automatically terminate on January 1, 2020. Any further extension of this pilot program may be approved by resolution, subject to pilot program limitations set forth in section 2-33 of the City Code, as amended. This will not preclude the city from making this a permanent program.
(Ord. No. 13795, § 2, 10-11-18; Ord. No. 13862, § 2, 9-26-19)

Chapter 9

RESERVED

Chapter 10

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Law review references—Note as to revoked building permits and equitable estoppel in Florida, 15 Fla. L. Rev. 418; comment as to rescission of building permits and equitable estoppel, 16 Fla. L. Rev. 649.

State law references—Licensing of construction industry, F.S. ch. 489; building construction standards, F.S. ch. 553; plumbing control act, F.S. § 553.01 et seq.; electrical code, F.S. § 553.15 et seq.; state minimum building codes, F.S. § 553.70 et seq.

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Sec. 10-155. Energy and water retuning reports.
Sec. 10-156. Retuning schedule.
Sec. 10-157. Retuning exemption.
Sec. 10-158. Permit fee credit.
Sec. 10-159. Sharing of data.
Sec. 10-160. Annual report and analysis.
Sec. 10-161. Enforcement.
Secs. 10-162—10-180. Reserved.

Article XIII. Reserved

ARTICLE I. IN GENERAL*

DIVISION 1. BUILDING CODE

The "South Florida Building Code" and the "South Florida Building Code, Dade County edition", will remain in effect, and enforced in the city, for all plans submitted and pending prior to the date the Florida Building Code was implemented. All plans submitted after the Florida Building Code was implemented shall be governed by the "Florida Building Code, as amended" and Chapter 8 of the Code of Ordinances of Miami-Dade County, Florida, as amended (hereinafter referred to as "Chapter 8 of the County Code"). Following implementation of the "Florida Building Code," the "Florida Building Code, as amended" and "Chapter 8 of the County Code" shall be enforced in the city. A copy of this Building Code is on file in the City Clerk's office.

Any and all liens referenced or imposed based on the foregoing provision or Chapter 8 of the County Code shall be treated as special assessment liens against the subject real property, and until fully paid and discharged, shall remain liens equal in rank and dignity with the lien of ad valorem taxes, and shall be superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved. Interest at the rate of 8% per annum shall accrue to such delinquent accounts. Such liens shall be enforced by any of the methods provided in Chapter 86, Florida Statutes, in the alternative, foreclosure proceedings may be instituted and prosecuted under the provisions applicable to practice, pleading and procedure for the foreclosure of mortgages on real estate set forth in state statutes, or may be foreclosed pursuant to Chapters 170 and 173, Florida Statutes, or the collection and enforcement of payment thereof may be accomplished by any other method authorized by law. The property owner shall pay all costs of collection, including reasonable attorney fees, incurred in the collection of fees, service charges, penalties and liens imposed by virtue of this Section.

This Division, as adopted, shall be construed as amended for purposes of application and incorporation by reference of to the Florida Building Code, as amended. All references to administrative codes shall be presumed to be as amended.

Sec. 10-1. Scope and application.

The provisions of this Code Division shall apply to the construction, alteration, relocation, enlargement, replacement, repair, equipment, use and occupancy, location, maintenance, removal and demolition of every building or structure or any appurtenances connected or attached to such buildings or structures.

Exceptions: Detached one-and two-family dwellings and multiple single-family dwellings (townhouses) not more than three stories above grade plane in height with a separate means of egress, and their accessory structures not more than three stories above grade plane in height, shall comply with the Florida Building Code,

*__Editor's note—__Ord. No. 14279, § 2, adopted May 9, 2024, repealed and reenacted article I in its entirety to read as herein set out. Formerly, article I, sections 10-1-10-10-9 pertained to similar subject matter, and derived from the Code of 1967, §§ 9-1, 9-2; the Code of 1980, §§ 10-1, 10-2; Ord. No. 11633, § 2, adopted March 31, 1998; Ord. No. 11725, § 1, adopted November 17, 1998; Ord. No. 11795, § 2, adopted May 11, 1999; Ord. No. 12030, § 2, adopted March 8, 2001; Ord. No. 12155, § 1, adopted November 15, 2001; Ord. No. 12237, § 1, adopted June 13, 2002; Ord. No. 12663, § 1, adopted March 10, 2005; Ord. No. 12834, § 2, adopted September 12, 2006; Ord. No. 12950, § 2, adopted October 25, 2007; Ord. No. 12978, § 2, adopted May 8, 2008; Ord. No. 13009, § 2, adopted July 10, 2008; Ord. No. 13036, § 2, adopted November 13, 2008; Ord. No. 13108, § 3, adopted October 8, 2009; Ord. No. 13200, § 2, adopted September 27, 2010; Ord. No. 13313, § 2, adopted February 23, 2012; Ord. No. 13365, § 2, adopted March 14, 2013; Ord. No. 13391, § 2, adopted June 13, 2013; Ord. No. 13569, § 1, adopted October 22, 2015; Ord. No. 13595, § 2, adopted February 11, 2016; Ord. No. 13630, § 2, adopted September 8, 2016; Ord. No. 13658, § 2, adopted February 9, 2017; Ord. No. 13717, § 2, adopted December 14, 2017; Ord. No. 13762, § 2, adopted April 12, 2018; Ord. No. 13784, § 2, adopted September 13, 2018; Ord. No. 13800, § 2, adopted October 25, 2018; Ord. No. 13929, § 2, adopted October 8, 2020; Ord. No. 13935, § 2, adopted October 22, 2020; Ord. No. 13951, § 2, adopted December 10, 2020; Ord. No. 13969, § 2, adopted February 25, 2021; Ord. No. 13970, § 2, adopted February 25, 2021; Ord. No. 14062, § 2, adopted April 28, 2022; Ord. No. 14192, § 2, adopted July 27, 2023; Ord. No. 14207, § 2, adopted September 28, 2023, and Ord. No. 14240, § 2, adopted December 14, 2023.

The text of article I, divisions 1 and 2, sections 10-1—10-18, has been codified as it appears in Ord. No. 14279, § 2, adopted May 9, 2024.

Residential. Code requirements that address snow loads and earthquake shall not be utilized or enforced.

a. Provisions in the appendices shall not apply unless specifically adopted. Florida Building Code, Residential Construction standards or practices which are not covered by Florida Building Code, Residential volume shall be in accordance with the provisions of Florida Building Code, Building.

b. Intent. The purpose of this Code is to establish the minimum requirements to provide a reasonable level of safety, public health and general welfare through structural strength, means of egress facilities, stability, sanitation, adequate light and ventilation, energy conservation, and safety to life and property from fire and other hazards attributed to the built environment and to provide a reasonable level of safety to fire fighters and emergency responders during emergency operations.

c. Quality Control. Quality control of materials and workmanship is not within the purview of this Code except as it relates to the purposes stated herein.

d. Warranty and Liability. The Permitting, plan review or inspection of any building, system or plan by this jurisdiction, under the requirements of this Code, shall not be construed in any court as a warranty of the physical condition of such building, system or plan or their adequacy. This jurisdiction shall not be liable in tort for damages or hazardous or illegal condition or inadequacy in such building, system or plan, nor for any failure of any Component of such, which may occur subsequent to such inspection or Permitting.

e. Referenced Codes. The other Codes listed in this Section and referenced elsewhere in this Code shall be considered part and parcel of the requirements of this Code to the prescribed extent of each such reference.

f. Gas. The provisions of the Florida Building Code, Fuel Gas shall apply to the installation of gas piping from the point of delivery, gas appliances and related accessories as covered in this Code. These requirements apply to gas piping systems extending from the point of delivery to the inlet connections of appliances and the installation and operation of residential and commercial gas appliances and related accessories.

g. Mechanical. The provisions of the Florida Building Code, Mechanical shall apply to the installation, alterations, repairs and replacement of mechanical systems, including equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air-conditioning and refrigeration systems, incinerators and other energy related systems.

h. Plumbing. The provisions of the Florida Building Code, Plumbing shall apply to the installation, alteration, repair and replacement of plumbing systems, including equipment, appliances, fixtures, fittings and appurtenances, and where connected to a water or sewage system and all aspects of a medical gas system.

i. Property maintenance: Reserved

j. Fire prevention. For provisions related to fire prevention, refer to the Florida Fire Prevention Code. The Florida Fire Prevention Code shall apply to matters affecting or relating to structures, processes and premises from the hazard of fire and explosion arising from the storage, handling or use of structures, materials or devices; from conditions hazardous to life, property or public welfare in the occupancy of structures or premises; and from the construction, extension, repair, alteration or removal of fire suppression, automatic sprinkler systems and alarm systems or fire hazards in the structure or on the premises from occupancy or operation.

k. Energy. The provisions of the Florida Building Code, Energy Conservation shall

apply to all matters governing the design and construction of buildings for energy efficiency.

l. Existing Buildings. The provisions of the Florida Building Code, Existing Building shall apply to matters governing the repair, alteration, change of occupancy, addition to and relocation of existing buildings.

m. Accessibility. For provisions related to accessibility, refer to the Florida Building Code, Accessibility.

n. Manufactured buildings. For additional administrative and special Code requirements, see Section 458, Florida Building Code, Building, and Rule 61-41 F.A.C.

o. Construction Safety Standards. OSHA standards, as amended, are herein incorporated by reference. The Building Official may issue a Stop-Work Order or deny the issuance of a Certificate of Completion or Temporary Certificate of Completion upon the discovery of any violations of Occupational Safety and Health Administration standards or Chapter 33, Florida Building Code.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-2. Applicability in general.

Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable. Where, in any specific case, different Sections of this Code specify different materials, methods of construction or other requirements, the most restrictive shall govern.

a. The Florida Building Code does not apply to, and no Code Enforcement action shall be brought with respect to, zoning requirements, land use requirements and owner specifications or programmatic requirements which do not pertain to and govern the design, construction, erection, alteration, modification, repair or demolition of public or private buildings, structures or facilities or to programmatic requirements that do not pertain to enforcement of the Florida Building Code. Additionally, this Division may not administer or enforce the Florida Building Code, Building to prevent the citing of any publicly owned facility, including, but not limited to, correctional facilities, juvenile justice facilities, or state universities, community colleges, or public education facilities, as provided by law.

b. Building. The provisions of the Florida Building Code shall apply to the construction, erection, alteration, modification, repair, equipment, use and occupancy, location, maintenance, removal and demolition of every public and private building, structure or facility or floating residential structure, or any appurtenances connected or attached to such buildings, structures or facilities. Additions, alterations, repairs and changes of use or occupancy group in all buildings and structures shall comply with the provisions provided in the Florida Building Code, Existing Building. The following buildings, structures and facilities are exempt from the Florida Building Code as provided by law, and any further exemptions shall be as determined by the legislature and provided by law:

1. Building and structures specifically regulated and preempted by the federal government.

2. Railroads and ancillary facilities associated with the railroad.

3. Nonresidential farm buildings on farms.

4. Temporary buildings or sheds used exclusively for construction purposes.

5. Mobile or modular structures used as temporary offices, except that the provisions of Part II (Sections 553.501-553.513, Florida Statutes) relating to accessibility by persons with disabilities shall apply to such mobile or modular structures. Permits shall be required for structural support and tie-down, electric supply and all other such

utility connections to such mobile or modular structures as required by this jurisdiction.

6. Those structures or facilities of electric utilities, as defined in Section 366.02, Florida Statutes, which are directly involved in the generation, transmission, or distribution of electricity.

7. Temporary sets, assemblies, or structures used in commercial motion picture or television production, or any sound-recording equipment used in such production, on or off the premises.

8. Chickees constructed by the Miccosukee Tribe of Indians of Florida or the Seminole Tribe of Florida. As used in this paragraph, the term "chickee" means an open-sided wooden hut that has a thatched roof of palm or palmetto or other traditional materials, and that does not incorporate any electrical, plumbing, or other non-wood features.

9. Family mausoleums not exceeding 250 square feet (23 m^2) in area which are prefabricated and assembled on site or preassembled and delivered on site and have walls, roofs, and a floor constructed of granite, marble, or reinforced concrete.

10. Temporary housing provided by the Department of Corrections to any prisoner in the state correctional system.

11. A building or structure having less than 1,000 square feet (93 m^2) which is constructed and owned by a natural person for hunting and which is repaired or reconstructed to the same dimension and condition as existed on January 1, 2011, if the building or structure:

    A. Is not rented or leased or used as a principal residence;

    B. Is not located within the 100-year flood plain according to the Federal Emergency Management Agency's current Flood Insurance Rate Map;

    C. Is not connected to an off-site electric power or water supply; and

    D. A drone port as defined in Section 330.41(2), Florida Statutes.

c. In addition to the requirements of Sections 553.79 and 553.80, Florida Statutes, facilities subject to the provisions of Chapter 395, Florida Statutes, and Part II of Chapter 400, Florida Statutes, shall have facility plans reviewed and construction surveyed by the state agency authorized to do so under the requirements of Chapter 395, Florida Statutes, and Part II of Chapter 400, Florida Statutes, and the certification requirements of the federal government.

d. Residential buildings or structures moved into or within a County or Municipality shall not be required to be brought into compliance with the state minimum building Code in force at the time the building or structure is moved, provided:

    1. The building or structure is structurally sound and in occupiable condition for its intended use;

    2. The occupancy use classification for the building or structure is not changed as a result of the move

    3. The building is not substantially remodeled;

    4. Current Fire Code requirements for ingress and egress are met;

    5. Electrical, gas and plumbing systems meet the codes in force at the time of construction and are operational and safe for reconnection; and

    6. Foundation plans are sealed by a professional engineer or architect licensed to practice in this state, if required by the Florida Building

Code, Building for all residential buildings or structures of the same occupancy class.

e. The Building Official shall apply the same standard to a moved residential building or structure as that applied to the remodeling of any comparable residential building or structure to determine whether the moved structure is substantially remodeled. The cost of the foundation on which the moved building or structure is placed shall not be included in the cost of remodeling for purposes of determining whether a moved building or structure has been substantially remodeled.

f. This Section does not apply to the jurisdiction and authority of the Department of Agriculture and Consumer Services to inspect amusement rides or the Department of Financial Services to inspect state-owned buildings and boilers. See Section 102.2.2, Florida Building Code.

1. This Section does not apply to swings and other playground equipment accessory to a one- or two-family dwelling except for electrical service to such playground equipment shall be in accordance with Chapter 27, Florida Building Code. Application of references. References to Chapter or Section numbers, or to provisions not specifically identified by number, shall be construed to refer to such Chapter, Section or provision of this Code.

2. Referenced Codes and standards. The Codes and standards referenced in this Code shall be considered part of the requirements of this Code to the prescribed extent of each such reference and as further regulated in Sections 102.4.1 and 102.4.2, Florida Building Code.

3. Conflicts. Where conflicts occur between provisions of this Division and referenced standards, the provisions of the Florida Building Code or other National and State Codes shall apply.

g. Existing structures. The legal occupancy of any structure existing on the date of adoption of this Division shall be permitted to continue without change, except as otherwise specifically provided in this Division, the Florida Building Code, Existing Building, or the Florida Fire Prevention Code.

1. Buildings not previously occupied. A building or portion of a building that has not been previously occupied or used for its intended purpose in accordance with the laws in existence at the time of its completion shall comply with the provisions of the Florida Building Code, Building or Florida Building Code, Residential, as applicable, for new construction or with any current Permit for such occupancy.

2. Buildings previously occupied. The legal occupancy of any building existing on the date of adoption of this Division shall be permitted to continue without change, except as otherwise specifically provided in this Division, the Florida Fire Prevention Code, or as is deemed necessary by the Building Official for the general safety and welfare of the occupants and the public.

h. Relocation of manufactured buildings. Relocation of an existing manufactured building does not constitute an alteration.

1. A relocated building shall comply with wind speed requirements of the new location, using the appropriate wind speed map. If the existing building was manufactured in compliance with the Standard Building Code (prior to March 1, 2002), the wind speed map of the Standard Building Code shall be applicable. If the existing building was

manufactured in compliance with the Florida Building Code (after March 1, 2002), the wind speed map of the Florida Building Code shall be applicable.

2. A relocated building shall comply with the flood hazard area requirements of the new location, if applicable.

i. Existing mechanical equipment. This Division may not require that existing mechanical equipment located on or above the surface of a roof be installed in compliance with the requirements of the Florida Building Code except during reroofing when the equipment is being replaced or moved and is not in compliance with the provisions of the Florida Building Code relating to roof-mounted mechanical units.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-3. Administration and enforcement.

a. For the purposes of this Division, the Building Department shall be comprised of the Director of Building, Building Official, Deputies and all other employees who have the authority to enforce the Florida Building Code.

b. The City of Miami Department charged with the enforcement of this Division and Code is the City of Miami Building Department. The official in charge of Building Code enforcement is the Building Official.

c. Appointment. The Building Official shall be appointed by the City Manager or Designee.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-4. Duties of the building official.

The Building Official is hereby authorized and directed to enforce the provisions of this Code and shall faithfully perform these duties without interference; further, shall not be threatened, coerced or otherwise influenced by any person pursuant to applicable Florida law, including but not limited to Section 468.604, Florida Statutes. The Building Official shall have the authority to render interpretations of the Building Code, this Chapter and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this Division. Such policies and procedures shall not have the effect of waiving requirements specifically provided for by City or State law.

Deputies and employees so designated under Section 10.3.3 of the Code by the Building Official will be referred to in this Section interchangeably using the term Building Official for purposes of plans review, inspections and other functions. The Building Official or Designee shall remain the only parties to have authority to interpret enforcement requirements under this Code and the Florida Building Code and determine procedures which shall be carried out by designated staff.

a. Departmental operations. The Building Official is authorized to establish policies and procedures deemed necessary for general business operations for enforcement; for the processing of Permit applications; for the scheduling and performance of inspections; and for any other purpose consistent with the enforcement of the Florida Building Code or any federal, state or local regulations.

b. Applications and Permits. The Building Official shall receive applications, review construction documents and issue Permits for the erection, and alteration, demolition and moving of buildings and structures, inspection of the premises for which such Permits have been issued and enforce compliance with the provisions under the Florida Building Code and this Code.

1. Determination of substantially improved or substantially damaged existing buildings and structures in flood hazard areas. For applications for reconstruction, rehabilitation, repair, alteration, addition or other improvement of existing buildings or structures located in flood hazard

areas, the Building Official shall determine if the proposed work constitutes substantial improvement or repair of substantial damage. Where the Building Official determines that the proposed work constitutes substantial improvement or repair of substantial damage, and where required by this Code, the Building Official shall require the building to meet the requirements of Section 1612, Florida Building Code or R322 of the Florida Building Code, Residential, as applicable.

c. Notices and orders. The Building Official shall issue all necessary notices or orders to ensure compliance with this Code and Florida law. Notices and orders may be sent via electronic mail or United States Postal Service to the owner of the property and the Contractor listed on the Permit, or as otherwise provided with more specificity by the Code. It is the responsibility of the Permit holder to keep contact information up to date. Non-receipt of notices or orders due to incorrect or outdated contact information shall not exempt compliance with nor extend prescribed deadlines.

d. Inspections. The Building Official shall make all of the required inspections, or the Building Official shall have the authority to accept reports of inspections by approved agencies or individuals. Reports of such inspections shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual. The Building Official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

e. Identification. The Building Official shall carry proper identification when inspecting structures or premises in the performance of duties under this Code.

f. Right of entry. Where it is necessary to make an inspection to enforce the provisions of this Code, or where the Building Official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this Code which makes the structure or premises unsafe, dangerous or hazardous, the Building Official is authorized to enter the structure or premises at reasonable times to inspect or to perform the duties imposed by this Code, provided that if such structure or premises be occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the Building Official shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the Building Official shall have recourse to the remedies provided by law to secure entry.

g. Department records. The Building Official shall keep official records of applications received, Permits and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for the period required for retention of public records per Chapter 119, Florida Statutes.

h. Liability. The Building Official, member of the board of appeals or employee charged with the enforcement of this Code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this Code or other pertinent law or ordinance, shall not thereby be civilly or criminally rendered liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. Any suit instituted against an officer or employee because of an act performed by that officer or employee in

the lawful discharge of duties and under the provisions of this Code shall be defended by legal representative of the jurisdiction until the final termination of the proceedings. The Building Official or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of this Code.

i. Approved materials and equipment. Materials, equipment and devices approved by the Building Official shall be constructed and installed in accordance with such approval. The use of used materials that meet the requirements of this Code for new materials is permitted. Used equipment and devices shall not be reused unless approved by the Building Official.

j. Modifications. Wherever there are practical difficulties involved in carrying out the provisions of this Code, the Building Official shall have the authority to grant modifications for individual cases, upon application of the owner or owner's representative, provided the Building Official shall first find that the individual special request makes the strict letter of this Code impractical and the modification is in compliance with the intent and purpose of this Code and that such modification does not lessen health, accessibility, life and fire safety, or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the department of building safety.

Flood hazard areas. The Building Official shall coordinate with the floodplain administrator to review requests submitted to the Building Official that seek approval to modify the strict application of the flood resistant construction requirements of the Florida Building Code to determine whether such requests require the granting of a variance pursuant to Section 117, Florida Building Code, also see Chapter 20 of this Code.

k. Alternative materials, design and methods of construction and equipment.

The provisions of this Code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this Code, provided that any such alternative has been approved. An alternative material, design or method of construction shall be approved where the Building Official finds that the proposed alternative meets all of the following:

1. The alternative material, design or method of construction is satisfactory and complies with the intent of the provisions of this Code; and
2. The material, method or work offered is, for the purpose intended, not less than the equivalent of that prescribed in this Code as it pertains to the following:
   A. Quality.
   B. Strength.
   C. Effectiveness.
   D. Fire resistance.
   E. Durability.
   F. Safety.

   Where the alternative material, design or method of construction is not approved, the Building Official shall respond in writing, stating the reasons why the alternative was not approved.
3. Research reports. Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this Code, shall consist of valid research reports from approved sources.
4. Tests. Whenever there is insufficient evidence of compliance with the provisions of this Code, or evidence that a material or method does not conform to the requirements of this Code, or in order to substantiate claims for alternative

materials or methods, the Building Official shall have the authority to require tests as evidence of compliance to be made at no expense to the jurisdiction. Test methods shall be as specified in this Code or by other recognized test standards. In the absence of recognized and accepted test methods, the Building Official shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the Building Official for the period required for retention of public records.

l. Requirements not covered by Code. The Building Official shall have the authority to establish requirements necessary for strength, stability, or proper operation of an existing or proposed building, structure, electrical, gas, mechanical or plumbing system, or for the public safety, health and general welfare, if they are not specifically covered by this or other technical Codes.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-5. Permits.

Permits Required. Any owner or owner's authorized agent who intends to construct, enlarge, alter, repair, move, demolish or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any impact-resistant coverings, electrical, gas, mechanical or plumbing system, the installation of which is regulated by this Code, or to cause any such work to be performed, shall first make application to the Building Official and obtain the required Permit.

a. Annual Facility Permit. In lieu of an individual Permit for each alteration to an existing electrical, gas, mechanical, plumbing or interior nonstructural office system(s), the Building Official is authorized to issue an annual Permit for any occupancy to facilitate routine or emergency service, repair, refurbishing, minor renovations of service systems or manufacturing equipment installations/relocations. The Building Official shall be notified of major changes and shall retain the right to make inspections at the facility site as deemed necessary. An Annual Facility Permit shall be assessed with an annual fee and shall be valid for one year from date of issuance. A separate Permit shall be obtained for each facility and for each construction trade, as applicable. The Permit application shall contain a general description of the parameters of work intended to be performed during the year.

1. Annual Facility Permit records. The person to whom an annual Permit is issued shall keep a detailed record of alterations made under such annual Permit. The Building Official shall have access to such records at all times or such records shall be filed with the Building Official as designated.

2. Food Permit. In accordance with Section 500.12, Florida Statutes, a food Permit from the Department of Agriculture and Consumer Services is required of any person who operates a food establishment or retail store.

3. Public swimming pool. The Department may not issue a building Permit to construct, develop, or modify a public swimming pool without proof of application, whether complete or incomplete, for an operating Permit pursuant to Section 514.031, Florida Statutes. A Certificate of Completion or Occupancy may not be issued until such operating Permit is issued. The Department shall conduct their review of the building Permit application upon filing and in accordance with Chapter 553, Florida Statutes. The Department may confer with the Department of Health, if necessary, but may not delay the building Permit applica-

tion review while awaiting comment from the Department of Health.

b. Work exempt from Permit. Exemptions from Permit requirements of this Code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this Code or any other laws or ordinances of this jurisdiction, to include work in any special flood hazard area. Exemptions granted under this Section do not relieve the owner or Contractor from their duty to comply with applicable provisions of the Florida Building Code, and requirements of the local floodplain management ordinance.

1. Ordinary Minor repairs. Ordinary minor repairs may be made with the approval of the Building Official without a Permit, provided the repairs do not include the cutting away of any wall, partition or portion thereof, the removal or cutting of any structural beam or load-bearing support, or the removal or change of any required means of egress, or rearrangement of parts of a structure affecting the egress requirements; nor shall ordinary repairs include addition to, alteration of, replacement or relocation of any standpipe, water supply, sewer, drainage, drain leader, gas, soil, waste, vent or similar piping, electric wiring systems or mechanical equipment or other work affecting public health or general safety, and such repairs shall not violate any of the provisions of the technical Codes

   Permits shall not be required for the following:

   A. Building:
      i. Wallpapering and similar finish work on interior vertical surfaces.
      ii. Painting one- and two-family dwellings and buildings not more than three stories in height.
      iii. Floor finishes in one- and two-family dwellings.
      iv. Cabinets and countertops in one- and two-family dwellings.
      v. Shade cloth structures constructed for nursery or agricultural purposes, not including service systems.
      vi. Swings and other playground equipment accessory to detached one- and two-family dwellings.
      vii. Non fixed and movable interior fixtures, cases, racks, counters and partitions not over 5 feet 9 inches (1753 mm) in height.
      viii. Ordinary minor repairs (defined in Section 105.2.2, Florida Building Code), provided that such repairs shall not violate any of the provisions of the technical Codes.

   B. Electrical: Repairs and maintenance, including the replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles are exempt from Permit requirements.

      The following work is also exempt from Permit requirements:

      i. Replacement of lamps/ bulbs.
      ii. Replacement of damaged receptacles outlets, switches lights, circuit breakers by licensed electrical Contractors.
      iii. Replacement of electrical cord equipment with male attachment plug.

iv. Events portable generators 5kw or less.

v. Radio antenna.

vi. Wireless burglar alarm system / cameras.

vii. Trouble shooting interior/ exterior electrical wiring or equipment.

viii. Wireless smoke detectors with a 10- year life lithium battery.

ix. Courtesy inspection to reactivate power disconnected by FPL.

x. Ceiling fans installed or replaced by a licensed Contractor.

xi. Decorative/temporary lighting & displays for no more than 90 days.

xii. Above ground prefabricated whirlpool tubs.

xiii. Ordinary minor repairs (defined in Section 105.2.2, Florida Building Code), provided that such repairs shall not violate any of the provisions of the technical Codes.

Radio and television transmitting stations: The provisions of this Code shall not apply to electrical equipment used for radio and television transmissions but do apply to equipment and wiring for a power supply and the installations of towers and antennas.

Temporary testing systems: A Permit shall not be required for the installation of any temporary system required for the testing or servicing of electrical equipment or apparatus.

C. Gas:

i. Portable heating appliance.

ii. Replacement of any minor part that does not alter approval of equipment or make such equipment unsafe.

D. Mechanical:

i. Portable heating appliance.

ii. Portable ventilation equipment.

iii. Portable cooling unit.

iv. Steam, hot or chilled water piping within any heating or cooling equipment regulated by this Code.

v. Replacement of any part that does not alter its approval or make it unsafe.

vi. Portable evaporative cooler.

vii. Self-contained refrigeration system containing 10 pounds (4.54 kg) or less of refrigerant and actuated by motors of 1 horsepower (0.75 kW) or less.

viii. The installation, replacement, removal or metering of any load management control device.

ix. Repair work performed by licensed mechanical.

x. Contracts that do not exceed $2,500.00 in value of materials and labor.

xi. The following work is also exempt from Permit requirements regardless of the value of materials and

labor when performed by a licensed mechanical Contractor:

1. Repair of air conditioning duct.
2. Repair or replacement of coil, compressor or refrigerant piping by licensed air conditioning or mechanical Contractor.
3. Repair or replacement of non-combustion heating by licensed air conditioning or mechanical Contractors.
4. Repair or replacement ventilation fans.
5. Ordinary minor repairs (defined in Section 10.5 of this Code), provided that such repairs shall not violate any of the provisions of the technical codes.

E. Plumbing:

i. The stopping of leaks in drains, water, soil, waste or vent pipe, provided, however, that if any concealed trap, drainpipe, water, soil, waste or vent pipe becomes defective and it becomes necessary to remove and replace the same with new material, such work shall be considered as new work and a Permit shall be obtained and inspection made as provided in this Code.

ii. The clearing of stoppages or the repairing of leaks in pipes, valves or fixtures and the removal and reinstallation of water closets, provided such repairs do not involve or require the replacement or rearrangement of valves, pipes or fixtures.

iii. Repair work performed by licensed plumbing contracts that does not exceed $2,500.00 in value of materials and labor.

iv. The following work is also exempt from Permit requirements regardless of the value of materials and labor when performed by a licensed plumbing Contractor:

1. Repair or replacement of gas appliances, other than water heater, by licensed plumbing Contractors.
2. Exact change out of an above ground LP tank by LPG licensed Contractor.
3. Repair irrigation system.
4. Repair/replacement of faucets in one- and two-family dwellings.
5. Repair/replacement of water closet/bidet/ fixtures only in one- and two-family dwellings.
6. Repair/replacement of sink/lavatory/ fixtures only in one- and two-family dwellings.

7. Repair/replacement of residential pool equipment other than a pool heater.
8. Repair/replacement of shut off valve on a domestic water line.
9. Repair/replacement of residential sink garbage disposal in one- and two-family dwellings.
10. Repair/replacement of residential dishwasher.
11. Above ground prefabricated whirlpool tubs.
12. Ordinary minor repairs (defined in this Subsection), provided that such repairs shall not violate any of the provisions of the technical codes.

F. Emergency repairs. Where equipment replacements and repairs must be performed in an emergency situation, the Permit application shall be submitted within the next working business day to the Building Official.

G. Public service agencies. A Permit shall not be required for the installation, alteration or repair of generation, transmission, distribution or metering or other related equipment that is under the ownership and control of public service agencies by established right.

c. Application for Permit.

1. To obtain a Permit, the applicant shall first file an application in writing on a form furnished by the Building Department for that purpose.
2. Permit application forms shall be in the format prescribed by a local administrative board, if applicable, and must comply with the requirements of Sections 713.135(5) and (6), Florida Statutes.
3. Each application shall be inscribed with the date of application, and the Code in effect as of that date. For a building Permit for which an application is submitted prior to the effective date of the Florida Building Code, the state minimum building Code in effect in the Permitting jurisdiction on the date of the application governs the permitted work for the life of the Permit and any extension granted to the Permit.
4. Effective October 1, 2017, the Department shall post each type of building Permit application on its website. Completed applications must be able to be submitted electronically to the appropriate building department. Accepted methods of electronic submission include, but are not limited to, e-mail submission of applications in portable document format or submission of applications through an electronic fill-in form available on the building department's website or through a third-party submission management software. Payments, attachments, or drawings required as part of the application may be submitted in person in a nonelectronic format, at the discretion of the Building Official.

d. Action on application. The Building Official shall examine or cause to be examined applications for Permits and amendments thereto within a reasonable time after filing. If the application or the construction documents do not conform to the requirements of pertinent laws,

the Building Official shall reject such application in writing, stating the reasons therein. If the Building Official is satisfied that the proposed work conforms to the requirements of this Code and laws and ordinances applicable thereto, the Building Official shall issue a Permit as soon as practicable. When authorized through contractual agreement with a school board, in acting on applications for Permits, the Building Official shall give first priority to any applications for the construction of, or addition or renovation to, any school or educational facility.

If a state university, Florida college or public school district elects to use the Department's enforcement division, fees charged by the Department for enforcement of the Florida Building Code on buildings, structures, and facilities of state universities, state colleges, and public school districts shall not be more than the actual labor and administrative costs incurred for plans review and inspections to ensure compliance with the Code.

e. Design professional required. No Permit may be issued for any building construction, erection, alteration, modification, repair, or addition unless the following documents (if applicable to the construction for which the Permit issued) are prepared by or under the direction of an engineer registered under Chapter 471. Florida Statutes, or an architect registered under Chapter 481, Part I Florida Statutes:

1. Plumbing documents for any new building or addition which requires a plumbing system with more than 250 fixture units, or which costs more than $125,000.
2. Fire sprinkler documents for any new building or addition which includes a fire sprinkler system which contains 50 or more sprinkler heads. Personnel as authorized by Chapter 633 Florida Statutes, may design a new fire protection system of 49 or fewer sprinklers; may design the alteration of an existing fire sprinkler system if the alteration consists of the relocation, addition or deletion of 249 or fewer sprinklers and the addition of up to 49 sprinklers, as long as the cumulative total number of fire sprinklers being added, relocated, or deleted does not exceed 249 notwithstanding the size of the existing fire sprinkler system; or may design the alteration of an existing fire sprinkler system if the alteration consists of the relocation or deletion of 249 or fewer sprinklers, notwithstanding the size of the existing fire sprinkler system, if there is no change of occupancy of the affected areas, as defined in this Code and the Florida Fire Prevention Code, and there is no change in the water demand as defined in NFPA 13, "Standard for the Installation of Sprinkler Systems," and if the occupancy hazard classification as defined in NFPA 13 is reduced or remains the same as a result of the alteration.
3. Heating, ventilation, and air-conditioning documents for any new building or addition which requires more than a 15-ton-per-system capacity, and which is designed to accommodate more than 100 persons, or for which the system costs more than $125,000. This paragraph does not include any document for the replacement or repair of an existing system in which the work does not require altering a structural part of the building, or for work on a residential one-, two-, three-, or four-family dwelling. The limiting criteria of 100 persons applies to the building occupancy load, and $125,000 applies to the cost for the total air-conditioning system of the building.
4. An air-conditioning system may be designed by an air-conditioning

Contractor certified under Chapter 489, Florida Statutes, to serve any building or addition which is designed to accommodate no more than 100 persons and requires an air-conditioning system with a value of $125,000 or less, provided that the same air-conditioning Contractor performs the installation; and when a 15-ton-per system or less is designed for a singular space of a building and each 15-ton system or less has an independent duct system. Systems not complying with the above require design documents that are to be sealed by a professional engineer.

Example 1: When a space has two 10-ton systems with each having an independent duct system, the installing Contractor may design these two systems since each unit (system) is less than 15 tons.

Example 2: Consider a small single-story office building which consists of six individual offices where each office has a single three-ton package air conditioning heat pump. The six heat pumps are connected to a single water-cooling tower. The cost of the entire heating, ventilation and air-conditioning work is $47,000 and the office building accommodates fewer than 100 persons. Because the six mechanical units are connected to a common water tower, this is considered to be an 18-ton system.

5. Any specialized mechanical, electrical, or plumbing document for any new building or addition which includes a medical gas, oxygen, steam, vacuum, toxic air filtration, halon, or fire detection and alarm system which costs more than $5,000.
6. Electrical documents for any new building or addition which:
   A. Requires an electrical system with a value of more than $125,000, or
   B. Requires an aggregate service capacity of more than 600 amperes (240 volts) on a residential electrical system, or
   C. Requires an aggregate service capacity of more than 800 amperes (240 volts) on a commercial or industrial electrical system, or
   D. Requires a voltage higher than 240 volts.
7. Exception: Simplified Permitting processes. As used in this Section, the term:

   Component means valves, fire sprinklers, escutcheons, hangers, compressors, or any other item deemed acceptable by the local enforcing agency. For purposes of this paragraph, a valve does not include pressure-regulating, pressure-reducing, or pressure-control valves.

   Contractor means a person who Is qualified to engage in the business of electrical or alarm system contracting pursuant to a certificate or registration issued by the department under part II of Chapter 489, Florida Statutes; or Is qualified to engage in the business of fire protection system contracting pursuant to a license or certificate issued by the State Fire Marshal.

   Fire Alarm System Project means a fire alarm system alteration of a total of 20 or fewer initiating devices and notification devices, or the installation or replacement of a fire communicator connected to an existing fire alarm control panel in an existing commercial, residential, apartment, cooperative, or condominium building.

   Fire Sprinkler System Project means a fire protection system alteration of a total of 20 or fewer fire sprinklers

in which the sprinklers are of the same K-factor and located in spaces where there is no change of hazard classification or increased system coverage area, or the installation or replacement of an equivalent fire sprinkler system Component in an existing commercial, residential, apartment, cooperative, or condominium building. For purposes of this paragraph, a Component is equivalent if the Component has the same or better characteristics, including electrical, hydraulic, pressure losses, and required listings and spacing as the Component being replaced.

f. Applications.

1. The Department may require a Contractor, as a condition of obtaining a Permit for a Fire Alarm System Project or Fire Sprinkler System Project, to submit a completed application and payment.
2. A Department may not require a Contractor to submit plans or specifications as a condition of obtaining a Permit for a Fire Alarm System Project or Fire Sprinkler System Project.
3. The Department must issue a Permit for a Fire Alarm System Project or Fire Sprinkler System Project in person or electronically.
4. The Department must require at least one (1) inspection of a Fire Alarm System Project or Fire Sprinkler System Project to ensure compliance with applicable Codes and standards. If a Fire Alarm System Project or Fire Sprinkler System Project fails an inspection, the Contractor must take corrective action as necessary to pass inspection.
5. Documents on site:
   i. For a a Fire Alarm System Project or Fire Sprinkler System Project, a Contractor must keep a copy of the plans and specifications at the Fire Alarm System Project or Fire Sprinkler System Project worksite and make such plans and specifications available to the Inspector at each Inspection.
   ii. For a a Fire Alarm System Project or Fire Sprinkler System Project to alter an existing fire protection system, a Contractor must keep a copy of the plans and specifications at the Fire Alarm System Project or Fire Sprinkler System Project worksite and make such plans and specifications available to the Inspector at each Inspection.
   iii. For a Fire Alarm System Project or Fire Sprinkler System Project to install or replace a Component, a Contractor must keep a copy of the manufacturer's installation instructions and any pertinent testing instructions needed to certify or accept the Component at the Fire Alarm System Project or Fire Sprinkler System Project worksite and make such documents available to the Inspector at each Inspection.

g. All public swimming pools and public bathing places as defined by and regulated under Chapter 514, Florida Statutes.

h. Time limitation of application. An application for a Permit for any proposed work shall be deemed to have been abandoned becoming null and void 180 days after the date of filing, unless such application has been pursued in good faith or a Permit has been issued; except that the Building Official is authorized to grant one or more extensions of time for additional periods not exceeding 90 days

each. The extension shall be requested in writing and justifiable cause demonstrated.

1. The Building Official may not issue a building Permit for any building construction, erection, alteration, modification, repair or addition unless the Permit either includes on its face or there is attached to the Permit the following statement: "NOTICE: In addition to the requirements of this Permit, there may be additional restrictions applicable to this property that may be found in the public records of this county, and there may be additional Permits required from other governmental entities such as water management districts, state agencies, or federal agencies."
2. A building Permit for a single-family residential dwelling must be issued within 30 working days of application therefor unless unusual circumstances require a longer time for processing the application or unless the Permit application fails to satisfy the Florida Building Code or the enforcing agency's laws or ordinances, as amended.
3. Identification of minimum premium policy. Except as otherwise provided in Chapter 440, Florida Statutes, Workers' Compensation, every employer shall, as a condition to receiving a building Permit, show proof that it has secured compensation for its employees as provided in Sections 440.10 and 440.38, Florida Statutes.
4. Asbestos removal. Moving, removal or disposal of asbestos-containing materials on a residential building where the owner occupies the building, the building is not for sale or lease, and the work is performed according to the owner-builder limitations provided in this paragraph. To qualify for exemption under this paragraph, an owner must personally appear and sign the building Permit application. The Permitting agency shall provide the person with a disclosure statement in substantially the following form:

   Disclosure Statement: State law requires asbestos abatement to be done by licensed Contractors. You have applied for a Permit under an exemption to that law. The exemption allows you, as the owner of your property, to act as your own asbestos abatement Contractor even though you do not have a license. You must supervise the construction yourself. You may move, remove or dispose of asbestos-containing materials on a residential building where you occupy the building and the building is not for sale or lease, or the building is a farm outbuilding on your property. If you sell or lease such building within 1 year after the asbestos abatement is complete, the law will presume that you intended to sell or lease the property at the time the work was done, which is a violation of this exemption. You may not hire an unlicensed person as your Contractor. Your work must be done according to all local, state and federal laws and regulations which apply to asbestos abatement projects. It is your responsibility to make sure that people employed by you have licenses required by state law and by county or municipal licensing ordinances.
5. Applicable Code for Manufactured Buildings. Manufacturers should be permitted to complete all buildings designed and approved prior to the effective date of a new Code edition, provided a clear signed contract is in place. The contract shall provide specific data mirroring that required by an application for Permit, specifi-

cally, without limitation, date of execution, building owner or dealer, and anticipated date of completion. However, the construction activity must commence within 6 months of the contract's execution. The contract is subject to verification by the Department of Business and Professional Regulation.

6. The Department may not require a contract between a builder and an owner for the issuance of a building Permit or as a requirement for the submission of a building Permit application.

7. Public right of way. A Permit shall not be given by the Building Official for the construction of any building, or for the alteration of any building where said building is to be changed and such change will affect the exterior walls, bays, balconies, or other appendages or projections fronting on any street, alley or public lane, or for the placing on any lot or premises of any building or structure removed from another lot or premises, unless the applicant has received a right of way Permit from the authority having jurisdiction over the street, alley or public lane.

   i. Conditions of the Permit. The issuance or granting of a Permit shall not be construed to be a Permit for, or an approval of, any violation of any of the provisions of this Code or of any other ordinance of the jurisdiction. Permits presuming to give authority to violate or cancel the provisions of this Code or other ordinances of the jurisdiction shall not be valid. The issuance of a Permit based on construction documents and other data shall not prevent the Building Official from requiring the correction of errors in the construction documents and other data. The Building Official is also authorized to prevent occupancy or use of a structure where in violation of this Code or of any other ordinance of this jurisdiction.

   1. Permit intent. A Permit issued shall be construed to be a license to proceed with the work and not as authority to violate, cancel, alter or set aside any of the provisions of the technical Codes, nor shall issuance of a Permit prevent the Building Official from thereafter requiring a correction of errors in plans, construction or violations of this Code.

      A. If work has commenced and the Permit is revoked, becomes null and void, or expires because of lack of progress or abandonment, a new Permit covering the proposed construction shall be obtained before proceeding with the work.

      B. If a new Permit is not obtained within 180 days from the date the initial Permit became null and void, the Building Official is authorized to require that any work which has been commenced or completed be removed from the building site. Alternately, a new

Permit may be issued on application, providing the work in place and required to complete the structure meets all applicable regulations in effect at the time the initial Permit became null and void and any regulations which may have become effective between the date of expiration and the date of issuance of the new Permit.

C. Work shall be considered to be in active progress when the Permit has received an approved inspection within 180 days. This provision shall not be applicable in case of civil commotion or strike or when the building work is halted due directly to judicial injunction, order or similar process.

D. Pace of Construction. Construction shall proceed at a pace consistent with projects within the jurisdiction that are comparable in scope and complexity. If the Building Official determines that an unusually extended construction period has willfully occurred with no appreciable attempt to advance the construction, they are authorized to impose fines and penalties as proscribed by law. The practice of repetitively scheduling inconsequential inspections to obtain an approval within 180 days, thereby maintaining the Permit active, and/or failure to proceed at a consistent and comparable pace shall be deemed a lack of progress for purposes of revocation of the issued Permit.

E. The fee for renewal reissuance and extension of a Permit shall be set forth by the administrative authority.

F. After the local enforcing agency issues a Permit, the local enforcing agency may not make or require any substantive changes to the plans or specifications except changes required for compliance with the Florida Building Code, the Florida Fire Prevention Code, or the Life Safety Code, or local amendments thereto. If a local enforcing agency makes or requires substantive changes to the plans or specifications after a Permit is issued,

the local enforcing agency must identify the specific plan features that do not comply with the applicable Codes, identify the specific Code, Chapters, Divisions and Sections upon which the finding is based, and provide the information to the Permit holder in writing.

j. Expiration. Every Permit issued shall become invalid unless the work on the site authorized by such Permit is commenced within 180 days after its issuance, or if the work authorized on the site by such Permit holder and property owner shall be responsible to either complete all work in accordance with the permitted plans and inspection or remove any partially completed work in a safe and Code compliant manner. The Building Official is authorized to grant, in writing, one or more extensions of time, for periods not more than 180 days each. The extension shall be requested in writing and justifiable cause demonstrated as determined by the Building Official.

1. Additional options for closing a Permit. Pursuant to Section 553.79(15), Florida Statutes, a property owner, regardless of whether the property owner is the one listed on the application for the building Permit, may close a building Permit by complying with the following requirements.

2. The property owner may retain the original Contractor listed on the Permit or hire a different Contractor appropriately licensed in this state to perform the work necessary to satisfy the conditions of the Permit and to obtain any necessary inspection in order to close the Permit. If a Contractor other than the original Contractor listed on the Permit is hired by the property owner to close the Permit, such Contractor is not liable for any defects in the work performed by the original Contractor and is only liable for the work that they perform.

3. The property owner may assume the role of an owner- builder, in accordance with Sections 489.103(7) and 489.503(6), Florida Statutes.

4. If a building Permit is expired and its requirements have been substantially completed, as determined by the Department, the Permit may be closed without having to obtain a new building Permit, and the work required to close the Permit may be done pursuant to the Building Code in effect at the time the Department received the application for the Permit, unless the Contractor has sought and received approval from the Department for an alternative material, design or method of construction.

5. A Department may close a building Permit six (6) years after the issuance of the Permit, even in the absence of a final inspection, if the Department determines that no apparent safety hazard exists.

A. For purposes of this Section, the term "close" means that the requirements of the Permit have been satisfied.

B. For the purposes of this Subsection, a closed Permit shall mean a Permit for which all requirements for completion have been satisfied or a Permit that has been administratively closed by the Building Official.

C. For the purposes of this Subsection, an open Permit shall mean a Permit that has not satisfied

all requirements for completion as defined in 105.5.1.1, Florida Building Code.

k. Denial or revocation. Whenever a Permit required under this Section is denied or revoked because the plan, or the construction, erection, alteration, modification, repair, or demolition of a building, is found by the local enforcing agency to be not in compliance with the Florida Building Code, the local enforcing agency shall identify the specific plan or project features that do not comply with the applicable Codes, identify the specific Code Chapters, Divisions and Sections upon which the finding is based, and provide this information to the Permit applicant. If the local building Code administrator or inspector finds that the plans are not in compliance with the Florida Building Code, the local building Code administrator or inspector shall identify the specific plan features that do not comply with the applicable Codes, identify the specific Code Chapters, Divisions and Sections upon which the finding is based, and provide this information to the local enforcing agency. The local enforcing agency shall provide this information to the Permit applicant.

1. Pursuant to Section 553.79(16), Florida Statutes, a Local Enforcement Agency may not deny issuance of a building Permit to issue a notice of violation, to fine or penalize, to sanction or assess fees against an arm's-length purchaser of a property for value solely because a building Permit applied for by a previous owner of the property was not closed. The Local Enforcement Agency shall maintain all rights and remedies against the property owner and Contractor listed on the Permit.

2. Pursuant to Section 553.79(16), Florida Statutes, the Local Enforcement Agency may not deny issuance of a building Permit to a Contractor solely because the Contractor is listed on other building Permits that were not closed. The Local Enforcement Agency has the authority to deny a new Permit application from an applicant for other reasons.

3. Fraudulent submittals. Upon discovery of falsified or forged documents, or misrepresentation of material facts on applications, the Building Official shall deny or revoke applications and/or Permits and shall require corrections to same in order to restore the application and/or Permit to good standing. Any violations under this Section shall be subject to penalties as prescribed by law.

4. Violation of Code provisions. The Building Official may require the correction or revocation of a Permit upon their determination that any work performed pursuant to that Permit is in violation of the provisions of this Code. The Building Official may elect to refer violations to the appropriate licensing or enforcement division or board for disciplinary action.

5. Permit Expediter(s) means independent agents and/or personnel hired by the fee owner ("Property Owner"), the fee owner's Contractor, the fee owner's design professional, or any other person in connection with the project may initiate an application for Permit, submit all documentation for review by the enforcement agency, and pursue the processing of the application in accordance with the provisions of this Section. The Building Official shall establish a system of registration for Permit Expediters, requiring that they provide all relevant contact information and proof of valid Business Tax Receipts from the City of Miami and Local Busi-

ness Tax Receipts from Miami-Dade County as required by law. There shall be no charge for registration of Permit Expediters. Permit Expediters operating within the jurisdiction shall be registered prior to engaging in any business activity in connection with the processing of a Permit through the building Local Enforcement Agency.

The Building Official is authorized to establish operational and ethical guidelines for expediters. Permit Expediters shall not:

A. Act as a surrogate for registered design professionals in discussions of technical matters.

B. Submit documents known or suspected to be falsified or otherwise deficient in content, formatting, and/or completeness.

C. Offer any form of compensation, incentive, or gift to department personnel in exchange for preferential treatment as prohibited by law.

D. Engage in tactics designed to bypass the department's normal sequence of priorities in the processing of applications and Permits.

l. Placement of Permit. The building Permit or copy shall be kept on the site of the work until the completion of the project. The Permit shall be readily available for viewing at any time by the Building Official.

m. Notice of commencement. In accordance with Section 713.135, Florida Statutes, when any person applies for a building Permit, the authority issuing such Permit shall print on the face of each Permit card in no less than 14-point, capitalized, boldfaced type: "WARNING TO OWNER: YOUR FAILURE TO RECORD A NOTICE OF COMMENCEMENT MAY RESULT IN YOUR PAYING TWICE FOR IMPROVEMENTS TO YOUR PROPERTY. A NOTICE OF COMMENCEMENT MUST BE RECORDED AND POSTED ON THE JOB SITE BEFORE THE FIRST INSPECTION. IF YOU INTEND TO OBTAIN FINANCING, CONSULT WITH YOUR LENDER OR AN ATTORNEY BEFORE RECORDING YOUR NOTICE OF COMMENCEMENT."

n. Asbestos. The enforcing agency shall require each building Permit for the demolition or renovation of an existing structure to contain an asbestos notification statement which indicates the owner's or operator's responsibility to comply with the provisions of Section 469.003, Florida Statutes, and to notify the Department of Environmental Protection of their intentions to remove asbestos, when applicable, in accordance with state and federal law.

o. Certificate of protective treatment for prevention of termites. A weather-resistant job-site posting board shall be provided to receive duplicate treatment certificates as each required protective treatment is completed, providing a copy for the person the Permit is issued to and another copy for the building Permit files. The treatment certificate shall provide the product used, identity of the applicator, time and date of the treatment, site location, area treated, chemical used, percent concentration and number of gallons used, to establish a verifiable record of protective treatment. If the soil chemical barrier method for termite prevention is used, final exterior treatment shall be completed prior to final building approval.

p. Notice of termite protection. A permanent sign which identifies the termite treatment provider and need for reinspection and treatment contract renewal shall be provided. The sign shall be posted near the water heater or electric panel.

q. Work starting before Permit. Strictly upon written approval of the Building Official

work may start before Permit is issued. The scope of work delineated in the building Permit application and plan may be started prior to the final approval and issuance of the Permit, provided any work completed is entirely at risk of the Permit applicant and the work does not proceed past the first required inspection. Work performed and/or installed without written approval shall be deemed non-compliant, and shall be subject to removal or demolition, and any additional penalties deemed appropriate by the Building Official.

r. Phased Permit approval. After submittal of the appropriate construction documents, the Building Official is authorized to issue a Permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been submitted. The holder of such Permit for the foundation or other parts of a building or structure shall proceed at the holder's own risk with the building operation and without assurance that a Permit for the entire structure will be granted. Corrections may be required to meet the requirements of the technical Codes.

s. Permit issued on basis of an affidavit. Whenever a Permit is issued in reliance upon an affidavit or whenever the work to be covered by a Permit involves installation under conditions which, in the opinion of the Building Official, are hazardous or complex, the Building Official shall require that the architect or engineer who signed the affidavit or prepared the drawings or computations shall supervise such work. In addition, they shall be responsible for conformity to the Permit, provide copies of inspection reports as inspections are performed, and upon completion make and file with the Building Official written affidavit that the work has been done in conformity to the reviewed plans and with the structural provisions of the technical Codes. In the event such architect or engineer is not available, the owner shall employ in his stead a competent person or agency whose qualifications are reviewed by the Building Official. The Building Official shall ensure that any person conducting plans review is qualified as a plans examiner under Part XII of Chapter 468, Florida Statutes, and that any person conducting inspections is qualified as a building inspector under Part XII of Chapter 468, Florida Statutes.

Permit issued on basis of an affidavit shall not extend to the flood load and flood resistance requirements of the Florida Building Code.

t. Opening protection. When any activity requiring a building Permit, not including roof covering replacement or repair work associated with the prevention of degradation of the residence, that is applied for on or after July 1, 2008, and for which the estimated cost is $50,000 or more for a site built single-family detached residential structure that is located in the wind-borne debris region as defined in this Code and that has an insured value of $750,000 or more, or, if the site built single-family detached residential structure is uninsured or for which documentation of insured value is not presented, has a just valuation for the structure for purposes of ad valorem taxation of $750,000 or more; opening protections as required within this Code or Florida Building Code, Residential for new construction shall be provided.

1. Exception: Where defined wind-borne debris regions have not changed, single family detached residential structures permitted subject to the Florida Building Code are not required to comply with this Section.

u. Inspection of existing residential building not impacted by construction.

1. A local enforcing agency, and any local building Code administrator,

inspector, or other official or entity, may not require as a condition of issuance of a one- or two-family residential building Permit the inspection of any portion of a building, structure, or real property that is not directly impacted by the construction, erection, alteration, modification, repair, or demolition of the building, structure, or real property for which the Permit is sought.

2. This subSection does not apply to a building Permit sought for:

   A. A substantial improvement as defined in s. 161.54, Florida Statutes or as defined in the Florida Building Code.

   B. A change of occupancy as defined in the Florida Building Code.

   C. A conversion from residential to nonresidential or mixed use pursuant to s. 553.507(2)(a), Florida Statutes or as defined in the Florida Building Code.

   D. A historic building as defined in the Florida Building Code.

3. This subSection does not prohibit a Local Enforcing Agency, or any local building code administrator, inspector, or other official or entity, from:

   A. Citing any violation inadvertently observed in plain view during the ordinary course of an inspection conducted in accordance with the prohibition in this Code.

   B. Inspecting a physically nonadjacent portion of a building, structure, or real property that is directly impacted by the construction, erection, alteration, modification, repair, or demolition of the building, structure, or real property for which the Permit is sought in accordance with the prohibition in paragraph (a).

   C. Inspecting any portion of a building, structure, or real property for which the owner or other person having control of the building, structure, or real property has voluntarily consented to the inspection of that portion of the building, structure, or real property in accordance with the prohibition in paragraph (a).

   D. Inspecting any portion of a building, structure, or real property pursuant to an inspection warrant issued in accordance with ss. 933.20-933.30, Florida Statutes.

v. Streamlined Low-Voltage Alarm System installation Permitting.

1. As used in this Section, the term:

   Contractor means a person who is qualified to engage in the business of electrical or alarm system contracting pursuant to a certificate or registration issued by the department under Part II of Chapter 489, Florida Statutes.

   Low-Voltage Alarm System project means a project related to the installation, maintenance, inspection, replacement, or service of a new or existing alarm system, as defined in s. 489.505, Florida Statutes, that is hardwired and operating at low voltage, as defined in the National Electrical Code Standard 70, Current Edition, or a new or existing Low-Voltage Electric Fence, and ancillary Components or equipment attached to such a system, or fence, including, but not limited to, home-automation equipment, thermostats, closed-circuit television systems, access controls, battery recharging devices, and video cameras.

Low-Voltage Electric Fence means an alarm system, as defined in s. 489.505, that consists of a fence structure and an energizer powered by a commercial storage battery not exceeding 12 volts which produces an electric charge upon contact with the fence structure.

Wireless Alarm System means a burglar alarm system or smoke detector that is not hardwired.

2. Notwithstanding any provision of this Code, this Section applies to all Low-Voltage Alarm System projects for which a Permit is required by the Local Enforcement Agency. However, a Permit is not required to install, maintain, inspect, replace, or service a Wireless Alarm System, including any ancillary Components or equipment attached to the system.

3. A Low-Voltage Electric Fence must meet all of the following requirements to be Permitted as a Low-Voltage Alarm System project and no further Permit shall be required for the Low-Voltage Alarm System project other than as provided in this Section:

   A. The electric charge produced by the fence upon contact must not exceed energizer characteristics set forth in paragraph 22.108 and depicted in Figure 102 of International Electrotechnical Commission Standard No. 60335-2-76, Current Edition.

   B. A nonelectric fence or wall must completely enclose the Low-Voltage Electric Fence. The low-voltage electric fence may be up to 2 feet higher than the perimeter nonelectric fence or wall.

   C. The Low-Voltage Electric Fence must be identified using warning signs attached to the fence at intervals of not more than 60 feet.

   D. The Low-Voltage Electric Fence shall not be installed in an area zoned exclusively for single- family or multi-family residential use.

   E. The Low-Voltage Electric Fence shall not enclose the portions of a property which are used for residential purposes.

4. This Section does not apply to the installation or replacement of a fire alarm if a plan review is required.

5. The Local Enforcement Agency shall make uniform basic Permit labels available for purchase by a Contractor to be used for the installation or replacement of a new or existing alarm system at a cost as indicated in s. 553.793, Florida Statutes. The Local Enforcement Agency may not require the payment of any additional fees, charges, or expenses associated with the installation or replacement of a new or existing alarm.

   A. The Local Enforcement Agency may not require a Contractor, as a condition of purchasing a label, to submit information other than identification information of the licensee and proof of registration or certification as a Contractor.

   B. A label is valid for 1 year after the date of purchase and may only be used within the jurisdiction of the Local Enforcement Agency that issued the label. A Contractor may purchase labels in bulk for one or more unspecified current or future projects.

6. A Contractor shall post an unused uniform basic Permit label in a conspicuous place on the premises

of the Low-Voltage Alarm System project site before commencing work on the project.

7. A Contractor is not required to notify the Local Enforcement Agency before commencing work on a Low-Voltage Alarm System project. However, a Contractor must submit a Uniform Notice of a Low-Voltage Alarm System Project as provided under Subsection (7) to the Local Enforcement Agency within 14 days after completing the project. The Local Enforcement Agency may take disciplinary action against a Contractor who fails to timely submit a Uniform Notice of a Low-Voltage Alarm System Project.

8. The Uniform Notice of a Low-Voltage Alarm System Project may be submitted electronically or by facsimile if all submissions are signed by the owner, tenant, Contractor, or authorized representative of such persons. The Uniform Notice of a Low-Voltage Alarm System Project shall be in the format prescribed by the Local Enforcement Agency and must comply with the requirements of s. 553.793(7), Florida Statutes.

9. The Local Enforcement Agency may coordinate directly with the owner or customer to inspect a Low-Voltage Alarm System to ensure compliance with applicable Codes and standards. If a Low-Voltage Alarm System project fails an inspection, the Contractor must take corrective action as necessary to pass inspection.

10. A municipality, county, district, or other entity of local government may not adopt or maintain in effect any ordinance or rule regarding a Low-Voltage Alarm System project that is inconsistent with this Section.

11. A uniform basic Permit label shall not be required for the subsequent maintenance, inspection, or service of an alarm system that was permitted in accordance with this Section.

12. The provisions of this Section are not intended to impose new or additional licensure requirements on persons licensed in accordance with the applicable provisions of Chapter 489, Florida Statutes.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-6. Floor and roof design loads.

a. Live loads posted. In commercial or industrial buildings, for each floor or portion thereof designed for live loads exceeding 50 psf (2.40 kN/m^2), such design live loads shall be conspicuously posted by the owner or the owner's authorized agent in that part of each story in which they apply, using durable signs. It shall be unlawful to remove or deface such notices.

b. Issuance of Certificate of Occupancy. A Certificate of Occupancy, required by Section 111, Florida Building Code, shall not be issued until the floor load signs, required by Section 106.1, Florida Building Code, have been installed.

c. Restrictions on loading. It shall be unlawful to place, or cause or Permit to be placed, on any floor or roof of a building, structure or portion thereof, a load greater than is permitted by this Code.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-7. Submittal documents.

Submittal documents consisting of construction documents, statement of Special Inspections, geotechnical report and other data shall be submitted in two or more sets with each Permit application. The construction documents shall be prepared by a registered design professional where required by Chapter 471, Florida Statutes & 61G15 Florida Administrative Code or Chapter 481, Florida Statutes and 61G1 Florida Administrative Code. Where special conditions exist, the Building Official is authorized to require additional construction documents to be prepared by a registered design professional.

Exception: The Building Official is authorized to waive the submission of construction documents and other data not required to be prepared by a registered design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this Code. Permits issued under the City of Miami's Easy Permit Program do not require review of plans.

a. Construction documents. Construction documents shall be in accordance with Sections 107.2.1 through 107.2.6 of this Section.

1. Information on construction documents. Construction documents shall be dimensioned and drawn upon suitable material. Electronic media documents are permitted to be submitted where approved by the Building Official. Construction documents shall be of sufficient clarity to indicate the location, nature and extent of the work proposed and show in detail that it will conform to the provisions of this Code and relevant laws, ordinances, rules and regulations, as determined by the Building Official. Such drawings and specifications shall contain information, in the form of notes or otherwise, as to the quality of materials, where quality is essential to conformity with the technical Codes. Such information shall be specific, and the technical Codes shall not be cited as a whole or in part, nor shall the term "legal" or its equivalent be used as a substitute for specific information. All information, drawings, specifications and accompanying data shall bear the name and signature of the person responsible for the design.

2. Fire protection system shop drawings. Shop drawings for the fire protection system(s) shall be submitted to indicate conformance to this Code and the construction documents and shall be approved prior to the start of system installation. Shop drawings shall contain all information as required by the referenced installation standards in Chapter 9, Florida Building Code.

3. Means of egress. The construction documents shall show in sufficient detail the location, construction, size and character of all portions of the means of egress including the path of the exit discharge to the public way in compliance with the provisions of this Code. In other than occupancies in Transect Zones T3, T4, and Industrial, the construction documents shall designate the number of occupants to be accommodated on every floor, and in all rooms and spaces.

4. Exterior wall envelope. Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with this Code. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves or parapets, means of drainage, water-resistive membrane and details around openings.

The construction documents shall include manufacturer's installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system that was tested, where applicable, as well as the test procedure used.

5. Exterior balcony and elevated walking surfaces. Where balcony or other elevated walking surfaces are

exposed to water from direct or blowing rain or irrigation, and the structural framing is protected by an impervious moisture barrier, the construction documents shall include details for all elements of the impervious moisture barrier system. The construction documents shall include manufacturer's installation instructions.

6. Site plan. The construction documents submitted with the application for Permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grades and, as applicable, flood hazard areas, floodways, and design flood elevations; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The Building Official is authorized to waive or modify the requirement for a site plan where the application for Permit is for alteration or repair or where otherwise warranted.

   A. Design flood elevations. Where design flood elevations are not specified, they shall be established in accordance with Section 1612.3.1, Florida Building Code.

   B. For the purpose of inspection and record retention, site plans for a building may be maintained in the form of an electronic copy at the worksite. These plans must be open to inspection by the Building Official or a duly authorized representative, as required by the Florida Building Code.

7. Structural information. The construction documents shall provide the information specified in Section 1603, Florida Building Code.

b. Examination of documents. The Building Official shall examine or cause to be examined the accompanying submittal documents and shall ascertain by such examinations whether the construction indicated and described is in accordance with the requirements of this Code and other pertinent laws or ordinances.

Exceptions:

Building plans approved pursuant to Section 553.77(5), Florida Statutes, and state-approved manufactured buildings are exempt from local Codes enforcing agency plan reviews except for provisions of the Code relating to erection, assembly or construction at the site. Erection, assembly and construction at the site are subject to local permitting and inspections. Photocopies of plans approved according to Rule 61-41.009, Florida Administrative Code, shall be sufficient for local Permit application documents of record for the modular building portion of the Permit project.

Industrial construction on sites where design, construction and fire safety are supervised by appropriately licensed design and inspection professionals and which contain adequate in-house fire departments and rescue squad are exempt, subject to approval by the Building Official, from review of plans and inspections, providing the appropriate licensed design and inspection professionals certify that applicable Codes and standards have

been met and supply appropriate approved drawings to local building and fire-safety inspectors.

1. Approval of construction documents. When the Building Official issues a Permit, the construction documents shall be approved, in writing or by stamp, as "Reviewed for Code Compliance." One set of construction documents reviewed shall be retained by the Building Official. The other set shall be returned to the applicant, shall be kept at the site of work and shall be open to inspection by the Building Official or a duly authorized representative.

2. Previous approvals. This Code shall not require changes in the construction documents, construction or designated occupancy of a structure for which a lawful Permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been pursued in good faith within 180 days after the effective date of this Code and has not been abandoned.

3. Phased approval. The Building Official is authorized to issue a Permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been submitted, provided that adequate information and detailed statements have been filed complying with pertinent requirements of this Code. Design professionals willfully signing and sealing incomplete, underdeveloped and/or uncoordinated construction documents as a means to circumvent the traditional Permit process, and expedite their project may be subject to referral to their respective professional board. The holder of such Permit for the foundation or other parts of a building or structure shall proceed at the holder's own risk with the building operation and without assurance that a Permit for the entire structure will be granted. Permits issued in this manner shall be administered through the City of Miami's Phased Permit Program and are issued at the sole discretion of the Building Official. Pursuant to Section 10-5 of the City Code, Phased Permits shall expire in 180 days. The Building Official is authorized to establish and modify administrative policies and procedures for the Phased Permit Program at any time.

4. Design professional in responsible charge. Where it is required that documents be prepared by a registered design professional, the Building Official shall be authorized to require the owner or the owner's authorized agent to engage and designate on the building Permit application a registered design professional who shall act as the registered design professional in responsible charge. If the circumstances require, the owner or the owner's authorized agent shall designate a substitute registered design professional in responsible charge who shall perform the duties required of the original registered design professional in responsible charge. The Building Official shall be notified in writing by the owner or owner's authorized agent if the registered design professional in responsible charge is changed or is unable to continue to perform the duties. Successor registered design professional in responsible charge licensed under Chapter 471 Florida Statutes shall comply with Section 471.025(4) Florida Statute and the procedure set forth in 61G15-27.001 Florida Administrative Code; or licensed under Chapter 481 Florida Statutes shall comply with Section

481.221(6) Florida Statute and the procedure set forth in 61G1-18.002 Florida Administrative Code.

Such written notification shall be in accordance with procedures established by the Building Official. The registered design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred submittal items, for compatibility with the design of the building.

A. Deferred submittals. For the purposes of this Section, deferred submittals are defined as those portions of the design that are not submitted at the time of the application and that are to be submitted to the Building Official.

Deferral of any submittal items shall have the prior approval of the Building Official. The registered design professional in responsible charge shall list the deferred submittals on the construction documents for review by the Building Official.

Documents for deferred submittal items shall be submitted to the registered design professional in responsible charge who shall review them and forward them to the Building Official with a notation indicating that the deferred submittal documents have been reviewed and found to be in general conformance to the design of the building. The use of "Reviewed" or similar notation without qualifying language to indicate that the drawings were found to be in general conformance to the design of the building shall not be accepted. The deferred submittal items shall not be installed until the deferred submittal documents have been approved by the Building Official and all respective Permits have been issued.

B. Certifications by Contractors authorized under the provisions of Section 489.115(4)(b), Florida Statutes, shall be considered equivalent to sealed plans and specifications by a person licensed under Chapter 471, Florida Statutes, or Chapter 481, Florida Statutes, by local enforcement agencies for plans review for permitting purposes relating to compliance with the wind-resistance provisions of the Code or alternate methodologies approved by the Florida Building Commission for one- and two-family dwellings. Local enforcement agencies may rely upon such certification by Contractors that the plans and specifications submitted conform to the requirements of the Code for wind resistance. Upon good cause shown, local government code enforcement agencies may accept or reject plans sealed by persons licensed under Chapters 471, 481 or 489, Florida Statutes.

5. Minimum plan review criteria for buildings. The examination of the documents by the Building Official shall include the following minimum criteria and documents: a floor plan; site plan; foundation plan; floor/roof framing plan or truss layout; all fenestration and building envelope

penetrations; flashing; and rough opening dimensions; and all exterior elevations:

Commercial Buildings:

A. Building:

1. Site requirements:
   - Parking Fire access
   - Vehicle loading
   - Driving/turning radius
   - Fire hydrant/water supply/post indicator valve (PIV)
   - Set back/separation (assumed property lines)
   - Location of specific tanks, water lines and sewer lines
   - Flood hazard areas, flood zones, and design flood elevations
2. Occupancy group and special occupancy requirements shall be determined (with cross check with the energy code submittal).
3. Minimum type of construction shall be determined (see Table 503, FBC).
4. Fire-resistant construction requirements shall include the following Components:
   - Fire-resistant separations
   - Fire-resistant protection for type of construction
   - Protection of openings and penetrations of rated walls
   - Fireblocking and draftstopping and calculated fire resistance
5. Fire suppression systems shall include:
   - Early warning smoke evacuation systems
   - Schematic fire sprinklers
   - Standpipes
   - Pre-engineered systems
   - Riser diagram.
6. Life safety systems shall be determined and shall include the following requirements:
   - Occupant load and egress capacities
   - Early warning
   - Smoke control
   - Stair pressurization
   - Systems schematic
7. Occupancy load/egress requirements shall include:
   - Occupancy load
   - Gross
   - Net
   - Means of egress
   - Exit access
   - Exit
   - Exit discharge
   - Stairs construction/ geometry and protection
   - Doors
   - Emergency lighting and exit signs
   - Specific occupancy requirements
   - Construction requirements
   - Horizontal exits/exit passageways
8. Structural requirements shall include:
   - Soil conditions/analysis
   - Termite protection
   - Design loads
   - Wind requirements
   - Building envelope compliance statement
   - Impact resistant coverings or systems

Structural calculations (if required)

Foundation

Flood requirements in accordance with Section 1612, including lowest floor elevations, enclosures, flood damage-resistant materials

Wall systems

Floor systems

Roof systems

Threshold inspection plan (if required)

Special Inspector request form

Stair systems

9. Materials shall be reviewed and shall at a minimum include the following:

Wood

Steel

Aluminum

Concrete

Plastic

Glass

Masonry

Gypsum board and plaster Insulating (mechanical)

Roofing

Insulation

Building envelope portions of the Energy Code (including calculation and mandatory requirements)

10. Accessibility requirements shall include the following:

Site requirements

Accessible route

Vertical accessibility

Toilet and bathing facilities

Drinking fountains

Equipment

Special occupancy requirements

Fair housing requirements

Interior requirements shall include the following:

Interior finishes (flame spread/smoke development)

Light and ventilation (including corresponding portion of the energy Code)

Sanitation

11. Special systems:

Elevators

Escalators

Lifts

12. Swimming pools:

Barrier requirements

Spas

Wading pools

13. Location and installation details. The specific location and installation details of each fire door, fire damper, ceiling damper and smoke damper shall be shown and properly identified on the building plans by the designer.

14. Miscellaneous drainage: balconies, decks

B. Electrical:

1. Electrical:

Wiring

Services

Feeders and branch circuits

Overcurrent protection

Grounding

Wiring methods and materials

GFCIs

Electrical portions of the Energy Code (including calculation and mandatory requirements)

2. Equipment
3. Special occupancies
4. Emergency systems
5. Communication systems
6. Low voltage
7. Load calculations
8. Design flood elevation

C. Plumbing:
1. Minimum plumbing facilities
2. Fixture requirements
3. Water supply piping
4. Sanitary drainage
5. Water heaters
6. Vents
7. Roof drainage
8. Back flow prevention
9. Irrigation
10. Location of water supply line
11. Grease traps
12. Environmental requirements
13. Plumbing riser
14. Design flood elevation
15. Water/plumbing portions of the Energy Code (including calculation and mandatory requirements)

D. Mechanical:
1. Mechanical portions of the Energy calculations
2. Exhaust systems: clothes dryer exhaust, kitchen equipment exhaust, specialty exhaust systems
3. Equipment
4. Equipment location
5. Make-up air
6. Roof-mounted equipment
7. Duct systems
8. Ventilation
9. Combustion air
10. Chimneys, fireplaces and vents
11. Appliances
12. Boilers
13. Refrigeration
14. Bathroom ventilation
15. Laboratory
16. Design flood elevation
17. Smoke and/or Fire Dampers

E. Gas:
1. Gas piping
2. Venting
3. Combustion air
4. Chimneys and vents
5. Appliances
6. Type of gas
7. Fireplaces
8. LP tank location
9. Riser diagram/shutoffs
10. Design flood elevation
11. Gas portions of the Energy Code (including calculation and mandatory requirements)

F. Demolition: Asbestos removal

G. Residential (one- and two-family):
1. Site requirements:

Set back/separation (assumed property lines)

Location of septic tanks

2. Fire-resistant construction (if required)
3. Fire
4. Smoke and/or carbon monoxide alarm/detector locations
5. Egress: egress window size and location, stairs construction requirements

6. Structural requirements shall include:

   Wall Section from foundation through roof, including assembly and materials connector tables wind requirements structural calculations (if required)

   Termite protection

   Design loads

   Wind requirements

   Building envelope

   Foundation

   Wall systems

   Floor systems

   Roof systems

   Flood hazard areas, flood zones, design flood elevations, lowest floor elevations, enclosures, equipment, and flood damage- resistant materials

7. Accessibility requirements: show/identify accessible bath

8. Impact resistant coverings or systems

9. Residential Energy Code submittal (including calculation and mandatory requirements)

H. Manufactured buildings/housing:

1. Site plan requirements:

   Setback/separation (assumed property lines)

   Location of septic tanks (if applicable)

   ADA accessibility features

   Location of water source and supply line

   Location of sanitary sewer line

   Location of electric utility power in relation to service point connection

2. Structural:

   Manufacturer's (DCA) certification letter

   Wind zone

   Anchoring.

   Blocking

3. Plumbing:

   List potable water source and meter size (if applicable)

4. Mechanical:

   Exhaust systems

   Clothes dryer exhaust

   Kitchen equipment exhaust

5. Electrical:

   Exterior disconnect location

I. Exemptions: Plans examination by the Building Official shall not be required for the following work:

1. Replacing existing equipment such as mechanical units, water heaters, etc.

2. Minor electrical, plumbing and mechanical repairs for one- and two-family dwellings

3. Annual maintenance Permits

4. Prototype plans: except for local site adaptations, siding, foundations and/or modifications and except for structures that require waiver.

5. Manufactured buildings plan except for foundations and modifications of buildings on site and as listed above in manufactured buildings/housing.

6. Permits issued under the City of Miami's Easy Permit Program do not require review of plans.

7. Scope of work statement. Plans for new construction, additions, and alterations exceeding $25,000 construction cost or as required by the Building Official, shall include a detailed scope of work statement positioned prominently on the drawings, reflecting the work for each trade. The statement shall be in narrative form, or a combination of tabular form and narrative, and shall describe, in detail, the major Components of the proposed work. The Building Official shall be entitled to rely on the accuracy and completeness of the statement and shall compare it to the plans as part of the plan review criteria.

8. Labeling of documents. To provide consistency across all drawings submitted to the Local Enforcement Agency, drawings shall be labeled in accordance with the following standards:

   A. Drawings shall not be labeled "Not For Construction" or with any other phrase conveying the same meaning.

   B. Drawings shall not be labeled "For Reference Only" unless they are intended for one of the following purposes:

      i. To serve as a key plan, identifying the location of the proposed work within the site.

      ii. To provide contextual information, such as relating a shop drawing to a master plan.

      iii. To indicate that a portion of the proposed work was previously approved.

9. Design professional's response narrative.

   Upon examination and disapproval of the plans and/or documents, the Building Official may require from the design professional in responsible charge a written response to address each specific reason for the disapproval. This itemized, written response shall be submitted signed, sealed and dated by the professional on the professional's official stationery.

   Failure to submit the response narrative, if required to do so, will be cause for a subsequent rejection of the plans.

   Replies submitted by anyone through or within the City of Miami's electronic plan review platform shall not be a substitute for this requirement.

c. Amended construction documents. Work shall be installed in accordance with the approved construction documents, and any changes made during construction that are not in conformance with the approved construction documents shall be resubmitted for approval as an amended set of construction documents. Should such changes to the approved construction documents be found to be in violation of the Florida Building Code or any federal, state, or local regulations, the work depicted by said changes shall be removed.

d. Retention of construction documents. One set of approved construction documents shall be retained by the Building Official for a period of not less than 180 days from date of completion of the permitted work, or as required by state or local laws.

e. Affidavits. The Building Official may accept a sworn affidavit from a registered architect or engineer stating that the plans submitted conform to the technical codes. For buildings and structures, the

affidavit shall state that the plans conform to the laws as to egress, type of construction and general arrangement and, if accompanied by drawings, show the structural design and that the plans and design conform to the requirements of the technical codes as to strength, stresses, strains, loads and stability. The Building Official may without any examination or inspection accept such affidavit, provided the architect or engineer who made such affidavit agrees to submit to the Building Official copies of inspection reports as inspections are performed and upon completion of the structure, electrical, gas, mechanical or plumbing systems a certification that the structure, electrical, gas, mechanical or plumbing system has been erected in accordance with the requirements of the technical codes. Where the Building Official relies upon such affidavit, the architect or engineer shall assume full responsibility for compliance with all provisions of the technical codes and other pertinent laws or ordinances. The Building Official shall ensure that any person conducting plans review is qualified as a plans examiner under Part XII of Chapter 468, Florida Statutes, and that any person conducting inspections is qualified as a building inspector under Part XII of Chapter 468, Florida Statutes.

1. Building Permits issued in flood hazard areas on the basis of an affidavit. Pursuant to the requirements of federal regulation for participation in the National Flood Insurance Program (44 C.F.R. Parts 59 and 60), the authority granted to the Building Official to issue Permits, to rely on inspections, and to accept plans and construction documents on the basis of affidavits and plans submitted pursuant to Sections 105.14 and 107.6, shall not extend to the flood load and flood-resistance construction requirements of the Florida Building Code.

f. If the local Building Official or inspector finds that the plans are not in compliance with the Florida Building Code, the local Building Official or inspector shall identify the specific plan features that do not comply with the applicable Codes, identify the specific Code Chapters, Divisions and Sections upon which the finding is based, and provide this information to the local enforcing agency. If the Building Official, plans examiner, or inspector requests another local enforcing agency employee or a person contracted by the local enforcing agency to review the plans and that employee or person identifies specific plan features that do not comply with the applicable Codes, the Building Official, plans examiner, or inspector must provide this information to the local enforcing agency. The local enforcing agency shall provide this information to the Permit applicant.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-8. Temporary structures and uses.

a. General. The Building Official is authorized to issue a Permit for temporary structures and temporary uses. Such Permits shall be limited as to time of service but shall not be permitted for more than 180 days. The Building Official is authorized to grant extensions for demonstrated cause.

b. Conformance. Temporary structures and uses shall comply with the requirements in Section 3103, Florida Building Code.

c. Temporary power. The Building Official is authorized to give permission to temporarily supply and use power in part of an electric installation before such installation has been fully completed and the final Certificate of Completion has been issued. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat or power in NFPA 70.

d. Termination of approval. The Building Official is authorized to terminate such Permit for a temporary structure or use and to order the temporary structure or use to be discontinued.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-9. Fees.

a. Payment of Fees. A Permit shall not be valid until the fees prescribed by law have been paid, nor shall an amendment to a Permit be released until the additional fee, if any, has been paid.

b. Schedule of Permit fees. On buildings, structures, electrical, gas, mechanical, and plumbing systems or alterations requiring a Permit, a fee for each Permit shall be paid as required, in accordance with the schedule as established by the applicable governing authority.

1. Types of Fees Enumerated. Fees may be charged for but not limited to the following:
   - A. Permits;
   - B. Plans examination;
   - C. Certificates of competency (including fees for applications, examinations, renewal, late renewal, and reciprocity);
   - D. Re-inspections;
   - E. Administrative fees (including fees for investigative and legal costs incurred in the context of certain disciplinary cases heard by the professional disciplinary board);
   - F. Variance requests;
   - G. Administrative appeals;
   - H. Violations; and
   - I. Other fees as established by local resolution or ordinance.

c. Building Permit valuations. The applicant for a Permit shall provide an estimated Permit value at time of application. Permit valuations shall include total value of work, including materials and labor, for which the Permit is being issued, such as electrical, gas, mechanical, plumbing equipment and permanent systems. If, in the opinion of the Building Official, the valuation is underestimated on the application, the Permit shall be denied, unless the applicant can show detailed estimates to meet the approval of the Building Official. Final building Permit valuation shall be set by the Building Official.

d. Additional Fees for Work Commencing Prior to Permit. Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary Permits or without prior approval from the Building Official as permitted in Section 10.5.2.2 or 10.5.12, are subject to additional fees pursuant to Section 10-18 of the City Code. The payment of the fees shall not relieve any person, firm, or corporation from fully complying with all the requirements of all applicable regulations and Codes, nor shall it relieve them from being subject to any of the penalties therein. The fee requirement shall apply to all trade divisions of the Building Department. This provision shall not apply to emergency work when delay would clearly have placed life or property in imminent danger. But in all such cases the required Permit(s) must be applied for within three (3) business days. The payment of the aforementioned fees shall not preclude or be deemed a substitute for prosecution for commencing work without first obtaining a Permit. The Building Official may grant extensions of time or waive fees when justifiable cause has been demonstrated in writing, or as provided by local ordinance.

e. Related fees. The payment of the fee for the construction, alteration, removal or demolition for work done in connection to or concurrently with the work authorized by a building Permit shall not relieve the applicant or holder of the Permit from the payment of other fees that are prescribed by law.

f. Refunds. The Building Official is authorized to establish a refund policy.
(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-10. Inspections.

a. In General. Construction or work for which a Permit is required shall be subject to inspection by the Building Official and such construction or work shall remain exposed and provided with access for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this Code or of other ordinances of the jurisdiction. Inspections presuming to give authority to violate or cancel the provisions of

this Code or of other ordinances of the jurisdiction shall not be valid. It shall be the duty of the owner or the owner's authorized agent to cause the work to remain exposed and provided with access for inspection purposes. The Building Official shall be permitted to require a boundary line survey prepared by a Florida licensed professional surveyor and mapper whenever the boundary lines cannot be readily determined in the field. Neither the Building Official nor the jurisdiction shall be liable for expense entailed in the removal or replacement of any material required to allow inspection.

1. Manufacturers and fabricators. When deemed necessary by the Building Official, they shall make, or cause to be made, an inspection of materials or assemblies at the point of manufacture or fabrication. A record shall be made of every such examination and inspection and of all violations of the technical codes.

2. Preliminary inspection. Before issuing a Permit, the Building Official is authorized to examine or cause to be examined buildings, structures and sites for which an application has been filed.

b. Pre-construction meeting. The Building Official may require a pre-construction meeting as a pre-requisite to the issuance of a Permit for any building or project, at their discretion. The Permit shall not be issued until this requirement has been satisfied. The time and location of the meeting shall be established by the Building Official, and shall include, at a minimum, the design professionals in responsible charge, the qualifying general Contractor, qualifying subContractors, the owner or their corporate representatives, and if applicable, Private Providers performing inspections under Section 553.791, Florida Statutes, and the threshold building inspector. If authorized in advance by the Building Official. The above-mentioned attendees may be substituted with approved surrogates.

The purpose of the pre-construction meeting is to:

1. Establish a clear understanding of the duties and responsibilities of all parties.

2. Review the Building Official's performance expectations for the project.

3. Formally review the department's inspections scheduling procedures.

4. Explain and reinforce department guidelines for Special Inspectors and Private Providers.

5. Discuss other matters as appropriate.

c. Required inspections. The Building Official upon notification from the Permit holder or their agent shall make the following inspections, or any other such inspection as deemed necessary and shall either release that portion of the construction or shall notify the Permit holder or their agent of any violations which must be corrected in order to comply with the technical Codes. The Building Official shall determine the timing and sequencing of when inspections occur and what elements are inspected at each inspection. Under no conditions can an inspection occur without a valid Permit in place for the work or Components of work to be inspected. It is the responsibility of the approved inspection agency to ensure compliance.

d. Building

1. Foundation inspection. To be made after trenches are excavated, any required reinforcing steel is in place, forms erected and shall at a minimum include the following building Components:

   A. Stem-wall

   B. Monolithic slab-on-grade

   C. Piling/pile caps

   D. Footers/grade beams

      i Slab Inspection: Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

ii A foundation/form board survey prepared and certified by a Florida licensed professional surveyor and mapper may be required, prior to approval of the slab inspection. The survey shall certify placement of the building on the site, illustrate all surrounding setback dimensions and shall be available at the job site for review by the building inspector. In lieu of providing a survey, the Contractor may elect to uncover all property line markers and string-up all property lines in preparation for inspection.

iii. In flood hazard areas, upon placement of the lowest floor, including basement, and prior to further vertical construction, the elevation certification shall be submitted to the authority having jurisdiction.

2. Framing inspection. To be made after the roof, all framing, fireblocking and bracing is in place, all concealing wiring, all pipes, chimneys, ducts and vents are complete and the rough electrical, plumbing, heating wires, pipes and ducts are approved and shall at a minimum include the following building Components:

   A. Window/door framing

   B. Window U-factor/SHGC (as indicated on approved energy calculations)

   C. Vertical cells/columns

   D. Lintel/tie beams

   E. Framing/trusses/bracing/connectors (including truss layout and engineered drawings

   F. Draftstopping/fireblocking

   G. Curtain wall framing

   H. Energy insulation (Insulation R-factor as indicated on approved energy calculations)

   I. Accessibility

   J. Verify rough opening dimensions are within tolerances.

   K. Window/door buck attachment

      i. Insulation Inspection: To be made after the framing inspection is approved and the insulation is in place, according to approved energy calculation submittal. Includes wall and ceiling insulation.

      ii. Lath and gypsum board inspection for fire-resistance rated or shear assemblies. Lath and gypsum board inspections shall be made after lathing and gypsum board, interior and exterior, is in place, but before ant plastering is applied or gypsum board joints and fasteners are taped and finished.

3. Sheathing inspection. To be made either as part of a dry-in inspection or done separately at the request of the Contractor after all roof and wall sheathing and fasteners are complete and shall at a minimum include the following building Components:

   A. Roof sheathing

   B. Wall sheathing

   C. Continuous air barrier

   D. Exterior siding/cladding

   E. Sheathing fasteners

   F. Roof/wall dry-in

   NOTE: Sheathing fasteners installed and found to be missing the structural member (shiners) shall be removed and properly reinstalled prior to installation of the dry-in material.

4. Exterior wall coverings. Shall at a minimum include the following building Components in progress inspections:

   A. Exterior wall coverings and veneers

   B. Soffit coverings

5. Roofing inspection. Shall at a minimum be made in at least two inspections and include the following building Components:
   A. Dry-in
   B. Insulation
   C. Roof coverings (including In Progress as necessary)
   D. Insulation on roof deck (according to submitted energy calculation)
6. Flashing
   A. Re-roof sheathing inspection. An affidavit with a notarized signature of a state or locally licensed roofing Contractor for the installation of additional sheathing fasteners as required by the Existing Building Code may be accepted at the discretion of the Building Official.
7. Final inspection. To be made after the building is completed and ready for occupancy. In flood hazard areas, as part of the final inspection, a final certification of the lowest floor elevation or the elevation to which a building is dry floodproofed, as applicable, shall be submitted to the authority having jurisdiction.
8. Swimming pool inspection. First inspection to be made after excavation and installation of reinforcing steel, bonding and main drain and prior to placing of concrete.
   A. Steel reinforcement inspection
   B. Underground electric inspection
   C. Underground piping inspection including a pressure test.
   D. Underground electric inspection under deck area (including the equipotential bonding)
   E. Underground piping inspection under deck area
   F. Deck inspection: to be made prior to installation of the deck material (with forms, deck drains, and any reinforcement in place.
   G. Safety Inspection; Made prior to filling the pool with the bonding connections made, the proper drain covers installed and the final barriers installed.
   H. Final pool piping
   I. Final Electrical inspection
   J. Final inspection to be made when the swimming pool is complete and all required enclosure requirements are in place.

   In order to pass final inspection and receive a certificate of completion, a residential swimming pool must meet the requirements relating to pool safety features as described in Section 454.2.17, Florida Building Code.
9. Demolition inspections. First inspection to be made after all utility connections have been dis-connected and secured in such manner that no unsafe or unsanitary conditions shall exist during or after demolition operations. Final inspection to be made after all demolition work is completed.
10. Manufactured building inspections. The building department shall inspect construction of foundations; connecting buildings to foundations; installation of parts identified on plans as site installed items, joining the modules, including utility cross- overs; utility connections from the building to utility lines on site; and any other work done on site which requires compliance with the Florida Building Code. Additional inspections may be required for public educational facilities (see Section 453.27.20 of this Code).
11. Where impact-resistant coverings or impact-resistant systems are installed, the Building Official shall schedule adequate inspections of impact- resistant coverings or impact-resistant systems to determine the following:
   A. The system indicated on the plans was installed.

B. The system is installed in accordance with the manufacturer's installation instructions and the product approval.

e. Electrical

1. Underground inspection. To be made after trenches or ditches are excavated, conduit or cable installed, and before any backfill is put in place.

2. Rough-in inspection. To be made after the roof, framing, fireblocking and bracing is in place and prior to the installation of wall or ceiling membranes.

3. Final inspection. To be made after the building is complete, all required electrical fixtures are in place and properly connected or protected, and the structure is ready for occupancy.

4. Existing Swimming Pools. To be made after all repairs or alterations are complete, all required electrical equipment, GFCI protection, and equipotential bonding are in place on said alterations or repairs.

f. Plumbing

1. Underground inspection. To be made after trenches or ditches are excavated, piping installed, and before any backfill is put in place.

2. Rough-in inspection. To be made after the roof, framing, fireblocking and bracing is in place and all soil, waste and vent piping is complete, and prior to this installation of wall or ceiling membranes.

   Includes plumbing provisions of the energy Code and approved energy calculation provisions.

3. Final inspection. To be made after the building is complete, all plumbing fixtures are in place and properly connected, and the structure is ready for occupancy.

   Note: See Section 312 of the Florida Building Code, Plumbing for required tests.

g. Mechanical

1. Underground inspection. To be made after trenches or ditches are excavated, underground duct and fuel piping installed, and before any backfill is put in place.

2. Rough-in inspection. To be made after the roof, framing, fireblocking and bracing are in place and all ducting, and other concealed Components are complete, and prior to the installation of wall or ceiling membranes.

   Includes mechanical provisions of the energy code and approved energy calculation provisions.

3. Final inspection. To be made after the building is complete, the mechanical system is in place and properly connected, and the structure is ready for occupancy.

h. Gas

1. Rough piping inspection. To be made after all new piping authorized by the Permit has been installed, and before any such piping has been covered or concealed or any fixtures or gas appliances have been connected.

   Includes gas provisions of the energy Code and approved energy calculation provisions.

2. Final piping inspection. To be made after all piping authorized by the Permit has been installed and after all portions which are to be concealed by plastering or otherwise have been so concealed, and before any fixtures or gas appliances have been connected. This inspection shall include a pressure test.

3. Final inspection. To be made on all new gas work authorized by the Permit and such portions of existing systems as may be affected by new work or any changes, to ensure compliance with all the requirements of this Code and to assure that the

installation and construction of the gas system is in accordance with reviewed plans.

i. Site Debris: The Contractor and/or owner of any active or inactive construction project shall be responsible for the clean-up and removal of all construction debris or any other miscellaneous discarded articles during the course of the construction project and prior to receiving final inspection approval. Construction job sites must be kept clean and in a safe condition at all times; including, but not limited to, the proper storage and removal of human excreta as defined under Chapter 49 of the City Code. Any violation thereof may result in the issuance of a Stop Work Order or denial of the issuance of a Certificate of Completion or Temporary Certificate of Completion. All debris shall be kept in such a manner as to prevent it from being spread by any means.

j. Footing and foundation inspection. Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job site, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the job.

k. Concrete slab and under-floor inspection. Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

l. Lowest floor elevation. In flood hazard areas, upon placement of the lowest floor, including the basement, and prior to further vertical construction, the elevation certification required in Section 1612.4, Florida Building Code and Section R322 of the Florida Building Code, Residential, shall be submitted to the Building Official.

m. Frame inspection. Framing inspections shall be made after the roof deck or sheathing, all framing, fireblocking and bracing are in place and pipes, chimneys and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes and ducts are approved.

n. Lath, gypsum board and gypsum panel product inspection. Lath, gypsum board and gypsum panel product inspections shall be made after lathing, gypsum board and gypsum panel products, interior and exterior, are in place, but before any plastering is applied or gypsum board and gypsum panel product joints and fasteners are taped and finished.

Exception: Gypsum board and gypsum panel products that are not part of a fire-resistance-rated assembly or a shear assembly.

o. Weather-exposed balcony and walking surface waterproofing. Where balcony or other elevated walking surfaces are exposed to water from direct or blowing rain, or irrigation, and the structural framing is protected by an impervious moisture barrier, all elements of the impervious-moisture-barrier system shall not be concealed until inspected and approved.

p. Fire and smoke-resistant penetrations. Protection of joints and penetrations in fire-resistance-rated assemblies, smoke barriers and smoke partitions shall not be concealed from view until inspected and approved.

q. Energy efficiency inspections. Inspections shall be made to determine compliance with FBC, Energy Conservation and confirm with the approved energy code submittal (by appropriate trade) and corresponding mandatory requirements and shall include, but not be limited to, inspections for: corresponding envelope insulation R- and U-values, fenestration U-value, and Solar Heat Gain Coefficient, duct system R-value, and HVAC, lighting, electrical and water-heating equipment efficiency.

r. Other inspections. In addition to the inspections specified in Sections 110.3 through 110.3.8, Florida Building Code or Sections 10-10(j) through (q) of this Code, the Building Official is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this Code and other laws that are enforced by the Department.

s. Special Inspections. For the purpose of this Section, a Special Inspection is defined as the inspection of construction requiring the expertise of an approved Special Inspector in order to ensure compliance with this Code and the approved construction documents. Special Inspections fall into two categories:

1. Continuous Special Inspection, for which the Special Inspector must be present continuously when and where the work to be inspected is being performed.
2. Periodic Special Inspection, for which the Special Inspector may be intermittently present where the work to be inspected has been or is being performed. The nature of the work inspected shall dictate the method of inspection to be performed by the Special Inspector.
3. Special Inspector: A Florida-registered architect or engineer retained by the owner to provide professional services consisting of observation and inspection of construction for conformance with the Permit documents and the Florida Building Code.
4. The Building Official shall require Special Inspections for the following:
   A. The compaction of fill under slabs on grade.
   B. The installation of structural piles.
   C. The construction of reinforced masonry structures.
   D. Welding and high-strength bolting.
   E. The fabrication and installation of curtain wall systems on threshold buildings.
   F. The fabrication and installation of structural glazed panels.
   G. Hoisting, erection and bracing of trusses over 35 feet in length or 6 feet in height.
   H. Structural inspections on threshold buildings pursuant to Section 110.8, Florida Building Code or Section 10-10(20) of this Code.
5. When one or more of the following conditions exist the Building Official is authorized to require a Special Inspector for the inspection of the exterior cladding, firestopping, railings and safeguards, framing, roofing or any part of the building, except that inspections of plumbing, electrical or mechanical systems, inspections of required features of handicap accessibility and final inspections shall not be performed by a Special Inspector:
   A. The building is of unusual size or height, or
   B. The method of design or construction is unusual or complex, or
   C. The method or pace of the construction requires continuous inspection, or the construction item to be inspected requires specialized expertise, or
   D. In the opinion of the Building Official, additional inspections are required in order to ensure compliance with the Florida Building Code.
6. Prior to issuance of the Permit and for cases governed by this Section above, the Building Official shall require that each Special Inspector be certified by the Miami-Dade County Board of Rules and Appeals as a Special Inspector in compliance with Section 8-4 of the Miami-Dade County Code. Such Special Inspector(s) shall be a Florida-registered architect or engineer and shall be qualified by training and experience to perform the inspections for which they will be retained. Any and all inspections required and authorized to be performed by a Special Inspector pursuant to this Section shall be performed by persons who shall have the knowledge, expertise, and if required the appropriate licensing board's certification related to the specialty or discipline involved in the inspection.
7. The Building Official shall specify the scope and nature of the inspections to be performed or shall require that the Architect or Engineer of Record submit

an inspection plan for approval. The Special Inspector or their duly authorized representative shall make all inspections in accordance with the approved inspection plan.

8. The Building Official shall be promptly informed of the results of all inspections in reports signed by the Special Inspector(s). Prior to the issuance of a Certificate of Occupancy, each Special Inspector shall submit to the Building Official a statement indicating the scope of his inspections and attesting that, to the best of his knowledge, belief and professional judgment, the work is in substantial compliance with the Permit documents.

9. Special Inspectors shall be responsible to the Building Official. The Building Official shall periodically visit the construction site to monitor, review, evaluate and approve the work of the Special Inspector(s). The Building Official is empowered to direct, as necessary, the work of the Special Inspector(s) and may, at any time, remove a Special Inspector for failure to perform their duties in accordance with the provisions of this Section. In that event, the Building Official may also require or Permit the owner, within such time as the Building Official may reasonably establish, to employ an alternate Special Inspector.

10. The Building Official may conduct mandatory inspections as required herein through a Special Inspector subject to the limitations given in Section 110.3.10, Florida Building Code.

11. Duties and responsibilities. The Special Inspector shall not perform inspections for any work, or any component of the work, that does not have a valid Permit. If unpermitted construction is discovered, the Special Inspector shall notify the Building Official immediately as a matter of public safety, and inspection services shall cease until the proper Permits have been acquired. Any Special Inspector knowingly conducting inspections on projects without the requisite Permits may be referred to their respective professional board for disciplinary review in accordance with Section 553.79, Florida Statutes. Any safety issues shall immediately be reported to the Building Official, and any other enforcement agency having jurisdiction over the matter.

12. Inspection documents. The Special Inspector shall maintain at the job site a complete record of all inspections performed and shall make it available at all times for review by the Building Official. The collective record of inspections shall be known as the inspection log.

    A. Inspection reports shall be legible and shall clearly identify, in detail, the exact areas and/or items inspected.

    B. Each individual inspection report shall be signed by the person who performed the inspection. Example: If the Special Inspector performs the inspection, then they must sign the report. If the Special Inspector's duly authorized representative performs the inspection, then they shall be the party to sign the inspection report, but the Special Inspector may also co-sign the document at their discretion.

    C. The inspection log shall be maintained in good condition, in one or more binders, and shall be organized by date and separated by trade. Individual reports must be numbered sequentially or otherwise labeled to follow a chronological order. As the construction progresses, and upon completion of the project, the Building Official shall be able to determine from the inspection log itself that all areas and/or Components of the project that were completed have been inspected and approved.

13. Final inspection. The final inspection shall be made after all work required by the building Permit is completed.
    A. Flood hazard documentation. If located in a flood hazard area, documentation of the elevation of the lowest floor as required in Section 1612.5, Florida Building Code and Section R322 of the Florida Building Code, Residential, shall be submitted to the Building Official prior to the final inspection.
    B. Commercial Energy Code documentation. If required by energy code path submittal, confirmation that commissioning result requirements have been received by building owner.
    C. Residential Energy Code documentation. If required by energy Code path submittal (R405), confirmation that the duct test requirements shall be received by Building Official.
14. Termites. Building Components and building surroundings required to be protected from termite damage in accordance with Section 1503.7, Section 2304.12.9 or Section 2304.12.4, Florida Building Code, specifically required to be inspected for termites in accordance with Section 2114, Florida Building Code, or required to have chemical soil treatment in accordance with Section 1816, Florida Building Code, shall not be covered or concealed until the release from the Building Official has been received.
15. Impact-resistant coverings or systems. Where impact-resistant coverings or systems are installed to meet requirements of this Code, the Building Official shall schedule adequate inspections of impact-resistant coverings or systems to determine the following:
    A. The system indicated on the plans was installed.
    B. The system is installed in accordance with the manufacturer's installation instructions and the product approval.
16. Inspection agencies. The Building Official is authorized to accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications and reliability.
17. Inspection requests. It shall be the duty of the holder of the building Permit or their duly authorized agent to notify the Building Official when work is ready for inspection. It shall be the duty of the Permit holder to provide access to and means for inspections of such work that are required by this Code.
18. Approval required. Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the Building Official. The Building Official, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or notify the Permit holder or their agent wherein the same fails to comply with this Code. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the Building Official. The Building Official is authorized to order the removal of work that conceals other work not having obtained prior approval.
19. Shoring. For threshold buildings, shoring and associated formwork or falsework shall be designed and inspected by a Florida licensed professional engineer prior to any required mandatory inspections by the threshold building inspector.
20. Threshold building.
    A. During new construction or during repair or restoration projects in which the structural system or structural loading of a building is being modified, the enforcing agency shall require a Special Inspector to perform structural inspections on a threshold building pursuant to a structural inspection plan prepared by the engineer or architect of record.

The structural inspection plan must be submitted to the enforcing agency prior to the issuance of a building Permit for the construction of a threshold building. The purpose of the structural inspection plans is to provide specific inspection procedures and schedules so that the building can be adequately inspected for compliance with the permitted documents, and with specific requirements of the City of Miami. The Special Inspector may not serve as a surrogate in carrying out the responsibilities of the Building Official, the architect, or the engineer of record. The Contractor's contractual or statutory obligations are not relieved by any action of the Special Inspector.

B. The Special Inspector shall determine that a professional engineer who specializes in shoring design has inspected the shoring and reshoring for conformance with the shoring and reshoring plans submitted to the enforcing agency. A fee simple title owner of a building, which does not meet the minimum size, height, occupancy, occupancy classification, or number-of-stories criteria which would result in classification as a threshold building under s. 553.71(7), Florida Statutes, may designate such building as a threshold building, subject to more than the minimum number of inspections required by the Florida Building Code.

C. The fee owner of a threshold building shall select and pay all costs of employing a Special Inspector, but the Special Inspector shall be responsible to the enforcement agency. The inspector shall be a person certified, licensed or registered under Chapter 471, Florida Statutes, as an engineer or under Chapter 481, Florida Statutes, as an architect.

D. Each enforcement agency shall require that, on every threshold building:

i. The Special Inspector, upon completion of the building and prior to the issuance of a Certificate of Occupancy, file a signed and sealed statement with the enforcement agency in substantially the following form: "To the best of my knowledge and belief, the above described construction of all structural load- bearing Components complies with the Permitted documents, and the shoring and reshoring conforms to the shoring and reshoring plans submitted to the enforcement agency."

ii. Any proposal to install an alternate structural product or system to which building codes apply be submitted to the enforcement agency for review for compliance with the codes and made part of the enforcement agency's recorded set of Permit documents.

iii. All shoring and reshoring procedures, plans and details be submitted to the enforcement agency for recordkeeping. Each shoring and reshoring installation shall be supervised, inspected and certified to be in compliance with the shoring documents by the Contractor.

iv. All plans for the building which are required to be signed and sealed by the architect or engineer of record contain a statement, on each drawing page, that, to the best of the architect's or engineer's knowledge, the plans and specifications comply with the applicable minimum building Codes and the applicable fire-

safety standards as determined by the City of Miami in accordance with Section 110.8.4.4, Florida Building Code and Chapter 633, Florida Statutes.

E. No enforcing agency may issue a building Permit for construction of any threshold building except to a licensed general Contractor, as defined in Section 489.105(3)(a), Florida Statutes, or to a licensed building Contractor, as defined in Section 489.105(3)(b), Florida Statutes, within the scope of her or his license. The named Contractor to whom the building Permit is issued shall have the responsibility for supervision, direction, management and control of the construction activities on the project for which the building Permit was issued.

F. The building department may allow a Special Inspector to conduct the minimum structural inspection of threshold buildings required by this Code and Section 553.73, Florida Statutes, without duplicative inspection by the building department. However, the building department may duplicate any inspection for quality assurance, or for any other purpose as determined by the Building Official.

The Building Official is responsible for ensuring that any person conducting inspections is qualified as a building inspector under Part XII of Chapter 468, Florida Statutes, or certified as a Special Inspector under Chapter 471 or 481, Florida Statutes. Inspections of threshold buildings required by Section 553.79(5), Florida Statutes, are in addition to the minimum inspections required by this Code.

t. Mandatory structural inspections for condominium and cooperative buildings.

a. General. The Legislature finds that maintaining the structural integrity of a building throughout the life of the building is of paramount importance in order to ensure that buildings are structurally sound so as to not pose a threat to the public health, safety, or welfare. As such, the Legislature finds that the imposition of a statewide structural inspection program for aging condominium and cooperative buildings in this state is necessary to ensure that such buildings are safe for continued use.

b. As used in this Section, the terms:

Milestone Inspection means a structural inspection of a building, including an inspection of load-bearing elements and the primary structural members and primary structural systems as those terms are defined in Section 627.706, Florida Statutes, by an architect licensed under Chapter 481, Florida Statutes, or engineer licensed under Chapter 471, Florida Statutes, authorized to practice in this state for the purposes of attesting to the life safety and adequacy of the structural Components of the building and, to the extent reasonably possible, determining the general structural condition of the building as it affects the safety of such building, including a determination of any necessary maintenance, repair, or replacement of any structural Component of the building. The purpose of such inspection is not to determine if the condition of an existing building is in compliance with the Florida Building Code or the firesafety Code. The Milestone Inspection services may be provided by a team of professionals with an architect or engineer acting as a

registered design professional in responsible charge with all work and reports signed and sealed by the appropriate qualified team member.

Substantial Structural Deterioration means substantial structural distress or substantial structural weakness that negatively affects a building's general structural condition and integrity. The term does not include surface imperfections such as cracks, distortion, sagging, deflections, misalignment, signs of leakage, or peeling of finishes unless the licensed engineer or architect performing the phase one or phase two inspection determines that such surface imperfections are a sign of Substantial Structural Deterioration.

c. Inspection Phases.

1. An owner or owners of a building that is three stories or more in height as determined by the Florida Building Code and that is subject, in whole or in part, to the condominium or cooperative form of ownership as a residential condominium association under Chapter 718, Florida Statutes, or a cooperative association under Chapter 719, Florida Statutes, must have a Milestone Inspection performed for each building that is three (3) stories or more in height by December 31 of the year in which the building reaches thirty (30) years of age, based on the date the Certificate of Occupancy for the building was issued, and every ten (10) years thereafter. If a building reached thirty (30) years of age before July 1, 2022, the building's initial Milestone Inspection must be performed before December 31, 2024. If a building reaches thirty (30) years of age on or after July 1, 2022, and before December 31, 2024, the building's initial Milestone Inspection must be performed before December 31, 2025. If the date of issuance for the Certificate of Occupancy is not available, the date of issuance of the building's Certificate of Occupancy shall be the date of occupancy evidenced in any record of the local Building Official.

2. The Department may determine that local circumstances, including environmental conditions such as proximity to salt water as defined in Section 379.101, Florida Statutes, require that a Milestone Inspection must be performed by December 31 of the year in which the building reaches twenty-five (25) years of age, based on the date the Certificate of Occupancy for the building was issued, and every ten (10) years thereafter.

3. The Department may extend the date by which a building's initial Milestone Inspection must be completed upon a showing of good cause by the owner or owners of the building that the inspection cannot be timely completed if the owner or owners have entered into a contract with an architect or engineer to perform the Milestone Inspection and the inspection cannot reasonably be completed before the deadline or other circumstance to justify an extension.

4. The Department may accept an inspection report prepared

by a licensed engineer or architect for a structural integrity and condition inspection of a building performed before July 1, 2022, if the inspection and report substantially comply with the requirements of this Section. Notwithstanding when such inspection was completed, the condominium or cooperative association must comply with the unit owner notice requirements in Section 110.9.9, Florida Building Code. The inspection for which an inspection report is accepted by the Department under this paragraph is deemed a Milestone Inspection for the applicable requirements in Chapters 718 and 719, Florida Statutes. If a previous inspection and report is accepted by the Department under this paragraph, the deadline for the building's subsequent ten (10) year Milestone Inspection is based on the date of the accepted previous inspection.

d. The Milestone Inspection report must be arranged by a condominium or cooperative association and any owner of any portion of the building which is not subject to the condominium or cooperative form of ownership. The condominium association or cooperative association and any owner of any portion of the building which is not subject to the condominium or cooperative form of ownership are each responsible for ensuring compliance with the requirements of this Section. The condominium association or cooperative association is responsible for all costs associated with the Milestone Inspection attributable to the portions of a building which the association is responsible to maintain under the governing documents of the association. This Section does not apply to a single-family, two-family, or three-family dwelling with three or fewer habitable stories above ground.

e. Upon determining that a building must have a Milestone Inspection, the Department must provide written notice of such required inspection to the condominium association or cooperative association and any owner of any portion of the building which is not subject to the condominium or cooperative form of ownership, as applicable, by certified mail, return receipt requested. The condominium or cooperative association must notify the unit owners of the required Milestone Inspection within fourteen (14) days after receipt of the written notice from the Department and provide the date that the Milestone Inspection must be completed. Such notice may be given by electronic submission to unit owners who consent to receive notice by electronic submission or by posting on the association's website.

f. Phase one of the Milestone Inspection must be completed within 180 days after the owner or owners of the building receive the written notice under Section 110.9.5, Florida Building Code or Section 10-10 of this Code. For purposes of this Section, completion of phase one of the Milestone Inspection means the licensed engineer or architect who performed the phase one inspection submitted the inspection report by e-mail, United States Postal Service, or commercial delivery service to the Department.

g. A Milestone Inspection consists of two phases:

   A. For phase one of the Milestone Inspection, a licensed architect

or engineer authorized to practice in this state shall perform a visual examination of habitable and non-habitable areas of a building, including the major structural Components of a building, and provide a qualitative assessment of the structural conditions of the building. If the architect or engineer finds no signs of Substantial Structural Deterioration to any building Components under visual examination, phase two of the inspection, as provided in Section 110.9.7.2, Florida Building Code, or Section 10-10(g) of this Code, is not required. An architect or engineer who completes a phase one Milestone Inspection shall prepare and submit an inspection report pursuant to Section 110.9.8, Florida Building Code, or Section 10-10 of this Code.

B. Phase two of the Milestone Inspection must be performed if any Substantial Structural Deterioration is identified during phase one. A phase two inspection may involve destructive or non-destructive testing at the inspector's direction. The inspection may be as extensive or as limited as necessary to fully assess areas of structural distress in order to confirm that the building is structurally sound and safe for its intended use and to recommend a program for fully assessing and repairing distressed and damaged portions of the building. When determining testing locations, the inspector must give preference to locations that are the least disruptive and most easily repairable while still being representative of the structure. If a phase two inspection is required, within 180 days after submitting a phase one inspection report the architect or engineer performing the phase two inspection must submit a phase two progress report to the Department with a timeline for completion of the phase two inspection. An inspector who completes a phase two Milestone Inspection shall prepare and submit an inspection report as required in this Section.

C. Upon completion of a phase one or phase two Milestone Inspection, the architect or engineer who performed the inspection must submit a sealed copy of the inspection report with a separate summary of, at minimum, the material findings and recommendations in the inspection report to the condominium association or cooperative association, to any other owner of any portion of the building which is not subject to the condominium or cooperative form of ownership, and to the Building Official of the local government which has jurisdiction. The inspection report must, at a minimum, meet all of the following criteria:

i. Bear the seal and signature, or the electronic signature, of the licensed engineer or architect who performed the inspection.

ii. Indicate the manner and type of inspection forming the basis for the inspection report.

iii. Identify any Substantial Structural Deterioration, within a reasonable

professional probability based on the scope of the inspection, describe the extent of such deterioration, and identify any recommended repairs for such deterioration.

iv. State whether unsafe or dangerous conditions, as those terms are defined in the Florida Building Code, were observed.

v. Recommend any remedial or preventive repair for any items that are damaged but are not Substantial Structural Deterioration.

vi. Identify and describe any items requiring further inspection.

D. Within 45 days after receiving the applicable inspection report, the condominium or cooperative association must distribute a copy of the inspector-prepared summary of the inspection report to each condominium unit owner or cooperative unit owner, regardless of the findings or recommendations in the report, by United States mail or personal delivery at the mailing address, property address, or any other address of the owner provided to fulfill the association's notice requirements under Chapter 718 or Chapter 719, Florida Statutes, as applicable, and by electronic transmission to the e-mail address or facsimile number provided to fulfill the association's notice requirements to unit owners who previously consented to received notice by electronic transmission; must post a copy of the inspector-prepared summary in a conspicuous place on the condominium or cooperative property; and must publish the full report and inspector prepared summary on the association's website, if the association is required to have a website.

E. The Department may prescribe timelines and penalties with respect to compliance with this Section.

F. A Board of County Commissioners or Municipal governing body may adopt an ordinance requiring that a condominium or cooperative association and any other owner that is subject to this Section schedule or commence repairs for Substantial Structural Deterioration within a specified timeframe after the Department receives a phase two inspection report; however, such repairs must be commenced within 365 days after receiving such report. If an owner of the building fails to submit proof to the Department that repairs have been scheduled or have commenced for Substantial Structural Deterioration identified in a phase two inspection report within the required timeframe, the Department must review and determine if the building is unsafe for human occupancy.

G. Cleanup of site. Upon completion of the proposed work, the Permit holder shall leave the site cleared of rubbish, debris, construction sheds or materials of construction. In the event there has been damage to public property or that rubbish, debris, construction sheds or materials of construction have been left at the site, then the Build-

ing Official shall refuse to make final inspection and shall notify the Permit holder to correct the condition of violation within five (5) days. For failure to comply with such notice after such period of five (5) days, the Permit holder is subject to the penalties specified herein, and the Building Official shall have the cleanup work done and public property restored and shall notify the legal authority, who shall institute the necessary action to have the costs placed as a lien against the property in relation to which the Permit was issued, as allowed by law, and any other requirements mandated by local law.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-11. Certificates of occupancy/use and occupancy.

A building or structure shall not be used or occupied, and a change in the existing use or occupancy classification of a building or structure or portion thereof shall not be made, until the Building Official has issued a Certificate of Occupancy therefor as provided herein. Issuance of a Certificate of Occupancy shall not be construed as an approval of a violation of the provisions of this Code or of other ordinances of the jurisdiction.

Exception: Certificates of Occupancy are not required for work exempt from Permits in accordance with Section 105.2, Florida Building Code or Section 10-5 of this Code.

a. Certificate issued. After the Building Official inspects the building or structure and does not find violations of the provisions of this Code or other laws that are enforced by the Department, the Building Official shall issue a Certificate of Occupancy that contains the following:

1. The building Permit number.
2. The address of the structure.
3. The name and address of the owner or the owner's authorized agent.
4. A description of that portion of the structure for which the certificate is issued.
5. A statement that the described portion of the structure has been inspected for compliance with the requirements of this Code for the occupancy and division of occupancy and the use for which the proposed occupancy is classified.
6. For buildings and structures in flood hazard areas, a statement that documentation of the as-built lowest floor elevation has been provided and is retained in the records of the authority having jurisdiction.
7. The name of the Building Official.
8. The edition of the Code under which the Permit was issued.
9. The use and occupancy, in accordance with the provisions of Chapter 3, Florida Building Code.
10. The type of construction as defined in Chapter 6, Florida Building Code.
11. The design occupant load.
12. If an automatic sprinkler system is provided, whether the sprinkler system is required.
13. Any special stipulations and conditions of the building Permit.

b. Temporary occupancy. The Building Official is authorized to issue a Temporary Certificate of Occupancy before the completion of the entire work covered by the Permit, provided that such portion or portions shall be occupied safely. The Building Official shall set a time period during which the Temporary Certificate of Occupancy is valid.

1. Premature occupancy. Occupying a building or structure before authorization is obtained from all required departments or agencies shall subject the Permit holder to

additional fines as applicable and/or penalties. The Building Official is authorized to remove all occupants until full authorization is obtained.

c. Revocation. The Building Official is authorized to, in writing, suspend or revoke a Certificate of Occupancy or completion issued under the provisions of this Code wherever the certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this Code.

d. Certificate of completion. A certificate of completion is proof that a structure or system is complete and for certain types of Permits is released for use and may be connected to a utility system. This certificate does not grant authority to occupy a building, such as shell building, prior to the issuance of a Certificate of Occupancy.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-12. Service utilities.

a. Connection of service utilities. A person shall not make connections from a utility, source of energy, fuel or power to any building or system that is regulated by this Code for which a Permit is required, until released by the Building Official.

b. Temporary connection. The Building Official shall have the authority to authorize the temporary connection of the building or system to the utility, source of energy, fuel or power.

c. Authority to disconnect service utilities. The Building Official shall have the authority to authorize disconnection of utility service to the building, structure or system regulated by this Code and the referenced Codes and standards set forth in Section 101.4, Florida Building Code, or Section 10-1 of this Code, in case of emergency where necessary to eliminate an immediate hazard to life or property or where such utility connection has been made without the approval required by Section 112.1 or 112.2, Florida Building Code or Section 10-12 of this Code. The Building Official shall notify the serving utility, and wherever possible the owner and occupant of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnecting, the owner or occupant of the building, structure or service system shall be notified in writing, as soon as practical thereafter.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-13. Stop work order.

a. Authority. Where the Building Official finds any work regulated by this Code being performed in a manner either contrary to the provisions of this Code or dangerous or unsafe, the Building Official is authorized to issue a stop work order.

b. Issuance. The stop work order shall be in writing and shall be given to the owner of the property involved, the owner's authorized agent or the person performing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work will be Permit to resume.

c. Unlawful continuance. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, may be subject to the revocation of any active Permits and shall be subject to any additional penalties as proscribed by law.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-14. Unsafe structures and equipment.

Any activities related to or involving unsafe structures as defined shall conform with the requirements of Chapter 10, Article VI of the City Code, as amended.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-15. Variances in flood hazard areas.

Pursuant to Section 553.73(5), Florida Statutes, the variance procedures adopted in the local

flood plain management ordinance shall apply to requests submitted to the Building Official for variances to the provisions of Section 1612.4 of the Florida Building Code, Building or, as applicable, the provisions of Section R322 of the Florida Building Code, Residential. This Section shall not apply to Section 3109 of the Florida Building Code, Building.
(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-16. Alternative plans review and inspection.

a. Private Provider election. For the purpose of this Section the term Private Provider shall be the same as defined in Section 553.791, Florida Statutes. The fee owner of a building or structure may choose to use a Private Provider to provide building code inspection services with regard to such building or structure. Upon written authorization from the fee owner, the election to use a Private Provider may also be made by the fee owner's Contractor or by the lessee in the fee owner's building or structure, with written consent from the fee owner.

b. Scope of service. The Private Provider may provide plans review or required building inspections, or both. However, if the Private Provider provides plans review services, they shall also provide required building inspections. The Building Official shall not allow plans review only. Private Providers may review the following disciplines only: Building, Roofing, Structural, Electrical, Mechanical and Plumbing. All other disciplines (Zoning, Fire, Public Works, etc.) will be reviewed by the City.

c. Registration. Private Provider firms operating within the jurisdiction of the City of Miami shall be registered prior to engaging in any business activity in accordance with 553.791, Florida Statutes. The registration system shall be established by the Building Official and shall be accessible from the jurisdiction's website. There shall be no cost associated with the registration of Private Providers or their business entities.

d. Changing the Private Provider during plans review. If the Private Provider is terminated, or otherwise fails to complete the plans review process and issue the appropriate affidavits, a substitute Private Provider may finish the plans review and assume all responsibility. The Building Official, at their discretion, may opt to take over the responsibility for plans review, provided that approval of the construction documents is based strictly upon review by the enforcement agency, and not by the Private Provider.

e. Changing the Private Provider during inspections. If the Private Provider is terminated, or otherwise fails to complete the inspections and issue the final compliance documents, the fee owner must secure another Private Provider to take over the inspection duties until the completion of the project and assume all responsibility. The Building Official will not take over inspection duties.

f. Quality Assurance. The Building Official is authorized to establish a program of quality assurance to verify the proper performance of the Private Provider's building Code inspection services.

g. Fee adjustments. A reduction in Permit fees for the use of Private Providers shall be as set forth in Section 10-18, City Code or as required by Florida law.

h. Submittal documents. Only official forms approved by the Building Official shall be submitted to the jurisdiction. Plans and other documents approved by the Private Provider shall be stamped with the language "REVIEWED for Code Compliance in accordance with Section 553.791, FLORIDA STATUTES". The language shall appear on each page of the drawings, and on the front page of multi-page documents such as calculations and reports. All documents submitted to the jurisdiction shall be prescreened for sufficiency and completeness.

i. Duties and responsibilities. The Private Provider shall not perform inspections for any work, or any Component of the work, that does not have a valid Permit. If unpermitted construction is discovered, the Private Provider shall notify the Building Official immediately as a matter of public safety, and inspection services shall cease until the proper Permits have been acquired. Any Private Provider or their duly

authorized representative knowingly conducting inspections on projects without the requisite Permits may be referred to their respective professional board for disciplinary review in accordance with Section 553.791, Florida Statutes. Any safety issues shall immediately be reported to the Building Official, and any other enforcement agency having jurisdiction over the matter.

j. Inspection documents. The Private Provider shall maintain at the job site a complete record of all inspections performed and shall make it available at all times for review by the Building Official. The collective record of inspections shall be known as the inspection log.

k. Inspection reports shall be legible and shall clearly identify, in detail, the exact areas and/or items inspected.

l. Each individual inspection report shall be signed by the person who performed the inspection. Example: If the Private Provider performs the inspection, then they must sign the report. If the provider's duly authorized representative performs the inspection, then they shall be the party to sign the inspection report, but the Private Provider may also co-sign the document at their discretion.

m. The inspection log shall be maintained in good condition, in one or more binders, and shall be organized by date and separated by trade. Individual reports must be numbered sequentially or otherwise labeled to follow a chronological order. As the construction progresses, and upon completion of the project, the Building Official shall be able to determine from the inspection log itself that all areas and/or Components of the project that were completed have been inspected and approved.
(Ord. No. 14279, § 2, 5-9-24)

DIVISION 2. BUILDING ADMINISTRATION, FEES, AND WAIVERS

Sec. 10-17. Postings and reports of dangerous buildings by firefighters and police officers.

a. It shall be unlawful to post advertising matter on any unoccupied building or on any temporary structure in this city. This Section shall not apply to any owner or to any person acting under authority of the owner of such building.

b. The employees of the department of fire-rescue and police department shall make a report, in writing, to the director of the Planning, Building and Zoning Departments of all buildings or structures which are, may be or are suspected to be dangerous buildings. Such reports shall be delivered to the Planning, Building and Zoning Department within 24 hours of the discovery of such building by such employee.
(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-18. Building permit fee schedule; waivers; elevator, escalator, boiler etc.

Fees and Fines.

a. Definitions

Affordable Housing Development is owner-occupied and/or rental housing with a purchase cost, value, or monthly rental, as applicable, equal to or less than the amounts established by the applicable standards for those individuals whose income is between 30 percent to 80 percent of the area median income as published annually by the United States Department of Housing and Urban Development ("HUD").

Community Redevelopment Agency ("CRA") is a public entity created pursuant to F.S. § 163.356, as amended.

Dry Run is defined as the process of plans signed and sealed by the design team submitted for building permit but with a building permit application without having a contractor.

Income Restricted Units is a project whose development or refurbishment has resulted and benefited, in whole or in part, from any of the city's programs for low income, affordable, or workforce housing and are accordingly restricted by the requisite covenant(s).

Master Permit is a building permit obtained for the complete work on any project.

Private Provider means a person who can provide alternate plans review under F.S.

§ 553.791 and is licensed as an engineer under F.S. Ch. 471 or as an architect under F.S. Ch. 481, as amended.

Stand-alone Permit is any trade (electrical, mechanical or plumbing) permit pulled for a single category without the need for a Master Permit.

Trade Permit is a subsidiary building, electrical, mechanical or plumbing permit that requires a Master Permit associated with it to be pulled prior to issuance.

Up-front Fee is the fee associated and charged at the time of submittal of a set of plans and building permit application.

Workforce Housing Development is owner-occupied and/or rental housing with a purchase cost, value, or monthly rental, as applicable, equal to or less than the amounts established by the applicable standards for those individuals whose income is between 80 percent to 140 percent of the Area Median Income as published annually by HUD.

b. General Fee information

1. Building, Plumbing, Mechanical and Electrical Permit Fees.

   a. Residential (up to three dwelling units): For all residential properties, any Trade or Master building Permit will be charged 0.50 of the estimated construction cost (including labor and materials) for new construction or additions, and 0.50 of the estimated construction cost for all remodeling permits. Notwithstanding the foregoing, the building Permit fee for residential improvements where the amount of estimated construction is less than $2,500.00 shall be fixed at $45.00.

   b. Commercial and Multifamily Master Permit, Trade Permit and Stand-alone Permit fee: For a building whose estimated construction cost is equal to or less than $30,000,000.00 is one percent of the cost of construction as per the declared cost by the Contractor. For projects were the construction cost exceeds $30,000,000.00, the fee will be the same as above up to $30,000,000.00, plus one-half percent of the amount in excess of the $30.000,000.00.

   c. Minimum Permit fee, applicable to any building Permit, shop drawing, or revision of any category regardless of construction cost or number of pages: $110.00.

   d. Phased Permit fee: Any Phased Permit issued in accordance with the Florida Building Code (FBC 105.13) will be valid for six months from the issuance date. No extensions will be issued to the Phased Permits by the Building Official. These Permits will be charged a $1,500.00 fee, plus any other applicable surcharges as defined or required by the surcharges section.

   e. Fee for work started without Permits: When work is commenced prior to obtaining a required Permit, a fee of two times that specified in this Section, plus a $110.00 fee shall be paid for Homestead properties, and a fee of four times that specified in this Section, plus a $110.00 fee shall be paid for non-Homestead/commercial properties. The payment of such fees shall not relieve any person, firm, or corporation from fully complying with all of the requirements of all applicable regulations and codes, nor shall it relieve them from being subject to any of the penalties therein. The fee requirement shall be applicable to all trade divisions of the building department.

   f. The building department will modify the Permit fee calculation using the Engineering News Record-Building Cost Index (ENR-BCI) published each January. A credit will be applied

to the total cost of the building Permit fee using the ENR-BCI should the ENR-BCI increase.

2. Surcharges. For all Permits issued, the building department will collect the following surcharges for the State of Florida, Miami-Dade County and other City departments:

   a. State of Florida Surcharges.

      1. State of Florida Department of Business and Professional Regulation (DBPR).

      2. State of Florida Building Code Administrators and Inspectors (BCAI).

   b. Miami-Dade County Code Compliance Surcharges.

   c. City Solid Waste Surcharge.

      1. Residential. $0.22 per $100.00 of the estimated cost of construction with a minimum fee of $26.00 and a maximum fee of $600.00.

      2. Commercial. Permits for all building a surcharge of two and one-half percent of the cost of construction with a minimum of $57.00 and a maximum of $10,500.00.

      3. Exemptions. The following are exempt from this surcharge: signs, landscaping, elevators, revisions, subsidiary Permits, roofing, awning, windows and doors, shed, flooring, driveways, solar panel installations, and any affordable housing Permit that the City Director of Community Development exempts in writing prior to the issuance of the Permit.

      4. Automatic Deferral. The City Manager, or Designee, shall defer the surcharge for Affordable Housing Developments and workforce housing developments for as long as the development remains affordable or workforce housing. The Permit applicant shall provide the City the Community Redevelopment Agency board's resolution approving or authorizing the project and a covenant running with the land, or a deed restriction, which ensures that the development conforms to the requirements of an Affordable Housing Development or workforce housing development. Upon the project ceasing to be an Affordable Housing Development or a workforce housing development, the solid waste surcharges that were deferred shall become due and payable to the city within 30 days.

      5. Petition for Refund of Solid Waste Surcharge.

         (a) Petitions for refund of the Solid Waste surcharge shall be submitted to the City Manager or Designee, for their review. The City Manager or Designee shall provide a form for the Petition that is to be submitted by all eligible parties. The criteria for granting any such petition is as follows:

            (1) The Petition shall be filed within ninety (90) days after finalization of the relevant permit. Any party who has the right to file a Petition and who fails to do so within the required timeframe shall be deemed to have waived their right.

(2) Only the party who paid the surcharge, hereinafter referred to as Petitioner, and who believes the contribution rate component of their surcharge to be inequitable based upon actual construction completed or lack thereof, subject to the limitations set forth in this Section, may file a Petition;

(3) The Petition shall state with detailed specificity the reason for the request and the amount of refund being sought, and shall include:

i. All submitted plans and modification;

ii. Any and all refuse and debris removal contracts in place on the permit site;

iii. Any and all charges for the refuse and debris removed incurred from the final recycle or dumping station; and

iv. Any other item, document, contract, agreement or writing that has direct bearing on the requested adjustment.

(4) The Petitioner requesting the adjustment may be required, at their own cost, to provide supplemental information as requested by the City Manager or Designee, including, but not limited to, a full set of building (permit) plans, proof of finalization of relevant permit, copies of hauler agreements, copies of container removal service agreements or removal billing. Failure to provide such information may result in the denial of the refund request; and

(b) The City Manager or Designee will review the Petition and based upon the totality of information provided, which may include requests for information from the relevant City departments, determine whether the refund is granted and the amount therein, as necessary.

(c) The City Manager or Designee will have one hundred twenty (120) days from the date of receipt of the Petition for Refund to provide a determination in writing. The determination shall include a recitation of the facts and the basis for the granting or denying of the Petition and if granting, the reason for the amount of refund.

(d) Appeals. All determinations by the City Manager or Designee are final.

(e) This Section does not apply to a class member (as defined in the trial court's order certifying the class in *RT&S Investment Group, LLC v. City of Miami,* Miami Dade Circuit Court Case No.: 14-32239 CA 27) who does not opt out of the class.

d. City Energy Conservation Surcharge.

1. This charge encompasses energy conservation plan review and field inspections for such energy conservation.

2. For each square foot of new construction or an addition, $0.11.

3. Miscellaneous permits and inspections fees.

a. Private Provider fee. When a property owner uses the services of a licensed private company for plan review and inspections services (a private provider under F.S. § 553.791), the fee will be assessed as a regular building permit with a credit of one-third of the original building/Trade Permit fee line. If only the plan review or the inspections are done by the private provider, then the fee will be one-half of the one-third credit stipulated above.

b. Dry Run/Up-Front Fees. At the time of issuance of the Permit application process number assigned by the building department, the projects will be charged $2.80 per $1,000.00 of the estimated construction value. Eighty percent of the total collected amount for this item, will be credited towards the building Permit fee line when issued. No credit will be issued if there is no issuance of a Permit, a substantial design is submitted, or the Permit is not issued after 180 days of the last review. Dry Run and Up-front fees are not refundable, however they will be fully credited towards the cost of the building permit.

c. Joint Plan Reviews.

1. Each meeting with staff from Building, Zoning, Planning, or Resilience and Public Works, $276.00 per each requested discipline for a maximum of two hours each.

2. If additional disciplines are required based on the scope of work, additional charges for each discipline will apply. This fee does not apply to affordable housing projects qualified as such under the City Code.

3. This shall only apply to commercial projects that are over 20,000 square feet in size.

d. Revision of Plans and Re-works. Revision of plans (per discipline) and reworks, after the second review, $56.00.

e. Recertification. Recertification of buildings are required pursuant to the requirements of the Miami-Dade County Board of Rules and Appeals (BORA) standing order, and Miami-Dade County Code Chapter 8 and the Florida Building Code Administrative Rules. Recertification review for compliance with recertification, $276.00 fee. Any extension request by the owner of a property after receipt of a notification letter from the City that the property must prove they are in compliance with Recertification will be assessed a $500.00 for each additional three-month extension, with a maximum of two possible extensions after the original notification letter.

f. Permit by Affidavit, and Legalization of Existing Structures. The Permits issued by affidavit and legalizations of structures built without Permits before the year 2002, will be charged a fee of $250.00, in addition to any other applicable enforcement fee, building and Trade Permit fee. For those structures built after 2002, they will be charged with a double permit fee and fine where applicable using subsection 10-18(b)(1) above.

g. Annual facility Permit Fee. These Permits will be issued with a two percent fee based on the intended annual work schedule cost per building or trade.

h. Commercial Engineered or Structural Glazing and Curtain Walls. A $150.00 fee for compliance with the recertification, every six months for the first year after receiving the Certificate of Occupancy (C.O.), and a fee of $300.00 every five years after that date in accordance with the Florida Building Code.

i. Certificate of Occupancy (C.O.) and Certificate of Compliance (C.C.). In accordance with the requirements of the Florida Building Code.

1. Residential (single family/duplex, triplex or multifamily condominium): $105.00 per unit.

2. Commercial (including multifamily rentals): $0.10 per square feet of space with a minimum of $250.00 for a C.O. and $150.00 for a C.C.

3. Extensions of T.C.O. or T.C.C.: The T.C.O. or T.C.C. extension can be requested through the Building Official or Designee. Any extensions shall be charged as follows:

A. First request. May request an extension of up to 270 days in 90-day increments. The cost per square foot shall increase by $0.10 per 90 days for commercial properties or $105.00 per 90 days for residential properties;

B. Second request. May request an extension of up to 270 days in 90-day increments. The cost per square foot shall increase by $0.10 per 90 days for commercial properties or $105.00 per 90 days for residential properties;

C. Third request. May request an extension of up to 270 days in 90-day increments. The cost shall be charged at a rate equal to 50 percent of the building/Trade Permit line.

D. *Exemption.* Income Restricted Units certified by the City with a recorded covenant may be exempted from the additional Permit fee charged beyond the second time pursuant to this section by the City Manager or Designee based upon a showing that all Permits are currently active and/or no prior Permit and/or code violations have occurred at the project site. The exemption shall only be allowed for the applicable Income Restricted Units.

I. Should an exemption to the fee be granted, it may be renewed for the extension times as provided for in Subsection 10-18(b)(3)(i).

II. The exemption from the additional fee charged beyond the second time is retroactive to any active permit for a qualifying Income Restricted Unit.

4. For projects qualifying as a phased project as defined in Section 55-1 of the City Code, the T.C.O. may be issued as follows:
   A. T.C.O. may be issued for an initial period of 365 days at the original rate charged;
   B. T.C.O. may be extended for an additional 365 days at the same original rate charged;
   C. T.C.O. may be extended a second time for an additional 180 days at double the original rate charged; and
   D. T.C.O. may be extended a third and final time for an additional 180 days at a rate equal to 50 percent of the building/Trade Permit line.

j. *Expired and Inactive Permit Applications (NAC).* For those expired applications where 180 days have passed from the original application date, in accordance with the Florida Building Code (FBC105.13), the Building Official may extend for periods not exceeding 90 days the expiration date, if requested by the applicant in writing, explaining the need and circumstances for the extension. Every extension will be charged $100.00 for residential single family, duplex/triplex and $500.00 for commercial and multifamily applications. For those inactive applications (NAC), if authorized by the Planning Director, they will be reactivated in the system after payment of a $1,500.00, for a period of six additional months. If a Permit is not obtained and construction starts within this extension time, the process number will be voided and the applicant will need to re-apply for a new application number. All fees are non-refundable if the process number is voided.

k. *Expired/completion Permits.* Any building/Trade Permit may be extended once by the Building Official if requested prior to the Permit expiration date. If the building/Trade Permit is expired, a completion Permit will be required.

1. *Extension of Permit:* $100.00.
2. *Completion of any type of Permit:* For the first $1,000.00 of value of the remaining work, $32.00, plus any additional $1,000.00 or fraction, $16.00.

l. *Re-inspection Fees.* Re-inspection fees will be charged in instances where the inspector is scheduled to visit a site, and any of the included, but not limited to the following issues occur: a Contractor or builder owner receives a rejection of an inspection because a notice of commencement is not posted at the site and a copy is not provided to the inspector; the wrong address was given to visit the site to inspect; work was incomplete or not ready for inspection; the corrections given in the previous inspections were not completed; the approved set of plans or required certifications are not at the site; or no arrangement was made to allow the inspector to gain entry to the area of inspection, a fee of $57.00 will be assessed and no further inspections will be scheduled until the re-inspection fee is paid.

m. Expedited Plans Review of Green Building Permit Applications. Green buildings are defined as those with resource efficient design, construction, and operation by employing environmentally sensible construction practices, systems, and materials and defined as residential or commercial buildings that are registered Leadership in Energy and Environmental Design ("LEED") projects, or any equivalent Green rating system. LEED is defined as the most recent Leadership in Energy and Environmental Design Rating System of the U.S. Green Building Council. Expedited priority review of Permit applications shall be defined as those to be reviewed prior to non-green building applications, in the order received, within the building Permit review

process. A non-refundable deposit, described in Subsection 10-18(b)(3)(m)(2)(D). below will be required.

1. Green buildings eligible for priority permitting will be:
   A. For buildings in excess of 50,000 square feet, and that exceed the requirements of LEED Silver certification.
   B. For buildings below 50,000 square feet, and that meet or exceed the requirements for any level of LEED certification.
2. To qualify for expedited priority review and approval of permit applications, buildings meeting the criteria above must submit to the building department:
   A. A LEED registration form;
   B. A LEED scorecard indicating all expected rating points;
   C. The name and contact information for a LEED accredited professional on the project team; and
   D. A non-refundable deposit of $500.00.

n. Expedited Overnight Review Projects. The expedited service will cover all review disciplines within the Building, Zoning, Planning, and Resilience and Public Works Departments. Outside source review will be the preferred method.

1. Outside source review fee. Actual cost plus ten percent. These ten (10) percent is the administrative fee to cover the cost of the processing.
2. In-house review fee: $350.00. The fee is per discipline, with a maximum of one review per fee, per discipline for a maximum of four hours each.
3. Plans review or inspections shall not begin until after 4:30 p.m. Monday through Friday. No plans or inspection requests will be accepted on Saturday, Sunday or holidays when City offices are closed. Scanning and printing fees for electronic plan review: The fee shall be based on the same cost charged by the printing company to the City.
4. This shall only apply to commercial projects over 20,000 square feet in size.

o. Application Fee. All Permits will be charged a non-refundable $40.00 application fee.

p. Change of Architect, Engineer, or Contractor for any Type of Permit. $100.00.

q. Recertification of Plans and Revised Plans Fee, and Permit Card Replacement.

1. When plans are lost by the owner or Contractor, a recertification fee is required for a new set of plans: Thirty percent of the original fee. Minimum fee for residential/commercial uses: $100.00.
2. Revised plans and shop drawings (after approval of initial plans):
   A. Per sheet revised and reviewed: $20.00.
   B. Minimum fee: $100.00.
   C. Maximum fee: $5,000.00.
3. Replacement of lost permit card or replacement or duplication of plans (per sheet): $17.00.

r. Administrative Services Fees.

1. Computer print-out of property information, Permits, inspections, etc.: $2.00 per sheet.
2. File search for every request of building department services, including notice of violations: $44.00.
3. Notarization of any document, including building Permit application: $2.00.
4. Sending and receiving faxes (not related to the permitting process):
   A. Local, per page: $2.00.
   B. Long distance, per page: $2.50.
5. City certification of plans: Cost of reproduction of plans plus $1.00 per page.
6. Folio change: $26.00.

s. Refunds, Time Limitations, Revocation, Etc. The fees charged pursuant to this Section, provided the same are for a Permit required by the Florida Building Code, may be refunded by the Building Department Director, subject to the following:

1. No refunds shall be made where any work has commenced, except where duplicate Permits are issued for the same work, in which case a refund in accordance with Subsection 4. below may be granted to the original Permit Holder providing that the duplicate Permits were issued within 90 days of each other and the request for the refund is received within 90 days of the issuance of the latter Permit.
2. No refunds shall be made where a Permit has become void or revoked as provided by Section 304.3(a) of the Florida Building Code.
3. No refunds shall be made on Permit fees of $110.00 or less.
4. Refunds on Permits or any item thereon, will be on a basis of 50 percent of the balance over $110.00; such refunds shall be made to the closest dollar.
5. Bonds may be required for unfinished work on Temporary Certificates of Occupancy (T.C.O). The amount is to be established by the chief of the section(s) involved and shall be 100 percent of estimated cost of the required work. Cash bond will be refunded, less $100.00 or other bonds discharged, upon completion of required work by owner.
    A. Methods for placing bonds may be:
        i. Surety company issuance of bond.
        ii. Cash bond. Payable by cash, or certified cashier's check. A copy of signed contract with a Contractor to do the work is also required.
        iii. Letter of credit from a guaranteed insured state certified bank. The letter shall indicate the purpose of the line of credit. A copy of signed contract with a Contractor to do the work is also required.
    B. If work is done within specified time, the city will proceed to have the work done (1) through the bonding company if Method No. 1. was used; (2) through the contractor specified in the contract if Method No. 2 or Method No. 3 was used, using the proceeds from the cash bond or from the bank letter of credit.
4. Building Department Enforcement Fees. In compliance with the Florida Building Code, National Electrical Code, and Miami-Dade County Code Chapter 8, the following expenses will be recovered from necessary Building Department enforcement and/or demolitions:
    a. Initiation and processing fee for all work without a Permit and all unsafe structures cases after notice of violation is given: $500.00.
    b. Digital pictures: $1.00 each.
    c. Additional inspection of open non-compliant cases after being given a notice of violation and either being provided time to comply to either repair or demolish the property structure: $150.00.
    d. Posting of notices: $50.00.
    e. Unsafe structures panel fee: $200.00.
    f. Title search will be charged: Actual cost.
    g. Court reporting will be charged: Actual cost.
    h. Legal advertisement will be charged: Actual cost.
    i. Lien/recordation/cancellation of notices-each will be charged actual cost plus a $1.00 administrative fee per every ten pages.

j. Bid processing fee and Contractor Notice to Proceed (NTP) administrative cost: $150.00.

k. Demolition/secure services will be charged actual cost.

l. Asbestos and lead environmental sampling and abatement: Actual cost.

m. Corporate information and lenders search: $25.00.

n. Extension fee (initial or Unsafe Structure Panel Order requested): $150.00.

5. Waiver of permitting fees. All city building permit fees related to the installation of solar panels are hereby waived for residential and commercial properties. The building department will process all building permit applications for solar panels within three business days. That portion of city building permit fees attributable to compliance with Chapter 10, Article XI of the City Code are hereby waived for structures existing on or before October 8, 2020. These waivers do not include any surcharges, fees, or costs required by federal, state, or county governments.

6. New permits prohibited, non-homestead properties. Permits shall not be issued for a non-homestead property with any outstanding code enforcement violations, building violations, or any relevant city lien or invoice due and owing to the city. Permits required to cure life safety issues, Permits which are required to bring outstanding violations into compliance, or Permits for any properties owned by a governmental entity are exempted from this prohibition.

c. Elevator/Escalator/Boiler and Unfired Pressure Vessel Fees and Fines for Non-Compliance.

a. Recurring/Annual fees.

Certificate of operation per elevator	$200.00
Elevator/escalator duplicate certificate per elevator/escalator	$100.00
Elevator/escalator delinquent certificate per elevator/escalator	$50.00
Temporary certificate of operations per elevator/escalator	$100.00
Elevator/escalator annual inspection per elevator/escalator	$200.00
Elevator/escalator re-inspection fee per elevator/escalator	$100.00
Elevator witness one-year test	$200.00
Elevator witness five year test	$250.00
Elevator emergency power/fire recall test per test	$1,000.00
Elevator/escalator removal fee per elevator/escalator	$500.00
High pressure boiler annual inspection per boiler	$135.00
Low pressure boiler annual inspection per boiler	$85.00
Water heater annual inspection per heater	$85.00
Pool heater annual inspection per heater	$85.00
Miniature boiler annual inspection per boiler	$85.00
Kettles annual inspection per kettle	$85.00
Unfired pressure vessel (air compressor) annual inspection per vessel	$85.00

2. *Elevator inspection fees for new construction/alterations.*

Escalator final inspection	$1,200.00
Hydraulic elevator final inspection	$600.00
Traction elevator final inspection	$600.00
Traction elevator final inspection (more than 20 landings)	$750.00
Initial temporary use inspection	$600.00
Temporary use renewal inspection	$200.00
Overtime inspections rate per hour	$225.00
Overtime inspections rate per hour (minimum four-hour block)	$900.00
Wheelchair lift	$300.00
Robotic parking	$1,200.00

Generator/Fire recall test	$1,000.00
Reinspection/Finals	$400.00
Minor Repairs/DLM/Cab interiors/etc.	$300.00

3. *Fines for non-compliance.*

a. *Elevator/escalator non-compliance fines:*

First offense per elevator/escalator	$250.00
Second offense per elevator/escalator	$500.00
Third offense per elevator/escalator	$750.00
Fourth offense per elevator/escalator	$1,000.00

b. *Boiler, heater and unfired pressure vessel non-compliance fines:*

Re-inspection fee for every two consecutive failed inspections	$50.00
Late fee for past due amounts	$40.00

(Ord. No. 14279, § 2, 5-9-24; Ord. No. 14439, § 2, 1-22-26)

Sec. 10-19. Waiver and deferral of fees and senior citizens or low-income waivers.

a. The fees required under this article may be waived by the City Manager for entities and agencies of the City.

b. The City Manager is authorized, and shall, upon a properly submitted application, defer those fees required pursuant to this article, except for those surcharges listed in subsection 10-18(b)(2) of the City Code, as amended, for extremely low income affordable housing, as defined annually by the United States Department of Housing and Urban Development and as determined by the department of community and economic development. Applicants for such deferrals shall utilize the same petition process and covenant requirement as the affordable and workforce housing impact fee deferral program described in Sections 13-8 and 13-16 of the City Code, as amended. The fees deferred pursuant to this article shall remain deferred so long as the property or extremely low income housing units, as applicable, do not change affordability status. Fees deferred under this section shall be due and payable for those properties that no longer qualify as extremely low income affordable housing as determined by the department of community and economic development. The covenant required by this section shall at a minimum:

1. Run with the land;

2. Clearly explain the rights and obligations of building unit(s) owner(s) to maintain the same as ELI affordable housing; and

3. Provide remedies for the city to secure the owners obligations under this section.

For projects that do not exclusively contain extremely low income housing units, deferral of fees shall be on a pro-rata basis utilizing the percentage of extremely low income housing units as compared to the number of total residential units. In no event shall this deferral program exceed $250,000.00 in total deferred fees each fiscal year. Any individual application for deferral that would exceed said limitation shall be denied only as to the portion thereof that would exceed said limitation.

c. Notwithstanding any provisions of this Code or the Florida Building Code to the contrary, all fees and charges assessed by the City departments, including impact fees, which are required to be paid as a condition of the issuance of a building Permit, shall not be charged if all the following conditions are met for senior citizens:

1. The Permit to be obtained will correct a violation for work without Permit or for work with an expired Permit for which the property owner has been cited by Code Compliance Department or any section of the Building Department.

2. The work performed without a Permit commenced prior to March 1, 2002 (Florida Building Code entered in effect March 1, 2002), or the Permit which expired was issued under the South Florida Building Code.

3. The work for which the building permit is requested is for an improvement to a single-family or duplex residence, townhouse or condominium which is occupied by the property owner who is a senior citizen and who has had a valid Homestead Exemption for the past five years for that property.
4. If more than one person owns the property, each person must qualify for the senior citizen exemption, except if the joint owners are married, only one of the owners must meet the qualifications for the senior citizen exemption pursuant to F.S. § 196.075.

d. Notwithstanding Subsection (c), permit fees will be waived for those with a household income below 80 percent of the area median income of Miami-Dade County as determined by the United States Department of Housing and Urban Development ("HUD") annually, upon providing proof of the same to the City, for work that improves the resilience of the exterior shell, such as roofing, doors, windows, shutters, and structural repairs, on Homesteaded properties for up to $50,000.00 of the cost of construction work.

e. Each development department of the City will track the amount of Permit fees and charges affected by this exemption each fiscal year. The general fund shall reimburse each of the development departments the amount of Permit fees and charges exempted as part of the following fiscal year's budget.

f. This Subsection is not intended to waive any Permit fees or charges assessed by the departments or instrumentalities of the state, the county or federal government.
(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-20. Sustainable improvements pilot program.

(a) The storm-proof assistance and value enhancements program ("SAVE") is a pilot program to incentivize residential storm-proofing and future-proofing upgrades. These upgrades shall include, but not be limited to:

(1) Impact-resistant windows;
(2) Reinforced roofs;
(3) Flood protection measures;
(4) Energy-efficient HVAC systems and appliances;
(5) Upgraded insulation;
(6) Low-flow toilets and water-saving fixtures;
(7) Smart thermostats;
(8) Living seawalls;
(9) Permeable pavement; and
(10) Other sustainable and resilient improvement as determined by the city manager or designee.

Through SAVE, all city building permit fees shall be reduced by 50 percent for qualifying improvements. The building department shall process all qualifying applications within three business days, provided that all applicable city and outside agency requirements are complied.

(b) *Qualifying applicants.* A qualified applicant is any owner of a residential property in the city, this includes condominiums and similar residential buildings.

(c) The pilot program shall sunset one year from the date of its adoption on February 12, 2027. The city commission may extend for one more additional year by resolution.
(Ord. No. 14442, § 2, 2-12-26)

ARTICLE II. EXTERIOR FACADE CODE

Sec. 10-21. Title.

This chapter shall be known and may be cited as the "City of Miami exterior facade code for residential and commercial properties."
(Ord. No. 11603, § 2, 1-27-98)

Sec. 10-22. Definitions.

For the purposes of this chapter, the following terms, phrases, words and their derivations shall have the meaning given in this section, unless the context clearly indicates that another meaning is intended. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number, and words in a singular number include the plural number. The word "shall" is always mandatory and not merely directory.

Event shall, for the purpose of this chapter, mean any media related occurrence such as photo shoot, movie shoot, video shoot or other similar happening.

Fire Station No. 2 Motion Picture and Media district shall mean and is designated as that area bounded by Northeast 15th Street on the north, the FEC right-of-way on the west, I-395 on the south, and Northeast 1st Avenue on the east.

Media district shall be defined as an area within the city which is designated as being of aesthetic value for the media/entertainment industry.

Nonresidential/commercial property means any business or establishment of any nature or kind whatsoever other than a residential unit as defined in the zoning ordinance.

Residential property shall include any and all property of a residential use or nature as defined in the zoning ordinance.

Zoning ordinance shall mean the City of Miami Zoning Ordinance No. 11000, as amended.
(Ord. No. 11603, § 2, 1-27-98; Ord. No. 12052, § 2, 4-26-01; Ord. No. 12207, § 1, 4-11-02)

Sec. 10-23. Conditions of nonresidential/commercial properties.

The exterior of all commercial property shall be maintained so as to prevent deterioration or blight from inadequate maintenance.

(1) All exterior building surfaces shall be free of chipping, pitting, cracking, peeling, fading or discoloration.

(2) All exterior signs shall be in good repair and free of chipping, pitting, cracking, peeling, fading or discolorations. Lighted signs shall have all lights working.

(3) Doors and windows shall be free of cracked or discolored glass or corroded frames.

(4) All awnings shall be without tears and holes and be free of dirt, discoloration, fading or cracking. Any lettering or painted surfaces on awnings shall conform to subsection (2) above. All hardware, supports and poles shall be straight, free of rust, and if painted shall be free of chipping, pitting, cracking, peeling, fading or discoloration, and in good condition.

(5) All building surfaces shall be free of any advertising signs, or posters, painted or attached to the walls unless a permit has been acquired.

(6) If any commercial property is vacant for more than 15 days, all glass surfaces visible to the public shall be kept clean and the interior of such vacant store shall be screened from public view in one of the following ways until the property is occupied:

a. All glass surfaces visible to the public shall be covered with white 60-pound weight paper.

b. Decorative displays of merchandise currently available within the city, merchandise of the future tenant of the vacant store, public service displays or festival and current holiday displays extending as much as three feet into the vacant store shall be located in display windows, provided that screening of the remainder of the vacant store shall be placed immediately behind the decorative display. All sidewalk overhangs attached to commercial buildings shall be structurally sound and free of rust, discoloration, peeling, chipping, cracking, fading, sagging or dirt. All lettering or signage

on overhangs shall conform to the requirements provided in subsection (2) above.

(7) Construction sites shall provide temporary fencing to secure the site during construction and non-construction hours to mitigate the effects of vagrant activity, noise and dust upon the surrounding community.

"Construction sites" shall include all sites where demolition (except city unsafe structures demolitions), new construction take place, other than just interior work which is not visible to the exterior of the premises. This shall not include affordable housing residential units as defined by the United States Department of Housing and Urban Development for rental projects and the city first-time homebuyer program using the area media income as published annually by the state housing finance corporation for homeownership projects.

"Secure," as applied to site access, includes protecting the construction site, during construction and non-construction hours by way of a locked fence surrounding the perimeter of the site. These sites must also have posted and visible "No Trespassing" signs:

a. If any commercial property is vacant for more than 15 days, all glass surfaces visible to the public shall be kept clean and the interior of such vacant store shall be screened from public view in one of the following ways until the property is occupied.

b. All glass surfaces visible to the public shall be covered with white 60-pound weight paper.

c. Decorative displays of merchandise currently available within the city, merchandise of the future tenant of the vacant store, public service displays or festival and current holiday displays extending as much as three feet into the vacant store shall be located in display windows, provided that screening of the remainder of the vacant store shall be placed immediately behind the decorative display. All sidewalk overhangs attached to commercial buildings shall be structurally sound and free of rust, discoloration, peeling, chipping, cracking, fading, sagging or dirt. All lettering or signage on overhangs shall conform to the requirements provided in subsection (2).

(8) Signage. A sign shall be placed on the construction site with the following language:

"This area is a designated construction site. Anyone who trespasses on this property commits a third degree felony pursuant to Florida Statutes 810.09."

(Ord. No. 11603, § 2, 1-27-98; Ord. No. 12930, § 2, 7-10-07)

Sec. 10-24. Conditions of residential properties.

The exterior of every structure used for human habitation shall be so maintained with reasonable attractiveness so as not, in the case of scaling of paint or excessive mildew, to cause or contribute to a depreciation in property values in the immediate neighborhood.

(1) The exterior wall surfaces shall be kept free from materials, objects, and conditions which will have an adverse effect on adjacent premises.

(2) All exterior building surfaces shall be free of chipping, pitting, cracking, discoloration, peeling or fading.

(3) All awnings shall be without tears or holes and be free of dirt, discoloration, fading or cracking.

(4) All walls or fences shall be maintained in good condition, free of cracking, discoloration, peeling or fading.

(5) All awnings, walls or fences shall be kept free of debris, clothes, and/or any other material that may have an adverse effect on adjacent properties.

(Ord. No. 11603, § 2, 1-27-98)

Sec. 10-25. Enforcement.

All violations of this chapter shall be subject to enforcement as set forth in chapter 2, article X, entitled "Code Enforcement," and may be brought for further proceedings before the Code Enforcement Board.

(Ord. No. 11603, § 2, 1-27-98)

Sec. 10-26. Exceptions.

The restrictions as set forth herein, may be modified by the director of the department of planning and zoning, subject to the issuance of a Class II Special Permit as required by Zoning Ordinance No. 11000, as amended, the Zoning Ordinance of the City of Miami, for properties lying within a designated media district. In determining the issuance of a Class II Special Permit, the director shall review and make findings based upon the following criteria:

(1) The structure/building is of significant value to the media district; and

(2) The Class II Special Permit shall expire one year after its issuance; annual renewals shall be required; and

(3) The application fee for the Class II Special Permit shall be $420.00; and

(4) The owner of the property shall comply with the following:

a. The owner shall submit an engineering report, certifying that the subject structure is safe for the public and safe for the limited use of the media industry; and

b. Provide insurance coverage holding the city harmless from any liability, as required by the risk management division; and

c. Events, as required by the Class II Special Permit; and

d. Any other requirement that the director of planning and zoning may deem necessary for the safety of the proposed use and the public; and

(5) The director of planning and zoning shall review and approve any proposed aesthetic changes or modifications to the structure which are visible from the public right-of-way.

Such finding shall be incorporated as part of the final decision of the Class II Special Permit. Decisions of the planning and zoning director are final, unless appealed according to the procedures set forth in article 18 of the Zoning Ordinance No. 11000, as amended, the zoning ordinance of the city.

(Ord. No. 12052, § 2, 4-26-01; Ord. No. 13142, § 5, 2-11-10)

ARTICLE III. LEAD-BASED PAINT ON BUILDING EXTERIORS

DIVISION 1. WORK PRACTICES FOR EXTERIOR LEAD-BASED PAINT

Sec. 10-27. Definitions.

Accredited laboratory means a laboratory, which operates within the EPA National Lead Laboratory Accreditation Program.

Adjacent properties means properties that adjoin the regulated area of the property in question, including at the corners of lot lines.

Certified means a process used by the state and/or Miami-Dade County DERM and the US Environmental Protection Agency (EPA) to identify individuals who have completed training and other requirements to permit the safe execution of lead risk assessments and inspections, or lead hazard reduction and control work. Certified includes current "interim certification" by DHS, unless and until this status is modified by state legislation.

Containment barriers means measures that prevent the migration of lead paint contaminants. Containment barriers shall be at least as effec-

tive at protecting human health and the environment as those contained in the most current HUD guidelines.

Contractor means any person, whether or not in possession of a valid state contractor's license, which undertakes to or offers to undertake to or purports to have the capacity to undertake to or submits a bid to, or does by himself or herself or by or through others, any action that may or will disturb or remove paint. For purpose of this chapter, contractor shall also include subcontractors.

Disturb or remove paint" means any action that creates friction, pressure, heat or a chemical reaction upon any lead-based paint on an exterior surface so as to abrade, loosen, penetrate, cut through or eliminate paint from that surface. This term shall include all demolition and surface preparation activities that are performed upon an exterior surface containing lead-based paint.

Exterior means the outside of a building or steel structure and the areas around it within the boundaries of the property, including the outside of any detached structures, including but not limited to, outside and common walls, stairways, fences, light wells, breezeways, sheds and garages.

HEPA means a high efficiency particulate air filter.

HUD guidelines means the most recent "Guidelines for Evaluation and Control of Lead-Based Paint Hazards" promulgated by the United States Department of Housing and Urban Development (HUD).

Landlord means an owner, lessor, or sublessor who receives or is entitled to receive rent for the use or occupancy of any commercial or residential rental property in the city, and the agent, representative or successor of any of the foregoing.

Lead means metallic lead and all inorganic and organic compounds of lead.

Lead-based paint or *lead paint* means any paint, varnish, shellac or other coating on surfaces with lead in excess of 1.0 mg/cm2 (milligrams per square centimeter) as measured by x-ray fluorescence (XRF) detector or laboratory analysis or in excess of 0.5 percent by weight, also expressed as 5,000 ppm (parts per million), 5,000 µg/g (micrograms per gram), or 5,000 mg/kg (milligrams per kilogram) as measured by laboratory analysis.

Lead-based paint testing means testing of surfaces to determine the presence of lead-based paint performed by an independent certified risk assessor/inspector, in accordance with the HUD guidelines, and where testing includes bulk paint samples, such an accredited laboratory analyzes samples.

Lead-contaminated dust means surface dust that contains an area or mass concentration of lead in excess of 100 µg/ft^2 (micrograms per square foot) on uncarpeted floors, 500 µg/ft^2 on interior window sills, and 800 µg/ft^2 on exterior window sills and exterior horizontal surfaces.

Lead dust testing means tests conducted in accordance with the most recent federal guidelines to determine the presence or absence of lead-contaminated dust within a defined area.

Lead-contaminated soil means areas that contain total lead in excess of 400 ppm (parts per million) in bare soil.

Lead soil testing means tests conducted in accordance with the most recent federal guidelines to determine the presence or absence of lead-contaminated soil within a defined area.

Lead paint contaminants means substances containing lead paint which are potentially hazardous to human health or the environment, including but not limited to paint chips and paint-containing soil, debris, dust, abrasives, fumes and water.

Owner means the owner of a property or the owner's authorized agent.

Person means a natural person, his or her heirs, executors, administrators or assigns, and also includes a municipal or state agency to the extent allowable by law, a firm, joint stock company, business concern, association, partnership or corporation, its or their successors or assigns, or the agent of any of the aforesaid.

Prohibited practices means work practices prohibited under this chapter.

Responsible party means either:

(1) The owner of the property where the owner or the owner's employees or persons otherwise under the control of the owner are performing the activities regulated under this chapter, or

(2) The owner and the contractor where the owner has entered into a contract with another to carry out (contractor is performing) the activities regulated under this chapter.

Regulated area means an area in which work is being performed that disturbs or removes paint, and to which access is restricted in order to prevent migration of paint contaminants. Regulated area shall also include any area contaminated with lead paint contaminants as a result of a breach or lack of containment barriers or a violation of the containment requirement set forth in this chapter.

Steel structure means any structure that is not a building and which has exterior surfaces made of steel or other metal, such as bridges, billboards, walkways, water towers, steel tanks and roadway or railway overpasses.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-28. Prohibitions.

No person shall disturb or remove lead paint, or in any other way generate lead paint contaminants during demolition or work on the exterior of any existing (residential, commercial or public) building(s) or steel structure, except in accordance with the requirements of this chapter.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-29. Exemptions.

This chapter shall not apply to activities that disturb or remove paint where those activities are being performed on buildings or steel structures on which construction was completed after 1950, or on new construction. For purposes of this chapter, all paint on the exterior of any building or steel structure on which the original construction was completed prior to December 31, 1950, shall be presumed to be lead-based paint. Any person seeking to rebut this presumption shall establish through lead-based paint testing, or other means satisfactory to the city, that the paint on the building or steel structure in question is not lead-based paint.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-30. De minimis notification exemption.

Any person performing work subject to this chapter who disturbs or removes less than ten square feet of lead-based paint in total shall not be required to comply with the notification requirements set forth in this chapter.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-31. Containment barriers.

Any person performing work subject to this chapter shall establish containment barriers at least as effective at protecting human health and the environment as those contained in the HUD guidelines or the lead paint removal guide published by the steel structure painting council, whichever is applicable.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-32. Prohibited practices.

No person performing work subject to this chapter shall use prohibited practices, including but not limited to

(1) Acetylene or propane burning and torching;

(2) Scraping, sanding or grinding without containment barriers or a HEPA local vacuum exhaust tool;

(3) Hydroblasting or high-pressure wash without containment barriers;

(4) Abrasive blasting or sandblasting without containment barriers or a HEPA local vacuum exhaust tool; and

(5) Heat guns operating above 1,100 degrees Fahrenheit.

(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-33. Migration.

Any person performing work subject to this chapter shall make all reasonable efforts to prevent migration of lead paint contaminants beyond containment barriers during the course of the work.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-34. Visible lead paint contaminants.

The responsible party performing work subject to this chapter shall make all reasonable efforts to remove all visible lead paint contaminants from all regulated areas of the property prior to completion of the work.
(Ord. No. 12804, § 2, 5-11-06)

DIVISION 2. NOTIFICATION REQUIREMENTS

Sec. 10-35. Notifying bidders.

In any instance where an owner or a contractor is requesting bids for work subject to this chapter, the owner or contractor shall notify all bidders of any paint inspection reports disclosing the presence (or absence) of any lead-based paint in the regulated area of the proposed project.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-36. Contents of notice.

Prior to the commencement of work expressly subject to this chapter, the responsible party (owner or contractor) shall provide written notice to the city manager's office or its designated city department of the following:

(1) The location of the project;

(2) The (nature and approximate square footage of the painted surface being disturbed and/or removed)) scope of work;

(3) The methods and tools for paint disturbance and/or removal;

(4) The approximate age of the building;

(5) The anticipated job start and completion dates for work subject to this chapter;

(6) Whether the responsible party has reason to know or presume that lead-based paint is present;

(7) Whether the building is residential or non-residential, and whether it is owner-occupied or rental property, and the approximate number of dwelling units, (if any), on the property;

(8) The dates by which the responsible party has or will fulfill any tenant or adjacent property notification requirements as described in the applicable sections of this chapter below;

(9) The name, address, telephone number, and

(10) If available, pager number, of the party who will perform the specified work.

(Ord. No. 12804, § 2, 5-11-06; Ord. No. 14138, § 3, 2-9-23)

Sec. 10-37. Contents of notice.

The city shall make available to the public a form that complies with the requirements of section 10-36 and contains blank spaces for the required information.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-38. Notice (by landlord) to tenants.

Where (the responsible party is a landlord, a person or persons in the employ of a landlord, or where a landlord has entered into a contract with a contractor to perform work subject to the requirements of this chapter) work subject to this chapter is to be performed on a residential property occupied by one or more tenants, not less than three business days before the work is to commence, the landlord shall provide written notice to the tenant(s) of the building on which the work is being performed that lead-related work is being performed. This notice shall be in the form of a sign, letter or memorandum, and shall prominently state the following:

"Work is scheduled to be performed on this property starting [date]. This work may or Remove Lead-Based Paint. The persons performing this work are required to follow federal, state and local laws regulating work

with Lead-Based Paint. You may obtain information regarding these laws, or report any violation concerning these laws, by calling the City Manager's Office or its designated City Department. The Owner of this property is also required to provide tenants with a copy of the U.S. Environmental Protection Agency pamphlet entitled *Protect Your Family From Lead-Based Paint in Your Home*."

The city shall make available to the public a form containing this required information in English, Spanish and Creole.
(Ord. No. 12804, § 2, 5-11-06; Ord. No. 14138, § 3, 2-9-23)

Sec. 10-39. Availability of pamphlet.

The owner shall provide to all tenants in the building, the U.S. Environmental Protection Agency pamphlet entitled *Protect Your Family From Lead-Based Paint in Your Home,* except that an owner (landlord) shall not be required to comply with this requirement with respect to tenants to whom the owner (landlord) has previously provided a copy of the pamphlet.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-40. Notice of lead-contaminated dust or soil.

Except as may be otherwise inconsistent with state law, any property owner who has performed lead dust testing or lead soil testing in a regulated area shall provide written notice to tenants of the property of the presence of any lead-contaminated dust or lead-contaminated soil verified by the test results within five business days of receipt of written results. The city shall make available to the public a form that complies with the above requirements and restates the generic information required by the notice in English, Spanish and Creole.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-41. Removal of notice of lead-contaminated dust or soil.

The owner may remove such signs when:

(1) All visible lead paint contaminants have been removed from the regulated area in accordance with this chapter, prior to the completion of the work, or

(2) Upon receipt of results of additional lead dust or lead soil testing indicating that no lead-contaminated dust or lead-contaminated soil remains in the regulated area.

(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-42. Authority of the building official to sample.

The city and the building official of the department of public health may also collect paint, dust, and soil samples from the property where the work is being performed and from adjacent properties in order to determine whether the work is being carried out in accordance with the requirements of this chapter.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-43. Enforcement in general.

The city is authorized to make use of all enforcement authority authorized by law, including, but not limited to, the authority set forth in sections 1-13 and/or 10-25 to enforce against any violation of this chapter. Where the owner and the contractor are both responsible parties, the city may proceed against either the owner or the contractor, or against both. The city is further authorized, pursuant to chapter 2, article X, following issuance of a notice of violation, to require as a condition of resuming work, that the responsible party conduct a special inspection by a certified risk assessor in order to establish that the regulated area is in compliance with this chapter.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-44. Stop work orders.

The city shall have the power to stop any work that is disturbing or removing lead paint or otherwise generating lead paint contaminants in violation of this chapter or the construction, alteration or repairs of any steel structure or building subject to the requirements of this chapter when such work is being done in violation of any of the provisions of this chapter and to order all work to be stopped upon notice to any persons engaged in the doing or causing such

work to be done. The work shall be stopped immediately and shall not be resumed without authorization.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-45. No obligation by city.

In undertaking the enforcement of this article, the city is assuming an undertaking only to promote the general welfare. It is not assuming, nor is it imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury.
(Ord. No. 12804, § 2, 5-11-06)

Sec. 10-46. Discretionary duty.

Subject to the limitations of due process, notwithstanding any other provision of this Code, whenever the words "shall" or "must" are used in establishing a responsibility or duty of the city, its elected or appointed officers, employees, or agents, it is the legislative intent that such words establish a discretionary responsibility or duty requiring the exercise of judgment and discretion.
(Ord. No. 12804, § 2, 5-11-06)

Secs. 10-47—10-60. Reserved.

ARTICLE IV. REGISTRATION OF VACANT, BLIGHTED, UNSECURED OR ABANDONED STRUCTURES, AND OF DEFAULTED MORTGAGED PROPERTIES*

Sec. 10-61. Intent.

The purpose of this article is to protect the public health, safety and welfare by:

(1) Establishing a program for identification and registration of vacant, blighted, unsecured and abandoned structures.

(2) Establishing the responsibilities of owners of vacant, blighted, unsecured and abandoned structures.

(3) Providing for administration, enforcement and penalties.

(4) Allowing the city police department to enforce the trespassing penalties described in F.S. § 810.08 on vacant, blighted, unsecured, and abandoned structures.

(5) Providing a fair, equitable, and efficient method of allocating and apportioning the assessed service costs, which constitute a special benefit to residential and commercial properties, among property owners within the city.

(6) Declaring vacant, blighted, unsecured or abandoned real property, which are unmaintained or unsecured to be a public nuisance, the abatement of which pursuant to the city's police power is hereby declared to be necessary for the health, safety and welfare of the residents of the City of Miami.

(Ord. No. 13032, § 2, 10-16-08; Ord. No. 14281, § 2, 5-9-24)

Sec. 10-62. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purpose of this article, have the meanings indicated in this section:

Abandoned structures means a structure or building, as defined herein, or portion thereof, which may have multiple housing, code enforcement and/or building code violations, or may be illegally occupied and is:

(1) Unsecured;

(2) Unsafe as defined herein or as in the Miami-Dade County, Florida Code of Ordinances, Chapter 8 entitled Building Code, as amended;

(3) Condemned as defined by Miami-Dade County, Florida Code of Ordinances, as amended;

(4) Vacant for over a 30-day period of time, commencing with the date of city inspection and during which time an order to

*__Editor's note__—Ord. No. 13599, § 2, adopted April 14, 2016, changed the title of article IV from "Registration of vacant, blighted, unsecured or abandoned structures" to "Registration of vacant, blighted, unsecured or abandoned structures, and of defaulted mortgaged properties."

correct violations, abate a nuisance, or remove an attractive nuisance has been issued;

(5) Vacant for over a 30-day period of time without evidence of functioning water, electric and/or gas utilities;

(6) Boarded up, partially destroyed, or partially constructed or incomplete after the building permit authorizing its construction has expired;

(7) Accessible to trespassers, criminals or other unauthorized persons; or

(8) Currently the subject of mortgage or tax foreclosure proceedings, delinquent in mortgage or tax payments and vacant for at least 90 days.

Accessible property / structure means a property that is accessible through a compromised/ breached gate, fence, wall, etc., or a structure that is unsecured and/or breached in such a way as to allow access to the interior space by unauthorized persons.

Annual registration means 12 months from the date of the first action that required registration, as determined by the city, or its authorized designee, and every subsequent 12 months. The date of the initial registration may be different than the date of the first action that required registration.

Applicable codes means the city's zoning ordinance, City Code, and the state and county building and fire codes.

Approved materials means all city approved materials used to secure a structure.

Blighted property means:

(1) Structures that have broken or severely damaged windows, doors, walls, or roofs which create hazardous conditions and encourage trespassing or malicious mischief;

(2) Structures whose maintenance is so out of harmony and conformity with the maintenance and quality of adjacent or nearby properties as to cause substantial diminution in the use or property value of such adjacent or nearby properties;

(3) A structure defined as a public nuisance pursuant to section 46-1, as amended or pursuant to state statute;

(4) Any individual, commercial, industrial, or residential structure or improvement that endangers the public's health, safety or welfare because the structure or improvement upon the property is dilapidated, deteriorated, or violates minimum health and safety standards, and lacks maintenance as defined by the Florida Building Code; or

(5) A structure which exhibits objectively determinable signs of deterioration sufficient to constitute a threat to human health, safety, and public welfare.

Codes means all applicable codes, including but not limited to, National Fire Prevention Code, Florida Building Code, the Miami-Dade County Code and the City Code.

Code violations means violations of any codes adopted and enforced by the city, which may include but not be limited to, the National Fire Prevention Code, Florida Building Code, the Miami-Dade County Code and the City Code.

Default means that the mortgagor has not complied with the terms of the mortgage on the property, or the promissory note, or other evidence of the debt, referred to in the mortgage.

Enforcement officer means code enforcement inspector, building inspector, or manager's designee.

Evidence of vacancy means any condition that, on its own or combined with other conditions present, would lead a reasonable person to believe that the property is vacant. Such conditions may include, but are not limited to: Overgrown and/or dead vegetation; electricity, water or other utilities turned off; a stagnant swimming pool; statements by neighbors, passers-by, delivery agents, or government agents; accumulation of abandoned

personal property; and/or a readily accessible residence, structure and/or building on the property.

Foreclosure means the legal process by which a mortgagee, or other lien holder, terminates a property owner's equitable right of redemption to obtain legal and equitable title to the real property pledged as security for a debt or the real property subject to the lien. This definition shall include, but is not limited to, public notice of default, a deed-in-lieu of foreclosure, sale to the mortgagee or lien holder, certificate of title and all other processes, activities and actions, by whatever name, associated with the described process. The process is not concluded until the property obtained by the mortgagee, lien holder, or their designee, by certificate of title, or any other means, is sold to a non-related bona fide purchaser in an arm's length transaction to satisfy the debt or lien.

Local property management company means a property manager, property management company or similar entity responsible for the maintenance and security of registrable property located within Miami-Dade County or within 20 driving miles of the county limits. Upon review of credentials, the city, or its designee, may allow a non-local property manager to be listed.

Manager shall mean the city manager of the City of Miami or the manager's authorized designee.

Mortgage servicer means a company to which some borrowers pay their mortgage loan payment and which performs other services in connection with mortgages and mortgage-backed securities.

Mortgagee means the creditor, including but not limited to. trustees; mortgage service companies; lenders in a mortgage agreement; any agent, servant, or employee of the creditor; any successor in interest; or any assignee of the creditor's rights, interests or obligations under the mortgage agreement.

Notice of lis pendens means the lis pendens as identified and described in F.S. § 48.23, as amended.

Occupied means any building or structure used or intended to be used by persons. The term shall be construed as though followed by the words, "or intended, arranged, or designed to be occupied."

Operator means any person who has charge, care or control of a building.

Owner means any person, legal entity or other party having any ownership interest in real property, including but not limited to, owners identified on the blighted, unsecured or abandoned structures registration form; or a purchaser, devisee, lessee, fiduciary, or holder of an unrecorded deed. This term shall also apply to any person, legal entity or agent responsible for the construction, maintenance or operation of the structure involved, as well any person, legal entity or agent authorized to initiate a foreclosure or collection proceeding against the property, whether or not such proceeding has in fact been initiated. This term shall not apply to the city.

Plan means a city approved proposal required to be submitted by the owner to bring a structure into compliance pursuant to all applicable codes.

Property management company means a local property manager, property maintenance company, or similar entity responsible for the maintenance of registrable property.

Premises means any occupied or unoccupied building, accessory structure, lot or parcel of land or any part thereof, used or intended to be used for stores, commercial or office buildings, or residential purposes, including multiple-family dwelling, single-family dwelling, two-family dwelling, condominium and cooperative.

Registrable property means any real property located in the city, whether vacant or occupied by trespassers or persons with no legal authority to be present on the property, that is encumbered by a mortgage in default, for which a notice of lis pendens has been filed and recorded; is subject to an ongoing foreclosure action by the mortgagee or trustee; is subject to an application for a tax deed or pending tax assessor's lien sale; or has been the subject of a foreclosure sale where the title was transferred to the beneficiary of a

mortgage involved in the foreclosure; and/or any properties transferred under a deed in lieu of foreclosure/sale.

The designation of a "default/foreclosure" property as "registrable" shall remain in place until such time as the property is sold to a non-related bona fide purchaser in an arm's length transaction or the foreclosure action has been dismissed and any default on the mortgage has been cured. Non-related in this instance shall mean not related by blood or marriage to the seller in terms of natural persons and not affiliated, parent, or subsidiary companies, or a company with related natural persons as officers, directors, or as owners of more than five percent of the stock or other equivalent ownership, in terms of a business entity.

Rental dwelling unit means any real property that is provided to an individual or entity for residential purposes upon payment of rent or any other consideration in lieu of rent, regardless of relationship between lessor and lessee.

Rental property means property that contains a single-family rental dwelling unit or multi-family rental dwelling units for use by residential tenants including, but not limited to, the following: mobile homes, mobile home spaces, town homes, and condominium unit(s).

Structure means a structure or building as defined by the Florida Building Code.

Unauthorized person(s) means a person or persons who do not have legal authority to be present on the property such as a right of ownership or lease or similar agreement conveying a right of occupancy.

Unsafe structure means a structure or building which is potentially hazardous to persons or surrounding structures, including, but not limited to:

(1) A structure which has collapsed, is in danger of partial or complete collapse, or unable to support the weight of normally imposed loads;

(2) A structure with any exterior parts which are loose or in danger of failing;

(3) A structure which is vacant, unguarded and open at doors or windows;

(4) A structure with an accumulation of debris or other material therein representing a hazard of combustion;

(5) A structure in a condition that creates hazards with respect to means of ingress and egress and fire protection as provided herein for the particular occupancy;

(6) A structure or structural parts that are in deterioration;

(7) A structure that is partially destroyed;

(8) A structure with electrical or mechanical installations or systems creating a hazardous condition contrary to the standards of the Florida Building Code; or

(9) A structure that by reasons of use or occupancy, the area, height, type of construction, fire-resistivity, means of ingress and egress, electrical equipment, plumbing, air conditioning or other features regulated by this Code do not comply with this Code for the use and group of occupancy.

Unsecured means an unoccupied structure or a structure without a lawful tenant or occupant which is open to entry by unauthorized persons or covered with unapproved materials and that are not in conformity with the nearby structures or materials not in compliance with the Florida Building Code.

Vacant means a structure that is empty and unoccupied and is not actively used as a place of residence or business. Actively used shall not include occupancy or use by persons with no legal authority to be present on the property.
(Ord. No. 13032, § 2, 10-16-08; Ord. No. 13599, § 2, 4-14-16; Ord. No. 14281, § 2, 5-9-24)

Sec. 10-63. Responsibilities of owners of vacant, blighted, unsecured or abandoned structures.

No owner shall maintain a blighted, unsecured or abandoned structure.

(1) An owner of a blighted, unsecured or abandoned structure shall comply with the requirements of subsections (2) through (6).

(2) An owner of a blighted, unsecured or abandoned structure shall secure and maintain all entrances and all other openings of the structure, including but not limited to windows and doorways. Such blighted, unsecured or abandoned structure shall be secured as follows:

a. All entrances, windows and other openings shall be secured with approved materials, provided that such materials completely seal all entrances, windows and other openings, thereby protecting the interior of the structure from wind, rain, and other naturally occurring elements. Entrances and windows above the ground floor shall be regarded as secure if the entrances and windows are locked and not otherwise open to entry and the windows contain glass that is not cracked or broken or shutters that prevent entry.

b. If a violation of this section is discovered by a code enforcement officer, said officer is authorized to issue a notice of violation (NOV) requiring the structure to be secured within the time period enumerated in the NOV. If the structure remains unsecured after the time period enumerated in the notice, the city, at its option, shall present a case based on the violation to the code enforcement board as defined per section 2-811 of the City Code, as amended, which is inclusive of the special master, pursuant to chapter 2, article X of this Code. As part of its case, or at any subsequent properly noticed hearing, the city may present evidence showing that criminal activities or incidents presenting a threat to life and safety are occurring on the property where the unsecured structure is located. If such evidence is presented and the code enforcement board or special master determines that this section has been violated, the owner of the structure at issue may be required to secure all openings with commercial quality, 14-gauge, rust proof metallic coverings.

c. Such metallic coverings shall consist of steel sheet metal, excluding aluminum and copper, which allow for ventilation. Said metallic coverings must have an exterior finish that allows for easy graffiti removal, and be designed to prevent removal from the exterior with a crowbar or other prying device. In addition, the metallic coverings must consist of threaded rods or cables attached on the interior of the structure to a steel cross-brace that spans the opening.

d. Failure to comply with the requirements of this section of this article shall subject the owner to code enforcement action, as provided in section 10-66 of this article.

(3) All owners of a vacant, blighted, unsecured or abandoned structure shall be responsible for removing unauthorized signs, posters and graffiti from the structure's exterior unless exempted by this article or the city's zoning ordinance.

(4) Every owner of a vacant, blighted, unsecured or abandoned structure shall keep the premises free from rodents, insects, vermin, and other wild animals.

(5) The roof of every structure shall be well drained of rain water.

(6) All materials used to secure blighted, unsecured or abandoned structures shall be painted in a skillful fashion in the same color as its other exterior walls.

(Ord. No. 13032, § 2, 10-16-08; Ord. No. 13320, § 1, 5-10-12; Ord. No. 13599, § 2, 4-14-16; Ord. No. 13676, § 2, 4-27-17)

Sec. 10-64. Vacant structure registration.

(a) Every owner of a commercial or single-family vacant structure, which is not in default as defined in this article, shall register said

structure with the city. The registration fees for a commercial or single-family structure are set forth in section 10-65. Such registration shall include:

(1) A description of the premises including address, legal description, and folio number;

(2) The names, addresses, and contact numbers of the owner, or agents, that can be contacted within 24 hours; and

(3) Written consent by the owner allowing the city police department to enforce the trespassing penalties described in F.S. § 810.08.

(b) Owners of vacant structures located within a multi-family building shall not have to comply with this section if:

(1) The multi-family structure has a property manager on the premises;

(2) The multi-family structure has a homeowners' association responsible for the management and maintenance of the property;

(3) The multi-family structure has security located on or responsible for the property; and

(4) The property manager of the multi-family building, at no costs to the property manager, registers the following information with the city:

a. A description of the property including address and unit number of all vacant structures within the multi-family building;

b. The names, addresses, and contact number of the property manager or agent who can be contacted within 24 hours;

c. Written consent by the owner allowing the city police department to enforce the trespassing penalties described in F.S. § 810.08.

(c) If any of the requirements of subsections (b)(1)—(4) are not complied with, the individual owner of the vacant structure located within a multi-family building shall register pursuant to subsection 10-65(a).

(d) This registration must be done upon any transfer of the property and every October 1st thereafter.
(Ord. No. 13032, § 2, 10-16-08; Ord. No. 13599, § 2, 4-14-16)

Sec. 10-65. Blighted, unsecured, vacant or abandoned structure registration.

(a) After any structure in the city becomes a blighted, unsecured, vacant or abandoned structure which is in default and for which a notice of lis pendens, is filed and recorded, as defined in this article, the owner shall register the property as provided in this section and section 10-66.

(b) The registration shall be submitted on designated forms and shall, at a minimum, include the following information supplied by the owner:

(1) A description of the premises, including address, legal description and folio number;

(2) The names, addresses and contact numbers of the owner, or agents, that can be contacted within 24 hours;

(3) The names, addresses and contact numbers of all known lien holders and all other parties with an ownership interest in the structure;

(4) A plan and timeline for bringing the structure into compliance; and

(5) Written consent by the owner allowing the city police department to enforce the trespassing penalties described in F.S. § 810.08.

(c) The owner shall comply with all applicable laws and codes and close all outstanding City Code violations, unless waived by the appropriate department or agency.

(d) The owner shall submit a plan and timeline, as described in subsection (b)(4) to be approved by the enforcement officer. The enforcement officer shall require completion of the plan within a reasonable time, not to exceed ninety (90) days. Any repairs, improvements or alterations to structures must comply with any applicable housing and/or building codes.

(e) The owner shall notify the enforcement officer of any changes to the information supplied on the registration immediately. All plan and timeline revisions and extensions must be approved by the enforcement officer or the city manager's designee.

(f) The owner of a blighted, unsecured, vacant or abandoned structure shall pay a registration fee:

(1) The owner of a blighted, unsecured, vacant or abandoned structure shall initially register the property with the city and pay an annual registration fee. The schedule is as follows:

a. $262.50 for the first year.

b. $394.00 for the second year.

c. $525.00 for the third and each subsequent consecutive year the building remains a blighted, unsecured, vacant or abandoned structure.

d. If the property structure is three stories or higher, a nonrefundable annual fee of $0.30 per square foot of the structure shall be paid.

(2) The fee for the first year of registration shall be due and payable, in full, 30 days after the structure is registered as a blighted, unsecured, vacant, or abandoned structure. If the fee is not paid within 30 days of being due, the owner shall be subject to prosecution as prescribed in section 10-66. In addition, interest at the statutory rate per annum shall accrue on fees which are not timely paid.

(3) The registration fee shall be paid in full prior to the issuance of any permits to repair or rehabilitate with the exception of a demolition permit.

(4) All delinquent registration fees, including interest, shall be paid by the owner prior to any transfer of ownership interest. If the fees are not paid prior to transfer, the new owner shall be responsible for all outstanding fees no later than 30 days after the transfer of ownership and subsequent registration fees shall be due and payable in accordance with this article.

(5) The registration fee is reasonably related to the administrative costs for processing the registrations and monitoring of the blighted, unsecured, vacant, or abandoned structures. Increasing fees reflect the growing costs of identifying, regulating, monitoring and policing of deteriorating structures. In registering property as blighted, unsecured, vacant, or abandoned, the form will indicate that submission grants the city's police department the authority to issue trespass warnings to individuals who cannot demonstrate written authorization to be on the property. The mortgagee or owner can opt out of or revoke the department's authority to issue a trespass warning by notifying the police department on the registration form or in writing directed to the chief of police.

(g) The enforcement officer shall keep a file for all registered blighted, unsecured or abandoned structures, which shall include any information from interested parties or citizens regarding the history, problems, status or blighting influence of such structure.

(Ord. No. 13032, § 2, 10-16-08; Ord. No. 13142, § 5, 2-11-10; Ord. No. 13599, § 2, 4-14-16; Ord. No. 14281, § 2, 5-9-24)

Sec. 10-66. Defaulted mortgage real property registration.

(a) Any mortgagee who holds a mortgage on real property located within the city shall perform an inspection of the property to determine vacancy

or occupancy, upon default by the mortgagor for which a notice of lis pendens has been filed and recorded. The mortgagee shall, within ten days of the inspection, register the property with the city, or its designee, on forms or other manner as directed, and indicate whether the property is vacant or occupied. A separate registration is required for each property, whether it is found to be vacant or occupied.

(b) Registration pursuant to this section shall contain the name, direct mailing address, direct contact name, telephone number, and e-mail address for the mortgagee/trustee, the servicer, and the name and 24-hour contact phone number of the local property management company responsible for the security and maintenance of the property, who has the authority to make decisions concerning the abatement of nuisance conditions at the property as well as any expenditure in connection therewith.

(c) Mortgagees who have existing registrable property on the effective date of this section have 30 calendar days from the effective date to register the property with the city, or its designee, on forms or other manner as directed, and indicate whether the property is vacant or occupied. A separate registration is required for each property, whether it is vacant or occupied.

(d) If the mortgage on a registrable property is sold or transferred, the new mortgagee is subject to all the terms of this article and within five days of the transfer, must register the property and pay a registration fee in accordance with this article. Any previous unpaid annual registration fees are the responsibility of the new mortgagee or trustee and are due and payable with the initial registration.

(e) If the mortgagee owner of a foreclosed real property sells or transfers the property to a non-arm's length related person or entity, the transferee is subject to all the terms of this article and within five days of the transfer, must register the property and pay a registration fee in accordance with this article. Any previous unpaid annual registration fees are the responsibility of the new registrable property owner and are due and payable with their initial registration.

(f) As long as the property is registrable, it shall be inspected by the mortgagee, or designee, on a monthly basis. If an inspection shows a change in the property's occupancy status, the mortgagee shall, within ten days of that inspection, update the occupancy status of the property registration.

(g) A non-refundable annual registration fee as established in this article, as amended, and as applicable, shall accompany each registration pursuant to this section.

(h) All registration fees must be paid directly from the mortgagee, trustee, servicer, or owner. Third party registration fees are not allowed without the written consent of the city manager and/or the city manager's authorized designee.

(i) Properties subject to this section shall remain under the annual registration requirement, and the inspection, security and maintenance standards of this section as long as they are registrable.

(j) Until the mortgage or lien on the property in question is satisfied, or legally discharged, the desire to no longer pursue foreclosure, the filing of a dismissal of lis pendens and/or final judgment and/or certificate of title, voluntary or otherwise, does not exempt any mortgagee holding the defaulted mortgage, from all the requirements of this article as long as the borrower is in default.

(k) Any person or legal entity that has registered a property under this section must report any change of information contained in the registration within ten days of the change.

(l) Failure of the mortgagee to properly register or to modify the registration form from time to time to reflect a change of circumstances as required by this article is a violation of the article and shall be subject to enforcement and any resulting monetary penalties.

(m) Pursuant to any administrative or judicial finding and determination that any property is in violation of this article, the city may take the necessary action to ensure compliance with and,

thereafter place, a lien on the property for the cost of the work performed to benefit the property and bring it into compliance.

(n) Properties subject to these sections shall be maintained in a secure manner so as not to be accessible to unauthorized persons. A "secure manner" shall include, but not be limited to, the closure and locking of windows, doors, gates and other openings of such size that may allow a child to access the interior of the property or structure. Broken windows, doors, gates and other openings of such size that may allow a child to access the interior of the property or structure must be repaired. Broken windows shall be secured by re-glazing of the window. All such costs shall be borne by the owner(s). If the city or its agents decide to undertake repairs, the costs shall be subject to administrative costs, fines and liens as provided in chapter 2, article 10 of the City Code.

(o) If a property is registrable, and the property has become vacant or blighted, a local property manager shall be designated by the mortgagee or owner to perform the work necessary to bring the property into compliance with the applicable code(s), and the local property manager must perform regular inspections to verify compliance with the requirements of this article, and any other applicable laws.

(p) All registrable property is hereby declared to be a public nuisance, the abatement of which, pursuant to the police power, is hereby declared to be necessary for the health, welfare and safety of the residents of the city.

(q) Any property structure that qualifies under this article for registry is required to keep posted as sign, no less than eight inches by ten inches which expressly provides the following information:

THIS PROPERTY IS MANAGED BY:
(Name of property management company)
TO REPORT PROBLEMS OR CONCERNS CALL:
(Telephone number of property management company)

The posting is required to be in English, Spanish and Creole and placed in a visible area, preferable an interior window, or secured to an exterior wall at the structure main entrance. The local property manager shall be required to inspect weekly to ensure the sign remains intact and legible. Exterior posting shall be constructed of and printed with weather-resistant materials. (Ord. No. 13599, § 2, 4-14-16; Ord. No. 14281, § 2, 5-9-24)

Sec. 10-67. Enforcement.

Failure to comply with the requirements of this article shall subject the owner to code enforcement action, pursuant to F.S. ch. 162, as well as chapter 2, article X of the City Code, and specifically section 2-814.

If the owner fails to comply with the requirements of this article, the city may, pursuant to F.S. ch. 170, secure or cause to be secured and make all reasonable repairs to such blighted, unsecured or abandoned structures, which are required to bring the property into compliance and charge the violator with the reasonable cost of the repairs along with the fine imposed pursuant to this article. Making such repairs does not create a continuing obligation on the part of the local governing body to make further repairs or to maintain the property and does not create any liability against the local governing body for any damages to the property if such repairs were completed in good faith.

If the work is done or caused to be done by the city, the enforcement officer shall keep an itemized accounting of expenses of the work done and the cost thereof and notify the owner of said expenses. If the statement is not paid within ten days after the owner is notified, interest shall begin to accrue annually at the statutory rate until paid in full.

Under the lawful authority granted to municipalities pursuant to F.S. chs. 170 and 166, the city hereby authorizes the levy and collection of special assessments to fund the costs of any work done by the city to enforce compliance with the requirements of this article.

Costs resulting from any work undertaken by the city pursuant to this section shall be levied as a special assessment lien against the real

property where the violation existed. Said special assessment lien, until fully paid and released, shall remain a lien equal in rank and dignity with the lien of ad valorem taxes, and shall be superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved. Interest upon such special assessment liens shall accrue pursuant to F.S. § 170.09, as amended. Special assessment liens shall be enforced by any method authorized by law to enforce payment thereof with all accrued interest and costs, including legal costs, or may be subject to foreclosure, pursuant to F.S. ch. 173, as amended. The property owner shall pay all costs of collection, including reasonable attorney's fees, incurred by the collection of fees, service charges, penalties and liens imposed by virtue of this section. Additionally, the city may elect to utilize the uniform method for the levy, collection and enforcement of this non-ad valorem assessment pursuant to F.S. § 197.3632, as amended.

(Ord. No. 13032, § 2, 10-16-08; Ord. No. 13319, § 2, 4-12-12; Ord. No. 13599, § 2, 4-14-16)

Editor's note—Ord. No. 13599, § 2, adopted April 14, 2016, renumbered the former sections 10-66—10-68 as sections 10-67—10-69. The historical notation of these sections has been preserved for reference purposes.

Sec. 10-68. Exemptions.

This article shall not apply to any structures protected by federal, state, or local law or any structures owned by the federal government, state government, Miami-Dade County, or the city.

(Ord. No. 13032, § 2, 10-16-08; Ord. No. 13599, § 2, 4-14-16)

Note—See editor's note at section 10-67.

Secs. 10-69, 10-69.5. Reserved.

Editor's note—Ord. No. 14281, § 2, adopted May 9, 2024, repealed the former sections 10-69 and 10-69.5 in their entirety, which pertained to penalties and alternative procedures, respectively, and derived from Ord. No. 13032, § 2, adopted October 16, 2008, and Ord. No. 13599, § 2, adopted April 14, 2016.

ARTICLE V. CODE RELIEF PROGRAM

Sec. 10-70. City code relief program for structures built under prior building codes and zoning ordinances.

Intent: This article concerns the legalization of remodeling work and additions to existing buildings or structures located on homestead and

owner-occupied property constructed prior to March 1, 2002. Minimal life-safety requirements must be met, including but not limited to, side and rear setbacks.
(Ord. No. 13304, § 2, 1-26-12; Ord. No. 13411, § 2, 10-10-13; Ord. No. 13799, § 2, 10-25-18; Ord. No. 13933, § 2, 10-22-20; Ord. No. 14022, § 2, 9-23-21; Ord. No. 14121, § 2, 11-17-22)

Sec. 10-71. Definitions.

Administrative variance (as to set-backs) means minor deviation of any zoning regulation other than height, density, intensity, or use by up to 25 percent granted by the zoning director, in order to relieve practical difficulties with strict compliance with the zoning ordinance. An administrative variance may not be granted if it conflicts with the City Code, Florida Building Code, fire code, or any other life-safety requirement.

Applicant means one who applies and wishes to participate in the code relief program.

As-built certificates mean documents provided by a professional Florida licensed architect or engineer including a notarized affidavit, stating that the plans and the work completed on the structure complies with the building code for Miami-Dade County in effect at the time of construction. The architect or engineer will specify the methodology used to inspect the areas not readily visible (foundation, wall reinforcement, etc.).

As-built plans means the set of drawings and calculations required for permits at the time of construction. The plans must be prepared by a professional Florida licensed architect or engineer who shall sign and seal the documents and insert a statement in the first page stating that the work complies with the building code for Miami-Dade County in effect at the time of the construction, and indicating in the drawings any work that will need to be done for compliance.

Code relief program means a program pursuant to this article concerned with the legalization of structures constructed prior to March 1, 2002.

Existing buildings mean those buildings constructed prior to March 1, 2002, as defined in Chapter 8-11 of Miami-Dade County Code and the Florida Building Code.

Legalization permits mean building or zoning permits issued pursuant to this article.

Owner-occupied means any residential home that is occupied by the owning party for which homestead exemption is not attainable. The owner-occupied owner shall also provide a sworn affidavit specifically stating, "I hereby certify that I live at this residence, and I do not declare my Homestead elsewhere" along with a copy of a federal or state government issued identification showing the property as their residency.

Participant means an applicant who has participated and completed the code relief program.

Permit issued by affidavit means permits will be issued by the city's building official in accordance with the Florida Building Code § 105.14, as amended. Thus, when a permit is issued relying upon an affidavit or when work to be covered by a permit involves installation under conditions which the building official opines are hazardous or complex, the building official shall require that the architect or engineer who signed the affidavit or prepared the drawings or computations must supervise such work. In addition, the architect or engineer shall be responsible for conformity to the permit, provide copies of inspection reports as inspections are performed, and upon completion, make and file with the building official written affidavits that the work has been done in conformity to the reviewed plans and with the structural provisions of the technical codes.
(Ord. No. 13304, § 2, 1-26-12; Ord. No. 13799, § 2, 10-25-18; Ord. No. 14121, § 2, 11-17-22)

Sec. 10-72. Criteria and process.

Existing remodeling work and additions located on homestead and owner-occupied property may be granted a permit for legalization under this article. The legalization may be for any structure, including any part thereof, or for any addition or repair work, built without proper permits, if the

work performed commenced prior to March 1 2002, under any prior building or zoning code, or any permits obtained under the South Florida Building Code, which expired without certificates of completion or occupancy having been issued. Any work that is required to be legalized that was built after March 1, 2002 shall have to follow the Florida Building Code as required by law.

The legalization permits will be issued by the building official in accordance with the Florida Building Code § 105.14, as amended, and by fulfilling the following conditions:

(1) The applicant shall furnish a set of as-built plans, as defined in this article, of the building or structure;

(2) The applicant shall furnish an as-built certificate satisfactory to the building official issued by a Florida registered engineer or architect. The Florida registered engineer or architect will attest via affidavit based on knowledge, belief and professional judgment, and based on an inspection of the structure, that the structure can be legalized. The as-built certificate shall contain a narrative description of the methodology used by the engineer or architect tendering the certificate to make the determination that the structure can be legalized. In issuing the certificate of completion or occupancy, the building official shall be entitled to rely on the accuracy of the as-built certificate provided by an engineer or architect. More particularly, the affidavit will attest that the structure:

a. Is structurally sound, and complies with the FEMA zone requirements for minimum floor elevation;

b. Satisfies the requirements of the building and zoning code(s) in effect at the time the work was commenced, indicating the date the work on the structure was commenced from the best available records and the requirements of the building and zoning code(s) in effect on that date provided that an adjustment pursuant to section 10-75 may be made notwithstanding meeting the requirements of the applicable zoning code but must be fully compliant with the current building code;

c. Complies with all safety minimum requirements identified below;

d. Complies with the permit application and any plans approved by the building official; and

(3) The as-built certificate and plans must indicate that the structure will comply with all of the following life-safety minimum requirements of the current Florida Building Code (FBC):

a. Means of egress or escape;

b. Requirement of shutters;

c. Residential single station smoke detectors - installed in accordance with NFPA (1999 edition);

d. Requirement for ground fault interrupters, bathroom and kitchen;

e. Requirement for full size pressure and temperature relief valve lines on all water heaters;

f. Handicapped access requirements;

g. All gas piping systems shall be bonded to ground;

h. Handrails shall be inspected and replaced, if necessary, in full compliance with requirements of the current building code.

(4) Prior to issuing the certificate of completion or occupancy, the building official shall conduct an inspection to determine whether:

a. The plans submitted reflect the present state of the structure; and

b. The structure complies with all requirements of the current building code identified above; and

c. The as-built certificate represents accurately the condition of the structure.

(Ord. No. 13304, § 2, 1-26-12; Ord. No. 13799, § 2, 10-25-18; Ord. No. 14121, § 2, 11-17-22; Ord. No. 14223, § 2, 10-26-23)

Sec. 10-73. Enforcement and mitigation.

(a) Notwithstanding the provisions of this article, the building official may at all times continue enforcement of this Code or any local (city or county) ordinances or technical codes through any authorized means, including issuance of a notice of violation pursuant to chapter 2, article X, Code enforcement; recording of lien for same; commencement of a case before the unsafe structures board or panel; or the issuance of a civil citation. This section shall not be construed or serve as a defense against any enforcement action brought by the building official based on the current requirements of the ordinance, nor shall this article preclude the city from enforcing local (city or county) ordinances or technical codes through any means provided by law.

(b) Notwithstanding the provisions of chapter 2, article X, Code enforcement with regard to the mitigation of fines, the mitigation of code enforcement per diem fines shall be abated. Upon completion of the program, the director of code enforcement will advise the city manager, or designee, of the eligibility of the participant to have the fines abated. The code compliance department shall comply the open code compliance case and the planning department shall cause any recorded lien to be released based upon abatement as provided in this section.

(Ord. No. 13304, § 2, 1-26-12; Ord. No. 13327, § 2, 6-28-12; Ord. No. 13799, § 2, 10-25-18; Ord. No. 14121, § 2, 11-17-22)

Sec. 10-74. Building fees.

The building official shall establish a fee schedule for processing applications and costs to conduct any testing done pursuant to this section. The city will waive the "double permit fee plus fine" in section 10-4 for all the permits issued under this article.

(Ord. No. 13304, § 2, 1-26-12)

Sec. 10-75. Administrative variance.

(a) Pursuant to review by the zoning director, an administrative variance of up to 25 percent may be granted for setbacks as long as minimal life-safety requirements are met. However, such a variance will not in any event legalize that which cannot be legalized or allowed in a particular transect with respect to uses.

(b) The zoning director may grant an administrative variance of up to 50 percent for one of a lot's side setback area provided the unpermitted work, excluding unpermitted work addressed in section 10- 76, in said setback area commenced prior to September 23, 1982 and the current homeowner applies under this subsection prior to [90 days from adoption of ordinance]. For the purpose of this subsection (b), the time of application shall be deemed the day the building permit legalizing such work receives prescreen approval in the city's permitting systems, this shall also include scope of work approval for any property with an open and pending unsafe structure violation pursuant to section 10-101. This subsection (b) shall sunset on to [90 days from adoption of ordinance].

(Ord. No. 13304, § 2, 1-26-12; Ord. No. 13799, § 2, 10-25-18; Ord. No. 14223, § 2, 10-26-23)

Sec. 10-76. Driveway amnesty program.

(a) To qualify for the driveway amnesty program a property owner must show:

(1) Ownership of the property for the past five years; and

(2) Proof public street abutting property has been repaved within the past five years; and

(3) Property is a single-family home or legal duplex located in a T3 or T4 transect zone.

(b) Requirements of green space to be located on frontage and swale, notwithstanding the requirements of the Miami 21 Code shall be:

(1) Yard set back on private property at driveway location shall be no less than three feet from the property line; and

(2) The public right-of-way or swale shall constitute 34 percent green space as required by the department of resilience and public works.

(c) Plans shall be submitted and permits approved and issued as provided for in chapter 10 of the City Code including, but not limited to, required fees for legalization for unpermitted work and approval by all relevant state and local departments. If the property is currently subject to an unsafe structure case, the owner shall follow the requirements of permitting as it pertains to those cases, but should they be in good standing with the unsafe structure panel order they may avail themselves of this program.

(d) This program shall expire one year from the date of passage of the enacting ordinance. (Ord. No. 14223, § 2, 10-26-23)

Sec. 10-77. Ancillary dwelling unit (ADU) amnesty program.

(a) *Definitions.* ADU amnesty program ("the program") means a program pursuant to this article concerned with the legalization of ADUs.

(b) *Purpose and intent.* The ADU amnesty program outlines a procedure for bringing properties into compliance with the Miami 21 Zoning Code relating to the construction and operation of an ADU. The program offers a pathway, including the relaxation of fees and fines related to unpermitted work or illegal ADU conversions.

(c) *Applicability.* This program applies to properties with existing code violations. It also allows for properties that have not received a violation to voluntarily disclose potential issues and to come into compliance.

(d) *Procedure.*

(1) *Pre-submittal meeting with the office of zoning (optional).*

a. Approval of unpermitted work is not guaranteed, nor is the construction of an ADU assured.

b. Before submitting a building permit application, the applicant may schedule a meeting with the office of zoning to review the feasibility of legalizing the existing ADU on the property.

(2) *Initial registration process.* The ADU amnesty program shall then follow the steps outlined for the "initial registration process" and "annual renewal process" as described in section 2-214, titled "Ancillary dwelling unit (ADU) compliance" of the City Code.

(3) *Building permit fees.* The city will waive the associated "double permit fee plus fine" per chapter 10, article V, titled "Code relief program", as provided in section 10-4.

(e) *Non-compliance.* Non-compliance with the terms and procedures outlined here will lead to the property's removal from the ADU amnesty program and shall be subject to applicable code compliance procedures.

(f) *Fees.*

(1) *Pre-submittal meeting.* $250.00. (Ord. No. 14377, § 2, 7-10-25)

Secs. 10-78—10-100. Reserved.

ARTICLE VI. UNSAFE STRUCTURES

Sec. 10-101. Unsafe structures and unsafe structures panel.

(a) General.

(1) Unsafe structures panel(s) shall hear unsafe structures cases, and appeals of decisions, of the city building official, or designee, declaring properties and their structures and accessory structures to be unsafe where there is a danger to the health, safety, and welfare of the citizens in the community, all in the manner prescribed in this article. If such structure has been designated historic and is under the city's historic preservation jurisdiction, demolition procedures shall, whenever possible, abide by the process as set out in the city's historic preservation ordinance as found in chapter 23 of

this Code, unless there is an immediate threat of danger, as determined by the building official, or designee.

(2) Buildings or structures that are, or hereafter shall become, unsafe, unsanitary or deficient, and dilapidated facilities, with inadequate means of egress, or which constitute a fire or windstorm hazard, or are otherwise dangerous to human life or public welfare by reason of illegal or improper use, occupancy or maintenance, or which have been substantially damaged by the elements, acts of God, fire, explosion or otherwise, shall be deemed unsafe structures and a permit shall be obtained to demolish the structure, or where specifically allowed by this article, to bring the building into compliance with the applicable codes as provided herein.

(3) Incomplete buildings commenced without a permit or for which the permit has expired, or completed buildings commenced without a permit or for which the permit has expired, prior to completion and no certificate of occupancy has been issued, shall be presumed and deemed unsafe and a permit shall be obtained to demolish the structure or bring the building into compliance with the applicable codes as provided herein.

(4) Buildings which meet the physical criteria of unsafe structures, set forth in this section, and are ordered to be repaired by the building official, or designee, or the unsafe structures panel, in the manner more particularly set forth below, which are not completed or repaired and brought into full compliance with the building code within the reasonable time allowed by the building official, or designee, or the unsafe structures panel, will be demolished.

(5) Swimming pools that contain stagnant water are deemed unsanitary and dangerous to human life and the public welfare. If the stagnant water is not removed and all repairs made and brought into full compliance with the building code within a reasonable time, as allowed by the building official, then these swimming pools will be demolished and filled in.

(6) Buildings or structures subject to the recertification requirements in subsection 8-11(f) of the Miami-Dade County Code which the owner fails to timely respond to the notice of required inspection or fails to make all required repairs or modifications found to be necessary resulting from the recertification inspection by the deadline specified in the Code or any written extension granted by the building official, or designee, will be demolished.

(b) Physical criteria.

(1) A building shall be deemed a fire hazard or unsafe when any of the following criteria are met:

a. It is vacant, unguarded and open at doors or windows.

b. There is an accumulation of debris or other material therein representing a hazard of combustion.

c. The building condition creates hazards with respect to means of egress and fire protection as provided herein for the particular occupancy.

d. It meets the criteria of a vacant and abandoned property under chapter 10 of this Code or under chapter 8 of the Miami-Dade County Code.

(2) A building, or part thereof, shall be presumed to be unsafe if:

a. There is a falling away, hanging loose or loosening of any siding, block, brick, or other building material.

b. There is a deterioration of the structure or structural parts.

c. The building is partially destroyed.

d. There is an unusual sagging or leaning out of plumb of the building or

any parts of the building and such effect is caused by deterioration or over-stressing.

e. The electrical or mechanical installations or systems create a hazardous condition contrary to the standards of the building code.

f. An unsanitary condition exists by reason of inadequate or malfunctioning sanitary facilities or waste disposal systems.

g. By reasons of use or occupancy the area, height, type of construction, fire-resistivity, means of egress, electrical equipment, plumbing, air conditioning or other features regulated by this Code do not comply with this Code for the use and group or occupancy.

h. The construction, installation of electrical, plumbing or other equipment therein or thereon, or the partial construction or installation of electrical, plumbing or other equipment has been commenced or completed without a permit therefore having been obtained or where the permit has expired prior to completion and the issuance of a certificate of occupancy or certificate of completion.

i. The construction, installation of electrical, plumbing or other equipment therein or thereon, or the partial construction or installation of electrical, plumbing or other equipment has not been completed.

j. The building or structure is vacant and abandoned, and covered at doors or windows with materials not previously approved by the building official, or designee, or for a period exceeding the maximum limitations set forth in this article.

k. By reason of illegal or improper use, occupancy or maintenance does not comply with the building code, or the code in effect at the time of construction.

l. The building or part thereof meets the physical criteria of an unsafe structure set forth above and has not been repaired and brought into compliance with the building code following the expiration of the reasonable periods allowed by the building official, or designee, or an unsafe structures panel for such repairs.

(3) Grow houses. A building or structure that has been identified by any law enforcement officer as being used to grow or manufacture controlled substances as defined by F.S. ch. 893 or any drugs, as defined in F.S. ch. 499 (a "grow house") shall be presumed to be unsafe if any one of the following criteria has been satisfied:

a. There is an open and obvious modification or addition to any of the structure's electrical wiring or electrical components, or there exists any exposed wires or exposed electrical components;

b. There is an open and obvious modification or addition to any of the structure's plumbing, and/or any discharge of water or other effluent that is not into an ordinarily available drain;

c. The structure's interior walls have been destroyed, moved, or modified in any way. This may be evidenced by marks on the ceiling and/or floor that are indicative of a wall having been moved or removed, holes or passages in a wall that are not ordinary, and may be unfinished in appearance. This list shall not be considered exhaustive such that any other evidence of walls being destroyed, moved or modified shall be proper;

d. Any exterior window has been modified or covered in such a way, so as to inhibit or reduce egress or which inhibits or prevents normal use for

ventilation purposes; this shall not include curtains and other ordinary window coverings; or

e. Any of the structure's exterior or interior doors have been modified or covered in such a way to prevent or inhibit ingress or egress.

(c) Upon observation of any one of the above criteria in subsection (b), any city enforcement personnel shall be authorized to post and shall post a notice in a conspicuous location on the building or structure that has been determined to be unsafe.

(1) The posted shall read substantially as follows:

(i) Unsafe structure(s) meeting criteria for immediate or emergency demolition: "UNSAFE BUILDING. This building or structure is, in the opinion of the City of Miami, unsafe. THIS BUILDING SHALL BE VACATED-SHALL NOT BE OCCUPIED. The owner should contact the City of Miami Building Department immediately. THIS NOTICE SHALL NOT BE REMOVED EXCEPT BY THE BUILDING OFFICIAL OR DESIGNEE. DATE (insert date posted)." This notice shall also apply to any structure(s) where it is determined by the Building Official or Designee that it is not safe for occupancy until required repairs are completed. This Notice may be appealed to the Unsafe Structure Panel within twenty (20) days of posting."

(ii) Unsafe structure(s) not meeting criteria for immediate demolition: "UNSAFE BUILDING. This building or structure is, in the opinion of the City of Miami unsafe due to conditions or unpermitted work but is not determined to meet criteria for immediate or emergency demolition. The owner should contact the City of Miami Building Department immediately. THIS NOTICE SHALL NOT BE REMOVED EXCEPT BY THE BUILDING OFFICIAL OR DESIGNEE. If the structure(s) are not brought into compliance, the structure(s) may be ordered vacated and demolished. DATE (insert date posted). This Notice may be appealed to the Unsafe Structure Panel within twenty (20) days of posting."

(2) Entry to any structure posted with such a notice under subsection (c)(1)(i) shall be prohibited except by an order issued by a court of competent jurisdiction, until such time as all necessary inspections listed in subsection (4) have been completed.

(3) Within 24 hours of the notice being posted by the building official, or designee, the Miami Police Department shall notify the building department of any trespass violations pursuant to subsection (c)(1)(i). Upon receiving such notification from the Miami Police Department the building department shall immediately send a notice of violation in accordance with the provisions of this article. This notice shall also state that building official, or designee, will conduct an inspection of the structure and issue a notice of violation within five business days.

(4) All structures that meet any of the criteria from subsection (c)(1) above and have been posted with the requisite notice, must be approved by the building department based upon all of the following inspections before the structure can be deemed safe for use:

a. An electrical inspection;

b. A plumbing inspection;

c. An inspection by a certified mold inspector; and

d. An inspection by a structural engineer.

Upon completion of the inspections described herein, an inspection report shall be filed with the building depart-

ment for approval. The building director shall proscribe the forms to be used for the inspections described herein and shall be authorized to charge a fee for the review of the inspection reports. Each inspection report shall certify that there is currently no unsafe or hazardous conditions currently existing in the structure, all building code violations corrected and the structure is safe for occupancy. No building deemed unsafe and meeting criteria for immediate or emergency demolition pursuant to this section shall be occupied. Nothing herein shall relieve the owner from the requirement to obtain permits for any repairs required to meet the requirements of this section.

(d) Valuation criteria.

(1) If the cost of completion, alteration, repair and/or replacement of an unsafe building or structure or part thereof exceeds 50 percent of its value, such building shall be demolished and removed from the premises. If the cost of completion, alteration, repair and/or replacement of an unsafe building or structure or part thereof does not exceed 50 percent of its value, such building or structure may be repaired and made safe, as provided herein.

(2) For purposes of application of this formula, value shall be the estimated cost to replace the building in kind, excluding depreciation. The estimate shall be derived from multiplying the value of the square footage of construction used by the building department to calculate the applicable permit fee. That estimate shall be broken down on a percentage basis into an estimate of the following critical elements of construction, as applicable: structural, roofing, electrical, plumbing and mechanical, and other building components ("valuation of construction components"). The cost of completion, alteration, repair or replacement shall be estimated by application of the percentage of deterioration found on site for each of the critical elements of construction to the valuation of construction components for the structure, to arrive at an overall estimated cost to repair the affected structure. The appointing authority shall by administrative order provide a form for the application of the formula set forth above for the various types of construction.

(3) If a building or structure may be repaired and made safe pursuant to the valuation criteria set forth above, and the building or structure is otherwise unsafe in accordance with the physical criteria set forth in this article, the building official or designee may order such building or structure to be temporarily secured in the manner and subject to the limitations set forth in this article. Such building must be completed and brought into full compliance with the building code within such time as the building official, or designee, or unsafe structures panel may determine to be reasonable for such completion. If the building or structure is not temporarily secured, completed and brought into full compliance with the building code within the reasonable periods allowed, such building or structure shall be demolished and removed from the premises.

(4) When any electrical or structural repairs or modifications are required, the responsible engineer or architect who has performed the inspection must provide the building official or designee with a letter indicating whether or not the building or structure may continue to be occupied while the building or structure is undergoing repairs. Such letter shall be valid for no more than 180 days, and a new letter must be issued if repairs or modifications remain ongoing.

(e) Inspection of unsafe buildings and structures. The building official, or designee, on their own initiative or as a result of reports by others, shall examine or cause to be examined every building or structure appearing or reported to be unsafe, and if such is found to be an

unsafe building or structure as defined in this article, the building official or designee shall proceed in the manner set forth in this article.

(f) Emergency action.

(1) When in the opinion of the building official, or designee, there is actual or immediate danger of the failure or collapse of a building or structure, or there is a health, windstorm or fire hazard, he may order the occupants to vacate, temporarily close for use or occupancy the rights-of-way thereto, sidewalks, streets or adjacent buildings or nearby area and institute such other temporary safeguards, including securing the building or structure, as he may deem necessary under the circumstances, and may employ the necessary labor and materials to perform the required work as expeditiously as possible. In such event, the operation of the notice and hearing requirements of this section shall be suspended as reasonably necessary in the opinion of the building official, or designee, to redress the emergency situation. Costs incurred in the performance of such emergency work shall be paid by the appropriate governmental authority and upon the recording in the public records of this county a certificate executed by the building official, or designee, certifying the amount so expended, the same shall become a lien against the property involved.

(2) For purposes of subsection (f), "owner" shall mean the owner of an apartment building or a condominium/condominium unit.

When the building official or designee orders an occupied residential building, either apartment or condominium, with four or more units to be vacated, as authorized in subsection 10-101(f)(1), and deems that there is an actual or immediate danger of the failure or collapse of a building or structure, or health, windstorm, or fire hazard, which is a result of the negligent or intentional act or failure to act by the owner(s), the owner shall, after posting, within 24 hours make, or cause to be made, all necessary arrangements to relocate the residents of the building into housing that is safe, sanitary, and secure, and the owner shall pay, or cause to be paid, all of the reasonable expenses involved in such relocation. If the owner fails to timely relocate displaced residents, city personnel shall be empowered to assist in the relocation, and the owner shall pay all reasonable expenses incurred by the city, in accordance with the following:

a. Service of a notice of required payment of costs of resident relocation shall be made upon the owner by posting the notice in a conspicuous location at the premises ordered to be vacated and by mailing the notice certified, return receipt requested through the USPS to the address listed in the records of the property appraiser's office for tax notices for the property and in the case of a condominium, to the condominium board and board president.

b. The notice of required payment of costs of resident relocation shall include:

i. An affidavit itemizing the city's expenses incurred in the relocation;

ii. The date of issuance;

iii. The name of the department or division issuing the notice;

iv. The obligation to relocate a resident or residents pursuant to subsection 10-101(f) of the City Code;

v. The amount of relocation costs for which reimbursement is sought, up to three months, the financial assistance shall be in an amount not to exceed three months' fair market rent,

as defined by the United States Department of Housing and Urban Development;

c. With respect to apartment rental units, the obligations of owners under this subsection shall only apply to tenancies entered into after the effective date of this subsection.

d. Once notice requiring payment of costs accomplished, owner shall have 30 days to pay.

(g) Unsafe structures meeting valuation criteria for immediate demolition.

(1) The provisions below shall apply to buildings or structures meeting the valuation criteria for demolition.

(2) The building official, or designee, shall prepare a notice of violation. The building official, or designee, shall prepare a notice of violation. This written notice shall state in summary form:

(i) The nature of defects which constitute a violation of this section; and

(ii) In such time not to exceed ten days to secure an open structure to the reasonable satisfaction of the building official and time to comply by obtaining an approved permit within 30 days. Failure to comply with any portion of the timeframe provided can result in the matter being set for hearing before the unsafe structure panel;

(iii) This notice shall also state that the specific details concerning the violations can be obtained in writing from the building official on request. In addition, this notice will explain the right of appeal of the decision of the building official, or designee, to the unsafe structures panel, in its appellate capacity and also advise that unless there is compliance with the directions of the building official, or designee, a case will be commenced before the unsafe structures panel with the city seeking demolition without further notice.

(3) The notice of violation shall be affixed to the structure concerned. The building official, or designee, shall also affix to the structure notice of the hearing of the unsafe structures panel scheduled to consider any appeal of the decision of the building official in connection with the structure. The notice of hearing shall be issued by the director of the building department or his/her designee for appeals to an unsafe structures panel advising persons to appear before the panel to show cause why the decision of the building official should not be carried out. The hearing shall not be scheduled earlier than 30 days following the date of posting of the notice of hearing and notice of violation.

(4) The building official, or designee, shall post a notice bearing his or her signature in a conspicuous location on the building or structure that has been determined to be unsafe. The posted notice shall read as provided for in subsection (c)(1).

(5) Within ten working days of posting the notice of violation and/or notice of hearing, the building official or designee, shall send written notice of violation to the owner. For hearings, notice shall go to both the owner and any interested party. For these purposes, the owner shall be the taxpayer as reflected in the most recently certified real property ad valorem tax roll of Miami-Dade County; provided however, where the records of the Dade County Property Appraiser indicate that ownership has changed, the owner shall be the taxpayer as reflected in those records. An interested party shall be the owner and any other person or entity who has previously requested real property ad valorem tax notices with respect to the subject property in accordance with F.S. § 197.344, as the same may be renumbered or amended from time to time. The notice of violation

and notice of hearing shall be sent by certified or first class mail to all such parties' last known addresses as reflected in the records of the Miami-Dade County Property Appraiser. Failure to receive such notice, or the lack of a signed return receipt shall not invalidate the notice.

(6) Upon expiration of the period of appeal provided in the notice of violation, the building official, or designee, may file an appropriate instrument in the office of the clerk of the circuit court to be recorded in the public records of this county, indicating that the property is in violation of the building code and subject to a pending lien. The recording of the notice shall constitute constructive notice of the violation to all concerned, subsequent purchasers, transferees, mortgagees, lessees, grantees and all persons claiming or acquiring interest in the property. In the event that the violation is corrected, the building official, or designee, shall file proof of the same upon payment for fees incurred.

(7) The building official, or designee, shall publish a notice for two consecutive weeks online via the city's website at www.miamigov.com. The published notice shall contain the address of the subject property and the names of the owner and any interested party, and state that the subject property has been cited for violations of the building code and subject to demolition. The published notice shall also state the time and place of the hearing scheduled before the unsafe structures panel.

(8) The notices provided in this section are intended to serve as full and effective notice of the hearing and the violations related to the structure. Failure of one form of notice shall not invalidate or impair the full effectiveness of notice provided by other means pursuant to this section.

(9) The city may seek collections of any money expended to rehouse occupants of a structure under this subsection pursuant to subsection (f)(2).

(h) Unsafe structures not meeting the valuation criteria for immediate demolition.

(1) If a building or structure may be repaired and made safe pursuant to the valuation criteria set forth above, and the building or structure is otherwise unsafe in accordance with the physical criteria set forth in this section, the building official, or designee, may order such building or structure to be temporarily secured in the manner and subject to the limitations set forth in this section. Such building must be completed and brought into full compliance with the building code within such time as the building official, or designee, or the unsafe structures panel may determine to be reasonable for such completion. If the building or structure is not temporarily secured, or once served, not completed and brought into compliance with the building code within the reasonable periods allowed, such building or structure shall be demolished and removed from the premises.

(2) The building official, or designee, shall prepare a notice of violation. This written notice shall state in summary form:

(i) The nature of defects which constitute a violation of this section and shall prescribe the action to be taken to comply and the time within which compliance must be accomplished;

(ii) In such time not to exceed ten days to secure an open structure to the reasonable satisfaction of the building official, or designee, and 60 days to submit plans, 90 days to obtain permits and 120 days to complete and finalize the permit obtained. Failure to comply with any portion of the timeframe provided can result in the matter being set for hearing before the Unsafe Structure Panel;

(iii) This notice shall also state that the specific details concerning the violations can be obtained in writing

from the building official on request. In addition, this notice will explain the right of appeal of the decision of the building official, or designee, to the unsafe structures panel, in its appellate capacity and also advise that unless there is compliance with the directions of the building official, or designee, a case will be commenced before the unsafe structures after time for compliance has expired, or that the building official's order will be enforced.

(3) The notice of violation shall be affixed to the structure concerned.

(4) Within ten working days of posting the notice of violation, the building official, or designee, shall send the written notice of violation to the owner, in the same manner provided in above.

(5) In the event that the building or structure is not secured or brought into compliance with the requirements of the building code within the periods specified in the notice of violation, the building official, or designee, may schedule the case for hearing before the unsafe structures panel to secure an order for demolition of the building or structure or to obtain any other appropriate remedy.

(6) In the event that the building official, or designee, requests that the director of the building department or his/her designee schedule a hearing, or in the event that the owner or interested party files a timely appeal of the decision of the building official, the director of the building department or his/her designee shall issue a notice of hearing which shall be affixed to the property, mailed to the owner and interested party, in the same manner provided in subsection (g) above. Notice of the hearing shall be published in the same manner provided in subsection (g) above.

(7) If the property has not been secured or permits for repair obtained in the manner stipulated in the notice, the building official, or designee, may file an appropriate instrument and notice of pending lien in the public records in the manner provided in subsection (g) above. The city may seek collections of any money expended to rehouse occupants of a structure under this subsection pursuant to subsection (f)(2).

(8) Pre-hearing extension of time. Homestead exempt and/or owner-occupied residential properties may be allowed to request from the building official, prior to hearing before the unsafe structure panel, one extension of time from the original notice of violation compliance requirements. Extensions shall only be provided for those properties who have shown good cause, meaning submission of plans and active participation in the processing of the permits to repair the deficiencies. Extensions shall not apply to structures that meet criteria for immediate demolition. The extension may be no longer than 180 days in total. Governmental owned properties shall also be allowed to request extensions pursuant to this subsection. This subsection shall apply retroactively to all similarly situated properties.

(i) Public hearing—Unsafe structure panel.

(1) On the day established in the notice of public hearing the unsafe structures panel shall review all pertinent evidence and hear all testimony from the building official (or designee), the owner and other parties in interest and their respective witnesses.

(2) The unsafe structures panel may order repair, securing, and/or demolition of the structure upon application of the standards set forth in this article. The unsafe structures panel may modify, rescind, or uphold the decision of the building official as recited in the notice of violation. The unsafe structures panel shall modify or rescind a decision of the building official only upon a finding that the building official was in error in the

interpretation or application of the building code. The unsafe structures panel shall not exceed the time frames allowed for repair and completion of buildings and structures specifically set forth in this article, except where the work involved reasonably requires such additional time.

(3) A copy of the order shall be forwarded to the owner, and all interested parties by U.S. mail, and a copy thereof posted on the property.

(4) If the owner or interested party fails to comply with the order of the unsafe structures panel within the time stipulated therein and such order is to repair, complete or secure the building to make safe, then the building official, or designee, shall cause such building to be vacated, if occupied; and shall through his/her employees or through a contractor enforce the order of the unsafe structures panel or building official. Buildings shall be secured with concrete block or other materials of the same durability as determined by the building official. Swimming pools shall be secured by fencing or by using another approved method as determined by the building official. For failure to comply with the order of the unsafe structure panel, which includes requesting a timely extension of time under subsection 10-101(m), as applicable, the city shall have the authority to move forward with demolition of the property structure, if so ordered by the unsafe structure panel, as it has already been deemed unsafe and in need of immediate repair. The city shall follow the process set forth through subsection (5) below.

(5) If the order of the unsafe structures panel is to demolish the building or structure and to remove or salvage contents, debris and abandoned property from the premises, and the owner or those responsible shall have failed to comply with such order, then the building official, or designee, may do so. Swimming pools shall be demolished by removal of any stagnant water and any above ground parts of the structure, breaking open the bottom and filling with sand or clean fill level to the existing grade.

(j) Multi-unit structures.

(1) This subsection shall be applicable to all multi-unit structures. As used in this subsection, the term multi-unit structures means all townhouses and other structures which contain units divided by one or more common walls, where the structural integrity of any component unit depends upon the structural integrity of one or more other units in the same structure. In the event that the owner or other interested party fails to comply with any order of the unsafe structures panel in connection with any multi-unit structure, then in addition to any other right or remedy contained in this section, the city shall be authorized, but not required, to secure the structure in the manner set forth in this subsection. In addition, and not in derogation of the use of other methods contemplated by this section for enforcing the building code with respect to any structure, multi-unit structures may be secured by performing whatever work the building official may determine is reasonably necessary to preserve the structural integrity, watertightness, or safety of adjacent units or the surrounding community which work may include, but no b limited to roofing, windows, and electrical.

(2) The procedure for enforcement of this Code set forth above shall be in addition to, and not in derogation of, other procedures available to the building official pursuant to the building code. The provisions of this subsection are not intended to exonerate any owner or other interested party from compliance with the building code or any order of an unsafe structures panel.

(k) Recovery of cost.

(1) All costs incurred pursuant to any of the provisions of this section shall be paid by

the owner, interested party, or occupant of the premises on which the violation occurred.

(2) The building official, or designee shall file among their records an affidavit stating with fairness and accuracy the items of expense and the date of execution of actions authorized by this section.

(3) Any other employee, official or agency who incurs costs while executing any provision within this article shall create an affidavit stating with fairness and accuracy the items of expense and the date of execution of actions authorized by this section. That affidavit shall be given to the building official, or designee, responsible for the unsafe structure at issue and filed among his/her records for that property.

(4) The enforcing agency may institute a suit to recover such expenses against any liable person or may cause such expenses to be charged against the property on which the violation occurred as a lien or as a special assessment lien collectible according to established procedures.

(5) Any lien imposed pursuant to this article shall be a lien greater in dignity to all liens, excepting IRS tax liens.

(6) Liens created pursuant to this section may be discharged and satisfied by paying to the city the amount specified in the notice of lien, together with interest thereon from the date of the filing of the lien computed at the maximum statutory interest rate, together with the administrative costs, filing and recording fees and fees paid to file a satisfaction of the lien in the public records. When any such lien has been discharged, the city shall promptly cause evidence of the satisfaction and discharge of such lien to be recorded in the public records.

(7) The remedies and procedures for recovery of costs provided in this article shall be in addition to and not in derogation of other provided in the building code or otherwise provided by law.

(l) Unsafe structure panels. Unsafe structures panels are hereby created to conduct hearings as provided for under this section.

(1) *Composition*. Unsafe structures panel(s) shall consist of three members from the list of panel members provided for under subsection (2). A building department representative will serve as an ex-officio, non-voting member of each panel, to act as a liaison. The ex-officio member shall not count toward a quorum of the panel.

(2) *Appointment of members to the unsafe structure panel*. The appointment of unsafe structure panel members shall be done through a request for qualifications process or in the alternative, by agreement with Miami-Dade County, Florida and use of their vetted pool of hearing officers. The director of the building department shall not have any input into which members are designated to comprise a particular panel.

The following criteria shall be used to select member of the unsafe structure panel as part of the RFQ:

a. The unsafe structure panel shall consist of three members. The chair shall be required to be a Florida-licensed architect, engineer or licensed construction industry related contractor with five or more years experience.

b. The available unsafe structure panel member pool shall, if possible, include at least two persons who qualify for position of chair at any given time.

c. Panelists shall not be current employees of the city notwithstanding any other provision in the City Code and former city employees must be separated from the city for two or more years, having left in good standing.

d. Panelists shall not be involved in the construction trade as it pertains to active business in the city from the time of application through time as part of the unsafe structure panel pool.

e. All applicants will be required to provide a full financial history as part of the application process, including but not limited to sources of income and debt, as well as proof of certifications, educational background. In addition, all applicants must be able to certify that they have no prior criminal history and provide a list of any past code violations issued whether in the city or not with their outcome as it relates to personal or professional matters.

f. Applicants with certification(s) in the building related trades or licensed attorneys in the state shall be given preference to appointment to the panel pool.

g. The panel pool shall consist, as possible, of four general panelists and two chair panelists.

h. Payment for panelists shall be consistent or greater to that as provided for in Miami-Dade County Administrative Order No. 2-5, as amended.

i. Any panelist selected who fails to appear more than two times for a scheduled hearing in one calendar year shall be removed from the panel and shall not be reconsidered in future panel applications. Excused absences for emergency circumstances shall not apply.

j. Each procured panel pool shall be for two-year cycles.

k. Panelists must sign an affidavit attesting to having no conflict of interest in their service as an unsafe structure panelist and be in compliance with state and local ethics codes and shall participate in required yearly local ethics training.

Other criteria may be considered as relevant and necessary.

(3) *Organization of the unsafe structures panels.*

a. The director of the building department may utilize one or more unsafe structures panel(s) as needed to conduct hearings.

b. Quorum. Three unsafe structures panel members must be present to conduct a hearing or take any action, including a qualified chair.

c. A majority vote of unsafe structures panel members present and voting shall be sufficient to overrule, modify or affirm any action or decision of the building official or to take any action within the scope of the powers and duties of the panel.

d. No member of an unsafe structures panel shall sit as a voting member in any hearing on a matter in which he/she has a personal or financial interest.

e. The director of the city building department, or his/her designee, shall assist the unsafe structures panel as needed, but shall have no vote.

f. The director of the city building department or his/her designee may call and schedule unsafe structures hearings.

g. An audio or video record shall be kept of all unsafe structures hearings and all hearings shall be public.

h. All hearings shall be open to the public, and any person whose interest may be affected by the matter shall be given an opportunity to be heard in person, or through his/her attorney, or legally authorized representative.

i. Witnesses may be sworn and subpoenaed by the unsafe structures panel in a like manner as they are subpoenaed by the court or courts in Miami-Dade County.

j. The hearings shall be informal and need not be conducted according to technical rules relating to evidence and witnesses. Any relevant evidence shall be admitted if it is the type of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs regardless of the existence of any common law or statutory rules which might make improper the admission of such evidence over objection in civil actions.

k. Hearsay evidence may be used for the purpose of supplementing or explaining any direct evidence but shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.

l. The rules of privilege shall be effective to the same extent that they are now, or hereafter may be, recognized in civil actions; and irrelevant and unduly repetitious evidence shall be excluded.

m. The director of the city building department shall provide adequate and competent clerical and administrative personnel and such technical or scientific personnel as may be reasonably required by the unsafe structures panels for the proper performance of their duties, subject to budget limitations.

n. The director of the city building department shall provide a regular meeting place for the panel.

(4) *Duties, powers of the unsafe structures panels.* The unsafe structures panels and shall have the following duties, functions, powers and responsibilities:

a. Hear and determine appeals from actions and decisions of the building official pursuant to the provisions of this section.

b. Hear and review the application of the building official for the review of his or her action where his or her decision as indicated in a notice of violations has not been complied with.

c. Affirm, modify or reverse the decision of the building official upon appeal or on application for review.

d. In the event of judicial review of an unsafe structure panel order, the director of the city building department or his/her designee shall transmit the records with all exhibits, instruments, and papers of the proceedings to the reviewing authority if so requested.

e. The appealing party is responsible for the production of any transcript from the hearing at issue necessary for judicial review.

(5) *Duties of the city attorney.* The city attorney shall either be counsel to the unsafe structures panel or shall represent the city by presenting cases to the unsafe structures panel, but in no case shall the city attorney serve in both capacities.

(m) Post-hearing extension of time; amnesty program.

(1) Requests for extensions of time from unsafe structure panel orders. Any owner or interested party may seek an extension of the timeframes set forth in an order of the unsafe structures panel. Such request for a hearing to seek such extension must be in writing, directed to the unsafe structures panel clerk. The unsafe structures panel shall not be authorized to extend any deadline for

compliance, set forth in the order, unless the unsafe structures division of the building department, unsafe structure panel clerk receives the written request for extension prior to the deadline specified in the initial order. For example, in the event the unsafe structures panel order states that a permit must be obtained within a specified period, the request for extension of the deadline to obtain the permit must be received prior to the expiration of that specified period. If the same order provides a deadline for completion of the structure, the request for the extension for the deadline of completion must be received prior to the deadline for completion, provided that the applicant has complied with the permit deadline.

(2) To obtain an extension, the owner or interested party must demonstrate to the reasonable satisfaction of the unsafe structures panel that the structure that is the subject of the order is secure at the time the extension is sought and that the owner or applicant has made a good faith attempt to comply with the order which has been impeded by changed circumstances or other circumstances outside of the owner or applicant's control. As a further condition of the extension, the owner or interested party must submit in writing, together with the petition for an extension, a written timetable for compliance with the substantive provisions of the order and for completion of all necessary repairs. The unsafe structures panel shall not reconsider the order, limiting its consideration of the petition to deciding whether the grounds for an extension have been satisfied in the manner set forth in this subsection.

(3) Amnesty program for single-family residence or duplex properties and pilot program for commercial properties.

a. Any single-family residence or duplex properties currently in default of an order of the unsafe structure panel that was issued prior to April 15, 2022, and who has not already sought and obtained an extension of time or breach hearing, may request a one-time post-hearing extension of time or breach hearing before the unsafe structure panel if the following conditions are met:

1. Owner has made a good faith attempt to comply with the order; and
2. Owner has been impeded by changed circumstances or other circumstances outside of the owner's control; and
3. Owner has been an active participant in the process of legalizing or repairing the determined deficiencies; and
4. Owner provides, in writing, what has been done since the date of the unsafe structure panel order, a timetable for compliance of all required repairs and a Florida licensed architect or engineer has certified the safety of the structure with a letter provided to the city under seal; and
5. The date to appear before the unsafe structure panel does not insure the owner will be provided more time to repair the property structure and does not estop the city from recommending either repair or demolition of the property structure based on the facts and circumstances of the case.

b. Any new purchaser of a commercial property, who purchases a property that has an order of the unsafe structure panel requiring demolition of the property structure due to the prior owner's failure to comply with the required repair timelines provided, may request a breach hearing under the following circumstances:

1. The new purchaser shall have no familial, economic, business

or other related interests to any prior owner of the violating property. The sale must be an arm's length transaction. An affidavit under oath attesting to same must be provided along with the request for breach hearing; and

2. The new purchaser shall make the request for hearing, in writing, via email to the unsafe structure clerk; and

3. The new purchaser shall provide a full set of plans for the necessary scope of repairs to be reviewed by the unsafe structures section no later than 30 days before the hearing date; and

4. If a full set of plans are not provided and all other conditions are not met, the matter will be removed from the scheduled hearing agenda; and

5. This subsection shall apply retroactively to new purchasers prior to the passage of Ordinance No. 14307.

(n) Judicial review.

(1) Any owner or interested party aggrieved by a decision of the unsafe structures panel may seek judicial review of that decision in accordance with Rule 9.110(c) of the Florida Rules of Appellate Procedure. Accordingly, any order, requirement, decision, denial of a request for extension of time, or determination of the unsafe structures panel shall be reviewed by the filing of a notice of appeal in the circuit court appellate division of the Eleventh Judicial Circuit in and for Miami-Dade County, Florida, within 30 days of rendition of the order.

(2) The use of one method of enforcement shall not preclude the use of another method of enforcement including, but not limited to, legal actions filed with the Eleventh Judicial Circuit Court whether the actions are done in a consecutive or concurrent manner.

(o) Definitions.

Building or *structures* shall be synonymous.

Building code shall be the Florida Building Code, as amended from time to time.

Interested parties shall be defined as stated in chapter 10 of this Code.

All other definitions shall be defined as stated in chapter 10 of this Code or chapter 8 of the Miami-Dade County Code.
(Ord. No. 13295, § 2, 12-15-11; Ord. No. 13422, § 2, 12-12-13; Ord. No. 13580, § 2, 12-10-15; Ord. No. 13676, § 2, 4-27-17; Ord. No. 14085, § 2, 9-13-22; Ord. No. 14194, § 2, 7-27-23; Ord. No. 14208, § 2, 9-28-23; Ord. No. 14278, § 2, 4-25-24; Ord. No. 14307, § 2, 9-26-24; Ord. No. 14443, § 2, 2-12-26)

Sec. 10-102. Maintenance of vacant lots after demolition of structures.

(a) *Intent.* It is the intent of this section to regulate an improved or unimproved lot that has become vacant or the ground has been left in disarray or excavated due to demolition of a structure(s) on the lot and to implement regulations to:

(1) Ensure the lot is rehabilitated in a park-like appearance;

(2) Reduce neighborhood blight and its negative effects by regulating the aesthetic character of vacant lots, formerly improved lots; or

(3) Ensure the lot does not have portions of land which have been excavated and not returned to a uniform and level grade after a demolition.

(b) *Definitions.* For the purpose of this section, the following words and phrases shall have the meaning respectively ascribed to them by this subsection:

(1) *Vacant lot:* As defined in City Code section 22-114, as amended, a lot, tract, or

other parcel of land in the city that does not have a structure or building on the land.

(2) *Structure:* As defined in City Code section 22-114, as amended, a structure or building as defined by the Florida Building Code, as amended.

(3) *Tree:* As defined in City Code section 17-2, as amended, any self-supporting woody plant or palm which usually has a single main axis or trunk, with a minimum trunk diameter at breast height of two inches and a minimum overall height of 12 feet. This definition excludes plants which are defined as shrubs, hedges, vines, or ground covers. Palms shall have a minimum height of 14 feet in order to be classified as a tree.

(4) *Lot:* A parcel of land; a portion of land; property.

(c) *Minimum requirements.* When a structure has been demolished and real property has become a vacant lot or a portion of a lot has been left in disarray or excavated because of a demolition, the owner of the lot shall, at a minimum:

(1) Remove all debris resulting from the demolition of the structure, along with any other garbage from the lot.

(2) Refill and grade the lot in accordance with subsection (d), and lay down sod or hydroseed on any exposed dirt on the lot. Nothing in this section shall be construed to require the removal of trees from the lot.

(3) If the owner, fails to comply with the provisions of this section, the city, may issue a notice of violation. Moreover, after proper notice to the owner of record as listed in the Miami-Dade tax roll, certified mail return receipt requested, the city may refill, grade, and sod the lot and impose a lien on the property for the work done.

(d) *Fill requirements.* The re-filling, grading, and sodding of the lot shall comply with the Florida Building Code, as amended.

(e) *Enforcement provision.* This section may be enforced in accordance with chapter 2, article X, Code enforcement. Nothing in this section precludes the city from enforcing this section by any and all means provided by law, including but not limited to, any actions in the circuit court.

(f) *Special assessment provision.*

(1) Under the lawful authority granted to municipalities pursuant to F.S. chs. 170 and 166, the city hereby authorizes the levy and collection of special assessments to the fund the costs of any work done by the city to enforce compliance with the requirements of this section.

(2) Any work undertaken by the city under this section shall be treated as special assessment liens against the subject real property, and until fully paid and discharged, shall remain liens equal in rank and dignity with the lien of ad valorem taxes, and shall be superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved. Interest at the rate of 12 percent per annum shall accrue to such delinquent accounts. Such liens shall be enforced by any of the methods provided in F.S. ch. 85, as amended, or, in the alternative, foreclosure proceedings may be instituted and prosecuted under the provisions applicable to practice, pleading and procedure for the foreclosure of mortgages on real estate set forth in state statutes, or may be foreclosed pursuant to F.S. ch. 173, as amended, or the collection and enforcement of payment thereof may be accomplished by any other method authorized by law. The property owner shall pay all costs of collection, including reasonable attorney fees, incurred in the collection of fees, service charges, penalties and liens imposed by virtue of this section. Additionally, the city may elect to utilize the uniform method for the levy, collection and enforcement of this non-ad valorem assessment pursuant to F.S. § 197.3632. as may be amended from time to time.

(g) *[Best efforts.]* The city, when at all possible, will use best efforts to comply with the provisions of this section when demolishing property within the city, regardless of ownership.
(Ord. No. 13310, § 2, 2-9-12)

Sec. 10-103. Maintenance of lots or property containing excavated construction sites or excavated sites in considerable non-compliance with the Florida Building Code.

(a) *Intent.* It is the intent of this section to regulate property containing excavated construction sites or excavated sites that have become a nuisance or a danger to the community and are in considerable non-compliance with the Florida Building Code, pursuant to the building official. This section seeks to implement regulations to:

(1) Reduce neighborhood blight and its negative effects by regulating the aesthetic character of lots or property containing excavated construction sites or excavated sites; or

(2) Ensure the lots or property containing excavated construction sites or excavated sites do not have portions of land which have been excavated are returned to a uniform and level grade.

(b) *Definitions.* For the purpose of this section, the following words and phrases shall have the meaning respectively ascribed to them by this subsection:

(1) *Construction site:* A lot or site on which a structure is being built or constructed.

(2) *Excavation; excavated site:* A site that has been unearthed; a site made hollow by removing the inner part; a site which has a hole or cavity in or formed into a hollow, as by digging.

(3) *Excavated construction site:* A construction site which has an excavation or hole.

(4) *Lot:* A parcel of land; a portion of land; property.

(c) *Minimum requirements.* When an excavated construction site or an excavated site has been left derelict and in disarray for more than three months, to the point that the property is deteriorating and poses a danger to the community, the building official shall make a determination as to whether the property is in substantial non-compliance with the Florida Building Code and Chapter 8 of the Miami-Dade County Code and at such time, order the property owner, via a notice of violation, that such violations must be corrected within the time set on the notice.

(1) If the property owner refuses to correct the violations on the property, as stated in subsection (d) below or commence construction on the property, the building official shall be authorized to return the property to a uniform and level grade.

(2) The building official shall order the property to be refilled and graded in accordance with subsection (d) below. Moreover, the building official shall order sod or hydroseed on any exposed dirt on the property.

(3) Nothing in this section shall be construed to require the removal of trees from the lot. Nothing in this section shall prevent the property owner from performing this re-filling on his/her own.

(d) *Fill requirements.* The re-filling, grading, and sodding of the lot shall comply with the Florida Building Code, as amended.

(e) *Enforcement provision.* This section may be enforced in accordance with chapter 2, article X, Code enforcement. Nothing in this section precludes the city from enforcing this section by any and all means provided by law, including but not limited to, any actions in the circuit court.

(f) *Special assessment provision.*

(1) Under the lawful authority granted to municipalities pursuant to F.S. chs. 170 and 166, the city hereby authorizes the levy and collection of special assessments to the fund the costs of any work done by the city to enforce compliance with the requirements of this section.

(2) Any work undertaken by the city under this section shall be treated as special assessment liens against the subject real property, and until fully paid and discharged, shall remain liens equal in rank and dignity with the lien of ad valorem taxes, and shall be superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved. Interest at the rate of 12 percent per annum shall accrue to such delinquent accounts. Such liens shall be enforced by any of the methods provided in F.S. ch. 85, as amended, or, in the alternative, foreclosure proceedings may be instituted and prosecuted under the provisions applicable to practice, pleading and procedure for the foreclosure of mortgages on real estate set forth in state statutes, or may be foreclosed pursuant to F.S. ch. 173, as amended, or the collection and enforcement of payment thereof may be accomplished by any other method authorized by law. The property owner shall pay all costs of collection, including reasonable attorney fees, incurred in the collection of fees, service charges, penalties and liens imposed by virtue of this section. Additionally, the city may elect to utilize the uniform method for the levy, collection and enforcement of this non-ad valorem assessment pursuant to F.S. § 197.3632. as may be amended from time to time.

(Ord. No. 13312, § 2, 2-23-12)

Sec. 10-104. Vacant lot fencing.

(a) *Intent.* It is the intent of this section to regulate an improved or unimproved lot that has become vacant to reduce neighborhood blight and its negative effects by regulating the fencing of the lot while allowing for necessary enforcement.

(b) *Definitions.* For the purpose of this section, the following words and phrases shall have the meaning respectively ascribed to them by this subsection:

(1) *Lot:* A lot is any individual lot, tract or parcel of land, intended as a single building site or unit, having an assigned number or numbers, letters or letters, or other name through which it may be identified for development purposes. A lot may also be any combination of lots, tracts, parcels or other areas of land established by acceptable legal joinder, delineated by a closed boundary and assigned a number, letter or other name through which it may be identified, intended as a single unit for development purposes.

(2) *Lot area:* Lot area shall be the area withing the lot property lines, excluding any portions of street rights-of-way or other required dedications.

(3) *Vacant lot:* As defined in City Code section 22-114, as amended, a lot, tract, or other parcel of land in the city that does not have a structure or building on the land.

(c) *Fences and "No Trespassing" signage required.*

(1) All vacant lots may be enclosed with a six-foot high fence without screening notwithstanding any conflicting provision in the City Code and/or Miami 21 Code, the zoning ordinance of the City of Miami, Florida, as amended. Except, any vacant lots located within a historic district must comply with the requirements of chapter 23 of the City Code. The vacant lots must be visible from and including adjacent rights-of-way, alleys and frontage. All such fences shall be erected with a permit.

(2) "No Trespassing" signs shall be posted on all vacant lots.

(3) The property owner shall:

a. Keep the lot clear of any and all material, overgrowth, or any other such visual or public nuisance debris; and

b. Sign a consent at the time of permitting for the fence installation to allow the city to enter upon the lot, locked or unlocked, should the lot

become overgrown in violation of the City Code. The city shall provide 15 days notice via US Mail and posting to the address provided on the consent as well as the mailing address provided to the Miami-Dade County Property Appraiser prior to entering the lot; and

c. Sign a consent at the time of permitting for the fence installation allowing the Miami Police Department to enforce the trespassing penalties described in F.S. § 810.08; and

d. Register the lot with the city as a vacant lot pursuant to section 22-115; and

e. Vacant lot fence permits shall be issued for a period of one year and may be renewed; and

f. The building official or their designee may revoke any active vacant lot fence permit if any construction and/or development is sought on the property and the fence does not comport to the requirements of subsection 10-23(7) of the City Code.

g. The fence, if any, shall be removed upon the completion of any construction and/or development on the lot.

h. Failure to maintain the vacant lot registration may lead to the revocation of the vacant lot fence permit.

(d) *Enhanced penalties; appeals.*

(1) If the owner or agent of any property within the city fails to maintain a vacant lot fence as set forth herein it shall be a violation and will cause the city to remove the derelict fence and vacant fence permit shall be revoked. The city shall keep an accurate accounting of the costs thereof, whereupon the amount of such costs and the interest thereon shall constitute and is hereby imposed as a lien against the subject property with equal rank and dignity of any other special assessment liens.

(2) Any violation of the provisions of this article may be cited pursuant to chapter 2, article X of the City Code and shall result in a civil citation of $500.00 and/or a notice of violation to be brought before the code enforcement board.

(3) Any property for which the city is required to enter onto and remove overgrowth, materials, or other debris shall be subject to a lien against the property with equal rank and dignity of any other special assessment liens and enforced as provided for in section 22-118 of the City Code.

(4) These penalties shall not preclude any other remedies available at law or in equity, including but not limited to, injunctive relief in the circuit court and special assessments for fencing the property or other work done by the city.

(5) An aggrieved party may appeal both the fees and costs imposed under this section to a court of competent jurisdiction in accordance with the Florida Rules of Appellate Procedure.

(Ord. No. 14229, § 2, 11-16-23)

Secs. 10-105—10-110. Reserved.

ARTICLE VII. SECURITY SCREENS AND SHUTTERS

Sec. 10-111. Transparency of windows in Coconut Grove, the Downtown Development District and the Neighborhood Revitalization District 1.

Applicability: This article shall apply to commercial buildings in the following areas: the Coconut Grove Central Commercial District, described pursuant to chapter 35, article V, as amended, and the Coconut Grove Business Improvement District, more particularly described in Resolution No. 08-0455 adopted July 24, 2008, and later confirmed in Resolution No. 09-0076 adopted February 12, 2009 (collectively, "Coconut Grove"), the boundaries of the Downtown Development District, described pursuant to section

14-27 of the City Code, as amended, more particularly described in Ordinance No. 12307, adopted December 12, 2002, and the boundaries of the Neighborhood Revitalization District 1, more particularly described in Ordinance No. 13561, adopted September 24, 2015, all incorporated by reference.
(Ord. No. 13412, § 2, 10-10-13; Ord. No. 13454, § 2, 5-8-14; Ord. No. 13555, § 2, 9-24-15)

Sec. 10-112. Definitions.

Clear glass means glass in windows, doors, and display windows shall be transparent to insure a safe, pedestrian-oriented environment, and to maintain the historic charm of the areas. Glass shall be clear in appearance at the street level.

Decorative shutter is a usually lightweight louvered or flush wood or non-wood frame in the form of a thin door located at each side of any opening of a building, such as a window or door. Most decorative shutters are fastened or painted onto a wall as a decorative device.

Reflective surfaces. Highly reflective surfaces are those surfaces that include reflective glass and mirrors.

Security screens and shutters shall be defined as any exterior barrier or covering (made of any material, including but not limited to, aluminum, metal, steel, plastic, etc.) which may cover any opening on the ground floor of a building such as a window or door. Security screens and shutters may include, but are not limited to, hurricane shutters or curtains, rolling or retracting metal flexible shutters, and other security devices. This definition applies to non-decorative shutters as distinguished from decorative shutters above.

Other types of security screens and shutters are as follows:

(1) Permanent security screens and shutters are those which remain affixed to the building and are not of a temporary nature.

(2) Temporary security screens and shutters are those which are affixed to the building for a limited duration.

(3) Opaque security screens and shutters are not transparent or translucent and are impenetrable to light.

(4) Transparent security screens and shutters are those which you can see through and are 70 percent open pursuant to the Miami 21 Zoning Ordinance, as amended.

(Ord. No. 13412, § 2, 10-10-13; Ord. No. 13454, § 2, 5-8-14)

Sec. 10-113. Security screens and shutters not allowed.

(a) Permanent security screens and shutters are not allowed pursuant to this article, except as described below:

(1) Hurricane shutters or curtains may be installed temporarily when there is a tropical storm warning, hurricane warning, hurricane, or other similar large-scale weather event provided that said hurricane curtains are removed no later than 72 hours after the dissipation of said weather condition.

(2) Security screens and shutters may be allowed when remodeling or repairing windows or entrances damaged by an accident. The length of time for the remodeling or repair shall be no longer than one month or the length of time described in the building permit. These would be considered temporary security screens and shutters.

(3) Permanent security screens and shutters may be allowed for an outdoor use, in limited circumstances, in conjunction with a cafe, restaurant, terrace, porch, or recessed retail area or alcove. Said square-footage of outdoor private property area may be screened, provided it is not opaque, using ornate and decorative permanent security screens and shutters or transparent security screens and shutters, as defined above, pursuant to review by the planning department.

(b) Permanent security screens and shutters shall not be permitted on the exterior of any building. They may be located in the interior of a building only if they are transparent security screens and shutters.

(c) Opaque security screens and shutters are not permitted on the exterior of any building.

(d) Transparent security screens and shutters. Only transparent security screens and shutters in compliance with the Miami 21 Zoning Ordinance are permitted on the exterior of any building.
(Ord. No. 13412, § 2, 10-10-13; Ord. No. 13454, § 2, 5-8-14)

Editor's note—Ord. No. 13454, § 2, adopted May 8, 2014, changed the title of section 10-113 from "Permanent security screens and shutters not allowed" to "Security screens and shutters not allowed." The historical notation has been preserved for reference purposes.

Sec. 10-114. Compliance with this article in Coconut Grove.

(a) All properties with opaque security screens and shutters not in compliance with this article shall come into compliance on or before October 15, 2015.

(b) All properties with transparent security screens and shutters not in compliance with this article shall come into compliance on or before October 15, 2016.

(c) However, any issuance of a building permit for the exterior remodeling of a building or replacement of windows will trigger immediate compliance with this article.

(d) The city shall not issue a building permit for any new construction which uses permanent security screens and shutters to comply with wind loads and impact tests, as defined and described in Chapter 16 of the Florida Building Code, as amended.

(e) Once nonconforming security screens and shutters are removed, the use of highly reflective surfaces, including reflective glass and mirrors, is prohibited on the ground floor. Windows shall be clear glass and allow only those coverings or percentage of window covering as approved in the Miami 21 Zoning Ordinance, as amended.

(f) All nonconforming security screens and shutters, shall be subject to enforcement via chapter 2, article X, entitled "Code enforcement" and any other remedy as provided by law.
(Ord. No. 13412, § 2, 10-10-13; Ord. No. 13454, § 2, 5-8-14)

Editor's note—Ord. No. 13454, § 2, adopted May 8, 2014, changed the title of section 10-114 from "Compliance with this article" to "Compliance with this article in Coconut Grove." The historical notation has been preserved for reference purposes.

Sec. 10-115. Compliance with this article in the Downtown Development District.

(a) All properties with opaque security screens and shutters not in compliance with this article shall come into compliance on or before May 1, 2016.

(b) The city shall not issue a building permit for new construction which uses permanent security screens and shutters to comply with wind loads and impact tests, as defined and described in Chapter 16 of the Florida Building Code, as amended.

(c) However, any issuance of a building permit for the exterior remodeling of a building or replacement of windows will trigger immediate compliance with this article.

(d) Once nonconforming security screens and shutters are removed, the use of highly reflective surfaces, including reflective glass and mirrors, is prohibited on the ground floor. Windows shall be clear glass and allow only those coverings or percentage of window covering as approved in the Miami 21 Zoning Ordinance, as amended.

(e) Legally installed transparent security screens and shutters as of the date of this ordinance located in the Downtown Development District that do not otherwise comply with the Miami 21 Zoning Ordinance are exempt from enforcement for failure to comply with this article. All other nonconforming security screens and shutters, shall be subject to enforcement via chapter 2, article X, entitled "Code enforcement" and any other remedy as provided by law.
(Ord. No. 13454, § 2, 5-8-14)

Sec. 10-116. Compliance with this article in the Neighborhood Revitalization District 1.

(a) Any issuance of a building permit for exterior remodeling of a building that exceeds 50 percent of the facades along the frontage of the existing building or replacement of windows will trigger immediate compliance with this article.

(b) The city shall not issue a building permit for any new construction which uses permanent security screens and shutters to comply with wind loads and impact tests, as defined and described in Chapter 16 of the Florida Building Code, as amended.

(c) Once nonconforming security screens and shutters are removed, the use of highly reflective surfaces, including reflective glass and mirrors, is prohibited on the ground floor. Windows shall be clear glass and allow only those coverings or percentage of window covering as approved in the Miami 21 Code, the zoning ordinance, as amended.

(d) Legally installed transparent security screens and shutters as of the date of the ordinance from which this section derives located in the Neighborhood Revitalization District 1 that do not otherwise comply with the Miami 21 Code, the zoning ordinance, are exempt from enforcement for failure to comply with this article. All other nonconforming security screens and shutters, shall be subject to enforcement via chapter 2, article X, entitled "Code Enforcement" and any other remedy as provided by law.
(Ord. No. 13555, § 2, 9-24-15)

Secs. 10-117—10-119. Reserved.

ARTICLE VIII. SQUATTERS

Sec. 10-120. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purpose of this article, have the meanings indicated in this section:

Dwelling means a building or structure of any kind, including any attached porch, whether such building or structure is temporary or permanent, mobile or immobile, which has a roof over it and is designed to be occupied by people lodging therein at night, together with the curtilage thereof.

Lessee is defined to include the lessee, any sublessee, or any other legal occupant of the property.

Owner is defined as the person(s), legal entity, or other party having any legal ownership interest in real property, including but not limited to, owners identified on the blighted, unsecured or abandoned structures registration form; or a purchaser, devisee, lessee, fiduciary, or holder of an unrecorded deed. This term shall not apply to the city.

Property is defined as any "structure" or "dwelling" as defined by this section of the City Code.

Squatting is defined as the occupation of private property, a structure, or a dwelling without authorization from the owner or lessee.

Squatters are defined as occupants of private property, a structure, or a dwelling without authorization from the owner or lessee.

Structure means a building of any kind, either temporary or permanent, which has a roof or partial roof over it, together with the curtilage thereof.
(Ord. No. 13479, § 2, 9-29-14)

Sec. 10-121. Squatting prohibited.

Squatting is a public nuisance and is strictly prohibited in the city.
(Ord. No. 13479, § 2, 9-29-14)

Sec. 10-122. Action to remove squatters.

A property owner or lessee is required to take all lawful measures to prevent or remove squatters from their property.
(Ord. No. 13479, § 2, 9-29-14)

Sec. 10-123. Penalties.

Any violation of the provisions of this section may be cited pursuant to chapter 2, article X of the City Code and shall result in a fine of $500.00 for each day the violation remains

uncured. These penalties shall not preclude any other remedies available at law or in equity, including, injunctive relief in the circuit court.
(Ord. No. 13479, § 2, 9-29-14)

Sec. 10-124. Notice and hearing.

The city, through its code enforcement or police personnel, shall post a notice at the property indicating its intent to remove squatters and secure the property at least five days in advance of any such action. The city shall also make reasonable efforts to separately notify the property owner or lessee via certified and regular mail. The city may provide shorter notice, or act immediately without prior notice, where warranted by an emergency, such as a danger to the occupants or threat to public safety. Any appeal of the notice must be received by the city within three days of posting. The failure to appeal constitutes an admission that the occupants are squatters and an agreement to the remedy of removal. If an appeal is timely received, the city shall set an administrative hearing before a special master, and the matter shall be heard on an expedited basis prior to the removal of the occupants, unless such prior removal is warranted by an emergency, such as a danger to the occupants (unsafe structure or dwelling) or a threat to public safety and welfare, in which event the hearing shall be held on an expedited basis following the removal.
(Ord. No. 13479, § 2, 9-29-14)

Sec. 10-125. Removal of squatters and special assessment lien for costs of removal.

The city is authorized to remove squatters from private property and to secure the property. The property owner or lessee shall pay the city an administrative fee in the amount of $500.00 for the expenses incurred in removing the squatters and securing the property. If the property owner or lessee does not pay said fee within 30 days of the date the city sends an invoice, then the city may lien the property with such fee. The lien created shall be considered a special assessment lien that may be recorded in the public records of Miami-Dade County. The lien shall accrue interest at the maximum legal rate allowed by law from the date of the city's invoice until the costs and administrative fee are paid. The city may foreclose on such lien pursuant to section 2-827 of this City Code. Such lien shall have equal dignity with a tax lien.
(Ord. No. 13479, § 2, 9-29-14)

Sec. 10-126. Presumption.

Squatting may be presumed where the occupant of the property is unable to produce a written document, such as a lease, license, or other written proof of authorization from the property owner or lessee, demonstrating that the occupant has permission to be on the property. Squatting may also be presumed where a property is listed on the vacant, blighted, unsecured or abandoned structure registry pursuant to section 10-63 and 10-64 of the City Code and yet is occupied. Such presumptions may be rebutted if the occupant provides competent, substantial evidence demonstrating authorization to occupy the property. The presumptions stated herein are not the exclusive method for determining whether squatting is occurring on a specific property.
(Ord. No. 13479, § 2, 9-29-14)

Sec. 10-127. Other remedies.

The remedies referenced in this division are cumulative with other available remedies pursuant to state law, including but not limited to an arrest and prosecution pursuant to criminal statutes, civil remedies, and fines, and are not exclusive. The city may remove trespassers from a property pursuant to state laws, including in cases where a lawful trespass warning has been provided and the occupants refuse to vacate the property.
(Ord. No. 13479, § 2, 9-29-14)

Sec. 10-128. Liability.

Law enforcement officers and code enforcement officers, as well as city staff and agents, are immune from civil or criminal liability for actions taken to remove squatters and secure property pursuant to the authority provided herein.
(Ord. No. 13479, § 2, 9-29-14)

ARTICLE IX. CONTRACTOR CODE OF ETHICS; EMERGENCY PLANS FOR CERTAIN BUILDINGS; CERTAIN PERMIT REQUIREMENTS, ENVIRONMENTAL VIOLATIONS; SECURING OF SITES IN EMERGENCIES*

Sec. 10-129. Minimum requirements for contractors.

(a) Prior to the issuance of a building permit for a structure to be built, constructed, or demolished, except for city unsafe structure demolitions, the contractor for such construction or demolition shall, prior to the commencement of any work, sign a contractor's code of ethics which shall be affixed to the building permit and shall read in substantially the attached form:

(1) I will be fair, honest, impartial, respectful and professional, and act in good faith in all my business relationships with my clients and the public, including employees, subcontractors and suppliers.

(2) I will always act in the interests of the client unless doing so violates an ordinance, statute or this code of ethics.

(3) I will not discriminate in any business activities on the basis of race, national origin, religion, gender, sexual orientation, familial status or handicap, and will comply with all federal, state and local laws concerning discrimination and fair housing.

(4) I will be truthful regarding my training, experience, qualifications and services.

(5) I will be truthful regarding my licenses and certifications, and will provide documentation upon request.

(6) I will be truthful regarding my bonding and insurance coverage.

(7) I will accept only assignments and projects for which my skills and licensing are commensurate.

(8) I will uphold and comply with all applicable statute, laws, ordinances, codes, and professional licensing requirements of the jurisdiction in which I conduct business, especially those related to safety.

(b) For any lot or site on which a structure is being built, constructed, or demolished, except for city unsafe structure demolitions, the contractor for such construction or demolition, prior to the commencement of any work, shall provide the following:

A posted notice, not to exceed four square feet, attached to a temporary construction fence, or staked into the ground, and visible from the public right-of-way, at a minimum 168-point type that shall read in substantially the attached form:

THIS IS AN ACTIVE CONSTRUCTION SITE. THE CONTRACTOR IS [insert contractor]. FOR ANY COMPLAINTS OR CONCERNS PLEASE CALL [insert telephone number] OR E-MAIL [insert e-mail address].

(1) A contractor may incorporate this required language into an already existing sign at the lot or site provided the requirements above are followed.

(2) The contractor, if a corporate entity, shall provide its registered name, and not a fictitious name on the notice.

(3) The telephone number provided must be active and answered by a live person from 9:00 a.m. to 5:00 p.m. on weekdays, or at any time during active construction activity, whichever is greater.

(4) The e-mail address provided must be active and all complaints or concerns regarding the site acknowledged within 24 hours of receipt.

(5) Enforcement of this section shall be as proscribed by chapter 2, article X, Code

*__Editor's note—__Ord. No. 14279, § 2, adopted May 9, 2024, repealed and reenacted article IX in its entirety to read as herein set out. Formerly, article IX, sections 10-129—10-134 pertained to fence requirements for Miami City Commission District 5, and derived from Ord. No. 13637, § 2, adopted October 13, 2016, and Ord. No. 13983, § 2, adopted March 25, 2021.

enforcement or by any other remedies as provided by law. Once form of enforcement shall not preclude another.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-130. Emergency plans and emergency preparedness measures required for certain buildings.

(a) For purposes of this section, the term "facility" shall mean community residential homes licensed under F.S. ch. 419, assisted living facilities licensed under F.S. ch. 429, and nursing homes licensed under F.S. ch. 440, which caterer to the elderly.

(b) Any facilities located in the city shall prepare and annually update a comprehensive emergency management plan ("plan"). At a minimum, the plan must provide for components that address emergency evacuation transportation; adequate shelter arrangements; post-disaster activities, including provisions for emergency power generators with sufficient capacity to power the facility's fixed or portable heating, ventilation and air conditioning ("HVAC") system in order to maintain an ambient temperature of 81 degrees or less in one or more designated rooms for a period of a minimum of 96 hours in the event of the loss of electrical power after the foreseeable disaster passes; fuel to run the generator(s) for a minimum of 72 hours, whether stored entirely on site or provided for by periodic deliveries contracted for in advance of the start of hurricane season each year; bottled or potable water; food when the facility provides food to its residents on a daily basis in the normal course of the facility's operations; staffing; and when the facility provides custodial care, medical, or assisted living services, it shall provide for individual identification of residents, transfer of records, and communication with families (subject to residents' written consent and controlling regulations ((e.g. HIPAA)). The plan is subject to review and approval by the city's emergency manager which shall not be unreasonably withheld. During the review of the plan, the emergency manager will complete his or her review within 60 days and either approve the plan or advise the facility of necessary revisions.

(c) Any existing facility shall comply with the provisions of this section within 90 days of the effective date of the ordinance from which this section derives. Commercially reasonable efforts to retrofit existing facilities shall be made. Notwithstanding the foregoing, if it is not practicable or feasible to install the required generator(s) on-site of an existing facility, then the operator may contract with a third-party vendor for a portable generator(s) in the event of a foreseeable disaster. The foregoing provision for the installation and/or placement of the temporary and/or permanent generator(s) are subject to approval by all appropriate governmental agencies and/or departments.

(d) After the effective date of this section, any new facility shall not receive a certificate of use or a temporary certificate of use until the provisions of this section have been satisfied.

(e) Compliance with these requirements for such facilities shall be mandatory.

(f) Facilities shall be equipped with generators that are able to power essential services as set forth in subsection (a), including but not limited to, elevators, lights, emergency alarms, and air conditioning ("A.C.") in one or more designated room(s) within the facility. Designated room(s) means a public, common, or private space which can safely and lawfully house residents in an appropriate fashion pre- and post-foreseeable disaster.

(g) Notwithstanding any requirement mentioned herein, facility staff are to be on site within 24 hours of a foreseeable disaster, or as soon as safely possible, unless they are required to remain at the facility. This does not negate the requirement to have staff on site and available to run the required generator(s) and other life safety necessities.

(h) If the facility requires additional time to process and submit all the requested information above, the reservation or application must be renewed for an additional 180 days. If the process is not completed within the two 180-day

periods provided above, the reservation or application will expire and a new reservation or application cannot be processed on that property for 30 days.

(i) Such review costs shall be as stated by the City Code, as amended.

(j) A violation of this section may be enforced pursuant to the provisions proscribed in chapter 2, article X of the City Code, and any other remedies as provided by law, including but not limited to, an action for injunctive relief in the circuit court. The use of one remedy shall not preclude the use of another.

(1) If the violator is found to have violated this section, the code enforcement board may impose a fines as proscribed in section 2-817 of the City Code and such fines shall continue to accrue so long as the violation continues to exist on the property.

(2) The code enforcement board is authorized to make a finding of irreparable/irreversible harm pursuant to chapter 2, article X and assess a one-time fine as allowed by law.

(3) A property in violation may also be subject to losing its certificate of use and/or business tax receipt pursuant to sections 2-211, 31-48, 31-49 of the City Code, as amended.

(Ord. No. 14279, § 2, 5-9-24)

Sec. 10-131. Failure to acquire required permit(s); securing of constructions sites when under emergency weather warning(s) or watch(es); environmental violations; stop work order; penalties.

(a) *Stop work order.* A stop work order shall be issued by the building official when the building official or designee or a city department director or designee recommends same based upon violations of the City Code, the Miami 21 Code, or any other law. This may include, but is not limited to, work without a permit, work done contrary to approved plans, and work that is being conducted in a dangerous or unsafe manner.

(b) *City permit holders.*

(1) It is a condition of every permit issued by the city that the permit site be maintained free from any violations of the City Code.

(2) All city permit holders are required to secure their construction sites when an emergency warning or watch as is relates to weather phenomena or any other warning or watch for which an unsecured construction site could become detrimental to the health, safety, and welfare of the community has been declared affecting the city.

(3) All city permit holders are required to secure the construction sites and surrounding areas as required by the department of resilience and public works from actions including, but not limited to, soil erosion, discharge of water or sediments into the storm drains or waterways, discharge of waste water from excavations into the storm drains or waterways, and discharge of oils or oil compounds into the storm drains or waterways.

(c) *Penalties.* Violator(s) are subject to any or all of the following:

(1) A stop work order shall be issued by the building official until such time as the violation has been remedied.

(2) Enforcement pursuant to chapter 2, article X of the City Code wherein each violation shall carry with it a ticketed fine of up to $500.00, or as determined by the city manager, plus costs as determined by the city manager for each day the permitted property is in violation and/or may also be issued a notice of violation pursuant to chapter 2, article X of the City Code to be assess per diem fines and an irreparable/irreversible harm fine for such violation(s).

(3) No permit application will be approved unless the applicant and/or owner have no open cases or pending fines, debts, or

delinquencies related to City Code violations unless the open cases will be cured by the provided plans submitted for permit.

(4) Enforcement by one method does not preclude enforcement by any other means allowable by law.

(5) Exemption. Governmental departments, agencies, or entities are exempt from this section; however, the exemption shall not apply to any independent contractor or vendor working on their behalf.

(Ord. No. 14279, § 2, 5-9-24)

Secs. 10-132—10-134. Reserved.

ARTICLE X. MICROWAVE PATH

Sec. 10-135. Title.

This article shall be known and may be cited as the City of Miami's ("city") microwave path ordinance.

(Ord. No. 13746, § 2, 2-22-18)

Sec. 10-136. Intent.

(a) It is the intent of this article to ensure the uninterrupted operation of the city's public safety services, Miami Police Department ("MPD"), fire-rescue department ("fire-rescue"), other agency's related personnel, and county operational telecommunications networks by requiring that persons or entities constructing or erecting structures in the city do so in a manner which does not interfere with the city's telecommunications networks, provide an approved remedy, or provide the appropriate facilities necessary to eliminate such interruption.

(b) The city's telecommunications networks are essential to the health, safety, and welfare of the city as it provides communications for law enforcement activities, emergency management, fire suppression, carrying on the business of government, and communications in time of hurricanes and other disasters.

(Ord. No. 13746, § 2, 2-22-18)

Sec. 10-137. Procedure.

(a) To ensure compliance with this section, any person, entity, or designee for all new buildings or structures 60 feet or higher or any existing buildings or structures 60 feet or higher that undergo any modification that encompasses 25 percent or more of its square footage shall be responsible for supplying a microwave path study to the city's general services administration communications division ("GSA") during the earliest application phase (i.e. the first land development or building permit to be applied for and processed, as applicable) of the project.

(b) The city's GSA will provide a determination as to whether a proposed building or structure will interfere with the city's microwave path. Such determination will be made depending on the height of the building or structure and the distance the proposed building or structure is from the microwave path and/or radio site.

(c) Should the city's GSA identify a building or structure that does not conform with the above criteria for a microwave path study and has due cause to believe that said new building or structure will potentially impact the city's microwave path or system, the city shall have the sole discretion to request the owner/applicant/designee to provide a microwave path study during the application phase of the project.

(d) The city's microwave path, graphically described in Exhibit "A," attached and incorporated, as may be amended from time to time, defines and informs building permit applicants of the buildings or structures covered by this section.

(Ord. No. 13746, § 2, 2-22-18)

Note—Exhibit A is not set out at length herein, but may be found on file in the office of the city clerk.

Sec. 10-138. Microwave path study.

The microwave path study shall include (1) the proximity of the new construction to the city's microwave path or radio site; (2) a tangential distance to the nearest microwave segment with a diagram delineating the locations of the new construction and of said closest microwave segment; and (3) calculations for the probability of interruption to the system. The microwave path

study shall be certified by an electronic engineer who is a holder of a State of Florida Professional Engineer license.

(1) In the case where the city's radio communications liaison ("RCL") agrees to the microwave path study's findings of non-impact, the city shall proceed with the application and permitting process and grant approval of the land development or building permit, as applicable, subject to compliance with all other laws and regulations.

(2) If the microwave path study's findings indicate that there is an interruption or blockage of the microwave path, corrective action by the owner/applicant/designee will be required to assure microwave system reliability is retained. This shall include interruptions that are determined despite a non-impact result from the microwave path study.

(Ord. No. 13746, § 2, 2-22-18)

Sec. 10-139. Remedies.

Proposed remedy provisions (remedies for interruption or blockage to the microwave loop infrastructure), as outlined herein, shall be agreed upon and accepted by the owner/applicant/designee and the city within the application phase and shall be adhered to during and after completion of construction. The owner/applicant/designee may opt for either of the following remedies:

(1) At no cost to the city, the owner/applicant/designee shall be responsible for:

a. The installation and operation of communications antennas, microwave, and transmission lines, as required, and the roof top space for said equipment. The roof top space shall have an area of no less than ten feet by ten feet (10' x 10'). All communications antennae and transmission line requirements shall be determined by the city's RCL, as per industry standards, and shall meet all federal, state, and local requirements. All proposed roof top space shall be reviewed by the city's RCL to ensure that the space is adequate for the restoration of the microwave system.

b. Providing no less than 200 square feet of enclosed air-conditioned space adjacent to the antennae installations for the city to place, install, and operate communications radio equipment. This room shall have at least 200 amperes electrical capacity. Electricity for said enclosed area will be on a separate meter and billed to the city. The building owner or designee shall be responsible for maintaining the air conditioning, space, and providing the city with access to all meters. The building owner or designee shall provide emergency backup power as specified by the city's RCL. The building owner or designee shall be responsible for meeting manufacturer's environmental requirements for all equipment located in said enclosed space (e.g. temperature, humidity, etc.). If the environmental requirements are not met and damage is caused to the equipment located within the space, the building owner or designee may be liable for damages caused to the equipment.

c. Reimbursing the city for any and all transmission equipment, installation, licensing, permitting, etc. (e.g. radios, antennae, cable trays, generators, UPS, etc.) needed for the city's microwave signals to continue to its original destination at the original signal strength (i.e. with no loss in signal or degradation), as determined necessary by the city. The equipment may be passive or active microwave systems (limited to the restoration of the microwave levels). The city reserves the right to replace or upgrade all equipment as required at the city's expense and the build-

ing owner or designee shall provide access to city personnel for such replacement or upgrade.

d. Providing an alternate signal routing either by using a local provider T1 or fiber-type service, during the construction and prior to interruption of microwave signals, to maintain or restore service to the city's communication sites. Alternative signal routing proposals must be reviewed and authorized by the city's RCL prior to implementation.

(2) At no cost to the city, the owner/applicant/designee shall be responsible for providing alternative solutions by either reducing the obstructing height, relocating the obstruction elsewhere, or other solutions acceptable to the city's RCL.

(Ord. No. 13746, § 2, 2-22-18)

Sec. 10-140. Failure to comply.

Non-compliance with the requirements and failure to adhere to the aforementioned remedies shall result in either the city's (1) denial of land development or building permit issuance, as applicable; (2) withholding or revoking an issued land development or building permit, as applicable; or (3) loss of occupancy certification which shall withhold the building and/or fire code inspector's permission to allow any habitation until the building passes communication's system inspection, as required by this article.
(Ord. No. 13746, § 2, 2-22-18)

Sec. 10-141. Fee assessment.

(a) After a microwave path interruption has been determined, the owner/applicant/designee has 60 days to implement the chosen remedy. Within said 60-day period, the owner/applicant/designee shall submit a letter of intent as to which remedy was selected and an invoice showing proof of the remedy.

(b) Failure to submit the letter of intent and detailed invoice shall constitute a civil offense and be punishable by an administrative civil penalty in the amount as prescribed in section 2-829 of the City Code, or in an amount deemed appropriate by the special magistrate or code enforcement board, as applicable, upon review of the violation. This remedy shall be cumulative and supplemental and not exclusive.
(Ord. No. 13746, § 2, 2-22-18)

Sec. 10-142. Compliance with Ordinance No. 13114, the zoning ordinance of the City of Miami, Florida, as amended ("Miami 21 Code").

The city's microwave path ordinance does not repeal, supersede, or remove any permitting requirements applicable under the Miami 21 Code, as amended.
(Ord. No. 13746, § 2, 2-22-18)

ARTICLE XI. CITYWIDE ILLUMINATION STANDARDS

Sec. 10-143. Application and incorporation by reference of the County Code.

Chapter 8C of the Code of Miami-Dade County, Florida, as amended ("County Code"), is hereby incorporated by reference. Unless otherwise stated in this article, terms provided for in Chapter 8C of the County Code shall apply. The additional provisions provided herein are intended to be more restrictive as allowed by the County Code. The provisions of this article apply to transect zones T5-L and higher as well as CS, CI, CI-HD, D1, D2, and D3.
(Ord. No. 13929, § 2, 10-8-20)

Sec. 10-144. Right-of-way illumination standard.

In addition to the lighting required by Section 8C-3 of the County Code and irrespective of Florida Building Code occupancy type, as a condition precedent to the issuance of a building permit (with the exception of a demolition permit) for all applicable properties subject to this article, all rights-of-way that are not alleys shall be provided with a maintained minimum of one foot-candle or the minimum found in the Florida Department of Transportation's Manual of Uniform Minimum Standards for Design,

Construction, and Maintenance for Streets and Highways, whichever is greater, on the right-of-way surface from dusk until dawn; provided, however, the lighting level may be reduced by 50 percent on non-business days and commencing 30 minutes after the termination of business on each operating day.

Properties in CI or CS transect zones that abut a T3 or T4 transect zone shall provide a maintained minimum of six-tenths foot-candles; provided, however, that those properties in CS transect zone of one acre or more (regardless of abutting transect zone) are exempt from these requirements.

The uniformity ratio shall not exceed a ten to one ratio (10:1) maximum to minimum foot-candles. This provision shall also apply to governmental facilities regardless of whether they are generally open to the public. In addition to failing to provide the illumination as described herein, it shall also be a violation of this article for any property owner to maintain any awning, canopy, arcade, overhang, or other projection that prevents the lighting of the right-of-way as required herein.
(Ord. No. 13929, § 2, 10-8-20)

Sec. 10-145. Enforcement.

Enforcement of this article shall be as prescribed by chapter 2, article X of the City Code and any other remedies as provided by law, which use of one remedy shall not preclude the use of another, solely against the owner of the property in violation. A violation of this article shall be punishable by a fine of $250.00 for a first offense and $500.00 for each offense thereafter. The building official may fulfill the responsibility for enforcement of this article and Section 8C-3 of the County Code by referral to any other city department, including but not limited to code compliance.
(Ord. No. 13929, § 2, 10-8-20)

Sec. 10-146. Expedited review of permits.

Any such permit required by this article shall be processed by the city on an expedited basis.
(Ord. No. 13929, § 2, 10-8-20)

ARTICLE XII. BUILDING ENERGY AND WATER CONSUMPTION BENCHMARKING AND RETUNING

Sec. 10-147. Building energy and water consumption benchmarking and retuning ordinance.

Intent. This article shall be known and may be cited as the City of Miami's ("city") building energy and water consumption benchmarking and retuning ordinance and is intended to allow a data-based approach to analyze future energy needs, improve future usages, eliminate waste, and reduce costs.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-148. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purpose of this article, have the meanings indicated in this section:

Aggregated, whole-building data means energy or water data that has been summed for an entire property, which may include a single occupant or a group of separately metered tenants.

Base building systems mean the systems or subsystems of a building that use or distribute energy, water, impact energy, and/or water consumption, including, but not limited to the building's envelope as well as its HVAC systems, conveying systems, electrical and lighting systems, on-site generation systems, domestic hot water systems, water distribution systems, plumbing fixtures and other water-using equipment, and landscape irrigation systems and water features, including fountains and excluding systems or subsystems that operate industrial applications or processes or any systems or subsystems in a multifamily residential building appurtenant only to the specific dwelling unit for which the occupant of that unit bears responsibility for its maintenance and such usage is measured by a meter or submeter.

Benchmark means to input and submit the total energy and water consumed for a property for the previous calendar year and other descriptive information for such property as required by

the benchmarking tool. Total energy and water consumption shall not include separately metered uses that are not integral to building operations as determined by the director.

Benchmarking submission means a subset of information input into the benchmarking tool and benchmarking information generated by the benchmarking tool as determined by the director.

Benchmarking tool means the United States Environmental Protection Agency's ("EPA") ENERGY STAR® Portfolio Manager or any additional or alternative tool adopted by the director used to track and assess the energy and water use of certain properties relative to similar properties.

Covered private property means a property, other than a covered city property, or any property owned or operated by Miami-Dade County, the State of Florida, or the federal government with a building or buildings that exceed 20,000 square feet of gross floor area.

Covered public property means a property with a building or buildings that exceed 20,000 square feet of gross floor area and is owned, leased, or managed by the city and where the city regularly pays all or part of the annual energy and/or water bills.

Covered property means any covered public property or covered private property except for any property with a single-family home or duplex, a solely residential multi-family building of five units or less, or any building with an industrial use per designated Standard Industrial Classification (SIC) codes 20 through 39.

Department means the city's building department.

Director means the director of the department or designee.

Energy means electricity, natural gas, steam, or other product sold by a utility to a customer of a property or renewable on-site electricity generation for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses as recorded in the benchmarking tool.

ENERGY STAR® Score means the 1—100 numeric rating generated by the ENERGY STAR® Portfolio Manager tool as a measurement of a building's energy efficiency.

ENERGY STAR® Portfolio Manager means the tool developed and maintained by the EPA to track and assess the relative energy performance of buildings.

Financial hardship (of a property) means that a property:

(1) Had arrears of property taxes or special assessments that resulted in the issuance of a tax certificate against the property within the prior two years;

(2) Has a court appointed receiver in control of the asset due to financial distress;

(3) Is owned by a financial institution through default by the borrower;

(4) Has been acquired by a deed in lieu of foreclosure; or

(5) Has a senior mortgage subject to a notice of default.

Gross floor area means floor area as defined in Article I, Section 1.2 of Ordinance No. 13114, the Zoning Ordinance of the City of Miami, Florida, as amended ("Miami 21 Code"), or as defined in any successor zoning ordinance.

Shared benchmarking information means information generated by the benchmarking tool and descriptive information about the physical property and its operational characteristics, which is shared with the public. The information as defined by the ENERGY STAR® Portfolio Manager glossary, includes, but is not limited to, descriptive information such as the property's address, primary use, gross floor area, number of floors, number of years the property has been ENERGY STAR® Certified, the last approval date, if applicable, and energy-related output information such as site and source energy use intensity, weather normalized site and source energy use intensity, the ENERGY STAR® score (where available), total annual greenhouse gas emissions, monthly energy use by fuel type, indoor water use and water use intensity (consumption per gross square foot), outdoor

water use (where available), total water use, the property's ENERGY STAR® water score (where available), and any other general comments required to explain said ENERGY STAR® scores.

System or *subsystem* means a building assembly made up of various components that serve a specific function including but not limited to exterior walls, windows, doors, roofs, ceilings, floors, lighting, piping, ductwork, insulation, heating, ventilation, and air conditioning ("HVAC") system equipment or components, electrical appliances, and plumbing appliances.

Utility means an entity that distributes and/or sells natural gas, electric, water, or thermal energy services for buildings.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-149. Applicability.

This article shall apply to all new and existing covered properties in accordance with the initial compliance timetable set forth in section 10-152 of the City Code so long as the benchmarking tool as selected by the director remains free to use by members of the general public.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-150. Procedures.

The owner of each covered property shall collect and enter data for the previous calendar year into the benchmarking tool. Unless otherwise defined in this article, the owner of each covered property shall input all data into the benchmarking tool in a manner that conforms to latest guidance provided by the EPA for use of the benchmarking tool. Whole-building utility data for the property's energy water and energy use shall be compiled using one or more of the following methods:

(1) Obtaining aggregated, whole-building data from a utility company;

(2) Collecting data from, all tenants for nonresidential properties; or

(3) Reading a master meter.

If the owner of a covered property does not otherwise have access to whole-building energy and water data, such property owner shall request aggregated, whole-building data from each utility that provides energy or water service to the property and that has made aggregated utility data available to owners before the reporting date of that calendar year. When a utility does not provide whole-building energy or water data, the owner of a nonresidential covered property shall request energy and water data from tenants or occupants.

Each non-residential tenant located in a covered property shall, within 30 days of a request by the owner and in a form to be determined by the director, provide all information that cannot otherwise be acquired by the owner and that is needed by the owner to comply with the requirements of this article.

When the owner of a covered property receives notice that a nonresidential tenant intends to vacate a space within such property and the utilities do not provide aggregated, whole-building data, the owner shall request information relating to such tenant's energy and water use for any period of occupancy relevant to the owner's obligation to benchmark.

When a covered property changes ownership, the previous owner shall provide the new owner with all information needed to benchmark for the period during which the previous owner was in possession of the property.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-151. Duty to report benchmarking.

There shall be no city fees associated with the submission of benchmarking reports or retuning reports. For every covered property subject to this chapter, the owner shall annually submit to the director an energy and water benchmarking report in an electronic format as established by the director by the date specified in section 10-152 of the City Code.

The information included in the annual energy and water benchmarking report shall include, at a minimum, the shared benchmarking information for the previous calendar year.

The owner of each covered property shall enter data into the benchmarking tool so that the energy and water benchmarking report shall

be based on an assessment in the benchmarking tool of the aggregated total energy and water consumed by the whole property for the entire calendar year being reported.

Before submitting a benchmarking submission, the owner shall run all automated data quality checker functions available within the benchmarking tool and shall verify that all data has been accurately entered into the benchmarking tool. In order for the benchmarking report to be considered in compliance with this article, the owner shall correct all missing or incorrect information as identified by the benchmarking tool prior to submitting the benchmarking report to the director.

Where the current owner learns that any information reported as part of the benchmarking submission is inaccurate or incomplete, the owner shall amend the information so reported within the benchmarking tool and shall provide the director with an updated benchmarking submission within 30 days of learning of the inaccuracy.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-152. Benchmarking requirements.

(a) The owner of a covered property shall ensure that for each such property, a benchmarking report is generated, completed, and submitted to the director annually.

(b) The benchmarking reports for each covered property shall be due by the dates as defined in the following table. Subsequent benchmarking reports for each covered property shall be due by June 30 of each year thereafter.

Table 1

Size (Gross Floor Area)	*Initial Compliance Required by:*
Buildings 200,000 square feet or larger	June 30, 2023
Buildings between 100,000 square feet and 199,999 square feet	October 1, 2023
Buildings between 50,000 and 99,999 square feet	October 1, 2024
Buildings between 20,000 and 49,999 square feet	October 1, 2025

(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-153. Benchmarking exemptions.

(a) Benchmarking is not required for a covered public property for the current reporting year if the owner submits documentation to the director establishing that the property has met one of the following conditions:

(1) The property does not have a certificate of occupancy or temporary certificate of occupancy for all 12 months of the calendar year being benchmarked;

(2) A demolition permit for the entire building was issued for the calendar year being benchmarked, provided that demolition work has commenced and legal occupancy was no longer possible prior to end of that year;

(3) The property did not receive energy or water services for the entire calendar year to be benchmarked; or

(4) The covered property had average physical occupancy of less than 50 percent throughout the calendar year for which benchmarking is required.

(b) Benchmarking is not required for a covered private property for the current reporting year if an owner submits documentation with the director in such form and with such evidence as required by the director establishing that the property has met one of the following conditions:

(1) It meets any of the exemptions defined for a covered public property;

(2) The director determines that due to special circumstances unique to the applicant's facility and not based on a condition caused by actions of the applicant, strict compliance with provisions of this article would cause undue hardship or would not be in the public's best interest;

(3) The owner notifies the director that the property is under financial hardship and provides proof of the same; or

(4) The covered property may be exempted from electricity benchmarking if more than 50 percent of gross floor area is used for residential purposes and:

a. The property is not master metered or the owner does not have access to master meters or other means to obtain whole-building electricity data; and

b. The serving electric utility does not provide data aggregation services or access to whole-building utility data. Once such services are available from the utility as determined by the director, such properties will no longer be exempt from benchmarking requirements and shall file initial benchmarking reports in the first required reporting year following such data availability.

(c) Any entity or owner requesting an exemption from benchmarking shall submit an annual benchmarking exemption request form to the director by April 1 in the year for which the exemption is being requested. Any exemption granted will be limited to the benchmarking submission for which the request was made and does not extend to past or future submittals.

(d) For each reporting year in which an owner files a request for an exemption, the director shall determine whether that exemption is approved. Appeal of a determination that a property is not exempt shall be made within 15 days of such determination to a review committee comprised of the director of the departments of resilience and public works (or the supervisor of plats in lieu thereof), zoning, and planning, the director, and an assistant city manager as designated by the city manager. The review committee, acting by majority vote, shall either affirm the director's denial or reverse his/her denial and grant the requested exemption.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-154. Energy and water retuning requirements.

(a) The owner of each covered property 50,000 square feet or above shall ensure that retuning is performed on the base building systems of each such property in accordance with the schedule requirements of section 10-156 to ensure that base building systems are maintained, cleaned, and repaired.

(b) Retuning shall be performed by or under the supervision of a qualified retuning professional in accordance with industry standard practices including ASHRAE Guideline 1.2 Commissioning Process for Existing Systems and Assemblies, ASHRAE Standard 0.2 Commissioning Process for Existing Systems and Assemblies, and other standards as may be defined by the director.

(c) The owner shall correct, through low-cost adjustments and minor repairs to the property's energy and water systems, all deficiencies identified by the retuning professional as having a simple payback of three years or less. However, a retuning measure is not required if such retuning measure would necessitate a building permit other than an electrical, plumbing, or mechanical permit.

(d) The cost estimates for recommended improvements to covered properties that are regulated by any city, county, state, or federal law regulating landmarks and historic buildings shall include all additional costs necessary for the proposed retuning work to comply with such law.

(e) Unless otherwise restricted by statute or contract, tenants shall allow property owners reasonable access to systems and utility information, if necessary, to comply with the terms of this article.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-155. Energy and water retuning reports.

(a) For each covered property, a retuning professional shall complete, physically or digitally sign, and electronically submit an on-line retun-

ing report on behalf of the property owner in accordance with the schedule requirements of section 10-156.

(b) Before submitting the retuning report, the qualified retuning professional shall verify that the energy and water consumption reported in the annual benchmarking reports for the five previous years are accurate. If found to be inaccurate, the qualified professional must identify inaccuracies in the reports and ensure that the data entered in the benchmarking tool and reported to the director is updated prior to submitting the retuning report so that it reflects correct historical electricity and water consumption data.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-156. Retuning schedule.

(a) The owner of a covered property shall ensure that for each such property retuning is performed, a retuning report is completed and submitted to the director once every five years with a start date commencing pursuant to Table 2.

(b) The retuning reports for each covered property shall be due prior to December 30 of the calendar year shown in Table 2 as determined by the building's square footage.

Table 2

Size	*Retuning*
Buildings 200,000 square feet or larger	December 1, 2028 and every five years thereafter
Buildings between 100,000 and 199,000 square feet	December 1, 2029 and every five years thereafter
Buildings between 50,000 [and] 99,999 square feet	December 1, 2030 and every five years thereafter
Buildings between 20,000 and 49,999 square feet	Optional

(c) An owner may apply for an extension of time to file a retuning report if, despite such owner's good faith efforts documented in such application, the owner is unable to complete the required retuning prior to the scheduled due date for such report. The director may grant no more than one such extension for no more than one year.

(d) The owner of a property that is in financial hardship may apply for and be granted annual extensions of time to file a retuning report.

(e) Extensions granted pursuant to this section shall not extend the scheduled due dates for subsequent retuning reports. The property owner acknowledges that by requesting and receiving an extension, the period of time before the property's next compliance date will be less than the typical schedule.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-157. Retuning exemption.

(a) A retuning report is not required for a covered property for the current reporting cycle if a qualified professional submits documentation to the department in such form and with such certifications as required by the director establishing that the property has met one of the following conditions:

(1) The property is exempt from benchmarking requirements pursuant to the provisions of section 10-153.

(2) The initial certificate of occupancy for the property was issued less than five years prior to the date when the first retuning would otherwise be due.

(3) The property has undergone substantial rehabilitation, as certified by a registered design professional, within the five-year period prior to the calendar year in which a retuning is due such that at the commencement of such calendar year, all of the base building systems of such property are in compliance with energy conservation and efficiency codes of the state, county, and city as applicable, and any state, county, and city codes impacting water consumption in existence at the time this article takes effect.

(4) If over 25 percent of the dwelling units within the property qualify as affordable housing, the property owner or representative may request an exemption.

(b) The energy portion of the retuning is not required for the current reporting cycle if a qualified professional submits documentation with the department in such form and with such certifications as required by the director. For each reporting cycle, the department shall determine whether an exemption under this subsection applies to a property. Appeal of a determination that a property is not exempt shall be made according to the procedures set forth by the director.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-158. Permit fee credit.

(a) All covered properties that are in good standing with submitting benchmarking submissions, retuning reports, (as reflected in subsection 10-157(a)(3)) and have not been found in violation of either benchmarking submissions as required by section 10-152 or retuning reporting as required by section 10-155 within the past five calendar years shall be granted a maximum one-time, non-transferrable credit per building every retuning period, up to the amount provided in Table 3, for city's building permit fees related to professional service/"soft costs", incurred for retuning purposes pursuant to this chapter. The credit expires if unused in that period. A property that has been found to have any code violations shall not qualify.

Table 3

Size	*Maximum Credit of Building-Efficiency Related Permit Fees*
Buildings 500,000 square or larger	Up to $25,000.00
Buildings between 100,000 and 499,999 square feet	$10,000.00
Buildings between 20,000 and 99,999 square feet	$5,000.00

(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-159. Sharing of data.

(a) The director shall make available on a publicly accessible website the shared benchmarking information as defined in section 10-148 for the previous calendar year for each covered property.

(b) The shared benchmarking information for each covered property shall be made available to the public beginning one year after each such property is first required to submit a benchmarking report.

(c) The director will determine if any benchmarking shared summary data shall be excluded from publishing because it is not in the public's best interest.

(d) The city may provide non-anonymized data from benchmarking or retuning submissions to any utility serving a covered property or to any federal, state, county, or city-managed energy efficiency program, provided that the data will be used only for purposes of targeting incentives provided through energy and water efficiency programs and provided that the city has first obtained the covered property owner's written or electronic permission to share the data with the utility or energy efficiency program. Where the property owner's permission can be granted electronically through acceptance of a default option, the city shall provide a clearly delineated option for owners of covered properties to choose to opt out of granting such permission.

(e) The city may disclose any retuning data or data from benchmarking submissions to a third party for academic or other non-commercial research purposes provided that such data is anonymized.

(f) All third parties receiving data from benchmarking or retuning submissions shall sign a non-disclosure agreement with the city stipulating terms for acceptable use of the data, including assurances that such data shall not be disclosed to other entities, before receiving such data.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-160. Annual report and analysis.

(a) The director shall make available on a publicly accessible website and update annually the following information:

(1) No later than December 1, 2023, a report on the benchmarking of all available covered properties, including an assessment of accuracy and issues affecting accuracy, summary energy and water consumption statistics, trends observed, and an assessment of changes across the portfolio over time, and

(2) No later than December 1, 2024, a report on the benchmarking of all available covered properties, including an assessment of compliance rates, an assessment of accuracy and issues affecting accuracy, summary energy and water consumption statistics, trends observed, and an assessment of changes across the portfolio over time.

(b) Beginning in 2029 and every three years thereafter, the director shall make available on a publicly accessible website a report on the progress of retuning for all covered properties, including but not limited to, compliance rates, trends observed, correlations of benchmarking scores and retuning measures completed, the impact of retuning on EUIs and ENERGY STAR® scores, and recommendations on how the uptake of energy and water conservation measures could be increased or the implementation of retuning could be improved.

(c) Nothing in this article shall prevent the director from including all such information in a combined annual energy and water efficiency report covering the progress of all of the city's energy and water efficiency ordinances and programs.
(Ord. No. 14005, § 2, 6-10-21)

Sec. 10-161. Enforcement.

(a) It shall be unlawful for any entity or person to fail to comply with the requirements of this article or misrepresent any material fact in a document required to be prepared or shared by this article. The director may request an audit to confirm the utility data for any building or submission for compliance. The director shall then have the authority to verify the report's amended data by:

(1) City personnel to inspect and audit the building on-site.

(2) Reject amended reports based on the city audit.

(b) If the director determines that a property owner has failed to report benchmarking or returning information as required under this article or the owner has submitted incomplete or false benchmarking or retuning information, the director may refer the owner for enforcement as set forth in chapter 2, article X of the City Code, titled "Code enforcement," and may be brought for further proceedings before the code enforcement board. A property owner in violation of this article may be fined $250.00 per day for a first-time offense or $500.00 per day for a repeat violation of this article. The city may also avail itself of any other legal remedy available and the use of one enforcement option shall not preclude the use of another.

(c) No violation shall be issued for non-compliance or failure to submit to the director a benchmarking report until one year from the first compliance date for benchmarking reports as defined in section 10-152.
(Ord. No. 14005, § 2, 6-10-21)

Secs. 10-162—10-180. Reserved.

ARTICLE XIII. RESERVED*

*__Editor's note—__Ord. No. 14279, § 2, adopted May 9, 2024, repealed the former article XIII, section 10-181 in its entirety, which pertained to fence requirements for Miami City Commission District 4, and derived from Ord. No. 14008, § 2, adopted June 10, 2021.

Chapter 11

CABLE TELEVISION*

Sec. 11-1. Short title.
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Sec. 11-6. Licensee subject to other laws, police power.
Sec. 11-7. Interpretation of license terms; conflicts.
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Sec. 11-9. Grant of licenses.
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Sec. 11-29. Performance evaluation.
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Sec. 11-31. Force majeure.
Sec. 11-32. Applicability.
Sec. 11-33. Municipal cable system ownership authorized.
Sec. 11-34. Reservation of rights.
Sec. 11-35. Florida Consumer Choice Act of 2007.

***Editor's note—**Ord. No. 11936, § 2, adopted June 8, 2000, repealed §§ 11-1—11-20, 11-51—11-62 and 11-91—11-102. Section 3 of said ordinance enacted a new Ch. 11 as set out herein. The former Ch. 11 pertained to similar subject matters and derived from Ord. No. 9223, §§ 1—16, 18—41, adopted Dec. 17, 1980; Code 1980, §§ 10.5-1—10.5-20, 10.5-31—10.5-42, 10.5-51—10.5-62; Ord. No. 11564, § 6, adopted Oct. 28, 1997; and Ord. No. 9538, §§ 1—5, adopted Jan. 13, 1983.

City Code cross references—Local business tax and miscellaneous business regulations, ch. 31; streets and sidewalks, ch. 54.

County Code cross reference—Cable television regulations, § 8A-125 et seq., ch. 8AA.

Sec. 11-1. Short title.

This chapter shall be known and may be cited as the "City of Miami Cable Systems Ordinance." (Ord. No. 11936, § 3, 6-8-00)

Sec. 11-2. Definitions.

For the purposes of this chapter, the following terms, phrases, words and derivations shall have the meanings given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number, and words in the singular number include the plural number. The words "shall" and "will" are mandatory, and "may" is permissive. Words not otherwise defined herein or in any license agreement that might be granted hereunder shall be given the meaning set forth in the Communications Act of 1934, 47 U.S.C. § 521 et seq., and the Cable Communications Policy Act of 1984, as amended by the Cable Television Consumer Protection and Competition Act of 1992, and as amended by the Telecommunications Act of 1996, and as those Acts may hereinafter be amended (collectively the "Cable Act"), and, if not defined therein, the common and ordinary meaning.

Activated channel means those channels engineered at the headend of a cable system for the provision of services generally available to subscribers of the cable system, regardless of whether such services actually are provided, including any channel designated for public, educational, or governmental use. Channels on which signals flow in the direction from the headend to the subscriber are referred to as "downstream channels." Where the signal flows to the headend for redistribution, it shall be referred to as an "upstream channel."

Access channel means any channel on a cable system set aside without charge by the licensee for public, educational and/or local governmental use.

Affiliate means any person who directly or indirectly owns or controls, is owned or controlled by, or is under common ownership or control with a licensee.

Analog channel means no less than six MHz of bandwidth.

Applicant means any person submitting an application within the meaning of this chapter.

Application means any proposal, submission or request to (1) construct and operate a cable system within the city; (2) transfer a license or control of the license or the licensee; (3) renew a license; (4) modify a license; or (5) seek any other relief from the city pursuant to this chapter, a license agreement, the Cable Act, or other applicable law.

Basic cable service or basic service means any service tier which includes the retransmission of local television broadcast signals, and public, educational, or governmental access channels and such services as may be defined as basic by applicable law, as otherwise provided in the license agreement, during the term of any license granted pursuant to this chapter.

Cable Act means the Communications Act of 1934, 47 U.S.C. § 521 et seq., as that Act has and may hereinafter be amended.

Cable operator means any person or group of persons who provides cable service over a cable system and directly or through one or more affiliates owns a significant interest in such cable system, or who otherwise controls or is responsible for, through any arrangement, the management and operation of such a cable system.

Cable service means the transmission of video or other programming services over a cable system to subscribers together with subscriber interaction, if any, which is required for the selection or use of such video programming or other programming services. To the extent not prohibited by applicable law, a licensee agrees that cable internet services, including, but not limited to @Home, Roadrunner and MediaOne Express, or other similar services, provided by a licensee, its parent, affiliates or subsidiaries, over the cable system shall be deemed "cable services" as permitted under Title VI of the Communications Act of 1934, as amended.

Cable system, or *system* means any facility consisting of a set of closed transmission paths

or other transmission lines and associated signal generation, reception and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within the city. Such term does not include (1) a facility that serves only to retransmit the television signals of one or more television broadcast stations; (2) a facility that serves subscribers without using any public rights-of-way; (3) a facility of a common carrier that is subject, in whole or in part, to the provisions of Title II of the Communications Act of 1934, 47 U.S.C. § 201 et seq., except that such facility shall be considered a cable system (other than for purposes of Section 621(c) of the Cable Act) to the extent it is used in the transmission of video programming directly to subscribers, unless the extent of such use is solely to provide interactive on demand services; (4) an open video system that complies with Section 653 of the Telecommunications Act of 1996; or (5) any facilities of any electric utility used solely for operating its electric utility systems. The foregoing definition of "cable system" shall not be deemed to circumscribe the valid authority of the city to regulate the activities of any other communications system or provider of communications services, including but not limited to telephony and open video systems.

City means the City of Miami, a municipal corporation of the State of Florida, in its present incorporated form or in any later reorganized, consolidated, enlarged or reincorporated form.

Commission means the city commission of the City of Miami, Florida.

Control of a licensee or applicant means possession of the ability to direct or cause the direction of the management or policies of a licensee or applicant, or the operation of the licensee's system, whether through operational control in whatever manner exercised or ownership of voting securities, by contract or understanding, or in any other manner.

Fair market value means the price that a willing buyer would pay to a willing seller for a going concern but with no value allocated to the license itself.

FCC means the Federal Communications Commission, or any successor governmental entity thereto.

Gross revenues means all revenues recognized in accordance with Generally Accepted Accounting Principles (GAAP) generated directly or indirectly by the licensee and, any affiliates, subsidiaries or parent of the licensee, provided that such entities are considered cable operators as such term is defined herein, from any source whatsoever arising from, attributable to, or in any way derived from the operation of the cable system to provide cable services in the city. Notwithstanding anything to the contrary contained in this subparagraph, gross revenues include, but are not limited to, fees charged subscribers for basic service; fees charged subscribers for any optional, premium, per-channel or per-program service; fees charged subscribers for any tier of service other than basic service; installation, disconnection, reconnection and change-in-service fees; late fees; leased access fees; revenue from converter, remote, modem or any other equipment rentals; revenues from installation, service and content enhanced internet products and services including, but not limited to, access services and content enhanced services to the extent said services may be considered Title VI services according to applicable law; revenues from cable guides; advertising revenues allocable to the city based on a percentage of subscribers in the city divided by the subscribers in the system (such percentage shall then be multiplied by the total advertising revenue of the system to determine the allocable gross revenue stemming from advertising); and revenues from home shopping channels or other sources allocable to the city, provided that where certain home shopping channel or other such revenue is allocable to more than one license area due to common zip codes, the licensee shall allocate the percentage of revenue to the city which is equivalent to the percentage of the population of the city divided by the total population for the allocable license areas in question. Gross revenues shall be the basis for computing the license fee imposed pursuant to section 11-16 hereof. Gross revenues shall not include revenues received from programmers and used by licensee to market

or promote a programming service; any revenue received by licensee for payment in connection with PEG access or facilities as required by subsection 11-15(b); any taxes on services furnished by the licensee which are imposed upon any subscriber or user by the state, county, city or other governmental unit and collected by the licensee on behalf of said governmental unit and which the licensee passes on in full to the applicable tax authority. However, it is hereby expressly provided that license fees shall be included in the calculation of gross revenues. Further, license fees shall not be paid on subscriber deposits unless and until said deposits are applied to a customer account for services rendered. Notwithstanding anything herein to the contrary, a licensee shall include in gross revenues, subject to license fees, revenues received from any and all cable services for which such licensee, or any affiliate, subsidiary or parent of the licensee pays a license fee to any other jurisdiction, provided that such cable service is offered over the cable system in the city, unless the city and licensee otherwise agree to exclude certain revenues from license fees.

Institutional network means a dedicated closed network, or an alternative acceptable to the city, for use by the city to provide cable services and non-cable services for public, educational and governmental use within the city. The network shall be capable of providing one-way, two-way, interactive, and machine-to-machine transfer of audio, video, voice and data signals within the network as designated by the city.

Interconnection means the electronic connection of two or more cable systems for the purpose of sharing public, education and government access programming or transmissions.

Law means all duly enacted and applicable federal, state, county and city laws, ordinances, codes, rules, regulations and orders.

Leased access channel means a channel designated in accordance with Section 612 of the Communications Act, 47 U.S.C. § 532, for commercial use by persons unaffiliated with the licensee.

License means the nonexclusive right granted by the city to a licensee in a license agreement to construct, maintain and operate a cable system under, on, and over streets, roads and any other public ways, rights-of-ways, or easements within the city. The term does not include any license or permit that may be required by this chapter or other laws, ordinances or regulations of the city for the privilege of transacting and carrying on a business within the city or for disturbing or carrying out any work on any street.

License agreement means a contract entered into in accordance with the provisions of this chapter between the city and a licensee that sets forth the terms and conditions under which the license shall be exercised.

License area means that territory within the corporate limits of the city, as those limits may change from time to time through annexation or contraction, over which the terms of a license agreement shall extend.

Licensee means any person granted a license pursuant to this chapter who has entered into a license agreement with the city.

Overbuild means a cable system constructed to serve subscribers already served by an existing cable system.

Person means any individual, corporation, partnership, association, joint venture, organization or legal entity of any kind, and any lawful trustee, successor, assignee, transferee or personal representative thereof, but shall not mean the city.

Service tier means a category of cable service provided by a licensee and for which a separate charge is made by the licensee.

State-of-the-art means that level of technical performance, equipment, components and services more modern than that which has been developed and demonstrated to be generally accepted and used in the cable industry, excluding "tests" involving new products offered for one year or less. The system shall have, at a minimum, the capability of no less than the channel capacity, products and services available from a system serving any similarly sized city or other com-

munity in the state, or other such system owned and operated by the licensee, its parent, affiliates or subsidiaries outside the state, except as otherwise set forth in a license agreement. In no event shall a system having a bandwidth of less than 750 MHZ be considered "state-of-the-art." Nothing herein shall be construed to require a licensee to employ any specific transmission technology.

Street or *streets* means the surface, the air space above the surface and the area below the surface of any public street, highway, road, boulevard, concourse, driveway, freeway, thoroughfare, parkway, sidewalk, bridge, tunnel, park, waterway, dock, bulkhead, wharf, pier, court, lane, path, alley, way, drive, circle, easement, or any other public right-of-way or public place, including public utility easements dedicated for compatible uses, or any other property in which the city holds any kinds of property interest or over which the city exercises any type of lawful control, and any temporary or permanent fixtures or improvements located thereon, as may be ordinarily necessary and pertinent to construct and operate a cable system; but shall not include city-owned buildings or city private property.

Subscriber means any person who lawfully receives cable service delivered over the cable system.

Subscriber base means the total number of subscribers who receive cable service delivered to individual homes, dwelling units or multiple dwelling units, excluding such multiple dwelling units billed on a bulk-billing basis.

System malfunction means any cable system equipment, facility or signal failure or malfunction that results in the loss of satisfactory service on one or more channels to one or more subscribers. A malfunction is major if it affects 50 or more subscribers.

Transfer of a license means any transaction in which (1) any ownership or other interest in a licensee or its cable system is transferred from one person or group of persons to another person or group of persons so that control of a licensee or control of licensee's system is transferred; or (2) the rights and/or obligations held by a licensee under a license agreement are transferred or assigned to another person, group of persons or business entity. A transfer shall be considered "pro forma" only when it involves a transfer to a person, group of persons or business entity wholly owned or controlled by the licensee and shall not result in a change in the control or ownership of the licensee or licensee's system.

Two-way capability means the incorporation into a cable system of all appropriate design and engineering characteristics and features, including all necessary equipment, which shall be installed and operational, so that two-way transmission, including but not limited to addressability, over the system can be implemented and activated.

Video channel or *channel* means a portion of the electromagnetic frequency spectrum which is used in a cable system and which is capable of delivering a television channel, including the associated audio signal.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-3. Intent and purposes.

(a) It is the intent of the city and the purpose of this chapter to promote the public health, safety, and general welfare by providing for the grant of one or more licenses for the construction and operation of a cable system, and the provision of cable service, within the city; to provide for the regulation, to the extent provided for by law, of each cable system within the city in the public interest; to provide for the payment of fees and other valuable consideration by a licensee to the city for the use of streets and rights-of-way by its cable system; to promote the widespread availability of quality cable service to city residents and businesses, the city, and other public institutions; to encourage the development of cable and other communications technologies and cable systems as a means of communication between and among members of the public, city businesses, the city, and other public institutions; to promote competitive cable rates and services; to promote the safe and efficient use of city streets; to enhance and maximize the full potential of streets used by cable systems; and to encourage

the provision of a diversity of information sources to city residents, businesses, the community, the city, and other public institutions by cable technology.

(b) Recognizing the continuing development of communications technology and uses, it is the policy of the city to encourage experimentation and innovation in the development of cable system uses, services, programming and techniques that shall be of general benefit to the community to the extent all such experiments and innovations are consistent with applicable laws.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-4. Grant of authority; license required.

(a) The city may grant one or more licenses in accordance with this chapter.

(b) No person may construct or operate a cable system over, on, or under public streets, or provide cable service, in the city without a license granted by the city unless otherwise permitted to do so by law, and no person may be granted a license without having entered into a license agreement with the city pursuant to this chapter and other such ordinance of the city as may be applicable.

(c) Unless otherwise authorized by law, any license granted pursuant to this chapter is solely for the provision of cable service. The city's authority to regulate and/or authorize the use of the streets of the city for the provision of non-cable video or other telecommunications services (including the offering of dark fiber or connectivity) and/or any service not included under Title VI of the Communications Act of 1934, as amended, as of the effective date of this chapter, shall not be waived, nor shall such authorization to use the streets of the city for the provision of other than cable services be granted, under a license granted pursuant to this chapter. Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $2,000.00 per violation, per day or part thereof that the violation continues.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-5. License characteristics.

(a) A license authorizes use of city streets and rights-of-way, for installing, on poles or underground, cables, wires, lines, optical fiber, underground conduit, ducts, conductors, amplifiers, vaults, and other facilities as necessary and pertinent to operate a cable system to serve subscribers within the city, but does not expressly or implicitly authorize the licensee to provide service to, or install cables, wires, lines, underground conduit, or any other equipment or facilities upon private property without owner consent (except for use of compatible easements pursuant to Section 621 of the Cable Act, 47 U.S.C. § 541(a)(2)), or to use publicly or privately owned conduits without a separate agreement with the owners.

(b) A license is nonexclusive, and shall not expressly or implicitly preclude the issuance of other licenses to operate cable systems within the city, or affect the right of the city to authorize use of city streets to other persons to operate cable systems or for other purposes as it determines appropriate.

(c) All privileges prescribed by a license shall be subordinate to any prior lawful occupancy of the streets, and the city reserves the right to reasonably designate where a licensee's facilities are to be placed within the streets. Such designation may include, but not be limited to, consideration of the availability of space in the rights of way.

(d) No transfer of a license shall occur without the prior consent of the city and unless application is made by the licensee, and city approval obtained, pursuant to section 11-24 hereof.

(e) A license granted to an applicant pursuant to this chapter to construct, operate and maintain a cable system within the city, shall be deemed to constitute both a right and an obligation on the part of the licensee to provide the services and facilities of a cable system as required by the provisions of this chapter and the license agreement. The license agreement shall constitute all of the terms and conditions of the license that are finally negotiated and agreed upon by the city and licensee. Licensee shall be bound by all

documents or other portions of an application, including oral representations made by an applicant, or its representatives, before the city commission, which the city relies upon as inducement to granting an initial, renewal, transfer or modification of a license, or taking other action relating to the license, and which are integrated by the city and licensee as an exhibit to the license or amendment thereof.

(f) Notwithstanding anything to the contrary, in the event that licensee, its parent, affiliate or subsidiary elects to offer to subscribers video programming services through an "open video system", licensee shall remain subject to all terms and conditions of a license granted pursuant to this chapter.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-6. Licensee subject to other laws, police power.

(a) A licensee shall at all times be subject to and shall comply with all applicable and lawful federal, state and local laws. A licensee shall at all times be subject to all lawful exercise of the police power of the city.

(b) Subject to applicable law, except as may be specifically provided in this chapter or under the terms of a license agreement and subject to the Cable Act, the failure of the city, upon one or more occasions, to exercise a right or to require compliance or performance under this chapter or a license agreement shall not be deemed to constitute a waiver of such right or a waiver of compliance or performance.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-7. Interpretation of license terms; conflicts.

(a) The provisions of this chapter at the time of the grant of a license (initial or renewal) shall apply to a license agreement as if fully set forth in the license agreement, and the express terms of this chapter shall prevail over conflicting or inconsistent provisions in a license agreement unless such license agreement expresses an intent to amend or modify a requirement of this chapter.

(b) Except as to matters which are governed by federal law or regulation, a license agreement shall be governed by and construed in accordance with the laws of the state.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-8. Applications for grant, renewal, modification or transfer of licenses.

(a) A written application shall be filed with the city for:

(1) Grant of an initial license;

(2) Renewal of a license in accordance with section 626(a)—(g) of the Communications Act, 47 U.S.C. 546;

(3) Modification of a license agreement;

(4) Transfer or change of control of a license; or

(5) Any other relief from the city pursuant to this chapter or a license agreement.

(b) To be acceptable for filing, a signed original of the application shall be submitted together with seven copies, be accompanied by the required non-refundable application filing fee as set forth in subsection 11-8(i) hereof, conform to any applicable request for proposals, and contain all required information. All applications shall include the names and addresses of persons authorized to act on behalf of the applicant with respect to the application.

(c) All applications accepted for filing shall be made available by the city for public inspection.

(d) An application for the grant of an initial license may be filed pursuant to a request for proposals issued by the city or on an unsolicited basis. The city, upon receipt of an unsolicited application, may issue a request for proposals. If the city elects to issue a request for proposals upon receipt of an unsolicited application, the applicant may submit an amended application in response to the request for proposals, or may inform the city that its unsolicited application should be considered in response to the request for proposals, or may withdraw its unsolicited application. An application which does not

conform to the reasonable requirements of a request for proposals may be considered nonresponsive and denied on that basis.

(e) An application for the grant of an initial license shall contain, at minimum, the following information:

(1) Name and address of the applicant and identification of the ownership and control of the applicant, including: the names and addresses of all persons with five percent or more ownership interest in the applicant, including the names and addresses of parents or subsidiaries holding such ownership interests directly or indirectly; the persons who control the applicant; all officers and directors of the applicant; and any other cable system ownership or other communication ownership interest of each named person; provided that in the case of an application for a renewal or transfer of a license, the information regarding cable system ownership or other communication ownership interest shall be provided upon written request of the city;

(2) An indication of whether the applicant, or any person controlling the applicant, or any officer, or director or person with five percent or more ownership interest in the applicant, has been adjudged bankrupt, had a cable license revoked, or been found by any court or administrative agency to have violated a security or antitrust law, or to have committed a felony, or any crime involving moral turpitude; and, if so, identification of any such person and a full explanation of the circumstances; provided that in the case of an application for renewal or transfer of a license, a licensee shall provide such information upon written request;

(3) A demonstration of the technical, legal and financial ability of the applicant to construct and/or operate the proposed cable system, including identification of key personnel;

(4) A copy of any agreement covering the license area, if existing, between the applicant and any public utility providing for the use of any facility of the public utility, including, but not limited to, the use of utility poles, lines or conduits. In the case of a transfer pursuant to section 11-24 hereof, licensee shall only be required to provide evidence of the assignability of such agreements;

(5) In the case of an application for an initial license, a statement prepared by a certified public accountant or duly authorized financial officer of the applicant regarding the financial ability of the applicant to complete the construction and operation of the cable system proposed;

(6) A description of the prior experience of the applicant in cable system ownership, construction and operation, and identification of communities in which the applicant or any person having a controlling interest in the applicant or having more than a ten percent ownership interest in the applicant has, or has had, a cable franchise or license or any interest therein; provided that in the case of an application for a transfer of a license, a licensee shall provide such information upon written request;

(7) Upon reasonable request of the city, the applicant shall provide copies of any franchise or license agreements entered into by applicant, its parent, affiliate or subsidiary;

(8) A description of the physical facilities proposed, including channel capacity, performance characteristics, headend, and access facilities; upon request, the applicant shall provide information on technical design;

(9) In the case of an application for an initial grant of a license, where applicable, a description of the construction of the proposed cable system, including an estimate of plant mileage and its location, the proposed construction schedule, a description, where appropriate, of how services shall be converted from existing facilities to new facilities, and informa-

tion on the availability of space in conduits including, where appropriate, an estimate of the cost of any necessary rearrangement of existing facilities;

(10) For informational purposes, the proposed rate structure, including projected charges for each service tier, installation, converters, and other equipment or services, and the ownership interest of the applicant in any proposed program services to be delivered over the cable system;

(11) A demonstration of how the proposal of the applicant shall reasonably meet the future cable-related needs and interests of the community;

(12) A description of any cable services offered by the applicant or its parent, affiliate or subsidiary, and applicant's plan with respect to the availability of services to subscribers in the city;

(13) Upon request, for information purposes only, a description of any non-cable services offered by the applicant or its parent, affiliate or subsidiary and plan of the licensee with respect to the availability of such services to subscribers in the city;

(14) Upon request, for information purposes only, a description of any non-cable services offered by the applicant or its parent, affiliate or subsidiary in any other community and a copy of the terms and conditions pursuant to which applicant offers such non-cable services in any other community;

(15) A proposal by applicant to offer discount rates to qualified senior citizens, consistent with Section 623(e)(1) of the Cable Act;

(16) In the case of an application for an initial license or the transfer of a license, where the transferee is not a publicly traded company, pro forma financial projections for the first five years of the license term, including a statement of projected income, and a schedule of planned capital additions, with all significant assumptions explained in notes or supporting schedules;

(17) If an applicant proposes to provide cable service to an area already served by an existing cable licensee, the identification of the area where the overbuild would occur, the potential subscriber density in the area which would encompass the overbuild, and the ability of the streets to accommodate an additional system;

(18) In the case of a renewal or transfer application, any other information as may be reasonably necessary to demonstrate compliance with the requirements of this chapter and information that the city may reasonably request of the applicant that is relevant to the consideration of the city of the application; and

(19) An affidavit or declaration of the applicant or authorized officer certifying the truth and accuracy of the information in the application, acknowledging the enforceability of application commitments, and certifying that the proposal meets all federal and state law requirements.

(f) An application for modification of a license agreement shall include, at minimum, the following information:

(1) The specific modification requested;

(2) The justification for the requested modification, including the impact of the requested modification on subscribers and others;

(3) A statement whether the modification is sought pursuant to Section 625 of the Cable Act, 47 U.S.C. § 545, and, if so, a demonstration that the requested modification meets the standards set forth in 47 U.S.C. § 545;

(4) Any other reasonable information necessary for the city to make an informed determination on the application for modification; and

(5) An affidavit or declaration of the applicant or authorized officer certifying the truth and accuracy of the information in the application, and certifying that the application is consistent with all federal and state law requirements.

(g) An application for renewal of a license shall comply with the requirements of section 11-23 hereof.

(h) An application for approval of a transfer of a license shall comply with the requirements of section 11-24 hereof.

(i) To be acceptable for filing, an application shall be accompanied by a non-refundable filing fee in the following amount, as appropriate:

(1) For a new or initial license: $26,250.00

(2) For renewal of a license: $10,500.00

(3) For a transfer of a license (other than a pro forma transfer): $10,500.00

(4) For a pro forma transfer of a license: $5,250.00

(5) For modification of a license agreement pursuant to 47 U.S.C. § 545: $10,500.00

(6) For any other relief: $5,250.00

The purpose of the filing fee is to defray a portion of the cost to the city in processing an application. Such fee shall be credited against amounts due under section 11-9(f) herein. The filing fee is therefore intended to be a charge incidental to the awarding or enforcing of a license within the meaning of Section 622(g)(2)(D) of the Cable Act, 47 U.S.C. § 542(g)(2)(D), and may not be deducted from the license fee imposed in a license agreement and shall not be passed through to subscribers.
(Ord. No. 11936, § 3, 6-8-00; Ord. No. 13142, § 6, 2-11-10)

Sec. 11-9. Grant of licenses.

(a) The city may grant a license for a period not to exceed ten years.

(b) The city may make the grant of a license conditioned upon the completion of construction within a reasonably prescribed time or upon the performance of other specific obligations which are to be set forth in the license agreement, specifying that failure to comply with the condition shall cause the license to become null and void or may require the licensee to pay liquidated damages to the city as specified in a license agreement.

(c) In evaluating an application for a license, the city may consider, among other things, the following factors: the technical, financial, and legal qualifications of the applicant to construct and operate the proposed system; the adequacy of the proposed construction arrangements, facilities, equipment, and services based on the public convenience, safety and welfare; the experience of the applicant in constructing and operating cable systems and providing cable service in other communities, if any; the ability of city streets to accommodate the proposed system; the potential disruption to users of city streets and any resultant inconvenience to the public; and whether the proposal shall meet reasonably anticipated community needs and serve the public interest. evaluation by the city shall not be based on the content of the programming the applicant proposes to provide.

(d) The city shall hold a public hearing to consider an application or applications for a license. The applicant(s) shall be notified of the hearing and shall be given an opportunity to be heard. Based upon the application(s), the testimony presented at the public hearing, any recommendations of the city or staff, and any other information relevant to the application(s), the city shall decide by resolution whether to grant or deny a license application(s) and decide the terms and conditions of any license(s) granted.

(e) After complying with the above requirements, the city commission shall approve or disapprove the proposed license agreement by resolution, or may direct that it be subject to further negotiation.

(f) An applicant for an initial license hereunder shall reimburse the city for all reasonable expenses incurred by the city in considering and processing the application, including but not limited to costs and expenses resulting from accrued city in-house staff time, out of pocket expenses or

administrative costs, and consulting and legal costs, less the amount of the filing fee set pursuant to section 11-8(i). Within 30 calendar days from the date of the resolution approving or denying the initial grant of the license thereof by the city commission, the city shall bill the applicant for the amount of the processing fee and its method of calculation. If the processing fee is not received by the city within 30 calendar days of date of the bill, the city shall notify such applicant and the applicant shall pay a late fee at the rate of 18 percent per annum of the amount of the unpaid or underpaid fee provided, however, that such rate does not exceed the maximum amount allowed under applicable law. If said fee is not received in total by the city within 60 calendar days of the date of the bill, the city shall notify such applicant and, if applicable, the license shall be revoked. This processing fee is intended to be a charge incidental to the awarding or enforcing of a license within the meaning of Section 622(g)(2)(D) of the Cable Act, 47 U.S.C. § 542(g)(2)(D), and may not be deducted from the license fee imposed in a license agreement and shall not be passed through to subscribers.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-10. Insurance; surety; indemnification.

(a) A licensee shall be required by the city to maintain, and by its acceptance of the license, specifically agrees that it shall maintain, throughout the entire term of the license including any renewals thereof, insurance coverage insuring the licensee with respect to the construction, operation and maintenance of the cable system, and the conduct of the licensee's business in the city, as described below and as required to satisfy all requirements of Florida law.

(1) Comprehensive general liability insurance including contractual liability, explosion, collapse and underground property damage, bodily injury and broad form property damage, personal and advertising injury and products/completed operations coverage. The licensee shall carry limits with a combined single limit of no less than $3,000,000.00 per occurrence naming the city as an additional insured. The licensee shall require any subcontractors to provide adequate insurance and provide proof of insurance to the city as well.

(2) The licensee shall carry workers compensation and employers liability insurance in compliance with Florida statute. The licensee shall require any subcontractors to provide workers compensation insurance for all of the subcontractors' employees.

(3) Automobile liability insurance covering all owned, hired and non-owned vehicles used in connection with any activities arising out of this agreement. Such insurance shall afford coverage with a combined single limit of no less than $1,000,000.00 per occurrence. The licensee shall require any subcontractors to provide automobile liability insurance for all of the vehicles used by subcontractors arising out of the license.

(b) All insurance policies shall be with insurance companies authorized to do business in the state and shall be with insurance companies with a minimum Best's Rating of AV11, or an equivalent rating, and financial size category rating of X (ten).

(c) A licensee shall keep on file with the city certificates of insurance which certificates shall indicate evidence of payment of the required premiums and shall indicate that the city, its officers, boards, commission, commissioners, agents and employees are listed as additional insureds, and that this insurance is primary over any other insurance or self-insurance program available to the city whether collectible or not. In the event of a potential claim such that the city claims insurance coverage, licensee shall immediately respond to all reasonable requests by the city for information with respect to the scope of the insurance coverage.

(d) All insurance policies shall name the city as additional insured and shall further provide that any cancellation or reduction in coverage shall not be effective unless 60 calendar days

prior written notice thereof has been given to the city. A licensee shall not cancel any required insurance policy without submission of proof that the licensee has obtained alternative insurance satisfactory to the city which complies with this chapter.

(e) A licensee shall, at its sole cost and expense, indemnify, hold harmless, waive subrogation against and defend the city, its officials, boards, commissions, commissioners, agents, and employees, against any and all third party claims, suits, causes of action, proceedings, judgments for damages or equitable relief, and costs and expenses arising out of the construction, maintenance or operation of its cable system by the licensee, its agents or employees in the city, or the granting of a license agreement to the licensee or in any way arising out of the licensee's enjoyment or exercise of a license granted hereunder, regardless of whether the act or omission complained of is authorized, allowed or prohibited by this chapter or a license agreement. This provision includes, but is not limited to, the reasonable attorneys' fees of the city incurred in defending against any such claim, suit or proceedings; and claims arising out of copyright infringements or a failure by the licensee to secure consents from the owners, authorized distributors, or providers of programs to be delivered by the cable system, claims arising out of Section 638 of the Cable Act, 47 U.S.C. § 558, and claims against the licensee for invasion of the right of privacy, defamation of any person, firm or corporation, or the violation or infringement of any copyright, trade mark, trade name, service mark or patent, or of any other right of any person, firm or corporation. The city shall give the licensee written notice of any claim or of the commencement of any action, suit or other proceeding covered by the indemnity in this section. In the event any such claim arises, the licensee shall have the obligation and duty to defend the city and any other indemnified party hereunder; provided, however, licensee may not agree to any settlement of claims affecting the city without the city attorney's approval. If the city attorney finds that separate representation to fully protect the interests of the city is necessary, licensee shall consult with the city attorney on counsel that is acceptable to the city attorney. If licensee is unwilling or unable to select counsel acceptable to the city attorney, licensee shall pay all expenses incurred by the city in defending itself with regard to any action, suit or proceeding subject to this indemnification. The city's expenses shall include all out of pocket expenses, attorney's fees and costs of the city attorney or his/her assistants, or any employees of the city, outside attorneys, or other agents. Not withstanding anything to the contrary contained in this subparagraph, the obligation of the licensee shall not extend to any claims caused by the gross negligence of the city, its officials, boards, commissioners, agents or employees, or to claims arising from licensee's provision of access channels for public, educational and/or governmental use pursuant to section 11-15 hereof and a license agreement, to the extent such claims relate to programming and content on such channels, over which licensee has no editorial control nor exercises administrative control.

(f) Notwithstanding anything to the contrary, a licensee shall be responsible for all actions of the subcontractors and shall agree to indemnify and hold harmless the city for any and all claims against the city or arising out of the activity of such subcontractors.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-11. Security fund.

(a) The city shall require in a license agreement that, prior to the license becoming effective, the licensee shall post with the city a security fund. Such fund may be in the form of a cash deposit, letter of credit, or performance bond as determined by the city in its sole discretion or as set forth in a license agreement. The security fund shall be used to ensure the licensee's faithful performance of and compliance with all provisions of this chapter, the license agreement, and other applicable law, and compliance with all orders, permits and directions of the city, and the payment by the licensee of any claims, liens, fees, or taxes due the city which arise by reason of the construction, operation or maintenance of the system. The amount of the security fund shall be the amount that the city determines, under circumstances existing at the time, that is

necessary to protect the public, to provide adequate incentive to the licensee to comply with this chapter and the license agreement, and to enable the city to effectively enforce compliance therewith, but in no event less than $2,000,000.00. The license agreement shall provide for the procedures to be followed with respect to the security fund. Neither the posting of the cash deposit or filing of an indemnity bond or any form of performance bond with the city, nor the receipt of any damages recovered by the city thereunder, shall be construed to excuse faithful performance by the licensee or limit the liability of the licensee under the terms of its license for damages, either to the full amount of the fund or otherwise.

(b) The rights reserved to the city with respect to the security fund are in addition to all other rights of the city, whether reserved by this chapter or authorized by other law or the license agreement, and no action, proceeding or exercise of a right with respect to such security fund shall affect any other right the city may have.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-12. Construction bond.

(a) The city shall require in a license agreement that, prior to any cable system construction, upgrade, rebuild or other significant work in the streets a licensee shall establish in the favor of the city a construction bond in an amount specified in the license agreement or other authorization as necessary to ensure the faithful performance of the licensee of the construction, upgrade, rebuild or other work, but in no event shall the amount of the bond be less than $500,000.00. Licensee shall at all times comply with chapter 54 of this Code.

(b) In the event a licensee subject to such a construction bond fails to complete the cable system construction, upgrade or other work in the streets in a safe, timely and competent manner in accord with the provisions of the license agreement, there shall be recoverable, jointly and severally from the principal and surety of the bond, any damages or loss suffered by the city as a result, including the full amount of any compensation, indemnification or cost of removal or abandonment of any property of the licensee, or the cost of completing or repairing the system construction, upgrade or other work in the streets, plus a reasonable allowance for attorneys' fees, up to the full amount of the bond. The city may also recover against the bond any amount recoverable against the security fund pursuant to section 11-11 hereof where such amount exceeds that available under the security fund.

(c) The license agreement may specify that upon completion of the cable system construction, upgrade, rebuild or other work in the streets and payment of all construction obligations of the cable system to the satisfaction of the city, the city may eliminate the bond or reduce its amount. However, the city may subsequently require an increase in the bond amount for any subsequent construction, upgrade, rebuild or other work in the streets.

(d) The construction bond shall be issued by a surety having a minimum rating of A-1 in Best's Key Rating Guide, Property/Casualty Edition, or an equivalent rating acceptable to the city; shall be subject to the approval of the city attorney; and shall provide that this bond may not be canceled, or allowed to lapse, until 60 calendar days after receipt by the city, by certified mail, return receipt requested, of a written notice from the issuer of the bond of intent to cancel or not to renew.

(e) The rights reserved by the city with respect to any construction bond established pursuant to this section are in addition to all other rights and remedies the city may have under this chapter, the license agreement, or at law or equity.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-13. Minimum facilities and services.

(a) The following minimum requirements for facilities and services apply to all licenses granted by the city. The city may require in a license agreement that a licensee exceed these minimum requirements where it determines, under circumstances existing at the time of the grant of the license, that the additional requirements are

necessary to meet the future cable related needs of the city and interests or to serve the public interest.

(1) Any cable system that commences construction, including but not limited to initial construction, rebuild, upgrade, or reconstruction after the effective date of this chapter shall have a minimum capacity of at least 750 MHZ providing no less than 78 activated video channels or its digital equivalent, including two-way capability as defined in subsection 11-2 hereof. The construction, rebuild, upgrade or reconstruction of any cable system must be completed within a 24-month construction schedule. A license agreement may provide for a larger minimum channel capacity requirement as well as upgrades during the term of a license. Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $1,050.00 per violation, per day or part thereof that the violation continues.

(2) The city may require in a license agreement that a licensee provide access channels, facilities and other support for public, educational and/or governmental use, in excess of the minimum requirement of this chapter. Licensee's failure to comply with the terms of a license agreement with respect to the provision of access channel facilities and other support for public, educational and/or governmental use shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $1,575.00 per violation, per day or part thereof that the violation continues.

(3) A cable system shall provide leased access channels as required by federal law.

(4) If required by the terms of a license agreement, a licensee shall, at minimum, provide at least one cable outlet and shall provide cable service, including basic and cable programming service tier, with the exception of digital and premium/pay-per-view, or its equivalent, without charge, to each and every floor of all public buildings including, but not limited to city buildings, parks, community and day-care centers, and any other public building designated by resolution of the city commission. In addition, licensee agrees to provide one outlet of cable service without charge to each and every floor of all buildings of the city that may be constructed, opened or annexed within the city after the effective date of the license agreement, subject to the service policy set forth below. In new locations and remodels of existing locations, licensee shall have access to "pre-wire." Such cable service shall at a minimum include the basic cable service tier, and all programming offered without additional charge on the cable programming service tier offered by licensee over the cable system. Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $525.00 per violation, per day or part thereof that the violation continues.

(5) If required by the terms of a license agreement, licensee shall, upon request, provide to each and every floor of all public buildings including, but not limited to city buildings, parks, community and day-care centers, and any other public building designated by resolution of the city commission, with, at minimum, one free connection to an on-line service provided by licensee. Such on-line service will provide access to the Internet. Upon request, each city building, park, community center and daycare center within the city, and any other public building designated by resolution of the city commission, shall receive, at minimum, one free cable modem which will be allowed to be networked, and free, unlimited access to the on-line service. All services requested shall be provided not later than one year after licensee makes commercially available an on-line service for personal computers within the city.

Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $525.00 per violation, per day or part thereof that the violation continues.

(6) Licensee shall, at a minimum, provide at least one cable outlet and shall provide cable service, including basic and cable programming service tier, with the exception of digital and premium/pay-per-view, or its equivalent, without charge, to each floor, not to exceed three floors, in all public and private schools (as defined by, and which receives funding pursuant to, Title I of the Elementary and Secondary Education Act of 1965, 20 U.S.C. § 421(a) et seq., as amended), (grades K—12). Licensee will make arrangements for each school to receive school materials for teachers and other facility administrators, to the extent they are available, that explain the educational applications of the broadband cable systems and services offered on the cable system. The materials will be provided to all connected schools. Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $525.00 per violation, per day or part thereof that the violation continues.

(7) Licensee shall, upon written request from the school, provide all schools (as defined in subsection (6) above) within the city which receive cable service with, at minimum, one free connection to an on-line service provided by licensee. Such on-line service will provide access to the Internet. Upon request, each connected school shall receive, at minimum, one free cable modem which will be allowed to be networked, and free, unlimited access to the on-line service. All services requested shall be provided not later than one year after licensee makes commercially available an on-line service for personal computers within the city. Additional cable modems and operational support and services (for example, assisting schools in setting up and maintaining reliable Internet connections) shall be provided to connected schools upon written request and at the actual and direct costs of licensee. In addition, licensee shall sponsor local workshops in each region to educate teachers and other facility administrators about its on-line service and to provide connected schools, city parks, community centers and day-care centers with an opportunity for hands-on training. Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $525.00 per violation, per day or part thereof that the violation continues.

(8) A cable system shall include an "emergency alert" capability, which shall permit the city manager or designated representative, to the extent permitted by applicable law, to remotely override the audio of all channels on the cable system or to allow for video crawl over all channels.

(9) The city may seek the use of a portion of the cable system's bandwidth for collecting data from subscribers for purposes including but not limited to a fire, police or other alarm system, or reading water meters, provided that the following conditions are met:

a. Licensee has excess capacity on its system, at each location the city wishes to utilize at the time of the request and, as of the date of the city's request, has not allocated such excess capacity, as evidenced by a written agreement with a third party for such bandwidth for provision of services during the 12 months following the date of city's request;

b. The city purchases the necessary equipment according to the reasonable technical specifications provided by licensee;

c. Attachment of the necessary equipment is performed by the licensee owning the cable system, and the city reimburses the labor and material cost of such attachment to said licensee at the direct, actual costs to licensee;

d. The city pays to the licensee the direct and actual costs of the bandwidth usage, but in no event to exceed the lowest rate offered by the licensee to an unaffiliated third party for similar bandwidth usage; and

e. No sooner than one year after city commences use of the bandwidth, a licensee may thereafter reclaim the excess bandwidth, upon no less than 120 calendar days notice, if it plans to provide an additional product or service to its customers utilizing said bandwidth within six months of reclaiming the bandwidth, provided that city shall have a right of first refusal for use of the bandwidth on terms and conditions equal to those at which the licensee proposes to offer the capacity to a third party. To the extent a licensee is providing an institutional network for the city, at no cost to the city, such provision may be in lieu of the licensee's obligations under this section.

(10) A licensee shall make available to its subscribers equipment capable of decoding closed circuit captioning information for the hearing impaired.

(11) The cable system operator shall maintain equipment capable of providing standby powering for headend transportation and trunk amplifiers for a minimum of two hours. The equipment shall be constructed so as to automatically notify the cable office when it is in operation and to automatically revert to the standby mode when the AC power returns. All utility safety regulations must be followed to prevent a standby generator from powering the "dead" utility line, with possible injury to an unwitting lineman.

(b) Most favored nation.

(1) Pursuant to the requirements of a license agreement, a licensee shall provide, at a minimum, the same facilities, services, products and benefits available on any system serving any other similarly sized city or other community in the state, or other such communities outside the state, owned and operated by the licensee, its parent, affiliate or subsidiary.

(2) Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $1,575.00 per violation, per day or part thereof that the violation continues.

(c) Universal service. Upon request and payment of all applicable charges and provided that the requesting person grants the licensee access to his or her premises in order to furnish, maintain, and continue to offer cable service to that person, a licensee shall, throughout the term of a license, offer any person at his or her place of residence or place of business within the license area, all cable services distributed over the cable system, except as otherwise set forth in a license agreement. Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $525.00 per violation, per day or part thereof that the violation continues.

(d) Upon licensee's acquisition of facilities in any city right-of-way, or upon the annexation to the city of any area in which licensee owns or operates any facility, licensee shall, at the city's request, submit to the city a statement describing all facilities involved, whether authorized by license, permit, franchise or other prior right, and specifying the location of all such facilities to the extent licensee has possession of such information. Such facilities shall immediately be subject to the terms of licensee's license granted pursuant to this chapter.

(e) Pursuant to the requirements of a license agreement, in the event licensee offers cable Internet services over its cable system in the city, it shall, taking into account technical feasibility, provide access to its cable modem platform to providers of Internet access and on-line services on comparable terms and conditions to those terms and conditions on which access is provided by licensee, its parent, affiliate or subsidiary in any other community. Licensee shall comply with all lawful requirements with respect to access to licensee's cable modem platform for providers of Internet access and on-line services.

(f) A licensee granted a license under this chapter shall make a proposal to the city for the installation, operation and maintenance of or provide funding for an institutional network ("I-NET"). The I-NET shall, at minimum, take into consideration the interconnection of all government and other public buildings, schools, or persons as designated by the city, with minimum technical facilities as shall be specified subject to negotiation between the city and the licensee. A licensee may provide the city, subject to city approval, with an equivalent of an I-NET, based on current technology, in lieu of the obligation set forth herein.

(g) Where an I-NET already exists in the city, an applicant for a license shall provide the city with a capital grant in an amount which represents the cost of an institutional network, or, at the city's sole option, alternative facilities, equipment and support, including but not limited to a new institutional network, in satisfaction of licensee's obligation to provide the city with an I-NET pursuant to this chapter.
(Ord. No. 11936, § 3, 6-8-00; Ord. No. 13142, § 6, 2-11-10)

Sec. 11-14. Technical standards.

(a) Any cable system within the city shall at minimum meet the technical standards of the FCC or other applicable federal, state, county or city technical standards, including any and all applicable rules, regulations, codes, and standards as hereinafter amended or adopted. All television signals transmitted on a cable system shall include any closed circuit captioning information for the hearing impaired. Antennas, supporting structures, and outside plants used in the system shall be designed to comply with all generally accepted industry practices and standards and with all federal, state, county and city ordinances, rules and regulations, including but not limited to the city zoning code.

(b) All construction, installation and maintenance of the cable system shall comply with federal and state codes, as well as the National Electrical Safety Code, the National Electric Code, the South Florida Building Code, all local codes and ordinances and any and all applicable rules, regulations and codes, as hereinafter may be amended or changed.

(c) At the times specified in the license agreement or as required by FCC rules, the licensee shall perform, at its expense, proof of performance tests designed to demonstrate compliance with the requirements of this chapter, the license agreement, and FCC requirements. The licensee shall provide, upon written request, the proof of performance test results to the city within ten (10) calendar days after completion. The city shall have the right to inspect the cable system facilities during and after construction to ensure compliance with the requirements of the license agreement, this chapter, and FCC standards.

(d) The city may require any other tests as specified in a license agreement, or required by applicable law or regulation, or where there have been extensive complaints made, or where there exists other demonstrative evidence which in the reasonable judgment of the city casts doubt upon the reliability or technical quality of the cable system to be performed at the expense of the licensee; provided that if the results of such tests indicate that licensee is in compliance with the requirements of this chapter and/or the license agreement, the expenses incurred by the licensee in conducting said tests shall be borne by the city. The licensee shall provide the test results to the city within ten calendar days of completion of the proof of performance or other tests.

(e) The licensee shall provide the city ten calendar days advance written notice when a proof of performance test required in subsections (c) and (d) above is scheduled, in order that the city may have an observer present.

(f) A licensee shall not design, install or operate its facilities in a manner that shall interfere with the signals of any broadcast station, the facilities of the city, the facilities of any public utility, the cable system of another licensee, or individual or master antennas used for receiving television or other broadcast signals. In the event any such interference is discovered, licensee shall take all actions necessary to remedy the problem as quickly as is technically feasible.

(g) In any license granted pursuant to this chapter, a licensee shall agree to maintain that level of technology to satisfy the state-of-the-art as defined in subsection 11-2, subject to qualifications, conditions, and terms that may be expressly identified in a license agreement, if any. Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $1,575.00 per violation, per day or part thereof that the violation continues.

(h) Licensee shall provide access channels, equipment and facilities, and capital support, in accordance with section 11-15, as well as such other benefits and services required by a license agreement. Licensee's failure to comply with this subsection shall result in imposition of fines to be paid by the licensee to the city in the amount of not less than $1,575.00 per violation, per day or part thereof that the violation continues.

(i) In the event that the city commission determines that it is in the public interest of the residents of the city to renew or approve the transfer of a license where the licensee is not in compliance with the requirements of this section at the time of the grant, the city may agree in an agreement, or an amendment to a license agreement, to a program whereby the licensee is permitted a specified period of time, not to exceed 24-months, to come into compliance. However, the city's approval of any such plan shall be contingent upon licensee's agreement to provide the city and any subscribers with fines, refunds, credits or service vouchers as liquidated damages for the harm suffered due to licensee's non-compliance. The city may grant extension of the time period herein, for good cause shown.
(Ord. No. 11936, § 3, 6-8-00; Ord. No. 13142, § 6, 2-11-10)

Sec. 11-15. Public education and government support.

(a) It is the purpose and intent of the city to require that all licensees provide access channels, facilities, equipment and support sufficient to meet the needs and interests of the community with respect to public, education and government activities.

(b) A licensee granted a license pursuant to this chapter shall provide to the city, a grant per subscriber, as represented in the subscriber base as defined in subsection 11-2, per month for PEG capital support, as set forth in a license agreement. The actual amount of the per subscriber, per month charge shall be determined based upon the city's needs as identified in a projected budget to be prepared by the city manager and submitted to licensee not later than September 30 of each year during the term of the license agreement.

(c) A licensee shall provide a minimum of one access channel, and facilities dedicated to the exclusive use of the city and such other capital support for public, educational and/or governmental use as required in a license agreement and allocated at the sole discretion of the city. The licensee shall provide one upstream channel for each access channel then used by the city to the headend, as technically necessary for the operation of access channels referred to herein or as otherwise required by a license agreement. The city may increase the number of PEG channels to a number not to exceed five, so long as a threshold use requirement is met for each channel the city then utilizes. In order to request an additional PEG access channel, the existing PEG access channel(s) must be programmed at least eight hours a day with non-repetitive, locally produced programming, Monday through Friday, for a minimum of six consecutive weeks. For purposes of calculating the eight hour programming requirement, the live cablecast of all commission and board meetings, in their entirety, shall be included for not more than one channel. Character-generated programming shall not be included for purposes of calculating the programming requirement. Once the threshold is met and an additional

access channel given, the initial access channel(s) must maintain the threshold requirement. After attaining the threshold requirement, if the initial access channel fails to meet the threshold for four consecutive months, the additional access channel may be reclaimed by licensee upon 60 calendar days written notice. Under no circumstances shall the city lose the right to its first initial access channel. However, at all times after a second access channel is provided to the city, the initial access channel shall maintain the threshold requirement a minimum of 50 percent of the time, to be measured every four months based on usage for the preceding 12 months. In addition, a licensee shall cablecast to all subscribers in the city, all Miami-Dade County public, educational, and/or government channels provided however that the total number of access channels shall not exceed the number set forth in a license agreement.

(d) During the term of the license, the licensee shall provide, as specified in a license agreement or otherwise agreed to, such equipment, facilities and technical support as the city commission may determine is useful for the production and cable casting of programming on the public, education and government channels. Applications for initial grants, renewals or transfers of licenses shall include a proposal to provide such support.

(e) As may be required in a license agreement, a licensee shall tape or cablecast live events held in the city as may be designated by the city subject to no less than four weeks advance notice in writing to the licensee. The number of events designated by the city hereunder shall be no less than 24 in any given calendar year. A license agreement may provide for a maximum number of designated events. Unless specified by the city, the live cablecast of a commission or board meeting shall not be counted as a designated event.

(f) Applications for an initial or renewed license may, and at the request of the city, shall include proposals for the provision of an institutional network interconnecting city, educational institutions, and/or other public facilities as designated by the city from time to time.

(g) Applications for an initial license shall include a proposal for the interconnection of licensee to any or all other cable systems operating within the county for purposes of providing or sharing PEG access channels. In the case of an application for renewal or transfer of a license, applicant shall include in its application a statement outlining the status of the interconnection of licensee's cable system to any and all cable systems operating within Miami-Dade county.

(h) A license may provide for additional financial grants in lieu of or in addition to some or all of the facilities, equipment, and services referenced in this section.

(i) A licensee shall agree that the facilities, equipment, monetary grant, and all other support to be provided by a licensee pursuant to this section, and as set forth in a license agreement constitute capital costs which are required by the license to be incurred by licensee for public, educational, or government access facilities within the meaning of Section 622(g)(2)(C) of the Cable Act, 47 U.S.C. § 542(g)(2)(C), that such grant does not constitute a license fee or tax within the meaning of Cable Act, state law, this Code, or a license agreement; and that the licensee shall waive, and will not assert in any proceeding, any claim to the contrary. The city shall use the facilities, equipment, monetary grant and all other support to be provided by licensee pursuant to this section in a manner consistent with Section 622(g)(2)(C) of the Cable Act.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-16. License fee.

(a) A licensee, as compensation for the privilege granted under a license for the use of the streets of the city to construct and operate a cable system to provide cable services in the city, shall pay to the city a license fee in an amount up to a maximum of either:

(1) Five percent of the licensee's gross revenues derived directly or indirectly from the operation of its cable system within the city during the term of its license pursuant to section 11-2 hereof; or

(2) In the event the Cable Act or other applicable law is amended to permit the city to assess a license fee of a greater amount than that specified in subsection (1) above, the licensee agrees to pay to the city the new amount after a public hearing in which the public and licensee are given an opportunity to comment on the impact of the higher fee. Moreover, licensee shall conclude any such agreement with respect to a fee increase with the city prior to finalizing an agreement with Miami-Dade County.

(b) Licensee's payment of the license fee to the city shall be reduced only by that amount the licensee is required to pay Miami-Dade County pursuant to any cable license, license or ordinances of the county. Notwithstanding anything to the contrary, licensee shall pay to the city the full amount of all fees to which it is entitled pursuant to part a of this section, on revenues not expressly included in the definition of "gross revenues" pursuant to chapter 8 of the Code of Miami-Dade County, or as such chapter may be amended.

(c) A licensee shall pay the license fee due to the city on a quarterly basis. Payment for each quarter shall be made to the city not later than 30 calendar days after the end of each calendar quarter.

(d) A licensee shall file with the city, on a quarterly basis with the payment of the license fee, a financial statement setting forth the computation of gross revenues used to calculate the license fee for the preceding quarter and a detailed explanation of the method of computation. The statement shall include but not be limited to identification of all revenue streams directly or indirectly connected with the cable system, in accordance with the definition of gross revenues, section 11-2, whether or not involved in license fee computation. The statement shall be certified by a certified public accountant or the chief financial officer or other duly authorized officer of the licensee. The licensee shall bear the cost of the preparation of such financial statements.

(e) Subject to applicable law, no acceptance by the city of any license fee payment shall be construed as an accord that the amount paid is in fact the correct amount, nor shall such acceptance of payment be construed as a release of any claim the city may have for additional sums payable.

(f) The license fee payment is not a payment in lieu of any other tax, fee or assessment.

(g) The city may, from time to time, and upon reasonable notice, inspect and audit any and all books and records of the licensee relevant to the determination of gross revenues and the computation of license fees due, and may recompute any amounts determined to be payable under the license. If, as a result of the audit, the city determines that the licensee has underpaid the quarterly license fees owed in an amount equal to or exceeding two percent of the license fees actually paid based on components of gross revenues as specifically defined herein, the cost of the audit shall be paid by the licensee to the city within 30 calendar days of receipt of demand for payment, unless licensee can show the audit is materially incorrect. A licensee shall make all books and records necessary to satisfactorily perform the audit readily available to the auditors in Miami-Dade county, for inspection and copying or in the alternative, licensee shall pay all incremental costs and fees incurred by the city for the city to perform the audit at a location outside of Miami-Dade county. A licensee shall provide any and all materials within 30 calendar days of receipt of a request from the city.

(h) In the event that a license fee payment is not received by the city on or before the due date set forth in subsection (c) above, or is underpaid, the licensee shall pay a late charge of 18 percent per annum of the amount of the unpaid or underpaid license fee payment, provided, however, that such rate does not exceed the maximum amount allowed under Florida law. Any such failure to remit payment on a timely basis, after written notice and failure to cure, shall be considered a material violation of this chapter and any license granted pursuant hereto. Any interest and/or late charges paid by licensee is intended to be a charge incidental to the enforc-

ing of a license within the meaning of Section 622 (g)(2)(D) of the Cable Act, 47 U.S.C. § 542 (g)(2)(D), and may not be deducted from the license fee imposed by this chapter or any license agreement nor passed through to subscribers.

(i) When a license terminates for any reason, the licensee shall file with the city within 90 calendar days of the date its operations in the city cease, a financial statement, certified by the chief financial officer of the licensee, showing the gross revenues received by the licensee since the end of the previous fiscal year. Adjustments shall be made at that time for license fees due to the date that the licensee's operations ceased.

(j) The licensee's use of city private property for the placement or attachment of equipment used in the provision of cable services (e.g., generators, power supply units, concrete environmental closures (CEC), etc.) shall be in accordance with city policies and procedures.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-17. Reports and records.

(a) The licensee shall submit reports to the city quarterly according to the following schedule: January through March are due on or before April 25; April through June are due on or before July 25; July through September are due on or before October 25; and October through December are due on or before January 25 of each year. The quarterly report shall include, but not be limited to:

(1) Number of homes passed, number of cable plant miles, number of new installs, number of disconnects, and net result of new installs and disconnects.

(2) Customer service and repair telephone statistics, broken down by month, indicating the number of calls received, number of calls abandoned, number of calls receiving a busy signal, percentage of total calls for which a busy signal was received, average duration of each call handled by a customer service representative, average length of time each caller waits before speaking directly to a customer service representative and number of customer service representatives staffed to handle telephone calls.

(3) To the extent compiled by the licensee in the normal course of its business, statistics by month for the number of total standard installations performed, number of standard installations performed within seven calendar days, number of service interruptions, number of planned service interruptions, number of service interruptions by day part (1:00 a.m. to 6:00 a.m., 6:00 a.m. to 6:00 p.m., 6:00 p.m. to 1:00 a.m., or, upon request of the city, based on shorter measurement intervals as licensee has available), number of service interruptions by duration, number of service interruptions responded to within 24 hours, number of other service problems responded to within 36 hours, preventative measures to reduce or eliminate service interruptions, and any other information which may be reasonably required to monitor the licensee's compliance with this chapter. A licensee may comply with the requirements of this subsection by providing to the city a copy of the actual complaint and/or service interruption log(s) kept by licensee.

(4) Revenue information, including, but not limited to: number of subscribers for each type of cable service offered, and the gross revenue from all sources attributable to the operations of the cable system by the licensee, its parent, affiliate or subsidiary in the city, stating separately by category each source and the amount of revenue attributable thereto.

(b) Within six months of the close of its fiscal year, the licensee shall provide an annual report to the city that includes the following information:

(1) A summary of the activities of the previous year in development of the system, including but not limited to, products and services, video and nonvideo, initiated or discontinued, policy changes enacted during the previous year, number

of cable subscribers for each tier or type of service or product (including gains and losses), homes passed, and miles of cable distribution plant in service. The summary shall also include a comparison of any construction, including system upgrades, during the year with any projections previously provided to the city, as well as rate and charge increases and/or decreases for the previous fiscal year. The report shall provide a comparison to other systems operated by licensee, its parent, affiliate, or subsidiary sufficient to determine licensee's compliance with its obligation pursuant to this chapter and the license agreement.

(2) An annual financial report to include a statement of sources of revenues for the licensee, or the smallest operational unit closest to the level of the licensee for which data is available, and licensee's parent; provided that the city may request, in writing, and licensee shall provide, additional information at the system or license level, as reasonably necessary. The licensee shall provide an audited financial report if licensee has a report in its normal course of business. If not, the statements shall be certified by the chief financial officer of the licensee. The financial report shall include notes to the financial statements that specify all significant accounting policies and practices upon which it is based.

(3) Where applicable, a copy of updated maps depicting the location of all trunk lines and feeder lines and associated devices in the city to the extent such locations have changed. Upon request of the city, such maps shall be provided in digitized form at the expense of the licensee.

(4) A summary of written subscriber or resident complaints, identifying the number and nature of complaints and their disposition, including an annual summary of statistics provided in the quarterly report. Where complaints involve recurrent system problems, the nature of each problem and the corrective measures taken shall be identified. More detailed information concerning complaints shall be submitted upon written request of the city.

(5) Upon written request, a summary of the number of service interruptions, number of planned service interruptions, and number of service interruptions by duration, along with preventative measures to eliminate reoccurrence.

(6) Upon written request, if the licensee is a corporation, a list of officers and members of the board of directors; the officers and members of the board of directors of any parent corporation; and if the licensee or parent corporation stock or ownership interests are publicly traded, a copy of its most recent annual report.

(7) Upon written request, if the licensee is a partnership, a list of the partners, including any limited partners, and addresses; and if the general partner is a corporation, a list of officers and members of the board of directors or the corporate general partner, and the officers and directors of any parent corporation; and where the general partner or parent corporation ownership interests are publicly traded, a copy of its most recent annual report.

(8) Upon written request, a list of all persons holding five percent or more ownership or otherwise cognizable interest in the licensee pursuant to the Cable Act and 47 CFR 76.501.

(9) A copy of the rules and regulations of the licensee applicable to subscribers of the cable system.

(10) A report on the number of senior citizen, economically disadvantaged or disabled subscribers receiving any rate discounts pursuant to subsection 11-20(a) hereof, and the amount of any such discounts for specific services if licensee offers separate rates or discounts for those categories of subscribers.

(11) A report on the number of multiple dwelling buildings and units therein receiving service under bulk agreements pursuant to subsection 11-20(a) hereof.

(12) A full schedule and description of services, service hours and location of the customer service office of the licensee or offices available to subscribers, and a schedule of all rates, fees and charges for all services provided over the cable system.

(13) Upon written request, a report on the number of total subscribers served by the licensee in the cable system, with a breakdown by the types of services received by the subscribers.

(14) Upon written request, a report on the number of personnel employed by the licensee by area of responsibility, including any ethnic reporting pursuant to equal employment opportunity commission requirements.

(c) Upon each written request by the city made not more than once annually, a licensee shall within 45 calendar days of receipt of the request, provide the following documents to the city, without regard to whether the documents are filed by the licensee or an affiliate:

(1) Annual financial report of the licensee or its parent or any affiliate of licensee which controls licensee and issues an annual financial report.

(2) Copyright filings reflecting the operation of the system;

(3) Any pleadings, petitions, applications, communications, reports and documents (collectively referred to as "filings") submitted within the previous 12 months by or on behalf of the licensee to the FCC, SEC or any state or federal agency, court or regulatory commission which filings may adversely impact the operation of the cable system of the licensee in the city or that may impact the rights or obligations of the city under this chapter or the license agreement issued pursuant to this chapter and any and all responses, if any, to the above mentioned filings.

(4) Any and all notices of deficiency, forfeiture, or documents instituting any investigation, civil or criminal proceeding issued by any state or federal agency regarding the system, licensee, or any affiliate of licensee, provided, however, that any such notice or documents relating to an affiliate of licensee need be provided only to the extent the same may directly or indirectly affect or bear on operations of the licensee in the city. For example, a notice that an affiliate which has a management contract for the city's system was not in compliance with FCC EEO requirements would be deemed to affect or bear on operations in the city.

(5) A copy of any cable licenses or franchises entered into by licensee, its parent, affiliate or subsidiary. A licensee shall provide a copy of such documents as soon as reasonably possible but no later than within 30 calendar days of such request.

(d) Notwithstanding anything to the contrary, the licensee agrees to provide the city, within ten calendar days of filing or receipt of such, any document that may, in the reasonable judgment of the licensee, adversely impact the construction, operation or maintenance of the cable system of the licensee.

(e) The licensee shall furnish to the city such additional reports as a licensee may prepare as a customary business practice with respect to its operations, which in the discretion of the city manager are reasonable and necessary for the administration and/or enforcement of this chapter.

(f) Within ten calendar days of filing by licensee, its parent, subsidiary, or affiliate, licensee shall provide notice to the city manager of any petitions, filings, reports and correspondence filed with any federal, state, or local agencies or courts, which may, in the reasonable judgment of the licensee, adversely affect city and/or subscribers with regard to the chapter or a license agreement, including, but not limited to, any request for protection under bankruptcy laws, or any judgment related to a declaration of bankruptcy. In any administrative or legal proceeding in which licensee is a party, licensee

shall provide a copy of any filed document, upon written request of the city, within five calendar days. To the extent the city desires and may properly participate in the proceeding, licensee agrees that it will not oppose any necessary extension or tolling of time which may allow the city's participation in said matter. However, the licensee may oppose or object to any extension of time that exceeds the period of time used by licensee to provide a copy of the requested filing to the city.

(g) A licensee shall make a complete set of books and records available for inspection, copying and audit by the city in Miami-Dade county, for purposes of ascertaining compliance with requirements of this chapter and the license agreement, subject to subsection (h) below. Such inspection, copying and audit shall be upon reasonable notice and during normal business hours.

(h) The city shall accord all books and records that it inspects under this section the degree of confidentiality such books and records are entitled to under federal and state law. A licensee's books and records shall not constitute public records, except to the extent required by federal and state law. To the extent a licensee considers any books or records that it is required to produce to be confidential or otherwise protected from public disclosure, licensee shall designate which documents it views as protected and provide a written explanation to the city of the legal basis for licensee's claim of protection.

(i) Notwithstanding anything to the contrary in this section, within 30 calendar days of the third annual anniversary of the effective date of a license agreement and no more often than every two years thereafter, the licensee shall upon written notice of the city, submit a report to the city, in a form reasonably acceptable to the city, discussing technological advances and other information necessary to evaluate licensee's compliance with state-of-the-art obligations under a license agreement or this chapter, except as otherwise set forth in a license agreement.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-18. Customer service requirements.

(a) A licensee shall at a minimum maintain all parts of its system in good condition and in accordance with FCC standards. Sufficient employees shall be retained to provide safe service for all of its customers and facilities as set forth in this chapter and a license agreement. The customer service requirements set forth herein are applicable to all services subject to the chapter. Licensee's failure to comply with this subsection shall result in a refund order in the amount of a subscriber's monthly bill, and a fine in the amount of $525.00, per violation, per day or part thereof that the violation continues.

(b) A licensee shall maintain at least two conveniently located business offices and/or service centers within the city limits, unless licensee offers free pick-up and delivery of rental equipment, in which case licensee shall maintain at least one such location. This business office shall be open at minimum from 8:00 a.m. to 6:00 p.m., Monday through Friday, and 8:30 a.m. to 5:00 p.m. on Saturday. Further, licensee shall locate, staff, operate and maintain said office(s) so as to provide all subscribers, including but not limited to those subscribers who may be elderly, disabled or otherwise impaired, with access to its office. The office shall make available for all customers 1) parking within reasonable proximity of the office and 2) sufficient covered waiting areas and adequate seating capacity in an air-conditioned space. Such office must have adequate counter personnel to keep wait time to an average of ten minutes or less. Licensee's failure to comply with this subsection, under normal operating conditions, shall result in a fine in the amount $315.00 per violation, per day or part thereof that the violation continues.

(c) Licensee shall maintain a listed local, toll-free telephone number under the name by which licensee is doing business in the city, and employ a sufficient number of telephone lines, personnel and answering equipment or service to allow reasonable access by subscribers and members of the public to contact the licensee on a full-time basis, 24 hours per day, seven calendar days per week including holidays. Knowledgeable, qualified licensee representatives shall be

available to respond to customer telephone inquiries, 24 hours per day, seven days per week including holidays in, at minimum, English, Spanish and Creole languages. Licensee's failure to comply with this subsection shall result in a refund order in the amount of a subscriber's monthly bill, and a fine in the amount of $315.00, per violation, per day or part thereof that the violation continues.

(d) Licensee shall answer all customer service and repair telephone calls made under normal operating conditions within 30 seconds, including wait time and within an additional 30 seconds to transfer the call. Customers shall receive a busy signal less than three percent of the time. These standards shall be met no less than 90 percent of the time under normal operating conditions except for the period from 12:00 a.m. to 6:00 a.m., where a licensee and the city have mutually agreed in writing to an alternative standard measured on a quarterly basis. Licensee shall employ automatic call distribution technology, or its equivalent, to compile and generate the information required to establish compliance with these standards. Licensee's failure to comply with this subsection shall result in a fine in the amount of $315.00 per violation, per day or part thereof that the violation continues.

(e) A licensee shall employ and maintain sufficient qualified personnel and equipment to be available to:

(1) Accept payments;

(2) Exchange or accept converters or other equipment;

(3) Receive subscriber complaints or requests for service or repairs on a full-time basis, 24 hours per day, seven days per week;

(4) Initiate service installations, undertake normal repairs, initiate action with respect to any subscriber service complaints within 24 hours;

(5) Enable a service technician to respond to service calls 24 hours per day, seven days a week including holidays when more than 25 subscribers served from the same nearest active electronic device, such as an amplifier or node, call with the similar complaint.

Licensee's failure to comply with this subsection shall result in a fine in the amount of $315.00 per violation, per day or part thereof that the violation continues.

(f) Licensee must meet each of the following standards no less than 95 percent of the time under normal operating conditions as measured on a quarterly basis:

(1) Standard installation work shall be performed within seven calendar days after an order has been placed except in those instances where a subscriber specifically requests an installation date beyond the seven calendar day period. If scheduled installation is neither started nor completed as scheduled, the subscriber shall be telephoned by an employee of the licensee the same day. Evening personnel shall also attempt to call subscribers at home between the hours of 5:30 p.m. and 8:00 p.m. on the day prior to any appointment as a reminder of scheduled installation work. If the call to the subscriber is not answered, an employee of the licensee shall telephone the subscriber the next day.

(2) Licensee shall respond to service interruptions promptly and in no event later than 24 hours after the interruption becomes known to licensee. Other service problems shall be responded to promptly and in no event later than 48 hours after the problem becomes known to licensee. All service interruptions, and service problems within the control of licensee, shall be corrected within 48 hours after receipt of a complaint.

(3) The appointment window alternatives made available for installations, service calls, repairs, and other installation activities shall be either a specific time, a four-hour time block during normal business hours, or at the election and discre-

tion of the subscriber, "all day." These options shall be clearly explained to the customer at the time of scheduling.

(4) Licensee may not cancel an appointment with a subscriber after the close of business on the business day prior to the scheduled appointment.

(5) If at any time an installer or technician is running late for a scheduled appointment, an attempt to contact the customer shall be made and the appointment rescheduled as necessary at a time which is convenient for the customer.

(6) Licensee's failure to comply with this subsection shall result in a bill credit in an amount prorated on a daily basis, with a minimum of one day, and a fine in the amount of $315.00, per violation, per day or part thereof that the violation continues.

(g) Subscribers who have experienced two missed installation or service appointments due to the fault of licensee shall receive installation free of charge. If the installation was to have been provided free of charge or if the appointment was for service or repair, the subscriber shall receive a credit on the next bill of not less than $20.00. Licensee's failure to comply with this subsection shall result in a fine in the amount of $105.00 per violation, per day or part thereof that the violation continues.

(h) Disconnection.

(1) Voluntary disconnection.

a. A subscriber may terminate service at any time.

b. A licensee shall promptly disconnect any subscriber who so requests from the cable system of the licensee. No period of notice prior to voluntary termination of service may be required of subscribers by any licensee. So long as the subscriber returns equipment within five business days of the disconnection, no charge may be imposed by any licensee for such voluntary disconnection, or for any cable services delivered after the date of disconnect request.

c. A subscriber may be asked, but not required, to disconnect the equipment of the licensee and return it to the business office, subject to subsection b. above.

d. Any security deposit and/or other funds due the subscriber shall be refunded on disconnected accounts after any customer premises equipment including all converters but excluding wiring have been recovered by the licensee. The refund process shall take a maximum of 45 calendar days from the date equipment is returned to licensee to the date the customer receives the refund.

(2) Involuntary disconnection. If a subscriber fails to pay a monthly subscriber or other fee or charge, the licensee may disconnect the service outlet of the subscriber; however, such disconnection shall not be effected until 35 calendar days after the due date of the monthly subscriber fee or other charge, and ten calendar days advance written notice of intent to disconnect to the subscriber in question. If the subscriber pays within 35 calendar days of the due date and after notice of disconnection has been given, the licensee shall not disconnect. After disconnection, upon payment by the subscriber in full of all proper fees or charges, including the payment of the reconnection charge, if any, the licensee shall reinstate service as soon as practicable. Licensee reserves the right to deny service to any customer who has been repeatedly disconnected for non-payment of services to the extent such rights are consistent with applicable state and federal law.

(3) With respect to any disconnection, whether requested or involuntary, a licensee shall comply with the rules and regulations of the FCC and applicable law with respect to ownership, sale,

removal and abandonment of home wiring. Failure to comply with such rules including, but not limited to providing applicable notice to subscribers and property owners shall be considered a violation of this chapter.

(4) Licensee's failure to comply with this subsection shall result in a fine in the amount of $315.00 per violation, per day or part thereof that the violation continues.

(i) Licensee shall intentionally interrupt service only for good cause and for the shortest time possible and shall use its best efforts to minimize the number of service interruptions between 6:00 p.m. and 11:00 p.m. Licensee shall maintain a written log for all intentional service interruptions and all other service interruptions. Licensee's failure to comply with this subsection shall result in a fine in the amount of $315.00 per violation, per day or part thereof that the violation continues.

(j) Licensee shall notify the city manager or designee immediately if a service interruption affects fifty or more subscribers for a time period greater than one hour. The city manager, in his or her discretion, shall establish appropriate methods for the notification required herein, including any procedures for notification after normal business hours. Licensee's failure to comply with this subsection shall result in a fine in the amount of $210.00 per violation, per day or part thereof that the violation continues.

(k) Licensee shall cause all of its field employees to wear a picture identification badge indicating employment by licensee. This badge shall be clearly visible to the public. All company vehicles shall display the company name, telephone number and logo, if any, in a manner clearly visible to the public. Contractor vehicles shall display the contractor name, telephone number, contractor license number, if applicable, as well as the cable operator's name. Licensee's failure to comply with this subsection shall result in a fine in the amount of $210.00 per violation, per day or part thereof that the violation continues.

(l) A licensee shall develop written procedures for the investigation and resolution of all subscriber or city resident complaints, including, but not limited to, those regarding the quality of service and equipment malfunction, which procedures shall be subject to the review and approval by the city manager. A subscriber or city resident who has not been satisfied by following the procedures of the licensee may file a written complaint with the office of the city manager, who shall investigate the matter and, in consultation with the licensee as appropriate, attempt to resolve the matter. The good faith or lack thereof of the licensee in attempting to resolve subscriber and resident complaints in a fair and equitable manner shall be considered in connection with the renewal application of the licensee. Licensee shall maintain a complete list of all complaints not resolved within three calendar days of receipt and the measures taken to resolve those complaints. This list shall be compiled in a form to be approved by the city. It shall be compiled on a monthly basis. The list for each calendar month shall be supplied to the city no later than the 15th day of the next month. Licensee shall also maintain a list of all complaints received, which list shall be provided to the city within three calendar days of request by the city manager or designee, as part of an inquiry by the city regarding licensee's compliance with this section. Licensee's failure to comply with this subsection shall result in a fine in the amount of $525.00 per violation, per day or part thereof that the violation continues.

(m) Licensee shall permit the city designee to inspect and test the technical equipment and facilities of the system upon reasonable notice not to be less than 72 hours, except in an emergency. Licensee's failure to comply with this subsection shall result in a fine in the amount of $525.00 per violation, per day or part thereof that the violation continues.

(n) Licensee shall abide by the following requirements governing communications with customers, bills and refunds:

(1) Each licensee shall provide to subscribers written information in each of the following areas at the time of installa-

tion, at least once annually, and at any future time upon request by the subscriber:

a. How to use the cable service;

b. Installation and service maintenance policies;

c. All products and services offered;

d. Prices and service options;

e. Channel positions of programming carried on the system;

f. The procedures of the licensee for the receipt and resolution of customer complaints, the address of the licensee and telephone number to which complaints may be reported, and the hours of operation;

g. The telephone number and address of the city, and as required by county ordinance, the county office designated to handle cable complaints and inquiries shall be printed on the back of the bill. The information shall be placed so as to not be confused with similar information for licensee or the county;

h. The availability and costs of a "lock-out" device and other parental control mechanisms;

i. The information of the licensee, collection, and disclosure policies for the protection of the privacy of the subscriber.

j. Licensee's failure to comply with this subsection shall result in a fine in the amount of $210.00 per violation, per day or part thereof that the violation continues.

(2) In addition, each licensee shall provide written notice in its monthly billing, at the request of the city, of any events or public service announcements. The city shall make such a request in writing, with reasonable notice prior to the mailing of any billing by licensee, such that licensee's regular billing cycle shall not be interrupted. City shall pay printing costs and incremental postage expenses for said notices. Licensee's failure to comply with this subsection shall result in a fine in the amount of $525.00 per violation, per day or part thereof that the violation continues.

(3) Licensee bills shall be clear, concise and understandable to subscribers. Licensee's failure to comply with this subsection shall result in a fine in the amount of $210.00 per violation, per day or part thereof that the violation continues.

(4) Credits for service shall be issued no later than the next billing cycle of the customer following the determination that a credit is warranted. Licensee's failure to comply with this subsection shall result in a fine in the amount of $210.00 per violation, per day or part thereof that the violation continues.

(5) A licensee shall provide subscribers, the city commission, and the city manager with at least 30 calendar days advance written notice of any changes in rates, charges, channel lineup, or initiations or discontinuations or changes of service or services offered over the cable system whenever practicable. Licensee's failure to comply with this subsection shall result in a fine in the amount of $210.00 per violation, per day or part thereof that the violation continues.

(o) Upon a subscriber's request, a licensee shall provide a credit to the account of the subscriber, prorated on a daily basis, with a minimum of one day, for any period of two hours or more within a 24 hour period during which a subscriber experienced an interruption of service or substantial impairment of service, whether due to a system malfunction or other cause within the licensee's control. No refunds shall be due for service interruptions directly related to a rebuild, upgrade or routine maintenance of the cable system which is planned, noticed properly to the city and subscribers, and occurs during a time other than between 6:00 p.m. and 11:00 p.m. and lasts for four hours or less. Licensee's failure to comply with this subsection shall

result in a fine in the amount of $315.00 per violation, per day or part thereof that the violation continues.

(p) Billing.

(1) The first billing statement of the licensee after a new installation or service change shall be pro-rated as appropriate and shall reflect any security deposit.

(2) The billing statement of the licensee must be fully itemized, with itemizations including, but not limited to, basic and premium service charges and equipment charges. Invoices shall also clearly delineate all activity during the billing period, including optional charges, rebates and credits.

(3) Any balance not received within ten calendar days after the due date may be assessed an administrative charge not to exceed the average actual fixed and variable cost to administer a delinquent account, subject to applicable law, except that a late charge of not more than five dollars shall be presumed to comply with this subsection. The charge shall appear on the billing statement of the following month. In the event it is determined that a licensee has assessed a late fee in violation of this section, licensee shall pay to subscribers that amount which is ordered by a governmental or judicial body which has properly asserted jurisdiction. Subscribers shall not be charged an administrative fee, a late fee or otherwise penalized for any failure by the licensee, its employees, or contractors, including failure to timely or correctly bill the subscriber, or failure to properly credit the subscriber for a payment timely made.

(4) The licensee must notify the subscriber that payment can be remitted in person at the office of the licensee in the city and inform the subscriber of the address of that office where payment can be made.

(5) Licensee's failure to comply with this subsection shall result in a fine in the amount of $315.00 per violation, per day or part thereof that the violation continues.

(q) Except as incident to a rebuild of the cable system, a licensee may not substantially alter the service being provided to a subscriber (including by retiering, restructuring a tier or otherwise) without the express permission of such subscriber, unless it complies with this subsection.

(1) If a licensee wishes to alter the service being provided to a subscriber (including by retiering, restructuring a tier or otherwise) in such a way that the subscriber shall no longer be able to obtain the same package of services, then the licensee must provide the subscriber with 30 calendar days notice of such alteration, explain the substance and the full effect of the alteration, and provide the subscriber the right within the 30-day period following notice, to opt to receive within the same 30 calendar days any combination of services offered by the licensee.

(2) Except as provided under applicable federal, state, or local law, no charge may be made for any service or product which the subscriber has not affirmatively indicated, in a manner separate and apart from payment of the regular monthly bill, that the subscriber wishes to receive.

(3) Licensee's failure to comply with this subsection shall result in a fine in the amount of $315.00 per violation, per day or part thereof that the violation continues.

(r) If the city reasonably questions a licensee's compliance with any provision of this section, the city may request that the licensee certify in writing to the city, based upon internal due diligence by the licensee, that to the best of knowledge of the licensee it is in compliance with the standards set forth in this section; provided, however, that the city specifically shall identify the performance of licensee that is questioned, and requests certification not more often than semi-annually. At the request of the city, in the

event of a discrepancy between the reports provided to the city pursuant to this section and the certification required herein, the licensee shall submit such documentation as may be required to demonstrate compliance with this section. This documentation shall be submitted within 30 calendar days of the receipt by the licensee of the city's request.

(s) Responsibility for the administration of this chapter, and any license granted pursuant to this chapter, and for the resolution of all complaints against a licensee regarding the quality of service, equipment malfunctions, and related matters, including the authority to order refunds or fines, is hereby delegated to the city manager, who is empowered, among other things, to settle, or compromise any controversy arising from operations of the licensee, on behalf of the city, in accordance with the best interests of the public. In cases where requests for service have been ignored or in cases where the service provided is unsatisfactory for whatever reason, the city manager or designee, hereafter referred to jointly as city manager, shall have the power to require the licensee to provide service, if in the opinion of the city manager or designee such request for service is reasonable. Any person aggrieved by a decision of the city manager, including the licensee, may appeal the matter to the city commission for hearing and determination. The city commission may accept, reject or modify the decision of the city manager. No adjustment, settlement, or compromise, whether instituted by the city manager or by the city commission shall be contrary to the provisions of this chapter or any license agreement issued pursuant to this chapter, and neither the city manager nor the city commission, in the adjustment, settlement, or compromise of any controversy shall have the right or authority to add to, modify or delete any provision of this chapter or of the license, or to interfere with any rights of subscribers or any licensee under applicable federal, or state law or private contract.

(t) (1) In addition to the powers delegated in subsection 11-18(s) above, the city manager shall have the authority to order credits from a licensee to individual cable subscribers who have submitted a written complaint to the city and to assess fines against a licensee for any violation of this chapter or any license issued pursuant to this chapter, which fines shall be paid to the city.

(2) In ordering credits to cable subscribers, the city manager shall be governed as set forth throughout this section, in which the refund indicated is expressed as a percentage of the monthly bill of the subscriber. The credits set forth are to be made on a per violation basis with each day of a continuing violation constituting a separate violation. The credit ordered by the city manager pursuant to this section shall not exceed 100 percent of a monthly bill of the subscriber, unless a violation has continued at least 30 calendar days from the date first reported to the licensee.

(3) The fines set forth in this section are to be assessed on a per violation basis, with each day of a continuing violation constituting a separate violation. Where a credit required by this section is not possible because service has been terminated, licensee shall issue a refund to the former subscriber for the appropriate amount, provided that the licensee can locate the former subscriber after using reasonable efforts to do so.

(4) Prior to ordering any credit and/or assessing a fine pursuant to this chapter, the city manager shall mail to the licensee a written notice, by hand delivery or certified or registered mail, of the proposed credit and/or fine, specifying the violation at issue. The licensee shall have ten calendar days from the date of receipt of the written notice to demonstrate the violation has been cured or to file a written response to the notice of the city manager describing the plan to cure. In the sole discretion of the city manager, a fine, credit or refund may be waived, if the issue has been cured or the city manager believes the issue will be cured according to the proposed plan. Written response of the licensee shall be signed

by management level personnel of licensee and all statements contained therein shall be regarded as material representations of the licensee to the city.

(5) Prior to ordering a credit, refund and/or assessing a fine, the city manager shall consider any justification or mitigating factor advanced in the written response of the licensee, including but not limited to rebates or credits to the subscriber or a cure of the violation. The city manager may, after consideration of the response of the licensee, waive or reduce any proposed credit, refund and/or fine. In the case of a complaint from a single subscriber or a violation of this chapter or any license issued pursuant to this chapter in which only a single subscriber has been affected, the city manager may not assess any fine if the licensee has reasonably resolved the complaint or cured the violation within a reasonable time frame not to exceed ten calendar days. However, said subscriber may be entitled to a credit as provided herein.

(6) Subsequent to the notice of proposed credit, refund and/or fine to licensee and consideration of the response of the licensee, if any, the city manager may issue an assessment of credit, refund and/or fine. The credit, refund and/or fine shall be paid within 30 calendar days of written notice to the licensee. If said credit, refund and/or fine is not paid by licensee in the next bill cycle or within such 30-day period, as the case may be, the city may, at its discretion, withdraw immediately the amount thereof from the security fund. Upon such withdrawal, the city shall notify licensee of the withdrawal amount, after which licensee shall have ten calendar days from the date of such notice to deposit in the security fund an amount sufficient to restore the security fund to the amount specified in the license agreement. This credit, refund and/or fine shall constitute liquidated damages to the subscriber and city for the violation and the city may enforce payment of the credit, refund and/or fine in any court having jurisdiction. It is the intent of the city to determine fines as a reasonable estimate of the damages suffered by the city and/or its subscribers, whether actual or potential, and may include without limitation, increased costs of administration and other damages difficult to measure.

(7) Licensee may appeal any decision of the city manager directly to the city commission within 30 calendar days of notice of the decision to the licensee.

(8) Intentional misrepresentation by a licensee in any response to a notice of proposed credit, refund and/or fine, whether oral or written, shall be considered a material breach of the license agreement, subject to a penalty of no less than $5,250.00 in liquidated damages to the city, and shall be grounds for license revocation.

(9) In addition to complying with the customer service standards set forth in this chapter or in any license issued pursuant to this chapter, a licensee shall, at minimum, comply with all customer service standards applicable to cable systems of the FCC and any other applicable federal, state or county law concerning customer service standards, consumer protection, and unfair or deceptive trade practices.

(10) The city expressly reserves the right to consider violations of the customer service requirements in evaluating any renewal, modification or transfers of any license agreement.

(Ord. No. 11936, § 3, 6-8-00; Ord. No. 13142, § 6, 2-11-10)

Sec. 11-19. Subscriber privacy.

(a) A licensee shall at all times protect the privacy of all subscribers to the full extent required by section 631 of the Cable Act, 47 U.S.C. § 551, and state law. A licensee shall not condition subscriber or other service on the grant of permission of the subscriber to disclose information which, pursuant to federal or state

law, cannot be disclosed without the explicit consent of the subscriber. No penalties or extra charges may be invoked by the licensee for a failure of the subscriber to grant consent.

(b) Unless otherwise permitted by federal or state law, neither the licensee nor its agents or employees shall, without the prior and specific written authorization of the subscriber involved, sell, or otherwise make available for commercial purposes the names, addresses or telephone numbers of any subscriber or subscribers, or any information which identifies the individual viewing habits of any subscriber or subscribers.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-20. Discrimination prohibited.

(a) No licensee may, in its rates or charges, or in the availability of the services or facilities of its system, or in any other respect, make or grant undue preferences or advantages to any subscriber, potential subscriber, or group of subscribers or potential subscribers, nor subject any such persons or group of persons to any undue prejudice or any disadvantage. A licensee shall not deny, delay, or otherwise burden service or discriminate against subscribers or users on the basis of age, race, creed, religion, color, sex, handicap, national origin, marital status, or political affiliation, except for discounts for senior citizens, the economically disadvantaged or disabled that are applied in a uniform and consistent manner. A licensee may also offer bulk discounts to multiple dwelling buildings to the extent such discounts are otherwise permissible by law.

(b) A licensee shall not deny cable service to any potential subscriber because of the income of the residents of the area in which the subscriber resides.

(c) A licensee shall not refuse to employ, nor discharge from employment, nor discriminate against any person in compensation or in terms, conditions or privileges of employment because of age, race, creed, religion, color, sex, disability, national origin, marital status, or political affiliation. The licensee shall comply with federal, state and local laws and regulations governing equal employment opportunities, as the same may be from time to time amended.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-21. Use of streets.

(a) A licensee shall, at all times, comply with other applicable provisions of this Code, or as such may hereafter be amended.

(b) Any pavements, sidewalks, curbing or other paved area taken up or any excavations made by a licensee shall be done under the supervision and direction of the city under permits issued for work by the proper officials of the city, and shall be completed in such manner as to give the least inconvenience to the inhabitants of the city. A licensee shall, at its own cost and expense, and in a manner approved by the city, replace and restore any such pavements, sidewalks, curbing or other paved areas in as good a condition as before the work involving such disturbance was done, and shall also prepare, maintain and provide to the city's resilience and public works department full and complete plats, maps and records showing the exact locations of its facilities located within the public streets, ways, and easements of the city. A construction plan with strand maps is required 30 calendar days prior to commencement of construction in a particular area.

(c) A licensee shall, at its expense, protect, support, temporarily disconnect, relocate, or remove, any of its property when required by the city by reason of traffic conditions, public safety, street construction, street resurfacing or widening, change of street grade, installation of sewers, drains, water pipes, power lines, signal lines, tracks, or any other type of municipal or public utility improvements.

(d) A licensee shall, on the request of any person holding a building moving permit issued by the city, temporarily raise or lower its wires to permit the moving of buildings. The expense of such temporary removal or raising or lowering of wires shall be paid by the person requesting same, and the licensee shall have the authority to require such payment in advance, except in the case where the requesting person is the city or other government agency, in which case no

such payment shall be required. The licensee shall be given not less than five calendar days advance notice to arrange for such temporary wire changes.

(e) A licensee shall, upon notice to the city of not less than seven calendar days, emergency situations excepted, have the authority to trim the trees or other natural growth upon and overhanging the streets so as to prevent the branches of such trees from coming in contact with the wires, cables and other equipment of the licensee, except that, at the option of the city, such trimming may be done by it or under its supervision and direction at the expense of the licensee.

(f) A licensee shall use, with the permission of the owner, existing underground conduits (if applicable) or overhead utility facilities whenever and wherever practicable as determined by the city, provided that nothing herein shall constitute a waiver of licensee's obligations under other applicable sections of the Code. Copies of agreements between a licensee and third party for use of conduits or other facilities shall be filed with the city, provided that the licensee shall have the right to redact proprietary and confidential information in such agreements as it pertains to financial arrangements between the parties.

(g) All wires, cable lines, and other transmission lines, equipment and structures shall be installed and located to cause minimum interference with the rights of property owners. The city may issue such rules and regulations concerning the installation and maintenance of a cable system installed in, on, or over the streets, as may be consistent with this chapter and the license agreement.

(h) All safety practices required by law shall be used during construction, maintenance and repair of a cable system. A licensee shall not place facilities, equipment or fixtures where any gas, electric, telephone, water, sewer or other utility facilities shall interfere, or obstruct or hinder in any manner the various utilities serving the residents of the city.

(i) A licensee shall, at all times:

(1) Install and maintain its wires, cables, fixtures and other equipment in an orderly and workmanlike manner and in accordance with the requirements of federal, state, county and city laws, as well as the South Florida Building Code and Electrical Safety Ordinances and any other applicable building or electrical safety code, and all other applicable rules, regulations, and orders, as they may be hereinafter amended or enacted, and in such manner that the installations of the city shall not receive interference.

(2) Keep and maintain in a safe, suitable, substantial condition, and in good order and repair, all structures, lines, equipment, and connections in, over, under, and upon the streets, sidewalks, alleys, and public ways or places of the city, wherever situated or located.

(j) On streets where both electrical and telephone utility wiring are located underground, either at the time of initial construction of a cable system or at any time thereafter, the cable of a licensee shall also be located underground at the expense of the licensee, consistent with chapter 54 of this Code, as amended. Between a street and a residence of a subscriber, the cable of the licensee must be located underground if both electrical and telephone utility wiring are located underground. The city shall encourage, to the extent feasible, that the public utility and the licensee cooperate in opening of trenches and making such trenches available to all parties with the understanding that the costs of opening and refilling of such trenches would be shared equally by all users of such trenches.

(k) In the event the use of any part of a cable system is discontinued for any reason for a continuous period of six months, or in the event such system or property has been installed in any street without complying with the requirements of this chapter or a license agreement, or the license has been terminated, canceled, or expired, the licensee, within 30 calendar days

after written notice by the city, shall commence removal from the streets of all such property as the city may require.

(l) The city may extend the time for the removal of equipment of the licensee and facilities for a period not to exceed 180 calendar days, and thereafter such equipment and facilities may be deemed abandoned.

(m) In the event of such removal or abandonment, the licensee shall restore the area to as good a condition as prior to such removal or abandonment.

(n) All licensee cable system distribution devices to be located on streets or private city property shall be installed, pursuant to this Code, in such a way as to eliminate or minimize any potentially adverse impact. All proposed locations shall be reviewed by the city manager's office or its designated city department to ensure compliance with these and all other applicable policies and procedures relating to the placement of distribution devices on streets or city private property. Proposed locations may require review and approval by various city departments, as appropriate.

(o) In no case shall distribution devices be placed in the following locations:

(1) Within scenic transportation corridors.

(2) Within historical preservation districts.

(3) Within a specified 25-foot corner visibility triangle.

(4) Within a specified ten-foot driveway visibility triangle.

(5) Within 15 feet of any fire hydrant, fire callbox, police callbox, or other emergency facility.

(p) The city may require that these distribution devices located on streets and city private property be installed with the following:

(1) Landscaping.

(2) Visual screening.

(3) Fencing, barriers, or other security features.

When required, the licensee shall ensure that all landscaping, visual screening, fencing, barriers, or other security features are compatible with the characteristics of the surrounding landscape and architectural features and require minimal maintenance. The city shall not unreasonably require landscaping, visual screening, fencing, barriers, or other security features that are inconsistent with the character of the immediate area in which the distribution devices are to be installed.

Recognizing that even minimal landscaping, visual screening, fencing, barriers, or other security features may be susceptible to overgrowth, disease, decay and disrepair, the city shall require the licensee to maintain and/or repair/replace this landscaping, visual screening, fencing, barriers, or other security features.

(q) Placement of distribution devices on city private property shall conform to all city Charter, Code, and administrative requirements.
(Ord. No. 11936, § 3, 6-8-00; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14138, § 4, 2-9-23)

Sec. 11-22. Enforcement remedies.

(a) In addition to any other remedies available at law or in equity, except as otherwise specifically provided in this chapter, or in any license agreement, the city may impose a fine in the amount of $500.00 per violation per day or part thereof for any violation of this chapter.

(b) In addition to any other remedies available at law or in equity or provided in this chapter or in any license agreement, the city may apply any one or combination of the following remedies in the event a licensee violates this chapter, its license agreement, applicable state or federal law, or applicable local law or order:

(1) Revoke the license pursuant to the procedures specified in section 11-25 hereof.

(2) In addition to or instead of any other remedy, the city may seek legal or equitable relief from any court of competent jurisdiction.

(c) Before imposing any fine pursuant to this section or any other section herein, the city shall give licensee written notice of the violation and its intention to assess such damages, which notice shall contain a specific description of the alleged violation. Following receipt of such notice, licensee shall have 30 calendar days to cure the violation, or to reach agreement with city manager or designee on a program to cure the violation, and the city shall make good faith reasonable efforts to assist the licensee in resolving the violation. If the violation is not cured, or an agreement to cure is not reached, within that 30 day period, the city may collect all fines owed, beginning with the date of the notice of violation by the city, either by removing such amount from the security fund or through any other means allowed by law.

(d) In determining which remedy or remedies are appropriate, the city shall take into consideration the nature of the violation, the person or persons bearing the impact of the violation, the nature of the remedy required in order to prevent further violations, and such other matters as the city determines are appropriate in the public interest.

(e) Failure by the city to enforce any requirements of a license agreement or this chapter shall not constitute a waiver of the city's right to enforce that violation or subsequent violations of the same type or to seek appropriate enforcement remedies.

(f) In any proceeding wherein there exists an issue, properly noticed by the city pursuant to the terms of this chapter, with respect to a licensee's performance of its obligations pursuant to this chapter or a license agreement, the licensee has, throughout any such proceedings and appeals thereof, the burden of proof that said licensee is in compliance with the terms of the chapter. The city commission may find a licensee that does not demonstrate compliance with the terms and conditions of this chapter in default and apply any one or combination of the remedies otherwise authorized by this chapter.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-23. Renewal of license.

Renewal shall be conducted in a manner consistent with Section 626 of the Cable Act, 47 U.S.C. 546. To the extent such additional requirements are consistent with applicable law, the following requirements shall apply:

(a) Upon completion of the review and evaluation process set forth in Section 626(a)(1), (2) of the Cable Act, 47 U.S.C. 546, should that process be invoked, the city shall notify the licensee, by certified or registered mail that it may file a formal renewal application including a renewal proposal. The notice shall specify the minimum information to be included in the renewal application and the deadline for filing the application, which shall be no earlier than thirty (30) calendar days following the date of the notice.

(1) The application shall comply with the requirements of section 11-8 hereof and provide the specific information requested in the notice or such other information as is designated by the city in the notice requesting a formal renewal proposal. If the licensee does not submit a formal renewal application by the date specified in the notice to the licensee by the city, given pursuant to this subsection, the licensee shall be deemed not to be seeking renewal of its license.

(2) Upon receipt of the formal renewal application, the city shall publish notice of its receipt and make copies available to the public. The city, following public notice of no less than ten calendar days, may hold one or more public hearings on the renewal application.

(b) With regard to any renewal application, in the event a public hearing on such application is held, or in the event that the city commission considers such application without a public hearing, the city commission shall either:

(1) Pass a resolution agreeing to renew the license; or

(2) Pass a resolution that makes a preliminary assessment that the license should not be renewed; or

(3) In the case of an informal proposal, pass a resolution to enter into informal negotiations of a license agreement.

(c) If a preliminary assessment is made that a license should not be renewed, at the request of the licensee or on its own initiative, the city shall commence a proceeding in accordance with Section 626(c) of the Cable Act, 47 U.S.C. § 546(c) to address the issues set forth in Section 626(c)(1)(A)—(D) of the Cable Act, 47 U.S.C. § 546(c)(1)(A)—(D). Any denial of a proposal for renewal that has been submitted in compliance with subsection (b) of § 546 shall be based on one or more adverse findings made with respect to the factors described in § 546(c)(1)(A)—(D), pursuant to the record of proceedings under § 546(c). The city shall not base a denial of renewal on a failure to substantially comply with the material terms of the license under § 546(c)(1)(A) or on events considered under § 546(c)(1)(B) unless the city has provided the licensee with notice and opportunity to cure, or in any case in which it is documented that the city has waived its right to object, or the licensee gives written notice of a failure or inability to cure and the city fails to object within a reasonable time after receipt of such notice.

(d) Any request to initiate a renewal process or proposal for renewal not submitted within the time period set forth in Section 626(a) of the Cable Act, 47 U.S.C. § 546(a), or submitted within such time frame and the parties agree that the informal process shall be first initiated, shall be deemed an informal proposal for renewal and shall be governed in accordance with Section 626(h) of the Cable Act, 47 U.S.C. § 546(h). The city may hold one or more public hearings or implement other procedures under which comments from the public on an informal proposal for renewal may be received. Following such public hearings or other procedures, the city commission shall determine whether the license should be renewed and the terms and conditions of any renewal.

(e) If the city commission grants a renewal application, the city and the licensee shall agree on the terms of a license agreement, pursuant to the procedures specified in section 11-9 of this chapter, before such renewal becomes effective.

(f) If renewal of a license is lawfully denied, the city may acquire ownership of the cable system or effect a transfer of ownership of the system to another person upon approval of the city commission. Any such acquisition or transfer shall be at fair market value, determined on the basis of the cable system valued as a going concern but with no value allocated to the license itself. The city may not acquire ownership of the system while an appeal of a denial for renewal is pending in any court pursuant to the Cable Act, 47 U.S.C. § 546(e).

(g) If renewal of a license is lawfully denied and no appeal to a court is pending, and the city does not purchase the cable system or approve or effect a transfer of the cable system to another person, the city may require the former licensee to remove its facilities and equipment at the expense of the former licensee. If the former licensee fails to do so within a reasonable period of time, the city may have the removal completed at the expense of the former licensee and/or surety.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-24. Transfer, sale, and assignment.

(a) No transfer, sale or assignment of any interest in a license shall occur without prior approval of the city.

(b) An application for a transfer, sale or assignment of any interest of a license shall meet the requirements of section 11-8 hereof, and provide complete information on the proposed transaction, including but not limited to details on the legal, financial, technical and other qualifications of the transferee, and on the potential impact of the transfer on subscriber rates and service. Except in the case of a pro forma transfer as defined in section 11-2, the application shall provide, at a minimum, the information required in section 11-8 or such other information as is specified in a license agreement in lieu of the information required in section 11-8. In addition, the applicant shall provide to the city any and all information provided to Miami-Dade County in connection with the transfer.

(c) An application for approval of a pro forma transfer of a license shall be considered granted on the 61st calendar day following the filing of such application with the city unless, prior to

that date, the city notifies the licensee to the contrary. An application for approval of a pro forma transfer of a license shall clearly identify the application as such, describe the proposed transaction, and explain why the applicant believes the transfer is pro forma. Unless otherwise requested by the city within 30 calendar days of the filing of an application for a pro forma transfer, the applicant shall be required only to provide the information required in subsections 11-8(e)(1), (3), (12) and (14) with respect to the proposed transferee.

(d) In making a determination on whether to grant an application for a transfer of a license, the city commission shall consider the legal, financial, technical and other qualifications of the transferee to operate the system; whether the incumbent cable operator is in substantial compliance with the material terms of its license agreement and this chapter and, if not, the proposed commitment of the transferee to cure such noncompliance; and whether operation by the transferee would adversely affect cable services to subscribers, or otherwise be contrary to the public interest.

(e) No application for a transfer of a license shall be granted unless the transferee, if the holder of the license, agrees in writing to abide by and accept all terms of this chapter, as amended, and the license agreement, and to assume all obligations and liabilities of the previous licensee, whether known or unknown, under this chapter, as amended, and the license agreement. If such transferee will not be the holder of the license, such transferee will sign an acknowledgment ensuring compliance by the licensee with the license agreement and the chapter. The city shall certify to licensee, upon request, all issues of licensee's performance which are known and pending.

(f) Subject to applicable law, approval by the city of a transfer of a license does not constitute a waiver or release of any of the rights of the city under this chapter or the license agreement, whether arising before or after the date of the transfer.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-25. Revocation or termination of license.

(a) A license may be revoked by the city commission for failure of the licensee to construct, operate or maintain the cable system as required by this chapter or the license agreement, or for any other material violation of this chapter or material breach of the license agreement. To invoke the provisions of this subsection (a), the city shall give the licensee written notice, by certified mail at the last known address, that licensee is in material violation of this chapter or in material breach of the license agreement and describing the nature of the alleged violation or breach with specificity. If within 30 calendar days following receipt of such written notice from the city to the licensee, the licensee has not cured such violation or breach, or has not entered into a written agreement with the city manager or designee on a program to cure the violation, or has not demonstrated that the violation cannot be cured, the city may give written notice to the licensee of its intent to revoke the license, stating reasons.

(b) Prior to revoking a license under subsection (a) hereof, the city commission shall hold a public hearing, upon no less than ten calendar days written notice to the licensee, at which time the licensee and the public shall be given an opportunity to be heard. Following the public hearing the city commission may determine whether to revoke the license based on the evidence presented at the hearing, and other evidence of record. If the city commission determines to revoke a license, it shall issue a written decision setting forth the reasons for its decision. A copy of such decision shall be transmitted to the licensee.

(c) Notwithstanding subsections (a) and (b) hereof, any license may, at the option of the city following a public hearing before the city commission, be revoked 120 calendar days after an assignment for the benefit of creditors or the appointment of a receiver or trustee to take over the business of the licensee, whether in a receivership, reorganization, bankruptcy assignment for the benefit of creditors, or other action or proceeding, unless within that 120-day period:

(1) Such assignment, receivership or trusteeship has been vacated; or

(2) Such assignee, receiver or trustee has fully complied with the terms and conditions of this chapter and the license agreement and has executed an agreement, approved by a court having jurisdiction, assuming and agreeing to be bound by the terms and conditions of this chapter and the license agreement.

(d) In the event of foreclosure or other judicial sale of any of the facilities, equipment or property of a licensee, the city may revoke the license, following a public hearing before the city commission, by serving notice upon the licensee and the successful bidder at the sale, in which event the license and all rights and privileges of the license shall be revoked and shall terminate 30 calendar days after serving such notice, unless:

(1) The city has approved the transfer of the license to the successful proposer; and

(2) The successful proposer has covenanted and agreed with the city to assume and be bound by the terms and conditions of the license agreement and this chapter.

(e) If the city revokes a license, or if for any other reason a licensee abandons, terminates or fails to operate or maintain service to its subscribers for a period of six months, the following procedures and rights are effective:

(1) The city may require the former licensee to remove its facilities and equipment at the expense of the former licensee. If the former licensee fails to remove facilities and/or equipment within a reasonable period of time, the city may have the removal done at the expense of the former licensee and/or surety.

(2) The city, by resolution of the city commission, may acquire ownership, or effect a transfer, of the cable system at an equitable price.

(3) If a cable system is abandoned by a licensee, the city may sell, assign or transfer all or part of the assets of the system.

(f) Where the city has issued a license specifically conditioned in the license agreement upon the completion of construction, system upgrade or other specific obligation by a specified date, failure of the licensee to complete such construction or upgrade, may result in the revocation of the license as set forth in this section, unless the city, at its discretion and for good cause demonstrated by the licensee, grants an extension of time.

(g) No adverse action against a licensee may be taken by the city pursuant to this section except after a noticed public hearing at which the licensee is given an opportunity to participate. (Ord. No. 11936, § 3, 6-8-00)

Sec. 11-26. Continuity of service mandatory.

(a) It is the right of all subscribers to receive all available services requested from the licensee as long as all financial and other obligations to the licensee are satisfied.

(b) In the event of a termination or transfer of a license for whatever reason, the licensee shall ensure that all subscribers receive continuous, uninterrupted service regardless of the circumstances. The licensee shall cooperate with the city to operate the system for a temporary period following termination or transfer as necessary to maintain continuity of service to all subscribers. The temporary period shall not exceed 12 months without the written consent of the licensee. During such period the cable system shall be operated under such terms and conditions as the city and the licensee may agree, or such other terms and conditions that shall continue, to the extent possible, the same level of service to subscribers and provide reasonable compensation to the cable operator.

(c) In the event a licensee fails to operate the system for seven consecutive calendar days without prior approval of the city or without just cause, the city may, at its option, operate the system or designate an operator until such time as the licensee restores service under conditions acceptable to the city or until a permanent operator is selected. If the city is required to fulfill this obligation for the licensee, the licensee

shall reimburse the city for all costs or damages resulting from the failure of the licensee to perform, including city's costs for city staff, consultants and other professionals necessary to continue operation of the system. Additionally, the licensee shall cooperate with the city to allow city employees and/or city agents free access to the facilities and premises of the licensee for purposes of the licensee of continuing system operation. To the extent that revenues are collected as a result of operation of the system under this subsection, the city shall have the right to collect license fees on such revenues subject to the terms and conditions of this chapter.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-27. Rates.

(a) Nothing in this chapter shall prohibit the city from regulating rates for cable services to the full extent permitted under federal law, as it may be amended in the future. The city reserves the right to implement future legislation consistent with applicable law, and to petition the FCC for relief as may be permitted by law.

(b) Any rate or charge established for cable service, equipment, repair and installation shall be reasonable to the public and, to the extent applicable, in compliance with FCC guidelines. Where FCC guidelines exist, licensee's compliance with such guidelines shall be considered reasonable. Upon written request from the city or its agent, licensee shall provide all requested data, records and documentation to show the reasonableness of the rates so long as such requests comply with FCC guidelines or other applicable law.

(c) Should a licensee desire to change any rate or charge, it shall submit a written notice of the amounts and effective date of such changes to the city manager in a manner consistent with Federal Communications Commission cable rate regulation standards or other applicable law in effect at the time. Prior to the implementation of a change in rates, the city may require the licensee to notify each subscriber, by (1) placing an announcement of not less than one quarter page in a newspaper(s) of general circulation, (2) via the cable system, or (3) through bill inserts, of the proposed rate change and the date the new rates will be effective.

(d) A licensee granted a license pursuant to this chapter may provide reasonable discount rates consistent with section 623(e)(1) of the Cable Act, in a manner acceptable to the city, for qualified subscribers over 62 years of age and/or residing in government funded housing pursuant to 42 U.S.C. 1437f.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-28. Area-wide interconnection.

(a) Upon request of the city, a licensee shall interconnect with any or all other cable systems located within the city or serving subscribers within the city. Interconnection of systems shall be for the sole purpose of permitting interactive transmission and reception of public, government and education program material, and may be done by direct cable connection, microwave link, satellite, or other appropriate method, as mutually agreed by the affected cable operators and approved by the city manager.

(b) Licensee shall, where it does not own the affected system or systems, immediately initiate good faith negotiations with the operators of the other affected system or systems in order to facilitate the construction and operation of the interconnection link and the equitable sharing of costs among the participants. Licensee shall report to the city the results of such negotiation no later than 30 calendar days after the date of receipt of request from the city. Where licensee owns the affected system, licensee shall report to the city on the timing and, method of interconnection within 15 calendar days of receipt of the city's request.

(c) The licensee may be granted reasonable extensions of time to interconnect if the city finds that:

(1) The licensee has negotiated in good faith and has failed to obtain an approval from the system or systems of the proposed interconnection; or

(2) The cost of the interconnection would be unreasonably high.

(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-29. Performance evaluation.

(a) The city may conduct periodic performance evaluations of a licensee as the city determines is necessary. A licensee shall fully cooperate with these evaluations in good faith. Evaluation session shall be properly noticed and open to the public.

(b) Topics which may be discussed at any evaluation session may include, but are not limited to, cable service; application of new technologies; cable system performance; cable services provided; programming offered; subscriber complaints; privacy; modifications to license; judicial and FCC rulings; and the city or licensee rules; provided that nothing in this subsection shall be construed as requiring the renegotiation of a license.

(c) If the city implements a survey of cable subscribers in connection with a performance evaluation, the city may require a licensee to distribute a city questionnaire to its subscribers at licensee's expense, provided however that such distribution at licensee's expense shall not occur more than once every two years. The city shall provide a licensee with no less than four months notice of its intent to implement a survey as set forth herein. The city and a licensee shall cooperate and mutually agree on the content of such a survey.

(d) Upon request and upon reimbursement of the city's copying costs, the licensee may receive copies of all responses.

(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-30. Administration.

(a) The city manager, either directly or through a duly appointed designee, shall have the responsibility for overseeing the day-to-day administration of this chapter and license agreements. The city manager shall be empowered to take all administrative actions on behalf of the city, except for those actions specified in this chapter that are reserved to the city commission. The city manager may recommend that the commission take certain actions with respect to the license. The city manager shall keep the commission updated of developments in cable technology and provide the city commission with assistance, advice and recommendations as appropriate.

(b) Subject to federal and state law, the city commission shall have the sole authority to regulate rates for cable services, grant licenses, authorize the entering into of license agreements, modify license agreements, renew or deny renewal of licenses, revoke licenses, and authorize the transfer of a license.

(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-31. Force majeure.

In the event the performance of the licensee of, or compliance with, any of the provisions of this chapter or the license agreement is prevented by a cause or event not within the control of the licensee, such inability to perform or comply shall be deemed excused and no fines or sanctions shall be imposed as a result thereof, provided, however, that licensee uses all practicable means to expeditiously cure or correct any such inability to perform or comply. For purposes of this chapter and any license agreement granted or renewed hereunder, causes or events not within the control of the licensee shall include, without limitation, acts of God, floods, earthquakes, landslides, hurricanes, fires and other natural disasters, acts of public enemies, riots or civil disturbances, sabotage, strikes and restraints imposed by order of a governmental agency or court. Causes or events within control of the licensee, and thus not falling within this section, shall include, without limitation, the financial inability of the licensee to perform or comply, economic hardship, and misfeasance, malfeasance or nonfeasance by any of directors, officers, employees, contractors or agents of the licensee.

(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-32. Applicability.

This chapter shall be applicable to all cable licenses granted, renewed or transferred on or after the effective date of this chapter, and shall

apply to all cable licenses granted prior to the effective date of this chapter, to the full extent permitted by state and federal law.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-33. Municipal cable system ownership authorized.

(a) To the full extent permitted by law, the city may acquire, construct, own, and/or operate a cable system.

(b) Nothing in this chapter shall be construed to limit in any way the ability or authority of the city to acquire, construct, own, and/or operate a cable system to the full extent permitted by law.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-34. Reservation of rights.

(a) The city reserves the right to amend this chapter as it shall find necessary in the lawful exercise of its police powers.

(b) Any additional regulations adopted by the city shall be incorporated into this chapter and complied with by all licenses within 30 calendar days of the date of adoption of such additional regulations unless imposition of such regulations would be otherwise prohibited by applicable law or the regulation provides for a longer time to comply.

(c) The city reserves the right to exercise the power of eminent domain to acquire the property of the cable system of the licensee, consistent with applicable federal and state law. Notwithstanding anything to the contrary, this section shall not enlarge or restrict the exercise of eminent domain of the city except to the extent provided by applicable law.

(d) The city shall at all times have the right, upon reasonable notice and during normal business hours, to examine records and to inspect the facilities of the licensee to the extent needed to monitor the compliance of the licensee with and performance under this chapter and the license agreement.
(Ord. No. 11936, § 3, 6-8-00)

Sec. 11-35. Florida Consumer Choice Act of 2007.

This chapter shall be construed in accordance with the Florida Consumer Choice Act of 2007 ("the Act") so that the city shall retain all rights and obligations permitted by the Act to be retained by the city as of June 30, 2007, and so that the obligations and rights of all persons which have previously obtained permits and previously entered into agreements with the city and all persons which shall obtain permits in the future and enter into agreements with the city in the future for work to be performed or conducted within and any related maintenance and restoration of the city's public right-of-way as defined in section 54-1, as amended, and for any other continuing obligation to the city as permitted by law, shall be construed as in force as of June 30, 2007, and so as to comply with the nondiscriminatory mandate of the Act.
(Ord. No. 12928, § 2, 6-28-07)

Chapter 11.5

CIVILIAN COMPLAINT INVESTIGATION AND REVIEW*

Article I. In General

Secs. 11.5-1—11.5-25. Reserved.

Article II. The City of Miami Civilian Investigative Panel

Sec. 11.5-26. Created; established.
Sec. 11.5-27. Purposes, powers and duties.
Sec. 11.5-28. Membership; qualifications; nomination of members; nominating committee; appointment and filling vacancies; terms of office.
Sec. 11.5-29. Officers.
Sec. 11.5-30. Meetings, quorum and voting; attendance requirements; parliamentary procedures and rules of procedure; recordation.
Sec. 11.5-31. Procedures for investigation of direct filed cases, investigation, or review of internal affairs' closed cases; timeframes for and completion of investigations and reviews; review of police policies, procedures, and practices; and issuance of reports.
Sec. 11.5-32. Subpoena power.
Sec. 11.5-33. Procedures related to city employees and witnesses.
Sec. 11.5-34. Executive director; independent counsel; assistance from city officials.
Sec. 11.5-35. Review and approval of annual budget.
Sec. 11.5-36. Notices and filing of records.
Sec. 11.5-37. Annual reports.

*__Editor's note—__Ord. No. 12188, § 1, adopted February 14, 2002, enacted provisions intended for use as §§ 11.5-1—11.5-12. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as §§ 11.5-25—11.5-37.

ARTICLE I. IN GENERAL

Secs. 11.5-1—11.5-25. Reserved.

ARTICLE II. THE CITY OF MIAMI CIVILIAN INVESTIGATIVE PANEL

Sec. 11.5-26. Created; established.

The Civilian Investigative Panel ("CIP") is hereby created and established.
(Ord. No. 12188, § 1, 2-14-02)

Sec. 11.5-27. Purposes, powers and duties.

The purpose, powers and duties of the CIP are to:

(1) Act as independent civilian oversight of the sworn officers of the city's police department;

(2) Exercise its powers so as to not interfere with any pending or potential criminal investigations or prosecutions and conduct its activities consistent with applicable law, including but not limited to the Florida Government in the Sunshine Law, and with applicable labor contracts;

(3) Engage the services of trained investigators and secure adequate training for its members, including training in police policies and practices;

(4) Conduct investigations consistent with the procedures set forth in section 11.5-31, reviews, inquiries, audits, and public hearings to make factual determinations, facilitate resolutions, and propose recommendations as to disposition or other outcome to the police chief, city manager, or, where appropriate, other city officials regarding:

a. Allegations of misconduct by officers of the city's police department;

b. Incidents of uses of force by officers of the city's police department resulting in death or great bodily harm to a person, with the mandatory duty to automatically investigate police shootings or other uses of force resulting in the death of a person; and

c. incidents, events, or systemic problems involving officers of the city's police department that affect the community.

(5) Promote community understanding and utilization of the process by which complaints are submitted and reviewed or investigated by the CIP and/or the city's police department;

(6) Forward complaints alleging criminal activity to the city's police department;

(7) Request issuance of subpoenas after consultation with the state attorney of the Eleventh Judicial Circuit in and for Miami-Dade County for the purpose of obtaining evidence from witnesses and production of books, papers, and other evidence, which subpoenas shall be signed, served, and enforced pursuant to applicable law, provided that no immunity be conferred by the CIP, and further, that no actions of the CIP may interfere with any pending or potential criminal investigation or prosecution;

(8) Make written recommendations to the police chief as to current and proposed city police department policies, procedures, and practices concerning but not limited to training, recruitment, and disciplinary procedures;

(9) Issue reports, requests, and recommendations to the mayor, city commission, city attorney, city manager, police chief, and the public concerning any matter within the CIP's authority;

(10) Establish, in collaboration with the executive director, written rules and standard operating procedures for internal governance and standards for training for CIP members and staff; and

(11) Evaluate the performance of the executive director and of the independent counsel annually pursuant to written criteria established by the CIP.

(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17)

Sec. 11.5-28. Membership; qualifications; nomination of members; nominating committee; appointment and filling vacancies; terms of office.

(a) *Membership.* The CIP shall consist of 13 members who should reflect the diversity of the city.

These 13 members shall be selected, approved, and appointed as follows:

(1) The city commissioners shall approve the appointment of ten members from a pool of nominees selected and submitted by the CIP. These ten members shall include at least two members from each of the five city commission districts who permanently reside in, own real property in, or work or maintain a business in that city commission district.

(2) The mayor shall recommend two members from a pool of nominees selected and submitted by the CIP for approval and appointment by the city commission. These two members shall permanently reside in, own real property in, or work or maintain a business in the city;

(3) The police chief shall appoint one member, who shall serve at the will of the police chief.

(b) *Qualifications for members of the CIP.*

(1) All members of the CIP shall be either permanent residents of the city, own real property in the city, or work or maintain a business in the city, except for the appointee of the police chief, and shall have good reputations for integrity and community service and shall have no record of a felony conviction.

(2) No appointee to the CIP, nor any member of the appointee's immediate family, except for the appointee of the police chief, shall be currently employed by the city nor be a sworn former employee of the city's police department. No person who is currently, or has been previously, a party or party's legal representative in litigation against the city may serve on the CIP for at least two years from the conclusion of such litigation, including any appeals. The filing of a legal claim or lawsuit against the city alleging liability of the city through actions of any police or other sworn or enforcement personnel shall disqualify any person from serving on the CIP.

(3) Upon assuming their duties, all members of the CIP shall complete training in ethics, conflicts of interest, and the Florida Sunshine Law. All members of the CIP, except the appointee of the police chief, shall also commit to complete Citizens Police Academy Training or approved training through NACOLE (National Association of Citizens' Oversight of Law Enforcement) or equivalent programs, unless the member has completed such training within one year prior to appointment to the CIP.

(c) *Nomination of members to fill vacancies.*

(1) The CIP shall appoint a CIP nominating committee to solicit and screen applications for vacancies, interview candidates, and select nominee(s) to submit to the CIP, which shall, upon majority vote, submit nominations to the city commission for approval and appointment to fill vacancies on the CIP pursuant to subsection 11.5-28(a) of the City Code.

(2) The CIP nominating committee shall solicit applications for vacancies on the CIP by disseminating public notices in English, Spanish, and Creole throughout the community and through the media. In addition, applications may be submitted to the CIP directly by members of the city commission and community based, civic, and social service groups, leagues, and organizations, provided that any such application shall be evaluated without regard to the individual or entity that solicited or submitted the application.

(d) *Appointment of the CIP nominating committee.*

(1) The CIP nominating committee shall be composed of five members of the CIP,

with one member representing each of the five city commission districts, except as set forth in subsection (2)a. below. The nominating committee shall be appointed annually by the chairperson, subject to approval by a majority vote of the CIP, to serve a one-year term, which term may be extended if necessary to permit completion of the process described in subsection (c)(2) with respect to a given set of vacancies.

(2) The CIP nominating committee shall reflect the diversity of the city.

a. In the event the CIP does not include at least one member representing each of the five city commission districts, then the CIP shall fill vacancies on the nominating committee with members of the general public who permanently reside in, own real property in, or work or maintain a business in the unrepresented districts. To fill such vacancies, the CIP shall solicit applications by disseminating public notices in English, Spanish, and Creole throughout the community and through the media with an emphasis on the unrepresented district or districts. In addition, applications may be submitted by community based, civic, and social service groups, leagues, and organizations.

b. When the composition of the CIP includes at least two members from each of the five city commission districts, any member of the nominating committee who is serving pursuant to subsection (2)a. shall be replaced by a CIP member representing the same city commission district.

(3) No CIP member shall serve on more than two consecutive nominating committees.

(e) *Appointment and filling vacancies by majority vote.* The city commission shall approve and make all appointments to fill any vacancies on the CIP (except the appointee of the police chief) by majority vote exclusively from the nominations submitted to it by the CIP.

(f) *Terms of office.* The terms of office of the members of the CIP appointed by the city commission shall be for three years and shall be unaffected by the terms of the mayor and city commissioners. No CIP member shall serve more than two consecutive three-year terms, provided that such CIP members may continue to serve until their successors have been appointed but in no event for more than two additional months.
(Ord. No. 12188, § 1, 2-14-02; Ord. No. 12315, § 1, 1-23-03; Ord. No. 12379, § 1, 6-12-03; Ord. No. 13186, § 1, 6-24-10; Ord. No. 13688, § 2, 6-8-17; Ord. No. 14138, § 5, 2-9-23)

Sec. 11.5-29. Officers.

The CIP shall elect, by majority vote, from its members, a chairperson, vice-chairperson, and such other officers as deemed necessary. The chairperson of the CIP shall have the power to appoint, with the approval by majority vote of the CIP, all members serving on the various committees that the CIP may establish from time to time.
(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17)

Sec. 11.5-30. Meetings, quorum and voting; attendance requirements; parliamentary procedures and rules of procedure; recordation.

(a) *Meetings, quorum and voting.* All meetings of the CIP shall be open to the public. The chairperson or three members of the CIP may call a meeting, provided that the meeting is noticed for at least seven days prior to the meeting date and pursuant to the provisions set forth in section 11.5-36. A quorum shall consist of seven members of the CIP. An affirmative vote of not less than 51 percent of the members present and voting at any meeting is required for any action to be taken by the CIP unless otherwise set forth herein.

(b) *Attendance requirements.* The provisions set forth in section 2-886 of this Code shall apply to all members of the CIP.

(c) *Parliamentary authority and rules of procedure.* The parliamentary authority of the CIP shall be Robert's Rules of Order (Current Edition) unless the CIP adopts its own order of business and rules of procedure governing its meetings, and actions on matters within its jurisdiction, not inconsistent with the provisions set forth herein, which rules of procedure shall be filed with the city clerk. Copies of minutes of all CIP meetings shall be furnished to the mayor, commissioners, city manager, city attorney and chief of police.

(d) *Recordation.* The CIP shall be responsible for the recordation and transmittal of its minutes and may request the city clerk to carry out recordation functions.
(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17)

Sec. 11.5-31. Procedures for investigation of direct filed cases, investigation, or review of internal affairs' closed cases; timeframes for and completion of investigations and reviews; review of police policies, procedures, and practices; and issuance of reports.

The following procedures shall be followed:

(1) *Directly filed cases.* Complaints concerning allegations of police misconduct, police uses of force, or other matters pertaining to repeated issues of police misconduct may be directly filed with the CIP by anyone, including a member of the CIP or its staff.

a. All complaints shall be reduced to writing using a form approved by the CIP for that purpose;

b. The police department shall be notified of complaints received by the CIP within two working days;

c. All complaints must be submitted within a year of the date of the incident or event, or within one year of the complainant becoming aware of the systemic problem, giving rise to the complaint. Complaints filed more than one year thereafter may, however, be accepted by the CIP only if approved by a majority vote of its members.

(2) *Investigation or review of CIP cases.*

a. *Investigation of directly filed cases.* Investigation of complaints directly filed with the CIP shall proceed as follows:

1. Where a directly filed complaint involves potentially criminal conduct by a police officer, the CIP may proceed with an investigation upon receipt of a written determination by its independent counsel, who shall be required to consult with the appropriate prosecutorial agencies, that such an investigation will not interfere with any pending or potential criminal investigation or prosecution. A decision of the CIP to proceed with such an investigation may be challenged by any prosecutorial agency engaged in investigating or prosecuting the same matter by seeking a judicial order. Written notification of such a legal challenge shall stay the CIP's investigation for 48 hours permitting the prosecuting agency to obtain such a judicial order.

2. Upon determination by the executive director, in consultation with the independent counsel as needed, that a directly filed complaint does

not involve potentially criminal conduct by a police officer, or upon the independent counsel's written determination that a CIP investigation will not interfere with any pending or potential criminal investigation or prosecution, the CIP may proceed with an independent investigation of the complaint in accordance with the time frames specified in subsection (3) below.

b. *Police use of force involving death or great bodily harm to a person.* Upon a written determination by the independent counsel that an investigation will not interfere with any pending or potential criminal investigation, and without waiting for the conclusion of any internal affairs' investigation, and, further, regardless of whether any allegation of misconduct is made, the CIP must automatically commence an independent investigation into any incident in which a police shooting or other uses of force resulted in death of a person and may commence an independent investigation into any use of force resulting in great bodily harm to a person.

c. *Investigation or review of internal affairs closed cases.* The close-out reports of all investigations of police misconduct conducted by internal affairs of the city's police department shall be transmitted to the CIP within three working days of the police chief's final decision. Thereupon, internal affairs shall make its entire investigative file available to CIP staff for inspection and copying. The CIP may then proceed to conduct either an independent investigation of the matter or a review of the internal affairs' file, in accordance with the time frames specified in subsection (3) below.

d. *Notice of commencement.* Affected officers, and complainants shall be notified of the commencement of the CIP's investigation or review.

(3) *Timeframes for investigations and reviews.* The following timeframes shall govern the investigation or review process:

a. Upon determination that a directly filed complaint does not involve potentially criminal conduct by a police officer, the CIP's investigation must commence within ten working days of the filing of the complaint and must be completed and presented to the members of the CIP for their final consideration at a regular or special meeting within 180 days of the investigation's commencement.

b. With respect to directly filed complaints that involve potentially criminal conduct by a police officer, the following timeframes shall apply:

1. Within three working days of the filing of such complaint, the CIP shall forward the complaint to the city's police department.

2. Within three working days of the filing of such complaint, the CIP shall forward the complaint to its independent counsel.

3. The independent counsel shall, within ten working days of receiving the complaint, provide the CIP with a written determination as to whether its independent investigation of the complaint will interfere with a pending or potential criminal investigation or prosecution.

4. If the independent counsel's written determination is that the CIP's independent investigation will not interfere with a pending or potential

criminal investigation or prosecution, the CIP's investigation must commence within seven working days of the receipt of that determination and must be completed and presented to the members of the CIP for their final consideration at a regular or special meeting within 180 days of the investigation's commencement.

c. With respect to internal affairs' closed cases, the following timeframes shall apply:

1. The executive director must decide within ten working days of receipt of the internal affairs' close-out report and access to the internal affairs' investigative file whether to conduct an independent investigation of the matter or a review of that file.

2. Where the executive director's decision is to independently investigate the matter, such investigation must be completed and presented to the CIP for its final consideration at a regular or special meeting of the CIP within 180 days of the investigation's commencement.

3. Where the executive director's decision is to review the file, such review must be concluded and presented to the CIP for its final consideration at a regular or special meeting of the CIP within 60 days of the review's commencement.

d. If the CIP fails to complete its investigation or review within these timeframes, the CIP's file on the complaint shall be closed as out-of-time. However, in the case of a directly filed complaint, the CIP may extend the timeframe for the investigation to be completed and presented to the CIP for its final consideration by 60 days after receipt of the internal affairs' investigative file.

(4) *Standards for CIP consideration of completed investigation or review.* In its consideration of a completed investigation or review, the CIP's proceedings shall be as informal as is compatible with the essential requirements of law, and shall not be governed by courtroom rules and procedures. Further, strict rules of evidence, as in courts of law, shall not apply and evidence is to be admitted at the discretion of the chairperson. However, fundamental due process shall be observed and shall govern the proceedings and pertinent information shall be considered for the purposes of providing substantial justice for all parties.

(5) *Results of investigation or review.* Upon presentation to the CIP of the results of an investigation or review, the CIP may:

a. Remand the matter to the executive director for further investigation or review, the results of which are to be presented to the CIP for its consideration at its next regular meeting.

b. Render one of the following findings based on the preponderance of evidence:

1. *Unfounded* where the investigation or review shows that the act or acts that provide the basis for the complaint did not occur or were misconstrued;

2. *Exonerated* where the act or acts that provide the basis for the complaint occurred, but the investigation or review shows that such acts were proper;

3. *Not sustained* where the investigation or review fails to disclose sufficient facts to prove or disprove the claim(s) made in the complaint;

4. *Sustained* where the investigation or review discloses sufficient facts to prove the claim(s) made in the complaint;
5. *No finding* where the executive director recommends summary disposition of the complaint for such reasons as the complainant failed to produce information to further the investigation; the investigation or review revealed that another agency was responsible and the complaint has been referred to that agency; the complainant withdrew the complaint; the complainant is unavailable to clarify the complaint; or the officer is no longer employed by the city.

c. Formulate recommendations to the police chief as to disposition, including recommendations as to training of police officers, revision of city police department policies or procedures, or where a complaint has been sustained, consequences for the subject officer(s).

d. Place an officer who has been the subject of three or more complaints within the past year on a monitoring list accessible to the public.

(6) *Notification of results of investigation or review.* At the conclusion of its investigation or review, the CIP shall forward its findings and recommendations in writing to the police chief, all affected officers, and complainants and, where appropriate, to the mayor, city manager, and/or city commission, to which the police chief must respond to the CIP in writing within 45 days, explaining why the CIP's recommendations were or were not accepted.

(7) *Review of police policies, procedures, and practices.*

a. The CIP may, at any time, review and make written recommendations to the police chief as to current city police department policies, procedures, and practices concerning but not limited to training, recruitment, and disciplinary procedures to which the police chief must respond to the CIP in writing within 45 days explaining why the CIP's recommendations were or were not accepted.

b. Whenever the police chief proposes to revise established city police department policies, procedures, or practices, the police chief must transmit the proposed revisions to the CIP 45 days prior to implementation, except if an emergency requires a more expeditious implementation. Within 30 days of the receipt of the proposed revisions, the CIP may make written recommendations to the police chief as to those revisions, to which the police chief must respond to the CIP in writing within 45 days, explaining why the CIP's recommendations were or were not accepted.

(8) *Issuance of reports.* The CIP may, when appropriate, issue reports, which may contain requests and recommendations, concerning any matter within the CIP's authority, to the mayor, city commission, city attorney, city manager, police chief, and the public, to which the appropriate official must respond in writing within 45 days, explaining why the CIP's requests or recommendations were or were not accepted.

(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17)

Sec. 11.5-32. Subpoena power.

(a) The CIP may subpoena witnesses and documents as part of any independent investigation, review, inquiry, audit, or public hearing it conducts, as follows:

(1) A request for a subpoena must be reviewed by the CIP independent counsel; for compliance with legal requirements,

including but not limited to federal and state statutes and prevailing case law, and the appropriateness of issuance of the subpoena. Further, in cases that involve criminal conduct by a police officer, the independent counsel must consult with the state attorney of the Eleventh Judicial Circuit in and for Miami-Dade County as to whether the issuance of the subpoena will interfere with any pending criminal investigation or prosecution.

(2) After receiving advice from its independent counsel as to whether a requested subpoena complies with legal requirements and is appropriate to issue, and in cases that involve potentially criminal conduct of a police officer, after receiving the independent counsel's advice as to whether the subpoena will interfere with any pending or potential criminal investigation or prosecution, the CIP may issue the subpoena upon approval of a majority of its seated members.

(3) However, nothing herein authorizes the CIP to issue a subpoena to a law enforcement officer(s) who is the subject of an investigation, review, inquiry, audit, or public hearing.

(b) The subpoena shall be valid only within the jurisdictional limits of the city. However, the CIP may seek enforcement and extraterritorial domestication of its subpoenas in accordance with general law.
(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17; Ord. No. 13719, § 2, 12-14-17)

Sec. 11.5-33. Procedures related to city employees and witnesses.

(a) When a city employee appears before the CIP in response to a subpoena, such employee shall be formally advised prior to the commencement of testimony that if the employee has a good-faith belief that the testimony would tend to be self-incriminating, and if, in reliance upon that good-faith belief, the employee declines to answer any question, that the employee's decision not to provide testimony will not subject him or her to any adverse employment consequences. Any employee who, after receiving such advice, decides to testify or provide evidence, must sign a statement acknowledging that the employee understands the advice and is testifying or providing evidence voluntarily and knowingly.

(b) A police officer who is the subject of an investigation shall be informed of the nature of the investigation and provided with a copy of the complaint prior to being interrogated.

(c) A person who appears before the CIP in response to a CIP request for testimony may be represented by counsel or any other representative of his or her choice, which representative may be present at all times during the subject's appearance before the CIP.

(d) The CIP may hold evidentiary hearings requiring witnesses in the manner set forth in section 11.5-30. Only the subject of the complaint, witnesses, their attorneys or representatives and CIP members may participate in evidentiary hearings.

(e) Policies and procedures shall be established to ensure compliance with Chapters 112 and 119 of the Florida Statutes and any other applicable laws.
(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17)

Sec. 11.5-34. Executive director; independent counsel; assistance from city officials.

(a) *Executive director.*

(1) The CIP office shall be headed by a full-time professional executive director with education or experience in criminal justice who is appointed by and subject to removal by the CIP, with the approval of the city commission. The executive director, serving as the CIP's chief executive officer, shall oversee the operations of the CIP and shall perform the following specific duties:

a. Recruit, hire, supervise, terminate, and make all other employment decisions regarding investigators and administrative staff;

b. Ensure that all members of the CIP receive training in ethics, conflicts of interest, the Florida Sunshine Law, and the opportunity to attend a police policies and procedures program as set forth in subsection 11.5-28(b)(3);

c. Establish priorities and objectives for the CIP;

d. Manage the implementation and evaluation of the CIP's functions;

e. In collaboration with the members of the CIP, establish written rules and standard operating procedures for internal governance and standards for training for CIP members and staff; and

f. In collaboration with the members of the CIP, promote community understanding and utilization of the process by which complaints are submitted and reviewed or investigated.

(2) The executive director's performance shall be evaluated annually by the CIP pursuant to written criteria established by the CIP.

(b) *Independent counsel.*

(1) The CIP shall hire an experienced and competent attorney-at-law in good standing admitted to the practice of law in the State of Florida for at least seven years and generally knowledgeable in municipal law as independent counsel with the approval of the city commission. The CIP shall have the power to remove the independent counsel with the approval of the city commission. The independent counsel shall provide legal advice and assistance to the CIP as requested and shall perform the following specific duties:

a. Issue written determinations, after consulting with the appropriate prosecutorial agencies, as to whether an investigation by the CIP of a directly filed complaint involving potential criminal conduct will interfere with any pending or potential criminal investigation or prosecution;

b. Review CIP requests for subpoenas for compliance with legal requirements, including but not limited to federal and state statutes and prevailing case law, and the appropriateness of issuance of the subpoena; in cases that involve potentially criminal conduct by a police officer, issue written determinations after consultation with the appropriate prosecutorial agencies as to whether the issuance of the subpoena will interfere with any pending or potential criminal investigation or prosecution; and advise the CIP of the results of such review and consultation.

c. Prepare subpoenas as directed by the CIP in accordance with subsection 11.5-32.

(2) The independent counsel's performance shall be evaluated annually by the CIP pursuant to written criteria established by the CIP.

(c) *Assistance from city officials.* When requested by the CIP, the city manager, city attorney, and city clerk shall provide full cooperation and assistance to the CIP, but are not required to attend its meetings. The city clerk and the city attorney may conduct annual workshops to advise the CIP of the procedural laws and regulations related to public records, the Sunshine Law, and any other requirements. (Ord. No. 13688, § 2, 6-8-17; Ord. No. 13719, § 2, 12-14-17)

Editor's note—Ord. No. 13688, § 2, adopted June 8, 2017, amended section 11.5-34 in its entirety to read as herein set out. Formerly, section 11.5-34 pertained to administrative assistance; independent counsel, and derived from Ord. No. 12188, § 1, adopted February 14, 2002.

Sec. 11.5-35. Review and approval of annual budget.

(a) The CIP shall be operated on an annual budget that shall be no less than one percent of the approved regular salaries and wages line

item of the city's police department general fund budget except as otherwise required by the city manager's declaration of a fiscal emergency, financial urgency, or financial emergency. The CIP shall submit to the city commission, in a form acceptable to the city manager, and no later than April 1 preceding the commencement of each fiscal year, a CIP budget request detailing how the CIP will spend its budgeted allotment. The city manager shall assign appropriate personnel to assist in the preparation of the budget for the CIP and provide administrative support to the CIP. Nothing contained herein shall be construed to prohibit the CIP from submitting a supplemental budget and appearing before the city commission to request approval.

(b) No expenditure shall be made in any given year without approval by the city commission of the CIP budget for that year and all expenditures shall comply with city procedures for acquisition of goods and services.

(c) No provision contained in this chapter shall be construed to violate the Anti-Deficiency Act, as set forth in sections 18-500 through 18-503 of this Code.
(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17)

Sec. 11.5-36. Notices and filing of records.

Notice of meetings shall be posted by the city clerk at city hall and other appropriate locations after being apprised by the CIP of an upcoming meeting(s). Advertisements of meetings shall be posted on the city's website no less than seven days prior to the meeting. It shall be the duty of the city clerk to comply with applicable laws related to filing of records.
(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17)

Sec. 11.5-37. Annual reports.

The CIP shall, at least annually, provide a report in writing to the city manager, the city commission, the police chief and the mayor, to include statistics and summaries of the results of the CIP's investigations and reviews, a comparison of those results with the actions taken by the police chief, any recommendations related to changes in policies and procedures and any recommended changes to this chapter.
(Ord. No. 12188, § 1, 2-14-02; Ord. No. 13688, § 2, 6-8-17)

Chapter 12

AMUSEMENT GAMES OR MACHINES*

Sec. 12-1. Definitions.
Sec. 12-2. Location of amusement games or machines; exception required.
Sec. 12-3. Business tax receipts (BTR).
Sec. 12-4. Failure to obtain a business tax receipt (BTR); seizure and disposition of machines.
Sec. 12-5. Payment of certificate of authorization fee.
Sec. 12-6. Prohibited uses and enforcement.

*__Editor's note—__Ord. No. 13213, § 2, adopted October 14, 2010, amended chapter 12 in its entirety to read as herein set out. Formerly, chapter 12, §§ 12-1—12-3 pertained to coin-operated machines and establishments and derived from the Code of 1967, §§ 11-1—11-3; the Code of 1980, §§ 12-1—12-3, and Ord. No. 11086, § 1, adopted September 27, 1993.

__Cross reference—__Amusements, ch. 5.

Sec. 12-1. Definitions.

The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Nothing in this section may be construed contrary to state law.

Amusement game or machine means any machine, game, contrivance, or device that provides for the bona fide entertainment or amusement of the public and that, as a result of the payment of a fee, money, compensation, or exchange of anything of value or insertion of a coin, slug, token, credit card, or paper currency, the machine, game, contrivance, or device is set in motion, permitted to function or operate and that by application of skill, may entitle the person playing or operating the machine to receive points or coupons that may be exchanged for merchandise only, (limited to noncash prizes, toys, or novelties, excluding cash, alcoholic beverages, beer, or wine), provided the cost value of the merchandise or prize awarded in exchange for such points or coupons does not exceed $0.75 on any game played.

The definition of amusement game or machine shall not be interpreted to include:

(1) Any game, machine, contrivance or device whose content, theme, design, or graphics depict, exhibit, illustrate, describe, or relate to sexual conduct or specified anatomical areas;

(2) Pool or billiard tables, vending machines, laundry machines, kiddie rides, and automatic music machines;

(3) Any game, machine, contrivance, or device that may be construed as a gambling device under state law, including any amusement game or machine that includes an element of chance and may allow the user to become entitled to receive any money, credit, allowance, or additional chance to use the game or machine.

Arcade amusement center means a place of business that has at least 50 amusement games or machines on premises which are operated for the entertainment of the general public and tourists as a bona fide amusement facility. Examples of such facilities include, but are not limited to, Chuck E. Cheese, Gameworks, or Dave and Busters.

Mini-arcade amusement center means a place of business accessory or incidental to another business (i.e. a restaurant, theater, bowling alley, billiards, etc.) that has ten to 49 amusement games or machines on premises which are operated for the entertainment of the general public and tourists as a bona fide accessory amusement facility.

Operator means any person, firm, corporation, association, owner or agent, who shall own, operate, or otherwise control an amusement game or machine; an arcade amusement center; or a mini-arcade amusement center.
(Ord. No. 13213, § 2, 10-14-10)

Sec. 12-2. Location of amusement games or machines; exception required.

(a) An operator shall not locate and operate an amusement game or machine within a room or enclosed area not open to the general public. If a room where an amusement game or machine is being operated is locked or barricaded, a rebuttable presumption is created that the area is not open to the general public in violation of this section.

(b) There shall be no more than four amusement games or machines issued to an operator per location. More than four amusement games or machines at a particular location will require further review from the planning and zoning departments. Moreover, the location shall require approval by the city commission by a four-fifths vote.

(c) Amusement games or machines, up to four per location, shall only be allowed in zoning transects T5-O and above, as of right. More than four machines at a location are only allowed in zoning transects T6-O or above, and must obtain city commission approval as described above.
(Ord. No. 13213, § 2, 10-14-10)

Sec. 12-3. Business tax receipts (BTR).

In addition to the requirements of chapter 31 of this Code, the following shall apply:

(1) Prior to being issued a BTR from the city, the operator must present a state amusement game or machine certificate from the department of revenue and any applicable county BTR for each amusement game or machine in operation at every location. Operator will need to provide the city with proof of a certificate issued by the department of revenue for an arcade amusement center or a mini-arcade amusement center and any applicable county BTRs for such use.

(2) The operator of a one BTR per amusement game or machine at each location shall be issued in the name of the operator. The operator must provide to the city a notarized affidavit from the business owner and the property owner allowing operation of amusement games or machines within the business and property, respectively. Prior to the issuance of the BTR, the operator shall provide the city the affidavits of consent from the business owner and the property owner. All BTRs must be displayed within public view and accessible in an area within five feet from the physical site of the amusement game or machine. BTRs for amusement games or machines are not transferable from one operator to another. If an operator wishes to relocate an amusement game or machine covered under a current BTR from one location to another, then the operator must submit a new application together with the corresponding transfer fee to change locations. A new business tax receipt will be issued identifying the new location of that amusement game or machine and a corrected BTR shall be issued reflecting the removal of the amusement game or machine at the previous location. The name, address, and telephone number of the operator must be attached to the front of the amusement game or machine in a location easily read by amusement game or machine users with the size of lettering equal to or greater than 12-point type.

(3) It shall be unlawful for the owner, lessor, manager, or person in charge of any business premises to permit any such amusement game or machine upon such premises unless such amusement game or machine has the BTR required by this Code displayed thereon.

(4) For purposes of this subsection, each individual animated screen shall constitute one amusement game or machine regardless of whether the screen is encased in a console, cabinet, or other fixture, with other screens which receive electric power, through one source or cord, or are set into motion or permitted to function through the use of one bill acceptor, where the player may select a game at any one screen, such that at any one time you may have more than one person playing or operating games, at different screens independently from another. No artifice or scheme shall be used to circumvent the intent of this subsection.

(5) City staff shall be responsible for the placement of a BTR on each individual amusement game of machine. The BTR shall be of a material approved by the city that cannot be tampered with or removed once affixed to the amusement game or machine and will self-destruct, pull apart, or become void upon removal from any amusement game or machine. No BTR may be transferred from any one amusement game or machine to another amusement game or machine. Any operator who attempts to remove a BTR from an amusement machine or game without prior authorization from the city shall be subject to the provisions described in section 12-6.

(6) No BTR shall be issued for any machine, contrivance, or device that may be construed as a gambling device under state law, including any amusement game

or machine that simulates a slot machine, casino card game, or any electronic casino game, if such game or machine includes an element of chance and may entitle the user to receive any money, credit, allowance, or additional chance to use the amusement game or machine.

Notwithstanding the language in this provision, paragraph (6) shall not apply to paramutual facilities properly allowed under referendum or federal law. Moreover, paragraph (6) shall not apply to children's amusement games or machines located in bona fide arcade amusement centers and allowable under F.S. ch. 849.
(Ord. No. 13213, § 2, 10-14-10)

Sec. 12-4. Failure to obtain a business tax receipt (BTR); seizure and disposition of machines.

(a) In the event of nonpayment of the fee for a BTR required for any amusement game or machine, authority is hereby given and granted to the city manager or his/her designee to seize the amusement game or machine, and, in the event any amusement game or machine is seized for the nonpayment of any BTR, there shall be added, charged and collected by the city an additional hauling fee of $125.00 for each amusement game or machine seized and an additional storage fee of $10.00 per day for each amusement game or machine stored. In the event any amusement game or machine has been seized for the nonpayment of any BTR, such amusement game or machine shall not be released or returned until and unless the operator thereof has paid to the city the necessary BTR, storage fee, and hauling charges.

(b) The city manager or his/her designee is hereby authorized and directed, in all cases where there has been a seizure made for the nonpayment of the BTR for amusement games or machines, to notify the operator, where possible, that the same are being retained under the provisions of this Code, and he/she shall, within 90 days from the date of seizure, permit the operator to regain possession thereof by submission of proof of ownership and the payment of all charges connected with seizure and storage of the machines.

(c) After the expiration of such 90-day period, the city manager or designee shall sell any such amusement games or machines not claimed or reduced to possession by the operator thereof at public sale after ten days' notice in writing to the operator, if he/she can be found, and by advertisement in a newspaper of general circulation in the city.

(d) Out of the proceeds of the sale of any such amusement games or machines, all costs and storage shall be first paid, and any balance remaining shall be retained by the city in a fund in possession of the city for a period of one year in order to enable the operator to prove ownership of the amusement games or machines so sold, and when such ownership is proven, such surplus fund shall be paid to the operator.

(e) After the expiration of one year, as provided in this section, any sums arising from the sale of the amusement games or machines in accordance with the provisions of this section, if unclaimed by the operator, shall be transferred to the general fund of the city.
(Ord. No. 13213, § 2, 10-14-10; Ord. No. 13676, § 2, 4-27-17)

Sec. 12-5. Payment of certificate of authorization fee.

An operator shall obtain a certificate of authorization from the city for one year by submitting a payment of a regulatory fee in the amount of $500.00 per amusement game or machine. Each year, the operator shall obtain a new certificate of authorization from the city by submitting a renewal fee in the amount of $500.00 per amusement game or machine. No BTR shall be issued until the certificate of authorization has been obtained, including the payment of any other outstanding regulatory fees.
(Ord. No. 13213, § 2, 10-14-10)

Sec. 12-6. Prohibited uses and enforcement.

(a) Amusement games or machines shall not be used for gambling or as a game of chance as stated in F.S. §§ 849.15—849.22. Violations of

these provisions shall be subject to penalties stated in F.S. § 849.23 and to a city-imposed fine in the amount of $500.00.

(b) No amusement game or machine shall depict, exhibit, illustrate, describe, or otherwise relate to sexual conduct, specified anatomical areas, or other adult entertainment as further defined in the city zoning ordinance. Such an amusement game or machine is strictly prohibited in the city.

(c) No amusement game or machine shall allow replays without the exchange of anything of value or insertion of a coin, slug, token, credit card, or paper currency. Such an amusement game or machine is strictly prohibited in the city.

Notwithstanding the language in this section, paragraph (c) shall not apply to para-mutual facilities properly allowed under referendum or federal law. Moreover, paragraph (c) shall not apply to children's amusement games or machines located in bona fide arcade amusement centers and allowable under F.S. ch. 849.

(d) Violations of this section shall be prosecuted pursuant to this section and any other remedy available by law, including but not limited to, chapter 2, article X, Code enforcement, of this Code. No amusement game or machine shall operate at a particular business location or site for one year from the date of any court order, order of the city commission, order of a code enforcement board, or order of a special master that determines or upholds that a business owner at any location or operator operates, allows to be operated, or causes to be placed or operated an amusement game or machine at that particular location or site in violation of any city, county, state, or federal statute, rule, regulation, or ordinance.
(Ord. No. 13213, § 2, 10-14-10)

Chapter 12.5

COMMUNITY REVITALIZATION

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Division 4. Reserved

Division 5. Reserved

ARTICLE I. COMMUNITY REVITALIZATION DISTRICTS

DIVISION 1. GENERALLY

Sec. 12.5-1. Intent.

The community redevelopment strategy is to ensure a comprehensive revitalization in city neighborhoods to establish quality of life standards for residents of each community revitalization district through various methods including, but not limited to, the support of commercial redevelopment. The defined perimeters of the revitalization initiatives may be expanded to create social, housing and economic opportunities within contiguous commercial corridors to better serve the redevelopment area and neighboring communities.
(Ord. No. 12082, § 3, 7-10-01)

Secs. 12.5-2—12.5-25. Reserved.

DIVISION 2. LIBERTY CITY COMMUNITY REVITALIZATION TRUST*

Sec. 12.5-26. Liberty City Community Revitalization Trust created.

A limited agency and instrumentality of the city to be known as the "Liberty City Community Revitalization Trust" is created and established. Use of the term "Liberty City Trust" in this division shall mean the Liberty City Community Revitalization Trust.
(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-27. Liberty City Trust—Jurisdictional authority.

The Liberty City Trust shall exercise the powers and duties for the area in Liberty City ("area") described as follows: Using the City of Miami Boundary on the north and I 95 as a point of beginning ("POB"), running south on I 95, to SR 112, west on SR 112 to NW 17th Avenue, north on NW 17th Avenue to NW 58 Street, west on NW 58 Street to the City of Miami Municipal Boundary, then running along the City of Miami Municipal Boundary north, then east, then north then east to I95, POB, all in the City of Miami, Miami-Dade County, Florida as depicted in attachment "A". Additionally, in connection with city commission Ordinance No. 13758, adopted March 22, 2018, the Liberty City Trust is hereby designated as the recipient neighborhood revitalization organization and community revitalization trust thereunder serving District 5 and shall exercise the powers and duties for the District 5 neighborhoods owner-occupied affordable housing improvements grant program ("Grant Program") throughout District 5 and especially in the neighborhoods of said District located within Block 17 of the Wynwood Park Plat at approximately 3043 Northwest 3rd Avenue, 3040 Northwest 2nd Avenue, and 224, 234, 244, 252, 262, 268, 276, and 284 Northwest 31st Street, and approximately 221, 229, 237, 243, 251, 267, 269, 275, 285, and 291 Northwest 30th Street (collectively, "District 5 Grant Program Area") in order to assist homeowners of owner-occupied dwellings in District 5, and especially within the area of the properties to be developed, with life safety, resiliency, sustainability, hurricane hardening, and other necessary affordable housing improvements such as, but not limited to installations of high-impact windows and doors, new energy efficient HVAC systems, new efficient electrical and plumbing systems, new or repaired roofs, and other necessary repairs for dwellings owned and occupied by low income homeowners.
(Ord. No. 12859, § 4, 10-12-06; Ord. No. 13859, § 2, 9-12-19)

Editor's note—Attachment "A" referenced above may be found in the office of the city clerk.

Sec. 12.5-28. Purpose; powers and duties.

(a) *Purpose.* The Liberty City Trust, in cooperation with the city manager, the department of community development and other city departments, shall be responsible for oversight of and shall facilitate, the city's revitalization efforts for

*__Editor's note—__**Editor's note—**Ord. No. 12859, § 4, adopted October 12, 2006, repealed and reenacted division 2, §§ 12.5-26—12.5-39 to read as herein set out. Formerly, division 2 pertained to the model city community revitalization district trust, and derived from Ord. No. 12082, § 3, adopted July 10, 2001; Ord. No. 12110, § 2, adopted September 13, 2001; Ord. No. 12139, § 2, adopted October 11, 2001; Ord. No. 12201, § 1, adopted March 14, 2002; Ord. No. 12222, § 1, adopted April 18, 2002; Ord. No. 12257, § 1, adopted July 9, 2002; Ord. No. 12806, §§ 1, 2, adopted May 11, 2006.

the redevelopment of the area in a manner consistent with the strategy identified in the Five Year Consolidated Plan, as amended, and adopted by the city commission from time to time. The Liberty City Trust shall promote economic development, business and commerce in the area. The Liberty City Trust shall develop and execute a plan to create jobs, attract industry and facilitate the production of goods and services in the area for residents and non-residents. It will facilitate the development of affordable housing, engage in homebuyer assistance programs and market the area to encourage former residents and others to locate to the area. Further the Liberty City Trust will facilitate the creation, undertakings, guidelines, operations, activities, improvements, and monitoring of the Grant Program in the District 5 Grant Program Area.

(b) *Powers and duties.* Subject to city commission approval and compliance with the terms and conditions of any existing contractual obligations, the Liberty City Trust shall be empowered to take all actions necessary including, but not limited to, the following activities:

(1) Establish policy for the revitalization efforts in the area;

(2) Advocate the purposes of the Liberty City Trust;

(3) Assist and advise the city commission, the department of community development; other departments and other public officials and entities concerning the revitalization initiative in the area;

(4) Promote, oversee and assist in the redevelopment activities and develop increased public awareness and interest in the area;

(5) Solicit and accept grants in cooperation with the office of grants administration. The Liberty City Trust shall contact the office of grants administration for assistance in project planning, proposal writing, application assembly, and monitoring financial and budgetary compliance with grantor agency guidelines. All grant applications shall be submitted to the office of grants administration for review, and will subsequently be forwarded to the director of grants administration for approval, and final signature. The Liberty City Trust shall be responsible for implementing and managing all of its grants. Any and all other contributions and financial support from individuals, private business interests, the general public, governmental entities, corporations and organizations, foundations and other philanthropic entities shall require city commission approval;

(6) Implement full and active participation and cooperation with public and private entities in furtherance of the Liberty City Trust's purpose to oversee and facilitate the revitalization of the area to improve the quality of life for residents of this neighborhood;

(7) Participate in any other fundraising activity, whether solely involving the Liberty City Trust or involving partnerships with other persons or public or private organizations, which furthers the Liberty City Trust's purpose, with the approval of the city commission; and

(8) In addition to complying with subsection 18-85(h) of the City Code, the Liberty City Trust shall contract and be contracted with, for administrative purposes only, not to exceed $5,000.00 per item, goods, services, and/or anything of value in one transaction or multiple transactions concerning the same subject matter. Any and all contracts above $5,000.00 shall require city commission approval.

(9) To sue and be sued, plead and implead.

(10) Facilitate the creation, guidelines, operations, activities, improvements, and monitoring of the grant program in the District 5 Grant Program Area in cooperation with the office of grants administration and any other city department that the trust determines would be best able to assist with establishing best practices for the grant program in the District 5 Grant Program Area. The Liberty City

Trust shall contact the office of grants administration and the city department of housing and economic development for assistance in grant program funding planning, grant application form creation, applications reviews, grant awards implementation and funding, grant project management, completion, and monitoring financial and budgetary compliance with city guidelines. All grant funding applications shall be submitted to the office of grants administration for joint review by the Liberty City Trust and the office of grants administration, and will subsequently be forwarded to the executive director of the Liberty City Trust and the director of grants administration for joint approval, and final signatures by both. The Liberty City Trust shall be responsible for implementing and managing all of its grant awards and the improvement projects for all owner recipients for owner-occupied dwellings under the grant program. After the receipt by the trust of all of the required contributions pursuant to Ordinance No. 13758, any and all other contributions and financial support for the Grant Program in the District 5 Program Area from individuals, private business interests, the general public, governmental entities, corporations and organizations, foundations and other philanthropic entities shall require city commission approval;

(11) Notwithstanding any provisions to the contrary, the Liberty City Trust shall exercise only such powers as are expressly granted pursuant to this division.

(Ord. No. 12859, § 4, 10-12-06; Ord. No. 13859, § 2, 9-12-19)

Sec. 12.5-29. Scope.

(a) The Liberty City Trust may review and evaluate issues related to the major development of real property in the area and may provide recommendations and advice to the city commission concerning those issues and only such other matters as are referred to it by the city commission in regard to real property in the area. The city commission shall not be bound by any recommendation or advice received from the Liberty City Trust. The Liberty City Trust is expected to be aware of city policies concerning the major development of real property in the area and coordinate its endeavors with city departments, committees and boards which will be affected by the Liberty City Trust's recommendations and advice.

(b) The Liberty City Trust may be informed of issues concerning the major development of real property in the area for its input and advice at the conceptual planning stage for such development, "major development" shall be defined as such activities that require public notice and hearings pursuant to the city Charter and Code and shall not encompass minor changes, renovations and/or alterations to any existing real property in the area. Nothing herein is intended to interfere or conflict with any existing provisions in the city Charter and Code setting forth procedures concerning the development of real property.

(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-30. Governing body-composition and appointments; terms of office and vacancies; membership qualifications; procedures for appointment of members; oath; quorum and voting; meetings; attendance requirements; indemnification.

(a) *Governing body-composition and appointments.* The Liberty City Trust shall consist of five voting members and one youth, non-voting member. The voting members shall consist of individuals from professional disciplines. Four of the voting members shall be appointed by the district five commissioner and one to be appointed by the city manager and confirmed by the city commission, as hereinafter set forth. The one youth, non-voting member shall be appointed by the members of the Liberty City Trust, and confirmed by the city commission, as hereinafter set forth.

(b) *Terms of office and vacancies.* Four voting members and one youth, non-voting member shall be appointed by the district five commissioner for a term of two years or until the nominating commissioner leaves office, whichever occurs first. One voting member shall be appointed by the city manager for a term of one year or until the city manager leaves office, whichever occurs first. The district five commissioner shall appoint an individual to fill a vacancy due to the death, resignation or removal of his or her appointees to the Liberty City Trust, which person shall serve only for the remainder of the unexpired term. The city manager shall appoint an individual to fill a vacancy due to the death, resignation or removal of his or her appointee to the Liberty City Trust, which person shall serve only for the remainder of the unexpired term. No member shall serve more than four consecutive years on the Liberty City Trust. Nothing set forth herein shall prohibit any individual from being reappointed after a hiatus of two years.

(c) *Membership qualifications.*

(1) The Liberty City Trust voting members shall be 18 years of age or older and broadly reflect the diversity of the community and share technical, professional expertise or experiential knowledge and interest in the following areas, residential construction, development, architecture and engineering, planning, zoning and land use law, economic development, historic preservation and restoration, administration, fiscal management, and community involvement.

(2) The Liberty City Trust youth, non-voting member shall be no less than 15 and no more than 18 years of age.

(3) Each member of the Liberty City Trust shall be an individual of outstanding reputation for integrity, responsibility and commitment to serving the community, have a demonstrated interest in the revitalization of the area and the vision of the Liberty City Trust, and is expected to participate actively in the functioning of the Liberty City Trust.

(4) No member of the Liberty City Trust shall become a candidate for elective political office during his or her term. Should any member of the Liberty City Trust qualify as a candidate for elective political office, such qualification shall be deemed a tender of resignation from the Liberty City Trust.

(e) *Procedure for appointment of members.*

(1) No appointment shall be made until notice has been given in a newspaper of general circulation in the city of the appointments to be made to the Liberty City Trust at least 30 days prior to the making of an appointment, and shall have solicited and encouraged the public and professional or citizen organizations within the area having interest in and knowledge of the area to submit names of persons and their qualifications for consideration as prospective appointees of the Liberty City Trust. At least ten days prior to the making of any appointment, the appointing party shall cause the city clerk to have available to the public, and shall publicly make announcement of the fact, that the list of names thus submitted, together with a short statement of the qualifications of each person, is prepared and available for public inspection and consideration. In reaching a decision on appointments, the appointing party shall give due consideration to the names submitted.

(2) In addition, the appointing party shall, at least ten days prior to the making of any appointment, direct the city clerk to have available to the public, and shall publicly announce that the names of prospective appointees a short statement of qualifications of such persons are available for public inspection and consideration. No person shall be appointed to membership on the Liberty City Trust whose name and qualifications have not been made publicly available in the manner set out.

(f) *Oath.* Upon the effective date of appointment, or as soon thereafter as practicable, each member of the Liberty City Trust shall assume the duties of a member of the Liberty City Trust, but before doing so, shall take an oath or affirmation, to be filed and kept in the office of the city clerk, that he or she will support, protect and defend the constitution and laws of the United States of America and of the state.

(g) *Officers.* The voting members of the Liberty City Trust shall elect from its voting members a chairperson and vice-chairperson, and designate a secretary and such other officers deemed necessary. The chairperson of the Liberty City Trust shall have the power to appoint all members serving on the various committees which the Liberty City Trust shall establish from time to time.

(h) *Quorum and voting.* At all meetings of the Liberty City Trust, a majority of the then appointed voting members shall constitute a quorum for the transaction of business, and each voting member shall have one vote on every issue submitted to a vote of the Liberty City Trust. The act of a majority of the voting members present at a meeting at which a quorum is present shall be the act of the Liberty City Trust. The voting members of the Liberty City Trust shall make and adopt bylaws and rules and regulations for the Liberty City Trust's governance and for the operation and management of the revitalization initiative.

(i) *Meetings.* The Liberty City Trust shall hold regular quarterly meetings and may hold such other meetings as it deems necessary. At least one of the meetings of the Liberty City Trust per year shall be held in the area. All meetings of the Liberty City Trust shall be public. Recorded minutes of the proceedings of all actions taken at the meeting of the Liberty City Trust shall be maintained by the Liberty City Trust and shall be promptly and properly recorded and submitted to the city clerk. The city clerk shall transcribe the recorded minutes of the meetings of the Liberty City Trust and provide a copy of the transcribed minutes to the president/chief executive officer of the Liberty City Trust.

(j) *Attendance requirements.* A member shall be automatically removed if:

(1) In a given calendar year he or she is absent from three consecutive meetings, or

(2) He or she is absent from four properly noticed meetings within an eight-month period without an excused absence.

(k) *Insurance.* The Liberty City Trust shall maintain officers and directors liability insurance coverage at all times, in an amount and in a form satisfactory to the city's insurance manager. (Ord. No. 12859, § 4, 10-12-06; Ord. No. 12887, § 1, 2-8-07)

Sec. 12.5-31. President/chief executive officer; appointment, term, qualifications, compensation, general powers and responsibilities.

At its inception, the president/chief executive officer of the Model City Trust, approved by the city commission on June 22, 2006, shall serve as the president/chief executive officer of the Liberty City Trust, commencing from the date of the final approval of this division. Each successor president/chief executive officer shall be appointed by the Liberty City Trust and approved by the city commission, and receive such salary and benefits as shall be fixed by the Liberty City Trust, and approved by the city commission. The Liberty City Trust shall have the option of appointing a president/chief executive officer who is not affiliated with the city or they may appoint, with the written approval of the city manager, a city employee who is assigned by the city to the Liberty City Trust for the purpose of managing the revitalization initiative. After the hiring of the president/chief executive officer, the Liberty City Trust shall submit monthly quarterly status reports on the Liberty City Trust's operations and expenses to the city commission. The president/chief executive officer shall be a person of good moral character and have an excellent reputation for integrity, responsibility, and business ability, but no Liberty City Trust member shall be eligible for appointment as president/chief executive officer. The president/chief execu-

tive officer shall receive such salary as shall be fixed by the Liberty City Trust, and approved by the city commission. The president/chief executive officer shall take an oath before assuming any duties. The president/chief executive officer shall act as the chief executive officer of the Liberty City Trust. Subject to the policy directives of the Liberty City Trust, the president/chief executive officer shall have general supervision over and be responsible for the management and operation of all Liberty City Trust activities, and facilities. The president/chief executive officer shall execute all contracts on behalf of the Liberty City Trust after approval by the Liberty City Trust. The president/chief executive officer shall attend all meetings of the Liberty City Trust, shall furnish the Liberty City Trust a quarterly report with respect to the management and operation of the revitalization initiative, and the financial condition of the Liberty City Trust, and shall from time to time have prepared and shall furnish such reports, audits and other information relating to the revitalization initiative to the Liberty City Trust as may be required by the Liberty City Trust or the city. In the absence or disability of the president/chief executive officer or if no president/chief executive officer is currently employed by the Liberty City Trust, the Liberty City Trust may designate a qualified person as interim president/chief executive officer on a part-time temporary basis for a period of time less than six months, subject to city commission approval. The president/chief executive officer may be removed at any time by the liberty city trust or the city commission in their sole discretion and without notice. If the president/chief executive officer is removed, the city manager is hereby authorized to execute contracts and other documents on behalf of the Liberty City Trust until such time that a president/chief executive officer or an interim president/chief executive officer is appointed by the Liberty City Trust, and approved by the city commission.
(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-32. Employment of assistants.

Subject to the policy directives of the Liberty City Trust and budget limitations, the president/chief executive officer may employ such assistants as are necessary to provide for the efficient operation of the Liberty City Trust.
(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-33. Compliance with federal, state and local laws.

The Liberty City Trust shall comply with and observe all applicable federal, state and local laws, rules, regulations, codes and ordinances, as may be amended from time to time.
(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-34. Counsel.

The city attorney's office shall provide legal counsel to the Liberty City Trust as may be necessary and requested by the Liberty City Trust.
(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-35. Transfer of assets.

Any and all personal property under the control of the Model City Trust, shall transfer, upon the creation of the Liberty City Trust, to the Liberty City Trust. Any and all real property under the control of the Model City Trust shall transfer, upon the creation of the Liberty City Trust, to the city.
(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-36. Approval of budget.

(a) Effective immediately, the Liberty City Trust shall establish a fiscal year which coincides with that of the city. The Liberty City Trust shall submit to the city commission a budget, in a form acceptable to the city manager, and no later than April 1 preceding the commencement of each fiscal year. Nothing contained herein shall be construed to prohibit the Liberty City Trust from submitting a supplemental budget to the commission for approval.

(b) No expenditure shall be made in any given year without approval by the city commission of the Liberty City Trust budget for that year and all expenditure shall comply with city procedures for acquisition of goods and services.

(c) In conjunction with the submission of the budget, the Liberty City Trust shall submit an annual master plan reflecting the proposed operations, activities, and improvements of the revitalization initiative for the forthcoming fiscal year in accordance with the Liberty City Trust's purposes, powers, and duties as outlined in section 12.5-28 above. Nothing contained herein shall be construed to prohibit the Liberty City Trust from submitting a supplemental annual master plan to the commission for approval. The city commission may review and deny any item contained in the annual master plan and in any supplemental annual master plan within 30 days from the date of its submission by the Liberty City Trust.

(d) No provision contained in this division shall be construed to violate the Anti-Deficiency Act, as set forth in sections 18-500—18-503.
(Ord. No. 12859, § 4, 10-12-06; Ord. No. 13859, § 2, 9-12-19)

Sec. 12.5-37. Annual report and audit.

(a) The Liberty City Trust shall submit to the mayor and city commission an annual report and an annual audit. The audit shall be performed by an external auditor who is a certified public accountant.

(b) The city commission and/or the city manager shall have the right to audit any books, accounts, expenditures, receivables, and contracts of the trust at any time.
(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-38. Sunset review of trust.

Notwithstanding the provisions contained in section 2-892, the trust shall be initially reviewed in 2010. Thereafter the trust shall be reviewed every four years.
(Ord. No. 12859, § 4, 10-12-06)

Sec. 12.5-39. Abolishment of the Liberty City Trust.

The city commission may, by an affirmative vote of three commissioners, abolish the Liberty City Trust, at which time the powers and duties of the Liberty City Trust shall revert to the city and the city shall resume responsibility for the revitalization initiative.
(Ord. No. 12859, § 4, 10-12-06)

DIVISION 3. LITTLE HAITI REVITALIZATION TRUST*

Sec. 12.5-40. Little Haiti Revitalization Trust created.

A limited agency and instrumentality of the city to be known as the "Little Haiti Revitalization Trust" is created and established. Use of the term "Little Haiti Trust" in this division shall mean the Little Haiti Revitalization Trust.
(Ord. No. 13834, § 2, 4-25-19)

Sec. 12.5-41. Little Haiti Trust—Jurisdictional authority.

The Little Haiti Trust shall exercise the powers and duties for the area in Little Haiti ("area") described as follows: beginning at the intersection of Northeast 54th Street and Northeast 4th Avenue, traveling westward along the midblock line between Northeast 54th Street and the street parallel to the south until it meets Interstate I-95, then traveling northward along the center line of Interstate I-95 until meeting the boundary of the city, then turning and traveling eastward along the midblock line to include the frontage of

*__Editor's note—__Prior to the reenactment of division 3 by Ord. No. 13834, § 2, adopted April 25, 2019, Ord. No. 12982, § 1, adopted April 10, 2008, repealed the former division 3, §§ 12.5-56—12.5-65 in its entirety, which pertained to the Little Havana homeownership advisory board, and derived from Ord. No. 12404, § 4, adopted September 11, 2003.

Northwest 79th Street until reaching North Miami Avenue, then traveling northward along North Miami Avenue until it reaches the Little River, then traveling eastward following the northern boundary of the city along the Little River until reaching Northeast 2nd Avenue, then traveling southward along the midblock line between Northeast 2nd Avenue and the street running parallel to the east including the eastern frontage of Northeast 2nd Avenue until reaching the northern boundary of Little Haiti Park, then following the park boundary until reaching Northeast 4th Avenue, then traveling south along the center line of Northeast 4th Avenue until reaching the beginning, all as further described in Exhibit "A," attached and incorporated.
(Ord. No. 13834, § 2, 4-25-19)

Note—The exhibit referred to in this section is not set out at length herein, but may be found in the offices of the city.

Sec. 12.5-42. Purpose; powers and duties.

(a) *Purpose.* The Little Haiti Trust, in cooperation with the city manager, the department of housing and community development and other city departments shall be responsible for oversight of and shall facilitate, the city's revitalization efforts for the redevelopment of the area. The Little Haiti Trust shall promote economic development, business and commerce in the area. The Little Haiti Trust shall develop and execute a plan to create jobs, attract industry and facilitate the production of goods and services in the area for residents and non-residents. It will facilitate the development of affordable housing, engage in homebuyer assistance programs and market the area to encourage former residents and others to locate to the area.

(b) *Powers and duties.* Subject to city commission approval and compliance with the terms and conditions of any existing contractual obligations, the Little Haiti Trust shall be empowered to take all actions necessary including, but not limited to, the following activities:

(1) Establish policy for the revitalization efforts in the area; and

(2) Advocate the purposes of the Little Haiti Trust; and

(3) Assist and advise the city commission, the department of housing and community development, other departments and other public officials and entities concerning the revitalization initiative in the area; and

(4) Promote, oversee and assist in the redevelopment activities and develop increased public awareness and interest in the area; and

(5) Solicit and accept grants in cooperation with the office of grants administration. The Little Haiti Trust shall contact the office of grants administration for assistance in project planning, proposal writing, application assembly, and monitoring financial and budgetary compliance with grantor agency guidelines. All grant applications shall be submitted to the office of grants administration for review and will subsequently be forwarded to the director of grants administration for approval, and final signature. The Little Haiti Trust shall be responsible for implementing and managing all of its grants. Any and all other contributions and financial support from individuals, private business interests, the general public, governmental entities, corporations and organizations, foundations and other philanthropic entities shall require city commission approval; and

(6) Implement full and active participation and cooperation with public and private entities in furtherance of the Little Haiti Trust's purpose to oversee and facilitate the revitalization of the area to improve the quality of life for residents of this neighborhood; and

(7) Participate in any other fundraising activity, whether solely involving the Little Haiti Trust or involving partnerships with other persons or public or private organizations, which furthers the Little Haiti Trust's purpose, with the approval of the city commission; and

(8) Establish independent city line items in the budget for deposit of revenues generated by the Little Haiti Trust and for disbursement of trust expenses; and

(9) The Trust shall comply with the procurement code of the city.

(10) To sue and be sued, plead and implead;

(11) Notwithstanding any provisions to the contrary, the Little Haiti Trust shall exercise only such powers as are expressly granted pursuant to this division.

(Ord. No. 13834, § 2, 4-25-19; Ord. No. 14221, § 2, 10-26-23)

Sec. 12.5-43. Scope.

(a) The Little Haiti Trust may review and evaluate issues related to the major development of real property in the area and may provide recommendations and advice to the city commission concerning those issues and only such other matters as are referred to it by the city commission in regard to real property in the area. The city commission shall not be bound by any recommendation or advice received from the Little Haiti Trust. The Little Haiti Trust is expected to be aware of city policies concerning the major development of real property in the area and coordinate its endeavors with city departments, committees and boards which will be affected by the Little Haiti Trust's recommendations and advice.

(b) The Little Haiti Trust may be informed of issues concerning the major development of real property in the area for its input and advice at the conceptual planning stage for such development; "major development" shall be defined as such activities that require public notice and hearings pursuant to the City of Miami Charter and Code and shall not encompass minor changes, renovations and/or alterations to any existing real property in the area. Nothing herein is intended to interfere or conflict with any existing provisions in the City of Miami Charter or Code setting forth procedures concerning the development of real property.

(Ord. No. 13834, § 2, 4-25-19)

Sec. 12.5-44. Governing body-composition and appointments; terms of office and vacancies; membership qualifications; procedures for appointment of members; oath; quorum and voting; meetings; attendance requirements; indemnification.

(a) *Governing body-composition and appointments.* The Little Haiti Trust shall consist of five voting members. Four of the voting members shall be appointed by the district 5 commissioner and confirmed by the city commission. One voting member shall be appointed by the city manager and confirmed by the city commission.

(b) *Terms of office and vacancies.* Four voting members shall be appointed by the district 5 commissioner for a term of two years or until the nominating commissioner leaves office, whichever occurs first. One voting member shall be appointed by the city manager for a term of one year or until the city manager leaves office, whichever occurs first. The district 5 commissioner shall appoint an individual to fill a vacancy due to the death, resignation, or removal of his or her appointees to the Little Haiti Trust, which person shall serve only for the remainder of the unexpired term. The city manager shall appoint an individual to fill a vacancy due to the death, resignation, or removal of his or her appointee to the Little Haiti Trust, which person shall serve only for the remainder of the unexpired term. Members shall continue to serve until their successors have been appointed and confirmed. No member shall serve more than four consecutive years on the Little Haiti Trust. Nothing set forth herein shall prohibit any individual from being reappointed after a hiatus of two years.

(c) *Membership qualifications.*

(1) The Little Haiti Trust voting members shall be 18 years of age or older and broadly reflect the diversity of the community and share technical, professional expertise, or experiential knowledge and interest in the residential construction, development, architecture and engineering, planning, zoning and land use law,

economic development, historic preservation and restoration, administration, fiscal management, or community involvement. Members shall be subject to section 2-884 of the City Code. Notwithstanding the requirements herein this section or subsection 2-884(e) of the City Code, fire fighters and law enforcement officers may be appointed to the Little Haiti Revitalization Trust.

(2) Each member of the Little Haiti Trust shall be an individual of outstanding reputation for integrity, responsibility, and commitment to serving the community, have a demonstrated interest in the revitalization of the area and the vision of the Little Haiti Trust, and is expected to participate actively in the functioning of the Little Haiti Trust.

(3) No member of the Little Haiti Trust shall become a candidate for elective political office during his or her term. Should any member of the Little Haiti Trust qualify as a candidate for elective political office, such qualification shall be deemed an immediate resignation from the Little Haiti Trust.

(4) No employee of Miami-Dade County or any municipality therein other than city employees shall serve on or be appointed to the Little Haiti Trust.

(d) *Procedure for appointment of members.* No appointment shall be made until notice has been given in a newspaper of general circulation in the city of the appointments to be made to the Little Haiti Trust at least 30 days prior to the making of an appointment and shall have solicited and encouraged the public and professional or citizen organizations within the area having interest in and knowledge of the area to submit names of persons and their qualifications for consideration as prospective appointees of the Little Haiti Trust. At least ten days prior to the making of any appointment, the appointing party shall cause the city clerk to have available to the public and the city clerk shall publicly make announcement of the fact that the list of names thus submitted, together with a short statement of the qualifications of each nominee, is prepared and available for public inspection and consideration. In reaching a decision on appointments, the appointing party shall give due consideration to the names submitted.

(e) *Oath.* Upon the effective date of appointment, or as soon thereafter as practicable, each member of the Little Haiti Trust shall assume the duties of a member of the Little Haiti Trust but before doing so, shall take an oath or affirmation to be filed and kept in the Office of the city clerk that he or she will support, protect, and defend the constitution and laws of the United States of America and of the State of Florida.

(f) *Officers.* The voting members of the Little Haiti Trust shall elect from its voting members a chairperson and vice-chairperson and designate a secretary and such other officers deemed necessary. The chairperson of the Little Haiti Trust shall have the power to appoint all members serving on the various committees which the Little Haiti Trust shall establish from time to time. All officers shall serve a term of one year or until a successor is elected.

(g) *Quorum and voting.* All meetings of the Little Haiti Trust shall be open to the public. Quorum shall consist of three members. The voting members of the Little Haiti Trust shall make and adopt bylaws and rules and regulations for the Little Haiti Trust's governance and for the operation and management of the revitalization initiative.

(h) *Meetings.* The Little Haiti Trust shall hold regular quarterly meetings and may hold such other meetings as it deems necessary. At least one of the meetings of the Little Haiti Trust per year shall be held in the area. All meetings of the Little Haiti Trust shall be public. Recorded minutes of the proceedings of all actions taken at the meeting of the Little Haiti Trust shall be maintained by the Little Haiti Trust and shall be promptly and properly recorded and submitted to the city clerk. A designee of the Little Haiti Trust shall transcribe the recorded minutes of the meetings of the Little Haiti Trust and provide a copy of the transcribed minutes to the president/chief executive officer of the Little Haiti Trust.

(i) *Attendance requirements.* It is expected that members of the Little Haiti Trust attend each and every meeting. Members shall be subject to the attendance requirements of section 2-886 of the City Code.

(j) *Insurance.* The Little Haiti Trust shall maintain officers and director's liability insurance coverage at all times in an amount and in a form satisfactory to the city's director of risk management.

(Ord. No. 13834, § 2, 4-25-19; Ord. No. 14109, § 2, 10-13-22; Ord. No. 14221, § 2, 10-26-23)

Sec. 12.5-45. President/chief executive officer; appointment, term, qualifications, compensation, general powers, and responsibilities.

The president/chief executive officer shall be appointed by the Little Haiti Trust and approved by the city commission and receive such salary and benefits as shall be fixed by the Little Haiti Trust and approved by the city commission. The Little Haiti Trust shall have the option of appointing a president/chief executive officer who is not affiliated with the city or they may appoint, with the written approval of the city manager, a city employee who is assigned by the city to the Little Haiti Trust for the purpose of managing the revitalization initiative. After the hiring of the president/chief executive officer, the Little Haiti Trust shall submit quarterly status reports on the Little Haiti Trust's operations and expenses to the city commission. The president/chief executive officer shall be a person of good moral character and have an excellent reputation for integrity, responsibility, and business ability, but no Little Haiti Trust member shall be eligible for appointment as president/chief executive officer. The president/chief executive officer shall take an oath before assuming any duties. Subject to the policy directives of the Little Haiti Trust, the president/chief executive officer shall have general supervision over and be responsible for the management and operation of all Little Haiti Trust activities and facilities. The president/chief executive officer shall execute all contracts on behalf of the Little Haiti Trust after approval by the Little Haiti Trust. The president/chief executive officer shall attend all meetings of the Little Haiti Trust, shall furnish the Little Haiti Trust a quarterly report with respect to the management and operation of the revitalization initiative and the financial condition of the Little Haiti Trust, and shall from time to time have prepared and shall furnish such reports, audits, and other information relating to the revitalization initiative to the Little Haiti Trust as may be required by the Little Haiti Trust or the city. In the absence or disability of the president/chief executive officer or if no president/chief executive officer is currently employed by the Little Haiti Trust, the Little Haiti Trust may designate a qualified person as interim president/chief executive officer on a part-time temporary basis for a period of time less than six months subject to city commission approval. The president/chief executive officer may be removed at any time by the Little Haiti Trust or the city commission in their sole discretion and without notice. If the president/chief executive officer is removed, the city manager is hereby authorized to execute contracts and other documents on behalf of the Little Haiti Trust until such time that a president/chief executive officer or an interim president/chief executive officer is appointed by the Little Haiti Trust and approved by the city commission pursuant to this section.

(Ord. No. 13834, § 2, 4-25-19; Ord. No. 14221, § 2, 10-26-23)

Sec. 12.5-46. Employment of assistants.

Subject to the policy directives of the Little Haiti Trust and budget limitations, the president/chief executive officer may employ such assistants as are necessary to provide for the efficient operation of the Little Haiti Trust.
(Ord. No. 13834, § 2, 4-25-19)

Sec. 12.5-47. Compliance with federal, state, and local laws.

The Little Haiti Trust shall comply with and observe all applicable federal, state, and local laws, rules, regulations, codes, and ordinances.
(Ord. No. 13834, § 2, 4-25-19)

Sec. 12.5-48. Counsel.

The city attorney shall provide legal counsel to the Little Haiti Trust as may be necessary and requested by the Little Haiti Trust and shall designate attorney(s) to act on his or her behalf.
(Ord. No. 13834, § 2, 4-25-19)

Sec. 12.5-49. Approval of budget.

(a) Effective immediately, the Little Haiti Trust shall establish a fiscal year which coincides with that of the city. The Little Haiti Trust shall submit to the city commission a budget, in a form acceptable to the city manager, no later than April 1 preceding the commencement of each fiscal year. Nothing contained herein shall be construed to prohibit the Little Haiti Trust from submitting a supplemental budget to the commission for approval.

(b) No expenditure shall be made in any given year without approval by the city commission of the Little Haiti Trust's budget for that year and all expenditures shall comply with the city's procedures for acquisition of goods and services.

(c) In conjunction with the submission of the budget, the Little Haiti Trust shall submit a master plan reflecting the proposed operations, activities, and improvements of the revitalization initiative for the forthcoming fiscal year. The city commission may review and deny any item contained in the master plan within 30 days from the date of its submission by the Little Haiti Trust.

(d) Pursuant to subsection 12.5-42(b)(8), the Little Haiti Trust shall establish an independent line item in the city's budget for the deposit of revenues generated by the Little Haiti Trust and for disbursement of Trust expenses.

(e) No provision contained in this division shall be construed to violate the Anti-Deficiency Act as set forth in sections 18-500 through 18-503 of the City Code.
(Ord. No. 13834, § 2, 4-25-19)

Sec. 12.5-50. Annual report and audit.

(a) The Little Haiti Trust shall submit to the mayor and city commission an annual report and an annual audit. The audit shall be performed by an external auditor who is a certified public accountant.

(b) The city commission and/or the city manager shall have the right to audit any books, accounts, expenditures, receivables, and contracts of the Little Haiti Trust at any time.
(Ord. No. 13834, § 2, 4-25-19)

Sec. 12.5-51. Sunset review of Trust.

Notwithstanding the provisions contained in section 2-892 of the City Code, the Little Haiti Trust shall be initially reviewed in 2023 for possible sunset. Thereafter, the Little Haiti Trust shall be reviewed every four years for possible sunset.
(Ord. No. 13834, § 2, 4-25-19)

Sec. 12.5-52. Abolishment of the Little Haiti Trust.

The city commission may, by an affirmative vote of three commissioners, abolish the Little Haiti Trust, at which time the powers, duties, and all responsibilities of the Little Haiti Trust shall revert to the city and the city shall resume responsibility for the revitalization initiative.
(Ord. No. 13834, § 2, 4-25-19)

Secs. 12.5-53—12.5-55. Reserved.

DIVISION 4. RESERVED*

DIVISION 5. RESERVED†

*__Editor's note—__Ord. No. 12404, § 2, adopted September 11, 2003, repealed the former division 4, §§ 12.5-101—12.5-112 in its entirety, which pertained to the Little Havana homeownership trust, and derived from Ord. No. 12653, § 3, adopted April 10, 2003, and Ord. No. 12885, § 1, adopted February 8, 2007.

†__Editor's note—__Ord. No. 13376, § 1, adopted April 11, 2013, repealed the former division 5, §§ 12.5-131—12.5-139 in its entirety, which pertained to the District 1 housing advisory board, and derived from Ord. No. 13012, § 3, adopted July 24, 2008.

Chapter 13

DEVELOPMENT IMPACT AND OTHER RELATED FEES*

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*__City Code cross references—__Improvement districts, § 2-726 et seq.; downtown development, ch. 14; subdivision, ch. 55; planning and zoning, ch. 62.

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ARTICLE I. IN GENERAL*

Sec. 13-1. Short title.

This article shall be known and cited as the "City of Miami development impact fee ordinance." (Ord. No. 12750, § 2, 12-15-05)

Sec. 13-2. Findings.

(a) The city commission (hereinafter "commission") hereby finds and declares that:

(1) New development generates increased demands upon city public facilities and services and requires additional facilities, facility capacity, and capital equipment in order to accommodate those demands.

(2) The potential for development of properties is a direct result of city policy as expressed in the city comprehensive plan and as implemented via the city zoning ordinance and map.

(3) New development should bear its share of the costs of providing public facilities, facility capacity, and capital equipment needed to accommodate the demand generated by new development.

(4) The amount of the "impact fee" to be imposed shall be based upon the average amount of public facility capacity demand attributable to new development and the average cost of additional capital facilities, capital improvements, and capital equipment needed to provide additional capacity.

(5) The impact fees established in this article applicable to development submitting building permit applications accepted as complete by the city on or after January 15, 2006 are based on the methodology and data presented in "Growth-Related Capital Improvements & Impact Fees" by TischlerBise, Fiscal, Economic & Planning Consultants, dated September 16, 2005 (hereinafter "impact fee report - 2005"). The city commission hereby adopts and incorporates by reference the impact fee report - 2005. A copy of the impact fee report - 2005 was submitted as part of the record of the public hearings on the ordinance, and a copy of the impact fee report - 2005 shall be maintained on file in the office of the city clerk.

(b) The city commission hereby finds and declares that the impact fees imposed herein upon new development as further described below, in order to finance public facilities and capital equipment needed to accommodate the demand created by new development are in the best interest of the city and its residents, are equitable, and do not impose an unfair burden on such development. The city commission hereby finds and declares that all new development, as defined herein, within the city generates an increased demand for system improvements for police, fire-rescue and general services facilities and that all new residential development within the city also generates an increased demand for parks and recreation facilities. The city commission hereby finds and declares that the system improvements to be funded by the impact fees imposed herein will provide benefit to all new development in the city.

(c) The city commission hereby finds and declares that there is a long-term need to encourage the provision and retention of owner-occupied and rental affordable housing throughout the city. To encourage such development, the city commission hereby finds and determines that an impact fee deferral program for affordable housing within the city fulfills a public purpose and will help advance the provision of owner-occupied and rental affordable housing. The city commission declares its intent that the affordable housing deferral program not significantly delay the provision of public facilities funded in whole or in part by impact fees.
(Ord. No. 12750, § 2, 12-15-05)

*__Editor's note—__Ord. No. 12750, § 2, adopted December 15, 2005, amended article I in its entirety to read as herein set out. Formerly, article I pertained to similar subject matter and derived from Ord. No. 10426, § 2, adopted April 28, 1988; the Code of 1980, §§ 13-1—13-22; Ord. No. 11814, § 2, adopted July 13, 1999; Ord. No. 12295, § 2, adopted November 19, 2002; Ord. No. 12311, § 2, adopted December 12, 2002; Ord. No. 12542, § 1, adopted June 10, 2004, and Ord. No. 12589, § 2, adopted September 23, 2004.

Sec. 13-3. Intent.

This article is intended to impose impact fees, payable at the time of building permit issuance, in order to fund capital improvements capital facility capacity, and capital equipment needed to address demand for public facilities attributable to new development. This article is not intended to authorize imposition of fees related to capital facility or equipment needs attributable to existing development. This article is intended to allow new development in compliance with the comprehensive plan and to provide a mechanism for new development to help address the burdens created by new development. It is the city commission's intent to suspend imposition of the street impact fee to provide for coordination with Miami-Dade County regarding transit-related transportation system improvements and the development of an appropriate city transportation/transit impact fee.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-4. Authority.

The city commission is authorized to establish and adopt an impact fees pursuant to the authority granted by the Florida Constitution, article VII, sections 1(f), 1(g) and 2(b), the Municipal Home Rule Powers Act, F.S. ch. 166, as amended, the City of Miami Charter, and the Local Government Comprehensive Planning and Land Development Regulation Act (F.S. § 163.3161 et seq., as amended). In addition, the Local Government Comprehensive Planning and Land Development Regulation Act. F.S. § 163.3202(3), as amended, encourages the use of innovative land development regulations, including impact fees. The provisions of this article shall not be construed to limit the power of the city to adopt such ordinance pursuant to any other source of local authority nor to utilize any other methods or powers otherwise available for accomplishing the purposes set forth herein, either in substitution of or in conjunction with this article.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-5. Definitions.

As used in this article, the following words and terms shall have the following meanings, unless another meaning is plainly intended:

Affordable housing shall mean, solely for purposes of this article, owner-occupied and/or rental housing with a purchase cost, value, or monthly rental, as applicable, equal to or less than the amounts established by the applicable standards as determined by the department of community and economic development in relation to the affordable housing and workforce housing impact fee deferral program provided for in this article.

Applicant shall mean the property owner, or duly designated agent of the property owner, of land on which an application for a building permit is submitted and impact fees are due pursuant to this article, or shall mean the property owner or duly designated agent of the property owner of land identified in a credit agreement pursuant to subsection 13-16(e) where such property owner or agent is responsible for the provision of system improvement(s).

Appropriation shall mean, for purposes of this article, funds identified in the capital budget related to a system improvement.

Building permit shall mean the permit required for new construction and additions pursuant to this Code. The term "building permit," as used herein, shall not be deemed to include permits required for demolition of an existing structure. For purposes of this article, a building permit application shall be considered complete and accepted by the city as of the date and time of original submittal if complete building plans have been filed as prescribed by the city's zoning ordinance, as amended, and as specified in a November 30, 2005 Memorandum regarding Building Permit Application from Jose L. Ferras, City Building Official, to the Director of the City Building Department, or as described in [subsection] 13-8.1 for affordable and workforce housing projects, a permit by any government agency or entity and not limited to a permit by the City of Miami.

Capital budget shall mean the city's current fiscal year capital budget which is the first year of the six-year capital improvements program and which identifies capital projects that are proposed to be initiated in that fiscal year or to receive any changes in funding in that fiscal year.

Capital improvement program (CIP) shall mean the city's current six-year program of proposed capital improvements which identifies all capital projects that are proposed to be initiated during the six-year period.

Capital improvement projects shall mean all projects for which funds are appropriated in the CIP. Capital improvement projects, including, but not limited to, capital equipment, land, facilities and site improvements, that are funded in whole or in part with impact fee funds must cost at least $13,000.00 and have a useful life of at least five years.

Central business district means properties having the zoning classification of "CBD" (Central business district) as of November 19, 2002.

City shall mean the City of Miami, Florida.

Commission shall mean the city commission of Miami, Florida.

Comprehensive plan shall mean the city's plan for future development adopted by city ordinance number 10544, and as may be amended and updated from time to time, and any successor comprehensive plan.

Development shall have the meaning given it in F.S. § 380.04, subject to exclusions contained herein.

Dwelling unit shall mean one or more interconnected rooms with a single kitchen facility and sanitary facilities provided for the exclusive use of a single household. The term dwelling unit as used in this article shall be deemed to include mobile home and manufactured home dwellings.

Fire-rescue system improvement means system improvements that add capacity to the city's fire and rescue system, including facilities, fire suppression vehicles and equipment, and emergency medical services vehicles and equipment.

General Services System Improvement means system improvements that add capacity to the city's administrative office space capital equipment and vehicle fleets for the following departments: Building, code enforcement, economic development, city attorney, CIP, GSA, innovation and technology, parks, public works and solid waste.

Governmental uses shall mean buildings or facilities owned and operated by the United States of America or any agency thereof, a sovereign state or nation, the state or any agency thereof, a county, a special district, a school district, a municipal corporation, or a charter school organized and approved as a public school under F.S. § 228.056.

Gross floor area (GFA) shall mean the total square footage of a building measured in feet from the exterior faces of exterior walls or other exterior boundaries of the building, excluding parking areas within the interior of the building. If a site contains multiple buildings, the gross floor area shall be computed separately for each building. The definition of gross floor area in the ITE Trip Generation Manual shall be used to resolve any questions regarding calculation of gross floor area.

High rise residential development shall mean development of residential buildings with ten or more dwelling units per building.

Impact fee shall mean a fee imposed at building permit issuance and calculated based upon a new development's proportionate share of the average cost of new development.

Impact fee coefficient shall mean the charge per square foot of development applicable to development for which a building permit application is submitted to and accepted as complete by the city prior to 5:00 p.m. on January 15, 2006 and imposed pursuant to section 13-7 and sections 13-22 through 13-27.

ITE Trip Generation Manual shall mean and refer to the report entitled "Trip Generation" (Seventh Edition, 2003) of the Institute of Transportation Engineers, and any official updates thereto, as approved and accepted by the city.

Low rise residential development shall mean development of residential buildings with two to nine dwelling units per building.

New development shall mean the carrying out of any building activity or the making of any material change in the use of a structure or land that requires the issuance of a building permit and which generates demand for capital facilities and equipment over and above the previously existing documented use of the structure or land, but excluding governmental uses and de minimis development under section 13-6.

Nonresidential development shall mean all new development other than residential development and governmental uses, as herein defined, and including, but not limited to, industrial, manufacturing, warehousing, mini-warehousing, lodging, schools and daycare, hospital, nursing home, general office, medical-dental office, business park, and commercial uses, and which includes those uses specified in the ITE Trip Generation Manual under Land Use Code Series 100, 300, 400, 500, 600, 700, 800 and 900.

Owner-occupied units means dwelling units for individual sale by a developer and intended for occupancy by an owner, as opposed to rental residential development.

Parks and recreation system improvement means land, capital improvements, capital facilities, and capital equipment that add capacity to the city-wide park system, waterfront park system or public pools/gymnasiums, including, but not limited to, improvements to city-wide parks that will enhance and/or expand park use to all residents, site improvements that encourage self-directed use of passive parks, and recreation based improvements that enhance community parks and allow expansion of programming led by the parks department. Capital improvements can include, but are not limited to, new playground equipment; ball fields for league play; swimming pools and buildings used for recreation programs; site furnishings such as benches, picnic tables, and shade structures; and program equipment such as computers, water sport equipment, soccer goals, and fitness equipment. City-wide parks include those parks that have capital improvements that draw patrons from the entire geographic area of the city, including, but not limited to, ball fields used for league play, swimming pools, and buildings used for recreation programs. Waterfront parks are city-wide parks, generally passive recreation areas, which provide public access to the bay, the Miami River and other bodies of water, including linear improvements or trails that connect waterfront parks.

Police system improvement means land, capital improvements, capital facilities, and capital equipment that add capacity to the city's police system.

Rental residential development shall mean dwelling units intended for long-term rental occupancy, as opposed to short-term rentals such as hotel/motel development.

Single-family residential development shall mean development of detached buildings with one dwelling unit per building intended for occupancy by a single household.

System improvements shall mean capital improvement projects in the CIP, with a cost of at least $13,000.00 and a useful life of at least five years, that provide additional capacity serving multiple development projects, multiple neighborhoods or the entire city. System improvements may include, but are not limited to, land, facilities, site improvements, furnishings, park program equipment, capital equipment, and vehicles. System improvements shall not include property dedications, capital facilities or capital equipment needed solely to serve a specific development. System improvements shall not include replacement, rehabilitation, operations or maintenance of land, facilities or equipment.

System improvement cost shall mean amounts spent or appropriated in connection with the planning, financing, acquisition, construction and development of a system improvement including, without limitation, the costs of land acquisition and development, surveying, site testing, construction, design, engineering, construction management and inspection, permitting, legal services, financial services and administrative costs. Ancillary improvements directly related to a system improvement, including, but not limited to, parking, drainage improvements, landscaping, and capital equipment and furnishings shall be

considered part of the cost of the system improvement. System improvement costs shall not include costs related to operations, maintenance, rehabilitation or replacement of capital facilities or equipment.

Site shall mean a legally described property capable of development pursuant to applicable city ordinances and regulations.

Workforce housing shall mean, solely for purposes of this article, owner-occupied and/or rental housing with a purchase cost, value, or monthly rental, as applicable, equal to or less than the amounts established by the applicable standards for those individuals whose income is between 80 percent to 140 percent of area median income as determined by the department of community and economic development in relation to the affordable housing and workforce housing impact fee deferral program provided for in this article.
(Ord. No. 12750, § 2, 12-15-05; Ord. No. 12929, § 2, 7-10-07; Ord. No. 13475, § 2, 7-24-14; Ord. No. 13564, § 1, 10-22-15; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14138, § 6, 2-9-23; Ord. No. 14415, § 2, 11-20-25)

Sec. 13-6. Applicability of impact fee.

This article shall be uniformly applicable to all new development, and the appropriate impact fees shall be collected prior to issuance of a building permit except where a building permit is issued for:

(1) Additions, remodels, rehabilitation or other improvements to an existing structure and reconstruction of a demolished structure which result in:

a. Net increase of less than 1,000 square feet for a nonresidential structure which development is deemed to have a de minimis impact on the need for pubic facility capacity, or

b. No net increase in the number of residential dwelling units for residential structures.

(2) Any development which is a government-owned and -operated facility.

(3) Any development of regional impact (DRI) (excluding the downtown DRI and the Southeast Overtown/Park West area-wide DRI), for which a development order has been issued by the city before the effective date of this chapter, providing that the building permit for such DRI is obtained within 15 months of the initial effective date of this chapter.

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-7. Imposition of impact fees and establishment of impact fee benefit districts.

(a) Except as set forth in sections 13-6 and 13-8, no building permit shall be issued for a new development as herein defined unless the applicant therefor has paid the impact fees imposed by and calculated pursuant to this article. Building permit applications submitted to and accepted as complete by the city prior to 5:00 p.m. on January 15, 2006, shall pay the impact fees calculated by the zoning department pursuant to sections 13-24—13-27. Building permit applications submitted to and accepted as complete by the city after 5:00 p.m. on January 15, 2006, shall pay the impact fees calculated by the zoning department pursuant to sections 13-7 through 13-12. Should a valid building permit issued by the city for an application submitted prior to 5:00 p.m. on January 15, 2006, expire after that time, the impact fees set forth in sections 13-7—13-12 shall apply to the subsequent issuance of any building permit for that development.

(b) Impact fees shall be calculated by the zoning department based on the development included in the building permit application using:

(1) The land use category or categories applicable to the development,

(2) The number of dwelling units for residential, the gross square footage for nonresidential, or the specific units of development for certain types of nonresidential development, and

(3) The applicable impact fee in each sections 13-9—13-12.

If the land use applicable to a development is not listed in the fee schedules in sections 13-9—13-12, the fees for the most appropriate land use in the fee schedules, based on the characteristics of the proposed development, shall be imposed. When multiple types of development are included in a building, the impact fees shall be calculated for each type of development and included in the total impact fees due. When multiple buildings are included in a building permit application, the impact fees shall be calculated individually for each building and included in the total impact fees due. Where a final petition determination has been made by the city manager or a final decision issued by the city commission after a timely appeal, the impact fees due shall be calculated based on the petition determination or city commission decision.

(c) In furtherance of the implementation of this article, the city commission hereby establishes the following benefit districts and subdistricts for the identified impact fees:

(1) Police impact fee benefit district which boundary is identical with the boundary of the city, as may be adjusted from time to time;

(2) Fire-rescue impact fee benefit district, which boundary is identical with the boundary of the city, as may be adjusted from time to time, with two subdistricts for collection, accounting and expenditures. Fire-Rescue Impact Fee North Subdistrict, defined by the Miami River and the boundary of the city lying northward of the Miami River and Fire-Rescue Impact Fee South Subdistrict, which boundary is defined by the Miami River and the boundary of the city, lying southward of the Miami River;

(3) General services impact fee benefit district which boundary is identical with the boundary of the city, as may be adjusted from time to time; and

(4) Parks and recreation impact fee benefit district which boundary is identical with the boundary of the city, as may be adjusted from time to time.

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-8. Deferral of impact fees for affordable housing and workforce housing; waivers of contributions into the Affordable Housing Trust Fund.

13-8.1 Deferral of impact fees for affordable housing.

(a) In order to encourage the provision and retention of affordable housing and workforce housing for owner-occupancy and for rental, the city commission hereby establishes a program for the deferral of impact fees due on affordable housing and workforce housing dwelling units developed within the city. The city may require, under the program, annual reporting and any other requirements deemed necessary or appropriate for participation in the affordable housing and workforce housing impact fee deferral program. An applicant shall submit a petition for affordable housing and workforce housing deferral program determination under section 13-16 for a determination of eligibility under this program prior to or in conjunction with the submittal of an application for a building permit. If the petition for affordable housing and workforce housing deferral program determination is submitted incomplete and/or too close in time to allow determination prior to issuance of the building permit, then the total impact fees due shall be paid prior to issuance of the building permit, and a petition for refund under subsection 13-16(d) may be submitted if the development is approved for the deferral program.

(b) Affordable housing or workforce housing impact fee deferral shall apply only to the dwelling units that qualify as affordable housing or workforce housing. Impact fees due on all portions of the development that do not qualify for deferral shall be paid in full prior to issuance of a building permit. A covenant running with the land or a deed restriction, shall be recorded on each dwelling unit by the applicant, or by the current property owner if the applicant is not the owner, which confirms to the requirements of the resolution establishing the affordable housing and workforce housing impact fee deferral program. The city may use all available legal mechanisms for collection of the impact fees due.

The covenant or deed restriction language and form shall be acceptable to the office of the city attorney, which office may provide standardized forms for use in the affordable housing and workforce housing deferral program. Notwithstanding any other provision in this Code to the contrary, the deferral and refund of impact fees for affordable housing and workforce housing described in this article shall apply to affordable and workforce housing dwelling units that submit for a building permit to the city or any other government agency or entity provided that the development complies with all other requirements provided in this article, including, but not limited to, the recorded covenant running with the land in a form acceptable to the city attorney.

13-8.2 Waiver of contribution into affordable housing trust fund for affordable housing. In addition to the program for deferral of impact fees for qualified affordable housing established in subsection 13-8.1, the city manager is hereby authorized to approve a waiver of contribution into the city's affordable housing trust fund as set forth in section 914 of the city's zoning ordinance, for affordable housing development that complies with the following requirements:

(1) Such development shall consist of 100 percent affordable housing units for families and/or individuals;

(2) If the project is providing affordable rental housing, then such development shall have secured its necessary low-income housing tax credits from Florida Housing Finance Corporation and shall submit proof of such to the city manager or his designee; and

(3) If the project is providing affordable home ownership, then, prior to the issuance of building permits, the applicant shall provide the city with a covenant and deed restrictions, in forms acceptable to the city attorney, which assure that such units remain affordable for a period of at least 30 years and that the home owner(s) be responsible for submitting proof of such to the city manager, or his designee, on an annual basis, the required covenants shall include enforcement and penalty language to address non-compliance.

(Ord. No. 12929, § 2, 7-10-07; Ord. No. 13564, § 1, 10-22-15; Ord. No. 14415, § 2, 11-20-25)

Editor's note—Ord. No. 12929, § 2, adopted July 10, 2007, amended § 13-8 in its entirety to read as herein set out. Formerly, § 13-8 pertained to deferral of impact fees for affordable housing, and derived from Ord. No. 12750, § 2, adopted December 15, 2005.

Sec. 13-9. Police impact fee schedule.

Land Use	*ITE Code*	*Police Impact Fee*
Residential (per dwelling unit)		
Single-family detached	210	$164.00
Low rise*	230	144.00
High rise**	220	95.00
Nonresidential (per sq. ft. gfa)		
Light industrial	110	0.107
Manufacturing	140	0.059
Warehousing	150	0.076
Mini-warehouse	151	0.038
Hospital	610	0.271
General office (50,000 sf or less)	710	0.242
General office (50,001—100,000 sf)	710	0.206
General office (100,001—200,000 sf)	710	0.176
Medical-dental office	720	0.559
Business park	770	0.197
Commercial/shop ctr. 25,000 sf or less	820	0.751
Commercial/shop ctr. 25,001—50,000 sf	820	0.696
Commercial/shop ctr. 50,001—100,000 sf	820	0.609
Commercial/shop ctr. 100,001—200,000 sf	820	0.527
Commercial/shop ctr. 200,001—400,000 sf	820	0.452
Other nonresidential (per indicated unit)		
Lodging (per room)	320	87.00
Elementary school (per student)	520	19.00
Secondary school (per student)	530	26.00
Day care (per student)	565	69.00
Nursing home (per bed)	620	36.00

NOTE:

* Low rise includes townhouses, duplexes, 3—4 and 5—9 units per building or structure, plus mobile homes and other (e.g. boats, recreational vehicles).

** High rise includes 10—19, 20—49, and 50+ units per building or structure.

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-10. Fire-rescue impact fee schedule.

Land Use	*ITE Code*	*Fire and Rescue Impact Fee*
Residential (per dwelling unit)		
Single-family detached	210	$704.00
Low rise*	230	619.00
High rise**	220	409.00
Nonresidential (per sq. ft. gfa)		
Light industrial	110	0.210
Manufacturing	140	0.162
Warehousing	150	0.116
Mini-warehouse	151	0.003
Hospital	610	0.307
General office (50,000 sf or less)	710	0.355
General office (50,001—100,000 sf)	710	0.336
General office (100,001—200,000 sf)	710	0.317
Medical-dental office	720	0.368
Business park	770	0.287
Commercial/shop ctr. 25,000 sf or less	820	0.302
Commercial/shop ctr. 25,001—50,000 sf	820	0.260
Commercial/shop ctr. 50,001—100,000 sf	820	0.227
Commercial/shop ctr. 100,001—200,000 sf	820	0.201
Commercial/shop ctr. 200,001—400,000 sf	820	0.181
Other nonresidential (per indicated unit)		
Lodging (per room)	320	40.00
Elementary school (per student)	520	7.00
Secondary school (per student)	530	8.00
Day care (per student)	565	14.00
Nursing home (per bed)	620	32.00

NOTE:

* Low rise includes townhouses, duplexes, 3—4 and 5—9 units per building or structure, plus mobile homes and other (e.g. boats, recreational vehicles).

** High rise includes 10—19, 20—49, and 50+ units per building or structure.

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-11. General services impact fee schedule.

Land Use	*ITE Code*	*General Services Impact Fee*
Residential (per dwelling unit)		
Single-family detached	210	$413.00
Low rise*	230	$363.00
High rise**	220	$239.00
Nonresidential (per sq. ft. gfa)		
Light industrial	110	$0.087
Manufacturing	140	$0.068
Warehousing	150	$0.048
Mini-warehouse	151	$0.001
Hospital	610	$0.128
General office (50,000 sf or less)	710	$0.148
General office (50,001—100,000 sf)	710	$0.140
General office (100,001—200,000 sf)	710	$0.132
Medical-dental office	720	$0.153
Business park	770	$0.120
Commercial/shop ctr. 25,000 sf or less	820	$0.126
Commercial/shop ctr. 25,001—50,000 sf	820	$0.108
Commercial/shop ctr. 50,001—100,000 sf	820	$0.095
Commercial/shop ctr. 100,001—200,000 sf	820	$0.084
Commercial/shop ctr. 200,001—400,000 sf	820	$0.076
Other nonresidential (per indicated unit)		
Lodging (per room)	320	$16.00
Elementary school (per student)	520	$3.00
Secondary school (per student)	530	$3.00
Day care (per student)	565	$6.00
Nursing home (per bed)	620	$13.00

NOTE:

* Low rise includes townhouses, duplexes, 3—4 and 5—9 units per building or structure, plus mobile homes and other (e.g. boats, recreational vehicles).

** High rise includes 10—19, 20—49, and 50+ units per building or structure.

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-12. Parks and recreation impact fee schedule.

Land Use	*ITE Code*	*Parks and Recreation Impact Fee*
Residential (per dwelling unit)		
Single-family detached	210	$6,818.00
Low rise*	230	$5,998.00

Land Use	*ITE Code*	*Parks and Recreation Impact Fee*
High rise**	220	$3,959.00

NOTE:

* Low rise includes townhouses, duplexes, 3—4 and 5—9 units per building or structure, plus mobile homes and other (e.g. boats, recreational vehicles).

** High rise includes 10—19, 20—49, and 50+ units per building or structure.

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-13. Administration of impact fee.

(a) *Collection of impact fee.* Impact fees due pursuant to this article shall be collected by the building department prior to issuance of a building permit.

(b) *Transfer of funds to finance department.* Upon receipt of impact fees, the building department shall transfer such funds to the city finance department which shall be responsible for placement of such funds into the appropriate separate accounts by type of impact fee and applicable benefit district, or applicable subdistrict for fire-rescue impact fees. All such funds shall be deposited in interest-bearing accounts in a bank authorized to receive deposits of city funds. Interest earned by each account shall be credited to that account and shall be used solely for the purposes specified for funds of such account. The funds of these accounts shall not be commingled with other funds or revenues of the city.

(c) *Establishment and maintenance of accounts.* The city finance department shall establish separate accounts and maintain records for each such account, whereby impact fees collected are segregated by type of impact fee and by benefit district or applicable subdistrict. A separate account shall be maintained for each type of impact fee by benefit district or subdistrict as follows: fire-rescue impact fee north subdistrict, fire-rescue impact fee south subdistrict, police impact fee district, general services impact fee district and parks and recreation impact fee district. Accounts established in 1988 for the original impact fee benefit/planning districts shall be maintained through FY2008. The city shall use its best efforts to appropriate and expend those funds within the appropriate benefit/planning district, however, the fund balances for the fire-rescue. Police, general services, solid waste, and parks and recreation impact fee funds remaining at the end of FY2008 may be transferred to the appropriate impact fee benefit district or subdistrict established in subsection 13-7(c) and expended within that district or subdistrict.

(d) *Maintenance of records.* The city finance department shall maintain and keep adequate financial records for each such account which shall show the source and disbursement of all revenues, which shall account for all moneys received, including revenue by building permit, and which shall document and ensure that the disbursement of funds from each account shall be used solely and exclusively in accordance with provisions of this article. For purposes of petitions for refunds under section 13-16 of this article, the expenditure and appropriation of impact fees shall be deemed to occur in the same sequential order as the collection of impact fees, in other words, the first fee in shall be the first fee out.

(e) *Impact fee expenditures.* Impact fees collected pursuant to this article shall be expended only for the type of system improvements for which the impact fee was imposed and only within the impact fee benefit district or subdistrict where the impact fee was collected, except as provided in subsection (c) above. Impact fees shall not be expended to eliminate any deficiencies in facilities, land or equipment that may result from adoption of an increased level of service.

(f) *Annual review and modification.* The city, acting through appropriate staff or agents, shall annually, no later than 120 days after the annual capital budget and capital improvements program adoption process, review the impact fee ordinance procedures, assumptions, formulas, benefit district and subdistrict designations, and fee calculations, and issue an annual report. The first annual report shall be issued after September 2006. The annual report shall be distributed to the city commission by the city manager. The annual report should, at a minimum, include information by individual benefit district or subdistrict for the fire-rescue impact fee, on account balances, annual collections annual expenditures and system improvement projects funded in whole or in part with impact fees. The annual report should provide information on the number of owner-occupied units and rental units participating in the affordable housing and workforce housing impact fee deferral program, the number of units added annually, and the number of units no longer meeting the affordable housing and workforce housing deferral program criteria. The report should evaluate the effectiveness of the deferral program in encouraging the provision and retention of affordable housing and workforce housing and the effect, if any, of the deferral program on the provision of impact fee funded public facilities. The annual report should present any recommendations related to

the impact fee system including but not limited to, the need for any updates to the impact fee calculations district boundaries and ordinance. In reviewing the impact fee system, the city may consider:

(1) Development occurring in the prior year;

(2) Construction of proposed public facilities;

(3) Changing facility needs;

(4) Inflation and other economic factors;

(5) Revised cost estimates for public facilities, land and/or improvements;

(6) Changes in the availability of other funding sources applicable to impact-fee-related capital improvements; and

(7) Such other factors as may be relevant. The data in the annual report may be organized based on the city's fiscal year or calendar year. Nothing in this article shall be construed to limit the city commission's authority to amend this article at any time.

(g) *Triennial review and modification.* The city shall conduct a complete review of the impact fees every three years to determine if changes in costs, facility needs, development patterns, demographics and any other relevant factors indicate a need to update the impact fee calculations, data, methodology or other components of the impact fee system. The triennial report issued based on this review shall be distributed to the city commission by the city manager. Changes to the impact fee system, including updated fee calculations, should be adopted within a year of completion of the triennial report.
(Ord. No. 12750, § 2, 12-15-05; Ord. No. 13564, § 1, 10-22-15)

Sec. 13-14. Administrative fees.

Expenses to be incurred by the city in connection with the administration of the development impact fee ordinance have been estimated and budgeted and have been determined to be of benefit to the properties therein and shall be reimbursed to impact fee administration fund of the city out of the revenues accruing through the imposition of a service charge in the amount of three percent of the impact fee due. The nonrefundable service charges are in addition to and shall be paid separately from the impact fees but shall be payable at the time of application for the building permit and shall be for the sole purpose of defraying expenses as provided herein.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-15. Bonding of capital improvement projects.

The city may issue bonds, revenue certificates and other obligations of indebtedness in such manner and subject to such limitations as may be provided by law, in furtherance of the provision of impact fee funded projects. Funds pledged toward retirement of bonds, revenue certificates or other obligations of indebtedness for such projects may include impact fees and other city revenues as may be allocated by the city commission. Impact fees paid pursuant to this article, however, shall be restricted to use solely and exclusively for financing, directly, or as a pledge against bonds, revenue certificates and other obligations of indebtedness for, the cost of system improvements.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-16. Administrative procedures for petitions for impact fee determinations and affordable housing and workforce housing deferrals, refunds and credits.

(a) *Petition process.*

(1) Petitions for an impact fee determination and affordable housing or workforce housing impact fee deferral refund of impact fees and/or credit against impact fees shall be submitted using the petition process, requirements and time limits provided herein. All petition requests except petitions for refunds under subsections (c) and (d), shall be accompanied by a fee of $250.00. Any officer department board commission or agency of the city (collectively referred to as city "entities") submitting a petition shall not be required to pay said fee.

(2) All petitions shall be submitted to the city manager's designee for processing and preparation of a staff report and recommendations on the petition, and the final determination on the petition shall be issued by the city manager. The city manager's designee is authorized to request analysis of the petition request by any and all appropriate city departments and staff in order to provide a complete and detailed review of and recommendations on the petition request to the city manager. The staff report and recommendations shall be forwarded to the city manager no later than 60 days after filing of a complete petition. The city manager shall, no later than 90 days of filing of the complete petition issue a written determination on the petition, with the reasoning for the determination based upon the petition data, the provisions of this article and applicable laws, and, if needed, direct the appropriate city staff to take the actions necessary to implement the determination.

(3) Upon written agreement by the city manager's designee and the petitioner the time limits in this section may be waived for any reason, including, but not limited to, the submittal of additional data and supporting statements by the petitioner. The city manager's designee is authorized to determine whether a petition is complete and whether additional data or supporting statements by appropriate professionals are needed. If the city manager's designee determines that the petition is not complete, a written statement detailing the insufficiencies of the petition shall be provided to the petitioner within 30 days of initial filing of the petition. The date of such written determination of insufficiency shall toll the time limits established in the section until submittal of a complete petition. Any insufficiency not corrected during such time will cause the petition to not be considered, and it will be returned without the necessity of further action.

(4) The filing of a petition shall stay action by the city on the application for building permit and any other city action related to the development. No building permit shall be issued for development for which a petition has been filed and is pending unless the total impact fees due have been paid in full or a sufficient bond or letter of credit satisfactory to the city attorney has been filed with the city.

(b) *Petitions for impact fee determination.* Any applicant, prior to in conjunction with the submission of an application for a building permit, or within 30 days of the date of payment of impact fees, may petition the city manager for a determination that the amount of the impact fees imposed on the new development is inappropriate based on any or all of the following factors the specific land use category applied to the residential or nonresidential development and the amount of development (dwelling units and/or gross square footage). The petition shall specify in detail the basis on which the applicant asserts that the amount of the impact fees is inappropriate. The petition shall be on a form provided by the city and shall, at a minimum, include identification of the disputed factor(s), a detailed statement asserting the basis for the dispute, the data relied upon by the petition and a detailed statement by a qualified professional engineer, planner or other appropriate professional, and, if filed after payment of impact fees, a dated receipt for payment of the impact fees issued by the city's building department. Failure to timely file a petition for impact fee determination shall waive any right to review or recalculation to decrease the impact fee payment.

(c) *Petitions for affordable housing and workforce housing deferral program determinations.* Any applicant for deferral of impact fees pursuant to the affordable housing and workforce housing impact fee deferral program established in section 13-8 shall submit a petition prior to or with submittal of a building permit application. Failure to timely file a petition for affordable housing and workforce housing deferral program determination shall waive any right to participation in the affordable housing and workforce

housing deferral program. Such petition shall be on a form provided by the city and shall at a minimum include the following:

(1) A list of all affordable and workforce housing unit numbers by building with the total number of dwelling units for each building and the anticipated sales price or rental amount for each affordable housing unit.

(2) A list of all anticipated affordable and workforce housing unit owner names and current addresses and other contact information. If such information is available, if the information is not available the petition may be processed without it.

(3) A covenant running with the land, previously recorded by the applicant in the public records of the county for each affordable or workforce housing unit. The recorded covenant shall be on a form provided by the city and shall be in a form acceptable to the office of the city attorney. A deed restriction, in a form acceptable to the office of the city attorney may be submitted in lieu of a covenant as long as it accomplishes the same goal as the covenant.

(4) Any other information deemed relevant by city staff to a determination of eligibility under the affordable housing and workforce housing deferral program, including criteria established in this article and the applicable city commission resolution.

(d) *Petitions for refund of impact fees.*

(1) The current owner of property on which an impact fee has been paid may apply for a refund of such fee if the city has failed to appropriate or spend the collected fees by the end of the calendar quarter immediately following six years of the date of payment of the impact fee, if the building permit for which the impact fee has been paid has lapsed for noncommencement of construction, if the project for which a building permit has been issued has been altered resulting in a decrease in the amount of the impact fee due, or if the project has been approved for the affordable housing and workforce housing deferral program.

(2) Only the current owner of property may petition for a refund. A petition for refund must be filed within 90 days of any of the above-specified events giving rise to the right to claim a refund. Failure to timely file a petition for refund shall waive any right to an impact fee refund.

(3) The petition for refund shall be submitted to the city manager's designee on a form provided by the city for such purpose. The petition shall contain a notarize affidavit that petitioner is the current owner of the property, a certified copy of the latest tax records of Miami-Dade County showing the owner of the subject property, a copy of the dated receipt for payment of the impact fee issued by the city's building department and a statement of the basis upon which the refund is sought.

(4) If a building permit applicant has paid impact fees and withdraws the building permit application, then the actual payor may petition for a refund within 90 days of the withdrawal of the building permit application that caused the impact fee to be due, if and only if the building permit has not been approved and issued. Failure to timely file a petition for refund shall waive any right to an impact fee refund. The petition for refund shall be submitted to the city manager's designee on a form provided by the city for such purpose. The petition shall contain (i) a notarized affidavit that the petitioner is the actual and only payor of the impact fees for the withdrawn building permit application; (ii) a copy of the dated receipt for payment of the impact fee issued by the city's building department; and (iii) a statement of the basis upon which the refund is sought. The city manager's designee shall have authority to request additional documents necessary to confirm the petitioner is the actual and only

payor of the impact fees subject to refund and confirm that no impact requiring impact fees has occurred.

(5) Any money refunded pursuant to this subsection shall be returned with interest at a rate of three percent per annum.

(e) *Petition for credits against impact fees.*

(1) Any applicant as defined in this article who elects to construct or dedicate all or a portion of a system improvement as defined in this article, or, who escrows money with the city for the construction of a system improvement may, if all criteria in this article and this subsection (e) are fulfilled, be granted a credit for such contribution against the impact fees otherwise due for the same type of system improvement. The applicant must, prior to the applicant's construction, dedication or escrow of the system improvement, submit a petition on a form provided by the city, obtain a determination of credit eligibility and the amount of any credit, and enter into a credit agreement with the city. The petition for credit shall contain, at a minimum, the following a certified copy of the most recently recorded deed for the subject property preliminary engineering plans and certified costs estimates by an architect, engineer or other appropriate professional for the proposed improvement legal description of any land proposed to be contributed, proposed schedule for completion of any construction/dedications identification of the proposed improvement in the current adopted CIP and the amount of impact fee funding for the improvement and identification in detail of the development against which the credits are to apply or which will pay the impact fees to be used for the credit including the land use type(s), number of units/gross floor area, anticipated development schedule, and legal descriptions of the subject property. Any appeal of petition determinations on credits must be filed, heard, and determined prior to the applicant's construction, dedication or escrow for which the credit is requested. Failure to timely file a petition for impact fee credits shall waive any right to impact fee credits.

(2) A credit shall be granted and the amount of the credit shall be determined by the city manager if it is determined that the system improvement is in the adopted, current capital improvements plan and is funded in whole or in part with impact fee revenue. The amount of the credit shall be based on actual costs certified by a professional engineer or architect submitted by the applicant and reviewed and approved by the appropriate city department. In no event shall the credit exceed the amount of impact fees budgeted for that system improvement or the amount of the impact fees for the same type of system improvements that are due from the development requesting the credit whichever amount is smaller. If the impact fees due exceed the amount of credit the applicant shall pay the impact fees due less the credit at the time of issuance of the building permit.

(3) If a credit petition is approved the applicant and the city shall enter into a credit agreement which shall provide for, but is not limited to the following the process to be used to verify actual costs the value of any dedicated land or methodology to determine the value of any dedicated land the obligations and responsibilities of the applicant, including but not limited to:

a. Public bidding or solicitation requirements;

b. Engineering, design and construction standards and requirements to be complied with;

c. Insurance bonding and indemnification requirements;

d. Project inspection standards and responsibilities;

e. Timing of the actions to be taken by the applicant;

f. Transfer of title to land and improvements;

g. Process for submittal of credit payment requests; and

h. Timing of payments by the city.

No impact fee credits shall be paid or provided until any land has been dedicated and conveyed to the city and/or the facilities have been constructed and accepted or alternatively until a bond has been posted to ensure the conveyance and/or construction. Any bond shall be issued by a state surety and in a form acceptable to the city attorney and risk manager. The city's obligation to pay impact fee credits shall be limited to the impact fees collected from the development for a period not to exceed ten years from the date of approval of the agreement. The credit agreement shall provide for forfeiture of any impact fee credit remaining at the end of such ten—year period. The credit applicant shall agree to provide recorded notice to subsequent purchasers/owners of the property regarding the credit, if any, that may be available to such purchasers and shall agree to indemnify the city for any and all costs and liabilities arising from any claims by others related to the impact fee credit.

(Ord. No. 12750, § 2, 12-15-05; Ord. No. 12929, § 2, 7-10-07; Ord. No. 13564, § 1, 10-22-15; Ord. No. 13601, § 2, 4-28-16; Ord. No. 14061, § 2, 4-28-22)

Sec. 13-17. Appeal to city commission.

(a) A petition determination by the city manager shall be final unless a written notice of appeal to the city commission is filed with the director of the department of zoning within 20 days of the date of the written determination by the city manager, together with payment of a $500.00 fee. Such appeal may be filed by the applicant, the petitioner, or by any officer, department, board, commission, or agency of the city. All such appeals to the city commission shall be subject to the disclosure requirements of section 2-618. The above-specified city entities shall not be required to pay said fee. Failure to timely file a request for review of a petition determination shall waive any right to any further review of the petition determination.

(b) The director of zoning shall then certify such appeals through the office of the city manager.

(c) Appeals shall be filed on a form provided by the city and accompanied by ten copies of all documents for consideration by the city commission including but not limited to the petition submittal and all accompanying documents, the petition determination and any additional documents, exhibits, technical reports, or other written evidence the appellant wants the city commission to consider. Should the appellant want to submit additional written material after the initial filing of notice of appeal ten complete copies of such material shall be submitted to the director of zoning no later than 30 days prior to the hearing date. If any material is submitted after that date the city commission shall reschedule the hearing to a later date to provide adequate time for review of the material by city staff and the city manager notwithstanding the 90-day period established under subsection (d).

(d) The city commission on review shall have full power to affirm, reverse, or modify the action of the city manager so long as such commission action is based on applicable law and the provisions of this article. The appeal shall be heard by the city commission not more than 90 days after the appeal is filed by the appellant.

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-18. Judicial review.

Any request for review of a decision by the city commission under this article shall be made by filing an appeal within 30 days of said decision with the circuit court in accordance with the Florida Rules of Appellate Procedure.

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-19. Effect of impact fee on planning, zoning, subdivision, and other regulations.

This article shall not affect, in any manner, the permissible use of property, density of develop-

ment, design and improvement standards and requirements or any other aspect of the development of land or provision of public improvements subject to the city's comprehensive plan, zoning regulations, subdivision regulations, or other regulations of the city, all of which shall be operative and remain in full force and effect without limitation with respect to all such development.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-20. Impact fee as additional and supplemental requirement.

The payment of impact fees imposed pursuant to this article is additional and supplemental, and not in substitution, any other requirements imposed by the city on the development of land or the issuance of building permits. It is intended to be consistent with and to further the objectives and policies of the comprehensive plan, the zoning ordinance, and to be coordinated with the city's capital improvement program, and other city policies, ordinances and resolutions by which the city seeks to ensure the provision of public facility improvements in conjunction with the development of land. In no event shall a property

owner be required to pay impact fees for the same improvements in an amount in excess of the amount calculated pursuant to this article, provided, however, that a property owner may be required to provide or pay, pursuant to Miami-Dade County, state and/or city ordinances, policies or regulations, for public facility improvements in addition to payment of impact fees pursuant to this article. Nothing in this article shall be construed as a guarantee of adequate public facilities at the time of development of any particular property.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-21. Alternative collection method.

In the event that the appropriate amount of impact fees due pursuant to this article are not paid prior to the issuance of a building permit, the city may elect to collect the impact fees due by any other method which is authorized by law.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-22. Previous impact fee schedules.

The language presented in sections 13-22—13-27 is retained from previous sections 13-8—13-12 for the purpose of imposition of impact fees on development with building permit applications submitted and accepted as complete by the city prior to 5:00 p.m. on January 15, 2006. Sections 13-23—13-27 are applicable only to development with building permit applications submitted and accepted as complete by the city prior to 5:00 pm on January 15, 2006 which development proceeds to issuance of certificate of occupancy without lapse or expiration of the original building permit.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-23. Establishment of development subareas.

Development subareas are established as shown on the "City of Miami Planning District Maps" attached hereto and incorporated herein but not printed in the Code by reference as appendix A.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-24. Development potential by subarea.

Planning District	*Residential*	*Nonresidential*	*Total*
Edison	772,320	1,289,836	2,062,156
Downtown	20,006,667	10,493,783	30,500,450
Coconut Grove	3,099,000	1,057,868	4,156,868
Little Havana	1,371,840	3,231,166	4,603,006
Flagami	604,800	507,128	1,111,928
Allapattah	684,000	2,480,863	3,164,863
Virginia Key	0	310,000	310,000
Total square footage	26,538,627	19,370,644	45,909,271

*Projections are for the period April 1, 1988, through March 31, 2005.

Note: See appendix B of Ord. No. 10426 [not printed in the Code] for a more detailed breakdown.
(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-25. Impact-fee-related capital improvement program by subarea.

Total project costs by subareas are as follows:

Estimated Costs of Additional Facilities—Total

Planning District	*Police*	*Fire and Rescue*	*Parks and Recreation*	*Streets*	*Storm Sewers*	*Solid Waste*	*General Services Administration*	*Overall Cost*
Edison	$ 379,398	$ 35,580	$ 168,205	$ 608,613	$ 304,303	$ 200,994	$ 150,732	$ 1,847,825
Downtown	3,256,425	1,099,605	7,375,087	8,597,750	4,298,871	2,129,138	1,425,681	28,182,557
Coconut Grove	352,578	47,410	539,964	1,862,288	931,141	277,090	169,499	4,179,970
Little Havana	939,672	68,574	298,781	959,993	479,993	469,284	363,988	3,580,285

Planning District	*Police*	*Fire and Rescue*	*Parks and Recreation*	*Streets*	*Storm Sewers*	*Solid Waste*	*General Services Administration*	*Overall Cost*
Flagami	154,926	0	131,721	603,595	301,794	97,335	66,545	1,355,916
Allapattah	714,410	0	148,970	1,053,562	526,778	337,855	270,536	3,052,111
Virginia Key	87,635	0	0	0	0	37,019	31,737	156,391
Total cost	$5,885,044	$1,251,169	$8,662,728	$13,685,801	$6,842,880	$3,548,715	$2,478,718	$42,355,055

Residential—Estimated Costs of Additional Facilities

Planning District	*Police*	*Fire and Rescue*	*Parks and Recreation*	*Streets*	*Storm Sewers*	*Solid Waste*	*General Services Administration*	*Overall Cost*
Edison	$314,767	$ 9,654	$ 168,205	$ 227,938	$ 113,967	$ 46,964	$ 18,679	$ 600,174
Downtown	289,863	394,357	3,137,360	5,639,665	2,819,831	875,977	351,309	13,508,362
Coconut Grove	53,524	20,969	539,964	1,388,362	694,179	150,762	61,194	2,908,954
Little Havana	26,232	11,602	298,781	286,107	143,052	83,421	33,178	882,373
Flagami	11,565	0	131,721	328,308	164,153	36,776	14,627	687,150
Allapattah	13,079	0	148,970	227,698	113,848	41,593	16,543	561,731
Virginia Key	0	0	0	0	0	0	0	0
Total cost	$409,030	$436,582	$4,425,001	$8,098,078	$4,049,030	$1,235,493	$495,530	$19,148,744

Nonresidential—Estimated Costs of Additional Facilities

Planning District	*Police*	*Fire and Rescue*	*Parks and Recreation*	*Streets*	*Storm Sewers*	*Solid Waste*	*General Services Administration*	*Overall Cost*
Edison	$ 364,631	$ 25,926	$ 0	$ 380,675	$ 190,336	$ 154,030	$ 132,053	$ 1,247,651
Downtown	2,966,562	705,248	4,237,727	2,958,085	1,479,040	1,253,161	1,074,372	14,674,195
Coconut Grove	299,054	26,441	0	473,926	236,962	126,328	108,305	1,271,016
Little Havana	913,440	56,972	0	673,886	336,941	385,863	330,810	2,697,912
Flagami	143,361	0	0	275,287	137,641	60,559	51,918	668,766
Allapattah	701,331	0	0	825,864	412,930	296,262	253,993	2,490,380
Virginia Key	87,635	0	0	0	0	37,019	31,737	156,391
Total cost	$5,476,014	$814,587	$4,237,727	$5,587,723	$2,793,850	$2,313,222	$1,983,188	$23,206,311

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-26. Development impact fee coefficients.

Residential Impact Fee Coefficients by Type of Service and Planning District (dollars per square foot)

Planning District	*Police*	*Fire and Rescue*	*Parks and Recreation*	*Streets*	*Storm Sewers*	*Solid Waste*	*General Services Administration*	*Overall Cost*
Edison	$0.019	$0.013	$0.218	$0.295	$0.148	$0.061	$0.024	$0.778
Downtown	0.014	0.020	0.157	0.282	0.141	0.044	0.018	0.676
Coconut Grove	0.017	0.007	0.174	0.448	0.224	0.049	0.020	0.939

Planning District	*Police*	*Fire and Rescue*	*Parks and Recreation*	*Streets*	*Storm Sewers*	*Solid Waste*	*General Services Administration*	*Overall Cost*
Little Havana	0.019	0.008	0.218	0.209	0.104	0.061	0.024	0.643
Flagami	0.019	0.000	0.218	0.543	0.271	0.061	0.024	1.136
Allapattah	0.019	0.000	0.218	0.333	0.166	0.061	0.024	0.821
Virginia Key	0.000	0.000	0.000	0.000	0.000	0.000	0.000	0.000

Nonresidential Impact Fee Coefficients by Type of Service and Planning District
(dollars per square foot)

Planning District	*Police*	*Fire and Rescue*	*Parks and Recreation*	*Streets*	*Storm Sewers*	*Solid Waste*	*General Services Administration*	*Overall Cost*
Edison	$0.283	$0.020	$0.000	$0.295	$0.148	$0.119	$0.102	$0.967
Downtown	0.283	0.067	0.404	0.282	0.141	0.119	0.102	1.398
Coconut Grove	0.283	0.025	0.000	0.443	0.224	0.119	0.102	1.201
Little Havana	0.283	0.018	0.000	0.209	0.104	0.119	0.102	0.835
Flagami	0.283	0.000	0.000	0.543	0.271	0.119	0.102	1.318
Allapattah	0.283	0.000	0.000	0.333	0.166	0.119	0.102	1.003
Virginia Key	0.283	0.000	0.000	0.000	0.000	0.119	0.102	0.504

The derivation of impact fee coefficients by type of service is as follows:

a. Police—Residential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 14,767	$ 289,863	$ 53,524	$ 26,232	$ 11,565	$ 13,079	$ 0
Projected residential growth (sq. ft.)	772,320	20,006,667	3,099,000	1,371,840	604,800	684,000	0
Impact fee coefficient ($/sq. ft.)	$0.019	$0.014	$0.017	$0.019	$0.019	$0.019	$0.000

b. Police—Nonresidential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 364,631	$ 2,966,562	$ 299,054	$ 913,440	$143,361	$ 701,331	$ 87,635
Projected nonresidential growth (sq. ft.)	1,289,836	10,493,783	1,057,868	3,231,166	507,128	2,480,863	310,000
Impact fee coefficient ($/sq. ft.)	$0.283	$0.283	$0.283	$0.283	$0.283	$0.283	$0.283

c. Fire and rescue—Residential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 9,654	$ 394,357	$ 20,969	$ 11,602	$ 0	$ 0	$ 0
Projected residential growth (sq. ft.)	772,320	20,006,667	3,099,000	1,371,840	604,800	684,000	0

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Impact fee coefficient ($/sq. ft.)	$0.013	$0.020	$0.007	$0.008	$0.000	$0.000	$0.000

d. Fire and rescue—Nonresidential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 25,926	$ 705,248	$ 26,441	$ 56,972	$ 0	$ 0	$ 0
Projected nonresidential growth (sq. ft.)	1,289,836	10,493,783	1,057,868	3,231,166	507,128	2,480,863	310,000
Impact fee coefficient ($/sq. ft.)	$0.020	$0.067	$0.025	$0.018	$0.000	$0.000	$0.000

e. Parks and recreation—Residential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$168,205	$ 3,137,360	$ 539,964	$ 298,781	$131,721	$148,970	$ 0
Projected residential growth (sq. ft.)	772,320	20,006,667	3,099,000	1,371,840	604,800	684,000	0
Impact fee coefficient ($/sq. ft.)	$0.218	$0.157	$0.174	$0.218	$0.218	$0.218	$0.000

f. Parks and recreation—Nonresidential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 0	$ 4,237,727	$ 0	$ 0	$ 0	$ 0	$ 0
Projected nonresidential growth (sq. ft.)	1,289,836	10,493,783	1,057,868	3,231,166	507,128	2,480,863	310,000
Impact fee coefficient ($/sq. ft.)	$0.000	$0.404	$0.000	$0.000	$0.000	$0.000	$0.000

g. Streets—Residential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$227,938	$ 5,639,665	$1,388,362	$ 286,107	$328,308	$227,698	$ 0
Projected residential growth (sq. ft.)	772,320	20,006,667	3,099,000	1,371,840	604,800	684,000	0
Impact fee coefficient ($/sq. ft.)	$0.295	$0.282	$0.448	$0.209	$0.543	$0.333	$0.000

h. Streets—Nonresidential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 380,675	$ 2,958,085	$ 473,926	$ 673,886	$275,287	$ 825,864	$ 0
Projected nonresidential growth (sq. ft.)	1,289,836	10,493,783	1,057,868	3,231,166	507,128	2,480,863	310,000
Impact fee coefficient ($/sq. ft.)	$0.295	$0.282	$0.448	$0.209	$0.543	$0.333	$0.000

i. Storm sewers—Residential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$113,967	$ 2,819,831	$ 694,179	$ 143,052	$164,153	$113,848	$ 0
Projected residential growth (sq. ft.)	772,320	20,006,667	3,099,000	1,371,840	604,800	684,000	0
Impact fee coefficient ($/sq. ft.)	$0.148	$0.141	$0.224	$0.104	$0.271	$0.166	$0.000

j. Storm sewers—Nonresidential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 190,336	$ 1,479,040	$ 236,962	$ 336,941	$137,641	$ 412,930	$ 0
Projected nonresidential growth (sq. ft.)	1,289,836	10,493,783	1,057,868	3,231,166	507,128	2,480,863	310,000
Impact fee coefficient ($/sq. ft.)	$0.148	$0.141	$0.224	$0.104	$0.271	$0.166	$0.000

k. Solid waste—Residential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 46,964	$ 875,977	$ 150,762	$ 83,421	$36,776	$ 41,593	$ 0
Projected residential growth (sq. ft.)	772,320	20,006,667	3,099,000	1,371,840	604,800	684,000	0
Impact fee coefficient ($/sq. ft.)	$0.061	$0.044	$0.049	$0.061	$0.061	$0.061	$0.000

l. Solid waste—Nonresidential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 154,030	$ 1,253,161	$ 126,328	$ 385,863	$ 60,559	$ 296,262	$ 37,019
Projected nonresidential growth (sq. ft.)	1,289,836	10,493,783	1,057,868	3,231,166	507,128	2,480,863	310,000
Impact fee coefficient ($/sq. ft.)	$0.119	$0.119	$0.119	$0.119	$0.119	$0.119	$0.119

m. General services administration—Residential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 18,679	$ 351,309	$ 61,194	$ 33,178	$ 14,627	$ 16,543	$ 0
Projected residential growth (sq. ft.)	772,320	20,006,667	3,099,000	1,371,840	604,800	684,000	0
Impact fee coefficient ($/sq. ft.)	$0.024	$0.018	$0.020	$0.024	$0.024	$0.024	$0.000

n. General services administration—Nonresidential

Planning District	*Edison*	*Downtown*	*Coconut Grove*	*Little Havana*	*Flagami*	*Allapattah*	*Virginia Key*
Estimated cost of improvements	$ 132,053	$ 1,074,372	$ 108,305	$ 330,810	$ 51,918	$ 253,993	$ 31,737
Projected nonresidential growth (sq. ft.)	1,289,836	10,493,783	1,057,868	3,231,166	507,128	2,480,863	310,000
Impact fee coefficient ($/sq. ft.)	$0.102	$0.102	$0.102	$0.102	$0.102	$0.102	$0.102

(Ord. No. 12750, § 2, 12-15-05)

Sec. 13-27. Calculation of impact fee.

(a) Upon receipt and acceptance by the city of a complete application for a building permit for a new development prior to 5:00 p.m. on January 15, 2006, the zoning department shall determine the amount of the impact fee due pursuant to the following procedure:

(1) Determine whether the development is exempt as follows:

a. Single-family residential development.

b. Development of less than 1,000 square feet not resulting in a net increase in the number of residential dwelling units.

c. Duplex in multiple family residential development located in the city's designated neighborhood development zones or their equivalent as defined within the effective community development block grant program approved by the city and accepted by the U.S. Department of Housing and Urban Development, as may be amended.

d. Duplex and multiple family residential development, outside of neighborhood development zones or their equivalent as stipulated hereinabove which is certified by the department of community development as affordable housing with the waiver calculated as a pro rata amount represented by the relationship of the number of affordable housing units in such development, as certified by the department of community development to the total number of units in such development.

e. Any development which is a nonprofit joint venture with the city, or city-owned or -operated facility.

f. Any development of regional impact (DRI) (excluding the downtown DRI and the Southeast Overtown/Park West areawide DRI) for which a development order has been issued by the city before the effective date of this article, providing that the building permit for such DRI is obtained within 15 months of the effective date of this article.

g. As of November 19, 2002, the first three residential development projects that include 201 or more units of multiple family owner-occupied housing valued for purchase by middle-income families located within the downtown central business district, for which a building permit for construction not merely for demolition or foundation work, is issued by the city no later than December 31, 2005 which development shall have at least 70 percent of the units in such development priced for purchase at a value not less than 121 percent and not more than 300 percent of the median value of owner-occupied dwelling units in the city as listed in the 2000 U.S. Census the exemption shall apply only to the residential portion of the development and only to the portions of the development for which the specified building permit is issued prior to December 21, 2005.

(2) Identify the property's development subarea (i.e., the planning district wherein it falls).

(3) Calculate the gross square footage of floor area of the building for residential and nonresidential, excluding any exempt portions of the development pursuant to subsection (a)(1).

(4) Multiply the gross square footage of the development by the appropriate subarea impact fee coefficients in section 13-26.

(5) Review and, if appropriate, reduce, upon written request of the applicant and verification by the zoning department, the amount of impact fee calculated and otherwise due, by the value to the city of any capital improvements provided by the applicant which are listed in the impact-fee-related capital improvement program. Evidence of capital improvement provision cost shall be submitted by the applicant and shall be subject to review by the city. In no event, however, shall a credit be given for that specific category of projects for more than the amount of the impact fee otherwise due pursuant to this article.

(b) Prior to making an application for a building permit, an applicant may request a nonbinding good-faith impact fee estimate from the zoning department. The estimate shall be based upon the development potential of the particular site as measured by either:

(1) The maximum allowable gross square footage permitted by existing zoning, or

(2) The total gross square footage indicated in the applicant's building plan. The square footage thus determined is then multiplied by the applicable impact fee coefficient.

(Ord. No. 12750, § 2, 12-15-05)

Secs. 13-28—13-50. Reserved.

ARTICLE II. DOWNTOWN DEVELOPMENT SUPPLEMENTAL FEE*

Sec. 13-51. Short title.

This article shall be known and cited as the "City of Miami downtown development supplemental fee ordinance."
(Ord. No. 12678, § 2, 4-28-05)

Sec. 13-52. Intent.

(a) This article is intended to impose the downtown development supplemental fee as a supplemental fee on new development within the downtown DRI project area, utilizing the defined terms in section 13-53. The downtown development supplemental fee comprises three components including a transportation mitiga-

*__Editor's note—__Ord. No. 12678, § 2, adopted April 28, 2005, amended article II in its entirety to read as herein set out. Formerly, article II pertained to similar subject matter and derived from Ord. No. 10461, § 1, adopted July 14, 1988; the Code of 1980, §§ 13-41—13-55; Ord. No. 12295, § 3, adopted November 19, 2002. The exhibits referred to in this article are not reproduced in the Code; they can be found on file in city records in the office of the city clerk.

tion fee, a DRI/master plan recovery fee and an administration fee. The downtown development supplemental fee is payable prior to the time of building permit issuance or upon application for certain permits, as provided for herein, in an amount based upon the appropriate units of land use, in order to mitigate the impacts of the proposed development in the project area, as set forth in Exhibit E of Ordinance No. 13704 since the demand for the mitigation is uniquely attributable to such net new development on an area-wide basis.

(b) This article shall be uniformly applicable to all net new development within the project area. This fee shall not be applicable to any activity which is not classified as "net new development" as defined in section 13-53 or which has, on the effective date of the master and Increment I downtown DRI development orders, a valid building permit or currently effective DRI development order.
(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Sec. 13-53. Definitions.

As used in this article, the following words and terms shall have the following meanings, unless another meaning is plainly intended.

ADA or *application for development approval* shall mean the original application for development approval for the downtown Miami project area filed by the DDA on November 25, 1986, pursuant to F.S. § 380.06 (1987), as amended by the Increment II ADA filed by the DDA on February 13, 2002.

Administration fees shall mean a fee charged to all new development to pay for the city's administrative costs for enforcing the terms and conditions of the downtown development orders, including but not limited to preparation of ordinances and procedures, review of permit applications, monitoring compliance with requirements, and enforcing violations, and which shall be a component of the downtown development supplemental fee.

Air quality fees shall mean a fee charged to all net new development to pay for the for the city's costs for air quality monitoring, modeling and mitigation measures as required in the Increment I and II development orders for downtown Miami; and which shall be a component of the downtown development supplemental fee through in Increment I and Increment II.

Applicant shall mean an individual, corporation, business trust, estate, trust, partnership, association, two or more persons acting as coapplicants, any county or state agency, any other legal entity, or the authorized representative of any of the aforementioned, signing an application for a building permit.

Attractions/recreation use shall mean theaters, performance halls, sports arenas, museums, and similar cultural, entertainment, or recreational facilities.

Building permit shall mean any permit required for new construction and additions pursuant to the Florida Building Code.

By-right project shall mean a project that is designed to conform to all the applicable standards of the Ordinance No. 13114, the Zoning Ordinance of the City of Miami, Florida, as amended ("Miami 21 Code"), and any other specific requirements that may be enumerated elsewhere in the City Code.

CADA or *consolidated application for development approval* shall mean the revised ADA prepared pursuant to the requirements of F.S. § 380.06 (2017).

Central business district shall be as defined in section 13-5.

Certificate of occupancy shall mean a permanent or temporary and/or partial certificate of occupancy issued, pursuant to the Florida Building Code.

City shall mean the City of Miami, Florida.

Class II special permit shall mean a special permit issued by the planning director pursuant to Ordinance No. 11000, the previous zoning ordinance of the city, as amended, and the Miami 21 Code, as amended and as applicable.

Commission shall mean the city commission of Miami, Florida.

Comprehensive plan shall mean the city's plan for future development adopted by city Ordinance Number 10544, and as may be amended and updated from time to time.

Convention use shall mean meeting rooms, banquet halls, exhibition halls, auditoriums, and their auxiliary spaces intended for use by conventions, seminars, exhibitions, and the like, which shall exceed the minimum standard for ancillary facilities within the definition of "hotel use".

DDA or *downtown development authority* shall mean the downtown development authority of the city.

DO or *downtown development order* shall mean orders granting with conditions for a development permit, as defined by F.S. § 163.3164 (2017), for the Downtown DRI. The master development order was approved by Resolution No. 87-1148, Increment I was established by Resolution No. 87-1149, Increment II was established by Resolution No. 02-1307, and Increment III was established by Ordinance No. 13704.

Downtown development supplemental fee shall mean a fee charged to net new development in the project area comprised of components including a transportation mitigation fee, an administration fee, and a DRI/master plan recovery fee which are assessable to the net new development according to the provisions of this article.

Downtown development supplemental fee coefficient shall mean the charge per unit of land use as calculated for each component of the downtown development supplemental fee.

DRI shall mean "development of regional impact" as defined by F.S. § 380.06 (2017), and includes any development which, because of its character, magnitude, or location, would have a substantial effect upon the health, safety, or welfare of citizens of more than one county.

DRI/master plan recovery fee shall mean a fee charged to all net new development to reimburse the city and/or DDA for costs incurred in the DRI/master plan study and future related studies in accordance with the CADA and the downtown DRI development orders, and which shall be a component of the downtown development supplemental fee.

DU or *dwelling unit* shall mean a residence of a single housekeeping unit as further defined in the Miami 21 Code.

Hotel use shall mean land use functions predominantly of sleeping accommodations occupied on a rental basis for limited periods of time as further defined in the Miami 21 Code. These are measured in terms of lodging units. A lodging unit is a furnished room of a minimum 200 square feet that includes sanitary facilities and may include limited kitchen facilities. "Hotel uses" may include meeting and banquet facilities and convenience goods and services for hotel guests, provided that the total of such ancillary facilities shall not exceed 15 percent of the gross square footage of the proposed hotel.

Industrial use shall mean land uses connected with a business or activity involving manufacturing, fabrication, assembly, distribution, disposal, warehousing, bulk storage, trucking and equipment facilities, and other businesses serving primarily industrial needs based on the Miami 21 Code.

Institutional use shall mean hospitals, universities, schools, and post offices.

MUSP or *major use special permit* shall mean a special permit issued by the city commission pursuant to Ordinance Number 11000, the previous zoning ordinance of the city, as amended, and the Miami 21 Code, as applicable.

Net new development shall mean any construction or reconstruction which will result in a net increase, within any parcel of land, of residential dwelling units, hotel rooms, seats in attractions/recreation facilities or gross square footage for office, retail/service, convention, wholesale/industrial or institutional uses. Land uses to be removed by demolition of a building or structure may be credited against the proposed new land uses for purposes of calculating the net increase, if the planning director determines that there was a valid certificate of occupancy existing on the effective date of this development order for the land uses to be demolished. If a change of

land use is proposed, the planning director may credit the prior land use against the proposed land use based upon equivalent impacts as measured by peak hour vehicle trip generation. Any activity which has, on the effective date of this development order, a valid building permit or any currently effective development order shall not be included as net new development. The planning director may exclude from net new development any small development under 10,000 square feet in floor area, if he or she finds that such development would have no regional impact as measured by peak hour vehicle trips.

Office use shall mean space for the conduct of the administrative functions of government or business and professional activities not including sales of merchandise off the premises, and not including personal services as defined herein under "retail/service use."

Owner-occupied units shall mean dwelling units for individual sale by a developer and intended occupancy by an owner, as opposed to rental residential developments.

Parcel of land shall mean, pursuant to F.S. ch. 380 (2017), any quantity of land capable of being described with such definiteness that its location and boundaries may be established, and which is designated by its owner or developer as land to be used or developed as a unit or which has been used or developed as a unit.

p.m. peak hour external motor vehicle trips shall mean the average number of trips per hour during the afternoon peak period from 4:00 to 6:00 p.m. generated by motor vehicles, excluding public transit vehicles, that have either an origin or a destination within the project area.

Project area shall mean the area included within the legal description as set forth in Exhibit E of Ordinance No. 13704.

Residential use shall mean any "dwelling units" as defined in the zoning ordinance.

Retail/service use shall mean space for the sale of merchandise, eating and/or drinking establishments, and personal services such as but not limited to hair salons, travel agencies, laundries, dry cleaners, bank tellers, photographers, shoe repair, tailoring, etc.

Room shall mean "Lodging unit."

SF, gross square feet, or *gross square footage* shall mean "floor area" as further defined in the Miami 21 Code.

Site shall mean a legally described parcel of property capable of development pursuant to applicable city ordinances and regulations.

Total allowable development shall mean the quantity of net new development for which certificates of occupancy may be issued under the terms and conditions of the development order, as may be modified pursuant to F.S. § 380.06(19) (2004).

Transportation mitigation fee shall mean a fee charged to all net new development to pay for improvements to mitigate for impacts on the regional transportation system in accordance with requirements of the CADA and the Increment I and Increment II development order for downtown Miami, and which shall be a component of the downtown development supplemental fee.

Wholesale/industrial use shall mean manufacturing, wholesale trade, warehousing and storage, printing, automotive and heavy equipment repair, and other general commercial uses permitted within I (industrial) districts in the zoning ordinance.

Zoning ordinance shall mean Ordinance No. 13114 and commonly referred to as the Miami 21 Code. This ordinance replaces City Ordinance Number 11000.

Zoning permit shall mean any special permit as delineated in Section 7.1.2 of the Miami 21 Code including, but not limited to, waivers, warrants, exceptions, and variances which are necessary for the development of properties that are not developed "by-right."

(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Sec. 13-54. Authority.

The city commission is authorized to establish and adopt a downtown development supplemental fee pursuant to the authority granted by the Florida Constitution, Article VII, Section 9(a) (2017) and the Municipal Home Rule Powers Act, F.S. ch. 166, the City Charter, the Community Planning Act (F.S. §§ 163.3161—163.3248), and the downtown Miami development of regional impact development order issued December 10, 1987, by Resolution Numbers 87-1148, 87-1149, and 02-1307 as amended, and Ordinance No. 13704. The provisions of this article shall not be construed to limit the power of the city to adopt such article pursuant to any other source of authority nor to utilize any other methods or powers otherwise available for accomplishing the purposes set forth herein, either in substitution of, or in conjunction with this article.
(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Sec. 13-55. Imposition of fee.

(a) Except as may be provided section 13-58, no zoning permits, building permits or other development permits shall be issued for any net new development as defined in section 13-53 unless the applicant has paid the downtown development supplemental fee imposed by and calculated pursuant to this article.

(b) Notwithstanding the foregoing, for any project that requires payment of downtown development supplemental fees prior to the issuance of a building permit, the director of the planning department may grant an extension of time, pursuant to a written request by an applicant, for such payment of fees from time of foundation permit to time of shell permit only, upon a finding that the time extension is warranted due to particular financing aspects of the proposed project. No building permit may be issued, however, until all fees required for the DRI are paid in full.

(c) Payment of required downtown development supplemental fees from governmental agencies or authorities, that do not have to obtain building permits from the city, shall be due prior to commencement of construction of the proposed project.

(d) Applicants with projects that qualify under section 13-8 are exempt from the imposition of payment of the proportionate share of the downtown development supplemental fee attributable only to the Downtown DRI master plan recovery fee and Downtown DRI administration fee. This exemption does not extend to the imposition of payment for the proportionate share of the transportation supplemental fee.
(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Sec. 13-56. Downtown development supplemental fee coefficients.

Following shall be the coefficients by land use for each of the four components of the downtown development supplemental fee.

Table 1. Fee Coefficients
(per gross square footage of floor area)

Land Use	*Transportation Mitigation*[4]	*DRI/Master Plan Recovery*[5]	*DRI Administration*[6]	*Total Fee Coefficient*
Office	$0.4757	$0.156223	$0.07521	$0.7072
Retail/service	$1.3784	$0.156223	$0.07521	$1.6098
Convention	$0.3174	$0.156223	$0.07521	$0.5489
Institutional	$0.5502	$0.156223	$0.07521	$0.7816
Wholesale/ industrial	$0.2580	$0.156223	$0.07521	$0.4894
Hotel[1]	$0.3138	$0.156223	$0.07521	$0.5452
Residential[2]	$0.1531	$0.156223	$0.07521	$0.3846
Recreation[3]	$0.2733	$0.156223	$0.07521	$0.5047

Notes:

[1] These fee coefficients for hotel use are based upon an assumed average of 700 SF per hotel room, and shall be adjusted for each development based upon a transportation mitigation fee of $219.65 per room.

[2] These fee coefficients for residential use are based upon an assumed average of 1,000 SF per DU, and shall be adjusted for each development based upon a transportation mitigation fee of $153.15 per DU.

[3] These fee coefficients for attractions/ recreation use are based upon an assumed average of 20 SF per seat and shall be adjusted for each development based upon a transportation mitigation fee of $5.47 per seat.

[4] Transportation mitigation. The Increment III development order requires an updated fee of $7,785,065.08 (in 2016 dollars) to mitigate the regional transportation impacts of total allowable development. This fee is derived from the following:

(a) Estimated improvements necessary to maintain the minimum level of service standard on regional roadways impacted by total allowable development (see Exhibit "C" of Ordinance No. 13704). The regional transportation mitigation fee of $6,005,829.00 (in 2016 dollars) is to be expended on transit projects as provided in Exhibit "C" of Ordinance No. 13704. This portion of the supplemental fee for transportation mitigation, known as the "Transit Commitment," may be modified depending on conditions that are stipulated in paragraph 14. a. of Ordinance No. 13704. In the event that this portion of the supplement fee is modified, the coefficients in Table 1 of Section 13-56 of the City Code will be modified commensurately.

(b) Contribution of $1,180,030.00 (in 2016 dollars) to the South Florida Regional Transportation Authority ("SFRTA") to be expended on the Tri-Rail Downtown Miami Link in accordance with the First Amendment to the Interlocal Agency Agreement approved pursuant to the Resolution No. R-16-0218 on May 12, 2016.

(c) Contribution of $374,206.08 to be expended on transportation improvements, including but not limited to pedestrian and alternative transportation mode improvements within the Downtown DRI study area, and the turn lanes described in condition 14c of the Downtown Development Order, at the city's discretion.

[5] DRI/Master Plan Recovery. The total cost to the city for the Downtown Transportation Master Plan, the Increment III DDRI Applications, the Downtown Master Plan and related studies is estimated to be $4,628,129.00, which shall be distributed equally among all net new development on the basis of gross square footage of floor area. The total amount of new development is estimated to be 29,625,173 SF during the time that the Increment III development order is in effect.

[6] Administration. The administrative cost to the city for enforcing the requirements of the Downtown Development Order is estimated to be $2,228,100.00 over nine years. These administrative costs shall be distributed equally among all net new development on the basis of gross square footage of floor area. The total amount of new development is estimated to be 29,625,173 SF during the time that the Increment III development order is in effect.

(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Sec. 13-56.1. Consumer price index adjustment.

Fees shall be adjusted every 12 months beginning March 1, 2018 based upon the change in the Consumer Price Index ("CPI") - All Urban Consumers Not Seasonally Adjusted, U.S. city average for all items (1982-84=100) which for purposes of the formula below shall be referred to as "Annual CPI".

The change shall be calculated as follows:

(Annual CPI for Prior Calendar Year minus Annual CPI for Calendar Year Two Years Prior)/(Annual CPI for the Calendar Year Two Years Prior) = Change in CPI

then

(Change in CPI + 1) * (Fee Currently in Force) = (New Fee for Next 12 months).

Notwithstanding the calculation above, if the "Change of CPI" for any 12-month period is greater than 0.10, then 0.10 shall replace the actual "Change in CPI" in the calculation for that 12-month period. Additionally, if the "Change in CPI" is less than 0.0, then 0.0 shall replace the actual "Change in CPI" in the calculation for that 12-month period.

As an example, and for illustrative purposes only, to calculate the change on March 1, 2019 where the fee currently in force was $1.64 per square foot, 2018 Annual CPI was 251 and 2017 Annual CPI was 245; the calculation would be as follows:

251-245= 6/245 = 0.0245

then

0.0245 + 1 = 1.245 * $1.64 = $2.04 per square foot fee between March 1, 2019 and February 29, 2020.

(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Sec. 13-57. Procedure for calculation of downtown development supplemental fee.

The DRI supplemental fee calculated by the processes as outlined above is collected prior to the issuance of a building permit. The sequencing for the collection of DRI fees depends on whether a project is built "by-right" under the Miami 21 Code or if the project requires a zoning permit, as defined herein.

(a) *DRI Fees for projects that are approved with a zoning permit.* For projects receiving zoning permits as defined herein, the payment of the DRI administration fee and the DRI master plan recovery fee is due at the time the zoning permit is granted. At the time these projects are presented for building permits, DRI fees for transportation mitigation shall be paid.

(b) *DRI fees for projects that are approved "by-right."* Projects that are built in the Downtown DRI "by-right" which do not require a zoning permits shall pay all DRI fees for at the time of building permit. Projects which are referred to the department of planning during a building permitting review may request a DRI review and may reserve DRI development credits by paying the DRI administration fee and DRI master plan recovery fee prior to obtaining for a building permit, when all DRI fees are due in full.

Application for reservation of development credits for net new development within the Downtown DRI area is completed by submitting project plans to the director of planning or his/her designee for a DRI review. This submission will generate a fee schedule for the assessment of the associated DRI fees based on the project. Project modifications require new DRI review. Each review will generate a fee schedule assessing fees for net new development and credit for demolition, if applicable.

(1) Determine the applicable land use(s) based upon the applicant's intended use and the design and configuration of the space and, in the event that a proposed use is not included in one of the land use categories defined in section 13-53, apply the defined land use category most similar to the proposed use in terms of the average rate of generation of p.m. peak hour external motor vehicle trips, in consultation with the city's office of transportation.

(2) Calculate the gross square footage, number of dwelling units, number of hotel rooms, and number of seats in attractions/recreation facilities as appropriate for each land use.

(3) Multiply the appropriate units of each land use in the development by the appropriate downtown development supplemental fee coefficients.

(4) Upon written request of the applicant, review and adjust the amount of downtown development supplemental fee calculated, if appropriate.

(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Sec. 13-58. Administration of downtown development supplemental fee.

(a) *Collection of downtown development supplemental fee.* Downtown development supplemental fees due pursuant to this article for administration fees and DRI/master plan recovery fees shall be collected by the planning and zoning department at the time of zoning permit or at any time prior to issuance of a building permit. Downtown development supplemental fees due pursuant to this article for transportation impacts shall be collected by the planning and zoning department at any time prior to issuance of a building permit (except as specified in section 13-55).

(b) *Transfer of funds to finance department.* Upon receipt of downtown development supplemental fees, the department of planning shall transfer such funds to the city finance department which shall be responsible for placement of such funds into separate accounts. All such funds resulting from the collection of the supplemental fees shall be deposited in interest-bearing accounts in a bank authorized to receive deposits of city funds. Interest earned by each account shall be credited to that account and shall be used solely for the purposes specified for funds of such account.

(c) *Establishment of and maintenance of accounts.* The city finance department shall establish separate accounts and maintain records for each account into which the downtown development supplemental fees that are collected can be segregated by each of the three fee components.

(d) *Maintenance of records.* The city finance department shall maintain and keep adequate financial records for each account which shall show the source and disbursement of all revenues, which shall account for all moneys received, and which shall ensure that the disbursement of funds from each account shall be used solely and exclusively for the provision of projects specified in the downtown development orders, the administration fee and the DRI/master plan recovery fee. In connection with capital improvement projects, funds may be used for planning, design, construction, land acquisition, financing, financial and legal services, and administrative costs.

(e) *Refund of downtown development supplemental fee.*

(1) The current owner of property on which a downtown development supplemental fee for transportation mitigation and air quality has been paid may apply for a refund of such fee if: the city has failed to encumber or spend the collected fees by the end of the calendar quarter immediately following six years of the date of payment of the fee, or the building permit for which the transportation mitigation or air quality fee has been paid has been terminated or expired for non-commencement of construction; or the project for which a building permit has been issued has been altered resulting in a decrease in the amount of the transportation mitigation or air quality fee due. Downtown development supplemental fees paid for administration and DRI/master plan recovery are not refundable.

(2) Only the current owner of property may petition for a refund. A petition for refund shall be filed within one year of any of the above-specified events giving rise to the right to claim a refund.

(3) The petition for refund shall be submitted to the city manager or his or her duly designated agent on a form provided by the city for such purpose. The petition shall contain a notarized affidavit that petitioner is the current owner of the property; a certified copy of latest tax records of Metropolitan Dade County

showing the owner of the subject property; a copy of the dated receipt for payment of the fee issued by the city's planning, building and zoning department, and a statement of the basis upon which the refund is sought.

(4) Within one month of the date of receipt of a petition for refund, the city manager or his or her duly designated agent must provide the petitioner, in writing, with a decision on the refund request. The decision must include the reasons for the decision including, as may be appropriate, a determination of whether the collected fees have been encumbered or spent in accordance with the requirements of this article. If a refund is due to the petitioner, the city manager or his or her duly designated agent shall notify the city's finance director and request that a refund payment be made to the petitioner.

(5) Any money returned pursuant to this subsection shall be returned with interest at the rate of three percent per annum.

(6) Petitioner may appeal the determination of the city manager to the impact fee board of review subject to the time limitations and procedures for appeals to that board set forth in section 13-16 of the City Code.

(f) *Annual review and modification.* The city shall annually review downtown development supplemental fee ordinance procedures, assumptions, formulas, and fee assessments and make such modifications as are deemed necessary as a result of:

(1) Development occurring in the prior year.

(2) Amendments to the development order.

(3) Changing needs for facilities and/or services.

(4) Inflation and other economic factors.

(5) Revised cost estimates for public improvements and/or services.

(6) Changes in the availability of other funding sources.

(7) Such other factors as may be relevant.

(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Sec. 13-59. Bonding of capital improvement projects.

The city may issue bonds, revenue certificates and other obligations of indebtedness in such manner and subject to such limitations as may be provided by law, in furtherance of the provision of downtown development supplemental fee-related projects. Funds pledged toward retirement of bonds, revenue certificates or other obligations of indebtedness for such projects may include impact fees and other city revenues as may be allocated by the city commission. Fees paid pursuant to this article, however, shall be restricted to use solely and exclusively for the purposes of the article and for financing, directly, or as a pledge against bonds, revenue certificates and other obligations of indebtedness.

(Ord. No. 12678, § 2, 4-28-05)

Sec. 13-60. Appeal procedures; impact fee board of review.

The downtown development supplemental fee ordinance hereby incorporates by reference the appeals board and procedure as set forth in sections 13-16, 13-17, 13-18, 13-19 and 13-20 of the City Code and hereby establishes their applicability for any appeals undertaken pursuant to this article.

(Ord. No. 12678, § 2, 4-28-05)

Sec. 13-61. Effect of downtown development supplemental fee on planning, zoning, subdivision, and other regulations.

This article shall not affect, in any manner, the permissible use of property, density of development, design and improvement standards and requirements or any other aspect of the development of land or provision of public improvements subject to the city's comprehensive plan, zoning regulations, subdivision regulations, or other regulations of the city, all of which shall be

operative and remain in full force and effect without limitation with respect to all such development.
(Ord. No. 12678, § 2, 4-28-05)

Sec. 13-62. Downtown development supplemental fee as additional and supplemental requirement.

The city downtown development supplemental fee is additional and supplemental to and not in substitution or duplication of any other requirements imposed by the city on the development of land or the issuance of building permits. It is intended to be consistent with and to further the objectives and policies of the downtown development order, the comprehensive plan, the zoning ordinance, and to be coordinated with the city's capital improvement program and other city policies, ordinances and resolutions by which the city seeks to ensure the provision of public facility improvements and services in conjunction with the development of land. In no event shall a property owner be obligated to pay for the same improvement(s) in an amount in excess of the amount calculated pursuant to this article, provided, however, that a property owner may be required to pay, pursuant to Miami Dade County, state, and/or city regulations, for other public facilities in addition to the supplemental fee related improvements as specified herein.
(Ord. No. 12678, § 2, 4-28-05)

Sec. 13-63. Conflicting ordinances.

All ordinances, Code sections, or parts thereof in conflict herewith are hereby repealed to the extent of such conflict.
(Ord. No. 12678, § 2, 4-28-05)

Sec. 13-64. Severability.

In the event that any portion or section of this article or the development orders for downtown Miami are determined to be invalid, illegal, or unconstitutional by a court or agency of competent jurisdiction, such decision shall in no manner affect the remaining portions of this article or the development orders for downtown Miami, which shall remain in full force and effect.
(Ord. No. 12678, § 2, 4-28-05)

Sec. 13-65. Findings.

The city commission (hereinafter "commission") hereby finds and declares that:

(1) The real property which is the subject of this article, the project area, is legally described in as set forth in Exhibit E of Ordinance No. 13704.

(2) The DDA has filed a CADA with the city, the South Florida Regional Planning Council, and the state department of community affairs.

(3) The purpose of the CADA is to identify and assess regional impacts and to obtain approval for total allowable development in accordance with the general guidelines set forth in the development orders and the CADA. The city has recognized the project area as a single area of high intensity development and focused on the impacts that the total allowable development within the project area will have on land, water, transportation, environmental, community services, energy and other resources and systems of regional significance. The CADA seeks a single state DRI review process for overall phased development of the downtown area rather than requiring each individual DRI scale development within the downtown area to be reviewed separately other than for a major use special permit and as a means of accommodating the impacts of the non-DRI scale cumulative growth on the downtown area.

(4) Development within the project area is expected to continue to be accomplished over an extended period of time by a variety of developers, which may include the city. These developers may respond to market demand and technologies that can only be estimated in the CADA. The CADA and the DO are intended to serve as flexible guides for planned development of the project area rather than a precise blueprint for its development. Therefore, pursuant to F.S. § 380.06(22) (2017), the CADA seeks master develop-

ment approval for three increments of development over a period of approximately 38 years and specific development approval for Increment I, II, and III. Subsequent incremental applications may need to be adjusted to more nearly serve the evolution of market demand and technologies.

(5) The project area contains a total of approximately 927 acres, including approximately 78 acres presently zoned and developed as city parks. The CADA has proposed a quantity of net new development within the project area for the land uses and phases defined herein as total allowable development.

(6) A comprehensive assessment of the probable impacts that will be generated by the total allowable development has been conducted by various city departments, as reflected in the CADA, and as reviewed by the South Florida Regional Planning Council staff.

(7) The impacts found in the development order are consistent with the report and recommendations of the South Florida Regional Planning Council, entitled "Development of Regional Impact Assessment for Downtown Miami," dated October 5, 1987, "Development of Regional Impact Assessment for Downtown Miami" dated July 1, 2002 and "Development of Regional Impact Report Downtown Miami Increment III" dated June 2016.

(8) Net new development imposes demands upon public facilities and services benefiting the region and requires additional regional infrastructure.

(9) To the extent that net new development places demands upon regional public facilities and services, those demands should be satisfied by developments actually creating the demands.

(10) The limiting factors determining the amount of potential development in the project area are the effects of net new development on transportation facilities.

(11) The downtown DRI and the downtown master plan are of benefit to all net new development in the project area and expenses incurred by the city and/or DDA in connection with the preparation and adoption of the downtown DRI/master plan, and future related studies, and for the enforcement of the development orders should be reimbursed to the city by the net new development benefiting therefrom.

(12) The total amount of the downtown development supplemental fee is determined by the cost of the three components of the fee:

a. Transportation mitigation fee;

b. Downtown DRI/master plan recovery fee; and

c. Administration fee.

The most appropriate measure to distribute the proportionate share of the cost of the transportation mitigation fee shall be the average rate of generation of p.m. peak hour external motor vehicle trips for net new development in each land use category, as utilized in the CADA DRI/master plan recovery fees and administration fees are most appropriately allocated to all net new development at an equal rate for all land use categories.

(13) The downtown development supplemental fee is being imposed on all net new development in order to pay the costs of certain development order related requirements, as described above. Since the demand for such development order related requirements are uniquely created by the new development, the downtown development supplementary fee is equitable and does not impose an unfair burden on such development is in the best interest of the city and its residents.

(Ord. No. 12678, § 2, 4-28-05; Ord. No. 13703, § 2, 10-26-17)

Secs. 13-66—13-95. Reserved.

ARTICLE III. SOUTHEAST OVERTOWN/PARK WEST DEVELOPMENT SUPPLEMENTAL FEE*

Sec. 13-96. Short title.

This article shall be known and cited as the "City of Miami Southeast Overtown/Park West development supplemental fee ordinance."
(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-97. Intent.

(a) This article is intended to impose the Southeast Overtown/Park West development supplemental fee as a supplemental fee on a new development within the Southeast Overtown/Park West project area, utilizing the defined terms in section 13-101 below. The Southeast Overtown/Park West development supplemental fee comprises four components including a transportation mitigation fee, an air quality fee, a DRI/master plan recovery fee and an administration fee. The Southeast Overtown/Park West development supplemental fee is payable prior to the time of building permit issuance or upon approval of certain permits, as provided for herein, in an amount based upon the appropriate units of land use, in order to mitigate the impacts of the proposed development in the project area as described in Exhibit 1, since the demand for the mitigation is uniquely attributable to such new development and net new development on an area-wide basis.

(b) This article shall be uniformly applicable to all new development and net new development within the project area. However, certain fees applicable to affordable housing, as defined herein, shall be borne by the city through the Southeast Overtown/Park West community redevelopment project, as provided in section 13-101 below. This fee shall not be uniformly applicable to any activity which is not classified as new development or net new development as defined herein or which has, on the effective date of the Southeast Overtown/Park West DRI development orders, a valid building permit or currently effective DRI development order.
(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-98. Findings.

The city commission of Miami, Florida (hereinafter "commission") hereby finds and declares that:

(1) The real property which is the subject of this article, the project area, is legally described in Exhibit 1.

(2) The city has filed a CADA with the city, the South Florida Regional Planning Council, and the state land planning agency.

(3) The purpose of the CADA is to identify and assess regional impacts and to obtain approval for total allowable development in accordance with the general guidelines set forth in the development orders and the CADA. The city has recognized the project area as a single area of high intensity development and focused on the impacts that the total allowable development within the project area will have on land, water, transportation, environmental, community services, energy and other resources and systems of regional significance. The CADA seeks a single state DRI review process for overall phased development of the project area rather than requiring each individual DRI scale development within the project area to be reviewed separately other than for a major use special permit or its functional equivalent, and as a means of accommodating the impacts of the non-DRI scale cumulative growth on the project area.

(4) Development within the project area is expected to continue to be accomplished over an extended period of time by a variety of developers, which may include the city. These developers may respond to market demand and technologies that

*__Editor's note—__Ord. No. 13406, § 2, adopted September 26, 2013, amended article III in its entirety to read as herein set out. Formerly, article III pertained to similar subject matter, and derived from the Code of 1980, §§ 13-61—13-73; Ord. No. 10465, § 1, adopted July 21, 1988, and Ord. No. 12745, § 2, adopted December 1, 2005.

The exhibits referred to in this article are not set out at length herein, but may be found in the office of the city clerk.

can only be estimated in the CADA. The CADA and the DO are intended to serve as flexible guides for planned development of the project area rather than a precise blueprint for its development. Therefore, pursuant to F.S. § 380.06(b) (2011), the CADA seeks master development approval for three increments of development over a period of approximately 40 years and specific development approval for increment I, increment II, and increment III. Subsequent incremental applications may need to be adjusted to more nearly serve the evolution of market demand and technologies.

(5) The project area contains a total of approximately 209 acres. The CADA has proposed a quantity of net new development within the project area for the land uses and phases defined herein as total allowable development.

(6) A comprehensive assessment of the probable impacts that will be generated by the total allowable development has been conducted by various city departments, as reflected in the CADA, and as reviewed by the South Florida Regional Planning Council staff.

(7) The impacts found in the development order are consistent with the reports and recommendations of the South Florida Regional Planning Council, entitled "Development of Regional Impact Assessment for Southeast Overtown/Park West Community Redevelopment Area," dated January 4, 1988 for increment I of the Southeast Overtown/Park West DRI; August 3, 1992 for increment II; and February 6, 2012 for increment III.

(8) Net new development imposes demands upon public facilities and services benefiting the region and requires additional regional infrastructure.

(9) To the extent that net new development places demands upon regional public facilities and services, those demands should be satisfied by developments actually creating the demands.

(10) The limiting factors determining the amount of potential development in the project area are the effects of net new development on transportation facilities and air quality.

(11) The Southeast Overtown/Park West DRI and the Southeast Overtown/Park West master plan are of benefit to all net new development in the project area, and expenses incurred by the city in connection with the preparation and adoption of the Southeast Overtown/Park West DRI/master plan and for the enforcement of the development orders should be reimbursed to the city by the net new development benefiting therefrom.

(12) The total amount of the Southeast Overtown/Park West development supplemental fee is determined by the cost of the four components of the fee: 1) transportation mitigation fee; 2) air quality fee; 3) Southeast Overtown/Park West DRI/master plan recovery fee; and 4) administrative fee. The most appropriate measure to distribute the proportionate share of the cost of the transportation mitigation fee and the air quality fee shall be the average rate of generation of p.m. peak hour external motor vehicle trips for net new development in each land use category, as utilized in the CADA. DRI/master plan recovery fees and administration fees are not appropriately allocated to all net new development at an equal rate for all land use categories.

(13) The Southeast Overtown/Park West development supplemental fee is being imposed on all net new development in order to pay the costs of certain development order related requirements, as described above. Since the demand for such development order related requirements are uniquely created by the new development, the Southeast Overtown/

Park West development supplementary fee is equitable and does not impose an unfair burden on such development and is in the best interest of the city and its residents.

(14) The primary objectives of the Southeast Overtown/Park West community development plan are the removal of slum and blight and encouragement of affordable housing development.

(15) The city commission, via Resolution No. 87-619, has found that a housing emergency exists within the city. This condition continues to exist. Thus, the findings and conclusions of Resolution No. 87-619 are incorporated herein by reference and made a part hereof.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-99. Authority.

The city commission is authorized to establish and adopt a Southeast Overtown/Park West development supplemental fee pursuant to the authority granted by the Florida Constitution, Article VII, Sections 1(f), 1(g) and 2(b), the Municipal Home Rule Powers Act, F.S. Ch. 166 (2004); the City Charter, the Local Government Comprehensive Planning and Land Development Regulation Act (F.S. § 163.3161, amended by F.S. § 163.3177 in 1986), the Florida Impact Fee Act (F.S. § 163.31801), and the Southeast Overtown/Park West development of regional impact development order issued by Resolution Numbers 88-110, 88-111, 92-609, and 13- , as amended. The provisions of this article shall not be construed to limit the power of the city to adopt such article pursuant to any other source of authority nor to utilize any other methods or powers otherwise available for accomplishing the purposes set forth herein, either in substitution of or in conjunction with this article.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-100. Imposition of fee.

(a) Except as may be provided in section 13-104, no building permits, major use special permits, or its functional equivalent, or other permit approving development, shall be issued for any new development as herein defined unless the applicant therefor has paid the Southeast Overtown/Park West development supplemental fee imposed by and calculated pursuant to this article or payment of such fee as been borne by the city.

(b) Payment of required Southeast Overtown/Park West supplemental fees from governmental agencies or authorities, that do not have to obtain building permits from the city, shall be due prior to commencement of construction, including demolition.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-101. Definitions.

As used in this article, the following words and terms shall have the following meanings, unless another meaning is plainly intended:

ADA or *application for development approval* shall mean the original application for development approval for the Southeast Overtown/Park West community redevelopment project area filed by the city on February 6, 1987, pursuant to F.S. § 380.06 (200411), as amended by the increment II ADA filed in 1992 and the increment III ADA filed in 2011.

Administrative fees shall mean a fee charged to all new development to pay for the city's administrative costs for enforcing the terms and conditions of the Southeast Overtown/Park West development orders, including but not limited to preparation of ordinances and procedures, review of permit applications, monitoring compliance with requirements, and enforcing violations; and which shall be a component of the Southeast Overtown/Park West development supplemental fee.

Affordable housing shall mean housing for families and individuals with incomes under 120 percent of the median income in Miami-Dade County.

Air quality fees shall mean a fee charged to all net new development to pay for the city's costs for air quality monitoring, modeling and mitigation measures as required in the increment I, increment II, and increment III development orders for Southeast Overtown/Park West, and

which shall be a component of the Southeast Overtown/Park West development supplemental fee.

Applicant shall mean individual, corporation, business trust, estate, trust, partnership, association, two or more persons acting as coapplicants, any county or state agency, any other legal entity, or the authorized representative of any of the aforementioned, signing on application for a building permit.

Building permit shall mean any permit required for new construction and additions pursuant to section 105 of the Florida Building Code.

CADA or *consolidated application for development approval* shall mean the revised ADA prepared pursuant to the requirements of F.S. § 380.06 (2011).

Certificate of occupancy shall mean a permanent or temporary or partial certificate of occupancy issued, pursuant to the Florida Building Code.

City shall mean the City of Miami, Florida.

Class II special permit shall have the meaning given within city Ordinance Number 11000, as amended, the zoning ordinance for the city.

Commission shall mean the city commission of Miami, Florida.

Comprehensive plan shall mean the city's plan for future development adopted by city Ordinance Number 10544, and as may be amended and updated from time to time.

Convention use shall mean meeting rooms, banquet halls, exhibition halls, auditoriums, and their auxiliary spaces intended for use by conventions, seminars, exhibitions, and the like; which shall exceed the minimum standard for ancillary facilities within the definition of hotel use.

CRA shall mean the city Southeast Overtown/Park West Community Redevelopment Agency.

DO or *Southeast Overtown / Park West development order* shall mean the master or increment I, increment II, or increment III development orders for the Southeast Overtown/Park West community redevelopment area as a development of regional impact, issued by the city by Resolution Numbers 88-110, 88-111, Resolution Number 92-609, and Resolution 13- , as amended.

DRI shall mean development of regional impact. DRI/master plan recovery fee shall mean a fee charged to all new development to reimburse the city and the CRA for costs incurred in the DRI/master plan study and future related studies in accordance with the CADA and the Southeast Overtown/Park West development orders, and which shall be a component of the Southeast Overtown/Park West development supplemental fee.

DU or *dwelling unit* shall have the meaning given to "dwelling unit" in the zoning ordinance.

Hotel use shall mean lodging or hotel uses as any as defined in the zoning ordinance; and may include meeting and banquet facilities and convenience goods and services for hotel guests, provided that the total of such ancillary facilities shall not exceed 15 percent of proposed hotel.

MUSP or *major use special permit* shall mean a special permit issued by the city commission pursuant to Ordinance Number 11000, the zoning ordinance of the city, as amended.

Net new development shall mean any construction or reconstruction which will result in a net increase, within any parcel of land, of residential dwelling units, hotel rooms, seats in attractions/recreation facilities or gross square footage for office, retail/service, convention, wholesale/industrial or institutional uses. Land uses to be removed by demolition of a building or structure may be credited against the proposed new land uses for purposes of calculating the net increase, if the planning director determines that there was a valid certificate of occupancy existing on the effective date of this development order for the land uses to be demolished. If a change of land use is proposed, the planning director may credit the prior land use against the proposed land use based upon equivalent impacts as measured by peak hour vehicle trip generation. Any activity which has, on the effective date of this development order a valid building permit or any currently effective development order shall not be included as net new development. The planning director may exclude from net new

development any small development under 10,000 square feet in floor area, if he or she finds that such development would have no regional impact as measured by peak hour vehicle trips.

Office use shall mean space for the conduct of the administrative functions of government or business and professional activities not including sales of merchandise of the premises, and not including personal services as defined herein under "retail/service use."

Parcel of land shall mean, pursuant to F.S. ch. 380, any quantity of land capable of being described with such definiteness that its location and boundaries may be established, and which is designated by its owner or developer as land to be used or developed as a unit or which has been used or developed as a unit.

p.m. peak hour external motor vehicle trips means the average number of trips per hour during the afternoon peak period from 4:00 to 6:00 p.m. generated by motor vehicles, excluding public transit vehicles, that have either an origin or a destination within the project area.

Project area shall mean the area included within the legal description in Exhibit 1, including all property within the boundaries of the Southeast Overtown/Park West community redevelopment area, as designated in 1982 by city commission Resolution No. 82-755.

Residential use shall mean any "dwelling units" as defined in the zoning ordinance.

Retail/service use shall mean space for the sale of merchandise, eating and drinking establishments, and personal services such as but not limited to hair salons, travel agencies, laundries, dry cleaners, bank tellers, photographers, shoe repair, tailoring, etc.

Room shall have the meaning given to "lodging unit" in the zoning ordinance.

SF, gross square feet, or *gross square footage* shall have the meaning given to "floor area" in the zoning ordinance.

Site shall mean a legally described parcel of property capable of development pursuant to applicable city ordinances and regulations.

Southeast Overtown/Park West development supplemental fee shall mean a fee charged to new development in the project area comprising components including a transportation mitigation fee, an air quality fee, an administration fee, and a DRI/master plan recovery fee which are assessable to new development according to the provisions of this article.

Southeast Overtown/Park West development supplemental fee coefficient shall mean the charge per unit of land use as calculated for each component of the Southeast Overtown/Park West development supplemental fee.

Total allowable development shall mean the quantity of net new development for which certificates of occupancy may be issued under the terms and conditions of the development order, as may be modified pursuant to F.S. § 380.06(19) (2011).

Transportation mitigation fee shall mean a fee charged to all net new development to pay for improvements to mitigate for impacts on the regional transportation system in accordance with requirements of the CADA and the increment I, increment II, and increment III development orders for Southeast Overtown/Park West Miami; and which shall be a component of the Southeast Overtown/Park West development supplemental fee.

Zoning ordinance shall mean Ordinance 13114 known as the Miami 21 Zoning Code, or a successor ordinance, the zoning ordinance of the city.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-102. Southeast Overtown/Park West development supplemental fee coefficients.

(a) The following shall be the coefficients, by land use, for each of the four components of the Southeast Overtown/Park West development supplemental fee.

Table 1. Fee Coefficients—Increment II
(per gross square footage of floor area)

Land Use	*Transportation Mitigation*	*Air Quality*	*DRI/Master Plan Recovery*	*DRI Administration*	*Total Fee Coefficient*
Office	$0.39	$0.03	$0.40	$0.18	$1.01
Retail/service	$1.78	$0.14	$0.40	$0.18	$2.51
Residential[1]	$0.10	$0.01	$0.40	$0.18	$0.70
Hotel[2]	$0.26	$0.02	$0.40	$0.18	$0.86
Recreation[3]	$0.25	$0.00	$0.40	$0.18	$0.83

Notes:

[1] These fee coefficients for residential use are based upon an assumed average of 1,000 square feet ("SF") per dwelling unit ("DU"), and shall be adjusted for each development based upon a transportation mitigation fee of $102.00 per DU and an air quality fee of $11.00 per DU.

[2] These fee coefficients for hotel use are based upon an assumed average of 700 SF per hotel room, and shall be adjusted for each development based upon a transportation mitigation fee of $182.70 per room and an air quality fee of $14.70 per room.

[3] These fee coefficients for attractions/recreation use are based upon an assumed average of 20 SF per seat and shall be adjusted for each development based upon a transportation mitigation fee of $4.90 per seat and an air quality fee of $0.02 per seat.

Table 2. Fee Coefficients—Increment III
(per gross square footage of floor area)

Land Use	*Transportation Mitigation*	*Air Quality*	*DRI/Master Plan Recovery*	*DRI Administration*	*Total Fee Coefficient*
Office	$0.213	$0.006	$0.298	$0.148	$0.664
Retail/service	$0.510	$0.014	$0.298	$0.148	$0.969
Residential[1]	$0.074	$0.003	$0.298	$0.148	$0.523
Hotel[2]	$0.184	$0.005	$0.298	$0.148	$0.635
Recreation[3]	$0.000	$0.000	$0.000	$0.000	$0.000
Convention	$0.886	$0.024	$0.298	$0.148	$1.355

Notes:

[1] These fee coefficients for residential use are based upon an assumed average of 1,000 square feet ("SF") per dwelling unit ("DU"), and shall be calculated for each development based upon a transportation mitigation fee of $74.00 per DU and an air quality fee of $3.00 per DU.

[2] These fee coefficients for hotel use are based upon an assumed average of 700 SF per hotel room, and shall be calculated for each development based upon a transportation mitigation fee of $128.80 per room and an air quality fee of $3.50 per room.

[3] Not applicable for Increment III.

(b) The proportionate share for each unit of land use is calculated as follows:

(1) a. Transportation mitigation. The increment II development order requires the city to widen Northwest First Avenue from Northwest Tenth Street to Northwest Fourteenth Street at an estimated proportionate share cost of $636,648.00 (in 2004 dollars), in order to mitigate

the regional transportation impacts of total allowable development. The regional transportation mitigation estimated proportionate share cost of $636,648.00 (in 2004 dollars) is distributed among units of land use in total allowable development based upon the average rate of generation of p.m. peak hour external motor vehicle trips, as utilized in the CADA (see Exhibit 2 of Resolution 92-609). All development subject to increment II shall be subject to payment of said fee by applicants.

b. The increment III development order requires a transportation mitigation fee of $1,871,626.00 (in 2011 dollars) to mitigate the regional transportation impacts of total allowable development. This fee was derived from estimated improvements necessary to maintain the minimum level of service standard on regional roadways impacted by total allowable development (see Exhibit X). The regional transportation mitigation fee of $1,871,626.00 is distributed among units of land use categories for the total allowable development based upon the average rate of generation of p.m. peak hour external motor vehicle trips, as utilized in the CADA (see Exhibit X of Resolution 13-).

(2) a. Air quality. The increment II development order requires the city to perform monitoring and modeling for future carbon monoxide (CO) concentrations, and to take appropriate actions to prevent violations of the minimum standard for CO concentrations. The city estimates its total cost for compliance with the air quality requirements of the increment II development order to be $50,000.00 which is distributed among units of land use in total allowable development based upon the average rate of generation of p.m. peak hour external motor vehicle trips, as utilized in the CADA (see Exhibit 2 of Resolution 92-609). This cost shall be borne by the city, through the Southeast Overtown/Park West project, for fees attributable to applicants if such fee is generated by affordable housing development. All other applicants shall be subject to payment of said fee. All development subject to increment II shall be subject to payment of said fee by applicants.

b. The increment III development order requires the city to take appropriate actions to prevent violations of the minimum standard for CO concentrations. The city estimates its total cost for compliance with the air quality requirements of the increment III development order to be $50,000.00 which is distributed among units of land use in total allowable development based upon the average rate of generation of p.m. peak hour external motor vehicle trips, as utilized in the CADA (see Exhibit X of Resolution 13-). The air quality fee may be used by the city for CO monitoring and other measures that improve air quality such as landscaping, open space, streetscape, transit, and pedestrian-oriented improvements. This cost shall be waived, for fees attributable to applicants if such fee is generated by affordable housing development certified by the city department of community development. All other applicants shall be subject to payment of said fee. All development subject to increment III shall be subject to payment of said fee by applicants.

(3) a. DRI/master plan recovery. The total costs to the city for preparing the Southeast Overtown/Park West DRI for increment II, increment III, the NOPC Applications, the SEOPW

CRA master plans and related studies is estimated to be $1,187,300.00, which shall be distributed equally among all new development on the basis of gross square footage of floor area. The total amount of new development is estimated to be 2,941,828 SF during the time that the increment II development order is in effect. All development subject to increment II shall be subject to payment of said fee by applicants.

b. The updated total costs to the city for preparing the Southeast Overtown/Park West DRI for increment III and the SEOPW CRA master plans and related studies is estimated to be $2,744,000.00, which shall be distributed equally among all new development on the basis of gross square footage of floor area. The total amount of new development is estimated to be 9,220,000 SF during the time that the increment III development order is in effect. All development subject to increment III shall be subject to payment of said fee by applicants.

(4) a. Administration. The administrative cost to the city for enforcing the requirements of the development order is estimated to be $105,000.00 per year or a total of $525,000.00 during the five years that the increment II development order is projected to be in effect. These administrative costs shall be distributed equally among all new development on the basis of gross square footage of floor area. The total amount of new development is estimated to be 2,941,828 SF during the time that the increment II development order is in effect. This cost shall be, waived for fees attributable to applicants if such fee is generated by affordable housing development. All other applicants shall be subject to payment of said fee. All development subject to increment II shall be subject to payment of said fee by applicants.

b. The administrative cost to the city for enforcing the requirements of the development order is estimated to be $105,000.00 per year or a total of $1,365,000.00 during the 13 years that the increment III development order is projected to be in effect. These administrative costs shall be distributed equally among all new development on the basis of gross square footage of floor area. The total amount of new development is estimated to be 9,220,000 SF during the time that the increment III development order is in effect. This cost shall be borne by the city, through the Southeast Overtown/Park West project, for fees attributable to applicants if such fee is generated by affordable housing development. All other applicants shall be subject to payment of said fee. All development subject to increment III shall be subject to payment of said fee by applicants.

(5) Cost of living adjustments.

a. The coefficients in Table 1 above shall be adjusted annually on November 1st of each year with the first adjustment occurring on April 1st, 2006, by multiplying each coefficient in the table by the formula set forth in this paragraph (the "adjustment factor"). The adjustment factor shall be the lesser of:

1. The percentage increase in the annual Consumer Price Index of the prior calendar year as compared to the annual Consumer Price Index for 2004 (188.9); or

2. Seven percent per year compounded for each year after

2005, whichever is greater. The formula for the adjustment factor is as follows:

Prior year's Consumer Price Index = adjustment factor

Divided by 188.9

b. The coefficients in the Table 2 above shall be adjusted annually on November 1st of each year with the first adjustment occurring on May 1st, 2013, by multiplying each coefficient in the table by the formula set forth in this paragraph (the "adjustment factor"). The adjustment factor shall be the lesser of:

1. The percentage increase in the annual Consumer Price Index of the prior calendar year as compared to the annual Consumer Price Index for 2011 (170.0); or
2. Seven percent per year compounded for each year after 2011, whichever is greater. The formula for the adjustment factor is as follows:

Prior year's Consumer Price Index = adjustment factor

Divided by 170.0

For these purposes, the consumer price index to be utilized shall be that published by the Bureau of Labor Statistics of the U.S. Department of Labor, using the U.S. city average, all Urban Consumers (1982 - 1984 = 100) Not Seasonally Adjusted. In no event shall the adjustment factor for any year be less than one. In the event that the consumer price index referred to above is no longer published, then a comparable index which measures inflationary factors, and the corresponding decrease in the purchasing power of the U.S. Dollar, shall be selected by the city, and the adjustment factor shall be based upon such index.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-103. Procedure for calculation of Southeast Overtown/Park West development supplemental fee.

Upon receipt of approval of a building permit or MUSP for any net new development, the planning director shall determine the amount of Southeast Overtown/Park West development supplemental fee due pursuant to the following procedure:

(1) Determine whether the development is exempt by virtue of the conditions specified herein.

(2) Determine the applicable land use(s) based upon the applicant's intended use and the design and configuration of the space, and in the event that a proposed use is not included in one of the land use categories defined herein, apply the defined land use category most similar to the proposed use in terms of the average rate of generation of p.m. peak hour external motor vehicle trips.

(3) Calculate the gross square footage, number of dwelling units, and/or number of hotel rooms as appropriate for each land use.

(4) Multiply the appropriate units of each land use in the development by the appropriate Southeast Overtown/Park West development supplemental fee coefficients.

(5) Upon written request of the applicant, review and adjust the amount of Southeast Overtown/Park West development supplemental fee calculated, if appropriate.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-104. Administration of Southeast Overtown/Park West development supplemental fee.

(a) *Collection of Southeast Overtown / Park West development supplemental fee.* Southeast Overtown/Park West development supplemental fees due pursuant to this article for administration fees and DRI/master plan recovery fees shall be collected by the planning director after zoning

approval and prior to the issuance of a building permit. Southeast Overtown/Park West development supplemental fees due pursuant to this article for transportation impacts and air quality impacts shall be collected by the planning director at any time prior to issuance of a building permit (except as specified in section 13-100). Fees shall be paid in accordance with the applicable rate at the time of payment.

(b) *Transfer of funds to finance department.* Upon receipt of Southeast Overtown/Park West development supplemental fees, the planning director shall transfer such funds to the city finance department which shall be responsible for placement of such funds into separate accounts as hereinafter specified. All such funds shall be deposited in interest-bearing accounts in a bank authorized to receive deposits of city funds. Interest earned by each account shall be credited to that account and shall be used solely for the purposes specified for funds of such account.

(c) *Establishment and maintenance of accounts.* The city finance department shall establish separate accounts and maintain records for each such account, whereby Southeast Overtown/Park West development supplemental fees collected can be segregated by each of the four fee components: transportation mitigation fees, air quality fees, DRI/master plan recovery fees, and administration fees.

(d) *Maintenance of records.* The city finance department shall maintain and keep adequate financial records for each such account which shall show the source and disbursement of all revenues, which shall account for all moneys received; and which shall ensure that the disbursement of funds from each account shall be used solely and exclusively for the provision of projects specified in the Southeast Overtown/Park West development orders, administration fee and the DRI/master plan recovery fee. In connection with capital improvement projects, funds may be used for planning, design, construction, land acquisition, financing, financial and legal services, and administrative costs.

(e) *Refund of Southeast Overtown/Park West development supplemental fee.*

(1) The current owner of a property on which a Southeast Overtown/Park West development supplemental fee for transportation mitigation and air quality has been paid may apply for a refund of such fee if: The city has failed to encumber or spend the collected fees by the end of the calendar quarter immediately following six years of the date of payment of the fee; or the building permit for which the transportation mitigation or air quality fee has been paid, has been terminated or expired for noncommencement of construction; or the project for which a building permit has been issued has been altered resulting in a decrease in the amount of the transportation mitigation or air quality fee due. Southeast Overtown/Park West development supplemental fees paid for administration and DRI/master plan recovery are not refundable.

(2) Only a current owner of property may petition for a refund. A petition for refund shall be filed within one year of any of the above-specified events giving rise to the right to claim a refund.

(3) The petition for refund shall be submitted to the city manager or his duly designated agent on a form provided by the city for such purpose. The petition shall contain: a notarized affidavit that petitioner is the current owner the property; a certified copy of latest tax records of Miami-Dade County showing the owner of the subject property; a copy of the dated receipt for payment of the fee issued by the city's planning director, and a statement of the basis upon which the refund is sought.

(4) Within one month of the date of receipt of a petition for refund, the city manager or his duly designated agent must provide the petitioner, in writing, with a decision on the refund request. The decision must include the reasons for the decision including, as may be appropriate, a determination of whether the collected fees have been encumbered or spent in accordance with the requirements of this article. If a refund is due to the petitioner, the city

manager or his duly designated agent shall notify the city's finance director and request that a refund payment be made to the petitioner.

(5) Any money returned pursuant to this subsection shall be returned with interest at the rate of three percent per annum.

(6) Petitioner may appeal the determination of the city manager to the impact fee board of review subject to the time limitations and procedures for appeals to that board set forth in section 13-16 of the City Code.

(f) *Annual review and modification.* The city shall, through the SEOPW CRA at the CRA's expense, annually review Southeast Overtown/Park West development supplemental fee ordinance procedures, assumptions, formulas, and fee assessments and make such modifications as are deemed necessary as a result of:

(1) Development occurring in the prior year.

(2) Amendments to the development order.

(3) Changing needs for facilities and/or services.

(4) Inflation and other economic factors.

(5) Revised cost estimates for public improvements and/or services.

(6) Changes in the availability of other funding sources.

(7) Such other factors as may be relevant.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-105. Bonding of capital improvement projects.

The city may issue bonds, revenue certificates and other obligations of indebtedness in such manner and subject to such limitations as may be provided by law, in furtherance of the provision of Southeast Overtown/Park West development supplemental fee-related projects. Funds pledged toward retirement of bonds, revenue certificates or other obligations of indebtedness for such projects may include impact fees and other city revenues as may be allocated by the city commission. Fees paid pursuant to this article, however, shall be restricted to use solely and exclusively for the purposes of the article and for financing, directly, or as a pledge against bonds, revenue certificates and other obligations of indebtedness to undertake projects to mitigate for transportation and air quality impacts of the DRI.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-106. Appeal procedures; impact fee board of review.

The Southeast Overtown/Park West development supplemental fee ordinance hereby incorporates by reference the appeals board and procedure as set forth in sections 13-16, 13-17, 13-18, 13-19 and 13-20 of the City Code and hereby establishes their applicability for any appeals undertaken pursuant to this article.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-107. Effect of Southeast Overtown/Park West development supplemental fee on planning, zoning, subdivision, and other regulations.

This article shall not affect, in any manner, the permissible use of property, density of development, design and improvement standards and requirements or any other aspect of the development of land or provision of public improvements subject to the city's comprehensive plan, zoning regulations, subdivision regulations, or other regulations of the city, all of which shall be operative and remain in full force and effect without limitation with respect to all such development.

(Ord. No. 13406, § 2, 9-26-13)

Sec. 13-108. Southeast Overtown/Park West development supplemental fee as additional and supplemental requirement.

The City of Miami Southeast Overtown/Park West development supplemental fee is additional and supplemental to and not in substitution or duplication of any other requirements imposed by the city on the development of land or the

issuance of building permits. It is intended to be consistent with and to further the objectives and policies of the Southeast Overtown/Park West development order, the comprehensive plan, the zoning ordinance, and to be coordinated with the city's capital improvement program and other city policies, ordinances and resolutions by which the city seeks to ensure the provision of public facility improvements and services in conjunction with the development of land, while also encouraging the development of affordable housing. In no event shall a property owner be obligated to pay for the same improvement(s) in an amount in excess of the amount calculated pursuant to this article; provided, however, that a property owner may be required to pay, pursuant to Miami-Dade County, state, and/or city regulations, for other public facilities in addition to the supplemental fee related improvements as specified herein.
(Ord. No. 13406, § 2, 9-26-13)

Secs. 13-109—13-135. Reserved.

ARTICLE IV. INTERIM PROPRIETARY AND GENERAL SERVICES FEE

Sec. 13-136. Fee established.

A fee to be known as the "interim proprietary and general services fee" is hereby established.
(Ord. No. 10601, § 1, 7-13-89; Code 1980, § 13-101)

Sec. 13-137. Purpose.

(a) It is recognized that the costs of providing certain city services exceed the fees charged for said services and that those costs are borne in large part through ad valorem taxation. Those services which the city provides include, but are not limited to police protection, fire protection, parks and recreational facilities and administrative services.

(b) It is further recognized that, from the time that a new building or structure is completed and occupied until the improvements are reflected on the tax roll as of the ensuing January 1, services are provided for which no part of the cost of said services is compensated. The purpose of the interim proprietary and general services fees, therefore, is to defray the cost to the city in providing city services to newly improved property prior to the imposition of ad valorem taxes on such improved property. The fee is not in any manner, directly or indirectly, intended as an ad valorem tax, nor is the amount of the fee established herein related in any way to the valuation of the property receiving said services.
(Ord. No. 10601, § 1, 7-13-89; Code 1980, § 13-102)

Sec. 13-138. Fee levied for services to certain properties.

(a) There is hereby levied an interim proprietary and general services fee which shall apply to those properties for which a certificate of occupancy or a certificate of completion is issued, either permanent or temporary, for full or partial use of the premises, and which shall be payable on the date upon which such certificate of occupancy or certificate of completion is issued until the ensuing January 1.

(b) There is hereby levied an interim proprietary and general services fee which shall apply to those properties for which a certificate of occupancy or a certificate of completion is issued, either permanent or temporary, for full or partial use of the premises, and which shall be payable on the date upon which such certificate of occupancy or certificate of completion is issued until the ensuing January 1, or until such time as the improvement necessitating said certificate of occupancy or certificate of completion is assessed by the Miami-Dade County property appraiser and extended on the tax roll.
(Ord. No. 10601, § 1, 7-13-89; Ord. No. 10705, § 1, 2-7-90; Code 1980, § 13-103; Ord. No. 11754, § 1, 2-9-99)

Sec. 13-139. When fee paid.

The interim proprietary and general services fee shall be paid upon the issuance of a certificate of occupancy, either permanent or temporary, or a certificate of completion. No certificate of

occupancy or certificate of completion shall be issued until such time as the interim proprietary and general services fee has been paid in full.
(Ord. No. 10601, § 1, 7-13-89; Code 1980, § 13-104; Ord. No. 11754, § 1, 2-9-99)

Sec. 13-140. Charges.

For the purpose of this section, a "unit" shall be defined as a single-family residence; each dwelling unit of a townhouse, duplex or multifamily dwelling; a single-tenant industrial space; a retail store or a single-tenant space in an office or commercial building; or a warehouse bay, except those warehouse facilities subdivided and used primarily as leased storage units, which shall be considered one unit per structure. The term shall include additions to units, such as additional rooms, but not maintenance, pools, fences, or remodeling which does not result in a net increase in square footage, for which no fee shall be required. The fee shall be $0.03 per square foot per month.
(Ord. No. 10601, § 1, 7-13-89; Ord. No. 10705, § 1, 2-7-90; Code 1980, § 13-105)

Sec. 13-141. Lien provisions.

All such fees becoming due and payable after October 1, 1989, shall constitute, and are hereby imposed as, special assessment liens against real property aforesaid, and until fully paid and discharged, or barred by law, shall remain liens equal in rank and dignity with the lien of city and county ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles, and claims in, to or against the real property containing the building, structure or dwelling. Such fees shall become delinquent if not paid within 60 days after the due date. All delinquent fees shall bear an interest charge of one percent per month, on any or all of the outstanding balance of such fees due, and if not fully paid with all accrued interest by the due date of the next interim proprietary and general service fee payment, will continue to accrue interest at the rate of one percent per month. Unpaid and delinquent fees, together with accrued interest, shall remain and constitute special assessment liens against the real property involved. Such special assessment liens for interim proprietary and general service fees may be enforced by any of the methods provided in F.S. ch. 85 or, in alternative, foreclosure proceedings may be instituted and prosecuted under the provisions of F.S. ch. 173 or the collections and enforcement of payment thereof may be accomplished by other methods authorized by law. The owner shall pay all costs of collection, including reasonable attorney fees, court costs, and abstracting and related lien expenses imposed by the virtue of this article.
(Ord. No. 10601, § 1, 7-13-89; Code 1980, § 13-106)

Sec. 13-142. Exemptions.

The interim proprietary and general service fee shall not be levied upon:

(1) Properties requiring a certificate of occupancy solely for change of use of said property.

(2) Any property which is used solely for tax exempt purposes.

(3) Any property owned by governmental units and used for governmental purpose, or governmentally owned property which is leased to an organization which uses the property solely for tax exempt purposes.

(4) Any housing development which is certified by the city's department of development and housing conservation as low- and/or moderate-income housing development, or affordable housing (low and/or moderate income) which is publicly sponsored.

(Ord. No. 10601, § 1, 7-13-89; Ord. No. 10705, § 1, 2-7-90; Code 1980, § 13-107)

Sec. 13-143. Revisions.

The budget department with the approval of the city manager shall revise said charges for services to reasonably cover the cost of providing such services.
(Ord. No. 10601, § 1, 7-13-89; Code 1980, § 13-108)

Sec. 13-144. Collection and deposit.

All money paid for such services shall be collected by the director of planning, building and zoning department as a condition precedent to the issuance of a certificate of occupancy or a certificate of completion and shall be deposited into the general fund.
(Ord. No. 10601, § 1, 7-13-89; Code 1980, § 13-109; Ord. No. 11754, § 1, 2-9-99)

Chapter 14

DOWNTOWN DEVELOPMENT*

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*__City Code cross references—__Development impact fees, ch. 13; Overtown redevelopment trust fund, § 18-261 et seq.
__Law review reference—__Note on constitutional urban redevelopment, 13 Fla. L. Rev. 344.

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ARTICLE I. IN GENERAL

Secs. 14-1—14-25. Reserved.

ARTICLE II. DOWNTOWN DISTRICT

DIVISION 1. GENERALLY

Sec. 14-26. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Authority: The downtown development authority, the body corporate hereby created by this article, known as the downtown development authority board of the city.

Board: The governing body of the authority selected as herein provided.

Central business district: The area in the city to which this article primarily relates, zoned and used principally for business.

Director: The chief executive officer of the authority selected by the board as herein provided.

Downtown: A specifically defined area or zone of the city in the central business district, established by the city.

Governing body: The commission of the city.

Planning board: The department or agency of the city, by whatever name such department or agency may be known, which is chiefly responsible for community planning.

Public facility: Any street, park, parking lot, playground, right-of-way, structure, waterway, bridge, lake, pond, canal, utility line or pipe, building, including access routes to any of the foregoing designed and dedicated to use by the public generally, or used by any public agency with or without charge, whether or not the same is revenue producing.

Reside or *resident:* An owner of a property located within downtown, as defined in this article, which said property is the owner's homestead.
(Code 1967, § 13-1; Code 1980, § 14-16; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-27. Boundaries designated.

The Downtown District described as follows shall be under the jurisdiction and control of the Downtown Development Authority:

Begin at the intersection of the centerline of NW 5th Street and NW 3rd Avenue (east of I-95); thence run southerly along the centerline of NW 3rd Avenue and the easterly side of I-95 to the centerline of West Flagler Street; thence westerly along the centerline of said West Flagler Street to the centerline of the Miami River; thence meandering southeasterly along the centerline of said Miami River to a point of intersection with the westerly Right-of-Way line of Metro Rapid Transit Right-of-Way (formerly Florida East Coast (FEC) Railroad Right-of-Way) said Right-of-Way line being 50 feet westerly of and parallel with the centerline of said Metro Rapid Transit Right-of-Way; thence run southerly and southwesterly along said westerly Right-of-Way line of Metro Rapid Transit to the intersection with the centerline of SW 15th Road; thence southeasterly along the centerline of 15th Road to a point of intersection with the southerly prolongation of the westerly line of Costa Bella Development Subdivision (107-14); thence northeasterly, northwesterly, and northeasterly along said westerly line of Costa Bella to the intersection with the southerly Right-of-Way line of SE 14th Lane; thence southeasterly, northeasterly, northerly, and northwesterly along said southerly and easterly Right-of-Way line of SE 14th Lane and SE 14th Terrace to the intersection with the northwesterly property line of Lot 31, Block 2 of Amended plat of Point View as recorded in Plat Book 2 at Page 93 of the public records of Miami-Dade County, Florida; thence northeasterly along the northwesterly line of said Lot 31, to the northeasterly side of the existing ten-foot alley in Block 2 of said Point

View; thence southeasterly along the northeasterly side of said ten-foot alley to the intersection with the property line between Lots 4 and 5 of said Block 2 of Point View; thence northeasterly along said line of Lots 4 and 5 and its prolongation thereof to the centerline of SE 14th Street; thence southeasterly along said centerline of SE 14th Street to a point of intersection with the existing bulkhead and shoreline of Biscayne Bay; thence meandering northerly along the existing bulkhead and shoreline of Biscayne Bay to a point of intersection with the southerly boundary of Claughton Island Bridge; thence easterly along the said southerly Right-of-Way line of Claughton Island Bridge to the intersection with the westerly bulkhead line of Claughton Island, said bulkhead line being part of the Miami-Dade County bulkhead line as recorded in Plat Book 73 at Page 18 of the public records of Miami-Dade County, Florida; thence southerly, easterly, northerly, and westerly, following said existing bulkhead and its westerly prolongation thereof around the island to the intersection with the mainland on the easterly shoreline of Biscayne Bay; thence meandering in a northwesterly and westerly direction along the shoreline of Biscayne Bay and the Miami River to the intersection with the easterly Right-of-Way line of the Metro Rapid Transit line of Brickell Avenue Bridge (SE 2nd Avenue); thence north along said bridge to the existing bulkhead on the corner of said Lot 1; thence northwesterly across a 10 foot-wide alley to the northeasterly corner of Lot 6 of Block 8 of Miramar amended as recorded in Plat Book 5 at Page 4 of the public records of Miami-Dade County, Florida; thence northwesterly along the northerly line of said lot 6 and its northwesterly extension to its intersection with the centerline of Sevilla Street (NE 4th Avenue) of said Miramar amended (5- 4); thence southwesterly along the centerline of said Sevilla Street (NE 4th Avenue) to its intersection with the centerline of Vedado Street (NE 4th Avenue) of said Miramar amended (5-4); thence northerly along the centerline of NE 4th Avenue (Vedado Street); thence northerly along the centerline of NE 4th Avenue to its intersection with the centerline of NE 19th Street; thence westerly along the centerline of NE 19th Street to a point of intersection with southerly extension of the easterly lot line of Lot 4 of Block 1 of Miramar amended as recorded in plat book 5 at page 4 of the public records of Miami-Dade County, Florida; thence northerly along the easterly lot line of Lot 4 and its extension thereof to the southerly lot line of Lot 8 of Coral Park as recorded in Plat Book 2 at Page 66 of the public records of Miami-Dade County, Florida; thence easterly along the southerly lot line of Lot 8 to the southeast corner of said Lot 8; thence northerly along the easterly Lot line of Lot 8 to the southerly Right-of-Way line of NE 20th Street; thence easterly along the southerly Right-of-Way line of NE 20th Street to the southerly extension of the easterly lot line of Lot 7 of said Coral Park (2-66); thence northerly along the easterly lot line of Lot 7 and its extension thereof to the northeast corner of Lot 7; thence westerly along the northerly lot line of Lot 7 to a point of intersection with the southerly extension of the easterly lot line of Lot 7 of Block 4 of Bayside Park amended as recorded in Plat Book 2 at Page 40 of the public records of Miami-Dade County, Florida; thence northerly along the easterly lot line of Lot 7 and its extension thereof across a 15-foot-wide alley to the northeast corner of Lot 7; thence continuing northerly across the Right-of-Way of NE 20th Terrace to the southeast corner of Lot 7 of Block 1 of Bayside Park amended (2-40); thence northerly along the easterly lot line of Lot 7 to the northeast corner of said Lot 7; thence across a 15-foot-wide alley to the southeast corner of Lot 5 Block 3 of Bayonne Subdivision as recorded in Plat Book 2 at page 35 of the public records of Miami-Dade County, Florida; thence northerly along the easterly Lot line of Lot 5, and the northerly extension of its easterly lot line thereof, to the centerline of NE 21st Street; thence easterly along the centerline of NE 21st Street to a point of intersection with the southerly extension of the easterly lot line of Lot 3 of Block 1 of Bayonne Subdivision (2-35); thence northerly along the easterly lot line and its extension thereof, to the southerly lot line of tract A of

Caruso Subdivision as recorded in Plat Book 79 at page 23 of the public records of Miami-Dade County, Florida; thence easterly along the southerly tract line of tract A to the southerly extension of the easterly Right-of-Way line of NE 4th Avenue; thence northerly along the easterly Right-of-Way line of NE 4th Avenue and its extension thereof to the centerline of NE 24th Street; thence westerly along the centerline of NE 24th Street to the centerline of NE 2nd Avenue; thence southerly along the centerline of NE 2nd Avenue to the centerline of NE 17th Street; thence westerly along the centerline of NE 17th Street and NW 17th Street to the northerly shoreline of the Miami River; said bulkhead line also being the southerly boundary of the Dupont Plaza Center and Miami Center joint Venture property; thence northeasterly along the southerly boundary of Dupont Plaza Center and Miami Center Joint Venture property to a point of intersection with the easterly property line of Chopin Associates and Miami Center Limited Partnership; said property line being along the shoreline of Biscayne Bay; thence northerly along said easterly property line of Chopin Associates and Miami Center Limited Partnership property along Biscayne Bay to the southerly property line of Bayfront Park; thence continuing northerly, northeasterly and northwesterly along the bulkhead line of Bayfront Park and the Bayfront Park Miamarina to a point of intersection with the southerly Right-of-Way line of State Road A-1-A (Douglas Macarthur Causeway); thence easterly along the southerly Right-of-Way of said Douglas MacArthur Causeway to its intersection with the easterly Right-of-Way line of the Intercoastal Waterway, said point also being the westerly line of the submerged parcel of land of the NW quadrant of Watson Island as shown on the boundary survey of NW quadrant upland and submerged parcel (City of Miami miscellaneous file 61-398); thence southerly along the easterly Right-of-Way line of said Intercoastal Waterway to a point of intersection of the turning basin limit with the northerly line of the Miami main ship channel, said point also being approximately 500 feet west of the westerly bulkhead line of Watson Island and 1,200 feet southerly of the south Right-of-Way line of Douglas MacArthur Causeway, as per O.R.B. 2454, pages 77-79; thence northeasterly, southeasterly, and northeasterly along the southeasterly line of said NW quadrant of Watson Island to the most easterly corner of said NW quadrant of Watson Island, said corner being on the southwesterly Right-of-Way line of Douglas Macarthur Causeway; thence northwesterly and westerly along the said Right-of-Way line to the northwest corner of said NW quadrant of Watson Island; thence westerly along the southerly Right-of-Way line of the state road A-1-A (Douglas Macarthur Causeway) to the bulkhead line of Biscayne Bay; thence northerly along the bulkhead line of Biscayne Bay to a point of intersection with the centerline of NE 17th Street extended easterly; thence westerly along the centerline of NE 17th Street and its extension thereof to a point of intersection with the centerline of North Bayshore Drive; thence northerly along the centerline of North Bayshore Drive to its intersection with the centerline of NE 17th Terrace; thence northwesterly along the centerline of NE 17th Terrace to its intersection with the southwesterly extension of the northwesterly line of Lot 2 of block 1 of Seaport as recorded in Plat Book 149 at 79 of the public records of Miami-Dade County, Florida; thence northeasterly along the northwesterly line of said Lot 2, and it's said southwesterly extension thereof, to the southwesterly corner of Lot 1 of Block 1 of said Seaport (149-79); thence southeasterly and easterly along the southerly line of said lot 1 and its easterly extension to its intersection with the centerline of North Bayshore Drive; thence northeasterly along the centerline of North Bayshore Drive to its intersection with the southeasterly extension of the northerly line of said Lot 1 of Block 1 of said Seaport (149-79); thence northwesterly along the northerly line of said Lot 1, and its said southeasterly extension thereof, to the northwesterly easterly Right-of-Way fine of the FEC Railroad; thence southerly along the easterly Right-of-Way line of the FEC Railroad to the centerline of NW 5th Street thence

westerly along the centerline of NW 5th Street to the point of beginning. All lands situated and lying in Miami-Dade County, Florida.

(Ord. No. 12307, §§ 2, 3, 12-12-02; Ord. No. 13871, § 2, 11-21-19)

Editor's note—Ord. No. 12307, §§ 2, 3, adopted December 12, 2002, repealed and reenacted § 14-27 in its entirety to read as herein set out. Formerly, § 14-27 pertained to similar subject matter and derived from the Code of 1967, § 13-2; Ord. No. 9650, § 1, adopted July 8, 1983; Ord. No. 9835, § 1, adopted May 24, 1984; Ord. No. 10575, § 1, adopted April 27, 1989, and the Code of 1980, § 14-17.

Sec. 14-28. Property subject to ad valorem taxes for payment of city's general obligation debts, etc.

All real property located within the central business district shall be subject to ad valorem taxes to pay the principal and interest on all existing general obligation debts of the city and any future debts which may be authorized by law.

(Code 1967, § 13-3; Code 1980, § 14-18)

Sec. 14-29. Powers of city cumulative.

All powers conferred upon the city by this article are and shall be supplemental and in addition to those conferred by any other general or special law and shall be liberally construed to effectuate the purposes hereof.

(Code 1967, § 13-4; Code 1980, § 14-19)

Secs. 14-30—14-50. Reserved.

DIVISION 2. DOWNTOWN DEVELOPMENT AUTHORITY

Sec. 14-51. Downtown development authority created.

Pursuant to Laws of Fla., ch. 65-1090, there is hereby created the downtown development authority of the city, which authority shall be a body corporate with the power to sue and be sued in all the courts of the state and shall have its own corporate seal.

(Code 1967, § 13-5; Code 1980, § 14-25)

State law reference—Act authorizing creation of downtown development authorities in certain cities, Laws of Fla., ch. 65-1090, set forth in pt. I, subpt. C, art. I of this volume.

Sec. 14-52. Downtown development authority board—Composition; appointment and terms of office of members and executive board; filling of vacancies.

(a) The affairs of the authority shall be under the direct supervision and control of a board consisting of 17 members, appointed, and confirmed, by the city commission in the manner indicated in subsection (b) below.

(b) The board shall be constituted by 17 members as follows:

(1) The City commission, at large, shall appoint one of its city commissioners members to be the chairperson of the board and the 17th member of the authority's board. The chairperson of the authority shall have the power to appoint the chairperson(s) to the various committees which the authority shall have the power to establish from time to time.

(2) One member may be appointed by the Board of County Commissioners of Miami-Dade County and submitted to the city commission for confirmation.

(3) One member may be appointed by the cabinet of the state and submitted to the city commission for confirmation.

(4) One member may be appointed by the Miami Dade College and submitted to the city commission for confirmation.

(5) The remaining 13 members shall be appointed by the board of the authority and submitted to the city commission for confirmation. Each of the 13 members shall be designated as follows:

a. One resident of Brickell district, which may be defined by the authority;

b. One resident of the Central Business District;

c. One resident of the Arts and Entertainment district, which may be defined by the authority;

d. One business owner in Brickell district, which may be defined by the Authority;

e. One business owner in the Central Business District;

f. One business owner in the Arts and Entertainment district, which may be defined by the authority;

g. One representative of a major stakeholder within the boundaries of the authority;

h. One individual employed in the sports and entertainment industry;

i. One representative of Flagler Street;

j. One individual that works in land use, zoning, or transportation;

k. One individual that is employed in the arts and culture business/ industry;

l. Two at-large members of Downtown.

At least 40 percent of authority appointees must be residents of downtown. The board shall continue to include at least one member from each sub-district created by the authority from time to time. A proposed member shall not be considered a member of the board until confirmed by the city commission. In the event an appointee is rejected by the city commission, the board shall appoint a successor consistent with the above categories until all 13 seats are filled with appointees who are confirmed by the city commission.

(5) In the event the city commission does not reject a proposed member appointed by the board of county commissioners or by the cabinet of the state within the next two meetings of the city commission taking place after the date the city commission is notified of such appointment, then said appointee shall be deemed confirmed by the city commission. If, however, any such appointee is rejected by the city commission within the aforementioned period, then the board of county commissioners and/or the cabinet of the state shall have a period of ten days, after being notified of the rejection, in which to appoint a replacement, who shall be again subject to confirmation by the city commission. In the event that the appointee is, again, rejected by the city commission, then the board of directors of the authority shall have the right to fill the vacant position(s) in the manner provided in subsection (6).

(6) In the event that the board of county commissioners or the cabinet of the state fails to appoint a member within 30 days from the date that the nomination is requested by the board of the Authority, or within ten days after being notified of the rejection of a nominee, then the board may appoint proposed members(s) for said positions. The proposed members for the county and state seats shall be individuals who, in the opinion of the board, have the necessary qualifications and credentials to represent the board of county commissioners and/or the cabinet of the state. The appointee(s) shall be submitted to the city commission for confirmation, and shall be deemed confirmed unless the appointment is rejected by the city commission within the next two meetings of the city commission taking place after the date the city commission is notified of said appointment. In the event of a rejection, the board shall have the right to continue to submit the name of appointee(s) until confirmation by the city commission.

(c) Members shall serve terms of four years expiring on December 31 of the fourth year of their term. Members shall serve a maximum of two consecutive terms. Members shall continue to serve until their successors have been appointed and confirmed. Appointments to fill vacancies shall be for the unexpired term only. Appointments made to fill an unexpired term shall be for the remainder of that term only and shall not count toward the appointee's two-term limit. Limitations on terms shall not apply to the members nominated by the Board of County

Commissioners of Miami-Dade County, Cabinet of the State, and Miami Dade College and approved by city commission.

(d) In the event that the authority's boundaries are expanded, the authority shall recommend the appointment of up to two additional members, one resident and one business owner of the newly incorporated area to the authority. These additional seats shall be created to ensure adequate representation of the interests and needs of property owners, business owners, and residents within the newly incorporated area and must comply with qualifications of section 14-53.

(e) Quorum shall consist of five members. Rules of procedure of the board may require up to nine members to be present in person or by telephone to take board action.
(Code 1967, § 13-6; Ord. No. 9067, § 1, 2-12-80; Ord. No. 9071, § 1, 2-28-80; Ord. No. 9705, § 1, 10-25-83; Ord. No. 9869, § 1, 7-31-84; Ord. No. 10424, § 1, 4-14-88; Ord. No. 10534, § 1, 1-12-89; Ord. No. 10985, § 1, 5-14-92; Ord. No. 11043, § 1, 3-11-93; Ord. No. 11064, § 1, 5-27-93; Ord. No. 11130, § 10, 3-24-94; Ord. No. 11151, § 1, 5-23-94; Code 1980, § 14-26; Ord. No. 11373, § 6, 6-27-96; Ord. No. 11538, § 3, 9-9-97; Ord. No. 11564, § 7, 10-28-97; Ord. No. 11692, § 2, 7-21-98; Ord. No. 11734, § 2, 12-8-98; Ord. No. 12519, § 3, 4-8-04; Ord. No. 12905, § 2, 4-12-07; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-53. Same—Qualifications of members.

(a) Except for the seats to be filled by the city commission, the board of county commissioners, or the cabinet of the state, all members of the board shall either (1) reside; (2) work; or (3) own (or be the designated representative of the owner of) a business; or (4) own (or be the designated representative of the owner of) real property in the Downtown district, as described in section 14-27 of this article, and in accordance with section 14-52 of this article. For purposes of this section, a person shall be deemed to "own real property" where the person is the owner of the fee simple title, or owns the leasehold interest on the property under a lease having an original term of at least 30 years. All members of the board shall be individuals of outstanding reputation for integrity, responsibility and business ability and acumen. No officer or employee of the city, other than one member of the city commission, shall be eligible for appointment to the board.

(b) Before assuming the duties of the office, each appointed member shall qualify by taking and subscribing to the oath of office required of officials of the city.
(Code 1967, § 13-7; Ord. No. 10714, § 1, 3-8-90; Ord. No. 10985, § 1, 5-14-92; Ord. No. 11189, § 2, 10-27-94; Code 1980, § 14-27; Ord. No. 11373, § 6, 6-27-96; Ord. No. 11538, § 3, 9-9-97; Ord. No. 11692, § 2, 7-21-98; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-54. Same—Meetings; rules and regulations; compensation of members.

The board shall adopt and promulgate rules governing its procedures and shall hold regular meetings no less often than once each month, except for any month in which the city commission is not in session. Special meetings may be held when called in the manner provided in the procedures of the board. All meetings of the board shall be open to the public. Each member of the board shall serve without compensation.
(Code 1967, § 13-8; Code 1980, § 14-28; Ord. No. 12905, § 2, 4-12-07; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-55. Same—Removal of members.

(a) Notwithstanding anything in the Code to the contrary, by resolution specifying facts sufficient to advise a board member as to the basis for his or her removal and after reasonable notice to the board member and an opportunity for the member to be heard by the board, the city commission or the board of directors authority, may remove a board member:

(1) For cause; or

(2) Upon the occurrence of an event that causes the member to cease to meet their qualification criteria set forth in sections 14-52 and 14-53; or

(3) As otherwise provided by law.

For purposes of this section, being absent from three consecutive regular board meetings or from four regular board meetings during a calendar year shall constitute good cause for removal.

(b) Notwithstanding anything in the Code to the contrary, in the event a board member has served ten years, consecutively or non-consecutively, they shall be automatically removed, and the Authority shall fulfill the vacancy within three months of the seat's vacancy. However, automatic removal for time served on the board shall not apply to the members nominated by Board of County Commissioners of Miami-Dade County, Cabinet of the State, and Miami Dade College and approved by city commission.
(Code 1967, § 13-9; Ord. No. 9363, § 1, 1-14-82; Ord. No. 11130, § 10, 3-24-94; Code 1980, § 14-29; Ord. No. 11538, § 3, 9-9-97; Ord. No. 12905, § 2, 4-12-07; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-56. Same—Powers and duties.

(a) The board, subject to the provisions of this article, and subject to other applicable provisions of law, shall have all powers customarily vested in the board of directors of a corporation for profit. It shall exercise supervisory control over the activities of the director and the staff of the downtown development authority in carrying out the functions authorized by this article.

(b) It shall be the duty of the board, and it shall have the power, to do the following:

(1) Appoint a director; prescribe his/her duties; and fix his/her compensation, which shall be paid from funds available to the authority. The staff members shall be employed by the director, and shall have no civil service rights or privileges.

(2) Prepare an analysis of economic changes taking place in the central business district of the city.

(3) Study and analyze the impact of metropolitan growth upon the central business district.

(4) Plan and propose within the downtown area, public improvements of all kinds, including renovation, repair, remodeling, reconstruction or other changes in existing buildings which may be necessary or appropriate to the execution of any such plan which in the opinion of the board will aid in the economic growth of the downtown area.

(5) To implement as provided in this article any plan of development in the downtown area as shall be necessary to carry out its functions, except that when funds are required the approval of the city commission is required.

(6) In cooperation with the planning advisory board and zoning board of the city and the planning department of the city, develop long range plans designed to halt the deterioration of property values in the central business district, and take such steps as may be necessary to persuade property owners to implement such plans to the fullest extent possible.

(7) Retain and fix the compensation of legal counsel to advise the board in the proper performance of its duties. The general counsel of the downtown development authority as authorized in this article shall be a practicing attorney at law admitted to the practice of law in the state. He/she shall represent the authority in all suits or actions brought by or against the authority involving the jurisdiction, power, duties, functions or activities of the authority, or of the city, under the terms of this article.

(8) To make and enter into all contracts necessary or incidental to the exercise of its powers and the performance of its duties.

(9) Borrow money on a short-term basis to pay expenses of operation following the assessment and levy and prior to collection of the tax herein authorized, and to issue evidences of indebtedness, such loans to be signed by the chairperson and the secretary of the authority. Prior to

the issuance of evidence of indebtedness for such loans, the board shall first present the plan and need therefor and the commission of the city must approve such evidence of indebtedness by an appropriate resolution. The rate of interest to be paid by the authority on any such debt shall be the lowest rate of interest available not to exceed six percent per annum. The authority shall hold the city harmless with respect to any debt created hereunder.

(10) The board shall review and make recommendations to the City of Miami Commission prior to any amendments to this article being considered by the City of Miami Commission.

(Code 1967, § 13-10; Ord. No. 8665, § 1, 6-21-77; Code 1980, § 14-30; Ord. No. 12905, § 2, 4-12-07; Ord. No. 13676, § 2, 4-27-17; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-57. Same—Additional powers and duties.

In addition and supplemental to the powers provided in section 14-56, the authority acting through its board, subject to the approval of the commission of the city as hereinafter set forth, shall have the right, power and authority to:

(1) Acquire by the exercise of the power of eminent domain any real property which it may deem necessary for its purposes under this article after the adoption by it of a resolution declaring that the acquisition of the real property described therein is necessary for such purposes, subject to the need and plan therefor being first presented to the commission of the city and its approval evidenced by the adoption of an appropriate resolution. The authority may exercise the power of eminent domain in the manner provided in F.S. chs. 73 and 74. Property already devoted to a public use may be acquired in like manner, provided that no real property belonging to the city, the county, the state or any political subdivision thereof may be acquired without its consent.

(2) Acquire by purchase or otherwise on such terms and conditions and in such manner as it may deem proper, or by the exercise of the power of eminent domain, subject to the need and plan therefor being first presented to the commission of the city and its approval evidenced by the adoption of an appropriate resolution, own, convey or otherwise dispose of, lease as lessor or lessee any land and any other property, real or personal, or any rights or interests therein, which it may determine is reasonably necessary for any project (hereafter defined) or purpose of this article; and to grant or acquire licenses, easements and options with respect thereto.

(3) Improve land, construct, reconstruct, equip, improve, maintain, repair and operate office buildings and any necessary or desirable appurtenances thereto, within the boundaries of the authority for the housing in whole or in part of federal, state, county or municipal governmental entities or any agencies thereof or any other person or corporation or any combination of the foregoing (each such office building being herein called a "project"), subject to the need and plan therefor being first presented to the mayor and commission of the city and its approval evidenced by the adoption of an appropriate resolution.

(4) Fix, charge and collect fees, rents and charges for the use of any project or any part thereof or any facilities furnished thereby, or property under its control and to pledge such revenue to the payment of revenue bonds issued by it, subject to the need and plan therefor being first presented to the mayor and commission of the city and its approval evidenced by the adoption of an appropriate resolution.

(5) Lease as lessor any project, projects or property under its control or any part thereof and charge rentals for the use thereof sufficient with any other available revenues to pay the principal of and

the interest on the revenue bonds issued to pay the cost of any such project or projects, subject to the need and plan therefor being first presented to the mayor and commission of the city and its approval evidenced by the adoption of an appropriate resolution.

(6) Accept grants and donations of any type of property, labor, or other thing of value from any public or private source.

(7) Receive the proceeds of the tax referred to in this article, subject to the commission of the city approving the millage assessment as provided therein.

(8) Receive the revenues from any property, project or facility owned, leased, licensed, or operated by it or under its control, subject to the limitations imposed upon it by trusts or other agreements validly entered into by it.

(9) Cooperate and enter into agreements with any governmental agency or other public body, subject to the need and plan therefor being first presented to the commission of the city and its approval evidenced by the adoption of an appropriate resolution.

(10) Make or receive from the municipality or the county in which the authority is located conveyances, leasehold interests, grants, contributions, loans and other rights and privileges, subject to the need and plan therefor being first presented to the commission of the city and its approval evidenced by the adoption of an appropriate resolution.

(11) Subject to the need and plan therefor being first presented to the commission of the city and its approval evidenced by the adoption of an appropriate resolution approving such plan, issue, negotiate and sell, in accordance with the applicable provisions of the laws of the state, except as otherwise herein provided, revenue bonds of the authority, payable solely from revenues, to pay all or any part of the cost of any project, projects or purpose of this article upon such terms and conditions, manner and form, and having such details, conditions and provisions as shall be determined by resolution of the authority not inconsistent with the provisions hereof, and to secure such revenue bonds by a trust agreement by and between the authority and a bank or trust company having trust company powers within or without the state, provided that any such revenue bonds shall mature at such time or times not later than 40 years from their date and shall bear interest at a rate or rates not exceeding six percent per annum; to take all steps deemed by it necessary or expedient for efficient preparation and marketing of the revenue bonds at public sale upon ten days' published notice in the municipality where the authority is located or with the approval of the commission of the city at private sale, at the best price obtainable, including the entry into binding agreements with corporate trustees, underwriters, and the holders of the revenue bonds, and the employment and payment, as a necessary expense of issuance, for the services of consultants on valuations, costs and feasibility of undertaking, revenues to be anticipated and other financial matters, architecture, engineering, legal matters, accounting matters, and any other fields in which expert advice may be needed to effectuate advantageous issuance and marketing; and such bonds shall be governed by the following conditions:

a. Any revenue bonds issued under the provisions of this section shall not be deemed to be a debt of the city, the county in which it is located, or the state, or a pledge of the faith and credit of the city, county or state; but such bonds shall be payable solely from the revenues pledged for their payment as authorized herein. The city establishing such authority, the county in which it is located, and the state are not directly or indirectly obligated to pay the

principal of or the interest on the bonds, and the faith and credit of the city is not pledged to the payment of such principal or interest; and all such bonds shall contain this statement on their face. The issuance of revenue bonds under the provisions of this section shall not, directly or indirectly or contingently, obligate the city, county or state to levy or to pledge any form of taxation whatever therefor, or to make any appropriation for their payment.

b. All revenue bonds issued pursuant hereto shall be negotiable instruments for all purposes.

(12) Exercise all powers incidental to the effective and expedient exercise of the foregoing powers to the extent not in conflict herewith or inconsistent herewith.

(Code 1967, § 13-10.1; Code 1980, § 14-31; Ord. No. 11564, § 7, 10-28-97)

Sec. 14-58. Employees generally.

(a) The board shall employ and fix the compensation, subject to the approval of the city commission, of the director of the board, who shall serve at the pleasure of the board. The director shall be a person of good moral character and possessed of a reputation for integrity, responsibility and business ability. No member of the board shall be eligible to hold the position of director. Before entering upon the duties of his/her office, the executive director shall take and subscribe to the oath and furnish bond as required of members of the board. He/she shall be the chief executive officer of the downtown development authority and shall devote his/her entire time and attention to the duties of his/her office. He/she shall not, while serving as director, engage in any other business or profession. Subject to the approval of the Board, and direction by it when necessary, he/she shall have general supervision over and be responsible for the preparation of plans and the performance of the functions of the Authority in the manner authorized in this article. He/she shall attend all meetings of the board and shall render to the board, the mayor and to the city commission, a monthly report covering the activities and financial condition of the authority. In the absence or disability of the director, the board may designate a qualified person to perform the duties of the office as acting director. The director shall furnish the board with such information or reports governing the operation of the authority as the board may from time to time require.

(b) Subject to the approval of the board, the director shall employ and fix the compensation of:

(1) A treasurer, who shall keep the financial records of the authority and who, together with the director, shall perform such other duties as may be delegated to him/her by the board. At the discretion of the board, the functions of the treasurer may be performed by an outside professional retained and approved by the board for these purposes.

(2) A secretary, who shall maintain custody of the official seal and of all records, books, documents or other papers not required to be maintained by the treasurer. The secretary shall attend all meetings of the board and keep a record of all its proceedings. The secretary shall perform such other duties as may be delegated by the board.

(3) Such clerical, technical and professional assistance, including, but not limited to, engineering, planning, economic research and other fields, as shall in the opinion of the board be necessary to provide for the efficient performance of the functions of the board.

(Code 1967, § 13-11; Code 1980, § 14-32; Ord. No. 11564, § 7, 10-28-97; Ord. No. 12905, § 2, 4-12-07; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-59. Annual budget; source of funds.

(a) No later than 30 days prior to the date the city commission establishes the millage rate for the city, the director shall prepare for the approval of the board a budget for the operation of the

downtown development authority for the ensuing fiscal year. The budget shall be prepared in the same manner as required of all departments of the city. When approved by the board it shall not require approval of any officer or body of the city other than the city commission. No funds of the city may be included in the budget of the authority except those funds authorized in this article.

(b) The operations of the downtown development authority shall be principally financed from the following sources and such other sources as may be approved by the city commission:

(1) Donations to the authority for the performance of its functions.

(2) Proceeds of an ad valorem tax, not exceeding 0.4750 mills per dollar valuation of property in the downtown area designated by the city commission.

(3) Money borrowed and to be repaid from other funds received under the authority of this article which shall include federal funds, contributions and funds derived from the millage authorized to be levied under this article.

(Code 1967, § 13-12; Code 1980, § 14-33; Ord. No. 12905, § 2, 4-12-07; Ord. No. 13573, § 2, 11-19-15; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-60. Annual ad valorem tax levy in downtown district; disposition of funds.

The city commission is authorized to levy an additional ad valorem tax on all real and personal property in the downtown district as described in this article, not exceeding 0.4750 mills on the dollar valuation of such property, for the purpose of financing the operation of the downtown development authority. This levy of 0.4750 mills per dollar ad valorem tax shall be in addition to the regular ad valorem taxes and special assessments for improvements imposed by the city commission. The tax collector shall transmit funds so collected to the appropriate officer of the city responsible for the handling of the public money who shall deposit the same in the city treasury to the credit of the authority. Such money shall be used for no purpose other than those purposes authorized in this article and, upon approval of the board, pursuant to vouchers signed by a minimum of two authorized signatories of the authority, who shall be the director and one member of the board of directors, or two members of the board of directors. The funds of the authority shall be secured as other public funds are secured. Other money received by the authority shall forthwith be deposited in the city treasury to the credit of the authority, subject to disbursement as authorized in this article. The city shall not obligate itself nor shall it ever be obligated to pay any sums from general public funds, or from any public funds other than money received pursuant to section 14-59 for or on account of any of the activities of the authority.

(Code 1967, § 13-13; Code 1980, § 14-34; Ord. No. 12905, § 2, 4-12-07; Ord. No. 13573, § 2, 11-19-15; Ord. No. 14404, § 2, 10-23-25)

Sec. 14-61. Assessment of funds for handling and auditing by city.

The city commission shall have the power to assess against the funds of the downtown development authority, for the use and benefit of the general fund of the city, a reasonable pro rata share of such funds for the cost of handling and auditing, which assessment when made shall be paid annually by the board pursuant to an appropriate item in its budget.

(Code 1967, § 13-14; Code 1980, § 14-35)

Sec. 14-62. Conflicts of interest of board members, employees, etc.

No board member nor any employee of the board shall vote or otherwise participate in any matter in which he/she has a financial interest, either direct or indirect. When such interest shall appear, it shall be the duty of the board member, or employee, to make such interest known and he/she shall thenceforth refrain from voting on or otherwise participating in the particular transaction involving such interest. Willful violation of the provisions of this section shall constitute malfeasance on the part of a member of the board, and shall be grounds for instant dismissal of any employee. Any transac-

tion involving a conflict of interest, wherein a violation of this section is involved, may be rendered void at the option of the board.
(Code 1967, § 13-15; Code 1980, § 14-36; Ord. No. 13676, § 2, 4-27-17; Ord. No. 14404, § 2, 10-23-25)

City Code cross reference—Conflicts of interest, § 2-611 et seq.

DIVISION 3. RESERVED*

Secs. 14-63—14-90. Reserved.

ARTICLE III. GUSMAN CENTER FOR THE PERFORMING ARTS

Sec. 14-91. Administration.

(a) The members of the off-street parking board of the city, or their successors, are hereby authorized to administer the facility known as Gusman Center for the Performing Arts and located at 174 East Flagler Street, Miami, Florida, on the property legally described as follows:

Lot 1, lot 2 (less the west two inches of the north 65 feet), the south 55 feet of lot 3, and the north 45 feet of lots 18, 19 and 20, block 121 north, City of Miami, according to the plat thereof, as recorded in plat book B, at page 41, of the public records of Dade County, Florida.

(b) Administration of said facility shall include, but not be limited to, the following:

(1) Provide for the general management, maintenance and upkeep of the building, including the engagement of such personnel or independent contractors as are necessary for such.

(2) Negotiate and enter into agreements or leases for the use of the auditorium and other available space in the building on the property.

(3) Provide for appropriate means of accounting and bookkeeping so that the financial affairs of the facility are adequately administered and accounted for.

(4) Provide leadership and guidance so that the facility may be financially sound in its operation as well as being a cultural and artistic success, and a noteworthy monument reflecting credit upon the city, and an outstanding attraction in the downtown area.

(5) Establish a maintenance fund for the upkeep of the building and establish such reserve funds from the income of the facility as are deemed by the members of the off-street parking board to be necessary for the successful operation of the facility.

(6) Make periodic reports to the mayor and city commission which shall reflect the financial condition of the operation of the facility.

(Ord. No. 8435, § 1, 7-31-75; Code 1980, § 14-51; Ord. No. 11564, § 7, 10-28-97)

Secs. 14-92—14-120. Reserved.

ARTICLE IV. DOWNTOWN AND SOUTHEAST OVERTOWN/PARK WEST DEVELOPMENTS OF REGIONAL IMPACT†

DIVISION 1. GENERALLY

Sec. 14-121. Intent.

This article is intended to assist in the implementation of the downtown development of

*__Editor's note—__Ord. No. 13949, § 2, adopted December 10, 2020, repealed the former division 3, sections 14-63—14-65 in its entirety, which pertained to the downtown pedestrian priority zone, and derived from Ord. No. 13426, § 2, adopted January 9, 2014.
For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 54, article X of this Code.

†__Editor's note—__Ord. No. 13406, § 3, adopted September 26, 2013, amended article IV in its entirety to read as herein set out. Formerly, article IV pertained to similar subject matter, and derived from the Code of 1980, §§ 14-58—14-65, 14-70—14-72; Ord. No. 10543, § 1, adopted January 26, 1989; Ord. No. 10675, § 1, adopted November 30, 1989, and Ord. No. 11032, § 2, adopted December 10, 1992.

regional impact (Resolutions 87-1148, 87-1149, 91-968, 94-849, 94-850, 98-219, 98-787, 98-1153, 99-159, 99-973, 02-1307, 04-0425) and the Southeast Overtown/Park West development of regional impact (Resolutions 88-110, 88-111, 92-609 and 13-) development orders. Its purpose is to assure the orderly use and flow of development credits by preventing the retention of such credits by developments unable to complete construction within a reasonable period of time and to initiate implementation of traffic control and environmental protection measures of said resolutions.
(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-122. Definitions.

For the purpose of this article, the following terms shall be defined as presented below:

Building permit: Any permit required for new construction and additions pursuant to Section 105 of the Florida Building Code.

Certificate of occupancy: A permanent or temporary or partial certificate of occupancy issued, pursuant to the Florida Building Code, for any "net new development" as defined herein.

City: The City of Miami, Florida.

Credit holder: Entity to which a reservation of development credits has been issued in conjunction with receipt of a building permit or major use special permit.

DDA or *downtown development authority:* The downtown development authority of the city.

DRER: Department of Regulatory and Economic Resources of Miami-Dade County.

Development: As defined in F.S. § 380.04 (2011) and any amendments thereto.

Development credits: The individual units of land uses included within total allowable development, as measured by square footage or number of dwelling units, hotel rooms, or seats.

Development orders: City of Miami Resolutions 87-1148, 87-1149, 91-968, 94-849, 94-850, 98-219, 98-787, 98-1153, 99-159, 99-973, 02-1307 and 04-0425 as amended (downtown development of regional impact), and Resolutions 88-110, 88-111, 92-607, 92-608, 92-609, 93-217, 99-973, 00-289, 01-1159, 05-0480 and 13- (Southeast Overtown/Park West development of regional impact), as amended, as applicable.

DRI: Development of regional impact.

Major use special permit or *MUSP:* A special permit issued by the city commission for large developments pursuant to former Zoning Ordinance Number 11000, or its functional equivalent.

Net new development: Any construction or reconstruction which will result in a net increase, within any "parcel of land," of residential dwelling units, hotel rooms, seats in attractions/recreation facilities or gross square footage or office, government office, retail/service, convention, wholesale/industrial or institutional uses. Land uses to be removed by demolition of a building or structure may be credited against the proposed new land uses for purposes of calculating the net increase, if the planning, building and zoning director determines that there was a valid certificate of occupancy existing on the effective date of the master increment I, increment II, or increment III development orders rendered for the downtown DRI and the Southeast Overtown/Park West DRI for the land uses to be demolished. If a change of land use is proposed, the planning, building and zoning director may credit the prior land use against the proposed land use based upon equivalent impacts as measured by peak hour vehicle trip generations.

Parcel of land: Any quantity of land capable of being described with such definiteness that its location and boundaries may be established, and which is designated by its owner or developer as land to be used or developed as a unit or which has been used or developed as a unit.

Reservation of development credits: A written certificate, signed by the planning, building and zoning director, allocating an amount of development credits equal to the amount of net new development in a zoning approval or building permit to a specified parcel of land, subject to the terms and conditions of this article. Reserva-

tions of development credits shall run with the land and shall not be transferable to any other parcel of land or building permit.

SF, gross square feet, or *gross square footage* shall mean the floor area as defined within the zoning ordinance.

Site shall mean a legally described parcel of property capable of development pursuant to applicable city ordinances and regulations.

Total allowable development: The quantity of net new development for which certificates of occupancy may be issued under the terms and conditions of the increment I, increment II and increment III development orders as amended, together with the applicable master development order, as may be modified pursuant to F.S. § 380.06(19) (2011), and which shall be measured by the following land uses:

DOWNTOWN

Land Uses	*Increment I (1988-1997)*	*Increment II (1992-1999)*	*Increment III (1999-2007)*	*Totals*
Office (gross square feet)	6,919,550	3,600,000	3,700,000	14,219,550
Government office (gross square feet)	300,000	250,000	200,000	750,000
Retail/service (gross square feet)	1,050,000	400,000	500,000	1,950,000
Hotel (rooms)	1,500	500	1,100	3,100
Residential (dwelling units)	3,550	2,550	2,920	9,020
Convention (gross square feet)	500,000	0	0	500,000
Wholesale/industrial (gross square feet)	1,050,000		1,050,000	2,100,000
Institutional (gross square feet)	300,000	0	300,000	600,000
Attractions/recreation (seats)	6,500	1,600	5,000	13,100

SOUTHEAST OVERTOWN/PARK WEST

Land Uses	*Increment I (1988-2005)*	*Increment II (1992-2019)*	*Increment III (2012-2025)*	*Totals*
Office (gross square feet)	166,000	337,000	2,300,000	2,803,000
Retail/service general commercial (gross square feet)	72,272	94,828	1,250,000	1,417,100
Hotel (rooms)	0	500	2,100	2,600
Residential (dwelling units)	2,000	2,000	4,000	8,000
Attractions (seats)	8,000	8,000	0	16,000
Conference (gross square feet)	0	0	200,000	200,000

Work: Work shall be considered to have commenced and be in active progress when the planning director determines, after consultation with the city's building official, that a full complement of workers and equipment is present at the site to diligently, in accordance with normal and customary construction scheduling, incorporate materials and equipment into the structure throughout the day on each full working day, weather permitting.

Zoning ordinance shall mean city Ordinance Number 13114, known as Miami 21 Zoning Code, or a successor ordinance, the zoning ordinance of the City of Miami.
(Ord. No. 13406, § 3, 9-26-13; Ord. No. 13676, § 2, 4-27-17)

Secs. 14-123—14-150. Reserved.

DIVISION 2. RESERVATION OF DEVELOPMENT CREDITS

Sec. 14-151. Downtown: With building permit.

Application for reservation of development credits for net new development within the downtown DRI areas that is not required to undergo major use special permit (MUSP) review pursuant to Ordinance Number 11000, the zoning ordinance of the city, as amended, shall be made concurrent with applications for a building permit. Reservations for development credits will be issued simultaneously with an approved building permit subject to the payment of all applicable fees at the time when due pursuant to ordinance.
(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-152. Downtown: With major use special permit.

(a) Application for reservation of development credits for net new development within the downtown DRI areas that because of its size and nature must undergo major use special permit (MUSP) review pursuant to Ordinance Number 11000, the zoning ordinance of the city, as amended, shall be made concurrent with the application for a MUSP. Applicants shall only apply for reservation of development credits for those portions or phases of their net new development anticipated to be under construction within 24 months from the date of the issuance of the MUSP. Subsequent phases may receive a reservation only after the building permit has been issued for the prior phase. Reservation of development credits shall be issued simultaneous with the MUSP, subject to the payment of all applicable fees at the time when due pursuant to ordinance, and further subject to adherence to the following time limitations:

(1) Within six months from the effective date of the MUSP, the applicant must demonstrate to the planning, building and zoning director that design development plans and drawings for those portions of net new development for which a reservation of development credits has been issued are in progress and are likely to be completed within the succeeding six months.

(2) Within 12 months from the effective date of the MUSP, the applicant must submit a letter of intent to provide construction financing from a lending institution or other qualified source and demonstrate to the planning, building and zoning director that working drawings/construction documents for those portions of net new development for which a reservation of development credits has been issued are in progress and likely to be completed within the succeeding six months.

(3) Within 18 months from the effective date of the MUSP, the applicant must submit a binding letter of commitment for construction financing from a lending institution or other qualified source and demonstrate to the planning, building and zoning director that a complete application for a building permit has been submitted to the planning, building and zoning department for those portions of net new development for which a reservation of development credits has been issued.

(4) Within 24 months from the effective date of the MUSP, the applicant must demonstrate to the planning, building and zoning director that the building permit has been obtained and that work has commenced on the net new development for which a reservation of development credits has been issued.

(b) It shall be the responsibility of the holder of the MUSP to submit the required information, in writing, to the planning, building and zoning director on or before the expiration date of each of the above-described six-month intervals. At any of the above-described intervals the planning, building and zoning director may rescind the reservation of development credits for failure to comply with the time limitations. Notice of intent to rescind a reservation for development credits shall be made, in writing, by the planning, building and zoning director, stating reasons therefor, within 15 days from the expiration date of the current six-month interval of the time limitations. The credit holder may present additional facts, information or data in support of his/her position prior to the rendering of a final decision by the planning, building and zoning director which shall be made in writing within 30 days from the expiration date of the current six-month interval of the time limitations. Development credits rescinded pursuant to this paragraph shall be held in reserve by the planning, building and zoning department pending the outcome of an appeal pursuant to section 14-156.
(Ord. No. 13406, § 3, 9-26-13; Ord. No. 13676, § 2, 4-27-17)

Sec. 14-153. Downtown: Time limits on development credit reservation after building permit issued.

Reservations of development credits will remain in effect for so long as the building permit remains in effect in accord with the South Florida Building Code, except as provided herein.

(1) After 20 percent or more of the construction is complete, as measured by construction loan disbursements, on the full amount of net new development for which a reservation of development credits is applicable, the reservation shall not expire or be rescinded except by termination of the building permit. It shall be the responsibility of the credit holder to submit bank drafts or other relevant documentation to the planning, building and zoning director to verify required pro rata completion of said construction.

(2) Prior to completion of 20 percent of construction, as provided above, if "work" appears not to be actively underway for at least 50 percent of the working days (Monday through Friday, national holidays excluded) within any given six-month period, the planning, building and zoning director may, by certified mail, request a review of the reasons for the work stoppage. If the credit holder fails to respond in writing with supporting documentation, within 15 days, or if the planning, building and zoning director finds that work has been abandoned or is likely to be stopped for longer than a six-month period of time due to financial failure, legal action, or any other reason, he/she may rescind the reservation of development credits. Notice of intent to rescind a reservation for development credits shall be made in writing by the planning, building and zoning director, stating reasons therefor, within 30 days from the date that the planning, building and zoning director transmits, by certified mail, the written request for review of the work stoppage. The credit holder may present additional facts, information, or data in support of his/her position prior to the rendering of a final decision by the planning, building and zoning director which shall be made in writing within 45 days from the date that the credit holder received the written request for review of the work stoppage. If the planning, building and zoning director, after consulting with the city's building official, finds sufficient evidence that work will be resumed within the succeeding six-month period and will continue on a reasonable timetable for the size and nature of the construction project, according to local construction industry standards, he/she shall not rescind the reservation of development credits, but he/she may establish a reasonable timetable for completion of at least

20 percent of the net new development, and conditions upon which the reservation of development credits may be rescinded upon failure to meet the timetable. Work stoppages caused by civil unrest, labor disputes on the site, or fire, shall be counted as "nonworking" days. Development credits rescinded pursuant to this paragraph shall be held in reserve by the planning, building and zoning department pending the outcome of an appeal pursuant to section 14-156.

(Ord. No. 13406, § 3, 9-26-13; Ord. No. 13676, § 2, 4-27-17)

Sec. 14-154. Downtown: Reallocation of development credits subsequent to expiration or rescission of reservation.

(a) If a reservation for development credits expires or is rescinded by the planning, building and zoning director, pursuant to this article, those development credits shall be reserved on a first come, first served basis for other net new development, subject to the following order of priority:

(1) Net new development with building permits approved subject to availability of development credits.

(2) Net new development with pending building permit applications, based upon the date of acceptance by the planning, building and zoning department of the complete building permit applications.

(3) Net new development with a letter of commitment for construction financing and, if applicable, an approved MUSP.

(4) Net new development with approved MUSPs, based upon the approval date of the MUSP. If more than one MUSP was approved on the same date, priority will be based upon the date of acceptance by the planning, building and zoning director of a complete MUSP application.

(b) No sooner than six months after a reservation for development credits has expired or been rescinded pursuant to this article, a new reservation for development credits may be given to the same parcel of land, following submission of a new application and payment of all applicable fees by the owner, subject to availability of development credits based upon the order of priority listed above.

(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-155. Downtown: Changes in plans subsequent to reservation of development credits.

Any proposed change in plans affecting the use or gross square footage of any net new development shall be approved by the planning, building and zoning director. The reservation of development credits and applicable fees shall be adjusted accordingly; provided, however, that additional development credits shall be reserved only when available according to the order of priority listed in section 14-154 above.

(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-156. Downtown: Appeals.

(a) If a reservation of development credits is rescinded by the planning, building and zoning director pursuant to this article, the credit holder may appeal said action to the city commission by filing a notice of appeal with the city clerk, within 15 days from the date of transmission to the planning, building and zoning director's written notification of reservation of development credit rescission, and paying a filing fee of $500.00. The notice of appeal shall contain sufficient documentation for the city commission to make a determination as to whether the credit holder has complied with the relevant portion of the time limitations set forth in sections 14-152 and 14-153 herein. A public hearing shall be scheduled for the next available city commission meeting, not to exceed 45 days from the date of appeal, whereupon the city commission shall, by resolution, ratify the action of the planning, building and zoning director or shall reinstate all or part of the reservation of development credits for a time certain not to exceed six months, except as provided below, subject to appropriate terms and conditions, and subject to

compliance with subsequent intervals of the time limitations set forth in sections 14-152 and 14-153.

(b) If work has been halted by court injunction or governmental action, the city commission may reinstate all or part of the credits for a time certain not to exceed one year upon a strong evidentiary showing by the appellant that matters giving rise to the injunction or governmental action have a very high probability of being resolved within six months of the date of the appellant's city commission public hearing.

(c) Review of actions of the city commission in reinstating a reservation of development credits, reinstating a reservation of development credits subject to terms and conditions, reinstating a portion of a reservation of development credits whether or not subject to terms and conditions, or denying reinstatement of a reservation of development credits shall be by filing a notice of appeal with the circuit court in accordance with the procedure and within the time provided by the Florida Rules of Appellate Procedure for the review of rulings of any commission or board.
(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-157. Southeast Overtown/Park West: Reservation of development credit.

(a) Application for reservation of development credits for net new development within the Southeast Overtown/Park West DRI area may be made after zoning approval of a project and the furnishing of a notice of intent to apply for development credit to the executive director of the Southeast Overtown/Park West Community Redevelopment Agency, with the payment of Administration and Master Plan Recovery fees. Applicants shall only apply for reservation of development credits for those portions or phases of their net new development anticipated to be under construction within 24 months from the date of zoning approval. Subsequent phases may receive a reservation only after the building permit has been issued for the prior phase. All applicable fees, including administration, master plan recover, air quality, and transportation, shall be paid prior to obtaining a building permit. Development credits shall be issued upon payment of all applicable fees. Reservation and issuance of development credits are further subject to adherence to the following time limitations:

(1) Within 12 months from the reservation of development credits, the applicant must demonstrate to the planning director that construction drawings for those portions of net new development for which a reservation of development credits has been issued are in progress and are likely to be completed within the succeeding six months.

(2) Within 24 months of a reservation of development credits the applicant must pay all applicable fees, obtaining development credits, and obtain a building permit for the development for which the credit was issued.

(3) Within 24 months of the issuance of a building permit, the applicant must demonstrate to the planning director that the building permit has been obtained and that work has commenced on the net new development for which development credits have been issued.

(4) Application for modifications to approved plans within the aforementioned timeframes shall toll required timeframes. The date of zoning approval of a modification shall then be considered as the new date of reservation of development credits or issuance of development credits as the case may be.

(b) It shall be the responsibility of the holder of a reservation of development credits or development credits to submit the required information in writing to the planning director and obtain the necessary permits on or before the expiration date of each of the above-described intervals. At or after any of the above-described intervals the planning director may rescind the reservation of development credits or obtained development credits for failure to comply with the time limitations. Notice of intent to rescind a reservation for development credits shall be made, in writing, by the planning director, stating reasons for the rescission. The credit holder may present

additional facts, information or data in support of his/her position prior to the rendering of a final decision by the planning director, which shall be made in writing within 30 days of the date of transmission of the planning zoning director's written notification of reservation of development credit or development credit rescission. Development credits rescinded pursuant to this paragraph shall be held in reserve by the planning and zoning department pending the outcome of an appeal pursuant to section 14-162.
(Ord. No. 13406, § 3, 9-26-13; Ord. No. 13676, § 2, 4-27-17)

Sec. 14-158. Reserved.

Sec. 14-159. Southeast Overtown/Park West: Time limits on development credit reservation after building permit issued.

Development credits will remain in effect as long as the building permit remains in effect in accord with the Florida Building Code. If construction has commenced, development credits will remain in effect in perpetuity unless the construction site is abandoned and any constructed improvements are condemned or demolished; in which case the planning director may rescind the development credits. Notice of intent to rescind development credits shall be made, in writing, by the planning director, stating reasons for the rescission. The credit holder may present additional facts, information or data in support of his/her position prior to the rendering of a final decision by the planning director, which shall be made in writing within 30 days of the date of transmission of the planning zoning director's written notification of reservation of development credit or development credit rescission. Development credits rescinded pursuant to this paragraph shall be held in reserve by the planning and zoning department pending the outcome of an appeal pursuant to section 14-162.
(Ord. No. 13406, § 3, 9-26-13; Ord. No. 13676, § 2, 4-27-17)

Sec. 14-160. Southeast Overtown/Park West: Reallocation of development credits subsequent to expiration or rescission of reservation.

(a) If a reservation for development credits expires or is rescinded by the planning director, pursuant to this article, those development credits shall be reserved on a first come, first served basis for other new development.

(b) No sooner than six months after a reservation for development credits has expired or been rescinded pursuant to this article, a new reservation for development credits may be given to the same parcel of land, following submission of a new application and payment of all applicable fees by the owner, subject to availability of development credits.
(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-161. Southeast Overtown/Park West: Changes in plans subsequent to reservation of development credits.

Any proposed change in plans affecting the use or square footage of any net new development shall be approved by the planning director. The reservation of development credits and applicable fees shall be adjusted accordingly; provided, however, that additional development credits shall be reserved only when available according to the order of priority listed in section 14-160 above.
(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-162. Southeast Overtown/Park West: Appeals.

(a) If a reservation of development credits is rescinded by the planning director pursuant to this article, the credit holder may appeal said action to the city commission by filing a notice of appeal with the city clerk, within 30 days from the date of transmission of the planning director's written notification of reservation of development credit or development credit rescission, and paying a filing fee of $500.00. The notice of appeal shall contain sufficient documentation for the city commission to make a determination

as to whether the credit holder has complied with the relevant portion of the time limitations set forth in sections 14-152 and 14-153 herein. A public hearing shall be scheduled for the next available city commission meeting, not to exceed 60 days from the date of appeal, whereupon the city commission shall, by resolution, ratify the action of the planning director or shall reinstate all or part of the reservation of development credits for a time certain not to exceed six months, except as provided below, subject to appropriate terms and conditions, and subject to compliance with subsequent intervals of the time limitations set forth in sections 14-157 and 14-159.

(b) If work has been halted by court injunction or governmental action, the city commission may reinstate all or part of the credits for a time certain not to exceed one year upon a strong evidentiary showing by the appellant that matters giving rise to the injunction or governmental action have a very high probability of being resolved within six months of the date of the appellant's city commission public hearing.

(c) Review of actions of the city commission in reinstating a reservation of development credits, reinstating a reservation of development credits subject to terms and conditions, reinstating a portion of a reservation of development credits whether or not subject to terms and conditions, or denying reinstatement of a reservation of development credits shall be by filing a notice of appeal with the circuit court in accordance with the procedure and within the time provided by the Florida Rules of Appellate Procedure for the review of rulings of any commission or board.
(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-163. Southeast Overtown/Park West: Notice to Southeast Overtown/ Park West Community Redevelopment Agency.

A courtesy copy of all notices required under sections 14-159 through 14-162 shall be transmitted to the executive director of the Southeast Overtown/Park West Community Redevelopment Agency.
(Ord. No. 13406, § 3, 9-26-13)

Secs. 14-164—14-180. Reserved.

DIVISION 3. DEVELOPMENT REGULATIONS

Sec. 14-181. Downtown: Environmental regulations.

All development shall adhere to all terms and conditions in the development orders and in addition:

(1) During construction, all downtown development with areas of exposed soil over 5,000 square feet shall have said exposed areas sprayed with water as frequently as necessary to prevent airborne dust. Other methods of controlling airborne dust may be substituted if approved by DRER. If any area of exposed soil over 5,000 square feet is intended to be undisturbed by construction for more than 90 days, such area shall be sodded or seeded and mulched to provide grass cover.

(2) During construction, Section 4611.1 of the South Florida Building Code shall be enforced by requiring all stormwater runoff to be retained on site, or by placing temporary screens, berms, and/or riprap around the perimeter of the construction site to filter all stormwater runoff until the permanent stormwater retention system is operative. Such retention or filtration systems shall be approved by DRER and the city department of resilience and public works.

(3) All stormwater drainage systems shall be approved by DRER pursuant to the South Florida Water Management District rules; and shall be designed to retain on site at least the first one inch of runoff from a five-year storm event.

(4) All drainage structures, including wells, shall include pollutant-retardant devices approved by DRER pursuant to the South Florida Water Management District rules. Such pollutant-retardant devices shall

be maintained in efficient operating condition, including periodic removal of accumulated contents.

(5) Net new development shall reduce pollutants entering groundwater and/or surface waters by limiting application of pesticides and fertilizers in vegetated stormwater retention areas to once per year for preventive maintenance and to emergencies, such as uncontrolled insect infestation.

(6) Net new development shall reduce pollutants entering groundwater and/or surface waters by vacuum sweeping all parking lots of 11 or more vehicle spaces and private roadways serving the parking lots at least once per week.

(7) All development is subject to Section 24-35.1 of the Dade County Code.

(8) Prior to construction on any site, all invasive exotic plants shall be removed, specifically melaleuca, casuarina, and Brazilian pepper. Net new development shall use only those species included in the official list of recommended plant species prepared by the South Florida Regional Planning Council, as may be amended from time to time; provided, however, that additional species may be used if written approval is supplied by the executive director of the South Florida Regional Planning Council. Said official list is on file with the planning, building and zoning department.

(Ord. No. 13406, § 3, 9-26-13; Ord. No. 13792, § 1, 10-11-18)

Sec. 14-182. Downtown: Transportation control measures.

(a) *General requirements.* The following requirements shall apply to all downtown development except renovation of existing structures or land improvements; change of use or intensity of use of an existing structure or land improvement; when such change generates a net increase of less than 50 peak-hour vehicle trips over the vehicle trip generation of the previous use or intensity; new structures or additions to existing structures of less than 10,000 square feet; excavation; demolition; or deposit of fill. Development not excluded above shall:

(1) Actively encourage all employees within the development to participate in carpools or vanpools by establishing or participating in an information and referral program, and shall maintain a current list (updated annually) of all employees interested in participating in a carpool or vanpool. At least once each calendar year, carpool, vanpool, and ridesharing information packages and questionnaires shall be obtained from the Florida department of transportation through its regional commuter assistance program for the South Florida region and distributed to all tenants and employees.

(2) Establish and maintain current local and regional mass transit route and schedule information in locations throughout the development that are visible and accessible to existing and potential transit users. Mass transit route and schedule information shall be displayed in a prominent public area of the building such as the lobby or near pedestrian access points to parking garages or lots. At no less than six-month intervals, route and schedule information maintained on the premises shall be verified as to current status and replaced if obsolete.

(3) Encourage mass transit use by the provision of bus shelters, bus turnout lanes, or other physical improvements intended to improve the safety, comfort, or convenience of transit ridership, where such transit amenities are needed as determined by the planning, building and zoning director.

(4) Encourage mass transit use through the purchase of transit passes from Miami-Dade County, and making them available to building tenants and/or employees at a discounted price or at no charge, or in lieu of employer-subsidized employee parking.

(5) Reduce peak-hour trip generation through scheduling, where practical, staggered work hours for employees.

(b) *Parking requirements.* The following parking requirements shall apply to all downtown development except: renovation of existing structures or land improvements; change in use or intensity of use of an existing structure or land improvement; when such change generates a net increase of less than 50 peak-hour vehicle trips over the vehicle trip generation of the previous use or intensity; new structures or additions to existing structures of less than 10,000 square feet; excavation; demolition; or deposit of fill. Development not excluded above shall comply as follows:

(1) Parking shall be provided by the development in accordance with the applicable provisions of the city's zoning regulations, but in no case shall parking be provided in excess of the following amounts:

MAXIMUM PARKING SPACES PERMITTED BY TYPE OF USE

Use	*Maximum Parking*
Residential	2 spaces per dwelling unit
Retail	1 space per 300 sq. ft. GFA
Hotel/motel	1.5 spaces per room
Restaurant	1 space per 100 sq. ft. GFA
Office/other	1 space per 600 sq. ft. GFA in the CBD-1 zoning district and 1 space per 400 sq. ft. GFA elsewhere

(2) Of the total parking provided, the number of spaces that can be placed on-site may be constrained by the city due to street capacity and/or air quality requirements.

(3) The minimum number of required parking spaces shall be in accordance with the applicable provisions of the city's zoning regulations. For office uses only, there shall be no minimum number of spaces required to be on site; all parking may be located off site in a location approved by the city. If less than the minimum number of required spaces is permitted to be located on site, then:

a. The developer shall execute a permanent agreement to purchase transit passes in lieu of providing parking spaces, in an amount equal to two transit passes per each required parking space that is not provided;

b. The developer shall make a one-time payment equal to the current "gap-financing" cost for each space as established by the city's department of off-street parking and enter into an agreement with the department of off-street parking to lease the spaces once built; or

c. The developer shall own or lease the off-site spaces elsewhere in a location approved by the city. "Elsewhere" is defined as being one or a combination of the following locations:

1. A peripheral downtown location near expressway and/or arterial street entrance to downtown and within a maximum of 600 feet walking distance to a Metrorail or Metromover station or, if more than 600 feet walking distance from a Metrorail or Metromover station, connected by a parking shuttle system approved by the city.

2. Any outlying location within a maximum of 1,200 feet walking distance to a Metrorail station or a designated Metrobus park/ride facility approved by the city.

(c) *Air quality requirements.* The following air quality requirements shall apply to all downtown development except: renovation of existing structures or land improvements; change in use or intensity of use of an existing structure or land improvement when such change generates a net increase of less than 50 peak-hour vehicle trips over the vehicle trip generation of the previous use or intensity; new structures or additions to existing structures of less than

10,000 square feet; excavation; demolition; or deposit of fill. Development not excluded above shall comply as follows:

Air quality modeling for carbon monoxide (CO) concentrations may be required by the city at any intersection projected to operate at level of service (LOS) E or F. If required, the CO modeling shall be conducted according to DRER standards and submitted in a report that includes an assessment of transportation control measures required to maintain CO concentrations below 80 percent of the State of Florida's eight-hour standard of ten micrograms per cubic meter, during the year following occupancy of the development. The development shall be responsible for its fair share of any transportation improvement deemed by the city to be necessary to protect against future violations of the CO standard.

(d) *Large scale development requirements.* In addition to the requirements of paragraphs (a) through (c) above, any downtown development that requires a major use special permit pursuant to the provisions of the city's zoning regulations shall comply with these additional requirements:

(1) Submit a transportation control measures (TCM) plan as a part of the application for a major use special permit. Such TCM plan shall outline and describe the transportation control measures proposed to be undertaken by the development in order to achieve a reduction of at least ten percent in peak hour vehicle trips. The plan shall describe a reporting procedure that will measure actual performance against the TCM plan's objectives.

(2) Each year following issuance of a certificate of occupancy, the development shall submit an annual report describing actual performance against the TCM plan objectives, an evaluation of such performance, and recommendations for modification to the TCM plan, if any.

(e) *Special provisions.*

(1) For special uses possessing unique characteristics that affect parking requirements, such as convention center, sports arena, stadium, auditorium, museum, theater, major league ballpark, and the like, parking requirements shall be calculated for each such use based on its special characteristics, hours and days of peak operation, location with respect to Metrorail, Metromover, and Metrobus services, peripheral and other existing parking, and similar unique characteristics that affect the quantity and location of necessary parking.

(2) Parking as a principal permitted use may be permitted in such quantities and locations as determined by the city to be necessary to satisfy a measurable deficiency between the need for, and supply of, parking spaces that cannot be reduced through rigorous application and enforcement of the transportation control measures contained herein.

(Ord. No. 13406, § 3, 9-26-13)

Sec. 14-183. Southeast Overtown/Park West: Environmental regulations.

All development shall adhere to all terms and conditions in the development orders and in addition:

(1) During construction, all Southeast Overtown/Park West development with areas of exposed soil over 5,000 square feet shall have said exposed areas sprayed with water as frequently as necessary to prevent airborne dust. Other methods of controlling airborne dust may be substituted if approved by DRER. If any area of exposed soil over 5,000 square feet is intended to be undisturbed by construction for more than 90 days, such area shall be sodded or seeded and mulched to provide grass cover.

(2) During construction, Section 3307.1 of the Florida Building Code shall be enforced by requiring all stormwater runoff to be retained on site, or by placing temporary screens, berms, or riprap around the perimeter of the construction site to filter all stormwater runoff until

the permanent stormwater retention system is operative. Such retention or filtration systems shall be approved by DERM and the city department of resilience and public works.

(3) All stormwater drainage systems shall be approved by DRER pursuant to Miami-Dade County and the South Florida Water Management District rules; and shall be designed to retain on site at least the first one inch of runoff from a five-year storm event.

(4) All drainage structures, including wells, shall include pollutant-retardant devices approved by DRER pursuant to Chapter 24, Miami-Dade County and the applicable South Florida Water Management District rules. Such pollutant-retardant devices shall be maintained in efficient operating condition, including periodic removal of accumulated contents.

(5) Net new development shall reduce pollutants entering groundwater or surface waters by limiting application of pesticides and fertilizers in vegetated stormwater retention areas to once per year for preventive maintenance and to emergencies, such as uncontrolled insect infestation.

(6) Net new development shall reduce pollutants entering groundwater or surface waters by vacuum sweeping all parking lots of 11 or more vehicle spaces and private roadways serving the parking lots at least once per week.

(7) All development is subject to Section 24-18 of the Miami-Dade County Code.

(8) Prior to construction on any site, all invasive exotic plants shall be removed, specifically melaleuca, casuarina, and Brazilian pepper. Net new development shall use only those species included in the official list of recommended plant species prepared by DRER, as may be amended from time to time; provided, however, that additional species may be used if written approval is supplied by DRER. Said official list is on file with the planning, building and zoning departments.

(9) All fill material utilized for excavation activities or from offsite sources shall meet the clean soils criteria of the Florida Department of Environmental Protection (FDEP), and DRER, as applicable.

(Ord. No. 13406, § 3, 9-26-13; Ord. No. 13792, § 1, 10-11-18)

Sec. 14-184. Southeast Overtown/Park West: Transportation control measures.

(a) *General requirements.* The following requirements shall apply to all Southeast Overtown/Park West development except renovation of existing structures or land improvements; change of use or intensity of use of an existing structure or land improvement; when such change generates a net increase of less than 50 peak-hour vehicle trips over the vehicle trip generation of the previous use or intensity; new structures or additions to existing structures of less than 10,000 square feet; excavation; demolition; or deposit of fill. Development not excluded above shall:

(1) Actively encourage all employees within the development to participate in carpools, vanpools, bicycle sharing, car sharing and the use of hybrid vehicles by establishing or participating in an information and referral program, installing electric vehicle charging stations within the development's parking facilities, and maintain a current list (updated annually) of all employees interested in participating in such programs. At least once each calendar year, ridesharing information packages and questionnaires shall be obtained from the Florida department of transportation through its regional commuter assistance program for the South Florida region and distributed to all tenants and employees.

(2) Establish and maintain current local and regional mass transit route and schedule information as well wayfinding signage for access to bicycle lanes and greenways

in locations throughout the development that are visible and accessible to existing and potential transit users. Mass transit route and schedule information shall be displayed in a prominent public area of the building such as the lobby or near pedestrian access points to parking garages or lots. At no less than six-month intervals, route and schedule information maintained on the premises shall be verified as to current status and replaced if obsolete.

(3) Provide site plan amenities such as improved pedestrian access to transit stops, and short term bicycle parking near building entrance and long term bicycle storage facilities. Encourage mass transit use by the provision of bus shelters, bus turnout lanes, or other physical improvements intended to improve the safety, comfort, or convenience of transit ridership, where such transit amenities are needed as determined by the planning, building and zoning director.

(4) Encourage mass transit use through the purchase of transit passes from Miami-Dade County, and making them available to building tenants or employees at a discounted price or at no charge, or in lieu of employer-subsidized employee parking.

(5) Reduce peak-hour trip generation through scheduling, where practical, staggered work hours for employees, flexible work hours, and telecommuting programs.

(6) Provide public access to planned and existing greenways adjacent to property, and provide wayfinding to reach the greenway from the street.

(b) *Parking requirements.* The following parking requirements shall apply to all Southeast Overtown/Park West development except: renovation of existing structures or land improvements; change in use or intensity of use of an existing structure or land improvement; when such change generates a net increase of less than 50 peak-hour vehicle trips over the vehicle trip generation of the previous use or intensity; new structures or additions to existing structures of less than 10,000 square feet; excavation; demolition; or deposit of fill. Development not excluded above shall comply as follows:

(1) Parking shall be provided by the development in accordance with the applicable provisions of the city's zoning regulations, but in no case shall parking be provided in excess of the following amounts:

MAXIMUM PARKING SPACES PERMITTED BY TYPE OF USE

Use	*Maximum Parking*
Residential	1.5 spaces per dwelling unit
Retail	1 space per 600 sq. ft. GFA
Hotel/motel	1.5 spaces per room
Restaurant	1 space per 600 sq. ft. GFA
Office/other	1 space per 900 sq. ft. GFA east of the FEC
	1 space per 600 sq. ft. GFA west of the FEC

(2) Of the total parking provided, the number of spaces that can be placed on-site may be constrained by the city due to street capacity or air quality requirements.

(3) The minimum number of required parking spaces shall be in accordance with the applicable provisions of the city's zoning regulations. For office uses only, there shall be no minimum number of spaces required to be on site; all parking may be located off site in a location approved by the city. If less than the minimum number of required spaces is permitted to be located on site, then:

a. The developer shall execute a permanent agreement to purchase transit passes in lieu of providing parking spaces, in an amount equal to two transit passes per each required parking space that is not provided;

b. The developer shall make a one-time payment equal to the current "gap-financing" cost for each space as established by the city's department of off-street parking and enter

into an agreement with the department of off-street parking to lease the spaces once built; or

c. The developer shall own or lease the off-site spaces elsewhere in a location approved by the city. "Elsewhere" is defined as being one or a combination of the following locations:

1. A peripheral downtown location near expressway or arterial street entrance to downtown and within a maximum of 600 feet walking distance to a Metrorail or Metromover station or, if more than 600 feet walking distance from a Metrorail or Metromover station, connected by a parking shuttle system approved by the city.

2. Any outlying location within a maximum of 1,200 feet walking distance to a Metrorail station or a designated Metrobus park/ride facility approved by the city.

(c) *Air quality requirements.* The following air quality requirements shall apply to all Southeast Overtown/Park West development except: renovation of existing structures or land improvements; change in use or intensity of use of an existing structure or land improvement when such change generates a net increase of less than 50 peak-hour vehicle trips over the vehicle trip generation of the previous use or intensity; new structures or additions to existing structures of less than 10,000 square feet; excavation; demolition; or deposit of fill. Development not excluded above shall comply as follows:

Air quality modeling for carbon monoxide (CO) concentrations may be required by the city at any intersection projected to operate at level of service (LOS) E or F. If required, the CO modeling shall be conducted according to DRER standards and submitted in a report that includes an assessment of transportation control measures required to maintain CO concentrations below 80 percent of the State of Florida's eight-hour standard of ten micrograms per cubic meter, during the year following occupancy of the development. The development shall be responsible for its fair share of any transportation improvement deemed by the city to be necessary to protect against future violations of the CO standard.

(d) *Large scale development requirements.* In addition to the requirements of paragraphs (a) through (c) above, any development that requires a major use special permit pursuant to the provisions of the city's zoning regulations shall comply with these additional requirements:

(1) Submit a transportation control measures (TCM) plan as a part of the application for a major use special permit. Such TCM plan shall outline and describe the transportation control measures proposed to be undertaken by the development in order to achieve a reduction of at least ten percent in peak hour vehicle trips. The plan shall describe a reporting procedure that will measure actual performance against the TCM plan's objectives.

(2) Each year following issuance of a certificate of occupancy, the development shall submit an annual report describing actual performance against the TCM plan objectives, an evaluation of such performance, and recommendations for modification to the TCM plan, if any.

(e) *Special provisions.*

(1) For special uses possessing unique characteristics that affect parking requirements, such as convention center, sports arena, stadium, auditorium, museum, theater, major league ballpark, and the like, parking requirements shall be calculated for each such use based on its special characteristics, hours and days of peak operation, location with respect to Metrorail, Metromover, and Metrobus services, peripheral and other existing parking, and similar unique characteristics that affect the quantity and location of necessary parking.

(2) Parking as a principal permitted use may be permitted in such quantities and locations as determined by the city to be necessary to satisfy a measurable deficiency between the need for, and supply of, parking spaces that cannot be reduced through rigorous application and enforcement of the transportation control measures contained herein.

(Ord. No. 13406, § 3, 9-26-13)

Secs. 14-185—14-210. Reserved.

DIVISION 4. ENFORCEMENT

Sec. 14-211. Penalty; procedures.

A violation of this article shall be prosecuted in the same manner as misdemeanors are prosecuted and upon conviction the violator shall be punishable according to law; however, in addition to, or in lieu of any criminal prosecution, the city shall have the power to sue in civil court and to enforce the provisions of this article before its code enforcement board. Further, the planning, building and zoning director, zoning administrator or building official are hereby empowered to temporarily revoke any building permit or certificate of occupancy for development evidencing violation of this article pending a rescission determination by the planning, building and zoning director.

(Ord. No. 13406, § 3, 9-26-13)

Secs. 14-212—14-250. Reserved.

ARTICLE V. RESERVED*

Secs. 14-251—14-311. Reserved.

***Editor's note—**Ord. No. 13252, § 1, adopted February 10, 2011, repealed the former article V, divisions 1—4 in its entirety, which pertained to the Southeast Overtown/Park West Redevelopment District and Community Redevelopment Agency and derived from the Code of 1980, §§ 52.5-1—52.5-4, 52.5-21—52.5-28; Ord. No. 11248, §§ 1—12, adopted April 27, 1995; Ord. No. 11561, § 2, adopted October 28, 1997; Ord. No. 11736, § 2, adopted December 8, 1998; Ord. No. 12247, § 3, adopted June 27, 2002, and Ord. No. 12623, § 8, adopted December 9, 2004.

Chapter 15

RESERVED

Chapter 16

ELECTIONS*

Article I. In General

Sec. 16-1. Proceedings of city commission—Use of registration records in city elections.
Sec. 16-2. Same—Holding of city elections; straw ballot.
Sec. 16-3. City clerk to conduct all municipal elections.
Sec. 16-4. Applicability of state law.
Sec. 16-5. Absentee voting.
Sec. 16-6. Candidate qualifications; affidavit, and form thereof, required of candidates for office of commissioner or mayor; finding candidate unqualified; failure to submit affidavit; authorization for city clerk to pursue judicial declaration.
Sec. 16-7. Exemption from payment of the qualifying fee.
Sec. 16-8. Election not required for mayor or for a city commissioner for a specific district seat if only one qualifying candidate is listed on a general municipal ballot at close of qualifying period.
Secs. 16-9—16-19. Reserved.

Article II. Electronic Reporting

Sec. 16-20. Electronic reporting/penalties.
Sec. 16-21. Electronic posting.
Sec. 16-22. Technical assistance.

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*__Charter references—__Authority with respect to registration and voting, § 3(qq); initiative, § 5; referendum, § 6; conduct of elections, § 7 et seq.; recall, § 11; election when terms of four or more commissioners expire simultaneously, § 13; voting precincts, § 106.

__City Code cross references—__Election and general powers of city commission, § 2-31; placing political or other advertisements on city property or trash receptacles, § 54-7.

__County Code cross reference—__Elections, ch. 12.

__Law review references—__Note on nonresident voters, 4 Fla. L. Rev. 252; article as to validity of municipal elections in Florida, 8 Miami L.Q. 268.

__State law reference—__Florida Election Code, F.S. ch. 97 et seq.

ARTICLE I. IN GENERAL*

Sec. 16-1. Proceedings of city commission—Use of registration records in city elections.

(a) In providing for the use in any municipal election of the registration records, the city commission shall adopt a resolution which shall set forth, in addition to such other matters as the city commission may desire to have included therein, the following:

(1) The date upon which such municipal election is to be held.

(2) The purpose of such municipal election.

(3) A description of the registration books and records which pertain to election precincts wholly or partly within the city and which the city is adopting and desires to use for holding such municipal election.

(4) The days and hours thereof during which persons qualified to vote in such municipal elections, but who have not registered under the provisions of state law may register at the office of the supervisor and all permanent branch offices, as designated by the board of county commissioners of the county, which lie wholly or partly within the city.

(5) That the city clerk shall be the official representative of the city commission in all transactions with the supervisor of registration in relation to matters pertaining to the use of such registration books and records for holding such municipal election.

(b) The city commission shall cause a certified copy of such resolution to be delivered to the supervisor of registration not less than 45 days prior to the date of such municipal election.
(Code 1967, § 15-9; Code 1980, § 16-8)

*__Editor's note—__Ord. No. 13687, § 2, adopted June 8, 2017, designated the provisions of sections 16-1—16-8 as article I.

Sec. 16-2. Same—Holding of city elections; straw ballot.

(a) The city commission shall, not less than 45 days prior to the proposed date of any municipal election, adopt a resolution setting forth the following:

(1) The date upon which such election is to be held.

(2) The purpose of such election.

(3) The list of polling places in the several precincts.

(4) The names of those persons designated and assigned to serve as clerks of election and as inspectors of election; provided that the city commission may omit such names from such resolution and include them in a resolution to be adopted later in accordance with the general election laws of the state.

(5) The form of ballot to be used in such election (except absentee ballots), prepared in compliance with all statutory requirements relating to the use of mechanical voting machines.

The city commission shall further authorize and direct the city clerk to give notice of the adoption of such resolution and of the provisions thereof, by and through the publication of an appropriate advertisement in two daily newspapers of general circulation in the city at least 15 days before the day upon which such municipal election is to be held. In the event that any polling place designated in the resolution shall become unavailable for use as such, the city clerk shall designate another polling place within the same precinct for holding the election and shall thereafter report his/her action at the next regular city commission meeting by filing a certificate with the mayor and city commission setting forth the details of the change and the reasons therefor.

(b) Notwithstanding any provision in the city Code to the contrary, a resolution calling for a municipal election where the ballot question at such proposed election is a "straw ballot question," namely, a question which has no binding or obligatory effect regardless of the voters' approval

or disapproval of such question, shall be adopted not less than 30 days prior to the date of such proposed election.
(Code 1967, § 15-10; Ord. No. 10148, § 1, 9-25-86; Code 1980, § 16-9; Ord. No. 11564, § 8, 10-28-97; Ord. No. 13676, § 2, 4-27-17)

Sec. 16-3. City clerk to conduct all municipal elections.

Every municipal election shall be conducted by and be under the personal supervision of the city clerk, who is hereby empowered and directed to exercise all of the powers and to perform all of the duties and functions appropriate to the conduct of such election, including the establishment, promulgation and enforcement of such rules and regulations relating to such election and the establishment, maintenance, filing and preservation of such election records as the city clerk may deem necessary.
(Code 1967, § 15-11; Code 1980, § 16-10)

Sec. 16-4. Applicability of state law.

All general laws of the state relating to elections and to the registration of persons qualified to vote therein, which are not inconsistent or in conflict with the provisions of this chapter, are hereby adopted as part of this chapter.
(Code 1967, § 15-15; Code 1980, § 16-14)

State law reference—Florida Election Code, F.S. chs. 97—106.

Sec. 16-5. Absentee voting.

The general laws of the state are hereby adopted as a means of providing for absentee voting in any authorized election in the city.
(Code 1967, § 15-16; Code 1980, § 16-15)

Sec. 16-6. Candidate qualifications; affidavit, and form thereof, required of candidates for office of commissioner or mayor; finding candidate unqualified; failure to submit affidavit; authorization for city clerk to pursue judicial declaration.

(a) A candidate for the office of mayor shall:

(1) Possess the qualifications requisite to an elector at a general state election;

(2) Have resided within the city at least one year prior to qualifying for the office;

(3) Be required to maintain an actual and real residence for the duration of his/her term of office in the city;

(4) Have been registered by the city registration books that have been prescribed by ordinance;

(5) Be a qualified elector of the city as set forth in section 4 of the Charter of the city; and

(6) Shall:

a. Pay a qualification fee in the amount of $100.00;

b. Follow the petition process in lieu of a qualification fee provided below; or

c. Pay a qualification fee in the amount of $100.00 and follow the petition process in lieu of a qualification fee provided below.

(b) A candidate for the office of commissioner shall:

(1) Possess the qualifications requisite to an elector at a general state election;

(2) Have resided, within the city for at least one year prior to qualifying;

(3) Have resided within the district they wish to represent for at least one year prior to qualifying;

(4) Be required to maintain an actual and real residence for the duration of their term in the city and in their district;

(5) Have been registered by the city registration books that have been prescribed by ordinance;

(6) Be a qualified elector of the city as set forth in section 4 of the Charter of the city; and

(7) Shall:

a. Pay a qualification fee in the amount of $100.00;

b. Follow the petition process in lieu of a qualification fee provided below; or

c. Pay a qualification fee in the amount of $100.00 and follow the petition process in lieu of a qualification fee provided below.

(c) Candidates for nomination and election to the office of commissioner or mayor shall pay the required qualification fee, or follow the petition process in lieu of a qualification fee as provided for below, and file with the city clerk, on a form submitted by the clerk, a sworn statement in the following form containing the following information:

AFFIDAVIT OF CANDIDATE

CITY OF MIAMI, FLORIDA

STATE OF FLORIDA)
COUNTY OF MIAMI-DADE)
CITY OF MIAMI)

_____ (hereinafter "affiant"), being first duly sworn, deposes and says:

1. My name is _____.

2. I am offering myself as a candidate for the office of _____ of the City of Miami, Florida, in group _____.

3. I have resided in the City of Miami for a minimum of one year before qualifying if applying for mayor and one year in the district if applying for commission and I am a registered voter and a duly qualified elector of the City of Miami, Florida, presently registered to vote in precinct no. _____.

   I presently reside at the following address (must include zip code): _____
   _____,

   which is my legal address, and I have resided continually at said address from the _____ day of _____ to the _____ day of _____.

4. Immediately prior to residing at the above-stated address, I have resided at the hereinbelow listed addresses for the cited periods of time:

   (List hereinbelow all addresses at which you have resided for the past five years, as well as the length of time at each address.)

Prior Addresses	For the Period
_____	_____
_____	_____
_____	_____

5. In addition to the residence I have listed as my present address I also reside at the following listed addresses on a temporary basis as a secondary domicile or domiciles.

   _____

   _____

6. Affiant's spouse resides at the following address:

   (Must include city, state and zip code.)

   _____

7. Affiant's minor children reside at the following address:

   (Must include city, state and zip code.)

   _____

8. At the present time, affiant (is) (is not) registered to vote in any city, county or state other than as stipulated in subparagraph 3, above.

9. Name and business address of affiant's employer:

   _____

   _____

   _____

10. Affiant's occupation:

    _____

    Affiant's business telephone number(s):

    _____

11. Affiant has been employed in the above-cited capacity for the following period of time: _____.

    (Note: In the event the occupation of affiant has been for a period of less than one year, or the employment period with the same employer has been for a period of less than one year, affiant shall give the name(s) and address(es) of his/her employer(s) and occupation(s) for the period of one year prior to the date of this affidavit.)

    _____

    _____

    _____

    _____

12. Affiant represents that he/she (is) (is not) currently holding another elective or appointive office—whether city, county or municipal—the term of which or any part thereof runs concurrently with that of the office he/she seeks, and that he/she has resigned from any office from which he/she is required to resign pursuant to F.S. § 99.012 and/or the City of Miami Charter.

13. Affiant represents that, as of this date, he/she (is) (is not) seeking to qualify for a public office which is currently held by an officer who has authority to appoint, employ, promote, or otherwise supervise him/her and who has qualified as a candidate for reelection to that office.

    Note: If affiant is an employee of the City of Miami, affiant shall take a leave of absence, without pay from his/her employment during the period in which affiant has become a candidate for elective public office. This Subsection does not apply to the Commissioners and Mayor, City Manager, City Attorney, City Clerk, and Independent Auditor General. Such leave of absence shall be effective upon whichever occurs first:

    (a) Such employee receives contributions or makes expenditures, or gives her or his consent for any other person to receive contributions or make expenditures, with a view to bringing about his or her nomination or election to public office; or

    (b) At the time such employee appoints a campaign treasurer and designates a primary depository; or

    (c) At the time such employee files qualification papers and subscribes to a candidate's oath as required by law.

14. Affiant's campaign headquarters address and telephone number:

    _____

    _____

    Affiant's campaign treasurer's name:

    _____

    Affiant's campaign treasurer's address:

    _____

    _____

    Telephone nos.: (work) _____ (home) _____

15. Affiant represents that, if elected, he/she shall serve in the elective office to which he/she seeks election.

16. Following is the exact way in which affiant would like to have his/her name printed on the official ballot:

    _____

SIGNED THIS _____ day of _____, 20____, in Miami, Florida.

_____
Affiant

BEFORE ME, the undersigned authority, personally appeared _____, who, after first being duly sworn, deposes and states that _____ executed the foregoing to the best of _____ knowledge and belief.

_____
CITY CLERK,
CITY OF MIAMI, FLORIDA

(SEAL)

_____ Did take an oath

_____ Produced identification

Type of identification produced: _____

(d) In the event the commission finds that any candidate for the office of mayor or commissioner does not meet the qualifications of an elector as required under the Charter of the city or of this section, the commission may adopt a resolution so finding and directing the city clerk to refrain from placing the name of the candidate for mayor or commissioner, as the case may be, on the ensuing ballot for such office. In the event the name of the candidate has already been placed on the ballot, then the clerk shall be instructed to take the necessary action to either remove the name from the ballot or lock the key for that particular candidate in order that the electorate shall not be permitted to vote on an unqualified candidate for the office of mayor or commissioner.

Nothing herein contained shall prohibit the candidate who is found to be unqualified for the office of mayor or commissioner from appealing the decision of the commission to a court of appropriate jurisdiction.

(e) The city clerk shall not accept a qualification fee from any candidate who fails to submit to the clerk, either prior to or simultaneously with the submission of the qualification fee, the affidavit fully completed as required by subsection (b) hereof.

(f) If the city clerk finds:

(1) That the qualification papers of a candidate, on their face, are not in compliance with the applicable elections laws of the State of Florida and in compliance with the applicable municipal charter or laws or ordinances;

(2) That the qualification papers of any candidate, on their face, are incomplete or defective, and are incomplete or defective at the end of the qualifying period;

(3) That the qualification fee has not been paid in accordance with law or the candidate has not followed the petition process in lieu of a qualification fee as provided for below;

(4) That a sworn written statement is or has been filed by a qualified elector residing within the municipality challenging the qualifications of a candidate for municipal office; or

(5) That the city clerk has received written notification from the Miami-Dade County Supervisor of Elections that a candidate is not an elector of the City of Miami;

the city clerk is hereby authorized and directed to file and prosecute an appropriate action in the circuit court for Miami-Dade County, in the name of the city clerk, solely for the purpose of receiving a judicial determination with regard to the qualifications of the candidate. In the event the circuit court rules for the city clerk, the city clerk is directed to take the necessary action to remove the name from the ballot or notify the voting public of the candidate's invalidity if such removal is impracticable.

(g) Petition process in lieu of a qualification fee.

(1) A person who seeks to qualify as a candidate for mayor or commissioner and who meets the petition requirements of this section is not required to pay the city qualification fee required by this section.

(2) Notwithstanding the above, a candidate is required to pay the state election assessment as described in F.S. § 99.093, as amended.

(3) A candidate must obtain the number of signatures of voters in the geographical area represented by the office sought equal to at least one percent of the total number of registered voters of that geographical area, as shown by the

compilation by the Miami-Dade County Elections Department for the immediately preceding general election. Signatures may not be obtained until the candidate has filed the appointment of campaign treasurer and designation of campaign depository and are valid only for the qualifying period immediately following such filings.

(4) The format of the petition shall be prescribed by the city clerk and shall be used by candidates to reproduce petitions for circulation. If the candidate is running for an office that requires a district designation, the petition must indicate that designation and, if it does not, the signatures are not valid. A separate petition is required for each candidate.

(5) Each petition must be submitted to the city clerk before noon of the 28th day preceding the first day of the qualifying period for the office sought. The city clerk shall submit the petition to the Miami-Dade County Elections Department in order to verify the status of the voters in the city or district of the office sought. No later than the seventh day before the first day of the qualifying period, the city clerk shall determine whether the required number of signatures has been obtained and shall notify the candidate.

(Code 1967, § 15-18; Code 1980, § 16-17; Ord. No. 11381, § 1, 7-19-96; Ord. No. 11564, § 8, 10-28-97; Ord. No. 12363, § 2, 5-8-03; Ord. No. 12939, § 1, 8-1-07; Ord. No. 13618, § 2, 7-14-16; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13678, § 2, 5-11-17)

State law references—Candidates, campaign expenses and contesting elections, F.S. ch. 99; campaign financing, F.S. ch. 106.

Sec. 16-7. Exemption from payment of the qualifying fee.

Any person seeking to run for the office of mayor or as a city commissioner who is unable to pay the qualification fee without imposing an undue burden on personal resources or on resources otherwise available to him or her shall, upon written certification of such inability given under oath to the city clerk, be exempt from paying the qualification fee.

(Ord. No. 12363, § 2, 5-8-03)

Sec. 16-8. Election not required for mayor or for a city commissioner for a specific district seat if only one qualifying candidate is listed on a general municipal ballot at close of qualifying period.

If, at the close of the qualifying period there is only one candidate's name listed on the general municipal election ballot for mayor or for a city commissioner for a specific district seat(s), no election for mayor or for a city commissioner for a specific district seat(s) shall be required, and said candidate or candidates shall be declared elected for that particular term(s) of office as of five days after the date of the scheduled general municipal election.

(Ord. No. 12423, § 2, 9-25-03)

Editor's note—Ord. No. 12423, § 2, adopted September 25, 2003, enacted provisions intended for use as § 16-7. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as § 16-8.

Secs. 16-9—16-19. Reserved.

ARTICLE II. ELECTRONIC REPORTING

Sec. 16-20. Electronic reporting/penalties.

(a) Each person, candidate, political committee, electioneering communications organization, or other individual or organization required to file campaign treasurer's reports with the city clerk in their official capacity as filing officer for the City of Miami ("city") pursuant to F.S. ch. 106, shall file such reports by means of the city's electronic filing system beginning with the campaign treasurer's report due on August 10, 2017.

(1) Any failure to file reports on the designated due date shall subject the violator to those penalties provided in F.S. ch. 106.

(2) The city clerk shall determine the required format and related process for the campaign treasurer's reports and shall provide copies of information upon request.

(b) Definitions.

Campaign treasurer's reports shall mean the campaign finance reports required to be filed by each person, candidate, political committee, electioneering communications organization, or other individual or organization, pursuant to F.S. ch. 106.

Person, *candidate*, *political committee*, and *electioneering communications organization* shall have the meanings ascribed to such terms in F.S. ch. 106.
(Ord. No. 13687, § 2, 6-8-17)

Sec. 16-21. Electronic posting.

Campaign treasurer reports electronically filed pursuant to this article shall be posted on the city's website by the city clerk within three business days of any such report's electronic filing date.
(Ord. No. 13687, § 2, 6-8-17)

Sec. 16-22. Technical assistance.

The city clerk shall provide technical assistance to those subject to the electronic filing requirements set forth above. The city commission may, by resolution, establish a schedule of fees for such technical assistance.
(Ord. No. 13687, § 2, 6-8-17)

Chapter 17

ENVIRONMENTAL PRESERVATION*

Article I. Tree Protection In General

Sec. 17-1. Intent and purpose.
Sec. 17-2. Definitions.
Sec. 17-3. Applicability.
Sec. 17-4. Tree permit applications, requirements, review, and fees.
Sec. 17-5. Criteria and conditions for tree permits.
Sec. 17-6. Tree replacement.
Sec. 17-7. Tree protection.
Sec. 17-8. Appeals, appellate fees.
Sec. 17-9. Enforcement.
Sec. 17-10. Penalties, remedies cumulative.
Sec. 17-11. Exemptions.
Secs. 17-12—17-25. Reserved.

Article II. Environmental Preservation Districts

Sec. 17-26. Definitions.
Sec. 17-27. Intent of article.
Sec. 17-28. Applicability of article.
Sec. 17-29. Historic and environmental preservation board.
Sec. 17-30. Preservation officer.
Sec. 17-31. Environmental preservation districts.
Sec. 17-32. Removal of trees not located in environmental preservation districts.
Sec. 17-33. Removal of trees and development activity within environmental preservation districts.
Sec. 17-34. Criteria and conditions for tree removal.
Sec. 17-35. Tree protection and survival.
Sec. 17-36. Environmental preservation review standards for tree removal and development activity.
Sec. 17-37. Exceptions and exemptions from article requirements.
Sec. 17-38. Removal of trees from public lands.
Sec. 17-39. Public notice of applications for special certificates of approval.
Sec. 17-40. Appeals.
Sec. 17-41. Penalties, remedies cumulative.
Sec. 17-42. Civil remedies.
Sec. 17-43. Fees.
Sec. 17-44. Enforcement.
Sec. 17-45. Fine.
Sec. 17-46. Tree replacement required.
Sec. 17-47. Tree replacement for trees removed without a permit.
Sec. 17-48. Withholding of a new building permit.
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Sec. 17-50. Remedies cumulative.
Secs. 17-51—17-70. Reserved.

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*__City Code cross references—__Buildings, ch. 10; landfills and waterfront improvements, ch. 29; noise regulation, ch. 36; sewers and sewage disposal, ch. 49; control of marine pollution, § 50-96 et seq.; planning and zoning, ch. 62; historic and environmental preservation board, § 62-26 et seq.

__County Code cross references—__Diseased palm trees, ch. 11D; environmental protection, ch. 24; developments in incorporated areas creating county impact, ch. 33A; authority of board of county commissioners to designate areas of critical environmental concern within the unincorporated areas of Dade County, § 33B-2.

__State law references—__Water resources, F.S. ch. 373; pollutant discharge prevention and control, F.S. ch. 376; environmental land and water management, F.S. ch. 380; pollution of waters, F.S. ch. 387; environmental control, F.S. ch. 403.

Article III. Trees and Shrubs on Public Property

Sec. 17-71. Authority of director of public works.
Sec. 17-72. Permits—Required to prune, plant or remove from public land.
Sec. 17-73. Same—Required to break, injure, etc., in public highway or park.
Sec. 17-74. Same—Issuance; charges.
Sec. 17-75. Same—Contents.
Sec. 17-76. Placing guards during construction or repair of buildings.
Sec. 17-77. Placing injurious substances on or near roots.

ARTICLE I. TREE PROTECTION IN GENERAL*

Sec. 17-1. Intent and purpose.

The intent of this article is to protect, preserve and restore the tree canopy within the City of Miami ("city") by regulating the removal, relocation, pruning, planting and trimming of trees.

The purpose of this article is to assure that the design and construction of all development activity is executed in a manner consistent with the preservation of existing trees to the greatest extent possible.
(Ord. No. 13670, § 2, 3-23-17)

Sec. 17-2. Definitions.

For the purposes of this article, the following words and phrases shall have the meaning respectively ascribed to them by this section. Definitions for industry terms are based on the American National Standards Institute A-300 Standards for Tree Care Operations - Tree, Shrub, and other Woody Plant Management - Standard Practices (most recent edition; containing all Parts); International Society of Arboriculture Glossary of Arboricultural Terms (most recent edition); and University of Florida Institute of Food and Agricultural Science Bulletin SS-FOR-11 Forest Terminology for Multiple-Use Management.

American National Standards Institute A-300 Tree Care Standards Manual ("ANSI A-300 Standards"): A tree manual which establishes performance standards for the care and maintenance of trees, shrubs, and other woody plants. These are the industry standards for Arboriculture or Urban Forestry used by the industry and many governing agencies as the minimum standards of practice for care and maintenance of trees, shrubs, and other woody plants. These are the generally accepted industry standards for tree care practices written by the Tree Care Industry Association (TCIA) to develop consensus performance standards for trees, shrubs, and other woody plants.

Applicant: A person who is the owner, authorized agent of the owner, or lessee of a property under a written lease authorized to apply for a tree permit.

Arboriculture: The cultivation, management, and study of woody plants, especially trees.

Bark: Protective outer covering of branches and stems outside of the cambium.

Buildable area: The portion of the site exclusive of the required yard areas as defined by the zoning ordinance of the city and its successors.

Cambium: A thin layer of cells under the bark of trees that produces growth of new tissue.

Canopy: The collective branches and foliage of a crown of a tree or group of tree crowns, usually represented as canopy diameter measured across the canopy from drip line to drip line at an average canopy width.

Canopy coverage: The aerial extent of ground within the drip line of the tree, usually represented as square feet of canopy area.

Certificate of approval: A written document permitting tree removal or development activity within those areas identified and established as environmental preservation districts or scenic transportation corridors.

(1) *Standard certificate of approval.* A written document issued by the preservation officer for tree permits located within an environmental preservation district.

(2) *Special certificate of approval.* A written document issued by the historic and environmental preservation board ("HEPB") where the board must decide if a major addition, removal or alteration of trees meets the requirements of this article. This certificate will be considered by HEPB in accordance with the procedures for a special certificate of appropriateness in section 23-6.2 of this Code, as amended.

*__Editor's note—__Ord. No. 13670, § 2, adopted March 23, 2017, amended article I in its entirety to read as herein set out. Formerly, article I pertained to similar subject matter, and derived from Ord. No. 13174, § 2, adopted May 13, 2010, and Ord. No. 13274, § 2, adopted June 23, 2011.

Certified arborist: Also known as a "ISA Certified Arborist." A person who has successfully completed the testing program administered by the International Society of Arboriculture (ISA) to be an ISA Certified Arborist, with a current valid certification number. This person must be trained and knowledgeable in all aspects of arboriculture as relevant to the conditions of trees within the city.

Certified arborist report: A report issued by a certified arborist that, at a minimum, shall contain data for each existing tree in the applicable tree boundary survey as follows: species; DBH as defined herein; height; canopy spread; health condition; opinions regarding current condition; recommended tree activity, if any; and color photographs of trees which shall depict sufficient detail to support the opinion of the certified arborist.

Code compliance: The department responsible for the enforcement of the City Code, as further described in chapter 2, article X.

Code enforcement board: The code enforcement board of the city as appointed pursuant to chapter 2, article X. For purposes of this article, "code enforcement board" shall be synonymous with and have all powers of the special master. The terms may be used interchangeably.

Construction: See "Development activity."

Controlled tree species: Tree species listed in the most recent edition of the Landscape Manual or in section 24-49.9 of the Code of Miami-Dade County, Florida ("Miami-Dade County Code"), which can become invasive in native plant communities when not located in, and cultivated properly, as part of a managed landscape design.

Critical root zone: Also known as a "CRZ." The CRZ is as large or larger than the minimum recommended root area for a tree as stated in the ANSI A-300 Standards for transplanting trees, usually measured and presented as root ball diameter.

Crown: A portion of an individual tree above the main stem, consisting of live branches and foliage.

Crown cover: The percentage of a given area that is covered by the vertical projection of the crowns of trees.

Diameter at breast height ("DBH"): The diameter at breast height of a tree trunk, measured at four and one-half feet above ground level (surface grade or soil grade). In the case of multi-stemmed trees, the DBH is a calculation of the sum of the DBH of each trunk measured at four and one-half feet above ground level.

Dead tree: A tree which is not actively transporting water and nutrients from roots to leaves, and is exhibiting symptoms such as decay, brittleness, rot, non-seasonal defoliation, substantial loss of its branches, or other signs of substantial deterioration.

Department: The department of planning and zoning, which is responsible for review and issuance of tree permits.

Development activity: The carrying out of any building construction that requires issuance of a permit by the city, including without limitation building construction, additions (including but not limited to additions of carports, pools, decks, fences, driveways, and parking lots), modifications, demolition, or making any material alteration to the use or exterior appearance of any structure.

Drip line: The area defined by the outermost circumference of a tree's branches where water drips from and onto the ground.

Environmental preservation districts: Geographical areas, parcels or corridors, which have been or may be identified, are established by the city commission as significant natural or manmade attributes in need of preservation and control because of their educational, economic, ecological and environmental importance to the welfare of the general public and the city as a whole. The city's environmental preservation districts are designated in an atlas kept on file with the department of planning.

Environmentally significant feature: Natural or manmade artifacts, sites or features which possess attributes in need of preservation and control because of their economic, educational or

environmental importance to the welfare of the general public and the city as a whole. Environmentally significant features include all trees within the city and specifically designated natural, topographical or geological formations, mangrove areas, natural hammocks, unique scenic vistas or transportation corridors and rare and valuable plant material.

Exotic tree species: A plant species introduced from another country or geographic region outside its natural range, which may become naturalized or invasive, but is not native or indigenous to a region.

Fatally diseased tree: A tree that has been identified with a disease that is not curable by known industry standard pest control treatments or has visible damage from a disease and may include secondary stresses related to a disease. A fatally diseased tree may be considered a high-risk tree.

Florida grades and standards: The standards for determining the quality of nursery stock being grown, sold and/or used in landscape projects in Florida. These are based on the Grades and Standards for Nursery Plants as published by the most current edition of the Florida Department of Agriculture and Consumer Services.

Girdling: Tree abuse in the form of restriction or destruction of the vascular system within a root, stem, or branch of a tree that causes inhibition of the flow of water and nutrients, usually accomplished by removal of bark and cambium around all or most of the circumference of a tree branch or stem.

Grade: The ground level of a subject property.

Hatracking: Also known as "Topping." A form of tree abuse in the form of the reduction of tree size using heading cuts that shorten limbs or branches back to a predetermined crown limit. Hatracking involves indiscriminate cutting back of branches between nodes.

High-risk trees: A tree that is in a location where risks to persons or property exist, including trees that have an identifiable part or parts with a high potential for failing and a high potential to strike a foreseeable target resulting in significant consequences within a short timeframe. The determination of whether a tree is a high-risk tree shall be made by the department upon assessing the supporting risks.

Homestead property: A property that receives a homestead exemption as determined and listed by the Miami-Dade County Property Appraiser's Office. This exemption must be current to be applicable.

Homestead resident: A person or persons living in a residence that receive a homestead exemption as determined and listed by the Miami-Dade County Property Appraiser's Office. This exemption must be current to be applicable.

Internode/internodal: The region of a tree's stem between two successive nodes; length of a branch or stem growing between the nodes.

Intervenor: A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public. A person shall be entitled to the presumption of Intervenor status if the person owns the subject property or owns property abutting the subject property. Furthermore, a person shall be entitled to intervenor status if the person owns property within a 500-foot radius from the subject property but is not the property owner or abutting property owner and has a particular interest in the application that is different in kind and degree than the general public. Abutting shall mean to reach or touch; to touch; to touch at the end or be contiguous with; join at a border or boundary; terminate on; and includes properties across a street or alley. A person recognized by the decision-making body, including the historic and environmental preservation board and the city commission, as an intervenor may make a presentation, call and examine witnesses, conduct cross-examinations of witnesses, introduce exhibits, rebut evidence, and make final arguments in the order as decided by the chair of the body to effectuate orderly and efficient proceedings.

Landscape manual: The Miami-Dade County Landscape Manual, latest edition, which is the official landscape manual issued by Miami-Dade

County, Florida, and incorporated herein by reference. The landscape manual, as amended from time to time, is adopted by reference by the city and deemed incorporated by reference as if set forth herein. If a conflict arises between the landscape manual and this article, the latter shall prevail. The landscape manual shall be used in conjunction with section 24-49.9 of the Miami-Dade County Code and said section shall be relied on for any conflicts between the landscape manual and the Miami-Dade County Code for Prohibited Species.

Lion's tailing: A form of tree abuse in which the removal of an excessive number of inner, lateral branches from parent branches results in a tree having the majority of foliage in the outer portions of the canopy.

Main stem (or *main trunk*): The portion of a tree between ground level and the point of division into major branches.

Native tree species: An indigenous species that is normally found as part of an ecosystem. A species present in a defined area or region of the United States prior to European settlement.

Node: Slightly enlarged portion of a stem where leaves and buds arise.

Owner: Any person, entity, corporation, partnership, trust, holding company, limited liability company or any other legally recognized entity that is the legal, beneficial, or equitable owner of any interest whatsoever in the property. "Owner" shall include any purchaser, assignee, successor, or transferee of any interest whatsoever in the property regarding any provisions of this article.

Palm (or *palm tree*): Monocotyledonous plant of the Palmacea family. A type of tree that is an un-branched evergreen tree of tropical and warm regions, with a crown of very long feathered or fan-shaped leaves, and typically having old leaf scars forming a regular pattern on the trunk.

Person: As per the definition set forth in section 1-2 of this Code.

Prohibited tree species: A species of tree listed as a prohibited species in the current edition of the Landscape Manual, or in section 24-49.9 of the Miami-Dade County Code, as well as Weeping Fig Trees (Ficus benjamina).

Public right-of-way: See "Right-of-way" as defined in section 55-1 of the City Code, as amended.

Registered landscape architect: A person who holds a license to practice landscape architecture in Florida as authorized by F.S. ch. 481.

Replacement trees: Also known as "mitigation tree." Trees that are proposed to be used as replacement for trees being removed from a property.

Root: The part of a tree, usually underground, that anchors the tree to the ground and also absorbs and conducts water and nutrients to all parts of the tree.

Root pruning: The cutting of roots to limit their vertical or lateral growth, the process of pre-cutting roots behind the line of a planned excavation to prevent tearing and splintering of remaining roots, any removal of roots one inch in diameter or greater, and/or the removal of more than ten percent of a tree's root system. Root pruning of more than ten percent of a tree's root system requires a tree permit.

Scenic transportation corridor: Those roadways identified by the state or by the city commission resolution as having a unique landscape, an expansive tree canopy and/or unique landscape features that is of substantial environmental or scenic importance to residents and visitors.

Shrub: A woody, perennial plant separated from a tree by its lower mature height (generally under 20 feet), and showing the lack of a well-defined main trunk, often multi-stemmed.

Site plan: A comprehensive plan drawn to scale indicating site elevations, roadways and location of all relevant site improvements including structures, parking, other paved areas, ingress and egress drives, landscaped open space and signage.

Sound nursery practices: The practices or procedures of landscape nurseries that meet or exceed the Florida Grades and Standards.

Special master: The person(s) appointed pursuant to chapter 2, article X. For purposes of this article, the special master shall be synonymous with and have all powers of the code enforcement board. The terms may be used interchangeably.

Specimen tree: A tree that is equal to or larger than 18 inches DBH. Trees that do not qualify as specimen trees are palms, non-native Ficus species, or any non-native fruit tree cultivated as a grove tree for commercial production of fruit.

Spiking: A form of tree abuse in which there is the hammering or affixing of metal or other material into a tree to harm the tree or lower its commercial value, or any damage to the trunk of a tree caused by use of climbing spikes.

Spread: The average diameter of the crown. The average diameter of the tree canopy or crown as measured across the canopy in at least two directions from drip line to drip line of farthest reaching branches.

Stem(s): The principal axis or wood structure of a plant from which buds, shoots, foliage, and branches develop.

Tree: A woody perennial plant, including palms, usually having only one dominant trunk and a well-defined stem or stems carrying a more or less definite crown, usually having a mature height greater than 16 feet. A tree regulated under this chapter must have a minimum size of 12 feet overall height with a DBH of two inches or larger. A palm regulated under this chapter must have a minimum height of 16 feet overall with a DBH of six inches or larger.

Tree abuse: Action that damages a tree and/or parts of a tree. Generally, any tree activity beyond or against those described in the ANSI A-300 Standards. Examples of tree abuse include but are not limited to hatracking, spiking, lions tailing, tree removal (without a permit), pruning more than 25 percent of a tree canopy in one annual growing season, root pruning that destabilizes a tree, girdling, damaging and/or removing sections of bark, and damaging and/or removing sections of cambium.

Tree activity: Work that will affect a tree on a property which includes tree removal, tree pruning more than 25 percent, and root pruning more than ten percent or trimming of a root more than one inch in diameter.

Tree boundary survey: A survey such as a topographic survey that establishes property lines and corners of a parcel of land and also locates natural features such as trees and streams as well as man-made features such as buildings, fences, improvements, land contours, easements, and utilities. Tree boundary surveys shall be prepared by a professional land surveyor.

Tree permit: A permit which is required for any tree activity.

Tree protection barriers: Barriers, fences, or barricades that are placed around existing trees to provide protection during construction on a subject property. Examples are contained in the tree protection specifications and tree protection details as described in the Landscape Manual and ANSI A-300 Standards.

Tree protection bond: A monetary bond that guarantees specific trees be protected and will not be harmed by the construction project and, if harmed, the party will reimburse for the loss.

Tree protection zone ("TPZ"): An area defined by a certified arborist surrounding the trunk of a tree to protect roots and soil within at least the CRZ area. This area is necessary to protect tree health and stability. The TPZ is an area within which certain activities are prohibited or restricted, especially during construction or development activity.

Tree pruning: Also known as "Tree trimming." The selective cutting of tree parts done to remove branches or parts of branches from a tree's crown.

Tree removal: The act of cutting down, destroying, moving, relocating, or effectively destroying through damaging, any tree situated on any real property or public property within the city.

Tree value: The appraised monetary value for a tree as calculated by an ISA certified arborist who is specially trained and experienced as a tree and landscape appraiser. Appraisals shall utilize the trunk formula method within the replacement cost approach of valuation as

described in the most recent edition of the Guide for Plant Appraisal published by the International Society of Arboriculture. Tree value may be used to determine reasonable mitigation requirements for specimen trees removed without a permit and/or specimen trees effectively destroyed during construction, including trees permitted to be preserved or remain on site that are subsequently effectively destroyed, and may be used as an alternative to the replacement tree table for mitigation requirements for specimen trees being permitted for removal, as approved by the department.

Trunk: The main or central stem of a tree.

Vigor: The capacity of a tree to grow and resist stress; growing in a healthy condition.
(Ord. No. 13670, § 2, 3-23-17; Ord. No. 13697, § 2, 7-27-17; Ord. No. 13971, § 2, 2-25-21)

Sec. 17-3. Applicability.

(a) The provisions of this article shall apply to all public or private property within the city, unless expressly exempted by law.

(b) All tree activity as defined in this chapter require a tree permit as described herein.

(c) Any tree removal on a public right-of-way or on property owned by the city shall require a permit from the resilience and public works department, unless it is deemed in writing by the director of the department or his/her designee that such permit will be an undue burden for the city and is not in the best interest of the public health, safety and welfare of the city.

(d) All trees located within environmental preservation districts shall also be subject to the requirements of article 2 of this chapter.

(e) All trees located within natural forest communities shall also be subject to the requirements of article 3 of chapter 24 of the Miami-Dade County Code, as amended.

(f) All mangrove trees and any tree located upon land which is wetlands as defined in F.S. § 373.019, as amended from time to time, shall also be subject to the permitting requirements of article 2 of chapter 24 of the Miami-Dade County Code, as amended.
(Ord. No. 13670, § 2, 3-23-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 17-4. Tree permit applications, requirements, review, and fees.

(a) *Permit, when required.*

(1) No person, agent or representative thereof, directly or indirectly, shall engage in tree activity on any property described in section 17-3 of this article without first obtaining a tree permit and unless exempted by section 17-11 of this article.

(2) A tree permit is required for tree pruning of more than 25 percent of the canopy, crown, or living foliage of a tree or other pruning not in accordance with the ANSI A-300 Standards shall be allowed upon presentation of a letter to the city, to be validated by a certified arborist, with justification as to why the ANSI A-300 Standards are not applicable.

(3) Pruning of the canopy, crown or living foliage of a tree, in strict accordance with ANSI A-300 Standards shall be allowed without a permit. A certified arborist letter or other documentation may be required.

(4) Any removal of roots one inch in diameter or greater and/or the removal of more than ten percent of a tree's root system shall require a tree pruning permit. No root pruning shall be allowed beyond the aforementioned limits anywhere in the city without a tree pruning permit except for the pruning of roots when essential for any repairs or improvements performed by or for the department of resilience and public works or capital improvements.

(5) No building permit for any work that has the potential to affect trees, including new construction, additions, carports, pools, decks, fences, driveways, parking lots, tennis courts, demolition, or similar

work, shall be issued by the building department unless the zoning department has determined that a tree permit or tree pruning permit is not required or that a valid tree permit or tree pruning permit has been issued in accordance with this article.

(b) *Application requirements.* The property owner or authorized agent shall submit a tree permit application to the department on the department's tree permit application form. A tree permit application shall include those supporting documents and plans as required by the department to provide adequate description and information to verify the intended tree activity, site conditions, proposed construction and work specifications in order to issue a tree permit.

(c) *Plan requirements.* Plans submitted with a tree permit application shall comply with the following:

(1) Commercial properties. Plans for a tree permit in conjunction with new construction, including but not limited to, demolition, additions, pools and decks shall include the following:

a. A tree boundary survey, drawn to scale, identifying the tree species, location, and listing the height, spread and diameter of all existing trees. The tree boundary survey shall illustrate the location of all existing structures, the location of any overhead and/or underground utilities and the right-of-way limits, edges of pavement, including all trees within the right-of-way. This survey shall be prepared by a professional land surveyor, licensed in the state.

b. A tree disposition plan drawn to scale identifying and listing all existing trees and specifying the condition of each tree, the TPZ radius and whether said trees are to remain, to be removed and/or to be relocated. The tree disposition plan shall also contain the value of specimen trees that are listed to remain and/or to be relocated. The valuation of trees shall be appraised using the Council of Tree and Landscape Appraisers Guide for Plant Appraisal, latest edition. The tree disposition plan shall superimpose all proposed new construction, the new locations of existing trees to be relocated on site over the tree survey plan information, and an accurate depiction of the CRZ and canopy of the trees to remain and/or be relocated. For applications involving the construction of a new building(s), the tree disposition plan shall be prepared by and bear the seal of a landscape architect currently licensed in the state, or by persons authorized by F.S. ch. 481, as amended, to prepare landscape plans or drawings.

c. A tree protection plan depicting all trees to remain and/or be relocated on site with a depiction of the tree's TPZ.

d. When applicable, an assessment on all existing trees with tree specifications. For trees and/or palms proposed for relocation, tree relocation specifications in accordance with ANSI A300 Standards shall be provided to the department. Additional information such as the TPZ, CRZ, tree protection and/or tree pruning recommendations may be required for trees to remain and/or be relocated. The assessment shall be prepared by an ISA Certified Arborist.

(2) Single-family or duplex properties. Plans for a tree permit in conjunction with new construction, including but not limited to demolition, additions, pools, and decks shall include the following:

a. A site plan drawn to scale, or existing property survey prepared by the owner or the owner's representative, identifying the location of the tree, the species and listing the height, spread and diameter of all

existing trees. Said site plan may be limited to the immediate area of the proposed work.

b. A tree disposition plan drawn to scale, prepared by the owner or the owner's representative, or such plan incorporated onto an existing property survey, listing all existing trees and specifying the condition of each tree and whether said trees are to remain, to be removed and/or to be relocated. This plan shall also illustrate the location of all existing structures and/or all proposed new construction, the location of any overhead and/or underground utilities and the new locations of existing trees to be relocated on site.

c. When applicable, an assessment on all existing trees with tree specifications. For trees and/or palms proposed for relocation, tree relocation specifications in accordance with ANSI A300 Standards shall be provided to the department. Additional information such as the TPZ, CRZ, tree protection and/or tree pruning recommendations may be required for trees to remain and/or be relocated. The assessment shall be prepared by an ISA Certified Arborist.

(3) Plans for a tree permit unrelated to construction shall be drawn to scale using a site plan or existing property survey prepared by the owner or owner's authorized representative.

(4) All applications shall have a tree replacement plan/landscape plan drawn to scale that illustrates all proposed new construction, new locations of relocated trees, and new replacement tree locations that complies with the requirements of section 17-6 of this Code, entitled "Tree replacement." For applications involving the construction of a new building(s), the tree replacement plan shall be prepared by and bear the seal of a landscape architect currently licensed in the state, or by persons authorized by F.S. ch. 481, as amended, to prepare landscape plans or drawings. Tree replacement plan/landscape plan submitted for a one-family or two-family dwellings (homestead property) may be in the form of a site plan drawn to scale prepared by the owner or the owner's representative.

(5) Anytime construction or development is to be undertaken, a tree protection bond equal to the value of the specimen tree(s) to remain and/or to be relocated shall be posted, except for properties which have homestead exemption, pursuant to F.S. § 196.075, and show proof thereof. The bond shall remain in effect for one year after the final certificate of occupancy is issued. The city manager, after recommendation by the department and approval as to legal form by the office of the city attorney, may accept a covenant or other equivalent alternative to the tree protection bond requirement for construction or development of affordable housing projects which have been procured and/or funded by the city. All applicants requesting a covenant in lieu of a tree protection bond of an affordable housing project shall be bound by the terms of the covenant and shall record said covenant in the public records of Miami-Dade County after final acceptance and execution by the city.

(d) *Review of application.* Upon receipt of a completed tree permit application, the department shall review said application for compliance with the regulations as set forth in this article. Such review may include a field inspection of the site and referral of the application to other departments or agencies as necessary. The department shall take a reasonable amount of time to review and respond to applicants regarding tree permit applications, generally completing the initial review within 15 business days and thereafter providing the intended decision notice upon final approval the tree permit application.

(e) *Notice.* Within 48 hours of issuing the intended decision for a tree permit, the department shall notify the applicant and post a notice of the intended decision on or adjacent to the subject property in a location where it is visible to the general public. The posting shall provide a general description and location of the proposed tree activity contained in the tree permit. The intended decision shall also be sent to the homeowners' associations registered with the city in that area.

(f) *Issuance of permit.* If no appeal, in accordance with section 17-8 of this article, is received within ten calendar days of the issuance of the intended decision, the tree permit shall be issued. The property owner shall ensure that the tree permit is displayed until the authorized work is completed.

(g) *Fees.* Fees shall be as established pursuant to section 10-4 of this Code, as amended, "Building permit fee schedule." Applications from government agencies for tree removals in areas dedicated to public use may, at the discretion of the city commission, be exempted from application fees and permit fees by resolution.

(h) *Final inspection.* No later than six months following the completion of the authorized work, the applicant shall schedule a final inspection with the department for verification and acceptance of the final authorized work.
(Ord. No. 13670, § 2, 3-23-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13873, § 2, 11-21-19; Ord. No. 14138, § 7, 2-9-23)

Sec. 17-5. Criteria and conditions for tree permits.

(a) *Criteria for tree permits.* In determining whether a tree permit should be issued, the department will consider the following criteria:

(1) Whether the tree is located in the buildable area or yard area where a structure or improvement may be placed and the tree unreasonably restricts the permitted use of the property. Trees located in

the property frontage (within the 15-foot setback), are not considered located within the buildable area or yard. Ingress and egress to garages are not considered buildable or yard areas. Trees on a public right-of-way shall not be considered for removal because they restrict ingress or egress to the garages or parking on the site, except if there is no other reasonable access to and from the structure or to the property from the public right-of-way.

(2) Whether the tree is in danger of falling; interferes with utility service determined by a trained and experienced vegetation management or line clearance employee and/or person; creates unsafe vision clearance within a sight triangle or other legal right-of way; or materially impairs the structural integrity of an existing structure.

(3) Whether the tree is deemed a high-risk tree, fatally diseased or dead. The department may require supporting documentation confirming that the tree is a high-risk tree, fatally diseased or dead and cannot be abated by other means (i.e. pruning, trimming, fruit removal, removal of hazardous limbs); photographs of the tree(s) showing the conditions, signs or symptoms of the tree; any laboratory analysis or relevant scientific literature; and any other potential supporting documentation.

(4) Whether the tree is a prohibited tree species. The department may require photographs of the tree(s) to support identification of the tree species. Prohibited tree species may be removed without the need for a replacement tree.

(5) Whether the tree creates a health hazard; interferes with native tree species; or creates a negative impact on natural land features such as rock outcroppings, sink holes or other geological, historical or archeological features.

(6) Any other relevant criteria the department deems appropriate to consider in order to make a determination.

(b) *Conditions for issuance of a tree permit.* Any or all of the following conditions may be required by the department prior to issuance of a tree permit:

(1) The applicant may be required to redesign the project to preserve specimen tree(s) or any other tree determined by the department to be of substantial value because of its species, size, age, form and/or historical significance, and to provide an alternate plan that includes the adequate preservation of said tree(s) and design alterations within the scope and intent of the initially proposed plan.

(2) Where practical, specimen trees or any other tree determined by the department to be of substantial value because of its species, size, age, form and/or historical significance, proposed for removal, shall be relocated on or off-site within the commission district of the subject property. The applicant shall adhere to acceptable tree relocation standards and specifications. The department may require a certified arborist to monitor the root pruning and tree relocation preparation efforts on site and to provide documentation certifying that the work was accomplished according to acceptable standards and specifications.

(3) If it is impractical to relocate said tree(s) either on or off-site, because of age, type or size, the applicant shall be required to replace all trees permitted to be removed in accordance with the tree replacement requirements in section 17-6.

(4) The department may require that the applicant provide a written report from a certified arborist before making any determinations in conjunction with this article. The department may also require monitoring by a certified arborist during construction and/or tree activity requiring a tree permit to assure tree preservation.

(Ord. No. 13670, § 2, 3-23-17)

Sec. 17-6. Tree replacement.

(a) *Tree replacement chart.* The tree replacement chart 17.6.1.1 below, shall be used to determine the total number and size of trees that shall be planted as replacement trees for all trees permitted to be removed. The replacement trees are based on the diameter in inches (DBH) of the trees to be removed. To determine the required replacement trees, calculate the total sum in inches of the diameters of all trees to be removed. This sum will result in one single number in inches that represents the combined total of the diameters of all trees to be removed. Diameter measurement shall be rounded up to the nearest inch.

CHART 17.6.1.1 TREE REPLACEMENT CHART

Total diameter of tree(s) to be removed (sum of inches at DBH)	*Total number of replacement trees required (where each Replacement Tree is a minimum of 2" DBH x 6' spread in Canopy x 12' in height)*	*OR*	*Total number of replacement trees required (where each Replacement Tree is a minimum of 4" DBH x 8' spread in Canopy x 16' in height)*	*Contribution to Tree Trust Fund*
2"—3"	1	or	0	$1,000.00
4"—6"	2	or	1	$2,000.00
7"—12"	4	or	2	$4,000.00
13"—18"	6	or	3	$6,000.00
19"—24"	8	or	4	$8,000.00
25"—30"	10	or	5	$10,000.00
31"—36"	12	or	6	$12,000.00
37"—42"	14	or	7	$14,000.00
43"—48"	16	or	8	$16,000.00
49"—60"	20	or	10	$20,000.00

(1) If the sum of the diameter of trees to be removed exceeds a total of 60 inches, the additional inches shall be added cumulatively from the top of the chart, down to the bottom of the chart, to calculate the number of trees required as replacement trees.

(2) Up to 30 percent of the two-inch DBH replacement tree requirement may be met by native species with a minimum height of ten feet and a minimum DBH of one and one-half inches at time of planting.

(3) The removal of a palm shall be replaced with two palms at 16 feet overall height with a six-inch DBH or one tree at 12 feet overall height with a two-inch DBH. Native palms of a 14-foot minimum overall height and minimum DBH of three inches at time of planting shall count as a required two-inch DBH replacement tree on the basis of two palms per required tree. No more than 30 percent of the required replacement trees shall be palms.

(b) *Tree species.* Tree(s) installed as replacement trees shall be of a native or non-invasive species and shall be planted at grade or ground level according to ANSI A300 best management practices manual, incorporated herein by reference. When more than ten trees are installed as replacement trees, a diversity of species shall be required as per chart 17.6.2.1 tree species diversity chart, below.

CHART 17.6.2.1 TREE SPECIES DIVERSITY

Required Number of Trees	*Required Minimum Number of Species*
11—20	2
21—50	4
51 or greater	6

(c) *Tree replacement alternatives.*

(1) Replacement trees for homestead properties may comply with the following alternatives:

a. The removal of a non-specimen/non-native tree, a controlled tree species

or a palm species shall be replaced with a native species at a one-to-one ratio upon written confirmation from the department. Replacement shall be of minimum replacement size at two inches DBH and 12 feet overall height.

b. Trees authorized for removal from lots that meet the minimum lot tree requirements, as described in Article 9 of the Miami 21 Code, shall be replaced at a one-to-one ratio, excluding specimen trees and trees effectively destroyed as a result of tree abuse.

c. Homestead properties that remove trees without a proper tree permit must comply with the standard replacement tree quantities and requirements and may not avail themselves of these alternatives.

d. Hardship exemption. A person who meet either of the following criteria may be able to apply for a waiver, full or partial, of the requirements for tree replacement on homestead property as set forth in this section and subsection 17-10(a)(2) of the City Code:

1. Persons who qualify for the senior citizen exemption pursuant to F.S. § 196.075.

2. Persons whose total household income is below 80 percent of the area median income ("AMI") of Miami-Dade County as determined by the United States Department of Housing and Urban Development ("HUD") annually.

e. Tree gifting program. The gifting of trees by the city to property owners for the purpose of increasing the city's tree canopy, whenever possible, shall be conducted by the city manager or his designee in a manner that is in accordance with applicable laws.

(2) Prohibited tree species may be removed after obtaining a tree permit. Replacement trees are not required for the removal of any prohibited tree species as listed in current edition of the Miami-Dade County Prohibited Species List, except Lofty Fig (Ficus altissima) and Banyan Tree (Ficus benghalensis) which are subject to the provisions of this article. No fees will be assessed for tree removal of prohibited tree species.

(3) The city manager or designee, after a recommendation of the department, may adjust the requirement of replacement trees for affordable housing developments that are procured by the city and/or funded by the city, regardless of the source of funds.

(d) *Tree quality.* After issuance of a tree permit, replacement trees in accordance with this section shall conform to, or exceed, the minimum standards for Florida Number One as provided in the most current edition of "Florida Grades and Standards for Nursery Plants, Part I and II," prepared by the state department of agriculture and consumer services, and incorporated herein by reference. Trees shall be planted according to sound nursery practices as illustrated in the landscape manual.

(e) *Off-site replacement trees.* If the total number of replacement trees cannot be reasonably planted on the subject property, the applicant may enter into a written agreement with the city, as approved by the department, to plant the excess replacement trees on public property within the city commission district of the subject property. If the department confirms and verifies that replacement trees cannot be planted within the city commission district of the subject property due to capacity issues, the department may approve the planting of the excess replacement trees in other parts of the city. An alternative to off-site replacement is provided in subsection (f), relating to the contribution to the tree trust fund. Applicants may do both to the extent that they should proffer to do so.

(f) *Tree trust fund.* If the department determines that an applicant is not able to comply with the planting of replacement trees

either on-site or off-site as required by this section, then the applicant shall make a financial contribution into the city's tree trust fund prior to issuance of the tree permit as follows:

(1) *Non-homestead properties.* The contribution shall be equal to $1,000.00 for each two-inch DBH tree required in accordance with Chart 17.6.1.1.

(2) *Homestead properties.* The contribution shall be equal to $500.00 for each two-inch DBH tree required in accordance with Chart 17.6.1.1 per calendar year. If additional tree permits are issued in the same calendar year, the subsequent contribution shall be equal to $1,000.00 for each two-inch DBH tree required in accordance with Chart 17.6.1.1.

(3) *Hardship exemption.* A person who meets either of the following criteria may be able to apply for a waiver, full or partial, of the requirements for the tree trust fund on homestead property as set forth in this section and subsection 17-10(a)(2) of the City Code:

a. Persons who qualify for the senior citizen exemption pursuant to F.S. § 196.075.

b. Persons whose total household income is below 80 percent of the AMI of Miami-Dade County as determined by the HUD annually.

(g) *Completion.* The replacement tree process shall be completed prior to the issuance of a certificate of occupancy or temporary certificate of occupancy. Moreover, the approval of a tree permit is contingent on any requirements set forth in subsections (a) through (f) above.

(h) *Maintenance of relocated and replacement trees.* Trees that are relocated or replaced must be maintained in a healthy growing condition and guaranteed for a period of at least one year unless otherwise authorized by the department in writing.

(Ord. No. 13670, § 2, 3-23-17; Ord. No. 13697, § 2, 7-27-17)

Sec. 17-7. Tree protection.

(a) *Tree protection during construction.* Trees shall be protected during construction activity as determined by the department through the use of protective barriers in accordance with the landscape manual. Trees that are to remain shall be clearly identified with tags. Tree protection barriers shall be maintained around the trees in accordance with the tree protection plan approved by the department.

Prior to and during demolition, development, or construction, including installation of irrigation systems or any other underground installations, protective barriers shall be placed around the perimeter of each tree's TPZ and shall remain in place in order to prevent the destruction or damaging of roots, stems or crowns of such trees. The barriers shall remain in place and intact until approved landscape operations begin; however, barriers may be removed temporarily to accommodate construction needs, provided that the manner and purpose for such temporary removal will not harm the trees. The trees shall be properly irrigated throughout the building process. Trees damaged during construction shall be subject to the provisions of section 17-9.

(b) *Other tree requirements.* Property owners shall protect the trees designated for preservation in the approved tree permit from chemical poisoning, excavation, grade changes, and any other potential tree abuse to at least the following minimum standards:

(1) *Utility line trenches.* Utility line trenches and/or directional borings shall be routed away from the trees to an area outside the TPZ to the maximum extent possible.

(2) *Parking on site during construction or development activities.* No parking, vehicle maintenance, storage of construction materials or debris, or cleaning of equipment shall take place within areas marked for preservation specifically including, but not limited to, within the TPZ of any individual trees or cluster of trees.

(Ord. No. 13670, § 2, 3-23-17)

Sec. 17-8. Appeals, appellate fees.

(a) *Appeals to the historic and environmental preservation board ("HEPB").* The property owner, the applicant, or any aggrieved party having standing under state law, may appeal to the HEPB any decision of the department on matters relating to applications for tree permits, except for tree permits granted to the departments of public works or capital improvements program, by filing a written notice of appeal to the preservation officer, as established in chapter 23 of this Code, within ten calendar days after the date of the intended decision. The notice of appeal shall include the decision appealed from and the reasons or grounds for the appeal. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. HEPB shall hear and consider all facts material to the appeal. HEPB may affirm, modify or reverse the decision of the department.

All appeals to the HEPB in accordance with this article shall be accompanied by a fee of $315.00, except for appeals initiated by abutting property owners, as defined in the Miami 21 Code, for which a tree permit is sought. Appeals by a nonprofit corporation dedicated to conservation and protection of the natural and physical environment, or appeals by a homeowners association, as defined by F.S. ch. 720, as amended, which has one member who owns property within 500 feet of the subject property shall pay a reduced appeal fee of $157.50.

(b) *Appeals to the city commission.* The property owner, the applicant, the department, or any aggrieved party having standing under state law, may appeal to the city commission any decision of the HEPB on matters relating to applications for tree permits by filing a written notice of appeal with the department of hearing boards within 15 calendar days after the date of the decision. The property owner, the applicant, or any aggrieved party having standing under state law may appeal to the city commission any decision by the department on matters relating to tree permit applications for the departments of public works or capital improvements program or to their contractors, by filing a written notice of appeal with the department of hearing boards, within 15 calendar days after the date of the intended decision. The notice of appeal shall include the decision appealed from and the reasons or grounds for the appeal. The city commission shall conduct a hearing de novo as a body of original jurisdiction, upon any appeal and/or review from an appealable decision under the terms of this article, as amended. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. New evidence or materials may be received by the city commission where such evidence or materials are pertinent to a determination of the appeal. The city commission may hear the testimony of witnesses and/or any other evidence offered by any person aggrieved or by any officer, board or agency of the city affected thereby or by any interested party having an interest in the appeal under state law and may, in conformity with this article and other applicable laws, rules and regulations, render its decision. The city commission shall hear and consider all facts material to the appeal and may affirm, modify or reverse, in whole or in part, with or without conditions, HEPB's decision, or may grant or deny the appeal of the tree permit issued to the departments of public works and capital improvements.

All appeals to the city commission in accordance with this section shall be accompanied by a fee of $525.00, plus $4.50 per mailed notice to the adjacent owners within a 500-foot radius. A certified list of said adjacent owners shall be provided with all appeals. However, no fees shall be assessed for appeals initiated by abutting property owners, as defined by the Miami 21 Code, for which a tree permit is sought. Appeals by a nonprofit corporation dedicated to conservation and protection of the natural and physical environment, or appeals by a homeowners association, as that term is defined by F.S. ch. 720, as amended, which has one member who owns property within 500 feet of the subject property shall pay a reduced appeal fee of $262.50.

The decision of the city commission shall constitute final administrative review, and no

petition for rehearing or reconsideration, shall be considered by the city. Appeals from decisions of the city commission may be made to the courts as provided by the Florida Rules of Appellate Procedure.

(c) *Notice.* All public hearings on appeals shall be noticed as follows. Notice of the time and place of the public hearing shall be mailed at least ten calendar days in advance of the hearing to the owner of the subject property and the owners of the adjacent properties. At least ten calendar days in advance of the hearing, a sign, in compliance with the provisions of section 62-19 of this Code, shall be posted on the subject property.

(d) *No tree removal permitted during an appeal.* Upon timely submission of an appeal made pursuant to the requirements of this section, new construction and removal of any trees which could be affected by the subject appeal is prohibited, pending final disposition of the appeal. A violation of this subsection will automatically result in an additional $500.00 fine payable to the city's tree trust fund for each separate violation of this section.
(Ord. No. 13670, § 2, 3-23-17; Ord. No. 13971, § 2, 2-25-21)

Sec. 17-9. Enforcement.

(a) *Jurisdiction.* Code Compliance shall have jurisdiction for the proper and effective enforcement of this article, under chapter 2, article X entitled code enforcement. Code compliance shall have the right to inspect subject properties in accordance with the approved tree permit and the provisions of this article. The department shall work with code compliance to ensure effective enforcement of this article. Upon notification by code compliance and/or the department, the building official may immediately issue a stop work order for any work that contributes to the violation of this article. A stop work order shall remain in effect until the violation has been corrected, including payment of all fines.

(b) *Individual enforcement.* Each tree removed, relocated or illegally pruned without a tree permit shall constitute a separate and distinct violation and shall be the subject of individual enforcement.
(Ord. No. 13670, § 2, 3-23-17)

Sec. 17-10. Penalties, remedies cumulative.

(a) *Fine.* Any property that violates this article shall be subject to the following penalties:

(1) Non-homestead properties. For every tree that has been the subject of tree activity without a tree permit or the subject of tree abuse, a fine of $1,000.00 per tree shall be imposed.

(2) Homestead properties. For every tree that has been the subject of tree activity without a tree permit or the subject of tree abuse, a fine of $500.00 per tree shall be imposed.

(3) Said fines are appealable to the code enforcement board pursuant to chapter 2, article X of this Code.

(4) Any property that has had a previous fine for a violation of this article within the past five years may receive a fine as stated in this section and shall also be automatically referred to the code enforcement board pursuant to chapter 2, article X of this Code and subject to enhanced penalties of $5,000.00 per day per violation pursuant to F.S. § 162.09.

(5) Nothing in this article shall prohibit the city from enforcing this article by any other means. The enforcement procedures outlined herein are cumulative to all others and shall not be deemed to be prerequisites to filing suit for the enforcement of any section of this article.

(6) Hardship exemption. A person who meets either of the following criteria may be able to apply for a waiver, full or partial, of the requirements of this section:

a. Persons who qualify for the senior citizen exemption pursuant to F.S. § 196.075.

b. Persons whose total household income is below 80 percent of the AMI of Miami-Dade County as determined by the HUD annually.

(b) *Tree replacement required.* The planting of replacement trees shall be required, in addition to the monetary fines assessed pursuant to this article. The number of trees required as replacement for each tree that was removed without a permit is provided in Chart 17.10.2.1, the tree replacement chart, for trees removed without a permit, below. If the total number of trees required as replacement trees cannot be reasonably planted on the subject property, the applicant may contribute to the city's tree trust fund in the amount provided in Chart 17.10.2.1.

CHART 17.10.2.1. TREE REPLACEMENT CHART FOR TREES REMOVED WITHOUT A PERMIT

Diameter (DBH of each tree removed without a permit	*Total number of Replacement Trees required (where each Replacement Tree is a minimum of 2" DBH x 6' spread in Canopy x 12' in height)*	*OR*	*Total number of Replacement Trees required (where each Replacement Tree is a minimum of 4" DBH x 8' spread in Canopy x 16' in height)*	*OR*	*Contribution into Tree Trust Fund*
2"—3"	2	or	1	or	$2,000.00
4"—6"	4	or	2	or	$4,000.00
7"—12"	8	or	4	or	$8,000.00
13"—18"	12	or	6	or	$12,000.00
19"—24"	16	or	8	or	$16,000.00
25"—30"	20	or	10	or	$20,000.00
31"—36"	24	or	12	or	$24,000.00
37"—42"	28	or	14	or	$28,000.00
43"—48"	32	or	16	or	$32,000.00
49"—60"	40	or	20	or	$40,000.00

If the sum of the diameter of trees to be removed exceeds a total of 60 inches, the additional inches shall be added cumulatively from the top of the chart, down to the bottom of the chart, to calculate the number of trees required as replacement trees. If the exact DBH cannot be determined for trees removed without a permit, established industry practices shall be used to determine an estimated DBH, as approved by the department.

(c) *High-risk trees.* Trees that are high-risk trees, as a result of tree abuse, are subject to the replacement tree requirements of subsection (b). High-risk trees that result from any other reason are not subject to replacement trees.

(d) *Tree viability after project completion.* If the department determines that any tree is not viable, alive and growing one year after all associated tree activity on the property is completed, the department shall require that said tree be replaced with the same tree species and size which was originally planted or relocated, as per the approved tree permit.

(e) *Withholding of a new building permit.* Any tree activity in violation of this article shall constitute grounds for withholding new building permits directly related to said tree activity until the violation has been corrected, including payment of all fines and planting of all required replacement trees as pursuant to this section.

Alternatively, in order to obtain the new building permit, the person in violation may post a payment and performance bond pursuant to F.S. § 255.05, as amended, naming the city as obligee. The bond shall be in the amount of ten percent of the construction cost or ten percent of the appraised value of the property, if no construction exists. The bond will remain in place until the violation has been corrected, pursuant to this section. In the event a bond is not feasible, the city may accept an irrevocable, unconditional letter of credit, in the previously stated percentages, naming the city as payee.

(f) *Withholding of a certificate of occupancy.* The department shall not approve the zoning inspection required for a temporary or final certificate of occupancy until all tree permits have been finalized and violations of this article have been corrected, including the payment of all fines and the planting of all replacement trees required as mitigation, pursuant to this section.

(g) *Remedies cumulative.* The remedies provided in this section shall be cumulative to all remedies provided by law and/or equity, and the election of one shall not preclude the other.

(h) *Costs and fees.* In the event the city institutes any civil action to enforce the provisions of this article in a court of competent jurisdiction, if the city succeeds as prevailing party, it shall be entitled to recover the fines assessed pursuant to the violation(s), the cost of replacement trees required as mitigation, the costs associated with the investigation and prosecution including reasonable attorney fees, and any equitable and/or legal remedies assigned by the court.
(Ord. No. 13670, § 2, 3-23-17; Ord. No. 13697, § 2, 7-27-17)

Sec. 17-11. Exemptions.

The following are exempt from the provisions of this article:

(1) Any tree growing in a botanical garden, or a licensed plant or tree nursery business.

(2) When the city manager or designee determines, in writing, that tree permitting requirements will impede private or public work to restore city order after a declared state of emergency by the city commission.

(3) The immediate removal of any tree that presents a life safety issue, by demonstrating to the city, following the review and recommendation of the department, which may require photographic proof revised and/or other supporting documentation, to help determine the condition of the tree prior to its removal.

(4) Nothing in this article shall be construed to prevent the pruning or trimming of trees where necessary for proper landscape maintenance and safety, provided that the pruning or trimming of trees is done in accordance with ANSI A-300 Tree Care Standards and the guidelines illustrated in the landscape manual.

(Ord. No. 13670, § 2, 3-23-17)

Secs. 17-12—17-25. Reserved.

ARTICLE II. ENVIRONMENTAL PRESERVATION DISTRICTS*

Sec. 17-26. Definitions.

For the purposes of this article, definitions are found in section 17-2.
(Code 1967, § 64-1; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-1; Ord. No. 13174, § 2, 5-13-10; Ord. No. 13971, § 2, 2-25-21)

Sec. 17-27. Intent of article.

The intent of this article shall be as follows:

(1) To preserve and protect trees and other significant environmental features within the city.

(2) To require that the design and construction of all development activity be executed in a manner consistent with the preservation of trees and other significant environmental features to the greatest extent possible.

(3) To provide guidelines and review procedures for controlling development activity which may alter, destroy or be detrimental to existing trees, significant environmental features and scenic areas.

(4) To provide the framework and legal mechanism for publicly identifying and preserving environmentally significant areas or sites.

(Code 1967, § 64-2; Code 1980, § 17-2; Ord. No. 13174, § 2, 5-13-10)

*__Editor's note—__Ord. No. 13174, § 2, adopted May 13, 2010, changed the title of article II from "Districts" to "Environmental preservation districts."

Sec. 17-28. Applicability of article.

The terms and provisions of this article shall apply to real property as follows:

All property located within a designated environmental preservation district, including scenic transportation corridors.

(Code 1967, § 64-3; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-3; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-29. Historic and environmental preservation board.

The historic and environmental preservation board (hereinafter referred to as HEPB or the board) as established under section 62-186 shall be responsible for maintaining a record of unique environmentally significant lands or sites within the city. The board shall serve as the quasi-judicial instrument for granting or denying certificates of approval for tree removal and development activity within those areas identified and established as environmental preservation districts under the terms and provisions of this article.

(Ord. No. 9427, § 1(A), 5-27-82; Code 1980, § 17-4; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-30. Preservation officer.

The preservation officer, as provided in section 62-191 shall be responsible to assist HEPB and to carry out the following duties:

(1) Serve as secretary to the board. The appointee shall attend all meetings of the board and maintain a record of the proceedings of the board, showing its action on each application. The appointee shall schedule and provide notification of board meetings to applicants and other department and agency representatives.

(2) Upon receipt of a proper application for tree removal or development activity within the designated environmental preservation districts, review such application, shall include a field check of the site and referral to other departments or agencies as necessary to determine any adverse effect upon the general public welfare and determine whether a standard or special certificate of approval is required.

(3) Maintain and update an official map delineating environmental preservation districts and a photographic documentation of all official designated sites.

(4) Work with other city departments and community environmental groups as required to protect and reserve the natural environment through public education and encouraging sound environmental policies.

(5) Evaluate applications for standard certificates of approval and render a decision based upon the standards and conditions for tree removal and the review standards for tree removal and development activity within environmental preservation districts.

(6) Ensure that notice of the application for a special certificate of approval is given as required in section 17-39.

(7) Prepare summary reports of all decisions on certificate of approval applications. The report shall briefly summarize the conditions and criteria for tree removal and the decision of the board or preservation officer.

(Ord. No. 9427, § 1(B), 5-27-82; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-5; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-31. Environmental preservation districts.

(a) *Designation generally; intent.* Certain geographical areas or sites may be designated as environmental preservation districts by action of the city commission, recognizing the need for preservation and protection of such areas because of their educational, economic, environmental or ecological importance to the welfare of the general public and the city. Environmental preservation districts are intended to provide for preservation and protection of trees and other significant environmental and landscape features and to encourage design and development activity which

is sensitive to the natural landscape character of the site. Sites with significant trees and landscape materials may be selected as environmental preservation districts because they provide important environmental functions for the welfare of the community, which include the following: stabilizing the soil, preventing erosion and excessive runoff; giving shade and cooling the land; providing protection from forceful winds; using their leaf surfaces to dilute gaseous pollutants and trap and filter out ash, dust and pollen in the air; absorbing a high percentage of carbon dioxide and returning oxygen to the air; alleviating noise pollution; increasing the value of the property; and adding to the natural scenic beauty of the city. All regulations and review procedures provided for environmental preservation districts are intended to protect the significant environmental features against needless destruction and to present guidelines which will lead to the continuance and enhancement of those features, while at the same time recognizing individual rights to develop property which are not prejudicial to the public interest.

(b) *Natural or manmade environmental features.* The following natural or manmade environmental features may be designated as environmental preservation districts, when one or more such features are located in a geographical area or lot:

(1) Clusters of trees with extensive tree canopy, natural hammock areas and mangrove areas. Land areas which include significant environmental features, outstanding characteristics or meet other professional criteria may be designated as environmental preservation districts by the historic and environmental preservation board.

(2) Exposed geological formations, such as natural rock outcroppings, caves, sinkholes and significant natural topography of the Coastal Atlantic Ridge.

(3) Scenic transportation corridors—those roadway areas which have a unique landscape character and an extensive tree canopy and are of substantial environmental importance to the residents of the city as well as to visitors. Dimensions and extent of scenic transportation corridors shall be determined for each specific area so designated, based upon an analysis of the corridor by qualified professional staff of the appropriate city departments. The boundaries of the scenic transportation corridors may be determined by the following:

a. The extent of roadway right-of-way area.

b. All established yard areas fronting on the transportation corridor.

c. Significant natural features, such as trees, or geological features which are not within the right-of-way or street yard area but are of value as a part of the scene.

d. Principal natural landscape or manmade elements which form the visual boundary or enclosing space of the corridor.

e. Unique botanical features, such as rare, exotic and valuable trees or plant life or examples of excellent landscape design.

(c) *Procedure for designation.*

(1) Areas or sites to be considered as environmental preservation districts may be recommended to HEPB by private individuals and organizations (after providing sufficient evidence that the resource qualifies under the provisions of this Code), all city departments, HEPB and the city commission.

(2) All areas to be considered must be evaluated by the HEPB with the appropriate recommendations conveyed to the city commission.

(3) A letter or invitation shall be delivered to the owners of all property within the boundaries of the proposed environmental preservation district, with a full explanation of the reasons for the environmental significance of the property, the effect of the proposed classification and the process by which environmental preservation

districts are officially designated. The owners will be invited to appear at a public hearing before HEPB to discuss the matter. Should there be more than 50 property owners within the proposed scenic transportation corridor, a notice published in a newspaper of general circulation at least ten days prior to the hearing, stating the aforementioned information and including the date, time, place and reason for the HEPB hearing shall be considered sufficient notice. Following the decision of HEPB, the property may then be recommended by the board to the city commission for designation as an environmental preservation district.

(4) The areas recommended by the HEPB and approved by the city commission are established as environmental preservation districts. These sites or areas are then added to the official map delineating environmental preservation districts on file with the department.

(5) A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter at the hearing(s).

(d) *Effects of designation.*

(1) Once an area or site is officially designated as an environmental preservation district, all development activity or removal of trees within that area must be reviewed by the preservation officer, and a certificate of approval, standard or special, must be granted under the provisions of section 17-32 before a tree removal permit or a building permit will be issued by the department.

(2) When the city commission approves the designation of an area or site as an environmental preservation district, the regulations and review requirements for both the existing transect and the preservation district shall apply.

(Code 1967, § 64-6; Ord. No. 8798, §§ 1, 2, 5-19-78; Ord. No. 9427, § 1(C), 5-27-82; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-6; Ord. No. 13174, § 2, 5-13-10; Ord. No. 13971, § 2, 2-25-21)

Sec. 17-32. Removal of trees not located in environmental preservation districts.

The removal of trees not located in environmental preservation districts shall follow the procedures set forth in article I entitled "Tree protection in general."

(Code 1967, § 64-7; Ord. No. 8798, §§ 1, 2, 5-19-78; Ord. No. 9427, § 1(C), 5-27-82; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-7; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-33. Removal of trees and development activity within environmental preservation districts.

(a) *Certificate of approval required.* No person, agent or representative thereof, directly or indirectly, shall cut down, destroy, move or effectively destroy through damaging any tree or other environmentally significant feature within an environmental preservation district without first obtaining a certificate of approval and must abide by tree removal as set for in article I. No person, agent or representative thereof shall commence any development activity within an area visible from a public way within an environmental preservation district without first obtaining a certificate of approval, standard and special, as hereinafter provided:

(1) Standard certificates of approval may be issued by the preservation officer, without review and approval by the historic and environmental preservation board, for the following classifications of applications:

a. Applications for development activity where all existing trees are to be preserved or relocated on site.

b. Applications for removal of trees which are diseased, injured, in danger of falling, or interfere with utility service, create unsafe vision clearance, or conflict with other ordinances or regulations.

c. Application for removal of trees which are listed in section 17-37.

d. Applications involving tree removal and additions or modifications to existing building, except where such addition exceeds 50 percent of the existing lot coverage.

e. Applications involving tree removal and site improvements for existing buildings such as but not limited to fences, walls, patios, driveways, pools, etc.

(2) Special certificates of approval require the approval of the historic and environmental preservation board, and include the following classifications of applications:

a. Applications for new development involving removal of existing trees from the site or alteration of other environmentally significant features.

b. Applications for development activity or tree removal not listed in subsection (a)(1) as eligible for a standard certificate of approval.

c. Applications referred to the historic and environmental preservation board on appeal from decisions of the preservation officer, or from the general public as described in section 17-8.

(b) *Applications.* All applications for a certificate of approval within environmental preservation districts shall be initially made to the preservation officer. Applications shall include the following and shall remain on file with the city:

(1) An official application form, including all requested information, signed by the property owner.

(2) Refer to subsection 17-4(b), application requirements, subsections (1), (2), (3), (4), and (5) for the required documentation that shall accompany applications.

(3) Signature of a planning, building and zoning official indicating compliance with applicable zoning regulations or specifying variances necessary for permitting.

(c) *Application review.* The preservation officer shall review the application, which shall include a site inspection or referral to other departments, and determine whether the type and extent of the proposed work falls within the jurisdiction of a standard certificate of approval or a special certificate of approval.

(1) Where an application is eligible for a standard certificate of approval, the preservation officer shall, within 15 days of receipt of a completed application, issue such standard certificate of approval, with or without conditions, or deny such standard certificate of approval with specified reasons therefore.

(2) Where the nature and extent of proposed work requires a special certificate of approval, the historic and environmental preservation board shall hold a public hearing and take action within 45 days of receipt of a completed application. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. The board shall either authorize a special certificate of approval, with or without conditions, or deny such special certificate of approval with specified reasons therefore.

(d) *Permits.* No permit for development activity or tree removal within an environmental preservation district shall be issued by the building department until a certificate of approval has been issued pursuant to this article. Such permit applications shall be approved by the preservation officer to verify conformance with the certificate of approval. Tree removal permits authorized by a standard certificate of approval shall be subject to the ten-day delayed effective date and posting requirements of subsection 17-4(d).

(e) *Changes in approved work.* Any change in work proposed subsequent to issuance of a certificate of approval shall be reviewed by the preservation officer to determine whether such change would materially affect the certificate of approval. If so, such change shall require a new certificate of approval pursuant to all standards and procedures in this article.

(Code 1967, § 64-8; Ord. No. 8798, §§ 1, 2, 5-19-78; Ord. No. 9427, § 1(C), (D), 5-27-82; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-8; Ord. No. 13174, § 2, 5-13-10; Ord. No. 13971, § 2, 2-25-21)

Sec. 17-34. Criteria and conditions for tree removal.

(a) *Criteria for removal.* No permit shall be issued for tree removal from the site, unless one of the following conditions exists:

(1) The tree is located in the buildable area or yard area where a structure or improvement may be placed and unreasonably restricts the permitted use of the property.

Trees located in the property frontage (within the setback) shall not be considered to be located within the building area or yard. Ingress and egress to garages are not considered the buildable area or yard.

(2) Trees on the public right-of-way shall not be considered for removal as a result of restriction to or from ingress or egress to the garages or parking on the site provided however, that if there is no other reasonable access to and from the structure or to the property from the public right-of-way, this requirement shall be waived by the director of code enforcement when it relates to private property and/or by the director of public works when it relates to the public right-of-way.

(3) The tree is diseased, injured or in danger of falling, interferes with utility service, creates unsafe vision clearance or conflicts with other provisions of this Code or other ordinances or regulations.

(4) The tree is an exotic tree species and will be replaced with a native tree species to promote good forestry practices; creates a health hazard; interferes with native tree species or creates a negative impact on natural land features such as rock outcroppings, sink holes or other geological, historical or archaeological features.

(5) It is in the general welfare of the public that the tree be removed for a reason other than set forth above.

(b) *Conditions for relocation and replacement.* As a condition to the granting of a tree removal permit, any or all of the following may be required:

(1) The applicant may be required to redesign the project to preserve specimen tree(s) or any other tree determined by the historic and environmental preservation board to be of substantial value due to its species, size, age, form and/or historical significance, provide an alternative plan, when feasible, which shall include the preservation of such tree(s) and design alterations within the scope and intent of the initially proposed plan. The applicant shall provide sufficient information, to include a tree survey drawn to scale that illustrates all existing site conditions and a tree disposition plan drawn to scale that superimposes all proposed new construction including all overhead and underground utilities and the new locations of trees over the tree survey plan information. The historic and environmental preservation board will review and analyze the aforementioned information, in order to determine the appropriate course of action.

(2) Where practical, specimen trees, or any other trees determined by the department to be of substantial value due to its species, size, age, form and/or historical significance, that is proposed for removal shall be relocated on or off-site. The applicant shall adhere to acceptable tree relocation specifications.

(3) If it is impractical to relocate and replant such trees of substantial value, either on the site or off the site, the tree may either be removed, or the applicant may be required to demonstrate a "good faith" effort to redesign the project to protect and preserve the trees. The applicant shall be required to replace all trees permitted to be removed in accordance with the tree replacement requirements contained in section 17-1.

(4) The historic and environmental preservation board may require that the applicant provide a written report from a certified arborist before making any determinations in conjunction with this section. The historic and environmental preservation board may also require monitoring by a certified arborist during construction to assure tree preservation.

(5) In determining the required preservation, relocation, or replacement of trees, the following factors shall be considered:

a. Existing tree coverage on the site and in the immediate surrounding area.

b. Number of trees to be removed on the entire site.

c. The type, size and condition of the tree(s) to be removed.

d. The feasibility of relocating the particular tree or trees.

e. Topography and drainage of the site.

f. The extent to which the trees contribute to the aesthetic, economic and environmental integrity of the surrounding area.

g. The nature of the existing and intended use of the property.

(6) Tree replacement. Tree replacement shall be as directed in subsection 17-6(a) which includes tree replacement chart 17.6.1.1 as well as tree species diversity chart 17.6.2.1 in subsection 17-6(b), tree species.

(Code 1967, § 64-9; Ord. No. 8798, §§ 1, 2, 5-19-78; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-9; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-35. Tree protection and survival.

(a) During construction, all reasonable steps necessary to prevent the destruction or damaging of trees shall be taken. Trees destroyed or receiving major damage must be replaced by trees of equal environmental value as specified in section 17-6 before occupancy or use unless approval for their removal has been granted under permit.

(1) Trees that are to remain shall be clearly identified with tags.

(2) During construction, protective barriers shall be placed with a radius of ten feet around the trees to remain in accordance with the landscape manual, unless a certified arborist otherwise determines in writing that a smaller or larger protected area is acceptable for each tree, or an alternative tree protection method is recommended.

(3) During demolition and/or development, including installation of irrigation systems or any other underground installations, protective barriers shall be placed around each tree and shall remain in order to prevent the destruction or damage to roots, stems or crowns of such trees. The barriers shall remain in place and intact until such time as approved landscape operations begin; however, barriers may be removed temporarily to accommodate construction needs, provided the manner and purpose for such temporary removal will not harm the trees. The trees shall be properly irrigated throughout the building process. Trees damaged during construction shall be subject to the provisions of section 17-9.

(4) If at all practical, underground utility lines, curbs and other above grade structures should be routed around existing trees to the outside of the drip line of the tree. In the event that this is not feasible, a tunnel made by a power-driven soil auger may be placed under the tree for installation of utility lines, or a trench passing by the side of the tree may be used for construction of curbing or to accommodate the installation of utility lines. If a trench is used, care should be taken that as few roots as possible are cut, that the cuts are made cleanly, and that the root ends are painted with a wound dressing of asphalt base paint and immediately covered with soil.

(5) During construction, unless otherwise authorized by the tree removal permit, no excess soil, additional fill, equipment, liquids, or construction debris shall be placed within the drip line of any tree that is required to be preserved in its present location unless the addition of excess soil or fill is required in order to comply with either the flood criteria requirements contained in chapter 11C of the Code of Metropolitan Dade County, Florida, and/or federal flood regulations in high flood hazard locations.

(6) Unless otherwise authorized by the tree removal permit, no soil is to be removed from within the drip line of any tree that is to remain at its original location.

(7) No wires or utility service attachments, other than those of a protective nature, shall be attached to any tree.

(8) Subsequent to construction or the satisfactory stabilizing of a tree, all protective devices shall be removed. The owner of the project on which the tree is located, the applicant for a tree permit or the individual performing physical moving of a tree, shall be fully liable and responsible for removal of the devices.

(b) All trees transplanted pursuant to this article shall be maintained alive and healthy at the site of the transplant for a period six months following completion of construction work on the site. Any of such trees which die within such six months shall be replaced by the applicant. The code enforcement department shall retain jurisdiction to ensure compliance with this section.

(c) Tree pruning/trimming. The pruning or trimming of any tree shall be done in accordance with ANSI A-300 Tree Care Standards and the guidelines illustrated in the landscape manual, incorporated by reference herein. The practice known as "hatracking" or "topping" is not permitted and shall be considered a violation of this article. The historic and environmental reservation board may require that a certified arborist monitor the trimming and provide the department with photographic documentation following the trimming. Any other tree abuse, or activity that can effectively destroy a tree, shall also be considered a violation of this article.
(Code 1967, § 64-10; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-10; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-36. Environmental preservation review standards for tree removal and development activity.

The following standards shall be used by the preservation officer or historic and environmental preservation board in reviewing all site plans, building plans and applications for tree removal within those areas designated as environmental preservation districts. These standards are intended to provide a frame of reference for the applicant, as well as to provide a basis for reviewing plans and proposals. These standards are not to be regarded as inflexible and are not intended to discourage innovation or creativity. Development should:

(1) Preserve the natural environmental character of all sites, insofar as practical, by minimizing removal of trees or other significant environmental features.

(2) Preserve or enhance existing topography and natural land features wherever possible.

(3) Use only those signs for identification of principal use. Signs should be of a size, shape and color which are compatible with the surrounding environment. The size of the signs should bear a direct relationship to the rate of speed of passersby, not exceeding a maximum size necessary for recognition.

(4) Provide visual screening of all parking areas, service areas or storage areas by using landscaping and building materials which are compatible with the surrounding landscape character.

(5) Maintain the continuity of landscape material and spacing characteristic of the surrounding area or scenic corridor. If the development occurs along a designated scenic corridor, the principal natural landscape or manmade elements which form the visual boundaries or enclosing space of the corridor shall be preserved, insofar as possible.

(6) Consider the impact of public and private improvements upon the ecological needs of the area. Roadway improvements within scenic corridors and other unique areas should not disrupt or distract from the existing natural environment.

(Code 1967, § 64-11; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-11; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-37. Exceptions and exemptions from article requirements.

(a) During the period of an emergency, such as hurricane, tropical storm, flood or other act of God, or in the event that any tree shall be

determined to be in a hazardous or dangerous condition so as to endanger the public health, welfare or safety of the community, or when the tree prevents a person from the use or enjoyment of the property; or when removal of the tree will prevent further damage and its removal is required, the applicant shall provide photographs and any other supporting materials which will allow a sound judgment to be made. Upon such a finding, the requirements of this article may be waived by the city manager.

(b) Prohibited trees shall be exempt from the replacement requirements of this article, but shall require a tree removal permit. Prohibited trees are those tree species that are detrimental to native plants, native wildlife, ecosystems, and human health, safety or welfare. Prohibited tree species includes those designated in the Miami-Dade County Landscape Manual, incorporated by reference herein, and the Ficus Benjamina/ Weeping Fig. These species must be removed from sites upon site development.

(c) Nothing in this article shall be construed to prevent the pruning of trees where necessary for proper landscape maintenance and safety provided that the pruning and trimming of trees is done in accordance with ANSI A-300 Tree Care Standards and the guidelines illustrated in the landscape manual.

(Code 1967, § 64-12; Ord. No. 8798, §§ 1, 2, 5-19-78; Ord. No. 9427, § 1(D), 5-27-82; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-12; Ord. No. 13174, § 2, 5-13-10; Ord. No. 13274, § 2, 6-23-11)

Sec. 17-38. Removal of trees from public lands.

No tree shall be removed from any public land, public park or public right-of-way, except in accordance with article III of this chapter.

(Code 1967, § 64-13; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-13; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-39. Public notice of applications for special certificates of approval.

Public notice is required for all applications for a special certificate of approval in environmental preservation districts. The type and manner of notice will be as follows:

(1) *Posted notice.* Property being considered for a permit under this article shall be posted with a sign at least ten days in advance of the public hearing. The sign shall measure at least three square feet in area, shall be of a color and shape distinguishable from the surrounding landscape, and shall contain substantially the following language:

> A public hearing involving approval of a permit for tree removal or development on this property will be held by the historic and environmental preservation board of the City of Miami.
>
> Description of activity:
>
> Place of hearing:
>
> Time:
>
> For additional information call 311.

The sign shall be erected in full view of the public on each street side or side nearest a street of the property being considered for such permit.

(2) *Mailed notice.* Notice of the time and place of the public hearing by the historic and environmental preservation board shall be sent at least ten days in advance of the hearing, by mail, to the owner of the subject property and the owners of the adjacent property and other departments or agencies deemed appropriate by the board.

(3) *Published notice.* The published notice shall contain a description of the activity and the time and place of the hearing. Publication shall be made in the following:

a. A daily newspaper of general circulation in the city;

b. A daily newspaper of general circulation in the city, devoted primarily to reporting of financial, business, industrial and legal information; and

c. A newspaper devoted primarily to reporting information of interest in an area or locality of the city.

Such publications shall be made not less than ten days in advance of the public hearing and shall be prepared and paid for by the city. These publications shall be sent to the city manager's office or its designated city department for distribution to the registered homeowners' associations.

(Code 1967, § 64-14; Ord. No. 9427, § 1(C), 5-27-82; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-14; Ord. No. 13174, § 2, 5-13-10; Ord. No. 14138, § 7, 2-9-23)

Sec. 17-40. Appeals.

(a) *Appeals to the historic and environmental preservation board.* Any citizen may appeal any decision of the department of planning, and the code enforcement department of any term or provision of this article to HEPB, by filing, within ten days after the date of the initial decision, a written notice of appeal with the city manager, with a copy to the city clerk and the preservation officer, which shall set forth precisely the decision appealed from and the reasons or grounds for the appeal. Each appeal shall be accompanied by the applicable fee. The enforcement agency shall immediately issue a stop work order for any work which could be affected by the subject appeal, pending final disposition of the appeal. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. The historic and environmental preservation board shall hear at a public hearing all facts material to the appeal and render a decision within 45 days of the filing of such appeal. The historic and environmental preservation board may affirm, modify or reverse the decision appealed from, provided that the board shall not take any action which conflicts with or nullifies any of the provisions of this article.

(b) *Appeals to the city commission.* Any citizen may appeal any decision of the historic and environmental preservation board as it relates to this article, to the city commission by filing within ten days after the date of the decision, a written notice of appeal with the city manager, with a copy to the city clerk and the preservation officer, which shall set forth precisely the decision appealed from and the reasons or grounds for the appeal. Each appeal shall be accompanied by the applicable fee. The enforcement agency shall immediately issue a stop work order for any work which could be affected by the subject appeal, pending final disposition of the appeal. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. The city commission shall hear and consider all facts material to the appeal and render a decision within 45 days of the filing of such appeal. The city commission may affirm, modify or reverse the board's decision. The decision of the city commission shall constitute final administrative review, and no petition for rehearing or reconsideration shall be considered.

(Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-15; Ord. No. 13174, § 2, 5-13-10; Ord. No. 13971, § 2, 2-25-21)

Sec. 17-41. Penalties, remedies cumulative.

Any person, or agent thereof, violating the provisions of any section of this article shall upon conviction, be subject to the penalties in this chapter or any other penalties as provided by law. The removal, relocation or destruction of each tree for which a tree removal permit is required-without a proper permit on the job site shall constitute a separate offense under this article.

(Code 1967, § 64-15; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-16; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-42. Civil remedies.

In addition to any other remedies provided by law and by this article, the enforcement agency

shall have the following judicial remedies available for violations of this article or any permit condition promulgated under this article:

(1) The enforcement agency may institute a civil action in a court of competent jurisdiction to establish liability and recover liquidated damages for each violation in an amount of not more than $5,000.00 per offense. Each tree unlawfully removed under the provisions of this article shall constitute a separate offense hereunder.

(2) The enforcement agency may institute a civil action in a court relief to enforce compliance with this article to enjoin any violation hereof and to seek injunctive relief to prevent irreparable injury to the trees or properties encompassed by the term of this article.

(Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-17; Ord. No. 13142, § 7, 2-11-10; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-43. Fees.

(a) Standard certificate of approval: Minimum $26.00 plus $5.00 for every tree to be removed, relocated or newly planted.

(b) Special certificate of approval: $26.00.

(c) All applications for permits for the removal of trees shall be accompanied by a fee, as provided for under section 10-4, as amended, "Building permit fee schedule."

(d) All appeals shall be accompanied by a fee of $300.00, except that no fee shall be charged for such appeals initiated by agencies of the city or by an owner in fact of a property adjacent to the subject property or by a nonprofit corporation dedicated to conservation and protection of the natural and physical environment.

(Code 1967, § 64-16; Ord. No. 8798, §§ 1, 2, 5-19-78; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-18; Ord. No. 13142, § 7, 2-11-10; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-44. Enforcement.

(a) The department of code enforcement, its inspectors and the planning department shall have concurrent jurisdiction for the proper and effective enforcement of this article under chapter 2, article X entitled "Code enforcement."

(b) The enforcement agency shall immediately issue an order to cease and desist any work being carried out in violation of this article or any permit conditions promulgated under this article. Upon notice of such violation, no further work shall take place until appropriate remedial action is instituted, as determined by the enforcement agency.

(c) In cases where tree removal is carried out without the necessary permit under the terms and conditions of this article, the property owner shall be required to make application for an after-the-fact tree removal permit and certificate of approval, if applicable. The appropriate reviewing agency may grant an after-the-fact certificate of approval or tree removal permit only if it finds that the same application would have rightfully been approved prior to removal of the tree(s), and that each tree destroyed is to be replaced by trees of equal or greater value. Such replacement trees shall be located on the subject site wherever practical, or they may be required to be located on public property. Such replacement shall be assured by a performance bond or by a cash contribution to a tree planting fund established by the city. If the conditions for an after-the-fact tree removal permit are not fulfilled, the case shall be referred to the law department for appropriate action under sections 17-41 and 17-42.

(Code 1967, § 64-17; Ord. No. 8798, §§ 1, 2, 5-19-78; Ord. No. 9769, § 1, 12-15-83; Code 1980, § 17-19; Ord. No. 13174, § 2, 5-13-10)

Sec. 17-45. Fine.

Any person, or agent thereof, who removes a tree without a tree removal permit, shall be fined a fine of up to $1,000.00 per violation, per day for the first violation, and shall be fined up to $5,000.00 per tree for every repeat violation of this article, or a greater penalty as provided by law, and in addition undergo the tree replacement process in the form of replacement trees pursuant to article I. Each tree removed without a tree removal permit shall constitute a separate and distinct violation, subject to a separate fine and tree replacement pursuant to article I.

(Ord. No. 13174, § 2, 5-13-10)

Sec. 17-46. Tree replacement required.

In addition to the monetary fine established above, the planting of replacement trees shall be required. The number of trees required as replacement for each tree that was removed without a permit shall be based upon chart 17.10.2.1, Tree replacement chart for trees removed without a permit. If the total number of trees required as replacement trees cannot be reasonably planted on the subject property, the applicant may contribute into the city's tree trust fund in an amount based upon chart 17.10.2.1 for the balance number of replacement trees that cannot be planted on the subject property.
(Ord. No. 13174, § 2, 5-13-10)

Sec. 17-47. Tree replacement for trees removed without a permit.

Refer to the tree replacement chart 17.10.2.1 in article I.
(Ord. No. 13174, § 2, 5-13-10)

Sec. 17-48. Withholding of a new building permit.

The removal of any tree in violation of this article shall constitute grounds for withholding new building permits directly related to said tree removal until the violation has been corrected, including the payment of all fines and the planting of all trees required as replacement trees pursuant to this section. Alternatively, in order to obtain the new building permit, the person in violation may post a payment and performance bond pursuant to F.S. § 255.05 naming the city as obligee. The bond shall be in the amount of ten percent of the construction cost or ten percent of the appraised value of the property, if no construction exists. The bond will be maintained in place until the violation has been corrected, pursuant to this section. In the event a bond is not feasible, the city may accept an irrevocable, unconditional letter of credit, in the previously stated percentages, naming the city as payee. This section shall not apply to complete applications submitted to the city on the effective date of Ord. No. 13174.
(Ord. No. 13174, § 2, 5-13-10)

Sec. 17-49. Withholding of a certificate of occupancy.

The department shall not approve the zoning inspection required for a temporary or final certificate of occupancy until all violations of this article have been corrected, including the payment of all fines and the planting of all trees required as replacement tree mitigation, pursuant to this section.
(Ord. No. 13174, § 2, 5-13-10)

Sec. 17-50. Remedies cumulative.

The remedies provided in this section shall be cumulative to all remedies provided by law and/or equity, and the election of one shall not preclude the other.
(Ord. No. 13174, § 2, 5-13-10)

Secs. 17-51—17-70. Reserved.

ARTICLE III. TREES AND SHRUBS ON PUBLIC PROPERTY*

Sec. 17-71. Authority of director of public works.

The director of public works or his/her duly authorized representative, under the city manager, shall have the general management and supervision of all trees, shrubs and plants embraced by this article.
(Code 1967, § 59-1; Code 1980, § 59-21; Ord. No. 13676, § 2, 4-27-17)

Sec. 17-72. Permits—Required to prune, plant or remove from public land.

It shall be unlawful for any person to trim or prune any tree, shrub, or plant or to remove any tree, shrub, or plant from any dedicated street, alley, highway, public right-of-way, or easement, public land lying between property lines on either side of a public street, highway, alley, public parking strip, public street, sidewalk or divider, public median strip or planting strip or

*__City Code cross references__—Parks and recreation, ch. 38; streets and sidewalks, ch. 54; street grades and lines for shade trees, § 54-51.

other land or public place owned by the city without first applying for and obtaining a permit from the director of public works or authorized representative.
(Code 1967, § 59-2; Code 1980, § 59-22; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13676, § 2, 4-27-17)

Case law reference—In suit against city for injuries sustained from electric shock incurred while pruning trees on a city right-of-way for a private individual, where neither the injured party nor his/her employer had acquired a permit as required and where both the injured party and his/her employer knew a permit was required, the injured party was a trespasser as to the city, to whom the city owed no greater duty than to avoid wilful and wanton conduct and, upon discovery of his/her presence, to give warning of known dangers not open to ordinary observation. Norris v. City of Miami, 367 So. 2d 1038.

Sec. 17-73. Same—Required to break, injure, etc., in public highway or park.

No person shall, without a written permit from the director of public works, break, incline or in any way deface any living tree, shrub or vine in a public highway or park, or cut, disturb or interfere in any way with the roots of any tree, shrub or vine in a public highway or park.
(Code 1967, § 59-3; Code 1980, § 59-23)

Sec. 17-74. Same—Issuance; charges.

The director of public works shall issue a written permit required by the two preceding sections to any applicant, without charge, when it is determined that the action proposed is necessary or desirable and not contrary to any city master plan for trees, shrubs or plants, and will be performed satisfactorily.
(Code 1967, § 59-4; Code 1980, § 59-24; Ord. No. 13087, § 2, 9-10-09)

Sec. 17-75. Same—Contents.

A permit issued as provided in the preceding section shall contain the location approved, the action allowed to be performed, the duration of the permit and any other requirements deemed necessary or desirable by the director of public works to regulate the cutting, trimming or removal of any trees, shrubs or plants within the city.
(Code 1967, § 59-5; Code 1980, § 59-25)

Sec. 17-76. Placing guards during construction or repair of buildings.

In the erection or repairing of any building or structure, the owner thereof shall place such guards around all nearby trees, shrubs or vines in a public highway or park as shall effectively prevent injury to them.
(Code 1967, § 59-6; Code 1980, § 59-26)

Sec. 17-77. Placing injurious substances on or near roots.

No person shall throw or allow to be thrown any saltwater, oil or injurious substance upon any public highway or park where such material may enter the ground at the roots of any public tree, shrub or vine.
(Code 1967, § 59-7; Code 1980, § 59-27)

Chapter 18

FINANCE*

Article I. In General

Sec. 18-1. Depositories for city funds to contract by competitive bid for banking services; investment of idle funds.
Sec. 18-2. Depositories of public moneys to pledge assets as security.
Sec. 18-3. Deposit of daily collections, retention of funds for cash needs.
Sec. 18-4. Fees for opening and closing graves at city-owned cemetery.
Sec. 18-5. Reserved.
Sec. 18-6. Safeguards.
Secs. 18-7—18-35. Reserved.

Article II. Sale of Certificates for Delinquent Local Improvement Assessment Liens

Sec. 18-36. "Director of finance" defined.
Sec. 18-37. Alternate procedures for delinquent local improvement liens; applicability to all municipal liens.
Sec. 18-38. Time and place of sale.
Sec. 18-39. Amount for which certificates to be sold; separate certificate for each lien.
Sec. 18-40. Notice to be mailed to property owner; publication of notice in newspaper; incorporation by reference of statutes and county ordinances providing for the sale of delinquent special improvement or assessment certificates.
Sec. 18-41. Sale to highest bidder; rights and remedies of purchaser.
Sec. 18-42. Right of holder of mortgage or other lien to pay amount due city.
Sec. 18-43. Disposition of proceeds.
Secs. 18-44—18-70. Reserved.

Article III. City of Miami Procurement Ordinance

Sec. 18-71. Purpose.
Sec. 18-72. Application and exclusions.
Sec. 18-73. Definitions.
Sec. 18-74. Cone of silence.

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*__Charter references—__Powers of city to levy taxes, special assessments, § 3(a)—(c); power of city to contract debts and borrow money, § 3(d); borrowing to erect and add to public buildings such as hospitals, office buildings, city halls, etc., § 3(nn); borrowing to provide adequate waterworks system, § 3(oo); borrowing to purchase, hire, maintain, operate or lease public utilities, § 3(pp); borrowing money for engineering work necessary to effect public improvements, § 3(rr); budget and accounts for off-street parking facilities to be separate, § 23(g); finance generally, § 27 et seq.; pension funds, § 37; suits against city, § 44.

__City Code cross references—__Finance department, § 2-466 et seq.; management and budget department, § 2-491 et seq.; improvement districts, § 2-726 et seq.; city-owned property, § 2-776 et seq.; local business taxes, ch. 31; parking rates, § 35-191; taxation, ch. 56.

__County Code cross references—__Taxation generally, ch. 29; presentation by municipality or taxpayer's association to county tax assessor, etc., regarding overall assessments of real property in municipality or in a general area, § 29-17; presentation by a municipality or taxpayer's association to county tax assessor, etc., regarding personal property in a municipality or in a general area, § 29-31.

__Law review references—__Articles on validation of bonds in Florida, 8 Miami L.Q. 253, 10 Miami L.Q. 244; article on special assessments in Florida, 10 Miami L.Q. 245; article on legal aspects of bond financing in Florida, 6 Fla. L. Rev. 287; article on developments in revenue bond financing, 6 Fla. L. Rev. 385.

__State law references—__Municipal borrowing generally, F.S. § 166.101 et seq.; municipal finance and taxation generally, F.S. § 166.201 et seq.; supplemental and alternative method of making local municipal improvements, F.S. ch. 170; foreclosure of municipal tax and special assessment liens, F.S. ch. 173; general financial provisions relating to political subdivisions of the state, F.S. § 218.01 et seq.; revenue sharing, F.S. § 218.20 et seq.; local financial management and reporting, F.S. § 218.30 et seq.

Sec. 18-75. Organization.
Sec. 18-76. Chief procurement officer.
Sec. 18-76.1. Duties of the chief procurement officer.
Sec. 18-77. Authority of the chief procurement officer.
Sec. 18-78. Delegation of authority by the chief procurement officer to other city purchasing agents.
Sec. 18-79. General duties of city purchasing agents.
Sec. 18-80. Responsibilities of the chief procurement officer relating to the Anti-Deficiency Act.
Sec. 18-81. Estimates of requirements.
Sec. 18-82. Disposal of surplus city-owned personal property.
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ARTICLE I. IN GENERAL

Sec. 18-1. Depositories for city funds to contract by competitive bid for banking services; investment of idle funds.

(a) The director of finance is hereby authorized and directed to request bids from all federal- and Florida-chartered banks located within the city limits for all banking services required by the city for a three-year period. Such banking services required shall be defined by the director of finance in a request for proposals directed to the aforementioned banks. The city commission will award a contract for three years to the bank submitting the best bid upon the recommendation of the city manager.

(b) Pursuant to section 47 of the Charter, the authority to invest and reinvest money of the city, to sell or exchange securities so purchased, and to deposit such securities for safekeeping is hereby delegated to the director of finance. The finance director is hereby authorized to purchase, at their original sale or after they have been issued, securities which are protected by the full faith and credit of the United States government and in bonds and obligations of agencies of the United States, provided such are guaranteed by the United States or by the issuing agency; general obligations of states, counties, municipalities, school districts, or other political subdivisions; revenue and excise tax bonds of the various municipalities of the State of Florida, provided none of such securities have been in default within five years prior to date of purchase; negotiable certificates of deposit; bankers acceptance drafts; or prime commercial paper from money in his/her custody which is not required for the immediate necessities of the city and as he/she may deem wise and expedient, and to sell or exchange for other eligible securities and reinvest the proceeds of the securities so purchased. For the purpose of this section, "prime" commercial paper shall be defined as that commercial paper which has received a Standard and Poor's rating of A-1 or Moody's rating of Prime-1. The city, through its investment policy committee, shall determine what portion of public funds may be deposited in time deposits bearing interest. From time to time the finance director shall redeem the securities in which the city money has been invested pursuant to this subsection so that proceeds may be applied to the purpose for which the original purchase money was designated or placed in the city treasury.
(Code 1967, § 16-2; Ord. No. 8757, § 1, 2-23-78; Ord. No. 10121, § 1, 7-10-86; Code 1980, § 18-2)

Sec. 18-2. Depositories of public moneys to pledge assets as security.

(a) The security to be given by such banks as may be designated under section 18-1 shall consist of any notes, bonds or other securities, other than shares of stock in which a state bank is authorized by applicable law or regulation to invest any of its funds, and shall be accepted as satisfactory security for the safekeeping and prompt payment of moneys deposited.

(b) It shall be the duty of the director of finance to demand increased security from such banks commensurate with the funds on deposit therein at any time, and the director of finance is hereby authorized to reduce the amount of security at any time that the funds on deposit with any bank shall be diminished below the amount of security held by the city from such bank; provided that at no time the amount on deposit at any bank shall exceed the par value of the security furnished by such bank.
(Code 1967, § 16-3; Ord. No. 8757, § 1, 2-23-78; Code 1980, § 18-3)

State law reference—Deposit of public funds, F.S. ch. 280.

Sec. 18-3. Deposit of daily collections, retention of funds for cash needs.

The director of finance is hereby directed to deposit daily all money collected by the city, except such amount as it may be necessary to keep on hand in cash for the expeditious transaction of the city's business.
(Code 1967, § 16-4; Code 1980, § 18-4)

Sec. 18-4. Fees for opening and closing graves at city-owned cemetery.

(a) *Generally.* The schedule of fees for opening and closing graves at the city-owned cemetery is as follows:

	Minimum Notice of 24 Hours	*After 3:00 p.m.*
Weekdays	$184.00	$236.00
Saturdays	210.00	262.50
Sundays and holidays.	289.00	289.00
Double-depth graves:		
First burial	210.00	262.50
Second burial	131.00	184.00
Children's graves up to 36 inches	79.00	105.00
Interment of ashes	79.00	105.00

(b) *Veterans.* The fees for war veterans interred in block 35 and a portion of block 42 and the north and south peripheral area of the city cemetery shall be as follows:

Opening and closing of a grave where casket at outer case is:	
Less than 86 inches	$ 79.00
Over 86 inches	105.00
Double depth (to permit burial of wife in same gravesite)	157.50

Fees for veterans interred in other sections of the city cemetery than those delineated above shall remain the same as heretofore established.
(Code 1967, § 16-5; Ord. No. 9329, § 1, 9-24-81; Ord. No. 9339, § 1, 11-12-81; Code 1980, § 18-5; Ord. No. 13142, § 8, 2-11-10)

Sec. 18-5. Reserved.

Editor's note—Ord. No. 12227, § 1, adopted May 9, 2002, repealed § 18-5 in its entirety, which pertained to the budget and finances review committee and derived from Ord. No. 11130, § 11, adopted March 24, 1994; the Code of 1980, § 18-12; Ord. No. 11564, § 9, adopted October 28, 1997.

Sec. 18-6. Safeguards.

(a) All persons contracting with the city under articles III and V of this chapter shall be required to certify their compliance with the antitrust laws of the United States and of the state and to hold harmless, defend and indemnify the city for any noncompliance by said persons with the above laws.

(b) All persons contracting with the city under articles III and V of this chapter shall be obligated to pay whichever is the greater of the following:

(1) All applicable ad valorem taxes that are lawfully assessed against the property involved; or

(2) An amount to be paid to the city equal to what the ad valorem taxes would be if the property were privately owned and used for a profit-making purpose.

Such taxes shall not be credited against any revenues accruing to the city under any contract that may be awarded under this section.

(c) Any proposal submitted pursuant to articles III and V of this chapter by a potential bidder or contractor that contemplates more than the estimated extent of the city's proposed commitment of funds, property, or services shall be ineligible for acceptance by the city commission.

(d) Any substantial increase in the city's commitment of funds, property or services, or any material alteration of any contract awarded for a unified development project shall entitle the city commission to terminate the contract after a public hearing. Prior to such public hearing, the commission shall seek and obtain a report from the city manager and from the review committee that evaluates the proposals for the project, concerning the advisability of exercising that right.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-86)

Secs. 18-7—18-35. Reserved.

ARTICLE II. SALE OF CERTIFICATES FOR DELINQUENT LOCAL IMPROVEMENT ASSESSMENT LIENS*

Sec. 18-36. "Director of finance" defined.

For the purposes of this article, the term "director of finance" shall mean the director of

*__Charter reference—__Assessments for local improvements to constitute lien on property assessed, § 30.

State law references—Procedure for foreclosure of municipal special assessment liens, F.S. ch. 173; optional with the municipality, F.S. § 173.13.

the finance department of the city or his/her authorized representative or such other persons as may be authorized by law to perform the duties required by this article.
(Code 1967, § 16-8; Code 1980, § 18-33; Ord. No. 13676, § 2, 4-27-17)

Sec. 18-37. Alternate procedures for delinquent local improvement liens; applicability to all municipal liens.

Unless the city commission shall elect to proceed by foreclosure proceedings in a court of competent jurisdiction, either as to all or any one or more properties on which local improvement assessment liens are delinquent, and shall so order by resolution, all delinquent local improvement assessment liens shall be sold each year in the same manner and under the same provisions of law, both state and local, that govern and prescribe the proceedings and conditions under which certificates for delinquent city taxes are sold, except as to the time of such sale and the manner and method of notice thereof, as provided in this article. For the purposes of this article the term "local improvement assessment lien" shall be synonymous with special assessment lien and shall include all liens provided for by the City Charter or Code of Ordinances, the Metropolitan Dade County Charter or Dade County Code, the South Florida Building Code, Special Acts of the State of Florida and Statutes of the State of Florida as the same create local improvement or special assessment liens against the real property involved in accordance with their provisions.
(Code 1967, § 16-9; Ord. No. 10501, § 1, 10-27-88; Code 1980, § 18-34)

Sec. 18-38. Time and place of sale.

All unpaid balances of local improvement assessment liens which are delinquent on January 1 of any year, together with unpaid accrued interest thereon as hereinafter provided, shall be offered for sale by the director of finance at the same time and place as the sale of certificates for delinquent general city taxes of the immediately preceding year, but the sale of such certificates for local improvement assessment liens may be postponed and adjourned from day to day until the tax certificate sale shall have been completed.
(Code 1967, § 16-10; Code 1980, § 18-35)

Sec. 18-39. Amount for which certificates to be sold; separate certificate for each lien.

The certificate for any delinquent balance of an assessment lien shall be issued and sold for the amount of such balance of the principal amount, plus interest due and unpaid computed to the date on which any such tax sale is scheduled to commence, at the percentage per annum applicable to such lien, plus five percent to provide and defray the cost of such sale and the issuance of the certificate. A separate certificate shall be issued for each such lien.
(Code 1967, § 16-11; Code 1980, § 18-36)

Sec. 18-40. Notice to be mailed to property owner; publication of notice in newspaper; incorporation by reference of statutes and county ordinances providing for the sale of delinquent special improvement or assessment certificates.

(a) The director of finance shall cause to be sent by mail to the last known owner of any lot or parcel of land upon which any such delinquent assessment lien balance exists, at his/her last known address, a written notice of intent to issue and sell a certificate thereon, which notice shall be mailed not more than 60 days and not less than 30 days prior to the date of commencement of such sale. Such notice shall contain and show the legal description of the affected property, the amount of delinquent principal of the lien, the amount for which the certificate is to be issued, the time and place of sale and the penalties and rates of charges which will result from and accrue after such sale. A separate notice shall be made for each property description, but the notice on any property description may include two or more delinquent assessment liens shown separately thereon.

(b) The director of finance shall also cause to be published in the newspaper of general circulation in the city which has been designated by the city commission to publish the notice of delinquent tax and/or special assessment sales, in the manner provided by section 42 of the City Charter, namely that a notice of such sale shall be published in two issues of a newspaper of general circulation in said city, so that at least seven days shall elapse between the two publications, and at least seven days and not more than 28 days shall elapse between the last publication and the day of the sale. The notice shall plainly state that all real estate in the city upon which delinquent assessment liens are past due and unpaid will be sold in conformity with law, and the time and place of such sale shall be clearly stated. The notice need not be in any particular form but shall be brief, simple, plainly state the facts and give fair notice of the sale. It shall not be necessary that it contain the names of the owners of the real estate to be sold, nor state the amount of assessments which are due and unpaid.

(c) This section is supplemental to other laws and shall not repeal any other ordinance relating to the subject matter hereof but shall be an alternative and supplemental method to the publication of notices for the sale of delinquent special assessment liens. The collection, enforcement, publication, sale and foreclosure of special assessment liens may be, at the city's discretion, enforced by any of the methods provided for by section 18-14, Dade County Code, and F.S. chs. 170, 173 and 197, as they currently exist and may hereinafter be amended, and may further be accomplished by any other method established by law.

(Code 1967, § 16-12; Ord. No. 10297, § 1, 7-9-87; Code 1980, § 18-37; Ord. No. 13676, § 2, 4-27-17)

Sec. 18-41. Sale to highest bidder; rights and remedies of purchaser.

The director of finance shall offer and sell each such certificate separately to the bidder offering the best bid under the laws and rules then in force governing the sale of certificates for general city taxes. The purchaser of any such certificates shall be entitled to the same rates of interest from date of purchase to date of redemption, and the same remedies for nonpayment, such as the taking of a deed to the property through foreclosure or otherwise, as are at the time of such sale available to the purchasers of certificates for general city taxes.

(Code 1967, § 16-13; Code 1980, § 18-38)

Sec. 18-42. Right of holder of mortgage or other lien to pay amount due city.

At any time prior to the date of the certificate sale, the owner or the holder of a mortgage or other lien on the affected property may relieve the delinquency by the payment of any and all delinquent installments of principal, if the delinquency has been caused by failure to pay any such installment, and all delinquent interest, or, if no installment payment schedule has theretofore been established and entered upon, by the payment of the entire amount of principal and interest then due, and in either such case the director of finance shall withdraw from the sale the certificate on any such lien.

(Code 1967, § 16-14; Code 1980, § 18-39)

Sec. 18-43. Disposition of proceeds.

The proceeds of any sale under this article shall be used and applied to the reimbursement to the city of the reasonable and necessary costs of preparing, noticing and conducting the sale, to the extent of the five percent as provided by section 18-39, and to such other fund as may be proper for the repayment of the provision of funds by which the local improvement creating the lien was accomplished.

(Code 1967, § 16-15; Code 1980, § 18-40)

Secs. 18-44—18-70. Reserved.

ARTICLE III. CITY OF MIAMI PROCUREMENT ORDINANCE*

Sec. 18-71. Purpose.

The purpose of this article is to prescribe the manner in which the city shall control the purchase of materials, supplies, equipment and services of the city, and to maintain a high ethical standard for all officers and employees of the city in connection therewith; to place city's purchasing function in a centralized system in which the city will be able to establish policies and procedures governing all purchases and contracts; to provide for the fair and equitable treatment of all persons doing business with the city; to maximize the purchasing value of public funds in procurement and to provide safeguards for maintaining a procurement system of quality and integrity.
(Ord. No. 12271, § 2, 8-22-02)

*__Editor's note—__Ord. No. 12271, § 2, adopted August 22, 2002, repealed and reenacted art. III to read as herein set out. Formerly, art. III pertained to purchasing and contracts generally, and derived from the Code of 1980, §§ 18-11, 18-51, 18-51.1—18-51.6, 18-52, 18-52.1—18-52.9, 18-53, 18-54, 18-54.1—18-54.4, 18-55, 18-55.1—18-55.3, 18-56, 18-56.1—18-56.4, 18-57, 18-57; Ord. No. 9572, § 1, adopted February 10, 1983; Ord. No. 10032, §§ 1—4, adopted September 12, 1985; Ord. No. 10231, § 1, adopted March 13, 1987; Ord. No. 10328, § 1, adopted October 22, 1987; Ord. No. 11048, § 2, adopted March 25, 1993; Ord. No. 11072, § 1, adopted July 8, 1993; Ord. No. 11087, § 2, adopted September 27, 1993; Ord. No. 11564, § 9, adopted October 28, 1997; Ord. No. 11657, § 2, adopted May 26, 1998; Ord. No. 11688, § 1, adopted July 21, 1998; Ord. No. 11726, § 1, adopted November 17, 1998; Ord. No. 11727, § 2, adopted November 17, 1998; Ord. No. 11878, § 2, adopted January 13, 2000; Ord. No. 11890, § 3, adopted February 10, 2000; Ord. No. 12103, § 1, adopted September 13, 2001, and Ord. No. 12141, § 1, adopted October 25, 2001.

Charter references—Chief procurement officer, § 28; contracts for public works, improvements, real property, personal property, and unified development projects, § 29.

City Code cross reference—Conflicts of interest, § 2-611 et seq.

Law review references—Articles as to municipal contracts in Florida, 8 Miami L.Q. 257; 16 Miami L. Rev. 513.

State law references—Purchases by municipality under state purchasing agreement, F.S. § 287.042(2); consultant's competitive negotiation act, F.S. § 287.055; preference to Florida business, F.S. § 287.084.

Sec. 18-72. Application and exclusions.

(a) *Application.* Regardless of the source of funds, including state and federal assistance monies, and except as otherwise specified by law, the provisions of this article shall apply to every purchase/procurement by:

(1) All city entities or boards, as hereinafter defined, including the community redevelopment agencies.

(2) The Downtown Development Authority, the department of off-street parking, Liberty City Community Revitalization Trust, Civilian Investigative Panel, Bayfront Park Management Trust, and Virginia Key Beach Park Trust (each referred to herein as the "board" or "city entity," as applicable); provided, however, that:

a. With respect to each board, the following terms shall have the meanings ascribed to them in this section:

1. "City" shall mean the board.

2. "City manager" shall mean the executive director of the board.

3. "Chief procurement officer" shall mean the executive director of the board or his or her designee.

4. "City commission" shall mean the board of directors of the board.

b. The cone of silence shall not apply to any board or city entity set forth in subsection 18-72(2) herein or the community redevelopment agencies.

(b) *Exclusions.* This article shall not apply to:

(1) Procurement of dues and memberships in trade or professional organizations; registration fees for trade and career fairs; subscriptions for periodicals and newspapers; advertisements; postage; abstracts of titles for real property and title searches; title insurance for real property; water, sewer, electrical and gas

utility services; cable television services; internet services; landline voice over internet provider (VOIP) and wireless communication services; alarm monitoring, inspection, and maintenance services; water delivery services; copyrighted materials or patented materials including, but not limited to, technical pamphlets, published books, maps, testing or instructional materials; fees and costs of job-related seminars and training.

(2) The sale or lease of city-owned real property, as these are governed by the provisions of 3f(iii) and Section 29 A-D of the City Charter and chapter 18, article V of the City Code.

(3) Goods purchased with petty cash in accordance with established city procedures.

(4) Items purchased for resale to the general public.

(5) Purchase of groceries.

(6) Artistic services or works of art, including, but not limited to, all performing, fine, and written works of art.

(7) Hotel accommodation and services.

(8) Public-owned transportation.

(9) Purchase of tickets for special events, tourist attractions and amusement parks.

(10) City-sponsored events at hotels, motels, restaurants, or other similar venues not owned by the city.

(11) Entertainment services for city-sponsored events, including performing works of art and disc jockey services.

(12) Purchases of motor vehicle license plates from a governmentally regulated monopoly or a government agency.

(13) Travel on city business as provided in APM-77, as amended.

(14) Persons or firms retained as expert consultants, as defined in section 18-73, "Definitions", and section 18-116, "Persons or firms retained as expert consultants."

(15) Maintenance and licensing agreements and upgrades to support continued, ongoing use of proprietary software applications, the original software purchase of which was procured and approved fully in accordance with chapter 18, article III of the City Code.

(16) Legal services coordinated by and through the office of the city attorney citywide, including, but not limited to, attorney services, paralegals, expert witnesses, jury consultants, legal support services, legal research, court reporters and stenographers.

(17) Water, sewer, electrical, telecommunications or utility relocation agreements within a prior approved easement, the construction relocation of which must be performed by the water, sewer, electrical, telecommunications or a utility owner's representative.

(18) Actuarial services procured in accordance with subsection 40-196(b)(6) of the City Code.

(19) Community Development Block Grant ("CDBG"), Housing Opportunities for People With AIDS ("HOPWA"), Emergency Shelter Grant ("ESG"), Neighborhood Stabilization Program ("NSP"), HOME, and similar programs (collectively "Community and Economic Development Programs"), providing however, that community and economic development programs shall follow 2 CFR part 200, as applicable, and as may be amended and supplemented from time to time.

(20) Aggregate of anti-poverty initiative funds in an amount up to $50,000.00 in any single city fiscal year to any single entity.

(21) Aggregate of Social Service gap funds in an amount up to $50,000.00 in any single city fiscal year to any single entity.

(22) Matching fund grant agreements to the city, inclusive of any city agency or instrumentality.

For purposes of this subsection, matching fund grant agreements shall mean

those eligible matching fund grant agreements, processed through and approved by the city office of grants administration or similar city department, where a grant is provided to the city requiring a city payment of matching funds in an amount or value equal to that of the grant. The grant required city match may be in the form of funds or in-kind goods or services as provided in the matching fund grant agreement. The exclusion to the city's procurement ordinance for matching fund grant agreements, as amended, shall extend to advertising of the same including, but not limited to, social media platforms, press releases, public relations, etc. as required or contemplated by the matching fund grant agreement. The exclusion above for the advertising of matching fund grant agreements shall only apply to the city's procurement ordinance, and any applicable competitive solicitation requirements as imposed by such agreements or federal, state or county laws shall continue to apply.

(23) Aggregate of economic accessibility initiative funds in an amount up to $50,000.00 in any single city fiscal year to any single entity.

(24) Aggregate of Miami For Everyone funds in an amount up to $50,000.00 in any single city fiscal year to any single entity.

(Ord. No. 12271, § 2, 8-22-02; Ord. No. 12354, § 1, 4-10-03; Ord. No. 13380, § 2, 5-9-13; Ord. No. 13586, § 2, 1-28-16; Ord. No. 13744, § 2, 2-8-18; Ord. No. 13773, § 2, 6-28-18; Ord. No. 13801, § 4, 10-25-18; Ord. No. 13934, § 2, 10-22-20; Ord. No. 14068, § 2, 5-12-22; Ord. No. 14086, § 4, 9-13-22; Ord. No. 14165, § 2, 4-27-23)

Sec. 18-73. Definitions.

For the purposes of this article, the following terms shall have the meanings ascribed to them in this section:

Addendum means a formal amendment or supplement to a solicitation document: for example, items or information that have been added to or removed from a solicitation document.

Administrative policies and procedures of purchasing means those appropriately promulgated directives having general or particular applicability designed to implement or interpret policy, or describing organization, procedure, or practice requirements.

Advertise means placement of an electronic notice on the city's procurement website and/or via the city's on-line procurement/bidding platform, as defined in this article and/or other medium, as may be required, regarding a request for proposals ("RFP"), request for qualifications ("RFQ"), request for letters of interest ("RFLI"), invitation for bids ("IFB"), invitation to bid ("ITB"), or any other formal solicitation and public hearings. Advertisement by the city for purposes of this section will be subject to compliance with Florida Statutes which may mandate a specified form of advertising for certain procurements in which case the advertising mandated by Florida Statutes, as amended, shall govern. Said applicable Florida Statutes include, but are not limited to, F.S. §§ 180.24, 255.0525, and 255.065, all as amended from time to time.

Amendment means a modification, deletion, or addition to an executed agreement.

Bid means a formal written price offered by a business to the city to furnish specific goods, equipment and/or contractual services or public works or improvements in response to an invitation for bids or an invitation to bid.

Bid award means award of a bid for which funds have lawfully been appropriated by the city commission.

Bidder means a respondent to an invitation for bids or an invitation to bid.

Blanket purchase order means a purchase order under which a contractual party agrees to provide goods or services to a purchaser on a demand basis; the purchase order generally establishes a maximum dollar limit, prices, terms,

conditions, and the period covered, with no specified quantities; shipments are to be made as required by the purchaser.

Brand name "or equal" specifications means specification(s) limited to one or more items by the manufacturer's names or catalog numbers to describe the standard of quality, performance, and other salient characteristics needed to meet the city's requirements and which provide(s) for the submission of equivalent products.

Business means any corporation, partnership, individual, sole proprietorship, joint stock company, joint venture, or any other private legal entity.

Change order means a written modification to a contract or purchase order, which normally revises the quantities or scope of services, and may include an extension of time to complete the contract.

Chief procurement officer means the person holding the position as the director of the department of purchasing of the city.

City entity(ies) means the city, the office of the mayor, the city commissioners, the city manager, the city clerk, all city departments and offices, the city commission, every city agency, authority, advisory board, regulatory board, quasi-judicial board, semi-autonomous instrumentality, committee, task force, trust, or any group created and/or funded, in whole or in part, by the city commission, provided, and the community redevelopment agencies.

Contract means:

(1) A legally binding promise enforceable by law; a written agreement between two (2) or more competent parties to perform or not perform a specific act or acts;

(2) All types of agreements for the procurement or disposal of goods, services or public works or improvements.

Contractual party means a person or entity that enters into a contract with the city, or supplies goods, equipment or services to the city.

Contractual services means contractual or general services that include, but are not limited to, cleaning and security guard services; grounds maintenance; leasing; and rental, maintenance or repair of equipment, supplies, machinery and other city-owned personal property. The term shall not include professional or other personal services, which are by their nature unique or are not subject to competitive bidding.

Cooperative purchasing means:

(1) Procurement conducted on behalf of two (2) or more public entities;

(2) The combining of requirements of two (2) or more public entities in order to obtain the benefits of volume purchasing and/or reduction in administrative expenses.

Designee means a duly authorized representative of a person holding a superior position.

Electronic means electric, digital, magnetic, optical, electromagnetic, or any other similar technology.

Emergency procurement means a purchase made in response to a need when the delay incident to complying with all governing rules, regulations, and/or procedures would be detrimental to the life, health, welfare, safety or convenience of the city and/or its residents.

Goods means any tangible personal property other than services or real property.

Invitation for bids (IFB), aka *invitation to bid (ITB),* means the solicitation document and all attachments and addenda used for competitive sealed bidding for the procurement of public works or improvements, goods, equipment and/or contractual services. The IFB/ITB is used when the using agency is capable of specifically defining the scope of work for which a contractual or general service is required or when the using agency is capable of establishing precise specifications defining the actual commodity or group of commodities required.

Local office means a business within the city which meets all of the following criteria:

(1) Has had a staffed and fixed office or distribution point, operating within a permanent structure with a verifiable street address that is located within the

corporate limits of the city, for a minimum of twelve (12) months immediately preceding the date bids or proposals were received for the purchase or contract at issue; for purposes of this section, "staffed" shall mean verifiable, full-time, on-site employment at the local office for a minimum of forty (40) hours per calendar week, whether as a duly authorized employee, officer, principal or owner of

the local business; a post office box shall not be sufficient to constitute a local office within the city;

(2) If the business is located in the permanent structure pursuant to a lease, such lease must be in writing, for a term of no less than twelve (12) months, been in effect for no less than the twelve (12) months immediately preceding the date bids or proposals were received, and be available for review and approval by the chief procurement officer or its designee; for recently-executed leases that have been in effect for any period less than the twelve (12) months immediately preceding the date bids or proposals were received, a prior fully-executed lease within the corporate limits of the city that documents, in writing, continuous business residence within the corporate limits of the city for a term of no less than the twelve (12) months immediately preceding the date bids or proposals were received shall be acceptable to satisfy the requirements of this section, and shall be available for review and approval by the chief procurement officer or its designee; further requiring that historical, cleared rent checks or other rent payment documentation in writing that documents local office tenancy shall be available for review and approval by the chief procurement officer or its designee;

(3) Has had, for a minimum of twelve (12) months immediately preceding the date bids or proposals were received for the purchase or contract at issue, a current business tax receipt issued by both the city and Miami-Dade County, if applicable; and

(4) Has had, for a minimum of twelve (12) months immediately preceding the date bids or proposals were received for the purchase or contract at issue, any license or certificate of competency and certificate of use required by either the city or Miami-Dade County that authorizes the performance of said business operations; and

(5) Has certified in writing its compliance with the foregoing at the time of submitting its bid or proposal to be eligible for consideration under this section; provided, however, that the burden of proof to provide all supporting documentation in support of this local office certification is borne by the business applicant submitting a bid or proposal.

Major projects means projects with anticipated costs to the city in excess of $500,000.00 and/or projects involving the sale/lease/rental of city-owned waterfront property.

Most advantageous means a judgmental assessment of what is in the best interests of the city and denotes a condition, which will result in a maximum benefit being conferred upon the city.

On-line procurement / bidding means a procurement process in which the purchasing department receives bids for goods, equipment, and contractual services, electronically transmitted over the internet in a real-time, open, interactive competitive bidding event.

On-line procurement / bidding platform means the platform used by the department of procurement (i.e. Bidsync, Oracle, etc.) to advertise solicitations, submit and receive quotes, bids, proposals, etc., electronically transmitted over the internet in a real-time, open, interactive, and competitive bidding events.

Persons or firms retained as expert consultants means independent contractors retained by the city manager on a contract basis with a specific term for the purpose of performing specialized defined tasks that require knowledge, skills and training not otherwise available to the city by temporary or permanent members of the classified or unclassified service and which tasks, by their nature, require independent and autonomous judgment. Remuneration for the services of such persons or firms shall not exceed one hundred twenty-five thousand dollars ($125,000.00) in any one year, and shall be payable on a per diem basis.

Practicable means that which may be accomplished or put into practical application.

Procurement means buying, purchasing, renting, leasing or otherwise acquiring any goods and/or services for public purposes in accordance with the law, rules, regulations and procedures intended to provide for the economic expenditure of public funds. It includes, but is not limited to, all functions which pertain to the obtaining of any supplies, materials, equipment and/or services, including public works and improvements and capital improvement projects, as defined herein, required by any department or agency of city government, regardless of the source of funds. For the purposes of this article, it excludes those items set forth in subsection 18-72(b).

Professional and personal services means (a) services, the value of which is substantially measured by the professional competence of the person performing them, and which are not susceptible to realistic competition by cost of services alone; (b) services rendered by members of a recognized profession or persons possessing a specialized skill. Such services are generally acquired to obtain information, advice, training or direct assistance.

"Professional and personal services" shall include but not be limited to services customarily rendered by architects, engineers, surveyors, auditors, software and system applications, planning, electronic, technology, technical and management consultants, appraisers, and medical-related providers.

Proposal means an executed formal document submitted by a proposer to the city, stating the goods and/or services offered to satisfy the need as requested in the request for proposals, request for letters of interest or request for qualifications.

Proposer means a respondent to a request for proposals, request for letters of interest or request for qualifications.

Public notice unless otherwise specified herein, or as otherwise required by Florida Statutes, as amended, mandating a specific form of notice for a specified procurement, means publication in the city's website and/or via the on-line procurement/bidding platform and/or other free publication (i.e., Construction Journal) within a reasonable time.

Purchase means the same as procurement, as defined herein.

Purchase order means the city's document used to authorize a purchase transaction with a contractual party. It should contain a description of goods and/or services ordered, applicable terms as to payment, discounts, date of delivery/performance, insurance and other factors or conditions relating to the transaction. Acceptance of a purchase order by a contractual party shall constitute a contract, except in those instances in which a purchase order is used only as an internal encumbrance document.

Quotation or *informal bid* means any oral or written informal offer by an offeror to the city to furnish specific goods and/or services at a stated price.

Request for letters of interest (RFLI) means a solicitation of responses from interested and prospective proposers to submit a summary of their qualifications and/or capabilities and state their interest in performing a specific job or service. Proposers may be given latitude in offering a service that may fulfill the city's need.

Request for proposals (RFP) means all documents, whether attached or incorporated by reference, utilized for soliciting competitive sealed proposals for goods and/or services. Evaluation of a proposal is based on prior established criteria wherein the RFP shall state the relative importance of price and other evaluation factors.

Request for qualifications (RFQ) means a solicitation of responses from interested and prospective proposers in which factors other than price, including but not limited to financial capability, reputation, experience, and business competency, are considered and evaluated in order to develop a list of qualified proposers.

Request or invitation for quotation means a competitive solicitation for an informal bid price for supplies or services that is conveyed by form,

letter, telephone or other means and does not require advertisement or a sealed bid public opening, or public reading of bids.

Responsible bidder, proposer, offeror, or *respondent* means a business which has submitted a bid, offer, proposal, quotation or response, which has the capability, as determined by the city, in all respects to perform fully the contract requirements, and the integrity and reliability of which give reasonable assurance of good faith and performance.

Responsive bidder, proposer, offeror, or *respondent* means a business which has submitted a bid, offer, proposal, quotation or response which conforms in all material respects to the solicitation.

Scope of work means a detailed description of the work set forth in the request for proposals, request for qualifications, or request for letters of interest which the contractual party will be required to perform.

Signature means a manual or electronic identifier, or the electronic result of an authentication technique attached to or logically associated with a record that is intended by the person using it to have the same force and effect as a manual signature.

Sole source means the only existing source of the item or service which meets the needs of the using agency, city department, office, board, city commission, or trust, as determined by a reasonably thorough analysis of the marketplace.

Specifications means a concise statement of a set of requirements to be satisfied by a product, material, or process used in an invitation for bids, invitation to bid, or request or invitation for quotation to describe the goods, equipment, and/or contractual services to be purchased or otherwise acquired.

Surplus personal property means surplus, obsolete or scrap supplies or equipment. "Surplus supplies or equipment" means those which are capable of being used but are in excess of the normal operating requirements of the city. "Obsolete supplies or equipment" means those which may no longer be used for their intended purposes because their use has become economically upgraded. "Scrap supplies or equipment" are those that can no longer be used either safely or economically for any purpose except for their possible salvage value.

Using agency means any city entity which requests and uses goods, equipment and/or services procured pursuant to this article.
(Ord. No. 12271, § 2, 8-22-02; Ord. No. 12354, § 1, 4-10-03; Ord. No. 13380, § 2, 5-9-13; Ord. No. 13667, § 2, 3-9-17; Ord. No. 13934, § 2, 10-22-20; Ord. No. 14068, § 2, 5-12-22)

Sec. 18-74. Cone of silence.

(a) The requirements of subsection 2-11.1(t) ("Cone of Silence Ordinances") of the Code of Miami-Dade County, Florida, as amended, shall not be applicable to the city.

(b) Cone of silence. The cone of silence shall be applicable only to contracts for the provision of goods and services and public works or improvements for amounts greater than $200,000.00; provided, however, that the cone of silence shall not be applicable to the city attorney's office nor to the office of the independent auditor general.

(c) "Cone of silence" is defined to mean a prohibition on:

(1) Any communication regarding a particular request for proposals ("RFP"), request for qualifications ("RFQ"), request for letters of interest ("RFLI"), invitation for bids ("IFB") or any other advertised solicitation between a potential proposer, offeror, respondent, bidder, lobbyist, or

consultant and the city's professional staff including, but not limited to, the city manager and his or her staff;

(2) Any communication regarding a particular RFP, RFQ, RFLI, IFB or any other advertised solicitation between the mayor, city commissioners or their respective staffs and any member of the city's professional staff including, but not limited to, the city manager and his or her staff;

(3) Any communication regarding a particular RFP, RFQ, RFLI, IFB or any other advertised solicitation between a potential proposer, offeror, respondent, bidder, lobbyist, or consultant and any member of the selection/evaluation committee therefor;

(4) Any communication regarding a particular RFP, RFQ, RFLI, IFB or any other advertised solicitation between the mayor, city commissioners or their respective staffs and any member of the selection/evaluation committee therefor; and

(5) Any communication regarding a particular RFP, RFQ, RFLI, IFB or any other advertised solicitation between a potential proposer, offeror, respondent, bidder, lobbyist, or consultant and the mayor, city commissioners, and their respective staffs; and

(6) Any communication regarding a particular RFP, RFQ, RFLI, IFB or any other advertised solicitation between any member of the city's professional staff, including but not limited to the city manager and his or her staff, and any member of the selection/evaluation committee therefor. The city manager and the chairperson of the selection/evaluation committee may communicate about a particular selection/evaluation committee's recommendation but only after the committee has submitted its written recommendation to the city manager and provided that should any change occur in the committee recommendation, the content of the communication and of the corresponding change shall be described in writing and filed by the city manager with the city clerk and be included in any recommendation memorandum submitted by the city manager to the city commission.

Notwithstanding the foregoing, the Cone of Silence shall not apply to:

a. Competitive processes for the award of CDBG, HOME, SHIP, HOPWA, and ESG (emergency shelter grants), Funds issued and administered by the city department of community development, and Law Enforcement Trust Fund (LETF) grants administered by the city police department;

b. Communications between a potential proposer, offeror, respondent, bidder, consultant or lobbyist and city purchasing staff regarding minority/women business and local vendor outreach programs;

c. Duly noticed pre-bid/proposal conferences and site inspections;

d. Duly noticed site visits to determine the competency of bidders/proposers regarding a particular solicitation during the time period between the opening of bids/receipt of proposals and the time the city manager makes his or her written recommendation to the city commission;

e. Emergency procurements;

f. Communications with the city attorney and his or her staff;

g. Communications regarding a particular RFP, RFQ, RFLI, IFB or any other advertised solicitation between a potential proposer, offeror, respondent, bidder, lobbyist or consultant and the chief procurement officer, its staff, or any city purchasing agent, or its staff, responsible for administering the procurement process for such solicitation, prior to bid opening date or receipt of proposals, provided the communication is limited strictly to matters of process or procedure already contained in the corresponding solicitation;

h. Communications regarding a particular RFP, RFQ, RFLI, IFB or any other advertised solicitation between the chief procurement officer, its staff, or any city purchasing agent, or its staff responsible for administering the procurement process for such solicitation and a member of the corresponding selection/evaluation committee, provided the communication is limited strictly to matters of process or procedure already contained in the corresponding solicitation;

i. Sole source procurements;

j. Bid waivers;

k. Oral presentations before selection/evaluation committees and communications occurring during duly noticed meetings of selection/evaluation committees;

l. Competitive negotiations;

m. Public presentations made to the city commission and communications occurring during any duly noticed public meeting;

n. Communications in writing or by e-mail at any time with any city employee, official, mayor, or member of the city commission unless specifically prohibited by the applicable RFP, RFQ, RFLI, IFB or other advertised solicitation. The city shall file a copy of any written communications with the city clerk;

o. Communications in connection with the collection of industry comments or the performance of market research regarding a particular RFP, RFQ, RFLI, IFB or any other advertised solicitation by the chief procurement officer or its staff;

p. Contract negotiations.

q. On-line procurements pursuant to section 18-114.

r. The downtown development authority, the department of off-street parking, the Liberty City Community Revitalization Trust, and the Civilian Investigative Panel.

s. Any portion of meetings that are exempted by and held fully in accordance with the provisions of F.S. § 286.0113.

(d) Procedure.

(1) Imposition. A cone of silence shall be imposed upon each RFP, RFQ, RFLI, IFB or any other advertised solicitation when the solicitation is advertised in a newspaper of general circulation. At the time of imposition of the cone of silence, the city manager or his or her designee shall provide for public notice of the cone of silence. The city manager or his or her designee shall issue a notice thereof to the affected department(s), the city clerk, each commissioner and to the mayor and shall include in any advertised solicitation a statement disclosing that the solicitation is subject to the cone of silence.

(2) Termination. Except as otherwise provided herein, the cone of silence shall terminate at the time the city manager's approval of the award or the city manager's written recommendation to the city commission, as may be applicable, is received by the city clerk, or at such time that bids or proposals are rejected by the city commission or the city manager; provided, however, that if the city commission refers the recommendation back to the city manager for further review, the cone of silence shall be reimposed until such time as the city manager's subsequent written recommendation is received by the city clerk.

(e) Penalties. Violation of the cone of silence by a particular bidder or proposer shall render the award to said bidder or proposer voidable by the city commission. Any person who violates a provision of this ordinance shall be prohibited from serving on a city competitive selection/evaluation committee unless such appointment is approved by a 4/5 vote of the city commission. A violation of this section by a particular bidder, proposer, offeror, respondent, lobbyist or consultant shall subject said bidder, proposer, offeror, respondent, lobbyist or consultant to potential debarment pursuant to this Code.

In addition to any other penalty provided by law, violation of any provision of this article by a city employee shall subject said employee to disciplinary action up to and including dismissal.
(Ord. No. 12271, § 2, 8-22-02; Ord. No. 13439, § 2, 3-13-14; Ord. No. 13801, § 4, 10-25-18)

Sec. 18-75. Organization.

The purchasing department is the centralized organization for all procurement and contracting for goods, material, equipment, contractual services, professional and personal services and consultant services, public works or improvements and/or combination of goods and services; for performance of the city's purchasing functions, and for implementation of the provisions of this article. The chief procurement officer shall be the director of this department.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-76. Chief procurement officer.

The city manager shall appoint a chief procurement officer who shall have authority over implementation of policies, procedures, regulations and forms governing city contracting methods and procedures; types of contracts; qualifications and duties; inspections and audits; disputes and remedies; ethics; and public access and information as set forth in this article.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-76.1. Duties of the chief procurement officer.

Subject to the provisions of this article, the chief procurement officer shall:

(1) Administer the central purchasing and contracting system for the city;

(2) Procure or supervise the procurement of all goods and services as needed by the city in the manner provided by this article.

(3) Provide for the establishment/promulgation of administrative policies and procedures of purchasing, and its operations manual, which shall be reviewed by the city manager and amended from time to time;

(4) Take all necessary action to further the objectives of the city with regard to the promotion and encouragement of minority and women business participation in the procurement process;

(5) Be responsible for the provisions of the Anti-Deficiency Act contained in this article;

(6) Determine the method of selection for each type of procurement;

(7) Standardize, to the extent possible, contract clauses, terms and conditions, and documents;

(8) Maintain a current list of possible sources of supply for all goods and services purchased by the city;

(9) Have the authority to delegate any or all duties to individual purchasing agents assigned to city departments or offices, subject to the approval of the city manager.

(10) Have the authority to approve the use of a competitive contract for the purchase of necessary goods or services which has been secured by or on behalf of any federal, state, county, or municipal government, or by any other governmental entity or by any not for-profit organization or state-funded institution.

(11) With such submissions as may be required from individual purchasing agents, departments, and offices, keep such records as will adequately reflect leases, specifications, invitations for bids, requests for proposals, requests for quotations, requests for qualifications, requests for letters of interest, bids, quotations, proposals received, actions taken, final dispositions, and the purchase of goods and services and disposal of all supplies, materials, equipment.

(12) Submit an annual report on the operation of the city's procurement system to the city manager, together with recommendations for its improvement.

(13) Sell, trade, exchange, transfer, or otherwise dispose of surplus city-owned personal property;

(14) Perform such other duties as may be provided for in other sections of this chapter, or as directed by the city manager, or its designee.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-77. Authority of the chief procurement officer.

All rights, powers, duties, and authority relating to the procurement and contracting of goods and/or services for the city, including the authority.

(1) To approve all purchases and awards up to $25,000.00;

(2) To certify for compliance with applicable procurement methods all purchases and awards not in excess of $50,000.00 for goods and services, and not in excess of $100,000.00 for contracts for public works and improvements, except as otherwise provided in this article; and

(3) To issue those purchase orders and change orders for the purchase of goods and services governed by this article, provided they are in conformance with the law and all applicable rules and regulations.

The city manager retains sole authority to execute contracts and agreements except for purchase orders and change orders.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-78. Delegation of authority by the chief procurement officer to other city purchasing agents.

The chief procurement officer may delegate the following duties to city purchasing agents, including those in the purchasing department and those assigned to other departments or offices, which duties shall be performed under the general supervision of and subject to the policies, procedures, regulations and forms issued by the chief procurement officer.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-79. General duties of city purchasing agents.

(a) To administer the procurement process for certain procurements as authorized by the applicable administrative policies and procedures of purchasing.

(b) To draft or cause to be drafted invitations for bids, requests for proposals, and other solicitations as may be permitted by law, and to prepare specifications or scope of work for same.

(c) To forecast departmental purchase requirements for future periods and to buy in quantities which are most economical for the city.

(d) To investigate new products and new sources of supply and to maintain, update and promulgate lists of qualified bidders and sources of professional services.

(e) To stimulate maximum competition among qualified suppliers of goods and services for the city's business.

(f) To provide for the inspection and testing of goods delivered in order to determine quantity, quality and adherence to provisions of invitations for bids, requests for proposals, and related specifications.

(g) To make transfers of supplies, materials and equipment which are not needed by a department or office to another department or office which may need them.

(h) To submit recommendations to the chief procurement officer concerning the operation of the city's procurement system.

(i) To take any other action consistent with existing law and with this article to make certain that city purchases, sales and leases are made on the basis of free and open competition, as prescribed in this article.

(j) To perform any other duty not inconsistent with existing law or this article.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-80. Responsibilities of the chief procurement officer relating to the Anti-Deficiency Act.

The chief procurement officer shall be responsible for the provisions relating to the Anti-Deficiency Act, set forth in sections 18-500 through 18-503, as follows:

(1) *Requisitions.* Assuring that all requisitions received have been properly authorized.

(2) *Purchase orders.* Assuring that the purchase order is issued for an amount not to exceed the amount set forth in the requisition, a resolution adopted by the city commission and any other legal authorization.

(3) *City-wide contracts.* Assuring that purchase orders authorized by a city-wide contract do not exceed the amount authorized by the city commission and any other legal authorization.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-81. Estimates of requirements.

All departments or offices of the city shall file with the chief procurement officer detailed estimates of all their requirements for supplies, materials, equipment and contractual services in such a manner, at such times, and for such future periods as the city manager may prescribe; provided that the length of the periods shall not be less than three months. The requirement for preparing such estimates shall in no way prevent any using department or office from filing with the chief procurement officer, at any time, a requisition for any supplies, materials, equipment or contractual services, the need for which was not foreseen when the detailed estimates were filed.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-82. Disposal of surplus city-owned personal property.

(a) When a surplus of city-owned personal property exists, the chief procurement officer may transfer it to any other department or office which has need for it. The chief procurement officer shall also have power to sell all such supplies, materials and equipment which have become unsuitable for city use or to exchange for or trade in the same for new supplies, materials and equipment. When such surplus supplies, material and equipment have a limited use other than by the city, the city commission may classify the same as category "A" or category "B" stock. Category "A" stock shall be available for disposition as the city's contribution or the city's commitment in support of a particular public purpose which may include those community civic or social service programs as may be authorized by the city commission. Category "B" stock shall be that stock of surplus supplies, material and equipment which is available for disposition pursuant to the terms and provisions of subsection (b) hereof; namely, sale to sister cities or municipalities of friendly foreign countries. Not for profit organizations which provide a public purpose shall be offered first consideration as recipients for the disposition of category "A" and "B" surplus stock. Except for category "A" stock or category "B" stock and except in those cases in which the chief procurement officer determines that it is not practical to do so, any department or office that provides surplus stock for any such transfer, sale, exchange or trade-in shall receive credit therefor, based on the fair market value of such surplus; and any department or office receiving such surplus stock shall receive corresponding debit therefor, such credit and debit to be charged to the respective budgets of the departments or offices involved.

(b) Notwithstanding the above provisions, when a foreign city enjoying a current, formally designated status as a "sister city," in accordance with the terms of Resolution No. 78-5, dated January 11, 1978, or a municipality of a friendly foreign country desires to purchase personal property owned by the city, including vehicles and equipment which are no longer needed for public use or which have become unsuitable for further use by the city, and where said property has been categorized as category "B" stock, such sale may be negotiated in accordance with the following procedure and criteria:

(1) All equipment proposed for sale to sister cities or municipalities of friendly foreign

countries must be declared surplus, following then-existing administrative procedures. All such equipment must be offered to sister cities for a period of 30 days before being offered for sale to such municipalities. Note: "Friendly foreign countries" means those countries against which there are no trade embargoes or travel prohibitions imposed by the executive branch of the U.S. government.

(2) The prices negotiated for such sale must be equal to or greater than the prices which would be reasonably anticipated from the sale of such surplus equipment through public auction. This condition may apply to the total sale of a number of pieces of equipment rather than individual piece prices for the aggregate return on a given sale in determining whether the negotiated price is equal to or greater than could be expected at a public auction.

(3) The negotiated unit price shall not include any transportation or shipping costs; these costs will be borne by the sister city or the municipality purchasing said equipment.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-83. Availability of funds.

Except in cases of emergency, the chief procurement officer, city manager or purchasing agents shall not issue any order for delivery on a contract or any open-market order unless and until availability of funds have been verified that there is to the credit of the using department or office a sufficient unencumbered appropriation balance, in excess of all unpaid obligations, to defray the cost of such supplies, materials, equipment or contractual services.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-84. Methods of source selection.

All purchases of goods, including but not limited to supplies, materials, equipment, printed materials and all purchases of services, including but not limited to personal, professional, management, technical, contractual and general services needed by the city, but not including legal services, may be obtained by contract or through city labor and materials and shall be exclusively made in the manner set forth in this article.

All invitation for bids, request for letters of interest, request for proposals, request for qualifications or any other method of source selection, whether formal or informal, to be issued by the city shall be developed or drafted by city employee(s) and in the event that the same are not developed or drafted by city employee(s), the non-city employee(s) or firm assisting, developing, or drafting any portion of the solicitation document shall be prohibited from competing for the award of any contract resulting from such process and shall be treated as part of the city's professional staff under the cone of silence, when applicable; this provision does not apply to circumstances whereby the city engages non-city employee(s) or firm to collect or provide industry comments, conduct market research, or provide technical data.

Any agreement for purchase entered into in any manner inconsistent with the procedures stated in this article by any person shall be voidable by the city.

(Ord. No. 12271, § 2, 8-22-02; Ord. No. 12949, § 2, 10-11-07)

Sec. 18-85. Competitive sealed bidding.

(a) *Conditions for use.* Competitive sealed bidding shall be used for the award of all contracts for goods, equipment and services over $25,000.00, except as otherwise provided for in this article, where it is both practicable and advantageous for the city to specify all detailed plans, specifications, standards, terms and conditions so that adequate competition will result and award may be made to the lowest responsive and responsible bidder principally on the basis of price; provided, however, when a responsive, responsible non-local bidder submits the lowest bid price, and the bid submitted by one or more responsive, responsible local bidders who maintain a local office, as defined in section 18-73, is within 15 percent of the price submitted by the non-local bidder, then that non-local bidder and each of the

aforementioned responsive, responsible local bidders shall have the opportunity to submit a best and final bid equal to or lower than the amount of the low bid previously submitted by the non-local bidder. Contract award shall be made to the lowest responsive, responsible bidder submitting the lowest best and final bid. In the case of a tie in the best and final bid between a local bidder and a non-local bidder, contract award shall be made to the local bidder. Notwithstanding the foregoing, the city manager may waive competitive sealed bidding methods by making a written finding which shall contain reasons supporting the conclusion that competitive sealed bidding is not practicable or is not advantageous to the city, which finding must be ratified and the award approved by an affirmative vote of four-fifths of the city commission or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation after a properly advertised public hearing. When competitive sealed bidding methods are waived, other procurement methods shall be followed except for the cone of silence provisions, which shall not be applicable. This section shall not apply to transfers to the United States or any department or agency thereof, to the state or to any political subdivision or agency thereof.

(b) *Invitation for bids.* An invitation for bids shall be issued and shall include, but not be limited to:

(1) Instructions and information to bidders concerning the bid submission requirements, including the time and date set for receipt of bids, the maximum time for bid acceptance by the city, the right of the city manager to reject all offers or bids, and any other special information;

(2) The purchase description, qualification factors, delivery or performance schedule, and such inspection and acceptance requirements as may not be included in the purchase description;

(3) The contract terms and conditions, including warranty and bonding or other security requirements, as applicable;

(4) The date, time and place at which any prebid conference may be held and whether attendance at such conference is a condition for bidding; and

(5) The place where any documents incorporated by reference may be obtained.

(c) *Bidders lists.* Bidders lists may be compiled to provide the city with the names of businesses which may be interested in competing for various types of city contracts. Unless otherwise provided, inclusion or exclusion of the name of a business does not indicate whether that business is responsible in respect to a particular procurement or otherwise capable of successfully performing a particular city contract.

(d) *Public notice.* Notice inviting bids shall be published in the city's procurement website and/or via the on-line procurement/bidding platform and/or a free online publication, unless a specified form of notice is required otherwise by Florida Statutes, for a reasonable time prior to bid opening. Such notice shall state the general description of the goods or services to be purchased, the place where a copy of the invitation for bids may be obtained, and the time and place for opening of bids. In addition, the chief procurement officer may solicit bids from all responsible prospective suppliers listed on a current bidders list by sending such bidders copies of the notice to acquaint them with the proposed purchase.

(e) *Prebid conferences.* Prebid conferences may be conducted to explain the requirements of the proposed procurement and shall be announced to all prospective bidders known to have received an invitation for bids. Conferences should be held long enough after the invitations for bids have been issued to allow prospective bidders to become familiar with the proposed procurement, but sufficiently before bid submission to allow consideration of the conference results in preparing their bids. Nothing stated at a prebid conference shall change the invitation for bids unless a change is made by written addendum, which shall be supplied to all those prospective bidders known to have received an invitation for bids.

All prebid conferences shall be recorded, and, if a transcript is made, such transcript shall be a public record.

(f) *Bid opening.* All bids shall be submitted through the city's on-line procurement/bidding platform no later than the time and date specified for submission. The amount of each bid and such other relevant information as may be deemed desirable, together with the name of each bidder, shall be recorded by the on-line procurement/bidding platform. The record and each bid shall be open to public inspection, to the extent consistent with applicable state laws.

(g) *Bid acceptance and evaluation.* Bids shall be evaluated based on the requirements set forth in the invitation for bids, which may include criteria to determine acceptability such as inspection, quality, technique, delivery and suitability for a particular purpose. Those criteria that will affect the bid price and be considered in evaluation for award, such as discounts, transportation costs, and total or life cycle costs shall be measured objectively. No criteria may be used in bid evaluation which were not set forth in the invitation for bids. The results of the evaluation and tabulation of bid prices shall be transmitted by the chief procurement officer to the city manager.

(h) *Award.* The procurement shall be awarded with reasonable promptness by written notice to the lowest responsive and responsible bidder, whose bid meets the requirements and criteria set forth in the invitation for bids except as otherwise provided in this section. For any procurement, including contracts, a bid to be awarded which exceeds $25,000.00 shall be awarded by the city manager only upon certification of the results of the evaluation and the bid tabulation by the chief procurement officer as being in compliance with competitive sealed bidding methods, except as otherwise provided in this article. Copies of the city manager's award shall be delivered to the chief procurement officer and all affected department directors.

All bid awards in excess of $50,000.00 must be approved by the city commission upon recommendation by the city manager. The decision of the city commission shall be final. Threshold amounts referenced herein shall include the values associated with potential options of renewal. Awards made by the city manager or by the city commission shall include authority for all subsequent options of renewal, if any. The aforementioned options of renewal shall be exercisable at the option of the city manager if, after review of past performance under the contract, the city manager determines, in his/her sole discretion, that exercise of the option of renewal is in the best interest of the city.

The city commission or the city manager shall have the authority to reject any or all bids or portions of bids, or to negotiate with the lowest bidder for better pricing.

In the event only one bid is received, the city may award to the sole bidder, negotiate for better pricing or may re-bid, whichever is in the best interest of the city.

The city manager shall submit to the city commission on a monthly basis a list of procurements or contracts awarded by the city manager. (Ord. No. 12271, § 2, 8-22-02; Ord. No. 13170, § 2, 5-13-10; Ord. No. 13275, § 2, 7-14-11; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13934, § 2, 10-22-20)

Sec. 18-86. Competitive negotiations/competitive sealed proposals.

(a) *Conditions for use.*

(1) Competitive negotiations/competitive sealed proposals shall be used in those circumstances in which it is both practicable and advantageous for the city to consider a range of competing plans, specifications, standards, terms and conditions so that adequate competition will result and award be made not principally on the basis of price, but to the respondent whose proposal contains the most advantageous combination of price, quality or other features. All contracts shall be signed by the city manager.

(2) A contract may be entered into by use of the competitive negotiation/competitive sealed proposal methods when:

a. The chief procurement officer determines that the complex special-

ized nature or technical details of a particular procurement make the use of competitive sealed bidding either not practicable or reasonable, or not advantageous to the city; or

b. Specifications or scope of work cannot be fairly or objectively prepared so as to permit competition in the invitation for bids; or

c. Technology, electronic, software, and system applications are available from a limited number of sources; or

d. Qualifications and the quality of the service to be delivered can be considered more important than price.

(3) Competitive negotiations/competitive sealed proposals shall be used in the procurement of personal and professional services except for:

a. Professional services as defined in Florida Statute § 287.055, as amended from time to time.

b. Legal services.

c. Services related to the cultural, educational, recreational or park activities provided by non-profit organizations within city parks. These services may be awarded without competitive negotiations if the city manager makes a written finding, supported by reasons, to the city commission that competitive negotiation methods are not practicable or advantageous. Such finding must be ratified and the award approved by an affirmative vote of four-fifths of the commission after a properly advertised public hearing.

d. Maintenance agreements to support proprietary software applications.

(b) *Competitive negotiations method.* Where the contract does not exceed $50,000.00, at least three written proposals shall be sought and the city shall enter into competitive negotiations to determine which proposal is most advantageous to the city. The written proposals received and the results of the evaluation shall be maintained as a public record. The contract may be awarded by the city manager upon certification of compliance with competitive negotiations method by the chief procurement officer. The city manager shall submit to the city commission on an annual basis a list of contracts awarded by the city manager through this method.

(c) *Competitive sealed proposal method.* Where the contract exceeds $50,000.00, the city may utilize the following competitive sealed proposal method:

(1) Request for proposals (RFP) or request for letters of interest (RFLI) or request for qualifications (RFQ) setting forth the terms and conditions of the professional or personal services sought, including but not limited to, scope of work and evaluation factors, shall be issued. The RFP, RFLI or RFQ, as applicable, may, in the exercise of the reasonable professional discretion of the city manager, director of the using agency, and the chief procurement officer, include a five percent evaluation criterion in favor of proposers who maintain a local office, as defined in section 18-73. In such cases, this five percent evaluation criterion in favor of proposers who maintain a local office will be specifically defined in the RFP, RFLI or RFQ, as applicable; otherwise, it will not apply. All RFPs involving major projects must be reviewed by the office of the independent auditor general ("auditor general") prior to submittal to the city commission for consideration. Additionally, after city commission is an award pursuant to a RFP for a major project, all resultant agreements must also be reviewed by the auditor general prior to execution.

(2) Mailing lists. Lists of prospective proposers/respondents may be compiled pursuant to section 18-85 (competitive sealed bidding).

(3) Public notice. Adequate public notice in the city's procurement website and/or via the on-line procurement/bidding platform, unless a specific form of notice is required otherwise by Florida Statutes, shall be provided pursuant to section 18-85.

(4) Pre-proposal conference. A pre-proposal conference may be conducted to explain the requirements of the proposed procurement and shall be announced to all prospective proposers known to have received an RFP, RFLI, or RFQ. Conferences should be held long enough after the RFP, RFLI, or RFQ has been issued to allow prospective proposers to become familiar with the proposed procurement, but sufficiently before receipt of proposal to allow consideration of the conference results in preparing their proposals. Nothing stated at a pre-proposal conference shall change the RFP, RFLI, or RFQ unless a change is made by written addendum, which shall be supplied to all those prospective proposers known to have received an RFP, RFLI, or RFQ. All pre-proposal conferences shall be recorded, and, if a transcript is made, such transcript shall be a public record.

(5) Receipt of proposals. Sealed proposals shall be submitted through the city's on-line procurement/bidding platform no later than the time and date specified for submission in the request for proposals or request for letters of interest or requests for qualifications. The name of each proposer shall be recorded by the on-line procurement/bidding platform, and the record and each proposal, to the extent consistent with applicable state law, shall be open to public inspection.

(6) Proposal evaluation. An evaluation committee shall be appointed by the city manager for the purpose of evaluating proposals based upon the criteria contained in the RFP, RFLI or RFQ. No other factors or criteria shall be used in the evaluation. As may be provided in the RFP, RFLI or RFQ, proposers may be invited to make oral presentations regarding their Proposals. The recommendations of the evaluation committee shall be submitted to the city manager.

In the event only one proposal is received, the evaluation committee may proceed with the evaluation, or request the city manager to reject all proposals, whichever is in the best interests of the city.

a. After reviewing the evaluation committee's recommendation, the city manager may:

    1. Approve the recommendation of the evaluation committee, and the city manager shall then authorize contract negotiations through city staff. Upon completion of contract negotiations, the city manager shall then submit his or her award recommendation and negotiated contract(s) to the city commission for approval, at which time, written notice shall be provided to all proposers;

    2. Approve the recommendation of the evaluation committee, written notice of which shall be provided to all proposers, and the city manager shall then submit his or her recommendation to the city commission;

    3. Reject the evaluation committee's recommendation and instruct the evaluation committee to re-evaluate and make further recommendations;

    4. Reject all proposals; or

    5. Recommend that the city commission reject all proposals.

b. After reviewing the city manager's recommendation, the city commission may:

    1. Approve the city manager's award recommendation and negotiated contract(s);

2. Approve the city manager's recommendation and authorize contract negotiations;

3. Reject all proposals;

4. Reject all proposals and instruct the city manager to reissue a solicitation; or

5. Reject all proposals and instruct the city manager to enter into competitive negotiations with at least three individuals or firms possessing the ability to perform such services and obtain information from said individuals or firms relating to experience, qualifications and the proposed cost or fee for said services, and make a recommendation to the city commission.

(7) Award. Award shall be made to the responsive and responsible proposer whose proposal is most advantageous to the city as determined by the city commission in accordance with the evaluation criteria contained in the RFP, RFLI or RFQ.

The decision of the city commission shall be final. Written notice of the award shall be given to the successful proposer.

Threshold amounts referenced herein shall include the values associated with potential options of renewal. Awards made by the city manager or by the city commission shall include authority for all subsequent options of renewal, if any. The aforementioned options of renewal shall be exercisable at the option of the city manager if, after review of past performance under the contract, the city manager determines in his/her sole discretion that exercise of the option of renewal is in the best interest of the city.
(Ord. No. 12271, § 2, 8-22-02; Ord. No. 13275, § 2, 7-14-11; Ord. No. 13538, § 2, 7-23-15; Ord. No. 13667, § 2, 3-9-17; Ord. No. 13934, § 2, 10-22-20)

Sec. 18-87. Professional services as defined in F.S. § 287.055, as amended from time to time; award of certain professional agreements not exceeding $500,000.00 by the city manager.

(a) In the procurement of professional services covered by the Consultant's Competitive Negotiation Act, the provisions of F.S. § 287.055, as amended, as supplemented by applicable provisions of the procurement ordinance, shall govern.

(b) The city manager is authorized to promulgate and implement administrative procedures not inconsistent with Florida Statutes or the purchasing ordinance.

(c) Definitions. For purposes of this section the following words shall have the meanings ascribed to them in the Consultant's Competitive Negotiation Act, F.S. § 287.055, as amended:

(1) Agency.

(2) Firm.

(3) Compensation.

(4) Agency official.

(5) Project.

(6) Continuing contract.

(7) Design-build firm.

(8) Design-build contract.

(9) Design criteria package.

(10) Design criteria professional.

(11) Professional services.

The following are additional definitions not defined in CCNA that may apply to projects under this section:

(12) Value-analysis means an organized approach to optimizing both cost and performance in a new or existing facility or eliminating items that add cost without contributing to required function.

(13) Life-cycle costing means that process whereby all the expenses associated with the operation, maintenance, repair, replacement, and alteration costs of a facility are included.

(14) Capital Improvements Program (CIP) shall mean the work and materials authorized for construction, rehabilitation, restoration or betterment of streets, avenues and other public thoroughfares, public parks, buildings, and/or other public properties, and other municipal public improvements included within the city's adopted Capital Improvement Program, as amended or modified by the city commission from time to time.

(d) File of qualifications for CCNA firms. In the procurement of professional services covered by CCNA, the chief procurement officer may encourage the firms engaged in the lawful practice of their professions to submit a statement of qualifications and performance data. This information shall be held in the purchasing division and shall become part of the basis for selection of professional firms to serve the city. The list of qualifications shall contain the type of services provided by each firm, the staff available, their areas of specific expertise, and any forms then currently required by the city, the county or the state. The city may request supplemental information from any firm to be kept on file.

(e) Public announcement. The chief procurement officer shall publicly announce as required by the Consultant's Competitive Negotiation Act, F.S. § 287.055, as amended, each such occasion when Professional Services are required. The public announcement shall be made in a uniform and consistent manner.

(f) Review of qualifications. A selection committee appointed by the city manager shall review all qualifications and submittals of those firms responding to the public announcement for professional services issued by the city. As provided by CCNA, the firms desiring to provide professional services must first be certified by the city as fully qualified to provide the required service. Among the factors to be considered in making this finding are the capabilities, adequacy of personnel, past record, and experience of the firm.

(g) Short list. The selection committee shall reduce the number (short-list) at least three firms for further discussion. This requirement is not applicable if fewer than three firms deliver submittals.

(h) The committee shall conduct discussions with, and may require public presentations by, no fewer than three firms. The requirements for the discussion or presentation will be the same for each firm short-listed. The committee shall select, in order of preference, no less than three firms (unless fewer than three firms deliver submittals) determined to be the most highly qualified to perform the required services. In making such determinations the committee shall consider the factors set forth in CCNA, as amended. Any applicable local preference awarded pursuant to law shall not violate the principal of selection of the most qualified firm.

(i) Ranking reported. On completion of the committee selection process the committee shall report the ranking order of the firms to the city manager. The city manager shall immediately advise the mayor and city commission in writing of the three or more firms selected and their ranking order of preference. The city clerk will be provided with a copy of each report and memo referenced in this section.

(j) Negotiations proceed if no concern is expressed. If no commissioner or the mayor individually indicate a concern with the ranking of the selection committee within five working days of the transmittal of the memo reporting the ranking the city manager will proceed with negotiations.

(k) Procedure if a concern is expressed. If the mayor or a commissioner have concerns which cannot be resolved without impacting the order of the ranking or selection, an item shall be placed before the city commission to approve the selection and ranking or, alternatively, to refer the item back to the selection committee.

(l) Negotiations. The city manager may, after five consecutive business days of notification of the ranking to the mayor and the city commission attempt to negotiate with the highest ranked firm to perform services at compensation which is, in the opinion of the city manager, determined to be fair and reasonable. Compensation include all reimbursable expenses. If the city manager is unable to negotiate a satisfactory contract with the firm obtaining the highest-ranking negotiations with that highest ranked firm shall be terminated. The city manager shall then undertake negotiations with the second ranked firm. If these negotiations also prove unsatisfactory, negotiations will again be terminated and the city manager will negotiate, in turn, with each firm in accordance with it's ranking by the committee, until an agreement is reached, or the short list is exhausted. When a short list is exhausted, a new solicitation shall be initiated by the city, unless otherwise decided by the city commission.

(m) Award of contract. Notwithstanding any other provision of the purchasing ordinance, at the successful conclusion of negotiations the city manager may award and execute contracts for professional services, as defined by CCNA, which do not exceed $500,000.00 in total compensation. The decision of the city manager shall be final. Compensation referenced herein shall include all reimbursable expenses and contract values associated with potential options for renewal. All professional service contract awards of $500,000.00, or more in total compensation under this section shall be made by the city commission, whose decision shall be final.

Awards made by the city manager or city commission, as applicable, shall include authority for all subsequent options of renewal, if any.

(n) Report to city commission. The city manager shall submit to the city commission, on a quarterly basis, a listing of any contracts including the names of the firms, the names of the projects, and the amount of compensation of any contracts the city manager has awarded under this section.

All contracts awarded under this section shall be executed by the city manager, approved as to insurance requirements by the risk manager, and approved as to legal form by the city attorney.

(o) Delegation of authority. Excepting the execution of contracts, the city manager may delegate his or her duties under this section to the chief procurement officer or the administrative head of the using agency.

(p) Small business enterprise ("SBE") participation requirements. Except where state or federal laws, regulations, or grant requirements mandate to the contrary, and subject to reservations or limitations provided in state, federal, or city laws, regulations, or grant requirements, firms must assign a minimum of 15 percent of the contract value to firms currently certified by Miami-Dade County as a SBE if it is included in the request for proposals ("RFP"), request for letters of interest ("RFLI"), request for qualifications ("RFQ"), or other solicitation for professional services. Firms shall place a specific emphasis on using SBEs from within the city's municipal boundaries. All RFP's, RFQ's and RFLI's shall include provisions in the evaluation criteria that award five bonus points to firms who meet the SBE participation requirement through use of the firms from within the city's municipal boundaries. The adoption of these provisions in the procurement ordinance by the city will be deemed an adoption by the city, as herein modified, and as may be amended from time to time by the Miami-Dade County SBE Program for Architectural, Landscape Architectural, Engineering, and Surveying and Mapping Professional Services ("SBE A/E") as set forth in Section 2-10.4.01, Miami-Dade County Code. The definitions, program components, certification requirements, sanctions for contractual violations, and administrative penalties, from Section 2-10.4.01 of the Miami-Dade County Code, as amended, are deemed as being incorporated by reference herein.

SBE participation requirements shall apply only to contracts with a professional services contract value greater than $100,000.00 that include such requirement in the RFP, RFQ, RFLI or other solicitation for professional services.

These SBE participation requirements shall apply to any competitively procured contract under this section unless:

(1) It meets one of the exclusion provisions noted above or is not included in the solicitation for professional services;

(2) The city manager or designee deems the requirements unfeasible prior to issuance of the competitive selection document in which case the requirements of this section will be stated as not being applicable in the competitive selection document;

(3) It is disallowed by federal or state law;

(4) Funding sources require alternate, contradictory, or specifically exclude SBE participation requirements;

(5) These requirements are waived by the city commission by resolution, prior to issuance of the competitive solicitation document, upon written recommendation of the city manager or manager's designee, when the commission finds this is to be in the best interest of the city, in which case the requirements of this section will be stated as not being applicable in the competitive selection document.

(q) Consultant qualification process.

(1) This section will establish minimum qualifications for consultants engaged pursuant to F.S. § 287.055, and section 18-87 of the City Code. This section will also apply to consultants performing professional services including, without limitation, a planning or study activity and professional transportation related services, including transportation corridors, transportation facilities, utility, traffic studies, and right-of-way professional services.

(2) Application for qualification. A professional consultant who desires to qualify for either a city prequalification pool for architecture and engineering ("A&E") services or a city project with construction costs exceeding the threshold amounts provided in F.S. § 287.017, in Category Two for a planning or study activity or in F.S. § 287.017, for Category Five for the estimate of the construction costs, will submit a proposal to the city's RFQ for professional consultants through the city's online bidding platform for the specific prequalification A&E, surveying and mapping pool being solicited, or stand-alone project RFQ or RFP for a design build project the city is soliciting.

(3) City staff shall examine the proposal submitted in response to an RFQ or RFP.

(4) City staff shall make such inquiries and/or investigations as deemed necessary to verify and evaluate the proposer's statements and determine competency for qualification.

(5) Information which city staff shall consider in determining whether a professional consultant is qualified to perform the solicited types of work shall include, but not be limited to:

a. Current license or registration as regulated by the State of Florida or national organizations/governmental agencies, as appropriate.

b. Personnel with appropriate experience and training as detailed in the type of work qualifications.

c. Registration, currently in good standing, with the Florida Department of State if the applicant is a corporation, limited partnership, limited liability company, or similar business entity.

d. Past performance on city contracts including city agencies and instrumentalities.

e. Integrity, reliability, and responsibility, which shall include history of debarment or suspension from consideration for work with any governmental entity.

f. History of conviction(s) of a contract crime pursuant to F.S. § 337.165, or of a public entity crime pursuant to

F.S. § 287.133, by the applicant or its affiliate or subsidiary, including reapplication or reinstatement.

g. Any employment or otherwise providing compensation to any employee or officer of the city.

h. History of offering an employee or officer of the city any pecuniary or other benefit with the intent to influence his or her official action or judgment.

i. The acceptability of the supporting reimbursement rate, accounting system, and insurance information.

(6) The consultant shall provide additional/supplemental information and documentation upon the request of city staff.

(7) Notwithstanding the foregoing, the city shall have the right to deem a proposal submitted by a consultant non-responsive based on the criteria in chapter 18 of the City Code and the applicable solicitation document.

(8) Period of validity of qualifications. For prequalification A&E pools, consultants will be renewed annually pursuant to their respective contracts. Sixty days prior to the renewal date, the city's department of procurement will send a notification to the consultants in the pool that will include a renewal application to determine whether there have been significant changes to the consultant's qualifications. The consultant shall have 30 days to submit the renewal application to the city's department of procurement.

(9) Changes in qualification status.

a. A consultant shall submit a revised application in the event of a change in the status of its firm, including a change of ownership, a change in the form of business under which the firm operates, a change in any of the key staff used to qualify the firm to perform the work, or any other change deemed material or substantial by the city's department of procurement when initially qualifying consultants.

b. A consultant need not submit a revised application solely because of any change in the officers or the name of the corporation; however, such information shall be certified and delivered to the city's department of procurement within 15 days of its occurrence.

(r) Consultant work performance evaluation system ("consultant evaluation system").

(1) Firms, entities, or persons as addressed in subsection (q)(1) above who are performing professional services for the city or any city agency or instrumentality shall be subject to the following consultant evaluation system. The using agency, through appropriate staff selected by the city manager or the director of the using agency, shall utilize established regulations to evaluate professional services contracts for all projects subject to competitive solicitations under F.S. § 287.055, as provided herein, including all projects in which the construction cost is estimated to exceed the threshold amount provided in Category Five under F.S. § 287.017. The staff evaluating the contract must include the using agency's project manager(s) and/or task manager(s) and must include any owner's representative who acted on behalf of the city. At the option of the city manager or the director of the using agency, said project manager(s) and/or task manager(s) may also serve on the staff evaluation group. This evaluation system will consider the consultant's performance for the entire length of the contract and goods and professional services provided or produced by the consultant. A copy of the completed evaluation shall be provided to the consultant's project manager and the chief procurement officer or designee and the city manager. A final composite evaluation of the consultant's contract performance shall be developed by combin-

ing all of the consultant's evaluations for the full length (duration) of the contract. The consultant's work performance on each professional services contract must be evaluated by the using agency's project manager(s) and/or task manager(s). A work performance grade of 1 through 5 for each major type of work shall be based on an evaluation of the schedule, including milestone dates, management, and quality. The management rating shall be based on an evaluation schedule, with one evaluation at 50 percent completion and a second evaluation at 100 percent completion. The management rating shall be based on the consultant's ability to manage all necessary project resources. The schedule rating shall be based on the consultant's compliance with the contract schedule. The quality rating shall be based on the consultant's attention to and concern with the established quality control plan and product quality. The project manager shall assign the quality rating to any consultant named in the agreement or its exhibits for any major type of work performed. For all professional services that result in the preparation of construction plans, a constructability rating shall also be assigned. The constructability rating shall be based on the design consultant's ability to develop practical, accurate, complete, and cost-effective construction plans.

(2) The rating system for all work types shall be on a 1 to 5 rating with 1 equating with poor performance and 5 representing outstanding performance.

(3) Each consultant in a prequalified pool will be evaluated at the end of each contract year considering all previous project evaluations and any vendor nonperformance for that contract year.

(4) The chief procurement officer is authorized to administratively promulgate and implement evaluation regulations. Such regulations and any amendments will be reported to the city manager, city attorney, mayor, and members of the city commission in writing. Such regulations may fully effectuate all the procedures for this section and shall be consistent with the city's procurement ordinance.

(5) Consultants with poor project evaluations are subject to the possibility of a suspension, termination, or debarment imposed by the city pursuant to the procedures set forth in section 18-107 of the City Code and the evaluation regulations. Consultant's previous city evaluations for the previous three years shall be considered at the time of prequalification in any city A&E pool or for standalone projects for which the consultant is submitting their qualifications.

(Ord. No. 12349, § 2, 3-27-03; Ord. No. 13331, § 2, 7-26-12; Ord. No. 14007, § 2, 6-10-21)

Editor's note—Ord. No. 12349, § 2, adopted March 27, 2003, amended § 18-87 in its entirety to read as herein set out. Formerly, § 18-87 pertained to professional services as defined in F.S. § 287.055, as amended from time to time, and derived from Ord. No. 12271, § 2, adopted August 22, 2002.

Sec. 18-88. Small purchases.

(a) *Conditions for use.* All purchases of goods, supplies, equipment, and services, the estimated cost of which does not exceed $25,000.00 may be made using the simplified small-purchase procedures prescribed in this section, except as otherwise provided in this article.

(b) *Division of requirements.* Procurement requirements shall not be artificially divided so as to permit use of small-purchase procedures described in this section instead of the methods otherwise applicable.

(c) *Soliciting quotations.* Goods, supplies, equipment and contractual services.

(1) *Small purchases more than $10,000.00.* Insofar as it is practicable, as determined by the chief procurement officer, for small purchases of more than $10,000.00, at least five quotations shall be sought. Award shall be made on the basis of competitive bidding, except as otherwise provided in this article. The names of the offerors submitting written, electronic or facsimile quotations, and the date and

amount of each quotation, shall be recorded and maintained as a public record.

(2) *Small purchases up to $10,000.00.* Insofar as it is practicable, as determined by the chief procurement officer, for small purchases of up to $10,000.00, at least three quotations shall be sought except as otherwise provided in this article. Award shall be made on the basis of competitive bidding. The names of offerors submitting written, electronic or facsimile quotations and the date and amount of each quotation, shall be recorded and maintained as a public record.

(3) *Small purchases up to $5,000.00.* The chief procurement officer shall adopt operational procedures for making small purchases up to $5,000.00. Such procedures shall provide for obtaining adequate and reasonable competition for the goods and services being purchased insofar as it is practicable and shall require the maintenance of adequate written records to document the purchasing decision. Such records shall be open to public inspection.

(d) *Award.*

(1) *Goods, supplies, equipment and contractual services.* Small purchases up to $25,000.00 shall be approved by the chief procurement officer on the basis of competitive bidding methods. However, if the amount of the quotation submitted by an offeror with a local office is not more than ten percent in excess of the lowest other responsive and responsible offeror, such offeror may be offered the opportunity of accepting the contract at the lowest informal bid amount. The chief procurement officer shall have the authority to reject any or all informal bids.

(2) *Professional and personal services.* Except for the performance of legal services, whenever the total cost for a contract for professional or personal services is $25,000.00 or less, one written proposal shall be sought and the award shall be made by the chief procurement officer on the basis of competitive negotiations.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-89. Contracts for public works or capital improvements.

(a) Any public work or capital improvement may be executed either by contract or by the city labor force, as may be determined by the city commission. There shall be a separate accounting as to each work or improvement. Before authorizing the execution by the city labor force of any work or improvement or phase thereof, the city manager shall submit to the city commission a description of the anticipated scope of work and related cost estimates.

(b) All contracts for public works or capital improvements in excess of $25,000.00 shall be awarded to the lowest responsive and responsible bidder after public notice on the basis of competitive sealed bidding methods, as provided herein or as provided in applicable Florida Statutes, whichever is determined to be in the best interest of the city. For contracts for public works and improvements in excess of $25,000.00 where it is both practicable and advantageous for the city to specify all detailed plans, specifications, standards, terms and conditions so that adequate competition will result and award may be made to the lowest responsive and responsible bidder principally on the basis of price; provided, however, when a responsive, responsible non-local bidder submits the lowest bid price, and the bid submitted by one or more responsive, responsible local bidders who maintain a local office, as defined in City Code section 18-73, is within 15 percent of the price submitted by the non-local bidder, then that non-local bidder and each of the aforementioned responsive, responsible local bidder(s) shall have the opportunity to submit a best and final bid equal to or lower than the amount of the low bid previously submitted by the non-local bidder. Contract award shall be made to the lowest responsive, responsible bidder submitting the lowest best and final bid. In the

case of a tie in the best and final bid between a local bidder and a non-local bidder, contract award shall be made to the local bidder.

Notwithstanding the foregoing, the city manager may establish a pool of pre-qualified contractors for the city construction projects ("pilot program"). The prequalification pool of contractors for city construction projects pilot program ("pool"), will participate in an expedited, competitive sealed bidding process, as identified in Exhibit "A" [to Ord. No. 13625], which is deemed as being incorporated by reference herein.

Notwithstanding the foregoing, the city manager may waive competitive sealed procurement methods by making a written finding, supported by reasons, that a valid emergency exists or that there is only one reasonable source of supply, which finding must be ratified by an affirmative vote of four-fifths of the city commission after a properly advertised public hearing. When competitive sealed procurement methods are waived, other procurement methods as may be prescribed by ordinance shall be followed, except for the cone of silence provisions.

(c) Public notice shall be in accordance with the applicable Florida Statutes.

(d) Award.

(1) All contracts for public works or capital improvements which do not exceed $25,000.00 shall be awarded on the basis of competitive negotiations.

(2) All contracts for public works or capital improvements of $25,000.00 or more shall be awarded by the city manager only upon certification of the results of the evaluation and the bid tabulation by the chief procurement officer as being in compliance with competitive sealed procurement methods or in accordance with applicable Florida Statutes.

(3) All contracts in excess of $100,000.00 must be approved by the city commission upon recommendation by the city manager. The decision of the city commission shall be final.

(4) The city commission or the city manager shall have the authority to reject any or all bids or portions of bids, and re-bid or elect not to proceed with the project.

(5) When it becomes necessary in the opinion of the city manager to make alterations or modifications in a contract for any public work or improvement which increases the contract to a total amount in excess of $100,000.00, such alterations or modifications shall be made only when authorized by the city commission upon the written recommendation of the city manager. No such alteration shall be valid unless the price to be paid for the work or material, or both, under the altered or modified contract shall have been agreed upon in writing and signed by the contractual party and the city manager prior to such authorization by the city commission.

(6) Copies of the city manager's award shall be delivered to the director of the department of resilience and public works and to the chief procurement officer.

(7) The city manager shall submit to the city commission on a monthly basis a list of contracts for public works or capital improvements awarded by the city manager.

(e) Small business enterprise ("SBE").

(1) Except where state or federal law, regulations, or grant requirements mandate to the contrary, and subject to reservations or limitations provided in state, federal, or city laws, regulations, or grant requirements, respondents must assign a minimum of 15 percent of the contract value to a respondent or to a construction related enterprise currently certified by Miami-Dade County as a Small Business Enterprise ("SBE"). Respondents shall place a specific emphasis on utilizing local small businesses from within the city's municipal boundaries. The adoption of these provisions in the procurement ordinance of the city will be deemed an adoption by the city, as herein modi-

fied, and as may be amended from time to time of the Miami-Dade County SBE Program, as set forth in section 10-33.01, section 10-33.02, Miami-Dade County Code. The definitions, program components, subcontractor goals, contract measures, certification requirements, enforcement and administrative remedies from section 10-33.02, of the Miami-Dade County Code, as amended, are deemed as being incorporated by reference herein.

(2) Five percent of the bid amount shall be retained by the city for the SBE participation requirements until said requirements are fulfilled and verified by the city manager or authorized designee as being fulfilled within six months of contract completion; failure to satisfactorily meet, document, and present to the city manager or authorized designee the SBE requirements within six months of contract completion shall result in the forfeiture of the retained amount to the city. This five percent retainage is included within the ten percent retainage normally withheld by the city.

(3) The respondent selected as the contractor shall have a third party independently verify and certify compliance with these requirements on a quarterly basis. Said third party shall be unaffiliated with the respondent and be properly licensed under the provisions of F.S. chs. 454, 471, 473, or 481. The person performing the verification shall have a minimum of two years of prior professional experience in contracts compliance, auditing, personnel administration, or field experience in payroll, enforcement, or investigative environment. The cost for this verification and certification shall be included in the related contract costs.

SBE requirements shall apply only to contracts with a contract value greater than $100,000.00 and with an on-site labor component greater than or equal to 25 percent of the contract value.

These SBE requirements shall apply to any competitively procured contract under this section unless:

- It meets one of the exclusion provisions noted above;
- The city manager or designee deems the requirements unfeasible prior to issuance of the competitive selection document in which case the requirements of this section will be stated as not being applicable in the competitive selection document;
- It is disallowed by federal or state law;
- Funding sources require alternate, contradictory or specifically exclude SBE participation requirements;
- These requirements are waived by the city commission by resolution, prior to issuance of the competitive solicitation document, upon written recommendation of the city manager or manager's designee, when the commission finds this is to be in the best interest of the city, in which case the requirements of this section will be stated as not being applicable in the competitive selection document.

(f) Local workforce participation requirements.

(1) Except where state or federal law, regulations, or grant requirements mandate to the contrary, and subject to reservations or limitations provided in state, federal, or city laws, regulations, or grant requirements, respondents must employ the following minimum percentage requirements for on-site labor from persons residing within Miami-Dade County (an individual whose primary place of residence is within Miami-Dade County), for the duration of the project. City construction contracts with a construction cost of up to $250,000.00 shall have no local workforce participation requirement. Construction contracts with a construction cost of $250,000.00 or more but less than $500,000.00 shall have a minimum local workforce participation requirement of ten percent. Construction contracts with

a construction cost of $500,000.00 or more but less than $750,000.00 shall have a minimum local workforce participation requirement of 15 percent. Construction contracts with a construction cost of $750,000.00 or more but less than $4,000,000.00 shall have a minimum local workforce participation requirement of 20 percent. Construction contracts with a construction cost of $4,000,000.00 or more shall have a minimum local workforce participation requirement of 40 percent. "Construction costs" as referenced herein shall mean the total or estimated cost to the owner of all elements of the project being awarded, including, at current market rates, (with reasonable and customary allowance for overhead and profit), the costs of labor and materials, and any equipment or supplies that have been specified in the competitive solicitation document, but not including compensation for the architect, engineer, landscape architect, surveyor, mapper, or similar professional consultants. Local workforce participation requirements must be met by new hires and "laborer" as referenced herein shall mean a person as defined by F.S. § 713.01, who is retained by the contractor. All local workforce participation percentage requirements listed above shall be applied on the construction project's on-site labor force. The contractor shall strive to employ a minimum of 50 percent of the aforementioned minimum local workforce participation percentage requirements from within the city commission district where the project is located (e.g. if the project is in District X and the minimum local participation percentage requirement is ten percent then the contractor shall make its best efforts to employ a minimum of five percent of the required local workforce from District X). The county residency of the onsite labor component will be subject to verification by the issuing department.

(2) Five percent of the bid amount shall be retained by the city for the local requirements until said requirements are fulfilled and verified by the city manager or authorized designee as being fulfilled within three months of contract completion. Failure to satisfactorily meet, document, and present to the city manager or authorized designee the local workforce participation requirements within three months completion after the project has reached final completion, shall result in the forfeiture of the retained amount to the city. This five percent retainage is included within the ten percent retainage normally withheld by the city and will comply with percentages specified in F.S. § 218.735.

(3) For contracts with a bid amount between $1,000,000.00 and $2,000,000.00, the contractor shall be required to hold one job fair within the local community for the purpose of encouraging local workforce participation. For contracts with a bid amount greater than $2,000,000.00, the respondent shall be required to hold two job fairs within the local community for the purpose of encouraging local workforce participation. The contractor shall coordinate job fairs and hiring initiatives with South Florida Workforce or a similar state chartered regional workforce development board acceptable to the city manager.

(4) Bid and proposal documents to which a local workforce participation requirement goal has been applied shall require the contractor to develop and submit to the city, within 30 days of notification of award of the construction contract, a workforce plan (plan) outlining how the goal will be met and containing the following information and elements required by this section. The plan shall specify the total number of persons that will be used by the contractor, broken down by trade and labor category, minimum qualifications for each category, and the number of persons to be utilized in each category.

The plan shall identify by name, address, and trade category of all persons proposed to perform work under the contract currently on the contractor's payroll or positions to be hired by the contractor, who reside within Miami-Dade County. The city will not enter into the contract until it receives the contractor's plan and deems the plan acceptable. An updated plan shall be submitted to the city's project manager on a monthly basis. In the event that during the contract period a new hire or a person identified in the plan as meeting the local workforce participation requirement goal is replaced, the city may require the contractor to immediately identify the replacement. Notwithstanding anything to the contrary above, the contractor may be relieved from the requirements of this provision, in part or in whole, if such contractor can demonstrate that it has utilized its best efforts to achieve the goal in accordance with the prescribed provisions under this section.

(5) The respondent shall have a third party independently verify and certify compliance with these requirements on a quarterly basis. Said third party shall be unaffiliated with the respondent and be properly licensed under the provisions of F.S. ch. 454, 471, 473, or 481. The person performing the verification shall have a minimum of two years of prior professional experience in contracts compliance, auditing, personnel administration, or field experience in payroll, enforcement, or investigative environment. The cost for this verification and certification shall be included in the related contract costs.

The city shall consider the contractor's adherence to the city's local workforce participation requirements within the past three years in making any future contract awards to which this section applies. The solicitation documents will include the contractor's past compliance with these requirements of the city.

Local participation requirements shall apply only to public works or capital improvements contracts with a contract value greater than $250,000.00 and with an on-site labor component greater than or equal to 25 percent of the contract value.

These local workforce participation requirements shall apply to any competitively procured contract under this section unless:

- It meets one of the exclusion provisions noted above;
- The city manager or designee deems the requirements unfeasible prior to issuance of the competitive solicitation document, in which case the requirements in this section will be stated as not being applicable in the competitive solicitation document;
- It is disallowed by federal or state law or grant requirements;
- Funding sources require alternate, contradictory or specifically exclude or disallow local workforce participation requirements;
- These requirements are waived by the city commission by resolution, prior to issuance of the competitive solicitation document, upon written recommendation of the city manager or manager's designee, when the commission finds this is to be in the best interest of the city, in which case the requirements of this section will be stated as not being applicable in the competitive selection document.

(g) Contractor work performance evaluation system ("contractor evaluation system").

(1) Firms, entities, or persons addressed in section 18-89 of the City Code who are performing construction work, public works, or capital improvements for the city or any city agency or instrumentality will be subject to the following contractor evaluation system. The city, through appropriate staff selected by the city manager or the city agency or instrumentality through appropriate staff selected by the director of the using agency or instrumentality, will utilize

established regulations to evaluate construction contracts for all projects subject to competitive solicitations under F.S. § 255.20, as provided herein and/or all construction work awarded by the city commission or a using agency or instrumentality pursuant to the City Code. The staff evaluating the contract must include the city's or using agency's project manager(s) and/or task manager(s) and must include any owner's representative who acted for the city or the using agency or instrumentality. At the option of the city manager or the director of the using agency or instrumentality or their designees, the project manager(s) and/or task manager(s) may also serve on the staff evaluation group. This contractor evaluation system will consider the contractor's performance for the entire length of the contract and goods and services provided or produced by the contractor including any change orders. A copy of the completed evaluation shall be provided to the contractor's construction manager or superintendent, the chief procurement officer or designee, and the city manager or using agency or instrumentality director who executed the agreement. A final composite evaluation of the contractor's contract performance shall be developed by combining all the contractor's evaluations for the full length (duration) of the contract. The contractor's work performance on each construction contract must be evaluated by the using agency's project manager(s) and/or task manager(s). A work performance grade of 1 through 5 for each major type of construction project (i.e. vertical, horizontal, electrical, etc.) shall be based on an evaluation of the schedule, including milestone dates, management, and quality. The schedule rating shall be based on contractor's compliance with the contract schedule and contract budget. The management rating shall be based on an evaluation schedule with one evaluation at 50 percent completion, a second evaluation at or about 75 percent substantial completion, and a final evaluation upon contract close out. The management rating shall be based on the contractor's ability to manage all necessary project resources, contract schedule, and contract budget. The quality rating shall be based on the contractor's attention and concern to the established quality control plan and product quality. The project manager shall assign the quality rating to any subcontractor named in the agreement or its exhibits for any major type of work performed. For all construction work that results from construction plans, a constructability rating shall also be assigned. The constructability rating shall be based on the contractor's ability to develop practical, accurate, complete, and cost-effective staffing, materials, supplies, equipment, satisfactory work progress, and scheduling.

(2) The rating system for all work types shall be on a 1 to 5 rating with 1 equating with poor performance and 5 representing outstanding performance.

(3) Each contractor in a prequalified pool will be evaluated at the end of each contract year considering all previous project evaluations and any vendor nonperformance for that contract year.

(4) The chief procurement officer is authorized to administratively promulgate and implement evaluation regulations. Such regulations and any amendments will be reported to the city manager, city attorney, mayor, and members of the city commission in writing. Such regulations may fully effectuate all the procedures for this section and shall be consistent with the procurement code.

(5) Contractors with poor project evaluations are subject to the possibility of a suspension, termination, or debarment imposed by the city in accordance with the procedures set forth in section 18-107 of the City Code and the evaluation regulations.

(6) Furthermore, contractor's previous city evaluations for the prior three years shall be considered at the time of prequalification in any city construction contractor pool or for stand-alone projects for which that contractor is submitting a bid or proposal.

(Ord. No. 12271, § 2, 8-22-02; Ord. No. 12654, § 2, 2-10-05; Ord. No. 12780, § 2, 3-9-06; Ord. No. 13275, § 2, 7-14-11; Ord. No. 13331, § 2, 7-26-12; Ord. No. 13332, § 2, 7-26-12; Ord. No. 13493, § 2, 1-22-15; Ord. No. 13625, § 2, 9-8-16; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14007, § 2, 6-10-21)

Editor's note—Ord. No. 14007, § 2, adopted June 10, 2021, changed the title of section 18-89 from "Contracts for public works or improvements" to "Contracts for public works or capital improvements." The historical notation has been preserved for reference purposes.

Sec. 18-90. Emergency procurements.

In case of emergency, it is not advantageous or practicable for the city to use competitive bidding methods. Therefore, the city may purchase directly those goods or services whose immediate procurement is essential to the life, health, welfare, safety or convenience of the city. Such emergency procurements shall nevertheless be made with such competition as may be practicable under the circumstances.

(1) In seeking a waiver of competitive bidding methods for emergency procurements that do not exceed $25,000.00, the head of the using department or office shall submit to the chief procurement officer in writing a full explanation of the circumstances of the emergency and the reasons for selection of a particular firm, along with a list of others which may have been solicited, with an approved requisition by the director of the requesting department.

(2) In seeking the waiver of competitive sealed bidding methods for emergency procurements exceeding $25,000.00, the head of the using department or office shall submit to the chief procurement officer and the city manager in writing a full explanation of the circumstances of the emergency and the reasons for selection of a particular firm, along with a list of others which may have been solicited, and certification of fund availability from the director of the department of management and budget. The city manager may then waive competitive sealed bidding requirements after making a written finding, supported by reasons, that an emergency exists. Such finding must be ratified by an affirmative four-fifths vote of the city commission or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation at the next available city commission meeting.

(3) Notwithstanding anything to the contrary contained in this Code, the city manager may direct the chief procurement officer to purchase directly those goods and/or services required by the urban search and rescue task force when activated to perform its obligations under the existing provisions of the memorandum of understanding with the state and/or the Federal Emergency Management Agency (FEMA). Such emergency procurements shall nevertheless be made with such competition as may be practicable under the circumstances. If necessary, the city manager may waive competitive sealed bidding methods for such emergency procurements, after making a written finding, supported by documentation that the urban search and rescue task force has been officially activated. Such finding and waiver must be ratified by an affirmative four-fifths vote of the city commission or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation at the next regularly available city commission meeting for contracts exceeding $25,000.00.

All emergency awards shall be filed and maintained by the purchasing department as a permanent and public record of the purchase.

(Ord. No. 12271, § 2, 8-22-02; Ord. No. 13170, § 2, 5-13-10)

Sec. 18-91. Cancellations.

The city shall have the right to cancel all invitations for bids, requests for proposals, request for quotations, or other solicitations before bid opening, proposal submission, or receipt of quotations and to reject all bids, proposals, quotations, or offers after receipt. All invitations for bids, requests for proposals, request for quotations, or other solicitations shall contain a reservation of the foregoing rights. In the event of such cancellation or rejection, the chief procurement officer shall promptly notify all affected bidders or proposers and make available to them a copy of the written explanation for such cancellation or rejection, which shall be a public record.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-92. Sole-source contracts.

(a) *Conditions for use.* Since it is not practicable for the city to use competitive bidding methods to secure goods or services if there is only one reasonable source of supply, sole-source awards may be made as an exception to the other methods prescribed in this section under the following circumstances:

(1) Where the compatibility of equipment, accessories, or replacement parts permits one reasonable source of supply;

(2) Where the goods or services available from a single source are needed for trial use or testing; and

(3) Where the unique and specialized expertise of one source of services is unlikely to be obtained from any other source.

(b) *Determination, approval, and award.* The determination that an award shall be made on a sole-source basis shall be made by the chief procurement officer. Such determination shall be made in writing and provide complete justification as to why no other sources of goods or services could be obtained to meet the city's requirements. The determination shall also certify that the terms and conditions of the award have been negotiated so as to obtain the most favorable terms and conditions, including price, as may be offered to other customers or clients by the proposed contractual party. For all contracts in excess of $25,000.00, such determination shall be submitted to the city manager who may waive competitive sealed bidding after he or she makes a written finding, supported by reasons, that only one reasonable source of supply exists. Such finding must be ratified and the award approved by an affirmative four-fifths vote of the city commission or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation after a properly advertised public hearing.

(c) *Public notice and disclosure.* Notice that the city intends to award a sole-source contract exceeding $25,000.00 shall be published at least once in a newspaper of general circulation in the city prior to contract award, but in any event at least 15 calendar days shall intervene between the last date of publication and the date of award. Such notices shall state the intention to award a sole-source contract, the nature of goods or services to be acquired, the name of the

proposed contractual party, and the name and telephone number of a cognizant city official who may be contacted by other potential sources who feel they might be able to satisfy the city's requirements. A record of such notices and responses thereto shall be maintained in the contract file along with the written determination required above, and a compilation of all sole source awards shall be maintained by the chief procurement officer and shall include:

(1) The name of the sole-source contractual party;

(2) The nature of the goods or services procured;

(3) The reasons no other source could satisfy city requirements;

(4) The amount and type of contract; and

(5) The identification number for each contract file.

(Ord. No. 12271, § 2, 8-22-02; Ord. No. 13170, § 2, 5-13-10)

Sec. 18-93. Types of contracts.

Subject to the limitations of this section, any type of contract which will promote the best interests of the city may be used, except that the use of a cost-plus-a-percentage-of-cost contract is prohibited.

(1) *Fixed-price contracts.* Fixed-price contracts shall ordinarily be used for those purchases of goods and services or sales and leases where the terms, conditions, specifications and other factors of the contract can be specified with a high degree of certainty and where use of a fixed-price contract will result in substantial competition between bidders or offerors willing to compete for the contract. Incentives based on various performance factors and escalation clauses or other economic adjustments may be included as appropriate to serve the best interests of the city in achieving the most economical contract performance.

(2) *Cost-reimbursement contracts.* Cost-reimbursement contracts shall ordinarily be used for those purchases of goods and services or sales and leases where the terms, conditions, specifications and other factors of the contract cannot be specified with a high degree of certainty or the use of fixed-price contracts is not likely to result in substantial competition between bidders or offerors willing to compete for the contract. Incentives based on various performance factors and escalation clauses or other economic adjustments may be included as appropriate to serve the best interests of the city in achieving the most economical contract performance.

(3) *Blanket purchase orders.* The chief procurement officer or individual purchasing agents may issue purchase orders for indeterminate amounts of repair parts, supplies and services to the account of any department or office, but only when based upon a definite contract or price agreement which shall be negotiated in the same manner as if the item to be purchased thereunder were to be individually purchased or contracted for under the provisions of article III of this chapter. Such orders shall state a specific monetary limit which may not be exceeded except on written approval by the chief procurement officer.

(4) *Multi-year contracts.*

a. Unless otherwise provided by law, a contract for supplies or services, sales, or leases may be entered into for any period of time deemed to be in the best interests of the city, provided that the term of the contract and conditions for renewal or extension, if any, are included in the invitation for bids or request for proposals, and provided that funds are available for the first fiscal period at the time of contract award. Payment and performance obligations for succeeding fiscal periods shall be subject to the availability and appropriation of funds therefor and shall be so stipulated in the contract.

b. Prior to the utilization of a multiyear contract, it shall be determined in writing by the using department or office and by the chief procurement officer that the estimated requirements over the period of the contract are reasonably firm and continuing; and that such a contract will serve the best interests of the city by promoting more effective competition or otherwise promoting economies to the city.

c. Accounting suitability. Except with respect to firm fixed-price contracts with no provisions for incentives, escalation or any other adjustments, no type of contract shall be used unless it has been determined in writing by individual purchasing agent or the chief procurement officer that:

1. The accounting system of the contractual party will permit timely development of all necessary cost data in the form required by the specific type of contract contemplated; and

2. The accounting system of the contractual party is adequate to allocate costs in accordance with generally accepted accounting principles.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-94. Qualifications and duties of contractual parties.

The city shall attempt to secure the most qualified contractual parties in its dealings with the private sector in accordance with the provisions of this article. The chief procurement officer or individual purchasing agent shall determine responsibility as part of the duties and qualifications of prospective contractual parties in accordance with this article and other applicable laws and requirements, provided that the awarding authority may make its own determination.

(Ord. No. 12271, § 2, 8-22-02; Ord. No. 13379, § 2, 4-25-13)

Sec. 18-95. Determination of responsibility.

(a) Prior to contract award, the chief procurement officer or individual purchasing agent shall determine in writing that the bidder or offeror is responsible.

(b) If a prospective contractual party who would otherwise have been awarded a contract is found nonresponsible, a copy of the determination and the reasons therefor shall be sent promptly to such party, which shall be given a reasonable opportunity for rebuttal prior to a final determination of nonresponsibility.

(c) Factors to be considered in determining responsibility of prospective contractual parties shall include but not be limited to:

(1) Availability of appropriate financial, material, equipment, facility, and personnel resources and expertise, or the ability to obtain them, to meet all contractual requirements;

(2) A satisfactory record of performance;

(3) A satisfactory record of integrity;

(4) Qualified legal standing to contract with the city; and

(5) Compliance in supplying all requested information connected with the inquiry concerning responsibility.

(d) Prior to contract award, the city, through the chief procurement officer or individual purchasing agent, shall determine whether a prospective contractual party is a nonresponsible bidder or offeror, and, therefore, ineligible for the pending award when:

(1) The city has terminated, suspended or cancelled a city contract within the past five years, in whole or in part, for cause, due to a default by a bidder or offeror not otherwise formally debarred or suspended from doing business with the city pursuant to the provisions of section 18-107 herein, where a court of competent jurisdiction has not reversed the action on appeal; or

(2) A bidder or offeror has received a formal notice of delinquency by the city in writing of monies owed to the city within the past five years, and thereafter has either withheld payment, failed to pay moneys or is formally disputing the monies allegedly due to the city, unless the full amount of such moneys due the city have been (i) deposited with a court of competent jurisdiction in Miami-Dade County, Florida, pursuant to the provisions of Fla. R. Civ. P. 1.600 titled "Deposits in Court", as amended, or other applicable federal, state or local rules of court; or (ii) are placed in escrow pursuant to an escrow agreement negotiated with the city attorney; and are subject to distribution to the city or withdrawal by the city by order of the court or in accordance with the terms of an escrow agreement.

(e) The prospective contractual party shall provide any information requested by the chief procurement officer or purchasing agent concerning responsibility. If such contractual party fails to provide the requested information, the determination of responsibility may be made upon available information or the prospective contractual party may be found nonresponsible. The prospective contractual party may demonstrate the availability of necessary financial, equipment, facility, and personnel resources by submitting.

(1) Evidence that the contractual party possesses such necessary resources;

(2) Acceptable plans to subcontract for such necessary resources; or

(3) A documented commitment for, or explicit arrangement with, satisfactory sources to provide such necessary resources.

(Ord. No. 12271, § 2, 8-22-02; Ord. No. 13379, § 2, 4-25-13)

Sec. 18-96. Prequalifications.

Prospective contractual parties may be prequalified as part of the process for compiling bidder lists. Such prequalification, however, does not necessarily constitute a finding of responsibility for any particular contract award.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-97. Cost or pricing data.

(a) *Contractor certification.* A contractual party shall upon request make available all costs or pricing data supporting the bid or offer and shall certify that, to the best of its knowledge, such data was accurate, complete and current at the time of the submission of bids or offers or at the time of contract modifications.

(b) *Price adjustment.* Any contract, change order or modification shall contain a provision that the price to the city, including profit or fee, shall be adjusted to exclude any sums by which the city finds that such price was increased because the cost or pricing information submitted by the contractual party was inaccurate, incomplete or not current.

(c) *Exclusions.* Contractual parties need not make available costs or pricing data or certify their accuracy, completeness and currency when:

(1) The contract price is based on price competition resulting from sealed bids;

(2) The contract price is based on established catalog or market prices set and offered to the general public or to governmental entities;

(3) The contract price is set by law or regulation; or

(4) The city manager determines that such requirements for cost or pricing data and certification should be waived, and the reasons for such waiver are stated in writing and approved by the city commission.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-98. Bond of successful contractual parties.

(a) In the case of contracts for public works or improvements or purchases involving large sums of money, the city manager may provide that the successful bidder shall post a surety bond in any

amount that the city manager or his/her designee deems proper. Each call for bids for any public work or for the furnishing of any material, supplies, equipment or services, as well as any specification documents prepared and issued thereon, shall specify that the bid bond, performance bond, or any other guarantee required in connection therewith shall be accompanied by an affidavit of a qualified officer of the entity tendering such bond or guarantee, or by the attorney in fact of such entity, setting forth the amount of capital and the amount of surplus held by such entity as of its last published report, and the date of such report. The limit of surety acceptable from any one risk shall be ten percent of the combined capital and surplus shown by such affidavit. No bid bond, performance bond, surety bond or other guarantee shall be accepted unless it is signed by a licensed agent of the state as attorney in fact for the entity writing the same and unless the same is written by a properly licensed insurance agent located in the county. The right of rejection of any and all tenders of such surety bonds shall be reserved in all cases, which fact and reservation shall be clearly set forth in the call for bids and specification documents. The city manager shall cause each such surety tendered to the city to be reviewed to determine whether the entity or agency making such tender is qualified to meet the obligation to be assumed, and shall recommend to the city commission the rejection of any such tender from any entity or agency not found to be fully qualified. Notwithstanding the foregoing, the city manager may accept, in lieu of a bid bond, a cashier's check, an irrevocable letter of credit drawn upon a local bank, or cash, upon a finding that the city's interests would be protected by such acceptance.

(b) The director of finance shall cause a list to be kept of all sureties filed with the city, by names of guarantor and amounts, and shall report quarterly to the city manager full details as to bid bonds, performance bonds, or other like bonds then in effect.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-99. Inspections and audits for accuracy and accountability.

The city shall be entitled to insist that all parties dealing with it observe the highest degree of accuracy and accountability in all of their dealings with the city.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-100. Right to conduct inspections and audits.

(a) The city may, at reasonable times, inspect that part of any contractual party's plant or place of business and audit those books and records which are related to the performance of any contract awarded or to be awarded by the city. Circumstances warranting such inspections and audits shall include, but not be limited to, concern as to whether standards of responsibility specified in section 18-95 have been, are being, or are capable of being met, and concern as to whether the contract is being performed in accordance with its terms and conditions.

(b) The city may enter a contractual party's plant or place of business to:

(1) Inspect goods or services for acceptance by the city pursuant to the terms of the contract.

(2) Audit cost or pricing data or audit books and records.

(3) Conduct investigations of responsibility pursuant to section 18-95 or those related to actions to debar or suspend a contractual party from consideration for award of contracts pursuant to section 18-107.

(c) Books and records relating to performance of city contracts shall be maintained by contractual parties for a period of three years from the date of final payment unless a shorter period is authorized in writing by the city manager.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-101. Inspections.

(a) *Solicitations and contractual provisions.* City contracts shall provide that the city may inspect goods or services at the facilities of the

contractual party and perform tests to determine whether they conform to solicitation requirements contained in invitation for bids or requests for proposals or, after award, to the terms and conditions of the contract. Such inspections and tests shall be performed in accordance with the terms and conditions of the solicitation and contract.

(b) *Procedures for tests and inspections.*

(1) The chief procurement officer may specify general operational procedures governing the test and inspection of all goods or services, sales or leases being performed under city contract by city departments, offices and individual purchasing agents.

(2) The chief procurement officer shall inspect or supervise the inspection of all deliveries of supplies, materials, equipment, contractual services or performance under lease agreements to determine conformance with the terms and conditions upon which the order or contract was based. Any purchasing agent or department may be authorized by the chief procurement officer to inspect deliveries or contract performance in the manner stipulated with the approval of the city manager.

(3) The chief procurement officer may prescribe chemical, physical and other performance tests for goods or services, including samples submitted with bids or offers and samples of deliveries and performance to determine their quality and conformance with the terms and conditions of the solicitation or contract. In the performance of such tests or inspections, the chief procurement officer shall have the authority to make use of the laboratory facilities of any department of the city or any outside laboratory or special expertise available to evaluate service performance.

(c) *Conduct of inspections.* Whenever possible, inspections and tests shall be performed so as not to unduly delay or inconvenience the contractual parties. Contractual parties shall make available at no charge to the city all reasonable facilities and assistance, in order to facilitate the performance of inspections or tests by city representative.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-102. Audits.

(a) *Solicitations and contractual provisions.* City contracts shall provide that the city may inspect the books and records of contractual parties to determine conformance with the solicitation requirements contained in the invitation for bids or request for proposals or, after award, with the terms and conditions of the contract.

(b) *Procedures for audits.*

(1) The chief procurement officer may specify the general procedures for inspection of books and records and for the conduct of audits of all goods or services, sales or leases under city contracts.

(2) An audit may be required when, in respect to an actual or prospective contractual party, there is:

a. A question as to the adequacy of accounting policies or cost systems;

b. A substantial change in the methods or levels of operations;

c. Previous unfavorable experience indicating doubtful reliability of estimating, accounting or purchasing methods;

d. A lack of cost experience due to the procurement of a new supply or service; or

e. Other evidence that an audit is in the city's best interests as determined by the chief procurement officer, the city manager or the city commission.

(c) *Conduct of audits.* Whenever possible, audits shall be performed so as not to unduly delay or inconvenience the contractual party. Contractual parties shall make available at no charge to the city all reasonable facilities and assistance, for the convenience of the city representatives performing the audit.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-103. Disputes and legal remedies.

The following procedure in sections 18-104 through 18-107 shall be used for arriving at early settlement of grievances by interested parties who have participated in the city's procurement process.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-104. Resolution of protested solicitations and awards.

(a) *Right to protest.* The following procedures shall be used for resolution of protested solicitations and awards except for purchases of goods, supplies, equipment, and services, the estimated cost of which does not exceed $25,000.00. Protests thereon shall be governed by the administrative policies and procedures of purchasing.

(1) *Protest of solicitation.*

a. Any prospective proposer who perceives itself aggrieved in connection with the solicitation of a contract may protest to the chief procurement officer. A written notice of intent to file a protest shall be filed with the chief procurement officer within three days after the request for proposals, request for qualifications or request for letters of interest is published in a newspaper of general circulation. A notice of intent to file a protest is considered filed when received by the chief procurement officer; or

b. Any prospective bidder who intends to contest bid specifications or a bid solicitation may protest to the chief procurement officer. A written notice of intent to file a protest shall be filed with the chief procurement officer within three days after the bid solicitation is published in a newspaper of general circulation. A notice of intent to file a protest is considered filed when received by the chief procurement officer.

(2) *Protest of award.*

a. Any actual proposer who perceives itself aggrieved in connection with the recommended award of contract may protest to the chief procurement officer. A written notice of intent to file a protest shall be filed with the chief procurement officer within two days after receipt by the proposer of the notice of the city manager's recommendation for award of contract. The receipt by proposer of such notice shall be confirmed by the city by facsimile or electronic mail or U.S. mail, return receipt requested. A notice of intent to file a protest is considered filed when received by the chief procurement officer; or

b. Any actual responsive and responsible bidder whose bid is lower than that of the recommended bidder may protest to the chief procurement officer. A written notice of intent to file a protest shall be filed with the chief procurement officer within two days after receipt by the bidder of the notice of the city's determination of non responsiveness or non responsibility. The receipt by bidder of such notice shall be confirmed by the city by facsimile or electronic mail or U.S. mail, return receipt requested. A notice of intent to file a protest is considered filed when received by the chief procurement officer.

c. A written protest based on any of the foregoing must be submitted to the chief procurement officer within five days after the date the notice of protest was filed. A written protest is considered filed when received by the chief procurement officer.

The written protest may not challenge the relative weight of the evaluation criteria or the formula for assigning points in making an award determination.

The written protest shall state with particularity the specific facts and law upon which the protest of the solicitation or the award is based, and shall include all pertinent documents and evidence and shall be accompanied by the required filing fee as provided in subsection (f). This shall form the basis for review of the written protest and no facts, grounds, documentation or evidence not contained in the protester's submission to the chief procurement officer at the time of filing the protest shall be permitted in the consideration of the written protest.

No time will be added to the above limits for service by mail. In computing any period of time prescribed or allowed by this section, the day of the act, event or default from which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included unless it is a Saturday, Sunday or legal holiday in which event the period shall run until the end of the next day which is neither a Saturday, Sunday or legal holiday. Intermediate Saturdays, Sundays and legal holidays shall be excluded in the computation of the time for filing.

(b) *Authority to resolve protests; hearing officer(s).* Hearing officers appointed by the city shall have authority to resolve protests filed under this chapter of the City Code. The city manager shall appoint a hearing officer, from a separate list of potential hearing officers pre-approved by the city commission, to resolve protests filed in accordance with this section, no later than five working days following the filing of a bid protest. The hearing officer shall have the authority to settle and resolve any written protest. The hearing officer shall submit said decision to the protesting party and to the other persons specified within ten days after he/she holds a hearing under the protest.

(1) *Hearing officer.* The hearing officer may be a special master as defined in chapter 2, article X, section 2-811 of the City Code, or a lawyer in good standing with the Florida Bar for a minimum of ten years with a preference given to a lawyer who has served as an appellate or trial court judge. The hearing officer may be appointed from alternative sources (e.g. expert consulting agreements, piggyback contracts, etc.) where the city commission adopts a recommendation of the city attorney that such action is necessary to achieve fairness in the proceedings. The engagement of hearing officers is excluded from the procurement ordinance as legal services. The hearing officers appointed in the pre-qualified group should be scheduled to hear protests on a rotational basis.

(2) *Right of protest.* Any actual bidder or proposer who has standing under Florida law dissatisfied and aggrieved with the decision of the city regarding the protest of a solicitation or the protest of an award as set forth above in this section may request a protest hearing. Such a written request for a protest hearing must be initiated with a notice of intent to protest followed by an actual protest as provided in subsection 18-104(a). The notice of intent to protest and the actual protest must each be timely received by the chief procurement officer and must comply with all requirements set forth in subsection 18-104(a). Failure to submit the required notice of intent to protest and the actual protest within the specified timeframes will result in an administrative dismissal of the protest.

(3) *Hearing date.* Within 30 days of receipt of the notice of protest, the chief procurement officer shall schedule a hearing before a hearing officer, at which time the person protesting shall be given the opportunity to demonstrate why the decision of the city relative to the solicitation or the award, which may include a recommendation for award by the city manager to the city commission, as applicable, should be overturned. The party recommended for award, if it is a protest of award, shall have a right to intervene and be heard.

(4) *Hearing procedure.* The procedure for any such hearing conducted under this article shall be as follows:

a. The city shall cause to be served by certified mail a notice of hearing stating the time, date, and place of the hearing. The notice of hearing shall be sent by certified mail, return receipt requested, to the mailing address of the protester.

b. The party, any intervenor, and the city shall each have the right to be represented by counsel, to call and examine witnesses, to introduce evidence, to examine opposing or rebuttal witnesses on any relevant matter related to the protest even though the matter was not covered in the direct examination, and to impeach any witness regardless of which party first called him/her to testify. The hearing officer may extend the deadline for completion of the protest hearing for good cause shown, but such an extension shall not exceed an additional five business days. The hearing officer shall consider the written protest and supporting documents and evidence appended thereto, supporting documents or evidence from any intervenor, and the decision or recommendation as to the solicitation or award being protested, as applicable. The protesting party, and any intervenor, must file all pertinent documents supporting his/her protest or motion to intervene at least five business days before the hearing, as applicable. The hearing officer shall allow a maximum of two hours for the protest presentation and a maximum of two hours for the city response. When there is an intervenor, a maximum of two hours will be added for the intervenor. In the event of multiple protests for the same project, the hearing officer shall allocate time as necessary to ensure that the hearing shall not exceed a total of one day.

c. The hearing officer shall consider the evidence presented at the hearing. In any hearing before the hearing officer, irrelevant, immaterial, repetitious, scandalous, or frivolous evidence shall be excluded. All other evidence of a type commonly relied upon by reasonably prudent persons in the conduct of their affairs shall be admissible whether or not such evidence would be admissible in trial in the courts of Florida. The hearing officer may also require written summaries, proffers, affidavits, and other documents the hearing officer determines to be necessary to conclude the hearing and issue a final order within the time limits set forth by this section.

d. The hearing officer shall determine whether procedural due process has been afforded, whether the essential requirements of law have been observed, and whether the decision was arbitrary, capricious, an abuse of discretion, or unsupported by substantial evidence as a whole. Substantial evidence means such relevant evidence as a reasonable mind might accept as adequate to support a conclusion.

e. Within ten days from the date of the hearing, the hearing officer shall complete and submit to the city manager, the city attorney, any intervenor, the chief procurement officer, and the person requesting said hearing a final order consisting of his/her findings of fact and conclusions of law as to the denial or granting of the protest, as applicable.

f. The decisions of the hearing officer are final in terms of city decisions relative to the protest.

Any appeal from the decision of the hearing officer shall be in accordance with the Florida Rules of Appellate Procedure.

(c) *Compliance with filing requirements.* Failure of a party to timely file either the notice of intent to file a protest or the written protest, together with the required filing fee as provided in subsection (f), with the chief procurement officer within the time provided in subsection (a), above, shall constitute a forfeiture of such party's right to file a protest pursuant to this section. The protesting party shall not be entitled to seek judicial relief without first having followed the procedure set forth in this section.

(d) *Stay of procurements during protests.* Upon receipt of a written protest filed pursuant to the requirements of this section, the city shall not proceed further with the solicitation or with the award of the contract until the protest is resolved by the chief procurement officer or the city commission as provided in subsection (b) above, unless the city manager makes a written determination that the solicitation process or the contract award must be continued without delay in order to avoid an immediate and serious danger to the public health, safety or welfare.

(e) *Costs.* All costs accruing from a protest shall be assumed by the protestor.

(f) *Filing fee.* The written protest must be accompanied by a filing fee in the form of a money order or cashier's check payable to the city in an amount equal to one percent of the amount of the bid or proposed contract, or $5,000.00, whichever is less, which filing fee shall guarantee the payment of all costs which may be adjudged against the protestor in any administrative or court proceeding. If a protest is upheld by the chief procurement officer and/or the city commission, as applicable, the filing fee shall be refunded to the protestor less any costs assessed under subsection (e) above. If the protest is denied, the filing fee shall be forfeited to the city in lieu of payment of costs for the administrative proceedings as prescribed by subsection (e) above.
(Ord. No. 12271, § 2, 8-22-02; Ord. No. 13629, § 2, 9-8-16)

Sec. 18-105. Resolution of contract disputes.

(a) *Authority to resolve contract disputes.* The city manager, after obtaining the approval of the city attorney, shall have the authority to resolve controversies between the contractual party and the city which arise under, or by virtue of, a contract between them; provided that, in cases involving an amount greater than $25,000.00, the city commission must approve the city manager's decision. Such authority extends, without limitation, to controversies based upon breach of contract, mistake, misrepresentation or lack of complete performance, and shall be invoked by a contractual party by submission of a protest to the city manager.

(b) *Contract dispute decisions.* If a dispute is not resolved by mutual consent, the city manager shall promptly render a written report stating the reasons for the action taken by the city commission or the city manager which shall be final and conclusive. A copy of the decision shall be immediately provided to the protesting party, along with a notice of such party's right to seek judicial relief, provided that the protesting party shall not be entitled to such judicial relief without first having followed the procedure set forth in this section.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-106. Remedies prior to award.

If prior to contract award it is determined that a solicitation or proposed award is in violation of law, then the solicitation or proposed award shall be canceled by the city commission, the city manager or the chief procurement officer, as may be applicable, or revised to comply with the law.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-107. Debarment and suspensions.

(a) *Authority and requirement to debar and suspend.* After reasonable notice to an actual or prospective contractual party, and after reasonable opportunity for such party to be heard, the city manager, after consultation with the chief procurement officer and the city attorney, shall have the authority to debar a contractual party, for the causes listed below, from consideration for award of city contracts. The debarment shall be for a period of not fewer than three years. The city manager shall also have the authority to suspend a contractual party from consideration for award of city contracts if there is probable

cause for debarment, pending the debarment determination. The authority to debar and suspend contractors shall be exercised in accordance with regulations which shall be issued by the chief procurement officer after approval by the city manager, the city attorney, and the city commission.

(b) *Causes for debarment or suspension.* Causes for debarment or suspension include the following:

(1) Conviction for commission of a criminal offense incident to obtaining or attempting to obtain a public or private contract or subcontract, or incident to the performance of such contract or subcontract.

(2) Conviction under state or federal statutes of embezzlement, theft, forgery, bribery, falsification or destruction of records, receiving stolen property, or any other offense indicating a lack of business integrity or business honesty.

(3) Conviction under state or federal antitrust statutes arising out of the submission of bids or proposals.

(4) Violation of contract provisions, which is regarded by the chief procurement officer to be indicative of nonresponsibility. Such violation may include failure without good cause to perform in accordance with the terms and conditions of a contract or to perform within the time limits provided in a contract, provided that failure to perform caused by acts beyond the control of a party shall not be considered a basis for debarment or suspension.

(5) Debarment or suspension of the contractual party by any federal, state or other governmental entity.

(6) False certification pursuant to paragraph (c) below.

(7) Found in violation of a zoning ordinance or any other city ordinance or regulation and for which the violation remains noncompliant.

(8) Found in violation of a zoning ordinance or any other city ordinance or regulation and for which a civil penalty or fine is due and owing to the city.

(9) A contractual party who has defaulted under the terms of a contract with the city or any of its boards, agencies, trusts, authorities, councils or committees and has failed to cure such default.

(10) Any other cause judged by the city manager to be so serious and compelling as to affect the responsibility of the contractual party performing city contracts.

(c) *Certification.* All contracts for goods and services, sales, and leases by the city shall contain a certification that neither the contractual party nor any of its principal owners or personnel have been convicted of any of the violations set forth above or debarred or suspended as set forth in paragraph (b)(5).

(d) *Debarment and suspension decisions.* Subject to the provisions of paragraph (a), the city manager shall render a written decision stating the reasons for the debarment or suspension. A copy of the decision shall be provided promptly to the contractual party, along with a notice of said party's right to seek judicial relief.
(Ord. No. 12271, § 2, 8-22-02; Ord. No. 12312, § 1, 1-9-03)

Sec. 18-108. Ethics.

Any attempt by city employees to realize personal gain by conduct inconsistent with proper discharge of their duties is a breach of public trust. The provisions of city ordinances, county ordinances, and state statutes shall be strictly enforced to preserve the public trust.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-109. Public access and information.

The public shall have access to all documents and information pertaining to city contracts, subject to the provisions of law.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-110. Adoption of Florida Veteran Business Enterprise Opportunity Act.

(a) The city hereby adopts F.S. § 295.187, the "Florida Veteran Business Enterprise Opportunity Act," as amended, and incorporates it by reference into the city procurement ordinance, as such may be modified or amended from time to time.

(b) Definitions. For purposes of this section the following words shall have the same meanings ascribed to them as in "Florida Veteran Business Enterprise Opportunity Act," as amended:

(1) "Certified veteran business enterprise."

(2) "Service-disabled veteran."

(3) "Veteran business enterprise."

(4) "Wartime veteran."

(c) The city, after applying the local preference provided in the city procurement ordinance, when considering two or more bids, proposals or other replies for the procurement of goods, equipment and contractual services, at least one of which is from a certified veteran business enterprise, which are equal with respect to all relevant considerations, including, without limitation, price, quality, and service, shall award such procurement or contract to the certified veteran business enterprise.

(d) If a certified veteran business enterprise entitled to the vendor preference under this section and one or more businesses entitled to this preference as provided in this section or another vendor preference under the city procurement ordinance submit bids, proposals, or replies for procurement of goods, equipment and contractual services which are equal with respect to all relevant considerations, including price, quality, and service, the city shall award the procurement or contract to the business having the smallest net worth.

(Ord. No. 13339, § 2, 9-27-12)

Editor's note—Prior to the reenactment of section 18-110 by Ord. No. 13339, § 2, adopted September 27, 2012, Ord. No. 13332, § 2, adopted July 26, 2012, repealed the former section 18-110 in its entirety, which pertained to first-source hiring agreements, and derived from Ord. No. 12271, § 2, adopted August 22, 2002.

Sec. 18-111. Contracts of other governmental entities.

Notwithstanding all other provisions of this article, in the purchase of necessary goods and/or services the city may, in lieu of other city competitive bidding procedures, accept a competitive bid which has been secured by or on behalf of any federal, state, county or municipal government or from any other governmental entity, state funded institutions and not-for-profit organizations, subject to a determination by the chief procurement officer that the contract was entered into pursuant to a competitive process in compliance with city laws, policies and procedures; provided, however, that in the purchase of goods or services in excess of $25,000.00, such contracts shall be approved by the city manager, and purchases of goods or services in excess of $50,000.00, shall be subject to approval by the city commission.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-112. Contracts with other governmental agencies or state funded public institutions.

Notwithstanding all other provisions of this article, the city shall be exempt from all competitive bidding procedures when it enters into an agreement with other governmental agencies or state funded institutions for the purchase or acquisition of goods or services; provided, however, that in the purchase or acquisition of said goods or services in excess of $25,000.00, such agreement shall be approved by the city manager, and purchases of goods or services in excess of $50,000.00 shall be subject to approval by the city commission.

(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-113. Cooperative purchasing.

Notwithstanding all other provisions of this article, the city's purchasing department may either participate in, sponsor, conduct, or administer a cooperative purchasing agreement

for the procurement of any goods or services with one or more public entities. Such cooperative purchasing may include, but is not limited to joint or multiparty contracts between public entities.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-114. Online procurement.

(a) *Conditions for use.* Notwithstanding the foregoing, the city may engage in electronic on-line bidding to obtain competitive bids from bidders for the purchase of goods and services whenever the chief procurement officer determines that electronic on-line bidding is more advantageous than other procurement methods provided by this article.

(b) *Bidding process.* The solicitation must designate an opening date and time. The closing date and time may be fixed or remain open, depending on the structure of the item being bid on-line. Information regarding the closing date and time must also be included in the solicitation. At the opening date and time, the chief procurement officer or its designee must begin accepting on-line electronic bids, and must continue accepting bids until the bid is officially closed. Bidders will be required to register before the opening date and time and, as part of that registration, bidders must agree to any terms, conditions, or other requirements of the solicitation. The chief procurement officer may also pre-qualify bidders and allow only those bidders who are pre-qualified to submit bids on-line.

(c) *Provisions of section 18-85 of this Code do not apply.* Provisions of section 18-85 "competitive sealed bidding" shall not apply to solicitations issued pursuant to this section. However, requirements for contract awards shall be consistent with those set forth in subsection (h) of section 18-85, subject to a certification by the chief procurement officer that the contract was entered into pursuant to a competitive process in compliance with the provisions of this section 18-114.

(d) *Bid results public information.* All bids submitted electronically through an on-line bidding process are public information and subject to the State of Florida Public Records Act, as amended.

(e) *Remedies.* All remedies available to bidders through the sealed bidding process under section 18-104 of this Code, resolution of protested solicitations and awards, are available to bidders in an on-line bidding process in accordance with section 18-114.
(Ord. No. 12271, § 2, 8-22-02)

Sec. 18-115. Acceptance of donations.

The city manager is authorized to accept donations up to an estimated value of $50,000.00 on behalf of the city.
(Ord. No. 12271, § 2, 8-22-02; Ord. No. 13772, § 2, 6-28-18)

Sec. 18-116. Persons or firms retained as expert consultants.

The city manager shall have the authority and sole discretion to contract with persons or firms retained as expert consultants, without city commission approval. No employment emoluments shall be provided to persons or firms retained as expert consultants.
(Ord. No. 12271, § 2, 8-22-02; Ord. No. 14068, § 2, 5-12-22)

Editor's note—Ord. No. 14068, § 2, adopted May 12, 2022, changed the title of section 18-116 from "Persons retained as expert consultants" to "Persons or firms retained as expert consultants." The historical notation has been preserved for reference purposes.

Sec. 18-117. Economic stimulus awards and agreements.

(a) This section, to be known as the economic stimulus awards and agreements, is intended to provide an expedited process to award contracts related to certain capital construction projects, identified in Attachment "A," as amended from time to time by city commission resolution, with the express purpose of stimulating the local economy.

(b) The expedited process set forth herein, shall be applicable to the processing, design, and construction of capital improvement projects identified in Attachment "A," as amended from time to time by city commission resolution. The city commission may, from time to time, by

passage of resolutions, add or delete projects from the list of economic stimulus projects to which this section applies.

(c) All actions taken under this section shall be subject to review by the office of management and budget to ensure funding is available for each project.

(d) Notwithstanding any other provision of the City Code, including, without limitation, the city procurement ordinance to the contrary, the city manager or his/her designee shall have the following authority only with respect to the identified economic stimulus projects:

(1) To issue solicitation documents including addenda thereto;

(2) To receive, open, review, and evaluate bids and proposals;

(3) To appoint evaluation, selection, and negotiation committees to obtain professional services as defined by and in accordance with F.S. § 287.055 ("The Consultant's Competitive Negotiation Act or CCNA") as amended, eliminating the requirements of subsection 18-542(12) requiring that the majority of evaluation committee be from the public and provided that each such committee should contain, whenever possible, representation from the user department;

(4) To reject bids and proposals for contracts including, but not limited to, professional service agreements, construction contracts, and contracts for the purchase of goods and services, as applicable.

(e) The city manager may award and execute contracts, contract amendments, and change orders, including professional services agreements and construction contracts in accordance with F.S. § 255.20 ("Local bids and contracts for public construction works") as amended, and F.S. § 287.055 (CCNA), as amended, without city commission approval and issue a notice to proceed on each where:

(1) The award value of the contract has been reviewed and approved by the office of management and budget;

(2) The value of the recommended award does not exceed the estimated cost of construction by more than ten percent;

(3) Three or more bids or proposals are received from responsive and responsible bidders or proposers, unless fewer than three bids or proposals are received after customary public announcement and qualification procedures have been used;

(4) The contractor, vendor or consulting firm receiving the award is in good standing with the city including, but not limited to, having no outstanding debts to the city and proves demonstrated acceptable past performance;

(5) The contractor has submitted required insurance, bonds, affidavits, and documentation required by the solicitation;

(6) None of the bidders or proposers have timely filed a bid protest; and

(7) The contract amendment, change order, or claim does not increase the contract amount, including any dedicated and contingency allowances, by more than ten percent. This limitation shall not apply to any contract amendment or change order resulting from emergency actions impacting environmental remediation, public safety, health requirements, or recovery from natural disaster or any other act of God.

(f) The city manager shall submit to the city commission, on a quarterly basis, a listing of any contracts including the names of the firms, the names of the projects, and the amount of compensation of any contracts the city manager has awarded under this section.

(g) Except for the execution of contracts, the city manager may delegate his or her duties under this section to the director of the office of capital improvements, the chief procurement officer, or the administrative head of the user agency. All contracts awarded under this section shall be in a form acceptable to the city attorney.

(h) A contract contingency allowance of up to ten percent for economic stimulus projects will be utilized to minimize disruptions in the flow of the work. Change orders shall be submitted to replenish a contingency allowance upon 50 percent depletion of its initial amount. Such change orders will include a report on the draws against the initial contingency.

(i) The authority delegated to the city manager or his/her designee pursuant to this section shall be in addition to and not in derogation of any and all other delegations of authority set forth elsewhere in the City Code.

(j) This section shall sunset upon completion and acceptance of the approved list of projects, as may be amended unless this section is earlier repealed by the city commission.
(Ord. No. 13045, § 2, 12-11-08; Ord. No. 13991, § 2, 4-22-21)

Editor's note—The attachment referred to in this section is not set out at length herein, but is on file in the office of the city clerk.

Sec. 18-118. Public-private partnerships.

(a) The city hereby adopts F.S. § 255.065, as amended, and expressly incorporates it by reference into the city procurement ordinance.

(b) Definitions. For purposes of this section, the words defined in F.S. § 255.065(1), as amended, including, without limitation, "qualifying project," shall have the same meaning in this section.

(c) Conditions for use.

(1) Competitive negotiations/competitive sealed proposals may be used for a qualifying project in which it is both practicable and advantageous for the city to consider a range of competing plans, specifications, standards, terms and conditions so that adequate competition will result and award be made not principally on the basis of price, but to the respondent whose proposal contains the most advantageous combination of price, quality or other features. All contracts shall be signed by the city manager.

(2) A contract may be entered into by use of the competitive negotiation/competitive sealed proposal methods when:

a. The chief procurement officer determines that the complex specialized nature or technical details of a particular procurement make the use of competitive sealed bidding either not practicable or unreasonable, or not advantageous to the city;

b. Specifications or scope of work cannot be fairly or objectively prepared so as to permit competition in the invitation for bids; or

c. Qualifications and the quality of the service to be delivered can be considered more important than price.

(d) Competitive sealed proposal method. Where the contract exceeds $50,000.00, the city may utilize the following competitive sealed proposal method:

(1) Request for proposals (RFP), request for letters of interest (RFLI), or request for qualifications (RFQ) setting forth the terms and conditions of the professional or personal services sought for the qualifying project, including but not limited to, scope of work and evaluation factors, shall be issued. The RFP, RFLI, or RFQ, as applicable, may, in the exercise of the reasonable professional discretion of the city manager, director of the using agency, and the chief procurement officer, include a five percent evaluation criterion in favor of proposers who maintain a local office, as defined in section 18-73. In such cases, where applicable, this five percent evaluation criterion in favor of proposers who maintain a local office will be specifically defined in the RFP, RFLI or RFQ.

(2) Financing. Public-private partnerships traditionally involve long-term financing agreements between the parties. RFPs, RFLIs or RFQs for a qualifying project that contemplate long-term financing

wherein the city would incur a debt obligation must be reviewed and approved in advance of advertisement as to form by the finance committee of the city.

(3) Mailing lists. Lists of prospective proposers/respondents may be compiled pursuant to section 18-85 (Competitive sealed bidding).

(4) Public notice. Adequate public notice in the city's procurement website and/or via the on-line procurement/bidding platform shall be provided pursuant to section 18-85; provided, however, that all such public notices must also comply with F.S. § 255.065, as amended.

(5) Pre-proposal conference. A pre-proposal conference may be conducted to explain the requirements of the proposed procurement and shall be announced to all prospective proposers known to have received an RFP, RFLI, or RFQ. Conferences should be held long enough after the RFP, RFLI, or RFQ has been issued to allow prospective proposers to become familiar with the proposed procurement, but sufficiently before receipt of proposal to allow consideration of the conference results in preparing their proposals. Nothing stated at a pre-proposal conference shall change the RFP, RFLI, or RFQ unless a change is made by written addendum, which shall be supplied to all those prospective proposers known to have received a RFP, RFLI, or RFQ. All pre-proposal conferences shall be recorded and be maintained as a public record.

(6) Receipt of proposals. Sealed proposals shall be submitted through the city's on-line procurement/bidding platform no later than the time and date specified for submission in the RFP, RFLI, or RFQ. The name of each proposer shall be recorded by the on-line procurement/bidding platform, and the record and each proposal, to the extent consistent with applicable state law, shall be open to public inspection.

(7) Proposal evaluation. An evaluation committee shall be appointed by the city manager for the purpose of evaluating proposals based upon the criteria contained in the RFP, RFLI or RFQ. This evaluation committee shall be comprised predominantly of individuals who are not city personnel and which are deemed subject matter experts in the project areas concerned (for example: an architect, engineer, certified public accountant, financial advisor, etc. who are certified or registered as required by the law). No other factors or criteria shall be used in the evaluation. As may be provided in the RFP, RFLI or RFQ, proposers may be invited to make oral presentations regarding their proposals. The recommendations of the evaluation committee shall be submitted to the city manager.

In the event only one proposal is received, the evaluation committee may proceed with the evaluation, or request the city manager to reject all proposals, whichever is in the best interests of the city.

a. After reviewing the evaluation committee's recommendation, the city manager may:

1. Approve the recommendation of the evaluation committee, written notice of which shall be provided to all proposers, and the city manager shall then submit his/her recommendation to the city commission;
2. Reject the evaluation committee's recommendation and instruct the evaluation committee to re-evaluate and make further recommendations;
3. Reject all proposals; or
4. Recommend that the city commission reject all proposals.

(8) Award. For agreements that involve long-term financing wherein the city would incur a debt obligation, the city manager's award recommendation shall be reviewed and approved by the finance committee

of the city before being submitted for consideration by the city commission. Award shall be made to the responsive and responsible proposer whose proposal is most advantageous to the city as determined by the city commission in accordance with the evaluation criteria contained in the RFP, RFLI or RFQ.

a. After reviewing the city manager's recommendation, the city commission may:

    1. Approve the city manager's recommendation and authorize contract negotiations;

    2. Reject all proposals;

    3. Reject all proposals and instruct the city manager to reissue a solicitation; or

    4. Reject all proposals and instruct the city manager to enter into competitive negotiations with at least three individuals or firms possessing the ability to perform such services and obtain information from said individuals or firms relating to experience, qualifications and the proposed cost or fee for said services, and make a recommendation to the city commission.

The decision of the city commission shall be final. Written notice of the award shall be given to the successful proposer.

Threshold amounts referenced herein shall include the values associated with potential options of renewal. Awards made by the city manager or by the city commission shall include authority for all subsequent options of renewal, if any. The aforementioned options of renewal shall be exercised at the option of the city manager, subject to confirmation by the city commission if, after review of past performance under the contract, the city manager determines in his/her sole discretion that exercise of the option of renewal is in the best interest of the city.

(Ord. No. 13447, § 2, 4-10-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13934, § 2, 10-22-20)

Sec. 18-119. Unsolicited proposals.

(a) The city hereby adopts F.S. § 255.065, as amended, and expressly incorporates it by reference into the city procurement ordinance, as such may be modified.

(b) Definitions. For purposes of this section, the following words shall have the same meanings ascribed to them as in F.S. § 255.065, as amended:

(1) "Qualifying project";

(2) "Private entity";

(c) Conditions for use. The city may receive unsolicited proposals for a qualifying project and may thereafter enter into an agreement with a private entity, or a consortium of private entities, for said qualifying project, subject to the procedures and conditions set forth herein. Any unsolicited proposal shall include sufficient detail and information for the city to evaluate the proposal in an objective and timely manner.

(d) Application fee. Any private entity or consortium of private entities desiring to submit an unsolicited proposal for a qualifying project shall submit to the city an application fee of $25,000.00 payable to the city in the form of a money order or cashier's check at the time of unsolicited proposal submittal. If the cost of evaluating the unsolicited proposal exceeds $25,000.00 the application fee shall be increased to a reasonable fee to pay the costs of evaluating the unsolicited proposal. The proposer will be notified and will promptly pay the balance of the application fee needed to pay the costs of evaluating the unsolicited proposal. As provided for in F.S. § 255.065, as amended, the purpose of this application fee is to pay the costs of evaluating the unsolicited proposal. The city may need to engage the services of a private consultant to assist in the evaluation of the unsolicited proposal.

The city shall refund any portion of the initial application fee paid in excess of its direct costs associated with evaluating the proposal.

(e) Public notice. If the city receives an unsolicited proposal for a qualifying project pursuant to this section and the city desires to enter into an agreement with the private entity or consortium of private entities submitting same, the city shall first notify the commission of the receipt of said unsolicited proposal by placement of a discussion item on the next available commission meeting agenda. Upon the commission's approval to proceed with said unsolicited proposal project, the city shall publish public notice in the Florida Administrative Register, on the city's procurement website and/or via the on-line procurement/bidding platform, and a newspaper of general circulation at least once a week for a minimum of two weeks stating that the city has received an unsolicited proposal and that the city will accept other proposals for the same qualifying project. The city shall additionally furnish a copy of the same notice to any homeowners or neighborhood associations currently registered with the city in the designated area. The city shall set forth in each such request for proposals the criteria to be evaluated and how such private partner shall be selected from the proposals submitted. The entity submitting the original unsolicited proposal may submit a more detailed proposal in response to the city's notice. The timeframe for allowing other proposals shall be no fewer than 21 days but no more than 120 days after the initial date of publication. A copy of the notice must be mailed to each local government in the affected area of the qualifying project which shall mean Miami-Dade County and/or any municipality and/or special district in which all or a portion of the qualifying project is located.

(f) Receipt of proposals. Sealed proposals shall be submitted through the city's on-line procurement/bidding platform no later than the time and date specified. The name of each proposer shall be recorded by the on-line procurement/bidding platform, and the record and each proposal, to the extent consistent with applicable state law, shall be open to public inspection.

(g) Proposal evaluation. An evaluation committee shall be appointed by the city manager for the purpose of evaluating and ranking the proposals based upon factors that include, but are not limited to: professional qualifications and experience, general business terms, innovative design techniques or cost-reduction terms, and finance plans. Proposers may be invited to make oral presentations regarding their proposals. The recommendations of the evaluation committee shall be submitted to the city manager.

In the event only one proposal is received, the evaluation committee may proceed with the evaluation, or request the city manager to reject all proposals, whichever is in the best interests of the city.

(1) After reviewing the evaluation committee's recommendation, the city manager may:
   a. Approve the recommendation of the evaluation committee, written notice of which shall be provided to all proposers, and the city manager shall then submit his or her recommendation to the city commission;
   b. Reject the evaluation committee's recommendation and instruct the evaluation committee to re-evaluate and make further recommendations;
   c. Reject all proposals; or
   d. Recommend that the city commission reject all proposals.

(h) Award. For agreements that involve long-term financing wherein the city would incur a debt obligation, the city manager's award recommendation shall be reviewed and approved by the finance committee of the city before being submitted for consideration by the city commission. Award shall be made to the highest-ranked responsible proposer whose proposal is most advantageous to the city as determined by the city commission in accordance with the criteria the evaluation committee used in evaluating and ranking the proposals.

(1) After reviewing the city manager's recommendation, the city commission may:
   a. Approve the city manager's recommendation and authorize contract negotiations;

b. Reject all proposals;

(2) The decision of the city commission shall be final. Written notice of the award shall be given to the successful proposer.

Unsolicited proposals may only be awarded by the city commission subject to the procedures set forth herein. Awards made by the city commission shall include authority for all subsequent options of renewal, if any. The aforementioned options of renewal shall be exercised at the option of the city manager, subject to confirmation by the city commission if, after review of past performance under the contract, the city manager determines in his/her sole discretion that exercise of the option of renewal is in the best interest of the city. All agreements shall be in a form acceptable to the city commission or city manager, as applicable, and are subject to approval as to legal from by the city attorney. The chief financial officer or his/her designee shall review all finance plans and documents related to the private entity's performance, payment of subcontractors and similar responsibilities. The director of risk management shall review all insurance and related requirements. (Ord. No. 13447, § 2, 4-10-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13934, § 2, 10-22-20; Ord. No. 14138, § 8, 2-9-23)

Sec. 18-120. Responsible wage construction contracts.

(a) In addition to the other elements of the term "responsible bidder" in law or in the discretion of the city commission, as defined per section 18-73 of the City Code, and as applies to competitively bid city contracts in excess of $250,000.00 for the construction, alteration, and/or repair, including painting or decorating, of public buildings or public works, shall mean a bidder who provides documented proof in its bid that the various classes of laborers and mechanics will be paid no less than the specified overall hourly rates as set forth in the contract specifications. All leases and contracts entered into after the effective date of this section derives which provide for privately funded construction, alteration or repair of buildings or improvements located on city-owned land shall require laborers and mechanics performing such work be paid no less than the overall hourly rates required on competitively bid city construction contracts under this section unless specifically exempted below. Fees for monitoring compliance with this section shall be charged as provided in the most current city-wide budget as follows: for city construction contracts, the department of capital improvements and transportation projects ("CITP") shall charge the using department therefor; for leases and contracts which provide for privately funded construction, alteration or repair of buildings or improvements on city-owned land, the party contracting with the city shall be charged therefor.

(b) The specifications for each competitively bid city contract in excess of $250,000.00 for the construction, alteration and/or repair, including painting or decorating, of public buildings or public works shall specify an initial overall per hour rate to be paid to each craft or type of employee necessary to perform the contract work as listed in local area nondiscriminatory negotiated contracts (hereinafter referred to for purposes of this subsection (b) as "negotiated contracts") between organizations which represent employees and contractors. In ascertaining the initial overall per hour rate to be paid, the minimum standard shall be the combined overall dollar value on an hourly basis of the wages (paid as set forth below) and of the hospitalization, medical, pension and life insurance benefits (paid as set forth below) for such craft or type of employee under negotiated contracts in effect as of January 1st of the calendar year in which said proposal bid is expected to be advertised, or, in the case of a lease or contract providing for privately funded construction on city-owned land subject to this section, under the negotiated contracts in effect as of January 1st of the calendar year in which said proposed lease or contract is expected to be executed. Thereafter, the specifications shall provide that the overall per hour rate to be paid for work performed under the contract during each subsequent calendar year shall be the overall per hour rate in effect as of January 1st, of the year in which the work is performed. If a particular craft or type of employee is not listed in such negotiated contracts, in ascertaining the initial overall per hour rate to be paid those employees, the minimum standard shall be the

combined overall dollar value on an hourly basis of the "basic hourly rate of pay" (as defined in 29 CFR 5.24) (paid as set forth below) and of the fringe benefits payments (paid as set forth below) for hospitalization, medical pension and life insurance benefits for such craft or type of employee under the secretary of labor's wage determination (made pursuant to the provisions of the Davis-Bacon Act) in effect for the city, as of the end of the calendar year in which the proposed bid is expected to be advertised. The foregoing and the provisions of subsection (e) notwithstanding, where not otherwise precluded by state or federal law, the overall per hour rate shall be the higher rate under this section 18-120 or the rate of wages to be paid under the requirements of the Davis-Bacon Act; provided, further, that the overall per hour rate shall not be the higher rate if the federal government requires the city as a condition of receiving federal funds for a project to pay no more than the wages as determined by the U.S. Department of Labor under the Davis-Bacon Act on project contracts. The specifications for such contracts shall:

(1) Include a sum certain in dollars and cents as an initial overall per hour rate for each craft or type of employee to be paid for work performed during the period commencing on the date of issuance of the notice to proceed and continuing through the calendar year (or, in the case of a lease or contract providing for privately funded construction on city-owned land subject to this section, ending the last day of the calendar year in which the lease or contract was executed). The specifications shall further provide that the overall per hour rate to be paid for work performed during the year period commencing the next January 1st after the date of issuance of the notice to proceed (or, in the case of a lease or contract providing for privately funded construction on city-owned land subject to this section after the date of execution of such lease or contract) shall be such rate (as determined in accordance with subsection (b) above) for that calendar year and shall be updated thereafter on each subsequent January 1st to the rate (as determined in accordance with subsection (b) above) for the ensuing calendar year until completion of the contract work; and

(2) Mandate the contractor to whom the contract is awarded, and any of its subcontractors performing any of the contract work, pay not less than the specified overall per hour rate adjusted over the term of the contract as provided in subsection (1) above; and

(3) Provide that the contractor, and any of its subcontractors, may fulfill the obligation to pay such specified overall per hour rate by payment to the employee of the hourly wage rate listed in the negotiated contracts (or, if applicable, under subsection (1) above, the "basic hourly rate of pay" as defined in 29 CFR 5.24 contained in the secretary of labor's wage determination) for such craft or type of employee plus either: (a) payment on the employee's behalf of the cost (on an hourly basis) of the hospitalization, medical, pension and life insurance benefits specified for such craft of type of employee; or, (b) payment to the employee (in addition to the listed hourly wage rate, or "basic hourly rate of pay" if applicable) of an amount equal to the hospitalization, medical, pension and life insurance benefits (on an hourly basis) contractors are required to provide under the negotiated contracts (or, if applicable, under subsection (1) above, an amount equal to the fringe benefit payments on an hourly basis for hospitalization, medical, pension and life insurance benefits contained in the secretary of labor's wage determination) for such craft of type of employee. Payments to employees shall be counted towards fulfillment of the above obligation only to the extent that such payments are made by check or money order; and

(4) Provide that the contractor, and each subcontractor under the contractor, shall post in a conspicuous place on the site where such contract work is performed:

(a) the schedule of the specified overall per hour rate for each applicable classification specified by such negotiated contracts; (b) the amount of liquidated damages for any failure to pay such rates; and (c) the name and address of the responsible official in the city to whom complaints should be given; and

(5) Provide that there may be withheld from the contractor so much of accrued payments as may be considered necessary by the contracting officer to pay to employees employed by the contractor (or any subcontractor under the contractor) in the performance of the contract work the difference between the overall per hour rate required by the contract to be paid employees on the work and the amounts received by such employees and not refunded to the contractor, and any of its subcontractors or their agents; and

(6) Require the contractor and each subcontractor under the contractor to keep, or cause to be kept, accurate written records signed under oath as true and correct showing the names, Social Security numbers, and craft classifications of all employees performing work on said contract, the hours and fractions of hours for every type of work performed by each employee, the combined dollar value of all wages, any contributions to benefit plans and payments made to each employee of the overall per hour rate required by this section and further require the contractor to submit to the city a list of all subcontractors and the names and Social Security numbers of all employees thereof who performed work each day on the contract and further require each subcontractor to also submit to the city a list of the names and Social Security numbers of its employees who performed work each day on the contract; and

(7) Provide that no contractor (or subcontractor under the contractor) may terminate an employee performing work on the contract because of the employee's filing a complaint regarding payment of required overall per hour rates.

(c) City shall periodically examine the records required to be kept under subsection (6) of subsection (b) of this section.

(d) The city manager shall establish an administrative procedure for monitoring compliance with and enforcement of the requirements of this section. Such procedure shall provide that:

(1) CITP may conduct investigations of compliance with the requirements of this section and issue written notices to a contractor (or subcontractor under the contractor) when it determines based on such investigation that the contractor (or subcontractor) has not complied herewith;

(2) The contractor or subcontractor shall respond in writing to the notice of noncompliance;

(3) Based on the response, CITP may determine to rescind the notice of noncompliance or to conduct a compliance meeting with the affected contractor or subcontractor at which any additional evidence may be presented;

(4) CITP shall make a written compliance determination following any compliance meeting. A determination that the contractor or subcontractor has not complied with the requirements of this section shall state the basis therefore and shall advise the contractor or subcontractor of its right to file a written request with the city manager within 30 calendar days to schedule an administrative hearing before a hearing officer to appeal the determination as provided below; and

(5) A contractor or subcontractor who fails to respond to a notice of noncompliance, fails to attend a compliance meeting, or who does not timely request an administrative hearing from an adverse compliance determination made by CITP after a compliance meeting shall be

deemed not to have complied with the requirements of this section as stated in the notice or determination of non-compliance and, in the case of underpayment of the required overall per hour rate, an amount sufficient to pay any underpayment shall be withheld from contract proceeds and remitted to the employee and the contractor or subcontractor shall be fined the applicable penalty for such underpayment as provided in this subsection (d). A contractor or subcontractor who does not make the required payment of the underpaid wages or who does not pay any fine imposed hereunder shall not be deemed responsible to perform subsequent city construction contracts and shall be ineligible to be awarded such contracts for so long as the identified underpayment or any penalties imposed therefor remain outstanding, not to exceed three years.

Upon timely receipt of a request for an administrative hearing before a hearing officer to appeal a determination of non-compliance, the city manager shall appoint a hearing officer and fix a time for an administrative hearing thereon. A notice of hearing (together with a copy of CITP's determination of non-compliance) shall be served upon the contractor (or subcontractor). Upon completion of the hearing, the hearing officer shall submit proposed written findings and recommendations together with a transcript of the hearing to the city manager within a reasonable time. The city manager shall determine whether the contractor (or subcontractor) failed to comply with the requirements of this section. If the manager's determination is that the contractor (or subcontractor) failed to comply, and that such failure was pervasive, the manager may order that the contract work be suspended or terminated, and that the noncomplying contractor (or subcontractor) and the principal owners thereof be prohibited from bidding on or otherwise participating in city contracts for the construction, alteration and/or repair, including painting or decorating of public buildings or public works for a period of up to three years. In addition, in the case of underpayment of the required overall per hour rate, an amount sufficient to pay any underpayment shall be withheld from contract proceeds and remitted to the affected employees and the contractor or subcontractor shall be fined the penalties provided below. If the manager's determination is that the contractor (or subcontractor) failed to comply and that such failure was limited to isolated instances and was not pervasive, the city manager may, in the case of underpayment of the required overall per hour rate, order an amount equal to the amount of such underpayment be withheld from the contractor and remitted to the employee, and may also fine the contractor or subcontractor for such noncompliance as follows: for the first underpayment, a penalty in an amount equal to ten percent of the amount thereof; for the second underpayment, a penalty in an amount equal to 20 percent thereof; for the third and successive underpayments, a penalty in an amount equal to 30 percent thereof. A fourth violation shall constitute a default of the subject contract and may be cause for suspension or termination in accordance with the contract's terms and debarment in accordance with the debarment procedures of the city. Monies received from payment of penalties imposed hereunder shall be deposited in a separate account and shall be utilized solely to defray CITP's costs of administering this section. If the required payment is not made within a reasonable period of time, the noncomplying contractor (or subcontractor) and the principal owners thereof shall be prohibited from bidding on or otherwise participating in city contracts for the construction, alteration, and/or repair, including painting or decorating of public buildings or public works for a period of three years.

(e) This section shall not apply to city contracts for construction or alteration which are federally funded or which are otherwise subject to the provisions of the Davis-Bacon Act (40 U.S.C. 276(a)).

(f) This section shall not apply to any contract for which authority to advertise for bids has been obtained prior to the effective date of this section.

(g) This section shall not apply to contracts designed to consolidate an indeterminate number of individual smaller construction, repair/replacement or alteration activities which may be needed over a fixed period of time throughout the city's facilities and which are addressed by building specialty/trades contractors pre-qualified to provide such services to the city.

(h) As used in the construction of this section, references to the masculine shall include the feminine and references to the singular shall include the plural, and vice-versa.

(i) Exemption for certain privately funded construction. This section shall not apply to leases and contracts entered into after the effective date of this section which provide for privately funded construction, alteration or repair of buildings or improvements located on city-owned lands whose estimated cost is equal to or less than $5,000,000.00 which are financed:

(1) Solely through private sources, without $1.00 or more of financing provided through any federal, state, county, city, local governmental entity or bond sources; or

(2) By entities which meet all three of the following conditions: exemption from federal income taxes pursuant to Section 501(c)(3) of the Internal Revenue Code, not-for-profit status and community-based.

(j) The foregoing notwithstanding, any lease or contract entered into after the effective date of this section which provides for privately funded construction, alteration or repair of buildings or improvements located on county-owned land whose estimated cost is equal to or less than $5,000,000.00, receives bond financing and also receives state and/or local development incentives (including but not limited to: waiver of or reduced impact or permit fees and reduced property or other taxes) based on job creation shall not require payment of the overall hourly rates provided by this section. Such lease or contract shall provide that in the event the job creation requirements on which the foregoing development incentives were conditioned are not fulfilled, the lessee shall be required to pay a penalty of up to 20 percent of the cost of such construction, alteration or repair. Said penalty shall be in addition to any rental or other payments required in each lease or contract to which this subsection applies. Said penalty shall be paid to the City of Miami and shall be used to cover the costs of monitoring compliance with this section.
(Ord. No. 13500, § 2, 2-26-15)

Sec. 18-121. Procurements, grants, subgrants, and compliance utilizing requirements for federal disaster assistance.

(a) Notwithstanding any conflicting provisions in the City Code and/or the laws of the state, as amended, all procurements of goods, services, equipment, projects, personnel, grants, subgrants, or other resources for which the city intends to seek federal disaster assistance (as defined below) shall follow the federal disaster requirements (as defined below).

(b) As used herein:

Federal disaster assistance means the collective multiple types of major disaster assistance in funding, personnel, equipment, facilities, goods, services, projects, grants, processes, coordination, resources, and other recovery assistance and efforts created and authorized from time to time by the federal government.

Federal government means the government of the United States of America.

Federal requirements means collectively, the Robert T. Stafford Disaster Relief and Emergency Assistance Act, 42 U.S. C. 5121 et seq., as amended ("Stafford Act"), and all other federal rules, procurement thresholds, compliance, audit and reporting procedures, regulations, and guidelines established for federal disaster assistance from time to time.

(c) The city commission delegates authority to and authorizes the city manager or designee to procure, negotiate, execute, and approve, in a form acceptable to the city attorney, all necessary procurements, awards, and purchases for the city's recovery from any federally declared disaster for which the city intends to seek federal

disaster assistance. The city manager shall provide to the city commission on a bi-monthly basis a report of such procurements, awards, and purchases through the recovery period and until the completion of recovery, including but not limited to all audit periods related to such federal disaster assistance.
(Ord. No. 13783, § 2, 7-26-18)

Sec. 18-122. Independent external auditor selection procedures pursuant to F.S. § 218.391, as amended.

The city hereby adopts F.S. § 218.391, titled "Auditor Selection Procedures," in its entirety and expressly incorporates it into the city's procurement ordinance. The audit selection committee shall require in all solicitations that responses from qualified independent auditors to perform annual independent external audit services for the city as required by F.S. § 218.391, must meet all requirements of F.S. § 218.391(3)(a), as amended, and all additional specifications and performance standards as approved or revised by the audit selection committee and the city commission. Such responses may be sought for a period of more than one year if, in the opinion of the audit selection committee and of the city commission, such extended period is in the best interests of the city and if a provision to discontinue the audit services in the event of unsatisfactory services is specifically stated in the contract for independent external auditing services.
(Ord. No. 13899, § 3, 4-9-20)

Sec. 18-123. Quality control plan for consultants and contractors.

(a) *Consultants.*

(1) Quality control is the process performed to ensure conformance by consultants to valid requirements by industry standards. This process includes quality planning, training, providing clear decisions and directions, constant supervision, immediate review of completed activities for accuracy and completeness, and documenting all decisions, assumptions, and recommendations. There are three main objectives of a quality control plan ("QCP"):

a. To provide a mechanism by which all products of consultants, as applicable, will be subject to a systematic and consistent review to ensure that the final product will be substantially error free.

b. To provide for a well-documented design process. A properly documented project file should support major decisions made during the project development and design as well as provide a record of the QCP.

c. To provide feedback from the reviews and communication that will assist consultants in improving the design process.

(2) All plans, specifications, and estimates for city public works or capital improvement projects prepared by either in-house city professional staff or by external consultants will be prepared in accordance with a documented QCP.

(3) The city's department of resilience and public works and the office of capital improvements are authorized to administratively develop and promulgate a QCP.

(4) This QCP will provide guidance to the architect or engineer of record and promote communication between consultants, contractors, and vendors, as applicable, and the city's staff.

(5) The architect or engineer of record, in conjunction with the city's project managers, is responsible for ensuring all project components are economical, accurate, coordinated, checked, and in conformity with valid requirements pursuant to industry standards. City project managers are encouraged to randomly visit their consultants' offices for unannounced quality assurance reviews to ensure

compliance with the consultant's project specific QCP. Consultants shall be cooperative during any such visits.

(6) Any failures by the consultant in the QCP shall be noted by the city's project manager in the consultant's work performance evaluation. Pursuant to subsection 18-87(r) of the City Code, consultants with poor project evaluations are subject to the possibility of a suspension, termination, or debarment imposed by the city in accordance with the procedures set forth in section 18-107 of the City Code and the evaluation regulations.

(b) *Contractors.*

(1) During the construction phase of capital improvement projects, contractors in coordination with city project managers and the architect/engineer of record will develop a QCP. This plan will detail the qualified personnel, facilities, production facilities, and the means and methods the contractor intends to use to ensure that the work complies with the contract documents. The contractor's QCP will follow the basic guidelines established by the city's staff from the department of resilience and public works and/or the office of capital improvements that are generally applicable to any public works or capital improvement projects.

(2) The contract documents will dictate the requirements of the contractor's QCP. As a result, the contractor shall be responsible for all quality control-related inspections over applicable materials. The construction engineering and inspection ("CEI") personnel, therefore, shall have the primary function of monitoring the contractor's level of compliance with the contract documents.

(3) The city's department of resilience and public works and the office of capital improvements are authorized to administratively develop and promulgate a QCP.

(4) In-person quality assurance inspections of work in progress are also required. These inspections should be on an as-needed basis and as required by the QCP. These inspections are typically less frequent than quality control inspections. Quality control inspections of materials or inspection activities not covered by the contractor's QCP must be performed by CEI personnel.

(5) Quality assurance. CEI personnel must determine the adequacy of the contactor's QCP in meeting the requirements of the contract documents. If the requirements of the contract are not being met by the contractor's QCP, the city's project manager and/or other city staff involved in the project must be notified. The CEI should always document instances of QCP failures in meeting the requirements of the contract documents. These instances should also be discussed at work progress meetings.

(6) Quality control. It is the CEI's responsibility to ensure compliance with the contract documents through direct observation of construction operations, examination of completed construction, sampling and testing of materials, and review of records to verify compliance with instructions for those records. It is also the CEI's responsibility to produce the required performance records. Performance of these responsibilities requires training, preparation, observation of field operations, and record keeping.

(7) Any failures by the contractor in the QCP shall be noted by the city's project manager in the contractor's work performance evaluation. Pursuant to subsection 18-89(g) of the City Code, contractors with poor project evaluations are subject to the possibility of a suspension, termination, or debarment imposed by the city in accordance with the procedures set forth in section 18-107 of the City Code and the evaluation regulations.

(Ord. No. 14007, § 2, 6-10-21)

Secs. 18-124—18-138. Reserved.

ARTICLE IV. GRANTS*

Sec. 18-139. Anti-poverty initiative—Established.

The Anti-Poverty Initiative ("API") is hereby established to reduce poverty within Miami communities and funding shall be utilized to meet the needs of at-risk/poverty-stricken residents. The API shall address poverty based on a strategy of focusing the provision of support towards the city's residents achieving self-sufficiency.

API encompasses the five city districts being allocated funds proportionate to the percentage of poverty levels in said district, based upon the five-year poverty rate determined by the American Community Survey, as established annually.

(1) *Funding.* API Funding is to be allocated and utilized per the API Program Guidelines, which may be amended from time-to-time, by Resolution adopted by the city commission.

Any disbursement of API funds in excess of $50,000.00 in any single city fiscal year to any single entity or organization shall require approval by resolution of the city commission by a four-fifths affirmative vote.

(2) *Eligibility of entities.* The following criteria shall be utilized when determining the eligibility of entities and organizations which may receive API funds:

Any eligible entity or organization who engages primarily in the following activities shall be eligible to receive and expend API funds:

- Educational programs for children, youth, and adults;
- Crime prevention programs;
- Elderly meals, transportation, recreational and health/wellness related activities;
- At-risk youth or summer job programs;
- Transportation services and programs;
- Job development, retentions, and training programs;
- Homeless services;
- Food distribution;
- Essential supplies during a state of emergency, natural disaster, economic crisis, or pandemic;
- Any programs deemed by the city to have a focus on promoting social, emotional, and academic success of impoverished residents of the city.

(3) API funds may be allocated to a city department for the purpose of affordable housing or park initiatives, including the purchase of land by the city for said initiatives, and for the aforementioned eligible activities.

Any entity or organization considered for or selected to receive API funds must complete a funding request form, funding agreement, and a close out report.

Any entity or organization considered for or selected to receive API funds must comply with any and all local, state and federal laws, rules, regulations, or guidelines associated with the programs funded, and such allocations may be revoked at the sole discretion of the city.
(Ord. No. 14131, § 2, 1-12-23; Ord. No. 14395, § 2, 9-25-25)

Secs. 18-140—18-145. Reserved.

Sec. 18-146. Economic accessibility initiative—Established.

The Economic Accessibility Initiative ("EAI") is hereby established to support the rapid increase of activity in the technology industry by providing accessibility into new opportunities for long-term residents to benefit from new career paths,

*__Editor's note—__Prior to the reenactment of article IV by Ord. No. 14086, § 4, adopted September 13, 2022, Ord. No. 13031, § 2, adopted October 16, 2008, repealed article IV, §§ 18-136—18-146 in its entirety, which pertained to the minority and women business affairs and procurement program, and derived from the Code of 1980, §§ 18-67—18-77; Ord. No. 10062, §§ 1—7, adopted December 19, 1985; Ord. No. 10332, §§ 1, 2, adopted October 22, 1987; Ord. No. 10538, §§ 1—5, adopted January 12, 1989; Ord. No. 11272, § 2, adopted June 1, 1995.

increasing small business support, access to greater entrepreneurship resources, and increased education for the youth to be better prepared for the ever-changing future.
(Ord. No. 14086, § 4, 9-13-22)

Sec. 18-147. Expenditures.

(a) The expenditure of economic accessibility initiative funds shall only be expended to benefit the interest of disadvantaged residents of the city.

(b) Eligible entities and organizations of the EAI include:

(1) For-profit organizations;

(2) Not-for-profit organizations (501(c)(3));

(3) Governmental agencies;

(4) Educational and academic institutions;

(5) City departments;

(6) Offices of city elected officials;

(7) City agencies or boards/committees.

(Ord. No. 14086, § 4, 9-13-22)

Sec. 18-148. Acceptance of grant funds.

The city manager is authorized to accept grant funds up to $50,000.00.

Any grant requiring a city match of funding and/or in-kind contribution shall be subject to commission approval. Any allocation of grant funds is subject to any other applicable sections of this Code. This section of the City Code does not apply to grants administered by the department of housing and community development.
(Ord. No. 14403, § 3, 10-23-25)

Secs. 18-149—18-175. Reserved.

ARTICLE V. SALE OR LEASE OF CITY'S REAL PROPERTY*

Sec. 18-176. Methods and procedures for sales and leases.

(a) Any sale, conveyance or disposition of any interest, including any leasehold in real property, owned by the city, the off-street parking department, or the downtown development authority shall be made in the manner set forth in this article, and said sale, conveyance or disposition shall be conditioned upon compliance with the provisions of this article V. Nothing in this section shall be construed to waive the special requirements for leases and contracts of waterfront property provided elsewhere in this Code or in the City Charter.

(b) In order to facilitate the implementation of a city policy before considering proposals requiring deferrals, abatements, credits or other reductions in payments to the city for leases and any other agreements for the use of the city's real property, including but not limited to license agreements, permits, use agreements and other related agreements, four affirmative votes of the city commission shall be required for approval of any such deferrals, abatements, credits or other reductions in payments.

(c) Before the city considers proposals requiring deferrals, abatements, credits or other reductions in payments to the city for leases and any all other agreements for the use of the city's real property, the lessee or party using the city's property shall provide an audited financial statement. Audited financial statements shall:

(1) Be prepared in accordance with generally accepted accounting principles (GAAP) in the United States;

(2) Be complete and include all notes to the statements and any auditor's reports associated with the audited financial statements; and

(3) Include, if associated with the financial statement, an auditor's opinion.

(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-78; Ord. No. 13151, § 2, 4-8-10)

Sec. 18-176.1. Unified development projects.

Unified development projects shall be as set forth in Charter Section 29-A.
(Ord. No. 12271, § 3, 8-22-02)

*__Charter references__—Powers with respect to acquiring and disposing of property, § 3(f); contracts for sales or lease of real property, §§ 29-A(d), 29-B.

Sec. 18-176.2. Cone of silence; exceptions.

The cone of silence shall be as set forth in section 18-74, except that, in the case of unified development projects or other matters governed by this article, the cone of silence shall be applicable only to contracts for amounts in excess of $500,000.00.
(Ord. No. 12271, § 3, 8-22-02)

Sec. 18-176.3. Procedures for resolution of protested UDP's and awards.

Procedures for resolution of protested UDP's and solicitations, awards, or recommendations for awards, shall be as set forth in section 18-104 of the City Code.
(Ord. No. 12271, § 3, 8-22-02; Ord. No. 13629, § 2, 9-8-16)

Sec. 18-177. Competitive sealed bidding.

(a) *Conditions for use.* Competitive sealed bidding shall be used in those circumstances in which it is practicable and advantageous for the city to specify all detailed plans, specifications, standards, terms and conditions relating to a property interest already owned by the city or to be acquired and disposed of by the city, so that adequate competition will result and award may be made to the highest responsible and responsive bidder. In all other instances there shall be a public notice required prior to the sale or disposition of city-owned property in order to allow potential purchasers to compete.

(b) *Invitations for bids.* An invitation for bids shall include, but not be limited to, all relevant items stipulated in section 18-79(b), as well as all information necessary to describe the particular property interest owned or to be acquired and disposed of, including any conditions or restrictions upon the use of such property.

(c) *Public notice.* Notice inviting bids shall be in accordance with the provisions of section 18-79(d).

(d) *Prebid conferences.* Prebid conferences to discuss the contemplated purchase or disposition of property interest may be held in accordance with provisions of section 18-79(e).

(e) *Bid opening.* Bid opening shall be in accordance with the provisions of section 18-79(f).

(f) *Bid acceptance and evaluation.* Bid acceptance and evaluation shall be in accordance with the procedures established by the chief procurement officer.

(g) *Award.* The city manager shall submit recommendations as to the award to the city commission, which may reject all bids. The contract shall be awarded with reasonable promptness by written notice to the responsible and responsive bidder whose bid offers the city the highest total compensation from the proposed sale, lease, conveyance or other disposition, as the case may be. The decision of the city commission shall be final. All contracts shall be approved as to form and correctness by the city attorney, and a copy shall be filed with the city clerk.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-78.1)

City Code cross reference—Competitive sealed bidding generally, § 18-79.

Sec. 18-178. Emergency conveyances.

The city commission or department of off-street parking board or the downtown development authority board of directors, as appropriate, may by resolution waive the requirement of sale, conveyance or disposition to the highest responsible bidder by means of the following procedure: The city manager, the director of the off-street parking department, or the director of the downtown development authority, as appropriate, must make a written finding, supported by reasons, that a valid emergency exists. Such finding must be ratified by an affirmative vote of two-thirds of the city commission or applicable board, after a properly advertised public hearing. In such event the city manager, the director of the off-street parking department, or the director of the downtown development authority, as appropriate shall solicit as many proposals as practicable for the sale, lease or conveyance or disposition of the property. The commission or applicable board, as appropriate, shall accept the proposal that is most advantageous.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-78.2)

Sec. 18-179. Sales to only possible bidder.

The requirement of competitive bidding may be dispensed with upon a written finding by the city manager that such methods would be futile for the reason that only one possible bidder could be chosen. In those instances the property shall be sold for the amount and in accordance with the procedure outlined in section 18-182(a)(3) of this article.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-78.2.1)

Sec. 18-180. Cancellations.

The city, the off-street parking authority, and the downtown development authority shall have

the right to cancel all invitations for bids or requests for proposals before bid opening or proposal submission and to reject all bids or proposals after receipt. All invitations for bids and requests for proposals shall contain a reservation of the foregoing rights. In the event of such a cancellation or rejection, the city manager or its designee shall promptly notify all affected bidders or offerors and make available to them a copy of the written explanation for such cancellation or rejection, which shall be a public record.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-78.3; Ord. No. 12271, § 3, 8-22-02)

Sec. 18-181. Applicability to off-street parking/downtown development authorities.

With the exception of the requirement for advertisement prior to sale of real property, as contained in subsection 18-85(d) of this article, the provisions contained elsewhere in this article are not required to be followed in effecting the sale, conveyance or disposition of real property owned by the Miami Parking Authority or the Downtown Development Authority.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-79)

Sec. 18-182. Authority to sell.

(a) The city manager is hereby authorized to sell any real property owned by the city not needed for public use or that may have become unsuitable for use by any city department, provided that:

(1) Such property cannot be leased so as to produce revenue to the city.

(2) Such property shall not be sold for less than its appraised or assessed value, unless express authority is given by the city commission.

(3) The deed of conveyance for such property shall contain a provision which requires that in the event the property is ever immune or exempt from the payment of ad valorem taxes, the grantee, or any of the grantee's assigns, heirs, or successors, shall pay to the city an annual payment which shall be equal to what the city would have received as ad valorem taxes based on the valuation method employed by the county property appraiser pursuant to F.S. ch. 193, as amended.

(b) For purposes of this section, appraised values shall be those determined by at least two independent appraisers, both of whom shall be members of the American Institute of Real Estate Appraisers, unless said appraisers cannot agree on value, in which case the higher value shall be deemed the appraised value.

(c) The city commission may declare an exemption from the restrictions contained in subsection (a) above and declare them inapplicable by resolution provided that the city manager has made a written finding that it is in the best interest of the city, which findings must be ratified by an affirmative vote of of the commission after a properly advertised public hearing.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-80; Ord. No. 11422, § 2, 12-12-96; Ord. No. 11640, § 2, 4-14-98)

Sec. 18-183. Commission on sale.

The city will pay a real estate percentage commission of five percent on all real estate sold by the city whenever a bid is made at a private sale through the efforts of a broker and the party making such bid is the purchaser of the property. The director of finance is hereby authorized to pay the same out of the proceeds of the sale.
Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-81)

Sec. 18-184. Expenses of abstract of title.

The director of finance is authorized to pay for the expense of updating or obtaining an abstract of title on all property sold by the city, to be paid out of the sale price of the property.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-82)

Sec. 18-185. Payment to be in cash, certified check.

Terms are deemed to be all cash at time of closing. All costs involved in the sale of the property shall be the responsibility of the buyer, with the exception of the abstract and all custom-

ary prorations of prepaid or delinquent costs. Buyer may pay cash, by cashier's check, by certified check, or by a combination thereof.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-83)

Sec. 18-186. City attorney responsible for closing of sale.

It shall be the responsibility of the city attorney to effect the closing of any city property which is sold under this article.
(Ord. No. 9572, § 1, 2-10-83; Code 1980, § 18-84)

Sec. 18-187. Disposition of proceeds from sale.

All money received from sales under this article shall be delivered over to the director of finance in accordance with the City Charter.
(Ord. No 9572, § 1, 2-10-83; Code 1980, § 18-85)

Sec. 18-188. Discrimination by lessees of city-owned property—Prohibited.

The lessee of any property of which the city is the owner shall not discriminate against or refuse or deny to any person or persons, guests or permittees the use of the facilities leased from the city because of race, creed, religion, color or national origin.
(Code 1967, § 38-9.1; Code 1980, § 37-13)

Sec. 18-189. Same—Requirements for organizations using city facilities.

In order to facilitate the implementation of the policy of the city as set forth in section 18-188, in instances wherein leases are entered into between the city and organizations or clubs for the use of city property or city facilities by the members thereof, such organizations or clubs shall comply with the following requirements:

(1) *Membership.*

a. Membership in the club or organization shall be available to all persons without discrimination as defined in section 18-188.

b. There shall be no requirement that applicants for enrollment be sponsored by anyone as a condition to such applicant being processed or accepted for membership.

c. The club or organization shall make a minimum of five percent of existing enrollment of the various types of membership in such club or organization available for new enrollment for a minimum period of 30 days of each year. The enrollment period shall commence July 1 of each year. In the event there is more than one type of membership available, this shall mean five percent of each type of membership shall be open to the general public.

d. Acceptance into membership shall be determined by simple majority vote of the general membership at a meeting designated for such purpose, and there shall be no secret ballot for admission to membership.

e. In the event there are a greater number of applicants than there are openings available for membership under the annual five percent of enrollments as set forth above, then, and in that event, new members in this enrollment period shall be selected by lot.

f. Within the 30-day period prior to the date of the commencement of the enrollment period described above in subparagraph (1)c, the club or organization shall advertise twice in two daily newspapers of general circulation published in the city a notice of the acceptance of new members as hereinabove provided, and notice of the purposes of the club or organization and of the programs offered by the club or organization to the public. The notice shall be printed on June 1 and June 14 of each year.

(2) *Dues.* All members in each of the various categories of membership shall pay equal dues, if any, within such categories.

(3) *Minutes of meetings.* All minutes of meetings, whether regular meetings or special meetings, or however designated, of such club or organization shall be posted upon the bulletin board upon the club premises within 30 days after the date of such meetings, and a copy thereof shall be forwarded to the city manager, or his/her designee.

(4) *Privileges.* All members in each category shall have equal rights and privileges.

(Code 1967, § 38-9.2; Code 1980, § 37-14; Ord. No. 13676, § 2, 4-27-17)

Sec. 18-190. Same—Provisions of sections 18-188 and 18-189 to be part of lease.

The foregoing matters as set forth in sections 18-188 and 18-189 being an implementation of the provisions of the Constitution of the United States of America and the constitution of the state, such provisions are to be considered a part of every such lease as described above entered into between the city and any person, firm, corporation, club or organization, regardless of the specific written terms of any lease now existing or to be entered into in the future.

(Code 1967, § 38-9.3; Code 1980, § 37-15)

Sec. 18-191. Same—Termination of lease for violations.

Any person, firm, corporation, club or organization violating the terms and conditions of sections 18-188 through 18-190 shall be subject to having its lease forthwith terminated by the city for such violation, upon due notice to the violator and upon an opportunity to be heard before the city commission concerning such violation.

(Code 1967, § 38-9.4; Code 1980, § 37-16)

Secs. 18-192—18-220. Reserved.

ARTICLE VI. SELF-INSURANCE AND INSURANCE TRUST FUND

Sec. 18-221. Created; sources.

(a) There is hereby created a city self-insurance and insurance trust fund, the fund to which shall be credited all money deposited in the city treasury by appropriation or from any other source, together with any unexpended balance of any appropriation heretofore made for the expenditure of public funds, for or accruing from:

(1) The payment of claims and judgments against the city involving the acts of officers or employees of the city or property belonging to the city.

(2) Insuring or providing for the insurance of any real or personal property or operation of the city against risks or hazards.

(3) The maintenance of hurricane disaster funds.

(4) The recovery of tort claims against other parties.

(5) Fines and forfeitures levied against employees as a result of being found responsible for preventable accidents.

(6) Amounts received from parties contracting with the city for providing insurance coverage to protect the parties for any and all risks involving activities or property associated with the contracts.

(7) Income accruing from the investment of the trust funds.

(b) Such funds are to be expended in accordance with the provisions and for the purposes stated in this article. The fund shall be segregated from other funds in the city treasury and shall be administered by the board of trustees appointed for that purpose.

(Code 1967, § 16-47; Code 1980, § 18-93)

Sec. 18-222. Appropriation of money.

All money accumulated in the fund is hereby appropriated for the purposes for which designated, to be expended in accordance with the provisions and procedures established by this article.

(Code 1967, § 16-48; Code 1980, § 18-94)

Sec. 18-223. Board of trustees—Composition; discharge of duties; compensation; powers.

(a) The board of trustees for the city self-insurance and insurance trust fund, referred to as "the trustees," shall be composed of the city manager as chairman, the director of finance and the insurance manager. The trustees shall discharge their duties during normal duty hours and shall not be entitled to additional compensation by reason of their services as trustees. However, they shall be reimbursed for any expenses incurred. The trustees shall invest all the trust funds to the fullest extent consistent with the cash requirements and investment objectives of the fund.

(b) The trustees shall have the power to make purchases, sales, exchanges, investments and reinvestments for and on behalf of the fund. It shall be the duty of the trustees to see that the money invested is at all times handled in the best interest of the city.
(Code 1967, § 16-49; Code 1980, § 18-95)

Sec. 18-224. Same—Oath of office.

Each trustee shall take an oath of office and make written acknowledgment of his/her acceptance of the duty, responsibility and authority of a trustee.
(Code 1967, § 16-50; Code 1980, § 18-96; Ord. No. 13676, § 2, 4-27-17)

Sec. 18-225. Same—Meetings.

The board of trustees shall hold regular meetings at least quarterly each year and special meetings at such time as the chairperson may deem necessary.
(Code 1967, § 16-51; Code 1980, § 18-97; Ord. No. 13676, § 2, 4-27-17)

Sec. 18-226. Disbursement of money.

The trustees shall disburse money from the fund to the director of finance upon his/her requisition and certification that the expenditure of the funds so requisitioned is to accomplish the purpose of the self-insurance and insurance program. The receipt for such funds shall constitute a full acquittance to the trustees.
(Code 1967, § 16-52; Code 1980, § 18-98; Ord. No. 13676, § 2, 4-27-17)

Sec. 18-227. Sale or exchange of securities and investments.

Securities or investments purchased or held under the provisions of this article may be sold or exchanged for other securities or investments, provided that no sale or exchange shall be at a price less than the market price of the securities or investments to be sold or exchanged.
(Code 1967, § 16-53; Code 1980, § 18-99)

Sec. 18-228. Investment of funds.

Trust funds may be invested without limitation in:

(1) Bonds, notes or other obligations of the United States or those guaranteed by the United States or for which the credit of the United States is pledged for the payment of the principal and interest or dividends thereof.

(2) Certificates of deposit of any bank incorporated under the laws of this state or any national bank organized under the laws of the United States to do business and situated in this state, to the extent that such savings accounts are insured with the federal government or any agency thereof, and if the certificates of deposit are secured by the deposit of securities of the United States government.

(Code 1967, § 16-54; Code 1980, § 18-100)

Sec. 18-229. Self-insurance and insurance committee—Appointment; composition; chairperson.

There shall be appointed annually by the city manager a committee to be known a the city self-insurance and insurance committee. The committee shall be composed of three members who shall be selected from among the officers or employees of the city. The city manager shall designate one of the members to act as

chairperson. The committee shall administer the self-insurance program and maintain appropriate records which shall reflect the status of the program and be in such detail as required to enable the committee to determine appropriate reserves. The committee shall determine and recommend to the city commission the amount of reserves to be accumulated and maintained and the amount to be appropriated annually to finance the self-insurance and insurance program.
(Code 1967, § 16-55; Code 1980, § 18-101; Ord. No. 13676, § 2, 4-27-17)

Sec. 18-230. Same—Responsibilities.

The committee shall, as expeditiously as possible, with due regard to the financial security of the city, proceed to establish the means whereby the city shall become self-insured in primary insurance coverage while maintaining umbrella coverage to insure against catastrophic losses. The means contemplated include the establishment of financial reserves and securing adequate qualified personnel, supplies and equipment to perform required services in an economical and efficient manner. The committee is specifically authorized and directed to ascertain that the city's financial interest is fully protected at all times. Any provisions of this article to the contrary notwithstanding, in the event that adequate financial reserves have not been provided or an analysis of the costs involved demonstrates that it is more economical for the city to maintain coverage for certain specific risks through commercial insurance policies, the committee is authorized and directed to procure such coverage. The premiums shall be paid from trust funds unless the city commission shall have directed otherwise and provided funds for that purpose. The committee shall utilize the services of regular city employees to the greatest extent practical, but may procure specialized services on a fee basis from independent contractors when such action is not prohibited by law. Where personal services for the program rendered by regular city employees require the expenditure of a substantial portion of the employees' working time on a regular or recurring basis the pro rata costs of such time, including all emoluments, shall be charged as an expense of the program. The commission may provide for the payment of such expenses during the regular budgeting process by providing funds for the payment of such personnel in the appropriate departmental budget with a corresponding reduction in the amount appropriated directly to the trust fund. In the event that the program shall require personnel services, payment for which shall not have been provided in the budget, the trustees shall provide funds expended or to be expended for such services.
(Code 1967, § 16-56; Code 1980, § 18-102)

Sec. 18-231. Operation and function of insurance program.

It is the intention of the commission of the city that the insurance program shall operate and function in a manner similar to a commercial insurance company. Accordingly, all expenses arising from the operation of the program shall be paid from the fund to the same extent as similar expenses would be discharged by the payment of premiums to a commercial insurance carrier.
(Code 1967, § 16-57; Code 1980, § 18-103)

Sec. 18-232. Responsibilities of city attorney.

(a) The city attorney shall perform or supervise the performance of all legal services required to accomplish the purposes of the self-insurance and insurance program. Legal services shall include, but not be limited to, the defense or prosecution or negotiation of settlement agreements of all claims or suits, the investigation of all claims and settlement of those claims found to be well founded for which the amounts claimed are payable from the trust fund.

(b) The city attorney and such of his/her assistants and claims adjusters as he/she may designate may compromise, settle and pay all claims which may be discharged by payment of an amount not to exceed $25,000.00 for each individual claim. Such settlements or compromises shall be for all damages claimed for personal injury, property damage, or both.

(c) Proposed settlements in excess of $25,000.00 shall be submitted to the city commission for its approval prior to acceptance. The city commission shall waive its attorney-client privilege of confidentiality for said settlements for purposes of review by the Financial Emergency Oversight Board.

(d) Upon approval by the city commission or the city attorney, as specified in the two preceding paragraphs [subsections (b) and (c) of this section], the city attorney shall authorize the payment of the claim by the finance director and provide such documents as the finance director may require.

(e) The city attorney shall render such report or reports for the settlement of claims to the committee and the city commission as they shall require.

(Code 1967, § 16-58; Ord. No. 8718, § 1, 10-26-77; Ord. No. 10072, § 1, 1-23-86; Code 1980, § 18-104; Ord. No. 11583, § 1, 12-30-97; Ord. No. 13676, § 2, 4-27-17)

Secs. 18-233—18-260. Reserved.

ARTICLE VII. REDEVELOPMENT TRUST FUND*

Sec. 18-261. Payments into fund by city.

There shall be paid into the fund, and the city hereby appropriates, commits and sets over for payment into the fund, a sum equal to that increment from the income proceeds, revenues and funds of the city derived from, or held in connection with the project area, and the city's undertaking and carrying out of the project area therein. Such increment shall be determined and appropriated annually, and shall be an amount equal to the difference between:

(1) That amount of general operating and debt service ad valorem taxes levied each year by the city on taxable real property contained within the geographic boundaries of the project area; and

(2) That amount of operating and debt service ad valorem taxes which would have been produced by the rate upon which the tax is levied each year by or for the city upon the total of the assessed value of the taxable property in the project area as shown upon the assessment roll used in connection with the taxation of such property by the city, last equalized January 1, 1982.

(Ord. No. 9590, § 1(1), 4-6-83; Code 1980, § 18-111)

Sec. 18-262. Annual appropriations by city.

The city will annually appropriate to the fund the aforestated sum at the beginning of the city's fiscal year. The fund shall receive the tax increment above described only as, if and when such taxes may be collected by the city. The city's obligation to annually appropriate to the fund shall commence immediately upon the effective date of this article and continue until all loans, advances and indebtedness, if any, and interest thereon incurred by the city as a result of the project have been paid and only to the extent that the tax increment recited above accrues.

(Ord. No. 9590, § 1(2), 4-6-83; Code 1980, § 18-112)

Sec. 18-263. Rules and regulations.

The city manager is directed to develop and promulgate rules, regulations and criteria whereby the fund may be promptly and effectively administered, including the establishment and the maintenance of books and records and adoption of procedures whereby the city may, expeditiously and without undue delay, utilize such funds for their allocated statutory purpose.

(Ord. No. 9590, § 1(3), 4-6-83; Code 1980, § 18-113)

Sec. 18-264. Responsibility for fund monies.

The city accepts full responsibility for the receipt, custody, disbursement, accountability, management and proper application of all monies paid into the fund.

(Ord. No. 9590, § 1(6), 4-6-83; Code 1980, § 18-114)

*__Editor's note—__The project referred to herein is the "Southeast Overtown/Park West Community Redevelopment Plan."

Secs. 18-265—18-290. Reserved.

ARTICLE VIII. STORMWATER UTILITY FEES*

Sec. 18-291. Authority.

The city is authorized by the provisions of F.S. ch. 166 and the Florida Constitution to construct, reconstruct, improve, and extend stormwater utility systems and to issue revenue bonds and other debts if needed to finance in whole or part the cost of such system and to establish just and equitable rates, fees, and charges for the services and facilities provided by the system.
(Ord. No. 10395, § 1, 3-10-88; Code 1980, § 53.5-21)

Sec. 18-292. Findings and determinations.

It is hereby found, determined, and declared as follows:

(1) Those elements of the system which provide for the collection of and disposal of stormwater and surface water and regulation of groundwater are of benefit and provide services to all property within the city including property not presently served by the storm elements of the system.

(2) The cost of operating and maintaining the city stormwater management system and financing necessary repairs, replacements, improvements, and extension thereof should, to the extent practicable, be allocated in relationship to the benefits enjoyed and services received therefrom.

(Ord. No. 10395, § 2, 3-10-88; Code 1980, § 53.5-22)

Sec. 18-293. Stormwater utility fee for the stormwater management system.

(a) A stormwater utility fee is hereby imposed upon each developed lot and parcel within the city for services and facilities provided by the stormwater management system. For purposes of imposing the stormwater utility fee, all lots and parcels within the city are classified into the following two customer classes:

(1) Residential.

(2) Nonresidential.

The city manager or his/her designee is directed to prepare a list of lots and parcels within the city and assign a classification of residential or nonresidential to each lot or parcel.

(b) There are hereby established the following procedures and criteria used to determine rates for the services and facilities of the municipal stormwater management system:

(1) Hereby established are reasonable rates for stormwater management systems for each residential dwelling unit, i.e., single-family detached home, condominium unit, apartment or townhouse unit, or mobile home unit shall be billed at a flat fee as established herein for an equivalent residential unit. An equivalent residential unit is hereby defined as the statistical average horizontal impervious area of all residences in the city which have been appraised as residences by the county property appraiser's office. The total impervious area of each residence includes all areas covered by structures and impervious amenities such as, but not limited to, rooftops, patios, porches, and driveways. In the city an equivalent residential unit (ERU) equals 1,191 square feet.

(2) For all nonresidential properties, i.e., enterprise, business establishment, building, or other occupancy not covered by subsection (b)(1) of this section, the rate shall be computed based on the total impervious area of the property divided by the average impervious area of an equivalent residential unit times the rate established for an equivalent residential unit. The billing amount shall be updated

*__Editor's note—__Ord. No. 13366, § 2, adopted March 14, 2013, changed the title of article VIII from "Stormwater Utility Fees and Fund" to "Stormwater utility fees."

__City Code cross references__—Environmental preservation, ch. 17; landfills and waterfront improvements, ch. 29; sewers and sewage disposal, ch. 49; subdivisions, ch. 55.

by the department of resilience and public works based on any additions to the impervious areas.

(Ord. No. 10395, § 3, 3-10-88; Ord. No. 10616, § 1, 7-13-89; Code 1980, § 53.5-23; Ord. No. 11282, § 2, 7-13-95; Ord. No. 13366, § 2, 3-14-13; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Editor's note—Ord. No. 13366, § 2, adopted March 14, 2013, changed the title of section 18-293 from "Stormwater management system fee" to "Stormwater utility fee for the stormwater management system." The historical notation has been preserved for reference purposes.

Sec. 18-294. Schedule of rates.

(1) The rates to be charged for stormwater management for each residence or dwelling unit shall be the base rate per month in the amount of $7.00.

(2) The rates to be charged for nonresidential properties, i.e., all occupancies other than provided for in subsection (1) of this section, shall be the rate established in subsection (1) (the current base rate per month) multiplied by the number of equivalent residential units. The number of equivalent residential units equals the total square footage of impervious area of the property divided by 1,191 square feet (statistically developed average for a residence in the city). Equivalent residential units will be rounded to the nearest tenth of a unit. A minimum charge based on one-half of one equivalent residential unit (0.5 ERU) will be assigned to any property calculated to be less than 0.5 ERU.

The base rate per month shall increase each year by $0.50 and shall be reviewed every five years by the department of resilience and public works, providing a report to the city manager to determine if any revision of the base rate per month is appropriate.

(Ord. No. 10395, § 4, 3-10-88; Ord. No. 10616, § 1, 7-13-89; Code 1980, § 53.5-24; Ord. No. 11282, § 2, 7-13-95; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14432, § 2, 1-8-26)

Sec. 18-295. Collection of charge.

The stormwater utility fee is to be paid as billed by the owner, tenant, or occupant of each lot or parcel which is subject to the stormwater utility fee. Persons using the services and facilities of the stormwater management system shall be rendered bills or statements for the use of these services and facilities of said system by one of the following methods:

(1) By the Miami-Dade Water and Sewer Department of Miami-Dade County, which said bills or statements shall be payable at the same time and in the same manner and subject to the same discontinuance of service of said system of the Miami-Dade Water and Sewer Department as set forth under the terms and conditions of sections 2-340 and 2-341 of the Code of Miami-Dade County as amended.

(2) The owner, tenant, or occupant of lots or parcels subject to the stormwater utility fee and not otherwise charged shall receive an annual or semiannual bill or statement directly from the city, which said bills or statements shall be payable within the same time limits and in the same manner and subject to the same penalties as prescribed for waste fees under sections 22-88 and 22-89 of this Code, except that the nonpayment of the stormwater utility fee shall not cause the unpaid amount to become a lien against all improved real property subject to the stormwater utility fee.

(Ord. No. 10395, § 5, 3-10-88; Code 1980, § 53.5-25; Ord. No. 11282, § 2, 7-13-95; Ord. No. 13366, § 2, 3-14-13)

Sec. 18-296. Adjustment of stormwater utility fees.

(a) Requests for adjustment of the stormwater utility fee shall be submitted through the director of the department of resilience and public works, herein referred to as director, who shall be given authority to administer the procedures and standards and review criteria for

the adjustment of fees as established herein. The following procedures shall apply to all adjustment requests of the stormwater utility fee:

(1) Any owner, tenant or occupant who has paid his/her stormwater utility fees and who believes the contribution rate component of his/her stormwater utility fee to be unjust or inequitable may, subject to the limitations set forth in this article, submit his/her adjustment request to the director.

(2) Adjustment requests for stormwater utility fees paid by an owner, tenant or occupant making the request shall be in writing and set forth, in detail, the grounds upon which relief is sought.

(3) Adjustment requests made during the first calendar year that the stormwater utility fee is imposed will be reviewed by the director within a one-year period from the date of filing of the adjustment request. Adjustments resulting from such request shall be retroactive to the beginning of billing, but shall not exceed three years.

(4) All adjustment requests for the stormwater utility fee shall be reviewed by the director within a four-month period from the date of filing of the adjustment request. Adjustments resulting from such requests shall be retroactive to the date of filing of the request. Under no circumstances will the city be financially liable beyond the time limits set forth herein.

(5) The owner, tenant or occupant requesting the adjustment may be required, at his/her own cost, to provide supplemental information to the department of resilience and public works including, but not limited to, survey, data and engineering reports, approved by either a registered professional land surveyor (R.P.L.S.) or professional engineer (P.E.). Failure to provide such information may result in the denial of the adjustment request.

(6) Adjustments to the stormwater utility fee will be made upon the granting of the adjustment request, in writing, by the director. All adjustments will be prorated in accordance with the established procedures of the Miami-Dade Water and Sewer Department. Denials of adjustment requests shall be made in writing by the director.

(b) The following standards and review criteria shall apply to all adjustment requests of the stormwater utility fee:

(1) Existing or special characteristics of the site or parcel for which the adjustment request is made will be considered.

(2) The amount of on-site impervious area.

(3) The design storm frequency and storm duration criteria currently in use by the department of resilience and public works at the time of the adjustment request will be the minimum accepted and the standard recognized by the director for stormwater management systems draining the public right-of-way.

(4) Ponds, exfiltration systems or positive drainage facilities accepting stormwater from the public right-of-way must meet applicable city, state, and federal requirements including groundwater protection devices and outfall treatment and conveyance systems required by all governing bodies.

(5) Ponds, exfiltration systems or positive drainage facilities accepting stormwater from the public right-of-way must be maintained according to city standards and must function in accordance with required city design standards.

(6) Adjustments will not be granted for swimming pools, reflecting pools, existing open ditch systems, and swales.

(7) Adjustments will not be granted for compliance with on-site storm drainage/retention rules and regulations for private property development.

(c) Upon receipt of the written denial of the adjustment request, the owner, tenant or occupant who initially requested the adjustment may, within 30 days of receipt of such denial, apply to the director for review of the denial.

(1) The director, exclusive of his/her designee, shall complete his/her review within 60 days of receipt of said request for review. The director's determination on the review shall be in writing and set forth, in detail, the reasons for his/her decision.

(2) In reviewing denials of adjustment requests, the director, exclusive of his/her designee, shall apply the standards and review criteria contained in this section. In the event of a hardship the director, exclusive of his/her designee, may base his/her determination on written grounds other than those contained herein.

(3) All determinations of the director arising out of this section will be final.

(Ord. No. 10395, § 6, 3-10-88; Ord. No. 11076, § 1, 7-22-93; Code 1980, § 53.5-26; Ord. No. 13366, § 2, 3-14-13; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Editor's note—Ord. No. 13366, § 2, adopted March 14, 2013, changed the title of section 18-296 from "Adjustment of fees" to "Adjustment of stormwater utility fees." The historical notation has been preserved for reference purposes.

Sec. 18-297. City manager to keep records.

It shall be the duty of the city manager to keep an accurate record of all persons using the services and facilities of the said municipal stormwater management system of the city and to make changes in accordance with the rates and charges established in this article.

(Ord. No. 10395, § 7, 3-10-88; Code 1980, § 53.5-27)

Sec. 18-298. Stormwater utility fee account.

There shall be established a stormwater utility fee account(s), in lieu of a trust fund, for the deposit of all fees and charges collected by the stormwater utility fee. These funds shall be for the exclusive use of the stormwater management system for the following expenditures:

(1) Operation and maintenance of the stormwater management system.

(2) Funding of pollution abatement devices constructed on stormwater systems discharging to Biscayne Bay and its tributaries.

(3) Administrative costs associated with the management of the stormwater management system.

(4) Debt service financing.

(5) Expansion of the existing storm drainage system.

(6) Annual fair share funding support for the Miami River commission.

(7) Compliance with federal, state and county regulations.

(Ord. No. 10395, § 8, 3-10-88; Ord. No. 10616, § 1, 7-13-89; Code 1980, § 53.5-28; Ord. No. 11282, § 2, 7-13-95; Ord. No. 11996, § 2, 11-16-00; Ord. No. 13366, § 2, 3-14-13)

Editor's note—Ord. No. 13366, § 2, adopted March 14, 2013, changed the title of section 18-298 from "Stormwater utility trust funds" to "Stormwater utility fee account." The historical notation has been preserved for reference purposes.

Secs. 18-299—18-499. Reserved.

ARTICLE IX. FINANCIAL POLICIES

DIVISION 1. ANTI-DEFICIENCY ACT*

Sec. 18-500. Established.

Regulations, to be known as the Anti-Deficiency Act, are hereby established to provide mandatory procedures to be used by department directors, the city manager, city attorney, city clerk, mayor, commissioners, and executive directors of agencies, authorities, trusts, boards, or commissions funded in whole or in part by the city, with authority to direct obligation or disbursement of city funds. However, the herein regulations shall

*__Note—__See the editor's note to Ch. 2, Art. XII.

not apply to the three City of Miami Retirement Trusts which are the City of Miami Firefighters' and Police Officers' Retirement Trust, the City of Miami General Employees' and Sanitation Employees' Retirement Trust, and the City of Miami Elected Officers' Retirement Trust.
(Ord. No. 11727, § 2, 11-17-98; Ord. No. 11890, § 2, 2-10-00; Ord. No. 12026, § 2, 2-22-01)

Sec. 18-501. Definitions.

As used in this article:

Agency or agencies shall mean, including, but not limited to, any agency(s), authority(s), trust(s), board(s), or commission(s) funded in whole or in part by the city, except the City of Miami Firefighters' and Police Officers' Retirement Trust, the City of Miami General Employees' and Sanitation Employees' Retirement Trust, and the City of Miami Elected Officers' Retirement Trust.

Authority to direct obligation or disbursement shall mean any permission, approval, consent, or signature from a department director or executive director of an agency, authority, trust, board, or commission funded in whole or in part by the city, except for the City of Miami Firefighters' and Police Officers' Retirement Trust, the City of Miami General Employees' and Sanitation Employees' Retirement Trust, and the City of Miami Elected Officers' Retirement Trust (the "Retirement Trusts"), or a single individual, specifically designated in writing by a department director or executive director of an agency, authority, trust, board, or commission funded in whole or in part by the city, except for the Retirement Trusts, and acknowledged and accepted in writing by the designee, and kept on file within the department, agency, authority, trust, board, or commission funded in whole or in part by the city, except for the Retirement Trusts, regardless of form, which permits or authorizes expenditure of funds, excluding documents or forms which process such authority.

Department directors shall mean directors of all departments of the city including heads of offices and shall include persons responsible for individual budgets as set forth in the annual appropriations ordinance. Notwithstanding any delegation of authority for the act of budget oversight, heads of departments or offices shall not be relieved of responsibility related to this act.

Executive director shall mean the executive directors of all agencies, authorities, trusts, boards, or commissions, including heads of offices, funded in whole or in part by the city, and shall include persons responsible for the individual annual budgets for each agency, authority, trust, board or commission approved by the city commission, except for the City of Miami Firefighters' and Police Officers' Retirement Trust, the City of Miami General Employees' and Sanitation Employees' Retirement Trust, and the City of Miami Elected Officers' Retirement Trust. Notwithstanding any delegation of authority for the act of budget oversight, the executive director shall not be relieved of responsibility related to this Act.

Obligational authority shall mean any document, ordinance, resolution or paper, regardless of form, which grants permission for an expenditure.
(Ord. No. 11727, § 2, 11-17-98; Ord. No. 11890, § 2, 2-10-00; Ord. No. 12026, § 2, 2-22-01)

Sec. 18-502. Procedures and implementation.

The procedures set forth herein apply where a continuing ordinance or resolution of the city commission which specifically directs an expenditure of funds, and identifies a source of funds to increase the obligation/expenditure authority has not been enacted, extended, or renewed by the city commission to provide temporary obligational authority. Notwithstanding the adoption of an ordinance or resolution by the city commission expending funds, any ordinance or resolution which exceeds an approved departmental or agency budget may be considered voidable and shall be placed on the next regular city commission agenda by the city manager or executive director for budget approval and adjustments as deemed appropriate. Nor may any individual in authority instruct an employee of the city to exceed, without legal authority, the annual budget appropriation for any department

or agency. This following Anti-deficiency Act is hereby enacted and regulations set forth as follows:

(1) This section applies to all obligations chargeable to annual appropriations, and prior year billing, or multiple-year appropriations which have expired, and for which the obligational authority has not been extended. This section shall additionally apply to the city manager, department directors, and executive directors with authority to approve overtime budgets.

(2) The city manager, assistant city managers, department directors, and executive directors with authority to direct obligation or disbursement of city funds may not enter into contracts or any other agreements for the future payment of money in excess of those funds approved in the current year budget by ordinance or resolution. However, the terms and conditions set forth in the document related to debt issuance and long-term capital improvement projects and other approved multi-year agreements shall be controlling.

(3) Any obligation incurred in excess of an annual departmental or agency appropriation represents a violation of the Anti-Deficiency Act. No such obligation shall be incurred unless the city commission or city manager through emergency powers, has enacted legislation or exercised authority extending a department's or agency's obligational authority of a department or agency. However, should an emergency, defined under state law as any occurrence, or threat thereof, whether natural, technological, or manmade, in war or in peace, which results or may result in substantial injury or harm to the population or substantial damage to or loss of property, occur and temporary obligation authority is authorized, said obligations and authority shall require an ordinance or resolution for the ratification, approval and confirmation of said action together with such other necessary actions to ensure a balanced year-end budget by an affirmative majority vote of the members of the city commission at the next immediate regularly scheduled meeting of the city commission or special meeting called for that purpose.

(4) The prohibitions contained herein are applicable to the city manager, department directors, or executive directors with the authority to verify and/or approve the availability of funds, disburse or obligate funds for the city. The provisions contained herein apply to the offices of the mayor, city clerk, city attorney, city commission, the city manager, all departments and agencies budgets which incorporate overtime budgets and prior year billings, and funds, including but not limited to non-departmental accounts and the capital improvements program.

(5) The city manager shall promulgate policies which instruct department directors with authority to direct obligation or disbursement of city funds to assure compliance with this act.

(6) The city commission shall promulgate policies which instruct executive directors with authority to direct obligation or disbursement of city funds to assure compliance with this act.

(7) The official or employee verifying the availability of funds, and/or approving budget authority and/or certifying a voucher, purchase order or any other paper indicating availability of funds is responsible for ensuring that the expenditure will not exceed the department's or agency's current year budget appropriations for that line item.

(8) Any employee of the city who has knowledge or a reasonably based belief that a budget of the city may be in violation of this act shall have the right to be heard under the provisions for a monthly status of the city budget set

forth below. Any such person shall not be penalized in any manner for actions taken to report violation of this act.

(9) A department director or executive director with obligation or disbursement authority shall be in violation of this act if he/she willfully withholds invoices, payments, settlement, or any other instrument of city debt which were incurred and due in the current fiscal year in an effort to avoid exceeding the approved current year budget.

(10) The city manager shall have the authority to adjust line items in an amount not to exceed ten percent of a department's budget so long as the total annual projected expenditures of a department do not exceed the department's current budget, and said adjustment is verified by the department of management and budget. Additionally, all proposed budget adjustments between departments, including capital improvements projects shall require approval by city commission ordinance or resolution. During the fourth quarter of the fiscal year, any changes or deviations in excess of $5,000.00 per transaction from the current approved budget for those departments under the authority of the city manager shall require city manager approval, with the advice and written concurrence of the member of the city commission designated as the presiding officer, a copy of which shall be provided to the city clerk.

(11) The executive director shall have the authority to adjust line items in an amount not to exceed ten percent of an agency's budget so long as the total annual projected expenditures of the agency does not exceed the agency's current budget, and said adjustment is verified in a manner using acceptable accounting principles. During the fourth quarter of the fiscal year, any changes or deviations in excess of $5,000.00 per transaction from the current approved budget for those agencies shall require written concurrence of the member of the city commission designated as the presiding officer, a copy of which shall be provided to the city clerk.

(12) Notification of possible deficiency. Any department director, executive director or individual with authority to verify the availability of funds, or direct obligation or disbursement of city funds who anticipates or has reason to believe that the annual budget of a department or agency may exceed the sum appropriated in the approved budget ordinance or resolution (a "deficiency") shall immediately provide written notification to the mayor, the city commission, city manager, city attorney, city clerk, and the director of the department of management and budget. Said notification shall include the cause of the deficiency, the amount of the deficiency and the recommended remedial action to cure the deficiency.

(13) The city manager shall present monthly, except during the month of September, a written report on the status of the city budget at a city commission meeting. The executive directors of all agencies shall each present quarterly, except during the month of September, a written report on the status of the individual agency's budget at a city commission meeting. At a minimum, this report should generally include, but not be limited to, the following information in a form acceptable to the city commission: fund summary, revenues by category and expenditures by major object, revenues by category and expenditure by department, or revenues by minor object-recurring/non-recurring, expenditures by minor object-recurring/non-recurring, revenues by minor object-recurring, revenues by minor object-non-recurring, expenditures by minor object-recurring, expenditures by minor object-non-recurring, bank reconciliation memo, cash positions for all funds, investments outstanding as of the preceding month, cash received year to date, cash received for the current month or

preceding month, cash received year to date, cash received for the current month or preceding month, human resource personnel reports, including computation which details sworn or unsworn personnel. The city external auditor shall present the comprehensive annual financial report or status thereof no later than the end of the second quarter of each fiscal year. The external auditors engaged by the individual agencies shall each present the agencies' comprehensive annual financial reports or status thereof no later than the end of the second quarter of each fiscal year.

(Ord. No. 11727, § 2, 11-17-98; Ord. No. 11890, § 2, 2-10-00; Ord. No. 12026, § 2, 2-22-01)

Sec. 18-503. Violations of act; penalties.

(1) A duly adopted ordinance or resolution shall provide obligational authority and if enacted will not constitute a violation of this act.

(2) No provision contained in this section shall be construed to violate fair labor laws or any provision of the current, approved union contracts, or any other legally binding issues which have been the subject of collective bargaining.

(3) Effective January 1, 2000, the violation of any provisions of this act shall constitute a civil offense and be punishable by civil penalty in an amount not to exceed $500.00, in a court of competent jurisdiction. Without regard to culpability, violation of this law may serve as one element of a basis for employment termination.

(Ord. No. 11727, § 2, 11-17-98; Ord. No. 11890, § 2, 2-10-00)

Secs. 18-504—18-540. Reserved.

DIVISION 2. FINANCIAL INTEGRITY PRINCIPLES

Sec. 18-541. Established; implementation; review; reports.

(a) Financial integrity principles and policies to assure and maintain financial integrity in the city are hereby established and shall be implemented immediately upon adoption of this division.

(b) The financial integrity principles as set forth herein shall be reviewed and updated as necessary, at least every three years. The city's independent auditor general shall be responsible for preparation of a written report to be transmitted to the mayor and the members of the city commission by July 1 of each year as to compliance with the principles and policies set forth in this division. The report shall include recommendations for additional policies or actions, to be considered for action after reviewing the latest annual audit comprehensive annual financial report (CAFR), single audit report, and management letter comments.

(Ord. No. 11890, § 4, 2-10-00; Ord. No. 12276, § 2, 9-11-02; Ord. No. 12727, § 2, 9-22-05; Ord. No. 13767, § 2, 5-10-18; Ord. No. 13899, § 4, 4-9-20)

Sec. 18-542. Financial integrity principles.

The following financial integrity principles are hereby adopted:

(1) *Structurally balanced budget.* The city shall maintain a structurally-balanced budget. Recurring revenues will fund recurring expenditures.

(2) *Revenue estimating conference process.* The city shall adopt budgets and develop its long and short-term financial plans utilizing a professional revenue estimating conference process. Conference principals shall include, but not be limited to one principal from the city's budget office; one principal from the city's finance department; and two non-staff principals with public finance expertise.

(3) *Interfund borrowing.* The city shall not borrow or use internal fund transfers to obtain cash from one fund type or reserve to fund activities of another fund type or reserve unless such use is deemed lawful, and unless the revenue estimating conference has determined that (a) the funds to be loaned will not be needed during the lending period, and (b) the funds for repayment will be available within a two-year period. Any actions taken to borrow funds under these conditions must

be separately presented to and approved by the city commission and the term of such borrowing shall not extend beyond the last day of the subsequent fiscal year.

Recognizing that some programs are funded by grants or other entities on a reimbursement basis, the city shall apply for such reimbursements on a timely basis to minimize the period that city funds are used as float. In the event loans/float for these reimbursements extend beyond the end of a fiscal year, such reimbursements shall be reflected as receivables in the annual comprehensive financial report (ACFR) to the extent allowed under accounting principles generally accepted in the United States of America (GAAP). The department of finance shall make a quarterly determination of the amount of expenses incurred which may not be reimbursable under these programs. A quarterly report of expenses incurred but not reimbursable shall be presented to the city commission, together with the actions needed to avoid project deficits.

(4) For purposes of this section: "city-wide surplus for any fiscal year" is defined as the increase in unreserved general fund balance as reflected in the city's ACFR; "city-wide deficit for any fiscal year" is defined as the decrease in unreserved general fund balance as reflected in the city's ACFR; and "budget surplus of any office, department or elected official" is defined as the excess of budgeted expenses over actual expenses in any fiscal year.

Notwithstanding anything to the contrary in this section, the total amount of budget surplus to be added to designated reserves and special revenue funds pursuant to this section (together, the "rollover amounts") is limited to city-wide surplus for any fiscal year. In the event the rollover amounts would result in a city-wide deficit, then each budget surplus within the rollover amounts shall be reduced proportionately so the city's ACFR) will reflect no change in undesignated, unreserved general fund balance. In the event that a city-wide deficit would result before effecting the rollover amounts in any fiscal year, then no rollover amounts shall be available.

a. Budget surpluses in an elected official's budget in any fiscal year shall be reflected as designated reserves at the end of the fiscal year in which such surplus arose and be appropriated for discretionary use of such elected official for the following fiscal year.

b. Budget surpluses of the parks and recreation department shall be allocated, as of the end of the fiscal year in which such surplus arose, to a parks and recreation department special revenue fund. Allowed expenditures from the parks and recreation department special revenue fund shall be limited to the purchase of parks recreational and maintenance equipment, capital improvements for the city's parks, and the direct operations of recreational programs in and for the city's parks, subject to appropriation by the city commission.

c. Budgeted surpluses of the department of real estate and asset management shall be allocated, as of the end of the fiscal year in which such surplus arose, to a public facilities special revenue fund. Allowed expenditures of the public facilities special revenue fund shall be limited to capital improvements for the city's public facilities, subject to appropriation by the city commission.

d. Budgeted surpluses of the department of innovation and technology shall be allocated, as of the end of the fiscal year in which such surplus arose, to an IT strategic plan special revenue fund. Allowed expenditures of the IT strategic plan special revenue fund shall be limited to expenditures, excluding those related

to permanent city staff, necessary for the implementation of the city's information technology strategic plan, subject to appropriation by the city commission.

Department names may change from time to time. This section shall be applicable to those departments regardless of its designation in a given fiscal year.

(5) *Reserve policies.* The following three reserve policies categories are established for the general operating fund of the city:

a. *Current fiscal year contingency.* A "contingency" reserve level of $5,000,000.00 shall be budgeted annually. Such contingency reserve shall be available for use, with city commission approval, during the fiscal year, to fund unanticipated budget issues which arise or potential expenditure overruns which cannot be offset through other sources or actions. The unused portion of the budgeted contingency reserve in any fiscal year shall be reflected as unassigned fund balance reserves until such time as the city has funded 50 percent of the liabilities of the long-term liabilities (excluding bonds, loans, and capital lease payables) as reflected in the city's ACFR). Amounts not needed to satisfy the 50 percent requirement shall be considered general fund unassigned fund balance reserve and be treated in accordance with subsection (5)b below.

b. *General fund unassigned fund balance reserves.* The city shall retain unassigned fund balance reserves equal to a threshold ten percent of the prior three years' average of general revenues (excluding transfers). Amounts designated as "contingency" reserve in subsection 5a. above shall be included in the calculation of meeting the ten percent of the prior three years average of general revenues for the unassigned fund balance category. Such reserves may only be used for offsetting an unexpected mid-year revenue shortfall or for funding an emergency such as a natural or man-made disaster, which threatens the health, safety and welfare of the city's residents, businesses or visitors. Any time these reserve funds fall below the ten percent threshold, the city commission shall adopt a plan to achieve the threshold within two fiscal years and the city manager shall present an oral report at the second commission meeting of every month, except during the month of September, regarding: i) the status of the current fiscal year budget, and ii) the proposed budget for the subsequent fiscal year. Such oral report shall appear on the city commission agenda as a discussion item under the agenda category titled "Budget." Amounts in excess of the ten percent threshold may be used for capital improvements, unanticipated expenditures necessary to assure compliance with legal commitments, and for expenditures that will result in the reduction of recurring costs or the increase in recurring revenues of the city.

c. *General fund designated fund balance reserves.* The city shall retain designated fund balance reserves equal to ten percent of the prior three years average of general revenues (excluding transfers). The designated fund balance reserves shall be classified as either nonspendable, restricted, committed, or assigned and such designation shall be based on standards and guidance established, and amended from time to time, by the Governmental Accounting Standards Board (GASB). Such reserves shall be used for funding long-term liabilities and commitments of the city such as:

1. Compensated absences and other employee benefit

liabilities, including liabilities related to post-retirement benefits;

2. Self-insurance plan deficits (including workers compensation, liability claims and health insurance);

3. Anticipated adjustments in pension plan payments resulting from market losses in plan assets and other unanticipated payments necessary to maintain compliance with contractual obligations.

Payment for compensated absences and other employee benefit liabilities and self-insurance plan deficits may be drawn from this reserve during the fiscal year and shall be replenished each year until 50 percent of such the liabilities are funded. Other designated reserves may be drawn upon without the need for replenishment.

(6) *Proprietary funds.* The city shall establish proprietary funds only if the costs to provide the service are fully funded from the charges for the service.

(7) *Multi-year financial plan.* The city commission shall annually adopt a five-year financial plan by September 30 of each year, reflecting as the base year, the current year's budget. For fiscal year 2004 the multi-year financial plan will be adopted no later than 30 days after the completion of labor negotiations. Such plan will include cost estimates of all current city operations and pension obligations, anticipated increases in operations, debt service payments, reserves to maintain the city's officially adopted levels of reserves and estimated recurring and non-recurring revenues. This plan will be prepared by fund and reflect forecasted surpluses or deficits and potential budget balancing initiatives, where appropriate.

(8) *Multi-year capital improvements plan.*

a. *Annual review and adoption.* The city commission shall annually adopt a capital improvements plan ("CIP") simultaneously with the adoption of the city's final budget pursuant to F.S. § 200.065. The CIP shall address cost estimates for all necessary infrastructure improvements needed to support city services, including information technology, with an adequate repair and replacement ("R&R") component. Funded, partially funded and unfunded projects shall be clearly delineated. The CIP shall be detailed for the current fiscal year and for five additional years and, if practicable, additional required improvements aggregated for two additional five-year periods. To the extent feasible, department heads shall be required to submit independent needs assessments for their departments for use in preparing the CIP. The CIP will include and identify revenue sources and unfunded projects. The CIP shall include estimates of the operational (including maintenance) impacts produced for the operation of the capital improvements upon their completion. The CIP shall include a component reflecting all on-going approved capital projects of the city, amount budgeted, amount spent since the start date, remaining budget, and estimated completion date. Approved projects shall be reviewed and addressed in the CIP annually. Beginning in fiscal year 2019-2020, all future capital project funding amounts shall be budgeted and reflected in the CIP in $1,000.00 increments.

b. *Delegation of authority to city manager regarding completed projects and cancelled projects; quarterly reporting.* The city commission hereby delegates to the city manager the authority, on a quarterly basis, to sweep funds from the project accounts of all completed projects and all cancelled projects

with remaining fund balances of less than $100,000.00 in unexpended funds into the citywide non-departmental capital outlay reserve accounts. The city manager shall endeavor to move such funds into active, capital projects with current shortfalls within the same commission district from which the funds had previously been budgeted. The city manager and the budget director shall provide written quarterly reports for the previous quarter just ended to the city commission of all such amounts of unexpended funds from the project accounts of all completed projects and all cancelled projects that have been swept from such project accounts into the citywide non-departmental capital outlay reserve accounts.

(9) *Debt management.* The city shall manage its debt in a manner consistent with the following principles:

a. Capital projects financed through the issuance of bonded debt shall be financed for a period not to exceed the estimated useful life of the project.

b. The net direct general obligation debt shall not exceed five percent and the net direct and overlapping general obligation debt shall not exceed ten percent of the taxable assessed valuation of property in the city.

c. The weighted average general obligation bond maturity shall be maintained at 15 years or less.

d. Special obligation debt service shall not exceed 20 percent of non-ad valorem general fund revenue.

e. Revenue based debt shall only be issued if the revenue so pledged will fully fund the debt service after operational costs plus a margin based on the volatility of the revenues pledged.

(10) *Financial oversight and reporting.* The city shall provide for the on-going generation and utilization of financial reports on all funds comparing budgeted revenue and expenditure information to actual on a quarterly and year-to-date basis. The finance department shall be responsible for issuing the monthly reports to departments, the mayor, and city commission, and any information regarding any potentially adverse trends or conditions. These reports should be issued within 30 days after the close of each month.

The independent external auditor shall prepare the city's ACFR by March 31st of each year. The single audit and management letter of the city shall be prepared by the independent external auditor by April 30th of each year. The independent external auditor shall present the findings and recommendations of the audit, single audit, and management letter, to the mayor and city commission at a scheduled commission meeting prior to July 30th of each year.

Financial reports, offering statements, and other financial related documents issued to the public, shall provide full and complete disclosure of all material financial matters.

(11) *Basic financial policies.* The city shall endeavor to maintain formal policies, that shall be reviewed and updated as necessary, which reflect "best practices" in the areas of:

a. *Debt.* Such policy shall address affordability, capacity, debt issuance, and management.

b. *Cash management and investments.* Such policy shall require 24-month gross and net cash-flow projections by fund and address adequacy, risk, liquidity, and asset allocation issues.

c. *Budget development and adjustments.* Such policy shall establish proper budgetary preparation procedures and guidelines, calendar of events, planning models by fund,

budget adjustment procedures, establishment of rates and fees, indirect costs/interest income and the estimating conference process. The proposed budget should be scheduled to allow sufficient review by the mayor and city commission while allowing for sufficient citizen input.

The city budget document reflecting all final actions as adopted by the city commission on or before September 30th of each year, shall be printed and made available within 60 days of such adoption.

d. *Revenue collection.* Such policy shall provide for maximum collection and enforcement of existing revenues, monitoring procedures, the adequacy level of subsidy for user fees, and write-offs of uncollectible accounts.

e. *Purchasing policy.* Such policy shall establish departmental policies and procedures and provide appropriate checks and balances to ensure that city departments adhere to the city's purchasing policies.

(12) *Evaluation committees.*

a. *Solicitations.*

(i) The city commission, as the governing body of the city, shall establish an independent external auditor selection committee in accordance with the requirements of, to undertake, and to follow the processes and procedures required by F.S. § 218.391, as amended, and by section 18-122 of this Code, for solicitations through requests for proposals, evaluations, rankings, and recommendations to the city commission for the city's independent external auditors to conduct the city's annual financial audit required by F.S. § 218.39, as amended. On each occasion that there is a competitive solicitation for selection of an independent external auditor pursuant to this section, the city commission will appoint one of its members, on a rotating basis, to serve as the chair of the selection/evaluation committee.

(ii) For all other solicitations, an evaluation committee, consisting of a majority of citizen and/or business appointees from outside city employment, shall be created, to the extent feasible, to review city solicitations ("requests for proposals," "requests for qualifications," etc.). The recommendation(s) of the evaluation committee shall be provided to the mayor and city commission on all such solicitations prior to presentation to the city commission for official action.

b. *Collective bargaining agreements.* The city's finance committee, established pursuant to city commission Resolution Nos. R-98-631, R-98-767, and R-03-1216, and the budget director shall review and provide recommendations to the city manager regarding all memorandums of understanding (M.O.U.) entered into between the city and any collective bargaining unit that amend, alter, or modify any existing collective bargaining agreement and that may have a fiscal impact of $500,000.00 or more, and all collective bargaining agreements. The finance committee shall provide its recommendations regarding such M.O.U.s and collective bargaining agreements to the city manager not less than 14 days prior to consideration by the city commission of any said M.O.U. or collective bargaining agreement for ratifica-

tion. In the event that the finance committee is unable to meet within the timeframes provided herein, then the city manager shall proceed to the city commission for ratification.

(13) *Full cost of service.* The city shall define its core services and develop financial systems that will determine on an annual basis the full cost of delivering those services. This information shall be presented as part of the annual budget and financial plan.

(Ord. No. 11890, § 4, 2-10-00; Ord. No. 12113, § 1, 9-25-01; Ord. No. 12276, § 2, 9-11-02; Ord. No. 12353, § 2, 4-10-03; Ord. No. 12427, § 2, 10-23-03; Ord. No. 12518, § 2, 3-25-04; Ord. No. 12727, § 2, 9-22-05; Ord. No. 13107, § 2, 10-8-09; Ord. No. 13212, § 2, 10-14-10; Ord. No. 13303, § 2, 1-12-12; Ord. No. 13767, § 2, 5-10-18; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13852, § 2, 7-11-19; Ord. No. 13899, § 4, 4-9-20; Ord. No. 14152, § 2, 2-23-23)

Secs. 18-543—18-555. Reserved.

ARTICLE X. LIVING WAGE REQUIREMENTS FOR SERVICE CONTRACTS AND CITY EMPLOYEES*

Sec. 18-556. Definitions.

City means the government of the City of Miami or any authorized agents, any board, agency, commission, department, or other entity thereof, or any successor thereto.

Contract means any contract to provide services to the city in which the total value of the contract exceeds $100,000.00 per year.

Contractor means any "for profit" individual, business entity, corporation, partnership, limited liability company, joint venture, or similar business entity which meets the following criteria:

(1) The contractor is paid in whole or part from one or more of the city's general funds, capital project funds, special revenue funds, or any other funds, including, but not limited to, grants, donations, and the like, whether by competitive bid process, requests for proposals, or some other form of competitive solicitation, negotiation, or agreement, or any other decision to enter into a contract; and

(2) The contractor is engaged in the business of or part of a contract to provide services for the benefit of the city. This section shall apply to employees of the contractor who spend the majority of their time on covered City of Miami service contracts. If the contract is for both goods and services it shall only apply to the services portion of such contract. This section shall not apply to

*__Note—__**Section 5 of Ord. No. 12787 states that this article shall be effective October 1, 2006.

Editor's note—Prior to the adoption of Ord. No. 12787, Ord. No. 12623, § 2, adopted December 9, 2004, repealed article X, divisions 1—4, in its entirety, which pertained to the economic development financing authority and derived from Ord. No. 12062, § 3, adopted May 10, 2001.

contracts which are primarily for the sale or leasing of goods. Goods are defined in section 18-73 of the City Code.

Covered employee means anyone employed by the city working more than 35 hours per week or any service contractor employee, working full or part-time, with or without benefits, that is involved in providing services under the service contractor's contract with the city.

Covered employer means the city and any and all service contractors and subcontractors of a service contractor.

Living wage means a wage that is as defined in section 18-557 of this Code. The living wage may be adjusted once annually by an amount equivalent to the cost of living adjustment for Miami-Dade County as published by the United States Department of Labor, Bureau of Labor Statistics. Language so stating will be included in all request for proposals, or other competitive solicitation documents, issued by the city for the procurement of services (unless the living wage provisions are excluded as provided in section 18-557 herein).

New service contracts means those having contracts competitively solicited and awarded on or after January 1, 2017.

Service contract means a contract to provide services to the city excluding, however, professional services as defined by the "Consultants Competitive Negotiation Act" set forth in F.S. § 287.055, and section 18-87 of the City Code and/or the other exclusions provided by section 18-557 of the City Code.
(Ord. No. 12787, § 2, 4-6-06; Ord. No. 13648, § 2, 11-17-16)

Sec. 18-557. Living wage.

(a) *Living wage paid.*

(1) New service contractors. All new service contracts shall pay to all its employees who provide covered services a living wage of no less than $15.00 per hour without health benefits; or a wage of no less than $13.19 an hour with health benefits as defined in this section unless otherwise excluded pursuant to this article.

(2) Existing service contracts. Service contracts awarded and effective or competitively solicited prior to January 1, 2017, shall not be subject to the payment of the living wage set forth in this section and shall continue to be governed by the terms and conditions of the respective solicitation and resulting contractual documents, when applicable.

(3) The living wage provisions shall apply to all contracts covered by this section unless specifically excluded by one or more subsections below:

a. The living wage provision is disallowed by a federal or state law or regulation, grant requirements, or by a contract the city is accessing by "piggybacking", and which contract does not include a living wage provision;

b. Funding sources for the contract disallow the living wage provision or provide contradictory funding requirements, or are contained in a contract awarded or solicited prior to the effective date of January 1, 2017, and which contract includes renewals or extensions;

c. Professional service contracts awarded under the "Consultants Competitive Negotiation Act", F.S. § 287.055, for the professional services within the scope of the practice of architecture, professional engineering, landscape architecture, registered surveying, and/or mapping;

d. The living wage provision is waived by the city commission by resolution, prior to issuance of the competitive solicitation document, upon written recommendation of the city manager or authorized designee, when the city commission finds it is in the best interest(s) of the city to

approve such waiver, in which case the living wage provision shall not apply in the competitive solicitation document; or

e. All responsible wage construction contracts covered by section 18-120 of this Code.

(4) *City employees.* For covered employees of the city, the city will begin to pay the living wage on a phase-in basis over a nine-year period beginning with the 2006-2007 city budget year to be implemented in the 2014-2015 fiscal year. The city manager, in his/her sole discretion, without further city commission approval, shall have the option to consider whether it is in the city's best interest to complete the phase-in payment of living wage to city employees on a four-year period. Thereafter, the living wage to be paid by the city shall be subject to negotiations within the collective bargaining structure.

(b) *Health benefits; eligibility period.* For a covered employer to comply with this article by choosing to pay the lower wage scale available when a covered employer also provides a standard health benefit plan, such health benefit plan shall consist of a payment of at least $1.81 per hour toward the provision of health benefits for covered employees and their dependents and shall be approved by the city.

If the health benefit plan of the covered employer requires an initial period of employment for a new employee to be eligible for health benefits (the "eligibility period"), a covered employer may qualify to pay the $13.19 per hour wage scale for a term not to exceed the new employee's eligibility period, provided the new employee will be paid health benefits upon completion of the eligibility period, which period shall not exceed 90 days.

(c) *Certification required before payment.* Any and all service contracts subject to this article shall be void, and no funds may be released, unless prior to entering any such contract with the city, the service contractor certifies to the city that it will pay each of its covered employees no less than the living wage. A copy of this certificate must be made available to the public upon request. The certificate, at a minimum, must include the following:

(1) The name, address, and phone number of the employer, a contact person, and the specific project for which the service contract is sought;

(2) The amount of the service contract and the city department the contract will serve.

(3) A brief description of the project or service provided;

(4) A statement of the wage levels for all covered employees; and

(5) A commitment to pay all covered employees the living wage.

(d) *Observation of other laws.* Every covered employee shall be paid without subsequent deduction or rebate on any account (except as such payroll deductions as are directed or permitted by law or by a collective bargaining agreement). The service contractor shall pay covered employees wage rates in accordance with federal and all other applicable laws such as overtime and similar wage laws.

(e) *Posting.* A copy of the living wage rate shall be kept posted by the service contractor subject to this article, at the site of the work in a prominent place where it can easily be seen and read by the covered employees and shall be supplied to such employees within a reasonable time after a request to do so. Additionally, service contractors subject to this article, shall furnish a copy of the requirements of this article to any entity submitting a bid for a subcontract on any service contract subject to this article.

Posting requirements will not be required where the service contractor subject to this article, prints the following statements on the front of the covered employee's first paycheck and every six months thereafter. "You are required by the City of Miami Living Wage Ordinance to be paid a living wage. If you do not believe you are being paid at the living wage rate, contact

your employer, an attorney, or the City of Miami." All notices will be printed in English, Spanish and Creole.

(f) *Collective bargaining.* Nothing in this article shall be read to require or authorize any service contractor subject to this article, to reduce wages set by a collective bargaining agreement or as required under any prevailing wage law.
(Ord. No. 12787, § 2, 4-6-06; Ord. No. 13110, § 2, 10-22-09; Ord. No. 13405, § 2, 9-26-13; Ord. No. 13648, § 2, 11-17-16; Ord. No. 13676, § 2, 4-27-17)

Sec. 18-558. Implementation.

(a) *Maintenance of payroll records.* Each service contractor to which living wage requirements apply, as described in this article, shall maintain payroll record for all covered employees and basic records relating thereto and shall preserve them for a period of three years from the date of termination or expiration of the service contract. The records shall contain:

(1) The name and address of each covered employee;

(2) The job title and classification;

(3) The number of hours worked each day;

(4) The gross wages earned and deductions made;

(5) Annual wages paid;

(6) A copy of the social security returns and evidence of payment thereof;

(7) A record of fringe benefit payments including contributions to approved plans; and

(8) Any other data or information the city shall require from time to time.

(b) *Reporting payroll.* Every six months, the service contractor to which living wage requirements apply, as described in this article, shall file with the city's procurement director a listing of all covered employees together with a certification of compliance with this article. Upon request from the city, the service contractor shall produce for inspection and copying its payroll records for any or all of its covered employees for any period covered by the service contract. The city may examine payroll records as needed to ensure compliance.
(Ord. No. 12787, § 2, 4-6-06; Ord. No. 13110, § 2, 10-22-09)

Sec. 18-559. Compliance and enforcement.

(a) *Service contractor to cooperate.* The service contractor shall permit city employees, agents, or representatives to observe work being performed at, in or on the project or matter for which the service contractor has a contract. The city representatives may examine the books and records of the service contractor relating to the employment and payroll of covered employees and may survey covered employees to determine if the service contractor is in compliance with the provisions of this article.

(b) *Complaint procedures and sanctions.* An employee who believes that he/she is a covered employee of a service contractor and that the service contractor is or was not complying with the requirements of this article has a right to file a complaint with the procurement director of the city. Such complaints may be made at any time and shall be investigated within a reasonable period of time by the city. Written and oral statements by any such employee shall be treated as confidential and shall not be disclosed without the written consent of the employee to the extent allowed by the Florida Statutes.

(c) *Private right of action against service contractor.* Any covered employee or former covered employee of a service contractor may, instead of utilizing the city administrative procedure set forth in this article, but not in addition to such procedure, bring an action by filing suit against the service contractor in any court of competent jurisdiction to enforce the provisions of this article and may be awarded back pay, benefits, attorney's fees, and costs. The applicable statute of limitations for such a claim will be two years as provided in F.S. § 95.11(4)(c) as may be amended from time to time for an action for payment of wages. The court may also impose sanctions on the service contractor, including those persons or entities aiding or abetting the service contractor, to include wage restitu-

tion to the affected covered employee and damages payable to the covered employee in the sum of up to $500.00 for each week the service contractor is found to have violated this article.

(d) *Sanctions against service contractors.* For violations of this article, the city shall sanction a service contractor by requiring the service contractor to pay wage restitution at its expense for each affected employee. The city may also sanction the service contractor in at least one of the following additional ways:

(1) The city may impose damages in the sum of $500.00 for each week for each covered employee found to have not been paid in accordance with this article;

(2) The city may suspend or terminate payment under the service contract or terminate the contract with the service contractor; and

(3) The city may declare the service contractor ineligible for future service contracts for three years or until all penalties and restitution have been paid in full, whichever is longer. In addition, any employer shall be ineligible for a service contract where principal officers of such employer were principal officers of a service contractor who has been declared ineligible under this article.

(4) If the contract has been awarded under the city procurement ordinance, the city may debar or suspend the contractor as provided therein.

(e) *Public record of sanctions.* All such sanctions recommended or imposed shall be a matter of public record.

(f) *Sanctions for aiding and abetting.* The sanctions contained in this article shall also apply to any party or parties aiding and abetting in any violation of this article.

(g) *Retaliation and discrimination barred.* A service contractor shall not discharge, reduce the compensation, or otherwise discriminate against any covered employee for making a complaint to the city, or otherwise asserting his or her rights under this article, participating in any of its proceedings or using any civil remedies to enforce his or her rights under this article. Allegations of retaliation or discrimination, if found true in a city administrative proceeding or by a court of competent jurisdiction, shall result in an order of restitution and reinstatement of a discharged covered employee with back pay to the date of the violation or such other relief as deemed appropriate.

(h) *Remedies herein non-exclusive.* No remedy set forth in this article is intended to be exclusive or a prerequisite for asserting a claim for relief to enforce the rights under this article or in a court of law. This article shall not be construed to limit an employee's right to bring a common law cause of action for wrongful termination.
(Ord. No. 12787, § 2, 4-6-06; Ord. No. 13648, § 2, 11-17-16)

Sec. 18-560. Employers receiving direct tax abatement or subsidy.

The city reserves the right to impose the living wage requirements of this article on or after January 1, 2017 on any employer as a condition of that employer receiving a direct tax abatement or subsidy from the city.
(Ord. No. 13648, § 2, 11-17-16)

Secs. 18-561—18-599. Reserved.

ARTICLE XI. LEASES OF CITY-OWNED SUBMERGED LANDS

Sec. 18-600. Statement of purpose.

The purpose of this article is to provide the methods for the city to directly negotiate and enter into leases or management agreements for city-owned submerged lands with entities having a possessory or ownership interest in the abutting riparian uplands. These methods and procedures will also ensure that any such leases or management agreements result in a return to the city of at least fair market value and will also be in compliance with article XII below regarding time limitations for the development of improvements on city-owned property.
(Ord. No. 13540, § 2, 9-10-15)

Sec. 18-601. Definitions.

When used in this article, the following definitions shall apply:

Activity or *activities* means any use of city-owned submerged lands which requires proprietary authorization from the city. Such activities specifically include, but are not limited to, construction of docks, piers, marinas, boat ramps, board walks, baywalks, riverwalks, and mooring pilings, This definition shall also include activities as defined in the applicable section of the Florida Administrative Code, Chapter 18-21, entitled "Sovereign Submerged Lands Management," as the term may have been interpreted or modified by administrative or other case law.

Preempted area means an area of city-owned submerged lands from which any traditional public uses will be excluded by an activity, such as the area occupied by docks, piers, marinas, and other structures; the area between a dock and the shoreline where access is not allowed, between docks, or areas where mooring routinely occurs that are no longer reasonably accessible to the general public; permanent mooring areas not associated with docks; and swimming areas enclosed by nets, buoys, or similar marking systems.

Upland owner means the holder of a possessory or ownership interest in the riparian uplands abutting city-owned submerged lands and the holder of riparian rights necessary to conduct the proposed activities in a preempted area.
(Ord. No. 13540, § 2, 9-10-15)

Sec. 18-602. Scope of article.

(a) The city may enter into a lease or management agreement with an upland owner to conduct an activity in a preempted area pursuant to methods established in this article and in compliance with article XII below regarding time limitations for the development of improvements on city-owned property. There shall be no further proprietary authorization required by the city for the particularly city commission approved upland owner to conduct an activity in a preempted area as long as such activity in a preempted area continues to comply with article XII below, regarding time limitations for the development of improvements on city-owned property, and the approved upland owner remains the same.

(b) The methods established in this article are intended to be an alternative procedure to those set forth in article V of this chapter, entitled "Sale or Lease of City's Real Property," for those cases in which an upland owner seeks to conduct an activity on city-owned submerged lands. For all other cases, the procedures and provisions set forth in article V of this chapter, and elsewhere in the Code and Charter of the city, shall continue to apply.

(c) The methods established in this article shall not supersede any local, state, or federal regulations or laws relating to construction or navigation within state or federal waters, nor shall this article be interpreted in any way to alter, amend, or supersede any local, state, or federal permitting requirements. The provisions of this article shall be used solely for proprietary authorization on city-owned submerged lands, and will be cumulative along with those regulatory or proprietary requirements established by local, state, or federal law.
(Ord. No. 13540, § 2, 9-10-15)

Sec. 18-603. Application for lease or management agreement.

The city shall require all upland owners to submit an application for a lease or management agreement on city-owned submerged lands, which shall include the following:

(1) Name, address, and telephone number of applicant and applicant's authorized agent, if applicable;

(2) Description of the proposed activities;

(3) At least two independent appraisals and/or brokers' opinions of value and reliance letters of the fair market value for conducting the activities in the preempted area performed by a certified general appraiser approved by the city;

(4) Satisfactory evidence that applicant is an upland owner; such evidence may be in the form of a deed or title insurance policy;

(5) Two prints of a legal description and survey of the proposed preempted area where the activities will be conducted. The survey shall be prepared, signed, and sealed by a person properly licensed by the State Florida Board of Professional Land Surveyors, with the following requirements:

a. Utilizing an appropriate scale on 8½ x 11" size paper (unless a larger size is necessary to provide sufficient clarity and detail);

b. Showing the location of ordinary or mean high water;

c. Showing the location of the shoreline vegetation, if existing;

d. Showing the location of proposed structures and any existing structures;

e. Showing the applicant's upland parcel property lines;

f. Including a legal description of the preempted area to be leased;

g. Showing the bulkhead line.

(6) Current local zoning and a statement on the status of any local, state, federal permitting, licensing, or other approvals necessary for the activities;

(7) An explanation of the city's ownership interest in the submerged lands proposed to accommodate the activities, including the deed or other conveyance instrument which vests title in such submerged lands to the city.

(8) Payment of a $500.00 non-refundable processing fee.

(Ord. No. 13540, § 2, 9-10-15)

Sec. 18-604. Application materials.

The application materials, including the survey, the appraisals, brokers' opinion of values and reliance letters, and title insurance policy, must be current to within six months of the date that the application is submitted.

(Ord. No. 13540, § 2, 9-10-15)

Sec. 18-605. Required provisions.

All leases or management agreements with upland owners on city-owned submerged lands shall be subject to the following provisions:

(1) The effective date of the lease or management agreement shall be the latter of the dates of execution by the city or the upland owner, or the date on which construction of the activities is authorized to commence by the appropriate federal, state, and/or local regulatory agencies.

Payments for a lease or management agreement shall be assessed beginning on the effective date. New construction, new activities, or new preemption cannot begin until the effective date. The first payment for new or modified leases or management agreements shall be made within 30 days of the effective date.

(2) The term for any instrument for use of the submerged lands used by the abutting upland property owner shall be determined by the city. The lease or management agreement may include provisions for annual payment adjustments. If included, such adjustments shall correspond with the greater of the percentage change in the consumer price index, or a percentage negotiated by both parties and shall be adjusted on an annual basis.

(3) Leases and management agreements may be renewable, modifiable, and amended, subject to approval by the city manager, which shall not be unreasonably withheld, delayed or conditioned. In accordance with article XII, assignments shall require city commission approval should the upland owner change; however referendum requirements are not applicable. Any upland owner seeking to renew, modify, or assign a lease or management agreement must follow the

procedures for applications as set forth in this article. No application to renew, modify, or assign a lease or management agreement shall be approved unless any existing non-compliance with a material term or condition of the existing lease or management agreement is corrected.

(4) At least annually, the lessee or user shall submit an annual report to the city. The annual report shall describe the status of the activities on the preempted area and shall certify compliance with the terms and conditions of the lease or management agreement and of the requirements of this article and article XII regarding time limitations for the development of improvements on city-owned property.

(5) At least once every five years, sites subject to a lease or management agreement shall be inspected by the city to determine compliance with the terms and conditions of the lease or management agreement and of this article and article XII regarding time limitations for the development of improvements on city-owned property. Noncompliance with any material term or condition, or evidence of trespass, damage, or depredation to city-owned submerged lands or the products thereof caused by the facility or use, may be grounds for cancellation of the lease or management agreement.

(6) Upon expiration or cancellation of a lease or management agreement, the city may require lessee or user to remove all structures and equipment from the preempted area at the expense of the lessee or user. The city must deliver notice to remove all structures and equipment within 180 days after such expiration or cancellation, and the notice shall set forth a reasonable time period within which removal should be complete; provided however that any such time period shall be sufficient to account for federal, state, and/or local permitting requirements which may be necessary to authorize removal of the structures and equipment. If the lessee or user fails to remove the structures and equipment thereon, the city shall, at its option, and after ten days from receipt of written notice by certified mail to lessee or user, have the structures and equipment removed at the expense of the lessee or user.

(7) The lessee or user shall provide insurance for the activities in the manner and at the level prescribed by the city's director of risk management.

(Ord. No. 13540, § 2, 9-10-15)

Sec. 18-606. Criteria for approval.

The city manager shall have the authority to conduct negotiations with and enter into leases or management agreements with upland owners who submit an application pursuant to the terms of this article and pursuant to the terms of article XII regarding time limitations for the development of improvements on city-owned property. The city manager shall present the terms and conditions of such leases or management agreements to city commission for approval and the authority to execute such leases or management agreements in the name of the city. No leases or management agreements shall be approved unless the following criteria are met:

(1) The lease or management agreement provides a sufficient explanation of the activities permitted and includes a legal description and sketch of the preempted area where the activities will be conducted; and

(2) The terms of the lease or management agreement result in a return to the city of at least fair market value, pursuant to at least two independent appraisals and/or brokers' opinions of value and reliance letters of the fair market value for conducting the activities in the preempted area performed by a certified general appraiser approved by the city; and

(3) The lease or management agreement complies with all of the required provisions stated in this article and in article

XII regarding time limitations for the development of improvements on city-owned property.
(Ord. No. 13540, § 2, 9-10-15)

Secs. 18-607—18-625. Reserved.

ARTICLE XII. TIME LIMITATIONS REGARDING DEVELOPMENT OF IMPROVEMENTS TO CITY-OWNED PROPERTY

Sec. 18-626. Purpose.

The purpose of this article is to provide protections for the timely use and development of improvements to city-owned property.

Any lease for the development of improvements on city-owned property which has been approved by voter referendum shall require additional voter referendum approval for a development on city-owned property where the developer has not obtained the necessary building permits within four years of the effective date of the lease. Such section shall not be applicable when the delay in the performance of any obligation is as a result of force majeure, or litigation that questions the validity of the vote, or the city commission action to place the question for referendum; then the performance of such obligation shall be extended by the length of the delay.
(Ord. No. 13540, § 2, 9-10-15)

Sec. 18-627. Leases and management agreements.

Pursuant to article XI above, leases and management agreements with the upland owner for activities in pre-empted city-owned submerged lands shall not require the necessity of a referendum but shall be subject to all the requirements of this article regarding time limitations for the development of improvements on city-owned property.
(Ord. No. 13540, § 2, 9-10-15)

ARTICLE XIII. AFFORDABLE HOUSING TRUST FUND

Sec. 18-628. Affordable housing trust fund.

The "Affordable Housing Trust Fund" ("trust fund") is a distinct fund that has been established to receive dedicated revenues, which can only be spent on affordable housing, by providing financial resources to facilitate the development or maintenance of housing for low to moderate income households within the City of Miami.
(Ord. No. 14116, § 2, 10-27-22)

Sec. 18-629. Established.

(a) The trust fund is hereby established into which funds shall be deposited pursuant to this article.

(b) Upon receipt of funds as described herein, the city's department of finance shall deposit such funds into the trust fund.

(c) The trust fund, and the programs established in connection therewith, shall be managed, administered, and maintained by the department of housing and community development ("department").

(d) The trust fund shall be used solely for affordable housing programs and the trust fund's administrative support. Housing programs will include providing financial assistance to for-profit and not-for-profit developers, existing homeowners, first-time homebuyers, and to the city for properties owned or to be acquired and developed by the city as affordable housing projects, as more particularly set forth in Ordinance No. 14116, which may be amended from time to time ("programs"). Said programs shall be made available to the public by the department. All multifamily and/or single-family affordable housing developments requesting trust fund funding assistance must be approved by the Housing and Commercial Loan Committee ("HCLC") prior to city commission action. In order to utilize trust fund funds to support the first-time homebuyer and existing

homeowner programs, city commission must appropriate funds to be used and must approve such programs' guidelines.

(e) Due to the cost it requires to manage the trust fund, the department will utilize ten percent of the trust fund for administrative costs. Administrative staff is responsible for: developing request for proposals, document preparation, loan underwriting, determining eligibility and affordability, loan monitoring, and servicing, marketing and providing education to developers and beneficiaries of the trust funds. The administrative staff will work closely with local banking institutions, as well as for-profit and not-for-profit developers in the implementation of the trust fund requirements.

(f) In order to ensure the on-going solvency, the trust fund receives revenue from dedicated sources including but not limited to principal and/or interest paid on trust fund loans, from appropriations as determined by legislative action of the city commission, from 25 percent of rental income received by the city from Miami Freedom Park commencing on date that the city receives its first rental payment, from fees and financial contributions pursuant to the city zoning ordinance, and as described in sections 62-663 and 62-641—62-643 of the City Code.

(g) The department will award trust fund funding through one of the following two processes:

(1) Through the issuance of a request for proposals, or

(2) Through city commission action.

Regardless of the process, all project funding must obtain approval by the HCLC as to the terms and conditions of the loan.

(h) Expenditure of funds and any actions in furtherance of the expenditure shall be consistent with this article, and all applicable criteria and guidelines set forth in the programs; shall comply with city procedures and laws for the acquisition of goods and services; and shall be approved within the annual budget by the city commission.

(i) The trust fund shall be established for a period of five years and shall be reviewed by the city commission upon expiration of the five years and every ten years thereafter to determine whether the purposes of the trust fund has been satisfied and upon such finding in the negative, the trust fund shall sunset and any funds to be collected and allocated pursuant to this article shall revert to the public benefits trust fund established in section 62-641 of the City Code.
(Ord. No. 14116, § 2, 10-27-22)

Sec. 18-630. Financial report.

A financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the city manager for review and approval by the city commission and filed with the city clerk.
(Ord. No. 14116, § 2, 10-27-22)

Chapter 19

FIRE PROTECTION*

Sec. 19-1. Building permits and plans examination.
Sec. 19-2. Charges for permitting, inspections and testing of fire suppression detection and systems, charges for reinspection tests.
Sec. 19-2.1. Fire safety permit required; issuance; fees; annual renewal; revocation and penalties; use of fees.
Sec. 19-3. Places of assembly; permit required; fees.
Sec. 19-4. Obstructions to means of egress.
Sec. 19-5. Flammable and combustible liquids; permits; fees; inspections.
Sec. 19-6. Explosives.
Sec. 19-7. Manufacture, sale, time of display and discharge of fireworks.
Sec. 19-8. Bond and responsibility for fireworks display required.
Sec. 19-9. Special off-duty fire-rescue services.
Sec. 19-10. Unlawful to tamper with official seal, utility service, etc.
Sec. 19-11. False emergency calls; delay in reporting fires.
Sec. 19-12. Investigation of fire.
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Sec. 19-14. Fire records, reports and photographs.
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Sec. 19-16. Strict liability.
Sec. 19-17. Enforced removal of violative conditions.
Sec. 19-18. Remedies cumulative and independent.
Sec. 19-19. Nonliability for damages.
Sec. 19-20. Criminal penalty.
Sec. 19-21. Attorney's fees.
Sec. 19-22. Enforcement, procedure; remedies.
Sec. 19-23. Civil penalty and restitution fund.
Sec. 19-24. Search warrants.
Sec. 19-25. Inspections; inspection warrants.
Sec. 19-26. Orders.
Sec. 19-27. Correction of violations.
Sec. 19-28. Liens.

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*__City Code cross references—__Department of fire-rescue, § 2-231 et seq.; fire prevention bureau, § 2-235; alarm systems, ch. 3; duty of firefighters to report dangerous buildings or structures, § 10-2; fires in parks regulated, § 38-53; flame-producing equipment within city marinas, § 50-239; refueling vessels at city marinas, § 50-241.

__County Code references—__Use and storage of explosives and blasting agents at blasting sites, ch. 13; county fire code, § 14-40 et seq.; construction of county fire code, § 14-41; countywide fire and rescue services district established, § 18-24 et seq.

__State law references—__Explosives, F.S. ch. 552; fire prevention and control, F.S. ch. 633; sale of fireworks, F.S. ch. 791.

Sec. 19-1. Building permits and plans examination.

Prior to the issuance of any permit for building construction and alterations, the director of the department of fire-rescue shall designate one or more plans examiners for the purpose of reviewing all building plans submitted in accordance with the currently adopted and approved building code. Members of the department of fire-rescue's plans examination section shall identify requirements for fire suppression and life safety systems, vertical separations, means of egress, flame spread and combustibility of materials, and exit lighting. Single-family residences and duplexes are exempt from this requirement, unless the owner or builder requests a department of fire-rescue evaluation.

(1) The department of fire-rescue's plans examiners shall identify requirements such as vertical separation and means of egress regarding fire safety and fire protection.

(2) The department of fire-rescue's plans examiners shall identify requirements for life safety systems such as smoke detectors, voice communication systems and emergency lighting and shall designate placement of required exits and directional lights. The electrical plans examiner and the electrical inspection division of the planning, building and zoning department shall be responsible for proper evaluation, and application of these requirements.

(3) The department of fire-rescue's plans examiners shall identify requirements for fire suppression systems, such as sprinkler and standpipe installations, and designate placement of required department of fire-rescue connections and hose cabinets. The plumbing plans examiner and the plumbing inspection division of the planning, building and zoning department shall be responsible for proper evaluation and application of these requirements.

(4) The department of fire-rescue's plans examiners shall identify requirements for life safety systems, such as smoke control, ventilation and emergency elevators. The mechanical plans examiner and the mechanical inspection division of the planning, building and zoning department shall be responsible for proper evaluation and application of these requirements.

(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-1)

Sec. 19-2. Charges for permitting, inspections and testing of fire suppression detection and systems, charges for reinspection tests.

(a) All new buildings and all existing buildings being altered to increase the area or height (with the exception of residential buildings which contain one or two units) which have available fire hydrants shall be in compliance with chapter 2, article XIVA, "Water Supply for Fire Suppression," of the Metropolitan Dade County Code. The inspection fee for a fire flow test shall be $250.00.

(b) The fee for standpipe pressure tests, as required by the Florida Building Code, shall be $250.00.

(c) All new and existing buildings having fire alarm or sprinkler systems installed as required by the Florida Building Code or the Florida Fire Code shall be inspected and tested by the department of fire-rescue. The fee for these tests shall be as follows:

(1) Sprinklers rough including underground, flush, pressure test, location 0 to 20 heads	$210.00
Rough inspection 21 to 49 heads an additional	210.00
Rough inspection over 49 heads, per head	0.40
Fire suppression system test and inspection/recertification:	
Acceptance test up to 20 heads	175.00
Acceptance test 21 to 49 heads an additional	250.00

Acceptance test over 49 heads, per additional heads	0.40
Fire alarm acceptance test and inspection/recertification:	
One to six devices	150.00
Seven to 100 devices an additional	250.00
Each device over 100	1.40
(2) Reinspection for alarm acceptance	$105.00
(3) Third or more reinspections, each	$138.00

(d) When a reinspection is required due to system failure the fees shall be as follow:

First reinspection	$70.00
Second reinspection	80.00
Third or more reinspections	138.00

(e) In the event of a vehicle fire, a fee of $158.00 shall be assessed to any non-city resident to whom said vehicle is registered.

(f) Permit application fee (nonrefundable)	$104.00

(g) Fire flow, pump and generator test departmental section involved in test	$250.00

(h) Fee for each inspection for tests conducted after normal working hours (example: smoke-removal system test):

(1) Up to four hours minimum for each test	$416.00
(2) After four hours (each inspector), per hour	104.00

(i) Fire protection:

(1) Jockey pump	$32.00
(2) Water supply to fire sprinkler system	32.00
(3) Fire pump or domestic pump (new or replacement)	37.00
(4) Each standpipe	32.00
(5) Each hose rack or fire department outlet	11.00
(6) Each Siamese or roof manifold	26.00
(7) Each sprinkler head	1.50
(8) Each fire flow test	42.00
(9) Each fire hydrant (Miami standard only)	42.00
(10) Minimum fire sprinkler permit fee	63.00
(11) Backflow preventer (fireline)	63.00

(j) Fire suppression system:

(1) CO_2, halon and dry powder systems and other piped fire extinguishing systems, including reinstallation, modification, or alternation, (full installation including discharge test):	
Up to 20 heads	$175.00
21 to 49 heads	250.00
50 heads and above, per head	0.40

(Ord. No. 10824, § 2, 1-10-91; Ord. No. 11007, § 1, 10-8-92; Code 1980, § 19-2; Ord. No. 11434, § 2, 1-16-97; Ord. No. 12056, § 2, 4-26-01; Ord. No. 13108, § 4, 10-8-09; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-2.1. Fire safety permit required; issuance; fees; annual renewal; revocation and penalties; use of fees.

(a) *Permit required.* No person shall operate, utilize or occupy any facility, instrumentality or real property, or any part thereof, or cause, allow, let, or permit to be operated, utilized, or occupied any facility, instrumentality or real property, or any part thereof, or undertake any activity or cause to be undertaken any activity which requires a fire safety permit without obtaining such a valid fire safety permit. Fire safety permits shall be kept at the building or on the premises, and shall be subject to inspection by any representative of the department of fire-rescue. Fire safety permits shall not be transferable, and any change

in use, or occupancy of the facility, instrumentality or real property, or any part thereof or premises shall require the issuance of a new fire safety permit. All applications for fire safety permits shall set forth in detail the full name and address of the applicant, and such other information as may be required by the department of fire-rescue, and the required fee. All applications for fire safety permits will be reviewed by the fire marshal's office. If an application for a fire safety permit is rejected, the applicant shall be advised of the reasons for such rejection. Fire safety permits shall be issued by the fire marshal's office, and shall bear the name and signature of the fire marshal or his/her designated representative. Fire safety permits shall contain the following information:

(1) Address of the building or premises and/or part thereof for which the fire safety permit is issued and name, address, and telephone number of the permittee.

(2) Address or location and telephone number where the operation or activity requiring the issuance of a fire safety permit is to be conducted and name, address, and telephone number of the permittee.

(3) Fire safety permit number and date of issuance.

(4) Period of validity of the fire safety permit.

(5) Such special conditions as are necessary to protect life and property.

(b) *Fire safety permits issued for occupancy of buildings or premises or part thereof.*

(1) Persons holding certificates of use. Within 30 days of the effective date of this ordinance the city shall mail an invoice requiring the payment of the fire safety permit fee, in accordance with the fee schedule set forth in this subsection, to all persons holding a certificate of use issued by the city's building and zoning department. Upon payment of the required fee the department of fire-rescue shall issue the fire safety permit.

(2) Persons applying for certificates of use. All persons applying for a certificate of use shall concurrently with such application make an application for a fire safety permit to the department of fire-rescue. The fire safety permit shall not be issued until the building, or premises, or part thereof have been inspected and the use thereof is found to comply with the Florida Fire Prevention Code, county fire prevention ordinances and this chapter.

The fees for the issuance of the fire safety permit for occupancy of buildings, or premises or part thereof, and the issuance of the annual renewal certificate, are herein fixed as follows:

(1) Place of assembly (including but not limited to theaters, restaurants, bars, lounges, stores, terraces, viewing towers, etc.).

Occupant load

50 to 99	$95.00
100 to 300	125.00
301 to 1000	158.00
1001 to 10,000	315.00
Over 10,000	442.00

(2) Residential (apartments and condominiums):

Buildings less than 75 feet (3—50 dwelling units): $79.00.

Buildings less than 75 feet (more than 50 dwelling units): $131.00 plus $1.30 per unit over 50 units, maximum fee $525.00.

Buildings 75 feet and over but less than 275 feet: $131.00 plus $1.30 per unit maximum fee $525.00.

Buildings 275 feet and over: $131.00 plus $1.30 per unit over 50, maximum fee $525.00.

(3) Hotel, motel, rooming house, etc.:

Buildings less than 75 feet (3—50 rental sleeping units): $125.00.

Buildings less than 75 feet (more than 50 rental sleeping units): $125.00 plus $1.25 per unit above 50.

Buildings 75 feet and over but less than 275 feet: $125.00 plus $1.25 per unit above 50.

	Buildings 275 feet and over: $125.00 plus $1.25 per unit above 50.	
(4)	Retail sales:	
	All square footage	$150.00
(5)	Wholesale and storage use:	
	Not exceeding 3,000 square feet	$53.00
	3001 to 5000 sq/ft	79.00
	5001 to 10,000 sq/ft	105.00
	10,001 to 25,000 sq/ft	158.00
	25,001 to 50,000 sq/ft	210.00
	50,001 to 100,000 sq/ft	263.00
	Over 100,000 sq/ft	315.00
	Common areas	68.00
(6)	Office buildings:	
	Not exceeding 3,000 square feet (under 75 feet)	$53.00
	3,001 to 5,000 sq/ft	65.00
	5,001 to 10,000 sq/ft	105.00
	10,001 to 50,000 sq/ft	131.00
	50,001 to 100,000 sq/ft	184.00
	100,001 to 150,000 sq/ft	231.00
	150,001 to 200, 000 sq/ft	289.00
	Over 200,000 sq/ft	341.00
	Common areas up to two floors	50.00
	Each additional floor	25.00
(7)	Manufacturing:	
	0 to 1,000 sq/ft	$65.00
	1,001 to 5,000 sq/ft	95.00
	5001 to 10,000 sq/ft	131.00
	10,001 to 50,000 sq/ft	200.00
	50,001 to 200,000 sq/ft	263.00
	Over 200,000 sq/ft	331.00
(8)	Parking structures.	
	0 to 3,000 sq/ft	$53.00
	3001 to 5000 sq/ft	79.00
	5001 to 10,000 sq/ft	105.00
	10,001 to 25,000 sq/ft	158.00
	25,001 to 50,000 sq/ft	210.00
	50,001 to 100,000 sq/ft	263.00
	Over 100,000 sq/ft	315.00
	Common areas	68.00
(9)	Amusement parks, dog tracks, and front ons, including all retail outlets located at the principal building structure:	
	50 to 99 persons	$105.00
	100 to 300 persons	125.00
	301 to 1,000 persons	158.00
	1,001 to 10,000 persons	315.00
	Over 10,000 persons	442.00
(10)	Arenas, bowling lanes, dance halls, banquet facilities	$210.00
(11)	Hospitals and nursing homes:	
	Hospitals not exceeding 100 beds: $500.00, each additional bed $1.25, maximum total $1,000.00.	
	Nursing homes not exceeding 100 beds: $210.00, each additional bed $1.30, maximum total $ 924.00	
(12)	Community-based residential facilities (ALF):	
	1 to 16 beds	$105.00
	Over 16 beds	131.00
	Each additional client over 16	1.30
(13)	Private schools (grades pre-k-12 or any combination thereof), day care centers, and nursery schools: $68.00, plus $1.30 per student, maximum total $698.00.	
(14)	Marinas:	
	25 or less boatslips	$125.00
	Additional per slip over 25	1.25
(15)	Hi-rise buildings (shell):	
	Buildings 75 feet and over but less than 275 feet	$105.00
	Buildings 275 feet and over	315.00

(16) Miscellaneous. All uses not previously covered by this section shall be assessed the fee provided under "retail sales."

(17) Welding or cutting (exception: job sites) $158.00

(18) All other uses not listed. . . . $250.00

(c) Fire safety permits issued for activities as set forth in this subsection (c). Application for a fire safety permit shall be made to the department of fire-rescue by all persons who are not required to hold a certificate of use who are utilizing, or occupying any facility, instrumentality or real property or any part thereof, or undertaking any activity or causing to be undertaken any activity which requires a fire safety permit as provided below. All applications for fire safety permits shall set forth in detail the full name and address of the applicant and such other information as may be required by the department of fire-rescue and the required fee. The fees for the issuance of the fire safety permit for the operations and activities set forth below, and the issuance of the annual renewal certificate, if applicable, are herein fixed as follows:

(1) Turbine fire wells $250.00

(2) Hydrant use test, construction meters. Pest control, lawn spraying, etc. (fees are annual per meter) $175.00

(3) Tents (circus, carnival, etc.) having an area in excess of 1,200 square feet, each use. $65.00

50 to 300 persons. 95.00

301 to 1,000 persons 125.00

All other uses over 400 sq/ft or any size tent using hazardous materials processes or open flames . . . 65.00

(4) Sparkler sales. Sale of sparklers requires submittal of inventory and site plan (fees are annual) $125.00

(5) Open burning permits $95.00

(6) Liquefied petroleum gas. Each installation of liquefied petroleum gas employing a container or an aggregate of interconnected containers of over 2,000 gallons outside of a building (fees are annual) $158.00

(7) Tank removal fee $105.00

(8) Drilling of groundwater monitor or compliance wells at all existing or abandoned underground flammable liquid storage sales $105.00

(d) *Annual renewal.* All buildings and premises or part thereof shall be inspected from time to time to insure compliance with the provisions of all applicable fire codes, county fire prevention ordinances, regulations, and this chapter. Invoices for the issuance of the annual fire safety permit renewal certificate will be billed during the year. Upon payment of the fee, the annual fire safety permit renewal certificates will be issued by the department of fire-rescue. The owner of the building or the premises or part thereof, and/or the permit holder shall be notified of any deficiencies noted, and appropriate reinspection may be made to determine whether or not the deficiencies have been corrected. When a reinspection is required due to continuing life safety violations after the second inspection by the department of fire-rescue, there shall be charged a reinspection fee of $53.00.

(e) *Revocation, penalties.* The fire marshal may revoke the fire safety permit, if upon inspection, any violation of any applicable fire code, county fire prevention ordinances, or this chapter is found, and not corrected within a reasonable amount of time. Revocation shall be effective when the owner of the building or premises or part thereof, and/or the permit holder is duly notified by the fire marshal. Any person who uses any building or premises or part thereof, or who allows any building or premises or part thereof to be utilized after the fire safety permit has been revoked shall be in violation of this chapter and shall be subject to civil and/or criminal penalties in accordance with the provi-

sions of sections 19-16 through 19-20 of this chapter and sections 2-239 and 2-409 of article X of this code.

(f) *Use of fire safety permit fee funds.* The fire safety permit fees payable hereunder shall be deposited in a separate city fund to be used exclusively by the department of fire-rescue to pay for the costs of the following:

(1) Investigation, preparation, and prosecution of civil and criminal actions, pursuant to this chapter, county ordinances or the Florida Fire Prevention Code, to enforce the provisions of this chapter, county fire prevention ordinances, the Florida Fire Prevention Code, or the rules and regulations of the state fire marshal, as all of same may be amended from time to time.

(2) Monitoring, permitting, and inspection of facilities, instrumentalities, and real property to determine and seek to insure compliance with this chapter, county fire prevention ordinances, the Florida Fire Prevention Code, or the rules and regulations of the state fire marshal, as all of the same may be amended from time to time.

(3) Responding to and attempting to resolve citizen complaints against violations or possible violations of this chapter, county fire prevention ordinances, the Florida Fire Prevention Code, or the rules and regulations of the state fire marshal, as all of the same may be amended from time to time.

(4) Fire safety and prevention planning, protection, and programming.

(Ord. No. 11434, § 3, 1-16-97; Ord. No. 13108, § 4, 10-8-09; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-3. Places of assembly; permit required; fees.

(a) No place of assembly, as defined below, shall be maintained, operated or used as such without a permit, except that no permit shall be required for any place of assembly used solely as a place of religious worship. A valid certificate of use and local business tax receipt will constitute an adequate permit hereunder.

Place of assembly means a room or space used for assembly or educational occupancy for 100 or more occupants or which has a floor area of 1,500 square feet or more used for such purposes. Such room or space shall include any similar occupied connecting room or space in the same story, or in a story or stories above or below, where entrance is common to the rooms or spaces.

(b) No place of assembly which has received approval and local business tax receipts to operate for one purpose shall change the use of the occupancy for any other assembly purpose without first obtaining a permit from the department of fire-rescue for such use. The cost of the permit shall be $104.00.

(Ord. No. 10824, § 2, 1-10-91; Ord. No. 11007, § 1, 10-8-92; Code 1980, § 19-3; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13108, § 4, 10-8-09; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-4. Obstructions to means of egress.

(a) No person shall, at any time, place an encumbrance or obstruction of any kind in front of or upon any fire escape, balcony or ladder intended as a means of escape from a fire.

(b) In other than dwellings, no person shall place, store or keep, or permit to be placed, stored or kept, on or under or at the bottom of any exit stairway, inside or outside, exit hallway, elevator or other means of egress any materials, the presence or the burning of which would obstruct or render a hazard to egress of persons from the building.

(c) No aisle, passageway or stairway in any mercantile occupancy shall be obstructed with tables, showcases or other obstruction during the hours such occupancy is open to the public.

(d) All doors in or leading to required exitways shall be kept unlocked at all times when the building or floor area served thereby is occupied. It shall be the duty of the person in

charge of the building or floor, at the time the building is occupied, to make actual inspection to verify the fact that such doors are unlocked.

(e) Where sliding or overhead doors are allowed as fire exits a legible sign stating "this is a fire exit door and shall remain open at all times this building is occupied," shall be posted on such doors.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-4)

Sec. 19-5. Flammable and combustible liquids; permits; fees; inspections.

(a) *Definitions.* As used in this section, the following terms shall have the following meanings:

Combustible liquid means any liquid having a flashpoint at or above 140 degrees Fahrenheit and below 200 degrees Fahrenheit, and shall be known as class III liquids.

Flammable liquid means any liquid having a flashpoint below 140 degrees Fahrenheit and having a vapor pressure not exceeding 40 pounds per square inch (absolute) at 100 degrees Fahrenheit. Flammable liquids shall be divided into two classes of liquids as follows:

(1) *Class I liquids* shall include those having flashpoints below 100 degrees Fahrenheit and may be subdivided as follows:

a. *Class IA* shall include those having flashpoints below 73 degrees Fahrenheit and having a boiling point below 100 degrees Fahrenheit.

b. *Class IB* shall include those having flashpoints below 73 degrees Fahrenheit and having a boiling point at or above 100 degrees Fahrenheit.

c. *Class IC* shall include those having flashpoints at or above 73 degrees Fahrenheit and below 100 degrees Fahrenheit.

(2) *Class II liquids* shall include those having flashpoints at or above 100 degrees Fahrenheit and below 140 degrees Fahrenheit.

When artificially heated to temperatures equal to or higher than their flashpoints, class II and III liquids shall be subject to the applicable provisions for class I and II liquids. The provisions of this section shall also be applied to high flashpoint liquids when heated to temperatures equal to or higher than their flashpoints even though these same liquids would be outside the scope of this section when they are not heated.

Liquid, when not otherwise identified, means both flammable and combustible liquid.

(b) *Permit required.* A permit shall be obtained before any of the following acts can be conducted within the city:

(1) Storage, handling or use of class IA and IB liquids in excess of one gallon in a dwelling or other place of human habitation, or in excess of six gallons in any other building or other occupancy, or in excess of ten gallons outside of any building; except that no permit shall be required for the following:

a. Storage or use of flammable or combustible liquids in the fuel tank of a motor vehicle, aircraft, motorboat, mobile power plant or mobile heating plant.

b. Storage or use of paints, oils, varnishes or similar flammable mixtures when such liquids are stored for maintenance, painting or similar purposes for a period of not more than 30 days.

(2) Storage, handling or use of class II or III liquids in excess of 25 gallons in a building or in excess of 60 gallons outside of a building.

(3) Manufacturing, processing, blending or refining of flammable or combustible liquids.

(4) Storage of flammable or combustible liquids in stationary tanks.

(c) *Permit fee.* The permit fee shall be $ 104.00 per tank for all tanks of 60 gallons capacity installed aboveground or belowground up to $1,000 dollars of estimated cost of the work.

For each additional $1,000 dollars of estimated cost or fractional part thereof: $2.00.

(d) *Inspections.* An inspection of all installations made under the permit provision shall be made within 30 days of issuance. It shall be the duty of the permit holder to notify the fire prevention bureau when ready for inspection. Failure of the permit holder to request such inspection within 30 days shall result in automatic revocation of the permit.

(e) *Dispensing devices.* A permit shall be required for any dispensing device remote from the tank supplying it; a pump directly over the tank will not require a separate permit. The permit fee and inspection procedure for dispensing devices shall be the same as for a tank. A new and separate permit shall be required for any additions, alterations, revamping, replacement or any other work which entails the breaking of the integrity of the system; this includes the removal of dispensing devices at the time of closing out the system.
(Ord. No. 10824, § 2, 1-10-91; Ord. No. 11007, § 1, 10-8-92; Code 1980, § 19-5; Ord. No. 13108, § 4, 10-8-09; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-6. Explosives.

(a) *Definitions.* For the purposes of this section, the following terms are defined as follows:

Blaster: A person employed or designated by a user to detonate or otherwise effect the explosion of an explosive or who is in immediate personal charge and supervision of one or more other persons engaged in such activity.

Dealer: A person engaged in the wholesale or retail business of buying and selling explosives, provided that should a manufacturer-distributor make sales to users, such manufacturer shall not be required to obtain an additional permit as a dealer.

Explosive: Any mixture, compound or material capable of producing an explosion, including, but not limited to, dynamite, nitroglycerine trinitrotoluene, ammonium nitrate, blasting caps and detonators, but not including cartridges for firearms, and not including fireworks as defined in F.S. ch. 791.

Manufacturer-distributor: A person engaged in the manufacture, production and distribution of explosives to others for resale or use.

User: The person who, as an ultimate consumer of an explosive, purchases same from a dealer or manufacturer-distributor, or acquires the possession of any explosive by any other means.

(b) *Registration; site inspection.* No person shall detonate or otherwise effect an explosion within the city without first having registered with the department of fire-rescue, qualifying for, and having a separate site inspection and approval for each proposed blasting location within the city. The director of the department of fire-rescue or designated agent thereof shall be notified at least 24 hours prior to a proposed blasting operation so that a representative can effect an on-the-site inspection.

(c) *Permit required.* For each proposed blasting that takes place at a single location, a permit shall be required from the department of fire-rescue when [sic] "manufacturer-distributors," "dealers," "users" and "blasters" within the city. Such permit forms shall be furnished by the department.

(d) *Permit fees.* The cost of the permit fee for explosive demolition of any structure shall be $347.00 and shall be paid at least 30 days in advance of any such proposed blasting at a single location.
(Ord. No. 10824, § 2, 1-10-91; Ord. No. 11007, § 1, 10-8-92; Code 1980, § 19-6; Ord. No. 13108, § 4, 10-8-09)

Sec. 19-7. Manufacture, sale, time of display and discharge of fireworks.

(a) *Manufacture prohibited.* The manufacture of fireworks is prohibited within the city.

(b) *Permits required for supervised public displays.* Except as hereinafter provided, it shall be unlawful for any person to store, to offer for sale, expose for sale, sell at retail, use or explode fireworks within the city, provided that the director of the department of fire-rescue may adopt reasonable rules and regulations for the granting of permits for supervised public displays

of fireworks by municipalities, organizations or groups of individuals. Such permits may be granted upon:

(1) Application to the director of the department of fire-rescue to be held as provided herein; and

(2) The filing of a bond by the applicant as provided herein.

Every such display shall be handled by a competent operator licensed or certified as to competency by an acceptable reference and shall be of such composition, character and so located, discharged or fired as, in the opinion of the director of the department of fire-rescue after proper inspection, not to be hazardous to property or as not to endanger any persons. The director of the department of fire-rescue is authorized to refuse to issue any permit when he/she finds the public safety would be endangered. The cost of the permit fee shall be $390.00. Shooter certification requires an applicant to apply in person to determine compliance with state regulations. Annual certifications: $125.00.

Sale of sparkler requires submittal of a completed application package including site plan (30-day permit): $125.00.

(c) *Permit application, issuance.*

(1) Application for permits shall be made, in writing, at least ten (10) days in advance of the display. The director of the department of fire-rescue may shorten the ten day period, if approval can be processed in a shorter period of time. After such privilege has been granted, the sale, possession, use and distribution of fireworks for such display shall be lawful for that purpose only. No permit granted hereunder shall be assigned or transferred, but a permit may be revoked for committing any prohibited act(s) or for other just cause.

(2) Permits sought hereunder for pyrotechnic displays (fireworks) shall not be granted for displays to take place between the hours of 11:00 p.m. and 9:00 a.m. on Fridays and Saturdays. On all other days of the week permits shall not be granted between the hours of 9:30 p.m. and 9:00 a.m. The duration of displays shall not exceed 30 minutes from start to completion. There shall not be more than one display per event.

(3) The restrictions contained in paragraph (c)(2) of this section shall not be applicable six days each year, including January 1, January 15, July 4 and December 31.

(4) The city commission may relax the restrictions contained in paragraph (c)(2) of this section or declare them inapplicable on special occasions by resolution. The city commission may prohibit the display of fireworks at certain locations to improve quality of life for residents by resolution.

(d) *Sale, possession, use, distribution of fireworks.* The sale, possession, use and distribution of fireworks for display purposes shall be conducted so as to be reasonably safe to persons and property. Evidence that the sale, possession, use and distribution of fireworks for display purposes has been conducted in accordance with the applicable standard, NFPA no. 1123, as amended, and F.S. ch. 791, as amended, shall be evidence that such sale, possession, use and distribution of fireworks for display purposes provide reasonable safety guidelines to adequately protect persons and property.
(Ord. No. 10824, § 2, 1-10-91; Ord. No. 11007, § 1, 10-8-92; Code 1980, § 19-7; Ord. No. 12105, § 2, 9-13-01; Ord. No. 13108, § 4, 10-8-09; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-8. Bond and responsibility for fireworks display required.

(a) The city commission or city manager may require a bond from the licensee in a sum not less than $1,000.00 conditioned on compliance with the provisions of this chapter.

(b) Before any permit for a pyrotechnic display shall be issued, the person making application therefor shall furnish proof of financial responsibility to satisfy claims for damages to property or personal injuries arising out of any act or omission on the part of such person or any agent or employee thereof in such amount, character and form as the city commission or city manager

determines to be necessary for the protection of the public. If the city commission or the city manager also require that a policy of liability insurance be obtained before such permit is issued, the city shall be named as the insured in the policy.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-8)

Sec. 19-9. Special off-duty fire-rescue services.

(a) The director of the department of fire-rescue, and the fire marshal, or their designees, shall cause the requests for off-duty fire-rescue personnel to provide services to persons or businesses requesting the same to be evacuated on the basis of the reasonableness thereof, included in such evaluation, factors of existing laws, ordinances, rules and regulations, personnel scheduling availability, risk of harm to personnel and department efficiency.

(b) As a fee payable to the city to offset the costs of administering the herein off-duty fire-rescue services program, the director of the department of fire-rescue shall cause to be collected and shall establish procedures for the collection by the city of a sum of $65.77 per hour for a firefighter, $77.29 per hour for a fire lieutenant, $84.25 per hour for a fire captain and $92.67 per hour for a chief fire officer, for one location. Multiple fire-rescue personnel, days or locations shall be assessed on a per person, per job, per day basis for contractual employment of off-duty fire-rescue personnel by private persons or firms. This fee shall be in addition to the hourly compensation rate payable by such private persons or firms to the individual fire-rescue representative. The monies received hereunder by the city shall be placed in the general fund except that $2.40 of each fee collected shall be placed in the city self-insurance and insurance trust fund.

(c) The city expressly recognizes its ongoing responsibility to its employees by providing self-insurance coverage, subject to the maximum amounts provided in F.S. § 768.28, for tort liability and worker's compensation claims arising out of and in the course and scope of assigned off-duty fire-rescue personnel performing fire safety duties during the period of such assignment. Nothing contained herein shall be deemed to limit the tort liability or subrogation rights of parties for or on behalf of whom off-duty fire-rescue services are rendered or upon whose property these services are performed. Furthermore, nothing contained herein shall be deemed as a waiver by the city of any defense or denial of coverage permitted by law. Liability for all civil actions and judgments (excluding individual punitive damages) arising out of claims resulting from the performance of duties unrelated to fire safety during the period of such assigned off-duty fire-rescue services, shall be borne by the party requesting such off-duty fire-rescue services. The party for or on whose behalf such duties unrelated to fire safety have been rendered shall hold the city, its officers, agents and employees harmless for any and all claims, demands, actions, causes of action, suits, damages, losses and expenses, judgments, and attorney's fees and costs expended in defense of same.

(d) Parties receiving off-duty fire-rescue services shall not offer, nor shall off-duty fire-rescue personnel accept, any compensation for such off-duty fire-rescue services or other services above that specified by the director of the department of fire-rescue.
(Ord. No. 10824, § 2, 1-10-91; Ord. No. 11007, § 1, 10-8-92; Code 1980, § 19-9; Ord. No. 13108, § 4, 10-8-09)

Sec. 19-10. Unlawful to tamper with official seal, utility service, etc.

(a) It shall be unlawful to remove or tamper with any seal, warning tag or lock placed on any article, appliance, vehicle, meter, tank, or building by the department of fire-rescue without first obtaining permission to do so from the authority having jurisdiction to remove same.

(b) It shall be unlawful for any person to tamper with or change the position of any utility valve, switch, wiring, piping meter or connection, or alter any utility service in any way unless approval is granted by a duly authorized person having jurisdiction to install said valve, switch, wiring, meter, connection or service or

from the director of the department of fire-rescue, or duly authorized representative thereof.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-10)

Sec. 19-11. False emergency calls; delay in reporting fires.

(a) It shall be unlawful for any person without reasonable cause to summon by outcry, ringing of bell, or otherwise make or circulate, or cause to be made or circulated, a false alarm of fire, or to summon a fire-rescue emergency medical unit, when such person knows or has reason to know that services of the department of fire-rescue or the fire-rescue emergency medical unit are not needed.

(b) It shall be unlawful of any person to knowingly aid or abet the commission of any act resulting in the services of the department of fire-rescue or fire-rescue emergency medical unit being summoned when their services are not required.

(c) It shall be unlawful for any person to delay reporting immediately any fire discovered to the department of fire-rescue or the police department so that firefighting and rescue apparatus may be dispatched.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-11)

Sec. 19-12. Investigation of fire.

The fire prevention bureau shall investigate the cause, origin and circumstances of every fire occurring in the city which is of suspicious nature or which involves loss of life or injury to persons or by which property has been destroyed or substantially damaged. Such investigations shall begin immediately upon the occurrence of such a fire, and the director of the department of fire-rescue shall be immediately notified of the facts; he/she shall take charge immediately of the physical evidence, notify the proper authorities designated by law to pursue the investigation of such matters, and shall further cooperate with the designated official authorities in the collection of evidence or in the presentation of testimony in the prosecution of the case should the same be requested by such authorities.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-12)

Sec. 19-13. Use of photographs, etc., for proof of violations.

When the director of the department of fire-rescue, or duly authorized representative thereof, has cause to believe that any requirement of the Florida Fire Prevention Code, the City Code and/or Florida Building Code is being violated, he/she is hereby authorized to gather any evidence or take photographs necessary to secure proof that a violation of such fire code exists.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-13; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-14. Fire records, reports and photographs.

(a) The director of the department of fire-rescue shall keep a record of all fires and of all the facts concerning the same, including statistics as to the extent of such fires and the damage caused thereby, and whether such losses were covered by insurance and, if so, in what amount. Such record shall be made daily from the reports made by the department of fire-rescue officers and inspectors, and the record shall be kept on file in the office of the fire prevention bureau.

(b) Fire reports and rescue reports that are public records may be purchased from the department of fire-rescue in accordance with the schedule established by F.S. § 119.07 as follows: Charges for one-sided copies shall be $0.15 per page and $0.20 per page for a two-sided copy, maximum size approximately 8½ inches by 14 inches. This does not prohibit the exchange of reports and information between governmental investigative agencies.

(c) Fire photographs that are public records may be purchased from the department of fire-rescue for $12.00 per print for black-and-white prints, and $15.00 per print for color prints. This does not prohibit the exchange of photographs between governmental investigative agencies.

(d) Any public record such as incident reports or photographs may be copied onto a DVD or CD provided by the city for a fee of $10.00 per DVD/CD. The department of fire-rescue does not provide DVDs for this purpose to the public. This does not prohibit the exchange of reports and information between governmental investigative agencies.
(Ord. No. 10824, § 2, 1-10-91; Ord. No. 11007, § 1, 10-8-92; Code 1980, § 19-14; Ord. No. 12805, § 2, 5-11-06)

Sec. 19-15. Guidelines containing administrative orders and procedures.

From time to time, and when deemed appropriate, the director of the department of fire-rescue and/or the chief of fire prevention may prepare a set of advisory guidelines containing administrative orders and procedures pertaining to specific occupancies or operations under the provisions of this chapter and the Florida Fire Prevention Code. Such guidelines, when drafted, shall be a matter of public record and kept on file in the office of the fire prevention bureau. The intent of the guidelines is to clarify the requirements of this chapter and the Florida Fire Prevention Code and to maintain a consistent enforcement and public education program.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-15; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-16. Strict liability.

Whenever a violation of this chapter or of the Florida Fire Prevention Code occurs or exists, any person, individually or otherwise, who has a legal, beneficial or equitable interest in the facility or instrumentality causing or contributing to the violation or who has a legal, beneficial or equitable interest in the real property upon which such violations exist shall be jointly and severally strictly liable for the violation. Liability shall be construed as imposing joint and several strict liability upon all persons, individually or otherwise, who, although no longer having any such legal, beneficial or equitable interest in said facility or instrumentality or real property, did have such an interest at any time during which such violation existed or occurred or continued to exist or occur. This provision shall be liberally construed and shall be retroactively applied to protect the public health, safety, and welfare and to accomplish the purposes of the chapter and the Florida Fire Prevention Code.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-16; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-17. Enforced removal of violative conditions.

The application of any penalty for the violation of this chapter shall not be held to prevent the enforced removal of the condition(s) giving rise to the violation.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-17)

Sec. 19-18. Remedies cumulative and independent.

All the judicial and administrative remedies in this chapter, the Florida Fire Prevention Code, municipal ordinances, state laws, and rules and regulations, as all of same may be amended from time to time, are independent and cumulative. Violations may also be enforced through chapter 2, article X, Code enforcement.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-18; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-19. Nonliability for damages.

This chapter shall not be construed to hold the city responsible for any damage to persons or property by reason of the inspection or reinspection authorized herein or failure to conduct such authorized inspection or reinspection or by reason of the issuance of the permit as herein provided or by reason of the approval of any equipment as authorized herein.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-19)

Sec. 19-20. Criminal penalty.

If any person shall fail or refuse to obey or comply with or violates any provisions of this chapter or of the Florida Fire Prevention Code or any lawful order of the city's chief fire code enforcement official or designee thereof or any lawful order rendered pursuant to the Florida

Fire Prevention Code or any condition, limitation or restriction which is part of a permit issued or rendered under and pursuant to this chapter of the City Code or the Florida Fire Prevention Code, then such person, upon conviction in county court of such offense, shall be punished pursuant to section 1-13, in the discretion of the court. Each day of each continued violation shall be considered as a separate offense and fines may accrue cumulatively.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-20; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-21. Attorney's fees.

Upon the rendition of a judgment or decree by any court of competent jurisdiction in this state, against any person which results in favor of the city's chief fire code enforcement official, or designee thereof, in proceedings seeking to enforce any of the provisions of this chapter or the Florida Fire Prevention Code, the trial court shall adjudge or decree against the person and in favor of the city's chief fire code enforcement official, or designee thereof, a reasonable sum as costs and fees or compensation for the attorney representing the city's chief fire code enforcement official, or designee thereof, who prosecuted the suit in which the recovery was had. Where so awarded, compensation or fees of the attorney shall be included in the judgment or decree rendered in the case. This provision shall apply to all pending or prospective civil actions, legal or equitable, filed by the city's chief fire code enforcement official, or designee thereof, to enforce the provisions of this chapter or the Florida Fire Prevention Code. In the event of an appeal from a judgment rendered in proceedings seeking to enforce any provisions of this chapter or the Florida Fire Prevention Code and where the city's chief fire code enforcement official prevails, the appellate court shall award the city's chief fire code enforcement official, or designee thereof, a reasonable sum as costs and fees or compensation for the attorney representing the question in the appeal. Cessation, correction or remediation of any violation of the provisions of this chapter or the Florida Fire Prevention Code prior to a rendition of judgment or of a temporary or final decree, or prior to execution of a negotiated settlement, but after an action is filed by the city's chief fire code enforcement official, or his/her designee, to enforce the provisions of this chapter or the Florida Fire Prevention Code, shall be deemed the functional equivalent of an admission of guilt or verdict in favor of the city's chief fire code enforcement official, or designee thereof, for which attorneys' fees may be awarded by the trial court as set forth hereinabove.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-21; Ord. No. 13201, § 2, 9-27-10; Ord. No. 13676, § 2, 4-27-17)

Sec. 19-22. Enforcement, procedure; remedies.

(a) It shall be unlawful for any person to violate or to permit, allow, let or suffer any violation of any of the provisions of this chapter, and/or the Florida Fire Prevention Code, as all of same may be amended from time to time; any condition, limitation or restriction which is part of a permit issued pursuant to this chapter or the Florida Fire Prevention Code, as all of the same may be amended from time to time; lawful orders of the city's chief fire code enforcement official, or designee thereof, and consent agreements. In addition to any other judicial or administrative remedies provided by this chapter or by the Florida Fire Prevention Code, the city's chief fire code enforcement official, or designee thereof, shall have the following judicial remedies:

(1) To institute a civil action in a court of competent jurisdiction to seek temporary or permanent, prohibitory or mandatory injunctive relief to enforce compliance with or prohibit the violation of any of the provisions of this chapter or of the Florida Fire Prevention Code, as all of same may be amended from time to time; any lawful order of the city's chief fire code enforcement official, or designee thereof, any condition, limitation, or restriction which is part of a permit issued pursuant to this chapter or the Florida Fire Prevention Code, as all of same may be amended from time to time; or any consent agreement.

(2) To institute a civil action in a court of competent jurisdiction to impose and

recover a civil penalty in an amount of not more than $25,000.00 for each violation of: any of the provisions of this chapter or of the Florida Fire Prevention Code, as all of same may be amended from time to time; any lawful order of the city's chief fire code enforcement official, or designee thereof; any condition, limitation, or restriction which is part of a permit issued pursuant to this chapter or the Florida Fire Prevention Code, as all of same may be amended from time to time; or any consent agreement.

(3) To institute a civil action in a court of competent jurisdiction to seek restitution and other equitable relief to recover any sums expended and costs incurred for:

a. Tracing, investigating, preventing, controlling, abating or remedying violations of this chapter or the Florida Fire Prevention Code, as all of same may be amended from time to time; or any lawful order of the city's chief fire code enforcement official, or designee thereof, or any condition, limitation, or restriction which is a part of a permit issued pursuant to this chapter or the Florida Fire Prevention Code, as all of same may be amended from time to time; or any consent agreement.

b. Restoration of the air, water, property, animal life, aquatic life and plant life within the city to their former condition due to any violation of this chapter, the Florida Fire Prevention Code or any lawful order of the city's chief fire enforcement official, or designee thereof, or any condition, limitation or restriction which is part of a permit issued pursuant to this chapter or the Florida Fire Prevention Code as all of same may be amended from time to time.

(b) Each day during any portion of which such violation occurs or continues to occur constitutes a separate violation. The right of trial by jury shall be available in any court of competent jurisdiction as provided by law.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-22; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-23. Civil penalty and restitution fund.

(a) The sums recovered by the city's chief fire code enforcement official, or designee thereof, pursuant to any section of this chapter or the Florida Fire Prevention Code shall be deposited in a separate city fund as provided herein.

(b) The aforesaid separate city fund shall only be used to pay for the following:

(1) Tracing, investigating, controlling, abating and remedying violations of this chapter and the Florida Fire Prevention Code, as all of same may be amended from time to time.

(2) Restoration of the air, water, property, animal life, aquatic life and plant life within the city to their former condition.

(3) Fire safety prevention and education, planning, protection and programming.

(4) Responding to and attempting to resolve citizen complaints against violations or possible violations of this chapter and the Florida Fire Prevention Code, as all of same may be amended from time to time.

(5) Investigation, preparation, and prosecution of civil and criminal actions, pursuant to this chapter, the Florida Fire Prevention Code, and Florida Statutes, seeking to enforce the provisions of this chapter, and the Florida Fire Prevention Code, as all of same may be amended from time to time.

(c) No part of such separate city fund shall be used for purposes other than the aforesaid.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-23; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-24. Search warrants.

The city's fire code enforcement official, or designee thereof, having fire safety responsibilities, is hereby authorized and empowered to seek out search warrants reasonable and necessary to carry out the respective responsibilities, powers and duties set forth in this chapter and the Florida Fire Prevention Code, in accordance with the requirements of the Constitutions of the State of Florida and the United States of America. (Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-24; Ord. No. 13201, § 2, 9-27-10)

State law reference—Inspection warrants, F.S. § 933.20 et seq.

Sec. 19-25. Inspections; inspection warrants.

(a) Any duly authorized representative of the city's chief fire code enforcement official, or designee thereof, may, at any reasonable time, enter, monitor, sample, test and inspect, as often as may be necessary, any public or private, residential or nonresidential, owner-occupied or nonowner-occupied building for the purpose of:

(1) Ascertaining and/or causing to be corrected any conditions which may contribute to a fire or any conditions which may endanger life and property due to fire;

(2) Enforcing the provisions of this chapter, the Florida Fire Prevention Code, the rules and regulations of the state fire marshal; and

(3) Investigating the cause, origin, circumstances of every fire occurring which is suspicious in nature or which involves the loss of life or injury to persons or by which property has been damaged.

(b) No person shall refuse reasonable entry or access to a duly authorized representative of the fire prevention bureau who requests entry for any of the purposes set forth in subsection (a), above, and who presents appropriate credentials identifying himself/herself as such representative.

(c) No person shall obstruct, hamper or interfere with any such inspection, entry, monitoring, testing or sampling.

(d) An inspection, entry, monitoring, testing and sampling, pursuant to this section may be conducted only after the following:

(1) Consent for the entry, inspection, testing, monitoring and sampling is received from the owner or person in charge of the property, place, dwelling, item, structure or premises.

(2) An inspection warrant as provided in this section or by law is obtained.

(e) An inspection warrant as authorized by this chapter may be issued by a judge of any county court or circuit court of this state which has jurisdiction of the property, place, dwelling, item, structure or premises to be searched.

(f) Upon proper presentation by affidavit, an inspection warrant may be secured/issued pursuant to the provisions of this chapter and/or for the following causes shown:

(1) When it is reasonable to believe that the property or item(s) to be inspected may be connected with or contain evidence of a violation of any of the provisions of this chapter, the Florida Fire Prevention Code, and the rules and regulations of the state fire marshal; or

(2) When the inspection sought is an integral part of a scheme of systematic routine or area inspections or investigations based upon reasonable legislative or administrative standards and neutral criteria.

(g) Prior to determining grounds for an inspection, the judge shall examine under oath or affirmation the applicant and any other witness(es) and shall satisfy himself or herself of the existence of cause as set forth in subsection (f) above, before granting such application.

(h) If the judge is satisfied that cause for the inspection warrant exists, he or she may issue authorization for the inspection in writing, describing with particularity the property, place, dwell-

ing, item, structure or premises to be inspected and designating on the warrant the purpose and limitations of the inspection.

(i) An inspection warrant shall be effective for the time specified therein, but not for a period of more than 14 days unless it is extended or renewed by the judge who signed and issued the original warrant, upon satisfying himself or herself that such extension or renewal is in the public interest. Such inspection warrant must be executed and returned to the judge by whom it was issued within the time specified in the warrant or within the extended or renewed time. After the expiration of such time, the warrant, unless executed or extended, is void.

(j) An inspection pursuant to an inspection warrant shall not be made by means of forcible entry, except that the judge may expressly authorize a forcible entry when facts are shown which are sufficient to create a reasonable suspicion of a violation which, if such violation existed or continued to exist, would be an immediate threat to life, health or safety, or when facts are shown establishing that reasonable attempts to serve a previous warrant have been unsuccessful.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-25; Ord. No. 13201, § 2, 9-27-10; Ord. No. 13676, § 2, 4-27-17)

Sec. 19-26. Orders.

(a) When evidence has been received establishing that a violation of this chapter, the Florida Fire Prevention Code, or any rule and regulation of the state fire marshal, has occurred or may reasonably be expected to occur, the city's chief fire code enforcement official, or designee thereof, may issue, in his/her discretion, a notice to correct the violation or a citation to cease the violation and cause the same to be served upon the violator by personal service or certified mail to the violator's last known address or post office box or by posting a copy in a conspicuous place at the premises of the violation. Once posting has occurred, failure to claim the certified mail shall be at no consequence, and service shall be deemed to be complete and proper. Such notice or citation shall briefly set forth the general nature of the violation and specify a reasonable time within which the violation shall be rectified or stopped. Reasonable time herein means the shortest practicable time to rectify or stop the violation. Such notice or citation may require the violator to restrict, cease or suspend use or operation of the facility or premises. Any orders hereunder may be enforced as provided in section 19-22 of this chapter. This provision shall not be construed to require the issuance or service of a notice of violation or citation to cease or other order prior to initiating proceedings against a violator pursuant to section 19-22 of this chapter.

(b) For the purpose of this chapter, a violator shall mean the owner, lessee and any other person responsible for the condition of the premises. In the case of a corporation it shall also mean the resident agent, any director or officer. In the case of a partnership it shall also mean any partner.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-26; Ord. No. 13201, § 2, 9-27-10)

Sec. 19-27. Correction of violations.

(a) When a violation of this chapter, the Florida Fire Prevention Code, or any rule or regulation of the state fire marshal, has occurred or continues to exist or when there is a reasonable likelihood of imminent endangerment to life, health or property because of a threatened violation of any of the foregoing provisions, the city's chief fire code enforcement official, or designee thereof, in his/her discretion, may do any of the following:

(1) Take any action necessary to prevent such a violation;

(2) Trace, investigate, control, abate and remedy such a violation; and

(3) Restore the air, waters, property, animal life, aquatic life and plant life within the city to their former condition.

(b) This section shall not be construed to provide a defense to or otherwise relieve or limit the liability or responsibility of any person who violated or is violating the particular provisions

of law or ordinance aforesaid. Any sums expended by the city in an effort to effect a remedy may be recovered as provided by section 19-22.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-27; Ord. No. 13201, § 2, 9-27-10; Ord. No. 13676, § 2, 4-27-17)

Sec. 19-28. Liens.

Owners of real property shall be liable for the sums expended by the city pursuant to section 19-23 of this chapter when the violation has occurred or continued to exist or appeared imminent upon the real property aforesaid, regardless of fault and regardless of knowledge of the aforesaid violation. All sums expended by the city pursuant to sections 19-22 and 19-23 of this chapter shall constitute and are hereby imposed as special assessment liens against the real property aforesaid, and until fully paid and discharged or barred by law, shall remain liens equal in rank and in dignity with the lien of county and city ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved. All such sums shall become immediately due and owing to the city upon expenditure by the city and shall become delinquent if not fully paid within 60 days after the due date. All such delinquent sums shall bear a penalty of 15 percent per annum. Unpaid and delinquent sums, together with all penalties imposed thereon, shall remain and constitute special assessment liens against the real property involved for the period of five years from the due date thereof. The special assessment liens may be enforced by the city by any of the methods provided in F.S. ch. 85, or, in the alternative, foreclosure proceedings may be instituted and prosecuted by the city pursuant to the provisions of F.S. ch. 173, or the collection and enforcement of payment thereof may be accomplished by any other method provided by law. All sums recovered by the city pursuant to this provision shall be deposited by the city into the fund from which said sums were expended.
(Ord. No. 10824, § 2, 1-10-91; Code 1980, § 19-28)

Chapter 19.5

FIRE RESCUE ASSESSMENT*

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*City Code cross references—Fire protection, ch. 19.

ARTICLE I. IN GENERAL

Sec. 19.5-1. Definitions.

As used in this chapter, the following words and terms shall have the following meanings, unless the context clearly otherwise requires:

Annual rate resolution means the resolution described in section 19.5-28, establishing the rate at which a fire rescue assessment for a specific fiscal year will be computed. The final assessment resolution shall constitute the annual rate resolution for the initial fiscal year in which a fire rescue assessment is imposed or reimposed.

Assessed property means all parcels of land included on the assessment roll that receive a special benefit from the delivery of the fire rescue services, programs or facilities identified in the initial assessment resolution or the preliminary rate resolution.

Assessment roll means the special assessment roll relating to a fire rescue assessment approved by a final assessment resolution pursuant to section 19.5-26 or an annual rate resolution pursuant to section 19.5-28.

Building means any structure, whether temporary or permanent, built for support, shelter or enclosure of persons, chattel, or property of any kind. This term shall include mobile homes or any vehicles serving in any way the function of a building.

Certificate of occupancy means the written certification issued by the city that a building is ready for occupancy for its intended use. For the purposes of this chapter, a set up permit or its equivalent issued for a mobile home shall be considered a certificate of occupancy.

City means the City of Miami, Florida.

City commission means the governing body of City of Miami, Florida.

City manager means the head of the administrative branch of the city as defined in the City Charter, or his/her designee.

Final assessment resolution means the resolution described in section 19.5-26 which shall confirm, modify, or repeal the initial assessment resolution and which shall be the final proceeding for the initial imposition of fire rescue assessments.

Fire rescue assessed cost means the amount determined by the city commission to be assessed in any fiscal year to fund all or any portion of the cost of the provision of fire rescue services, facilities, or programs which provide a special benefit to assessed property, and shall include, but not be limited to, the following components:

(1) The cost of physical construction, reconstruction or completion of any required facility or improvement;

(2) The costs incurred in any required acquisition or purchase;

(3) The cost of all labor, materials, machinery, and equipment;

(4) The cost of fuel, parts, supplies, maintenance, repairs, and utilities;

(5) The cost of computer services, data processing, and communications;

(6) The cost of all lands and interest therein, leases, property rights, easements, and franchises of any nature whatsoever;

(7) The cost of any indemnity or surety bonds and premiums for insurance;

(8) The cost of salaries, workers, compensation insurance, or other employment benefits;

(9) The cost of uniforms, training, travel, and per diem;

(10) The cost of construction plans and specifications, surveys and estimates of costs;

(11) The cost of engineering, financial, legal, and other professional services;

(12) The costs of compliance with any contracts or agreements entered into by the city to provide fire rescue services;

(13) All costs associated with the structure, implementation, collection, and enforcement of the fire rescue assessments, including any service charges of the tax collector, or property appraiser and

amounts necessary to offset discounts received for early payment of fire rescue assessments pursuant to the uniform assessment collection act or for early payment of fire rescue assessments collected pursuant to section 19.5-52;

(14) All other costs and expenses necessary or incidental to the acquisition, provision, or construction of fire rescue services, facilities, or programs, and such other expenses as may be necessary or incidental to any related financing authorized by the city commission by subsequent resolution;

(15) A reasonable amount for contingency and anticipated delinquencies and uncollectible fire rescue assessments; and

(16) Reimbursement to the city or any other person for any moneys advanced for any costs incurred by the city or such person in connection with any of the foregoing components of fire rescue assessed cost.

Fire rescue assessment means a special assessment lawfully imposed by the city against assessed property to fund the fire rescue assessed cost imposed to fund all or any portion of the cost of the provision of fire rescue services, facilities, or programs providing a special benefit to property as a consequence of possessing a logical relationship to the value, use, or characteristics of property identified in the initial assessment resolution or the preliminary rate resolution.

Fiscal year means that period commencing October 1 of each year and continuing through the next succeeding September 30, or such other period as may be prescribed by law as the fiscal year for the city.

Government property means property owned by the United States of America or any agency thereof, a sovereign state or nation, the State of Florida or any agency thereof, a county, a special district or a municipal corporation.

Initial assessment resolution means the resolution described in section 19.5-22 which shall be the initial proceeding for the identification of the fire rescue assessed cost for which an assessment is to be made and for the imposition of a fire rescue assessment.

Ordinance means this fire rescue assessment chapter.

Owner shall mean the person reflected as the owner of assessed property on the tax roll.

Person means any individual, partnership, firm, organization, corporation, association, or any other legal entity, whether singular or plural, masculine or feminine, as the context may require.

Preliminary rate resolution means the resolution described in section 19.5-28 initiating the annual process for updating the assessment roll and directing the reimposition of fire rescue assessments pursuant to an annual rate resolution.

Property appraiser means the property appraiser of the county.

Tax collector means the Department of Finance and Administrative Services as described in article IV of the Dade County Charter.

Tax roll means the real property ad valorem tax assessment roll maintained by the property appraiser for the purpose of the levy and collection of ad valorem taxes.

Uniform assessment collection act means F.S. §§ 197.3632 and 197.3635, or any successor statutes authorizing the collection of non-ad valorem assessments on the same bill as ad valorem taxes, and any applicable regulations promulgated thereunder.
(Ord. No. 11584, § 1, 12-30-97; Ord. No. 13676, § 2, 4-27-17)

Sec. 19.5-2. Interpretation.

Unless the context indicates otherwise, words importing the singular number include the plural number, and vice versa; the terms "hereof," "hereby," "herein," "hereto," "hereunder" and similar terms refer to this chapter; and the term "hereafter" means after, and the term "heretofore" means before the effective date of the ordinance from which this chapter derives (January 13,

1998). Words of any gender include the correlative words of the other genders, unless the sense indicates otherwise.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-3. Findings.

It is hereby ascertained, determined, and declared that:

(1) Pursuant to Article VIII, section 2(b) of the Florida Constitution, and F.S. §§ 166.021 and 166.041, the city commission has all powers of local self-government to perform municipal functions, render municipal services except when prohibited by law, and such power may be exercised by the enactment of legislation in the form of city ordinances.

(2) The city commission may exercise any governmental, corporate, or proprietary power for a municipal purpose except when expressly prohibited by law, and the city commission may legislate on any subject matter on which the state legislature may act, except those subjects described in F.S. § 166.021(3)(a), (b), (c), and (d). The subject matter of F.S. § 166.021(3)(a), (b), (c), and (d) are not relevant to the imposition of assessments related to fire rescue services, facilities or programs of the city.

(3) The purpose of this chapter is to:

a. Provide procedures and standards for the imposition of city-wide fire rescue assessments under the general home rule powers of a municipality to impose special assessments;

b. Authorize a procedure for the funding of fire rescue services, facilities, or programs providing special benefits to property within the city; and

c. Legislatively determine the special benefit provided to assessed property from the provision of combined fire control and emergency medical services by the city under its consolidated fire rescue program.

(4) The annual fire rescue assessments to be imposed pursuant to this chapter shall constitute non-ad valorem assessments within the meaning and intent of the Uniform Assessment Collection Act.

(5) The fire rescue assessment imposed pursuant to this chapter is imposed by the city commission, not the county board of county commissioners, property appraiser or tax collector. Any activity of the property appraiser or tax collector under the provisions of this chapter shall be construed as ministerial.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-4. Legislative determinations of special benefit.

It is hereby ascertained and declared that the fire rescue services, facilities, and programs of the city provide a special benefit to property within the city that is improved by the existence or construction of a dwelling unit or building based upon the following legislative determinations:

(1) Fire rescue services, which include the combined fire control and emergency medical services of the city under its existing consolidated fire rescue program, possess a logical relationship to the use and enjoyment of improved property by:

a. Protecting the value of the improvements and structures through the provision of available fire rescue services;

b. Protecting the life and safety of intended occupants in the use and enjoyment of improvements and structures within improved parcels;

c. Lowering the cost of fire or other insurance by the presence of a professional and comprehensive fire rescue program within the city; and

d. Containing the spread of fire incidents occurring on vacant

property with the potential to spread and endanger the structures and occupants of improved property.

(2) The combined fire control and emergency medical services of the city under its existing consolidated fire rescue program enhance and strengthens the relationship of such services to the use and enjoyment of buildings within improved parcels of property within the city.

(3) The combined fire control and emergency medical services of the city under its existing consolidated fire rescue program enhance the value of business and commercial property that is improved by the existence or construction of a building which enhanced value can be anticipated to be reflected in the rental charge or value of such business or commercial property.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-5. Applicability.

This chapter and the city's authority to impose assessments pursuant hereto shall be applicable throughout the city.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-6. Alternative method.

(a) This chapter shall be deemed to provide an additional and alternative method for the doing of the things authorized hereby and shall be regarded as supplemental and additional to powers conferred by other laws, and shall not be regarded as in derogation of any powers now existing or which may hereafter come into existence. This chapter, being necessary for the welfare of the inhabitants of the city, shall be liberally construed to effect the purposes hereof.

(b) Nothing herein shall preclude the city commission from directing and authorizing, by resolution, the combination with each other of:

(1) Any supplemental or additional notice deemed proper, necessary, or convenient by the city;

(2) Any notice required by this chapter; or

(3) Any notice required by law, including the Uniform Assessment Collection Act.

(Ord. No. 11584, § 1, 12-30-97)

Secs. 19.5-7—19.5-20. Reserved.

ARTICLE II. ANNUAL ASSESSMENTS

Sec. 19.5-21. General authority.

(a) The city commission is hereby authorized to impose an annual fire rescue assessment to fund all or any portion of the fire rescue assessed cost upon benefitted property at a rate of assessment based on the special benefit accruing to such property from the city's provision of fire rescue services, facilities, or programs. All fire rescue assessments shall be imposed in conformity with the procedures set forth in this article.

(b) The amount of the fire rescue assessment imposed in a fiscal year against a parcel of assessed property shall be determined pursuant to an apportionment methodology based upon a classification of property designed to provide a fair and reasonable apportionment of the fire rescue assessed cost among properties on a basis reasonably related to the special benefit provided by fire rescue services, facilities, or programs funded with assessment proceeds. Nothing contained in this chapter shall be construed to require the imposition of fire rescue assessments against government property.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-22. Initial proceedings.

The initial proceeding for the imposition of a fire rescue assessment shall be the adoption of an initial assessment resolution by the city commission which:

(1) Contains a brief and general description of the fire rescue services, facilities, or programs to be provided;

(2) Estimates the fire rescue assessed cost to be assessed;

(3) Describes the method of apportioning the fire rescue assessed cost and the computation of the fire rescue assessment for specific properties;

(4) Provides a summary description of the parcels of property (conforming to the description contained on the tax roll) located within the city that receive a special benefit from the provision of fire rescue services, facilities, or programs or describing a specific geographic area in which such service, facility, or program will be provided;

(5) Establishes an assessment rate for the upcoming fiscal year; and

(6) Directs the city manager to:

a. Prepare the initial assessment roll, as required by section 19.5-23;

b. Publish the notice required by section 19.5-24; and

c. Mail the notice required by section 19.5-25 using information then available from the tax roll.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-23. Initial assessment roll.

(a) The city manager shall prepare, or direct the preparation of, the initial assessment roll, which shall contain the following:

(1) A summary description of all assessed property conforming to the description contained on the tax roll.

(2) The name of the owner of the assessed property.

(3) The amount of the fire rescue assessment to be imposed against each such parcel of assessed property.

(b) The initial assessment roll shall be retained by the city manager and shall be open to public inspection. The foregoing shall not be construed to require that the assessment roll be in printed form if the amount of the fire rescue assessment for each parcel of property can be determined by use of a computer terminal available to the public.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-24. Notice by publication.

Upon completion of the initial assessment roll, the city manager shall publish, or direct the publication of, once in a newspaper of general circulation within the city, a notice stating that at a meeting of the city commission on a certain day and hour, not earlier than 20 calendar days from such publication, which meeting shall be a regular, adjourned, or special meeting, the city commission will hear objections of all interested persons to the final assessment resolution which shall establish the rate of assessment and approve the aforementioned initial assessment roll. The published notice shall conform to the requirements set forth in the Uniform Assessment Collection Act. Such notice shall include:

(1) A geographic depiction of the property subject to the fire rescue assessment;

(2) A brief and general description of the fire rescue services, facilities, or programs to be provided;

(3) The rate of assessment;

(4) The procedure for objecting provided in section 19.5-26;

(5) The method by which the fire rescue assessment will be collected; and

(6) A statement that the initial assessment roll is available for inspection at the office of the city manager and all interested persons may ascertain the amount to be assessed against a parcel of assessed property at the office of the city manager.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-25. Notice by mail.

(a) If the city decides to collect the fire rescue assessments on the same bill as ad valorem taxes in the manner provided in the uniform assessment collection act, the city manager shall additionally provide notice, or direct the provi-

sion of notice, of the proposed fire rescue assessment by first class mail to the owner of each parcel of property (except government property) subject to the fire rescue assessment. Such notice shall include:

(1) The purpose of the fire rescue assessment;

(2) The rate of assessment to be levied against each parcel of property;

(3) The unit of measurement applied to determine the fire rescue assessment;

(4) The number of such units contained in each parcel of property;

(5) The total revenue to be collected by the city from the fire rescue assessment;

(6) A statement that failure to pay the fire rescue assessment will cause a tax certificate to be issued against the property or foreclosure proceedings to be instituted, either of which may result in a loss of title to the property;

(7) A statement that all affected owners have a right to appear at the hearing and to file written objections with the city commission within 20 days of the notice; and

(8) The date, time, and place of the hearing.

Such mailed notice shall conform to the requirements set forth in the Uniform Assessment Collection Act. Notice shall be mailed at least 20 calendar days prior to the hearing to each owner at such address as is shown on the tax roll. Notice shall be deemed mailed upon delivery thereof to the possession of the United States Postal Service. The city manager may provide proof of such notice by affidavit. Failure of the owner to receive such notice due to mistake or inadvertence, shall not affect the validity of the assessment roll nor release or discharge any obligation for payment of a fire rescue assessment imposed by the city commission pursuant to this chapter.

(b) No individually mailed notice to affected owners, in addition to the published notice in section 19.5-24, shall be required in the event the city employs an alternative method of collection and chooses not to collect the fire rescue assessments on the same bill as ad valorem taxes.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-26. Adoption of final assessment resolution.

At the time named in such notice, or to which an adjournment or continuance may be taken by the city commission, the city commission shall receive any written objections of interested persons and may then, or at any subsequent meeting of the city commission adopt the final assessment resolution which shall:

(1) Confirm, modify, or repeal the initial assessment resolution with such amendments, if deemed appropriate the rate of any, as may be by the city commission;

(2) Establish assessment to be imposed in the upcoming fiscal year;

(3) Approve the initial assessment roll, with such amendments as it deems just and right; and

(4) Determine the method of collection.

The final assessment resolution, or any subsequent annual rate resolution, may modify, ratify or confirm the initial assessment resolution, or any subsequent preliminary rate resolution. The adoption of the final assessment resolution by the city commission shall constitute a legislative determination that all parcels assessed derive a special benefit from the fire rescue services, facilities, or programs to be provided or constructed and a legislative determination that the fire rescue assessments are fairly and reasonably apportioned among the properties that receive the special benefit. All objections to the final assessment resolution shall be made in writing, and filed with the city manager at or before the time or adjourned time of such hearing. The final assessment resolution shall constitute the annual rate resolution for the initial fiscal year in which fire rescue assessments are imposed or reimposed hereunder.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-27. Effect of final assessment resolution.

The fire rescue assessments for the initial fiscal year shall be established upon adoption of the final assessment resolution. The adoption of the final assessment resolution shall be the final adjudication of the issues presented (including, but not limited to, the determination of special benefit and fair apportionment to the assessed property, the method of apportionment and assessment, the initial rate of assessment, the initial assessment roll, and the levy and lien of the fire rescue assessments), unless proper steps shall be initiated in a court of competent jurisdiction to secure relief within 20 days from the date of the city commission action on the final assessment resolution. The initial assessment roll, as approved by the final assessment resolution, shall be delivered to the tax collector, as required by the Uniform Assessment Collection Act, or if the alternative method described in section 19.5-52 is used to collect the fire rescue assessments, such other official as the city commission by resolution shall designate.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-28. Adoption of annual rate resolution.

(a) The city commission shall adopt an annual rate resolution during its budget adoption process for each fiscal year following the initial fiscal year for which a fire rescue assessment is imposed hereunder.

(b) The initial proceedings for the adoption of an annual rate resolution shall be the adoption of a preliminary rate resolution by the city commission which:

(1) Contains a brief and general description of the fire rescue services, facilities, or programs to be provided;

(2) Estimates the fire rescue assessed cost to be assessed for the upcoming fiscal year;

(3) Establishes the assessment rate for the upcoming fiscal year;

(4) Authorizes the date, time, and place of a public hearing to receive and consider comments from the public and consider the adoption of the annual rate resolution for the upcoming fiscal year;

(5) Directs the city manager to update the assessment roll, and provide notice by publication and first class mail to affected owners in the event circumstances described in subsection (f), below, so require; and

(6) Directs and authorizes any supplemental or additional notice deemed proper, necessary or convenient by the city.

(c) The annual rate resolution shall establish the rate of assessment to be imposed in the upcoming fiscal year, and approve the assessment roll for the upcoming fiscal year with such adjustments as the city commission deems just and right. The assessment roll shall be prepared in accordance with the method of apportionment set forth in the initial assessment resolution together with modifications, if any, and as confirmed in the final assessment resolution or as provided in the preliminary rate resolution.

(d) Nothing herein shall preclude the city commission from providing annual notification to all owners of assessed property in the manner provided in either or both sections 19.5-24 or 19.5-25.

(e) Nothing herein shall preclude the city commission from establishing by resolution a maximum rate of assessment provided that notice of such maximum assessment rate is provided pursuant to sections 19.5-24 and 19.5-25.

(f) In the event (1) the proposed fire rescue assessment for any fiscal year exceeds the maximum rate of assessment adopted by the city commission and included in notice previously provided to the owners of assessed property pursuant to sections 19.5-24 and 19.5-25, (2) the method of apportionment is changed or the purpose for which the fire rescue assessment is imposed is substantially changed from that represented by notice previously provided to the owners of assessed property pursuant to sections 19.5-24 and 19.5-25, (3) assessed property is reclassified in a manner which results in an increased fire rescue assessment from that

represented by notice previously provided to the owners of assessed property pursuant to sections 19.5-24 and 19.5-25, or (4) an assessment roll contains assessed property that was not included on the assessment roll approved for the prior fiscal year, notice shall be provided to affected owners in substantial conformance with the notice requirements set forth in sections 19.5-24 and 19.5-25 and inform the owner of the date, time, and place for the adoption of the annual rate resolution. The failure of the owner to receive such notice due to mistake or inadvertence, shall not affect the validity of the assessment roll nor release or discharge any obligation for payment of a fire rescue assessment imposed by the city commission pursuant to this chapter.

(g) As to any assessed property not included on an assessment roll approved by the adoption of the final assessment resolution or a prior year's annual rate resolution, the adoption of the succeeding annual rate resolution shall be the final adjudication of the issues presented as to such assessed property (including, but not limited to, the determination of special benefit and fair apportionment to the assessed property, the method of apportionment and assessment, the rate of assessment, the assessment roll, and the levy and lien of the fire rescue assessments), unless proper steps shall be initiated in a court of competent jurisdiction to secure relief within 20 days from the date of the city commission action on the annual rate resolution. Nothing contained herein shall be construed or interpreted to affect the finality of any fire rescue assessment not challenged within the required 20 day period for those fire rescue assessments imposed against assessed property by the inclusion of the assessed property on an assessment roll approved in the final assessment resolution or any subsequent annual rate resolution.

(h) The assessment roll, as approved by the annual rate resolution, shall be delivered to the tax collector as required by the Uniform Assessment Collection Act, or if the alternative method described in section 19.5-52 is used to collect the fire rescue assessments, such other official as the city commission by resolution shall designate. If the fire rescue assessment against any property shall be sustained, reduced, or abated by the court, an adjustment shall be made on the assessment roll.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-29. Lien.

Upon the adoption of the assessment roll, all fire rescue assessments shall constitute a lien against assessed property equal in rank and dignity with the liens of all state county, district, or municipal taxes and special assessments. Except as otherwise provided by law, such liens shall be superior in dignity to all other period liens, mortgages, titles, and claims until paid. The lien for a fire rescue assessment shall be deemed perfected upon adoption by the city commission of the final assessment resolution, whichever is applicable. The lien for a fire rescue assessment shall be deemed perfected upon adoption by the city commission of the final assessment resolution or the annual rate resolution, whichever is applicable. The lien for a fire rescue assessment collected under the Uniform Assessment Collection Act shall attach to the property included on the assessment roll as of the prior January 1, the lien date for ad valorem taxes imposed under the tax roll. The lien for a fire rescue assessment collected under the alternative method of collection provided in section 19.5-52 shall be deemed perfected upon adoption by the city commission of the final assessment resolution or the annual rate resolution, whichever is applicable, and shall attach to the property on such date of adoption.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-30. Revisions.

If any fire rescue assessment made under the provisions of this chapter is either in whole or in part annulled, vacated, or set aside by the judgment of any court, or if the city commission is satisfied that any such fire rescue assessment is so irregular or defective that the same cannot be enforced or collected, or if the city commission has omitted any property on the assessment roll which property should have been so included, the city commission may take all necessary steps to impose a new fire rescue assessment against any property benefitted by the fire rescue assessed

costs, following as nearly as may be practicable, the provisions of this chapter and in case such second fire rescue assessment is annulled, vacated, or set aside, the city commission may obtain and impose other fire rescue assessments until a valid fire rescue assessment is imposed.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-31. Procedural irregularities.

Any informality or irregularity in the proceedings in connection with the levy of any fire rescue assessment under the provisions of this chapter shall not affect the validity of the same after the approval thereof, and any fire rescue assessment as finally approved shall be competent and sufficient evidence that such fire rescue assessment was duly levied, that the fire rescue assessment was duly made and adopted, and that all other proceedings adequate to such fire rescue assessment were duly had, taken, and performed as required by this chapter; and no variance from the directions hereunder shall be held material unless it be clearly shown that the party objecting was materially injured thereby. Notwithstanding the provisions of this section, any party objecting to a fire rescue assessment imposed pursuant to this chapter must file an objection with a court of competent jurisdiction within the time periods prescribed herein.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-32. Correction of errors and omissions.

(a) No act of error or omission on the part of the property appraiser, tax collector, city manager, city commission, or their deputies, employees, agents or designees shall operate to release or discharge any obligation for payment of a fire rescue assessment imposed by the city commission under the provision of this chapter.

(b) When it shall appear that any fire rescue assessment should have been imposed under this chapter against a parcel of property specially benefitted by the provision of fire rescue services, facilities, or programs, but that such property was omitted from the assessment roll or was not listed on the tax roll as an individual parcel of property as of the effective date of the assessment roll approved, by the annual rate resolution for any upcoming fiscal year, the city commission may, upon provision of a notice by mail provided to the owner of the omitted parcel in substantially the manner and form provided in section 19.5-25, impose the applicable fire rescue assessment for the fiscal year in which such error is discovered, in addition to the applicable fire rescue assessment due for the prior two fiscal years. Such fire rescue assessment shall constitute a lien against assessed property equal in rank and dignity with the liens of all state, county, district, or municipal taxes and special assessments, and superior in rank and dignity to all other prior liens, mortgages, titles, and claims in and to or against the real property involved, shall be collected as provided in article III, and shall be deemed perfected on the date of adoption of the resolution imposing the omitted or delinquent assessments.

(c) Prior to the delivery of the assessment roll to the tax collector in accordance with the Uniform Assessment Collection Act, the city manager shall have the authority at any time, upon his or her own initiative or in response to a timely filed petition from the owner of any property subject to a fire rescue assessment, to reclassify property based upon presentation of competent and substantial evidence, and correct any error in applying the fire rescue assessment apportionment method to any particular parcel of property not otherwise requiring the provision of notice pursuant to the Uniform Assessment Collection Act. Any such correction shall be considered valid ab initio and shall in no way affect the enforcement of the fire rescue assessment imposed under the provisions of this chapter. All requests from affected property owners for any such changes, modifications or corrections shall be referred to, and processed by, the city manager and not the property appraiser or tax collector. Any property owner unsatisfied with the decision of the city manager may seek review by a hearing officer in the manner provided in section 19.5-54.

(d) After the assessment roll has been delivered to the tax collector in accordance with the Uniform Assessment Collection Act, any changes, modifications, or corrections thereto shall be made in

accordance with the procedures applicable to correcting errors and insolvencies on the tax roll upon timely written request and direction of the city manager.
(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-33. Interim assessments.

(a) An interim fire rescue assessment shall be imposed against all property for which a certificate of occupancy is issued after adoption of the annual rate resolution. The amount of the interim fire rescue assessment shall be calculated upon a monthly rate, which shall be one-twelfth of the annual rate for such property computed in accordance with the annual rate resolution for the fiscal year in which the certificate of occupancy is issued. Such monthly rate shall be imposed for each full calendar month remaining in the fiscal year. In addition to the monthly rate, the interim fire rescue assessment shall also include an estimate of the subsequent fiscal year's fire rescue assessment. No certificate of occupancy shall be issued until full payment of the interim fire rescue assessment is received by the city. Issuance of the certificate of occupancy by mistake or inadvertence, and without the payment in full of the interim fire rescue assessment, shall not relieve the owner of such property of the obligation of full payment. For the purpose of this provision, such interim fire rescue assessment shall be deemed due and payable on the date the certificate of occupancy was issued and shall constitute a lien against such property as of that date. Said lien shall be equal in rank and dignity with the liens of all state, county, district or municipal taxes and special assessments, and superior in rank and dignity to all other liens, encumbrances, titles and claims in and to or against the real property involved and shall be deemed perfected upon the issuance of the certificate of occupancy.

(b) Any property owner unsatisfied with the imposition of an interim fire rescue assessment may seek review by a hearing officer in the manner provided in section 19.5-54.
(Ord. No. 11584, § 1, 12-30-97)

Secs. 19.5-34—19.5-50. Reserved.

ARTICLE III. COLLECTION AND USE

Sec. 19.5-51. Method of collection.

(a) Unless otherwise directed by the city commission, the fire rescue assessments shall be collected pursuant to the uniform method provided in the Uniform Assessment Collection Act, and the city shall comply with all applicable provisions of the Uniform Assessment Collection Act. Any hearing or notice required by this chapter may be combined with any other hearing or notice, required by the Uniform Assessment Collection Act.

(b) The amount of a fire rescue assessment to be collected using the uniform method pursuant to the Uniform Assessment Collection Act for any specific parcel of benefitted property may include an amount equivalent to the payment delinquency, delinquency fees and recording costs for a prior year's assessment for a comparable service, facility, or program, provided:

(1) The collection method used in connection with the prior year's assessment did not employ the use of the uniform method of collection authorized by the Uniform Assessment Collection Act;

(2) Notice is provided to the owner as required under the Uniform Assessment Collection Act; and

(3) Any lien on the affected parcel for the prior year's assessment is supplanted and transferred to such fire rescue assessment upon certification of a non-ad valorem roll to the tax collector by the city.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-52. Alternative method of collection.

In lieu of utilizing the Uniform Assessment Collection Act, the City may elect to collect the Fire Rescue Assessments by any other method which is authorized by law or under the alternative collection method provided by this section:

(1) The city shall provide fire rescue assessment bills by first class mail to the owner of each affected parcel of property, other

than government property, at any time prior to or during the fiscal year for which such fire rescue assessments are imposed. The bill or accompanying explanatory material shall include:

a. A brief explanation of the fire rescue assessment;

b. A description of the unit of measurement used to determine the amount of the fire rescue assessment;

c. The number of units contained within the parcel;

d. The total amount of the fire rescue assessment imposed against the parcel for the appropriate period;

e. The location at which payment will be accepted;

f. The date on which the fire rescue assessment is due; and

g. A statement that the fire rescue assessment constitutes a lien against assessed property equal in rank and dignity with the liens of all state, county, district or municipal taxes and other non-ad valorem assessments.

(2) A general notice of the lien resulting from imposition of the fire rescue assessments shall be recorded in the official records of the county. Nothing herein shall be construed to require that individual liens or releases be filed in the official records.

(3) The city shall have the right to foreclose and collect all delinquent fire rescue assessments in the manner provided by law for the foreclosure of mortgages on real property or appoint or retain an agent to institute such foreclosure and collection proceedings. A fire rescue assessment shall become delinquent if it is not paid within 30 days from the date any installment is due. The city or its agent shall notify any property owner who is delinquent in payment of his or her fire rescue assessment within 60 days from the date such assessment was due. Such notice shall state in effect that the city or its agent will either:

a. Initiate a foreclosure action or suit in equity and cause the foreclosure of such property subject to a delinquent fire rescue assessment in a method now or hereafter provided by law for foreclosure of mortgages on real property; or

b. Cause an amount equivalent to the delinquent fire rescue assessment, not previously subject to collection using the uniform method under the Uniform Assessment Collection Act, to be collected on the tax bill for a subsequent year.

(4) All costs, fees and expenses, including reasonable attorney fees and title search expenses, related to any foreclosure action as described herein shall be included in any judgment or decree rendered therein. At the sale pursuant to decree in any such action, the city may be the purchaser to the same extent as any person. The city or its agent may join in one foreclosure action the collection of fire rescue assessments against any or all property assessed in accordance with the provisions hereof. All delinquent owners whose property is foreclosed shall be liable for an apportioned amount of reasonable costs and expenses incurred by the city and its agents, including reasonable attorney fees, in collection of such delinquent fire rescue assessments and any other costs incurred by the city as a result of such delinquent fire rescue assessments and the same shall be collectible as a part of or in addition to, the costs of the action.

(5) In lieu of foreclosure, any delinquent fire rescue assessment and the costs, fees and expenses attributable thereto, may be collected pursuant to the Uniform Assessment Collection Act; provided however, that:

a. Notice is provided to the owner in the manner required by the Uniform Assessment Collection Act and this chapter; and

b. Any existing lien of record on the affected parcel for the delinquent fire rescue assessment is supplanted by the lien resulting from certification of the assessment roll, as applicable, to the tax collector.

(6) Notwithstanding the city's use of an alternative method of collection, the city manager shall have the same power and authority to correct errors and omissions as provided to him/her or county officials in section 19.5-32.

(7) Any city commission action required in the collection of fire rescue assessments may be by resolution.

(Ord. No. 11584, § 1, 12-30-97; Ord. No. 13676, § 2, 4-27-17)

Sec. 19.5-53. Government property.

(a) If fire rescue assessments are imposed against government property, the city shall provide fire rescue assessment bills by first class mail to the owner of each affected parcel of government property. The bill or accompanying explanatory material shall include:

(1) A brief explanation of the fire rescue assessment;

(2) A description of the unit of measurement used to determine the amount of the fire rescue assessment;

(3) The number of units contained within the parcel;

(4) The total amount of the parcel's fire rescue assessment for the appropriate period;

(5) The location at which payment will be accepted; and

(6) The date on which the fire rescue assessment is due.

(b) Fire rescue assessments imposed against government property shall be due on the same date as all other fire rescue assessments and, if applicable, shall be subject to the same discounts for early payment.

(c) A fire rescue assessment shall become delinquent if it is not paid within 30 days from the date any installment is due. The city shall notify the owner of any government property that is delinquent in payment of its fire rescue assessment within 60 days from the date such assessment was due. Such notice shall state that the city will initiate a mandamus or other appropriate judicial action to compel payment.

(d) All costs, fees and expenses, including reasonable attorney fees and title search expenses, related to any mandamus or other action as described herein shall be included in any judgment or decree rendered therein. All delinquent owners of government property against which a mandamus or other appropriate action is filed shall be liable for an apportioned amount of reasonable costs and expenses incurred by the city, including reasonable attorney fees, in collection of such delinquent fire rescue assessments and any other costs incurred by the city as a result of such delinquent fire rescue assessments and the same shall be collectible as a part of or in addition to, the costs of the action.

(e) As an alternative to the foregoing, a fire rescue assessment imposed against government property may be collected as a surcharge on a utility bill provided to such government property in periodic installments with a remedy of a mandamus action in the event of nonpayment. The city commission may contract for such billing services with any utility, whether or not such utility is owned by the city.

(Ord. No. 11584, § 1, 12-30-97)

Sec. 19.5-54. Appeals.

(a) A hearing officer shall be appointed by the city manager to hear appeals from affected property owners concerning:

(1) The classification, size, or use of the owner's parcel or any other factual matter related to the application of the method of apportionment employed in imposing the fire rescue assessment;

(2) The imposition of an interim assessment; or

(3) The correction of an error or omission.

(b) The aggrieved property owner shall file a written notice of appeal with the city manager's office within 20 days following the effective date of the assessment or action by the city manager under sections 19.5-32 or 19.5-33. The filing of an appeal at any point in time shall not stay the collection of the fire rescue assessment.

(c) An appeal to the hearing officer shall be made within 20 days after the effective date of the fire rescue assessment or action by the city manager under sections 19.5-32 or 19.5-33 by filing a notice of appeal or letter of appeal with the city manager stating therein the basis for such appeal.

(d) No hearing shall be heard by the hearing officer unless the respective appeals have been filed within the time and at the place provided in this chapter.

(e) All decisions of the hearing officer made under this section shall be deemed final.

(f) All such requests for review by the city under this chapter shall be subject to the disclosure requirements set forth in section 2-618 of this Code.

(g) The city manager shall give the appealing party at least ten days' notice of the time and place of such hearing. The notice shall be in a form acceptable to the city attorney. No public or published notice is required.

(h) The aggrieved property owner shall, at his/her own cost, provide supplemental information in advance to the city manager including, but not limited to, relevant data, consulting or expert reports or opinions, or other information to be used or relied upon at the hearing. Failure to timely provide such information shall preclude the use and consideration of same at the hearing and may result in the denial of the appeal.

(i) At the time and place set for the hearing the hearing officer shall give the appealing party a reasonable opportunity to be heard. Parties may present evidence to support their position; however, no economic or technical reports, studies, appraisals or other information, expertise or opinions shall be considered by the hearing officer unless the same shall have been disclosed to the city and filed with the city manager at least ten days prior to that hearing. All exhibits presented to the hearing officer shall become part of the record and shall remain so until the determination of the hearing officer or the expiration of any administrative or judicial appeal period.

(Ord. No. 11584, § 1, 12-30-97; Ord. No. 13676, § 2, 4-27-17)

Chapter 20

FLOOD DAMAGE PREVENTION*

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Sec. 20-17.	Fill prohibition for areas not covered by structures.

*__Editor's note—__Ord. No. 14039, § 2, adopted December 9, 2021, amended chapter 20 in its entirety to read as herein set out. Formerly, chapter 20 pertained to similar subject matter and derived from Ord. No. 11029, §§ 1—16, adopted December 10, 1992; Ord. No. 11077, § 4, adopted July 22, 1993; the Code of 1980, §§ 19.5-1—19.5-16; Ord. No. 12802, § 1, adopted May 11, 2006; Ord. No. 13142, § 9, adopted February 11, 2010; Ord. No. 13574, § 1, adopted November 19, 2015; Ord. No. 13676, § 2, adopted April 27, 2017; Ord. No. 13792, § 1, adopted October 11, 2018, and Ord. No. 13980, § 2, adopted March 25, 2021.

__City Code cross references—__Buildings, ch. 10; environmental preservation, ch. 17; stormwater utility fees and fund, § 18-291 et seq.; landfills and waterfront improvements, ch. 29; subdivision regulations, ch. 55; planning and zoning, ch. 62.

Sec. 20-1. Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Accessory use or structure. A use or structure customarily incidental and subordinate to the principal use or structure and, unless otherwise specifically provided, located on the same premises. "On the same premises" shall be construed as meaning on the same lot or on a contiguous lot in the same ownership. Where a building is attached to the principal building, it shall be considered part thereof, and not an accessory structure.

Addition. An extension or increase in floor area, number of stories, or height of a building or structure.

Base flood elevation (BFE). The flood having a one-percent chance of being equaled or exceeded in a given year. The elevation of surface water resulting from a flood that has a one-percent chance of equaling or exceeding that level in any given year. The BFE is shown on the flood insurance rate map (FIRM) for zones AE, AH, A1-A30, AR, AR/A, AR/AE, AR/A1-A30, AR/AH, AR/AO, V1-V30, and VE.

Basement. That portion of a building having its floor subgrade (below ground level) on all sides.

Breakaway wall. A wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces without causing damage to the elevated portion of the building or the supporting foundation system.

Building. Any structure built for support, shelter, or enclosure for any occupancy or storage.

Building site. The ground area of a property occupied by buildings and other enclosed structures.

Coastal high hazard area. The area within the area of special flood hazard extending from offshore to the inland limit of a primary dune along an open coast and any other area that is subject to high-velocity wave action from storms or seismic sources and shown on a flood insurance rate map (FIRM) or other flood hazard map as velocity Zone V, VO, VE, or V1-30.

Crown of road (centerline). A line running parallel with the highway right-of-way which is one-half the distance between the extreme edges of the official right-of-way width as shown on a map approved by the department of resilience and public works.

Development. Any manmade change to improved or unimproved real estate, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavating, drilling operations, or permanent storage of materials or equipment.

Drainage systems. The surface and subsurface system for the removal of water from or control of water on the land, including both the natural elements of streams, marshes, swales and ponds, whether of an intermittent or continuous nature, and man-made elements which include culverts, drains, ditches, channels, piping, drainage wells and storage facilities. Any system which collects, conveys, channels, holds, inhibits, diverts or treats stormwater from a given area either by drains, grading or other artificial or natural means thru the use of a drainage structure, including but not limited to a culverts, storm drains, stormwater retention or detention ponds with side slopes that must be stabilized by artificial means, French drains, or exfiltration trench/systems, which convey stormwater into the underlying soil.

Elevated building. A non-basement building built to have the lowest floor elevated above the ground level by means of fill, solid foundation, perimeter walls, pilings, columns (posts and piers), shear walls, or breakaway walls.

Existing construction. Any structure for which the "start of construction" commenced before September 29, 1972.

Existing manufactured home parks and subdivisions. A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the

installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before September 29, 1972.

Flood or *flooding*. A general and temporary condition of partial or complete inundation of normally dry land areas from:

(1) The overflow of inland or tidal waters.

(2) The unusual and rapid accumulation or runoff of surface water from any source.

Flood damage-resistant materials. Any construction material capable of withstanding direct and prolonged contact with floodwaters without sustaining any damage that requires more than cosmetic repair.

Flood hazard area. The greater of the following two areas:

(1) The area within a flood plain subject to a one-percent or greater chance of flooding in any year, or

(2) The area designated as a flood hazard area on a community's flood hazard map or otherwise legally designated.

Flood insurance rate map (FIRM). An official map of a community on which the Federal Emergency Management Agency has delineated both the areas of special flood hazard and the risk premium zones applicable to the community.

Flood insurance study. The official report provided by the Federal Emergency Management Agency containing the flood insurance rate map (FIRM), the flood boundary and floodway map (FBFM), the water surface elevation of the base flood, and supporting technical data.

Floodproofing. Structural and nonstructural additions, changes, or adjustments (other than elevating) to nonresidential structures, and utilities which reduce or eliminate flood damage to water supply and sanitary sewage facilities, structures and contents of buildings. Floodproofing includes, by way of illustration and not limitation, the following measures:

(1) Anchorage to resist flotation and lateral movement.

(2) Installation of watertight doors, bulkheads, and shutters, or similar methods of construction to protect against winds, wave action, or floodwaters.

(3) Reinforcement of walls to resist water pressures.

(4) Use of paints, membranes, or mortars to reduce seepage of water through walls.

(5) Addition of mass or weight to structures to resist flotation.

(6) Installation of sump pumps operating at permitted specification to remove water accumulated due to any passage of vapor and seepage of water during the flooding event.

(7) Construction of water supply and wastewater treatment and disposal systems to prevent the entrance or infiltration of floodwaters.

(8) Pumping facilities or comparable practices for subsurface drainage systems for buildings to relieve external foundation wall and basement flood pressures.

(9) Construction to resist rupture or collapse caused by water pressure or flooding debris.

(10) Installation of valves or controls of sanitary and storm drains which will permit the drain to be closed to prevent backup of sewage and stormwaters into the buildings or structures. Gravity draining of basements may be eliminated by mechanical devices.

(11) Location of all electrical equipment, circuits and installed electrical appliances in a manner which will assure they are not subject to flooding and to provide protection from inundation by the regulatory flood.

(12) Location of all main electrical and mechanical equipment, structures, storage facilities for chemicals, explosives, buoyant materials, flammable liquids or other toxic materials which could be hazardous to the public health, safety, and welfare in a manner which will

assure that the facilities are situated to or above the base flood elevation, plus one foot of freeboard.

Freeboard. An additional amount of height above the base flood elevation used as a factor of safety in determining the level at which a structure's lowest floor must be elevated or floodproofed.

Functionally dependent facility. A facility which cannot be used for its intended purpose unless it is located or carried out in close proximity to water. The term only includes a docking or port facility necessary for the loading and unloading of cargo or passengers, shipbuilding, or ship repair. The term does not include long-term storage, manufacture, sales, or service facilities.

Highest adjacent grade. The highest finished grade elevation of the ground surface next to the proposed walls of a structure. For purposes of the National Flood Insurance Program (NFIP) this term shall mean the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

Historic structure. Any structure that is:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the department of the interior) or preliminarily determined by the secretary of the interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the secretary of the interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the secretary to qualify as a registered historic district;

(3) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the secretary of the interior; or

(4) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:

a. By an approved state program as determined by the secretary of the interior, or

b. Directly by the secretary of the interior in states without approved programs.

Lowest floor. The lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor; provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirements of this chapter.

Mangrove stand. An assemblage of mangrove trees which are mostly low trees noted for a copious development of interlacing adventitious roots above the ground and which contain one or more of the following species: black mangrove (Avicennia germinans); red mangrove (Rhizophora mangle); white mangrove (Laguncularia racemosa); and buttonwood (Conocarpus erectus).

Manufactured home. A structure, transportable in one or more sections, which is built on a permanent chassis and designed to be used with or without a permanent foundation when connected to the required utilities. The term "manufactured home" does not include a "recreational vehicle."

Manufactured home park or subdivision. A parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

Market value. The value of buildings and structures, excluding the land and other improvements on the parcel. Market value is the actual cash value (like-kind replacement cost depreciated for age, wear and tear, neglect, and quality of construction) determined by a qualified independent appraiser or tax assessment value adjusted to approximate market value by a factor provided by the Miami-Dade County Property Appraiser.

Miami-Dade County flood criteria maps. The official maps of Miami-Dade County showing the required minimum finished grade elevation of the ground surface within a development site as

adopted by the Board of County Commissioners and recorded in the official records of Miami-Dade County, as amended from time to time.

Minimum finished grade. The elevations established in the Miami-Dade County flood criteria maps at a specific development site or the crown of an existing adjacent road, whichever is higher.

NAVD 88. The North American Vertical Datum of 1988 is the vertical control datum established in 1991 by the minimum-constraint adjustment of the Canadian-Mexican-United States leveling observations which was affirmed in 1993 as the official vertical datum in the National Spatial Reference System ("NSRS") for the Conterminous United States and Alaska.

New construction. Any structure for which the "start of new construction" commenced on or after September 29, 1972.

Nonspecial flood hazard area (NSFHA). Area that is in a moderate-to-low risk flood zone (Zones B, C, X). A NSFHA is not in any immediate danger from flooding caused by overflowing rivers or hard rains.

Recreational vehicle. A vehicle which is:

(1) Built on a single chassis;

(2) Four hundred square feet or less when measured at the largest horizontal projection;

(3) Designed to be self-propelled or permanently towable by a light-duty truck; and

(4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Residential or *residence.* Any lot, plot, parcel, tract, area, piece of land or building used for family dwelling purposes or intended to be so used.

Sand dunes. Naturally occurring accumulations of sand in ridges or mounds landward of the beach.

Special flood hazard areas. An area in the floodplain subject to a one percent or greater chance of flooding in any given year. Special flood hazard areas are shown on FIRMs as Zone A, AO, A1-A30, AE, A99, AH, V1-V30, VE or V.

Start of construction. The date of permit issuance for new construction and substantial improvements to existing structures, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement commences within 180 days after the date of issuance. The actual start of construction means the first placement of permanent construction of a building (including a manufactured home) on a site, such as the pouring of a slab or footings, installation of pilings, or construction of columns. Permanent construction does not include land preparation (such as clearing, excavation, grading, or filling); the installation of streets or walkways; excavation for a basement, footings, piers, or foundations; or the erection of temporary forms or the installation of accessory buildings such as garages or sheds not occupied as dwelling units or not part of the main building. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure. A walled and roofed building that is principally aboveground, a manufactured home, a gas or liquid storage tank, or other manmade facilities or infrastructures.

Substantial damage. Damage of any origin sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred.

Substantial improvement. Any combination of repair, reconstruction, rehabilitation, alteration, addition or other improvement of a building or structure, the cumulative cost of which equals or exceeds, over a two-year period, 50 percent of the market value of the structure before the improvement or repair is started. However, the accumulation period for a substantial improvement within

a coastal high hazard area shall be five years. If the structure has sustained substantial damage, any repairs are considered substantial Improvement regardless of the actual repair work performed. The term does not, however, include either:

(1) Any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions, or

(2) Any alteration of a "historic structure," provided that the alteration will not preclude the structure's continued designation as a "historic structure."

Variance. A grant of relief from the requirements of this chapter which permits construction in a manner otherwise prohibited by this chapter where specific enforcement would result in unnecessary hardship.
(Ord. No. 14039, § 2, 12-9-21; Ord. No. 14295, § 2, 7-11-24)

Sec. 20-2. Intent of chapter.

The areas of the City of Miami, Florida, are subject to flooding resulting in danger to life, loss of property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety and general welfare. Congress established the National Flood Insurance Program with the passage of the National Flood Insurance Act of 1968. The National Flood Insurance Program is a federal program enabling property owners to purchase insurance protection against losses from flooding. This chapter is adopted to ensure that the residents of the city qualify for the sale of federally assisted flood insurance under the National Flood Insurance Program and to comply with federally imposed requirements for participation in said program. The purposes of this chapter and the flood load and flood resistant construction requirements of the Florida Building Code are to establish minimum requirements to safeguard the public health, safety, and general welfare and to minimize public and private losses due to flooding through regulation of development in flood hazard areas to:

(1) Minimize unnecessary disruption of commerce, access, and public service during times of flooding;

(2) Require the use of appropriate construction practices in order to prevent or minimize future flood damage;

(3) Manage filling, grading, dredging, mining, paving, excavation, drilling operations, storage of equipment or materials, and other development which may increase flood damage or erosion potential;

(4) Manage the alteration of flood hazard areas, watercourses, and shorelines to minimize the impact of development on the natural and beneficial functions of the floodplain;

(5) Minimize damage to public and private facilities and utilities;

(6) Help maintain a stable tax base by providing for the sound use and development of flood hazard areas;

(7) Minimize the need for future expenditure of public funds for flood control projects and response to and recovery from flood events; and

(8) Meet the requirements of the National Flood Insurance Program for community participation as set forth in Title 44 Code of Federal Regulations, Section 59.22.
(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-3. Development in special flood hazard areas and nonspecial flood hazard areas.

For all development within special flood hazard areas and nonspecial flood hazard areas, the building official or his/her designee shall:

(1) Require permits for all proposed construction, development or other improvements within said areas; and

(2) Review permit applications for construction, development or other improvements within said areas to determine that the proposed activities:

a. Use flood damage-resistant materials and have utility equipment which are resistant to flood damage; and

b. Have drainage that demonstrate retention of rainwater within surrounding property lines. The drainage calculations shall be based on a 100-year storm, per design standards of the Miami-Dade County Public Works Manual - Part 2 - Design and Construction - WC 1.1 Rainfall Intensities - 5 min. to 24 hrs. (Rainfall intensities) from the Miami-Dade County Public Works Manual with concentration times described below:

1. For residential use, with fewer than four dwelling units, the drainage calculation must be based on a eight-hour time of concentration.

2. For residential use, with four or more dwelling units, and all other uses, the drainage calculation must be based on a one-half-hour time of concentration.

(3) Review permit applications for new construction or substantial improvements within said areas to assure that the proposed construction:

a. Is protected against flood damage;

b. Is designed (or modified) and anchored to prevent flotation, collapse or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy;

c. Uses flood damage-resistant materials and has utility equipment which are resistant to flood damage, and also uses construction methods and practices which will minimize flood damage;

d. Provides in the plans part of the permit application the appropriate floodplain information including Miami-Dade County flood criteria, crown of road information, flood hazard area and base flood elevation;

e. Electrical, heating, ventilation, plumbing, air conditioning equipment, and other service facilities are designed and/or located to prevent water entry or accumulation; and

f. In nonspecial flood hazard areas, the basement:

1. Shall be usable solely for storage, parking, or access;

2. Shall not contain either main electrical or mechanical equipment; and

3. Require installation of sump pumps to collect and discharge the flow rate of the basement area multiplied by the rainfall intensity per hour required for the structure.

(4) Review subdivision proposals and other proposed new developments to assure that:

a. All such proposals minimize flood damage;

b. All public utilities and facilities, such as sewer, gas, electrical, and water systems are constructed to minimize or eliminate flood damage.

(5) Require new and replacement water supply systems and treatment plants and sanitary sewage plants and systems to be designed to minimize or eliminate infiltration of floodwaters into the systems and plants, minimize discharges from sanitary systems into floodwaters, and require on-site wastewater disposal

systems to be located so as to avoid impairment of them or contamination from them during flooding.

(6) Require a lowest floor elevation certificate or floodproofing certification, after the lowest floor is completed, and the as-built before final inspection, or in instances where the structure is subject to the regulations applicable to coastal high hazard areas, after placement of the horizontal structural members of the lowest floor. Upon placement of the lowest floor, or floodproofing by whatever construction means, or upon placement of the horizontal structural members of the lowest floor, whichever is applicable, it shall be the duty of the permit holder to submit to the city a certification of the lowest floor, floodproofed elevation, or the elevation of the lowest horizontal structural members of the lowest floor, whichever is applicable, as built and as measured in reference to NAVD 88. Said certification shall be prepared by or under the direct supervision of a registered land surveyor or professional engineer and certified by same. When floodproofing is utilized for a particular building, said certification shall be prepared by or under the direct supervision of a professional engineer or architect and certified by same. Any work undertaken prior to submission of the certification shall be at the permit holder's risk. The city shall review the floor elevation survey data submitted. Deficiencies detected by such review shall be corrected by the permit holder immediately and prior to further progressive work being permitted to proceed. Failure to submit the survey or failure to make said corrections required hereby, shall be cause to issue a stop work order for the project.

(7) Require that all new subdivision proposals and other proposed developments include within such proposals base flood elevation data according to the city's flood insurance rate map (FIRM) information, and existing grade and crown of adjacent road elevation information according to Miami-Dade County flood criteria information.

(8) Obtain, review and utilize any base flood elevation and floodway data available from federal, state, or other sources when base flood elevation data are not shown on the FIRM.

(9) Review proposed development to assure that all necessary permits have been received from those governmental agencies from which approval is required by federal or state law, including Section 404 of the Federal Water Pollution Control Act amendments of 1972, 404 USC 1334.

(10) In coastal high hazard areas, review plans for adequacy of breakaway walls in accordance with subsections 20-5(e), (f) and (g) herein.

(11) For the purpose of this section, "base elevation" shall be defined as the elevation established by the Miami-Dade County flood criteria map, or the elevation of the crown of road or street abutting such building site, or existing and proposed grade elevations within the lot(s), whichever is higher. In cases where the base elevation fronting the land vary greater than one foot along the frontage of the lot(s), then an alternative engineered solution for flood protection may be presented to the building official or his/her designee in consultation with the director of resilience and public works.

a. Unless otherwise required by sections 20-4 or 20-5, for uses other than residential requiring a floor, the floor elevation shall be a minimum of four inches above the base elevation, including the entrance of a basement. For all areas that serve a residential use, including, mail rooms, lobbies and entrances to a basement, the floor elevation shall be a minimum of eight inches above the base elevation.

b. The provisions of this subsection shall not apply to off-street parking facilities constructed underground and other similar types of below grade areas within a building which are not lowest floor and contain neither electrical nor mechanical equipment. All such facilities constructed below grade shall be designed and constructed and contain essential equipment, if necessary, to prevent infiltration and accumulation of water or to provide for immediate and continuous elimination of water. A Florida-registered engineer or architect shall submit data and a floodproofing certificate to assure that the design complies with all guidelines of subsection 20-5(b) herein.

c. If in the review of a permit application it is determined that in the application of the provisions of this section the building applicant would be required to provide flood protection in excess of the requirements of this chapter, then it shall be the responsibility and authority of the building official or his/her designee to review such plans and may grant a waiver of the requirements of this section to provide flood protection which is no less than the flood protection required by this chapter based upon good engineering practice. Said decision shall be subject to appeal in accordance with subsection 20-12(i) of this chapter.

(12) Maintain, for public inspection, in the planning, building and zoning office all records pertaining to the provisions of this chapter.

(13) Notify adjacent communities and the Florida Division of Emergency Management prior to the alteration or relocation of a waterway.

(14) Assure that maintenance is provided within the altered or relocated portion of said watercourse so that the flood-carrying capacity is not diminished.

(15) Drainage systems as defined herein shall require re-certification every 120 months from the date of final inspection as set forth herein. The property owner shall be notified of the required re-certification 60 days in advance of their due date. Properties with three dwelling units or fewer are exempt from this section. Residential properties with four dwelling units or more, or where the drainage systems are comprised of five or more drainage structures on the property shall require that the drainage re-certification be completed by a registered professional engineer.

a. All relevant information on the existing drainage system, including, but not limited to, the approved as-built drawings and a detailed description of the existing drainage, including the intent of the system.

b. A site inspection of the entire drainage system to determine what, if any, maintenance and repair work is required in order to re-certify the drainage system in accordance with the following items:

1. Catch basin grates, manhole covers and outfalls are to be free of obstructions.

2. Probe catch basins for mud, debris, silt, etc. (depth of material in a pipe shall not exceed five percent of the diameter of the pipe and the depth of material in a catch basin sump shall not exceed five percent of the distance from the bottom of the structure to the lowest pipe invert).

3. Check headwalls for deterioration and any signs of erosion.

4. Check for broken grates.

5. Check weirs and baffles installation (12 inches minimum sump clearance from bottom of structure to bottom of baffle, if applicable).

6. Check for areas of sunken or deteriorated pavement which may be a sign of a drainage problem.
7. Check for modifications to swales and retention areas.
8. Check for proper maintenance of swale and retention areas.
9. Check for alterations to original design and construction of drainage system.
10. Check for alterations to original design and construction of drainage system.
11. Verify that no vegetation exists over drainage system.

c. All pumps shall be inspected by a registered professional engineer irrespective of property type. All drywells, including injection wells, shall be inspected by a certified well driller irrespective of property type. Pressurized system with wells and/or pumps shall be certified that it continues to function as designed and constructed. A gravity type drainage system, such as exfiltration systems shall require re-certification as per this section 1. through 11. These systems shall be required to function as designed, constructed and/or permitted. A detailed report of inspection and proper function from a registered professional engineer or certified well driller (as applicable) shall be required for re-certification.

d. Completion of all necessary required maintenance and/or repair work as denoted by the registered professional engineer as performed by a licensed contractor and verified by the certifying engineer.

e. All copies of plans and drawings, together with supporting calculations and documentation submitted must be signed, sealed, and dated by a registered professional, as required by F.S. chs. 471, 472, 481 or 492, as applicable, when the design of the system requires the services of a registered professional.

f. A maintenance log, if not already kept by the property owner, will be required for any future drainage re-certifications. The maintenance log shall include records related to the operation of the drainage system, including but not limited, to an estimate of the stormwater volume passing through the system in a year, dates of inspection and copies of any associated documents that evidence inspection, and dates of repairs and/or replacements of parts with type of maintenance and parts replaced, if any.

g. Existing drainage shall be inspected within 24 months of the adoption of this ordinance

h. Should property owner be unable to meet the requirements set forth in this section then an alternative engineered solution for flood protection may be presented to the building official or his/her designee in consultation with the director of resilience and public works.

i. Drainage systems subject to the requirements in subsection 20-3(15) of this chapter where the owner fails to timely respond to the notice of required recertification or fails to make all required repairs or modifications found to be necessary by the deadline specified in the Code or any written extension granted by the building official, or designee, shall result in enforcement as provided in chapter 2, article X of the City Code in addition to any other enforcement provided in section 20-14.

(Ord. No. 14039, § 2, 12-9-21; Ord. No. 14295, § 2, 7-11-24)

Sec. 20-4. Development within special flood hazard areas.

(a) No new construction or substantial improvement of any residential structure shall be permitted in special flood hazard areas, and no permit referred to in section 20-3 of this chapter shall be issued therefor, unless said new construction or substantial improvement has the lowest floor (including basement) elevated to or above the level of the base flood elevation (100-year flood) plus one foot of freeboard

(b) No new construction or substantial improvement of any nonresidential structure shall be permitted in special flood hazard areas, and no building permit referred to in section 20-3 of this chapter shall be issued therefor, unless said new construction or substantial improvement has the lowest floor (including basement) elevated to or above the level of the base flood elevation (100-year flood) plus one foot of freeboard, or if the lowest permitted floor level of such nonresidential structure (including basement) is below the base flood elevation level then such nonresidential structure together with attendant utility and sanitary facilities shall be designed with dry floodproofing to or above the level of the base flood elevation (100-year flood) plus one foot of freeboard; provided that the lowest floor of such nonresidential structure is in compliance with subsection 20-3(11) (excluding basement). Where floodproofing is utilized for a particular structure, a registered professional engineer or architect shall certify that the floodproofing methods are adequate to withstand the flood depth, pressures, velocities, impact and uplift forces associated with the base flood elevation, and a record of such certificates indicating the specific elevation as measured in reference to NAVD 88 to which such structure is floodproofed shall be maintained with the building official or his/her designee.

(1) Direct access to the common areas for dwelling units or dwelling units shall be elevated to above the level of the base flood elevation (100-year flood) plus one foot of freeboard and dry flood proofing shall be restricted to independent commercial areas.

(2) Designs shall not prevent access to the common areas of dwelling units, and designs for dry floodproofing shall require measures or system components that do not require human intervention or action before the onset of flooding to be effective.

(3) The lowest point of a basement entrance shall be at a minimum above the base elevation or the level of the base flood elevation (100-year flood), whichever is higher plus one foot of freeboard.

(c) All electrical, heating, air conditioning equipment, ventilation, plumbing, and other service facilities, including duct work, shall be elevated to or above the base flood elevation plus one foot.

(d) All manufactured homes placed, replaced, or substantially improved shall be elevated so that:

(1) The bottom of the frame of the manufactured home is elevated to or above the base flood elevation plus one foot of freeboard;

(2) The manufactured home chassis is supported by reinforced piers or other foundation elements of at least an equivalent strength; and

(3) The manufactured home shall be securely anchored to the adequately anchored foundation system to resist flotation, collapse and lateral movement.

(e) All recreational vehicles placed on sites shall meet the requirements of subsection 20-5(k) herein.

(f) Elevated buildings. New construction and substantial improvements that include fully enclosed areas formed by foundations and other exterior walls below the lowest floor shall have the enclosed areas designed only for parking, limited storage, and building access and the walls shall have openings to allow for the entry and exit of floodwaters to automatically equalize hydrostatic flood forces on exterior walls. Designs

for complying with this requirement must either be certified by a professional engineer or architect or meet the following minimum criteria:

(1) Provide a minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding;

(2) The bottom of all openings shall be no higher than one foot above grade;

(3) Openings may be equipped with screens, louvers, valves or other coverings or devices provided they permit the automatic flow of floodwaters in both directions; and

(4) Access to the enclosed area shall be the minimum necessary to allow for parking of vehicles (garage door) or limited storage of maintenance equipment used in connection with the premises (standard exterior door) or entry to the living area (stairway or elevator).

(Ord. No. 14039, § 2, 12-9-21; Ord. No. 14295, § 2, 7-11-24)

Sec. 20-5. Development within coastal high hazard areas.

(a) Existing uses located on land in a coastal high hazard area which is below the elevation of the base flood shall not be expanded and no building permit referred to in section 20-3 of this chapter may be issued therefor unless the provisions of subsection (b) hereof are complied with.

(b) No new construction or substantial improvement shall be undertaken, and no permit referred to in section 20-3 of this chapter may be issued therefor upon any lands within coastal high hazard areas which are below the level of the base flood elevation unless said new construction or substantial improvement:

(1) Is located landward of the reach of the mean high tide;

(2) Is securely anchored on pilings or columns and elevated so that the bottom of the lowest horizontal supporting member (excluding pilings or columns) is elevated to or above the base flood elevation level plus one foot of freeboard, with all space below the lowest supporting member open so as not to impede the flow of water; and

(3) All pile and column foundations and structures attached thereto shall be anchored to resist flotation, collapse and lateral movement due to the effects of wind and water loads acting simultaneously on all building components.

(c) There shall be no fill used as structural support. Noncompacted fill may be used around the perimeter of a building for landscaping or aesthetic purposes provided the fill will wash out from storm surge (thereby rendering the building free of obstruction) prior to generating excessive loading forces, ramping effects, or wave deflection. The building official or his/her designee shall approve design plans for landscaping or aesthetic fill only after the applicant has provided an analysis by an engineer, architect, or soil scientist, which demonstrates that the following factors have been fully considered:

(1) Particle composition of fill material does not have a tendency toward excessive natural compaction;

(2) Volume and distribution of fill will not cause wave deflection to adjacent properties; and

(3) Slope of fill will not cause wave runup or ramping.

(d) No manmade alteration of sand dunes or mangrove stands which will increase potential flood damage shall be permitted.

(e) Latticework, mesh screening, or decorative screening shall be allowed below the lowest floor provided it is not part of the structural support of the building and is designed to break away under abnormally high tides or wave action without damage to the structural integrity of the building on which it is to be used and provided the following design specification is met:

For the purposes of this section, a non-load bearing wall is a breakaway wall and shall have a design safe loading resistance of not less than ten and no more than 20 pounds per square foot. Use of breakaway walls which

exceed a design safe loading resistance of 20 pounds per square foot (either by design or when so required by local or state codes) may be permitted only if a registered professional engineer or architect certifies that the designs proposed meet the following conditions:

(1) Breakaway wall collapse shall result from a water load less than that which would occur during the base flood elevation; and

(2) The elevated portion of the building and supporting foundation system shall not be subject to collapse, displacement, or other structural damage due to the effects of wind and water loads acting simultaneously on all building components (structural and nonstructural). Water loading values used shall be those associated with the base flood elevation. Wind loading values used shall be those required by applicable state or local building standards.

(f) If aesthetic lattice-work screening, mesh screening, decorative screening, or concrete block is utilized, such enclosed space shall not be designed for human habitation but shall be designed to be used only for parking of vehicles, building access, or limited storage of maintenance equipment used in connection with the premises.

(g) Prior to construction, plans for any structures that will have latticework or decorative screening or breakaway walls shall be submitted to the building official or his/her designee for approval.

(h) Any alteration, repair, reconstruction or improvement to a structure shall not enclose the space below the lowest floor except with latticework, decorative screening, or concrete in accordance with the definition of breakaway walls.

(i) A registered professional engineer or architect shall certify that the design, specifications and plans for construction are in compliance with the provisions contained in this section.

(j) No manufactured homes, except in existing manufactured home parks and subdivisions and provided all anchoring and elevation standards of subsections (b)(2) and (i) herein are met, shall be placed within this zone.

(k) All recreational vehicles placed within this area must either:

(1) Be fully licensed and ready for highway use;

(2) The recreational vehicle shall meet all the requirements for new construction, including anchoring and elevation requirements of this chapter; or

(3) Be on the site for fewer than 180 consecutive days. A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick-disconnect-type utilities and security devices and has no permanently attached structures.

(Ord. No. 14039, § 2, 12-9-21; Ord. No. 14295, § 2, 7-11-24)

Sec. 20-6. Accessory structures.

Accessory structures are permitted below the base flood elevation provided the accessory structures are used only for parking or storage and:

(1) If located in areas of special flood hazard (Zone A/AE) other than coastal high hazard areas, are one-story and not larger than 600 square feet and have flood openings in accordance with Section R322.2 of the Florida Building Code, Residential;

(2) If located in coastal high hazard areas (Zone V/VE), are not located below elevated buildings and are not larger than 100 square feet;

(3) Are anchored to resist flotation, collapse, or lateral movement resulting from flood loads;

(4) Have flood damage-resistant materials used below the base flood elevation plus one foot; and

(5) Have mechanical, plumbing and electrical systems, including plumbing fixtures, elevated to or above the base flood elevation plus one foot.

(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-7. Basis for establishing areas of special flood hazard.

The areas of special flood hazard identified by the Federal Emergency Management Agency in its flood insurance study for Miami-Dade County, Florida, and incorporated areas dated September 11, 2009, with accompanying flood insurance rate maps and other supporting data, and any amendment and revision thereto, are adopted by reference and declared to be part of this chapter. The study and maps shall be kept on file, available to the public, in the office of the building official.

(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-8. Enforcement.

The building official or his/her designee shall administer and enforce the provisions of this chapter within the corporate limits of the City of Miami, Florida and as provided for in section 20-14.

(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-9. Rules for interpreting area boundaries.

The boundaries of the flood hazard areas shown on the official flood insurance rate maps may be determined by scaling distances. Required interpretations of those maps for precise locations of said boundaries shall be made by the building official. Said interpretations shall be subject to review in accordance with the provisions of subsection 20-12(i) of this chapter.

(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-10. Effect of provisions on ordinances, building code, other regulations.

This chapter shall supersede any conflicting city ordinance, building code, or any other regulation to the extent that this chapter imposes more stringent requirements for the use or development of any lands or structures within areas of special flood hazard. It is not intended to repeal, modify, or change any ordinance, building code or other regulation except as herein stated.

(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-11. Interpretation.

The provisions of this chapter shall be liberally construed in favor of the city in order to effectuate the purposes herein stated.

(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-12. Variances and appeals.

(a) Authority of the variance review committee. The variance review committee shall be comprised of the building official, and the directors of resilience and public works, building, planning, and zoning. The variance review committee, acting by majority vote, and pursuant to this section, shall have the authority and duty to consider and act upon applications for a variance from these regulations for properties located within the corporate limits of the City of Miami, Florida. The variance review committee is hereby advised that in granting any variances hereunder, said official shall consider the purposes of the National Flood Insurance Program as specified in 44 CFR 60 et seq. Furthermore, the variance review committee shall consider the fact that an annual report on variances granted shall be submitted to the National Flood Insurance Administration, which report is the basis for continued availability of flood insurance to the inhabitants of the city, and therefore variances shall be granted with extreme caution.

(b) The variance review committee may grant variances from the terms of this chapter as will not be contrary to the public interest, where owing to special conditions, a literal enforcement of the provisions hereof will result in exceptional hardship, and so the spirit of the regulations shall be observed and substantial justice done; provided, that the variance will be in harmony with the general purpose and intent of this chapter and that the same is the minimum variance that will permit the reasonable use of the premises. Upon receipt of all necessary information including a staff report, the vari-

ance review committee shall review the information and render their decision, either approving, modifying or denying the request. The decision and supporting documentation shall be reviewed by the director of the building department who shall document concurrence as part of the record. A copy of said decision shall be published via the city's website at www.miamigov.com. All approvals or modifications shall not be effective until ten days after the variance review committee decision is published on the city's website at www.miamigov.com. A courtesy notice containing the decision of the variance review committee may be mailed to adjacent and abutting property owners of record, their tenants, or their agents, that are duly noted on the application. The failure to mail or receive such courtesy notice shall not affect any action or proceedings taken hereunder.

(c) Designated historic buildings. A variance is authorized to be issued for repair, improvement, or rehabilitation of a historic building that is determined eligible for the exception to the flood-resistant construction requirements of the Florida Building Code, Existing Building, Chapter 12 Historic Buildings, upon a determination that the proposed repair, improvement, or rehabilitation will not preclude the building's continued designation as a historic building and the variance is the minimum necessary to preserve the historic character and design of the building. If the proposed work precludes the building's continued designation as a historic building, a variance shall not be granted and the building and any repair, improvement, and rehabilitation shall be subject to the requirements of the Florida Building Code.

(d) In passing upon all such applications except those pursuant to subsection (c) herein, the variance review committee shall consider all technical evaluations, all relevant factors, all standards specified in other sections of this chapter, and:

(1) The danger that material may be swept onto other lands to the injury of others;

(2) The danger to life and property due to flooding or erosion damage;

(3) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(4) The importance of the services provided by the proposed facility to the community;

(5) The necessity of the facility to be located on the waterfront;

(6) The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use;

(7) The compatibility of the proposed use with existing and anticipated development;

(8) The relationship of the proposed use to the comprehensive plan and floodplain management program for that area;

(9) The safety of access to the property in times of flood for ordinary and emergency vehicles;

(10) The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site; and

(11) The costs of providing governmental services during and after flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical and water systems, and streets and bridges.

(e) Upon consideration of the factors listed above, and the purposes of this chapter, the variance review committee may attach such conditions, limitations, and restrictions to any variance as the variance review committee deems necessary to further the purposes of this chapter.

(f) Criteria for variances.

(1) Variances shall only be granted upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief; and in the instance of a historical building, a determination

that the variance is the minimum necessary in order not to destroy the historic character and design of the building.

(2) Variances shall only be granted upon (i) a showing of good and sufficient cause, (ii) a determination that failure to grant the variance would result in exceptional hardship, and (iii) a determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisance, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

(g) Any applicant to whom a variance is granted shall be given written notice specifying:

(1) That the issuance of a variance to construct a structure below the base flood elevation level will result in increased premium rates for flood insurance up to amounts as big as $25.00 for $100.00 of insurance coverage, and

(2) Such construction below the base flood elevation level increases risks to life and property.

(h) The variance review committee shall maintain the records of all variance actions, including justification for their issuance, and report such variances to the Federal Emergency Management Agency.

(i) Review and appeal. Any person aggrieved by any decision of the variance review committee may appeal to the city manager or their designees within 15 days after the date of the decision complained of, a written notice of appeal which shall set forth concisely the decision appealed from and the reasons or grounds for appeal. The building director is required to schedule the appeal for hearing at the earliest possible date, and cause notice thereof to be served upon the appellant and the variance review committee. The appellant shall have the right to present their position to the city manager or their designees which shall hear and consider all facts material to the appeal. The city manager or their designees pursuant to the criteria set forth in subsection (f), shall either affirm the variance review committee refusal to grant a variance or reverse the refusal and grant the variance. The decision of the city manager or their designees which shall be rendered within 15 days after conclusion of the hearing, shall constitute final administrative review. Any person aggrieved by any decision of the review committee on an appeal shall be entitled to judicial review in accordance with the Florida Rules of Appellate Procedure.

(Ord. No. 14039, § 2, 12-9-21; Ord. No. 14295, § 2, 7-11-24)

Sec. 20-13. Warning and disclaimer of liability.

The degree of flood protection required herein is considered reasonable for regulatory purposes and is based on scientific studies. Larger floods may occur. This chapter shall not be deemed to imply that the areas inside or outside designated flood hazard areas will be entirely free from flooding or flood damages, and shall not create liability on the part of the city or any officer or employee thereof for any flood damages that result from reliance on this chapter or any administrative decision lawfully made thereunder.

(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-14. Penalties for violation.

(a) Violations of the provisions of this chapter or failure to comply with any requirements hereunder (including violations of conditions, restrictions, or limitations established in connection with any variances) shall constitute an offense punishable as provided in section 1-13. Each day such violation continues shall be considered as a separate offense.

(b) Notwithstanding the provisions of subsection (a) above, the building official or his/her designee may secure enforcement hereof by any legal action necessary, including but not limited to chapter 2, article X of the City Code, application to any court for injunctive relief, revocation of any permit issued hereunder or other appropriate means allowed by law.

(c) Violation of this chapter may result in suspension or revocation of certificate of occupancy. (Ord. No. 14039, § 2, 12-9-21; Ord. No. 14295, § 2, 7-11-24)

Sec. 20-15. Reserved.

Sec. 20-16. Schedule of fees.

(a) *Application for waiver from subsection 20-3(11)(a).*

(1)	Residential.	$210.00
	Each additional structure . .	26.25
(2)	Commercial	394.00
	Each additional structure . .	26.25

(b) *Application filing fee for variance from sections 20-4 and 20-5.*

(1)	Single-family residential (per house)	$420.00
(2)	Commercial, industrial or other (per building).	840.00

(c) *Appeal to decision of the building official.*

(1)	Residential (per house)	$473.00
(2)	Commercial (per building) .	840.00

(d) *Application fees for variances (after the fact).* Application fees for variances (after the fact) shall be assessed at double the amount indicated above.
(Ord. No. 14039, § 2, 12-9-21)

Sec. 20-17. Fill prohibition for areas not covered by structures.

With the exception of any legally permitted building or accessory structure, no other portion of a lot, as defined by the Miami 21 Code, the zoning ordinance of the City of Miami, Florida, as amended, that is below the crown of road or Miami-Dade County flood criteria maps, whichever is lower, may be elevated or filled so as to obliterate the natural contour of the lot. This section shall not apply to any work necessary to provide reasonable vehicular access to the lot, existing grade elevations, below 6.00' NAVD 88, or for any filling required immediately adjacent and in connection with construction or reconstruction of a seawall. Elevated or filled lots are required to meet the following requirements:

(1) Be enclosed by a perimeter retaining wall, minimum elevated 12 inches above highest existing and proposed grade elevations.

(2) Provide a drainage calculation that demonstrates retention of rainwater within surrounding property lines based on 100-year storm, 20 minutes time of concentration, per design standards - Miami Dade County - Public Works Manual - Part 2 - Design and Construction - WC 1.1 Rainfall Intensities—5 min. to 24 hrs.

(Ord. No. 14039, § 2, 12-9-21; Ord. No. 14295, § 2, 7-11-24)

Chapter 21

RESERVED

Chapter 22

GARBAGE AND OTHER SOLID WASTE*

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Sec. 22-17. Private disposal of waste.
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Secs. 22-24—22-45. Reserved.

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Sec. 22-46. Engaging in business of solid waste collection and disposal; issuance of franchise agreement to private solid waste collectors.
Sec. 22-47. Application for franchise.

***Charter references—**Authority of city to collect and dispose of garbage, etc., § 3(o); nuisances generally, § 3(p).

City Code cross references—General services administration department, § 2-326 et seq.; throwing or depositing substances, etc., within city stadiums, parks and adjacent grounds, § 38-17; disposal of trash in city parks, § 38-63; control of marine pollution, § 50-96 et seq.; disposal of garbage, waste and refuse into marinas or yacht basins, § 50-237.

State law reference—State sanitary code, F.S. § 403.413.

Sec. 22-48. Denial of application.
Sec. 22-49. Appeal from the recommended denial of franchise; appeal from revocation of franchise.
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Sec. 22-52. Identification of equipment.
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Sec. 22-57. List of qualifications for franchises; term; nontransferability; rules and regulations; tests, inspections and audits.
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Secs. 22-60—22-85. Reserved.

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Article VI. Donation Collection Bins

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Article VIII. Handbills

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Sec. 22-181. Throwing or discarding handbills prohibited.
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Sec. 22-184. Fines.
Sec. 22-185. Recovery of unpaid fines; unpaid fines to constitute a lien; foreclosure.

ARTICLE I. IN GENERAL

Sec. 22-1. Definitions.

For the purpose of this chapter, the definitions contained in this section shall apply unless otherwise specifically stated.

Additional leased garbage container(s). The words "additional leased garbage container(s)" shall mean one or more additional garbage container(s) leased by an assessed property owner pursuant to sections 22-2 and 22-12 of the City Code.

Annual franchise fee. The words "annual franchise fee" shall mean the yearly fee charged by the City of Miami ("city") to each franchisee who operates within the city limits and collects garbage and trash. See subsection 22-50(b) of the City Code.

Annual specialized waste handling fee. The words "annual specialized waste handling fee" shall mean the yearly fee charged by the city to each franchisee which operates within the city limits and collects trash, excluding garbage. See subsection 22-50(c) of the City Code.

Biological waste. The words "biological waste" shall mean solid waste that causes or has the capability of causing disease or infection and includes, but is not limited to, biomedical waste, diseased or dead animals, and other wastes capable of transmitting pathogens to humans or animals. The term does not include human remains that are disposed of by persons licensed under F.S. ch. 470.

Biological waste collector. The words "biological waste collector" shall mean any private solid waste contractor who collects, transports or disposes of biological waste.

Biomedical waste. The words "biomedical waste" shall mean any solid waste or liquid waste which may present a threat of infection to humans. The term includes, but is not limited to, nonliquid human tissue and body parts; laboratory and veterinary waste which contain human-disease-causing agents; discarded disposable sharps; human blood, and human blood products and body fluids; and other materials which in the opinion of the department of health and rehabilitative services of the state represent a significant risk of infection to persons outside the generating facility.

Biomedical waste collector. The words "biomedical waste collector" shall mean any private solid waste contractor who collects, transports or disposes of biomedical waste.

Bulky waste. The words "bulky waste" shall mean, but not be limited to, large items of household refuse such as appliances, furniture, accumulations from major tree cutbacks (exceeding ten inches in diameter and four feet in length and weighing more than 50 pounds), large crates and like articles which shall be placed out for city collection by residential unit owners paying for city service on a weekly basis.

Certified recovered materials dealer. The words "certified recovered materials dealer" shall mean a dealer certified under F.S. § 403.7046, who handles, purchases, receives, recovers, sells or is an end user of recovered materials as defined herein.

Collection area. The words "collection area" shall mean the entire boundary of the city at all times.

Commercial business. The words "commercial business" shall mean and include all retail, professional, wholesale, and industrial facilities and any other commercial enterprises, for profit or not for profit, offering goods or services to the public.

Commercial hauler. The words "commercial hauler" shall mean a licensed city franchisee that operates within the city limits and provides certain services to multi-family and commercial businesses including but not limited to garbage, trash, recycling, roll-off, and specialized waste handling service.

Commercial landscaper. The words "commercial landscaper" shall mean an individual or organization registered with the city (see section 22-10 of the City Code) to provide grounds and landscaping services to residences and/or commercial properties within the city for grounds up-keep and maintenance.

Commercial property. The words "commercial property" shall mean any hotel, motel, rooming-house, tourist court, trailer park, bungalow court, apartment building with rental apartments, cooperative apartments, and/or multiple-story condominium buildings and any other business or establishment of any nature or kind whatsoever other than a residential unit as defined in this section.

Commercial solid waste. The words "commercial solid waste" shall mean every waste accumulation, including but not limited to, dust, paper, paper cartons, cardboard cartons, excelsior, rags, garbage, plastics, metal containers, recyclable material, garden and yard clippings and cuttings, bulky waste and other waste which is usually attendant to the operations of commercial businesses or multifamily residences.

Commercial solid waste and recycling advisory committee. The words "commercial solid waste and recycling advisory committee" shall be defined as an elected/appointed/selected body created for the purpose of providing advice and recommendations on commercial solid waste issues within the city in conjunction and cooperation with the department of solid waste.

Commercial solid waste service. The words "commercial solid waste service" shall mean the collection and disposal of garbage, trash, recycling, solid and processable waste for all business, commercial, industrial, religious, health, educational, governmental and quasi-governmental establishments, including the collection and disposal of construction and demolition debris.

Condominiums. The words "condominiums" or "condominium buildings" shall be deemed to mean any building or structure that evidences that form of ownership of real property which is created pursuant to the State of Florida Condominium Act, which is comprised of units that may be owned by one or more persons, and in which there is appurtenant to each unit an undivided share in common elements, except for properties excluded by City Resolution No. 11807, adopted on June 22, 1999. Any condominiums with three or more dwelling units therein shall be classified as commercial establishments for purposes of this chapter.

Construction and demolition debris. The words "construction and demolition debris" shall mean materials generally considered to be not water soluble and nonhazardous in nature, including, but not limited to, steel, glass, brick, concrete, asphalt roofing material, pipe, gypsum wallboard, and lumber, from the construction or destruction of a structure as part of a construction or demolition project, and including rocks, soils, tree remains, trees, and other vegetative matter which normally results from land clearing or land development operations for a construction project, including such debris from construction of structures at a site remote from the construction or demolition project site. Mixing of construction and demolition debris with other types of solid waste, including material from a construction or demolition site which is not from the actual construction or destruction of a structure, will cause it to be classified as other than construction and demolition debris. The term also includes:

(1) Clean cardboard, paper, plastic, wood, and metal scraps from a construction project;

(2) Except as provided in F.S. § 403.707(12)(j), unpainted, non-treated wood scraps from facilities manufacturing materials used for construction of structures or their components and unpainted; non-treated wood pallets provided the wood scraps and pallets are separated from other solid waste where generated and the generator of such wood scraps or pallets implements reasonable practices of the generating industry to minimize the commingling of wood scraps or pallets with other solid waste; and

(3) De minimis amounts of other nonhazardous wastes that are generated at construction or destruction projects, provided such amounts are consistent with best management practices of the industry.

Construction and demolition debris collector. The words "construction and demolition debris

collector" shall mean any commercial solid waste franchisee who collects, transports or disposes of construction and demolition debris and shall be subject to a registration fee as provided for F.S. § 403.7046.

Construction dumpster or roll-off. The words "construction dumpster or roll-off" shall mean an approved open metal container without wheels, with capacity up to 40 cubic yards, used at construction sites for the purpose of removing construction and demolition debris, which includes rock, metal and other materials which are heavy in weight or substantial in size, used in connection with a construction and/or demolition project.

Container-on-wheels. The words "container-on-wheels" shall refer to the 96-gallon containers issued to residences by the city for automated garbage collection and are required to be used, once issued.

Containerized waste. The words "containerized waste" shall mean and include refuse, not to include garbage as defined herein, which is placed in containers, plastic bags, and/or bulk containers not exceeding three feet in length or weighing more than 50 pounds.

Curbside. The word "curbside" shall mean the area between the sidewalk and the street edge or, in areas without sidewalks, the area between the edge of the traveled portion of any public or private street and the property line.

Department. The word "department" shall mean the city department of solid waste.

Director. The word "director" shall mean the director of the department of solid waste.

Dumping. The word "dumping" shall mean to throw, discard, place, deposit or bury any litter and/or refuse except where permitted.

Dumpster. The word "dumpster" shall mean an approved metal container on wheels with a tightfitting solid top and a minimum capacity of one cubic yard or 202 gallons.

Enforcement officer. The words "enforcement officer" shall mean designated agents of the city manager, acting by and through him/her, including but not limited to, sanitation inspectors, code enforcement inspectors, and police officers.

Fiscal year. The words "fiscal year" shall mean the 12-month period beginning October 1.

Franchisee. The word "franchisee" shall mean a private commercial solid waste/firm that is granted a nonexclusive franchise by the city, to remove and dispose of solid waste from commercial properties, which is required to pay a percentage of its gross monthly earnings to the city pursuant to the provisions of this chapter.

Franchise agreement. The words "franchise agreement" shall mean a non-exclusive agreement between the city and a qualified firm to provide commercial solid waste services, as defined in this chapter, within the city.

Franchise fees. The words "franchise fees" shall mean the monthly percentage of gross receipts remitted to the city by each franchisee. See section 22-56 and section 22-50 of the City Code, as amended.

Garbage. The word "garbage" shall mean every refuse accumulation of animal, fruit or vegetable matter that attends the preparation, use, cooking and dealing in, or storage of edibles, and any other matter, of any nature whatsoever, which is subject to decay, putrefaction and the generation of noxious or offensive gases or odors, or which, during or after decay, may serve as breeding or feeding material for flies or other germ-carrying insects.

Garbage container. The words "garbage container" shall mean a galvanized metal, durable plastic or other suitable material container of the type commonly sold as a garbage container, including wheeled containers, of a capacity not less than 20 gallons and not to exceed 96 gallons, sufficiently strong to be emptied conveniently, or a bail by which it may be lifted, and a tightfitting metal or plastic top with handle, and so constructed as to permit the free discharge of its contents. The container must not have any inside structures such as inside bands and reinforcing angles or anything within the

container to prevent the free discharge of the contents. The container shall be free of jagged or sharp edges.

Gross receipts. The words "gross receipts" shall mean all monies, whether paid by cash, check, debit, credit, or any other legal form of payment, resulting from all transactions and activities in the franchisee's regular course of business and trade including administrative fees, garbage, industrial, solid waste, used cooking oil waste, environmental charges and fees, containerized waste services, fuel surcharge, construction and demolition debris, roofing materials, trash, litter, maintenance, compactors, refuse and/or rubbish collection removal and disposal services rendered, hand bag collection, recycling (excluding recovered materials at commercial establishments as defined by F.S. § 403.703), or from any other source related directly or indirectly from waste collection services, including, but not limited to, all income derived from the use of dump trucks, grappling trucks, roll-off trucks, trailers, roll-offs, boxed in, framed, fenced in, or otherwise designated storage areas, etc., containers, bagsters, chutes, and any other vehicles and equipment used for collection and disposal of any debris by the franchisee, exclusive of Franchise Fees herein and taxes as provided by law, whether wholly or partially collected within the city, less bad debts. Gross receipts shall not include income derived from the transportation, storage, treatment, collection, and removal of biomedical, biological, or hazardous waste as herein defined.

Hazardous waste. The words "hazardous waste" shall mean solid waste, or a combination of solid wastes, which because of its quantity, concentration, or physical, chemical or infectious characteristics may cause, or significantly contribute to, an increase in mortality or an increase in serious irreversible or incapacitating reversible illness or may pose a substantial present or potential hazard to human health or the environment when improperly transported, disposed of, stored, treated or otherwise managed.

Hazardous waste collector. The words "hazardous waste collector" shall mean any private solid waste contractor who collects, transports or disposes of hazardous waste and shall be subject to a registration fee as provided for in F.S. § 403.7046.

Health and safety concern. The words "health and safety concern", for purposes of this chapter, shall mean any inefficient and improper method of managing solid waste collection which creates a hazard to the public health, causes pollution of air and water resources, constitutes a waste of natural resources, has an adverse effect on land values and creates public nuisances.

Industrial wastes. The words "industrial wastes" shall mean the waste products of canneries, slaughterhouses or packing plants; condemned food products; wastes and debris from brick, concrete block, roofing shingle or tile plants; debris and wastes accumulated from land clearing, excavating, building, rebuilding and altering of buildings, structures, roads, streets, sidewalks, or parkways; and any waste materials which, because of their volume or nature, do not lend themselves to collection and incineration commingled with ordinary garbage and trash, or which, because of their nature or surrounding circumstances, should be, for reasons of safety or health disposed of more often than the city collection service schedule provided for in this chapter.

Industrial waste collector. The words "industrial waste collector" shall mean any private solid waste contractor who collects, transports or disposes of industrial waste and shall be subject to a registration fee as provided for in F.S. § 403.7046.

In-kind services. The words "in-kind services" shall mean those services for which no fees or charges are assessed, including service to city facilities and neighborhood cleanups as defined by the director.

Landscape firm. The words "landscape firm" shall mean landscape architects, landscape contractors, landscape maintenance firms and all others doing work similar to that performed by landscape architects, landscape contractors and landscape maintenance firms doing business within the city.

Large residential trash. The words "large residential trash" shall mean yard and garden trash weighing more than 50 pounds, bulky and noncombustible materials which cannot be containerized and weigh over 50 pounds, and other non-hazardous, non-construction, non-demolition, non-biomedical or non-industrial material too large to be bagged, bundled or containerized and weighing over 50 pounds. Large trash shall be placed out along with bulky waste for once per week collection.

Litter. The word "litter" shall mean any garbage, rubbish, can, bottle, box, container, tobacco product, tire, appliance, mechanical equipment or part, building or construction material, tool, machinery, wood, motor vehicle or motor vehicle part, vessel, aircraft, farm machinery or equipment, trash, refuse and paper.

Local government registration fee. The words "local government registration fee" shall mean the annual, October 1st through September 30th, charge assessed by the city to recovered materials dealers and other businesses deemed as being required to register with the City as a service provider in the designated category, commensurate with and no greater than the cost incurred to establish and operate a registration and reporting process limited to the regulations, reporting format and reporting frequency pursuant to F.S. § 403.7046, with regard to recovered materials, and other businesses of a designated category, their collection and disposal of same from commercial properties within the city.

Minidump. The word "minidump" shall mean a disposal site, maintained by the department, where householders of the city may deposit trash and small trash.

Modified recycling program. The words "modified recycling program" shall mean an operation approved by the department which provides for the recycling of recyclable material by a method varying from the requirements of section 22-19 or section 22-20 of the City Code.

Mow. The word "mow" shall mean to cut down grass or similar growth with a mechanical device such as lawn mower.

Multifamily residence. The words "multifamily residence" shall mean and include any building or structure containing four or more contiguous living units and intended exclusively for residential purposes.

Neighborhood cleanups. The words "neighborhood cleanups" shall mean periodic intensive removal of litter, debris and other solid waste material from a designated area of the city, initiated or approved by the city and/or recognized community based organizations or associations including special event activities citywide.

Noncombustible refuse. The words "noncombustible refuse" shall mean refuse materials that are unburnable at ordinary incinerator temperatures (800 degrees to 1,800 degrees Fahrenheit) such as metals, mineral matter, large quantities of glass or crockery, metal furniture, auto bodies or parts, and other similar material or refuse not usual to housekeeping or to the operation of stores or offices.

Nonexclusive franchise. The words "nonexclusive franchise" shall mean a non-exclusive right and privilege granted to a qualified firm to contract to provide solid waste, construction and demolition material, and recyclable collection and disposal services to commercial and non-residential properties, as defined in this chapter, in, upon, over and across the present and future streets, alleys, easements and other public places of the city.

Organic waste. The words "organic waste" shall mean a type of waste material which can be broken down into its base compounds by micro-organisms and other living things, regardless of what those compounds may be, and can be commonly found in municipal solid waste such as green waste, food waste, paper waste, and biodegradable plastics. The words "organic waste" specifically do not include waste as defined by the recoverable materials definition and the associated exemption under F.S. § 403.7046.

Permit per account fee. The words "permit per account fee" shall mean the charge assessed by the city to a franchisee, for every account with

whom it acquires or maintains an agreement during the fiscal year for purposes of providing commercial solid waste services.

Plastic bag. The words "plastic bag" shall mean a polyethylene or other heavy-duty plastic bag meeting the National Sanitation Foundation standard of one and one-half mils and not exceeding a 32-gallon capacity with a securing twist tie.

Portable container. The words "portable container" shall mean dumpster, roll-away or other similar container designed for mechanized collection.

Posting. The word "posting" shall mean to display by putting up on property in a public place of view.

Produce market. The words "produce market" shall mean the area in which produce vendors congregate and sell their products bounded by NW 10th Avenue to the east, NW 22nd Avenue to the west, NW 23rd Street to the north, and NW 20th Street to the south.

Public nuisance. The words "public nuisance," for purposes of this chapter, shall mean a container or roll-off/container which appears to be utilized for commercial solid waste collection with or without a city franchise agreement and poses a threat to the health and safety of the community.

Recovered materials. The words "recovered materials" shall mean metal, paper, glass, plastic, textile, or rubber materials that have known recycling potential, can be feasibly recycled, and have been diverted and source separated or have been removed from the solid waste stream for sale, use, or reuse as raw materials, whether or not the materials require subsequent processing or separation from each other, but does not include materials destined for any use that constitutes disposal. Recovered materials as described above are not solid waste.

Recyclable material. The words "recyclable material" shall mean those materials which are capable of being recycled and which would otherwise be processed or disposed of as solid waste.

Recycling. The word "recycling" shall mean any process by which solid waste, or materials which would otherwise become solid waste, are collected, separated, or processed and reused or returned to use in the form of raw materials or products.

State law reference—F.S. Ch. 403, Environmental Control Part IV—Resource Recovery and Management, as may be amended from time to time.

Refuse. The word "refuse" shall mean any garbage, garden trash, industrial waste, noncombustible refuse, rubbish, waste, bulk waste, containerized waste and/or solid waste.

Residential unit. The words "residential unit" shall mean any structure used or constructed or modified or adopted for use as a single-family dwelling, duplex, cluster housing, townhouse or multiple-family apartment building or other similar structure containing three or fewer residential units, and which is located on a single lot, parcel or tract of land. Each dwelling unit of a duplex, cluster housing, townhouse, or multiple-family building or other similar structure shall be deemed a separate residence.

Roll-off/container. The words "roll-off/container" shall mean a metal container, compacted or open, with or without wheels, designed and used by nonexclusive commercial solid waste haulers and/or other companies for the collection and disposal of construction debris, demolition debris and/or large quantities of trash and/or bulky waste, but not garbage or commercial refuse.

Roominghouses/boardinghouses. The word "roominghouse" shall mean any legal nonconforming residential building used, or intended to be used, as a place where sleeping or housekeeping accommodations are furnished or provided for pay to transient or permanent guests or tenants which does not maintain a public dining room or cafe in the same building or in any building in connection therewith. The word "boardinghouse" shall mean an establishment where meals are regularly prepared and served for compensation for five or more persons, and where most of the food is placed upon the table family style without service or ordering of individual portions from a menu. Boardinghouses may also provide lodging for compensation. The proprietor of a roominghouse or boardinghouse may receive or reject

whom he/she wishes and usually makes special oral or written contracts with each of his/her lodgers concerning compensation and length of stay.

Rubbish. The word "rubbish" shall mean refuse accumulation of paper, excelsior, rags or wooden or paper boxes or containers, sweepings and all other accumulations of a nature other than garbage, which are usual to housekeeping and to the operation of stores, offices and other business places, and also any bottles, cans or other containers which, due to their ability to retain water may serve as breeding places for mosquitoes or other water breeding insects; rubbish shall not include noncombustible refuse, as defined above.

Safety inspection fee. The words "safety inspection fee" shall mean a regulatory fee pursuant to F.S. § 166.221, imposed by the solid waste director upon a franchisee for inspection of substandard, unsafe, or inoperable vehicles and/or equipment.

Screening. The word "screening" shall mean a landscaped area with shrubs three feet in height at time of planting to form a continuous, unbroken solid buffer, or a five-foot-high fence or C.B.S. wall finished and painted on both sides to provide a visual barrier.

Service unit. The words "service unit" shall mean four sleeping rooms or a fraction thereof, where no cooking privileges are provided, located in any commercial establishment.

Small trash. The words "small trash" shall mean bundled and clean yard and garden trash, including shrubbery, vines, and branches capable of being gathered into bundles and tied securely so that each bundle does not exceed three feet in length or weigh more than 50 pounds; all accumulations of lawn, grass or shrubbery cuttings or clippings and leaf rakings, free of dirt, rock, large branches and bulky or noncombustible materials which can be containerized and not weigh over 50 pounds, per container; and accumulations of tree branches, tree limbs, parts of trees, bushes and shrubbery which are up to three inches in diameter and do not exceed four feet in length, do not weigh over 50 pounds, are too large to be containerized, but require and can be bundled and tied, and other non-hazardous, non-construction, non-demolition, non-biomedical material small enough to be bagged, bundled, or containerized or does not exceed three feet in length or weigh more than 50 pounds. Small trash shall be placed out along with garbage for twice per week collection.

Solid waste. The words "solid waste" shall mean garbage, rubbish, refuse, or other discarded material, including solid, liquid, semisolid, or contained gaseous material resulting from domestic, industrial, commercial, mining, agricultural or governmental operations.

Solid waste disposal and resource recovery facility. The words "solid waste disposal and resource recovery facility" shall mean any solid waste disposal area, volume reduction plant, transfer station or other facility, the purpose of which is resource recovery or the disposal, recycling, processing, transfer or storage of solid waste.

Source separated. The words "source separated" shall mean the recovered materials are separated from solid waste where the recovered materials and solid waste are generated. The term does not require that various types of recovered materials be separated from each other and recognizes de minimis solid waste, in accordance with industry standards and practices, may be included in the recovered materials. Materials are not considered source separated when two or more types of recovered materials are deposited in combination with each other in a commercial collection container located where the materials are generated and such materials contain more than ten percent solid waste by volume or weight. For purposes of this subsection, the term "various types of recovered materials" means metals, paper, glass, plastic, textiles, and rubber.

Special events. The words "special events" shall mean events as delineated in subsection 22-171(a)(7) of the City Code and any other designated event designated as a special event by the city commission, city manager and/or designee.

Special non-residential trash collection. The words "special non-residential trash collection" shall mean yard and garden trash weighing more than 50 pounds, too large to be containerized for commercial collection, clean and free of dirt, rocks, trash and any other debris. It includes accumulations from major tree cutbacks (exceeding ten inches in diameter and four feet in length and weighing more than 50 pounds). Collection by the city must be approved and scheduled by department prior to set out or fines will be incurred.

Special residential collection. The words "special residential collection" shall mean a collection of non-hazardous, non-industrial, waste beyond the normal city garbage, trash, and recycling, including bulky waste and large trash, for which residents or property owners will be charged the cost of collection, disposal and the appropriate administrative fees. Such collection excludes asbestos, whole or used tires, oil, lead-acid batteries, mercury lights, combustible, hazardous, biomedical and biological waste.

Specialized waste handler. The words "specialized waste handler" shall mean those companies whose primary business is limited to collecting and disposing of solid waste that requires special handling and management, including, but not limited to white goods, waste tires, used oil, lead-acid batteries, construction and demolition debris, ash residue and biomedical and biological waste.

Specialized waste. The words "specialized waste" shall mean solid waste that requires special handling and management, including, but not limited to white goods, waste tires, used oil, lead-acid batteries, construction and demolition debris, ash residue, biomedical and biological waste.

Specialized waste handling nonexclusive fee. The words "specialized waste handling nonexclusive fee" shall mean the annual fee paid to the city for the right to conduct specialized waste handling services in the city.

Subcontractor. The word "subcontractor" shall mean a private commercial solid waste hauling company that is subcontracted or otherwise used by a franchisee of the city for the servicing of a commercial property within the city for removal and disposal of solid waste pursuant to the provisions of this chapter. Franchisees and subcontractors shall be jointly and severally responsible for compliance with this article. The city may revoke franchises as provided in this article and pursue all remedies allowed by the laws of the State of Florida and the city for violations of this article. Subcontractors used by franchisees to perform commercial solid waste hauling services including, but not limited to, use of their equipment and/or servicing of commercial properties within the city shall be required to have a city commission awarded franchise.

Swale area. The words "swale area" shall mean the paved or unpaved area between the edge of the sidewalk or property line and the edge of the street.

Temporary roll-off/container permit fee. The words "temporary roll-off/container permit fee" shall mean the charge paid every 90 days the account remains active, per account to the city for each large container and/or roll-off utilized by franchisees to provide contracted removal and disposal of waste from commercial constructions and demolition, renovation and other similar accounts which are of a temporary nature.

Trash. The word "trash" shall mean garden, tree and shrubbery trash that is too large to be bagged, bundled or containerized, wooden or paper boxes or containers, and other accumulations of a nature other than garbage and bulky waste as defined herein which cannot be bagged, bundled or containerized for weekly collection.

Waste broker. The word "waste broker" shall mean an individual, including a natural person or entity, who serves as a middle person between other parties within the commercial solid waste hauling industry. The services of a waste broker who utilize city franchisees and/or Subcontractors who have a city commission awarded franchisee for servicing of commercial properties within the city are allowed under this chapter.

Waste-to-energy facility. The words "waste-to-energy facility" shall mean a facility which uses conversion technology such as thermal, biologi-

cal or biochemical processes to breakdown raw feedstock to produce a beneficial by-product and/or digestate. In general, the primary objective of the conversion technologies is to convert waste into useful energy products that can include synthetic or synthesis gas (syngas), biogas, petroleum, commodity chemicals, or compost in order to support waste diversion from landfills and to reduce carbon emissions.

(Ord. No. 10128, § 1, 7-10-86; Ord. No. 10232, § 1, 3-13-87; Ord. No. 10371, § 1, 1-14-88; Ord. No. 10887, § 1, 6-20-91; Ord. No. 11184, § 2, 10-27-94; Code 1980, § 22-1; Ord. No. 11352, § 2, 4-25-96; Ord. No. 11444, § 1, 2-20-97; Ord. No. 11703, § 1, 9-28-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12599, § 2, 10-14-04; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13316, § 2, 3-8-12; Ord. No. 13531, § 2, 7-9-15; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13693, § 2, 7-13-17; Ord. No. 13889, § 2, 1-23-20; Ord. No. 14138, § 9, 2-9-23)

Sec. 22-2. Collection services, container usage, condition and requirements for placement location; city and commercial solid waste services.

(a) Garbage from single and multifamily residences of three units or less shall be collected, conveyed and disposed of by the city twice a week. Hours and days on which containers are to be collected shall be as prescribed by the director. All small trash, containerized waste, and garbage to be removed by the city shall be placed at curbside in front of the property for removal by the city as scheduled by the director, in such a manner as not to obstruct pedestrian passage or impede collection by city forces. The director may make exceptions to these rules to accommodate disabled and elderly persons. Each residence in the city shall be provided with one city issued garbage container per each residential unit to accommodate all garbage, small trash or rubbish to be removed by the city. Garbage and small trash will be placed only in the container provided by the city for this purpose. Containerized garbage shall be placed at curbside no later than 6:00 a.m. the morning of scheduled collection and no sooner than the night before and containers shall be picked up at the end of the collection day. Single and multifamily residences receiving solid waste services by the city may elect to lease additional city issued garbage containers for an annual fee equivalent to 20 percent of the annual solid waste assessment fee set forth by resolution of the city commission. The leased garbage containers will be assessed on the property owner's tax bill on an annual basis, except as provided for in subsection 22-12(b)(2) of the City Code. Should the request for an additional garbage container occur after the annual assessment has been issued, payment must be made by check on a prorated basis. The lease shall be for a one-year period and cannot be prorated.

(b) Every commercial property shall utilize the waste collection services of a franchisee authorized to perform such services by the city commission. It shall be the responsibility of the owner, occupant, tenant or lessee of the commercial establishment to properly dispose of all trash, waste and garbage generated by such commercial property. Each commercial property in the city shall have a sufficient number of scheduled collections, garbage containers, plastic bags or portable containers to accommodate all garbage, bundled garden trash or rubbish to be removed by the franchisees. Franchisees shall be required to remove all refuse placed or spilled within a ten-foot radius of the container being serviced.

Any franchisee providing waste collection services who will be discontinuing its collection service to a commercial property shall give the department of code enforcement and the city manager's office or its designated city department at least seven business days' prior notice of its intention to discontinue such service. The franchisee shall additionally mail to the owner, occupant, tenant or lessee of the commercial property a notice that it is discontinuing waste collection services for that commercial property. Duplicate copies of this notice shall be simultaneously mailed by the franchisee to the department and the city manager's office or its designated city department. A commercial property which does not have current waste collection services

being furnished shall be subject to having an administrative service fee imposed pursuant to section 22-93.

All food service properties producing raw or processed organic waste matter as a major portion of their waste stream shall provide for the removal of such material a minimum of three times per week.

(c) The garbage or trash container site for commercial properties shall:

(1) Be situated in an easily accessible location for collectors;

(2) Be a platform constructed of concrete above ground level in the case of a commercial property, and shall be large enough to accommodate an appropriately sized dumpster for the facility being serviced;

(3) Be constructed in such a manner as to discourage or eliminate the possibility of rodents breeding under the platform; and

(4) Be screened from any street, alley, sidewalk or adjacent property. Such screening shall be maintained in perpetuity by the property owner. Screening shall be constructed of chain link fencing with slats (cyclone fencing) or wood picket fencing.

Sunken containers are hereby declared to be hazardous to the health, welfare and safety of the residents of and visitors to the city and to the city's waste collection personnel. Accordingly, such containers shall immediately be replaced with approved containers and the holes where they were previously sunk shall be filled with clean, solid fill.

Franchisees will be responsible for servicing of containers until such time as they have been removed. Commercial multifamily properties without service will be subject to administrative and service fees imposed pursuant to section 22-93 herein, should the city be required to provide service the property owner will be invoiced for service as required and at the cost associated with the unit structure provided in (b) of this section.

(d) All new commercial properties and/or structures, as defined in this chapter, shall provide a garbage and/or trash room as required and provided for in Ordinance No. 11000, the zoning ordinance of the city. Any existing structure, legally established but currently nonconforming with regard to Ordinance No. 11000, upon expansion of the existing structure by 25 percent or more of its existing floor area, or its repair or renovation at cost exceeding 50 percent of its current value as established in the assessment made by the Miami-Dade County property appraiser, shall be required to comply with the requirements of this chapter; any series of repairs and/or renovations during any five-year period shall require the property to conform to the requirements of this chapter. Additionally, a change in the use of any legally established, but nonconforming structure shall require such structure's compliance with the requirements of this chapter prior to the issuance of a certificate of use and/or occupancy by the building and zoning department.

(e) At no time shall any garbage containers, dumpsters or any containers, whether such containers are approved or not approved, be placed upon any street, alley, sidewalk, right-of-way, or in any public area or upon any property used by the public not owned or occupied by the person(s) placing such garbage containers, dumpsters or containers.

(f) The director or director's designee is hereby required and granted full power and authority to designate the location of containers and the number of containers to be kept at each location. Any waste containers which do not conform to the provisions of this chapter or which contain other defects likely to hamper the collection of or injure the person collecting the contents thereof are illegal. Such containers shall be promptly replaced by the owner or user of the container upon receipt of written notice of said defect. All containers shall contain identification of the private hauling company providing the service, and must be clean, kept closed, and free of

graffiti. At no time will the department service any such illegal containers. Portable containers declared a public nuisance or to be unserviceable with no identifying marks visible to the code enforcement inspectors shall be removed at the discretion of the director.

(g) Newspapers and other salvageable materials defined as aluminum cans, glass bottles, metal and tin cans, shall be separated from all other solid waste material and may be placed in the container provided by the city for these materials or otherwise be recycled.

(h) Commercial containers located on public property shall be deemed abandoned and will be removed by the city at the owner's expense, pursuant to this chapter of the Code. Service is to be made from streets and driveways and trucks used for this purpose shall not be driven or parked on sidewalks at any time.

(i) Commercial property owners may request special collection of large yard and garden trash as defined herein by the department by calling for approval and scheduling, prior to setting out material. No approval by the department director or designee will be issued for said premise until the director has made a finding of compliance with the terms of this and all other chapters of this Code and other applicable regulations and laws.

(Ord. No. 10128, § 1, 7-10-86; Ord. No. 10535, § 1, 1-12-89; Ord. No. 10654, § 1, 10-12-89; Ord. No. 11122, § 2, 2-17-94; Ord. No. 11184, § 3, 10-27-94; Code 1980, § 22-2; Ord. No. 11352, § 2, 4-25-96; Ord. No. 11703, § 2, 9-28-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12400, § 2, 9-11-03; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13531, § 2, 7-9-15; Ord. No. 13693, § 2, 7-13-17; Ord. No. 14138, § 9, 2-9-23)

Sec. 22-3. Accumulation of waste; proof.

The fact that any residential unit or any commercial property located in the city is occupied shall be proof that garbage or other refuse is being produced or accumulated upon such premises. However, a temporary residential vacancy, regardless of duration, shall not authorize a refund or excuse the nonpayment of any waste fee. Waste fees shall be chargeable on a pro rata basis on new residential units immediately following the building and zoning department's issuance of a temporary or final certificate of occupancy, or whenever the first waste is picked up from such unit by the city, whichever shall occur first.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-3; Ord. No. 11703, § 3, 9-28-98)

Sec. 22-4. Plans for waste storage on certain premises to be approved before issuance of building permit; proof of commercial solid waste service before issuance of certificates of use or occupancy.

Before building permits may be issued for construction of commercial property, as defined in this chapter, plans for storage of refuse must be approved by the director or his/her designee as to location, accessibility, and number or adequacy and the permittee has provided proof of a contract with an approved commercial solid waste franchisee for construction debris containers to store and remove debris.

Failure to have or renew a certificate of use will be enforced pursuant to chapter 2, article X and nothing contained in this article shall prohibit the city from enforcing the City Code by any other means. The enforcement procedures outlined herein are cumulative to all others and shall not be deemed to be prerequisites to filing suit for the enforcement of any section of this Code.

For any location with a previously issued certificate of use, which expires on an annual basis, the certificate of use holder must show evidence of a contract for commercial solid waste services with an approved commercial solid waste franchisee at the time of the annual renewal due date. Failure of the applicant to obtain a valid certificate of use will result in the following:

After 45 calendar days after re-issuance of a certificate of use, a $262.50 penalty violation will be issued for non-compliance.

After 90 calendar days after re-issuance of a certificate of use, a $525.50 penalty violation will be issued for non-compliance.

After 120 calendar days after re-issuance of a certificate of use, a $1,050.00 penalty violation will be issued for non-compliance.

Each additional 120 calendar days, a $1,050.00.00 penalty violation will be issued for non-compliance.

(Ord. No. 12258, § 2, 7-25-02; Ord. No. 13693, § 2, 7-13-17)

Editor's note—Ord. No. 12258, § 2, adopted July 25, 2002, amended § 22-4 in its entirety to read as herein set out. Formerly, § 22-4 pertained to plans for waste storage on certain premises to be approved before issuance of building permit and derived from The Code of 1980, § 22-4; Ord. No. 10128, § 1, adopted July 10, 1986, and Ord. No. 11703, § 4, adopted September 28, 1998.

Sec. 22-5. Duty to dispose of trash and prevent accumulations.

(a) It shall be unlawful for the owner, manager, occupant, lessee of, or other person responsible for any lot, parcel or tract of land on which residential units or commercial properties are located within the city to deposit, store, keep, or maintain, or permit to be deposited, stored, kept or maintained bulky or industrial waste, refuse attending the care of lawns, shrubbery, vines, and trees, except for the purpose of composting; rubbish including uncontainerized garbage, beer and soft drink containers, empty or broken bottles, and metal containers; and any other uncontainerized solid waste whatsoever upon such property, adjoining rights-of-way, easements or alleys, except as specifically authorized in this chapter. Property owners of unimproved property or owners, occupants, tenants and lessees of improved property shall be responsible for keeping the area around the dumpster(s) or container(s) in a clean and presentable condition as well as keeping the sidewalk, side parkway and swale area and other public rights-of-way clear of all trash and litter, and shall maintain their property in a clean, mowed, cut and litter-free manner, including sidewalks, grass strips, swale area or rights-of-way up to the edge of the pavement of any public street. Every merchant, storekeeper or operator of a business in the city shall sweep or cause to be swept the sidewalks adjoining his/her respective place of business before 10:00 a.m. every morning, or as often as necessary to keep the area clean, on each day that such business shall be operated. Said sweepings shall be picked up and not swept in the gutter. Failure to comply with the provisions of this section shall constitute a violation of this chapter: such failure may also serve as the basis for assessment of an administrative fee.

(b) Whenever it is evident that there is a violation of this section, the enforcement officer may do one or more of the following:

Serve a notice of noncompliance, in a form prescribed by the director and approved by the city commission, upon the owner, manager, occupant, resident, lessee, franchisee or other responsible person by personal service, mail or by posting a copy in a conspicuous place on the premises where the violation exists. The enforcement officer may proceed with direct removal as outlined below. The enforcement officer may:

(1) Cause a code enforcement sanitation civil violation notice to be issued, in a form prescribed by the director and approved by the city manager, upon the owner, manager, occupant, resident, lessee, franchisee or other responsible person by personal service, certified mail, or by posting a copy in a conspicuous place on the premises where the noncompliance exists. If said noncompliance has been found to exist by the city manager, or the city manager's designee, such finding and determination shall result in an administrative service fee being assessed for such noncompliance in the amount set forth in section 22-93 hereof, with said fee being assessable for each day the noncompliance exists until the condition or conditions resulting in such noncompliance no longer exist.

(2) Direct the department to remove, remedy or eliminate the noncompliance and charge the property owner for a special collection service in accordance with the provisions of this chapter.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-5; Ord. No. 11352, § 3, 4-25-96; Ord. No. 11703, § 5, 9-28-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 13676, § 2, 4-27-17)

Sec. 22-6. Littering and dumping prohibited; dumping or burying waste without proper authorization; illegal dumping in area bulky waste transfer stations; engaging in business of solid waste collection without franchise; declared public nuisance; presumption.

(a) Intent. It is the intent of the city commission to prevent, in whatever way possible, the abuse of the environment of the city through acts of any persons that are generally classified under the headings of "dumping" and "littering," which acts severely burden the taxpayers of the city and adversely affect the attractiveness, public health, safety and welfare of the community for its residents and visitors.

(b) The city will provide sufficient litter containers to be placed in strategic locations throughout the city, with special consideration to be given to high density populations and heavily traveled areas, to be used for the deposit of litter by pedestrians only and not by abutting store owners or vendors.

(c) Prohibited act(s). The following shall be unlawful:

(1) Dumping litter and/or refuse in any manner or amount whatsoever in or on

any public highway, road, street, alley, thoroughfare or any other public lands, except in containers or areas lawfully provided therefor. The provisions of F.S. § 403.413, as amended, shall apply to all public rights-of-way within the city.

(2) Dumping litter and/or refuse in or on any freshwater lakes, canals, rivers or streams or tidal or coastal waters of the city.

(3) Dumping litter and/or refuse and burying waste in any manner or amount whatsoever on any private property, unless prior written consent of the owner has been given, and such disposal has been authorized via permit by the county health department, provided said litter and/or refuse will not cause a public nuisance or be in violation of any other state or local laws or regulations.

(4) Sweeping, blowing by mechanical means or dumping litter and/or refuse including stagnant water or dead animals into, upon or along the drain, gutter, alley, lane, sidewalk, street or vacant lot, or in any public or private premises within the municipal limits of the city.

(5) Causing, maintaining, permitting or allowing the accumulation of any litter or refuse on any construction or building site before, during or after completion of said construction or building. It shall be the duty of the owner, or the owner's agent, of the property in question to make adequate provisions for the disposing of debris and litter and to have on the construction or building site adequate facilities for the disposing of said litter and refuse and to make appropriate arrangements for the collection thereof. Said arrangements and/or methods for disposing litter and debris shall be approved by the director prior to the issuance of a building permit.

(6) Disposing of the carcass of any dead animal, domestic or otherwise, by the throwing, discarding, placing or depositing of said carcass in or on any of the locations noted in subsections (c)(1) through (3) of this section.

(7) Discarding of garbage, fruit, or other matter subject to putrefaction, rotting or decay at minidumps shall constitute a violation of this chapter. Minidumps are restricted to use by residents of the city for the deposit of bulky waste from residential properties. The method of transporting this waste shall be as prescribed in section 22-7 herein.

(8) Obstructing use of public facility, salvaging or vandalism by any person on the premises at which minidumps are located constitutes a violation of this chapter.

(d) It shall be unlawful for any owner, occupant, lessee, employee, franchisee or other person from any commercial property to dump or cause to be dumped any material whatsoever from such commercial property at or upon any minidumps, public rights-of-way, city property or any unauthorized disposal location.

(e) It shall be unlawful for any person, franchisee, firm, corporation or other legal entity to collect, remove or transport any solid waste material for compensation from any location or premises within the city without first having been granted a nonexclusive franchise by the city.

(f) It shall be unlawful for any person, firm, corporation or other legal entity to utilize the services of any commercial solid waste collector who does not have a valid city solid waste nonexclusive franchise.

(g) It shall be unlawful for a franchisee to contract or subcontract with another commercial solid waste hauling company, also referred to as a subcontractor, for the servicing of a commercial property within the city that does not have a city commission awarded franchise.

(h) It shall be unlawful for a franchisee to utilize or have any equipment that is owned by another commercial solid waste hauling company, also referred to as a subcontractor, for the servic-

ing of a commercial property within the city that does not have a city commission awarded franchise.

(i) It shall be unlawful for a franchisee to have a business arrangement with another commercial solid waste hauling company, also referred to as a subcontractor, or waste broker for the servicing of a commercial property within the city by a solid waste hauling company that does not have a city commission awarded franchise.

(j) Declared public nuisance. In addition to, and not in limitation upon any enforcement action for violation of this section, it is the intent of the city commission to declare the dumping of litter and/or refuse in the city, as hereinbefore described and prohibited, a public nuisance and to subject violators of this section to the provisions of this chapter calling for removal of such a public nuisance through notice, hearing and a lien enforcement procedure if the city so chooses to remedy the prohibited condition. Any action taken pursuant to this section in enforcing the provisions of this chapter shall be considered cumulative and in addition to penalties and other remedies provided elsewhere in this chapter.

(k) Applicability of state and county laws. In addition to, and not in limitation of the provisions of this section, the provisions of F.S. § 403.413, also known as the "Florida Litter Law," and chapter 15 of the Code of Metropolitan Dade County, as amended from time to time, are hereby added to this Code of Ordinances and incorporated by reference herein. The city commission also respectfully suggests to any court finding persons guilty of violations of the "Florida Litter Law" that the provisions of F.S. ch. 948, "Probation," be utilized liberally in order to require such persons to expend appropriate amounts of time and effort gathering up litter and refuse at places within the city as may be designated by the court.

(l) Noncompliance with any section shall be punishable in a manner as provided in sections 22-6 and 22-93. Noncompliance may result in the city's taking such action as it deems appropriate under the circumstances, and a lien shall be imposed against the property for recovery of all costs involved.

(m) A civil fine of $500.00 per occurrence shall be imposed for littering and for illegal dumping by individuals and a fine of $1,050.00 per occurrence for littering and for illegal dumping when being done using a private vehicle.

(n) Pursuant to the provisions of § 403.413, Fla. Stat., the Florida Litter Law, the sanitation inspectors are designated as litter enforcement officers of the city, for the purposes of enforcing F.S. § 403.413, and section 22-6 herein. Such employees are designated and appointed as litter enforcement officers.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-6; Ord. No. 11703, § 6, 9-28-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12835, § 2, 10-12-06; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13693, § 2, 7-13-17; Ord. No. 13889, § 2, 1-23-20)

Sec. 22-7. Method of transporting waste.

It shall be unlawful for any person to haul, convey, or cause to be hauled or conveyed, any solid waste including discarded building matter or discarded furniture upon or along public streets, roads or alleys except when the material transported is adequately secured in such manner as to prevent the material from falling or being blown from the transporting vehicles. No person shall drive or move any vehicle or truck within the city, the wheels or tires of which carry onto or deposit in any street, alley or other public place, mud, dirt, sticky substances, waste or foreign matter of any kind. It shall be a violation of this chapter for any person, firm or corporation not holding a valid nonexclusive commercial solid waste franchise permit issued pursuant to the provisions of article II of this chapter to haul for hire any garbage or rubbish as defined herein within any area of the city.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-7; Ord. No. 12258, § 2, 7-25-02)

Sec. 22-8. Manner of handling garbage and trash; placing dangerous materials in waste containers prohibited.

Proper handling shall mean the following:

(1) Garbage shall be drained of excess liquid and well-wrapped before being deposited in an approved container.

(2) All paper cartons and boxes shall be torn or broken down and flattened out by the depositor.

(3) All dangerous material such as broken glass, lightbulbs, razor blades, fluorescent tubes and all other hazardous material shall be considered as causing or likely to cause personal injury to collectors, and all such material shall be kept separate from other garbage and trash and deposited in a cardboard container and placed alongside the approved containers.

(4) It shall be a violation of this chapter to place or cause to be placed in any regulation garbage or refuse container for collection any acid, explosive material, inflammable liquids, hot ashes, tar, grease, chemicals, poisons or other hazardous, infectious, including animal or human

waste matter (feces) or any other dangerous or highly corrosive material of any kind. The city will not be responsible for the collection or disposal of any such materials.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-8; Ord. No. 11703, § 7, 9-28-98)

Sec. 22-9. Responsibility of persons other than owners of premises for violations and for noncompliance.

The owners or agents, management firms, managers, supervisors, janitors, rental agents, tenants or lessees of all residential homes, rental units and commercial properties shall be responsible under the law for complying with the provisions of this chapter. In every multiple dwelling occupied by three or more families, in which the owner does not reside, there shall be a responsible person designated in writing as such by the owner. These persons: the management firm, manager, supervisor, janitor, rental agent or the owner shall be severally and jointly responsible for seeing that the entire premises as well as the yards, sidewalks, grass strips, swale areas or rights-of-way up to the edge of the pavement of any public street, and one-half of the alley or easement adjoining such dwelling are free from garbage, trash, litter, overgrowth, or any foreign material which constitutes a violation of this chapter.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-9; Ord. No. 11352, § 4, 4-25-96; Ord. No. 11703, § 8, 9-28-98)

Sec. 22-10. Operation of business where wind regularly carries solid waste into street; fencing requirements.

It shall be unlawful for the owner, tenant, or occupant of any parcel of land to operate or permit the operation of any business upon such parcel of land when and where, by reason of the combined effect of the prevailing winds and the location, configuration, and size of the structures thereon, solid waste generated by the operation of the business or the customers or patrons thereof is regularly driven, carried, or conveyed by such winds in appreciable quantities into or upon any public street, unless and until such owner, occupant, or tenant shall have erected on each boundary of such parcel of land a proper fence to retain such material with only such openings for ingress and egress of a size and number as shall be necessary. It is specifically the responsibility of the owner, tenant, and occupant of any parcel of land to ensure that commercial landscapers and any other types of businesses and/or services that may generate solid waste of any form or description not be deposited in or upon the public right-of-way.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-10; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-11. Dumping on public right-of-way prohibited.

(a) It shall be unlawful for any person to dump or cause to be dumped or place or cause to be placed any refuse or rubbish of any kind whatsoever including tires, construction and demolition debris, biological or biomedical waste and hazardous material along the rights-of-way of the public streets, highways and roads of the city, regardless of whether such dumping is from a dolly, wagon, wheelbarrow, noncommercial flatbed, truck, van, car or any commercial vehicle. All such debris generated shall be removed by the premises owner at the property owner's sole expense and are specifically excluded from the regular bulky trash service provided by the department of solid waste.

(b) The provisions of F.S. § 403.413 shall apply to all public rights-of-way within the city.

(c) The following civil fines shall be imposed for violations of this section:

(1) By any person, $500.00 fine.

(2) From any commercial vehicle, $1,050.00 fine.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-11; Ord. No. 11703, § 9, 9-28-98; Ord. No. 12835, § 2, 10-12-06; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-12. Waste fees.

(a) An annual waste fee, per residential unit, is hereby assessed upon all city serviced residential units as defined in section 22-1 and

as set forth by resolution of the city commission. These fees shall apply to all single and multifamily residences of three units or less within the city and shall serve to defray the cost of waste collection and disposal. Effective October 1, 1999, the city may utilize the uniform method of collection pursuant to F.S. ch. 197, whereby residential unit owners shall pay for residential solid waste collection services on the tax bill, in accordance with the provisions of F.S. ch. 197, as amended. If the city elects not to use the tax bill collection method then one-half of said annual fee amount shall be due and collectible on January 1 and on July 1 of each calendar year, beginning January, 1999.

(b) (1) All fees billed shall be due and collectible upon receipt. The fact that any residential unit or any commercial establishment located in the city is occupied shall be prima facie evidence that garbage and other refuse is being accumulated or produced upon such premises; and temporary vacancy shall not authorize a refund or excuse the nonpayment of the applicable fee. In the event the city elects to use the tax bill collection method and upon the adoption of the assessment roll, all solid waste assessments shall constitute a lien against assessed property equal in rank and dignity with the liens of all state county, district, or municipal taxes and special assessments. Except as otherwise provided by law, such liens shall be superior in dignity to all other period liens, mortgages, titles, and claims until paid. The lien for a solid waste assessment shall be deemed perfected upon adoption by the city commission of the final assessment resolution, whichever is applicable. The lien for a solid waste assessment shall be deemed perfected upon adoption by the city commission of the final assessment resolution or the annual rate resolution, whichever is applicable. The lien for a solid waste assessment collected under the Uniform Assessment Collection Act shall attach to the property included on the assessment roll as of the prior January 1, the lien date for ad valorem taxes imposed under the tax roll.

(2) Separate billing for additional leased garbage container(s) for the fiscal year beginning October 1, 2017. For the fiscal year beginning October 1, 2017, the owner of an assessed property which leases one or more additional leased garbage containers from the city for solid waste shall be charged the additional fee(s) per each additional leased garbage container as set forth in sections 22-2 and 22-12, which fee(s) shall be charged separately and billed separately to the owner by the city's department of solid waste; for the fiscal year(s) beginning October 1, 2018 and thereafter, the fee(s) charged for any additional leased garbage container(s) shall be charged and collected for each one year period by using the tax bill collection method as set forth in sections 22-2 and 22-12 of the City Code.

(c) Notwithstanding any Code provision to the contrary, commencing effective October 1, 1987, said date reflecting the date when the city was fully performing the services set forth below, an annual fee, termed supplemental waste fee, is hereby assessed against all provision of public right-of-way cleaning services by the city in accordance with the following schedule of services set forth below. "Daily" as used in this subsection means weekdays, Monday through Friday.

(1) Removal of illegally dumped materials or debris.

(2) Main thoroughfares and designated residential corridors in the city will be swept on a on a scheduled or as needed basis, as determined by the director of the department.

(3) Litter containers will be serviced, repaired or replaced and cleaned on a scheduled or as needed basis, as determined by the director of the department.

(4) Sidewalks in the city will be cleaned as needed.

(5) Approved special non-residential trash collection services will be collected by the city if cleaned, bundled and/or bagged and placed at curbside in front of the property that generated it on the scheduled residential trash collection day.

(d) The following annual fees are hereby assessed against all commercial establishments except residential condominium units and residential condominium associations as defined in F.S. § 718.103 (1997), and except cooperatives and cooperative associations as defined in F.S. § 719.103. For purposes of this section, residential condominiums and cooperative units shall not be considered commercial establishments. These fees are in addition to all existing fees contained in this chapter for the above cleaning services and are to be billed annually in advance in accordance with the fee schedule as set forth below:

Usage Code	Description	Units Up To	Unit	Base Rate	RatePer Unit
CU01	Apartments, Rental Property	2	Units	$0.00	$0.00
CU01	Apartments, Rental Property	12	Units	$102.00	$0.00
CU01	Apartments, Rental Property	50	Units	$152.00	$0.00
CU01	Apartments, Rental Property	999,999	Units	$152.00	$5.00
CU02	Hotel, motel and rooming houses	2	Units	$0.00	$0.00
CU02	Hotel, motel and rooming houses	12	Units	$102.00	$0.00
CU02	Hotel, motel and rooming houses	50	Units	$152.00	$0.00
CU02	Hotel, motel and rooming houses	999,999	Units	$152.00	$5.00
CU03	Retail	500	Sq. ft.	$76.00	$0.00
CU03	Retail	2,500	Sq. ft.	$102.00	$0.00
CU03	Retail	5,000	Sq. ft.	$127.00	$0.00
CU03	Retail	15,000	Sq. ft.	$152.00	$0.00
CU03	Retail	25,000	Sq. ft.	$203.00	$0.00
CU03	Retail	50,000	Sq. ft.	$229.00	$0.00
CU03	Retail	999,999	Sq. ft.	$254.00	$0.00
CU04	Wholesale and storage	500	Sq. ft.	$76.00	$0.00
CU04	Wholesale and storage	2,500	Sq. ft.	$102.00	$0.00
CU04	Wholesale and storage	5,000	Sq. ft.	$127.00	$0.00
CU04	Wholesale and storage	15,000	Sq. ft.	$152.00	$0.00
CU04	Wholesale and storage	25,000	Sq. ft.	$203.00	$0.00
CU04	Wholesale and storage	50,000	Sq. ft.	$229.00	$0.00
CU04	Wholesale and storage	999,999	Sq. ft.	$254.00	$0.00
CU05	Manufacturing	500	Sq. ft.	$76.00	$0.00
CU05	Manufacturing	2,500	Sq. ft.	$102.00	$0.00
CU05	Manufacturing	5,000	Sq. ft.	$127.00	$0.00
CU05	Manufacturing	15,000	Sq. ft.	$152.00	$0.00
CU05	Manufacturing	25,000	Sq. ft.	$203.00	$0.00
CU05	Manufacturing	50,000	Sq. ft.	$229.00	$0.00
CU05	Manufacturing	999,999	Sq. ft.	$254.00	$0.00
CU06	Office buildings	500	Sq. ft.	$76.00	$0.00
CU06	Office buildings	2,500	Sq. ft.	$102.00	$0.00
CU06	Office buildings	5,000	Sq. ft.	$127.00	$0.00
CU06	Office buildings	15,000	Sq. ft.	$152.00	$0.00
CU06	Office buildings	25,000	Sq. ft.	$203.00	$0.00
CU06	Office buildings	50,000	Sq. ft.	$229.00	$0.00
CU06	Office buildings	999,999	Sq. ft.	$254.00	$0.00
CU07	Open Areas (Parking lots, garages, auto sales)	20,000	Sq. ft.	$102.00	$0.00
CU07	Open Areas (Parking lots, garages, auto sales)	50,000	Sq. ft.	$127.00	$0.00
CU07	Open Areas (Parking lots, garages, auto sales)	999,999	Sq. ft.	$254.00	$0.00
CU08	Amusement parks, dog tracks, frontons	300	Fixed fee	$508.00	$0.00
CU09	Arenas, dance halls, pool halls, bowling lanes	20,000	Sq. ft.	$127.00	$0.00

Usage Code	Description	Units Up To	Unit	Base Rate	RatePer Unit
CU09	Arenas, dance halls, pool halls, bowling lanes	50,000	Sq. ft.	$203.00	$0.00
CU09	Arenas, dance halls, pool halls, bowling lanes	999,999	Sq. ft.	$254.00	$0.00
CU10	Theaters	100	Seats	$152.00	$0.00
CU10	Theaters	500	Seats	$212.00	$0.00
CU10	Theaters	999,999	Seats	$212.00	$5.00
CU11	Hospitals	100	Beds	$254.00	$0.00
CU11	Hospitals	999,999	Beds	$254.00	$3.00
CU12	Private schools	10,000	Sq. ft.	$144.00	$0.00
CU12	Private schools	50,000	Sq. ft.	$212.00	$0.00
CU12	Private schools	999,999	Sq. ft.	$254.00	$0.00
CU13	A.C.L.F. non-profit	85	Fixed fee	$144.00	$0.00
CU14	A.C.L.F. profit	125	Fixed fee	$212.00	$0.00
CU15	C.B.R.F. non-profit	85	Fixed fee	$144.00	$0.00
CU16	C.B.R.F. profit	125	Fixed fee	$212.00	$0.00
CU17	S.A.F. non-profit	85	Fixed fee	$144.00	$0.00
CU18	S.A.F. profit	125	Fixed fee	$212.00	$0.00
CU19	Day care centers and nursery schools (non-profit)	85	Fixed fee	$144.00	$0.00
CU20	Day care centers and nursery schools (profit)	125	Fixed fee	$212.00	$0.00
CU22	Miscellaneous	500	Sq. ft.	$85.00	$0.00
CU22	Miscellaneous	2,500	Sq. ft.	$102.00	$0.00
CU22	Miscellaneous	5,000	Sq. ft.	$127.00	$0.00
CU22	Miscellaneous	15,000	Sq. ft.	$152.00	$0.00
CU22	Miscellaneous	25,000	Sq. ft.	$203.00	$0.00
CU22	Miscellaneous	50,000	Sq. ft.	$229.00	$0.00
CU22	Miscellaneous	999,999	Sq. ft.	$254.00	$0.00
CU23	Marinas	3	Boat slip	$0.00	$0.00
CU23	Marinas	12	Boat slip	$93.00	$0.00
CU23	Marinas	50	Boat slip	$203.00	$0.00
CU23	Marinas	999,999	Boat slip	$203.00	$5.00
CU24	Restaurants, lounges, bars	50	Seats	$135.00	$0.00
CU24	Restaurants, lounges, bars	100	Seats	$203.00	$0.00
CU24	Restaurants, lounges, bars	200	Seats	$254.00	$0.00
CU24	Restaurants, lounges, bars	999,999	Seats	$254.00	$3.00
CU25	Pawn shops	1,000	Sq. ft.	$135.00	$0.00
CU25	Pawn shops	5,000	Sq. ft.	$203.00	$0.00
CU25	Pawn shops	999,999	Sq. ft.	$212.00	$0.00
CU26	Convenience stores	0	Fixed fee	$127.00	$0.00
CU27	Dade County public schools	0	Fixed fee	$127.00	$0.00

(Code 1967, § 20-13; Ord. No. 9065, § 1, 1-24-80; Ord. No. 9208, § 1, 11-26-80; Ord. No. 9529, § I(K), 12-9-82; Ord. No. 9862, § 1, 6-28-84; Ord. No. 9932, § 1, 11-8-84; Ord. No. 10128, § 1, 7-10-86; Ord. No. 10136, § 1, 7-24-86; Ord. No. 10214, § 1, 2-12-87; Ord. No. 10371, § 2, 1-14-88; Ord. No. 10600, § 1, 7-13-89; Ord. No. 11184, § 4, 10-27-94; Code 1980, § 22-12; Ord. No. 11233, § 1, 3-9-95; Ord. No. 11631, § 1, 3-31-98; Ord. No. 11632, § 2, 3-31-98; Ord. No. 11694, § 1, 8-14-98; Ord. No. 11701, § 1, 9-28-98; Ord. No. 11703, § 10, 9-28-98; Ord. No. 11771, § 2, 2-9-99; Ord. No. 11807, § 1, 6-22-99; Ord. No. 11837, § 2, 9-28-99; Ord. No. 11845, § 1, 10-12-99; Ord. No. 11945, § 1, 7-27-00; Ord. No. 12114, § 1, 9-13-01; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12475, § 1, 1-22-04; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-13. Emergency powers of the director.

In the event of a state of emergency declared by the mayor, in accordance with the provisions of the Charter, the director, with the concurrence of the city manager, shall have the authority to suspend, modify or expand services provided by the department, as enumerated herein, in such emergency circumstances as national disasters, civil disorders or other circumstances as directed by the city manager.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-12.1; Ord. No. 11564, § 10, 10-28-97)

Sec. 22-14. City and commercial collection of solid waste.

(a) It is the function exclusively of the department to collect and dispose of all wastes in the city except as authorized by the director and/or by law. The director shall have the power to establish the type, frequency and amount of solid waste collection service needed and to be rendered to all areas of the city and to promulgate rules and regulations not inconsistent herewith.

In the event that a location has constrained space and/or topographical limitations, the director shall have the discretion to waive the requirements for minimum size or frequency of collection and impose requirements and frequencies better suited for the location in question. Such a waiver must be accompanied by adding recycling requirements where necessary at the same location.

(b) The city commission may authorize the collection of solid waste by commercial solid waste collectors if it is a commercial account as defined in this chapter. If private collection is authorized, the contract with the commercial solid waste collector shall be non-exclusive and include, but not limited to, garbage, trash and bulky waste collection and the number of collection days per week. In addition, for multi-family dwellings the contract must specify a minimum of a two cubic yard (2 CY) container or containers of sufficient capacity so as to avoid overflowing conditions with a minimum twice per week collection; two true and accurate copies of said contract shall be furnished to the director or his/her designee. The container must be capable of holding a minimum of one week's collection of solid waste for the number of units or size and activity of business establishment being served.

The following standards for dumpster size and frequency of collection will be enforced. (7-30 gallon containers = 1 cubic yard):

# of Units	*Container Capacity*	*Minimum Frequency*
1—4	2 CY	2 x week
5—8	3 CY or	2 x week
	2 CY	3 x week
9—12	4 CY	2 x week
13—16	4 CY or	3 x week
	3 CY	5 x week
17—32	6 CY	3 x week
33—48	8 CY	3 x week
Over 48	8 CY	5 x week

Note: Frequency will increase depending on amount of garbage generated. All equipment utilized by a franchised private hauler shall comply with the requirements and provisions of this chapter. All containers shall be screened from the direct view of the adjacent property owner. The department reserves exclusively the right to collect solid waste from any city governmental facility, or any facility constructed or erected on city-owned or leased property, regardless of location.

(c) The director and the director's designated representatives are assigned the responsibility for enforcement of solid waste collection procedures enumerated herein. The city manager or designee has the authority to require the increase of frequency and/or size of a solid waste bin/container at solid waste generating dining establishments/restaurants or produce dispensing places if he/she determines that such locations pose an imminent hazard to the public health, safety, and welfare including but not limited to the presence of insects, rodents, continuous overflowing trash, and/or other potential health risks.

(d) Newspapers or other salvageable solid waste materials defined as aluminum cans, glass and plastic bottles, metal and tin cans, and which shall be separated from all solid waste materials as provided for herein shall be placed

at the curb in a container provided by the city on the regularly scheduled recycling collection day or otherwise recycled unless otherwise designated by the director. It shall be unlawful for any person, firm or corporation not licensed therefor, other than the owner, lessee, or occupant of that residential building, except city personnel to collect or otherwise remove any newspapers or other salvageable materials which have been specifically placed for collection in the recycling collection program. The penalty as contained in section 1-13 is hereby applicable to violations of this section.

(Ord. No. 10128, § 1, 7-10-86; Ord. No. 10440, § 1, 5-19-88; Ord. No. 10654, § 2, 10-12-89; Code 1980, § 22-13; Ord. No. 11703, § 11, 9-28-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12400, § 2, 9-11-03; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13531, § 2, 7-9-15; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-15. Educational trust fund established from recycling program for scholarships to children of certain city employees; conditions for implementation and scholarship committee.

(a) The moneys received by the city from the recycling of newspapers and other salvageable materials ("recycling program") shall be separately received, maintained and accounted for in an independent fund account to be held in the same manner as a trust account by the city for an educational fund hereby established upon the conditions as set forth in this section. The funds received, pursuant to the city's recycling program, shall be the subject of a separate appropriations ordinance to be adopted by the city commission and separately awarded and approved by the city manager through his/her designee. Upon the accumulation of $1,000,000.00 in funds received through this recycling program, all interest, as it accrues upon such principal amount, shall be utilized, subject to the sufficient accrual of interest, to pay for up to 15 scholarships, awarded annually, to educational institutions for the employees of the department to attend educational programs or F.A.C.E. Code Enforcement certification, or for commercial drivers license certification; in addition up to 15 scholarships shall be awarded annually to college level educational institutions for the children or legal dependents of the employees of the department, as determined by the designated scholarship committee to have met the established requirements for such scholarships; each scholarship award shall not exceed $3,000.00 annually per person, per award. In the event the interest accrued upon the $1,000,000.00 in this fund is insufficient to pay for the full amount of each scholarship, a lesser amount of scholarship will be awarded by the scholarship committee.

(b) The scholarship committee will be comprised of three members—one member from the department of human resources; one member from American Federation of State, County, and Municipal Employees, Local 871; and one member from the department of solid waste staff. The scholarship committee will create the criteria for qualification for the awards which shall be approved by the city manager or his/her designee.

(Ord. No. 10654, § 3, 10-12-89; Code 1980, § 22-13.1; Ord. No. 12258, § 2, 7-25-02; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13318, § 2, 3-8-12; Ord. No. 13330, § 2, 7-26-12; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-16. Special collections, fees, extra charges.

(a) Special collections by the department or waste services not expressly provided for in this chapter may be performed upon payment of reasonable fees and pursuant to such conditions as may be specified by the director, such fees to be reviewed annually by the city commission. Whenever noncompliance of this chapter occurs, which necessitates the department to remove, rectify or remedy said noncompliance, the fee for such services, as indicated in section 22-93, shall be assessed upon the person responsible for the conditions which give rise to and cause the noncompliance.

(b) Refusal or delay in rendering payment for any special collection performed as outlined in this chapter shall constitute the basis for adding such unpaid charges to the regular waste fee

assessment accruing against the property where such special collections are made, and are hereby imposed as special assessment liens against the real property aforesaid, and until fully paid and discharged, or barred by law, shall remain liens equal in rank and dignity with the lien of ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved, and when delinquent shall bear interest and may be enforced and collected together with reasonable attorney's fees for such collection pursuant to the provisions of section 22-89 herein, when applicable.

(c) Free service. There shall be no free service rendered by the department for the collection, transportation, or disposal of solid waste.

(d) Governmental agencies. For any premises owned, leased or occupied by the United States of America or any agency thereof, the State of Florida or any political subdivision thereof, including any body politic and corporate created under the laws of the United States of America or of the State of Florida, the city may enter into contracts, negotiated by the city manager and approved by the city commission, with any such body or agency for the collection, transportation and disposal of solid waste, prescribing rates and charges to be paid by such body or agency in lieu of the rates herein prescribed; provided, however, that the charges to be paid by such body or agency shall not be less than an amount which is fair and equitable taking into account the cost to the city of such collection, transportation and disposal.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-14)

Sec. 22-17. Private disposal of waste.

Any person may be issued a permit by the Dade County health department to dispose of garbage or solid waste materials accumulated upon his or her own premises by burial, provided that such method meets all specifications of the director of the Dade County health department and evidence is presented of compliance with zoning regulations, but such permit and the disposal thereby authorized shall not relieve the owner or occupant of the premises from payment of regular waste fees.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-15)

Sec. 22-18. Responsibility for removal of certain waste; collection and disposal of furniture, appliances, etc.

(a) Industrial waste, hazardous waste, and noncombustible waste shall be disposed of in the manner and at such locations as are prescribed by the director of the county public works department. Removal of industrial waste, hazardous waste and noncombustible waste shall be the responsibility of the owner, occupant, operator or contractor creating or causing the accumulation of such material. Upon approval of the director, collection of the aforementioned waste may be undertaken by the department at the expense of the owner, occupant, operator or contractor, provided that such collection and disposal does not interfere with other waste collection operations. The department shall not be responsible for collection or hauling of discarded building material, dirt or rock, nor shall it be responsible for collection or hauling of trees, bushes or other vegetation cut on private property before a certificate of occupancy is issued, except as otherwise provided for in this chapter.

(b) Special residential collection material shall not be permitted at curbside until advance arrangements have been made with the department for its removal. The cost of any special collection will be provided by the department and any legal form of payment must be received prior to the collection and shall be charged to the property from which the additional collection is made.

During the week of, and not prior to the evening before the scheduled special residential collection date, all large trash and/or bulky waste shall be placed on the parkway between the sidewalk and the street pavement or along the curbline when it is immediately adjacent to the sidewalk in front of the property from which the trash originates where it will be easily

accessible to the trash collection trucks of the city, but not in the traveled way on the street, road or alley. The city manager or designee shall have the full authority to designate the location or time of placement of large and small trash, bulky waste, clean vegetative bulky waste and special residential collections other than as described in this section, whenever unusual circumstances arise or, in the director's discretion, it is believed that additional or alternate areas or times are necessary.

Trash or bulky waste shall not be placed adjacent to or within five feet of buildings, fences, utility, telephone or electric poles, fire hydrants, or in any other area that would make it inaccessible to trash collection equipment.

For the collection of clean vegetative materials only, property owners or occupants shall also be subject to the provisions of subsection 12-15(7) of the City Code.

(c) All property owners or occupants serviced by the city shall have two options for disposal of their small trash and tree shrubbery trash. Owners or occupants of property may either containerize garden trash or bundle tree and shrubbery trash for city collection along with garbage or the owner or occupants may transport such material to the solid waste minidump facility. Bulky material which is containerized or bundled shall be placed at curbside no sooner than the evening prior to the scheduled bulk trash pickup day.

(d) City pickup procedures for small trash are as follows:

(1) Small trash items as defined herein shall be placed curbside for the city to pick up on the regularly scheduled bulk trash pickup day.

(2) Small trash as defined herein shall be tied in bundles (where possible) with material strong enough to support the weight of the bundle, such bundle not to exceed 50 pounds and be placed curbside for the city to pick up on regularly scheduled bulk trash pickup day.

(e) City pickup procedure for bulky waste and special residential collections. Bulky waste as defined herein will be collected by the department only from city-serviced accounts scheduled on a weekly basis. Special residential collections will be scheduled on a mutually agreed date with the account and in accordance with subsection (f)(4) below.

(f) Use of minidumps by property owners, or occupants:

(1) Minidumps are restricted to use by property owners or occupants.

(2) Dumping at the city minidumps of any material other than garden trash, shrubbery trash, small trash and other materials are designated by the department director.

(3) Loitering, salvaging and vandalism by any person at minidumps is prohibited.

(4) Special handling trash is prohibited from being dumped at minidumps. Special handling trash generated by property owners or occupants will be scheduled for pickup by the department. Special handling trash generated by landscape firms shall not be disposed of by such firm at a minidump.

(5) Any single dumping of garden trash and tree and shrubbery trash at a minidump in excess of five cubic yards is prohibited.

(6) Decal permits will be issued free of charge on an annual basis. The decal permits shall be conspicuously affixed to all vehicles used by landscape firms in transporting trimmings and cuttings. Landscape firms shall register annually with the department for completion and updating of permit application which will require: number of city accounts, identification of accounts, vehicles being used, and applicable local business tax receipt. Permits shall be revocable by the director for violations of ordinances and policies. Penalties shall range from temporary to permanent suspension of the issued decal permit dependent on the nature and frequency of violations or as

necessary pursuant to chapter 31 of the City Code, for operating in violation of the city's business tax receipt ordinance.

(7) Landscape firms and gardeners are required to dispose of all garden and related vegetative materials only generated by them while doing business in the city to an approved disposal or transfer site. Landscape firms and gardeners providing services at single family homes and dwellings of three units or fewer, shall only be allowed to leave clean vegetative waste on the public right-of-way adjacent to property in front of the residential property, excluding alleys that is generated by the property, while they perform work on behalf of the resident. This will be allowed in front of the residence for no more than two days for clean vegetative bulky waste prior to collection day. Large vegetative waste and tree stumps are excluded from the above. Vegetative waste that results from the trimming or cutting of trees resulting in larger than 100 cubic feet (or a maximum size for clean vegetative waste piles is approximately 5' x 5' x 4' (five feet long, five feet high and four feet deep)) in volume shall not be left on the public right-of-way or in front of the resident's property. The property owner or occupant shall have the responsibility to haul away and dispose of said vegetative waste in a legal manner.

(g) It shall be unlawful for any person to place discarded household furniture or furnishings, stoves, refrigerators and like articles at any place visible from the street, on either publicly or privately owned property, at any time under any conditions other than as set forth above.

(h) Until further noticed the department will collect special non-residential trash as defined herein from commercial properties, as defined herein, that are under contract for regular garbage and trash collection services with a nonexclusive commercial solid waste hauler.

(i) For special events, event organizers shall be required to obtain a permit from the city and make available garbage and recycling collection containers to be used at the event. The amount of collection containers will be determined based upon the expected attendance to the event.
(Ord. No. 10128, § 1, 7-10-86; Ord. No. 10371, § 3, 1-14-88; Code 1980, § 22-16; Ord. No. 11703, § 12, 9-28-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-19. Recycling programs required for multi-family residences of four units or more.

(a) From the effective date of Ord. No. 13194, a multi-family residence of four units or more shall provide for a recycling program which shall be serviced by a permitted franchisee as determined by the city commission or a Florida recovered materials dealer with the authorization of the director of solid waste, and shall include, at a minimum, the following five listed materials:

Recyclable materials: multi-family

(1) Mixed-paper, cardboard.

(2) Glass (flint, emerald, amber).

(3) Aluminum cans.

(4) Steel cans.

(5) Plastics, coded 1—7, see section 22-20 of the City Code.

(b) The failure of a multi-family residential establishment to provide a recycling program pursuant to subsection (a) or a modified recycling program pursuant to section 22-21 shall constitute a violation of this section, for which the property owner(s) shall be liable, provided, however, that in the case of a condominium or cooperative apartment, having a condominium association or cooperative apartment association, said association, rather than individual unit owners, shall be liable for any such violation.
(Ord. No. 13194, § 2, 9-27-10; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-20. Recycling programs required for commercial property; joint and several liability.

(a) It shall be the responsibility of the owner, occupant, tenant, or lessee of the commercial establishment to properly dispose of all recyclable material generated by such commercial property. From the effective date of Ord. No. 13194, every commercial property shall provide for a recycling program which shall be serviced by a franchisee, as determined by the city commission or a Florida state certified recovered materials dealer with the authorization of the director of solid waste, and shall include a minimum of three materials of its choice selected from the following list:

Recyclable material: commercial property

(1) High grade office paper.

(2) Mixed paper.

(3) Corrugated cardboard.

(4) Glass (flint, emerald, amber).

(5) Aluminum (cans, scrap).

(6) Steel (cans, scrap).

(7) Other metals/scrap production materials.

(8) Plastics (PETE, HDPE-natural, HDPE-colored).

(9) Textiles.

(10) Wood.

(b) The failure of a commercial property to provide a recycling program pursuant to section 22-19 or a modified recycling program pursuant to section 22-21 shall constitute a violation of this section for which the property owner(s) shall be liable, and the commercial business owner(s) and operator(s) of this commercial property shall be jointly and severally liable. Any penalties imposed pursuant to this section may include an administrative fee imposed pursuant to section 22-93.

(Ord. No. 13194, § 2, 9-27-10; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-21. Modified recycling programs allowed.

(a) Recycling programs which incorporate modifications substitutions, or reductions to the requirements of section 22-19 and 22-20 may be submitted to the department for approval. Approval, rejection, or approval with conditions of the proposed modified recycling program shall be determined by the department. The department shall consider the following factors in evaluating the proposed modified recycling program:

(1) Whether the establishment operates a recycling program, and is self-hauling the materials to a recyclable vendor.

(2) Whether the establishment generates a lesser number of recyclable materials than the required minimum.

(3) Whether the establishment generates and recycles materials not listed in section 22-19 or section 22-20 above, as applicable.

(4) Whether the establishment is contracting with a franchisee for collection services, which provide for a post-collection separation of recyclable material, and which:

a. Generate recyclable materials which comply, in kind and quantity, with the recycling requirements provided for in section 22-19 or section 22-20 hereof, as applicable; and

b. Utilize a materials separation facility which is permitted in accordance with all applicable federal, state, and local laws.

(b) Any person seeking approval of a modified recycling program shall submit an application in such a form as is prescribed by the department. All modified recycling programs shall be reviewed on a semiannual basis and applicants shall be required to confirm or revise the information contained in their applications at that time.

An application for approval of a modified recycling program shall include but not be limited to, the following documentation, as appropriate to the specific application:

(1) Supporting documentation to evidence self-hauling, activities, which shall include

proof of source-separation activities and copies of receipts from recyclable material purchasers.

(2) A waste composition study of the waste generated by the applicant, which shall cover a representative time period of not less than two weeks.

(3) A copy of the applicable contract with a post collection separation facility, specifying materials and volumes recycled which are attributable to the applicant.

(Ord. No. 13194, § 2, 9-27-10)

Sec. 22-22. Landscaper permit required.

In order to operate within the city limits, all commercial landscapers/gardeners must register with the city by October 1st of each year (or within 60 days of their inception) and are required to obtain a city landscaping permit and display a decal on their front windshield. In order to maintain their annual permit in good standing, commercial landscapers/gardeners are required to abide by the rules and regulations set forth in chapter 22 of the City Code regarding solid waste collection and disposal as outlined in sections 22-10, 22-11 and other sections of chapter 22 of the City Code. operating without the city landscaper permit will result in a fine of $262.50, per occurrence. No renewal landscape permit will be issued if there is an open violation or unpaid balance from a prior violation.

(Ord. No. 13693, § 2, 7-13-17)

Sec. 22-23. Prohibited disposition and raking of yard waste, dirt or debris when raking or using leaf blowers.

(a) It shall be unlawful for any person to rake yard waste and debris into a city right-of-way, specially inside a stormwater catch basin, and to use a leaf blower to cause yard waste, dirt of debris to be deposited or blown into or upon any city stormwater catch basin, street, plaza, alley, park, parkway or neighboring property. All yard waste, dirt or debris collected using a rake or a leaf blower shall be properly disposed of in accordance with this chapter and the City Code.

(b) The fine shall be issued to the individual performing the raking or using the leaf blower in violation of this section, inclusive of property owners. However, should the individual violating the code section be acting in the scope of their employment by a contractor, landscaper, homeowners' association, or other entity, that entity will receive the fine, not the individual employee.

(c) The penalties shall be included in section 22-93.

(Ord. No. 14172, § 2, 5-25-23)

Secs. 22-24—22-45. Reserved.

ARTICLE II. REGULATION OF PERSONS ENGAGED IN COMMERCIAL WASTE COLLECTION

Sec. 22-46. Engaging in business of solid waste collection and disposal; issuance of franchise agreement to private solid waste collectors.

(a) No person, firm or corporation shall remove or transport any solid waste material over the streets or public rights-of-way of the city or its real property for hire or salvage without first applying for and receiving a franchise from the department to carry on such a business. The franchise required by this section shall be in addition to any local business tax receipt and other license(s) which otherwise may be required by law, including F.S. § 403.4046. A franchise will not be granted to a commercial property for the sole purpose of hauling the solid waste material of its own tenants or occupants.

(b) It shall be unlawful for any commercial solid waste collector/franchisee to provide service to any property within 100 feet of a residential district between the hours of 11:00 p.m. and 7:00 a.m.

(c) It shall be unlawful for a franchisee to contract or subcontract with another commercial solid waste hauling company, also referred to as

a subcontractor, for the servicing of a commercial property within the city that does not have a city commission awarded franchise.

(d) It shall be unlawful for a franchisee to utilize or have any equipment that is owned by another commercial solid waste hauling company, also referred to as a subcontractor, for the servicing of a commercial property within the city that does not have a city commission awarded franchise.

(e) It shall be unlawful for a franchisee to have a business arrangement with another commercial solid waste hauling company, also referred to as a subcontractor, or a waste broker for the servicing of a commercial property within the city by a solid waste hauling company that does not have a city commission awarded franchise.

(f) No franchise granted pursuant to this chapter shall be deemed the property of the holder thereof.

(g) The city reserves unto itself the power to revoke all franchises granted pursuant to this chapter, to change or limit the rights granted, or to otherwise modify the franchises, in its sole discretion, by ordinance duly enacted by it. Such action shall not be deemed a taking of a property, contract, or other right of any franchisee, it being the express intention of this chapter to reserve unto the city, the power, in its sole discretion, to alter the methods of solid waste collection employed in the city, and the manner in which to provide for solid waste services delivered within the city.

(h) The city commission is authorized, from time to time, to grant one or more franchise(s) granting the right and privilege to operate a commercial garbage and trash collection and disposal system in, upon, over and across the present and future streets, alleys, easements and other public places of the city for the purpose of collecting all solid waste from commercial and multifamily establishments as defined in this chapter.

(i) The franchise(s) shall be granted only after the applicant for the franchise has responded successfully to the request for qualifications and filed with the purchasing department, an application, and such other documentation as may reasonably by required to establish that the applicant meets all of the requirements delineated in this chapter.

(j) The franchise(s) shall initially be granted for a period of five years, with three one-year options to renew, upon approval of the application by the city commission. The option to renew any franchise(s) for the additional three one-year periods shall be at the sole discretion of the city.

(k) Franchise agreements shall be inclusive of the requirements of chapter 22 of the City Code, as amended. A commercial solid waste hauling company's servicing of a commercial property within the city without a city commission awarded franchise pursuant to chapter 22 of the City Code, as amended, shall be presumed a public nuisance and deemed damaging to the public health, safety, and general welfare.

(l) All amendments to chapter 22 of the City Code, shall be deemed applicable to and a part of all franchise agreements, by operation of law, without need for execution of an amendment. For additional clarity, the department and each franchisee shall enter into and execute an amendment to the franchise agreement for addition of the requirements of this section, as amended.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-18; Ord. No. 11703, § 13, 9-28-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12599, § 2, 10-14-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13531, § 2, 7-9-15; Ord. No. 13889, § 2, 1-23-20)

Editor's note—Ord. No. 12599, § 2, adopted October 14, 2004, changed the title of § 22-46 from "Engaging in business of solid waste collection and disposal; issuance of nonexclusive franchise agreement to private solid waste collectors" to "Engaging in business of solid waste collection and disposal; issuance of franchise agreement to private solid waste collectors."

Sec. 22-47. Application for franchise.

Applications for a franchise shall be made to the purchasing department upon such form and in such manner as shall be prescribed by the director of purchasing to elicit the following information and to be accompanied by support-

ing documents and such other information as may be required by the purchasing department:

(1) *Name of applicant.* If the applicant is a partnership or corporation, the names and business addresses of the principal officers and stockholders and other persons having any financial or controlling interest in the partnership or corporation. Provided, however, that if the corporation is a publicly owned corporation having more than 25 shareholders, then only the names and business addresses of the local managing officers shall be required.

(2) *Character of applicant.* The applicant for a franchise under this section, if an individual, or in the case of a firm, corporation, partnership, association or organization, any person having any financial, controlling or managerial interest therein, shall be of good moral character. In making such determination the following information, which shall be submitted by applicant, shall be considered:

a. *Penalty history.* If the applicant is an individual, a record of all convictions and the reasons therefore shall be provided by the applicant. If the applicant is other than an individual, then the record of all convictions and the reasons therefore of the principal controlling officers of applicant shall be provided. Provided, however, that in the case of a publicly held corporation having 25 or more shareholders, then only the aforementioned information applicable to its local managing officers shall be required.

b. *Fingerprints.* The fingerprints of the persons mentioned in this subsection, a full set of which, for each of such persons shall accompany the application. Such service shall be obtained from a public agency.

c. *Business history.* Whether such applicant has operated a solid waste collection removal business in this or another state under a franchise, permit or license and if so, where and whether such franchise, permit or license has ever been revoked or suspended and the reasons therefore.

d. *Existence of business entity.* If the applicant is a corporation, applicant shall submit proof of incorporation in good standing in the state of incorporation and, if a foreign corporation, applicant shall provide information certifying that applicant is qualified to do business in the state. If applicant is operating under a fictitious name, applicant shall be required to submit information that such fictitious name is registered and held by applicant.

(3) *Equipment and method of operation.* The applicant for a franchise shall possess equipment capable of providing safe and efficient service. In making such a determination and approving the method of operation for each applicant, the department shall require the following information:

a. The type, number and complete description of all equipment to be used by the applicant for providing service pursuant to this chapter.

b. A statement that applicant will use only city- and/or county-approved disposal sites for disposing of all garbage, garden trash, industrial waste, and solid waste material which applicant collects and removes, except those sites which heretofore have been approved by the State of Florida department of environmental protection.

c. The names of customers and the addresses of each location served by the company.

(4) *Insurance requirements.*

a. The applicant for a franchise shall maintain insurance as specified

herein and shall furnish a public liability policy to the department and also file with the department a certificate of insurance for the policy written in the applicant's name. The certificate shall provide that the policy contain an endorsement requiring that the department shall be furnished with ten days' notice by registered mail prior to cancellation or material changes in the policies. The applicant shall carry in the applicant's own name an automobile liability insurance policy covering the applicant's operations with a combined single limit of $1,000,000.00 per occurrence for bodily injury and property damage liability. The city shall be listed as an additional insured for liability.

b. A performance bond or an acceptable alternative in an amount equal to the contractor's previous 12-month franchise fee(s) paid to the city or a minimum of $25,000.00, whichever is greater, as security for any fee(s) due to the city under the franchise agreement(s) with good and sufficient sureties conditioned upon the compliance of the terms of this chapter in such form as required by the city attorney. Said performance bond, or alternative acceptable by the department, shall not expire prior to six months from the commencement of the term of the franchise agreement and any extensions thereof.

(5) *Liability of the city and the department.* The above insurance requirements shall not be construed as imposing upon the city or the department or any official or employee thereof any liability or responsibility for injury to any person or damage to any property by the insured, the insured's agents or employees.

(6) *Limitation on hours of operation.* Private waste collection operators franchised by the city shall service their accounts, located within 100 feet of residential districts only between the hours of 7:00 a.m. and 11:00 p.m., except as determined and defined by the director. Commercial corridors as determined by the director.

(7) *Application form.* Each application for a franchise shall be made on a standard form promulgated by the director of purchasing and shall include an affirmation that the applicant will comply with this chapter in all respects.

(8) *Review and issuance.* The completed application shall be submitted to the purchasing department. Upon receipt of a completed application, the director of purchasing shall consult with the director of solid waste to jointly review said application and, if satisfactory in all respects, shall make recommendations to the city commission.

(Ord. No. 10128, § 1, 7-10-86; Ord. No. 10440, § 2, 5-19-88; Ord. No. 11184, § 5, 10-27-94; Code 1980, § 22-18.1; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12599, § 2, 10-14-04; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13316, § 2, 3-8-12; Ord. No. 13693, § 2, 7-13-17)

Editor's note—Ord. No. 12599, § 2, adopted October 14, 2004, changed the title of § 22-46 from "Application for nonexclusive franchise" to "Application for franchise."

Sec. 22-48. Denial of application.

Should the director of purchasing propose denying an application for a franchise, the applicant shall be notified of such denial by certified mail not later than 14 days prior to the director of purchasing making such recommendation to the city commission. The notice of denial shall contain a statement of the reasons why the application is being recommended for denial.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-18.2; Ord. No. 11837, § 2, 9-28-99; Ord. No. 13194, § 2, 9-27-10)

Sec. 22-49. Appeal from the recommended denial of franchise; appeal from revocation of franchise.

(a) The recommended denial of a franchise by the director of purchasing may be appealed to the city commission. The notice of appeal shall

be filed in writing with the purchasing department no later than 14 days after the receipt of the certified letter advising applicant of the proposed denial.

(b) The director of purchasing shall schedule a public hearing for the appeal. Said hearing shall be held not less than 14 nor more than 60 days after receipt of the notice of appeal. The city commission shall either affirm the decision of the purchasing director or direct the purchasing director to issue the franchise.

(c) The revocation of a franchise by the director of solid waste may be appealed to the city manager or the city manager's designee. The notice of appeal shall be filed in writing with the city manager with a copy addressed to the director of solid waste no later than 14 days after the receipt of the certified letter advising franchisee of the revocation.

(d) The city manager or the city manager's designee shall fix the date and time for hearing the appeal. Said hearing shall be held not less than 14 nor more than 60 days after receipt of the notice of appeal. The city manager or the city manager's designee shall either affirm the decision of the director of solid waste or direct the director of solid waste to reinstate the franchise. Should a revocation and/or reduction in the number of franchisees occur, the city commission may add additional qualified applicants to the approved franchisee list provided that said list does not exceed the number of previously approved franchisees.

(Ord. No. 13194, § 2, 9-27-10)

Editor's note—Ord. No. 13194, § 2, adopted September 27, 2010, amended section 22-49 in its entirety to read as herein set out. Formerly, section 22-49 pertained to appeal from the departmental denial of franchise; appeal from revocation of franchise, and derived from Ord. No. 10128, § 1, adopted July 10, 1986; the Code of 1980, § 22-18.3, and Ord. No. 11837, § 2, adopted September 28, 1999.

Sec. 22-50. Annual franchise fees; franchise fees.

(a) Commencing October 1 of every new fiscal year, each and every franchisee shall pay an annual permit per account fee of $75.00, payable in October and prorated as provided by the schedule below for the first year only, for each account that was acquired or maintained through the fiscal year for purposes of providing commercial solid waste services.

Month of	*Applicable Fee*
October	$75.00
November	68.75
December	62.50
January	56.25
February	50.00
March	43.75
April	37.50
May	31.25
June	25.00
July	18.75
August	12.50
September	6.25

(b) Beginning October 8, 2009, each and every franchisee shall pay an annual franchise fee by October 1 each year of the franchise term (and of any extension thereof) in the amount of $7,500.00, with such franchise fee being increased by $500.00 per year beginning October 1, 2010. Failure to remit the required annual franchise fee by the due date shall result in a one and one-half percent penalty per month on the balance due.

(c) Beginning October 8, 2009, each and every franchisee whose primary business is limited to solid waste that requires special handling and management shall pay an annual specialized waste handling permit fee by October 1 each year of the franchise term (and of any extension thereof) in the amount of $3,500.00 for the right to provide only specialized waste handling services within the city limits. If a franchisee is providing only specialized waste handling services within the city, then annual franchise fee will increase by $500.00 per year beginning October 1, 2010. Failure to remit the required annual franchise fee by the due date shall result in a one and one-half percent penalty per month on the balance due.

(d) Beginning October 1, 2015, each and every franchisee shall pay the city a $500.00 safety inspection fee if a franchisee's vehicle(s) or equipment is believed to be defective, inoperable, substandard, or potentially unsafe as determined

by the director of solid waste. This is a regulatory fee as referenced in F.S. § 166.221. This fee is for the municipal inspection of the vehicles being used by franchisee within the city. The applicable vehicles are those operated by franchisee within the city boundaries. The vehicles will include, but are not limited to, roll-offs, grapple trucks, front and rear end loaders, vactor trucks, dump trucks, trailers, and any other vehicles used for business, collection and disposal of any debris by the franchisee.

(e) Certified recovered materials dealers excluded from local franchise requirements pursuant to F.S. § 403.7046 shall be required to submit an annual registration form and pay a $100.00 registration fee per year beginning October 1st, 2015, to the city for an annual period which will begin October 1st and end September 30th of the following year. (See certified recovered materials dealer registration form).

(f) The franchise fee may be amended or adjusted from time to time. Any monthly percentage of gross receipts payable, as amended, or adjusted, will automatically apply to the franchise agreement. The city and franchisee will promptly execute any addendum or amendment recognizing the franchisee's obligation to pay such adjusted or amended fee as of the effective date of such amendment. If the franchisee fails to pay the adjusted franchise fee, or fails to comply with any addendum or amendment to the franchise agreement, the franchisee shall be deemed in default of the franchise agreement.

(Ord. No. 10128, § 1, 7-10-86; Ord. No. 10440, § 3, 5-19-88; Code 1980, § 22-18.4; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12599, § 2, 10-14-04; Ord. No. 12835, § 2, 10-12-06; Ord. No. 13108, § 5, 10-8-09; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13316, § 2, 3-8-12; Ord. No. 13531, § 2, 7-9-15; Ord. No. 13693, § 2, 7-13-17)

Editor's note—Ord. No. 13316, § 2, adopted March 8, 2012, changed the title of section 22-50 from "Franchise fees; permit per account fee(s); annual franchise fee; annual specialized waste handling fee; annual safety inspection fee(s)" to "Franchise fees." The historical notation has been preserved for reference purposes.

Sec. 22-51. Recycling and bulky trash requirements for franchisees.

(a) Each and every recycle franchisee shall submit the following to the solid waste director at the following intervals:

(1) Annually, an "annual recycling plan" that describes recycling activities and services available to commercial and residential establishments in the city that are offered by the franchisee.

(2) Annually, an "annual recycling report" that describes resources and money of the franchisee utilized in connection with the recycling program, a list of recycling accounts, and a list of accounts that do not avail themselves of the franchisee's recycling opportunities and reasons for same.

(3) Quarterly, a report describing recycling and diversion goals and recycling/diversion accomplishments.

(4) Annually, copies of literature provided to each customer in English, Spanish, and Creole describing the franchisee's recycling programs and services available.

(b) Bulky trash requirement for franchisees. All city solid waste franchisees are required to offer bulky trash in each franchise agreement or in service contracts for each and every customer they service.

(1) For purposes of this subsection and franchisees, bulky trash shall be defined as trash including, but not be limited to, large items of refuse such as appliances, furniture, accumulations from major tree cutbacks (exceeding ten inches in diameter and four feet in length and weighing more than 50 pounds), large crates and like articles. This excludes biomedical and other wastes not accepted at local facilities.

(2) Bulky trash pickup by franchisee shall:

a. Be completed in an "on demand" manner requiring the customer to request the pick up from the solid

waste franchisee and such pickup shall be accomplished within 48 hours, excluding Sundays and holidays.

b. The bulky trash may only be placed on site and not in any public right-of-way or swale area, and the site of placement must be placed in a mutually agreed predetermined location which could be the franchise container or other such similar container. The signage placed by the solid waste franchisee will be with the following or similar language:

1. Solid Waste Bulky Trash Pick-Up Site;
2. NO Bulky Trash May be Placed Here Until an On-Demand Request for Pick-Up has been made;
3. Please Call your Association Office or Manager to make an On-Demand Request;
4. Any Bulky Trash Left Out for More than 48 Hours will cause the Property and/or any identifiable Person to be ticketed up to $500.00 pursuant to Chapter 22 of the City Code; and
5. This Bulky Trash Pick-Up Site is Authorized pursuant to Section 22-51 of the Code of the City of Miami.

Solid waste franchises can opt to add any other relevant language that is in compliance the City Code, as necessary.

c. A solid waste franchisee may use a subcontractor for bulky trash pickup however, that subcontractor is required to be approved by the city and any subcontractor truck being used will be required to obtain a city provided front windshield decal. This decal shall be renewed each year at a cost of $5.00 per truck and coincide with the city's fiscal year. Any approved subcontractor will be required to have a valid city issued business tax receipt and, if offices are located in the city, a valid certificate of use. Subcontractor approval is further subject to any other necessary requirements as determined by the city manager or designee.

(c) Any franchisee servicing an address that engages in the sale of produce located within the produce market shall, no later than October 1, 2016, offer an organic waste recycling program. Said program shall utilize composting and/or any other organic waste recycling program which diverts organic waste from a disposal site to a city waste-to-energy facility.

All franchisees shall divert, at a minimum, a portion of organic waste collected to the city's waste-to-energy facility, should said facility become available in the future. The minimum required organic waste contribution to the city's waste-to-energy facility shall be set by the solid waste director as a percentage of the franchisee's total solid waste tonnage each year, effective October 1 of that year. Said percentage formula shall be uniform for all franchisees.

(Ord. No. 13531, § 2, 7-9-15; Ord. No. 14356, § 2, 3-13-25)

Editor's note—Ord. No. 14356, § 2, adopted March 13, 2025, changed the title of section 22-51 from "Recycling requirements for franchisees" to "Recycling and bulky trash requirements for franchisees." The historical notation has been preserved for reference purposes.

Note—Section 4 of Ord. No. 14356 states the following: "This Ordinance shall become effective with the next set of Franchise agreements due in 2025 but no later than January 31, 2026, whichever is sooner, after its adoption and signature of the Mayor."

Sec. 22-52. Identification of equipment.

All equipment utilized to collect and transport solid waste in the city must be conspicuously marked on both sides of the automotive unit with the name of the hauler, tare weight, cubic yard capacity, and a decal issued by the city. Identification information must also be marked on all

trailer and container units. All markings must be in letters and numerals at least two inches in height.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-18.8; Ord. No. 12258, § 2, 7-25-02; Ord. No. 13531, § 2, 7-9-15)

Sec. 22-53. Information required of franchisees.

(a) At least annually or as determined by the director, each franchisee shall supply the following information on a form, format, and in the manner prescribed by the director:

(1) A listing, as of the reporting date, of the names and addresses of customers and the addresses and folio numbers of each location served.

(2) An accounts receivable aging report for each customer within the city.

(3) The number and capacity of each dumpster and compactor per account.

(4) The address serviced by each dumpster and compactor.

(5) The list of accounts within the city for which hand collection of bags/containers is provided.

(6) The listing of city accounts that were charged-off as bad debts.

(7) A list of vehicles and equipment to be used in the city.

(b) No property owner may share an account with another property owner.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-18.9; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13531, § 2, 7-9-15; Ord. No. 13693, § 2, 7-13-17)

Sec. 22-54. Change in required information.

Each franchisee shall file any change in its required information with the director in writing on a form prescribed by the director prior to becoming effective.
(Ord. No. 12258, § 2, 7-25-02)

Editor's note—Ord. No. 12258, § 2, adopted July 25, 2002, amended § 22-54 in its entirety to read as herein set out. Formerly, § 22-54 pertained to a change in rates and derived from the Code of 1980, § 22-18.10 and Ord. No. 10128, § 1, adopted July 10, 1986.

Sec. 22-55. Disposal required at city- and/or county-approved facilities.

(a) Any and all solid waste material collected by a franchisee within the city shall be disposed of only at the solid waste disposal facilities provided, operated and designated or approved by the department and/or the county public works department and at no other location or facility except those which have heretofore been approved by the State of Florida department of environmental protection.

(b) All franchisees shall comply with the provisions of this chapter and all implementing resolutions of the city commission. The city shall use the reports required in this chapter and other information available to determine compliance of permit holders.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-18.11; Ord. No. 12258, § 2, 7-25-02)

Sec. 22-56. Franchise fee requirement; monthly franchise fee payment; approval by city commission as a prerequisite to issuance; financial statements, list of accounts; account permit fees; roll-off permit fees.

(a) No person shall engage in the business of removing or disposing of garbage, trash, or waste from any premises in the city or transport garbage, trash or waste through the public rights-of-way of the city without first having secured a franchise for such activities and paying all fees associated with the operation of the franchise as determined by the city. All persons shall be required to obtain a franchise from the city in order to engage in commercial solid waste collection and disposal from any streets, public rights-of-way or property in the city. These fees shall be in addition to the occupational permit tax ordinance of the city.

(b) Effective October 1, 1994, all city-franchised commercial solid waste haulers will be required to pay to the city a franchise fee of eight percent of the franchisee's monthly total gross receipts. Said franchise fee shall be increased to 12 percent effective October 1, 1995, and to 15 percent effective October 1, 1996. Said franchise fee shall be further increased to 22 percent, effective October 1, 2004. Said franchise fee shall be further increased to 24 percent, effective October 8, 2009. The franchisee shall, on or before the last day of each month, deliver to the solid waste department a true and correct statement of gross receipts generated during the previous month from its services rendered within the city on or before the last day of each month. Payments of said fee shall be made on a monthly basis to the solid waste department, on or before the last day of each month, representing gross receipts collected the previous month. The franchisee shall on or before 90 days following the close of each fiscal year deliver to the director a certified statement of its annual gross receipts and charge-offs generated from accounts within the city prepared by an independent certified public accountant ("CPA"), admitted to practice in the state, reflecting gross receipts within the city for the preceding fiscal year. The CPA statement shall render an unqualified opinion, based on the result of the audit, relative to the franchisee's accounting of all revenues, fees and charge-offs generated from accounts and activities within the city limits. The franchisees will allow city auditors, during regular business hours after reasonable notice, to audit, inspect and examine the franchisees' fiscal books and records and tax returns, insofar as they relate to city accounts, to confirm the franchisees' compliance with this section. In the event the franchisee fails to pay the full franchise fee percentage of the franchisee's total monthly gross receipts, the city shall charge a penalty of one and one half percent per month on the outstanding balance until paid and additionally the franchisee shall have to pay all expenses of collection, including court costs and reasonable attorneys' fees.

(c) To effectively provide for the payment of said franchise fee by the franchisees to the city, any person seeking to renew his/her annual local business tax receipt pursuant to the provisions of chapter 31 of this Code shall, in addition to the requirements set forth therein, provide the city finance department with evidence of all fees imposed by the provisions of this chapter as a condition to reissuance or renewal of said business permit.

(d) Issuance of a franchise shall require city commission approval for the franchise referenced in section 22-47 of this chapter.

(e) The director is authorized to suspend, revoke, or cancel any such franchise for failure to comply with any of the terms hereof, in accordance with the same practice and procedures as are set forth in section 22-48 of this chapter; providing, however, that the director shall afford an existing franchisee a written notice reasonably specifying the reason(s) for the proposed revocation or suspension of an existing franchise, and the franchisee shall be afforded 14 business days to cure the noncompliance stated in such notice.

(f) Any decision of the director under the terms of this section may be reviewed, upon written request of the aggrieved franchisee made to the city manager in accordance with the same time period and procedure as are set forth by section 22-49, City Code.

(Ord. No. 10440, § 7, 5-19-88; Ord. No. 11184, § 6, 10-27-94; Code 1980, § 22-18.12; Ord. No. 11444, § 2, 2-20-97; Ord. No. 11634, § 1, 4-14-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12599, § 2, 10-14-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13108, § 5, 10-8-09; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13531, § 2, 7-9-15; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13693, § 2, 7-13-17)

Editor's note—Ord. No. 13194, § 2, adopted September 27, 2010, changed the title of section 22-56 from "Franchise fee requirement; monthly franchise fee payment; approval by director as a prerequisite to issuance; financial statements, list of accounts; account permit fees; roll-off permit fees" to "Franchise fee requirement; monthly franchise fee payment; approval by city commission as a prerequisite to issuance; financial statements, list of accounts; account permit fees; roll-off permit fees." The historical notation has been preserved for reference purposes.

Sec. 22-57. List of qualifications for franchises; term; nontransferability; rules and regulations; tests, inspections and audits.

(a) The city may franchise commercial solid waste haulers as defined herein to provide service to commercial establishments as set forth in this article. The franchises issued, however, shall not limit the right to renew local business tax receipts prior to the effective date of this amendment and, further, will not impair existing written contracts between a franchisee and that of a commercial establishment which are in full force and effect on the effective date hereof and said contract does not exceed the effective date of the franchise. Each applicant for the franchise shall respond to a request for qualifications issued by the procurement department. The request for qualifications shall include, as minimum qualifications to be considered in the granting of such franchise:

(1) Certification that the applicant has satisfied all requirements of chapter 22 of the Code of the City of Miami.

(2) Certification that the applicant has never defaulted on any governmental franchises, contracts, permits or bid awards.

(3) Certification that no subsidiary affiliate, or parent corporation or business entity of the applicant already has, or has applied for, an existing franchise. Franchises will not be issued to a subsidiary, affiliate or parent company of an existing franchisee, or any franchisee.

(4) Certification that the applicant (or, if renewal, the franchise) is not and will not be, throughout the term that it has a franchise, affiliated with an affiliated entity of any existing franchisee, or any applicant for a franchise under this article, as a parent, or subsidiary, or by virtue of an interlocking directorate or otherwise.

(b) Term. Said franchise shall be valid for a period of five years from date of issuance with three one-year options to renew, and, at the expiration or earlier cancellation or revocation thereof, the city may choose to accept applications for a new franchise conditioned and limited as noticed above or, in the alternative, renew the permit issued for an additional three one-year option periods. The option to renew said franchise for the additional three-year period shall be at the sole discretion of the city. In deciding to issue a new franchise and/or accepting applications from applicants for a franchise, the city will consider the following factors:

(1) The franchisee's full and faithful compliance with the terms of this chapter;

(2) The franchisee's and/or applicants who best meet the qualifications established by this section for the issuance of the franchise; and

(3) The current garbage, trash and waste disposal needs of the city, including, without limitation, population, demographic and geographic needs.

(c) Transferability. The franchises granted pursuant to this section shall not be transferable by way of assignment, sale, pledge, or other conveyance. Upon change of ownership, including transference of a majority (51 percent or more) of stock and/or partnership shares, of any company to which a franchise has been issued, a new franchise will be granted by the city commission if the new owner satisfies the requirements of this article.

(d) The franchise provided for by this article is to ensure and facilitate a minimum standard of municipal regulation of commercial waste collection within the city, to provide uniformity and quality of service from the franchises granted hereunder, and to assure that the citizens of Miami have safe, efficient, sanitary, permitted regulated and qualified solid waste, garbage and trash disposal contractors.

(e) The city may, at reasonable times during the term hereof, inspect any franchisee's facilities and perform such test, as the city deems reasonably necessary, to determine whether the goods or services required to be provided by franchisee under its franchise conform to the terms thereof, if applicable. Each franchisee shall make available to the city reasonable facilities and render assistance to facilitate the

performance of all tests and/or inspections by city representatives. All tests and inspections shall be subject to, and made in accordance with the provisions of this Code, as the same may be amended or supplemented from time to time. Each franchisee shall allow city auditors, during regular business hours and after reasonable notice, to audit, inspect and examine the franchisee's financial records (as they relate to city revenue) including all fiscal books and records, sales tax returns, bank statements, general ledger (vouching city revenue to the general ledger) contract(s)/agreement(s) between franchisee and customer(s) and any other financial information deemed necessary, in so far as such other financial information relates to city accounts, as well as the franchisee's entire customer base, in order to confirm the franchisee's compliance with its franchise agreement. Each franchisee shall pay a one and one-half percent penalty per month on any monies due and owing to the city, as a direct result of an audit, from whatever applicable revenue stream during the term of the franchise agreement. If a city audit reveals that a franchisee under-reported gross receipts, and the audit shows additional revenue due to the city in an amount per fiscal year of $20,000.00 or more, franchisee shall pay to the city the cost of conducting the audit. Upon audit notification, a franchisee shall deliver all financial and other books and records to the city at no cost to the city. Each franchisee shall allow city auditors to copy any financial related source documents when deemed necessary to substantiate an audit finding.

(Ord. No. 10440, § 7, 5-19-88; Code 1980, § 22-18.13; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12599, § 2, 10-14-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13693, § 2, 7-13-17)

Editor's note—Ord. No. 12599, § 2, adopted October 14, 2004, changed the title of § 22-57 from "List of qualifications for franchises; term; nontransferability; rules and regulations" to "List of qualifications for franchises; term; nontransferability; rules and regulations; tests, inspections and audits."

Sec. 22-58. Revocation of franchise.

(a) The city reserves unto itself the power to revoke all franchises pursuant to this chapter of the Code.

(b) The violation of any of the terms and conditions of this Code which endanger the public health, safety and welfare or the violation of any of the terms and conditions of the franchise shall be cause for revocation of a franchise.

(c) The director may revoke a franchise for a violation or violations as aforementioned and may immediately declare such franchise null and void, and upon such declaration, franchisee shall immediately cease all operations, and shall be considered to have forfeited said franchise and the rights acquired thereunder. Should the director decide to revoke a franchise, he/she shall provide the franchisee with notice of such revocation and the reasons therefore. Upon receipt of such notice, the franchisee may appeal said revocation to the city manager or the city manager's designee and the appeal and hearing thereon shall be conducted in accordance with the procedures set forth in section 22-49.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-18.14; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12599, § 2, 10-14-04; Ord. No. 13194, § 2, 9-27-10)

Sec. 22-59. Procedure upon violation of sections 22-46 through 22-58.

Any violation of sections 22-46 through 22-58 herein may result in action taken by the director pursuant to section 22-93 herein, and such action shall be cumulative in nature and not the exclusive action available to the director.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-18.15)

Secs. 22-60—22-85. Reserved.

ARTICLE III. ENFORCEMENT AND ADMINISTRATION

Sec. 22-86. Waste fees; implementation.

(a) It shall be the duty of the owner of each lot, tract or parcel of land in the city having a residential unit situated thereon, except as may otherwise be provided herein, to pay or cause to be paid the waste fee or fees due for each residential unit or commercial establishment, as the case may be, as provided for in section 22-12

and section 22-87 herein, and failure on the part of such owner to make such payment shall constitute a violation of this chapter.

(b) Each person, firm, corporation, partnership or other entity who is the owner of each lot, tract or parcel of land in any area in the city shall pay for residential waste collection service as billed directly by the city or, at the discretion of the city, on the tax bill to and in accordance with the provisions of F.S. ch. 197. Other special collection billings will be billed as authorized by the city commission.
(Ord. No. 10128, § 1, 7-10-86; Ord. No. 11184, § 7, 10-27-94; Code 1980, § 22-23)

Sec. 22-87. Schedule of waste collection and disposal fees; records to be kept.

(a) Any special collections which exceed the normal weekly trash collection will be charged according to equipment and manpower usage.

(b) The department shall maintain complete and accurate records of the costs and expenditures for providing waste collection services, and shall provide the city manager and the city commission with periodic statements and reports showing such costs and expenditures. The city commission shall make periodic adjustment of the fees, assessments and charges for waste collection and disposal services in accordance with the cost analysis of providing such services.
(Ord. No. 10128, § 1, 7-10-86; Ord. No. 11184, § 8, 10-27-94; Code 1980, § 22-24; Ord. No. 12258, § 2, 7-25-02)

Sec. 22-88. Payment of waste fees.

(a) All payment of waste fees shall be payable in advance on or before the due date annually based on the method deemed most appropriate and cost effective by the city manager. In the event that payment of said waste fees is by check made payable to the city and said check is returned by the bank due to insufficient funds or any other reason not the fault of the bank or the city, a charge of $20.00 shall be added to the waste fee due to cover administrative costs incurred by the city. In addition, late charges and interest on past due accounts shall be charged as provided in this chapter.

(b) The finance director shall give notice to the owner of the property at the owner's last known mailing address, as disclosed by city records or by the county tax rolls, or at the property's address, or upon any occupant thereof. If the address of the owner is unknown to the finance director, and if the property is unoccupied and the owner thereof has no agent or employee available for service of such notice, the posting of a notice upon such property by the finance director shall constitute and be sufficient notice to the owner thereof. All methods of giving notice as provided for herein are cumulative and independent of the other, and the finance director may use one or all of the same as the finance director may deem necessary.
(Ord. No. 10128, § 1, 7-10-86; Ord. No. 11184, § 9, 10-27-94; Code 1980, § 22-26; Ord. No. 11276, § 2, 7-13-95)

Sec. 22-89. Waste and right-of-way cleaning fees shall constitute special assessment liens against all improved real property.

(a) Except as otherwise provided by this chapter, all owners of improved real property in the city are required to have accumulations of garbage, bulky waste, and solid waste removed by the department, and for such governmental service of garbage, bulky waste and solid waste collection, or the availability of such service, all such improved real property shall be liable for the payment of the waste and right-of-way cleaning fees set forth in this chapter. All such fees becoming due and payable on and after January 1, 1983, shall constitute, and are hereby imposed as, special assessment liens against the real property aforesaid, and until fully paid and discharged, or barred by law, shall remain liens equal in rank and dignity with the lien of city and county ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved. Such fees shall become delinquent if not fully paid within 60 days after

the due date. Total outstanding balance for delinquent fees and related charges shall bear an interest charge of one percent per month, on any and all of the outstanding balance of such fees due, and if not fully paid with all accrued interest by the due date of the next succeeding waste fee payment, will continue to accrue interest at the rate of one percent per month. Unpaid and delinquent fees, together with accrued interest, shall remain and constitute special assessment liens against the real property involved. Such special assessment liens for waste and right-of-way cleaning fees and interest and costs may be enforced by any of the methods provided in F.S. ch. 85, or in the alternative, foreclosure proceedings may be instituted and prosecuted under the provisions of F.S. ch. 173, or the collection and enforcement of payment thereof may be accomplished by any other method authorized by law. The owner and/or operator shall pay all costs of collection, including reasonable attorney fees, court costs, and abstracting and related lien expenses imposed by virtue of this chapter.

(b) (1) Except as otherwise provided by this chapter, all waste fees due and unpaid for the period from January 1, 1981, until December 31, 1982, shall constitute special assessment liens against all improved real property for which waste collection and disposal services were provided or made available.

(2) Except as otherwise provided by this chapter, all waste fees due and unpaid for the period from March 1, 1980, until January 1, 1981, shall constitute special assessment liens against all improved real property for which waste collection and disposal services were provided or made available, unless the present owner and record title holder of the particular real property involved shall fully pay all waste fees maturing since such owner acquired title, including current waste fees, and shall file with the finance department a verified statement showing that the property involved was purchased in good faith for valuable consideration and that a transfer of title was not accomplished for the purpose of avoiding payment of delinquent waste fees, on a date subsequent to March 1, 1980, and giving the full and correct legal description and street address of the property involved, and the name and address of the former owner, if known, and such other information as may be reasonably required by the finance department. Thereupon, such present owners shall be required to pay such waste fees for the period from March 1, 1980, until January 1, 1981, during which period they were the record title holders of the property involved, and current waste fees. Provided further, that waste fees becoming due and unpaid prior to January 1, 1981, shall constitute special assessment liens only if the finance department shall cause to be filed in the office of the clerk of the circuit court of Dade County, Florida, on or before December 31, 1983, a notice of lien or statement showing a legal description of the real property against which the lien is claimed and its location by street and number, and the name of the owner as reflected by the records of the finance department, and an accurate statement of the total amount of unpaid and delinquent waste fees claimed to be due as of January 1, 1981, and a copy of such notice of lien shall be mailed to the owner of the property involved, as shown by the records of the finance department. Such notices of liens shall be filed in a special waste lien docket book maintained by the clerk of the circuit court for such purpose, which shall contain such liens as have been filed. In the event the department fails to file a notice of lien as aforesaid on or before December 31, 1983, no special assessment lien shall exist for any waste fees becoming due prior to January 1, 1981. Such liens, if filed, may be discharged and satisfied by payment to the city of the aggregate amounts specified in the notice of liens together with interest thereon from the date of filing of the lien computed at the rate of 18 percent per annum, together with the

administrative costs, filing and recording fees. When any such lien has been fully paid or discharged, the finance department shall promptly cause evidence of the satisfaction and discharge of such lien to be entered in said waste lien docket book. Delinquent waste fees accruing during the period from March 1, 1980, until January 1, 1981, shall not in any event become special assessment liens against improved real property unless the finance department shall comply with the requirements of this paragraph (2), subsection (b). Where the record title to improved real property was acquired after March 1, 1980, and prior to January 1, 1981, in good faith for good and valuable consideration and not for the purpose of avoiding payment of delinquent waste fees, the present owner and record title holder of the involved property shall be liable only for waste fees due for the time period within which the record title was acquired and subsequent periods. Where the record title is so acquired after January 1, 1981, and prior to the filing of the notice of lien or statement required under the provisions of this paragraph (2) of subsection (b), the property shall not be liable for any delinquent waste fees accruing to January 1, 1981. In such instances, the former record title holder shall be personally liable for the delinquent waste fees, and not the property.

(c) (1) Where property owners have paid delinquent waste fees for which they are not liable, a refund or credit, if presented within the time period permitted by Florida Statutes, shall be given for such payments in accordance with the provisions of this subsection upon written request and delivery of all receipts evidencing payment of the delinquent waste fees for which a refund or credit is sought. It shall be the duty and responsibility of the record title holder to furnish the finance department with the information required by this subsection in order to release the property from liability for such delinquent waste fees.

(2) Any person, firm, corporation or legal entity, other than the present owner of the property involved, who pays any herein listed special assessment liens shall be entitled to receive an assignment of the lien held by the city and shall be subrogated to the rights of the city in respect to the enforcement of such lien.

(3) The finance department is authorized and directed to execute and deliver, upon request, written certificates certifying the amount of waste fees due upon any parcel of real property subject to payment of waste fees, or certifying that no waste fees are due, which certificates shall be binding upon the city. The finance department shall make rules and regulations prescribing procedures governing the administration of the provisions of this chapter and providing procedures for the payment of waste liens in periodic installments and the cancellation of waste liens, which rules and regulations when approved by resolution of the city commission and filed in accordance with the requirements of this chapter shall have the force and effect of law.

(Ord. No. 10128, § 1, 7-10-86; Ord. No. 10371, § 4, 1-14-88; Ord. No. 10475, § 1, 9-8-88; Ord. No. 10600, § 1, 7-13-89; Code 1980, § 22-28)

Sec. 22-90. Waste fee receipts.

Receipts evidencing the payment of waste fees, in such form as may be approved by the finance director, shall be retained by the occupant of the premises covered thereby, and shall be exhibited upon demand of any employees of the finance department. Failure to exhibit such receipt upon demand shall constitute a violation of this chapter.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-29)

Sec. 22-91. Multiple occupancy of premises.

A commercial establishment and a residential establishment under the same ownership located

in separate buildings on the same parcel of property in which the owner has a separate collection point for residential and commercial solid waste shall have the option of having separate collection points, in which case the refuse for the residential portion may be billed as a residential account. The commercial refuse shall be the responsibility of a private hauler commercial account. Cans must be separated on multiple occupancy properties and placed in separate locations. Cans must be marked for separate identification.
(Ord. No. 10128, § 1, 7-10-86; Ord. No. 11184, § 10, 10-27-94; Code 1980, § 22-30)

Sec. 22-92. Certain exemptions from payment of waste fees.

Commercial establishments actually employing and using the services of a private waste collector holding a valid franchise provided for in article II of this chapter shall not be liable for the payment of waste fees otherwise required to be paid hereunder so long as such employment and use continues.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-31; Ord. No. 12258, § 2, 7-25-02)

Sec. 22-93. Enforcement and administrative fees.

(a) The director of solid waste, or designee, shall have the authority to initiate enforcement proceedings, against any person, franchisee, firm, corporation or other legal entity who has not strictly complied with the provisions of this chapter.

(1) If an inspector finds a violation of this chapter, a violation shall be issued pursuant to section 2-814 and/or section 2-823 of this Code. Enforcement pursuant to chapter 2 does not preclude enforcement pursuant to any other means allowable by law.

(2) A non-franchisee roll-off/container shall be subject to seizure and impoundment. Written notice of the department's intent to seize the roll-off/container shall be posted to the roll-off/container which is subject to seizure and impoundment. The department shall not seize any roll-off/container within 24 hours from the posting of the written notice. In addition to posting notice, the department shall also provide written notice of such seizure and impoundment to all persons or other legal entities who have a legal interest in the subject roll-off/container by certified mail, return receipt requested, within 24 hours of posting notice. The written notice shall include the following:

a. The name of the city department or division issuing such notice.

b. The date upon which the notice was issued.

c. The date that the notice was posted to the roll-off/container.

d. The section number of the City Code or ordinance that has been violated.

e. Notice that the department will seize and impound the roll-off/container in the event that the roll-off/container is not removed from the premises within 24 hours from the date of the posting of the written notice.

f. Notice of the right to request a preliminary hearing, pursuant to section 22-94, to contest the seizure and impoundment of the roll-off/container.

g. Notice of the right to request a preliminary hearing, pursuant to section 22-94, to contest the seizure and impoundment of the roll-off/container and immediately retrieve the roll-off/container from the department upon the posting with the department a cash bond in the amount of $500.00, plus costs incurred by the department.

h. Notice of the right to waive the preliminary hearing and immediately retrieve the roll-off/container from the department upon

the payment of a $500.00 administrative penalty, plus costs incurred by the department.

i. Notice that the failure to request a preliminary hearing within ten days after the notice was mailed shall constitute a waiver of the right to a preliminary hearing pursuant to section 22-94.

A roll-off/container that has been seized and impounded, which has not been returned to the owner or interested party by virtue of a preliminary hearing, final hearing, appeal, or payment of an administrative penalty, shall become the property of the city.

(3) The department is authorized to seize and impound a roll-off/container, after the 24-hour notification, in the event the department determines that said roll-off/container constitutes a public nuisance and poses a health and safety concern. Written notice of the department's action shall be posted at the site where the roll-off/container was located. In addition to posting notice, the department shall also provide written notice of such seizure and impoundment to all persons, firms, corporations, or other legal entities, whom the department knows, or with reasonable investigation should know, to have a legal interest in the subject roll-off/container by certified mail, return receipt requested, within 24 hours of posting notice. The written notice shall include the following:

a. The name of the city department or division issuing such notice.

b. The date upon which the notice was issued.

c. The date that the notice was posted at the location where the roll-off/container was found.

d. The section number of the City Code or ordinance that has been violated.

e. Notice of the right to request a hearing, pursuant to section 22-94, to contest the seizure and impoundment of the roll-off/container.

f. Notice of the right to request a hearing, pursuant to section 22-94, to contest the seizure and impoundment of the roll-off/container and immediately retrieve the roll-off/container from the department upon the posting with the department a cash bond in the amount of $500.00, plus costs incurred by the department.

g. Notice of the right to waive the hearing and immediately retrieve the roll-off/container from the department upon the payment of a $500.00 fine, plus costs incurred by the department.

h. Notice that the failure to request a hearing within ten days after the notice was mailed shall constitute a waiver of the right to a preliminary hearing pursuant to section 22-94.

A roll-off/container that has been seized and impounded, which has not been returned to the owner or interested party by virtue of a preliminary hearing, final hearing, appeal, or payment of an administrative penalty, shall become the property of the city.

(b) Appointment and qualifications of sanitation inspectors, powers and duties.

(1) The city manager is hereby authorized to designate and appoint, as sanitation inspectors, certain city employee(s), normally trained and assigned to inspection functions for the purpose of enforcing this chapter and the rules and regulations pertaining thereto.

(2) Sanitation inspectors shall have the following qualifications:

a. A high school diploma or its equivalent.

b. Satisfactory completion of a course of at least 40 hours' duration pertain-

ing to the duties of sanitation inspectors, which course shall be jointly given by the directors of the city police department, department of general services administration, department of resilience and public works, law department and other relevant departments.

c. Approval and certification by the city police chief as persons of good moral character and standing in the community suited by temperament and learning to be sanitation inspectors of the city.

(3) Sanitation inspectors shall, while on duty:

a. Issue notices of noncompliance and perform such other acts pursuant to section 22-5(b) for enforcement of this chapter.

b. Perform such additional duties as may be prescribed by ordinance or by administrative orders, regulations and directives as may be issued by the city manager.

(4) Sanitation inspectors shall be identified either by special uniform or badge or both. Sanitation inspectors shall not carry firearms.

(c) Obstructing sanitation inspector in the performance of duties.

(1) Whoever opposes, obstructs, or resists the sanitation inspector or other person authorized by the sanitation inspector, in the discharge of his or her duty, as provided in this section, shall be guilty of a violation of this chapter, and, upon conviction thereof, shall be punished as provided in section 1-13.

(2) Sanitation inspectors shall notify the city police department immediately when in their judgment an arrest or forcible restraint becomes the appropriate response to a situation.

(d) Civil penalties assessed pursuant to this article are due and payable to the city on the last day of the period allowed for the filing of an administrative hearing before a hearing officer, or if proper appeal is made, when the appeal has been finally decided adversely to the named violator. The amount of such penalty assessed shall constitute and is hereby imposed as a lien against the subject property with equal rank and dignity of any other special assessment liens. Penalties for violations of the provisions of this article shall be assessed in accordance with the minimum administrative fee schedule as set forth below:

Acts/Conditions of Noncompliance	*Fee*	*Section (Subsection)*
1st offense:	$262.50	22-46(b) and 22-47(6)
2nd offense:	500.00	22-46(b) and 22-47(6)
Each additional offense:	1,050.00	22-46(b) and 22-47(6)
Container(s), Garbage/Trash/Industrial/other waste placed on public rights-of-way (Residential 1st offense, tag; 2nd offense, tag and warning; 3rd offense, Fine). Commercial 1st offense, $262.50; 2nd offense and thereafter, $525.00.	262.50	22-2(e) 4404
Residential and/or commercial dumpster(s) not kept in approved garbage enclosure	158.00	22-2(f)
Failure of commercial property to have adequate Solid Waste contract for service, 1st offense, $262.50; 2nd offense and thereafter, $525.00.	262.50	22-14(b) 4406
Failure of Commercial Hauler/Solid Waste of intent to discontinue service, 1st offense, $75.00; 2nd offense, $150.00; 3rd offense, $250.00.	75.00	22-2(a) 4435
Commercial container violation (construction, placement, accessibility, not screened from public view) 1st offense, $75.00; 2nd offense, $150.00; any additional offenses, $300.00.	75.00	22-2(c) 1-4 4401
Failure to remove raw or processed organic waste matter from food service establishment, 1st offense, $262.50; 2nd offense and thereafter, $525.00.	262.50	22-2(b) 4432

Acts/Conditions of Noncompliance	*Fee*	*Section (Subsection)*
Failure to maintain property/adjoining public areas, easements, alleys free of industrial Bulky Waste, Garbage, Trash or other waste, or failure to mow grass to curbside (residential, $75.00), commercial 1st offense, $75.00; 2nd offense, $150.00; 3rd offense, $250.00.	75.00	22-5(a) 22-9 4410
Failure to properly mark container	52.50	22-2(f) 4409
Disposal of trash or other waste materials placed in right-of-way at other than authorized time	79.00	22-18(b) 4419
Illegal dumping by a person or business	500.00	22-11
Littering	500.00	22-6(l)
Illegal dumping from any commercial vehicle	500.00	22-11 4411
Illegal dumping of waste tires (per tire)	500.00	22-11 4408
Unauthorized bulky waste on right-of-way	79.00	22-18(b)
Garbage not containerized	79.00	22-8(1)
Sunken containers in ground of property	105.00	22-2(c)(4)
Operating a Commercial Solid Waste vehicle without a valid registration	262.50	22-50 4423
All other Chapter 22 violations, 1st offense, $262.50; 2nd offense, $525.00; 3rd offense, $1,050.00.	262.50	ch. 22
Failure of franchisee to remove container(s) from discontinued accounts	79.00	22-2(b)
Failure of commercial property to have sufficient service, 1st offense, $262.50; 2nd offense, $525.00.	262.50	22-2(b) 4434
Engaging in commercial solid waste collection without city Franchise Agreement, each offense, $500.00; and all equipment subject to seizure and impoundment procedures as set forth in section 22-93	500.00	22-6(e) and 22-46
Failure of commercial Solid Waste hauler to properly identify equipment/container, 1st offense, $262.50; 2nd offense, $525.00.	262.50	22-52 4402
Failure of commercial Solid Waste hauler to provide Recycling program, 1st offense, $262.50; 2nd offense, $525.00; 3rd offense, $1,050.00.	262.50	22-20 and 22-93
Failure of property owner to provide Recycling program, 1st offense, $262.50; 2nd offense, $525.00; 3rd offense, $1,050.00.	262.50	22-20 and 22-93

(e) If the owner, agent, or occupant of any property within the city shall fail to comply with any determination of the city manager, or his/her designee, the director shall cause such work to be done and shall keep an accurate accounting of the costs thereof, whereupon the amount of such costs and the interest thereon shall constitute and is hereby imposed as a lien against the subject property with equal rank and dignity of any other special assessment liens. An aggrieved party may appeal both the fees and costs imposed under this section to a court of competent jurisdiction in accordance with the Florida Rules of Appellate Procedure.

(f) Failure by an occupant of any commercial property other than multifamily residential property to comply with the regulations set forth in this chapter shall cause the city to revoke the certificate of use and local business tax receipt for said business.

(g) In addition to any other remedies provided by this chapter or any other city ordinance, the director and the director of the department of resilience and public works shall have judicial remedies available to them for violations of this chapter or any other lawful rule or regulation promulgated hereunder as enumerated below but not limited to:

(1) They may institute a civil action in a court of competent jurisdiction to establish liability and to recover damage for any costs incurred by the city in conjunction with the abatement of any condition prohibited by the provisions of this chapter.

(2) They may institute a civil action in a court of competent jurisdiction to seek

injunctive relief to enforce compliance with the terms of this chapter or any rule or regulation promulgated hereunder, to enjoin and prohibit said violation or to compel the performance of actions which will result in compliance with the terms of this chapter.

(h) These remedies are cumulative and the use of any appropriate remedy shall not constitute an election of remedies by the departments. The use of one remedy shall not preclude the use of any others.

(i) The city may enforce all violations of this chapter before the code enforcement board or through any other legal remedy available at law.

(j) Exemption for residential properties (transect zones T3, T4R, T5R and T6R). Any property owner who has been cited pursuant to this chapter shall have their citation voided if the following criteria are met:

(1) Proof of complaint to 311 or their city commissioner district office at the time the illegal dumping became known, with photographic or other evidence if possible; and

(2) A review by the director of the city department who issued the citation, or their designee, which determines that the property in question was the site of illegal dumping by a party unrelated to the property owner.

(k) Penalties for prohibited disposition and raking of yard waste, dirt or debris when raking or using leaf blowers. A violation of section 22-23 of the City Code shall be punishable as follows:

(1) First violation within a six-month period: Warning, no fine;

(2) Second violation withing a six-month period: $100.00 fine;

(3) Third or subsequent violation within a six-month period: $200.00 fine per incident.

The fine shall be issued to the individual performing the raking or using the leaf blower in violation of section 22-23 of the City Code, inclusive of property owners. However, should the individual violating section 22-23 of the City Code be acting in the scope of their employment by a contractor, landscaper, homeowners' association, or other entity, that entity will receive the fine, not the individual employee.

(Ord. No. 10128, § 1, 7-10-86; Ord. No. 10535, § 2, 1-12-89; Ord. No. 11184, § 11, 10-27-94; Code 1980, § 22-32; Ord. No. 11352, § 5, 4-25-96; Ord. No. 11703, § 15, 9-28-98; Ord. No. 11837, § 2, 9-28-99; Ord. No. 12258, § 2, 7-25-02; Ord. No. 12400, § 2, 9-11-03; Ord. No. 12599, § 2, 10-14-04; Ord. No. 12835, § 2, 10-12-06; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13142, § 9, 2-11-10; Ord. No. 13194, § 2, 9-27-10; Ord. No. 13317, § 2, 3-8-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13693, § 2, 7-13-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14017, § 3, 9-13-21; Ord. No. 14141, § 2, 2-9-23; Ord. No. 14172, § 3, 5-25-23)

Sec. 22-94. Hearings.

(a) The owner, or authorized representative, of a roll-off/container that has been seized and impounded pursuant to subsections 22-93(a)(2) or 22-93(a)(3) of this chapter, may file a written request with the department of hearing boards for a preliminary hearing within ten days from the date the department's notice is mailed.

(1) The hearing shall be scheduled before a special master of the city within ten days of receipt of the written request, excluding Saturdays, Sundays, and legal holidays.

(2) At the hearing, the city shall have the burden to show that probable cause existed to believe that the roll-off/container constituted a public nuisance under chapter 22 of the City Code and was subject to seizure and impoundment pursuant to subsection 22-93(a)(2). If the roll-off/container was immediately seized and impounded pursuant to subsection 22-93(a)(3), the city shall have the burden of showing that probable cause existed to believe that the roll-off/container constituted a public nuisance under chapter 22 of the City Code and posed a health and safety concern.

(3) The formal rules of evidence shall not apply at the hearing and hearsay and circumstantial evidence is admissible.

(4) If, after the hearing, the special master determines that the city has met its burden, as set forth by subsection (a)(2), the special master shall order the continued impoundment of the roll-off/container, if applicable, and set the date for a final hearing. The owner, or authorized representative, may immediately retrieve the roll-off/container from the department upon the posting of a cash bond with the department in the amount of $500.00 without impairing the right to a final hearing.

(5) If, after the hearing, the special master determines that probable cause did not exist, the roll-off/container shall be released forthwith to the owner, or authorized representative, without the imposition of the administrative civil penalty. If the owner, or authorized representative, has already posted a bond for the immediate release of the roll-off/container, the bond shall be refunded to the owner or authorized representative.

(b) The final hearing shall be scheduled and held, unless continued by order of the special master, no later than 30 days after the date that the roll-off/container was seized and impounded. At the final hearing, the city shall have the burden of showing by clear and convincing evidence that the roll-off/container constituted a public nuisance under chapter 22 of the City Code. If the roll-off/container was seized and impounded pursuant to subsection 22-93(a)(3), then the city must also show by clear and convincing evidence that the roll-off/container posed a health and safety concern. If, after the hearing, a finding is made that the roll-off/container was properly impounded and seized, then the special master shall enter an order finding the owner of the roll-off/container civilly liable to the city for an administrative civil penalty of up to $500.00, as outlined in subsections 22-93(a)(2)h. or 22-93(a)(3)g., plus costs incurred by the department. If, after the hearing, a finding is made that the city did not meet its burden of proof as set forth in this subsection, the roll-off/container shall be returned to the owner along with any cash bond posted.
(Ord. No. 13317, § 2, 3-8-12)

Sec. 22-95. Appeal.

The city or the owner of the roll-off/container that has been the subject of a seizure and impoundment pursuant to subsections 22-93(a)(2) or 22-93(a)(3) may, after a hearing pursuant to section 22-94, appeal the final ruling and decisions of the special master to the appellate division of the circuit court of the Eleventh Judicial Circuit of Miami-Dade County, Florida, within 30 days of the date of the final order being appealed. The city may charge the appellant a reasonable fee for preparation of the record for purposes of making the appeal.
(Ord. No. 13317, § 2, 3-8-12)

Secs. 22-96—22-112. Reserved.

ARTICLE IV. MAINTENANCE OF LOTS*

Sec. 22-113. Intent.

The purpose of this article is to protect the public health, safety and welfare by:

(1) Establishing a program for identification and registration of vacant lots.

(2) Establishing the responsibilities of owners of lots.

(3) Providing for administration, enforcement and penalties.

(4) Allowing the city police department to enforce the trespassing penalties described in F.S. § 810.08 on lots.

(5) Providing a fair, equitable, and efficient method of allocating and apportioning the assessed service costs, which constitute

*__Editor's note—__Ord. No. 13044, § 2, adopted December 11, 2008, amended article IV, §§ 22-116—22-118 in its entirety to read as herein set out. Formerly, article IV pertained to lot clearing, and derived from the Code of 1980, §§ 22-36, 22-37; Ord. No. 10128, § 1, adopted July 10, 1986; Ord. No. 11746, § 1, adopted January 12, 1999.

a special benefit to residential and commercial properties, among property owners within the city.

(Ord. No. 13044, § 2, 12-11-08)

Sec. 22-114. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purpose of this article, have the meanings indicated in this section:

Owner means any person, legal entity or other party having any ownership interest in real property, including but not limited to, owners identified on the vacant lot registration form; or a purchaser, devisee, lessee, fiduciary, or holder of an unrecorded deed. This term shall also apply to any person, legal entity or agent responsible for the construction on or maintenance of the lot involved, as well as any person, legal entity or agent authorized to initiate a foreclosure or collection proceeding against the property, whether or not such proceeding has in fact been initiated. This term shall not apply to the city.

Structure means a structure or building as defined by the Florida Building Code.

Vacant lot means a lot, tract, or other parcel of land in the city that does not have a structure or building on the land.

(Ord. No. 13044, § 2, 12-11-08)

Sec. 22-115. Registration.

(a) Every owner of a vacant lot shall, at no cost to the owner, register said vacant lot with the city. Such registration shall include:

(1) A description of the lot including address, legal description, and folio number;

(2) The names, addresses, and contact numbers of the owner, or agents, that can be contacted within 24 hours; and

(3) Written consent by the owner allowing the city police department to enforce the trespassing penalties described in F.S. § 810.08.

(b) This registration must be done upon any transfer of the property and every October 1st thereafter.

(c) Failure to comply with the requirements of this section shall subject the owner to code enforcement action, pursuant to F.S. § 162.06 and chapter 2, article 10, as amended and specifically section 2-814.

(Ord. No. 13044, § 2, 12-11-08)

Sec. 22-116. Prohibitions.

It shall be unlawful for the owner or any other persons in possession of any lot, tract, or other parcel of land in the city, improved or unimproved, to allow on any lot, tract, or parcel of land within the city to such an extent that it constitutes a menace to life, property, the public health, public welfare or creates a fire hazard the accumulation of any of the following: solid waste, biological, hazardous or industrial waste, as described herein; tires; stagnant water; a dense growth of trees, vines and underbrush; or to allow a growth of grass, weeds or bushes over one foot in height; or to allow the existence of depressions or excavations wherein water may accumulate. Any owner of any lot, tract or parcel of land in the city who violates any provision set forth in this article shall, upon conviction thereof, be punished as provided by law.

(Ord. No. 13044, § 2, 12-11-08)

Sec. 22-117. Lot clearance; failure to comply; notice to owner.

(a) The owners or agents of all rental units, including multiple apartments, and the owners of all structures, either residential or commercial, shall be responsible at all times for keeping their premises clean and free from all trash and litter, including the sidewalks and swales on which the buildings or lands front. It shall be the duty of all owners of lots, parcels and tracts of land within the city to keep such property in a safe clean and presentable condition, and to remove therefrom all garbage, surplus grass, saplings, weeds and other growths, and all trash, and to fill in all excavations and depressions thereon, and to limit the growth of grass, weeds, or bushes to no more than 12 inches in height.

(b) In the event the owners of lots, tracts or parcels of land within the city fail or refuse to keep such property in a safe, clean and presentable condition, the code enforcement inspector shall provide notice to the owner that the owner has committed a violation of this chapter and shall establish a reasonable time period within which the owner must correct the violation.

(c) The code inspector, as defined in section 2-811, shall give the notice by registered or certified mail to the owner of the property at the owner's last known mailing address, as disclosed by the city records or by county tax rolls, or at the property's street address, or upon any occupant thereof, or upon any agent or employee of the owner thereof. Said notice shall be deemed sufficient when so addressed and deposited in the United States mail with proper postage prepaid. If the address of the owner is unknown to the code inspector, as defined in section 2-811, and if the property is unoccupied and the owner thereof has no agent or employee available for service of such notice, the posting of a notice upon such property by the code inspector, as defined in section 2-811, shall constitute and be sufficient notice to the owner thereof. All methods of giving notice as provided for herein are cumulative and independent of the other, and the code inspector, as defined in section 2-811, may use one or all of the same as may be deemed necessary. The notice shall include an opportunity for a hearing as provided in section 22-93.

(d) In the event the owner of any lot, parcel or tract of land shall fail to remove therefrom all surplus grass, saplings, weeds, trash or garbage, or fail to fill in all excavations and depressions thereon, or allow the growth of grass, weeds, or bushes to exceed 12 inches in height after notice has been given by the code inspector, as defined in section 2-811, the city may clean or cause to be cleaned such lot, tract or parcel of land and place it in a safe and sanitary condition.

(e) Any actions taken by the city to bring a lot into compliance does not create a continuing obligation on the part of the local governing body to maintain the lot and does not create any liability against the local governing body for any damages to the property if such actions were completed in good faith.

(f) Vacant lots that are not maintained in a clean and sanitary manner and are in repeated violation of this section shall be subject to the city's Continual Maintenance Program ("CMP") and shall be notified of such by certified mail and posting on the property. The CMP will allow city employees and/or vendors to enter upon the vacant land for maintenance and lot clearing purposes after due notice is provided.
(Ord. No. 13044, § 2, 12-11-08; Ord. No. 13647, § 2, 11-17-16)

Sec. 22-118. Cost of clearing as lien on property—collection, foreclosure and sale.

(a) In case the work is done or caused to be done by the city, the code inspector, as defined in section 2-811, shall keep an itemized accounting of expenses of the work done and the cost thereof including an administrative charge of $150.00 and mail the statement to the owner of the property. The owner shall have ten days from the date the request for payment has been served to appeal the lot clearing process and/or the amount of the expenses and costs. If the statement is not paid or appealed within ten days, the amount shall bear interest at the maximum statutory rate allowable by law until paid. Such amounts, together with all penalties imposed thereon, shall constitute, and are hereby imposed as special assessment liens against the real property aforesaid, and until fully paid and discharged, or barred by law, shall remain liens equal in rank and dignity with the line of city and county ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved. Such liens shall be enforced by any of the methods provided in F.S. ch. 86 or, in the alternative, foreclosure proceedings may be instituted and prosecuted under the provisions applicable to practice, pleading and procedure for the foreclosure of mortgages on real estate set forth in state statutes, or may be foreclosed pursuant to F.S. ch. 173, or the collection and enforcement of payment thereof may be accomplished by any

other method authorized by law. The payment of all costs of collection, including reasonable attorney's fees, penalties, administrative charges, and lien amounts is required before said lien shall be discharged or satisfied. All delinquent liens may be offered for sale at the annual lien sale of the city next following the date of delinquency as provided by law. Costs associated with CMP lot maintenance and lot clearing will be considered as a special assessment on the property as with all other lot clearing and maintenance expenses pursuant to F.S. § 170.201 and F.S. ch. 173.

(b) This notice will be the only notice given within a one-year period of time. Any subsequent violations occurring under this section shall be remedied by the city without further notice.

(c) The filing of an appeal from the city's determination of the need for lot clearance by the city shall not delay action by the city as described in section 22-117. The hearing will be conducted in accordance with the procedures set forth in section 22-93.4.

(d) The notice shall be in substantially the following form:

Date: _____

Name of owner: _____

Address of owner: _____

As the registered property owner per Miami-Dade County tax rolls of the above described property, you are hereby notified that an inspection discloses that you are in violation of the Code of the City of Miami, Florida, as amended, Sections 22-116 through 22-118 because (state why property is in violation.)

Chapter 22, Garbage and Other Solid Waste, of the Code of the City of Miami, Florida, as amended requires that your property be kept in a safe, clean condition, not allowing the accumulation of any of the following: solid waste, biological, hazardous or industrial waste, as defined herein, tires, stagnant water; a dense growth of trees, vines and underbrush; or to allow a growth of grass, weeds or bushes over one foot (1 ft.) in height; or to allow the existence of depressions or excavations wherein water may accumulate on any lot, tract or parcel of land within the City to such an extent that it constitutes a menace to life, property, the public health, and public welfare or creates a fire hazard.

You are directed to correct said violation within _____ (_____) days of receipt of this notice and to notify this office that the violation has been corrected. Failure to do so will cause the City to clean the property therefore imposing a special assessment lien against the property including the payment of all costs of collection, penalties, lien amounts and administrative fees. The City may also exercise the option of foreclosure on your property.

This notice, which shall be recorded in the official records of Miami-Dade County will be the only notice given to you in a period of one (1) year from this date. Any other violations occurring under this section shall be remedied by the City without further notice. City of Miami Code Enforcement Official.

(Ord. No. 13044, § 2, 12-11-08; Ord. No. 13647, § 2, 11-17-16)

Sec. 22-119. Exemptions.

This article shall not apply to any lots protected by federal, state, or local law or any lots owned by the federal government, state government, Miami-Dade County, or the city.

The requirement that all subcontractors have and maintain city franchises shall not apply during a declared state of emergency pursuant to the provisions of chapter 45 of the City Code, as amended.

(Ord. No. 13044, § 2, 12-11-08; Ord. No. 13889, § 2, 1-23-20)

Sec. 22-120. Alternative procedures.

Nothing in this chapter shall be deemed to preempt existing remedies of the city authorized under existing law.

(Ord. No. 13044, § 2, 12-11-08)

Secs. 22-121—22-145. Reserved.

ARTICLE V. REMOVAL OF ABANDONED PROPERTY*

Sec. 22-146. Removal from private property.

(a) It shall be unlawful to park, place, store or leave any abandoned property on private property in the city, unless it is in connection with a purpose or business enterprise lawfully situated and licensed; any article of abandoned property parked and/or stored in connection with a legitimate business enterprise shall be parked and/or stored in complete compliance with the city's zoning ordinance.

(b) Whenever the code inspector, as defined in section 2-811, shall ascertain that an article or articles of abandoned property are present on private property within the limits of the city in violation of the zoning ordinance or regulation, the antilitter ordinance or regulation, or other similar ordinance or regulation of the city, the enforcement officer shall cause a notice to be placed upon such article in substantially the following form:

> NOTICE TO THE OWNER AND ALL PERSONS INTERESTED IN THE ATTACHED PROPERTY. This property, to wit: (setting forth brief description) located at (setting forth brief description of location) is improperly stored and is in violation of (setting forth ordinance or regulation violated) and must be removed within ten days or, if the property is a boat, 30 days from date of this notice; otherwise it shall be presumed to be abandoned property and will be removed and destroyed by order of _____ (enforcement officer) unless a request for hearing as provided in Code of the City of Miami section 22-93 is filed by owner with the enforcement officer within the specified timeframe for removal of the property as set forth herein, thereby staying the enforcement officer's action pending the outcome of the hearing. If no hearing is requested the property will be removed and destroyed. If the property is a motor vehicle or boat, the owner will be liable for the costs of removal and destruction. Dated this: (setting forth date of posting of notice). Signed: (setting forth name, title, address and telephone number of enforcement officer).

(c) Such notice shall not be less than eight inches by ten inches and shall be sufficiently weatherproof to withstand normal exposure to the elements for a period of ten days. In addition to posting the notice, and on or before the date of posting, the enforcement officer shall make a reasonable effort to ascertain the name and address of the owner. If such is reasonably available to the officer, he/she shall mail a copy of such notice to the owner on or before the date of posting. If the property is a motor vehicle as defined in F.S. § 320.01(1) or a vessel as defined in F.S. § 327.02(27), the law enforcement agency shall contact the state department of highway safety and motor vehicles or the state department of environmental protection, respectively, in order to determine the name and address of the owner and any person who has filed a lien on the vehicle or vessel as provided in F.S. § 319.27(2) or (3) or F.S. § 328.15(1). On receipt of this information, the enforcement agency shall mail a copy of the notice by certified mail, return receipt requested, to the owner and to the lienholder, if any.

(d) If, at the end of ten days or if the property is a boat, at the end of 30 days after posting such notice, the owner or any person interested in the abandoned article described in such notice has not removed the article and has not requested a hearing in compliance with the ordinance or regulation cited in the notice, the enforcement officer may cause the article of abandoned property to be removed and destroyed. The salvage value, if any, of such article shall be retained by the city to be applied against the cost of removal and destruction thereof, unless the costs of removal and destruction are paid by the owner as provided in section 22-147 hereof, in which case the salvage value may be deposited in the city's general fund.

(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-40; Ord. No. 13676, § 2, 4-27-17)

*__State law reference—__Junked, abandoned property on public property, F.S. § 705.101 et seq.

Sec. 22-147. Owner responsible for costs of removing abandoned property.

The owner of any abandoned motor vehicle or boat who, after notice as provided in this section, does not remove the vehicle or boat within the specified period shall be liable to the city for all costs of removal and destruction of such property, less any salvage value received by the city. Upon such removal and destruction, the enforcement officer shall notify the owner of the amount owed and of the penalty provisions of this section. In the case of an abandoned boat, any person who neglects or refuses to pay such amount shall not be entitled to be issued a certificate of registration for any boat until such costs have been paid. The enforcement officer shall supply the state department of environmental protection with a list of persons whose boat registration privileges have been revoked under this section. In the case of an abandoned motor vehicle, any person who neglects or refuses to pay such amount shall be subject to a fine of $100.00.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-41)

Sec. 22-148. Obstruction of enforcement officer.

Whoever opposes, obstructs, or resists any enforcement officer, or any person authorized by the enforcement officer, in the discharge of his/her duties as provided in this section, upon conviction, shall be punished as provided by law.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-42; Ord. No. 13676, § 2, 4-27-17)

Sec. 22-149. Enforcement officer immune from prosecution.

Any enforcement officer, or any person authorized by the enforcement officer, shall be immune from prosecution, civil or criminal, for reasonable, good faith trespass upon real property while in the discharge of duties imposed by this chapter.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-43)

Sec. 22-150. Enforcement officers designated.

The designated enforcement officers for the purpose of enforcing the provisions of this article are the city manager, the chief of police, the director of the department of general services administration and the director of the department of planning, building and zoning or their designees and the code inspectors as defined in section 2-811.
(Ord. No. 10128, § 1, 7-10-86; Code 1980, § 22-44)

Secs. 22-151—22-160. Reserved.

ARTICLE VI. DONATION COLLECTION BINS

Sec. 22-161. Donation bins prohibited.

(a) *Generally.* It shall be unlawful to deposit, store, keep or maintain or to permit to be deposited, stored, kept or maintained a donation collection bin in or on any lot, parcel or tract of land or body of water in any zoning district. A donation collection bin is hereby defined as a receptacle designed with a door, slot or other opening and which is intended to accept and store donated items; provided, however, the definition of donation collection bins shall not include trailers, where personnel are present to accept donations.

(b) *Designation of enforcement officer.* The director shall designate an enforcement officer who shall be responsible for the removal of donation collection boxes.

(c) *Notification.* Whenever the enforcement officer ascertains that a donation collection bin is present on any property within unincorporated Dade County, the officer shall cause a notice to be placed on such bin in substantially the following form:

NOTICE

This donation collection bin is unlawfully upon property known as (setting forth brief description of location) and must be removed within 72 hours from the time of this notice. Failure to

remove the bin shall result in the removal and destruction of the bin by order of the City of Miami.

Date this: (setting forth the date, time of posting of the notice)

Signed: (setting forth name, with the address and telephone number of the enforcement officer).

Such notice shall be not less than eight inches by ten inches and shall be sufficiently weatherproof to withstand normal exposure to the elements.

(d) *Removal of donation collection bin.* If at the end of 72 hours after posting of such notice, the donation collection bin has not been removed from the property, the enforcement officer shall cause the bin to be removed.

(e) *Assistance of city police department.* If the enforcement officer is unable to successfully remove a donation collection bin subject to seizure under this section, the enforcement officer or his/her designated representatives may secure the assistance of the City of Miami police department to effect the removal of said bin.

(f) *Obstructing an enforcement officer in the performance of duties.* Whoever opposes, obstructs or resists the enforcement officer in the discharge of duties as provided in this section, upon conviction, shall be guilty of a misdemeanor of the second degree and shall be subject to punishment as provided by law.

(g) *Destruction of donation collection bin.* Whenever a donation collection bin remains unclaimed as provided in subsection (d) above, it shall be destroyed by order of Dade County. The contents of the bin may be destroyed or donated to charity.

(h) *Recovery of costs.* All costs incurred pursuant to this section shall be paid by the owner of the donation collection bin. The enforcement officer may institute a suit to recover such expenses against the bin owner.

(i) *Responsibility for compliance.* The owner of the donation collection bin and the tenant and/or owner of the property on which the bin is maintained shall be responsible for compliance with this chapter.

(Ord. No. 11531, § 2, 7-24-97; Ord. No. 13676, § 2, 4-27-17)

Secs. 22-162—22-169. Reserved.

ARTICLE VII. RESERVED*

Secs. 22-170—22-179. Reserved.

ARTICLE VIII. HANDBILLS

Sec. 22-180. Definitions.

Benefactor means the owner of the business advertised in the commercial handbill whose agent, employee, contractor, promoter, or other representative did or caused the throwing, discarding, placing or depositing.

Business means any commercial or industrial activity, entity, or event in or for which any goods or services are made, sold or offered for sale or other consideration, pecuniary or otherwise.

Commercial handbill means any handbill that conveys any information about any good or service provided by a business.

Handbill means any flyer, paper, document, dodger, circular, folder, booklet, letter, card, pamphlet, sheet, poster, sticker, banner, notice or other written, printed or painted matter or object that conveys any information, except that "handbill" shall not include a newspaper or its contents.

Litter means any paper, handbill, garbage, or other waste that has been placed or deposited and left on a public sidewalk, street, road, avenue, beach, swale, median, building, fence, wall, boardwalk, park, or any other public area, or on any object located on public property, or on the kneewall, window ledge or sill of any public or private building, or on a motor vehicle or private property. Handbills attached to a trash receptacle, but not within the trash receptacle in the usual manner, shall also be considered litter.

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*__Editor's note—__Ord. No. 14351, § 3, adopted February 13, 2025, repealed the former article VII, sections 22-170—22-174 in its entirety, which pertained to the commercial solid waste and recycling management advisory committee and derived from Ord. No. 11849, § 3, adopted October 26, 1999, and Ord. No. 13693, § 2, adopted July 13, 2017.

One day means a 24-hour period from noon to noon.

Person, benefactor, or *owner* include, within their respective meanings, either an individual or an entity.
(Ord. No. 12972, § 2, 2-14-08)

Sec. 22-181. Throwing or discarding handbills prohibited.

(a) It shall be unlawful for any person, business or benefactor to throw, discard, place or deposit, scatter, cast or cause to be thrown, discarded, placed, or deposited, scattered or cast handbills or commercial handbills in any manner or amount whatsoever in or on any public highway, sidewalk, road, street, alley, thoroughfare or any other public place, except in containers or areas lawfully provided therefore.

(b) It shall be unlawful for any person, business or benefactor to throw, discard, place or deposit, scatter, cast or cause to be thrown, discarded, placed, or deposited, scattered or cast handbills or commercial handbills in any manner or amount whatsoever on any private property, unless prior consent of the owner has been given and the owner is willing to receive the handbill and unless such handbills or commercial handbills will not cause a public nuisance or be in violation of any other state or local laws, rules or regulations. Nothing herein shall relieve the property owner's responsibility of maintaining the property in a safe and clean condition.
(Ord. No. 12972, § 2, 2-14-08)

Sec. 22-182. Distribution of commercial handbills during certain events prohibited; penalty; enforcement.

(a) It shall be unlawful for any person, firm, corporation or other legal entity to post, display or distribute any commercial circulars, handbills, printed or written matter relating to any business or commercial activities at any event with an attendance of 15,000 or more persons, on any property or facilities owned or operated by or for the city, or within a 1,000-foot radius in or around the property, facility or venue, without first obtaining a written permit issued or authorized by the city manager's office or its designated city department, provided that the provisions of this section shall not be applicable to licensees, concessionaires, lessees or agencies of the city.

(b) Each person who distributes permitted commercial circulars, handbills, printed or written matter relating to any business or commercial activities must:

(1) Provide the name and date of birth of the person seeking such permit, the name of the business represented, the business address, the business telephone number, a valid business tax receipt or similar licensure from another jurisdiction and a non-refundable fee of $150.00;

(2) Provide a copy of the printed material intended for distribution; and

(3) Provide for the proper removal of any of the above-described materials discarded and left as litter in the surrounding event area.

(c) Any person, firm, corporation or other legal entity violating any provisions of this section shall, upon conviction thereof, be punished by a fine not to exceed $500.00, or by imprisonment in the county jail for a period not to exceed 60 days, or by both such fine and imprisonment, in the discretion of the county court.

(d) It shall be the duty of the city police to enforce the provisions of this section against any person, firm, corporation or other legal entity found violating the same within the city.
(Ord. No. 13503, § 2, 3-12-15; Ord. No. 14138, § 9, 2-9-23)

Sec. 22-183. Enforcement by code inspectors/enforcement officers; civil infraction notice.

(a) Enforcement of this section may be enforced by either a code enforcement inspector or sanitation enforcement officer as follows:

(1) If a code inspector as defined in section 2-813 finds a violation of this article, such code inspector shall issue a civil

infraction notice to the violator pursuant to the provisions in sections 2-823 through 2-830.

(2) If an enforcement officer as defined in section 22-1 finds a violation of this article, such code inspector shall issue a civil infraction notice to the violator pursuant to the provisions in section 22-93.

(b) At any prosecution for violation of this section when the litter involved is a commercial handbill, if ten or more commercial handbills advertising the same business or benefactor are found in plain view as litter under circumstances that make it more likely than not that the commercial handbills were placed there, or caused to be placed there, by an agent, employee, contractor, promoter, or other representative of the business or benefactor advertised on the face of the handbills, the special master shall apply a rebuttable presumption that the business or benefactor advertised on the face of the handbills threw, discarded, placed or deposited the commercial handbills as litter.

(c) If a person is found littering with commercial handbills, the code inspector is authorized to seize, for use as evidence in the prosecution of the person, business or benefactor before the special master, all commercial handbills in the possession of the person.

(d) The city may cause the removal, at the violator's expense, of all litter distributed or placed in violation of this section.

(Ord. No. 12972, § 2, 2-14-08; Ord. No. 13503, § 2, 3-12-15)

Editor's note—Ord. No. 13503, § 2, adopted March 12, 2015, redesignated the former sections 22-182—22-184 as sections 22-183—22-185. The historical notation of the former sections has been preserved for reference purposes.

Sec. 22-184. Fines.

The following civil fines shall be imposed for violations of this section:

(1) If the offense is the first offense, $100.00 fine plus $50.00 per handbill or commercial handbill;

(2) If the offense is the second offense within the preceding 12 months, $250.00 fine plus $50.00 per handbill or commercial handbill;

(3) If the offense is the third or subsequent offense within the preceding 12 months, $500.00 fine plus $50.00 per handbill or commercial handbill;

(4) Notwithstanding subsections (1)—(3), no person, business or benefactor shall receive more than one offense within any one-day period, however, the $50.00 per handbill or commercial handbill fine shall apply to all littered handbills or commercial handbills found during that one-day period.

(Ord. No. 12972, § 2, 2-14-08; Ord. No. 13503, § 2, 3-12-15)

Note—See editor's note at section 22-183.

Sec. 22-185. Recovery of unpaid fines; unpaid fines to constitute a lien; foreclosure.

(a) The city may institute proceedings in a court of competent jurisdiction to compel payment of civil fines.

(b) A certified copy of an order imposing a civil fine may be recorded in the public records and thereafter shall constitute a lien upon any other real or personal property owned by the violator and it may be enforced in the same manner as a court judgment by the sheriffs of this state, including levy against the personal property, but shall not be deemed to be a court judgment except for enforcement purposes. After two months from the filing of any such lien which remains unpaid, the city may foreclose or otherwise execute upon the lien.

(Ord. No. 12972, § 2, 2-14-08; Ord. No. 13503, § 2, 3-12-15)

Note—See editor's note at section 22-183.

Chapter 22.5

GREEN INITIATIVES

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ARTICLE I. GREEN FLEETS

Sec. 22.5-1. Definitions.

Biodiesel means diesel fuel derived from a renewable resource such as plants, waste oils, and animal fats.

Emergency response vehicle means any vehicle used to respond to imminent threats to public health or safety.

Fuel economy means the estimated miles a vehicle can travel for each gallon of fuel consumed. For vehicles 8,500 pounds or less, this value is determined by the EPA's Corporate Average Fuel Economy (CAFE) standards.

Greenhouse gases mean gases which will likely contribute to global warming, as identified by the US Environmental Protection Agency (EPA). Currently, the EPA lists carbon dioxide, methane, nitrous oxide, and fluorinated gases as the primary greenhouse gases of concern. For the purposes of this ordinance, the primary greenhouse gas of concern is carbon dioxide produced by the combustion of fossil fuels such as gasoline and diesel.

Heavy duty vehicle means any wheeled motor vehicle, licensed for use on roadways, having a manufacturer's gross vehicle weight rating greater than 14,000 pounds.

Idling means:

(1) Where the engine is running and in park or neutral in vehicles with automatic transmissions;

(2) Where the engine is running but not in gear for vehicles with manual transmissions.

Light duty truck means any wheeled motor vehicle, with a manufacturer's gross vehicle weight rating of 6,000 pounds or less, which is designed primarily for purposes of transportation of property or is a derivative of such a vehicle, or is available with special features enabling off-street or off-highway operation and use.

Medium duty vehicle means any wheeled motor vehicle having a manufacturer's gross vehicle weight rating of 14,000 pounds or less and which is not a light-duty truck or passenger vehicle.

Passenger vehicle means any wheeled motor vehicle designed primarily for the transportation of persons and having a design capacity of 12 persons or less.

Vehicle means any device powered by an engine and used for the transportation of persons or property upon roadways, excluding aircraft.
(Ord. No. 13001, § 2, 6-12-08)

Sec. 22.5-2. Intent.

The intent of the green fleet ordinance is to reduce vehicle fuel consumption by five percent per year and reduce greenhouse gas emissions from the fleet by at least five percent per year to a total of at least 25 percent by 2015. The city will accomplish this goal by:

(1) Optimizing the fleet size and operation by eliminating unnecessary vehicles.

(2) Increasing the fleet's average fuel economy to be consistent with operational needs. These standards will be included in each department's green fleets plan and reviewed and approved by the green fleets committee (the "review committee").

(3) Minimizing fuel usage by eliminating unnecessary or redundant trips, by increasing efficiency of routes and by minimizing idling.
(Ord. No. 13001, § 2, 6-12-08)

Sec. 22.5-3. Fleet inventory.

In order to establish a baseline of data showing vehicle specifics so that a green fleet plan ("GFP") can be established, implemented, and monitored, each department director or designee shall develop an inventory and analysis of the fleet vehicles at least once annually and submit to the city manager or designee before July 1. This inventory shall include, but not be limited to:

(1) Number of vehicles classified by the model year, make, model, engine size, vehicle identification number (VIN), and drivetrain type (two-wheel drive or four-

wheel drive), and the rated vehicle weight and classification (light-duty, medium-duty, heavy-duty);

(2) Miles per gallon (or gallon equivalent) per vehicle;

(3) Type of fuel (or power source, e.g., electricity) used;

(4) Average cost per gallon (or gallon equivalent) of fuel;

(5) Annual miles driven per vehicle;

(6) Fuel (or power) consumption per vehicle;

(7) Vehicle function (i.e., the tasks associated with the vehicle's use);

(8) Total fuel consumption of each fuel type (or power source used) for the fleet.

City department directors or designees shall be responsible for providing the baseline data in a uniform, reliable and verifiable manner. Annually, the data will be compiled and submitted to the review committee as described herein.

The Miami Office of Sustainable Initiatives (MSI) will compute fleet greenhouse gas emissions, fleet fuel efficiency, and average fuel cost per mile based on the data reported above.
(Ord. No. 13001, § 2, 6-12-08)

Sec. 22.5-4. Department green fleet plans.

Annually, the GSA, fire, police and solid waste departments shall prepare a written GFP describing the implementation of the policies described below. The general services administration ("GSA") GFP shall address GSA vehicles and all other department vehicles not addressed by other GFPs. Copies of each plan will be submitted to the review committee as referenced.

Each department plan shall summarize their fleet inventory and fleet greenhouse gas emissions as described in this ordinance. The plan shall describe how fuel consumption compares to the city's goal of five percent reduction per year and how greenhouse gas emissions compares to the city's goal of at least five percent reduction per year.

Departments that provide emergency response functions shall develop an independent GFP and calculate fuel consumption for emergency response and non-emergency response vehicles. In their annual report, departments will identify all emergency response vehicles and the emergency response role of each designated vehicle. The goal for fuel consumption of emergency response vehicles shall be to reduce fuel consumption to the extent feasible without compromising emergency effectiveness or preparedness. Reduction of fuel consumption in emergency response vehicles may include, but are not limited to, purchasing new vehicles that have increased fuel efficiency and reducing fuel consuming activities during non-emergency operations. For all departments, the fuel consumption goal for non-emergency response vehicles remains five percent.

Each department shall establish a minimum fuel efficiency standard in miles per gallon (or gallon equivalent), as defined herein, for each vehicle class that is purchased or leased by the department. The initial standard will be set at a minimum five percent greater than the current fleet average for the vehicle class. That standard will be mandated to be increased by five percent annually. Exceptions to this policy may be allowed by the green fleets committee if the fuel efficiency standard does not allow vehicles that meet the operational needs of the department.

The GSA department shall review all vehicle procurement specifications and modify them to allow the purchase or lease of alternatively fueled or powered vehicles.

Each department shall review its operational use of vehicles and identify for elimination uses of vehicles which are operationally unnecessary and inefficient.

Each department shall review every new vehicle purchase request and modify them as necessary to ensure that the vehicle is appropriate for its performance requirements.

Each department shall review usage of vehicles and schedule the elimination or replacement of vehicles that are unused or inefficient compared to current fuel economy standards for the department and vehicle class and complies with the approved GFP.

Each department shall develop and implement an anti-idling policy prohibiting city employees from idling city-owned or operated vehicles for an excessive period of time.

Each department shall review fleet maintenance needs and plan to maintain vehicles at optimal efficiency by reviewing current maintenance schedules for all fleet vehicles and increasing maintenance wherever cost-effective benefits will accrue as a result.

The solid waste department and other such route intensive departments shall implement a route optimization program using applicable software and consultations to determine the most efficient routes for waste collection, recycling and street sweeping.
(Ord. No. 13001, § 2, 6-12-08)

Sec. 22.5-5. Monitoring of the green fleet article.

There shall be created a green fleet review committee to ensure goal compliance and monitor departmental responsibilities. The city manager will appoint a five-member review committee, which may include one of the following departments:

Purchasing department;

General services administration;

Police department;

Fire department;

Solid waste department;

Office of sustainable initiatives.

The review committee's responsibilities shall be to:

(1) Review the progress towards the goals of this article and the city's climate action plan.

(2) Recommend new policies or ordinances to improve the city's progress towards its goals of reducing vehicle fuel consumption by five percent per year and reducing greenhouse gas emissions from the fleet by at least five percent per year.

(3) Review the status of use of biodiesel and the biofuel content of biodiesel where appropriate. In addition, the review committee shall evaluate the overall environmental impact of the fuels entire life cycle as compared to fossil fuels, other biodiesel fuels, and other alternative fuels. Based on these reviews, the committee may recommend changes in the sources and/or quantities of biofuels purchased.

(4) Review new fuels and technologies that may be incorporated in the city's green fleet program.

On an annual basis, the departmental directors shall submit a draft green fleet plan to the review committee. The GFP will also include, as an appendix or addendum, an updated fleet vehicle inventory list in the same format as the fleet vehicle inventory completed in section 22.5-4.

Each GFP shall be reviewed by the review committee for overall conformity with the green fleet policy and for completeness in addressing the green fleet goals as outlined in section 22.5-3. Inadequate plans shall be returned to the submitting department for revisal and discussion with the review committee.

Any appeal of the review committee's decisions must be made in writing to the city manager accompanied by appropriate documentation of the reason and justification for the appeal. Valid reasons for an appeal include unavailability of appropriate fleet vehicles, incremental costs in excess of the full life-cycle savings that would accrue from the acquisition of a given vehicle and the primacy of a given vehicle's mission to public safety or a similar area judged to be applicable by the prior acting review committee.

Approval of vehicle procurement requests for each department is contingent upon a satisfactory recommendation from the review committee as to the merit of the department's green fleet plan. Final approval of individual purchases will be made by the GSA director.

The department submitting and implementing the most innovative green fleet plan shall

receive an annual award. The review committee shall determine the recipient of the award during the annual green fleet plan review process.
(Ord. No. 13001, § 2, 6-12-08)

Secs. 22.5-6—22.5-25. Reserved.

ARTICLE II. GREENSPACE MANAGEMENT FUND

Sec. 22.5-26. Definitions.

The following terms shall have the assigned definitions for all purposes under this article:

Greenspace means The interconnected network of landscapes that serve the residents, businesses, visitors, and future generations of the city by providing natural drainage, clean water, wildlife habitat, and passive recreational opportunities to the city.
(Ord. No. 13002, § 2, 6-12-08)

Sec. 22.5-27. Intent.

The greenspace management fund (the "fund") will serve as an account for the receipt of voluntary contributions and funds appropriated from the city each fiscal year which will be used to acquire, improve, and preserve the city's public greenspace.
(Ord. No. 13002, § 2, 6-12-08)

Sec. 22.5-28. Established.

There shall be established the greenspace management fund. It will be maintained and administered by the city pursuant to this article and used to fund the acquisition, improvement, and preservation of greenspace in the city, for activities such as:

(1) Planting or maintaining trees on city-owned property;

(2) Developing multi-use trails to connect city parks, points of interest and existing or proposed trails in adjoining communities;

(3) Preserving watersheds, wildlife corridors and other essential components of the natural environment;

(4) Restoring the integrity of natural resources in areas that have been degraded or damaged;

(5) Maximizing the ability of natural resources to control run-off and flooding;

(6) Providing environmental education that promotes the preservation and acquisition of greenspace;

(7) Promoting public and private participation in the stewardship of resources such as forests, watersheds, bays, wetlands, floodplains, groundwater recharge areas, wildlife habitats, urban trees, and open spaces; and

(8) Acquiring additional greenspace.
(Ord. No. 13002, § 2, 6-12-08)

Editor's note—Ord. No. 13002, § 2, adopted June 12, 2008, enacted provisions intended for use as subsections a.—h. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as subsections (1)—(8).

Sec. 22.5-29. Payments to fund.

Payments into the fund shall include appropriations from the city general revenue fund, voluntary contributions, including any federal or state moneys, money awarded through grants, fundraising or promotions, including all accumulated interest.
(Ord. No. 13002, § 2, 6-12-08)

Sec. 22.5-30. Management.

The fund will be managed by the city manager or designee, whose duties shall include:

(1) Accounting for deposits and accrued interest and expenditures from the fund; and

(2) Allocating at least 80 percent of the fund to greenspace management during each fiscal year; and

(3) Limiting expenditures from the fund to no more than five percent of each fiscal year for administrative costs related to reporting and management of the fund; and

(4) Seeking additional funding resources; and

(5) Presenting to the city commission an annual financial report at the close of each fiscal year.

(Ord. No. 13002, § 2, 6-12-08)

Editor's note—Ord. No. 13002, § 2, adopted June 12, 2008, enacted provisions intended for use as subsections a.—e. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as subsections (1)—(5).

Sec. 22.5-31. Allowable expenditures.

(a) All fund transactions shall be made by the city manager or designee, in accordance with this chapter;

(b) Before funds are dispersed, due consideration must be given to written recommendations from the directors of sustainable initiatives and resilience and public works;

(c) The city commission may approve, deny or expedite any expenditure under this chapter; and

(d) Approval by the city commission will be required for those transactions in excess of $50,000.00.

(Ord. No. 13002, § 2, 6-12-08; Ord. No. 13792, § 1, 10-11-18)

Secs. 22.5-32—22.5-50. Reserved.

ARTICLE III. ENVIRONMENTALLY PREFERABLE PURCHASING

Sec. 22.5-51. Intent.

The purpose of this article is to provide the framework to reduce negative impacts to human health and the environment through environmentally preferable purchasing in order to:

(1) Increase purchases of environmentally preferable products and services to achieve the city's mission, while maintaining performance and availability and remaining cost effective, with continual improvement.

(2) Reduce occupational health hazards for city staff and reduce exposure of city residents and visitors to potentially toxic chemicals by purchasing environmentally sensitive, sustainable goods for use or identifying products to be used by service providers that do not harm human health or the environment.

(3) Reduce the city's contribution to global climate change by purchasing goods and services that lead to a reduction in greenhouse gas emissions from commodities.

(4) Improve the air quality for city residents and visitors by purchasing commodities that minimize emissions of air pollutants.

(5) Protect the quality of the city's ground and surface waters by eliminating the use of chemicals known to contaminate local water resources and ecological systems through toxicity, bioaccumulation or persistence.

(6) Preserve resources locally and globally through purchasing practices that include:

a. Maximizing the use of water and energy efficient products;

b. Maximizing post-consumer recycled content and readily recyclable or compostable materials;

c. Reducing the use or creation of landfilled materials;

d. Favoring long-term product use through durability, repairability, and reuse;

e. Considering life-cycle analysis of products consisting of, but not limited to, manufacture, transportation, use, and disposal;

f. Supporting strong recycling markets;

g. Creating a model for successfully purchasing environmentally preferable products that encourages other purchasers or consumers in our community to adopt similar practices.

(Ord. No. 13003, § 2, 6-12-08)

Sec. 22.5-52. Definitions.

Environmentally preferable products and services means products or services, including construction and professionally related services, that have a lesser or reduced deleterious effect on human health and the environment when compared with competing products or services that serve the same purpose. This comparison may consider raw materials acquisition, production method or location, manufacturing, packaging, distribution method, reuse, operation, maintenance, or disposal of the product or service.

Environmental violations means violations of federal, state, county, and city laws, codes, and ordinances instituted to protect the environment, including but not limited to, Titles 33 and 42, of the United States Code, as amended, chapter 62 of the Florida Administrative Code, as amended, chapter 24 of the Code of Miami-Dade County, Florida, as amended, and chapters 10, 14, 22, 35, and 49, of this Code, as amended.

Life cycle analysis means the comprehensive examination of the environmental and economic aspects of a product and potential impacts throughout its lifetime, including raw material extraction, transportation, manufacturing, use, and disposal.

Post-consumer recycled material means only those by-products generated by a business or consumer after a desired material or product has served its intended use, and which has been separated or diverted from the solid waste stream for the purposes of collection, recycling and disposition. This does not include newsstand returns and printers' overruns.

Practical or *practicable* means in compliance with local, state, and federal laws, rules, and regulations; without reducing safety, quality, or effectiveness; and sufficient in performance and available at a reasonable price.

Price premium differential is the difference in price between the environmentally preferable product or service and the non-environmentally preferable product or service.
(Ord. No. 13003, § 2, 6-12-08)

Sec. 22.5-53. Responsibilities of city offices, departments, and agencies.

(a) The city manager or designee shall:

(1) Develop a list of approved environmentally preferable products or services designated the approved alternatives list, which shall contain:

a. Environmentally preferable products and services based on life cycle analysis, environmental impact, cost, availability, price-premium differential, performance and safety. The list shall include to the maximum extent practicable, but not be limited to, specifications for: paper products, wood products, furniture, toner cartridges, plastic bags, electronics, batteries, appliances, lighting, exit signs, traffic signals, construction products, landscaping, janitorial products, food containers, chemicals, packaging, meeting accommodations, thermostats, ventilation, and air conditioning systems, building insulation, playfield surfaces, landscaping, vehicles and reusable products.

b. For products for which the U.S. Environmental Protection Agency has adopted a comprehensive procurement guideline (CPG) under the Resource Conservation and Recovery Act (RCRA), the minimum recycled content standard for products on the approved alternatives list shall not be less than the content standards specified in the most recent CPG.

c. The approved alternatives list shall include products for which the U.S. Environmental Protection Agency Energy Star® program provides ratings, such as for any equipment that uses electricity, natural gas, or fuel oil as well as products that

indirectly impact energy use, such as, but not limited to, windows, doors and skylights.

(2) Develop and maintain achievable practicable standards, for all products on the approved alternatives list. The standards shall include, but not be limited to: energy efficiency, contribution to greenhouse gas emissions, depletion of natural resources, reusability, waste generation, potential impact on human health and the environment, recycled content, water efficiency, and life-cycle.

(b) All city offices, departments, and agencies shall:

(1) Purchase and use environmentally preferable products and services on the approved alternatives list, when practicable.

(2) Institute practices that reduce waste and result in the purchase of fewer products whenever practicable, without reducing performance or safety.

(3) Consider short-term and long-term costs (life-cycle analysis) in comparing product alternatives, when practicable. This includes evaluation of total costs expected during the time a product is owned, including, but not limited to, acquisition, extended warranties, operation, supplies, maintenance, disposal costs and expected lifetime compared to other alternatives.

(4) Purchase products that are durable, long lasting, reusable or refillable whenever practicable.

(5) Explore the elimination of packaging or minimize the amount necessary for product protection to the greatest extent practicable.

(6) Identify or use packaging that is reusable, recyclable or compostable, when suitable uses and programs exist.

(7) Reuse pallets and packaging materials, whenever possible.

(8) Require suppliers of electronic equipment, including, but not limited to, computers, monitors, printers, and copiers, to reuse or safely recycle the products upon discarding or replacing such equipment.

(9) Incorporate training on environmentally preferable products and services into existing procurement training programs and supplier and vendor outreach programs to encourage contractors, consultants, sponsors, suppliers, and vendors to use environmentally preferable products and services with the maximum amount of post-consumer recycled material and certify that products and services are environmentally preferable.

(10) Insure all specifications, standards, scope of work, or scope of services, drawings, or work statements incorporate the purchase of environmentally preferable products or services as required in this article and eliminate any standards or specifications that create artificial barriers to the purchase of environmentally preferable products and services.

(c) Procurement pursuant to the procurement code of the city, as amended, more specifically, issued invitation for bids (IFB), request for proposals (RFP), request for qualifications (RFQ), and request for letters of interest (RFLI) shall reference the ordinance from which this article derives, define environmentally preferable products and services, and reference the approved alternatives list when applicable.

Environmental compliance history shall be considered during procurement. Bidders with three or more environmental violations within a one-year period shall not be considered.

Additional environmental violations may include:

(1) Neglecting to institute or maintain best management practices (BMPs), as described in the environmental protection agency's Storm Water Management for Industrial Activities: Developing Pollution Prevention Plans and Best Management Practices Summary Guidance Manual (1992), in order to reduce or

prevent unfavorable environmental impact to the maximum extent practicable.

(2) Illicit discharges and connections, or illegal dumping as defined by the city's national pollutant discharge elimination system (NPDES) permit, issued by the Florida Department of Environmental Protection, for which the resilience and public works, building, solid waste, and code enforcement departments or any other city, county, or federal department or agency of competent jurisdiction have issued a citation, notice of violation (NOV) or other written notice of non-compliance.

Bidders that have committed environmental violations while contracted by the city, Miami-Dade County, the state, or the United States government shall be excluded from consideration on future city projects for at least one year from the date of the most recent violation. If a contractor or consultant commits an environmental violation while performing work for the city, payment shall be withheld until the contractor or consultant, at its own expense, completely corrects and mitigates the environmental violation to the satisfaction of the city and any other applicable regulatory agencies. The violator, its agents, servants, affiliates, or representatives shall fully hold harmless the city, its officers, agents, directors, and employees, from liabilities, penalties, damages, losses, and costs, including, but not limited to the correction and remediation of an environmental violation and reasonable attorney's fees, to the extent caused by the environmental violation.

(d) Upon the recommendation of the chief procurement officer, the budget director, or the chief financial officer, the city manager or designee may waive the requirement to purchase environmentally preferable products and services on the approved alternatives list based on the following:

(1) When the price premium differential is over ten percent;

(2) A finding is made that the city is at a financial deficit and the purchase of environmentally preferable products or services would be cost-prohibitive;

(3) The product or service is not available;

(4) The product or service is unsafe; or

(5) The product or service does not have adequate competition.

The city manager or designee will periodically issue reports detailing the implementation status of this article, review product standards, make recommendations for raised standards, and total quantities by volume and dollar amount of environmental preferable products or services purchased.
(Ord. No. 13003, § 2, 6-12-08; Ord. No. 13792, § 1, 10-11-18)

Secs. 22.5-54—22.5-70. Reserved.

ARTICLE IV. WATER CONSERVATION*

Sec. 22.5-71. Intent.

The intent of the water conservation ordinance [this article] is to implement procedures to protect the water resources of the City of Miami ("city") and to promote water conservation through the efficient use of landscape irrigation and consistency with the South Florida Water Management District's ("district") mandatory year-round landscape irrigation conservation measures under Chapter 40E-24, Florida Administrative Code ("F.A.C."). This article will increase water use efficiency; prevent and curtail wasteful irrigation practices by providing mandatory landscape irrigation conservation measures; and prohibit the operation of irrigation systems in a manner causing water to be wasted.
(Ord. No. 14038, § 2, 12-9-21)

*__Editor's note—__Ord. No. 14038, § 2, adopted December 9, 2021, amended article IV in its entirety to read as herein set out. Formerly, article IV, sections 22.5-71—22.5-75, pertained to similar subject matter, and derived from Ord. No. 13071, § 2, adopted June 11, 2009.

Sec. 22.5-72. Definitions.

Address means the "house number" (a numeric alphanumeric designation) that, together with the street name, describes the physical location of a specific property. This includes "rural route" numbers but excludes post office box numbers. If a lot number in a mobile home park or similar community is used by the United States Postal Service to determine a delivery location, the lot number shall be the property's address. If a lot number in a mobile home park or similar residential community is not used by the United States Postal Service (e.g. the park manager sorts incoming mail delivered to the community's address), then the community's main address shall be the property's address. If a property has no address it shall be considered "even-numbered."

Athletic recreation area means all golf course fairways, tees, roughs and greens and other athletic play surfaces; including, football, baseball, soccer, polo, tennis and lawn bowling fields, rodeo, equestrian and livestock arenas.

City means the City of Miami.

City manager means the city manager or designee.

Code inspector means any code inspector or agent authorized to ensure code compliance as defined in section 2-813 of the City Code, as may be amended from time to time.

Consumptive use permit ("CUP") means a permit issued pursuant to Chapter 40E-2, F.A.C., authorizing the consumptive use of water.

District means the South Florida Water Management District (SFWMD), a government entity created under F.S. ch. 373, as may be amended from time to time.

Even-numbered address means an address ending in the numbers 0, 2, 4, 6, 8 or the letters A—M, or locations with no address, such as rights-of-way.

Existing landscape means any landscaping which has been planted and in the ground for more than 90 days.

Irrigation systems means equipment and devices which deliver water to the landscape being irrigated including, but not limited to, pumping stations, controls, main and submain pipelines, lateral pipelines, emitters, valves, fittings, and safety devices.

Landscape means all residential, commercial, institutional, industrial, or governmental areas which are ornamentally planted including, but not limited to, turf, ground covers, flowers, shrubs, trees, sand, mulch, hedges and similar plant materials, lawns, sod, grass, and such other flora, not intended for resale, which are situated in such diverse locations as residential landscapes, recreation areas, cemeteries, public, commercial, and industrial establishments, public medians, and rights-of-way except athletic play areas as defined in this section.

Landscape irrigation means the outside watering of shrubbery, trees, lawns, sod, grass, ground covers, plants, vines, ornamental gardens, and such other flora not intended for resale, which are planted and are situated in such diverse locations as residential landscapes, recreation areas, cemeteries, public, commercial, and industrial establishments, public medians, and rights-of-way except athletic play areas as defined in this section.

Low volume hand watering means the watering of landscape by one person, with one hose, fitted with a self-canceling or automatic shutoff nozzle.

Low volume irrigation means the use of equipment and devices specifically designed to allow the volume of water delivered to be limited to a level consistent with the water requirement of the plant being irrigated and to allow that water to be placed with a high degree of efficiency in the root zone of the plant. The term also includes water used in mist houses and similar establishments for plant propagation. Overhead irrigation and flood irrigation are not included.

Micro-irrigation means the application of small quantities of water on or below the soil surface as drops or tiny streams of spray through emitter or applicators placed along a water delivery

line, including methods or concepts such as bubblers, drips, trickles, mists or microsprays, and subsurface irrigation.

New landscaping means any landscaping which has been planted and in the ground for 90 days or less.

Odd-numbered address means an address ending in the numbers 1, 3, 5, 7, 9, or the letters N—Z.

Reclaimed water means wastewater that has received at least secondary treatment and basic disinfection and is reused after flowing out of a wastewater treatment facility as defined by Rule 62-40.210, F.A.C.

User means any person, individual, firm, association, organization, partnership, business trust, corporation, company, agent, employee or other legal entity whether natural or artificial, the United States of America, and the State of Florida and all political subdivisions, regions, districts, municipalities, and public agencies thereof, which directly or indirectly takes water from the water resource, including uses from private or public utility systems, uses under water use permits issued pursuant to Chapter 40E-2 or 40E-20, F.A.C., or uses from individual wells or pumps.

Wasteful and unnecessary means allowing water to be dispersed without any practical purpose; for example, excessive landscape irrigation, leaving an unattended hose on a driveway with water flowing, allowing water to be dispersed in a grossly inefficient manner, regardless of the type of water use; for example, allowing landscape irrigation water to unnecessarily fall onto pavement, sidewalks and other impervious surfaces; allowing water flow through a broken or malfunctioning water delivery or landscape irrigation system.

Water resource means water on or beneath the surface of the ground including, but not limited to, natural or artificial watercourses, lakes, ponds, or diffused surface water, and water percolating, standing, or flowing beneath the surface of the ground.

Water shortage means when the district determines there is the possibility that insufficient water will be available to meet the present and anticipated needs of the users or when conditions are such as to require a temporary reduction in total use within a particular area to protect water resources from serious harm. A water shortage usually occurs due to drought.

Water shortage emergency means when the district determines the provisions listed in Part II of Chapter 40E-21, F.A.C., are not sufficient to protect the public health, safety, or welfare; the health of animals, fish, or aquatic life; a public water supply; or commercial, industrial, agricultural, recreational, or other reasonable-beneficial uses.
(Ord. No. 14038, § 2, 12-9-21)

Sec. 22.5-73. Application.

The provisions of this Code shall apply to each user providing landscape irrigation from all water resources within the boundaries of the city. The provisions of this article shall not apply to athletic play areas or agricultural operations (including nurseries) and irrigation accomplished using reclaimed water or saltwater.
(Ord. No. 14038, § 2, 12-9-21)

Sec. 22.5-74. Water shortage emergency.

(a) *Water shortage guidelines.*

(1) The declaration of a water shortage condition and/or water shortage emergency in accordance with Part II of Chapter 40E-21, F.A.C., within all or parts of the city by the district's governing board or executive director shall supersede this Code for the duration of the applicable declaration.

(2) A water shortage or water shortage emergency order shall supersede mandatory year-round water irrigation measures until the more restrictive measure is rescinded by the district.

(3) Upon the district issuing a water shortage order, all water use restrictions or other measures adopted by the district applicable to the city or any portion

thereof shall be enforced pursuant to subsection (b). Any violation of the provisions of Chapter 40E-21, F.A.C. as amended, or any order issued pursuant thereto, shall be a violation of this section.

(4) Such a declaration would apply to all users using the water resource within the geographical areas subject to a water shortage or water shortage emergency as determined by the district, whether from public or privately-owned water utility systems, private wells, or private connections with surface water bodies, but shall not apply to users using reclaimed water or saltwater.

(b) *Enforcement.* Every code inspector or other designee of the city manager shall, in connection with all other duties imposed by law, diligently enforce the provisions of this section.

(c) *Penalty.*

(1) Violations of the provision of this article may be punished pursuant to F.S. ch. 162, as amended and the code enforcement ordinance of the city, as amended with a civil infraction.

(2) Violations of any provision of this section shall be subject to chapter 2, article 10, and to the following penalties:

a. First violation: Written warning.

Second violation: Fine not to exceed $75.00.

Subsequent violations: Fine not to exceed $500.00.

b. Each day in violation of this section shall constitute a separate offense. For purposes of this article, no person shall be found to have committed a repeat violation of the provisions of this article that occurred during a prior water shortage or water shortage emergency which is no longer in effect.

(3) The provisions of this article are not the exclusive remedy or means for enforcement of the Code of the city and do not precluded any other remedies available by law.

(Ord. No. 14038, § 2, 12-9-21)

Sec. 22.5-75. Year-round water conservation.

(a) *Intent.*

(1) To assist in reducing overall per capita water use in the city in accordance with the goals established by MDWASD.

To reduce landscape irrigation and irrigation-related to Wasteful and Unnecessary water use by residents and other entities that receive water from MDWASD as well as water from other ground water and surface water sources for landscape irrigation.

(2) To reduce water waste, i.e., overwatering, inefficient watering.

(b) *Year-round watering restrictions.* These restrictions apply to all property owners within the city, unless otherwise specified.

(1) Irrigation of existing landscaping is allowed two days a week, on the following schedule:

a. Landscape irrigation of existing landscaping shall be prohibited between the hours of 10:00 a.m. and 4:00 p.m.

b. Residents and businesses with an odd-numbered properties. Landscape irrigation is permitted on Wednesdays and Saturdays only. Residents and businesses with odd-numbered addresses may accomplish necessary landscape irrigation only on Wednesdays, and/or Saturdays.

c. Residents and businesses with even-numbered properties. Landscape irrigation is permitted on Thursdays and Sundays. Residents and businesses with even-numbered addresses and rights-of-way, or other locations without an address, may

accomplish necessary landscape irrigation only on Thursdays, and/or Sundays.

(2) Irrigation of new landscaping shall comply with the following provisions:

a. Irrigation of new landscaping shall be prohibited between the hours of 10:00 a.m. and 4:00 p.m. daily, except as otherwise provided herein.

b. On the day the new landscaping is installed, the new landscaping may be irrigated once without regard to the normally allowable watering days and times. Irrigation of the soil immediately prior to the installation of the new landscaping is also allowable without regard to the normal allowable watering days and times.

c. A 90-day establishment period begins the day the new landscaping is installed. The new landscaping shall be installed within a reasonable time from the date of purchase which may be demonstrated with a dated receipt or invoice.

d. Irrigation of new landscaping which has been in place for 30 days or less may be accomplished on Monday, Tuesday, Wednesday, Thursday, Saturday and/or Sunday.

e. Irrigation of new landscaping which has been in place for 31 to 90 days may be accomplished on Monday, Wednesday, Thursday, and/or Saturday.

f. Irrigation of the new landscaping is limited to areas containing the new landscaping only. An entire zone of an irrigation system shall only be utilized for landscape irrigation under this paragraph if the zone in question is for an area that contains at least 50 percent new landscaping. If a zone contains less than 50 percent new landscaping, or if the new landscaping is in an area that will not typically be irrigated by an irrigation system, only the individual new plantings are eligible for additional irrigation under this paragraph. Targeted watering may be accomplished by low volume hand watering, or any appropriate method which isolates and waters only the new landscaping.

(3) Irrigation systems may be operated outside restricted days and/or times for cleaning, maintenance, and repair purposes with an attendant on site in the area being tested. Landscape irrigation systems may routinely be operated for such purposes no more than once per week, and the run time for any one test should not exceed ten minutes per zone.

(4) Landscape irrigation for the purpose of water-in fertilizers, insecticides, pesticides, fungicides and herbicides, where such watering-in is required by the manufacturer, or by federal, state or local law, shall be allowed under the following conditions:

a. Such watering-in shall be limited to one application in the absence of specific alternative instructions from the manufacturer; and

b. Such watering-in shall be accomplished during normally allowable watering days and times set forth in subsections (b)(1) and (2) unless a professional licensed applicator has posted a temporary sign containing the date of application and the date(s) of needed watering in activity.

(5) Any plant material may be watered using low volume irrigation, micro-irrigation, low-volume hand watering methods, and rain barrels, cisterns, or other rain harvesting devices without regard to the watering days or times allowed pursuant to this section.

(6) Reserved.

(7) In addition to the specific listed measures, all wasteful and unnecessary water use is prohibited.

(8) In the event the district imposes restrictions on landscape irrigation for new and existing installations which are more restrictive than those imposed by this Code such as under the declaration of a water shortage or water shortage emergency, the more restrictive regulations shall apply for the applicable duration of the more restrictive regulations.

(9) It shall be the duty of each user to keep informed as to the landscape irrigation conservation measures within this Code, which affect each particular water use.

(10) Any user who purchases and installs an automatic landscape irrigation system shall properly install, maintain, and operate technology that inhibits or interrupts operation of the system during periods of sufficient moisture in accordance with F.S. § 373.62, and section 22.5-75 of the City Code.

(Ord. No. 14038, § 2, 12-9-21)

Sec. 22.5-76. Requirements for plumbing fixtures.

(a) *Intent.* To require reduced flow rates and consumption for plumbing fixtures, fixture fittings, and appliances installed within the city. Such high efficiency plumbing fixtures, fixture fittings, and appliances shall comply with the specifications below or with the United States. Environmental Protection Agency (EPA) WaterSense Program, where applicable.

(b) *Requirements for plumbing fixtures.*

(1) The city hereby adopts Section 8-31(A) of the Code of Miami-Dade County, Florida, which consists of the following local technical amendments to Table 604.4 of Chapter 6 (Plumbing) of the Florida Building Code.

604.4 Maximum flow and water consumption.

The maximum water consumption flow rates and quantities for all plumbing fixtures and fixture fittings shall be in accordance with Table 604.4. Permit applications for new residential and commercial structures shall include high efficiency plumbing fixtures, fixture fittings and appliances as provided in Table 604.4. Such high efficiency plumbing fixtures, fixture fittings and appliances shall comply with the specifications in Table 604.4 or have received the U.S. Environmental Protection Agency (EPA) WaterSense Label.

Exceptions:

1. Blowout design water closets having a maximum water consumption of three and one-half gallons (13 L) per flushing cycle.
2. Vegetable sprays.
3. Clinical sinks having a maximum water consumption of four and one-half gallons (17 L) per flushing cycle.
4. Service sinks.
5. Emergency showers.

TABLE 604.4 MAXIMUM FLOW RATES AND CONSUMPTION FOR PLUMBING FIXTURES AND FIXTURE FITTINGS

PLUMBING FIXTURE OR FIXTURE FITTING	*MAXIMUM FLOW RATE OR QUANTITY (b)*
Lavatory, private	1.5 gpm at 60 psi

PLUMBING FIXTURE OR FIXTURE FITTING	*MAXIMUM FLOW RATE OR QUANTITY (b)*
Lavatory, public, (metering)	0.25 gallon per metering cycle
Lavatory, public (other than metering)	0.5 gpm at 60 psi
Shower head (a)	1.5 gpm at 80 psi
Sink faucet	1.5 gpm at 60 psi
Urinal	Waterless or 0.5 gallon per flushing cycle
Water closet	1.28 gallons per flushing cycle (effective 1.28 gpf for dual flush systems)
Dishwasher (residential)	6.5 gallons per cycle or less (Energy Star/Water Sense Certified) (c)
Dishwasher (commercial)	Less than 1.2 gallons per rack for fill and dump machines and less than 0.9 gallons per rack for all other types of machines
Dishwasher (under the counter machines)	1.0 gallon or less per rack for high-temperature machines and 1.7 gallons per rack for low temperature machines.
Washing machine	Water factor of 8 or lower (Energy Star/Water Sense Certified) (c)
gpm: gallons per minute psi: pounds per square inch For SI: 1 gallon = 3.785 L 1 gallon per minute = 3.785 L/m 1 pound per square inch = 6.895 kPa. (a) A handheld shower spray is a showerhead. (b) Consumption tolerances shall be determined from referenced standards. (c) Water factor in gallons per cycle per cubic foot.	

(2) The city hereby adopts Section 8-31(B) of the Code of Miami-Dade County, Florida, which consists of the following local technical amendments to Table P2903.2a of Chapter 29 (Residential) of the Florida Building Code.

P2903.2a Maximum flow and water consumption.

The maximum water consumption flow rates and quantities for all plumbing fixtures, fixture, fittings and appliances shall be in accordance with Table P2903.2a. Permit applications for new residential structures shall include high efficiency plumbing fixtures, fixture fittings and appliances as provided in Table P2903.2a. Such high efficiency plumbing fixtures, fixture fittings and appliances shall comply with the specifications in Table P2903.2a or have received the U.S. Environmental Protection Agency (EPA) WaterSense Label.

TABLE P2903.2a
MAXIMUM FLOW RATES AND CONSUMPTION FOR PLUMBING FIXTURES, FIXTURE FITTINGS AND APPLIANCES

PLUMBING FIXTURE OR FIXTURE FITTING	*PLUMBING FIXTURE OR FIXTURE FITTING MAXIMUM FLOW RATE (b)*
Lavatory faucet	1.5 gpm at 60 psi
Shower head (a)	1.5 gpm at 80 psi
Sink faucet	1.5 gpm at 60 psi

PLUMBING FIXTURE OR FIXTURE FITTING	*PLUMBING FIXTURE OR FIXTURE FITTING MAXIMUM FLOW RATE (b)*
Water closet	1.28 gallons per flushing (gpf) cycle (effective 1.28 gpf for dual flush systems)
Dishwasher (residential)	6.5 gallons per cycle or less (Energy Star/Water Sense Certified) (c)
Washing machine	Water factor of 8 or lower (Energy Star/Water Sense Certified) (c)

(Ord. No. 14038, § 2, 12-9-21)

Sec. 22.5-77. Variances.

(a) *Variances.*

(1) Any user affected by this Code may apply for a variance to the city manager's designee. A variance from specific day or days identified in section 22.5-75 may be granted if strict application of the restrictions would lead to unreasonable or unfair results, provided the applicant demonstrates with particularity that compliance with the schedule will result in substantial economic, health, or other hardship on the applicant or those the applicant serves. Relief may be granted only upon a demonstration that such hardship exists, is peculiar to the person or the affected property, is not self-imposed, and further demonstrates that granting the variance would be consistent with the general intent and purpose of this Code. Examples of circumstances for a variance include, but are not limited to:

a. Two or more properties which share a common source of water;

b. A public or private water system experiencing or anticipating distribution problems;

c. A user maintains an irrigation system that uses soil moisture sensors or weather-based irrigation controllers;

d. Where a contiguous property is divided into different zones, a variance may be granted so that each zone may be irrigated on days different than other zones of the property; or

e. Where a user maintains, manages, or owns a non-residential property, such as a house of worship or weekly market (farmer/flea), where the primary day of use, operation, or attendance for the property coincides with the prescribed watering day for the address.

(2) If a variance is approved in accordance with subsection 22.5-76(1), no single zone may be irrigated more than two days per week unless a user maintains an irrigation system that uses soil moisture sensors or weather-based irrigation controllers.

(3) If a variance is granted, the user shall be required to post a notice at each parcel to which the variance pertains.

(4) A variance is invalid if it has expired or if the user or its agent violates the terms of the variance.

(5) Recognition of district variances. The city recognizes and adopts all irrigation variances or waivers issued by the district.

(Ord. No. 14038, § 2, 12-9-21)

Sec. 22.5-78. Enforcement and penalties.

(a) *Enforcement.* Every code inspector or designee of the city manager shall, in connection with all other duties imposed by law, diligently enforce the provisions of this article.

(b) *Penalties.* Violations of any provision of this section shall be subject to chapter 2, article 10, and to the following penalties:

(1) First violation: Written warning.

Second violation: Fine not to exceed $75.00.

Subsequent violations: Fine not to exceed $500.00.

(2) Each day in violation of this section shall constitute a separate offense.

(3) The provisions of this article are not the exclusive remedy or means for enforcement of the Code of the city and do not precluded any other remedies available by law.

(Ord. No. 14038, § 2, 12-9-21)

Secs. 22.5-79—22.5-90. Reserved.

ARTICLE V. CONSTRUCTION INDOOR ENVIRONMENTAL AIR QUALITY (IAQ) MANAGEMENT PLAN DURING CONSTRUCTION

Sec. 22.5-91. Intent.

The city is committed to minimizing short and long term negative impacts that construction may have on the environment. The intent of this article is to increase indoor air quality in buildings for the benefit of its occupants.
(Ord. No. 13080, § 2, 7-9-09)

Sec. 22.5-92. Applicability.

This article shall apply to all construction sites under the authority and within the limits of the city which meet the criteria below.

(1) Construction of a new residential building with three or more units.

(2) Construction of a new non-residential building, for projects of more than 4,000 total square feet.

(3) Any substantial rehabilitation of a structure where the estimated construction cost exceeds 50 percent of the value of said structure.

(Ord. No. 13080, § 2, 7-9-09)

Sec. 22.5-93. Standards and requirements: Construction.

Construction IAQ Management Plan. Prior to the issuance of a building permit, a statement of the plans detailing the Construction IAQ Management actions to be implemented during the construction and pre-occupancy phases of the building shall be submitted to the city and shall include:

(1) Construction IAQ Management plan that shall be based upon the recommended Control Measures of the Sheet Metal and Air Conditioning National Contractors Association (SMACNA) IAQ Guidelines for Occupied Buildings Under Construction, 2nd Edition 2007, ANSI/SMACNA 008-2008, Chapter 3; and

(2) Proof that on-site or installed absorptive materials will be protected from moisture damage; and

(3) If permanently installed air handlers are used during construction, proof that filtration media with a Minimum Efficiency Reporting Value (MERV) of 8 will be used at each return air grille. In addition, all filtration media shall be replaced immediately prior to occupancy.

(Ord. No. 13080, § 2, 7-9-09)

Sec. 22.5-94. Compliance.

Prior to the issuing of a final zoning inspection, a statement of substantial compliance will be submitted by the contractor.
(Ord. No. 13080, § 2, 7-9-09)

Secs. 22.5-95—22.5-120. Reserved.

ARTICLE VI. SOIL EROSION, WATERWAY SEDIMENTATION, AND AIRBORNE DUST GENERATION CONTROL

Sec. 22.5-121. Intent.

The intent of this article is to locally implement F.S. § 403.0885 and Florida Administrative Code Chapter 62-621.300, known as the "generic permit for stormwater discharge from large and small construction activities" (the permit") by providing the City of Miami with improved water and air quality. Preventive jobsite practices can minimize environmental risks from the erosion, air pollution, and sedimentation on sites with disturbed soil.
(Ord. No. 13081, § 2, 7-9-09)

Sec. 22.5-122. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means any individual, firm, limited liability company, association, partnership, political subdivision, government agency, municipality, industry, public or private corporation, or any other entity whatsoever who applies to the

city for the applicable permits or approvals to undertake construction, demolition or renovation projects within the city. Best management practices ("BMPs") means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce to the maximum extent practicable erosion, dust generation, off-site sedimentation, and pollution of City of Miami waterways and storm drainage systems. BMPs also include treatment requirements, operating procedures, and practices to control site runoff, spillage or leaks, sludge or waste disposal, or drainage from material storage.

Construction means the act of creating or maintaining stockpiles of soil or other material which are erodible if exposed to water or wind and are capable of generating dust; or developing or improving public or private land which involves the removal of surface cover or disturbance of soils and includes clearing, grading, demolition, and excavation.

Dust control means providing temporary fencing to mitigate the effects of dust upon the surrounding community in accordance with Ordinance 12930.

Erosion means the detachment, transport, and deposition of particulate matter by the action of wind, water, and gravity.

Stormwater means the flow of water which results from, and which occurs immediately following, a rainfall event.

Stormwater discharge facility means a stormwater management system which discharges stormwater into surface waters of the state.

Stormwater Management System means the designed features of the property which collect, convey, channel, hold, inhibit or divert the movement of stormwater.

Stormwater pollution prevention plan (the "plan") means a written plan, approved by the city submitted by the applicant which identifies a strategy to minimize stormwater runoff that will be generated. The SWPPP shall follow the guidelines of the Florida Stormwater, Erosion, and Sedimentation Control Inspector's Manual published by the Florida Department of Environmental Protection.
(Ord. No. 13081, § 2, 7-9-09)

Sec. 22.5-123. Applicability.

This article shall apply to all construction and demolition sites and activities under the authority of the City of Miami. All such sites and activities within the authority of the City of Miami shall be required to contain and control all sediment and sediment-laden water on-site.
(Ord. No. 13081, § 2, 7-9-09)

Sec. 22.5-124. Stormwater pollution prevention plan (the "plan").

To obtain a permit for construction projects which will disturb over one acre of soil, the applicant must develop and implement a plan in accordance with the requirements the "permit" or local erosion and sedimentation control standards and codes, whichever is more stringent. Construction sites with areas of disturbed soil between 0.5 acres and one acre may use an alternative format, approved by the city, provided it supplies all the information required by the permit. The plan must be approved by the City of Miami Department of Resilience and Public Works National Pollution Discharge Elimination System section prior to the commencement of construction activities.

The plan shall describe the current and final conditions of the construction site, the nature of the work to be performed, the BMPs to be implemented to prevent stormwater pollution, control erosion and prevent off-site sedimentation, who will implement these measures, the schedule of implementation, and include a narrative section; site plan; details, specifications, and notes; and calculations. The plan must include the following:

(1) Name of the person who is responsible should the site fall out of compliance.

(2) Narrative description of the procedures to be used to control erosion, sedimentation and air pollution.

(3) Site map indicating locations of disturbed soil and control methods.

(4) Inspection schedule for all erosion, stormwater, and sediment control measures or best management practices (BMPs): A qualified person procured by the applicant must perform erosion, sediment and stormwater pollution prevention inspections at least weekly and within 24 hours after every rain event of one-half inch or more for sites less than five acres. Sites greater than five acres must be inspected at least weekly and within 24 hours after every rain event of one-quarter-inch or more. Maintenance must be performed within one week of the first inspection that indicates such maintenance is required.

(5) Method to be instituted to ensure that all parties who engage in activities which disturb soil or have the potential to cause stormwater pollution engage in such activities in a manner that minimizes erosion, off-site sedimentation, dust migration, and stormwater pollution to the maximum extent practicable.

(6) Identify how materials on the construction site which are capable of causing stormwater pollution will be handled and stored in order to prevent such pollution. Such materials include, but are not limited to: paint, concrete, aggregates, fertilizers, pesticides, and fuels.

If the approved plan is found to be ineffective in controlling erosion, stormwater pollution, or off-site sedimentation, the site shall be deemed out of compliance with this section. The construction site operator is responsible to amend the plan to ensure compliance. In such cases where off-site sedimentation or turbidity originates from a different site, then the property owner of that site shall be in violation of this section.
(Ord. No. 13081, § 2, 7-9-09; Ord. No. 13792, § 1, 10-11-18)

Sec. 22.5-125. Plan management.

The approved plan as amended and documentation of all inspections must be kept on the construction site until a final certificate of occupancy is issued. Within 30 days after the completion of construction for any covered project, the applicant shall submit official documentation that the applicant has complied with the plan requirement for the project. Commercial properties are further required to submit the environmental resource permit approved by the South Florida Water Management District (SFWMD) or any successor agency for the property's stormwater management system.

The documentation for the plan shall include the following:

(1) The steps taken to remove sludge and waste;

(2) Documentation of all construction site inspections and modifications to BMPs;

(3) The plan, including any amendments made during the course of construction; and

(4) Any additional information that the applicant believes is relevant to determining its efforts to comply in good faith with this chapter.

The documentation submitted with the environmental resource permit shall contain:

(1) A construction certification affidavit signed by a registered professional engineer; and

(2) A maintenance schedule plan for the onsite stormwater management system. Subsequent to the issuance of the certificate of occupancy, the property owner shall be held responsible for compliance with the environmental resource permit.
(Ord. No. 13081, § 2, 7-9-09)

Sec. 22.5-126. Failure to submit documentation.

If the documentation is submitted after the required 30-day time period, there will be a fee of $100.00. A city official shall evaluate whether

the applicant has otherwise complied with the stormwater pollution prevention requirement for the project.
(Ord. No. 13081, § 2, 7-9-09)

Sec. 22.5-127. Administrative fee.

As a condition precedent to the issuance of any resilience and public works, zoning, planning, building, or demolition permit for a construction project which will disturb 0.5 acres or more of soil, the applicant shall pay the city a stormwater utility fee of $595.00. All fees and fines generated as a result of this article shall be deposited into the stormwater utility fee account in the general fund for the stormwater management system and shall be used to administer this program and to further the city's efforts prevent pollution of stormwater systems.
(Ord. No. 13081, § 2, 7-9-09; Ord. No. 13195, § 3, 9-27-10; Ord. No. 13366, § 3, 3-14-13; Ord. No. 13792, § 1, 10-11-18;m Ord. No. 13798, § 3, 10-25-18; Ord. No. 13915, § 4, 9-24-20)

Sec. 22.5-128. Compliance and enforcement.

The code enforcement department and resilience and public works department shall evaluate compliance with this article during the course of their regular inspections. Additional inspections may be conducted by other city departments as needed, to ensure compliance with this section. If the city inspector finds that the applicant does not comply with the requirements of this article, the violated portions of this article shall be noted in the inspection report and a hold may be placed on future inspections or the temporary or final certificate of occupancy may be withheld, as appropriate.

The certificate of occupancy for a project subject to this section shall be withheld until the applicant both (A) submits the required documentation, including, where applicable, proof that any fine due under this subsection has been paid in full, and (B) performs any actions required by the resilience and public works department, building department, code enforcement department, the Miami-Dade County Department of Environmental Resource Management (DERM), or any other agency of competent jurisdiction in order to correct erosion, sediment control, or stormwater violations observed at the construction site.

Applicants and property owners whose sites fail to meet the stormwater pollution prevention criteria identified shall be subject to the following fines by code enforcement:

(1) Failure to implement or properly maintain sufficient erosion, sediment, or airborne dust controls: $1,000.00 per violation per day.

(2) Causing off-site sedimentation or turbidity to waterways, private or public property, or the storm sewer system: $1,000.00 per violation per day.

(3) Discharging water containing sediments or other substances to waterways, the storm sewer system, public, or private property: $1,000.00 per violation per day.

(4) Causing the off-site migration of airborne dust: $1,000.00 per violation.

(5) Failure to obtain or comply with the environmental resource permit subsequent to the issuance of a certificate of occupancy which results in the discharge of sediment, turbidity or stormwater from private property to adjacent private or public property: $1,000.00 per violation.

(Ord. No. 13081, § 2, 7-9-09; Ord. No. 13792, § 1, 10-11-18)

ARTICLE VII. FLORIDA-FRIENDLY FERTILIZER USE ON URBAN LANDSCAPES

Sec. 22.5-129. Purpose and intent.

This article regulates the proper use of fertilizers by any applicator; requires proper training of commercial and institutional fertilizer applicators; establishes training and licensing requirements; establishes a prohibited application period; and specifies allowable fertilizer application rates and methods, fertilizer-free zones, low maintenance zones, and exemptions. This article

requires the use of best management practices which provide specific management guidelines to minimize negative secondary and cumulative environmental effects associated with the misuse of fertilizers. These secondary and cumulative effects have been observed in and on the city's natural and constructed stormwater conveyances, rivers, creeks, canals, springs, lakes, estuaries, and other water bodies. Collectively, these water bodies are an asset critical to the environmental, recreational, cultural, and economic well-being of the city's residents and the health of the public. Overgrowth of algae and vegetation hinder the effectiveness of flood attenuation provided by natural and constructed stormwater conveyances. Regulation of nutrients, including both phosphorus and nitrogen contained in fertilizer, will help improve and maintain water and habitat quality.
(Ord. No. 13896, § 2, 4-9-20)

Sec. 22.5-130. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section unless the context clearly indicates otherwise.

Application [or] *apply*, or variants thereof means the actual physical deposit of fertilizer to turf or landscape plants.

Applicator means any person who applies fertilizer on turf and/or landscape plants in the city.

Best management practices means turf and landscape practices or combination of practices based on research, field-testing, and expert review determined to be the most effective and practicable on-location means, including economic and technological considerations, for improving water quality, conserving water supplies, and protecting natural resources.

Commercial fertilizer applicator or *commercial applicator* means any person who applies fertilizer on turf and/or landscape plants in the city in exchange for money, goods, services, or other valuable consideration.

Department means the Miami-Dade County Division of Environmental Resources Management.

Fertilize, fertilizing, or *fertilization* means the act of applying fertilizer to turf, specialized turf, or landscape plants.

Fertilizer means any substance or mixture of substances that contains one or more recognized plant nutrients and promotes plant growth, controls soil acidity or alkalinity, provides other soil enrichment, or provides other corrective measures to the soil.

Green infrastructure means a management approach engineered-as-natural ecosystems such as green roofs, porous pavement, swales, and rain gardens that largely rely on using soil and vegetation to infiltrate, evapotranspirate, or harvest stormwater runoff and reduce flows to drainage collection systems. This practice aims to preserve, restore, and create green space using soils, vegetation, and rainwater harvest techniques.

High-impact areas in public parks means turf grass areas that are heavily utilized by pedestrian traffic year-round. High-impact areas in public parks within the city will be identified by the director of the parks and recreation department or successor department.

Institutional applicator means any person other than a non-commercial or commercial applicator (unless such definitions also apply under the circumstances) that applies fertilizer for the purpose of maintaining turf and/or landscape plants. Institutional applicators shall include, but shall not be limited to, owners and managers of public lands, schools, parks, religious institutions, utilities, industrial or business sites, and any residential properties maintained in condominium and/or common ownership.

Landscape plant means any native or exotic tree, shrub, or groundcover (excluding turf).

Low impact development ("LID") means the systems and practices that use or mimic natural processes that result in the infiltration, evapotranspiration, or use of stormwater in order to protect water quality and associated aquatic

habitat. LID is an approach to land development or redevelopment that works with nature to manage stormwater as close to its source as possible.

Low maintenance zone means an area a minimum of ten feet wide adjacent to watercourses which is planted and managed in order to minimize the need for fertilization, watering, mowing, etc.

Pasture means land used for livestock grazing that is managed to provide feed value.

Person means any natural person, business, corporation, limited liability company, partnership, limited partnership, association, club, organization, or group of people acting as an organized entity.

Prohibited application period means the time period during which a flood watch or warning, a tropical storm watch or warning, a hurricane watch or warning is in effect for any portion of the city issued by the National Weather Service, if rain greater than or equal to two inches in a 24-hour period is forecasted, or if heavy rain is likely.

Restricted application period means May 15 through October 31.

Saturated soil means soil in which the voids are filled with water. Saturated soil does not require flow. For the purposes of this chapter, saturated soil includes standing water present or if the pressure of a person standing on the soil causes the release of free water.

Specialized turf means areas of grass used for golf courses, athletic fields, high impact areas, and other similar activities.

Slow release, controlled release, timed release, slowly available, or *water insoluble nitrogen* means nitrogen in a form which delays its availability for plant uptake and use after application or which extends its availability to the plant longer than a reference rapid or quick release product.

Turf, sod, or *lawn* means a piece of grass-covered soil held together by the roots of the grass.

(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Sec. 22.5-131. Reserved.

Sec. 22.5-132. Applicability.

This article shall be applicable to and shall regulate any and all applicators of fertilizer and areas of application of fertilizer within the city unless such applicator is specifically exempted by the terms of this article from the regulatory provisions of this article or an existing contract in effect at the time this article passes which provides other regulatory provisions that shall govern only until such existing contract terminates, expires, or is amended or during any declared state of emergency pursuant to chapter 45 of the City Code. This article shall be prospective only and shall not impair any existing contracts.

(Ord. No. 13896, § 2, 4-9-20)

Sec. 22.5-133. Time of fertilizer application.

(a) No applicator shall apply fertilizers containing nitrogen and/or phosphorus to turf and/or landscape plants during the prohibited application period or to saturated soils. In addition, fertilizer containing nitrogen or phosphorus shall not be applied to turf or landscape plants during the restricted application period.

(b) Fertilizer containing nitrogen or phosphorus shall only be applied to actively growing turf. Fertilizer containing nitrogen or phosphorus shall not be applied to turf that is dead.

(c) Fertilizer containing nitrogen or phosphorus shall not be applied before seeding or sodding a site and shall not be applied for the first 60 days after seeding or sodding except when hydroseeding for temporary or permanent erosion control in an emergency situation (wildfire, etc.) or in accordance with the stormwater pollution prevention plan for that site.

(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Sec. 22.5-134. Fertilizer free zones.

Fertilizer shall not be applied within 20 feet from the top of the bank of any pond, stream, watercourse, lake, canal, or wetland as defined by the Florida Department of Environmental Protection ("FDEP"), currently codified in Fla. Admin. Code 62-340, from the top of a seawall, or Biscayne Bay. If more stringent County Code regulations apply, this provision does not relieve the requirement to adhere to the more stringent regulations. Newly planted turf and/or landscape plants may be fertilized in this zone only for a 60-day period beginning 30 days after planting if needed to allow the plants to become well established. Caution shall be used to prevent direct deposition of nutrients into the water.
(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Sec. 22.5-135. Low maintenance zones.

A voluntary ten-foot low maintenance zone is strongly recommended, but not mandated, from any pond, stream, water course, lake, wetland, Biscayne Bay or from the top of a seawall. A swale/berm system is recommended for installation at the landward edge of this low maintenance zone to capture and filter runoff. If more stringent County Code regulations apply, this provision does not relieve the requirement to adhere to the more stringent regulations. No mowed or cut vegetative material should be deposited or left remaining in the low maintenance zone or deposited in the water. Care should be taken to prevent the over-spray of aquatic weed products in the low maintenance zone. Care must be taken to ensure erosion of the surface soil does not occur. Excessive erosion may result in additional pollution hazard.
(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Sec. 22.5-136. Fertilizer content and application rates.

(a) Fertilizers applied to turf and/or landscape plants within the city shall be applied to turf and/or landscape plants at the lowest recommended rate according to the "Florida Green Industries Best Management Practices for Protection of Water Resources in Florida, December 2008", as updated, with no more than four pounds of nitrogen per 1,000 square feet applied in any calendar year.

(b) Liquid fertilizers containing nitrogen applied to turf and/or landscape plants within the city shall not be applied at a rate that exceeds 0.5 pounds per 1,000 square feet per application.

(c) Solid fertilizers containing nitrogen applied to turf and/or landscape plants within the city shall not be applied at a rate that exceeds one pound per 1,000 square feet per application.

(d) Granular fertilizers containing nitrogen applied to turf and/or landscape plants within the city shall contain at least 65 percent slow release, controlled release, timed release, slowly available, or water insoluble nitrogen per guaranteed analysis label. Caution should be used to prevent direct deposition of nutrients in the water.

(e) No fertilizer containing phosphorus shall be applied to turf and/or landscape plants within the city, except where a phosphorus deficiency has been demonstrated in the soil underlying the turf and/or landscape plants by a soil analysis test performed by a State of Florida certified laboratory. Any person who obtains a soil analysis test showing a phosphorus deficiency and who wishes to apply phosphorus to turf and/or landscape plants shall provide a copy of the test results to the city prior to the application of phosphorus. Phosphorus shall not be applied in excess of the amount needed to correct the deficiency as indicated by said test results. Where a deficiency has been verified, phosphorus fertilizer shall not be applied at application rates that exceed 0.25 pounds of phosphorus per 1,000 square feet per application and not to exceed 0.50 pounds of phosphorus per 1,000 square feet per year.

(f) Fertilizers labeled for sports turf at golf courses, parks, and athletic fields shall:

(1) Have directions for use not to exceed rates recommended in the document titled SL191 "Recommendations for N, P, K and Mg for Golf Course and Athletic Field

Fertilization Based on Mehlich I Extractant" dated March 2007, as amended from time to time, which is hereby adopted and incorporated by reference into this article.

(2) Have directions for use in accordance with the recommendations in "BMP's for the Enhancement of Environmental Quality on Florida Golf Courses" published by FDEP dated October 2012. This does not exempt applicators at these sites from the required basic green industry BMP training.

(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Sec. 22.5-137. Application practices.

(a) Spreader deflector shields are required when fertilizing via rotary (broadcast) spreaders. Deflectors must be positioned such that fertilizer granules are deflected away from all impervious surfaces, fertilizer-free zones, and water bodies including wetlands.

(b) Fertilizer shall not be applied, spilled, or otherwise deposited on any impervious surfaces.

(c) Any fertilizer applied, spilled, or deposited, either intentionally or accidentally, on any impervious surface shall be immediately and completely removed to the greatest extent practicable.

(d) Fertilizer released on an impervious surface must be immediately contained and either legally applied to turf or any other legal site or returned to the original or other appropriate container.

(e) In no case shall fertilizer be washed, swept, or blown off impervious surfaces into stormwater drains, ditches, conveyances, or water bodies.

(Ord. No. 13896, § 2, 4-9-20)

Sec. 22.5-138. Management of grass clippings and vegetative matter.

In no case shall grass clippings, vegetative material, and/or vegetative debris, either intentionally or accidentally, be washed, swept, or blown off into stormwater drains, ditches, conveyances, water bodies, wetlands, sidewalks, or roadways. Any material that is accidentally so deposited shall be immediately removed to the maximum extent practicable.

(Ord. No. 13896, § 2, 4-9-20)

Sec. 22.5-139. Exemptions.

The provisions set forth in this article shall not apply to:

(1) Bona fide farm operations as defined in the Florida Right to Farm Act, F.S. § 823.14, provided that fertilizers are applied in accordance with the appropriate best management practices manual adopted by the Florida Department of Agriculture and Consumer Services, Office of Agricultural Water Policy for the crop in question, if applicable in the city.

(2) Other properties not subject to or covered under the Florida Right to Farm Act that have pastures used for grazing livestock provided that fertilizers are applied in accordance with the appropriate best management practices manual adopted by the Florida Department of Agriculture and Consumer Services, Office of Agricultural Water Policy for the crop in question, if applicable in the city.

(3) Fruit trees and shrubs provided that fertilizer application rates do not exceed University of Florida Institute of Food and Agricultural Sciences (UF/IFAS) recommendations.

(4) Vegetable gardens, owned by individual property owners or a community, provided that fertilizer application rates do not exceed UF/IFAS recommendations per SP 103 Florida Vegetable Gardening Guide, December 2008, as amended.

(5) Yard waste compost, mulches, or other similar materials that are primarily organic in nature and are applied to improve the physical condition of the soil.

(6) Tree trunk injection fertilization treatments that are performed by a certified arborist.

(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Sec. 22.5-140. Requirements related to golf courses, athletic fields, specialized turf, and parks.

(a) New and renovated golf courses. All new golf courses, all existing golf courses where more than 50 percent of the total golf course turf has been renovated or redesigned after January 1, 2022, and all portions of golf course turf which are renovated or redesigned after January 1, 2022 shall meet all of the following requirements. These requirements shall apply to both public and private golf courses.

(1) Best management practices are encouraged to be incorporated as provided in "Best Management Practices for the Enhancement of Environmental Quality on Florida Golf Courses" published by the Florida Department of Environmental Protection, as may be amended.

(2) Golf courses shall submit design plans to the department that minimize areas that require golf course turf and maximize the use of (i) native trees, shrubs, or groundcover landscaping; (ii) Florida-friendly trees, shrubs, or groundcover landscaping; or (iii) wetlands or other stormwater retention areas.

(3) A certified turfgrass species such as Bermuda, Paspalum, St. Augustine, Zoysia, or other certified turfgrass species in consultation with the director that requires a comparably low amount of fertilization and water consumption shall be used for all golf course turf areas.

(4) Green infrastructure elements or LID design shall be incorporated into the design of the golf course's drainage system and in allowing ample, uncompacted areas for tree root growth.

(5) Fertilizer shall not be applied within 20 feet of any of the following, which area shall be referred to as a "fertilizer-free zone":

a. From the top of the bank of any pond, stream, watercourse, lake, surface waterbody, stormwater drain, or canal;

b. Any wetland as defined in Chapter 62-340 of the Florida Administrative Code;

c. From the top of a seawall; or

d. Biscayne Bay.

(b) New and renovated athletic fields. All new athletic fields and all existing athletic fields where more than 50 percent of the total athletic field has been renovated or redesigned after January 1, 2022 shall meet all the following requirements:

(1) Best management practices shall be incorporated for landscaping through the use of native and Florida-friendly trees, shrubs, and ground cover landscaping.

(2) Green infrastructure elements or LID design shall be incorporated into the design of the athletic field's drainage system and in allowing ample, uncompacted areas for tree root growth.

(3) Fertilizer shall not be applied within 20 feet of any of the following, which area shall be referred to as a "fertilizer-free zone":

a. From the top of the bank of any pond, stream, watercourse, lake, surface waterbody, stormwater drain, or canal;

b. Any wetland as defined in Chapter 62-340 of the Florida Administrative Code;

c. From the top of a seawall; or

d. Biscayne Bay.

(c) Renovated parks. All existing parks where more than 50 percent of the total park has been renovated or redesigned after January 1, 2022 shall meet all the following requirements:

(1) Best management practices for landscaping shall be incorporated through the use of native and Florida-friendly trees, shrubs, and ground cover landscaping.

(2) Green infrastructure elements or LID design shall be incorporated into the

design of the park's drainage system and in allowing ample, uncompacted areas for tree root growth.

(3) Fertilizer shall not be applied within 20 feet of any of the following, which area shall be referred to as a "fertilizer-free zone":

a. From the top of the bank of any pond, stream, watercourse, lake, surface waterbody, stormwater drain, or canal;

b. Any wetland as defined in Chapter 62-340 of the Florida Administrative Code;

c. From the top of a seawall; or

d. Biscayne Bay.

(d) Fertilizer management plan for renovations. All renovations to any golf course, athletic field, or park shall require preparation of a management plan with fertilization strategies, chemical-mixes, and distribution/utilization regimes to reduce nitrogen and phosphorus-related nutrient load and said management plan shall be provided to the department upon request. Said management plans may be modified, with notice to the department, and modified management plans shall be provided to the department upon request.

(e) Fertilizers applied to parks and athletic fields shall be formulated and applied in accordance with requirements and directions provided by Rule 5E-1.003(3)(b), Florida Administrative Code, as may be amended.

(f) Fertilizers applied to turf and landscape plants shall be formulated and applied in accordance with requirements and directions provided by Rule 5E-1.003(4), Florida Administrative Code, Labeling Requirements For Urban Turf Fertilizers, as may be amended.

(g) Fertilizers labeled for sports turf at golf courses, parks, and athletic fields shall:

(1) Have directions for use not to exceed rates recommended in the document titled SL 191 "Recommendations for N, P, K, and Mg for Golf Course and Athletic Field Fertilization Based on Mehlich III Extractant," dated March 2007, as may be amended; and

(2) Have directions for use in accordance with the recommendations in "BMPs for the Enhancement of Environmental Quality of Florida Golf Courses" published by the Florida Department of Environmental Protection, dated October 2012. This does not exempt applicators at these sites from the required basic green industry BMP training.

(h) Soil tests and records. All public and private golf courses, public athletic fields, public parks with specialized turf, and high-impact areas in public parks shall administer a nutrient soil test at least once every six months and shall maintain records of monthly fertilizer usage. For the required nutrient soil tests, golf courses shall test at least three greens and three fairways and if a golf course abuts or is intersected by a water body, at least one test shall be from the area abutting or intersected by the water body. Nutrient soil test results and monthly fertilizer-use for the preceding 12-month period shall be provided to the director upon request.

(i) Quarterly reports for golf courses. Beginning on January 1, 2022, all public and private golf courses are required to submit quarterly reports to the department in a form approved by the director, which shall address fertilizer usage, low-maintenance landscaping, compliance with the requirements of this chapter, fertilizer-related training, actions taken to voluntarily reduce fertilizer usage beyond the requirements of this chapter, and incidents such as algae blooms or fish kills.

(j) All public and private golf courses are encouraged to follow the provisions of the Florida Department of Environmental Protection document titled "BMPs for the Enhancement of Environmental Quality on Florida Golf Courses, January 2012," as may be amended.

(k) High impact areas in public parks and athletic fields are encouraged to follow the provisions of the "Florida Green Industries Best

Management Practices for Protection of Water Resources in Florida, December 2008," as may be amended.

(l) Waivers. The city may approve limited waivers of the requirements set forth in this section in accordance with all of the following:

(1) The request is submitted in writing.

(2) The request details the project's design, details, and what unnecessary hardship or practical difficulty the applicant would incur from compliance with the requirements.

(3) The city determines that the applicant made a good faith effort to achieve substantial compliance with the applicable requirements and that the applicant would incur an unnecessary hardship or practical difficulty from compliance with the requirements.

(Ord. No. 14006, § 2, 6-10-21)

Sec. 22.5-141. Training.

(a) All commercial and institutional applicators of fertilizer within the city shall abide by and successfully complete the six-hour training program in the "Florida-Friendly Best Management Practices for Protection of Water Resources by the Green Industries" offered by FDEP through the University of Florida Extension "Florida-Friendly Landscapes" program.

(b) Private, non-commercial applicators are required to follow the recommendations of the University of Florida Institute of Food and Agricultural Sciences (UF/IFAS) Florida Yards and Neighborhoods program when applying fertilizers.

(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Editor's note—Ord. No. 14006, § 2, adopted June 10, 2021, redesignated the former sections 22.5-140—22.5-143 as sections 22.5-141—22.5-144. The historical notation of said sections has been preserved for reference purposes.

Sec. 22.5-142. Licensing of commercial applicators.

(a) All commercial applicators of fertilizer within the city shall abide by and successfully complete training and continuing education requirements in the "Florida-friendly Best Management Practices for Protection of Water Resources by the Green Industries" offered by FDEP through the University of Florida Institute of Food and Agricultural Sciences (UF/IFAS) "Florida-Friendly Landscapes" program prior to obtaining a city local business tax receipt ("BTR") for any category of occupation which may apply any fertilizer to turf and/or landscape plants. Commercial fertilizer applicators shall provide proof of completion of the program to the department of code compliance when applying for the BTR within 180 days of the effective date of this article.

(b) All businesses of any category of occupation who may apply fertilizer to turf and/or landscape plants (including but not limited to residential lawns, golf courses, commercial properties, and multi-family and condominium properties) must ensure that at least one employee has an appropriate "Florida-Friendly Best Management Practices for Protection of Water Resources by the Green Industries" training certificate prior to the business owner obtaining a BTR.

(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Note—See editor's note at section 22.5-141.

Sec. 22.5-143. Enforcement.

Funds generated by penalties imposed under this article shall be used by the city for the administration and enforcement of F.S. § 403.9337, and the corresponding sections of this article and to further water conservation and nonpoint pollution prevention activities.

(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Note—See editor's note at section 22.5-141.

Sec. 22.5-144. Penalties.

A violation of any provision of this article shall be punishable by a fine of $250.00 for a first offense and $500.00 for each offense thereafter and shall be enforced pursuant to the provisions of chapter 2, article X of the City Code. The city, including its departments, boards, and agencies, may take any and all appropriate action to enforce the provisions of this article, including but not limited to code enforcement action pursu-

ant to chapter 2, article X of the City Code, emergency injunctive action, and any other action permitted by law, including but not limited to F.S. ch. 162. The use of one remedy shall not preclude the use of another.
(Ord. No. 13896, § 2, 4-9-20; Ord. No. 14006, § 2, 6-10-21)

Note—See editor's note at section 22.5-141.

Chapter 23

HISTORIC PRESERVATION*

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ARTICLE I. HISTORIC PRESERVATION*

Sec. 23-1. Intent and purpose.

(a) The intent of this chapter is to preserve and protect the heritage of the city through the identification, evaluation, rehabilitation, adaptive use, restoration, and public awareness of Miami's historic, architectural, and archaeological resources. This chapter is further intended to:

(1) Effect and accomplish the protection, enhancement, perpetuation, and use of structures, landscape features, archaeological and pale ontological resources, areas, neighborhoods, and scenic vistas which represent distinctive elements of the city's historic, cultural, archaeological, pale ontological, aesthetic, and architectural heritage.

(2) Foster civic pride in the accomplishments of the past.

(3) Protect and enhance the aesthetic and environmental character, diversity, and interest of neighborhoods.

(4) Stabilize and improve property values in neighborhoods and in the city.

(5) Protect and enhance the city's attraction to residents, tourists, and visitors and thereby serve as a support and stimulus to the economy.

(6) Promote the use of historic resources, historic districts, and archaeological sites and zones for the education, pleasure, and welfare of the people of the city.

(b) The purpose of this chapter is to:

(1) Provide the framework and legal mechanism for identifying and designating those properties that have major significance in the city's historic, cultural, archaeological, paleontological, aesthetic, and architectural heritage.

(2) Provide a mechanism whereby the HEPB may, in the interest of historic preservation, waive certain zoning requirements for those existing structures deemed individually significant, or "contributing" within a designated historic district, or a thematically-related historic resource within a multiple property designation.

(3) Provide a mechanism whereby the historic and environmental preservation board may, in the interests of historic preservation, allow signage which has been deemed "historic" to remain, and be repaired, restored, relocated, structurally altered, or reconstructed.

(4) Through the historic preservation exception or exclusion, provide mechanisms for the granting of certain uses when the granting of such use is necessary to encourage or assure the continued preservation of the individually designated historic resource, or "contributing" building within a historic district, or a thematically-related historic resource within a multiple property designation.

(5) Provide an incentive for historic resources, and those deemed "eligible" by the city HEPB for historic designation, known as "Transfer of Development Rights and Density for Historic Resources."

(6) Establish minimum standards to qualify eligible resources, that while not yet officially locally designated under the provisions of this chapter, qualify as eligible for listing and thereby may apply for transfer of development rights and density, provided that the resource is formally listed in the city register of historic places within one year from the

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***Editor's note—**Ord. No. 13008, § 2, adopted June 26, 2008, amended article I in its entirety to read as herein set out. Formerly, article I pertained to similar subject matter, and derived from the Code of 1980, §§ 23.1-1—23.1-6; Ord. No. 10875, § 1, adopted April 25, 1991; Ord. No. 11200, § 3, adopted November 17, 1994; Ord. No. 11564, § 11, adopted October 28, 1997; Ord. No. 12195, § 2, adopted March 7, 2002; Ord. No. 12496, § 2, adopted February 26, 2004.

Ord. No. 13008 enacted provisions intended for use as sections 23-7—23-9. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as sections 23-6.1—23-6.3.

date of the historic and environmental preservation board's review of the application.

(7) Establish procedures for the review of nominations to the national register of historic places as governed by the requirements of the state division of historical resources.

(8) Assure that alterations and new construction within designated historic sites, historic districts, multiple property designations, and archaeological zones are compatible with the property's historic character.

(c) Pursuant to subsection 16A-3(2)(c) of the Code of Miami-Dade County, Florida, the city expressly reserves and retains jurisdiction over archaeological zones and sites within the city.
(Ord. No. 13008, § 2, 6-26-08; Ord. No. 13116, § 2, 10-22-09; Ord. No. 13180, § 2, 5-27-10; Ord. No. 13537, § 2, 7-23-15; Ord. No. 13712, § 2, 11-16-17; Ord. No. 13785, § 2, 9-13-18)

Sec. 23-2. Definitions.

The following definitions shall apply only to this chapter; undefined terms shall be defined as set forth in the National Historic Preservation Act of 1966, as amended, or as commonly used:

Accelerated certificate of appropriateness. A review of proposed physical changes to a historic resource that is conducted by the board concurrently with a request for historic designation.

Adaptive reuse. The process of converting a building to a use other than that for which it was designed.

Addition. A construction project physically connected to the exterior of a building.

Alteration. Any change affecting the exterior appearance of a structure or its setting by additions, reconstruction, remodeling, or maintenance involving change in color, form, texture, signs, or materials, or any such changes in appearance of designated interiors.

Applicant. The owner of record of a property and/or structures located thereon, or their authorized representative.

Application, complete. An application for approval sought pursuant to this chapter shall be deemed complete if it is on a form approved by the city and all applicable information is provided by the applicant on the form, or attachment(s), as applicable or necessary, at the time of its filing and all required fees are paid.

Archaeological conservation area. A geographically defined area delineated in the Miami comprehensive neighborhood plan on the future land use plan map series entitled "Historic District Boundaries and Historically Significant Properties Meriting Protection" where the probability of sub-surface artifacts is considered likely.

Archaeological site. A single specific location which has yielded or is likely to yield information on local history, prehistory, or paleontology, and which has been designated as such through the provisions of this chapter.

Archaeological zone. A geographically defined area which may reasonably be expected to yield information on local history, prehistory, or paleontology based upon broad prehistoric or historic settlement patterns, and which has been designated as such through the provisions of this chapter.

Certificate of appropriateness. A written document, issued pursuant to this article, permitting specified alterations, demolitions, or other work; or to allow certain waivers from the criteria set forth in the zoning ordinance and this chapter.

Certificate of approval. A written document permitting tree removal or development activity within those areas identified and established as environmental preservation districts or scenic transportation corridors.

Certificate of eligibility. A written document issued by the planning director or designee to the eligible historic resource (sending site), stipulating the amount of area and/or density available for transfer.

Certificate of transfer. A document issued by the planning director or designee that authorizes the transfer of specified undeveloped rights from a historic resource (sending property) to a receiving site. Certificates of transfer shall comply

with all applicable land development regulations as that term is defined by F.S. § 163.3164, as amended, "Community Planning Act; definitions".

Certificate to dig. A written document permitting certain ground disturbing activities, such as filling, grading, swimming pool excavation and the removal of vegetation or trees that may involve the discovery of as yet unknown or known archaeological resources within a designated archaeological site or zone.

Certified local government. A government satisfying the requirements of the U.S. National Historic Preservation Act amendments of 1980 (Public Law 96-515) and the implementing of applicable regulations of the department of the interior and the state.

Contributing resource/landscape feature. A building, landscape feature, site, structure or object that adds to the historical/architectural qualities, historic associations, or archaeological values for which a district is significant because: it was present during the period of significance of the district, and possesses historic integrity, reflecting its character at that time; or it is capable of providing important information about the period; or it independently meets the National Register of Historic Places criteria for evaluation set forth in 36 CFR Part 60.4 incorporated by reference.

Cultural facility. A place established for the advancement of culture, including but not limited to: art, dance, music, literature and other intellectual and performance activities.

Demolition. The complete destruction of a structure, or any part thereof.

Demolition by neglect. The deliberate or inadvertent failure to maintain minimum maintenance standards for those properties designated historic either individually or as a contributing property within a historic district or as a thematically-related historic resource within a multiple property designation by action of the historic and environmental preservation board.

Density. Density will be as defined by Article 1 of Miami 21 and by F.S. § 163.3164, as amended, "Community Planning Act; definitions," which provides that it means an objective measurement of the number of people or residential units allowed per unit of land, such as residents or employees per acre.

Eligible historic resource. A term used to describe archaeological sites and individual buildings, which have not yet been locally designated under the provisions under this chapter but have met the eligibility criteria and been certified by the historic and environmental preservation board as having met that criteria; so that they may take advantage of the transfer of development and density rights programs, providing that their owners commit to the official local designation within a period of one year from the board's approval of the determination of eligibility.

Environmental preservation district. Geographical areas, parcels or corridors, which have been or may be identified in the future, established by the city commission as having significant natural or landscape attributes in need of preservation and control because of their educational, economic, ecological and environmental importance to the welfare of the general public and the city as a whole, and identified in the official atlas of environmental preservation districts and scenic transportation corridors.

Existing conditions report. A report prepared by a registered architect or engineer that describes the current general condition of an eligible historic resource that is applying for a certificate of transfer.

Florida master site file (FMSF). The list, or catalog, maintained by the division of historical resources, of those recorded historical and archaeological sites and properties in the state, usually the result of a systematic survey.

Ground disturbing activity. Any excavation, filling, digging, removal of trees, or any other activity that may alter or reveal an interred archaeological or pale ontological site.

Historic district. A geographically defined area possessing a significant concentration, linkage,

or continuity of sites or structures united historically or aesthetically by plan or physical development.

Historic and environmental preservation atlas. The official historic and environmental preservation atlas of the city, as amended, which shows all designated historic sites, historic districts, multiple property designations, and archaeological zones.

Historic preservation exception. When used in this chapter, an exception allows for a certain use to be allowed in specifically identified transects, when such use results in significant preservation strategies.

Historic preservation exclusion. When used in this chapter, an exclusion allows for a cultural facilities use in medium and high density multifamily (general urban) zones, when such use results in significant preservation objectives.

Historic preservation waiver. When used in this chapter, a difference from what is required under the underlying transect provisions and what may be allowed when used to promote historic preservation.

Historic resource. An overarching term used to describe the various categories of properties which have demonstrated significance in the history of the city, the county, the state and/or the nation. These properties include landscape features, archaeological sites and zones, structures, buildings, districts, multiple property designations, and objects.

Historic sign. A sign that has demonstrated artistic, historic, cultural, and/or aesthetic value, as determined by resolution of the HEPB.

Historic site. The location of a significant event, a prehistoric or historic occupation or activity, or a vanished structure, where the location itself possesses historic, cultural, archaeological, or pale ontological value.

Infill. New construction that has been designed and built to replace missing structures or otherwise fill gaps in the streetscape of a historic district.

Interim protection measure. The interim period of time needed to protect a property building, structure, object and/or landscape feature from demolition, relocation, alteration, or new construction until such period of time provided by law passes for the property to be considered for designation as a historic site, historic district, multiple property designation, or archaeological zone.

Intervenor. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public. A person shall be entitled to the presumption of intervenor status if the person owns the subject property or owns property abutting the subject property. Furthermore, a person shall be entitled to intervenor status if the person owns property within a 500-foot radius from the subject property but is not the property owner or abutting property owner and has a particular interest in the application that is different in kind and degree than the general public. Abutting shall mean to reach or touch; to touch; to touch at the end or be contiguous with; join at a border or boundary; terminate on; and includes properties across a street or alley. A person recognized by the decision-making body, including the historic and environmental preservation board and the city commission, as an intervenor may make a presentation, call and examine witnesses, conduct cross-examinations of witnesses, introduce exhibits, rebut evidence, and make final arguments in the order as decided by the chair of the body to effectuate orderly and efficient proceedings.

Landscape feature. Vegetation, geological features, ground elevation, bodies of water or other natural or environmental features.

Locally designated historic resource. Any archaeological site or zone; individual building; structure, object, landscape feature, historic district, or multiple property designation that has been approved for designation by the city's HEPB, as prescribed by the provisions of this chapter, and shown in the historic and environmental preservation atlas.

Maintenance plan. A written document submitted by the owner of an eligible historic resource

for the transfer of development rights program, that identifies any existing deficiencies in the building along with a remediation plan for the short term, and which further identifies a plan for the cyclical maintenance of the building for the long term.

Miami register of historic places. The list of locally designated historic resources that have met the criteria for significance and have been designated by the HEPB, pursuant to the provisions of this chapter.

Multiple property designation. A collection of two or more historic resources related by a common theme, general geographical area, and period of time that has been designated by the HEPB pursuant to the provisions of this chapter. A group of historic resources shall qualify for designation as a multiple property designation when each historic resource meets the designation criteria set forth in section 23-4. Each property in a multiple property designation shall be evaluated and reviewed individually even though it is included in the multiple property designation. Multiple property designation(s) including thematically-related multiple property designation(s) may only be made or considered in the following Neighborhood Conservation Districts ("NCD") as set forth in Appendix A to the Miami 21 Code: (i) NCD-2: Village West Island District and Charles Avenue; (ii) NCD-3: Coconut Grove Neighborhood Conservation District.

National register of historic places. The list of historic properties significant in American history, architecture, archaeology, engineering and culture, maintained by the Secretary of the Interior, as established by the National Historic Preservation Act of 1966, as amended.

Non-contributing resource. A building, landscape feature, object, structure, or archaeological resource that does not add to the historic architectural qualities, historic associations, or archaeological values for which a district is significant because it was not present during the period of significance of the district; due to alterations, disturbances, additions or other changes, it no longer possesses historic integrity reflecting its character at that time, or is incapable of yielding important information about the period; or does not independently meet the national register of historic places criteria for evaluation.

Ordinary maintenance or repair. Any work, the purpose and effect of which is to correct any deterioration or decay of a structure or landscape feature, or any part thereof, by restoring it, as nearly as may be practicable, to its condition prior to such deterioration or decay, using the same materials or those materials available which are as close as possible to the original.

Preservation. The act or process of applying measures to sustain the existing form, integrity, and material of a building or structure. It may include initial stabilization work as well as ongoing maintenance of the historic building.

Receiving site. A parcel or parcels that have increased their development rights and/or density through the purchase and application of a historic TDR and/or TDD purchase.

Reconstruction. The act or process of reproducing by new construction the exact form and detail of a vanished structure as it appeared at a specific period of time.

Rehabilitation. The act or process of returning a property to a state of utility through repair or alteration which makes possible an efficient contemporary use while preserving those portions or features of the property which are significant to its historical, architectural, and cultural values.

Relocation. Any change of the location of a structure in its present setting or to another setting.

Restoration. The act or process of accurately recovering the form and details of a property and its setting as it appeared at a particular period of time by means of the removal of later work or by the replacement of missing earlier work.

Scenic transportation corridor. Those roadways that have been identified as having a unique landscape character and/or an expansive tree canopy that is of substantial environmental importance to the city, as described in subsection 17-31(3).

Sending property. The qualifying historic resource that is selling its unused base development rights and/or development density to the receiving site.

Structure. Anything constructed or erected, the use of which requires a fixed location on the ground or attachment to something having fixed location on the ground.

Thematically-related. A group of historic resources related by a common theme.

Transfer of development density (TDD). The sale of the unused development density to another party upon a binding written commitment that results in the restoration, rehabilitation, and/or preservation of the historic resource for the public benefit. A TDD shall comply with all applicable land development regulations as that term is defined by F.S. § 163.3164, as amended, "Community Planning Act; definitions".

Transfer of development rights (TDR) for historic resources. The sale of the unused development rights to another party upon a binding written commitment that results in the restoration, rehabilitation and/or preservation of the historic resource for the public benefit.

Unreasonable or undue economic hardship. An onerous and excessive financial burden that destroys reasonable and beneficial use of property and that would amount to the taking of property without just compensation, or failure to achieve a reasonable economic return in the case of income-producing properties.
(Ord. No. 13008, § 2, 6-26-08; Ord. No. 13116, § 2, 10-22-09; Ord. No. 13133, § 1, 1-28-10; Ord. No. 13180, § 2, 5-27-10; Ord. No. 13537, § 2, 7-23-15; Ord. No. 13712, § 2, 11-16-17; Ord. No. 13785, § 2, 9-13-18; Ord. No. 13971, § 3, 2-25-21)

Sec. 23-3. Historic and environmental preservation board; preservation officer.

The historic and environmental preservation board (hereinafter referred to as the "board") and the preservation officer, as established pursuant to sections 62-186 and 62-191, as amended, shall carry out the duties as assigned by this chapter and other applicable laws.
(Ord. No. 13008, § 2, 6-26-08)

Sec. 23-4. Designation of historic resources, historic districts, multiple property designations, and archaeological sites and zones.

(a) *Criteria for designation.* Properties may be designated as historic resources, historic districts, multiple property designations, or archaeological sites and zones only if they have significance in the historical, cultural, archaeological, paleontological, aesthetic, or architectural heritage of the city, state, or nation; possess integrity of design, setting, materials, workmanship, feeling, and association; and meet one or more of the following criteria:

(1) Are associated in a significant way with the life of a person important in the past;

(2) Are the site of a historic event with significant effect upon the community, city, state, or nation;

(3) Exemplify the historical, cultural, political, economic, or social trends of the community;

(4) Portray the environment in an era of history characterized by one or more distinctive architectural styles;

(5) Embody those distinguishing characteristics of an architectural style, or period, or method of construction;

(6) Are an outstanding work of a prominent designer or builder;

(7) Contain elements of design, detail, materials, or work of outstanding quality or which represent a significant innovation or adaptation to the South Florida environment; or

(8) Have yielded, or may be likely to yield, information important in prehistory or history.

(b) *Criteria exceptions.* Ordinarily cemeteries, birth places, or graves of historical figures, properties owned by religious institutions or used for religious purposes, structures that have been moved from their original locations, reconstructed historic buildings, properties primarily commemorative in nature and properties that have achieved significance within the past 50 years shall not be considered eligible for listing in the Miami register of historic places. However, such properties will qualify for designation if they are integral parts of districts or multiple property designations that do meet the criteria, or if they fall within the following categories:

(1) A building or structure that has been removed from its original location but is significant primarily for architectural value, or is the surviving structure most importantly associated with a historic person or event;

(2) A birthplace or grave of a local historical figure of outstanding importance if no appropriate site or building exists directly associated with his or her productive life;

(3) A cemetery that derives its primary significance from graves of persons of outstanding importance, from age, from distinctive design features, or from association with historic events;

(4) A reconstructed building when accurately executed in a suitable environment and presented appropriately as part of a restoration master plan and no other building or structure with the same association has survived;

(5) A property primarily commemorative in intent if design, age, tradition, or symbolic value has invested it with its own exceptional significance;

(6) A property achieving significance within the past 50 years if it is exceptionally important; or

(7) A religious property deriving primary significance from architectural or artistic distinction or historical importance.

(c) *Procedures for designation.* Properties which meet the criteria set forth in section 23-4 may be designated as historic resources, historic districts, multiple property designations, and archaeological sites and zones according to the following procedures:

(1) *Proposals and preliminary evaluation.* Proposals for designation may be made to the board by a supermajority vote of its members present after one or more members of the board request it to be placed on a board agenda, by the mayor, by the city manager, by resolution of the planning, zoning and appeals board approved by a supermajority vote of the members present, by resolution of the city commission approved by a supermajority vote of the members present, by the property owner, by resolution of the county historic preservation board approved by a supermajority vote of the members present, by resolution of any organization that has been a registered non-profit corporation in the state for at least five years with a recognized interest in historic preservation approved by a supermajority vote of the members present, or by the preservation officer. In those instances when a historic district or multiple property designation is being considered, the preservation office shall conduct outreach involving all relevant homeowner associations and neighborhood associations, ultimately ascertaining their level of support by way of resolution or vote. Said level of support shall be taken into consideration by staff and members of the HEPB when evaluating any proposed historic district or multiple property designation. The board shall conduct a preliminary evaluation of the data provided in the proposal for conformance with criteria set forth in subsection (a); and shall, if appropriate, direct the planning department to prepare a designation report. The board may require the party initiating such proposal to provide any necessary documentation, and to pay any applicable fees.

a. *Notification.* At least ten days prior to the meeting at which the board

will consider the preliminary evaluation, the owner of property or his designated agent or attorney, on file with the city, which is the subject of said proposal for designation shall be notified by certified mail of the board's intent to consider the preliminary evaluation of the property. Should the applicant be a person other than the property owner or designated agent or attorney on file with the city, the applicant shall be notified and the owner of record of the subject property shall be notified. For historic districts or multiple property designations where there are more than 50 properties to be considered, for designation, the owners shall be notified by first class mail and by the published notice.

The notice sent by certified mail of the board's intent to consider the preliminary evaluation of the property, when sent to the property owners of involuntarily designated residentially zoned properties in a T3-O designated transect zone that are not the applicants, will state the right to appeal the board's final decision regarding designation to the city commission, and will include in the notification a statement of the fee waiver provision contained in subsection (c)(7) herein.

b. *Interim protection measures.* From the date said notice of the preliminary evaluation is mailed, no building permit for any new construction, alteration, relocation, or demolition that may affect the property proposed for designation shall be issued until one of the following occurs:

1. The board finds that the property does not appear to meet the criteria for designation and votes not to direct the planning department to prepare a designation report in accordance with subsection (c)(1);
2. The board approves or denies the designation in accordance with this section, or 120 days have elapsed, whichever shall occur first, unless this time limit is waived on the record by mutual consent of the owner and the board; or
3. The owner applies for an accelerated certificate of appropriateness prior to final action on the designation by the board, and such certificate of appropriateness has been issued in accordance with the provisions of section 23-6.2. The preservation office shall place said application for a certificate of appropriateness on the next available agenda of the board. Any owner who carries out or causes to be carried out any work without the required certificate of appropriateness shall be subject to the provisions of subsection 23-6.2(f).

(2) *Preparation of designation report.* For every proposed historic site resource, historic district, multiple property designation, and archaeological zone, the planning department shall prepare a designation report containing the following information:

a. *Designation report.* The designation report shall contain a statement of the historic, architectural, and/or archaeological significance of the proposed historic resource, historic district, multiple property designation, or archaeological site or zone; the criteria upon which the designation is based; a physical description of the property; an identification of contributing structures, landscape features, and/or thematically-related historic resources; present trends

and conditions; and incentives to encourage preservation, rehabilitation, or adaptive use.

b. *Boundaries.* The designation report shall include a map or maps indicating proposed boundaries. Boundaries for historic resources shall generally include the entire property or tract of land, unless such tract is so large that portions thereof are visually and functionally unrelated to any contributing structure or landscape feature. Historic district boundaries shall in general be drawn to include all contributing structures reasonably contiguous within an area and may include properties which individually do not contribute to the historic character of the district, but which require regulation in order to control potentially adverse influences on the character and integrity of the district. Multiple property designation boundaries shall, in general, be drawn to include all historic resources related by a common theme and may include properties which individually have no relation to the theme. Properties within the boundary that have no relation to the theme will not require regulation under this chapter of the City Code unless they are individually designated historic resources or included within a historic district or archaeological zone. Archaeological zone boundaries shall generally conform to natural physiographic features which were the focal points for prehistoric and historic activities or may be drawn along property lines, streets, or geographic features to facilitate efficient management.

c. *Interiors.* Interior spaces that have exceptional architectural, artistic, or historic importance and that are regularly open to the public may be subject to regulation under this chapter. The designation report shall describe precisely those features subject to review and shall set forth standards and guidelines for such regulations. Interior spaces not so described shall not be subject to review under this chapter.

(3) *Notice and public hearing.* The board shall conduct a public hearing to determine whether the proposed historic resource, historic district, multiple property designation, archaeological site or zone meets the criteria set forth in subsection (a) and shall approve, amend, or deny the proposed designation. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. All approvals or amendments of designations by the board shall require an affirmative vote of a supermajority of the board members present. The board may rehear proposals based upon policies set forth in its rules of procedure. All public hearings on designations conducted by the board, except as provided in subsection (c)(1)a., and hearings on appeals of board decisions to the city commission regarding designations shall be noticed as follows:

a. The owner of property or his/her designated agent or attorney, if any, which is the subject of such designation shall be notified by mail at least 30 days prior to the board's meeting and 15 days prior to subsequent administrative appellate hearings. The owner shall receive a copy of the designation report unless there are more than 20 owners, in which case the notice shall state that a copy is available and where it may be obtained.

b. An advertisement shall be placed in a newspaper of general circulation at least ten days prior to the hearing.

c. Signs shall be posted pursuant to subsection 62-129(2)a., as amended.

d. Notice of the time and place of the public hearing by the board, or city commission, as the case may be, shall be sent at least ten days in advance of the hearing by mail to all owners of property within 500 feet of the property lines of the land for which the hearing is required. The applicant, or the appellant as applicable, shall be charged the appropriate fee established for this purpose.

e. For the purpose of this chapter, the names and addresses of property owners shall be deemed those appearing on the latest tax rolls of Miami-Dade County. The preservation officer, or his/her designee, shall certify at the time of the public hearing that notice as herein required was given to the persons as named and with addresses shown on his/her certification by the placing in the mail system of the United States on the date certified the herein required notice, the certification shall be conclusive of the giving of such notice; in the case of condominiums, notice will be sent solely to the condominium association. No action taken by the board, or the city commission, shall be voided by the failure of an individual property owner or property owners to receive notice pursuant to this chapter.

(4) *Historic and environmental preservation atlas.* Historic sites, historic districts, multiple property designations, and archaeological zones designated pursuant to section 23-4 shall be shown in the "Official Historic and Environmental Preservation Atlas of the City of Miami, Florida," as amended.

(5) *Electronic building records.* Following the designation of a resource, the historic preservation officer shall note the property as a historic resource in the city's building department records.

(6) *Notifications.* Following the designation of a resource, the historic preservation officer shall notify the following parties with a copy of the resolution:

a. The owner(s) of record. The notification to the owner(s) of record shall clearly state that the property has been designated and such designation may be appealed to the city commission within 60 days. The notification shall also summarize the procedure for appeals to the city commission as detailed in subsection (7) below.

b. The Miami-Dade County Clerk of the Courts.

(7) *Appeals.*

a. The property owner, any one member of the city commission, the planning department, or any aggrieved party that has standing under Florida law may appeal to the city commission any decision of the board on matters relating to designations by filing within 60 calendar days after the date of the decision a written notice of appeal with the hearing boards department, with a copy to the preservation officer. Such notice of appeal shall set forth concisely the decision appealed from and the reasons or grounds for the appeal. Appellate fees for property owners of involuntarily designated residentially zoned properties in a T3-O designated transect zone that are not the applicants, are waived. The city shall bear the cost prescribed by chapter 62 for each mailed notice required pursuant to this section. Except as appellate fees and mailed notice costs are expressly waived above, each appeal shall be accompanied by a fee of $525.00, plus the cost prescribed by chapter 62 for each mailed notice required pursuant to this section. A person whose interests in the proceeding are adversely affected in

a manner greater than those of the general public may request intervenor status as defined in this chapter. The city commission shall hear and consider all facts material to the appeal and render a decision as promptly as possible. The city commission may affirm, modify, or reverse the board's decision. Any decision to reverse the board's decision shall require a three-fifths vote of all members of the city commission. Appeals from decisions of the city commission may be made to the courts as provided by the Florida Rules of Appellate Procedure. The provisions of this section shall remain in effect during the entire appeal process, unless stayed by a court of competent jurisdiction. The appeal shall be a de novo hearing and the city commission may consider new evidence or materials in accordance with the zoning ordinance. Appeals concerning designations shall be made directly to the city commission, within 60 calendar days after the date of the decision, and follow the procedures described herein. The office of hearing boards shall schedule the appeal on the next available city commission meeting following receipt of the appeal.

(8) *Amendments.* The board may amend any designation by following the same procedures as set forth in this section. The board may likewise rescind any designation if the structure or feature of principal historic significance has been demolished or destroyed.

(d) *Reserved.*

(e) *Effect of designation.* Upon designation, and thereafter, the provisions of section 23-6.2 shall apply.

(Ord. No. 13008, § 2, 6-26-08; Ord. No. 13116, § 2, 10-22-09; Ord. No. 13142, § 10, 2-11-10; Ord. No. 13512, § 2, 4-9-15; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13712, § 2, 11-16-17; Ord. No. 13777, § 2, 7-26-18; Ord. No. 13912, § 2, 7-23-20; Ord. No. 13971, § 3, 2-25-21)

Sec. 23-5. Nomination to the national register of historic places.

(a) *Responsibilities under the certified local government program.* As part of the duties under the certified local government program, the HEPB shall receive all nominations to the national register of historic places for any properties located within the city, following the regulations of the state division of historical resources.

(b) *Notice requirements.* The HEPB shall give notice to the owners of the property at least 30 days but not more than 75 days prior to the historic preservation board meeting at which the

nomination will be considered. The HEPB shall also obtain a written recommendation from the city commission and the Miami-Dade Board of County Commissioners whether each property should be nominated to the National Register, and these recommendations shall be given to the HEPB within 30 days.

(c) *Owner notification and requirements for comment.* The HEPB shall obtain comments from the public that shall be included in the report making a recommendation. Objections to being listed in the national register by property owners must be notarized and filed with the historic preservation office. Within 30 days after its meeting, the HEPB shall forward to the state historic preservation officer its action on the nomination and the recommendations of the local officials. Appropriate local officials, the owner and the applicant shall be notified of the HEPB's actions.

(d) *Referral to the state historic preservation officer.* The state historic preservation officer will take further steps on the nomination in accordance with federal and state regulations. If either the HEPB or local officials, or both, support the nomination, the state historic preservation officer will schedule the nomination for consideration by the state review board for the national register at its next regular meeting. If both the HEPB and the local officials recommend that a property not be nominated to the national register, the state historic preservation officer will take no further action on the nomination unless an appeal is filed with the state historic preservation officer.
(Ord. No. 13008, § 2, 6-26-08)

Sec. 23-6. Transfer of development rights and density for historic resources; provision for a determination of eligibility process, and special provisions for resources within the Miami Modern (MiMo)/Biscayne Boulevard Historic District; prohibiting certain uses; and establishing a 35-foot height limit.

It is the intent of this section to encourage the preservation of historic resources by creating a process whereby the otherwise unusable development and density rights for historic resources may be converted into an asset that may be sold to a receiving site. Receiving sites for unused development rights will be located within a T-6 transect, where a public benefits bonus may be used. Receiving sites for unused development density will be located near a Transit Oriented Development ("TOD") pursuant to Article 4 of Miami 21, the zoning ordinance of the City of Miami, Florida, as amended or superseded. Publicly owned sending properties may transfer density at a discounted rate for use as affordable housing. Owners of eligible properties shall be issued a "certificate of eligibility" following confirmation that the property meets the criteria established in subsection (1) or has been determined eligible under the process described in subsection (3).

(1) *Eligible properties (sending sites).*

a. Under the TDR and TDD provisions described in this section, a property owner is automatically eligible to apply to sell their unused development rights if the property is located in a T3-O transect zone or higher, and is classified as one or more of the following:

1. Individually listed in the national register of historic places;
2. Listed as a contributing property within a national register district;
3. Individually listed in the Miami register of historic places under the provisions of section 23-4;
4. Listed as a contributing property within a local historic district under the provisions of section 23-4;
5. Listed as a thematically-related historic resource within a multiple property designation under the provisions of section 23-4 of the City Code.
6. Qualified as an "eligible historic resource," after having met the

criteria for eligibility set forth in subsection (3), and so determined by the HEPB.

7. Otherwise qualifies as a historic resource, but that has lost its historic integrity because of major alterations and/or additions; provided that it can be shown to the HEPB that:
   A. The building's original appearance can be documented;
   B. The owner applies for and receives a special certificate of appropriateness, detailing the steps to be taken to restore the original appearance of the building;
   C. The owner substantially completes the proposed restoration activity before an application for transfer of development rights is submitted.
8. A multi-family residential structure in a T4-R transect, shall be eligible for the TDR and TDD programs, only in the event it is:
   A. Individually listed in the national register of historic places; and/or
   B. Individually listed in the Miami register of historic places.
   C. Qualified as an "eligible historic resource" by the HEPB after having met the criteria for eligibility set forth in subsection (3), for an individually significant resource.

   For those individual buildings that are locally designated historic resources on the Miami register of historic places and deemed eligible by the preservation officer to participate in the transfer of development rights or density ("TDR or TDD") programs under the terms of section 23-6, the zoning administrator or his/her designee shall calculate the unused development potential (base development rights) that may be transferred to a receiving property at 225 percent per square foot of the available square feet permitted by the underlying transect zone. The zoning administrator or designee shall also calculate the unused density potential that may be transferred to a receiving site rounding up to the nearest hundredth, thereby recognizing the significance of Miami's locally designated historic resources and the additional requirements associated with the rehabilitation of a historic property.
9. A contributing or non-contributing resource contained within the boundaries of the Miami Modern (MiMo)/Biscayne Boulevard Historic District shall be eligible for the TDR and TDD incentive as further described in subsection (2).

(2) *Miami Modern (MiMo)/Biscayne Boulevard historic district.* On June 6, 2006, the HEPB designated that portion of Biscayne Boulevard from NE 50th Street on the South to NE 77th Street on the north, as a historic district. Historically, Biscayne Boulevard was a premier shopping destination, and later the principal corridor leading tourists to the spectacular attractions in the Miami area.

As the MiMo/Biscayne Boulevard historic district is the only overwhelmingly commercial historic district in the city that has been listed in the Miami register of

historic places, it is deemed deserving of special considerations not applicable to the residential historic districts.

Over the years, inappropriate infill construction changed the character of Biscayne Boulevard, resulting in a less-than-cohesive character. It is the desire of the city to encourage new construction and improvements or remodelings to existing structures so that they either return to the classic types prevalent during the historic periods of significance, or represent an improvement that maintains the high standards of appearance for the entire historic district, as determined by the HEPB.

Further, the TDR and TDD incentives shall be available to the structures judged as non-contributing only in the MiMo/Biscayne Boulevard historic district and only when the proposed work will bring the property closer to becoming a contributing structure as determined by the HEPB. The incentive for non-contributing buildings is intended to promote reinvestments within the overall area encompassed by the historic district leading to its betterment.

a. *Permitted uses.* In a further effort to maintain a balance of retail, entertainment, lodging and services uses, any commercial, civic, civil support, and educational use within the MiMo Biscayne historic district shall be limited to only those permitted under the T4-O transect zone.

b. *Calculations of available development rights and development density (sending property) for the MiMo (Miami Modern)/Biscayne Boulevard Historic District.*

   1. For those contributing properties contained within the Miami Modern (MiMo)/Biscayne Boulevard Historic District deemed eligible by the preservation officer to participate in the TDR and TDD programs under the terms of section 23-6, the zoning administrator or their designee shall calculate the unused development potential (base development rights) that may be transferred to a receiving property at 225 percent per square foot of the available square feet permitted by the underlying transact. The zoning administrator or designee shall also calculate the unused density potential that may be transferred to a receiving site rounding to the nearest hundredth unit, thereby recognizing the additional requirements associated with the rehabilitation of a historic property. Notwithstanding these calculations, based on the allowable development rights prescribed by the Miami 21 Code transects for this historic district, no building or structure contained within the boundaries of the Miami Modern (MIMO)/Biscayne Boulevard historic district shall exceed 35 feet in height. Buildings existing at the time of passage of the ordinance from which this section derives shall be grandfathered and allowed to remain.

   2. For those non-contributing properties contained within the Miami Modern (MiMo)/Biscayne Boulevard Historic District as described in section 23-6, the zoning administrator or their designee shall calculate the base unused development rights at 175 percent per square foot of the total available square feet permitted by the underlying transect which shall be available for transfer (sale). The lot itself may be developed

at 100 percent of its capacity under the requirements of the historic district guidelines, and the Miami 21 Code. Notwithstanding these calculations, based on the allowable development rights prescribed by the Miami 21 Code transects for this historic district, no building or structure contained within the boundaries of the Miami Modern (MIMO)/Biscayne Boulevard historic district shall exceed 35 feet in height. Buildings existing at the time of passage of the ordinance from which section derives shall be grandfathered and allowed to remain.

(3) *Standards for the improvements to non-contributing structures.* When improvements to non-contributing buildings are made, the following guidelines shall be implemented:

a. Use of building materials commonly found in the construction of the "contributing" structures within the historic district;

b. Installation of signage that is in keeping with the periods of significance represented in the district (1924-1956);

c. Architectural design that complements the historic building types and vocabulary which include:

i. Mediterranean Revival;

ii. Art Moderne;

iii. Art Deco;

iv. Miami Modern (MiMo);

v. South Florida Regional Vernacular, e.g. a style or type of building that represents the local or indigenous adaptations of design resultant from the climate, traditions, and available building materials in the region.

Nothing in these standards shall be construed to encourage a false sense of historical appearance. Replications or reconstructions shall be permitted only as specifically allowed by the HEPB, and under the provisions of subsection (1)a.6.

(4) *Qualification as an eligible historic resource—Requirements and certification process.* A property may be determined eligible for local historic designation in order receive a "certificate of eligibility," and therefore take advantage of the transfer of development rights and density provisions, provided that the building meets certain eligibility criteria; and that a formal application for local historic designation is submitted to the planning department within one year from the date the eligibility application is approved by the historic and environmental preservation board. The time period may be extended by HEPB. If the application is not received within one year of the period of extension, the "certificate of eligibility" will be withdrawn. If sale of development rights or density has taken place without designation, proceeds must be paid to the city for the historic preservation trust fund. If proceeds are not paid to the city, a lien on the property equal in value to the proceeds plus a five percent administrative fee will be placed on the property.

a. Criteria for eligibility. In general, the resource must be at least 50 years old and maintain its physical integrity so that it sufficiently conveys its original character; possess integrity of design, setting, material, technique, feeling and association, and meet at least one of the following criteria:

1. Is associated in a significant way with the life of a person important in the past;

2. Is the land or location of a historic event with significant effect upon the community, city, state, or nation;

3. Exemplifies the historical, cultural, political, economic, or social trends of the community;
4. Portrays the environment in an era of history characterized by one or more distinctive architectural styles;
5. Embodies the distinguishing characteristics of an architectural style, or period, or method of construction;
6. Is an outstanding work of a prominent designer or builder; and
7. Contains elements of design, detail, materials, or work of outstanding quality or which represents a significant innovation or adaptation to the South Florida environment.

(5) *Application process and documentation required to qualify as an "eligible historic resource."* Applications for a determination of eligibility in connection with the transfer of development rights program will contain the information required within a local historic designation report, and sufficient supporting documentation to enable the HEPB to make a valid conclusion. The application will include:

1. Photographs of all elevations illustrating the existing conditions;
2. Most recently available copy of the Miami-Dade County assessor's office record for the property;
3. Affidavit for proof of ownership;
4. Written description of the property, noting architectural style, building materials, roof shapes, and ornament, as applicable;
5. Written description of the changes to the property that have occurred over time, as applicable;
6. Results of Miami City Directory search to identify original resident/business establishment, as applicable;
7. Bibliography of historical records used in the research, as applicable;
8. Written evaluation of the property's significance using the criteria established in subsections 23-4(a)(1—8);
9. Other information as deemed necessary by the planning director; and
10. Any fees specified for this purpose.

(6) *Review for certification of an eligible historic resource.* Once the application for a determination of eligibility has been deemed complete, the preservation officer shall schedule the application before the next regularly scheduled meeting of the HEPB. At least ten days prior to the meeting at which the application will be heard, the owner or their designated agent or representative, shall be notified of the board's intent to consider the application. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter.

In making its decision as to whether to certify the resource, the board shall consider:

a. Whether the resource is of such interest or quality that it meets one or more of the criteria established by subsections 23-4(a)(1—8);
b. Whether the resource maintains its physical integrity, or whether it has been altered to such a degree that it no longer conveys the qualities for which it was deemed historically significant;
c. Whether the preservation of the resource will promote the general welfare of the city by providing an opportunity for the study of local history, architectural and design, or develop an understanding of the importance and value of a particular culture and heritage;

d. Whether or not the resource is one of the last remaining examples of its kind in the city, region, or state.

e. Should the HEPB find that the proposed resource meets the criteria and considerations to be deemed an eligible historic resource; within 30 days of that decision, a "certificate of eligibility" will be prepared by the historic preservation officer, and mailed (via certified mail) to the applicant.

f. Appeals from the decision of the HEPB. The property owner, any one member of the city commission, the planning department, or any aggrieved party may appeal to the city commission any decision of the board on matters relating to such certifications by filing within 15 calendar days after the date of the decision a written notice of appeal with the hearing boards department, with a copy to the preservation officer. Such notice of appeal shall set forth concisely the decision appealed from and the reasons or grounds for the appeal. Each appeal shall be accompanied by a fee of $500.00, plus the cost prescribed by chapter 62 for each mailed notice required pursuant to subsection 23-4(c)(3). The city commission shall hear and consider all facts material to the appeal and render a decision as promptly as possible. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. The city commission may affirm, modify, or reverse the board's decision. Any decision to reverse the board's decision shall require a three-fifths vote of all members of the city commission. Appeals from decisions of the city commission may be made to the courts as provided by the Florida Rules of Appellate Procedure. The provisions of subsection 23-4(c) shall remain in effect during the entire appeal process insofar as they do not conflict with this section, unless stayed by a court of competent jurisdiction. The appeal shall be a de novo hearing and the city commission may consider new evidence or materials. Appeals shall be made directly to the city commission, within 15 calendar days after the date of the decision, and follow the procedures described herein.

g. Requirement for local historic designation, "eligible historic resources."

1. A resource classified as an "eligible historic resource" may apply for a certificate of transfer following the determination of eligibility.

2. Should the applicant apply for and receive a certificate of eligibility the eligible historic resource will be required to be locally designated through the formal process described in this chapter, within one year following the HEPB's determination.

h. Conditions and safeguards—"Eligible historic resources."

1. Upon the determination of eligibility by the HEPB, the owner shall be subject to the restrictions concerning the requirement for the issuance of a certificate of appropriateness for changes made to the building. The owner is prohibited from demolishing a structure deemed an eligible historic resource, until such time as an application for a special certificate of appropriateness for demolition under the process contained in section 23-6 is adjudicated by the HEPB.

2. The "certificate of eligibility" will expire within one year from the HEPB's determination, at which time, the property owner must have applied for local historic designation of the resource which had been determined eligible.

(7) *Calculations of available development rights (sending property).* For those properties deemed eligible to participate in the TDR program under the terms of section 23-6, the zoning administrator or their designee shall calculate the unused development potential (base development rights) that may be transferred to a receiving property at 100 percent of the available square feet permitted by the underlying transect, thereby recognizing the additional requirements associated with the rehabilitation of a historic property.

(8) *Requirements for the preservation of eligible historic resources (sending properties) using the provisions of the TDR and TDD—Application process.* The purpose of this incentive is to ensure that historic resources are preserved for the public benefit, public welfare, conservation, and aesthetics. The requirements that follow apply to all buildings which make use of the TDR and TDD programs. The use of the TDR and TDD resource will be tied to capital improvements on the sending property. The quantity of TDD and TDR value available for sale will be tied to the value set out in the building permit application for large scale work or a signed contract for smaller scale improvements at a ratio specified below. A restrictive covenant to maintain the property is also required, must be in a form acceptable to the city attorney, and must be recorded in the public records of Miami-Dade County. Any work approved by a certificate of appropriateness with an active building permit or issued a certificate of occupancy after April 1, 2012, shall qualify if it meets the criteria specified below.

Therefore, following the qualification of any eligible historic resource, the applicant requesting the certificate of transfer shall provide the planning department with:

a. A copy of the building permit application which lists the estimated cost of construction or a signed contract with a licensed and insured contractor for work approved by a certificate of appropriateness.

b. A determination of the maximum value of the saleable TDR and TDD resource. The applicant will determine the maximum value of the proposed sale of the combined transferable development rights and transferable development density. The value will equal the following:

   1. The expenses directly related to the construction of the building (hard costs such as materials, supplies, and equipment) as determined in the building permit application construction cost estimate or by providing a signed contract for work. Soft costs such as professional costs are excluded.

   2. An additional percent over the hard cost value, with the 30 percent broken down as follows:

      A. Twenty percent of the value of capital improvements for use by the applicant for fees associated with design, financing, legal, and other pre- and post-construction expenses (soft costs).

      B. Ten percent of the value of the capital improvements to be retained temporarily by the city in the form of either a letter

of credit or a bond after the sale of the resource. The bond will be released back to the applicant upon confirmation of the completion of the work as outlined in subsection (11) below.

(9) *Requirements for the issuance of TDRs for "non-contributing" properties within the Miami Modern (MiMo)/Biscayne Boulevard historic district.* "Non-contributing" properties. The intent of the special incentives along Biscayne Boulevard is to provide capital for improvements to buildings that may have fallen into disrepair, and thus contribute to the overall appearance and stability of the boulevard as a whole. Therefore, following the qualification of a non-contributing property as eligible for the TDR and TDD benefits, the owner/applicant shall provide the planning department with:

1. All materials as laid out in subsection (8) above.
2. A special certificate of appropriateness application for the improvements to be made to the structure, noting the improvements designed specifically to promote a harmonious relationship with other structures within the boulevard historic district.
3. The special certificate of appropriateness will be processed in accordance with the provisions contained in section 23-6.2.

(10) *Release of conditional certificate of transfer.* The planning director, or his/her designee, will prepare the conditional certificate of transfer for the unused development rights and density upon receipt of an approved building permit for the historic resource or an executed contract for work approved by a certificate of appropriateness. The conditional certificate of transfer will allow for sale of unused development rights and density, but will expire within a set period of time and render all transactions void unless additional criteria are met as described below in subsection (11). The conditional certificate of transfer will be released when:

1. A building permit for the historic resource has been issued or a copy of an executed contract, including proof of applicable bonding, funding, and insurance requirements, for work approved via a certificate of appropriateness has been submitted in the event the work does not require a building permit.

   The approved building permit must be for work reviewed by the HEPB.

   The approved building permit must match that permit applied for and used for calculating the value of the sale pursuant to subsection (8).

   When an executed contract is provided rather than a building permit, proof of licensure and insurance for the contractor shall be provided.

(11) *Release of certificate of transfer.* The planning director, or designee, will prepare the non-conditional certificate of transfer for the unused development rights and density for historic resources upon completion of the following:

1. Filing of a restrictive covenant with the city by the sending property. The restrictive covenant shall be in a form acceptable to the city attorney and be recorded at the owner's expense in the public records of Miami-Dade County within 30 days of its acceptance by the city. The original restrictive covenant or a certified copy of the recorded restrictive covenant to be furnished to the planning director within 30 days of it being recorded will be maintained by the planning department. The restrictive covenant shall provide:
   A. That the eligible historic resource will be maintained to

a standard consistent with the building department's standards for "Forty (40) year recertification";

B. That the requirement for long-term maintenance will follow the title to the property through any subsequent owners;

C. That the city will be advised of any change in property ownership.

2. A bond or irrevocable letter of credit representing a minimum of ten percent of the value of the improvements proposed in the building permit has been posted with the city's planning department to be used in the event the owner defaults from the owner's promise to make the improvements. A bond shall be written by an approved surety company and shall comply with state law so as to be substantially in the form provided by F.S. § 255.05, and shall carry the name and address of a local representative. Any irrevocable letter of credit shall be drawn on a local bank, which means a national bank authorized to transact business in Florida and maintaining an office in Miami-Dade County. Any bond or irrevocable letter of credit shall be in a form acceptable to the city's risk management department and city attorney and must name the city as the sole beneficiary/oblige/payee as applicable.

A. A bond or irrevocable letter of credit will be released back to the owner following the full completion and acceptance of the work and the issuance of a certificate of occupancy and/or a review of the work by the historic preservation officer or the historic preservation officer's designee.

B. In the case where a cost-of-work estimate was provided rather than a building permit, the historic preservation officer or the historic preservation officer's designee will review proof of payment and the contractors and/or sub-contractor's final release(s) and waiver(s) of lien prior to release of the bond or letter of credit.

C. If the historic preservation officer or historic preservation officer's designee determines that the work is not completed pursuant to the approved plans and standards reviewed by the HEPB, the city will collect on the bond or letter of credit and deposit funds into the historic preservation trust fund.

D. An owner may appeal the decision to collect on the bond to the HEPB.

3. Submission to the city's department of planning of a copy of the sales contract for the TDD and/or TDR between the buyer and seller of the resources.

4. Submission to the city's department of planning of an affidavit stating that the buyer and seller of the TDR and TDD resources are acting independently and have no other relationship to each other; that both parties in the transaction are acting in their own self-interest and are not subject to any pressure or duress from the other party; and that there is no collusion between the buyer and seller (a.k.a. an arm's length transaction).

(Ord. No. 13008, § 2, 6-26-08; Ord. No. 13116, § 2, 10-22-09; Ord. No. 13512, § 2, 4-9-15; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13712, § 2, 11-16-17; Ord. No. 13785, § 2, 9-13-18; Ord. No. 13912, § 2, 7-23-20; Ord. No. 13971, § 3, 2-25-21)

Editor's note—Ord. No. 13116, § 2, adopted October 22, 2009, changed the title of section 23-6 from "Transfer of

development rights for historic resources; provision for a determination of eligibility process, and special provisions for resources within the Miami Modern (MiMo)/Biscayne Boulevard Historic District" to "Transfer of development rights for historic resources; provision for a determination of eligibility process, and special provisions for resources within the Miami Modern (MiMo)/Biscayne Boulevard Historic District; prohibiting certain uses; and establishing a 35-foot height limit."

Sec. 23-6.1. Waivers, exceptions and exclusions for locally designated historic resources.

In an effort to promote and encourage the preservation and adaptive reuse of locally designated resources, so designated pursuant to the provisions of section 23-4, the HEPB may grant a certain exception to a use permitted in specific zoning designations, or an exclusion to allow a cultural facility as an allowable use in medium and high density multifamily (general urban) zones, and/or may grant certain waivers to the zoning code provided that it will result in the preservation of a locally designated property.

Historic preservation waivers. The board may authorize certain waivers to the requirements of the underlying zoning district, to the extent indicated herein.

(1) *Waivers concerning designated historic resources.*

a. Any building that is individually locally designated or is classified as a contributing building within a local historic district or is classified as a thematically-related historic resource within a multiple property designation, as identified in the designation report, shall be permitted to be repaired, restored, structurally altered, or reconstructed, notwithstanding any conflicts with provisions of the underlying zoning district requirements. However, the board shall not have the authority to grant any waivers of density, intensity and building height requirements.

b. In cases where the size or configuration of a locally designated property, a contributing property within a locally designated historic district or a thematically-related historic resource within a multiple property designation is such that compliance with off-street parking requirements would destroy the historic character of the property, the board may authorize a reduction of up to 100 percent of the number of parking spaces that would ordinarily be required for a new structure of equivalent use and floor area and/or a waiver of loading requirements.

Such waivers will be granted only when it can be demonstrated that:

1. Granting the waiver will further the preservation of the historic and architectural character of the historic resource, or of the historic district in which the proposal is located.

2. Granting the waiver would promote the preservation of the historic resource or historic district while reducing nonconformities.

3. Granting the waiver would help minimize or mitigate any potential adverse effect of a specific proposal whose implementation promotes the preservation of the historic resource or historic district.

4. Special circumstances exist such as adjacencies or shared parking that will practically alleviate concerns for off-street parking.

5. The HEPB shall make specific findings that establish how the criteria have been met. Additionally, the board may impose any conditions, restrictions, or limitations deemed appropriate in order to ensure compliance with the criteria set forth above.
6. The waiver shall be the minimum necessary to assure the continued preservation of the historic structure.

(2) *Waivers concerning additions.* Waivers for additions to existing buildings may also be authorized by the board when necessary to assure the preservation of historic resources and historic districts, subject to the limitations described in section 23-6.1.

(3) *Historic preservation exceptions.* Unless otherwise authorized by Article 4, Table 3, of the Miami 21 Code, the board may authorize certain exceptions to the requirements of the underlying zoning to the extent indicated herein. Bed and breakfast uses complying with applicable codes may be permissible as an exception in low, medium and high density multifamily residential (general urban, urban center and urban core) zones. Additional allowable uses which include professional offices, and museums will be classified as exceptions and may be allowed except in T3 transect zones. Additional allowable uses which include restaurants and private clubs, as they are respectively defined in section 4-2 of the City Code, will also be classified as exceptions and may be allowed except in T3 and T4 transect zones. Such uses shall be permissible only within existing structures that are individually designated or contributing resources within a designated historic district or thematically-related historic resources within a multiple property designation as identified in the designation report prepared pursuant to chapter 23; and shall not be permissible in any case where the structure(s) of principal historic significance has (have) been destroyed or damaged beyond repair, unless such structure(s) is (are) reconstructed in accordance with a certificate of appropriateness approved by the board pursuant to the provisions of chapter 23. Any use authorized pursuant to this section shall comply with all regulations applicable to the same or similar use in the most restrictive zoning designation permitting such use; to the extent such regulations have not been modified pursuant to this section.

a. *Exclusion.* In an effort to provide even greater flexibility in the adaptive use of locally designated historic resources, and to recognize the concomitant relationship of historic preservation and the cultural arts, the HEPB is authorized to grant an exclusion for a cultural facilities as an allowable use in medium and high density multifamily (general urban) zones; such uses may include:
    1. Rehearsal/studio space(s);
    2. Gallery space(s);
    3. Performance workshop areas;
    4. Classrooms for arts education.

    (a) The HEPB shall review each application for an exclusion that would permit the conversion of a locally designated historic resource for use as a cultural facility through the process for a special certificate of appropriateness as defined in this chapter. The special certificate of appropriateness may include requests for both additions and/or new construction in order to meet the programming requirements of the cultural facility.

(b) Adjacent land, owned or leased by the facility may be used to provide required parking.

(c) The HEPB may concurrently review a waiver of certain zoning requirements in conjunction with a request for an exclusion, provided that the request is the minimum necessary to successfully accomplish the project; and that the impact to the surrounding areas is minimal.

(4) *Procedures for granting exceptions, waivers and exclusions.* An application for a special certificate of appropriateness shall be submitted pursuant to the provisions of section 23-8. In addition, the application shall contain a written statement justifying the requested exception, or waiver or exclusion and provide evidence that the exception, or waiver or exclusion is necessary to assure the continued preservation of the designated historic structure.

(5) *Notice and hearings, generally.* The board shall notice the public hearing at which the waiver, and/or exception or exclusion is requested, following the same procedures as is required for a special certificate of appropriateness.

(6) *Decision of the board.* The board shall make findings based upon the standards set forth in section 23-6.2, as amended, and shall take one of the following actions:

a. Issue the special certificate of appropriateness for the waiver proposed by the applicant;

b. Issue the special certificate of appropriateness with specific modifications and conditions; or

c. Deny the special certificate of appropriateness.

(7) *Standards.* In addition to the guidelines and standards for issuing certificates of appropriateness as set forth in section 23-6.2, as amended, the board shall determine that the following standards have been met before reaching a decision to grant a special certificate of appropriateness:

a. The exception, or waiver or exclusion shall be the minimum necessary to assure the continued preservation of the historic structure; and

b. The exception, or waiver or exclusion shall be in harmony with the general intent and purpose of this chapter.

c. For restaurants and private clubs the property shall be located in a T5-R Transect Zone or higher. Prior to the issuance of a certificate of use for any such use, a parking plan must be approved by process of warrant pursuant to the provisions of Miami 21. A parking plan for purposes of this section is a written plan or graphic depiction presented by the applicant providing for traffic control and parking accommodations for the property.

(8) *Conditions and safeguards.* In granting any exception, or waiver or exclusion, the board may prescribe appropriate conditions and safeguards necessary to protect and further the interest of the area and abutting properties, including, but not limited to, landscape materials, walls, and fences as required buffering; modifications of the orientation of any openings; modification of site arrangements; and control of manner or hours of operation.

(9) *Requirements for substantial rehabilitation.* As a condition of granting an exception, or waiver or exclusion, as determined by the board at the time of granting the special certificate of appropriateness, the board may require that the structure(s) for which the exception or waiver is (are) requested be substantially rehabilitated in accordance with the Florida Building Code, the National Fire Prevention Code,

the U.S. Secretary of the Interior's "Standards for Rehabilitation," and any other applicable codes and regulations.

(10) *Requirements concerning time limitations.* Any certificate of appropriateness issued under this section shall be governed by the time limitations stipulated in subsection 23-6.2(g).

(Ord. No. 13008, § 2, 6-26-08; Ord. No. 13116, § 2, 10-22-09; Ord. No. 13180, § 2, 5-27-10; Ord. No. 13429, § 2, 2-13-14; Ord. No. 13537, § 2, 7-23-15; Ord. No. 13712, § 2, 11-16-17)

Editor's note—Ord. No. 13180, § 2, adopted May 27, 2010, changed the title of section 23-6.1 from "Waivers and exceptions for locally designated historic resources" to "Waivers, exceptions and exclusions for locally designated historic resources."

Sec. 23-6.2. Certificates of appropriateness.

(a) *Certificates of appropriateness, when required.* A certificate of appropriateness shall be required for any new construction, alteration, relocation, or demolition within a designated historic site or historic district or for thematically-related historic resources within a multiple property designation. A certificate of appropriateness shall also be required for exceptions, or waivers or exclusion from the provisions of the zoning code, or any successor zoning code. A certificate to dig shall be required for any ground disturbing activity within a designated archaeological site or archaeological zone or within an archaeological conservation area. All certificates of appropriateness and certificates to dig shall be subject to the applicable criteria in this section and any other applicable criteria specified in this chapter, as amended. No permits shall be issued by the building department for any work requiring a certificate of appropriateness unless such work is in conformance with such certificate.

(b) *Procedures for issuing certificates of appropriateness.*

(1) *Pre-application conference(s).* Before submitting an application for a certificate of appropriateness, an applicant is encouraged to confer with the preservation officer to obtain information and guidance before entering into binding commitments or incurring substantial expense in the preparation of plans, surveys, and other data. At the request of the applicant, the preservation officer, or any member of the board, an additional pre-application conference shall be held between the applicant and the board or its designated representative. The purpose of such conference shall be to further discuss and clarify preservation objectives and design guidelines in cases that may not conform to established objectives and guidelines. In no case, however, shall any statement or representation made prior to the official application review be binding on the board, the city commission, or any city department.

(2) *Application for certificate of appropriateness.* The applicant shall submit to the preservation officer an application together with supporting exhibits, other materials, and any applicable fees as required by the rules of procedure of the board. No application shall be deemed to be complete until all supporting materials required have been provided and any established fees paid.

(3) *Standard certificates of appropriateness.* Where the action proposed in the application is a minor improvement, as specified by the rules of procedure or the board, and is in accord with the guidelines for issuing certificates of appropriateness as set forth subsection 23-7(c), the preservation officer shall, within ten calendar days of receipt of the complete application, issue a standard certificate of appropriateness with or without conditions, indicating in writing, conformity with said guidelines. Following such approval, permits dependent upon it may be issued if otherwise lawful. An applicant may request that the application be initially classified as a special certificate of appropriateness if they wish to have the matter heard by the HEPB.

(4) *Special certificates of appropriateness.* Where the action proposed in an applica-

tion involves a major addition, alteration, relocation, or demolition, as specified by the rules of procedure of the board; where the preservation officer finds that the action proposed in an application involving a minor alteration is not clearly in accord with the guidelines as set forth in subsection (c); or when the applicant is requesting a waiver, or exception or exclusion from the requirements of the zoning code the application shall be classified as a special certificate of appropriateness, and the following procedures shall govern:

a. *Public hearing.* When a complete application is received, the preservation officer shall place the application on the next regularly scheduled meeting of the board. The board shall hold a public hearing to review the application. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. All public hearings on all certificates of appropriateness conducted by the board and hearings on appeals of board decisions to the city commission regarding certificates of appropriateness shall be noticed as follows:

1. The applicant shall be notified by mail at least ten calendar days prior to the hearing.
2. Any individual or organization requesting such notification and paying any established fees therefore shall be notified by mail at least ten calendar days prior to the hearing.
3. Notice shall also be sent by mail to all owners of property within 500 feet of the property lines of the subject property at least ten calendar days prior to the hearing.
4. An advertisement shall be placed in a newspaper at least ten calendar days prior to the hearing.
5. Any additional notice deemed appropriate by the board.

b. *Decision of the board.* The decision of the board shall be based upon the guidelines set forth in subsection (c), as well as the general purpose and intent of this chapter and any specific design guidelines officially adopted for the particular historic resource, historic district, multiple property designation, or archaeological site or zone. No decision of the board shall result in an unreasonable or undue economic hardship for the owner. The board may seek technical advice from outside its members on any application. The decision of the board shall include a complete description of its findings, and shall direct one of the following actions:

1. Issuance of a special certificate of appropriateness for the work proposed by the applicant;
2. Issuance of a special certificate of appropriateness with specified modifications and conditions;
3. Denial of a special certificate of appropriateness, including denial of a special certificate of appropriateness for demolition; or
4. Issuance of a special certificate of appropriateness with a deferred effective date of up to six (6) months in cases of demolition or relocation of a contributing structure or landscape feature, pursuant to the provision of special certificates of appropriateness for demolition in this section or up to forty-five (45) calendar

days for any work potentially affecting an archaeological site, archaeological zone, or archaeological conservation area, pursuant to the provisions of special certificates of appropriateness for demolition in this section.

5. Issuance of a written communication prepared by the preservation officer to the director of the planning department and the zoning administrator that sets out the exact parameters for the waiver (s) from the provisions of the Miami 21 code and the reasons wherefore, and/or their decision as to the exception allowed within a certain transect, and their reasons wherefore.

6. Accelerated certificate of appropriateness. There are occasions when an applicant is proposing physical changes to a resource that is simultaneously being considered for local historic designation. Under those circumstances, and only if the proposed changes are of a substantial nature, the historic preservation officer shall follow the procedures specified for a special certificate of appropriateness. A hearing for an accelerated certificate of appropriateness will be preceded by the preliminary designation report, in order to establish whether or not the resource appears to meet the criteria for local historic designation.

(5) *Accelerated certificate of appropriateness.* When an applicant is proposing physical changes to a resource that is simultaneously being considered for local historic designation, if the proposed changes are of a substantial nature, the preservation officer shall follow the procedures specified for a special certificate of appropriateness. A hearing for an accelerated certificate of appropriateness will be preceded by the preliminary designation report, in order to establish whether the resource appears to meet the criteria for local historic designation.

(c) *Time limitations.* If no action is taken upon an application by the board within 60 calendar days, excluding those days within the month of August, from the receipt of a complete application, such application shall be deemed to have been approved, and the preservation officer shall authorize issuance of any permit dependent upon such certification, if otherwise lawful, recording as authorization the provisions of this section. This time limit may be waived at any time by mutual consent of the applicant and the board. However, should in the opinion of the preservation officer or the historic and environmental preservation board such delays be attributable to the applicant and/or their agent, this time limitation shall not apply, nor shall the application be considered approved.

(d) *Records.* Written copies of all decisions and certificates of appropriateness shall be filed with the planning department.

(e) *Appeals.* The applicant, the planning department, or any aggrieved party may appeal to the city commission any decision of the board on matters relating to certificates of appropriateness by filing within 15 calendar days after the date of the decision a written notice of appeal with the hearing boards department, with a copy to the preservation officer. The notice of appeal shall set forth concisely the decision appealed from and the reasons or grounds for the appeal. Each appeal shall be accompanied by a fee of $525.00, plus the cost prescribed by chapter 62 for each mailed notice required. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. The city commission shall hear and consider all facts material to the appeal and render a decision as promptly as possible. The

appeal shall be de novo hearing and the city commission may consider new evidence or materials. The city commission may affirm, modify, or reverse the board's decision. The decision of the city commission shall constitute final administrative review, and no petition for rehearing or reconsideration shall be considered by the city. Appeals from decisions of the city commission may be made to the courts as provided by the Florida Rules of Appellate Procedure.

(f) *Changes in approved work.* Any change in work proposed subsequent to the issuance of a certificate of appropriateness shall be reviewed by the preservation officer. If the preservation officer finds that the proposed change does not materially affect the property's historic character or that the proposed change is in accord with approved guidelines, standards, and certificates of appropriateness, the officer may issue a supplementary standard certificate of appropriateness for such change. If the proposed change is not in accord with guidelines, standards, or certificates of appropriateness previously approved by the board, a new application for a special certificate of appropriateness shall be required.

(g) *Expiration of certificates of appropriateness.* Any certificate of appropriateness issued pursuant to the provisions of this section shall expire 12 months from the date of issuance, unless the authorized work is commenced within this time period, or a building permit has been obtained. The preservation officer may grant an extension of time not to exceed 12 months upon written request by the applicant, unless the board's guidelines as they may relate to the authorized work have been amended.

(h) *Guidelines for issuing certificates of appropriateness.*

(1) *Alteration of existing structures, new construction.* Generally, for applications relating to alterations or new construction as required in subsection (a) the proposed work shall not adversely affect the historic, architectural, or aesthetic character of the subject structure or the relationship and congruity between the subject structure and its neighboring structures and surroundings, including but not limited to form, spacing, height, yards, materials, color, or rhythm and pattern of window and door openings in building facades; nor shall the proposed work adversely affect the special character or special historic, architectural or aesthetic interest or value of the overall historic site, historic district, or multiple property designation. Except where special standards and guidelines have been specified in the designation of a particular historic resource, historic district, or multiple property designation, or where the board has subsequently adopted additional standards and guidelines for a particular designated historic resource, historic district, or multiple property designation, decisions relating to alterations or new construction shall be guided by the U.S. Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings."

(2) *Replacement of existing structures.* It is presumed that a building demolished without obtaining a certificate of appropriateness from the board or was demolished pursuant to an order of the unsafe structure panel or whose property structure was determined to be an immediate threat of danger required to be demolished by order of the building official or that is the subject of a demolition by neglect adjudication by the code enforcement board or magistrate, shall only be replaced with a new structure that incorporates the same height, massing and square footage of the previous structure on site, not to exceed the floor area ratio (FAR) of the demolished structure, and not to exceed the maximum FAR and height permitted under the City Code, with no additional square footage added. This presumption shall be applicable in the event a building permit for new construction or for repair or rehabilitation is issued, and demolition occurs for any reason, including, but not limited to, an order of the building official or the unsafe structure panel.

a. This presumption shall also be applicable to any request for an

"after-the-fact" certificate of appropriateness. This presumption may be rebutted, and the board may allow for the addition of more square footage, where appropriate, not to exceed the maximum permitted under the City Code, if it is established to the satisfaction of the board that the following criteria have been satisfied:

1. The proposed new structure is consistent with the context and character of the immediate area, and
2. The property owner made a reasonable effort to regularly inspect and maintain the structure free of structural deficiencies and in compliance with the minimum maintenance standards of this Code.

b. *Reconstruction of demolished contributing structures.* The board shall determine, on a case-by-case basis, whether the reconstruction of an original, contributing structure is warranted. The requirement to be reconstructed in an original manner is applicable in the event that a contributing building is demolished without obtaining a certificate of appropriateness from the board or was demolished pursuant to an order of the unsafe structure panel or whose property structure was determined to be an immediate threat of danger required to be demolished by order of the building official or that is the subject of a demolition by neglect adjudication by the code enforcement board or magistrate. This shall be applicable in the event a building permit for new construction or for repair or rehabilitation is issued, and demolition occurs for any of the reasons listed.

For purposes of this subsection, reconstruction shall be defined as the act or process of depicting, by means of new construction, the form, features, and detailing of a non-surviving site, building, structure for the purpose of replicating its appearance at a specific period of time and in its historic location. The board shall have full discretion as to the exact level of demolition and reconstruction is required.

The requirement for reconstruction may be rebutted, and the board may allow for a new design in accordance with subsection (b)(3) below, if it is established to the satisfaction of the board that any of the following criteria are satisfied:

1. The proposed new structure is consistent with the context and character of the immediate area; or
2. Other properties with the same associative value have survived; or
3. Sufficient historical documentation does not exist to ensure an accurate reproduction.

(3) *Applications for a waiver, or exception or exclusion.* An application for a waiver(s), or exception or exclusion from the provisions of the Miami 21 Code will be made on forms provided by the planning department, and will be processed and noticed in accordance with the procedures for a special certificate of appropriateness.

(4) *Ground disturbing activity in archeological zones, archeological sites, or archeological conservation areas.*

a. No certificate of appropriateness shall be issued for new construction, excavation, tree removal, or any other ground disturbing activity until the city's archeologist has reviewed the application and made his/her recommendation concerning

the required scope of archeological work. The board may require any or all of the following:

1. Scientific excavation and evaluation of the site at the applicant's expense by an archeologist approved by the board.
2. An archeological survey at the applicant's expense conducted by an archeologist approved by the board containing an assessment of the significance of the archeological site and an analysis of the impact of the proposed activity on the archeological site.
3. Proposal for mitigation measures.
4. Protection or preservation of all or part of the archaeological site for green space, if the site is of exceptional importance and such denial would not unreasonably restrict the primary use of the property.

b. The board may issue a certificate to dig with a delayed effective date of up to 45 calendar days to allow any necessary site excavation or assessment.

(5) *Unreasonable or undue economic hardship.*

a. Where strict enforcement of the provisions of this section would result in an unreasonable or undue economic hardship to the applicant, the board shall have the power to vary or modify the provisions of this section, including adopted guidelines. The fact that compliance would result in some increase in costs shall not be considered unreasonable or undue economic hardship if the use of the property is still economically viable.

b. Any applicant wishing to assert unreasonable or undue hardship must submit as a part of the application for a certificate of appropriateness a written statement presenting the factual data establishing such economic hardship. The written statement presenting factual data shall be in the form of a sworn affidavit containing the following information:

1. The amount paid for the property, the date of purchase and the party from whom purchased, including a description of the relationship, whether business or familial, if any, between the owner and the person from whom the property was purchased;
2. The assessed value of the land and improvements thereon according to the three most recent assessments;
3. The amount of real estate taxes for the previous three years;
4. All appraisals obtained by the owner or applicant within the previous three years in connection with the potential or actual purchase, financing or ownership of the property;
5. All listings of the property for sale or rent within the previous three years, prices asked and offers received, if any;
6. For income producing property only, a profit and loss statement for the property containing the annual gross income for the previous three years; itemized expenses, including operating and maintenance costs, for the previous three years; annual cash flow for the previous three years; and proof that the owner has made reasonable efforts to obtain a

reasonable rate of return on the owner's investment and labor;

7. Any consideration by the applicant as to uses or adaptive uses of the property;

c. In the event that any of the required information is not reasonably available to the applicant or cannot be obtained, the applicant shall file with the affidavit a statement of the information that cannot be obtained and shall described the reasons why such information is unavailable.

d. Notwithstanding the submission of the above information, the board may require, at the applicant's expense, additional evidence, including, but not limited to, architectural, structural and/or financial evaluations or studies as are reasonably necessary in the opinion of the board to determine the economic feasibility of rehabilitation of the structure.

(i) *Demolition by neglect.*

(1) *Demolition by neglect prohibited; affirmative maintenance required.* The owner(s) of a property designated historic pursuant to this chapter, which includes a property either individually designated, designated as a contributing property within a historic district or designated as a thematically-related historic resource within a multiple property designation as defined by this chapter, shall comply with all applicable codes, laws, and regulations governing the maintenance of the property. It is the intention of this section to preserve from deliberate negligence, or inadvertent neglect the exterior features of property designated historic and the interior portions thereof when maintenance is necessary to prevent deterioration and decay of the property. All such properties shall be preserved against such decay and deterioration and shall be free from structural defects through prompt corrections of any of the following defects:

a. Facades which may fall or damage the subject property, adjoining property, or injure members of the public.

b. Deteriorated or inadequate foundation, defective or deteriorated flooring or floor supports, deteriorated walls, or other vertical structural supports.

c. Members of ceilings, roofs, or other horizontal members which sag, split, or buckle due to defective material or deterioration.

d. Deteriorated or ineffective waterproofing of exterior walls, roofs, foundations, or floors, including broken or missing windows or doors.

e. Any fault or defect in the property which renders it structurally unsafe, insufficiently protected from weathering, or not properly watertight.

f. Defective or insufficient weather protection which jeopardizes the integrity of exterior or interior walls, roofs, or foundation, including lack of paint or weathering due to lack of paint or protective covering.

g. Any structure designated historic which is not properly secured under the Florida Building Code or other technical codes and is accessible to the general public; or, any fault or defect on the property designated historic that renders it structurally unsafe or not properly watertight.

h. Spalling of the concrete of any portion of the interior or exterior of the structure designated historic.

(2) *Unreasonable or undue economic hardship.* A property owner who believes that application of this section creates an unreasonable or undue economic hardship, as that term is defined by this

chapter, may apply for a special certificate of appropriateness to the board within 15 days of having notice or knowledge of any defect(s) referred to in this section. The procedure employed by the board shall be the same as for the consideration of a special certificate of appropriateness under this chapter. The board may grant the owner an extension of time to comply with corrective work or limit the scope of the corrective work.

(3) *Enforcement.*

a. *Notice of administrative enforcement*. Enforcement shall be as provided pursuant to Chapter 2, Article X, entitled "Code Enforcement," of the City of Miami Code, as amended.

b. *Civil actions for injunction and remedial relief; lien on property.* In addition to code enforcement remedies, if the property owner fails to take corrective action within the time prescribed, the city may file any civil action ordering the property owner to take corrective actions and the city may seek damages and seek any other relief available under Florida Law. The court may order an injunction providing such remedies if the city proves that the owner has violated this ordinance and such violation threatens the integrity or existence of a designated historic property. In the event that a court order authorizes that the city enter into the property and take corrective action, the cost of the corrective action incurred by the city shall be a municipal special assessment lien against the property. Such lien shall, until fully paid and discharged, be of equal rank and dignity with the lien of ad valorem taxes, and shall be superior in rank and dignity to all other liens, encumbrances, titles, claims in, to or against the real property involved. Such liens may be instituted and enforced pursuant to Chapter 173, Florida Statutes, as amended, or the collection and enforcement of payment thereof may be accomplished by any other method authorized by law. The property owner shall pay all costs of collection, including reasonable attorney's fees, service charges, civil penalties, and liens imposed by virtue of this ordinance.

(Ord. No. 13008, § 2, 6-26-08; Ord. No. 13116, § 2, 10-22-09; Ord. No. 13133, § 1, 1-28-10; Ord. No. 13142, § 10, 2-11-10; Ord. No. 13180, § 2, 5-27-10; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13712, § 2, 11-16-17; Ord. No. 13912, § 2, 7-23-20; Ord. No. 13971, § 3, 2-25-21; Ord. No. 14118, § 2, 10-27-22)

Sec. 23-6.3. Administration, enforcement, violations, and penalties.

(a) *Ordinary maintenance and repair.* Nothing in this article shall be construed to prevent or discourage the ordinary maintenance or repair of any structure when such maintenance or repair does not constitute an alteration, or to prevent the ordinary maintenance of landscape features.

(b) *Enforcement of maintenance and repair provisions.* When the board or preservation officer determines that any designated property is endangered by lack of maintenance and repair, or that any other property in visual proximity to a designated property lacks maintenance and repair to such an extent as to detract from the character of the designated property, the board or officer may request appropriate officials or agencies of the city to require correction of such deficiencies under authority of applicable laws and regulations.

(c) *Unsafe structures.* In the event the building official of the city determines that any designated property is unsafe pursuant to chapter 8.5 of the Code of Miami-Dade County, Florida, as amended, he/she shall immediately notify the board with copies of such findings. Where reasonably feasible within applicable laws and regulations, the building official shall endeavor to have

the structure repaired rather than demolished and shall take into consideration any comments and recommendation of the board. The board may take appropriate actions to effect and accomplish preservation of such structure, including, but not limited to, negotiations with the owner and other interested parties, provided that such actions do not interfere with the procedures in chapter 8.5 of the Code of Miami-Dade County, Florida, as amended.

(d) *Emergency conditions.* For the purpose of remedying emergency conditions determined to be imminently dangerous to life, health, or property, nothing contained herein shall prevent any temporary construction, reconstruction, demolition, or other repairs to a designated property, pursuant to an order of a government agency or a court of competent jurisdiction, provide that only such work as is reasonably necessary to correct the emergency condition may be carried out. The owner of structure damage by fire or natural calamity may stabilize the structure immediately and rehabilitate it later under the provisions of this chapter.

(e) *Enforcement.* The building department and the code inspectors as defined in section 2-813 shall assist the board by making necessary inspections in connection with the enforcement of this chapter. The building department shall be responsible for promptly stopping any work attempted to be done without or contrary to any certificate of appropriateness required under this article; and shall further be responsible for ensuring that any work not in accordance with a certificate of appropriateness is voluntarily corrected to comply with said certificate.

(f) *Violations and penalties.* Any person who carries out or causes to be carried out any work in violation of this article shall be required to restore the locally designated property either to its appearance prior to the violation or in accordance with a certificate of appropriateness approved by the board. The following procedures shall govern:

(1) *Referral to preservation board.* The building department and code inspectors as defined in section 2-813 shall refer all violations to the board, unless such violation is voluntarily corrected to comply with a previously issued certificate of appropriateness.

(2) *Preservation board public hearing.* The board shall conduct public hearing with notice as set forth in this chapter.

(3) *Decision of preservation board.* The board shall make findings based upon the provisions of this section and the guidelines set forth in this article and shall take one of the following actions:

a. Reaffirmation of a previously issued certificate of appropriateness;

b. Issuance of an amended special certificate of appropriateness with specified modifications and conditions; or

c. Issuance of a new special certificate of appropriateness with specified conditions.

The board may specify a reasonable limitation of time within which the work authorized by the certificate of appropriateness shall be commenced or completed, or both. Appeals of any decision of the board related to certificates of appropriateness shall follow the same procedures as set forth in subsection 23-6.

(4) *Referral to code enforcement board.* If the work authorized by any certificate of appropriateness issued pursuant to this article is not commenced and/or completed within the time specified, or if a subsequent violation of a certificate of appropriateness issued pursuant to this section is found, the building department or code inspectors as defined in section 2-813 shall initiate enforcement proceedings before the code enforcement board pursuant to the provisions of section 2-814. This remedy shall be in addition to and not in lieu of any criminal or civil prosecution and penalty that may be provided.

(g) *Conflicts.* Where there are conflicts between the requirements of this chapter and provisions of the zoning ordinance or other codes covering the same subject, the most restrictive requirements shall apply.

(h) *Application equally to private parties and public bodies.* The provisions of this chapter shall apply equally to plans, projects, or work executed or assisted by any private party, governmental body or agency, department, authority, or board of the city, county, or state.
(Ord. No. 13008, § 2, 6-26-08; Ord. No. 13116, § 2, 10-22-09; Ord. No. 13676, § 2, 4-27-17)

Sec. 23-6.4. Signage.

(a) *Historic signs.* Historic signs shall be permitted to remain and to be repaired, restored, structurally altered, reconstructed, or relocated utilizing the certificate of appropriateness process. Historic signs may possess intrinsic importance, or acquire that importance as a result of their association with the historic resource through which they have become associated.

In determining whether a sign is "historic," the HEPB shall consider whether it is:

(1) Associated with historic figures, events, or places.

(2) Significant as evidence of the history of the product, business, or service advertised.

(3) Significant as reflecting the history of the building or the development of the historic district or multiple property designation (a sign may be the only evidence of a building's historic use).

(4) Characteristic of a special historic period, such as gold leaf on glass, neon, or stainless steel lettering.

(5) Integral to the building's design or physical fabric; as when a sign is a part of a storefront made of Carrara glass or enamel panels, or when the name of the historic firm or the date is rendered in stone, metal or tile, (in such cases, removal can

cause damage to the materials; or affect the integrity of the building's original design);

(6) Outstanding examples of the sign maker's art. Whether because of their excellent work, use of materials or design;

(7) Recognized as a local landmark because of its prominence and popular recognition as a focal point in the community;

(8) Assists in defining the character of a district as for example marquees in theater districts, or prominent neon signs associated with the proliferation of motels dependent on the tourism industry.

In conjunction with allowing the retention, restoration, rehabilitation, and/or reconstruction of a historic sign, the HEPB shall make specific findings establishing how the subject sign meets these established criteria.

(b) *District marker signs.*

(1) *Definitions.*

District marker sign is an artistic sign that has been in existence for at least 20 years which is painted on the side of a building and marks the entrance to a neighborhood, park, or other designated historic, public or geographical area that serves to identify the area, mark a historic destination for visitors, and reinforce the neighborhood's character as a destination for art, culture, dining, and entertainment.

(2) *Exemptions.* In areas designated cultural specialty district, art and theater cultural specialty district pursuant to chapter 4, or historic districts or multiple property designations designated pursuant to chapter 23 of the City Code that are located in a T-5 or less restrictive zoning transect, the city manager, or his/her designee, may permit one district marker sign of not greater than 5,000 square feet in size nor greater than 80 percent of the area of a building wall oriented to face major traffic thoroughfares that serve as the entrance to the district or area.

Each district or area marker sign shall be comprised solely of "Welcome to [the district or area]," and a commercial message related to the unique character of the district or area and recognizing the district or area marker sign sponsor, whose commercial message shall be limited to no more than 15 percent of the area of the district or area marker sign. The "Welcome to [the district or area]" portion of the district or area marker sign shall not contain any point of sale signage or commercial message related to the donor or sponsor. District and area marker signs as set forth in this paragraph shall be exempt from the general provisions of chapter 62, but for uniformity, all district and area marker signs are subject to compliance with county, state and federal laws.

No district or area marker sign shall contain adult content as defined in the Miami 21 zoning ordinance.

(Ord. No. 13116, § 2, 10-22-09; Ord. No. 13518, § 2, 5-14-15; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13712, § 2, 11-16-17)

ARTICLE II. AD VALOREM TAX EXEMPTION

DIVISION 1. GENERALLY

Sec. 23-7. Short title.

This article shall be known and may be cited as the "Historic Tax Exemption Ordinance."
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-8. Purpose.

The provisions of this article shall create a method that provides the city commission to allow tax exemptions for the taxes levied by the city for the restoration, rehabilitation or renovation of historic properties.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-9. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Assessed value means the total value of a tax parcel, excluding the value of the land, as determined by the county property appraiser, and shown on the property tax bill sent to the owner of record by the county.

Board means the historic and environmental preservation board.

Contributing resource means a building, landscape feature, site, structure, or object that adds to the historical architectural qualities, historic associations, or archaeological values for which a district is significant because:

(1) It was present during the period of significance of the district, and possessed historic integrity reflecting its character at that time;

(2) It is capable of providing important information about the period; or

(3) It independently meets the National Register of Historic Places criteria for evaluation set forth in 36 CFR Part 60.4, incorporated by reference.

Historic property means a building, site, structure, or object that is:

(1) Individually listed in the National Register of Historic Places;

(2) A contributing property in a National Register listed historic district;

(3) Designated as a historic property or landmark under the provisions of chapter 23;

(4) A contributing property in a historic district designated under the provisions of chapter 23; or

(5) A thematically-related historic resource within a multiple property designation.

Historic property tax exemption covenant means a form that complies with applicable state Statutes and accompanying rules, and is an agreement made between the property owner and the city, indicating that the owner agrees to maintain and repair the property so as to retain the architectural and historical integrity of the property during the exemption period.

Improvement means any change in the condition of any eligible real property brought about by the expenditure of money on labor or materials for the restoration, renovation, or rehabilitation of such property. Expenditures for interior or exterior work, including construction of additions or accessory structures, shall be included in the meaning of improvements (i.e., garage, cabana, guest cottage, storage/utility structure) so long as the new construction is compatible with the historic character of the building and site in terms of size, scale, mass, design and materials, and preserves the historic relationship between a building or buildings, landscape features and open space.

National Register of Historic Places means the list of historic properties significant in American history, architecture, archaeology, engineering and culture, maintained by the secretary of the interior, as established by the National Historic Preservation Act of 1966 (Public Law 89-665; 80 STAT 915, 16 U.S.C. 470), as amended.

Noncontributing resource means a building, landscape feature, site, structure, or object that does not add to the historic architectural qualities, historic associations, or archaeological values for which a district is significant because:

(1) It was not present during the period of significance of the district;

(2) Due to alterations, disturbances, additions, or other changes, it no longer possesses historic integrity reflecting its character at that time or is incapable of yielding important information about the period; or

(3) It does not independently meet the National Register of Historic Places criteria for evaluation.

Officer means the historic preservation officer.

Renovation or *rehabilitation* means, for historic properties or portions thereof that are of historical or architectural significance, "renovation" or

"rehabilitation," the act or process of returning a property to a state of utility through repair or alteration that makes possible an efficient contemporary use, while preserving those portions or features of the property that are significant to its historical, architectural, cultural and archaeological values. For historic properties or portions thereof that are of archaeological significance or are severely deteriorated, "renovation" or "rehabilitation" means the act or process of applying measures designed to sustain and protect the existing form and integrity of a property, or reestablish the stability of an unsafe or deteriorated property while maintaining the essential form of the property as it presently exists.

Restoration means the act or process of accurately recovering the form and details of a property and its setting as it appeared at a particular period of time by means of the removal of later alterations or by the replacement of missing earlier work.
(Ord. No. 12927, § 2, 6-14-07; Ord. No. 13712, § 2, 11-16-17)

Sec. 23-10. Historic tax exemption.

This exemption shall apply to 100 percent of the assessed value of all improvements to eligible historic properties that result from restoration, renovation or rehabilitation made on or after the effective date of this ordinance. The exemption applies only to taxes levied by the city. The exemption does not apply to taxes levied for the payment of bonds or to taxes authorized by a vote of the electors pursuant to section 9(b) or section 12, article VII of the Florida Constitution.

Eligible properties. A property is qualified for an exemption under this section if at the time the exemption is granted the property is:

(1) Individually listed in the National Register of Historic Places, pursuant to the National Historic Preservation Act of 1966, as amended;

(2) A contributing property within a National Register listed district;

(3) Individually listed in the city register of historic places;

(4) Identified as a contributing structure within a historic district listed in the city register of historic places; or

(5) A thematically-related historic resource within a multiple property designation.

(Ord. No. 12927, § 2, 6-14-07; Ord. No. 13712, § 2, 11-16-17)

Sec. 23-11. Completely exempt from property taxes.

If an eligible property is used for a non-profit or governmental purpose and is regularly and frequently open for the public's visitation, use and benefit, the city may exempt 100 percent of the assessed value of the property, as improved, from ad valorem taxes levied by the city provided that the assessed value of the improvement is equal to at least 50 percent of the total assessed value of the property as improved. This section applies only if the improvements are made by or for the use of the then existing property owner. An eligible property is considered used for non-profit or governmental purposes if the occupant or user of at least 65 percent of the usable space of the building is an agency of the federal, state or local government or a non-profit corporation whose articles of incorporation have been filed by the Florida department of state in accordance with F.S. § 617.0125. Usable space means that portion of the space within a building that is available for assignment or rental to an occupant. A property is considered regularly and frequently open to the public if the public has access to the property not less than 52 days a year on an equitably spaced basis, and other times by appointment. This exemption does not prohibit the owner from charging a reasonable, non-discriminatory admission fee. If a property that qualifies for this exemption is no longer used for non-profit or governmental purposes or is no longer regularly and frequently open to the public or if ownership is transferred, this exemption shall no longer be effective and the property shall, instead, be subject to the exemption provided for by section 23-10.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-12. Term of exemption.

Any exemption granted shall remain in effect for up to ten years with the effective date being October 1, of the year that the applicant and the city have entered into the exemption covenant, and following the county property appraiser's formal evaluation of the completed improvements, and their subsequent valuation. The city commission shall have the discretion to set a lesser term for the duration of the exemption. The exemption shall continue in force if the authority of the city to grant exemptions changes or if ownership of the property changes, including any change from a tax exempt entity to a tax paying entity except as set forth in section 23-10. In order to retain an exemption the historic character of the property, and improvements that qualify the property for an exemption, must be maintained in the historic state over the period for which the exemption was granted.
(Ord. No. 12927, § 2, 6-14-07)

DIVISION 2. APPLICATION PROCESS FOR EXEMPTION

Sec. 23-13. Forms/fees.

Any person, firm, or corporation which desires a tax exemption for historic properties shall, in the year the exemption is desired to take effect, file a completed application on the appropriate forms obtained from the city historic preservation officer. The forms shall contain all the information required by the division of historical resources, Florida department of state, and promulgated in accordance with Rule 1A-38, F.A.C., but may also contain additional information as determined necessary by the board application forms and summaries of deadlines and application procedures shall be maintained by the officer and shall be made available to the general public upon request. A non-refundable fee of $262.50 will be payable upon submission of the application, with the check made payable to the "City of Miami."
(Ord. No. 12927, § 2, 6-14-07; Ord. No. 13142, § 10, 2-11-10)

Sec. 23-14. Preconstruction application (Part I).

Only expenditures made to an eligible property after the effective date of this article may be reviewed by the officer for approval. Work that has already been completed before an application is approved may not be considered eligible for inclusion in the tax exemption. The board may consider applications of non-eligible properties if the proposed work would restore the building to its original appearance, thus making it an eligible property.

(1) Applications for the ad valorem tax exemption may be reviewed concurrently with an application for a special certificate of appropriateness; however, all additional materials, the non-refundable application fee, the specific forms and additional submittal requirements for the historic tax exemption must accompany the request.

(2) The application will be made on forms approved by the Florida department of state, and all applicable fees shall be paid at the time the application is submitted. The application must include the following information:

   a. The name of the property owner and the location of the historic property.

   b. A description of the real property for which an exemption is requested and the anticipated date of commencement of such improvements.

   c. Proof to the satisfaction of the Board that the property that is to be rehabilitated or renovated is an eligible property under this section.

   d. Proof to the satisfaction of the board that the improvements to the property will be consistent with the secretary of the interior's standards for rehabilitation, and any other design guidelines previously promulgated by the board.

(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-15. Review of preconstruction application by officer.

(a) Upon receipt of the completed preconstruction application and all required materials, the Officer shall conduct a review to determine:

(1) Whether the property for which an exemption has been requested is or is not a historic property pursuant to section 23-10;

(2) Whether the proposed, in progress, or completed improvements are consistent with the secretary of interior's standards for rehabilitation and guidelines for rehabilitating historic buildings and any other design guidelines previously promulgated by the board; and

(3) For applications claiming a 100 percent exemption as a qualifying non-profit or governmental agency, the officer shall verify the specified conditions under section 23-11.

(b) The officer shall complete their review of the preconstruction application within 15 days following receipt of the completed application and all required supporting materials.

(c) The officer shall submit the preconstruction application to the board that shall contain copies of the preconstruction application, reviews by the officer, and the officer's recommendation for approval, denial, or approval with conditions.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-16. Project amendments.

If changes to a project are planned at any time after submission of the preconstruction application, an amendment sheet must be submitted for review. This amendment sheet will allow an applicant to indicate planned changes in project improvements, giving the originally proposed treatment and the amended work item description.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-17. Request for review of completed work (Part II).

(a) A request for review of completed work shall be submitted by the applicant upon substantial completion of the improvements as represented in the preconstruction application and any amendments. The request for review must provide a comprehensive photographic description of the completed improvements. Photographs of the completed improvements should show the same views as the "before" photographs included in the preconstruction application. All photographs should be numbered, dated and labeled with the property name or

address, the view, and a brief description of what is shown. The review shall also provide information on project budgets and what portion of the budget went to historical renovations.

(b) Upon receipt of a request for review of the substantially completed work and all required supporting materials, the officer shall conduct a review to determine whether or not the completed improvements are in compliance with the renovation, restoration, or rehabilitation described in the preconstruction application, subsequent approved amendments, if any, and the secretary of the interior's standards for rehabilitation. The officer reserves the right to inspect the completed improvements to verify such compliance.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-18. Time of completion.

An applicant must substantially complete all renovation, restoration or rehabilitation within two years following the date of approval of a preconstruction application and the approval of a special certificate of appropriateness by the board. A preconstruction application approval shall automatically be void in the event the applicant fails to submit a Part II request for review of completed work within two years following the date of approval of a preconstruction application and special certificate of appropriateness, except that the officer may, in his/her discretion, extend such period of time not to exceed one year.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-19. Completed work application (Part II).

Once an applicant has filed a request for review of the substantially completed work application with the officer, the officer will prepare a completed work report to submit to the board. The completed work application will include a discussion on the project as completed and a recommendation from the officer to approve or deny the application. The completed work application should also include copies of the preconstruction application, any amendments, the request for review of completed work, and photographs of the project conditions before and after the improvements.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-20. Review by the board.

The city's historic and environmental preservation board is designated to review applications for exemptions. The board must recommend to the city commission that it either grant or deny the exemption. Such reviews must be conducted in accordance with the rules adopted by the Florida department of state. The recommendations and the reasons, therefore, must be provided to the applicant and to the city commission before consideration of the application at an official commission meeting. The commission shall also be furnished with a covenant executed between the property owner and the city, confirming their intent to maintain the qualifying improvements for the duration of the tax exemption granted by the city commission. The applicant shall also be advised of his/her right to a fair hearing pursuant to F.S. § 120.57, and procedures set forth by the city commission.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-21. Appeals.

Following the board's denial of the preconstruction application, and the officer's notification by mail, the applicant shall have 30 days from the date of the mailing to file an appeal of the determination to the city commission. The written notice of appeal shall be filed with the hearing boards department, with a copy to the historic preservation officer. The appeal shall set forth precisely the reasons or grounds for the appeal, and shall be accompanied by the applicable fee.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-22. Final review.

(a) The city commission shall grant or deny the tax exemption based on the recommendations of the board. A vote of the commission shall be required to adopt a motion.

(b) If the final application is granted, the city commission shall adopt a resolution granting the historic tax exemption to the property owner. The resolution shall contain the following:

(1) The name of the owner and the street address and legal description of the historic property that the exemption is granted to;

(2) The period of time that the exemption shall remain in effect; and

(3) A finding that the historic property meets the requirements of this article.

(c) Upon adoption of the resolution, and following the Officer's receipt of the executed historic property tax exemption covenant, the officer shall record the covenant, along with any supporting documents, with the deed for the property in the official records of the county. The applicant will be responsible for payment of all fees associated with the recording of the documents. Following the recording of the covenant, the officer will transmit to the property appraiser a copy of the city commission resolution granting the exemption, with instructions to provide the historic tax exemption to the applicant as provided for in the resolution. A copy of the officer's letter of transmittal to the property appraiser shall be furnished to the applicant.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-23. Covenant.

(a) To qualify for an exemption, the property owner must enter into a covenant or agreement with the city for the term for which the exemption is granted. The form of the covenant shall be approved by the Florida department of state and will require that the character of the property and the qualifying improvements to the property be maintained during the period that the exemption is granted.

(b) The covenant shall be binding on the current property owner, transferees, and their heirs, successors, or assigns.
(Ord. No. 12927, § 2, 6-14-07)

DIVISION 3. ADMINISTRATIVE PROVISIONS

Sec. 23-24. Revocation.

(a) The following conditions shall provide justification for removal of a property from eligibility for the property tax exemption by the city commission, provided under this code:

(1) The owner is in violation of the provisions of the historic preservation tax exemption covenant, or

(2) The property has been damaged by accidental or natural causes to the extent that the historic integrity of the features, materials, appearance, technique and environment, or archaeological integrity that made the property eligible for listing in the National Register or designation under the provisions of chapter 23 have been lost or so damaged that restoration is not feasible.

(b) For the exemption granted for non-profits and governmental agencies, the circumstances have changed and the property no longer meets the tests established in section 23-11.

(c) Proceedings under this section may also be initiated following a finding by the code enforcement board that a housing code violation has occurred. The board shall provide notice to the current owner of record to the property and hold a hearing in the same manner as in a review of a certificate of appropriateness as specified in section 23-5 before forwarding their recommendation to the city commission.

(d) Upon a determination by the city commission that the historic tax exemption is to be revoked, the officer shall provide written notice of the commission's decision to the applicant and the property owner of record, if different, as well as to the property appraiser. The notice to the applicant, or owner of the property, if different, shall be accompanied by reasons and recommendations for changes to the property that may result in reinstatement of the exemption.

(e) Upon receipt of a notice of revocation, the property appraiser shall discontinue the historic tax exemption on the property as of October 1, of the year following receipt of the notice of revocation.

(f) The notice of revocation shall include a statement that a penalty equal to the total amount of taxes that would have been due in March and each of the previous years in which the historic preservation exemption covenant was in effect had the property not received the exemption, less the total amount of taxes actually paid in those years, plus interest calculated as provided in F.S. § 212.12(3), shall be imposed by the tax collector for violation of the terms, conditions, and standards of the historic preservation exemption covenant.
(Ord. No. 12927, § 2, 6-14-07; Ord. No. 13676, § 2, 4-27-17)

Sec. 23-25. Reinstatement.

A property may be reinstated for the historic tax exemption upon satisfactory submission of evidence that the recommendations for changes to the property previously made by the officer and board, and which have been approved by the city commission, have been completed. The process for reinstatement shall be the same as the process for revocation proceedings. Upon reinstatement by the city commission of the exemption, the officer shall notify the property appraiser and the historic tax exemption shall then be reinstated for the remaining unexpired term of the initial exemption.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-26. Reapplication.

An applicant previously granted a historic tax exemption by the city commission may undertake an additional substantial improvement project during the exemption period, or following its expiration, and may reapply for additional historic tax exemption for such subsequent work.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-27. Annual report.

The officer shall prepare an annual report to the city commission concerning the historic preservation tax exemption program. The report shall be filed at least 30 days before the commission adopts a budget for the following fiscal year, and shall summarize activities of the officer and the board related to the historic tax exemption program during the previous fiscal year. The information contained in the annual report shall include, but not be limited to, the following:

(1) A list of the properties that preconstruction applications and completed work applications were made for during the preceding year;

(2) An explanation of the disposition of each application;

(3) The total exempted amount for each completed project during the preceding year;

(4) The total number of properties currently participating in the historic tax exemption program as of the end of the previous year;

(5) The total expenditure on all improvement projects currently participating in the program; and

(6) Any other information requested by the commission or considered significant by the officer.

(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-28. Reserved.

Sec. 23-29. Judicial review.

Judicial review of decisions made by the board or the city commission shall be by certiorari in accordance with state rules of appellate procedure.
(Ord. No. 12927, § 2, 6-14-07)

Sec. 23-30. Classification and assessment of historic property used for commercial or certain nonprofit purposes.

(a) The city hereby elects, pursuant to the provisions of F.S. § 193.503, as currently enacted or as may be amended from time to time, to provide for the assessment of historic property used for commercial or certain nonprofit purposes

as described therein solely on the basis of character or use as provided in F.S. § 193.503. The character or use assessment shall apply only to eligible properties within the city limits.

(b) A taxpayer claiming the reduction must comply with each and every provision of F.S. § 193.503, as currently enacted or as may be amended from time to time.
(Ord. No. 13010, § 1, 7-10-08)

Chapter 24

RESERVED

Chapter 25

HUMAN RELATIONS

Article I. Domestic Partnerships and Benefits

Sec. 25-1. Legislative findings and purpose.
Sec. 25-2. Definitions.
Sec. 25-3. Extension of benefits to domestic partners of city employees.
Secs. 25-4—25-24. Reserved.

Article II. Public Feeding

Sec. 25-25. Regulations for large group feedings.

ARTICLE I. DOMESTIC PARTNERSHIPS AND BENEFITS

Sec. 25-1. Legislative findings and purpose.

(a) The city recognizes that a significant number of city employees establish and maintain important personal, emotional, and economic relationships with persons to whom they are not married; that individuals forming such domestic partnerships live in a committed family relationship; and that city employees in domestic partner relationships should be granted employment benefits through a system for the city to provide benefits to domestic partners of city employees.

(b) The implementation of the provisions of this article shall be liberally construed to accomplish the policies and purposes of the article. However, no construction of this article shall supersede any federal, state, or city laws or regulations, nor be interpreted in a manner as to bring it into conflict with federal, state, or other city laws. Nothing in this article shall be construed as recognizing or treating a domestic partnership as a marriage or the substantial equivalent of a marriage.
(Ord. No. 13073, § 2, 6-11-09)

Sec. 25-2. Definitions.

For the purpose of this article:

City employee means any employee of the City of Miami.

Domestic partners means:

(1) Adults who have registered their domestic partnership pursuant to Miami-Dade City Code section 11A-72, or

(2) Adults whose relationship has been formalized in another locality, state, or county through a marriage, civil union, domestic partnership, or the like, that is authorized by law in that jurisdiction but that is not recognized under state law.
(Ord. No. 13073, § 2, 6-11-09)

Sec. 25-3. Extension of benefits to domestic partners of city employees.

(a) Any city employee who has a domestic partner shall be entitled to elect insurance coverage for his or her domestic partner or the children of such domestic partner in the same way any city employee may elect insurance coverage for his or her spouse or children. A city employee's right to elect insurance coverage for his or her domestic partner, or the partner's children, shall extend to all forms of insurance provided to the spouses and children of city employees, unless such coverage is prohibited by state or federal law or the terms of a collective bargaining agreement. All elections of coverage shall be made in accordance with the requirements of applicable city ordinances, administrative rules, city policies and applicable collective bargaining agreements. However, in no event may an employee make an election for coverage of a domestic partner more than two times in a plan year.

(b) Any city employee who has a domestic partner shall be entitled to use all forms of leave provided by the city including, but not limited to, sick leave, annual leave, funeral leave and family leave to care for his or her domestic partner or the children or parents of the domestic partner, as applicable. The use of leave authorized in this section shall be consistent with the applicable requirements in city ordinances, administrative rules, and collective bargaining agreements.

(c) Unless prohibited by state or federal law or the terms of a collective bargaining agreement, all other benefits available to the spouses and children of city employees shall be made available on the same basis to the domestic partner, or child of such domestic partner, of a city employee who has a domestic partner.

(d) Notwithstanding the benefits provided for in this article, all non-inconsistent provisions of applicable state, federal or other laws or policies shall apply.

(e) Any city employee who obtains or attempts to obtain benefits fraudulently or who fails to notify the city of any termination of the domestic partnership under this provision shall be subject to:

(1) Recovery of any benefits improperly paid, and

(2) Disciplinary action which may include termination.

Further, the city may bring a civil action against either or both of the parties to the domestic partnership to recover any losses, including attorneys fees, borne by the city as a result of fraudulent request for domestic partnership benefits or because of failure to notify of the termination of the domestic partnership.
(Ord. No. 13073, § 2, 6-11-09)

Secs. 25-4—25-24. Reserved.

ARTICLE II. PUBLIC FEEDING

Sec. 25-25. Regulations for large group feedings.

(a) Definitions. The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them except where the context clearly indicates a different meaning:

Director means the director of the city's department of human services including his/her designee.

Large group feeding means an event intended to attract, attracting, or likely to attract 25 or more people, including distributors and servers for the delivery or service of food in a public space. Excluded from this definition are activities of city permitted, licensed, or contracted concessionaires, lessees, or licensees.

Public space means any dedicated or undedicated public street, highway, sidewalk, park, parkway, right-of-way, alley, public ways, or any other public places within the city, including city-owned buildings or city-property. Public space shall also include the buildings of any governmental agency within the city including federal, state, and county owned buildings.

Street or *streets* means the surface, the air space above the surface, and the area below the surface of any public street, highway, road, boulevard, concourse, driveway, freeway, thoroughfare, parkway, sidewalk, bridge, tunnel, park, waterway, dock, bulkhead, wharf, pier, court, lane, path, alley, way, drive, circle, easement, or any other public right-of-way or public place, including public utility easements dedicated for compatible uses, or any other property in which the city holds any kind of property interest or over which the city exercises any type of lawful control, and any temporary or permanent fixtures or improvements located thereon including city-owned buildings or city-property.

(b) Except for activities of a governmental agency within the scope of its governmental authority or unless specifically permitted to do so by a permit or approval issued pursuant to this section by the city commission or the city manager, as applicable, it shall be unlawful to undertake large group feedings in public spaces unless the person(s) serving the food:

(1) Obtains a large group feeding permit issued by the director. The director shall issue a large group feeding permit based upon the following criteria:

a. The application must be submitted at least two business days prior to the planned large group feeding event.

b. The application must contain the following information:

1. The name of the individual(s) or organization that will be serving or distributing food;

2. The date(s) when food is anticipated to be served or distributed;

3. The times of day when food service and distribution is anticipated to be served or distributed on each date listed in the notice;

4. Identification of one of the permitted large group feeding locations designated by the city

manager, as specified herein, at which the applicant desires to serve or distribute food; and

5. The approximate or expected number of food preparers and servers on the site where the food is anticipated to be served or distributed and the approximate or expected number of individuals that will be served.

c. Large group feeding permits will be limited to one per day for any given designated feeding location and permits will be issued on a first come, first served basis, based on the availability of the desired designated feeding location.

d. Any individual or organization is permitted a maximum of one large group feeding permit per week regardless of which designated feeding location is utilized. Individuals associated with an organization must indicate such association on any application for a large group feeding permit and this limitation will apply to the organization even if multiple individuals may desire to apply for a permit on behalf of the organization.

e. Organizations who submit applications for a large group feeding permit through individuals without those individuals disclosing their association with the organization will be subject to being precluded from receiving large group feeding permits for a period of up to 12 months.

(2) The permit holder shall remove or cause the removal of substantially all trash or debris from the feeding site that was generated by the service or distribution of food and deposit the trash or debris in the provided public trash receptacle(s) or in a private trash receptacle if permission from the receptacle owner was obtained.

The city will use its best efforts to provide support services at designated feeding locations for any permitted large group feeding, including, but not limited to containers or receptacles for disposal of waste; restroom facilities; handwashing stations; and the availability of city staff to assist with outreach to the homeless.

(c) Designated feeding locations. The city manager shall identify at least five designated feeding locations within the city at which large group feedings are permitted to take place that have the following characteristics:

(1) Within easy walking distance to locations where large groups of homeless are known to congregate;

(2) Paved;

(3) Adequate parking for those conducting the large group feedings; and

(4) Adequate lighting for the large group feeding activities.

The city manager is authorized to amend the designated feeding locations from time to time and as needed, within the city manager's sole discretion, to best balance the needs of all parties involved in large group feedings.

(d) Penalties. A violation of this section shall be enforced against the individual or organization by the issuance of a civil code enforcement fine in the amount of $250.00 for a first occurrence and a civil fine in the amount of $500.00 for each subsequent occurrence in accordance with chapter 2, article X of the City Code. Repeat violations in any one calendar year may also subject the repeat violator to being precluded from receiving large group feeding permits for a period of up to 12 months.
(Ord. No. 13907, § 2, 6-25-20)

Chapters 26—28

RESERVED

Chapter 29

LANDFILLS AND WATERFRONT IMPROVEMENTS*

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Sec. 29-2. Same—Application.
Sec. 29-3. Same—Fees; expiration; renewal.
Sec. 29-4. Requirements for fill material.
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Article III. Bulkheads, Seawalls, Living Shorelines, Piers, Docks, Groins, Marine Railways, and Other Similar Structures

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Sec. 29-89. Design.
Sec. 29-90. Loads.
Sec. 29-91. Construction.
Sec. 29-92. Materials.
Sec. 29-93. Review of plans; duty to inspect.
Sec. 29-94. Procedure for inspections.

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*__City Code cross references—__Resilience and public works department, § 2-261 et seq.; environmental preservation, ch. 17; noise created by pile drivers, steam shovels, etc., § 36-6; ships, vessels and waterways, ch. 50; city marinas, § 50-221 et seq.; planning and zoning generally, ch. 62.

__County Code cross references—__Development within coastal flood hazard districts, ch. 11C; construction, etc., in canal rights-of-way, tidal waters, submerged bay-bottom lands, and wetlands; dewatering; construction of drainage systems, § 24-58 et seq.; developments in incorporated areas creating county impact, ch. 33A.

__State law reference—__Title to tidal lands, F.S. § 253.12 et seq.

Sec. 29-95. Maintenance.
Secs. 29-96—29-120. Reserved.

Article IV. Reserved

ARTICLE I. IN GENERAL

Sec. 29-1. Fill permits—Required.

(a) No submerged land or low-lying land within the city for which a design grade has been or later may be established by the county shall be filled until a permit authorizing the filling has been obtained from the resilience and public works department. Such permit shall be obtained by the owner of the land or by a qualified contractor having a bona fide contract with the owner to perform the work.

(b) A fill permit issued by the resilience and public works department shall be required when the elevation of the land to be filled is two feet or more below the design grade established by the county and the areas to be filled consist of 10,000 square feet or more. On land requiring a fill permit, the application for a building permit shall not be made before the fill permit is obtained. The fact that a fill permit may not be required does not lessen the responsibility of the owner or developer to comply with the intent of this article. If, in the opinion of the director of resilience and public works, unsuitable materials are being used for fill, the director of resilience and public works may stop the work and require that a fill permit be obtained.
(Code 1967, § 27-1; Code 1980, § 29-1; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-2. Same—Application.

When applying for a fill permit, the applicant shall submit a plan view of the areas to be filled with notations on the plan as follows:

(1) It shall show legal boundaries of the tract or plat and areas to be dedicated for public use.

(2) It shall show the area to be filled (crosshatched).

(3) It shall show the approximate average depth of the fill.

(4) It shall show the approximate existing land elevation on the area to be filled, and areas immediately adjacent to the area to be filled, including the elevation of neighboring land.

(5) It shall show the name and address of the owner of the property to be filled.
(Code 1967, § 27-2; Code 1980, § 29-2)

Sec. 29-3. Same—Fees; expiration; renewal.

(a) The permit fee for filling upland property that is below the design grade shall be $180.00 for the first 5,000 square feet of area to be filled, and $120.00 for each additional 5,000 square feet of area or fraction thereof. The permit fee for filling submerged land shall be $425.00 for each acre or fraction thereof. Permits issued for filling shall be in effect for only one year from the date of issuance. Such fill permits may be renewed annually for a fee of $115.00.

(b) The fee required under this section shall be waived for governmental entities and agencies.
(Code 1967, § 27-3; Ord. No. 9005, § 1, 10-17-79; Ord. No. 9513, § 1, 11-4-82; Code 1980, § 29-3; Ord. No. 13142, § 11, 2-11-10; Ord. No. 13195, § 4, 9-27-10)

Sec. 29-4. Requirements for fill material.

The type and quality of materials which may be used for the filling of land shall be free of undecomposed organic matter, wood, tree stumps, roots or branches and other extraneous matter, and shall comply with the following:

(1) *Acceptable materials.*

a. Normally acceptable fill shall be a sand and rock mixture.

b. Reinforced concrete masonry, rock and stone may be placed as fill; provided that no piece measures more than five feet in its largest dimension and no more than two feet in any other direction, with any encased reinforcing steel protruding not more than 18 inches. No fabricated metal products shall be placed as fill without specific written approval of the director of resilience and public works.

(2) *Unstable materials.* Unstable soils such as muck and fine sand shall not be used

as fill material without the written approval of the director of resilience and public works.

(3) *Stockpiled materials.* Materials stockpiled at the site shall be placed and leveled within a reasonable period of time. If, in the opinion of the director of resilience and public works, stockpiled material is not placed and leveled without undue delay or is deemed to be unsafe or subject to shifting, the stockpiled material shall be placed and leveled immediately upon the order of the director of resilience and public works.

(4) *Finish fill.* The top three feet of finish shall consist of material suitable for creating natural surface seepage. Marl clay rock-pit washings, high-clay-content bay bottom and other impervious soils, or soils of low porosity shall not be placed in such a manner as to cause a complete impervious seal.

(5) *Fill protection.* Banks along the edges of a fill, not protected by bulkheading, shall be protected against excess erosion by riprapping or other containment acceptable to the director of resilience and public works.

(6) *Areas dedicated for public use.* Portions of filled land to be dedicated as public rights-of-way or areas to be dedicated for public use shall comply with the following:

a. No materials defined in paragraph (2) of this section shall be used as fill.

b. Only those materials defined in paragraph (1) of this section shall be used as fill, except that in the top four feet no such fill material shall be larger than 12 inches in any direction.

c. In areas dedicated for street purposes, fill materials to be used in the top two feet shall be limited to a sand and rock mixture and shall conform to the following:

1. All rock used as fill in the top two feet shall pass through a six-inch ring.

2. All rock used as a fill in the top 12 inches shall pass through a 3½-inch ring.

(Code 1967, § 27-4; Code 1980, § 29-4; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-5. Supervision of work by resilience and public works department.

Filling of all submerged or low-lying land within the city, for which a permit under this article has been issued by the resilience and public works department, shall be done under the supervision of the resilience and public works department.

(1) *Continuous operation.* If filling is to be continuous, either by hydraulic or other means, notice shall be given to the resilience and public works department not less than 24 hours prior to the start of such fill.

(2) *Elimination of voids.* Care shall be exercised to insure that during the fill operation no voids are created. If voids are created they shall be filled to the satisfaction of the resilience and public works department.

(Code 1967, § 27-5; Code 1980, § 29-5; Ord. No. 13792, § 1, 10-11-18)

Editor's note—Ord. No. 13792, § 1, adopted October 11, 2018, changed the title of section 29-5 from "Supervision of work by public works department" to "Supervision of work by resilience and public works department." The historical notation has been preserved for reference purposes.

Secs. 29-6—29-40. Reserved.

ARTICLE II. FILLING OF LAND IN BISCAYNE BAY

Sec. 29-41. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Applicant: Any person, principal on a performance bond, depositor of a cashier's check, or agent thereof, applying for a construction permit under this article.

Attorney: Attorney at law licensed to practice in the state.

Bay: That portion of Biscayne Bay lying within the city.

Board: The zoning board of the city, or the secretary thereof, used interchangeably.

Department: The resilience and public works department of the city or the director thereof, used interchangeably.

Material: Sand, rock or earth.

Trustees: Trustees of the internal improvement fund of the state.

Unplatted land: Land created or otherwise coming under the provisions of this article.

Work: Any activity or result of such activity set forth in section 29-42, or the area or location where such activity takes place.
(Code 1967, § 27-6; Code 1980, § 29-16; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-42. Purpose of article.

This article is for the express purpose of prescribing an orderly procedure for the construction, addition or extension of all lands or islands bordering upon or lying in Biscayne Bay within the city; for the pumping or other removal of sand, rock or earth from lands, submerged or otherwise, also lying in Biscayne Bay within the city; and the incidental construction of bulkheads, fill, excavation or extension of sanitary or storm sewer outfalls, relocation of any existing utilities, extension or construction of pavement, curbs, gutters, sidewalks or other utilities which the director may require, all to the effect that the public's interest be best served through strict adherence by all persons to the provisions of this article and to the laws of the state.
(Code 1967, § 27-7; Code 1980, § 29-17)

Sec. 29-43. Construction permit—Petition to zoning board—Filing.

Each applicant for a construction permit to perform work in the bay shall file a notarized petition with the zoning board in a form and manner prescribed by the secretary thereof. Such petition shall set forth in detail the nature and scope of the work proposed to be done by the applicant; shall contain a notarized statement as to the intended use of the land after completion of the filling, such statement to be made by a person of authority whose statement constitutes a binding commitment upon the applicant, owners, lessors, lessees, mortgagees or others having an interest in the land as filled and improved; shall include a certified list of all real property located in whole or in part within a 375-foot radius, and all riparian upland real property lying within 1,000 feet of the boundaries of the proposed work, together with the names and addresses of the owners of such property; and also written permission from the holder of the fee simple title of the real property from which any material is to be pumped or otherwise taken.
(Code 1967, § 27-8; Code 1980, § 29-18)

Sec. 29-44. Same—Same—Notice of hearing.

The zoning board, after the filing of a petition under this article, shall set and publish a legal notice of a public hearing on the proposed work in a daily newspaper of general circulation at least ten days prior to the date of hearing. The board may, in its discretion, send by regular United States mail a copy of such notice to each owner of real property within the prescribed 375-foot radius, and to each owner of riparian upland property lying within 1,000 feet of the proposed work.
(Code 1967, § 27-9; Code 1980, § 29-19)

Sec. 29-45. Same—Same—Hearing; determinations.

(a) At the set time and place, the zoning board shall conduct a public hearing pursuant to this article for the general purpose of hearing out the public on the proposed work, and specifically to determine whether or not:

(1) The provisions of F.S. ch. 253 (F.S. § 253.124 thereof, in particular), as such chapter and section are worded on the effective date of this section and as they may be amended, supplemented, changed, reworded, redesignated or renumbered thereafter, have been fulfilled;

(2) There is any conflict with the Miami plan or any other officially adopted plan; or

(3) There is any conflict with any other statute, law, ordinance, regulation, rule or restriction that may be applicable thereto.

(b) The board shall hear all parties interested in any manner in the granting or denial of the petition, and may continue or recess such hearing as right and justice shall require.
(Code 1967, § 27-10; Code 1980, § 29-20)

Sec. 29-46. Same—Same—Recommendations of board; decision of city commission; issuance of petition.

Based on a review of the statements of all interested parties, and after due consideration of all testimony, information and other data presented at the public hearing held pursuant to this article, the zoning board shall promptly make its recommendation in the form of a resolution prepared by the law department to the city commission. The board shall recommend either approval or disapproval of the applicant's petition, and shall accompany such resolution with all written testimony, and oral testimony reduced to narrative form, data and other exhibits adduced at the public hearing. The city commission shall review such recommendation, receiving such additional testimony or evidence as may be deemed appropriate, and shall render its decision approving or disapproving the applicant's petition. In the event the decision is favorable to the applicant, the city commission shall direct that a construction permit for the work be issued by the resilience and public works department after the applicant has further complied with the provisions of this article.
(Code 1967, § 27-11; Code 1980, § 29-21; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-47. Same—Application; prerequisites to issuance; bond or deposit required.

The applicant for a construction permit under this article shall apply therefor in the form and manner prescribed by the director of resilience and public works. The application shall include, but not be limited to, the following items of data, information and documentation:

(1) A legal description of the property and the applicant's interest therein.

(2) An attorney's opinion of title, the same showing that fee simple title to the specific submerged land to be filled or improved is vested in the applicant.

(3) Written permission obtained from the trustees for the removal or use by the applicant of any material contemplated by the work.

(4) Written permission obtained from the United States Army Corps of Engineers for the removal or use by the applicant of any material contemplated by the work.

(5) A plan or drawing showing the proposed construction, as required by the laws of the state.

(6) Elevation of the completed project, which shall be not less than six feet above mean low water in any area south from Rickenbacker Causeway to the southerly limits of the city and not less than 5½ feet above mean low water in any other part of the bay.

(7) Construction plans showing the location of any proposed bulkhead, fill or excavation, the same to show a detail of the bulkhead and quantities of fill and excavation which shall comply in all respects

with the specifications for filling submerged land and bulkhead construction heretofore prepared or hereafter modified by the resilience and public works department.

(8) A contract or agreement entered into by the applicant with the director of resilience and public works on behalf of the city, the same providing for the construction of bulkheads, fill, excavation, extension of sanitary or storm sewer outfalls, relocation of any existing utilities, extension of or construction of pavement, curbs and gutters, sidewalks or other utilities which the director may require, if conditions encountered at the work make such additional construction desirable.

a. Such contract or agreement shall be accompanied by a good and sufficient performance bond in the amount of 110 percent of the total estimated cost of the work, which estimated cost shall have first been approved by the director. The conditions of the performance bond will be such that if the applicant shall fully and faithfully perform the work in accordance with the terms of the contract or agreement, then the performance bond shall be considered complied with. Otherwise the surety thereon, within 30 days after written notice from the director of the failure or neglect of the applicant to perform, construct or cause to be constructed the work set forth in the contract or agreement, shall pay the city such sums as the director estimates necessary to construct or complete such work; and the surety shall also pay to the city any engineering and contingent costs, and any damages, direct or indirect, not to exceed ten percent thereof, such ten percent not to include reasonable attorney's fees, such attorney's fees to be in addition to the ten percent which the city may suffer on account of the failure of the applicant to carry out and execute all of the provisions of the contract or agreement. The city commission shall have the right to construct or cause to be constructed, after public advertisement and receipt of bids, the work provided for in the contract or agreement, and in the event the city commission exercises such right, the applicant and the surety shall be jointly and severally liable to pay the city the final cost of the work, together with any engineering and contingent costs, and any damages, direct or indirect, not to exceed ten percent thereof, such ten percent not to include reasonable attorney's fees, such attorney's fees to be in addition to the ten percent which the city may suffer on account of the failure of the applicant to carry out and execute the provisions of the contract or agreement. Upon completion of construction of the work by the applicant or surety, or payment to the city of the estimated or actual cost thereof, the director shall release the performance bond.

b. A cashier's check in the amount of 110 percent of the total estimated cost of the work may be deposited with the city in lieu of the performance bond, the conditions of the deposit thereof to be such that if the applicant shall fully and faithfully perform the work in accordance with the terms of the contract or agreement, the amount of the check shall be returned to the depositor. Otherwise, in the event of the failure or neglect of the applicant to meet his/her obligations under the contract or agreement, the check may be applied by the city to the cost of constructing or completing the work, including any engineering or contingent costs, and any damages, direct or indirect, not to exceed ten percent thereof, such ten percent

not to include reasonable attorney's fees, such attorney's fees to be in addition to the ten percent which the city may sustain on account of the failure of the applicant to carry out and execute all of the provisions contracted for or agreed upon.

c. The performance bond or cashier's check may be reduced in amount as the works secured thereby are constructed, provided that the amount of the performance bond or cashier's check shall at all times be sufficient to cover the estimated cost of the uncompleted part of the work.

(Code 1967, § 27-12; Code 1980, § 29-22; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-48. Same—Issuance.

Upon the completion of the conditions and requirements of this article, and after ascertaining that any unplatted land filled or extended under a permit issued under this article shall be subject to the provisions of all regulations pertaining to the erection or construction of buildings on such unplatted land, and that all agreements, contracts and covenants required by this article have been executed and delivered to the city, the director of resilience and public works shall thereupon issue to the applicant a construction permit for the approved work.

(Code 1967, § 27-13; Code 1980, § 29-23; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-49. Same—Appeals.

In the event the city commission shall deny a petition applied for under this article, the applicant shall have 60 days within which to appeal, in writing, to the city commission for reconsideration of the zoning board's ruling. The city manager shall set and notify the applicant of the time and place of rehearing. In addition, the city manager shall have published a legal notice of a public hearing of the proposed work in a daily newspaper of general circulation at least ten days prior to the date of the rehearing. After such rehearing, the city commission shall review its previous ruling and announce a decision thereon.

(Code 1967, § 27-14; Code 1980, § 29-24)

Sec. 29-50. Same—Renewal.

All construction work under this article shall be completed within two years from the date of issuance of the permit, but for good cause shown, such permit may be renewed for an additional two years upon application to the director of resilience and public works, in writing.

(Code 1967, § 27-15; Code 1980, § 29-25; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-51. Same—Revocation.

(a) The city commission may summarily revoke a construction permit under this article for cause, including, but not limited to, fraud in the petition or application for a permit, damage, trespass, depreciation or unlawful use by the applicant, or construction not in accordance with the plans submitted and approved by the resilience and public works department.

(b) In addition to the above summary revocation, any construction permit provided for may be revoked by the city commission for a departure from or violation of any of its terms, after written notice of intention to do so has been sent to the applicant by certified mail and an opportunity for a hearing before the city commission has been made available to him/her.

(Code 1967, § 27-16; Code 1980, § 29-26; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-52. Fees and charges.

(a) The following schedule of fees shall be charged in connection with this article:

(1) For publication and notification of property owners, payable at the time of filing a petition, a minimum of $90.00.

(2) For removal of sand, rock or earth by pumping or otherwise, from lands submerged, or otherwise, as estimated by the director of resilience and public works and payable upon issuance of a

permit, $425.00 for the first 1,000 cubic yards or fraction thereof, and $125.00 for each additional 1,000 cubic yards or fraction thereof.

(b) The processing fees required by paragraphs (a)(1) and (2) of this section shall be waived for governmental entities and agencies.
(Code 1967, § 27-17; Ord. No. 9005, § 2, 10-17-79; Ord. No. 9513, § 1, 11-4-82; Code 1980, § 29-27; Ord. No. 13142, § 11, 2-11-10; Ord. No. 13195, § 4, 9-27-10; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-53. Standards and inspections.

All work under this article shall be performed in strict accordance with the application for a construction permit and other data, information and representations furnished and made by the applicant, the requirements and conditions of the construction permit, applicable provisions of this Code and other city ordinances and the laws of the state, and shall be in compliance with the resilience and public works department's standards and specifications. All work shall be subject to periodic and final inspection and approval by the resilience and public works department.
(Code 1967, § 27-18; Code 1980, § 29-28; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-54. Stopping of noncomplying work.

Upon the violation of any of the provisions of this article, the director of resilience and public works shall stop the work and shall forthwith notify the city manager of such action.
(Code 1967, § 27-19; Code 1980, § 29-29; Ord. No. 13792, § 1, 10-11-18)

Sec. 29-55. Remedies cumulative.

Any stoppage of the work under this article by the director of resilience and public works, or any revocation of the construction permit therefor, either summarily or after due notice and hearing, shall be independent of the penalty for a violation of this article, and neither the acts of stoppage or revocation, nor the imposition of a fine or imprisonment, or both, shall act as a bar or preclusion of one to the other.
(Code 1967, § 27-20; Code 1980, § 29-30; Ord. No. 13792, § 1, 10-11-18)

Secs. 29-56—29-80. Reserved.

ARTICLE III. BULKHEADS, SEAWALLS, LIVING SHORELINES, PIERS, DOCKS, GROINS, MARINE RAILWAYS, AND OTHER SIMILAR STRUCTURES*

Sec. 29-81. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section. Definitions other than those given herein shall be as set forth in the Florida Building Code.

Building code: The most current adopted version of the Florida Building Code at the time of permit application.

Building department: The building department of the city, or the director of such department, used interchangeably.

Bulkhead: A vertical or near-vertical, substantially impermeable structure erected along water or a waterway, designed and constructed in such manner as to be substantially impermeable and safely sustain any loads, both vertical and lateral, that may come upon it, such as earth fill, water, moving traffic, storage of materials alongside, and the like. Coastal bulkheads are most often referred to as seawalls; however, by definition, they are intended to act as a shoreline stabilization structure that primarily retains soil and provides minimal protection from waves.

Bulkhead line: An official line established by a governmental agency along or near the shore for the purpose of controlling the waterfront alignment of structures.

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*__Editor's note—__Ord. No. 13980, § 3, adopted March 25, 2021, changed the title of article III from "Bulkheads, seawalls, piers, docks, groins, marine railways, and other similar structures" to "Bulkheads, seawalls, living shorelines, piers, docks, groins, marine railways, and other similar structures."

Department of resilience and public works: The resilience and public works department of the city, or the director of such department, used interchangeably.

Engineer: A professional engineer certified competent and licensed by the state.

Gravity-type wall: A structure whose resultant of acting forces falls within the middle third of the base. Rock-type or riprap walls shall be included in this category when the base width equals or exceeds the height of the wall.

Living shoreline: A green infrastructure technique using native vegetation alone or in combination with low sills (such as low elevation seawalls or bulkheads) to stabilize the shoreline as a natural alternative to "hard" shoreline stabilization methods like riprap or bulkheads. Living shorelines may be more resilient than bulkheads in protecting against the effects of hurricanes. A living shoreline may have its waterside face consist of plants and other natural elements that improve water quality, provide additional fish habitat, and fosters increased biodiversity provided that the landside interface of a living shoreline be substantially impermeable and constructed to a finished elevation that meets current requirements as set by the department of resilience and public works. The landside interface may be located anywhere on an existing property fronting the living shoreline, as long as it is constructed in a manner and location that ensures any habitable structures on that property are protected from flooding from tidal waters and it prevents flooding of adjacent properties and the public right-of-way.

NAD 83 (2011): A geometric datum/coordinate system for collection of positions relative to an ellipsoid model of the Earth. The current horizontal datum for the United States and its territories is effectively part of a geometric datum and it is called the North American Datum of 1983. The current realizations of NAD 83 were adopted in 2012 following the completion of the National Adjustment of 2011 (i.e. "NAD 83 (2011)").

NAVD 88: The North American Vertical Datum of 1988 is the vertical control datum established in 1991 by the minimum-constraint adjustment of the Canadian-Mexican-United States leveling observations which was affirmed in 1993 as the official vertical datum in the National Spatial Reference System ("NSRS") for the Conterminous United States and Alaska.

Riprap: A foundation of unconsolidated boulders, stone, concrete, or similar materials placed on or near a shoreline to mitigate wave impacts and prevent erosion.

Seawall: A vertical or near-vertical, substantially impermeable structure that provides shoreline protection from waves while retaining upland soils. Seawalls are typically located on the coast fronting beaches or other tidally-influenced waterways and are subject to storm surges with pounding surf, eroding shorelines, and wave overtopping from coastal storm or extreme high tide events. The elevation of the top of a seawall must comply with the current minimum finished elevation requirements as set by the department of resilience and public works to ensure protection of the surrounding properties and the public right-of-way from flooding associated with currently realized and expected future sea level rise.

Substantially impermeable: Any shoreline protection constructed, repaired, or reconstructed pursuant to this section in a manner that prevents groundwater on the landward side of the structure from being affected by tidal waters passing through the wall. As tidal waters rise, the groundwater elevation behind the wall shall remain relatively static in order to be considered substantially impermeable.

Tidal waters: Any water that alternately rises and falls in a predictable and measurable rhythm or cycle due to the gravitational attraction of the moon and sun, including seasonal tide events such as king tides. Extreme tidal elevation changes caused by a storm event (i.e. storm surge) is not to be used as a determining factor of whether or not an existing shoreline protection structure is in violation of the city's maintenance requirements.

Tidally-influenced or *tidally-influenced areas:* Any water-fronting land area where water levels

change in response to daily changes in tidal waters or the change in the water levels itself in response to daily changes in tidal waters.
(Code 1967, § 27-21; Code 1980, § 29-41; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13980, § 3, 3-25-21)

Sec. 29-82. Purpose of article.

The purpose of this article is to protect the public's health, welfare and safety by setting minimum standards to be used in the design, construction and maintenance of waterfront structures; further, to accomplish this purpose by requiring such design, construction and maintenance to be acceptable in all respects and particulars to the building and resilience and public works departments; and lastly, to ascertain that all physical improvements included herein are subject to and admit of rational analysis in accordance with established principles of mechanics and accepted engineering practices. This article shall be deemed to supplement the provisions of the South Florida Building Code.
(Code 1967, § 27-22; Code 1980, § 29-42; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13980, § 3, 3-25-21)

Sec. 29-83. Permits for waterfront improvements—Required.

No waterfront improvement or structure shall be constructed, reconstructed or repaired until a permit authorizing such construction, reconstruction or repair has been obtained from the building department. No such permit shall be issued for any new construction or improvement or repair to an existing improvement or structure which is deemed, by the director of the building department to be substandard or not in compliance with the department of resilience and public works' design and construction standards. If a property owner who is required to repair or replace a seawall, bulkhead, living shoreline, or other shoreline protection structure/element due to the existing structure being in disrepair or allowing tidal waters to flood the public right-of-way and/or neighboring properties can demonstrate an extreme financial hardship related to the costs associated with such work, then the city manager's designee may consider such hardship on a case-by-case basis and elect to waive a portion of or all fees associated with the permitting required by the city for such construction taking into account the following criteria:

(1) The property owner's income as evidenced by prior years' income tax returns for as many years as requested by the city manager's designee, and

(2) The property owner's general ability to pay or finance the required improvements without causing an undue economic hardship.

(Code 1967, § 27-23; Ord. No. 10658, § 2, 10-12-89; Code 1980, § 29-43; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13980, § 3, 3-25-21)

Sec. 29-84. Same—Application.

(a) *Generally.* Permits required by this article shall be applied for either by the owner-builder or by a licensed contractor certified in a proper category and having a bona fide contract with the owner to perform such work.

(b) *For improvements of $5,000.00 or more.* For new construction or repairs amounting to $5,000.00 or more in value, certified/signed and sealed plans shall be submitted with the application, which plans shall include the following information, at a minimum, except as to any item which may be waived in writing by the building department:

(1) A current (less than one year old) certified/signed and sealed survey drawing of the property upon which the improvement is to be made, generated based on NAD 83 (2011) and NAVD 88 horizontal and vertical datums and showing sufficient topographic information to determine the impacts of the proposed improvements to the adjacent private and public lands.

(2) A plot plan, showing the relation of the proposed improvement to the site and to adjoining land or areas.

(3) Arrangement and structural details in the plan, section and elevation views sufficiently expanded to serve as construction drawings.

(4) The type and character of the soil substrata which will bear the improvement or structure. When required by the building department, core borings shall be taken to a depth ten feet deeper than the proposed base of construction or to a depth below the deepest piling, and the findings of the same shall be made a part of the permit application.

(5) Soundings and pertinent elevations and horizontal locations of the proposed structures shall be shown and referred to using NAVD 88 for vertical and NAD 83 (2011) for the horizontal datums.

(6) Seawalls, bulkheads, and living shorelines must be provided with specific purpose surveys certifying the alignment and elevation of the top of wall or bulkhead line with elevations spaced at a maximum of ten-foot intervals showing the highest and lowest elevations of the barrier and clearly identifying the location and elevation of the structure/barrier at each property corner. Elevations of adjacent properties and public rights-of-way must also be provided to ensure proper harmonization is provided between the proposed barrier with the surrounding lands.

(7) The name and address of the owner and property tax folio number(s) of the property(ies) upon which the improvement(s) is(are) to be made or constructed.

(8) A construction cost estimate of the proposed improvement substantiated by a fully executed construction contract or validated and attested to by a licensed professional engineer.

(9) The signature and seal of the engineer designing the improvements.

(10) The engineer's design computations, when required by the building department.

(c) *For improvements less than $5,000.00.* For construction or repairs less than $5,000.00 in value, certified/signed and sealed plans shall be submitted with the application, which plans shall include the following information, at a minimum, except as to any item which may be waived in writing by the building department:

(1) A current (less than one year old) certified/signed and sealed survey drawing of the property upon which the improvement is to be made, generated based on NAD 83 (2011) and NAVD 88 horizontal and vertical datums and showing sufficient topographic information to determine the impacts of the proposed improvements to the adjacent private and public lands.

(2) A plot plan, showing the relation of the proposed improvement to the site and to adjoining land or areas.

(3) The name and address of the owner of the property upon which the improvement is to be made.

(4) Arrangement and structural details in the plan, section, and elevation views sufficiently expanded to serve as construction drawings.

(5) A cost estimate of the proposed improvement substantiated by a fully executed construction contract or validated and attested to by a licensed professional engineer.

(6) The signature and seal of the engineer designing the improvement(s).

(7) The engineer's design computations, when required by the building department.

(Code 1967, § 27-24; Ord. No. 10658, § 2, 10-12-89; Code 1980, § 29-44; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13980, § 3, 3-25-21)

Sec. 29-85. Same—Certain title and permits to accompany application.

As part of a request for a permit under this article, the applicant shall obtain and present the following title and permits, except for any such title proved not to be required:

(1) The title to bay-bottom lands from the internal improvement fund.

(2) Preliminary approval from Miami-Dade County Department of Permitting, Environment and Regulatory Affairs (PERA).

(Code 1967, § 27-25; Code 1980, § 29-45; Ord. No. 13315, § 2, 3-8-12)

Sec. 29-86. Same—Fees.

(a) The permit fee for the construction of any new structural improvement covered by this article, excluding the cost of any electrical, mechanical and plumbing work requiring separate permits, shall be based upon the estimated construction costs and shall be a flat fee of $300.00 plus two percent of the estimated construction cost. An after-the-fact permit fee, for any improvements covered by this article on which construction was performed without proper permits and inspection, shall be quadruple the above fee.

(b) The permit fee for the repair or reconstruction of any existing structural improvement covered by this article, excluding the cost of any separate permits, shall be based upon the estimated cost of repair or reconstruction and shall be a flat fee of $90.00 or ten percent of the estimated cost of repair/reconstruction up to $525.00, whichever is greater. An after-the-fact permit fee, for any improvements covered by this article on which repairs/reconstruction were performed without proper permits and inspection, shall be quadruple the above fee.

(c) The expense of any inspection by the building department shall be in accordance with chapter 10 of the City Code.

(d) The fee required under this section may be waived by the director of building for governmental entities and agencies.

(Code 1967, § 27-26; Ord. No. 9005, § 3, 10-17-79; Ord. No. 9513, § 1, 11-4-82; Ord. No. 10658, § 2, 10-12-89; Code 1980, § 29-46; Ord. No. 13142, § 11, 2-11-10; Ord. No. 13195, § 4, 9-27-10; Ord. No. 13315, § 2, 3-8-12)

Sec. 29-87. Same—Refund of fees; time limitations.

The building department shall be governed, in the matters of permit fee refunds and time limitations of permits, by chapter 10 of the City Code and the Florida Building Code.

(Code 1967, § 27-27; Code 1980, § 29-47; Ord. No. 13315, § 2, 3-8-12)

Sec. 29-88. Same—Revocation.

Any permit issued under this article shall be revocable for good cause, which cause may include, but is not limited to, failure, refusal or neglect by the owner, contractor or engineer to fulfill any of the provisions of this article or the Florida Building Code.

(Code 1967, § 27-28; Code 1980, § 29-48; Ord. No. 13315, § 2, 3-8-12)

Sec. 29-89. Design.

(a) *Design analysis.* Responsibility for proper design rests with the engineer who prepares the plans. Each improvement shall be designed to support all loads that may come upon it, to withstand the forces of water, wind and usage; and to meet the specific requirements of the building department and/or department of resilience and public works for location, elevation, and construction.

(1) *General.* Any improvement, bulkhead, seawall, pier, wharf, dock, groin, cut, marine, railway or other related structure included in this article shall admit of rational analysis in accordance with well-established principles of mechanics and sound engineering practices, and without exceeding the allowed stresses for the various materials as specified in the Florida Building Code.

(2) *Bulkheads and seawalls.* Bulkheads and seawalls and all parts thereof must be designed to support the estimated or actual imposed load, either dead, live or any other, both during construction and after the completion of such bulkhead or seawall. Seawalls, bulkheads, and any other shoreline protection structures or elements shall be designed and built in a

substantially impermeable manner pursuant to the current department of resilience and public works' design and construction standards to prevent water from flowing through or over the seawall/shoreline protection while still allowing for the release of hydrostatic pressure from the upland direction. The elevation of the top of a bulkhead must comply with the current minimum finished elevation requirements as set by the department of resilience and public works. In cases where the proximity of an existing structure/building or functional requirement prevents the ability of an existing bulkhead or seawall to be raised to current minimum finished elevation requirements, an alternate method of constructing a wall or other substantially impermeable protection structure/element may be proposed to and considered for acceptance by the department of resilience and public works pursuant to the variance process outlined in subsection 29-89(a)(6) of the City Code. Any alternative to constructing a bulkhead or seawall at the current property/shoreline interface must be designed for and constructed on the same property fronting the shoreline in a manner and location that prevents flooding from tidal waters to adjacent properties and the public right-of-way.

(3) *Terrace-type wall.* Subject to certain types of conditions of the site or location of the improvement, step-type bulkheads or terrace-type walls will be permitted.

(4) *Waterfront properties.* For all tidally-influenced areas and waterfront properties, except those fronting the Miami River and its tributaries, the top elevation of seawalls, bulkheads, living shorelines, or other shoreline protection structures or elements shall be constructed to a minimum elevation of six feet NAVD 88. The top elevation of new seawalls, bulkheads, living shorelines or other shoreline protection structures or elements fronting the Miami River or its tributaries shall be constructed to a minimum elevation of four feet NAVD 88 with the same being designed and constructed with the ability to be incrementally raised a minimum of two feet above their initial designed and constructed elevation to mitigate high tide flooding associated with realized and additional sea level rise through the year 2070. An application for a permit required by this article shall be accompanied by a proposed plan for incremental improvements through the year 2070 demonstrating the ability for the permitted improvement to be incrementally raised through 2070 as well as appropriate modification details, to include load calculations, demonstrating the capability of being raised a minimum of two feet above the minimal elevations. All such structures or elements must be designed and constructed in accordance with the department of resilience and public works' design and construction standards. This criteria applies to new construction or when substantial improvements to a property are performed. This subsection is not to be interpreted to impair the obligation of contracts, including without limitation, restrictive covenants or deed restrictions, under the Constitution of the state.

(5) *Substantial repairs/improvements of seawalls and bulkheads.* Seawall and bulkhead improvements meeting the substantial repair threshold at the time of permit application must meet the requirements of subsection 29-89(a)(4) of the City Code and the department of resilience and public works' current design and construction standards and minimum finished elevation requirements for the length of the property. For the purposes of this section, the substantial repair threshold shall be defined as any seawall or bulkhead repair consisting of 50 percent or more of the current length of the existing barrier, any repairs that are 50 percent or more of the cost of a new seawall or bulkhead along the length of

the existing barrier or property shoreline, or any improvement to the seawall or bulkhead which results in an elevation change along 50 percent or more of the length of the structure.

(6) *Requests for finished elevation variance.* Property owners may request a variance to the following:

a. The requirement that seawalls, bulkheads, living shorelines, and other shoreline protection structures be elevated to the current minimum elevation requirements in subsection 29-89(a)(4) of the City Code by using an alternative method of construction pursuant to subsection 29-89(a)(2) of the City Code;

b. The requirement for incremental raising of seawalls, bulkheads, living shorelines, and other shoreline protection structures be able to be incrementally raised, including furnishing the required report demonstrating the same pursuant to subsection 29-89(a)(4); and/or

c. The requirement that that seawalls, bulkheads, living shorelines, and other shoreline protection structures be elevated to the current minimum elevation requirements in subsection 29-89(a)(4) of the City Code by using an alternative method of construction pursuant to subsection 29-89(a)(2) of the City Code for single-family homes to ensure the safe dockage of boats.

Said variances may be granted due to extenuating conditions or circumstances peculiar to their properties provided the property owner can demonstrate that a proposed new or reconstructed seawall, bulkhead, living shoreline, or other shoreline protection structure/element is capable of preventing flooding of the public right-of-way or the neighboring public or private properties despite issuance of the variance. The city manager's designee may consider such request for a variance and impose such conditions as needed to prevent any potential present or future adverse effects from the granting of the same. A variance, if approved, does not absolve a property owner from responsibility to prevent tidal waters from flowing overland or through the above-mentioned improvements to adjacent properties or the public right-of-way pursuant to section 29-95 of the City Code.

The denial of any variance may be appealed within 30 days after receipt of written request from the applicant to a review committee which shall be comprised of the director of the department of resilience and public works, the director of the department of planning, the director of the department of building, and an assistant city manager. The applicant shall have the right to present its position to the review committee which shall review the city manager's designee's denial of the variance. The committee, by a three-fourths vote, shall either affirm the city manager's designee's denial of the variance or reverse the decision. The committee shall, in determining whether city manager's designee's denial was reasonable, determine if the denial of the variance was necessary to meet the intent of the article. If the review committee votes to reverse the decision of the city manager's designee and grant the variance, the review committee may impose any conditions necessary to meet the intent of this article in the same manner in which the city manager's designee could have had the variance been initially approved. The decision of this committee, which shall be rendered within 30 days after conclusion of the hearing, shall be final.

(b) *Lateral support from fills.* No fill deposited as a berm on the water side of the bulkhead shall be considered as offering any lateral support to the bulkhead, without approval by the building department.

(Code 1967, § 27-29; Code 1980, § 29-49; Ord. No. 12926, § 2, 6-14-07; Ord. No. 12959, § 2, 1-10-08; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13980, § 3, 3-25-21)

Sec. 29-90. Loads.

All improvements shall be proportioned for the following loads and forces:

(1) Dead load.

(2) Live load or surcharge including ordinary impact, except where loading involves unusual impact requiring increased assumed loads. Live loads may consist of material, goods or equipment stored or operated alongside the bulkhead, or any structure adjoining the same, the foundations of which may exert pressure on the bulkhead, or sidewalks, highway or street traffic loads. A sidewalk live load shall be taken as 100 pounds per square foot of sidewalk area, and the highway or street traffic loads shall be in accordance with the Standard Specifications for Highway Bridges adopted by the American Association of State Highway and Transportation Officials. Unless otherwise indicated by field conditions, the minimum highway or street traffic load shall consist of a two-axle truck of gross weight 20 tons, designated as class H-20 loading in such standard specifications.

(3) Impact and dynamic effect of live load.

(Code 1967, § 27-30; Code 1980, § 29-50; Ord. No. 13315, § 2, 3-8-12)

Sec. 29-91. Construction.

(a) *General.* Each waterfront improvement shall be permanent in nature, and the character of its soil or fill shall be accurately determined, as shall also its weight and angle of repose. Gravity structures may be constructed of a combination of rocks and concrete, and the minimum percentage of cross sectional area of concrete to the total cross sectional area of the structure shall be 40 percent, excluding concrete used for copings or decorative purposes.

(b) *Alignment.* The alignment of a bulkhead or seawall shall be closely controlled. The bulkhead or seawall shall be constructed entirely on privately owned property unless otherwise approved by the entity or agency controlling the property upon which the bulkhead or seawall is to be constructed, and the alignment shall not deviate more than two inches from the designated alignment. The face of the bulkhead or seawall shall not in any case protrude beyond the established bulkhead line or the line shown on the plan approved by the building department.

(c) *Supporting piling.* Supporting piles on any improvement constructed shall be driven to a bearing capacity as shown on the plans. These bearing capacities shall be computed in accordance with the driving load formula given in the Florida Building Code.

(d) *Concrete anchors.* Concrete anchors shall be used only where approved by the building department.

(e) *Precast concrete piles.* Precast concrete piles shall conform to the requirements of the Florida Building Code.

(f) *Steel sheet piles.* Steel sheet piling shall be of the continuous-interlock type of approved form. All steel sheet piling and accessories shall conform to the requirements of the Specifications for Steel Sheet Piling of the American Society for Testing and Materials, ASTM A328. The minimum thickness of web and flange metal shall be three-eighths of an inch, unless effectively protected from corrosion in the area extending from one foot below mean low water to the top of the exposed steel.

(g) *Wood piles.* Wood piles shall conform to the requirement of the Florida Building Code.

(h) *Caps.* Bulkheads and seawalls shall be capped. The cap shall be reinforced concrete. The use of the cap as a street curb shall be avoided, but if such function is permitted by the building department, the cap shall be designed for a live load of 500 pounds (minimum) per lineal foot of cap, applied laterally, in addition to any other loads, dead or live, that may come upon it, and shall have a guardrail where required by the building department.

(i) *Special piles or special conditions.* The use of types of piles or conditions not specifically covered herein may be permitted, subject to the approval of the building department, upon the submission by the engineer of acceptable test

data, calculations or other information relating to the properties and load-carrying capacity of such piles.
(Code 1967, § 27-31; Code 1980, § 29-51; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13980, § 3, 3-25-21)

Sec. 29-92. Materials.

Permanent materials shall include concrete, steel, stone masonry construction, fiber reinforced or high-performance plastics, or any combination of the same. Other materials not specifically covered herein may be permitted, subject to the approval of the building department. Reinforced concrete shall be of the materials, proportions, strength and consistency set forth in the Florida Building Code, as also shall the materials, design and fabrication in the erection of steel.
(Code 1967, § 27-32; Code 1980, § 29-52; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13980, § 3, 3-25-21)

Sec. 29-93. Review of plans; duty to inspect.

The building department shall review all plans and inspect all construction to insure that minimum standards set forth in this article are met, and shall require corrections in plans or construction when indicated.
(Code 1967, § 27-33; Code 1980, § 29-53; Ord. No. 13315, § 2, 3-8-12)

Sec. 29-94. Procedure for inspections.

(a) Inspection of work in progress on waterfront improvements shall be carried out as set forth in the building code, according to the following sequence:

(1) Layout inspection after survey for location and before excavation is begun.

(2) Pile inspection during the driving of piles and after all piles are driven, but before placing of any concrete.

(3) Foundation inspection after necessary excavations have been made, forms erected and reinforcing steel placed, but before concrete is placed.

(4) Reinforcing inspection after any reinforcing steel is in place and tied, but before the placing of any concrete.

(5) Electrical, mechanical or plumbing inspections after installation of such named equipment, but before any part of such installation is covered or concealed from view.

(6) Sheet pile or pre-cast wall panel installation for bulkheads or seawalls after placement of sheet piling/wall panels, joint water proofing materials, and weep hole one-way valves (where applicable) but before the voids behind the wall are filled and concealed from view.

(b) In the event the waterfront improvement includes any electrical, mechanical and plumbing work, a permit for such work shall be required in addition to the permit covered by this article, and the permit fee for such electrical, mechanical and plumbing work shall be as set forth in chapter 10 of the City Code.
(Code 1967, § 27-34; Code 1980, § 29-54; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13980, § 3, 3-25-21)

Sec. 29-95. Maintenance.

All property owners must maintain their seawalls, bulkheads, living shorelines, or other shoreline protection structures or elements in good repair. A shoreline protection structure is presumed to be in disrepair if it allows for upland erosion, transfer of material through the barrier/wall, or allows tidal waters to flow unimpeded over or through the barrier/wall to adjacent properties or the public right-of-way. Property owners with seawalls, bulkheads, living shorelines, or other shoreline protection structures or elements below the minimum required finished elevation, with permeable erosion barriers such as riprap or a land/water interface of another nature, are prohibited from allowing tidal waters entering their property to flow to adjacent properties or public rights-of-way. Privately owned waterfront improvements shall be privately maintained, even though a portion of the improvement may extend into publicly owned land. Failure by the owner to keep the above-mentioned improvements in a state of repair acceptable to

the building department or failure to prevent tidal waters from flowing overland or through the above-mentioned improvements to adjacent properties or the public right-of-way shall be subject to enforcement as set forth in chapter 2, article X of the City Code, entitled "Code enforcement," and may be brought for further proceedings before the code enforcement board. Repairs or construction of improvements to correct any violation of this article must meet the requirements of subsection 29-89(a)(4) of the City Code and the department of resilience and public works' current design and construction standards and minimum finished elevation requirements for the length of the property. Upon citation for noncompliance of this section, the owner of the property on which the improvements that are in disrepair or are allowing the flow of tidal waters over or through it to adjacent properties or public rights-of-way is required to begin abating such condition within 180 days by retaining a licensed contractor to apply for a building permit and diligently pursue issuance of the same to begin repairs within 18 months and to complete repairs with all applicable permits finalized within 24 months from the date of the citation. However, for those improvements designed to be incrementally raised in accordance with subsection 29-89(a)(4) of the City Code, it is required to begin repairs within 12 months and to complete repairs with all applicable permits finalized within 18 months from the date of the citation.

The department of resilience and public works is permitted to extend these timelines in six-month increments upon good cause shown and reasonable progress towards compliance being diligently pursued by the property owner. Reasonable progress towards compliance may include, but is not limited to, hiring a licensed contractor, submitting a building permit application, diligently pursuing the issuance of a building permit with the applicable departmental disciplines charged with review of the same, and any acts evidencing progress towards the actual construction of the repaired or new improvements. Should the property owner adhere to the timeframes set forth in this section (including any extensions granted by the department of resilience and public works), then notwithstanding the provisions of subsection 2-817(d) of the City Code, the property owner shall be entitled to a complete mitigation of any fines accrued pursuant to this section. The foregoing shall not be an exclusive remedy and the city may at its option additionally institute a civil action to enforce the provisions in this chapter.

(Code 1967, § 27-35; Code 1980, § 29-55; Ord. No. 13315, § 2, 3-8-12; Ord. No. 13980, § 3, 3-25-21)

Secs. 29-96—29-120. Reserved.

ARTICLE IV. RESERVED*

*__Editor's note—__Ord. No. 13857, § 3, adopted September 12, 2019, repealed the former article IV, sections 29-121—29-124 in its entirety, which pertained to the waterfront advisory board, and derived from the Code of 1980, §§ 29-61—29-64; Ord. No. 10459, §§ 1—4, adopted July 14, 1988; Ord. No. 10638, § 1, adopted September 14, 1989; Ord. No. 11130, § 12, adopted March 24, 1994; Ord. No. 11189, § 3, adopted October 27, 1994; Ord. No. 11373, § 7, adopted June 27, 1996; Ord. No. 11564, § 12, adopted October 28, 1997; Ord. No. 11873, § 2, adopted February 14, 1999, and Ord. No. 12388, § 2, adopted July 17, 2003.

Chapter 30

RESERVED

Chapter 31

LOCAL BUSINESS TAX AND MISCELLANEOUS BUSINESS REGULATIONS*

Article I. In General

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Article II. Local Business Tax (BTR)

Sec. 31-26. Required; separate locations to comply with BTR; doing business with the City of Miami or its agencies.
Sec. 31-27. Display.
Sec. 31-28. Definitions.
Sec. 31-29. Exemptions; motor vehicles.
Sec. 31-30. Exemption allowed certain disabled persons, the aged, and widows with minor dependents.
Sec. 31-31. Exemptions allowed disabled veterans of any war or their unremarried spouses.
Sec. 31-32. Charitable, etc., organizations; occasional sales, fundraising; exemption.
Sec. 31-33. Religious tenets; exemption.
Sec. 31-34. Governmental agency, entity or employee; exemption.
Sec. 31-35. Application procedure; grounds for denial.
Sec. 31-36. Application notarization required.
Sec. 31-37. Duration.
Sec. 31-38. Due date and proration of BTR.
Sec. 31-39. Penalty, late payment of local business tax or original local business tax receipt.
Sec. 31-40. Renewal of BTR.
Sec. 31-41. Grounds for nonrenewal.
Sec. 31-42. Refunds.
Sec. 31-43. Transferability.
Sec. 31-44. Replacing lost or destroyed BTR.
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*__Editor's note—__Ord. No. 12885, § 1, adopted February 8, 2007, changed the title of chapter 31 from "Licenses and Miscellaneous Business Regulations" to "Local Business Tax and Miscellaneous Business Regulations."

__City Code cross references—__Alcoholic beverages, ch. 4; amusements, ch. 5; cable television, ch. 11; commercial waste collection, § 22-46 et seq.; ships, vessels and waterways, ch. 50.

__Law review reference—__Municipal licenses in Florida, 8 Miami L.Q. 266.

__State law reference—__Local occupational license taxes, F.S. ch. 205.

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ARTICLE I. IN GENERAL

Secs. 31-1—31-25. Reserved.

ARTICLE II. LOCAL BUSINESS TAX (BTR)*

Sec. 31-26. Required; separate locations to comply with BTR; doing business with the City of Miami or its agencies.

(a) As a condition precedent to engaging in or operating in the city any business, profession or occupation referred to expressly or otherwise in section 31-50 herein, whether as owner, agent, employee, manager or operator, a BTR shall be procured from the city as provided in this article, on or before October 1 of each year. Any individual, partnership, or other incorporated or unincorporated business entity conducting any business, profession or occupation referred to in section 31-50 herein, whether as owner, agent, employee, manager or operator, who does not possess a valid and current BTR and display the same as required by section 31-27 herein, shall be guilty of a misdemeanor, and upon conviction shall be punished as provided in section 1-13. Each day the above-described violation occurs shall constitute a separate offense.

(b) Such conditions precedent shall apply, separately and severally, to each place or location where any such business, profession or occupation will be engaged in or operated regardless of the capacity in which the person or legal entity engaging in or operating such business, profession or occupation shall act, whether as owner, agent, manager or operator.

(c) Except where specifically contrary to general law, any person doing business with the City of Miami and/or any of its agencies shall obtain a City of Miami BTR for the type of business they are contracting.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-1; Ord. No. 11287, § 2, 7-13-95; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

Editor's note—Ord. No. 13106, § 2, adopted Oct. 8, 2009, changed the title of § 31-26 from "Required; separate locations licensed separately; doing business with the City of Miami and/or its agencies" to "Required; separate locations to comply with BTR; doing business with the City of Miami or its agencies." The historical notation has been preserved for reference purposes.

Case law reference—The owner of apartment houses who delegated all management duties in regard thereto to a corporation was not "engaged in or operating any business, profession or occupation" for which a license is required under this section. City of Miami v. Schonfeld, 197 So. 2d 559.

Sec. 31-27. Display.

All BTR issued by the city, unless otherwise provided by law, shall be displayed in the office or some other conspicuous place within the complying establishment or on the premises thereof and shall be displayed to the general public or any police department personnel, BTR inspector, code enforcement inspector, or other official of the city upon request during normal business hours. If the business does possess a valid and current BTR but fails to display the same as required by this section, said BTR may be suspended by the city manager or designee upon notification of said refusal by the city attorney. Upon said notification, the city manager or designee shall schedule a hearing as mandated by subsection 31-49(b) herein. A suspension for failure to display shall extend for a period of 30 days.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-2; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

Sec. 31-28. Definitions.

Other definitions are contained within section 31-50 herein, pertaining to particular occupational classifications. For the purposes of this article, the following definitions apply:

Agency for Health Care Administration (AHCA) is the agency referred to in F.S. § 402.03 or its statuary successor, administrative department or division.

*__Editor's note—__*Ord. No. 13106, § 2, adopted Oct. 8, 2009, changed the title of article II from "Local Business Tax" to "Local Business Tax (BTR)."

Business, profession and occupation do not include customary religious, charitable or educational activities, or nonprofit religious, nonprofit charitable or nonprofit educational institutions.

Charitable institutions shall mean only nonprofit corporations operating physical facilities in Florida at which are provided charitable services, a reasonable percentage of which shall be without cost to those unable to pay.

Department of Business and Professional Regulation (DBPR) is the state agency referred to in F.S. § 20.165 or its statutory successor, administrative department or division.

Department of Health and Rehabilitative Services (HRS) is the state agency referred to in F.S. § 20.19 or its statutory successor, administrative department or division.

Department of Highway Safety and Motor Vehicles (DMV) is the state agency referred to in F.S. § 20.24 or its statutory successor, administrative department or division.

Educational institutions shall mean state tax-supported or parochial, church and nonprofit private schools, colleges or universities conducting regular classes and courses of study required for accreditation by or membership in the Southern Association of Colleges and secondary schools, department of education or the Florida Council of Independent Schools. Non-profit libraries, art galleries and museums open to the public are defined as educational institutions and eligible for exemption.

Local business tax receipt (BTR) document shall mean the document that is issued by the city which bears the words "local business tax receipt" and evidences that the person in whose name the document is issued has complied with the provisions of this article and F.S. ch. 205, relating to the business tax.

Local business tax receipt (BTR) fee shall mean the fees charged and the method by which the city grants the privilege of engaging in or managing a business, profession, or occupation within its jurisdiction. It does not mean any fees or licenses paid to any board, commission, or officer for permits, registration, examination, or inspection.

Merchandise shall mean goods, wares, articles, stock, and other things of value, including goods on consignment.

Merchant retailer shall mean an individual, company, co-partnership, corporation, other business entity or agent who acquires for the purpose of sale, keeps for sale, offers or exposes for sale or sells individual units of merchandise to an ultimate consumer and not for resale.

Merchant wholesaler, distributor, jobber or consignment shall mean an individual, company, co-partnership, corporation, other business entity or agent who may or may not maintain a fixed place of business in the city who sells or offers to sell merchandise for resale to a merchant retailer or any other party for resale. A wholesale BTR does not cover anyone who sells directly to the consuming public.

Religious institutions shall mean churches and ecclesiastical or denominational organizations, or established physical places for worship in this state at which non-profit religious services and activities are regularly conducted and carried on and shall also mean church cemeteries.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-3; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

State law reference—Definitions, F.S. § 205.022.

Sec. 31-29. Exemptions; motor vehicles.

Vehicles used by any person in compliance with this article for the sale and delivery of tangible personal property at either wholesale or retail from his/her place of business on which a BTR is paid shall not be construed to be separate places of business, and no BTR may be levied on such vehicles or the operators thereof as sales associates.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-4; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13676, § 2, 4-27-17)

State law reference—Similar provisions, F.S. § 205.063.

Sec. 31-30. Exemption allowed certain disabled persons, the aged, and widows with minor dependents.

(a) All disabled persons physically incapable of manual labor, widows with minor dependents, and persons 65 years of age or older, with not more than one employee or helper, and who use their own capital only, not in excess of $1,000.00, shall be allowed to engage in a business, profession or occupation without being required to pay for a BTR. The exemption provided by this section shall be allowed only upon the certification of a reputable physician, currently admitted to the practice of medicine in the State of Florida, that the applicant claiming the exemption is disabled, the nature and extent of the disability being specified therein; and in case the exemption is claimed by a widow with minor dependents or a person over 65 years of age, proof of the right to the exemption shall be made. Any person entitled to the exemption provided by this section shall, upon application and furnishing of the necessary proof as aforesaid, be issued a BTR which shall have plainly stamped or written across the face thereof the face that it is issued under this section, and the reason for the exemption shall be written thereon.

(b) In no event under this or any other law shall any person, veteran or otherwise, be allowed any exemption whatsoever from the payment of any amount required by law for the issuance of a BTR to sell intoxicating liquors or malt and vinous beverages.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-5; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

State law reference—Similar provisions, F.S. § 205.162.

Sec. 31-31. Exemptions allowed disabled veterans of any war or their unremarried spouses.

(a) Any bona fide, permanent resident elector of the state who served as an officer or enlisted person during any of the periods specified in F.S. § 1.01(15) in the armed forces of the United States, National Guard, or United States Coast Guard or Coast Guard Reserve, or any temporary member thereof, who has actually been, or may hereafter be, reassigned by the Air Force, Army, Navy, Coast Guard, or Marines to active duty during any war, declared or undeclared, armed conflicts, crises, etc., who was honorably discharged from the service of the United States, and who at the time of his or her application for a BTR as hereinafter mentioned shall be disabled from performing manual labor shall, upon sufficient identification, proof of being a permanent resident elector of the State of Florida, and production of an honorable discharge from the military service of the United States:

(1) Be granted a BTR to engage in any business, profession or occupation in the city which may be carried on mainly through the personal efforts of the complyee as a means of livelihood and for which the BTR does not exceed the sum of $50.00 for each without payment of any BTR otherwise provided for by law;

(2) Be entitled to an exemption to the extent of $50.00 on any BTR to engage in any business, profession or occupation in the state which may be carried on mainly through the personal efforts of the BTR holder as a means of livelihood when the state, county, or municipal BTR for such business, profession or occupation shall be more than $50.00. The exemption heretofore referred to shall extend to and include the right of BTR holder to operate an automobile for hire of not exceeding five-passenger capacity, including the driver, when it shall be made to appear that such automobile is bona fide owned or contracted to be purchased by the BTR holder and is being operated by him or her as a means of livelihood and that the proper BTR for the operation of such motor vehicle for private use has been applied for and attached to said motor vehicle and the proper fees therefore paid by the BTR Holder.

(b) When any such person shall apply for a BTR to conduct any business, profession or occupation for which the BTR shall exceed the sum of $50.00, the remainder of such BTR in excess of $50.00 shall be paid by him/her.

(c) Reasonable proof not inconsistent with F.S. § 205.171(3) shall be shown to establish the fact that the applicant is disabled.

(d) BTRs issued under this section shall be in the same general form as other BTR issued under this article and shall expire at the same time as such other BTR issued under this article.

(e) All BTRs obtained under the provisions of this section by the commission of fraud shall be deemed null and void. Any person who has fraudulently obtained any such BTR, or who has fraudulently received any transfer of a BTR issued to another, and has thereafter engaged in any business, profession or occupation requiring a BTR under color thereof shall be subject to prosecution as for engaging in a business, profession or occupation without having the required BTR under the laws of this state and of the city. Such BTR shall not be issued in any county other than the county wherein the veteran is a bona fide resident citizen elector, unless such veteran applying therefore shall produce to the tax collecting authority in such county a certificate of the tax collector of his or her home county to the effect that no exemption from BTR has been granted to such veteran in his or her home county under the authority of this section.

(f) In no event, under this or any other law, shall any person, veteran or otherwise, be allowed any exemption whatsoever from the payment of any amount required by law for the issuance of a BTR to sell intoxicating liquors or malt and vinous beverages.

(g) The unremarried spouse of the deceased disabled veteran of any war in which the United States armed forces participated will be entitled to the same exemptions as the disabled veteran.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-6; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13676, § 2, 4-27-17)

State law reference—Similar provisions, F.S. § 205.171.

Sec. 31-32. Charitable, etc., organizations; occasional sales, fundraising; exemption.

No BTR shall be required of any charitable, religious, fraternal, youth, civic, service, or other such organization when the organization makes occasional sales or engages in fundraising projects when the projects are performed exclusively by the members thereof and when the proceeds derived from the activities are used exclusively in the charitable, religious, fraternal, youth, civic and service activities of the organization.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-7; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

State law reference—Similar provisions, F.S. § 205.192.

Sec. 31-33. Religious tenets; exemption.

Nothing in this article shall be construed to require a BTR for practicing the religious tenets of any church.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-8; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

State law reference—Similar provisions, F.S. § 205.191.

Sec. 31-34. Governmental agency, entity or employee; exemption.

(a) No federal, state, county or municipal governmental agency or entity shall be required to obtain a BTR.

(b) A member of one of the professions who is employed by the United States government, State of Florida, or one of its political subdivisions, and practices his/her profession solely as an employee thereof shall not be required to obtain a BTR.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-9; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13676, § 2, 4-27-17)

State law reference—Exemptions and requirements, F.S. § 205.193 et seq.

Sec. 31-35. Application procedure; grounds for denial.

(a) *Form.* No BTR shall be issued or granted to any applicant to engage in any business or in the practice or pursuit of any profession or occupation coming within the categories mentioned in section 31-50 herein, unless the applicant shall first make application and complete an application form stating the following:

(1) The name of the applicant.

(2) Where applicable, the business address where the applicant has obtained a valid and current certificate of use from the office of zoning for the business activity which the applicant seeks to engage in.

(3) The name of the business, including, without limitation any fictitious name issued under the fictitious name statute of the State of Florida.

(4) In the initial application state whether the applicant has ever had any BTR issued under this article revoked or suspended.

(5) The application form shall have the following language:

STATEMENT: This information is given freely and voluntarily, and all the facts, figures, statements contained in this application are true and correct.

(6) The applicant shall sign the application.

(7) The application shall contain a section designated "emergency locator." The applicant shall fill out as part of the BTR application the resident address and resident phone number of the owner and manager or other local persons to be notified in case of fire or other emergencies. Any changes in such information during the period for which the BTR Holder is issued shall be made to the BTR division, in writing.

(8) The applicant shall furnish all other information requested by the city manager or designee as deemed necessary for its determination of the appropriate BTR and the amount of said BTR applicable thereto.

(b) *Grounds for denial.* Grounds for denial of the issuance of a BTR shall include:

(1) The applicant has materially misrepresented or failed to include the information mandated by this article in the application.

(2) The applicant, individual, partnership, or other incorporated or unincorporated business entity desiring to engage in the business applied for in this application currently has that BTR under suspension or revocation.

(3) The applicant, individual, partnership or other incorporated or unincorporated business entity desiring to engage in the business as described in the application has not provided the city manager or designee with a valid and current certificate of use from the office of zoning.

(4) The applicant, individual, partnership or other incorporated or unincorporated business entity desiring to engage in the business as described in the application is the subject of code enforcement procedures, a state law or county violation, or a violation of the zoning ordinance or other city ordinance, where the applicant's business enterprise is located or is to be located. Said BTR shall be withheld by the city manager or designee until such time as said violation is corrected and all attendant fines are paid in full, or the code enforcement board, a special master, or a court of competent jurisdiction issues an order directing the issuance of the BTR.

(c) Any person whose application for a BTR has been denied by the city manager or designee under this section or under section 31-41 may, by appropriate written petition to the department of hearing boards, seek a hearing pursuant to section 31-49. The request for a hearing must be made within 30 days after the notice of denial by the city manager or designee, is submitted to the applicant.

(d) BTR issued. The BTR shall have the name of the city manager or designee imprinted thereon. (Ord. No. 10303, § 1, 7-23-87; Ord. No. 11148, § 3, 5-5-94; Code 1980, § 31-10; Ord. No. 12499, § 2, 2-26-04; Ord. No. 12683, § 2, 5-12-05; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13745, § 2, 2-22-18)

State law references—Fictitious name, F.S. § 205.023; prerequisites for issuance, F.S. § 205.194 et seq.

Sec. 31-36. Application notarization required.

Where the application is made for the following BTR local business tax receipts, the signature

of the applicant shall be notarized: nonmotorized vehicles for hire, bankruptcy and closing-out-sales and automobile or vehicle towing from private property.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-11; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

Sec. 31-37. Duration.

No BTR under this article shall be issued for more than one year. The city manager or designee shall not issue a BTR to any individual, partnership, or other incorporated or unincorporated business entity whose local BTR for a specified business activity at a particular location has been suspended during such period nor to any individual, partnership, or other incorporated or unincorporated business entity whose BTR for a specified business activity at a particular location has been revoked until the expiration of such revocation imposed under the provisions of this article.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-12; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13745, § 2, 2-22-18)

Sec. 31-38. Due date and proration of BTR.

(a) Except as otherwise provided, BTR under this article shall be due and payable on September 30 of each year. If September 30 falls on a weekend or holiday, it shall be due on or before the first working day following September 30.

(b) Unless otherwise provided, for each local business tax receipt obtained between October 1 and the succeeding March 31, the full tax for one year shall be paid. For each license obtained between April 1, and the succeeding September 30, one-half the full tax for one year shall be paid.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, §§ 31-13, 31-14; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

Editor's note—Ord. No. 13106, § 2, adopted Oct. 8, 2009, changed the title of § 31-38 from "Due date and proration of local business tax receipt" to "Due date and proration of BTR" The historical notation has been preserved for reference purposes.

State law reference—Authority, F.S. § 205.053(1).

Sec. 31-39. Penalty, late payment of local business tax or original local business tax receipt.

(a) BTR that are not renewed when due and payable are delinquent and subject to a delinquency penalty of ten percent for the month of October, plus an additional five percent penalty for each subsequent month of delinquency until paid. However, the total delinquency penalty may not exceed 25 percent of the BTR for the delinquent establishment.

(b) Any person engaging in, managing, or operating any business, profession, or occupation without first obtaining a BTR shall be subject to a penalty of 25 percent of the amount due, in addition to the penalty provided by section 31-26 herein, and in addition to any penalty provided by law or ordinance.

(c) Any person who engages in any business, occupation, or profession covered by this article, who does not pay the required BTR within 150 days after the initial notice of tax due, and who does not obtain the required BTR is subject to civil actions and penalties, including court costs, reasonable attorneys' fees, additional administrative costs incurred as a result of collection efforts, and a penalty of up to $250.00.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-15; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

Editor's note—Ord. No. 12885, § 1, adopted February 8, 2007, changed the title of § 31-39 from "Penalty, late payment of occupational license tax or original license" to "Penalty, late payment of local business tax or original local business tax receipt." The historical notation has been preserved for reference purposes.

State law reference—Similar provisions, F.S. § 205.053.

Sec. 31-40. Renewal of BTR.

(a) BTR renewals shall be due and payable and expire on September 30. Those BTR not renewed by September 30 shall be considered delinquent and subject to a delinquency penalty as provided in subsection 31-39(a).

(b) The city manager or designee is authorized to renew BTR upon receipt of a substantially completed renewal application form, certificate of use issued by the office of zoning; with or

without the applicant's signature, provided that payment of the necessary BTR accompanies the renewal form.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-16; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13745, § 2, 2-22-18)

Editor's note—Ord. No. 13106, § 2, adopted Oct. 8, 2009, changed the title of § 31-40 from "Renewal of local business tax receipt" to "Renewal of BTR." The historical notation has been preserved for reference purposes.

Sec. 31-41. Grounds for nonrenewal.

The following constitute adequate grounds for the city manager or designee to deny renewal of a BTR:

(1) The BTR holder has an unpaid balance for the previous year's or years' BTR;

(2) The BTR holder has materially misrepresented or failed to include the information required by this article to be included in the BTR application form;

(3) The BTR holder subsequent to being issued a has been convicted of, or has pled guilty to, a violation of a law of this state, or ordinance of the county or ordinance of the city, which violation occurred as a part of the main business activity approved and not merely incident thereto;

(4) The BTR holder is conducting business from premises which do not possess a valid and current certificate of occupancy issued by the planning, building and zoning department;

(5) The BTR holder is conducting business from premises which do not possess a valid and current certificate of use issued by the office of zoning;

(6) The BTR holder is conducting business from the proposed premises and is not in compliance with a zoning ordinance or other city ordinance.

(7) The BTR holder has obtained a permit, certificate or BTR, including a BTR issued pursuant to this article, by misleading, and/or deceptive information or making false statements that were relied upon by the city or an employee operating in an official capacity in issuing the above-mentioned permit(s), certificate(s) or BTR(s); or

(8) There is a pending judgment, order, injunction or decree entered by a court or tribunal of competent jurisdiction against said from engaging in the activity for which he/she seeks a BTR renewal.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-17; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13745, § 2, 2-22-18)

Sec. 31-42. Refunds.

(a) The city manager or designee is hereby authorized and empowered to refund any money paid for a BTR under this article only when an overpayment is found to exist or there has been payment for a BTR.

(b) All requests for refunds must be in writing and may be granted upon presentation of the original BTR in question when applicable and documenting evidence supporting the request for refund as may be required by the city manager or designee.

(c) All refunds applied for pursuant to this section may be requested within one year from the date the original BTR became due and shall be barred if not so presented.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-18; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13745, § 2, 2-22-18)

Sec. 31-43. Transferability.

(a) Upon payment of a transfer fee up to ten percent of the annual BTR but less than $3.00 or not more than $25.00, all BTRs issued by the city shall be transferable with the approval of the city manager or designee, except as otherwise prohibited by this chapter, when there is a bona fide sale and transfer of the property used and employed in the business as stock in trade, and not otherwise; provided that the seller of the business shall present the local BTR to the city manager or designee with an endorsement assigning all right, title and interest to the purchaser, and the purchaser shall produce a properly

executed bill of sale showing the transfer of stock from the person licensed to the purchaser. Upon payment of a transfer fee of up to ten percent of the annual licensed tax, but not less than $3.00 or not more than $25.00, BTR may be transferred from one location to another, provided that a written request for such transfer and the BTR to be transferred shall first be presented to the city manager or designee for approval of such transfer along with a current and valid certificate of use for the complying activity at the new location.

(b) This section shall not apply to cabaret and nightclub BTRs, and such BTRs shall be issued as new or original BTR upon a change of complyee, without requiring payment of new BTR taxes.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-19; Ord. No. 11287, § 2, 7-13-95; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13745, § 2, 2-22-18)

State law reference—Authority, F.S. § 205.043(2), (3).

Sec. 31-44. Replacing lost or destroyed BTR.

For the purpose of replacing any mutilated, destroyed or lost BTR granted by the city, the city manager or designee is hereby authorized to issue an appropriate duplicate BTR upon the submittal of evidence satisfactory to the director that the original BTR was mutilated, destroyed or lost and upon the payment to the city by the holder of the sum of $1.00 for each such duplicate BTR issued.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-20; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13745, § 2, 2-22-18)

Editor's note—Ord. No. 13106, § 2, adopted Oct. 8, 2009, changed the title of § 31-44 from "Replacing lost or destroyed local business tax receipts" to "Replacing lost or destroyed BTR." The historical notation has been preserved for reference purposes.

Sec. 31-45. Authority to request proof of inventory; inspection; estimates.

(a) The city manager or designee, including BTR inspectors, is hereby allowed to request from a BTR holder or applicant proof of his/her inventory, including an affidavit or notarized statement from the BTR holder or applicant of the value of his/her inventory, for purposes of compliance by the BTR holder or applicant, as applicable, with this article.

(b) The city manager or designee, including BTR inspectors, is authorized to inspect the business premises and business books and records of a BTR holder or applicant in the event they determine, in their reasonable discretion, that they need to estimate the amount of inventory or determine its value for purposes of compliance with this article and to determine the type of business being conducted.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, §§ 31-21, 31-22; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13745, § 2, 2-22-18)

Sec. 31-46. Reciprocity between cities as to merchants and business firms located in the state.

(a) The provisions of this article and other BTR regulations of this city shall not apply to or operate against merchants and business firms located and complying to do business in other cities, villages and towns of this state and distributing goods and merchandise in the city, provided that such merchants and business firms shall have complied with the provisions of the laws or ordinances imposing BTR in the city, village or town in which same are located, and provided, further, that the provisions of this section shall be operative as to such merchants and business firms located and complying in other cities, villages and towns of this state only to the extent that, under the laws and ordinances of such other cities, villages and towns, like exemptions and privileges are granted to merchants and business firms located and complying in and by the city.

(b) Such exemption shall not apply to street or sidewalk vendors or to other businesses, professions or occupations not having an established place of business in any city, village or town in this state.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-23; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

Editor's note—Ord. No. 13106, § 2, adopted Oct. 8, 2009, repealed former § 31-46 which pertained to food establishments and derived from § 18-33 of the 1967 Code; § 20-48 of the 1980 Code; and Ord. No. 12885, § 1, adopted Feb. 8, 2007. Further, said ordinance renumbered §§ 31-47—31-49 as §§ 31-46—31-48 as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Sec. 31-47. Compliance with article required; effect of BTR obtained.

No BTR shall be granted until there has been full compliance with the applicable provisions of this article, and no BTR receipt granted without full compliance shall be a protection to the applicant in any civil, criminal or administrative proceeding.

(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-24; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09)

Editor's note—Ord. No. 13106, § 2, adopted Oct. 8, 2009, changed the title of § 31-47 from "Reciprocity between cities as to merchants and business firms located in the state" to "Compliance with article required; effect of BTR obtained." The historical notation has been preserved for reference purposes. See also the editor's note to § 31-46.

Sec. 31-48. Revocation; suspension.

(a) The city manager or designee shall deny the application for a BTR, or revoke the BTR of any individual, partnership, or other incorporated or unincorporated business entity holding a BTR under this article where it is determined by the city manager or designee that:

(1) The BTR holder and/or owner of the property has materially misrepresented or failed to include the information required by this article to be included in the BTR application form;

(2) The BTR holder and/or owner of the property, subsequent to being issued a BTR, has been convicted of or has pled guilty to a violation of a law of this state, or ordinance of the county or ordinance of the city, which violation occurred as a part of the main business activity of the BTR holder and/or owner of the property and not merely incident thereto;

(3) The BTR holder and/or owner of the property is conducting business from premises which do not possess a valid and current certificate of occupancy issued by the department of planning, building and zoning;

(4) The BTR holder and/or owner of the property is conducting business from premises which do not possess a valid and current certificate of use issued by the department of planning, building and zoning;

(5) The BTR holder and/or owner of the property is conducting business from the proposed premises and is not in compliance with a zoning ordinance or other city ordinance;

(6) Conduct is occurring at the premises, which conduct constitutes a breach of the peace by threatening the safety and welfare of the patrons at said premises or the general public and which conduct is recurring;

(7) The BTR holder and/or owner of the property has obtained a permit, certificate or BTR for the premises, including a BTR issued pursuant to this article, by misleading and/or deceptive information or making false statements that were relied upon by the city or an employee operating in an official capacity in issuing the above-mentioned permit(s), certificate(s), or BTR; or

(8) The BTR holder and/or owner of the property, subsequent to being issued a BTR, has had a permanent injunction in the form of an order and final judgment entered against said BTR holder and/or owner of the property enjoining restraining or preventing the BTR holder and/or owner of the property from exhibiting, showing, selling, lending, or transmitting any motion picture film(s), book(s), magazine(s), videotape(s) or other material that has been found to be obscene, lewd, lascivious, filthy or indecent pursuant to F.S. ch. 847, or construed, after said material(s) has undergone an adversary judicial hearing as required by law.

(b) (1) Upon issuance of a code enforcement citation alleging a violation affecting the health and safety of the community, the code compliance director shall notify in writing the city manager or designee of any violation of the enumerated grounds for revocation of a BTR contained in the ordinance from which this section derives. Upon said notification, the city manager or designee shall schedule an appellate hearing for the BTR holder and/or owner of the property within ten days of the date of such notification to the city manager or designee. The city manager or designee shall notify in writing, at least five days in advance of the appellate hearing, the BTR holder and owner of the property of the date, time and place of said appellate hearing and the specific charges that have caused the said revocation notice to be sent. Said revocation notice and notice of appellate hearing shall be sent to the BTR holder and owner of the property by registered mail, return receipt requested, to the property owner's address and the business address listed on the BTR, or said revocation notice and notice of appellate hearing may be perfected upon any employee of said business by any city police officer, BTR inspector or authorized process server at the business address listed on the BTR. At said appellate hearing, the BTR holder and/or owner of the property shall be given the opportunity to be represented by an attorney, to make a record of the hearing by the use of a court reporter, to call witnesses, to present documentary evidence, and to otherwise properly prove their appeal as to why the BTR should not remain in a revoked status.

(2) Upon the receipt of the registered mail notice of the appellate hearing as described in subsection (b)(1) to the BTR holder (or upon perfecting notice upon any employee of the BTR holder's business) and owner of the property, the BTR shall be considered revoked or suspended as designated in the notice from the city manager or designee.

(c) A revocation under this section shall extend for the BTR duration of the period, at which time a new application must be submitted. Said revocation shall begin to run from the date the revocation notice was sent by the city manager or designee.

(d) All appellate revocation hearings shall be conducted in the following manner before a special master:

(1) The proceedings shall be as informal as is compatible with the essential requirements of the law.

(2) The admission of evidence shall be governed by the special master. Evidence is to be admitted at the discretion of the special master consistent with generally accepted legal principles governing the admission of evidence in administrative proceedings.

(3) The BTR holder and/or owner of the property may be represented by counsel; the city may be represented by the city attorney or other counsel retained at the discretion of the city attorney.

(4) The burden of proof being on the BTR holder and/or owner of the property, the order of presentation of evidence shall be as follows:

a. The parties shall be entitled to present oral argument at the opening and at the closing of the hearing.

b. The BTR holder and/or owner of the property, as appellant, has the burden of proof and shall produce such evidence as it may wish to offer in opposition to the continued revocation of the BTR.

c. The city shall have the opportunity to present any evidence in support of maintaining the revocation of the BTR.

d. The BTR holder and/or owner of the property may offer rebuttal testimony.

(5) At the close of the hearing, the special master shall render the determination stating whether the BTR shall remain revoked or suspended or not. The decision must be based on competent substantial evidence and otherwise consistent with principles of law.

(6) Upon rendition of the determination in any appellate revocation or suspension hearing, the special master shall file the determination with the office of hearing boards and shall cause a true and correct copy of the order to be sent by regular mail to the business address listed on the BTR and the owner of the property. The order may also be served upon any employee of said business by any city police officer, BTR receipt inspector or authorized process server at the business address listed on the BTR. It may also be handed to the BTR holder and/or owner of the property at the hearing.

(e) If a BTR revocation or suspension is upheld under this section the city shall be entitled to recover its reasonable attorneys' fees and any costs of the hearing such as court reporters and transcription charges expended by the city.
(Ord. No. 10303, § 1, 7-23-87; Code 1980, § 31-25; Ord. No. 12683, § 2, 5-12-05; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13611, § 2, 6-23-16; Ord. No. 13676, § 2, 4-27-17)

Note—See the editor's note to § 31-46.

Case law references—License revocation proceeds directly from the finding that there has been a violation of city ordinances. The intent of the ordinances, read as a whole, is easily determined to be a violation by the licensee or his/her agent. Berman v. City of Miami, 17 Fla. Supp. 72; *aff'd* 127 So. 2d 683.

The city may revoke a nightclub license on a more strict basis than the state can revoke a liquor license. Sawyer v. City of Miami, 172 So. 2d 481; *cert. den'd* 177 So. 2d 476.

Revocation of the license of an adult theater for one year under paragraph (a)(8) is incompatible with the First Amendment because it imposes a prior restraint on presumptively protected expression. Gayety Theatres, Inc., v. City of Miami, 719 F.2d 1559 (1983).

Sec. 31-49. BTR enforcement.

(a) Any entity who has not strictly complied with the provisions of this chapter shall be subject to the enforcement procedures as set forth herein:

Enforcement may be made in accordance with City Code chapter 2, article X, Code enforcement and any other remedies as provided by law, including but not limited to, an action in the circuit court.

(b) Obstructing a revenue collections inspector in the performance of duties.

(1) Whoever opposes, obstructs, or resists the BTR inspector or other person authorized by the city manager or designee, in the discharge of his or her duty, as provided in this section, shall be guilty of a violation of this chapter, and, upon conviction thereof, shall be punished as provided in section 1-13.

(2) BTR inspectors may notify the city police department immediately when in their judgment they feel threatened.

(c) In addition to any other remedies provided by this chapter or any other city ordinance, the city manager or designee shall have judicial remedies available for violations of this chapter or any other lawful rule or regulation promulgated hereunder as enumerated below but not limited to:

(1) Institution of a civil action in a court of competent jurisdiction to establish liability and to recover damages for any costs incurred by the city in conjunction with the abatement of any condition prohibited by the provisions of this chapter.

(2) Institution of a civil action in a court of competent jurisdiction to seek injunctive relief to enforce compliance with the terms of this chapter or any rule or regulation promulgated hereunder, to enjoin and prohibit said violation or to compel the performance of actions which will result in compliance with the terms of this chapter.

(d) These remedies are cumulative and the use of any appropriate remedy shall not constitute an election of remedies by the city manager or designee. The use of one remedy shall not preclude the use of any others.

(Ord. No. 13106, § 2, 10-8-09; Ord. No. 13611, § 2, 6-23-16; Ord. No. 13745, § 2, 2-22-18)

See the editor's note to § 31-46.

Sec. 31-50. Schedule of established BTRs.

The assessments of BTRs are hereby fixed as follows:

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
0010	*Abstract and/or title company.* Requires License from the Florida Department of Financial Services if selling insurance.	236.00
0040	*Accountant, certified public (CPA).* Requires License from DBPR.	116.00
0030	*Accounting and/or bookkeeping service.* Does not apply to BTR Codes: "0040" and "0020."	116.00
0020	*Accounting professional association (PA), corporation (Corp) or firm.*	116.00
0050	*Acupuncturist.* Requires License from DOH.	116.00
0060	*Addressing, mailing, and sorting services.*	99.00
0070	*Administrative office.* When sole functions are administrative in nature and not applicable to any other BTR category.	131.00
0080	*Adult care facility.* License from AHCA is required.	99.00
0090	*Adult congregate living facility.* License from AHCA is required.	99.00
0100	*Advertising agency or trade inducement company.* Each company or individual as provided.	667.00
0110	*Advertising, aircraft (per aircraft).*	120.00
0160	*Advertising, outdoors:*	
	Not exceeding 50 displays.	236.00
	More than 50 displays, each display thereafter.	2.00
0120	*Advertising, street.* Each person advertising on the streets with banners, floats or by other means: Where no vehicle is used.	120.00
0130	*Advertising, street.* Each person advertising on the streets with banners, floats or by other means: Where vehicle is used, each vehicle.	120.00
0140	*Advertising, street.* Each person advertising on the streets with banners, floats or by other means: Contracting advertising in/or on buses and other motor vehicles.	120.00
0150	*Advertising, street.* Each person advertising on the streets with banners, floats or by other means: distributing circulars, pamphlets and other advertising matter (not to apply to merchants in compliance, advertising their own goods and merchandise).	120.00
0170	*Advertising, theater screens.* Per screen on which advertising is shown.	120.00
0180	*Aircraft brokers or dealers.*	120.00
1820	*Air guns dealers.* A separate BTR is not required of dealers who have a firearms ammunition dealer's BTR. Requires Federal License from Department of Alcohol, Tobacco and Fire Arms for Firearms.	296.00
0190	*Ambulance service or business.* Not operating as an undertaker, operating ambulances as follows:	
	Not exceeding one ambulance.	42.00
	For each additional ambulance.	27.00
0210	*Amusement park.*	1,332.00
0220	*Answering service.*	120.00
0230	*Apartment houses.* An apartment house BTR does not permit a public dining room without a restaurant BTR. Requires license from DBPR for five or more units. Tax based on number of rooms, not including: bathrooms, kitchen or closets. An apartment house is defined as three or more dwelling under same roof units:	
	Up to ten rooms.	27.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
	More than ten rooms, for each additional room.	2.00
0240	*Appraiser.* Other than for real property.	116.00
0250	*Architect.*	116.00
2330	*Architect, landscape.*	116.00
0260	*Architectural firm, partnership, PA or Corp.*	116.00
0270	*Armored car service.*	99.00
0280	*Artist, all types.* Commercial, graphic, or noncommercial, each.	116.00
0290	*Art galleries.* When only displaying. If selling; and not incidental, as outlined in the Certificate of Use issued by the City of Miami Zoning Department, a Merchant Retail BTR is required.	99.00
0310	*Attorney who is not a PA or Corp.* Requires membership in Florida BAR. BTR is not prorated.	116.00
0300	*Attorney; Firm, PA, Corp. or Partnership.* BTR is not prorated.	116.00
0350	*Auction business.* Requires license from DBPR.	1,826.00
0360	*Auctioneer.* Requires license from DBPR.	667.00
0370	*Auctioneer, apprentice.* Apprentice means any person who is being trained as an Auctioneer by a State of Florida licensed Auctioneer. Requires License from DBPR.	667.00
0380	*Auction:* in addition, for each day or fraction thereof, at each location where an auction is held of goods, wares, merchandise, or real estate vehicles.	45.00
0390	*Audio visual production services.*	120.00
0395	*Automated teller machines (ATM).* Not required if in same location or building structure as Banking Institution, that is owner thereof.	99.00
0400	*Automobile, new motorized vehicles dealers.* Dealers, agencies or persons engaged in the sale of automobiles, trucks or tractors or other motor driven vehicles may be permitted to deal in secondhand vehicles taken in exchange on sales of new vehicles without securing a Secondhand Dealers BTR; provided that the entire operation is conducted from one location. Requires License from (DMV). A BTR is required for each location as follows:	
	First location.	525.00
	Each location thereafter.	215.00
0410	*Automobile, auctioneer.* Requires License from DBPR.	220.00
0490	*Automobile battery and charging station.* Alone or in connection with any other business. Requires Registration from the Florida Department of Agriculture for new and renewal BTR.	44.00
0420	*Automobile body shop.* Requires Registration from the Florida Department of Agriculture for new and renewal BTR. Employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15 persons.	400.00
0430	*Automobile/car wash, by hand.* Alone or in connection with any other business. Employing persons, including owners and operators:	
	Not exceeding two persons.	27.00
	More than two, not exceeding five persons.	42.00
	More than five persons.	68.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
0440	*Automobile/car wash, by machine or power tools.* Alone or in connection with any other business. Where one or more power machines are used. Employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten persons, not exceeding 15 persons.	267.00
	More than 15 persons.	400.00
0445	*Automobile car wash—Mobile.* Alone or in connection with any other business.	99.00
0500	*Automobile driving school.* Requires license from DMV.	99.00
0595	*Automobile immobilization.* As regulated in Chapter 42 of City Code.	116.00
0460	*Automobile mechanical repairs.* Alone or in connection with any other business. Requires registration from the Florida Department of Agriculture for new and renewal BTR. Employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15 persons.	400.00
0470	*Automobile mobile repair units.* Requires Registration from the Florida Department of Agriculture for new and renewal BTR. Each person engaged in or operating mobile repair units, for each truck so operated and within the corporate limits of the city.	220.00
0450	*Automobile paint shop.* Alone or in connection with another business. Requires registration from the Florida Department of Agriculture for new and renewal BTR. Employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15 persons.	400.00
0530	*Auto/motorized vehicle rental and leasing.* Each location.	195.00
0480	*Automobile service station.* Alone or in connection with any other business:	
	Not exceeding four gasoline metered nozzles.	68.00
	For each additional gasoline metered nozzle.	16.00
0520	*Automobile parking garage or parking space.* Per space.	2.00
0540	*Automobile storage garage.* For storing, cleaning, and/or caring for motor driven vehicles or equipment:	
	Not exceeding 25 cars.	42.00
	More than 25, not exceeding 50 cars.	68.00
	More than 50 cars.	135.00
0550	*Automobile storage or parking lot.*	
	For each storage or parking place where the areas do not exceed 10,000 square feet.	64.00
	For each additional 5,000 square feet or a fractional are thereof.	33.00
0560	*Auto tag and tax collection agency.* Alone or in connection with any other business.	215.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
0570	*Automobile tire.* Recapping, vulcanizing, rethreading, or repairing shop. Requires registration from the Florida Department of Agriculture for new and renewal BTR.	99.00
0580	*Automobile towing.*	116.00
0590	*Automobile towing from private property.* As regulated in Chapter 42 of this Code.	116.00
0610	*Automobile valet parking service.* Alone or in connection with any other business.	99.00
0620	*Automobile vehicle wrecking company.*	99.00
3640	*Baggage or transfer companies.* With no established place of business in the city. Requires registration from the Florida Department of Agriculture for new and renewal BTR for a moving company.	215.00
1000	*Bail bondsmen, professional bondsmen, or surety bondsmen, each type.* Requires State of Florida License from the Department of Financial Services.	99.00
0640	*Bakery, retail selling without delivery service, each retail place of business.* If consumption of food on premises, a Registration from the Department of Agriculture is required.	44.00
0650	*Bakery, retail selling with delivery service, each retail place of business.* If consumption of food on premises, a registration from the Department of Agriculture is required. For the first two vehicles.	44.00
	In addition, for each delivery vehicle in excess of two.	88.00
0660	*Bakery, wholesale selling, or delivering with less than six delivery vehicles.*	68.00
0670	*Bakery, wholesale selling, or delivering with six or more delivery vehicles.*	400.00
0680	*Bakery products distributors.* Selling or distributing bakery products not manufactured within corporate limits of the city, each distributor.	480.00
0715	*Banks including domestic, foreign, international, Edge Act banks, savings and loan associations, savings company, trust company and building and loan associations.* Every person, partnership or other incorporated or unincorporated business entity, firm or corporation engaged in business as a bank, trust company, savings company, building and loan association, savings and loan association, whether as owner, agent, broker or otherwise, shall pay a BTR for each place of business. Requires copy of Charter (state or national).	727.00
0690	*Bankruptcy and closing out sales.* As regulated in Chapter 32 of this Code: Engaging in, managing or conducting at retail any sale of goods, wares, merchandise under the circumstances stated in Chapter 32 of this Code. See section 32-29 of this Code for the nonrefundable investigation fee of $25.00. Initial BTR and supplemental BTR of same term:	
	For a period not exceeding 15 days.	61.00
	For a period not exceeding 30 days.	122.00
	For a period not exceeding 60 days.	184.00
0692	*Bankruptcy.* A further tax of $2.00 per $1,000.00 of the price set forth on the inventory provided for in Chapter 32 of this Code; provided that no such BTR shall be issued for more than 60 days.	2.00
0700	*Bankruptcy.* Supplemental BTR extending time of sale as provided in section 32-31 of the City Code per day for the time during which such supplemental BTR is granted.	99.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
0710	*Bankruptcy.* As regulated in chapter 32 of this Code. Purchasing at sale under assignment for benefit of creditors or for trustee in bankruptcy and advertising as bankrupt or distressed stock in resale, for each and every day during the continuance of the sale.	293.00
0750	*Barber or beauty school.* Requires license from DBPR.	210.00
0740	*Barbers/cosmetologists assistants.* Requires license from DBPR.	13.00
0720	*Barbers, hair stylists, hair designers.* Requires license from DBPR.	13.00
0780	*Barbershops, hair styling studios and hair styling salons.* Requires license from DBPR.	
	First chair.	20.00
	Each additional chair (whether operated or not).	15.00
0790	*Beauty parlors, hair styling studios and hair styling salons.* Requires license from DBPR. For beauty parlor or barber chairs set up in such place of business (whether operated or not):	
	First chair.	20.00
	Each additional chair (whether operated or not).	15.00
0794	*Beauty parlor, each manicuring or pedicuring table.*	14.00
0792	*Beauty parlor, each permanent wave machine.*	14.00
0796	*Beauty parlor, each waxing or acrylic nail machine or table.*	14.00
0800	*Bicycle repair and rental.* Alone or in connection with any other business.	120.00
0810	*Billiard, pool or bagatelle tables.*	42.00
0820	*Bingo or guest games.*	58.00
0830	*Blueprinting map and plot makers.* Requires license form the DBPR for map maker.	99.00
0840	*Boarding houses.* BTR based on number of rooms not including: bathrooms, kitchen and closets. Requires license from DBPR if five or more rooms. A boardinghouse BTR permits the serving of meals.	
	Not exceeding ten rooms.	42.00
	More than ten rooms, for each additional room.	2.00
0880	*Boat, brokers; ships yachts.* Requires license from DBPR.	215.00
0890	*Boat, charter fishing* (as reg. in section 50-301 et seq. of this Code). Each boat.	30.00
0900	*Boat, designers and builders, not operating as a boat and ship yard.*	120.00
0910	*Boat, excursion, sight seeing, and deep sea fishing (as regulated in section 50-301 et seq. of this Code).* Each boat.	30.00
0920	*Boat, ferry and sightseeing.* Owners, operators or managers of boats used wholly or in part as ferry or sight seeing boats, each host with passenger capacity as follows:	
	Not exceeding ten passengers.	27.00
	More than ten, not exceeding 50 passengers.	42.00
	More than 50 passengers.	68.00
0970	*Boat, marine towing and lightering.* Owners, operators or managers of boats used wholly or in part for towing or lightering (permits one barge or lighter free with each towboat operating hereunder this BTR as follows), alone or in connection with any other business:	
	Not exceeding two towboats.	68.00
	More than two towboats.	135.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
0980	*Boat, marine towing and lightering.* Or each barge or lighter in excess of the number of towboats operating hereunder this BTR, or for each barge or lighter not permitted in connection with a towboat.	15.00
0850	*Boat, marine ways and dry docks.* Not licensed as a boat and ship yard, with capacity for hauling boats as follows:	
	Not exceeding three-foot draft.	42.00
	More than three, not exceeding five-foot draft.	68.00
	More than five-foot draft.	135.00
0960	*Boats, service or fuel supply.* Owners, operators or managers of boats used wholly or in part as gasoline or oil or other fuel or supply service boats, alone or in connection with any other business, each boat.	99.00
0870	*Boat and ship yard.* Having capital investment as follows:	
	Not exceeding $10,000.00.	68.00
	More than $10,000.00, not exceeding $25,000.00.	135.00
	More than $25,000.00, not exceeding $50,000.00.	200.00
	More than $50,000.00, not exceeding $100,000.00.	267.00
	More than $100,000.00.	400.00
0860	*Boat storage, basins, and sheds.* Alone or in connection with any other business, with storage space as follows:	
	Not exceeding 7,500 square feet.	68.00
	More than 7,500, not exceeding 15,000 square feet.	135.00
	More than 15,000 square feet.	267.00
0930	*Boat, party and touring.* Owners, operators or managers of boats used wholly on in part as livery, party or touring boats, each boat with accommodations as follows:	
	Not exceeding five persons.	27.00
	More than five, not exceeding ten persons.	42.00
	More than ten persons.	68.00
0950	*Boats, peddling.* Owners, operators or managers of boats used wholly or in part for peddling:	
	Not exceeding 40 feet in length.	42.00
	More than 40 feet in length.	68.00
0940	*Boats type: Canoes, rowboats and sailboats for hire, or similar business.* Alone or in connection with any other business.	
	Not exceeding ten boats.	27.00
	More than ten boats.	68.00
0990	*Bonding companies or individual bond agents.* Criminal or appeal bonds, any person or firm operating for the purpose of furnishing or writing and executing criminal bonds or appeal bonds (not to apply to bond agents furnishing insurance, who are subject to the insurance companies provisions)	320.00
1010	*Book bindery service or agent.* Alone or in connection with any other business.	99.00
1020	*Botanica.*	99.00
1030	*Botanical or zoological garden or other similar establishments.*	330.00
1040	*Bottlingworks.*	320.00
1050	*Bowling alley:*	
	One alley:	68.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
	Each additional alley:	40.00
1060	*Business opportunity broker.* Requires license from DBPR.	99.00
1070	*Butcher, wholesale.* Meat and packinghouse products, wholesale, dealing in their own products (except those covered by "Merchants," subheading, "Jobbers and distributors")	480.00
1080	*Butcher, retail.* Requires registration from the Florida Department of Agriculture. Employing meat cutters as follows:	
	Not exceeding two cutters.	27.00
	More than two, not exceeding five cutters.	68.00
	More than five cutters.	135.00
1090	*Cabarets or nightclub.* If liquor is served, a current and valid License from DBPR is required for new and renewal BTR's. In addition, a completed and notarized affidavit is required for new and renewal BTR's.	1,826.00
3190-02	*Cafe/coffee shops/sandwich shop.* Every person engaged in the business of operating a cafe/coffee shop/sandwich shop, or any other public eating place whether operated in conjunction with some other line of business or not, shall pay a BTR based on the number of people for which he/she has seats or accommodations for the service or consumption of food at any time, in accordance with the following schedule:	
	Zero to ten seats.	27.00
	More than ten seats, each seat.	2.00
	When tables and chairs are shared with the other eating establishments in a common eating area and/or do not own such tables and chairs will be assessed a BTR by dividing the number of chairs by the number of restaurants in accordance with the above schedule. Depending on the situation, either a license from the DBPR or a License from the Florida Department of Agriculture will be required.	
3190-03	*Cafeteria.* Every person engaged in the business of operating a cafeteria or other public eating place whether operated in conjunction with some other line of business or not, shall pay a BTR based on the number of people for which he/she has seats or accommodations for the service or consumption of food at any time, in accordance with the following schedule:	
	Zero to ten seats.	27.00
	More than ten seats, each seat.	2.00
	Cafeterias that share tables and chairs with the other eating establishments in a common eating area and/or do not own such tables and chairs will be assessed a BTR by dividing the number of chairs by the number of restaurants in accordance with the above schedule. Depending on the situation, either a license from the DBPR or the Florida Department of Agriculture is required.	
1100	*Calculating and statistical service.*	99.00
1110	*Carnivals, circuses street shows, exposition companies or shows or performance given in any temporary enclosure.*	
	For the first day.	366.00
	For each day thereafter.	183.00
1120	*Carnivals or circuses held in a facility owned and operated by the city where a fee has been charged for the use of the facility.*	
	For the first day.	183.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
	For each day thereafter.	88.00
1130	*Carpets, rugs, and furniture cleaning.* Cleaning, by hand or vacuum process alone or in connection with any other business.	99.00
1140	*Carpets and rugs, installation.* When not operating as a merchant retail carpet or rug dealer.	99.00
1150	*Caterer and/or catering.* Requires Registration from the Florida Department of Agriculture.	99.00
1180	*Check cashing service and currency exchange.* Alone or in connection with any other business. Requires license from the State of Florida Office of Financial Regulation. Does not apply to banks. State license is not required when check cashing is incidental to retail business and if, proceeds from check cashing operation do not exceed five percent of total gross income from retail sales of goods and services.	99.00
1170	*Chemist.*	116.00
1190	*Chiropractic physician.* Requires license from DOH.	116.00
1200	*Cigars and tobacco products retail dealers.* Alone or in connection with any other business (except drugstores), carrying stocks as follows:	
	Not more than $100.00.	40.00
	More than $100.00, not more than $250.00.	75.00
	More than $250.00, not more than $500.00.	185.00
	More than $500.00.	367.00
1210	*Cigars and tobacco products manufacturer.* Employing persons, including owners and workmen:	
	Not exceeding five persons.	27.00
	More than five, not exceeding 15 persons.	68.00
	More than 15, not exceeding 25 persons.	94.00
	More than 25 persons.	135.00
1220	*Circus parades.*	99.00
1230	*Clinical social worker.* Requires license from DOH.	116.00
1240	*Clothing, alterations.* Alone or in connection with any other business.	99.00
1250	*Clothing, custom tailor, retail.* Requires merchant retail BTR for sale of stock not manufactured on the premises.	68.00
1330	*Coin operated; amusement machine.* As regulated in chapter 12 of this Code. Requires yearly submission of city affidavit and list of location(s).	
	First machine.	183.00
	Each additional machine up to nine machines.	34.00
1480	*Coin operated; beverage machine, dispensing.* As regulated in chapter 12 of this Code.	23.00
1370	*Coin operated; car wash.* As regulated in chapter 12 of this Code. Alone or in connection with any other business.	99.00
1430	*Coin operated; laundry equipment.* As regulated in chapter 12 of this Code. Includes washers, dryers, pressing, ironing and dispensing machines. First machine.	69.00
	Each additional machine.	1.00
1460	*Coin operated; merchandise vending machine.* As regulated in chapter 12 of this Code. Each machine.	15.00
1340	*Coin operated; mechanical rides of all types, non-operator.* As regulated in chapter 12 of this Code.	

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
	First machine.	183.00
	Each additional machine up to 13.	34.00
1350	*Coin operated; mechanical rides of all types, operator.* As regulated in chapter 12 of this Code.	458.00
1380	*Coin operated; music machine, non-operator.* As regulated in chapter 12 of this Code.	
	First machine.	183.00
	Each additional machine up to 13 machines.	22.00
1390	*Coin operated; music machine, operator.* As regulated in chapter 12 of this Code.	458.00
1360	*Coin operated; photographing, photocopying, and laminating machines.* As regulated in chapter 12 of this Code.	27.00
1470	*Coin operated; penny in the slot (one cent to 25 cents).* As regulated in chapter 12 of this Code. Vending merchandise only, mechanically (operated), each machine.	2.00
1450	*Coin operated; service machine, other.* As regulated in chapter 12 of this Code. Any other service machine not specifically mentioned.	27.00
1440	*Coin operated; weighing machine.* As regulated in chapter 12 of this Code. The person securing such BTR owns and operates:	
	More than one, and not exceeding five machines, each machine.	15.00
	More than five, and not exceeding 50 machines.	400.00
	More than 50, and not exceeding 100 machines.	533.00
	More than 150, each machine.	2.00
1490	*Cold storage or food locker rental.* Renting cold storage space to the public.	99.00
1500	*Collection agency.* Alone or in connection with any business. Engaged in collecting claims and accounts, collecting rents and not operating as a real estate agency. Each agency.	99.00
1510	*Community based residential facility.* License from AHCA is required. Covers drug rehabilitation, elderly and halfway houses.	99.00
1520	*Computer or data processing service.*	99.00
1530	*Consultant business or professional of a not specifically mentioned herein, State of Florida licensed professional.*	116.00
1720	*Copy/duplicating service.* Alone or in connection with any other business.	99.00
0730	*Cosmetologists.* Requires license from DBPR.	13.00
1540	*Court reporter or public stenographer.* BTR required when office is located in the city and/or when an individual is registered with an agency located in the city; BTR required for each person registered with agency.	116.00
1550	*Credit bureau.* Alone or in connection with any other business.	
	Not exceeding five persons, each agency.	68.00
	More than five persons, each agency.	135.00
1560	*Customhouse brokers.*	99.00
1570	*Dancehalls and ballrooms.*	320.00
1580	*Dance studio.* Teaching students under 18 years old. Requires registration from the Florida Department of Agriculture for new and renewal BTR.	68.00
1590	*Dance studio.* Teaching students over 18 years old. Requires registration from the Florida Department of Agriculture for new and renewal BTR.	183.00
3550	*Data exchange service.* Includes computer exchange service.	606.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
1600	*Delicatessen.* Alone or in connection with any other business. If stock carried exceeds $200.00 in value, a merchant retail BTR is required. Requires State of Florida registration from the Department of Agriculture.	99.00
1610	*Dental hygienist.* Requires license from DOH.	116.00
1620	*Dental laboratory.* Requires license from DOH.	116.00
1630	*Dentist.* Requires license from DOH.	116.00
1640	*Dietician.* Requires license from DOH.	116.00
1660	*Disc jockey.*	99.00
1670	*Display room for hire.*	120.00
1680	*Dog or small animal exhibit.*	296.00
1700	*Draft artist.* Alone or in connection with any other business.	116.00
1690	*Dramatic or theatrical troupes or companies.*	99.00
1710	*Drugstore retail dealer.* State license required from DOH. Includes the right to sell ice cream and cigars and tobacco without an additional BTR.	
	Not exceeding $1,000.00.	55.00
	For each additional $1,000.00 or fractional part thereof.	6.00
1750	*Editors.*	296.00
1730	*Electric light and power companies.* Alone or in connection with any other business.	2,324.00
1755	*Electrolysis.* Includes removal, replacement, and weaving of hair. Requires license from DOH.	99.00
1940	*Embalmers.* State license required from the DBPR.	116.00
1740	*Employment agencies.* Each location. Requires license from DBPR.	215.00
1765	*Engineer, professional, as per state.* Operating in any capacity thereof.	116.00
1760	*Entertainers, professional.* Includes actors, actresses, bands, musicians, vocalists, and similar professions and companies.	99.00
1770	*Exhibitors.* General exhibitor is hereby defined as any individual, partnership, or other incorporated or unincorporated business entity, or promoter using public facilities for the purpose of exhibiting or displaying products for sale or to take orders to sell their products. The exhibitor's BTR shall be charged for each day of operation of the event, display or exhibition. One BTR may be issued to cover more than one day of operation, with the BTR terminating on the last day of such event, display or exhibition. Per day.	87.00
1780	*Fashion designer.*	116.00
1790	*Film development service.* Alone or in connection with another business.	99.00
1800	*Finance company or loan agent.* Requires State of Florida license from Department of Financial Services.	480.00
1810	*Firearms and ammunition dealer.* Requires federal license from Department of Alcohol, Tobacco and Fire Arms. Includes ammunition, pistols, rifles, shotguns and other firearms and weapons.	296.00
1830	*Fire extinguisher service.*	99.00
1840	*Fish market, retail.* Requires State of Florida registration from Department of Agriculture.	99.00
1850	*Fish commission merchant or wholesale dealer.* Packers or shippers. See "Packers and shippers."	236.00
1860	*Flea market, on private property.* In addition to "operator," a separate BTR is required for individual vendors.	
	One day.	183.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
	Two—20 days, each day.	92.00
	21—40 days, each day.	46.00
	For each day thereafter.	23.00
1870	*Flea market, when held in a facility owned and operated by the city where a fee has been charged for the use of the facility and does not apply to individual vendors that require a separate BTR:*	
	One day.	183.00
	Two—20 days, each day.	92.00
	21—40 days, each day.	46.00
	For each day thereafter.	23.00
1880	*Florists.*	62.00
1890	*Flowers, cut.* Applies to wholesale flower dealers only.	99.00
1900	*Fortunetellers, astrologists, card readers, character readers, spiritualists, clairvoyants, crystal gazers, graphologists, hypnotists, palmists, phrenologists, and every person engaged in a similar occupation.* Requires an active BTR from Miami-Dade County within the previous two years for each person. Each person.	891.00
3200	*Food, retail (not a restaurant).* Such as sandwiches, peanut butter crackers, potato chips, hard boiled eggs. etc. Requires registration from the Florida Department of Agriculture. When sold or served in any place other than in a dining room, cafe, cafeteria or restaurant, as defined by city zoning ordinance, with seating capacity:	
	Not to exceed ten seats.	27.00
	For each additional seat over ten.	2.00
1910	*Franchise broker and/or dealer.* Selling or leasing of business franchise. Requires license from DBPR.	99.00
1920	*Freight forwarding and claims bureau.* Alone or in connection with any other business. Engaged in furnishing shipping information, acting or agent for freight and cargo shipments and collecting transportation claims.	99.00
1930	*Funeral home and/or funeral director.* Also covers crematories and direct disposal establishments. Requires license from the DBPR for the director and the firm. A separate BTR is required for embalmers.	296.00
1950	*Game room.* Additionally, each coin-operated machine requires its own BTR sticker.	99.00
1960	*Gas company.* Alone or in connection with any other business. Covers liquefied, natural or manufactured gas at retail or wholesale.	2,324.00
1970	*Golf driving range or course.*	99.00
1980	*Grocery, retail.* Requires license from the Florida Department of Agriculture. When the average value of stocks of goods carried is as follows:	
	Not exceeding $1,000.00.	27.00
	Each additional $1,000.00 or fraction thereof.	6.00
2000	*Gun ranges, target cabinet or similar facilities.* Alone or in connection with any other business.	236.00
2010	*Gymnasium only.* Not a health club or studio. Additional BTR required for masseur or masseuse when permitted by city ordinance. If membership-type gym, registration with the State of Florida Department of Agriculture is required for new and renewal BTR.	99.00
2020	*Halls or banquet rooms for hire.* Not a dancehall.	99.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
2030	*Handwriting analyst.*	116.00
2040	*Healing art—Magnetic.*	99.00
2050	*Health studio or health club, each location.* If membership-type club; registration from the Florida Department of Agriculture is required for new and renewal BTR.	99.00
2065	*Health testing service (lab related).* Requires license from the DOH.	131.00
2060	*Hearing aid specialist.* Requires licenses from DBPR.	99.00
2070	*Helicopter service.* Each helicopter.	99.00
2075	*Home healthcare agency.* License from AHCA required.	116.00
2080	*Homeopathic or drugless physician.* Requires license from DOH.	116.00
2090	*Hospitals, sanitariums, medical centers and similar institutions privately owned and operated for a profit.* This BTR will be required when there is more than one health care professional working for the same firm. Requires license from AHCA for locations where invasive procedures are conducted.	296.00
2100	*Hotel or motel.* Requires license from DBPR. A hotel BTR does not permit a dining room without a restaurant BTR. Tax based on number of rooms, not including bathrooms, kitchens or closets, as follows:	
	Not exceeding ten rooms.	27.00
	More than ten rooms, for each additional room.	2.00
2110	*Hotel service representative.*	236.00
2120	*Hypnotherapist.* DOH license required in one of the following categories: medicine, surgery, psychiatry, dentistry, osteopathic medicine, chiropractic, naturopath, podiatry, chiropody, or optometry.	116.00
2160	*Ice cream retail.* Applies only when it is the main business activity. Requires license from the Florida Department of Agriculture.	67.00
2130	*Ice distributors.* Does not apply to ice manufacturers, who engage in the distribution or sale of ice, either by contract, commission or bonus agreement, buying ice direct for resale and using trucks or vehicles not owned by the manufacturer:	
	Not exceeding two vehicles.	27.00
	More than two, not exceeding four vehicles.	46.00
	More than four, not exceeding seven vehicles.	68.00
	Each additional vehicle.	9.00
2140	*Ice manufacturers.* Ice manufacturers are permitted to sell at wholesale or retail from their factory platforms, to distribute or deliver from vehicles owned or leased by the manufacturer. For each daily ton of capacity.	6.00
2150	*Ice, retail dealers.* Applies only when it is main business activity.	99.00
2170	*Immigration and naturalization services.* Alone or in connection with any other business including passport or visa services.	99.00
2180	*Import and export business.*	131.00
2190	*Inspection services.* Alone or in connection with any other business. State License required when activity requires State of Florida licensing.	99.00
2195	*Installation services (non contractor and non rug).*	108.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
2200	*Insurance adjusters.* Requires license from the Florida Department of Financial Services. Covers provision for insurance adjusters applies to those who hold themselves out as independent contractors, and not to an employee of licensed company whose business is limited to adjusting claims of his/her employer.	99.00
2210	*Insurance agency, general agency, or brokerage.* Requires license from the Florida Department of Financial Services.	
	One person.	68.00
	For each additional person working for the agency who is licensed by the Florida Department of Financial Services.	9.00
2220	*Insurance agent or solicitor.* Traveling, soliciting insurance of any kind. Does not apply to those working for an insurance agency, general agency or brokerage. Requires license from the Florida Department of Financial Services.	99.00
2230	*Insurance companies names or associations.* Requires license from the Florida Department of Financial Services.	483.00
2240	*Interior decorator or designer.* Interior decorator means any person who for compensation plans the arrangement of furnishings for any building. Such person may also operate as a mercantile broker without obtaining a mercantile broker license. Requires license from DBPR.	236.00
3350	*Investment banker.* Not working in capacity of securities broker.	320.00
2250	*Jai alai or pelota, per day.* Conducting frontons for exhibition, for each day such fronton is actually operated for the exhibition of jai alai or pelota under the license granted by the State Division of Pari-Mutual Wagering of the DBPR.	12.00
2260	*Janitorial services.*	108.00
2270	*Jewelers, professional or diamond cutters.*	99.00
2280	*Jewelry and watch repair.* If only hand tools are used:	
	Not exceeding two persons.	27.00
	More than two, not exceeding five persons.	42.00
	More than five persons.	68.00
2285	*Jewelry and watch repair.* If any power tools are used:	
	Not exceeding five persons.	68.00
	Not more than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15 persons.	400.00
2290	*Key duplicating machines.* Alone or in connection with any other business. Manually or power operated, which require a key from which to produce a duplicate. Not applicable to locksmiths. Each.	23.00
2300	*Laboratory.* Includes chemical, medical, optical x-ray or others. Does not include dental. See "Dental laboratory." Requires license from the AHCA. Operated entirely by hand workers, employing persons, including owners and operators:	
	Not exceeding two persons.	27.00
	More than two, not exceeding five persons.	42.00
	More than five persons.	68.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
2310	*Laboratory.* Includes chemical, medical, optical x-ray or others. Does not include dental. See "Dental laboratory." Requires license from AHCA. Operated by one or more power machines, employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15, not exceeding 25 persons.	400.00
	More than 25 persons.	533.00
2320	*Land development and sales company.*	99.00
2340	*Landscaping.* Includes designing, installation, planting and care of trees and grounds.	215.00
2350	*Land surveyor.* Requires license from DBPR.	116.00
1290	*Laundry and/or dry cleaning agency, retail, as defined by the certificate of use issued by the city's zoning department.* Where articles are received for laundry or dry cleaning and no work is done on the premises.	99.00
1270	*Laundry, plant, retail, as defined by the certificate of use issued by the city's zoning department.* Persons who perform laundry work for their own individual customers, but not for other persons or businesses shall pay in accordance with the following schedule of taxes:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15, not exceeding 25 persons.	400.00
	More than 25 persons.	533.00
1260	*Laundry and/or dry cleaning plant, wholesale, as defined by the certificate of use issued by the city's zoning department.* Persons engaged in the laundry and/or dry cleaning business who perform work for any other persons or businesses. Includes diaper, linen, towel and uniform supply service.	476.00
1280	*Laundry; dry cleaning, retail, as defined by the certificate of use issued by the city's zoning department.* Persons engaged in such business, who shall perform dry cleaning, laundering, pressing or dyeing work for their own individual customers, but not for other persons or businesses.	215.00
2360	*Lawn maintenance business.* Permits grass cutting and minor yard work.	99.00
2380	*Loan agent, loans secured by real estate.* Requires State of Florida License from the Department of Financial Services. The BTR required hereunder for making loans secured by real estate is not to apply to bankers. Each agent.	215.00
2370	*Loan agent, unsecured or personal property.* Negotiating unsecured loans or loans secured by personal property, where the personal property is not taken into possession by the lender. Where personal property is taken into possession, a secondhand dealer's BTR is required. Requires State of Florida license from the Department of Financial Services.	480.00
2390	*Locksmiths and tool grinders—By hand.* Requires registration with Miami-Dade County Consumer Services Department. Operated entirely by hand workers without power machinery, including owners and a operators:	
	Not exceeding two persons.	27.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
	More than two, not exceeding five persons.	42.00
	More than five persons.	68.00
2400	*Locksmiths and tool grinders—Power tools.* Requires registration with Miami-Dade County Consumer Services Department. Where one or more power machines are used (not to include power tool sharpeners), employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15, not exceeding 25 persons.	400.00
2410	*Lumberyard.* Merchants or dealers operating a lumberyard, alone or in connection with any other business requires a merchants retail BTR for any stock other than lumber, lath, or shingles. In the application of this BTR, where lumber, lath or shingles are accumulated in quantities for export shipment, or for any other purpose, such lumber, lath or shingles so accumulated shall be considered as stock carried by the agent for which a lumber yard BTR shall be required. The lumberyard BTR tax is based on the average stock of lumber carried as follows:	
	Not exceeding 200,000 feet, board measure.	135.00
	More than 200,000, not exceeding 500,000 feet, board measure.	267.00
	More than 500,000 feet, board measure.	400.00
0760	*Manicurist.* Requires license from DBPR.	13.00
2420	*Manufacturers—Operator by hand workers.* Each person engaged in the business of manufacturing or similar process where goods are sold at wholesale. When operated entirely by hand workers, employing persons, including owners and operators:	
	More than two persons.	27.00
	More than two, not exceeding five persons.	42.00
	More than five persons.	68.00
2430	*Manufacturers—Operator power machines.* Each person engaged in the business of manufacturing or similar process where goods are sold at wholesale. When one or more power machines (not to include power tool sharpeners) are used, employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15, not exceeding 25 persons.	400.00
	More than 25 persons.	533.00
	Where manufactured goods are sold at retail, a merchant retail BTR is also required.	
2440	*Manufacturer's representative.* Does not permit a stock of goods for which a merchants retail or wholesale BTR would be required and represents only one manufacture and/or supplier. When dealing in medical equipment, a license from AHCA is required.	215.00
2450	*Marriage and family therapist.* Requires license from DBPR.	116.00
2460	*Massage establishment or similar business or occupation.* Requires license from DBPR.	99.00
2465	*Massage therapist.* Requires license from DBPR.	99.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
2480	*Mental health counselor requires license from DBPR.*	116.00
2490	*Mercantile broker.* A mercantile broker BTR does not permit a stock of goods for which an additional BTR is required as provided herein. Broker in this classification paragraph is defined as one who buys from or represents more than one manufacturer, producer or other seller, who does not carry stock on hand, and who sells to the jobber, wholesaler, retailer or others acting as intermediary between buyer and seller for the consideration of a brokerage fee or commission from either the buyer or seller. Each person handling materials and supplies or other goods, wares or merchandise, alone or in connection with any other business provided that merchants retail or wholesale dealers paying BTR fees, totaling $100.00 or more are permitted to do a mercantile brokerage business without additional BTR. When dealing in medical equipment, a license from AHCA is required.	291.00
2500	*Merchants, retail.* (Except those businesses specifically listed.) When the average value of merchandise carried, including merchandise on consignment is as follows (for businesses that have both, retail and wholesale; the inventory amount used for both BTR, will not be a percentage there of—same inventory for both BTR's):	
	Not exceeding $1,000.00 of merchandise.	63.00
	More than $1,000.00, for each additional $1,000.00 or fractional part thereof.	6.00
2510	*Merchants, wholesale, distributors or jobbers.* Having inventory amounts as follows (for businesses that have both, retail and wholesale; the inventory amount used for both BTR, will not be a percentage there of—same inventory for both BTR's):	
	Not exceeding $10,000.00 of merchandise.	135.00
	More than $10,000.00 not exceeding $25,000.00.	200.00
	More than $25,000.00 not exceeding $50,000.00.	267.00
	More than $50,000.00 not exceeding $100,000.00.	400.00
	More than $100,000.00.	533.00
2520	*Merchants, wholesale, selling outside city limits without place of business.* Nothing herein shall be construed to affect the producer of farm and grove products where the same are being offered for sale or sold by the farmer or grower producing the products.	135.00
2530	*Milk.* Distributing, alone or in connection with any other business, utilizing delivery vehicles as follows:	
	Not exceeding two vehicles.	27.00
	More than two, not exceeding four vehicles.	55.00
	More than four vehicles.	68.00
2535	*Mortgage broker.* Requires State of Florida license from the Department of Financial Services.	116.00
2536	*Mortgage broker business.* Requires State of Florida License from the Department of Financial Services.	116.00
2540	*Motion picture or television production company.*	99.00
0510	*Motorcycle agencies and dealers.* Requires license from DMV.	99.00
2560	*Music service.* Businesses furnishing background music. Includes installation of music systems.	99.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
2570	*News dealers.* (Except drugstores.) Permitting the sale of books, magazines, periodicals and newspapers. Not permitting the sale of merchandise for which merchant retail BTR is required.	
	Not exceeding $500.00.	27.00
	More than $500.00.	68.00
2580	*News service companies.* Providing news to newspapers, television, radio stations or others.	99.00
2590	*Non-motorized vehicle for hire.* As regulated in chapter 57 of this Code.	99.00
2600	*Nurse.* Requires license from DOH.	116.00
2610	*Nursing home.* Requires license from AHCA.	99.00
2620	*Nursing home administrator.* Requires license from DBPR.	116.00
2630	*Occupational therapist.* Requires license from DOH.	116.00
2640	*Optician.* Requires license from DOH.	116.00
2650	*Optometrist.* Requires license from DOH.	116.00
2660	*Osteopathic physician.* Requires license from DOH.	116.00
3780	*Other BTR:* Every business, or exhibition, substantial, fixed or temporary, engaged in by any person whether in a building or tent, or upon the street, vacant lot or anywhere in the open air in the city, not herein specifically designated, shall pay a BTR.	99.00
2670	*Packers and shippers.* Any person taking orders for the shipment of fruit, nuts, crystal candies or dried or candied fruits, coconut lamps or any other coconut or fruit novelties.	99.00
2680	*Packers and shippers; fish, fruit, vegetables or produce.* A BTR for packers or shippers of fish. Fruit, vegetables or produce is required of persons engaged in buying, packing, selling, shipping or soliciting on consignment, shipments of fish, fruit, vegetables or produce; provided that this BTR shall not be required where packers and shippers are located in their own packinghouse, for which the packinghouse BTR fee has been paid.	99.00
2690	*Packinghouse.* When operated entirely by hand workers, employing persons, including owners and operators: Each person engaged in the business where goods are sold at wholesale.	
	Not exceeding two persons.	27.00
	More than two, not exceeding five persons.	42.00
	More than five persons.	68.00
2700	*Packinghouse.* When one or more power machines (not to include power tool sharpeners) are used employing persons, including owners and operators:	
	Not exceeding five persons	68.00
	More than five, not exceeding ten persons	135.00
	More than ten, not exceeding 15 persons	267.00
	More than 15, not exceeding 25 persons	400.00
	More than 25 persons	533.00
	Where goods are sold at retail and wholesale, a packinghouse and a merchant's retail license is required.	
3560	*Paging and beeper service.* Includes paging and beepers or any mobile radio, telephone or portable communication service. Does not apply to cellular phone company owned stores.	99.00
2720	*Paralegals.*	116.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
2730	*Paramedic.* Requires license from DOH.	116.00
2740	*Parcel deliver and/or messenger service.*	38.00
2760	*Peddlers, confection.* As regulated in chapter 39 of this Code.	58.00
2761	*Peddlers, confection stand.* Candy, ice cream, popcorn, or peanuts, on the streets. As regulated in chapter 39 of this Code.	58.00
2762	*Peddlers, confection vehicle.* As regulated in chapter 39 of this Code. Each vehicle.	99.00
2770	*Peddlers, meat or fish from motor driven or other vehicles.* Requires registration with the Florida Department of Agriculture. As regulated in chapter 39 of this Code. Each vehicle.	99.00
2780	*Peddlers, fruits, vegetables and produce.* Requires registration with the Florida Department of Agriculture. As regulated in chapter 39 of this Code. Each vehicle or stand:	99.00
2790	*Peddlers, rubber balloons.* As regulated in chapter 39 of this Code.	16.00
2800	*Peddlers on foot, merchandise.* As regulated in chapter 39 of this Code.	436.00
2810	*Peddlers by vehicle, merchandise.* As regulated in chapter 39 of this Code. Each vehicle.	473.00
2820	*Peddlers on foot, food.* As regulated in chapter 39 of this Code. Requires State of Florida license from either DBPR or Department of Agriculture.	436.00
2830	*Peddlers by vehicle, food.* As regulated in chapter 39 of this Code. Requires State of Florida license from either the DBPR or Department of Agriculture. Each vehicle.	473.00
2840	*Peddlers, wholesale.* Traveling stores or vendors of food (not to apply to peddlers or vendors otherwise provided for in the schedule, selling at retail). As regulated in chapter 39 of this Code. Each vehicle.	630.00
0770	*Pedicurist.* Requires license from DBPR.	13.00
2850	*Pest control business.* Requires registration from the Florida Department of Agriculture prior to issuance of BTR for each location also for new and renewal of BTR. License is not transferable including change of ownership, name or address.	198.00
2860	*Pet grooming or styling salon.*	99.00
2870	*Photoengravers and similar professions.*	99.00
2880	*Photographer or photo finisher.* Alone or in connection with any other business. As regulated in chapter 41 of this Code. Does not permit the selling of cameras and photographic supplies without merchant retail BTR.	99.00
2890	*Photo studios.* As regulated in chapter 41 of this Code.	99.00
2900	*Photo transient, itinerant, canvassing or soliciting.*	320.00
2910	*Physical therapist.* Requires license from DOH.	116.00
2920	*Physicians, surgeons, medical doctors.* Requires license from DOH.	116.00
2930	*Podiatrist.* Requires license from DOH.	116.00
2940	*Polygraph operator.* Requires license from the Florida Department of State.	116.00
2960	*Popcorn machines or stands.* Applies only when it is main business activity.	99.00
2970	*Printing and/or publishing company.* Employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
	More than 15, not exceeding 25 persons.	400.00
	More than 25 persons.	533.00
2980	*Private club.* Alone or in connection with any other business activity. Private club is defined as any association, partnership, firm or any other incorporated or unincorporated business entity or any kind of club which excludes the general public from its premises.	296.00
2990	*Private investigative agency.* State of Florida license required from the Department of State.	99.00
3000	*Produce commission merchant or wholesale dealer.* Produce packers and shippers. See "Packers and shippers."	215.00
3010	*Produce, retail dealer.* Requires registration from the Florida Department of Agriculture.	99.00
3020	*Professional association, firms, companies partnerships, and corporations.* This classification is separate from the classification of attorneys at law; see "Attorneys at law." Including, but not limited, professional corporations defined in F.S. § 621.03(2), as amended. A professional associations or corporations BTR shall be paid for only one location. Requires State of Florida licensed professional.	116.00
3040	*Professionals, other professions not specifically listed.* The professional license from the State of Florida must be presented before issuance.	116.00
3050	*Promoter entertainment, parades, and similar events.* Not covered elsewhere. The event requires the applicable BTR or permit.	99.00
3060	*Property management service.* Does not apply to real estate firms, brokers and/agents. License from DBPR required when applicable.	99.00
3070	*Psychologist.* Requires State of Florida License from the DOH.	116.00
2501	*Pushcart—Merchant retail.*	63.00
3080	*Racing, dog track.* Persons conducting, for each day races are conducted under license granted by the Florida State Racing Commission each day. License from DBPR required.	58.00
3090	*Racing pamphlets.* Displaying, selling or offering for sale sheets, papers or pamphlets predicting outcome of horse or dog races.	533.00
3115	*Real estate appraiser.* Requires license from DBPR.	99.00
3110	*Real estate broker.* This applies to the qualifying broker of the firm. Requires license from DBPR.	9.00
3125	*Real estate broker business.* Requires license from DBPR.	68.00
3130	*Recording studios, audio and visual.*	99.00
3140	*Rental and leasing business.* Does not apply to automobiles or real property. Personal property of all types. For automobiles see automobiles rental and leasing business. When dealing in medical equipment, a License from AHCA is required.	296.00
3150	*Repair service or machine shop.* Alone or in connection with any other business. Handworkers, operating entirely without power machinery or tools employing persons, including owners and operators:	
	Not exceeding two persons.	27.00
	More than two, not exceeding five persons.	42.00
	More than five persons.	68.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
3160	*Repair service or machine shop.* Alone or in connection with any other business. Power machines or power tools, operating one or more machines, power tool sharpeners are not included. Employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten, not exceeding 15 persons.	267.00
	More than 15, not exceeding 25 persons.	400.00
	Permitted to carry a stock of parts to be used only in making repairs in the shop. If any portion of said stock is sold in any other manner, a merchant's license is required.	
3170	*Research companies or services.*	108.00
3180	*Respiratory therapists.* Requires license from DOH.	116.00
3190-01	*Restaurants.* Every person engaged in the business of operating a restaurant whether operated in conjunction with some other line of business or not, shall pay a BTR based on the number of people for which he/she has seats or accommodations for the service or consumption of food at any time, in accordance with the following schedule Requires license from DBPR:	
	Zero to ten seats.	27.00
	More than ten seats, each seat.	2.00
	Restaurants that share tables and chairs with the other restaurants in a common eating area and/or do not own such tables and chairs will be assessed a BTR by dividing the number of chairs by the number of restaurants in accordance with the above schedule.	
3210	*Retail installment sales contracts and revolving accounts.* Alone or in connection with any other business. Requires State of Florida license from Department of Financial Services.	320.00
3220	*Rinks.* Roller skating, ice skating and similar activities.	108.00
3230	*Rooming houses.* License from the DBPR is required if five or more rooms. In determining the number of rooms in any building used as a rooming house, only bedrooms, sleeping quarters or sleeping porches are to be counted, of which two rooms may be exempt, when used by owner or operator:	
	More than two, not exceeding five rooms.	15.00
	More than five, not exceeding ten rooms.	27.00
	More than ten, for each additional room.	2.00
	Does not permit serving meals without boarding house license.	
3240	*School; private, adult, operated for profit.* This license applies where all students are 17 years of age or older. The only requirement for this license is a current certificate of use. License from any higher level governmental agency required when applicable.	99.00
3250	*School; private school or nursery, operated for profit.* Requires State of Florida license from the Department of Children and Families and license from State of Florida DOH if food is served, for new and renewal.	131.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
3260	*School; private school or nursery, nonprofit.* Requires State of Florida license from the Department of Children and Families and license from DOH, if food is served, for new and renewal BTR. A school or nursery operated by a duly established church or a nonprofit corporation duly charted under the laws of the state shall not be required to pay the usual tax for such BTR, but in lieu thereof shall a the sum of $6.00 annually.	6.00
3270	*Secondhand dealers, automobiles and other motorized vehicles.* Requires license from DMV.	320.00
3280	*Secondhand dealers, jewelry or precious metals.* This license only allows the buying, selling and trading of used jewelry and other precious metals.	320.00
3290	*Secondhand dealers, used merchandise.*	320.00
3300	*Secretarial services.*	99.00
3360	*Security guards, patrol agency or sentry.* Principal or employer. State license required from the Department of Agriculture.	
	Ten additional employees or guards.	68.00
	Each additional employee over ten.	1.00
3370	*Shoe repair shop and/or agents.* Alone or in connection with any other business.	67.00
3380	*Shoeshine stand.* Alone or in connection with any other business.	10.00
3390	*Skin care services.* Stock over $1,000.00 requires merchant's license. Requires license from DBPR.	99.00
1955	*Slot machine.* Each machine.	250.00
3400	*Small loan companies.* Requires State of Florida license from the Department of Financial Services.	480.00
3410	*Social worker.* Requires license from DBPR.	116.00
3440	*Special events:* Exhibition and sale, per day, one to 50 spaces.	58.00
3442	*Special events:* Exhibition and sale, per day, 51—100 spaces.	116.00
3444	*Special events:* Exhibition and sale, per day, over 101 spaces.	173.00
3450	*Special events.* When held in a facility owned and operated by the city where a fee has been charged for the use of the facility; These taxes are due and a able prior to the event occurring. Per day, one to 50 spaces.	30.00
3452	*Special events.* When held in a facility owned and operated by the city where a fee has been charged for the use of the facility; These taxes are due and a able prior to the event occurring. Per day, 51—100 spaces.	58.00
3454	*Special events.* When held in a facility owned and operated by the city where a fee has been charged for the use of the facility; These taxes are due and a able prior to the event occurring. Over 101 spaces.	87.00
3460	*Special events:* Concerts and other similar activities.	99.00
3470	*Sports promoter and/or professional sports organization.*	
	Up to 3,000 seats.	183.00
	From 3,000 to 5,000 seats.	457.00
	Over 5,000 seats.	881.00
3480	*Stevedores, contracting.*	67.00
3310	*Stock/securities brokers.* Alone or in connection with any other business.	420.00
3320	*Stock/security dealers.* Alone or in connection with any other business.	420.00
3500	*Storage warehouses:*	
	Not exceeding 5,000 square feet.	68.00
	More than 5,000, not exceeding 10,000 square feet.	123.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
	More than 10,000, not exceeding 15,000 square feet.	200.00
	More than 15,000, not exceeding 25,000 square feet.	267.00
	More than 25,000, not exceeding 50,000 square feet.	400.00
	More than 50,000 square feet.	533.00
3490	*Studios for teaching (not dance studios).*	99.00
3510	*Supper clubs.* If liquor is served, a current and valid License from DBPR is required for new and renewal BTR's. In addition, a completed and notarized affidavit is required for new and renewal BTR's.	1,328.00
3520	*Tax reporting permits, tax preparation.* Does not apply to BTR Codes: "0040," "0030," and "0020."	99.00
3530	*Taxidermist.* Each taxidermist.	116.00
3540	*Teacher.*	116.00
3570	*Telegraph service.* Includes telegraph, telegram or teletypewriter service.	667.00
3580	*Telephone service.*	534.00
3590	*Theater or playhouse.* All types. Includes motion picture theaters.	286.00
	In addition, per seat.	1.00
3600	*Ticket broker.* Each agent.	330.00
3610	*Ticket office.* This license applies to carriers who sell directly to the public.	99.00
3620	*Trading stamp company or redemption center.* Any person conducting.	667.00
0600	*Trailer park, recreational vehicle park, tourist park or camp.*	
	Not exceeding five spaces.	27.00
	More than five, not exceeding 15 spaces.	55.00
	More than 15, not exceeding 25 spaces.	68.00
	More than 25 spaces, for each additional space.	2.00
3630	*Transportation of freight or general hauling.*	
	Not exceeding one vehicle.	27.00
	More than one, not exceeding three vehicles.	55.00
	More than three, not exceeding five vehicles.	82.00
	More than five, not exceeding ten vehicles.	135.00
	More than ten vehicles.	200.00
3650	*Travel bureaus.* Requires State of Florida registration from Department of Agriculture for new and renewal BTR. No travel bureau license shall be transferable.	336.00
3660	*Translation services.*	99.00
3670	*Tree surgeon.* Requires certification from International Society of Arboriculture.	99.00
3680	*Upholstery repair services.* Recovering and repairing. If automobile, requires registration from the Florida Department of Agriculture.	99.00
3690	*Veterinarian.* Requires license from DPBR.	116.00
3700	*Veterinary establishment, kennel or hospital.* Requires license from DPBR.	99.00
3710	*Videotape duplication service.*	99.00
3720	*Video, television, high fidelity intercommunication and other similar systems.* Alone or in connection with any other business. Permits installation and service. Merchant's retail BTR is required for stock.	108.00
3730	*Waste collection, commercial.* As regulated in section 22-46 et seq. of this Code. No BTR shall be issued until the applicant furnishes the finance department with a permit to operate from the Department of Solid Waste.	268.00

Code	*BTR Category: Name, Description and Requirement(s)*	*Rate ($)*
3740	*Water manufacturers.* Manufacturers of aerated or distilled, drinking water. Permitted to distribute without distributor's license. Employing persons, including owners and operators:	
	Not exceeding five persons.	68.00
	More than five, not exceeding ten persons.	135.00
	More than ten persons.	267.00
3750	*Water distributors.* Distributors of bottled, aerated, distilled or mineral, drinking water. Utilizing vehicles, as follows:	
	Not exceeding two vehicles.	99.00
	More than two, not exceeding four vehicles.	215.00
	More than four vehicles.	241.00
3760	*Window or glass tinting.* Alone or in connection with any other business.	99.00
3770	*Window or house cleaning company.*	40.00

(Ord. No. 10303, § 1, 7-23-87; Ord. No. 10387, § 1, 2-18-88; Ord. No. 10991, § 1, 6-11-92; Ord. No. 11086, § 1, 9-27-93; Code 1980, § 31-35; Ord. No. 11287, § 3, 7-13-95; Ord. No. 11825, § 2, 7-27-99; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13106, § 2, 10-8-09; Ord. No. 13140, § 2, 2-11-10; Ord. No. 13213, § 3, 10-14-10; Ord. No. 13230, § 2, 11-18-10; Ord. No. 13336, § 2, 7-26-12; Ord. No. 13676, § 2, 4-27-17)

Editor's note—Ord. No. 13106, § 2, adopted Oct. 8, 2009, changed the title of § 31-50 from "Schedule of established local business taxes established" to "Schedule of established BTRs." The historical notation has been preserved for reference purposes.

Case law reference—Imposition of large penalty upon nonpayment of tax constitutes conditions that would render payment of unfairly assessed taxes under Ord. No. 9188 (predecessor to 10303) involuntary, thus rendering the necessity to protest unfair taxes unnecessary, thereby allowing grounds for suit to reimburse merchants for amount of excess tax and attorneys' fees. City of Miami v. Florida Retail Federation, Inc., 423 So. 2d 991.

Sec. 31-51. Food trucks operating on private land.

(a) Intent. It is the intent of this section to regulate the use of food trucks and their gatherings throughout the city as it pertains to private land. This section does not supplant or replace the requirements of chapter 39, article II, titled, "Sidewalk and Street Vendors."

(b) Definitions.

App-based meal production means the preparation of food ordered electronically (via a smartphone or other web-based application) in advance for pick-up or delivery solely for consumption off-premises.

Food truck means the preparing, cooking, serving, or selling of food performed from a movable stand, cart, vehicle, truck, van, or trailer. Each movable stand, cart, vehicle, truck, van, or trailer shall be considered a food truck for purposes of this section. It does not include movable stands, carts, vehicles, trucks, vans, or trailers that are engaged in app-based meal production.

Food truck gatherings means events consisting of a gathering of three or more food trucks.

Intermodal transportation Area ("I.T.A.") shall be defined as the area generally located from NW 6 Street to the North and NW 3 Street to the South and NW 1 Avenue to the East and the overhead Metrorail lines to the West.

I.T.A. Operator means the operator of the passenger rail train or the private property owner immediately adjacent to the public right-of-way located within an intermodal transportation area.

Patron means a person purchasing food from a food truck.

Rail station or *station* means any structure or transportation facility that is part of a rail system designed to accommodate the movement of passengers from one mode of transportation to another at which passengers board or disembark from transportation conveyances and transfer from one mode of transportation to another.

Truck means any of the various forms of vehicles used for carrying goods and materials, usually consisting of a single self-propelled unit, but also often composed of a trailer vehicle hauled by a tractor unit. A vehicle much larger than a cart or a car.

Van means a boxlike vehicle that resembles a panel truck, often has double doors both at the rear and along the curb side, and that can be used as a truck.

(c) Requirements for food trucks.

(1) In addition to all other city, county, and state requirements, food trucks shall receive a business tax receipt ("BTR") as listed in chapter 31 of the City Code upon the showing of:

a. A certificate of inspection by the Miami-Dade County Department of Health;

b. A certificate of inspection by the Florida Department of Business and Professional Regulation, Division of Hotels and Restaurants;

c. Proof of valid insurance;

d. Vehicle identification number; and

e. A valid peddler's BTR from Miami-Dade County.

(2) Food trucks that are present in the same location more than three times per week and/or park on site overnight shall, prior to receiving a BTR, also provide a:

a. Notarized letter and/or affidavit from the property owner authorizing the food truck to be located on the property; and

b. Site plan approved by the office of zoning indicating the proposed location.

(3) Food trucks must have a peddler's type BTR pursuant to chapter 31 of the City Code approved by the city manager or designee and must comply with the requirements of that BTR.

(4) Food trucks may only be operated with a clear space distance of no fewer than ten feet from a gasoline, natural gas, or other combustible energy source or similar type establishment pursuant to Section 50.8.2, Florida Fire Prevention Code.

(5) The property in which a food truck is parked must have an active certificate of use ("CU"). If there are no more than two food trucks present, such activities will be considered ancillary to the current CU if the food truck use is allowed in the transect zone.

(6) Food trucks shall not:

a. Be located in any driveway aisles, no parking zones, landscaped areas, loading areas, or parking lanes;

b. Impede the on-site circulation of motor vehicles;

c. Be located in a T3 or T4-R transect zone; or

d. Be located on the public right-of-way.

(7) Food trucks that are present in the same location more than three times per week and/or park on site overnight shall:

a. Not be located in parking spaces required by the other uses on the property unless the number of spaces exceeds the minimum amount required for other uses on the property. The utilization of an off-street parking space for the operation of a food truck must not cause the site to become deficient in required off-street parking; and

b. Have a public restroom available on site if food or beverages are being served for consumption on site.

(8) If parked on property that is vacant, the property owner must follow the temporary use of vacant land process and obtain a temporary use permit ("TUP") as delineated in chapter 62 of the City Code, if a TUP is allowed in the district.

(9) A site map for location and/or placement of food truck(s), occupied or vacant, show-

ing the property is outside the 500-foot radius as required by subsection (c)(4) of this Code.

(10) All food trucks must provide waste disposal for patrons and must keep the area surrounding the food truck(s) clear of waste and debris resulting from their services.

(11) All food trucks must display, at all times, a copy of their city affidavit attesting to the operating requirements issued by the regulating department of the city as approved by the city manager or designee.

(d) Requirements for food truck gatherings. Food truck gatherings shall be permitted without the need for a public hearing and by a special event permit for food truck gatherings issued by the city manager or designee pursuant to chapter 52 of the City Code, provided the food truck gatherings shall:

(1) Be limited to one food truck gathering at the same location only once per calendar month, for a maximum of three consecutive days;

(2) Be strictly prohibited in T3 and T4-R Transect Zones;

(3) Not permit the sale of alcoholic beverages from any food truck; and

(4) Acquire a building permit from the building department in the event of the erection of temporary structures or stages. All fire safety code requirements must be similarly met.

(e) A special event permit for food truck gatherings shall be obtained for each special event site on an annual basis. A special event permit for food truck gatherings application shall be obtained, completed, and submitted to the city manager or designee prior to operating a food truck gathering. The completed package shall include all documents pursuant to chapter 52 of the City Code and in addition, all of the following:

(1) A notarized letter from the property owner of record authorizing the food truck gathering indicating the amount of food trucks and the date and time(s) of the food truck gathering as described in the application package.

(2) A schedule of events for the food truck gathering.

(3) Notification and sign-off from the Miami Police Department and solid waste department.

(4) A traffic safety and security plan.

(5) A narrative from the applicant describing the hours of operation, estimated public attendance, amount of food trucks, and a description of any other amenities or services provided.

(6) Copies of all state and county licenses of each of the individual food trucks participating.

(7) The maximum number of individual food trucks which may be present at the food truck gathering at any one time. This maximum number shall be indicated on the special event permit if granted by the city.

(8) A site plan or survey indicating the following information, which shall consider the food truck gathering's estimated public attendees and the maximum number of individual food trucks on the site:

a. General placement of the individual food trucks (i.e. a map drawing of food trucks as they would be situated on the site).

b. Location of refuse and recycling facilities or receptacles.

c. Location of sanitation facilities.

d. Handling and disposal plans for fats, oils, and grease ("FOG").

e. Location of on-site and off-site parking areas.

f. Location of any lighting fixtures, if applicable.

g. Location of rights-of-way, internal circulation of vehicles and people, and of ingress and egress areas.

(f) Exemptions; waivers; prohibitions.

(1) *Exemptions.*

a. Private property with over 250,000 square feet of usable land shall be exempt from subsection (c)(4) of this section.

b. Intermodal transportation area ("I.T.A."): Notwithstanding any other section of the City Code, the I.T.A. operator may operate or cause to be operated food trucks at an intermodal transportation area if the following requirements are met:

i. The I.T.A. operator is required to set apart, create, and maintain the food truck area to be used in accordance with this subsection.

ii. A maximum of five adjoined spaces to be used by food trucks.

iii. Food truck space must be operated in such a manner as to provide a clear and unobstructed pedestrian path that is a minimum of five feet wide and must not create any impediment to pedestrian or vehicular occupation or use of a street, sidewalk, or roadway;

iv. Food trucks can only be operated during the hours of 7:00 a.m. to 10:00 p.m. and may only be occupied as directed by the I.T.A. operator (with hours of operation allowed to be extended for certain special events upon approval of the city manager).

v. No food truck operation may occur unless there is a public bathroom facility within 500 feet of the designated parking area in compliance with Section 403.3.3 of the Florida Building Code and all other requirements for sanitation, disposal of oil, recycling and lighting in subsection 31-51(e)(8) are required to be met and it cannot be located within a 500-foot radius of a gasoline or natural gas or other combustible energy source establishment;

vi. Any required building permits shall have to be submitted and finalized prior to any operation of the food trucks.

vii. In addition to all other city, county, and state requirements, food trucks shall receive a business tax receipt ("BTR") as listed in chapter 31 of the City Code upon the showing of:

a. A certificate of inspection by the Miami-Dade County Department of Health;

b. A certificate of inspection by the Florida Department of Business and Professional Regulation, Division of Hotels and Restaurants;

c. Proof of valid insurance;

d. Vehicle identification number; and

e. A valid peddler's BTR from Miami-Dade County.

viii. No alcohol sales are allowed.

(2) *Waivers.* Property owned and operated by a religious institution, educational institution, or the city shall not be subject to this section; however, food truck gatherings on city property shall be limited to one time per month unless waived by the city commission at a duly noticed public meeting.

(3) *Prohibitions.* Food truck usage is prohibited in district 3.

(g) Enforcement. Any violation of this section is punishable by a fine of $250.00 for a first offense and $500.00 for each offense thereafter under the provisions of chapter 2, article X of the City Code, and any other remedies as provided

by law, jointly and severally, including, but not limited to, suspension or revocation of a CU, BTR, permit, or any other legal remedy as deemed appropriate by the city. The use of one remedy shall not preclude the use of another.

(h) App-based mobile operations.

(1) *Definitions in addition to those provided in subsection 31-51(b).*

Delivery food vehicle means any vehicle used as or in conjunction with a mobile operation unit operating with app-based meal production for delivery only to be consumed off-premises.

Mobile operation unit means the movable stand, cart, vehicle, truck, van, or trailer through which mobile operations are performed on a parking lot site or on vacant land. Shipping containers do not qualify as a mobile operations unit and require necessary building permits in order to be securely left in any space.

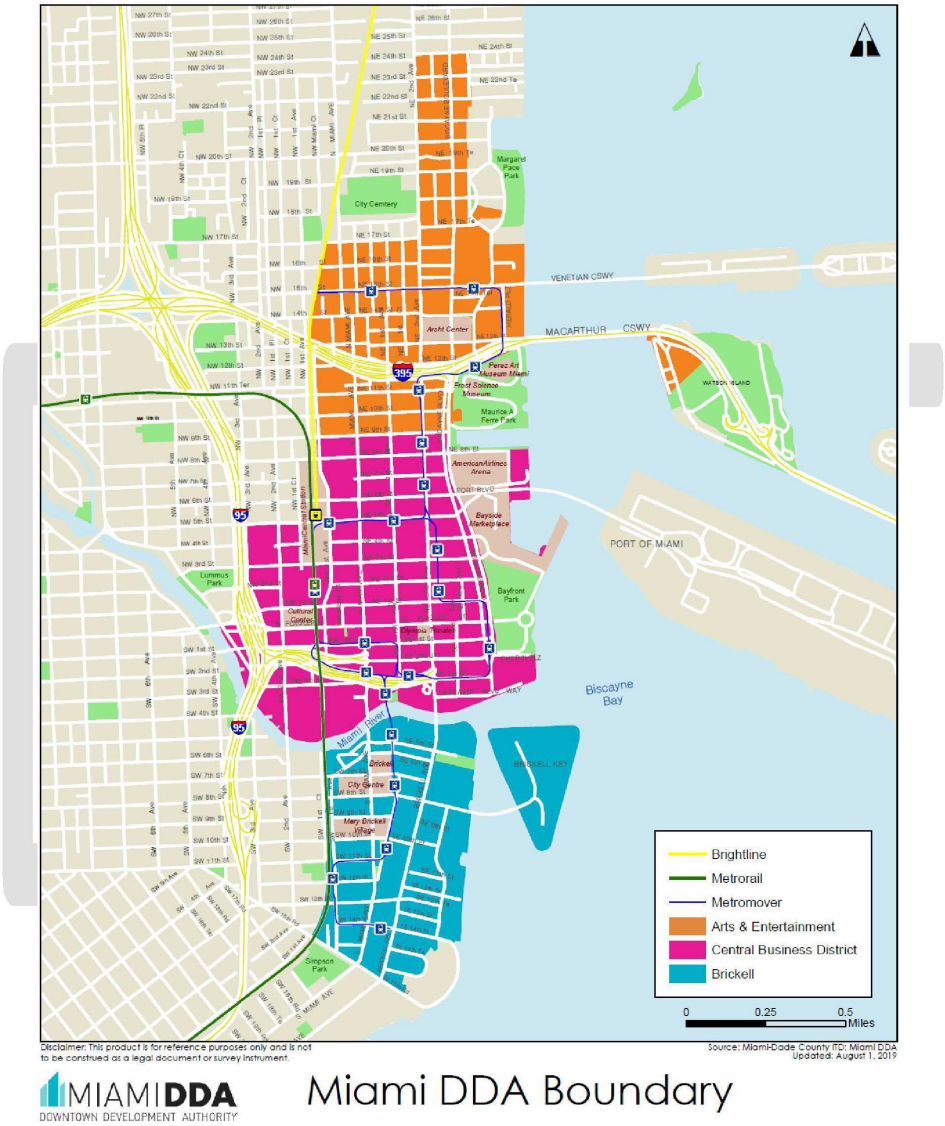
Mobile operations mean the operation of food trucks and delivery food vehicles and fulfillment operations performed from a movable stand, cart, vehicle, truck, van, or trailer.

(2) *Requirements for operation.*

a. The mobile operation will be allowed to operate on private property in Districts 1, 2 (excluding the Central Business District ("CBD") as described in herein), and 5 only.

b. No mobile operation shall be located within the CBD, generally identified as the area bound by Biscayne Boulevard to the East, the Miami River to the South, Northeast 9th Street to the North, and Interstate 95 ("I-95") to the West, as illustrated by the map provided in Exhibit "A", attached and incorporated.

EXHIBIT A



c. Mobile operations are permissible only on private properties within T5, T6, CS, CI, D1, D2, and D3 transect zones where the use category of food service establishment is allowed.

d. Mobile operations, mobile operation units, or food delivery vehicles shall not be located on public right-of-way, required parking spaces, driveway aisles, no-parking zones, unpaved areas, loading areas, or parking lanes and may not impede the on-site circulation of pedestrians or traffic flow.

e. The utilization of an off-street parking space for mobile operations shall not cause the abutting site to become deficient in required off-street parking.

f. Mobile operations shall not be located on private properties that houses gas stations, natural gas distributors, or other combustible energy sources.

g. Mobile operations shall be located a minimum of 25 feet from the property line of an existing residential use, except that mobile operations may be located at a minimum of ten feet from the property line if the residential use is separated by a six foot high masonry wall but may not abut a T3 transect zone.

h. Electric service connection of mobile operations to an on-site electrical outlet is permitted; however, all approved electrical services, panels, and outlet connections to a permanent enclosure or outlet box shall require an electrical permit from the building department prior to installation. Installation of electrical wiring and equipment must meet the provisions of the most recently adopted edition of the National Electrical Code. No wiring or cables may run beyond the vending area or pose any danger to the patrons or operators, either from being exposed or not properly installed to avoid a tripping hazard or life safety issues. For purposes of this requirement, the vending area includes the space taken up by a mobile operation unit; equipment; products; and any tents, tarpaulins, canopies, or awnings; and

i. All mobile operations must provide to the city their contract for servicing all grease-traps, as applicable, and said contract must remain valid or the BTR holder will be in violation of this section.

j. All mobile operations shall acquire any and all necessary permits required by the building, planning and zoning and any other departments or regulatory agencies prior to starting any business operations as allowed by this section.

(3) *Application and requirements to obtain a business tax receipt ("BTR").*

a. All mobile operations must comply with subsections 31-51(c)(1)—(3);

b. All applications shall be approved by the city manager or designee;

c. All applications will be reviewed by the city manager or designee and a determination provided within 15 days of receipt;

d. All applications shall be required to provide a site map, abutting zoning designations, the active and valid certificate of use of the private property to be used, and proof of compliance with subsection 31-51(h)(2); and

e. A notarized letter from the owner of the private property that the applicant has the authority to seek a BTR to occupy the property.

(4) *Enforcement; penalties.*

a. Any violation of this section is punishable by a fine of $250.00 for a first offense and $500.00 for each offense thereafter or as a notice of violation under the provisions of chapter 2, article X of the City Code and any other remedies as provided by law, jointly and severally, including, but not limited to, suspension or revocation of the relevant BTR or any other legal remedy as deemed appropriate by the city. The use of one remedy shall not preclude the use of another.

b. If the app-based mobile operations site converts from a mobile operation unit(s) to a permanent structure(s), compliance with the Florida Building Code and local amendments as well as Miami 21,

including but not limited to, issuance of a certificate of use, shall be required.

(Ord. No. 13796, § 2, 10-11-18; Ord. No. 13901, § 2, 5-14-20; Ord. No. 13993, § 2, 4-22-21; Ord. No. 14115, § 2, 10-13-22; Ord. No. 14249, § 2, 1-11-24; Ord. No. 14402, § 2, 10-9-25)

Secs. 31-52—31-75. Reserved.

ARTICLE III. CONVENIENCE STORE SECURITY*

Sec. 31-76. Definitions.

The city adopts by reference the definitions provided in F.S. § 812.171, as if fully set forth herein, as that statute may be amended from time to time.

(Ord. No. 10817, § 1, 12-6-90; Code 1980, § 12.1-1; Ord. No. 13256, § 1, 3-10-11)

State law reference—Similar definitions, F.S. § 817.171.

Sec. 31-77. Security requirements.

The city adopts by reference the convenience business security requirements provided in F.S. § 812.173, as if fully set forth herein, as that statute may be amended from time to time. All code compliance inspectors, as defined in this Code, may act as BTR inspectors and are authorized and directed to enforce the provisions of said statute and the provisions of this article.

(Ord. No. 10817, § 2, 12-6-90; Code 1980, § 12.1-2; Ord. No. 13256, § 1, 3-10-11; Ord. No. 13745, § 2, 2-22-18)

State law reference—Similar provisions, F.S. § 812.173.

Sec. 31-78. Training of employees.

The city adopts by reference the training requirements provided in F.S. § 812.174, as if fully set forth herein, as that statute may be amended from time to time. All code compliance inspectors, as defined in this Code, may act as BTR inspectors and are authorized and directed to enforce the provisions of said statute and the provisions of this article.

(Ord. No. 10817, § 3, 12-6-90; Code 1980, § 12.1-3; Ord. No. 13256, § 1, 3-10-11; Ord. No. 13745, § 2, 2-22-18)

State law reference—Similar provisions, F.S. § 812.174.

Sec. 31-79. Noncompliance fees.

Violations of the provisions of this article shall be cited by the city and the violator shall be given 30 days after receipt of the citation within which to correct the violation. If the violation continues beyond the time specified for correction, the violator shall be notified to appear before the code enforcement board. If the violator is found to have violated this article, the code enforcement board may impose a fine not to exceed $250.00 per day per violation for a first occurrence. The code enforcement board may impose a fine not to exceed $500.00 per day, per violation for each repeated violation. Such fines shall continue to accrue so long as the violation continues to exist on the property as per the provisions of sections 2-811 through 2-820 of this Code, but shall not exceed a total of $5,000.00.

(Ord. No. 10817, § 4, 12-6-90; Code 1980, § 12.1-4)

State law reference—Enforcement, F.S. § 812.715.

Sec. 31-80. Civil fines.

Any owner or principal operator of a convenience store, as defined in section 31-76, and located within the city who willfully and deliberately violates the requirements of this article or who deliberately fails to initially implement the requirements of this article shall be required to pay to the city, upon complaint filed by the city, a civil fine of up to $5,000.00.

(Ord. No. 10817, § 5, 12-6-90; Code 1980, § 12.1-5)

State law reference—Enforcement, civil fine, F.S. § 812.715.

ARTICLE IV. SHOPPING CARTS

Sec. 31-81. Definitions.

As used in this article, the following terms are defined as set forth below:

Cart means a shopping cart or basket which is mounted on wheels or a similar device generally

*__State law reference—__Convenience store security, F.S. § 812.171 et seq.

provided by a commercial establishment for use by a customer or an employee of said establishment for the purposes of transporting goods of any kind for any purpose.

Owner means any individual or entity, who in connection with the conduct of a business, owns, possesses, or makes any cart available to customers or the public. For purposes of this article, owner shall also include the owner's on-site or designated store manager or agent that provides the carts for use to its customers.

Premises means the entire area owned and utilized by the commercial establishment that provides carts for use by customers, including any parking lot or other property provided by the owner for customer parking.
(Ord. No. 13788, § 2, 9-27-18)

Sec. 31-82. Administration and enforcement.

The provisions of this article shall be administered and enforced by the city manager or designee.
(Ord. No. 13788, § 2, 9-27-18; Ord. No. 14138, § 10, 2-9-23; Ord. No. 14173, § 2, 5-25-23)

Sec. 31-83. Methods of compliance.

(a) An owner may comply with this article by creating and carrying out a plan to address the retention or collection of carts ("plan") using any one or more of the following methods:

(1) An electronic wheel locking mechanism;

(2) A physical barrier to prevent the removal of carts from the premises;

(3) An alarm mechanism attached to each cart to prevent removal from the premises;

(4) Implementation of a policy of not allowing the customer to exit the store with a cart;

(5) Providing an employee to carry or wheel the customer merchandise to the customer's vehicle;

(6) Implementation of a daily program for the collection of carts that are illegally removed; and/or

(7) Any other measure approved by the city as a means of preventing carts from being removed from the premises.

(b) In addition, the owner shall provide a sign in a visible location on the premises notifying cart users of the retention system and how it works. Such sign shall state the following in English, Spanish, and Creole:

Warning

Any person who removes a shopping cart from the premises without the written consent of the owner of the shopping cart or the retailer shall be presumed to be in possession of stolen property and is guilty of a misdemeanor of the first degree punishable by a term of imprisonment of up to (1) year as provided by Sections 506.509 and 506.513, Florida Statutes.

Advertencia

Se presupondrá que cualquier persona que retire un carro de compras de las instalaciones sin el consentimiento escrito del propietario del carro de compras o el minorista está en posesión de propiedad robada, y es culpable de un delito menor de primer grado punible con una pena de hasta (1) año en prisión, según lo dispuesto en las Secciones 506.509 y 506.513 de los Estatutos de Florida.

Avètisman

Depi yon moun wete charyo sou pwopriyete a san l pa gen pèmisyon alekri pwopriyetè charyo a oubyen magazen an, l ap rekonèt kòm yon moun ki gen nan men l atik ki vòlè e alò l ap koupab yon deli nan premye degre e l ap pini avèk yon pèn nan prizon pou jouk yon (1) lane konfòm ak Atik 506.509 ak 506.513 lalwa Florida.

(c) Such language shall be visible in the public area where carts are stored and legible from a distance of not less than five feet.

(d) A copy of the plan shall be submitted to the city manager or designee for review and approval.
(Ord. No. 13788, § 2, 9-27-18; Ord. No. 14138, § 10, 2-9-23; Ord. No. 14173, § 2, 5-25-23)

Sec. 31-84. Identification markings on carts.

Any owner that utilizes carts shall place readily identifiable markings on the carts which include the name and address or store number of the particular commercial establishment which owns the cart. Contact information including the manager's name, phone number, mailing address, and electronic mail address shall be provided to the city in the plan and the owner shall update the contact information within ten business days of any changes to such information.
(Ord. No. 13788, § 2, 9-27-18)

Sec. 31-85. Violations.

Any owner failing to submit a plan or failing to properly install and maintain an approved on-site cart retention system pursuant to the plan is in violation of this article.
(Ord. No. 13788, § 2, 9-27-18; Ord. No. 14173, § 2, 5-25-23)

Sec. 31-86. Uncollected carts.

(a) The city may collect any cart found off the premises and on public property. The city shall notify the owner of a cart, as designated on the shopping cart's identification markings, in writing when the city has secured an uncollected cart. After notice has been provided, any uncollected carts with owner markings may be held by the city for a period of up to 90 days pursuant to F.S. § 705.103(2).

(1) Marked carts. If the marked cart, as required in section 31-84, is not claimed by the owner within the time specified in subsection (a), then such carts shall be considered abandoned and may be disposed or declared surplus and sold if still uncollected in accordance with the City Code and/or F.S. ch. 705.

(2) Unmarked carts. Any unmarked carts shall be tagged pursuant to subsection 31-86(b), and then considered abandoned and may be disposed or declared surplus and sold if still uncollected in accordance with the City Code and/or F.S. ch. 705.

(3) All proceeds of the sale of such carts shall be the sole property of the city.

(b) If the owner is not identified on the cart, then before collecting the cart, an agent or employee of the city will place notice on the cart stating:

NOTICE TO THE OWNER AND ALL PERSONS INTERESTED IN THE ATTACHED PROPERTY

This property, to wit: (setting forth brief description) is unlawfully upon public property known as (setting forth brief description of location) and must be removed within eighteen (18) hours. Failure to remove this property will result in disposal pursuant to the City Code and/or Chapter 705, Florida Statutes.

Dated this: (setting forth the date of posting of notice) at (setting forth time). Signed (setting forth name, title, address, and telephone number of the City official to contact).

(c) The owner of a cart without identification markings shall have 18 hours from the date and time of the notice to retrieve the cart.

(d) A cart without identification markings and which has been noticed pursuant to the requirements of this section shall be considered abandoned after 18 hours from the date and time of the notice to retrieve the cart and the abandoned cart may be sold if still uncollected in accordance with the City Code and F.S. ch. 705, or may be disposed of in any manner (including discarded) as determined by the city manager or designee.
(Ord. No. 13788, § 2, 9-27-18; Ord. No. 14138, § 10, 2-9-23; Ord. No. 14173, § 2, 5-25-23)

Sec. 31-87. Exemptions.

(a) Any owner desiring an exemption from the identification markings requirements of subsection 31-84(a) shall file a petition for exemption with the city manager or designee. The filing fee for a petition for exemption shall be $500.00 per year for each premises and due on or before October 1 of each year. A petition for exemption shall be valid for a period of no more than one year.

(b) Upon such filing, the city manager or designee shall issue the owner an exemption from the requirements of subsection 31-84(a) if:

(1) Physical barriers exist to prevent the removal of the cart(s) from the premises or the parking lot where utilized, which conform to all applicable building code requirements;

(2) Electronic wheel locking mechanism, alarms, or other security devices (such as wheel locking mechanisms to be used in conjunction with an electronic barrier or protruding arms or similar devices prohibiting the cart from being removed from the interior of the premises) are attached to the carts to prevent its removal from the premises or the parking lot where utilized;

(3) A system has been established, which may be mechanical in nature, requiring a deposit to use the cart in an amount which would not deter the use of the cart but would encourage the return of the cart; or

(4) Similar methods have been adopted that would prevent the removal of a cart from the premises where utilized.

(c) Any exemption granted under this article shall expire if the grounds for the exemption cease to be maintained or used.

(d) Any owner with a commercial establishment who provide carts for use by a customer prior to the effective date of this article, shall have a period of one year from the effective date of this article to come into compliance with this article.

(e) The owners of a premises of under 5,000 square feet with a maximum of 15 carts or less for use by a customer of the premises shall be exempt from the requirements of this article.
(Ord. No. 13788, § 2, 9-27-18; Ord. No. 14173, § 2, 5-25-23)

Sec. 31-88. Removal, storage, and disposal of carts found on public property.

(a) The city may remove and place into storage all carts found on public property.

(b) After the city has removed identifiable carts from public property, the city manager or designee shall promptly provide written notice by regular mail to the owner at the address designated on the cart's identification markings. If the cart has no identification markings but the owner can otherwise be readily determined by other distinguishing characteristics or notice to the city, the code compliance department shall mail the notice to the determined owner. The notice shall be deemed complete upon mailing and posting by the code compliance department and receipt of the notice by the owner is not required.
(Ord. No. 13788, § 2, 9-27-18; Ord. No. 14138, § 10, 2-9-23; Ord. No. 14173, § 2, 5-25-23)

Sec. 31-89. Enforcement.

Notwithstanding the provisions of F.S. § 506.5131, any owner violating the provisions of this article shall be subject the penalties as provided by chapter 2, article X, which includes the issuance of a $500.00 citation or notice of violation, as allowed by law. No one form of enforcement shall preclude use of another.
(Ord. No. 14173, § 2, 5-25-23)

Secs. 31-90—31-93. Reserved.

ARTICLE V. HOTEL/MOTEL REGULATIONS

Sec. 31-94. Hotel/motel rentals—Prohibition of human trafficking; definitions; required minimum requirements and standards, violations, and penalties.

(a) *Definitions.* As used in this section, the following words will have the following definitions:

Hotel(s)/motel(s) shall mean hotels, motels, inns, bed and breakfasts, and all other lodging uses as set forth in Article 1 of Ordinance No. 13114, the Zoning Ordinance for the City of Miami, Florida, as amended ("Miami 21"), and the laws of the State of Florida, regardless of size and number of units.

Human trafficking shall mean the same as is set forth in F.S. § 787.06.

Labor trafficking shall mean the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services through the use of force, fraud, or coercion pursuant 22 United States Code Section ("USC") 7102.

Sex trafficking shall mean the recruitment, harboring, transportation, provision, obtaining, patronizing, or soliciting of a person for the purposes of a commercial sex act in which the commercial sex act is induced by force, fraud, or coercion pursuant to 22 USC Section 7102.

(b) *Minimum requirements, standards.* To eradicate the scourge of human trafficking, hotels/motels in the city will adhere to and comply with the following minimum requirements and standards.

(1) *Rental.* No rentals to minors. Room rentals shall be limited to persons over the age of 18 years old.

(2) *Photographic identification ("ID") required.* Rentals shall only be permitted to those persons over the age of 18 with a government issued photographic identification that establishes the name, age, and address of the person registering.

(3) *Check-in and check-out procedure, information, and hotel/motel log.* Hotels/motels shall keep the information provided in the ID of the party registering for the room(s) referenced above along with the following information in a log to be kept on the premises: number of person(s) occupying the room(s); automobile tag number, if applicable; dates when room will be occupied; rate charged; and any other information as required by F.S. § 509.101. The log shall be kept for inspection by the hotel/motel for two calendar years as required by state statute and for inspection by the Miami Police Department.

(4) *CCTV.* Hotels/motels shall install and maintain a closed-circuit TV or cloud-based video surveillance system ("CCTV") which films the front entrance or any other entry or exit, the check-in desk area, any open-air breezeways, and any parking area of the hotel/motel. The CCTV shall have at least a 30-day memory and a camera that is a minimum of 1080 HD with a frame rate of 15 frames per second.

a. *City access to CCTV.* Each hotel/motel shall have the option to voluntarily participate with and allow access to the stored video based upon a mutually agreed upon process or a lawful request from the Miami Police Department. This access shall not be construed as the Miami Police Department providing any surveillance, security, or any other manner of assistance with security and safety on the premises.

b. *CCTV Warning.* Every hotel/motel shall provide warning notices prominently displayed at all entrances and exits that CCTV cameras are operational and recording the check-in area, entrances, exits, parking areas, and open-air breezeways. No CCTV camera shall be specifically set to record a hotel/motel room door but rather general entry, exit, check-in desk area, parking area, and open-air breezeway views. CCTV cameras set in any area where there may be hotel/motel room entry door shall not be in violation of this article so long as the camera focus is the general area as described herein.

(5) *Cause for warrants.* Probable cause for criminal search warrants and cause for civil inspection warrants to search any hotel/motel believed to be in violation of federal, state, or local law shall be done in accordance with F.S. ch. 933.

(6) *Minimum hours of room rentals.* Hotel/motel rooms must be rented for a minimum time of four consecutive hours.

This is the minimum stay period. No room may be rented more than six times in a 24-hour period.

(7) *Advertising, signage.*

a. No advertising or signage of fractional room rentals is permitted on premises.

b. The hotel/motel shall post a human trafficking public awareness sign in a conspicuous area as specified and required in F.S. § 509.096, including the National Human Trafficking Hotline Number and the Miami Human Trafficking Hotline with the Miami-Dade State Attorney's Office 305-FIX-STOP (305-349-7867).

(8) *Annual human trafficking awareness training.* The hotel/motel shall provide annual human trafficking awareness training to its employees as is specified and required in F.S. § 509.096.

(9) *Reporting of human trafficking.* The hotel/motel shall be responsible to report all human trafficking as required by F.S. § 509.096, and the Miami Human Trafficking Hotline with the Miami-Dade State Attorney's Office 305-FIX-STOP (305-349-7867).

(10) *Fire-rescue, building, and city code compliance.* At the time the hotel/motel applies for the annual business tax receipt ("BTR") or certificate of use ("CU") including the renewal of the BTR or the CU, the hotel/motel shall allow inspection by the fire-rescue and building departments to assure compliance with all fire, building, and city codes, as applicable.

(11) *Crime mitigation plan.* At the time a hotel/motel applies for its annual BTR or CU from the city, each hotel/motel shall include a crime mitigation plan, which shall be approved by the chief of police and shall at minimum attest to the following:

a. Each employee has complied as required by the State of Florida with the annual human traffic awareness training set forth in F.S. § 509.096, or the employee is currently undergoing such training and provide proof of such compliance;

b. Hotels/motels shall have a duty to report any illegal activity observed on the premises to the Miami Police Department; and

c. Hotels/motels shall fully cooperate with the Miami Police Department and the prosecuting agency or agencies regarding any investigation or subsequent arrest made on the premises.

(12) *Lighting.* Hotels/motels shall install and maintain lighting as required by chapter 10, article XI of the City Code in good operational condition in the main entrance and parking area.

(13) *Security.* Hotels/Motels shall hire at least one full time security guard or off-duty city certified law enforcement officer to patrol the premises from 9:00 p.m. to 5:00 a.m. seven days a week.

(14) *Installation of lighting and CCTV.* Installation or upgrading of lighting or CCTV as required by this article shall be required to be completed within six months of the date of the article's adoption unless the hotel/motel is found in violation of any other requirement of this article, in which case, compliance shall be immediate.

(c) *Remedies; penalties.* Hotels/motels violating this article will be subject to one or more of the remedies provided for in this section as decided by the city and/or any other public agency having jurisdiction over the premises. All remedies are cumulative and do not preclude or impede in any way a law enforcement officer to investigate and effectuate an arrest for related criminal conduct or activity on the premises.

(1) Legal action in a court of competent jurisdiction for violation of the City Code as provided for in section 1-13 of the City Code and/or other civil action deemed to be in the city's best interests.

(2) Denial, suspension, or revocation of a BTR in accordance with applicable provisions of the City Code.

(3) Denial, suspension, or revocation of a CU in accordance with chapter 2 of the City Code.

(4) Proceedings before the city's nuisance abatement board and all remedies available under such proceedings.

(5) Remedies under the Florida Contraband Forfeiture Act as provided in F.S. §§ 932.701—932.7062.

(6) Code enforcement proceedings pursuant to chapter 2, article X of the City Code:

a. First violation shall be punishable with a $1,000.00 per diem fine.

b. Second violation shall be punishable with a $2,500.00 per diem fine.

c. Third and subsequent violations shall be punishable with a $5,000.00 per diem fine.

d. Any hotel/motel found to have facilitated prostitution, human trafficking, or other illegal criminal acts is subject to a fine of up to $15,000.00 as a code enforcement matter if the code enforcement board or special master finds the violation to be irreparable or irreversible in nature in accordance with the criteria set forth in section 2-817 of the City Code.

(Ord. No. 14014, § 2, 7-22-21)

Secs. 31-95—31-99. Reserved.

ARTICLE VI. MASSAGE ESTABLISHMENTS

Sec. 31-100. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section:

(1) *Employees* shall mean and shall encompass those persons in direct employ and those persons acting as independent contractors.

(2) *Establishment* shall mean a site or premises, or portion thereof, wherein a massage therapist, Employee, masseur, or masseuse practices massage.

(3) *Establishment owner* shall mean a person who has ownership interest in a massage establishment. The term includes but is not limited to an individual who holds a massage establishment license, a general partner of a partnership, an owner or officer of a corporation, and a member of a limited liability company and its subsidiaries who holds a massage establishment license.

(4) *Fee* or *gratuity* shall mean and include payment by money, check, credit card, or any combination thereof or anything of value in exchange for services under this article.

(5) *Massage* shall mean the manipulation of the soft tissues of the human body by the hand, foot, arm, or elbow of an employee of a massage establishment, whether or not such manipulation is aided by hydrotherapy, including colonic irrigation, or thermal therapy; any electrical or mechanical device; or the application to the human body of a chemical or herbal preparation.

(6) *Massage establishment* shall mean and includes any health spas, health studios, exercise salons, relaxation spas, health salons, health clubs and adult relaxation spas, shops, parlors, Establishments, or places of business wherein all or any one or more of the named subjects and methods of treatments, as defined in subsection (1), are administered or practiced.

(7) *Massage therapist* shall mean the same as set forth in F.S. § 480.033.

(8) *Masseur* and *masseuse* shall mean and include a person who practices, administers, or teaches all or any one or more of the following subjects and methods of treatments:

a. A person who administers or teaches treatments with any mechanical or

electrical apparatus for the purpose of body slenderizing, body reducing, or body contouring.

b. A person who has studied the underlying principles of anatomy and physiology, including the theory of massage, its indications and contra-indications, and administers or teaches all or any one or more of the following subjects and methods of treatments: oil rubs, salt glows, hot or cold packs, all kinds of baths including steam rooms, cabinet baths, sitz baths, color irrigations, body massage either by hand or by any mechanical or electrical apparatus or device (excluding fever therapy), applying such movements as stroking, friction, rolling, vibration, kneading, cupping, petrissage, rubbing, effleurage, or tapotement.

c. Nothing in this article shall be construed as applying to State of Florida licensed barbers, cosmetologists, manicurists, pedicurists, physical therapists, physical therapist assistants, midwives, practical nurses, agents, servants, or employees in licensed hospitals or nursing homes or other licensed medical institutions, licensed physicians, osteopaths, chiropractors, podiatrists, naturopathic physicians, other licensed medical practitioners, or their agents, servants, or employees acting in the course of such agency, service, or employment.

(9) *Premises* shall mean the real property, or portion thereof, upon which the massage establishment is located, including, but not limited to, the establishment and the grounds, private walkways, parking lots, and/or parking garages under the ownership or control of the establishment.

(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-101. Massage establishments—Prohibited practices.

An establishment owner and/or its employees may not operate or provide massage services at a massage establishment in the city between the hours of 10:00 p.m. and 8:00 a.m. daily. This subsection does not apply to a massage establishment:

(1) Located on the premises of a health care facility as defined in F.S. § 408.07; a health care clinic as defined in F.S. § 400.9905(4); a hotel as defined in F.S. § 509.242; a timeshare property as defined in F.S. § 721.05; or a pari-mutuel facility as defined in F.S. § 550.002;

(2) In which every massage performed between the hours of 10:00 p.m. and 8:00 a.m. is performed by a massage therapist acting under the prescription of a physician or physician assistant licensed under F.S. ch. 458; an osteopathic physician or physician assistant licensed under F.S. ch. 459; a chiropractic physician licensed under F.S. ch. 460; a podiatric physician licensed under F.S. ch. 461; an advanced practice registered nurse licensed under F.S. ch. 464, pt. I; or a dentist licensed under F.S. ch. 466.

(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-102. Physical contact.

It shall be unlawful for any person in any of the establishments described in subsections 31-100(2) and 31-100(6) hereof, or other similar type of business, to provide any type of physical contact, touching, or massage for a fee or gratuity unless the person providing the service is a masseur or masseuse duly licensed in accordance with the provisions of F.S. ch. 480.

(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-103. Removing clothing.

It shall be unlawful for any person in any of the establishments described in subsections 31-100(2) and 31-100(6) hereof to request another person to remove his or her clothing, unless the person making the request is a masseur or masseuse duly licensed in accordance with the provisions of F.S. ch. 480.

(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-104. Presence of licensed masseur or masseuse required.

It shall be unlawful to operate any of the establishments described in subsections 31-100(2) and 31-100(6) hereof unless there shall be in its employ and on duty full-time during the hours open for business at least one licensed masseur or licensed masseuse.
(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-105. Presence of person in charge.

It shall be unlawful for any person, firm, or corporation who shall be the owner of any of the establishments described in subsections 31-100(2) and 31-100(6) hereof to operate that establishment unless the owner shall be present upon the premises or, in the event of the absence of the owner from the premises, unless the owner designates, in a signed writing to be left on the premises, a person to be in charge of the premises who shall also be a masseur or masseuse licensed in accordance with the provisions of F.S. ch. 480.
(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-106. Responsibility of owner and manager.

It shall be unlawful for any person owning or managing or otherwise controlling any place of business located in the city to cause or to knowingly permit any agent, servant, employee, or other person under his control or supervision to participate in the conduct prohibited in sections 31-102 or 31-103 hereof.
(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-107. Human trafficking awareness signs at adult entertainment, massage, and bodywork services establishments.

(a) The employer at each massage establishment shall display public awareness signs in a conspicuous location that is clearly visible to the public and employees of the establishment.

(b) The required public awareness sign must be at least 8.5 inches by 11 inches in size, must be printed in at least 16-point type, and must state substantially the following in English, Spanish, and Creole:

> If you or someone you know is being forced to engage in an activity and cannot leave—whether it is prostitution, housework, farm work, factory work, retail work, restaurant work, or any other activity—call the National Human Trafficking Resource Center at 1-888-373-7888 or text INFO or HELP to 233-733 to access help and services. Victims of slavery and human trafficking are protected under United States and Florida Law.

(c) The required public awareness sign must be posted pursuant to F.S. § 787.29, section 21-31.5 of the Miami-Dade County Code, and section 31-107 of the City Code.
(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-108. Window.

A massage establishment shall maintain window signage so that there is a clear and unobstructed view of the interior of the reception area from the exterior of the establishment.
(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-109. Penalties.

(a) Any person who violates any provision of this article commits a municipal ordinance violation and may be punished as provided in section 1-13 of the City Code. Each instance of the above-described prohibited practices constitutes a violation and shall constitute a separate offense.

(b) The establishment owner or operator of any massage establishment found to be in violation of this article or allowing an employee of the establishment to preform Massage services is subject to the following penalties:

(1) First violation shall be subject to a $1,000.00 per diem fine.

(2) Second and subsequent violations shall be subject to a fine of up to $5,000.00 per day as a repeat violator and a revocation of the certificate of use for the business establishment.

(c) Any individual or establishment found to have facilitated prostitution, human sex trafficking, or other illegal conduct in a massage establishment is subject to a fine of up to $15,000.00 as a code enforcement matter if the code enforcement board or special master finds the violation to be irreparable or irreversible in nature in accordance with the criteria set forth in subsection 2-817(c) of the City Code, revocation of the certificate of use for the business, and forfeiture of the premises pursuant to the Florida Contraband Forfeiture Act of F.S. §§ 932.701—932.7062.
(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-110. Cumulative remedies.

Remedies provided under this article are cumulative and do not preclude in any way a law enforcement officer's right to effectuate an arrest for related criminal conduct or the city from seeking an injunction or other appropriate remedies. The city attorney is authorized to file a civil action to enforce and collect attorneys' fees and costs and such proceedings shall be expedited by the court.
(Ord. No. 14013, § 2, 7-22-21)

Sec. 31-111. Immunity.

The city and its elected and appointed officials, employees, and agents are immunized from civil or criminal liability for actions taken in accordance with this article.
(Ord. No. 14013, § 2, 7-22-21)

ARTICLE VII. RETAIL HEMP ESTABLISHMENTS AND SMOKE SHOPS

Sec. 31-112. Definitions.

As used in this section, the following words will have the following definitions:

Hemp shall mean the plant Cannabis sativa L. and any part of that plant, including the seeds thereof, and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers thereof, whether growing or not, that has a total delta-9 tetrahydrocannabinol concentration that does not exceed 0.3 percent on a dry-weight basis as defined in F.S. § 581.217. Hemp does not include extraction of marijuana psychoactive components, to include tetrahydrocannabinol ("THC") in any form and is strictly prohibited.

Hemp extract products shall mean any products containing hemp, any byproducts of hemp to include CBD derivatives of any kind derived, or any other cannabinoids extracted from hemp or flower that is an ingredient of any foods, sugars, solvents intended for ingestion or inhalation and is allowed to be distributed and sold in Florida if it meets the requirements of the State hemp program pursuant to F.S. § 581.217, as amended.

Retail hemp establishment shall mean establishments that dedicate more than 20 percent of their tenant floor space square footage to the sale, offering, and/or furnishing of prepacked food consisting of or containing hemp, hemp extract products, or cannabidiol ("CBD") products including delta-8 tetrahydrocannabinol to the end consumer. These food establishments must have a hemp food establishment permit from the Department of Agriculture and Consumer Services, Division of Food Safety.

Smoke shop shall mean commercial retail sales or wholesale establishments primarily engaged in selling tobacco and/or tobacco products, where 20 percent or more of the tenant floor space of the business is dedicated to any combination of the following activities, or related activities:

(1) Retail sale, offering, and/or furnishing of cigarettes, pipes, and/or electronic cigarette devices and/or the retail sale of related paraphernalia including but not limited to pipes, punctured metal bowls, bongs, water bongs, electric pipes, e-cigarettes, e-cigarette juice, vaporizers, hookahs, and devices for holding burning material; or

(2) Storage, mixing, rolling, display of products including nicotine-enriched solutions or other liquid products that are manufactured for use with vaping or e-cigarettes; or

(3) A retail hemp establishment as defined in this section.

Smoking lounge shall mean an establishment that is dedicated primarily to the on-premises consumption of hemp and hemp extract products, electronic cigarettes, or other smoked or vaporized substances, and/or the use of hookahs. Smoking lounge includes but is not limited to establishments known, advertised, or represented as smoke lounges, hookah lounges, vape lounges, tobacco clubs, tobacco bars, smoke shops as defined in this section, and similar terminology. Cigar shops and smoking lounges of a retail cigar shop are not subject to the provisions of this article.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-113. Minimum requirements and standards.

To promote the general public welfare and safety by imposing and enforcing reasonable and necessary restrictions on hemp and hemp extract products sold and/or distributed for ingestion or consumption in the city, a retail hemp establishment, including smoke shops and smoking lounges in the city shall adhere to and comply with the following minimum requirements and standards.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-114. Labeling requirements for hemp extract products pursuant to Florida Statutes.

(a) Pursuant to F.S. § 581.217(7), as amended, and the rules adopted by the Florida Department of Agriculture and Consumer Services pursuant thereto, hemp extract products may only be distributed and/or sold in the city if the product:

(1) Has a certificate of analysis prepared by an independent testing laboratory that states:

a. The hemp extract is the product of a batch tested by the independent testing laboratory;

b. The batch contained a total delta-9-tetrahydrocannabinol concentration that did not exceed 0.3 percent pursuant to the testing of a random sample of the batch; and

c. The batch does not contain contaminants unsafe for human consumption.

(2) Is distributed or sold in a container that includes:

a. A scannable barcode or quick response code linked to the certificate of analysis of the hemp extract batch by an independent testing laboratory;

b. The batch number;

c. The internet address of a website where batch information may be obtained;

d. The expiration date; and

e. The number of milligrams of each marketed cannabinoid per serving.

(3) Hemp extract distributed or sold in violation of this section shall be considered adulterated or misbranded pursuant to F.S. chs. 500, 502, or 580, as amended.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-115. Distribution and sales of products to customers.

(a) Any product sold by a retail hemp establishment, smoke shops, and/or available in smoking lounges intended for inhalation and is a hemp extract product may not be sold to a person who is under 21 years of age.

(b) Sales shall only be permitted to those persons over the age of 21 with a government issued photographic identification that establishes the name, age, and address of the purchaser.

(c) All retail hemp establishments and smoke shops shall post a clear and conspicuous sign which substantially states the following: "The sale of hemp and hemp extract products to persons under 21 years of age is against Florida law. Proof of age is required for purchase."

(d) The owner or manager of a retail hemp establishment or smoke shop shall provide at the point-of-sale counter, in a location clearly visible to the dealer or the dealer's agent or employee, instructional material in a calendar format or

similar format to assist in determining whether a customer is of legal age to purchase hemp extract products.

(e) A retail hemp establishment or smoke shop shall not be located within:

(1) One thousand-foot radius of an existing public or private preschool, elementary school, middle school, high school, park, playground, or place of worship or institutional facility.

(2) The distances specified in this section shall be determined by the horizontal distance measured in a straight line from the closest property line to the closest property line of the lot on which the establishment is located, without regard to intervening structures. In the case of a multi-use building located upon a single tract of land, the distance shall be measured by drawing a straight line between the outermost exterior wall of the unit within the multi-use building intended for use as a commercial retail establishment and the closest property line of the nearest school, park, or place of worship or institutional facility.

(f) Dispensing of, payment for, and receipt of a hemp extract product is prohibited anywhere outside the retail hemp establishment or smoke shop.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-116. Distance requirements.

Retail hemp establishments, smoke shops and smoking lounges in the city as a primary use shall be located no closer than one mile from another such use as measured from property line to property line in a straight line from the nearest point of the subject property to the nearest point of the existing retail hemp establishment, smoke shop, or smoking lounge, inclusive of such locations that may be outside of the city limits.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-117. Windows.

Retail hemp establishments, smoke shops and smoking lounges shall keep all doors and windows clear and unobstructed and free of any signage, screening or tinting so as to not obscure visibility of the interior point of sales counter from the exterior of the establishment.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-118. Signage.

Retail hemp establishments, smoke shops and smoking lounges shall not display smoking devices, or any branding, images or insignias of a cannabis leaf or emblems in the likeness of a cannabis leaf on any form of storefront signage in any format including neon, electrical, or LED lighting. Furthermore, no sign shall bear any image depicting or describing a marijuana leaf or the combustion of plant material, whether by means of display, decoration, sign, window or any other means. No hemp or hemp extract products or pictures of the products in the premises of the establishment shall be displayed on signs, in window areas or any area where they can be viewed from the sidewalk or street in front of the establishment.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-119. Lighting.

Retail hemp establishments, smoke shops and smoking lounges shall install and maintain lighting as required by chapter 10, article XI of the City Code in good operational condition in the main entrance and parking area.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-120. Closed-circuit video surveillance system.

(a) Retail hemp establishments, smoke shops and smoking lounges shall install and maintain a closed-circuit TV or cloud-based video surveillance system ("CCTV") which films the front entrance or any other entry or exit, the point-of-sales counter, and any parking area of the establishment. The CCTV shall have at least a 30-day memory and a camera that is a minimum of 1080 HD with a frame rate of 15 frames per second.

(b) Each establishment shall have the option to voluntarily participate with and allow access to the stored video based upon a mutually agreed upon process or a lawful request from the Miami Police Department. This access shall not be construed as the Miami Police Department providing any surveillance, security, or any other manner of assistance with security and safety on the premises.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-121. Cause for warrants.

It shall be unlawful for any retail hemp establishments, smoke shops and smoking lounges to refuse or prevent reasonable inspection by police officers during any time in which the establishment is open for business. Probable cause for criminal search warrants and cause for civil inspection warrants to search any establishments believed to be in violation of federal, state, or local law shall be in accordance with F.S. ch. 933.
(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-122. Penalties.

Any retail hemp establishment, smoke shop or smoking lounge in violation of this article will be subject to one or more of the remedies provided for in this section as decided by the city and/or any other public agency having jurisdiction over the establishments.

(1) Legal action in a court of competent jurisdiction for violation of the City Code as provided for in section 1-13 of the City Code and/or other civil action deemed to be in the city's best interests.

(2) Denial, suspension, or revocation of a BTR in accordance with applicable provisions of the City Code.

(3) Denial, suspension, or revocation of a CU in accordance with chapter 2 of the City Code.

(4) Code enforcement proceedings pursuant to chapter 2, article X of the City Code:

   a. First violation shall be punishable with a $1,000.00 per diem fine.

   b. Second violation shall be punishable with a $2,500.00 per diem fine.

   c. Third and subsequent violations shall be punishable with a $5,000.00 per diem fine.

(Ord. No. 14180, § 2, 6-8-23)

Sec. 31-123. Cumulative remedies.

Remedies provided under this article are cumulative and do not preclude in any way a law enforcement officer's right to effectuate an arrest for related criminal conduct or the city from seeking an injunction or other appropriate remedies. The city attorney is authorized to file a civil action to enforce and collect attorneys' fees and costs and such proceedings shall be expedited by the court.
(Ord. No. 14180, § 2, 6-8-23)

Chapter 32

MERCHANDISING*

Article I. In General

Secs. 32-1—32-25. Reserved.

Article II. Bankruptcy and Closing-Out Sales

Sec. 32-26. Definitions.
Sec. 32-27. License—Required.
Sec. 32-28. Same—Application; inventory of stock.
Sec. 32-29. Same—Investigation fee.
Sec. 32-30. Same—Inspection of application; issuance; surrender of existing local business tax receipt.
Sec. 32-31. Same—Term; supplemental licenses.
Sec. 32-32. Same—Display; inspection of duplicate of application and stock list.
Sec. 32-33. Supervision and rules and regulations of director of finance.
Sec. 32-34. Advertising—Generally.
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Sec. 32-36. Books and records; revision of stock list.
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Sec. 32-38. Inventory.
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Sec. 32-40. Certain persons exempt from article.

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Article III. Refunds and Exchanges

Sec. 32-66. Statement of purpose.
Sec. 32-67. Definitions.
Sec. 32-68. Enforcement and penalties.
Sec. 32-69. Requirements.

***City Code cross references—**Alcoholic beverages, ch. 4; city purchases and contracts, § 18-71 et seq.; fire protection, ch. 19; local business tax and miscellaneous business regulations, ch. 31; parking upon streets for purpose of selling merchandise, § 35-10; peddling, vending and merchandising in city parks, § 38-65; peddlers, itinerant vendors, ch. 39; weapons, ch. 61.

State law references—Registration of trademarks and service marks, F.S. ch. 495; consumer protection generally, F.S. § 501.011 et seq.; deceptive and unfair trade practices law, F.S. § 501.201 et seq.; stamped or marked bottles and boxes, F.S. ch. 506; consumer finance act, F.S. ch. 516; retail installment sales, F.S. ch. 520; weights, measures and standards, F.S. ch. 531; commercial discrimination, F.S. ch. 540; trading stamps, F.S. § 559.01 et seq.; fire and going-out-of-business sales, F.S. § 559.20 et seq.; consumer collection practices, F.S. § 559.55 et seq.; uniform commercial codes, F.S. chs. 671—680; interest and usury, F.S. ch. 687; false pretenses and frauds generally, F.S. § 817.02 et seq.; state credit card crime act, § F.S. 817.57 et seq.; merchandising of dogs, F.S. § 877.14.

ARTICLE I. IN GENERAL

Secs. 32-1—32-25. Reserved.

ARTICLE II. BANKRUPTCY AND CLOSING-OUT SALES*

Sec. 32-26. Definitions.

For the purpose of this article, the following words and phrases shall have the meanings ascribed to them by this section:

Director of finance: The term "director of finance" shall include his/her authorized deputy, assistant or agent.

Publish, advertisement, etc.: The words "publish," "publishing," "advertising," and "advertisement" shall include all means of conveying to the public notice of a sale or notice or intention to conduct a sale whether by word of mouth, newspaper advertisement, magazine advertisement, handbill, written notice, printed display, billboard display, poster, radio announcement and all means, including oral, written or printed.

Sale, sales: The words "sale" and "sales" are defined to be the sale, or an offer to sell, to the public goods, wares and merchandise of any and all kinds and descriptions on hand and in stock in connection with a declared purpose, as set forth by advertising on the part of the seller and anticipatory to the termination, closing, liquidation, revision, winding-up, discontinuance, conclusion or abandonment of the business in connection with such sale. They shall also include any sale advertised to be a "bankruptcy sale" or any sale in which the terms "bankrupt" or "bankruptcy" are used in connection with advertising pertaining to such sale. They shall also include "adjustment sale," "creditor's sale," "liquidation sale," "reorganization sale," "alteration sale," "executor's sale," "administrator's sale," "insolvency sale," "fire sale," "insurance salvage sale," "mortgage sale," "assignee's sale," "adjuster's sale," "receiver's sale," "loss-of-lease sale," "closing-out sale," "wholesaler's closing-out sale," "creditor's committee sale," "forced-out-of-business sale" and all sales advertised in such a manner as reasonably to convey to the public that, upon the disposal of the stock of goods on hand, the business will cease and be discontinued.

(Code 1967, § 31-9; Code 1980, § 32-29; Ord. No. 13676, § 2, 4-27-17)

Sec. 32-27. License—Required.

No person shall publish or conduct any sale of the type defined in section 32-26 without first having obtained a license as provided in this article.

(Code 1967, § 31-10; Code 1980, § 32-30)

Sec. 32-28. Same—Application; inventory of stock.

(a) Any person desiring a license to conduct any sale of the type defined in section 32-26 shall make a written application in a form approved by the director of finance and verified by the person or, if a corporation, an officer thereof who intends to conduct the sale. Such application shall contain a description of the place where such sale is to be held, the nature of the occupancy, whether by lease or sublease, and the effective date of termination of such occupancy, the means to be employed in publishing such sale, together with the proposed language to be contained in any advertisements.

(b) Such application shall further contain, as part thereof, an inventory containing a complete and accurate list of the stock of goods, wares and merchandise upon the premises to be sold at such sale. Such verified application shall include the names and addresses of the persons, such as the partners, officers and directors, and the principal stockholders and owners of the business and the inventoried merchandise.

(c) The mentioned inventory shall contain the cost price of the respective articles enumerated therein, together with the date of such purchase and the identity of the seller. If the goods, wares and merchandise were purchased by the applicant or the person for whom he/she is acting as agent for a lump sum, or if there are other circumstances that make the listing of the cost price for each article impracticable, such inventory shall state

*__State law reference—__Fire and going-out-of-business sales, F.S. § 559.20 et seq.

the lump sum paid for such goods, wares and merchandise, and the circumstances of the purchase of the same.

(d) The application shall further state the effective date of the beginning of such sale.
(Code 1967, § 31-11; Code 1980, § 32-31; Ord. No. 13676, § 2, 4-27-17)

Sec. 32-29. Same—Investigation fee.

Upon filing an original application or renewal application for a license to advertise and conduct a sale or special sale, as defined in section 32-26, the applicant shall pay to the director of finance a fee of $26.25. If an application or renewal application is disapproved, such payment shall be forfeited to the city for the cost of investigating the statements contained in such application or renewal application.
(Code 1967, § 31-12; Code 1980, § 32-32; Ord. No. 13142, § 11, 2-11-10)

Sec. 32-30. Same—Inspection of application; issuance; surrender of existing local business tax receipt.

Upon receipt of the application required by section 32-28 and the payment of the fee prescribed in section 32-29, the director of finance shall cause the same to be examined and inspected. If, after such inspection, the director of finance is satisfied as to the truth of the statements contained in such application and as to the form and content of the advertising to be used in connection with such sale, he/she shall issue a license permitting the publication and conduct of such sale; provided that, prior to or at the time of the issuance of such license, the applicant therefor shall surrender for cancellation his/her existing local business tax receipt for the business involved without refund of the fee or any portion thereof paid for the local business tax receipt.
(Code 1967, § 31-13; Code 1980, § 32-33; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13676, § 2, 4-27-17)

Editor's note—Ord. No. 12885, § 1, adopted February 8, 2007, changed the title of § 32-30 from "Same—Inspection of application; issuance; surrender of existing license" to "Same—Inspection of application; issuance; surrender of existing local business tax receipt." The historical notation has been preserved for reference purposes.

Sec. 32-31. Same—Term; supplemental licenses.

(a) The license provided for in this article shall be for a period of time not exceeding 30 calendar days. The period of time during which a sale may be conducted under a license issued under the provisions of this article may be extended by the director of finance if, at any time during the term of the license, a written application for such extension, duly verified by affidavit of the applicant, shall be filed by such licensee with the director of finance. The application for an extension of such license shall state the amount of the goods, wares and merchandise listed in the original inventory, which shall have been sold since the issuance of the license, and the amount of goods, wares and merchandise contained in such original inventory which still remain in the possession of the applicant for sale. No extension of the license shall be granted if any goods, wares or merchandise shall have been added to the stock of merchandise listed in the inventory filed as required by section 32-28 since the date of the issuance of the license, and the applicant shall satisfy the director of finance by affidavit or otherwise, as directed by him/her, that no goods, wares or merchandise have been added to such stock since the date of issuance of the license. The director of finance may, in consideration of the facts, upon hearing such petition, grant or deny a supplemental license, and, if such supplemental license is granted, the period of the extension shall not exceed 15 calendar days from the expiration of the original license and only one supplemental license shall be granted.

(b) The fee to be collected by the director of finance for the issuance of such supplemental license shall be the same as the fee collected for a "closing-out sale" license.
(Code 1967, § 31-14; Code 1980, § 32-34; Ord. No. 13676, § 2, 4-27-17)

Sec. 32-32. Same—Display; inspection of duplicate of application and stock list.

Upon commencement of any sale, as defined in section 32-26, the license issued by the direc-

tor of finance shall be prominently displayed in its original form near the entrance to the premises. No copy of such license shall be otherwise displayed or utilized in any advertisement. A duplicate original of the application and stock list, pursuant to which such license was issued, shall at all times be available to the director of finance and to inspectors of the division of trade standards, and the licensee shall permit such officers to examine all merchandise in the premises for a comparison with such stock list.
(Code 1967, § 31-15; Code 1980, § 32-35)

Sec. 32-33. Supervision and rules and regulations of director of finance.

The director of finance is authorized and empowered to supervise all sales or special sales defined in section 32-26. He/she is further empowered to make such rules and regulations for the conduct and advertisement of such sales as in his/her opinion will serve to prohibit deception and to protect the public. In this connection, inspectors of the division of trade standards shall be deemed to be the duly authorized agents of the director of finance.
(Code 1967, § 31-16; Code 1980, § 32-36; Ord. No. 13676, § 2, 4-27-17)

Sec. 32-34. Advertising—Generally.

All advertisements or advertising and the language contained therein, in reference to a sale conducted under the provisions of this article, shall be in accordance with the purpose of the sale as stated in the application pursuant to which a license was issued, and the wording of such advertisements shall not vary from the wording as indicated in the application.
(Code 1967, § 31-17; Code 1980, § 32-37)

Sec. 32-35. Same—Not to imply city sanction or approval.

No advertising of any sale pursuant to this article shall be so worded or drafted as to indicate that such sale is being conducted under the sanction or with the approval of the city.
(Code 1967, § 31-18; Code 1980, § 32-38)

Sec. 32-36. Books and records; revision of stock list.

Suitable books and records, as prescribed by the director of finance, shall be kept by the licensee and shall at all times be available to his/her inspection. At the close of business each day, the stock list attached to the application shall be revised and those items disposed of during such day shall be so marked thereon.
(Code 1967, § 31-19; Code 1980, § 32-39; Ord. No. 13676, § 2, 4-27-17)

Sec. 32-37. Increase of stock prohibited.

It shall be unlawful for the holder of any license issued under the provisions of this article to bring upon or cause to be brought upon the premises for which the mentioned license is issued any goods, wares or merchandise not shown or otherwise accounted for in the application for such license with intent to advertise, sell or offer for sale such goods, wares or merchandise to the public.
(Code 1967, § 31-20; Code 1980, § 32-40)

State law reference—Similar provisions, F.S. § 559.22.

Sec. 32-38. Inventory.

For identification and checking purposes, all goods, wares and merchandise suitable for tagging or labeling shall be serially numbered and such numbers be recorded in the inventory. Small items or group items may be identified by lot or group number.
(Code 1967, § 31-21; Code 1980, § 32-41)

Sec. 32-39. Sales slip.

Except for inexpensive group items, a sales slip shall be issued to the purchaser and contain thereon the name and address of the business or firm, the date of purchase, and the list of items with prices and corresponding inventory identification numbers. Also, when delivery or shipment is made, the sales slip shall contain the name and address of the purchaser and the name of the salesperson.
(Code 1967, § 31-22; Code 1980, § 32-42)

Sec. 32-40. Certain persons exempt from article.

The provisions of this article shall not apply to or affect the following persons:

(1) Persons acting pursuant to an order or process of a court of competent jurisdiction.

(2) Persons acting in accordance with their powers and duties as public officers, such as sheriffs and marshals.

(3) Duly licensed auctioneers, selling at auction.

(Code 1967, § 31-23; Code 1980, § 32-43)

Secs. 32-41—32-65. Reserved.

ARTICLE III. REFUNDS AND EXCHANGES

Sec. 32-66. Statement of purpose.

This article is designed to protect city consumers, residents and visitors alike, from unfair practices by retail merchants. The primary purpose of this measure is to ensure that establishments which provide for no refund or exchange policy, conspicuously disclose such restrictions. (Ord. No. 10533, § 1, 1-12-89; Code 1980, § 32-81)

Sec. 32-67. Definitions.

For the purpose of this article:

Legal name means the true corporate name of a corporation, or the name of at least one partner of a partnership, or the name of at least one owner of a business that is not a corporation or a partnership.

Point of sale means all cash registers in a retail establishment.

Retail establishment means any store, merchant or organization, excluding not-for-profit organizations, selling merchandise at retail to the general public, but shall not include restaurants.

Sale of merchandise includes the sale, lease or other disposition for profit of goods or products of any type, but shall not include the sale, lease or other disposition of food, perishable goods, goods which are custom made or custom altered at the request of the customer or goods which cannot be resold by the merchant because of any law, rule or regulation adopted by a governmental body. (Ord. No. 10533, § 2, 1-12-89; Code 1980, § 32-82)

Sec. 32-68. Enforcement and penalties.

(a) *Civil enforcement.* To the extent permitted by law and in addition to the provisions of subsection (b) below, the following civil actions may be brought by the city and/or the injured consumer, and shall not be mutually exclusive:

(1) *By city.* Upon recommendation from the city manager that a retail establishment has violated this article, the city attorney may initiate an equity or other action against the owners and/or principal officers of the retail establishment to compel its compliance with this article. In the event there is found to be a violation of this article, the city may recover court costs and reasonable attorney's fees. In any civil action based on this article, if the city proves that the violation occurred after one or more written warnings or notices of violation to the defendant(s), or that the violation was especially offensive or egregious, the court may award punitive damages not exceeding $1,050.00 per violation or three times the price of the merchandise that is the subject of the sale in question, whichever is greater.

(2) *By consumers.* Any person injured by a violation of this article shall have the right to bring a civil action and if he or she prevails shall be awarded compensatory damages and reimbursements of attorney fees and costs. In any civil action based on this article, if the injured consumer proves that the violation occurred after one or more written warnings or notices of violation to the defendant(s), or that the violation was especially offensive or egregious, the court may award punitive damages not exceed-

ing $1,050.00 per violation or three times the price of the merchandise that is the subject of the sale in question, whichever is greater.

(b) *Penalties.* A person, firm or corporation violating or failing to comply with any of the provisions hereof shall, upon conviction, be fined not more than $105.00 for the first offense and not more than $525.00 for the second and each subsequent offense. In addition, the court may, at its discretion, impose on the owner or principal officers of the offending retail establishment a term of imprisonment for up to 60 days for the second or subsequent offense.

(c) *License may be affected.* In addition to the enforcement measures and penalties set forth in subsections (a) and (b) above which are cumulative, the city may take such measures as are lawfully permitted under chapter 31 of the Code of the City of Miami, as amended, dealing with the issuance, renewal, revocation, or suspension of local business tax receipts.
(Ord. No. 10533, § 4, 1-12-89; Code 1980, § 32-83; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13142, § 11, 2-11-10)

Sec. 32-69. Requirements.

(a) *Signs required.* Every retail sales establishment within the city offering goods for sale to the general public that offers no cash refund, credit refund, or exchange or merchandise, must post a sign so stating, at the point of sale.

(b) *Specifications for sign.* The lettering on the posted sign must be at least three-fourths inch in height and three-fourths inch in width. The sign must be posted in a visible and conspicuous place near the point of sale.

(c) *Failure to post sign.* Failure of a retail sales establishment to exhibit a "no refund" sign under such circumstances at the point of sale shall mean that a refund or exchange policy exists, and the policy shall be presented in writing to the consumer upon request.

(d) *Failure to comply.* Any retail establishment failing to comply with the provisions of this article shall grant to the consumer, upon request and proof of purchase, a cash refund, credit refund or exchange of merchandise for the merchandise that is the subject of the sale in question, within seven days of the date of purchase, provided the merchandise is unused and in the original carton, if one was furnished. Nothing herein shall prohibit a retail sales establishment from having a refund policy which exceeds the number of days specified herein.

(e) *When establishment grants refunds or exchanges.* Any retail establishment which has disclosed a policy of offering refunds or exchanges shall promptly grant refunds or exchanges to customers in accordance with said disclosed policies, and no additional conditions shall be imposed on such refunds or exchanges except as disclosed to the customer.

(f) *Sales slips.*

(1) All sales of merchandise in excess of $1.00 but not exceeding $50.00 by a retail establishment shall be accompanied by a receipt disclosing the date of sale, sales price, and the legal name and address of the seller.

(2) Merchandise sold for over $50.00 by a retail establishment shall be accompanied by a written invoice or receipt containing the date of sale, the purchase price, the identification number or description of the merchandise sold, including the model and the manufacturer thereof, the name of the salesperson and the legal name and address of the seller.

(3) A retail establishment using cash registers producing automated sales receipts furnished to the customer simultaneously with the receiving and recording of the consideration involved in the sale or transaction shall be deemed in compliance with the provisions of subsection (f)(2), provided that such sales receipt bears a printed legend or symbols which will enable the customer, upon request made of the retail establishment, to be furnished the information in identifiable form that is required to be furnished as set forth in the preceding paragraphs (1) and (2) of this subsection (f).

(Ord. No. 10533, § 3, 1-12-89; Code 1980, § 32-84)

Chapters 33, 34

RESERVED

CHARTER

AND

CODE

CITY OF

MIAMI, FLORIDA

VOLUME II

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***Editor's note—**Chapter 30 of the Code of Metropolitan Dade County contains traffic regulations applicable throughout the county, including the municipalities in the county. The validity of these regulations was upheld in Miami Shores Village v. Board of County Commissioners, 12 Fla. Supp. 168, and was affirmed by the state supreme court in Miami Shores Village v. Board of County Commissioners, 108 So. 2d 468. Most of the traffic regulations applicable within the city are, therefore, found in or adopted or promulgated pursuant to chapter 30 of the Metropolitan Dade County Code. The regulations contained in this chapter are those permitted by chapter 30 of the county Code or not covered by such chapter.

Charter reference—Powers as to regulation of use of streets generally, § 3(b), (gg).

City Code cross references—Bicycles, ch. 8; dumping on public right-of-way prohibited, § 22-11; living or sleeping in vehicle, § 37-4; cars, trucks, buses or similar vehicles in parks, § 38-50; bicycles, motor bikes, etc., in parks, § 38-51; police, ch. 42; motorized vehicles on piers at city marinas, § 50-227; streets and sidewalks, ch. 54; permit required for parades and processions, § 54-6; vehicles for hire, ch. 57.

Case law reference—A police officer has the right to search the person of a defendant who has been lawfully arrested for a violation of a city traffic ordinance committed in the presence of the officer. City of Miami v. Clay, 14 Fla. Supp. 117.

State law references—Motor vehicles, F.S. ch. 316 et seq.; motor vehicle noise, F.S. §§ 316.293, 403.415 et seq.; identification of vehicles, F.S. § 316.3027; custody and detention of minors, traffic offenders, F.S. § 316.635; vehicle identification, F.S. § 319.33; offenses concerning motor vehicles, F.S. ch. 860.

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ARTICLE I. IN GENERAL

Sec. 35-1. Definitions.

The following words and phrases, when used in this chapter, shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley: Every street or way within a block, set apart for public use, vehicular travel and location convenience, except footpaths.

Authorized emergency vehicle: Vehicles of the fire-rescue department, police vehicles and such ambulances and emergency vehicles of city departments, public service corporations or private ambulance companies or such others as are designated or authorized by the city commission, by the chief of police or by other governmental agency.

Bus: Every public motor vehicle designed for carrying more than ten passengers and used for the transportation of persons, and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.

Bus stand: A fixed area in the roadway parallel and adjacent to the curb to be occupied exclusively by buses, for layover in operating schedules or waiting for passengers.

Commercial vehicle: Every vehicle designed, used or maintained primarily for the transportation of property.

Crosswalk: That portion of a roadway ordinarily included within the prolongation or connection of the lateral lines of sidewalks at intersections, or a portion of a roadway distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Curb loading zones: A space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials.

Department: As used herein this chapter 35 of the City Code, means the Department of Off-Street Parking ("DOSP"), also known as the Miami Parking Authority ("MPA").

Double parking, double standing or double stopping: The parking, standing or stopping of a vehicle upon the roadway side of another vehicle parking, standing or stopping, but not legally within or adjacent to an open parking space.

Driver: Every person who drives or is in actual physical control of a vehicle or who is exercising control of a vehicle or steering a vehicle being towed by a motor vehicle.

Freight, or commercial curb loading zone: A space adjacent to a curb for the exclusive use of commercial vehicles during the loading or unloading of freight, that may be metered.

Holidays: Where used in this chapter or on official signs erected by authorized official agencies shall, in addition to Sundays, mean those entire days declared holidays by this Code or any other ordinance of the city.

Homestead exempt property/resident: A property that receives a homestead exemption or person(s) living in a residence that receives homestead exemption as determined and listed by the Miami-Dade County property appraiser's office. This exemption must be current to be applicable.

Intersection: The area embraced within the prolongation of the lateral curblines or, if none, then the lateral boundary lines of two or more roadways which join one another at an angle, whether or not one such roadway crosses the other. Where a street includes two roadways 30 feet or more apart, then every crossing of each roadway of such divided street by an intersecting street shall be regarded as a separate intersection. In the event such intersecting street also includes two roadways 30 feet or more apart, then every crossing of two roadways of such streets shall be regarded as a separate intersection.

Juveniles: For the purpose of this chapter, all persons under the age of 17 years shall be known and referred to as a "juveniles."

Motor-driven cycle: Every motorcycle, including every motor scooter, with a motor which produces not to exceed five brake horsepower, and every bicycle with motor attached.

Motor vehicle: All vehicles propelled by power (other than muscular power), trailers, semitrailers, trailer coaches and trolley coaches, excepting, however, road rollers and vehicles which operate only upon rails or tracks in place on the ground or that travel through the air or that derive that motive power from overhead electric lines, farm tractors, farm trailers and other machines and tools used in the production, harvesting and care of farm products.

Motorcycle: Every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor.

Official traffic control devices: All signs, signals, markings and devices not inconsistent with this chapter or prohibited by statute, placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning or guiding traffic.

Official traffic control signal: Any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and to proceed.

Owner: Any person, association of persons, firm or corporation in whose name the title to a motor vehicle is registered.

Park or *parking:* The standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading merchandise, prepared food, groceries, or passengers as may be permitted by this chapter or other applicable law.

Parking Access and Revenue Control Systems ("PARCS"): Real-time, self-service parking systems for transient and credentialed customers. PARCS automates the entry, exit, and payment of all customers accessing a parking facility.

Parking enforcement specialist: A parking enforcement specialist employed by the Department of Off-Street Parking ("DOSP"), also known as the Miami Parking Authority ("MPA"), whom is authorized to enforce all state, county, and municipal laws and ordinances governing parking within the boundaries of the municipality and the county, pursuant to F.S. § 316.640(3)(c), as amended from time to time.

Parking meter: A mechanical timing device, or virtual meter, used for the purpose of regulating parking, and which is actuated by the insertion of a coin and the operation of a lever or cranking device, or otherwise operated electronically with or without an online application.

Passenger curb loading zone: An area adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers only.

Pedestrian: Any person afoot.

Police officer: Every officer of the police department or any officer authorized to direct or regulate traffic or to make arrests.

Public right-of-way: That land held in trust by the city between the base building lines, including the sidewalk, swale and parkway area, and the roadway, street and highway.

Right-of-way: The privilege of the immediate use of the street.

Roadway: Those portions of a street or highway improved, designed or ordinarily used for vehicular travel.

Semitrailer: Every vehicle of the trailer type, so designed and used in conjunction with a motor vehicle that some part of its own weight and that of its load rests upon or is carried by another vehicle.

Sidewalk: That portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent property lines, intended for the use of pedestrians.

Smart loading zone: A designated space along the curb dedicated to loading and unloading passengers, food, or goods, regulated, and metered, in part, by sensor, GIS, camera, or software technology.

Stop: When required, means complete cessation of movement.

Stop, stopping or standing: When prohibited, means any halting of a vehicle, even momentarily, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic control sign or signal.

Street or highway: Every way or place of whatever nature open to the use of the public, as a matter of right, for purposes of vehicular travel. The term "street" shall not be deemed to include a roadway or driveway upon grounds owned by private persons, colleges, universities or institutions.

Taxi, taxicab: A licensed public motor vehicle for hire designated and constructed to seat not more than seven persons and operating as a common carrier on call or demand.

Taxicab stand: A fixed area in the roadway parallel and adjacent to the curb set aside for taxicabs to stand or wait for passengers.

Trailer: Every vehicle without motive power, designed to carry property or passengers wholly on its own structure and to be drawn by a motor vehicle.

Transportation Network Company ("TNC"): Businesses that connect passengers with drivers for prearranged trips using an online platform or application. TNC's are also known as rideshare companies, i.e. Uber.

Truck: Any motor vehicle which is used for the transportation or delivery of goods, with a body built and designed for that purpose.

Zoned residential district: Those geographical areas as depicted in the zoning atlas, which is a part of the zoning ordinance of the City of Miami, Florida.

(Code 1967, § 34-1; Ord. No. 10667, § 1, 11-30-89; Code 1980, § 35-1; Ord. No. 14340, § 2, 12-12-24; Ord. No. 14397, § 2, 9-25-25)

County Code cross reference—Similar provisions, § 30-202.

State law reference—Similar provisions, F.S. § 316.003.

Sec. 35-2. Applicability of chapter generally.

This chapter applies to every street, loading zone, alley, sidewalk, driveway, park area and every other way or public property, either within or outside the city, the use of which the city and/or the Department, has jurisdiction and authority to regulate.

(Code 1967, § 34-2; Code 1980, § 35-2; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-3. Placing advertising in or on vehicles.

It shall be unlawful for any person to throw into or upon any bus or automobile or other vehicle any handbill, dodger or advertising notice without the consent of the owner or operator thereof.

(Code 1967, § 38-21; Code 1980, § 37-29)

County Code cross reference—Throwing advertising materials in motor vehicles, § 30-258.

State law reference—Throwing advertising materials in motor vehicles, F.S. § 316.2055.

Sec. 35-4. Hitchhiking.

No person shall stand in a roadway for the purpose of soliciting a ride from anyone other than a ride-hailing service.

(Code 1967, § 38-22; Code 1980, § 37-30; Ord. No. 14340, § 2, 12-12-24)

State law reference—Power of local authorities to control, regulate, or prohibit hitchhiking, F.S. § 316.008(1)(u).

Sec. 35-5. Play streets.

(a) The city manager is hereby authorized to declare and to establish, whenever he/she shall find that the public safety and convenience are best served thereby, any street or part thereof a play street and to place appropriate signs and barricades enclosing the roadway indicating and helping to protect the same.

(b) Whenever authorized signs and barricades are erected enclosing any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof.

(Code 1967, § 34-6; Code 1980, § 35-6; Ord. No. 13676, § 2, 4-27-17)

State law reference—Power of local authorities to designate and regulate traffic on play streets, F.S. § 316.008(1)(p).

Sec. 35-6. Obedience to official traffic control devices.

(Code 1967, § 34-6; Code 1980, § 35-7)

County Code cross reference—Obedience to official traffic control devices, § 30-217(1).

State law reference—Obedience to official traffic control devices, F.S. § 316.074.

Sec. 35-7. Interference with traffic control devices, etc.; driving around or over barricade.

(Code 1967, § 34-6; Code 1980, § 35-8)

County Code cross references—Interference with traffic control devices, etc.; driving around or over barricade, § 30-217(2); detour signs to be respected, § 30-220.

State law references—Interference with official traffic control devices or railroad signs or signals, F.S. § 316.0775; detour signs to be respected, F.S. § 316.078.

Sec. 35-8. Disabled pedestrians—Generally.

(Code 1967, § 34-6; Code 1980, § 35-9)

State law reference—Disabled pedestrians, F.S. § 316.1301.

Sec. 35-9. Same—Right-of-way; precautions to avoid injury.

(Code 1967, § 34-6; Code 1980, § 35-10)

State law reference—Disabled pedestrians, F.S. § 413.08.

Sec. 35-10. Parking for certain purposes prohibited.

(a) No person shall park a vehicle upon any street or within the public right-of-way for the principal purpose of:

(1) Displaying such vehicle for sale.

(2) Washing, greasing or repairing such vehicle, except repairs necessitated by an emergency.

(3) Displaying advertising.

(4) Selling merchandise from such vehicle, except in a duly established marketplace, or when so authorized or licensed under this Code or other ordinances of the city.

(5) Storage, or as junkage or dead storage for more than 24 hours.

(b) No person shall park a commercial vehicle, bus, trailer or semitrailer upon any street or within the public right-of-way in any zoned residential district of the city.

(c) No person shall park upon any street or within the public right-of-way in any zoned residential district of the city a truck with any of the following characteristics:

(1) The weight is one-ton capacity or more.

(2) The height is eight feet or taller, including ladders or other attachments to the top of the vehicle.

(3) The width exceeds six feet ten inches, excluding mirrors.

(4) The overall length exceeds 18 feet six inches.

(5) Open trucks having load space exceeding nine feet six inches in length.

(6) It has dual wheels.

(7) It has more than two axles.

(d) Except in conjunction with authorized active continuing construction on the abutting premises, no person shall park construction equipment such as earth moving machines, excavators cranes and the like, within the public right-of-way in any zoned residential district.

(e) No person shall park major recreational equipment such as travel trailers, pickup campers, motorized homes, tent campers, tents, boats and boat trailers, combinations thereof, and other similar equipment, cases or boxes for transporting such equipment, whether occupied by such equipment or not, upon any street or within the public right-of-way in any zoned residential district, except for a period not to exceed one hour for the purpose of loading and unloading.

(f) The enforcement of this section may be initiated by city personnel listed in City Code section 2-813 in accordance with the procedure set forth in the City Code section 2-814, or by enforcement specialists from the Department of Off-Street Parking ("DOSP"), also known as the

Miami Parking Authority ("MPA"), pursuant to F.S. § 316.640(3)(c), as amended from time to time.

(Code 1967, § 34-25; Ord. No. 10667, § 1, 11-30-89; Code 1980, § 35-11; Ord. No. 14340, § 2, 12-12-24)

County Code cross reference—Similar provisions, § 30-388.15.

State law reference—Similar provisions, F.S. § 316.1951.

Sec. 35-11. Immobilization/booting of motor vehicles.

(a) Notwithstanding anything to the contrary under division 3, chapter 35 of the City Code, the MPA may immobilize/boot a motor vehicle which is parked within an MPA owned and/or operated parking facility for any of the following reasons:

(1) Vehicles parked or stored for more than 72 consecutive hours without MPA authorization.

(2) After the third tailgating violation within a one-year period.

(3) Vehicles deemed by the MPA as abandoned and/or inoperable.

(b) Procedure for immobilization/booting of vehicles.

(1) Identify vehicles and provide reason for immobilization/booting.

(2) For vehicles parked over 72 consecutive hours and deemed to be abandoned or inoperable, the MPA may attempt to notify the owner, operator, or person legally in control of the vehicle to promptly retrieve said vehicle before MPA commits to any immobilization/booting activity. A verbal warning to the owner, operator, or person legally in control of the vehicle shall also satisfy this requirement.

(3) MPA authorized personnel will place the immobilization apparatus/boot once the reason for immobilization/booting is approved and confirmed by an MPA senior manager or director of operations.

(4) Immobilization/booting shall be accomplished by placing one steel boot on the wheel of the motor vehicle, or similar immobilization apparatus.

(5) Upon immobilization/booting, MPA will immediately affix a warning notice in English, Spanish, and Creole on the driver's side window of the vehicle indicating: (i) the immobilization/booting of the vehicle, (ii) that any attempt to move such immobilization apparatus/boot will cause damage to the vehicle, (iii) showing the telephone number to contact MPA personnel for release of the immobilization apparatus/boot, and (iv) the fee required for the removal of the immobilization apparatus/boot.

(6) The customer must pay the amount due and an administrative fee to MPA, in accordance with the rates under subsection (c) below, as may be amended from time to time.

(7) Once payment is finalized, the immobilization apparatus/boot will be removed by MPA authorized personnel.

(c) Fees.

(1) Amount due for either tailgating or extended stay (facility daily rates will apply).

(2) Administrative fee: $50.00.

(d) Facilities subject to immobilization/booting under this section are as follows:

(1) Courthouse Center Garage (40 NW 3rd Street Miami, FL 33128)

(2) Cultural Arts Garage (90 SW 1st Street Miami, FL 33130)

(3) College Station Garage (190 NE 3rd Street Miami, FL 33132)

(4) James L. Knight Center Garage (100 SE 2nd Street Miami, FL 33131)

(5) Regatta Harbour Garage (3351 Pan American Dr. Miami, FL 33133)

(6) Lot 18 (1320 NW 12th Street Miami, FL 33125)

(7) Lot 26 (1355 NW 12th Street Miami, FL 33125)

(8) Lot 72 (2600 S. Bayshore Dr. Miami, FL 33133)

(e) Signage requirements.

(1) Signs shall be placed visibly at each vehicle entry point.

(Ord. No. 14340, § 2, 12-12-24)

Sec. 35-12. Parking for homestead exempt properties.

Notwithstanding any other City Code provision, city guideline, or city policy, a resident of a homestead exempt property may use the adjacent green space, if any, to an improved parking surface accessible through a driveway and/or driveway approach as additional parking for a maximum of two motor vehicles. The motor vehicle(s) must be operable with a current registration and an unexpired tag and must not otherwise be prohibited from parking at a residence as set forth in section 35-10 herein. The motor vehicle(s) parked on green space may not impede on-site drainage. This subsection does not eliminate or modify any parking requirement or parking regulation and/or required accommodation set forth in the Miami 21 Code. Code enforcement shall have jurisdiction for the proper and effective enforcement of this section, under chapter 2, article X.

(Ord. No. 14397, § 2, 9-25-25)

Secs. 35-13—35-35. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

Sec. 35-36. Duties of police department.

It shall be the duty of the chief of police and other members of the police department to enforce the provisions of this chapter and the state and county vehicle laws applicable to traffic in the city, to make arrests for traffic violations, to assist in the prosecution of persons charged with such violations, to investigate accidents, to cooperate with the officials of the city and the county in the administration of this chapter and county traffic ordinances and in developing ways and means to improve traffic conditions, and to carry out those duties especially imposed by this chapter and the traffic ordinances of the county.

(Code 1967, § 34-11; Code 1980, § 35-21)

State law reference—Obedience to police and fire department officials, F.S. § 316.072(3).

Sec. 35-37. Storage charges at auto pound.

(a) The commission hereby establishes the following daily charges at the city auto pound for the storage of motor vehicles as follows:

	Daily Fee
Motorcycles	$ 6.00
Passenger vehicles	8.00
Trucks	10.50

(b) With respect to stolen motor vehicles, the above daily charges shall not commence until either: (a) 24 hours after the owner of said vehicle has been personally notified that the vehicle is impounded and the location of its impoundment; or (b) seven days after notice of such impoundment and location has been sent via regular mail and via certified mail, return receipt requested, to the address of the owner as reflected on the registration or title records of the state agency having custody of such records, whichever occurs earlier.

(Code 1967, § 34-21.1; Ord. No. 9201, § 1, 11-26-80; Ord. No. 9268, § 1, 5-15-81; Code 1980, § 35-33)

Secs. 35-38—35-95. Reserved.

*__County Code cross reference—__Enforcement of traffic laws within the county, § 30-204.

__State law reference—__Enforcement of state traffic laws, hot pursuit, F.S. § 316.640.

ARTICLE III. PARKING METER ZONES*

DIVISION 1. GENERALLY

Sec. 35-96. Designation of certain zones; installation of meters.

(a) The director of the department of off-street parking is hereby authorized to determine and designate metered parking zones and to install and maintain upon any of the streets or parts of streets as many parking meters as necessary in such metered parking zones, where it is determined that the installation of parking meters shall be necessary to aid in the regulation, control, and inspection of the parking of vehicles. For purposes of this section metered parking zones and paid parking zones shall have the same meaning.

(b) Except where proposed paid parking zone(s) will be within 250 feet of a T3-R, T3-L or T3-O transect zone, a notice as provided herein of the proposed paid parking zone(s) is not required. In areas within 250 feet of a T3-R, T3-L or T3-O transect zone, notice must be provided along with an opportunity for submittal of written comments from property owners and/or registered associations as defined in this section in the affected area(s). Such notice shall be sent via certified mail return receipt requested and regular mail prior to any new installation of the paid parking zone(s).

(1) For purposes of this section, *owners in the affected area(s)* shall mean persons who are the fee simple owners of the properties in the affected areas. For purposes of this section, affected area(s) shall mean properties who are located within 250 feet of the property lines of the land for which the notice under the provisions of this section is being

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***County Code cross reference—**Authority of municipalities within county to establish parking meter zones, subject to approval of county traffic director, § 30-383.

State law reference—Power of local authorities to regulate or prohibit parking, F.S. § 316.008(1)(a).

requested, as applicable. The public notice will be afforded only when the proposed paid parking zones are to be located within 250 feet of a T3-R, T3-L or T3-O transect zone and shall consist of notice by certified mail, return receipt requested to the affected owners at least 30 days before any paid parking zone(s) installation. The applicant for the paid parking zone placement shall be charged the cost of the appropriate fee for the notices. The applicant shall be the public agency or instrumentality who is seeking the designation of a paid parking zone within 250 feet of the above listed T3 transect zones. Additionally, the applicant shall obtain a list from the city manager's office or its designated city department of the registered neighborhood and/or homeowners associations ("registered association(s)") applicable to the property for the application in question and shall notify the official representative of such registered association(s). Registered associations who wish to receive such notice must register on an annual basis at the city manager's office or its designated city department.

(2) The owners and/or the representative of the registered association in the affected areas upon the receipt of notice may provide written input or comment to the director of the department of off-street parking and the director of the department of resilience and public works, or their respective designees, as to why the paid parking zones are not necessary or not viable considering the impact of the paid parking zones on the parking needs, availability, accessibility, convenience, and suitability in the affected area as well as the need for the paid parking zones in the affected area. The owners in the affected areas may present information relative to the impact of the proposed paid parking zone on their residences or businesses, as applicable.

(c) Prior to final designation of any proposed paid parking zone and/or the installation of parking meters therein, the proposed zones and the proposed installation of the proposed paid parking zone and/or parking meters therein shall first be submitted to the city manager or their designee for approval thereof. All existing paid parking and/or metered parking zones shall be subject to review by the city manager or their designee and modifications thereto, including, but not limited to, additions, removals and relocations shall be subject to the approval of the city manager or their designee.

(Code 1967, § 34-26; Ord. No. 10243, § 1, 3-13-87; Code 1980, § 35-46; Ord. No. 13659, § 2, 2-9-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14138, § 11, 2-9-23)

Secs. 35-97—35-120. Reserved.

DIVISION 2. PUBLIC OFF-STREET PARKING FACILITIES*

Sec. 35-121. Definitions.

The following words and phrases, when used in this division, shall have the meanings respectively ascribed to them in this section, except where the context clearly indicates a different meaning:

Off-street parking lots: Any parking facility owned and/or managed and operated by the department of off-street parking and used for the purpose of permitting the general public to park their motor vehicles either at a meter parking zone or at a designated parking space or area.

Parking facilities: Any parking facility owned and/or managed and operated by the department of off-street parking for the use of the general public to park motor vehicles.

(Code 1967, § 34-33; Code 1980, § 35-63; Ord. No. 14340, § 2, 12-12-24)

*__Charter reference—__Department of off-street parking, off-street parking board, § 23-A.1.

__City Code cross references—__Off-street parking department, § 2-301; parking charges at Orange Bowl Memorial Stadium, § 53-86.

__County Code cross reference—__Applicability of county Code to parking, standing or nonmoving traffic violations in municipal off-street parking lots, § 30-203.

__State law references—__Special act authorizing city to acquire, construct, etc., parking facilities, Laws of Fla. (1951), ch. 27725; power of local authorities to regulate or prohibit parking, F.S. § 316.008(1).

Sec. 35-122. Applicability of division.

The provisions of this division shall be applicable to any parking, standing or nonmoving traffic violation promoted within the boundaries of any off-street parking lots or parking facilities owned and/or managed, and operated by the department of off-street parking.
(Code 1967, § 34-34; Code 1980, § 35-64; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-123. General duties of director of off-street parking.

It is the general duty of the director of off-street parking to plan and determine the installation of parking meters and parking spaces and to plan and direct the operation of traffic on off-street parking lots within their jurisdiction, including parking areas and loading and unloading zones. The director of off-street parking is authorized to designate crosswalks, mark traffic lanes for movement of traffic, designate traffic control signs and devices and lane markings, and determine the hours and days during which any traffic control devices, including the use of license plate recognition systems (LPR), shall be in operation or be in effect; shall determine the location of angle parking zones, restrict parking in hazardous places designated by proper signs in which the stopping or parking of vehicles would create an especially hazardous condition or cause unusual delay in moving of traffic (e.g., parking on loading zones); prescribe parking in designated areas; and shall cause to be erected signs in areas limiting the parking time and giving notice thereof.
(Code 1967, § 34-35; Code 1980, § 35-65; Ord. No. 14340, § 2, 12-12-24)

Secs. 35-124—35-150. Reserved.

DIVISION 3. REGULATIONS

Sec. 35-151. Parking when meter shows violation.

No person shall park any vehicle or permit any vehicle to remain parked in any parking meter space when the parking meter for the space occupied by such vehicle shows a violation.
(Code 1967, § 34-40; Code 1980, § 35-75)

Sec. 35-152. Parking longer than maximum time shown on meter.

No person shall park any vehicle or permit any vehicle to remain parked in any parking meter space for a continuous period of time greater than the maximum provided for on the meter.
(Code 1967, §§ 34-27, 34-41; Code 1980, §§ 35-47, 35-76)

Sec. 35-153. Parking longer than time indicated on signs.

When signs are erected giving notice thereof, no person shall stop, stand or park a vehicle in any parking meter zone for a continuous period of time longer than that period of time designated by such signs, or on the online application, on any day including Saturdays, Sundays and all legal holidays, unless otherwise posted.
(Code 1967, §§ 34-29, 34-42; Code 1980, §§ 35-49, 35-77; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-154. Manner of parking in metered spaces.

Every vehicle shall be parked wholly within the metered parking space for which the meter shows a parking privilege has been granted, and with the front end of such vehicle immediately opposite the parking meter for such space.
(Code 1967, §§ 34-28, 34-43; Code 1980, §§ 35-48, 35-78)

Sec. 35-155. Vehicles to be parked at angle indicated.

All vehicles shall be parked at the prescribed angle to the curb or edge of roadway that may be indicated by signs or markings.
(Code 1967, § 34-44; Code 1980, § 35-79)

Sec. 35-156. Obstructing traffic.

No vehicle shall be parked so as to obstruct traffic, including without limitations, parking in

loading zones beyond the prescribed time period allocated to the permit holder per vehicle operator.
(Code 1967, § 34-45; Code 1980, § 35-80; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-157. Parking time limit for certain designated areas.

When signs authorized by the director of off-street parking are erected giving notice thereof, no person shall stop, stand or park a vehicle in the area designated by such sign for longer than the time provided by such sign.
(Code 1967, § 34-46; Code 1980, § 35-81)

Sec. 35-158. Parking prohibited in certain places.

When signs authorized by the director of off-street parking are erected prohibiting parking in a place designated by such sign, no person shall stop, stand or park a vehicle in such designated place.
(Code 1967, § 34-47; Code 1980, § 35-82)

Sec. 35-159. Deposit of slugs, etc., in meters.

It shall be unlawful for any person to deposit or attempt to deposit in any parking meter anything other than a credit card or lawful coin of the United States, or any coin that is bent, cut, torn, battered or otherwise misshapen.
(Code 1967, §§ 34-30, 34-38; Code 1980, §§ 35-50, 35-68; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-160. Tampering with, damaging, etc., meters, or signs.

It shall be unlawful for any unauthorized person to remove, deface, tamper with, open, willfully break, destroy or damage any parking meter, PARCS equipment, or sign, and no person shall willfully manipulate any parking meter in such a manner that the indicator will fail to show the correct amount of unexpired time before a violation.
(Code 1967, §§ 34-31, 34-36, 34-37; Code 1980, §§ 35-51, 35-66, 35-67; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-161. Use of revenue.

All revenue collected regardless the manner or form, including coins deposited in parking meters, shall be used to provide for the proper regulation and control of traffic upon the public streets, insofar as the city is authorized to exercise such authority, and to cover the cost of the supervision, inspection, installation, operation, maintenance, control and use of parking spaces and parking meters, together with the cost of supervising and regulating the parking of vehicles in parking meter zones.
(Code 1967, §§ 34-32, 34-38; Code 1980, §§ 35-52, 35-68; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-162. Form of notice of violation; monthly report on disposition of notices issued.

The city shall provide suitably serial-numbered forms for notifying alleged violators to appear in answer to charges violating the regulations contained in this division. Such forms shall be issued and receipted for by the chief or police officer.
(Code 1967, § 34-48; Code 1980, § 35-83)

Secs. 35-163, 35-164. Reserved.

Editor's note—Ord. No. 14340, § 2, adopted December 12, 2024, repealed the former sections 35-163 and 35-164 in their entirety. Formerly, sections 35-163 and 35-164 pertained to failure to appear and pay fine within prescribed time and penalty for violations of division, respectively, and derived from the Code of 1967, §§ 34-49, 34-50; the Code of 1980, §§ 35-84, 35-85, and Ord. No. 13676, § 2, adopted April 27, 2017.

Sec. 35-165. Invoice and citations by mail.

(a) An invoice for parking charges issued for failure to pay metered parking for motor vehicle parking must be placed on the motor vehicle in a prominent location or mailed within five business days of the violation. A late fee may not be assessed until expiration of the 15-day period following the denial of any appeal filed pursuant to subsection (b) or for a period of at least 30 days after the invoice is placed on the motor vehicle or the postmarked date of the mailing, whichever is later.

(b) An invoice for parking charges issued under this Section must include a method to dispute and appeal the invoice by a party who believes they have received the invoice in error. Such dispute must be filed within 15 days after the invoice is placed on the motor vehicle or after the postmarked date of the mailing of the invoice. Within five business days a decision shall be rendered on the filed dispute. The party may then, within ten days after receipt of the owner's or operator's decision, appeal such decision. As stated in the decision and provided by the invoice issuer, the appeal must be determined by a neutral third-party adjudicator, with the authority to review and approve or deny the appeal. If the appeal is approved, the invoice shall be dismissed. If the appeal is denied, the party shall pay the original invoice within 15 days after the decision of the adjudicator.

(c) In the event that an invoice remains unpaid following the issuance of a final notice to the violator regarding the failure to remit payment, a Miami Dade County parking citation may be issued. The issuance date of said citation shall correspond to the postmarked date of the notice. (Ord. No. 14340, § 2, 12-12-24)

Secs. 35-166—35-190. Reserved.

ARTICLE IV. PARKING RATES*

Sec. 35-191. On-street parking meters, monthly on-street permit program, and loading zones.

On-street parking meters:

(a) The maximum hourly rate of charge, and fees for parking in metered spaces in on-street parking meter zones, and on-street monthly permit zones, except as otherwise provided herein, are as follows:

Central Business District:

All streets and avenues in the area bounded by N.W./N.E. 5 Street to S.E. 4 Street between N.W. N. River Drive/S.W. N. River Drive to Biscayne Boulevard including Chopin Plaza and Old Port Boulevard:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$3.25
Monthly permit for residents (after 5:00 p.m. and before 7:00 a.m.).....	$70.00
Monthly permit for non-residents (after 5:00 p.m. and before 7:00 a.m.).....	$90.00

Arena area:

All streets and avenues in the area bounded by N.E./N.W. 5 Street to N.W./N.E. 14 Street between N.W. 7 Avenue and Biscayne Boulevard:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$3.00
Monthly permit for residents	$70.00
Monthly permit for non-residents.....	$90.00

Omni/Edgewater area:

All streets and avenues in the area bounded by N.E. 14 Street to N.E. 87 Terrace between Miami Avenue and N.E. 5 Avenue including McArthur Causeway:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$3.00
Monthly permit for residents	$70.00
Monthly permit for non-residents.....	$90.00

Coconut Grove:

S. Dixie Highway/US1 to S. Bayshore Drive/Main Highway between Le Jeune Road to S.W. 22 Avenue:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$3.00

*__City Code cross reference__—Parking rates at convention center, § 53-181.

County Code cross reference—Metrorail parking, § 30B-6.

Monthly permit for residents	$70.00
Monthly permit for non-residents	$90.00

Civic Center area:

All streets and avenues in the area bounded by N. River Drive/ N.W. 12 Street/N.W. 13 Street to N.W. 20 Street between N.W. 17 Avenue and N.W. 12 Avenue:

Resident rate per hour	$1.40
Non-resident rate per hour	$3.00
Monthly permit for residents	$70.00
Monthly permit for non-residents	$110.00

Jackson Memorial area:

All streets and avenues in the area bounded by N.W. 12 Avenue, to N.W. 7 Avenue and N.W. 20 Street to N.W. 14 Street:

Resident rate per hour	$1.40
Non-resident rate per hour	$3.00
Monthly permit for residents	$70.00
Monthly permit for non-residents	$90.00

Design District:

All streets and avenues in the area bounded by N.W./N.E. 36 Street and N.W./N.E. 54 Street between N.E. 5 Avenue/Biscayne Boulevard and N.W. 7 Avenue:

Resident rate per hour	$1.40
Non-resident rate per hour	$3.25
Monthly permit for residents	$75.00
Monthly permit for non-residents	$110.00

Little River area:

All streets and avenues in the area bounded by N.W./N.E. 54 Street to N.W./N.E. 87 Terrace between N.E. Bayshore Court and N.W. 7 Avenue:

Resident rate per hour	$1.40
Non-resident rate per hour	$2.50
Monthly permit for residents	$70.00
Monthly permit for non-residents	$90.00

Wynwood / Garment Center area:

All streets and avenues in the area bounded by N.W. 6 Avenue and N. Miami Avenue between N.W. 20 Street and N.W. 29 Street:

Resident rate per hour	$1.40
Non-resident rate per hour	$3.25
Monthly permit for residents	$70.00
Monthly permit for non-residents	$90.00

Midtown area:

NW 6 Avenue to NE 2 Avenue between NE/NW 29 Street to 36 Street:

Resident rate per hour	$1.40
Non-resident rate per hour	$3.00

S.W. 8 Street area:

All Avenues in the area bounded by S.W. 8 Street from Brickell Avenue to S.W. 74 Court:

Resident rate per hour	$1.40
Non-resident rate per hour	$3.25
Monthly permit for residents	$55.00
Monthly permit for non-residents	$70.00

27th Avenue area:

N.W./S.W. 27 Avenue between US1 and N.W. 20 Street including all side streets:

Resident rate per hour	$1.40
Non-resident rate per hour	$1.75
Monthly permit for residents	$60.00
Monthly permit for non-residents	$70.00

West Flagler Street and S.W. 1 Street area:

All streets and avenues in the area bounded by West Flagler Street S./N. River Drive to S.W./N.W. 72 Avenue:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$1.75
Monthly permit for residents	$45.00
Monthly permit for non-residents.....	$60.00

S.W. 1 Street between 5 and 22 Avenues:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$1.75
Monthly permit for residents	$45.00
Monthly permit for non-residents.....	$60.00

N.W. 7 Street between 10 Avenue and 57 Avenue:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$1.75
Monthly permit for residents	$45.00
Monthly permit for non-residents.....	$60.00

Brickell area:

All streets and avenues in the area bounded by S.W. 32 Road and S.W. 5 Street between Brickell Bay Drive/I-95/S.W. 4 Avenue:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$3.25
Monthly permit for residents	$110.00
Monthly permit for non-residents.....	$200.00

Coral Way area:

All streets and avenues in the area bounded by S.W. 12 Avenue and 37 Avenue between S.W. 21-22 Terrace, S.W. 37 Avenue to US1 from S.W. 36 Avenue to S.W. 39 Avenue. Bird Avenue to US1 from S.W. 37 Avenue to S.W. 39 Avenue:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$1.75
Monthly permit for residents	$75.00
Monthly permit for non-residents.....	$90.00

Allapattah area:

All streets and avenues in the area bounded by I-95 and N.W. 27 Avenue from N.W. 19 Street and N.W. 38 Street and from N.W. 36 Street to N.W. 34 Avenue:

Resident rate per hour.....	$1.40
Non-resident rate per hour.	$1.75
Monthly permit for residents	$70.00
Monthly permit for non-residents.....	$90.00

Loading zones:

(1) A smart loading zone is defined as a designated space along the curb dedicated to loading and unloading passengers, food, or goods, regulated, and metered, in part, by sensor, GIS, camera, or software technology.

(2) The director, or their designee, is hereby authorized to determine the location and effective hours of smart loading zones by the placement of appropriate signs.

a. Sign will have hours of operation posted (Example: 8AM to 6PM)

b. Sign will have maximum time limit allowed to park (Example: 60 Minute Max Time)

c. Signs will describe the type of use, example Freight, Parcel, TNC (Ride-share or ride hailing), Micro delivery, and food pick up drop off delivery.

(3) The maximum continuous legal time a vehicle may be parked in the same location within a smart loading zone shall not exceed one hour.

(4) The director shall cause appropriate signage to be installed and maintained in any location designated as a smart loading zone pursuant to this section.

(5) All smart loading zones shall be accompanied by signage advising the public of the presence of the sensor, camera, Global Positioning Systems (GPS), Global Information Systems (GIS), or software technology monitoring the smart loading zone.

(6) Any smart loading zone established by this section shall be subject to the parking rates as follows:

Minutes	Rate Per Minute	Total Maximum Cost
0—5	$ 0.00	$ 0.00
6—15	0.05	0.45
16—30	0.16	4.80
30—60	0.26	15.60

(7) Vehicle operators parked in any smart loading zone shall deposit payment in the manner prescribed on smart loading zone signage.

a. This includes but is not limited to invoices by U.S. Mail.

Vehicles may be billed for the time they parked plus an administrative fee via regular U.S. Mail.

b. Vehicles can register for the smart loading zone program and will receive a monthly invoice for the time vehicle occupied the smart loading zone.

8. The director is authorized to oversee regulations as are deemed necessary or appropriate for the proper administration and enforcement of this section.

9. Whoever violates or fails to comply with any provision of this section may be subject to a citation under Chapter 30 of the Miami Dade County Traffic and Motor Vehicles Code, as amended.

(b) Demand base pricing. The department of off-street parking ("DOSP") may implement demand based pricing from time to time, based on demand and special events. Average occupancy for each zone may be evaluated to adjust pricing to fluctuating demand. Pricing will be adjusted accordingly, using the following criteria:

Zones that show occupancy greater than 75 percent increase by $1.00 from the then existing rate until the maximum rate is in effect.

Areas that have wide variations throughout the day may be split into peak and off-peak pricing tiers. Rate changes may be applied to peak and off-peak times independently. The maximum rate will be set at $6.00. This pricing may apply during special events.

(c) The following fees will be assessed during special events, film production, and construction uses for on-street parking space rental:

(1) Fifty dollar administrative fee per event assessed for any parking space rental.

(2) The rental rate of $30.00 per on-street parking space per day will be assessed during special events and construction uses.

(3) The rental rate of $30.00 per on-street parking space per day will be assessed during film production, in addition to a $2,000.00 flat fee, plus all other applicable fees.

(d) Monthly on-street permit program. The monthly on-street permit program is available, in certain areas of the city, pursuant to this chapter, on a first-come, first-serve space available basis. Permits are to be issued by DOSP. The chief executive officer ("director") is expressly authorized to implement this program and shall oversee and develop these special on-street parking permit areas as they are deemed necessary by the director where the director determines that sufficient off-street parking facilities are not available in an area to accommodate monthly parking demand. Such areas will be subject to all applicable laws, resolutions, rules and guidelines governing their operation established by the city commission and/or board/DOSP. Monthly parking patrons may not pre-purchase on-street permits for more than one month at a time. On-street permits can only be purchased on a month to month basis and payment is due

on the first of the month. DOSP will strictly enforce correct usage of permits, not allowing for any grace period.

(e) City employees who reside within the city will be able to receive a 20 percent discount towards the purchase of one monthly permit [(one permit)], as long as they remain eligible. Each additional permit will be sold at regular price.

(f) On-street parking spaces, loading zones, and monthly permit rates may be increased by resolution of the off-street parking board to a maximum of three percent annually in any individual fiscal year, or at an accrued annual rate of up to three percent.

(Ord. No. 9053, § 1, 1-10-80; Ord. No. 9213, § 1, 12-17-80; Ord. No. 9308, § 1, 9-10-81; Ord. No. 9377, § 1, 3-11-82; Ord. No. 9450, § 1(a), 6-17-82; Ord. No. 9632, § 1, 6-9-83; Ord. No. 9917, § 1, 10-10-84; Ord. No. 10027, § 1, 7-25-85; Ord. No. 10460, § 1, 7-14-88; Ord. No. 10641, § 1, 9-28-89; Code 1980, § 35-91; Ord. No. 11298, § 1, 9-14-95; Ord. No. 11871, § 2, 12-14-99; Ord. No. 12438, § 2, 11-13-03; Ord. No. 12644, § 2, 1-13-05; Ord. No. 13108, § 6, 10-8-09; Ord. No. 13368, § 2, 3-14-13; DOSP Res. No. 14-03, § 1 (Exh. A), 7-31-14; Ord. No. 13814, § 2, 12-13-18; Ord. No. 14340, § 2, 12-12-24)

Editor's note—Per Miami City Code, on-street parking meters and monthly permit rates may be increased by resolution of the Department of Off-Street Parking Board (DOSP).

Ord. No. 12438, § 2, adopted November 13, 2003, changed the title of § 35-191 from "On-street parking meters" to "On-street parking meters and monthly on-street permit program."

Sec. 35-192. Municipal parking garages.

(a) The rates charged for parking in off-street municipal garages are as follows (all rates include parking surcharge and all applicable sales tax):

(1)	*Municipal Garage No. 1 (Courthouse Center Garage):*	
	Half-hour	$5.00
	Early bird (in by 9:00 a.m., out between 2:00 p.m.—6:00 p.m.)	$10.00
	Maximum (within 24 hours)	$30.00
	Special event	$50.00
	Weekend special, per day	$10.00
	Monthly	$200.00
(2)	*Municipal Garage No. 2 (Cultural Center Garage):*	
	Half-hour	$5.00
	Early bird (in by 9:00 a.m., out between 2:00 p.m.—6:00 p.m.)	$10.00
	Maximum (within 24 hours)	$30.00
	Special event	$50.00
	Weekend special, per day	$7.00
	Monthly	$200.00
(3)	*Municipal Garage No. 3 (College Station Garage):*	
	Half-hour	$5.00
	Early bird (in by 9:00 a.m., out between 2:00 p.m.—6:00 p.m.)	$10.00
	Maximum (within 24 hours)	$30.00
	Special event	$50.00
	Monthly	$200.00
(4)	*Municipal Garage No. 4 (James L. Knight Center Garage):*	
	Half-hour	$5.00
	Early bird (in by 9:00 a.m., out between 2:00 p.m.—6:00 p.m.)	$10.00
	Maximum (within 24 hours)	$30.00
	Special event	$50.00
	Monthly	$200.00
	Reserved monthly	$275.00
(5)	*Municipal Garage No. 9 (Allapattah Parking Garage):*	
	Daily, per hour	$1.00
	Maximum:	$5.00
	Monthly	$50.00

(6) *Grove Bay Garage (3385 Pan American Drive):*

Per hour	$4.00
Maximum	$20.00
Maximum (within 24 hours)	$30.00
Special event	$50.00
Monthly	$200.00

(7) *Marlins Park Garages:*

Daily, per hour	$1.00
Maximum, per hour	$5.00
Monthly parking	$100.00

Rates not applicable during "MLB Events", "Other Events" or "Stadium Events" as defined by, and subject to any additional provisions of, the City Parking Agreement entered into on or about April 15, 2009, by and among the City of Miami, Miami-Dade County and Marlins Stadium Operator, LLC.

(b) These parking garage rates may be increased by resolution of the off-street parking board to a maximum of three percent annually in any individual fiscal year, or at an accrued annual rate of three percent.

(c) The following fees will be assessed during special events, film production, and construction uses for off-street parking garage rental within the above garages:

(1) Fifty dollar administrative fee per event assessed for any parking space rental.

(2) The rental rate of $50.00 per off-street parking space per day will be assessed during special events and construction uses.

(3) The rental rate of $50.00 per off-street parking space per day will be assessed during film production in addition to a $2,000.00 flat fee.

(d) Locations and applicable parking rates of new parking garages, and other parking facilities including parking lots which are not currently listed above, may be added by resolution of the off-street parking board.

(Code 1967, § 34-50.1; Ord. No. 9053, § 1, 1-10-80; Ord. No. 9213, § 2, 12-17-80; Ord. No. 9308, § 2, 9-10-81; Ord. No. 9450, § 2(a), 6-17-82; Ord. No. 9632, § 1, 6-9-83; Ord. No. 9917, § 1, 10-10-84; Ord. No. 10027, § 1, 7-25-85; Ord. No. 10316, § 1, 9-8-87; Ord. No. 10460, § 1, 7-14-88; Ord. No. 10641, § 1, 9-28-89; Code 1980, § 35-92; Ord. No. 11298, § 1, 9-14-95; Ord. No. 11871, § 2, 12-14-99; Ord. No. 12438, § 2, 11-13-03; Ord. No. 12644, § 2, 1-13-05; Ord. No. 13108, § 6, 10-8-09; Ord. No. 13368, § 2, 3-14-13; DOSP Res. No. 14-03, § 1 (Exh. A), 7-31-14; Ord. No. 13814, § 2, 12-13-18; Ord. No. 14340, § 2, 12-12-24)

Editor's note—Per Miami City Code, on-street parking meters and monthly permit rates may be increased by resolution of the Department of Off-Street Parking Board (DOSP).

Sec. 35-193. Municipal off-street parking lots.

(a) The rates of charge for parking in municipal off-street parking lots are as follows:

Central Business District:

Lot No. 19, Biscayne Boulevard between S.E. 1 and N.E. 5 Street:

Per hour	$5.00
Special event	$50.00

Lot No. 20, Chopin Plaza, S.E. 2 Street and Biscayne Boulevard:

Per hour	$5.00
Special event	$50.00

Lot No. 43, 56 S.W. 1 Street:

Per hour	$5.00
Daily max.	$20.00

Coconut Grove Area:

Lot No. 1, South Dixie Highway and S.W. 27 Avenue:

Per hour	$2.50
Per month	$50.00

Lot 62, Pan American Drive:

Per hour	$2.50
Per month	$150.00

Lot No. 71, 2710 South Bayshore Drive:

Flat rate	$20.00

Lot No. 72, South Bayshore Drive and Aviation Ave:

Per hour	$4.00
Max rate	$20.00

Little River Area:

Lot No. 7, Martin Luther King, N.W. 7 Avenue and 62 Street:

Per hour	$1.00
Per month	$35.00

Allapattah Area:

Lot No. 40, 17 Avenue and 35 Street N.W.:

Per hour	$1.00
Per month	$45.00

Lot No. 68, Children's Museum:

Per hour	$2.00
Per month	$75.00

Lot No. 70 Watson Island Boat Ramp:

Vehicles	$15.00
Boat ramp	$20.00

Lot 82 (901 S.W. 15 Avenue):

Daily, per hour	$2.00

Marine Stadium:

3501 Rickenbacker Causeway:

Per hour (daily including weekends)	$10.00

Rates for special events shall vary depending on the event.

Rates for boat trailers, (including trailers for motorized, and non-motorized watercrafts), will vary based on demand, size, and number of parking spaces being occupied.

Maximum rate shall not exceed $50.00 per day (as measured by consecutive 24 hours).

(b) All off-street parking lot rates include parking surcharge and all applicable sales taxes. These rates may be increased by resolution of the off-street parking board to a maximum of three percent annually in any individual fiscal year.

(c) City employees who reside within the city will be able to receive a 20 percent discount for the purchase of one monthly parking permit, as long as they remain eligible. Each additional permit will be purchased at the regular price. City residents are eligible to receive a 20 percent discount when using the mobile payment platform, where applicable.

(d) The following fees will be assessed during special events, film production, and construction uses for off-street parking lots:

(1) Fifty dollar administrative fee per event assessed for any parking space rental.

(2) The rental rate of $50.00 per off-street parking space per day will be assessed during special events and construction uses for parking lots.

(3) The rental rate of $50.00 per off-street parking space per day will be assessed during film production in addition to a $2,000.00 flat fee.

(e) New off-street parking lots which are not currently listed above, may be added by resolution of the DOSP board.

(Code 1967, § 34-50.1; Ord. No. 9053, § 1, 1-10-80; Ord. No. 9213, § 3, 12-17-80; Ord. No. 9308, § 3, 9-10-81; Ord. No. 9377, § 2, 3-11-82; Ord. No. 9450, §§ 3(a), 4(a), 6-17-82; Ord. No. 9632, § 1, 6-9-83; Ord. No. 9917, § 1, 10-10-84; Ord. No. 10027, § 1, 7-25-85; Ord. No. 10460, § 1, 7-14-88; Ord. No. 10641, § 1, 9-28-89; Code 1980, § 35-93; Ord. No. 11298, § 1, 9-14-95; Ord. No. 11871, § 2, 12-14-99; Ord. No. 12186, § 2, 2-14-02; Ord. No. 12438, § 2, 11-13-03; Ord. No. 12644, § 2, 1-13-05; Ord. No. 13108, § 6, 10-8-09; Ord. No. 13368, § 2, 3-14-13; DOSP Res. No. 14-03, § 1 (Exh. A), 7-31-14; Ord. No. 13814, § 2, 12-13-18; Ord. No. 14340, § 2, 12-12-24)

Editor's note—Per Miami City Code, on-street parking meters and monthly permit rates may be increased by resolution of the Department of Off-Street Parking Board (DOSP).

Sec. 35-194. On-street parking space rental.

The rates charged for parking space rentals, are as follows (all rates include parking surcharge and all applicable sales tax):

(1) *Administrative processing fees.* The administrative fee of $50.00 shall be assessed for any parking space rental for the processing of all metered parking space rental permits are set forth herein and may be amended from time to time, by the city commission. The administrative fee is in addition to any fee paid for parking stalls, meter bags, or linear curb space.

(2) *Parking space rental fee.* The rate is $30.00 per parking space, or for every 20 linear feet, per day. The fees are set forth herein and may be amended from time to time by the city commission.

(3) *Parking space rental for production and film use.* DOSP may provide parking space rental on an as-needed basis within the sole discretion of DOSP, taking into account the parking needs of the city, and parking space rental to accommodate production, staff, and film needs. A copy of a valid, city issued production/film permit must accompany each application for parking space rental. Only essential vehicles shall be allowed to park at parking spaces. Crew parking can be arranged with DOSP. Parking space rental for production and film use shall be red in color and shall state, "No Parking/Tow Away", and shall be strictly enforced. The fee per parking space, or for every 20 linear feet, is $30.00 per day, payable 24 hours in advance. The fees are set forth herein and may be amended from time to time by the city commission.

(4) *Parking space rentals for special events/construction.* DOSP may provide on an as-needed basis, at the sole discretion of DOSP, taking into account the parking needs of the city, and parking space rental to accommodate special events, construction, and staff. A copy of a valid, city issued special event permit and/or building permit, as applicable, must accompany each application for a parking space rental. Only essential vehicles used for the special event and/or construction shall be allowed to park at the parking space. Parking spaces for special event or construction staff, can be arranged with DOSP. Parking space rental for special events and construction shall be red in color and shall state, "No Parking/Tow Away". Parking space rental may only be issued by DOSP, and shall be strictly enforced. The rate is $30.00 per parking space, or for every 20 linear feet, per day, payable 24 hours in advance. The fees are set forth herein and may be amended from time to time, by the city commission.

(5) *Valet space rental and on-street space rental.* Those companies with a valid parking service permit issued by DOSP shall pay the following fee per parking space used for the ramping of valet services:

		Per space
Zone 1:	*Coconut Grove*	$20.00
Zone 2:	*Brickell Area*	$20.00
Zone 3:	*Central Business District* From SE 4 St. to North East/West 5 St.	$20.00
Zone 4:	*Little Havana/West Flagler*	$20.00
Zone 5:	*Coral Way*	$20.00
Zone 6:	*Spring Garden*	$20.00
Zone 7:	*Omni*	$20.00
Zone 8:	*Arena Area*	$20.00
Zone 9:	*Design District*	$20.00
Zone 10:	*Little River*	$20.00

There is a non-refundable, one-time application fee of $250.00 per valet location before

DOSP may approve the initial permit. After DOSP approves the initial application, the fee for the six-month, renewable, permit is $700.00. (Ord. No. 12438, § 2, 11-13-03; Ord. No. 12644, § 2, 1-13-05; Ord. No. 13108, § 6, 10-8-09; Ord. No. 13368, § 2, 3-14-13; Ord. No. 13814, § 2, 12-13-18)

Editor's note—Ord. No. 13814, § 2, adopted December 13, 2018, changed the title of section 35-194 from "Metered space rentals; bagged meter fees; on street non-metered space rental" to "On-street parking space rental." The historical notation has been preserved for reference purposes.

Sec. 35-195. Parking space closures.

(a) *Temporary parking space closures.* DOSP may provide for the temporary closure of parking spaces to accommodate construction and other limited needs. A $50.00 administrative fee will be assessed for any temporary parking space closure. The rate of $30.00 for the temporary closure of the parking space shall be assessed on a per space, per day basis, payable in advance, until such time as the parking space is re-installed.

No such closure shall last for a cumulative period of more than 90 days during any calendar year.

(b) *Permanent parking space removal.* Permanent parking space removal or loading zone removal requests are strongly discouraged and are granted at the sole discretion of DOSP's chief executive officer, consistent with the parking needs of the city. The monetization period for removal of a regulated parking space or loading zone parking space (20 feet of curb-line) will be ten years assuming a three percent annual growth for years two through ten. The fee for the removal of a parking space is to be paid in advance in a single lump sum fee. The monetized fee shall be the average annual system wide revenue generated by a single parking space or highest annual revenue generated by a single parking space in the area where removal is requested, whichever is greater. Monetization value of the ten years of income at the above described highest annual revenue amount is calculated by street or parking zone, based upon the most accurate revenue data available and maintained by DOSP.

If the applicant anticipates the creation of additional, new or replacement parking spaces or loading zones, it shall provide DOSP with any and all information regarding the number and location of these spaces or loading zones. Once the applicant has completed the project, it may request from DOSP a refund for the specific number of spaces or curbline not permanently removed from the public parking inventory. Any refund will be calculated based upon the total number of replacement parking spaces returned to the public right of way, and the prorated balance of time remaining, after subtracting the total time the parking space was removed from the public inventory, from the ten-year period of the pre-paid parking space monetization fee.

(c) *Parking infrastructure reserve fund (PIRF).* When a request for the removal of a parking space is made, as defined above, all fees collected in accordance with the process shall be held in a parking infrastructure reserve fund. DOSP shall use the monies in the PIRF for the acquisition and installation of automated parking meters, automation of existing facilities, expansion of the centralized operation capabilities, future development projects, land acquisition and other improvements to the public parking system.
(Ord. No. 12438, § 2, 11-13-03; Ord. No. 13368, § 2, 3-14-13; Ord. No. 13814, § 2, 12-13-18)

Editor's note—Ord. No. 13814, § 2, adopted December 13, 2018, changed the title of section 35-195 from "Meter removal" to "Parking space closures." The historical notation has been preserved for reference purposes.

Sec. 35-196. Restricted residential parking program.

(a) The city commission hereby establishes the following restricted residential parking (RRP) zones. These zones are created to protect the quality of life of the city's residents in areas where residential parking is severely impacted by competing uses. DOSP's chief executive officer or designee shall have the authority to create rules, regulations, and guidelines in conformity with this section for the parking of vehicles and the issuance of resident, visitor, or temporary permits within the RRP zones. The RRP zones are hereby established in conjunction with, and following the location of, the city commission districts.

(b) Resident parking permits. A restricted, residential zone resident must purchase restricted residential permits from DOSP. Residents can purchase up to three parking permits per household. Parking spaces within the RRP zones are not guaranteed and are restricted to a specific RRP zone. The fee for these zones will be as follows:

(1) Twenty-five dollars per year for one vehicle.

(2) Fifty dollars per year for two vehicles.

(3) Seventy-five dollars per year for three vehicles.

(c) Temporary residential guest parking hang tag permits. Temporary residential guest parking hang tag permits are available to each participating residence at a price of $1.00 per permit, per day for a maximum of 15 hang tags per calendar year. Temporary guest parking hang tag permits are only valid within the restricted residential zone of the resident purchasing the guest permit, and are not valid at any parking meter, municipal parking lot, garage, or other restricted residential parking ("RRP") zone.

(d) Creation of additional RRP zones. Requests for the creation of new RRP zones shall be submitted to the DOSP by the residents (property owner or current tenant of the property). Upon approval by DOSP's chief executive officer, or designee, DOSP shall create a new RRP zone. RRP zones only apply to single-family homes, duplexes, condominiums and apartment complexes with ten or fewer units, which contain habitable rooms for non-transient occupancy. Hotels, suite hotels, motels, apartment complexes with 11 or more units, boardinghouses, and day care centers shall not be considered for an RRP zone. In order to receive an RRP zone permit, residents must provide copies of the following documents: current driver's license, current motor vehicle registration, current utility bill, and fully executed current lease of property located within the program area. The RRP zone will be implemented if the petition is signed by at least 60 percent of the residents.

(Ord. No. 12438, § 2, 11-13-03; Ord. No. 13368, § 2, 3-14-13; Ord. No. 13814, § 2, 12-13-18)

Secs. 35-197—35-219. Reserved.

ARTICLE V. COCONUT GROVE BUSINESS DISTRICT, DESIGN DISTRICT, WYNWOOD, WYNWOOD NORTE, AND DOWNTOWN FLAGLER DISTRICT PARKING IMPROVEMENT TRUST FUNDS*

Sec. 35-220. Required off-street parking and payment in lieu of required off-street parking.

The minimum off-street parking requirements shall be as depicted herein and/or in the zoning ordinance of the city. Parking requirements may be satisfied by providing the parking as stated in the zoning ordinance or by payment in lieu of required off-street parking, as described herein. Parking reductions, off-site parking, or any other relaxation of parking requirements allowed pursuant to the Miami 21 Code shall not be made available within areas unless otherwise provided for within this chapter, established Special Area Plans (SAPs) or Neighborhood Revitalization Districts of the city for which a parking trust fund has been established and is in effect pursuant to this chapter.

(1) Upon application to the planning director, the owner of a property may request a waiver of any or all of the eligible parking spaces, as specified in the zoning

*__Editor's note—__Ord. No. 14036, § 2, adopted November 18, 2021, changed the title of article V from "Coconut Grove Business District, Design District, Wynwood, and Wynwood Norte Parking Improvement Trust Funds" to "Coconut Grove Business District, Design District, Wynwood, Wynwood Norte, and Downtown Flagler District Parking Improvement Trust Funds."

Ord. No. 12851, § 2, adopted September 28, 2006, amended article V in its entirety to read as herein set out. Formerly, article V pertained to the Coconut Grove business district improvement trust fund, and derived from the Code of 1980, §§ 35-191, 35-192, 35-194; Ord. No. 11052, § 2, adopted March 25, 1993; Ord. No. 11329, § 2, adopted December 7, 1995; Ord. No. 11415, § 2, adopted November 21, 1996; Ord. No. 11931, § 2, adopted May 25, 2000; Ord. No. 12163, § 2, adopted November 15, 2001; Ord. No. 12277, § 2, adopted September 11, 2002; Ord. No. 12435, § 2, adopted November 13, 2003, and Ord. No. 12564, § 2, adopted July 22, 2004.

ordinance by substituting the payment of a fee per space in lieu of providing the required parking spaces.

(2) If the application for the waiver of required off-street parking is approved by the planning director, the property owner shall pay the required fee per space to the department of off-street parking for deposit in a special fund, depending on the area for which the parking is located.

(3) Except as otherwise permitted for required supplemental parking for those uses specified in the minimum required parking charts included the zoning ordinance, payment of the required fee per space shall be made in the form of a payment of a fixed amount. The rental fee in lieu of required supplemental parking shall be paid in accordance with section 35-224, as long as the supplemental parking spaces for the specified use are required.

(4) Fees for the parking waiver shall be as established by this chapter and the zoning ordinance.

(5) If a property owner is entitled to pay a fee in lieu of providing required parking or loading as provided for in this section, the initial payment, shall be made in advance to the Coconut Grove parking improvement trust fund, the design district parking improvement trust fund, the Wynwood parking improvement trust fund, the Wynwood Norte parking improvement trust fund, or the Downtown Flagler District parking improvement trust fund, as applicable, as specified in the letter granting the waiver, and as a condition precedent to the issuance of a parking waiver certificate, and of a certificate of use. Failure to make any required payment shall cause the parking waiver and the certificate of use to be revoked.

(6) Evidence of issuance of a waiver of required off-street parking shall be in the form of a certificate of waiver, recorded in the public records of Miami-Dade County, at property owner's expense issued in the name of the owner of the property for which the waiver is granted. The date on the certificate shall be the effective date of the waiver thereby granted. Such certificate shall carry a statement allowing the waiver to be transferred by the planning director to a new owner within 90 days of a written request to the director. Said transfer shall be granted, provided that all fees are current and other requirements have been satisfied. A certificate of use shall not be issued for the use of any property for which the parking requirements have not been satisfied as provided for herein.

(7) The waiver of required off-street parking shall be applicable only to the structure and use for which it is issued. New development or additions, or any construction generating additional square footage of floor space or increasing the floor lot ratio, shall be required to comply with the parking requirements for said additions or obtain proper parking approvals. Certificates of parking waiver may be modified to include new square footage as long as the overall thresholds as specified in the zoning ordinance or as provided in this chapter are not exceeded.

(8) A waiver of required supplemental off-street parking issued under the provisions of this section shall be revoked if any required fees remained unpaid for more than 90 days after the date due.

(Ord. No. 13185, § 2, 6-24-10; Ord. No. 13455, § 2, 5-22-14; Ord. No. 13520, § 2, 5-28-15; Ord. No. 13556, § 2, 9-24-15; Ord. No. 13771, § 2, 6-28-18; Ord. No. 13996, § 2, 5-13-21; Ord. No. 14036, § 2, 11-18-21)

Sec. 35-221. Coconut Grove Parking Improvement Trust Fund—Established.

(a) There is hereby established a trust fund to be titled the Coconut Grove parking improvement trust fund, (the "Coconut Grove parking trust fund") to be maintained and administered by the department of off-street parking into which funds shall be deposited and from which

funds shall be withdrawn pursuant to sections 35-221 through 35-224 to facilitate public off-street parking, transportation infrastructure improvements, and maintenance and marketing, inclusive of wayfinding signage, to serve the area referred to herein as "Coconut Grove Village Center" generally bound by Oak Avenue and Tiger Tail Avenue to the North, S.W. 27th Avenue, South Bayshore Drive, both sides of McFarlane from Grand Avenue to South Bayshore Drive, both sides of Grand Avenue from Margaret Street to Mary Street, both sides of Grand Avenue from Hibiscus Street to Margaret Street, both sides of Main Highway from Grand Avenue to Commodore Plaza, both sides of Commodore Plaza, and the North side of Main Highway from Commodore Plaza to Franklin Avenue consisting of that portion of the area formerly known as the SD-2 zoning district east of Margaret Street, that portion of the area formerly known as of the SD-17 zoning district west of S.W. 27th Avenue, and that zone designated G/I in the city's official zoning atlas and bounded by Charles Avenue on the south and Main Highway on the east and presently occupied by the Coconut Grove Playhouse through means which may include, but are not limited to, the following activities:

(1) Acquire fee simple or other interest in land, and other real property for parking purposes;

(2) Construct, maintain, operate, lease, manage, or otherwise provide off-street parking facilities for public use;

(3) Provide public information to enhance parking utilization including publicity campaigns, graphics and wayfinding signage, and other informational devices;

(4) Coordinate plans for parking facility improvements or expansion in conjunction with public transportation plans and operations in the vicinity;

(5) Conduct studies, surveys, and data collection and prepare plans and specifications for complete streets and alternative right-of-way sections, including in conjunction with city, county, and/or state planning, engineering, and implementation of capital projects;

(6) Provide accessibility to off-street parking facilities or alternative transportation facilities by suitable means such as public shuttle, tram or trolley service, or related physical improvements such as bus shelters and right-of-way modifications which may include, but is not limited to, the area from Bayshore Boulevard to the Coconut Grove Village Center;

(7) Perform such other related activities as may be appropriate to carry out the intent of this article including, but not limited to, infrastructure improvements in the public right-of-way, contributing to maintenance of the public sidewalks within the Coconut Grove Village Center defined herein, supporting alternative transportation facilities and operations, and marketing related to promoting any of the aforementioned activities in this section;

(b) Coconut Grove parking trust fund recipients may be public entities or public-private partnerships.

(c) It is the intent of this section that at least 90 percent of the funds, as determined at the beginning of each fiscal year shall be allocated for purposes consistent with subsections (a)(1)—(7). At least ten percent of the funds must be maintained as reserves, inclusive of any administrative expenses;

(d) Any such shuttle, tram or trolley service as mentioned in subsection (a)(6) shall be subject to yearly evaluation of the Coconut Grove business improvement district board.

(e) Parking calculations for new and adaptive developments shall be according to the Miami 21 Code if all parking is to be provided on site. If parking is to be provided by payment in lieu of required off-street parking, the Miami 21 Code shall be followed except for food service establishments as defined in the Miami 21 Code. Food service establishments shall have an additional supplemental parking space requirement of 1:150 per square foot and for sidewalk cafes, there shall be a supplemental parking space requirement of 1:100 per square foot. Payment into the

trust fund of the supplemental parking is required prior to obtaining a certificate of use or temporary certificate of use.
(Ord. No. 12851, § 2, 9-28-06; Ord. No. 13059, § 3, 3-12-09; Ord. No. 13185, § 2, 6-24-10; Ord. No. 13771, § 2, 6-28-18; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-222. Same—Funds made available; financial report.

(a) Funds deposited in the Coconut Grove parking trust fund shall be made available to the Coconut Grove Business Improvement District ("BID") Board ("BID board") for the purposes set forth in section 35-221 and for administrative expenses after approval by the BID board. BID shall submit financial reports to the city commission on an annual basis.

(b) A financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the BID and presented to the BID board for its review and approval prior to filing with the city clerk.
(Ord. No. 12851, § 2, 9-28-06; Ord. No. 13059, § 3, 3-12-09; Ord. No. 13185, § 2, 6-24-10; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-223. Parking waiver certificates; revocation.

(a) Certificates of waiver shall not be issued without full payment and only issued after verification by the zoning administrator, by or with any other applicable city departments, that such certificate of waiver is in compliance with the Miami 21 Code and the applicable parking requirements.

(b) Failure to make any payment required by this article shall cause the zoning administrator to revoke the parking waiver certificate and the certificate of use. The zoning administrator shall revoke a parking waiver certificate and a certificate of use if any required fees remain unpaid for more than 60 days after the date due. Said revocation of the parking waiver certificate and certificate of use shall be effective immediately upon the department of off-street parking's notification to the zoning administrator that the required fees remain unpaid for more than 60 days after the date due. The department of off-street parking shall notify the parking waiver certificate holder and certificate of use holder of the pending revocation by posting notice at the property, hand delivering a notice, or mailing a notice. A parking waiver certificate holder or certificate of use holder may reinstate the certificates by paying any unpaid fees. A parking waiver certificate holder or certificate of use holder may challenge the revocation by requesting a hearing with the zoning administrator within ten days of receiving notice. Upon presenting such evidence to the zoning administrator of proper payment, the zoning administrator shall immediately reinstate any revoked certificates.

(c) Failure to maintain a building permit as required in this article shall cause the zoning administrator to revoke the certificate of waiver. Any building permit procured as specified in this section must remain active at all times. If a building permit becomes inactive or is otherwise abandoned, a revocation of the certificate of waiver shall be initiated.

(d) The city shall not issue a certificate of use for the use of any property for which the parking requirements have not been satisfied as provided herein.

(e) In the event that a certificate of waiver is revoked by the zoning administrator or released in writing by the property owner prior to issuance of a certificate of occupancy, temporary certificate of occupancy, certificate of completion, certificate of use, or temporary certificate of use for the improvements that generated the parking requirements for which the certificate of waiver was issued, the BID shall apply a credit to run with the property and be available to apply towards a future certificate of waiver.
(Ord. No. 13185, § 2, 6-24-10; Ord. No. 14340, § 2, 12-12-24)

Editor's note—Ord. No. 14340, § 2, adopted December 12, 2024, changed the title of section 35-223 from "Revocation of certificate of use for non-payment of parking waivers" to "Parking waiver certificates; revocation." The historical notation has been preserved for reference purposes.

Sec. 35-224. Schedule of fees and charges for Coconut Grove parking trust fund.

The schedule of fees and charges to be assessed and paid into the Coconut Grove parking trust fund is as follows:

(1) Fee in lieu of providing required off-street parking for sidewalk cafes. In addition to the $20.00 per square foot permit fee required by the resilience and public works department, as specified in section 54-223, there shall be paid an additional fee as set forth in subsections (3)c. and (3)e., in lieu of providing required off-street parking, said funds shall be paid monthly into the Coconut Grove parking trust fund.

(2) All property owners in possession of base parking space waivers as provided in Ordinance 11052 as of December 1, 2024 shall pay $540.00, per space per year, payable monthly (the "annual payment"). The annual payment shall be inflation adjusted once at the end of each five-year period. The first inflation adjustment commenced on January 1, 2007, reflecting the change from the prior year only, using the consumer price index urban consumers (CPI-U). All property owners currently in possession of base parking space waivers shall have the option of converting the existing waivers to conform to the provisions set forth in subsection (3). This option shall not be available to property owners not in possession of such base parking space waivers as of December 1, 2024. Certificate of waiver holders as of December 1, 2024 participating in the installment payment program option must (i) procure a building permit process number on or before September 1, 2025 and subsequently obtain a building permit for construction within one year of procuring the process number or (ii) pay the balance on the installment agreement on or before September 1, 2025 and obtain a building permit within three years of paying the outstanding balance. Failure to procure a building permit process number, a building permit, or pay the balance on the installment agreement as specified in this subsection shall render the certificate of waiver null and void. If a certificate of waiver is rendered null and void, a credit will be given for any payments made minus any administrative costs incurred by the city and/or the BID.

(3) Fee in lieu of providing required off-street parking for the area formerly known as the SD-2 zoning district herein described as the "Coconut Grove Central Commercial District," which consists of three general areas. Area A generally consists of both sides of S.W. 37th Avenue from Oak Avenue to Grand Avenue, and both sides of Grand Avenue from Brooker Street to Hibiscus Street. Area B is generally bound to the North by Oak Avenue from Allamanda Street to Mary Street, Mary Street to the East, includes both sides of Grand Avenue from Margaret Street to Mary Street, both sides of McFarlane Road from Grand Avenue to South Bayshore Drive, both sides of Main Highway from Grand Avenue to Commodore Plaza including both sides of Commodore Plaza and Fuller Street. Area C includes the North Side of Main Highway from Charles Avenue to Franklin Avenue, shall be as follows:

a. A purchase price of $8,500.00 per half-space parking (residential) waiver and $17,000.00 per full-space parking (commercial or residential) waiver ("purchase price"). The purchase price shall be inflation adjusted once at the end of each five-year period. using the consumer price index urban consumers (CPI-U).

b. Permanent certificate of waiver. Upon receipt of the full purchase price and any reasonable applicable fees for administrative expenses as set by the BID from time to time in accordance with the provisions of this article, the city shall issue a

permanent certificate of waiver in lieu of providing physical parking spaces ("certificate waiver"), which shall be recorded by the property owner at the property owner's expense in the public records of Miami-Dade County, Florida. The certificate of waiver shall run with the land.

c. Payment as set forth in subsection 35-224(3)a. shall be due and payable prior to issuance of a building permit, including a phased permit; revisions to an existing building permit for any new construction or addition that generates additional required parking spaces; issuance of a certificate of use or temporary certificate of Use for any new construction or addition that generates additional required parking spaces; or substitution for parking previously to be provided on-site or off-site, whichever is earlier.

d. Reserved.

e. Reserved.

f. All payments set forth in this subsection (3) shall be inflation-adjusted once at the end of each five-year period, reflecting the change from the prior year only, through the consumer price index-urban consumers (CPI-U).

g. Payment of the fees set forth in this subsection (3) shall exempt the respective property from the corresponding parking requirement for such use as specified in the certificate of waiver.

(4) The City shall grant parking credit for buildings built prior to 1960 that have been demolished or may be demolished.

(5) Upon enactment of a city ordinance pursuant to F.S. § 166.271, authorizing the collection and disbursement of parking surcharge fees for infrastructure and other purposes defined therein, the Coconut Grove business improvement trust fund would receive not more than 40 percent and not less than 20 percent of the parking surcharge fees derived from parking surcharge revenues from Coconut Grove (defined as that portion of the city bounded by the Rickenbacker Causeway and US-1 to the north and west, and the city limits to the west, south and east). Said distributions would be retained in a separate account to be used exclusively for the purposes set forth in the ordinance governing the use of parking surcharge funds.

(6) Fees generated by the use of Coconut Grove sidewalks for sidewalk cafes for the purpose of contributing to the maintenance of the public sidewalks and infrastructure within those sidewalks in the business district as defined herein.

(Ord. No. 12851, § 2, 9-28-06; Ord. No. 13059, § 3, 3-12-09; Ord. No. 13185, § 2, 6-24-10; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14340, § 2, 12-12-24)

Editor's note—Subsections 35-224(6)—(10) were inadvertently omitted from the Code in August of 2010, and subsequently restored in June of 2016.

Sec. 35-225. Design District Parking Improvement Trust Fund—Established.

(a) There is hereby established a trust fund to be entitled the design district parking improvement trust fund, ("trust fund") to be maintained and administered by the department of off-street parking ("DOSP") into which funds shall be deposited and from which funds shall be withdrawn pursuant to sections 35-226 and 35-227 to facilitate parking purposes within the area including but not limited to public off-street parking, infrastructure improvements and maintenance and marketing to serve the area consisting of the zoning districts as depicted herein, in Exhibit A, and any abutting properties or properties partly within the boundaries depicted in Exhibit A ("Design District") through means which may include, but are not limited to the following activities:

(1) Acquire fee simple or other interest in land, and other real property for parking purposes;

(2) Construct, maintain, operate, lease, manage, or otherwise provide off-street parking facilities for public use;

(3) Provide public information to enhance parking utilization including publicity campaigns, graphics and signage, and other informational devices;

(4) Coordinate plans for parking facility improvements or expansion in conjunction with public transportation plans and operations in the vicinity, particularly, but not limited to, the joint facilities that might be operated in connection with Metrorail and any feeder services existing or developed in the future;

(5) Provide accessibility to off-street parking facilities by suitable means such as public shuttle, tram or trolley service or related physical improvements such as bus shelters and right-of-way modifications;

(6) Perform such other related activities as may be appropriate to carry out the intent of this article including, but not limited to, infrastructure improvements in the public right-of-way, contributing to maintenance of the public sidewalks within the business district defined herein, as well as marketing.

(b) It is the intent of this article that at least 90 percent of the funds, as determined at the beginning of each fiscal year, in the trust fund shall be utilized for subsections (a)(1)—(6). At least ten percent of the funds must be maintained as reserves.

(c) Any such shuttle, tram or trolley service, as mentioned in subsection (a)(5), shall be subject to yearly evaluation of the design district improvement committee.

(d) There is hereby created a design district improvement committee ("committee") that shall consist of seven voting members and as many non-voting members, as may be necessary from time to time, at the discretion of the chief executive officer ("CEO") of DOSP, appointed as follows:

(1) The CEO shall be a non-voting member.

(2) The District 5 commissioner shall appoint two voting members, who shall not require DOSP Board confirmation.

(3) The director of planning and zoning of the city, or his/her designee, shall be a voting member who shall not require DOSP Board confirmation.

(4) Two voting members who shall be unassociated property owners of any assessed property within the boundaries of the design district, who shall be subject to DOSP Board confirmation and shall serve two-year terms.

(5) Two voting members who shall represent unassociated retail and/or restaurant/bar establishments within the boundaries of the design district, who shall be subject to DOSP Board confirmation and shall serve three-year terms.

(6) At the discretion of the CEO, the CEO shall appoint non-voting members as may be necessary from time to time, who shall not require DOSP Board confirmation.

(7) Nomination of initial members. The CEO shall appoint a committee nominating commission to solicit and screen applications, interview candidates, and submit nominations to the CEO for appointment to the initial committee.

(8) Subsequent nominations and vacancies. A selection committee, chosen by the remaining committee members, shall be formed and shall make nominations for filling these seats upon expiration of a term or in the event of any vacancy, and the DOSP Board shall confirm the nominees.

(9) Quorum. Quorum shall consist of the presence of four voting members.

(Ord. No. 12851, § 2, 9-28-06; Ord. No. 13455, § 2, 5-22-14)

Note—Exhibit "A" as referenced in this section is not set out at length herein, but is on file in the offices of the city.

Sec. 35-226. Same—Funds made available; financial report.

(a) Funds deposited in the trust fund shall be made available to DOSP for the purposes set forth in section 35-225 and for administrative

expenses after review and recommendation by the committee to DOSP and approval by the DOSP Board following receipt and consideration of the committee's recommendation. DOSP shall submit annual financial reports to the city commission on an annual basis.

(b) A financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the off-street parking department and presented to the committee for its review and approval prior to filing with the city clerk.
(Ord. No. 12851, § 2, 9-28-06; Ord. No. 13455, § 2, 5-22-14)

Sec. 35-227. Revocation of parking waivers.

(a) Certificate of waiver holders as of February 23, 2014, participating in the installment payment program option must (i) procure a building permit process number on or before November 22, 2014 and subsequently obtain a building permit for construction within one year of procuring the process number or (ii) pay the balance on the installment agreement on or before November 22, 2015 and obtain a building permit within three years of paying the outstanding balance. Failure to procure a building permit process number, a building permit, or pay the balance on the installment agreement as specified in this subsection shall render the certificate of waiver null and void. If a certificate of waiver is rendered null and void, a credit will be given for any payments made minus any administrative costs incurred by the city and/or DOSP.

(b) Certificate of waiver holders participating in the trust fund after May 22, 2014, participating in the installment payment program option must procure a building permit for construction within one year from the date of issuance of the certificate of waiver. Failure to procure a building permit within one year from the date of issuance of the certificate of waiver under the installment payment program option shall render the certificate of waiver null and void.

(c) Certificate of waiver holders as of February 23, 2014, who paid in full and received a permanent certificate of waiver are vested and not subject to revocation of the permanent certificate of waiver. However, any change to plans on file with the planning department which requires additional certificates of waiver for a project will be purchased at the current rate and according to current provisions established after May 22, 2014 as further clarified herein.

(d) Certificate of waiver holders participating in the trust fund after May 22, 2014, who paid in full and received a permanent certificate of waiver must procure a building permit for construction no later than one year from the date of issuance of the permanent certificate of waiver. Failure to procure a building permit within one year from the date of issuance of the permanent certificate of waiver shall render the permanent certificate of waiver null and void and all payments shall be held as a credit for a future project as described in subsection (g) below. Such credit shall not be transferrable to another owner of real property within the design district or any subsequent buyer of the subject property and as further clarified in subsection 35-228(2)(b).

(e) Changes in plans. Any substantial changes in plans on file with the planning department shall result in a review of the existing certificate of waiver. If a certificate of waiver is to be modified due to an increase in parking requirements, the additional certificates of waiver shall be purchased at the rate in existence at the time of the substantial modification. A substantial modification includes, but is not limited to, (i) a change in the footprint of a building by more than ten feet in any horizontal direction, (ii) an increase in building height by more than five feet or five percent of the height of the building, whichever is greater; or (iii) a change in the proposed use.

(f) Building permit. Any building permit procured as specified in this section must remain active at all times. If a building permit becomes inactive or is otherwise abandoned, a revocation of the certificate of waiver shall be initiated as described in subsection (g) below. Any appeal of a building permit or similar development permit shall toll the time period specified in this section until a final decision is rendered on the appeal.

(g) Revocation process. Upon notice that the parking waiver certificate holder has not complied with the above requirements, the zoning administrator shall revoke the parking certificate waiver and certificate of use. The certificate of waiver holder and certificate of use holder shall be notified of the revocation by posting of the notice at the property, hand delivering of the notice, or mailing of the notice. A parking waiver certificate holder or certificate of use holder may challenge the revocation by requesting a hearing through the office of hearing boards within ten days of the revocation. If a parking waiver certificate is being revoked for timeliness issues, the parking waiver certificate holder may present evidence to the planning, zoning and appeals board ("PZAB") of considerable delay due to the fault of the city, other governmental entity, or an act of God. If the PZAB so determines, the zoning administrator shall immediately reinstate any revoked certificates. If the PZAB approves the revocation of a certificate of waiver, the certificate of waiver holder shall receive credit for the future purchase of a certificate of waiver, minus three percent of monies paid, to represent an administrative fee. This amount will be in addition to the 50 percent non-refundable deposit referenced below and any filing fees. In the event of a revocation, DOSP shall record an instrument revoking rights to the permanent certificate of waiver.
(Ord. No. 13455, § 2, 5-22-14)

Sec. 35-228. Same—Schedule of fees and charges.

The schedule of fees and charges to be assessed and paid into the trust fund is as follows:

(1) Fee in lieu of providing required off-street parking for sidewalk cafes: in addition to the $20.00 per square foot permit fee required by the resilience and public works department, as specified in section 54-223, there shall be paid an additional fee as set forth in subsections (2)c. and (2)e., in lieu of providing required off-street parking, said funds shall be paid monthly into the design district improvement trust fund.

(2) Fee in lieu of providing required off-street parking for the Design District shall be as follows:

a. A purchase price of $45,000.00 shall apply per parking space waiver (the "purchase price.") The purchase price shall be inflation adjusted once at the end of each five-year period. The first such adjustment shall occur on January 1, 2019, reflecting the change from the prior year only, using the consumer price index urban consumers (CPI-U).

b. Payment of the purchase price shall be made at the time of application for a permanent certificate of waiver. Upon receipt of the full purchase price, the city shall issue a "permanent certificate of waiver," recorded at the property owner's expense in the public records of Miami-Dade County, Florida, to the property owner. A permanent certificate of waiver issued prior to February 23, 2014, shall run with the land, and may be leased to another owner of real property within the design district. A certificate of waiver issued prior to February 23, 2014, under an installment program shall run with the land, and may be leased to another owner of real property within the design district, unless revoked as set forth above. A certificate of waiver, either permanent or obtained through the installment program issued after May 22, 2014, shall not run with the land and may not be leased. No certificate of waiver issued after May 22, 2014, shall vest unless the permanent certificate of waiver is paid in full and the owner procures a building permit for construction no later than one year from the date of issuance of the permanent certificate of waiver.

c. Installment payment program. A non-refundable 50 percent deposit

along with a $500.00 application fee shall be paid to DOSP upon filing the request for the installment payment program. The purchase price, minus the 50 percent deposit, shall then be paid in installments over a self-amortizing period of five years, with a balloon payment after three years from date of execution of an installment payment agreement for permanent certificate of waiver (the "agreement"), with interest at one percent below the bank prime rate. Each installment shall be referred to as a "payment." Bank prime rate shall refer to the rate set by the banking institution used by the department of off-street parking (the "department"). Payments shall be due and payable on the 1st of each month (the "due date"). The property owner shall pay a late fee of five percent of each payment which is not received within 15 days of the due date. Payments not made within 30 days after the due date shall be charged interest at the rate of ten percent per annum calculated monthly on the unpaid balance, including applicable late fees. If any payment is returned because of insufficient or uncollected funds in addition to any other fee or charge due, the property owner shall be liable for a returned check charge in the amount of five percent of the amount of the check; in such event, DOSP may require that all future payments be made by cashier's check. In the event any returned payment is not repaid and received by DOSP within 90 days of the due date, the applicable certificate(s) of waiver shall be revoked by the zoning administrator, and the property owner shall forfeit any and all rights thereunder, and any amounts paid pursuant to the agreement, and shall not be entitled to participate further in the installment payment program, unless its to avail themselves of an alternate installment payment program that becomes available. Notwithstanding the foregoing, the property owner shall remain responsible for providing parking as required by the Miami 21 Code, or apply and pay for the necessary monthly parking space waivers or make full payment.

d. Supplemental off-street parking spaces may be purchased for a fee, as set forth in subsection (3)a.1., as may be applicable.

e. All payments set forth in this subsection (2) shall be inflation-adjusted once at the end of each five-year period, the first such adjustment shall commence on January 1, 2019, reflecting the change from the prior year only, through the consumer price index-urban consumers (CPI-U).

(3) Upon enactment of a city ordinance pursuant to F.S. § 166.271, authorizing the collection and disbursement of parking surcharge fees for infrastructure and other purposes defined therein, the trust fund would receive the same percentage as derived from parking surcharge revenues from the design district. Said distributions would be retained in a separate account to be used exclusively for the purposes set forth in the ordinance governing the use of parking surcharge funds.

(4) Fees generated by the use of design district sidewalks for sidewalk cafes for the purpose of contributing to the maintenance of the public sidewalks and infrastructure within those sidewalks in the business district as defined herein.

(5) Such other fees as may from time to time be authorized by the city commission.

(Ord. No. 12851, § 2, 9-28-06; Ord. No. 13455, § 2, 5-22-14; Ord. No. 13792, § 1, 10-11-18)

Editor's note—Ord. No. 13455, § 2, adopted May 22, 2014, redesignated the former section 35-227 as section 35-228. The historical notation has been preserved for reference purposes.

Sec. 35-229. Wynwood parking improvement trust fund—Established.

(a) There is hereby established a trust fund to be entitled the Wynwood Parking Improvement Trust Fund, ("Wynwood Parking Trust Fund") to be maintained and administered by the Wynwood Business Improvement District ("BID"), or any successor body designated by the city commission, into which funds shall be deposited and from which funds shall be withdrawn pursuant to sections 35-229 through 35-232 to facilitate parking purposes, the creation of publicly accessible off-street parking, infrastructure improvements and maintenance and marketing to serve the area consisting of the properties within the Wynwood NRD-1 boundaries, through means which may include but are not limited to the following activities, subject to review by the city attorney for consistency with all applicable local, state and federal laws:

(1) Acquire fee simple or other interest in land, and other real property for parking purposes;

(2) Construct, maintain, operate, lease, manage, fund or otherwise provide off-street parking facilities for public use;

(3) Provide public information to enhance parking utilization including publicity campaigns, graphics and signage, and other informational devices;

(4) Coordinate plans for parking facility improvements or expansion in conjunction with public transportation plans and operations in the vicinity;

(5) Provide accessibility to off-street parking facilities or alternative transportation facilities by suitable means such as public shuttle, tram or trolley service or related physical improvements such as bus shelters and right-of-way modifications;

(6) Perform such other related activities as may be appropriate to carry out the intent of this article including, but not limited to, infrastructure improvements in the public right-of-way, contributing to maintenance of the public sidewalks within the Wynwood District defined herein, supporting alternative transportation facilities and operations, as well as marketing related to promoting any of the aforementioned activities.

(b) Wynwood parking trust fund recipients may be privately-owned entities or individuals, public entities, or public-private partnerships.

(c) The BID shall only make funds available from the Wynwood parking trust fund to projects meeting the qualifications as set forth herein, as approved by the BID board ("project").

(d) For each project approved by the BID board, the BID shall pledge funds available and allocated as of the date of BID approval of the project and reserved for a period of three years, unless extended by the BID for a period not to exceed an additional one year, and shall transfer pledged funds to the project at such time as the project is deemed substantially completed.

(e) It is the intent of this section that at least 90 percent of the funds, as determined at the beginning of each fiscal year, shall be allocated for purposes consistent with subsections (a)(1)—(6) of this section. At least ten percent of the funds must be maintained as reserves, inclusive of any administrative expenses.
(Ord. No. 13556, § 2, 9-24-15)

Sec. 35-230. Funds made available; financial report.

(a) Funds deposited in the Wynwood parking trust fund shall be made available to the Wynwood BID board of directors for the purposes set forth in section 35-229 and for administrative expenses incurred in connection with the collection or expenditure of funds within the Wynwood parking trust funds, which shall not exceed three percent of the funds.

(b) A financial report on Wynwood parking trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the BID for review and approval by the city commission prior to filing with the city clerk.
(Ord. No. 13556, § 2, 9-24-15)

Sec. 35-231. Schedule of fees and charges for Wynwood parking trust fund.

(a) Fee in lieu of providing required off-street parking for the area described as the Wynwood district shall be as follows:

(1) A purchase price of $6,000.00 per half-space ("residential") and $12,000.00 per full space (commercial or residential) per parking space waiver (the "purchase price"). The purchase price shall be inflation adjusted once at the end of each five-year period. The first such adjustment shall occur on October 1, 2020, reflecting the change from the prior year only, using the consumer price index urban consumers ("CPI-U").

(2) Permanent certificate of waiver. Upon receipt of the full purchase price and any applicable fees for administrative expenses as set by the BID from time to time in accordance with the provisions of this article, the city shall issue a permanent certificate of waiver in lieu of providing physical parking spaces ("certificate of waiver"), which shall be recorded at the property owner's expense in the public records of Miami-Dade County, Florida, to the property owner. The certificate of waiver shall run with the land.

(3) Payment, as set forth in subsections 35-231(a)(1) and (2), shall be due and payable prior to issuance of a building permit or revisions to an existing building permit for any new construction or addition that generates additional required parking spaces, or issuance of a certificate of use for any new construction or addition that generates additional required parking spaces, or substitution for parking previously to be provided on-site or off-site, whichever is earlier.

(b) Payment of the fees and issuance of the certificate of waiver set forth in subsections hereinabove shall permanently exempt the respective property from the corresponding parking requirement for such use as specified in the certificate of waiver, unless and until such certificate of waiver is revoked as set forth in section 35-232.
(Ord. No. 13556, § 2, 9-24-15)

Sec. 35-232. Parking waiver certificates; revocation; refunds.

(a) Certificates of waiver shall not be issued without full payment and after verification by the planning department, and with any other applicable city departments, that such certificate of waiver is in compliance with the city's zoning ordinance, the Miami 21 Code, and the parking requirements applicable through the Wynwood NRD-1, as amended.

(b) Failure to maintain a building permit as required in this article shall cause the zoning administrator to revoke the parking waiver certificate. Any building permit procured as specified in this section must remain active at all times. If a building permit becomes inactive or is otherwise abandoned, a revocation of the certificate of waiver shall be initiated. Any appeal of a building permit or similar development permit shall toll the time period specified in this section until a final decision is rendered on the appeal.

(c) In the event that a certificate of waiver is revoked by the zoning administrator or released in writing by the property owner prior to issuance of a certificate of occupancy, certificate of completion, or certificate of use for the improvements that generated the parking requirements for which the certificate of waiver was issued, the BID shall apply a credit to run with the property and be available to apply towards a future certificate of waiver.
(Ord. No. 13556, § 2, 9-24-15)

Sec. 35-233. Wynwood Norte parking improvement trust fund—Established.

(a) There is hereby established a trust fund titled the Wynwood Norte parking improvement trust fund to be maintained and administered by the department of off-street parking ("DOSP") into which funds shall be deposited and from which funds shall be withdrawn pursuant to

sections 35-233 through 35-236 to facilitate public off-street parking, transportation infrastructure improvements, and maintenance and marketing, inclusive of wayfinding signage, to serve the area generally bounded by Interstate 195 on the north, Interstate 95 on the west, Northwest 29th Street on the south, and North Miami Avenue on the east ("NRD-2 boundary") through means which may include but are not limited to the following activities, subject to review by the city attorney for consistency with all applicable local, state, and federal laws:

(1) Acquire fee simple or other interest in land and other real property for parking purposes;

(2) Construct, maintain, operate, lease, manage, fund, or otherwise provide off-street parking facilities for public use;

(3) Provide public information to enhance parking utilization including publicity campaigns, graphics and wayfinding signage, and other informational devices;

(4) Coordinate plans for parking facility improvements or expansion in conjunction with public transportation plans and operations in the vicinity;

(5) Conduct studies, surveys, and data collection and prepare plans and specifications for complete streets and alternative right-of-way sections, including in conjunction with city, county, and/or state planning, engineering, and implementation of capital projects;

(6) Provide accessibility to off-street parking facilities or alternative transportation facilities by suitable means such as public shuttle, tram or trolley service, or related physical improvements such as bus shelters and right-of-way modifications; and

(7) Perform such other related activities as may be appropriate to carry out the intent of this article including, but not limited to, infrastructure improvements in the public right-of-way, contributing to maintenance of the public sidewalks within the NRD-2 boundary, supporting alternative transportation facilities and operations, and marketing related to promoting any of the aforementioned activities in this section.

(b) Wynwood Norte parking trust fund recipients may be public entities or public-private partnerships.

(c) It is the intent of this section that at least 90 percent of the funds as determined at the beginning of each fiscal year shall be allocated for purposes consistent with subsections (a)(1)—(7) of this section. At least ten percent of the funds must be maintained as reserves, inclusive of any administrative expenses.

(d) Any such shuttle, tram, or trolley service as mentioned in subsection (a)(6) shall be subject to yearly evaluation of the Wynwood Norte improvement committee.

(e) There is hereby created a Wynwood Norte improvement committee ("committee") that shall consist of seven voting members and as many non-voting members, as may be necessary from time to time at the sole discretion of the chief executive officer ("CEO") of DOSP, appointed as follows:

(1) The CEO shall be a non-voting member.

(2) The district 5 city commissioner shall appoint two voting members who are electors in the NRD-2 boundary who shall not require DOSP board confirmation.

(3) The director of planning of the city, or his/her designee, shall be a voting member who shall not require DOSP board confirmation.

(4) Two voting members that are property owners of any assessed property within the NRD-2 boundary who shall be subject to DOSP board confirmation and shall serve three-year terms. Such members shall not be associated with each other.

(5) Two voting members who shall represent commercial establishments or businesses within the NRD-2 boundary who shall be subject to DOSP board confirmation and

shall serve two-year terms. Such members and establishments shall not be associated with each other.

(6) At the discretion of the CEO, the CEO shall appoint non-voting members as may be necessary from time to time, who shall not require DOSP board confirmation.

(7) City commission approval shall not be required for any appointments.

(f) Nomination of initial members. The CEO shall appoint a committee nominating commission to solicit and screen applications, interview candidates, and submit nominations to the CEO for appointment to the initial committee.

(g) Subsequent nominations and vacancies. For any future vacancies that require DOSP board approval, a selection committee, chosen by the remaining committee members, shall be formed and shall make nominations for filling seats, subject to DOSP board approval, upon expiration of a term or in the event of any vacancy.

(h) Quorum. Quorum shall consist of the presence of four voting members.
(Ord. No. 13996, § 2, 5-13-21)

Sec. 35-234. Funds made available; financial report.

(a) Funds deposited into the Wynwood Norte parking trust fund shall be made available to the DOSP for the purposes set forth in section 35-233 and for administrative expenses after review and recommendation by the committee to DOSP and approval by the DOSP board following receipt and consideration of the committee's recommendation. DOSP shall submit financial reports to the city commission on an annual basis.

(b) A financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by DOSP and presented to the committee for its review and approval prior to filing with the city clerk.
(Ord. No. 13996, § 2, 5-13-21)

Sec. 35-235. Schedule of fees and charges for the Wynwood Norte parking trust fund.

(a) Fees in lieu of providing required off-street parking for the NRD-2 boundary shall be as follows:

(1) As outlined in the NRD-2 appendix of the Miami 21 Code, purchase price of $8,750.00 per half-space (residential) and $17,500.00 per full space (commercial or residential) per parking space waiver ("purchase price"). The purchase price shall be inflation adjusted once at the end of each five-year period.

(2) Permanent certificate of waiver. Upon receipt of the full purchase price and any reasonable applicable fees for administrative expenses as set by the DOSP from time to time in accordance with the provisions of this article, the city shall issue a permanent certificate of waiver in lieu of providing physical parking spaces ("certificate of waiver"), which shall be recorded at the property owner's sole expense in the public records of Miami-Dade County, Florida. The certificate of waiver shall run with the land.

(3) Payment as set forth in subsections 35-235(a)(1) and (2) shall be due and payable prior to issuance of a building permit, including a phased permit; revisions to an existing building permit for any new construction or addition that generates additional required parking spaces; issuance of a certificate of use or temporary certificate of Use for any new construction or addition that generates additional required parking spaces; or substitution for parking previously to be provided on-site or off-site, whichever is earlier.

(b) Payment of the fees and issuance of the certificate of waiver set forth in subsections hereinabove shall permanently exempt the respective property from the corresponding parking requirement for such use as specified in the

certificate of waiver, unless and until such certificate of waiver is revoked as set forth in section 35-236.
(Ord. No. 13996, § 2, 5-13-21)

Sec. 35-236. Parking waiver certificates; revocation; refunds.

(a) Certificates of waiver shall not be issued without full payment and only issued after verification by the zoning administrator, by or with any other applicable city departments, that such certificate of waiver is in compliance with the Miami 21 Code and the parking requirements applicable through the NRD-2 boundary.

(b) Failure to maintain a building permit as required in this article shall cause the zoning administrator to revoke the certificate of waiver. Any building permit procured as specified in this section must remain active at all times. If a building permit becomes inactive or is otherwise abandoned, a revocation of the certificate of waiver shall be initiated.

(c) In the event that a certificate of waiver is revoked by the zoning administrator or released in writing by the property owner prior to issuance of a certificate of occupancy, temporary certificate of occupancy, certificate of completion, certificate of use, or temporary certificate of use for the improvements that generated the parking requirements for which the certificate of waiver was issued, the DOSP shall apply a credit to run with the property and be available to apply towards a future certificate of waiver.
(Ord. No. 13996, § 2, 5-13-21)

Sec. 35-237. Downtown Flagler District Parking and Loading Improvement Program and Trust Fund—Established.

(a) There is hereby established a program known as the Downtown Flagler District Parking and Loading Improvement Program ("program"). The Department of Off-Street Parking ("DOSP"), also known as the Miami Parking Authority, or any successor agency designated by the city commission shall administer and oversee the program and provide an annual report to the city commission.

(b) The program shall include a trust fund known as the Downtown Flagler District Parking and Loading Improvement Trust Fund ("trust fund") to be maintained and administered by DOSP into which funds shall be deposited and from which funds shall be withdrawn pursuant to sections 35-237 through 35-240 to facilitate the creation of publicly accessible on-street and off-street parking and loading and enable a centralized valet system consistent with the City Code including, without limitation, chapter 9 within the boundaries consistent with the Downtown Flagler District as provided for in Exhibit "A", attached and incorporated, through means which may include but are not limited to the following activities:

(1) Acquire fee simple or other possessory interest in land and other real property for parking and loading purposes;

(2) Construct, maintain, operate, lease, manage, enforce (non-exclusive), fund, or otherwise provide off-street and on-street parking facilities for public use;

(3) Construct, maintain, operate, lease, manage, enforce (non-exclusive), fund, or otherwise provide off-street and on-street loading facilities for public use;

(4) Construct, maintain, operate, lease, manage, enforce (non-exclusive), fund, or otherwise provide a uniform on-street valet system for public use;

(5) Construct, maintain, operate, lease, manage, enforce (non-exclusive), fund, or otherwise provide for supplemental and/or alternative public mobility options within the Downtown Flagler District area, provided public mobility options shall be subject to yearly evaluation of the Downtown Flagler District Improvement Committee as established and constituted by this section;

(6) Provide public information to enhance parking, loading, valet, and mobility utilization including personnel, graphics and signage, and other informational devices;

(7) Coordinate plans for parking and loading facility improvements or expansion in conjunction with public transportation plans and operations in the vicinity;

(8) Provide accessibility to off-street parking facilities or alternative transportation facilities by suitable means such as public shuttle, tram or trolley service, or related physical improvements such as bus shelters and right-of-way modifications;

(9) Perform such other related activities as may be appropriate to carry out the intent of this article including, but not limited to, infrastructure improvements in the public right-of-way, contributing to maintenance of the public sidewalks within the Downtown Flagler District as defined herein, supporting alternative transportation facilities, operations, and marketing related to promoting any of the aforementioned activities;

(10) Purchase necessary technology to manage loading and valet zones, including but not limited to closed circuit television ("CCTV"), software, and sensors.

(c) It is the intent of this section that at least 90 percent of the funds as determined at the beginning of each fiscal year shall be allocated for purposes consistent with this section. At least ten percent of the funds must be maintained as reserves, inclusive of any administrative expenses.

(d) DOSP shall create, manage, and enforce (non-exclusive) a centralized loading program within the Downtown Flagler District subject to the following:

(1) DOSP shall have the authority to limit the size and weight of trucks, timing of deliveries, stopping, standing, and location of loading within the Downtown Flagler District.

(2) Each block face along Northeast/Northwest 1 Street and Southeast/Southwest 1 Street within the Downtown Flagler District may have at least one DOSP managed on-street commercial loading area. DOSP managed on-street loading areas shall be no more than 300 feet apart based on a DOSP commercial loading zone plan approved by the city commission.

(3) DOSP managed loading, valet, and ride-share areas shall be designated by signage and for limited intervals during specified hours.

(e) DOSP may charge fees in its proprietary capacity in addition to the fees stated in sections 35-237—35-240 or any other regulatory fees for the use of DOSP-managed loading facilities.

(f) Notwithstanding Article 7, Section 7.2.8.b of the Miami 21 Code, it is the intent of this section that the Downtown Flagler District, as defined herein, may be granted the general parking reductions and other relaxations of parking requirements allowed pursuant to the Miami 21 Code.

(g) There is hereby created a Downtown Flagler District Improvement Committee ("DFD committee") that shall consist of five voting members and as many non-voting members as may be necessary from time to time at the sole discretion of the chief executive officer ("CEO") of DOSP appointed as follows:

(1) The CEO or designee shall be a non-voting member.

(2) The executive director of the Miami Downtown Development Authority ("Miami DDA") or designee shall be a voting member who shall not require DOSP board confirmation.

(3) The District 2 Commissioner shall appoint one voting member who resides within the boundaries of the Downtown Flagler District who shall be subject to DOSP board confirmation and shall serve a two-year term.

(4) The city's planning director or designee shall be a voting member who shall not require DOSP board confirmation.

(5) One voting member who shall be a property owner of any assessed property within the boundaries of the Downtown

Flagler District who shall be subject to DOSP board confirmation and shall serve a two-year term.

(6) One voting member who shall represent retail and/or restaurant/bar establishments within the boundaries of the Downtown Flagler District who shall be subject to DOSP board confirmation and shall serve a two-year term.

(7) At the sole discretion of the CEO, the CEO may appoint non-voting members as may be necessary from time to time who shall not require DOSP board confirmation.

(8) Nomination of initial members. The CEO shall appoint a committee nominating commission to solicit and screen applications, interview candidates, and submit nominations to the CEO for appointment to the initial committee.

(9) Subsequent nominations and vacancies. A selection committee chosen by the remaining committee members shall be formed and shall make nominations for filling seats upon expiration of a term or in the event of any vacancy and the DOSP board shall confirm the nominees, as applicable.

(10) Quorum. Quorum shall consist of the physical presence of three voting members.

(11) The DFD committee shall be subject to all applicable ethics, public records, and Sunshine laws and all applicable federal, state, and local laws and regulations.

(Ord. No. 14036, § 2, 11-18-21)

Sec. 35-238. Funds made available; financial report.

(a) Funds deposited into the trust fund shall be made available to DOSP for the purposes set forth in section 35-237 and for administrative and regulatory expenses after review and recommendation by the DFD committee to DOSP and approval by the DOSP board following receipt and consideration of the DFD committee's recommendation. DOSP shall submit annual financial reports to the city commission on an annual basis.

(b) A financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by DOSP and presented to the DFD committee for its review and approval prior to filing with the city clerk.

(Ord. No. 14036, § 2, 11-18-21)

Sec. 35-239. Schedule of fees and charges for Downtown Flagler parking and loading improvement trust fund.

(a) Fees in lieu of providing required off-street parking and loading for the area described as the Downtown Flagler District shall be a purchase price of $8,500.00 per half-space and $17,000.00 per full space per parking space waiver ("parking purchase price"). The DFD committee will evaluate every two years whether the parking purchase price is meeting the needs of and appropriate for the Downtown Flagler District and will provide a report and recommendation regarding the parking purchase price to the DOSP. The DOSP shall present the DFD committee report and recommendation to the city commission. Every five years, the DFD committee shall also evaluate and make a recommendation whether the parking purchase price shall be inflation adjusted to be presented to the city commission by DOSP.

Fees in lieu of providing required off-street loading for the area described as the Downtown Flagler District shall be as follows:

(1) A purchase price of $20,000.00 per 200 square feet of loading area, $40,000.00 per 420 square feet of loading area, and $60,000.00 per 660 square feet of loading space per loading space waiver ("loading purchase price"). Only properties described in Article 4, Table 4 of the Miami 21 Code are eligible to participate in this fee-in-lieu of loading program. The loading purchase price shall be inflation adjusted once at the end of each five-year period.

(2) Notwithstanding the fee in lieu of off-street loading, the required number of loading spaces pursuant to Article 4, Table 5 of the Miami 21 Code must be provided off-site as described in Article 4, Table 4 of the Miami 21 Code.

(b) Permanent certificate of waiver. Upon receipt of the full parking purchase price or full loading purchase price, as applicable, and any applicable fees for administrative expenses set by DOSP from time to time in accordance with the provisions of this article, the city shall issue a permanent certificate of waiver in lieu of providing physical parking or loading, as applicable ("certificate of waiver"), which shall be recorded at the property owner's sole expense in the public records of Miami-Dade County, Florida. The certificate of waiver shall run with the land.

(c) Payment as set forth in subsections 35-239(a) and (b) shall be due and payable prior to issuance of a building permit or revisions to an existing building permit for any new construction or addition that generates additional required parking spaces or loading, as applicable; issuance of a certificate of use or temporary certificate of use for any new construction or addition that generates additional required parking spaces or loading, as applicable; or substitution for parking or loading, as applicable, previously to be provided on-site or off-site, whichever is earlier.

(d) Payment of the fees and issuance of the certificate of waiver set forth in the subsections hereinabove shall permanently exempt the respective property from the corresponding parking or loading requirements, as applicable, for such use as specified in the certificate of waiver unless and until such certificate of waiver is revoked as set forth in section 35-240.
(Ord. No. 14036, § 2, 11-18-21)

Sec. 35-240. Parking and loading waiver certificates; revocation; refunds.

(a) Certificates of waiver shall not be issued without full payment and after verification by DOSP, the planning department, and with any other applicable city departments that such certificate of waiver complies with the Miami 21 Code and all parking and loading conditions.

(b) Failure to maintain a building permit as required in this article shall cause the zoning administrator to revoke the certificate of waiver. Any building permit procured as specified in this article must remain active at all times. If a building permit becomes inactive or is otherwise abandoned, a revocation of the certificate of waiver may be initiated. Any appeal of a building permit or similar development permit shall toll the time period specified in this section until a final decision is rendered on the appeal.

(c) In the event that a certificate of waiver is revoked by the zoning administrator or released in writing by the property owner prior to issuance of a certificate of occupancy, temporary certificate of occupancy, certificate of completion, certificate of use, or temporary certificate of use for the improvements that generated the parking or loading requirements, as applicable, for which the certificate of waiver was issued, DOSP shall apply a credit to run with the property and the credit will be available to apply towards a future certificate of waiver for a period not exceeding five years. After five years, the unused credit is deemed abandoned and is forfeited unless the applicant applies in writing for a credit with the planning director anytime during the five-year period in which case the city will approve the timely credit request within 90 days of when the request is made and will credit the entire sum.
(Ord. No. 14036, § 2, 11-18-21)

Secs. 35-241—35-250. Reserved.

ARTICLE VI. SILVER BLUFF COMMERCIAL PARKING IMPROVEMENT TRUST FUND

Sec. 35-251. Established.

There is hereby established a trust fund to be entitled the Silver Bluff commercial parking improvement trust fund (the "trust fund") to be maintained and administered by the department of off-street parking for the purpose of receiving

and expending funds to facilitate public off-street parking to serve the Silver Bluff commercial overlay district through means which may include, but are not limited to the following:

(1) Acquire fee simple or other interest in land and other real property for parking purposes;

(2) Construct, maintain, operate, lease, manage, or otherwise provide off-street parking facilities for public use in conjunction with the Silver Bluff commercial off-street parking program;

(3) Provide public information to enhance parking utilization including publicity campaigns, graphics and signage, and similar information devices;

(4) Enter into agreements with owners of private off-street parking facilities for the use of such facilities when not needed by the owners;

(5) Coordinate plans for parking facility improvements and expansion with public transportation plans and operations in the vicinity, particularly the joint facilities that might be operated in connection with Metrorail and any feeder services existing or future;

(6) Perform such other related activities as may be appropriate to carry out the intent of this article.

(Ord. No. 11104, § 1, 11-23-93; Code 1980, § 36-196)

Sec. 35-252. Schedule of fees and charges.

The schedule of fees and charges to be assessed and paid into the trust fund is as follows:

(1) Fee in lieu of providing required off-street parking for the SD-21 zone, as provided for in article 6 of zoning Ordinance No. 11000 of the City of Miami: $1,500.00 per space, which fee shall be inflation adjusted annually through the consumer price index—urban consumers (CPI-U). The fee may be paid either by a one-time payment, or by periodic payments calculated to yield the principal sum of the required fee in five years at the current DOSP interest rate.

(2) Fees shall be payable to DOSP by lump sum or by execution of a periodic payment agreement in advance of the issuance of a certificate of occupancy or certificate of use, as applicable. If the applicant already holds a valid certificate of occupancy or certificate of use, payment shall be made within 30 days of approval of the requested waiver.

(3) Fees in subsections (1) through (2) above shall be invoiced and payable either once, or at intervals, as appropriate. Fees not paid within 15 days of the due date shall be charged a late fee of five percent of the amount due. Fees not paid within 30 days of the due date shall be charged interest at the rate of ten percent per annum calculated monthly on the unpaid balance including applicable late fees.

(Ord. No. 11104, § 1, 11-23-93; Code 1980, § 35-197; Ord. No. 11329, § 2, 12-7-95)

ARTICLE VII. TRANSPORTATION TRUST FUND

Sec. 35-253. Intent.

It is intended that the "Transportation Trust Fund" be established in order to facilitate the creation, operation, and maintenance, including capital and operating costs, of mass transit and other transportation facilities within the city, including, but not limited to, fixed mass transit routes, the city's trolley system, waterborne mass transit, and public parking garages for transit enhancement purposes. It is further intended that the transportation trust fund money may be expended as the city's share of the cost of an eligible project undertaken or developed by other governmental entities or through a public-private partnership.

(Ord. No. 13568, § 1, 10-22-15)

Sec. 35-254. Trust fund payments.

(a) *Capital contribution.* No less than 20 percent of any unrestricted one-time cash payments to the city of $500,000.00 or more, includ-

ing, but not limited to, payments received through lease re-negotiations, money judgments from lawsuits, audit findings, or any other lump sum payments, shall be reserved in this trust fund for capital or acquisition costs associated with mass transit. The one-time payments for purposes of this section shall not include reasonable costs and any capital replacement costs associated with the transaction that resulted in the receipt of the one-time cash payment. Additionally, 20 percent of all unrestricted cash contributions to the public benefits trust fund, as defined in chapter 62, article XIV of the City Code and Section 3.14 of the Miami 21 Code, the zoning ordinance of the city, as amended, shall be reserved for the same trust fund purpose, with the exception of the cash contributions to the public benefit trust fund for affordable/workforce housing as defined in subsection 62-642(c) of the City Code and Section 3.14.4(a)(3) of the Miami 21 Code. If any unrestricted one-time cash payment to the city of $500,000.00 or more is to be paid in installments, the capital contribution shall be no less than 20 percent of each installment as it is received by the city. These funds may be carried over to the succeeding fiscal year. The total amount of funds deposited into this trust fund shall be capped at $10,000,000.00. Any unrestricted cash payments, or portions thereof, paid into the trust fund in excess of the $10,000,000.00 cap shall be deposited into the city's general fund.

(b) *Operation and maintenance contribution.* Each fiscal year, no less than one-quarter of one percent (0.25%) of the city's general fund operating budget shall be reserved in this trust fund for operation and maintenance costs associated with mass transit. These funds shall, to the extent possible to meet the one-quarter of one percent (0.25%) minimum, primarily consist of transportation related restricted funds eligible for said purpose not already allocated for other expenditures. The administration shall look to earmarked transportation funding, inclusive of Local Option Gas Tax ("LOGT") funding. These funds may be carried over to the succeeding fiscal year.

(c) *Garage contribution.* All funds collected through parking ratio reductions pursuant to Article 4, Table 4 of the Miami 21 Code, as amended, shall be reserved in this trust fund for capital or acquisition costs associated with the creation of new public parking garages operated by the department of off-street parking. These funds may be carried over to the succeeding fiscal year. The purchase price is $10,000.00 per half-space (residential) and $20,000.00 per full space (commercial or residential) per parking space waiver ("purchase price"). The purchase price shall be adjusted for inflation at the end of each five-year period, as approved by the city manager or his/her designee.

(d) *Expenditures.* Nothing in this section shall be construed as limiting the ability to reserve funds in excess of the abovementioned minimums. Expenditures from this trust fund shall require a ⅘ths vote of the entire membership of the city commission upon a written recommendation from the city manager. This article shall not be construed to take funds from any of the established parking trust funds in this article.
(Ord. No. 13568, § 1, 10-22-15; Ord. No. 13908, § 2, 6-25-20; Ord. No 14331, § 2, 11-21-24)

Sec. 35-255. Declared state of emergency.

During a declared federal, state, or local state of emergency for all or a portion of the city, the city manager is authorized to suspend the requirements of subsection 35-254(a) of this article in order to ensure the continuity of services for the city's residents, to preserve and maintain the financial integrity of the city, and for the preservation of the health, safety, welfare, and property of the public and the city. The city manager may suspend the requirements of subsection 35-254(a) retroactively to the date of the earliest declaration of a federal, state or local state of emergency. Said authority shall terminate upon the termination or expiration of the federal, state, and local state of emergency.
(Ord. No. 13908, § 2, 6-25-20)

Secs. 35-256—35-280. Reserved.

ARTICLE VIII. PRIVATE PARKING LOTS*

Sec. 35-281. City authorization required.

(a) It shall be unlawful for any person or entity to engage in the operation or maintenance of a parking lot for a fee or charge, unless such person or entity is authorized by the city and has paid the appropriate fee in accordance with the provisions of this Code or other ordinances.

(b) All private pay meters, pay stations or similar payment devices shall prominently display the name of the lot owner or operator and the lot owner or operator's phone number and email. The operator name and logo, if applicable, shall not resemble the type or logo of the Miami Parking Authority.
(Ord. No. 13427, § 2, 1-9-14; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-282. Permit, certificate of use and a business tax receipt, records required.

(a) No person or entity shall engage in the operation or maintenance of a parking lot for a fee or charge unless such person holds a valid permit, certificate of use and a business tax receipt.

(b) Such permit shall serve as evidence of the operator's compliance with all building, zoning, finance, and lighting requirements the Florida Building Code, the Florida Building Code- Accessibility and the Miami-Dade County Code, Chapter 8C.

(c) Copies of the permit, certificate of use and business tax receipt must be displayed, or available, on the premises for ease of inspection by the city and at the office of the owner or operator. If no booth is available on-site, such documentation shall be displayed, or available for review, at the office of the owner or operator.
(Ord. No. 13427, § 2, 1-9-14)

Sec. 35-283. Signs indicating charges.

(a) All operators shall erect signs, one at each entrance of the parking lot, or if only one entrance exists, then one sign at such entrance. Such signs are not to be smaller in size than two square feet, with letters not less than six inches in size printed or painted thereon, indicating the price and fee charged for automobile parking and the period of time for which such fee or price is charged. Such signs are not to be smaller in size than two square feet, with letters not less than six inches in size printed or painted thereon, indicating the price and fee charged for automobile parking and the period of time for which such fee or price is charged. The sign shall be displayed not less than five feet from the ground nor more than eight feet above the ground. If lots are not being attended and are run electronically or by multi-space, pay and display equipment, rate information and company contact information shall be prominently displayed on the machine.

(b) Signage for private owners and operators must also include: hours of operation, owner or operator name, and owner or operator address and phone number and email. It shall also include a statement disclosure: *Operated by a private company.*

(c) All signage shall be in compliance with the Miami 21 Code, as amended.

(d) Any parking lot advertisement must be accurate and not false or deceptive in any manner.

(e) It shall be unlawful to place any temporary signs, such as "A" frame signs or any such similar signs outside the parking lot property, on the streets or sidewalks as prescribed by chapter 54 of the City Code.
(Ord. No. 13427, § 2, 1-9-14; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-284. Alteration of charges; charges in excess of published rate.

It shall be unlawful for any such licensee or his/her agent or employee to charge a rate or fee

*__Editor's note—__Ord. No. 13568, § 1, adopted October 22, 2015, redesignated the former article VII as article VIII. Ord. No. 13427, § 2, adopted January 9, 2014, amended article VII in its entirety to read as herein set out. Formerly, article VII, §§ 35-281—35-287, pertained to similar subject matter, and derived from the Code of 1967, §§ 38-51—38-56, 38-177; the Code of 1980, §§ 35-111—35-116, and Ord. No. 11325, § 1, adopted November 16, 1995.

higher than the rate published on the signs erected on the parking lot or displayed on any pay and display equipment as provided for in section 35-283.
(Ord. No. 13427, § 2, 1-9-14; Ord. No. 13676, § 2, 4-27-17)

Sec. 35-285. Revocation of license for violations.

(a) Conviction of the violation of any of the provisions of sections 35-281 through 35-291 shall subject the violator to fines and/or the revocation of his/her certificate of use and business tax receipt by the city manager or his/her designee. The violator may request an appeal of the revocation of each to the department of hearing boards, within 15 days of receipt of the revocation notice.

(b) The city manager, or his or her designee, may order the immediate cessation of the use of the parking lot for any violation of this article where, in the opinion of the city manager or his or her designee, the parking lot constitutes an immediate hazard to the health, safety, or welfare of the public, causing potential immediate harm to the users of said parking lot.

(c) Any certificate of use revoked under subparagraph (a) above may be reinstated within 30 days following the completion of any and all required inspections. No such parking lot or part thereof shall be allowed to open if there is a violation outstanding.
(Ord. No. 13427, § 2, 1-9-14; Ord. No. 13676, § 2, 4-27-17)

Sec. 35-286. Barriers at off-street parking areas adjacent to sidewalk or roadway; closures; entrance or exit.

(a) All owners or operators of off-street parking areas adjacent to any sidewalk or roadway shall have a permanent-type barrier not less than four feet in height at all places where such parking area is bounded by sidewalks or roadways, except at permanently designated entrances and exits.

(b) Barriers shall be made of aluminum or galvanized picket and shall be placed so as to prevent any vehicle from entering or leaving a parking area except at a permanently designated entrance or exit and so as to prevent any portion of a parked vehicle from extending beyond the boundary of the parking area.

(c) The hours of operation of a parking lot shall be placed prominently displayed at each entrance or exit. When a parking lot is full, the employees of the owner or operator shall direct traffic to an adjacent parking lot with capacity or away from the parking lot entrance so as to prevent vehicles from obstructing travel on the adjacent right-of-way travel lanes.

(d) Employees utilizing flags to facilitate ingress and egress from a parking lot are prohibited from standing in the public right-of-way, i.e. streets or sidewalks other than on the sidewalk immediately adjoining the parking lot within 20 feet of the parking lot entrance or exit. At no time shall any such employee: (i) obstruct the flow of traffic within vehicular travel lanes; (ii) impede the full use and enjoyment of the adjoining sidewalk by public; or (iii) solicit business from the sidewalk for the parking lot of their owner operator by standing on the sidewalk adjoining a parking lot or business establishment by which they are not employed. Employees or licensees may receive traffic citations for obstructing traffic or further fines as allowed by this article.
(Ord. No. 13427, § 2, 1-9-14)

Sec. 35-287. Temporary use of parking lots for special events.

All private owners, operators, permit holders or affiliated entities operating one or more parking lots servicing special events at arenas, stadiums or other similar facilities within 500 feet of the property in which the special event occurs must provide uniformed security for one hour prior to such events and for a minimum of 45 minutes after the event has concluded. A minimum of one off-duty or reserve police officer must be used as uniformed security by those private owners, operators, permit holders and their affiliated entities operating one or more

parking lots which, in the aggregate, have capacity for 125 or more vehicles during special events. (Ord. No. 13427, § 2, 1-9-14)

Sec. 35-288. Continuous duty to maintain adequate lighting for parking lots; maintain parking lot in a clean condition.

(a) All person(s) engaged in the operation or maintenance of a parking lot shall have a continuous, uninterrupted duty to maintain adequate lighting in said parking lot. The duty shall extend over all portions of the property being used for parking, including any ancillary landscaping features and all points of vehicular and pedestrian ingress and egress.

(1) Open parking lots and access thereto shall be provided with a maintained minimum of 1.0 foot-candle on the parking surface from dusk until dawn; provided, however, the lighting level may be reduced by 50 percent on non-business days and commencing 30 minutes after the termination of business on each operating day. The uniformity ratio shall not exceed a twelve to one ratio (12:1) maximum to minimum foot-candles.

(2) Alleys shall be provided with a maintained minimum of one-third foot-candle on the alley surface from dusk to dawn. The uniformity ratio shall not exceed a twelve to one (12:1) maximum to minimum foot-candles. This provision shall not apply to governmental facilities not generally open to the public, and shall apply to those governmental facilities that are generally open to the public only during the dusk-to-dawn hours such facilities are open.

(3) Parking and non-enclosed areas under or within buildings shall be maintained a minimum of one foot-candle of light on the walking and parking surfaces from dusk until dawn, and the ratio of maximum to minimum illumination in foot-candles shall not exceed twelve to one (12:1); provided, however, the lighting level may be reduced by 50 percent on non-business days and commencing 30 minutes after the termination of business on each operating day. It is provided that this provision shall not apply to governmental facilities not generally open to the public, and shall apply to those governmental facilities that are generally open to the public only during the dusk-to-dawn hours such facilities are open.

(4) The area immediately outside of exterior doors shall have security illumination and shall be activated during the dark period of every day.

(b) In addition to lighting, the parking lot must be free from hazardous conditions such as broken glass, debris, and pot holes. The lot must be kept in a safe and clean condition.

(c) Each parking lot must have a dumpster or provide trash receptacles or be serviced by a commercial solid waste franchisee such that the property is free and clear of debris or litter. (Ord. No. 13427, § 2, 1-9-14)

Sec. 35-289. Owner, operator, and employee requirements.

(a) Employees must wear a uniform shirt with the parking lot owner or operator's company name and logo printed on it.

(b) The name of all employees shall be listed by shift in the company records available for inspection at the parking lot location during its hours of operation or at the owner or operator's office during regular business hours.

(c) Employees must be paid wages pursuant to state and federal law.

(d) No individual owner or operator, or shareholder or member of an ownership or operating entity, of any parking lot shall have a controlling financial interest in any booting or tow company servicing a parking lot for the same owner or operator. All parking lots must follow state and county towing and booting guidelines. (Ord. No. 13427, § 2, 1-9-14)

Sec. 35-290. Compliance with the interim parking in chapter 62, article XIII, division 4.

(a) All parking lots in the interim temporary parking pilot program authorized pursuant to subsection 62-543(4) prior to January 9, 2014 must immediately come into full compliance with the Florida Building Code, the Florida Building Code-Accessibility and the Miami-Dade County Code, Chapter 8C, including, but not limited to, the requirements for landscaping, lighting, asphalt, fencing, etc., based on the date set for compliance in the original application or as set forth in subsection (b) below, whichever is shorter.

(b) Any parking lot owner or operator of a lot who has received an approval after January 9, 2014 but prior to July 25, 2019 and that meets all permit and City Code requirements shall be allowed to operate pursuant to its permit provided that the all interim parking lots must come into full compliance with all state, county, and local laws, rules, and regulations regarding the permitting, operation, and maintenance of parking lots within one year from obtaining a temporary certificate of occupancy or within one year from 120 days from passage of the ordinance from which this section derives, whichever is shorter. Nothing herein shall be deemed to preclude the continued use and permitting of conditionally improved, unimproved, and partially improved temporary parking lots as authorized pursuant to any other subsection of section 62-543. No parking lot that has previously received approval pursuant to section 62-543 of the City Code may receive a subsequent new approval for the same property so as to prevent temporary parking lots from remaining in such a state on a permanent basis. Notwithstanding the above, any parking lot currently operating pursuant to a valid permit may receive further renewals subject to compliance with the requirements set forth in section 62-543 of the City Code.

(Ord. No. 13427, § 2, 1-9-14; Ord. No. 13854, § 2, 7-25-19; Ord. No. 14069, § 2, 6-9-22)

Sec. 35-291. Enforcement of this article; penalties.

A violation of this section may be enforced pursuant to the provisions of prescribed in chapter 2, article X—Code enforcement, section 31-48 of the City Code, or under any other provisions allowed by law. The City of Miami Police may enforce the provisions of this article pursuant to the above-cited provisions.

Violations of this article shall be cited in accordance with the schedule of civil penalties set forth in section 2-289 of the City Code and as allowed by law.

(Ord. No. 13427, § 2, 1-9-14)

Secs. 35-292—35-300. Reserved.

Editor's note—Ord. No. 14340, § 2, adopted December 12, 2024, repealed the former section 35-292 in its entirety, which pertained to the prohibition of the issuance of private parking violations and derived from Ord. No. 13840, § 2, adopted May 23, 2019; Ord. No. 13842, § 2, adopted June 13, 2019, and Ord. No. 13990, § 2, adopted April 22, 2021.

ARTICLE IX. VALET PARKING*

Sec. 35-301. Purpose; permit and license required.

(a) The purpose of this article is to:

(1) Reduce the disruption of vehicular and pedestrian traffic that valet parking service operations may create;

(2) Minimize hazardous conditions that valet parking service operations may create in order to protect the health, safety and welfare of the public;

(3) Promote the safe and legal operation of valet parking services for the use and convenience of businesses and the general public.

(b) No person, establishment or entity shall conduct valet parking service on public right-of-way as herein defined without first obtaining a permit from the director of the department of

*__Editor's note—__Ord. No. 13568, § 1, adopted October 22, 2015, redesignated the former article VIII as article IX.

Ord. No. 12588, § 1, adopted September 23, 2004, amended article VIII in its entirety to read as herein set out. Formerly, article VIII pertained to similar subject matter and derived from Ord. No. 11483, § 2, adopted April 10, 1997; Ord. No. 11678, § 2, adopted June 23, 1998; Ord. No. 11812, § 2, adopted July 13, 1999.

off-street parking and paying the fee therefor to the chief financial officer of DOSP or his/her designee.
(Ord. No. 12588, § 1, 9-23-04; Ord. No. 13676, § 2, 4-27-17)

Sec. 35-302. Definitions.

Department or *DOSP* means the city department of off-street parking also known as Miami Parking Authority ("MPA").

Director means chief executive officer of the city department of off-street parking, or designee.

Officer means police, parking enforcement specialist, code enforcement officer.

Permit means the receipt of a valet parking permit under the terms and provisions of this article.

Permittee/operator means valet company and its employees.

Tandem parking means the storage of vehicles, irrespective of how configured, that requires moving at least one other vehicle to reach the vehicle sought.

Valet parking service area or ramping means the public right-of-way to be utilized for the valet parking service. This excludes the use of the T3 transect zone right-of-way areas unless associated with an accompanying T3 transect zone special event permit as contemplated in section 35-303.
(Ord. No. 12588, § 1, 9-23-04; Ord. No. 14138, § 11, 2-9-23; Ord. No. 14142, § 2, 2-9-23; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-303. Boundaries.

Valet parking service shall only be permitted within transect zones T4-L and O, T5-L and O, T6-L and O, C, and D. Furthermore, a valet parking service shall only be permitted within all T3, T4-R, T5-R and T6-R transect zones by obtaining a special event temporary permit as referred to in section 35-315. Valet parking services shall not use the right-of-way in T3 transect zones for the parking of any vehicles from their stands located in other transect zones unless associated with a special event permit issued for a T3 transect zone event.
(Ord. No. 12588, § 1, 9-23-04; Ord. No. 14142, § 2, 2-9-23)

Sec. 35-304. Permit fee; exceptions.

The annual, non-refundable permit fee for establishing or maintaining a valet parking service shall be $1,400.00 from the effective date, paid to the department, in addition to the following ramping fees:

Ramping fee:

(1) If the operation of the valet parking service requires the rental of metered or non-metered parking spaces or area, the permittee/operator shall also pay a ramping fee of the rate established by DOSP per metered parking space or the rate for every 20 linear feet per day to the department. All rates are stated in section 35-194 of the parking rate ordinance.

(2) The city manager, the director, or their designees, may waive said permit fee and ramping fee for valet parking service exclusively serving a city-owned and operated facility.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-305. Permit application.

(a) Application for a permit to conduct a valet parking service shall be made at the department in a form deemed appropriate by the director and city attorney. Such application shall include, but not be limited to, the following information:

(1) Name and address of the proposed permittee/operator. If incorporated, permittee/operator must provide copies of the articles of incorporation and bylaws;

(2) Copy of a valid certificate of use and local business tax receipt issued by the city;

(3) Copy of current liability insurance in accordance with the provisions of section 35-308 of this code;

(4) Site plan (at an appropriate scale) showing the proposed tandem parking arrangement, if any, the lay-out and dimensions of the existing public right-of-way and adjacent private property, proposed location, size of proposed mobile stands, tables, chairs, umbrellas, keybox, location of doorways, location of trees, parking meters, bus shelters, sidewalk benches, trash receptacles, driveways, and any other sidewalk obstruction either existing or proposed within the pedestrian areas. Under no circumstances shall permanent structures or equipment be permitted. The site plan shall clearly identify the valet parking service area, and shall also show the proposed location, number of parking stalls and distance to the off-street parking facility providing the parking spaces for the valet parking service;

(5) Photographs, drawings, or manufacturers' brochures fully describing the appearance of all proposed mobile stands, tables, chairs, umbrellas, keybox or other objects related to the valet parking service; and

(6) Copy of the agreement/contract for the provision of the off-street parking spaces that includes identification of the location of vehicle storage spaces.

(b) Applications shall be accompanied by an annual nonrefundable application fee of $250.00.

(c) Applications shall be forwarded by the director to all city departments which may be affected by the granting of the permit, including but not limited to, resilience and public works, building planning and zoning, police, and risk management. The city departments shall review and submit comments on the application(s) to the department within 45 calendar days.

(d) Within 50 calendar days of receipt of a completed application, the director shall issue a letter of intent to approve or deny the permit. The director shall provide a copy of the permit approval or denial to the finance department when the decision is made.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14138, § 11, 2-9-23; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-306. Permit requirements, restrictions and when not permitted.

(a) Permits shall be issued only for pedestrian areas and public right-of-way under the maintenance jurisdiction of the city.

(b) Valet parking service shall be operated only by commercially licensed and insured vendors of parking services holding valid city local business tax receipts.

(c) Permits shall be issued only to permittees/operators that provide certification, in a format approved by the director and city attorney, that they have procured sufficient accessible off-street parking spaces for their valet parking services. On-street parking spaces shall not be included in the computation of sufficient parking spaces for valet parking.

(d) A permit shall not be issued when another valet parking permit has already been issued for a valet parking area immediately adjacent to the proposed permit area. Furthermore a permit shall not be issued when the proposed permit area is on the same side of one city block of another valet parking area, unless authorized by the director.

(e) Permits or a copy of a valid permit must be at valet ramping area at all times.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-307. Standards and criteria for application review.

The following standards and criteria shall be used in reviewing the application required in section 35-305:

(1) The location of the valet parking service area is restricted to existing designated on-street parking spaces.

(2) The width of the valet parking service area shall comprise a minimum of three parking spaces (approximately 60 linear feet).

(3) Mobile stands, tables, chairs, umbrellas, keyboxes and any other objects neces-

sary for the operation of the valet parking service shall be located on the sidewalk in such a manner that a minimum six-foot wide clear pedestrian path is maintained at all times. In areas of congested pedestrian activity, the director is authorized to require a wider pedestrian path, as circumstances dictate. Under no circumstances shall permanent structures or equipment be permitted, unless authorized by the director.

(4) Mobile stands, tables, chairs, umbrellas, keyboxes and any other objects necessary for the operation of the valet parking service shall be of quality, design, materials, and technique, both to ensure the safety and convenience of users, and to enhance the visual and aesthetic quality of the urban environment. Design, materials, and colors shall be sympathetic and harmonious with an urban environment. The city manager's office or its designated city department and the director of the city planning and zoning department shall be responsible for the review and approvals required by this subsection.

(5) Permits will not be issued where the drop-off and pick-up of vehicles interferes with the safe operation of driveways, street intersections, crosswalks or other prohibited areas.

(6) Permits will not be issued where stacking of drop-off and pick-up of vehicles interferes with the safe traffic operation on adjacent streets or unduly delays normal traffic operations.

(7) Tandem storage of vehicles arrangements will be evaluated for meeting technical standards.

(8) The permittee/operator shall abide by the terms and conditions set forth in the guides and standards developed by the department, as amended. The entire permitting process shall be completed within 50 calendar days.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14138, § 11, 2-9-23; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-308. Liability and insurance.

(a) Prior to the issuance of a permit, the permittee/operator shall furnish the director with a signed statement, approved by the city attorney, that the permittee/operator shall hold-harmless, indemnify and defend the city, its officers and employees and the department and board of directors, their officers and employees for any claims for damages to property or injury to persons which may be occasioned by any activity carried on under the terms of the permit.

(b) Permittee/operator shall furnish and maintain such public liability and property damage insurance to protect from all claims and damage to property or bodily injury, including death, which may arise from operations under the permit or in connection therewith. Such insurance shall be provided from an insurance company with an A.M. Best rating of not less than "A" and a financial strength rating of not less than "X," acceptable to the risk management division, and shall provide coverage of not less than $1,000,000.00 for bodily injury, and property damage respectively per occurrence. Such insurance shall be without prejudice to coverage otherwise existing therein and shall name as additional insured the city, DOSP and board of directors, its officers and employees, and shall further provide that the policy shall not terminate or be canceled prior to the completion of the permit period without 45 days written notice to the risk management division and the director at the address shown in the permit. Additionally, permittee/operator shall provide "garage keepers" legal liability insurance providing collision and comprehensive coverage for vehicles under the control of the valet parking operator with a minimum of $500.000 per location with a maximum self-insured retention (SIR) or deductible of $1,000.00.

(c) The permittee/operator shall provide proof of all required insurance prior to receiving the permit.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-309. Form and conditions of permit.

The permit shall be issued on a form deemed suitable by the director and city attorney. In

addition to naming the permittee/operator, the conditions set forth in preceding sections of this article, and any other information deemed appropriate by the director, the permit shall also contain, the following conditions:

(1) Each permit shall be in effect for one-year, subject to annual renewal. Any renewal of a permit shall require compliance with all requirements for permits in the same manner as an original application.

(2) The permit issued shall be personal to the permittee/operator only and shall not be transferable or refundable in any manner.

(3) The permit may be temporarily suspended by the director for a "community" or "special event." The permittee/operator shall be entitled to a pro rata credit on the next permit payment due for any permit suspended a full business day or longer pursuant solely to this subsection. Advance notice will be provided to permittees/operators whenever practical.

(4) The director may require the temporary removal or relocation of valet parking service when street, sidewalk, or utility repairs necessitate such action; if not able to relocate, DOSP will credit the permittee/operator for number of days out of service.

(5) The department of fire-rescue or the police department may immediately remove or relocate all or parts of the valet parking service in emergency situations. Officers of the police department, or such special officers as are assigned by the chief of police or DOSP, are hereby authorized to direct traffic, including drop-off and pick-up vehicles, as conditions may require, notwithstanding the provisions of this chapter or other applicable traffic ordinances.

(6) Under no circumstances shall the city, the department and the board of directors, and its officers and employees be deemed responsible or liable in any way for any damage or loss resulting from the removal of the permittee/operator equipment and other objects necessary for the operation of the valet parking service during emergencies. Furthermore, the permittee/operator agrees and acknowledges by accepting a permit issued pursuant to this article that the city, the department and the board of directors are to be held harmless in connection with its actions under this section.

(7) The permit shall be specifically limited to the area shown on the approved site plan attached to and made part of the permit.

(8) The permittee/operator shall use positive action to assure that its use of the sidewalk in no way interferes with sidewalk users or limits their free unobstructed passage.

(9) Mobile stands, tables, chairs, umbrellas, keyboxes and any other objects necessary for the operation of the valet parking service shall be maintained with a clean and attractive appearance and shall be in good repair at all times and removed at the close of business each day.

(10) The sidewalk area covered by the permit shall be maintained in a neat and orderly appearance at all times and the area shall be cleared of all debris on a periodic basis during the day, and again at the close of each business day.

(11) No advertising signs shall be permitted on the sidewalk or in the public right-of-way, this shall not prohibit the use of one business identification sign located on the sidewalk, bearing no advertising and not exceeding five square feet in area, to be affixed to the valet parking service stand to identify "Valet Parking."

(12) No mobile stands, tables chairs, umbrellas, keyboxes nor any other objects necessary for the operation of the valet parking service shall be attached, chained, or in any manner affixed to any tree, post, sign, or other fixtures, curb or sidewalk within or near the permitted area. All

valet parking service objects necessary for the operation of the valet parking service, other than required traffic cones, shall be located no closer than 30 inches behind the face of curb on the sidewalk.

(13) The permit covers only the pedestrian and public right-of-way. Valet parking services and objects necessary for the operation of the valet parking service located on private property shall be governed by other applicable city regulations.

(14) The permittee/operator shall provide written notification to the director and the chief of police when operation of the valet parking service begins. Said notice shall be delivered within 24 hours of such commencement.

(15) Tandem parking of vehicles shall be limited to a maximum of three vehicles (i.e. a maximum of two vehicles shall be required to be moved to reach the vehicle sought).

(16) The permittee/operator shall have available on-site for display upon request a valid local business tax receipt and valet parking permit issued pursuant to this article.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-310. Valet permittees/operators code of conduct; required customer protection regulations.

Permittees/operators shall require their employees and independent contractors to meet the following requirements:

(1) All employees who operate motor vehicles shall have in their possession a valid Florida Driver's License in good standing and shall abide by all city, Miami-Dade County and state traffic regulations.

(2) All employees shall be in similar uniforms.

(3) All employees shall wear on their uniform a name tag identifying the employee's name and the name of the valet operator/company.

(4) All employees shall perform their duties in a courteous and professional manner.

(5) All employees must comply with the requirements of this article and all applicable laws, statutes, ordinances, rules and regulations relating to traffic safety.

(6) Pricing for services shall be identified on any "signage" used by the valet operator. The size print of the foregoing information shall be equal to the largest size print used on any "signage" used to identify the service or valet operator. Claim tickets shall also indicate the price for the service. The print size of the foregoing shall be equal to that used for any other information displayed on the ticket.

(7) The claim ticket shall identify the valet operator's company name, correspondence address and a phone number for questions/complaints. All of the foregoing print shall be of equal size.

(Ord. No. 12588, § 1, 9-23-04)

Sec. 35-311. Operational regulations and restrictions for valet parking service.

(a) The public on-street/curbside parking spaces, metered or non-metered, shall only be used for ramping of vehicles. Ramping of vehicles shall consist of allowing the customer to enter or exit a vehicle and to turn it over to or retrieve it from a valet parking operator employee. Ramping shall only be permitted and operated in the public on-street/curbside spaces provided by the department for ramping. There shall be no storage of vehicles in the area used for ramping. A vehicle will be considered stored if it remains in the ramping area for more than ten minutes. Ramping spaces shall not be blocked by any type of sign, structure or other type of object. These spaces shall not be cordoned off by any type of signage, rope or barrier of any kind;

(b) The permittee/operator shall possess a valid local business tax receipt to operate the valet parking service within the city;

(c) The permittee/operator shall maintain a key control booth at all valet parking locations until all cars have been claimed; or the permittee/operator shall have a 24 hour phone number for after hours vehicle pick up information.

(d) The permittee/operator shall not load or unload passengers within traffic lanes that are open to through traffic;

(e) The valet parking service shall not interfere with the regular flow of vehicular or pedestrian traffic.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-312. Department denial, revocation, or suspension of permit; removal of equipment or personal property of the permittee/operator and storage fees.

(a) The director may deny, revoke, or suspend a permit for any valet parking service authorized in the city if it is found that:

(1) The permittee/operator has not maintained required insurance;

(2) The director determines that the operation of a valet parking service, due to changing or changed conditions of pedestrian or vehicular traffic, cause congestion necessitating removal of valet parking service which endangers the health, safety or welfare of persons or property; unreasonably interferes with pedestrian or vehicular traffic; unreasonably interferes with the use of any pole, sign, fire hydrant, traffic signal or other object already permitted at or near the valet parking service area; or otherwise not in the public interest; or

(3) The permittee/operator has failed to correct violations of this article or conditions of the permit within three days of the director's notice of same being delivered in writing to the permittee/operator at the address shown on the permit application;

(4) If permittee/operator is found in violation of the same offense three times within a permit period;

(5) The permittee/operator made any false statements or omission of material fact on the application, site plan or elsewhere in connection with securing a permit.

(6) The permittee/operator failed to properly pay and/or report operational, administrative, rental fees, and/or parking facility surcharges pursuant to sections 35-194, 35-311, and 35-346 herein or any other applicable section of this Code.

(b) Stands, tables, chairs, umbrellas, key boxes and other objects necessary for the operation of the valet parking service may be removed by the department or city, and a reasonable fee charged for labor, transportation, and storage, should the permittee/operator fail to remove said items at the close of business on a daily basis. Under no circumstances shall the city, the department and the board of directors, and its officers and employees be deemed responsible or liable in any way for any damage or loss resulting from the removal of the permittee/operator equipment and other objects necessary for the operation of the valet parking service. Furthermore, the permittee/operator agrees and acknowledges by accepting a permit issued pursuant to this article that the city, the department and the board of directors are to be held harmless in connection with its actions under this section.

(c) Upon a finding of a violation by the director based on subsection (a)(6) herein and a finding of guilt after a hearing by the code enforcement board pursuant to chapter 2, article X of the City Code, the permittee/operator shall pay treble fees; shall have its permit, certificate of use, temporary certificate of use, and/or business tax receipt denied, revoked, or suspended for a period of two years; be subject to any penalties applicable pursuant to section 35-347 herein; and/or be subject to debarment pursuant to section 18-107 of the City Code. Payment of parking surcharge must be current and up to

date, otherwise the permit is subject to revocation and the immediate suspension of valet services.

(d) Upon denial or revocation, the director shall give notice of such action to the applicant or the permittee/operator in writing stating the action which has been taken and the reason thereof. If the action of the director is based on subsection(s) (a)(1) or (2) of this section, the action shall be effective upon giving such notice to permittee/operator. Otherwise, such notice application shall become effective within ten calendar days unless appeal to the city commission is made.
(Ord. No. 12588, § 1, 9-23-04; Ord. No. 13809, § 2, 11-15-18; Ord. No. 14340, § 2, 12-12-24)

Sec. 35-313. Appeals of permit denial or revocation by permittee/operator.

(a) Appeals shall be initiated within ten business days of a permit denial or revocation by filing a written notice of appeal with the city manager, and a copy of same delivered the same day to the director. Any revocation effective immediately may also be appealed to the city commission by such filing within ten calendar days.

(b) The city manager shall place the appeal on the first non-planning and zoning city commission agenda for which proper notice can be given to the permittee/operator and shall notify the director thereof. At the hearing the city commission may modify, grant or deny the appeal, and the decision of the city commission shall be final subject to appeal to the appropriate court of competent jurisdiction, according to the Florida Rules of Civil Procedure.

(c) The filing of a notice of appeal by a permittee/operator shall not stay an order by the director to remove valet parking service or parts thereof. Vestiges of the valet parking service shall be removed immediately, pending disposition of the appeal and final decision of the city commission.
(Ord. No. 12588, § 1, 9-23-04; Ord. No. 14340, § 2, 12-12-24)

Editor's note—Ord. No. 14340, § 2, adopted December 12, 2024, changed the title of section 35-313 from "Appeals of permit denial or revocation" to "Appeals of permit denial or revocation by permittee/operator." The historical notation has been preserved for reference purposes.

Sec. 35-314. Enforcement; fine schedule and penalty provisions.

(a) *Enforcement.* The officers shall enforce the provisions of this article. This shall not preclude other enforcement agencies or regulatory bodies from any action as necessary to ensure compliance with this article and all applicable laws. For any violation of a provision of this article the officer shall issue a notice of violation/citation to the permittee/operator. The notice shall state the nature of the violation, amount of fine, instructions and due date for paying the fine, notice that the violation may be appealed by requesting an administrative hearing within ten calendar days after service of the notice and that failure to appeal the violation within the ten calendar days, shall constitute an admission of the violation and a waiver of the right to appeal.

(b) *Additional enforcement.* As an additional means of enforcement, the department may seek injunctive relief and/or the city may follow procedures to revoke local business tax receipts as set forth elsewhere in the City Code when there are repeat violations of this article. Additionally, the department, may withhold issuance of any new valet permits and suspend current valet parking permits until past due violations are paid in full.

(c) *Rights of violator: payment of fine; right to appeal.* For civil infractions or notice of violations pursuant to section 2-811 et seq., of the City Code, the citing officer shall issue either a civil infraction or a notice of violation which, upon adjudication by the code enforcement board, can lead to daily fines of up to $1,000.00 per diem for a first-time offender or up to $5,000.00 per diem for a repeat violator.

(d) *Recovery of unpaid fines.* The department may institute proceedings in a court of competent jurisdiction to compel payment of civil penalties. A certified copy of an order imposing a fine may be recorded in the public records.

(e) *Civil fines.* The following civil fines shall be imposed for each violation unless a notice of violation is issued. Fines will be paid to the department with one-third remaining with the department and two-thirds being forwarded to the city finance department. To determine the exact nature of the activity prescribed or required the specifics of this article must be examined The below table does not reflect possible per diem fine amounts based upon the issuance of a notice of violation under section 2-814 through 2-820 of the City Code. Civil fines shall issue in the amount as follows and may be issued every 24 hours should the violation remain outstanding:

(1) Unauthorized/illegal ramping	$500.00 per offense
(2) Unauthorized/illegal storage	$500.00 per offense
(3) Lapse of insurance (from date of lapse)	$150.00 per day
(4) Operation without permit	$500.00 per day
(5) No name tag	$100.00 per offense
(6) No uniform	$100.00 per offense
(7) No valid FL drivers license	$500.00 per offense and immediate removal of the employee from service.
(8) Violation of guides and standards	$250.00 per offense
(9) Other violation of this article	$250.00 per offense.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 14142, § 2, 2-9-23)

Sec. 35-315. Special events and residential areas.

(a) *Valet service—special event.* Valet services operating for a special event may apply for a special event permit at DOSP. Special event parking shall be restricted to any event occurring no more than twice per year and lasting no longer than three days in length. The special event permit will allow the valet operator to request from the department, additional ramping and/or storage space, if available, as long as it does not reduce the number of parking spaces needed to serve the general public in the area of the request.

(b) *Valet service—residential.* Valet service may be provided for non-commercial uses, including private functions in residentially zoned areas for a one day. Valet operators must meet the same criteria as a regular day to day valet operation as referenced in the permit application (see section 35-305). Valet operators must complete a temporary valet parking permit form and submit this form to DOSP 14 days prior to the scheduled event.

Note: Temporary valet parking permit requests submitted within less than 14 working days of a scheduled event will only be accepted for situations deemed as an emergency. An emergency is defined as a situation or occurrence of a serious nature, developing suddenly and unexpectedly within less than 14 working days of the event and demanding immediate attention.

The following requirements must be satisfied:

(1) *Ramping.* Valet ramping may be provided either on private property at the location to be serviced or on public property but not in a T3 transect zone. Ramping on public property shall not occur in any other location than the public on-street/curbside parking spaces provided for ramping. Ramping from a moving lane of traffic is strictly prohibited unless authorized by the city. The ramping area shall be determined as stated in section 35-304, unless specified otherwise in this article.

(2) *Storage.* Storage of vehicles must be in compliance with section 35-305. Storage of vehicles on public right-of-way is strictly prohibited, unless authorized by DOSP.

a. *Storage on public right-of-way.* Valet operators may request the use of public right-of-way for storage under the following conditions:

1. Private or public storage (parking lot and/or garage) is not available within 2,500 feet of the location to be serviced.

2. All prohibited parking regulations (fire hydrants, crosswalks, etc.) are strictly enforced.

3. T3 transect zones may not be used for temporary or permanent storage of vehicles.

(Ord. No. 12588, § 1, 9-23-04; Ord. No. 14142, § 2, 2-9-23)

Secs. 35-316—35-340. Reserved.

ARTICLE X. PARKING FACILITIES SURCHARGE*

Sec. 35-341. Short title.

This article shall be known and cited as the *"City of Miami Parking Facilities Surcharge Ordinance."*
(Ord. No. 12563, § 3, 7-22-04)

Sec. 35-342. Intent.

This article is intended to impose and levy a surcharge on the sale, lease or rental of space at parking facilities in the city at the rate of 15 percent of the revenues derived from any fee, charge or exchange for the parking of a motor vehicle in or on any parking facility in the city for which a fee, charge or exchange is made on an hourly, daily, weekly, monthly, yearly, event, validation programs, valet or any other basis. Revenues received as part of a daily, weekly, monthly, yearly, or event based rent without a separate parking fee designation are also subject to this article. The net proceeds of the surcharge collected shall be deposited in the general fund subject to appropriation pursuant to the budget and fiscal provisions of the annual budget process.
(Ord. No. 12563, § 4, 7-22-04; Ord. No. 13063, § 2, 5-14-09)

Sec. 35-343. Authority.

The city commission is authorized to establish and adopt a surcharge pursuant to the authority granted by F.S. § 166.271. The provisions of this article shall not be construed to limit the power of the city to adopt such ordinance pursuant to any other source of local authority nor to utilize any other methods or powers otherwise available for accomplishing the purposes set forth herein, either in substitution of or in conjunction with this article.
(Ord. No. 12563, § 5, 7-22-04)

Sec. 35-344. Definitions.

As used in this article the following words and terms shall have the following meanings, unless another meaning is plainly intended:

City means the City of Miami, Florida.

Daily means the operation of a facility on any or all of the seven (7) days of the week, inclusive of holidays.

Fee, charge or exchange means the consideration paid including any and all compensation received or costs imposed, collected or exacted by the operator for parking in a parking facility including exchange, credit or otherwise. Fee, charge or exchange also means the consideration paid to the operator for goods and services ancillary to parking, if payment for such goods and services is mandatory and not optional to the user entering into a parking transaction. Examples of goods and services that may be considered ancillary to parking include, but are not limited to, food, beverages, air fresheners, windshield cleaning, car wash, tire pressure checks, jump starts, and emergency phone services. The intent of this definition is to impose the surcharge on all consideration paid by the user as a condition of entering into a parking transaction, irrespective of whether particular components of such consideration are characterized as compensation received or cost imposed for goods and services separate and apart from parking in an attempt to evade the surcharge.

Garage means any building or other structure in which motor vehicles may be parked, stored, housed, or kept for a fee, charge or exchange.

Manager means the city manager of the city or his or her designee.

*__Editor's note__—Ord. No. 13568, § 1, adopted October 22, 2015, redesignated the former article IX as article X.

Ord. No. 12563, adopted July 22, 2004, repealed article IX in its entirety, and §§ 3—9 of said ordinance reenacted provisions to read as herein set out. Formerly, article IX pertained to similar subject matter and derived from Ord. No. 11813, §§ 3—9, adopted July 13, 1999.

Motor vehicle means any self propelled vehicle operated or suitable for operation in a parking facility.

Net proceeds means the amount of the surcharge remitted to the city less the allocable cost of procedures used and expenses incurred by the city to enforce collection of the surcharge in an amount not to exceed five percent (5%).

Open to the general public means a facility which charges a fee, charge or exchange for the use of any parking space therein regardless of when or how the fee, charge or exchange is collected. The intent of this definition is to include all parking facilities including parking facilities that are used by anyone, including but not limited to any private tenant, who must pay a fee, charge or exchange to the operator of the parking facility except for those facilities described in section 35-345.

Operator means any individual, partnership, association, corporation, or other entity which owns, controls, conducts, leases, operates, or causes to be operated a parking facility which offers parking accommodations for a fee, charge or exchange. The intent of this definition is to place the burden for collection of the surcharge on the owner of the facility and not the entity which operates the facility if different from the owner.

Parking means the parking, storing, housing or keeping of a motor vehicle.

Parking facility means any use in whole or in part of any space, plot, place, lot, parcel, yard, enclosure, parking lot, garage, street, building or structure that is open to the general public at which motor vehicles may be housed, stored, kept, or parked for which any fee, charge or exchange is made, no matter how the fee, charge or exchange is collected.

Parking lot means any outdoor area or space motor vehicles may be parked, stored, housed or kept for a fee, charge or exchange.

Revenues means, any and all revenue, to include the entire amount of compensation in whatever form, exchange or otherwise, to be determined according to generally accepted accounting principles, derived directly or indirectly from or in connection with the parking operation of the parking facility.

Surcharge means the parking facility's surcharge expressed as a percentage or in dollars.

Transaction means the parking, storing, housing or keeping of a motor vehicle in a parking facility, in the city, for a fee, charge or exchange.
(Ord. No. 12563, § 6, 7-22-04; Ord. No. 13063, § 2, 5-14-09)

Sec. 35-345. Applicability of parking facilities surcharge.

This article shall be uniformly applicable to all parking in parking facilities in the city, exclusive of residential parking of tenants or residents, in apartments, condominiums or cooperatives where parking is provided pursuant to a lease or in a separate writing between the apartment building owner, condominium or cooperative and the tenants or residents, whether a parking charge is payable to the apartment owner, condominium or cooperative or to the operator of a residential parking facility. This article shall not apply to any parking facilities located in any airports, seaports, county administration buildings or other projects defined under F.S. §§ 125.011 and 125.015.
(Ord. No. 12563, § 7, 7-22-04; Ord. No. 13063, § 2, 5-14-09)

Sec. 35-346. Collection of the parking facilities surcharge.

(a) Surcharge amounts due pursuant to this article shall be collected by the operator of a parking facility at the time of, and in addition to, collection of any other amounts for the parking of a motor vehicle in a parking facility, whether charge is made on an hourly, daily, weekly, monthly, yearly, event, validation programs, valet or any other basis. All operators shall be required to maintain a valid operational license. The local business tax receipt of an operator shall be revoked upon the failure to remit the surcharge amounts for three (3) consecutive months. No operator shall be permitted to operate the parking facility until all arrears are paid.

(b) The operator of every parking facility shall remit funds collected pursuant to this surcharge, net of refunds, for the preceding calendar month; payments must be received by the city by the 20th day of each calendar month. Each monthly remittance will be accompanied by such reports as may be prescribed by the manager on forms identifying for each parking facility, the name, address, account number, capacity, parking charges or fees, or rate schedule, number and type of transactions and such other information as may be necessary or convenient to fully calculate the surcharge.

(c) Every operator of a parking facility shall keep complete and accurate records, in a manner as set forth by the manager, pursuant to subsection 35-346(f)(1) of this Code, of all motor vehicles parked on an hourly, daily, weekly, monthly, yearly, event, validation programs, valet or any other basis in the parking facility, together with the amount of surcharge collected from all transactions, and shall keep all pertinent records and documents as are necessary to determine the amount of surcharge due for a period of three (3) years subsequent to the year of the transaction. Such records and other pertinent data shall be available for inspection and examination upon the request of and with reasonable notice by the manager. Every operator shall provide access to the parking facility to the manager so the manager can survey the parking activity of said facility.

(d) Whenever any operator fails to keep records from which the surcharge may be accurately computed, the manager may make use of a factor developed by surveying the operator or other operators of a similar type parking facility, or otherwise compute the amount of surcharge due, and this computation shall be prima facie correct.

(e) Whenever any operator fails to collect or remit to the manager the surcharge imposed within the time limit therefor, the manager shall assess the operator the amount of surcharge due, plus interest at the rate of one percent (1%) per month or any fraction thereof, and a penalty of ten percent (10%) of the surcharge due on uncollected or unremitted amounts.

(f) In addition to the powers granted to the manager in connection with the collection of the surcharge, the manager is authorized and empowered:

(1) To make, adopt and amend such forms, rules and regulations as may be deemed necessary or proper to fully collect the surcharge and to define any terms used in connection with the imposition and collection of the surcharge;

(2) To compromise disputed claims in connection with the surcharge and for good and sufficient cause shown to waive interest and penalty;

(3) To delegate any of the duties and functions in connection with the collection of the surcharge and the enforcement of the provisions relating to the manager, provided however, that all regulations promulgated shall be issued by the manager.

(4) To extend, for good cause shown, the time for remitting any surcharge required to be paid for such period of time as may be deemed reasonable by the manager.

(5) To retain the services of persons or entities with parking related collection experience to collect the surcharge subject to competitive procurement procedures.

(6) To enforce any of the penalties described in section 35-347 when an operator of a parking facility fails, neglects or refuses to pay penalties and interest.

(Ord. No. 12563, § 8, 7-22-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13063, § 2, 5-14-09; Ord. No. 13257, § 2, 3-10-11)

Sec. 35-347. Failure to comply; penalties.

(a) The operator of a parking facility who:

(1) Fails, neglects or refuses to collect the surcharge;

(2) Fails, neglects or refuses to remit the surcharge;

(3) Fails, neglects or refuses to keep accurate records;

(4) Submits any incomplete, false or fraudulent return;

(5) Refuses to permit the manager to examine books, records and papers relating to the surcharge; or

(6) Fails to fully comply with any or all rules or regulations promulgated by the manager pursuant to the authority contained herein, or to keep complete and proper records as required, shall be subject to the following penalties for each offense:

(i) Have his or her local business tax receipt revoked;

(ii) Have a lien placed upon the parking facility for the sums owed plus interest pursuant to law;

(iii) Be subject to an administrative fine in the amount of $500.00;

(iv) Be required to comply with stricter reporting requirements; and/or

(v) In addition to any other penalties provided in this section, upon the finding of a violation based on this section, the operator shall pay treble fees; be subject to denial, revocation, or suspension of its permit, certificate of use, temporary certificate of use, and/or business tax receipt for a time period not to exceed two years after a hearing before the code enforcement board pursuant to chapter 2, article X of the City Code; and/or debarment pursuant to section 18-107 of the City Code.

(b) The operator of a parking facility who:

(1) Has outstanding surcharge payments for three months;

(2) Has outstanding penalty and interest payments for three months;

(3) Fails to maintain complete and accurate records as stipulated by the ordinance;

(4) Fails to comply after receiving two notifications regarding compliance with the ordinance; or

(5) Fails to comply with an audit request after the manager has reasonably attempted to schedule such audit shall be subject to additional reporting requirements including:

(i) The operator of the parking facility will be required to register parking slips, receipts, chits, tickets or the like with the manager.

(ii) The operator of the parking facility will be required to complete and submit a "Parking Surcharge Recap Monthly Report."

(iii) The operator of the parking facility may be required to install parking revenue control equipment in said facility, as approved by the city manager or city commission.

(iv) The operator of the parking facility may be required to cease operation for a period of 30 days.

(v) In addition to any other penalties provided in this section, upon the finding of a violation based on this section, the operator shall pay treble fees; be subject to denial, revocation, or suspension of its permit, certificate of use, temporary certificate of use, and/or business tax receipt for a time period not to exceed two years after a hearing before the code enforcement board pursuant to chapter 2, article X of the City Code; or debarment pursuant to the City Code.

(c) Repeat operator violations. The operator of the parking facility who:

(1) Has been found to have underreported parking revenue or parking surcharge amounts;

(2) Has been found to not maintain complete and accurate records as stipulated by the ordinance;

(3) Has been assessed an administrative fine more than once; or

(4) Has been found violating any part of this section more than once shall be subject to:

(i) The operator shall continue to be subject to all remedies noted in subsection (a)(6).

(ii) The operator of the parking facility shall be required to cease operation for a period of 30 days.

(iii) The operator of the parking facility shall be required to install parking revenue control equipment which will monitor and count the number of vehicles admitted to and leaving from a parking facility. This equipment shall be approved by the city manager or city commission. This type of equipment shall have entrance and exit counters that count every vehicle that enters and exits a parking facility and shall include non-resettable, continuous counters. The equipment shall be used and effective during operating hours.

(d) Further, the city is authorized to seek injunctive or other equitable relief to enforce compliance with this article.
(Ord. No. 12563, § 9, 7-22-04; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13063, § 2, 5-14-09; Ord. No. 13257, § 2, 3-10-11; Ord. No. 13806, § 2, 11-15-18)

ARTICLE XI. RESERVED*

Secs. 35-348—35-364. Reserved.

*__Editor's note—__Ord. No. 13811, § 2, adopted December 13, 2018, repealed the former article XI, sections 35-348—35-350 in its entirety, which pertained to dangerous intersection safety, and derived from Ord. No. 13236, § 2, adopted December 16, 2010, and Ord. No. 13400, § 2, adopted July 25, 2013.

ARTICLE XII. COMMERCIAL VEHICLE WEIGHT RESTRICTIONS†

Sec. 35-365. Purpose.

The purpose of this section is to promote the public health, safety and general welfare upon the streets, roadways and highways of the city by regulating the wheel and axle loads and gross vehicle weights of certain vehicles; to provide for the assessment of fees; and to provide penalties for the violation of this chapter.
(Ord. No. 13198, § 2, 9-27-10)

Sec. 35-366. Adoption.

Except as otherwise provided in this section, the city expressly adopts the weight and load restrictions and enforcement procedures for commercial vehicles as promulgated in F.S. ch. 316, Rules and Regulations contained in Chapter 49 CFR 390-397 and North American Driver Out-of-Service Criteria, as amended from time to time.
(Ord. No. 13198, § 2, 9-27-10)

Sec. 35-367. Jurisdiction.

The jurisdiction for determining restrictions as to oversize/overweight vehicles is given to the city by the state through the provisions of F.S. §§ 316.006 and 316.555.
(Ord. No. 13198, § 2, 9-27-10)

Sec. 35-368. Definitions.

The following definitions shall apply to this article:

Axle load shall be defined as the total load transmitted to the road by all wheels whose centers are included between two parallel transverse vertical planes 40 inches apart, extending across the full width of the vehicle.
(Ord. No. 13198, § 2, 9-27-10)

Sec. 35-369. Violation.

It is a violation of this chapter for any person to drive or move, or for the owner to cause or

†__Editor's note—__Ord. No. 13568, § 1, adopted October 22, 2015, redesignated the former article XI as article XII.

knowingly permit to be driven or moved, on any street, roadway or highway in the city, any vehicle or vehicles of a size or weight exceeding the limitations stated in this chapter or otherwise in violation of this chapter.
(Ord. No. 13198, § 2, 9-27-10)

Sec. 35-370. Maximum weights.

(a) The gross weight imposed on the street, roadway or highway by the wheels of any one axle of a vehicle shall not exceed the maximum weight allowable as calculated per the most current edition of the Florida Department of Transportation Commercial Motor Vehicle Manual.

(b) With respect to those highways not in the Interstate Highway System, in all cases in which it exceeds state law in effect on January 4, 1975, the overall gross weight on the vehicle or combination of vehicles, including all enforcement tolerances, shall be as determined by the following formula:

$$W = 500((LN \div (N - 1)) + 12N + 36)$$

Where W = overall gross weight of the vehicle to the nearest 500 pounds; L = distance in feet between the extreme of the external axles; and N = number of axles on the vehicle. However, such overall gross weight of any vehicle or combination of vehicles may not exceed 80,000 pounds including all enforcement tolerances.

(c) The city shall adopt rules consistent with the department of transportation to implement this section, shall enforce this section and the rules adopted hereunder, and shall publish and distribute tables and other publications as deemed necessary to inform the public. In addition, tables will be posted at the Miami Police Department Traffic Unit.

(d) Except as hereinafter provided, no vehicle or combination of vehicles exceeding the gross weights specified in subsections (a) and (b) shall be permitted to travel on the public streets, roadways or highways within the city.
(Ord. No. 13198, § 2, 9-27-10)

Sec. 35-371. Weight and load unlawful; special fuel and motor fuel tax enforcement; inspection; penalty; review.

(a) Any designated police officer of the city having reason to believe that the weight of a vehicle and load is unlawful is authorized to require the driver to stop and submit to a weighing of the same by means of either portable or fixed scales and may require that such vehicle be driven to the nearest weigh station or public scales, provided such a facility is within five miles. Anyone who refuses to submit to such weighing obstructs an officer pursuant to F.S. § 843.02, and is guilty of a misdemeanor of the first degree, punishable as provided in F.S. § 775.082 or 775.083. Anyone who knowingly and willfully resists, obstructs or opposes an officer while refusing to submit to such weighing by resisting the officer with violence to his/her person pursuant to F.S. § 843.01, is guilty of a felony of the third degree, punishable as provided in F.S. §§ 775.082, 775.083 or 775.084.

(b) (1) Whenever an officer, upon weighing a vehicle or combination of vehicles with load, determines that the axle weight or gross weight is unlawful, the officer may require the driver to stop the vehicle in a suitable place and remain standing until a determination can be made as to the amount of weight thereon and, if overloaded, the amount of penalty to be assessed as provided herein. However, any gross weight over and beyond 6,000 pounds beyond the maximum herein set shall be unloaded and all material so unloaded shall be cared for by the owner or operator of the vehicle at the risk of such owner or operator. For enforcement purposes, all scaled weights of the gross or axle weight of vehicles and combinations of vehicles shall be deemed to be not closer than ten percent to the true gross weight. However, if the driver of any vehicle can comply with the requirements of this chapter by shifting or equalizing the load on all wheels or axles and

does so when requested by the proper authority, the driver shall not be held to be operating in violation of this chapter.

(2) The officer shall inspect the license plate or registration certificate of the commercial vehicle, as defined in F.S. § 316.003(66), to determine if its gross weight is in compliance with the declared gross vehicle weight. If its gross weight exceeds the declared weight, the penalty shall be $0.05 per pound on the difference between such weights. In those cases when the commercial vehicle, as defined in F.S. § 316.003(66), is being operated over the streets, roadways or highways of the city with an expired registration or with no registration from this or any other jurisdiction or is not registered under the applicable provisions of F.S. ch. 320, the penalty herein shall apply on the basis of $0.05 per pound on that weight which exceeds 35,000 pounds on laden truck tractor-semitrailer combinations or tandem trailer truck combinations, 10,000 pounds on laden straight trucks or straight truck-trailer combinations, 10,000 pounds on any unladen commercial motor vehicle. If the license plate or registration has not been expired for more than 90 days, the penalty imposed under this paragraph may not exceed $1,000.00. A vehicle found in violation of this section may be detained until the owner or operator produces evidence that the vehicle has been properly registered. Any costs incurred by the retention of the vehicle shall be the sole responsibility of the owner. A person who has been assessed a penalty pursuant to this paragraph for failure to have a valid vehicle registration certificate pursuant to the provisions of F.S. ch. 320, is not subject to the delinquent fee authorized in F.S. § 320.07, if such person obtains a valid registration certificate within ten working days after such penalty was assessed.

(c) Any person who violates the overloading provisions of this chapter shall be conclusively presumed to have damaged the streets, roadways or highways of this city by reason of such overloading, which damage is hereby fixed as follows:

(1) When the excess weight is 200 pounds or less than the maximum herein provided, the penalty shall be $10.00;

(2) Five cents per pound for each pound of weight in excess of the maximum herein provided when the excess weight exceeds 200 pounds. However, whenever the gross weight of the vehicle or combination of vehicles does not exceed the maximum allowable gross weight, the maximum fine for the first 600 pounds of unlawful axle weight shall be $10.00;

(3) An apportioned motor vehicle, as defined in F.S. § 320.01, operating on the streets, roadways or highways of this city without being properly licensed and registered shall be subject to the penalties as herein provided;

(4) Vehicles operating on the streets, roadways, or highways of this city from nonmember International Registration Plan jurisdictions which are not in compliance with the provisions of F.S. § 316.605, shall be subject to the penalties as herein provided.

(d) Any person aggrieved by the imposition of penalties pursuant to this subsection may apply to the review board, as provided for in subsection (j), for modification, cancellation, or revocation of the penalty, and the review board is authorized to modify, cancel, revoke or sustain such penalty.

(e) Whenever any person violates the provisions of this chapter and becomes indebted to the city because of such violation in the amounts aforesaid and refuses to pay said penalty, such penalty shall become a lien upon the motor vehicle, and the same may be foreclosed by the city in a court of equity. It shall be presumed that the owner of the motor vehicle is liable for the sum. Any person, firm, or corporation claiming an interest in the seized motor vehicle may, at any time after the lien of the city attaches to the motor vehicle, obtain possession of the seized vehicle by filing a good and sufficient forthcom-

ing bond with the officer having possession of the vehicle, payable to the city in twice the amount of the city's lien, with a corporate surety duly authorized to transact business in the state as surety, conditioned to have the motor vehicle or combination of vehicles forthcoming to abide the result of any suit for the foreclosure of such lien. It shall be presumed that the owner of the motor vehicle is liable for the penalty imposed under this section. Upon the posting of such bond with the officer making the seizure, the vehicle shall be released and the bond shall be forwarded to the city for safekeeping. The lien of the city against the motor vehicle aforesaid shall be foreclosed in equity, and the ordinary rules of court relative to proceedings in equity shall control. If it appears that the seized vehicle has been released to the defendant upon his/her forthcoming bond, the city shall take judgment of foreclosure against the property itself, and judgment against the defendant and the sureties on the bond for the amount of the lien, including cost of proceedings after the rendition of the decree, the city may, at its option, proceed to sue out execution against the defendant and his/her sureties for the amount recovered as aforesaid or direct the sale of the vehicle under foreclosure.

(f) Any officer or agent collecting the penalties herein imposed shall give to the owner or driver of the vehicle an official receipt for all penalties collected. Such officers or agents shall cooperate with the owners or drivers of motor vehicles so as not to delay unduly the vehicles.

(g) Pursuant to F.S. §§ 316.302 and 316.545, penalties and fees are due and payable at the time of issuance and shall be remitted to the officer or traffic enforcement officer of the city police department who assessed the penalty. Payment shall be made for the exact amount of the assessment in cash, money order, or cashier's check and shall be made payable to the city.

(h) All penalties and fines collected pursuant to this chapter shall be placed in a separate commercial vehicle account. This account shall be created solely for the collection of penalties and fines resulting from violations of this chapter.

(i) The city shall create a commercial motor vehicle review board consisting of three members who shall be the police traffic supervisor or designee, the city manager or designee, and a community representative chosen by the police traffic supervisor and the city manager. The review board may review any penalty imposed upon any vehicle or person under the provisions of this chapter relating to weights imposed on the streets, roadways, or highways by the axles and wheels of motor vehicles, to special fuel and motor fuel tax compliance, or to violations of safety regulations.

(1) The police traffic supervisor or authorized representative shall be the chairman of the review board.

(2) The chairman of the review board is responsible for the administrative functions of the review board.

(j) Any person aggrieved by the imposition of a civil penalty pursuant to this section or F.S. § 316.3025, may apply to the commercial motor vehicle review board for a modification, cancellation, or revocation of the penalty; and the review board is authorized to modify, cancel, revoke, or sustain such penalty.
(Ord. No. 13198, § 2, 9-27-10; Ord. No. 13676, § 2, 4-27-17)

Sec. 35-372. Damage to streets, roadways, highways; liability of driver and owner.

Any person driving or moving any vehicle or combination of vehicles, object, or contrivance upon any street, roadway, highway or highway structure shall be liable for all damages which the highway or structure may sustain as a result of any illegal operating, driving, or moving of such vehicle or combination of vehicles, object, or contrivance, whether or not such damage is a result of operating, driving, or moving any vehicle or combination of vehicles, object, or contrivance weighing in excess of the maximum weights or exceeding the maximum size as provided in this chapter but authorized by special permit issued pursuant to F.S. § 316.550. Whenever the driver is not the owner of the vehicle or combination of vehicles, object, or contrivance but is so operat-

ing, driving, or moving the same with the express or implied permission of the owner, then the owner and driver shall be jointly and severally liable for any such damage. Such damage may be recovered in any civil action brought by the authorities in control of the street, roadway, highway or highway structure.
(Ord. No. 13198, § 2, 9-27-10)

Sec. 35-373. Reserved.

ARTICLE XIII. FORKLIFT ZONE

Sec. 35-374. Intent; establishing and authorizing forklift zones within the city.

(a) In accordance with the provisions of this chapter, the city wishes to establish the Allapattah Produce Market Area "Forklift Zone" allowing for the use of commercial forklifts as specified in the area bounded by Northwest 12th Avenue on the East, Northwest 17th Avenue on the West, Northwest 20th Street on the South, Northwest 23rd Street on the North, and the intersections therein as indicated in Exhibit "A", attached [to Ord. No. 13627] and incorporated.

(b) These forklift zones within the city are hereby created by maps designating the areas and public right-of-way as such, as amended by the city commission, from time to time.
(Ord. No. 13627, § 2, 9-8-16)

Sec. 35-375. Definitions.

Commercial forklift, as used in this article, means a forklift utilized by personnel of the businesses located within the Allapattah Market Area.

Forklift, as used in this article, means any vehicle with a prolonged lift device in the front of the vehicle for lifting and carrying heavy loads.
(Ord. No. 13627, § 2, 9-8-16)

Sec. 35-376. Requirements to operate a commercial forklift on public right-of-way within the forklift zone.

(a) In order to operate a commercial forklift on public right-of-way within the forklift zone, the following criteria must be met:

(1) Maintenance of insurance by the owner of the business using the forklift of no less than $100,000.00/$300,000.00 in insurance coverage per vehicle, per person, per incident.

(2) Submit a hold harmless and indemnification agreement in favor of the city for any and all bodily injuries and/or property damage that may be caused by the operation of a commercial forklift within the boundaries of the forklift zone.

(b) Operation of a commercial forklift on public right-of-way within the forklift zone in excess of 15 miles an hour is prohibited.

(c) The use of a mobile phone or any hand held device is strictly prohibited; eating while operating a forklift is also prohibited.

(d) Forklift operators traveling on public right-of-way in the forklift zone must have a valid Florida driver's license.

(e) A Florida tag is preferred, but not mandatory, as long as the above requirements are met.

(f) Operation of a commercial forklift on public right-of-way can only be within the forklift zone for business purposes relating to the Allapattah Produce Market Area.

(g) Each forklift operating on public right-of-way within the forklift zone shall be equipped with the following equipment:

(1) The owner's company name and telephone number(s) shall be affixed on both sides of the forklift in letters and numbers measuring no less than two inches in height.

(2) A minimum of two running headlights must be operable on the front of the forklift.

(3) A minimum of two brake lights must be operable on the rear of the forklift.

(4) An overhead warning light must be activated when the forklift is in operation and an audible reverse warning system must be available.

(Ord. No. 13627, § 2, 9-8-16)

Sec. 35-377. Enforcement.

The implementation and use of the traffic infraction system for the enforcement of violations within this area shall be in accordance with the provisions of F.S. ch. 316, and/or chapter 2, article X of this Code, as may be amended from time to time, when strict compliance with the requirements of the forklift zone regulations is not met.

(Ord. No. 13627, § 2, 9-8-16)

Chapter 36

NOISE*

Sec. 36-1.	Unnecessary, excessive or unusual noises—Generally.
Sec. 36-2.	Same—Near hospitals and schools.
Sec. 36-3.	Loud or boisterous noises generally.
Sec. 36-4.	Operation of radios, phonographs, or other sound-making devices; bands, orchestras, and musicians—Generally; exemption.
Sec. 36-5.	Same—Hours of operation of jukeboxes, radios, etc.; exemption for events on city-owned property; relaxation.
Sec. 36-6.	Construction equipment.
Sec. 36-7.	Emission of steam and other gases.
Sec. 36-8.	Mechanical and fire equipment.
Sec. 36-9.	Off-street freight and commercial delivery hours.

*__City Code cross references—__Noisy dogs, § 6-39; bicycle bells or other warning devices, § 8-3; noise from ships, boats, etc., § 50-7.

__County Code cross references—__Railroad train whistle and horn noise pollution prohibited, § 21-27.3; excessive and unnecessary noises prohibited, § 21-28.

__Law review references—__Comments on sound amplifiers, 2 Fla. L. Rev. 103,257.

__State law reference—__Motor vehicle noise, F.S. §§ 316.293, 403.415 et seq.

Sec. 36-1. Unnecessary, excessive or unusual noises—Generally.

It shall be unlawful to make any loud, unnecessary, excessive or unusual noise in the city.
(Code 1967, § 36-1; Code 1980, § 36-1)

Sec. 36-2. Same—Near hospitals and schools.

It shall be unlawful for any person, by himself/herself or by the operation of any instrument, agency or vehicle, to make any unnecessary noises within 100 feet of any portion of the grounds and premises on which is located a hospital or other institution reserved for the sick, or any school during school hours. The city manager shall place as many signs as he/she may deem proper within or near zones hereby created, calling attention to the prohibition against unnecessary noises within such zones.
(Code 1967, § 36-2; Code 1980, § 36-2; Ord. No. 13676, § 2, 4-27-17)

Sec. 36-3. Loud or boisterous noises generally.

No person shall create any loud or boisterous noise which may annoy persons on any street or sidewalk or in any building adjacent thereto.
(Code 1967, § 36-3; Code 1980, § 36-3)

Sec. 36-4. Operation of radios, phonographs, or other sound-making devices; bands, orchestras, and musicians—Generally; exemption.

(a) It shall be unlawful for any person owning, occupying or having charge of any building or premises or any part thereof, in the city, at any time to cause or suffer or allow any loud, unnecessary, excessive or unusual noises in the operation of any radio, phonograph or other mechanical sound-making device or instrument, or reproducing device or instrument, or in the playing of any band, orchestra, musician or group of musicians, or in the use of any device to amplify the music of any band, orchestra, musician or group of musicians, where the noise or music is plainly audible at a distance of 100 feet from the building, structure, vehicle or premises in which or from which it is produced. The fact that the noise or music is plainly audible at a distance of 100 feet from the vehicle or premises from which it originates constitutes prima facie evidence of a violation of this chapter.

(b) It shall be unlawful for any person owning, occupying, or having charge of any business, including but not limited to an entertainment establishment, alcohol service establishment, food service establishment, etc., or any part thereof, that shares a property line with any property that has a residential use as defined by Article 1 of the Miami 21 Code to cause or suffer to cause the playing or operating of any such noise or such similar music of the following, which is not an exhaustive list: music, music boxes, jukeboxes, radios, musical instruments, any other musical devices; phonograph or other mechanical sound-making device or instrument; reproducing device or instrument; the playing of any band, orchestra, musician, or group of musicians; or the use of any device to amplify the music of any band, orchestra, musician, or group of musicians on or about the premises in any of its outdoor spaces between the hours of 10:00 p.m. and 8:00 a.m. the following day. The playing or operating of any noise or such similar music, including but not limited to music, music boxes, jukeboxes, radios, musical instruments, any other musical devices; phonograph or other mechanical sound-making device or instrument; reproducing device or instrument; the playing of any band, orchestra, musician, or group of musicians; or the use of any device to amplify the music of any band, orchestra, musician, or group of musicians between the hours of 10:00 p.m. and 8:00 a.m. in such manner shall be prima facie evidence of a violation of this section.

(c) All of the above and foregoing shall not apply to city-sponsored activities and events held in or upon any city-owned facility or city-owned property.

(1) The city commission may also declare an exemption from the prohibitions contained in this subsection and declare them inapplicable on special occasions by resolution.

(2) The above exemption shall not apply to tenants of city-owned property or facilities, such tenants shall be required to seek a waiver pursuant to subsection 36-4(c)(1) of the City Code.

(d) Any establishment operating a sound making device shall be exempted from subsection (b) if said establishment had an approval prior to the adoption of this section; is operating completely within a structure; is located within the Downtown Development Authority, Omni Redevelopment Area, Coconut Grove Business Improvement District, or the Wynwood Neighborhood Revitalization District; abuts an area zoned T-6 or above; has a sound making device located on the primary frontage; is located and operating on the outside of a structure on or above the fifth floor of a structure; or is located on a property zoned D1, D2, or T-6-24 or above.

(e) Pilot program for the NRD-1.

(1) The NRD-1 District as defined in section 4-5 of the City Code is exempt from subsection (a) of this section throughout the duration of the herein created pilot program. The NRD-1 is generally bounded by Interstate 95 ("I-95") on the west, Northwest 29th Street on the north including parcels fronting Northwest 29th Street on the north between I-95 and Northwest 5th Avenue and between Northwest 2nd Avenue and North Miami Avenue, the FEC Corridor on the east, and Northwest 20th Street between North Miami Avenue and Northwest 1st Place, and Northwest 22nd Street between Northwest 1st Place and I-95 on the south.

(2) Within the NRD-1 District, it shall be unlawful for any person owning, occupying, or having charge of any building or premises or any part thereof at any time to cause or suffer or allow any loud, unnecessary, excessive, or unusual noises in the operation of any radio, phonograph, or other mechanical sound-making device, instrument, or reproducing device; in the playing of any band, orchestra, musician, or group of musicians; or in the use of any device to amplify the music of any band, orchestra, musician, or group of musicians where the noise or music:

a. Exceeds 80 dB(A) at a distance of greater than 25 feet from the property line of the property on which or from which it is produced;

b. The bass level exceeds 68 dB(C) when measured from within an enclosed structure with all windows, doors and other openings closed; or

c. Exceeds 65 dB(A) when measured from within an enclosed structure with all windows, doors, and other openings closed.

d. The city manager shall have the authority to decrease the allowable decibel levels by up to 10dB(A) and/or 10dB(C) during the pilot program based upon the recommendation of the Wynwood Business Improvement District and after 30 days' notice has been posted and sent via certified US Mail to all affected business.

(3) The fact that the noise or music emanating from the property on which or from which it is produced exceeds the dB(A) sound level referenced in subsection (e)(2)a., b. and c. above constitutes prima facie evidence the violation has occurred. Any violation of this subsection is punishable as follows:

a. For a first offense, warning shall be issued and posted;

b. For a second offense, a fine of $250.00;

c. For a third and subsequent violation, a fine of $500.00.

d. Violations may also be enforced pursuant to section 2-817, et seq. of the City Code with a fine in an amount of up to $1,000.00 per diem for a first offense and a fine in an amount of up to $5,000.00 per diem for a repeat violator to be assessed by the code enforcement board. The

code enforcement board may also find the violation to be irreparable or irreversible in nature and assess a fine in an amount of up to $15,000.00 for each violation in accordance with subsection 2-817 of the City Code.

Violations shall be enforced against the property owner and/or violator under the provisions of chapter 2, article X of the City Code and any other remedies as provided by law including, but not limited to, revocation of certificate of use and/or business tax receipt, and actions for injunctive relief in the circuit court.

(4) The city commission may also declare an exemption from the prohibitions contained in this subsection and declare them in applicable on special occasions by resolution for private property.

(5) The pilot program shall sunset on November 21, 2025. The city commission may extend for one more additional year by resolution.

(f) Pilot program for the Overtown Entertainment District.

(1) The Overtown Entertainment District, as defined in section 4-6 of the City Code is exempt from subsection (a) of this section throughout the duration of the herein created pilot program. The Overtown Entertainment District is generally bounded by Northwest 2 Avenue on the east, I-95 on the west, Northwest 11 Terrace on the north and Northwest 8 Street on the south.

(2) Within the Overtown Entertainment District, it shall be unlawful for any person owning, occupying, or having charge of any building or premises or any part thereof at any time to cause or suffer or allow any loud, unnecessary, excessive, or unusual noises in the operation of any radio, phonograph, or other mechanical sound-making device, instrument, or reproducing device; in the playing of any band, orchestra, musician, or group of musicians; or in the use of any device to amplify the music of any band, orchestra, musician, or group of musicians where the noise or music:

a. Exceeds 80 dB(A) at a distance of greater than 25 feet from the property line of the property on which or from which the noise is produced;

b. Exceeds 68 dB(C), bass level, when measured from within an enclosed structure with all windows, doors and other openings closed; or

c. Exceeds 65 dB(A) when measured from within an enclosed structure with all windows, doors, and other openings closed.

The city manager shall have the authority to decrease the allowable decibel levels by up to 10 dB(A) and/or 10 dB(C) during the pilot program based upon the recommendation of the code compliance director and after 30 days' notice has been posted and sent via certified US Mail to all affected business.

(3) The fact that the noise or music emanating from the property on which or from which the noise is produced exceeds the dB(A) sound level referenced in subsection (f)(2)a., b., and c. above constitutes prima facie evidence that a violation has occurred. Any violation of this subsection is punishable as follows:

a. For a first offense, warning shall be issued and posted;

b. For a second offense, a fine of $250.00 shall be imposed;

c. For a third and subsequent violation, a fine of $500.00 shall be imposed.

d. Violations may also be enforced pursuant to section 2-814, et seq. of the City Code with a fine in an amount of up to $1,000.00 per diem for a first offense and a fine in an amount of up to $5,000.00 per diem for a repeat violation to be assessed

by the code enforcement board. The code enforcement board may also find the violation to be irreparable or irreversible in nature and assess a fine in an amount of up to $15,000.00 for each violation in accordance with subsection 2-817(c) of the City Code.

e. For venues with open-air areas, subsection (f)(2) shall only be applicable for those venues who have code compliance department approved necessary directional speakers, sound limiting devices or other such necessary equipment installed so as to lessen sound emanations based upon a plan signed and sealed by an acoustic engineer. Open-air venues without approved sound tampering devices shall not be eligible for the pilot program.

Violations shall be enforced against the property owner and/or violator under the provisions of chapter 2, article X of the City Code and any other remedies as provided by law including, but not limited to, revocation of certificate of use and/or business tax receipt, and actions for injunctive relief in the circuit court.

(4) The city commission may also declare an exemption from the prohibitions contained in this subsection and declare them applicable on special occasions by resolution for private property.

(5) All days recognized by the Florida Supreme Court as holidays shall be exempted from compliance with this section of the City Code.

(6) The pilot program shall sunset on October 9, 2026. The city commission may extend for one more additional year by resolution.

(g) Miami Riverside Specialty District. The Miami Riverside Specialty District, as defined in chapter 4 of the City Code, is exempt from subsection (a) of this section and shall be governed by subsection 36-5(e).

(Code 1967, § 36-4; Ord. No. 10797, § 1, 10-18-90; Code 1980, § 36-4; Ord. No. 13941, § 2, 11-19-20; Ord. No. 14020, § 2, 9-23-21; Ord. No. 14037, § 2, 11-18-21; Ord. No. 14117, § 2, 10-27-22; Ord. No. 14153, § 2, 2-23-23; Ord. No. 14256, § 3, 2-8-24; Ord. No. 14330, § 2, 11-21-24; Ord. No. 14358, § 2, 3-13-25; Ord. No. 14369, § 2, 6-17-25; Ord. No. 14401, § 2, 10-9-25)

Sec. 36-5. Same—Hours of operation of jukeboxes, radios, etc.; exemption for events on city-owned property; relaxation.

(a) It shall be unlawful for any person owning, occupying or having charge of any business establishment, or any part thereof, in the city, to cause or suffer to cause the playing or operating of music boxes, jukeboxes, radios, musical instruments or any other musical devices on or about the premises between the hours of 11:00 p.m. and 7:00 a.m. the following day, unless such music boxes, jukeboxes, radios, musical instruments and other devices are played or operated in a closed building and the sound is not audible from outside the building so as to disturb the quiet, comfort or repose of persons in any dwelling, hotel or other type of residence. Upon a second conviction of violation of this section, the city manager or designee, may at their discretion, revoke any business tax receipt issued under chapter 31 to the business.

(b) All of the above and foregoing shall not apply to activities and events held in or upon any city-owned facility or city-owned property. This exemption shall not apply to any tenant of a city-owned facility or city-owned property.

(c) The city commission may relax the time restrictions contained in paragraphs (a) above or declare them inapplicable on special occasions by resolution.

(d) Pilot program for the NRD-1.

(1) The NRD-1 District as defined in section 4-5 of the City Code is exempt from subsection (a) of this section through the duration of the pilot program. The NRD-1 boundaries are generally described as bounded by I-95 on the west, Northwest 29th Street on the north including parcels fronting Northwest 29th Street on the north between I-95 and Northwest 5th

Avenue and between Northwest 2nd Avenue and North Miami Avenue, the FEC Corridor on the east, and Northwest 20th Street between North Miami Avenue and Northwest 1st Place and Northwest 22nd Street between Northwest 1st Place and I-95 on the south.

(2) Within the NRD-1 District, it shall be unlawful for any person owning, occupying, or having charge of any business establishment or any part thereof to cause or suffer to cause the playing or operating of music boxes, jukeboxes, radios, musical instruments, or any other musical devices on or about the premises between the hours of 1:00 a.m. to 9:00 a.m., Monday through Wednesday and the hours of 3:00 a.m. to 9:00 a.m., Thursday through Sunday, unless such music boxes, jukeboxes, radios, musical instruments, and other devices are played or operated in a closed building and the sound is not plainly audible from outside the building so as to disturb the quiet, comfort, or repose of persons in any dwelling, hotel, or other type of residence. Any violation of this subsection is punishable as follows:

a. For a first offense, a warning shall be issued and posted;

b. For a second offense, a fine of $250.00;

c. For a third and subsequent violations a fine of $500.00 or violations may also be enforced pursuant to section 2-817, et seq. of the City Code with a fine in an amount of up to $1,000.00 per diem for a first offense and a fine in an amount of up to $5,000.00 per diem for a repeat violator to be assessed by the code enforcement board. The code enforcement board may also find the violation to be irreparable or irreversible in nature and assess a fine in an amount of up to $15,000.00 for each violation in accordance with section 2-817 of the City Code.

d. The city may also enforce this subsection pursuant to any other remedies as provided by law including, but not limited to, revocation of certificate of use and/or business tax receipt, and actions for injunctive relief in the circuit court.

(3) For venues with open-air areas, subsection (d)(2) shall only be applicable for those venues who have code compliance department approved directional speakers and sound limiting devices installed so as to lessen sound emanations. Should such venues receive more than three violations for which they are found guilty after appeal or fail to appeal, this pilot program shall not be applicable.

(4) The city commission may also declare an exemption from the prohibitions contained in this subsection and declare them inapplicable on special occasions by resolution for private property.

(5) The pilot program shall sunset on November 21, 2025. The city commission may extend for one more additional year by resolution.

(e) Pilot program for the Overtown Entertainment District.

(1) The Overtown Entertainment District as defined in section 4-6 of the City Code is exempt from subsection (a) of this section through the duration of the pilot program. The Overtown Entertainment District boundaries are generally described as bounded by Northwest 2 Avenue on the east, I-95 on the west, Northwest 11 Terrace on the north and Northwest 8 Street on the south.

(2) Within the Overtown Entertainment District, it shall be unlawful for any person owning, occupying, or having charge of any business establishment or any part thereof to cause or suffer to cause the playing or operating of music boxes, jukeboxes, radios, musical instruments, or any other musical devices on or about the premises between the hours of

1:00 a.m. to 9:00 a.m., Monday through Wednesday and the hours of 3:00 a.m. to 9:00 a.m., Thursday through Sunday, unless such music boxes, jukeboxes, radios, musical instruments, and other devices are played or operated in a closed building and the sound is not plainly audible from outside the building so as to disturb the quiet, comfort, or repose of persons in any dwelling, hotel, or other type of residence. Any violation of this subsection is punishable as follows:

a. For a first offense, a warning shall be issued and posted;

b. For a second offense, a fine of $250.00 shall be imposed;

c. For a third and subsequent violations a fine of $500.00 or violations may also be imposed pursuant to section 2-814, et seq. of the City Code with a fine in an amount of up to $1,000.00 per diem for a first offense and a fine in an amount of up to $5,000.00 per diem for a repeat violation to be assessed by the code enforcement board. The code enforcement board may also find the violation to be irreparable or irreversible in nature and assess a fine in an amount of up to $15,000.00 for each violation in accordance with section 2-817 of the City Code.

d. The city may also enforce this subsection pursuant to any other remedies as provided by law including, but not limited to, revocation of certificate of use and/or business tax receipt, and actions for injunctive relief in the circuit court.

(3) For venues with open-air areas, subsection (e)(2) shall only be applicable for those venues who have code compliance department approved necessary directional speakers, sound limiting devices or other such necessary equipment installed so as to lessen sound emanations based upon a plan signed and sealed by an acoustic engineer. Open-air venues without approved sound tampering devices shall not be eligible for the pilot program.

(4) The city commission may also declare an exemption from the prohibitions contained in this subsection and declare them inapplicable on special occasions by resolution for private property.

(5) All days recognized by the Florida Supreme Court as holidays shall be exempted from compliance with this section of the City Code.

(6) The pilot program shall sunset on October 9, 2026. The city commission may extend for one more additional year by resolution.

(f) Miami Riverside Specialty District.

(1) The Miami Riverside Specialty District, as defined in section 4-5 of the City Code, is exempt from subsection (a) of this section.

(2) Within the Miami Riverside Specialty District, it shall be unlawful for any person owning, occupying, or having charge of any building or premises or any part thereof during the hours of 8:00 p.m.—11:00 a.m. to cause or suffer or allow any loud, unnecessary, excessive, or unusual noises in the operation of any radio, phonograph, or other mechanical sound-making device, instrument, or reproducing device; in the playing of any band, orchestra, musician, or group of musicians; or in the use of any device to amplify the music of any band, orchestra, musician, or group of musicians where the noise or music is directly audible at a distance of 100 feet from the building, structure, vehicle, or premises in which, or from which, it is produced. The fact that the noise or music is directly audible at a distance of 100 feet from the vehicle or premises from which it originates constitutes prima facie evidence of a violation of this chapter.

(Code 1967, § 36-5; Ord. No. 8660, § 1, 6-9-77; Ord. No. 10797, § 1, 10-18-90; Code 1980, § 36-5;

Ord. No. 13676, § 2, 4-27-17; Ord. No. 14020, § 3, 9-23-21; Ord. No. 14037, § 2, 11-18-21; Ord. No. 14117, § 2, 10-27-22; Ord. No. 14153, § 3, 2-23-23; Ord. No. 14256, § 3, 2-8-24; Ord. No. 14330, § 2, 11-21-24; Ord. No. 14369, § 2, 6-17-25; Ord. No. 14401, § 2, 10-9-25)

Sec. 36-6. Construction equipment.

(a) *Prohibition; definitions.* Operating or permitting the operation of any tools or equipment used in construction, drilling, or demolition work such as pile drivers, steam shovels, pneumatic hammers, pumps, or other like equipment is prohibited:

(1) Between the hours of 6:00 p.m. and 8:00 a.m. the following day on weekdays, or at any time on Sundays or holidays, such that the sound therefrom creates a noise disturbance across and at a residential district boundary or within a noise sensitive zone, except for emergency work of public service utilities or by special permission issued pursuant to subsection (c).

(2) At any other time such that the sound level at or across a real property boundary exceeds a reading of 0.79 weighted average dBA for the daily period of operation. Such sound levels shall be measured with a sound level meter manufactured according to standards prescribed by the American National Standards Institute.

(b) *Definitions.*

Holidays, as used herein, shall mean those days designated by the United State Congress as legal public holidays, except that whenever any such day shall fall upon a Sunday, the Monday next following shall be deemed a public holiday for purposes of this section.

Noise disturbance as used herein, shall mean any sound which (a) endangers or injures the safety or health of humans or animals, or (b) annoys or disturbs a reasonable person of normal sensitivities, or (c) endangers or injures personal or real property.

Noise sensitive zone, as used herein, shall mean existing quiet zones, if any, and those areas containing noise sensitive activities including, but not limited to, operations of schools, libraries open to the public, houses of worship, hospitals, and nursing homes.

Residential districts, as used herein, shall mean any residential district as set forth in the city's zoning ordinance, as amended, or as may be hereafter amended.

Weighted average dBA, as used herein, means the 24-hour energy average of the sound pressure level in decibels (dB), as measured on a sound level meter using the A-weighted network; any readings taken during the period 10:00 p.m. to 7:00 a.m. the following day are increased by ten dBA before averaging the other readings. The A-weighted network (dBA) is recommended by the U.S. Environmental Protection Agency as a means of describing environmental noise because it most closely mimics the human ear by weighting the frequency spectrum to give greater weight to the frequencies between 1,000 and 6,000 hertz (cycles per second).

(c) *Exception.* The city manager is hereby authorized to permit the operation and use of any of the above construction machinery during the aforesaid prohibited periods of time in the event that such operation or use is required to eliminate or reduce any dangerous or hazardous condition which endangers life or property.

(d) *Violation; penalty.* Any person who shall violate any provision of this section shall, upon conviction thereof, be punished as provided in section 1-13. Each 24-hour day is to be considered a separate violation.
(Code 1967, § 36-13; Ord. No. 9063, § 1, 1-24-80; Ord. No. 10754, § 1, 6-28-90; Code 1980, § 36-13)

Sec. 36-7. Emission of steam and other gases.

It shall be unlawful to permit or cause the emission of steam or other gases if such emission cannot be done without the production of disturbing noises.
(Code 1967, § 36-14; Ord. No. 10754, § 1, 6-28-90; Code 1980, § 36-14)

Sec. 36-8. Mechanical and fire equipment.

It shall be unlawful to operate mechanical and fire equipment, including air conditioning compressors, pumps, blowers, exhaust fans, filters and other similar noise-producing equipment, in all residential, institutional, commercial and industrial zoned property, when such equipment emits noise which exceeds the following noise levels, measured at the receiving property line nearest to the source; such sound levels shall be measured with a sound level meter manufactured according to standards prescribed by the American National Standards Institute:

	Maximum Permitted Sound Level in Decibels dBA	
Receiving Land Use	*At Property Line or Beyond Between 10:00 p.m. and 7:00 a.m.*	*At Property Line or Beyond Between 7:00 a.m. and 10:00 p.m.*
Single-family	5 dBA above ambient or maximum of 55 dBA	10 dBA above ambient or maximum of 60 dBA
Multifamily, institutional, parks and noise-sensitive zones	5 dBA above ambient or maximum of 60 dBA	10 dBA above ambient or maximum of 65 dBA
Retail commercial (offices, retail, restaurants and movies)	5 dBA above ambient or maximum of 65 dBA	10 dBA above ambient or maximum of 65 dBA
Wholesale commercial and industrial	5 dBA above ambient or maximum of 70 dBA	10 dBA above ambient or maximum of 75 dBA

(Code 1967, § 36-15; Ord. No. 10754, § 1, 6-28-90; Code 1980, § 36-15)

Sec. 36-9. Off-street freight and commercial delivery hours.

(a) In order to alleviate the continued freight and commercial delivery noise that occurs between the hours of 11:00 p.m. and 7:00 a.m. on weekdays and between the hours of 8:00 p.m. and 8:00 a.m. on weekends in commercial areas abutting residential T3 transect zones, the following shall apply city wide. All delivery vehicles are required to comply with F.S. § 316.1975, during the delivery process. Due to their uniqueness, the following areas shall be exempted from this section: District 5, Coconut Grove Business Improvement District as defined in section 2-1250 of the City Code, the Downtown Development District as defined by section 14-27 of the City Code, and the Allapattah Produce Market as defined by section 35-374 of the City Code, all as delineated in Exhibit "A," attached and incorporated, and as amended from time to time.

(b) It shall be unlawful for any freight or commercial deliveries to be received or staged on a property that is within 100 feet of a T-3 transect zone between the hours of 11:00 p.m. and 7:00 a.m. on weekdays and between the hours of 8:00 p.m. and 8:00 a.m. on weekends. Any violation of this subsection is punishable by a fine of $250.00 for a first offense, and $500.00 for each offense thereafter and shall be enforced against the property owner under the provisions of chapter 2, article X of this Code, and any other remedies as provided by law including, but not limited to, an action for injunctive relief in the circuit court. The use of one remedy shall not preclude the use of another.

(c) In the case of a declared state of emergency affecting the city and for its duration, this section shall not be in force and effect.

(Ord. No. 13616, § 2, 7-14-16; Ord. No. 13671, § 2, 3-23-17; Ord. No. 13677, § 2, 4-27-17; Ord. No. 13775, § 2, 7-26-18)

Note—Exhibit A is not set out at length herein, but may be found on file in the office of the city clerk.

Chapter 37

OFFENSES—MISCELLANEOUS*

Sec. 37-1. Reserved.
Sec. 37-2. Malicious defacement, marking, etc., of real property.
Sec. 37-3. Sleeping on streets, sidewalks, etc.
Sec. 37-4. Living or sleeping in vehicles.
Sec. 37-5. Securities for loans and conditional sales agreements from minors.
Sec. 37-6. Aggressive or obstructive panhandling prohibited.
Sec. 37-7. Sex offenders and sexual predators.
Sec. 37-8. Reserved.
Sec. 37-9. Sale or display of bath salts prohibited.
Sec. 37-10. Sale of nicotine vaporizers (e-cigarettes) and liquid nicotine to minors, prohibited.
Sec. 37-11. Public urination or defecation prohibited; exceptions; penalties.
Sec. 37-12. Public safety and unmanned aircraft systems, commonly known as drones.
Sec. 37-13. Conversion therapy.
Sec. 37-14. False or fraudulent claims for payment or approval.
Sec. 37-15. Enforcement of emergency orders issued by the city; penalties.
Sec. 37-16. Encampments on public property prohibited.
Sec. 37-17. Smoking and vaping including, but not limited to, tobacco and cannabis, in all of their forms and extract products, in public parks and beaches prohibited.

*__Cross references—__Alcoholic beverages, ch. 4; amusements, ch. 5; animals, ch. 6; amusement games or machines not to be used for gambling, § 12-6; motor vehicles and traffic, ch. 35; noise, ch. 36; rules and regulations for use of city parks, etc., § 38-46 et seq.; police, ch. 42; public order, ch. 45; operations of vessels, § 50-36 et seq.; weapons, ch. 61.

__County Code cross reference—__Adoption of state law misdemeanors as uniform penal code for county, applicability, enforcement, etc., § 21-80 et seq.

__Law review reference—__Note on criminal laws of political subdivisions, 14 Fla. L. Rev. 294.

Sec. 37-1. Reserved.

Editor's note—Ord. No. 12884, § 1, adopted February 8, 2007, repealed § 37-1 in its entirety, which pertained to state misdemeanors adopted by reference, and derived from the Code of 1967, § 38-50, and the Code of 1980, § 37-1.

Sec. 37-2. Malicious defacement, marking, etc., of real property.

(a) Notwithstanding any City Code provision to the contrary, it shall be unlawful for any person to willfully and maliciously or without the knowledge and consent of the owner to mar, deface, damage or destroy by writing, painting or drawing any inscription, figure or mark of any type on public or private property.

(b) Notwithstanding any City Code provision to the contrary, no person shall intentionally deface without authorization of the owner or tenant any private or public premises or property primarily used for religious, educational, residential, memorial, recreational, charitable, cemetery or utilitarian purposes, or for assembly by persons of a particular race, color, creed or religion, by placing material thereon, including symbols, objects, caricatures, an appellation, a burning cross or a Nazi swastika, or graffiti thereby exposing or tending to expose another to risk of violence, contempt or hatred on the basis of race, color, creed or religion.

(c) A violation of subsection (a) or (b) of this section shall be punishable as provided by F.S. § 806.13.

(d) In addition to any punishment, the court shall order the defendant to make restitution to the victim or the city if the city cures the damage pursuant to subsection (i) for damage or loss caused directly or indirectly by the defendant's offense in a reasonable amount or manner to be determined by the court. In the case of a minor, the parents or legal guardian shall be ordered jointly and severally liable with the minor to make such restitution.

(e) In addition to any punishment, the court may, in its discretion, order the defendant to perform monitored community service.

(f) Whenever the city becomes aware of the existence of graffiti on any property, including structures or improvements within the city, a code enforcement officer is authorized, upon such discovery, to give, or cause to be given, notice to remove or effectively obscure such graffiti within the time period enumerated in the notice, to the owner, agent or manager who shall cause the graffiti to be removed or effectively obscured by any means so long as it is completely obliterated, painted or touched up with the same or substantially similar color of existing paint or texture of the original wall, fence, siding or part of the structure afflicted. The time period enumerated in the notice shall not be less than ten days. Persons needing information or assistance in curing a graffiti violation may contact the code compliance department graffiti mitigation program. The phone number to the code compliance department graffiti mitigation program shall appear conspicuously in bold numerals on the notice issued pursuant to this subsection for purposes of providing assistance to those who receive such notice. Persons not responsible for causing graffiti but responsible for curing it, who cannot afford to obliterate, paint or touch up such graffiti with the same color of existing paint of the original wall, fence, siding or part of the structure affected and who receive paint or assistance from the code compliance department graffiti mitigation program shall obliterate, paint or touch up graffiti on the property with paint as substantially similar in color as can be provided to the wall, fence, siding or part of the structure afflicted. No penalties, fines, or costs shall be imposed on persons owning property, acting as manager or agent for the owner of property, or in possession or control of property who utilize the code compliance department graffiti mitigation program to remove or effectively obscure such graffiti. Persons who request to receive assistance from the code compliance department graffiti mitigation program and are qualified to receive such assistance, shall not be subjected to penalties, fines, or costs pursuant to this section. The requirements for the code compliance department graffiti mitigation program are:

(1) Only ground floor areas of structures that abut the public rights-of-way;

(2) The city will clean/obscure the graffiti affecting the qualifying non-violating owners' property structure a maximum of two occasions in one calendar year (at least two weeks apart) of the first violation without penalty if the property owner contacts code compliance department within ten days of the issuance of the violation;

(3) If the graffiti is visible from the public rights-of-way but not accessible due to height of graffiti or other barriers, the qualifying non-violating property owner shall be required to sign a release authorizing city employees entry upon the property to clean/obscure the graffiti; if owner complies with said requirement, the city's assistance will count towards the maximum of two as indicated above in above subsection (f)(2). To receive assistance without penalty, the qualifying owner will be required to provide the release within ten days of receiving the request for authorization;

(4) A qualifying non-violating property may be eligible for a third cleaning/obscuring by the city without penalty if the property owner can show they have taken steps to mitigate the ability of third-party(s) to graffiti the property by the deployment of security cameras, security personnel, or other actions to deter further acts.

(g) It shall be unlawful for any person or firm owning property, acting as manager or agent for the owner of property, or in possession or control of property, to fail to remove or effectively obscure any graffiti from such property within the time period enumerated in the notice, as described in subsection (f). If the person or firm owning such property, acting as manager or agent for the owner of such property, or in possession or control of such property, fails to remove or effectively obscure the graffiti within the time period enumerated above, the city shall present a case to the code enforcement board or special master and fines shall be assessed against the property until it comes into compliance.

(h) The property owner has five business days from receipt or posting of the notice to file for an appeal hearing before a special master.

(i) The appeal hearing referenced in subsection (h) shall be scheduled for the first available appeal hearing before a special master.

(j) Appeal hearings shall be conducted by a special master in accordance with article X, section 2-826.

(k) If the property is found guilty by the special master, the property owner or designee must remove or effectively obscure the graffiti within the time period ordered by the special master.

(l) If the property continues to be in violation after the time period referred to in subsection (f) or the time period referred to in subsection (k), whichever is later, the city manager or designee shall cause corrective action to take place at the property owner's expense.

(m) The city manager or designee shall have the right to enter upon private property to the extent necessary to take corrective action. No person shall obstruct, impede, or interfere with the city manager or designee whenever the city manager or designee is engaged in the work of corrective action pursuant to this section or in performing any necessary act preliminary to or incidental to such work pursuant to this section. Entry into any dwelling or structure is expressly prohibited.

(n) Public right-of-way. Whenever the city becomes aware of the existence of graffiti on any property, including any structure or improvement, that abuts the public right-of-way within the city, the city manager or designee is authorized to immediately remove or obscure such graffiti.

(1) *Definition.* For purposes of subsection (n), property that abuts the public right-of-way shall only be property that is easily accessible to the city Manager or designee and does not substantially encroach on private property.

(2) *Objection.* Property owners are hereby put on notice of the requirements of this section and the city's intention to

immediately remove or obscure graffiti placed on walls, buildings, and other surfaces that abut the public right-of-way. The city shall publish notice of this section once during each week for four consecutive weeks in a local newspaper pursuant to F.S. ch. 50. Any property owner who objects to graffiti being removed or obscured on property abutting the public right-of-way shall file a statement of objection with the city manager or designee within 30 days of the date of the final published notice. Such objection shall be effective for one year. A new objection must be filed each year thereafter to preserve the objection. If an objection is filed by a property owner, subsection (n) shall not apply to that property owner's property. The property owner who objects pursuant to this subsection shall still be subject to the remaining subsections of this section.

(3) *Notice.* The appearance of graffiti on a wall, building, or other surfaces abutting the public right-of-way shall serve as notice to the property owner that the graffiti is subject to being obscured or removed by the city. Any property owner who has not filed an objection under subsection (n)(2) and who desires to obscure or remove the graffiti himself/herself shall (i) immediately remove the graffiti or (ii) notify the city manager or designee immediately of his/her intention to remove or obscure the graffiti within 48 hours. Graffiti not removed or obscured within 48 hours is subject to removal by the city manager or designee.

(o) After taking corrective action, including any corrective action taken on property abutting the public right-of-way pursuant to subsection (n), the city manager or designee shall file a code enforcement lien in the amount of all expenses incurred in correcting the condition, including all fines, continuing penalties, and actual administrative costs.

(p) Such code enforcement liens pursuant to this section shall be treated as special assessment liens against the subject real property, and until fully paid and discharged, shall remain liens equal in rank and dignity with the lien of ad valorem taxes, and shall be superior in rank and dignity to all other liens, encumbrances, titles, and claims in, to, or against the real property involved. The maximum rate of interest allowable by law shall accrue to such delinquent accounts. Notice of such lien shall be filed in the office of the clerk of the circuit court and recorded in the public records of Miami-Dade County, Florida. Once recorded, such lien shall constitute a lien against the property on which the graffiti existed and upon any other real or personal property owned by the property owner. Such liens shall be enforced by any of the methods provided by F.S. ch. 86, or, in the alternative, foreclosure proceedings may be instituted and prosecuted under the provisions applicable to practice, pleading, and procedure for the foreclosure of mortgages on real estate set forth in the Florida Statutes, or may be foreclosed pursuant to F.S. ch. 173, or the collection and enforcement of payment thereof may be accomplished by any other method authorized by law. The property owner shall pay all costs of collection, including reasonable attorney fees, incurred in the collection of fees, service charges, penalties, and liens imposed by virtue of this section.

(q) Alternatively, code enforcement proceedings pursuant to chapter 2, article X may be brought against the property upon which the graffiti exists.

(r) If code enforcement proceedings are initiated, any person or firm owning property, acting as agent or manager for the owner of such property, or in possession or control of such property, who commits a violation of subsection (g), shall be punished by a fine as determined by the code enforcement board. When determining the amount of fine to impose, the code enforcement board shall consider the efforts taken by the violator, if any, to remove or effectively obscure the subject graffiti in a timely manner and how often the violator has been victimized by graffiti during the preceding calendar year.

The provisions of this section shall not apply to a property owner, manager, agent, or possessor or property if, in the sole determination of the city manager or designee, or the code enforcement board, such property owner, agent, manager, or possessor has been victimized two or more times by graffiti within any calendar year, and, during such time, has removed or effectively obscured such graffiti from the property in a timely manner.

(s) The city may institute a civil action in a court of competent jurisdiction to recover compensatory and punitive damages, including reasonable costs and expenses, for any damage caused to city-owned property located within the city limits as a result of violations of subsection (a) or (b).

(Ord. No. 10958, §§ 1—10, 4-2-92; Code 1980, § 37-36.1; Ord. No. 13148, § 2, 3-11-10; Ord. No. 13676, § 2, 4-27-17; Ord. No. 14292, § 2, 6-27-24)

County Code cross reference—Similar provisions, § 21-30.01.

Sec. 37-3. Sleeping on streets, sidewalks, etc.

It shall be unlawful for any person to sleep on any of the streets, sidewalks, public places or upon the private property of another without the consent of the owner thereof.

(Code 1967, § 38-49; Code 1980, § 37-63)

State law reference—Trespass, F.S. § 810.08 et seq.

Sec. 37-4. Living or sleeping in vehicles.

Other than the area at the Marine Stadium designated for use by self-contained camper trailers, it shall be unlawful for any person within the city to park any vehicle on public rights-of-way, public properties or private parking lots, for the purposes of:

(1) Living;

(2) Sleeping;

(3) Cooking;

(4) Bathing; or

(5) Housekeeping.

(Code 1967, § 38-54.1; Code 1980, § 37-69)

City Code cross reference—Marine Stadium, § 53-51 et seq.

Sec. 37-5. Securities for loans and conditional sales agreements from minors.

(a) It shall be unlawful for any person to purchase or receive possession for security of a loan or any conditional sales agreement from any minor person under the age of 18 years, any personal property of any nature whatsoever, whether new or used, without first having obtained the written consent of the parents or legal guardian of such minor person. The written consent of the parents or legal guardians to such a sale shall contain the name of the minor child offering the property for sale, the name and address of the parents or legal guardians, the business or occupation of the father, if signing, otherwise the business or occupation of the mother, if any, the names of two other persons as references and a description of the property to be sold, including identifying numbers thereof, if any, otherwise a description of property in detail sufficient to readily identify the same.

(b) It shall be the duty of any person so purchasing or receiving possession for security of a loan or any conditional sales agreement, any personal property from a minor, as described herein, to preserve and keep on file, open to inspection of the circuit court or any officer thereof, of the county, the written instrument signed by the parents or legal guardian of the minor person, giving consent to the sale of the property.

(Code 1967, § 38-29; Code 1980, § 37-38)

County code reference—Offenses involving minors, § 21-6 et seq.

State law references—Removal of disabilities of nonage of married minors, F.S. § 743.01; removal of disabilities of persons entitled to benefits under the Home, Farm and Business Loans Act, F.S. § 743.04; removal of disabilities of minors borrowing money for educational purposes, F.S. § 743.05; rights, privileges and obligations of persons 18 years of age or older, F.S. § 743.07.

Sec. 37-6. Aggressive or obstructive panhandling prohibited.

(a) *Definitions.* As used in this section, the following words and terms shall have the following meanings:

Aggressively beg means to beg with the intent to intimidate another person into giving money or goods.

Beg means to ask or solicit for money or goods as a charity, whether by word, bodily gestures, signs, or other means.

Intimidate means to engage in conduct which would make a reasonable person fearful or feel compelled to react. Among the circumstances which may be considered in determining whether the conduct is intended to intimidate another person into giving money or goods are:

(1) Touching the person solicited;

(2) Following the person solicited, or persisting in begging after the person solicited has declined the request;

(3) Using profane or abusive language toward the person solicited; or

(4) Using violent or threatening gestures toward the person solicited.

Obstruct pedestrian or vehicular traffic means to walk, stand, sit, lie, or place an object in such a manner as to block passage by another person or a vehicle, or to require another person or a driver of a vehicle to take unreasonable evasive action to avoid physical contact.

Public place means an area generally visible to public view and includes alleys, bridges, buildings, driveways, parking lots, parks, plazas, sidewalks and streets open to the general public, including those that serve food or drink or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

Unreasonable evasive action means causing a vehicle to depart from the lane of traffic in which it is traveling to change lanes, to straddle lanes, or to enter onto a swale to obtain passage; it also means causing a pedestrian to leave the sidewalk or to make contact with a wall or fence bordering the sidewalk.

(b) *Prohibited acts.* It shall be unlawful for a person to intentionally:

(1) Aggressively beg; or

(2) Obstruct pedestrian or vehicular traffic while begging.

(c) *Permitted activities.* Acts authorized as an exercise of one's constitutional rights include picketing, legal protest, and acts authorized by a permit duly issued by a lawful authority which do not constitute obstruction of pedestrian or vehicular traffic.

(d) *Penalties.* The first violation of this provision shall be punishable by a fine of not more than $100.00 and 30 days imprisonment; second and subsequent violations shall be punishable by a fine of not more than $200.00 and 60 days imprisonment.

(e) *Alternative programs.* Nothing herein shall limit the discretion of the police, court personnel, and judges from referring individuals suspected, charged, or convicted of a violation of this provision to treatment programs or facilities as an alternative to prosecution or imprisonment, provided that the individual freely consents. For homeless individuals, such alternative programs shall include, but not be limited to, the Miami-Dade County Homeless Assistance Project.
(Ord. No. 12006, § 2, 12-14-00)

Sec. 37-7. Sex offenders and sexual predators.

(a) Findings and intent.

(1) This section is to be known as "Lauren's Law."

(2) Repeat sexual offenders, sexual offenders who use physical violence, and sexual offenders who prey on children are sexual predators who present an extreme threat to the public safety. Sexual offenders are extremely likely to use physical violence and to repeat their offenses, and most sexual offenders commit many offenses, have many more victims than are ever reported, and are prosecuted for only a fraction of their crimes. This makes the cost of sexual offender victimization to society at large, while incalculable, clearly exorbitant.

(3) It is the intent of this article to serve the city's compelling interest to promote, protect and improve the health, safety and welfare of the citizens of the city by

creating areas around locations where children regularly gather and can be stalked or observed in concentrated numbers wherein certain sexual offenders and sexual predators are prohibited from establishing temporary or permanent residence.

(b) Definitions. The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Permanent residence means a place where the person abides, lodges, or resides for 14 or more consecutive days.

Temporary residence means a place where the person abides, lodges, or resides for a period of 14 or more days in the aggregate during any calendar year and which is not the person's permanent address, or a place where the person routinely abides, lodges, or resides for a period of four or more consecutive or nonconsecutive days in any month and which is not the person's permanent residence.

(c) Sexual offender and sexual predator residence prohibition, penalties, exceptions.

(1) It is unlawful for any person who has been convicted of a violation of F.S. §§ 794.011, 800.04. 827.071, or 847.0145, regardless of whether adjudication has been withheld, in which the victim of the offense was less than 16 years of age, to establish a permanent residence or temporary residence within 2,500 feet of any school, designated public school bus stop, day care center, park, or playground.

(2) For purposes of determining the minimum distance separation, the requirement shall be measured by following a straight line from the outer property line of the permanent residence or temporary residence to nearest outer property line of a school, designated public school bus stop, day care center, park, or playground.

(d) Penalties.

(1) A person who violates this section and whose conviction under F.S. §§ 794.011, 800.04, 827.071, or 847.0145, was classified as a felony of the third degree, second degree, first degree, or higher, shall be punished by a fine not to exceed $500.00 or by imprisonment for a term not to exceed 60 days, or by both such fine and imprisonment.

(e) This section applies to any person convicted of a violation of F.S. §§ 794.011, 800.04, 827.071, or 847.0145, for offenses that occur on or after October 1, 2004.

Exceptions. A person residing within 2,500 feet of any school, designated public school bus stop, day care center, park, or playground does not commit a violation of this section if any of the following apply:

(1) The person established the permanent residence prior to July 1, 2005.

(2) The person was a minor when he/she committed the offense and was not convicted as an adult.

(3) The person is a minor.

(4) The school, designated public school bus stop or day care center within 2,500 feet of the persons permanent residence was opened after the person established the permanent residence.

(Ord. No. 12691, § 2, 6-9-05; Ord. No. 12713, § 2, 7-7-05)

Sec. 37-8. Reserved.

Editor's note—Ord. No. 14264, § 2, adopted April 11, 2024, repealed the former section 37-8 in its entirety, which pertained to panhandling prohibited in certain areas, and derived from Ord. No. 12997, § 2, adopted May 22, 2008, and Ord. No. 13232, § 2, adopted November 18, 2010.

Sec. 37-9. Sale or display of bath salts prohibited.

(a) It shall be unlawful to sell or display for sale bath salts within the city. For purposes of this section, "bath salt" and "bath salts" are defined as any item labeled, marketed or sold using the term "bath salt" or "bath salts" and

which is packaged in quantities of less than 16 ounces or in pill, tablet or capsule form. Such "bath salts" shall be presumed as intended for human consumption notwithstanding any labeling to the contrary. This section shall not apply to ordinary baking soda or Epsom salts.

(b) It shall be unlawful to sell or display for sale any bath salts within ten feet of any tobacco products or smoking paraphernalia.

(c) Enforcement. This section may be enforced by any police officer or code inspector of the city.

(d) Penalties. Any person who violates any provision of this section commits a municipal ordinance violation and may be punished as provided in section 1-13 of the Code. Alternatively, a violation of this section may be enforced by a civil penalty of $500.00 pursuant to the provisions of section 2-823 through 2-830 of this Code.
(Ord. No. 13324, § 2, 6-28-12)

Sec. 37-10. Sale of nicotine vaporizers (e-cigarettes) and liquid nicotine to minors, prohibited.

(a) *Definitions.*

Liquid nicotine means any liquid product composed either in whole or in part of pure nicotine which can be used with nicotine vaporizers.

Minor means a person under the age of 18.

Nicotine vaporizer means any electronic or battery-operated device that can be used to deliver an inhaled dose of nicotine or other substance and includes those composed of a mouthpiece, heating element, and battery or electronic circuits that provide a vapor of liquid nicotine or other substances to the user. This term shall include such devices whether they are manufactured, distributed, marketed, or sold as an electronic cigarette, an electronic cigar, an electronic cigarillo, an electronic pipe, an electronic hookah, an e-cigarette, an e-cigar, e-cigarillo, an e-pipe, an e-hookah, or under any other product name.

(b) *Prohibitions.*

(1) It shall be unlawful to sell, give, furnish, barter or make available directly or indirectly a nicotine vaporizer or liquid nicotine to a person under the age of 18 years old. The buyer or recipient's identification shall be examined to confirm that the buyer or recipient is at least 18 years of age.

(2) In order to minimize the physical accessibility to minors, no person shall offer nicotine vaporizers or liquid nicotine in vending machines.

(c) *Penalties.* Any person who violates any provision of this section commits a municipal ordinance violation and may be punished as provided in section 1-13 of the Code of the City of Miami, Florida, as amended.
(Ord. No. 13437, § 2, 2-27-14)

Sec. 37-11. Public urination or defecation prohibited; exceptions; penalties.

(a) *Purpose.* Public urination and/or defecation is found to be a public nuisance and detrimental to the health, safety, and welfare of the city and its inhabitants. It is the intent of this section to protect and preserve the health, safety, and welfare of the citizens of the city by prohibiting urination and/or defecation by any person in any public place as defined herein.

(b) *Definitions.* For purposes of this section, the following words shall be defined as provided herein:

Defecate or *defecation,* as used in this section, means to excrete waste from the body from a person's bowels.

Persons with impairments means a disability, unrelated to the ingestion of alcohol, illegal substances, or substances not prescribed to the

particular person ingesting them, which renders a person unable to control his or her bodily functions of urination and/or defecation.

Public place means any street, highway, right-of-way, alley, parking lot, driveway, sidewalk, boulevard, park, beach, wharf, pier, bridge, or other place, whether public or private, which is open to the public. As used in this section, "public place" does not include a place designated for use as a urinal or a toilet such as, but not limited to, a restroom or portable toilet.

Urinate or *urination,* as used in this section, means to pass or discharge urine excreted by the kidneys from the body.

(c) *Prohibited acts.* It is unlawful for any person:

(1) To urinate in any public place that has not been designated for use as a urinal or toilet.

(2) To defecate in any public place that has not been designated for use as a toilet.

(3) Exceptions. Subsections (c)(1) and (c)(2) shall not apply to children under five years old or to persons with impairments as defined in this section.

(d) *Penalty.* Any person violating any of the provisions of this section shall be subject to the penalty as provided in section 1-13 of the City Code.
(Ord. No. 13495, § 2, 2-12-15)

Sec. 37-12. Public safety and unmanned aircraft systems, commonly known as drones.

(a) *Purpose and intent.* This section is intended to promote public safety and protect people attending large venue public events from the flying of unmanned aircraft systems ("UAS") in and over such large public events. The city commission wishes to regulate the use of UAS within a half-mile radius around stadiums and sport facilities when these devices are in use, and over other large venue special events in public parks, public facilities, streets, plazas, open spaces and the like that will attract large groups of people. All restrictions are intended to protect persons gathered in groups where a UAS incident would cause greater harm and risk of injury due to a greater number of people gathered in a close proximity. It is not intended to restrict legitimate hobbyists operating UAS in compliance with FAA rules and any other applicable laws, and outside of the prohibited areas. This Section is not intended to preempt FAA rules, but rather to operate in conjunction with those rules to promote public safety while recognizing the limitation in the FAA's enforcement capabilities.

(b) *Definitions.*

Applicant shall mean the person or corporation that registers their UAS provided all the requirements in the code have been met.

Large venue special event shall mean any event held in a public space, open space, plaza, street, park, stadium, or any open-air facility or closed-air facility that is open to the public, ticketed and/or non-ticketed audience and is an event intended to attract people. A large venue special event includes but is not limited to, a sporting event, concert, festival, protest, etc.

Unmanned aircraft systems (UAS) shall mean an unmanned aircraft or unmanned aircraft system that can fly under the control of a remote pilot or by global positioning system (GPS) guided autopilot mechanism. UAS are more commonly known as "drones."

(c) *Prohibitions.*

(1) Unless otherwise exempt under this section, UAS are prohibited from being deployed, launched or flown in any airspace within or over any sporting and/or large venue special event, including but not limited to, over and within a half-mile radius of Bayfront Park, Marlins Ballpark, Miami Marine Stadium, or the Calle Ocho Festival when it is in use during a large venue special event, and over public parks and public facilities during large venue special events.

(2) In all other areas of the city, the following restrictions shall apply:

a. UAS may not be larger than five pounds including any attachments, and may not be equipped with detachable cargo, releasable payload, or any device equipped to carry a weapon. Any modifications to a UAS must be pursuant to FAA approval and registered via the city's application process.

b. UAS over five pounds may be operated only by a registered member of the Academy of Model Aeronautics (AMA), if the operator is subjected to and compliant with AMA rules. Notwithstanding the weight limit, all other provisions of this section shall apply.

c. Conditions in subsections (2)a. and b. above shall be included as conditions in the application process.

(d) *Application.*

(1) An application is required for certain activities so that city officials and employees can regulate activities which would tend to damage private/public property, endanger the public or event attendees, or which are likely to create an atmosphere which would discourage use of city-owned property, other locations or venues for their intended purpose.

a. The application form shall be completed by the applicant.

b. The application shall be processed and approved by the appropriate city official (s) and departments as is accustomed through the city's regular special event and temporary event process as established in the City Code in chapters 54 and 62 prior to allowing the use of a UAS pursuant to this article.

c. The applicant's form shall require the name of applicant, valid governmental issued identification, current address and phone number(s) of applicant, photograph of UAS to be registered, UAS name and serial number or product number, and statement of purpose for use of the UAS.

d. Applications must be made at least 14 days prior to requested usage time of UAS to ensure proper review of application by city officials.

e. The city manager is authorized to establish fees for the processing of applications pursuant to this article. Thereafter, the city manager shall set and annually revise and adjust said fees, if necessary, prior to the first day of September, and such revised fees shall become effective the first day of October of each fiscal year via an administrative memorandum. In reviewing the existing schedule of fees to determine whether or not to revise and adjust the same, the city manager shall take into consideration any one, or all of the following criteria: (i) purpose and type of event(s) or program(s) conducted at the city-owned properties or at the large venue special events, including benefits to the community; (ii) operating expenses of the application process described herein; (iii) and/or other factors deemed appropriate by the city manager. At any time, the city manager shall be authorized to negotiate the fee for all applications to use UAS above should it be determined that the current schedule of fees does not properly address a particular type of event.

f. Same—Rules and conditions. The following rules and conditions shall apply to applications sought pursuant to this section:

1. UAS activity described in this article is allowed on a first come, first served basis.

2. Applications are nontransferable, and are valid only on the date specified thereon.
3. The applicant shall be held responsible for any damage and be liable to any third party.
4. The applicant shall observe, obey and comply with the rules and regulations established by this section, as well as all applicable city, county, state and federal laws, rules and regulations.
5. The applicant shall assume all risk in the use of the UAS and shall be solely responsible and answerable in damages for all accidents and injury to person or property, as well as fines in connection with violations of this section or other applicable law.
6. Special conditions related to safety may be imposed for particular large venue special events depending upon occupancy or other safety considerations.

(e) *Exemptions.* This section shall not prohibit the use of UAS by an applicant under this section or by any law enforcement or fire rescue agency for lawful purposes and operated in a lawful manner. Notwithstanding the prohibitions set forth in this section, nothing in this section shall be construed to prohibit, limit, or otherwise restrict any person who is authorized by the Federal Aviation Administration to operate small unmanned aircraft in any city air space, pursuant to Sections 331—336 of the FAA Modernization and Reform Act of 2012 or certificate of waiver, certificate of authorization, or airworthiness certificate under section 44704 of Title 49 of United States Code or other Federal Aviation Administration grant of authority for a specific flight operation or operations, from conducting such operation(s) in accordance with the authority granted by the Federal Aviation Administration.

(f) *Enforcement.*

(1) *Penalty.* Any person in violation of any provision of this section shall be subject to the penalty as provided in section 1-13; however, in addition to, or in lieu of any criminal prosecution, the city shall have the power to sue in civil court and to enforce the provisions of this article before its code enforcement board established in chapter 2, article X of the Code of the City of Miami as amended. In addition to the penalties referenced above, a UAS operated in violation of this chapter will be impounded and held until the conclusion of the court or code enforcement proceedings.

(2) *Release and disposal.* Following the city's receipt of the request for an adversarial hearing by the owner of the UAS, the city shall schedule such hearing to take place before a hearing officer within 45 days. The hearing officer shall conduct a full adversarial hearing, and will render a decision in writing at the conclusion of the hearing. At the hearing, it shall be the city's burden to demonstrate a violation of this section. If the hearing officer finds that the city has not met this burden, it shall relinquish possession of the UAS to the owner. Formal rules of evidence shall not apply at the hearing and hearsay and circumstantial evidence shall be admissible. Title to any unclaimed UAS lawfully impounded pursuant to this section in the custody of the city shall vest permanently in the city 60 days after the conclusion of the proceeding in accordance with F.S. § 705.105, as amended.

(g) *Liability and insurance.*

(1) Prior to the finalization of the application, the applicant/operator shall furnish to the city a signed statement, approved by the city attorney, that the applicant/operator shall hold-harmless, indemnify and defend the city, its elected officials, officers, and employees for any claims for damages to property or injury to persons

which may be occasioned by any activity carried on under the terms of the application.

(2) Applicant shall furnish and maintain such public liability and property damage insurance to protect from all claims and damage to property or bodily injury which may arise from operations under the application or in connection therewith subject to an assessment by risk management.

(Ord. No. 13581, § 2, 12-10-15)

Sec. 37-13. Conversion therapy.

(a) *Definitions.* Unless otherwise expressly stated, the following terms shall, for the purpose of this section, have the meanings indicated in this section:

Conversion therapy, also referred to as "reparative therapy," means any counseling, practice, or treatment performed with the goal of changing a person's sexual orientation or gender identity including, but not limited to, efforts to change behaviors, gender expression, or to reduce or eliminate sexual or romantic attraction or feelings toward a person of the same gender. "Conversion therapy" does not include counseling that:

(1) Provides support to a person undergoing gender transition; or

(2) Provides acceptance, support, or understanding of a person, or facilitates a person's coping, social support, identity exploration, and development, including sexual orientation-neutral interventions to prevent or address unlawful conduct or unsafe sexual practices, if such counseling is not conducted with the goal of changing the person's sexual orientation or gender identity.

Minor means a person less than 18 years of age.

(b) *Conversion therapy prohibited.* A person who is licensed by the state to provide professional counseling, or who performs counseling as part of his or her professional training under F.S. ch. 458, 459, 490, or 491, as such chapters may be amended, including, but not limited to, medical practitioners, osteopathic practitioners, psychologist, psychotherapists, social workers, marriage and family therapists, and licensed counselors, may not engage in conversion therapy or reparative therapy with a minor.

(c) *Enforcement; penalties.* A violation of the provisions of this section may be cited pursuant to chapter 2, article X of this Code and shall result in a fine of $500.00. Each day that a violation occurs constitutes a separate offense. These penalties shall not preclude any other remedies available at law or in equity, including, injunctive relief in the circuit court.

(Ord. No. 13638, § 2, 10-13-16)

Sec. 37-14. False or fraudulent claims for payment or approval.

(a) *Short title, purpose, and definitions.* This section shall be known as and may be cited as the "Miami False Claims Ordinance."

The purpose of the Miami False Claims Ordinance is to deter persons from knowingly causing or assisting in causing the city to pay claims that are false, fraudulent, or inflated, to provide remedies for obtaining damages and civil penalties for the city when money is sought or obtained from the city by reason of a false claim. The provisions of this section are not exclusive, and the remedies provided for in this section shall be in addition to any other remedies provided for in any other law, available under common law, or otherwise. This section shall be liberally construed and applied to promote the public interest.

For the purposes of this section, the following terms, phrases, and words shall have the following meanings:

Bid takeoff means the final estimate, tabulation, or worksheet prepared by the contractor in anticipation of the bid submitted and which shall reflect the final bid price.

Certified claim means a claim made under oath by a person duly authorized by the claimant and shall contain a statement that:

(1) The claim is made in good faith;

(2) The claim's supporting data are accurate and complete to the best of the person's knowledge and belief;

(3) The amount of the claim accurately reflects the amount that the claimant believes is due from the city; and

(4) The certifying person is duly authorized by the claimant to certify the claim.

City means the City of Miami, its departments, officials, officers, employees, consultants, and agents. It shall also include any instrumentality, authority, agency, board, district, committee, or commission of the city including its members, officials, officers, employees, consultants, and agents.

Claim means any invoice, statement, request, reimbursement, demand, proceeding, lawsuit, complaint, or action under contract or otherwise for money, property, or services made to any employee, officer, or agent of the city, or to any contractor, grantee, or other recipient if any portion of the money, property, or services requested or demanded from, or provided by, the city; withholding any money, property, or services from the city; any costs incurred by the city in defense of any claim as defined herein.

Claimant means any person who brings, submits, files, maintains, or pursues a claim.

Extended overhead means the amount of a claim relating to an increase in overhead costs resulting from a delay in contract performance that is not compensated by a markup of direct costs.

Knowing or *knowingly* means that a person, with respect to information:

(1) Has actual knowledge of the information;

(2) Acts in deliberate ignorance of the truth or falsity of the information; or

(3) Acts in reckless disregard of the truth or falsity of the information.

Original source means a person who has direct and independent knowledge of the information on which the allegations are based and has voluntarily provided the information to the city manager before filing an action under this section based on the information.

Overhead per diem means the amount calculated by dividing the total overhead costs set forth in the final bid takeoff by the number of days for substantial completion of the work set forth in the contract.

Person means any natural person, corporation, firm, association, organization, partnership, agency, limited liability company, business, trust, or any other group acting as a unit.

(b) *Certification of claims.* Upon the request of the city, the person submitting a claim shall, within 30 days, including Saturdays, Sundays, and legal holidays, submit a certified claim as defined herein. Failure to provide the requested certification within the prescribed 30-day period shall constitute a forfeiture of the entire claim.

(c) *Liability for false claims.*

(1) The following action(s) shall constitute a violation of this section:

a. Any person who knowingly, deliberately, and/or under the penalty of perjury presents or causes to be presented to the city a false or fraudulent claim for payment or approval;

b. Any person who knowingly, deliberately, and/or under the penalty of perjury makes, uses, or causes to be made or used a false record or statement to get a false, fraudulent, or inflated claim paid or approved by the city;

c. Any person who conspires to defraud the city by facilitating the payment of a false, fraudulent, or inflated claim allowed or paid by the city;

d. Any person who delivers, with the intent to defraud the city, goods or services of a different quality or quantity than that specified in the applicable contract or specification;

e. Any person who intentionally buys, or receives as a pledge of an obliga-

tion or debt, public property from an officer, employee, or agent of the city who the person knows may not lawfully sell or pledge the property; or

f. Any person who knowingly, deliberately, and/or under the penalty of perjury makes, uses, or causes to be made or used a false record or statement to conceal, avoid, or decrease an obligation to pay or transmit money or property to the city.

g. Subject to the limitations and restrictions of § 768.295, Florida Statutes (F.S.), any person who knowingly, deliberately, and/or under the penalty of perjury makes, uses, or causes to be presented to the city, a judicial body, or a quasi-judicial body a false or fraudulent statement, charge, allegation, or testimony against the city, its departments, officials, officers, employees, or agents.

(2) Any beneficiary of an inadvertent submission of a false claim to the city, who subsequently discovers the falsity of the claim, and who fails to disclose the falsity of the claim to the city within 30 days of discovering the error shall also be found to have submitted a false claim to the city.

(d) *Penalties.*

(1) Any person found to have submitted a false claim to the city shall:

a. Be liable to the city for an amount equal to three times that part of the claim which is false, fraudulent, or inflated;

b. Immediately, fully, and irrevocably forfeit the entire amount of the claim;

c. Return to the city any and all funds disbursed and/or paid by the city on that part of the claim which is false, fraudulent, or inflated;

d. Be liable to the city for all costs and fees (including, without limitation, reasonable legal, expert, and consulting fees) incurred by the city to review, initiate proceedings, defend, and/or evaluate the claim; and

e. Be subject to debarment from city contracting for a period not to exceed five years. Additionally, any person who certified a claim later found to be false shall be subject to debarment from city contracting for a period not to exceed five years.

(2) Liability under this section shall be joint and several for any act committed by two or more persons.

(3) Any person who is found to have only violated subsection (c)(1)g. shall only be liable to the city for all costs and fees (including, without limitation, reasonable legal, expert, and consulting fees) incurred by the city to review, initiate proceedings, defend, and/or evaluate the violation.

(e) *Civil actions for false claims.*

(1) The city manager may investigate a violation under subsection (c) of the City Code. If the city manager finds that a person has violated or is violating subsection (c), he or she may, upon city commission approval, request that the city attorney bring a civil action against the person on behalf of the city.

(2) A person may bring a civil action for a violation of subsection (c) for the person and for the city. Civil actions instituted under this subsection shall be governed by the Florida Rules of Civil Procedure and shall be brought in the name of the city.

a. The complaint shall be identified on its face as a qui tam action and shall be filed under seal in the circuit court of the Eleventh Judicial Circuit, in and for Miami-Dade County. Immediately upon filing of a complaint by a person, a copy of

the complaint and written disclosure of substantially all material evidence and information the person possesses shall be served on the city manager by registered mail, return receipt requested. The city manager may elect, upon city commission approval, to proceed with the action, in lieu of the qui tam plaintiff, on behalf of the city, within 180 days after he or she receives both the complaint and the material evidence and information.

b. The city manager, for good cause shown, may petition the court to extend the time during which the complaint remains under seal under subsection (e)(2)a. Any such motion may be supported by affidavits or other submissions in camera. The defendant is not required to respond to any complaint filed under this section until 20 days after the complaint is unsealed and served upon the defendant in accordance with law.

c. Before the expiration of the 180-day period or any extensions obtained under subsection (e)(2)b., the city manager shall:

1. Upon city commission approval, proceed with the action, in which case the action is conducted by the city attorney on behalf of the city; or

2. Notify the court that the city declines to take over the action, in which case the person bringing the action has the right to conduct the action.

d. When a person files an action under the Miami False Claims Ordinance, no person other than the city manager, upon city commission approval and on behalf of the city, may intervene or bring an action under the Miami False Claims Ordinance based on the facts underlying the pending action.

(f) *Rights of the parties in civil actions.*

(1) If the city manager, upon city commission approval and on behalf of the city, elects to proceed with the action, he or she has the primary responsibility for prosecuting the action and is not bound by any prior or subsequent act(s) of the person bringing the action. The city may also voluntarily dismiss the action notwithstanding the objections of the person bringing the action.

(2) If the city manager and/or the city commission elects not to proceed with the action, the person bringing the action has the right to conduct the action. If the city manager and/or the city attorney so requests, he or she shall be served with copies of all pleadings and motions filed in the action and copies of all deposition transcripts. When the person bringing the action proceeds with the claim, the court may permit the city to take over the action on behalf of the city at a later date upon a showing of good cause.

(3) Nothing in this section shall be construed to limit the authority of the city, or the qui tam plaintiff proceeding pursuant to subsection (e)(2), to compromise a claim brought in a complaint filed under the Miami False Claims Ordinance if the court determines, after a hearing, that the proposed settlement is fair, adequate, and reasonable under all the circumstances.

(g) *Awards to plaintiffs bringing civil actions.*

(1) If the city proceeds with and prevails in an action brought by a person under the Miami False Claims Ordinance, except as provided in subsection (g)(2), the court shall order the distribution to the person of ten percent of the proceeds recovered under any judgment obtained by the city in an action under subsection (b) or of the proceeds of any settlement of the claim.

(2) If the city proceeds with an action which the court finds to be based primarily on disclosures of specific information, other than that provided by the Person initiating the action, relating to allegations or transactions in a criminal, civil, or administration hearing; a legislative or administrative action; a report, hearing, audit, or investigation by the city's independent auditor general; or from the news media, the court may award such sums as it considers appropriate, but in no case not more than five percent of the proceeds recovered under a judgment or received in settlement of a claim under this section taking into account the significance of the information and the role of the person bringing the action in advancing the case to litigation.

(3) If the city does not proceed with an action under this section, the person bringing the action or settling the claim shall receive 25 percent of the proceeds recovered under a judgment rendered in an action or in settlement of a claim under the Miami False Claims Ordinance.

(4) Any payment under this section to the person bringing the action shall be paid only out of the proceeds recovered from the defendant.

(5) Whether or not the city proceeds with the action, if the court finds that the action was brought by a person who planned, initiated, or furthered the violation of subsection (c) upon which the action was brought, the person shall be dismissed from the civil action and shall not receive any share of the proceeds of the action. Such dismissal shall not prejudice the right of the city to continue the action.

(h) *Expenses, attorney's fees, and costs.*

(1) If the city initiates an action under the Miami False Claims Ordinance or assumes control of an action brought by a person under the Miami False Claims Ordinance and the city prevails in such action, the city shall be awarded its reasonable attorneys' fees, expenses, and costs.

(2) If the court awards the person bringing the action under the Miami False Claims Ordinance, the person shall also be awarded an amount for reasonable attorneys' fees and costs. Payment for reasonable attorneys' fees and costs shall be made from the recovered proceeds before the distribution of any award.

(3) If the city does not proceed with an action under the Miami False Claims Ordinance and the defendant is the prevailing party, the court shall award the defendant reasonable attorneys' fees and costs against the person bringing the action.

(4) No liability shall be incurred by the city for any expenses, attorneys' fees, or other costs incurred by any person in bringing or defending an action under this section, except as otherwise specifically provided by law.

(i) *Exemptions to civil actions.*

(1) In no event may a person bring an action under the Miami False Claims Ordinance based upon allegations or transactions that are the subject of a civil action or an administrative proceeding in which the city is already a party.

(2) No court shall have jurisdiction over an action brought under the Miami False Claims Ordinance based upon the public disclosure of allegations or transactions in a criminal, civil, or administrative hearing; in a legislative or administrative action; in a report, hearing, audit, or investigation by the city's independent auditor general; or from the news media unless the action is brought by the city or unless the person bringing the action is an original source of the information.

(3) No court shall have jurisdiction over an action where the person bringing the action under the Miami False Claims Ordinance is:

a. Acting as an attorney for the city; or

b. An employee or former employee of the city,

and the action is based, in whole or in part, upon information obtained in the course or scope of city employment.

(4) No court shall have jurisdiction over an action where the person bringing the action under the Miami False Claims Ordinance obtained the information from an employee or former employee of the city.

(j) *Protection for participating employees.* Any employee who is discharged, demoted, suspended, threatened, harassed, or in any other manner discriminated against in the terms or conditions of employment by his or her employer because of lawful acts done by the employee in furtherance of an action under the Miami False Claims Ordinance, including investigation for, initiation of, testimony for, or assistance in an action filed or to be filed under this section shall have a cause of action under the State of Florida "Whistleblower's Act," F.S. § 112.3187.

(k) *Burden of proof; presumption of false claim.*

(1) Whenever practicable, bid specifications for city contracts shall contain a requirement that the successful bidder maintain, as a condition precedent to submitting a claim against the city, a final bid takeoff. The final bid takeoff shall contain a line item for allocation of overhead costs.

(2) Upon request from the city, a contractor making a claim against the city for delay or other damages shall submit, within 20 days of the city's request, a copy of the final bid takeoff, certified pursuant to this subsection. Failure to provide the requested certification shall constitute a forfeiture of the claim for delay or other damages. The certification shall be submitted under oath by a person duly authorized by the claimant and shall contain a statement that:

a. The final bid takeoff was prepared contemporaneously with the bid and in anticipation of the bid for the project;

b. The contractor relied on the final bid takeoff to prepare the bid and the original schedule of values; and

c. The final bid takeoff has not been altered in any way.

(3) Any claim for extended overhead costs that exceeds, on a per diem basis, more than ten percent of the overhead per diem contained in the final bid takeoff shall be presumed to be a false claim and the contractor shall have the burden of proving that any such claim for extended overhead is not false.

(l) *Innocent claimant affirmative defense.* The provisions of the Miami False Claims Ordinance shall not apply if the claimant can demonstrate by a preponderance of the evidence each of the following facts:

(1) The claimant submitted or caused to have submitted the claim to or against the city reasonably believing that such claim was free of any material misstatements, or any exaggerated, inflated, or unsubstantiated assertions or damages;

(2) The claimant had no reasonable basis to doubt the truth, veracity, or accuracy of such claim at the time it was submitted;

(3) Prior to submitting the claim, the claimant diligently investigated the facts underlying such claim and prepared the claim in a reasonable manner given all the relevant information available; and

(4) When information indicating that any element, statement, or allegation in the claim was false or misleading first became available, such claimant, within five business days of discovering the falsity of the claim, took immediate steps to modify, correct, or withdraw such claim and provided the city with immediate notice thereof.

(Ord. No. 13786, § 2, 9-13-18)

Sec. 37-15. Enforcement of emergency orders issued by the city; penalties.

(a) *Prohibited acts.* It shall be unlawful and a violation of the City Code for any person or property to violate any provision of an emergency

order promulgated by the city or the mayor of Miami-Dade County or an executive order issued by the governor of the state. In addition, any violation of F.S. § 252.50, as amended, may be enforced as a noncriminal civil infraction pursuant to this section.

(b) *Enforcement, penalties.* A violation of the provisions of this section shall be a noncriminal civil infraction, enforceable under the provisions of chapter 2, article X of the City Code. Each violation shall carry with it a fine of up to $500.00 for each incident, which amount shall be set by the city manager. Enforcement under this section shall not preclude enforcement action by any other means allowed by law.
(Ord. No. 13909, § 2, 6-25-20)

Sec. 37-16. Encampments on public property prohibited.

(a) *Definitions.* Unless the particular provisions or the context otherwise requires, the definitions contained in this section shall govern the construction, meaning, and application of words and phrases used in this chapter.

Code inspector means the authorized agent or employee of the city so designated in chapter 2, article X of the City Code whose duty it is to ensure Code compliance.

Encampment means any one or more of the following:

(1) The unauthorized use of fabric, metal, cardboard, or other materials as a tent or other temporary structure for living accommodation purposes or human habitation;

(2) The unauthorized use of a bed mattress or bedroll in a public place;

(3) The unauthorized use of a heating device in an area; or

(4) The unauthorized accumulation of personal property (other than durable medical equipment) that would not fit in a container three feet high, three feet wide, and three feet deep.

Department means the department of human services.

Durable medical equipment means equipment customarily used for medical purposes, able to withstand repeated use, and generally not useful to a person in the absence of illness or injury. Non-exclusive examples of such equipment include wheelchairs, canes, crutches, and portable oxygen tanks.

Heating device means a camp stove, grill, heater, or other container or device capable of generating or containing an open flame.

Police officer means a law enforcement officer as defined in F.S. § 943.10(1), as amended.

Public place means an outdoor area owned, managed or controlled by the city to which the public has access, including but not limited to public rights-of-way, parks, streets, sidewalks, hiking and biking trails, transit facilities, underpasses, and parking lots.

(b) *Prohibitions.*

(1) Encampment in a public place in the city is unlawful.

(2) Any person who violates this section shall be punished as provided in section 1-13 of the Code or as a civil violation as set forth in chapter 2, article X of the Code.

(c) *Procedure for enforcement.*

(1) A police officer or code inspector may issue a citation for a violation of this article if prior to issuing the citation:

a. The police officer or code inspector has tendered a written warning to the person maintaining an encampment stating that a failure to comply with the city's prohibition against encampments may result in the issuance of a citation to the person or in the person's arrest; and

b. The police officer or code inspector has provided a reasonable time for the person to pick up his or her belongings and comply with the prohibition, yet the person has not complied.

c. The written warning required by subsection (c)(1)a. may be accompanied by written information regarding the availability of medical treatment (including mental health treatment) or social services (including temporary shelter or drug or alcohol rehabilitation).

(2) A police officer may arrest a person for a violation of this article if prior to the arrest:

a. The police officer has tendered the written warning required by subsection (c)(1)a. of [this section] and has provided a reasonable time for the person to pick up his or her belongings and comply with the prohibition, yet the person has not complied;

b. The police officer has verified that there is an available shelter bed for the person and the person has refused the offer of shelter; and

c. In the event of an arrest pursuant to this section, the police officer and the department will follow the established city policies for the handling and storage of the person's property.

(Ord. No. 14032, § 2, 10-28-21; Ord. No. 14296, § 2, 7-11-24)

Sec. 37-17. Smoking and vaping including, but not limited to, tobacco and cannabis, in all of their forms and extract products, in public parks and beaches prohibited.

(a) *Definitions.*

Cannabis means the cannabis plant, in its different forms, and any part of the same, including seeds, derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers thereof, whether growing or not, with a delta-8 tetrahydrocannabinol ("THC") concentration that does not exceed 0.3 percent on a dry weight basis.

Smoke or *smoking* means inhaling, exhaling, burning, carrying, or possessing any lighted tobacco or cannabis product, in all of their forms and extracts, including cigarettes, cigars (except unfiltered cigars as that term is used in F.S. § 386.209, as amended), pipes, and any other lighted tobacco or cannabis product, in all of their forms and extracts.

Vape or *vaping* means to inhale or exhale vapor produced by a vapor-generating electronic device or to possess a vapor-generating electronic device while that device is actively employing an electronic, a chemical, or a mechanical means designed to produce vapor or aerosol from a nicotine or cannabis product, in all of their forms and extracts, or any other substance. The term does not include mere possession of a vapor-generating electronic device.

Vapor means aerosolized or vaporized nicotine, cannabis, in all of their forms and extract products, or other aerosolized or vaporized substance produced by a vapor-generating electronic device or exhaled by a person using such a device.

(b) *Prohibition.* It shall be unlawful for any person to smoke or vape including, but not limited to, tobacco or cannabis, in all of their forms and extract products, in public parks or public beaches.

(c) *Penalties.* The following penalties shall be imposed for violations of this section:

(1) First offense within a 12-month period: Punishable by a $100.00 civil fine.

(2) Second offense within a 12-month period: Punishable by a $200.00 civil fine.

(3) Third or subsequent offense(s) within a 12-month period: Punishable by a $500.00 civil fine.

(4) In addition to the civil fines outlined above, any person who continues to smoke or vape after being issued a warning or civil fine may be subject to removal from the public park or beach premises for a period not exceeding 24 hours.

(d) *Enforcement.* This section shall be enforced pursuant to chapter 2, article X—Code enforcement of the City Code, as amended, or any other enforcement mechanism as provided by law. Use of one means of enforcement shall not preclude

the use of any other remedies. Civil fines issued pursuant to this article are appealable to a special magistrate. Civil citations may also be issued by City of Miami Police.
(Ord. No. 14174, § 2, 5-25-23)

Chapter 38

PARKS AND RECREATION*

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***Charter references—**Authority of city relative to parks, §§ 3(b), 3(jj); authority of city to use parks and playgrounds for outdoor exhibitions, games and contests, and to charge admission therefor, § 3(jj).

City Code cross references—Department of parks and recreation, § 2-436 et seq.; investigation of applicants for use, lease, rental, etc., of city-owned facilities, other municipal property, § 2-777; preservation of trees, shrubs, etc., on public property, § 17-71 et seq.; stadiums and convention centers, ch. 53.

County Code cross reference—Exemption of governmentally owned and operated swimming pools from annual county permit fee, § 27-6(b).

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ARTICLE I. IN GENERAL

Sec. 38-1. Children's creative experience program.

The city manager is hereby authorized to organize and conduct children's creative experience programs in city parks and to charge a fee of $16.00 per child, with such preschool activities to commence in the month of October and conclude in the month of May, and such fee, to provide specialized instruction and supplies, to be payable upon registration or in a maximum of three installments.
(Code 1967, § 39-9; Ord. No. 8790, § 1, 4-27-78; Code 1980, § 38-1; Ord. No. 13142, § 11, 2-11-10)

Sec. 38-2. Liability for damages from use of recreational facilities.

Any person or organization using the community buildings or any other recreational facility of the city shall be responsible for any damage that may occur during the use of the premises, either to the premises or to a person using the same, and such person or organization using city recreational facilities shall indemnify and hold harmless the city from any liability whatever arising out of the use of the buildings or facilities by any such person or organization.
(Code 1967, § 39-10; Code 1980, § 38-2)

Sec. 38-3. Closing hours for parks and playgrounds—Generally.

(a) Except as otherwise provided in this chapter, all municipally owned parks and playgrounds of the city and all similar real property owned by the city, not directly engaged in the operation of facilities which require that the general public have access to such premises during the hours hereinafter recited, shall be closed to the general public from 10:00 p.m. until 7:00 a.m., daily, except when kept open for special events sponsored by, or operated by, the city. Any person found in, on or about such premises during the hours herein set forth, unless such person is actually engaged at such time in official business for the city, the county, the state or the United States, shall be deemed to have violated this section. The prohibition herein contained shall not extend to any public meeting, exercise or exhibition held upon any such municipal properties which shall extend beyond 10:00 p.m., unless the person attending such public meeting, exercise or exhibition shall have been allowed a reasonable time in which to leave the premises, and nothing contained in this section shall interfere with the closing hours of any city department or division thereof and the use of its own facilities in the public interest, but this section is designed to prevent persons entering or loitering upon municipally owned real estate referred to herein during the prohibited hours when such entering or loitering is not connected with official business.

(b) The city manager may in his/her discretion change hours of closing in any park where he/she deems it necessary.
(Code 1967, § 39-11; Code 1980, § 38-3; Ord. No. 13676, § 2, 4-27-17)

Sec. 38-4. Same—Notice in main entrances.

The police department shall cause proper notice to be placed in the main entrances to the city parks, playgrounds and properties referred to in the preceding section, warning the general public that such properties are closed during the hours therein recited.
(Code 1967, § 39-12; Code 1980, § 38-4)

Sec. 38-5. Scenic parks—Designation.

The city shall designate such parks within its park system that it determines to be a "scenic park" by publicly exposing a sign with the words "SCENIC PARK."
(Code 1967, § 39-14; Code 1980, § 38-5)

Sec. 38-6. Same—Closing hours.

The city shall establish and expose upon scenic parks, painted in letters at least four inches high, designating therein the time of closing of the park with the following language: "THIS PARK IS CLOSED AFTER 7:00 P.M." Any person who shall thereafter enter into or upon the premises after such time designated on such sign and before 7:00 a.m. shall be deemed a trespasser and shall be guilty of a violation of

this section, provided that the city shall establish a fence separating any building or hall which may be owned or maintained by the city in any scenic park, and this section shall not be applicable to any person who may go into and upon the portion of the premises leading into and upon, or from, such building.
(Code 1967, § 39-15; Code 1980, § 38-6)

Sec. 38-7. Rental fees for special events or social functions in open areas of city parks.

(a) The city manager shall establish the schedule of facility rental fees for special events, (i.e. festivals) or social functions, (i.e. birthday parties) in open areas of city parks charges by January 1, 1997. Thereafter, the city manager shall review, and revise the schedule of facility rental fees annually prior to the first day of September, and such revised fees shall become effective the first day of October. In reviewing the existing schedule of facility rental fees to determine whether or not to revise and adjust the same, the city manager shall take into consideration any one, or all of the following criteria: (i) city financial needs; (ii) operating expenses; (iii) marker conditions; (iv) purpose and type of event(s) or program(s) conducted at the recreational facilities, including benefits to the community; (v) estimated revenues to be generated; (vi) and/or other factors deemed appropriate by the city manager. At any time, if the city manager determines that the current schedule of facility rental fees does not properly address a particular type of event or social function, the city manager shall be authorized to negotiate the facility rental fee, in the case of such specific event or function, or establish a facility rental fee, in the case of a type of event or function which is likely to reoccur.

(b) The parks and recreation department director shall establish the rules (including complimentary ticket policy), regulations and procedures pertaining to special events (i.e. festivals) or social functions, (i.e. birthday parties) in open areas of city parks, subject to the review and approval of the city manager and city attorney. Special event applications, permits and contracts shall be conditioned upon: (i) review and approval of the city manager and city attorney; (ii) the permittee agreeing to hold harmless the city, its agents, officers and employees, against all liabilities, judgments, costs, damages and expenses incurred by the city as a consequence of the granting of the permit; and (iii) the permittee providing proof of adequate liability insurance in a form and in amounts acceptable to the city's risk management division or its successor.
(Code 1967, § 39-16.2; Code 1980, § 38-7; Ord. No. 11411, § 2, 11-21-96)

Sec. 38-8. Use of Manuel Artime Community Center.

(a) *Rates.* Rates for the use of the following areas at the city facility known as the Manuel Artime Community Center are hereby established, which rates include normal janitorial service, air conditioning, normal use of houselights, and such other items that are available at the facility for use, but do not include event personnel or support services such as police officers, firefighters, ushering staff, ticket sellers and ticket takers, stagehands, spotlight operators, sound and lighting technicians, musicians, projectionists, booth equipment and installing and dismantling electrical installations, and insurance. The use rates established are as follows; however, nothing contained in the provisions of this section shall limit or restrict the right of the city commission to establish and fix special charges or special terms and conditions for the use of the Manuel Artime Community Center of Little Havana:

(1) Manuel Artime Performing Arts Center, Theater, First Floor (900 S.W. First Street):

a. Performances:

1. With no ticket sales:

i. Two hours or less	$367.50
ii. More than two hours, but less than four hours . .	577.50
Each additional hour over four hours . .	52.50

iii. Daily rental at eight hours maximum .. 787.50

2. With ticket sales:

i. Profit organizations, four hours or less 682.50

ii. Non-profit organizations, four hours or less 630.00

iii. For profit or non-profit organizations, two hours or less 420.00

b. Rehearsals:

1. During a nonperformance date before 5:00 pm, four hours or less 105.00

2. During a nonperformance date after 5:00 pm, four hours or less 210.00

3. During a performance date, four hours or less 105.00

4. Rehearsals with no performance .. 577.50

5. Each additional hour over four hours, for any rehearsal stated above 52.50

c. Filming:

1. Daily rental rate, four hours or less 735.00

2. Daily rental rate, eight hours or less 892.50

3. Daily rental rate, more than eight hours 1,050.00

d. Setup time and dismantle time for performances, rehearsals, and filming:

1. A total combination of eight hours or less..... No charge

2. Each additional hour over eight hours hours 52.50

(2) Choir room (third floor):

a. For non-tenants:

1. Two hours minimum..... 16.00

2. Daily rental, eight hours maximum . 79.00

b. For tenants of the Manuel Artime Community Center with current leases and with current insurance policies ..... No charge

(3) Mini-plaza:

a. Daily rental of eight hours or less 157.50

b. Daily rental of eight hours or less in addition to the rental of Manuel Artime Performing Arts Center, Building A, first floor . 52.50

c. Each additional hour over eight hours 52.50

(4) Mini-park:

a. Daily rental between the hours of 8:00 a.m. and 5:00 p.m..... 157.50

b. Daily rental in conjunction with, and in addition to the rental of Manuel Artime Performing Arts Center, first floor..... 52.50

(b) *Special rates for frequent non-profit users.* For those non-profit organizations sponsoring four or more events in one fiscal year the rate

shall be $420.00 per event so long as the promoter, producer, sponsor, or organizer of the event is directly and legally connected to said non-profit organization.

(c) *Special rates.* In addition to those rates set forth herein, special rates or fee waivers at the Manuel Artime Community Center facilities upon user request and recommendation by the administration may be approved by the city commission.

Except for the theater, use of all areas of this city facility is gratuitous for tenants of the Manuel Artime Community Center who have executed current lease agreements, subject to securing insurance as required in subsection (d) of this section, if non-tenants are invited upon the premises of the facility or if the presence of non-tenants is reasonably anticipated.

(d) *Insurance.* In addition to the rate(s) charged, insurance coverage, at the sole cost and expense of the user, is required for all performances, rehearsals, and filming as a prior condition of use. The insurance requirements shall be satisfied and approved by the department of risk management prior to the date of the performance, rehearsal, or filming. Use of the premises is prohibited unless the required insurance coverage is obtained. All policies written must name the city as an additional insured.

The city may be able to obtain special-events insurance for those events that meet certain prerequisites. The city, at its sole option, may determine that the event qualifies for said special-events insurance. If so qualified, the user may comply with the insurance requirement by obtaining said insurance through the city at the user's expense.

(e) *Reservation deposit payment of fee.* Persons or organizations wishing to use the above-designated areas at the Manuel Artime Community Center shall be required to make a payment in the amount of $105.00 per day, as a nonrefundable cash deposit, seven days from the date of notification by the city that the requested date(s) has been reserved. The cash deposit will be forfeited if the user cancels the event any time after the payment of the said cash deposit. User must pay the city the total use fee no less than ten days prior to the reserved date(s), as well as provide insurance certificate(s) as set forth in subsection (b) of this section and copyright licenses, if applicable, at this time.

(f) *Compliance with applicable requirements.* User must produce satisfactory evidence of the following, where applicable:

(1) Compliance with all zoning ordinance requirements.

(2) Compliance with all county and state health requirements.

(3) Compliance with all applicable state licensing requirements.

(4) Compliance with federal copyright laws, rules and regulations.

(5) Compliance with all provisions of this Code.

(Ord. No. 12403, § 3, 12403, § 3, 9-11-03; Ord. No. 13142, § 11, 2-11-10)

Editor's note—Ord. No. 12403, §§ 2, 3, adopted September 11, 2003, repealed and reenacted § 38-8 in its entirety to read as herein set out. Formerly, § 38-8 pertained to similar subject matter and derived from Ord. No. 8961, §§ 1—3, adopted July 11, 1979; Ord. No. 9898, § 1, adopted September 20, 1984; Ord. No. 10694, § 1, adopted January 11, 1990; the Code of 1980, § 38-8; Ord. No. 11750, § 2, adopted January 12, 1999; Ord. No. 11881, § 2, adopted January 13, 2000; Ord. No. 11913, § 2, adopted April 13, 2000.

Sec. 38-9. Park fees for use of Virginia Key Park.

"Park fees" for use of the beach facilities are hereby established for the City of Miami's Virginia Key Park and shall be assessed upon park users for entry to the park, as follows:

(1) Daily pass:

a. Three dollars for city residents and $5.00 for nonresidents per automobile or van (a passenger-carrying vehicle designed for a capacity of not more than 16 passengers).

b. One dollar for city residents and $2.00 for nonresidents per individual/walk-in. (This shall also allow entry of a person on a nonmotorized vehicle, such as a bicycle.)

c. Ten dollars per bus or recreational vehicle (a passenger-carrying vehicle designed for a capacity of more than 16 persons).

(2) Fees for use of any designated picnic areas by groups shall be established by the city manager.

(3) Terms, fees and conditions shall be negotiated and established by the city manager for the use, by park permit only, of the southern park area which is serviced by a public bathroom and food service concession facility.

(Ord. No. 10120, § 1, 7-10-86; Code 1980, § 38-9; Ord. No. 11273, § 1, 7-13-95; Ord. No. 11820, § 2, 7-27-99)

Sec. 38-10. Annual review and adjustment of Virginia Key Park fees.

Beginning April 1, 1996, park fees for use of Virginia Key Park shall be adjusted annually, if necessary, by the city manager prior to April 1 and shall become effective May 1, conditioned upon the following criteria:

(1) Operating expenses.

(2) Reserve for improvements and major maintenance.

(3) Other city financial needs.

(Ord. No. 11273, § 2(28-10), 7-13-95)

Sec. 38-11. Charges for use of recreational facilities generally.

(a) *Definitions.* For purposes of this chapter the following terms are defined as:

City resident means a person who can prove that their place of residency is in the city corporate limits. As for organizations, city residency means that the organization can prove that its principal office is located within the city corporate limits, or in the event that the organization does not have an office, the person who applies for a permit on behalf of the organization, and who is authorized to act on behalf of the organization, can prove that his or her residency is located within the city corporate limits. Acceptable documentation to prove city residency for individuals shall include driver's licenses, voter's registration, official identification card, utility invoices, current tax bill, military documentation (for active military individuals currently residing in city corporate limits), etc. With respect to minors, the residence of such individuals shall be established by proof provided by such individual's guardian, parent or parents. Businesses can also furnish copies of occupational licenses, certificates of use, etc.

Day use means the period of time when park sport lights are not used.

Night use means the period of time when park sports lights need to be used.

(b) *Application.* Written applications for the use of desired park facilities on a specific date shall be submitted to the office of the director of the parks and recreation department by the established deadlines.

(c) *Use charges.* Charges for use of recreations facilities shall be as follows:

(1) *City-sponsored activities.* There shall be no charge to all city-sponsored activities, including city-recreation-sponsored programs, for use of the following recreational facilities: play area; picnic area; camping area; community building; track meet (three-hour limit); softball field (two-hour limit); baseball field (three-hour limit); football/soccer field (four-hour limit).

(2) *Schedule of use charges; generally.* The city manager shall establish the schedule of recreational facility use charges by March 27, 1997. Thereafter, the city manager shall review and revise the schedule of use charges, annually, prior to the first day of September, and such use charges, if revised, shall become effective the first day of October. In reviewing the existing schedule of use charges to determine whether or not to revise and adjust the same, the city manager shall take into consideration any one, or all of the following: (i) operating expenses; (ii) city financial needs; (iii) market conditions; (iv) purpose and type of event(s) or

program(s) conducted at the recreational facility, including benefits to the community; (v) estimated revenues to be generated; (vi) and/or other factors deemed appropriate by the city manager. At any time, if the city manager determines that the then current schedule of charges does not properly address a particular type of usage, the city manager shall be authorized to negotiate the recreational facility use charge, in the case of a specific event or use, or establish a use charge in the case of a type of event or use which is likely to reoccur.

(d) *Rules and regulations.* The parks and recreation department director shall establish the rules, regulations and procedures (including cancellation fees, deposits, etc.) for the usage of recreational facilities in city parks, subject to review and approval of the city manager and the city attorney. Recreational facility usage applications, permits and contracts shall be subject to review and approval of the city manager and the city attorney. All users shall be required to provide the necessary insurance, indemnification, etc., as required by the city's risk management division or its successor.

(e) *Personnel costs.* Any additional personnel costs deemed necessary by the parks and recreation department shall be added to the facility rental fee.

(f) *Fee reductions.* The city manager may establish a fee reduction program to encourage more participation in the city-sponsored summer, holiday, and spring recreation camps.
(Code 1967, § 39-1; Ord. No. 9031, § 1, 12-5-79; Code 1980, § 30-1; Ord. No. 11447, § 2, 2-27-97)

Sec. 38-12. Use of showmobiles, bleachers and public address system.

(a) Written application for the use of the desired equipment on a specific date shall be submitted to the office of the director of parks and recreation department by established deadlines.

(b) Showmobiles, bleachers and public address system:

(1) No charge for city-sponsored activities.

(2) Rental fee rates for city residents/organizations:

a. *Hourly rate (based on minimum rental period of four hours).* Included in these hourly rates is the basic setup of from one to 24 chairs one podium:

Showmobile	$ 20.00
Bleachers	20.00
Public address system, per event.	25.00

b. *Direct costs (labor).* Direct costs will be determined as follows: Monday through Friday (8:00 a.m. through 4:00 p.m.), no charge; evenings, weekends and holidays, the appropriate special event hourly rate.

(3) Rental fee rates for non-city residents/organizations:

a. *Hourly rate:* Same as for city residents/organizations, plus 25 percent.

b. *Direct costs:* Same as for city residents/organizations.

(4) A surcharge shall be assessed, in addition to the above-described fees, for showmobile bookings outside the city's corporate limits:

a.	Showmobile	$ 20.00
b.	Bleachers	200.00

All charges are exclusive of the appropriate tax and do not include, if required by the parks and recreation department, the cost of such additional recreational personnel as may be designated by the director of said department.

(5) The city manager shall annually review and adjust the schedule of rental fees for showmobile, bleachers, and public address system, established herein, prior to the first day of September, and if adjusted, such adjusted fees shall be effective the

first day of October. In reviewing the existing schedule of rental fees to determine whether or not to revise and adjust the same, the city manager shall take into consideration any one, or all of the following criteria: (i) city financial needs; (ii) operating expenses; (iii) market conditions; (iv) purpose and type of event(s) or program(s) conducted at the recreational facilities, including benefits to the community; (v) estimated revenues to be generated; (vi) and/or other factors deemed appropriate by the city manager.

(Code 1967, § 39-2; Ord. No. 9032, § 1, 12-5-79; Ord. No. 9054, § 1, 1-10-80; Ord. No. 10662, § 2, 10-26-89; Code 1980, § 30-2; Ord. No. 11411, § 2, 11-21-96; Ord. No. 11447, § 2, 2-27-97)

Editor's note—Ord. No. 11447, § 2, adopted February 27, 1997, changed the title of section 30-12 from "Use of community buildings, showmobiles, bleachers and public address system, etc." to "Use of showmobiles, bleachers and public address system." The historical notation has been preserved for reference purposes.

City Code cross reference—Police, ch. 42.

Sec. 38-13. Reserved.

Note—See editor's note at section 38-14.

Sec. 38-14. Disorderly conduct in parks prohibited.

(a) *Definitions.*

City park(s) means any park or other recreational area owned or operated by the City of Miami, Florida.

Disorderly conduct means any act, conduct, or behavior that directly tends to or does cause public danger, alarm, disorder, nuisance, a disturbance of the peace, or interferes with the public's use and enjoyment of a city park, and by such act, conduct, or behavior the perpetrator knowingly:

(1) Creates a disturbance of the public order by an act of violence or by an act which directly tends to or does produce violence, or makes, aids, assists in making an improper noise, riot, disturbance, breach of the peace or diversion which directly tends to or does create a breach of the peace;

(2) Engages in fighting or in violent, threatening or tumultuous behavior, or aids, incites, or abets any fight, quarrel, or other disturbance;

(3) Engages in intentional or reckless conduct in such a manner as to cause another person to be in reasonable fear that a person or property in a person's immediate possession is likely to be harmed or taken;

(4) Directs abusive or offensive language or gestures at another person, including law enforcement officers while acting in their official capacity, in a manner likely to provoke immediate physical retaliation or violence by that person or another person;

(5) Engages in disruptive conduct, including, but not limited to, loud and aggressive behavior, physical altercations, or persistent and excessive shouting, with the intent and effect of impeding or disrupting the lawful use of a city park by one or more other persons; or

(6) Intentionally or recklessly damaging or destroying public or private property.

(b) *Prohibition.* It shall be unlawful for any person to commit an act of disorderly conduct in the city parks.

(c) *Penalties.* Any person found to have violated this section shall be punished in accordance with section 1-13 of the City Code.

(d) *Enforcement.* This section shall be enforced pursuant to section 1-13 of the City Code, or any other enforcement mechanism as provided by law.

(Ord. No. 14181, § 2, 6-8-23)

Editor's note—Ord. No. 11447, § 3, adopted February 27, 1997, repealed the former sections 38-13 and 38-14 in their entirety, which pertained to charges for use of designated tennis facilities, and swimming pools; supervision, respectively, and derived from the Code of 1967, §§ 39-3—39-5; Ord. No. 8717, § 1, adopted October 26, 1977; Ord. No. 8847, § 1, adopted September 14, 1978; the Code of 1980, §§ 30-3—30-5.

Sec. 38-15. Specialized instruction and programs.

(a) *Fee formula.* The following formula for determining fees for specialized instruction and programs of the recreation department is hereby established:

$$C_p = \frac{P+S+Rx1.20}{N}$$

Where:

C = Cost per participant for said specialized instruction or program

P = Salary (exclusive of fringes) cost to conduct instruction or program

S = Supplies and materials necessary to conduct instruction or program, i.e., books, paper, crafts, equipment, etc.

R = Rental cost of facility if it has to be especially opened for specialized instruction or programs

N = Number of participants

1.20 = Represents a 20 percent charge for overhead

For a proposed specialized arts and crafts instruction for two hours a week for ten weeks, or a total of 20 hours' instruction, taught by a specialist costing $5.00 per hour; requiring craft materials costing $60.00; incurring no rental costs; and with 20 participants, the cost (exclusive of applicable taxes) would be:

$$C_p = \frac{\$100 + \$60 + \$0}{20} = \frac{\$160}{20} = \$8 \times 1.20 = \$9.60$$

(b) *Reserved.*

(Code 1967, § 39-1; Ord. No. 8899, § 1, 7-26-79; Ord. No. 9030, § 1, 12-5-79; Code 1980, § 30-6; Ord. No. 11447, § 4, 2-27-97)

Sec. 38-16. Reserved.

Editor's note—Ord. No. 11447, § 3, adopted February 27, 1997, repealed the former section 38-16 in its entirety, which pertained to the park club annual registration fee, and derived from Ord. No. 9270, § 1, adopted May 28, 1981, and the Code of 1980, § 30-7.

Sec. 38-17. Throwing or depositing substances, etc., within stadiums, parks and adjacent grounds.

It shall be unlawful for any person to throw, drop or deposit any substance or tangible thing or matter within or upon any municipal stadium or park or grounds adjacent thereto and composing a part thereof so as to soil or damage any property or endanger, injure or harm any person within such area.

(Code 1967, § 39-16; Code 1980, § 37-64)

State law reference—Florida litter law, F.S. § 403.413.

Sec. 38-18. Naming of facilities at Hadley Park.

(a) The youth center located at Hadley Park shall be named the "Samuel K. Johnson Youth Center."

(b) The swimming pool complex at Hadley Park shall be known as The Miller J. and Nancy S. Dawkins Olympic Swimming Pool Complex.

(c) The football field located at Hadley Park shall be named the "Luther Campbell Football Field."

(Ord. No. 13575, § 2, 11-19-15; Ord. No. 13576, § 1, 11-19-15; Ord. No. 13964, § 1, 2-11-21)

Sec. 38-19. Naming of facilities on Virginia Key.

The walking trail at Virginia Key North Point Park shall be known as the "Mabel Fentress Miller Walking Trail."

(Ord. No. 13584, § 2, 1-14-16)

Sec. 38-20. Naming of Maurice A. Ferré Park.

The park located at 1095 Biscayne Boulevard, Miami, Florida shall be named the "Maurice A. Ferré Park."

(Ord. No. 13813, § 2, 12-13-18)

Sec. 38-21. Naming of facilities at Moore Park.

The track and field at Moore Park shall be known as Jesse L. Holt, Jr. Track and Field Complex.

(Ord. No. 13812, § 2, 12-13-18)

Sec. 38-22. Naming of Swannanoa Mini Park.

The park located at 1301 Southwest 21st Avenue, Miami, Florida, shall be named the "Swannanoa Mini Park."

(Ord. No. 13820, § 2, 1-10-19)

Sec. 38-23. Naming of South Shenandoah Mini Park.

The park located at 1197 Southwest 19th Avenue, Miami, Florida, shall be named the "South Shenandoah Mini Park."
(Ord. No. 13819, § 2, 1-10-19)

Sec. 38-24. Naming of Charlie DeLucca Park.

The park located at 455 Northwest 47 Avenue, Miami, Florida, formerly known as Kinloch Park, shall be named "Charlie DeLucca Park".
(Ord. No. 13882, § 2, 12-12-19)

Sec. 38-25. Naming of Gold Star Family Memorial Mini Park.

The park located at 2300 Southwest 22nd Terrace, Miami, Florida shall be named "Gold Star Family Memorial Mini Park."
(Ord. No. 13920, § 2, 9-24-20)

Sec. 38-26. Naming of Officer Manuel Gomez Mounted Patrol Facility at Lummus Park.

The facility located at 360 Northwest 3rd Street, Miami, Florida shall be named the "Officer Manuel Gomez Mounted Facility."
(Ord. No. 14164, § 2, 4-27-23)

Sec. 38-27. Naming of José Milton Park at the E. Albert Pallot Green Space.

The park located at 3805 Northeast 6 Avenue, Miami, Florida shall be named the "José Milton Park at the E. Albert Pallot Green Space."
(Ord. No. 13994, § 2, 5-13-21)

Sec. 38-28. Naming of General José Francisco Morazán Quesada Park.

The park located at 342 Southwest 7 Avenue, Miami, Florida shall be named the "General José Francisco Morazán Quesada Park."
(Ord. No. 14021, § 2, 9-23-21)

Sec. 38-29. Naming of Manolo Reyes Park.

The parcel of land consisting of approximately seven acres located at 6030 Southwest 2 Street, Miami, Florida shall be named the "Manolo Reyes Park."
(Ord. No. 14364, § 2, 4-24-25)

Editor's note—Prior to the reenactment of section 38-29 by Ord. No. 14364, § 2, adopted April 24, 2025, Ord. No. 14359, § 3, adopted March 13, 2025, repealed the former section 38-29 in its entirety, which pertained to the naming of Rubén Darío Park, and derived from Ord. No. 14028, § 2, adopted October 14, 2021. For current provisions pertaining to Rubén Darío Park, the user's attention is directed to section 38-38.

Sec. 38-30. Naming of Fisherman's Park.

The parcel of land consisting of approximately 8,219 square feet located at 1 Southwest South River Drive, Miami, Florida shall be named "Fisherman's Park."
(Ord. No. 14033, § 2, 11-18-21; Ord. No. 14445, § 2, 2-26-26)

Editor's note—Ord. No. 14445, § 2, adopted Feb. 26, 2026, amended § 38-30 and in doing so change the title of said section from "Naming of Simón Bolívar Park" to "Naming of Fisherman's Park," as set out herein.

Sec. 38-31. Naming of Ronald W. Reagan Park.

The parcel of land consisting of approximately 261,360 square feet located at 2304 Northwest 14th Street, Miami, Florida shall be named the "Ronald W. Reagan Park."
(Ord. No. 14075, § 2, 6-23-22)

Sec. 38-32. Naming of Thelma Gibson Heritage Garden.

The parcel of land consisting of approximately 20,037 square feet located at 3275 Margaret Street, Miami, Florida, shall be named the "Thelma Gibson Heritage Garden."
(Ord. No. 14076, § 2, 7-28-22)

Sec. 38-33. Naming of Jorge Mas Canosa Park.

The land consisting of approximately 58 acres of land contained within properties located at 1400, 1500, 1550, 1600, 1800, and 1822 Northwest 37 Avenue, Miami, Florida, as more particularly

described in Exhibit "A," attached to Ord. No. 14112 and incorporated, shall be named the "Jorge Mas Canosa Park." The boundaries of the park may be subject to change based on the city's needs.
(Ord. No. 14112, § 2, 10-13-22)

Sec. 38-34. Naming of Tibor & Sheila Hollo Park.

The parcel of land consisting of approximately 35,500 square feet located at 1814 Brickell Avenue, Miami, Florida shall be named the "Tibor & Sheila Hollo Park."
(Ord. No. 14129, § 2, 1-12-23)

Sec. 38-35. Naming of Children's Park.

The parcels of land consisting of approximately 16,222 square feet located at 1320 Southwest 12 Avenue, 1330 Southwest 12 Avenue, and 1211 Southwest 14 Street, and other contiguous parcels that may be added in the future shall be named "Children's Park."
(Ord. No. 14353, § 2, 2-13-25)

Sec. 38-36. Naming of Woodside Park.

The parcels of land consisting of approximately 37,500 square feet located at 3701 Southwest 1st Avenue, 3699 Southwest 1st Avenue, and 3691, 3693, and 3695 Southwest 1 Avenue, Miami, Florida, and other contiguous parcels that may be added in the future shall be named "Woodside Park".
(Ord. No. 14220, § 2, 10-26-23)

Sec. 38-37. Naming of East Shenandoah Park.

The parcel of land consisting of approximately 7,692 square feet located at 1320 Southwest 21 Street, Miami, Florida, and other contiguous parcels that may be added in the future shall be named "East Shenandoah Park."
(Ord. No. 14289, § 2, 6-18-24)

Sec. 38-38. Naming of Rubén Darío Park.

The parcel of land consisting of approximately 155,700 square feet located at 971 Northwest 2 Street, Miami, Florida shall be named "Rubén Darío Park."
(Ord. No. 14359, § 2, 3-13-25)

Sec. 38-39. Naming of Rebeca Sosa Park.

The parcel of land consisting of approximately 40,749 square feet located at 7121 Southwest 3rd Street, Miami, Florida shall be named "Rebeca Sosa Park."
(Ord. No. 14405, § 2, 10-23-25)

Sec. 38-40. Naming of Superhero Park.

The assemblage of land consisting of approximately 14,200 square feet located at 235 Northwest 26 Avenue, Miami, Florida shall be named "Superhero Park."
(Ord. No. 14438, § 2, 1-22-26)

Sec. 38-41. Naming of facilities at Elizabeth Virrick Park.

The aquatic facility located at Elizabeth Virrick Park shall be named the "Verneka Sturrup Silva Aquatic Facility."
(Ord. No. 14448, § 2, 3-12-26)

Secs. 38-42—38-45. Reserved.

ARTICLE II. USE REGULATIONS

Sec. 38-46. Purpose.

The rules and regulations established by this article are not to hamper and restrict citizens and guests, but are adopted so as to allow citizens and guests maximum use and enjoyment of the facilities without annoyance and discomfort by others.
(Code 1967, § 39-38; Code 1980, § 38-26)

Sec. 38-47. Applicability.

The rules and regulations established by this article apply to all park areas which have been assigned to the department of parks and

recreation. State laws, county ordinances and city ordinances also apply to the city's parks and are in addition to these rules and regulations.
(Code 1967, § 39-39; Ord. No. 10125, § 6, 7-10-86; Code 1980, § 38-27)

Sec. 38-48. Enforcement.

The rules and regulations established by this article will be enforced by the department of parks and recreation personnel of the city and the city police department.
(Code 1967, § 39-40; Ord. No. 10125, § 6, 7-10-86; Code 1980, § 38-28)

Sec. 38-49. Dangerous and hazardous activities.

No activity which is likely to result in injury or loss of life is permitted. The various sports and activities are to be played in the locations provided for them and in open areas when such sport or activity will not create a hazard to others.
(Code 1967, § 39-41; Code 1980, § 38-29)

Sec. 38-50. Cars, trucks, buses or similar vehicles.

Cars, trucks, buses or similar vehicles are allowed only in those parks where roadways are provided. Vehicles must stay on paved roadways and park only in areas provided and designated for vehicle parking. City vehicles, when engaged in official business which necessitates the vehicle being in the park, are excepted from this section.
(Code 1967, § 39-42; Code 1980, § 38-30)

Sec. 38-51. Bicycles, tricycles, motorbikes, scooters or similar vehicles.

(a) Bicycles and tricycles are restricted to designated bicycle paths but may be ridden in other areas upon approval of the department of parks and recreation.

(b) Motorcycles, motorbikes, scooters or similar motorized vehicles are restricted to the paved roadways for cars, trucks and buses.

(c) When the motors of vehicles in subsection (b) above are not operating, such vehicles, as well as bicycles and tricycles, may be walked in grassy areas and along pedestrian walkways and may be parked any place where they will not inconvenience others.
(Code 1967, § 39-43; Ord. No. 10125, § 6, 7-10-86; Code 1980, § 38-31)

Sec. 38-52. Damaging, removing, etc., park property; climbing trees.

All property in park areas belongs to the citizens. No property, animate or inanimate, shall be damaged, destroyed or removed from the park or moved from the location where it is installed or planted. No holes shall be dug and no structures, either temporary or permanent, shall be erected unless authorized by the city manager or his/her designated representative. No climbing of trees is permitted within park limits.
(Code 1967, § 39-44; Code 1980, § 38-32; Ord. No. 13676, § 2, 4-27-17)

Sec. 38-53. Fires.

No fires are permitted in the parks, except in the grills provided. Charcoal is the only fuel permitted for use in the grills, and use of any other fuel is prohibited. Special rules for fires at the Robert King High Park group camping facility are listed on the permit to use that facility.
(Code 1967, § 39-45; Code 1980, § 38-33)

Sec. 38-54. Use of facilities generally.

(a) It is intended that all facilities be on a first come, first served basis. It is also intended that no group or organization be permitted to monopolize any area or facilities to the exclusion of all others. Whenever the situation warrants, use of a facility will be regulated by use of permits. Terms and forms of permits will be formulated and regulated by the director of the department of parks and recreation to obtain the results intended as expressed above. Those activities which require permits are listed in section 38-74.

(b) In general, the facilities and equipment are to be used for the purposes for which they were designed: benches to sit on, picnic tables to eat on, tennis courts to play tennis on, etc.

(c) Use of facilities and equipment for purposes other than for which they were designed is prohibited.
(Code 1967, § 39-46; Ord. No. 10125, § 1, 7-10-86; Code 1980, § 38-34)

Sec. 38-55. Reserved.

Editor's note—Ord. No. 13293, § 2, adopted November 17, 2011, repealed the former section 38-55 in its entirety, which pertained to firearms, explosives or air-powered weapons and derived from the Code of 1967, § 39-47, and the Code of 1980, § 38-35.

Sec. 38-56. Hunting or molesting wildlife.

No person shall molest, hunt, kill or frighten any wildlife creature in any manner whatsoever.
(Code 1967, § 39-48; Code 1980, § 38-36)

Sec. 38-57. Domestic animals in parks.

Subject to the following exceptions, no person having the control or care of a domestic animal shall cause or permit such animal to enter or remain in a public park. Any person violating this section shall be fined for each such violation, as follows:

(1)	First offense	$ 50.00
(2)	Second offense	250.00
(3)	Third and subsequent offense.....	500.00

This subsection shall be enforceable pursuant to section 38-48 as well as chapter 2, article X of the City Code.

The above prohibition shall not apply to a dog if:

(1) The dog is only allowed within such areas as have been designated or approved by the department of parks and recreation; or

(2) The dog is kept securely fastened to a leash strong enough to prevent its running free of the leash.

(Code 1967, § 39-49; Ord. No. 10125, § 6, 7-10-86; Code 1980, § 38-37; Ord. No. 14137, § 2, 1-26-23)

Sec. 38-58. Fishing.

Fishing is permitted only in designated areas of park waters.
(Code 1967, § 39-50; Code 1980, § 38-38)

Sec. 38-59. Swimming.

City pools are open seven days each week for recreational swimming. No swimming is permitted in any other water in or immediately adjacent to any park area.
(Code 1967, § 39-51; Code 1980, § 38-39)

Sec. 38-60. Boating, vessels, and other watercraft.

(a) Boats may be launched only where ramps have been provided. Anchoring, mooring, or docking of boats on any city park's property shoreline, other than at established ramps, is prohibited.

(b) Exclusion/safety zone and no wake zone for Virginia Key, Atlantic Beach Area and Historic Virginia Key Beach Park area Northeast of Bear Cut.

The buoy line for the exclusion/safety zone off the waters of city-owned Property of Virginia Key, Atlantic beach area and Historic Virginia Key Beach Park, Northeast of Bear Cut is hereby established as set forth in the legal description and the attendant sketch of the legal description attached hereto as "Composite Exhibit A", incorporated hereby, and made a part hereof, and such exclusion/safety zone is also designated a "no wake zone".

(c) Operation of vessels, boats, and other watercraft in marked swimming area, bathing areas, or exclusion/safety zone of Virginia Key Atlantic beach area Northeast of Bear Cut.

(1) No person shall operate any motorized vessel, motorized boat, or other motorized watercraft within a swimming area, bathing area, or exclusion/safety area within the Virginia Key Atlantic beach area Northeast of Bear Cut which has been clearly marked by duly authorized buoys or other alternative permitted regulatory markers. Hand-propelled or foot-propelled vessels without motors and other hand-propelled or foot-propelled

watercraft without motors, such as canoes, kayaks, surf boards, sail boards, kite boards, and wind-surfing boards, are permitted to be operated in a safe manner within such designated swimming area, bathing area or exclusion/safety zone within the Virginia Key Atlantic beach area Northeast of Bear Cut.

(2) The provisions of this section shall not apply to film productions that specifically request a waiver from the city manager on their film permit applications as long as such film productions:

a. Take adequate safety precautions;

b. Specify in their waiver requests such precautions to be taken; and (

c. Indemnify the city and its officers, directors, and employees for such waiver.

(3) The provisions of this section shall not apply to a "special event" (as defined in section 38-74 and section 54-1) for which a special events permit is obtained from the director of the parks and recreation department.

(d) Speed of vessels, boats and other watercraft off Virginia Key Atlantic beach area Northeast of Bear Cut.

(1) No person shall operate any vessel, boat or other watercraft off the waters of Virginia Key Atlantic beach area Northeast of Bear Cut at a speed greater than five miles per hour within 100 feet of any person in the water.

(2) No person operating a vessel, boat or other watercraft off any part of Virginia Key Atlantic beach area Northeast of Bear Cut shall engage in a race or contest of speed with another boat, vessel, or other watercraft at any time.

(3) The provisions of this section shall not apply to races or regattas when the city commission has given permission for such races or regattas to be held.

(4) The provisions of this section shall not apply to film productions that specifically request a waiver from the city manager on their film permit applications as long as such film productions:

a. Take adequate safety precautions;

b. Specify in their waiver requests such precautions to be taken; and

c. Indemnify the city and its officers, directors, and employees for such waiver.

(5) The provisions of this section shall not apply to a "special event" (as defined in section 38-74 and section 54-1) for which a special events permit is obtained from the director of the parks and recreation department.

State law reference—Reckless or careless operation of vessels, F.S. § 327.33.

(e) Careless operation of vessel, boat or other watercraft. Every person operating or navigating any vessel, boat or other watercraft in, on or under the waters off Virginia Key Atlantic beach Northeast of Bear Cut shall do so in a careful

and prudent manner, taking into consideration the weather conditions and range of visibility, water turbulence, current, closeness to swimmers, bathers, water skiers and other boats, vessels and watercraft, and all other attendant circumstances so as not to endanger the life, limb or property of any person. Failure to operate a vessel, boat or other watercraft in such a careful and prudent manner shall constitute careless boating and a violation of this section.

State law references—Similar provisions, F.S. § 327.33; operating a vessel under the influence of drugs or alcohol, F.S. § 327.35 et seq.

(f) Operation or use of towed flying devices, towed sailing devices or towed parachutes near beaches.

(1) It shall be unlawful for any person to tow or manipulate any person attached to any towed flying device, towed sailing device or towed parachute through or over an area within 500 feet either side of the water's edge of Virginia Key Atlantic beach area Northeast of Bear Cut below an altitude of 500 feet above the surface of the water.

(2) It shall be unlawful for any person to operate, engage in, be a passenger in or control any towed flying device, towed sailing device, or towed parachute carrying a person through or over an area within 500 feet each side of the water's edge of Virginia Key Atlantic beach area Northeast of Bear Cut below an altitude of 500 feet above the surface of the water.

(3) The provisions of this section shall not apply to film productions that specifically request a waiver from the city manager on their film permit applications as long as such film productions:

a. Take adequate safety precautions;

b. Specify in their waiver requests such precautions to be taken; and

c. Indemnify the city and its officers, directors, and employees for such waiver.

(4) The provisions of this section shall not apply to a "special event" (as defined in section 38-74 and section 54-1) for which a special events permit is obtained from the director of the parks and recreation department.

(Ord. No. 13004, § 3, 6-12-08)

Editor's note—Ord. No. 13004, § 3, adopted June 12, 2008, amended § 38-60 in its entirety to read as herein set out. Formerly, § 38-60 pertained to boating, and derived from the Code of 1967, § 39-52, and the Code of 1980, § 38-40.

Sec. 38-61. Picnicking.

Picnicking without fires may be done in any area where it will not interfere with other recreational activities. Fires are only permitted in park grills, and charcoal is the only fuel permitted. The grills and picnic facilities are for family and group picnics. Use of these facilities as a "fire kitchen," "soup line," restaurant or similar activity is expressly prohibited.

(Code 1967, § 39-53; Code 1980, § 38-41)

Sec. 38-62. Water fountains.

Fountains are provided to provide drinking water. Use of water fountains for bathing, washing or cleaning cooking utensils is prohibited.

(Code 1967, § 39-54; Code 1980, § 38-42)

Sec. 38-63. Disposal of trash.

Trash is to be deposited in trash containers. Nothing herein, including penalties for violation, shall be construed to be in conflict with the provisions of F.S. § 403.413, as may be amended or revised from time to time, pertaining to the Florida Litter Law.

(Code 1967, § 39-55; Code 1980, § 38-43; Ord. No. 11815, § 2, 7-13-99)

Sec. 38-64. Card games, bingo, raffles and similar activities.

No person or organization shall conduct raffles, bingo games, card games for money or drawings for prizes, or participate in any other form of gambling within park limits, whether they are for charity or otherwise.

(Code 1967, § 39-56; Code 1980, § 38-44)

Sec. 38-65. Peddling, vending and merchandising.

(a) *Prohibitions:* No person, organization or firm, other than the parks and recreation department, or duly authorized concessionaires, shall expose or offer for sale, rent, or trade, any article or service, or station or place any stand, cart or vehicle for the transportation, sale or display of any merchandise, within the limits of any park.

(b) *Grant of concession privilege:*

(1) The city may authorize concessions in city parks by means of contractual agreement(s) or concession permit(s). Wherever practicable, and unless otherwise provided herein, concession privileges shall be granted by the city manager to particular vendors on the basis of a request for proposals, competitive bid or other competitive method.

(2) Contractual agreements shall be executed to affect day-to-day, weekly, and/or other concession privileges of a regular, ongoing or continuous nature to private, for-profit, and/or commercial operators. Permits shall be issued to affect concession privileges for either programs of nonprofit organizations, under the conditions prescribed herein, or for special events. "Nonprofit concession permits" may be issued for a maximum term of one year by the parks and recreation department director or designee for such privileges granted to qualified nonprofit organizations only in connection with regular ongoing weekly programs operated in city parks by said organizations for youth, elderly or disabled persons. "Special event concession permits" may be issued by the director or his/her designee for such privileges granted only in connection with special events, activities and/or programs of limited duration, not to exceed ten days' total operation. The form of all permits shall have the prior review and approval of the city attorney.

(3) Nonprofit concession privileges shall be of a limited and nonexclusive nature. Said privileges may be granted by permit issued by the director to such nonprofit organizations as are deemed qualified and which provide and operate ongoing weekly programs in city parks, pursuant to the promulgated rules and procedures for same. Said privileges are to be granted for the sole purpose of affording said nonprofit organizations a means of raising funds for eligible programs. Eligible programs shall be identified as and limited to those which principally serve youth, elderly and/or disabled persons as program participants.

(4) Special event concession permits may be issued directly to vendors authorized to operate in a park in connection with said event, or may be issued to the sponsor(s) or organizer(s) of a given event or activity, who may in turn subcontract to licensed vendors. Where subconcessionaires are allowed, the city's rights and responsibilities shall remain in full force and effect.

(c) *Limitations to concession privilege:*

(1) Concessionaires and/or subconcessionaires shall be properly licensed and shall comply with all applicable laws, ordinances, regulations, and/or administrative directives governing their specific operations, sales, rentals and/or trades. No privilege granted pursuant to the authority of this section shall infringe upon the rights or privileges of existing authorized concessionaires, if any.

(2) The director of the parks and recreation department or designated selection committee shall have the authority to review all list(s) of items for sale, rent and/or trade and to deny concession privileges for any item(s) deemed inappropriate for a city park.

(3) No event sponsor or organizer shall be issued more than three special event concession permits in a calendar year. Nonprofit concession permits may be issued for a maximum term of one year

and shall be subject to annual review and reissuance by the parks and recreation department director.

(4) The parks and recreation department director shall establish the rules, regulations and procedures for special event and nonprofit concession permits, subject to the review and approval of the city manager and city attorney, at least on an annual basis. All concessionaires shall be required to indemnify and hold harmless the city, its agents, officers and employees, and to provide and maintain liability insurance in a form and in amounts acceptable to the city's risk management division or its successor.

(d) *Fees and compensation:* Concession fees and compensation shall not be the subject of waiver by the city commission or the city manager or designee thereof. Concessionaire(s) shall remit to the city a given fee and/or percentage of revenue accrued as a result of the privilege granted. The amount of the fee or percentage shall be as established as a result of the request for proposal, bid or competitive process, if such process is required, or for special events and nonprofit concession permits, by the current schedule of concession fees and compensation which shall be established by the city manager by January 1, 1997. Thereafter, the city manager shall annually revise and adjust such schedule of concession fees and compensation prior to the first day of September, and such revised schedule shall become effective the first day of October. In reviewing the existing schedule of concession fees and compensation to determine whether or not to revise and adjust the same, the city manager shall take into consideration any one, or all of the following criteria: (i) city financial needs; (ii) operating expenses; (iii) market conditions; (iv) purpose and type of event(s) or program(s) conducted in connection with the concession, including benefits to the community; (v) estimated revenues to be generated; (vi) and/or other factors deemed appropriate by the city manager. At any time, if the city manager determines that the current schedule of concession fees and compensation does not properly address a particular type of special event or social function, the city manager shall be authorized to negotiate the concession fee and compensation, in the case of specific event or function, or establish a concession fee and compensation, in the case of a type of event or function which is likely to reoccur.

(Code 1967, § 39-57; Ord. No. 10123, § 1, 7-10-86; Ord. No. 11196, § 2, 10-27-94; Code 1980, § 38-45; Ord. No. 11411, § 2, 11-21-96; Ord. No. 13676, § 2, 4-27-17)

Sec. 38-66. Advertising and signs.

No signs or advertising shall be posted within park limits other than those erected by the parks and recreation department, except signs authorized or required by the city, or by the laws of the United States, the state, or the city, or as approved by the city commission. Prior to city commission consideration of a request to post a sign or advertisement within park limits, the request shall be presented to the parks and recreation advisory board for its consideration. Bulletin boards are exclusively for official park business. Items not related to the park or recreational programs shall not be placed on the bulletin boards.

(Code 1967, § 39-58; Ord. No. 10125, § 6, 7-10-86; Code 1980, § 38-46; Ord. No. 13005, § 2, 6-12-08)

Sec. 38-67. Naming rights.

(a) The naming rights policy contained in this section is established to provide guidance in approving naming rights for city-owned facilities in parks within the city.

(b) Definitions relevant to this section:

City property shall mean a city-owned or controlled public facility such as buildings or features such as a pool, meeting space, gymnasium or the like.

Honorary naming rights shall mean the naming of city property to honor the service, commitment, or other type of participation by an individual, or civic or charitable group.

Naming rights shall mean a mutually beneficial business arrangement between the city and an external entity (individual, for-profit, or not-for-

profit organization), where the external entity provides goods, services, or financial support to the city in return for the public display of the external entity's name on city property.

(c) A naming rights plan shall be established to review a process, either by a standing committee (the composition shall be identified in the plan) or by department employee(s), and shall be approved by the city manager before implementation of the plan, and specific grants of naming rights under the terms of this section shall be accomplished by naming rights resolution of city commission made in consideration of the review committee's recommendations.

(d) The review committee established in the plan shall consider compliance with an established naming rights policy; whether the donation is from a potentially controversial source (e.g. tobacco, alcohol, etc.); appropriate signage; compliance with the required approval process for accepting donations; whether a donor contract is appropriate, and if so, the terms of the contract; citizen input; and any other relevant factors.

(e) The director of parks shall solicit a "request for sponsorship (RFS)" using an open and competitive process for third parties to express their interest in participating in naming rights opportunities with the city. Requests for sponsorship should include a summary of the sponsorship opportunity, the facility to be named, benefits for participation, and a description of the open and competitive procedure for expressing interest in participating in sponsorship opportunities. The parks advisory board shall review said RFSs and make a recommendation to the city commission.

(f) A "naming rights agreement" which shall be a contract evidencing the right to name or re-name city-owned facilities, shall be entered into which contains terms acceptable to the city and approved by the city commission.

(g) Indemnification and termination clauses are required as part of the agreement. All such agreements are to be reviewed by the city attorney prior to finalization. Dates indicating the term of the agreement should be indicated but shall be for five-year increments with an option to continue for an additional five years at the discretion of the city.

(h) (1) In general, the following industries and products are not eligible for sponsorships with the city: police-regulated businesses; faith-based and political organizations; companies whose business is substantially derived from the sale of alcohol, tobacco, firearms or adult use. Applications by sponsors that fall into one of the above-stated categories shall be subject to review and approval by the city.

(2) The city shall reject sponsorship that does not comply with the standards set forth in this policy. All full advertising graphic designs must be submitted in sufficient detail to determine content, size, and final general appearance.

(3) Solicitation and negotiation of sponsorships will be conducted by the directors of parks and purchasing, who shall be responsible for ensuring that staff understand the requirements of this policy and that they are provided with appropriate guidance and training related to sponsorship practices.

(4) All funds generated by naming rights agreements shall be allocated to programs in parks where the facilities are located. No reduction in budgetary funding levels shall occur because of revenues generated by naming rights agreements.

(5) Naming rights agreements shall not be solicited for any city property that the city commission has determined to be appropriate for honorary naming rights.

(Ord. No. 12986, § 2, 4-10-08)

Sec. 38-68. Restrooms.

No person shall loiter in or around any restroom facility. Children over five years of age shall not go into restrooms designated for the opposite sex.

(Code 1967, § 39-60; Code 1980, § 38-48)

Sec. 38-69. Alcoholic beverages; intoxicated persons.

(a) Possession or consumption of alcoholic beverages within park limits of any public park is prohibited except as follows:

(1) Alcoholic beverages may be sold and consumed at Fort Dallas Park, Bicentennial Park, the FEC Property, Jose Marti Park, Maximo Gomez "Domino" Park, Bayfront Park, Allen Morris Brickell Park, and the 32,090 square foot platted parcel containing restaurant facilities at Peacock Park as follows:

a. On a regular basis within city restaurant facilities by properly licensed operators therein during hours allowed by this Code and in accordance with all ordinances and state laws presently applicable and which may be applicable in the future.

b. In connection with special events and programs, by individuals or groups that have been issued a wine/beer permit in accordance with section 38-70 of this Code, or by individuals or groups that have been issued a separate permit for full beverage service by the city manager or designee, upon the recommendation of director and upon the approval of the city commission. Said permits shall be issued in accordance with all laws presently applicable and which may be applicable in the future.

c. Notwithstanding any provision in the city code of the City of Miami, Florida, to the contrary, alcoholic beverages may be sold, dispensed, possessed or consumed on a regular basis on the FEC Property, legally described in Exhibit A attached hereto and by this reference made a part hereof and located in the city clerk's office, Miami, Florida.

(2) No alcoholic beverages may be brought into the aforesaid parks by anyone except licensed operators of city restaurant facilities therein, or their designated representatives, or individuals or groups that have been issued authorized permits in connection with special events and programs.

(b) Intoxicated persons will not be permitted on park property, or if found thereon, shall be ejected forthwith.

(Code 1967, § 39-61; Ord. No. 9573, § 1, 2-24-83; Ord. No. 10343, § 1, 11-19-87; Code 1980, § 38-49; Ord. No. 11563, § 2, 10-28-97; Ord. No. 11983, § 2, 10-26-00; Ord. No. 12024, § 2, 2-8-01; Ord. No. 13487, § 2, 10-23-14)

Sec. 38-70. Sale or dispensing of beer and/or wine for special events or programs in city parks.

(a) Notwithstanding any provision in the city Code of the City of Miami, Florida, to the contrary, the city manager or his/her designee, on special occasions and for special events or programs, may permit by special permit the dispensing of wine or beer in soft containers in any city park. Such special permit shall establish any special conditions which shall apply to said dispensing which shall be cumulative and in addition to all other conditions imposed by state and local laws and regulations.

(b) Notwithstanding any provision in the city Code of the City of Miami, Florida, to the contrary, the city manager or his/her designee, on special occasions and for special events or programs, is hereby authorized upon execution of the application/permit form as attached (note: the form is not set out in this Code), to permit the sale or dispensing of wine or beer in soft containers in the following city parks:

(1) Bayfront Park.

(2) Bicentennial Park.

(3) Jose Marti Park.

(4) Peacock/Myers Park.

(5) Watson Island Park.

(6) Virginia Key Park.

(c) Unless approved by the city commission, there shall be no permits issued in connection with any musical event or program of the type which historically requires extraordinary security measures, based upon prudent police protection (commonly referred to as "rock concerts").

(d) The city manager or his/her designee is further authorized to permit the dispensing of beer and wine in soft containers at no charge during social functions in Wainwright Park.

(e) The city manager or his/her designee is authorized to permit the sale or dispensing of wine or beer in soft containers in additional city parks, on special occasions and for special events or programs, upon execution of the application/permit form and upon the review, recommendation and written approval of the departments of police and parks and recreation. Unless approved by the commission, not more than three permits will be issued during the calendar year for any given park, with the exception of those specific sites listed in subsection (b).

(f) Such sales or dispensing of beer and wine are subject to compliance with all applicable state laws and the criteria set forth on the attached form (note: the form is not set out in this Code).

(g) The city manager shall establish fees for all permits to sell beer and wine in city parks by January 1, 1997. Thereafter, the city manager shall annually revise and adjust said fees, if necessary, prior to the first day of September, and such revised fees shall become effective the first day of October. In reviewing the existing schedule of fees to determine whether or not to revise and adjust the same, the city manager shall take into consideration any one, or all of the following criteria: (i) city financial needs; (ii) operating expenses; (iii) market conditions; (iv) purpose and type of event(s) or program(s) conducted at the city parks, including benefits to the community; (v) estimated revenues to be generated; (vi) and/or other factors deemed appropriate by the city manager. At any time, the city manager shall be authorized to negotiate the fee for all permits to sell beer and wine in city parks should it be determined that the current schedule of fees does not properly address a particular type of event. Said fee shall be paid for all permits obtained from the city commission or the city manager or his/her designee. The existing fee shall be utilized should a permit be issued before the effective date of this section. The permit fee shall not apply where beer and/or wine are dispensed at no charge for social functions in open areas of city parks.

(Ord. No. 9818, § 1, 4-5-84; Ord. No. 10085, §§ 1, 2, 3-18-86; Ord. No. 10162, § 1, 10-7-86; Ord. No. 10241, § 1, 3-13-87; Ord. No. 11045, § 2, 3-11-93; Code 1980, § 38-49.1; Ord. No. 11411, § 2, 11-21-96; Ord. No. 11563, § 2, 10-28-97)

City Code cross reference—Alcoholic beverages, ch. 4.

Sec. 38-71. Camping.

The city has no facility for trailers, campers and similar wheeled vehicles in any city park. Facilities for overnight camping in tents or on the ground are available for groups, such as scout troops, at Robert King High Park. A permit is required in order to use these facilities.

(Code 1967, § 39-62; Code 1980, § 38-50)

Sec. 38-72. Use of parks for movies, television or commercial photography.

All use of parks for movies, television or commercial photography will be by written permission only. Such permission will not normally be granted if the activities will interfere with normal park use and recreational programs.

(Code 1967, § 39-64; Code 1980, § 38-52)

City Code cross reference—Photography, ch. 41.

Sec. 38-73. Permits—Purpose; application.

Permits are required for certain activities so that park personnel can limit or eliminate activities which would tend to damage the park, or which are likely to create an atmosphere which would discourage use of the park for its intended purpose, or which, if not eliminated, would allow monopolizing of a park or some facilities in a park by one group to the exclusion of other groups or individuals. The application form shall be completed by the applicant and approved by appropriate city officials prior to issuance of any permit referred to by this article.

(Code 1967, § 39-65; Code 1980, § 38-53)

Sec. 38-74. Same—Activities for which a permit is required.

(a) Permits are required for the following activities:

(1) Use of group camping areas.

(2) Use of large (group-size) cooking grills.

(3) Use of community building.

(4) Use of baseball or softball diamond.

(5) Use of a football, soccer or cricket field.

(6) Concerts involving 50 for more persons and meeting the definition of "assembly" in section 54-1. An "assembly permit" defined in section 54-1, obtained under section 54-6.2, fully satisfies the requirement for a permit herein;

(7) Musical events or dances of 50 or more persons and meeting the definition of "assembly" in section 54-1. An "assembly permit" defined in section 54-1, obtained under section 54-6.2, fully satisfies the requirement for a permit herein;

(8) Parades or Assemblies as defined in section 54-1 of this Code of 50 or more persons. A "parade permit" or "assembly permit" defined in section 54-1, obtained under section 54-6 or section 54-6.2, fully satisfies the requirement for a permit herein;

(9) Any other activity, not sponsored by the city, substantially similar to those listed in paragraphs (a)(1) through (5) that is reasonably anticipated to obstruct or prevent the general public from using a park in whole or in part; and

(10) A "special event" as defined in section 54-1. A permit obtained under section 54-6.3 fully satisfies the requirement for a permit herein.

(11) Erection of a tent or other temporary structure.

(b) Except for "parades" and "assemblies" requiring a permit, nothing in this section shall be construed to prevent members of the public from assembling in the parks for the purpose of making any speech, engaging in "spontaneous expression," or conveying any message to the public or government without holding a permit pursuant to this article.

(c) No activity requiring a permit under subsection (a) shall be conducted or proceed within any park except in accordance with a permit issued either by the chief of police for a "parade," "assembly," or "special event," or by the director of parks and recreation for all other listed activities.

(Code 1967, § 39-66; Code 1980, § 38-54; Ord. No. 12506, § 3, 3-25-04; Ord. No. 12546, § 2, 6-10-04; Ord. No. 12583, § 2, 9-9-04; Ord. No. 12641, § 2, 1-13-05)

Editor's note—Ord. No. 12546, § 2, adopted June 10, 2004, changed the title of § 38-74 from "Same—Activities for which required" to "Same—Activities for which a permit is required."

Sec. 38-75. Same—Rules and conditions.

The following rules and conditions shall apply to permits issued pursuant to this article:

(1) They are issued on a first come, first served basis.

(2) Permits are nontransferable, and are good only on the date specified.

(3) The permittee will be held responsible for the conduct of the entire group.

(4) The permittee shall observe, obey and comply with the rules and regulations established by this article, as well as all applicable city, county, state and federal laws, rules and regulations.

(5) The permittee shall assume all risk in the use of the facility and shall be solely responsible and answerable in damages for all accidents and injury to person or property.

(6) A deposit will be required for certain activities when the permit is granted. The deposit will be returned upon inspection by park personnel verifying that the facility has been cleaned up.

(7) Special conditions related to the various types of facilities are printed on the permit forms.

(Code 1967, § 39-67; Code 1980, § 38-55)

Sec. 38-76. Restrictions for use—Watson Island.

All land located on Watson Island that is not subject to a lease or authorized development shall remain as open greenspace and park use.

(Ord. No. 12131, § 1, 10-11-01)

Sec. 38-77. Designated children play areas.

Areas designated within parks by city commission resolution(s), may be designated children play areas which are exclusive playgrounds for children. Adults are allowed in designated children play areas in parks only when supervising a child. Designated children play areas will be posted with signs informing the public of the designation.

(Ord. No. 13229, § 2, 11-18-10)

Sec. 38-78. Prohibitions regarding expanded polystyrene products in city parks and recreation facility/facilities, including beaches therein.

(a) *Legislative intent.* The city owns, operates, manages, and strives to preserve the positive environmental qualities of numerous city parks and recreation facility/facilities, including beaches therein, which are important to the public health, safety, welfare, and economy of the city and the surrounding communities. Additionally, the city desires to further preserve the positive environmental qualities of its city parks and recreation facility/facilities, including its beaches therein, by encouraging the use of reusable, recyclable, and compostable alternatives to polystyrene containers.

(b) *Definitions.* For purposes of this section only, the following definitions shall apply:

City contractor means a contractor, vendor, lessee, user, licensee, concessionaire, manager, operator, subcontractor, sub-vendor, sub-lessee, additional user, sub-user, sub-licensee, sub-concessionaire, sub-manager, or sub-operator of a city parks and recreation facility/facilities, including beaches therein, including any of the same with Virginia Key Beach Park Trust.

City contractor(s) currently under contract means a city contractor currently under contract with the city or with Virginia Key Beach Park Trust on the effective date of this section.

City parks and recreation facility/facilities, including beaches therein means any land, building, structure, pavilion, gazebo, hut, park, playground, open space, greenway, bikeway, trail, golf course, playing field, recreation field, beach, picnic area, concession stand, kitchen area, outdoor grill area, museum, auditorium, range, natural area, forest, preserve, hammock, lake, stream, canal, lagoon, waterway, swimming pool, splash pool, splash area, restroom, public service facility, maintenance facility, storage facility, and grounds owned, operated, or managed by or under the control of or assigned for upkeep, maintenance, or operation by:

(1) The city and all related air rights owned, operated, or managed by the city, or

(2) The Virginia Key Beach Park Trust and all related air rights owned, operated, or managed by the Virginia Key Beach Park Trust.

Expanded polystyrene means blown polystyrene and expanded and extruded foams that are thermoplastic petrochemical materials utilizing a styrene monomer and processed by any number of techniques including, but not limited to, fusion of polymer spheres (expandable bead foam), injection molding, foam molding, and extrusion-blown molding (extruded foam polystyrene).

Expanded polystyrene product(s) means signs, boards, containers, plates, bowls, cups, lids, trays, coolers, ice chests, food containers, and all similar articles that consist of expanded polystyrene.

Polystyrene means a polymer of styrene, especially a rigid transparent thermoplastic that has good physical and electrical insulating properties and is used especially in molded products, foams, and sheet materials.

Special event permittee means any person or entity issued a special event permit by:

(1) The city for a special event in any city parks and recreation facility/facilities, including beaches therein, or

(2) The Virginia Key Beach Park Trust for a special event in Historic Virginia Key Beach parks and recreation facility/facilities, including beaches therein.

(c) *Prohibitions effective July 1, 2017; 12-month temporary grace period for city contractors currently under contract.*

(1) It shall be unlawful for any person or any special event permittee to use, offer the use of, carry, place, sell, distribute, provide, provide food or drink in, or discard any expanded polystyrene product(s) in any city parks and recreation facility/facilities, including beaches therein. These prohibitions also apply to Historic Virginia Key Beach Park.

(2) It shall be unlawful for any city contractor to use, offer the use of, carry, place, sell, distribute, provide, provide food or drink in, or discard any expanded polystyrene product(s) in any city parks and recreation facility/facilities, including beaches therein. A violation of this section shall be deemed a default under the terms of the city contract, vending agreement, lease, use agreement, revocable license, concession agreement, management agreement, or operating agreement. Any city contract, lease, use agreement, revocable license, concession agreement, management agreement, or operating agreement entered into prior to the effective date of this section shall not be subject to the requirements of this section until 12 months after such effective date. Nothing prohibits such city contractor(s) currently under contract from voluntarily agreeing in writing to comply with this section on an earlier date and voluntarily foregoing the 12-month temporary grace period.

(d) *Delegation of authority for enforcement; penalties.*

(1) The city manager is hereby delegated and shall have the full authority of the city commission to promulgate rules and regulations to enforce and administer the provisions of this section. Additionally, the city manager and the executive director of the Virginia Key Beach Park Trust shall work together to promulgate rules and regulations to enforce and administer the provisions of this section 38-78 and section 38-248 of the City Code in Historic Virginia Key Beach Park.

(2) Any person or city contractor violating any provision of this section shall, upon conviction, be punished by a fine not to exceed $50.00. This section shall be enforced against the violator under the provisions of chapter 2, article X of this Code, and any other remedies as provided by law including, but not limited to, an action for injunctive relief in the Circuit Court. The use of one remedy shall not preclude the use of another.

(3) Notwithstanding provisions of subsections (1) and (2) above, a fine of $100.00 per violation may be imposed for violations of the provisions of this section 38-78 of the City Code if the violation is irreparable or irreversible in nature. In determining the amount of the fine, if any, the city shall consider the following factors:

a. The gravity of the violation;

b. Any actions taken by the violator to correct the violation; and

c. Ay previous violations committed by the violator.

(4) A violation of this section 38-78 shall constitute a City Code violation and may result in the revocation of the special events permit and fines, and may be grounds for the placement of conditions upon or for denial of one or more future special events permits. Nothing herein, including penalties for violation, shall be

construed to be in conflict with the provisions of F.S. § 403.413, as may be amended or revised from time to time, pertaining to the Florida Litter Law.

(Ord. No. 13681, § 2, 5-25-17)

Secs. 38-79—38-100. Reserved.

ARTICLE III. BAYFRONT PARK MANAGEMENT TRUST

Sec. 38-101. Bayfront Park Management Trust created.

There is hereby created and established a limited agency and instrumentality of the city to be known as the "Bayfront Park Management Trust." Use of the term "trust" in this article shall mean the Bayfront Park Management Trust.

(Ord. No. 10348, § 1(1), 11-19-87; Code 1980, § 38-71)

Sec. 38-102. Purpose.

The trust shall direct, operate, manage and maintain all aspects of the city-owned property known as Bayfront Park (hereinafter referred to as "park"), for the purposes of ensuring maximum community utilization and enjoyment. The trust shall endeavor to attract organized activities and functions to the park consistent with this purpose.

(Ord. No. 10348, § 1(2), 11-19-87; Code 1980, § 38-72)

Sec. 38-103. Governing body.

(a) *Composition; appointments; term of office.*

(1) The trust shall consist of nine members appointed by the city commission. A member of the city commission shall be the chairperson of the trust and the ninth member thereof; five members shall be nominated individually, one each by the city commissioners and four members shall be appointed at large by the city commission. Each member of the trust shall reside, work, own real property or own a business in the city and shall be an individual of outstanding reputation for integrity, responsibility and commitment to serving the community. The chairperson of the trust shall have the power to appoint all members serving on the various committees which the trust shall establish from time to time.

(2) The term of the city commissioner serving as the ex officio voting member and chairperson of the trust shall be reviewed by the city commission on or about June 1 of each calendar year resulting in the selection of a new chairperson or the reappointment of the existing chairperson to serve as the chairperson of the trust.

(3) Each member shall be named and appointed by the city commission for a term of one year or until the nominating commissioner leaves office, whichever occurs first, except that any person appointed to fill a vacancy due to the death, resignation or removal of any member of the trust shall serve only for the unexpired term.

(4) The city commission shall appoint all other officers, including a secretary, from among the trust's members. The chairperson shall serve for one year, and each successor chairperson shall be appointed by the city commission in the manner set forth in subsection (a)(1) of this section.

(5) Duly appointed members of the trust may be referred to from time to time as trustees.

(b) *Oath.* Upon the effective date of his/her appointment, or as soon thereafter as practicable, each member of the trust shall enter upon his/her duties but before doing so he/she shall take the oath prescribed by section 41(e) and (f) of the city Charter.

(c) *Organization; indemnification.*

(1) *Quorum and voting.* At all meetings of the trust, a majority of those present at a properly noticed meeting shall constitute a quorum for the transaction of business, and each trustee shall have one vote on every issue submitted to a vote of the

trust. The act of a majority of the trustees present at a meeting at which a quorum is present shall be the act of the trust. The members of the trust shall make and adopt bylaws and rules and regulations for the trust's governance and for the operation, management and maintenance of the park.

(2) *Meetings.* The trust shall hold regular quarterly meetings and may hold such other meetings as it deems necessary. All meetings of the trust shall be public, and written minutes of the proceedings thereof shall be maintained by the trust. All actions taken at the meetings of the trust shall be promptly and properly recorded. The official city policies relating to the attendance of regular board meetings shall be applicable to members of the trust.

(3) *Protection from personal liability.* The trust shall maintain officers and directors liability insurance coverage at all times, in an amount and in a form satisfactory to the city's insurance manager. To the extent such coverage does not apply, the city shall indemnify the trustees in the same manner and to the same extent that it indemnifies all other city advisory boards. Nothing in this section shall be construed in any way to affect the laws relating to sovereign immunity.

(Ord. No. 10348, § 1(3), 11-19-87; Ord. No. 11044, § 1, 3-11-93; Ord. No. 11107, § 1, 12-16-93; Ord. No. 11130, § 14, 3-24-94; Ord. No. 11151, § 2, 5-23-94; Ord. No. 11189, § 4, 10-27-94; Code 1980, § 38-73; Ord. No. 11348, § 2, 3-14-96; Ord. No. 11373, § 9, 6-27-96; Ord. No. 11564, § 14, 10-28-97; Ord. No. 13676, § 2, 4-27-17)

Sec. 38-104. Powers, purposes and duties of the trust.

The trust shall have the power to do all things necessary to direct, manage and maintain Bayfront Park, subject at all times to city commission approval and any existing contractual obligations.

(Ord. No. 10348, § 1(4), 11-19-87; Code 1980, § 38-74)

Sec. 38-105. Appointment, term, qualifications, compensation, general powers and responsibilities of the executive director.

There shall be an executive director who shall be appointed by the trust subject to city commission approval. Additionally, each successor executive director shall be similarly appointed and approved. After hiring an executive director, the trust shall submit monthly written status reports on the trust's operations and expenses to the city commission. The executive director shall be a person of good moral character and have an excellent reputation for integrity, responsibility, and business ability, but no trust member shall be eligible for appointment as executive director. The executive director shall receive such salary as shall be fixed by the trust, and approved by the city commission. The executive director shall take an oath before entering upon any duties. The executive director shall act as the chief executive officer of the trust. Subject to the policy directives of the trust, the executive director shall have general supervision over and be responsible for the management and operation of all trust properties, activities, and facilities. The executive director shall execute all contracts in behalf of the trust after approval by the board. The executive director shall attend all meetings of the trust, shall furnish the trust a quarterly report with respect to the management, operation, and maintenance of the park, and the financial condition of the trust, and shall from time to time have prepared and shall furnish such reports, audits and other information relating to the park and to said trust as may be required by the trust or the city. In the event that the executive director shall for any reason be temporarily incapable of exercising the powers and performing the duties and functions of his/her office, the city commission may appoint an acting executive director to exercise such powers and to perform such functions and duties until such incapacity of the executive director shall be terminated.

(Ord. No. 10348, § 1(5), 11-19-87; Code 1980, § 38-75; Ord. No. 13676, § 2, 4-27-17)

Sec. 38-106. Employment of assistants.

Subject to the policy directives of the trust and budget limitations, the executive director shall employ such assistants as are necessary to provide for the efficient operation of the trust.
(Ord. No. 10348, § 1(6), 11-19-87; Code 1980, § 38-76)

Sec. 38-107. Encouragement of private enterprise.

The trust shall, to the greatest extent it determines to be feasible, implement the exercise of its powers in a manner which utilizes and encourages the fullest and most active participation and cooperation of private enterprise.
(Ord. No. 10348, § 1(7), 11-19-87; Code 1980, § 38-77)

Sec. 38-108. Counsel.

The city attorney's office shall provide legal services to the trust as may be necessary and requested by the trust.
(Ord. No. 10348, § 1(8), 11-19-87; Code 1980, § 38-78)

Sec. 38-109. Approval of budget.

(a) Effective immediately, the trust shall establish a fiscal year which coincides with that of the City of Miami. The trust shall submit to the city commission, in a form acceptable to the city manager, and no later than April 1 next preceding each fiscal year, a trust budget request pertaining to management, operation, maintenance and capital expenditures and delineating the financial responsibility of the city for certain categories including but not limited to: insurance, security, utilities, capital improvements and maintenance. Nothing contained herein shall be construed to prohibit the trust from submitting a supplemental budget to the commission for approval.

(b) No expenditure shall be made in any given year without approval by the city commission of the trust budget for that year.

(c) In conjunction with the submission of the budget, the trust shall submit a master plan showing the proposed operations, activities, improvements, and maintenance plans for the forthcoming fiscal year. The city commission may review and deny any item contained in the master plan within 30 days from date of its submission by the trust.
(Ord. No. 10348, § 1(9), 11-19-87; Code 1980, § 38-79)

Sec. 38-110. Charge for use of park equipment in Mildred and Claude Pepper Bayfront Park.

An equipment use charge is hereby assessed on all private promoters of events or activities held in Mildred and Claude Pepper Bayfront Park. Revenues from such charge shall be used to partially defray operational costs of the Mildred and Claude Pepper Fountain. The herein charge for use of park equipment shall be established by the Bayfront Park Management Trust executive director at fair market value and may be a separate charge or may be incorporated as part of an unapportioned park user fee. This equipment use charge shall not be applicable for those events for which prior contractual relationships exist which have been approved by the city manager, or his/her designee, or the Bayfront Park Management Trust executive director.
(Ord. No. 10928, § 2, 10-3-91; Code 1980, § 38-79.1; Ord. No. 13676, § 2, 4-27-17)

Sec. 38-111. Annual report and audit.

(a) The trust shall submit to the mayor and city commission an annual report and an annual audit. The audit shall be performed by an external auditor who is a certified public accountant.

(b) Additionally, the city shall have the right to audit any books, accounts, expenditures, receivables, and contracts of the trust at any time.
(Ord. No. 10348, § 1(10), 11-19-87; Code 1980, § 38-80; Ord. No. 11564, § 14, 10-28-97)

Sec. 38-112. Contributions.

It is the intention of the city commission that the trust actively solicit contributions and financial support from private business interests and any other governmental authorities.
(Ord. No. 10348, § 1(11), 11-19-87; Code 1980, § 38-81)

Sec. 38-113. Reservation of park use.

Bayfront Park shall be reserved 85 percent of the days of each fiscal year for free access and use by the general public. This reservation of park use applies to Bayfront Park but not to any special purpose facility within it such as the amphitheater or vessel docks. This increase in reservation of park use shall not impair previously executed contracts. This reservation of park use may be reduced or waived by the city commission for temporary events or for specific events when the city commission determines such reduction or waiver is in the city's best interests.
(Ord. No. 10348, § 1(12), 11-19-87; Ord. No. 10571, § 1, 4-13-89; Code 1980, § 38-82; Ord. No. 13810, § 2, 11-15-18)

Sec. 38-114. Abolition of trust.

The city commission, by an affirmative vote of three commissioners, may abolish the trust, at which time the powers and duties of the trust shall revert to the city and the city shall resume responsibility for the maintenance, operation and management of Bayfront Park.
(Ord. No. 10348, § 1(13), 11-19-87; Code 1980, § 38-83)

Sec. 38-115. Authorization of the Bayfront Park Management Trust to allow the sale and/or dispensing of alcoholic beverages for special events, performances or programs.

(a) Notwithstanding any provision in the City Code to the contrary, the Bayfront Park Management Trust, or its executive director, on such special occasions and for such special events, performances or programs as deemed appropriate by said trust, or its executive director, may permit, upon execution of an application/permit form and upon payment in full of the permit fee specified in City Code subsection 38-70(g), the sale or dispensing of alcoholic beverages in soft containers in the Claude and Mildred Pepper Bayfront Park.

(b) Such sales or dispensing of alcoholic beverages are subject to compliance with all applicable state and local laws, rules, regulations and with any special conditions set forth on the application/permit form.
(Ord. No. 10688, § 1, 1-11-90; Code 1980, § 38-49.2; Ord. No. 13751, § 2, 3-22-18)

Editor's note—Ord. No. 13751, § 2, adopted March 22, 2018, changed the title of section 38-115 from "Authorization of the Bayfront Park Management Trust to allow the sale and/or dispensation of alcoholic beverages, including beer and wine, for special events, performances or programs" to "Authorization of the Bayfront Park Management Trust to allow the sale and/or dispensing of alcoholic beverages for special events, performances or programs." The historical notation has been preserved for reference purposes.

Sec. 38-116. Criteria for denial of permits for use of Bayfront Park and its facilities.

To the extent permitted by law, the trust may deny a permit for the use of its facilities if the applicant, or the person on whose behalf the application is made, has on prior occasions made material misrepresentations regarding the nature or scope of an event or activity previously permitted or has violated the terms of prior permits issued to or on behalf of the applicant.

The trust may also deny a permit on any of the following grounds:

(1) The application for permit (including any required attachments and submissions) is not fully completed and executed;

(2) The applicant has not tendered the required application fee with the application or has not tendered the required user fee, use-agreement or other type of agreement, insurance certificate, or security deposit within the times prescribed by the executive director;

(3) The application contains a material falsehood or misrepresentation;

(4) The applicant is legally incompetent to contract or to sue and be sued;

(5) The applicant or the person on whose behalf the application was made has on prior occasions damaged trust property

and has not paid in full for such damage, or has other outstanding and unpaid debts to the trust;

(6) A fully executed prior application for the same time and place has been received, and an agreement has been or will be granted to a prior applicant authorizing uses or activities which do not reasonably permit multiple occupancy of the particular park or part hereof;

(7) The use or activity intended by the applicant would conflict with previously planned programs organized and conducted by the trust and or the city and previously scheduled for the same time and place;

(8) The proposed use or activity is prohibited by or inconsistent with the classifications and uses of the park or part thereof designated pursuant to this chapter;

(9) The use or activity intended by the applicant would present an unreasonable danger to the health or safety of the applicant, or other users of the park, of trust employees or of the public;

(10) The applicant has not complied or cannot comply with applicable licensure requirements, ordinances or regulations of the trust and or city concerning the sale or offering for sale of any goods or services; and

(11) The use or activity intended by the applicant is prohibited by law, by the City Charter, this Code, the zoning code and ordinances of the city, or by the regulations of the trust.

(Ord. No. 12439, § 1, 11-13-03)

Secs. 38-117—38-145. Reserved.

ARTICLE IV. DAY CARE PROGRAM*

Sec. 38-146. Definitions.

For the purposes of this article, the following terms shall have the following meanings:

Day care facility means a facility in which children are cared for outside the home by a person or persons who are unrelated to the child, while the child's parents work or attend school on a full-time basis. The ages of the children attending this type of facility range between six weeks to five years. Care is provided for ten or more hours per day. Developmental activities are presented to the children on a daily basis by persons specifically trained in early childhood care.

Preschool facility means a child care facility in which care is provided for children outside the home by a person or persons unrelated to the child, for the purpose of engaging the child in socialization and interaction with other children in the same age group between three to five years of age. Parents of these children may not necessarily work nor be enrolled in school. The hours of desired care may range from three to nine hours per day and from two to five days per week.

(Ord. No. 11279, § 1(30-25), 7-13-95)

Sec. 38-147. Day care fee schedule.

The following fees shall apply to the use of the child day care facilities of the parks and recreation department:

(1) *Registration fee.* A nonrefundable registration fee of $60.00 annually is required at the time of initial enrollment, and thereafter, annually upon the anniversary of the enrollment. Each additional child in a family will be charged a $30.00 nonrefundable registration fee at said time.

(2) *Weekly or daily fee:*

*__State law reference__—Child care facilities, F.S. § 402.301 et seq.

Income Category	Weekly One Child	Half Day
$ 0.00—$20,000.00	$52.00	$40.00
20,001.00— 25,000.00	56.00	40.00
Income Category	One Child	Half Day
25,001.00— 30,000.00	67.00	40.00
30,001.00— 35,000.00	70.00	40.00
35,001.00— 40,000.00	73.00	40.00
40,001.00—Over	75.00	40.00

A ten percent discount is available for each additional child.

Income Category	Daily	Yearly Slot*
$ 0.00—$20,000.00	$10.40	$2,600.00
20,001.00— 25,000.00	11.20	2,800.00
25,001.00— 30,000.00	13.40	3,350.00
30,001.00— 35,000.00	14.00	3,500.00
35,001.00— 40,000.00	14.60	3,650.00
40,001.00—Over	15.00	3,750.00

*A reserved opening for service from September through June.

a. The above fees are due the Monday or the first day of each week. A $10.00 late charge will be assessed for fees submitted on the second day of each week or thereafter. Alternative payment plans are available upon request.

b. Infant care, for children six weeks to 18 months of age, is available for $80.00 per week.

c. Toddler care is available for children 18 to 24 months of age at $65.00 per week.

d. Drop-in care for unregistered children for day care when regular school is not in session is available at $20.00 per day for first child, and $15.00 daily for each additional child.

e. Fees are based on a 50-week per year operation.

f. Hours of operation shall be determined by the city manager or designee thereof.

g. For the purpose of discouraging late pickup of children, a $10.00 charge per child will be assessed for each 15-minute period beyond the designated closing time of each center. Under emergency circumstances affecting a family, fees may be adjusted for a designated period of time, subject to the approval of the director of the parks and recreation department, in order to maintain continuity of services.

(3) *After-school care.* The after-school care fee shall be $25.00 weekly, with no discounts regarding family income, for children through age nine.

(4) *Summer program.* Available for 11 weeks June through August. Standard weekly fees for use of facilities shall apply.

(5) *Conditions for the purchase of a slot.* Applicants agree to purchase a slot for enrollment for the operating year September—June, and agree that said fees are not subject to adjustments or refunds because of absence, illness or withdrawal of the child from the center for any reason after the program has accepted the child for enrollment.

(6) *Enrollment limited to city residents; exception.* Enrollment is limited to city residents only except that consideration may be given to nonresidents only if it has been determined that there are no pending applications by city residents to fill existing vacancies and only if such consideration will not result in the denial of any service to city residents.

(7) *Annual fees.* Beginning June 1, 1996, fees and the income category ranges on which they are based for the use of the child day care facilities of the parks and recreation department shall be established annually by the city manager prior to June 1 and assessed effective July 1 upon consideration of the following criteria:

a. Operating expenses.

b. Reserve for improvements and major maintenance.

c. Other city financial needs.

The child day care fees shall not exceed those charged by other child day care facilities in Dade County.

(Code 1967, § 39-16.1; Ord. No. 8682, § 1, 7-28-77; Ord. No. 9035, § 1, 12-27-79; Ord. No. 9324, § 1, 9-24-81; Ord. No. 9520, § 1, 11-4-82; Ord. No. 9893, § 1, 9-18-84; Ord. No. 10033, § 1, 9-12-85; Ord. No. 10317, § 1, 9-8-87; Code 1980, § 30-26; Ord. No. 11279, § 1(30-26), 7-13-95)

Sec. 38-148. Preschool fee schedule.

The city manager may offer a preschool program at designated city parks if sufficient levels of enrollment required to meet operating expenses are achieved.

(1) *Registration fee.* A nonrefundable registration fee of $55.00 annually is required at the time of initial enrollment, and, thereafter, annually upon the anniversary of the enrollment. Each addition child in a family will be charged a $25.00 nonrefundable registration fee at said time.

(2) *Weekly fee.* Forty-nine dollars per week per child, excluding the Douglas Park preschool program, where the fee shall be $40.00 per week per child.

a. The above fees are due the Monday or the first day of each week. A $10.00 late charge will be assessed for fees submitted on the second day of each week or thereafter. Alternative payment plans are available upon request.

b. Drop-in care for unregistered children for preschool when regular school is not in session is available at $20.00 per day for first child, and $15.00 daily for each additional child.

c. Fees are based on a 48-week per year operation at the West End and Grapeland Parks preschool facilities and on a 35-week per year operation at the Douglas Park preschool facility.

d. Hours of operation shall be determined by the city manager or designee thereof.

e. For the purpose of discouraging late pickup of children, a $10.00 charge per child will be assessed for each 15-minute period beyond the designated closing time of each center. Under emergency circumstances affecting a family, fees may be adjusted for a designated period of time, subject to the approval of the director of the parks and recreation department, in order to maintain continuity of services.

(3) *After-school care.* For after-school care, a nonrefundable registration fee of $25.00 annually is required at the time of initial enrollment, and, thereafter, annually upon the anniversary of the enrollment. The weekly fee shall be $25.00, with no discounts regarding family income, for children through age nine.

(4) *Summer program.* Depending on enrollment, an eight-week summer program may be offered.

(5) *Conditions for the purchase of a slot.* Applicants agree to purchase a slot for enrollment for the operating year September—June, and agree that said fees are not subject to adjustments or refunds because of absence, illness or withdrawal of the child from the center for any reason after the program has accepted the child for enrollment.

(6) *Enrollment limited to city residents; exception.* Enrollment is limited to city residents only except that consideration may be given to nonresidents only if it has been determined that there are no pending applications by city residents to fill existing vacancies and only if such consideration will not result in the denial of any service to city residents.

(7) *Annual fees.* Beginning June 1, 1996, fees for the use of the preschool facilities of the parks and recreation department shall be established annually by the city

manager prior to June 1 and assessed effective July 1 upon consideration of the following criteria:

a. Operating expenses.

b. Reserve for improvements and major maintenance.

c. Other city financial needs.

The preschool fees shall not exceed those charged by other preschool facilities in Dade County.
(Ord. No. 11279, § 2(30-27), 7-13-95)

Secs. 38-149—38-175. Reserved.

ARTICLE V. GOLF COURSES*

DIVISION 1. GENERALLY

Sec. 38-176. Unauthorized use.

(a) No person shall enter into or upon the premises of any city-operated golf course without first having paid a greens fee or obtained written authorization from the golf course starter. Any person entering upon such golf course in violation of this section shall be deemed a trespasser, and shall be guilty of a violation of this section.

(b) The provisions of this section shall not apply to any person actually engaged at such time in official business for the city, the county, the state or the United States, nor to spectators upon a golf course during tournament play when authorized in writing by the director of the parks and recreation department or the supervisor of the golf course.
(Code 1967, § 39-13(a), (b); Code 1980, § 30-41)

Sec. 38-177. Closing hours.

(a) The closing hours for city-operated golf courses shall be from sunset in the evening to sunrise the following morning. Any person who shall enter into or upon city golf courses after such designated closing times shall be deemed a trespasser and shall be guilty of a violation of this section.

(b) The city shall establish and expose at such golf courses signs designating: "No trespassing—This golf course closed from sunset to sunrise."

(c) The provisions of this section shall not apply to any person actually engaged at such time in official business for the city, the county, the state or the United States, nor to spectators upon a golf course during tournament play when authorized in writing by the director of parks and recreation or the supervisor of the golf course.
(Code 1967, § 39-13(b)—(d); Code 1980, § 30-42)

Secs. 38-178—38-200. Reserved.

DIVISION 2. RATES AND CHARGES†

Sec. 38-201. Greens and cart fees.

(a) Any and all fees charged in connection with the use of a city-owned golf course shall be established from time to time by the city manager upon consideration of the following criteria:

(1) Current bond debt service requirements.

(2) Return on proposed or previously completed, nonbonded, capital improvement.

(3) Operating expenses.

(4) Reserve for improvements and major maintenance.

(5) Other city financial needs.

*__State law reference—__Authority of municipality to construct, maintain, operate, etc., golf courses, F.S. § 180.06(7).

†__Editor's note—__Ord. No. 12738, § 2, adopted November 3, 2005, amended division 2 in its entirety to read as herein set out. Formerly, division 2 pertained to similar subject matter and derived from the Code of 1967, § 39-13.1; Ord. No. 8728, § 1, adopted October 26, 1977; Ord. No. 8846, § 1, adopted September 28, 1978; Ord. No. 9033, § 1, adopted December 5, 1979; the Code of 1980, §§ 30-53—30-57; Ord. No. 9164, §§ 1, 2, adopted September 15, 1980; Ord. No. 9302, § 1, adopted July 23, 1981; Ord. No. 9487, § 1, adopted September 9, 1982; Ord. No. 9761, § 1, adopted December 8, 1983; Ord. No. 9895, § 1, adopted September 18, 1984; Ord. No. 9982, § 1, adopted April 11, 1985; Ord. No. 10064, § 1, adopted December 19, 1985; Ord. No. 10122, § 1, adopted July 10, 1986; Ord. No. 10178, § 1, adopted November 13, 1986; Ord. No. 10238, § 1, adopted March 13, 1987; Ord. No. 10331, § 1, adopted October 22, 1987; Ord. No. 10809, § 1, adopted November 8, 1990; Ord. No. 11331, § 2(30-57), adopted January 25, 1996.

(6) Market rates and fees charged at similar golf course facilities in the Miami-Dade County area.

(b) The schedule of fees established by the city manager as provided above may include varied pricing strategies to encourage growth of the sport.

(c) Resident discount. City residents shall be entitled to a minimum of 40 percent discount on full regular greens fees, upon presentation of identification showing city residency at the time of reservation, based upon availability of starting times. Said resident discount shall not apply in conjunction with other applicable discounts, or with special rates, or during prime starting times, which shall be posted at the golf courses, and at other such times as may be determined by the director or designee.

State tax is to be added to the fees specified above.
(Ord. No. 12738, § 2, 11-3-05)

Sec. 38-202. Exempt facilities.

The provisions contained in section 38-201, hereinabove shall not apply to those city golf course facilities operated and managed by private parties pursuant to agreements approved by the city commission. The rates, charges and discounts applicable to said facilities, or the criteria for establishing same, shall be as established by said agreements providing for the management of said facilities; said fees shall include a discount for city residents.
(Ord. No. 12738, § 2, 11-3-05)

Secs. 38-203—38-229. Reserved.

ARTICLE VI. VIRGINIA KEY BEACH PARK TRUST

Sec. 38-230. Virginia Key Beach Park Trust created.

A limited agency and instrumentality of the city to be known as the "Virginia Key Beach Park Trust" is hereby created and established. Use of the term "trust" in this article shall mean the Virginia Key Beach Park Trust.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-231. Jurisdictional authority.

The Trust shall exercise the powers and duties set forth in this chapter over the land area described in "Attachment A," attached hereto and incorporated herein.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-232. Purpose; powers and duties.

(a) Purpose. The trust, in cooperation with the department of parks and recreation and other city departments, shall be guided by its vision to preserve the Historic Virginia Key Beach Park (the "park") property in a manner consistent with the environmental health, public use, historical importance of the park and the aspirations of the African American community and shall propose policy, planning, and design to ensure maximum community utilization, enjoyment, and maintenance of the park as an open greenspace compatible with its historical and recreational characteristics and accessible to the public. The trust shall endeavor to promote activities and functions at the park consistent with this purpose and with the nature of the park.

(b) Powers and duties. Subject to city commission approval and compliance with the terms and conditions of any existing contractual obligations, the trust shall be empowered to take all actions necessary including, but not limited to, activities which:

(1) Protect, preserve, advocate for and ensure the retention of the deed restriction imposed upon the property known as Old County Park when deeded to the City of Miami by Miami-Dade County, which ensures public access and restricts the "land" to public park uses;

(2) Assist and advise the city commission, the department of parks and recreation, other departments and other public officials and entities concerning the park;

(3) Promote, oversee and assist in the activities of private persons and other organizations concerned for the park, and develop increased public awareness, use, and interest in Historic Virginia Key Beach Park;

(4) Assist in providing services, group tours, and information to visitors of the park, environmental and historical education, food, cultural and recreational activities and other special events;

(5) Increase public consciousness about the historic and environmental significance of the park and assist in the park's application for historic designation locally, within the state and nationally;

(6) Solicit and accept grants, contributions and financial and non-financial support from individuals, private business interests, the general public, governmental entities, corporations and organizations, foundations and other philanthropic entities;

(7) Establish partnerships and associations with other entities for the purpose of collecting and preserving historical data, memorabilia, artifacts and other material in furtherance of the trust's purpose;

(8) Implement full and active participation and cooperation with public and private entities in furtherance of the trust's purpose and the desires of the community; promote the stabilization, preservation, and restoration of existing structures; conduct land and archeological surveys; and establish historic marker designations of lost or removed structures and equipment located at the park;

(9) Participate in any other fundraising activity, whether solely involving the trust or involving partnerships with other persons or public or private organizations, which furthers the trust's purpose.

(c) Notwithstanding any provisions to the contrary, the trust shall exercise only such powers as are granted pursuant to this article.
(Ord. No. 12003, § 3, 12-14-00; Ord. No. 12857, § 2, 10-12-06)

Sec. 38-233. Governing body: composition and appointments; terms of office and vacancies; membership eligibility requirements; oath; quorum and voting; meetings; attendance requirements; indemnification.

(a) *Composition and appointments.* The trust shall consist of seven members comprised as follows:

(1) The five members of the city commission shall serve as board members ex officio.

(2) Two members appointed by the district 5 commissioner;

(3) The district 5 commissioner shall be the chair of the trust.

(4) The trust members shall be committed to its vision to preserve the Historic Virginia Key Beach Park (the "park") property in a manner consistent with the environmental health, public use, historical importance of the park and the aspirations of the African American community and shall propose policy, planning, and design to ensure maximum community utilization, enjoyment, and maintenance of the park as an open greenspace compatible with its historical and recreational characteristics and accessible to the public. The trust shall endeavor to promote activities and functions at the park consistent with this purpose and with the nature of the park.

(b) *Terms of office and vacancies.* Each member shall be the city commissioners themselves and, the D5 appointees for a term of two years or until the nominating commissioner leaves office, whichever occurs first, except that any person appointed to fill a vacancy due to the death, resignation or removal of any member of the trust shall serve only for the remainder of the unexpired term. No member shall serve more than eight consecutive years on the trust. Nothing set forth herein shall prohibit any individual from being reappointed after a hiatus of two years.

(1) The eight-consecutive year limitation contained in this subsection may be

waived for a particular trust member who has completed eight consecutive years to permit such board member to be reconsidered annually for an additional one-year term by a unanimous vote of the members of the city commission.

(c) *Membership eligibility requirements.*

(1) Each member of the trust shall reside, work, own real property or maintain a business in the city and shall be an individual of outstanding reputation for integrity, responsibility and commitment to serving the community and have a demonstrated interest in the future of the park and in implementing the vision of the trust. Appointed members are expected to participate actively in the functioning of the trust. the chairperson of the trust shall have the power to appoint all members serving on the various committees which the trust shall establish from time to time.

(2) Unless the city commission by four-fifths vote of its membership or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation waives the requirement that trust members either reside in the city, own real property in the city or maintain a business in the city, any member of the trust who ceases to be a resident of the city and/or ceases to work, own real property or maintain a business in the city during the term of his or her office shall immediately advise the city clerk. The city clerk shall inform the city commission and the trust whenever a trust member has ceased to be in compliance with said membership eligibility requirements and the trust member shall be automatically removed from the trust. The city clerk shall then inform the city commission in writing that the position has been declared vacant. Upon being advised by the city clerk of such circumstances, an appointment to fill the vacancy shall be made in accordance with subparagraph (b) hereinabove.

(3) No member of the trust shall become a candidate for elective political office during his or her term. Should any member of the trust qualify as a candidate for elective political office, such qualification shall be deemed a tender of resignation from the trust, except sitting commissioners.

(4) No employee of Miami-Dade County, Florida, or any municipality therein other than city employees, shall serve on or be appointed to the trust.

(d) *Oath.* Upon the effective date of appointment, or as soon thereafter as practicable, each member of the trust shall assume the duties of a member of the trust, but before doing so, shall take the oath prescribed by section 41(e) and (f) of the City Charter.

(e) *Quorum and voting.* At all meetings of the trust, a majority of the then appointed members shall constitute a quorum for the transaction of business, and each member shall have one vote on every issue submitted to a vote of the trust. The act of a majority of the members present at a meeting at which a quorum is present shall be the act of the trust. The members of the Trust shall make and adopt bylaws and rules and regulations for the trust's governance and for the operation, management and maintenance of the park.

(f) *Meetings.* The trust shall hold regular quarterly meetings and may hold such other meetings as it deems necessary. All meetings of the trust shall be public. Written minutes of the proceedings of all actions taken at the meeting of the trust shall be maintained by the trust and shall be promptly and properly recorded and submitted to the city clerk.

(g) *Attendance requirements.*

(1) A member shall be automatically removed if, (a) in a given calendar year he or she is absent from three consecutive meetings; or (b) he or she is absent from four properly noticed meetings within eight-month period without an excused absence.

(2) The provisions of this subsection shall not apply to those individuals who are

members of city boards and who are (1) reservists in the United States Armed Forces or members of the Florida National Guard, and have been ordered to active military duty for national, state, or homeland defense and due to such duty cannot attend board meetings, or (2) employees of agencies whose services are considered essential for national, state, or homeland defense and due to such services cannot attend board meetings.

(h) *Indemnification.* The trust shall maintain officers and directors liability insurance coverage at all times, in an amount and in a form satisfactory to the city's insurance manager. To the extent such coverage does not apply, the city shall indemnify the members in the same manner and to the same extent that it indemnifies all other city advisory boards. Nothing in this section shall be construed in any way to affect the laws relating to sovereign immunity.
(Ord. No. 12003, § 3, 12-14-00; Ord. No. 12201, § 1, 3-14-02; Ord. No. 13065, § 2, 5-14-09; Ord. No. 13170, § 3, 5-13-10; Ord. No. 14114, § 2, 10-13-22)

Sec. 38-234. Executive director; appointment, term, qualifications, compensation, general powers and responsibilities.

There shall be an executive director who shall be appointed by the trust subject to city commission approval. Additionally, each successor executive director shall be similarly appointed and approved. After hiring an executive director, the trust shall submit monthly written status reports on the trust's operations and expenses to the city commission. The executive director shall be a person of good moral character and have an excellent reputation for integrity, responsibility, and business ability, but no trust member shall be eligible for appointment as executive director. The executive director shall receive such salary as shall be fixed by the trust, and approved by the city commission. The executive director shall take an oath before assuming any duties. The executive director shall act as the chief executive officer of the trust. Subject to the policy directives of the trust, the executive director shall have general supervision over and be responsible for the management and operation of all trust activities, and facilities. The executive director shall execute all contracts on behalf of the trust after approval by the trust. The executive director shall attend all meetings of the trust, shall furnish the trust a quarterly report with respect to the management, operation, and maintenance of the park, and the financial condition of the trust, and shall from time to time have prepared and shall furnish such reports, audits and other information relating to the park and to the trust as may be required by the trust or the city. In the event that the executive director is for any reason temporarily incapable of exercising the powers and performing the duties and functions of the office, the city commission may appoint an acting executive director to exercise such powers and to perform such functions and duties until such incapacity of the executive director ceases.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-235. Employment of assistants.

Subject to the policy directives of the trust and budget limitations, the executive director may employ such assistants as are necessary to provide for the efficient operation of the trust.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-236. Counsel.

The city attorney's office shall provide legal services to the trust as may be necessary and requested by the trust.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-237. Approval of budget.

(a) Effective immediately, the trust shall establish a fiscal year which coincides with that of the city. The trust shall submit to the city commission, in a form acceptable to the city manager, and no later than April 1 preceding the commencement of each fiscal year, a trust budget request pertaining to management, operation, maintenance and capital expenditures and delineating the financial responsibility of the city for certain categories including but not limited to: insurance, security, utilities, capital improvements and maintenance. Nothing

contained herein shall be construed to prohibit the trust from submitting a supplemental budget to the commission for approval.

(b) No expenditure shall be made in any given year without approval by the city commission of the trust budget for that year and all expenditure shall comply with city procedures for acquisition of goods and services.

(c) In conjunction with the submission of the budget, the trust shall submit a master plan reflecting the proposed operations, activities, improvements, and maintenance plans for the forthcoming fiscal year. The city commission may review and deny any item contained in the master plan within 30 days from the date of its submission by the trust.

(d) No provision contained in this article shall be construed to violate the Anti-Deficiency Act, as set forth in sections 18-500 through 18-503 of this Code.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-238. Annual report and audit.

(a) The trust shall submit to the mayor and city commission an annual report and an annual audit. The audit shall be performed by an external auditor who is a certified public accountant.

(b) Additionally, the city shall have the right to audit any books, accounts, expenditures, receivables, and contracts of the trust at any time.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-239. Charge for rental of park or use of park equipment.

A charge for rental of the park or equipment use is hereby assessed on all private promoters of events or activities held at the park. Revenues from such charge shall be used to partially defray operational costs of the park. Notwithstanding any Charter or Code provision to the contrary, the trust, after consultation with the city manager, shall establish apportioned or unapportioned user fees for use of the park or park equipment. These charges shall not be applicable for those events for which contractual relationships preexist this article which have been approved by the city manager or designee.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-240. Reservation of park use.

The park shall be reserved for community use 50 percent of the days of each fiscal year. An additional 30 days each year are reserved for use by the trust, unless the trust has existing commitments for scheduled events on the requested day(s). The trust shall be empowered to waive the park rental fee during portion(s) of such 30-day period when the park user is a bona fide nonprofit group, pursuant to Florida's General Nonprofit Corporation Act, which is exempt from federal taxation by virtue of section 501(c)(3) of the Internal Revenue Code, as amended, as being organized and operated exclusively for cultural charitable, scientific, environmental historical, testing for public safety, literary or educational purposes, or to foster national or international amateur sports competition, or for the prevention of cruelty to children or animals.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-241. Authorization of the trust to allow the sale and/or dispensation of alcoholic beverages, including beer and wine, for special events, performances or programs; issuance of permits for special events which require extraordinary security measures or extraordinary amplification, prohibited.

(a) Notwithstanding any provision in this Code to the contrary, the trust, or its executive director, on such special occasions and for such special events, performances or programs as deemed appropriate by the trust, or its executive director, may permit, upon execution of an application/permit form and upon payment in full of the permit fee specified in section 38-70(g), the sale or dispensing of alcoholic beverages, including beer and wine, in soft containers at the park.

(b) Such sales or dispensing of alcoholic beverages, including beer and wine, are subject to compliance with all applicable state and local laws, rules, regulations and with any special conditions set forth on the application/permit form.

(c) No such permits shall be issued in connection with events of the type which requires extraordinary security measures or extraordinary amplification.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-242. Abolition of trust.

The city commission, by an affirmative vote of three commissioners, may abolish the trust, at which time the powers and duties of the trust shall revert to the city and the city shall resume responsibility for the maintenance, operation and management of the park.
(Ord. No. 12003, § 3, 12-14-00)

Sec. 38-243. Operation of vessels, boats, and other watercraft in marked swimming area, bathing area, or exclusion/safety zone of Historic Virginia Key Beach Park.

(a) An exclusion/safety zone and "no wake zone" has been established for the designated waters of and off of Historic Virginia Key Beach Park pursuant to subsection 38-60(b).

(b) No person shall operate any motorized vessel, motorized boat, or other motorized watercraft within a swimming area, bathing area, or exclusion/safety zone area within the Historic Virginia Key Beach Park beach area which has been clearly marked by duly authorized buoys or other alternative permitted regulatory markers. Hand-propelled or foot-propelled vessels without motors and other hand-propelled or foot-propelled watercraft without motors, such as canoes, kayaks, surf boards, sail boards, kite boards, and wind-surfing boards, are permitted to be operated in a safe manner within such designated swimming area, bathing area or exclusion/safety zone within the Historic Virginia Key Beach Park beach area.

(c) The provisions of this section shall not apply to film productions that specifically request a waiver from the executive director of the Virginia Key Beach Park Trust on their film permit applications as long as such film productions:

(1) Take adequate safety precautions;

(2) Specify in their waiver requests such precautions to be taken; and

(3) Indemnify the Virginia Key Beach Park Trust, the city and their respective officers, directors, and employees for such waiver.

(4) The provisions of this section shall not apply to a "special event" (as defined in section 38-74 and section 54-1) for which a special events permit is obtained from the executive director of the Virginia Key Beach Park Trust.
(Ord. No. 13004, § 4, 6-12-08)

Sec. 38-244. Speed of vessels, boats, and other watercraft off Historic Virginia Key Beach Park.

(a) No person shall operate any vessel, boat or other watercraft off the waters of Historic Virginia Key Beach Park at a speed greater than five miles per hour within 100 feet of any person in the water.

(b) No person operating a boat, vessel or other watercraft off any part of Historic Virginia Key Beach Park beach area shall engage in a race or contest of speed with another boat, vessel, or other watercraft at any time.

(c) The provisions of this section shall not apply to races or regattas when the city commission has given permission for such races or regattas to be held.

(d) The provisions of this section shall not apply to film productions that specifically request a waiver from the executive director of the Virginia Key Beach Park Trust on their film permit applications as long as such film productions:

(1) Take adequate safety precautions;

(2) Specify in their waiver requests such precautions to be taken; and

(3) Indemnify the Virginia Key Beach Part Trust, the city, and their respective officers, directors, and employees for such waiver.

(e) The provisions of this section shall not apply to a "special event" (as defined in section 38-74 and section 54-1) for which a special events permit is obtained from the Executive Director of the Virginia Key Beach Park Trust.
(Ord. No. 13004, § 4, 6-12-08)

State law reference—Reckless or careless operation of vessels, F.S. § 327.33.

Sec. 38-245. Careless operation of vessel, boat or other watercraft.

Every person operating or navigating any vessel, boat or other watercraft in, on or under the waters off Historic Virginia Key Beach Park shall do so in a careful and prudent manner, taking into consideration the weather conditions and range of visibility, water turbulence, current, closeness to swimmers, bathers, water skiers and other boats, vessels and watercraft, and all other attendant circumstances so as not to endanger the life, limb or property of any person. Failure to operate a vessel, boat or other watercraft in such a careful and prudent manner shall constitute careless boating and a violation of this section.
(Ord. No. 13004, § 4, 6-12-08)

State law references—Similar provisions, F.S. § 327.33; operating a vessel under the influence of drugs or alcohol, F.S. § 327.35 et seq.

Sec. 38-246. Operation or use of towed flying devices, towed sailing devices or towed parachutes near beaches.

(a) It shall be unlawful for any person to tow or manipulate any person attached to any towed flying or towed sailing device or towed parachute through or over an area within 500 feet each side of the water's edge of the Historic Virginia Key Beach Park beach area below an altitude of 500 feet above the surface of the water.

(b) It shall be unlawful for any person to operate, engage in, be a passenger in or control any towed flying device, towed sailing device, or towed parachute carrying a person through or over an area within 500 feet each side of the water's edge of the Historic Virginia Key Beach Park beach area below an altitude of 500 feet above the surface of the water.

(c) The provisions of this section shall not apply to film productions that specifically request a waiver from the executive director of the Virginia Key Beach Park Trust on their film permit applications as long as such film productions:

(1) Take adequate safety precautions;

(2) Specify in their waiver requests such precautions to be taken; and

(3) Indemnify the Virginia Key Beach Park Trust, the city and their respective officers, directors, and employees for such waiver.

(d) The provisions of this section shall not apply to a "special event" (as defined in section 38-74 and section 54-1) for which a special events permit is obtained from the executive director of the Virginia Key Beach Park Trust.
(Ord. No. 13004, § 4, 6-12-08)

Sec. 38-247. Launching of motorized vessels, motorized boats and motorized other watercraft from Historic Virginia Key Beach Park property.

It shall be unlawful for any person to launch any motorized vessel, motorized boat or other motorized watercraft into the waters of and off of Historic Virginia Key Beach Park, unless the launching takes place at a marina, or from a boat ramp provided by Historic Virginia Key Beach Park.
(Ord. No. 13004, § 4, 6-12-08)

Sec. 38-248. Establishing an environmental education zone in connection with prohibitions regarding expanded polystyrene products in Historic Virginia Key Beach Park.

(a) Legislative intent. The city owns and the Virginia Key Beach Park Trust operates, manages, and strives to preserve the positive

environmental qualities of Historic Virginia Key Beach Park, including its recreation facilities, open spaces, trails, parking facilities, bath houses, concession facilities, other amenities, and beaches therein, which are important to the public health, safety, welfare, and economy of the city and the surrounding communities. The city and the Virginia Key Beach Park Trust desire to further preserve the positive environmental qualities of its parks and recreation facilities, including its beaches therein, by encouraging the use of reusable, recyclable, or compostable alternatives to polystyrene containers.

(b) Section 38-78 of this Code shall apply to Historic Virginia Key Beach Park and the city manager and the executive director of the Virginia Key Beach Park Trust shall work together to promulgate rules and regulations to enforce and administer the provisions of section 38-78 and this section 38-248 of the Code.

(c) An upland "environmental education zone" is hereby established throughout Historic Virginia Key Beach Park to facilitate the education of visitors regarding environmental considerations and the prohibitions regarding expanded polystyrene products and to encourage the use of reusable, recyclable, or compostable alternatives to polystyrene containers. The city manager, the Virginia Key Beach Park Trustees, and the executive director of the Virginia Key Beach Park Trust shall work together to develop educational programs and projects for the environmental education zone.
(Ord. No. 13681, § 2, 5-25-17)

ARTICLE VII. MIAMI BAYWALK GREENWAY ALONG BISCAYNE BAY

Sec. 38-249. Miami Baywalk Greenway along Biscayne Bay.

(a) The designation of the "Miami Baywalk Greenway along Biscayne Bay" (sometimes referred to as "Baywalk Greenway") creates and identifies the waterfront baywalk along Biscayne Bay, as well as recognizes the Baywalk Greenway as a linear public-private park under the city's park inventory, subject to certain restrictions and in no way impacting private property rights consistent with all applicable laws and existing regulations. The Miami Baywalk Greenway along Biscayne Bay is to be located on public lands and, as described herein, on private lands.

(b) Public rights-of-way may be included within the Baywalk Greenway, but not part of the city's park inventory.

(c) Public access on the designated Baywalk Greenway will be provided as agreed to and determined by the city and consistent with all established laws and regulations.

(d) Inclusion of land within the Baywalk Greenway shall not affect or change the taxable nature of the land.

(e) The land within the Baywalk Greenway shall not be utilized towards the city's no net loss policy for public park land.

(f) Park impact fees shall not be used for the Baywalk Greenway.

(g) The planting of mangroves along the Baywalk Greenway is prohibited.
(Ord. No. 14059, § 2, 4-14-22)

Sec. 38-250. Same—Boundary.

The boundary of the Miami Baywalk Greenway along Biscayne Bay shall include that portion of land of participating properties immediately abutting and contiguous to Biscayne Bay starting at the northern city limit at approximately Northeast 87th Street to a point of connection to the state established Miami River greenway, then south along Biscayne Bay to the southwestern city limit along North Prospect Drive. The boundary width of the Baywalk Greenway shall be the entire waterfront setback as described in the City Charter.
(Ord. No. 14059, § 2, 4-14-22)

Sec. 38-251. Applicable law and existing regulations.

The Miami Baywalk Greenway along Biscayne Bay waterfront standards and design regulations are governed by the following established law:

(1) Subsection 3(mm) of the Charter of the City of Miami, Florida, as amended; and

(2) The Miami Comprehensive Neighborhood Plan ("MCNP"), including but not limited to the goals and policies contained within the Parks, Recreation and Open Space; Transportation; and Coastal Management; and

(3) Section 3.11 of the Miami 21 Code, titled "Waterfront Standards"; and

(4) Appendix B of the Miami 21 Code, titled "Waterfront Design Guidelines"; and

(5) Article III, Section 33D-38 of the Miami-Dade County Code of Ordinances, as amended; and

(6) Any other law applicable to the Baywalk Greenway area.

(Ord. No. 14059, § 2, 4-14-22)

Sec. 38-252. Private lands within the Miami Baywalk Greenway along Biscayne Bay.

In accordance with those authorities granted in the City Code, the city manager is hereby authorized to seek to acquire by gift or purchase the fee simple interest or any lesser interest in land, including easement(s), agreement(s), covenant(s), or such other legal instrument(s), in a form acceptable to the city attorney, from a private landowner for that portion of land included within the boundaries of the Miami Baywalk Greenway along Biscayne Bay. Compliance with this section does not negate compliance with the regulations enumerated in section 38-251 above.
(Ord. No. 14059, § 2, 4-14-22)

Sec. 38-253. Voluntary proffer by private landowner.

Any new development of a property subject to the regulations described in section 38-251 that seeks permitted modification(s) from any of the established design standards related to the regulations enumerated in section 38-251 shall provide to the city, prior to issuance of any building permit, an agreement, covenant, easement, or other legal instrument approved by the city attorney, acknowledging the applicable local ordinances, requirements to maintain such area, the requirement to provide public access during codified time periods, and that said area is deemed part of the Miami Baywalk Greenway along Biscayne Bay. In the event that an existing development subject to the regulations described in section 38-251 obtained the necessary approvals for any modification(s) from any of the established design standards related to the regulations enumerated in section 38-251 and the improvements have been completed where public access along the waterfront pathway already exists, said area shall be included in the Miami Baywalk Greenway along Biscayne Bay and the city manager shall seek to acquire an agreement, covenant, easement, or other legal instrument approved by the city attorney. Compliance with this section does not negate compliance with the regulations enumerated in section 38-251 above.
(Ord. No. 14059, § 2, 4-14-22)

Sec. 38-254. Identification signage.

Any identification signage which is required as part of the design regulations shall identify the Miami Baywalk Greenway along Biscayne Bay.
(Ord. No. 14059, § 2, 4-14-22)

Sec. 38-255. Enforcement.

The rules and regulations established by this article will be enforced by the department of parks and recreation, the police department, the department of resilience and public works, and pursuant to the provisions established in chapter 2 of the City Code. Use of one means of enforcement shall not preclude the use of any other remedies.
(Ord. No. 14059, § 2, 4-14-22)

Chapter 39

PEDDLERS AND ITINERANT VENDORS*

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Sec. 39-48. Exemptions as to farm products.
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Sec. 39-50. Penalty.
Sec. 39-51. Violation a nuisance; summary abatement.
Sec. 39-52. Enforcement of article.

***Charter reference—**Authority of city to classify, license businesses, § 3(aa).

City Code cross references—Local business tax and miscellaneous business regulations, ch. 31; sidewalk cafes, § 54-221 et seq.; newsracks, § 54-261 et seq.

State law references—Employment of minors in street trades, F.S. § 450.081(4); peddling at camp meetings, F.S. § 871.03.

ARTICLE I. IN GENERAL

Secs. 39-1—39-25. Reserved.

ARTICLE II. SIDEWALK AND STREET VENDORS

Sec. 39-26. Definitions.

For the purposes of this article:

Business tax receipt (BTR) as defined in Chapter 31 of the City of Miami Code.

Civic center special vending district is defined as all public rights-of-way within that area bound by and including both sides of Northwest 12th Avenue on the east, Northwest 14th Street on the north, Northwest 12th Street on the south, and Northwest 14th Avenue on the west.

Department of health is defined as the Dade County department of public health.

DDA is defined as being the Downtown Development Authority of the City of Miami.

Director is defined as the director of the department of resilience and public works.

Downtown Miami special vending district is defined as all public rights-of-way within that area generally commensurate with the boundaries of the Miami Downtown Development Authority, but more specifically described as that area bounded on the east by Biscayne Bay, except between Northeast 17th Street and Northeast 24th Street; on the north by the commercial corridors along Biscayne Boulevard from Northeast 17th Street to Northeast 24th Street; on the west by the Florida East Coast Railway from Northwest 17th Street, Northwest Fifth Street, then west along Northwest Fifth Street to Northwest Third Avenue to West Flagler Street, then west along Flagler Street to the Miami River, then east to the Metrorail guideway; and on the south by Southeast 15th Road; but shall exclude the area comprising the Miami Arena Special Vending District. Said district shall be subdivided into three areas for purposes of awarding franchises and setting franchise fees: area A, which shall consist of Flagler Street between Biscayne Bay and the Miami River; area B, which shall consist of Northeast/Northwest First Street and Southeast/Southwest 1st Street between Biscayne Bay and the Miami River; and area C, which shall include those areas north and south of areas B as follows: the northern segment of area C shall consist of that area bounded on the south by Northeast/Northwest Second Street, on the North by Northeast/Northwest 24th Street, on the west by the Miami River and on the east by Biscayne Bay, but shall not include the area comprising the Miami Arena Special Vending District; the southern segment of area C shall consist of that area bounded on the North by Southeast/Southwest Second Street, on the east by Biscayne Bay, on the west by the Miami River and Southwest Third Street, and on the south by Southeast/Southwest 15th Road.

Executive director is defined as the executive director of the Downtown Development Authority of the City of Miami.

Extended sidewalk is defined as sidewalk either at an intersection or midblock which has been approximately doubled in width to occupy a former parking lane.

Flowers, plants and produce means freshly cut flowers and fresh fruits and vegetables but does not include consumable hemp or cannabis products.

Food is defined as solid food and beverages allowed to be sold in accordance with this article.

Franchise is defined as the exclusive right to vend in a special vending district pursuant to the provisions of sections 39-33, 39-34, and 39-37.1.

Franchise document or *franchise permit* is defined as a document provided by the executive director or director to evidence the right granted pursuant to sections 39-33, 39-34, and 39-37.1 to exclusively vend in a specified vending zone.

Franchise period is defined as the time, which shall be one year, (except for the inaugural franchise period for the Biscayne Boulevard special vending district, which shall be until September 30, 2001), a vendor may be granted the franchise for a specific vending zone.

Licensee is defined as any person or business entity which has been issued or controls one or more licenses to conduct vending activity in the city.

Mobile food dispensing vehicle means any vehicle that is a public food service establishment and that is self-propelled or otherwise movable from place to place and includes self-contained utilities, including, but not limited to, gas, water, electricity, or liquid waste disposal or as defined in F.S. § 509.102, as amended.

Mobile sales vendor means any person engaged in retail sales from a motor vehicle, other than a mobile food dispensing vehicle, that sells consumer products and is self-propelled or otherwise movable from place to place and includes self-contained utilities, including, but not limited to, gas, water, electricity, or liquid waste disposal.

Motor vehicle is defined as any vehicle used for the displaying, storing, or transporting of articles offered for sale by a vendor, which is required to be licensed and registered by the department of highway safety and motor vehicles.

Open flame is defined as being a heat source which consists of a visible flame or which produces smoke at any time.

Open flame cooking is defined as the cooking of food utilizing a heat source which consists of a visible flame or which produces smoke during the cooking process.

Person is defined as any natural individual, firm, trust, partnership, association, or corporation, in his/her or its own capacity or as administrator, conservator, executor, trustee, receiver, or other representative appointed by a court. Whenever the word "person" is used in any section of this article prescribing a penalty or fine as applied to partnerships or associations, the word shall include the partners (both general and limited) or members thereof, and such word as applied to corporations shall include the officers, agents, or employees thereof who are responsible for any violation of said section.

Planning sticker is defined as the sticker issued by the planning, building and zoning department pursuant to section 39-34(7).

Posted notice lottery is defined as a lottery with notice to be given solely by the posting of at least four signs in each of the city's special and restricted zoning districts, with the exception of the arcade and Miami Arena vending districts, at least 30 days prior to the lottery date.

Pushcart is defined as a wheeled vehicle propelled solely by a single human.

Qualified vendor is defined as any vendor who successfully completes prequalification of his, her or its application for a vending zone; including pushcart certification and proof of all required licenses and permits.

Restaurant arcade vending zone is defined as the ground level public right-of-way sidewalk area under a restaurant arcade, and shall include any widened area of such sidewalk which may extend beyond and parallel to the street side of such restaurant arcade.

Right-of-way is defined as land dedicated, deeded, used or to be used for a street, alley, walkway, sidewalk, boulevard, drainage facility, access for ingress or egress, or other purpose by the public, certain designated individuals of governing bodies.

Special vending districts are designated pursuant to the provisions of section 39-33 and 39-35.

Stand is defined as any table, showcase, bench, rack, pushcart, or any other wheeled vehicle or device which may be moved without the assistance of a motor and which is not required to be licensed and registered by the department of highway safety and motor vehicles, used for displaying, storing, or transporting of articles offered for sale by a vendor.

Stationary vending is defined as any vending from a fixed location using a stand.

Street as used herein includes any primary accessway such as a street, road, lane, highway, avenue, boulevard, parkway, circle, court, terrace, place, or cul-de-sac, and also includes all of the land lying between the right-of-way lines as delineated on a plat showing such streets, whether improved or unimproved.

Vending is defined as the act of selling, offering for sale, transferring, or offering to transfer food, merchandise or services to another for pecuniary gain including, but not limited to, in a special vending district or vending district.

Vending year is defined as the one-year calendar period from October 1 to September 30.

Vending zone is defined as a rectangular area within a restricted vending district where vending is permitted pursuant to this article; said vending zone to be delineated by markings on the sidewalk delineating a rectangle within the limits of which a vending pushcart may be placed.

Vendor is defined as any person engaged in the selling, or offering for sale, of food, beverages, services, or merchandise on the public streets, or sidewalks from a stand or motor vehicle or from his/her person.

Vendor location is defined as a sidewalk area, within a vending zone, which has been selected and identified by the resilience and public works department as the specific vendor site(s) at which all vending in that zone shall occur.

Wholesale peddler is defined as any person who sells or offers for sale any goods, wares, or merchandise to any person engaged in the business of selling at retail in the city, or to any person for the purpose of resale within the city, or to any drugstore, soda fountain, restaurant, cafeteria, hotel, club or tearoom within the city, from a wagon, truck, auto, pushcart or by any other means, operating in or upon the streets of the city in other than a licensed place of business. Such term shall not apply to a wholesale automobile accessories dealer.

Written matter is defined as newspapers, periodicals, books, pamphlets or other similar written matter.

(Ord. No. 9880, § 1, 9-13-84; Ord. No. 10045, § 1, 9-26-85; Ord. No. 10479, § 1, 9-8-88; Ord. No. 10499, § 1, 10-27-88; Ord. No. 10660, § 1, 10-12-89; Ord. No. 10855, § 1, 3-14-91; Ord. No. 10891, § 1, 6-20-91; Ord. No. 11169, § 2, 7-26-94; Ord. No. 11212, § 3(39-11), 1-12-95; Ord. No. 11249, § 2, 4-27-95; Code 1980, § 39-11; Ord. No. 12002, § 2, 12-14-00; Ord. No. 13105, § 2, 10-8-09; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13947, § 2, 12-10-20; Ord. No. 14163, § 2, 4-27-23; Ord. No. 14182, § 2, 6-8-23; Ord. No. 14282, § 2, 5-9-24)

Sec. 39-27. Intent of article.

The intent of this article is to regulate vending on streets, rights-of-way and publicly owned parking facilities within the corporate limits of the city.

(Ord. No. 10891, § 1, 6-20-91; Code 1980, § 39-11.1)

Sec. 39-28. BTR required.

It shall be unlawful to sell, or offer for sale, any food, beverage, service or merchandise on any street, alley, sidewalk, or public park within the city from any wagon, truck, auto, pushcart, vehicle or by any other means upon the streets, sidewalks, or alleys of the city until the proper BTR has been issued by the city manager or designee, at which time a metal or plastic tag shall be furnished, upon which tag shall be the words describing the kind of vendor, and the year for which the BTR is paid. Such tag shall be, at all times during the period for which the BTR is paid, securely affixed and attached in a conspicuous place on the left side and upon the stand, wagon, truck, auto, pushcart, or other vehicle used in the business by the vendor or wholesale peddler.

(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-12; Ord. No. 13105, § 2, 10-8-09; Ord. No. 13745, § 3, 2-22-18)

Editor's note—Ord. No. 13105, § 2, adopted Oct. 8, 2009, changed the title of § 39-28 from "License required" to "BTR required." The historical notation has been preserved for reference purposes.

Charter reference—Authority of city to license, regulate peddlers, § 3(gg).

City Code cross reference—License fees for peddlers, § 31-50.

Sec. 39-29. License not applicable in certain areas of the city during certain time periods.

BTR issued under the provisions of chapter 31 to vendors shall not be applicable within certain areas of the city designated by the city manager during specific time periods designated for

authorized special events. The areas so designated shall not encompass more than five percent of the total land area of the city; the total of the time periods so specified shall not exceed 30 days in any fiscal year.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-13; Ord. No. 13105, § 2, 10-8-09)

Sec. 39-30. Applications.

The BTR required by section 39-28 shall be issued in accordance with chapter 31, of the City Code. The initial application for a vendor's BTR shall include, in addition to the information required in section 31-35:

(1) Name, home and business address of the applicant and the name and address of the owner, if other than the applicant, of the vending business, stand, or motor vehicle to be used in the operation of the vending business.

(2) A description of the type of food, service, or merchandise to be sold.

(3) A description and photograph of any stand or motor vehicle to be used in the operation of the business, including the license and registration number of any motor vehicle used in the operation of the business. Photograph shall be of standard motor vehicle in operational mode.

(4) Three two-inch by two-inch prints of a full-face photograph, taken not more than 30 days prior to the date of the application, of any person who will sell, or offer for sale, any food, service, or merchandise on any street or sidewalk within the city.

(5) A certificate of inspection, as required by section 39-42.

(6) No BTR is allowed for stationary vending in the in the public right-of-way except for applicants who will be operating in a defined special vending district.

(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-14; Ord. No. 13105, § 2, 10-8-09; Ord. No. 14163, § 2, 4-27-23)

Sec. 39-31. Issuance.

Not later than 30 days after the filing of a completed application for a vendor's license, the applicant shall be notified by the city manager or designee for the decision on the issuance or denial of the BTR. Failure of the city manager or designee to place notification of said decision in the mail or personally notify the applicant with acknowledgment shall require immediate issuance of the requested license to the applicant. The resilience and public works director or designee shall consider the standards set forth in sections 39-32 through 39-43, in determining whether to recommend to the city manager or designee that a BTR be issued. If the issuance of the BTR is approved, the city manager or designee shall issue the BTR. If the BTR is denied, the applicant shall be provided with a statement of the reasons therefor, which reasons shall be entered in writing on the application. The applicant shall be entitled to a hearing, pursuant to section 39-46. A BTR issued pursuant to this action is valid for a period as prescribed in section 31-37.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-15; Ord. No. 13105, § 2, 10-8-09; Ord. No. 13745, § 3, 2-22-18; Ord. No. 13792, § 1, 10-11-18)

Sec. 39-32. Vending prohibited in certain locations.

Vending, but not peddling, is prohibited in the following locations:

(1) Within special vending districts except within designated vending zones of said areas.

(2) From a public parking lot, metered or unmetered parking space, on-street parking space, or loading zone.

(3) Within 500 feet of any property used for school purposes (preschool, elementary, secondary) on all school days between the hours of 7:00 a.m. and 4:30 p.m.*

(4) On any combination sidewalk and curb width less than six feet in width.

*__County Code cross reference—__Similar provisions, § 21-27.1.

(5) Within five feet of the entranceway to any building.

(6) Within 100 feet of any driveway entrance to a police or fire station, or within 20 feet of any other driveway.

(7) Within 20 feet of any bus stop zone.

(8) Within five feet of the pedestrian crosswalk at any intersection, or designated pedestrian crossing point.

(9) Within ten feet of any handicapped parking space, or access ramp.

(10) Within 20 feet of a sidewalk cafe permitted pursuant to chapter 54 of the City Code.

(11) Within the boundaries of the Wynwood Business Improvement District.

(12) Within the boundaries of the Coconut Grove Business Improvement District.

(13) Within the right-of-way abutting a T3 transect zone.

(14) Stationary vending is prohibited on any public right-of-way other than those located and licensed in a defined special vending district, as allowed.

(15) Within the right-of-way abutting properties located in the Miami Design District Retail Street Special Area Plan, except when expressly permitted by Appendix F of the Miami 21 Code, including any associated development agreements, and following the issuance of any required permits.

(Ord. No. 9880, § 1, 9-13-84; Ord. No. 10045, § 1, 9-26-85; Ord. No. 10499, § 1, 10-27-88; Ord. No. 10660, § 1, 10-12-89; Ord. No. 10891, § 1, 6-20-91; Ord. No. 11212, § 3(39-16), 1-12-95; Code 1980, § 39-16; Ord. No. 13947, § 2, 12-10-20; Ord. No. 14163, § 2, 4-27-23; Ord. No. 14282, § 2, 5-9-24)

Sec. 39-33. Limitations within the Downtown Miami special vending district.

Vending within the Downtown Miami vending district shall be subject to all generally applicable rules and regulations in this article except as contrarily and specifically provided below:

(1) No merchandise shall be vended or displayed other than:

a. Prepackaged foods, as defined by 61C-4.009, Florida Administrative Code (1994), as amended, of the snack food type.

b. Prepared foods including, but not limited to: ice cream, baked goods, fresh fruit and the like.

c. Unprepared foods including, but not limited to: hot dogs, crepes and the like.

d. Plants and flowers including, but not limited to: fresh cut or dried flowers or potted plants and the like.

(2) Vending of merchandise shall be prohibited from any type of vehicle or stand other than a pushcart of the specific types and construction shown and described on composite "exhibit B," attached to Ordinance No. 11212. Pushcarts satisfying said criteria may be purchased by the DDA utilizing fees collected from vending zone franchises and may be leased to the franchisees at lease rates to be determined by the DDA. Vendors shall not be precluded from using non-DDA provided equipment or pushcarts. However, said materials shall satisfy the above criteria and be inspected and certified by DDA as having complied with this section.

(3) No merchandise, supplies, containers or any other items related to the vendor shall be placed anywhere within the public right-of-way other than on or concealed within the pushcart, with the exception of one folding chair or wooden stool of a type approved by the DDA.

(4) No vendor or entity shall own, operate, hold or control a local business tax receipt for more than one pushcart in the herein district.

(5) Vending zones.

a. Assignment of vendors to specific vending zones.

1. Franchise rights.

i. Vending in vending zones within the Downtown Miami special vending district shall be the subject of inquiries from duly licensed vendors willing to pay for the franchise right to vend exclusively from a specifically identified vending zone, subject to applicable rules, regulations, ordinances and statutes governing vending. There shall be a monthly franchise fee of $100.00 for area A, $50.00 for area B, and $20.00 for area C. As a condition precedent to the granting of a franchise, the first full monthly payment and any partial month preceding the first full month, pro rated, shall be paid at the time the franchise is granted. Each succeeding monthly payment shall be paid by the franchisee, at the office of the DDA, on the first day of each month (on the following Monday if the first is on weekend, and the next day if the first is on a national holiday which closes City of Miami offices on such Monday). Payments shall be made by cashier's check, bank-certified funds, or money order payable to the City of Miami.

Failure to tender required payments on the dates specified shall invalidate said franchise award and vacate the vending zone.

b. Location of vending zones.

1. There shall be a maximum of 75 vending zones in this district, with 25 allotted to each of those areas to be known as A, B, and C. Vending zones shall be delineated by the DDA in cooperation with the resilience and public works department based upon the following criteria:

i. Vending zones shall be located in areas where the sidewalk width is sufficient to accommodate regular daily peak-hour pedestrian flow plus the six-foot sidewalk width necessary for the vending zone, with a minimum of friction and pedestrian inconvenience.

ii. Vending zones shall, whenever possible, be located where the sidewalk and curb have been extended into the street forming a pedestrian peninsula.

iii. Along the streets, where the sidewalk does not meet the above criteria, vending zones may be located in areas of the sidewalk constricted in width by existing utility poles, benches, signposts, trees, and similar permanent obstructions.

iv. Vending zones shall conform to all limitations listed in section 39-32 except as contravened in this section.

v. Vending zones shall be limited to no more than ten percent of the linear frontage of each block. Priority shall be given to qualified areas near street corners and major nonresidential building entrances. Said zones shall have a minimum distance separation from one another of 50 feet.

2. No vending shall be permitted within the Downtown Miami special vending district except within the sidewalk areas specifically designated on the official map attached to Ordinance No. 11212 as composite "Exhibit A." Said vending maps, as amended, shall be the official vending zone locator for this district and shall be kept in the office of the city clerk with certified copies being furnished to the executive director, the director, and the city manager's office or its designated city department.

3. Substitute locations amending said map may be considered and approved by the executive director on a case-by-case basis if such locations are in compliance with all the provisions of this article and other applicable regulations. The revised location map shall be immediately filed with the city clerk and copies sent to the director and the city manager's office or its designated city department.

4. Vending zones may also be eliminated.

5. Eliminations or substitutions shall be based on findings by the executive director or director that such action is war-

ranted on health and safety grounds, or necessitated by rights-of-way improvement or private or public construction activity.

c. Lottery.

1. The DDA shall establish and the executive director shall supervise a lottery system whereby those persons possessing, as conditions precedent to participating in the lottery, valid and appropriate state licenses (upon required inspections, from the state department of business and professional regulation for the sale of prepared food, and/or the state department of agriculture for the sale of prepackaged food, or their successor agencies), an local business tax receipt, appropriate state and local sales tax certificates and DDA pushcart certification shall be publicly chosen by chance for vending zones in this district. The executive director, the city manager's office or its designated city department shall assign each vending zone a number corresponding to a location on the appropriate vending map. All qualified vendors shall have their names placed into containers for a public drawing by the executive director or his or her designee to determine which location shall serve as the vending zone for each vendor for the franchise period. At the conclusion of the franchise period all franchise rights shall end and all franchises shall be subject to a new lottery.

2. The DDA is authorized and directed to annually issue a "Notice of Street Vending Franchise Opportunities in Downtown Miami." Said notice for each franchise period shall be publicly advertised in a newspaper of general circulation approximately 60 days prior to each franchise period and shall indicate the pending availability of exclusive vending zones in the district, and the terms of such availability, including the date, place and time of the lottery. Notices as for a posted notice lottery may also be given, but shall be considered courtesy notice only.

3. Utilizing the standards and criteria set forth in this article, the DDA may promulgate such reasonable supplementary rules, regulations and/or procedures as are necessary to implement and effectuate the herein lottery and vending zone assignment process, which shall include participation by a representative of the Downtown Miami Partnership. Said supplementary rules, regulations and procedures shall be filed with the city clerk, and also made available at the DDA and the city manager's office or its designated city department.

4. For vending zones which may become available during the franchise period due to vacancy, abandonment or executive director's or director's action, the executive director may specify the date, time and place for the holding of a special lottery for such designated vending zone(s), and shall publicly advertise said information as for a posted notice lottery.

5. All franchise documents are nontransferable. Sale of a majority of stock in a corporate franchise by stockholders listed on the franchise application or sale of a majority interest in a partnership as listed on the franchise application shall be deemed a transfer of the franchise, which is prohibited. The franchise document shall be in the possession of the vendor and immediately accessible at all times, and shall be displayed to a police officer or code enforcement officer upon request. Failure to immediately provide this document, along with a valid local business tax receipt, the pushcart certification required by subsection (2) of this section, sales tax certificate(s) required by subsection (16) of this section, and appropriate current state inspection license(s) shall be grounds for immediate removal of the pushcart from the vending zone and district, suspension of the franchise and initiation of local business tax receipt and franchise revocation proceedings by the executive director or city manager's office or its designated city department.

6. Franchises awarded pursuant to this section shall be subject to section 39-29. Furthermore, the award of a franchise pursuant to this section does not grant or infer vested rights to the use of the public rights-of-way by the franchisee.

7. Any vending zone or franchise document issued pursuant to this section shall be subject to modification by ordinance at any time deemed necessary by the city commission. Vending in any vending zone may be temporarily suspended or relocated by the director upon reasonable notice when private or public construction or activities or health and safety concerns of the director make it unsafe or impractical to allow vending in that vending zone. Such suspension(s) which last for a continuous or cumulative period in excess of five days of a franchise period shall result in a pro rata refund of the lottery franchise fee paid by the franchisee who is the subject of such suspension. No other payments or compensation shall be owed by the city or due the franchisee as a result of such suspension(s). A vendor so dispossessed may, if possible, be offered a substitute vending zone by the executive director without the necessity of lottery proceedings. Said new location shall be valid for the balance of the time remaining on the vendor's franchise document for that franchise period, or until the vendor's original franchise is again available, whichever date or event occurs first. If a substitute location is accepted by the vendor the refund shall be only for the actual days of suspended operation, and shall not include the assigned day(s) of operation in the substitute location.

8. Vending activity voluntarily terminated, or suspended or revoked due to unauthorized absence or other violations of this article or otherwise violating the Code of the City of Miami, Dade County or general law shall not be the basis for any pro rata refund of a

franchise fee. Revocation of franchise documents based on voluntary termination, unauthorized absences or violations shall result in a forfeiture of the entire franchise fee.

d. Limitations within vending zones.

1. There shall be no more than one vendor permitted to operate within each vending zone.
2. Each vendor shall be permitted to operate within only one vending zone.
3. Each vending zone shall approximate the size of the specific pushcart permitted within said vending zone and shall be clearly marked on the sidewalk.
4. Vending pushcarts shall be, at all times, positioned so that their longest side is parallel to the street curb.

e. All participants in lottery proceedings pursuant to this section shall submit, as a condition precedent to participating, a copy of an appropriate valid local business tax receipt, certification from the DDA that the pushcart which is to be used in this district has been issued a document evidencing compliance pursuant to subsection (2) of this section, sales tax certification pursuant to subsection (16) of this section and the appropriate state license pursuant to subsection (20) of this section.

f. Unauthorized absence from a designated vending zone shall constitute a basis for suspension and revocation of a franchise document. Upon certification by the executive director or the city manager's office or its designated city department that a vending zone has been unoccupied for a continuous period of 15 days for reasons other than those mentioned in subsection (5)c.5 of this section or section 39-29, the executive director or city manager's office or its designated city department shall notify the vendor of the intent to revoke the vendor's franchise unless clear evidence of vending activity during the 15-day period in question is provided to the executive director or city manager's office or its designated city department. Subsequent to ten-day notice mailed by certified mail to the address shown on the vendor's lottery application form, the executive director shall conduct a hearing and may revoke the vending franchise and reward the franchise to a different vendor, pursuant to a posted notice lottery, for the balance of that franchise period. The vendor subject to such revocation may appeal said decision in the same manner provided in section 54-230. An appeal shall not stay an order banishing a pushcart or franchisee.

g. Any franchisee incurring three written notices of violation of this article within a two-year period shall be the subject of the following franchise revocation proceedings:

1. When violations occur, the franchisee shall be notified by the executive director, his/her designee, or the city manager's office or its designated city department in person or via certified mail. The first violation notice or citation shall be a reprimand; the second violation notice or citation shall be a warning; the third violation notice or citation shall result in an automatic revocation of franchise document, immediate removal of the franchisee's pushcart from the district, and banishment of the violator from the district for a period of one calendar year.

2. Revocations may be appealed in the same manner provided in section 54-230. An appeal shall not stay an order to remove a pushcart or banish a franchisee from the district.

h. A franchisee may voluntarily relinquish a franchise through written, notarized notification to the executive director, specifying an effective date. On said date the subject vending zone shall be automatically reclassified as vacant, and subject to reassignment in a special lottery. The relinquishing franchisee shall be ineligible to participate in any lottery in that specific special vending district for the balance of that franchise period.

(6) All goods for sale other than those on display must be stored within the structure of the pushcart and shall not be visible to the general public.

(7) It shall be unlawful for any vendor to use any noise making device to solicit customers.

(8) Pushcarts shall not be chained or otherwise affixed to trees, lightpoles, sign stanchions or any other object in the right-of-way.

(9) Pushcarts shall be required to be in their vending zone between the hours of 9:00 a.m. and 6:00 p.m. on a weekday and between the hours of 10:00 a.m. and 6:00 p.m. on a Saturday or Sunday.

(10) Vending shall be prohibited within eight feet of the entranceway to any building, and within 50 feet of the entranceway to any church, synagogue or other place of worship.

(11) No open flame cooking shall be permitted.

(12) Vending zones shall not be occupied exclusively by a selected vendor pursuant to this section until July 1, 1995. Said date shall initiate the inaugural franchise period for the Downtown Miami special vending district.

(13) Fees collected under this subsection are for franchises granted for the exclusive right to use a portion of the public right-of-way, and are in addition to other permit fees and local business taxes imposed by law.

(14) All franchise fees collected pursuant to this section shall be placed in a special account established for the Downtown Miami special vending district by the City of Miami's director of finance, and shall be utilized exclusively by the executive director, upon approval of the DDA board of directors, for the administration of this district, its management services and purchase or replacement of pushcarts and/or related equipment.

(15) The executive director shall design and distribute to those awarded a vending zone a franchise document identifying the person or entity chosen by lottery, the specific location where said person or entity is to be allowed to vend exclusively during the vending period, and the duration of such entitlement.

(16) Except as otherwise provided in this section all franchise documents issued for vending activity within the district shall be valid for a period of one year or, in the case of special lottery franchisees, the balance of the franchise period. Prior to the expiration date (September 30 of each year), vending zones shall once again be awarded pursuant to the lottery requirements of this section. The reallocation and assignment of vending zones shall become effective on October 1 of each year and no vendor shall be allowed to occupy the same vending zone for two consecutive franchise periods.

(17) All franchise documents issued for vending activity in this district shall only be valid during one franchise period, and shall expire on the expiration date shown on the franchise document and records of

the executive director. Upon such expiration the vendor's exclusive right to such vending zone shall terminate, and vending rotation rights shall once again be awarded pursuant to the lottery procedures of this section.

(18) Liability and insurance.

a. Prior to the issuance of a franchise document, the vendor shall furnish the executive director with a signed statement that said vendor shall hold harmless and indemnify the city and DDA and their officers and employees for any claims for damages to property or injury to persons which may be occasioned by any activity carried on under the terms of the franchise document and associated local business tax receipt.

b. Prior to the issuance of a franchise document, said vendor shall also furnish proof of and maintain such public liability and property damage from all claims and damage to property or bodily injury, including death, which may arise from or in connection with operations under the franchise document and associated local business tax receipt. Such insurance shall provide coverage of not less than $500,000.00 for bodily injury, and property damage respectively per occurrence. Such insurance shall be without prejudice to coverage otherwise existing and shall name as additional insured the city and DDA and their officers and employees, and shall further provide that the policy shall not terminate or be canceled for any reason, prior to the completion of the franchise period without 45 days' written notice to the risk management division of the department of fire-rescue or its successor, the executive director and the director of resilience and public works of the city at the addresses shown in the franchise document.

(19) Sales tax certification. Prior to the issuance of a franchise document, the vendor shall also furnish original evidence of a valid certificate of resale or equivalent document from the Florida Department of Revenue and Metropolitan Dade County, if applicable, evidencing that the vendor and the specific vending activity authorized by said franchise document have been permitted by said tax collection entities to the extent mandated by law. Franchisee(s) shall furnish upon demand, evidence that the herein requested certificate of resale or equivalent document is current. Failure to maintain said certification shall constitute a basis for suspension and/or revocation of a franchise document.

(20) State license inspection and certification. Prior to issuance of a franchise document, the vendor shall also furnish original evidence of a valid license issued, upon inspection, by the state department of business and professional regulation (for vending prepared food, as defined by state regulations) and/or the state department of agriculture (for vending prepackaged food, as defined by state regulations).

(Ord. No. 9880, § 1, 9-13-84; Ord. No. 10479, § 1, 9-8-88; Ord. No. 10633, § 1, 9-14-89; Ord. No. 10805, § 1, 10-25-90; Ord. No. 10891, § 1, 6-20-91; Ord. No. 11212, § 3(39-17), 1-12-95; Ord. No. 11249, § 2, 4-27-95; Code 1980, § 39-17; Ord. No. 11288, § 2, 7-13-95; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14138, § 12, 2-9-23)

Sec. 39-34. Reserved.

Editor's note—Ord. No. 13947, § 2, adopted December 10, 2020, repealed the former section 39-34 in its entirety, which pertained to limitations within the Coconut Grove special vending district, and derived from Ord. No. 10499, § 1, adopted October 27, 1988; Ord. No. 11169, § 2, adopted July 26, 1994; the Code of 1980, § 39-17.1; Ord. No. 11288, § 2, adopted July 13, 1995; Ord. No. 11800, § 3, adopted June 8, 1999; Ord. No. 12885, § 1, adopted February 8, 2007; Ord. No. 13676, § 2, adopted April 27, 2017, and Ord. No. 13792, § 1, adopted October 11, 2018.

Sec. 39-35. Limitations within the Civic Center special vending district.

Vending within the Civic Center special vending district shall be subject to all rules and regulations in this article, including section 39-33, except as contrarily and specifically provided below:

(1) No merchandise shall be vended or displayed other than food and fresh cut flowers.

(2) No licensee shall operate or hold an occupational license for more than one pushcart in the herein regulated district.

(3) Vending zones.

a. Location of vending zones. Vending shall be prohibited in the Civic Center special vending district except within the sidewalk areas generally designated on the graphic attached hereto as "attachment A," which is not reproduced herein. The specific vending locations shall be the responsibility of the department of resilience and public works using the standards and criteria contained in this article. Vending zones and vendor locations may be deleted by the director of the department of resilience and public works upon a finding that the existence of such zone or location creates an obstruction to pedestrian or vehicular traffic or otherwise creates a threat to the public health, safety, or general welfare. Additional locations may be approved by the director of the department of resilience and public works upon a finding that such vending location is in a generally designated area, and otherwise satisfies all provisions of this article and other applicable regulations.

b. Limitations within vending zones.

1. There shall be no more than one vendor permitted to operate from each vending location and such vendor may not move from location to location on the same day.

2. Each vending location shall approximate the size of one permitted pushcart and shall be clearly marked on the sidewalk by the department of resilience and public works.

3. All vending locations shall be spaced a distance of not less than 50 feet from any other vending location.

(4) All goods for sale other than those on display must be stored within the structure of the pushcart and shall not be visible to the general public.

(5) It shall be unlawful for any vendor to use any noise-making device to solicit customers.

(6) Vending pushcarts may not be chained or otherwise affixed to trees, light poles, sign stanchions or other stationary entities on the sidewalk.

(7) Vending is prohibited within the herein vending district between the hours of 7:00 p.m. to 7:00 a.m., and pushcarts shall not be located in this district during these hours.

(8) Open flame cooking shall not be permitted.

(Ord. No. 10660, § 1, 10-12-89; Code 1980, § 39-17.2; Ord. No. 13792, § 1, 10-11-18)

Secs. 39-36—39-37.1. Reserved.

Editor's note—Ord. No. 13947, § 2, adopted December 10, 2020, repealed the former sections 39-36—39-37.1 in their entirety, which pertained to limitations within restaurant arcade vending zones, limitation within Miami Arena special vending district, and limitations within Biscayne Boulevard special vending district, respectively, and derived from Ord. No. 10855, § 1, adopted March 14, 1991; the Code of 1980, §§ 39-17.3, 39-17.4; Ord. No. 12002, § 2, adopted December 14, 2000; Ord. No. 12885, § 1, adopted February 8, 2007; Ord. No. 13676, § 2, adopted April 27, 2017, and Ord. No. 13792, § 1, adopted October 11, 2018.

Sec. 39-38. Prohibited conduct.

No vendor shall:

(1) Leave any stand or motor vehicle unattended.

(2) Store, park, or leave any stand overnight on any street or sidewalk, or park any motor vehicle other than in a lawful parking space, in conformance with city and state parking regulations.

(3) Sell food for immediate consumption unless he/she has available for public use his/her own litter receptacle, which is available for his/her patrons' use.

(4) Allow or keep any animals in motor vehicles or stands.

(5) Leave any location or vending zone without first picking up, removing, and disposing of all trash and refuse remaining within a 15-foot radius. Each vendor shall be responsible for maintaining a 15-foot radius trash and refuse clear area around himself/herself. Said area shall overlap other vendor cleanup areas and no vendor shall leave a location, or vending zone, without cleaning up as required.

(6) Allow any items relating to the operating of the vending business to be placed anywhere other than in, on, or under the stand or motor vehicle.

(7) Set up, maintain, or permit the use of any table, crate, carton, rack, or any other device to increase the selling or displaying capacity of his/her stand, or motor vehicle, where such items have not been described in his/her application.

(8) Solicit or conduct business with persons in motor vehicles located on traffic lanes of public streets and highways.

(9) Sell anything other than that for which he/she is licensed to vend.

(10) Use any noise-making device after 9:00 p.m., except during special events, and at no time shall such a vendor use his/her traffic warning device on any vehicle, except to give necessary signals while in traffic. It shall be unlawful for any vendor to use any noise-making device that either annoys, disturbs, injures, or endangers the comfort, repose, health, peace, or safety of others within the city. Any vendor who violates this section shall upon written notice from the city manager or his/her authorized representative remove said noise-making device from the vehicle or reduce the volume of such noise-making device so that the same shall not be in violation of this section. Failure to comply with such notice shall subject such a vendor to the penalties as set forth in section 39-50.

(11) Allow the stand or any other item relating to the operation of the vending business to lean against or hang from any building or other structure lawfully placed on public property.

(12) Allow any animals to remain within 25 feet of a stand for a period longer than necessary to complete a sale to the person having possession, or control of said animals.

(13) No vendor or mobile sales vendor vending from a motor vehicle shall:

a. Conduct his/her business in such a way as would restrict or interfere with the ingress or egress of the abutting property owner or tenant, or create or become a public nuisance, increase traffic congestion or delay, or constitute a hazard to traffic, life or property, or an obstruction to adequate access to fire, police or sanitation vehicles.

b. Stop, stand, or park his/her motor vehicle upon any street, or permit it to remain there except on the roadway at the curb for the purposes of vending therefrom or in instances where there is no curb, off the roadway. In either instance, sales shall be to occupants of abutting property only.

c. Stop, stand, or park his/her motor vehicle upon any street for the purpose of selling, or sell on any street under any circumstances during the hours when parking, stopping or standing has been prohibited by signs or curb markings or is prohibited by statute or ordinance.

d. Remain in any one place for a period longer than necessary to make a sale after having been approached or stopped for that purpose.

e. Stop, stand, or park his/her motor vehicle within 20 feet of any intersection, except that vehicles vending products likely to attract children as customers shall park curbside when stopping to make a sale, as close as possible to a pedestrian crosswalk without entering the intersection or otherwise interfering with the flow of traffic.

f. Vend within a restricted or special vending district.

g. Vend anywhere prohibited by subsections 39-32(2) through (9) or engage in right-of-way stationary vending anywhere in the city other than a special vending district under the applicable special vending district requirements.

h. Vend any product other than flowers, plants, or produce.

(Ord. No. 9880, § 1, 9-13-84; Ord. No. 10045, § 1, 9-26-85; Ord. No. 10499, § 1, 10-27-88; Code 1980, § 39-18; Ord. No. 13676, § 2, 4-27-17; Ord. No. 14163, § 2, 4-27-23; Ord. No. 14182, § 2, 6-8-23)

City Code cross references—Parking for purpose of selling merchandise from vehicle generally prohibited, § 35-10(a)(4); towing of vehicles, § 42-101 et seq.

Sec. 39-39. Open flame cooking.

Open flame cooking is prohibited; except that such activity may take place as an integral part of a public assembly as permitted by the fire-rescue department, or in conjunction with the street festival, as approved by city commission resolution. The permitted public assembly or street festival exception shall be subject to the festival organizers obtaining permits from the fire-rescue department and such other departments or agencies as may be required by law.
(Ord. No. 10869, § 2, 4-11-91; Ord. No. 10891, § 1, 6-20-91; Code 1980, § 39-18.1)

Sec. 39-40. Open flame use.

Open flame use is prohibited; except that such activity may take place as an integral part of a public assembly as permitted by the fire-rescue department, or in conjunction with a street festival, as approved by city commission resolution. The permitted public assembly or street festival exception shall be subject to the festival organizers obtaining permits from the fire-rescue department and such other departments or agencies as may be required by law.
(Ord. No. 10891, § 1, 6-20-91; Code 1980, § 39-18.2)

Sec. 39-41. Size requirements for vending stands.

No stand shall exceed three feet in width and six feet in length and five feet in height exclusive of the height of umbrellas, canopies, and similar devices, except that stands within the Downtown Miami special vending district shall not exceed three and one-half feet in width. Canopies and umbrellas shall have a minimum seven-foot clearance above ground level.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-19; Ord. No. 13947, § 2, 12-10-20)

Sec. 39-42. Health and sanitation requirements for food vending.

Vendors of food shall comply with the requirements and standards of the department of health and the following:

(1) The equipment used in vending food shall be inspected by department of health upon application for a license and receive a certificate of inspection upon compliance with this section.

(2) Each food vending business shall be so inspected at least twice a year.

(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-20)

Sec. 39-43. Safety requirements.

All motor vehicles in or from which food is prepared or sold shall comply with the following requirements:

(1) All equipment installed in any part of the vehicle shall be secured in order to prevent movement during transit and to prevent detachment in the event of a collision or overturn.

(2) All utensils shall be stored in order to prevent their being hurled about in the event of a sudden stop, collision or overturn. A safety knife holder shall be provided to avoid loose storage of knives. Any glass must be safety plate clearly identified by its manufacturer as such.

(3) Compressors, auxiliary engines, generators, batteries, battery chargers, gas-fueled water heaters, and similar equipment shall be installed so as to be accessible only from outside the vehicle.

(4) All heated stands shall have an easily accessible fire extinguisher with a valid inspection sticker.

(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-21)

Sec. 39-44. Advertising.

No advertising, except the posting of prices, shall be permitted on or attached to any stand or motor vehicle, except to identify the name of the product. This section does not prohibit the use of umbrellas bearing logos of products sold at the stand or motor vehicle to which it is attached.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-22)

Sec. 39-45. Renewal.

Subject to the provisions of section 39-29, all licenses are valid for the entire licensing period unless revoked or suspended prior to expiration. Application to renew a BTR shall be made not later than 30 days before the expiration of the current BTR in accordance.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-23; Ord. No. 13105, § 2, 10-8-09)

Sec. 39-46. Denial, suspension, revocation.

Any license or permit may be denied, suspended or revoked in accordance with the procedures contained in chapter 31 for any of the causes set forth in said chapter 31 in addition to the following causes:

(1) Fraud or misrepresentation contained in the application for the BTR or permit.

(2) Fraud or misrepresentation made in the course of carrying on the business of vending.

(3) Carrying or possessing dangerous weapon.

(4) Conduct of the BTR holder permitted business in such manner as to create a public nuisance, or constitute a danger to the public health, safety, welfare or morals.

(5) Conduct which is contrary to the provisions of this article.

(6) Right-of-way stationary vending in an area other than a defined special vending district, as allowed.

Continued operation following denial, suspension or revocation shall not be allowed.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-24; Ord. No. 13105, § 2, 10-8-09; Ord. No. 14163, § 2, 4-27-23)

Sec. 39-47. Notice on premises that uninvited vendors, solicitors, peddlers, etc., are not wanted.

(a) It shall be the duty of the person in possession of any premises who desires that the occupants of the premises remain unmolested by the visits of uninvited solicitors, peddlers, vendors, itinerant merchants, door-to-door canvassers or hawkers to post in a conspicuous place near the door or on the premises a sign in letters at least one and one-half inches high with the words "no peddlers," "no solicitors," "no trespassing" or otherwise signifying externally the wish for the occupants of the premises to remain unmolested by such visitors.

(b) It shall be unlawful for any uninvited solicitors, peddlers, vendors, itinerant merchants, door-to-door canvassers or hawkers to visit or go

upon any premises which have been posted with a notice as prescribed in this section, to the effect that the person in possession or the occupants of the premises desire to remain unmolested.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-25)

Sec. 39-48. Exemptions as to farm products.

(a) Nothing contained in sections 39-28 or 39-32(3) shall be construed to affect or apply to the producer of farm or grove products where the same are being offered for sale or sold by the farmer or grower producing such products.

(b) The farmer or grower offering for sale or selling in the city the farm or grove products produced by such farmer or grower shall furnish satisfactory evidence that such products being sold or offered for sale have been grown by him/her.

(c) The members of the police department, as well as the license inspectors, are authorized and directed to obtain affidavits or written statements from such grower or producer of the farm or grove products when the same are being offered for sale or sold by him/her in the city, such affidavit or written statement showing and stating that the farm or grove products have been grown by such farmer or grower.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-26; Ord. No. 13676, § 2, 4-27-17)

Sec. 39-49. Exemptions for vendors who exclusively vend written matter.

Vendors who exclusively vend written matter are exempt from the following provisions of this article: sections 39-28 through 39-33, 39-38(1) and (2), 39-38(11), and 39-41.
(Ord. No. 10045, § 1, 9-26-85; Code 1980, § 39-26.1)

Sec. 39-50. Penalty.

Except as may be provided in section 39-51, any person violating any provision of this article shall be punished as provided in section 1-13, or pursuant to chapter 2, article X of the City Code. These penalties shall not preclude any other remedies available at law or in equity, including, injunctive relief in the circuit court.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-27; Ord. No. 14182, § 2, 6-8-23)

Sec. 39-51. Violation a nuisance; summary abatement.

(a) The placement of any stand or device on any sidewalk or street in violation of the provisions of this article is declared to be a public nuisance. The police department may cause the removal of any stand or device found on a sidewalk or street in violation of this article and is authorized to store such stand or device until the owner thereof shall redeem it by paying the removal and storage charges therefor to be established by the police department.

(b) Any motor vehicle operated by a mobile sales vendor in violation of this article may be seized and impounded by the city. The motor vehicle will be returned to the mobile sales vendor after any towing and storage fees have been satisfied.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-27.1; Ord. No. 14182, § 2, 6-8-23)

Sec. 39-52. Enforcement of article.

(a) It shall be the duty of the members of the police department, BTR inspectors, and code inspectors of the city, to enforce the terms and conditions of this article, and if any person is found violating the provisions of this article to arrest such person and hold such violator for proper legal action in the county court or cite such person for appearance before, and action by, the city's code enforcement board.

(b) All issued BTRs being misused for stationary vending in the right-of-way prior to the adoption of Ordinance [14163] are revoked unless issued for an area located in a defined special vending district in compliance with the applicable requirements of the defined special vending district. This does not include BTRs issued to peddlers.
(Ord. No. 9880, § 1, 9-13-84; Code 1980, § 39-27.2; Ord. No. 13105, § 2, 10-8-09; Ord. No. 14163, § 2, 4-27-23)

Chapter 40

PERSONNEL*

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*__Charter references—__Civil service, § 36; pension funds, § 37; compensation of officers and employees, § 41(d).

__City Code cross references—__Personnel management department, § 2-556 et seq.; city affirmative action advisory board, § 2-976 et seq.

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ARTICLE I. IN GENERAL

Sec. 40-1. Registration and fingerprinting—Generally.

(a) All temporary and permanent employees of the city, inclusive of both the classified and unclassified services thereof, shall submit themselves to the police department for registering and fingerprinting. All persons whose names shall appear upon any eligible list for employment in the classified service of the city shall register and shall be fingerprinted by the police department before appointment to any position in such service. All persons filing applications for employment in the classified service of the city shall register and shall be fingerprinted by the police department before such persons shall be eligible for examination or for appointment to the position with the city for which the applications shall have been made. No person shall be employed by the city without such person first having been registered and fingerprinted by the police department.

(b) The provisions of this section shall not apply to those employees registered and fingerprinted by the city prior to July 30, 1941.

(c) Failure to comply with this section shall constitute grounds for the immediate dismissal of any present or future employee of the city, and the civil service code of rules and regulations of the city is hereby amended so as to make such noncompliance a ground for dismissal from municipal employment.

(d) Elected officials are prohibited from hiring or retaining the services of any person/employee who is on probation and/or under criminal investigation. Likewise, elected officials are prohibited from hiring or retaining the services of any consultant on probation and/or under criminal investigation.

(e) Pursuant to F.S. § 166.0442, as amended, state and national criminal history record checks shall be required for all firefighter applicants for the city.

(1) All prospective firefighter applicants shall be required to authorize the city to conduct all appropriate background screening procedures as a condition of employment with the city, including but not limited to obtaining fingerprints.

(2) Fingerprints obtained pursuant to this section shall be submitted to Florida Department of Law Enforcement for state criminal history record check and to the Federal Bureau of Investigations for a national criminal history record check, or in accordance with policies and procedures promulgated by the Florida Department of Law Enforcement and the Federal Bureau of Investigations.

(3) The information obtained for each criminal history record check conducted under this section shall be used to determine an applicant's eligibility for employment in the city.

(4) This section is not intended to preempt or prevent any other background screening, including but not limited to, criminal background checks that the city may lawfully undertake.

(Code 1967, § 41-1; Code 1980, § 40-1; Ord. No. 13979, § 2, 3-25-21; Ord. No. 14248, § 2, 1-11-24)

Sec. 40-2. Same—Supervision.

The civil service board shall supervise the registering and fingerprinting of all employees. The city manager shall arrange for the registering and fingerprinting as required in section 40-1 in a manner which will create a minimum amount of confusion and loss of time among employees.

(Code 1967, § 41-2; Code 1980, § 40-2)

Sec. 40-3. Physical examinations required for membership in retirement system or plan; medical requirements for membership.

(a) All city employees shall submit to an employment physical examination by the city-designated physician or some other physician authorized by the retirement board, before such employees may be accepted into membership in the city employees' retirement system or plan.

(b) Any employee with a specific disability at the time of his/her employment by the city shall waive, in writing, his/her right to any claim for accidental or service-incurred pension based upon such preemployment disability or any aggravation thereof, upon his/her entrance into the retirement system or plan. Any employee with a preemployment disability shall be eligible for accidental disability retirement allowance only if it can be shown to the satisfaction of the retirement board that he/she would have been entitled to an accidental disability retirement allowance notwithstanding the preemployment disability. An employee may only benefit from the city employees' retirement system or plan if such disability is the proximate result of an accident occurring while in the actual performance of duty at a definite time and place as is otherwise provided in the city employees' retirement system or plan.
(Code 1967, § 41-3; Code 1980, § 40-3; Ord. No. 13676, § 2, 4-27-17)

Secs. 40-4—40-30. Reserved.

ARTICLE II. OLD-AGE AND SURVIVORS INSURANCE*

Sec. 40-31. Purpose and applicability of article.

(a) It is hereby declared to be the policy and purpose of the city to extend, effective as of January 1, 1955, to the employees and officials of the city, not excluded by law or excepted in this article, the benefits of the system of old-age and survivors insurance as authorized by the federal social security act and amendments thereto, and by F.S. ch. 650, and to cover by such plan all services which constitute employment as defined in F.S. § 650.02, performed in the employ of the city by employees and officials thereof, except the following:

(1) Service of an emergency nature.

(2) Service in any class of positions the compensation for which is on a fee basis.

(3) Service performed by employees who are members of the city employees' retirement system.

(4) Service in any class of part-time positions, a "part-time position" being defined as one which does not normally require more than 500 hours of work in any 12-month period.

(b) Effective as of January 1, 1975, the aforesaid benefits of the system of old-age and survivors insurance as authorized by the federal social security act and amendments thereto and hereafter and by F.S. ch. 650 are extended to city officials performing services in the employ of the city in elective positions.
(Code 1967, § 41-4; Ord. No. 9209, § 1, 11-26-80; Code 1980, § 40-19)

Sec. 40-32. Execution of agreements.

(a) The city manager is hereby authorized and directed to execute all necessary agreements and amendments thereto with the state agency,† and to request the governor of the state to authorize an employee referendum, for the purpose of extending the benefits provided by the system of old-age and survivors insurance to the employees and officials of this city, as provided in the preceding section, which agreement shall provide for such methods of administration of the plan by the city as are found by the state agency to be necessary and proper, and, subject to employee referendum, shall be effective with respect to services in employment covered by such agreement performed on and after January 1, 1955.

(b) There is hereby excluded from this section any authority to include in any agreement entered into any firefighter's or police officer's position now covered by a retirement system.
(Code 1967, § 41-5; Code 1980, § 40-20)

Sec. 40-33. Withholdings and appropriations.

(a) Withholdings from salaries, wages or other compensation of employees and officials for the purpose provided in section 40-31 are hereby

*__State law references—__Social security for public employees, F.S. ch. 650; plans for coverage of employees of political subdivisions, F.S. § 650.05.

†__Note—__Following amendments by Laws of Fla., chs. 69-106 and 73-326, "state agency" for purposes of F.S. § 650.0214, means the division of retirement of the department of administration.

authorized to be made, and shall be made, in the amounts and at such times as may be required by applicable state or federal laws or regulations, and shall be paid over to the state agency designated by such laws or regulations to receive such amounts.

(b) There shall be appropriated from available funds derived from ad valorem taxes and other revenues such amounts, at such times, as may be required to pay promptly the contributions, assessments and referendum costs required of the city as applicant or employer by state or federal laws or regulations, which shall be paid over to the lawfully designated state agency at the times and in the manner provided by law and regulation.
(Code 1967, § 41-6; Code 1980, § 40-21)

Sec. 40-34. Adoption of federal law.

The city hereby adopts the terms, conditions, requirements, reservations, benefits, privileges and other conditions thereunto appertaining of title II of the federal social security act, as amended, for and on behalf of all officers and employees of its departments and agencies to be covered under the agreement provided for in section 40-32.
(Code 1967, § 41-7; Code 1980, § 40-22)

Sec. 40-35. Records, reports, etc.

The city shall keep such records and make such reports as may be required by applicable state or federal laws or regulations, and shall adhere to the regulations of the state agency.
(Code 1967, § 41-8; Code 1980, § 40-23)

Sec. 40-36. Duties of director of finance.

The director of finance is hereby designated the custodian of all sums withheld from the compensation of officers and employees and of the appropriated funds for the contribution of the city under this article, and the director of finance of the city is hereby made the withholding and reporting agent and charged with the duty of maintaining personnel records for the purposes of this article.
(Code 1967, § 41-9; Code 1980, § 40-24)

Secs. 40-37—40-60. Reserved.

ARTICLE III. CIVIL SERVICE RULES AND REGULATIONS*

Sec. 40-61. Definitions.

For purposes of this article:

Advancement means a transfer made in accordance with this article to a classification which has a higher salary range and for which there is no requirement that the employee must have first held status in a lower classification.

Age limit is the established limit on age. An applicant will be deemed to be within the age limit for examination if the anniversary of his/her birth date falls within one month of the date of the examination.

Board when used by itself refers to the civil service board of the city.

Change in classification is a change to a different classification with no change in pay range or a change to a classification with a lower pay range in which the employee held no previous status. A change in classification is based on a voluntary request or other reason not involving discipline.

Civil service shall comprise all positions of trust, skill or employment, including all employees, whether permanent or temporary, in the service of the city, except as otherwise provided by the City Charter.

Classified service comprises all positions not exempted by the Charter in accordance with this article. The Charter shall be interpreted broadly to include employees in federal grant programs whenever the director of the personnel management department determines that it is feasible to select such employees in accordance with the selection requirements of these rules. The classified service shall be divided into three classes, to be designated "competitive," "noncompetitive" and "labor."

Competitive class shall include all positions and employment for which it is practicable to determine the merit and fitness of applicants by competitive examinations as determined by the director of the personnel management department.

Demotion is a reduction in classification and status. A demotion is used when an employee is found to be unsatisfactory in the employee's higher level or for disciplinary reasons.

Eligible register is a list of persons who have qualified through suitable examination for employment in positions allocated to a specified class or to a limited number of clearly defined positions within a class.

Labor class shall include unskilled labor.

New position means a position created either by:

(1) An authorized addition of a position to an organization unit;

(2) Creation of a position not previously existing; or

(3) Reclassification of a previous position.

Noncompetitive class shall include all positions requiring peculiar and exceptional qualifications of a scientific, managerial, professional or

*__Charter references__—Civil service, § 36; civil service board to adopt, amend and enforce a code of rules and regulations, § 36(d).

educational character as may be determined by the director of the personnel management department in accordance with the City Charter.

Permanent employee means any employee in the classified service who has been regularly appointed, after serving a probationary period, to a position which normally involves continuous year-round service.

Position is a group of current duties and responsibilities assigned, or delegated by competent authority, requiring the full-time or part-time employment of one person.

Probationary employee means any employee in the classified service who has been regularly appointed to a position but who has not completed the required probationary period. A "probationary employee" is an employee initially employed in a classified position, or an employee who is in the classified service, but who has been promoted, advanced, demoted or changed in classification and who has not completed the probationary period provided in sections 40-96 and 40-97 hereof. A probationary employee has no civil service rights and may be returned to a former classification in which the employee held permanent status, or be discharged if in an entrance position, upon being notified in writing, but shall not be accorded a hearing before the civil service board.

Probationary period is that period of service which an employee must complete prior to obtaining permanent appointment.

Promotion means a transfer made in accordance with this article from a lower to a higher classification in the same job family, involving a requirement that the employee must have first held status in the lower classification to be eligible for promotion.

Return to former classification is a reversion to a classification in which the employee held status prior to promotion, advancement, change in classification, or appointment to the unclassified service, due to voluntary request or other reason not involving discipline.

Temporary employee means any employee appointed for a special period, for a special project, or to replace a regular employee on leave. Temporary employees accrue no civil service rights in their temporary classifications.

Unclassified service comprises those positions specified in section 36 of the City Charter, which shall be interpreted in accordance with the following:

(1) The city manager's "assistants and secretarial staff" shall include all members of the city manager's personal staff. Such positions also shall include assistants and secretarial staff positions authorized in the city budget for the mayor and each member of the city commission, provided that employees of such positions shall be nominated by the mayor or each commissioner, who shall determine the salary and tenure of such employees, subject to budgetary allocation by the city commission and provided that any benefits afforded to such employees by a commissioner or the mayor are consistent with benefits provided by the city generally to other city employees based on the employee's position and/or title, and which employees shall be appointed by the city manager. The mayor or a member of the city commission may authorize extra compensation for their assistants and secretarial staff positions including a lump-sum bonus payment to reward outstanding employees whose performance exceeds standards, provided that such bonus payment may not be included in an employee's regular base rate of pay and may not be carried forward in subsequent years.

Upon leaving office the mayor or a member of the city commission is authorized to provide a one time lump-sum bonus payment to an employee provided that:

a. The employee's performance has exceeded standards;

b. The payment does not exceed the elected official's current year budget appropriations for that item; and

c. The city commission approves such payment.

The city manager shall place such one time lump-sum bonus payment request on the next available city commission agenda for consideration by the city commission.

(2) The "heads of departments" shall include the directors of all departments, agencies and offices created by the City Charter, city ordinance or city budget under the direction of the city manager.

(3) "Assistants to department heads" shall include not to exceed five positions in each city department, agency or office as authorized by the city manager. Such positions shall be in addition to those positions specified by title in section 36 of the City Charter.

(4) Positions funded under federal grant programs shall be unclassified only when the director of the personnel management department determines that it is not feasible to select employees for such positions in accordance with the selection requirements of these rules.

Personnel with permanent civil service rights appointed to unclassified positions shall retain and continue to accrue civil service rights in the classified position from which the appointment was made.
(Ord. No. 8977, § 2 (rule 1 (1.1—1.19), rule 9 (9.1)), 7-24-79; Code 1980, § 40-36; Ord. No. 12907, § 1, 4-12-07)

City Code cross reference—Provisions relative to change of status to unclassified service, § 40-94.

Sec. 40-62. Repeal of, transition from prior civil service rules and regulations.

(a) All previous ordinances and rules for admission to the classified service of the city, tenure of employment and promotion therein, and to any branch thereof, and for appointment of examiners thereunder, are hereby annulled and repealed.

(b) All persons in the employ of the city holding positions in the classified service at the time of adoption and approval of these rules shall, unless their positions be abolished, retain same until discharged, reduced, promoted, laid off, or transferred, in accordance herewith. (This is not to be interpreted to mean those employees who have been put to work in contradiction to these rules and regulations.)
(Ord. No. 8977, § 2 (rule 19 (19.1, 19.3)), 7-24-79)

Sec. 40-63. Actions in conflict with rules and regulations; correction of errors.

Any act or resolution of the board that may subsequently be found to be not in accordance with the rules and regulations of this article shall, immediately upon discovery of such nonconformity, be declared null and void and of no effect. The board shall have the power to correct by proper resolution any error of whatever nature, immediately upon the discovery of same.
(Ord. No. 8977, § 2 (rule 19 (19.1)), 7-24-79; Code 1980, § 40-38)

Sec. 40-64. Change of rules and regulations.

The rules contained in this article may be amended, repealed or supplemented by the board at any time, and new rules adopted; provided that no such amendment, repeal or supplement shall be adopted in less than 15 days after its proposal and that it shall not become operative until approved by the city commission.
(Ord. No. 8977, § 2 (rule 18 (18.1)), 7-24-79; Code 1980, § 40-39)

Sec. 40-65. Department rules.

The director of each department shall make the rules for the conduct of his/her department. Such rules shall be subject to the approval of the city manager, shall be filed with the board, and shall not be in conflict with the civil service rules.
(Ord. No. 8977, § 2 (rule 2 (2.4)), 7-24-79; Code 1980, § 40-40)

Sec. 40-66. Organization of civil service board; duties generally; funding.

(a) *Organizational meeting.* Immediately after appointment, the board shall elect one of its members as chairperson, then elect one of its

members to serve as chief examiner and secretary. The board shall next appoint an executive secretary. Any three members of the board shall constitute a quorum. Selection of the chairperson, the chief examiner-secretary and the executive secretary shall be by majority vote of the board members present.

(b) *Duties generally.* After the chairperson, chief examiner and executive secretary have been chosen, the new board will next adopt the existing rules of the board with such amendments as it may elect to make or it may adopt an entirely new set of rules, subject to the approval of the city commission. The board shall perform such other functions as may be delegated by the city commission.

(c) *Funding.* The salaries of the board and its employees shall be determined by the city commission, and a sufficient sum shall be appropriated each year to carry out the civil service provisions of the City Charter.
(Ord. No. 8977, § 2 (rule 2 (2.1, 2.6)), 7-24-79; Code 1980, § 40-41; Ord. No. 13676, § 2, 4-27-17)

Editor's note—The city has advised that internal rules and regulations relative to conduct of the affairs of the board, when and if adopted, are to be considered a separate and distinct body of rules from the general civil service rules and regulations as contained in this article.

Sec. 40-67. Duty of board to review personnel policies.

It shall be the duty of the civil service board to review and recommend new and improved personnel policies to the city commission, the city manager, the director of the personnel management department and other departments and agencies of the city government. In fulfilling this responsibility, the board may, from time to time, conduct public hearings and may, in its discretion, take testimony under oath from city officials, residents of the city, city employees and their representatives, and experts in the field of personnel administration. The board may place its findings and recommendations in the minutes of the board or in written reports which the board may submit to the city commission, the city manager and the director of the personnel management department.
(Ord. No. 8977, § 2 (rule 4 (4.1)), 7-24-79; Code 1980, § 40-42)

Sec. 40-68. Conduct of board meetings.

(a) *Arranging appearance.* Anyone desiring an appearance before the board shall confer with the executive secretary who will make the necessary arrangements or consult with the board.

(b) *Accessibility to public.* All meetings of the board shall be open to the general public. Equipment necessary to transmit board meetings shall be set up prior to the time scheduled for the board to meet.

(c) *Majority vote.* In all questions coming before the board, a majority vote shall control.

(d) *Quorum.* Three members shall constitute a quorum.
(Ord. No. 8977, § 2 (rule 2 (2.7, 2.8), rule 19 (19.2)), 7-24-79; Code 1980, § 40-43)

Sec. 40-69. Duties of chief examiner.

(a) It shall be the duty of the chief examiner to verify all minutes and records of the board. The chief examiner shall provide examinations in accordance with regulations of the board and maintain lists of eligibles of each class of the services of those meeting the requirements of said regulations. Positions in the classified service shall be filled by him/her from such eligible lists upon requisition from and after consultation with the city manager. These Charter functions shall be interpreted in accordance with the provisions of this article. The purpose of such interpretation is to assure compliance with court decrees, federal selection guidelines, grant requirements and other governing regulations. These functions shall be performed in accordance with the following interpretations:

(1) The phrase "provide examinations" means to assure that examinations are prepared by the director of the personnel management department under the provisions of sections 40-76 and 40-79 through 40-83.

(2) The phrase "maintain lists of eligibles" means to assure that eligible registers are established by the director of the personnel management department under the provisions of section 40-85.

(3) The phrase stating that positions "shall be filled by him/her" means the chief examiner shall assure that positions are filled in accordance with the provisions of sections 40-77, 40-86 through 40-98, and 40-127.

(b) The chief examiner bears ultimate responsibility to assure that these functions are performed in accordance with the rules and regulations of the board.

(Ord. No. 8977, § 2 (rule 2 (2.3), 7-24-79; Code 1980, § 40-44)

City Code cross reference—Authority of chief examiner to review applicant complaints, etc., § 40-129.

Sec. 40-70. Duties of executive secretary.

It shall be the duty of the executive secretary to keep minutes of all meetings of the board, to appoint other members of the staff in accordance with the provisions of these rules and the City Charter, to supervise all activities of the staff and to serve as the chief executive officer of the board. He/she shall be ex officio director of personnel for purposes of section 36(f) of the City Charter.

(Ord. No. 8977, § 2 (rule 2 (2.2)), 7-24-79; Code 1980, § 40-45)

City Code cross reference—Official board minutes, § 40-72.

Sec. 40-71. Official signatures.

The executive secretary or his/her designee shall sign all vouchers involving the expenditure of funds appropriated to the board. The chairperson of the board and the chief examiner-secretary shall sign the official minutes involving acts of the board. The chief examiner or the director of the personnel management department shall sign all payrolls certifying that each person named thereon holding a position in the classified service has been appointed or employed in accordance with the provisions of the City Charter and of the rules established thereunder.

(Ord. No. 8977, § 2 (rule 2 (2.5)), 7-24-79; Code 1980, § 40-46; Ord. No. 13676, § 2, 4-27-17)

Sec. 40-72. Official records.

(a) *Board minutes.* The executive secretary shall keep a minute record of the official proceedings of the board as required in section 40-70. The board's minutes shall record all official actions of the board.

(b) *Personnel records.* The director of the personnel management department shall maintain official personnel records of classified employees and shall establish procedures necessary to protect the privacy and confidentiality of such records, consistent with the provision of law. The director shall also establish a records management program for the maintenance and disposition of official personnel records consistent with the provisions of state law and local ordinances.

(Ord. No. 8977, § 2 (rule 3 (3.1, 3.2)), 7-24-79; Code 1980, § 40-47)

City Code cross reference—Notification of and recording of departmental personnel changes by personnel management department, § 40-127.

Sec. 40-73. Announcements of examinations.

All announcements of examinations for positions in the classified service shall be issued by the director of the personnel management department and shall be posted in the civil service office, in the city employment office and in such other places as the director of the personnel management department deems advisable. This will include necessary advertising in the ethnic media and in the general press when outside advertising is desirable. The announcements shall specify the title and salary range of the classification or positions for which the examination is announced, the nature of the work to be performed, the qualifications necessary or desirable for the performance of the work; the time, place and manner of making application; whether recruitment will have a fixed or flexible closing date for receiving applications; and other pertinent information.

(Ord. No. 8977, § 2 (rule 5 (5.1)), 7-24-79; Code 1980, § 40-48)

Sec. 40-74. Application forms.

Applications shall be made on forms prescribed by the director of the personnel management department. Such forms shall require information covering training, experience, references and other pertinent information. The categorization of persons on the basis of race, color or national origin with respect to their identifica-

tion for certification for employment or promotion under this section must be established at the time of application. The ethnic category marked on the application form at the close of recruitment must remain in force for the duration of the register. Each application must be signed by the person applying. Such forms shall comply with federal requirements.
(Ord. No. 8977, § 2 (rule 5 (5.2)), 7-24-79; Code 1980, § 40-49; Ord. No. 12226, § 2, 5-9-02)

Sec. 40-75. Residency of applicants.

All applicants must be residents of the city, except when the director of the personnel management department determines that prior recruitment experience or other relevant factors make broader recruitment necessary in order to attract qualified applicants or to comply with federal requirements or court orders.
(Ord. No. 8977, § 2 (rule 5 (5.3)), 7-24-79; Code 1980, § 40-50)

Sec. 40-76. Types of, eligibility for examinations generally.

(a) *Open examinations.* All open examinations shall be open to all persons who possess the minimum qualification requirements as established by the director of the personnel management department. Such examinations may be competitive or noncompetitive and may be restricted to employees in the service of the city or to applicants who meet eligibility criteria for grant programs.

(b) *Promotional examinations.* Advancement within the classified service shall be through promotional examinations which shall be open to all employees who meet the necessary requirements and who are serving in an appropriate class as determined by the director of the personnel management department. Promotional examinations may be competitive or noncompetitive and may be limited to a single department or subdivision thereof. While vacancies in higher positions shall, as far as practicable, be filled by promotion or advancement from lower positions, the director of the personnel management department, on recommendation of the city manager, may direct that such positions shall be filled by examinations open not only to city employees, but also to other qualified persons.
(Ord. No. 8977, § 2 (rule 6 (6.1, 6.2)), 7-24-79; Code 1980, § 40-51)

Sec. 40-77. Eligibility of police officers and firefighters for promotional examinations.

(a) *Police officers.* Eligibility to take the promotional examination for sergeant of police shall be limited to those employees holding permanent status as police officer, and who also meet the following time-in-grade and educational requirements:

(1) Thirty-six months, high school or equivalent;

(2) Thirty-two months, associate's degree;

(3) Twenty-eight months, bachelor's degree; or

(4) Twenty-four months, master's, doctor's or law degree.

All of the above-mentioned time-in-grade shall be actual continuous satisfactory service in the classification of police officer. All of the college degrees mentioned above shall be from accredited colleges or universities and shall be in the fields of police science, police administration, public administration, business administration, criminology, psychology, sociology, law, or such similar or related fields as approved by the city manager and the director of the personnel management department. Employees with two years of actual continuous satisfactory service in the classification of sergeant of police shall be considered eligible to take a competitive promotional examination for lieutenant of police. Employees with two years of actual continuous satisfactory service in the classification of lieutenant of police shall be considered eligible to take a competitive promotional examination for captain of police. Any person promoted to these classifications may be assigned anywhere in the police department without the consent of the person so promoted. Personnel who were not promoted to these classifications, but received them as a result of reclassification from the old classifica-

tion of police sergeant, police detective, police lieutenant, police detective sergeant, police detective lieutenant, and police captain shall not be interchanged between any former uniform or detective positions except with the approval of the persons concerned. Only employees qualified as set forth in this section and in the other pertinent sections of this article shall be eligible to hold such promotional positions.

(b) *Firefighters.* Employees with four years of actual continuous satisfactory service in the classification of firefighter shall be considered eligible to take a competitive promotional examination for fire lieutenant. Employees with two years of actual continuous satisfactory service in the classification of fire lieutenant shall be considered eligible to take a competitive promotional examination for fire captain. Employees with two years of actual continuous satisfactory service in the classification of fire captain shall be considered eligible to take a competitive promotional examination for chief fire officer. Only employees qualified as set forth in this section and in the other pertinent sections of this article shall be eligible to hold such promotional positions.
(Ord. No. 8977, § 2 (rule 8 (8.15, 8.16)), 7-24-79; Code 1980, § 40-52)

Sec. 40-78. Grounds for, notice of rejection of applications.

(a) The director of the personnel management department shall reject an application which does not indicate on its face that the applicant possesses the minimum qualifications required for the position or who fails to file by the announced closing date for receiving applications, unless prior to such date an extension has been publicly posted. Applications also shall be rejected if the applicant is physically unfit for the performance of the duties of the position to which he/she seeks appointment; is addicted to the habitual excessive use of drugs or intoxicating liquor; has made any false statement of any material fact or practiced, or attempted to practice, any deception or fraud in his/her application. Applications may be rejected if the applicant has been convicted of a crime or is guilty of any disgraceful conduct.

(b) Whenever an application is rejected, notice of such rejection with statement of reason shall be mailed to the applicant by the director of the personnel management department; provided, however, that applications more than two years old may be destroyed without notification, if otherwise authorized by law.
(Ord. No. 8977, § 2 (rule 5 (5.4)), 7-24-79; Code 1980, § 40-53)

Sec. 40-79. Contents of examinations.

All selection procedures shall be practical in character, and shall relate directly to those matters which will fairly determine the relative capacity of the person examined to discharge the particular duties of the classification or position to which appointment is sought. Examinations may be assembled or unassembled and may include written, oral, physical, medical or performance tests, apprenticeship or on-the-job training programs, or any combination of these or other recognized selection procedures. They may take into consideration reasonable factors such as education, experience, aptitude, knowledge, character, physical fitness or any other qualifications which in the judgment of the director of the personnel management department enter into the determination of relative fitness of applicants.
(Ord. No. 8977, § 2 (rule 6 (6.3)), 7-24-79; Code 1980, § 40-54)

Sec. 40-80. Methods of rating examination results and ranking candidates; determination of minimum eligibility ratings.

Sound measurement, techniques and procedures shall be used in rating the results of examinations and determining the relative ranking of candidates. In all examinations, the minimum rating by which eligibility may be achieved shall be established by the director of the personnel management department, who may also determine a minimum rating or standard for progression to successive steps in a total selection procedure.
(Ord. No. 8977, § 2 (rule 6 (6.5)), 7-24-79; Code 1980, § 40-55)

Sec. 40-81. Establishing passing examination grades; names of persons passing to be placed on eligible register.

Passing grades for each examination shall be established by the director of the personnel management department. The names of applicants receiving a passing grade shall be entered on the appropriate eligible register and a copy shall be submitted to the chief examiner. (Ord. No. 8977, § 2 (rule 6 (6.6)), 7-24-79; Code 1980, § 40-56)

Sec. 40-82. Examination grade credit for seniority of police officers and firefighters.

(a) Credit for seniority shall be given only for actual service in the classification in the police or fire service from which promotion is sought whether such service has been continuous or not. This shall not apply in reemployment. Seniority shall be computed as of the date of original appointment according to the following table:

For the first six months	0
For each full month of the second six months	⅓
For the second full year	2
For the third full year	2
For the fourth full year	2
For the fifth full year	2
For the sixth full year	2
For the seventh full year	2
For the eighth full year	3
For the ninth full year	3
For the tenth full year	3
For each additional year after ten years	½
Maximum 14 years	½

(b) In department of fire-rescue promotional examinations, the number of points earned under subsection (a) shall be added to the standard minimum passing score and shall have a weight of two out of ten in determining the final grade excluding veteran's preference, if due.

(c) Police sergeant, police lieutenant, and police captain. The promotional examinations prepared and administered by an independent testing agency, as required by court order in Cohen v. City of Miami, Case No. 71-1887-CIV-CA, S.D. Fla., shall compute seniority in accordance with the table below:

For the first six months	0
For each full month of the second six months	½
For the second full year	3
For the third full year	3
For the fourth full year	2
For the fifth full year	2
For the sixth full year	2
For the seventh full year	2
For the eighth full year	2
For the ninth full year	2
For the tenth full year	2
For each additional year after ten years	½
Maximum 14 years	½

The number of points earned shall be multiplied by two and divided by ten, with the product then added to the examination score to adjust the grade earned. Upon release from the subject court order, promotional examinations listed in this subsection shall be computed as outlined in subsections (a) and (b) hereof.
(Ord. No. 8977, § 2 (rule 6 (6.7)), 7-24-79; Ord. No. 9123, § 1 (rule 6 (6.7)), 6-26-80; Code 1980, § 40-57)

Sec. 40-83. Preferences in ranking candidates—Veterans' preference.

In certification for appointment, in appointment, in reemployment, and in promotion, preference shall be given to veterans in accordance with the state statutes, as amended. (Veterans'

preference in retention shall be given in accordance with the provisions of section 40-117.)
(Ord. No. 8977, § 2 (rule 6 (6.4)), 7-24-79; Code 1980, § 40-58)

State law reference—Veterans' reemployment or reinstatement and preference in appointment and retention, F.S. § 295.07 et seq.

Sec. 40-84. Same—Preference based on residency.

Preference in certification may be given to residents of the city or of specific neighborhoods when such preference will serve the best interests of the city or will assist in achieving compliance with applicable laws or regulations.
(Ord. No. 8977, § 2 (rule 5 (5.3)), 7-24-79; Code 1980, § 40-59)

Sec. 40-85. Eligible registers.

(a) *Establishment.* The director of the personnel management department shall establish and maintain such promotional and open registers for the various classes or positions as he/she deems necessary or desirable to meet the needs of the service.

(b) *Order of names.* Names of eligibles shall be placed on competitive registers in the order of their final earned rating. In case of ties in the final ratings, names shall be placed on the registers in alphabetical order; when one such eligible candidate is certified, all such eligible candidates with tied scores shall be certified for interviews. Names of eligibles shall be placed on noncompetitive registers as determined by the director of the personnel management department. In the case of open continuous or intermittent recruitment, names of eligibles shall be added to competitive registers in accordance with their scores and to noncompetitive registers as determined by the director of the personnel management department.

(c) *Duration.* The term of eligibility of each register and of the names appearing thereon shall be fixed by the director of the personnel management department at not less than one year nor more than two years. Whenever, for economic purposes, the city manager by memorandum delays the filling of a promotional vacancy, the life of the subject register and all other promotional registers affected thereby shall be extended for a period of time equal to that time occasioned by the delay. Any register that has been in effect for more than one year may be abolished or extended at any time by the director of the personnel management department. For the purpose of this rule, the life of an eligible register begins on the date the eligible register is established.

(d) *Changes in availability of eligibles.* It shall be the responsibility of eligibles to notify the director of the personnel management department in writing of any change of address or other change affecting availability for employment.

(e) *Removal of names.* The names of any person appearing on a register may be removed by the director of the personnel management department if the eligible requests in writing that his/her name be removed or if he/she cannot be located by postal authorities or other means of ordinary, communication within five days following the date of notification. The name of any eligible may also be removed if the name has been certified for appointment three separate times and has not been appointed, or if the eligible has waived appointment twice in the same class of position. Any cause specified in these rules for the rejection of applications may likewise be cause for the removal of the name of an eligible from the register on which it appears.
(Ord. No. 8977, § 2 (rule 7 (7.1—7.5)), 7-24-79; Ord. No. 10163, § 1, 10-7-86; Code 1980, § 40-60)

Sec. 40-86. Vacancies to be filled by appointments from eligible registers.

Except as otherwise provided in this article, every vacancy in the classified service shall be filled by appointment from the appropriate eligible register. Appointments shall be made to, or employment shall be given in, all positions in the classified service by selection of persons certified by the director of the personnel management department.
(Ord. No. 8977, § 2 (rule 8 (8.1)), 7-24-79; Code 1980, § 40-61)

Sec. 40-87. Request for certification of eligibles for appointments (requisition).

Whenever the city manager shall request certification from the director of the personnel management department for appointment to, or employment in, any position in the classified service, he/she shall specify the title and duties for such position, so that certification may be made from the appropriate eligible register, or, when necessary, a proper eligible register may be prepared as the result of an examination held for that purpose.
(Ord. No. 8977, § 2 (rule 8 (8.2)), 7-24-79; Code 1980, § 40-62)

Sec. 40-88. Manner of certification of eligibles for appointment.

(a) *From open competitive registers.* The director of the personnel management department shall certify from the appropriate eligible register the five persons who stand the highest thereon. Eligibles not selected shall be returned to the register in accordance with their relative grades. Only under unusual and exceptional conditions satisfactory to the board shall the names of eligibles be passed over.

(b) *From promotional competitive registers.* The director of the personnel management department shall certify from the appropriate register for each vacancy the names of the five persons who stand highest thereon. Only under unusual conditions, satisfactory to the board, shall the names of eligibles be passed over.

(c) *From noncompetitive registers.* The director of the personnel management department shall certify a list of candidates which may be limited to those whom he/she deems most qualified.

(d) *From labor registers.* The director of the personnel management department shall certify from an established eligible register a list of candidates which may be limited to those he/she deems most qualified.
(Ord. No. 8977, § 2 (rule 8 (8.3—8.7)), 7-24-79; Ord. No. 10282, § 1, 6-11-87; Code 1980, § 40-63; Ord. No. 11667, § 2, 6-23-98; Ord. No. 11844, § 2, 10-12-99)

Sec. 40-89. Selection of eligibles for appointments.

Appointments, promotions and advancements shall be made from a list of names certified by the director of the personnel management department, except as otherwise provided in this article or approved by the board.
(Ord. No. 8977, § 2 (rule 8 (8.8)), 7-24-79; Code 1980, § 40-64)

Sec. 40-90. Temporary appointments in absence of eligible registers.

In the absence of an eligible register and whenever there are urgent reasons for filling a vacant position in the classified service, the director of the personnel management department may refer from the applicants who have applied for the subject classification those he/she deems most qualified. Applicants not coming from eligible registers shall meet the minimum requirements for competition in the examination for the position being filled. A temporary appointment may be authorized by the director of the department of personnel management for a specified period of not more than 90 days, or to replace an employee on leave of absence, or to fill a temporary position established for a period of less than one year. The appointee may hold the position until an eligible register is established.
(Ord. No. 8977, § 2 (rule 8 (8.9)), 7-24-79; Code 1980, § 40-65)

Sec. 40-91. Emergency, interim or temporary promotions.

An emergency, interim or temporary promotion from a lower to a higher classification, made necessary by reason of illness, disability or other cause for absence of the regular employee, may be authorized by the director of the personnel management department, upon written request, with full information from the director of the department of the involved employee. Said promotion will terminate with the return of the regular employee or upon appointment from an eligible register. No seniority rights in the higher classification shall accrue to said employee.
(Ord. No. 8977, § 2 (rule 8 (8.10)), 7-24-79; Code 1980, § 40-66)

Sec. 40-92. Reclassification of position.

(a) Whenever an occupied position has been allocated to a new or different class, the incumbent thereof shall be qualified for the new class in one of the following manners:

(1) If the incumbent has been performing satisfactorily in the position reclassified at the new or higher level for a period of four years or more and has held permanent status in the previous classification, he/she shall receive the new or higher classification with permanent status, without further examination; or

(2) If the incumbent has been performing satisfactorily in the position reclassified at the new or higher level for a period of two years or more and less than four years, and has held permanent status in the previous classification, he/she shall be given a qualifying examination, the scope of which shall be at the same level of difficulty as normally given for the same or like classification, and, if successful therein, he/she shall receive the new or higher classification with permanent status.

(b) In the event the incumbent does not qualify under subsection (a)(1) or (2) above, he/she shall be processed in accordance with the layoff procedures, and the position filled from the appropriate eligible register.

(Ord. No. 8977, § 2 (rule 8 (8.11)), 7-24-79; Code 1980, § 40-67)

Sec. 40-93. Details to duties of higher responsibility during departmental reorganizations.

Whenever a department is being reorganized, pursuant to a survey approved by the city commission or when amendments to the City Charter become necessary, a department director, during the transitional period of reorganization, shall have a right to detail personnel within a department to duties of a higher responsibility, with or without salary adjustment, for a period not to exceed 120 days and subject to review every 60 days by the director of the personnel management department, which period may be renewed at the discretion of the department director for additional periods of 120 days or until the next general election, whichever comes first. Employees so detailed shall not accrue any civil service status while performing these duties during the transitional period of reorganization but shall continue to accrue civil service rights in their permanent civil service classification.

(Ord. No. 8977, § 2 (rule 8 (8.12)), 7-24-79; Code 1980, § 40-68)

Charter reference—Creation, continuance of city departments, §§ 19, 19-A.

Sec. 40-94. Change of status to unclassified service.

Any employee of the city who holds permanent civil service status and is appointed or assigned as a director of a department, or to any other position in the unclassified service, shall be returned to the rank from which said employee has been promoted under personal request of the employee or when said unclassified service employment ceases, or when said employee is removed from said unclassified service employment. Seniority credits in the permanent civil service classification held by such employee shall accrue to said employee while assigned to such unclassified service employment. A probationary employee who has been appointed to a position in the unclassified service may accrue civil service credits with the approval of the civil service board upon completion of the normal probationary period. Application for such rights must be requested by the probationary employee and approved by the director of the department in which he/she held his/her classified position. Such unclassified employment shall not bar employees holding permanent civil service status from qualifying for promotional examination to the classification next higher to their permanent civil service classification.

(Ord. No. 8977, § 2 (rule 8 (8.14)), 7-24-79; Code 1980, § 40-69)

Charter reference—Unclassified and classified civil service, § 36(c).

Sec. 40-95. Promotions of police officers and firefighters upon retirement.

Any officer of the police department or uniformed member of the fire-rescue department

may, upon retirement, be promoted without examination, to the next higher rank in the service. This promotion is to be based entirely upon the recommendation of the directors of the fire-rescue and police departments and is an honorary promotion, carrying no civil service rights or status.
(Ord. No. 8977, § 2 (rule 8 (8.17)), 7-24-79; Code 1980, § 40-70)

Sec. 40-96. Probationary service in position required.

No initial appointment, advancement, promotion, demotion or change in classification in the classified service shall be deemed complete until a probation period of actual service in the position to which appointed, advanced, promoted, or changed in classification shall have been completed.
(Ord. No. 8977, § 2 (rule 9 (9.2)), 7-24-79; Code 1980, § 40-71)

Sec. 40-97. Length of probation.

(a) *Specified.* The required period of probationary service shall be as follows:

(1) *Police officer.* Upon initial appointment or advancement to the position of police officer, the period of probationary service shall be not less than 18 months nor more than 24 months.

(2) *Identification technician I or firefighter.* Upon the initial appointment or advancement to the position of identification technician I or firefighter, the period of probationary service shall be 12 months.

(3) *All others.* Upon the initial appointment, advancement, or change in classification to any other position, the period of probationary service shall be not less than six months nor more than 12 months.

(b) *Extension.* No probationary period shall be extended beyond the time limit set forth in subsection (a), except upon approval of the board.
(Ord. No. 8977, § 2 (rule 9 (9.3, 9.6)), 7-24-79; Code 1980, § 40-72; Ord. No. 11822, § 2, 7-27-99)

City Code cross reference—Extension of probationary period by leave of absence without pay, § 40-110(b).

Sec. 40-98. Removal from position prior to completion of probation.

(a) *Actions authorized.* A probationary employee may be returned to his/her former classification or, in the event he/she holds no permanent status in any class, may be discharged or reduced in rank at any time prior to the expiration of the probationary period upon receipt by said probationary employee of a written notice of discharge or reduction in rank from the director of the department, approved by the director of the personnel management department.

(b) *Procedure for return of employees to permanent civil service classification.* No employee serving a probationary period in a position to which he/she has been promoted shall be discharged within such probationary period, but shall only be reduced to the classification in which he/she has permanent civil service status. Such employee shall first be given an opportunity to fill any vacant position in the subject classification, and, if there is no such vacancy in that classification, he/she shall be permitted to replace, citywide, that person with the lowest layoff score in that classification, layoff score to be computed in the manner described in section 40-117.

(c) *Review of dismissal from entrance position; return of dismissed employee's name to eligible register.* A probationer who is dismissed from an entrance position may submit a statement in writing to the director of the personnel management department in which case his/her statement and that of the director of the department concerned shall be reviewed. If, in the opinion of the director of the personnel management department, it is in the best interest of the city to permit the individual another opportunity for employment, said individual's name shall be returned to the eligible register of the classification concerned, in its original position on the said eligible register.
(Ord. No. 8977, § 2 (rule 9 (9.4, 9.5, 9.7)), 7-24-79; Code 1980, § 40-73)

Case law reference—Invalid notice of dismissal by distant department head, rather than department head, of probationary employee not sufficient cause to claim resignation under duress. City of Miami v. Kory, 394 So. 2d 494.

Sec. 40-99. Probationary status of appointments to temporary positions and positions funded by special grants.

When an employee is appointed from an eligible register to a permanently budgeted entrance or promotional position of a temporary nature, to replace a permanent employee on leave of absence without pay or a permanent employee who is serving on a special project, or when an employee is appointed from an eligible register to a position funded by special grants, he/she will be appointed in probationary status unless the department director, in writing, recommends against it and the director of the personnel management department approves the concerned department director's recommendation.
(Ord. No. 8977, § 2 (rule 9 (9.8)), 7-24-79; Code 1980, § 40-74)

Sec. 40-100. Interdepartmental transfers; transfers between classifications.

(a) Any employee in the classified service who has served the probationary period required in sections 40-96 and 40-97 may be transferred from a position in one department to a position of the same class in another department, upon approval of the directors of the two departments concerned and with the consent of the employee to be transferred, without having to serve an additional probationary period. Nothing herein shall be construed to interfere with the right of the city manager to assign or reassign employees within a given class among the various departments as he/she deems in the best interests of the service, irrespective of consent of employee assigned.

(b) The board may also authorize the transfer of an employee from one class to another in the same salary range when the minimum qualifications are equivalent.
(Ord. No. 8977, § 2 (rule 11 (11.1)), 7-24-79; Code 1980, § 40-75)

Sec. 40-101. Assignment to other work.

Any employee in the classified service may be assigned to work other than that described in the description of the classification of the position held for a period not exceeding 30 working days in any one calendar year without permission of the board. No person shall be employed for more than 30 working days on duties other than those described or implied by the class specification unless said employee has been qualified therefor by examination and is appointed in accordance with this article, or unless said employee has received an emergency, interim or temporary promotion in accordance with this article, or unless said employee has been detailed under a reorganization plan in accordance with this article, or unless approved by the board. Assignments of employees in the fire-rescue department and the police department to perform the same duties in various districts, and to assist each other, and similar changes in other departments of the location of the employment and not of the position held, but where there is no change in salary, are not to be construed as transfers but as routine details. Notwithstanding the provisions of this section, employees in a bargaining unit may be assigned to work out of their classification in accordance with provisions of the appropriate labor agreement.
(Ord. No. 8977, § 2 (rule 11 (11.2)), 7-24-79; Code 1980, § 40-76)

City Code cross references—Emergency, interim or temporary promotion, § 40-91; details to duties of higher responsibility during departmental reorganizations, § 40-93.

Sec. 40-102. Residency of employees.

Employees must maintain residence in accordance with requirements established by the city manager.
(Ord. No. 8977, § 2 (rule 5 (5.3)), 7-24-79; Code 1980, § 40-77)

Sec. 40-103. Hours of work generally.

The city manager shall prescribe by regulation the actual hours of employment for any or all employees in the city service whenever such action, in his/her opinion, is in the best interests of the city service.
(Ord. No. 8977, § 2 (rule 15 (15.1)), 7-24-79; Code 1980, § 40-78)

Sec. 40-104. Overtime.

Overtime must be kept to the minimum. When overtime becomes necessary, unless paid for in cash it may be repaid in the form of time off, to be taken as soon as practical.
(Ord. No. 8977, § 2 (rule 15 (15.11(c))), 7-24-79; Code 1980, § 40-79)

Sec. 40-105. Vacation with pay.

(a) *Eligibility.* Employees are allowed vacation with pay after completion of six months of actual continuous service.

(b) *Scheduling dates of vacations.* Vacation with pay shall be taken at the convenience of the department director.

(c) *Number of days available:*

(1) *Vacation-with-pay schedule.* Calculated on actual service in the previous calendar year, the vacation-with-pay schedule is as follows:

a. When working five days per week, the vacation is ten working days per annum.

b. When working five and one-half days per week, the vacation is 14 working days per annum.

c. When working six days per week, the vacation is 18 working days per annum.

d. When working seven days per week, which time includes Sundays or holidays, or both, vacation is 21 days per annum.

e. Firefighters, when working a 49.8-hour week, vacation is ten hours per month.

Where employees have not qualified by a full year's employment for the entire annual vacation, vacation time earned shall be on the basis of $^{10}/_{12}$ day for each month worked on a five-day-per-week schedule, $^{11}/_{12}$ days on a $5^{1}/_{2}$-day-per-week schedule, $^{18}/_{12}$ days on a six-day-per-week schedule, $^{21}/_{12}$ days on a seven-day-per-week schedule, and ten hours per month for firefighters working a 49.8-hour week.

(2) *Extra vacation days for years of service.* Extra vacation days for years of service shall be allowed upon the completion of the required years of actual continuous service as shown below:

a. Permanent employees after completion of six years of service shall be allowed one extra working day of vacation annually and firefighters on a 49.8-hour week shall be allowed ten hours.

b. After completion of seven years, two working days of vacation or 20 hours for firefighters.

c. After completion of eight years, three working days of vacation or 30 hours for firefighters.

d. After completion of nine years, four working days of vacation or 40 hours for firefighters.

e. After completion of ten years, five working days of vacation or 50 hours for firefighters.

f. Each year thereafter employees will be allowed one-half working day of vacation, or five hours for firefighters.

If the only break in an employee's service has been a layoff, the extra vacation time shall cover the period worked during the years of service. If a person enters the employ of the city prior to the 15th of the month, it shall be considered as a full month of service. If the only break in an employee's service occurred due to an employee being required to resign in order to accept employment in the police or fire-rescue department, as reflected by the employee's personnel file, then both periods of service shall be counted in computing vacation time.

(d) *Accumulation, carryover of vacation time.* It is generally intended that vacations will be taken within the calendar year in which they are

due. Employees may, however, accumulate a total of not more than ten days of vacation or six tours of duty, to be carried over for future use. Vacation carryovers in excess of ten days or six tours of duty must have the prior approval of the department director, the city manager, and the executive secretary.
(Ord. No. 8977, § 2 (rule 15 (15.2)), 7-24-79; Code 1980, § 40-80)

Sec. 40-106. Sick leave with pay.

(a) *Eligibility.*

(1) *Generally.* New employees are allowed sick leave with pay on the basis of one day for each full month's service during the first 12 months of employment, but none may be used until the employee has successfully completed three months of service. After one year of service, said employees are considered for sick leave on the basis outlined in paragraph (e)(1) of this section.

(2) *Temporary appointees to full-time positions.* Employees appointed to full-time positions in temporary status are eligible for sick leave, accruing from the date of their full-time temporary appointment.

(3) *Employees recalled after layoff.* Employees who have been laid off and then recalled to service shall be given regular sick leave less one day for each full month they were laid off.

(4) *Employees returning from military service.* Employees returning from military service will receive one day's sick leave for each month of city service anticipated in the calendar year of their return. Their accumulated sick leave will be determined on the basis of their annual city service, omitting military service.

(b) *Abuse prohibited.* Care and discretion shall be exercised by the department directors to prevent the abuse of these liberal sick leave privileges. Absences on account of trivial indispositions must be discouraged. Sickness, disease or physical disability, the result of intemperate habits or immoral conduct, cannot be paid for. To determine the extent of an employee's absence on sick leave, the supervisor shall visit the home of the employee. In cases where the supervisor suspects that an employee is malingering, sick leave with pay shall not be granted.

(c) *Requirements generally.* In order to receive compensation while absent on sick leave, the employee must take steps to notify the immediate supervisor of the illness within 30 minutes after the time set for the beginning of the daily duties, except in the police department, wherein departmental rules will apply. In addition:

(1) Absentees of more than three days or two tours of duty in the fire-rescue department are to complete absence reports and check with the city physician for approval before returning to work.

(2) Absentees of ten days or more are to complete absence forms, including signature of physician treating them, and check with the city physician for approval before returning to work.

(3) Any injury, surgery, or illness of serious nature, causing any absence, shall be checked by the city physician for approval before an employee returns to work.

(d) *Allowance for family illness.* An employee may be granted leave of absence with pay for illness of any actual member of the employee's household under the following conditions:

(1) Employee must have sick leave to his/her credit.

(2) No more than four days will be granted in any calendar year.

(3) Time absent will be charged against his/her sick leave credits.

(e) *Amount of leave time available:*

(1) *Rate of accrual.* Employees may be allowed to accrue 12 working days of sick leave with pay per calendar year. Firefighters may be allowed to accrue ten hours of sick leave per month. Sick leave time covers working days only.

(2) *Accumulation from year to year.* Sick leave with pay is automatically cumulative from year to year.

(3) *Conversion to vacation time; credit for unused balance.* After the accumulation of 60 days' sick leave, further accumulation shall be credited to an employee's vacation leave at a rate of one day of vacation for every two days of sick leave earned in accordance with the provisions of paragraph (e)(1) hereof. The balance of the unused sick leave shall be credited to the employee's sick leave bank to an unlimited maximum accumulation.

(f) *Assessment of leave against leave time.* The department director should not grant sick leave for any employee for time that would exceed the earned sick leave allowance mentioned below:

(1) Any employee should be allowed 12 days a year of sick leave, with a maximum accumulation of 60 days. Any balance of accumulated leave at the end of the current year shall be brought forward to the employee's credit for the next year. The employee shall first use up the regular sick leave allowance for the next year. Then the employee may be allowed the credit for the accumulated sick leave from the year before.

(2) When an employee has used up the accumulated sick leave allowed him/her and he/she is still unable to resume his/her duties, the excess time absent will automatically be charged to the vacation leave due him/her rather than drop him/her from the payroll. In the event, however, that an employee is unable to return to work, and has exhausted both sick leave and vacation due him/her, his/her request for advance leave must be approved by the board and the city manager.

(g) *Reporting use of leave.* Sick leave with pay in excess of 12 days in any one calendar year shall be reported on attendance records as per instructions from the paymaster.

(h) *Compensation for unused leave on termination of employment.*

(1) *Generally.* All unused sick leave to the credit of an employee who is being retired on service retirement shall be compensated for at time of retirement by payment for each day of such unused sick leave to a maximum of 120 days.

(2) *After ten or more years' service.* Employees with ten or more years' service who terminate employment with the city under honorable conditions shall receive cash payment equal to one-fourth of their unused accumulated sick leave as defined in this article, unless the department director in writing recommends against it and the civil service board approves the department director's recommendation.

(3) *After 15 or more years' service.* Employees with 15 or more years' service who terminate employment with the city under honorable conditions shall receive cash payment equal to one-half of their unused accumulated sick leave as defined in this article, unless the department director in writing recommends against it and the civil service board approves the department director's recommendation.

(i) *Sanitation employees' special provisions.* The provisions of this section concerning sick leave accrual, compensation for unused sick leave, and the conversion of sick leave to vacation time for employees in the Sanitation Employees Association's bargaining unit shall be in accordance with the provisions of the current labor agreement.

(Ord. No. 8977, § 2 (rule 15 (15.3)), 7-24-79; Code 1980, § 40-81)

Sec. 40-107. Civil leave.

(a) Upon approval of his/her department director and the city manager, any employee holding a position in the classified service shall be granted a leave of absence with pay for:

(1) Service upon any jury other than those for which an employee has voluntarily registered for jury duty.

(2) Appearance before a court, legislative committee, or other judicial or quasijudicial body as a witness in an action involving the federal government, the State of Florida, a political subdivision thereof, or the city, in response to a subpoena or other direction by proper authority.

(3) Attendance in court in connection with an employee's official duty; such attendance shall include the time required in going to the court and returning to the employee's place of duty.

(b) Any absence, however, whether voluntary or in response to a legal order to appear and testify in private litigation, not as an officer or employee of the city but as an individual, shall be taken as annual leave, as leave of absence without pay, or as a deduction from authorized accumulated overtime.
(Ord. No. 8977, § 2 (rule 15 (15.4)), 7-24-79; Code 1980, § 40-82)

Sec. 40-108. Personal leave.

(a) *National holidays.* The following and any other days designated by the city commission or under its authority are holidays: New Year's Day, Washington's Birthday, Memorial Day, Independence Day, Labor Day, Columbus Day/ Indigenous Peoples' Day, Armistice Day, Thanksgiving Day, and Christmas Day. Compensatory time off shall be allowed for work done on these days. When a holiday falls on the regularly assigned day off for an employee, such employee shall be compensated by another day off. In order to be eligible for holiday pay, the employee must be in "with pay" status on the working day preceding and the working day following the subject holiday.

For purposes of this section, as of October 1, 2009, furlough days (as defined via administrative policy or collective bargaining agreement) may be used on the working day preceding or the working day following the subject holiday without affecting the employee's holiday pay.

(b) *Religious holidays.* There is no official observance of religious holidays, except such as may also be national holidays. It is the policy of the city to permit absence from work to those employees who desire to spend certain holidays in religious devotion. Whenever circumstances permit, work schedules should be arranged so as to provide substituted work time (compensatory time). Where no such arrangements can be made, the absence will be charged against vacation leave to the employee's credit. If the employee has no vacation to his/her credit, his/her absence will be charged as leave without pay with no prejudice to his/her standing.

(c) *Conventions or conferences.* Attendance at a convention or at meetings of like character, for the purpose of professional improvement pertaining to the individual's particular area of operation as a public employee, shall not be considered as leave from duty but shall be noted on the payroll as "professional improvement" leave, and said absence must be authorized by the city manager.

(d) *Civil service examinations.* Employees participating in promotional examinations or open competitive city civil service examinations for their present jobs prior to the establishment of a register will be granted time off without charge against leave for the time necessary to complete the examination. Employees participating in examinations for classifications for which the pay range is the same or less than their present classification will not be granted leave with pay in accordance with this subsection.

(e) *Blood donations.* Employees who volunteer as blood donors to contribute to the John Elliot Blood Bank will be authorized the absence necessary to accomplish this purpose. Particular care will be taken to see the employees take sufficient time from their duties to recuperate. Except in unusual circumstances, a maximum of four hours' authorized absence should be allowed.

(f) *Medical examinations.* Employees will be excused for the purpose of taking a medical examination to determine their physical fitness for employment in the service of the city. This shall apply to both entrance and promotion examinations at the discretion of the board.

(g) *Death in family.* Any employee may, in case of death in the immediate family, be authorized a maximum of four days' leave with

pay. The immediate family is defined as father, mother, sister, brother, husband, wife, child, father-in-law and mother-in-law, stepfather and/or stepmother if they have raised the employee from infancy, regardless of place of residence, and may include any other person who is an actual member of the employee's household. The circumstances of the employee's personal leave shall be endorsed by the department director and submitted by letter to the board.
(Ord. No. 8977, § 2 (rule 15 (15.5(a)—(g)), 7-24-79; Code 1980, § 40-83; Ord. No. 13126, § 1, 1-14-10; Ord. No. 14266, § 2, 4-11-24)

Sec. 40-109. Terminal leave with pay.

Any employee, upon retiring from city service or separating under honorable conditions, who has served for a period of 25 years or more, shall be granted, at the time of his/her service retirement or honorable separation, an additional month's pay, in addition to his/her regularly earned pay, vacation pay and other legal benefits.
(Ord. No. 8977, § 2 (rule 15 (15.5(h)), 7-24-79; Code 1980, § 40-84)

Sec. 40-110. Leave of absence without pay generally.

(a) *Permissible reasons.* The director of a department, with the approval of the city manager, may grant leaves of absence without pay for the following causes, and not otherwise; viz, that the employee:

(1) Has a temporary physical disability; provided, however, that no such leave shall be initially given for a period to exceed 90 days. The period of leave may be extended with the approval of the city manager.

(2) Requests leave of absence for the purpose of entering upon a course of training or study or to engage in an investigation calculated to improve the quality of the employee's service, but no leave shall be granted for a period to exceed six months, with the right to extend for another six months, if approved by the city manager and the department director.

(3) Has a good reason other than mentioned above, which shall be sufficient to warrant granting said leave; provided, however, that said leave shall not exceed 90 days, and provided, further, that the employee shall understand that the acceptance of another position or engaging in other employment while on said leave shall be deemed a resignation from the service of the city. Any vacancy from said cause shall be filled by a temporary employee for the duration of not more than 90 days.

(b) *Probationary employees; employees returning from leave.* Leave of absence during the required probationary period of service of an employee shall extend the probationary period for the length of time used during the leave of absence. In no case shall leave of absence be given within 90 days of the employee's appointment; neither shall leave of absence be granted within six months after the return of the employee from a leave of 15 days or more, except in the case of physical disability. At the expiration of a leave of absence, the employee shall be returned to the position vacated when said leave of absence was granted.

(c) *Reporting grant of leave.* Whenever leave of absence without pay is granted, it shall be promptly reported in writing to the board.
(Ord. No. 8977, § 2 (rule 15 (15.6)), 7-24-79; Code 1980, § 40-85)

Sec. 40-111. Military service.

(a) *Permanent employees.* Whenever an employee in permanent status shall enter into the military service of the United States government and, upon application to the civil service board, he/she shall be given a leave of absence without pay from the service of the city during the period of such military service, not to exceed four years unless such service shall be extended by law, no loss of civil service rights shall operate against him/her as a result thereof and he/she shall be given credit for the time spent in the armed forces of the United States in actual service rendered in the employ of the city as

though said employment had not been interrupted by the military leave of absence, with the exception that military service time will not be

counted toward time in grade needed for eligibility for promotional examinations; provided such employee shall offer himself/herself for reemployment with the city within 90 days after discharge from such military service, unless such time shall be extended for reasons of health or physical unfitness after application to and approval of the civil service board, and provided, further, that the benefits extended under the provisions of this section shall not include any employee who has received a dishonorable discharge from the service. In instances in which the discharge from the military service shall be other than honorable or dishonorable, the reasons for such discharge shall be subject to review by the board, and it is hereby vested with the power to consent to, or to refuse reemployment to any employee receiving such discharge.

(b) *Probationary employees.* The provisions concerning permanent employees shall also apply to probationary employees; provided, however, that said service credit shall not accrue to the veteran who was in probationary status at the time of entrance into the military service of the United States government until said veteran shall have satisfactorily completed his/her probationary period after return as an employee of the city.

(Ord. No. 8977, § 2 (rule 15 (15.7)), 7-24-79; Code 1980, § 40-86)

Sec. 40-112. Peace Corps service.

Whenever any employee with permanent status shall enter into the Peace Corps of the United States government, upon application to the civil service board, he/she shall be given a leave of absence, without pay, from the service of the city, not to exceed two years, unless the civil service board extends the time. Employees granted such leave shall be given credit for the time in the service of the Peace Corps as actual service rendered in the employ of the city, provided that said employee shall offer himself or herself for reemployment with the city within 90 days after discharge from such Peace Corps service, unless such time shall be extended for reasons of health or physical unfitness after application to and approval of the civil service board.

(Ord. No. 8977, § 2 (rule 15 (15.8)), 7-24-79; Code 1980, § 40-87)

Sec. 40-113. Military training leave.

(a) All employees of the city who are either reserve officers or enlisted personnel in the Florida state guard, the national guard, naval militia, marine corps, unorganized militia, United States army reserve, United States naval reserve, United States marine corps reserve, United States coast guard reserve, United States air force reserve, or officers or enlisted personnel in any other class of the militia shall be entitled to leave of absence from their respective duties without loss of pay, time, efficiency rating, or civil service seniority credits on all days during which they shall be engaged in field or coast guard defense exercises or other training ordered under the provisions of the United States military or naval training regulations or under the provisions of the Florida state guard or the national guard; provided that leaves of absence granted as a matter of legal right under the provisions of this section shall not exceed the provisions cited in F.S. § 115.07.

(b) Requests for military leave shall be made as early as possible but at least two weeks prior to the date such leave is desired.

(c) Employees who take the military leave provided in this section shall be credited with that time on their seniority status in the city civil service records.

(Ord. No. 8977, § 2 (rule 15 (15.9)), 7-24-79; Code 1980, § 40-88; Ord. No. 13466, § 2, 6-12-14)

Sec. 40-114. Absence from duty, irregularity in attendance, tardiness, etc.

(a) All branches of the service are required to maintain a permanent record of every absence from duty of employees.

(b) The payroll clerk, or other responsible employee, shall be charged with maintaining accurate attendance records, on which tardiness of the employee shall also be noted. Said record shall be open to inspection by the representative of the board. Absences, irregular attendance of any kind, and tardiness, shall be taken into consideration when making the efficiency or service rating of employees, and when said conditions are persistently indulged in, they shall

justify disciplinary action against the employee. It shall be the duty of supervisors to report promptly to the board all absences from duty without pay and cause of same. Failure to make said report shall be cause for disciplinary action against the supervisor by the city manager, the department director and/or the board.

(c) All absences of one-half day or more shall be reported to the department of finance on the attendance records on forms provided for the purpose. Time off allowed for overtime worked by an employee at the request of the department director shall not be regarded as absence from duty and shall be noted on the attendance record as earned time off.
(Ord. No. 8977, § 2 (rule 15 (15.11)), 7-24-79; Code 1980, § 40-89)

City Code cross reference—Requirement that sick leave in excess of 12 days per year be reported, § 40-106(g).

Sec. 40-115. Failure to return from leave.

Any employee who fails to report for duty at the expiration of a leave of absence, without the consent of the director of the department, shall automatically be removed from the rolls. Personnel records will indicate "separation—failure to return from leave."
(Ord. No. 8977, § 2 (rule 15 (15.10)), 7-24-79; Code 1980, § 40-90)

Sec. 40-116. Employee organizations.

(a) *Right of employees to affiliate.* In accordance with the June 3, 1959 act by the legislature of the State of Florida,* classified city employees are assured the right and freedom of association, self-organization and the right to join or to continue as members of any employee or labor organization complying with the above-mentioned act and shall have the right to present to the board proposals relative to this article or other matters which come under the jurisdiction of the board through representatives of their own choosing. No such employee shall be discharged or discriminated against because of his/her exercise of such right, nor shall any person or group of persons, directly or indirectly, by intimidation or coercion, compel or attempt to compel any employee to join or refrain from joining an employee or a labor organization.

(b) *Denial of the right to strike.* Any classified employee who participates in any strike or who asserts the right to strike, or who is a member of an organization of government employees that asserts the right to strike against the city, knowing that such organization asserts such right, is subject to dismissal or suspension from the classified service, or to demotion to a lower rank, if in a promotional position.
(Ord. No. 8977, § 2 (rule 10 (10.1, 10.2)), 7-24-79; Code 1980, § 40-91)

Sec. 40-117. Layoff and reinstatement generally.

(a) *Citywide layoff procedures.* Layoff shall first be restricted to the classification in which there is a surplus of employees within the department. The person who is found to have the lowest layoff score within the department and classification shall be entitled to fill any existing vacancy in such classification in any department of the city. Should there be no vacancy, the employee with the lowest layoff score shall be entitled to replace the employee with the lowest layoff score citywide. That employee in turn will have the same rights starting within his/her department to replace another employee, providing that he/she held a permanent status in some lower subordinate classification.

(b) *Departmental layoff procedures.* Whenever it becomes necessary to reduce the number of employees within a given classification in any department through lack of work funds or other causes or when a position is abolished, employees shall be laid off as follows: first, duration, emergency or temporary employees; second, probationary employees; third, permanent employees.

(1) *Probationary employees.* The names of persons who hold probationary status in the classified service in positions which have been abolished or have become unnecessary shall be placed on the current eligible register of their classifica-

*__Note—__The June 3, 1959 act referred to above would appear to be Laws of Fla., ch. 59-223. The provisions of Laws of Fla., ch. 59-223, were formerly codified as F.S. § 839.221, which section has been repealed by Laws of Fla., ch. 74-100.

tion in the order of their earned score; provided, however, that police officers who have completed at least 12 months but less than 18 months of probationary service shall be eligible for reemployment in accordance with subsection (c) hereof and shall be required to serve the balance of their probation upon reemployment.

(2) *Permanent employees.* The order of layoff of permanent employees shall be determined by a layoff score computed in the following manner: A credit for seniority computed at the rate of one-tenth of one point shall be given to all employees in the particular classification for each full month's service within his/her particular classification in which his/her efficiency rating has been reported as other than unsatisfactory; provided, however, that in the case of veterans, one point or ten months of seniority shall be added to the total layoff score. No seniority credits for the purpose of determining the layoff score shall be granted for those months within a service rating period wherein an employee's service has been reported as unsatisfactory. A tie in said score shall be broken in favor of the employee with the longest service rating reported as other than unsatisfactory. Should a tie still exist, it shall be decided in favor of the employee who filed the first work application with the city. The employee with the lowest layoff score shall then be laid off. The civil service board or the executive secretary may refer the employee laid off to a vacancy in a lower entrance level which has similar requirements. It shall not be binding on a department director to accept the employee referred to a like or similar classification.

a. If said employee has progressed in continuous and uninterrupted service through and holds permanent classification in each of several job classifications in the same job family, he/she shall hold job seniority in any one of the several job classifications as follows:

1. In the highest job classification, only seniority actually accrued in that classification shall apply.
2. In any lower job classification, all seniority accrued in said lower classification, together with all seniority accrued in the several higher classifications, shall comprise the total seniority in the aforesaid lower job classification.

No employee shall have any right or title in a job classification in which he/she was never employed and held a permanent appointment except as provided in subsection (e) of section 40-120 hereof.

b. Any employee holding a permanent or probationary status in one job classification and elevated to a higher position for the good of the service on a temporary or probationary status shall continue to accrue seniority in the former classification vacated.

c. Employees who have "advanced" but are not in the same job family will maintain seniority in their previous status as of the date they advanced from that status, but they will not accrue further seniority in their previous status.

(c) *Reinstatement from layoff registers.* The names of police officers who have completed at least 12 months but less than 18 months of probationary service and the names of the persons who held permanent status in the classified service in positions which have been abolished or have become unnecessary shall be placed on an appropriate layoff register in the order of their layoff score, the highest being first, for a period not to exceed 36 months, during which time said persons may be certified for reemployment. Such employees shall be reemployed with seniority

accrued prior to the layoff but will not accrue seniority during the period of layoff. Layoff registers shall take priority over all registers, including promotional.

(1) Reemployment shall be subject to such person's passing a satisfactory physical examination by the city physician. This rule shall be applied to all layoff registers.

(2) The director of the department of personnel management may, at his/her discretion, certify for vacancies in entrance positions individuals on layoff registers of like or similar classifications.

(d) *Declining of positions offered.* Should an employee laid off under this section, who is eligible for immediate placement, decline to accept the opportunity, his or her name shall be placed on the appropriate layoff register in the order of his or her layoff score. A refusal of the subject employee to be selected from the layoff register shall result in his or her removal from that register. He/she therefore forfeits any future rights for consideration in the subject classification.

(Ord. No. 8977, § 2 (rule 12 (12.1(a), (c)—(f), 12.2, 12.3, 12.5, 12.6)), 7-24-79; Code 1980, § 40-92)

Sec. 40-118. Intergovernmental transfers of departmental functions.

Employees in a department, division, section, etc., whose functions are to be transferred to any other government agency shall have the right to elect to remain with the city, provided they hold permanent status in a classification that is utilized in any other department, and, further, provided that they have sufficient seniority in the classification held or previous classifications. Employees subject to any other government transfer shall be processed in the same manner as outlined in section 40-117.

(Ord. No. 8977, § 2 (rule 12 (12.1(b))), 7-24-79; Code 1980, § 40-93)

Sec. 40-119. Resignation.

(a) *Generally.* Any employee in the classified service who desires to resign shall do so in writing to the director of the department in which he/she is employed. The department director shall thereupon report such resignation to the civil service board. An employee who resigns relinquishes all rights recognized under civil service status.

(b) *Subsequent renewal of employment.* Any employee who resigns with a satisfactory record of service may apply to his or her employing department to be placed on a reemployment list. If the director of the employing department endorses the request, said director may submit the request to the civil service board. If the request is approved by the civil service board, the director of personnel management shall certify the name together with other names certified under section 40-88. Subject to the provisions of existing labor agreements, in computing sick leave, vacation, and promotions, no credit shall be given for service rendered prior to reappointment. The civil service board shall only grant previous seniority credit for the purpose of meeting the time-in-grade requirement necessary for taking a promotional examination. The granting of such previous seniority credit shall not be used for augmenting the examination score or any other scores. Any such former employee who had not completed the probationary period will be required to serve a full probationary period as provided in sections 40-96 and 40-97. Eligibility for reemployment shall be limited to two years following approval by the civil service board; provided, however, that in the case of police and fire jobs requiring state certification, reemployment shall be limited to two years following the effective date of resignation.

(Ord. No. 8977, § 2 (rule 12 (12.4), rule 14 (14.11)), 7-24-79; Ord. No. 9184, § 1, 10-9-80; Code 1980, § 40-94; Ord. No. 11666, § 2, 6-23-98)

Sec. 40-120. Medical examinations.

(a) *To be provided periodically.* The city manager shall provide periodic, uniform medical examinations for all employees in the classified service for the purpose of determining the employee's physical ability to perform his/her duties of the position held. The frequency of examinations for various age groups and classifications shall be determined by the city manager.

(b) *Duties of city physician.* The city physician shall conduct and pass upon all medical examinations required under the provisions of this section and shall report in writing his/her findings, conclusions, and recommendations to the director of the department in which the employee is hired, with copies to the employee, the city manager and the civil service board. The city physician's report shall indicate whether or not the employee is capable of performing his/her duties in the position held.

(c) *Dismissal of employees unable to perform duties.* Should it be determined that the employee is unable to continue in the performance of his/her duties, the director of the department in which the employee is employed shall dismiss the employee. Employees dismissed because of physical incapacitation, and who are not under the retirement system or plan, shall be granted as severance pay an amount equal to 120 work hours if their employment has been for ten years or less, or 240 work hours if their employment has been in excess of ten years. (The above services are not required to be continuous.)

(d) *Transfers because of physical disabilities generally.* When an employee, because of a non-service-connected disability, becomes physically incapacitated for the performance of the duties of a particular classification, the city manager, with the consent of the board, may transfer said employee to a vacant position in the same or lower classification within the employee's capabilities; provided, however, that the city physician shall certify to the civil service board the employee's physical ability to perform in the new position.

(e) *Transfers to entrance-level classifications because of physical disabilities.* Any employee who has been determined by the city physician to be physically unable to continue in his/her present classification, providing that the subject employee is in accordance with the reassignment, may be transferred by the city manager to any vacant entrance-level classification if, in the manager's judgment, the employee' can fulfill the duties of the new classification. An employee who has been determined by the retirement board to be disabled in the line of duty, and who cannot perform the duties of his/her regular classification, may, if he/she so elects, subject to the approval of the director of the personnel management department and the city physician, be transferred by the city manager to any vacant entrance level position for which said employee meets the minimum requirements. Both of these actions would be without requirement of further written examination or having to serve an additional probationary period.

(f) *Appeals from retirement or removal orders based on physical disabilities.* Any employee holding permanent status in the classified service who deems that he/she has been retired or removed from the payroll for medical reasons without just cause may, within 15 days of such action by the department director, request in writing a hearing before the civil service board to determine the reasonableness of the action. If, in considering testimony during such hearing, the board deems it necessary or advisable to seek additional professional opinion as to the continued employability of the employee, the board may require said employee to submit to a medical examination by another qualified physician or physicians. Such examination shall be made without benefit of the city physician's findings, and the report thereof shall include the opinion of the physician or physicians conducting the reexamination as to the employee's future employability, based upon the findings of the examination. All examinations shall be without cost to the employee. The board shall then, in consideration of all testimony offered, render its recommendation to the city manager who, after consideration, shall enter an order affirming, reversing, or modifying the recommendation of the board.

(Ord. No. 8977, § 2 (rule 12 (12.7), rule 14 (14.9)), 7-24-79; Code 1980, § 40-95)

City Code cross references—Physical examination required for membership in retirement system, etc., §§ 40-3, 40-198, 40-248.

Sec. 40-121. Service ratings.

(a) *Required; forms.* Service ratings relative to the ability and conduct of employees in the classified service shall be made by the department director on forms prescribed by the director of the personnel management department.

(b) *Hearing on unsatisfactory rating.* Whenever it shall appear from the reports of efficiency that the conduct and/or efficiency of any employee has fallen below an acceptable level, that employee shall be called before the board to show cause why he/she should not be removed; and if, upon hearing, no reason is shown satisfactory to the board, he/she shall be removed, suspended or reduced in grade, as the board shall determine.

(1) *Conduct of hearing.* Whenever it becomes necessary to call before the board any employee whose conduct and/or efficiency has fallen below an accepted level, the hearing shall be scheduled as soon as practical. Both the employee and the department director shall be notified, reasonably in advance, of the time and place of hearing and shall have the right to present witnesses and give evidence in accordance with the rules and regulations* as established by the board.

(2) *Decision of board final; notification of employee.* The board, after hearing, shall make its decision, which shall be final and which shall be duly recorded in the permanent records of the concerned department and the board. The executive secretary shall, in writing, properly notify the employee of the board's decision.

(Ord. No. 8977, § 2 (rule 13 (13.1—13.3)), 7-24-79; Code 1980, § 40-96)

Sec. 40-122. Disciplinary actions generally.

(a) *Authority of city manager, department director; appeals to board; investigatory, evidentiary powers of board.* Any officer or employee in the classified service may be removed, fined, laid off, or reduced in grade by the city manager or by the director of the department in which he/she is employed, for any cause which will promote the efficiency of the service; but he/she must be furnished with a written statement of the reasons therefor within five days from the date of the removal, suspension, fine, layoff, or reduction in grade, and be allowed a reasonable time for answering such reasons in writing, which shall be made a part of the records of the board; and he/she may be suspended from the date when such written statement of reason is furnished him/her. No trial or examination of witnesses shall be required in such case except at the discretion of the city manager or the department director.

Any employee in the classified service who deems that he/she has been suspended, removed, fined, reduced in grade or demoted without just cause may, within 15 days of such action by the department director, request in writing a hearing before the civil service board to determine the reasonableness of the action. The board shall, within 30 days after appeal of the employee disciplined, proceed to hear such appeal. After hearing and considering the evidence for and against the employee, the board shall report in writing to the city manager its findings and recommendations. The city manager shall then sustain, reverse, or modify the action of the department director.

In the event the city manager shall not have completed his/her action to sustain, reverse, or modify the action of the department director within 60 days of the receipt by the city manager of the report of the determination of the civil service board of an appeal of a disciplinary matter filed by an employee of the city, the city manager shall report in writing to the city commission the reason for the delay. If the delay continues thereafter, the city manager shall file a supplemental report, setting forth the reasons for the continuing delay on each tenth day following, during which he/she shall have failed to take the final action required.

Any member of the civil service board and the director of personnel† may administer an oath to witnesses appearing before said board or said director in an investigation, disciplinary or appeal proceedings, and shall have the power to issue witness subpoenas and to compel the attendance of witnesses.

*__Note—__See editor's note, § 40-66.

†__Editor's note—__Pursuant to section 40-70, the executive secretary of the civil service board shall be ex officio director of personnel for purposes of section 36(f) of the City Charter.

(b) *Charges preferred by citizens.* The civil service board shall also have the right to remove or reduce any official or employee in the classified service upon written charges of misconduct preferred by any citizen, but only after reasonable notice to the accused and full hearing.
(Ord. No. 8208, § 1, 10-19-73; Ord. No. 8977, § 2 (rule 14 (14.1)), 7-24-79; Code 1980, § 40-97; Ord. No. 13676, § 2, 4-27-17)

Sec. 40-123. Grounds for dismissal, suspension and demotion.

(a) *Generally.* The following are declared to constitute a breach of duty and to be grounds for dismissal or suspension from the classified service or grounds for demotion, though charges may be based upon causes other than those enumerated; viz, that any employee has been guilty of conduct unbecoming any employee of the city who:

(1) Has been convicted of a felony, or of a misdemeanor or offense against the dignity of the city;

(2) Has been guilty of misuse of sick leave privilege or excessive tardiness or absenteeism without good cause;

(3) Has willfully, wantonly, or through culpable negligence been guilty of brutality or cruelty to an inmate or prisoner of a city institution or to a person in custody;

(4) Has willfully violated any of the provisions of the civil service law or rules of the board*;

(5) Has violated any lawful and reasonable official regulation or order, or failed to obey any lawful or reasonable direction made and given by his/her superior, where such violation or failure to obey amounts to:

a. An act of insubordination; or

b. A serious breach of proper discipline; or

c. Resulted, or reasonably might be expected to result, in loss or injury to the city or to the public or to the prisoners or wards of the city;

(6) Has been under the influence of alcoholic beverages, on duty or off, his/her conduct while under said influence bringing reproach upon the city; or has been under the influence of drugs, narcotics, barbiturates or central nervous system stimulants as defined in F.S. ch. 893 on duty or off, his/her conduct while under said influence bringing reproach upon the city;

(7) Has contracted a venereal disease and refuses to seek treatment therefor, or a physical ailment or defect, which incapacitates the employee for properly performing the duties of the position held;

(8) Has been guilty of actions which amount to insubordination or disgraceful conduct, whether committed on duty or off;

(9) Has been wantonly offensive in conduct or language toward the public or city officers or employees;

(10) Has solicited the vote of a member of the city commission for or against a proposed ordinance or resolution or a proposed item in a budget, or an appropriation ordinance concerning the employee's department, where such solicitation is charged and established to have been made elsewhere than at a public hearing of the city commission or a committee thereof, unless the employee is an authorized representative and is presenting the opinion of an organization of city employees;

(11) Is incompetent, negligent, or inefficient in the performance of the duties of the position held;

(12) Is careless or negligent of the property of the city;

(13) Has used, or threatened, or attempted to use political influence in securing promotion, leaves of absence, transfer, change in pay, change in character of work, or revision of examination grade;

*__Note—__See editor's note, § 40-66.

(14) Has guided or in any manner has been concerned in assessing, soliciting, or collecting money from any officer or employee in the service of the city for the purpose of making a gift to a public officer;

(15) Has been induced, has induced, or has attempted to induce an officer or employee in the service of the city to commit an unlawful act, or to act in violation of a lawful and reasonable departmental or official regulation or order; or has taken any fee, gift, or other valuable thing in the course of his/her work or in connection with it for his/her personal use from any citizen, when said contribution is made with the hope or expectation of receiving a favor or better treatment than is accorded to other citizens;

(16) Has intentionally falsified a time record or failed to report absence from duty to superiors; or if, after employment, it is found that an employee has made a false statement in the application for employment or has given false information on his/her preemployment medical examination;

(17) Has been absent from duty without leave, or has failed to report for work after the leave of absence has expired or after the said leave of absence has been disapproved or revoked and cancelled;

(18) Is antagonistic toward superiors and fellow employees, criticizing orders, rules and policies, and whose conduct interferes with the proper cooperation of employees and impairs the efficiency of the public service;

(19) Has been refused a surety bond by the surety company then carrying the city fidelity bonds on all city employees when such bond is applied for as qualifications for employment, or has been refused continuance of coverage under such surety bonds;

(20) Has accepted or received any gift, reward, present, donation, gratuity, or other thing of value for the performance of any duty imposed upon him/her by virtue of his/her office aside from his/her official capacity; provided, however, that this subsection does not apply in cases of meritorious service rendered by a member of a classified service of the civil service of the city when a member of said service has been specially authorized by the city manager in each instance to receive such reward, gift, present, donation, gratuity, or other thing of value and when a permanent record shall be kept in each such instance in the office of the city manager;

(21) Has, without the permission of the city manager and/or the chief of the police department, been found to have in his/her possession and using any recording instrument or device to secretly record conversations without the knowledge or consent of the person or persons whose conversation may be recorded;

(22) Has participated in any strike or has asserted the right to strike against the city or who is a member of an organization of government employees that asserts the right to strike against the city, knowing that such organization asserts such right; or

(23) Has, in his/her official capacity, solicited or recommended attorneys to persons or employees involved in accidents, in injuries sustained by employees in the course of their employment, in property damage, or in any litigation involving the city.

Note: Nothing contained in any of these subsections shall interfere with the right and duty of the city manager, the department directors, chiefs of the police and fire-rescue departments, or a citizen to file charges on any grounds which he/she considers justifiable against any employee.

(b) *Additional grounds for dismissal:*

(1) Should any officer or employee in the classified service of the city appear before a grand jury or juries and refuse to sign an immunity waiver in advance of

testimony before such grand jury or juries and/or refuse to testify fully on all matters concerning the property, government, or affairs of the city, such conduct shall constitute a breach of duty and that employee shall be dismissed from the classified service of the city.

(2) Failure of a city employee to maintain duly established standards of physical fitness shall be grounds for dismissal.

(3) No city employee shall be excused on plea of self-incrimination, or for any other reason, from giving information which may bear on his/her own fitness to hold a job; he/she shall be dismissed for refusing to give such information.

(Ord. No. 8977, § 2 (rule 14 (14.2, 14.12)), 7-24-79; Code 1980, § 40-98; Ord. No. 11419, § 2, 12-12-96)

City Code cross references—Medical examinations, dismissal of employees unable to perform duties, § 40-120(c); dismissal of employees refusing to testify in disciplinary appeals proceedings, § 40-124(b)(6).

Sec. 40-124. Appeals from disciplinary actions.

(a) *Generally.* When any employee in the classified service with permanent civil service status who has been suspended, reduced in rank, or dismissed appeals to the board, the appeal must be made in writing within 15 days from the effective date of the suspension, reduction, or dismissal; and the board within 30 days shall proceed to hear such appeal. The board, recognizing the disciplinary authority of the administrative head and ready at all times to improve the relationship between employer and employee, shall make its findings in writing to the city manager for his/her consideration, who shall enter an order affirming, reversing, or modifying the disciplinary action of the department director. Whenever formal charges are brought against any employee in the classified service before the board, no individual member of the board shall discuss the case with the employee concerned, or his/her authorized agent, or any witness, prior to the hearing.

(b) *Conduct of hearings generally.* The concept of administrative law under which the board holds appeal proceedings is this: that the matter at issue is the appellant's fitness to hold employment in the classified service of the city, based upon the charges presently before them; that therefore the rules of criminal and civil proceedings shall not apply in hearings before the board.

(1) The board shall give written notice of the time and place of hearing the appeal to the appellant, to the city manager, and to the director of the department.

(2) The proceedings shall be as informal as is compatible with the essential requirements of law.

(3) The admission of evidence shall be governed by the board's rulings, with the advice of the board's counsel, if such be available. Strict rules of evidence, as in courts of law, shall not apply. Evidence is to be admitted at the discretion of the board and pertinent information considered for the purpose of substantial justice for all parties.

(4) The appellant may be represented by counsel; the director of the department may be represented by the city attorney or other counsel.

(5) Admissible as evidence shall be written statements made by the appellants and others, transcripts of oral statements made by the appellants and others, and hearsay evidence, for whatever these may be worth. This shall not be considered a limitation as to the admission of other types of evidence, or as to the consideration by the board of any and all pertinent information.

(6) Appellants and all other classified employees of the city may be required to testify. Refusal to testify shall be grounds for dismissal. Admissions against interest may be admitted as evidence. A plea of self-incrimination by a witness shall constitute grounds for dismissal.

(7) The board shall be free to make its determination of appellant's innocence

or guilt in keeping with the public interest, based solely on the board's reasonable interpretation of all the pertinent information available. The board shall not be bound by a presumption of the appellant's innocence or guilt; such presumption does not prevail in administrative law. The findings of the board shall be based on competent substantial evidence before it.

(8) In considering the appellant's fitness to hold employment in the classified service of the city, the board shall not be bound by the strict letter of the charges as drawn. The board may allow the charges to be amended at any time, as long as the amendment is material to the charges. In general, the board in its findings shall be guided, not by technicalities, but by the substance of the information developed in its hearings.

(9) The board has full power to prescribe the manner of conduct of its hearings.

(10) After due consideration of the evidence and other pertinent information, the board shall render its findings to the appellant and to the city manager.

(c) *Order of proof.* The board shall hear the evidence upon the charges and specifications as filed with it by the director of the department. The order of proof shall be as follows:

(1) The director of the department or his/her appointed representative shall present his/her evidence in support of the charges.

(2) The appellant shall then produce such evidence as he/she may wish to offer in his/her defense. The director of the department may offer rebuttal evidence, and the board at its discretion may hear arguments.

(d) *Failure of parties to appear.* If the employee notified shall fail to appear at the time fixed for the hearing, the board shall hear the evidence and render judgment thereon. If the department director shall fail to appear, and if no evidence be offered in support of the charges made, the board may render judgment as by default or may hear evidence offered by the removed employee and render judgment thereon, and the board shall forthwith notify the city manager, the department director and the removed employee of its decision.

(e) *Appeals from orders of reduction in pay or position, layoff or suspension.* Hearings on appeal from employees reduced in pay or position, laid off, or suspended by the department director shall be conducted generally in the same manner as hearings on appeal from orders of discharge.
(Ord. No. 8977, § 2 (rule 14 (14.3—14.5, 14.7, 14.10)), 7-24-79; Code 1980, § 40-99)

Sec. 40-125. Resignation before final action on appeal from disciplinary action.

The acceptance by a department director of the resignation of an employee suspended, reduced in rank, or dismissed, before final action on the part of the board, shall be considered a withdrawal of the charges and the separation of the employee concerned shall be recorded as a resignation, and the proceedings shall be dismissed without judgment. A copy of the dismissal charge shall remain in the personnel file of the employee, and a notation shall be made on the copy of the dismissal charge to the effect that charges were withdrawn pursuant to this section.
(Ord. No. 8977, § 2 (rule 14 (14.6)), 7-24-79; Code 1980, § 40-100)

Sec. 40-126. Limitation on reappointment of employees dismissed for misconduct, etc.

Any employee who is dismissed for misconduct, delinquency, or who resigns while not in good standing, shall be disqualified from taking any examination for at least two years thereafter, unless in the judgment of the board the charges will not affect the employee's usefulness in some other occupation.
(Ord. No. 8977, § 2 (rule 14 (14.8)), 7-24-79; Code 1980, § 40-101)

Sec. 40-127. Notification of and recording of departmental personnel changes by personnel management department.

Immediate notice in writing shall be given by the department director to the director of the personnel management department of all appointments (permanent and temporary), transfers, promotions, resignations, suspensions and vacancies from any cause, and the date thereof, and a record of same shall be kept by the director of the personnel management department. Whenever a new position is created or an old one abolished or consolidated with another of different classification, the department director interested shall immediately report same in writing to the director of the personnel management department.

(Ord. No. 8977, § 2 (rule 8 (8.13)), 7-24-79; Code 1980, § 40-102)

City Code cross reference—Official personnel records, § 40-72.

Sec. 40-128. Grievances and abuses generally.

(a) *Investigations by the board.* Whenever the board has reason to believe that this article has been violated by the abuse of power in recommending or making an appointment to any position, or in a layoff, demotion, suspension, or removal without justification, or in any other manner, it shall be the duty of the board to investigate. If, in making this investigation, the board shall find that said violations were contrary to the intent and spirit of this article, it shall make a report thereof to the director of the department involved and to the city manager.

(b) *Complaint by employee.* Any employee who is aggrieved by reason of what he/she considers a violation of this article to his/her detriment, or who has a grievance concerning his/her employment under this article, and who desires redress, shall notify the executive secretary in writing, stating the nature of his/her grievance and requesting a hearing by the board.

(1) Upon receipt of such notice, the executive secretary shall promptly inform the board, and the board shall schedule the matter for a hearing within 30 days of the date of receipt of the notice by the executive secretary, who shall notify the employee of the time, date, and place of hearing.

(2) If the board so desires, it may make a preliminary investigation of the matter before the hearing.

(3) The employee shall appear before the board at the scheduled time and place, and shall present pertinent information to the board concerning his/her grievance.

(4) The board shall consider the matter, and promptly present its findings and recommendations to the city manager for his/her consideration of a proper remedy, if a remedy is necessary.

(Ord. No. 8977, § 2 (rule 16 (16.1, 16.2)), 7-24-79; Code 1980, § 40-103)

Sec. 40-129. Authority of chief examiner to review applicant complaints, make recommendations.

The chief examiner may review any complaint of an applicant for employment or promotion and may make recommendations to the city manager and the director of the personnel management department for resolution of such complaints in accordance with the provisions of this article.

(Ord. No. 8977, § 2 (rule 4 (4.2)), 7-24-79; Code 1980, § 40-104)

Sec. 40-130. Discriminatory practices, fraudulent statements, improper solicitations, etc., prohibited; penalties.

Except as required by statute or by a court of competent jurisdiction, no person in the classified service or seeking admission thereto shall be favored or discriminated against in any way because of his/her race, color, national origin, marital status or political or religious opinions or affiliations, or because of age or sex, or physical or mental handicap, as prohibited by statute. No person shall willfully or corruptly make or cause to be made any false statement, certificate, mark, rating or report in regard to any test, certification, promotion, demotion,

removal or appointment held or made under the provisions of this article or in any manner commit or attempt to commit any fraud preventing the impartial execution of the provisions of this article. No person shall either directly or indirectly solicit, pay, render, receive, or give any money, service or other valuable thing to any person for, or on account of, or in connection with any test, appointment, promotion, demotion, layoff, or dismissal. Any person who violates the provisions of this section, besides the legal penalties provided, shall be ineligible for appointment or employment in a classified position for such period as may be determined by the board; and any classified employee of the city found guilty of violating this section by the board may be dismissed, suspended or demoted as the board may determine.

(Ord. No. 8977, § 2 (rule 17 (17.1)), 7-24-79; Ord. No. 10051, § 1, 10-24-85; Code 1980, § 40-105)

Secs. 40-131—40-155. Reserved.

ARTICLE IV. PENSION AND RETIREMENT PLAN*

DIVISION 1. GENERALLY

Secs. 40-156—40-190. Reserved.

***Editor's note—**Ord. No. 10002, § 1, adopted June 13, 1985, repealed art. IV, the substance of which consisted of div. 2, §§ 40-200—40-219, the "Miami City Employees' Retirement System," established pursuant to Ord. No. 2230, adopted Dec. 6, 1939; and div. 3, §§ 40-225—40-243, the "Miami City General Employees' Retirement Plan," established pursuant to Ord. No. 5624, adopted May 2, 1956. Both Ord. Nos. 2230 and 5624 were specifically repealed by § 5 of Ord. No. 10002. The legislation from which former divs. 2 and 3 derived is listed below:

Div. 2: Code 1967, §§ 41-400—41-403, 41-403.1, 41-404—41-418, and

Ord. No.	Date	Ord. No.	Date
8292	7-25-74	8848	9-28-78
8647	4-28-77	8898	2-22-79
8732	1-11-78	8911	3- 8-79
8753	1-24-78	9226	12-17-80
8826	7-13-78	9355	12-10-81

Div. 3: Code 1967, §§ 41-425—41-428, 41-428.1, 41-428.2, 41-429, 41-429.1, 41-429.2, 41-430—41-439, and

Ord. No.	Date	Ord. No.	Date
8292	7-25-74	8848	9-28-78
8659	6- 9-77	8864	10-12-78
8685	8- 2-77	8865	10-12-78
8738	1-11-78	8882	12-14-78
8826	7-13-78	8913	3- 8-79
8842	9-14-78		

City Code cross reference—Presumption in favor of police officers concerning death or disability, § 42-7.

State law reference—Preservation of rights of members of municipal pension systems under Florida Retirement System Act, F.S. § 121.011(3)(b).

Case law reference—Validity of Ordinance No. 2230, which established the Miami City Employees' Retirement System, upheld against various contentions of illegality. Voorhees v. City of Miami, 145 Fla. 402, 199 So. 313.

For effect of adoption of Ordinance No. 2230 upon pension rights of widow[/widower] of deceased police officer under former pension provisions, see State v. City of Miami, 153 Fla. 644, 15 So. 2d 449.

DIVISION 2. CITY OF MIAMI FIREFIGHTERS' AND POLICE OFFICERS' RETIREMENT TRUST

Sec. 40-191. Definitions.

Unless a different meaning is plainly required by the context, the following words and phrases as used in this division shall have the following meanings:

Accumulated contributions shall mean the sum of all amounts deducted or picked up from a member's compensation plus all other amounts contributed to the retirement system by a member pursuant to this division, together with regular interest thereon as provided in section 40-197(b).

Active membership shall mean membership in the retirement system as an employee.

Actuarial assumptions shall mean the benefit of equal value as determined using the RP 2000 Projected to 2020 Scale AA and an interest rate of 7.42 percent compounded annually.

Actuarial equivalent shall mean a benefit having the same present value as the benefit it replaces, using the actuarial assumptions listed above.

Average final compensation shall mean the annual earnable compensation of a member during either the last one year or the highest one year of membership service, whichever is greater.

BACDROP shall mean Benefit Actuarially Calculated Deferred Retirement Option Program.

Beneficiary shall mean any person receiving a retirement allowance or other benefit from the retirement system.

Benefit shall mean a retirement allowance or other payment provided by the retirement system.

Board or board of trustees shall mean the board of trustees of the retirement system.

City employee shall mean any person employed by the city.

COLA shall mean cost-of-living allowance.

Creditable service shall mean membership credit upon which a member's eligibility to receive benefits under the retirement system is based or upon which the amount of such benefits is determined.

DROP shall mean Deferred Retirement Option Program and shall include a Forward DROP and a BACDROP.

DROP account shall mean the account established for each DROP participant.

DROP participant shall mean a beneficiary participating in the DROP.

Early service retirement shall mean a member's withdrawal from service under circumstances permitting payment of a retirement allowance before such member is eligible for normal service retirement.

Earnable compensation for police officers shall mean an employee's base salary, including pickup contributions, for all straight time hours worked, plus assignment pay and payments received for vacation and sick leave taken, jury duty, and death-in-family leave taken, and any other items, if any, currently included in the calculation of average final compensation. Earnable compensation shall not include overtime pay except as indicated at the end of this paragraph; payments for accrued sick leave, or accrued vacation leave, or accrued compensatory leave; holiday pay; premium pay for holidays worked; the value of any employment benefits or nonmonetary entitlements; or any other form of remuneration. As of August 1, 2024, a member may elect a maximum of 200 total overtime hours to be used in calculating the average earning for pension benefits.

Earnable compensation for firefighters shall mean an employee's base salary, including pickup contributions, for all straight time hours worked, plus assignment pay and payments received for vacation and sick leave taken, jury duty, and death-in-family leave taken, and any other items, if any, currently included in the calculation of average final compensation. Earnable compensation shall not include overtime pay; payments for accrued sick leave, accrued vacation leave, or accrued compensatory leave; holiday pay; premium pay for holidays worked; the value of any employment benefits or nonmonetary entitlements; or any other form of remuneration.

Employee shall mean a firefighter or police officer presently employed by the city as a firefighter or police officer, whether in the classified or unclassified service of the city. Any member of the retirement system who becomes employed by the Dade County metropolitan government by virtue of the merger, transfer or assignment of governmental units or functions and who does not elect within six months thereafter to become a member of the state and county officers' and employees' retirement system shall, so long as such employment continues, be deemed an employee within the meaning of this section. In its capacity as the employer of such member, the Dade County metropolitan government shall be deemed to be included with the term "city" as such term is used herein to refer to the city in its capacity as the employer of a member.

Excess interest earnings shall mean the difference between the return on the actuarial market value of the average assets (investment and noninvestment) of the City of Miami firefighters' and police officers' retirement trust fund, as calculated in accordance with F.S. ch. 112 and the assumed return on the actuarial market value of such assets for active members on the current actuarial valuation report.

Firefighter shall mean any person initially employed as a full-time professional firefighter by the city, whose primary responsibility is the prevention and extinguishment of fires, the protection of life and property, and the enforcement of any law pertaining to the prevention and control of fires.

FOP shall mean The Fraternal Order of Police, Lodge #20.

Forward DROP shall mean a Deferred Retirement Option Program where benefit is equal to the regular retirement allowance the member would have received had the member separated from service and commenced the receipt of benefits from the system.

Fund shall mean the City of Miami firefighters' and police officers' retirement trust fund.

IAFF shall mean the International Association of Fire Fighters, AFL-CIO, Local 587.

ICA shall mean an individual contribution account.

Investment expenses shall mean the cost of money management fees.

Member or *member in service* shall mean an employee for whom contributions to the retirement system are made as required by this division.

Member absent from service shall mean any member ceasing to be a city employee who is absent from service less than three years in a period of five consecutive years after last becoming a member and who does not withdraw his or her accumulated contributions. In order for a member absent from service to be entitled to receive a benefit during the period before membership elapses, the benefit must have vested prior to the member's ceasing to be a city employee.

Member not in service shall mean any member who exercises a vested right to retirement pursuant to section 40-203(e).

Membership credit shall mean credit received by a member for time spent in membership service or for such time as is otherwise authorized by this division.

Membership service shall mean service as an employee on account of which contributions to the retirement system are made as required by this division.

Miami city employees' retirement system shall mean the city pension system which was established effective January 1, 1940, pursuant to Ordinance No. 2230, enacted December 6, 1939.

Noninvestment expenses shall mean the costs of administering the retirement system. Salaries for office staff, overhead, professional fees for actuaries, accountants, and attorneys, and other similar costs are examples of noninvestment expenses.

Normal costs shall mean the cost of benefits attributable to the current year under the frozen entry-age actuarial costs method.

Option shall mean one of several choices available to members with respect to the manner in which a retirement allowance may be paid.

Payback shall mean a member's contribution to the retirement system for membership credit for which other than regular contributions may be made pursuant to this division. Contributions permitted for paybacks shall not be picked up by the city but may be deducted from a member's compensation.

Pension shall mean a series of periodic payments usually for life, payable in monthly installments.

Pickup amounts shall mean employer contributions derived from a member's earnable compensation through a reduction in the member's earnable compensation.

Police officer shall mean any person employed by the city who is vested with authority to bear arms and make arrests, and whose primary responsibility is the prevention and detection of crime or the enforcement of the penal, criminal, traffic, or highway laws of the State of Florida.

Regular contributions shall mean amounts picked up by the city from the earnable compensation of a member. Regular contributions shall not include payback contributions of any kind or nature or any other amounts which may be deducted from a member's compensation pursuant to this division.

Regular interest shall mean interest at the rate determined by the board of trustees pursuant to section 40-197(b).

Retirement shall mean a member's withdrawal from service with a benefit granted to the member pursuant to the provisions of this division.

Retirement allowance shall mean a pension provided by the retirement system.

Retirement system shall mean the City of Miami firefighters' and police officers' retirement trust.

Rule of 64 shall mean a computation consisting of the sum of a member's age and length of creditable service, which sum shall permit normal service retirement upon the member's combined age and creditable service equaling at least 64. The rule of 64 shall apply to all police officer members. The rule of 64 shall also apply to any firefighter member whose combined age and length of creditable service is equal to or greater than 64 on or before September 30, 2009.

Rule of 68 shall mean a computation consisting of the sum of a member's age and length of creditable service, which sum shall permit normal service retirement upon the member's combined age and creditable service equaling at least 68. The rule of 68 shall only apply to firefighter members whose combined age and length of creditable service are less than 64 on September 30, 2009.

Service shall mean active service as an employee.

Service retirement shall mean a member's retirement from service under circumstances permitting payment of a retirement allowance without reduction because of age or length of creditable service and without special qualifications such as disability. Service retirement shall be considered normal retirement.

Trustee shall mean a member of the board of trustees of the retirement system.

Unfunded liability shall mean "unfunded actuarial liability" which is the excess of the actuarial accrued liability of the retirement system over the value of its present assets. The term "unfunded liability" shall include the frozen unfunded liability of the retirement system.

Vested benefit shall mean an immediate or deferred benefit to which a member has gained a nonforfeitable right under the provisions of this division. Minimum vesting shall mean ten years of creditable membership before the member is entitled to retirement benefits except accidental disability retirement, service incurred disability retirement, and ordinary death benefits.

(Ord. No. 10002, § 1, 6-13-85; Ord. No. 10910, § 1, 9-5-91; Ord. No. 11235, § 1, 3-27-95; Code 1980, § 40-200; Ord. No. 11300, § 1, 9-14-95; Ord. No. 11752, § 2, 1-26-99; Ord. No. 13091, § 1, 9-24-09; Ord. No. 13202, § 2, 9-27-10; Ord. No. 13551, § 2, 9-24-15; Ord. No. 14066, § 2, 5-12-22; Ord. No. 14299, § 2, 7-25-24)

Sec. 40-192. Retirement system established; purpose; name; date operative.

A retirement system is hereby established and placed under the administration and management of a board of trustees for the purpose of providing retirement benefits pursuant to the provisions of this division. The retirement system established herein shall be known as the "City of Miami firefighters' and police officers' retirement trust" and shall be effective as of June 13, 1985.
(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-201)

Sec. 40-193. Board of trustees.

(a) *Selection.*

(1) The board of trustees of the retirement system shall consist of nine persons selected as follows:

a. One trustee selected by the city manager, which trustee shall not be the mayor, a city commissioner, the city manager, the city finance director, or an assistant finance director;

b. Two trustees selected by the firefighters, which trustees shall belong to the bargaining unit represented by the IAFF and shall be elected and serve according to the constitution and bylaws of the IAFF;

c. Two trustees selected by the police officers, which trustees shall belong to the bargaining unit represented by the FOP and shall be elected and serve according to the constitution and bylaws of the FOP; and

d. Four independent trustees, which trustees shall not be city employees, selected by the commission. Two such trustees shall be selected from a list of six persons submitted by the IAFF according to its constitution and bylaws, and two such trustees shall be selected from a list of six persons submitted by the FOP according to its constitution and bylaws. Each of the lists submitted to the commission shall not contain any name which duplicates a name appearing on the other lists. In the event a duplication of names does occur, both lists shall be returned by the commission for resubmission without duplication. An independent trustee shall have at least the following qualifications:

1. Be presently employed or self-employed on a full-time basis, or be retired from such;
2. Have resided in Miami (or its immediate environs) for the past five years;
3. Be able to attend board meetings if scheduled well enough in advance and agree to resign from the board if meeting attendance is less than 75 percent in a one-year period; however, the provisions of this subsection shall not apply to those individuals who are members of city boards and who are (1) reservists in the United States Armed Forces or members of the Florida National Guard, and have been ordered to active military duty for national, state, or homeland defense and due to such duty cannot attend board meetings, or (2) employees of agencies whose services are considered essential for national, state, or homeland defense and due to such services cannot attend board meetings.

4. Have been involved in, within the last five years, and be knowledgeable about, employee pension or similar fringe benefits;
5. Have knowledge of, be familiar with, and have had exposure to labor/management relations;
6. Have knowledge of and be familiar with business principles;
7. Have not been, within the last five years, a public employee union representative nor a representative of management for the city;
8. Not be actively involved in nor aspire to be actively involved in city, county or state politics.

(2) A trustee shall take an oath of office within ten days following selection as a member of the board.

(b) *Term of office.*

(1) The term of office for each trustee shall be two years except for the initial trustees who shall serve as follows:

a. Of the trustees selected by the firefighters, one shall serve for a one-year term and the other for a two-year term;

b. Of the trustees selected by the police officers, one shall serve for a one-year term and the other for a two-year term;

c. Of the two independent trustees appointed by the commission from the list submitted by the IAFF, one shall serve for a one-year term and the other for a two-year term;

d. Of the two independent trustees appointed by the commission from the list submitted by the FOP, one shall serve for a one-year term and the other for a two-year term; and

e. The trustee appointed by the city manager shall serve for a two-year term.

(2) Trustees may serve as many consecutive terms as those participating in the respective selection processes deem appropriate.

(c) *Fiduciary responsibility.* Members of the board of trustees shall be the named fiduciaries of the retirement system. As named fiduciaries, the trustees shall discharge their duties and responsibilities solely in the interest of members and beneficiaries of the retirement system:

(1) For the exclusive purpose of providing benefits to members and their beneficiaries and defraying reasonable expenses of administering the retirement system;

(2) With the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims; and

(3) In accordance with ordinances and other applicable law, documents and other instruments governing the retirement system.

(d) *Compensation.* Trustees who are employees of the city, whether firefighters, police officers, or otherwise, shall be granted leave with full pay when functioning as a trustee during their normal working hours. Such trustees shall not otherwise be paid for their services as trustees. All other trustees shall be compensated at any given time in the same manner as are members of the city's civil service board.

(e) *Meetings; voting; quorum; officers.*

(1) The board shall meet at least once every two months following appropriate public notice and shall meet and conduct the business of the retirement system in accordance with F.S. ch. 286.

(2) As a member of the board, each trustee shall be entitled to one vote, and five

concurring votes shall be necessary for a decision by the board. Five trustees shall constitute a quorum for the purpose of meeting and transacting the business of the board.

(3) The board shall elect a trustee as chairperson and a trustee as vice-chairperson of the board.

(f) *Vacancies; removal.*

(1) If a vacancy occurs on the board due to resignation, death, removal or otherwise, the vacancy shall be filled for the unexpired term of the departing trustee in accordance with the provisions of this section for selection of the trustee who has vacated the office.

(2) The board may remove a trustee prior to completion of his or her designated term of office for proper cause only, which cause shall be stated in writing. Notwithstanding any provision of this division to the contrary, six concurring votes shall be necessary to effect such removal. Proper cause shall mean a trustee's failure to satisfactorily discharge his or her fiduciary duties and responsibilities, including, but not limited to, failure to attend 75 percent or more board meetings in a one-year period.

(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-202; Ord. No. 11564, § 15, 10-28-97; Ord. No. 12201, § 1, 3-14-02; Ord. No. 13676, § 2, 4-27-17)

Sec. 40-194. Administration of retirement system.

(a) *Plan administrator.* The board shall serve as plan administrator of the retirement system.

(1) The general administrative duties of the board shall be:

a. To maintain such records as are necessary for calculating and distributing retirement system benefits;

b. To maintain such records as are necessary for financial accounting and reporting of retirement system funds;

c. To maintain such records as are necessary for actuarial evaluation of the retirement system, including investigation into the mortality, service and compensation experience of its members and beneficiaries;

d. To compile such other administrative or investment information as is necessary for the management of the retirement system;

e. To process, certify and/or respond to all correspondence, bills and statements received by the retirement system, as well as all applications submitted to the board for retirement system benefits;

f. To establish and maintain communication with city departments and other local, state and federal governmental units as is necessary for the management of the retirement system, including preparing, filing, and distributing such reports and information as are required by law to be prepared, filed or distributed on behalf of the retirement system;

g. To establish and maintain such other functions as are necessary to administer, manage and operate the retirement system, or as otherwise required by law.

(2) The board shall submit the following information annually to the commission no later than July 1 of each year: (a) a report showing the fiscal transactions of the retirement system for the year ending on the preceding September 30 as well as the amount of accumulated cash, securities, and other property of the retirement system on that date and (b) the current actuarial valuation of the assets and liabilities of the system. The actuarial value of assets held by the retirement system shall be designated as the lower of moving market value average (three years) or statement value. The board

may approve other methods of determining the actuarial value of retirement system assets if such other methods are recommended by the actuary retained by the board and found by the Florida bureau of local retirement systems, division of retirement, department of administration, or its successor, to be in compliance with state law. Prior to the first meeting of the board to consider a change in the method of determining the actuarial value of retirement system assets, the board shall give timely, written notice to the city of the proposed change.

(3) At least once in each three-year period, the board shall cause an actuarial investigation to be made into the mortality, service and compensation experience of the members and beneficiaries of the retirement system. Taking into account the result of this investigation, the board shall adopt for the retirement system such mortality, service and other tables as are necessary and proper. On the basis of these tables, an annual actuarial valuation of the assets and liabilities of the funds of the retirement system shall be made. Actuarial assumptions based on three-year experience analyses may be modified by the board at such times as it deems appropriate. When a change in actuarial assumptions is considered by the board, 60 days' notice shall be given to the city prior to the first meeting of the board to consider any such change or any proposal or recommendation related thereto. Thereafter, reasonable notice shall be given to the city of any and all subsequent meetings at which the issue of a change in actuarial assumptions or a related proposal or recommendation is to be considered.

(b) *Pension administrator; board physician; advisors.*

(1) The board shall employ a pension administrator to assist the board in the performance of its administrative duties. The pension administrator may, subject to the approval of the board, employ such staff as is necessary for the proper administration of the retirement system.

a. The pension administrator selected by the board shall have at least the following qualifications:

1. Have an accounting or pension administration background;
2. Have managerial experience including hiring, directing and motivating a small staff;
3. Have sufficient knowledge or experience to supervise data processing operations;
4. Have experience with filing government forms (including those related to federal and state compliance requirements) and have the initiative to obtain resource data when specific information is not readily available;
5. Be capable of using benefit formulas to calculate and pay benefits;
6. Be capable of prudent financial management and obeying guidelines established by the board;
7. Be capable of developing cash flow projections;
8. Be capable of preparing financial reports reflecting the activity of the trust and financial trends;
9. Be capable of maintaining an investment schedule;
10. Be capable of maintaining minutes of meetings of the board of trustees;
11. Be capable of preparing correspondence, issuing forms, receiving and processing benefit claims, and expressing ideas in writing;
12. Be able to insist upon, and actively pursue delivery of, all

reports and other documents required for efficient operation of the retirement system;

13. Have effective oral communications skills;
14. Have a good employment attendance record;
15. Be efficient, practical and committed to responsible and effective operation of the retirement system, its finances and expenses;
16. Be able to remain neutral on decisions to be made by the board and serve all board members in an impartial and arms-length fashion, giving due recognition to the ultimate fiduciary obligation to members and beneficiaries of the retirement system.

b. The board shall have a continuing duty to observe and evaluate the performance of any pension administrator employed by the board. The board shall, in selecting any such pension administrator, exercise all judgment and care under the circumstances then prevailing which persons of prudence, discretion and intelligence exercise in the management of their own affairs.

(2) The board shall retain a physician to assist the board in the performance of its administrative duties. The physician shall conduct or otherwise provide for any medical examination required under the provisions of this division and may refer any examinee to a specialist or specialists. Following any medical examination required by this division, and after taking into consideration the reports of specialists, if any, the physician shall submit written conclusions and recommendations regarding the examinee to the board.

(3) The board shall have authority to retain its own legal counsel, accountants, actuaries, and other professional advisors to assist the board in the performance of its administrative duties. The board may act without independent investigation upon the professional advice of advisors so retained.

(4) The board shall, consistent with its independence from the board of trustees of the City of Miami general employees' and sanitation enforcement retirement trust, endeavor to share personnel, services and facilities with the latter board.

(c) *Public records; board documents; written communication to and from city; commission agenda.*

(1) The board shall keep a record of all of its proceedings which shall be maintained and open to public inspection in accordance with F.S. ch. 286. Such records shall reflect a complete and comprehensive account of the discussions and actions taken by the board.

(2) The board shall provide the city manager with copies of all documents relating to the retirement system contemporaneously with the making or receipt of such documents by the board or immediately thereafter. The city manager shall provide the pension administrator of the board with copies of all documents relating to the retirement system contemporaneously upon the making or receipt of such documents by the city or immediately thereafter. All written communications relating to the retirement system from the board to the city shall be made directly to the city manager. All written communications to the board from the city shall be made directly to the board, with copies to the pension administrator of the board.

(3) When a hearing before or consideration by the commission is required for retirement system business, such business shall be placed on the agenda of the commission and heard at its next regularly scheduled meeting; provided, that any request for hearing or consideration of

retirement system business complies with the city's requirements or guidelines as to timeliness and adequacy of information.

(d) *Rules and regulations.* Subject to any limitation contained in this division, the board may from time to time establish such rules and regulations as are necessary for efficient administration and management of the retirement system.

(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-203)

Sec. 40-195. Trust fund.

(a) *Nature of trust.*

(1) The Miami city employees' retirement system trust is an irrevocable trust previously established by ordinance. The commission, having retained that right, hereby appoints a successor trustee to administer the trust thereby created. The successor trustee designated by the commission shall be the board of trustees of the City of Miami firefighters' and police officers' retirement trust. Hereafter, the Miami city employees' retirement system trust shall be known as the City of Miami firefighters' and police officers' retirement trust fund but it shall remain and continue as the same irrevocable trust as set forth in prior city ordinances.

(2) The board shall be vested with full legal title to the City of Miami firefighters' and police officers' retirement trust fund and shall hold the fund as an irrevocable trust to be applied from time to time in accordance with the provisions of this division. All payments made to the fund by the city and by members of the system, and all assets whatsoever of the fund and the income thereof, without distinction between principal and income, shall be held by the board in a single trust fund. The board may, however, segregate or invest separately any portion of the fund.

(3) Members of the board of trustees shall be the named fiduciaries of the fund. As named fiduciaries, the trustees shall hold, manage, control and safeguard the fund solely in the interest of members and beneficiaries of the retirement system:

a. For the exclusive purpose of providing benefits to members and their beneficiaries and defraying reasonable expenses of administering the retirement system;

b. With the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims;

c. By diversifying the investments of the fund so as to minimize the risk of losses, unless under the circumstances it is clearly prudent not to do so;

d. In accordance with ordinances and other applicable law, documents and other instruments governing the fund.

(4) The board shall have authority to retain its own legal counsel, accountants, actuaries and other professional advisors to assist the board in the performance of its trust duties. The board may act without independent investigation upon the professional advise of advisors so retained.

(5) The board is authorized to prosecute or defend actions, claims or proceedings of any nature or kind for the protection of fund assets and for the protection of the board in the performance of its duties.

(b) *Trust property.*

(1) Trust property shall consist of all cash, securities and other property previously accumulated on behalf of the Miami city employees' retirement system trust, together with such other cash, securities and other property as the board may at any time hold or acquire from or on

behalf of the city or members of the retirement system pursuant to this division, and the accruals thereto.

(2) The board may buy, sell, convert, redeem, exchange or otherwise dispose of trust property at any public or private sale without notice or advertisement, for cash or upon credit with or without security, without obligation on the part of any person dealing with the board to see the application of the process of or inquire into the validity, expedience or propriety of any such disposition, and may make, execute, acknowledge and deliver contracts, assignments, waivers or other instruments.

(3) The board shall have the authority to vote upon any stocks, bonds or securities of any corporation, association or trust and to give general or specific proxies and powers of attorney with or without power of substitution; to participate in mergers, reorganizations, recapitalizations, consolidations, and similar transactions with respect to such securities; to deposit such stock or other securities in any voting trust or any protective or like committee or with depositories designated by the board, subject to the approval of the commission; to amortize or fail to amortize any part or all of the premium or discount resulting from the acquisition or disposition of assets; and generally, to exercise any of the powers of an owner with respect to stocks, bonds or other investments comprising the fund which the board may deem to be in the best interest of the fund to exercise.

(c) *Investments.*

(1) The trustees shall, in acquiring, investing, reinvesting, exchanging, retaining, selling and maintaining property for the benefit of the FIPO trust fund exercise the judgment and care under the circumstances then prevailing, which persons of prudence, discretion and intelligence exercise in the management of their own affairs, not in regard to speculation but in regard to the permanent disposition of their funds, considering the probable income as well as the probable safety of their capital. Within the limitations of the foregoing standard, the trustees are authorized to acquire and retain every kind of property, real, personal or mixed, and every kind of investment specifically including, but not by way of limitation, bonds, debentures and other corporate obligations, and stocks, preferred or common, which persons of prudence, discretion and intelligence acquire or retain for their own account and, within the limitations of the foregoing standard, the trustees may retain property acquired, without limitation as to time and without regard to its suitability for original purchase. The intent of this provision is to remove any and all restrictions which are otherwise imposed by F.S. ch. 175 or 185, and which may be removed.

(d) *Money manager.*

(1) Pursuant to written agreement, the board shall retain one or more money managers for the management of property held in the fund, and the board shall convey property of the fund to such money manager(s) for investment and reinvestment in accordance with this section.

a. The board shall establish written guidelines and objectives against which the investment performance of any money manager retained by the board shall be measured. If a money manger fails to meet the guidelines and objectives, or fails to perform in accordance with its contractual agreement with the board, the money manager may be terminated by the board. The performance of the investment portfolio for the retirement system shall not be less than 90 percent of the median performance of comparable portfolios as determined jointly by the board and the city manager. If the performance falls

below that minimum standard, the money manager(s) shall automatically be removed unless, based upon extenuating circumstances, the board recommends continuation and such continuation is approved by the commission.

b. In the acquisition, investment, reinvestment, exchange, retention, sale and management of property for the benefit of the fund, the money manager(s) shall exercise all judgment and care under the circumstances then prevailing which persons of prudence, discretion and intelligence exercise in the management of their own affairs, not in regard to speculation, but in regard to the permanent disposition of their funds, considering the probable income as well as the probable safety of their capital.

c. Upon written request by the board, the money manager(s) shall disburse cash or property from the fund to the board or its designee. In requesting the money manager(s) to make any such distribution, the board shall follow the provisions of this division and shall not direct that any payment be made that would cause any part of the fund to be used for or diverted to purposes other than providing benefits to members and beneficiaries of the retirement system and defraying reasonable expenses of administering the retirement system. Any written request to the money manager(s) from the board shall constitute a certification that the distribution so requested is one that the board is authorized to direct, and the money manager(s) shall not be required to investigate the application of such money by the board or its designee.

(2) The board shall have a continuing duty to observe and evaluate the performance of any money manager or other investment counsel retained by the board. The board shall, in selecting a money manager or other investment counsel, exercise all judgment and care under the circumstances then prevailing which persons of prudence, discretion and intelligence exercise in the management of their own affairs.

(e) *Records to be maintained.*

(1) The board shall require that any money manager or other agent who has custody or control of any trust property keep accurate and detailed accounts of all investments, receipts, disbursements and other transactions of or pertaining to such trust property, and the board shall further require that all accounts, books and records relating thereto be open to inspection and audit at all reasonable times by the city, the board, or their designees.

(2) The board shall also keep accurate and detailed accounts of all investments, receipts, disbursements and other transactions of or pertaining to trust property, and all accounts, books and records relating thereto shall be open to inspection and audit at all reasonable times by the city or its designees.

(f) *DROP account exceptions.*

(1) None of the restrictions in this section hereinabove shall apply to assets in DROP accounts which may be invested in any investments otherwise not prohibited by law.

(Ord. No. 10002, § 1, 6-13-85; Ord. No. 10500, § 1, 10-27-88; Code 1980, § 40-204; Ord. No. 11300, § 1, 9-14-95; Ord. No. 11752, § 2, 1-26-99; Ord. No. 13676, § 2, 4-27-17)

Sec. 40-196. Contributions.

(a) *Member contributions.*

(1) Effective January 9, 1994, and thereafter, regular contributions of each member of the retirement system shall be made each pay period at the rate of ten percent of each member's earnable compensa-

tion. Effective the first full pay period following October 1, 1999, regular contributions of each member of the retirement system shall be made each pay period at the rate of seven percent of each member's earnable compensation.

(2) a. Effective the first full pay period following October 1, 2000, and thereafter, regular contributions of each member of the retirement system shall be made each pay period at the rate of seven percent or equal to the city's contribution, whichever is less.

b. Effective the first full pay period following October 1, 2000, should the member contribution be less than seven percent, the difference between the seven percent and the actual contribution shall be deducted from the member's paycheck and placed into an individual contribution account (ICA), as part of the retirement system. ICA's shall be established as allowed by IRS Code. Only if it is found that the IRS Code does not allow for an individual account, the reduction in contribution shall be reflected in the member's paycheck.

(3) a. Effective the first full pay period following the effective date of the ordinance from which this article derives, and thereafter, regular contributions of each firefighter member of the retirement system shall be made at the rate of eight percent of each firefighter member's earnable compensation.

b. Effective the first full pay period following the effective date of the ordinance from which this article derives, should the firefighter member's contribution be less than eight percent, the difference between the eight percent and the actual contribution shall be deducted from the firefighter member's paycheck and placed into an individual contribution account (ICA), as part of the retirement system. ICA's shall be established as allowed by IRS Code. If it is found that the IRS Code does not allow for an individual account, the reduction in contribution shall be reflected in the member's paycheck.

(4) a. Effective the first full pay period following October 1, 2009, and thereafter, regular contributions of each firefighter member of the retirement system shall be made at the rate of nine percent of each firefighter member's earnable compensation.

b. Effective the first full pay period following October 1, 2009, should the firefighter member's contribution be less than nine percent, the difference between the nine percent and the actual contribution shall be deducted from the firefighter member's paycheck and placed into an individual contribution account (ICA), as part of the retirement system. ICA's shall be established as allowed by IRS Code. If it is found that the IRS Code does not allow for an individual account, the reduction in contribution shall be reflected in the member's paycheck.

(5) a. Effective the first full pay period following October 1, 2010, and thereafter, regular contributions of each firefighter member of the retirement system shall be made at the rate of ten percent of each firefighter member's earnable compensation.

b. Effective the first full pay period following October 1, 2010, should the firefighter member's contribution be less than ten percent, the difference between the ten percent and the actual contribution shall be deducted from the firefighter member's paycheck and placed into an individual contribution account (ICA), as part of the retirement

system. ICA's shall be established as allowed by IRS Code. If it is found that the IRS Code does not allow for an individual account, the reduction in contribution shall be reflected in the member's paycheck.

(6) Individual contribution accounts.

a. *Earnings.* Interest on ICA's shall be determined in the same manner as the COLA transfer methodology. Interest shall be credited periodically to the ICA's as determined by the retirement system board's actuary, but not less than once a year.

b. *Disbursements.* Member contributions and earnings in ICA's shall be deemed 100 percent vested upon deposit. Upon the member's separation, ICA balances shall be disbursed as provided under the IRS Code. Disbursement of ICA funds may only occur upon separation or as mandated under the IRS Code.

(7) a. Effective the first full pay period following October 1, 2012, the member contribution for police officers hired prior to October 1, 2012 shall be ten percent of earnable compensation; and effective September 30, 2014, the member contribution for police officers hired prior to October 1, 2012 shall be seven percent of earnable compensation. The member contribution for police officers hired on or after October 1, 2012 shall be three percent of earnable compensation greater than the member contribution for police officer members hired prior to October 1, 2012.

b. Effective the first full pay period following October 1, 2012, the member contribution for firefighters shall be ten percent of earnable compensation. On September 30, 2014, the member contribution for firefighters shall be seven percent of earnable compensation. The member contribution for firefighters hired on or after October 1, 2014, shall be ten percent of earnable compensation.

(b) *City contributions.* Effective October 1, 1993, the city's annual fiscal contribution to the retirement system shall provide for the following: (1) noninvestment expenses of the retirement system; and (2) required actuarial costs of the retirement system.

(1) The city's contribution for noninvestment expenses of the retirement system in any given fiscal year shall be determined by the same process the city uses for that fiscal year in determining the budget of the downtown development authority and the department of offstreet parking.

(2) The city's contribution to the retirement system shall be determined by applying the individual entry age actuarial funding method, as such method is defined by the American Academy of Actuaries, to the projected liabilities of the system as of October 1, 2011, using an assumed system payroll growth rate of three percent and using an unfunded liability amortization period of 25 years, or such other reasonable payroll growth rate and amortization period as agreed by the retirement system's actuary and the city's actuary. The contribution shall be determined as of October 1 of each year (based on the valuation payroll and the program provisions in effect at that time) for the fiscal year beginning on the subsequent October 1, adjusted for interest for one year, based on the actuarial assumptions.

(3) Effective as of the actuarial valuation for October 1, 1998, the investment assumption shall be net of any investment expense assumptions.

(4) The actuarial methodology for evaluating assets shall be a moving market value averaged over three years, from October 1, 1992, prospectively. (As of October 1, 1992, market value shall be

used; as of October 1, 1993, a two-year moving average shall be used; as of October 1, 1994, and thereafter, the three-year moving average shall be used.) The average of ratios of market to book values as of the current and two most recent September 30's is applied to book value at the current September 30. The result cannot be greater than 100 percent of market value or less than 80 percent of market value.

(5) The parties recognize that the amount to be contributed by the city to normal costs in any given year is affected by the assumptions made by the actuaries who calculate the normal costs by the method set forth in subsection (b)(2) above.

(6) The calculation for normal costs shall be performed separately by actuaries for the city and for the retirement system each using the method set forth in subsections (2), (3) and (4) above. The retirement system's actuary shall use the actuarial assumptions adopted by the board. The city's actuary may use any actuarial assumptions deemed appropriate by that actuary. If the retirement system's actuary and the city's actuary agree on the normal costs contribution for the city, that amount shall be contributed by the city. If the two actuaries cannot agree on the normal costs of contribution after attempting to do so, they shall promptly select an independent third actuary. If they are unable to agree on a third actuary, one shall be selected by the American Academy of Actuaries. The third actuary shall, as soon as practicable, submit a funding recommendation utilizing standard acceptable funding techniques and assumptions to the retirement system and the city commission. The city commission shall then fund the amount recommended by either the retirement system's actuary or the city's actuary, whichever recommendation is closer to the recommendation of the third actuary.

(7) On or before May 15 of each year, the board shall certify to the city manager:

a. The amount of appropriation necessary to pay the normal costs to the retirement system for the next fiscal year; and

b. The amount of appropriation required to pay the noninvestment expenses of the retirement system for the next fiscal year.

(8) All contributions made by the city to the retirement system for any given fiscal year shall be made quarterly, plus interest, in equal payments, on the first day of each quarter during the fiscal year in question; or sooner, at the city's option, with appropriate interest adjustment. If the amount of the contribution for normal costs to the retirement system has not been determined by the payment date, then the city shall make quarterly payments, based upon the prior year's contribution. Once the amount of normal costs is determined, if the amount of the contribution differs from the amount previously paid, then a corresponding adjustment shall be made in full on the next quarterly payment.

(Ord. No. 10002, § 1, 6-13-85; Ord. No. 11110, § 2, 1-13-94; Code 1980, § 40-205; Ord. No. 11300, § 1, 9-14-95; Ord. No. 11752, § 2, 1-26-99; Ord. No. 13072, § 2, 6-11-09; Ord. No. 13091, § 1, 9-24-09; Ord. No. 13210, § 1, 10-14-10; Ord. No. 13344, § 1, 9-27-12)

Sec. 40-197. Accounts.

(a) *Membership account.*

(1) The membership account shall be credited with the accumulated contributions of each member of the retirement system and the accumulated contributions of each member absent from service.

(2) Accumulated contributions withdrawn by a member or withdrawn by a member absent from service, and accumulated contributions paid to a legal representative or designated beneficiary in the event

of a member's death while a member, shall be charged to the membership account.

(3) Upon the retirement of a member or upon a member's election of a vested right to retirement, an amount equal to the member's accumulated contributions shall be transferred from the membership account to the benefit account.

(b) *Benefit account.*

(1) The benefit account shall be credited with accumulated contributions transferred from the membership account, all city contributions to the retirement system, all miscellaneous income payable to the retirement system, all interest and dividends earned on the funds of the retirement system (except as provided in paragraph (b)(1)b below), and all reserves for payment of retirement system benefits.

a. Miscellaneous income. The benefit account shall be credited with any miscellaneous income payable to the retirement system. Such income includes:

1. All fines and penalties imposed on firefighters or police officers for breach of any rule of the police or fire-rescue departments;

2. All rewards in moneys, fees, gifts and emoluments that may be paid or given for or on account of extraordinary service by the police or fire-rescue departments or any member thereof (except when allowed to be retained by competitive award or by the rules of the departments), and all moneys, gifts or donations received or given or earned by the police and fire-rescue departments for pension or retirement benefits; and

3. All other sums which may be paid or payable to the retirement system other than pursuant to this division.

Miscellaneous income shall be applied as a credit against contributions otherwise required to be made to the retirement system by the city.

b. Interest and dividends. All interest and dividends earned on the funds of the retirement system shall be credited to the benefit account. On January 1 of each year, the board shall transfer, from the benefit account to the membership account, amounts sufficient to allow regular interest on the balances of the members' accounts in the membership account. "Regular interest" shall mean interest at such percentage rate compounded annually as shall be determined by the board to be equitable both to members and to taxpayers of the city, after taking into consideration the actual interest earnings of the retirement system for the preceding years and the probable earnings of the system in the future. Such rate shall be limited to a minimum of three percent and a maximum of four percent.

(2) All expenses of the retirement system shall be chargeable to the benefit account. Such expenses include, but are not limited to, the following:

a. All retirement benefits paid to beneficiaries of the Miami city employees' retirement system and to beneficiaries of the City of Miami firefighters' and police officers' retirement trust; and

b. All retirement allowances paid to persons under the provisions of the former pension and/or retirement fund for members of the police and fire-rescue departments of the City of Miami or paid to former members

of that fund who did not become members of the Miami city employees' retirement system.

(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-206)

Sec. 40-198. Physical examination required; effect of preemployment disability.

(a) An employee must submit to a physical examination by the city physician or some other physician authorized by the board before such employee may be accepted as a member of the retirement system.

(b) Upon commencement of active membership in the retirement system, a member with a specific disability at the time of employment by the city shall waive in writing any right to an accidental or service-incurred disability retirement allowance based on the member's preemployment disability or any aggravation thereof. A member with a preemployment disability shall be eligible for an accidental or service-incurred disability retirement allowance only if it can be shown to the satisfaction of the board that such member would have been entitled to an accidental or service-incurred disability retirement allowance notwithstanding the preemployment disability.

(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-207)

City Code cross reference—Physical examination required for membership in retirement system or plan, medical requirements for membership, § 40-3.

Sec. 40-199. Membership; right of certain persons to reject membership.

(a) The membership of the retirement system shall include all employees, and any member who is absent from service less than three years in a period of five consecutive years after last becoming a member and who has not withdrawn his or her accumulated contributions. The active membership of the retirement system shall include all employees but shall not include any member absent from service or any DROP participant.

(b) With the exception of persons eligible to decline membership in the retirement system, participation in the retirement system is a mandatory condition of employment for employees. An employee's acceptance of employment with the city shall constitute authorization for the city to pick up contributions from the earnable compensation of the employee, unless and until an election is made. Those persons employed in the following positions shall have the right to reject membership in the City of Miami firefighters' and police officers' retirement trust ("retirement system") within one year from their respective commencements of employment with the city, subject to performance of the conditions set forth in paragraphs (b)(1) and (2), below, within the aforesaid time period: chief of the fire-rescue department, assistant chiefs of the fire-rescue department, chief of police and assistant chiefs of police. The conditions upon which membership in the retirement system may be rejected by any person employed in any of the foregoing positions shall be as follows:

(1) Submission to the commission of a written trust agreement wherein the employee rejects membership in the retirement system and wherein provision is made for the city to contribute moneys on behalf of such employee to a public trust fund designated by the employee and approved by the commission, such contribution to be made in lieu of the city's contribution on behalf of the employee to the retirement system.

a. The contribution to be made by the city under the terms of the above agreement shall be calculated at the rate of eight percent of the individual's annual earnable compensation.

b. A contribution to the designated public trust fund must be made by the employee rejecting membership in the retirement system, and such contribution by the employee shall be picked up by the city at a rate of not less than five percent of the employee's annual earnable compensation.

c. An employee may, if so provided in the trust agreement, take actual or constructive receipt of his or her contribution, or those contributions made by the city on his or her behalf prior to reaching age 55 or upon becoming permanently and totally disabled by making a revocable election of distribution of accounts pursuant to the mode of distribution of benefits as provided in the trust agreement.

(2) If an eligible employee fails to comply with all of the conditions set forth above, the employee shall not have the right to reject membership in the retirement system.

(c) Should any member in any period of five consecutive years after last becoming a member be absent from service more than three years, or should any member withdraw accumulated contributions, or should any member become a member of any other city-sponsored retirement plan or system, or should any member become a beneficiary or die, he or she shall thereupon cease to be a member of the retirement system.

(d) Upon request by the board, the city manager shall submit to the board a statement showing the name, title, compensation, duties, date of birth and length of service of each member, as well as such other information regarding members as the board may require in order to transact the business of the retirement system. (Ord. No. 10002, § 1, 6-13-85; Ord. No. 10458, § 1, 7-14-88; Code 1980, § 40-208; Ord. No. 11300, § 1, 9-14-95)

Sec. 40-200. Transfer of city employees to retirement system.

(a) Any person employed by the city in a capacity other than firefighter or police officer, who is reclassified and appointed to the position of firefighter or police officer and who, prior to such appointment, was a member of the City of Miami general employees' and sanitation employees' retirement trust ("retirement plan") shall have membership in the retirement plan transferred to the retirement system, effective the date of such appointment. Creditable service earned while a member of the retirement plan shall be deemed creditable service in the retirement system upon such transfer.

(b) Commencing on the effective date of transfer to the retirement system, a member who has transferred from the retirement plan shall make regular contributions at the rate required by the retirement system. Accumulated contributions credited in the retirement plan to the account of such member shall be transferred to the membership account of the retirement system and credited to the member thereunder. There shall also be transferred, from the benefit account of the retirement plan to the benefit account of the retirement system, the amount of assets, as determined by actuarial valuation, held by the retirement plan for any plan member who transfers to the retirement system.

(c) Any member of the retirement system who transferred from the retirement plan may contribute to the retirement system an amount computed to be sufficient with the member's prospective regular contributions to make accumulated contributions at normal retirement age equal to the amount such accumulated contributions would have been had the member been a member of the retirement system during his or her entire period of service with the city. If such election is not made, upon service, early service, rule of 64 or 68 or ordinary disability retirement, the member's retirement allowance shall be reduced by the actuarial equivalent of the amount by which accumulated contributions fall short of the full amount which would have been the member's accumulated contributions had he or she been a member of the retirement system during his or her entire period of service with the city. Any member who elects to make a contribution pursuant to this subsection, and who is granted disability retirement under the retirement system, shall have his or her disability retirement allowance reduced by the actuarial equivalent of the then unpaid amounts.

(1) An election permitted by this subsection must be made on a form provided by the board.

(2) Contributions made by a member pursuant to this subsection may be made either by a single lump-sum payment or by a series of periodic payments mutually agreed upon by the member and the board, including periodic deductions from the member's compensation. Regardless of the manner of payment, an amount to be contributed pursuant to this subsection must be paid to the retirement system within five years of notification to the member of the amount to be contributed.

(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-209; Ord. No. 13091, § 1, 9-24-09)

Sec. 40-201. Creditable service.

(a) For any member of the retirement system, creditable service shall consist of all time spent in membership service since last becoming a member, plus any other time for which membership credit is received pursuant to the provisions of this division. Creditable service previously obtained as a member of the Miami city employees' retirement system shall be deemed creditable service under the City of Miami firefighters' and police officers' retirement trust to the extent such service remained credited to the member on May 23, 1985.

(b) The board shall fix and determine by appropriate rules and regulations the amount of service in any year which is equivalent to a year of membership service, but in no case shall more than one year of membership service be creditable for all service in one calendar year. The board shall not allow credit for membership service for any period of more than one month during which an employee is continuously absent without pay. Subject to the foregoing restrictions, the board may adopt rules and regulations to verify membership credit claimed by any member.

(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-210)

Sec. 40-202. Paybacks for membership credit.

Members shall have the right to receive membership credit in the retirement system in accordance with the following provisions:

(1) *Credit for previous membership service for certain reemployed former members.*

a. If a former member of the retirement system who is not a beneficiary and is not within five years of reaching normal retirement age, whose membership has not been terminated for a period in excess of three years and who, at the time of termination of membership, had five or more years of creditable service, again becomes a member, he or she may apply for membership credit for prior membership service by filing with the board an election to pay back the amount of accumulated contributions previously returned to him or her. If an election to receive membership credit is made pursuant to this paragraph, a member shall pay back withdrawn accumulated contributions at the rate in effect when his or her previous membership terminated, together with regular interest thereon, or, subject to the approval of the board, pay back an amount equal to the total amount of accumulated contributions previously withdrawn, together with regular interest thereon.

b. If a former member, who is not a beneficiary, again becomes a member and is not otherwise eligible to receive membership credit pursuant to subsection (1)a, he or she may apply to the board for membership credit for prior membership service up to a maximum of four years, provided separation from prior employment was under honorable conditions. If an election to receive membership credit is made pursuant to this paragraph, the amount

of contributions to be paid back on account of prior membership service shall be based upon the member's current earnable compensation and the current contribution rate, excluding interest.

c. If a former member of the retirement system was terminated by the city due to reduction in personnel and is thereafter reemployed by the city within a period of three years, he or she may apply for membership credit for prior membership service by filing with the board an election to pay back the amount of accumulated contributions previously returned to him or her. If an election to receive membership credit is made pursuant to this paragraph, a member shall pay back withdrawn accumulated contributions to the retirement system in an amount determined by the board. Credit shall not be allowed under the provisions of this paragraph for employment with the city prior to January 1, 1940.

d. Any election permitted by this subsection must be made on a form provided by the board. The form shall be sent to a member by registered mail and must be returned to the board within 30 days following receipt thereof in order to establish the election desired.

e. Contributions made by a member pursuant to this subsection may be made either by a single lump-sum payment or by a series of periodic payments mutually agreed upon by the member and the board, including periodic deductions from the member's compensation. Regardless of the manner of payment, any payback of contributions pursuant to the subsection must be completed within five years of notification to the member of the amount to be paid back.

f. Upon timely payment in full of a payback permitted by this subsection, and following a period of five years of active membership subsequent to a member's date of restoration, a member shall be credited with his or her previous membership service; provided, that in the event of disability retirement prior to the preceding terms having been met, a member shall receive credit for previous service but his or her disability benefit retirement allowance shall be reduced by the actuarial equivalent of the unpaid portion of the amount to be paid back.

g. Any person restored to active membership who is eligible to, but does not, make an election provided for in this subsection, or who, having made the election, fails to complete a payback within the required time (except as otherwise provided in paragraph (1)f above), shall be considered a new member for all purposes of the retirement system as of his or her date of restoration and shall not be entitled to any of the rights and benefits provided under this subsection.

(2) *Credit for previous employment for certain laborers, security guards and custodial workers.*

a. Any member who has denied the right at any time between April 1, 1955, and September 1, 1962, to participate in the Miami city employees' retirement system or in the Miami city general employees' plan by reason of employment with the city as a laborer, security guard or custodial worker, may receive membership credit for time employed as a laborer, security guard, or custodial worker between the aforesaid dates, provided that:

1. The member files a written claim with the board on or

before December 31, 1995, which claim shall state all employment with the city between April 1, 1955, and September 1, 1962, as well as any other facts the board may require for the proper determination of the membership credit claimed pursuant to this subsection; and

2. The member, prior to retirement or departure from city employment, pays to the retirement system contributions for the membership credit claimed. Such contributions shall be computed at the then contribution rate of the member's group and class times the member's then annual earnable compensation, plus four percent interest thereon, compounded annually from the date of first creditable service hereunder to the date of payment.

b. Contributions made by a member pursuant to this subsection may be made either by a single lump-sum payment or by a series of periodic payments mutually agreed upon by the member and the board, including periodic deductions from the member's compensation. Regardless of the manner of payment, an amount to be contributed pursuant to this subsection must be paid to the retirement system within five years of notification to the member of the amount to be contributed.

c. A payback permitted by this subsection must be completed in full and within the required time period in order for any membership credit granted hereunder to be utilized as a basis for determining any retirement system benefit.

(3) *Credit for military service.*

a. Notwithstanding any provision in this division to the contrary, any employee who was a member of the retirement system prior to entry into military service, and who did not withdraw accumulated contributions prior to military service, who was granted a leave of absence by the city under the provisions of Resolution No. 16366, passed and adopted by the commission August 28, 1940, as amended by Resolution No. 18115, passed and adopted by the commission March 24, 1943, and who returns to service under the provisions of such resolution, shall retain membership in the retirement system regardless of the length of the period of absence. In determining the creditable service of any firefighter or police officer whose retirement becomes effective on or after December 31, 1999, credit for up to a maximum of five years of the time spent in the military service of the Armed Forces of the United States shall be added to the years of actual service, if: (i) the firefighter or police officer is in the active employ of the city prior to such service and leaves a position, other than a temporary position, for the purpose of voluntary or involuntary service in the Armed Forces of the United States; and (ii) the firefighter or police officer is entitled to reemployment under the provisions of the Uniformed Services Employment and Reemployment Rights Act; and (iii) the firefighter or the police officer returns to his or her employment as a firefighter or police officer of the city within one year from the date of his or her release from such active service. Any member of the retirement system who qualifies for service credit as hereinabove set forth and serves a period of time in excess of five years shall, receive membership credit for the time spent in the military service in excess of five years, by contributing the

amount he or she would have contributed had he or she remained in service for the period of time in excess of five years. Payments made to the retirement system pursuant to this paragraph shall be made in such manner as the board prescribes.

b. Any member of the retirement system who withdrew accumulated contributions due to entrance into military service during World War II, and who qualifies under the provisions of Resolution No. 16366, passed and adopted by the commission August 28, 1940, as amended by Resolution No. 18115, passed and adopted by the commission March 24, 1943, may receive membership credit for prior membership service by redepositing the accumulated contributions withdrawn, together with regular interest thereon, in such manner as shall be prescribed by the board.

c. Any member who has served on active military duty but is ineligible to claim credit for such service under subsection (3)a or (3)b shall receive membership credit up to a maximum of four years for the time spent on active military service in the armed forces of the United States, provided that:

1. The active military service was wartime service as declared by federal statute or executive order, and the member presents to the board such proof of wartime service as the board shall determine to be sufficient;

2. The member was discharged or released from the military service under honorable conditions;

3. The member has completed ten years of creditable service;

4. The member elects to claim membership credit on a form provided by the board, which form shall be sent to eligible members by registered mail upon completion of ten years' creditable service and must be returned to the board within 30 days after receipt thereof in order to establish such election; and

5. The member, prior to retirement, pays to the retirement system contributions for such military service. Such contributions shall be computed at the current contribution rate times the member's first year of earnable compensation subsequent to July 1, 1945, for which creditable service has been earned under the retirement system, plus four percent interest thereon, compounded annually from the date of first creditable service to the date of payment.

Contributions made by a member pursuant to this paragraph may be made either by a single lump-sum payment or by a series of periodic payments mutually agreed upon by the member and the board, including periodic deductions from the member's compensation. Regardless of the manner of payment, an amount to be contributed pursuant to this subsection must be paid to the retirement system within five years of notification to the member of the amount to be contributed. If, however, any member receives disability retirement prior to the completion of a payback elected under this paragraph, the member shall be credited with the military service claimed but his or her disability benefit shall be reduced by the actuarial equivalent of the unpaid portion of the amount to be paid back.

(4) *Credit for maternity leave.*

a. Any member of the retirement system who, prior to March 8, 1984,

took an unpaid leave of absence for maternity purposes shall be eligible to receive membership credit for such unpaid leave up to a maximum of 180 days. Said election shall be available until June 24, 1985. Those members electing to claim membership credit pursuant to this provision shall pay into the retirement system accumulated contributions at the current contribution rate times their current earnable compensation, such payment to be made either in a lump sum or prorated over a period not to exceed one year.

b. On or after May 23, 1985, members shall be eligible to receive membership credit for unpaid leave taken for maternity purposes up to a maximum of 180 days, provided that they have exhausted all vacation time, sick leave time, earned overtime, or similar time. Those members electing to claim membership credit pursuant to this provision shall pay into the retirement system accumulated contributions at the current contribution rate times their current earnable compensation, such payment to be made either in a lump sum or prorated over a period not to exceed one year. Any payback made pursuant to this paragraph must commence within 30 days of the member's return from the unpaid maternity leave.

(5) *Restoration of service credit for prior continuous service.* Any member who has continuous service with the City of Miami prior to becoming a member of the system may elect to claim membership credit for such prior service provided that such member pay back for said prior continuous service in the following manner: (1) If it has been determined that an error occurred (which resulted in a delay in enrollment in the system) and such error was through no fault of the member and there is no evidence that the member had been offered an opportunity to payback at the time such error was discovered, then the payback shall be computed at the rates prevailing at the time the error occurred, with regular interest thereon to date; (2) if it has been determined that no error occurred (which resulted in a delay in enrollment in the system) or that such error did occur and was the fault of the member or there is evidence that such error was not the fault of the member but he/she had been offered an opportunity to payback at the time such error was discovered and chose not to elect to pay back at that time, then the payback shall be computed at current rates without interest. Such payment is to be made either in a lump sum or prorated over a period not to exceed five years from the date such member receives the board's verification of the amount. If however, any member receives a disability retirement prior to the completion of a payback elected under this paragraph, the member shall be credited with the time purchased but his or her disability benefit shall be reduced by the actuarial equivalent of the unpaid portion of the amount to be paid back.

(6) *Creditable service years purchase.*

a. *Firefighter members.*

1. A retiring firefighter member, including I.A.F.F. bargaining unit member, who does not participate in the DROP and retires under service retirement, or rule of 64 or 68 retirement, may purchase from available leave balances, whole years of creditable service up to a maximum of three years. The purchase of creditable service under this subsection may not be utilized for eligibility for either service retirement, or rule of 64 or 68 retirement. Once the leave balances have been applied toward the purchase of whole years of

creditable service, and the amount thereof actually paid to and received by the trust, the member may purchase the balance of the three years by a lump sum cash payment to the trust. Leave balances shall be determined in accordance with the applicable labor agreement and/or leave payoff practices. The cost of creditable service purchased shall be the prorata actuarially determined present value based upon the member's average final compensation used to determine the member's retirement benefit. This benefit shall be available using after tax value of the member's leave balance; if, in the future, the issue of income taxes is resolved, then it will be available using pre-tax value of the member's leave balances. Effective June 12, 2007, firefighter members and I.A.F.F. bargaining unit members, including those electing to participate in either the FORWARD DROP or BACDROP, may elect to transfer funds from their accounts in the Miami Firefighters' Relief and Pension Fund (175) to the trust to purchase the three years of creditable service referred to herein. Members may purchase three whole creditable service years by a lump sum payment of cash to the trust or a tax qualified transfer of funds from a member's 457 Deferred Compensation Plan at present value as actuarially determined for each individual member. In no case shall a firefighter member, including I.A.F.F. bargaining unit member, purchase more than three years of creditable service through any combination of the above provisions. No benefit provided under this subsection shall be effective unless and until full payment in accordance herewith is made.

2. Effective the full pay period following October 1, 2009, the following provisions shall supersede the provisions of subsection a.1., and govern the purchase of creditable service by firefighter members, including, but not limited to, I.A.F.F. bargaining unit members:

   A. A retiring firefighter member, including, I.A.F.F. bargaining unit member, who does not participate in the DROP and retires under service retirement, or rule of 64 or 68 retirement, may purchase up to three whole years of creditable service utilizing the member's available leave balances, a tax qualified transfer of funds to the trust from the member's 457 Deferred Compensation Plan at present value as actuarially determined for the individual retiring member, lump sum payment of cash to the trust, or funds transferred to the trust from the member's account with the Miami Firefighters' Relief and Pension Fund (175).

   B. A retiring firefighter member, including I.A.F.F. bargaining unit member, who participates in either the FORWARD DROP or BACDROP, may purchase up to three whole years of

creditable service utilizing a tax qualified transfer of funds to the trust from the member's 457 Deferred Compensation Plan at present value as actuarially determined for the individual retiring member, a lump sum payment of cash to the trust, or funds transferred to the trust from the member's account with the Miami Firefighters' Relief and Pension Fund (175).

C. The following provisions shall apply to all purchases of creditable service under paragraphs a.2.A. and 2.B.:

i. The purchase of creditable service shall be allowed only immediately prior to retirement.

ii. The purchase of creditable service may not be utilized for eligibility for either service retirement, or rule of 64 or 68 retirement. Once the leave balances or the funds from the member's account with the Miami Firefighters' Relief and Pension Fund (175) or those from the member's 457 Deferred Compensation Plan have been applied toward the purchase of whole years of creditable service, and the amount thereof actually paid to and received by the trust, the member may purchase the balance of the three years by a lump sum cash payment to the trust. Leave balances shall be determined in accordance with the applicable labor agreement and/or leave payoff practices. The cost of creditable service purchased shall be the prorata actuarially determined present value based upon the member's average final compensation used to determine the member's retirement benefit. The use of leave balances shall be available using after tax value of the member's leave balance; if, in the future, the issue of income taxes is resolved, then it will be available using pre-tax value of the member's leave balances. In no case shall a member purchase more than three years of creditable service through any combination of the above provisions. No benefit provided under this subsection shall be effective unless and until full payment in accordance herewith is made.

b. *Police officer members.*

1. A police officer member, including F.O.P. bargaining unit member, who retires on or after April 26, 2007, and does not participate in the DROP and retires under service retirement or rule of 64 retirement, may purchase up to three whole years of creditable service utilizing the member's available leave balances, a tax qualified transfer of funds from the member's 457 Deferred Compensation Plan at present value as actuarially determined for the individual retiring member, or a lump sum cash payment. The purchase of creditable service under this subsection may not be utilized for eligibility for either service retirement or rule of 64 retirement. Once the leave balances and/or funds from the member's 457 Deferred Compensation Plan have been applied toward the purchase of whole years of creditable service, and the amount thereof actually paid to and received by the trust, the member may purchase the balance of the three years by a lump sum cash payment to the trust. Leave balances shall be determined in accordance with the applicable labor agreement and/or leave payoff practices. The cost of creditable service purchased shall be the prorata actuarially determined present value based upon the member's average final compensation used to determine the member's retirement benefit. This benefit shall be available using after tax value of the member's leave balance; if, in the future, the issue of income taxes is resolved, then it will be available using pre-tax value of the member's leave balances. In no case shall a member purchase more than three years of creditable service through any combination of the above provisions. No benefit provided under this subsection shall be effective unless and until full payment in accordance herewith is made. A police officer member, including F.O.P. bargaining unit member, shall only be allowed to purchase creditable service under this sub-section immediately prior to the member's retirement.

2. A police officer member, including F.O.P. bargaining unit member, who retires on or after April 26, 2007, and participates in the DROP may purchase up to three whole years of creditable service utilizing a tax qualified transfer of funds from a member's 457 Deferred Compensation Plan at present value as actuarially determined for the individual retiring member, or a lump sum cash payment. The purchase of creditable service under this subsection may not be utilized for eligibility for either service retirement or rule of 64 retirement. Once the funds from the member's 457 Deferred Compensation Plan have been applied toward the purchase of whole years of creditable service and the amount thereof actually paid to and received by the trust, the member may purchase the balance of the three years by a lump sum cash payment to the trust. The cost of creditable service purchased shall be the prorata actuarially determined pres-

ent value based upon the member's average final compensation used to determine the member's retirement benefit. In no case shall a member purchase more than three years of creditable service through any combination of the above provisions. No benefit provided under this subsection shall be effective unless and until full payment in accordance herewith is made. A police officer member, including F.O.P. bargaining unit member, shall only be allowed to purchase creditable service under this subsection immediately prior to the member's retirement, including entry into the DROP.

(Ord. No. 10002, § 1, 6-13-85; Ord. No. 10910, § 1, 9-5-91; Ord. No. 11235, § 1, 3-27-95; Code 1980, § 40-211; Ord. No. 11300, § 1, 9-14-95; Ord. No. 11752, § 2, 1-26-99; Ord. No. 11944, § 2, 7-27-00; Ord. No. 12203, § 2, 3-27-02; Ord. No. 12718, § 2, 7-28-05; Ord. No. 12941, § 2, 9-11-07; Ord. No. 13091, § 1, 9-24-09; Ord. No. 13676, § 2, 4-27-17)

Sec. 40-203. Benefits.

(a) *Service retirement.*

(1) Any member in service who has ten or more years of creditable service may elect to retire upon the attainment of normal retirement age. Such election shall be made upon written application to the board, setting forth not less than ten nor more than 90 days subsequent to the execution and filing thereof, the date the member desires to be retired.

(2) For police officer members, normal retirement age for members employed on September 26, 2010 who as of that date had attained ten or more years of creditable service shall be rule of 64 retirement or age 50 with ten years of creditable service including members who retired or entered DROP on or after September 26, 2010. For firefighter members, normal retirement age for members employed on September 26, 2010 who as of that date had attained ten or more years of creditable service shall be rule of 68 retirement or age 50 with ten years of creditable service including members who retired or entered DROP on or after September 26, 2010. Members may continue in service after attaining normal retirement age and participate in all aspects of the retirement system.

(3) A member exercising service retirement on or after October 4, 1991, and before January 9, 1994, shall be entitled to receive a retirement allowance equal to 2.75 percent of the member's average final compensation multiplied by years of creditable service, which amount shall be paid yearly in monthly installments. A member exercising service retirement on or after January 9, 1994 shall be entitled to receive a retirement allowance equal to 2.75 percent of the member's average final compensation multiplied by years of creditable service for the first 15 years of such creditable service. Such member shall also be entitled to receive a retirement allowance equal to three percent of member's final average compensation multiplied by the years of creditable service in excess of 15 years.

A police officer member exercising service retirement on or after May 28, 1995, shall be entitled to receive a retirement allowance equal to 2.75 percent of the member's average final compensation multiplied by years of creditable service for the first 15 years of such creditable service. Such member shall also be entitled to receive a retirement allowance equal to three percent of member's final average compensation multiplied by the years of creditable service in the excess of 15 years, which amount shall be paid yearly in monthly installments.

A firefighter member exercising service retirement on or after May 28, 1995, shall be entitled to receive a retirement

allowance equal to three percent of the member's average final compensation multiplied by years of creditable service, which amount shall be paid yearly in monthly installments.

(4) Effective October 1, 1998, a member exercising service retirement on or after October 1, 1998 shall be entitled to receive a retirement allowance equal to three percent of the member's average final compensation multiplied by years of creditable service for the first 15 years of such creditable service. Such member shall also be entitled to receive a retirement allowance equal to three and one-half percent of member's final average compensation multiplied by the years of creditable service in excess of 15 years, which amount shall be paid yearly in monthly installments.

(5) A member eligible for service retirement may choose any one of the optional allowances available to him or her on the date of retirement, as provided in subsection (m).

(b) *Rule of 64 or rule of 68 retirement.*

(1) Any member in service who did not withdraw from active membership in the retirement system and retiring effective May 28, 1995, may elect service retirement on the basis of his or her combined age and creditable service equaling 64 for police officer members and 68 for fire fighter members, or more provided that the member has reached minimum vesting requirements. Such election shall be made upon written application to the board no less than ten days nor more than 90 days subsequent to the execution and filing thereof, the date the member desires to be retired.

(2) Upon rule of 64 retirement, on or after May 28, 1995, a police officer member shall be entitled to receive a retirement allowance equal to 2.75 percent of the member's average final compensation multiplied by the years of creditable service for the first 15 years of such creditable service. Such member shall also be entitled to receive a retirement allowance equal to three percent of the member's final average compensation multiplied by the years of creditable service in excess of 15 years.

Upon rule of 64 retirement, a firefighter member retiring on May 28, 1995, shall be entitled to receive a retirement allowance equal to three percent of the member's average final compensation multiplied by years of creditable service which amount shall be paid yearly in monthly installments.

A member eligible for rule of 64 or rule of 68 retirement may choose one of the optional allowances available to him or her on the date of retirement, as provided in subsection (m).

(3) Upon rule of 64 retirement for police officer members on or after October 1, 1998, or upon the Rule of 68 retirement for fire fighter members on or after October 1, 2009, a member shall be entitled to receive a retirement allowance equal to three percent of the member's average final compensation multiplied by years of creditable service for the first 15 years of such creditable service. Such member shall also be entitled to receive a retirement allowance equal to three and one-half percent of member's final average compensation multiplied by the years of creditable service in excess of 15 years, which amount shall be paid yearly in monthly installments. A member eligible for rule of 64 or rule of 68 retirement may choose one of the optional allowances available to him or her on the date of retirement, as provided in subsection (m).

(c) *Limitation on benefits.*

(1) Effective October 1, 1998, member retirement allowances shall not exceed 100 percent of the member's final average compensation for members retiring under service retirement or rule of 64 retire-

ment, and effective October 1, 2009 for rule of 68 retirement with the following exceptions:

a. Members whose retirement allowances, prior to October 1, 1998, who had already earned 100 percent or greater of the member's average final compensation shall continue to accrue pension benefits as outlined under section 40-203.

b. Members whose retirement allowance exceeds 100 percent of their average final compensation as of October 1, 1998, due to the multiplier change, shall be capped at the new percentage.

(2) Effective June 12, 2007, firefighter member, including, but not limited to, I.A.F.F. bargaining unit member, retirement allowances shall not exceed 100 percent of the member's final average compensation for firefighter members and I.A.F.F. bargaining unit members retiring under service retirement, rule of 64 retirement or rule of 68 retirement.

(3) Members who as of September 26, 2010 had not attained ten or more years of creditable service and members hired on or after October 1, 2010 shall have a maximum retirement benefit which shall not exceed the lesser of $120,000.00 or 100 percent of final average compensation. Members who retired prior to September 26, 2010 shall have no limitation on benefits accrued.

(d) *Early service retirement.*

(1) Any member in service who has 20 or more years of creditable service may elect to retire on a retirement allowance which shall be the actuarial equivalent of the service retirement allowance otherwise available to the member upon the attainment of normal retirement age. Such election shall be made upon written application to the board, setting forth not less than ten nor more than 90 days subsequent to the execution and filing thereof, the date the member desires to be retired.

(2) A member eligible for early service retirement may choose any one of the optional allowances available to him or her on the date of retirement, as provided in subsection (m).

(3) A member who has elected to retire on an early service retirement shall not be eligible to participate in the DROP.

(e) *Vested right to retirement.*

(1) If a member who is not entitled to retire ceases to be a city employee for any reason other than death or willful misconduct in office, he or she may elect to continue as a member not in service and retire upon subsequent attainment of normal retirement age, provided:

a. That when the member ceases to be a city employee, the member has completed at least ten years of creditable service; and further provided

b. That the member does not withdraw his or her accumulated contributions.

(2) A member electing to become a member not in service on or after October 4, 1991, and before January 9, 1994, shall be entitled to receive a retirement allowance equal to 2.75 percent of member's average final compensation multiplied by years of creditable service which amount shall be paid yearly in monthly installments, upon attainment of normal retirement age. A member electing to become a member not in service on or after January 9, 1994, shall be entitled to receive a retirement allowance equal to 2.75 percent of the member's average final compensation multiplied by the average final compensation multiplied by the years of creditable service for the first 15 years of such creditable service. Such member shall also be entitled to receive a retirement allowance equal to three percent of member's final average

compensation multiplied by the years of creditable service in excess of 15 years, upon attainment of normal retirement age.

A member electing to become a member not in service on or after October 1, 1998, shall be entitled to receive a retirement allowance equal to three percent of the member's average final compensation multiplied by years of creditable service for the first 15 years of such creditable service. Such member shall also be entitled to receive a retirement allowance equal to three and one-half percent of member's final average compensation multiplied by the years of creditable service in excess of 15 years, upon attainment of normal retirement age.

(3) If a member who elects to become a member not in service subsequently elects to withdraw his or her accumulated contributions, the member not in service shall be paid the amount of his or her accumulated contributions at the time he or she ceased to be a city employee, excluding all amounts picked up from the member's earnable compensation and credited to the COLA fund, plus only such regular interest as has been accumulated during the first three years thereafter.

(4) If a member not in service dies prior to retirement, his or her beneficiary shall be paid the amount of his or her accumulated contributions at the time he or she ceased to be a city employee, excluding all amounts picked up from the member's earnable compensation and credited to the COLA fund, plus regular interest thereon to the date of the member's death.

(5) If a person elects a vested right to retirement under any retirement system or plan sponsored by the city and thereafter becomes an employee, he or she shall become a new member of the retirement system on the date employment recommences and shall make regular contributions to the retirement system at the rate required by subsection 40-196(a). Such member shall be entitled to receive a retirement benefit therefor as if he or she were a new entrant upon the date of subsequent employment and, in addition, shall be entitled to receive a retirement benefit for his or her employment in accordance with subsection (d)(2).

(6) A member not in service shall not be eligible to participate in the DROP.

(f) *Ordinary disability retirement.*

(1) Any member in service who has ten or more years of creditable service but who is not eligible for a service retirement allowance may, upon written application, be retired by the board on an ordinary disability retirement allowance; provided, that after medical examination of such applicant, the physician retained by the board shall certify that the member is mentally or physically totally incapacitated for the further performance of duty (not as a result of an accident in the actual performance of duty as defined in subsection (i) of this section), that such incapacity is likely to be permanent, and that such member should be retired.

(2) a. Upon retirement for ordinary disability on or after October 4, 1991 and before January 9, 1994, a member shall be entitled to receive a retirement allowance equal to 2.75 percent of 90 percent of the member's average final compensation multiplied by years of creditable service, which amount shall be paid yearly in monthly installments, provided such retirement allowance exceeds 30 percent of the member's average final compensation; otherwise, 30 percent of the member's average final compensation shall be paid yearly in monthly installments.

b. Upon retirement for ordinary disability on or after January 9, 1994, a member shall be entitled to receive

a retirement allowance equal to 2.75 percent of 90 percent of the member's average final compensation multiplied by the first 15 years of creditable service. Creditable service of such member in excess of 15 years shall be multiplied by three percent of 90 percent of the member's average final compensation times years of creditable service, which amount shall be paid yearly in monthly installments, provided such retirement allowance is at least 30 percent of the member's average final compensation, otherwise 30 percent of the member's average final compensation shall be paid yearly in monthly installments.

c. Upon retirement for ordinary disability on or after October 1, 1998, a member shall be entitled to receive a retirement allowance equal to three percent of 90 percent of the member's average final compensation multiplied by the first 15 years of creditable service. Creditable service of such member in excess of 15 years shall be multiplied by three and one-half percent of 90 percent of the member's average final compensation times years of creditable service which amount shall be paid yearly in monthly installments, provided such retirement allowance is at least 30 percent of the member's average final compensation, otherwise 30 percent of the member's average final compensation shall be paid yearly in monthly installments.

d. For those members who retire effective on or after December 31, 1999, the retirement allowance shall be payable for life, except that in the event the member dies before such allowance has been received for a period of ten years, the member's beneficiary or beneficiaries shall be paid the same allowance for the remainder of the ten-year period.

(3) A member entitled to receive an ordinary disability retirement allowance shall not be eligible for a return of contributions as provided in subsection 40-212(j) for optional allowances as provided in subsection 40-212(m), nor for participation in the DROP.

(4) A DROP participant shall not be entitled to receive an ordinary disability retirement.

(g) *Accidental or service-incurred disability retirement.*

(1) Any member in service who, prior to attaining the age of 60, has been totally and permanently incapacitated for duty as the natural and proximate result of an accident occurring while in the actual performance of duty at some definite time and place, shall be retired for accidentally incurred disability; provided that:

a. Such incapacity for duty has been total, permanent and continuous from a time prior to the member attaining the age of 60;

b. The physician retained by the board, after a medical examination of such member, shall certify in writing that the member is mentally or physically totally incapacitated in accordance with the definition of permanent total disability;

c. The board shall concur with the report of the physician employed by the board; and

d. The physical condition of the member shall be subject to a review by the physician retained by the board, at the request of the board, as often as the board shall deem it advisable.

(2) A member may be considered totally and permanently disabled for further performance of duty for the purpose of this section when said member is unable, due to an accident, illness or injury incurred in the line of duty, to perform within the member's classification.

(3) a. Any condition or impairment of health caused by tuberculosis, heart disease or hypertension, on the part of a member, which condition results in total and permanent incapacitation for duty, shall be presumed to have been accidental and suffered in the line of duty unless the contrary be shown by competent evidence; provided, however, that any such member shall have successfully passed a physical examination upon entering into service as a firefighter or police officer, which examination failed to reveal any evidence of any such condition.

b. Nothing herein shall be construed to extend or otherwise affect the provisions of F.S. ch. 440 pertaining to workers' compensation.

(4) When deciding whether to grant an accidental or service-incurred disability retirement, the board shall obtain any and all available information, including, but not limited to, medical reports which the board deems necessary in order to assist the board in arriving at its decision.

(5) a. Upon retirement for accidental disability or service-incurred disability, a member shall receive a pension which shall be equal to 66⅔ percent of his/her average final compensation or 66⅔ percent of his/her final compensation, whichever is greater.

b. For those members who retire effective on or after December 31, 1999, upon retirement for accidental disability or service-incurred disability, a member shall receive a retirement allowance payable for life which shall be equal to 66⅔ percent of the member's average final compensation or 66⅔ percent of the member's final compensation, whichever is greater, except that in the event a member dies before such allowance has been received for a period of ten years, the member's beneficiary or beneficiaries shall be paid the same allowance for the remainder of the ten-year period.

(6) A member entitled to receive an accidental or service-incurred disability retirement allowance shall not be eligible for a return of contributions as provided in subsection (j), for optional allowances as provided in subsection (m), nor for participation in the DROP.

(7) In lieu of the benefits set forth in subsection (5) above, upon the death of any member who has received an accidental or service-incurred disability retirement, the spouse of said member who has been nominated and designated by the member as said member's beneficiary if eligible shall receive the payment of an amount equal to 40 percent of the member's monthly retirement allowance during the lifetime of said spouse, in accordance with subsection (n) of this section.

(8) A DROP participant shall not be entitled to receive an accidental or service-incurred disability retirement.

(h) *Ordinary death benefit.*

(1) Upon receipt by the board of proper proofs of the death of a member in service who has three or more years of creditable service, which death is not the result of an accident in the actual performance of duty as defined in subsection (i) of this section, there shall be paid to such person, if any, as the member shall have nominated by written designation duly executed and filed with the board, otherwise to the member's legal representative, a benefit equal to a lump-sum payment of 50 percent of the earnable compensation received by the member during the year immediately preceding the member's death.

(2) For those members who retire effective on or after December 31, 1999, the member's beneficiary or beneficiaries shall be entitled to the benefits otherwise payable to the member at early or normal

retirement age for a period of ten years, should a member having at least ten years of creditable service die prior to retirement. Anything herein to the contrary, notwithstanding this provision, shall not be implemented as to police officer members unless and until there are "additional premium tax revenues" as defined in F.S. § 185.35(1)(b), to the extent necessary to fund such benefit.

(3) a. Notwithstanding any provision in this division to the contrary, in the event a member who has become eligible for service, early service or rule of 64 retirement but has not retired dies, the member shall be considered to have been retired on the date of death. In such event the payment of 40 percent of the member's monthly retirement allowance shall be paid at the member's death to the member's spouse during the lifetime of such spouse or, at the option of such spouse, the spouse shall receive the sum of the deceased member's accumulated contributions to the date of death plus a benefit equal to a lump-sum payment of 50 percent of the earnable compensation received by the member during the year immediately preceding the member's death.

b. In lieu of the benefits set forth in subsection (2), for those members who retire effective on or after December 31, 1999, in the event a member who has become eligible for service, or early service retirement but has no retired dies, the member shall be considered to have been retired on the date of death. In such event the payment of 40 percent of the member's monthly retirement allowance shall be paid at the member's death to the member's spouse during the lifetime of such spouse or, at the option of such spouse the spouse shall receive the sum of deceased member's accumulated contributions to the date of death plus a benefit equal to a lump-sum payment of 50 percent of the earned compensation received by the member during the year immediately preceding the member's death.

(4) If a retired member dies prior to having received 12 monthly retirement allowance payments and prior to any optional allowance elected by the member having become effective, there shall be paid to such person, if any, as the member shall have nominated by written designation duly executed and filed with the board, otherwise, to the member's legal representative, a lump-sum benefit equal to the sum of the 12 monthly retirement allowance payments to which the member would otherwise have become entitled, less the payments the member received.

(5) Notwithstanding the foregoing, any pre-retirement death benefit payable under this section shall be "incidental" in compliance with Treasury Regulations Section 1.4011 (b)(1).

(6) In the case of a death occurring on or after January 1, 2007, if a member dies while performing qualified military service (as defined in Code Section 414 (u)), the survivors of the member are entitled to any additional benefits (other than benefit accruals relating to the period of qualified military service) provided under the plan as if the member had resumed and then terminated employment on account of death.

(i) *Accidental death benefit.*

(1) If the board shall decide that the death of a member in service was the result of an accident in the performance of duty and not caused by willful negligence on the part of the member, then there shall be paid an amount equal to one-half of the member's average final compensation, which amount shall be paid yearly in monthly installments, to the member's spouse, if he or she leaves a spouse, to

continue until the death or remarriage of such spouse; or if there be no spouse, or if the spouse dies or remarries before the youngest child of such deceased member shall have attained the age of 18, then to his or her children under such age, if he or she leaves children, divided in such manner as the board in its discretion shall determine, to continue as a joint and survivorship pension for the benefit of the children under such age until every child dies or attains such age; or if there be no spouse or children under the age of 18 years living at the death of such member, then to his or her dependent father or dependent mother, as the board in its discretion shall direct, to continue for life; provided that if there be no such beneficiary, the amount which otherwise would have been paid as an ordinary death benefit shall be paid to the member's legal representative. Provided, however, in the event a member who retires effective on or after December 31, 1999, has at least ten years of creditable service dies prior to retirement, the member's beneficiary or beneficiaries shall be entitled to the benefits otherwise payable to the member at early or normal retirement age for a period of ten years. Anything herein to the contrary notwithstanding, this provision shall not be implemented as to police officer members unless and until there are "additional premium tax revenues" as defined in F.S. § 185.35(1)(b), to the extent necessary to fund such benefit.

(2) The board shall decide whether the death of a member in service was the result of an accident in the performance of duty and not caused by willful negligence on the part of the member in the following circumstances:

a. Upon receipt of proper proofs of the death of a member in service indicating that such death was the natural and proximate result of an accident occurring at some definite time and place while the member was in the actual performance of duty; or

b. Upon receipt of proper proofs of death of a member in service indicating that such death resulted from a condition or impairment of health caused by tuberculosis, hypertension or heart disease, which condition or impairment of health shall be presumed by the board to have been accidentally incurred in the line of duty unless the contrary be shown by competent evidence; provided, that the deceased member shall have successfully passed a physical examination upon entering into service as a firefighter or police officer, which examination failed to reveal any evidence of such condition.

(3) Notwithstanding any other provision of this chapter to the contrary, the surviving spouse of any member killed in the line of duty shall not lose survivor retirement benefits if the spouse remarries. The surviving spouse of such deceased member whose benefit terminated because of remarriage shall have the benefit reinstated as of July 1, 1994, at an amount that would have been payable had such benefit not been terminated.

(4) In the case of a DROP participant, there shall be no accidental death benefit.

(5) Notwithstanding the foregoing, any preretirement death benefit payable under this section shall be "incidental" in compliance with Treasury Regulations Section 1.401-1(b)(1).

(j) *Return of contributions.* Should a member cease to be a city employee, the member shall be paid on demand the sum of his or her accumulated contributions, with the following exceptions:

(1) Any member who has been granted a retirement benefit shall not be entitled to a return of any accumulated contributions unless the member is eligible for the benefits of option 6.a as set forth in subsection (m) or unless the member is entitled to a return of excess contribu-

tions as a result of membership in the city employees' retirement system as set forth in subsection 40-205(2).

(2) In the event of the death of any member, there shall be no distribution of the member's accumulated contributions unless the member died in service. In such event, accumulated contributions shall be payable to such persons, if any, as the member shall have nominated by written designation duly executed and filed with the board, otherwise to the member's legal representative. The return of accumulated contributions pursuant to the provisions of this paragraph shall not be construed as foreclosing the right of any person to an ordinary death benefit or an accidental death benefit as hereinabove set forth.

(3) a. This article applies to distributions made on or after January 1, 1993. Notwithstanding any provision of the plan to the contrary that would otherwise limit a distributee's election under this article, a distributee may elect, at the time and in the manner prescribed by the plan administrator, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

b. Definitions.

1. *Direct rollover* shall mean a payment by the plan to the eligible retirement plan specified by the distributee.

2. *Distributee* shall mean an employee or former employee. In addition, the employee's or former employee's surviving spouse is a distributee with regard to the interest of the spouse.

3. *Eligible retirement plan* shall mean an individual retirement account described in section 408(a) of the Internal Revenue Code, an individual retirement annuity described in section 408(b) of the Code, an annuity plan described in section 403(a) of the Internal Revenue Code, or a qualified trust described in section 401(a) of the Internal Revenue Code, that accepts the distributee's eligible rollover distribution. However, in the case of an eligible rollover distribution to the surviving spouse, an eligible retirement plan is an individual retirement account or individual retirement annuity.

4. Eligible rollover distribution shall mean any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more; any distribution to the extent such distribution is required under section 401(a)(9) of the Internal Revenue Code; and the portion of any distribution that is not included in gross income.

(k) *Limitation of disability benefits; reexamination of beneficiaries retired on account of disability.*

(1) Any member who is unable to perform within the member's classification may be assigned to any other job classification; provided, that the member consents to such assignment and further provided, that the member's salary in the new job

class shall be no less than 100 percent of the job class from which the member was transferred.

(2) If a former member who has received an accidental disability retirement is performing the duties of a police officer or firefighter, or is performing services which are substantially equivalent to duties that can be assigned within the employment classification from which the member was retired, the board shall have the authority to limit the retirement benefits of such member as hereinafter provided: If a former member who has received an accidental disability retirement is engaged in such gainful occupation, the former member's salary from said occupation when added to the sum which he or she is receiving on account of accidental disability retirement shall not exceed 100 percent of the current salary for the classification from which the member was retired. If the retirement benefit plus the salary exceeds 100 percent of the current classification salary, the retirement benefit shall be reduced by the amount in excess of 100 percent. The board may periodically require of former members receiving a disability pension, on a form approved by the board for such purpose, a statement of salary and type of employment.

(3) Any former member who is receiving a disability retirement allowance shall be subject, prior to normal retirement age, to examination by a physician or physicians upon request by the board. Such examination may be conducted at the member's place of residence or at a place mutually agreed upon by the member and the board. Following such examination, the physician or physicians shall report to the board as to the continuance of the former member's total and permanent incapacity for duty.

a. In the event the board finds that a disability beneficiary is no longer incapacitated for service within his or her former classification in accordance with requirements of the civil service rules and regulations, the board may require that the beneficiary be returned to the former classification with all rights and benefits of such classification or, with the beneficiary's consent, to other classifications within the limits of his or her mental or physical capacities at a rate of compensation not less than 100 percent of the pay which he or she would be entitled to receive at the time of return to service for the classification occupied by the beneficiary prior to his or her incapacity.

b. Should any disability beneficiary refuse to submit to a medical examination upon request by the board, his or her retirement allowance may be discontinued until withdrawal of the refusal, and should the refusal continue for one year, all right in and to a retirement benefit may be revoked by the board. If any beneficiary in receipt of a disability retirement allowance is found by the board, prior to normal retirement age, to be no longer incapacitated but is not restored to service as a member in the classification from which he or she was retired because of his or her own refusal to accept employment offered to him or her, the beneficiary's disability retirement allowance shall be terminated.

(l) *Restoration of beneficiaries to membership.*

(1) Should a disability beneficiary be restored to or be in service at a compensation equal to or greater than his or her average final compensation at retirement, or should any other beneficiary be restored to service, the following shall apply:

a. The retirement allowance of the beneficiary shall cease, he or she shall again become a member of the retirement system and regular

contributions shall resume at the rate required by the retirement system; and

b. The beneficiary shall be credited with all service as a member standing to his or her credit at the time of retirement, providing he or she returns, in such manner as shall be prescribed by the board, the amount of any accumulated contributions of money received upon retirement.

(2) If a beneficiary is restored to membership on or after the attainment of age 50, he or she shall, on subsequent retirement, be credited with all service as a member subsequent to his or her last restoration to membership and shall receive a retirement allowance therefor as if he or she were a new entrant, and, in addition, the former beneficiary shall receive the retirement allowance which he or she was receiving immediately prior to his or her last restoration, but the total pension shall not exceed the proportion of average final compensation he or she would have received as a retirement allowance had he or she remained during the period of prior retirement.

(3) Participation in the DROP shall not be considered restoration to service under subsection (l).

(m) *Optional allowances.*

(1) Any member may elect to receive in lieu of the retirement allowance otherwise payable to him or her, the actuarial equivalent at that time of his or her retirement allowance in a reduced retirement allowance payable as follows; provided, that no election of an optional allowance shall be effective in case a beneficiary dies within ten days after the election of an option as provided in this section, and further provided that such a beneficiary shall be considered as a member in service at the time of death, until the first payment on account of any benefit becomes normally due:

Option 1: If the member dies before receiving in payment of the member's retirement allowance, the value of his or her accumulated contributions at the time of retirement, the balance shall be paid to such person, if any, as the member shall have nominated by written designation duly executed and filed with the board, otherwise to the member's legal representative; or

Option 2: Upon the member's death, his or her reduced retirement allowance shall be continued through the life of, and paid to, such person as the member shall have nominated by written designation duly executed and filed with the board at the time of retirement; or

Option 3: Upon the member's death, one-half of his or her reduced retirement allowance shall be continued throughout the life of, and paid to such person as the member shall have nominated by written designation duly executed and filed with the board at the time of retirement; or

Option 4: Upon the member's death, some other benefit shall be payable; provided, that the total value of the allowance during the member's life and the succeeding benefit shall be computed to be of equivalent actuarial value to the allowance which he or she would receive without optional modification; and provided, that the benefit shall be approved by the board; or

Option 5: If, as a result of an accidental injury incurred in the line of duty, the member shall have been so seriously injured that he or she is unable to execute and file a designation of an optional allowance, the board may, with the consent of the principal beneficiary, designate an option, and if such condition shall have delayed the application for retirement and the selection of an option, the board may waive the requirement as to the

member's life for ten days after retirement date, and may declare such optional allowance irrevocably effective immediately upon the member's retirement; or

Option 6: Any member upon service, early service, rule of 64 or rule of 68 retirement may elect to receive benefits in one of the following three forms, in lieu of the retirement allowance otherwise payable to the member:

a. Such member may elect to withdraw the sum of his or her accumulated contributions credited as of the member's date of retirement, excluding all amounts picked up from the member's earnable compensation and credited to the COLA fund, and be paid a monthly service retirement allowance of one-half the amount to which he or she would otherwise be entitled;

b. Such member may elect to receive his or her normal monthly service retirement allowance plus an additional five percent of such service retirement allowance; or

c. Such member may direct the payment of a benefit of 40 percent of the member's monthly retirement allowance to be paid at the member's death to his or her spouse nominated and designated by him or her at the time of retirement, such benefit to be payable during the lifetime of such spouse; or

d. For those members who retire effective on or after December 31, 1999, such member(s) may elect to receive his or her normal monthly service retirement allowance payable for life; except that in the event the member dies before he or she has received such allowance for a period of ten years, the member's beneficiary or beneficiaries shall be paid the same allowance for the remainder of the ten-year period.

(2) In the event a member elects a retirement allowance under option 2, 3, or 4 and has nominated and designated his or her spouse at the time of retirement as the person to receive payment of the benefit upon the member's death, the total minimum value of the allowance during the member's life and the succeeding benefit shall be computed to be of equivalent actuarial value to the allowance which he or she would have received had the member chosen to have his or her retirement allowance paid under the provisions of option 6c.

(3) In no event shall any language contained herein be construed as authorizing or allowing any member the right or privilege to exercise more than one of options 1 through 6 enumerated at this subsection.

(n) *Changes in beneficiary after retirement.* Any member of the retirement system who retires from service and thereafter desires to change a designated beneficiary may do so to the extent the to-be-substituted beneficiary is younger (older) than the to-be-deleted beneficiary, an actuarial adjustment shall be applied to reflect the expected longer (shorter) life expectancy of the to-be-substituted beneficiary.

(o) *Pension offset by other compensation benefit.* Any periodic or lump-sum amounts which may be paid or payable under the provisions of any state worker's compensation or similar law to a member or to the dependents of a member on account of any disability or death, shall be offset against and payable in lieu of any benefits payable from funds provided by the city under the provisions of the retirement system on account of the same disability or death.

(p) *Deferred retirement option program.* Effective October 1, 1995, there is hereby created the City Deferred Retirement Option Program (DROP) to be administered by the board of trustees. Only firefighters who have retired after reaching age 50 within ten years of creditable service or who have retired after reaching a combination of age

plus years of creditable service equal to either 64 or 68 as applicable, and who elect to defer receipt of their retirement benefit into a DROP account shall be eligible to participate in the DROP. Effective upon the ratification of the Memorandum of Understanding of July 11, 2008 amending Article 43 of the 2007-2010 collective bargaining agreement with the IAFF, the maximum participation in the Forward DROP for firefighters shall be 54 full months. Effective upon the ratification of the Memorandum of Understanding of May 8, 2008 amending Article 39 of the 2007-2010 collective bargaining agreement with the FOP, the maximum participation in the Forward DROP for police officers who elect Forward DROP or are currently in Forward DROP shall be 84 full months. No payment shall be made to or for the benefit of a DROP participant beyond these periods.

(1) Election to participate in the DROP shall be made by using forms and procedures prescribed by the board.

(2) A firefighter's creditable service, accrued benefits and compensation calculation shall be frozen upon retirement. The amount of the monthly benefit shall be determined based on the creditable service, average final compensation, and retirement option selected in accordance with subsection (m) herein. Average final compensation shall be based on the single highest year preceding participation in the DROP.

(3) Upon commencement of participation in the DROP, the participant's contribution and the city's contribution to the retirement trust for that participant shall cease as the participant will not earn further creditable service for pension purposes.

(4) For each person electing participation in the DROP, and individual DROP account shall be created. Payment shall be made by the retirement trust into the employee's DROP account in an amount equal to the regular monthly retirement benefit which the participant would have received had the participant separated from service and commenced receipt of pension benefits.

(5) The board of trustees shall establish, by administrative rule, a series of investment vehicles which may be chosen by DROP participants. Any losses, charges, or expenses incurred by the participant in the participant's DROP account by virtue of the option selected by the participant or otherwise, shall not be made up by the City of Miami or the pension trust, but all of same shall be borne by the participant.

(6) Upon termination of employment, a member may receive distribution from the DROP account in the following manner:

a. Lump sum distribution (which may be used at the DROP participant's discretion to purchase an annuity).

b. Periodic payments.

c. Roll over of the balance to another qualified retirement plan, such as an IRA.

A member may defer distribution until the latest date authorized by section 401(a)(9) of the Internal Revenue Code.

(7) DROP participation shall not affect any other death or disability benefit provided to a firefighter under federal law, state law, city ordinance, or any rights or benefits under any applicable collective bargaining agreement.

(8) If a DROP participant dies before the DROP account balances are paid out in full, the person(s) duly so designated by such DROP participant shall receive such DROP account balances in accordance with the DROP participant election in effect at the time of death.

(q) *Modified deferred retirement option program.* Effective upon approval by the city commission of the F.O.P. and I.A.F.F. labor agreements for October 1, 1998, through September 30, 2001, the DROP of the retirement system

shall consist of a Forward DROP and a BAC-DROP. Any member who has reached age 50 with ten years of creditable service, or who has attained a combination of age plus years of creditable service equal to either 64 or 68 as applicable, shall be eligible to participate in the DROP.

(1) *Election to participate.* Upon election of participation in the DROP, by using forms and procedures as prescribed by the board of trustees, a member's creditable service, accrued benefits, and compensation calculation shall be frozen and shall be based on the single highest year preceding participation in the DROP, as the basis of calculating the DROP payment. Upon commencement of participation in the DROP, the participant's contribution and the city contribution to the retirement system for that participant shall cease as the participant will be earning no further service credit. The participant shall not acquire additional pension credit for the purposes of the pension plan but may continue city employment for up to a maximum as established in this article. Effective upon the ratification of the Memorandum of Understanding of July 11, 2008 amending Article 43 of the 2007-2010 collective bargaining agreement with the IAFF, the maximum participation in the Forward DROP for firefighters shall be 54 full months. Effective upon the ratification of the Memorandum of Understanding of May 8, 2008 amending Article 39 of the 2007-2010 collective bargaining agreement with the FOP, the maximum participation in the Forward DROP for police officers who elect Forward DROP or are currently in Forward DROP shall be 84 full months.

(2) *Maximum participation.* Effective upon the ratification of the Memorandum of Understanding of July 11, 2008 amending Article 43 of the 2007-2010 collective bargaining agreement with the IAFF, the maximum participation in the Forward DROP for firefighters shall be 54 full months. Effective upon the ratification of the Memorandum of Understanding of May 8, 2008 amending Article 39 of the 2007-2010 collective bargaining agreement with the FOP, the maximum participation in the Forward DROP for police officers who elect Forward DROP or are currently in Forward DROP shall be 84 full months. Once the maximum participation has been achieved, the participant must terminate employment.

(3) *Creation of individual account.* For each person electing participation in the DROP, an individual account shall be created.

(4) *Earnings on DROP account.* The board of trustees of the retirement system shall establish, by administrative rule, a series of investment vehicles which may be chosen by participants in the DROP. Any losses incurred on account of the option selected by the participant shall not be made up by the city or the FIPO trust fund, but any such loss shall be borne by the participant only. Upon participation in the DROP, the participant shall make a selection of the earnings program on forms provided by the board. All interest shall be credited to the participant's DROP account.

(5) *Distribution of DROP benefits.* Upon conclusion of a period of participation in the DROP not to exceed the maximum set forth in subsection (2), the participant shall terminate employment. Upon termination of employment, a participant may receive payment from the DROP account in the following manner:

a. Lump sum distribution;

b. Periodic payments;

c. Rollover of the balance to another qualified retirement plan.

A participant may defer payment until the latest date authorized by Section 401(a)(9) of the Internal Revenue Code.

(6) *Disability.* A DROP participant shall not be entitled to receive an ordinary or service incurred disability retirement.

(7) *Death.* In the case of the death of a DROP participant, there shall be no accidental death benefit for pension purposes.

(8) *Participation does not affect other disability benefit.* DROP participation shall not affect any other death or disability benefit provided to a member under federal law, state law, city ordinance, or any rights or benefits under any applicable collective bargaining agreement.

(9) *Death of participant before account balances paid out in full.* If a DROP participant dies before the DROP account balances are paid out in full, the person(s) duly so designated by such DROP participant shall receive such DROP account balances in accordance with the DROP participant election in effect at the time of death.

(10) *COLA participation.* Eligibility for payments for cost of living adjustment (COLA) shall not commence until a member has actually separated from employment with the city. COLA service years shall be based upon creditable years of service in calculating the employee's pension. For the purpose of complying with Section H(3)(m) of the Amended Final Judgment in Gates, the employee's "date of retirement" shall be the date of actual termination of employment as an employee with the city and not the date of election to DROP.

(11) *Agreement binding.* Any employee who enters into a DROP agreement shall be bound by the terms and conditions of that said agreement, except that firefighters who are members of the 48-month DROP as of the date of the ratification of the Memorandum of Understanding of July 11, 2008 amending Article 43 of the 2007-2010 IAFF collective bargaining agreement may extend their existing DROP agreements to a maximum of 54 months. Any member who enters into a DROP agreement shall be bound by the terms and conditions of said agreement, except that who are members of the 48-month DROP as of the date of the ratification of the Memorandum of Understanding of May 8, 2008 amending Article 39 of the 2007-2010 collective bargaining agreement with the FOP, may extend their existing DROP agreements to a maximum of 84 months. Any member who elects to be a DROP participant in the future shall be bound by the specific terms of the participant's DROP agreement entered into at that time.

(12) *Forward DROP.* The date of entry into the Forward DROP shall be the beginning of a pay period. Payment shall be made by the retirement system into the participant's DROP account in an amount equal to the regular monthly retirement benefit which the participant would have received had the participant separated from service and commenced the receipt of benefits from the system. The amount of the monthly benefit shall be determined based on the creditable service, average final compensation, and retirement option selected in accordance with subsection 40-203(m). Upon conclusion of a period of participation in the DROP not to exceed the maximum set forth in subsection (2), the participant shall terminate employment with the city.

Election of a forward DROP program precludes participation in a BACKDROP program.

(13) *BACDROP.* An I.A.F.F. bargaining unit member may elect to BACDROP to a date (retirement date) no further back than the date of the member's retirement eligibility date. The BACDROP period must be in 12-month increments, beginning at the start of a pay period, not to exceed 36 months. Effective upon the ratification of the Memorandum of Understanding of July 11, 2008 amending Article 43 of the 2007-2010 collective bargaining agreement with the IAFF the maximum participation in the Forward DROP for firefighters shall be 54 full months. Effective upon the ratification of the Memorandum of Understanding of

May 8, 2008 amending Article 39 of the 2007-2010 collective bargaining agreement with the FOP, the maximum participation in the Forward DROP for police officers shall be 84 full months. Upon ratification of the 2004-2005 F.O.P. labor agreement, an F.O.P. bargaining unit member may elect to BACDROP to a date (retirement date) no further back than the date of the member's retirement eligibility date, provided that the BACDROP period must be in 12-month increments, beginning at the start of a pay period, not to exceed a total of 12 months. Participation in the BACDROP does not preclude participation in the forward DROP program.

(14) *BACKDROP option.* A backdrop benefit option was implemented on January 1, 2013 to replace the BACDROP.

a. An eligible employee who elects the backdrop option shall receive a monthly benefit payable on the employee's actual retirement date (date of retirement and separation from city employment) based on the benefit the employee would have received if he/she had left city employment and retired on an earlier date after attaining normal retirement eligibility ("backdrop date"). In addition, an eligible employee who elects the backdrop option will receive a lump sum payment equal to the accumulation of monthly retirement benefit payments he/she would have received during the period following the backdrop date through the actual retirement date ("backdrop period"), plus interest at the rate of three percent per year, compounded annually. An eligible employee may elect a minimum backdrop period of one year and maximum backdrop period of up to seven years. An eligible employee who elects the backdrop option must select the normal form of benefit or an optional form of benefit in accordance with subsection 40-203(m) at the time of electing the backdrop option. The employee's monthly benefit as well as the lump sum payment under the backdrop option is based on the form of benefit selected.

b. Employees are eligible to elect the backdrop option after completing one year of creditable service following the normal retirement date. The maximum backdrop period is seven years. Eligible employees who wish to elect the backdrop option must provide written notification to the department director and the department of human resources at least eight months prior to the employee's retirement date; provided a lesser notice period may be approved by the city manager due to special circumstances. Employees will be able to revoke their backdrop election one time, but within one month of their election. However, if an employee is granted a lesser notice period by the city manager due to special circumstances, the employee will not be eligible for the one-time backdrop election revocation. Employees are not required to elect the backdrop option.

c. All or a portion of the lump sum payment under the backdrop option may be rolled over to an eligible retirement plan or IRA in accordance with federal law. The rollover of DROP funds into the Miami Firefighters' Relief & Pension Fund (175) shall be allowed if rollovers of this type are approved by the Miami Firefighters' Relief & Pension Fund (175) trustee board.

d. If the backdrop option is ever terminated, for any reason, the rights of all persons then in the DROP shall not be diminished or impaired. Additionally, if the backdrop is ever terminated, all persons who are then

eligible for the backdrop option will still be eligible for a seven year backdrop. The board of trustees of shall develop operational rules for the implementation of this provision.

(15) *Compliance with Internal Revenue Code Sections 414(k) and 414(i).* To the extent required under the Internal Revenue Code, the DROP under the retirement system shall be treated as a defined contribution plan to the extent that the member's benefits under the retirement system are based on the member's DROP account. The amount of "annual additions" (as such term is defined in Section 415(c)(2) of the Internal Revenue Code and Treasury Regulations 1.415(c)-1(b)) which may be allocated under the DROP to a member's DROP account for a "limitation year" may not exceed the maximum permissible amount under Section 415(c)(1) of the Internal Revenue Code and Treasury Regulations 1.415(c)-1(a)(1) (the "Annual Maximum Amount"). For purposes hereof, the term "limitation year" means the 12-month period beginning on October 1. In addition, for purposes of determining a member's annual maximum amount, the member's compensation shall be determined in compliance with Treasury Regulations 1.415(c)-2.

(Ord. No. 10002, § 1, 6-13-85; Ord. No. 10910, § 1, 9-5-91; Ord. No. 11074, § 2, 7-22-93; Ord. No. 11110, § 3, 1-13-94; Ord. No. 11190, § 2, 10-27-94; Ord. No. 11235, § 1, 3-27-95; Code 1980, § 40-212; Ord. No. 11752, § 2, 1-26-99; Ord. No. 11944, § 2, 7-27-00; Ord. No. 12203, § 2, 3-27-02; Ord. No. 12718, § 2, 7-28-05; Ord. No. 12941, § 2, 9-11-07; Ord. No. 12993, § 2, 5-8-08; Ord. No. 13019, § 2, 7-24-08; Ord. No. 13091, § 1, 9-24-09; Ord. No. 13202, § 2, 9-27-10; Ord. No. 13344, § 1, 9-27-12; Ord. No. 13551, § 2, 9-24-15; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13874, § 2, 11-21-19; Ord. No. 14066, § 2, 5-12-22)

Case law reference—Pension provision authorizing deduction of workers' compensation benefits from pension benefits held constitutional. Hoffkins v. City of Miami, 339 So. 2d 1145.

Sec. 40-204. Cost-of-living allowance.

(a) A COLA account shall be established for beneficiaries of the retirement system to be financed as follows:

(1) The two-percent COLA contribution made by a member prior to January 9, 1994 shall be a picked up contribution and shall be credited to the COLA account.

(2) Any contributions to the retirement system which are credited to the COLA account on behalf of any member in accordance with section 40-196(a), and which are subsequently returned pursuant to any provision of this division which provides for the return of accumulated contributions, shall be paid from the COLA account.

(3) All other matters regarding the COLA account shall be determined by the COLA committee. The COLA committee shall be composed of the following: a) a representative of IAFF, Local 587; b) a representative of FOP, Lodge No. 20; c) the city manager's designee; d) the city's labor relations officer; and e) a representative of the board.

(b) Beginning with the 1994 COLA benefit, distributions shall be in addition to COLA benefits granted through 1993. The COLA benefit granted through 1993 shall be frozen.

(c) COLA account established as of January 1, 1994:

(1) The COLA shall be funded by a percentage of annual excess investment return from other than COLA account assets. The excess return will be determined as the difference between the actual return on actuarial asset value, net of investment expenses, and the lesser of: (1) a 7.75 percent time-weighted rate of return on the actuarial value of assets; or (2) the current actuarial interest assumption, applied on a time weighted basis to the actuarial value of assets. The excess earnings going into the COLA account shall be used to fund a minimum annual payment of $2,500,000.00, increasing by

four percent compounded per year. To the extent necessary, the city will fund the portion of the minimum annual payment not funded by annual excess earnings no later than January 1 of each year.

(2) The first year's actual return shall be based on the time weighted rate of return on the actuarial value of the assets from October 1, 1991, through September 30, 1992. Thereafter, the actual rate of return will be based on the prior fiscal year to be used in the succeeding fiscal year.

(3) The percentages of such excess return to be transferred to the COLA account shall be determined as follows:

Excess Return	*Percentage to be Transferred*
First 2.5%	75
Next 2.5%	50
Next 2.5%	25
Remainder	0

(4) The transfers shall be made by the board as soon as practicable after the beginning of each fiscal year, but not later than January 1, and shall be transferred only if the retirement system remained in a net positive experience position, determined on a cumulative basis from October 1, 1982. The determination of the net experience position will be based on the difference between the actual unfunded actuarial liability and the expected unfunded actuarial liability, adjusted for any changes in benefits or assumptions, calculated under the individual entry age normal cost method.

(5) All retirement system pension assets, including the COLA account, are integrated for investment purposes, with separate accounting maintained for administrative purposes. Earnings of the COLA account will not be considered for determining excess investment earnings.

(6) All assets in the COLA account at September 30, 1993, will be used for COLA benefits, contribution refunds and allocated expenses.

(7) The actuarial interest and mortality assumptions used for the retirement system will be used for COLA.

(8) COLA benefits will be determined on a defined benefit basis, based on the minimum city scheduled contribution.

(9) The active member contributions into the COLA account will have an effective termination date of January 1, 1994.

(10) In addition to current inactive and active employees, funding for the COLA benefits of future employees hired during the remaining term of the amended final judgment shall be defined and allocated through the remaining term of the amended final judgment.

(11) The monthly COLA benefit distribution beginning January 1, 1994, is summarized in table "A" of amended final judgment, Gates v. City of Miami, Circuit Court Case No. 77-9491 CA 04. Such table is subject to modification by the COLA committee annually based solely upon available assets and joint recommendations by the retirement system actuary and the city's actuary, using generally accepted actuarial principles and prudent reserves, and subject to the arbitration provisions of section 40-196(b)(5).

(12) The available assets shall be identified and distributed in a defined tabular format. The COLA benefits table shall be based upon full years of creditable service at time of retirement and full years of retirement, as of April 1, 1994, and each April 1 thereafter. There shall be increasing dollar amounts for each additional full year of creditable service and full year of retirement.

(13) Creditable service with the exception of accidental death, accident disability, and service-incurred disability is defined as follows:

Date of retirement:

— minus; date of membership

— plus; service bought back and military credit purchased
— plus; time before 1940
— minus; time without pay

(14) Years of retirement for benefits distributed beginning January 1 of a given year shall be projected forward to April 1 of that same year.

(15) The present value of assets available for COLA benefits as defined within Stanley, Holcombe and Associates, Inc.'s September 21, 1993, actuarial impact statement is $32,854,426.00.

(16) The present value of benefits defined within the approved allocation table is $29,581,845.00.

(17) Eligibility for receipt of the COLA benefit shall be based upon a retiree reaching at least four full years of retirement after 46 years of age. Years of retirement shall be determined each year. For this paragraph only, in the case of DROP participants, date of retirement shall mean date of separation from city employment.

(18) For accidental death, accidental disability, and service-incurred disability, years of service shall be defined as 25 years or actual creditable service if greater. Receipt of the COLA benefit shall be based on the retiree reaching at least four full years of retirement and 50 years of age. In the case of accidental death, the beneficiary shall be entitled to the COLA benefit on the April 1 following the 50th anniversary of the employee's birth and the fourth anniversary of the employee's death.

(19) COLA benefits for vested rights retirees shall be based upon such retiree reaching at least four full years of retirement after 50 years of age.

(20) The COLA benefit shall reflect the defined the retirement system benefit options. Existing beneficiaries' benefits shall be based on the retirement system option, e.g., if the original option was joint and 40 percent, then the beneficiary would receive 40 percent of the benefit amount in the benefit table. In the case of a retiree's life annuity option, benefits shall be 105 percent of the table amount.

(Ord. No. 10002, § 1, 6-13-85; Ord. No. 11110, § 4, 1-13-94; Code 1980, § 40-213; Ord. No. 11300, § 1, 9-14-95)

Sec. 40-205. Adjustments in benefits.

Members who belonged to the Miami city employees' retirement system, presently known as the City of Miami firefighters' and police officers' retirement trust, shall continue to be subject to the following adjustments in benefits:

(1) *Election of increased benefit of class A membership.*

a. Any member who belonged to the Miami city employees' retirement system and who elected an increased rate of benefit under that system or who was not a class A member under that system but who elected to become a class A member, shall contribute to the City of Miami firefighters' and police officers' retirement trust, by a single payment or by a series of payments, an amount computed to be sufficient with the member's prospective regular contributions to make accumulated contributions at his or her normal retirement age equal to the amount such accumulated contributions would have been had the member been a class A member or contributed at the increased rate during the entire period of his or her membership in the Miami city employees' retirement system.

1. Any member may waive payment of the foregoing amount, in which case, upon service, early service, rule of 64, rule of 68 or ordinary disability retirement, the member's retirement allowance shall be reduced by the actuarial equivalent of the amount by

which accumulated contributions fall short of the full amount which would have been the member's accumulated contributions had he or she been a class A member or contributed at the increased rate during his or her entire period of membership in the Miami city employees' retirement system.

2. Any member who elects to pay the foregoing amount over an extended period and who is granted disability retirement under the City of Miami firefighters' and police officers' retirement trust, shall have his or her disability retirement allowance reduced by the actuarial equivalent of the then unpaid amounts.

b. If any member of the retirement system elected class A membership or an increased rate of benefit under the Miami city employees' retirement system, and his or her contributions pursuant to such election cause accumulated contributions at the member's normal retirement age to exceed the amount such accumulated contributions would have been had the member maintained a class A membership or been contributing at an increased rate for the entire period of membership in the Miami city employees' retirement system, such member shall be entitled to the return of the excess contributions upon retirement or shall have his or her retirement allowance increased by the actuarial equivalent of the amount by which his or her contributions exceed the full amount which would have been the member's accumulated contributions had he or she been a class A member or had the increased rate been in effect during his or her entire membership in the Miami city employees' retirement system.

(2) *Executive benefit.* Any members who, on or before May 23, 1985, had a vested right to receive an additional retirement allowance equal to one percent of average final compensation under the provisions of the Miami city employees' retirement system, presently known as the City of Miami firefighters' and police officers' retirement trust, which benefit was set forth in former section 40-235(A)(3)(a) of this Code (repealed June 13, 1985), shall be entitled to such additional benefit upon service retirement, early service retirement, "rule of 64" or rule of 68 retirement pursuant to this division. A member shall be deemed to have a vested right if said member, on or before May 23, 1985, was serving in any of the capacities enumerated in former section 40-235(A)(3)(a) and thereafter continued to serve in such capacity uninterruptedly for a total combined period of not less than three years. Those members having such vested right may only continue to earn credit for such allowance up to a combined period of ten years' service.

(Ord. No. 10002, § 1, 6-13-85; Ord. No. 10458, § 1, 7-14-88; Code 1980, § 40-214; Ord. No. 11752, § 2, 1-26-99; Ord. No. 13091, § 1, 9-24-09; Ord. No. 13676, § 2, 4-27-17)

Editor's note—Printed herein is former section 40-235(A)(3)(a) of the Code prior to the adoption of Ordinance Number 10002 which section is referred to and apparently adopted by reference in this section.

"(A)(3)(a) Upon such retirement, if he/she has three (3) or more years' service since last becoming a member, he/she shall also receive a pension equal to one (1) percent of average final compensation for each year of service or fraction thereof that such member served as the city manager, assistant city manager, city clerk, assistant city clerk, executive secretary of the civil service board, assistant executive secretary of the civil service board, executive secretary of the planning and zoning board, assistant executive secretary of the planning board or its predecessor the planning and zoning board, city physician, city attorney, assistant director of the department of law or as director or

assistant director of a department established by the charter of the city or by ordinance as authorized by such charter; provided that he/she has served in any of such capacities for a total combined period of not less than three (3) years; subject, however, for purposes of this paragraph, to a maximum of ten (10) years' service. The benefits provided herein shall not be diminished after retirement."

Sec. 40-206. Assignments prohibited.

The present or future right of a person to moneys in the fund or to a retirement allowance, an optional allowance, a death benefit, the return of contributions, or any other right accrued or accruing to any person under the provisions of this division, shall be unassignable and shall not be subject to execution, garnishment, attachment, the operation of bankruptcy or insolvency law or any other process of law whatsoever.
(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-215; Ord. No. 11300, § 1, 9-14-95)

Case law reference—Pension benefits held subject to garnishment for alimony, child support and medical payments to a pensioner's divorced wife, notwithstanding ordinance provisions exempting pension funds from garnishment. City of Miami v. Spurrier, 320 So. 2d 397.

Sec. 40-207. Protection against fraud.

Whoever, with intent to deceive, shall make any statements or reports required under this division which are untrue or shall falsify or permit to be falsified any record of this retirement system, shall be punished as provided in section 1-13 of this Code.
(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-216)

Sec. 40-208. Errors.

Should any change or error in retirement system records be discovered or result in any member or beneficiary receiving from the retirement system more or less than he or she would have been entitled to receive had the records been correct, the board shall have the power to correct such error and, as far as possible, adjust the payments in such a manner that the actuarial equivalent of the benefit to which such member or beneficiary was correctly entitled shall be paid.
(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-217)

Sec. 40-209. Bonding; fiduciary insurance.

(a) Prior to exercising custody or control of any funds or property of the retirement system, every fiduciary of the retirement system and every person who handles funds or other property of the retirement system shall be bonded. Such bond shall provide protection to the retirement system against loss by reason of acts of fraud or dishonesty on the part of the bonded individual, directly or through connivance with others.

(b) The board shall purchase insurance for the retirement system and for the members of the board of trustees to cover liability or losses occurring by reason of an act or omission of a fiduciary, providing, however, that such insurance permits recourse by the insurer against the fiduciary in case of a breach of a fiduciary obligation by such fiduciary.
(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-218)

Sec. 40-210. General conditions.

(a) It is intended that the City of Miami firefighters' and police officers' retirement trust be and remain tax qualified pursuant to the Internal Revenue Code of 1986, as amended. The provisions of this division shall be interpreted in accordance with such intent.

(b) The City of Miami firefighters' and police officers' retirement trust may sue and be sued as an entity.

(c) The commission shall have continuing power to amend or supplement this division, but no amendment shall be adopted which will reduce the then accrued benefits of members or beneficiaries covered by accumulated reserves, which reserves shall constitute a trust fund for the payment of such benefits.
(Ord. No. 10002, § 1, 6-13-85; Code 1980, § 40-219; Ord. No. 13551, § 2, 9-24-15)

Sec. 40-211. Limitation on compensation.

(a) Compensation in excess of limitations set forth in section 401(a)(17) of the Internal Revenue Code shall be disregarded. The limitation on compensation for an "eligible employee" shall not be less than the amount which was allowed to be taken into account hereunder as in effect on July 1, 1993. "Eligible employee" is an individual who was a member before the first plan year beginning on or after January 1, 1996.

(b) It is the intention of the city and of the board that the plan remain at all times a qualified plan, as that term is defined under the Internal Revenue Code.

(c) No member's annual benefit may exceed the amounts permitted under Section 415 of the Internal Revenue Code as amended, including cost of living adjustments under Section 415(d).

(d) In no event may a member's retirement benefit be delayed beyond the later of April 1st following the calendar year in which the member attains age 70½, or April 1st of the year following the calendar year which the member retires.

Notwithstanding any other provision of this plan to the contrary, a form of retirement income payable from this plan, shall satisfy the following conditions:

(1) If the retirement income is payable before the member's death:

a. It shall either be distributed or commence to the member not later than April 1 of the calendar year following the later of the calendar year in which the member attains age 70½, or the calendar year in which member retires;

b. The distribution shall commence no later than the calendar year defined above; and (a) shall be paid over the life of the member or over the lifetimes of the member and spouse, issue or dependent, or (b) shall be paid over the period extending not beyond the life expectancy of the member and spouse, issue or dependent.

Where a form of retirement income payment has commenced in accordance with the preceding paragraphs and the member dies before his/her entire interest in the plan has been distributed, the remaining portion of such interest in the plan shall be distributed no less rapidly than under the form of distribution in effect at the time of the member's death.

(2) If the member's death occurs before the distribution of his/her interest in the plan has commenced, member's entire interest in the plan shall be distributed within five years of member's death, unless it is to be distributed in accordance with the following rules:

a. The member's remaining interest in the plan is payable to his/her spouse, issue or dependent; and

b. The remaining interest is to be distributed over the life of the spouse, issue or dependent or over a period not extending beyond the life expectancy of the spouse, issue or dependent; and

c. Such distribution begins within one year of the member's death unless the member's spouse is the sole designated beneficiary, in which case, the distribution need not begin before the date on which the member would have attained age 70½ and if the member's spouse dies before the distribution to the spouse begins, this section shall be applied as if the spouse were the member.

(e) Notwithstanding any provision of this plan to the contrary, effective December 12, 1994, contributions, benefits and service credit with respect to qualified military service will be provided in accordance with Section 414(u) of the Internal Revenue Code of 1986, as amended, USERRA or F.S. chs. 175 and 185, as applicable.

(f) Differential wage payments. For years beginning after December 31, 2008 (i) an individual receiving a differential wage payment, as defined in Section 3401(h)(2) of the Internal Revenue Code, shall be treated as an

employee of the employer making the payment, (ii) the differential wage payment shall be treated as compensation, and (iii) the plan shall not be treated as failing to meet the requirements of any provision described in Section 414(u)(1)(C) of the Internal Revenue Code by reason of any contribution or benefit which is based on the differential wage payment.

(g) No pension provided hereunder shall be assignable or subject part of the corpus or income of the fund be used for, or diverted to, purposes other than for the exclusive benefit of members and their beneficiaries and until those liabilities are satisfied, all city contributions will remain in the fund for the benefit of the members or beneficiaries in the event the plan is terminated or city contributions cease.

(h) Upon the termination of the plan or on the complete discontinuance of contributions under the plan, each member shall have nonforfeitable, 100 percent vested rights to benefit accrued to date of the termination or discontinuance to the extent funded at that time.

(i) The city shall solely for the purpose of compliance with Sections 125, 457, and 414(h) of the Internal Revenue Code, pick up the members' contributions. The member contributions so picked up shall be designated as employer contributions in determining tax treatment under the Internal Revenue Code. No member shall have the option of choosing to receive the contributed amounts directly instead of having them paid by the city to the plan.

(Ord. No. 11190, § 3, 10-27-94; Code 1980, § 40-220; Ord. No. 13551, § 2, 9-24-15; Ord. No. 13676, § 2, 4-27-17)

Editor's note—As set out in Ord. No. 11190, § 7, adopted Oct. 27, 1994, § 40-211 shall become effective on September 30, 1996.

Sec. 40-212. Direct transfers of eligible rollover distributions.

(a) *General.* Notwithstanding any provision of the retirement system to the contrary that would otherwise limit a distributee's election under this section, a distributee may elect, at the time and in the manner prescribed by the board, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(b) The plan may allow a public safety officer to elect a tax free distribution of up to $3,000.00 annually directly to a retiree medical plan or long term care insurance on a pre-tax basis, so long as the public safety officer separates from service either at the plan's normal retirement age or due to his or her disability. Insurance premiums may be paid for the public safety officer, his/her spouse or his/her dependents, but once he/she is deceased, the benefit ceases and may not be used by his/her spouse or beneficiaries to pay for their insurance premiums. Insurance premium payments may only be made directly to the insurance company. "Public Safety officers" include law enforcement officers, firefighters, chaplains, rescue crew members or ambulance crew members.

(c) *Definitions.*

Direct rollover means a payment by the plan to the eligible retirement plan specified by the distributee. Effective as of January 1, 2010, a non-spouse beneficiary may make a direct rollover only to an "inherited" individual retirement account as described in Section 408(b) of the Internal Revenue Code. If a non-spouse beneficiary receives a distribution from the Plan, the distribution is not eligible for a 60-day (non-direct) rollover.

Distributee includes an employee or former employee. In addition, the employee's or former employee's surviving spouse is a distributee with regard to the interest of the spouse. Effective as of January 1, 2010, as an employee's or former employee's non-spouse beneficiary is a distributee with regard to the interest of the employee or former employee.

Eligible retirement plan means an individual retirement account described in section 408(a) of the Code, an individual retirement annuity described in section 408(b) of the Code, an annuity plan described in section 403(a) of the Code, an eligible deferred compensation plan described in section 457(b) of the Code which is maintained by an eligible employer described in

section 457(e)(1)(A) of the Code and which agrees to separately account for amounts transferred into such plan from this plan, an annuity contract described in section 403(b) of the Code, a qualified trust described in section 401(a) of the Code, that accepts the distributee's eligible rollover distribution, or any other retirement plan determined to be an eligible retirement plan under the Code as it may be amended from time to time. This definition shall apply in the case of an eligible rollover distribution to the surviving spouse.

Eligible rollover distribution means any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more; any distribution to the extent such distribution is required under section 401(a)(9) of the Internal Revenue Code and the portion of any distribution that is not includible in gross income. Any portion of any distribution which would be includible in gross income will be an eligible rollover distribution if the distribution is made to an individual retirement account described in section 408(a) of the Internal Revenue Code, to an individual retirement annuity described in section 408(b) of the Internal Revenue Code or to a qualified defined contribution plan described in sections 401(a) or 403(a) of the Internal Revenue Code that agrees to separately account for amounts so transferred, including separately accounting for the portion of such distribution which is includible in gross income and the portion of such distribution which is not so includible.

(d) *Plan transfers into the fund.* The retirement system will accept a direct transfer or rollover of an eligible rollover distribution or a member contribution of an eligible rollover distribution from an eligible retirement plan which is maintained by the city, solely for the purpose of purchasing creditable service as provided in subsection 40-202(6) herein.
(Ord. No. 12941, § 2, 9-11-07; Ord. No. 13551, § 2, 9-24-15; Ord. No. 13676, § 2, 4-27-17)

Secs. 40-213—40-240. Reserved.

DIVISION 3. CITY OF MIAMI GENERAL EMPLOYEES' AND SANITATION EMPLOYEES' RETIREMENT TRUST*

Sec. 40-241. Definitions.

The following words and phrases as used in this division shall have the following meanings:

Accumulated employee contributions shall mean the sum of all amounts deducted from a member's compensation or picked up on behalf of a member, together with regular interest as provided in this division. Accumulated employee contributions

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***Editor's note—**Ord. No. 12111, § 1, adopted September 25, 2001, amended div. 3, §§ 40-241—40-263 in its entirety to read as herein set out. Formerly, div. 3 pertained to similar subject matter and derived from Code 1980, §§ 40-225—40-247; Ord. No. 10002, § 1, adopted June 13, 1985; Ord. No. 10458, § 1, adopted July 14, 1988; Ord. No. 10911, § 1, adopted September 5, 1991; Ord. No. 11021, § 1, adopted November 12, 1992; Ord. No. 11073, §§ 2, 3, adopted July 22, 1993; Ord. No. 11192, § 2, adopted October 27, 1994; Ord. No. 11199, § 1, adopted November 17, 1994; Ord. No. 11232, § 2, adopted March 9, 1995; Ord. No. 11234, § 1, adopted March 27, 1995; Ord. No. 11340, § 1, adopted February 29, 1996; Ord. No. 11392, § 1, adopted September 12, 1996; Ord. No. 11546, § 1, adopted September 23, 1997; Ord. No. 11564, § 15, adopted October 28, 1997; Ord. No. 11589, § 1, adopted January 13, 1998; Ord. No. 11608, § 1, adopted February 10, 1998; Ord. No. 11717, § 1, adopted October 27, 1998; Ord. No. 11729, § 1, adopted November 17, 1998; Ord. No. 11743, § 2, adopted January 12, 1999; Ord. No. 11879, § 2, adopted January 13, 2000; Ord. No. 11927, § 2, adopted May 11, 2000.

Note—Section 2 of Ord. No. 12111, adopted September 25, 2001, is as follows: "This Ordinance shall be applied on a prospective basis only. No person who is a separated vested member; a member not in service or currently a beneficiary under the plan shall be entitled to the benefits provided for in this Ordinance, except as otherwise specifically provided. Benefits available to those persons shall be the benefits in effect on the date of separation from service. The deletion of obsolete language shall not impair or diminish the rights of any person to whom those benefits are applicable."

shall also mean any amounts paid by a member for the purchase of military service credits or other paybacks permitted in this Plan.

Active membership shall mean membership in the Plan as an employee.

Actuarial equivalent shall mean a benefit having the same present value as the benefit it replaces based upon the actuarial table adopted by the board of trustees. For purposes of determining actuarial equivalence under Internal Revenue Code Section 415, the applicable mortality table will be the table under Internal Revenue Code § 417(e)(3)(B).

And shall have a conjunctive meaning.

Average final compensation shall have a meaning dependent upon the date of hire and the date of termination of service of the member. The periods of time for which average final compensation is determined are:

(a) For members who became employed before May 24, 1984, and whose active membership in the Plan did not cease before May 23, 1985. In the case of such members, average final compensation shall mean the highest compensation of that member during any one year of membership service. The highest one year of compensation shall not exceed the second highest year of compensation by more than 15 percent excluding any difference due to longevity, anniversary and negotiated cost of living increases. The term "year" shall be calculated using the highest 12 months of compensation, but the months need not be consecutive.

(b) In the case of a member who becomes an employee on or after May 24, 1984 and who retires or terminates employment with ten or more years of creditable service prior to October 1, 2010, or for an employee whose service has previously ended or who is not a member absent from service, but recommences on or after May 24, 1984 who retires or terminates employment with ten or more years of creditable service prior to October 1, 2010, average final compensation shall mean the average annual compensation of the member during the last two years of membership service, or the highest two years of membership service, whichever is greater. In the case of the highest two years of membership service, the years need not be consecutive. The term "year" shall be calculated using the highest 12 months of compensation, but the months need not be consecutive.

(c) Effective September 30, 2010, for members employed on that date who retire on or after October 1, 2010, average final compensation shall mean: average of highest five years of the last ten years of service, to be phased in over the next three years as follows: average final compensation for members who retire on or after October 1, 2010 and on or before September 30, 2011 will be based on the average of the highest three years of membership service; for members who retire on or after October 1, 2011 and on or before September 30, 2012, it will be based on the average of the highest four years of membership service; and for members who retire on or after October 1, 2012, average final compensation shall mean the average of the highest five years of the last ten years of membership service. Provided, in no event shall the average final compensation of any member who is employed on September 30, 2010 and retires on or after October 1, 2010, be less than the member's average final compensation as of the date of the plan change.

(d) Effective October 1, 2018, for members who were hired prior to October 1, 2010 and retire on or after October 1, 2018, average final compensation shall mean the highest one year of compensation.

BACDROP shall mean Benefit Actuarially Calculated Deferred Retirement Option Program.

Beneficiary shall mean any person receiving a retirement allowance or other benefit from the Plan.

Benefit shall mean a retirement allowance or other payment provided by the Plan and made to a member, retiree or beneficiary.

Board or *board of trustees* shall mean the board of trustees of the Plan.

Child shall mean the natural or adopted child of a member, but shall not include foster children or step-children.

City shall mean the City of Miami, Florida.

City commission or commission shall mean the Miami City Commission.

COLA shall mean the cost of living adjustment provided under the terms of the Plan.

Compensation shall mean a member's base salary, including pick-up contributions for all straight time hours worked, assignment pay, pay supplements, vacation, and sick leave used while an active member, jury duty, and death in family leave taken or any other administrative leave approved pursuant to ordinance, labor agreement, or city personnel policy which is used as part of the member's base salary. Compensation shall not include overtime pay, payments for accumulated sick leave, accumulated vacation leave, or accumulated compensatory leave, premium pay for holidays worked, call back pay, uniform allowances, tool allowances, the value of any other employment benefit or non-monetary entitlement, or any other form of remuneration. The amount of compensation taken into account under the System may not exceed $200,000.00. This amount is subject to adjustment as provided for in Internal Revenue Code Section 401(a)(17), Internal Revenue Code Section 415(d) and Section 16 of this Plan. Beginning with compensation earned after December 31, 2008, and pursuant to Internal Revenue Code Section 414(u)(7), the definition of compensation includes the amount paid by the city as differential wages to members who are absent from employment while in qualified military service. For members who retire on or after October 1, 2018, compensation shall include the retroactive five percent salary increase for the member's highest one year salary.

Creditable service shall mean credit upon which a member's eligibility to receive benefits under the Plan is based, or upon which the amount of such benefits is to be determined.

Disability shall mean the permanent and total incapacity to perform useful and efficient service as an employee of the city as determined by the board pursuant to the terms of the Plan.

DROP shall mean Deferred Retirement Option Program and shall include a Forward DROP and a BACDROP.

Early service retirement shall mean a member's withdrawal from service under circumstances permitting the payment of a retirement benefit before such member is eligible for normal service retirement.

Employee shall mean any regular, permanent, and full-time appointed officer or employee of the city, other than a police officer or firefighter as defined in section 40-191 of the city Code. The term "employee" shall include both classified and unclassified employees, provided they are appointed on a full-time basis as defined by the Civil Service Rules, collective bargaining agreement, or other applicable city personnel policy. The term "employee" shall also include members of this Plan who become employees of Miami-Dade County by virtue of the merger, transfer, or assignment of governmental units or functions from the city to Miami-Dade County. Any such employee shall continue as a member of this Plan unless they elect within six months after the date of the transfer to become a member of the Florida Retirement System. For the purpose of any such employee, Miami-Dade County shall be deemed included within the term "city" as used in this Code. Temporary, part-time or casual employees shall not be deemed "employees."

Forward DROP shall mean a Deferred Retirement Option Program where benefit is equal to the regular retirement benefit the member would have received had the member separated from service and commenced the receipt of benefits from the plan.

Full time shall mean an employee who is compensated on a 40 hour per week basis.

Fund shall mean the City of Miami General Employees' and Sanitation Employees' Retirement Trust Fund.

General Employees' Union shall mean the certified collective bargaining agent for all general employees of the city, except sanitation employees, managerial employees and confidential employees.

Internal Revenue Code shall mean the Internal Revenue Code of 1986, as amended from time to time.

May shall mean a permissive term.

Member shall mean an employee for whom contributions to the Plan are picked up as required by this Plan.

Member absent from service shall mean any member who has ceased to be an employee for less than three years in a period of five consecutive years after last becoming a member, and who has not withdrawn the accumulated employee contributions.

Member not in service shall mean any member who has a vested right to retirement pursuant to the provisions of this Plan. A member not in service shall also be known as a vested separated member. This term shall not include retired members who have been rehired by the city in positions not eligible for participation in this Plan.

Membership service shall mean service as an employee for which contributions to the Plan were made as required by this Plan.

Miami City General Employees' Retirement Plan shall mean the city pension plan which was established effective July 1, 1956, pursuant to Ordinance No. 5624, enacted May 2, 1956, as amended.

Noninvestment expenses shall exclude fees paid to money managers whose duty it is to invest and manage the assets of the Plan and to report on the performance of those investments. Salaries for office staff, overhead, professional fees for actuaries, accountants, financial consultants, performance monitors and attorneys, and other similar nonbenefit costs are examples of noninvestment expenses.

Normal costs shall mean the cost of benefits attributable to the current year under the modified aggregate entry age normal cost method.

Normal retirement age shall mean age 55 for members employed on September 30, 2010 who have attained age 55 by that date and members who retire or terminate employment with ten or more years of creditable service prior to October 1, 2010. Normal retirement age for members who did not attain age 55 as of September 30, 2010 and all other members who retire on or after October 1, 2010 shall mean the earlier of age 60 with ten years of creditable service, age 55 with 30 years of creditable, or rule of 80 retirement with ten years of creditable service (when the sum of a member's age and length of creditable service equals at least 80). Notwithstanding the provisions of this paragraph, effective September 30, 2020, for all members hired prior to October 1, 2010 who retire on or after September 30, 2020, normal retirement age shall mean age 55 with ten years of creditable service or rule of 70 retirement. All members are 100 percent vested upon reaching normal retirement age.

Option shall mean one of several choices available to members with respect to the manner in which a retirement benefit may be paid.

Payback shall mean a member's contribution to the Plan for creditable service for which other than regular contributions have been made. Contributions required for paybacks shall not be picked up by the city, but may be deducted from a member's compensation.

Pick-up amounts shall mean employer contributions derived from a member's compensation through a reduction in the member's compensation. For the purposes of this Plan, amounts picked-up shall be considered for state law purposes as employee contributions.

Plan shall mean the City of Miami General Employees' and Sanitation Employees' Retirement Trust.

Plan year shall mean the period from October 1 through September 30 of the following year.

Pre-existing condition shall mean a condition of health which pre-dated any period of Plan membership.

Regular contributions shall mean amounts picked-up by the city from the compensation of a member. Regular contributions shall not include payback contributions or any other amounts which may be deducted from a member's compensation pursuant to this division.

Regular interest shall mean interest at the rate prescribed by the board of trustees which shall be not less than one percent per quarter of the contribution balance as of the end of the previous calendar year, including interest.

Retiree shall mean a former member who is in receipt of benefits from the Plan.

Retirement shall mean a member's withdrawal from service with a benefit granted to the member pursuant to the provisions of this Plan.

Rule of 70 shall mean a computation permitting normal retirement where the sum of the member's age and length of creditable service is equal to at least 70, provided that the member has completed ten years of creditable service.

Rule of 80 shall mean a computation permitting normal retirement where the sum of the member's age and length of creditable service is equal to at least 80, provided that the member has completed ten years of creditable service.

Sanitation Employees' Union shall mean the certified collective bargaining agent for all sanitation employees of the city, except for managerial employees, confidential employees and employees covered by another collective bargaining unit.

Service shall mean active employment as an employee of the city.

Service retirement shall mean a member's retirement from service under circumstances permitting payment of a retirement benefit without reduction because of age, length of service, or both and without special qualifications such as disability.

Spouse shall mean the lawful husband or wife of a member or retiree at the time benefits commence, unless a new designation has been made in writing to the board in accordance with the provisions of this Plan. This section shall be interpreted under Florida choice of law rules.

Surviving spouse means the spouse of the member at the time benefits commence unless a new designation has been made in accordance with the provisions of this Plan.

Trustee shall mean a member of the board of trustees of the Plan.

Useful and efficient service shall mean the performance of the regular duties of the position to which the employee is assigned by the city. The board shall determine from the facts of each disability application whether the member is performing in accordance with this definition.

Unfunded liability shall mean the excess of the actuarial accrued liability of the Plan over (the) present asset value used to determine the city's funding obligation.

Vested benefit shall mean an immediate or deferred benefit to which a member has gained a non-forfeitable right under the provisions of this Plan, without the need for additional creditable service.

Vesting shall mean ten years of creditable service before the member is entitled to service retirement benefits and non-service disability.
(Ord. No. 12111, § 1, 9-25-01; Ord. No. 12202, § 2, 3-27-02; Ord. No. 13203, § 2, 9-27-10; Ord. No. 13679, § 1, 5-11-17; Ord. No. 13887, § 2, 12-12-19; Ord. No. 14332, § 2, 11-21-24)

Sec. 40-242. Plan established; purpose; name; operative date.

A Plan is established and placed under the exclusive administration and management of a board of trustees for the purpose of providing retirement benefits pursuant to the provisions of this Code and for payment of the reasonable expenses of the Plan. This Plan shall be known as the "City of Miami General Employees' and Sanitation Employees' Retirement Trust." This Plan is intended to be a tax qualified plan under

Internal Revenue Code Section 401(a) and meet the requirement of a governmental plan as defined in Internal Revenue Code Section 414(d).
(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13679, § 1, 5-11-17)

Sec. 40-243. Board of trustees.

(a) *Composition and selection.*

(1) The sole and exclusive administration of and responsibility for the proper and effective operation of this Plan is vested in a nine member board of trustees.

(2) The board of trustees shall be selected as follows:

a. One trustee shall be selected by the city manager, which trustee shall not be the mayor, a city commissioner, the city manager, the city finance director, or an assistant finance director.

b. Two trustees shall be selected by the general employees and their names submitted to the city clerk. The trustee may be a present or retired member of the bargaining unit represented by the General Employees' Union and shall be selected and serve according to the constitution and bylaws of the General Employees' Union.

c. Two trustees shall be selected by the sanitation employees and their names submitted to the city clerk. The trustees shall be present members of the bargaining unit represented by Sanitation Employees' Union and shall be selected and serve according to the constitution and bylaws of the Sanitation Employees' Union.

d. The remaining four trustees shall be selected by the city commission and may not be employees of the city. Two of the trustees shall be selected from a list of six persons submitted by the General Employees' Union according to its constitution and bylaws and the other two trustees shall be selected from a list of six persons submitted by the Sanitation Employees' Union according to its constitution and bylaws. The city commission may, at the request of the General Employees' Union or the Sanitation Employees' Union, accept a list consisting of one name for each position to be filled. The lists submitted to the city commission shall not contain duplications. If a duplication occurs, the city commission shall return both lists for resubmission.

e. The trustees appointed by the city shall have, at the minimum, the following qualifications:

1. Be presently employed or self-employed on a full-time basis, or be retired from such;

2. Have resided in Miami (or its immediate environs) for the past five years;

3. Be able to attend board meetings if scheduled well enough in advance and agree to resign from the board if meeting attendance is less than 75 percent in a one-year period; however, the provisions of this subsection shall not apply to those individuals who are members of city boards and who are (1) reservists in the United States Armed Forces or members of the Florida National Guard, and have been ordered to active military duty for national, state, or homeland defense and due to such duty cannot attend board meetings, or (2) employees of agencies whose services are considered essential for national, state, or homeland defense and due to such services cannot attend board meetings.

4. Have been involved in, within the last five years, and be knowledgeable about employee pension or similar fringe benefits;
5. Have knowledge of, be familiar with, and have had exposure to labor/management relations;
6. Have knowledge of and be familiar with business principles;
7. Have not been, within the past five years, a public employee union representative, nor a representative of management for the city;
8. Not be actively involved in nor aspire to be actively involved in city, county, or state politics.

(b) *Term of office.*

(1) The term of office for each trustee shall be two years.

(2) There shall be no limit to the number of terms a trustee may serve.

(3) A trustee shall take an oath of office administered by the city clerk within ten days after selection.

(4) A trustee shall serve until a successor trustee is appointed and administered the oath of office.

(c) *Fiduciary responsibility.* The board of trustees shall be deemed the named fiduciary of the Plan and shall discharge its responsibilities solely in the interest of the members and beneficiaries of the Plan for the exclusive purpose of providing benefits to the members and their beneficiaries and to defray the reasonable expenses of the Plan. The trustees shall exercise those fiduciary responsibilities with the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a similar character and with similar aims.

(d) *Compensation.* Trustees who are employees of the city shall be granted leave with full pay and benefits while functioning as a trustee during their normal working hours. Service on the board shall not be considered as "time worked" for the purposes of overtime liability under the Fair Labor Standards Act. This shall include attendance at board meetings, workshops, board approved educational conferences and board approved travel. Employee trustees shall not otherwise be paid for their services as trustees. The nonemployee trustees shall be compensated at any given time in the same manner as are members of the city's civil service board.

(e) *Meetings; voting; quorum; officers.*

(1) The board shall meet at least once every two months following appropriate public notice and shall meet and conduct the business of the Plan in accordance with Chapter 286, Florida Statutes.

(2) Each trustee shall be entitled to one vote. Five concurring votes shall be necessary for a decision by the board. Five trustees shall constitute a quorum for the purpose of meeting and transacting business. A lesser number of trustees may be appointed as a committee to perform tasks on behalf of the board. All committee meetings shall be subject to the notice and meeting requirements of Chapter 286, Florida Statutes.

(3) The board shall elect, every two years, a trustee as chairperson and a trustee as vice chairperson of the board.

(f) *Vacancies; removal.*

(1) If a vacancy occurs due to resignation, death, or removal, the vacancy shall be filled for the unexpired term of the departing trustee in accordance with the provisions of this section for selection of the trustee who has vacated the office.

(2) The board may remove a trustee prior to completion of his or her designated term of office for proper cause only, which cause shall be stated in writing. No trustee shall be removed pursuant to this section except upon proper notice and

hearing. The board shall prescribe uniform rules for the conduct of such hearings. Proper cause shall mean a trustee's failure to satisfactorily discharge his or her fiduciary responsibility, including, but not limited to, failure to attend 75 percent of the meetings of the board in a one-year period. For the purposes of removal only, six concurring votes shall be necessary.

(Ord. No. 12111, § 1, 9-25-01; Ord. No. 12201, § 1, 3-14-02)

Sec. 40-244. Administration of the Plan; liability; misconduct of a co-trustee.

(a) *Administrative duties of the board.*

(1) To maintain such records as are necessary for calculating and distributing Plan benefits;

(2) To maintain such records as are necessary for financial accounting and reporting of Plan funds;

(3) To maintain such records as are necessary for actuarial evaluation of the Plan, including investigations into the mortality, service and compensation experience of its members and beneficiaries;

(4) To compile such other administrative or investment information as is necessary for the management of the Plan;

(5) To process, certify and respond to all correspondence, bills and statements received by the Plan, as well as all applications submitted to the board for Plan benefits;

(6) To establish and maintain communication with city departments, and other agencies of government as is necessary for the management of the Plan, including preparing, filing and distributing such reports and information as are required by law to be prepared, filed or distributed on behalf of the Plan;

(7) To determine all questions relating to, and process all applications for eligibility, participation and benefits;

(8) To distribute at regular intervals a comprehensive summary Plan description and periodic reports to employees, not less than biennially, regarding the financial and actuarial status of the Plan;

(9) To retain and compensate such professional and technical expertise as is necessary to fulfill its fiduciary responsibilities;

(10) To make recommendations regarding changes in the provisions of the Plan;

(11) To assure the prompt deposit of all member contributions, city contributions, and investment earnings;

(12) To establish a uniform set of rules and regulations for the management of the trust;

(13) To take such other action as the trustees shall deem, in their sole and exclusive discretion, as being necessary for the efficient management of the Plan.

(b) *Pension administrator.*

(1) The board shall employ a pension administrator to assist the board in the performance of its administrative duties. The pension administrator, subject to the approval of the board, may employ such staff as is necessary for the proper administration of the Plan.

(2) The pension administrator selected by the board shall have, at the minimum, the following qualifications:

a. Accounting or pension administration background;

b. Managerial experience, including hiring, directing and motivating a small staff;

c. Sufficient knowledge or experience to supervise data processing operations;

d. Experience with filing government forms (including federal and state compliance requirements) and have the initiative to inquire and success-

fully obtain resource data when specific information is not readily available;

e. Be capable of using benefit formulas to calculate and pay benefits;

f. Be capable of prudent financial management and obeying guidelines established by the board;

g. Be capable of developing cash flow projection;

h. Be capable of preparing financial reports reflecting the activity of the trust and financial trends;

i. Be capable of maintaining an investment schedule;

j. Be capable of maintaining minutes of the meetings of the board;

k. Be capable of preparing correspondence, issuing forms, receiving and processing benefit claims, and expressing ideas in writing;

l. Be able to insist upon, and actively pursue delivery of, all reports and other documents required for the efficient operation of the Plan;

m. Effective oral communication skills;

n. A good employment attendance record;

o. Be efficient, practical and committed to responsible and effective operation of the Plan, its finances and expenses;

p. Be able to remain neutral on decisions to be made by the board and serve all board members in an impartial and arm's length fashion, giving due recognition to the ultimate fiduciary obligation to participants and beneficiaries of the Plan.

(3) The board shall have a continuing duty to observe and evaluate the performance of the pension administrator. The board shall, in selecting a pension administrator, exercise all judgment and care under the circumstances then prevailing which persons of prudence, discretion, and intelligence, exercise in the management of their own affairs.

(4) The pension administrator shall have a written contract of employment with the board, which shall include any tenure rights which the board, in its discretion, may grant.

(5) The pension administrator shall not be an employee of the city.

(6) The pension administrator shall be a fiduciary of the Plan.

(c) *Annual report to the city commission.* The board shall submit the following information annually to the city commission not later than July 1st of each year:

(1) A report showing the fiscal transactions of the Plan for the year ending on the preceding September 30th, as well as the amount of accumulated cash, securities and other property of the Plan.

(2) The current actuarial valuation of the assets and liabilities of the Plan.

(d) *Actuarial valuation; actuarial standards.*

(1) At least once in each three-year period, the board shall cause an actuarial investigation to be made into the mortality, service and compensation experience of the members of the Plan. Taking into account the result of such investigation, the board shall adopt for the Plan, such mortality, service and other tables as are necessary and proper. On the basis of these tables, an annual actuarial valuation of the assets and liabilities of the Plan shall be made.

(2) Actuarial assumptions based on the three-year experience analysis may be modified by the board at such times as it deems appropriate. No change in actuarial assumptions shall be made by the board without 60 days' prior notice to the city of the first meeting at which any change or proposal or recommendation related to such change is made. After the initial meeting where such changes or propos-

als are considered, the city shall be given reasonable notice of any subsequent meeting on the same or related proposal.

(3) The actuarial value of the assets of the Plan shall be the five-year moving market value average. Each year, starting with the market value as of October 1, 2007, the expected return will be determined based on the beginning of year market value and the actual contribution and benefit payments at the assumed interest assumption. One-fifth of the difference between the expected market value return and the actual market value return is included in the actuarial asset value at the valuation date. Four-fifths of the difference between the expected market value return and the actual market value return is deferred in even increments of 20 percent per year to each of the next four years as future adjustments to the actuarial asset value. The preliminary actuarial asset value will be the sum of the actuarial asset value as of the previous valuation date plus the actual contributions and benefits payments in the year ending on the current valuation date plus the expected return on market value return plus one-fifth of the cumulative differences between the expected and actual market value returns over the five years up to the valuation date. The result cannot be greater than 120 percent of market value or less than 80 percent of market value. The board may approve other methods of determining the actuarial value of the Plan assets if such other methods are recommended by the actuary retained by the board and found by the Florida Bureau of Local Retirement Systems, Division of Retirement, Department of Administration, or its successor, to be in compliance with state law. Prior to the first meeting of the board to consider any change in the method of determining the actuarial value of Plan assets, the city shall be given timely written notice of the proposed change.

(e) *Authority to hire consultants.*

(1) The board shall have the authority to retain its own legal consultants, accountants, actuaries, and other professional advisors to assist the board in the performance of its duties. The board may act without independent investigation upon the professional advise of the advisors so retained.

(2) The board shall retain a physician to assist it in the performance of its administrative duties with regard to the consideration of medical questions arising under the Plan. The physician shall conduct any required medical examinations or refer the examinee to a specialist or specialists.

(f) *Defense of actions; trustee liability.*

(1) The board is authorized to prosecute or defend actions, claims or proceedings of any nature or kind for the protection of the fund assets or for the protection of the board in the performance of its duties.

(2) Neither the board nor any of its individual members shall have any personal liability for any action taken in good faith. The trustees individually and the board as a whole shall be entitled to the protections contained in § 768.28, Florida Statutes. The trustees shall also be authorized to purchase from the assets of the fund, errors and omission insurance to protect the trustees and staff in the performance of their duties. Such insurance shall not provide an individual with protection against a fiduciary's fraud, intentional misrepresentation, willful misconduct or gross negligence.

(g) *Public records; board documents; written communications to and from city; commission agenda.*

(1) The board shall keep a record of all of its proceedings which shall be maintained and open to public inspection in accordance with Chapters 119 and 286, Florida Statutes. Such records shall reflect

a complete and comprehensive account of the discussions and actions taken by the board.

(2) The board and the city manager shall each provide the other with copies of all documents relating to the Plan contemporaneously upon the making or receipt of such documents. All written communications relating to the Plan from the board to the city shall be made directly to the city manager. All written communications to the board from the city shall be made directly to the board, with copies to the pension.

(3) The board shall establish uniform procedures for maintaining confidentiality of medical information as required by state and federal law.

(4) When consideration by the city commission is required for Plan business, such business shall be placed on the agenda of the commission and heard at the next scheduled meeting, consistent with the agenda rules of the commission.

(h) *Rules and regulations.* The board may, from time to time, establish rules and regulations which it deems necessary for the efficient administration and management of the Plan. No administrative rule may conflict with the provisions of the City Charter or Code, state or federal law. No administrative rule of the fund may conflict with the provisions of any collective bargaining agreements affecting members of the Plan.
(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13090, § 1, 9-24-09)

Sec. 40-245. Asset management and investments.

(a) *Nature of trust.* The Plan is an irrevocable trust fund into which is deposited all of the assets of the Plan of every kind and description. The Plan is a defined benefit retirement fund. Members have an ownership right in benefits accrued as provided for in this Plan. No member has an ownership right in the assets of the Plan.

(b) *Custody; records.* The custody and supervision of the fund shall be vested in the board. All assets of the Plan may be pooled, provided that accurate records are maintained at all times reflecting the financial composition of the fund, including accurate accounts regarding the following:

(1) Current amounts of accumulated contributions of members, both on an individual and aggregate basis;

(2) Receipts and disbursements;

(3) Benefits payments;

(4) All contributions from the city;

(5) All interest, dividends, gains and losses from investment;

(6) Such other entries as may be required for a clear, complete financial report of the status of the fund.

(c) *Investment policy.* The board shall maintain a written investment policy, with the advice and counsel of such advisors as the board deems necessary, and said investment policy shall set forth the types of securities and other types of investments into which shall be placed the assets of the fund. The policy shall further set forth appropriate limitations on those investments, including, but not limited to, anticipated rate of return, quality of investment, class of investment, acceptable risk and any other factor as required by law.

(d) *Permissible investments.*

(1) Trust funds may be invested without limitation in the following asset classes:

a. Bonds, notes, mortgage-backed securities, or other obligations of the United States or those guaranteed by the United States or any agency of the United States Government or instrumentality of the United States Government or for which the credit of the United States Government, government agency or instrumentality is pledged for the payment of the principal and interest or dividends thereof.

b. Certificates of deposit of any bank incorporated under the laws of the State of Florida, or any national bank organized under the laws of the United States, to do business and situated in this state, to the extent that such savings accounts are fully insured with the federal government or an agency thereof, and that the certificates of deposit are secured by the Deposit of Securities of the United States Government.

c. Repurchase agreements with United States Treasury Securities, and agencies of the United States Government as collateral, said collateral to be held by trustees.

(2) No more than seven percent of the fund at market value may be invested in any one entity of the categories listed below:

a. Common stock, preferred stock and interest-bearing obligations of corporations having an option to convert into common stock, domestic or foreign, when recognized on a major United States stock exchange; provided that the aggregate investment of the fund in any one issuing corporation shall not exceed three percent of the outstanding capital stock of that corporation.

b. Notes secured by first mortgages on real property, insured or guaranteed by the Federal Housing Administration or the Veteran's Administration.

c. Interest-bearing obligations with a fixed maturity of any corporation within the United States; provided that such obligations are rated by at least two nationally recognized rating services in any one of the four highest classifications approved by the comptroller of the currency for the investment of funds of national banks, or if only one nationally recognized rating service shall rate such obligations, such rating service must have rated such obligations in any one of the three highest classifications mentioned in this section. Any security downgraded subsequent to purchase which results in the security falling below the recommended guidelines may be held at the investment manager's discretion.

d. Mortgages, excluding those backed by the United States Government or Government agencies and instrumentalities, which are a commercial property secured by a first lien mortgage note for up to, but not in excess of, 80 percent of the appraised value of the property.

e. Common stock and preferred stock of foreign corporations; provided that the overall investment under this paragraph shall not exceed fifteen percent of the market value of the total trust fund.

(e) *Limitations on investment.*

(1) Trust funds may not specifically be invested in private placements or debt to equity exchanges.

(2) Within the limitations in this section, the board shall have the authority to acquire every kind of property and investment which persons of prudence, discretion and intelligence acquire for their own accounts. The board may retain property properly acquired without limitation as to time and without regard to its suitability for its original purchase.

(f) *Money managers.*

(1) The board of trustees shall retain one or more money managers for management of the assets held by the Plan, and the board shall convey property of the trust to such managers for investment and reinvestment in accordance with the provisions of this section.

(2) All money managers shall have a written contract with the board specifying the

assets to be invested; the asset classes appropriate for utilization; expected performance; standard of care and resolution of disputes. All such contracts shall be governed in accordance with the laws of the State of Florida and shall have venue for resolution of disputes in Miami-Dade County, Florida. In the event that any money manager shall invest assets of the Plan in a prohibited category of investment or shall otherwise breach the terms of the investment management agreement, if such breach causes a loss to the trust, the contract shall require the money manager to make the trust whole for any losses incurred. Each money manager shall be a fiduciary of the Plan.

(3) The board shall establish written guidelines and objectives against which the investment performance of any money manager retained by the board shall be measured. If a money manager fails to meet the guidelines and objectives, or fails to meet its contractual agreement with the board, the money manager may be terminated by the board. The performance of the investment portfolio for the Plan shall be not less than 90 percent of the median performance of comparable portfolios as determined jointly by the board and the city manager. If performance falls below that minimum standard, the money managers shall automatically be removed, unless, based on extenuating circumstances, the board recommends continuation and such continuation is approved by the city commission. The board retains the right, at all times, to terminate any money manager agreement, with or without cause.

(4) In the conduct of their affairs, all money managers shall exercise the judgment and care under the circumstances then prevailing, which persons of prudence, discretion and intelligence exercise in the management of their own affairs, not in regard to speculation, but in regard to the permanent disposition of their funds, considering the probable income, as well as the probable safety of their capital. Money managers shall disburse cash or property from the fund to the board upon written request. Such written request shall constitute a certification that the distribution so requested is one that the board is authorized to direct and the money manager should not be required to investigate the application of such money by the board or its designee. No distribution under this section may cause any part of the fund to be used for, or diverted for, a purpose other than providing benefits to members and beneficiaries of the Plan and defraying the reasonable expenses of administering the Plan.

(5) The board shall have a continuing duty to observe and evaluate the performance of any money manager or other investment advisor retained by the board. The board may, as part of its continuing duty to evaluate the performance of its money managers, retain the services of a performance monitor who shall be responsible for determining the appropriate performance benchmarks and for advising the board of needed changes in its investment policy or asset allocation. Any such advisor shall constitute a fiduciary of the Plan.

(g) *Records to be maintained.*

(1) Any money manager or investment advisor who has custody or control of any trust property or who is otherwise employed, directly or indirectly, in the management of Plan assets shall keep accurate and detailed accounts of all such activities, which records shall be open to inspection and audit at all reasonable times by the city, the retirement board, or their designees.

(2) The board shall keep accurate and detailed accounts of its assets and investments and all such records shall be open for inspection and audit at all reasonable times by the city, or its designees.

(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13154, § 1, 4-22-10)

Sec. 40-246. Contributions.

(a) *Member contributions.*

(1) Effective October 1, 2010, regular contributions of each member of the Plan shall be made each pay period at the rate of 13 percent of each member's earnable compensation. Effective the first full pay period following October 1, 2012, regular contributions of each member of the Plan shall be made each pay period at the rate of ten percent of each member's earnable compensation.

(2) The city shall pick up, rather than deduct, all regular contributions of members. The city shall derive pickup amounts from the same source of funds which is used in compensating members of the Plan and shall do so by reducing the earnable compensation of each member. All pick up amounts shall be treated as employer contributions for the purposes of determining tax treatment under the Internal Revenue Code of 1954, as amended.

(3) The board shall certify to the appropriate city authority or officer responsible for making up the payroll for members of the Plan, the proper proportion of each member's earnable compensation which shall be picked up each pay period as well as any additional amounts which shall be deducted for any member. In determining the amount earnable by a member in each pay period, the board may consider the rate of annual compensation payable to such member on the first day of each period as continuing throughout such period, and the board may omit pickup of amounts from earnable compensation for any period less than a full period. To facilitate pickup of contributions, the required contributions may be modified by such an amount as shall not exceed one-tenth of one percent of the annual earnable compensation which is the basis upon which such pick up amount is to be made.

(4) The proper authority or officer responsible for making up the payroll for members of the Plan shall certify to the board, on each payroll, the amounts to be deducted or picked up by the city for each member. Such amounts shall be deducted or picked up by the city, and when deducted or picked up, shall be paid to the Plan and credited to the active membership account for each respective member.

(5) Regular contributions shall be made, notwithstanding the fact that the minimum compensation provided for by law for any member shall be reduced thereby. Every member shall be deemed to consent and agree to the pick up of regular contributions provided for herein, and payment of compensation less such contributions shall be a full and complete discharge of all claims and demands whatsoever for service rendered during the period of employment covered by such payment, except as to benefits otherwise provided by this division.

(b) *City contributions.* The city's annual fiscal contribution to the Plan shall provide for the following: (1) noninvestment expenses of the Plan; (2) amortization of the unfunded liability of the Plan; and (3) normal costs of the Plan.

(1) The city's contribution for noninvestment expenses of the Plan in any given fiscal year shall be determined by the same process the city uses for that fiscal year in determining the budget of the downtown development authority and the department of off-street parking.

(2) The city's contribution for the unfunded liability of the Plan shall be made in accordance with the final judgment, as amended, in the matter of *Gates v. City of Miami,* Case No. 77-9491, in the circuit court for the eleventh judicial circuit in and for Miami-Dade County, Florida, and in accordance with the following additional provisions:

a. As of October 1, 2011, the unfunded actuarial accrued liability shall be amortized as a level percentage of

the projected payroll of active plan members. The unfunded actuarial accrued liability as of October 1, 2011 shall be amortized by adding five years to the remaining years of each unfunded actuarial accrued liability base. As of October 1, 2011, benefit improvements for actives shall be amortized over 20 years. Benefit improvements for retirees shall be amortized over 15 years. Actuarial gains and losses shall be amortized over 20 years. Changes in actuarial assumptions and methods shall be amortized over 20 years.

b. To the extent the actuarial liability plus normal cost is less than the actuarial asset value, all prior amortization bases are considered fully funded.

(3) The actuarial method for evaluating assets shall be changed to a moving market value average over five years beginning September 30, 2008. As of October 1, 2008, one-year moving average shall be used; as of October 1, 2009, a two-year moving average shall be used; as of October 1, 2010, a three-year moving average shall be used, as of October 1, 2011, a four-year moving average shall be used, and thereafter, a five-year moving average shall be used. Each year, starting with the market value as of October 1, 2007, the expected return will be determined based on the beginning of year market value and actual contributions and benefit payments at the assumed interest assumption. One-fifth of the difference between the expected market value return and the actual market value return is included in the actuarial asset value at the valuation date. Four-fifths of the difference between the expected market value return and the actual market value return is deferred in even increments of 20 percent per year to each of the next four years as future adjustments to the actuarial asset value. The preliminary actuarial asset value will be the sum of the actuarial asset value as of the previous valuation date plus the actual contributions and benefit payments in the year ending on the current valuation date plus the expected return on market value return plus one-fifth of the cumulative differences between the expected and actual market value returns over the five years up to the valuation date. The result cannot be greater than 120 percent of market value or less than 80 percent of market value.

(4) The individual entry age normal cost method will be applied for costs as of October 1, 2008, and each October 1st thereafter, based on demographic and asset data as of the previous October 1st adjusted for interest from that date to reflect payment timing. The annual normal cost will be determined on the individual entry age normal method. If the actuarial asset value exceeds the individual entry age accrued liability, such excess shall be held as a reserve to offset any future unfunded actuarial accrued liability. Under no circumstances will the total cost be determined to be less than zero.

The calculation for normal costs shall be performed separately by actuaries for the city and for the Plan in accordance with the provisions of the foregoing paragraph. The actuary for the Plan shall use the actuarial assumptions adopted by the board. The actuary for the city may use any actuarial assumptions deemed appropriate by that actuary. If the actuary for the Plan and the actuary for the city agree on the normal costs contribution to be made by the city, that amount shall be contributed by the city. If the two actuaries cannot agree on the normal costs contribution, they shall promptly select an independent third actuary. If they are unable to agree on a third actuary, one shall be selected by the American Academy of Actuaries or Conference of Consulting Actuaries. The third

actuary shall, as soon as practicable, submit to the board and the commission a funding recommendation utilizing standard acceptable funding techniques and assumptions. Thereafter, the commission shall fund the amount recommended by either the actuary for the Plan or for the city, whichever recommendation is closer to the recommendation of the third actuary.

(5) On or before May 15 of each year, the board shall certify to the city manager:

a. The amount of appropriation necessary to pay the normal costs and unfunded liability contributions to the Plan for the next fiscal year, including the amount of any benefits payable on account of any predecessor pension or retirement fund; and

b. The amount of appropriation required to pay the noninvestment expenses of the Plan for the next fiscal year.

(6) On or before May 15 of each year, the director of finance shall certify to the appropriate fiscal officer of the Miami-Dade County Government, the amount payable by such metropolitan government under the provisions of Act 59-203 of the General Laws of Florida. Such amount shall consist of that proportion of the appropriation certified by the board pursuant to paragraph (4) of this subsection as the total earnable compensation of members who are employees of such metropolitan government bears to the total earnable compensation of all members. Upon receipt of such amount from the Miami-Dade County Government, the director of finance shall cause the amount received, less that proportion included for noninvestment expenses, to be paid into the benefit account, and such amount shall be included in the total appropriation payable by the city to the Plan as required by this section.

(7) All contributions made by the city to the Plan for any given fiscal year shall be made quarterly, in equal payments, on the first day of each quarter during the fiscal year in question. If the amount of the city's contribution for normal costs has not been determined by the initial payment date in any given fiscal year, the city shall make quarterly payments based upon the greater of (a) the prior year's contribution to normal costs, or (b) the amount calculated pursuant to the final judgment in Gates v. City of Miami, as amended.

(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13090, § 2, 9-24-09; Ord. No. 13101, § 1, 9-29-09; Ord. No. 13203, § 2, 9-27-10; Ord. No. 13343, § 1, 9-27-12)

Sec. 40-247. Accounts.

(a) *Generally.* There shall be two accounts within the Plan; the membership account and the benefits account. Each account shall be operated in accordance with the provisions of this section.

(b) *Membership account.*

(1) The membership account shall consist of the accumulated contributions of the members of the Plan and the accumulated contributions of each member absent from service. The membership account shall also include regular interest paid on member contributions in accordance with the provisions of this section.

(2) All withdrawals of accumulated contributions, whether made at the request of a member or paid to a legal representative or designated beneficiary of a deceased member, shall be charged to the membership account.

(3) Upon the retirement of a member, or upon a member's election of a vested right to retirement, an amount equal to the member's accumulated contributions shall be transferred from the membership account to the benefit account.

(c) *Benefit account.*

(1) The benefit account shall consist of all accumulated contributions transferred

from the membership account, all city contributions, all interest and dividends earned on fund assets, all reserves for payment of Plan benefits and all other assets of the fund.

(2) On January 1 of each year, the board shall transfer from the benefit account to the membership account, an amount sufficient to allow regular interest on the individual balances in the membership account.

(3) All expenses of the Plan shall be chargeable to the benefit account. Such expenses shall include, but are not limited to, payment of all retirement benefits to beneficiaries of the Miami City General Employees' Retirement Plan, beneficiaries of the City of Miami General Employees' and Sanitation Employees' Retirement Trust and retirement allowances to any other persons who retired under the provisions of any predecessor pension or retirement fund.

(d) The board, by uniform rule, may adopt alternate bookkeeping methodology for the maintenance of accounts.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-248. Physical examination; effect of pre-employment conditions.

(a) All employees, as a condition of entry into the Plan, shall agree to submit to a uniform medical examination, as may be required by the board, for the purpose of determining the existence of pre-existing medical conditions. In lieu of a board physical, an employee consents to the board's access for the purposes of this section to any physical performed by the city. No persons shall be denied entry into the Plan on the basis of any pre-existing medical condition.

(b) In the event that the physical examination described in this section shall determine the presence of a pre-existing medical condition, said condition shall be reported to the employee and recorded in the records of the board. Each employee shall acknowledge the receipt of the medical report and execute a form, as prescribed by the board, indicating knowledge of the pre-existing condition and an agreement that said condition cannot form the basis of a service-incurred disability retirement unless it can be shown that the member would have been entitled to a service-incurred disability retirement allowance on the basis of aggravation of the pre-existing condition.

(c) In the event that a member believes the medical report is in error, the member may request a review by the administrator within 30 days of receipt of notice of the physical examination results. If the administrator's review does not satisfactorily resolve the question of the pre-existing condition, the member may request a hearing before the board. Failure to request such a review will not preclude a later challenge on this issue. The board shall prescribe uniform rules for the conduct of such hearings.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-249. Membership; members absent from service.

(a) The membership of the Plan shall include all employees as defined in this Plan, except police officers and firefighters. Membership shall also include an employee who has been absent from service for less than three years in a period of five consecutive years after last becoming a member and who has not withdrawn his or her accumulated contributions. The active membership of this Plan shall not include any member absent from service.

(b) Participation in the Plan is a mandatory condition for all employees except for those employees who have the ability to opt out of participation in the Plan pursuant to section 40-351 and employees working in the office of an elected official. Employees working in the office of an elected official have the ability to opt out of participation in the Plan and the city's trust fund as established by section 40-351. However, if the employee ceases to work in the office of an elected official but continues employment elsewhere within the city, that employee shall enroll in the Plan and start contributing to the plan if not otherwise precluded. Acceptance of

employment shall constitute authorization for the city to pick up contributions from compensation of employees.

(c) Membership in the Plan shall end under the following conditions:

(1) Absence from service due to resignation, termination, budgetary reduction or layoff for more than three years in any period of five consecutive years after last becoming a member;

(2) Becoming a member of any other city sponsored Plan;

(3) End of appointment;

(4) Expiration of office;

(5) Death.

When membership ends, all creditable service previously earned becomes void. If the member again becomes an employee of the city, the employee shall enter the Plan as a new member with no credit for previous service, unless time is repurchased as provided in the Plan. Upon becoming a retiree, a member shall be entitled to those rights earned as of the date of retirement or such benefits as are specifically made applicable to retirees.
(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13112, 10-22-09; Ord. No. 13617, § 1, 7-14-16; Ord. No. 14053, § 2, 3-10-22)

Sec. 40-250. Reserved.

Editor's note—Ord. No. 13112, adopted Oct. 22, 2009, repealed § 40-250 which pertained to right of certain persons to reject membership and derived from Ord. No. 12111, § 1, adopted Sept. 25, 2001.

Sec. 40-251. Transfer of city employees to Plan.

(a) In the event that a firefighter or police officer of the city who is a member of the City of Miami Firefighters' and Police Officers' Retirement Trust ("retirement system") is reclassified to a position other than those positions that are ineligible to participate in the Plan pursuant to section 40-351 other than firefighter, police officer, the employee shall be automatically transferred to membership in this Plan. Creditable service earned as a member of the retirement system shall be deemed creditable service in this Plan.

(b) Outstanding loan balance. Any member of the public trust fund who has an outstanding loan against his or her public trust fund account balance and who elects to transfer to the Plan must repay said loan in full prior to transfer to the Plan.

(c) Commencing on the effective date of transfer to the Plan, a member who has transferred from the retirement system or public trust fund as defined in section 40-250 shall make regular contributions at the rate required by the Plan. Accumulated contributions credited in the retirement system or public trust fund as defined in section 40-250 to the account of such member shall be transferred to the membership account of the Plan and credited to the member thereunder. There shall be transferred:

The employee/employer contribution account balance held in a public trust fund on behalf of any section 40-250 defined employee who transfers membership to the Plan.

(d) If any member of the Plan has transferred from the retirement system or a section 40-250 public trust fund and his or her contributions pursuant to membership in the retirement system or public trust fund cause accumulated contributions at the member's normal retirement age to exceed the amount such accumulated contributions would have been had the member been a member of the Plan during his or her entire period of service with the city, such member shall be entitled to the return of the excess contributions upon retirement or shall have his or her retirement allowance increased by the actuarial equivalent of the amount by which his or her contributions exceed the full amount which would have been the member's accumulated contributions had he or she been a member of the Plan during his or her entire period of service with the city.
(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13112, 10-22-09)

Sec. 40-252. Creditable service.

(a) Creditable service shall consist of all time spent in service since last becoming a member, plus any other time for which creditable service is received pursuant to the provisions of this division.

(b) The board shall determine by administrative rule the amount of service in any year which is equivalent to a year of membership service. The board may not grant more than one year of membership service for all service in any calendar year.

(c) The board may adopt rules and regulations to verify membership credit claimed by any member.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-253. Dismissal for willful misconduct.

(a) Upon a member's dismissal from employment for willful misconduct associated with the duties or responsibilities of his or her employment or office with the city, the following shall apply:

(1) All ownership rights, title, and property interest in such member's accumulated contributions shall immediately vest in the member; and

(2) The dismissed member shall no longer be entitled to receive any benefit whatsoever under the Plan.

The term "willful misconduct" as used in this section shall mean the commission of any act which would constitute a forfeitable offense under Section 112.3173, Florida Statutes.

(b) Should dismissal of an employee for willful misconduct city as defined in this section be reversed by the city manager or by a court of final jurisdiction, the former employee, if he or she again becomes a member, may elect to reconvey all ownership rights, titles and interest in his or her accumulated contributions to the Plan and may elect to payback for time during which the member was dismissed. Payments made to the Plan pursuant to this paragraph shall be made in such manner as the board shall, by rule, prescribe.

(c) The board shall, by administrative rule, adopt a due process procedure to implement this section.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-254. Paybacks for membership credit.

Members shall have the right to receive membership credit in the Plan in accordance with the provisions of this section. Each payback provided for in this section shall be independent of any other payback and may, where appropriate, result in cumulative credits. If a member revokes the payback election, is terminated, resigns or is otherwise separated from the city before the payback is completed, the member shall only receive that portion of credited service purchased as of the date of separation.

(1) *Restoration of prior service credit for reemployed members.*

a. Reemployed former member may restore previous membership service by repaying the accumulated contributions withdrawn together with a uniform rate of interest as determined by the board. This benefit is only available to persons who separated from prior employment with the city other than by involuntary dismissal.

b. The board shall, by uniform rule, promulgate an election form to be filled out by employees wishing to exercise this option. The election form shall specify the form of repayment. All repayments must be completed within five years of the completion of the election form.

c. To receive full credit for the membership service permitted under this section, the member must have completed the repayment of all contributions and interest.

d. If the member is separated for more than three years the member shall be eligible to combine prior and new service for the purpose of Rule of Seventy (70) retirement, but prior service shall be paid at the benefit rate in effect at the time of the first separation. If the member is separated less than three years, all service will be combined for benefit calculation purposes. The member shall again be an active member of the Plan on the date employment recommences and the member shall make regular contributions to the Plan at the rate prescribed by ordinance.

e. All rights under this section must be exercised in accordance with uniform rules adopted by the board.

(2) *Credit for continuous service as a nonmember.*

a. Any person who is now a member of the Plan who had prior service with the city as a probationary, full-time temporary, permanent employee, classified, unclassified, or executive but who at the time of that service was not a member of the Plan, may purchase up to four years of that prior nonmembership service. Contributions will be based on the member's current rate of earnable compensation and the current contribution rate. Interest shall be charged at a uniform rate as determined by the board. The member may purchase credit for any years in excess of four years of prior non-membership service by paying the full actuarial cost for such service.

b. The board shall promulgate a uniform policy for the election and purchase of this benefit. All purchases of credit under this section must be completed within five years of the date of election.

c. In the event that a member becomes disabled in the line of duty, contributions paid under this section shall be refunded with regular interest, at a uniform rate as determined by the board. Benefits purchased under this section may not be used for calculating the minimum service necessary to receive an ordinary disability retirement.

(3) *Credit for military service.*

a. Any member of the Plan whose service with the city is interrupted by military service shall have all pension rights accorded veterans as provided by state or federal law.

b. Any member who has served active military duty, but whose service is not interrupted by that military duty, may purchase up to a maximum of four years for the time spent in military service under the conditions set forth in this section.

c. To be eligible for the four-year service credit set forth in subsection b., the member must:

1. Have engaged in wartime service as declared by state or federal statute or executive order of the President;

2. Military service under honorable conditions;

3. Be vested in this Plan;

4. Complete the election form promulgated by the board within the time limits set forth by the board within the time limits set forth by uniform rule of the board;

5. Make a contribution to the Plan equal to the member's rate of earnable compensation at the date membership service first commenced and that the contribution rate then in effect,

together with four percent interest, be compounded annually.

All such payments must be completed within five years of election to participate in the benefits of this subsection.

d. If a member becomes disabled in the line of duty, the member shall have the option of receiving a return of contributions and no military service credit or accepting a service retirement and completing the purchase of the military service credits by the payment of the remaining contributions.

e. If a member becomes disabled from causes other than service with the city, the member shall have the option of receiving a return of contributions and no military service credit or completing the purchase of the military service credits by payment of the remaining contributions.

f. Effective January 1, 2007, members who die or become disabled while serving on active duty military service shall be entitled to the rights of this section even though such participant was not re-employed by the city as an employee. Members who die or become disabled while on active duty military service shall be treated as though re-employed as an employee the day before the member became disabled or died, and then either died a non-duty death while employed or became disabled from a non-duty disability. Eligibility, if any, for benefits will then be determined under the Plan provisions.

(4) *Credit for maternity/medical leave.*

a. No member who takes an unpaid leave of absence for maternity or medical purposes under the Family Medical Leave Act (FMLA), shall suffer a break in membership. All unpaid leaves of absence taken pursuant to FMLA shall be treated as continuous service, regardless of any other limitation on service within this Plan.

b. A member who takes an unpaid leave of absence for maternity or medical leave may purchase membership credit not to exceed 180 days. If the member requests light duty employment from the city but is denied such employment, the amount of membership credit which may be purchased shall increase to 240 days.

c. Election to buyback for membership credit under this subsection shall be available for 30 days after notification to the member by the board that such buyback is available. The board shall, by uniform rule, establish procedures for notification of members.

d. Contributions for this benefit shall be made in accordance with uniform rules established by the board, but payback of all contributions must be completed within one year. Interest shall be charged at a uniform rate as determined by the board. Contributions shall be at the member's current rate of compensation and the current rate of contribution. If a member fails to meet the qualifications of this subsection, all contributions shall be returned and the member waives the right to membership credit for this period.

(5) *Restoration of service credit for prior continuous service.* Any member with prior service with the city whose membership in the Plan was delayed due to administrative error, either by the board or the member which resulted in a delay in the commencement of membership shall purchase said prior continuous service, without limitation. Contributions shall be based on the rate of compensation and at the contribution

rate in effect on the date of the error. No interest shall be charged if the error was caused by the city or the board. If the error is caused by the member, a uniform rate of interest shall be charged, as determined by the board. The payback shall be made in accordance with uniform rules established by the board and payment must be completed within five years. In the event of a service-connected disability, prior to the completion of the buyback, the member shall be offered the opportunity of receiving either a return of contributions paid or the opportunity to complete the buyback through the payment of the additional contributions. In the event of a refund, contributions shall be refunded without interest. In the case of a nonservice-connected disability prior to the completion of the buyback, the member shall be offered the opportunity of receiving either a return of the contributions paid or the opportunity to complete the payback through the payment of the additional contributions or reduction of the disability benefit until the contributions are fully paid. In the case of a return of accumulated contributions, said contributions shall be returned with interest, at a uniform rate as determined by the board.

(6) *Purchase of additional service upon retirement.* A member in service who has continuous service may, at time of retirement, purchase up to a maximum of three whole creditable years of service based upon the present value as determined by the actuary for the Plan. The purchase of the service years will be made by utilizing the employee's available leave balance at time of retirement reduced by any required federal withholding taxes. If the amount of the leave balance is insufficient to pay the full cost of the three years, the member may make a lump sum purchase in cash for the difference. The purchase of these years of creditable service shall be based upon the average final compensation of the member as defined in section 40-241. The hourly rate applicable to the calculation of the leave balances shall be as specified under the labor agreement applicable to the employee or, in the case of exempt employees, the appropriate administrative policy of the city.

(7) *Re-employment after an early retirement window.* Should any member be reemployed after leaving on an early retirement window, no enhancement shall apply to benefits earned during the period of re-employment. All service retirement benefits earned during the period of re-employment shall not apply to prior service and shall only apply prospectively.

(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13154, § 1, 4-22-10; Ord. No. 13679, § 1, 5-11-17; Ord. No. 13887, § 2, 12-12-19; Ord. No. 14053, § 2, 3-10-22)

Sec. 40-255. Benefits.

(a) *Service retirement.*

(1) A member in service may elect to retire on a service retirement upon the attainment of normal retirement age as defined in section 40-241. An election to retire shall be made upon a written application, prescribed by the board. Benefits shall be effective on the date the application is approved in accordance with the administrative rules adopted by the board.

(2) The service retirement benefit for persons retiring after October 1, 1998, shall be equal to three percent of the member's average final compensation multiplied by the number of years of creditable service through September 30, 2010. Effective October 1, 2010, the service retirement benefit for creditable service on and after that date shall be equal to: for the first 15 years of creditable service, two and one-fourth percent of the member's average final compensation multiplied by the number of years of creditable service; for creditable service in excess of 15 years but less than 20 years, two and one-half percent of the member's average final compensation

multiplied by the number of years of creditable service; and for creditable service in excess of 20 years, two and three- fourths percent of the member's average final compensation multiplied by the number of years of creditable service. The service retirement benefit shall be based on a member's total creditable service and the benefit multiplier in effect at the time the service is earned, multiplied by average final compensation in effect at the time of retirement or separation from employment. Notwithstanding the provisions of this paragraph:

a. Effective October 1, 2017, for members of AFSCME Council 79, Local 871, the service retirement benefit for creditable service on and after October 1, 2010 shall be equal to: for the first 20 years of creditable service, two and one-half percent of the member's average final compensation multiplied by the number of years of credible service; and two and three-fourths percent of the member's average final compensation multiplied by the number of years of credible service in excess of 20 years.

b. Effective October 1, 2018, for all members hired before October 1, 2010, the service retirement benefit shall be equal to three percent of the member's highest one year of compensation multiplied by the number of years of credible service. The service retirement benefit shall be based on a member's total creditable service and the benefit multiplier set forth in this subparagraph (not the benefit multiplier in effect at the time the service is earned).

c. Effective October 1, 2023, for members of AFSCME Local 1907 hired on and after October 1, 2010, the service retirement benefit for creditable service shall be equal to: for the first 20 years of creditable service, two and one-half percent of the member's average final compensation multiplied by the number of years of credible service; and three percent of the member's average final compensation multiplied by the number of years of credible service in excess of 20 years. The service retirement benefit shall be based on a member's total creditable service and the benefit multiplier set forth in this subparagraph (not the benefit multiplier in effect at the time the service is earned).

(3) Any member eligible for a service retirement may choose any of the optional allowances provided in subsection (j).

(4) Notwithstanding any other provision of this Plan, any member who is employed and not participating in the DROP on September 29, 2010 may elect to receive his/her accrued benefit as of that date, in accordance with the provisions of the Plan in effect on that date. Such members who elect to receive their accrued benefit as of September 30, 2010, at a date prior to the normal retirement age provided in subsection (4), shall be eligible to receive that portion of their retirement allowance based on creditable service on or after October 1, 2010, on the date and in the manner provided by the provisions of the system in effect on the earlier of retirement or separation from service.

(b) *Early service retirement.*

(1) Any member who has 20 or more years of creditable service may elect to retire on a retirement allowance which shall be the actuarial equivalent of the service retirement allowance otherwise available to the member upon the attainment of the date the member is eligible for service retirement in accordance with subsections (a)(2) or (a)(4), as applicable at the date of early service retirement. Such election shall be made upon a written

application prescribed by the board. Benefits shall be effective on the date the application is approved in accordance with the administrative rules adopted by the board.

(2) A member eligible for early service retirement may choose any of the optional allowances provided for in subsection (i) of this Plan.

(3) A member who has elected to retire on an early service retirement shall not be eligible to participate in DROP.

(c) *Vested right to retirement.*

(1) If a member who is not entitled to retire on either a service retirement or early service retirement, ceases to be an employee for any reason other than death or willful misconduct prior to October 1, 2010, the member may elect to continue as a member not in service and retire upon the subsequent attainment of age 55, or if a member who is not entitled to retire on either a service retirement or early service retirement, ceases to be an employee for any reason other than death or willful misconduct on or after October 1, 2010, the member may elect to continue as a member not in service and retire upon attainment of age 60; provided:

a. That at the time the member ceased to be an employee, the member had completed ten years of creditable service; and

b. That the member had not withdrawn his or her accumulated contributions.

c. The retirement benefit shall be the same as a service retirement benefit.

(2) If a member who elects to become a member not in service subsequently elects to withdraw his or her accumulated contributions, the member not in service shall be paid the amount of his or her accumulated contributions at the time he or she ceased to be an employee, plus regular interest.

(3) If a member not in service dies prior to retirement, his or her designated beneficiary shall be paid the amount of his or her accumulated contributions at the time the member ceased to be an employee, plus regular interest to the date of the member's death.

(4) If a member elects a vested right to retirement under any city retirement program and thereafter again becomes an employee more than three years after separation, the member shall be eligible, before October 1, 2010, to combine prior and new service for the purpose of Rule of Seventy (70) retirement, but prior service shall be paid at the benefit rate in effect when vested rights were elected. If the member is separated for less than three years, all service will be combined for benefit calculation purposes. The member shall again be an active member of the Plan on the date employment re-commences and the member shall make regular contributions to the Plan at the rate prescribed by ordinance. Such member shall be entitled to accrue retirement benefits as if the member were a new entrant upon the date of subsequent employment, except as the right to combine service as set forth in this paragraph and, in addition, shall be entitled to receive a retirement benefit for his or her prior employment as provided in this paragraph A second period of vesting shall not be required and the member shall be eligible for all rights available to vested employees. This provision shall also be applied to reemployed retired members, who have been retired for more than three years.

(5) A member may choose any of the optional allowances provided for in subsection (j) of this Plan at the time the vested retirement allowance commences.

(6) A member not in service shall not be eligible to participate in DROP.

(d) *Ordinary disability retirement.*

(1) Any vested member of the Plan who becomes permanently and totally

incapacitated for further performance of duty with the city from a cause other than the performance of duty shall be eligible for an ordinary disability retirement.

(2) A member shall be deemed disabled for the purposes of this section if they are permanently and totally unable to engage in any useful and efficient service within the city workforce due to a physical or mental impairment.

(3) No member may receive an ordinary disability retirement on the basis of a pre-existing medical condition, unless the disability would have occurred regardless of that pre-existing condition. The board, as part of the disability review process, shall determine whether a vacant position exists within the city's workforce, consistent with the member's training, skill and medical limitations. If the member is capable of performing any such vacant position and the member refuses the assignment, that refusal shall be grounds for denial of an ordinary disability retirement. Nothing in this section shall require the city to create a job where none presently exists or to accept an employee who lacks the training or skills necessary to perform any such vacant position.

(4) Benefits under this section shall commence on the date disability is determined to exist by the board and shall continue for the life of the member. Benefits shall be paid monthly and the member shall not be eligible for a return of accumulated contributions or for any survivorship or other payment option provided under this Plan.

(5) The procedure for determining disability shall be as set forth in this Plan for the determination of service-incurred disability.

(6) The board of trustees shall have the continuing right to require disabled members to submit to a medical examination when the board has reason to believe that the disabled member is committing a fraud on the fund.

(7) Benefits payable under this section shall be the greater of 90 percent of the product of the benefit multiplier in effect at the time the service is earned multiplied by the number of years of credited service; or 30 percent of the member's average final compensation.

(8) Upon finding that a member is no longer disabled as defined in this Plan, ordinary disability benefits shall cease, and the member shall be eligible for a regular service retirement as if he/she had retired on the date his/her disability retirement benefits commenced.

(9) A DROP member shall not be entitled to receive an ordinary disability retirement.

(e) *Accidental disability retirement—Job injury.*

(1) A member shall be disabled under the terms of this section if the member has suffered an injury or illness arising out of performance of service for the city and which renders the member permanently and totally disabled for useful and efficient service with the city.

(2) A member shall be deemed permanently and totally disabled when he or she is totally unable to engage in any useful and efficient service within the city due to a physical or mental impairment which is the natural and proximate result of an accident, injury or illness which occurred while in the actual performance of duty; provided, however, that said accident was without gross negligence on the part of the member.

(3) A member shall be eligible for an accidental disability retirement from the date of entry into the Plan. Application for disability retirement shall be made on a form prescribed by the board of trustees. The member shall execute such medical releases as are necessary to permit the board to review the medical

records needed to determine the question of disability and to discuss said records at a public meeting. Upon receipt of an application for a disability, the board shall refer the application to its physician for review. The applicant for a disability shall be required to submit to such medical examinations as the board appointed physician shall deem necessary. The board appointed physician, and any referring specialists, shall report their findings to the board. The report shall include a determination, to the extent reasonably possible, of the origin of the disability, whether the disability is permanent and whether the disability is total. In making those determinations, the physician(s) shall be bound by the definition of disability set forth in this Plan.

(4) Upon receipt of the report of the board's physician(s), the board of trustees shall schedule a public hearing at which time the board shall review all medical reports, together with such documentary evidence as the applicant may wish to submit. The board shall conduct a preliminary determination as to whether the member is permanently and totally disabled based upon the written documentation presented. If the board does not grant the application based on the written documentation, it shall inform the applicant in writing of the reasons for the denial of the application. The member may, within 30 days of receipt of the board's preliminary denial, request a full evidentiary hearing before the board. Said hearing will be conducted consistent with the principles of due process and the rules of evidence generally applicable to administrative proceedings shall apply. The board shall have the power to issue subpoenas compelling the attendance of witnesses. At said hearing, the applicant may present such oral and written evidence as the applicant deems necessary to establish its burden of proof. The board may appoint special counsel as an advocate to cross-examine witnesses and to offer argument in opposition to the application. The attorney for the board shall not serve both as advocate and as advisor to the board in the same proceeding. The applicant and the board shall have the right to examine and cross-examine all witnesses. The decision of the board shall be based solely upon the evidence presented and the law applicable to this Plan. Following the conclusion of the hearing, the board shall render an opinion in writing setting forth the reasons for the grant or denial of the benefit.

(5) The board may prescribe rules of procedure to implement the provisions of this Plan relating to the conduct of disability hearings.

(6) No applicant for an accidental disability retirement may receive benefits under this section if the accident, injury or illness is shown to have occurred due to the gross negligence on the part of the member. The term "gross negligence" shall be defined as willful, wanton or malicious conduct on the part of the member demonstrating a total disregard for human life, safety and property.

(7) Except for disabilities arising from the causes outlined in subsection (f), a member who is granted accidental disability retirement shall receive a benefit equal to 66⅔ percent of the member's average final compensation or 66⅔ of the member's compensation in the year immediately preceding the member's disability, whichever is greater. The benefit shall be paid yearly, in monthly installments, for life of the member. Members receiving a benefit under this section shall not be eligible for a return of contribution nor for optional allowances provided in this Plan under subsections (h) and (i).

(8) Upon the death of a member who has received an accidental disability the spouse of the member who was designated by the member on the date of retirement as said member's spouse shall receive

payment of an amount equal to 40 percent of the member's monthly retirement allowance during the lifetime of the spouse.

(9) The board of trustees shall have the continuing right to require disabled members to submit to a medical examination when the board has reason to believe that the disabled member is no longer entitled to receive benefits from the fund. If the examination reveals the member is no longer entitled to receive disability benefits, the benefits shall cease and, if vested, the member will be eligible for a regular service retirement as if he/she had retired on the date his/her disability retirement benefits commenced. The board has discretion to exercise this power as the circumstances warrant.

(10) Any benefits received from this Plan shall be reduced by the amount of workers' compensation indemnity benefits received by the member to the extent that the sum of the worker's compensation benefits and the benefits received under this Plan exceeds the average monthly compensation of the member at the time of disability. The board shall, by uniform rule, prescribe a procedure for treatment of lump sum workers' compensation indemnity payments as if they had been received on a monthly basis.

(f) *Service-incurred disability retirement—Heart disease, hypertension, tuberculosis.*

(1) Any member who becomes totally and permanently incapacitated for duty as a result of heart disease, hypertension or tuberculosis, shall be presumed to have a service-incurred disability in the line of duty, unless a physical examination upon entering the plan revealed that such condition existed at that time or competent substantial evidence determines that the injury is not the result of a workplace injury. Such person may be eligible for a service-incurred disability provided that a physician retained by the board, after a medical examination of such member, certifies that such member is totally incapacitated for duty. Such person shall receive benefits equal to those paid for an ordinary disability, with a minimum benefit of 40 percent of average final compensation. Upon the death of a member who has received a service-incurred disability retirement no future pension benefits will be due to any beneficiary.

(2) A DROP participant shall not be entitled to receive a service incurred disability retirement.

(g) *Ordinary death benefit; post-retirement death benefits.*

(1) If a member in service who has completed three or more years of creditable service, whether or not the member is eligible for normal or early retirement, dies from a nonduty related cause, a lump sum benefit equal to 50 percent of the member's earnable compensation for the year immediately preceding death shall be paid, together with the return of the member's accumulated contributions plus interest. If the member has completed less than three years of credited service at the time of death, there shall be a return of contributions with interest only. The benefit shall be paid to any person nominated in writing by the member. In the absence of a written nomination, or if the person nominated is deceased or cannot otherwise be located, the member's estate shall be deemed the nominated beneficiary.

(2) A member in service on October 1, 2010 who is eligible for any form of early or normal retirement under the terms of this Plan dies prior to retirement from a nonduty related cause, the member shall be treated as if he or she had retired on the date preceding death. The member's spouse shall have the option to receive:

a. Forty percent of the member's monthly retirement allowance which would have been payable at normal retirement date, without actuarial

reduction together with 50 percent of the member's compensation in the year immediately preceding the member's death; and

b. In the event the monthly retirement allowance provided for in subsection a. is chosen, and the member has served as city manager, assistant city manager, city clerk, assistant city clerk, executive secretary of the civil service board, city physician, city attorney, assistant director of the law department, or as director or assistant director of any department or office established by the City Charter, or by ordinance established by the City Charter, for a combined period of at least three years prior to May 23, 1985, an additional one percent of the member's final average final compensation multiplied by the number of years of service in that position, up to a maximum of ten years shall be paid to the surviving spouse.

c. A return of the member's accumulated contributions, with accumulated interest together with 50 percent of the member's compensation in the year immediately preceding the member's death. This benefit is payable on behalf of any member, whether or not there is a surviving spouse. In the absence of a surviving spouse, the benefit will be paid to the person designated in writing to the board by the member, or if no such designation exists or the designated beneficiary has predeceased the member, then the benefit will be payable to the member's estate; or, in the case of a surviving spouse.

(3) The payments under subsections a. and b. shall be paid yearly in monthly installments.

(4) If a retired member dies prior to receiving 12 monthly retirement payments and prior to the effective date of any optional allowance permitted by this Plan, there shall be a benefit payable in a lump sum equal to the unpaid difference of 12 monthly payments. This benefit may be paid to any person nominated in writing by the member. In the absence of a nomination, or if the person nominated has died or is otherwise unavailable, the member's estate shall be deemed the nominated beneficiary.

(5) A member in service who is eligible for any form of early or normal retirement under the terms of this Plan dies prior to retirement and on or after October 1, 2010 from a nonduty related cause, the member shall be treated as if he or she had retired on the date preceding death. If such member is married at the time of death and has not elected an optional allowance in accordance with subsection (j), the member will be presumed to have elected Option 6c, providing for payment of 40 percent of the member's monthly retirement allowance to the member's spouse during the lifetime of such spouse.

(h) *Service-incurred death benefit.* If a member in service dies from a cause arising in the line of duty, other than the gross negligence of the member, there shall be a service-incurred death benefit equal to one-half of the member's average final compensation, which shall be paid yearly in monthly installments, together with the member's accumulated contributions plus interest, which shall be payable in a single sum. This benefit shall only be paid to the following persons in the order set forth below:

(1) To the spouse of the member until the death of the spouse;

(2) If there is no spouse or if the spouse dies before the youngest child of the deceased member has attained the age of 18, then to the children of the member under the age of 18 in equal shares. As each child

reaches the age of 18, the shares of the remaining children shall be adjusted accordingly;

(3) If there are no spouse or children under the age of 18 years living at the time of the member's death, then payment may be made to the dependent father or dependent mother for life. The board shall determine, by uniform rule, proof necessary to establish dependency. If both the dependent father and mother are living, the benefit shall be shared equally. Upon the death of one, the living dependent parent shall receive the entire benefit. If there is no spouse, dependent child or dependent parent living at t time of the member's death, the member's estate shall receive an amount equal to 50 percent of the member's compensation for the year immediately preceding the member's death, together with a return of accumulated contributions plus interest.

(i) *Return of contributions.*

(1) If a member ceases to be an employee, a member may demand a return of accumulated contributions. Receipt of said contributions shall constitute a full discharge of all rights under the Plan and any creditable service is waived.

(2) If a member has been granted a retirement benefit, the member shall not be eligible to receive accumulated contributions unless provided for as an optional allowance under the terms of this Plan or any other prior Plan of the city.

(j) *Normal form of benefit and optional allowances.*

(1) Effective September 30, 2010, for members who retire on or after October 1, 2010, the normal form of benefit shall be a life annuity. A member may receive payment of retirement benefits under the Plan in accordance with the options set forth in this section, that are actuarially equivalent to the normal form of benefit. The board, by rule, shall prescribe the method for selecting payment options consistent with the provisions of this section.

(2) The options permitted under the plan are:

Option 2: Equal payment survivor annuity. A member may receive a reduced retirement allowance throughout his or her life with an equal sum being paid to the member's designated beneficiary at the death of the member. For members who retire before October 1, 2010 and choose this option for a surviving spouse, the reduction shall be ten percent of the member's benefit; and if any person other than a surviving spouse is chosen as the beneficiary, the reduction shall be based on the actuarial equivalent of the normal form of benefit. For members who retire on or after October 1, 2010, the reduction shall be based on the actuarially equivalent sum.

Option 3: One-half payment survivor option. A member may receive a reduced retirement allowance payable for the life of the member with one-half of the member's benefit being paid to a designated beneficiary at the death of the member. For members who retire before October 1, 2010 and choose this option for a surviving spouse, the reduction shall be two percent of the member's benefit; and if any person other than a surviving spouse is chosen as the beneficiary, the reduction shall be based on the actuarial equivalent of the normal form of benefit. For members who retire on or after October 1, 2010, the reduction shall be based on the actuarially equivalent sum.

Option 6a: A member may, in lieu of any other benefit from this Plan, receive a return of contributions, excluding amounts picked up from the member's earnable compensation and credited to the COLA fund between June 23, 1985 and September 30, 1993. Under this option, the member shall also receive a monthly service allowance equal to one-half of the

amount to which the member would have been entitled under this plan. This option has no survivorship benefit.

Option 6b: Life annuity. A member who retires on or before October 1, 2010 may receive the normal monthly service retirement allowance plus an additional five percent payable for the life of the member, with no survivorship benefit. The payment of this benefit shall be guaranteed for at least one year.

Option 6c: Surviving spouse annuity. A member who retires before October 1, 2010 may receive an unreduced retirement payment through the life of the member and upon the member's death the surviving spouse shall receive forty percent of the member's retirement allowance payable during the lifetime of the spouse. Such a member who desires to leave a greater survivorship percentage to a surviving spouse may elect Options 2 or 3. A member who retires on or after October 1, 2010 may elect to receive an actuarially reduced retirement payment for the life of the member and upon the member's death the surviving spouse shall receive forty percent of the member's retirement allowance payable during the lifetime of the spouse.

(k) *Change in beneficiary.* Any member who elects a survivorship option for a spouse pursuant to subsection (1), may designate a new spousal beneficiary in accordance with procedures established by the board; provided, that an actuarial valuation will be made following such election, and the benefit for the retiree will be recalculated so that it is the actuarial equivalent of the benefit payable to the original spouse. It is intended that the Plan will pay only one survivor benefit for any member of the Plan and will not incur an increase in benefit costs by reason of a change in designated beneficiary.

(l) *Deferred retirement option program.* Effective September 19, 2022, the DROP of the retirement plan shall be available for all members of the plan and shall consist of a FORWARD DROP and a BACKDROP. Any member who has reached normal retirement age shall be eligible to participate in the DROP.

(1) Election to participate. Upon election of participation in the DROP, by using forms and procedures as prescribed by the board of trustees, a member's creditable service, accrued benefits, and compensation calculation shall be frozen and shall be based on the member's average final compensation as the basis of calculating the DROP payment. Upon commencement of participation in the DROP, the member's contribution and the city contribution to the retirement plan for that member shall cease as the member will be earning no further service credit. The member shall not acquire additional pension credit for the purposes of the pension plan but may continue city employment for up to a maximum of 84 months.

(2) Effective September 19, 2022, notwithstanding any provisions to the contrary in this ordinance, the maximum period of participation in the DROP shall be 84 months for all members of the plan. Once the maximum participation has been achieved, the participant must terminate employment. The backdrop option shall not replace the DROP program. All members of the plan who attain normal retirement eligibility shall be eligible for the DROP as amended, and any member of the plan who chooses not to enter the DROP shall be eligible for the backdrop.

(3) Creation of individual account. For each general employee electing participation in the DROP, an individual account shall be created.

(4) Earnings on DROP account. The board of trustees of the retirement plan shall establish, by administrative rule, a series of investment vehicles which may be chosen by participants in the DROP. Any losses incurred on account of the option selected by the participant shall not be

made up by the city or the GESE trust fund, but any such loss shall be borne by the participant only. Upon participation in the DROP, the member shall make a selection of the earnings program on forms provided by the board. All interest shall be credited to the member's DROP account.

(5) Distribution of DROP benefits. Upon conclusion of a period of participation in the DROP not to exceed the maximum set forth in subsection (2), the participant shall terminate employment. Upon termination of employment, a participant may receive payment from the DROP account in the following manner:

a. Lump sum distribution;

b. Periodic payments;

c. Rollover of the balance to another qualified retirement plan, IRA, or an Internal Revenue Code Section 457 Plan; or

d. An annuity.

A participant may defer payment until the latest date authorized by Section 401(a)(9) of the Internal Revenue Code.

(6) Drop participation shall not affect any other death or disability benefit provided to a member under federal law, state law, city ordinance, or any rights or benefits under any applicable collective bargaining agreement.

(7) If a DROP participant dies before the DROP account balances are paid out in full, the person(s) designated by such DROP participant shall receive such DROP account balances in accordance with the DROP participant election in effect at the time of death.

(8) Any employee who enters into a DROP agreement shall be bound by the terms and conditions of that agreement.

(9) Forward DROP. The date of entry into the FORWARD DROP shall be the beginning of a pay period. Payment shall be made by the retirement plan into the participant's DROP account in an amount equal to the regular monthly retirement benefit which the participant would have received had the participant separated from service and commenced the receipt of benefits from the plan. The amount of the monthly benefit shall be determined based on the creditable service, average final compensation, and retirement option selected in accordance with this section. Upon conclusion of a period of participation in the DROP not to exceed the maximum set forth in subsection (2), the participant shall terminate employment with the city.

Election of a FORWARD Drop Program precludes participation in a BACDROP program.

(10) BACDROP. A general employee may elect to BACDROP to a date no further back than the date of the member's retirement eligibility date. The BACDROP period must be in 12-month increments, beginning at the start of a pay period, not to exceed 12 months. Participation in the BACDROP does not preclude participation in the FORWARD Drop program.

The benefits for purpose of the BACDROP will then be actuarially calculated to be the equivalent to the benefit earned at the date of retirement. Said calculation will consist of the present value of benefits being equal to the actuarially reduced benefit, plus a lump sum with interest, as determined by the retirement plan's actuary. Participant contributions will not be returned for the period of time covered by the BACDROP program.

The lump sum as calculated by the retirement plan's actuary will be based on the assumed investment return of the fund without discount for mortality and deposited into the newly created DROP account.

(11) DROP incentive program. Any member who is a DROP participant as of October 1, 2009, may elect to participate in the

DROP incentive program by completing the necessary election documentation no later than October 15, 2009. Effective October 22, 2009 any member in DROP or eligible to retire, may participate in the extended DROP incentive program by completing the necessary election documentation no later than November 6, 2009. Participation in the DROP incentive program and the extended DROP incentive program is as follows:

a. The DROP incentive program or extended DROP incentive program participant may, upon separating city employment, elect to either receive:

1. A lump sum in the amount of $25,000.00, or

2. A lump sum in the amount of $7,200.00 and receive a 100 percent subsidy of insurance for two years from date of separation. The insurance shall be based on an HMO plan tier of employee plus one.

(12) Reserved.

(13) Reserved.

(14) BACKDROP option. A backdrop benefit option shall be implemented on January 1, 2013. Members eligible for the DROP and who choose not to enter the DROP remain eligible for the BACKDROP.

a. An eligible employee who elects the backdrop option shall receive a monthly benefit payable on the employee's actual retirement date (date of retirement and separation from city employment) based on the benefit the employee would have received if he/she had left city employment and retired on an earlier date after attaining normal retirement eligibility (the "backdrop date"). In addition, an eligible employee who elects the backdrop option will receive a lump sum payment equal to the accumulation of monthly retirement benefit payments he/she would have received during the period following the backdrop date through the actual retirement date ("backdrop period"), plus interest at the rate of three percent per year, compounded annually. An eligible employee may elect a minimum backdrop period of one year and maximum backdrop period of up to seven years. An eligible employee who elects the backdrop option must select the normal form of benefit or an optional form of benefit in accordance with subsection 40-255(j) at the time of electing the backdrop option. The employee's monthly benefit as well as the lump sum payment under the backdrop option is based on the form of benefit selected.

b. Employees are eligible to elect the backdrop option after completing one year of creditable service following the normal retirement date. A backdrop election must be made within ten years after becoming eligible for normal retirement. The maximum backdrop period is seven years. Eligible employees who wish to elect the backdrop option must provide written notification to the department director and the department of human resources at least eight months prior to the employee's retirement date; provided a lesser notice period may be approved by the city manager due to special circumstances. Bargaining unit members will be eligible to revoke their backdrop election one time, but within one month of their election. However, if a bargaining unit employee is granted a lesser notice period by the city manager due to special circumstances, the employee will not be eligible for the one-time backdrop election revocation. Employees are not required to elect the backdrop option.

c. All or a portion of the lump sum payment under the backdrop option may be rolled over to an eligible retirement plan or IRA in accordance with federal law.

d. If the backdrop option is ever terminated, for any reason, the rights of all persons then in the DROP shall not be diminished or impaired. Additionally, if the backdrop is ever terminated, all persons who are then eligible for the backdrop option will still be eligible for a seven year backdrop. The board of trustees of shall develop operational rules for the implementation of this provision.

(m) *Reemployment of retirees.* Except as expressly provided herein, should any retiree be reemployed by the city into a regular, permanent, full-time employment position as defined in section 40-241, the benefits payable under this Plan shall be suspended during the period of reemployment. Upon termination of the period of reemployment with the city, benefits shall be automatically restored, as provided for in this Plan, on the first day of the month following the termination of reemployment. No additional vesting period shall be required. Effective November 1, 2002, this section shall not apply to city commission and mayoral assistants and secretarial staff position, as described in Civil Service Rule 1, Sec. 1.2(a), authorized in the city budget for the offices of the mayor and members of the city commission, or to any employment other than with the city. Employees in the above job classifications may opt to continue collecting their pensions during their reemployment, but they may not accrue any further pension service credit. This section shall not apply to retirees who enter into legal agreement with the city either through written contracts or otherwise for services not defined as full-time, permanent employees of the city.

(n) *Limitation on benefits.* Effective September 30, 2010, for members who retire or separate from employment on or after October 1, 2010, member retirement allowances shall not exceed the lesser of 100 percent of the member's average final compensation or an annual retirement allowance of $100,000.00 as of retirement or DROP entry based on the normal form of benefit in effect on the date of retirement; provided, in no event shall the benefit limitation provided in this subsection be less than the lesser of 100 percent of the member's average final compensation or the member's accrued benefit on September 30, 2010, based on the normal form of benefit in effect on that date. Effective September 30, 2012, member retirement allowances shall not exceed an annual retirement allowance of $80,000.00 as of retirement or DROP entry based on the normal form of benefit in effect on the date of retirement; provided, any employee who has an accrued benefit in excess of $80,000.00 annually on the effective date shall retain that benefit, but shall not accrue any additional benefits after that date. Effective on or after October 1, 2021, for members retiring or entering DROP from that date on, member retirement allowance shall not exceed the lesser of 100 percent of the member's average final compensation or an annual allowance of $120,000.00 as of retirement of DROP entry based on the normal form of benefit in effect on the date of retirement for members eligible to retire as of October 1, 2012. Effective October 1, 2022, for members retiring or entering DROP from that date on, member retirement allowance shall not exceed the lesser of 100 percent of the member's average final compensation or $100,000.00 as of retirement or DROP entry based on the normal form of benefit in effect on the date of retirement for members who were not eligible to retire as of October 1, 2012. However, any member who has an accrued benefit in excess of these annual allowance caps shall retain that benefit but not accrue any additional benefits after that date.

(Ord. No. 12111, § 1, 9-25-01; Ord. No. 12185, § 2, 2-14-02; Ord. No. 12202, § 2, 3-27-02; Ord. No. 12249, § 1, 6-27-02; Ord. No. 12753, § 1, 1-26-06; Ord. No. 13099, § 1, 9-24-09; Ord. No. 13109, § 1, 10-22-09; Ord. No. 13154, § 1, 4-22-10; Ord. No. 13192, § 1, 8-31-10; Ord. No. 13203, § 2, 9-27-10; Ord. No. 13343, § 1, 9-27-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13887, § 2, 12-12-19; Ord. No. 14053, § 2, 3-10-22; Ord. No. 14161, § 2, 4-13-23; Ord. No. 14332, § 2, 11-21-24)

Sec. 40-256. Cost-of-living allowance.

A cost of living (COLA) allowance shall be paid to beneficiaries of the Plan as follows:

(1) Every October 1, there shall be calculated a four percent COLA benefit equal to

four percent of the benefit payable at that time. There shall be a minimum COLA benefit of $54.00 per year and a maximum COLA benefit increase of $400.00 per year provided the retiree's first anniversary of retirement has been reached.

(2) Retirees exercising the return of contributions and reduced pension option shall receive a minimum COLA benefit of $27.00 per year and a maximum COLA benefit of $200.00 per year, provided the retiree's first anniversary of retirement has been reached.

(3) *COLA participation for DROP members.* Eligibility for payments for cost of living adjustment (COLA) shall commence when a member has reached the first anniversary of retirement. When that occurs, the COLA shall be paid into the member's DROP account in monthly installments for the Forward DROP until a member has actually separated from employment from the city and in lump sum to the member's DROP account for the BACDROP member upon separation from employment. For the purpose of complying with Section H(2)(g) of the Second Amended Final Judgment in Gates, the employee's "Date of Retirement" shall be the date Forward DROP is entered or the date to which the member elects to BACDROP.

(4) The board shall administer COLA payments and COLA assets shall be deemed an integral part of the trust for which separate accounting is not required.

(Ord. No. 12111, § 1, 9-25-01; Ord. No. 12202, § 2, 3-27-02)

Sec. 40-257. Adjustment in benefits.

Members who belonged to the Miami City General Employees' Retirement Plan, presently known as the City of Miami General Employees' and Sanitation Employees' Retirement Trust, shall continue to be subject to the following adjustments in benefits:

Any member who, on or before May 23, 1985, had a vested right to receive an additional retirement allowance under the provisions of the Miami City General Employees' Retirement Plan, presently known as the City of Miami General Employees' and Sanitation Employees Retirement Trust, which benefit was previously set forth in former section 40-235(A)(3)(a) of this Code (repealed June 13, 1985), shall be entitled to such additional benefit upon service retirement, early service retirement or "rule of 75" or "rule of 70" retirement pursuant to this division. A member shall be deemed to have a vested right if said member, on or before May 23, 1985, was serving in any of the capacities enumerated in former section 40-235(A)(3)(a) and thereafter continued to serve in such capacity uninterruptedly for a total combined period of not less than three years. Those members having such vested right may only continue to earn credit for such allowance up to a combined period of ten years' service.

(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-258. Assignments and loans prohibited.

The present or future right of a person to moneys in the fund or to a retirement allowance, an optional allowance, a death benefit, the return of contributions, or any other right accrued or accruing to any person under the provisions of this division, shall be unassignable, and shall not be subject to execution, garnishment, attachment, the operation of bankruptcy or insolvency law or any other process of law whatsoever, except with respect to alimony, child support, or medical payments to a former spouse. Loans to participants are prohibited.

(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-259. Protection against fraud.

Whoever, with intent to deceive, shall make any statements or reports required under this division which are untrue or shall falsify or permit to be falsified any record of this Plan, shall be punished as provided in section 1-13 of this Code.

(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-260. Errors.

Should any change or error in Plan records be discovered or result in any member or beneficiary receiving from the Plan more or less than he or she would have been entitled to receive had the records been correct, the board shall have the power to correct such error and, as far as possible, adjust the payments in such a manner that the actuarial equivalent of the benefit to which such member or beneficiary was correctly entitled shall be paid.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-261. Bonding; fiduciary insurance.

(a) Prior to exercising custody or control of any funds or property of the Plan, every fiduciary of the Plan and every person who handles funds or other property of the Plan shall be bonded. Such bond shall provide protection to the Plan against loss by reason of acts of fraud or dishonesty on the part of the bonded individual, directly or through connivance with others.

(b) The board shall purchase insurance for the Plan and for the members of the board of trustees to cover liability or losses occurring by reason of an act or omission of a fiduciary, providing, however, that such insurance permits recourse by the insurer against the fiduciary in case of a breach of a fiduciary obligation by such fiduciary.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-262. Compliance with the Internal Revenue Code.

(a) It is the intention of the city and of the board that the Plan remain at all times a qualified Plan, as that term is defined under the Internal Revenue Code.

(b) No member's annual benefit may exceed the amounts permitted under Section 415 of the Internal Revenue Code as amended, including cost of living adjustments under Section 415 (d).

(c) Compensation in excess of limitations set forth in section 401(a)(17) of the Internal Revenue Code shall be disregarded. The limitation on compensation for an eligible employee shall not be less than the amount which was allowed to be taken into account hereunder as in effect on July 1, 1993. The Term "eligible employee" means an individual who was a member before the first plan year beginning on or after January 1, 1996.

(d) In no event may a member's retirement benefit be delayed beyond the later of April 1st following the calendar year in which the member attains age 70½, or April 1st of the year following the calendar year in which the member retires.

When a distribution of the participant's entire interest is not made in a lump sum, the distribution will be made in one or more of the following ways: over the life of the participant; over the life of the participant and designated beneficiary; over a period certain not extending beyond the life expectancy of the participant; or over a period certain not extending beyond the joint life and last survivor expectancy of the participant and a designated beneficiary.

(e) If the distribution has commenced before the participant's death, the remaining interest will be distributed at least as rapidly as under the method of distribution being used as of the date of the participant's death.

The method of distribution, if the participant dies before distribution is commenced, must satisfy the following requirements:

(1) Any remaining portion of the participant's interest that is not payable to a beneficiary designated by the participant will be distributed within five years after the participant's death;

(2) Any portion of the participant's interest that is payable to a beneficiary designated by the participant will be distributed either: (i) within five years after the participant's death; or (ii) over the life of the beneficiary, or over a period certain not extending beyond the life expectancy of the beneficiary, commencing not later than the end of the calendar year following the calendar year in which the participant died (or, if a designated beneficiary is the participant's surviving spouse, commencing not later than the

end of the calendar year following the calendar year in which the participant would have attained age 70-½).

(f) This subsection applies to distributions made on or after January 1, 1993. Notwithstanding any provision of the plan to the contrary that would otherwise limit a distributee's election under this subsection, a distributee may elect, at the time and in the manner prescribed by the Plan administrator, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(1) For the purposes of this section and section 40-266 of this Plan, the following words and phrases shall have the meanings indicated:

a. "Eligible rollover distribution" is any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include:

1. Any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually), made for the life (or life expectancy) of the distributee, or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more;

2. Any distribution to the extent such distribution is required under Section 401(a)(9) of the Internal Revenue Code; and

3. The portion of any distribution that is not includable in gross income.

b. "Eligible retirement plan" is an individual retirement account described in Section 408(a) of the Internal Revenue Code, an individual retirement annuity described in Section 408(b) of the Internal Revenue Code, a qualified trust, an annuity plan described in Section 403(a) of the Internal Revenue Code, or an eligible defined compensation plan described in Section 457(b) of the Internal Revenue Code which is maintained by an eligible employer described in Section 457(e)(i)(A) of the Internal Revenue Code, or an annuity contract described in 403(b) of the Internal Revenue Code that accepts the distributee's eligible rollover distribution.

c. "Distributee" includes an employee or former employee. In addition, the employee's or former employee's surviving spouse is a distributee with regard to the interest of the spouse. Additionally, "distributee" includes a non-spouse beneficiary whose rollover options are limited to an individual retirement annuity.

d. "Direct rollover" is a payment by the Plan to the eligible Plan specified by the distributee.

(g) In the event of a mandatory distribution under this Plan in excess of $1,000.00 and the member does not elect to receive the distribution directly, then the board shall make a transfer to an individual retirement plan of the board's choosing and shall notify the members in writing of such transfer.
(Ord. No. 12111, § 1, 9-25-01; Ord. No. 12181, § 1, 1-24-02; Ord. No. 13679, § 1, 5-11-17)

Sec. 40-263. Distribution of marital interests in the plan; intervention in legal proceedings affecting the Plan.

(a) In the event that the board is served with a domestic relations order or other legal process purporting to require the payment of any portion of a member's benefit to another person as a result of a dissolution of marriage, the board shall cause such order to be reviewed to determine compliance with the provisions of the Plan.

(b) The board of trustees shall be authorized to intervene in any such dissolution of marriage proceeding to ensure that such domestic rela-

tions order is otherwise consistent with the distribution of an interest in a public employees retirement plan under state law.

(c) Any cost associated with the modification or correction of such domestic relations orders shall be the responsibility of the Plan member.

(d) The board shall be authorized to seek intervention as provided by law in any legal proceedings which, in the opinion of the board, affects the substantial interests of the Plan.

(e) The parties may consent to the entry of an order distributing benefits in a manner not otherwise inconsistent with the terms of the Plan.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-264. General conditions.

(a) The City of Miami General Employees' and Sanitation Employees' Retirement Trust may sue or be sued as an entity.

(b) The city commission shall have continuing power to amend or supplement this division, but no amendment shall be adopted which will reduce the then accrued benefits of members or beneficiaries covered by accumulated reserves, which reserves shall constitute a trust fund for the payment of such benefits.

(c) There shall be no reversion of trust funds or a return of employer contributions unless all liabilities have been satisfied.

(d) Upon plan termination or a complete discontinuance of contributions, a member's interest is non-forfeitable.
(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13679, § 1, 5-11-17)

Sec. 40-265. Excess benefit plan.

(a) The excess retirement benefits above the limits permitted by the Internal Revenue Code shall be as follows:

(1) Funded from the City of Miami General Fund; and

(2) Paid annually concurrently with the city's annual contribution to normal pension costs, which shall cause the city to realize a reduction in normal pension costs in the same amount; and

(3) Be deposited in separate accounts for each respective plan to receive the city's excess retirement benefit contributions, which accounts shall be separate and apart from the accounts established to receive the city's normal pension contributions for each retirement trust;

(b) The board of trustees for General Employees' and Sanitation Employees' (GESE) is appointed as the committee to administer the Excess Benefit for the GESE retirees.

(c) The actuaries for the GESE Board of Trustees shall calculate the amounts necessary to fund the defined benefit plans giving effect to the reductions caused by implementation of Section 415 of the Internal Revenue Code.

(d) The excess benefits shall be paid to each eligible member of the Plans on a monthly basis in an amount equal to the difference between the allowable pension to be paid under the Internal Revenue Code and the amount of the defined benefit granted eligible members pursuant to the provisions set forth in the Code.

(e) Should additional retirements occur during the year where the eligible member's retirement benefit exceeds the Section 415 limits, the GESE Board of Trustees shall calculate the additional excess benefit amount required for the remainder of the fiscal year and should such amount exceed the amount available from the funds provided for the fiscal year, the GESE board of trustees shall notify the city of the additional funds required.

(f) Upon the city's receipt of notice of the additional funds required, the city shall forward the additional funds required. The requirement for additional funds paid by the city to fund the Excess Benefit Plan shall be reflected as a reduction in the city's annual contribution of normal pension costs for the following year.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-266. Transfer of accumulated leave.

(a) Members eligible to receive accumulated sick leave, accumulated vacation leave or any other accumulated leave payable upon retirement or separation (including DROP) may elect, not later than the year prior to retirement to have the leave transferred to the Plan in accordance with the respective collective-bargaining-agreement, if applicable. Members on whose behalf leave has been transferred may elect one of the following options within 30 days of retirement/separation. Members failing to elect a distribution option within 30 days of retirement/separation will be deemed to have elected Option 1 below:

(1) Receive a lump sum equal to the transferred leave balance, or

(2) Transfer the entire amount of the transferred leave balance directly to any eligible retirement plan, or

(3) Purchase additional service credit as may permitted by the Code (including subsection 40-254(6), purchase of additional service upon retirement). If the leave balance exceeds the cost of the service credit purchased, the balance shall be paid to the member in a lump sum.

(b) Members who fail to elect a transfer in the year prior to retirement or other separation will receive payment in a lump sum at time of separation with all attendant tax consequences.

(c) If a member on whose behalf the city makes a transferred leave balance to the Plan dies after retirement or other separation, but before making an election, as provided, or after making an election but before any distribution is made, the election option shall be void. In such an event, any person who would have received a death benefit had the member died in service immediately prior to the date of retirement or other separation, shall be entitled to receive an amount equal to the transferred leave balance in a lump sum. In the case of a surviving spouse or former spouse, an election may be made to transfer the leave balance to an eligible retirement plan in lieu of the lump sum payment. Failure to make such an election by the surviving spouse or former spouse within 60 days of the member's death, will be deemed an election to receive a lump sum payment.

(d) The board, by rule, shall prescribe the method for implementing the provisions of this section.

(Ord. No. 12111, § 1, 9-25-01; Ord. No. 13154, § 1, 4-22-10)

Secs. 40-267—40-290. Reserved.

DIVISION 4. CITY OF MIAMI ELECTED OFFICERS' RETIREMENT TRUST

Sec. 40-291. Definitions.

Unless a different meaning is plainly required by the context, the following words and phrases as used in this division shall have the following meaning:

Contribution shall mean the sum of all amounts contributed by the city on behalf of an elected officer of the city.

Beneficiary shall mean any person receiving a retirement allowance or other benefit from the retirement system for elected officials.

Benefit shall mean a retirement allowance or other payment provided by the retirement system.

Compensation shall mean salary and emoluments paid to the elected officer.

Elected officer shall mean the mayor or a commissioner as elected in accordance with section 4(b) of the Charter of the city as it now exists or as it may hereafter be amended.

Elected officers absent from service shall mean any member ceasing to be an elected officer during any term of office wherein said elected officer entered or enters and served or serves in the armed forces of the United States of America during any period which the United States of America was or shall be engaged in war and who thereafter was or shall be appointed or again elected to the same elected office prior to discharge from such service in the armed forces.

Pension shall mean a series of periodic payments for the life of the elected officer.

Retirement shall mean an individual who no longer serves in the capacity of an elected officer.

Service shall mean years served in the capacity of an elected officer.

Trustee shall be the director of finance.
(Ord. No. 11137, § 1, 4-14-94; Ord. No. 11191, § 1, 10-27-94; Code 1980, § 40-250; Ord. No. 11564, § 15, 10-28-97; Ord. No. 12274, § 1, 9-11-02)

Sec. 40-292. Retirement system established; purpose; name; effective date.

A retirement system is hereby established and placed under the administration and management of the trustee for the purpose of providing retirement benefits pursuant to the provisions of this division. The retirement system established herein shall be known as the "City of Miami elected officers' retirement trust" and shall be effective 30 days from the adoption of this ordinance.
(Ord. No. 11137, § 1, 4-14-94; Code 1980, § 40-251)

Sec. 40-293. Board of trustees.

(a) *Selection.* The trustee of this retirement system shall be the director of finance for the city.

(b) *Term of office.* The term of office for the trustee shall be the term during which he/she is the director of finance for the city.

(c) *Fiduciary responsibility.* The trustee shall be the named fiduciary of the retirement system. As named fiduciary, the trustee shall discharge his/her duties and responsibilities with the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims; and in accordance with ordinances and other applicable law, documents and other instruments governing the retirement system.
(Ord. No. 11137, § 1, 4-14-94; Code 1980, § 40-252)

Sec. 40-294. Trust fund.

(a) *Nature of trust.*

(1) The city elected officers' retirement system trust is an irrevocable trust. The trustee shall be the director of finance.

(2) The trustee shall be vested with full legal title to the city elected officers' retirement trust fund and shall hold the fund as an irrevocable trust to be applied from time to time in accordance with the provisions of this division. All payments made to the fund by the city and all assets whatsoever of the fund and the income thereof, without distinction between principal and income, shall be held by the trustee in a single trust fund. The trustee may, however, segregate or invest separately any portion of the fund.

(3) The trustee shall be the named fiduciaries of the fund. As named fiduciary, the trustee shall hold, manage, control and safeguard the fund solely in the interest of beneficiaries of the retirement system:

a. For the exclusive purpose of providing benefits to beneficiaries and defraying reasonable expenses of administering the retirement system;

b. With the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims;

c. By diversifying the investments of the fund so as to minimize the risk of losses, unless under the circumstances it is clearly prudent not to do so;

d. In accordance with ordinances and other applicable law, documents and other instruments governing the fund.

(4) The trustee's attorney shall be the city attorney. The trustee's actuary shall be the city's actuary.

(b) *Trust property.*

(1) Trust property shall consist of all cash, securities and other property, together with such other cash, securities and other property as the trustee may at any time hold or acquire from or on behalf of the city pursuant to this division, and the accruals thereto.

(2) The trustee may buy, sell, convert, redeem, exchange or otherwise dispose of trust property at any public or private sale without notice or advertisement, for cash or upon credit with or without security, without obligation on the part of any person dealing with the board to see the application of the process of or inquire into the validity, expedience or propriety of any such disposition, and may make, execute, acknowledge and deliver contracts, assignments, waivers or other instruments.

(3) The trustee shall have the authority to vote upon any stocks, bonds or securities of any corporation, association or trust and to give general or specific proxies and powers of attorney with or without power of substitution; to participate in mergers, reorganizations, recapitalizations, consolidations, and similar transactions with respect to such securities; to deposit such stock or other securities in any voting trust or any protective or like committee or with depositories designated by the board, subject to the approval of the commission; to amortize or fail to amortize any part or all of the premium or discount resulting from the acquisition or disposition of assets; and generally, to exercise any of the powers of an owner with respect to stocks, bonds or other investments comprising the fund which the board may deem to be in the best interest of the fund to exercise.

(c) *Investments.*

(1) Trust funds may be invested in:

a. Bonds, notes or other obligations of the United States or any of its agencies or those guaranteed by the United States or for which the credit of the United States is pledged for the payment of the principal and interest or dividends thereof; any of the foregoing may be in the form of commingled accounts as long as the guidelines of this paragraph are met;

b. Accounts and certificates of deposit in any bank or other financial institution incorporated under the laws of this state or any national bank organized under the laws of the United States and authorized to do business and situated in this state, to the extent that such certificates of deposit are secured by the deposit of securities of the United States government; any of the foregoing may be in the form of commingled accounts as long as the guidelines of this paragraph are met;

c. Notes secured by first mortgages on real property insured or guaranteed by the Federal Housing Administration or the Veterans' Administration;

d. Interest-bearing obligations with a fixed maturity of any corporation organized under the laws of the United States, any state or organized territory of the United States and the District of Columbia; provided that such obligations are rated by at least two nationally recognized rating services in any one of the four highest classifications approved by the comptroller of the currency for the investment of funds of national banks or, if only one nationally recognized rating service shall rate such obligations, such rating service must have rated such obliga-

tions in any one of the three highest classifications heretofore mentioned;

e. Venture capital, private placements and letter stocks, which may be in the form of commingled ownership;

f. Real estate, which may be in the form of commingled ownership.

(Ord. No. 11137, § 1, 4-14-94; Code 1980, § 40-253; Ord. No. 13676, § 2, 4-27-17)

Sec. 40-295. Contributions.

This shall be a noncontributory system. The city shall make such contributions so as to provide for an actuarial sound pension trust for the benefit of elected officers.

(Ord. No. 11137, § 1, 4-14-94; Code 1980, § 40-254)

Sec. 40-296. Applicable benefits.

(a) Certain elected officers, who were elected officers for a period of ten years or more and who no longer serves as elected officers shall be entitled during the remainder of their natural lives to a sum equal to one-half of their W-2 wages for the highest of the last three years of service of their term of office and a single sum death benefit fully vested at date of death. Upon vesting and each year thereafter of service as an elected officer, the retirement allowance shall be five percent for each year of service to a maximum of 100 percent of the highest W-2 wages.

(b) Elected officers in office or elected from October 1, 2001, until October 22, 2009, who were elected officers for a period of seven years or more and who no longer serve as elected officers of the City of Miami shall be entitled, upon reaching age 55, during the remainder of their natural lives to a sum equal to one-half of their W-2 wages for the highest of the last three years of service of their term of office and a single sum death benefit fully vested at date of death. Upon vesting and each year thereafter of service as an elected officer, the retirement allowance shall increase by five percent for each year of service to a maximum of 100 percent of the highest W-2 wages.

(c) Any person elected to the office of mayor or commissioner after October 22, 2009, shall not be eligible to receive the benefits outlined herein; except those elected officers currently holding office who have not vested, but who serve for seven years or more in the office they currently hold, irrespective of whether they served successive terms.

(d) Notwithstanding the above, for the position of the mayor, the base rate of pay for the mayor shall replace W-2 wages in subsection (b).

(e) In the event of death before retirement, the elected officer's beneficiary will receive a lump sum death benefit equal to the present value of the vested benefit accrued to date of death based on actuarial assumptions in effect for the valuation of liabilities in the year of death.

(Ord. No. 11137, § 1, 4-14-94; Ord. No. 11191, § 1, 10-27-94; Code 1980, § 40-255; Ord. No. 11564, § 15, 10-28-97; Ord. No. 12111, § 1, 9-25-01; Ord. No. 12274, § 1, 9-11-02; Ord. No. 12275, § 1, 9-11-02; Ord. No. 12764, § 1, 2-9-06; Ord. No. 13111, § 2, 10-22-09)

Editor's note—Ord. No. 13111, § 2, adopted Oct. 22, 2009, changed the title of § 40-296 from "Benefits" to "Applicable benefits." The historical notation has been preserved for reference purposes.

Sec. 40-297. Assignments prohibited.

The present or future right of a person to moneys in the fund or to a retirement allowance, or any other right accrued or accruing to any person under the provisions of this division, shall be unassignable and shall not be subject to execution, garnishment, attachment, the operation of bankruptcy or insolvency law or any other process of law whatsoever, except with respect to alimony, child support, or medical payments to a former spouse.

(Ord. No. 11137, § 1, 4-14-94; Code 1980, § 40-256)

Sec. 40-298. Bonding; fiduciary insurance.

Prior to exercising custody or control of any funds or property of the retirement system, the trustee of the retirement system shall be bonded.

Such bond shall provide protection to the retirement system against loss by reason of acts of fraud or dishonesty.
(Ord. No. 11137, § 1, 4-14-94; Code 1980, § 40-257)

Sec. 40-299. Elected officers' excess benefit plan.

(a) The excess retirement benefits above the limits permitted by the Internal Revenue Code shall be as follows:

(1) Funded from the City of Miami General Fund; and

(2) Paid annually; and

(3) Be deposited in a separate account to receive the city's excess retirement benefit contributions, such account shall be separate and apart from the account established to receive the city's normal pension contributions for the Elected Officers' Retirement Trust; and

(b) The city administration, shall select an administrator for the Elected Officers' Retirement Trust.

(c) The actuaries shall calculate the amounts necessary to fund the defined benefit plans giving the effect to the reductions caused by implementation of Section 415 of the Internal Revenue Code.

(d) The excess benefits shall be paid to each eligible member of the plan on a monthly basis in an amount equal to the difference between the allowable pension to be paid under the Internal Revenue Code and the amount of the defined benefit granted eligible members pursuant to the provisions set forth in the Code.

(e) Should additional retirements occur during the year where the eligible member's retirement benefit exceeds the Section 415 limits, the actuary shall calculate the additional excess benefit amount required for the remainder of the fiscal year and should such amount exceed the amount available from the funds provided for the fiscal year, the administrator shall notify the city of the additional funds required.

(f) Upon the city's receipt of notice of the additional funds required, the city shall forward the additional funds required.
(Ord. No. 12111, § 1, 9-25-01)

Sec. 40-300. Trust termination.

The trustee shall terminate the trust upon death of the final, eligible elected officer or payment of single-sum death benefit to the elected officer's beneficiary. Any remaining trust property consisting of either cash, securities, and other property, together with such other cash, securities and other property as the trustee may at any time hold or acquire from or on behalf of the city pursuant to this division, and the accruals thereto, shall be returned to the city upon termination of the trust.
(Ord. No. 13111, § 2, 10-22-09)

Secs. 40-301—40-320. Reserved.

DIVISION 5. PENSION STABILIZATION FUND FOR THE CITY OF MIAMI FIREFIGHTERS' AND POLICE OFFICERS' RETIREMENT TRUST

Sec. 40-321. Definitions.

Unless a different meaning is plainly required by the context, the following words and phrases as used in this trust document shall have the meanings set forth below:

Board or *the board of trustees* shall mean the board discussed in section 40-323.

City shall mean the City of Miami.

Member or *member in service* shall mean an employee for whom contributions to the retirement system are made as required by chapter 40, article IV, division 2, city firefighters' and police officers' retirement trust.

Retirement system shall mean the city firefighters' and police officers' retirement trust.

Trust shall mean the city firefighters' and police officers' retirement contribution stabilization fund trust.

Valuation payroll shall mean the covered payroll of members in service of the retirement system.
(Ord. No. 13037, § 2, 11-13-08)

Sec. 40-322. Purpose.

The purpose of the trust is to assist in stabilizing the city's annual contributions to the city firefighters' and police officers' retirement trust. All actions and interpretations of the board of trustees pursuant to this trust shall be done for and with the purpose of assisting with the stabilization of the city's annual contributions to the retirement system.
(Ord. No. 13037, § 2, 11-13-08)

Sec. 40-323. Board of trustees.

(a) *Composition.* The board of trustees of this trust shall be comprised of:

(1) The city manager;

(2) The chief financial officer; and

(3) The director or chief of employee relations.

(b) *Term of office.* The term of office for each trustee shall be as long as each individual is employed in his or her respective position with the city.

(c) *Fiduciary responsibility.* The board of trustees shall exercise its fiduciary responsibility in accordance with the law.

(d) *Conduct of business.*

(1) The city manager shall act as chair of the board of trustees.

(2) The affirmative votes of two trustees shall be necessary for any action taken by the board.

(3) The board of trustees shall meet at least quarterly.

(4) The city manager shall ensure that a record of all of proceedings of the board of trustees is maintained, which shall be open to public inspection in accordance with F.S. ch. 119. Such records shall reflect a complete account of the actions taken by the board.

(5) Subject to any limitation contained in this trust, the ordinance establishing this trust, and applicable trust law, the board may from time to time establish such rules and regulations as are necessary for efficient administration and management of the trust.

(6) The board of trustees or the city may purchase fiduciary insurance in order to provide protection to the trust against loss by reason of error or omission of the trustees.

(7) All expenses of administering this trust shall be paid by the city, not this trust.

(Ord. No. 13037, § 2, 11-13-08)

Sec. 40-324. Trust fund; investments.

(a) *Nature of the trust; fiduciary duties of trustees.*

(1) The board of trustees shall hold the trust to be applied in accordance with the provisions contained herein. All contributions made to the trust by the city and all assets whatsoever of the trust and any income derived therefrom, without distinction between principal and income, shall be held in a single fund. The board of trustees may, however, segregate or invest separately any portion of the trust.

(2) The board of trustees shall be the named fiduciary of the trust. As named fiduciary, the board shall hold, manage, control and safeguard the trust solely in the interest of assisting with the stabilization of the city's required contribution to the retirement system, as follows:

a. For the exclusive purpose of assisting with the stabilization of the city's required annual contributions to the retirement system;

b. With the care, skill, prudence, and diligence under the circumstances then prevailing that a prudent person acting in a like capacity and familiar with such matters would

use in the conduct of an enterprise of a like character and with like aims;

c. By diversifying the investments of the trust so as to minimize the risk of losses, unless under the circumstances it is clearly prudent not to do so;

d. In accordance with ordinances and other applicable law, documents and other instruments governing the trust.

e. The attorney for the board of trustees shall be the city attorney.

(b) *Trust property.*

(1) Trust property shall consist of all cash, securities and other property, together with such other cash, securities and other property as the board may at any time hold or acquire from the city as herein provided, and any income or interest derived therefrom.

(2) The board may buy, sell, convert, redeem, exchange, or otherwise dispose of trust property at any public or private sale without notice or advertisement, for cash or upon credit with or without security, without obligation on the part of any person dealing with the board to see the application of the process of or inquire into the validity, expedience or propriety of any such disposition, and may make, execute, acknowledge and deliver contracts, assignments, waivers, or other instruments.

(3) The board shall have the authority to vote upon any stocks, bonds, or securities of any corporation, association, or trust and to give general or specific proxies and powers of attorney with or without power of substitution; to participate in mergers, reorganizations, recapitalizations, consolidations, and similar transactions with respect to such securities; to deposit such stock or other securities in any voting trust or any protective or like committee or with depositories designated by the board; to amortize or fail to amortize any part or all of the premium or discount resulting from the acquisition or disposition of assets; and generally, to exercise any of the powers of an owner with respect to stocks, bonds, or other investments comprising the trust which the board may deem to be in the best interest of the trust to exercise.

(c) *Investments.* The board shall have the power to invest the assets of the trust in real or personal property, wherever situated. The board shall invest and manage investment assets in accordance with an investment policy adopted and periodically revised by the board. The investment policy shall comply with F.S. § 112.661, including providing for a custodian, investment managers, and independent investment consultant.
(Ord. No. 13037, § 2, 11-13-08)

Sec. 40-325. Contributions to the trust.

(a) Beginning October 1, 2008, any time the city's contributions to normal costs fall below 37 percent, the difference between the contributions to normal costs and 37 percent will be deposited into this trust, forthwith.

(b) Payments to this trust are not required for any fiscal year in which the funding levels of this trust are equal to ten percent of the actuarial value of assets of the retirement system.
(Ord. No. 13037, § 2, 11-13-08)

Sec. 40-326. Distributions from the trust.

Distribution shall be made from the trust only to the retirement system and solely as provided in this subsection. Trust property shall be distributed to the retirement system whenever the city's annual contributions to the retirement system exceed 37 percent of valuation payroll, unless the city chooses to pay the annual contributions above 37 percent, or any portion thereof, in any particular fiscal year. Distributions from the trust shall be made solely to supplement the city's contributions to the retirement system, and the amount of such distributions in any fiscal year shall not exceed the difference between 37 percent of valuation of payroll (or any amended

amount as provided herein,) and the actual annual required city contribution to the retirement System in excess of 37 percent of valuation of payroll, (or any amended amount as provided herein.) (For example, if in a particular fiscal year the city is required to pay 40 percent of valuation payroll to the retirement system, the city shall pay a minimum of 37 percent of valuation payroll, and a distribution in the amount of three percent of valuation payroll shall be made from the trust to the retirement system. If in that year the city chooses to pay 39 percent of valuation payroll, then a distribution in the amount of one percent of valuation payroll shall be made from the trust to the retirement system. If, however, in a particular fiscal year the city is required to pay 37 percent or less of valuation payroll, then no distribution shall be made from the trust to the retirement system, and the city shall pay that entire amount). In no event may the city receive a distribution from the trust except as provided herein. No trust property, or income or interest derived therefrom, may be used for any purpose except to satisfy the city's obligation to make contributions to the retirement system as described above.
(Ord. No. 13037, § 2, 11-13-08)

Sec. 40-327. Spendthrift/non-assignment.

No interest in the principal or income of this trust shall be anticipated, assigned or encumbered, or be subject to any creditor's claim or to legal process prior to its actual distribution by the trustees. No person shall have the power to sell, assign, transfer, encumber, or in any other manner anticipate or dispose of any interest or potential interest in the trust or the income produced thereby, prior to its actual distribution by the trustees as provided herein. No party or person shall have any assignable interest in the trust or in the income therefrom. Neither the trust principal nor income shall be liable for the debts of any party or person.
(Ord. No. 13037, § 2, 11-13-08)

Sec. 40-328. Irrevocable trust.

This trust shall be irrevocable, provided however, it may be amended by mutual agreement through collective bargaining pursuant to F.S. ch. 447, part II, between the city and the Fraternal Order of Police (FOP), Lodge 20, for and as applicable to its bargaining unit members, or between the city and the International Association of Firefighters (IAFF), Local 587 for and as applicable to its bargaining unit members.
(Ord. No. 13037, § 2, 11-13-08)

Sec. 40-329. Termination.

This trust shall terminate upon termination of the retirement system, and all the retirement system's liabilities have been paid in full, if ever. If for any reason this trust cannot remain in existence until the retirement system terminates, this trust shall remain in existence for 360 years.
(Ord. No. 13037, § 2, 11-13-08)

Secs. 40-330—40-350. Reserved.

DIVISION 6. TRUST FUND FOR APPOINTED OFFICERS AND EMPLOYEES IN EXECUTIVE SERVICE

Sec. 40-351. Trust fund for appointed officers and employees in executive service.

(a) Effective October 1, 2018, the following positions shall be eligible for participation in the Plan or the trust fund: City attorney, chief deputy city attorney, deputy city attorney, senior assistant city attorney, assistant city attorney, and persons employed in these positions on or after June 1, 2019. The city attorney, chief deputy city attorney, deputy city attorney, senior assistant city attorney, assistant city attorney, and persons employed in these positions on or after June 1, 2019 may elect to participate in either plan. If such person elects to participate in the Plan, he or she may elect to purchase creditable service under the Plan for credit for prior non-membership service as an appointed officer or employee in accordance with subsections 40-254(2). An election to participate in the Plan shall be irrevocable.

(b) Effective October 1, 2021, the following positions shall be eligible for participation in the Plan or the trust fund: City manager, deputy city manager, assistant city managers, city clerk,

assistant city clerk, department directors, assistant directors and those employees identified by the city's administration as employed in the executive service of the city on or after October 1, 2021. Those employees identified in this subsection and employed in these positions on or after October 1, 2021 may elect to participate in either plan. If such person elects to participate in the Plan, he or she may elect to purchase creditable service under the Plan for credit for prior non-membership service as an appointed officer, executive officer, or employee in accordance with subsection 40-254(2) of the City Code. An election to participate in the Plan shall be irrevocable. Individuals selecting the trust plan shall participate in a trust plan as follows:

(1) As established and approved by the commission of a written trust agreement wherein provision is made for the city to contribute moneys on behalf of employees to a public trust fund designated by the executive employee and approved by the commission, such contribution to be made in lieu of the city's contribution on behalf of employees in the Plan.

a. The contribution to be made by the city under the terms of the above agreement shall be calculated at the rate of ten percent of the executive employee's annual compensation.

b. A contribution to the designated public trust fund must be made by the executive employee and such contribution by the employee shall be picked up by the city at a rate of not less than five percent of the executive employee's annual compensation.

c. An executive employee may, if so provided in the trust agreement, take actual or constructive receipt of his or her contribution, and those contributions made by the city on his or her behalf prior to reaching age 55 or upon becoming permanently and totally disabled by making a revocable election of distribution of accounts pursuant to the mode of distribution of benefits as provided in the trust agreement.

d. Additionally, the city manager may elect to participate in a public trust fund he or she designates and approved by the city commission. Contributions made to the designated public trust fund by the city shall be in accordance with the provisions of a resolution designating benefits for the city manager and approved by the city commission. Contributions, if any, by the city manager shall be picked up by the city as provided by the provisions of a resolution approved by the city commission. The city manager may, if so provided in the trust agreement, take actual or constructive receipt of their contributions, and those contributions made by the city on their behalf prior to reaching age 55 or upon becoming permanently and totally disabled, by making a revocable election of distribution of accounts pursuant to the mode of distribution of benefits as provided in the trust agreement.

e. The city attorney, assistant city managers, and assistants to the city manager may elect to participate in a public trust fund designated by the employee and approved by the city commission. Contributions shall be made to the designated public trust fund by the city at a rate of 20 percent of the city attorney's annual base salary, and ten percent of the annual base salary for each of the assistant city managers and assistants to the city manager. The city attorney, assistant city managers, and assistants to the city manager may, if so provided in the trust agreement, take actual or constructive receipt of their contributions, and those contributions made by the city on their behalf prior to reaching age 55 or disabled, by

making a revocable election of distribution of accounts pursuant to the mode of distribution of benefits as provided in the trust agreement.

(2) Employees who have elected to participate in a public trust fund in accordance with subsection (1) above may not participate in the Plan so long as, and during which, such employees hold a position eligible to participate in the trust fund.

(3) Notwithstanding the exclusions in section 40-351, those employees who are members of the Plan prior to the enactment of this ordinance shall continue to be eligible to participate in the Plan regardless of position title of those employees.

(Ord. No. 13112, 10-22-09; Ord. No. 13680, § 2, 5-11-17; Ord. No. 13887, § 3, 12-12-19; Ord. No. 14053, § 3, 3-10-22)

Chapter 41

PHOTOGRAPHY*

Article I. In General

Secs. 41-1—41-25. Reserved.

Article II. Commercial Photography on City Property

Sec. 41-26. Permit required.
Sec. 41-27. Evaluation of proposed venture.
Sec. 41-28. Exemptions.
Sec. 41-29. Penalty.

*__Charter reference—__Authority of city to license and tax businesses, privileges, etc., § 3(aa).
__City code cross references—__Use of parks for movies, commercial photography, § 38-72; peddlers generally, ch. 39.
__Law review reference—__Comment as to state regulation of solicitors engaged in interstate commerce, 5 Fla. L. Rev. 196.
__State law reference—__Obscene literature, F.S. ch. 847.

ARTICLE I. IN GENERAL

Secs. 41-1—41-25. Reserved.

ARTICLE II. COMMERCIAL PHOTOGRAPHY ON CITY PROPERTY

Sec. 41-26. Permit required.

It is unlawful to do any still photography, motion picture photography, or electronic (television) photography for commercial purposes, on any public roadway, sidewalk, street, park, causeway, beach, lagoon or on any city-owned property or facility in the city without first having received a City of Miami commercial photographic permit from the city manager or his/her designee. The term "for commercial purposes" means for purposes other than pleasure; that is, for profit or as a profession.
(Ord. No. 8752, § 1, 1-24-78; Code 1980, § 41-21; Ord. No. 13676, § 2, 4-27-17)

Sec. 41-27. Evaluation of proposed venture.

The city manager or his/her designee shall be empowered to evaluate the value to the city and the economic benefits of commercial filming ventures proposed to take place within the city, to waive or reduce rental rates for the use of city facilities for commercial filming purposes in accordance with general policy criteria established by the city commission, and to resolve other areas of controversy which may arise between the city and commercial filming persons, firms, corporations, or associations.
(Ord. No. 8752, § 2, 1-24-78; Code 1980, § 41-22; Ord. No. 13676, § 2, 4-27-17)

Sec. 41-28. Exemptions.

The provisions of this article shall not apply to or affect reporters, photographers, or camera operators in the employ of a newspaper, news service, radio or television broadcasting station, or similar entity engaged in live broadcasting or on-the-spot reporting of sports events or news events concerning those persons, scenes, or occurrences which are in the news and of general public interest.
(Ord. No. 8752, § 3, 1-24-78; Code 1980, § 41-23; Ord. No. 13676, § 2, 4-27-17)

Sec. 41-29. Penalty.

Any person violating the provisions of this article shall be fined or imprisoned, or both fined and imprisoned in accordance with section 3(aa) of the Charter of the city (Laws of Fla., ch. 10847 (1925), as amended) and section 1-13 of this Code.
(Ord. No. 8752, § 3, 1-24-78; Code 1980, § 41-24)

Chapter 42

POLICE*

Article I. In General

Sec. 42-1. Police department.
Sec. 42-2. Appointment of director of police department.
Sec. 42-3. Powers and duties of director of police department.
Sec. 42-4. Removal or destruction of evidence at investigation; refusal to obey investigating officer.
Sec. 42-5. Designation of officer in charge of investigations.
Sec. 42-6. Special departmental services; fees.
Sec. 42-7. Reserved.
Sec. 42-8. Special off-duty police services; fees.
Secs. 42-9—42-35. Reserved.

Article II. Lost, Captured, Abandoned, Stolen or Wrecked Personal Property

Sec. 42-36. Seizure by police.
Secs. 42-37—42-65. Reserved.

Article III. Complaints Against Police Officers

Sec. 42-66. Definitions.
Sec. 42-67. Office of professional compliance established; powers and duties generally.
Sec. 42-68. Filing and investigation of complaint; report of investigation.
Sec. 42-69. Recommendation of disciplinary action.
Sec. 42-70. Review on appeal by officer of disciplinary recommendation.
Sec. 42-71. Reporting of incomplete, biased or otherwise deficient investigation.
Sec. 42-72. Discussion of investigations with community groups.
Secs. 42-73—42-100. Reserved.

Article IV. Towing and Immobilization/Booting of Motor Vehicles

Division 1. Generally

Sec. 42-101. Authority.
Sec. 42-102. Short title.
Sec. 42-103. Purpose.
Sec. 42-104. Definitions.

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*__City Code cross references—__Administration, ch. 2; alarm systems, ch. 3; burglary and robbery alarms, § 3-21 et seq.; removal of minors from pool rooms, etc., by police, § 5-3; issuance of permits for public dances by chief of police, § 5-32; application to chief of police for dancehall licenses, § 5-34; inspection of dancehalls, etc., by police, § 5-38; authority of police to order premises vacated for violations of law, etc., § 5-39; authority of chief of police to extend closing hours of dancehalls, § 5-40; motor vehicles and traffic, ch. 35; police department and license inspectors to enforce street vendor regulations, § 39-52; registration and fingerprinting of city employees, §§ 40-1, 40-2; public order, ch. 45; police and fire-rescue departments both to approve permits to obstruct street, impede traffic, § 54-3; issuance by chief of police of permit for parades and processions, § 54-6; excise tax on casualty insurance for funding police pension benefits, § 56-61; weapons, ch. 61.

__State law references—__Uses of force by law enforcement officers, F.S. § 776.05 et seq.; assault or battery on law enforcement officers, F.S. § 784.07; arrests generally, F.S. ch. 901; police standards and training generally, F.S. § 943.09 et seq.

Division 2. Nonconsensual Towing of Motor Vehicles from Private Property

Sec. 42-105. License required; prohibition.
Sec. 42-106. Nature of and issuance of license and renewal.
Sec. 42-107. Licensure procedure for business enterprises.
Sec. 42-108. License revocation and regulations.
Sec. 42-109. Penalties.
Sec. 42-110. Maximum allowable rates for non-consensual towing, police towing and storage for providing tow services at the request of property owners or police agencies.
Sec. 42-111. Method of payment.
Sec. 42-112. Impoundment of a vehicle(s) by a law enforcement agency—Procedures for notice, hearing process and posting of cash or security bonds.
Secs. 42-113—42-115. Reserved.

Division 3. Immobilization/Booting of Motor Vehicles

Sec. 42-116. Licenses required.
Sec. 42-117. Requirements for issuance of license.
Sec. 42-118. General requirements for vehicle immobilization/booting contractors; signage; unattended lots requirements; enforcement; exemptions; penalties.

Division 4. Police Tows

Sec. 42-119. Police tows and Miami Parking Authority tows.

Article V. Vehicle Impoundment

Sec. 42-120. Definitions.
Sec. 42-121. Impoundment of motor vehicles, controlled substances, prostitution, and illegal dumping of waste.
Sec. 42-122. Hearings; administrative civil penalty.
Sec. 42-123. Administrative civil penalty; payment.
Sec. 42-124. Return of vehicle; disposition of unclaimed vehicles.
Sec. 42-125. Appeal.

ARTICLE I. IN GENERAL

Sec. 42-1. Police department.

(a) *Created.* There is hereby created and established a department to be known as the police department.

(b) *Office of professional compliance.* The office of professional compliance shall function within the office of the chief of police. The director of the office of professional compliance shall be an unclassified, salaried civilian employee of the police department. The office of professional compliance shall perform all duties and functions as prescribed in article III of this chapter regarding complaints against police officers.
(Ord. No. 10071, § 4(c), 1-23-86; Ord. No. 10659, § 1, 10-12-89; Ord. No. 10744, § 3, 6-28-90; Code 1980, §§ 2-236.2, 42-1)

Sec. 42-2. Appointment of director of police department.

(a) The city manager is hereby authorized to appoint a director of the police department who shall serve subject to the supervision and the control of the city manager. The chief of police shall be the director of the police department, appointed in accordance with the provisions set forth in the city Charter.

(b) The city manager shall have the exclusive right to suspend the chief of police for incompetence, neglect of duty, immorality, drunkenness, failure to obey orders given by proper authority, or for any other just and reasonable cause. If such chief be so suspended, the city manager shall forthwith certify the fact, together with the cause of suspension, to the commission who, within five days from the date of receipt of such notice, shall proceed to hear such charges and render judgment thereon, which judgment shall be final.

(c) If the chief is arrested for a felony or for a misdemeanor related to the duties of office or is indicted or informed against for the commission of a federal felony or misdemeanor or state felony or misdemeanor, the provisions of F.S. § 112.51(2) shall apply.
(Ord. No. 10744, § 3, 6-28-90; Code 1980, § 42-2; Ord. No. 13676, § 2, 4-27-17)

Case law reference—Meetings of advisory group appointed by city manager to directly assist him/her in selection of candidates to be considered for appointment of chief of police held subject to government in the sunshine law. State v. Krause, 47 Fla. Supp. 36, *aff'd* Krause v. Reno, 366 So. 2d 1244.

Sec. 42-3. Powers and duties of director of police department.

Subject to the supervision and control of the city manager in all matters, the director of the police department shall administer the affairs of the department which shall include the immediate direction and control of the police force, and he/she is charged with responsibilities for the prevention, control and suppression of crime in the city. The responsibilities of the police department shall include, but not be limited to, the activities of police administration, traffic control, police patrols, training, criminal investigation, vehicle inspection, police property, police records and the complaint center.
(Ord. No. 10744, § 3, 6-28-90; Code 1980, § 42-3; Ord. No. 13676, § 2, 4-27-17)

Sec. 42-4. Removal or destruction of evidence at investigation; refusal to obey investigating officer.

It shall be unlawful for any person within the city, at the scene of any homicide or crime where such homicide or crime is being investigated and is in charge of any police officer, sheriff or deputy sheriff, or at such scene before the arrival of a police officer, sheriff or deputy sheriff to make such investigation, to tamper with, remove, obliterate or destroy any visible evidence whatsoever or, while such crime or homicide is being investigated by any such officers, to refuse to obey and carry out the reasonable instructions and directions of the officer in charge of such investigation.
(Code 1967, § 43-4; Code 1980, § 42-4)

State law references—Neglect or refusal to aid peace officers, F.S. § 843.06; tampering with or fabricating physical evidence, F.S. § 918.13.

Sec. 42-5. Designation of officer in charge of investigations.

The officer in charge of any investigation mentioned in section 42-4 shall be the officer first arriving at the scene of such crime or homicide, or, in the event of two or more officers arriving simultaneously, then the officer senior in rank. Such officer assuming charge shall continue in charge until;

(1) If the crime is that of a homicide, rape or wounding of another, the arrival on the scene of the sheriff of the county, the investigator of the state attorney's office, or a member of the homicide bureau (squad) of the city police department. Any one of such officers, upon arrival, shall assume charge of such investigation.

(2) In the event that such crime being investigated is other than a homicide, rape or wounding of another, until the arrival of the sheriff or his/her deputy or of a ranking detective officer of the city, who shall assume and take charge of the investigation.

(Code 1967, § 43-5; Code 1980, § 42-5; Ord. No. 13676, § 2, 4-27-17)

Sec. 42-6. Special departmental services; fees.

(a) *Record checks.* The police department may furnish, to any person upon request, a written statement certifying that the files of the department have been checked and fail to reveal any criminal record under the name of that person. The statement may be furnished for the sum of $10.00 for each such statement.

(b) *Accident reports and photographs.* The records unit of the police department shall furnish upon request:

(1) A certified copy of any accident or offense report which is on file with the records unit, for the sum of $1.00 per certified page.

(2) Photographic prints. The sum of $10.00 shall be collected for each eight-inch by ten-inch photographic print after such photograph or photographs have been declared releasable by the chief of police or his/her designated agent.

(3) Color photographic prints. The sum of $4.00 shall be collected for each 3½-inch by five-inch color photographic print and $12.50 for each eight-inch by ten-inch color photographic print after such photograph or photographs have been declared releasable by the chief of police or his/her designated agent.

(c) *Tape recordings.* The communications unit of the police department shall furnish upon request an original copy of any telephone or dispatch recording for the sum of $2.50 plus a special service charge of $18.00 an hour pursuant to F.S. § 119.07(1)(b).

(d) *Computer printouts.* The computer liaison unit of the police department shall furnish upon request a computer printout, per the requestor's instructions, for a sum of $205.00 for the first year and an additional $180.00 for each additional year requested.

(e) *Miscellaneous documents.* Miscellaneous documents not enumerated above shall be furnished for a sum of $0.15 for a one-sided page and $0.20 for a two-sided page for copies of a maximum size of 8½" by 14" or as otherwise provided in F.S. § 119.07(1).

(f) *Fees for exceptional services.* Where a service performed by an employee of the police department for a member of the public is deemed exceptional in that it requires the exclusive dedication of periods of employee time to the sole end of performing that service, a fee may be charged equal to the hourly rate of that employee or, for the purposes of standardization, to the average hourly rate of like employees, for the actual time spent in performing that service.

(g) *Fees for storing, transporting and publishing notice for lost/found property.* The property unit of the police department shall collect $100.00 from the rightful owner of lost/found property upon the return by the police department of lost/found property taken into custody pursuant to F.S. § 705.102. This fee covers the cost of transporting, storing and publishing the lost/

found property by the police department. In instances where the property is valued at $100.00 or under, such property may be redeemed by the owner by paying a fee equal to the value of the property returned. If the rightful owner does not pay such fees within 30 days of the claim, title to the property vests in the police department.

(h) *Administrative fee for police conducted inspections and for processing transaction forms by the pawn shop detail.* Each pawn shop/secondhand dealer, except antique dealers (secondhand dealers who sell works of art, furniture, decorative objects, and other items having special value because of its age), conducting business within the City of Miami shall pay a yearly fee of $250.00 for police inspections of pawn shops/secondhand dealers and other related functions by the police department's pawn shop detail. Antique dealers shall pay a yearly inspection fee of $100.00. In addition thereto, each pawn shop/secondhand dealer, including antique dealers, will pay a $1.50 fee per transaction form submitted to the police department for the review and processing of all forms submitted by the pawn shop detail. The finance department is hereby authorized, empowered and directed to establish the proper procedure for the handling of all monies collected.

(Code 1967, § 43-8; Ord. No. 9013, § 1, 10-31-79; Ord. No. 10570, § 1, 4-13-89; Code 1980, § 42-8; Ord. No. 11425, § 2, 12-12-96; Ord. No. 11539, § 2, 9-9-97; Ord. No. 13676, § 2, 4-27-17)

Sec. 42-7. Reserved.

Editor's note—Ord. No. 12203, § 3, adopted March 27, 2002, repealed § 42-7, which pertained to the presumption in favor of police officers concerning death or disability and derived from the Code of 1967, § 43-10.1, and the Code of 1980, § 42-11.

Sec. 42-8. Special off-duty police services; fees.

(a) *Evaluation of requests.* The chief of police or his/her designee shall cause the requests for off-duty police officers to provide services to persons or businesses requesting the same to be evaluated on the basis of the reasonableness thereof, including in such evaluation the factors of existing laws, ordinances, rules and regulations, personnel scheduling availability, risk of harm to personnel, and police department efficiency.

(b) *Administrative fee.* As a fee payable to the city to offset the administering of the herein off-duty police services program, the chief of police shall cause to be collected and shall establish procedures for the collection by the city of a fee of $4.00 per hour, per officer, per location. Said fee will require a three-hour $12.00 minimum per officer, per location. Effective June 1, 2017, the administrative fee shall be increased to $4.50 per hour, per officer, per location. Said fee will require a three-hour $13.50 minimum per officer, per location.

(1) Notwithstanding the above, assignments for residential off-duty patrol will be subject to a $10.00 administrative fee.

Multiple police officers, days or locations shall be assessed on a per-officer, per-job, per-hour basis for contractual employment of off-duty police officers by private persons or firms. (Each shall be subject to the three-hour minimum). This fee shall be in addition to any special assessments which may be required and shall also be in addition to the hourly compensation rate payable to the individual sworn police officer. Monies received hereunder by the city shall be placed in the general fund except that $5.00 of each administrative fee collected shall be placed in the city self-insurance and insurance trust fund.

(c) *Liability for claims.* The city expressly recognizes its ongoing responsibility to provide self-insurance coverage, subject to the maximum amounts provided in F.S. § 768.28, for tort liability and workers' compensation claims arising out of and in the course and scope of assigned off-duty police officers performing law enforcement duties during the period of such assignment. Nothing contained herein shall be deemed to limit the tort liability or subrogation of parties for or on behalf of whom off-duty police services are rendered, or upon whose property these services are performed. Further, nothing contained herein shall be deemed a waiver of any defense or denial of coverage permitted by law.

Liability for all civil actions and judgments (excluding individual punitive damages) arising out of claims resulting from the performance of duties unrelated to law enforcement during the period of said assigned off-duty police services shall be borne by the party requesting such off-duty police services. The party for or on behalf of whom such duties unrelated to law enforcement have been rendered shall hold the city, its officers, agents and employees, harmless for any and all claims, demands, actions, causes of action, suits, damages, loss and expenses, judgments, and attorney's fees and costs expended in defense of same.

(d) *Compensation of officers limited.* Parties receiving off-duty police services shall not offer, nor shall off-duty police officers accept, any compensation for such off-duty police services or other services above than specified by the chief of police.
(Ord. No. 8994, §§ 1—5, 9-27-79; Ord. No. 9059, § 1, 1-24-80; Ord. No. 10127, § 1, 7-10-96; Code 1980, § 42-8.1; Ord. No. 11423, § 2, 12-12-96; Ord. No. 13615, § 2, 12-8-16; Ord. No. 13676, § 2, 4-27-17)

Secs. 42-9—42-35. Reserved.

ARTICLE II. LOST, CAPTURED, ABANDONED, STOLEN OR WRECKED PERSONAL PROPERTY*

Sec. 42-36. Seizure by police.

The police department shall seize and reduce to the possession of the police department any lost, captured, abandoned, stolen or wrecked property, including vehicles, which may be found upon any of the public streets and highways of the city pursuant to the procedure as provided in F.S. § 705.101 et seq.
(Code 1967, § 43-20; Code 1980, § 42-40)

Secs. 42-37—42-65. Reserved.

*__City Code cross references—__Removal of abandoned property from private property, § 22-146; public sale of certain vessels as abandoned property, § 50-4.

__State law reference—__Lost, abandoned, wrecked or derelict property on public property, F.S. § 705.101 et seq.

ARTICLE III. COMPLAINTS AGAINST POLICE OFFICERS

Sec. 42-66. Definitions.

For the purposes of this article:

Police officer shall include all sworn police personnel.

Registered mail shall include mail sent by certified mail, return receipt requested, and shall also include personal delivery upon the addressee.
(Ord. No. 9127, § 6, 7-10-80; Code 1980, § 42-61)

Sec. 42-67. Office of professional compliance established; powers and duties generally.

(a) *Creation; organizational status.* There is hereby created an office of professional compliance (OPC), which shall monitor and observe the internal investigations of alleged abuses by police personnel. The office of professional compliance shall function within the city manager's office. The city shall provide the office of professional compliance with appropriately located office space, together with necessary office supplies, equipment, and furnishings.

(b) *Director of office; selection; authority.* Performance of the functions and duties of this office shall be under the direction of the city manager who is empowered to delegate the authority to control the office to any person selected by the city manager, said person to be known as the director. The director of the office of professional compliance shall be an unclassified salaried civilian employee of the city.

(c) *Personnel.*

(1) *Investigators.* The OPC director shall select for appointment such investigators as classified civilian employees of the city, who shall be selected from among candidates referred by the department of human resources consistent with civil service rules and regulations.

(2) *Clerical staff.* There shall also be one person selected by the OPC director as secretary who shall serve as a classified, salaried civilian employee of the city.

(d) *Powers and duties generally; operating procedures.*

(1) The office of professional compliance shall become involved in the investigations of alleged police abuse of citizens and in the investigations of complaints arising from police department shooting incidents, from the inception of the complaint to the submission of findings and conclusions of the investigations, as monitors and as observers. The limitations to be imposed upon the office of professional compliance shall only be such as to insure that the integrity of police department investigations is maintained in accordance with federal and state laws, including rules of evidence, prescribed police departmental procedures, and employees' rights.

(2) The office of professional compliance is hereby authorized to exercise, in accordance with law, the privilege of examining all records and evidence and is hereby encouraged to provide input into any investigation under this article conducted by the police department by expressing concern, comments, and recommendations to any police personnel.

(3) The office of professional compliance may demand, examine, and duplicate public records and documents in accordance with the provisions of F.S. ch. 119, as may be amended from time to time.

(4) The observation and monitoring activities of the office of professional compliance shall be subject to any limitations imposed by the office of the state attorney.

(e) *Legal counsel.* In all matters relating to the activity of the office of professional compliance, the office of the city attorney shall serve as legal counsel.

(Ord. No. 9127, §§ 1—4, 5(a), (b), (d), 7-10-80; Ord. No. 10071, § 7, 1-23-86; Ord. No. 10659, § 2, 10-12-89; Code 1980, § 42-62; Ord. No. 11823, § 2, 7-27-99)

Sec. 42-68. Filing and investigation of complaint; report of investigation.

(a) The activity of the office of professional compliance shall be conducted in substantial accordance with the procedure or process indicated as follows:

(1) Citizens may file complaints of violations of their civil rights and complaints of wrong-doing against police officers with the office of professional compliance.

(2) The complaint is to be recorded on the standard RF-121 form. A copy is to be maintained by the office of professional compliance and the original is to be forwarded to the internal affairs section.

(3) After the case has been assigned for investigation and review, a registered letter establishing a time for the completion of the investigation is to be sent to the complainant.

(4) A registered letter is to be sent to the complainant informing him/her of the conclusions of the investigation and review. Upon request, a report of the findings is to be prepared and submitted to the complainant, via proper public information release procedures.

(b) The results contained in the reports of the investigation may fall into one of the following categories: "cleared," "substantiated," "inconclusive," or "information only."

(1) "Cleared" means that an officer has been exonerated of wrongdoing.

(2) "Substantiated" means that an officer has been found guilty of wrongdoing.

(3) "Inconclusive" means that no conclusion can be reached that an officer has or has not been guilty of wrongdoing.

(4) "Information only" means that the information obtained is being used solely as intelligence information.

(Ord. No. 9127, § 6(a)(i)—(vi), 7-10-80; Ord. No. 10071, § 7, 1-23-86; Ord. No. 10659, § 3, 10-12-89; Code 1980, § 42-63; Ord. No. 11823, § 2, 7-27-99)

Sec. 42-69. Recommendation of disciplinary action.

If the complaint is sustained, disciplinary action is to be recommended by the officer's superiors and forwarded to the officer. The office of professional compliance is to be informed of the results of such consideration.
(Ord. No. 9127, § 6(a)(vii), 7-10-80; Code 1980, § 42-64; Ord. No. 11823, § 2, 7-27-99)

Sec. 42-70. Review on appeal by officer of disciplinary recommendation.

(a) *Departmental disciplinary review board.* Pursuant to any existing collective bargaining agreement, the said officer against whom disciplinary action is recommended pursuant to section 42-69 may request a hearing before the departmental disciplinary review board, which will make advisory determinations and nonbinding recommendations to the chief of police. The OPC shall be informed in writing of this decision.

(b) *Chief of police.* The chief of police has the option to concur with the departmental disciplinary review board's recommendation or take alternate action. The officer is to be informed of the chief's decision and may choose to appeal the decision to the civil service board. The OPC shall be informed in writing of this decision.

(c) *Civil service board.* Should the officer timely choose a civil service hearing, the civil service board shall review the case and provide its findings and recommendations to the city manager. The OPC shall be informed in writing of this decision.

(d) *City manager.* The city manager shall review the case and make a decision thereon. The city manager may decide to accept the recommendation of the civil service board or take alternate action. The OPC shall be informed in writing of this decision.
(Ord. No. 9127, § 6(a)(viii)—(xii), 7-10-80; Code 1980, § 42-65; Ord. No. 11823, § 2, 7-27-99)

Sec. 42-71. Reporting of incomplete, biased or otherwise deficient investigation.

If, after a case is closed, an office of professional compliance investigator is of the opinion that an investigation is incomplete, biased, or otherwise deficient, he or she shall report his or her opinion to the office of professional compliance director, who will have immediate access to the chief of police for resolution of the problems raised by such opinion. If the office of professional compliance director is not satisfied with the resolution of the problems at this level, he or she shall bring the matter to the attention of the city manager to resolve such problems.
(Ord. No. 9127, § 5(c), 7-10-80; Ord. No. 10071, § 7, 1-23-86; Ord. No. 10659, § 4, 10-12-89; Code 1980, § 42-66)

Sec. 42-72. Discussion of investigations with community groups.

The office of professional compliance and representatives of the police department designated by the chief of police shall make themselves available to discuss investigations hereunder of alleged police abuse or shooting incidents with community groups.
(Ord. No. 9127, § 6(a)(xiii), 7-10-80; Code 1980, § 42-67)

Secs. 42-73—42-100. Reserved.

ARTICLE IV. TOWING AND IMMOBILIZATION/BOOTING OF MOTOR VEHICLES*

DIVISION 1. GENERALLY

Sec. 42-101. Authority.

The provisions of this article are enacted pursuant to the statutory power of the city to establish and enforce business regulations necessary for the protection of the public and pursuant to F.S. §§ 715.07(2)(b) and 323.002.
(Ord. No. 9762, § 1(1), 12-8-83; Code 1980, § 42-71; Ord. No. 14071, § 2, 6-9-22)

*__Editor's note—__Ord. No. 13766, § 2, adopted May 10, 2018, changed the title of article IV from "Towing and Immobilization of motor vehicles" to "Towing and immobilization/booting of motor vehicles."

__City Code cross reference—__Local business taxes, ch. 31.

__County Code cross reference—__Towing, § 30-461 et seq.

Sec. 42-102. Short title.

This article shall be known and may be cited as the "towing company and immobilization contractor licensing and regulating ordinance of the City of Miami."
(Ord. No. 9762, § 1(2), 12-8-83; Code 1980, § 42-72; Ord. No. 11858, § 2, 11-16-99)

Sec. 42-103. Purpose.

(a) It is hereby declared that, in order to provide for and safeguard the life, health, safety, property and welfare of the people, the licensure and regulation of business enterprises engaged in the practice of recovering, towing, removing, storing and immobilization of motor vehicles are matters affecting the public interest; and any person desiring to conduct such a business enterprise shall be required to obtain a regulatory license and obey the regulations as hereinafter provided.

(b) The purpose of this article is to provide a uniform system for the licensure and regulation of business enterprises which are engaged in or which intend to engage in the practice of recovering, towing, removing, storing and immobilization of motor vehicles which are parked on private property without the permission of the owner of the private property.
(Ord. No. 9762, § 1(3), 12-8-83; Code 1980, § 42-73; Ord. No. 11858, § 2, 11-16-99)

Sec. 42-104. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Administration. The police department is the division of Miami city government or its successor responsible for administering all licenses pursuant to this article.

Authorized wrecker operator means any wrecker operator or business enterprise who has been designated as part of the city's wrecker operator system by entering into a valid and current agreement with the city and assigned a zone for the provision of such services.

Business enterprise means a unit of economic organization or activity in the form of an individual natural person, sole proprietorship, corporation, partnership, organization, joint venture, trust, foundation, firm, group, society, association or any combination thereof whose systemic purposeful activity is the recovering, towing, removing, storing and immobilization of parked vehicles from private real property at the express instruction of the owners of such real property. However, "business enterprise" shall not mean nor include in its meaning the "property owner."

Express instruction means a clear, definite and explicit written request by a property owner or agent to a business enterprise relating to a specific vehicle which calls for the removal of a specific and individual vehicle parked without permission of the property owner. Such agent shall not be an officer or employee of the business enterprise (as defined herein). The term "express instruction" shall not mean a general request unrelated to a specific and individual vehicle or which precedes in time the actual parking of a vehicle.

Immobilization shall mean the placing of a "boot" or other device which causes a vehicle to be immobile or otherwise disables a vehicle from operation.

Immobilization contractor shall mean any person or firm authorized by the owner, lessee, or controller of real property to engage in the business of immobilization of unauthorized vehicles parked on private property of such owner, lessee or controller, their agents, or employees. The immobilization contractor shall sometimes be referred to as the "contractor."

License means that certificate or document itself which permits a business enterprise to engage in the activity of recovering, towing, removing, storing and immobilization of parked vehicles from private real property at the express instruction of the owners of such real property. As used in this article, "license" shall not mean a municipal or county local business tax receipt.

Parked means the state of a vehicle being temporarily left and unattended by its owner or operator.

Premises shall mean the private property owned, controlled or used by a property owner for the parking of motor vehicles as its business or auxiliary to its business.

Property owner means that person who exercises dominion and control over private real property, including but not limited to the legal titleholder, lessee, designated representative of a condominium association or any person authorized to exercise or share dominion and control over private real property. However, "property owner" shall not mean nor be included in the term "business enterprise."

Recover means to take possession of a vehicle and its contents and to exercise control and supervision over the vehicle.

Regulation means a rule set forth within this article made applicable to business enterprises. The disobedience of a regulation shall be sufficient grounds for revocation of a license.

Removing means the act of changing by tow the location of a parked vehicle from its location on private property to the storage site of the business enterprise.

Revenue collection division means the treasury management division of the finance department or its successor which is responsible for issuing licenses and collecting license fees.

Revoke means the action of the city manager whereby a license is annulled and made void.

Storing means to place and to leave a towed vehicle at a site where the business enterprise exercises control and supervision over the vehicle.

Towing means to draw or pull along a vehicle behind by means of another vehicle equipped with booms, car carriers, winches, dollies or similar equipment and includes opening of vehicle, removal of linkage on the transmission, securing of steering wheel or any other labor required or necessary to complete the removal of the vehicle.

Unauthorized wrecker operator means any wrecker operator or business enterprise who has not been designated as part of the city's wrecker operator system and does not have a valid and current agreement with the city to provide such services.

Vehicle means a mobile item which normally uses wheels.

Wrecker class means the type of towing apparatus to be used to tow vehicles. The wrecker classes have minimum ratings and are as follows:

(1) Class A tow truck or car carrier minimum ratings:
   (a) Gross vehicle weight ratings, 10,000 pounds.
   (b) Boom capacity, 8,000 pounds.
   (c) Winching capacity, 8,000 pounds.
   (d) Cable size and length, three-eighths-inch by 100 feet
   (e) Under-reach retracted rating, 3,500 pounds.
   (f) Under-reach extended ratings, 2,000 pounds.
   (g) Tow sling safe lift rating, 3,500 pounds.
   (h) Safety chains (two each), three-eighths-inch high test.
   (i) Cab to axle dimension, fifty-six-inches.

(2) Class B tow truck or car carrier minimum ratings:
   (a) Gross vehicle weight ratings, 18,000 pounds.
   (b) Boom capacity, 6,000 pounds.
   (c) Winching capacity, 16,000 pounds.
   (d) Cable size and length, one-half-inch by 200 feet
   (e) Under-reach retracted rating, 6,000 pounds.
   (f) Under-reach extended ratings, 4,000 pounds.
   (g) Tow sling safe lift rating, 8,500 pounds.

(h) Safety chains (two each), five-sixteenths-inch alloy.

(i) Cab to axle dimension, eighty-four-inches.

(3) Class C tow truck or car carrier minimum ratings:

(a) Gross vehicle weight ratings, 30,000 pounds.

(b) Boom capacity, 50,000 pounds.

(c) Winching capacity, 50,000 pounds.

(d) Cable size and length, five-eighths-inch by 200 feet

(e) Under-reach retracted rating, 25,000 pounds.

(f) Under-reach extended ratings, 12,000 pounds.

(g) Tow sling safe lift rating, 12,000 pounds.

(h) Safety chains (two each), one-half-inch alloy.

(i) Cab to axle dimension, one hundred forty-four-inches.

(4) Class D tow truck or car carrier minimum ratings:

(a) Gross vehicle weight ratings, 52,000 pounds.

(b) Boom capacity, 70,000 pounds.

(c) Winching capacity, 50,000 pounds.

(d) Cable size and length, five-eighths-inch by 200 feet

(e) Under-reach retracted rating, 45,000 pounds.

(f) Under-reach extended ratings, 15,000 pounds.

(g) Tow sling safe lift rating, 12,000 pounds.

(h) Safety chains (two each), one-half-inch alloy.

(i) Cab to axle dimension, 180 feet.

Wrecker operator system means a system for the towing or removal of wrecked, disabled, or abandoned vehicles within the city's jurisdiction under which the city contracts with one or more wrecker operators for the towing or removal of wrecked, disabled, or abandoned vehicles from accident scenes, streets, or highways and includes a method for apportioning the towing assignments among the eligible wrecker operators through the creation of geographic zones.

(Ord. No. 9762, § 1(4), 12-8-83; Ord. No. 10537, § 1, 1-12-89; Ord. No. 10564, § 1, 3-23-89; Code 1980, § 42-74; Ord. No. 11382, § 2, 7-25-96; Ord. No. 11858, § 2, 11-16-99; Ord. No. 12885, § 1, 2-8-07; Ord. No. 14071, § 2, 6-9-22)

DIVISION 2. NONCONSENSUAL TOWING OF MOTOR VEHICLES FROM PRIVATE PROPERTY*

Sec. 42-105. License required; prohibition.

(a) No business enterprise shall engage in the business of recovering, towing, removing and storing of motor vehicles which are parked on private real property and parked without the permission of the owner of the private real property unless such business enterprise shall first apply for and obtain, and subsequently maintain in unrevoked status, a license.

(b) The requirement for a license hereinabove described is a requirement separate and apart from and in addition to any county or municipal requirements for local business tax receipts. The required license is a regulatory license and not a revenue license.

(c) Nothing herein shall be construed to mean that a natural person cannot work in or for such business enterprises without such license. There is no requirement that employees or agents of such business enterprises apply for and obtain the license provided for by this article. The practice of a business enterprise to consider persons as independent contractors or employees shall not be construed to permit avoidance of the requirement that the business enterprise itself apply for, obtain, and maintain a license.

(Ord. No. 9762, § 1(5), 12-8-83; Code 1980, § 42-75; Ord. No. 12885, § 1, 2-8-07)

*__Editor's note—__Ord. No. 12285, § 1, adopted October 10, 2002, changed the title of division 2 from "towing of motor vehicles" to "nonconsensual towing of motor vehicles from private property."

Sec. 42-106. Nature of and issuance of license and renewal.

(a) A license issued or renewed pursuant to the provisions of this article shall not be transferable from one business enterprise to another business enterprise. All licenses shall expire on September 30 of each year following the date of original issuance. Licenses shall be renewable annually.

(b) Licenses shall be issued in the name of the business enterprise meeting the standards and requirements for licensure.

(c) A business enterprise which has met the standards and requirements for licensure and which is otherwise qualified for licensure may be issued a license.

(d) The revenue collection division shall issue a license conditioned upon an indication of approval of the application by the chief of police and upon collection of a business tax as provided in chapter 31 of the City Code.
(Ord. No. 9762, § 1(6), 12-8-83; Ord. No. 10537, § 2, 1-12-89; Code 1980, § 42-76; Ord. No. 13142, § 11, 2-11-10; Ord. No. 13939, § 2, 11-19-20)

Sec. 42-107. Licensure procedure for business enterprises.

(a) *Application.* All business enterprises desiring to obtain an initial license or renew a previously issued and unrevoked license shall submit an application in writing to the revenue collection division on all prescribed forms. The application and all supporting documents shall be retained by the revenue collection division. All applications shall include:

(1) Name of the business enterprise.

(2) If the business enterprise is a corporation, the name, date and state under whose laws such corporation was organized, and if a foreign (out-of-state) corporation, whether authorized to do business in the State of Florida, the fictitious name under which the corporation may be doing business, the names of the principal officers, directors, resident agent and local representatives, and their business addresses.

(3) If the business enterprise is a partnership, the fictitious name under which the partnership may be doing business, the name, business address of each partner.

(4) If the business enterprise is a sole proprietorship, the fictitious name under which the sole proprietorship may be doing business, the name, business address of the natural person who owns, controls or directs the sole proprietorship.

(5) The signature of the president or vice-president of the applicant corporation, or the signature of a partner of the applicant partnership, or the signature of the natural person who owns, controls or directs the applicant sole proprietorship.

(6) Such other information and data as the chief of police may consider appropriate.

(b) *Standards for issuance of license.* The chief of police shall approve the application for issuance or renewal of a license hereunder where he/she finds:

(1) That the application has been fully completed and submitted;

(2) Reserved;

(3) That the application has been fully examined and considered by the police department;

(4) That the applicant business enterprise, if a corporation does not have as an officer or director a person who is or was an officer, director, partner or sole proprietor of a business enterprise which has a currently suspended license or has had its license revoked by action of the city manager as of the date of application;

(5) That the applicant business enterprise, if a partnership, does not have as a partner, a person who is or was an officer, director, partner or sole proprietor of a business enterprise which has a currently suspended license or has had its license revoked by action of the city manager within five years of the date of application;

(6) That the applicant business enterprise, if a sole proprietorship, does not have as the sole proprietor, a person who is or was an officer, director, partner or sole proprietor of a business enterprise which has a currently suspended license or has had its license revoked by the city manager within five years of the date of application; and

(7) That a license of the applicant is not currently under suspension.

(Ord. No. 9762, § 1(7), 12-8-83; Code 1980, § 42-77; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13939, § 2, 11-19-20)

Sec. 42-108. License revocation and regulations.

(a) *Revocation.* On its own motion or the written complaint of any person, the police department may investigate the action of a business enterprise licensed under this article and cause to be conducted a proceeding before the city manager, or his/her designated representative, to consider whether or not to revoke or suspend a license. Such license revocation or suspension proceeding shall be conducted substantially in accordance with the hearing provisions of the City Code. A finding of fact by the city manager, or his/her designee, that a licensed business enterprise has not complied with a regulation as hereinafter set forth shall be sufficient but not exclusive grounds for the city manager to revoke or suspend the license of a business enterprise. Revocation or suspension proceedings may be initiated on the basis of a recommendation from the towing review board, a body formed as a result of the city's cooperative effort with members of the towing industry engaged in removing vehicles from public property.

(b) *Regulations.* No business enterprise licensed under this article shall:

(1) Recover or tow a vehicle unless the business enterprise's tow truck or other vehicle used in towing shall clearly display, on the front of the tow truck or car carrier body, the towing license number in letters at least three inches high, and on the driver and passenger sides of the vehicle and/or doors, the licensee's name, in letters at least three inches high; and in letters at least one inch high, the licensee's principal address and telephone number; or

(2) Recover or tow or remove or store a vehicle unless the business enterprise shall file and keep on record with the city clerk and the police department a complete copy of the current rates charged for towing and storage of vehicles and copies of all written contracts or agreements between the business enterprise and property owners which relate to the towing and removal of vehicles;

(3) Pay or rebate money, or solicit or offer the payment or rebate of money, or other valuable consideration, to property owners from which vehicles may be towed or removed;

(4) a. Recover or tow or remove or store a vehicle unless notice is posted fulfilling the following requirements:

1. Notice, in the form of a sign structure, shall be prominently placed at each driveway access or curb cut allowing vehicular access to the property, within five feet from the public right-of-way line. If there are no curbs or access barriers, signs shall be posted not less than one sign for each 25 feet of lot frontage;

2. The notice shall clearly display:

i. In not less than two-inch-high, light-reflective letters on a contrasting background, that unauthorized vehicles will be towed away at the owner's expense;

ii. In not less than four-inch-high, light-reflective letters on a contrasting background, the words "tow-away zone";

iii. In not less than two-inch-high, light-reflective letters on a contrasting background, the days of the week and hours of the day during which vehicles will be towed away at the owner's expense where the property owner or business enterprise selectively causes the towing of vehicles dependent on the day of the week and hour of the day the vehicle is parked and if not on a 24-hour-a-day continuous basis;

iv. In not less than two-inch-high, light-reflective letters on a contrasting background, the name and telephone number of the towing business enterprise, if there exists a written contract between the property owner and business enterprise for the towing of vehicles;

v. In not less than one-inch-high, light-reflective letters on a contrasting background, an address or description of the location of the storage site; and

3. The sign structure displaying the required notices shall be permanently installed with the bottom of the sign not less than four feet above ground level and shall be continuously maintained on the property for not fewer than 24 hours before the towing or removal of vehicles;

b. The posting of notice requirements of subsection (b)(4)a above shall not be required where:

1. The private property on which a vehicle is parked is property appurtenant to and obviously a part of single-family type residences;

2. Notice is personally given to the owner or operator of the vehicle that the private property on which the vehicle is or will be parked is reserved or otherwise not available for unauthorized vehicles and the vehicle is subject to being removed at the owner's expense;

(5) Recover or tow or remove or store a vehicle except upon the express instruction and written authorization demonstrating a signature of the property owner or agent to the business enterprise requesting the tow or removal. Such agent shall not be an officer or employee of the business enterprise (as defined herein). No such instruction shall be considered to have been given by the mere posting of the notice requirement of subsection (b)(4)a of this section. No such instruction shall be considered to have been given by virtue of the mere terms of any contract or agreement between a business enterprise and a property owner. No such instruction shall be considered to have been given where the instruction occurs in advance of the actual unauthorized parking of the vehicle. No such instruction shall be considered to have been given where the instruction is general in nature and unrelated to specific, individual and identifiable vehicles which are already unauthorizedly parked. No such instruction shall be considered to have been given where the property owner or business owner has entered into an agreement with a third party, with or without compensation, for the purpose of providing such instruction;

(6) Tow or remove or store a vehicle where the registered owner or other legally authorized person in control of the vehicle

arrives at the scene of potential towing prior to towing or removal, except where:

a. The registered owner or other legally authorized person in control of the vehicle refuses to remove the vehicle;

b. The vehicle is connected to the towing or removal apparatus and the registered owner or other person in control of the vehicle refuses to pay a reasonable service fee of not more than one-half of the posted rate for such towing service as required by this article;

(7) Tow or remove a vehicle where there is a natural person occupying the vehicle;

(8) Recover or tow or remove or store a vehicle unless the business enterprise reports to the Miami Police Department, by an electronic towing reporting system which has been approved by the city manager, within 30 minutes of the completion of the recovery, towing, or removal. The electronic report shall include, but not be limited to, the following information related to the recovery, towing, or removal of the vehicle:

a. The name and address of the registered owner of the vehicle;

b. The location of the stored vehicle;

c. The date and time that the vehicle was towed, recovered, or removed;

d. A description of the stored vehicle, including the color, make, and model;

e. Vehicle license plate number and state;

f. Vehicle identification number (VIN); and

h. The location from where the vehicle was towed;

(9) Recover or tow or remove or store a vehicle unless the business enterprise shall maintain trip records relating to the previous calendar year. The trip records shall legibly indicate at a minimum:

a. The name of the business enterprise;

b. The date and times of the day in hours and minutes when a specific vehicle was recovered, towed, removed and stored;

c. The make, model, color, and license plate number of the specific vehicle;

d. The precise address or description of the location from which the specific vehicle was removed;

e. The full name of the property owner who expressly instructed the removal of the specific vehicle;

f. The precise address or description of the location of the storage site of the business enterprise to which the specific vehicle was removed and stored;

(10) Recover or tow or remove or store a vehicle unless the vehicle shall be towed directly to the business enterprise's storage site and the vehicle shall not be kept in any temporary holding area;

(11) Store or impound a towed vehicle at a distance that exceeds a ten-mile radius of the location from which the vehicle was recovered, towed and removed; however, notwithstanding the foregoing, where there is no business enterprise licensed under this article that is located within a ten-mile radius of the location from which the vehicle might be recovered, towed, and removed, then in that event, no business enterprise licensed under this article shall store or impound a towed vehicle at a distance that exceeds a 20-mile radius of the location from which the vehicle was recovered, towed, and removed;

(12) Recover or tow or remove or store a vehicle unless the business enterprise shall permit the registered owner to enter onto the storage site and remove and take into his/her possession and carry

away whatever goods, chattels, things, and documents are contained within the stored vehicle;

(13) Use physical force or violence, or threat of physical force or violence, in dealing with persons who have had or are about to have their vehicles recovered or towed or removed or stored; or

(14) Connect a vehicle to the towing or removal apparatus unless the yellow flashing light on the tow truck is in use as the vehicle is being connected.

(15) It shall be prohibited for a property owner or business enterprise to employ, with or without compensation, any individual, firm, company, or business, to serve as "spotters" who report the presence of unauthorized parked vehicles for purposes of towing.

(16) Prior to performing the tow or immobilization service, the business enterprise shall take a photograph of the front of the vehicle being towed, a photograph of the back of the vehicle being towed, a photograph of any existing damage that is readily seen on the vehicle being towed, and a photograph demonstrating the violation for which the vehicle is being towed. The photographs must be time and date stamped.

(17) It shall be unlawful for any unauthorized wrecker operator to respond to the scene of a traffic crash within the city for the purpose of directly or indirectly soliciting towing service for a disabled vehicle(s). Only authorized wrecker operators dispatched by the police department to a traffic crash scene involving a disabled vehicle(s) shall tow such vehicle(s). This subsection shall not preclude owners or operators of vehicles from requesting a specific business enterprise/wrecker operator of their choice.

(Ord. No. 9762, § 1(8), 12-8-83; Ord. No. 10537, § 3, 1-12-89; Ord. No. 10564, § 1, 3-23-89; Code 1980, § 42-78; Ord. No. 11382, § 2, 7-25-96; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13939, § 2, 11-19-20; Ord. No. 14071, § 2, 6-9-22)

Sec. 42-109. Penalties.

(a) A violation of any of the provisions of this chapter may be punished as provided in section 1-13. Violations of the prohibitions and regulations of this article shall additionally constitute offenses and violations of a city ordinance. Such violations may be punished by a fine not to exceed $500.00 for each successive violation as provided in chapter 2, article X of this Code.

(b) Any person who charges a vehicle owner a towing or storage charge in excess of the rate described herein is liable to the vehicle owner for three times the amount charged.

(c) Any owner or agent of the business enterprise in possession of any private property causing the removal of a vehicle parked on that property is liable to the vehicle owner for double the storage or towing charges whenever the owner or agent fails to comply with the regulations as set forth in section 42-108(b).

(d) Violations of the regulation or prohibition of this article shall result in suspension or revocation of the license of the business enterprise as set forth in section 42-108(a).
(Ord. No. 9762, § 1(9), 12-8-83; Ord. No. 10537, § 4, 1-12-89; Ord. No. 10564, § 1, 3-23-89; Code 1980, § 42-79; Ord. No. 13142, § 11, 2-11-10; Ord. No. 13939, § 2, 11-19-20)

Sec. 42-110. Maximum allowable rates for non-consensual towing, police towing and storage for providing tow services at the request of property owners or police agencies.

(a) The city hereby adopts and incorporates the maximum rates established by the Miami-Dade Board of County Commissioners pursuant to section 30-476 of the Miami-Dade County Code, as amended, for providing recovery, non-consent towing, removal and storage services at the request of a police agency, Miami Parking Authority or a property owner or authorized representative, with or without the prior consent of the vehicle owner or other authorized person in control of the vehicle. From time to time, the maximum rates may be altered, revised, increased

or decreased by the Miami-Dade Board of County Commissioners. Such increase or decrease by the Miami-Dade Board of County Commissioners shall also apply to the city.

(b) Business enterprises who provide nonconsensual towing services shall not charge in excess of the maximum allowable rates established by the Miami-Dade Board of County Commissioners. No person providing vehicle towing and storage services pursuant to this chapter shall charge any type of fee other than that which the Miami-Dade Board of County Commissioners has established as specific rates.

(c) In addition to the maximum rates that may be charged by business enterprises providing services pursuant to this section, the city shall impose an administrative fee on the registered owner or other legally authorized person in control of a vehicle in an amount not to exceed 25 percent of the maximum towing rate for each vehicle that is recovered, towed, removed, or stored within the city. The business enterprise shall collect the administrative fee from the registered owner or other legally authorized person in control of a vehicle and remit the fee upon receipt of a monthly invoice to the business enterprise for payment of the city's administrative charges. The administrative charges are due and payable upon receipt of such invoice. Failure to remit payment of the administrative charges within 15 days of the receipt of the invoice shall result in the suspension of the license and the city may seek additional recourse from the business enterprise as set forth in section 42-109.
(Ord. No. 13513, § 1, 4-9-15; Ord. No. 13939, § 2, 11-19-20)

Editor's note—Ord. No. 13513, § 1, adopted April 9, 2015, amended section 42-110 in its entirety to read as herein set out. Formerly, section 42-110 pertained to maximum towing and storage rates for nonconsensual towing of vehicles from private property, and derived from Ord. No. 10537, § 5, adopted January 12, 1989; Ord. No. 10564, § 1, adopted March 23, 1989; the Code of 1980, § 42-80; Ord. No. 11382, § 2, adopted July 25, 1996; Ord. No. 11426, § 2, adopted December 12, 1996; Ord. No. 12285, § 1, adopted October 10, 2002; and Ord. No. 13142, § 11, adopted February 11, 2010.

Sec. 42-111. Method of payment.

Persons operating or in charge of any storage facility where vehicles are stored pursuant to this article shall accept a valid bank credit card or cash for payment of towing and storage by a registered owner or the owner's agent claiming the vehicle. In addition, persons operating or in charge of the storage facility shall have sufficient moneys on the premises to accommodate and make change in, a reasonable monetary transaction.
(Ord. No. 10537, § 6, 1-12-89; Code 1980, § 42-81)

Sec. 42-112. Impoundment of a vehicle(s) by a law enforcement agency—Procedures for notice, hearing process and posting of cash or security bonds.

(a) *Notice.* The registered owner of a vehicle impounded by a law enforcement agency shall receive a notice by telephone or by mail from the towing company, pursuant to the time parameters contained herein, that a vehicle has been towed. The registered owner shall be advised of (i) the location of the vehicle, (ii) methods to redeem the vehicle, (iii) the registered owner's right to request

an adversarial hearing before an administrative hearing officer to contest the validity of the tow and the imposition of fees within seven working days of receipt of the notice, and (iv) the procedure for requesting such adversarial hearing.

(1) *By telephone.* If the registered owner was not present when the vehicle was towed, the towing company shall, within two business days of a tow, provide telephone notice to the registered owner, provided that the telephone number of the registered owner is readily available.

(2) *By mail.* If the telephone number is not readily available or the telephone call is unsuccessful, and to the extent allowable by law, tow companies shall make a good faith effort within three business days to mail the statutory lien notice letter as required by F.S. § 713.78, but in no case shall such notice be mailed any later than seven working days after the vehicle was towed.

(b) *Hearing process.* Following the city's receipt of the request for an adversarial hearing by the registered owner, the city shall schedule such hearing to take place before a hearing officer within 30 days. The hearing officer shall conduct a full adversarial hearing, and will render a decision in writing at the conclusion of the hearing. At the hearing, it shall be the city's burden to demonstrate the existence of probable cause as to the legality of recovery and the validity of the charges for the towing and impoundment of the vehicle. If no probable cause is found, the city is liable for the cost of the towing and associated charges. If the hearing officer finds that adequate notice by the tow company was not provided, the storage charges of the tow company cannot be collected and/or will be refunded for any charge caused by the inadequate notice. No vehicle shall be disposed of by the tow company or the city police prior to the conclusion of the hearing. Formal rules of evidence shall not apply at the hearing and hearsay and circumstantial evidence shall be admissible.

(c) *Bond procedure.* A registered owner may obtain the immediate release of an impounded vehicle by posting either a cash or security bond in an amount equal to the accrued towing and storage fee with the city police department.
(Ord. No. 12384, § 1, 7-17-03)

Editor's note—Ord. No. 12384, § 1, adopted July 17, 2003, enacted provisions intended for use as subsections (1)—(3). To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as subsections (a)—(c).

Secs. 42-113—42-115. Reserved.

DIVISION 3. IMMOBILIZATION/BOOTING OF MOTOR VEHICLES*

Sec. 42-116. Licenses required.

(a) *Local business tax receipt required.* It shall be unlawful for any property owner or immobilization/booting contractor to engage in the business of immobilization of motor vehicles parked on private property without permission or authority unless such property owner or immobilization/booting contractor first obtains a local business tax receipt in accordance with the provisions set forth in chapter 31, article II of this Code.

(b) *Immobilization/booting license required.* It shall be unlawful for any property owner or immobilization/booting contractor to engage in the business of immobilization/booting of motor vehicles parked on private property without permission or authority unless such property owner or immobilization/booting contractor first applies for and obtains an immobilization/booting license, hereinafter known as a "license".
(Ord. No. 13766, § 2, 5-10-18)

*__Editor's note—__Ord. No. 13766, § 2, adopted May 10, 2018, amended division 3 in its entirety to read as herein set out. Formerly, division 3 pertained to immobilization, and derived from Ord. No. 11858, § 2, adopted November 16, 1999; Ord. No. 12885, § 1, adopted February 8, 2007; Ord. No. 13142, § 11, adopted February 11, 2010.

Sec. 42-117. Requirements for issuance of license.

No property owner or immobilization/booting contractor shall be issued a license under this article unless there is proof of compliance with each of the following requirements:

(1) *Application.* All business enterprises desiring to obtain an initial license or renew a previously issued and unrevoked license shall submit an application in writing to the finance department on all prescribed forms. The application and all supporting documents shall be retained by the finance department. All applications shall include:

a. Name of the business enterprise.

b. If the business enterprise is a corporation, the name, date, and state under whose laws such corporation was organized, and if a foreign (out-of-state) corporation, whether authorized to do business in the State of Florida, the fictitious name under which the corporation may be doing business, the names of the principal officers, directors, resident agent, and local representatives, and the business address.

c. If the business enterprise is a partnership, the fictitious name under which the partnership may be doing business and the name and business address of each partner.

d. If the business enterprise is a sole proprietorship, the fictitious name under which the sole proprietorship may be doing business and the name and business address of the natural person who owns, controls, or directs the sole proprietorship.

e. The signature of the president or vice-president of the applicant corporation, the signature of a partner of the applicant partnership, or the signature of the natural person who owns, controls, or directs the applicant sole proprietorship, as applicable.

f. Such other information and data as the chief of police may consider appropriate.

(2) *Standards for issuance of license.* The chief of police shall approve the application for issuance or renewal of a license hereunder where the chief of police finds:

a. That the application has been fully completed and submitted;

b. That the application has been fully examined and considered by the Miami Police Department ("MPD");

c. That the applicant business enterprise, if a corporation, does not have as an officer or director a person who is or was an officer, director, partner, or sole proprietor of a business enterprise which has a currently suspended license or has had its license revoked by action of the city manager as of the date of the application;

d. That the applicant business enterprise, if a partnership, does not have as a partner a person who is or was an officer, director, partner, or sole proprietor of a business enterprise which has a currently suspended license or has had its license revoked by action of the city manager within five years of the date of the application;

e. That the applicant business enterprise, if a sole proprietorship, does not have as the sole proprietor, a person who is or was an officer, director, partner, or sole proprietor of a business enterprise which has a currently suspended license or has had its license revoked by the city manager within five years of the date of the application; and

f. That a license of the applicant is not currently under suspension.

(c) *Inspection of real property where immobilization/booting is used to enforce parking restrictions.* The property owner shall provide access to the city manager or designee for the city's representative to inspect the required signs on premises where immobilization/booting is used to enforce parking restrictions.
(Ord. No. 13766, § 2, 5-10-18)

Sec. 42-118. General requirements for vehicle immobilization/booting contractors; signage; unattended lots requirements; enforcement; exemptions; penalties.

(a) *General requirements.*

(1) It shall be unlawful for a vehicle immobilization/booting contractor to procure a license by fraudulent conduct or a false statement of a material fact.

(2) It shall be unlawful for a vehicle immobilization/booting contractor to pay in the form of a gratuity any person for information as to illegally parked vehicles.

(3) It shall be unlawful for a vehicle immobilization/booting contractor or property owner to pay or receive money, or solicit or accept the payment or receipt of money or other valuable consideration, for the right to engage in vehicle immobilization on a particular property. Any such payment shall be considered a kickback.

(4) It shall be unlawful for a vehicle immobilization/booting contractor to charge fees in excess of those set out in subsection 42-118(c).

(5) It shall be unlawful for a vehicle immobilization/booting contractor to immobilize any vehicle located on any portion of a public street within the city.

(6) Prior to immobilization/booting, the property owner's or immobilization/booting contractor's representative shall attempt to notify the owner, operator, or person legally in control of the vehicle to retrieve it promptly before any booting/immobilization. A verbal warning shall satisfy the requirements of this paragraph.

(7) Immobilization/booting shall be accomplished by placing one or more steel boots on the wheel(s) of the motor vehicle.

(8) Upon immobilization/booting, the booting/immobilization contractor shall immediately affix a warning notice in English, Spanish, and Creole on the driver's side window of the vehicle indicating that the vehicle is immobilized/booted, any attempt to move the steel boot will cause damage, providing the telephone number to contact for release of the immobilization/booting device, and the fee for the removal of the steel boot. The city shall provide the immobilization/booting contractor with a form copy of the warning sign simultaneously with the issuance of its license.

(9) An immobilized/booted vehicle that remains immobilized/booted on private property for more than 24 hours shall be assessed a fine of up to $25.00 per day that the vehicle remains on the lot and/or may be towed at the discretion of the owner of the premises.

(10) A vehicle immobilization/booting contractor must maintain a 24-hour a day, 365 days per year phone number that is staffed by a live operator to communicate immediately with the owner, operator, or person legally in control of the vehicle that has been immobilized/booted by the vehicle immobilization/booting service.

(11) It shall be unlawful for a vehicle immobilization/booting contractor to immobilize vehicles at any premises, off-street parking facility, vacant lot, or other private property without having a valid written contract specifically for such services entered into with the private property owner or lawful lessee thereof.

(12) It shall be unlawful for a vehicle immobilization/booting service or operator to fail to arrive on the site where it

has immobilized/booted a vehicle within 30 minutes of being contacted by the owner, driver, or person in charge of the vehicle. It shall also be unlawful for a vehicle immobilization/booting contractor to fail to release vehicles from immobilization/booting within 30 minutes after receipt of payment from the owner, operator, or person legally in control of the vehicle that has been immobilized/booted by a vehicle immobilization/booting device. Acceptable methods of payment shall include cash, credit cards, and debit cards.

(13) It shall be unlawful for a vehicle immobilization/booting contractor to fail to provide a receipt of payment of the booting fee to the owner, operator, or person legally in control of the vehicle. The receipt shall be sequentially numbered and have the name, address, and phone number of the vehicle immobilization/booting service or company and the name and signature of the person who applied/removed the boot or vehicle immobilization/booting device. The receipt shall also include a telephone number for the Miami Police Department Wrecker Detail which is responsible for receiving complaints with respect to immobilization/booting. Any such complaints shall be addressed by the city manager or designee, as provided in subsection 42-118(v). No charge shall be imposed for the booting of a vehicle unless and until the requirements of this section have been met. Any such unlawful charge shall be reimbursed by any person found to have violated this section.

(14) In the event that the application of a vehicle immobilization/booting device damages a vehicle, then the immobilization/booting contractor must pay the cost of repairs for that damage.

(15) In the event that the owner, operator, or person legally in control of the vehicle to which an immobilization/booting device has been applied attempts to operate said vehicle or remove the device, then the vehicle immobilization/booting contractor is not liable for any damage to that vehicle. Additionally, the owner, operator, or person legally in control of the vehicle will be liable to the vehicle immobilization/booting service for the cost of damage to the vehicle immobilization/booting device.

(16) The property owner or immobilization/booting contractor shall file with the city's risk management department and have in effect at all times an insurance policy or certificates of insurance in lieu thereof which shall indemnify or insure the property owner or immobilization/booting contractor for all claims of damage to property resulting from any action or operation in connection with the service performed, such amount to not be less than $20,000.00 for each incident.

(17) The property owner or immobilization/booting contractor shall file and maintain on record at all times with the city manager or designee a list of any and all current written contracts for immobilization/booting services on private real property within the city limits. The list shall be kept current and shall provide the city with (i) the address of the real property, (ii) the date of the agreement, (iii) the property owner's name, and (iv) contact information including a name and telephone number at the premises.

(18) The immobilization/booting contractor shall keep an immobilization/booting log with information including but not limited to date and time the vehicle was observed illegally parked; compliance with this article; date and time of immobilization/booting; location/address of the real property where the immobilization/booting took place; make, model, color, and license tag number of the vehicle immobilized/booted; and receipt number issued to the owner, operator, or person legally in control of the vehicle. In addition, the immobilization/booting contractor shall include in the log verification of vehicle ownership, the name of the person

removing the steel boot, and the name of the person requesting tow service, if applicable. All files, records, and logs shall be available for inspection on the subject premises during normal working hours by the city manager or designee. Said log shall be submitted to the city manager or designee on a bi-weekly basis along with the appropriate administrative fee as required by this article. Upon procurement by the city of an electronic centralized reporting system, the immobilization/booting contractor shall be required to submit such information in electronic format to the city's centralized reporting system.

(19) The immobilization/booting contractor shall call the MPD within 30 minutes after completion of immobilizing a vehicle and notify the MPD of the immobilization/booting; the site; the time the vehicle was immobilized/booted; and the make, model, color, and license plate number of the vehicle. The immobilization/booting contractor shall obtain the name of the person at the MPD to whom such information was reported and note it in its immobilization/booting log. Upon procurement by the city of an electronic centralized reporting system, the immobilization/booting contractor shall be required to submit such information in electronic format to the city's centralized reporting system.

(20) The immobilization/booting contractor shall conduct business in an orderly, ethical, and business-like manner at all times and shall use every means to obtain and keep the confidence of the motoring public. All public contact shall be in a courteous and orderly manner.

(21) The immobilization/booting contractor's employees or agents shall wear identification tags or uniforms with identification stating the full name of the contractor and the name of the employee or agent. No identification worn by a contractor's employees or agents shall use the words "enforcement", "department", "police", or "parking". Said identification shall be prominently displayed on the front left side of the employee's or agent's shirt. The contractor's employees or agents shall not wear uniforms that bear resemblance to police or off-street parking department officers. No badges may be worn by immobilization/booting contractors, employees, or staff. All vehicles used in connection with the immobilization/booting of vehicles shall be registered and insured in the name of the immobilization/booting contractor. All of the immobilization/booting contractor's vehicles shall display the contractor's name (or name of joint venture or individual owner or other entity ownership) on the driver's and passenger's side of the vehicle in letters at least three inches high. The contractor's address (or address of joint venture, individual owner, or other entity ownership) and telephone number shall be displayed on the driver's and passenger's side of the vehicle in letters at least one inch high. All such lettering required above shall be permanently affixed to the vehicle. Magnetic signs or lettering are not permissible. No contractor shall use the words "enforcement," "department," "police," or "parking" in its contractor name (or name of joint venture, fictitious name, or entity name).

(22) The immobilization/booting contractor shall respond in writing to any complaints received by the city manager or designee concerning misconduct on the part of the immobilization/booting contractor or its employees or agents, such as excessive charges, poor business practices, discourteous service, damage to vehicles, or failure to give notice as required by this article. The city manager or designee shall notify the immobilization/booting contractor of any complaints within five business days from receipt of the complaint. The immobilization/booting contractor shall provide any additional explanation or information with respect to the particular complaint within five days upon notifica-

tion. A written disposition of the complaint will be forwarded to the immobilization/booting contractor and the complainant upon completion of the investigation.

(23) It shall be unlawful for a property owner or an immobilization/booting contractor to employ, with or without compensation, any individual, firm, company, or business, to serve as "spotters" who report the presence of unauthorized parked vehicles for purposes of immobilization/booting.

(24) It shall be unlawful for an immobilization/booting contractor to immobilize/boot a vehicle except upon the express instruction and written authorization demonstrating a signature of the property owner or agent authorizing the immobilization/booting of the vehicle. For purposes of this subsection, the term "express instruction" shall mean a clear, definite, and explicit written request by a property owner or agent to a business enterprise relating to a specific vehicle which calls for the immobilization/booting of a specific and individual vehicle parked without permission of the property owner. Such agent shall not be an officer or employee of the immobilization/booting contractor. The term "express instruction" shall not mean a general request unrelated to a specific and individual vehicle or which precedes in time the actual parking of a vehicle. Express instruction shall not be deemed to have been given by the mere posting of the notice requirement set forth below. Express instruction shall not be deemed to have been given by virtue of the mere terms of any contract or agreement between an immobilization/booting contractor and a property owner. Express instruction shall not be deemed to have been given where the instruction occurs in advance of the actual unauthorized parking of the vehicle. Express instruction shall not be deemed to have been given where the instruction is general in nature and unrelated to specific, individual, and identifiable vehicles which are already parked without authorization.

(b) *Signage requirements.*

(1) Signs must be prominently placed at each driveway access or curb allowing vehicular access to the property within five feet from the public right-of-way line. The signs shall be light-reflective with lettering that is not less than two inches high. Where there is no designated entrance, such signs shall be clearly visible from each and every parking space.

(2) The signs must be affixed upon a sign structure which shall be permanently installed with the bottom of the signs not less than four feet above ground level and shall be continuously maintained on the property for not fewer than 24 hours before the immobilization/booting of vehicles. Where there is no designated entrance, such signs shall be six feet above site grade. There shall be two signs on the premises, sign "A" and sign "B". They may be mounted on the same pole with sign "A" on top. Sign "A" shall be a minimum of 18 inches tall and appear substantially as follows:



(3) Sign "B" shall contain the following information:

a. In letters at least two inches high, that unauthorized vehicles will be immobilized or towed away at the owner's expense;

b. In letter at least four inches high, the words immobilization/tow away zone;

c. In letters at least two inches high, the days of the week and hours of the day during which vehicles will be booted;

d. In letters at least one inch high, the fee and city administrative charge to remove a steel boot from a vehicle;

e. In letters at least one inch high, the name and address of the person performing the booting service;

f. In letters at least two inches high, the telephone number to call and the on-site location (if applicable) where a person can go to request a steel boot to be removed from a vehicle; and

g. In letters at least three-fourths of an inch high, MIAMI POLICE DEPARTMENT WRECKER DETAIL NUMBER: (insert current telephone number).

(4) All signage required by this article shall comply with all other applicable laws and regulations.

(c) *Maximum immobilization/booting rates.*

(1) The maximum rate for removal of an immobilization/booting or boot device on private property that may be collected from the vehicle owner/operator is $49.99.

(2) In addition to the maximum rates that may be charged by an immobilization/booting contractor providing services pursuant to this section, the city shall impose an administrative fee on the registered owner or other legally authorized person in control of a vehicle in an amount not to exceed 25 percent of the maximum immobilization rate for each vehicle that is immobilized/booted within the city. The immobilization/booting contractor shall collect the administrative fee from the registered owner or other legally authorized person in control of a vehicle and remit the fee upon receipt of a monthly invoice sent to the immobilization/booting contractor for payment of the city's administrative charges. The administrative charges are due and payable upon receipt of such invoice. Failure to remit payment of the administrative charges within 15 days of the receipt of the invoice may result in the suspension of the license and the city may seek additional recourse from the immobilization/booting contractor as set forth below.

(3) The maximum rate for removal of an immobilization/booting or boot device on private property when the immobilization/booting contractor is still at the scene that may be collected from the vehicle owner/operator is $25.00.

(d) *Unattended parking lot requirements.* For purposes of this section, the term "unattended parking lot" shall mean a privately-owned legally operating parking facility, whether a surface lot, garage, structure, or temporary parking lot whose parking inventory is made available to the general public in exchange for consideration, which is not secured by a parking access control system such as an arm barrier or like system, and which is not supervised by on-site parking lot attendant or security personnel.

No unattended parking lot owner or operator shall be permitted to utilize an immobilization/booting contractor unless they meet the following criteria:

(1) All unattended parking lots must use a pay by phone system as the exclusive payment system. No other payment systems are permitted.

(2) Prior to giving an immobilization/booting contractor express instruction to immobilize/boot a vehicle due to an expired parking session, the unattended parking lot owner or operator must first give users of the parking lot the option to extend the parking session by mobile application, mobile web, web page, or toll-free number at least 30 minutes before the parking session expires. It shall be unlawful for an immobilization/booting

contractor to immobilize/boot a vehicle for an expired parking session unless the unattended parking lot owner or operator first alerts the parking lot user via text message that the parking session will expire in 20 minutes.

(3) All unattended parking lot owners or operators must confirm on an application if a vehicle's license plate is paid in the operator's system prior to giving Express Instruction to immobilize/boot a vehicle.

(4) If the application is not operational, the unattended parking lot owner or operator must pull/print the paid vehicle report. The unattended parking lot owner or operator may then audit the lot and give express instruction to immobilize/boot vehicles whose tags are not on the paid list.

(5) The unattended parking lot must provide signage in addition to the requirements above that inform the motor vehicle owner or operator how to utilize the pay by phone system along with a toll-free number. The sign shall not instruct the motor vehicle owner or operator to display a parking receipt on the dash of any vehicle.

(6) A motor vehicle owner or operator who provides proof of payment shall not be subject to immobilization/booting. If such a vehicle is immobilized/booted, the immobilization/boot device must be released within 30 minutes by the immobilization/booting contractor at no charge to the owner, operator, or person legally in control of the vehicle.

(7) The unattended parking lot owner or operator must hold a valid permit, certificate of use and a business tax receipt in accordance with section 35-282 of this Code.

(e) *Enforcement; exemptions; penalties.*

(1) *Enforcement.* The city manager's designee shall enforce the provisions set forth in this division. This does not preclude other law enforcement agencies from any action as deemed necessary to assure compliance with all applicable laws. If an inspector finds a violation of this division, the inspector shall issue a notice of violation to the violator as provided in section 2-823 of this Code. The notice shall inform the violator of the nature of the violation, amount of fine for which the violator may be liable, instructions and due date for paying the fine, notice that the violation may be appealed by requesting an administrative hearing within ten days after service of the notice of violation, and that failure to do so shall constitute an admission of the violation and waiver of the right to a hearing.

If at any time a property owner or immobilization/booting contractor shall fail or refuse to comply with, or violates any of the provisions of this article, such property owner engaging the services of the immobilization/booting contractor shall be subject to prosecution under the city's code enforcement system, in accordance with the provisions set forth in chapter 2, article X, of this Code. Additionally, the city may seek injunctive relief and/or follow procedures to revoke and/or suspend the local business tax receipt in accordance with the provisions set forth in chapter 31, article II, of this Code, where there are repeated violations of this article.

(2) *Exemptions.* Nothing in this article shall affect the rules and regulations governing any person or firm engaged in the towing and removal of vehicles parked on private property within the city.

(3) *Penalties.* Penalties for violations of the provisions set forth in this division are hereby established as follows:

a. Fines for violations shall be as follows:

First offense.	$250.00
Repeat offense.	500.00

b. Revocation or suspension of immobilization/booting license. The city may revoke or suspend an

immobilization/booting license. On its own motion or the written complaint of any person, the police department may investigate the action of a immobilization/booting contractor licensed under this article and cause to be conducted a proceeding before the city manager, or his designated representative, to consider whether or not to revoke or suspend a license. Such license revocation or suspension proceeding shall be conducted substantially in accordance with the hearing provisions of the City Code. A finding of fact by the city manager or designee that a licensed business enterprise has not complied with a regulation as hereinafter set forth shall be sufficient but not exclusive grounds for the city manager to revoke or suspend the license of a business enterprise. In addition, the city may file a suit for injunctive relief to enjoin the operation of the contractor in violation of this division.

c. As an additional means for enforcement/collection and supplemental to the above, when a notice or record of any past due penalties which became due and payable to the city after the effective date of Ordinance No. 11858 is recorded in the public records of Miami-Dade County, said notice shall constitute a special assessment lien upon all real and personal property of the contractor owing such penalties, and shall remain a lien equal in rank and dignity with the lien of ad valorem taxes and shall be superior in rank and dignity to all other liens, encumbrances, titles and claims in to or against the property involved. Such liens may be foreclosed or levied upon in the manner provided by law.

d. In addition to the above, a violation of this article may be punished by imprisonment not to exceed 60 days or by imposition of a fine not to exceed $500.00, or both.

e. Revocation of business tax receipt. The city may also revoke the contractor's business tax receipt in accordance with the provisions set forth in chapter 31, article X, of this Code.

(Ord. No. 13766, § 2, 5-10-18; Ord. No. 13939, § 2, 11-19-20)

DIVISION 4. POLICE TOWS

Sec. 42-119. Police tows and Miami Parking Authority tows.

(a) The maximum tow rates for police and Miami Parking Authority tows shall be the same as provided in section 42-110.

(b) In addition to the maximum rates that may be charged by business enterprises providing services pursuant to this section, the city shall impose an administrative fee on the registered owner or other legally authorized person in control of a vehicle in an amount not to exceed 25 percent of the maximum towing rate for each vehicle that is recovered, towed, removed, or stored within the city. The business enterprise shall collect the administrative fee from the registered owner or other legally authorized person in control of a vehicle and remit the fee upon receipt of a monthly invoice to the business enterprise for collection of the city's administrative charges. The administrative charges are due and payable upon receipt of such invoice. Failure to remit payment of the administrative charges within 15 days of the receipt of the invoice shall result in the suspension of the license and the city may seek additional recourse from the business enterprise as set forth in section 42-109.

(Ord. No. 13513, § 1, 4-9-15; Ord. No. 13939, § 2, 11-19-20)

Editor's note—Ord. No. 13513, § 1, adopted April 9, 2015, amended section 42-119 in its entirety to read as herein set out. Formerly, section 42-119 pertained to maximum towing and storage rates for police department and department of off-street parking dispatched towing and wrecker service for private vehicles, and derived from Ord. No. 12285, § 1, adopted October 10, 2002; Ord. No. 12694, § 1,

adopted June 9, 2005; Ord. No. 12828, § 1, adopted July 13, 2006, and Ord. No. 13142, § 11, adopted February 11, 2010.

ARTICLE V. VEHICLE IMPOUNDMENT

Sec. 42-120. Definitions.

For the purpose of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Commercial purpose. The words "commercial purpose" shall mean for the purpose of economic gain.

Commercial vehicle. The words "commercial vehicle" shall mean a vehicle that is owned or used by a business corporation, association, partnership or sole proprietorship or any other entity conducting business for a commercial purpose.

Dump. The word "dump" shall mean to dump, throw, discard, place, deposit, or dispose of.

Hazardous waste. The words "hazardous waste" shall mean solid waste, or a combination of solid waste, which because of its quantity, concentration, or physical, chemical, or infectious characteristics, may cause, or significantly contribute to an increase in mortality or an increase in serious irreversible or incapacitating reversible illness or may pose a substantial present or potential hazard to human health or the environment when improperly transported, disposed of, stored, treated, or otherwise managed.

Litter. The word "litter" shall mean any garbage, rubbish, trash, refuse, can, bottle, box, container, paper, tobacco products, tire, appliance, mechanical equipment or part, building or construction material, tool, machinery, wood, motor vehicle or motor vehicle part, vessel, farm machinery or equipment, sludge from a waste treatment facility, water supply treatment plant, or air pollution control facility, or substance in any form resulting from domestic, industrial, commercial, mining agricultural, or governmental operations.

Motor vehicle. The words "motor vehicle" shall mean an automobile, motorcycle, truck, trailer, semitrailer, truck, tractor, or semitrailer combination or any other vehicle that is powered by a motor.

Owner. The term owner shall have the same meaning as provided in F.S. § 316.003(26), as amended.

Person. The word "person" shall mean any individual, firm, sole proprietorship, partnership, corporation or unincorporated associations.

Vessel. The word "vessel" shall mean a boat, barge, or airboat or any other vehicle used for transportation on water.
(Ord. No. 11700, § 2, 9-28-98; Ord. No. 13088, § 2, 9-24-09)

Sec. 42-121. Impoundment of motor vehicles, controlled substances, prostitution, and illegal dumping of waste.

(a) A motor vehicle shall be subject to seizure and impoundment whenever a police officer has probable cause to believe that the vehicle:

(1) Contains any controlled substances or cannabis as defined in Chapter 893, Florida Statutes;

(2) Was used in the purchase, attempt to purchase, sale, or attempt to sell such controlled substances or cannabis;

(3) Was used to facilitate the commission of any act of prostitution, assignation or lewdness as defined in F.S. § 796.07; or

(4) Was used to dump litter in any manner as prohibited in F.S. § 403.413(4) (1997), in an amount exceeding 15 pounds in weight or 27 cubic feet in volume, but not exceeding 500 pounds in weight or 100 cubic feet in volume and not for commercial purposes; or

(5) Was used to dump litter as prohibited in F.S. § 403.413(4) (1997) in an amount exceeding 500 pounds in weight or 100 cubic feet in volume or in any quantity for commercial purposes, or dumps litter which is hazardous waste.

(b) Upon seizing the motor vehicle, the police officer shall:

(1) Provide for the towing of the vehicle pursuant to the city rotational wrecker system and all applicable towing procedures; and

(2) Provide written notice of such seizure and impoundment to all persons whom the city knows, or with reasonable investigation should know, have a legal interest in the subject property. The written notice shall advise the persons of the following:

a. The right to request a preliminary hearing pursuant to section 42-122 to contest the seizure and impoundment of the vehicle;

b. The right to request a preliminary hearing pursuant to section 42-122 to contest the seizure and impoundment of the vehicle and immediately retrieve the vehicle from the towing facility upon the posting with the city of a cash bond in the amount of $500.00, plus towing and storage costs; or

c. The right to waive the preliminary hearing and immediately retrieve the vehicle from the towing facility upon the payment of the $500.00 administrative penalty, plus towing and storage costs.

(c) The required notices to be given pursuant to this section shall be provided by hand delivery at the time of the seizure and impoundment of the vehicle to the person in control of the vehicle and all other persons whom the city knows, or with reasonable investigation should know, have a legal interest in the subject property by certified mail, return receipt requested, within 48 hours of the time of the impoundment excluding Saturdays, Sundays, and legal holidays.

(d) This section shall not apply and the vehicle shall not be seized or impounded if:

(1) The possession, use or sale of the controlled substance and/or cannabis is authorized by F.S. ch. 893 or ch. 499;

(2) The vehicle was reported stolen at the time that it is subject to seizure and impoundment;

(3) The vehicle was operating as a common carrier at the time it was subject to seizure and impoundment;

(4) A law enforcement agency has expressed its intent, in writing, to institute state forfeiture proceedings on the vehicle; or

(5) The vehicle is rented from a company engaged in the business of renting vehicles.

(Ord. No. 11445, § 2, 2-20-97; Ord. No. 11592, § 1, 1-13-97; Ord. No. 11621, § 2, 3-10-98; Ord. No. 11700, § 2, 9-28-98; Ord. No. 13088, § 2, 9-24-09; Ord. No. 13146, § 2, 3-11-10)

Sec. 42-122. Hearings, administrative civil penalty.

(a) The owner of the motor vehicle, or his/her agent or authorized representative shall make a written request for a preliminary hearing within five days from the date notice is received then:

(1) The city shall hold such hearings before a special master or alternate special master of the city within ten days of receipt of the written request, excluding Saturdays, Sundays, and legal holidays.

(2) At the hearing, the city shall have the burden to show that probable cause exists to believe that the motor vehicle is subject to impoundment and continued seizure under section 42-121. If the vehicle owner raises as a defense at the preliminary hearing that he/she was unaware that the vehicle was being used or was likely to be used in violation of this article, the city shall establish by a preponderance of the evidence that the owner either knew, or should have known after a reasonable inquiry, that the vehicle was being used or was likely to be used in criminal activity.

(3) The formal rules of evidence shall not apply at the hearing and hearsay and circumstantial evidence is admissible.

(4) If, after the hearing, the special master or alternate special master determines that probable cause exists to believe that the motor vehicle is subject to impoundment and continued seizure, he/she shall order the continued impoundment of the vehicle and set the date for a final hearing. The owner or his/her agent or authorized representative, if he/she has not already done so, may immediately retrieve the vehicle from the towing facility upon the posting with the city of a cash bond in the amount of $500.00, plus the accumulated costs of towing and storing the vehicle, without impairing the right to a final hearing.

(5) If, after the hearing, there is a finding of no probable cause, the vehicle shall be released forthwith to the owner or his/her agent or authorized representative without the imposition of the administrative civil penalty. If the owner, agent or authorized representative has already posted a bond for the immediate release of his/her vehicle, the bond shall be refunded to the owner, agent or authorized representative.

(b) The final hearing shall be scheduled and held, unless continued by order of the special master or alternate special master, no later than 30 days after the date that the vehicle was seized and impounded. At the final hearing, the city shall have the burden to show by clear and convincing evidence that the vehicle was used as set forth in subsections 42-121(a)(1) through (5). If the owner of the vehicle asserts as a defense that he/she was not aware that the vehicle was being used or was likely to be used in violation of this article, the city shall establish by a preponderance of the evidence that the owner either knew, or should have known after a reasonable inquiry, that the vehicle was being used or was likely to be used in violation of this article. If, after the hearing, a finding is made that the vehicle is subject to impoundment and seizure then the special master or alternate special master of the city shall enter an order finding the owner of record of the vehicle civilly liable to the city for an administrative civil penalty of up to $500.00, as outlined in subsection 42-121(b)(2), plus towing and storage costs. If, after the hearing, a finding is made that the city did not meet its burden of proof as set forth in this subsection or that one of the exceptions of subsection 42-121(d) applies, the vehicle shall be returned to the owner along with any cash bond posted.

(Ord. No. 11445, § 2, 2-20-97; Ord. No. 11592, § 1, 1-13-97; Ord. No. 11621, § 2, 3-10-98; Ord. No. 11700, § 2, 9-28-98; Ord. No. 13088, § 2, 9-24-09; Ord. No. 13142, § 11, 2-11-10; Ord. No. 13146, § 2, 3-11-10)

Sec. 42-123. Administrative civil penalty; payment.

If an administrative civil penalty is imposed pursuant to sections 42-121 and 42-122, such penalty shall constitute a debt due and owing the city and shall be independent of the city's return or release of the vehicle. If a cash bond has been posted pursuant to section 42-122, the bond shall be applied toward payment of the penalty.

(Ord. No. 11445, § 2, 2-20-97; Ord. No. 11592, § 1, 1-13-97)

Sec. 42-124. Return of vehicle; disposition of unclaimed vehicles.

Except as provided otherwise in section 42-122, an impounded vehicle shall be returned to its record owner, or to the person who is legally entitled to possess the vehicle, upon his/her payment of the administrative civil penalty to the city, plus towing and storage fees, unless the vehicle had been sold or otherwise disposed of to satisfy a judgment or enforce a lien as provided by law.

Vehicles which remain unclaimed after a final determination is made by a special master shall be disposed of pursuant to Florida Statutes and all other applicable laws.

(Ord. No. 11445, § 2, 2-20-97; Ord. No. 11592, § 1, 1-13-97; Ord. No. 11700, § 2, 9-28-98)

Sec. 42-125. Appeal.

The owner of the motor vehicle that has been the subject of a seizure and impoundment pursuant to sections 42-121 and 42-122 or the city may

appeal the final ruling and decisions of the special master or the alternate special master of the city, to the circuit of the 11th Judicial Circuit of Dade County, Florida, within 30 days of the date of the final order being appealed. The city may charge the appellant a reasonable fee for preparation of the record for purposes of making the appeal.
(Ord. No. 11445, § 2, 2-20-97)

Chapters 43, 44

RESERVED

Chapter 45

PUBLIC ORDER*

Sec. 45-1.	Definitions.
Sec. 45-2.	Declaration of state of emergency by the mayor.
Sec. 45-3.	Emergency measures—Effect of declaration of emergency.
Sec. 45-4.	Same—Designated.
Sec. 45-5.	Filing and publication of state of emergency and emergency measures.
Sec. 45-6.	Duration and termination of state of emergency.
Sec. 45-7.	Designation of public shelters.
Sec. 45-8.	Prohibition against unconscionable prices (price gouging) during a declared state of emergency

*__State law reference—__Preservation of public peace by local authority, F.S. § 870.041 et seq.

Sec. 45-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Alcoholic beverage: Shall mean beverages including liquor, wine or beer containing more than one-half of one percent of alcohol by weight.

Firearm: Any revolver, pistol, automatic-loading pistol, shotgun or rifle, machine gun, submachine gun, machine pistol or any fully automatic weapon capable of firing more than one shot at each pull of the trigger.
(Code 1967, § 45A-1; Code 1980, § 45-1)

Sec. 45-2. Declaration of state of emergency by the mayor.

Whenever the mayor determines that there has been an act of violence or a flagrant and substantial defiance of or resistance to a lawful exercise of public authority, and that, partly on account thereof, there is reason to believe that there exists a clear and present danger of a riot or other general public disorder, widespread disobedience of the law, and substantial injury to persons or to health, safety, welfare or protection of persons, or damage to property, all of which constitutes a threat to public peace or order and to the general welfare of the city or a part or parts thereof, the mayor may declare that a state of emergency exists within the city or any part or parts thereof, in accordance with the provisions of the city Charter, even in the absence of a declaration of a state of emergency at the county, state, and/or federal level.
(Code 1967, § 45A-2; Code 1980, § 45-2; Ord. No. 11564, § 16, 10-28-97; Ord. No. 12585, § 2, 9-9-04)

Sec. 45-3. Emergency measures—Effect of declaration of emergency.

Whenever the mayor declares that a state of emergency exists, in accordance with the provisions of the city Charter, the emergency measures provided in section 45-4 shall thereupon be in effect during the period of such emergency and throughout the city, and the city manager may order and promulgate all or any of the emergency measures provided in section 45-4, in whole or in part, and with such limitations and conditions as he/she may deem appropriate, and any such emergency measure so ordered and promulgated shall thereupon be in effect during the period of such emergency, and in the area or areas for which the emergency has been declared. Upon the declaration of an emergency by the city manager, as soon as practicable, the commission shall immediately convene for the purpose of determining whether or not an emergency does exist. Their finding in the matter shall be conclusive. Upon finding that no emergency does in fact exist, this chapter shall not be operative.
(Code 1967, § 45A-3; Code 1980, § 45-3; Ord. No. 11564, § 16, 10-28-97; Ord. No. 13676, § 2, 4-27-17)

Sec. 45-4. Same—Designated.

The following are designated as emergency measures:

(1) The city manager shall establish curfews under such terms and conditions as he/she deems necessary for the preservation of peace, health, and safety for the citizenry, including, but not limited to, the prohibition of or restrictions on pedestrian and vehicular movement, standing and parking, and any person violating the terms of the curfew as established by the city manager shall be subject to the penalty set out in section 1-13. The city manager may make such exceptions to this curfew as may be necessary for the provision of designated essential services such as fire, police and hospital services, including the transportation of patients thereto, utility emergency repairs and emergency calls by physicians.

(2) The sale of any alcoholic beverage is prohibited.

(3) The possession on the person in a public place of any portable container containing any alcoholic beverage is prohibited.

(4) The city manager may, in his/her discretion, close places of public assemblage,

with designated exceptions, and assemblage by any person or persons in such closed place is prohibited.

(5) The sale or other transfer of possession, with or without consideration, of gasoline or any other flammable or combustible liquid or gas, except by delivery into a tank properly affixed to an operable motor-driven vehicle, bike, scooter, boat or airplane and necessary for the propulsion thereof, is prohibited.

(6) The possession in a public place of any portable container containing gasoline or any other flammable or combustible liquid or gas is prohibited.

(7) There will be a prohibition against unconscionable prices (price gouging) during a declared state of emergency. The declared state of emergency may be at the municipal, county, state, and/or federal level.

(Code 1967, § 45A-4; Code 1980, § 45-4; Ord. No. 12585, § 2, 9-9-04; Ord. No. 13293, § 3, 11-17-11; Ord. No. 13676, § 2, 4-27-17)

State law reference—Emergency measures, F.S. §§ 870.044, 870.045.

Sec. 45-5. Filing and publication of state of emergency and emergency measures.

Any state of emergency or emergency measure declared or ordered and promulgated by virtue of the terms of this chapter shall, as promptly as practicable, be filed in the office of the city clerk, and immediate notice thereof given to the chief of police, in writing. The city manager is authorized to give notice thereof to the appropriate news media for publication and for radio and television stations. The city manager shall forthwith cause to be published in a daily newspaper a notice of the state of emergency.
(Code 1967, § 45A-5; Code 1980, § 45-5)

Sec. 45-6. Duration and termination of state of emergency.

A state of emergency established under this chapter shall commence upon the declaration thereof by the mayor as set forth in section 45-2 and shall terminate at the end of 72 hours unless prior to the end of such 72-hour period the city commission shall, by resolution, terminate such state of emergency or shall declare an additional period of time for which the state of emergency shall exist. If the city commission fails to extend the state of emergency, the state of emergency is terminated.
(Code 1967, § 45A-6; Code 1980, § 45-6; Ord. No. 11564, § 16, 10-28-97)

State law reference—Similar provisions, F.S. § 870.047.

Sec. 45-7. Designation of public shelters.

The city manager is hereby authorized to designate public buildings and facilities as shelters in time of emergency. The interference by any person or persons in the operation of the shelters is prohibited.
(Code 1967, § 45A-7; Code 1980, § 45-7)

Sec. 45-8. Prohibition against unconscionable prices (price gouging) during a declared state of emergency.

(a) As used in this section:

Average retail price means the average price at which similar merchandise or services was sold during the 30 days immediately preceding the declaration of emergency.

Commodity means any goods, services, materials, merchandise, supplies, equipment, resources, other article of commerce, and includes, without limitation, food, water, ice, chemicals, petroleum products, and lumber necessary for consumption or use as a direct result of an emergency.

State of emergency means an occurrence or threat thereof, whether accidental, natural, or man-made, during times of war or in peace, which results or may result in substantial injury or harm to the population or substantial damage to or loss of property in the city, county, state, and/or nation. Declaration of a state of emergency may be made at the federal, state, county and/or municipal level.

(b) It is prima facie evidence that a price is unconscionable if:

(1) The amount charged represents a gross disparity between the price of the commodity or rental or lease of any dwelling unit or self-storage facility that is the subject of the offer or transaction and the average price at which that commodity or dwelling unit or self-storage facility was rented, leased, sold, or offered for rent or sale in the usual course of business during the 30 days immediately prior to a declaration of a state of emergency, and the increase in the amount charged is not attributable to additional costs incurred in connection with the rental or sale of the commodity or rental or lease of any dwelling unit or self-storage facility, or national or international market trends; or

(2) The amount charged grossly exceeds the average price at which the same or similar commodity was readily obtainable in the trade area during the 30 days immediately prior to a declaration of a state of emergency, and the increase in the amount charged is not attributable to additional costs incurred in connection with the rental or sale of the commodity or rental or lease of any dwelling unit or self-storage facility, or national or international market trends.

(c) Upon a declaration of a state of emergency applicable to any portion of the city by the President of the United States, the governor of the state, the mayor of Miami-Dade County, and/or the mayor of the city, it shall be unlawful for a person or business, or their agent or employee, to rent or sell or offer to rent or sell at an unconscionable price, within the area for which the state of emergency is declared, any essential commodity including, but not limited to: food, water, ice, chemicals, petroleum products, lumber, supplies, services, provisions, or equipment, or any dwelling unit or self-storage facility, that is necessary for consumption or use as a direct result of the emergency. This prohibition shall remain in effect until the declaration expires or is terminated.

(d) A price increase approved by an appropriate government agency shall not be a violation of this section.

(e) This section shall not apply to sales by growers, producers, or processors of raw or processed food products, except for retail sales of such products to the ultimate consumer within the area of the declared state of emergency.

(f) In addition to the remedies elsewhere provided in this section, the city manager or his or her designee shall have the authority to institute a civil action in a court of competent jurisdiction:

(1) To seek temporary or permanent, prohibitory or mandatory injunctive relief to enforce compliance with or prohibit the violation of this section;

(2) To impose and recover a civil penalty in an amount of not more than $10,500.00 for each violation of this section; and

(3) To recover any sums and costs expended by the city in tracing, investigating, preventing, controlling, abating or remedying violation of this section. Each day during which any portion of such violation occurs, constitutes a separate violation. In any such action in which the city prevails, the court shall award the city reasonable attorney's fees.

(g) The city manager or his or her designee shall have the power to investigate compliance with the requirements of this section and incident thereto may subpoena witnesses, administer oaths, and require the production of records.

(h) Any violation of this section may be enforced by the city in an administrative hearing before a code enforcement board or special master and by the Miami-Dade County state attorney's office. Each occurrence of unconscionable pricing (price gouging) shall constitute a separate violation and/or offense.

(i) In addition to the remedies elsewhere provided in this section, any person found guilty of violating any provision of this section may be punished by a fine not to exceed $500.00 for each

violation, or may be arrested and/or imprisoned in the county jail for a period not to exceed 60 days, or both.
(Ord. No. 12585, § 2, 9-9-04; Ord. No. 13142, § 12, 2-11-10)

Chapter 46

PUBLIC NUISANCES*

Sec. 46-1. Definitions.
Sec. 46-2. Nuisance abatement board.
Sec. 46-3. Procedures.
Sec. 46-4. Conduct of hearings.
Sec. 46-5. Post hearing.
Sec. 46-6. Enforcement of orders.
Sec. 46-7. Appeals.
Sec. 46-8. Enjoining of nuisances.
Sec. 46-9. Costs.
Sec. 46-10. Prostitution, sexual activity, assignation, lewdness, soliciting or manifesting an intent to solicit prostitution, sexual activity, assignation, or lewdness.

*__Charter reference—__Power of city to abate nuisances, § 3(p).
__State law reference—__Public nuisances, F.S. chs. 381—386.

Sec. 46-1. Definitions.

For the purpose of this chapter a "public nuisance" is defined as any place or premises that has been used:

(1) On more than two occasions within a six-month period, as the site of a violation of F.S. § 796.07 as amended, entitled "Prohibiting prostitution, etc.";

(2) On more than two occasions within a six-month period, as the site of the unlawful sale, delivery, manufacture, or cultivation of any controlled substance;

(3) On one occasion as the site of the unlawful possession of a controlled substance, where such possession constitutes a felony and that has been previously used on more than one occasion as the site of the unlawful sale, delivery, manufacture, or cultivation of any controlled substance;

(4) By a criminal street gang for the purpose of conducting a pattern of criminal street gang activity as defined by F.S. § 874.03 as amended; or

(5) On more than two occasions within a six-month period, as the site of a violation of F.S. § 812.019 as amended, relating to dealing in stolen property.

(6) On more than two occasions within a six-month period, as the site of a violation of any combination of the following:

a. F.S. § 782.04, relating to murder;

b. F.S. § 782.051, relating to attempted felony murder;

c. F.S. § 784.045(1)(a)2., relating to aggravated battery with a deadly weapon; or

d. F.S. § 784.021(1)(a), relating to aggravated assault with a deadly weapon without intent to kill.

Such property may be declared to be a public nuisance, and such nuisance may be abated pursuant to the procedures provided in this chapter.

For the purpose of this chapter "operator" means an owner or person having possession or charge of as agent or otherwise having interest in or control of the building, place or premises.

For the purpose of this chapter, "complaint" shall mean the official process by which cases are initiated and brought before the nuisance abatement board.

Notwithstanding any other law, a rental property that is declared a nuisance under this section may not be abated or subject to forfeiture under the Florida Contraband Forfeiture Act if the nuisance was committed by someone other than the property owner and the property owner commences rehabilitation of the property within 30 days after the property is declared a nuisance and completes the rehabilitation within a reasonable time thereafter.
(Ord. No. 12470, § 2, 1-8-04; Ord. No. 13988, § 2, 4-8-21)

Editor's note—Ord. No. 12470, § 2, adopted January 8, 2004, repealed and reenacted § 46-1 to read as herein set out. Formerly, § 46-4 pertained to similar subject matter and derived from Ord. No. 10883, § 1, adopted May 9, 1991; Ord. No. 10990, § 2, adopted June 11, 1992; the Code of 1980, § 45.5-1; and Ord. No. 11573, § 2, adopted November 26, 1997.

Sec. 46-2. Nuisance abatement board.

(a) *Created; membership; terms; compensation.*

(1) The code enforcement board is hereby designated and established as the nuisance abatement board (the "board").

(2) The terms of office of the board members shall coincide with the terms of office of the code enforcement board members.

(3) Members shall serve without compensation but may be reimbursed for such travel, mileage, and per diem expenses as may be authorized by the city manager.

(b) *Hearings; administrative staff support; board case files, documents.*

(1) The chairperson of the board may call hearings of the board. Hearings may also be called by written notice signed by at least three members of the board. The

clerk of the board may also set future hearing dates. The board shall attempt to convene no less than once every month but may meet more than once every month as the board may deem necessary as provided herein. Minutes shall be kept of all hearings and all hearings shall be open to the public. The board may rely on advice from independent legal counsel who shall be appointed by the city attorney. The city commission, by and through the city manager shall provide all necessary clerical and administrative staff support to the board, including space and necessary expenses which may be reasonably required by the board for the proper performance of its duties.

(2) The city manager shall designate clerical and administrative personnel as may be reasonably required for the proper performance of the board's duties. The clerk so designated in writing by the city manager shall be the custodian of all board case files and documents pertaining thereto and shall have the authority to certify orders and other documents issued by the board; the clerk shall adopt and use an official seal for this purpose; the clerk is also empowered to administer an oath to witnesses appearing before said board and to issue subpoenas in the name of the board for service of process by any city police officer.

(3) The city attorney or designee thereof shall represent the city as prosecutor and present cases before the board, and shall not therefore act as counsel for the board.

(4) In the event that the city owns or operates a building, place or premises which is the subject of a nuisance complaint, the law department shall prosecute the complaint and the city attorney must receive commission approval to retain independent counsel to defend in the city's defense.

(Ord. No. 10883, § 1, 5-9-91; Ord. No. 10990, § 2, 6-11-92; Ord. No. 11130, § 15, 3-24-94; Ord. No. 11189, § 5, 10-27-94; Code 1980, § 45.5-2; Ord. No. 11373, § 10, 6-27-96; Ord. No. 11564, § 17, 10-28-97; Ord. No. 13349, § 2, 11-15-12)

Sec. 46-3. Procedures.

(a) *Written complaint; reports.*

(1) Any employee, officer of the city or any resident of the city, may file a written complaint under oath with the department of police after giving not less than three days' notice of such complaint to the owner of the place or premises regarding a public nuisance as defined herein. Notice of the complaint shall be sent to the owner at his/her last known address. "Notice," as used in this subsection, shall be given to the operator at the operator's last known address by mailing through the use of certified mail of written material informing the operator of the complaint to be filed. The operator shall notice any tenant, lessee, and lessor of the complaint.

(2) The complaint shall state facts that reasonably tend to establish the existence of a public nuisance located within the city. Such complaint of a public nuisance shall only be for those as enumerated in section 46-1 and city Charter section 3(p).

(3) Any police officer making an arrest or substantiating an incident or occurrence of any statutory violation(s) or violations of section(s) set forth herein or any public service aide substantiating an incident or occurrence of a breach of any section(s) set forth herein and pursuant to information or independent observation shall submit a copy of every such report and/or offense incident report to the office of the chief of police or designee thereof who shall process all such reports and determine when the requisite number of occurrences or violations have taken place as set forth in section 46-1.

(b) *Processing; review of case.*

(1) In each case where such determination has been made in accordance with subsection (a) above, the case shall be processed through the office of the chief of police and forwarded to the city attorney for his/her determination that such case is sufficient for presentation to the board for its consideration and disposition as provided herein.

(2) The city attorney, or designee thereof, upon receipt of verification by the office of the chief of police that all administrative prerequisites have been satisfied shall direct the clerk of the board to prepare a case folder for a complaint related to the maintenance of the public nuisance as defined in section 46-1. The city attorney or designee thereof prior to presenting a case to the board shall review the case for legal sufficiency and, if applicable, shall promptly notify the clerk of the board of any legal insufficiencies in the case.

(c) *Hearings; hearing notices.*

(1) The clerk of the nuisance abatement board shall schedule all hearings and issue hearing notices servicing the same (a) by sending written notice of the hear-

ing by certified mail, return receipt requested, or (b) by hand delivering the written notice to the operator of the premises at the operator's last known address at least 15 calendar days prior to the scheduled hearing. If an attempt to serve notice upon the owner(s) and operator(s) by hand delivery or certified mail is unsuccessful, service of the notice of the hearing may be made by posting the premises as provided in F.S. ch. 48, such posting to take place not less than ten days before the scheduled hearing date. The operator shall be responsible for the notice, to any tenant, lessee or lessor, of a hearing.

(2) The notice of hearing shall include a:

a. Statement of the time, place, and nature of the hearing;

b. Statement of the legal authority and jurisdiction under which the hearing is to be held;

c. Reference to the particular sections of the statutes and/or ordinances involved; and

d. A short and plain statement of facts summarizing the incidents complained of.

(Ord. No. 10883, § 1, 5-9-91; Ord. No. 10990, § 2, 6-11-92; Code 1980, § 45.5-3; Ord. No. 11573, § 2, 11-26-97)

Sec. 46-4. Conduct of hearings.

(a) The city attorney, or designee thereof, shall present evidence before the board on behalf of the city. All parties shall have an opportunity to present evidence and argument on all issues involved, conduct cross examination and submit rebuttal evidence, and to be represented by counsel.

(b) The board may consider any evidence, including evidence of the general reputation of the place or premises. All testimony shall be given under oath and shall be recorded. Formal rules of evidence shall not apply, but fundamental due process shall govern the proceedings. Orders of the board shall be based upon competent and substantial evidence.

(c) The city attorney or his/her designee shall have the burden of proving the existence of an unlawful public nuisance by clear and convincing evidence.

(d) If the alleged violator(s) has been properly noticed in regard to the hearing before the board and fails to appear, the board may proceed with a hearing in absentia on the merits of the alleged violation. Any findings or orders resulting from such hearing are valid and binding upon the violator(s).

(Ord. No. 10883, § 1, 5-9-91; Ord. No. 10990, § 2, 6-11-92; Code 1980, § 45.5-4; Ord. No. 13676, § 2, 4-27-17)

Sec. 46-5. Post hearing.

(a) At the conclusion of the hearing and after considering all evidence presented at such hearing, the board is authorized to issue findings of fact based upon the evidence presented and made part of the record that a public nuisance does not exist or that an unlawful public nuisance does exist.

(b) Upon finding that an unlawful public nuisance does exist the board shall immediately order any one or all of the following:

(1) The discontinuance of the nuisance;

(2) The closing of the place or premises;

(3) The prohibition of conduct, operation, or maintenance of any business or activity on the premises, and/or business or activity which is conducive to the maintenance of such nuisance, which prohibition may include the suspension or revocation of any city local business tax receipt issued or renewed pursuant to the provisions of chapter 31;

(4) The payment to the city by the operator(s) of a fine of $250.00 for an initial finding by the board of the existence of a public nuisance and $500.00 for each

subsequent finding in, at or on the same premises pursuant to F.S. §§ 823.01 and 775.083(e); or

(5) The board may order any combination of subsection (b)(1), (2), (3) or (4) hereinabove.

(c) For purposes of subsection (b) above, the nuisance abatement board shall function as the designee of the city manager for consideration of nuisance-related suspension or revocation of any local business tax receipt and the board hearings shall be in lieu of section 31-48 hearing.

(d) The findings and orders shall be by motion approved by a majority of those present and voting. Any motion failing to obtain the required vote shall preclude the issuance of such findings and order.

(e) An order entered pursuant to this chapter shall expire after one year or at such earlier time as stated in the order. The board may retain jurisdiction to modify the orders prior to the expiration of the orders, where just cause is found to exist.

(f) The board may bring a complaint under F.S. § 60.05 seeking a permanent injunction against any nuisance described herein.
(Ord. No. 10883, § 1, 5-9-91; Ord. No. 10990, § 2, 6-11-92; Code 1980, § 45.5-5; Ord. No. 12885, § 1, 2-8-07)

Sec. 46-6. Enforcement of orders.

(a) The city attorney is authorized to initiate contempt proceedings in the circuit court of the 11th judicial circuit for willful disobedience or failure to comply with any order of the board.

(b) Further, the city attorney is authorized to initiate proceedings in any county, state or federal forum for the suspension or revocation of any permits, licenses, concessions or contracts held or awarded to the violator including contracts awarded under F.S. § 24.112 and including licenses for the sale of beverages issued under F.S. § 561.19 where the existence of such permits, licenses, concessions or contracts is conducive to the maintenance of such nuisance.

(c) Orders of the nuisance abatement board issued pursuant to this chapter shall be posted at the place, building, or premises where the public nuisance exists, existed or is occurring, in violation of the law and shall be sent by certified mail to the owner of record of such place, building, or premises within two business days of the posting.

(d) Five business days after the posting of an order issued pursuant to the nuisance abatement board, city police officers shall be authorized to act upon and enforce such orders in accordance with section 46-5 hereof.
(Ord. No. 10883, § 1, 5-9-91; Code 1980, § 45.5-6)

Sec. 46-7. Appeals.

An aggrieved party, including the city, may appeal a final order of the nuisance abatement board to the appellate division of the circuit court of the 11th judicial circuit. Such an appeal shall not be a hearing de novo but shall be limited to appellate review of the record created before the nuisance abatement board. An appeal shall be filed within 30 days of the date of the written order appealed from.
(Ord. No. 10883, § 1, 5-9-91; Code 1980, § 45.5-7)

Sec. 46-8. Enjoining of nuisances.

When any business person, party or entity is found to be erecting, establishing, continuing, maintaining ownership or to be leasing the use of any building, places or premises located in the city and in which the health of the community is threatened or the morals and welfare of the people are injured and in which any nuisance exists, as defined in F.S. chs. 823, 893, 796 or 849 or any of the Code sections as stated herein, such business persons, parties or entities may be sued by the city attorney in the name of the State of Florida or by any citizen of the city for such relief and damages as may be recognized by law.

(1) The nuisance abatement board may bring a complaint under F.S. § 60.05 and seek a permanent injunction against any public nuisance.

(2) All powers and rights conferred by this section shall be in addition to and supplemental to those conferred by any

other general or special laws governing public nuisances and shall be liberally construed to effectuate the purpose of this chapter.

(Ord. No. 10883, § 1, 5-9-91; Code 1980, § 45.5-8)

Sec. 46-9. Costs.

In the event that the board declares a place or premises to be a nuisance and issues an order pursuant to subsection 46-5(b) above, the board shall assess against the owner of the place or premises the costs which the city has incurred in the preparation, investigation, and presentation of the case. These costs shall be due and payable ten days after the written order of the board has been filed. A certified copy of an order imposing a fine and/or costs may be recorded in the public records and thereafter shall constitute a lien against the land on which the violation exists or, if the violator does not own the land, upon any other real or personal property owned by the violator; and it may be enforced in the same manner as a court judgment by the sheriffs of this state including levy against the personal property, but shall not be deemed to be a court judgment except for enforcement purposes. After one year from the filing of any such lien which remains unpaid, the city may foreclose or otherwise execute on the lien. Interest shall accrue on the unpaid costs at the legal rate of interest set forth in F.S. § 55.03, as may be amended from time to time.

(Ord. No. 11130, § 16, 3-24-94; Code 1980, § 45.5-9; Ord. No. 11573, § 2, 11-26-97)

Sec. 46-10. Prostitution, sexual activity, assignation, lewdness; soliciting or manifesting an intent to solicit prostitution, sexual activity, assignation, or lewdness.

(a) This section may be referred to as the "Prostitution Ordinance." Nothing herein shall be construed as prohibiting mere loitering in any public place.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

(1) *Prostitution* shall have the meaning as set forth in F.S. § 796.07(1), as the same may be amended from time to time.

(2) *Within public view* means within areas generally accessible by or visible to the public, including streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots, unenclosed automobiles (whether moving or not), doorways and entrances to buildings or dwellings and the grounds surrounding them and buildings open to the general public, including those which serve food or drink or provide entertainment. The interior enclosed portion of a structure not open to the general public shall not be considered "within public view."

(3) *Sexual activity* shall have the meaning as set forth in F.S., § 796.07(1), as the same may be amended from time to time, and shall also include any act of lewdness or assignation as those terms are defined herein.

(4) *Assignation* means to make any appointment or engagement for prostitution or lewdness or any act in furtherance of such appointment or obscene act.

(5) *Lewdness* means to give or receive the body for hire for an indecent or obscene act.

(6) *Solicit* means inducing, asking, enticing, requesting or otherwise encouraging a person to commit a crime. The crime solicited need not be committed.

(7) *Previously verified pattern of solicitation activity* means the occurrence of a series of activities, in close temporal proximity to each other, three or more of which meet each of the following criteria:

a. The activities are those activities described in subsection (d).

b. The activities are the same activities that precede, in close temporal proximity, a prior solicitation for prostitution assignation or lewdness, for which the person engaging in the activities was convicted.

c. The activities occur within one year of the date of conviction required in subsection (b).

(c) It shall be unlawful for any person to exhibit, within public view, a previously verified pattern of solicitation activity.

(d) Activities which are part of a previously verified pattern of solicitation activity:

(1) The person repeatedly beckons to, stops or attempts to stop passersby or engages them in conversation.

(2) The person repeatedly stops or attempts to stop motor vehicle operators by hailing, waving of arms or by any other bodily gesture.

(3) The person approaches a passerby or motorist, leaves with that person for a short period of time and upon return to the same area, repeats this pattern with a different person.

(4) The person takes flight or tries to conceal himself or herself upon the appearance of a law enforcement officer.

(5) The person gestures to, touches or exposes his or her breast, groin or buttocks.

(6) The person inquires whether a potential patron, of procurer or a prostitute is a police officer or searches for articles that would identify a police officer.

(7) The person inquires of a potential patron or procurer of a prostitute about an act that would constitute sexual activity.

(8) The person requests the touching or exposure of his or her breast, groin, or buttocks.

(e) No police officer shall arrest an individual for a violation of this section for the mere act of loitering, soliciting a ride from a vehicle for hire, entering a motor vehicle or waving at a passing motor vehicle.

(f) A person who is convicted of a violation of this section may be required to pay a fine not to exceed $500.00, and may be sentenced to a definite term of imprisonment not to exceed 60 days.

(Ord. No. 11407, § 2, 10-10-96)

Chapter 47

RENTAL HOUSING

Article I. Termination of a Tenancy Without a Lease

Sec. 47-1. Written notice of termination of tenancy.

ARTICLE I. TERMINATION OF A TENANCY WITHOUT A LEASE

Sec. 47-1. Written notice of termination of tenancy.

(a) *Required.* A residential tenancy without a specific duration in which the rent is payable on a monthly basis may be terminated by either the landlord or tenant by giving not less than 30 days written notice prior to the end of any monthly period.

(b) *Applicability of state law.* Except for the notice provisions set forth in subsection (a) of this section, all other provisions set forth within Part II, F.S. ch. 83, governing "residential tenancies" shall apply to the rental of a residential dwelling unit within the city.
(Ord. No. 13686, § 2, 6-8-17)

Chapter 48

RESERVED

Chapter 49

SANITARY SEWERS, STORMWATER MANAGEMENT SYSTEM, AND SEWAGE DISPOSAL*

Sec. 49-1.	"Human excreta" defined.
Sec. 49-2.	Liquid products of petroleum not to be allowed to escape into sewers.
Sec. 49-3.	Human excreta to be deposited in sanitary manner.
Sec. 49-4.	Discharge of wastewater or other non-potable fluids into city stormwater management system regulated and unlawful connection to the stormwater system prohibited.
Sec. 49-5.	Discharge, connection or dumping of septic tank contents into city stormwater management system prohibited.
Sec. 49-6.	Sinks and adequate facilities for disposal of human excreta required.
Sec. 49-7.	Enforcement/Penalties.

***Editor's note—**Ord. No. 13917, § 2, adopted September 24, 2020, changed the title of chapter 49 from "Sewers and sewage disposal" to "Sanitary sewers, stormwater management system, and sewage disposal."

Charter references—Authority of city relative to sewers, § 3(b), (o); water and sewer department, water and sewer board, § 22-A.

City Code cross references—Finance, ch. 18; marine sewage treatment, § 50-116 et seq.; sewers, conduits, etc., to be laid before city paves street, § 54-52.

County Code cross references—Miami-Dade Water and Sewer Advisory Board, § 2-340 et seq.; water and sewer regulations, ch. 32; connection to public water supply and public sewer disposal in abutting streets and easements required, § 32-78; notice to connect to water or sewer main, connection by county upon failure to connect, exceptions, § 32-79 et seq.

Law review reference—Comment on owner's right to exclusive use of private sewer under public street, 9 Fla. L. Rev. 225.

State law references—Supplemental and alternative method of making local municipal improvements, F.S. ch. 170; municipal public works, F.S. ch. 180; authority of municipality with respect to public health regulation, F.S. §§ 381.0014, 381.0016; pollution of waters, F.S. ch. 387; sewage disposal facilities, F.S. § 403.086; water pollution control and sewage treatment, F.S. § 403.1281 et seq.; trespass and larceny with respect to utility fixtures, F.S. § 812.14.

Sec. 49-1. "Human excreta" defined.

For the purposes of this chapter, "human excreta" shall be construed to mean the bowel and kidney discharge of human beings.
(Code 1967, § 49-1; Code 1980, § 49-1)

Sec. 49-2. Liquid products of petroleum not to be allowed to escape into sewers.

It shall be unlawful for any person to permit any liquid product of petroleum to escape into the city's stormwater management system or any sanitary sewer within the city.
(Code 1967, § 49-6; Code 1980, § 49-4; Ord. No. 13917, § 2, 9-24-20)

Sec. 49-3. Human excreta to be deposited in sanitary manner.

It shall be unlawful to dispose of any human excreta within the city except in a sanitary manner.
(Code 1967, § 49-8; Code 1980, § 49-6)

Editor's note—The South Florida Building Code contains plumbing regulations applicable within the city and is on file in the office of the building official.

Sec. 49-4. Discharge of wastewater or other non-potable fluids into city stormwater management system regulated and unlawful connection to the stormwater system prohibited.

(a) *Prohibited activities.*

(1) It shall be unlawful to discharge wastewater (including wastewater with a turbidity of 29 nephelometric turbidity units (NTUs) or greater), non-potable fluids, stormwater, or groundwater from a construction excavation or other non-natural sources into the city's stormwater management system unless the rules, regulations, and requirements of the resilience and public works department governing such discharge have been fulfilled and a permit has been obtained from such department allowing same for the city and is in the best interest of the public health, safety and welfare of the city.

(2) It shall be unlawful to discharge stormwater and non-potable fluids directly from private property to the city's right-of-way or to a municipal separate storm sewer system (MS4) that is not composed entirely of stormwater except discharges pursuant to the city's National Pollutant Discharge Elimination System permit.

(3) It shall be unlawful to connect any man-made conveyance, discharge pipe, or excavated trail to a municipal separate storm sewer system from private property. Any such connection to a city stormwater structure or pipe is strictly prohibited.

(Code 1967, § 49-11; Code 1980, § 49-8; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13917, § 2, 9-24-20; Ord. No. 14434, § 2, 1-8-26)

Editor's note—Ord. No. 14434, § 2, adopted Jan. 8, 2026, amended § 49-4 and in doing so changed the title of said section from "Discharge of wastewater or other non-potable fluids into city stormwater management system regulated" to "Discharge of wastewater or other non-potable fluids into city stormwater management system regulated and unlawful connection to the stormwater system prohibited," as set out herein.

Sec. 49-5. Discharge, connection or dumping of septic tank contents into city stormwater management system prohibited.

(a) *Prohibited activities.*

(1) It shall be unlawful to dump or discharge the contents of septic tanks and portable toilets into city sanitary sewer or stormwater management systems by any manner or means whatsoever.

(2) It shall be unlawful to connect any sanitary discharge pipe to a stormwater system. Sanitary sewer discharge to a stormwater system is strictly prohibited.

(Code 1967, § 49-12; Code 1980, § 49-9; Ord. No. 13917, § 2, 9-24-20; Ord. No. 14434, § 2, 1-8-26)

Editor's note—Ord. No. 14434, § 2, adopted Jan. 8, 2026, amended § 49-4 and in doing so changed the title of said section from "Discharge or dumping of septic tank contents into city stormwater management system prohibited"

to "Discharge, connection or dumping of septic tank contents into city stormwater management system prohibited," as set out herein.

Sec. 49-6. Sinks and adequate facilities for disposal of human excreta required.

Every residence, store, establishment, building or place in the city where human beings reside, stay, are employed or are congregated shall have a sink for wash water, and shall have adequate facilities, approved by the county health director, for the disposal of human excreta.
(Code 1967, § 49-7; Code 1980, § 49-5; Ord. No. 13917, § 2, 9-24-20)

Editor's note—Ord. No. 13917, § 2, adopted September 24, 2020, repealed the former sections 49-6 and 49-7 in their entirety, which pertained to resolution and notice requiring sewer connections, and sewer connections made by city upon failure of property owners to connect, respectively, and derived from the Code of 1967, §§ 49-2, 49-2; the Code of 1980, §§ 49-2, 49-3, and Ord. No. 13676, § 2, adopted April 27, 2017. Subsequently, the provisions of the former section 49-8 have been redesignated as section 49-6. The historical notation of the former section 49-8 has been preserved for reference purposes.

County Code cross reference—Minimum standards of hygiene for public food service establishments, § 14B-11 et seq.

Sec. 49-7. Enforcement/Penalties.

Any violation of the provisions of this chapter is subject to enforcement pursuant to chapter 2, article X, of the City Code, as amended, and may result in a citation in the amount of $500.00, which can be issued every 24 hours for the period the violation remains uncured or by notice of violation. No one method of enforcement shall preclude any other remedy available at law or in equity, including injunctive relief. Any costs incurred by the city are recoverable.
(Ord. No. 14434, § 2, 1-8-26)

Chapter 50

SHIPS, VESSELS, AND WATERWAYS*

Article I. In General

Sec. 50-1. Definitions.
Sec. 50-2. Obstructing channels; unlawful anchoring, mooring or docking; unlawful use of navigational aids.
Secs. 50-3—50-5. Reserved.
Sec. 50-6. Use of nets and traps.
Sec. 50-7. Operation of radios, phonographs or other sound-making devices—Generally; exemption.
Sec. 50-8. Live-aboard vessels and floating structures prohibited—Generally; exceptions.
Sec. 50-9. Trespassing dinghies and vessels; defined; penalties.
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ARTICLE I. IN GENERAL*

Sec. 50-1. Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Abandoned property is as defined in F.S. § 705.101, as amended.

Anchoring means the act of securing a vessel or dinghy in navigable waters within the city by means of an anchor or other device and associated tackle that is carried on board the vessel and cast or dropped overboard.

Applicant means every person who shall make application to the city for long term commercial vessel dockage.

Approved marine sanitation device means any equipment for installation on board a vessel which is designed to receive, retain, treat or discharge sewage, and which has been approved by the United States coast guard pursuant to PL 91-224.

Boat means every description of watercraft, barges and airboats, including a seaplane on the water, used or capable of being used as a means of transportation on water.

Booth means that structure utilized for the purpose of selling tickets, displaying signs and various advertising literature.

City manager shall include the city manager's designee.

Commercial vessel is as defined in F.S. § 327.02, as amended.

Contaminant means any substance which is harmful to plant, animal or human life.

County means Miami-Dade County.

Derelict vessel is as defined in F.S. § 823.11, as amended.

Dinghy means any vessel not exceeding 12 feet designed for and used primarily to serve a larger vessel by transporting persons and/or property to and from the larger vessel, from or to other vessels, piers, docks, or landing facilities.

Dinner Key Marina Area Yacht Basin means the area commencing at the southwest corner northwest ¼ section 22 township 54 south, range 41 east; thence south along the westerly line of said section 22 170.7+ feet to a point; thence west 25.0 feet to the point of beginning of the hereinafter described parcel of land and submerged land; thence south along a line parallel with and 25.0 feet westerly of the west line of said section 22 114.2+ feet to the mean high water line of Biscayne Bay; thence north 76°20' east 140+ feet along a line meandering the shoreline of Biscayne Bay to a point of intersection with a line which is 40 feet easterly of and parallel with the existing bulkhead around the Dinner Key area; thence south 13°40' east along the aforementioned line a distance of 170.5 feet; thence south 45°40' east a distance of 488.5 feet; thence continuing parallel to existing bulkhead run north 44°20' east 140 feet; thence north 45°40' west 40 feet; thence north 44°20' east 160 feet; thence south 45°40' east 40 feet; thence north 44°20' east 393 feet still parallel and 40 feet from said existing bulkhead; thence south 45°40' east 180 feet; thence north 44°20' east 318 feet; thence north 45°40' west 153 feet; thence north 62°20' east 942 feet to a point on the southwesterly line of the 300-foot wide coast guard seaplane channel as shown on city drawing DK-7; thence south 56°40' east along said southwesterly line of channel for a distance of 2,400 feet; thence south 33°20' west 2,370 feet; thence north 53°25' west 2,925 feet; thence north 39°25' west 885 feet; thence north 73°00' west 237 feet to a point on the shoreline of Biscayne Bay; thence north 40°32'30" west 62 feet; thence north 49°27'30" east 300 feet; thence north 86°27'30" east 163.6 feet, more or less to the point of beginning containing 307.66+ acres. All as shown on a sketch prepared by the city department of resilience and public works bearing file number miscellaneous 33-112, a copy of

*__Editor's note—__Ord. No. 12992, § 2, adopted May 8, 2008, amended article I in its entirety to read as herein set out. Formerly, article I pertained to similar subject matter, and derived from the Code of 1967, §§ 50-1, 50-41, 50-41.1, 50-41.2, 50-3, 50-4; the Code of 1980, §§ 50-1—50-7; Ord. No. 10870, § 1, adopted April 25, 1990; Ord. No. 11712, § 3, adopted October 13, 1998, and Ord. No. 12885, § 1, adopted February 8, 2007.

which is available for inspection at the Dinner Key Marina dockmaster's office and in the office of the city clerk.

Director means the director of the department of public facilities.

Discharge means any spilling, leaking, pumping, emitting, emptying or dumping.

Dockmaster means that person assigned to supervise the daily operations of the particular marina to which he/she is assigned. The dockmaster shall report to the marinas manager.

Facility means any or all of the city owned and operated marinas or managed mooring facilities.

Floating structure means a floating entity, with or without accommodations built thereon, which is not primarily used as a means of transportation on water but which serves purposes or provides services typically associated with a structure or other improvement to real property. The term "floating structure" includes, but is not limited to, each entity used as a residence, place of business or office with public access, hotel or motel, restaurant or lounge, clubhouse, meeting facility, storage or parking facility, mining platform, dredge, dragline, or similar facility or entity represented as such, floating structures are expressly excluded from the definition of the term "vessel" provided in this section. Incidental movement upon water or resting partially or entirely on the bottom shall not, in and of itself, preclude an entity from classification as a floating structure.

Harbormaster means the city employee assigned to manage the city's municipal mooring fields and anchorage areas, or the harbormaster's designee. The harbormaster shall report to the marinas manager, department of public facilities.

Holding tank means a receptacle on a vessel which is used to contain and store sewage.

Lamar Lake/Jimbo's Lagoon means the area located at approximately Latitude 25°44'50"N and Longitude 08°00'841"W, also described as Latitude 25.7471248 and Longitude -80.1448045 in Miami-Dade County Florida.

License agreement any transient dockage agreement, mooring and dockage agreement, commercial dockage agreement, or mooring agreement entered into between the city and a vessel owner for dockage at a city marina or mooring facility.

Licensee means the person or entity entering into or possessing a dockage or mooring license agreement with the city.

Live-aboard vessel is as defined in F.S. § 327.02, as amended.

Local business tax receipt refers to a city local business tax receipt.

Marinas manager means that person who shall be the division head supervising the operations of all city marinas and mooring facilities.

Marine sanitation device means the device as defined in F.S. § 327.02, as amended.

Marine Stadium prohibitive anchorage area means the area described in section 53-51.

Marker means any channel mark or other aid to navigation, information or regulatory mark, isolated danger mark, safe water mark, special mark, inland waters obstruction mark, or mooring buoy in, on, or over the village controlled waters or the shores thereof.

Miamarina-Bayfront prohibitive anchorage area means the area bounded on the west by the existing bulkhead along the east side of Bayfront Park and "bayside"; bounded on the south by the east-west portion of the Dade County bulkhead line as shown in plat book 74 at page 18 of the public records of Dade County, Florida, said line being at the approximate easterly extension of the south right-of-way (ROW) line of Chopin Plaza; bounded on the east by the Dade County bulkhead line (plat book 74-18); and bounded on the north by the Dade County bulkhead line (plat book 74-18); at the north side and entrance of "Miamarina," and the existing bulkhead along the south right-of-way (ROW) of Port Boulevard. All as shown on a sketch prepared by the city department of resilience and public works bearing file number miscellaneous 40-55a, a copy of which is available for inspection at the Miamarina dockmaster's office and in the office of the city clerk.

Mooring means the act of securing a vessel in navigable waters within the city by means of a permanent mooring system affixed to the bottom.

Mooring field means city-designated areas in and adjacent to city-installed mooring systems, which may include city and state-owned bay bottoms but which exclude privately owned bay bottom.

Mooring system means any weight, chain, rope, floating object, structure or appliance used for the purpose of holding a vessel in a particular place and which is not carried on board such vessel as regular equipment when the vessel is underway.

Motorboat means the same as that provided to it in F.S. § 327.02(23), as amended.

Officer means any law enforcement officer as defined in F.S. § 943.10, as amended, or a code inspector as defined in section 2-813.

Operate means the same as that provided to it in F.S. § 327.02(27), as amended.

Operator means every person who shall own, physically operate, navigate or control any vessel.

Owner is as defined in F.S. § 327.02, as amended.

Person means as defined in F.S. § 327.02, as amended.

Pier means any structure built out into the water with piles, for use as a landing place for vessels.

Pollution means the presence in the waters of the city of any one or more substances or contaminants which are harmful or injurious to human health or welfare, animal or plant life, or property.

Private vessel means any vessel used for pleasure by the owner or others, where no charge is made for fishing or riding upon or within such vessel.

Rafting means the act of tying or securing two or more vessels alongside each other while anchored or moored.

Recreational vessel is as defined in F.S. § 327.02, as amended.

Sewage means human body wastes from toilets and other receptacles intended to receive or retain body wastes, or laundry wastes collected from a laundry process, or waterborne solid wastes collected or received from food preparation or service.

Shoreline means that line of the tide at any given time.

Sightseeing boats means any boat engaged in transporting the public, for hire on the water, for sightseeing purposes.

Slow speed - minimum wake operation standard means that a motorboat must operate at a speed that is no greater than the speed which allows a motorboat to be fully off-plane and completely settled into the water. A motorboat shall not proceed at a speed greater than that speed which is reasonable and prudent to avoid the creation of an excessive wake or other hazardous condition under the circumstances.

Steerageway means the minimum rate of motion required for the helm of the vessel to have effect.

Vessel is as defined in F.S. § 327.02, as amended.

Wastes mean sewage, industrial wastes and all other liquid, gaseous, solid, radioactive or other substances which may pollute or tend to pollute any waters of this city, upon deposit therein.

Water(s) means all portions of those waters, up to and including the mean high water mark, located within the corporate limits of the city, including, but not limited to, all navigable and non-navigable waterways, rivers, lakes, streams, springs, impoundments, and all other bodies of water, including fresh, brackish, saline, tidal surface or underground. It does not include the Florida Intracoastal Waterway or any other area preempted by law.

(Ord. No. 12992, § 2, 5-8-08; Ord. No. 13448, § 2, 4-24-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14077, § 2, 7-28-22)

Sec. 50-2. Obstructing channels; unlawful anchoring, mooring or docking; unlawful use of navigational aids.

It shall be unlawful for any vessel within the city to tie up to or to discharge persons upon any navigational aid within the city; except in an emergency or with the approval of the city department director or designee thereof; to anchor or moor any live-aboard vessel or vessel not in navigation over city-owned bottomland or to anchor, moor or dock without the permission of the dockmaster, having jurisdiction within the marked boundaries of the mooring fields of either the Dinner Key Marina Area Yacht Basin or the Miamarina-Bayfront prohibitive anchorage area or the Miami Marine Stadium prohibitive anchorage area.
(Ord. No. 12992, § 2, 5-8-08)

Secs. 50-3—50-5. Reserved.

Sec. 50-6. Use of nets and traps.

It shall be unlawful for the owner or operator of any vessel to use fishing nets or set traps within the limits of any established channel, or within the protected area of any yacht basin as set forth in section 50-2.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-7. Operation of radios, phonographs or other sound-making devices—Generally; exemption.

(a) It shall be unlawful for any person owning, occupying or having charge of any vessel or any part thereof, in the city, at any time to cause or suffer or allow any loud, unnecessary, excessive or unusual noises in the operation of any radio, phonograph or other mechanical sound-making device or instrument, or reproducing device or instrument, where the noise or music is plainly audible at a distance of 100 feet from the vessel in which or from which it is produced. The fact that the noise or music is plainly audible at a distance of 100 feet from the vessel from which it originates constitutes prima facie evidence of a violation of this chapter.

(b) The city commission may declare an exemption from the prohibitions contained in subsection (a) and declare them inapplicable on special occasions by resolution.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-8. Live-aboard vessels and floating structures prohibited—Generally; exceptions.

Live-aboard vessels and floating structures are prohibited from mooring or anchoring in all waters of the city, except in marinas, licensed marine facilities, or mooring fields otherwise provided for in this Code.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-9. Trespassing dinghies and vessels; defined; penalties.

(a) *Trespassing vessels and dinghies defined.* Any vessel or dinghy shall be unlawfully trespassing when:

(1) The vessel or dinghy is placed, parked, or secured to any city marina slip, pier, bulkhead, city dinghy dock or within the boundaries of any municipal mooring field or secured to city property not specifically designated for that purpose without the permission or authorization of the marinas manager, harbormaster or their designees;

(2) The vessel or dinghy is secured to or parked at a city dinghy dock without proof of payment for a license agreement or dinghy permit;

(3) The vessel or dinghy remains on a city dinghy dock in excess of 12 hours without the authorization of the city;

(4) The vessel or dinghy is secured to city property not specifically designated for that purpose without prior authorization of the city.

(b) *Penalties for trespass violations.*

(1) A first violation of this section by a vessel or dinghy shall result in a written warning secured to the offending vessel, advising the owner/operator of the offense and

that if the same continues for more than 24 hours it shall constitute a second trespass under this section.

(2) A second trespass by the same offending vessel occurring within 30 days of the first violation shall be punishable by a fine in the amount of $50.00 providing that the same is paid within seven calendar days of the issuance of the notice of violation. Any person whether the owner or operator of the offending

vessel or dinghy who ignores a notice of violation and fails to pay the fine within seven calendar days, shall be subject to a fine of not less than $50.00 and not more than $300.00 including court costs as may be awarded or imprisonment not to exceed five days or the accumulation of fines, court costs, and imprisonment.

(3) A subsequent trespass by the same offending vessel within 180 days of the first violation shall result in the towing and impoundment of the offending vessel. The vessel may be reclaimed by the owner or his/her representative after presenting proof of ownership of the impounded vessel and payment of a reasonable towing and storage charge. Upon proof of ownership and payment of the reasonable charges, the vessel or dinghy shall be released to the owner or agent. If the owner of the vessel or his/her agent cannot be found, or elects not to pay in accordance with the provisions outlined in this section, then the vessel or dinghy shall be considered to be abandoned property and the city shall follow the appropriate steps to dispose of the property in accordance with state statutes.

(Ord. No. 12992, § 2, 5-8-08; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-10. Floating structures prohibited.

Floating structures, as defined in this article, are prohibited from tying up at city marinas and from mooring at city mooring facilities and from anchoring in city waters unless expressly authorized by the city manager or his/her designee.
(Ord. No. 12992, § 2, 5-8-08; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-11. Vessel inspections; boarding by law enforcement.

All vessels moored at city marinas and mooring facilities may be boarded by authorized city officers or marina staff if necessary to respond to an emergency, or as otherwise permitted by applicable law. It shall be a violation of this section for a licensee to refuse to allow, prevent, or interfere with such boarding. In order to ensure compliance with federal and state safety and marine sanitation regulations, the dockmaster and harbormaster shall be authorized to conduct periodic vessel inspections. Denial of an inspection shall be considered grounds for termination of the vessel owner's license agreement. The vessel owner shall fully comply with the directions of the dockmaster and harbormaster and law enforcement personnel, and shall allow access to their vessel by those personnel as necessary.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-12. Reporting of fuel/oil spills.

Vessel owner shall contact the dockmaster and/or harbormaster's office and Federal Oil Spill Hotline (800-424-8802) when an oil/fuel spill is discovered. Oil absorbent pads and containment boom are located at the dockmaster and/or harbormaster's office and are available for deployment in the event of a spill. Do not use detergents to break up spills.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-13. Vessel cleaning.

Cleaning or washing vessels with detergents containing phosphates, chlorine, or petroleum distillates is prohibited within any city marina or mooring facility.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-14. Misuse of amenities.

The misuse, vandalism, or destruction of any amenities at city marinas or mooring facilities is grounds for ejection. If any licensee, guest, or crew damages any property or equipment of a facility or it's amenities due to neglect, misuse, failure to follow stated directions, or vandalism, they shall be held responsible for the cost of repair and replacement, as well as any criminal or civil charges for the activity.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-15. Emergency repairs.

The licensee shall be required to grant consent to the dockmaster and/or harbormaster that in the event of an emergency, the dockmaster and/or

harbormaster has the authority to have necessary repairs made to the licensee's vessel, as economically as possible. Emergencies can include, but are not limited to: breakdown of bilge, fuel, or sewage pump or any other leak; chafed or broken lines, or any other emergency that may imperil the vessel and possibly lead to sinking. The cost of these repairs, parts, labor, and any other appropriate charges, shall be billed to the vessel owner and payable within 24 hours of the vessel owner's return or as provided by the dockmaster and/or harbormaster.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-16. Hurricanes and tropical storms; evacuation of vessels for storm events.

City mooring facilities are not safe locations for vessels during tropical storms or hurricanes, and the city believes that significant damage to the vessels and facility will likely occur in a major storm if vessels are left at the facility. The city warns vessel owners to exercise prudent and appropriate judgment on whether to remove their vessel from the facility in the event that a tropical storm or hurricane threatens the area. The city recommends that vessels evacuate the facility prior to the declaration of a hurricane watch or warning. Licensees are advised that mooring equipment provided in the facility may not be able to withstand the pending hurricane or tropical storm or associated wind or tidal surges. All facility licensees shall be solely and totally responsible for any and all damages to persons or property caused by their failure to remove their vessels from the facility in a timely fashion.

Notwithstanding anything to the contrary in state statutes or the provisions of this chapter, in the event that a vessel owner fails to remove his/her vessel from a municipal mooring facility prior to a tropical storm or hurricane the city may cause the removal of that vessel, if reasonable, and/or take whatever reasonable actions are deemed necessary by the Harbormaster to properly secure the vessel and minimize damage to the vessel and to protect city property. The city may charge the vessel owner a reasonable fee for any actions taken to secure the customer's vessel, and shall note held liable for any damage incurred to a customer's vessel from storms or hurricane and shall be held harmless result of such actions.
(Ord. No. 12992, § 2, 5-8-08; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-17. Responsibility of licensee to file and maintain hurricane plan.

It shall be the responsibility of the licensee at all city marinas and mooring facilities to provide, maintain on file with the marina and harbormaster's office that shall contain the vessel owner's emergency contact information; the names of persons authorized to act on the vessel owner's behalf in securing the vessel in advance of a tropical storm or hurricane event, and any other pertinent information that may be requested by the city that would facilitate safeguarding the customer's vessel and protecting the facility.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-18. Removal of sunken vessels and dinghies.

In accordance with the provisions of this chapter, it shall be unlawful for vessel owners to permit a vessel or dinghy to remain sunken or grounded at any city marina, mooring facility or dinghy dock for more than seven days. Vessel owners are responsible for the refloating of any vessel sunk in a city facility. The dockmaster and/or harbormaster may require that any vessel which sinks at a city facility be removed from the facility until appropriate repairs are made. Upon oral or written request from the dockmaster and/or harbormaster, that vessel must be removed from the facility within 48 hours or the dockmaster and/or harbormaster may remove the vessel or cause the vessel to be removed and may recover the cost of removal and of storage or disposal of the vessel from the licensee or owner of the vessel. If the dockmaster and/or harbormaster determines that a sunken vessel is discharging pollutants into the water, creating a hazard to navigation or the safety of other vessels, or causing any other kind of emergency, then the dockmaster and/or harbormaster is authorized to take all necessary measures to stop the cause of pollution or eliminate the

hazard or mitigate the emergency, without prior notice to the licensee or vessel owner, and recover all costs associated with the corrective actions taken.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-19. Penalties.

A violation of any of the provisions of this chapter shall be punished as provided in section 1-13 or chapter 2, article X unless another penalty is provided.
(Ord. No. 12992, § 2, 5-8-08)

Secs. 50-20—50-36. Reserved.

ARTICLE II. OPERATION OF VESSELS*

DIVISION 1. GENERALLY

Sec. 50-37. Operation during and near, etc., regattas, pageants, races, etc.

It shall be unlawful during any regatta, pageant or marine parade upon any waters of the city, or upon any racecourse, a part of which is within the city, for any vessel of any type or description to pass up, down or across the course, or to move in waters immediately adjoining the course during the progress of such race, pageant or marine parade, in such a manner as to endanger participants in the regatta, pageant or marine parade, or the crews or passengers on board vessels attending such event. This prohibition shall not be applicable to racing craft, or craft engaged in such activity, or boats, properly identified, having on board officials of such activities.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-38. Safe operation of vessels within marinas and mooring fields.

Vessels within 500 feet (on waterways 300 feet in width or more) or 300 feet (on waterways not exceeding 300 feet in width) of a public marina or mooring field must be navigated at idle speed or at a speed which causes no wake to other vessels. Any person operating a vessel or dinghy within the boundaries of a public marina or mooring field shall comply with all federal, state, and local laws, rules, and regulations concerning the safe operation of vessels, including the Inland Navigation Rules.
(Ord. No. 12992, § 2, 5-8-08; Ord. No. 13496, § 1, 2-12-15)

Sec. 50-39. Vessels no longer exercising rights of navigation.

It shall be unlawful for any person to anchor or leave at anchor in the navigable waters of the city a non-live-aboard vessel no longer exercising its rights of navigation. Any nonliveaboard vessel that remains continuously anchored for more than seven days is presumptively no longer exercising rights of navigation.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-40. Live-aboard vessels prohibited.

Except as otherwise provided in this chapter, live-aboard vessels are prohibited in the city.

(1) Live-aboard vessels are permitted in private mooring or marina facilities;

(2) Live-aboard vessels may be permitted in designated City Marinas and mooring fields.

(Ord. No. 12992, § 2, 5-8-08)

Editor's note—Ord. No. 12992, § 2, adopted May 8, 2008, enacted provisions intended for use as subsections a. and b. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as subsections (1) and (2).

Sec. 50-41. Operation of vessels, boats, and other watercraft in marked swimming area, bathing area, or exclusion/safety zone of Dinner Key Spoil Island.

(a) An exclusion/safety zone has been established for the designated waters of and near Dinner Key Spoil Island. The buoy line for the exclusion/safety zone off the waters of city-

*__Editor's note—__Ord. No. 12992, § 2, adopted May 8, 2008, amended article II in its entirety to read as herein set out. Formerly, article II pertained to similar subject matter, and derived from the Code of 1967, §§ 50-18(f), 50-19, 50-29(d), 50-40; the Code of 1980, §§ 50-18(f), 50-19, 50-34(d), 50-45; Ord. No. 11712, § 3, adopted October 13, 1998, and Ord. No. 12885, § 1, adopted February 8, 2007.

owned property near Dinner Key Spoil Island is hereby established as set forth in the legal description and the attendant sketch of the legal description attached hereto as "Composite Exhibit A", incorporated hereby.

(b) No person shall operate any motorized vessel, motorized boat, or other motorized watercraft within a swimming area, bathing area, or exclusion/safety zone area within the Dinner Key Spoil Island area which has been clearly marked by duly authorized buoys or other alternative permitted regulatory markers. Hand-propelled or foot-propelled vessels without motors and other hand-propelled or foot-propelled watercraft without motors, such as canoes, kayaks, surf boards, sail boards, kite boards, and wind-surfing boards, are permitted to be operated in a safe manner within such designated swimming area, bathing area or exclusion/safety zone within the Dinner Key Spoil Island area.
(Ord. No. 13263, § 3, 5-12-11)

Editor's note—The exhibit referred to in this section is not set out at length herein, but is on file in the offices of the city.

Sec. 50-42. Marine Stadium restricted area.

(a) The waters of the Marine Stadium, as described in section 53-51 of this Code, are hereby declared to be a slow speed-minimum wake restricted area. The city shall place regulatory markers in the restricted area pursuant to applicable Florida law.

(b) Prohibited activities. It shall be unlawful for any individual to operate a motorboat in violation of the slow speed-minimum wake operation standard.

(c) Exemptions. The following acts shall be exempt from the regulations contained in this section:

(1) A motorboat operating under emergency conditions during an emergency;

(2) Operation of a motorboat during a boat race, film productions for which a permit has been issued, or other public event that is authorized in writing by the city manager or designee; or

(3) Local, state and federal law enforcement and fire department motorboats while in the performance of their lawful duties and when such operation may be safely accomplished, including but not limited to any applicable trainings.

(d) Penalties. A violation of subsection (c) of this section may be enforced by issuance of a uniform boating citation by a duly authorized law enforcement officer pursuant to the procedures set forth in F.S. § 327.73.
(Ord. No. 13448, § 2, 4-24-14)

Sec. 50-43. Operation of vessels, boats, and other watercraft in marked motorized vessel exclusion zones in the Dinner Key North Mooring Field area.

(a) The following motorized vessel exclusion zones have been established in the vicinity of the Dinner Key North Mooring Field to provide safe areas for use by vessels under sail or oar or shallow draft vessels operating electric engines only:

(1) The area between the southwest shoreline of Spoil Island "A" and the northern Area "A" section of the Dinner Key North Mooring Field with the zone boundaries defined by buoys A through H, anchored at the following coordinates:

A 507868.63 910510.17

B 507975.07 910568.90

C 508260.17 910440.52

D 508565.05 910419.79

E 508803.59 910212.24

F 508672.61 910047.00

G 508372.72 909877.27

H 508061.65 910059.05; and

(2) The area between the northeast shoreline of Spoil Island "B" and the southern Area "B" section of the Dinner Key North Mooring Field with the zone boundaries defined by buoys I through O, anchored at the following coordinates:

I 507906.47 910262.39

J	507523.12	910028.12
K	507644.84	909413.26
L	507201.00	909460.03
M	507072.28	909801.74
N	507107.84	910090.36
O	507243.14	910165.02

(b) Prohibited activities.

(1) It shall be unlawful for any person to operate any motorized vessel, motorized boat, or other motorized watercraft within the Dinner Key North Mooring Field motorized vessel exclusion zones, which have been clearly marked by duly authorized buoys or other alternative permitted regulatory markers.

(2) It shall be unlawful for any person to tie-up to any regulatory marker that defines the boundary of, or is within, the Dinner Key North Mooring Field motorized vessel exclusion zones.

(c) Exemptions. The following shall be exempt from the regulations of this section:

(1) Hand-propelled or foot-propelled vessels without motors and other hand-propelled or foot-propelled watercraft without motors, such as canoes, kayaks, surf boards, sail boards, kite boards, and windsurfing boards may operate in a safe manner within such designated motorized vessel exclusion zones north and south of the Dinner Key North Mooring Field.

(2) Emergency vessels, law enforcement vessels, motorized vessels, motorized boats, or other motorized watercraft used solely for the purpose of affecting an emergency response or rescue or for the purpose of ensuring compliance with federal, state, or local laws are excluded from the applicability of this section. Nothing in this section should be construed to have the intent of obstructing access through the marked Dinner Key Seaplane Channel or through the main fairway between the west shoreline of Biscayne Bay and Spoil Islands "A" and "B".

(3) Motorized vessels that are used by sailing coaches while they are accompanying or coaching sailors through the motorized vessel exclusion zone or while the sailors are sailing in the motorized vessel exclusion zone and motorized vessels that are used to tow sailboats through the motorized vessel exclusion zone and motorized vessels that are accessing the nearby spoil islands for city-sanctioned clean-up events are excluded from the applicability of this section.

(4) Film productions that specifically request a waiver from the city manager on their film permit applications provided that such film productions:

a. Take adequate safety precautions;

b. Specify in their waiver requests such precautions to be taken; and

c. Indemnify the city and its officers, directors, and employees for such waiver.

(5) During approved "special events" as defined in section 38-74 and section 54-1 of the City Code for which a special events permit is obtained from the director of the parks and recreation department.

(Ord. No. 13982, § 2, 3-25-21)

Sec. 50-44. Lamar Lake/Jimbo's Lagoon "idle speed/no wake" zone.

(a) An "idle speed/no wake" zone ("zone") is hereby established within Lamar Lake ("lake"), also known as Jimbo's Lagoon. which is a confined embayment within Virginia Key. The zone is established extending out 500 feet waterward in all directions from the public dock (coordinates Latitude 25.74739. Longitude -80.14564) and kayak launch structures (coordinates Latitude 25.74691. Longitude -80.14607) within the lake. The zone is intended to improve public health and safety by requiring a vessel to proceed at a speed no greater than what is required to maintain steerage way/headway. The city shall place regulatory markers in the zone pursuant to applicable Florida law.

(b) Prohibited activities. It shall be unlawful for any individual to operate a motorboat in violation of the idle speed, no wake operation standard.

(c) Exemptions. The following acts shall be exempt from the regulations contained in this section:

(1) Emergency vessels, law enforcement vessels, motorized vessels, motorized boats, or other motorized watercraft used solely for the purpose of affecting an emergency response or rescue or for the purpose of ensuring compliance with federal, state or local laws are excluded from the operational prohibitions of this section.

(2) The provisions of this section shall not apply to film productions that specifically request a waiver from the city manager on their film permit applications provided that such film productions:

a. Take adequate safety precautions;

b. Specify in their waiver requests such precautions to be taken; and

c. Indemnify the city and its officers, directors, and employees for such waiver.

(3) The provisions of this section shall not apply to a "special event" (as defined in section 38-74 and section 54-1) for which a special events permit is obtained from the director of the department of parks and recreation.

(d) Penalties. A violation of subsection (b) of this section may be enforced by issuance of a uniform boating citation by a duly authorized law enforcement officer pursuant to the procedures set forth in F.S. § 327.73.
(Ord. No. 14077, § 2, 7-28-22)

Secs. 50-45—50-60. Reserved.

DIVISION 2. COMMERCIAL VESSELS

Sec. 50-61. Application for commercial dockage.

(a) Persons making application for commercial dockage of vessels at city marinas shall furnish the marinas manager with the following information:

(1) Business name, address, date of incorporation, vessel operator's years of experience.

(2) Proof of documentation/registration for commercial purposes.

(3) Local business tax receipt (or application copy).

(4) Proof of vessel/business liability insurance.

(5) Description of the vessel, including, but not limited to:

a. Vessel name/manufacturer/identification number.

b. Length/beam/draft.

c. Seating capacity.

d. Gross/net tonnage.

e. Description of commercial activity.

(b) If the application is for a sightseeing or excursion vessel, the applicant shall, in addition to the above, furnish the following information:

(1) United States Coast Guard captain's/master's license for all vessel operators.

(2) Three professional letters of reference.

(3) Current U.S.C.G. certificate of inspection or survey certificate.

(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-62. Display, sale and disposal of fish prohibited.

Fish caught on commercial vessels operating at a city marina may not be sold or displayed to the public at the marina unless otherwise authorized by the city manager. Fish may not be displayed at the berth of any vessel. It shall be unlawful under any circumstances to dispose of fish by dumping them into the waters of the yacht basin. In addition to any penalties provided in this Code, any person violating the provisions of this section shall, as it pertains to such person, have all berthing rights at city marinas terminated and his or her lease agreements, certificates or dockage agreements cancelled by the director.

(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-63. Compliance with law.

The owner, operator or other person responsible for either the operation, and/or maintenance of any vessel shall, upon demand, submit to the dockmaster a valid United States Coast Guard certificate of inspection or certification made by an independent qualified marine surveyor that the vessel is in seaworthy condition and in compliance with state and federal law.

(Ord. No. 12992, § 2, 5-8-08)

Secs. 50-64—50-95. Reserved.

ARTICLE III. CONTROL OF MARINE POLLUTION*

DIVISION 1. GENERALLY

Secs. 50-96—50-115. Reserved.

*__County Code cross references__—Environmental protection, ch. 24; prohibitions against water pollution, § 24-11.

DIVISION 2. MARINE SEWAGE TREATMENT

Sec. 50-116. Purpose and intent of division.

This division is promulgated by the city commission to eliminate, prevent and control water pollution by vessels and live-aboard vessels as defined herein in the waters of the city. It is the intent of the city commission that this division shall apply to existing water pollution sources as well as to future water pollution sources.

(Code 1967, § 63-1; Code 1980, § 50-63)

Sec. 50-117. Effect of division on county regulations.

The provisions of this division shall not supersede authority, rules or regulations adopted by the Dade County pollution control board in those areas of the county where now or hereafter a water control district has been created and maintained, but shall be concurrent in application unless otherwise directed by the board.

(Code 1967, § 63-2; Code 1980, § 50-64)

Sec. 50-118. Effect of division on federal regulations.

This division is not intended to supersede any standards promulgated by the United States government, but is to be enforced concurrent with them. Where any standard set by the United States government is more stringent than those set forth by this division, the United States government standard shall prevail.

(Code 1967, § 63-7; Code 1980, § 50-65)

Sec. 50-119. Reserved.

__Editor's note__—Ord. No. 12992, § 2, adopted May 8, 2008, repealed § 50-119 in its entirety, which pertained to definitions, and derived from the Code of 1967, § 63-3, and the Code of 1980, § 50-66.

Sec. 50-120. Prohibited discharges; required equipment on vessels; restrictions on dock rentals.

(a) The discharge of untreated sewage or sewage treated to less than 90 percent removal of organic matter from any vessel or live-aboard vessel into the waters of the city shall be, and is herewith expressly prohibited.

(b) All vessels that are equipped with an approved marine sanitation device, laundry equipment or other device or contrivance that produces or is capable of producing waterborne wastes from food preparation or service shall be equipped with a method for the prevention of the discharge of untreated sewage or sewage treated to less than 90 percent removal of organic matter into the waters of the city.

(c) Live-aboard vessels shall be required either to be equipped with the necessary device or devices to deliver all sewage to a shore facility collection system or equipped with treatment facilities capable of treating the sewage as specified in subsections (a) and (b).

(d) No individual, firm, corporation or any other person in the city may rent, lease or otherwise provide dock space for any vessel or live-aboard vessel required to be equipped with a marine sanitation device unless:

(1) Such vessel or live-aboard vessel is equipped with sewage treatment facilities as is specified in subsections (a) and (b) above; or

(2) Such dock space is equipped for the dockside collection of the sewage generated aboard such live-aboard vessel.

(e) Any vessel docked at a city-owned marina facility under a license agreement, in violation of this section, is subject to having the license agreement terminated by the city upon 24-hour notice.
(Code 1967, § 63-4; Code 1980, § 50-67; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-121. Compliance date.

Full compliance with this division shall be achieved concurrent with the federal standards established pursuant to 33 USC 1163 (PL 91-224), but no later than January 1, 1973.
(Code 1967, § 63-5; Code 1980, § 50-68)

Sec. 50-122. Circumvention of provisions of division.

No person shall build, erect, install or use any article, machine, equipment or other contrivance, the use of which will conceal an emission which would otherwise constitute a violation of any of the provisions of this division.
(Code 1967, § 63-6; Code 1980, § 50-69)

Secs. 50-123—50-150. Reserved.

ARTICLE IV. MIAMI VESSEL MOORING CODE*

Sec. 50-151. Reserved.

Sec. 50-152. Legislative intent.

The city commission hereby finds and determines that the insecure and improper mooring of vessels in city waters including but not limited to Biscayne Bay, the Miami River and their tributaries increases the danger of grounding and breaking loose of the said vessels and thereby endangers navigation, life and property; that insecurely and improperly moored vessels have broken loose in the past and damaged bridges, structures, and other valuable property; that scrap and derelict vessels occupy areas which could be developed as berths for economically active and attractive vessels; that scrap and derelict vessels moored or sunk in city waters, including but not limited to Biscayne Bay, Miami River and their tributaries, are unsightly, a danger to navigation, and a detriment to tourism and to property values; that the release of pollutants, the infestation of rats and the breeding of mosquitoes on derelict vessels moored upon city waters, including Biscayne Bay, the Miami River and their tributaries, constitute dangers to public health, and that derelict or sunken vessels often constitute attractive nuisances that endanger the lives and safety of children. The city hereby declares its intention that the provisions of this article are not intended and should not be construed as in any way superseding or attempting to conflict with applicable statutes, ordinances, rules or regula-

*__Editor's note—__Ord. No. 12992, § 2, adopted May 8, 2008, amended article IV in its entirety to read as herein set out. Formerly, article IV pertained to similar subject matter, and derived from the Code of 1967, § 38-5.1; the Code of 1980, §§ 37-8, 50-70—50-76, 50-80—50-84, and Ord. No. 10055, § 1, adopted November 26, 1985.

tions of the federal government or of the state but are intended to supplement any such enactments or provisions.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-153. Grounding of vessel; prohibition.

No vessel shall rest on the bottom, except as provided by the city manager.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-154. Mooring to certain features or structures prohibited.

No vessels shall be moored to trees, shrubs, houses or other buildings on shore, or to bridges, bridge approaches, bridge fenders, or piles driven or placed for the protection of bridges or their approaches, or any navigational aid within the city.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-155. Adequate mooring lines required.

All moored vessels shall be secured by an attachment with sufficient strength comparable to the lines required for the size and type of vessel hereinafter specified. Vessels moored to piles or vessels moored to structures which are separated from the shoreline must be secured by at least four lines each having a minimum working strength of the combined total of lines required for a vessel of its size as stated in the Miami-Dade County Code, section 7-36, as amended. Vessels moored or anchored in such a manner to allow the vessel to swing 360 degrees around the mooring shall only be required to have one line to the mooring, having the minimum working strength of one-half of the combined total of lines required for a vessel of its size as stated in the Miami-Dade County Code, section 7-36, as amended.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-156. Mooring to city property, bridges, fender systems, public bank, etc. prohibited; emergency exception.

(a) The mooring of vessels to city-owned or city-controlled property shall be unlawful unless duly authorized by the city manager.

(b) The mooring of vessels in such manner as to encroach or obstruct any established channel within the city shall be unlawful.

(c) No vessel shall be moored to public bridges, bridge approaches, fender systems, or piles driven for the protection of bridges or their approaches, or to any city owned bank or shore, unless under a lease or permit issued by the governmental body having jurisdiction thereof.

(d) It is unlawful and a violation of this section to moor any vessel in the area between the bank or shore owned by the city and the bridge fender system.

(e) This section shall not be interpreted to prohibit temporary docking to any structure during an emergency. By temporary is meant a period of time not exceeding 24 hours. By emergency is meant any structural defect in the vessel, caused by either a normal breakdown or collision, which would render the vessel a hazard to navigation if not immediately moored to structures listed in subsection (a), or any weather condition which seriously endangers a vessel and which would render the vessel a hazard to navigation if not moored to any of the structures listed in subsection (a) or as so determined by the city manager or his/her designee.
(Ord. No. 12992, § 2, 5-8-08; Ord. No. 13676, § 2, 4-27-17)

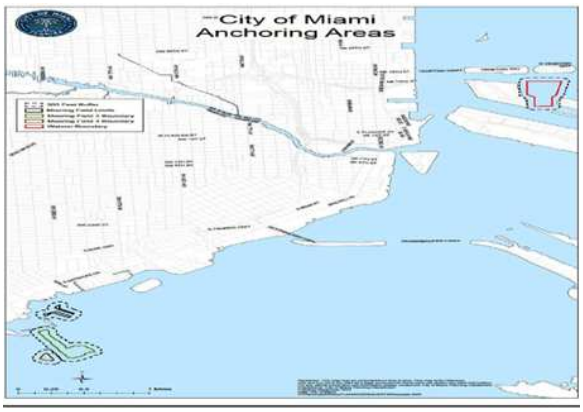
Sec. 50-157. Public property abutting water; use restricted.

It is unlawful to use any city-owned property abutting water, except as permitted at city marinas, or as otherwise authorized by the city manager. The use of city-owned property prohibited by this section includes, but is not limited to, use for mooring, docking, typing up vessels or dinghies, or for landing operations of vessels, and use for storage, construction, repair or maintenance purposes. The term "city-owned property abutting water" includes, but is not limited to, the ends of any streets, roads or public ways; parkland, land where public buildings are located, or any city land whatsoever, whether or not it is leased to others by the city, which abuts, borders or is adjacent to water.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-158. Overnight anchoring limitations; exemptions; enforcement; penalties.

(a) *Intent.* Pursuant to the authority granted by the Florida Legislature, the City of Miami hereby designates the areas defined in subsection (b) and within its corporate boundaries to be part of the overnight anchoring limitation area as authorized in Ch. 2025-39, Laws of Florida.

(b) *Area defined.* The overnight anchoring limitation area is defined as:



(c) *Overnight anchoring.* No owner or operator of a vessel or floating structure:

(1) Shall anchor or moor such that the nearest approach of the anchored or moored vessel or floating structure is within 300 feet outward from the marked boundary of a public mooring field; and

(2) No vessel shall be anchored anywhere within the overnight limitation area for a period of one hour or more between one-half hour after sunset and one-half hour before sunrise for more than 30 days in any six-month period.

(d) *Exemptions.* Vessels not subject to the Overnight anchoring limitations are:

(1) Vessel anchored within the boundaries of a marked mooring field.

(2) Vessels anchored overnight for the purposes of completing permitted marine construction, installation or marine work.

(3) Vessels owned by a governmental entity or otherwise operated at the request of a governmental entity for a government purpose.

(4) Commercial fishing vessels as defines in F.S. § 327.02(6), as amended.

(5) A vessel actively engaged in recreational fishing if the persons onboard are actively tending hook and line fishing gear or nets.

(6) Imminent or existing weather conditions pose an unreasonable risk of harm to the vessel or persons aboard until such conditions have passed.

(e) *Enforcement.* This section shall be enforced by the City of Miami Police Department, code compliance department or any other law enforcement agency having jurisdiction in the overnight anchoring limitation area. It may be enforced as follows:

(1) *Warning notice.* A warning notice shall be affixed to the violating vessel. The warning notice shall include the date of violation, location of vessel, time of violation, section of the City Code and timeframe in which the violation is occurring. The warning shall also list future penalties and state the vessel needs to be removed in compliance with section 50-158 of the City Code.

(2) *Civil infraction.* The civil infraction shall contain all the relevant information provided for in section 50-158(e)(1) as well as comply with the requirements of chapter 2, article X of the City Code.

a. The civil infraction fine shall be $500.00, the maximum allowed by Florida Statutes.

b. A civil infraction may be issued for each day the violation remains in existence.

c. Notice affixed to the vessel shall constitute good notice and notice via certified mail to the vessel owner of record shall be accomplished if the information is obtainable.

d. Vessel owner may appeal any issued civil infraction as provided in section 2-825 of the City Code, as amended, and all appeals filed under this section shall be set on the next available appeal hearing date.

(3) *Alternate remedies.* The provisions of this section are not the exclusive remedy or means for enforcement of the Code of the city including the filing of injunctive relief for removal of vessel. The city's access to the courts of the state is neither precluded nor prohibited by the enactment of this section.

(Ord. No. 14413, § 2, 11-20-25)

Sec. 50-159. Water in bilges.

Not more than one foot of water shall be permitted to remain in the bilges of any vessel for a period of more than one week. The measurement to determine the depth of water in the bilges shall be at any point along the length of the vessel, but only at points one-half the distance from the amidship line to the outboard edge of the hull or hulls measured along the horizontal plane of the main deck.

(Ord. No. 12992, § 2, 5-8-08)

Secs. 50-160—50-220. Reserved.

ARTICLE V. CITY MARINAS

DIVISION 1. GENERALLY

Sec. 50-221. Operation and regulation generally.

City marinas have been designed and built by the city primarily in order to afford the local and cruising yacht operators appropriate facilities and accommodations, and secondarily to provide convenient and appropriate commercial vessel facilities for the pleasure and service of both citizens of Miami and tourists. The berthing, docking, anchoring or mooring of vessels, and other activities and operations at city marinas shall be in conformance with reasonable regulations of the city manager. Berths, docks, moorings and anchorages will be assigned only by the city manager or his/her duly authorized representative. Marina regulations shall be premised upon the maintenance of sanitary and sightly conditions, orderliness and the preservation of the public health, safety, peace, welfare and convenience in the use of the marina areas for the purposes for which established. Only vessels in good condition and under their own power (not paddle, oar or makeshift sail) will be permitted to berth, dock, moor or anchor. The owners or captains of all vessels desiring space at city marinas shall be required to execute either a dockage agreement or a lease agreement, as appropriate, prior to provision of such accommodation, and shall be bound to abide by the marina rules and regulations printed therein and which also appear herein, as well as those contained elsewhere in this Code. Failure to conform to the aforementioned rules and regulations shall constitute sufficient cause for city termination of the dockage agreement or lease agreement and, when appropriate, shall subject the signer of the agreement or any other party violating the provisions herein to the penalties provided for in section 1-13 of this Code. If the owner or captain refuses to remove his or her vessel after termination of his or her dockage agreement or lease agreement for cause, the city may remove the vessel from her berthing, docking, mooring or anchorage space at the owner's risk and expense and may take possession of the space, relet the same, and may retain any balance or prepaid rental as liquidated damages and not as a penalty.

(Code 1967, § 50-42; Code 1980, § 53-26; Ord. No. 11712, § 3, 10-13-98; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-222. Additional rules and regulations authorized.

The city manager is hereby authorized and directed to make and enforce such reasonable rules and regulations as may be necessary to carry into effect those provisions of this article which govern the city marinas. Such rules and regulations shall first be posted or otherwise made public.

(Code 1967, § 50-14; Code 1980, § 53-27)

Sec. 50-223. Limitations on city liability.

The dockage agreement is for the use of pier space only, such space to be used at the sole risk of the owner, and the city shall not be liable for the care or protection of the vessel, her appurtenances or contents, or for any loss or damage of any kind or nature whatsoever to the vessel, her appurtenances or contents, however caused. There is no warranty of any kind as to the condition of the piers, walks, gangways, ramps or mooring gear, nor shall the city be

responsible for injuries to persons or property occurring upon city property not caused by the negligent acts of the city or its personnel.
(Code 1967, § 50-55; Code 1980, § 53-28)

Sec. 50-224. Assignment of berths based on overall vessel length.

Berths shall be assigned with respect to the overall length of a vessel, and a vessel may not be assigned to a berth where the vessel's overall length exceeds the berth's length by not more than two feet, except where the dockmaster determines that it is in the best interest of the city.
(Code 1967, § 50-43; Code 1980, § 53-29; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-225. Access to piers restricted.

It shall be unlawful for any person, except in the case of emergency or except for marina employees, licensees and their bona fide guests and commercial vessel customers, to gain access to city-owned and operated piers within the city.
(Code 1967, § 50-6; Code 1980, § 53-31; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-226. Soliciting prohibited.

It shall be unlawful to solicit for any purpose upon the marinas property of the city except as may be authorized by state law.
(Code 1967, § 50-5; Code 1980, § 53-32)

Sec. 50-227. Motorized vehicles on piers limited.

It shall be unlawful to ride, drive, store or otherwise permit any motorized vehicle other than a city vehicle on a city pier, except in the case of an emergency.
(Code 1967, § 50-8; Code 1980, § 53-33)

Sec. 50-228. Swimming, diving or fishing in marina waters prohibited.

It shall be unlawful for any person to swim, dive or fish in the waters of Dinner Key yacht basin, Miamarina or Watson Island Marina.
(Code 1967, § 50-7; Code 1980, § 53-34)

Sec. 50-229. Consumption of alcoholic beverages.

It shall be unlawful to consume in public on any marina piers or walkways any alcoholic beverages. It is not the intent of this section to prohibit social drinking aboard duly authorized vessels by guests and tenants of the marinas, or in establishments duly licensed by the city.
(Code 1967, § 50-12; Code 1980, § 53-35)

Sec. 50-230. Electrical power and fresh water exclusively for use of vessel occupying berth.

The electrical power and fresh water provided at city marina facilities shall be used exclusively by and for the vessel occupying that berth. It shall be unlawful for either the licensee or any other person to use either the electrical power or fresh water for any purpose other than to supply power and water to the vessel officially assigned to that berth by agreement on record at the dockmaster's office. Water siphons will n be used except in case of emergency. Fresh water provided by the city shall not be used as a cooling agent for equipment on vessels.
(Code 1967, § 50-50; Code 1980, § 53-36; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-231. Marina shower and toilet facilities—Access generally.

The unauthorized use of the tenant shower facilities at any city marina is prohibited, and it shall be unlawful for anyone who is not either a legitimate paying tenant or a bona fide guest of a paying tenant to make use of such shower facilities.
(Code 1967, § 50-13; Code 1980, § 53-37)

Sec. 50-232. Same—Shower-toilet keys.

Marina shower-toilet keys are issued for tenants and their guests only, and tenants found duplicating the keys for issuance to unauthorized persons, or otherwise providing them to unauthorized persons, shall have their dockage agreement cancelled.
(Code 1967, § 50-52; Code 1980, § 53-38)

Sec. 50-233. Same—Key deposits.

Keys to pier gates and marina toilet-shower facilities, as applicable, will be issued by the dockmaster to each qualified vessel on receipt by the dock office of a deposit. The key deposit at Miamarina shall be determined by the dockmaster. Such deposit shall be refunded upon return of such key or shall be forfeited if the key is not returned.
(Code 1967, § 50-53; Code 1980, § 53-39; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-234. Restriction on domestic pets.

Domestic pets are permitted, provided they are kept leashed when not confined aboard, do not disturb other guests, and do not create a nuisance. Tenants whose pets are not controlled in accordance with these restrictions shall be required to remove their vessel from the city marina.
(Code 1967, § 50-48; Code 1980, § 53-40)

Sec. 50-235. Maintaining vessel appearance.

It shall be unlawful for any person who owns, is in charge of, or is aboard any vessel located at city property to display any advertisement or exhibit any sign, or hang any washing or laundry upon any part of the vessel where it can be seen or is visible from any premises in the immediate vicinity. "For sale" signs, not to exceed one foot square, are excepted from the aforementioned prohibition and may be displayed on any boat. It shall also be the responsibility of tenants to keep their vessels in such condition that they do not become unsightly or dilapidated or reflect unfavorably on the appearance standards of city marina facilities. Decks of vessels berthed at city docks shall be kept free and clear of debris, bottles, papers, trash or other unsightly material at all times.
(Code 1967, § 50-46; Code 1980, § 53-41)

Sec. 50-236. Orderly keeping of pier.

It shall be the responsibility of licensees to keep the pier areas adjacent to their vessels in an orderly, clean and safe condition. Piers will be kept clear of all gear, including dinghies, skiffs or other equipment and may not hang such gear or other equipment from pilings. Customers are prohibited from making any modifications or alterations to piers, slips and pilings. Private stowage facilities may not be used on the walkways. Bicycles will be permitted on the piers at Dinner Key Marina if parked in a manner so as not to block passage on the pier. Non-compliance with any of the above provisions may be cause for removal and/or termination of their license agreement.
(Code 1967, § 50-47; Code 1980, § 53-42; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-237. Disposal of garbage, waste and refuse into marinas or yacht basins.

It shall be unlawful for any person to throw trash or garbage or waste oil into the waters of city marinas or yacht basins. Garbage and trash shall be placed in containers in a designated location at or near the city docks.
(Code 1967, § 50-84; Code 1980, § 53-43)

Sec. 50-238. Toilet and shower facilities on boats.

It shall be unlawful to utilize at any city marina any toilet or shower facilities on boats which are not equipped in accordance and compliance with federal regulations on waste disposal. Violation of this section shall result in termination of all contracts obtained pursuant to this article and shall result in the expulsion from all city-owned marinas.
(Code 1967, § 50-83; Code 1980, § 53-44)

Sec. 50-239. Flame-producing equipment.

In the interest of safety and fire prevention, the use or storage of grills and/or charcoal burners, burning and welding equipment, grilling equipment or any open-flame equipment is prohibited within marina areas, including but not limited to the marina piers and docks, except within the enclosed vessel and at the owner's own risk. Grills are not permitted to be stored on marina piers or docks.
(Code 1967, § 50-10; Code 1980, § 53-45; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-240. Repairing, fitting out, etc., of vessels.

Routine maintenance and minor repairs necessary for the preservation and seaworthiness of the vessel may be performed within the marina. Major repairs may not be performed at city marinas. Routine maintenance and minor repairs are considered to be those which:

(1) Do not disturb the public peace and tranquility of any person aboard any boat under the jurisdiction of the city manager.

(2) Do not contribute to a disorderly or unsightly appearance during the process of repair or maintenance.

(3) Are capable of accomplishment with hand tools or certain portable power tools normally carried aboard the vessel.

(4) Are confined to the vessel.

(Code 1967, § 50-49; Code 1980, § 53-47)

Sec. 50-241. Refueling vessels.

(a) It shall be unlawful to refuel any vessel at other than approved marine service facilities or other approved and permitted sites. For purposes of this section, such refueling facilities and sites shall be approved and/or permitted by the city manager using rules and standards promulgated by the city manager.

(b) It shall be unlawful to refuel any vessel with a fuel having a flashpoint lower than 100 degrees Fahrenheit (37.8 Celsius) from a mobile delivery vehicle or with a person aboard such vessel except such of the vessel's crew as are necessary to perform the refueling operation.

(c) Tank barges and fuel supply boats are expressly prohibited within city-owned marina areas.

(d) For purposes of this section, "mobile fuel delivery vehicle" means a wheeled land vehicle used for purposes of delivering motor fuel. The vehicle and appurtenant fuel delivery equipment shall be of a type currently approved for such use by the Florida department of transportation (FDOT), and shall comply with all regulations of the FDOT and the Florida department of agriculture and consumer services.

(e) All mobile delivery vehicles utilizing city-owned marina facilities to deliver motor fuel ("fuel") as defined in F.S. § 207.002, as amended, shall comply with the following requirements:

(1) Fuel delivery shall be limited to those liquids having flashpoints at or above 100 degrees Fahrenheit (37.8 Celsius).

(2) Fuel delivery shall only be made by those individuals or business enterprises possessing a valid city local business tax receipt.

(3) All fuels shall be dispensed in the presence of a city employee assigned by the dockmaster, or designee thereof, during hours specified by the dockmaster. The dockmaster may require fuel delivery operators to notify the dockmaster, or his/her designee, of the intent to utilize city-owned facilities at least two hours before such use. The employee shall record the beginning and ending pump reading for each mobile delivery vehicle making a delivery.

(4) The individual or enterprise making such deliveries shall pay to the city, as a user fee, the greater of ten percent of gross sales, or a fee, as established by the city manager, on each gallon dispensed at any approved location at a city-owned facility. The remittance shall be paid in accordance with procedures established by the dockmaster upon the conclusion of the daily delivery or deliveries, and shall be accounted for utilizing administrative procedures as developed and implemented by the dockmaster and the department of finance.

(5) All individuals or business enterprises utilizing mobile delivery vehicles to deliver fuel to vessels pursuant to this section shall obtain and present to the dockmaster evidence of an insurance policy approved by the city's insurance coordinator. The insurance policy shall consist of

a contractor's liability policy and a commercial owner's policy endorsed for such refueling, and naming the city as an additional insured. Additionally, such policies shall protect the city from liability for bodily injury, property damage, or environmental damage, including cleanup and restoration costs, resulting from spillage or any other incident on city-owned land involving the delivery of fuel by such vehicles.

(Code 1967, § 50-9; Ord. No. 10800, § 1, 10-18-90; Code 1980, § 53-48; Ord. No. 12885, § 1, 2-8-07; Ord. No. 12992, § 2, 5-8-08; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-242. Removal of vessels for cause.

The city manager or his/her designee may cause the removal of any vessel from city marina property when it is necessary in order to repair the dock, because of a previous reservation, or for any good or reasonable cause; and should the owner or person in charge refuse to remove such a vessel, the city, through the city manager or his/her designee, may assess reasonable charges for the cost of having the vessel moved.

(Code 1967, § 50-44; Code 1980, § 53-49; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-243. Dockage in certain locations not permitted.

No more than three commercial vessels may berth at the South Quay Wall of the Miamarina, only one of which may be operated primarily as a motor vessel.

(Code 1967, § 50-78(d); Code 1980, § 53-30; Ord. No. 11343, § 1, 2-29-96)

Sec. 50-244. Illegal activities prohibited.

Any illegal activity within city marinas shall be grounds for immediate prosecution under the provisions of state law. It is the intent of the city to prosecute each violation to the fullest extent of the law. If there is a reasonable cause for suspicion of an illegal activity occurring within any city marina, the appropriate authorities will be called immediately. It is the policy of the city to not tolerate any illegal drug use or possession of illegal drugs within its jurisdiction or within any city marinas. Such use or possession shall be immediately prosecuted to the fullest extent of all applicable laws.

(Ord. No. 12992, § 2, 5-8-08)

Secs. 50-245—50-270. Reserved.

DIVISION 2. NONCOMMERCIAL VESSELS

Sec. 50-271. Vacant berths or moorings—Rerental by city.

If any noncommercial vessel leaves its assigned space for more than 72 hours, the city reserves the right to rerent this space while such space is known to be vacant. The owner vacating such space shall give the dockmaster adequate advance information concerning the vessel's expected return so that proper arrangements can be made to have his/her berth or mooring clear upon his/her return.

(Code 1967, § 50-56; Code 1980, § 53-61; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-272. Same—Assignment or subletting by tenants.

Assignment of dockage agreements or sublicense of rental of boats, berths or moorings by licensees at city marinas is prohibited. Licensees shall not grant free use of their berths or moorings to other vessels during a period when their own vessel may be absent from the berth or mooring, inasmuch as the city reserves the right to re-license their berth or mooring during such periods of absence. The owner of a licensee vessel agrees to advise the city of any change of ownership, or of rental, of a vessel while subject to a city dockage agreement, not later than 24 hours following such change.

(Code 1967, § 50-57; Code 1980, § 53-62; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-273. Restriction on use of private boat docked in noncommercial area primarily for business purposes.

It is not the operating policy of city marinas to provide dockage in noncommercial areas for

vessels whose primary function is to conduct business, or to facilitate sales or promotional activities normally carried on in commercial areas. The use of any private boat berthed at a noncommercial slip or mooring primarily for business purposes is prohibited; furthermore, the use of the city marina facility address for business purposes by noncommercial vessels is prohibited. Violation of this section shall be immediate cause for the city manager to require removal of the vessel from city marinas.
(Code 1967, § 50-58; Code 1980, § 53-63)

Sec. 50-274. Living aboard—Generally.

The privilege of living aboard private boats is extended to professional captains, owners and bona fide guests only, and shall in other respects be governed by regulations applicable at individual city marinas.
(Code 1967, § 50-59; Code 1980, § 53-64)

Sec. 50-275. Same—Limitation at Miamarina.

Long-term living aboard at Miamarina shall be restricted by the city manager to whatever number of vessels is compatible with the city's intent to retain as much dockage as possible for transient vessels and at the same time produce the maximum possible revenue from the marina's operations.
(Code 1967, § 50-60; Code 1980, § 53-65)

Sec. 50-276. Dockage agreements, berthing of private vessels on first come, first served basis based on size.

Private vessels and those fishing vessels which neither transport passengers nor provide services to the public for compensation shall be assigned berths by execution of a dockage agreement on a first come, first served basis. All such private vessels at city-owned marinas shall be assigned berths on a first come, first served basis based on the size of vessel or berth.
(Code 1967, § 50-61; Code 1980, § 53-66; Ord. No. 11712, § 3, 10-13-98)

Secs. 50-277—50-300. Reserved.

DIVISION 3. COMMERCIAL VESSELS

Sec. 50-301. License agreements, assignment of berths.

(a) Dockage space in city marinas shall be rented for commercial vessel use only upon the execution of a license agreement between the city and the vessel owner. The license agreement form shall be available for inspection in advance by interested parties at the dockmaster's office.

(b) Berths in city dock facilities shall be assigned as it appears best for the interests of the city, taking into consideration the availability of berths, the size of the vessel, and the services to be rendered by the vessel. No changes in assignment shall be made except as approved by the city manager or his/her designee.
(Code 1967, § 50-62; Code 1980, § 53-72; Ord. No. 11712, § 3, 10-13-98; Ord. No. 12992, § 2, 5-8-08; Ord. No. 13676, § 2, 4-27-17)

Editor's note—Ord. No. 12992, § 2, adopted May 8, 2008, changed the title of § 50-301 from "Dockage agreements, assignment of berths" to "License agreements, assignment of berths."

Sec. 50-302. Sale, assignment or sublicense of berths.

No berth at a city marina may be sold, assigned or sublicensed by any licensee or otherwise transferred to another person.
(Code 1967, § 50-63; Code 1980, § 53-73; Ord. No. 12992, § 2, 5-8-08)

Editor's note—Ord. No. 12992, § 2, adopted May 8, 2008, changed the title of § 50-302 from "Sale or sublease of berths " to "Sale, assignment or sublicense of berths."

Sec. 50-303. Tickets—Sales restricted.

Passage tickets sold on the city docks shall be sold only at city-established booths or the rail of the boat.
(Code 1967, § 50-64; Code 1980, § 53-74)

Sec. 50-304. Same—Number of booths permitted.

A licensee under this division may not have more booths than he/she has vessels operating.
(Code 1967, § 50-65; Code 1980, § 53-75; Ord. No. 12992, § 2, 5-8-08; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-305. Same—Solicitation of passengers.

The solicitation of passengers on any dockage facilities of the city may be made only from established booths. Solicitation of passengers may be made only by the owner, operator or representative of a licensed craft from assigned booths in an ordinary conversational tone of voice, and solicitation may not be made by the use of music or loud noises, either vocal, reproduced or amplified by mechanical means. No animals may be used or exhibited in order to gather crowds, attract attention or advertise any business or service offered to the public by licensees or any other person at city marina facilities.
(Code 1967, § 50-66; Code 1980, § 53-76; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-306. Same—Booth maintenance.

Booths operated by licensees and all adjacent areas shall be kept clean and free of all encumbrances, including display of marine life. It shall be the duty of the certificate holder to keep the booth and adjacent areas swept and clean and free of such encumbrances.
(Code 1967, § 50-67; Code 1980, § 53-77; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-307. Same—Booth damage or relocation.

It shall be unlawful for any person to overturn, damage or deface any booth under this division. No booth may be moved or relocated without written permission of the city manager or his/her designee.
(Code 1967, § 50-68; Code 1980, § 53-78; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-308. Living aboard by employees.

No employee or any other person shall be permitted to utilize a bait or shrimp fishing vessel, or other similar type of vessel, or a certified vessel as a place of residence while the vessel is berthed at a city marina. These vessels shall be secured as soon as possible after the final trip of the day, and no person shall remain aboard overnight or while the vessel is not in use.
(Code 1967, § 50-69; Code 1980, § 53-79)

Sec. 50-309. Termination of dockage agreement.

Failure to comply or abide with the provisions of the dockage agreement or the terms of this chapter shall result in termination and cancellation of the dockage agreement, as well as subject to penalties as provided in section 1-13 or chapter 2, article X.
(Code 1967, § 50-70; Code 1980, § 53-80; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-310. Standards for sightseeing boats at Miamarina.

Notwithstanding anything in this article to the contrary, the city shall not issue a dockage agreement to a sightseeing boat at Miamarina unless the sightseeing boat meets the uniform design and operational criteria, established from time to time by the city manager or designee, and set forth in the dockage agreement for sightseeing boats operating from Miamarina.
(Ord. No. 11343, § 1(53-72), 2-29-96; Ord. No. 13351, § 2, 12-13-12)

Editor's note—Ord. No. 13351, § 2, adopted December 13, 2012, repealed the former section 50-310 in its entirety, which pertained to sightseeing boat limitation, and derived from Ord. No. 11343, § 1(53-81), adopted February 29, 1996; Ord. No. 11846, § 2, adopted October 26, 1999, and Ord. No. 12992, § 2, adopted May 8, 2008. Subsequently, Ord. No. 13351 redesignated the former section 50-311 as section 50-310 to read as herein set out. The historical notation has been preserved for reference purposes.

Secs. 50-311—50-335. Reserved.

DIVISION 4. RATES, CHARGES, BILLING AND COLLECTION

Sec. 50-336. Dockage and mooring rates.

The dockage rates at all city marinas shall be established from time to time by the city manager upon consideration of the following criteria:

(1) Current bond debt service requirements of no less than 150-percent coverage.

(2) Return on proposed or previously completed, nonbonded, capital improvement.

(3) Operating expenses.

(4) Management fees of any private management firm engaged in providing management services to the marina.

(5) Reserve for improvements and major maintenance.

(6) Other city financial needs.

(Ord. No. 9251, § 1, 3-17-81; Code 1980, § 53-86; Ord. No. 11433, § 1, 1-16-97; Ord. No. 12992, § 2, 5-8-08)

Editor's note—Ord. No. 12992, § 2, adopted May 8, 2008, changed the title of § 50-336 from "Dockage rates" to "Dockage and mooring rates."

Secs. 50-337. Reserved.

Editor's note—Ord. No. 12992, § 2, adopted May 5, 2008, repealed § 50-337 in its entirety, which pertained to courtesy dockage at Miamarina for customs clearance, and derived from the Code of 1967, § 50-54, and the Code of 1980, § 53-91.

Sec. 50-338. When dockage and mooring fees are due and payable; delinquency in payment.

Dockage and mooring fees at all city marinas are due and payable in advance. Monthly dockage and mooring fees, based on a 30-day month, are due and payable in advance on the first day of each month and shall be considered delinquent if not paid on or before the tenth of the month. A licensee who is delinquent for a period of 20 days shall be considered to be in breach of and have defaulted on his or her license agreement, and shall have 30 days to pay in full all outstanding dockage and mooring payments and late fees owed to the city. If payment in full is not made after this period, the city shall revoke his/her license agreement and reassign the berth.

(Code 1967, § 50-71(c); Code 1980, § 53-92; Ord. No. 11712, § 3, 10-13-98; Ord. No. 12992, § 2, 5-8-08)

Editor's note—Ord. No. 12992, § 2, adopted May 5, 2008, changed the title of § 50-338 from "When dockage due and payable; delinquency in payment" to "When dockage and mooring fees are due and payable; delinquency in payment."

Sec. 50-339. Responsibility for damage to city property.

Owners or operators of vessels shall be required to reimburse the city for any damage or defacement which they or their vessels may cause to city piers or other city property.

(Code 1967, § 50-51; Code 1980, § 53-95)

Sec. 50-340. Vessel checkout procedure.

Licensees checking out of the marina shall report to the dock office and pay their accounts prior to leaving. Checkout time shall be established by the dockmaster. Boats occupying a berth after checkout time shall be charged dockage for that night.

(Code 1967, § 50-75; Code 1980, § 53-96; Ord. No. 12992, § 2, 5-8-08)

Sec. 50-341. Removal of vessels with delinquent charges prohibited.

It shall be unlawful for the owner, operator or person in charge of any vessel to remove such vessel from city property without first making payment of all delinquent charges when such vessel has a delinquency in its dockage account. The owner, operator or person in charge of such vessel shall be responsible for compliance with this section.

(Code 1967, § 50-76; Code 1980, § 53-97)

Sec. 50-342. Lien for unpaid fees and nonjudicial sale.

The city shall acquire a maritime lien against the vessel, their appurtenances, and contents for all unpaid marina and docking fees, late charges, or any damage caused to any dock, pier or any other property of the facility. For undocumented vessels, pursuant to F.S. § 328.17, as amended, in the event of non-payment of storage or any other charges within the prescribed period, the facility is authorized to sell the owner's vessel at a nonjudicial sale.

(Code 1967, § 50-77; Code 1980, § 53-98; Ord. No. 12992, § 2, 5-8-08)

Editor's note—Ord. No. 12992, § 2, adopted May 8, 2008, changed the title of § 50-342 from "Lien for unpaid fees" to "Lien for unpaid fees and nonjudicial sale."

Sec. 50-343. Reapplication for dockage after revocation.

Any person or principal in a business or corporation listed as licensee for dockage at a city marina who has had that dockage agreement revoked by the city, may reapply for dockage after a period of 12 months. Any outstanding dockage payments, late fees, or other charges owed to the city must be paid in full prior to reapplication for dockage.
(Ord. No. 11712, § 3, 10-13-98)

Sec. 50-344. Capital improvement fund.

Recognizing that our city marinas serve as stewards of the environment and as family-friendly gateways to water based recreational and commercial activities, it is vital to the best interests of the city to provide a dedicated and sustainable source of funding for vital capital repair and improvement projects, and as a source of match funding for capital grant opportunities. Toward that end, ten percent of the gross dockage monies received each fiscal year shall be set aside into a special account that shall be dedicated to funding necessary capital repairs and capital related improvements to city marinas and mooring facilities and for the provision of matching funds for grant opportunities.
(Ord. No. 12937, § 2, 8-1-07)

Secs. 50-345—50-400. Reserved.

ARTICLE VI. CITY MOORING FACILITIES

DIVISION 1. GENERALLY

Sec. 50-401. Purpose and intent.

The purpose of this article is to promote the public health, safety, and general welfare of the citizens of the city and visiting boaters in city waters using our municipal mooring facilities. It is the intent of this article to provide for the primary management and operational functions of these facilities through the creation of rules, regulations, and procedures. These regulations are designed to provide for the safe harbor and use of vessels within municipal mooring facilities; mitigate hazardous navigational conditions created by unsafe vessel operations and anchoring practices; protect the rights of safe navigation within city waters; and to protect and preserve the city's environmentally sensitive aquatic resources.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-402. Authority to regulate.

The city shall possess all rights permitted by law to regulate the use and activities of municipal mooring facilities and anchorages within the city, and the conduct of persons using such.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-403. Authority of the harbormaster.

The harbormaster is responsible for the safe, lawful, and efficient operations of municipal mooring facilities within the city and shall be authorized to assign moorings. No vessel shall occupy any mooring slip without the approval of the harbormaster. Transfer of vessels from one mooring slip to another without the prior approval of the harbormaster is prohibited. Vessel owners desiring to transfer to a different mooring than the one assigned shall obtain the prior authorization of the harbormaster an complete all required paperwork to be obtained in the harbormaster's office. For safety, security, or other management considerations the harbormaster may move or relocate any vessel from the particular mooring space rented to any other mooring space in the sole discretion of the harbormaster, in addition to other penalties provided in this Code. Any violation of the provisions within this division may void the license agreement for use of the mooring space and result in the ejection of the vessel from the facility, as well as the forfeiture of any part or all of the security deposit, if deemed appropriate in the sole discretion of the harbormaster. The decision or interpretation of these rules and regulations shall be the responsibility of the harbormaster. Appeals thereof may be made to the marinas manager, the director of public facilities, and ultimately the city manager.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-404. Duties and responsibilities of the harbormaster.

The duties and responsibilities of the harbormaster, as carried out through the harbormaster's office and staff, shall include, but not be limited to:

(1) Enforcing the appropriate provisions of this chapter and any associated facility rules and regulations to ensure the safe, lawful, and efficient operations of city mooring facilities and anchorage areas;

(2) Providing administration for the daily operation, maintenance, and security of the facility;

(3) Assigning mooring spaces to customers, maintaining customer records, supervising the collection of mooring fees and related charges, as well as collection of delinquent accounts;

(4) Supervises personnel engaged in the daily operations of the facility, including inspection of customer vessels, moorings & related equipment; maintenance and repairs to property and equipment; operation of work and customer shuttle vessels; and other duties and responsibilities.

(5) Provides overall assistance and information to the general public regarding the city's municipal mooring fields and anchorage areas, i.e. weather and wind conditions, mooring fees, facility rules and regulations, safe boating practices, etc.

(6) Coordinates with authorities and regulatory agencies regarding fuel spills, hazards to navigation, storm cleanup, and declared emergencies.

(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-405. Public mooring fields and anchorages.

Public mooring fields and anchorages within the jurisdictional boundaries of the city may be established or designated only by the city manager.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-406. Enforcement.

Under the direction of the city manager, the harbormaster is authorized and directed to enforce the rules and regulations established for the safe operations of city mooring facilities and anchorages.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-407. Same—Assignment or subletting by licensees.

Assignment of dockage agreements or sublicense or rental of boats, berths or moorings by licensees at city mooring facilities is prohibited. Licensees shall not grant free use of their berths or moorings to other vessels during a period when their own vessel may be absent from the berth or mooring, inasmuch as the city reserves the right to re-license their berth or mooring during such periods of absence. The owner of a licensee vessel agrees to advise the city of any change of ownership, or of rental, of a vessel while subject to a city dockage agreement, not later than 24 hours following such change.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-408. Non-licensee vessels prohibited from entering mooring field.

Entry into mooring field areas is prohibited, except by those vessels and their dinghies assigned by the harbormaster to a mooring, dinghies visiting those vessels assigned to moorings, facility staff or other authorized work vessels, and enforcement vessels.
(Ord. No. 12992, § 2, 5-8-08)

Secs. 50-409—50-420. Reserved.

DIVISION 2. REGULATIONS

Sec. 50-421. Facility rules and regulations; purpose and intent.

The rules and regulations contained in this division are designed to safeguard boaters and their vessels, and to create and promote the safe, lawful, and efficient operations of municipal mooring facilities. The city manager or his/her designee is authorized to create, modify, or remove

such rules, regulations, and policies as deemed necessary for this purpose. The rules and regulations contained within the Dinner Key Mooring Facility mooring plan shall be adopted as the formal rules, regulations, and policies of that facility, and shall serve as guidelines for future municipal mooring facilities within the city.
(Ord. No. 12992, § 2, 5-8-08; Ord. No. 13676, § 2, 4-27-17)

Sec. 50-422. Operational vessels only.

Only vessels that are deemed to be in compliance with the United States Coast Guard regulations and safety standards and F.S. ch. 327, as amended, shall be allowed to moor within municipal mooring fields. Only vessels in good operational condition, capable of maneuvering under their own power and with current registration or documentation shall be allowed to moor in the facility. The determination of whether a vessel is considered to be in good operational condition, capable of maneuvering under their own power shall be the sole discretion of the harbormaster. Vessels without integral or functional power for propulsion are not allowed in the facility.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-423. Vessel equipment requirements.

All vessels within municipal mooring fields should have a dinghy or other small craft as an alternate means of conveyance to enable access to the dinghy dock and harbormaster's office. Absent this, the vessel owner shall communicate the absence of a dinghy to the harbormaster. The lack of such a dinghy shall not be cause to refuse rental of a mooring. It is the sole responsibility of vessel occupants to provide their own conveyance to the upland facilities. Under no circumstances is the city responsible for owning, operating, or maintaining a dinghy for the exclusive use of mooring patrons.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-424. Commercial use of moorings prohibited.

Commercial activities or vessels engaged in commercial activities are prohibited from mooring in municipal mooring fields. However, this would not prohibit commercial vessels from using such facilities. No advertising or soliciting shall be permitted on any vessel within any mooring facility, except two "for sale" signs, not exceeding one square foot in size, may be placed on a vessel. Use of moorings for brokerage purposes is prohibited, however this section will not preclude a licensee from utilizing a yacht broker to assist in the sale of their vessel.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-425. Mooring of the vessel.

All persons landing by vessel or dinghy must register at the harbormaster's office within 12 hours of landing. Vessels shall be moored in designated mooring areas only. The sole method of mooring of vessels at each slip shall be by tying the vessels at the bow only—no vessel shall be moored to the buoys at the stern. The use of anchors within the facility is prohibited—the use of additional anchors to supplement the mooring provided is prohibited. Dinghies shall be kept on board or alongside the vessel when not in use, and shall not impede or restrict access to fairways and channels. Rafting or mooring of more than one vessel to any buoy shall be prohibited, without the prior express approval of the harbormaster.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-426. Illegal activities prohibited.

Any illegal activity within municipal mooring facilities and anchorage areas shall be grounds for immediate prosecution under the provisions of state law. It is the intent of the city to prosecute each violation to the fullest extent of the law. If there is a reasonable cause for suspicion of an illegal activity occurring within any facility or anchorage area, the appropriate authorities will be called immediately. It is the policy of the city to not tolerate any illegal drug use or possession of illegal drugs within its jurisdiction or within any municipal mooring facilities or anchorage areas. Such use or possession shall be immediately prosecuted to the fullest extent of all applicable laws.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-427. Waste management; marine pollution.

Discharge of human or pet waste overboard in city waters is prohibited. Upon entering any municipal mooring field, all vessels shall secure their sewage holding tanks, which are to be emptied into the sewage pumpout facilities prior to mooring. Absolutely no pumping of any sewage into any area within the facility shall be permitted, except at the pumpout station or by a pumpout vessel. All vessels with live aboard occupants will be required to have their holding tanks pumped out not less than every three days without fail. Violation of this provision shall constitute immediate grounds for ejection from the facility and forfeiture of security deposit.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-428. Dinghy dock at Dinner Key mooring field; uses; permits.

The city shall provide a dinghy dock for the accommodation of dinghies (not vessels) of the Dinner Key mooring facility customers at no charge on a first come, first served basis. Dinghies of non-facility vessels shall pay a landing fee and shall be issued a use permit by the facility; which rate shall be established by the city manager or their designee. First priority for dinghy dock use and dinghy landing shall be given to dinghies of Dinner Key mooring facility customers over all other dinghies with regard to space availability. Proof of current license agreement is required at all times to use the dinghy dock. Use of the dinghy dock is restricted to such reasonable limits on time as may be established by the harbormaster and no dinghy shall be left at the dinghy dock for more than 24 continuous hours without the prior permission of the harbormaster. The tying of dinghies by facility customers or other non-facility vessel owners to the docks, piers, and sea walls of Dinner Key Marina is prohibited. Unattended dinghies found tied to city docks, piers, and sea walls shall be considered abandoned and may be seized and impounded.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-429. Fueling prohibited within mooring field.

Fueling of vessels within municipal mooring facilities is prohibited; vessel fueling is permitted at city designated fueling stations.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-430. Unsightly or badly deteriorated vessels.

No vessel of any kind which is of unsightly appearance, badly deteriorated, or unseaworthy condition, which is likely to damage other vessels or city facilities, or which might become a menace or hazard to navigation, shall be permitted to moor within municipal mooring fields.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-431. Responsibilities of licensees; no liability on use of mooring facilities.

The city assumes no responsibility for the use of city-provided moorings, dinghy dock, and upland amenities at any city facility by vessel owners, operators, guests, or other personnel. The city and its personnel assume absolutely no liability for personal possessions, any vessel, dinghy, or their contents or use while said vessels are located within any municipal mooring facility, dinghy dock, or upland amenities.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-432. Safe operation of vessels.

Reckless or negligent operation of any vessel, including any recreational vessel, small craft, or dinghy, when in the judgment of the harbormaster said operation is an endangerment to life, property, or other vessels, shall be grounds for immediate ejection from a municipal mooring facility or anchorage area.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-433. Use of pumpout vessel; pumpout facilities.

Vessels moored at municipal mooring facilities are required to utilize city-provided pumpout facilities or pumpout vessel. Those vessels utilizing a type I or II marine sanitation device as

defined in 33 C.F.R. Part 195 are required to provide proof of the specified functionality of their system to the harbormaster or to seal their tank. Any use of their system must be in strict accordance with USCG and state requirements. The harbormaster may, in their discretion, mandate the placement of trace dye tablets to be placed in the holding tank of any vessel moored within a facility.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-434. Major repairs prohibited.

Major repairs or refitting of vessels, including any activities which could result in a deposition of materials into the water or within the mooring field, is strictly prohibited. Minor repairs and maintenance work may only be conducted with the prior notification and approval of the harbormaster. The harbormaster's office shall be contacted in advance of any contemplated work to verify compliance. Additionally, only city staff shall undertake and accomplish any repairs to docks, piers, moorings, or any other common area structures or appurtenances. Any unauthorized activity in violation of the above may result in ejection from the facility and forfeiture of security deposit.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-435. Discharge of waste; removal of trash.

Discharge of any solid or liquid waste (human or pet) into the waters within municipal mooring facilities is prohibited. Violators are subject to immediate ejection from the facility, and notification by the harbormaster of said violation to the appropriate authorities, including the Florida Department of Environmental Protection (FDEP) for appropriate enforcement action. Litter must be deposited ashore to facility receptacles. Vessel owners shall contact the facility regarding the proper disposal procedures for waste oil, rags, bilge socks, absorbents, anti-freeze, used fuel, and batteries. The city's marinas and mooring facilities do not accept hazardous waste or materials for disposal.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-436. Prohibited activities.

Prohibited activities at municipal mooring facilities shall include, but not be limited to, the following:

Major repairs/refitting;

Charcoal, wood, or open flame burners (cooking stoves to be UL approved);

Swimming or diving within the mooring facility unless performing vessel maintenance or repairs commercial activities; advertising or soliciting;

Disorderly, rowdy, or boisterous conduct; excessive noise that impedes the quiet enjoyment of the facility by others;

Hanging laundry from the vessel in public view.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-437. Manatees and protected species; feeding of wildlife.

Vessel owners and their guests shall acquaint themselves with the publications and warnings available at the harbormaster's office regarding safe operation in waters frequented by manatees, and to abide by all laws, ordinances, rules and regulations governing the operation of vessels and watercraft in the presence of manatees. Harassment of protected species is illegal and will not be tolerated. It is prohibited for any vessel owner or guest to feed or leave food for wildlife, particularly birds or endangered species.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-438. Non-licensee use of moorings prohibited.

It is prohibited for any non-licensee vessel to anchor or tie to any mooring within any municipal mooring facility without the prior authorization of the harbormaster, except in demonstrated case of emergency.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-439. Unauthorized departure of vessels.

It shall be unlawful for the owner, operator, or person in charge of any vessel to remove such vessel from city property without first making payment in full of all due and delinquent charges owed the city.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-440. Maritime liens and nonjudicial sale.

The city shall acquire a maritime lien against the vessel, their appurtenances, and contents for all unpaid mooring fees, late charges, or any damage caused to any mooring or any other property of the facility. For undocumented vessels, pursuant to F.S. § 328.17, in the event of non-payment of storage or any other charges within the prescribed period, the facility is authorized to sell the owner's vessel at a nonjudicial sale.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-441. Tying alongside of dinghies, kayaks, canoes.

Dinghies and tenders shall be stored whenever possible on licensees' vessels, in order to maintain safe navigational passage through mooring fields and anchorage areas. A licensee may store one dinghy, kayak, or canoe under 14 feet in length onboard or alongside the licensed vessel without obtaining a separate license agreement. In all other cases, including but not limited to personal watercraft, a separate license agreement must be obtained for each vessel. Rafting of vessels other than dinghies, as determined by the harbormaster, is prohibited.
(Ord. No. 12992, § 2, 5-8-08)

Sec. 50-442. No motorized vessels within marked limited access area at Dinner Key mooring facility; exceptions.

All vessels equipped with internal combustion or electric motors in excess of ten horsepower are prohibited from entering the Dinner Key limited access area.
(Ord. No. 12992, § 2, 5-8-08)

Secs. 50-443—50-500. Reserved.

ARTICLE VII. DERELICT VESSELS

Sec. 50-501. Purpose and findings.

(a) There are currently a number of derelict vessels, as defined herein, in, on, and under the city's public waterways and on the adjoining shoreline.

(b) Such derelict vessels pose potential hazards to safe navigation and commercial and recreational use of city waters as well as to the environment.

(c) These derelict vessels are hazards to public safety and waterfront property during severe weather.

(d) Derelict vessels are sources of degradation of the aesthetic value of city waters and shoreline.

(e) The city has, by virtue of F.S. § 823.11, the authority to provide by ordinance for the removal and disposition, including destruction, of derelict vessels.

(f) The purpose of this article is to promote the public safety, health, and welfare of the residents of the city and the tourists and guests visiting or vacationing in the city by reducing or eliminating the threats posed by derelict vessels through the exercise of the authority granted to the city pursuant to F.S. § 823.11.
(Ord. No. 13797, § 2, 10-11-18)

Sec. 50-502. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purpose of this article, have the meanings indicated in this article:

Derelict vessel means a vessel as defined in F.S. § 327.02, as amended from time to time, that is left, stored, or abandoned:

(1) In a wrecked, junked, or substantially dismantled condition upon any public waters of this state;

(2) At a port in this state without the consent of the agency having jurisdiction thereof; or

(3) Docked, grounded, or beached upon the property of another without the consent of the owner of the property.

Law enforcement officer means any person who is elected, appointed, or employed full time by any sheriff, any municipality, or the state or any political subdivision thereof who is vested with authority to bear arms and make arrests and whose primary responsibility is the prevention and detection of crime or the enforcement of the penal, criminal, traffic, or highway laws of the state. This definition includes all certified supervisory and command personnel whose duties include, in whole or in part, the supervision, training, guidance, and management responsibilities of full-time law enforcement officers or auxiliary law enforcement officers but does not include support personnel employed by the employing agency.
(Ord. No. 13797, § 2, 10-11-18)

Sec. 50-503. Procedure for removal or relocation.

(a) *Without prior notice.* Where a law enforcement officer determines that a vessel constitutes a navigational hazard or a hazard to public safety or is determined to interfere with another vessel or where a derelict vessel obstructs or threatens to obstruct navigation or in any way constitutes a danger to the environment, property, or persons, the Law enforcement officer may immediately remove or relocate, but not destroy, the vessel pursuant to F.S. §§ 327.44, 327.70, 376.15, and 823.11.

In the event a derelict vessel is removed or relocated prior to notice being given to the owner of the derelict vessel, the law enforcement officer shall make a reasonable effort to ascertain the name and address of the last registered owner(s) of the derelict vessel. The law enforcement officer shall also contact the department of highway safety and motor vehicles in order to determine the name and address of any person(s) who has filed a lien on the derelict vessel as provided in F.S. § 319.27(2) or (3) or F.S. § 328.15(1). On receipt of this information, the law enforcement officer shall mail a notice by certified mail, return receipt requested, to the owner(s) and lienholder(s), if any, advising of the location where the derelict vessel is being held, the reason for removal or relocation, that the owner(s) may request an administrative hearing in accordance with section 50-504 of this article, and that failure to request a hearing pursuant to section 50-504 of this article shall be deemed a waiver of the right to a hearing and an agreement to the remedy of removal, sale, destruction, or other disposition of the derelict vessel.

Notice given pursuant to this subsection is presumed to be delivered when it is deposited with the United States Postal Service, certified, and properly addressed with prepaid postage. Certified mail that is returned undeliverable or if delivery is refused shall be deemed as delivered for purposes of this section.

(b) *With prior notice.* Except where a derelict vessel constitutes an immediate hazard to navigation, the environment, or to public health, safety, and welfare, a law enforcement officer shall affix a notice upon the derelict vessel at least 21 days before removing or relocating it, in substantially the following form:

> NOTICE TO THE OWNER AND ALL PERSONS INTERESTED IN THE ATTACHED PROPERTY. This vessel, to wit: (setting forth brief description of location) has been determined to be (derelict or a public nuisance) and is unlawfully upon the waters of this state (setting forth brief description of location) and must be removed within 21 days; otherwise, it will be removed and disposed of pursuant to Chapter 705 Florida Statutes. The owner and other interested parties have the right to a hearing to challenge the determination that this vessel is derelict or otherwise in violation of the law. Please contact (contact information for person who can arrange for a hearing in accordance with this section). The owner or the party determined to be legally responsible for the vessel being upon the waters of this state in a derelict condition or as a public nuisance will be liable for the costs of removal, destruction, and disposal if this vessel is not removed by the owner. Dated this: (setting forth the date of posting of notice), signed: (setting forth name, title, address, and telephone number of the enforcement officer).

The notice may not be less than eight inches by ten inches and must be sufficiently weatherproof to withstand normal exposure to the elements. In addition to posting, the law enforcement officer shall contact the Department of Highway Safety and Motor Vehicles in order to determine the name and address of the owner and any person who has filed a lien on the vehicle or vessel as provided in F.S. § 319.27(2) or (3), or F.S. § 328.15. On receipt of this information, the law enforcement Officer shall mail a copy of the notice by certified mail, return receipt requested, to the owner and to the lienholder, if any, except that a law enforcement officer who has issued a citation for a violation of F.S. § 823.11, to the owner of a derelict vessel is not required to mail a copy of the notice by certified mail, return receipt requested, to the owner. For a derelict vessel or a vessel declared a public nuisance pursuant to F.S. § 327.73(1)(aa), the mailed notice must inform the owner or responsible party that he or she has a right to a hearing to dispute the determination that the vessel is derelict or otherwise in violation of the law. If a request for a hearing is made, the city shall follow the processes set forth in F.S. § 120.569, except that a magistrate, or code enforcement officer may be designated to conduct such a hearing. If, at the end of 21 days after posting the notice and mailing such notice, if required, the owner or any person interested in the derelict vessel or a vessel declared a public nuisance pursuant to F.S. § 327.73(1)(aa), has not requested a hearing in accordance with this section, the law enforcement officer may:

(1) Remove the vessel from the waters of this state and destroy and dispose of the vessel or authorize another governmental entity or its designee to do so; or

(2) Authorize the vessel's use as an artificial reef in accordance with F.S. § 379.249, if all necessary federal, state, and local authorizations are received.

A law enforcement officer may also take action as described above if, following a hearing pursuant to this section, the judge, magistrate, administrative law judge, or hearing officer has determined the vessel to be derelict as provided in F.S. § 823.11, or otherwise in violation of the law in accordance with F.S. § 327.73(1)(aa), and a final order has been entered or the case is otherwise closed.

(Ord. No. 13797, § 2, 10-11-18; Ord. No. 14267, § 2, 4-11-24)

Sec. 50-504. Administrative hearings to determine disposition of derelict vessels.

(a) *Request for an administrative hearing.* The owner(s) of a derelict vessel may request a hearing before the code enforcement board to show that the condition(s) alleged in the notice does not exist or that the derelict vessel is not derelict pursuant to F.S. § 823.11, by submitting a written request for hearing to the office of hearing boards within 21 days after the notice required by this section is given. The written request may be provided by facsimile, electronic mail, or other electronic means and must indicate if the owner contends that the vessel is not derelict, or indicate such other specific grounds on which impoundment, removal, or destruction of the derelict vessel is challenged. Failure to request a hearing pursuant to this section shall be deemed a waiver of the right to a hearing and an agreement to the remedy of removal, impoundment, sale, destruction, or other disposition of the derelict vessel.

(b) *Hearing notices.*

(1) Within 30 days of receipt of a derelict vessel owner's timely written request for an administrative hearing, the office of hearing boards shall schedule a hearing before the code enforcement board.

(2) The office of hearing boards shall send a written notice of hearing by certified mail, return receipt requested, to the derelict vessel owner(s) at his or her last known mailing address stating the time, date, and place of the hearing.

(3) The notice of hearing shall inform the owner(s) of the specific grounds for classification of the vessel as derelict, and his or her opportunity to demonstrate why the condition(s) alleged in the notice does not exist or that the vessel is not

derelict pursuant to F.S. § 823.11. The notice of hearing shall additionally advise that:

a. Failure of the owner(s) or person(s) entitled to possession of the derelict vessel to timely request or attend a scheduled hearing shall be deemed a waiver of the right to such hearing and creates a presumption that the vessel is derelict.

b. The person(s) demanding the hearing shall carry the burden of establishing by a preponderance of the evidence that the condition(s) alleged in the notice does not exist or that the vessel is not derelict.

c. The costs of impoundment, removal, sale, destruction, or other disposition of a derelict vessel shall be taxed to the registered owner(s).

d. Pursuant to F.S. § 705.103(4), any person who neglects or refuses to pay such amount shall not be entitled to be issued a certificate of registration for such derelict vessel or motor vehicle, or any other vessel or motor vehicle, until such costs have been paid.

No other notices are required. Unless the derelict vessel constitutes an immediate hazard to navigation or to public health, safety, and welfare, a timely written request for a hearing under this section stays all enforcement proceedings until an order of the code enforcement board is rendered.

(c) *Conduct of hearings.*

(1) Hearings pursuant to this article shall be conducted by the code enforcement board.

(2) The city manager shall provide all necessary clerical and administrative staff support to the code enforcement board, including space and necessary expenses which may be reasonably required by the code enforcement board for the proper performance of its duties. Among other duties, the office of hearing boards shall be custodian of all cases and documents pertaining thereto and shall have the authority to certify orders and other documents issued by the code enforcement board.

(3) All hearings before the code enforcement board shall be open to the public. All testimony shall be given under oath and shall be recorded electronically or by a stenographer. Such recording may be transcribed at the expense of the party requesting the transcript.

(4) The code enforcement board shall consider the evidence presented by the derelict vessel owner(s) and the city at the hearing. Formal rules of evidence shall not apply, but fundamental due process shall govern the proceedings. All parties shall have an opportunity to present evidence and argument on all issues involved, conduct cross examination, submit rebuttal evidence, and be represented by counsel.

(5) The code enforcement board shall proceed with a hearing in absentia on the merits of the alleged violation for all registered owner(s) whom have been properly noticed in regard to the hearing and fail to appear. Any findings or orders resulting from such hearing are valid and binding upon the registered owner(s).

(6) The code enforcement board shall determine whether a vessel is derelict in violation of this article. If the code enforcement board determines that a vessel is not derelict, then the vessel shall be returned to the owner(s) without payment of costs for removal and storage or the owner(s) shall be entitled to a refund or reimbursement of the reasonable costs of removal and storage if they were paid by the owner(s).

If the code enforcement board determines that a vessel is derelict, the city may proceed to dispose of the derelict vessel as provided in F.S. § 823.11. The costs of storage, removal, sale, destruction, or other disposition of a derelict vessel shall be taxed to the registered owner(s). If the

registered derelict vessel owner(s) does not pay the costs of removal, storage, and disposal (whether by destruction, sale, or otherwise) of a derelict vessel within 30 days of the date the city sends an invoice, then the city may lien the derelict vessel with such costs.

(7) Following a hearing, the code enforcement board shall make findings of fact and conclusions of law based upon the evidence presented and made part of the record determining whether a vessel is derelict. The decision of the code enforcement board is final.

(Ord. No. 13797, § 2, 10-11-18)

Sec. 50-505. Special assessment lien for costs of removal and disposition of derelict vessels.

All costs of removal, storage, and disposal (whether by destruction, sale, or otherwise) of a derelict vessel shall be charged to the owner of such derelict vessel to the full extent permitted by law. Any person who neglects or refuses to pay such amount shall not be entitled to be issued a certificate of registration for such derelict vessel or motor vehicle, or any other vessel or motor vehicle, until such costs have been paid.

If the registered derelict vessel owner(s) does not pay the costs of removal, storage, and disposal (whether by destruction, sale, or otherwise) of a derelict vessel within 30 days of the date the city sends an invoice, then the city may lien the derelict vessel with such costs. The lien created shall be considered a special assessment lien that may be recorded in the public records of Miami-Dade County. The lien shall accrue interest at the maximum legal rate allowed by law from the date of the city's invoice until the costs and administrative fee are paid. The city attorney is hereby authorized to file such instruments as are necessary to establish and enforce any lien upon such derelict vessel for such costs. The city may foreclose on such lien pursuant to section 2-827 of this City Code. Such lien shall have equal dignity with a tax lien.

(Ord. No. 13797, § 2, 10-11-18)

Sec. 50-506. Appeal.

An aggrieved party, including the city, may appeal a final decision of the code enforcement board to the circuit court of the Eleventh Judicial Circuit of Florida in accordance with the Florida Rules of Appellate Procedure. Such an appeal shall not be a hearing de novo but shall be limited to appellate review of the record created before the code enforcement board. An appeal shall be filed within 30 days of rendition of the order to be appealed.

(Ord. No. 13797, § 2, 10-11-18)

Sec. 50-507. Nonexclusivity of remedy.

The remedies referenced in this section are cumulative with other available remedies pursuant to state law, including but not limited to, arrest and prosecution pursuant to criminal statutes, civil remedies, and fines, and are not exclusive. The city's access to the courts of the state is neither precluded nor prohibited by the enactment of this article.

(Ord. No. 13797, § 2, 10-11-18)

Chapter 51

RESERVED

Chapter 52

SPECIAL EVENTS

Article I. Special Event Permits

Sec. 52-1. Definitions.
Sec. 52-2. Special events in general; duration and limitations; city commission waiver.
Sec. 52-3. Application, time for filing.
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Sec. 52-9. Informal notice and hearing.
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Sec. 52-12. Appeals.
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Article II. Seasonal Sales Event Permits

Sec. 52-26. Seasonal sales event permit permits.
Sec. 52-27. Revocation.

Article III. Pop-Up Event Permits

Sec. 52-28. Pop-up event permits.
Sec. 52-29. Revocation.

ARTICLE I. SPECIAL EVENT PERMITS

It is the intent of this chapter to encompass the requirements for special events located on both public and private property in the city.

Sec. 52-1. Definitions.

The following words, terms and phrases, when used herein, shall have the meanings ascribed to them in this Code, except where the context clearly indicates a different meaning:

City-hosted event shall mean such events to include, but are not limited to, street naming ceremonies, food drives/giveaways, and holiday celebrations where the city, as host of the event, uses its own resources and services.

City-sponsored event shall mean a special event where the city provides sponsorship through monetary and/or in-kind contribution and where the city is recognized either through the permissible use of the city seal or other similar recognition for the event.

Large special event is a special event where it is reasonably expected that more than 1,001 persons will be in attendance at any given time.

Medium special event is a special event where it is reasonably expected that 251 to 1,000 persons will be in attendance at any given time.

Pop-up event means events for the temporary sale of goods and merchandise, advertising, or for a limited period of time.

Seasonal sales event means events for the temporary sale of seasonal items including, but not limited to, Christmas trees, pumpkins, fireworks and other items sold during holiday seasons.

Special event means events of limited duration, open to a designated number of people which involves the use of public parks; public rights-of-way; privately-owned property; publicly-owned property or any combination of the above, and:

(1) Which includes entertainment, dancing, music, dramatic productions, art exhibitions, or the sale of merchandise, food or alcohol, or any combination of the foregoing;

(2) Which requires the erection of stages, utility poles, booths, tents, or other temporary structures, or the use of parked vehicles or of permanent structures;

(3) Which of necessity requires for its successful execution the provision and coordination of municipal services to a degree significantly over and above that which the city routinely provides under ordinary everyday circumstances;

(4) Which is not one of the authorized uses of a property and is an event which is not included as a customary, primary, or ancillary use as identified in its certificate of use. For those properties that do not require certificates of use, such as one- or two-family homes, it is an event that is over 100 people and impacts traffic and access to the public right-of-way;

(5) Which involves any group of persons and/or vehicles moving on a street or streets of the city under permit as herein provided in accordance with a plan or common purpose for a celebration, display, exhibition, show, or advertisement, whether for public, semi-public, or private purposes, but does not include a parade as defined in chapter 54 of this Code.

(6) For a special event which shall occur in one of the city parks, the special event shall include the above as well as the sale of alcoholic beverages.

Small special event is a special event where it is reasonably expected that up to 250 persons will be in attendance at any given time.

Special event permit means a permit as required by sections 52-2 or 38-74 of this Code.

Street or *streets* shall have the same meaning as provided in section 54-1 of this Code.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-2. Special events in general; duration and limitations; city commission waiver.

(a) It shall be unlawful to conduct or engage in a special event without first obtaining an approved special event permit.

(b) A special event may occur on public, private or in a combination of public and private properties that would require special review by the city.

(c) Special event permits will delineate all other temporary uses included for the event, i.e., tents, temporary structures, barricades, fencing, and the like, necessary for the event.

(d) The special event location shall be restored to its original condition and all temporary structures shall be broken down after each special event period.

(e) Where a special event, including but not limited to, a carnival, parade, party, block party, neighborhood celebration event, festival, fair, outdoor sales, or similar type of event is permissible on privately owned property, the event shall be subject to the following:

(1) Special events, which include mechanical rides, are permissible only on Thursdays, Fridays, Saturdays, and Sundays and/or legal holidays, unless other days are approved by the city commission. Otherwise, on all other days, these events shall be Permitted only at Watson Island, Virginia Key and the facilities and parking lots of Miami Marine Stadium, and the Marlin's Stadium.

(2) Special events, which do not include mechanical rides, are permissible on any day of the week.

(f) Open air and outdoor music festivals, concerts or noise generating, except for Historic Virginia Key Beach and Park, special events shall only occur between the hours of 7:00 a.m. to 11:00 p.m. on city-owned properties or facilities.

(g) No more than four special events shall be permitted, each for a maximum duration of seven consecutive days, to be held on the same private property or portion thereof per calendar year. The above-referenced seven days shall not include days required to set up or break down the event.

(h) Special events on City of Miami Property:

(1) City of Miami owned, operated and maintained property, including public right-of-way, parks, Marine Stadium and street festivals, shall be permitted up to ten calendar days per organization, per year.

(2) City of Miami owned but leased property, such as "the Hanger" and "Watson Island," shall be permitted up to ten special events per year each for 14 days per location.

(i) The above limitations on special events may be waived by an affirmative vote of the city commission for the calendar year affected. Any such additional permit(s), however, will be limited to 14 consecutive days at a time.

(j) A special event hosted, not sponsored, by the city shall not be required to obtain a special event permit. Such events include, but are not limited to, street naming ceremonies, food drives/giveaways, and holiday celebrations.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-3. Application, time for filing.

A complete, written, and notarized application for a special event permit shall be timely filed with the city manager, or designee, on an approved form not fewer than the following corresponding days:

(1) *Small special events:* 30 days before the event.

(2) *Medium special events:* 30 days before the event.

(3) *Large special events:* 45 days before the event.

The above application period is intended to allow for adequate arrangements to be made for the provision of proper personnel, equipment and supplies, sanitation (litter, debris and human wastes), wastewater, utilities, building permitting and inspection, park maintenance and

restoration. Applications that do not comply with this requirement shall only be considered upon payment of double the application fee and availability of city staff to review.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-4. Application requirements.

(a) Applications for special event permits shall be submitted in application forms as provided by the city. The application fee shall be established by the city manager, or designee. The application will not be considered unless accompanied by such plans, reports, photos, exhibits, documents, or other information required below.

(b) The applicant shall provide all information as required based upon the permit sought as set forth by the city manager, or designee, which may include, security plan, fire safety plan, solid waste plan, noise attenuation plan, or other such information as needed.

(c) Proof of payment of a nonrefundable application fee.

(d) Payment of a security deposit. A refundable security deposit, as determined by the city manager, or designee, in the form of, cash, a cashier's check, or irrevocable letter of credit, may be required prior to the issuance of the permit. Based on the scope and location of the event, a pre- and post-event site inspection may be conducted, at the city's discretion, by the applicant and appropriate city personnel to determine existing conditions and evaluate potential damages, if any. Security deposits will be refunded approximately in three to four weeks after the event if all conditions are followed; public property is left in as good condition or better and without damage and all city invoices paid. Failure to comply with conditions imposed may result in forfeiture of the entire or part of deposit.

(e) Referrals. The city manager, or designee, shall make referrals as specified herein based on the nature of the application.

(1) Building;

(2) Fire;

(3) Office of film and entertainment;

(4) Police;

(5) Public works;

(6) Risk management;

(7) Solid waste;

(8) Zoning; and

(9) Other departments or agencies as needed.

(f) A fee of $0.25 per day per linear foot of street obstructed by the special event shall accompany each permit application to the department of resilience and public works for the use of the public right-of-way. The linear footage shall be calculated by the department of resilience and public works utilizing the city's officially established monument lines. The director of the department of resilience and public works shall have the authority to prorate the fee on an hourly basis for special events of less than 24-hour total duration.
(Ord. No. 14357, § 2, 3-13-25; Ord. No. 14368, § 2, 6-17-25)

Sec. 52-5. Criteria for issuance of special event permit.

The city manager, or designee, will issue a special event permit when, from a consideration of the application and from such other information as may otherwise be obtained, the following criteria, appear to be satisfied:

(1) For a special event to take place wholly or partially on the public right-of-way, the conduct of the special event will not substantially interrupt the safe and orderly movement of other traffic contiguous to the special event;

(2) For a special event to take place wholly or partially in a park, the conduct of the special event will not substantially interrupt the use of the park by other members of the public;

(3) The police department can provide police services adjacent to the Permit area to regulate vehicular and pedestrian traffic, with the availability of a sufficient contingent of on-duty personnel to provide such services without diminishing routine service levels to the entire community;

(4) The concentration of persons and vehicles at the special event will not unduly interfere with proper fire and police protection or ambulance service to areas contiguous to the special event;

(5) The special event will not interfere with the movement of firefighting equipment en route to a fire;

(6) Submittal of a complete application that includes all of the documentation and approvals set forth herein.

(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-6. Criterial for denial of special event permits.

The city manager, or designee, may deny a permit to an applicant when:

(1) The special event intended by the applicant would conflict with previously planned programs organized and conducted by the city and previously scheduled for the same time and place;

(2) The proposed special event is prohibited by, or inconsistent with, the classifications and uses of the park, or part thereof, designated pursuant this chapter;

(3) The special event would present an unreasonable danger to the health or safety of the applicant, or users of a park, or city employees, or the public;

(4) The special event is prohibited by law, or by this code, or is not in compliance with the Americans with Disabilities Act (ADA);

(5) The application for permit contains a material falsehood or misrepresentation;

(6) The applicant is legally incompetent to contract, or to sue and be sued;

(7) The applicant, or the person on whose behalf the application for permit was made, has on a prior occasion made material misrepresentations regarding the nature of scope of an event or activity previously permitted or has violated the terms of prior permits issued to or on behalf of the applicant;

(8) The application for permit is not fully completed and executed, or does not include all required permits, plans, and other required documentation within the required time period;

(9) The applicant or the person on whose behalf the applicant for permit was made, has on prior occasions damaged city property and has not paid in full for such damage;

(10) A state of federal, state or local emergency has been declared by lawful authority for the proposed time;

(11) An applicant has failed to complete payment of any sums required for a previously permitted special event until such time as payment is received, or may condition the granting of a new permit on the payment of amounts in arrears in connection with previous special events;

(12) An applicant has failed to substantially perform a cleanup plan which was made a condition of a previous permit, or who has defaulted on a previous sanitation bond or fee or supplemental user fee deposit in connection with a permitted special event until such time as restitution is made;

(13) The applicant has failed to pay any required fees or security deposits or submitted all of the required supporting documentation, or provided the required insurance;

(14) A fully executed and complete prior application for permit for the same time and place has been received, and a permit has been or will be granted to a prior applicant authorizing uses or activities which do not reasonably permit multiple occupancy of the particular public right-of-way, park, or part thereof; and

(15) The applicant or the venue has conducted a special event on a prior occasion without obtaining a special event permit.

No applicant for, or recipient of, a special event permit shall be required to provide for, or pay for the cost of, public safety personnel

necessary to provide for the protection of a festival and its attendees from hostile members of the public or counter-demonstrators or for general law enforcement in the vicinity of the special event. However, the holder of a permit shall be required to provide for a plan for internal security for the special event and shall be required to provide and pay for off-duty police officers and private security guards for such internal security purposes as required by the chief of police, or designee. In determining the adequacy and appropriateness of any internal security plan, the chief of police, or designee, shall be guided solely by considerations of the

number and qualifications of off-duty police and private security guards necessary to provide internal security within the boundaries of the special event, as indicated by experience with similar events

No permit shall be denied, nor shall the applicant for a permit be given less favorable treatment as to time, manner, or place on account of any message which may be conveyed at a festival, or on account of the identity or associational relationships of the applicant, nor to any assumptions as to the amount of hostility which may be aroused in the public by the content of speech or message conveyed by the special event. (Ord. No. 14357, § 2, 3-13-25)

Sec. 52-7. Insurance and indemnity.

Indemnity, hold harmless and insurance. It shall be a condition precedent to the issuance of any such permit that the applicant shall indemnify, defend and hold the city harmless from all claims, suits or actions of any kind whatsoever arising out of or resulting from the special event, the issuance of the permit, or the operations or activities of the permittee and shall, further, indemnify, defend and hold the city, its officials, and employees harmless for any injuries, losses, or damages arising or resulting from the special event including any injuries, losses, or damages resulting from alleged negligent acts or omissions on the part of the city. The applicant shall ensure that adequate safety precautions are in effect at all times during the term of the permit. It shall be a further condition precedent to the issuance of any such permit for the event that the permit holder(s) is/are jointly and severally responsible, at each permit holder's expense, for any damages regarding restoring the public right-of-way to its original condition before installation of facilities.

(1) *Non-governmental applicant(s).* Prior to the issuance of any such permit, the non-governmental applicant(s) shall provide the city with a certificate of insurance affording coverage for commercial general liability with limits of at least $1,000,000.00 per occurrence, $2,000,000.00 aggregate for bodily injury and property damage. The certificate must be endorsed to reflect primary and noncontributory, and further insure against contingent and contractual exposures, personal and advertising injury, underground hazards, if applicable and products and completed operations. At the request of the city, the applicant shall also furnish additional lines of coverage with limits acceptable to the city in connection with the scope of services contemplated under this permit. The city must be listed as additional insured on all applicable third-party liability policies. The insurance herein required shall remain in full force and effect during the entire term of the permit. Additionally, all such insurance for non-governmental applicant(s) shall be subject to annual review by the city's risk management department and the applicant shall be required to update as necessary to protect the city as set forth in this section.

(2) *Government applicant(s).* Prior to the issuance of any such permit, the governmental applicant(s) shall submit to the city a certificate of insurance or letter of self-insurance for each governmental applicant in accordance with and subject to the limitations as set forth in F.S. § 768.28.

(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-8. Application determination.

(a) Decisions of the city manager, or designee, regarding special event permits shall be amended by reports received on the referrals as provided in section 52-4. Approvals of special event permits for special events by the city manager, or designee, shall be based on the criteria utilized by the different departments or other governmental agencies upon which referrals were made. Such criteria shall be as determined by each of the city departments or agencies and as regulated by other applicable laws. The city manager, or designee, shall review comments as provided by each city department or agency to determine whether the proposed event complies with all of the individual criteria. A recommendation of denial by any department or agency shall be

accompanied by specific findings which enumerate how the request does not comply with their individual criteria. The duration of each special event shall be clearly stated within the approved Permit.

(b) Approvals of applications shall be issued when such application is complete and complies with all applicable criteria and requests.

(c) Conditional approvals of applications shall be issued when such applications require conditions to be satisfied in order to be found in compliance with applicable criteria.

(1) The city manager, or designee, shall have authority to attach to the grant of a special event permit such conditions and safeguards as may be necessary. Such conditions and safeguards shall be based upon, and consistent with, considerations and standards applicable to the special event permit. The requirement for any such conditions or safeguards shall be supported by stated reasons, based upon such considerations and standards, and no such condition or safeguard shall establish special limitations and/or requirements beyond those reasonably necessary for the accomplishment of the purpose for which the condition or safeguard is attached.

(2) Failure to comply with conditions and safeguards, when attached to the grant of a special event permit, shall be deemed a violation of this Code.

(d) Denials of applications shall be issued if after conditions and safeguards have been considered and the application still fails to comply with all applicable criteria; any provision of this Code will be violated by the special event; or for any other good cause determined by the city manager, or designee.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-9. Informal notice and hearing.

No formal public notice or hearing is required in connection with special event permits, however, the following may be required as directed by the city manager, or designee:

(1) Notice to adjacent property owners. When required, at the time of initial application, the applicant will notify all abutting property owners, including those abutting across the street or alley, on an approved city form via first class mail.

In the case of adjacent commercial buildings or condominiums or other multi-family housing, only one notice to the condominium association, or building owner will be sent.

(2) Courtesy notice to registered neighborhood and/or homeowner associations. All neighborhood and/or homeowner associations that wish to receive a courtesy notice of special event permit applications in their area, shall register with the city on a yearly basis. Such registration shall consist of a letter to the city, in which the association shall request such notification and shall specify the name, address, telephone number and electronic mail (E-mail) address of the official representative of the association, designated to receive said notice and a list of all the officers of said association.

(3) The applicant shall submit, with the application proof of mailing which may be accomplished by affidavit.

(4) At the city manager's, or designee's, discretion, only email notice, in lieu of email and mail notice, will be required to the registered neighborhood and/or homeowner associations based on the size and nature of the special event in question, if the special event does not impact the surrounding area at all.

(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-10. Withdrawal of application; effect of withdrawal.

An application for a special event permit may be withdrawn by the applicant at any time prior to a decision without restrictions as to a resubmittal. An applicant who withdraws an application shall not be entitled to any refund of the application fee.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-11. Approvals, approval with modifications, denials, and alternates times.

(a) The city manager, or designee, shall approve, approve with conditions, deny, or modify the permit. If the application is denied, such notice will state the reasons for denial.

(b) Alternate date, time, or location. The city manager, or designee, in denying an application for a special event permit, shall be empowered to authorize the conduct of the Special Event on a date, at a time or location different from that requested by the applicant. An applicant may propose and provide for the on-duty police officers to be supplemented by the number of off-duty officers providing special police service as required to maintain adequate routine service levels pursuant to chapter 42 of this Code. An applicant desiring to accept an alternate permit shall, within five days after notice of the action of the city manager, or designee, file a written notice of acceptance with the city manager, or designee. An alternate special event permit shall conform to the requirements of, and shall have the effect as, a special event permit under this article.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-12. Appeals.

Any applicant shall have the right to appeal the denial of a special event permit to the city manager. The appeal shall be filed with the city manager within seven days after the notice of denial is received. The city manager shall act in writing upon the appeal within seven days from receipt. Any applicant aggrieved by the decision of the city manager may seek immediate judicial review.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-13. Compliance; possession of permit.

(a) A permittee under this Code shall comply with all permit directions and conditions, and with all applicable laws, sections of this Code, and other ordinances; and

(b) The chair, or other person organizing or heading the special event, shall carry the special event permit personally at all times during the conduct of the special event and shall be produced upon demand by the city.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-14. Revocation.

The city manager, or designee, shall have the authority to revoke a special event permit issued under this section upon finding that the criteria for issuance as set forth in this section no longer exist. A permittee may seek judicial review of any decision to revoke a special event permit.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-15. Other public gatherings.

This section shall not prevent any person or persons from conducting a parade, assembling on the streets or sidewalks, in any park, or on public or private property, for the purpose of making any speech, engaging in spontaneous expression, or conveying any message to the public or government without holding a permit pursuant to this section. Should any such persons wish to assemble for such purpose and should they not be holding a special event permit under this section, they shall not be prevented from doing so, provided that they have complied with any other ordinance or law, if there be any, regulating such other event or gathering.
(Ord. No. 14357, § 2, 3-13-25)

Secs. 52-16—52-25. Reserved.

ARTICLE II. SEASONAL SALES EVENT PERMITS

Sec. 52-26. Seasonal sales event permit permits.

(a) Seasonal sales events shall be permitted subject to the applicable criteria listed herein on a vacant lot or portion of a lot not reserved for required parking purposes. Such uses may be Permitted in commercial and industrial transect zones and conditioned by a seasonal sales event permit for a period not to exceed five weeks. The

city manager may require notice be sent to immediately adjacent (including immediately across the street) property owners.

(b) Seasonal sales applicants shall submit the same application as a special event as set forth in section 52-4 of the City Code and shall be subject to the same review, approval, denial, appeal and notification processes as set forth in sections 52-3, 52-5, 52-6, 52-7, 52-8, 52-9, 52-11, and 52-12 of the City Code.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-27. Revocation.

The city manager, or designee, shall have the authority to revoke a seasonal sales event permit issued under this section upon finding that the criteria for issuance as set forth in this section no longer exist or items being sold are outside the scope of the seasonal sales permit issued.
(Ord. No. 14357, § 2, 3-13-25)

ARTICLE III. POP-UP EVENT PERMITS

Sec. 52-28. Pop-up event permits.

(a) Pop-up events shall be permitted subject to the applicable criteria listed herein on a vacant lot or portion of a lot not reserved for required parking purposes. Such uses may be permitted in commercial and industrial transect zones and conditioned by a pop-up event permit which shall be valid for no more than seven contiguous days. The city manager may require notice be sent to immediately adjacent (including immediately across the street) property owners.

(b) Pop-up applicants shall submit the same application as a special event as set forth in section 52-4 of the City Code and shall be subject to the same review, approval, denial, appeal and notification processes as set forth in sections 52-3, 52-5, 52-6, 52-7, 52-8, 52-9, 52-11, and 52-12 of this City Code.
(Ord. No. 14357, § 2, 3-13-25)

Sec. 52-29. Revocation.

The city manager, or designee, shall have the authority to revoke a pop-up event permit issued under this section upon finding that the criteria for issuance as set forth in this section no longer exist or the activity occurring is outside the scope of the pop-up event permit issued.
(Ord. No. 14357, § 2, 3-13-25)

Chapter 53

STADIUMS AND CONVENTION CENTERS*

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Article IV. Convention Center of the City of Miami/University of Miami, James L. Knight

Sec. 53-181. Schedule of fees.

***City Code cross references—**Investigation of applicants for use, lease, rental, etc., of city-owned facilities and other municipal property, § 2-777; discrimination by lessees of city property, § 18-188 et seq.; parks and recreation, ch. 38; fees for use of community centers, etc., §§ 38-7, 38-8; ships, vessels, and waterways, ch. 50; Coconut Grove special events district, § 54-341 et seq.

ARTICLE I. IN GENERAL

Sec. 53-1. Ticket surcharge on paid admissions to events.

(a) *Applicability.*

(1) *To certain facilities.* A ticket surcharge shall be imposed against all paid admissions to city-owned facilities, including, without limitation, the Marine Stadium, the Miami Convention Center, and the Bayfront Park Amphitheater, and on tour boats operating at Miamarina at Bayside. Said surcharge shall additionally apply where admission is charged for events conducted in city parks, facilities therein, and/or community centers. However, no ticket surcharge shall be imposed upon any event held at the Manuel Artime Community Center, regardless of paid admissions. Unless specifically exempted below, and for the purposes of this section, "events" shall include activities, programs, concerts, festivals, parties, meetings and other gatherings for whatever social, entertainment, cultural, sport or other purpose and for which attendees are expected to pay or make a donation in order to attend. The application of the ticket surcharge shall commence upon the effective date of this section, except for those events for which advance ticket sales have the prior approval of the city manager, or designee.

(2) *Exemptions.* The following activities as defined herein shall be exempted from the application of the ticket surcharge on paid admissions:

a. *Banquets:* Official celebratory or ceremonial dinners with speeches that honor or memorialize particular person(s) or occasion(s) and are held by organizations or groups for their members, delegates, representatives and invited guests.

b. *Conferences:* Participatory meetings designed for discussion, fact finding, problem solving, and/or consultation between members, representatives, delegates and/or other affected parties of organizations on related issues.

c. *Consumer shows:* Exhibitions of related products and/or services that are open to the public.

d. *Conventions:* Formal assemblies or meetings of members, delegates, and representatives of an organization or group, such as a political party, fraternal society or business/professional association, that are convened for a common purpose.

e. *Trade shows:* Exhibitions of products and/or services that are not open to the public but are open only to particular members, representatives, businesses and/or groups involved in a specific trade.

Additionally, said surcharge shall not apply to the International Boat Show.

(b) *Rate of surcharge.* Notwithstanding contractual agreements to the contrary, the rate of the ticket surcharge shall be dependent upon the price of admission charged to attendees of a given event, as established by the sponsor or promoter of said event, as follows:

Price of Admission (or suggested donation)	*Ticket Surcharge*
$1.00—14.99	$0.75
15.00—29.99	1.00
30.00—99.99	2.00
100.00—249.99	3.00
250.00—499.99	5.00
500.00—999.99	10.00
1,000.00 and up	12.00

The ticket surcharge shall apply in addition to the actual admission price and shall be exclusive of any applicable taxes and/or service charges. Each charge shall be itemized and shown separately on each ticket.

(c) *Collection, accounts and payment.* The sponsor or promoter of each event or tour operation shall be responsible for the collection of the ticket surcharge, which shall be recorded and

listed as a separate item in the statement of accounts for said event or tour operation. Such records and accounts shall be maintained and available in accordance with all applicable city requirements and Code provisions. Payment of the ticket surcharge to the proper city authorities shall be made as soon as reasonably possible after the conclusion of the event or tour operation along with any and all other sums which may be due the city, and in no case shall be permitted to remain unpaid longer than 60 calendar days after the event and in land facility venue cases, shall be paid prior to the holding of another subsequent event by the same sponsor. Receipts from said surcharge shall be retained by or used as subsidy for the facility, marina or park from which they are generated to augment its operating or capital budget.
(Ord. No. 10439, § 1, 5-19-88; Ord. No. 10509, § 1, 11-3-88; Code 1980, § 53-1; Ord. No. 11998, § 2, 11-16-00; Ord. No. 12184, § 2, 2-14-02; Ord. No. 12403, § 4, 9-11-03; Ord. No. 12715, § 2, 7-28-05; Ord. No. 13367, § 2, 3-14-13; Ord. No. 13705, § 2, 10-26-17; Ord. No. 13818, § 3, 1-10-19)

Note—Amendments to this Section [subsection (b)] made pursuant to Ordinance 13705, § 3, adopted on October 26, 2017, shall not apply to tickets sold pursuant to the March 6, 2014 Use Agreement with Event Entertainment Group, Inc., a Florida for-profit corporation d/b/a Ultra Music Festival ("Ultra").

Sec. 53-2. Right to establish special charges, terms and/or conditions.

Nothing contained in the provisions of this chapter shall limit or restrict the right of the city commission to establish and fix special charges or special terms and conditions for the use of city public facilities.
(Ord. No. 10509, § 2, 11-3-88; Code 1980, § 53-3)

Secs. 53-3—53-25. Reserved.

ARTICLE II. CITY STADIUMS

DIVISION 1. GENERALLY

Sec. 53-26. Bringing glass bottles or metal containers into stadiums.

It shall be unlawful to bring glass bottles or metal containers into the city stadiums, which are the Orange Bowl and Marine Stadium.
(Code 1967, § 39-16.3; Code 1980, § 53-104; Ord. No. 11998, § 2, 11-16-00)

Secs. 53-27—53-50. Reserved.

DIVISION 2. MARINE STADIUM

Sec. 53-51. Stadium area designated.

The following area is hereby designated as the Marine Stadium:

Commence at the southeast corner of section 17, township 54 south, range 42 east, thence run north 89 degrees 56 minutes 49 seconds west, along the southerly line of section 17 for a distance of 2,448.79 feet, more or less, to a point of intersection with a line which is 150 feet northwesterly of, and parallel with, the corporate boundaries of the city and its southwesterly prolongation thereof; thence run north 64 degrees 34 minutes 52 seconds east along such line for a distance of 62.64 feet to the point of beginning of the hereinafter-described tract; thence continue northeastwardly along the last-described course, being 150 feet northwestwardly of, and parallel with, the corporate boundaries of the city and its southwesterly prolongation thereof, for a distance of 2,308.54 feet more or less to the point of intersection with a line that is 2,370.00 feet northeasterly of and parallel with the centerline of the Rickenbacker Causeway; thence run north 45 degrees 22 minutes 07 seconds west along such line for a distance of 6,593.10 feet more or less to a point of intersection with the Metropolitan Dade County bulkhead line as shown in plat book 74, page 9, sheet 2 of the public records of Dade County, Florida; thence run south 44 degrees 06 minutes 48 seconds west along such bulkhead line for a

distance of 2,757.57 feet more or less to a point of intersection with a line that is 200 feet northerly of, and parallel with, the centerline of Rickenbacker Causeway; thence run north 89 degrees 06 minutes 48 seconds east, along such line for a distance of 138.57 feet to a point of curve; thence run eastwardly and southeastwardly along the arc of a tangential curve to the right, having a radius of 1,632.40 feet and a central angle of 45 degrees 31 minutes 05 seconds for a distance of 1,296.84 feet to a point of tangency on a line that is 200 feet northeasterly of, and parallel with, such centerline of Rickenbacker Causeway; thence run south 45 degrees 22 minutes 07 seconds east, along such line, being 200 feet northeasterly of, and parallel with, such centerline of Rickenbacker Causeway for a distance of 4,518.73 feet at the point of beginning; excepting, however, a 200-foot by 200-foot easement conveyed by the county to the Southern Bell Telephone and Telegraph Company, such easement being more particularly described as follows:

Commence at the southeast corner of section 17, township 54 south, range 42 east, thence run north 89 degrees 56 minutes 49 seconds west along the southerly line of section 17 for a distance of 2,565.05 feet more or less to the point of intersection with a line which is 200 feet northwesterly of, and parallel with, the corporate boundaries of the city and its southwesterly prolongation thereof, thence run north 64 degrees 34 minutes 52 seconds east along such line for a distance of 638.82 feet to a point, such point also lying on the corporate boundaries of the city; thence run north 45 degrees 22 minutes 07 seconds west along such corporate boundaries which is 660.00 feet northeasterly of, and parallel with, the centerline of the Rickenbacker Causeway for a distance of 1,697.97 feet to the point of beginning of the hereinafter-described tract; thence run south 44 degrees 37 minutes 53 seconds west for a distance of 200.00 feet to a point; thence run north 45 degrees 22 minutes 07 seconds west for a distance of 200.00 feet to a point; thence run north 44 degrees 37 minutes 53 seconds east for a distance of 200.00 feet to a point; such point lying on the corporate boundaries of the city which is 660.00 feet northeasterly of, and parallel with, the centerline of the Rickenbacker Causeway; thence run south 45 degrees 22 minutes 07 seconds east along such corporate boundaries for a distance of 200 feet to the point of beginning.

Above-described property contains 312.7 acres more or less.
(Code 1967, § 2-48.1; Code 1980, § 53-116)

Sec. 53-52. Regulations generally.

In addition to any other laws applicable to the operation of the Marine Stadium, the following regulations are hereby established:

(1) At times other than when public events are scheduled, it shall be unlawful to trespass on the water and land area comprising the city's Marine Stadium without written permission from the city or a properly designated representative thereof.

(2) It shall be unlawful to bring canned or bottled goods into the Marine Stadium grandstand.

(3) It shall be unlawful to build fires for any purpose at the Marine Stadium on land or in the boats.

(4) It shall be unlawful to have an animal or other pet in the grandstand.

(5) The following activities are unlawful on the land and water area comprising the Marine Stadium unless any of such activities has been specifically authorized: boat traffic, waterskiing, picnicking and fishing.

(6) Other than the area designated for use by self-contained camper trailers, it shall be unlawful to park a motor vehicle, or to anchor, moor or dock a boat overnight anywhere in the Marine Stadium area or to use any portion or facility of the Marine Stadium for overnight lodging.

(7) The public shall have access to the boat hoist and boatramp facilities at the Marine Stadium during daylight hours at times when events are not being conducted.

There is hereby established a fee of $5.00 as payment for the use of the boat hoist, but there shall be no charge for the use of the boatramp.

(8) A land area at the Marine Stadium shall be designated wherein self-contained camper trailers may be parked and utilized for overnight loading at a fee to be established by ordinance. The city manager shall establish such regulations necessary for the control and management of this operation.

(Code 1967, § 2-48.2; Ord. No. 9449, § 1, 6-17-82; Code 1980, § 53-117)

Sec. 53-53. Rental rates and associated charges and conditions.

(a) *Definitions.* For the purpose of this section, the following words and phrases shall have the meanings respectively ascribed to them by this subsection:

Aquatic event: An activity or gathering involving persons and equipment in the presentation of a show, stunt, demonstration, etc., on water.

Athletic event: An activity or gathering involving sports contests or games such as swimming, boxing or wrestling.

Boat racing event: An activity or gathering involving racing contests or boat games such as power boat racing, rowing championships or other boat races.

City manager: The city manager or his/her authorized designee.

Concert event: An activity or gathering involving the presentation of musicals, the philharmonic, rock concerts and stage shows.

Other events: An activity or gathering other than events previously, or elsewhere in this subsection (a), described, such as events sponsored by nonprofit entities or conventions. The examples herein are illustrative only and do not preclude other types of activities or gatherings.

Patrons: The person purchasing an admission ticket to an event or series of events in and/or outside the stadium.

Stadium: The Marine Stadium (Commodore Ralph E. Munroe Marine Stadium).

Trade shows: An activity or gathering involving the display or showing of new merchandise, equipment and other items of commerce.

User: The person or parties entering into a use agreement with the city for an event or series of events to be held in the Marine Stadium. Such person may also be referred to as the "sponsor."

(b) *Admission tax and minimum charges.*

(1) Except as otherwise provided in this section, charges by the city for the use of the stadium shall be assessed as follows:

a. For the use of the stadium premises for other events and trade shows, there shall be assessed a fee, payable in advance, which shall be the greater of $1,575.00 per show day and $525.00 per day for setup and/or breakdown, or a city tax on each admission to the stadium of ten percent of the gross price, as established by the sponsor, on each admission sold by the sponsor of the event to be held in and on the stadium premises, less any federal, state or locally imposed tax payable upon such admission price. The $1,575.00-per-day fee or ten percent of the gross price does not include any stadium costs except normal electricity, water and sewer service. All event costs, including but not limited to security, electricians, custodial personnel, restroom attendants, office attendants, cleanup costs, police department personnel required for traffic control and crowd control, etc., shall be paid by the sponsor.

b. For the use of the stadium premises for any concert or events including, but not limited to, athletic events, boat racing events and aquatic events, and concert events where no admission is charged, there shall be assessed a fee, payable in advance,

which shall be the greater or $2,625.00 per day or a city tax on each admission to the stadium of 12 percent of the gross price, as established by the sponsor, on each admission ticket sold by the sponsor of the event to be held in and on the stadium premises, less any federal, state or locally imposed tax payable upon such gross price. The $2,625.00 per day or 12 percent of the gross price shall include electricity, water and sewer but the sponsor shall pay all other event costs, including, but not limited to, security, crowd control, electricians, custodial personnel, office attendants, cleanup, police department personnel required for traffic control and crowd control, and other like expenses.

c. For the use of the parking lot only, for a commercial, video shoot or feature imagery, there shall be assessed a flat fee, payable in advance, of $750.00 per day. For all other uses, the flat fee shall be assessed at $2,500.00 per day up to five days. If set-up or teardown is required during use, there shall be a fee of $1,000.00 per day, which shall be limited to one day prior and one day after the event. Usage of the parking lot for longer than five days shall be assessed at fair market value. Fair market value is defined as the amount that would be paid for a similar property used in substantially the same manner as the subject property, in a competitive and open market, under similar conditions in an arms-length transaction. This fee does not include any stadium costs. All event costs, including but not limited to electricity used, security deposit, electricians, cleanup, police department personnel required for traffic control and crowd control, etc., shall be paid by the user.

d. The fee required under this section may be waived for governmental entities and agencies, or as approved by the city commission.

e. For the use of the stadium premises for a combination of several types of events, the user shall pay those rates which apply to the event having the larger of the fees quoted herein.

(2) Any person, company, corporation, or organization requesting to reserve a date (or dates) for the use of Marine Stadium shall be required, within ten calendar days of the initial request for date reservation, to make a payment in an amount equal to ten percent of the basic rental fee as a nonrefundable cash deposit. Additionally, not less than 60 days prior to the date reserved for the subject event the user must pay to the city an additional 40 percent of the basic rental fee, which will also serve as a nonrefundable deposit. The intent of the city in this regard is that the user must have made a total nonrefundable deposit to the city of 50 percent of the basic rental fee by at least 60 days prior to the date reserved. The 50-percent balance of the basic rental fee shall be paid to the city, as a nonrefundable cash deposit, not less than 30 days prior to the event date. All of the advance rental fees collected by the city will be forfeited if the user cancels the event.

(3) Federal, state and locally imposed taxes shall be separately shown and printed upon each and every ticket printed for an event, including complimentary tickets. Complimentary tickets shall be clearly overprinted as such. Users shall be permitted to issue complimentary tickets to their event in an amount equal to a maximum of three percent of the total tickets sold for the event, over and above those complimentary tickets designated by the use agreement, and, if the city's audit conducted subsequent to the event reveals that complimentary tickets were issued in an amount exceeding three percent of the total ticket sales, then the

user will be required to pay the 12-percent city tax on that number of complimentary tickets which exceed the three percent. The 12-percent city tax on the excess complimentary tickets shall be paid on the "average" ticket price charged by the user for that event.

(4) The user shall keep available in its office, or such other place approved by the city manager, true, accurate and complete records and accounts of all ticket sales transacted in connection with the stadium event and shall give access to the authorized representatives of the city, during reasonable business hours, to examine and audit such records and accounts. Final accounting and payment of all sums due hereunder shall be made to the proper city authorities as soon after the holding of each event as may be reasonably possible, and in no case shall be permitted to remain unpaid longer than three working days after the event, and in all cases shall be paid prior to the holding of another subsequent event by the same user.

(5) The user of the stadium, and the seller of the tickets, shall be responsible for the collection and payment of all tax monies required to be collected hereunder and shall hold in trust for the city all amounts due hereunder and shall account for and pay over to the city all such sums within the time periods required, or immediately upon written demand by the director of finance of the city. Failure to make full accounting and payment upon demand shall subject the user to a penalty of two percent per month or fraction thereof intervening between such demand and final accounting and payment, exclusive of the first 24 hours of such period, which penalty shall be additional to other penalties provided by this Code and the City Charter.

(6) The tax levied hereby and all sums paid to the city under this section shall be deposited by the city daily as received in the funds and accounts of the stadium.

(c) *Special charges, terms and conditions.*

(1) a. The user for any event shall obtain, at its own cost and expense, public liability insurance in the amount of not less than $1,000,000.00 per occurrence for bodily injury, and not less than $100,000.00 per occurrence for property damage. The user shall furnish certificates of insurance to the city at least ten days prior to any scheduled event, in the amount, type and classification as noted. No modification or change in said insurance shall be made without at least 20 days' advance written notice to the city. Insurance policies required above shall be issued by companies authorized to do business under the laws of the state, with the following qualifications as to management and financial strength: The company must be rated no less than A as to management, and no less than class X as to financial strength, in accordance with the latest edition of Best's Key Rating Guide, published by Alfred M. Best Company, Inc., 75 Fulton Street, New York, New York. All such policies to cover the scheduled events shall name the city as an additional insured.

b. The city may be able to obtain special-events insurance for events that meet certain prerequisites. The city, at its sole option, may determine that the event qualifies for said special-events insurance. If so qualified, the user may comply with this section by obtaining said insurance through the city.

(2) At any time when the flat-rate charge is imposed for the use of the stadium to stage an event, or when admission and entry to any event is not conditioned upon the purchase of a ticket or the payment of a fee by the patron, the charge to the user shall not be less than the cost of operating the stadium for said event.

(3) Uniformed police officers and/or other security personnel shall be provided by the event user in numbers acceptable to the facility manager as being sufficient to control the anticipated event crowd both within and outside the stadium, with payment therefor to be made by the user.

(4) User shall also provide, at its expense, all admission tickets to its event, as well as ticket takers, ticket sellers and ushers, as required, and in numbers acceptable to the facility manager as being sufficient to handle smooth entry of the public into the stadium and to provide efficient ushering and seating of the event crowd.

(5) Nothing contained in the provisions of this section shall limit or restrict the right of the city commission to establish and fix special charges or special terms and conditions for the use of the stadium.

(Code 1967, § 2-48.3; Ord. No. 9358, § 1, 12-10-81; Ord. No. 10926, § 1, 10-3-91; Code 1980, § 53-118; Ord. No. 13142, § 13, 2-11-10; Ord. No. 13197, § 2, 9-27-10; Ord. No. 13262, § 2, 4-14-11; Ord. No. 13676, § 2, 4-27-17)

Secs. 53-54—53-80. Reserved.

DIVISION 3. MIAMI ORANGE BOWL MEMORIAL STADIUM

Sec. 53-81. "Stadium" defined.

As used in this division, the word "stadium" shall mean the Miami Orange Bowl Memorial Stadium.

(Code 1967, § 39-17; Code 1980, § 53-129)

Sec. 53-82. Administration.

The administration of the stadium is hereby imposed upon the city manager who, after conferring with the stadium board, may, in his/her discretion, appoint an assistant to be known as "stadium supervisor." Subject to the supervision and the control of the city manager in all matters, the stadium supervisor shall manage and have charge of the maintenance and operation of all buildings, grounds, facilities and services of the stadium, including the parking areas. The establishment of the control of the stadium and its facilities by the stadium supervisor is not intended to relieve the resilience and public works department, the finance department or any other departments or divisions of the city of the responsibility for the proper maintenance of buildings and grounds, and the payment of all sums due to be paid into the city treasury, but such departments shall not be vested with any rights or responsibilities pertaining to supervision and management of events, except as may be provided for by direct instruction of the city manager.

(Code 1967, § 39-18; Code 1980, § 53-130; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Secs. 53-83, 53-84. Reserved.

Editor's note—Ord. No. 13142, § 13, adopted February 11, 2010, repealed the former sections 53-83 and 53-84 in their entirety, which pertained to admissions and charges for use, respectively, and derived from the Code of 1967, §§ 39-20, 39-21; Ord. No. 8779, § 1, adopted March 23, 1978; Ord. No. 9328, § 1, adopted September 24, 1981; Ord. No. 10439, § 2, adopted May 19, 1988; the Code of 1980, §§ 53-131, 53-132, and Ord. No. 11684, § 2, adopted July 14, 1998.

Sec. 53-85. Reservations.

(a) All requests for reservations for the use of the stadium shall be made in writing, and all reservation charges shall be paid in advance at the time the reservation is made; provided that the city manager may waive advance collections of reservation charges for regularly scheduled events by accredited schools or universities in the vicinity of the city. When the advance collection is so waived, all payments due the city shall be made within at least three working days after the date of the event and prior to a succeeding event, as provided in section 53-84. All reservation charges shall be paid to or retained by the city, whether or not the stadium is used or the events are held, and in all cases shall be applied toward the payment of the ten percent of the gross gate receipts or the minimum charge for the use of the stadium, as the case may be, unless the reservation is cancelled by the city as further provided for in this section. No reserva-

tion shall be made for any persons or organizations other than an authorized representative of the sponsor of the proposed event for which such reservation is made.

(b) The city reserves the right to be the sole judge of the character of the events or performances engaging or using the stadium and grounds, and any reservations may be cancelled in the discretion of the city, through its proper officials with the return of any fees paid in advance.
(Code 1967, § 39-23; Code 1980, § 53-134)

Sec. 53-86. Reserved.

Editor's note—Ord. No. 13142, § 13, adopted February 11, 2010, repealed the former section 53-86 in its entirety, which pertained to parking and special charges, and derived from the Code of 1967, § 39-24; Ord. No. 8784, § 1, adopted April 7, 1978; Ord. No. 8828, § 1, adopted July 27, 1978; Ord. No. 9121, § 1, adopted June 26, 1980; Ord. No. 9269, § 1, adopted May 28, 1981; Ord. No. 10439, § 2, adopted May 19, 1988; Ord. No. 10595, § 1, adopted June 7, 1989; Ord. No. 10889, § 1, June 20, 1991; Ord. No. 10899, § 1, adopted July 11, 1991; the Code of 1980, § 53-135; Ord. No. 11429, § 1, adopted December 12, 1996, and Ord. No. 11998, § 2, adopted November 16, 2000.

Sec. 53-87. Alcoholic beverages.

(a) *Prohibited generally.* Except as provided herein, it shall be unlawful for any person to bring alcoholic beverages into the stadium or to possess or to drink alcoholic beverages, as defined in F.S. § 561.01 et seq., inside the stadium.

(b) *When sale authorized.* Beer and/or malt beverages may be sold in the stadium by the city, provided that such beverages are not dispensed to the consumer in cans or bottles. The city manager may authorize the sale of said beverages in the stadium by licensed vendors. The aforesaid sale shall not be authorized:

(1) Before, during, or after any high school event, including, but not limited to, football, soccer, or any high school event held at the stadium;

(2) Before, during, or after any musical event of the type which historically requires extraordinary security measures, commonly referred to as "rock concerts," based upon prudent police protection.

The aforesaid sale by the city or by authorized vendors is subject to and conditioned upon such terms and conditions as are specified by the city manager. Such specification shall implement policy imposed by the city commission concerning such sale or authorization thereof.

(c) *Designation of areas for serving, dispensing.* Alcoholic beverages may be served or dispensed in those areas of the stadium specifically designated by the city manager, subject to and conditioned upon such terms and conditions as are specified by the city manager. Such specification shall implement policy imposed by the city commission concerning such serving or dispensing.

(d) *Effect on existing concession agreements.* There shall be no change in existing agreements between the city and the stadium concessionaires as a result of the passage of Ordinance No. 8735.
(Code 1967, § 39-25; Ord. No. 8692, § 1, 9-8-77; Ord. No. 8735, § 1, 1-11-78; Code 1980, § 53-136)

Case law reference—Where concession agreement existing at time of passage of Ordinance No. 8735 granted exclusive right to concessionaire to sell beverages at the stadium, and where said ordinance provides an exception to the prohibition against sale of beer and/or malt beverages, authorizing the city to permit sale of same by licensed vendors, concessionaire has the right to sell whatever beverages are to be sold in the stadium and the city does not have the right to permit sale of beer and/or malt beverages by anyone else. City of Miami v. Miami Dolphins, Ltd., 374 So. 2d 1156.

Sec. 53-88. Permit to construct stands, booths, etc.

No stands, booths, barriers or other facilities shall be constructed or erected at or about the stadium by any user or sponsor thereof unless written permission has been obtained from the city manager.
(Code 1967, § 39-26; Code 1980, § 53-137)

Sec. 53-89. Bond required before certain events can be held.

The city manager may require a bond for any event.
(Code 1967, § 39-27; Code 1980, § 53-138)

Sec. 53-90. Repairs and removal of stands, booths, etc.

The cost of repairing any damage to the stadium and the facilities thereof caused by the use of the same shall be payable by the sponsor of the event in connection with which the damage was suffered, and the sponsor shall remove, at his/her own expense, all stands, booths, barriers and other facilities constructed at or about the stadium by the sponsor.
(Code 1967, § 39-28; Code 1980, § 53-139; Ord. No. 13676, § 2, 4-27-17)

Sec. 53-91. Concession rights.

The city will control all concession rights at all events staged within the stadium and its grounds, including the parking areas.
(Code 1967, § 39-29; Code 1980, § 53-140)

Sec. 53-92. Use of complimentary tickets, etc.

All users shall pay for the use of the stadium and the services and facilities afforded thereby at the rates established in this article, and the stadium and the services and facilities afforded thereby shall not be used free of charge by any person or organization whatsoever until all of the outstanding stadium revenue bonds shall be paid and retired; provided that nothing contained in this section shall preclude all users of the Orange Bowl Stadium, except county high schools, from issuing up to but not more than 500 complimentary tickets, to any of its football games, or any county high school from issuing up to but not more than 200 complimentary tickets, free from city tax, to any of their football games.
(Code 1967, § 39-30; Code 1980, § 53-141)

Sec. 53-93. Advertising within stadium and grounds.

It shall be unlawful to place any commercial signs or advertisements within the Miami Orange Bowl Memorial Stadium complex or adjacent city-owned grounds without the prior written approval of the city manager.
(Code 1967, § 39-30.1; Code 1980, § 53-142)

Secs. 53-94—53-120. Reserved.

DIVISION 4. RESERVED*

Secs. 53-121—53-150. Reserved.

ARTICLE III. RESERVED†

Secs. 53-151—53-180. Reserved.

*__Editor's note—__Ord. No. 12994, § 1, adopted May 8, 2008, repealed division 4 in its entirety, which pertained to the Orange Bowl advisory board, and derived from Ord. No. 11998, § 4, adopted November 16, 2000, and Ord. No. 12004, § 1, adopted December 14, 2000.

†__Editor's note—__Ord. No. 13818, § 4, adopted January 10, 2019, repealed the former article III, sections 53-151—53-154 in its entirety, which pertained to the Coconut Grove Expo Center, and derived from the Code of 1967, § 39-6; Ord. No. 9002, § 1, adopted October 17, 1979; Ord. No. 9085, § 1, adopted March 31, 1980; Ord. No. 9192, § 1, adopted October 30, 1980; Ord. No. 9280, § 1, adopted June 9, 1981; Ord. No. 9342, § 1, adopted November 12, 1981; Ord. No. 9799, § 1, adopted February 9, 1984; Ord. No. 10695, § 1, adopted January 11, 1990; Ord. No. 11100, § 1, adopted November 23, 1993; the Code of 1980, §§ 53-150—53-153; Ord. No. 11428, § 1, adopted December 12, 1996; Ord. No. 11571, § 1, adopted October 28, 1997, and Ord. No. 12184, § 2, adopted February 1, 2002.

ARTICLE IV. CONVENTION CENTER OF THE CITY OF MIAMI/UNIVERSITY OF MIAMI, JAMES L. KNIGHT*

Sec. 53-181. Schedule of fees.

The schedule of rents, rates, fees and charges for the use or occupancy of and for the services furnished or to be furnished in connection with the Convention Center of the City of Miami/University of Miami James L. Knight International Center, also known as the "Miami Convention Center," is established as listed below. Rental fees for space rental within the Miami Convention Center may be reduced, subject to the approval of the executive director of Miami Convention Center, to match or lower the amount charged by a competing facility if such change in charges causes an event to be booked at the Miami Convention Center.

(1) *Theater/auditorium rates.*

a. *Meetings or general sessions:*

Section	*Rental Rate Nonticketed Events*
Floor only	$ 2,000.00
Floor and first seating section	2,300.00
All space	3,000.00
	Per Event
Single portable food/beverage concession	$100.00
Single permanent food/beverage concession	200.00

b. *Exhibits:*

		Rental Rate (per net square foot)	
Section	*Capacity*	*Exhibit Days*	*Set-up/down Days*
Floor only	73 8-foot by 10-foot booths or 65 10-foot by 10-foot booths	$ 0.35	$ 0.03

*__City Code cross reference—__Conferences and conventions and public facilities department, § 2-356 et seq.

c. *Ticketed events:*

Section	*Number of Events*[1]	*Rental rate, greater of Percent of Gross Sales*		
		Fixed	*Mon.—Wed.*	*Thurs.—Sun.*
Floor, 1st Tier	1	$ 2,000.00	8	9
Floor, 1st, 2nd Tier	1	3,000.00	8	9
Floor, 1st Tier	2-3	2,000.00	7	8
Floor, 1st, 2nd Tier	2-3	3,000.00	7	8
Floor, 1st Tier	4-7	2,000.00	6	7
Floor, 1st, 2nd Tier	4-7	3,000.00	6	7
Floor, 1st, Tier	8 or more	2,000.00	5	6
Floor, 1st, 2nd Tier	8 or more	3,000.00	5	6

d. *Ancillary service:*

	Charge
Air conditioning and utilities[2]	$125.00 per hour for rehearsal time or production setup.
Rehearsal time[3]	$550.00 per four-hour session.
Event personnel	Current union wage rate.
Equipment rentals	Equipment, other than standard lighting or sound, will be contracted for and charged directly to the promoter.
Other services: Police; Stagehand	To be charged directly to the promoter based upon current union wage rates.

[1] Represents number of events contracted or held by one promoter, entity or other person during a fiscal year.
[2] Air conditioning and utilities are included in the rental rate established for a performance (ticketed or nonticketed). Additional charge applies only to rehearsal or other nonperformance usage where air conditioning and utilities are required.
[3] Use of the main theater/auditorium for rehearsal time at this rate is based on availability.

e. Rates for nonprofit entities for use of any area of the Knight Center may be discounted by 15 percent if the area is available for use.

(2) *Meeting and seminar space.*

	Registration Information	*Coffee Breaks*	*All Other Functions*
Promenade—Lower, includes Orchid area	$50.00	$75.00	$ 375.00
Promenade—Upper	50.00	75.00	375.00
Riverwalk	50.00	75.00	475.00
Main level lobby	50.00	50.00	600.00
South foyer main level lobby	50.00	50.00	300.00
Central foyer main level lobby	50.00	50.00	150.00
North foyer main level lobby	50.00	50.00	150.00
JLK lobby area	50.00	50.00	1,500.00
Third level terrace	50.00	50.00	175.00

	Registration Information	*Coffee Breaks*	*All Other Functions*
Regency corridor	50.00	75.00	375.00
Entrance level patio	50.00	75.00	375.00

Room #	*Room Name*	*Rates*
OO	Miami Lecture Hallway	$ 325.00
1	Merrick I	500.00
2	Merrick II	500.00
3	Miami Lecture Hall	900.00
4	Ashe Auditorium	1,900.00
5	Ashe Lobby	475.00
6	Pre-Function Area	350.00
7	Gallery	400.00
8	Terrace	350.00
9	Ibis	550.00
10	Pearson I	450.00
11	Pearson II	450.00
12	Gautier	450.00
13	Board	450.00
14	President	450.00
15	Zamora	450.00
16	Stanford	450.00
17	Foster I	450.00
18	Foster II	450.00
19	Johnson I	450.00
20	Johnson II	450.00
24	4th Floor Hallway	350.00
45	Granada	450.00
46	Tequesta	450.00
47	Egret Room (formerly 402)	400.00
51	Flamingo	550.00
52	Johnson/Foster Hallway	350.00
54	Macaw (formerly 403)	400.00
	Escalator Hallway	350.00
	Suite 401	1,300.00
	Registration Booth	300.00

(3) *Exhibit Hall.*

a. Rent for exhibit space, one to three days including move in and move out:

Area	*Gross Sq. Ft.*	*1—3 Day Charge*	*Additional Days*
Hall A	11,000	$ 3,300.00	$ 950.00
Hall B	13,000	3,900.00	1,150.00
Hall C	4,000	1,200.00	350.00
Halls A, B, C	28,000	8,400.00	2,400.00

b. For meeting and seminar space, the per day rate is as follows (excluding set up costs):

Area	*Gross Square Feet*	*Daily Charge*
Hall A	11,000	$1,760.00
Hall B	13,000	2,080.00
Hall C	4,000	640.00
Halls A, B, C	28,000	4,480.00

c. For other events, rent is as follows:

Area	*Net Sq. Ft.*	*Charge Per Day*
Hall north	11,000	$1,650.00
Hall central	13,000	1,950.00
Hall south	4,000	1,200.00
Halls, total	28,000	4,800.00
Lobby A		150.00
Lobby B		150.00
Lobby C		300.00
Lobby A, B, C		600.00

d. For a preconcert or postconcert rate:

Area	*Net Sq. Ft.*	*Charge Per Day*
Hall A north	11,000	$ 900.00
Hall B central	13,000	1,000.00
Hall C south	4,000	400.00
Halls A, B, C total	28,000	2,200.00

e. Rates for nonprofit entities for use of any area at Exhibit Hall should have 15 percent discount when available.

f. Rates for public dances, parties or other functions with no food service provided and not connected with any other activity or convention is as follows:

Area	*Net Sq. Ft.*	*Charge Per Day*
Hall A north	11,000	$ 3,500.00
Hall B central	13,000	4,500.00
Hall C south	4,000	2,500.00
Halls A, B, C total	28,000	10,500.00

g. Catering rates—for all functions where the exclusive caterer of the Center is responsible for all costs of set up, take down and cleaning of an event the cost shall be $2.50 per person with the following as minimum amount of people per event. If more than one hall is used the minimum amount of people shall be combined.

Area	
Hall A	250 people
Hall B	300 people
Hall C	200 people

(4) Convention center parking garage (including state sales tax):

Rate Category	*Rate*
0—30 minutes	$ 3.00
31 minutes—1 hour	6.00
1 hour—1½ hours	8.50
1½ hours—2 hours	11.00
2 hours—2½ hours	13.50
2½ hours—3 hours	16.00
3½ hours maximum rate	18.50
Special event (prearranged)	6.00
Early bird rate (in by 9:00 a.m. out by 3:00 p.m.)	7.00
Hyatt/Clarion Hotels overnight rate	12.00
Monthly rate (plus state sales tax)	121.41

(Ord. No. 9393, § 1, 3-16-82; Ord. No. 9576, § 1, 3-18-83; Ord. No. 9687, § 1, 9-29-83; Ord. No. 9879, § 1, 9-13-84; Ord. No. 9994, § 1, 5-23-85; Ord. No. 10103, § 1, 5-7-86; Ord. No. 10255, § 1, 4-9-87; Ord. No. 10344, § 1, 11-19-87; Ord. No. 10418, § 1, 4-14-88; Ord. No. 10460, § 1, 7-14-88; Ord. No. 10641, § 1, 9-28-89; Ord. No. 11160, § 1, 6-9-94; Code 1980, § 53-161; Ord. No. 11278, § 1, 7-13-95; Ord. No. 11427, § 1, 12-12-96; Ord. No. 11699, § 2, 9-28-98; Ord. No. 11708, § 2, 10-13-98; Ord. No. 11834, § 2, 9-21-99; Ord. No. 12055, § 2, 4-26-01; Ord. No. 12147, § 1, 10-25-01; Ord. No. 13127, § 2, 1-14-10)

City Code cross reference—Public off-street parking facilities, § 35-121 et seq.

Chapter 54

STREETS AND SIDEWALKS*

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*__Charter references—__Authority of city relative to streets, § 3(b); local improvements, § 30.

__City Code cross references—__Resilience and public works department, § 2-261 et seq.; trees and shrubs along public highways, in public parks, etc., § 17-71 et seq.; public trash containers for use of pedestrians, § 22-6; motor vehicles and traffic generally, ch. 35; designation of play streets, § 35-5; unnecessary, excessive or unusual noises near hospitals and schools, § 36-2; noise from pile drivers, etc., § 36-6; sleeping on streets, sidewalks, etc., § 37-3; towing of motor vehicles, § 42-101 et seq.; subdivision regulations, ch. 55; vehicles for hire, ch. 57.

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Article XII. Reserved

ARTICLE I. IN GENERAL

Sec. 54-1. Definitions.

The following words, terms and phrases, when used herein, shall have the meanings ascribed to them in this Code, except where the context clearly indicates a different meaning:

Assembly means any organized: (i) company of persons that is collected together in one place, or (ii) demonstration or rally of persons that does not meet the definition of "parade" set forth herein. The term "assembly" does not include:

(1) A special event as defined in chapter 52 of this Code.

(2) Still photography, motion picture photography, or electronic (television) photography for commercial purposes, on any public roadway, sidewalk, street, park, causeway, beach, lagoon, or on any city-owned property or facility in the city for which a commercial photographic permit is required under section 41-26 of this Code.

Assembly permit means a permit as required by sections 54-6.2 or 38-74 of this Code.

Benefactor means the owner of the business advertised in the sign whose agent, employee, contractor, promoter, or other representative did or caused the posting, placing or affixing of any sign.

Business means any commercial or industrial activity, entity, or event in or for which any goods or services are made, sold or offered for sale or other consideration, pecuniary or otherwise.

Engineering standards means the minimum standards pertaining to the design and construction of all public works constructed in the right-of-way. These standards are in book form entitled "Engineering Standards for Design and Construction" and present the latest engineering standards as an aid to both design and construction and are deemed as being incorporated by reference herein.

Governmental applicants means the City of Miami or its agencies or instrumentality thereof, or as identified by the city manager or designee.

Law means all duly enacted and applicable federal, state, county and city laws, ordinances, codes, rules, regulations and orders.

Maintenance means the upkeep or preservation and acts of repair and other acts to prevent a decline, lapse or cessation from an existing state or condition; to keep from falling, declining or ceasing; to keep in good order; keep in proper condition; keep in repair, as it pertains to the private property and public right-of-way, as applicable, and as are encompassed by the provisions of this chapter.

Maintenance costs means any cost incurred for the purpose of performing maintenance within the public right-of-way. This includes costs of labor, materials, equipment and other public works operational costs.

Non-governmental applicants means any applicant who is not a governmental applicant as defined by this section.

One day means a 24-hour period from noon to noon.

Parade means any organized moving of three or more persons whose gathering is for the common design and purpose of travelling or marching from one location to any other location for spontaneous expression or to convey any message to the public or government, including, but not limited to, current political, religious, or social issues.

A "parade" does not include:

(1) Funeral processions;

(2) Students going to and from school classes or participating in educational activities, provided this conduct is under the immediate direction and supervision of the proper school authorities;

(3) Any governmental agency acting within the scope of its functions;

(4) A "special event" as defined in chapter 52 of this Code;

(5) A motor vehicle or motor vehicles operating in compliance with all applicable traffic laws, ordinances and regulations; and

(6) A pedestrian or pedestrians merely crossing a street, or traversing a sidewalk, while obeying all applicable traffic and pedestrian laws, ordinances and regulations, and which crossing or traversing does not obstruct other pedestrian traffic on a sidewalk.

Parade permit means a permit as required by sections 54-6 or 38-74 of this Code.

Person means any individual, corporation, partnership, limited liability company, association, joint venture, for-profit organization, contractor, subcontractor, affiliate, agent, representative, governmental institution, not-for-profit organization, or other legal entity of any kind, any lawful trustee, successor, assignee, transferee, heir, or personal representative thereof, but shall not mean the city.

Public right-of-way as used in this article shall mean any dedicated or undedicated public street, highway, sidewalk, parkway or alley, public ways, public space(s) and other public places within the city.

Sign means any poster, card, cardboard, advertisement, or paper device or any identification, description, illustration, or other device located on any portion of the public right-of-way, street, or side walk surface which directs attention to a product, place, activity, person, institution, business, message or solicitation.

Special event means an event as set forth in chapter 52 of this Code.

Street or *streets* means the surface, the air space above the surface and the area below the surface of any public street, highway, road, boulevard, concourse, driveway, freeway, thoroughfare, parkway, sidewalk, bridge, tunnel, park, waterway, dock, bulkhead, wharf, pier, court, lane, path, alley, way, drive, circle, easement, or any other public right-of-way or public place, including public utility easements dedicated for compatible uses, or any other property in which the city holds any kinds of property interest or over which the city exercises any type of lawful control, and any temporary or permanent fixtures or improvements located thereon, as may be ordinarily necessary and pertinent to a permit for construction in or excavation of or use of the public right-of-way, but shall not include city-owned buildings or city private property.

Visibility triangle means an area on private property and within the public right-of-way where any material obstruction to visibility is prohibited which would result in concealment of a child over two and one-half feet in height approaching an intersection, or would conceal an approaching automotive vehicle or cyclist from such a child. The visibility triangle shall be measured in accordance with section 3.8.4 of the Miami 21 zoning code and shall include the area bounded by the extension of the diagonal vision clearance line to the center line of the intersecting streets at all street intersections and the area perpendicular to the diagonal vision clearance line from the base building line to the centerline of the intersecting streets at all applicable intersections of driveways with streets.
(Ord. No. 12505, § 3, 3-25-04; Ord. No. 12545, § 2, 6-10-04; Ord. No. 12584, § 2, 9-9-04; Ord. No. 12639, § 2, 1-13-05; Ord. No. 12711, § 2, 7-7-05; Ord. No. 12928, § 3, 6-28-07; Ord. No. 12971, § 2, 2-14-08; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13467, § 2, 6-12-14; Ord. No. 14357, § 3, 3-13-25)

Sec. 54-2. Obstruction of free passage on sidewalks, etc.

(a) *Purpose.* It is the intent of this section to eliminate the obstruction of free passage over, on or along a street, sidewalk, or public right-of-way, whether such obstruction results from the manner in which a person or number of persons shall stand, loiter, walk, sit, lie or camp on said street, sidewalk or public right-of-way.

(b) *Definitions.* For purposes of this section, the following words shall be defined as provided herein:

(1) An "obstruction" within the meaning of this section shall be construed to mean to so occupy the sidewalk, street or public right-of-way that the free use and enjoyment thereof by the public is, in any way interrupted or interfered with, or the

free ingress or egress to or from any building fronting on any public right-of-way is impaired.

(2) The term "camp" or "camping" shall mean the use of a street, sidewalk or public right-of-way, including a public transit stop, bench or other public property on any street, sidewalk or public right-of-way, as a temporary or permanent place of dwelling, lodging, or residence, or as a living accommodation at anytime. Indicia of camping may include, but are not limited to, storage of personal belongings, using tents or other temporary structures for sleeping or storage of personal belongings, carrying on cooking activities or making any fire, or any of these activities in combination with one another or in combination with either sleeping or making preparations to sleep (including the laying down of bedding for the purpose of sleeping).

(c) *Prohibited behavior.* It is unlawful for any person or any number of persons:

(1) To so stand, loiter, walk, sit, lie, or camp upon any street, sidewalk or public right-of-way in the city so as to obstruct free passage over, on or along said street, sidewalk or public right-of-way, after a request by a law enforcement officer to move on so as to cease blocking or obstructing free passage thereon.

(2) By placing an object or objects on a street, sidewalk or public right-of-way in the city, to cause a condition of obstruction or blockage of a street, sidewalk or public right-of-way so as to obstruct free passage over, on or along said street, sidewalk or public right-of-way.

(d) *Applicability.* The provisions of subsection (c)(1) hereof apply only when a person or number of persons shall stand, loiter, walk, sit, lie, or camp on a street, sidewalk or public right-of-way so as to obstruct free passage thereon and shall refuse to obey a request by a law enforcement officer to move on; mere refusal to move on is not enough to support the offense - there must be an actual blocking of free passage over, on or along said street, sidewalk or public right-of-way. This section shall not apply to "assemblies" or "parades" as defined in section 54-1, taking place on a street, sidewalk or public right-of-way, unless any such assembly or parade creates and/or causes a hazardous condition or threatens public safety.

(Ord. No. 13392, § 1, 6-13-13)

Editor's note—Prior to the reenactment of section 54-2 by Ord. No. 13392, § 1, adopted June 13, 2013, Ord. No. 12505, § 2, adopted March 25, 2004, repealed § 54-2 in its entirety, which pertained to obstructions of free passage on sidewalks, etc., and derived from Ord. No. 9241, §§ 1, 2, adopted February 11, 1981, and the Code of 1980, § 37-53.1.

Sec. 54-3. Permit required for work that obstructs or closes a street, sidewalk, or impedes traffic; fees; waiver of fees.

(a) *Scope.* No person shall perform or conduct any work in the public right-of-way (any work including, but not limited to, digging, drilling, repaving, installing or maintaining utilities, etc.), which obstructs, closes, or causes to be obstructed or closed, any street, sidewalk, or any other part of the public right-of-way in this city, or which impedes the general movement of vehicular or pedestrian traffic, without first having obtained a permit approved by the police department, the department of resilience and public works, the off-street parking department, and the risk management department. After approval by the departments of police, resilience and public works, off-street parking, and risk management, the city manager, or designee, shall issue a permit. No person shall apply for a permit to perform or conduct work in the public right-of-way without disclosing in writing on the permit application form the person(s) on whose behalf such work in the public right-of-way is being performed or conducted. If such work is being performed by one or more person(s) on behalf of any other person(s) for using, constructing in, excavation of, maintenance of, owning and/or operating any type or manner of system, equipment, or device within the public rights-of-way, then all persons must comply with all application and permitting requirements of the city. Failure of any person(s) to fully disclose his/her/their interest/participation/representation in the permit application and/or

to fulfill all city requirements for issuance of the permit shall result in (1) immediate revocation by the city, without the necessity of any further action, hearing, or proceeding, of any permit previously granted resulting in such permit becoming null and void, or (2) issuance by the city of a written notice that such permit will not be granted, as the case may be, due to violation of this provision by the person(s) who applied for such permit. The city shall have the right to take all legal measures and seek all available remedies to enforce this disclosure provision. Except for applications for permits by non-revenue generating government entities, no person(s) or those performing the work on behalf of any other person(s) may apply for a permit if the person(s) or those performing the work on their behalf currently owe outstanding fines, debts, or delinquencies to the city related to prior permits issued by the department of resilience and public works, or due to performing un-permitted work in the public right-of-way. If such outstanding fines, debts, or delinquencies are owed by those performing the work on behalf of another, then the denial of the ability to apply for and/or receive a permit shall be accompanied by a notice, mailed to the person(s) applying for the permit, notifying them of the outstanding fines owed by those attempting to perform the work on their behalf and stating the amounts owed.

(b) *Conditions.* Such permit shall set forth minimal reasonable conditions, as permitted by law, necessary for the protection of property and personal safety, the restoration of the public right-of-way to a condition satisfactory to the city, and any on-going maintenance or reparations for un-repaired conditions or damages that may be required of the person(s) under the circumstances and extent of the work to be performed or conducted by such person(s) under such permit. Any violation of the conditions set forth and/or any violations under applicable law shall render such permit null and void, without the necessity of any further action, hearing, or proceeding. Such permit shall cover the length of time necessary and reasonable according to the type of activity involved.

(c) *Indemnity, hold harmless and insurance.* Applicant agrees to indemnify, defend, and hold harmless the city, its officials, employees, agents, and, if applicable, its instrumentalities and each of them from and against all loss, cost, penalties, fines, damages, claims of any nature, including expenses and attorneys' fees, and any and all liabilities by reason of injury to or death of any person, damage to, destruction, or loss to any property including the city, its instrumentalities, its officials, employees, and agents arising out of or in connection with the performance or non-performance of the services contemplated by this permit/agreement which is directly or indirectly caused, in whole or in part, by any act, omission, default, liability, or negligence, whether active or passive of the applicant, its employees, agents, servants, or contractors, unless such act or omission is solely caused by the city, its instrumentalities, officials, employees, and agents. The applicant further agrees to indemnify, defend, and hold harmless the city, its instrumentalities, officials, employees, and agents against all liabilities which may be asserted by an employee or former employee of the applicant, or any of its contractors as provided above, for which the applicant's liability to such employee or former employee would otherwise be limited to payments under workers' compensation or similar laws. In addition, the applicant understands and agrees that except where caused by the negligence or misconduct of the city, its instrumentalities, officials, employees, or agents, the city shall not be liable for any loss, injury, or damage to any personal property or equipment of the applicant, its employees, agents, contractors, business licensees, or invitees placed on city property and its instrumentalities and shall be at the risk of the applicant thereof. The applicant shall be solely responsible for all its activities and for the installation and maintenance of traffic-control devices, if applicable. The applicant shall ensure that adequate safety precautions are in effect at all times during the term of the permit. It shall be a further condition precedent to the issuance of any such permit for work to be performed in the public right-of-way that the permit holder(s) is/are jointly and severally responsible, at each permit holder's sole expense, for any damages regarding restoring the public right-of-way to its original condition before installation of facilities. The indemnification shall survive termination of this permit/agreement.

(1) *Non-governmental applicant(s).* Prior to the issuance of any such permit, the

non-governmental applicant(s) shall submit to the city a certificate of insurance for each non-governmental applicant in an amount not less than $1,000,000.00 per occurrence, $2,000,000.00 aggregate, and any endorsements thereto, including, but not limited to, premises and operations liability, contingent and contractual exposures, XCU hazards, personal and advertising injury, and products and completed operations In addition, the applicant hereby agrees to provide additional insurance requirements as required by the city, including but not limited to umbrella liability, or any additional requirements or endorsements as may be applicable, in connection with the scope of services contemplated by the permit/agreement. The certificate must reflect primary and noncontributory language and list the city as an additional insured. The certificate must also include coverage for all owned, hired, and non-owned vehicles with a combined single limit of $500,000.00 per accident, also listing the city as an additional insured, and must further afford coverage for worker's compensation including waiver of subrogation subject to the statutory limits of the State of Florida. The insurance herein required shall remain in full force and effect during the entire term of the permit. Additionally, all such insurance for non-governmental applicant(s) shall be subject to annual review by the city's risk management department and the applicant shall be required to update as necessary to protect the city as set forth in this section.

All insurance policies required above shall be issued by companies authorized to do business under the laws of the State of Florida with the following qualifications:

The company must be rated no less than "A-" as to management and no less than Class "V" as to financial strength by the latest edition of Best's Insurance Guide published by A.M. Best Company, Oldwick, New Jersey, or its equivalent subject to the approval of the city's department of risk management. Companies not meeting the above rating requirements shall submit proof of reinsurance from qualifying insurers having or exceeding the required rating criteria.

Certificates of insurance shall contain 30 days as to changes or modifications with notice to the certificate holder.

(2) *Government applicant(s).* Prior to the issuance of any such permit, the governmental applicant(s) shall submit to the city a certificate of insurance or letter of self-insurance for each governmental applicant in accordance with and subject to the limitations as set forth in F.S. § 768.28.

(d) *Temporary obstruction of streets and sidewalks.*

(1) Any permit issued pursuant to this chapter under this section may be revoked at any time for violation of the terms of the permit. The city manager or his/her designee may revoke this permit with justification.

(2) The permit holder shall not locate a temporary office, trailer, portable toilets, equipment or storage of materials, construction spoils, and/or supplies within the temporary obstructed right-of-way. Such temporary office, trailer, portable toilets, equipment or storage of materials, construction spoils, and/or supplies may be allowed by the department of resilience and public works subject to a separate fee, subsection (e)(5), in addition to the fee for a permit for the partial or full obstruction or closure listed in subsection (e)(4). A violation of this section shall result in a fine of $250.00 per day for each violation.

(3) If the dimensions of the obstruction exceed the dimensions allowed by the permit, the permittee and the building owner shall jointly be assessed a fine equal to

$250.00 per day for each violation, plus any appropriate additional fees for the obstruction.

(4) The permittee must provide a construction staging plan showing the location of lifting equipment, if applicable, ingress and exit points, and a signed and sealed statement from a State of Florida registered professional engineer stating that no other suitable, onsite alternative exists.

(5) For purposes of this section, the following definitions shall apply:

Construction fence screen is a light, flexible fabric bearing printed text and pictures to give information and with edge grommets to facilitate attachment to a rigid frame.

Construction windscreen is a visual/dust barrier composed of a flexible, woven fabric with edge grommets to facilitate attachment to a rigid frame.

Temporary construction fence is used when contracting or planning to construct improvements on the premises and which facilitates temporary security and surety for the premises.

(6) Subject to compliance by the permit holder with applicable provisions of the sign codes of Miami-Dade County and the city, the permit holder may affix a construction fence screen or construction windscreen containing onsite advertising to the temporary construction fence abutting or located in the public right-of-way subject to an additional fee listed in subsection (e)(6). The dimensions of the construction fence screen or construction windscreen shall not exceed the dimensions of the temporary construction fence, and shall comply with section 33-99 of the Miami-Dade County Code. The content of the onsite advertising shall be limited to pictorial and text information advertising the sale or rental of the premises, construction actually being done on the premises, or future construction to be done on the premises on which the onsite advertising is located. For purposes of this section, such advertising described in the preceding sentence shall only be onsite advertising. No advertising is allowed for goods, off-site products or services, alcoholic beverages, tobacco products or adult entertainment as defined by the city zoning code. Nothing in this section shall be interpreted to permit a sign where the sign copy does not pertain to the use of the property, units sold, or the sale or lease of the property on which sign is displayed and which does not identify the place of business as purveyor of the units advertised on the sign. A violation of this section shall be punishable by a fine of $250.00 per day for each offense under the provisions of chapter 2, article X of the City Code, and any other remedies as provided by law, jointly and severally, including, but not limited to, suspension or revocation of a CU, BTR, permit, or any other legal remedy as deemed appropriate by the city. The use of one remedy shall not preclude the use of another.

(e) *Fees.*

(1) A non-refundable fee of $120.00 shall accompany each permit application to the police department, to be retained by the city regardless of action taken in the granting or denial of the permit.

(2) An non-refundable application fee of $95.00 and a non-refundable initial inspection fee of $50.00 shall accompany each permit application to the department of resilience and public works, to be retained by the city regardless of action taken in the granting or denial of the permit.

(3) A non-refundable permit fee of $325.00 shall be paid prior to permit issuance for all right-of-way closures. Non-refundable plan review fees in accordance with section 2-272 of the City Code shall be paid upon completion of reviews and prior to issuance of all right-of-way closure permits. In the case of an applicant cancelling an application or the city cancel-

ling an application due to the applicant becoming non-responsive and ultimately abandoning a permit application after plan reviews are completed, these fees will be applied to an applicant's account and must be paid in order to avoid being in violation of sections 54-3 and 54-42 of the City Code.

a. A non-refundable permit fee of $775.00 shall be paid prior to permit issuance for all right-of-way closures for helicopter lifting.

(4) A non-refundable public right-of-way usage fee for the partial or full obstruction by construction or maintenance related activities shall be the greater of the following, $595.00 or as calculated below:

a. $0.30 per linear foot per day of sidewalk/curb/swale usage.

b. $0.40 per linear foot per day of parking lane usage.*

*This fee is in addition to fees payable under chapter 35 of this Code, as amended.

c. $0.45 per linear foot per day of lane closure or partial lane closure of traffic and auxiliary lane usage.

All fees shall be paid prior to permit issuance.

(5) A non-refundable fee for a temporary office, trailer, portable toilets, equipment or storage of materials, construction spoils, and/or supplies within the partial or full obstruction area shall be as follows:

a. $0.15 per linear foot per day of sidewalk/curb/swale usage.

b. $0.20 per linear foot per day of parking lane usage.

c. $0.25 per linear foot per day of lane closure or partial lane closure usage.

All fees shall be paid prior to permit issuance.

(6) A non-refundable fee of $0.10 per square foot per day of construction fence screen or construction windscreen containing advertising affixed to temporary construction fence located abutting the public right-of-way or in the public right-of-way. All fees shall be paid prior to permit issuance.

(7) A right-of-way closure final inspection shall be requested after completion of work and a fee of $95.00 shall accompany the inspection request to the department of resilience and public works.

(8) *Reinspection fees:* When additional inspection is required for work previously inspected and rejected by the department of resilience and public works, a reinspection fee of $95.00 will be required for each reinspection.

(9) Permit renewal fees prior to expiration and reactivation fees of original permit:

Processing fee per permit extension: $150.00

Reactivation fee shall be required for expired permits at a rate of 25 percent of the original permit fee, calculated based on the current fee schedule. In addition to the reactivation fee, any permit or permit fee that is required shall be processed with the reactivation.

(10) All fees collected by the department of resilience and public works, in accordance with subsection (e)(2), (e)(3), (e)(4), (e)(5), and (e)(6) shall be deposited in a rollover account to be known as the lane closure fund. This account shall be used for the department of resilience and public works for engineering support services, training, materials, and equipment related to right-of-way closures, and for public right-of-way maintenance and improvements.

(11) *Waiver of fees.*

a. The fees described in subsection (e)(4), (e)(5), and (e)(6) may not apply to the city or any other non-revenue generating government or school district entity, or while construction, excavation, and repair work is being actively performed within the public right-of-way.

b. The fees described in subsection (e)(1), (e)(2) and (e)(3) may not apply to single-family affordable housing projects developed on city-owned property.

c. The fees described in subsection (e)(1), (e)(3), (e)(4), (e)(5), and (e)(6) herein above may be waived or reduced by the city commission if the commission determines that such a waiver or reduction is in the city's best interest.

d. Waiver of fees does not apply to after-the-fact permits.

(12) After-the-fact permit fee. For any public street or alley closure described in section 54-3, performed without the required permits and inspections, quadruple the amount of all permit fees, application fees and inspection fees as described in subsections (e)(1) through (e)(6) herein.

(13) A non-refundable fee of $325.00 shall accompany a plans revision after approval of initial plans. If the permit has been issued, a revision request must be submitted through the department of resilience and public works permit system. Plans or supporting materials clearly showing the proposed modifications shall be submitted.

(14) A non-refundable fee of $120.00 shall accompany a change of contractor after a permit has been issued.

(f) All right-of-way closure permits shall be closed upon completion of work and after all required inspections have been approved.

(g) *[Special revenue fund.]* The revenues received will be placed in a special revenue fund. Ninety percent of this revenue will be used for public right-of-way improvements and repairs. Ten percent of special revenue will be used for public works department training, materials and equipment related to road closures. Expending these funds will be at the discretion of the city manager by recommendation of the public works or capital improvement directors.

(h) *Public gatherings.* This section shall not prevent any person or persons from assembling on the streets or sidewalks, or in any park, or on private property, for the purpose of making any speech, engaging in spontaneous expression, or conveying any message to the public or government without holding a permit pursuant to this section. In addition, this section shall not apply either to an "assembly," to a "parade" or to a "special event," as they are defined in section 54-1.

(Code 1967, § 54-3; Ord. No. 8995, 1, 10-17-79; Ord. No. 9532, § 1, 12-9-82; Ord. No. 10658, § 3, 10-12-89; Ord. No. 11045, § 4, 3-11-93; Code 1980, § 54-3; Ord. No. 11276, § 3, 7-13-95; Ord. No. 12505, § 3, 3-25-04; Ord. No. 12545, § 2, 6-10-04; Ord. No. 12584, § 2, 9-9-04; Ord. No. 12639, § 2, 1-13-05; Ord. No. 12919, § 1, 5-10-07; Ord. No. 12928, § 4, 6-28-07; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13142, § 14, 2-11-10; Ord. No. 13195, § 5, 9-27-10; Ord. No. 13276, § 2, 7-28-11; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13519, § 2, 5-14-15; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13798, § 4, 10-25-18; Ord. No. 13884, § 2, 12-12-19; Ord. No. 13915, § 5, 9-24-20; Ord. No. 14193, § 3, 7-27-23; Ord. No. 14370, § 2, 6-17-25; Ord. No. 14433, § 3, 1-8-26)

Editor's note—Ord. No. 12584, § 2, adopted September 9, 2004, changed the title of § 54-3 from "Permit required for work or special events that obstruct or close street or sidewalk or impede traffic; fees; waiver of fees" to "Permit required for work that obstructs or closes a street, or sidewalk or impedes traffic; fees; waiver of fees."

Sec. 54-4. Closing and vacating of streets.

(a) When any owner of property abutting any public street or alley located within the city wishes to close such street or alley or any portion thereof, he/she shall file in the office of the clerk of the circuit court in and for the county a record plat of the property through which passes the street or alley or portion thereof which is sought to be closed, such plat to show the alley or street or portion thereof as being closed and to include all property abutting thereon except as provided in subsection (b) below or in accordance with subsection 55-15(i) for the closure of public alleys and subsection 55-15(j) for the closure of private alleys which provide for alternate methods of

closing and vacating an alley which abut only parcels of land zoned T3-R or T3-L (single-family residential) and/or T3-O (two-family residential).

(b) The record plat required by this section shall be prepared and executed in accordance with the laws of the state and with the rules and regulations of the resilience and public works department, and shall be signed and executed by the owners of all the abutting property, including but not limited to, those property owners abutting streets or alleys sought to be vacated and closed. Provided, however, execution by property owners abutting streets or alleys sought to be vacated and closed is not required when the applicant: (a) provides suitable access easement(s), (b) provides an indemnification, hold harmless and agree to defend affidavit to the city, in a form acceptable to the city attorney (c) provides a bond acceptable to the city's risk manager to be effective throughout the applicable statute of limitations, (d) pays for the cost and expense of written notices, United States First Class Return Receipt Requested, and public hearings and (e) otherwise fully complies with the requirements of section 55-15 of this code. The record plat shall also be signed and executed by any persons holding any mortgage, lien, judgment or other interest in the street or alley. Notwithstanding the foregoing, governmental agencies may consent to, rather than execute the actual plat.

(c) From and after the filing of the plat required by this section, the alley, street or portion thereof shall be closed, abandoned and discontinued as a public street or alley, provided that such closing, abandonment, or discontinuance shall not in any manner affect utility equipment or services already installed in the alley, street or portion thereof, or the right to thereafter maintain and operate the equipment and services in the alley, street or portion thereof during the term of the franchise under which the equipment and services were installed in the alley, street or portion thereof.

(Code 1967, § 54-4; Code 1980, § 54-4; Ord. No. 12140, § 1, 10-25-01; Ord. No. 12453, § 2, 12-18-03; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-4.1. Public alleys.

(a) Public alleys that meet the following criteria (identified on Exhibit A [of Ord. No. 13492] and which by reference is made a part of this section), are closed, vacated, abandoned and discontinued for the purpose of which they were dedicated to public use subject to the terms and conditions as set forth in this section.

(1) The public alley is not paved in its entirety and is not utilized for vehicular access to a property abutting the public alley; or

(2) Access to the entire public alley is encumbered by encroachments such as fences, planted landscaped barriers, walls, or physical obstructions that prevent vehicular access by the public as of the date of the ordinance from which this section derives.

(b) Utility easement. An easement shall be reserved for the installation, maintenance and operation of any utility located in or to be located in the alleys vacated by this section, including the right of the utility to install, maintain, operate, repair and replace any poles, wires, pipes, conduits, sewer mains, water mains, or any other facility or equipment for the maintenance or operation of any utility. If the property owners whose land abuts the alley desire that an easement reservation be released, the property owners must petition the director of the resilience and public works department in writing to request the release of the easement reservation and, as part of the petition, the property owners are to submit release letters from all utility companies stating that said utility company will release any interest in an easement for the closed and vacated alley. Upon verification of the petition and release letters, the director of the resilience and public works department may release said easement reservation.

(c) The closure, vacation, abandonment and discontinuance of any alley, public or private, not identified in subsection (a) of this section, must comply with the requirements of section 54-4 of this chapter.

(Ord. No. 13492, § 2, 1-8-15; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-5. Removing material from streets.

No person shall dig up or scrape up and carry away any gravel, dirt, rocks or sand from any street, lane or alley in the city, without the permission of the proper authority of the city. (Code 1967, § 54-5; Code 1980, § 54-5)

Sec. 54-6. Permit required for parades.

(a) *Scope.* No parade of 50 or more persons, shall occupy, march or proceed along any public right-of-way, or within any park, and no parade of any number of persons shall occupy, march or proceed within any public street, except in accordance with a permit issued by the chief of police, after approval by the department of resilience and public works, parks and fire-rescue, and with such other applicable regulations as are set forth in this Code.

(b) *Application.* The written application for such permit shall be filed with the chief of police on an approved form not less than five business days nor more than 30 calendar days, before the proposed parade to allow adequate arrangements to be made for the proper policing of same. The application shall contain the following:

(1) The notification name, address and telephone number of the person seeking to conduct the parade;

(2) If the parade is proposed to be conducted for, on behalf of, or by an organization, the name, address and telephone number of the headquarters of the organization and of the authorized and responsible heads of this organization;

(3) The name, address and telephone number of the person who will be the parade organizer, and who will be responsible for its conduct;

(4) The date when the parade is to be conducted;

(5) The route to be traveled, the starting point and the termination point;

(6) The approximate number of persons who, and animals and vehicles which, will constitute the parade, the type of animals, and a description of the vehicles;

(7) The times when the parade will start and end;

(8) A statement whether the parade will occupy all or only a portion of the width of the public rights-of-way or areas proposed to be traversed or used;

(9) The location by streets, or name of park, of any areas where participants and units of the parade will assemble for the parade;

(10) The time at which units of the parade will begin to arrive at the area described in subsection (9);

(11) The interval of space to be maintained between units of the parade if applicable; and

(12) If the parade is designed to be held by and on behalf of, or for, any person, organization or other entity, other than the applicant, a communication in writing from the person proposing to hold the parade, authorizing the applicant to apply for the permit on such other person's, organization's, or other entity's behalf.

(c) *Criteria for issuance.* The police chief shall issue a parade permit when, from a consideration of the application and from such other information as may otherwise be obtained, the following criteria, appear to be satisfied. The police chief shall not have the discretion to consider any other matters or criteria, other than those listed herein, in determining whether a parade permit should be granted or denied.

(1) For a parade on the public right-of-way, the conduct of the parade will not substantially interrupt the safe and orderly movement of other traffic contiguous to its route.

(2) For a parade in a park, the conduct of the parade will not substantially interrupt the use of the park by other members of the public;

(3) The police department can provide police services adjacent to the permit area to regulate vehicular and pedestrian traffic, with the availability of a sufficient

contingent of on-duty personnel to provide such services without diminishing routine service levels to the entire community;

(4) The concentration of persons and vehicles at assembly points of the parade or assembly will not unduly interfere with proper fire and police protection or ambulance service to areas contiguous to the assembly areas;

(5) The conduct of the parade will not interfere with the movement of firefighting equipment en route to a fire;

(6) The parade is scheduled to move from its point of origin to its point of termination expeditiously and without unreasonable delays en route;

(7) A fully executed prior application for permit for the same time and place has been received, and a permit has been or will be granted to a prior applicant authorizing uses or activities which do not reasonably permit multiple occupancy of the particular public right-of-way, park, or part thereof;

(8) The parade intended by the applicant would conflict with previously planned programs organized and conducted by the city and previously scheduled for the same time and place;

(9) The proposed parade is prohibited by, or inconsistent with, the classifications and uses of the park, or part thereof designated pursuant this chapter;

(10) The parade would present an unreasonable danger to the health or safety of the applicant, or users of a park, or city employees, or the public; and

(11) The parade is prohibited by law, or by this Code;

(12) The application for permit contains a material falsehood or misrepresentation;

(13) The applicant is legally incompetent to contract or to sue and be sued; and

(14) The applicant, or the person on whose behalf the application for permit was made, has on prior occasions made material misrepresentations regarding the nature of scope of an event or activity previously permitted, or has violated the terms of prior permits issued to or on behalf of the applicant;

(15) The application for permit is not fully completed and executed;

(16) The applicant, or the person on whose behalf the applicant for permit was made, has on prior occasion damaged city property and has not paid in full for such damage.

(17) A state of federal, state or local emergency has been declared by lawful authority for the proposed time.

(d) *Conditions.* Permits shall set forth conditions reasonably necessary for the protection of the rights, property and personal safety based on the criteria set forth in subsection 54-6(c). Failure to substantially fulfill the conditions set forth in such permit shall render such permit null and void.

(e) *Compliance; possession of permit.*

(1) A permittee shall comply with all permit directions and conditions and with all applicable laws and sections of this Code and other ordinances.

(2) The chair or other person heading or leading the parade shall carry the parade permit personally, and be in possession thereof at all times, during the conduct of the parade.

(f) *Police services to adjacent areas.* Upon issuance of such permit, the police department shall provide police services adjacent to the permit area to regulate vehicular and pedestrian traffic, conditioned upon the availability of a sufficient contingent of on-duty personnel to provide such services without diminishing routine service levels to the entire community.

(g) *Compliance with conditions.* By applying for and being granted such permit, the applicant shall assume responsibility for compliance with the conditions, on the face of the permit.

(h) *Notice of approval, approval with modifications, or denial.* The police chief shall act upon the application for a parade permit and give the applicant notice of approval, approval with modification, or denial, within seven business days after the filing of the application. If the police chief denies the application, the notice will state the reasons for denial.

(i) *Fees.* No fee shall be required for the issuance of a parade permit.

(j) *Appeal of denial.* Any applicant shall have the right to appeal the denial of a parade permit to the city manager. The appeal shall be filed with the city manager within two business days after the notice of denial is received. The city manager shall act in writing upon the appeal within one business day. Any applicant aggrieved by the decision of the city manager may seek immediate judicial review.

(k) *Alternate date, time, location or route.* The police chief, in denying an application for a parade permit, shall be empowered to authorize the conduct of the parade on a date, at a time or over a route or location different from that proposed by the applicant. An applicant may propose and provide for on-duty police officers to be supplemented by the number of off-duty officers providing special police service as required to maintain adequate routine service levels pursuant to chapter 42 of this Code. An applicant desiring to accept an alternate permit shall, within five days after notice of the action of the police chief, file a written notice of acceptance with the police chief. An alternate date parade permit shall conform to the requirements of, and shall have the effect of, a parade permit under this article.

(l) *Revocation.* The police chief shall only have the authority to revoke a "parade permit" issued under this section upon finding that the criteria for issuance as set forth in this section no longer exist. A permittee may seek immediate judicial review of any decision to revoke a "parade permit."

(Code 1967, § 54-6; Ord. No. 8997, § 1, 10-17-79; Ord. No. 9533, § 1, 12-9-82; Code 1980, § 54-6; Ord. No. 12505, § 3, 3-25-04; Ord. No. 12545, § 2, 6-10-04; Ord. No. 12584, § 2, 9-9-04; Ord. No. 12639, § 2, 1-13-05; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

Editor's note—Ord. No. 12545, § 2, adopted June 10, 2004, changed the title of § 54-6 from "Permit required for parades and processions" to "Permit required for parades."

Sec. 54-6.1. Reserved.

Editor's note—Ord. No. 12501, § 1, adopted March 11, 2004, repealed § 54-6.1 in its entirety, which pertained to parade and assembly prohibitions and derived from Ord. No. 12430, § 2, adopted November 13, 2003.

Sec. 54-6.2. Permit required for assemblies.

(a) *Scope.* No "assembly" of 50 or more persons, shall occupy out-of-doors, any public right-of-way, any park, any government property, building or grounds, and no "assembly" of any number of persons shall occupy any street, except in accordance with a permit issued by the chief of police, after approval by the department of resilience and public works, parks and fire-rescue, and with such other applicable regulations as are set forth in this Code.

(b) *Application.* The written application for such permit shall be filed with the chief of police on an approved form not less than five calendar days, or as soon as practicable if the applicant certifies that the assembly is of a spontaneous or urgent nature, or more than 30 calendar days prior to the proposed assembly, so that the city can make any preparations necessary to provide personnel or other city services to minimize the interruption of city services and to otherwise protect the participants and the public. The application shall contain the following:

(1) The notification name, address and telephone number of the person seeking to conduct the assembly;

(2) If the assembly is proposed to be conducted for, on behalf of or by an organization, the name, address and telephone number

of the headquarters of the organization and of the authorized and responsible heads of this organization;

(3) The name, address and telephone number of the person who will be the assembly organizer and who will be responsible for its conduct;

(4) The date when the assembly will occur;

(5) The approximate number of persons who will constitute the assembly;

(6) The approximate number of animals and vehicles that will constitute the assembly, the type of animals and a description of the vehicles;

(7) The times when the assembly will start and end;

(8) A statement whether the assembly will occupy all or only a portion of the public right-of-way, park, government property, building or grounds, proposed to be used;

(9) The location of the assembly area;

(10) The physical boundaries of the assembly area; and

(11) Reserved.

(12) If the assembly is designed to be held by and on behalf of, or for, any person other than the applicant, a communication in writing from the person proposing to hold the assembly, authorizing the applicant to apply for the permit on such person's behalf.

(c) *Criteria for issuance.* The police chief shall issue a "assembly permit" when, from a consideration of the application and from such other information as may otherwise be obtained, the following criteria, appear to be satisfied. The police chief shall not have the discretion to consider any other matters or criteria, other than those listed herein, in determining whether a permit should be granted or denied.

(1) The assembly will not substantially interrupt the safe and orderly movement of traffic contiguous to its location;

(2) The police department can provide police services adjacent to the assembly area to regulate vehicular and pedestrian traffic, with the availability of a sufficient contingent of on-duty personnel to provide such services without diminishing routine service levels to the entire community;

(3) The concentration of persons and vehicles at the assembly area will not unduly interfere with proper fire and police protection of, or ambulance service to, areas contiguous to the assembly area;

(4) The assembly will not interfere with the movement of firefighting equipment en route to a fire;

(5) A fully executed prior application for the same time and place has been received, and a permit has been or will be granted to a prior applicant authorizing uses or activities which do not reasonably permit multiple occupancy of the proposed assembly location or part thereof;

(6) The assembly intended by the applicant would conflict with previously planned programs organized and conducted by the city and previously scheduled for the same time and place;

(7) The proposed use or activity is prohibited by, or inconsistent with, the classifications and uses of the park or part thereof designated pursuant this chapter;

(8) The use or activity intended by the applicant would present an unreasonable danger to the health or safety of the applicant, or other users of the park, or city employees, or the public;

(9) The use or activity intended by the applicant is prohibited by law, or by this Code;

(10) The application for permit contains a material falsehood or misrepresentation;

(11) The applicant is legally incompetent to contract or to sue and be sued; and

(12) The applicant, or the person on whose behalf the application for permit was made, has on prior occasions made mate-

rial misrepresentations regarding the nature or scope of a use or activity previously permitted, or has violated the terms of prior permits issued to or on behalf of the applicant;

(13) The applicant for permit is not fully completed and executed;

(14) The applicant, or the person on whose behalf the applicant for permit was made, has on prior occasion damaged city property and has not paid in full for such damage.

(15) A state of federal, state or local emergency has been declared by lawful authority for the proposed time.

(d) *Conditions.* Permits shall set forth conditions reasonably necessary for the protection of the rights, property and personal safety based on the criteria set forth in subsection 54-6.2(c). Failure to substantially fulfill the conditions set forth in such permit shall render such permit null and void.

(e) *Compliance; possession of permit.*

(1) A permittee shall comply with all applicable laws and sections of this Code and other ordinances.

(2) The assembly chair or other person heading or leading the assembly shall carry the assembly permit personally, and be in possession thereof at all times, during the conduct of the assembly.

(f) *Compliance with conditions.* By applying for and being granted such permit, the applicant shall assume responsibility for compliance with conditions on the face of the permit.

(g) *Notice of approval, approval with modifications, or denial.* The police chief shall act upon the application for a permit, and give the applicant notice of approval, approval with conditions, or denial, within three business days after the filing of the application, except that if the applicant has certified that the assembly is of a spontaneous or urgent nature, within four hours after the filing the application. If the police chief denies the application such notice will state the reasons for denial of the permit.

(h) *Fees.* No fee shall be required for the issuance of an assembly permit.

(i) *Appeal of denial.* Any applicant shall have the right to appeal the denial of an assembly permit to the city manager. The appeal shall be filed with the city manager within two business days after the notice of denial is received. The city manager, or designee, shall act in writing upon the appeal within one day after the filing of the appeal, except that if the applicant has certified that the assembly is of a spontaneous or urgent nature, within four hours after the filing of the appeal. Any applicant aggrieved by the decision of the city manager may seek immediate judicial review.

(j) *Alternate date, time, location or route.* The police chief, in denying an application for an assembly permit, shall be empowered to authorize the conduct of the assembly on a date, at a time or over a route or location different from that named by the applicant. An applicant may propose and provide for the on-duty police officers to be supplemented by the number of off-duty officers providing special police service as required to maintain adequate routine service levels pursuant to chapter 42 of this Code. An applicant desiring to accept an alternate permit shall, within five days after notice of the action of the police chief, file a written notice of acceptance with the police chief. An alternate date assembly permit shall conform to the requirements of and shall have the effect of a assembly permit under this article.

(k) *Revocation.* The police chief shall only have the authority to revoke an "assembly permit" issued under this section upon finding that the criteria for issuance as set forth in this section no longer exist. A permittee may seek immediate judicial review of any decision to revoke an "assembly permit."

(Ord. No. 12505, § 3, 3-25-04; Ord. No. 12545, § 2, 6-10-04; Ord. No. 12584, § 2, 9-9-04; Ord. No. 12639, § 2, 1-13-05; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-6.3. Reserved.

Editor's note—Ord. No. 14357, § 3, adopted March 13, 2025, repealed the former section 54-6.3 in its entirety, which

pertained to special events and derived from Ord. No. 12582, § 2, adopted September 9, 2004; Ord. No. 12640, § 2, adopted January 13, 2005; Ord. No. 12710, § 2, adopted July 7, 2005; Ord. No. 13467, § 2, adopted June 12, 2014; Ord. No. 13579, § 2, adopted December 10, 2015, and Ord. No. 13792, § 1, adopted October 11, 2018.

For current provisions pertaining to special events, the user's attention is directed to chapter 52 of this Code.

Sec. 54-7. Signs not to be placed on city property.

It shall be unlawful for any person, business, or benefactor to place or cause to be placed signs on city-owned property except signs authorized or required by the city, or by the laws of the united States, the state, or the city.
(Code 1967, § 38-42; Code 1980, § 37-56; Ord. No. 12971, § 2, 2-14-08)

Editor's note—Ord. No. 12971, § 2, adopted February 14, 2008, changed the title of § 54-7 from "Political or other advertisements not to be placed on city property or trash receptacles" to "Signs not to be placed on city property."

State law reference—Authority of local governments to establish sign ordinances, F.S. §§ 106.1435, 166.0425, 479.155.

Sec. 54-8. Using street or sidewalk for display purposes, exceptions; permit and fee.

It shall be unlawful to use any portion of a street, public right-of-way, or sidewalk in the city for display purposes, except as approved by the city commission or as hereinafter provided.

Displays/banners shall not contain any commercial advertisement.

(a) Except as provided in article III, displays approved by the city commission shall be no larger than 16 square feet, and no portion of any display or attachment thereto may be more than 84 inches from the ground.

(b) Overhead horizontal banners at locations designated by the city will require a permit from the department of resilience and public works before installation. The application for permit shall be submitted electronically by the applicant to the department of resilience and public works through the department's permitting system. A non-refundable application and inspection fee in the amount of $160.00 per banner shall accompany the application. Additionally, a permit fee of $100.00 per month applies to each banner for the use of the right-of-way. A supplemental banner fee and a limited display duration period shall apply for overhead horizontal banner locations within the Coconut Grove Special Events District pursuant to section 54-343. The number, location, and method of installations for overhead horizontal banners shall be subject to approval by the department of resilience and public works and shall conform to the following requirements:

(1) The banner shall not exceed three feet in height and 30 feet in length.

(2) The banner must be a minimum of 18 feet above the pavement elevation at the crown of road.

(3) The banner shall contain adequate perforations to reduce wind loading.

(4) Sponsors' names and/or logos may not constitute more than 15 percent of the banner's total area.

(5) The city reserves the right to remove the banner without notice.

(6) The installation of the banner shall not require the installation of poles or other support devices in the right-of-way.

(c) Vertical event banners on streetlight poles within city public rights-of-way require a permit from the department of resilience and public works before installation. The application for a permit shall be submitted electronically by the applicant to the department of resilience and public works through the department's permitting system. A non-refundable application fee of $95.00 per banner shall accompany the application. Additionally, a permit fee of $20.00 per pole per month applies to each banner for the use of the right-of-way. The number, location, and method of installations for vertical event banners shall be subject to approval by the depart-

ment of resilience and public works and shall conform to the following requirements:

(1) Restricted to being related to events of limited duration.

(2) Shall not exceed three feet in width by eight feet in length; shall have a minimum height clearance of ten feet above the pavement elevation; and shall be suspended lengthwise from a streetlight pole and attached to such pole at each end. Banners may be double-sided.

(3) Shall clear the face of curb by a minimum of two feet.

(4) Shall not contain product logos unless associated with the sponsorship of the event. The sponsors' names and or logo shall not exceed ten percent of the total banner area.

(5) May be erected up to 60 days prior to the event and shall be removed no later than seven days after such event.

(6) Applications shall include the name and date(s) of the event; a drawing identifying the streetlight pole to be used for displaying the banner; and a letter of permission from the owner(s) of the streetlight pole if other than the city.

(7) Prior to the issuance of the permit, the permittee shall provide the department a refundable security deposit, bond, or other surety as determined by the director of resilience and public works to guarantee the removal of the vertical streetlight pole event banner within the permitted timeframe, in case of advanced deterioration, or for any other legal reason. Said refundable security deposit, bond, or other surety amount shall be determined as follows:

Total Banners Proposed	*Total Refundable Security Deposit, Bond or Other Surety*
1—10	$ 5,000.00
11—20	10,000.00
21—30	15,000.00

(d) Construction fence screens or construction windscreens containing onsite advertising may be affixed to a permitted temporary construction fence located in the right-of-way or abutting the right-of-way pursuant to the regulations and fees in section 54-3.

(e) Applicant agrees in exchange for such permit(s) to indemnify, defend, and hold harmless the city, its officials, employees, agents, and, if applicable, its instrumentalities, and each of them from and against all loss, cost, penalties, fines damages, claims of any nature, including expenses and attorney's fees, and any and all liabilities by reason of injury to or death of any person, or damage to, destruction, or loss to any property including the city, its instrumentalities, officials, employees, and agents arising out of or in connection with the performance or non-performance of the activities contemplated by the permit(s) which is directly or indirectly caused, in whole or in part, by any act, omission, default, liability, or negligence whether active or passive of the applicant, its employees, agents, servants, or contractors, unless such act or omission is solely caused by the city, its instrumentalities, officials, employees, and agents. The applicant further agrees to indemnify, defend, and hold harmless the city, its instrumentalities, officials, employees, and agents against all liabilities which may be asserted by an employee or former employee of the applicant or any of its contractors as provided above, for which the applicant's liability to such employee or former employee would otherwise be limited to payments under workers' compensation or similar laws. In addi-

tion, the applicant understands and agrees that except where caused by the negligence or misconduct of the city, its instrumentalities, officials, employees, or agents, the city shall not be liable for any loss, injury, or damage to any personal property or equipment of the applicant, its employees, agents, contractors, or business licensees or invitees placed on city property and its instrumentalities, and shall be at the sole risk of the applicant thereof. The applicant shall be solely responsible for all activities and the installation and maintenance of traffic-control devices. The applicant shall ensure that adequate safety precautions are in effect at all times during the term of the permit. It shall be a further condition precedent to the issuance of any such permit for work to be performed in the public right-of-way that the permit holder(s) is/are jointly and severally responsible, at each permit holder's sole expense, for any damages regarding restoring the public right-of-way to its original condition before installation of facilities. The indemnification shall survive termination of the permit(s).

Prior to the issuance of any such permit, the applicant shall submit to the city a certificate of insurance in an amount not less than $1,000,000.00 per occurrence, $2,000,000.00 aggregate, and any endorsements thereto, including, but not limited to, premises and operations liability, contingent and contractual exposures, and underground hazards, if applicable, personal and advertising injury, products, and completed operations. In addition, the applicant hereby agrees to provide additional insurance requirements as required by the city, including but not limited to umbrella liability or any additional requirements or endorsements as may be applicable, in connection with the scope of services contemplated by the permit. The certificate must reflect primary and non-contributory language and list the city as an additional insured. The certificate must also include coverage for all owned, hired, and non-owned vehicles with a combined single limit of $500,000.00 per accident also listing the city as an additional insured and must further afford coverage for worker's compensation including waiver of subrogation subject to the statutory limits of the state. The insurance herein required shall remain in full force and effect during the entire term of the permit. Additionally, all such insurance shall be subject to review and approval by the city's risk management department.

All insurance policies required above shall be issued by companies authorized to do business under the laws of the state, with the following qualifications:

> The company must be rated no less than "A-" as to management and no less than Class "V" as to financial strength by the latest edition of Best's Insurance Guide, published by A.M. Best Company, Oldwick, New Jersey, or its equivalent subject to the approval of the city's department of risk management. Companies not meeting the above rating requirements shall submit proof of reinsurance from qualifying insurers having or exceeding the required rating criteria.
>
> Certificates of insurance shall contain 30 days as to changes or modifications with notice to the certificate holder.

(Ord. No. 12178, 1-10-02; Ord. No. 12971, § 2, 2-14-08; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13195, § 5, 9-27-10; Ord. No. 13519, § 2, 5-14-15; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13963, § 2, 2-11-21; Ord. No. 14433, § 3, 1-8-26)

Editor's note—Ord. No. 13087, § 2, adopted Sept. 10, 2009, changed the title of § 54-8 from "Using street or sidewalk for display purposes, exceptions" to "Using street or sidewalk for display purposes, exceptions; permit and fee." The historical notation has been preserved for reference purposes.

Sec. 54-9. Placing signs, advertisement, or displays on any portion of public right-of-way, street or sidewalk surface.

(a) Except as provided in this section, it shall be unlawful for any person to post, stick, stamp, stencil, write, paint, erect or place a sign upon any sidewalk, crosswalk, curb, or any portion of the public right-of-way, including but not limited to, any trash receptacles, lamp post, electric light, telegraph, telephone or utility line pole, hydrant, parking meter, bus bench or shelter, news rack, shade tree or tree box, any wall, fence or barricade, or upon the piers, columns, trusses, girders, railings, gates or other parts of any public bridge, overpass or viaduct, or any public structure or building except signs, advertisements, or displays authorized or required by the city, or by the laws or resolutions of the United States, the state, or the city. This subsection shall be enforced pursuant to the provisions of section 1-13.

(b) It shall be unlawful for any benefactor to cause to be posted, stuck, stamped, stenciled, written, painted, erected, or placed any sign to or upon any sidewalk, crosswalk, curb, or any portion of the public right-of-way, including but not limited to, any trash receptacles, lamp post, electric light telegraph, telephone or utility line pole, hydrant, parking meter, bus bench or shelter, news rack, shade tree or tree box, any wall, fence or barricade, or upon the piers, columns, trusses, girders, railings, gates or other parts of any public bridge, overpass or viaduct, or any public structure or building except signs authorized or required by the city, or by the laws of the United States, the state, or the city.

(c) No sign shall extend or project over any portion of any street, alley, waterway or any other public way or any public property except for marquee and projecting signs which shall only be permitted to extend over the right-of-way, in accordance with the Florida Building Code.

(d) A performance bond shall be required of any person or business who rents or leases any city for a special event to ensure the removal of any signs that may advertise such event. The city may at its sole discretion direct such signs to be removed at any time.

(e) Notwithstanding any language to the contrary in this chapter, a person, business, or other entity donating to the city trash receptacles meeting all city requirements and specifications, for the use and benefit of the general public, shall be authorized to place a sponsorship sign (which shall mean a sign that may include the following or any combination of: the name of a person, business or entity, a logo for a business or other entity), on the trash receptacle, after such sponsorship sign is approved at the discretion of the solid waste director or designee. The sponsorship sign will have a dimension of 12" x 6" and exclude alcohol, tobacco, firearms products and adult entertainment establishments. The sponsorship will be for the term the sponsored trash receptacle is in service. The placement of any donated trash receptacles shall be up to the discretion of the solid waste director or designee.

(f) (1) Notwithstanding any other prohibitions in this chapter to the contrary, the city may place, or contract for placement of advertisements or displays on city bicycle sharing and rental station located within the public right-of-way or on bicycles when such advertisements or displays are part of a city sponsored bicycle-rental and sharing program. Such advertisements or displays will be permitted only when the bicycle program is competitively procured and subject to compliance with all applicable permits, contract and competitive solicitation requirements, governmental reviews and approvals, codes, rules, regulations, ordinances, statutes, and contract provisions. All contracts for placement of advertisements under this section of the Code shall contain provisions for a portion of the revenue to accrue to the city.

(2) The following definitions will apply to this section of the Code:

Bicycle sharing and rental program means a bicycle sharing and rental program that is comprised of an automated system

in which bicycles are made available for shared use by individuals who do not own them.

Bicycle sharing and rental station means the following items located on a predetermined physical site: docking structure, payment kiosk, and bicycles.

Payment kiosk means the physical structure and housing for the electronic payment equipment that allows users to access the bicycle sharing and rental program with a membership card or credit card.

(3) The following requirements and limitations will apply to any advertisement(s) and display(s) authorized under this section:

a. Advertisements on the bicycle sharing and rental station payment kiosk may contain advertising on: (A) the rear panel of the Payment Kiosk opposite the keypad/screen display with a maximum dimension of 23"W x 81"H and/or (B) both side panels measuring 14"W x 48"H.

b. General advertising on bicycles that are part of a bicycle sharing and rental program shall be limited to basket surfaces, handlebar placard and fender covers of the bicycles.

(g) (1) Notwithstanding any other prohibitions in this chapter to the contrary, the department of off-street parking of the city ("DOSP"), which owns parking payment machines situated on property within the public right-of-way or in designated parking areas, shall be authorized to use such parking payment machines for advertising purposes. DOSP may enter into agreements with competitively procured licensees for these parking payment machines to be used for advertising. The agreements shall be in such form(s) acceptable to the city attorney, on terms acceptable to the director of resilience and public works, and may not be assigned, transferred or otherwise sold or conveyed. The agreements may not be exclusive, or have a fixed term, unless competitively procured. All agreements are subject to compliance with all applicable permits, governmental reviews and approvals, and all federal, state and local laws.

(2) The following requirements and limitations will apply to any advertisement(s) authorized under this section:

a. Advertisements shall contain public interest messages on a minimum of two-thirds of the display area.

b. Advertisements will exclude alcoholic beverage brands, tobacco brands, firearms products and adult entertainment products or establishments.

c. Advertisements shall be changed, at a minimum, on a quarterly basis.

d. Advertisements shall not contain additional lighting, specifically no back lighting, other than the lighting typically associated with the parking payment machines in their ordinary use.

(h) (1) Notwithstanding any other prohibitions in this chapter to the contrary, the city may place or contract for placement advertisements or displays on communication kiosks and newsracks as described in chapter 54, article VII, within the public right-of-way or on city-owned property when such advertisements or displays are part of a communication kiosk program or a newsrack as described in chapter 54, article VII. Such advertisements or displays will be permitted only when the communication kiosk program or newsrack as described in chapter 54, article VII, is procured in a non-exclusive manner and in accordance with chapter 18, article III of the City Code, titled "City of Miami Procurement Ordinance," and subject to compliance with all applicable permits, contracts, and competitive solicitation requirements, governmental reviews, approvals, codes, rules, regulations, ordinances, statutes,

and contract provisions. All contracts for placement of advertisements under this section shall contain provisions for a portion of the revenue to accrue to the city.

(2) The following definitions will apply to this section of the City Code:

Communication kiosk means a physical interactive device which disseminates information to the general public such as, but not limited to, emergency, transit, special event information, and advertisement information. Such device may be installed at a maximum of one per square as defined in chapter 54, article IV of the City Code.

Communication kiosk program means an approved program by which the city generates revenues and provides public services including but not limited to free wi-fi, resilience components such as air quality sensors, and security features such as panic functionality or a police panic button to protect the public welfare.

(3) The following requirements and limitations will apply to all advertisements and displays authorized under this section:

a. Advertisements shall contain public interest messages on a minimum of one of every eight intervals for the same time period as the advertisement posted.

b. Advertisements shall exclude tobacco products, firearm products, adult entertainment products, and adult entertainment service establishments as those terms are defined in Ordinance No. 13114, the Zoning Ordinance of the City of Miami, Florida, as amended ("Miami 21 Code"), or any successor zoning ordinance. Alcohol may not be displayed on communication kiosks nor on newsracks between the hours of 6:00 a.m. and 7:00 p.m. within 200 feet of any prior established school, public library, museum, house of worship/religious institution, cemetery, youth center, recreational center, youth organization, day care center, government office, public park (except for parks managed by the Bayfront Park Management Trust), playground, amusement park, hospital, medical clinic, senior or assisted living facility, or substance abuse/treatment program as measured from the applicable kiosk or newsrack face to the nearest property line of a property containing such a use.

(i) The city opts out of Chapter 33, Article VI of the Miami-Dade County Code of Ordinances, as amended, as it relates to signage in the public right-of-way within the city's urban core as defined in Section 33-84(31) of the Miami-Dade County Code of Ordinances, as amended, with the exception of the provisions governing illumination and murals, including but not limited to Sections 33-84, 33-86, 33-94, 33-95, 33-96, 33-96.1, and 33-107, and the provisions governing roof signs in Section 33-106.1 of the Miami-Dade County Code of Ordinances, as amended.

(Code 1967, § 54-9; Ord. No. 11144, § 1, 4-28-94; Code 1980, § 54-9; Ord. No. 12971, § 2, 2-14-08; Ord. No. 13188, § 2, 7-22-10; Ord. No. 13375, § 2, 4-11-13; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13900, § 2, 4-9-20; Ord. No. 14042, § 2, 1-13-22)

Editor's note—Ord. No. 13375, § 2, adopted April 11, 2013, changed the title of section 54-9 from "Placing signs on any portion of public right-of-way, street or sidewalk surface" to "Placing signs, advertisement, or displays on any portion of public right-of-way, street or sidewalk surface." The historical notation has been preserved for reference purposes.

Sec. 54-9.1. Enforcement, rebuttable presumption.

A violation of sections 54-7, 54-9(b) and (c) is a civil violation and will be enforced pursuant to the provisions of section 2-823 through 2-830 subject to the following conditions:

(1) At any prosecution for violation of this section where the circumstances relating to the placement and number of signs make it more likely than not that the signs were placed there, or caused to be

placed there, by an agent, employee, contractor, promoter, or other representative of the business or benefactor advertised on the face of the sign, the code enforcement board or special master shall apply a rebuttable presumption that the business or benefactor advertised on the face of the sign placed, posted or affixed the sign.

(2) If a person is found posting signs in violation of this Code, every code enforcement officer is authorized to seize, for use as evidence in the prosecution of the person, business or benefactor before the code enforcement board or special master, all signs in the possession of the person.

(3) When a sign is found to be located on public property and without a required permit, the city shall have the right to remove such sign. The owner may recover the sign by paying the removal costs within 60 days of the removal. If the sign is not recovered by the owner within 60 days then it shall be considered abandoned property in the hands of the city and shall be disposed of as permitted by law. The city shall recover all costs in conjunction with such removal of signs from the owner or the owner's property. Such recovery may be by way of personal action against the owner or an in rem lien against any property of the owner.

(Ord. No. 12971, § 2, 2-14-08)

Sec. 54-9.2. Civil fines.

The following civil fines shall be imposed for violations of sections 54-7, 54-9(b) and (c) herein:

(1) If the offense is the first offense, $105.00 fine plus $50.00 per sign;

(2) If the offense is the second offense within the preceding 12 months, $262.50 fine plus $50.00 per sign;

(3) If the offense is the third or subsequent offense within the preceding 12 months, $525.00 fine plus $50.00 per sign.

(4) Notwithstanding subsections (1)—(3), no person, business or benefactor shall receive more than one offense within any one-day period, however, the $50.00 per sign fine shall apply to all signs found during that one-day period.

(Ord. No. 12971, § 2, 2-14-08; Ord. No. 13142, § 14, 2-11-10)

Sec. 54-9.3. Recovery of unpaid fines; unpaid fines to constitute a lien; foreclosure.

(a) The city may institute proceedings in a court of competent jurisdiction to compel payment of civil fines.

(b) A certified copy of an order imposing a civil fine may be recorded in the public records and thereafter shall constitute a lien upon any real or personal property owned by the violator and it may be enforced in the same manner as a court judgment by the sheriffs of this state, including levy against the personal property, but shall not be deemed to be a court judgment except for enforcement purposes. After two months from the filing of any such lien which remains unpaid, the city may foreclose or otherwise execute upon the lien.

(Ord. No. 12971, § 2, 2-14-08)

Sec. 54-10. Advertising which obstructs streets or sidewalks.

It shall be unlawful to conduct any advertising or publicity business or activities pertaining thereto in a manner so as to produce an assemblage of spectators and listeners and thereby obstruct or cause the obstruction of any street, highway or sidewalk of this city. This restriction shall not apply to parades or advertising under the authority of a permit obtained as provided by this Code.

(Code 1967, § 54-10; Code 1980, § 54-10)

Sec. 54-11. Signs required on construction or installation work in public rights-of-way.

(a) All construction or installation work in the public rights-of-way shall have one or more signs readily and conveniently viewable and

easily read from a reasonable distance, which signs shall contain at least the following information:

(1) Identification of the project.

(2) The name of the utility company, governmental or other agency for whom the work is being done and the telephone number where a responsible representative can be reached who is conversant with the work.

(3) The name and telephone number of the contractor or agency who is performing the work. Subcontractors' names shall not be listed.

(4) The name and telephone number of the supervising architect or engineer, if there is one.

(b) The resilience and public works department shall determine the type, size, number and other features to be required in such signs, and shall prepare and publish a city engineering standard containing all such data. Such standard shall be made available at no cost to all affected persons. The department of fire-rescue shall inform all applicants for permits for work in the public rights-of-way of the requirement for the aforesaid signs.

(c) It shall be the responsibility of each utility, governmental or other agency to see that such signs are properly made, installed and maintained during the entire construction or installation period, and in the event such signs are not installed and maintained, the resilience and public works department may stop the work until signs are properly installed.
(Code 1967, § 54-10.1; Code 1980, § 54-11; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-12. Placing glass or other injurious substances on streets.

(a) It shall be unlawful for any person to place, drop or cause to be placed or dropped on any street in the city any glass or other substance which would tend to contribute to the injury of any person or animal or to damage any vehicle traveling thereon.

(b) Any person who places or drops or who causes to be placed or dropped on any street in the city any substance referred to in the preceding paragraph shall immediately remove such substance or cause the same to be removed.

(c) Any person, before moving a wrecked or damaged vehicle from the scene of any accident on any street in the city, shall gather and remove from such street all glass or other injurious substance from such wrecked or damaged vehicle.
(Code 1967, § 54-11; Code 1980, § 54-12)

City Code cross references—Dumping of trash on streets, § 22-6; spilling of waste, deposit of mud from tires, etc., in streets, § 22-7.

Sec. 54-13. Carrying or drinking from open glass or metal containers in certain areas during outdoor cultural or other types of, festivals; or from business establishments during same; use of glass or metal containers by vendors during same; restrictions on sale of alcoholic beverages during same; permit required for the sale or dispensing of beer and/or wine for special events or programs on public streets and sidewalks.

(a) The activity described in paragraphs (a)(1), (2) and (3) hereof shall be unlawful during the time period of events which are the subject of permits issued pursuant to section 54-6.3 and local business tax receipts issued pursuant to section 31-35:

(1) It shall be unlawful during any open air, outdoor cultural, art, folk or street festival described above for any person to carry, drink or eat from any open glass or open metal container, as defined below, in or on any public street, sidewalk, park, playground, square, or unenclosed public place in or within two blocks of the area authorized by permit or license for such event.

(2) a. It shall be unlawful for owners or operators of business establishments located in or within two blocks

of the area authorized for any such event described above knowingly to allow any person to leave the premises carrying an open glass or open metal container.

b. It shall be unlawful for operators of vending stands, as defined below, located in or within two blocks of the area authorized for any such event described above to dispense food or beverages in glass or metal containers.

(3) It shall be unlawful during any such event described above for anyone to sell or dispense alcoholic beverages, as defined in F.S. § 561.01, upon any public street, sidewalk, park, playground, square, or unenclosed public place, within the proscribed area, other than from a location specified for sale or dispensing of such alcoholic beverage and so identified in the application for such event or request for such license or permit.

(b) Notwithstanding any provisions in the City Code of the City of Miami, Florida, to the contrary, upon the issuance of a temporary permit by the Florida department of alcoholic beverages and tobacco to sell beer and wine, the city manager or his/her designee, on special occasions and for special events or programs, may permit by special permit the dispensing of wine or beer in soft containers on public streets and sidewalks within the city. Such special permit shall establish any special conditions which shall apply to said dispensing which shall be cumulative and in addition to all other conditions imposed by state and local laws and regulations.

(c) The sponsors of all open air, outdoor cultural, art, folk, or street festivals shall incorporate provisions in all their agreements with vendors for their respective events setting forth the requirements of this section.

(d) For purposes of this section, the following definitions shall apply:

Open glass container is any receptacle made of glass whose seal has been broken or whose contents are exposed to the air.

Open metal container is any receptacle made of metal whose seal has been broken or whose contents are exposed to the air.

Vending stand is any table, showcase, bench, rack, pushcart wagon, or any wheeled vehicle or device, motorized or not, used for displaying, storing, or transporting articles offered for sale by a vendor.

Vendor is any person engaged in the selling, or offering for sale, of food, beverages, services or merchandise from a stand or motor vehicle or from his/her person.

(e) The person, firm, organization or corporation obtaining a permit or license under sections 31-35 and/or 54-6.3 shall distribute to affected establishments at least two notices of this section describing the provisions hereof and the specific boundaries and time periods, for posting by such business establishments. These notices may be obtained from the office of the city clerk or such other location designated by the city manager, and shall read as follows:

NOTICE

Pursuant to Ordinance No. 9777 [Miami, Florida, Code § 54-13]:

It shall be unlawful to drink or eat from any open glass or open metal container during certain open air, outdoor cultural, art, park or street festivals in or within two blocks of the authorized area for such event.

It shall be unlawful for owners or operators of business establishments or vending stands located in or within two blocks of the area authorized for the event described below knowingly to allow any person to leave the premises carrying an open glass or open metal container in the case of a business establishment, or to sell or dispense food or beverages in glass or metal containers in the case of a vending stand.

"Open glass container" is defined in the ordinance as any receptacle made of glass whose seal has been broken, or whose contents are exposed to the air.

"Open metal container" is defined in the ordinance as any receptacle made of metal whose seal has been broken, or whose contents are exposed to the air.

EVENT, EFFECTIVE DATE(S), TIME(S) AND AFFECTED AREA

Event:

Day(s):

Time:

The provisions of this ordinance shall be effective during the above-described event and day(s) in the area bordered by:

North:

South:

East:

West:

(f) The owner of every business establishment which sells beverages in glass containers in or within two blocks of the area described in an application for a permit or licensed for any event, as described above, shall post two notices of this section in his/her business establishment in conspicuous locations visible to his/her patrons during such event. Failure to post such notices shall be unlawful.
(Ord. No. 9777, § 1, 1-26-84; Ord. No. 11045, § 3, 3-11-93; Code 1980, § 54-12.1; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13676, § 2, 4-27-17)

Sec. 54-14. Removal of utility facilities to permit improvement of streets, etc.

Utility companies having facilities on, under or across public streets, alleys and highways of the city which are to be widened and improved shall be required to remove, at their own expense, such facilities as may be specified by the resilience and public works department to enable and permit such widening and improvement.
(Code 1967, § 54-13; Code 1980, § 54-14; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-15. Copying use, etc., of aerial photographs of city.

No person shall be permitted to copy, reproduce or use negatives of any aerial photograph owned by the city and on file in the resilience and public works department, without the authorization of the city manager. The city manager shall promulgate rules and regulations pertaining to the use of negatives, reproduction and copying of aerial photographs referred to in this section.
(Code 1967, § 54-15; Code 1980, § 54-16; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-16. Prohibition of vehicular access.

(a) The commission shall have the power, after a properly advertised public hearing, to recommend to the Miami-Dade County traffic director that vehicular access to a particular street be prohibited where such prohibition is found to be in the best interest of the public.

(b) The request for prohibited access shall be initiated by the department of resilience and public works or through said department by petition of property owners within 1,000 feet of the affected intersection.

(c) The request for prohibited access shall be subject to all requirements that may be imposed by the Miami-Dade County traffic director, including a traffic study. The decisions of the traffic director shall be final.

(d) Prior to the public hearing, the proposed prohibited access shall be reviewed by the departments of police, fire-rescue, and solid waste, which shall make recommendations to the commission at said public hearing.

(e) On streets where access is prohibited, a cul-de-sac or other turnaround shall be provided in conformance with the requirements of the department of resilience and public works.

(f) Except for those streets located within the neighborhoods known as Coral Gate and Shorecrest, all expenses resulting from requests for prohibited vehicular access to a particular street shall be borne by the applicant (i.e., property owner(s), homeowner association(s), etc.).

Expenses include, but are not limited to, newspaper advertising, posting of notification placards, postal notification to local residents, postal correspondence to the applicant and any traffic studies. Upon approval by the Miami-Dade County traffic director for a request to prohibit vehicular access to a particular street, the applicant shall pay all additional expenses related to the permits, construction of temporary and permanent barriers and other related improvements that may be required by the traffic director and/or the department of resilience and public works.

(g) The director of resilience and public works is authorized to place and erect a fence at city expense across Natoma Street, Ta-lu-ga Drive and Alatka Street at their intersection with South Dixie Highway in the city, for the enhancement of public safety by prohibiting pedestrian access at these locations. It is further provided that, as an alternative measure, a wall may be constructed by the city at any or all of such intersections, subject to the condition that construction of the wall(s) shall not commence until such time as neighbors have placed all funds necessary to pay for construction of the wall(s) on deposit with the city, with the deadline for such deposit(s) being hereby established as January 10, 1993.

(h) The commission shall have the power, after a properly advertised public hearing, to require that vehicular and pedestrian access to an unimproved public alley or partially unimproved public alley be prohibited where such prohibition is found to be in the best interest of the public. The request for prohibited access to an unimproved public alley or partially unimproved public alley shall be initiated by the department of resilience and public works or through said department by petition of all property owners abutting the alley, as determined by the director. Prior to the public hearing, the proposed prohibited access shall be reviewed by the departments of police, fire rescue and solid waste, and the departments shall make recommendations to the commission at said public hearing. The proposed vehicular access restriction shall be accomplished by the placement of an approved fence and gate across all entrances to the alley, ensuring no access and no private use thereon unless the property is vacated. All expenses resulting from requests for prohibited access shall be borne by the applicant, (i.e., property owner(s), homeowner association(s), etc.). Expenses include, but are not limited to, newspaper advertising, postal correspondence and, upon approval of the commission, all expenses related to the permits, installation of the fence and gates and other related improvements that may be required by the department of resilience and public works.

(i) The director of resilience and public works is authorized to place and erect a fence at city expense across Marler Avenue at its intersection with Douglas Road and its intersection with Plaza Street in the city, for the enhancement of public safety by prohibiting pedestrian access at these locations.

(Ord. No. 9860, § 1, 6-28-84; Ord. No. 10556, § 1, 2-23-89; Ord. No. 10868, § 1, 4-11-91; Ord. No. 11005, § 1, 10-8-92; Ord. No. 11132, § 2, 3-24-94; Code 1980, § 54-17; Ord. No. 11560, § 2, 10-28-97; Ord. No. 11630, § 2, 3-24-98; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-17. Waiver of fees.

The fees required under this chapter may be waived by the director of resilience and public works for entities and agencies of the City of Miami.

(Ord. No. 11795, § 3, 5-11-99; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-18. Conflicts.

In the event that there is a direct conflict between the provisions within the articles of this chapter, the provisions in the more specific article shall govern.

(Ord. No. 14150, § 2, 2-23-23)

Secs. 54-19—54-40. Reserved.

ARTICLE II. CONSTRUCTION, EXCAVATION, AND REPAIR*

Sec. 54-41. Lines and grades for sidewalk, curb, etc., construction.

(a) Lines and grades for the building of sidewalks, curbs and gutters shall be furnished by the director of resilience and public works. The contractor shall furnish all stakes or pins and such ordinary labor as may be necessary for setting grades. He/she shall also take the necessary steps to protect and care for the stakes after the grade is set, and if any one of the stakes is disturbed, the grade is to be reset at the contractor's expense.

(b) After grades are finished, at least 24 hours' notice shall be given the director of resilience and public works by the contractor before actual construction is begun, the contractor specifying, as nearly as practicable, the hour at which he/she expects to start work. The fact that a permit has been secured or grades given shall not constitute legal notice.
(Code 1967, § 54-16; Code 1980, § 54-26; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-42. Permit required for disturbing, cutting into, digging up, drilling, boring under, or excavating any public street, swale, or sidewalk; cost of restoration; obstruction of right-of-way.

(a) *Permit required.* Except as provided in subsection (b) when any person desires to disturb, cut into, dig up, drill into, bore under, or excavate any public street, swale, or sidewalk, whether the same is paved or unpaved, or to cause the same to be done, application shall be made to the director of the department of resilience and public works for permission therefore. No person shall apply for a permit to perform or conduct work in the public right-of-way without disclosing in writing on the permit application form the person(s) on whose behalf such work in the public right-of-way is being performed or conducted. If such work is being performed by one or more person(s) on behalf of any other person(s) for using, constructing, excavating, maintaining, owning or operating any type or manner of system, equipment, or device within the public right-of-way, then both/all persons must comply with all application and permitting requirements of the city. Failure of any person(s) to fully disclose his/her/their interest/participation/representation in the permit application or to fulfill all city requirements for issuance of the permit shall result in (1) an immediate revocation by the city of any excavation permit previously granted resulting in such permit becoming null and void (without the necessity of any further action, hearing or proceeding), or (2) issuance by the city of a written notice that such permit will not be granted, as the case may be, due to violation of this provision by the person(s) who applied for such permit. The city shall have the right to take all legal measures and seek all available remedies to enforce this disclosure provision. Except for applications for permits by non-revenue generating government entities, no person(s) or those performing the work on behalf of any other person(s) may apply for and/or receive a permit if the person(s) or those performing the work on their behalf currently owe outstanding fines, debts, or delinquencies to the city related to prior permits issued by the department of resilience and public works. If such outstanding fines, debts, or delinquencies are owed by those performing the work on behalf of another, then the denial of the ability to apply for and/or receive a permit shall be accompanied by a notice, mailed to the person(s) applying for the permit, notifying them of the outstanding fines owed by those attempting to perform the work on their behalf and stating the amounts owed. Such permit shall set forth minimal reasonable conditions, as permitted by law, necessary for the protection of property and personal safety, the restoration of the public right-of-way to a condition satisfactory to the city, and any on-going maintenance or reparations for un-repaired conditions or damages that may be required of the person(s) under the circumstances and extent of the work to be performed or conducted by such person(s) under such permit. Any violation of the conditions set forth or any violations under

*__Charter reference—__Authority of city to pave, close, open and widen streets, § 3(b).

applicable law shall render such permit automatically null and void, without the necessity of any further action or proceeding. Such permit shall cover the length of time necessary and reasonable according to the type of activity involved. Additionally, unless otherwise provided by general law, any continuing use of the public right-of-way by any such person(s) shall require such person(s) to also enter into a continuing maintenance and restoration agreement, registration, or a franchise agreement, as applicable by Florida Statutes or the City Code, with the city, and to provide such continuing insurance and such continuing surety that may be required by the agreement or registration relating to such continuing maintenance and potential restoration. A permit application form will not be required to be submitted for multiple sanitary sewer laterals, water service laterals or water meters installed by the Miami-Dade Water and Sewer Department, if such multiple installations are combined into a single written request for permit to the director of the department of resilience and public works. A request for multiple water and sewer installations shall be submitted to the director of the department of resilience and public works prior to construction work and shall not require submittal of a surety for restoring the street or sidewalk as described in subsection(c).

(b) *Underground utilities; underground facility.* All persons shall fully comply with F.S. ch. 556, entitled "The Underground Facility Damage Prevention and Safety Act" as amended ("Chapter 556"). No city permit will be required from operators of underground facilities in order to identify underground facilities. In other instances permits required by this section shall be required. F.S. ch. 556 is deemed as being incorporated by reference herein as though set forth in full. Excavators and member operators shall comply with low-impact marking practices, including, without limitation, a subsequent notice, as required by F.S. § 556.114, as amended. Markings required by F.S. ch. 556 shall be made with flags or stakes, or temporary, non-permanent paint or other industry-accepted low-impact marking practices. Failure to comply with these provisions or the provisions detailed in F.S. ch. 556 shall subject all persons including the persons on whose behalf such work in the public right-of-way is being performed or conducted to the procedures, violations, penalties prescribed in F.S. ch. 556, or code enforcement proceedings pursuant to chapter 2, article X of this Code, or both.

(c) *Calculation of cost of restoration.* Upon compliance with the terms of subsection (a) of this section, the director of the department of resilience and public works shall calculate the cost of fully restoring the street or sidewalk to the condition in which it is found upon the filing of such application. The cost shall be calculated on the basis of the following rates:

Clearing and grubbing (removal of sod, shrubs, ground cover plantings, trees less than 4" diameter, rocks up to 50lbs each, topsoil/gravel surface up to 3" deep, and other non-structural improvements in the right-of-way) . . . . . .$5.00/square foot ("SF")

Asphalt removal (2" thick average) . . . . .5.00/square yard ("SY")

Concrete removal (6" thick average) . .3.00/SF

Backfill . . . . . .15.00/cubic yard ("CY")

Eight-inch limerock base 25.00/SY

Permanent paving (asphalt concrete and rock base) 30.00/SY

1" Milling and resurfacing (Superpave asphalt) 14.50/SY

Superpave asphalt (only) 18.00/SF

Stamped/color asphalt concrete (only) . .18.00/SF

Six-inch driveway paving (plain concrete).8.00/SF

Decorative driveway paving (bricks, pavers, stamped/textured/color concrete, etc.) . .18.00/SF

Six-inch concrete sidewalk (plain concrete).8.00/SF

Decorative sidewalk (bricks, pavers, stamped/textured/color concrete, etc.) 8.50/SF

Six-inch reinforced concrete protective slab 20.00/SF

Decorative swale paving (bricks, pavers, lattice, concrete swale blocks, etc.).....15.00/SF

Sod (St. Augustine or Bahia) 4.50/SY

Curb.....15.00/linear foot ("LF")

Valley gutter 18.00/LF

Curb and gutter 20.00/LF

Swale trench 200.00/SY

Swale grading 8.00/SY

Exfiltration trench.....200.00/LF

Solid pipe up to 24" RCP, HP-PP, or dual wall HDPE with water-tight joints 150.00/LF

Solid pipe > 24": 200.00/LF minimum or at the discretion at of the director of resilience and public works

Drainage structure (inlet, manhole, etc.) 3,000.00/each

Decorative pedestrian lighting (fixture/pole/mounting) 6,000.00

Roadway lighting (fixture/pole/mounting).....12,000.00/each

Street furniture (benches, waste receptacles, bicycle racks, etc.).....500.00/each

(d) *Payment of amount of costs for restoration; issuance of permit; time for completion; consequences of failure to complete street restoration.*

(1) Whenever any individual, company, or agency applies for a permit for work requiring disturbing, cutting into, digging up, drilling, boring under, or excavating of a street, swale, sidewalk, or other public right-of-way, or easement, as required by subsection (a) of this section, the individual, company, or agency shall deliver to the director of the department of resilience and public works a bond or surety in the amount of one and one-half of the cost of the restoration as calculated by the director of the department of resilience and public works. The bond or surety shall be of one of the following types.

a. A site restoration bond written by an approved domestic surety. Except for bonds for a wireless service provider as defined in F.S. § 337.401(7)(b)(13), as amended, all bonds shall carry the name and address of a local representative, be for an initial period of one year, and shall be automatically extended in increments of one year until the permittee and the surety company are notified in writing of the acceptance of the street restoration and closure of the permit. A site restoration bond for a wireless service provider shall be time-limited to not more than 18 months after the construction to which the bond applies is completed and the department of resilience and public works shall accept the city's addition to any existing bond, insurance policy, or other relevant financial instrument without condition except as to consent to venue for litigation purposes (provided the same provides the required amount of coverage).

b. Cashier's check, drawn on a local bank, to be returned to the permittee on acceptance of the street restoration and closure of the permit.

c. Irrevocable letter of credit drawn on a local bank, valid for an initial period of one year, with automatic renewal in increments of one year until the permittee and the issuing bank are notified in writing of the acceptance of the street restoration and the closure of the permit.

(2) The director of the department of resilience and public works may establish written rules and procedures to accept a blanket surety in the form of a bond or letter of credit for cost of the restoration of the public right-of-way or easement for recurring permit applications for utility

companies and agencies that demonstrate a continuing large volume of permit applications. Additionally, any such blanket surety shall be subject to periodic review by the director of the department of resilience and public works and shall be required to be adjusted as necessary to sufficiently cover the costs of restoration assessed to each open permit and permit application.

(3) Upon receipt of the above-referenced surety, payment of the applicable permit fees, and completion of the appropriate application, the director of the department of resilience and public works shall deliver a permit for the work, and shall determine when the work is to be completed, including restoration of the street, right-of-way or easement in accordance with the standards and specifications of the department of resilience and public works. The individual, company, or agency shall thereafter, and not before, be authorized to proceed with the work and shall complete the same within the time prescribed by the permit and applicable permit conditions.

(4) Upon proper completion of the work by the permittee, as determined by the director of the department of resilience and public works in accordance with the requirements of this chapter and other applicable codes, including the above restoration, within the time prescribed by the permit, the director of the department of resilience and public works shall cause the amount of the surety to be returned to the person, company or agency to whom the permit was issued.

(5) In the event that the permitted person, company or agency fails or refuses to complete the work, including restoration, within the time specified by the permit and/or applicable permit conditions, all payments, including the above-referenced surety, shall be deemed forfeited. The director of the department of resilience and public works shall then be empowered to cause restoration to be done by contract, or by city forces, without regard to the status of the work sought to be done under the permit, and all costs thereof shall be payable by the permitted individual, company, or agency. If the required amount is not remitted within ten days of written notice by the director of the department of resilience and public works to the permitted individual, company, or agency, the forfeited monies shall be used to complete the work. Any costs in excess of the available forfeited monies shall constitute and become a lien against the private real property if owned by said permitted individual, company, or agency, which adjoins or abuts the street or right-of-way for which the permit was issued. Any forfeited monies remaining after restoration costs have been paid in full may be returned to the permittee if the reason for the delay has been due to causes beyond the control of the permittee. Additionally, the director of the department of resilience and public works may administratively establish and enforce written rules and procedures pertaining to the withholding of the issuance of new permits to any individual, company, or agency that fails or refuses to complete the restoration work and obtain from the department of resilience and public works a final inspection approval within the term of the previously issued excavation permit(s) to said individuals, company or agency.

(e) *Indemnity, hold harmless, and insurance.* It shall be a condition precedent to the issuance of any such permit that the applicant agree to indemnify, defend, and hold harmless the city, its officials, employees, agents, and, if applicable, its instrumentalities and each of them from and against all loss, cost, penalties, fines damages, claims of any nature, including expenses and attorneys' fees, and any and all liabilities by reason of injury to or death of any person, damage to, destruction, or loss to any property including the city, its instrumentalities, officials, employees, and agents arising out of or in con-

nection with the performance or non-performance of the services contemplated by this permit/agreement which is directly or indirectly caused, in whole or in part, by any act, omission, default, liability, or negligence, whether active or passive, of the applicant, its employees, agents, servants, or contractors, unless such act or omission is solely caused by the city, its instrumentalities, officials, employees, and agents. The applicant further agrees to indemnify, defend, and hold harmless the city, its instrumentalities, officials, employees, and agents against all liabilities which may be asserted by an employee or former employee of the applicant, or any of its contractors as provided above, for which the applicant's liability to such employee or former employee would otherwise be limited to payments under workers' compensation or similar laws. In addition, the applicant understands and agrees that except where caused by the negligence or misconduct of the city, its instrumentalities, officials, employees, or agents, the city shall not be liable for any loss, injury, or damage to any personal property or equipment of the applicant, its employees, agents, contractors, business licensees, or invitees placed on city property, and its instrumentalities, and shall be at the risk of the applicant thereof. The applicant shall be solely responsible for all activities and the installation and maintenance of traffic-control devices. The applicant shall ensure that adequate safety precautions are in effect at all times during the term of the permit. It shall be a further condition precedent to the issuance of any such permit for work to be performed in the public right-of-way that the permit holder(s) is/are jointly and severally responsible, at each permit holder's sole expense, for any damages regarding restoring the public right-of-way to its original condition before installation of facilities. The indemnification shall survive termination of this permit/agreement.

(1) *Non-governmental applicants:* Prior to the issuance of any such permit, the non-governmental applicant(s) shall submit to the city a certificate of insurance for each non-governmental applicant in an amount not less than $1,000,000.00 per occurrence, $2,000,000.00 aggregate, and any endorsements thereto, including, but not limited to, premises and operations liability, contingent and contractual exposures, XCU hazards, personal and advertising injury, products, and completed operations. In addition, the applicant hereby agrees to provide additional insurance requirements as required by the city, including but not limited to umbrella liability, or any additional requirements or endorsements as may be applicable, in connection with the scope of services contemplated by the permit/agreement. The certificate must reflect primary and noncontributory language and list the city as an additional insured. The certificate must also include coverage for all owned, hired, and non-owned vehicles with a combined single limit of $500,000.00 per accident also listing the city as an additional insured, and must further afford coverage for workers' compensation including waiver of subrogation subject to the statutory limits of the State of Florida. The insurance herein required shall remain in full force and effect during the entire term of the permit. Additionally, all such insurance for non-governmental applicant(s) shall be subject to annual review by the city's risk management department and the applicant shall be required to update as necessary to protect the city as set forth in this section.

All insurance policies required above shall be issued by companies authorized to do business under the laws of the State of Florida with the following qualifications:

The company must be rated no less than "A-" as to management and no less than Class "V" as to financial strength by the latest edition of Best's Insurance Guide published by A.M. Best Company, Oldwick New Jersey, or its equivalent subject to the approval of the city's department of risk management. Companies not meeting the above rating requirements shall submit proof of reinsurance from qualifying insurers having or exceeding the required rating criteria.

Certificates of insurance shall contain 30 days as to changes or modifications with notice to the certificate holder.

(2) *Governmental applicants:* Prior to the issuance of any permit, the governmental applicant(s) shall submit to the city a certificate of insurance or letter of self-insurance for each governmental applicant in accordance with and subject to the limitations as set forth in F.S. § 768.28.

(3) *Additional permit conditions:* It shall be a condition precedent to the issuance, to both governmental and non-governmental applicants, of any permit for work to be performed in the public right-of-way that the person(s) applying for such permit shall provide to the city's department of resilience and public works a surety in such amount(s) and such form(s) acceptable to the director of the department of resilience and public works to ensure that such work: (i) complies with applicable codes, (ii) is conducted and performed in a satisfactory, safe and professional manner, (iii) pertaining to the public right-of-way is restored or maintained as required by the circumstances and extent of the work under such permit and any continuing maintenance and restoration agreement. Furthermore, the permit holders are jointly and severally responsible, at each permit holder's expense, for any damages resulting from work performed or conducted under the permit and for any damages regarding restoring the public right-of-way to its original condition before installation of the facilities and for any damages regarding continuing maintenance of the public right-of-way.

(f) *Obstruction of the right-of-way.* A separate permit shall be required pursuant to section 54-3 for the permitted individual, company, or agency to obstruct or temporarily close any portion of the right-of-way. No person shall be allowed under a permit provided for in this section to excavate, dig up or obstruct more than two adjacent blocks at a time, and the work on one of such blocks shall be completed and the sidewalk and street pavement shall be placed in as good condition as existed prior to the work being commenced before such person to whom such permit has been granted by the city shall be allowed to begin work in a new block.

(g) *Supervision by the director of the department of resilience and public works.* All disturbances, digging up or excavation of streets, avenues, sidewalks, pavements, swales, or sidewalk pavements in the city shall be made under the supervision and direction of the director of the department of resilience and public works.

(Code 1967, §§ 54-27—54-31; Ord. No. 9740, § 1, 11-16-83; Code 1980, §§ 54-37—54-41; Ord. No. 12886, § 2, 2-8-07; Ord. No. 12977, § 3, 3-13-08; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13226, § 2, 11-18-10; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13884, § 2, 12-12-19; Ord. No. 13915, § 5, 9-24-20)

Editor's note—Ord. No. 13915, § 5, adopted September 24, 2020, changed the title of section 54-42 from "Excavations" to "Permit required for disturbing, cutting into, digging up, drilling, boring under, or excavating any public street, swale, or sidewalk; cost of restoration; obstruction of right-of-way." The historical notation has been preserved for reference purposes.

Sec. 54-43. Permit fees for right-of-way or street excavation, sidewalk repair, paving or resurfacing of roadway, parkway or shoulder area, building line and grade survey, sidewalk construction survey, driveway construction, utility placement; underground utility service connection excavation, groundwater monitoring wells; permit renewal; after-the-fact permit, and inspection/reinspection fees; waiver of fees.

(a) The permit fees to be charged by the department of resilience and public works for right-of-way or street excavation, sidewalk construction or repair, roadway/parkway/shoulder area paving or resurfacing, building line and grade or sidewalk construction survey, driveway construction, utility placement/replacement/repair/removal, underground utility service con-

nection excavation, groundwater monitoring wells installation/abandonment/reestablishment, permit renewals, after-the-fact permits, inspections or reinspections, and any other work that proposes to disturb, cut into, dig up, or excavate any public street, swale, or sidewalk, whether the same is paved or unpaved, or to cause the same to be done within the city are hereby fixed as follows, unless the requirement of obtaining a permit or the imposition of a fee is prohibited by F.S. § 337.401, as amended:

(1) A non-refundable application fee of $95.00 and a non-refundable right-of-way assessment inspection fee of $50.00 shall accompany each permit application to the department of resilience and public works to be retained by the city regardless of action taken in the granting or denial of the permit.

(2) Excavation permit:

a. 50 lineal feet or less . . $325.00

b. Each additional lineal foot $6.50

c. Point excavation, each excavation $295.00

(3) Sidewalk repair permit:

a. 50 linear feet or less . . $82.50

b. Each additional linear foot $1.65

(4) Sidewalk construction permit:

a. 50 linear feet or less . . $252.50

b. Each additional linear foot $5.05

(5) Paving or resurfacing of travel lanes, parkway, or shoulder area permit:

a. 50 linear feet or less . . $308.50

b. Each additional linear foot $6.10

(6) Line and grade (curb and gutter, sidewalk construction, and driveway approach) permit:

a. 50 linear feet or less . . $360.00

b. Each additional linear foot $7.20

(7) Driveway approach construction permit, each driveway . $115.00

(8) Utility permit:

a. Utility placement/replacement/repair/removal (poles, splice pits, bore pits, manholes, handholes, drainage catch basins/inlets, pedestals, vaults, cabinets, etc.):

1. First on a city block $295.00

2. Each additional on same block, same permit $29.50

b. Underground utility service connection from base building line to the utility located within the public right-of-way (water, sanitary sewer, gas, electric, telephone, cable television, communication):

1. Each connection . $295.00

c. Underground utility installation (watermain, sanitary sewer main, gas main, electric, telephone, cable television, communication, or stormwater):

1. 50 linear feet or less $325.00

2. Each additional linear foot $6.50

d. Soft dig utility locates, soil borings, soil/asphalt/concrete core samples, or any other minor point excavations or borings:

1. Each location $295.00

e. Groundwater monitoring well:

1. Each well $295.00

(9) Dewatering permit fees by days:

6 days or less $520.00

7—30 days $950.00

31—90 days $1,300.00

(10) Inspection fees:

a. Stormwater:

1. Stormwater inspection permit fee includes initial inspection, during the excavation process and final inspection of a proposed stormwater management system in the public right-of-way $395.00

2. Pipe/structure bedding and layout $190.00

3. SW System partial backfill and compaction .. $190.00

4. SW System final—Backfill, compaction, interior mud work, and pipe lamping $350.00

b. Dewatering:

1. Initial $320.00

2. Final $320.00

c. NPDES:

1. Field compliance check (proactive and reactive inspections)—0.5 up to 1 acre $2,500.00

2. Field compliance check (proactive and reactive inspections)—1 acre and above... $3,950.00

3. Final 0.5 up to 1 acre $625.00

4. Final 1 acre and above $875.00

d. Utility (water, gas, electric, telephone, communication, cable television, sanitary sewer):

1. Initial inspection $85.00

2. Utility structure placement $110.00

3. Utility installation temporary restoration $110.00

4. Utility restoration limits determination $110.00

5. Utility final restoration $300.00

e. Reinspection fees: When additional inspection is required for work previously inspected and rejected by the department of resilience and public works, a reinspection fee will be required for each reinspection: $195.00

(11) Permit renewal fees prior to expiration and reactivation fees of original permit:

Ninety-day extension of permit fee expiration date: $150.00

A new application and reactivation fee shall be required for expired permits at a

rate of 25 percent of the original permit fee, calculated based on the current fee schedule.

(12) *After-the-fact permit fee.* For any permit described in section 54-43, performed without the required permits and inspections, quadruple the amount of all permit fees, application fees and inspection fees as described in subsections (a)(1) through (a)(10) herein.

(13) A non-refundable fee of $425.00 shall accompany a plans revision after approval of initial plans. If the permit has been issued, a revision request must be submitted through the department of resilience and public works permit system. Plans or supporting materials clearly showing the proposed modifications shall be submitted.

(14) A non-refundable change of contractor fee of $120.00.

(15) All utility permits shall be closed upon completion of work and after all required inspections have been approved.

(b) Permit fees will be computed only for the primary item of work for which a permit is required. The fee collected will also cover items of work incidental to the primary item and all processing and inspection services rendered by the department of resilience and public works.

(c) Permit fees shall be paid in full upon completion of all reviews and prior to the issuance of the permit. The director of the department of resilience and public works may establish rules and procedures to allow billing for payment of permit fees on a monthly basis for recurring permit applications for utility companies and government agencies that demonstrate a continuing large volume of permit applications.

(d) With the exception of non-revenue generating government agencies, such as Miami-Dade County's Department of Transportation and Public Works, in accordance with sections 54-3 and 54-42 of the City Code, all permittees working in the public right-of-way must resolve all open violations, unpaid fines, and/or unpaid fees in order to apply for or receive any new permits, extensions or permit close-out.

(1) Any violation of this section shall be enforced pursuant to the provisions of chapter 2, article X of the City Code.

(e) Upon receipt of a written request from a non-revenue generating government agency, such as Miami-Dade County's Department of Transportation and Public Works, permit fees under this section may be waived, by the city manager or designee for roadway improvement projects that are not a component of, or ancillary to the construction, maintenance, repair, or restoration of revenue producing facilities in the public right-of-way.

(f) This section shall be annually reviewed by the city commission at the time of adoption of the budget.

(Code 1967, § 54-17; Ord. No. 9003, § 1, 10-17-79; Ord. No. 9513, § 1, 11-4-82; Ord. No. 10658, § 3, 10-12-89; Ord. No. 11112, § 2, 1-13-94; Code 1980, § 54-27; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13195, § 5, 9-27-10; Ord. No. 13267, § 2, 5-26-11; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13798, § 4, 10-25-18; Ord. No. 13915, § 5, 9-24-20; Ord. No. 14433, § 3, 1-8-26)

Sec. 54-44. Material for sidewalk construction.

All sidewalks constructed within the official base building and street lines in the city shall be constructed only of natural, uncolored, Portland cement concrete, in accordance with the standards and specifications; provided, however, that exception may be made as to the color or material used to construct sidewalks by the director of resilience and public works upon due consideration of all factors involved, and approval by such director of plans submitted by the owner or his/her representative.

(Code 1967, § 54-18; Code 1980, § 54-28; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-45. Type and specifications for street paving.

All future street paving on public rights-of-way in the city shall be of a long-life, hard-

surfaced type with sufficient base to insure lasting service and a minimum expense for maintenance. The resilience and public works department shall prepare specifications covering such types of long-life pavements and methods of constructing the same, and no permits shall be granted to anyone for street paving on public rights-of-way that will not fully comply with the latest specifications and methods of construction prescribed by the resilience and public works department.
(Code 1967, § 54-19; Code 1980, § 54-29; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-46. Agreement and bond as to right-of-way and subdivision improvements by persons submitting plats, replats, etc., to commission.

All persons submitting any proposed plat, replat, revised plat, amended plat, or resubdivision of any previous record plat or portion thereof of real estate in the city, to the city commission for its acceptance and conformation, are hereby required to accompany any such proposed plat with a suitable agreement entered into by such person with the director of the department of resilience and public works on behalf of the city, providing for the construction of any or all of the following improvements, as shall be specified by the department of resilience and public works in its engineering report on the proposed plat:

(1) The construction within the platted area of permanent-type street pavement, including grading and fill as required, sidewalk, curb and gutter, parkways, street lighting, stormwater systems, seawalls, permanent bulkheads, sanitary sewers, water mains and services in connection therewith, and other improvements where the proposed use and location make such improvements necessary.

(2) The construction of permanent-type bulkheads, seawalls, living shorelines, banks, berms, or any other appurtenant coastal infrastructure being constructed to protect the upland areas from tidal waters, storm surges, or any other sort of tidally-influenced water intrusion along the shoreline, canal, river embankment, or harbor line of any watercourse contiguous to the area platted, as follows:

a. Permanent-type bulkheads, seawalls, living shorelines, or other shoreline protection structures or elements as defined in section 29-81 of the City Code shall be constructed to a minimum elevation of six feet NAVD 88 along all tidally-influenced areas as the same is defined in section 29-81 of the City Code except for those waterfront properties fronting the Miami River and its tributaries which must be constructed to a minimum elevation of four feet NAVD 88. All such protective structures/elements must be designed and built in a substantially impermeable manner, certified/signed and sealed by a civil/structural engineer registered in the State of Florida, and provided with the appropriate modification details to be capable of being raised to a minimum of two feet above their initial designed and constructed

elevation to mitigate high tide flooding associated with realized and additional sea level rise through the year 2070 as well as appropriate modification details, to include load calculations, demonstrating the capability of being raised a minimum of two feet above the minimal elevations. All such structures must be designed and constructed in accordance with the department of resilience and public works' design and construction standards.

b. The filling of land within any platted area contiguous to Biscayne Bay and all new or future islands or enlarged existing islands in Biscayne Bay must be constructed to a minimum, settled elevation of six feet NAVD 88.

(3) Adequate drainage by grading or filling of the land within the platted area to the level of the street grades established by the department of resilience and public works or the flood grade established and recorded on maps of Miami-Dade County, whichever is higher; provided that swale areas shall be used at the rear of lots when the nature of drainage conditions make them necessary for proper seepage of water in the substrata. Where fill is required, the fill material shall not contain any rubbish, tree stumps, debris, muck or other objectionable material. In development projects where drainfields may be required, the fill material must also be sufficiently permeable to meet standard percolation test requirements.

Areas which will become public rights-of-way shall contain fill material which conforms to the standard specifications of the city for the construction of streets.

Upon completion of the improvements, the performance bond, irrevocable letter of credit, or cashier's check hereinafter provided for shall not be released unless the permanent reference monuments indicated on the plat have been placed on the ground at the expense of the owner of the platted land and verified by the department of resilience and public works.

Street improvements shall be constructed in all dedicated rights-of-way lying within or bordering on the platted area, in accordance with plans, specifications and grades approved by the director of resilience and public works, without regard to the fact that parts or all of the rights-of-way may have been dedicated heretofore but either have not been improved or contain improvements which do not conform with current standard specifications. For the purpose of determining the improvements to be made in dedicated street rights-of-way, all arterial streets, wherever located, and all other streets except those in T-3 transect zones, shall be considered primary streets. All improvements, except water mains and services in connection therewith, shall be constructed in accordance with the city's standard specifications and established street grades and at the expense of the owners of the land platted. Water mains and services in connection therewith shall be constructed in accordance with the approved plans and shall be paid for by the owner of the land platted, in accordance with the standards of the water and sewer department then in effect. The time for the performance of the agreement may be extended by the director of resilience and public works. Such agreement shall be accompanied by good and sufficient performance bond or irrevocable letter of credit in the amount of 115 percent of the total project cost of the improvements, which estimated cost shall have been first approved by the director of resilience and public works. Acceptance and confirmation of the plat by resolution of the commission shall constitute acceptance of the agreement and bond or irrevocable letter of credit. The conditions of the performance bond or irrevocable letter of credit shall be such that, if the principals thereto shall fully and faithfully perform the work in accordance with the terms of the agree-

ment therefor, then the performance bond or irrevocable letter of credit shall be considered complied with; otherwise, the surety thereon, within 30 days after receipt of written notice from the director of the resilience and public works department of the failure or neglect of the principals to perform the agreement, may construct or cause to be constructed the improvements set forth in the agreement; provided, further, that the director of resilience and public works may require the surety to pay to the city the sum estimated to construct or complete the improvements set forth in the agreement, such sum to be estimated by the resilience and public works department, and the surety shall pay to the city any engineering, indirect and inspection costs not to exceed 32 percent thereof, such 32 percent not to include attorneys' fees, such attorneys' fees to be in addition to the 32 percent, which the city may sustain on account of the failure of the principals to carry out and execute all of the provisions of the agreement; provided, further, that the city commission shall have the right to construct or cause to be constructed, after public advertisement and receipt of bids, the improvements provided for in the agreement, and in the event that the city commission exercises such right, the principals and the surety shall be jointly and severally liable to pay the city the final cost of the improvements, together with any engineering, indirect and inspection costs, not to exceed 32 percent thereof, such 32 percent not to include attorneys' fees, such attorneys' fees to be in addition to the 32 percent, which the city may sustain on account of the failure of the principals to carry out and execute the provisions of the agreement. Upon completion of construction of the improvements by the principals or the surety, or payment to the city of the estimated or actual cost thereof, the director of resilience and public works and the city manager shall release the performance bond or irrevocable letter of credit, provided that the permanent reference monuments have been properly placed as hereinabove provided.

A cashier's check in the amount of 115 percent of the total project cost of the improvements may be deposited with the city in lieu of the performance bond or irrevocable letter of credit, the conditions of the deposit thereof to be such that if the depositor shall fully and faithfully perform the work in accordance with the terms of the agreement, the amount of the check shall be returned to the depositor; otherwise, in the event of the failure or neglect of the depositor to perform the agreement, the check shall be applied by the city to the cost of constructing or completing the improvements, including any engineering, inspection, and/or direct and indirect costs, costs not to exceed 32 percent thereof, such percent not to include reasonable attorneys' fees, such attorneys' fees to be in addition to the 32 percent which the city may sustain on account of the failure of the depositor to carry out and execute all of the provisions of the agreement.

The city manager and the director of the department of resilience and public works are hereby authorized and directed to withhold from submission to the commission any proposed plat, replat, revised plat, amended plat, or resubdivision of any previous record plat or portion thereof, unless the hereinbefore-mentioned agreement and performance bond, irrevocable letter of credit or cashier's check accompany the proposed plat.

(5) In all dedicated rights-of-way, the acceptance of the plat or replat shall be conditioned upon adequate landscaping as may be required by the director of planning upon consultation and coordination with all departments concerned. The landscaping shall include, but not be limited to, lawn, shrubs, bushes, hedges and trees. The director of planning shall not recommend the acceptance of any plat or replat unless the bond referred to

herein contains the condition that such landscaping shall be provided for as required by the director of planning upon consultation and coordination with all departments concerned. Such landscaping will be designed to protect and preserve the appearance and character of the surrounding neighborhood through the screening effects and aesthetic quality of such landscaping.

(6) Any surety required herein shall be waived for governmental entities and agencies.

(Code 1967, § 54-20; Code 1980, § 54-30; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13919, § 2, 9-24-20; Ord. No. 13980, § 4, 3-25-21)

Sec. 54-47. Approval of location and construction of driveways, etc.

The director of resilience and public works is hereby authorized and empowered to approve the location and construction of driveways, driveins and any other means of vehicular ingress and egress to and from the public rights-of-way, prior to the issuance of permits for the construction of such facilities that will require such means of ingress and egress, such as banks, churches, factories, garages, hospitals, hotels, motels, parking lots, theaters and any other private or public commercial, educational, industrial or recreational buildings, establishments, areas and installations that may generate or cause to generate additional or hazardous traffic movements in the public rights-of-way.

(Code 1967, § 54-21; Code 1980, § 54-31; Ord. No. 13792, § 1, 10-11-18)

Case law reference—The city is justified in denying ingress and egress across a sidewalk to a parking lot located near a fire station, such parking lot having other means of ingress and egress, when the public safety and welfare require that traffic congestion be minimized near the fire station. City of Miami v. Girtman, 104 So. 2d 62.

Sec. 54-48. Inspection of work.

For the purposes of inspection of sidewalk, curb, or curb and gutter work, the director of resilience and public works shall have free access to materials and work at all times, and all work done or materials furnished are subject to his/her acceptance. An inspector shall be present at the work as far as practicable during its progress. The duties of the inspector are to see that the construction conforms to the provisions of this article and to the grades and lines given by the director of resilience and public works, but his/her decisions are subject to the approval of the director of resilience and public works. Whenever, in the judgment of the inspector, the work or materials are not in accordance with the provisions of this article, he/she shall have power to stop the work, which shall not be resumed until the director of resilience and public works has rendered his/her decision upon the matter in dispute. If, at any time before final acceptance or approval of the work by the director, defects are found, the contractor is forthwith to make good these defects, notwithstanding previous inspection of such work, whether such defects may have been overlooked by the director, or may have been caused by damage from any source.

(Code 1967, § 54-22; Code 1980, § 54-32; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-49. Obstructing street with materials.

Materials such as are to be used in the work or for construction purposes may be stored in the right-of-way by the contractor only upon approval of the resilience and public works department if no suitable alternative exists and obtaining a permit pursuant to section 54-3. All gutters, drains, fire hydrants, roadways and private driveways within the block in which work is being done are to be kept open by the contractor for their intended use. As soon as the work is finished or the permit expires, whichever occurs first, all accumulated rubbish or surplus materials, forms, tools and equipment shall be promptly removed from the right-of-way by the contractor.

(Code 1967, § 54-23; Code 1980, § 54-33; Ord. No. 12977, § 3, 3-13-08; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-50. Reports of approval.

After final acceptance of the work, a written report of approval shall be furnished by the director of resilience and public works to the effect that the work has been done in accordance

with the provisions of this article, and in conformity with the established city lines and grades, and no sidewalk, curb, or curb and gutter work shall be deemed to comply with this article unless such written report of approval has been furnished.
(Code 1967, § 54-24; Code 1980, § 54-34; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-51. Grades for street utilities, trees, etc.

Any person using the public streets or alleys for placing or changing any pipes, railways, hydrants, streetlamps, shade trees or other improvements, under any contract or agreement with the city or otherwise, shall first obtain the proper street grade and lines from the director of resilience and public works, at the expense of the person doing the work, and shall conform to such grades and lines when given.
(Code 1967, § 54-25; Code 1980, § 54-35; Ord. No. 13792, § 1, 10-11-18)

City Code cross reference—Preservation of trees on public property, § 17-71 et seq.

Sec. 54-52. Sewers, conduits, etc., to be laid before city paves street.

When any street, alley or public place within the city has been ordered paved and otherwise permanently improved, it shall be the duty of all individuals, organizations and public service corporations legally occupying such street, alley or public place to proceed without delay to order the necessary materials for the laying of sewers, water and gas mains, telephone or electrical conduits, with connections and services to the same, and to proceed with reasonable expedition to excavate and install the same.
(Code 1967, § 54-26; Code 1980, § 54-36)

Sec. 54-53. Closing of streets during progress of work.

When any work is being done or is to be done under the direction of the city authorities on any street, avenue or alley in the city, such street, avenue or alley, or any part thereof, may be closed to the passage of vehicles or pedestrians while such work is in progress only upon approval of the resilience and public works department and obtaining a permit pursuant to section 54-3.
(Code 1967, § 54-32; Code 1980, § 54-42; Ord. No. 12977, § 3, 3-13-08; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-54. Allowing sidewalks, swales and curbs to remain in dangerous condition.

(a) It shall be unlawful for any owner, occupant or agent of any property to which a sidewalk, swale or curb is contiguous, to place or remove any materials or allow overgrowth of trees, shrubs and plants upon such sidewalk, sale or curb as to be dangerous or detrimental to the general public as determined by the director of resilience and public works.

(b) It shall be unlawful for any owner, occupant or agent of any property to which a swale is contiguous, to pave or install any materials, trees, shrubs or plants, except sod, within the swale without first having obtained a permit from the resilience and public works department. The director of the resilience and public works department shall promulgate the rules and regulations establishing the standards pertaining to the construction, improvement and repair of swales.
(Code 1967, § 54-33; Code 1980, § 54-43; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13792, § 1, 10-11-18)

Editor's note—Ord. No. 13087, § 2, adopted Sept. 10, 2009, changed the title of § 54-54 from "Allowing sidewalks to remain in dangerous condition" to "Allowing sidewalks, swales and curbs to remain in dangerous condition." The historical notation has been preserved for reference purposes.

Sec. 54-55. Notice to repair sidewalks, driving lanes, parking lanes, swales and curbs.

(a) An abutting property owner is responsible for the repair or replacement of the existing sidewalk, driving lanes, parking lanes, swales, curbs, and gutter (hereinafter "street improvements") where damage is caused by the act or inaction of the abutting owner, its agent or contractor, or where the damage is the result of tree roots from trees located on the abutting private property.

(b) In case the surface of any walk or sidewalk in the city becomes so uneven as to make walking over it dangerous or detrimental, or if the driving lanes, parking lanes, swales or curbing becomes decayed, worn out or broken caused by the act or inaction of the abutting property owner, its agent or contractor, it shall be the duty of the director of resilience and public works to notify the owner, and if the owner cannot be served, to notify the occupant, and if there is no occupant, then to notify the agent of the owner of the property to which the street improvements are contiguous, to repair such street improvements. Notice to repair or replace such street improvements shall be in writing; shall allow such owner agent or occupant 30 days in which to repair such street improvements; shall describe the street improvements to be repaired; shall set forth that such street improvements shall be repaired, if surface work is to be done, with the same material as such street improvements were originally constructed; and shall be served, returned and filed in the office of the director of resilience and public works.

(c) Enforcement of this section shall be pursuant to chapter 2, article X, of the City Code. Nothing in this section shall be deemed to limit the city from enforcing its ordinance or Code by any other means authorized by law.

(Code 1967, § 54-34; Code 1980, § 54-44; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13360, § 2, 1-24-13; Ord. No. 13792, § 1, 10-11-18)

Editor's note—Ord. No. 13360, § 2, adopted January 24, 2013, changed the title of section 54-55 from "Notice to repair sidewalks and curbs" to "Notice to repair sidewalks, driving lanes, parking lanes, swales and curbs." The historical notation has been preserved for reference purposes.

Sec. 54-56. Construction, reconstruction or repair of street improvements required when adjacent property is improved by construction of $100,000.00 or more in value or exceeding 1,000 square feet in floor area; restriction.

(a) Sidewalks, curbs or gutters, pavement, modifications to existing drainage, sodding, and any other right-of-way improvements deemed necessary by the director of resilience and public works (hereinafter "street improvements") shall be constructed, reconstructed or repaired, except as provided below, when any adjacent property located within the corporate limits is improved, altered or modified by the construction, reconstruction, addition, or change of use of any type of building, structure or parking facility amounting to $100,000.00 or more in total value, or when such building, structure or parking facility to be constructed, reconstructed or when there is an addition or change of use which is 1,000 square feet or more in floor area, for which a permit is required.

(b) Except for properties adjacent to a right-of-way subject to a street master plan as defined in section 54-60 of the City Code for which payment into the enhanced right-of-way trust fund in lieu of construction of street improvements is required, the director of the resilience and public works department of the city shall notify the applicant/qualifier for the permit by noting on the approved plans that the street improvements adjacent to the lot or parcel to be improved, altered or modified shall be constructed, reconstructed or repaired. Said street improvements may extend to the centerline of the street and shall be constructed within or adjacent to the established base building lines to the proper line and grade as determined by the resilience and public works department on all roadways within the corporate limits. In the event that the surface of any existing street improvements is uneven, cracked, broken or marred, these portions of the street improvements shall be replaced by the applicant/qualifier.

(c) The magnitude of the required street improvements shall not exceed ten percent of the total value of the permitted improvements, alterations or modifications on said adjacent property. For existing single-family residences, the required street improvements shall not exceed five percent of the total value of the permitted improvements, alterations or modifications on said adjacent property. For properties adjacent to a right-of-way subject to a street master plan for which payment into the enhanced right-of-way trust fund in lieu of construction of street improvements is required, the cost of the improvements otherwise required to be constructed by the

property owner absent the property's inclusion in a street master plan shall be calculated by the department of resilience and public works. For the purposes of payment into the enhanced right-of-way trust fund, this amount may not exceed those limitations found in this subsection for the percentage of magnitude of street improvements. The amount to be paid into the trust fund shall be less any improvements required by the director of resilience and public works to be constructed by the property owner to remedy life-safety issues and comply with the Americans with Disabilities Act of 1990, as amended.

(d) The director of the resilience and public works department of the city is hereby directed to withhold or withdraw the certificates of occupancy or use until such street improvements are properly constructed, reconstructed or repaired as provided in subsections (a) and (b) of this section.

(e) The director of the resilience and public works department is hereby authorized to approve deferment of construction and allow variations and deviations from the above requirements of constructing, reconstructing or repairing said street improvements, as the director determines necessary, based on the conditions of the terrain and the existing sidewalk, curbs and/or gutters, and pavement immediately adjacent to the property involved; provided that the property owner furnishes the city with a properly executed covenant to run with the land in which the property owner agrees to construct or pay the cost of constructing the street improvements when such construction is required by the department of resilience and public works.

(f) In the event that the property owner fails to construct, reconstruct or repair the street improvements as required by the resilience and public works department, the director of the resilience and public works department shall notify the applicant in writing that the applicant has 30 days in which to construct said street improvements. If the street improvements are not constructed within the 30-day period, the director of the resilience and public works department is authorized to cause the construction of said street improvements by either city personnel or by award of a contract under the provisions of the City Code. An accounting of the total cost of said street improvements, certified by the director of the resilience and public works department, shall be recorded in the public records of Miami-Dade County and thereafter shall constitute a lien against the property involved. The total cost shall include the construction cost, a 16-percent fee for engineering services for the resilience and public works department, and any incidental expenses.

(g) The city manager may grant credits for certain fees required under chapter 2, chapter 54, chapter 55, and chapter 62 of the City Code for developments or improvements that were requested by the city, with review and approval from the applicable city departments, for completed and/or future street improvements beyond that required pursuant to section 54-56 of the City Code and for which a certificate of occupancy was issued on or after January 1, 2019. The maximum credit shall be the amount of actual costs for completed street improvements beyond the improvements required pursuant to section 54-56 of the City Code as determined by a general contractor and certified by professional engineer licensed under F.S. ch. 471, and submitted by the applicant and reviewed and approved by the city department that requested the work. The applicant who completed the additional street improvements beyond the requirements of section 54-56 of the City Code shall be granted a non-transferrable credit towards application and permit fees related to resilience and public works required or imposed pursuant to chapter 2, 54, 55, or 62 of the City Code for properties owned by the applicant or subsequent development(s) proposed by the applicant and/or its affiliated entity(s). Any credit(s) authorized by this subsection shall expire unless they are claimed and used within ten calendar years of issuance of a certificate of occupancy or temporary certificate of occupancy, whichever is earlier, for the development associated with the improvements.

(Code 1967, § 54-34; Ord. No. 9871, § 1, 7-31-84; Ord. No. 10279, § 1, 6-11-87; Code 1980, § 54-45; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13398, § 2, 7-11-13; Ord. No. 13792, § 1, 10-11-18; Ord.

No. 13798, § 4, 10-25-18; Ord. No. 13916, § 2, 9-24-20; Ord. No. 13948, § 2, 12-10-20; Ord. No. 14040, § 2, 12-9-21)

Editor's note—Ord. No. 13087, § 2, adopted Sept. 10, 2009, changed the title of § 54-56 from "Construction, reconstruction or repair of street improvements required when property is improved by construction of $25,000.00 or more in value or exceeding 650 square feet in floor area" to "Construction, reconstruction or repair of street improvements required when adjacent property is improved by construction of $100,000.00 or more in value or exceeding 1,000 square feet in floor area; restriction." The historical notation has been preserved for reference purposes.

Sec. 54-57. Obstructing streets or sidewalks with trash, lumber, etc.

No person shall place any trash, lumber, wood, glass or other obstruction in any public street, lane, alley or way, or on any sidewalk. Any person who shall place any such obstruction in any street, lane, alley or way, or on any sidewalk, and fail to remove the same within six hours after being notified by the chief of police or any police officer, or who, after having removed the obstruction, shall replace it or place similar obstructions shall, on conviction, be punished as provided in section 1-13. Any person actually building or about to build or repair any buildings, or construct or repair any sewer or line of water or gas piping, may be allowed by the resilience and public works department to temporarily store all such materials as may be necessary within the street or sidewalk adjoining the place where such building or repairing is to be done, if no suitable alternative exists and only upon obtaining a separate permit pursuant to section 54-3.

(Code 1967, § 54-35; Code 1980, § 54-46; Ord. No. 12977, § 3, 3-13-08; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-58. Right-of-way dedication required prior to issuance of permits.

(a) Whenever the owner(s) of the property within the city wishes to construct a new building or structure, or to change the use of an existing building or structure, or expand an existing structure, and the director of the department of resilience and public works determines that there is a rational and substantial connection between the burdens imposed by the proposed development or the change of use on the city services, including adjacent streets and the dedication of the portion of the applicant's lot, tract or parcel of land lying within the city's officially established right-of-way to the public for street purposes, and that the dedication of the officially established right-of-way is reasonably necessary to mitigate the burdens that the proposed development or change of use places on the adjacent streets, no permit for construction of a new building or structure or change of use or expansion of an existing structure shall be issued on any lot, tract or parcel of land until all portions of the applicant's lot, tract or parcel lying within the city's officially established right-of-way have been dedicated to the public for street purposes. Additionally, right-of-way lines at street intersections shall be rounded with a radius of 25 feet. The area external to the 25-foot radius shall also be dedicated to the public for street purposes prior to the issuance of permits described above.

(b) Upon written request by applicant for a determination that the proposed construction of a new building or structure or change of use, or expansion will not burden the city services, including adjacent streets, director shall have the authority to waive the required dedication or, if he/she does not so waive the dedication, director shall convene, within 30 days after receipt of written request from applicant, a meeting of a review committee which shall be comprised of the director of the department of resilience and public works, the director of the department of planning, building and zoning and an assistant city manager. The applicant shall have the right to present its position to the review committee which shall review director's refusal to grant the waiver of dedication. The committee, acting by majority vote, shall either affirm the director's refusal or reverse its refusal and grant the requested waiver of dedication. The committee shall, in determining whether director's refusal was reasonable, determine whether the proposed construction of a new building or structure or change of use or expansion will burden city services, including the adjacent street(s). The

decision of this committee, which shall be rendered within 30 days after conclusion of the hearing, shall be final.
(Ord. No. 9966, § 1, 3-21-85; Ord. No. 10279, § 2, 6-11-87; Ord. No. 10898, § 1, 7-11-91; Code 1980, § 54-47; Ord. No. 13308, § 2, 2-9-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13916, § 2, 9-24-20)

Sec. 54-59. Enhanced right-of-way improvement trust fund—Intent.

It is intended that the "Enhanced Right-of-Way Improvement Trust Fund" ("trust fund") be established to facilitate the implementation of approved street master plans, streetscape master plans as the term is defined in Miami 21, and other right-of-way improvements that may include non-standard materials by requiring those adjacent property owners required to make improvements pursuant to section 54-56 of the City Code pay the equivalent of such cost into the trust fund in lieu of construction in order to avoid the piecemeal reconstruction of those rights-of-way identified in such master plans. It is further intended that the cost of payment into the trust fund by the adjacent property owner not exceed the cost had the property owner undertaken such construction of required right-of-way improvements.
(Ord. No. 13948, § 2, 12-10-20)

Sec. 54-60. Established.

(a) The trust fund is hereby established into which funds shall be deposited and from which funds shall be withdrawn pursuant to this article to pay for the procurement of right-of-way construction or improvement of rights-of-way as identified within an area with an adopted street master plan or streetscape master plan, as the term is defined in Miami 21, in the following manner:

(1) Not less than 80 percent of the trust fund shall be expended on construction of new right-of-way improvements or maintenance of enhanced improvements constructed pursuant to a street master plan during each fiscal year within an adopted street master plan area and attributable to the properties that contributed to the trust fund from that street master plan area. However, if the city manager or his/her designee determines that there are insufficient reserves in the trust fund to implement right-of-way enhancements, funds may be carried over to the next fiscal year.

(2) Not more than 20 percent of the trust fund shall be expended on activities directly related to improvement of existing right-of-way in the street master plan area in which it was collected during each fiscal year, including, but not limited to, survey work, site inventory and analysis, civil engineering and landscape architectural design services, inspection services for new plantings, and other related project expenses.

(b) Expenditures undertaken pursuant to this article may be made by the city manager or his/her designee. All trust fund expenditures made by the city manager shall only be made after a recommendation is made by the directors of the departments of planning and resilience and public works as to such expenditures and any business improvement district in the area where the expenditure is being made, if applicable. Notwithstanding the foregoing, the city commission may, by unanimous vote, approve or expedite any expenditure permitted by this article.

No expenditure may be made for new right-of-way improvements until either (1) an executed covenant to run with the land in which the property owner(s) agrees to maintain the right-of-way is authorized by the director of resilience and public works, in a form acceptable to the city attorney, or (2) another governmental entity executes an agreement authorized by the director of resilience and public works, in a form acceptable to the city attorney, agreeing to maintain the non-standard improvements.

(c) It is the intent of this article that prior to the expenditure of funds for the above listed items by the city manager, that due consideration is given to written recommendations from the directors of the departments of planning and resilience and public works.

(d) Any unused monies in the trust fund may be returned to the property owner upon request if the proposed improvements are not constructed within ten years of contribution into the trust fund; provided, however, that for this purpose, the expenditure and appropriation of trust fund payments shall be deemed to occur in the same sequential order as the collection of the same on a first payment in, first payment out basis. For the purpose of such return of unused monies, the property owner shall mean the property owner at the time of the original payment regardless of current ownership of the property.
(Ord. No. 13948, § 2, 12-10-20)

Sec. 54-61. Trust fund payments.

Payments into the trust fund shall include, but shall not be limited to, monies collected pursuant to the following adopted street master plans:

Neighborhood Revitalization District-1 Wynwood
(Ord. No. 13948, § 2, 12-10-20)

Sec. 54-62. Financial report.

(a) Funds deposited in the trust fund shall be made available to the city manager for implementation purposes and all disbursals of trust fund monies shall be made by the city manager or his/her designee in accordance with this article and after due consideration is given to the written recommendations of the directors of the departments of planning and resilience and public works.

(b) A financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the city manager or his/her designee and presented to the city commission.
(Ord. No. 13948, § 2, 12-10-20)

Sec. 54-63. Recovery agreement for construction of master planned street.

(a) Upon recommendation by the director of resilience and public works to the city manager, an agreement, in a form acceptable to the city attorney, may be entered into between the owner(s) of a property adjacent to a right-of-way subject to a street master plan and the city to provide for the complete reconstruction of such street by the property owner(s) with repayment from the trust fund and other legally available sources as provided herein and subject to the following:

(1) Payments from the trust fund shall be limited as follows:

a. That which is currently deposited in the trust fund and attributable to deposits from property owners within the same street master plan area where the property adjacent to such right-of-way lies; and

b. That which is deposited in the trust fund subsequent to the execution of the agreement from other property owners within the same street master plan area where the property adjacent to such right-of-way lies.

(2) Payments from all other legally available sources shall be limited as follows:

a. Those legally available funds currently budgeted and allocated for the specific right-of-way or a project that includes the right-of-way; and

b. No payment obligating the expenditure of such funds beyond the current budget year may be in such agreement unless the same is approved by the city commission.

(Ord. No. 13948, § 2, 12-10-20)

Secs. 54-64—54-85. Reserved.

ARTICLE III. RESERVED*

Secs. 54-86—54-120. Reserved.

*__Editor's note—__Ord. No. 12888, § 2, adopted February 8, 2007, repealed article III in its entirety, which pertained to bus benches, and derived from the Code of 1967, §§ 54-36—54-37, 54-39, 54-41, 54-43—54-46; Ord. No. 8843, § 1, adopted September 14, 1978; Ord. No. 9190, § 1, adopted October 30, 1980; Ord. No. 10402, § 1, adopted March 24, 1988; the Code of 1980, § 54-56—54-59, 54-61—54-64, and Ord. No. 12178, § 1, adopted January 10, 2002.

ARTICLE IV. NAMING OF STREETS AND NUMBERING OF BUILDINGS

Sec. 54-121. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Avenues: All through streets running north and south shall be designated as "avenues."

Base thoroughfares: Those certain streets named Miami Avenue and Flagler Street shall be deemed the "base thoroughfares," from which all street names and house numbers shall have their numerical beginning, running northerly and southerly, easterly and westerly.

Courts: All thoroughfares not deemed through streets and located and running next parallel to an avenue shall be designated as "courts."

Lanes: All thoroughfares not deemed through streets and located and running next parallel to a terrace shall be designated as "lanes."

Number unit: Each 12½ feet of every lot shall be deemed a "number unit."

Places: All thoroughfares not deemed through streets and located and running next parallel to a court shall be designated as "places."

Roads: All thoroughfares running diagonally and not a continuation of a north and south or east and west thoroughfare shall be designated as "roads."

Square: The side of a city block lying between two through streets shall be deemed a "square."

Streets: All through streets running east and west shall be designated as "streets."

Terraces: All thoroughfares not deemed through streets and located and running next parallel to a street shall be designated as "terraces."

Through streets: All thoroughfares making a continuous intersection across and extending for one or more squares on both sides of Flagler Street or Miami Avenue shall be deemed "through streets."

(Code 1967, § 54-50; Code 1980, § 54-75)

Sec. 54-122. Applicability of article.

All streets shall be named and designated and all buildings numbered as provided in this article. (Code 1967, § 54-51; Code 1980, § 54-76)

Sec. 54-123. Sectional divisions.

The base thoroughfares shall be deemed to divide the city into four sections—northeast, northwest, southeast and southwest:

(1) *Northeast.* That portion of the city lying north of Flagler Street and east of Miami Avenue shall be indicated as the northeast, and all thoroughfares in such section shall have added the letters "N.E." to their name and designation.

(2) *Northwest.* That portion of the city lying north of Flagler Street and west of Miami Avenue shall be indicated as the northwest, and all thoroughfares in such section shall have added the letters "N.W." to their name and designation.

(3) *Southeast.* That portion of the city lying south of Flagler Street and east of Miami Avenue shall be indicated as the southeast, and all thoroughfares in such section shall have added the letters "S.E." to their name and designation.

(4) *Southwest.* That portion of the city lying south of Flagler Street and west of Miami Avenue shall be indicated as the southwest, and all thoroughfares in such section shall have added the letters "S.W." to their names and designations.

(Code 1967, § 54-52; Code 1980, § 54-77)

Sec. 54-124. Names of avenues.

Avenues shall derive their names as follows:

(1) Each avenue lying east of the base thoroughfare, Miami Avenue, shall bear the numerical name indicating the number of squares easterly that it may be removed from such base thoroughfare. (Example: Old Avenue C, to be known as First Avenue East.)

(2) Each avenue lying west of the base thoroughfare, Miami Avenue, shall bear

the numerical name indicating the number of squares westerly that it may be removed from such base thoroughfare. (Example: Old Avenue E, to be known as First Avenue West.)

(3) The thoroughfare formerly known as Southwest 1 Avenue between Southwest 13 Street and Southwest 15 Road shall be called Brickell Way.

(4) The thoroughfare formerly known as Southeast 1st Avenue between Southeast 8th Street and Southeast 12th Street shall be called Brickell Plaza.

(Code 1967, § 54-53; Code 1980, § 54-78; Ord. No. 11720, § 2, 11-17-98; Ord. No. 12755, § 2, 2-9-06)

Sec. 54-125. Names of streets.

Streets shall derive their names as follows:

(1) Each street lying north of the base thoroughfare, Flagler Street, shall bear the name indicating the number of squares that such street may be removed from such base thoroughfare. (Example: Old 11th Street, to be known as First Street North.)

(2) Each street lying south of the base thoroughfare, Flagler Street, shall bear the numerical name indicating the number of squares that such street may be removed from such base thoroughfare. (Example: Old 13th Street, to be known as First Street South.)

(3) The thoroughfare formerly known as Southwest 23rd Avenue between Southwest 28th Street and South Dixie Highway shall be called Kirk Street.

(4) The thoroughfare formerly known as Southwest 24th Avenue between Southwest 28th Street and South Dixie Highway shall be called Calusa Street.

(5) The thoroughfare formerly known as Southwest 28th Street between Southwest 22nd Avenue and Southwest 26th Avenue shall be called Overbrook Street.

(6) The thoroughfare formerly known as Southwest 27th Way between Southwest 22nd Avenue and Southwest 23rd Avenue shall be called Tequesta Way.

(Code 1967, § 54-54; Code 1980, § 54-79; Ord. No. 13244, § 2, 1-13-11)

Sec. 54-126. Names of terraces.

Terraces shall derive their names as follows:

(1) Each terrace lying north of the base thoroughfare, Flagler Street, shall derive its name from the next southerly street.

(2) Each terrace lying south of the base thoroughfare, Flagler Street, shall derive its name from the next northerly street.

(3) The thoroughfare formerly known as Southwest 27th Terrace between Southwest 22nd Avenue and South Dixie Highway shall be called Secoffee Terrace.

(Code 1967, § 54-55; Code 1980, § 54-80; Ord. No. 13244, § 2, 1-13-11)

Sec. 54-127. Names of lanes.

Lanes shall derive their names as follows:

(1) Each lane lying north of the base thoroughfare, Flagler Street, shall derive its name from the next southerly street.

(2) Each lane lying south of the base thoroughfare, Flagler Street, shall derive its name from the next northerly street.

(3) The thoroughfare formerly known as Southwest 27th Lane between Southwest 22nd Avenue and Southwest 26th Avenue shall be called Tequesta Lane.

(Code 1967, § 54-56; Code 1980, § 54-81; Ord. No. 13244, § 2, 1-13-11)

Sec. 54-128. Names of courts.

Courts shall derive their names as follows:

(1) Each court lying east of the base thoroughfare, Miami Avenue, shall derive its name from the next westerly avenue.

(2) Each court lying west of the base thoroughfare, Miami Avenue, shall derive its name from the next easterly avenue.

(Code 1967, § 54-57; Code 1980, § 54-82)

Sec. 54-129. Names of places.

Places shall derive their names as follows:

(1) Each place lying east of the base thoroughfare, Miami Avenue, shall derive its name from the next westerly avenue.

(2) Each place lying west of the base thoroughfare, Miami Avenue, shall derive its name from the next easterly avenue.

(Code 1967, § 54-58; Code 1980, § 54-83)

Sec. 54-130. Names of drives and roads.

(a) The thoroughfares now known as North River Drive and South River Drive shall continue to be called North River Drive and South River Drive.

(b) The thoroughfares lying and being next adjoining Biscayne Bay between Southeast 8th Street and Southeast 15th Road shall be called Brickell Bay Drive.

(c) The thoroughfare formerly known as Southwest 15th Road between Southwest 11th Street and Brickell Avenue shall be called Broadway.

(d) All roads shall derive their names from the streets or avenues at which they shall commence, except as otherwise named in this section.

(Code 1967, § 54-59; Code 1980, § 54-84; Ord. No. 11404, § 2, 10-10-96; Ord. No. 12624, § 2, 12-9-04)

Sec. 54-131. Numbering system.

The numbering of all buildings shall be in conformity with the following system:

(1) The so-called Knowlton Plat of the city, recorded in plat book B at page 41 of the public records of the county and all subdivisions and additions to the city approved or recorded in the public records of the county shall constitute the basis for naming and numbering under this article.

(2) All numbering of number units shall begin from the base thoroughfares, the north and east sides of the streets having the odd numbers and the south and west sides having the even numbers.

(3) The numbers of each number unit in a square shall increase in arithmetical progression of two as the number units recede from the base thoroughfare.

(4) The numbers of the number units in the first squares adjoining a base thoroughfare shall begin with one on the north and east sides and two on the south and west sides and progress arithmetically by two's for each successive number-unit space from the base thoroughfare, to the next street or avenue.

(5) The numbering of number units in each square shall begin with that hundred number indicating the number of squares it may be removed from the base thoroughfare, and numbers shall advance by hundreds only by squares.

(Code 1967, § 54-60; Code 1980, § 54-85)

Sec. 54-132. Duty of building owners relative to numbering.

(a) It shall be the duty of the owner of any building facing, abutting, opening upon or having its main entrance from any street, avenue, court, terrace, lane or road in the city to have affixed to such building suitable numbers composed of figures not less than three inches in height, and made of, or paneled upon, glass or some metallic substance. Such numbering shall be done by the owner and the numbers thereof shall conform to and be in accordance with the plat referred to in the preceding section.

(b) It shall be the additional duty of the owner of any building facing, abutting, opening upon the Miami River to have affixed to such building suitable numbers composed of figures not less than three inches in height, and made of, or paneled upon, glass or some metallic substance.

Such numbering shall be done by the owner and the numbers thereof shall conform to and be in accordance with the plat referred to in the preceding section and be additional to those referred to subsection (a) above.

(c) All buildings constructed, erected or removed shall, upon completion of their construction, erection or removal, be numbered by the owner thereof.

(d) It shall be the duty of the owner to maintain numbers of his or her building as herein provided in good condition and in a conspicuous place where the same can be seen and read from the street and/or from the Miami River, if applicable.

(e) Should any owner fail to number or renumber or to maintain numbers of his or her building as required by the provisions of this article, the city commission may cause the same to be done and assess the cost thereof against the property or premises number and collect such amount in the same manner and with the same penalties as city taxes.

(f) The word "owner," as used in this section, shall include owner of the fee, lessee and agent in charge.
(Code 1967, § 54-61; Code 1980, § 54-86; Ord. No. 11470, § 2, 3-20-97)

Sec. 54-133. Reserved.

Editor's note—Ord. No. 13467, § 2, adopted June 12, 2014, repealed the former section 54-133 in its entirety, which pertained to the purchase of street signs and numbers, and derived from the Code of 1967, § 54-62, and the Code of 1980, § 54-87.

Sec. 54-134. Incorrect street signs.

No person shall put up or cause to be put up any sign designating a street, avenue or other public place by a different name than that by which it is generally and legally known, or refuse to move the same from his/her property when requested to do so by any officer of the city.
(Code 1967, § 54-63; Code 1980, § 54-88; Ord. No. 13676, § 2, 4-27-17)

Sec. 54-135. Injuring, defacing, etc., street signs.

No person shall willfully and maliciously injure, deface or remove any of the street signs posted in the city.
(Code 1967, § 54-64; Code 1980, § 54-89)

Sec. 54-136. Alternatives to renaming streets.

The city commission shall consider three alternatives to renaming streets as follows:

(1) Marker, by which a plaque or sign bearing a designation shall be mounted separately on a stone or post in the right-of-way.

(2) Plaza, by which only the intersection of two streets shall be designated. The designation shall be mounted on the post under the street signs at the intersection.

(3) Codesignation, by which a numbered street shall receive an additional designation over the numbered street designation on the street signs. The police department and department of fire-rescue and U.S. Postal Service shall be notified of codesignation.

(Ord. No. 10761, § 2, 7-12-90; Ord. No. 10839, § 2, 2-14-91; Code 1980, § 54-90)

Sec. 54-137. Street codesignation.

The city commission shall consider proposals for street codesignation using the following criteria:

(1) Named streets, e.g., as in Coconut Grove, shall not be changed where there is an historical tradition attached to the existing name.

(2) Named streets shall not be codesignated because of the resulting confusion.

(3) Numbered streets shall not be codesignated for merely commercial purposes.

(4) Numbered streets shall only be codesignated if there is significant historical, neighborhood or community benefit to the codesignation.

(5) Numbered street codesignations shall not exceed five blocks in length.

(6) There shall be a hiatus at least five blocks in length between consecutive codesignations in numbered streets.

(7) Numbered streets shall not be codesignated with the names of living individuals.

(8) Block numbers shall be added to any new street signs that reflect codesignations, markers or plazas.

Notwithstanding, the requirements of this section may be waived by a four-fifths affirmative vote of the city commissioners, or an unanimous vote of the quorum that exists because of either abstentions or vacancies resulting from resignation, death, suspension, or physical incapacitation.
(Ord. No. 10761, § 2, 7-12-90; Code 1980, § 54-91; Ord. No. 11405, § 1, 10-10-96; Ord. No. 13013, § 2, 7-24-08; Ord. No. 14317, § 2, 9-26-24)

Sec. 54-138. Expenses.

(a) Any and all expenses on the part of the city or any other governmental agency resulting from requests for street codesignations, markers or plazas shall be borne by the applicant.

(b) Upon approval by the city commission of a request for street codesignation or a marker or a plaza, the applicant shall pay any and all additional expenses related to the permits, manufacture and installation of the appropriate signs and related appurtenances. A nonrefundable deposit in the amount of $400.00 toward the initial expenses outlined in this section shall accompany any request for a street codesignation or for a designation of a marker or a plaza.
(Ord. No. 10761, § 2, 7-12-90; Ord. No. 10839, § 2, 2-14-91; Code 1980, § 54-92; Ord. No. 14111, § 2, 10-13-22)

Sec. 54-139. Schedule of fees.

Any request for a street codesignation or for a designation of a marker or a plaza shall also be accompanied by an application fee in the amount of $300.00.
(Ord. No. 10761, § 2, 7-12-90; Ord. No. 10839, § 2, 2-14-91; Code 1980, § 54-93)

Sec. 54-140. Reserved.

Editor's note—Ord. No. 12980, § 1, adopted April 10, 2008, repealed § 54-140, which pertained to the street codesignation review committee, and derived from Ord. No. 10761, § 2, adopted July 12, 1990; Ord. No. 11130, § 18, adopted March 24, 1994; Ord. No. 11189, § 6, adopted October 27, 1994; the Code of 1980, § 54-95; Ord. No. 11373, § 12, adopted June 27, 1996; Ord. No. 12179, § 2, adopted January 10, 1992.

Secs. 54-141—54-185. Reserved.

ARTICLE V. BASE BUILDING LINES

Sec. 54-186. Established.

Base building lines are hereby established for the purpose of assuring that sufficient space occurs between the street fronts of buildings and structures; to provide for natural light and circulation of air; to lessen the adverse effect resulting from fire, floods, tornadoes, and hurricanes; to provide for access for firefighting apparatus or rescue and salvage operations; to facilitate provisions for traffic, transportation and circulation; and to promote safety, health, amenity and general welfare within the city. No building, structure, or part thereof, shall be erected, structurally altered, enlarged or extended beyond the base building lines established by this article with the exception of encroachments or temporary structures which are specifically permitted by the Florida Building Code or this chapter. Restaurant arcades on Flagler Street between the Miami River and Biscayne Boulevard are allowed by revocable permits granted by the city commission after approval by the city manager and recommendations by the director of resilience and public works, the director of planning; the director of building, and the chief of fire-rescue. An aerial encroachment of a recreational facility at Jose Marti Park over and across S.W. 5th Street between S.W. 3rd Avenue and Interstate 95, is allowed by revocable permits granted by the city commission after approval by the city manager, and recommendations by the directors of resilience and public works, planning, building, and fire-rescue departments. Encroachments into Southeast 3rd Street and Southeast 3rd Avenue for the purpose of archaeological preservation and interpretation as well as

construction of structural elements in furtherance of that purpose, as contemplated by Resolution No. 14-0134, adopted March 27, 2014, are allowed pursuant to required permits approved by the department of planning and zoning and the department of resilience and public works. In addition, guardhouses are permitted by irrevocable permits granted by the city commission after approval by the city manager and recommendations by the director of resilience and public works, the director of planning, the director of building, the chief of fire-rescue, the chief of police, and the director of solid waste. All of the foregoing recommendations are to be based on factors of safety, liability protection, accessibility and maintenance of public and private property. All guardhouses to be located in the dedicated right-of-way shall not exceed 100 square feet and must conform to the city engineering standards for design and construction, adopted by the department of resilience and public works. Final design plans must be submitted to the required departments and the city commission for review and approval before a revocable permit will be granted for a guardhouse in the dedicated right-of-way. Commencing effective September 14, 1989, upon the granting of the above approvals, such governmental entities shall be authorized to install a guard gate which operates automatically and which does not completely hinder public access along the right-of-way when said installation is part of a governmentally operated project or an element of a special taxing district.
(Ord. No. 9583, § 1, 3-24-83; Ord. No. 9962, § 1, 2-28-85; Ord. No. 10582, § 1, 5-11-89; Ord. No. 10639, § 1, 9-14-89; Code 1980, § 54-100; Ord. No. 12673, § 2, 4-14-05; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-187. Standard street widths.

All public streets in the city not otherwise designated by this article shall be established at a minimum width of 50 feet, and the base building line shall be located 25 feet from the official centerline, said official centerline to be determined and established by the director of the department of resilience and public works of the city. The rounding of corners at street intersections shall not be considered as the base building line.
(Ord. No. 9583, § 1, 3-24-83; Ord. No. 10704, § 1, 2-7-90; Code 1980, § 54-101; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14070, § 2, 6-9-22)

City Code cross reference—Design standards for streets in subdivisions, § 55-11.

Sec. 54-188. Platted width greater.

Where the existing platted or dedicated street right-of-way lines are at a greater distance from the official centerline than established base building lines, then such existing right-of-way lines shall constitute the base building lines.
(Ord. No. 9583, § 1, 3-24-83; Code 1980, § 54-102)

Sec. 54-189. Centerline descriptions.

Centerline descriptions for the streets described herein are on file in the offices of the city clerk and the department of resilience and public works of the city and are hereby adopted by reference and are to be considered as being embodied in this chapter in the same manner as if hereinafter set forth.
(Ord. No. 9583, § 1, 3-24-83; Code 1980, § 54-103; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-190. Nonstandard street widths.

Base building lines shall be located from the centerline as specified for each of the following streets:

Streets, Avenues, Roads, Etc., in Alphabetical Order		*Distance in Feet from Centerline to Base Building Line*
(1)	1st Street, N.W., N.W. 17th Avenue to N.S. 22nd Avenue	20
(2)	1st Street, N.E., Miami Avenue to N.E. 1st Avenue.	27.5
(3)	1st Street, S.E. and S.W., Biscayne Boulevard to S.W. 1st Avenue.....	37.5*

*Exception—The base building line shall be located 25 feet north of the centerline on the north side of S.E. 1st Street between S.E. 1st Avenue and S.E. 2nd Avenue conditioned on the granting of a 12.5 foot wide perpetual public sidewalk easement in favor of the City of Miami behind the base building line, said easement shall extend to

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(4) 1st Street, S.W., north side, S.W. 1st Avenue to S.W. 1st Court	37.5
(5) 1st Street, S.W., south side, S.W. 1st Avenue to S.W. 1st Court	29.5
(6) 1st Street, S.W., S.W. 1st Court to S.W. North River Drive	37.5
(7) 1st Street, S.W., S.W. 5th Avenue to S.W. 17th Avenue	35
(8) 1st Street, S.W., S.W. 19th Avenue to S.W. 22nd Avenue	42.5
(9) 2nd Street, N.W., Miami Avenue to N.W. 1st Avenue	35
(10) 2nd Street, N.W., N.W. 8th Avenue to N.W. 17th Avenue	35
(11) 2nd Street, S.W., S.W. 2nd Avenue east to Florida East Coast Railway	35
(12) 3rd Street, N.W., N.W. 47th Avenue to N.W. 48th Avenue	20
(13) Reserved.	
(14) 3rd Street, N.W., N.W. 32nd Avenue to N.W. 34th Avenue	50
(15) 3rd Street, S.W., S.W. 2nd Avenue to S.W. North River Drive	30
(16) 3rd Terrace, N.W., N.W. 23rd Avenue to N.W. 23rd Court	16
(17) 4th Street, N.W., N.W. 8th Avenue to N.W. 12th Avenue	35
(18) 4th Street, S.W., S.W. 17th Avenue to S.W. 22nd Avenue	20
(19) 5th Street, N.E. and N.W., Biscayne Boulevard to N.W. 3rd Avenue	35
(20) 5th Street, N.W., N.W. 3rd Avenue to N.W. 7th Avenue	35
(21) 6th Street, N.E. and N.W., N.E. 2nd Avenue to N.W. 3rd Avenue	35
(22) 7th Street, N.E. and N.W. N.E. 2nd Avenue to N.E. 1st Avenue	37.5
(23) 7th Street, N.W., Miami River to west city limits	35
(24) 8th Street, N.E. and N.W., N.E. 2nd Avenue to N.E. 1st Avenue and North Miami Avenue to N.W. 3rd Avenue	37.5
(24A) 8th Street, N.E., North Miami Avenue to N.E. 1st Avenue	35
(25) 8th Street, S.E. and S.W., S.E. Miami Avenue Road to 17th Avenue	35
(26) 8th Street, S.W., S.W. 17th Avenue to S.W. 19th Avenue	37.5
(27) 8th Street, S.W., S.W. 19th Avenue to S.W. 23rd Avenue	35
(28) 8th Street, S.W., S.W. 23rd Avenue to S.W. 27th Avenue	37.5
(29) 8th Street, S.W., S.W. 27th Avenue to S.W. 73rd Avenue	35
(30) Reserved.	
(31) 9th Street, N.W., North Miami Avenue to N.W. 2nd Avenue	50
(32) 10th Street, N.E. and N.W., N.E. 2nd Avenue to Florida East Coast Railway right-of-way	25
(33) 11th Street, N.E. and N.W., N.E. 1st Avenue to Florida East Coast Railway right-of-	

a minimum height of ten feet above the sidewalk; and providing a sidewalk shall be constructed and maintained by the owner of the property within the easement area, said sidewalk may include Americans with Disabilities Act compliant ramps and steps to transition from the street grade to the building floor elevation. The easement will be in a form acceptable to the resilience and public works director and will be recorded in the public records of Miami-Dade County.

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
way	25
(34) 11th Street, N.W., N.W. 7th Avenue to N.W. 8th Street Road (see legal description)	
(35) 11th Street, N.W., N.W. 8th Street Road to N.W. 12th Avenue	35
(36) 11th Terrace, N.E. and N.W., N.W. 1st Avenue, east of the Florida East Coast Railway, to N.E. Miami Court	20
(37) 11th Terrace, N.W., N.W. 6th Avenue to N.W. 7th Avenue	20
(38) 12th Street, N.E., N.E. Biscayne Boulevard to N.E. 2nd Avenue	25
(39) Reserved.	
(40) 13th Street, S.E., from Brickell Avenue to South Bayshore Drive	20
(41) 13th Street, N.E., North Bayshore Drive to N.E. 2nd Avenue	35
(42) Reserved.	
(43) 13th Street, S.W., South Miami Avenue to S.W. 15th Road	35
(44) 13th Street, N.W., east of 27th Avenue	12.5
(45) 13th Terrace, N.E., Biscayne Boulevard to North Bayshore Drive	10
(46) 14th Street, N.E., N.E. 2nd Avenue to North Bayshore Drive	35
(47) 14th Street, N.W., N.W. 22nd Avenue to N.W. 45th Avenue	35
(48) 14th Street, N.E. and N.W., N.E. 2nd Avenue to N.W. 6th Avenue	35
(49) 14th Street, N.W., N.W. 6th Avenue to N.W. 7th Avenue	37.5
(50) 14th Street, N.W., N.W. 7th Avenue to N.W. 10th Avenue	37.5
(51) 14th Street, S.E., east of Brickell Avenue	35
(52) 14th Terrace, S.E., east of Brickell Avenue to intersection of S.E. 4th Lane	30
(53) 14th Terrace, N.E., N.E. 2nd Avenue to North Bayshore Drive	17.5
(54) 14th Lane, S.E., east of Brickell Avenue	30
(55) 15th Street, N.E., North Miami Avenue to N.E. 2nd Avenue	30
(56) 15th Street, N.E., N.E. 2nd Avenue to North Bayshore Drive	30
(57) 16th Street, S.W., S.W. 34th Avenue to S.W. 37th Avenue	35
(58) 16th Street, N.E., Miami Avenue to N.E. 2nd Avenue	30
(58A) 16th Street, N.E., north side Biscayne Boulevard to N.E. 2nd Avenue	12.5
(59) 16th Terrace, N.W., N.W. 22nd Avenue to N.W. 24th Avenue (see "North River Drive, N.W.")	35
(60) 17th Street, N.E., North Miami Avenue to N.E. 2nd Avenue	35
(61) 17th Street, N.W., N.W. 8th Avenue to N.W. 10th Avenue	27.5
(62) 17th Terrace, S.W., S.W. 22nd Avenue to 23rd Avenue	17
(63) 20th Street, N.W., North Miami Avenue to N.W. 2nd Avenue	35

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(64) 20th Street, N.W., N.W. 2nd Avenue to west city limits	35
(65) 22nd Street, S.W., S.W. 13th Avenue to west city limits	50
(66) 22nd Terrace, N.E., Biscayne Bay to N.E. 4th Avenue	15
(67) 23rd Street, N.W., N.W. 17th Avenue to N.W. 18th Avenue:	
At the intersection of centerline 17th Avenue	33.37
At the intersection west of 18th Avenue	31.43
(68) 23rd Terrace, N.E., N.E. 4th Avenue to Biscayne Bay	10
(69) 23rd Terrace, N.W., N.W. 17th Avenue to N.W. 18th Avenue	15
(70) 27th Terrace, N.W., N.W. 2nd Avenue to N.W. 3rd Avenue	17
(71) 28th Street, N.W., N.W. 3rd Avenue to west city limits	35
(72) 29th Terrace, N.E., N.E. 4th Avenue to N.E. 7th Avenue	17.5
(73) 30th Terrace, N.E., N.E. 4th Avenue to Biscayne Bay	17.5
(74) 36th Street, N.E., Federal Highway to Biscayne Bay	35
(75) 36th Street, North, Federal Highway to west city limits	35
(76) 37th Street, N.E. (formerly Wisconsin Street), N.E. 2nd Avenue to Florida East Coast Railway right-of-way	14
(77) 37th Street, N.E. (formerly Wisconsin Street), Federal Highway to a point approximately 95 feet east of Biscayne Boulevard	13
(78) 37th Street, N.E. (formerly Wisconsin Street), access road approximately 255 feet east of Biscayne Boulevard to east end of street and the northerly extension of N.E. 6th Avenue	16.5
(79) 46th Street, N.E. and N.W., N.E. 2nd Avenue to N.W. 10th Avenue	35
(80) 46th Street, N.W., N.W. 12th Avenue to west city limits	35
(81) 54th Street, N.E. and N.W., Biscayne Boulevard to west city limits	35
(82) 56th Street, N.E., N.E. 2nd Avenue to North Miami Avenue	15
(83) 56th Street, N.W., North Miami Avenue to N.W. Miami Court	20
(84) 59th Street, N.W., N.W. 11th Avenue to N.W. 12th Avenue	20

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(85) 60th Street, N.W., from the east boundary of "College Park," approximately 335.3 feet west of the centerline of N.W. 2nd Avenue to N.W. 5th Avenue	12.5
(86) 62nd Street, N.E. and N.W., N.E. 2nd Avenue to west city limits	35
(87) 64th Terrace, N.E., Biscayne Boulevard to N.E. 7th Avenue	16.5
(88) 64th Terrace, N.E. and N.W. from N.E. 2nd Avenue to the west boundary of "amended plat of Liberty Park," approximately 150 feet west of the centerline of N.W. Miami Court	15
(89) 65th Street, N.W., N.W. 3rd Court to N.W. 4th Avenue, and N.W. 2nd Court to N.W. 3rd Avenue	17.5
(90) 66th Street, N.E., N.E. 1st Place to N.E. Miami Place	15
(91) 66th Street, N.W., from N.W. Miami Court to the west boundary of "amended plat of Liberty Park," approximately 150 feet west of the centerline of N.W. Miami Court	15
(92) 66th Street, N.W., between N.W. 2nd Court and N.W. 3rd Avenue, and between N.W. 3rd Court and N.W. 4th Avenue	17.5
(93) 70th Street, N.E., from a point 245.00 feet east of centerline of Biscayne Boulevard to Druid Walk	14
(94) 71st Street, North, Biscayne Boulevard to west city limits	35
(95) 73rd Street, N.E., North Miami Avenue to N.E. Miami Court	15
(96) 73rd Terrace, N.W., N.W. 2nd Avenue west approximately 340 feet to east boundary of tract B-1, "revised plat of Le Bocage"	15
(97) 77th Street, N.E., N.E. 2nd Avenue to N.E. 3rd Place	20
(98) 78th Street, N.W., N.W. 1st Avenue to N.W. 2nd Avenue	15
(99) 78th Street, N.W., extending approximately 260 feet west of Miami Avenue	15
(100) 79th Street, N.W., N.W. 7th Avenue to west city limits	50
(101) 79th Street, N.E. and N.W., Biscayne Bay to N.W. 7th Avenue	40
(102) 79th Terrace, N.E., N.E. 3rd Court to N.E. 4th Avenue	10
(103) 82nd Street, N.E., North Miami Avenue to Biscayne Boulevard	30
(104) 82nd Terrace N.E., N.E. 9th Avenue to N.E. 10th Avenue	15
(105) 83rd Lane, N.E., Biscayne Boulevard to the eastern terminus of said dead-end street	20
(106) 85th Street, N.E., East Dixie Highway to 114± feet east of east line of lot 14, of second amended plat of Biscayne Heights (4-62)	22.5
(107) 87th Street, N.E., south side from Biscayne Boulevard westward to the city limits	35
(108) 1st Avenue, N.E., from East Flagler Street to N.E. 2nd Street	35

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(109) 1st Avenue, N.E., N.E. 2nd Street to N.E. 6th Street and N.E. 8th Street to N.E. 9th Street and N.E. 10th Street to N.E. 17th Street..	35
(110) 1st Avenue, N.E., N.E. 6th Street to N.E. 8th Street and N.E. 9th Street to N.E. 10th Street.....	47.5
(111) 1st Avenue, N.E., N.E. 49th Street to N.E. 50th Street..	10
(112) 1st Avenue, N.E., N.E. 64th Street to N.E. 67th Street..	17.5
(113) 1st Avenue, N.W., N.W. 1st Street to N.W. 5th Street ..	35
(114) 1st Avenue, N.W., N.W. 5th Street to N.W. 8th Street ..	48
(115) 1st Avenue, N.W. (East), N.W. 8th Street to N.W. 10th Street.....	52.5
N.W. 10th Street to N.W. 11th Street.....	35
(116) 1st Avenue, N.W., N.W. 57th Street to N.W. 64th Street .	15
(117) 1st Avenue, N.W., N.W. 75th Street to N.W. 79th Street .	15
(118) 1st Court, N.E.:	
From the south boundary of West Broadmoor (3-60) approximately 270 feet south of the centerline of N.E. 30th Street to N.E. 30th Street..	15
From N.E. 30th Street to N.E. 31st Street.....	12.5
(119) 1st Court, N.E., N.E. 38th street to N.E. 39th Street..	12.5
(120) 1st Court, N.E., from the south boundary of "corrected plat of Alta Vista" approximately 133 feet south line of N.E. 50th Terrace to N.E. 51st Street.....	10
(121) 1st Court, N.E., N.E. 64th Street to N.E. 67th Street..	15
(122) 1st Court, N.E., from N.E. 75th Street to north boundary of "Roselawn Park (9-121)" approximately 144 feet north of centerline of N.E. 77th Street.....	15
(123) 1st Court, S.W., east side from S.W. 1st Street to S.W. 2nd Street	22.5
(124) 1st Court, N.W., N.W. 54th Street to N.W. 56th Street .	15
(125) 1st Court, N.W., from N.W. 75th Street to N.W. 77th Street.....	15
(126) 1st Place, N.E., N.E. 64th Street to N.E. 67th Street..	15
(127) 1st Place, N.W., N.W. 14th Street to N.W. 20th Street .	32.5
(128) 1st Place, N.W., N.W. 54th Street to N.W. 56th Street .	15
(129) 1st Place No. 2., N.E., from N.E. 64th Terrace to the north boundary of "first addition to Emerald Court" approximately 71 feet north of the zoned centerline of N.E. 65th Street.....	15
(130) 2nd Avenue, N.E., N.E. 75th Street to north city limits ..	35
(131) 2nd Avenue, S.E., Florida East Coast Railroad spur to Miami River	37.5
(132) 2nd Avenue, S.E. and N.E., S.E. 2nd Street to S.E. 1st Street and East Flagler Street to N.E. 1st Street and N.E. 2nd Street to N.E. 5th Street and N.E. 12th Street to N.E. 75th Street..	35
(133) 2nd Avenue, N.E., N.E. 5th Street to N.E. 12th Street..	42.5

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(134) 2nd Avenue, S.W., Miami River to West Flagler Street	32.5
(135) 2nd Avenue, S.W., S.W. 15th Road to Miami River	35
(136) 2nd Avenue, N.W., West Flagler Street to N.W. 5th Street	32.5
(137) 2nd Avenue, N.W., N.W. 5th Street to N.W. 8th Street	37.5
(138) 2nd Avenue, N.W., N.W. 17th Street to N.W. 20th Street	15
(139) 2nd Avenue, N.W., N.W. 20th Street to N.W. 29th Street	32.5
(140) 2nd Avenue, N.W., N.W. 29th Street to N.W. 36th Street	30
(141) 2nd Avenue, N.W., N.W. 36th Street to N.W. 79th Street	35
(142) 3rd Avenue, N.E., East Flagler Street to N.E. 2nd Street	30
(143) 3rd Avenue, N.W., N.W. 5th Street to N.W. 8th Street	35
(144) 3rd Avenue, NW., N.W. 62nd Street to N.W. 65th Street and N.W. 66th Street to N.W. 67th Street	17.5
(145) 3rd Avenue, S.W., S.W. 8th Street to S.W. 15th Street Road	30
(146) 3rd Court, N.E., N.E. 54th Street to N.E. 55th Street	15
(147) 3rd Court, N.W., N.W. 62nd Street to N.W. 65th Street and N.W. 66th Street to N.W. 67th Street	17.5
(148) 7th Avenue, N.E., N.E. 22nd Street to N.E. 22nd Terrace	10
(149) 7th Avenue, N.E., N.E. 29th Terrace to N.E. 30th Street	17.5
(150) 7th Avenue, N.W., N.W. 5th Street to N.W. 36th Street	35
N.W. 36th Street to N.W. 79th Street	40
N.W. 79th Street to north city limits	50
(151) 8th Avenue, S.W., S.W. 8th Street to S.W. 11th Street	30
(152) 8th Avenue, N.W., West Flagler Street to N.W. 4th Street	35
(153) 8th Avenue, N.W., N.W. 12th Street to south line of N.W. 18th Street West	20
(154) 8th Court, N.W., N.W. 14th Street to N.W. 18th Street	20
(155) 9th Avenue, N.W., N.W. 15th Street to N.W. 18th Street	35
(156) 10th Avenue, N.W., N.W. 19th Street to N.W. 20th Street	35
(157) 10th Avenue, N.E., from the stream called "Little River" to north city limits	35
(158) 12th Avenue, S.W., S.W. 13th Street to S.W. 1st Street	40.5
(159) 12th Avenue, S.W. and N.W., S.W. 1st Street to N.W. 7th Street	37.5
(160) 12th Avenue, N.W., N.W. 7th Street to Miami River	35
(161) 12th Avenue, N.W., N.W. 11th Street to N.W. 20th Street	50
(162) 12th Avenue, N.W., N.W. 20th Street to north city limits	35
(163) 12th Place, N.W., N.W. 36th Street to N.W. 39th Street and N.W. 40th Street to N.W. 46th Street	15
(164) 13th Place, N.W., N.W. 36th Street to N.W. 46th Street	15

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(165) 14th Avenue, N.W., from a point approximately 205 feet north of the centerline of N.W. North River Drive to N.W. 20th Street	35
(166) 14th Court, N.W., N.W. 41st Street to N.W. 46th Street	15
(167) 16th Avenue, N.W., N.W. 40th Street to N.W. 41st Street	8.5
(168) 16th Avenue, N.W., N.W. 41st Street to N.W. 46th Street	15
(169) 17th Avenue, N.W., N.W. North River Drive to north city limits	35
(170) 17th Avenue, S.W., South Bayshore Drive to S.W. 1st Street	35
(171) 17th Place N.W., N.W. 7th Street, north to south right-of-way line of the East-West Expressway	13
(172) 18th Avenue, N.W., N.W. 7th Street north to N.W. 9th Street	13
(173) 18th Court, N.W., N.W. 7th Street to N.W. South River Drive	9
(174) 20th Court, S.W., S.W. 16th Street north to Westmoor Subdivision (16-13), south line of block 3	20
(175) 20th Avenue, N.W., N.W. 11th Street to south bank of the south fork of Miami River	17.5
(176) 22nd Avenue, N.W., West Flagler Street to N.W. 14th Street	40
(177) 22nd Avenue, N.W., N.W. 18th Street to the north city limits (N.W. 38th Street)	40
(178) 22nd Avenue, S.W., Flagler Street to South Dixie Highway (Federal Highway)	40
(179) 22nd Avenue, S.W., South Dixie Highway (Federal Highway) to Kirk Street	35
(180) 22nd Court, N.W., N.W. 7th Street to N.W. 11th Street	17.5
(181) 22nd Place, N.W., N.W. 7th Street to N.W. 11th Street	17.5
(182) 23rd Avenue, N.W., N.W. 3rd Terrace to northerly boundary of N.W. 4th Street	15
(183) 23rd Avenue, S.W., S.W. 17th Alley to S.W. 18th Street	25
(184) 26th Avenue, N.W., N.W. 3rd Street to N.W. 7th Street	17.5
(185) 27th Avenue, N.W. and S.W. (Grapeland Boulevard), South Bayshore Drive to north city limits	50
(186) 27th Court, S.W., from the south boundary of "South Bay Estates" approximately 335 feet south of the centerline of S.W. 27th Street to the north boundary of "South Bay Estates" approximately 338 feet north of the centerline of S.W. 27th Street	15
(187) 28th Avenue, S.W., from the south boundary of "South Bay Estates," approximately 333 feet south of the centerline of S.W. 27th Street to the north boundary of "South Bay Estates," approximately 339 feet north of the centerline of S.W. 27th Street	15
(188) 28th Avenue, S.W., from SW 10th Street to SW 10th Terrace	21.75

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(189) 28th Court, S.W., from the south boundary of "South Bay Estates," approximately 332 feet south of the centerline of S.W. 27th Street to the north boundary of "South Bay Estates," approximately 340 feet north of the centerline of S.W. 27th Street	15
(190) 29th Avenue, S.W., S.W. 27th Street north approximately 341 feet to north boundary of "South Bay Estates"	15
(191) 29th Court, S.W., S.W. 27th Street north approximately 342 feet to north boundary of "South Bay Estates"	15
(192) 29th Place, S.W., S.W. 27th Street north approximately 342 feet to north boundary of "South Bay Estates"	15
(193) 32nd Avenue, S.W., S.W. 8th Street to S.W. 16th Street	30
(194) 32nd Avenue, S.W. (McDonald Street), Grand Avenue to S.W. 16th Street	35
(195) 33rd Avenue, S.W., S.W. 203, 28th Street to S.W. 29th Terrace	15
(196) 34th Avenue, S.W., S.W. 12th Street to S.W. 16th Street	20
(197) 36th Court, S.W., S.W. 17th Street south for approximately 140 feet	20
(198) 37th Avenue, S.W. and N.W. (Douglas Road), south city limits to N.W. 7th Street	35
(199) 40th Avenue, S.W., S.W. 7th Street northerly to dead end north of S.W. 6th Street	12.5
(200) 40th Avenue, S.W., or S.W. 7th Street to S.W. 8th Street	20
(201) 42nd Avenue, S.W. (Le Jeune Road), Flagler Street to S.W. 8th Street	44.5
(202) 42nd Avenue, S.W. (Le Jeune Road), approximately 475 feet north of the north boundary of block 10 (south property line of Loquat Avenue) Sunshine Vista Subdivision (16-19), to the south city limits	35
(203) 42nd Avenue, N.W. (Le Jeune Road), Flagler Street to north city limits	50
(204) 48th Avenue, N.W., Flagler Street to N.W. 3rd Street	12.5
(205) 57th Avenue, N.W. and S.W., N.W. 7th Street to S.W. 8th Street	40
(206) 62nd Avenue, N.W. and S.W., south city limits to north city limits	35
(207) 67th Avenue, N.W. and S.W., south city limits to north city limits	35
(208) Ah-We-Wa Street, Tigertail Avenue to South Bayshore Drive	12.5
(209) Bay Homes Drive, north, from Douglas Road to South Bay Homes Drive	15
(210) Bayview Road, Main Highway Southeast to its terminus	12.5
(211) Bird Avenue, S.W., 27th Avenue to west city limits	35
(212) Biscayne Boulevard, south line of N.E. 6th Street to the north line of N.E. 12th Street	75
(213) Biscayne Boulevard, centerline of N.E. 55th Terrace to a point 130.6 feet south of centerline of N.E. 61st Street	45

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(214) Biscayne Boulevard from a point 130.6 feet south of centerline of N.E. 61st Street to north city limits	45
(215) Bonita Avenue, Le Jeune Road to Braganza Street	20
(216) Braganza Street, Hardie Avenue to Kiaora Street	20
(217) Brooker Street (east side), South Dixie Highway to Oak Avenue	12.5
Oak Avenue to Grand Avenue	15
(218) Brooker Street in Pomona Subdivision	12.5
(219) Brickell Avenue, S.E., S.E. 8th Street to the north line of S.E. 5th Street, as shown on the plat of Brickell Point (8-93)	60
(220) Chucanatah Road, Tigertail to end	15
(221) Coacoochee Street, South Bayshore Drive to Espanola Drive	15
(222) Coral Way (S.W. 22nd Street), S.W. 13th Avenue to west city limits	50
(223) Devon Road, easterly of Main Highway	20
(224) Emathla Street, Tigertail Avenue to South Bayshore Drive	15
(225) Federal Highway, N.E. 36th Street to the westerly extension of the southerly limited access right-of-way line of the 36th Street Expressway S.R. No. 25	37.5
(226) Flagler Street, West, North Miami Avenue to West 1st Avenue	37.5
(227) Flagler Street, West, Miami River to West 12th Avenue	45
(228) Flagler Street, West, West 12th Avenue to West 22nd Avenue	35
(229) Flagler Street, West, West 22nd Avenue to West 24th Avenue	37.5
(230) Flagler Street, West, West 24th Avenue to west city limits	35
(231) Flagler Terrace, S.W., S.W. 12th Avenue to S.W. 13th Avenue	23
(232) Flagler Terrace, S.W., S.W. 13th Avenue to S.W. 17th Avenue	20
(233) Fuller Street, Main Highway to Grand Avenue	22.5
(234) Grand Avenue, Matilda Street to west city limits	35
(235) Grand Avenue, Mary Street to Matilda Street	39
(236) Greenwood Drive, S.W. 27th Avenue to west end	15
(237) Grove Street, Hardie Avenue to Park Avenue	20
(238) Highland Park Drive (N.W. 9th and 10th Avenues), N.W. 14th Street to N.W. 20th Street	35
(239) Ingraham Highway, Douglas Road to south city limits	35
(240) Irvington Avenue, Douglas Road to end	15
(241) Justison Court, Matheson Avenue to Sunshine Road	10
(242) Kirk Street, South Bayshore Drive to bay	33

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(243) Leafy Way, S.W. 37th Avenue to end	15
(244) Lennox Drive, Ingraham Highway to Hardie Road	10*
*Exception—Where platted right-of-way lines are greater distance than ten feet from the centerline of above street, said right-of-way lines shall be the base building lines. Where drive divides into two parts surrounding lots 33 and 34 each portion is to remain 20 feet wide as platted.	
(245) Main Highway, Grand Avenue to Commodore Plaza	37.5
(246) Main Highway, the southeasterly production of the northeasterly line of Commodore Plaza to the northwesterly production of the northeasterly line of tract 10 of Camp Biscayne	37.5
(247) Main Highway (adjacent to Camp Biscayne)	37.5
(248) Main Highway, Camp Biscayne to Douglas Road	35
(249) Marler Avenue, Hibiscus Street to Douglas Road (S.W. 37th Avenue)	12.5
(250) Matheson Avenue, Douglas Road to Ingraham Highway	10*
*Exception—Where platted right-of-way lines are greater distance than ten feet from the centerline, said right-of-way lines shall be the base building lines.	
(251) McFarlane Road, Main Highway at Grand Avenue to South Bayshore Drive	46.25
(252) Miami Avenue, North and South, North 4th Street to the Miami River and South 7th Street to a point 175 feet south of the centerline of S.W. 12th Street	30
(253) Miami Avenue, North and South, North 4th Street to North 5th Street and Miami River to South 7th Street	25
(254) Miami Avenue, North, North 5th Street to North 36th Street	35
(255) Miami Avenue, North, North 54th Street to north city limits	35
(256) Miami Court, N.E., N.E. 36th Street to N.E. 39th Street	20
(257) Miami Court, N.E., N.E. 64th Street to N.E. 65th Street	15
(258) Miami Court, N.E., from the north boundary of "Grace Park amended," approximately 100 feet north to the centerline of N.E. 67th Street	15
(259) Miami Court, N.E., N.E. 75th Street to N.E. 79th Street	15
(260) Miami Court, N.W., N.W. 54th Street to N.W. 56th Street	20
(261) Miami Place, N.W., N.W. 54th Street north to turnaround at end of street	15
(262) Miami Place, N.W., N.W. 77th Street to N.W. 79th Street	15
(263) Miami Place, N.E., N.E. 36th Street to north end	20

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(264) Miami Place, N.E., from the south boundary of "corrected plat of Alta Vista," approximately 123 feet south of the centerline of N.E. 50th Terrace to N.E. 52nd Street	10
(265) Miami Place No. 2, N.E., N.E. 64th Street to N.E. 67th Street	15
(266) Micanopy Avenue, Coacoochee Street west to its terminus	20
(267) Naomi Street, Shipping Avenue to Ruth Street	15.5
(268) North River Drive, S.W. and N.W., S.W. 3rd Street to N.W. 5th Street	25*
*Exception—At the southwesterly intersection of N.W. North River Drive and N.W. 4th Street, the new street lines through lot "B" as shown on Rand's Subdivision of block 71N and block 72N, according to the plat thereof as recorded in plat book 2, at page 99 of the public records of Dade County, Florida, shall be joined by a tangential curve having a radius of 50 feet.	
(269) North River Drive, N.W., N.W. 22nd Avenue to N.W. 24th Avenue (see "16th Terrace, N.W.")	35
(270) North Venetian Drive, Biscayne Island	20
(271) Park Avenue, Le Jeune Road to Douglas Road	20
(272) Park Drive, Lennox Drive to Ingraham Highway	10
(273) Poinciana Avenue, Main Highway to Le Jeune Road	25
(274) Pomona Lane, in Pomona Subdivision	10
(275) Royal Road, Main Highway to Biscayne Bay	15
(276) Ruth Street, Virginia Street to Naomi Street	20
(277) Shipping Avenue, Hibiscus Street to Plaza Street	15
(278) South Bayshore Drive, S.E. 12th Street to S.E. 14th Street	30
(279) South Bayshore Drive, S.E. 14th Street to S.E. 15th Street Road	30
(280) South Bayshore Drive, Halissee Street to Aviation Avenue	35
(281) South Bayshore Drive, Aviation Avenue to McFarlane Road	50
(282) South Bayshore Lane:	
East Fairview Street to northeasterly boundary of "Fairview" as measured along the northeasterly boundary of East Fairview Street	24.99
As measured along the northeasterly boundary of "Fairview"	10.57
(283) South Bayshore Lane, Fair Isle Street southwesterly to its terminus approximately 125 feet southwesterly of Vista Court	20
(284) South Dixie Highway (Federal Highway), S.W. 31st Road to Bird Avenue	42.5
(285) South Dixie Highway (Federal Highway), Bird Avenue to west city limits	45

Streets, Avenues, Roads, Etc., in Alphabetical Order	*Distance in Feet from Centerline to Base Building Line*
(286) South Venetian Court, from Venetian Way southerly to southerly terminus of said dead-end street.	12.5*
*Exception—Where platted right-of-way lines are a greater distance than 12.5 feet from the centerline, said right-of-way lines shall be the base building lines.	
(287) South Venetian Drive, from South Venetian Court of Venetian Way	20*
*Exception—Where platted right-of-way lines are a greater distance than 20 feet from the centerline, said right-of-way lines shall be the base building lines.	
(288) Sunshine Road, Matheson Avenue to Ingraham Highway	10*
*Exception—Where platted right-of-way lines are a greater distance than ten feet from the centerline, said right-of-way lines shall be the base building lines.	
(289) Tamiami Canal Road, N.W. 60th Court to N.W. 62nd Avenue	35
(290) Thomas Avenue, Douglas Road to Brooker Street	20
(291) Virginia Street, Oak Avenue to Grand Avenue	27.5
(292) Washington Avenue, S.W. 37th Avenue to Jefferson Street.	20
(293) West Drive, Matheson Avenue to Stewart Avenue .	[35]

(Ord. No. 9583, § 1, 3-24-83; Ord. No. 10031, § 1, 9-12-85; Ord. No. 10077, § 1, 2-13-86; Ord. No. 10315, § 1, 9-8-87; Ord. No. 10369, § 1, 1-14-88; Ord. No. 10734, § 1, 5-24-90; Ord. No. 10940, § 1, 1-9-92; Ord. No. 10964, § 1, 4-2-92; Ord. No. 11115, § 1, 1-13-94; Ord. No. 11149, § 1, 5-5-94; Ord. No. 11157, § 2, 6-9-94; Code 1980, § 54-104; Ord. No. 11319, § 1, 10-26-95; Ord. No. 11709, § 2, 10-13-98; Ord. No. 11835, § 2, 9-21-99; Ord. No. 11880, § 2, 1-13-00; Ord. No. 11926, § 2, 5-11-00; Ord. No. 11938, § 2, 6-29-00; Ord. No. 11946, § 2, 7-27-00; Ord. No. 12146, § 1, 10-11-01; Ord. No. 12424, § 1, 10-9-03; Ord. No. 12549, § 2, 6-24-04; Ord. No. 12587, § 2, 9-23-04; Ord. No. 12682, § 2, 5-12-05; Ord. No. 12692, § 2, 6-9-05; Ord. No. 12712, § 2, 7-7-05; Ord. No. 12782, § 2, 3-23-06; Ord. No. 12979, § 2, 4-10-08; Ord. No. 13062, § 2, 5-14-09; Ord. No. 13167, § 2, 5-13-10; Ord. No. 13399, § 2, 7-11-13; Ord. No. 13420, § 2, 12-12-13; Ord. No. 13446, § 2, 3-27-14; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13598, § 2, 3-11-16; Ord. No. 13600, § 2, 4-28-16; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13794, § 2, 10-11-18; Ord. No. 13913, § 2, 7-23-20; Ord. No. 14031, § 2, 10-14-21)

Sec. 54-191. Temporary encroachments.

(a) Whenever an owner of property within the city wishes to install a temporary encroachment, i.e., fence, wall, or hedge, within the undedicated area between the platted or dedicated right-of-way line and the established base building line, the owner shall, before beginning any installation, construction or planting, make formal request for such an encroachment, in writing, to the director of the department of resilience and public works, said request to be evaluated as indicated in subsection (c) hereinbelow. The owner shall submit with his/her request a current survey of the property, and a sketch or drawing showing sufficient detail to accurately portray the nature and extent of the encroachment.

(b) If a fence, wall, hedge, or previously permitted accessory structure exists within the dedicated right-of-way, the city commission may permit said fence, wall, hedge, or previously permitted accessory structure to remain or be reinstalled, reconstructed or replanted within the dedicated right-of-way (if damaged, less than 50 percent of its area), if the owner of said fence, wall, hedge, or previously permitted accessory structure furnishes proof to the city commission that said fence, wall hedge, or previously permitted acces-

sory structure was built prior to March 24, 1983. Proof may consist of a building permit, a survey, an aerial photo, a recorded document prepared prior to March 24, 1983, a certificate of occupancy or completion issued prior to March 24, 1983, or a sworn document from a person or persons, other than the present owner, familiar with the property, attesting to the existence or construction of the wall, fence hedge, or previously permitted accessory structure prior to March 24, 1983. Any reinstallation, reconstruction or replanting of a fence, wall, hedge, or previously permitted accessory structure permitted pursuant to this section shall conform to the following requirements:

(1) The materials used shall be the same as or substantially similar to those of the fence, wall, hedge, or previously permitted accessory structure being reinstalled, reconstructed or replanted.

(2) Its height, length and width shall not exceed that of the fence, wall, hedge, or previously permitted accessory structure being reinstalled, reconstructed or replanted.

(3) It shall conform to the visibility triangle requirements of the zoning ordinance of the City of Miami in effect at the time the permit was issued.

The owner shall submit a formal request to the director of resilience and public works. The director shall transmit said request to the city commission, to be evaluated in accordance with the procedure outlined in subsection (c), hereinbelow. Upon consideration of the request, the city commission, at a public hearing, may approve or deny the request as submitted. Said public hearing shall be requested by and at the expense of the owner. The director shall establish a schedule of fees for such public hearings.

If the request is denied, the existing fence, wall hedge, or previously permitted accessory structure shall be removed at no cost to the city, within 30 days of notification by the director of the department of resilience and public works that said removal is required. In the event of failure by the owner to remove the encroachment when notified, the city may cause the removal of the encroachment and place a lien against the property for the cost of the removal.

(c) The director of the department of resilience and public works, or his/her designee, shall evaluate the request for encroachment within the undedicated right-of-way, or the city commission shall evaluate the request for encroachment within the dedicated right-of-way and the information supplied with regard to its effect on the health, welfare and safety of the community. In evaluating the request, or transmitting the request to the city commission, the director shall research city records to determine if there have been any complaints or reports of problems of impediment to travel by vehicles or pedestrians attributed to the wall, fence hedge, or previously permitted accessory structure. The director may also confer with representatives of other departments or agencies, as may be necessary.

If there is a negative effect on the health, welfare or safety of the community, the director shall deny the request for encroachment within the undedicated right-of-way, or the city commission shall deny the request for encroachment within the dedicated right-of-way.

If there is no negative effect on the health, welfare or safety of the community, the director of the department of resilience and public works may approve the request for encroachment within the undedicated right-of-way, or the city commission may approve the request for encroachment within the dedicated right-of-way, subject to the recording of a covenant to run with the land, executed by the owner with the payment by the owner of the requisite fees for preparation and recording of said covenant. The provisions of the covenant shall include, but not be limited to:

(1) Maintenance of the wall, fence, hedge, or previously permitted accessory structure by the property owner in accordance with the city's standards and specifications.

(2) Removal of the encroachment by the property owner within 30 days of notification by the director of the department of resilience and public works that said removal is required, and at no cost to the city.

(3) In the event of failure of the property owner to remove the encroachment, when notified, the city may cause the removal of the encroachment, and place a lien against the property for the cost of the removal.

(4) Dedication to the city of the necessary right-of-way upon removal of the encroachment.

(5) Provision of an insurance policy, in an amount not less than $1,000,000.00, naming the city as insured for public liability and property damage, or certificate of inclusion of the city as insured on an existing insurance policy for the property, subject to approval of the risk management department. This insurance shall be in effect as long as the encroachment exists in the public right-of-way. Failure to continue to provide the insurance coverage will result in the revocation by the city of the approval and the encroachment shall be removed in accordance with subsections (c)(2) and (3) of this section. A detached building used as a permanent residence by a single housekeeping unit, and two family housing which are two dwelling units sharing a detached building, each dwelling unit of which provides a residence for a single housekeeping unit, also known as a duplex, are exempted from the insurance requirements of this subsection only for the installation of a fence, wall or hedge in the undedicated portion of the right-of-way.

(6) Provision of a signed statement set forth in a covenant acceptable to the city that the property owner shall hold harmless and indemnify the city, its officers and employees for any claims for damage to property and injury to persons arising out of the grant of the permit or any activity carried on under the terms of the permit.

Upon recording of the above covenant, and not before, the director shall approve a permit for the construction or installation of the temporary encroachment, with the payment of the necessary permit fee by the property owner.
(Ord. No. 9583, § 1, 3-24-83; Code 1980, § 54-105; Ord. No. 11277, § 2(54-105), 7-13-85; Ord. No. 13266, § 2, 5-26-11; Ord. No. 13428, § 2, 1-23-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-192. Service road adjacent to Brickell Avenue.

(a) Except for Lot 1, Gifford and Highleyman, P.B. 3, Pg. 38; Lot 39, Block B, Mary and William Brickell Subdivision, P.B. B, Pg. 96; and Lot 9, Block G, Brickell Hammock Unit No. 1 Extension, P.B. 7, Pg. 87, it is required that a 70-foot-wide service road be provided along the southeasterly side of, and parallel to, Brickell Avenue, between Southeast 15th Road and Southeast 25th Road.

(b) If the owner(s) of property along this portion of Brickell Avenue wish to install a sign, for purposes of building identification, in the landscaped area between Brickell Avenue and the parallel service road, a request, in writing, must be addressed to the director of the department of resilience and public works, following the guidelines and procedures set forth in section 54-191, including the recording of a covenant to run with the land for the installation of said sign.

(c) The design for such a sign must comply with all applicable regulations concerning signs. In addition, the design and placement of this sign shall be approved by the director of the planning department and the director of the department of resilience and public works.
(Ord. No. 9583, § 1, 3-24-83; Code 1980, § 54-106; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-193. Illegal encroachment.

(a) When any owner of property within the city shall cause the construction or installation of an encroachment within the dedicated right-of-way, or when said property owner shall cause the construction or installation of an encroachment within the undedicated area between the

platted or dedicated right-of-way line and the base building line, and a covenant and permit have not been granted as set forth in section 54-191, the director of the department of resilience and public works, upon being notified of the encroachment, shall give notice to the property owner, by certified letter, of the encroachment, and shall require the removal of said encroachment within 30 days of the date of said certified letter.

(b) If the property owner shall fail or refuse to remove the encroachment within the specified time period, the director shall cause the encroachment to be removed, and a lien shall be placed against the property for the cost of said removal.

(c) No permit or covenant to run with the land shall be granted "after the fact" to allow any illegal encroachment in the dedicated right-of-way, except existing encroachments authorized pursuant to subsection 54-191(b).

(d) The director of resilience and public works may permit an owner of a property to legalize an existing illegal encroachment in the area between the dedicated right-of-way line and the base building line subject to the owner completing the procedure as set forth in subsections 54-191(a) and (c).
(Ord. No. 9583, § 1, 3-24-83; Code 1980, § 54-107; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

City Code cross reference—Encroachments on or in rights-of-way or easements, § 55-14.

Secs. 54-194—54-220. Reserved.

ARTICLE VI. SIDEWALK AND STREET CAFES*

Sec. 54-221. Statement of purpose.

(a) The primary function of sidewalks is for pedestrian movement and sidewalk cafes shall not interfere with their use.

(b) The primary functions of on-street parking are to provide access to destinations along a street, aid in speed reductions, and provide a buffer between the sidewalk edge and moving traffic.

(c) Sidewalk and street cafes must comply with all Americans with Disabilities Act ("ADA") requirements and regulations.

(d) A safe, secure and comfortable environment will be maintained for pedestrians using the public right-of-way.

(e) Sidewalk and street cafes shall enhance the vitality of the street environment.

(f) Sidewalk and street cafes shall be compatible with adjacent streetscape elements in terms of design and construction.
(Ord. No. 13123, § 2, 1-14-10; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-222. Permit required.

Operating a sidewalk and/or street cafe on city rights-of-way shall be unlawful without a permit. No person shall conduct business as herein defined without first obtaining a permit from the director of the department of resilience and public works and paying the fee therefor to the director of finance or his/her designee and the department of off-street parking. It shall be unlawful for any person to operate a sidewalk and/or street cafe on any city right-of-way except as provided by this article.
(Ord. No. 9848, § 1, 6-14-84; Code 1980, § 54-108; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-223. Definitions.

As used in this article:

Cafe zones means any public sidewalk area within the city that complies with the requirements of article VI of this chapter.

Director means the director of the department of resilience and public works.

*__Editor's note—__Ord. No. 14035, § 2, adopted November 18, 2021, changed the title of article VI from "Sidewalk cafes" to "Sidewalk and street cafes."

Food establishment means an establishment serving prepared food to be consumed on or off premises.

Intervenor means a person whose interests in the proceeding are adversely affected in a manner greater than those of the general public. A person shall be entitled to the presumption of Intervenor status if the person owns the subject property or owns property abutting the subject property. Furthermore, a person shall be entitled to intervenor status if the person owns property within a 500-foot radius from the subject property but is not the property owner or abutting property owner and has a particular interest in the application that is different in kind and degree than the general public. Abutting shall mean to reach or touch; touch; touch at the end or be contiguous with; join at a border or boundary; or terminate on and includes properties across a street or alley. A person recognized by the decision-making body, including the planning, zoning, and appeals board and the city commission, as an intervenor may make a presentation, call and examine witnesses, conduct cross-examinations of witnesses, introduce exhibits, rebut evidence, and make final arguments in the order as decided by the chair of the body to effectuate orderly and efficient proceedings.

On-street parking/parking lane means that area within the public right-of-way designated for vehicular parking without obstructing the flow of travel lanes generally located between the edge of vehicular travel lanes and the front of sidewalks.

Permit means a grant of authority by the city to operate a sidewalk and/or street cafe, subject to compliance, as a condition precedent to the initial issuance of such permit and any renewals thereof with all requirements, conditions or criteria set forth in this article for the issuance and maintenance of a sidewalk and/or street cafe permit. A permit shall be valid for a maximum of one year in duration and shall be renewable on an annual basis upon full compliance with all application requirements.

Permittee means the recipient of a sidewalk cafe or street cafe permit under the terms and provisions of this article.

Sidewalk means that portion of the street between the curb lines or the lateral lines of a non-driving lane separated by curb or bollards and the adjacent property lines where a five-foot minimum clearance is available to and intended for use by pedestrians.

Sidewalk cafe means the placing, locating, or permitting of the placing or locating of outdoor furniture, including but not limited to, chairs and tables within the sidewalk area adjacent to a business licensed to operate as a restaurant or take-out food establishment.

State road shall mean those roadways that are part of the state highway system under the jurisdiction of the Florida Department of Transportation.

Street cafe means the permitted placing or locating of outdoor furniture, including but not limited to, chairs and tables within the on-street parking area adjacent to a business licensed to operate as a restaurant or take-out food establishment.

(Ord. No. 9848, § 1, 6-14-84; Ord. No. 10217, § 1, 1-8-87; Ord. No. 10693, § 1, 1-11-90; Ord. No. 10854, § 1, 3-14-91; Ord. No. 11053, § 2, 3-25-93; Code 1980, § 54-109; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13585, § 2, 1-14-16; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-224. Fees and security deposit.

(a) *Sidewalk cafe.*

(1) A non-refundable application fee and initial inspection fee of $450.00 shall accompany the sidewalk cafe application.

(2) The fee for an annual permit for establishing or maintaining a sidewalk cafe shall be $13.50 per square foot of usable right-of-way area, as determined by the department of resilience and public works. The sidewalk cafe permit year shall begin on October 1 and end on September 30. The fee for any sidewalk cafe permitted during the permit year shall be prorated on a monthly basis to the end of the current permit year. The full annual permit fee

shall be due and payable on or before October 1. Payment received more than ten calendar days after the due date shall be charged a late fee of ten percent of the payment amount due. Failure to make a required payment within 30 calendar days of the due date shall constitute a basis for and result in immediate license suspension and forfeiture to any right and interest to the security deposit or performance bond.

(3) Failed permit inspections are subject to a reinspection fee of $95.00.

(4) Security deposit. Upon issuance of the permit, the permittee shall provide a security deposit in an amount sufficient to secure one-quarter of the permit fee. All documentation, including the form of the security deposit, shall be subject to the approval of the city attorney as to form and correctness. In the event the permittee fails to make an annual payment within 30 days of the date due, the permittee shall forfeit any right and interest to the security deposit, whichever may be applicable, and the entire amount of the security deposit shall be retained by the city or its designee. The permittee shall have no recourse against this retention by the city when payment by the permittee is untimely.

(b) *Street cafe.*

(1) A non-refundable application fee and initial inspection fee of $450.00 shall accompany the street cafe application to be submitted to the city.

(2) In addition to the application fee required pursuant to subsection 54-224(b)(1), there shall also be an annual permit fee for maintaining a street cafe to be paid to the department of off-street parking, which shall be determined by the department of off-street parking. The street cafe permit shall begin on October 1 and end on an annual basis. The full amount for a permit fee shall be due and payable seven calendar days in advance of the effective term of the permit. Payment received more than ten calendar days after the due date shall be charged a late fee of ten percent of the payment amount due. Failure to make a required payment within 30 calendar days of the due date shall constitute a basis for and result in immediate suspension of the permit and forfeiture to any right and interest to the security deposit or performance bond.

(3) Failed permit inspections are subject to a reinspection fee of $95.00.

(4) Security deposit. Upon issuance of the permit, the permittee shall provide a security deposit in an amount sufficient to secure three times the amount of the permit fee. All documentation, including the form of the security deposit, shall be subject to the approval of the city attorney as to form and correctness. In the event the permittee fails to make an annual payment within 30 days of the date due, the permittee shall forfeit any right and interest to the security deposit, whichever may be applicable, and the entire amount of the security deposit shall be retained by the city or its designee. The permittee shall have no recourse against this retention by the city when payment by the permittee is untimely.

(c) *Waiver of fees.* The city commission may waive or reduce any or all fees described in subsections (a)(1), (a)(2), (a)(3), (a)(4), (b)(1), (b)(2), (b)(3), and (b)(4) by resolution upon a determination that it is in the best interests of the city.

(Ord. No. 9848, § 1, 6-14-84; Ord. No. 10217, § 1, 1-8-87; Ord. No. 10658, § 3, 10-12-89; Ord. No. 10693, § 1, 1-11-90; Ord. No. 10854, § 1, 3-14-91; Ord. No. 11053, § 2, 3-25-93; Code 1980, § 54-111; Ord. No. 11280, § 2, 7-13-95; Ord. No. 12228, § 1, 5-9-02; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13195, § 5, 9-27-10; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13585, § 2, 1-14-16; Ord. No. 13682, §§ 2—5, 5-25-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14035, § 2, 11-18-21; Ord. No. 14433, § 3, 1-8-26)

Editor's note—Sections 2—5 of Ord. No. 13682, adopted May 25, 2017, state the following: "Section 2. The sidewalk

cafe permit fees imposed by Section 54-224(b) of the City Code, the annual permit of $11.50 per square foot of useable

sidewalk area, and Section 54-224(d) of the City Code, the required security deposit, are hereby waived for downtown sidewalk cafes located in the area bounded by the west side by Northwest/Southwest 1st Avenue on the west, by the north side of Northwest/Northeast 1st Street on the north, Biscayne Boulevard on the east, and by the south side of Southwest/Southeast 1st Street on the south, as further described in Exhibit "A".

Section 3. The waiver period for eligible sidewalk cafes, as described in Section 2 above, shall be during the remainder of the construction of the Project until the City and any other public agencies that have jurisdiction over the Project, as applicable, have determined that the Project has achieved substantial completion in the area described in Section 2. This Ordinance will automatically sunset once that date of substantial completion is confirmed by the Public Works Director.

Section 4. This waiver only applies to sidewalk cafe permit fees imposed by Sections 54-224(b) and Section 54-224(d) of the City Code.

Section 5. This Ordinance does not waive sidewalk cafe fees imposed by Section 54-224(a) of the City Code, the non-refundable application fee of $175.00 and the initial inspection fee of $10.00, the sidewalk cafe fees imposed by Section 54-224(c) of the City Code, the failed permit inspection fee, or any other fees including but not limited to payment of the BTR, payment of the CU, any related inspections, or any similar requirements, or fees."

Sections 2—6 of Ord. No. 13968, adopted February 25, 2021, state the following: "Section 2. The annual permit fee of $11.50 per square foot of usable sidewalk space for sidewalk cafes required by Section 54-224(b) of the City Code and the security deposit required by Section 54-224(d) of the City Code are hereby waived for all sidewalk cafes in the City.

Section 3. The waiver period for sidewalk cafes, as described in Section 2 above, shall be for the remainder of the COVID-19 Restaurant Recovery Program.

Section 4. This Ordinance does not waive sidewalk cafe fees imposed by Section 54-224(a) of the City Code, the non-refundable application fee of $175.00 and the initial inspection fee of $10.00, the sidewalk cafe fees imposed by Section 54-224(c) of the City Code, the failed permit inspection fee, or any other fees including but not limited to payment of the BTR, payment of the CU, any related inspections, or any similar requirements or fees.

Section 5. The credit granted to a sidewalk cafe permittee pursuant to this Ordinance shall be for 2021-2022 Fiscal Year and is limited to those fees imposed by Sections 54-224(b) and Section 54-224(d) of the City Code.

Section 6. This Ordinance will shall automatically sunset upon the termination of the COVID-19 Restaurant Recovery Program. At such time, all fees for sidewalk cafe permits shall be due and owing unless a credit as authorized by this Ordinance applies.

Sec. 54-225. Permit application.

Application for a permit to operate a sidewalk and/or street cafe shall be made at the department of resilience and public works in a form deemed appropriate by the director. Such application shall include, but not be limited, to the following information:

(1) Name and address of the applicant;

(2) A copy of a valid city business license to operate a restaurant or a take-out food establishment adjacent to the sidewalk area which is the subject of the application;

(3) A copy of current liability insurance;

(4) A current survey (certified if required by other agencies having jurisdiction over the area) of the sidewalk area including adjacent roadway and property lines;

(5) A drawing (minimum scale of one-fourth inch equals one foot) showing the layout and dimensions of the existing sidewalk area, parking lane, and adjacent private property, proposed location, size and number of all outdoor furniture, including but not limited to, tables, chairs, umbrellas, location of doorways, location of trees, parking meters, bus shelters, sidewalk benches, trash receptacles, glare screens, menu boards, heaters, fans, planters and any other sidewalk obstruction either existing or proposed within the pedestrian area;

(6) Photographs, drawings, or manufacturers' brochures fully describing the appearance of all proposed tables, chairs, umbrellas, or other objects related to the sidewalk and/or street cafe;

(7) Photograph of the subject right-of-way where sidewalk and/or street cafe is proposed;

(8) A right-of-way encroachment and removal agreement provided by the department of resilience and public works and executed by the permittee and the director in a form acceptable to the city attorney; and

(9) Proof that approval of any street cafe permit application will not subject the permittee to non-compliance in accordance

with the any and all of the city's requirements and regulations and any agreements or covenants governing the food establishment. In the event granting a street cafe permit would make the applicant not comply with parking requirements, the applicant may apply for a waiver pursuant to the Miami 21 Code and/or apply for a parking waiver pursuant to chapter 35 of the City Code and provide payment into the designated parking trust fund for the property or the transportation trust fund as established by chapter 35 of the City Code, whichever is applicable.

(b) Applications shall be reviewed by the following departments: resilience and public works, planning, zoning, risk management, and finance. For street cafe permit applications, the department of off-street parking shall be an additional department to review the application. Building department review is required for any installations, lighting, electrical connections, fans, and heaters.

(c) Within 30 days of receipt of a completed application, the director shall approve or deny the permit.

(d) The applicant shall provide proof of necessary insurance prior to receiving the permit.
(Ord. No. 9848, § 1, 6-14-84; Ord. No. 10854, § 1, 3-14-91; Code 1980, § 54-112; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13195, § 5, 9-27-10; Ord. No. 13585, § 2, 1-14-16; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-226. Permit requirements.

(a) No person shall establish a sidewalk and/or street cafe on any public street or sidewalk unless such person has obtained a valid permit to operate that sidewalk and/or street cafe in such a manner pursuant to this article.

(b) Permits shall be issued only to validly licensed restaurants or food establishments that wish to provide tables and chairs on the sidewalk(s) and/or on-street/parking lanes adjacent to their businesses for use by the general public.

(c) In the Coconut Grove central commercial district, permits shall be issued to sidewalk cafes in conjunction with "food establishments" and validly licensed restaurants, provided the establishment provides required off-street parking at a rate of one parking space per 100 square feet for the sidewalk cafe area or pays a mitigation fee in lieu thereof, as described in section 35-224 herein, in addition to other required off-street parking and the sidewalk cafe permit fee. For purposes of this article, references to specific districts are solely for purposes of delineating affected geographic areas subject to this section and shall not convey any rights under the Miami 21 Code, the zoning ordinance of the City of Miami, Florida ("Miami 21 Code"), as amended or superseded.

(d) No sidewalk and/or street cafe permit shall be issued by the city within any state road right-of-way in the absence of an approval from the Florida Department of Transportation.

(e) No street cafe permit shall be issued by the city within any roadway under Miami-Dade County's jurisdiction in the absence of an approval from the Miami-Dade County Department of Transportation and Public Works ("DTPW").

(f) No food establishment located in the Coconut Grove business improvement district except for on Fuller Street or located in the Midtown Community development district shall be eligible to receive a street cafe permit. Solely for the purposes of the street cafe permit, the Coconut Grove Business Improvement District shall mean all of the commercial properties consisting of an 18 block area of the central commercial core of Coconut Grove as more particularly described in Resolution No. R-08-0455 with the exception of the entirety of Fuller Street. Solely for the purposes of the street cafe permit, the Midtown Community development district shall mean the geographic area encompassing approximately 57 acres in an area bounded by the Florida east coast right-of-way on the east, Northeast 29th Street on the south, North Miami Avenue on the west, and Northeast

36th Street on the north, all as depicted in Exhibit "C" of Miami-Dade County Ordinance No. 03-271.
(Ord. No. 9848, § 1, 6-14-84; Ord. No. 11053, § 2, 3-25-93; Code 1980, § 54-113; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13585, § 2, 1-14-16; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-227. Standards and criteria for application review.

The following standards and criteria shall be used in reviewing the drawing required in subsection 54-225(a)(5):

(1) Sidewalk and/or street cafes are restricted to the frontage of the licensed restaurant or food service establishment to which the permit is issued; or within the contiguous frontage of the building where the licensed restaurant or food service establishment is located, provided that written approval is supplied by the building owner and any affected lessee.

(2) No tables and chairs will be permitted within five feet of a pedestrian crosswalk, fire hydrant, bus stop, taxistand, or counter service window.

(3) Sidewalks shall be a minimum of nine feet in width, not including the curb. Subject to written approval of the property owner, a warrant issued in accordance with the Miami 21 Code and approval of the director of the resilience and public works department, or his/her designee, a portion of the required nine feet of width may be provided on an Americans with Disabilities Act ("ADA") compliant sidewalk located on private property abutting the right-of-way line. All regulations stated in this article, except the permit fee, shall be applicable to any areas of private property included in the sidewalk permit application.

(4) Sidewalk cafes shall be located in such a manner that a minimum five-foot-wide clear pedestrian path is maintained at all times. In areas of congested pedestrian activity, the director is authorized to require a wider pedestrian path, as circumstances dictate. The pedestrian path zone surrounding the sidewalk cafe area shall not be encumbered in any way by the placement of menu boards, planters, or bicycles affixed or leaned against the sidewalk cafe enclosure. Menu boards will be allowed within the sidewalk cafe footprint and shall have no advertising other than the menu and restaurant information.

(5) Street cafes shall be protected and separated from traffic at all times with American Association of State Highway Transportation Officials' ("AASHTO") approved temporary water filled barriers, temporary concrete barrier systems, or other AASHTO approved traffic impact products to form a physical barrier around the street cafe perimeter to be paid for and maintained by the permittee. All physical barriers shall not be more than 36 inches in height. Items placed along the perimeter of a street cafe shall not be located within street intersection visibility triangle as defined in section 54-1 of the City Code and shall not reduce the existing travel lanes' width. Proposed material and design of screening shall be paid for and maintained by the permittee upon approval by the resilience and public works department. No rigid materials are permitted to be used along the traffic side of the temporary barriers. Glare screens shall not be permanently attached to the barrier walls and may require removal during non-business hours. Endorsements/advertising are not permitted on enclosures, umbrellas, tableware, and covers except for the name and/or logo of the restaurant and/or government, business improvement district, community development agency, or special district entity.

(6) Objects used to form a physical barrier around the sidewalk cafe perimeter shall be permitted upon approval by the resilience and public works department. All physical barriers shall have a two-

foot clear path every 25 feet and shall not be more than 36 inches in height. Items placed along the perimeter of a sidewalk cafe shall not be located within street intersection visibility triangles as defined in section 54-1 of the City Code. Proposed materials and design shall be approved by the resilience and public works department prior to placement by the permittee. No obstructions of stormwater structures or gutters are allowed at any time. Glare screens shall not be permanently attached to the sidewalk, shall not be more than 36 inches in height, and shall be removed during non-business hours. Endorsements/ advertising are not permitted on enclosures, umbrellas, tableware, and covers except for the name and/or logo of the restaurant and/or government, business improvement district, community development agency, or special district entity, as applicable.

(7) No portion of any object placed in the sidewalk cafe shall extend into the five-foot pedestrian path.

(8) Tables, chairs, umbrellas, decking, and any other objects provided with the sidewalk and/or street cafe shall be of quality design, materials, and technique; both to ensure the safety and convenience of users, and to enhance the visual and aesthetic quality of the urban environment. Design, materials, and colors shall be harmonious with an urban environment so as to reduce visual clutter and enhance aesthetics. Landscape maintenance must be done on a regular basis to ensure the health of plant materials.

(9) Awnings, umbrellas and other decorative material shall be fire retardant pressure treated, or manufactured of fire resistive material.

(10) In certain areas within city where streetscape enhancements have been installed changes are not permitted to the sidewalk paving and must not be damaged by enclosures, signage, etc. Sidewalk and/or street cafe owner shall preserve and protect all existing trees and plantings in the public right-of-way to the satisfaction of the resilience and public works department and replace, entirely at the permittee's expense, any trees that are damaged as a result of the sidewalk and/or street cafe. Trees shall not be used to support wires or to place any signs, screws, nails, staple, ropes, brackets, banding or other hardware.

(11) Sidewalk cafe furnishings and fixtures, including any required bar unit, servers' work station, or greeting stations shall be portable and shall not be permanently attached to the wall of the abutting building, the sidewalk, or screen. Bus stations shall not be permitted.

(12) Umbrella height must be 84 inches above the sidewalk (highest point of the sidewalk if not level).

(13) A greeting station can be located closer to the sidewalk, but shall remain within the confines of the sidewalk cafe footprint and a clear path maintained for an unobstructed access to the main entrance, and along the pedestrian clear path area.

(14) Planters may be placed within the sidewalk and/or street cafe but must be secured to ensure that they do not move. If planters are on wheels they must be locked.

(15) Umbrellas and screens may be supported by a socket in the sidewalk. The resilience and public works department must approve the coring and capping method in advance and holes must be filled or capped when not in use.

(16) Lighting, fans and heaters are optional items. Light levels shall be low and only directed towards the sidewalk cafe and not the street. Lighting, fans, and heaters shall comply with established standards and criteria and with all applicable codes.

(17) All portions of the sidewalk cafe that are located on private property not within the public right-of-way shall comply with city zoning regulations.

(Ord. No. 9848, § 1, 6-14-84; Ord. No. 10217, § 1, 1-8-87; Ord. No. 10693, § 1, 1-11-90; Ord. No. 10854, § 1, 3-14-91; Code 1980, § 54-114; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13585, § 2, 1-14-16; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-228. Indemnification and insurance.

(a) Applicant agrees to indemnify, defend, and hold harmless the city, its officials, employees, agents, and, if applicable, its instrumentalities and each of them from and against all loss, cost, penalties, fines, damages, claims of any nature, including expenses and attorney's fees, and any and all liabilities by reason of injury to or death of any person, damage to, destruction, or loss to any property including the city, its instrumentalities, officials, employees, and agents arising out of or in connection with the performance or nonperformance of the services contemplated by this permit/agreement which is directly or indirectly caused, in whole or in part, by any act, omission, default, liability, or negligence, whether active or passive of the applicant, its employees, agents, servants, or contractors, unless such act or omission is solely caused by the city, its instrumentalities, officials, employees, and agents. The applicant further agrees to indemnify, defend, and hold harmless the city, its instrumentalities, officials, employees, and agents against all liabilities which may be asserted by an employee or former employee of the applicant or any of its contractors as provided above for which the applicant's liability to such employee or former employee would otherwise be limited to payments under workers' compensation or similar laws. In addition, the applicant understands and agrees that except where caused by the negligence or misconduct of the city, its instrumentalities, officials, employees, or agents, the city shall not be liable for any loss, injury, or damage to any personal property or equipment of the applicant, its employees, agents, contractors, business licensees, or invitees placed on city property and its instrumentalities and shall be at the sole risk of the applicant thereof. The applicant shall ensure that adequate safety precautions are in effect at all times during the term of the permit. It shall be a further condition precedent to the issuance of any such permit for placement of such sidewalk or street cafe in the public right-of-way that the permittee is/are jointly and severally responsible, at each permittee's sole expense, for any damages regarding restoring the public right-of-way to its original condition before installation of facilities. The indemnification shall survive termination of the permit/agreement.

Prior to the issuance of any such permit, the applicant shall submit to the city a certificate of insurance with respect to commercial general liability with limits of at least $500,000.00 per occurrence, $1,000,000.00 policy aggregate, and any endorsements thereto, including, but not limited to, premises and operations liability, personal and advertising injury, products and completed operations, and liquor liability. The certificate must reflect primary and noncontributory language and list the city as an additional insured on all third-party liability policies including liquor. The insurance herein required shall remain in full force and effect at all times during the entire term of the permit. Additionally, all such insurance shall be subject to review and approval by the city's risk management department.

All insurance policies required above shall be issued by companies authorized to do business under the laws of the State of Florida with the following qualifications:

The company must be rated no less than "A-" as to management and no less than Class "V" as to financial strength by the latest edition of Best's Insurance Guide, published by A.M. Best Company, Oldwick New Jersey, or its equivalent subject to the approval of the city's risk management department. Companies not meeting the above rating requirements shall submit proof of reinsurance from qualifying insurers having or exceeding the required rating criteria.

The registrant/applicant shall provide 30 days prior written notice of cancellation to the city for any reason other than non-payment of premium in which ten days' notice shall apply.

(b) The permittee shall furnish the city with a certificate of insurance substantially in accordance to the insurance requirements contained in Exhibit A, available at the department of resilience and public works. It is understood and agreed that all coverage provided by the applicant shall be primary and non-contributory, and its insurance shall have no right of recovery or subrogation against the city and if applicable, any of its instrumentalities. The department of resilience and public works may modify the insurance requirements, if warranted.

(Ord. No. 9848, § 1, 6-14-84; Code 1980, § 54-115; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13585, § 2, 1-14-16; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13918, § 2, 9-24-20; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-229. Form and conditions of permit.

The permit shall be issued on a form deemed suitable by the director. In addition to naming the permittee and any other information deemed appropriate by the director, the permit shall contain the following conditions:

(1) Each permit shall be effective for one year, starting October 1st and ending September 30th, subject to annual renewal. Fees for the initial year shall be prorated on a monthly basis. Permits are subject to annual renewals and applications shall be received by the department prior to October 1st.

(2) The permit issued shall be personal to the permittee only and shall not be transferable in any manner.

(3) The permit may be suspended by the director when necessary to clear sidewalk and on-street parking areas for a "community or special event" authorized by a permit issued by the police department.

(4) The director may require the temporary removal of sidewalk and/or street cafes when street, sidewalk, or utility repairs necessitate such action.

(5) The department of resilience and public works or the police department may require the removal or relocation of all or parts of the sidewalk and/or street cafe in emergency situations.

(6) The city and its officers and employees shall not be responsible for sidewalk and/or street cafe components relocated during emergencies.

(7) The permit shall be specifically limited to the area shown on the "exhibit" attached to and made part of the permit.

(8) The permittee shall use positive action to assure that its use of the sidewalk in no way interferes with or embarrasses sidewalk users or limits their free unobstructed passage.

(9) The sidewalk and/or street cafe shall be opened for use by the general public and such use shall not be restricted to patrons of the permittee.

(10) Permittees holding a local business tax receipt or certificate of use limited to take-out food shall not be permitted to provide table service in the sidewalk and/or street cafe. However, this shall not relieve the permittee of the responsibility to maintain the sidewalk and/or street cafe as required in this section.

(11) Tables, chairs, umbrellas, and any other objects provided with a sidewalk and/or street cafe shall be maintained with a clean and attractive appearance and shall be in good repair at all times.

(12) The right-of-way covered by the permit shall be maintained in a neat and orderly appearance at all times and the area shall be cleared of all debris on a periodic basis during the day, and again at the close of each business day.

(13) No advertising signs or business identification signs shall be permitted in the public right-of-way; this shall not prohibit the use of umbrellas, glare screens, or menu boards carrying restaurant logotypes. Size and location of menu boards shall be approved by city.

(14) No tables and chairs nor any other parts of sidewalk cafes shall be attached, chained, or in any manner affixed to any tree, post, sign, or other fixtures, curb or sidewalk within or near the permitted area. No additional outdoor seating authorized herein shall be used for calculating seating requirements pertaining to location of, applications for, or issuance of a liquor license for any establishment or be used as the basis for computing required seating for restaurants and dining rooms or as grounds for claiming exemption from such requirements under the provisions of any city ordinance or state law.

(15) Except as provided in section 54-227, the permit covers only the public right-of-way. Tables and chairs on private property will be governed by other applicable regulations. The permit shall include a reference to the applicant complying with all requirements for sidewalk and/or street cafes set forth in in article VI of this Code. Where an applicant that is already legally operating a sidewalk and/or street cafe at a leased location submits a lease executed prior to March 1, 2016, the owner consent requirement stated herein shall not apply until such time as the current term of such lease ends.

(16) The permittee shall notify the director of resilience and public works, in writing, when operation of the sidewalk and/or street cafe begins. Said notice shall be delivered to the director within 24 hours of such commencement.

(17) The issuance of a sidewalk and/or street cafe permit does not grant or infer vested rights to use of the right-of-way by the permittee. The city retains the right to deny the issuance of a permit or the renewal of a permit.

(18) No entertainment or sound speakers shall be placed within or adjacent to the right-of-way in a manner which causes persons to accumulate and obstruct the pedestrian path. Entertainment and sound speakers shall comply with the city's noise regulations.

(Ord. No. 9848, § 1, 6-14-84; Ord. No. 10217, § 1, 1-8-87; Ord. No. 10693, § 1, 1-1-90; Code 1980, § 54-116; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13585, § 2, 1-14-16; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-230. Denial, revocation, or suspension of permit; removal and storage fees; emergencies.

(a) The director may deny, revoke, or suspend a permit for any sidewalk and/or street cafe authorized in the city if it is found that:

(1) Any necessary business or health permit has been suspended, revoked, or cancelled.

(2) The permittee does not have insurance which is correct and effective in the minimum amount described in section 54-228, or has failed to make a quarterly permit fee payment when due.

(3) Changing conditions of pedestrian or vehicular traffic cause congestion necessitating removal of sidewalk and/or street cafe. Such decision shall be based upon findings of director that the minimum five-foot pedestrian path is insufficient under existing circumstances and represents a danger to the health, safety, or general welfare of pedestrians or vehicular traffic.

(4) The permittee has failed to correct violations of this article or conditions of his/her permit within three days of receipt of the director's notice of same delivered in writing to the permittee.

(5) The permittee has failed to take positive actions to prohibit violations from recurring.

(6) The permittee has failed to make modifications within three days of receipt of the director's notice of same delivered in writing to the permittee.

(7) Tables, chairs, and other vestiges of said sidewalk and/or street cafe in the right-of-way may be removed by the department of resilience and public works, and a reasonable fee charged for labor, transportation, and storage, should the permittee fail to remove said items within 24 hours of receipt of the director's final notice to do so for any reason provided for under this article. If the final notice is sent based on subsection (a)(2) or (3) of this section, the removal action shall become effective upon the receipt of such notice and the permittee shall have four hours to remove said items or to, within that time, request, in writing, a meeting with the department of resilience and public works director to contest the final notice. The fees incurred by the department of resilience and public works and/or other agents of the city who implement the removal shall be billed to the violator and if the fees remain unpaid for 30 days, shall be imposed as a municipal lien against the real and personal property of the violator and shall be recorded in the public records of Miami-Dade County, and may be foreclosed by the city as such, pursuant to F.S. § 166.021. In addition, the city may utilize the code enforcement procedures set forth in chapter 2, article X, to address any violations.

(b) Upon denial or revocation, the director shall give notice of such action to the applicant or the permittee in writing stating the action which has been taken and the reason thereof. If the action of the director is based on subsection (a)(2) or (3) of this section, the action shall be effective upon giving such notice to the permittee. Otherwise, such notice shall become effective within ten days unless appealed to the city commission.

(Ord. No. 9848, § 1, 6-14-84; Ord. No. 10693, § 1, 1-11-90; Code 1980, § 54-117; Ord. No. 11280, § 2, 7-13-95; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13585, § 2, 1-14-16; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14035, § 2, 11-18-21)

Sec. 54-231. Appeals instituted by the permittee.

(a) Appeals shall be initiated within ten days of a permit denial or revocation by filing a written notice of appeal with the city manager, and a copy of same delivered the same day to the director. Any revocation effective immediately may also be appealed to the city commission by such filing within ten days.

(b) The city manager shall place the appeal on the first non-planning and zoning city commission agenda for which proper notice can be given and shall notify the director of resilience and public works thereof. At the hearing upon appeal, the city commission shall hear and determine the appeal, and the decision of the city commission shall be final and effective immediately.

(c) The filing of a notice of appeal by a permittee shall not stay an order by the director to remove a sidewalk and/or street cafe or parts thereof. Vestiges of the sidewalk and/or street cafe shall be removed immediately, as set out in section 54-230, pending disposition of the appeal and final decision of the city commission.

(d) A permit which has been suspended or revoked pursuant to subsections 54-230(a)(1), (2) or (4) may be reinstated by the director of the department of resilience and public works at such time as the permittee has demonstrated that the violation has been corrected to the satisfaction of the department of resilience and public works.

(e) A new permit shall not be issued or an existing permit shall not be reinstated for a minimum period of six months after said issu-

ance or reinstatement has been denied by the director of resilience and public works, or in the event of an appeal, by the city commission.
(Ord. No. 9848, § 1, 6-14-84; Ord. No. 10693, § 1, 1-11-90; Code 1980, § 54-118; Ord. No. 13123, § 2, 1-14-10; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14035, § 2, 11-18-21)

Editor's note—Ord. No. 14035, § 2, adopted November 18, 2021, changed the title of section 54-231 from "Appeals" to "Appeals instituted by the permittee." The historical notation has been preserved for reference purposes.

Sec. 54-232. Appeals for street cafe permit approval.

(a) *Notice.* Within 48 hours of issuing the intended decision to approve a street cafe permit, the director shall notify the permittee and post a notice of the intended decision on or adjacent to the subject property in a location where it is visible to the general public. The posting shall provide a general description and location of the proposed street cafe permit. The intended decision shall also be sent to the business improvement districts of the city in that area, as applicable.

(b) *Issuance of permit.* If no appeal is received within ten calendar days of the issuance of the intended decision pursuant to subsection 54-232(c) of the City Code, the street cafe permit shall be issued. The property owner shall ensure that the street cafe permit is displayed in the business's storefront which shall be visible to the public at all times.

(c) *Appeals to the Planning, Zoning, and Appeals Board ("PZAB").* Any aggrieved party having standing under state law may appeal to the PZAB any decision of the director on matters relating to the approval of a street cafe by filing a written notice of appeal to the director as established in chapter 54, article VI of the Code within ten calendar days after the date of the intended decision. The notice of appeal shall include the decision appealed from and the reasons or grounds for the appeal. A person or entity whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. PZAB shall hear and consider all facts material to the appeal. PZAB may affirm, modify, or reverse the decision of the director.

All appeals to the PZAB in accordance with this article shall be accompanied by a fee of $315.00 except for appeals initiated by abutting property owners as defined in the Miami 21 Code for which a street cafe is sought. Appeals by a member who owns property within 500 feet of the subject property shall pay a reduced appeal fee of $157.50.

(d) *Appeals to the city commission.* Any aggrieved party having standing under state law, may appeal to the city commission any decision of the PZAB on matters relating to applications for street cafe permits by filing a written notice of appeal with the office of hearing boards within 15 calendar days after the date of the PZAB decision. The notice of appeal shall include the decision appealed from and the reasons or grounds for the appeal. The city commission shall conduct a hearing de novo as a body of original jurisdiction upon any appeal and/or review from an appealable decision under the terms of this article. A person whose interests in the proceeding are adversely affected in a manner greater than those of the general public may request intervenor status as defined in this chapter. New evidence or materials may be received by the city commission where such evidence or materials are pertinent to a determination of the appeal. The city commission may hear the testimony of witnesses and/or any other evidence offered by any person aggrieved or by any officer, board, or agency of the city affected thereby or by any interested party having an interest in the appeal under state law and may, in conformity with this article and other applicable laws, rules, and regulations, render its decision. The city commission shall hear and consider all facts material to the appeal and may affirm, modify, or reverse, in whole or in part, with or without conditions, PZAB's decision.

All appeals to the city commission in accordance with this section shall be accompanied by a fee of $525.00 plus $4.50 per mailed notice to the adjacent owners within a 500-foot radius. A certified list of said adjacent owners shall be

provided with all appeals. However, no fees shall be assessed for appeals initiated by abutting property owners defined by the Miami 21 Code for which a street cafe permit is sought. Appeals by an individual or entity that owns property within 500 feet of the subject property shall pay a reduced appeal fee of $262.50.

The decision of the city commission shall constitute final administrative review and no petition for rehearing or reconsideration shall be considered by the city. Appeals from decisions of the city commission may be made to a court of law as provided by the Florida Rules of Appellate Procedure.

(e) *Notice.* All public hearings on appeals shall include notice of the time and place of the public hearing mailed at least ten calendar days in advance of the hearing to the owner of the subject property and the owners of the adjacent properties. At least ten calendar days in advance of the hearing, a sign, in compliance with the provisions of section 62-19 of the City Code, shall also be posted on the subject property.

(f) *No street cafe permitted during an appeal.* Upon timely submission of an appeal made pursuant to the requirements of this section, no street cafe that is subject of an appeal is permitted until final disposition of the appeal. A violation of this subsection will automatically result in an additional $500.00 fine payable to the city's parking trust fund applicable to the property or, if not located within a designated parking trust fund district, payable to the city's transportation trust fund established in chapter 35 of the City Code, for each separate violation of this section. (Ord. No. 14035, § 2, 11-18-21)

Sec. 54-233. Enforcement.

Enforcement shall be as prescribed by chapter 2, article X, Code enforcement, and any other remedies as provided by law.
(Ord. No. 13123, § 2, 1-14-10; Ord. No. 14035, § 2, 11-18-21)

Editor's note—Ord. No. 14035, § 2, adopted November 18, 2021, renumbered the former section 54-232 as section 54-233. The historical notation has been preserved for reference purposes.

Secs. 54-234—54-260. Reserved.

ARTICLE VII. NEWSRACKS ON PUBLIC RIGHTS-OF-WAY*

Sec. 54-261. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adoption date means the date the ordinance from which this article derives is adopted on second and final reading by the city commission.

Department means the department of resilience and public works.

Director means the director of the department of resilience and public works or designee.

Distributor means the person, individual, partnership, corporation, association, firm, company, organization or any other legal entity owning or responsible for placing and/or maintaining a newsrack in a public right-of-way.

Modular newsrack means a newsrack, as defined herein below, that is designed with multiple separate enclosed compartments and/or to accommodate at any one time the display, sale and distribution of multiple distinct and separate newspapers or other publications and is subject to all of the provisions of this article as a newsrack.

Newsracks means any self service, electronic, coin operated, or lockable box, container, storage unit or other dispenser installed, used, or maintained for the display, distribution, storage, or sale of written or electronic newspapers, periodicals, or other written or electronic publications which satisfies the requirements set forth in section 54-268 hereinbelow. Electronic newsracks may incorporate additional features such as air quality sensors and security features such as panic functionality or a police panic button to protect the public welfare.

*__Editor's note—__Ord. No. 12053, § 2, adopted April 26, 2001, repealed the former art. VII and enacted new provisions as herein set out. Formerly, art. VII pertained to similar subject matter and derived from Code 1980, §§ 54-131—54-139; Ord. No. 10044, §§ 1—9, adopted Sept. 26, 1985.

Public right-of-way means any dedicated or undedicated public street, highway, sidewalk, parkway or alley.
(Ord. No. 12053, § 2, 4-26-01; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14042, § 2, 1-13-22)

Sec. 54-262. Purpose and criteria.

(a) The purpose of the following is to promote the public health, safety and welfare through the regulation of placement, type, appearance, servicing, and insuring of newsracks on public rights-of-way so as to:

(1) Provide for pedestrian and driving safety and convenience.

(2) Restrict unreasonable interference with the flow of pedestrian or vehicular traffic including ingress into or egress from any residence or place of business, or from the street to the sidewalk by persons exiting or entering parked or standing vehicles.

(3) Provide for public and property safety during hurricane conditions.

(4) Provide reasonable access for the use and maintenance of poles, posts, traffic signs or signals, hydrants, mailboxes and access to locations used for public transportation purposes.

(5) Eliminate, relocate and/or replace newsracks which result in a visual blight. To avoid excessive space allocation for newsracks on the public rights-of-way and eliminate newsracks which unreasonably detract from the aesthetics of adjacent store window displays, landscaping and other improvements.

(6) Facilitate the removal of abandoned newsracks.

(7) Maintain and protect the values of surrounding properties.

(8) Eliminate and avoid unnecessary exposure of the public to personal injury or property damage.

(9) Treat all newspapers equally regardless of their size, content, circulation, or frequency of publication.

(10) Maintain and preserve freedom of the press.

(11) Cooperate to the maximum with distributors.

(12) Protect the city from related lawsuits by imposing insurance and indemnification requirements on persons placing newsracks on public rights-of-way.

(b) The director may initiate a modular newsrack pilot program, including appropriate standards, on a case by case basis provided the program is consistent with all of the provisions of this article for newsracks, unless otherwise noted, and other pertinent city rules, regulations and policies.
(Ord. No. 12053, § 2, 4-26-01)

Sec. 54-263. Permit required; expiration of existing permits and procedures to preserve locations.

(a) No distributor shall place, install, or maintain a newsrack on the public right-of-way without first obtaining a permit, to be renewed annually, for each newsrack in accordance with the provisions of this article.

(b) The permit year shall run from October 1 to September 30 of each year. All permit applications received by the director shall be awarded on a first come, first serve basis in accordance with the provisions of this article, except for those newsracks currently permitted or for which a completed application, as determined by the director, is pending on the adoption date and their existing locations which are preserved, retained and permitted in accordance with subsection 54-263(e).

(c) Failure to timely secure a permit in advance of placing a newsrack on the public right-of-way in accordance with the provisions of this article may result in the removal of the non-permitted newsrack(s) by the city as set forth in subsection 54-270(a). Alternatively, the city may pursue appropriate remedy by the code enforcement division under section 2-811 et seq. of this Code.

(d) Failure to timely secure and pay permit fees shall result in the imposition of a fine of double the permit fee per newsrack which if not paid within 30 calendar days of the original due date shall result in the newsrack(s) being deemed abandoned and subject to removal as set forth in section 54-270(a). Alternatively, the city may pursue appropriate remedy by the code enforcement division under section 2-811 et seq. of this Code.

(e) To ensure fair and impartial treatment of all distributors, all permits for currently permitted newsracks shall expire as of the adoption date. To preserve newsracks currently permitted, or for which a completed application (for existing locations only) is pending on the adoption date, as determined by the director, the distributor shall strictly comply with the following requirements within the established time frames:

(1) Each distributor shall submit in writing to the director, within 15 days of the adoption date, a letter setting forth the express intent to preserve, retain and permit in accordance with the provisions of this article, all newsracks currently permitted or for which a completed application (for existing locations only) is pending on the adoption date, as determined by the director. The letter shall also set forth specific newsracks and their existing locations, which the distributor does not intend to preserve, retain and permit.

(2) Each distributor shall submit to the director, within 30 days of the adoption date, applicable fees for each newsrack and locations specified in the above-mentioned letter, all in accordance with the provisions of this article.

(Ord. No. 12053, § 2, 4-26-01; Ord. No. 13467, § 2, 6-12-14)

Sec. 54-264. Application and issuance of permits.

(a) *Issuing and approving authority.* The issuing and approving authority and coordinator shall be the resilience and public works director. The director is responsible for objectively coordinating and administering the physical placement of newsracks of the type and in the locations and pursuant to the conditions herein specified, and upon compliance herewith is responsible for the issuance of permits.

(b) *Applications.* The applicant shall file with the director a written application for location and installation permit. The application shall contain the following information:

(1) The name, address and telephone number of the distributor who is the owner or principal in responsible charge of the newsrack.

(2) The name, address and telephone number of a responsible person whom the city may notify or contact at any time concerning the applicant's newsracks.

(3) The number of newsracks and the proposed location of each shown on a detailed, dimensional drawing, including measurements, and survey if requested must all be attached to the application by the applicant.

(4) Names of newspapers or periodicals to be contained in each newsrack.

(5) Type or brand of newsracks, including an illustration and description of the newsrack and mount.

(6) A global positioning system (GPS) coordinate, within ten feet accuracy, of each newsrack.

(c) *Procedure.*

(1) The department of resilience and public works and the department of neighborhood enhancement team shall review the application including the applicant's dimensional drawing, detailing the existing physical features surrounding the proposed newsrack location, to determine whether the proposed newsracks are in compliance with the provisions of this article.

(2) The director shall notify the applicant of the number of newsracks and locations of newsracks that have been approved.

Based on the approved newsrack locations, the applicant shall submit to the department an insurance certificate and bond and also the appropriate fee in accordance with sections 54-265 and 54-266 of this Code.

(3) The department shall mark approved placement locations with a template so that distributor's installation crews can easily identify location for newsracks.

(d) *Issuance of permit.* Upon a finding by the director that the applicant is in compliance with the provisions of this article, the director shall issue a permit for the installation of the newsrack by the distributor. Such issuance shall be made within 60 working days of the city's receipt of a completed application as determined by the department.

(1) The original/first permit sticker issued after adoption of this article shall be applied by the department and shall be externally visible when affixed to the upper right corner of the door of the newsrack. Thereafter, the annually issued permit sticker shall be applied by the distributor at the same location where the sticker was previously applied by the department.

(2) Upon payment of applicable fees the director shall issue new permit stickers each year within 30 days after receipt of payment, provided the distributor is otherwise in compliance with the provisions of this article. Failure to timely secure and properly display the issued permit sticker shall result in the imposition of a fine of double the permit fee per newsrack which if not paid within 30 calendar days of issue date shall result in the newsrack being deemed abandoned and subject to removal as set forth in subsection 54-270(a). Alternatively, the city may pursue appropriate remedy by the code enforcement division under section 2-811 et seq. of this Code.

(e) *Denial of permit.* If a permit for the newsrack location applied for is denied, the distributor shall be notified within 60 working days of the city's receipt of a completed application. The applicant shall be advised in writing of the specific cause for the denial. The applicant may apply for an equal number of alternative locations within 30 days of a denial at no additional permit fee.

(f) *Appeals.* Any distributor who has been denied a permit pursuant to the provisions of this article may appeal to the city commission by filing a written request with the city manager, copies to the director and the city attorney requesting an appearance before the city commission to review such denial. An appeal must be submitted in writing to the city manager within ten calendar days from the date of the denial by the director, and shall be scheduled for review by the city commission at the next available regularly scheduled city commission meeting. New information and material may be received and considered by the city commission where such information and material are pertinent to the determination of the appeal, and the city commission shall have the authority to override the decision of the director if the city commission finds that the requested installation of the subject newsrack will not result in danger to the public. If the city commission so determines, it shall direct that the application be granted and the permit issued. An appeal of the decision of the city commission is subject to judicial review as provided by the laws of the State of Florida.

(g) *Additional permits.* If at any time after initial application for a permit a distributor wishes to install additional Newsracks, then subsections (b) and (c) above are to be repeated in accordance with the provisions of this article. Under section 54-265, any additional required returnable bond deposit will be credited to any amount still on account. Additional permit fees shall be in accordance with section 54-266.
(Ord. No. 12053, § 2, 4-26-01; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-265. Insurance and bond requirements.

(a) *Insurance requirement.* Prior to the issuance of a permit by the director, the distributor shall furnish to the city the following:

(1) A certificate of insurance with respect to commercial general liability in an amount not less than $1,000,000.00 per occurrence, $2,000,000.00 policy aggregate, and any endorsements thereto, including, but not limited to, premises and operations liability, personal and advertising injury, products, and completed operations. For electronic newsracks, such insurance shall afford protection in an amount not less than $3,000,000.00 per occurrence. The certificates must reflect primary and non-contributory language and list the city as an additional insured. The certificate must also include coverage for all owned, hired, and non-owned vehicles, if applicable, with a combined single limit of $500,000.00 per accident also listing the city as an additional insured. The insurance herein required shall remain in full force and effect during the entire term of the permit. Additionally, all such insurance shall be subject to review and approval by the city's risk management department.

All insurance policies required above shall be issued by companies authorized to do business under the laws of the State of Florida with the following qualifications:

The company must be rated no less than "A-" as to management and no less than Class "V" as to financial strength by the latest edition of Best's Insurance Guide published by A.M. Best Company, Oldwick New Jersey, or its equivalent subject to the approval of the city's risk management department. Companies not meeting the above rating requirements shall submit proof of reinsurance from qualifying insurers having or exceeding the required rating criteria.

The registrant/applicant shall provide 30 days prior written notice of cancellation to the city for any reason other than non-payment of premium in which ten days' notice shall apply.

(2) Insurance under this section shall run continuously with the presence of the applicant's newsrack on city public rights-of-way, and any termination or lapse of such insurance shall be a violation of this article. Failure to timely continuously maintain the required insurance shall result in the imposition of a fine of double the permit fee per newsrack which if not paid within 30 calendar days of written notice from the city shall result in the newsrack being deemed abandoned and subject to removal as set forth in this article. Alternatively, the city may pursue appropriate remedy by the code enforcement division under section 2-811 et seq. of this Code. Applicant agrees to indemnify, defend, and hold harmless the city, its officials, employees, agents, and, if applicable, its instrumentalities and each of them from and against all loss, cost, penalties, fines, damages, claims of any nature (including but not limited to, libel, slander, invasion of privacy, and unauthorized use of any trademark, trade name, or service mark), including expenses and attorneys' fees, and any and all liabilities by reason of injury to or death of any person, damage to, destruction, or loss to any property including the city, its instrumentalities, officials, employees, and agents arising out of or in connection with the performance or non-performance of the services contemplated by this permit/agreement which is directly or indirectly caused, in whole or in part, by any act, omission, default, liability, or negligence, whether active or passive of the applicant, its employees, agents, servants, or contractors, unless such act or omission is solely caused by the city, its instrumentalities, officials, employees, and agents. The applicant further agrees to indemnify, defend, and hold harmless the city, its instrumentalities, officials, employees, and agents against all liabilities which may be asserted by an

employee or former employee of the applicant or any of its contractors as provided above for which the applicant's liability to such employee or former employee would otherwise be limited to payments under workers' compensation or similar laws. In addition, the applicant understands and agrees that except where caused by the negligence or misconduct of the city, its instrumentalities, officials, employees, or agents, the city shall not be liable for any loss, injury, or damage to any personal property or equipment of the applicant, its employees, agents, contractors, business licensees, or invitees placed on city property and its instrumentalities and shall be at the sole risk of the applicant thereof. The applicant shall ensure that adequate safety precautions are in effect at all times during the term of the permit. It shall be a further condition precedent to the issuance of any such permit for placement of such newsrack in the public right-of-way that the permit holder(s) is/are jointly and severally responsible, at each permit holder's sole expense, for any damages regarding restoring the public right-of-way to its original condition before installation of facilities. The indemnification shall survive termination of this permit/agreement.

(b) *Bond requirement.* No permit shall be issued to any distributor to perform work on, or cut into, the public right-of-way until a bond has been posted in sufficient amount to guarantee compliance with the terms of the permit and to be in force for at least six months after the approved completion of the work. Said bond amount shall be determined as follows:

Total Newsracks Proposed	*Total Returnable Bond*
1 to 25	$1,000.00
26 to 100	$2,500.00
101 and up	$5,000.00

(Ord. No. 12053, § 2, 4-26-01; Ord. No. 13918, § 2, 9-24-20; Ord. No. 14042, § 2, 1-13-22)

Sec. 54-266. Fees.

(a) An initial inspection of location fee of $11.50 per newsrack shall accompany the newsrack permit application. The annual permit fee is $11.50 per newsrack due October 1st and will expire the 30th day of September each year. Fees for the initial year shall be prorated on a monthly basis, and shall be calculated using the following formula:

(1) Initial fee = $0.96 per newsrack multiplied by the number of months remaining in the year.

(2) Failed permit inspections are subject to a re-inspection fee of $5.75.

All of the above fees will be used to defray administrative expenses relating to this article only.

(b) To renew a permit, the distributor shall submit payment for the upcoming full year in advance to the department prior to each October 1st.

(c) Non-conforming newsrack(s) may be subject to removal and if removed shall be subject to removal and storage costs and fees pursuant to subsection 54-270(b).

(d) If the newsrack contains advertising similar to the communication kiosk program, pursuant to the method described in this chapter, the minimum fees to the city will be 40 percent annual gross revenue. After the 50th newsrack provided by the provider, the minimum payment to the city shall be $100,000.00 per year or 40 percent of the gross revenue, whichever is greater. (Ord. No. 12053, § 2, 4-26-01; Ord. No. 13195, § 5, 9-27-10; Ord. No. 13467, § 2, 6-12-14; Ord. No. 14042, § 2, 1-13-22)

Sec. 54-267. Newsrack placement: permitted and specific prohibitions.

(a) Newsracks placement is generally permitted at the following locations only or at other locations approved by the director:

(1) *On sidewalks.* Newsracks shall be situated parallel to the edge of the sidewalk.

A minimum sidewalk space of three feet shall remain clear in front of the newsracks.

(2) *In a grass, dirt, gravel or like area.* Newsracks placed in a grass, dirt, gravel, or like area must be secured to concrete foundations, as required in this article. Notwithstanding the foregoing, newsracks may not be chained or otherwise tied to any poles, tree etc., under any circumstances.

(b) No newsrack shall be placed, installed, used or maintained at the following locations and/or shall be subject to the following restrictions:

(1) Within 60 inches of any roadway unless such placement interferes with safe and convenient use of the public right-of-way in which case the newsrack(s) shall be located to the front of the sidewalk if a swale exists or to the back of the sidewalk if there is no swale.

(2) Within five feet of any marked crosswalk.

(3) Within ten feet of any unmarked crosswalk.

(4) Within ten feet of any fire hydrant, fire call box, police call box or other emergency facility.

(5) Within five feet ahead of, and 15 feet to the rear of, any sign marking a designated bus stop, measured along the edge of pavement.

(6) Within two feet of any bus bench, or plaza bench.

(7) Within ten feet of any advertisement panel located on a transit shelter.

(8) At any location whereby the clear space for passageway of pedestrian is reduced to less than three feet.

(9) Where a protruding portion of the newsrack(s) is on or within 12 inches of any area improved with landscaping, lawn or hedges, or within a three-foot radius of flowers or trees.

(10) Within six inches of any building wall located on the property line.

(11) Within three feet of any display window of any building abutting the sidewalk or parkway or in such a manner as to impede or interfere with the reasonable use of such window display purpose, or within five feet of a building entrance.

(12) Within a three foot radius of mailboxes, signs, parking meters, streetlights or utility poles.

(13) Within visibility triangles at street intersections. Visibility triangles shall be maintained to include an area bounded by the first 25 feet along the intersecting edges of the right-of-way, projected where rounded, and a line running across the lot in connecting the ends of such 25 foot lines.

(14) Within visibility triangles at the intersection of driveways with streets. Visibility triangles shall be maintained to include an area bounded by the first ten feet along the intersecting area of the base building line and the driveway, projected where rounded, and a line running across any intervening right-of-way and the lot and connecting the end of such ten foot lines.

(15) No more than ten newsracks shall be placed at any intersection, with no more than five newsracks at any one corner.

(16) No more than five newsracks shall be placed side by side at any one location and there shall be a minimum 300-foot distance between newsracks or group of newsracks along the same sidewalk.

(17) Electronic newsracks may be installed at a maximum of one per square as defined in chapter 54, article IV of the City Code.

(Ord. No. 12053, § 2, 4-26-01; Ord. No. 14042, § 2, 1-13-22)

Sec. 54-268. Newsrack features and maintenance.

(a) The newsrack shall be constructed of galvanized steel with corrosive resistant hardware and door assembly. Manufacturer modifications

to the door, window and cabinetry for the above-described newsracks to accommodate vertically formatted, "tabloid-type" newspaper display and distribution are acceptable. The shape of all newsracks shall be hexahedron/rectangular (no pedestal newsracks) with a height of 36 inches, excluding coin box, width of not more than 20 inches and a depth of not more than 17 inches. Notwithstanding, electronic newsracks or advertising thereon pursuant to section 54-9 shall not exceed a height of 36 inches or a total advertising space of 44 square feet.

(b) The color of the entire newsrack including coin box and mounting hardware shall be painted a dark green or dark grey with a powder finish consistent with the paint sample provided by the director.

(c) Newsracks shall carry no card holders or advertising, but a cling-on sticker or equivalent may be placed within a four-inch square area of the inside lower left hand corner of the clear plastic viewing panel of the access door for the purpose of promoting particular features or offerings inside the current publication. Said sticker shall be applied only during the period of time that is relevant to the current publication distribution and it shall be the responsibility of the distributor to remove said sticker when no longer applicable. Furthermore, newsracks may display the name, with lettering of any colors, of the newspaper being dispensed, in spaces in the locations and sizes set forth below:

(1) On the front of the newsrack, the lettering size shall not exceed one and three-quarters inches in height. The lettering shall be placed within a clear or colored-band space not exceeding two and one-half inches in height above the door hinge.

(2) On the sides of the newsrack, the lettering size shall not exceed two and one-half inches in height. The lettering shall be placed within a clear or colored-band space not exceeding four inches in height and beginning one inch from the top of the newsrack.

(3) On the back of the newsrack, the lettering and/or copy of the front page of the publication shall not exceed 16 inches in height. The lettering and/or copy of the front page of the publication shall be placed with a clear or colored-band space beginning one inch from the top of the newsrack.

(d) Newsracks for free newspapers may omit the coin box and may have the pull bar welded to the door.

(e) Newsracks shall be maintained in good working order at all times including but not limited to the following: not faded or dull paint, no broken hoods, no graffiti, stickers, tape, advertising, posters or other unrelated materials unless same is specifically permitted in this article.

(f) Notwithstanding the limitations on advertising set forth in this section, modular newsracks may include advertising provided such newsracks are part of a pilot program, that the advertising consists only of a single advertising panel located on the back of the modular newsrack and that the single advertising panel does not exceed 18 square feet in area.

(g) Notwithstanding the limitations on advertising set forth in this section, advertisements or displays are allowed on newsracks when the newsracks are procured in a non-exclusive manner in accordance with chapter 18, article III of the City Code pursuant to section 54-9 of the City Code. Such newsracks may include two advertising panels provided that such advertising does not exceed 22 square feet in area per panel for a total of 44 square feet.
(Ord. No. 12053, § 2, 4-26-01; Ord. No. 14042, § 2, 1-13-22)

Sec. 54-269. Newsrack mounting standards.

(a) The following standards shall be applicable to the mounting of newsracks on concrete surfaces:

(1) Two "L" shaped steel brackets, seven sixty fourth inch thick, and one and a quarter inch high and wide, with a depth equal to the depth of the newsrack. One hole shall be at each corner of the steel bracket for anchor or bolt.

(2) Each steel bracket shall be attached to the sides of the newsrack with a minimum of two metal non-corrosive anchors.

(3) Four, three-eight inch diameter drop-in anchors, one and five-eight inch minimum embedment with tops flushed with the concrete surface.

(4) Four, three-eight inch diameter galvanized anchor bolts, one-inch minimum length. Bolts shall be used to firmly secure steel brackets to drop-in anchors.

(5) Steel brackets and bolt heads shall be painted to match newsrack color and finish.

(6) Installed newsracks shall be plumb.

(7) Subsections (1) through (4) of this section are not applicable to electronic newsracks.

(8) For electronic newsracks, plans must be submitted to the department for all installation work, including any and all work necessary to bring electrical service or fiber optic cables to the location. Such plans will be subject to approval by the city and all other required approvals. The installation work shall be in compliance with all applicable laws, regulations, and rules and subject to all required approvals.

(b) The following standards shall be applicable to the mounting of newsracks at grass, dirt, gravel, or like areas:

(1) Foundation. Concrete, minimum four-inches deep, 2500 psi (28-day strength), Class I cement, reinforced with welded wire mesh.

(2) Minimum distance from vertical side of the newsrack to the nearest concrete edge shall be three inches.

(3) One-half inch chamfer all concrete edges.

(4) Anchorage to concrete foundation as per subsection 54-269(a) required.

(5) Concrete base installed by distributor shall become the property of the City and remain in place notwithstanding the removal of the Newsrack(s) in accordance with the provisions of this article.

(c) The following standards shall be applicable to the mounting of newsracks at tiled or bricked areas:

(1) Tiles or bricks shall be removed at proposed location. Excavate or add soil if necessary.

(2) Concrete foundation in accordance with subsection 54-269(b) and anchorage in accordance with subsection 54-269(a) required. Top of concrete foundation shall be flushed with tiled or bricked surface.

(3) Gaps between concrete foundation and surrounding tiles or bricks shall be filled with concrete. Elevations of poured concrete shall match surrounding elevations. The director shall approve color of poured concrete.

(Ord. No. 12053, § 2, 4-26-01; Ord. No. 14042, § 2, 1-13-22)

Sec. 54-270. Enforcement procedures non-conforming newsracks; removal/storage.

(a) In the event newsrack(s) are found to violate section 54-263 (installed without a permit) the city may remove the newsracks immediately upon discovery of the violation and the distributor assessed for the cost of removal and storage as set forth below. In all other instances where newsracks are found to violate a provision of this article, they may be removed only after a notice of the violation is sent to the distributor by certified mail, return receipt requested, and the distributor fails within ten calendar days of receipt of the notice to correct or cure the violation, unless the city manager issues a written order stating that the newsrack(s) constitute a serious and imminent hazard to the public safety, in which case the newsrack(s) may be removed immediately. In the later event, a copy of the city manager's order, specifying the reason or reasons for the immediate removal of the newsrack(s) shall be sent by certified mail, return receipt requested, to the distributor.

(b) Any newsrack removed from the public right-of-way shall be stored at the cost of the distributor. The city shall be reimbursed by the distributor for all costs incurred in the removal and storage of all newsrack(s) removed from the public right-of-way by the city. A storage and removal fee is hereby established at $90.00 per newsrack, $200.00 per modular newsrack or $1,000.00 if the newsrack is electronic, whichever is applicable. The city is hereby authorized to sell said newsrack(s) at public sale if said newsrack(s) is not picked up by the distributor within a period of 90 calendar days from the date of removal. Ten days prior to sale, the city shall advertise notice of sale in a daily newspaper of general circulation in the city. Out of the proceeds of the sale of any newsrack, all unpaid removal and storage costs shall be paid after the payment of the advertisement cost and the remaining balance of the sale proceeds shall be retained by the city in a fund in the possession of the city for a period of one year unless claimed earlier by the distributor. After the expiration of one year, any sums remaining from the sale of newsracks in accordance with the provisions of this section, if unclaimed by the distributor of said newsrack, shall become the property of the city and be transferred to the department revenue account.
(Ord. No. 12053, § 2, 4-26-01; Ord. No. 12286, § 1, 10-10-02; Ord. No. 13467, § 2, 6-12-14; Ord. No. 14042, § 2, 1-13-22)

Sec. 54-271. Same—Abandoned newsracks.

(a) If any newsrack installed pursuant to this article does not contain the publication specified within a period of 48 hours after release of the current issue, or when no publication is in the newsrack for a period of more than seven consecutive calendar days the city may deem the newsrack abandoned and subject to removal as set forth in subsection 54-270(a). Alternatively the city may take appropriate action under section 2-811 et seq. of this Code.

(b) In the event a distributor desires to voluntarily abandon a newsrack, the distributor shall notify the director in writing, completely remove the newsrack and mount, and restore the public right-of-way to a safe condition, leaving no holes or projections in the mounting surface.
(Ord. No. 12053, § 2, 4-26-01; Ord. No. 13467, § 2, 6-12-14)

Secs. 54-272—54-295. Reserved.

ARTICLE VIII. USE OF PUBLIC RIGHTS-OF-WAY BY COMMUNICATION SYSTEMS*

Sec. 54-296. Statement of purpose and conflicts.

The city commission hereby finds and declares that it is necessary and reasonable for this article to:

(1) Establish a reasonable, nondiscriminatory, and competitively neutral policy for the use of public rights-of-way for the provision of communications services; and

(2) Manage the public rights-of-way to protect the public health, safety and welfare and minimize disruption of services in the public rights-of-way by establishing reasonable, nondiscriminatory, and competitively neutral regulations governing the placement or maintenance of communications facilities in the public rights-of-way by providers of communications services, which rules are generally applicable to all persons using the public rights-of-way for the provision of communications services.

In the event that there is a direct conflict between the provisions of this article with any other provisions of this chapter, the provisions in this article shall govern.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-297. Definitions.

For the purposes of this article and any permits issued in accordance herewith, the following

*__Editor's note—__Ord. No. 14150, § 2, adopted February 23, 2023, amended article VIII in its entirety to read as herein set out. Formerly, article VIII, sections 54-296—54-316 pertained to similar subject matter, and derived from Ord. No. 10438, § 1, adopted May 19, 1988; Ord. No. 11131, § 2, adopted March 24, 1994; the Code of 1980, §§ 54-140—54-143; Ord. No. 11690, § 1, adopted July 21, 1998; Ord. No. 12928, § 5, adopted June 28, 2007; Ord. No. 13467, § 2, adopted June 12, 2014; Ord. No. 13676, § 2, adopted April 27, 2017; Ord. No. 13792, § 1, adopted October 11, 2018; Ord. No. 13916, § 2, adopted September 24, 2020, and Ord. No. 13918, § 2, adopted September 24, 2020.

__Cross reference—__Cable television, ch. 11.

terms, phrases, words and their derivations shall have the meaning given herein unless otherwise specifically provided in this article, unless the context clearly indicates otherwise or unless such meaning would be inconsistent with the manifest intent of the city commission and/or with F.S. § 337.401, as amended:

Abandonment or *abandon* means the permanent cessation of all uses of a communications facility; provided that this term shall not include cessation of all use of a facility within a physical structure where the physical structure continues to be used. The terms abandonment or abandon are not intended to include a dropped line from a potential or existing customer in the event the communications service provider reasonably anticipates future use of the dropped line.

Antenna means communications equipment that transmits or receives electromagnetic radio frequency signals used in providing wireless services.

Applicable codes means uniform building, fire, electrical, plumbing, or mechanical codes adopted by a recognized national code organization and local amendments to those codes enacted solely to address threats of destruction of property or injury to persons, and includes the National Electric Safety Code and the 2017 edition of the Florida Department of Transportation Utility Accommodation Manual.

Applicant means a person who submits an application pursuant to this article.

Application means a request submitted by an applicant to the city for a permit to place communications facilities in the public rights-of-way, including but not limited to the collocation of small wireless facilities and the placement of new utility poles used to support small wireless facilities.

Collocate or *collocation* means to install, mount, maintain, modify, operate, or replace one or more wireless facilities on, under, within, or adjacent to a wireless support structure or utility pole. The term does not include the installation of a new utility pole or wireless support structure in the public rights-of-way.

Communications facility or *facility* or *system* shall mean any permanent or temporary plant, equipment or property, including but not limited to cables, wires, conduits, ducts, fiber optics, poles, antennae, converters, splice boxes, cabinets, handholes, manholes, vaults, drains, surface location markers, appurtenances, and other equipment or pathway placed or maintained or to be placed or maintained in the public rights-of-way of the city and used or capable of being used to transmit, convey, route, receive, distribute, provide, or offer communications services.

Communications services shall mean the transmission, conveyance, or routing of voice, data, audio, video, or any other information or signals to a point, or between or among points, by or through any electronic, radio, satellite, cable, optical, microwave, or other medium or method now in existence or hereafter devised, regardless of protocol used for such transmission or conveyance.

Communications service provider shall mean any person including a municipality or county providing communications services through the placement or maintenance of a communications facility in public rights-of-way. "Communication services provider" shall also include any person that places or maintains a communications facility in public rights-of-way but does not provide communications services.

Director shall mean the director of resilience and public works department or his or her designee.

FCC means the Federal Communications Commission or its legally appointed successor.

In public rights-of-way or *in the public rights-of-way* shall mean in, on, over, under or across the public rights-of-way.

Micro wireless facility means a small wireless facility having dimensions no larger than 24 inches in length, 15 inches in width, and 12 inches in height and an exterior antenna, if any, no longer than 11 inches.

Pass-through provider means the definition ascribed in F.S. § 337.401(6)(a)1.

Permit shall mean a construction permit issued by the resilience and public works department.

Person shall mean any individual, child, firm, association, joint venture, partnership, estate, trust, business trust, syndicate, fiduciary, corporation, organization or legal entity of any kind, successor, assignee, transferee, personal representative, and all other groups or combinations.

Place or *maintain* or *placement* or *maintenance* or *placing* or *maintaining* shall mean to erect, construct, install, maintain, place, repair, extend, expand, remove, occupy, locate or relocate. A communications services provider that owns or exercises physical control over communications facilities in public right-of-way, such as the physical control to maintain and repair, is "placing or maintaining" the facilities.

Public rights-of-way shall mean a public right-of-way, public utility easement, highway, street, bridge, tunnel or alley for which the city is the authority that has jurisdiction and control and may lawfully grant access to and issue permits pursuant to applicable law, and includes the surface, the air space over the surface and the area below the surface. "Public rights-of-way" shall not include private property. "Public rights-of-way" shall not include any real or personal city property except as described above and shall not include city buildings, fixtures, poles, conduits, facilities, or other structure or improvements, regardless of whether they are situated in the public right-of-way.

Registrant shall mean a communications services provider that has registered with the director in accordance with the provisions of this article.

Registration or *register* shall mean the process described in this chapter whereby a communications services provider provides the required information to the director.

Small wireless facility means a wireless facility that meets the following qualifications:

(1) Each antenna associated with the facility is located inside an enclosure of no more than six cubic feet in volume or, in the case of antennas that have exposed elements, each antenna and all of its exposed elements could fit within an enclosure of no more than six cubic feet in volume; and

(2) All other wireless equipment associated with the facility is cumulatively no more than 28 cubic feet in volume. The following types of associated ancillary equipment are not included in the calculation of equipment volume: electric meters, concealment elements, telecommunications demarcation boxes, ground-based enclosures, grounding equipment, power transfer switches, cutoff switches, vertical cable runs for the connection of power and other services, and Utility Poles or other support structures.

Utility pole means a pole or similar structure that is used in whole or in part to provide communication services or for electric distribution, lighting, traffic control, signage, or a similar function. The term includes the vertical support structure for traffic lights but does not include a horizontal structure to which signal lights or other traffic control devices are attached and does not include a pole or similar structure 15 feet in height or less unless the city grants a waiver for such pole.

Wireless facility means equipment at a fixed location which enables wireless communications between user equipment and a communications network including radio transceivers, antennas, wires, coaxial or fiber-optic cable or other cables, regular and backup power supplies, and comparable equipment, regardless of technological configuration, and equipment associated with wireless communications. The term includes small wireless facilities. The term does not include (a) the structure or improvements on, under, within, or adjacent to the structure on which the equipment is collocated; or (b) wireline backhaul facilities; or (c) coaxial or fiber-optic cable that is between wireless structures or utility poles or that is otherwise not immediately adjacent to or directly associated with a particular antenna.

Wireless infrastructure provider means a person who has been certificated under F.S. ch. 364, to provide telecommunications service or under

F.S. ch. 610, to provide cable or video services in this state, or that person's affiliate, and who builds or installs wireless communication transmission equipment, wireless facilities, or wireless support structures but is not a wireless services provider.

Wireless provider means a wireless infrastructure provider or a wireless services provider.

Wireless services means any services provided using licensed or unlicensed spectrum, whether at a fixed location or mobile, using wireless facilities.

Wireless services provider means a person who provides wireless services.

Wireless support structure means a freestanding structure, such as a monopole, a guyed or self-supporting tower, or another existing or proposed structure designed to support or capable of supporting wireless facilities. The term does not include a utility pole, pedestal, or other support structure for ground-based equipment not mounted on a utility pole and less than five feet in height.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-298. Service of notice.

All notices required to be given to the city under any provision of this article shall be deemed served when received through the U.S. mail or delivered by hand in writing to the city resilience and public works director or to any person in charge of the division during normal business hours. Any notice required to be given to a communications service provider under any provision of this article shall be deemed given, whether actually received or not, if sent by United States registered or certified mail, return receipt requested, postage prepaid, and addressed to the communications service provider at the address given in its most recently issued permit. When providing notice, the communications service provider and city will also provide such notice by electronic mail.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-299. No liability or warranty.

This article shall not be construed to create or hold the city responsible or liable for any damage to persons or property by reason of any inspection or reinspection authorized herein or failure to inspect or reinspect, nor shall the issuance of any permit nor the approval or disapproval of any installation authorized herein constitute any representation, guarantee or warranty of any kind by, nor create any liability upon the city or any official, agent or employee thereof.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-300. Registration required.

(a) A registration from the city is required to commence or engage in the construction, maintenance or occupation of the public right-of-way with a system designed to deliver communications services by utilizing the public rights-of-way. No public rights-of-way construction permits shall be issued to a communications service provider without a registration issued under this article.

(b) A registration shall not convey any title, equitable or legal, to the registrant in the public rights-of-way. Registration under this chapter governs only the placement or maintenance of communications facilities in public rights-of-way. Other ordinances, codes or regulations may apply to the placement or maintenance in the public rights-of-way of facilities that are not communications facilities. Registration does not excuse a communications services provider from obtaining appropriate access or utility pole attachment agreements before locating its facilities on the city's or another person's facilities. Registration does not excuse a communications services provider from complying with all applicable codes.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-301. Rights granted by registration.

(a) Subject to all existing permitting processes, the registrant is authorized to occupy, install, lay, erect, construct, remove, relocate and maintain in, on, over or upon any and all of the public right-of-way, as they now exist or may be hereafter constructed, opened, laid out or extended within

the present limits of the city or in such territory as may be hereafter added to, consolidated or annexed to the city, any and all such conduits, cables, fiber optic lines, utility poles, wires, supports and other structures and appurtenances as may be reasonably necessary for the construction, maintenance and operation of a communications system. Except as provided above, this registration does not convey the right to attach cable or conduit to utility poles or occupy or use real or personal property owned by the city.

(b) Any registration granted under this article shall be non-exclusive, and the issuance of a registration will not expressly or implicitly preclude the city from issuance of other registrations to communications services providers or affect the city's right to authorize use of public rights-of-way for other lawful purposes to other persons as it determines appropriate.

(c) This registration authorizes the registrant to use the public rights-of-way to provide communications services only. Use of the public rights-of-way for any other purpose requires separate authorization.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-302. Term and renewal.

A registrant shall renew its registration with the director by October 1 of every five years in accordance with the registration requirements in this chapter. Within 90 days of any change in the information required to be submitted pursuant to section 54-305, a registrant shall provide updated information to the director. If no information in the then-existing registration has changed, the renewal may state that no information has changed. Failure to renew a registration may result in the director restricting the issuance of additional permits until the communications services provider has complied with the registration requirements of this article.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-303. Communications services tax.

(a) Each registrant that provides communications services shall collect and remit to the Florida Department of Revenue the communications services tax pursuant to F.S. ch. 202.

(b) In the event that state law is amended to allow collection of license fees from communications services providers, or in the event that state law preempting the collection of such license fee is declared void by a court of competent jurisdiction, the provisions contained in this section shall automatically revert to those provisions contained in this section in effect on the date of adoption of this chapter to the extent those provisions are not inconsistent with state law.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-304. Registration application procedure; information required.

(a) To obtain a registration under this article, a person shall apply in writing to the director.

(b) Each request for an initial registration shall include the following:

(1) The name, street address and telephone number of the registrant or communications service provider.

(2) The name, street address and telephone number of the registrant's or communications service provider's primary contact person in connection with the registration, and the person to contact in case of an emergency.

(3) The number of the communications service provider's current certificate of authorization issued by the Florida Public Service Commission, the FCC, or the Department of State.

(4) Insurance and bonding documents as required by this article.

(5) A statement of whether the registrant is a pass-through provider.

(c) In the event any registration information provided in section 54-305 changes, registrant shall update applicable registration information with 90 days after such change(s) occur. Updates shall be sent to the director in writing or by electronic email.

(d) A registrant may cancel a registration upon written notice to the director stating that it will no longer place or maintain any communications facilities within the public rights-of-way and will no longer need to obtain permits to perform work in public rights-of-way. A registrant shall not cancel a registration if the registrant continues to place or maintain any communications facilities in any public rights-of-way.

(e) Registration does not in and of itself establish a right to place or maintain or priority for the placement or maintenance of a communications facility in public rights-of-way within the city but shall establish for the Registrant a right to apply for a permit. Registrations are expressly subject to any future amendment to or replacement of this article and further subject to any additional city ordinances, as well as any state or federal laws that may be enacted. In accordance with applicable codes, a permit may be required for a communications services provider that desires to place or maintain a communications facility in public rights-of-way. A registration shall be a condition of obtaining a permit. Notwithstanding a registration, permitting requirements shall apply. A permit may be obtained by or on behalf of a registrant having a registration if all permitting requirements are met.

(f) A communications services provider with an existing communications facility in the public rights-of-way of the city has 60 days from the effective date of this article to comply with the registration requirements of this article.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-305. Issuance and denial of registration.

The director has the authority to and shall grant a registration to a communications service provider who files a completed application and complies with the application requirements herein; provided, however, the director shall have the authority to deny a registration if the communications service provider fails to meet the registration requirements, the registrant is subject to pending code enforcement action or the proposed use of the public rights-of-way presents a danger to the general public and other users of the public rights-of-way. The director shall issue or deny the registration within 14 calendar days of communications service provider submitting a complete registration application.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-306. Notice of transfers, sales or assignments of assets in public rights-of-way.

If a registrant transfers, sells, or assigns its assets located in a public rights-of-way incident to a transfer, sale or assignment of the registrant's assets, the transferee, buyer or assignee shall be obligated to comply with the terms of this article. Written notice of any such transfer, sale or assignment shall be provided by such registrant to the director within 60 days after the effective date of the transfer, sale, or assignment. If the transferee, buyer or assignee is a current registrant, then the transferee, buyer or assignee is not required to re-register. If the transferee, buyer or assignee is not a current registrant, then the transferee, buyer or assignee shall register as provided in section 54-305 within 60 days of the transfer, sale or assignment. If permit applications are pending in the registrant's name, the transferee, buyer or assignee shall notify the resilience and public works department that the transferee, buyer or assignee is the new applicant.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-307. Termination of registration.

The city may declare a forfeiture and termination of, and revoke and cancel all rights granted under the registration if (a) a federal or state authority suspends, denies, or revokes a communications services provider's certification to provide communications services; (b) the registrant's use of the public rights-of-way presents a danger to the general public and other users of the public rights-of-way; (c) the registrant has abandoned its communications facilities in the public rights-of-way and has not complied with section 54-322; (d) the registrant is subject to code enforcement action; or (e) the registrant is in violation of any other ordinance, regulation, law, or statute. Prior to such termina-

tion by the city, the registrant shall be served by the city with a written notice setting forth all matters pertinent to the termination action, including which of (a) through (e) above is applicable as the reason therefore, and describing the action of the city with respect thereto. The registrant shall have 60 days after service of such notice within which to address or eliminate the reason, or within which to present a plan, satisfactory to the city, to accomplish the same. In the event of such termination, the registrant shall, within a reasonable time following demand by the city, remove or abandon the communications facilities and take such steps as are necessary to render every portion of the communications facilities remaining within the public rights-of-way of the city safe, and shall thereupon be deemed to have abandoned same in its entirety; and the same shall thereupon become the sole property of the city without payment to the registrant. If the city agrees to abandonment, the registrant shall incur, from that time forward, no future obligations with respect to the communications facilities.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-308. Failure to enforce registration.

The registrant shall not be excused from complying with any of the terms and conditions of this article by any failure of the city, upon any one or more occasions, to require the registrant's performance or compliance with any one or more of such terms or conditions.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-309. Bonds.

(a) Prior to issuing a permit under this article wherein the work under the permit may require restoration of the city's public rights-of-way, the city shall require from the applicant a construction bond by a surety duly authorized to do business in the State of Florida and having an A.M. Best A-VII rating or better in order to secure restoration to the preconstruction condition bond. The bond or letter of credit shall be in the amount of 115 percent of the estimated costs of restoration based upon the formula provided in subsection 54-42(c) and shall be time-limited to 18 months after the construction to which the bond or letter of credit applies is completed and the permit is closed. At the option of the applicant, the applicant may provide a single construction bond or irrevocable letter of credit covering multiple permits for work in the city's right(s)-of-way in lieu of any requirement that a separate construction bond or irrevocable letter of credit be provided for each individual permit every 18 months. In the event an applicant elects to provide a single construction bond or irrevocable letter of credit covering multiple permits, the amount shall be calculated using the formula herein for open permits at the time of providing the bond or irrevocable letter of credit and the bond or irrevocable letter of credit shall be renewed and the amount recalculated every 18 months. In any event, an applicant may reduce the bond or irrevocable letter of credit amount attributable to any particular permit 18 months after the construction related to such permit is completed and after the city has inspected and approved the construction and restoration and closed the permit.

(b) None of the provisions of this section nor any bond accepted by the city pursuant hereto, nor any damages recovered by the city hereunder, shall be construed to excuse the faithful performance by or limit the liability of the registrant under this article or any registration issued in accordance herewith or for damages either to the full amount of such bond or otherwise.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-310. Insurance and indemnity.

(a) *Insurance.*

(1) A communications service provider shall provide, pay for, and maintain with companies reasonably satisfactory to the city the types of insurance described in this section. All insurance shall be from responsible companies duly authorized to do business in the state and having a financial rating in Best's Insurance Guide of A-Class VI or better. All required liability policies, excluding workers compensation and employers liability shall list the city as an additional insured on all liability policies, including but not

limited to commercial general liability, auto, and umbrella and pollution as may be applicable to such communications service provider's operations in the public rights-of-way and shall include a severability of interest provision. The required coverages must be evidenced by properly executed certificates of insurance. Renewal certificates shall be provided to the director at least three days prior to the expiration of the current coverages. The certificates must be signed by the authorized representative of the insurance company. Thirty days written notice of cancellation by the insurer for any reason other than non-payment of premium must be given to the city for the required policy coverages.

(2) The limits and types of coverage of insurance required shall not be less than the following:

a. *Commercial general liability insurance.* Commercial general liability insurance shall be written on CG 00 01 04 13 or an equivalent substitute form affording coverage for bodily injury including death and property damage with limits of $1,000,000.00 per occurrence and $2,000,000.00 policy aggregate. Such policy shall include coverage for premises and operations, products and completed operations, and personal and advertising injury liability. The certificate or policies of insurance should further provide coverage for and against contingent and contractual exposures and XCU hazards, and must list the city as an additional insured on a primary and non contributory basis. Completed operations coverage shall also be maintained for a minimum of one year following the cessation of the placement of communications facilities in the public rights-of-way.

b. *Commercial automobile liability insurance.* Commercial automobile liability insurance shall be maintained insuring all owned autos, and including coverage for, non-owned, leased and hired vehicles. The combined bodily injury and property damage limit shall not be less than $500,000.00 each accident.

c. *Workers' compensation/employer's liability insurance.* Workers' compensation insurance shall cover all employees engaged in work for the communications service provider in accordance with the laws of the state. The employer's liability limit shall be in an amount not less than the statutory limit for workers' compensation in the State of Florida.

(3) Notwithstanding the foregoing, a communications service provider may provide such coverage through an actuarially sound and prudent self-insurance program that is reasonably satisfactory to the city.

(b) *Indemnification.* A communications service provider shall indemnify, defend and hold harmless the city and its officers, directors, agents, servants, employees, successors, and assigns of and from any and all claims for personal injury, death or property damage, any other losses, damages, charges or expenses, and any orders, judgments or decrees which may be entered, which arise out of, in connection with, or attributable to, such communications service provider's acts or omissions in connection with its activities in the public rights-of-way and the placement, maintenance, relocation or removal by such communications service provider of any portion of its communications facilities, except for liabilities not caused by the communications service provider, including liabilities arising directly and wholly from the city's negligence, gross negligence, or willful conduct. Such communications service provider shall undertake at its own expense the defense of any action which may be brought against the city for damages, injunctive relief or for any other cause of action or claim arising or alleged to have arisen out of, in connection with the operations of the communication service provider in connection with a permit. The communications service provider shall promptly pay the final judgment together with

all costs relating thereto; such communications service provider being allowed, however, an appeal or appeals to the appropriate court or courts from the judgment rendered in any such suit or action upon the filing of such bond as shall be required to prevent levy or judgment against the city during such appeal or appeals. Pursuant to F.S. § 337.401, this indemnification does not extend to liabilities not caused by the communications services provider, including liabilities arising from the city's negligence, gross negligence, or willful conduct.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-311. Police powers.

Nothing in this article or in any registration issued in accordance herewith shall be construed as an abrogation by the city of any of its police powers.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-312. Florida Consumer Choice Act of 2007.

This chapter 54 shall be construed in accordance with the Florida Consumer Choice Act of 2007 ("the Act") so that the city shall retain all rights and obligations permitted by the Act to be retained by the city as of June 30, 2007, and so that the obligations and rights of all persons which have previously obtained permits and previously entered into agreements with the city and all persons which shall obtain permits in the future and enter into agreements with the city in the future for work to be performed or conducted within and any related maintenance and restoration of the city's public right-of-way as defined in section 54-1, as amended, and for any other continuing obligation to the city as permitted by law, shall be construed as in force as of June 30, 2007, and so as to comply with the nondiscriminatory mandate of the Act.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-313. Technical standards.

(a) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of a communications system provided for herein shall be in accordance with all applicable FCC and other federal, state and local laws and regulations, including but not limited to the most recent editions of the Florida Building Code, National Electrical Code and the National Electrical Safety Code.

(b) Engineering plan. An engineering plan signed and sealed by a licensed engineer, or prepared by a person who is exempt from license requirements pursuant to F.S. § 471.003, that includes the following:

(1) For any application that seeks to collocate a small wireless facility on an existing utility pole or place at-grade facilities in the public rights-of-way, a site plan demonstrating that the proposed location is within the public rights-of-way and documenting the edge of pavement, sidewalks, driveways, ramps, trees, ground-mounted equipment, structures, or other at-grade facilities located in the public rights-of-way within 50 feet of the proposed facility, including the full width of the right-of-way with sufficient specificity to demonstrate compliance with applicable codes.

(2) For any application that seeks to replace or place a new utility pole in the public rights-of-way to support a communications facility, a site plan demonstrating that the proposed location is within the public rights-of-way and documenting the edge of pavement, sidewalks, driveways, ramps, trees, ground-mounted equipment, structures, or other above-grade and at-grade facilities located in the public rights-of-way within 50 feet of the proposed facility, including the full width of the right of way with sufficient specificity to demonstrate compliance with applicable codes;

(3) The type, location, dimensions, height, footprint, design, and concealment features (if applicable) of the proposed facility;

(4) A statement that the proposed facility will not materially interfere with the safe operation of traffic control equip-

ment, sight lines, clear zones, or result in the public rights-of-way being inconsistent with the Florida Department of Transportation Utility Accommodation Manual (current edition at the time of permit application); and

(5) A statement that the proposed facility will not materially interfere with compliance with the Americans with Disabilities Act or similar federal, state, or municipal standards regarding pedestrian access or movement.

(6) Trees or landscaping to be removed or impacted upon the placement or maintenance of the proposed facility.

(7) The method by which the facility will be installed and/or modified (i.e. anticipated construction methods or techniques) and timetable.

(8) A temporary sidewalk closure plan, traffic lane closure plan, and maintenance of traffic plan, if applicable, to accommodate placement or maintenance of the facility.

(9) A restoration plan and a good faith estimate of the cost of restoration of the public rights-of-way to its original condition.

(c) Indemnification. A statement shall be included with the permit application or request that by execution of the application or request for the permit, the registrant shall be bound to the city with respect to indemnification provisions set forth in this article, and specifically subsection 54-310(b).

(d) Airport airspace protection. If applicable, certification of compliance with F.S. ch. 333, and all city, state and federal laws and regulations pertaining to airport airspace protections.

(e) Attestation. For wireless infrastructure providers proposing placement of a new utility pole in the public rights-of-way, the application must include an attestation that small wireless facilities will be collocated on the new utility pole and will be used by a wireless services provider to provide service within nine months after the date the application is approved by the city or prior to the expiration date of the permit, whichever is later.

(f) For an application for a new utility pole to support the collocation of a small wireless facility, the applicant shall provide information regarding the height and location of the tallest utility pole located in the same public rights-of-way as of July 1, 2017, measured from grade in place within 500 feet of the proposed location of the utility pole. If there is no utility pole within 500 feet of the proposed utility pole as of July 1, 2017, the applicant shall state so in the application.

(g) In addition to the requirements herein, as part of any permit application for a small wireless facility, the applicant shall provide documentation from a licensed engineer, or a person who is exempt from license requirements pursuant to F.S. 471.003, that the structure and foundation of the utility pole intended to support the collocation of the small wireless facility can support the additional load of the proposed small wireless facility consistent with applicable codes. (Ord. No. 14150, § 2, 2-23-23)

Sec. 54-314. Objective design standards.

(a) A new communications/small wireless utility pole that replaces an existing utility pole or is a new installation utility pole must be of substantially similar design, material, and color to the existing streetlights or the streetlights in the master planned area for the work location; or a decorative, camouflage style, metal or concrete small wireless utility pole, powder coated in black or grey to blend with existing facilities in the area.

(b) Wires, cables, and equipment to be collocated on a communications/small wireless utility pole shall be within the utility pole or if not possible to be within the utility pole, covered with a shroud or conduit that is of the same color as the utility pole. No exposed wires or cables are permitted.

(c) The ground mounted component of a small wireless facility shall be located directly abutting the communications/small wireless utility

pole. In cases where this is not possible, the city may require the location of a ground mounted component of a small wireless facility to be located up to 15 feet from the associated wireless support structure within the public rights-of-way. If the area surrounding the ground mounted component is sufficient to allow for landscaping, then screening elements must be installed, as approved by the director of the department of resilience and public works.

(d) Such design standards under this section may be waived by the director upon a showing that the design standards are not reasonably compatible for the particular location of a small wireless facility or utility pole or are technically infeasible or that the design standards impose an excessive expense. The waiver must be granted or denied within 45 days after the date of the request.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-315. Permit procedures and timeframes.

(a) The city's action on applications to place or maintain communications facilities in the public right-of-way are subject to the requirements, standards, and time frames set out in F.S. § 337.401(7), as same may be amended from time to time; and 47 U.S.C. § 1455(a) and orders issued by the FCC, both as may be amended from time to time. Applications will be processed on a nondiscriminatory basis pursuant to F.S. § 337.401, as may be amended from time to time.

(b) A permit shall not be required for the following:

(1) Routine maintenance, the performance of service restoration work on existing facilities, or repair work, including but not limited to emergency repairs of existing facilities or extensions of such facilities for providing communications services to customers;

(2) Replacement of existing wireless facilities with wireless facilities that are substantially similar or of the same or smaller size; notwithstanding, the applicant must submit a letter to the city attesting that the micro wireless facility dimensions are the same, substantially similar, or smaller;

(3) Installation, placement, maintenance, or replacement of micro wireless facilities that are suspended on cables strung between existing utility poles in compliance with applicable codes by or for a communications service provider authorized to occupy the public rights-of-way and who is remitting taxes under [F.S.] ch. 202. The applicant must submit a letter to the city attesting that the micro wireless facility complies with the limits of F.S. § 337.401(7)(b)9; or

(4) Maintenance, repair, replacement, extension, or upgrade of existing aerial wireline communications facilities on utility poles or for aerial wireline facilities between existing wireline communications facility attachments on utility poles by a communications services provider.

(c) Notwithstanding the exceptions to permit requirements contained in subsection (b), a registrant shall obtain from the city any permit(s), if required, for work that involves excavation, closure of a sidewalk, or closure of a vehicular lane or parking lane, unless the communications service provider is performing service restoration on an existing communications facility and the work is done in compliance with the Florida Department of Transportation Utility Accommodation Manual. In the event excavation, closure of a sidewalk, vehicular or parking lane is required in connection with the service restoration of an existing communications facility, the communications services provider shall apply for an after-the-fact permit within 30 days following any restoration for work that would have otherwise required a permit. Prior to performing excavation work in the public rights-of-way, communications service providers are encouraged to obtain photographic or video documentation of the preconstruction condition of the public rights-of-way in the area to be affected by such work.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-316. Use of streets and utility pole attachments.

(a) Before commencing construction of its communications system in, above, over, under, across, through or in any way connected with the streets, public ways or public places of the city, the registrant shall first obtain the written approval of, and all other necessary permits from, all appropriate city agencies, including but not limited to the department of resilience and public works. Applications for such approval shall be made in the form prescribed by the director or his/her authorized designee.

(b) Upon obtaining such written approval, the registrant shall give the department of resilience and public works written notice within a reasonable time of proposed construction, but in no event shall such notice be given less than ten days or more than 30 days, before such commencement, except for emergency repairs of existing lines or cables.

(c) Any person who submits a request for a permit in accordance herewith shall include therein written consent for the use of existing utility poles and conduits, if applicable, from the owner(s) of such facilities to be used or affected by the construction of the proposed telecommunication system, which agreements shall become effective on the date of execution of the permit issued in accordance herewith in the event that such person is issued a permit.

(d) It shall be unlawful for the registrant or any other person to open or otherwise disturb the surface of any street, sidewalk, driveway, public way or other public place for any purpose whatsoever without obtaining approval to do so after proceeding in the manner prescribed in subsections (a) and (b) hereof. Violation of this section shall subject the registrant to all penalties and remedies prescribed therein and to all other remedies, legal or equitable, which are available to the city.

(e) The registrant shall restore any street or sidewalk it has disturbed in accordance with the provisions of the city's standard specifications for streets and sidewalks and shall, at its own cost and expense, restore and replace any other property disturbed, damaged or in any way injured by or on account of its activities to as good as the condition such property was in immediately prior to the disturbance, damage or injury or pay the fair market value of such property to its owner.

(f) The registrant shall, at its own cost and expense, protect, support, temporarily disconnect, relocate in the same street or other public place, or remove from such street or other public place, any of its property when required to do so by the city because of street or other public excavation, construction, repair, regrading, or grading; traffic conditions; installation of sewers, drains, water pipes, city-owned power or signal lines, tracts; vacation or relocation of streets or any other type of structure or improvement of a public agency, or any other type of improvement necessary for the public health, safety or welfare subject to F.S. chs. 403 and 404, or upon termination or expiration of the registration.

(g) The registrant shall obtain written approval from the department of resilience and public works and other appropriate city agencies before erecting any new poles or underground conduits where none exist. The city encourages the use of existing utility poles and discourages redundant utility poles.

(h) The registrant shall maintain all wires, conduits, cables, utility poles, handholes, and other real and personal property and facilities in good condition, order and repair.

(i) The registrant shall keep accurate, complete and current maps and records of its system and facilities which occupy the streets, public ways and public places within the city, detailed by linear foot.

(j) The registrant shall comply with all applicable codes governing the construction and installation of communications systems. In addition:

(1) All aerial cables and wires shall be installed parallel with existing telephone and electric utility wires.

(2) Multiple aerial configurations shall be in parallel arrangement and bundled, in accordance with engineering and safety considerations.

(3) All underground installations shall be in the appropriate size and type conduit or other enclosures approved by the resilience and public works director.

(4) The registrant upon reasonable notice by the city shall temporarily remove, adjust, raise or lower its facilities within the right-of-way when the city determines that such action is needed for public use of the right-of-way including, but not limited to, the passage of nonstandard vehicles. The costs associated with such raising or lowering of such facilities shall be borne by the requesting party.

(5) The registrant shall obtain the written permission of the owner including the city of any tree or other vegetation before it trims or prunes the same.

(k) The height of a small wireless facility is limited to ten feet above the utility pole or structure upon with the small wireless facility is to be collocated.

(l) The height for a new utility pole is limited to the tallest existing utility pole as of July 1, 2017, located in the same right of way, other than a utility pole for which a waiver has previously been granted, measured from grade in place within 500 feet of the proposed location of the small wireless facility. If there is no utility pole within 500 feet, the height of the utility pole shall not exceed 50 feet.
(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-317. Collocation of small wireless facilities on city utility poles.

Collocation of small wireless facilities on city utility poles is subject to the following requirements:

(1) The city shall not enter into an exclusive arrangement with any person for the right to attach equipment to city utility poles.

(2) The city hereby levies, establishes, and sets an annual rate to collocate small wireless facilities on city utility poles in the amount of $150.00 per utility pole annually per provider.

(3) Agreements between the city and wireless providers that were in effect on July 1, 2017, and that relate to the prior collocation of small wireless facilities on city utility poles, remain in effect, subject to applicable termination provisions. The wireless provider may accept the rates, fees, and terms established under this section for small wireless facilities and utility poles that are the subject of an application submitted after the rates, fees, and terms become effective.

(4) For a city utility pole that supports an aerial facility used to provide communications services or electric service by another, the parties shall comply with the process for make-ready work under 47 U.S.C. § 224 and implementing regulations. The good faith estimate of the person owning or controlling the utility pole for any make-ready work necessary to enable the utility pole to support the requested collocation must include utility pole replacement if necessary.

(5) For a city utility pole that does not support an aerial facility used to provide communications services or electric service by another, the city shall provide a good faith estimate for any make-ready work necessary to enable the city utility pole to support the requested collocation, including necessary utility pole replacement, within 60 days after receipt of a complete application. Make-ready work, including any utility pole replacement, must be completed within 60 days after written acceptance of the good faith estimate by the applicant. Alternatively, the city may require the applicant seeking to collocate a small wireless facility to provide a make-ready estimate at the applicant's expense for the work necessary to support the small wireless facility, including utility pole replacement,

and perform the make-ready work. If utility pole replacement is required, the scope of the make-ready estimate is limited to the design, fabrication, and installation of a utility pole that is substantially similar in color and composition. The city may not condition or restrict the manner in which the applicant obtains, develops, or provides the estimate or conducts the make-ready work subject to usual construction restoration standards for work in the public rights-of-way. The replaced or altered city utility pole shall remain the property of the city.

(6) The city may not require more make-ready work than is required to meet applicable codes or industry standards. Fees for make-ready work may not include costs related to preexisting damage or prior noncompliance. Fees for make-ready work, including any utility pole replacement, may not exceed actual costs or the amount charged to communications service providers other than wireless providers for similar work and may not include any consultant fee or expense.

(7) The city may reserve space on city utility poles for future public safety uses. However, a reservation of space may not preclude collocation of a small wireless facility. If replacement of a city utility pole is necessary to accommodate the collocation of the small wireless facility and the future public safety use, the utility pole replacement is subject to the make-ready provisions of this article and F.S. § 337.401(7), and the replaced utility pole shall accommodate the future public safety use.

(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-318. Undergrounding.

(a) In an area where the city has required all public utility lines in the public rights-of-way to be placed underground, a wireless provider must comply with written, objective, reasonable, and nondiscriminatory requirements that prohibit new utility poles used to support small wireless facilities if:

(1) The city, at least 90 days prior to the submission of an application, has required all public utility lines to be placed underground;

(2) Structures that the city allows to remain above ground are reasonably available to wireless providers for the collocation of small wireless facilities and may be replaced by a wireless provider to accommodate the collocation of small wireless facilities; and

(3) A wireless provider may install a new utility pole in the designated area in the public right-of-way that otherwise complies with this article and it is not reasonably able to provide wireless service by collocating on a remaining utility pole or other structure in the public right-of-way.

(b) For small wireless facilities installed before the city adopts requirements that public utility lines be placed underground, the wireless provider may:

(1) Maintain the small wireless facilities in place subject to any applicable utility pole attachment agreement with the utility pole owner; or

(2) Replace the associated pole within 50 feet of the prior location in accordance with section 54-314.

(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-319. Permit denials.

The city may deny an application to collocate a small wireless facility or place a new utility pole used to support a small wireless facility if the proposed small wireless facility or utility pole used to support a small wireless facility:

(1) Materially interferes with the safe operation of traffic control equipment.

(2) Materially interferes with sight lines or clear zones for transportation, pedestrians, or public safety purposes;

(3) Materially interferes with compliance with the Americans with Disability Act or similar federal, state, or municipal standards regarding pedestrian access or movement;

(4) Materially fails to comply with the Florida Department of Transportation Utility Accommodation Manual (current edition at the time of permit application);

(5) Fails to comply with applicable codes; or

(6) Fails to comply with the city's objective design standards.

(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-320. Redundant utility poles.

F.S. § 366.97, provides a process that utility pole owners and an attaching entity must abide by regarding removal of utility poles and attachments thereto.

(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-321. Future rules by the director.

The director reserves the right to promulgate rules, regulations, forms, and procedures to implement the intention of this article.

(Ord. No. 14150, § 2, 2-23-23)

Sec. 54-322. Abandonment of facilities.

(a) Upon abandonment of a facility owned by a registrant in the public rights-of-way, the registrant shall notify the director within 60 days. All facilities that are abandoned and no longer in use by a registrant must be removed from the public rights-of-way. The director may further direct the removal by delivering written notice to remove all or any portion of such abandoned facility at the registrant's sole expense if the city determines that the abandoned facility's presence interferes with the public health, safety or welfare, which shall include, but shall not be limited to, a determination that such facility:

(1) Compromises safety at any time for any public rights-of-way user or during construction or maintenance in public rights-of-way;

(2) Prevents another person from locating facilities in the area of public rights-of-way where the abandoned facility is located when other alternative locations are not reasonably available; or

(3) Creates a maintenance condition that is disruptive to the public rights-of-way's use.

(b) In the event that the city does not direct the removal of the abandoned facility, the registrant, by its notice of abandonment to the city, shall be deemed to consent to the alteration or removal of all or any portion of the facility by the city or a third party at such third party's cost.

(c) If the registrant fails to remove all or any portion of an abandoned facility as directed by the city within a reasonable time period as may be required by the city under the circumstances, the city may perform such removal and charge the cost of the removal against the registrant. Any fees incurred by the city for removal of the facility shall be attached to any business tax receipt maintained by such entity in the city, and payment of such penalties shall be required prior to renewal of any such business tax receipt.

(Ord. No. 14150, § 2, 2-23-23)

Secs. 54-323—54-340. Reserved.

ARTICLE IX. COCONUT GROVE SPECIAL EVENTS DISTRICT*

Sec. 54-341. Created, restrictions; application and approval required.

(a) *Boundaries of district.* There is hereby created a special events district bounded on the north by Oak Avenue, on the south by the shoreline of Biscayne Bay, on the east by Mary Street and Kenneth Meyers Park, and on the west by McDonald Street, Commodore Plaza and Peacock Park, and expanding in a linear capacity along the public right-of-way portions of South

*__City Code cross references—__Community development department, § 2-411 et seq.; amusements, ch. 5; Coconut Grove special vending district, § 39-34 et seq.; stadiums and convention centers, ch. 53.

Bayshore Drive from Mary Street to Aviation Avenue; Main Highway from Commodore Plaza to Franklin Avenue; and Pan American Drive from Biscayne Bay to South Bayshore Drive with the limitations set forth below in paragraph (b), such district to be known as the "Coconut Grove Special Events District."

(b) *Purpose and intent of district.* To ensure that "special events" occurring within public parks, right-of-way and other public places located within the district boundaries take place in accordance with prescribed rules and regulations to safeguard public resources and interests of the community and are designed to encourage and market the district for development of business, commerce and tourism.

(c) *Restrictions established.* The following restrictions shall apply to the district, excluding permitted activities undertaken on Pan American Drive:

(1) There shall only be two events per month. The term "event," for the purpose of this article, is hereby defined as an activity where any one of the following conditions occur within the special events district:

a. Any selling of alcoholic beverages in the public rights-of-way, or in city parks, other than in lawfully permitted sidewalk cafes;

b. Any pyrotechnics display;

c. Any temporary, partial use of, complete or partial obstruction of public streets or rights-of-way pursuant to section 54-6 or section 54-6.3 of this Code connected with an activity satisfying the criteria set forth in the other subsections herein;

d. Any parade or procession, other than funeral processions, of more than _____ vehicles*, floats, bands or marching units;

*__Note—__The city attorney advised that this number has been left off since it is to be determined by the police department.

e. Any temporary vending or concession permit conducted in the public rights-of-way or parks pursuant to sections 31-50 and 38-65 of this Code; or

f. Any use of mechanical rides or amusements.

(2) Only one of the two events may involve street closures.

(3) The two events shall not take place on successive weekends.

(4) Any annual event held in the Coconut Grove area prior to the adoption of this section is exempt from the above restrictions; however, no more than 24 events per year, inclusive of those events exempted pursuant to subsection (c)(1) herein shall be permitted. Further, if any of the preexisting events do not occur in a given year, for any reason other than an act of God, the event loses the exemption set forth in this section.

(d) *Application for special events; approval required.* Applications for special events in the district must be submitted to the city manager or its designated city department for the district who will coordinate and secure comments from other affected city departments and agencies. The completed application shall be submitted annually at least 120 days, but not earlier than 360 days prior to the event. Provided, however,

applications for events held in prior years shall be given preference for the same dates, week or weekend previously used.

(1) Upon acceptance of a completed application by the city manager or designee for review, the city manager or designee shall schedule the application for the next available Coconut Grove business improvement district board ("BID board") meeting for review and recommendation in accordance with the provisions of this article.

(2) The applicant shall be responsible for making a full presentation regarding the proposed special event to the BID board. At a minimum the presentation to the BID board shall include a copy of the completed application along with a discussion and presentation of the matters described in subsection (4)a.

(3) The BID board retains the right to reject an application, including but not limited to, whenever a city department makes an adverse recommendation due to failure of the proposed application to provide the necessary safeguards to the citizens and residents of the district and/or to district property/facilities. An applicant whose application has been rejected by the BID board, may make application to appeal the BID board's decision to the city commission if filed within five days after the BID board's decision is issued.

(4) At the time of application, each applicant is required at a minimum to submit the following information and documentation. Provided, however, additional information and documentation may be required as determined by the director or any city department.

A completed application for the requested special event, including but not limited to, the name of the event; proposed location for the event along with a site diagram reflecting location, parking, activities, security and emergency services; proposed parking area and/or arrangements with parking facilities for the event; a description of the elements or activities planned for the event; estimated audience (including counts from previous years if applicable); anticipated sponsors, television, radio, internet coverage for the event; identification and a description of the financial resources of producers, owners and the applicant for the event; name, address and contact numbers for the local contact and event operator, if different; event setup and teardown dates; event hours of operation; event staffing, employees and volunteers along with a description of their responsibilities in connection with the event; and tentative production schedule.

(5) At the time of application, each applicant is required to notify by first class U.S. Mail, return receipt requested, all owners of property within 375 feet of the proposed event area. For purposes of this requirement, the names and addresses of property owners shall be deemed those appearing on the latest tax rolls. In the case of condominiums, notice need only be sent to the condominium association. Applicant shall be solely responsible for complying with the foregoing notice requirement and at the time of application shall furnish an affidavit stating that the notice requirements of this section have been complied with and holding harmless the department of off-street parking ("DOSP"), the BID board, the city, and their respective officers and employees and shall indemnify DOSP, the BID board, the city, and their respective officers and employees for any claims of damages, liability or injuries which may be occasioned in connection with, as a direct or indirect result of, or relating to the notice requirement of this section. The foregoing notice requirement may be combined by the applicant with other City Code-required notices, as related to said event.

(e) *Waiver or modification of restrictions.* The city commission has the authority to waive or modify any of the above restrictions.

(Ord. No. 10764, § 1, 7-12-90; Code 1980, § 54-171; Ord. No. 11800, § 4, 6-8-99; Ord. No. 12221,

§ 1, 4-18-02; Ord. No. 12564, § 3, 7-22-04; Ord. No. 13059, § 4, 3-12-09; Ord. No. 13467, § 2, 6-12-14; Ord. No. 14138, § 13, 2-9-23)

City Code cross reference—Sidewalk cafes, § 54-221 et seq.

Sec. 54-342. Reserved.

Editor's note—Ord. No. 12564, § 3, adopted July 22, 2004, repealed § 54-342 in its entirety, which pertained to the Coconut Grove special events and marketing committee and derived from Ord. No. 10764, § 2, adopted July 12, 1990; Ord. No. 11130, § 19, adopted March 24, 1994; Ord. No. 11189, § 7, adopted October 27, 1994; the Code of 1980, § 54-172; Ord. No. 11373, § 13, adopted June 27, 1996; Ord. No. 11711, § 2, adopted October 13, 1998; Ord. No. 11800, § 4, adopted June 8, 1999; Ord. No. 12221, § 1, adopted April 18, 2002; Ord. No. 12364, § 2, adopted May 8, 2003; Ord. No. 12376, § 1, adopted June 12, 2003.

Sec. 54-343. Supplementary user fee established.

There shall be a fee required for special events occurring within the Coconut Grove special events district as follows:

(1) a. The promoter of the event shall pay to the city a supplementary user fee of 25 percent of the estimated cost of the city's services for the event. This supplementary fee is in addition to the monies paid for the city's services fee.

b. In the event that the city services fee is lower or higher than the estimated cost previously given, either the city shall refund certain monies or the promoter shall pay to the city additional monies within 30 days after the date of the event.

(2) The supplementary user fee shall not exceed the amount of $10,000.00.

(3) The supplementary fee shall be paid to DOSP for deposit into a separate account set forth herein below at least ten days prior to the approved special event.

(4) All revenues derived from said supplementary fee shall be deposited in an account known as the Coconut Grove special events district fund and shall be utilized for promotion, marketing, advertising of the district as well as administrative expenses of the Coconut Grove business improvement district board ("BID board"), and for the maintenance, improvement and beautification of Peacock Park and the Coconut Grove special events district, without reducing the otherwise normal allocation to the parks. Additionally, funds currently collected by the city department of resilience and public works from "sidewalk cafe and banner fees" in the Coconut Grove special events district shall also be placed into the Coconut Grove special events district fund following the adoption date of the ordinance from which this section derives.

(5) The city commission may waive all or part of the supplementary user fee.

(Ord. No. 10764, § 3, 7-12-90; Code 1980, § 54-1733; Ord. No. 12221, § 1, 4-18-02; Ord. No. 13059, § 4, 3-12-09; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-344. Supplementary banner fee established.

A supplementary banner fee is established for horizontal banners in the public right-of-way relating to special events occurring within the Coconut Grove special events district, and approved by the Coconut Grove business improvement district board ("BID board") pursuant to section 54-341, as follows:

(1) The promoter of the event requesting to display a horizontal banner within the Coconut Grove special events district shall pay to the BID board, a supplementary banner fee of $1,000.00 per banner when the event is promoted by a for profit organization, and $500.00 per banner when the event is promoted by a nonprofit organization. This

supplementary banner fee is in addition to the monies paid for any of the city's services regarding banners.

(2) The supplementary banner fee shall be paid to the BID board for deposit into a separate account set forth herein below at the time the promoter of the event submits a banner application to resilience and public works.

(3) Each banner in the Coconut Grove special events district shall be allowed to remain for no longer than 30 days.

(4) All revenues derived from said supplementary banner fee shall be deposited in an account known as the Coconut Grove special events district fund and shall be used for promotion, marketing, advertising of the district and administrative expenses of the BID board, and for the maintenance, improvement and beautification of Peacock Park and the Coconut Grove special events district, without reducing the otherwise normal allocation to the parks.

(5) The city commission may waive all or part of the supplementary banner fee.

(Ord. No. 12744, § 1, 11-17-05; Ord. No. 13059, § 4, 3-12-09; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18)

Secs. 54-345—54-370. Reserved.

ARTICLE X. PEDESTRIAN PRIORITY ZONES*

Sec. 54-371. Downtown pedestrian priority zone—Established; boundaries.

There is hereby created a Downtown Pedestrian Priority Zone ("DPPZ"), the boundaries of which shall be concurrent with the boundaries of the downtown development authority as described in section 14-27 of the City Code.

(Ord. No. 13949, § 3, 12-10-2020)

Sec. 54-372. Same—Standards.

DPPZ standards for pedestrian comfort and safety are hereby established to account for the exceptional urban context of downtown Miami; to safeguard its unique relationship between land use and multi-modal transportation infrastructure; and to promote safety, health, amenity, economic vitality, and general welfare within the DPPZ. All public rights-of-way within the DPPZ shall, subject to section 54-375 of the City Code:

(1) Provide a minimum six-foot unobstructed pedestrian path at all sidewalks;

(2) Provide perpendicular curb ramps at all intersections;

(3) Provide marked crosswalks at all intersections at all four corners and mid-block crosswalks at blocks greater than 400 feet;

(4) Provide pre-timed fixed signals at all traffic controlled intersections with a minimum of one second of crossing time for every two and eight-tenths feet of street width;

(5) Provide driving lane widths of no more than ten feet, turning lanes of no more than 12 feet, and sharrow lanes of no more than 12 feet;

(6) Provide sidewalk bulb-outs extending at least 20 feet from crosswalks in either direction at all street intersections and curb radii not exceeding 15 feet;

(7) Provide broad spectrum (white) mid-block street lighting that ensures a consistent and uniform distribution of illumination on all sidewalks;

(8) Provide continuous shade tree canopy on all sidewalks with widths ten feet or greater; where sidewalks are less than ten feet wide, require adjacent buildings

*__Editor's note—__Prior to the reenactment of article X by Ord. No. 13949, § 3, adopted December 12, 2020, Ord. No. 13467, § 2, adopted June 12, 2014, repealed the former article X, sections 54-371—54-382 in its entirety, which pertained to the use of public rights-of-way for installation of low level wind shear alter system(s), and derived from Ord. No. 10963, § 3, adopted April 2, 1992; the Code of 1980, §§ 54-180—54-191, and Ord. No. 13195, § 5, adopted September 27, 2010.

to have canopies, overhangs, and/or other architectural devices that provide shade onto the sidewalk area;

(9) Be designed to and posted at a maximum speed limit of 25 miles per hour ("25 mph"); and

(10) Prohibit "right turn on red" at all intersections.

(Ord. No. 13949, § 3, 12-10-2020)

Sec. 54-373. Little Havana pedestrian priority zone, subzones, and greenways—Established; boundaries.

(a) There is hereby created a Little Havana Pedestrian Priority Zone ("LHPPZ"), the subzones of which collectively comprise the LHPPZ as follows:

(1) Citrus Grove Subzone—An area bounded by Northwest 23rd Avenue to the west, Northwest 19th Avenue to the east, Northwest 6th Street to the north, and Northwest 1st Terrace to the south.

(2) Riverside Subzone—An area bounded by West Flagler Street to the north, Southwest 5th Street to the south, Southwest 14th Avenue to the west, and Southwest 9th Avenue to the east.

(3) Riverside Park/Jose Marti Park—An area bounded by Southwest 1st Street to the north, Southwest 6th Street to the south, Southwest 8th Avenue to the west, and Southwest 4th Avenue to the east.

(4) Miami Senior High School—An area bounded by Southwest 27th Avenue to the west, Southwest 22nd Avenue to the east, Southwest 3rd Street to the south, and West Flagler Street to the north.

(b) The following streets within the following respective LHPPZ subzone are designated as Little Havana Greenways:

(1) Citrus Grove: Northwest 19th Avenue, Northwest 3rd Street, and Northwest 6th Street.

(2) Riverside: Southwest 13th Avenue, Southwest 10th Avenue, Southwest 3rd Street, and Southwest 1st Street.

(3) Riverside Park/Jose Marti Park: Southwest 9th Avenue, Southwest 4th Avenue, Southwest 2nd Street, and Southwest 5th Street.

(4) Miami Senior High School: Southwest 25th Avenue, Southwest 22nd Avenue, Northwest 2nd Street, and Southwest 3rd Street.

(Ord. No. 13949, § 3, 12-10-2020)

Sec. 54-374. Little Havana pedestrian priority zone standards.

The following standards shall govern rights-of-way in the LHPPZ subject to section 54-375 of the City Code:

(1) Upon reconstruction of any Little Havana Greenway, as described above, include the following:

a. Crosswalks with perpendicular curb ramps and detectable warning strips at all four crossings.

b. Trees at least 30 feet on center.

c. Paint to change turning radii to 20 feet or 15 feet or build curb extensions.

d. Painted and striped parking lanes.

(2) Improve intersections for roadway collectors to include:

a. High-emphasis crosswalks at all four crossings if none exist.

b. Adding perpendicular curb ramps with detectable warning strips.

c. Using paint to change turning radii to 20 feet or 15 feet or build curb extensions for intersections with greenways only.

(3) Improve pedestrian signals at existing signalized intersections. All existing signalized intersections shall have:

a. Pedestrian signals.

b. Leading pedestrian intervals or adjusted signal timing for children.

c. Pedestrian countdowns on all signal heads.

(4) Initiate "no right turns on red" for turning movement towards schools at signalized intersections during school hours.

(5) Study opportunities for mid-block crossings on established routes to schools:

a. For roadway segments that are more than 300 feet from the nearest traffic signals.

b. To include pedestrian refuge islands.

c. On painted islands that can be converted to pedestrian refuge islands when not in conflict with driveways.

(6) Maintenance standards are:

a. Restriping crosswalks that are faded.

b. Restriping faded stop lines.

c. Replacing missing or faded school zone signs.

d. Replanting empty curb extension planters.

(7) Install 25 miles per hour speed limit signs on residential streets.

(Ord. No. 13949, § 3, 12-10-2020)

Sec. 54-375. Conflicts with other chapters and regulations.

Within any pedestrian priority zone, this article shall govern in the event of conflicts with:

(1) Other provisions of the City Code;

(2) The city's engineering standards as defined in section 54-1 of the City Code;

(3) To the extent allowed by law, the minimum standards for public works construction as promulgated in the Miami-Dade County Public Works Manual pursuant to Section 2-100 of the Miami-Dade County Code of Ordinances. Variances may be requested from the Miami-Dade County Transportation and Public Works Director;

(4) The Florida Greenbook; and

(5) To the extent allowed by law, any other guidelines or standards of any other entity having jurisdiction over public rights-of-way within any pedestrian priority zone.

(Ord. No. 13949, § 3, 12-10-2020)

Secs. 54-376—54-410. Reserved.

ARTICLE XI. USE OF THE PUBLIC RIGHTS-OF-WAY FOR INSTALLATION OF PAY TELEPHONES*

Sec. 54-411. Statement of purpose.

The city commission hereby finds and declares that it is necessary and reasonable for this article:

(1) To regulate the erection, construction, reconstruction, installation, operation, maintenance, dismantling, testing, repair and use of pay telephones in, upon, along, across, above, over, under or infringing upon the streets or sidewalks within the corporate limits of the city, as now or in the future may exist;

(2) To provide the city with compensation for occupation and use of the city's streets or sidewalks for pay telephones; and

(3) To provide the department of resilience and public works of the city with compensation for the cost of regulation imposed by this article on pay telephones.

(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-412. Definitions.

For the purposes of this article and any agreement in accordance herewith, the following terms, phrases, words and their derivations shall have the meaning given herein unless otherwise specifi-

*__Editor's note—__Ord. No. 11937, adopted June 29, 2000, repealed the former Art. XI §§ 54-411—54-429. Section 2 of said ordinance enacted new provisions as set out herein. The former Art. XI pertained to similar subject matter and derived from Code 1980, §§ 54-192—54-210; Ord. No. 11099, § 2, adopted Nov. 23, 1993; Ord. No. 11171, § 2, adopted July 26, 1994.

cally provided in this article, unless the context clearly indicates otherwise or unless such meaning would be inconsistent with the manifest intent of the city commission and/or with F.S. ch. 337, as amended:

City shall mean the City of Miami, Florida, its elected officials, agents and employees.

Department shall mean the director of the resilience and public works department of the City of Miami or his/her designee.

Pay telephone shall mean any self-service or coin or credit-card-operated telephone, including enclosures, or bank of such telephones placed adjacent to each other.

Pay telephone permit shall mean the document by which a privilege is granted by the city to authorize a person to erect, construct, reconstruct, install, operate, maintain, dismantle, test, repair and use pay telephones occupying the streets or sidewalks within the city. Any pay telephone permit issued in accordance herewith shall be nonexclusive.

Permittee shall mean any person issued a permit in accordance with the provisions of this article responsible for erection, construction, reconstruction, installation, operation, maintenance, dismantling, testing, repair and use of pay telephones occupying the streets or sidewalks within the city.

Person shall mean an individual, business, firm, corporation, association, partnership or other organization or group of persons.

Sidewalk shall mean that area reserved for the public use of pedestrian traffic within the city's zoned rights-of-way.

State road shall mean those roadways that are part of the state highway system under the jurisdiction of the Florida Department of Transportation.

Street shall mean all that area reserved for the public use for public rights-of-way purposes and shall include, but not be limited to: highways, avenues, roads, drives, lanes, boulevards, courts, concourses, bridges, cul-de-sacs, tunnels, waterways, parks, roadways, parkways, alleys and sidewalks.

(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-413. Pay telephone permit required; length of permit; fine and removal of pay telephone(s) for placement without permit or certification.

(a) No person may place or maintain any pay telephone on or above any street or sidewalk in the corporate limits of the city without having first obtained a pay telephone permit from the city as provided in this article.

(b) Any pay telephone permit issued by the city in accordance herewith shall be a nonexclusive permit for the use of the streets or sidewalks within the city for the erection, construction, reconstruction, installation, operation, maintenance, dismantling, testing, repair and use of pay telephones.

(c) Any pay telephone permit issued by the city shall continue in full force and effect so long as the permittee is in compliance with this article, and all applicable federal, state and local ordinances and regulations and the space occupied is not needed for a public purpose.

(d) In the event any pay telephone permit shall be revoked, the applicable pay telephones(s) shall be removed from the streets or sidewalks in accordance with the provisions of this article.

(e) Placement of pay telephone(s) on a street or sidewalk without timely securing a pay telephone permit as required by this article, or failure to have a current valid public service commission certification shall result in removal of the pay telephone(s) by the city. The owner shall be assessed a $230.00 fine per pay telephone and storage costs in accordance with subsection 54-422(c).

(f) No pay telephone permit shall be issued by the city within a state road right-of-way.
(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13195, § 5, 9-27-10)

Sec. 54-414. Pay telephone permit application.

(a) A written pay telephone permit application, along with the permit application fee, in accordance with section 54-418, shall be filed with the department of resilience and public works for each pay telephone requested.

(b) To be acceptable for filing, an application for the grant of a pay telephone permit shall contain, at minimum, the following information:

(1) Site plan, in accordance with section 54-420(h) and a copy of the applicant's public service commission certification.

(2) Bond, in accordance with section 54-423.

(3) Indemnification/hold harmless agreement, in accordance with section 54-424.

(4) Insurance, in accordance with section 54-424.

(5) Approval for provision of service from local service provider (i.e. AT&T) showing telephone number of proposed pay telephone (if available). The permittee shall notify the city in writing of any telephone number change for an approved/permitted pay telephone.

(6) A global positioning system (GPS) coordinate, within ten feet accuracy, of each pay phone.

Any application for a pay telephone permit shall not be considered until all of these requirements have been met. Additionally, the time for processing by the city of such application shall not begin until all requirements have been met.

(c) Each pay telephone provider may be required to install and maintain, at no charge to the city, a specified number of pay telephones in city-owned and operated facilities. The number and location of pay telephones in city-owned and operated facilities shall be determined by the city, but, in no case, shall exceed one pay telephone per ten pay telephones permitted in accordance with this article.

(d) All permit applications submitted under this section to the department of resilience and public works shall be awarded on a first come, first serve basis.

(e) Once the pay telephone permit is approved, a decal will be issued to the provider for placement on the pay telephone in a manner such that it is easily visible to code enforcement personnel.

(f) At any time during the three-year term of a specific permit, the pay telephone provider may voluntarily notify the director of resilience and public works, in writing, of an intent to remove the pay telephone and cause the permit to be revoked. Any pay telephone, for which voluntary revocation of the permit is requested by the provider, in accordance with this section, must be removed within 30 calendar days. If the pay telephone is not removed within 30 calendar days, the city shall remove the pay telephone in accordance with section 54-422.
(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13087, § 2, 9-10-09; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-415. Pay telephone permit locations.

(a) Any pay telephone permit issued in accordance herewith shall apply only to the location or locations stated on the pay telephone permit or permits.

(b) The location and means of installation of pay telephones shall be subject to the department's approval.

(c) Nothing in this article shall be construed as a representation, promise or guarantee by the city that any other permit or other authorization required under any city ordinance for the installation of pay telephone(s) shall be issued. The requirements for any and all other permits as may be required by any city ordinance, shall still apply and all other applicable permit fees shall still be due.
(Ord. No. 11937, § 2, 6-29-00)

Sec. 54-416. Technical standards.

All technical standards governing construction, reconstruction, installation, operation, maintenance, dismantling, testing, repair and use of pay telephones provided for herein shall be in accordance with all applicable federal, state and local laws and regulations, including but not limited to the most recent editions of the Florida Building Code, National Electrical Code and the National Electrical Safety Code.
(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13087, § 2, 9-10-09)

Sec. 54-417. Powers and duties of city resilience and public works director.

The resilience and public works director or his/her authorized designee shall have the following powers and duties:

(1) Receive and review applications for pay telephone permits;

(2) Review and cause to be audited all reports and filings submitted by the permittee to the city pursuant to this article; and

(3) Promulgate and regularly review, as needed, regulations regarding the construction, reconstruction, installation, operation, maintenance, dismantling, testing, repair and use of any pay telephone(s) established by pay telephone permit in accordance herewith.

(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-418. Compensation for permit; late fee, revocation and removal of pay telephone(s) for nonpayment.

(a) The initial nonrefundable fee payable by an applicant for a permit at the time of application for installation of pay telephones shall be $230.00 for each pay telephone requested to be installed pursuant to this article. An initial inspection fee of $10.00 per location shall accompany the pay telephone permit application.

(b) There shall also be an annual permit fee of $175.00 per year per pay telephone imposed for the administration and regulation of pay telephones in and the use or occupancy of the streets or sidewalks of the city.

The pay telephone permit year shall begin on October 1 and end on September 30. The fee for any pay telephone permitted during the permit year shall be prorated to the end of the current permit year. The annual permit fee shall be due and payable on or before October 1. Permittee shall pay a late fee at the rate of 18 percent per annum of the amount of the unpaid or underpaid fee provided, however, that such rate does not exceed the maximum amount allowed under applicable law. If said fee is not received in total by the city within 60 calendar days of the start of the permit year, the city shall notify the permittee and the permit shall be revoked and the pay telephone removed, in accordance with section 54-422.

(c) The acceptance of any payment required hereunder by the city shall not be construed as an acknowledgment that the amount paid is the correct amount due, nor shall such acceptance of payment be construed as a release of any claim which the city may have for additional sums due and payable.

(1) All fee payments shall be subject to audit by the city and assessment or refund if the payment is found to be in error.

(2) In the event that such audit results in an assessment by and an additional payment to the city, such additional payment shall be subject to interest at the rate of one percent per month from the date due until the date payment is made.

(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13195, § 5, 9-27-10)

Sec. 54-419. Use of streets or sidewalks.

(a) Before commencing installation of a pay telephone(s) in any way connected with the streets or sidewalks of the city, the permittee shall first obtain the written approval of, and all other necessary permits from, all appropriate city agencies, including but not limited to, the department of resilience and public works.

Applications for such approval shall be made in the form prescribed by the director of resilience and public works or his/her authorized designee. Approval or denial of pay telephone permits shall be issued by the director within 60 calendar days of application for such permits, unless time is tolled due to an incomplete application or failure of applicant to respond to a written request from the department.

(b) Upon obtaining such written approval, the permittee shall give the department of resilience and public works written notice of proposed installation within a reasonable time, but in no event shall such notice be given less than ten calendar days before such commencement except for emergency repairs of existing pay telephones, lines or cables.

(c) Any person who submits a request for a permit in accordance herewith shall include therein fully executed agreements for the use of adjacent private property, if applicable, with the owner(s) of such facilities to be used or affected by the installation of the proposed pay telephone(s).

(d) It shall be unlawful for the permittee or any other person to open or otherwise disturb the surface of any street or sidewalk for any purpose whatsoever without obtaining approval to do so after proceeding in the manner prescribed in subsections (a) and (b) hereof. Violation of this section shall subject the permittee to all penalties and remedies prescribed therein and to all other remedies, legal or equitable, which are available to the city.

(e) The permittee shall restore any street or sidewalk it has disturbed in accordance with the provisions of the city's standard specifications for streets or sidewalks or as directed by the city's engineer in the field and shall, at its own cost and expense, restore and replace any other property disturbed, damaged or in any way injured by or on account of its activities to as good a condition as such property was in immediately prior to the disturbance, damage or injury or pay the fair market value of such property to its owner.

(f) The permittee shall, at its own cost and expense, protect, support, temporarily disconnect, relocate in the same street or sidewalk, or remove from such street or sidewalk, any of its property when required to do so by the city because of street or other public excavation, construction, repair, regrading or grading; traffic conditions; installation of sewers, drains, water pipes, city-owned power or signal lines, tracts; vacation or relocation of streets or any other type of structure or improvement of a public agency, or any other type of improvement necessary for the public health, safety or welfare, or upon termination or expiration of the permit.

(g) Nothing in this article or any permit issued in accordance herewith shall be construed as authorizing the permittee to erect and maintain new poles in areas served by existing poles, if the poles are available for permittee's cable. The permittee shall obtain written approval from the department of resilience and public works and other appropriate city agencies before installing any underground conduits where none exist.

(h) The permittee shall keep accurate, complete and current maps and records of its facilities which occupy the streets or sidewalks within the city, detailed by linear foot and shall furnish, as soon as available, two complete and updated copies of such maps and records, including as-built drawings, to the department of resilience and public works on an annual basis.

(i) The permittee, upon 30 calendar days' notice by the city, shall temporarily or permanently remove, adjust, raise or lower its facilities within the rights-of-way when the city determines that such action is needed for public use of the rights-of-way.

(j) The permittee shall obtain the written permission of the owner, including the city, before it trims or prunes any tree or other vegetation.

(k) The permittee shall comply with all rules and regulations issued by the department of resilience and public works governing the construction and installation of pay telephones. In addition:

(1) All service drops to pay telephones shall be underground, unless otherwise determined by the department of resilience and public works.

(2) Any other pay telephone installations may be required to be serviced underground, in accordance with City Code and departmental policy.

(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-420. Location and placement of pay telephones.

(a) The installation of pay telephones in any manner connected with the streets or sidewalks within the city shall be subject to approval by the department of resilience and public works and shall conform to the following requirements:

(1) It shall be free of interference with the flow of pedestrians, wheelchairs or vehicular traffic.

(2) It shall allow ingress or egress from any residence or place of business.

(3) It shall be free of interference with the function of traffic signs or signals, hydrants or mailboxes.

(b) Pay telephones shall be placed or otherwise secured, so as to prevent being blown down or around the street or sidewalk, but shall not be chained or otherwise secured to any traffic or street signs, signals, hydrants, mailboxes or other street amenities.

(c) Pay telephones shall be placed, installed, used or maintained so as to be in compliance with chapter 54 of the Code and shall not be located within five feet of any pedestrian crosswalk, bus stop, taxistand or counter window or within 15 feet of any fire hydrant, fire callbox, police callbox, or other emergency facility.

(d) The total number of pay telephones in a bank of pay telephones shall not exceed two. Except for subsequent application by the same permittee for the placement of an additional pay telephone adjacent to such permittee's existing pay telephone, the following minimum distance requirement, measured along the route of ordinary pedestrian travel, shall apply: unless approved in writing by the director of resilience and public works, no pay telephone shall be placed on the streets or sidewalks within 500 feet of any other pay telephone on the same side of the street or sidewalk within 500 feet of another pay telephone.

(e) Pay telephones shall not be installed in T3 or T4-R transect zones, as described in Miami 21, the zoning code of the city, as amended.

(f) Upon receipt by the director of resilience and public works of a written complaint by a citizen or oral or written communication from a representative of the police department, department of fire-rescue, the department of resilience and public works, or other city code enforcement personnel that the location and use of a pay telephone constitutes a public nuisance, in accordance with chapter 46 of the Code, as amended, 30 calendar days after proper written notice is given to the permittee, the director may require that the pay telephone to be restricted to outgoing calls only. Permitted shall, within 30 calendar days after proper written request is given by the department, seek permission from the public service commission to restrict the pay telephone to outgoing calls only. Permittee shall restrict the calls to outgoing calls within ten calendar days after receiving permission from the public service commission to do so.

(g) In the event that a particular pay telephone does not meet the location and placement requirements set forth herein, an applicant who has otherwise met all the requirements of this article may appeal the decision of the department to the city manager within 30 calendar days of the date of the denial. It is the obligation of the applicant to submit all documentation in support of such appeal. The city retains the right to deny any such appeal if in the discretion of the city manager the supporting documentation submitted by the applicant does not alter the circumstances of the original denial. The city manager may order the issuance of the permit if it is shown that the issuance of such a permit is reasonable in light of all the information presented.

(h) A plan or sketch of the location of the proposed pay telephone shall be prepared by the applicant and furnished to the department at the time of application, showing all required distances as outlined under subsections (a)—(d) of this section and in sufficient detail to describe the

proposed size, location (referencing the zoned street and monument line), equipment and means of installation.
(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13467, § 2, 6-12-14; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14138, § 13, 2-9-23)

Sec. 54-421. Standards for maintenance, installation and operation of pay telephones.

Pay telephones shall comply with the requirements of all applicable federal, state and local laws, including the applicable provisions of the Americans with Disabilities Act of 1992 and the accessibility guidelines published in accordance thereto and with the following standards:

(1) Pay telephone enclosures surrounding pay telephones shall not exceed eight feet in height, four feet in width or four feet in depth.

(2) The design of all pay telephone enclosures, including signage, shall be subject to the approval of the department of resilience and public works.

(3) Pay telephones shall be maintained in a neat and clean condition and in good repair at all times.

(4) Any permittee who fails to maintain its pay telephone in working condition shall be given a 30-day written notice by the department to repair the pay telephone. If the pay telephone is not in working condition at the end of the 30-day period after proper notice is given, the department may revoke the permit and remove the pay telephone from the street or sidewalk, in accordance with section 54-422.

(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-422. Pay telephone permit revocation; removal generally and storage costs.

(a) Upon receipt by the director of resilience and public works of a written complaint by a citizen or oral or written communication from a representative of the police department, department of fire-rescue, department of resilience and public works, or other city code enforcement personnel that a pay telephone fails to comply with the terms of this article or other provision of the Code, as amended, including but not limited to, failure to obtain a pay telephone permit, the director shall conduct an investigation into the complaint.

(b) If the investigation referenced in (a) above finds substantial evidence that the pay telephone fails to comply with the terms of this article or other provision of the Code, as amended, or if the pay telephone provider fails to remit the annual permit fee within 60 calendar days of the start of the permit year, in accordance with section 54-418, the pay telephone provider shall be notified in writing that if the violation is not cured within 30 calendar days, any existing permit issued by the department for the installation of the pay telephone may be revoked and/or the pay telephone shall be removed by the city from the street or sidewalk.

(c) The pay telephone so removed shall be stored within a city facility. The city does not assume any liability for damage to the equipment removed and stored pursuant to this subsection. Any permittee whose pay telephone(s) has been removed and stored by the city pursuant to this subsection may reclaim said pay telephone(s) after payment to the city of an administrative fee of $75.00 plus storage costs, to compensate the city for costs incurred for its removal and storage.
(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14138, § 13, 2-9-23)

Sec. 54-423. Bonds.

(a) All persons submitting a request for a pay telephone permit shall file with their request bonds solely for the protection of the city with a surety company or trust company or companies as surety or sureties in the amount sufficient to protect the city from any and all damages or costs suffered or incurred by the city as a result thereof, including but not limited to attorney's fees and costs of any action or proceeding, and including the full amount of compensation,

indemnification, cost of removal or abandonment of any property or other costs which may be in default, up to the full principal amount of such bond, which shall not exceed the amount of $50,000.00; and the condition shall be a continuing obligation during the entire term of any pay telephone permit issued in accordance herewith and thereafter until the permittee shall have satisfied in full any and all obligations to the city which arise out of or pertain to the pay telephone permit.

(b) None of the provisions of this section nor any bond accepted by the city pursuant hereto, nor any damages recovered by the city thereunder, shall be construed to excuse the faithful performance by or limit the liability of the permittee under this article or any pay telephone permit issued in accordance herewith or for damages either to the full amount of such bond or otherwise.
(Ord. No. 11937, § 2, 6-29-00)

Sec. 54-424. Indemnity and insurance.

(a) The city shall not at any time be liable for any injury or damage occurring to any person or property from any cause whatsoever, arising from the use, operation or condition of the permittee's pay telephone(s).

(b) Applicant agrees to indemnify, defend, and hold harmless the city, its officials, employees, agents, and, if applicable, its instrumentalities and each of them from and against all loss, cost, penalties, fines, damages, claims of any nature (including but not limited to, libel, slander, invasion of privacy, and unauthorized use of any trademark, trade name, or service mark), including expenses and attorneys' fees, and any and all liabilities by reason of injury to or death of any person, damage to, destruction, or loss to any property including the city, its instrumentalities, officials, employees, and agents arising out of or in connection with the performance or nonperformance of the services contemplated by this permit/agreement which is directly or indirectly caused, in whole or in part, by any act, omission, default, liability, or negligence, whether active or passive, of the applicant, its employees, agents, servants, or contractors, unless such act or omission is solely caused by the city, its instrumentalities, officials, employees, and agents. The applicant further agrees to indemnify, defend, and hold harmless the city, its instrumentalities, officials, employees, and agents against all liabilities which may be asserted by an employee or former employee of the applicant, or any of its contractors as provided above, for which the applicant's liability to such employee or former employee would otherwise be limited to payments under workers' compensation or similar laws. In addition, the applicant understands and agrees that except where caused by the negligence or misconduct of the city, its instrumentalities, officials, employees, or agents, the city shall not be liable for any loss, injury, or damage to any personal property or equipment of the applicant, its employees, agents, contractors, business licensees, or invitees placed on city property and its instrumentalities, and shall be at the sole risk of the applicant thereof. The applicant shall ensure that adequate safety precautions are in effect at all times during the term of the permit. It shall be a further condition precedent to the issuance of any such permit for work to be performed in the public right-of-way that the permit holder(s) is/are jointly and severally responsible, at each permit holder's sole expense, for any damages regarding restoring the public right-of-way to its original condition before installation of facilities. The indemnification shall survive termination of this permit/agreement.

(c) Upon the granting of a pay telephone permit and at all times during the terms of the permit, including the time for removal of facilities as provided for herein, the applicant/permittee shall obtain, and provide to the city a certificate of insurance as follows:

A certificate of insurance with respect to commercial general liability in an amount not less than $1,000,000.00 per occurrence, $2,000,000.00 aggregate, and any endorsements thereto, including, but not limited to, premises and operations liability, personal and advertising injury, products, and completed operations. The certificate shall also afford coverage for contingent exposures and underground hazards, if applicable. The certificate must reflect primary

and noncontributory language and list the city as an additional insured. The certificate shall further include coverage for all owned, hired, and non-owned vehicles with a combined single limit of $500,000.00 per accident also listing the city as an additional insured along with workers' compensation including waiver of subrogation subject to the statutory limits of the State of Florida. The insurance herein required shall remain in full force and effect during the entire term of the permit. Additionally, all such insurance shall be subject to review and approval by the city's risk management department.

All insurance policies required above shall be issued by companies authorized to do business under the laws of the State of Florida with the following qualifications:

The company must be rated no less than "A-" as to management and no less than Class "V" as to financial strength by the latest edition of Best's Insurance Guide published by A.M. Best Company, Oldwick New Jersey, or its equivalent subject to the approval of the city's risk management department. Companies not meeting the above rating requirements shall submit proof of reinsurance from qualifying insurers having or exceeding the required rating criteria.

The registrant/applicant shall provide 30 days prior written notice of cancellation to the city for any reason other than non-payment of premium in which ten days' notice shall apply.
(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13918, § 2, 9-24-20)

Sec. 54-425. Police powers.

Nothing in this article or in any pay telephone permit issued in accordance herewith shall be construed as an abrogation by the city of any of its police powers.
(Ord. No. 11937, § 2, 6-29-00)

Sec. 54-426. Transfers; assignments; subleases.

(a) The permittee shall not transfer or assign its interest in any permit issued in accordance herewith, other than a general assignment of the permittee's entire assets or a pledge of the assets as collateral on a loan, without the prior written authorization of the director, department of resilience and public works. For the purposes of this section, a merger of consolidation of the permittee with another company shall not be deemed a transfer or assignment. However, written notice thereof shall be given to director of resilience and public works.

(b) The permittee shall, within ten calendar days, notify the city's resilience and public works director, in writing, of any sublease, license, or other agreement it enters into with any person authorized to use, lease or license any or all of the permittee's facilities and shall furnish the name, address and telephone number of such sublessee, licensee or other user.
(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-427. Service of notice.

All notices required to be given to the city under any provision of this article shall be deemed served when received through the U.S. Mail or delivered by hand in writing to the city's resilience and public works director or to any person in charge of the department during normal business hours. Any notice required to be given to a permittee under any provision of this article shall be deemed given, whether actually received or not, if sent by U.S. registered or certified mail, return receipt requested, postage prepaid, and addressed to the permittee at the address given in its most recently issued permit.
(Ord. No. 11937, § 2, 6-29-00; Ord. No. 13792, § 1, 10-11-18)

Sec. 54-428. No liability or warranty.

This article shall not be construed to create or hold the city responsible or liable for any damage to persons or property by reason of any inspection or reinspection authorized herein or failure to inspect or reinspect, nor shall the issuance of any pay telephone permit nor the approval or disapproval of any installation authorized herein constitute any representation, guarantee or war-

ranty of any kind by, nor create any liability upon, the city or any official, agent or employee thereof.
(Ord. No. 11937, § 2, 6-29-00)

Secs. 54-429—54-439. Reserved.

ARTICLE XII. RESERVED*

*__Editor's note—__Ord. No. 13467, § 2, adopted June 12, 2014, repealed the former article XII, sections 54-440 and 54-445, which pertained to the Little Havana special events district, and derived from Ord. No. 11797, § 3, adopted May 11, 1999.

Chapter 55

SUBDIVISION REGULATIONS*

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Sec. 55-16.	Consideration of easements and alleys when alleged to be abandoned as a matter of law.

*__City Code cross references—__Fees relating to subdivision documents, § 2-268 et seq.; buildings, ch. 10; streets and sidewalks, ch. 54; planning and zoning, ch. 62.

__County Code cross references—__Powers and duties of county public works department concerning subdivisions and platting, § 2-100(c); subdivision regulations, ch. 28.

__State law reference—__Subdivisions, platting, F.S. §§ 177.011—177.151.

Sec. 55-1. Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Alley is any thoroughfare or passageway (not officially designated as a street) designated as an alley by a recorded plat, deed or recorded instrument, to be a secondary means of vehicular access to the rear or side of properties otherwise abutting on a street.

Block includes "tier" or "group" and means a group of lots existing within well-defined and fixed boundaries, usually being an area surrounded by streets or other physical barriers and having an assigned number, letter or other name through which it may be identified.

Cul-de-sac means a street terminated at the end by a vehicular turnaround.

Department of resilience and public works "Engineering Standards For Design And Construction" and "Standard Contract Documents and Specifications For Public Works Projects" are the comprehensive sets of standards and specifications covering the minimum requirements for the design and construction of subdivision improvements.

Easement means any strip of land created by a subdivider for public or private utilities, drainage, sanitation or other specified uses having limitations, the title to which shall remain in the name of the property owner, subject to the right of use designated in the reservation of the servitude described as follows:

(1) *Private easement(s)* means any easement granted to specified individuals or specified public or private entities.

(2) *Public easement(s)* means any easement granted for the use of nonspecified utilities or to the public in general. Any reference to easement(s) in this section shall refer to a public easement(s) unless otherwise specified as private easement(s).

(3) *Emergency access easement* is any easement designated and maintained specifically to provide access for emergency equipment, vehicles and/or personnel to provide protection for life, property, health, welfare and safety of individuals or the general public.

Engineer means a civil engineer registered under F.S. ch. 471 who is in good standing with the state board of professional engineers.

Final plat is the final tracing, map or drawing prepared by a professional surveyor and mapper, on which the subdivider's plan of subdivision is presented to the governing body for approval, and which, if approved, will be submitted to the clerk of the circuit court for recording.

Flood criteria is the minimum finished elevation required for all lands as established and shown on the flood criteria map recorded in plat book 120, page 13 of the public records of the county as the same may be modified from time to time.

Governmental agency, as the context requires, means an official, officer, commission, authority council, committee, department, division, bureau, board, section, or another unit or entity of government.

Lot includes any platted tract or platted parcel and means the least fractional part of subdivided lands having limited fixed boundaries, and an assigned number, letter or other name through which it may be identified, intended as a single building site or unit for transfer or ownership for development.

Lot of record means, and is defined, the same as the term "lot," above.

Mapped street is a proposed right-of-way through an unplatted parcel of land, as shown on those maps on file in the department of resilience and public works.

Phased project is a project(s) which, due to its magnitude, is to be developed in multiple phases. Such phased project shall contain a minimum of three acres of land and propose more than 499,000 square feet of gross floor area within the boundaries of a single plat. The project may occupy contiguous lands, separated only by streets

or alleys. The project may be developed under a single building permit or multiple building permits.

Plat and street committee is the technical committee that shall review all tentative plats before acceptance by the city commission. The composition of the committee shall be as follows:

(1) Department of resilience and public works; department of planning; department of building; office of zoning; department of police; department of fire-rescue; and department of solid waste.*

(2) Representatives from the various public utilities, and other governmental agencies or departments, as may be needed from time to time for additional input.

Professional surveyor and mapper means a professional surveyor and mapper registered under F.S. ch. 472 who is in good standing with the state board of professional surveyors and mappers.

Public utility includes any public or private utility, such as, but not limited to, storm drainage, sanitary sewers, electric power, water service, gas service, cable television or communications facility, whether underground or overhead.

Right-of-way means land dedicated, deeded, used or to be used for a street, alley, walkway, boulevard, drainage facility, access for ingress or egress, or other purpose by the public, certain designated individuals or governing bodies.

Street includes any primary accessway such as a street, road, lane, highway, avenue, boulevard, parkway, circle, court, terrace, place or cul-de-sac, and also includes all of the land lying between the right-of-way lines as delineated on a plat showing such streets, whether improved or unimproved, but shall not include those accessways such as alleys, easements and rights-of-way intended solely for limited utility purposes, and easements of ingress and egress.

Subdivider means the person or legal entity that applies for approval of a plat of a subdivision pursuant to this chapter.

Subdivision is the platting of real property to create one or more lots, tracts or parcels, and includes establishment of new streets and alleys, additions and resubdivisions and, when appropriate to the context, relates to the process of subdividing or to the lands or area subdivided.

Supervisor of plats is the director of resilience and public works, or his/her designee, with responsibilities and authority as defined in the City Charter.

Tentative plat is a survey drawing prepared by a professional surveyor and mapper, indicating existing conditions and the proposed layout of the subdivision submitted for approval.
(Ord. No. 9584, § 1, 3-24-83; Ord. No. 9961, § 1, 2-14-85; Ord. No. 10730, § 1, 5-24-90; Code 1980, § 54.5-1; Ord. No. 11609, § 2, 2-10-98; Ord. No. 13328, § 2, 7-12-12; Ord. No. 13467, § 3, 6-12-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13702, § 2, 10-26-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13919, § 3, 9-24-20)

Sec. 55-2. Intent of chapter.

The intent of this chapter is to regulate the subdivision, or resubdivision, of land within the corporate limits of the city, and to aid in the coordination of land development in the community in accordance with orderly physical patterns, and to implement such other regulations and other measures as may have been or may hereafter be adopted, for:

(1) The establishment of standards of subdivision design which will encourage the development of safe, sound and economically stable neighborhoods, and the creation of healthy living environments.

(2) The efficient, adequate and economic provision of utilities and service to land developments.

(3) The prevention of traffic hazards and the provision of safe and convenient vehicular and pedestrian traffic circulation.

*__City Code cross references__—Planning, building and zoning department, § 2-201 et seq.; fire-rescue department, § 2-231 et seq.; resilience and public works department, § 2-261 et seq.; general services administration department, § 2-326 et seq.; police department, § 42-1 et seq.

(4) The provision of public open spaces as may be necessary.

(Ord. No. 9584, § 1, 3-24-83; Code 1980, § 54.5-2)

Sec. 55-3. Application of chapter.

(a) This chapter shall apply to and be enforced within the entirety of the city.

(b) No person, firm, corporation or any other legal entity shall create a subdivision anywhere in the city except in conformity with this chapter.

(Ord. No. 9584, § 1, 3-24-83; Code 1980, § 54.5-3)

Sec. 55-4. Plats and platting—Recording required.

Whenever land within the corporate limits of the city is divided or subdivided, a plat must be recorded.

(Ord. No. 9584, § 1, 3-24-83; Code 1980, § 54.5-4)

Sec. 55-5. Same—Approval before recording.

No plat of any subdivision shall be entitled to be recorded in the office of the clerk of the circuit court until it shall have been approved in the manner prescribed herein. In the event any such unapproved plat is recorded, it shall be stricken from the record upon application of the city commission.

(Ord. No. 9584, § 1, 3-24-83; Code 1980, § 54.5-5)

State law reference—Similar provisions, F.S. § 71.071.

Sec. 55-6. Same—Revising plat after approval.

Any changes, erasures, modifications or revisions to an approved plat prior to recordation may only be made by the survey section with the approval of the supervisor of plats to correct scriveners' errors, reflect accurate legal descriptions and locate right-of-way dedications, drainage ways and easements.

No changes, erasures, modifications or revisions to an approved plat prior to recordation shall be made unless resubmitted for new approval provided, however, that the governing body may, after public hearing and based only upon a recommendation of the supervisor of plats, change, modify or revise dedicated road rights-of-way or drainage easements.

(Ord. No. 9584, § 1, 3-24-83; Code 1980, § 54.5-6; Ord. No. 12643, § 2, 1-13-05; Ord. No. 13467, § 3, 6-12-14)

Sec. 55-7. Same—Procedure—Conference and tentative plat.

(a) *Preliminary conference.* The subdivider or his/her engineer or professional surveyor and mapper, prior to the preparation of the tentative plat, may informally seek the advice of the supervisor of plats, or his/her designee, in order that he/she may become familiar with the subdivision requirements.

(b) *Tentative plat.* The tentative plat shall show all of the facts and data required by the supervisor of plats to determine whether the proposed layout of the land in the subdivision is satisfactory from the standpoint of public interest.

(1) The following information shall be a part of the tentative plat unless waived by the supervisor of plats:

a. Proposed subdivision name and identifying title and the name of the city, and the section, township and range.

b. Name and address of record owner, subdivider and the professional surveyor and mapper preparing the tentative plat.

c. Location of property lines, existing easements, buildings, watercourses and other essential and significant features.

d. The names of all subdivisions immediately adjacent.

e. The location of any existing sewers water mains, stormwater infrastructure, or any other underground or overhead utilities, culverts and drains on the property to be subdivided and within adjacent rights-of-way and easements.

f. Location, names and present widths of existing and proposed rights-of-way, easements, parks and other open public spaces immediately adjacent to the land being platted.

g. The location, names and widths of any existing or mapped streets or other public ways or places within the area to be subdivided, and the locations and widths of all rights-of-way and easements proposed by the subdivider.

h. Date of survey, north point and graphic scale.

i. Legal description and plan or proposed layout of lots made and certified by a professional surveyor and mapper.

j. Existing ground elevations of the property and adjacent rights-of-way on a 25 foot-grid pattern, and any other significant elevations and extending to the centerline of adjacent rights-of-way.

k. The proposed lot lines with accurate dimensions and, in the case of odd or irregularly shaped lots, suggested location of buildings.

l. Where there are two or more land use zoning districts within the area being platted, each district shall be shown as a separate block, tract or lot on the plat.

m. The boundaries of proposed permanent utility easements over or under private property which shall not be less than 12 feet in width, except as indicated elsewhere in the chapter. Such easements shall provide satisfactory access to an existing public right-of-way shown upon the layout or upon the official map. Permanent drainage easements shall also be shown.

n. Where the tentative plat submitted covers only a part of the subdivider's entire holding, a sketch of the prospective future street system of the unsubdivided part may be required, where justified because of unusual circumstances, and the street system of the unsubmitted part will be considered in the light of adjustments and connections with the street system of the part submitted.

o. A location map at the scale of one inch equals 300 feet showing adjacent subdivisions and existing and proposed streets.

p. A plat application signed by the owner, or owner's designee, and notarized on the form prescribed by the supervisor of plats.

q. All dimensions affecting public rights-of-way and proposed dedication of the public rights-of-way shall be shown as established by the supervisor of plats.

(2) The following information shall be submitted in addition to the tentative plat if requested by the supervisor of plats, or by the plat and street committee:

a. Any proposed changes in the use, height, area and density districts or other regulations under the Miami 21, the zoning code for the city, applicable to the area to be subdivided.

b. A preliminary site development plan.

(c) *Filing copies of tentative plat and plat application.* At least 15 days in advance of a plat and street committee meeting, the subdivider shall file such copies of the tentative plat as may be required by the supervisor of plats, together with the plat application. The subdivider shall also pay such fees as may be required by the city Code for filing the tentative plat. Copies of the tentative plat shall be distributed by the supervisor of plats to members of the plat and street committee.

(d) *Review of tentative plat.*

(1) All tentative plats filed shall be reviewed for compliance with the provisions of this chapter at the next available regular meeting of the plat and street committee. Notification of the committee's findings shall be sent to the subdivider.

(2) If the subdivider does not agree with the findings of the plat and street committee, he/she may request, in writing, from the supervisor of plats, a review of the findings of the plat and street committee. The supervisor of plats shall then convene a meeting of a committee composed of the directors, or their designees, of the departments represented on the plat and street committee to discuss the findings with the subdivider. Any determinations or agreements reached during this meeting shall be binding on both the subdivider and the city.

(e) *Approval of tentative plat.* Approval and recommendation of the tentative plat by the plat and street committee shall be valid for a period of one year and six months under the terms and conditions stipulated by the committee for said approval, except for governmental entities and agencies, for which the approval and recommendation of the plat and street committee, subject to the terms and conditions stipulated therein, shall be valid for a period of two years. In the event that the subdivider does not submit a final plat and receive commission approval within the above-specified time limit, the tentative plat shall be deemed abandoned, and to obtain commission approval of a final plat the subdivider shall resubmit the tentative plat or a new tentative plat with a new application and payment of the required fees. A subdivider may request an extension of time in which to file a final plat by submitting a written request, prior to the expiration of the tentative plat, to the director of the department of resilience and public works, stating that the subdivision is located in a "critical sewer area" as designated by Miami-Dade County department of environmental resources management and, due to the sanitary sewer connection moratorium in effect in the "critical sewer areas," that the subdivider cannot obtain required water and sewer agreements from the Miami-Dade County water and sewer department. Any extension granted pursuant to this section shall be for the duration of the sanitary sewer connection moratorium plus 90 days.
(Ord. No. 9584, § 1, 3-24-83; Ord. No. 10981, § 2, 4-30-92; Ord. No. 11047, § 2, 3-11-93; Code 1980, § 54.5-7; Ord. No. 12763, § 2, 2-9-06; Ord. No. 13467, § 3, 6-12-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13919, § 3, 9-24-20)

Sec. 55-8. Same—Same—Final plat.

(a) *Conformity to tentative plat.* The final plat shall have incorporated all changes, or modifications, as required by the plat and street committee, to make the tentative plat conform to the requirements of this chapter. Otherwise, it shall conform to the approved tentative plat.

(b) *Preparation.* The final plat shall be prepared by a professional surveyor and mapper. The final plat shall be clearly and legibly drawn in black ink on drafting linen or a Mylar base, to a sheet size of 30 inches by 36 inches and to a scale of sufficient size to be legible, with a minimum lettering size of one-eighth of an inch. The final plat, insofar as preparation is concerned, shall comply with all applicable regulations and state laws dealing with the preparation of plats.

(c) *Contents.*

(1) Name of subdivision. The plat shall have a title or name. The terms "town," "city" or "village" or any other terms suggesting a municipality shall not appear in the title or name of any plat which includes any property in the City of Miami. The supervisor of plats of the city and/or Miami-Dade County shall disapprove any name or title which may be found to be sufficiently similar to the name of any existing town, city or village or municipal corporation, or the name similar to any previously approved plat in the incorporated or unincorporated areas of the county which may cause confusion as to the status or the location of any platted property.

(2) Deed description. Description written on map or plat. There shall be written or printed upon the plat a full and detailed description of the land embraced in the map or plat showing the township and range in which such lands are situated and the section and part of sections platted and location sketch showing the plat's location in reference to the closest corner of the section in which the plat is located. The description must be so complete that from it, without reference to the plat, the starting point can be determined and the outlines run. If a subdivision of a part of a previously recorded plat is made, the previous lots and blocks to be resubdivided shall be given. If the plat is a resubdivision of the whole of a previously recorded plat, the fact shall be so stated.

(3) Names of adjacent subdivisions.

(4) Names or numbers and width of streets immediately adjoining plat.

(5) All plat boundaries.

(6) Bearings and distances to the nearest established street lines, section corners or other recognized permanent monuments which shall be accurately described on the plat.

(7) Municipal, township, county or section lines accurately tied to the lines of the subdivision by distance and bearing.

(8) Accurate location of all monuments.

(9) Length of all arcs, radii, internal angles, points of curvature and tangent bearings.

(10) When lots are located on a curve or when side lot lines are at angles less than 87 degrees or more than 93 degrees, the width of the lot at the front building setback line shall be shown in addition to the width of the lot at the right-of-way line.

(11) The name or numbering and right-of-way width of each street or other right-of-way shown on plat.

(12) The numbering of all lots and blocks shown on the plat. All lots shall be numbered either by progressive numbers, or in blocks progressively numbered, except that blocks in numbered additions, bearing the same name shall be numbered consecutively throughout the several additions. Excepted parcels must be marked "not part of this plat."

(13) All areas reserved or dedicated for public purposes. No strip or parcel of land shall be reserved by the owner, unless the same is sufficient in size and area to be some practical use or service.

(14) The dimensions of all lots and angles or bearings.

(15) Location, dimension and purpose of any easements.

(16) Certification by a professional surveyor and mapper to the effect that the plat represents a survey made by him/her, and that their location is correctly shown.

(17) An acknowledgment by the owner, or owners, of his/her adoption of the plat, and of the dedication of streets and other public areas and the consent of any mortgage holders to such adoption and dedication.

(18) Signature of the director and city surveyor of the city department of resilience and public works, certifying that the plat appears to conform to all of the provisions and requirements of this chapter.

(19) Signatures of the city manager and city clerk, and the impression of the city seal, certifying that the city commission has approved the plat and accepted the dedications thereon by resolution, and stating the number and date of said resolution.

(20) Signature of the director of Miami-Dade county department of regulatory and economic resources and, if applicable, the director and county engineer of the Miami-Dade County Department of Transportation and Public Works indicating that the plat also conforms to Chapter 28 of the County Code.

(d) *Other data required with plat.*

(1) Restrictive covenants desired by the developer so long as they do not violate existing ordinances. Restrictive covenants shall be required covering restrictions controlling building lines, establishment and maintenance of buffer strips and walls, and restrictions of similar nature.

(2) Current opinion of title from any attorney authorized to practice law in this state.

(3) Certification from the city and county that all taxes and assessments have been paid on the land within the proposed subdivision or receipted tax bills.

(4) Necessary fees as required by city Code for processing, checking and recording plat.

(5) Certification that all required improvements within the public right-of-way have been completed and/or that the city is holding sufficient bond for the completion of the improvements. The certification shall also state that the plat appears to conform to all of the requirements of this chapter.

(e) *Approval by city commission.*

(1) Upon submission of the final plat and the additional required data, the director of the department of resilience and public works shall cause the plat to be placed on the next available city commission agenda for approval. After approval by the city commission, certification of said approval by the city manager and city clerk, and, if applicable, proof of a cleared payment to the city in the amount indicated on the total expenditure, as defined in subsection 55-15(a), the owner of the property being platted shall be notified that the plat is ready for recordation. The city shall deliver the plat to the appropriate county agency for county review and approval and subsequent recordation in the public records of Miami-Dade County. The plat must be recorded within 180 calendar days of the approval by the city commission.

(2) If the property owner has not caused the recordation of the plat within the above-specified 180 days, the director of the department of resilience and public works shall notify the city commission that the plat is in default, and is deemed abandoned. The director shall submit to the city commission, at the earliest available meeting, a resolution for their approval rescinding their prior action and ordering the release and/or refund of any bond for subdivision improvements. The property owner shall be notified by registered letter, return receipt requested, that his/her plat is in default and shall be informed of the date of the city commission meeting at which recision of his/her plat will be considered. At that meeting, the property owner may petition the city commission for an extension of time, not to exceed 30 days, in which to complete the recordation of his/her plat. The city commission may grant or deny the petition of the property owner for extension of time. If the extension of time is granted and the plat has not been recorded within the above 30-day period, the city commission shall automatically rescind its original approval of the plat.

(Ord. No. 9584, § 1, 3-24-83; Ord. No. 10385, § 1, 2-18-88; Code 1980, § 54.5-8; Ord. No. 13467, § 3, 6-12-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13793, § 2, 10-11-18; Ord. No. 13919, § 3, 9-24-20)

Sec. 55-9. Bonds.

Any bond required by this chapter shall be one of the following types. No other type of bond or surety to insure the accomplishment of subdivision improvements will be acceptable.

(1) Any bond written by an approved domestic or foreign surety company shall comply with the appropriate section of the Florida Statutes. The bond shall also carry the name and address of a local representative. Said surety bond shall be for an initial period of one year, and shall be automatically extended in increments of one year until the subdivider and the

surety company are notified in writing of the completion and acceptance of the subdivision improvement by the supervisor of plats.

(2) Cashier's check, drawn on a local bank, to be returned to subdivider on certification of completion and acceptance of the subdivision improvement by the supervisor of plats.

(3) Irrevocable letter of credit drawn on a local bank, valid for a initial period of one year, with automatic renewal in increments of one year until the subdivider and the issuing bank are notified in writing of the completion and acceptance of the subdivision improvements by the supervisor of plats.

(Ord. No. 9584, § 1, 3-24-83; Code 1980, § 54.5-10)

Sec. 55-10. Building permits; issuance; restrictions; exceptions.

(a) No building, paving, remodeling or renovation permits shall be issued for any structure, or other on-site improvements, on any land for which a plat has not been recorded in the public records of the county or on a lot of record that has been divided into separate parcels, except as hereinafter expressly provided.

(b) No complete, partial or temporary certificate of occupancy shall be issued by the city for any structure on any lot in the subdivision unless or until all of the required subdivision improvements are completed, except that a partial or temporary certificate of occupancy may be issued for any structure on any lot in the subdivision of a phased project upon approval by the director of resilience and public works provided that such right-of-way improvements, as required by the director of resilience and public works, for that portion of the phased project in which that structure is located are satisfactorily completed and accepted by the director of resilience and public works in accordance with the subdivision improvements provided for in the City Code, including chapter 55. All subdivision improvements must be complete on the phase in which the structure is located before a temporary certificate of occupancy is issued for that structure. Any such partial or temporary certificate of occupancy shall be conditioned upon the property owner executing and recording an agreement with the city, acknowledging specific conditions, including but not limited to, an acknowledgement that a complete certificate of occupancy will not be issued prior to the completion of all required subdivision improvements in the entire phased project.

(c) A building, remodeling or renovation permit may be issued for constructing, remodeling or renovating a one-family detached dwelling and customary accessory buildings on a parcel of unplatted land or on a lot of record that has been divided into separate parcels, if proof is submitted that said unplatted parcel was described by deed prior to September 25, 1946, or said division of lot was approved under zoning regulations in effect prior to June 27, 1983.

For a lot of record that has been divided into separate parcels where approval under zoning regulations in effect prior to June 27, 1983 cannot be demonstrated, a building permit for the construction, remodeling, or renovation of a one-family detached dwelling and customary accessory buildings may be issued provided that:

(1) The divided lot(s) of record or a combination of lots of record and divided lots of record are reviewed by the plat and street committee and approved after demonstrating:

a. A one-family detached dwelling (and customary accessory structures, if any) exists or previously existed on the divided lot(s) of record or a combination of the divided lot(s) and lot(s) of record which the building permit is sought or on the remainder of the divided lot(s) of record or a combination of the divided lot(s) and lot(s) of record for which a building permit is not being sought;

b. Compliance with the lot area and width requirements of Miami 21 or any successor land development regulations related to the same;

c. That such approval will not cause a remainder of a divided lot of record or a remainder of a divided lot of record in combination with another lot of record or divided lot of record for which a building permit is not being sought to be a substandard building site in accordance with the provisions of Miami 21; and

d. The divided lot(s) of record was divided prior to October 22, 2009;

(2) Undedicated right-of-way required to be dedicated pursuant to section 54-58 of the City Code, as amended, is dedicated to the city; and

(3) Required street improvements in connection with the building permit, if applicable, are provided pursuant to section 54-56 of the City Code, as amended.

(d) A permit may be issued for the repair, remodeling or renovation of a conforming or nonconforming building (other than a one-family detached dwelling and customary accessory buildings), structure or parking lot on a parcel of unplatted land or on a lot of record that has been divided into separate parcels, if proof is submitted that said unplatted parcel was described by deed prior to September 25, 1946, or that said division of lot was approved under zoning regulations in effect prior to June 27, 1983. Said permit will be for ordinary repairs, remodeling or renovation, for repairs or replacement of nonbearing walls (or of bearing walls where necessary for structural safety), fixtures, wiring or plumbing to an extent not exceeding those applicable provisions of the Miami 21 Code, as amended, or the Florida Building Code, whichever is more restrictive.

(e) A building permit may be issued for construction of a building (other than a one-family detached dwelling and customary accessory building), structure or parking lot on a lot, or lots, of record that has been divided into separate parcels, if proof is submitted that said division was described by deed prior to September 25, 1946, or that said division was approved under zoning regulations in effect prior to June 27, 1983.

(f) A permit may be issued for the construction by the city, its agent or lessee on city-owned land, platted or unplatted, of a structure or other on-site improvements.

(g) A permit may be issued for the construction, renovation or repair of non-habitable on-site improvements on unplatted land when said improvements are mandated by the City Charter, City Code or city commission.

(h) A permit may be issued for the repair, remodeling, or renovation of an open-air structure, open-air parking lot, or open-air paving or construction of an open-air structure provided that the open-air structure does not exceed ten percent of the parcel on a parcel of unplatted land, excepting an open-air parking lot where the repair, remodeling, or renovation shall not exceed 50 percent of the parcel on a parcel of unplatted land. Said repair, remodeling, or renovation permit will be for ordinary repairs, remodeling, renovation, or replacement of nonbearing walls (or of bearing walls where necessary for structural safety), fixtures, wiring, or plumbing to an extent not exceeding those applicable provisions of the Miami 21 Code, as amended, the City Code, as amended, or the Florida Building Code, as amended, whichever is more restrictive. This subsection shall apply only if the unplatted parcel is ten contiguous acres or more in size and shall sunset upon one year of its effective date.

(i) Where a "covenant in-lieu of unity of title" is accepted for a project pursuant to Article 7 of the Miami 21 Zoning Code, as amended, and the combined property included in the "covenant in lieu of unity of title" is legally platted or meets an exception to platting provided in City Code section 55-10, replatting of existing and future internal divisions of the property will not be required for said project provided that the combined property is in compliance with the covenant in lieu of unity of title.

(j) A building permit may be issued for construction of improvements on private property or on governmental agency-owned land within the boundaries of an approved tentative plat prior to final plat approval and recordation thereof, with the exception of any land on any

private property of an approved tentative plat that is wholly or partially within a Neighborhood Conservation District ("NCD") as defined and provided for in Appendix A of the Miami 21 Code, the zoning ordinance of the city, as amended, or any successor zoning ordinance including a NCD, unless the property owner has obtained a tentative plat approval that does not diminish lot size or increase the number of lots, subject to: (1) completion and approval, by city commission resolution, of the rights-of-way and platted easements vacation and closure procedure as set forth in section 55-15, if applicable; (2) submittal of an opinion of title from an attorney member of the fund in a form acceptable to the city attorney; (3) execution of the subdivision improvements agreements and any development agreements warranted by the city; and (4) the recording of an agreement executed by the private property owner or the governmental agency, the developer and the city, at the private property owner's or the governmental agency's expense. The provisions of the agreement shall include, as applicable, but not be limited to the following:

(1) Payment of all actual or estimated permit and other applicable regulatory fees associated with the improvements to the city prior to issuance of any building permits.

(2) Acknowledge they are proceeding at their own risk and acknowledge that they will not make a vested/property rights claim or cause of action arising or accruing by virtue of these exceptions and agree to indemnify, defend, and hold harmless the city, and, when applicable, post a payment and performance bond for the city in connection with the improvements on the tentative plat.

(3) Agree to immediately cease all construction and relinquish any and all rights to improvements constructed on the property to the governmental agency in the event that the plat is not recorded within the recordation period, as defined in subsection (10), and thus allowing the city to withdraw from the payment and performance bond.

(4) Acknowledge that nothing in the agreement shall prejudice the city's right to impose conditions on approval of the plat which are required by state, county, and/or city plat ordinances and zoning regulations or are otherwise necessary to ensure the public health, safety and welfare of the citizens of the city; nor shall the city be stopped from enforcing the terms of the agreement by reason of its issuance of building permits.

(5) Agree that the issuance of building permits is not a grant of any vested right whatsoever to the governmental agency or developer to use to complete construction of the project within the boundaries of the plat.

(6) Acknowledge that a temporary certificate of occupancy or a certificate of occupancy shall not be issued, unless and until the governmental agency or developer obtains final plat approval and records the final plat in the official records of Miami-Dade County, Florida, within the recordation period, as defined in subsection (10).

(7) Acknowledge that the condition of subsection (6), shall appear on the face of any and all building permits issued by the city pursuant to the agreement.

(8) Acknowledge that any building permits issued by the city for construction of the improvements will be issued in accordance with all applicable laws and the terms and conditions set forth in the agreement.

(9) Acknowledge that the city reserves the right to evaluate all applications for building permits for compliance with all existing laws, ordinances and regulations controlling the issuance of building permits for construction within the city.

(10) Acknowledge that the date to obtain city final plat approval and recordation of the plat in the official records of Miami-Dade County, Florida, the "recordation period," is the same as the expiration date set forth in the tentative plat approval.

(11) In the event that the governmental agency or developer does not record the plat by the expiration of the recordation period, the governmental agency and developer agree to immediately cease all construction activities on the property and to relinquish any and all rights to any improvements constructed thereon to the governmental agency; or if requested by the city, to forthwith remove the improvements within three months of the expiration of the recordation period. The governmental agency and developer agree the city shall not be held financially responsible to the governmental agency, developer or any third parties in connection with any actions taken in accordance herewith. The city will also be able to withdraw from the payment and performance bond when applicable.

(12) The governmental agency and developer agree to indemnify, defend, save, and hold harmless the city from any claims, demands, liabilities, losses, causes of action of any nature whatsoever arising out of or in connection with the agreement, the granting of any building permits or any part thereof, from and against all costs, fees, expenses, liabilities, any orders, judgments or decrees which may be entered in from and against all costs, attorneys' fees, expenses and liabilities incurred in the defense of such claim or in the investigation thereof. The governmental agency and developer agree to also post a payment and performance bond in favor of the city for the amount of the project, when applicable.

(13) A joinder by any mortgagee or any other person or firm having encumbrance of record on the property.

(14) This subsection shall not be eligible for use on any private property located within any NCD. No construction shall ever occur pursuant to any tentative plat in any NCD. This prohibition cannot be circumvented by the use of any instrument including but not limited to a covenant or unity of title.

Notwithstanding the foregoing, as to development of private property within the city, a building permit may be issued only upon the director of the city department of resilience and public works, recommending the issuance of the building permit.

(k) A building permit may be issued for the construction, repair, remodeling, or renovation of any building on one or more former lots of record within the revoked Becker's Subdivision recorded in Book 16, Page 43 of the Public Records of Miami-Dade County provided that where one or more former lots of record have been divided into separate parcels, such divided lot(s) must meet another applicable exception to platting in this section. Such building permit may also be issued for properties within this revoked subdivision that have a metes and bounds or unplatted legal descriptions provided that the properties' boundaries coincide with the lot lines of former lot(s) of record of the revoked subdivision or if such boundaries would be coterminous with a division of a former lot of record, provided that the former divided lot(s) must meet another applicable exception to platting in this section.

Any building permit issued pursuant to this subsection for a property located on Northwest 37th Street shall ensure that one "T" type turning area for the Northwest 37th Street dead-end that permits public ingress/egress in a configuration acceptable to the director of the department of resilience and public works is provided.

No certificate of occupancy or temporary certificate of occupancy shall be issued on any building permits issued pursuant to this subsection until the completion and acceptance by the department of resilience and public works of the permitted right-of-way improvements adjacent to the property as well as the completion of any other improvements necessary to ensure sidewalk connectivity from the property to the next street intersection within the boundaries of the former Becker's Subdivision.

(l) A building permit and certificate of occupancy may be issued for construction of improvements for a temporary event, occupancy, structure, or use, including interim parking, authorized pursuant to City Code article XIII of

chapter 62 on unplatted land or platted land that has not been subdivided in accordance with this chapter.

(m) A building permit and certificate of occupancy may be issued for construction improvements on property owned by Miami-Dade County that is unplatted land if it meets a platting exception pursuant to Miami-Dade County Code chapter 28, as amended.

(n) A building permit may be issued for construction of a carport, covered entry, driveway, patio or pool. This exception will not be applicable for the construction of any other structures or detached units.
(Ord. No. 9584, § 1, 3-24-83; Ord. No. 9961, § 1, 2-14-85; Code 1980, § 54.5-11; Ord. No. 11361, § 2, 4-25-96; Ord. No. 11609, § 2, 2-10-98; Ord. No. 12180, § 1, 1-10-02; Ord. No. 12788, § 2, 4-6-06; Ord. No. 13277, § 2, 7-28-11; Ord. No. 13401, § 2, 7-25-13; Ord. No. 13467, § 3, 6-12-14; Ord. No. 13652, § 2, 12-8-16; Ord. No. 13702, § 2, 10-26-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13919, § 3, 9-24-20; Ord. No. 13940, § 2, 11-19-20; Ord. No. 14045, § 2, 2-10-22; Ord. No. 14391, § 2, 9-11-25; Ord. No. 14424, § 2, 12-11-25; Ord. No. 14441, § 2, 2-12-26)

Sec. 55-11. Design standards.

(a) *Streets.*

(1) *Conformance.* All streets shall conform to those standards established by the department of resilience and public works.

(2) *Relation to adjoining street system.* New streets in any subdivision shall continue the established grid system and shall be contiguous and coterminous.

(3) *Street jogs prohibited.* Street jogs shall be prohibited unless, because of unusual conditions, the supervisor of plats determines that a centerline offset is justified.

(4) *Dead-end streets or culs-de-sac.* Dead-end streets or culs-de-sac, designed to be so permanently, shall not be longer than 600 feet, and at the closed end, a turnaround having an outside roadway diameter of at least 84 feet, and a street property line diameter of at least 100 feet, shall be required. A "T" type turning area may be allowed on existing dead-end streets, if recommended by the supervisor of plats and approved by the plat and street committee, subject to compliance with landscaping requirements to be determined by city planning, building and zoning department. If a dead-end street is of a temporary nature, a similar turnaround may be required, and provision made for future extension of the street into adjoining property, as may be required by the supervisor of plats.

(5) *Angle of intersection.* Streets shall be laid out so as to intersect as nearly as possible at right angles.

(6) *Rounding of corners.* Property lines at street intersections shall be rounded with a radius of 25 feet, except, where existing buildings or structures occupy all or a portion of the external area of the 25-foot radius, the supervisor of plats may reduce or eliminate the requirements for a rounded corner radius in which case the property owner shall proffer a covenant to run with the land in accordance with the requirements of the city Code. Where the angle of the intersecting roadways is less than 87 degrees, the supervisor of plats may reduce the required corner radius. A greater radius may be prescribed by the supervisor of plats in special cases. The supervisor of plats may permit comparable cutoffs or chords in place of rounded corners.

(7) *Minimum width.* Minimum required right-of-way widths shall be as designated in chapter 54, "Streets and Sidewalks," of the Code of the city. In the event the historic and environmental preservation board finds that an existing wall located within the undedicated portion of the zoned street width has significant historical value and recommends that said wall be preserved, the supervisor of plats may waive all or a portion of the required dedication to allow the existing wall to

remain, in which case the property owner shall proffer a covenant to run with the land in accordance with the requirements in the city Code.

(8) *Half streets.* Creation of half streets shall be prohibited, except where essential to the reasonable development of the subdivision in conformity with other requirements of these regulations, and where the supervisor of plats finds it will be practical to require the dedication of the other half when adjoining property is subdivided. Whenever a half street is adjacent to a tract to be subdivided, the other half street shall be platted within such tracts.

(9) *Names and numbers.* No street names or numbers shall be used which will be confused with or duplicate the name of existing streets. Street names shall be subject to approval of the supervisor of plats, in accordance with chapter 54 of the Code of the city.

(b) *Alleys.*

(1) Alleys shall be dedicated in commercial and industrial districts, except that the plat and street committee may waive this requirement where other definite and assured provision is made for security and service access, such as off-street loading, unloading, and parking consistent and adequate for the uses proposed.

(2) The width of any alley shall not be less than 20 feet.

(c) *Easements.*

(1) Easements shall be provided for utilities where necessary.

(2) Where a subdivision is traversed by a watercourse, drainageway or canal, there shall be provided a canal maintenance easement or right-of-way conforming substantially with the lines of such watercourse, and of such width as shall be required by the city resilience and public works department and/or Miami-Dade public works/waste management department.

(d) *Lots.*

(1) The lot depth, shape and orientation, and the minimum building setback lines shall be appropriate for the location of the subdivision and the type of development and use contemplated.

(2) Lot dimensions, after dedication of necessary rights-of-way, shall conform to the requirements of Miami 21, the zoning code, as amended, for regular or irregular conforming lots. The provisions of subsection 7.2.7 of Miami 21, as amended, shall not apply to plats which subdivide unplatted land, or a combination of platted lots and unplatted land.

(3) Each lot within a subdivision shall be provided with satisfactory access to and frontage on an existing, or newly dedicated, public street or private road.

(4) Where lots are created, each lot may be provided with perpetual right of access by private street or roadway, intersecting with an existing public street, as set forth below:

a. A minimum width of 25 feet shall be dedicated to the abutting property owners by plat.

b. A minimum pavement width of 18 feet, with a 3½-foot swale area on each side.

c. A minimum pavement width of 22 feet is required at fire hydrant locations, for a distance of 20 feet on each side of the hydrant, with a 3½-foot-wide swale area on each side.

d. A minimum radius of 45 feet on culs-de-sac.

e. On private roads, 150 feet or less in length from the public right-of-way to the end of the private street, or roadway, a "T" type turning area may be substituted for the required

cul-de-sac, sufficient for the maneuvering of fire or other emergency vehicles.

f. The right-of-way may be divided to protect natural features. The minimum right-of-way for each section of divided road shall be 15 feet, with a minimum ten-foot pavement width and with a 3½-foot-wide swale area on each outer edge.

g. Curved rights-of-way shall have a minimum inside pavement radius of 30 feet.

h. A 25-foot radius shall be provided at the intersection of private roads and publicly dedicated rights-of-way.

i. A minimum vertical clearance of 16 feet shall be provided for the entire right-of-way.

j. Drainage shall be provided according to accepted engineering standards.

k. All construction shall meet the city minimum standards.

l. A restriction will be required on the record plat to the effect that:

1. The private road will be maintained by the subdivider and/or abutting property owners in perpetuity; and

2. No attempt shall be made to dedicate the private right-of-way to the public.

m. A one-way private street may be utilized for a single-family platted subdivision under the following conditions:

1. A minimum dedicated right-of-way width of 18 feet.

2. A minimum pavement width of 17 feet. A reduction of pavement width to 15 feet will be allowed for no more than ten percent of the overall length of the roadway in order to preserve archeological and landscaping features.

3. Curved rights-of-way shall have a minimum inside pavement radius of 30 feet.

4. No parking will be permitted within the 18 feet of dedicated right-of-way.

5. A site plan and storm drainage plan shall be submitted with the tentative plat wherein said storm drainage plan design shall be confirmed through the submission of calculations to accommodate the runoff of a storm event with a one- in five-year design return frequency without ponding. Said storm drainage plan and calculations shall be signed and sealed by an engineer of professional registry in the State of Florida.

(5) Side lot lines shall, where possible, be substantially at right angles or radial to street right-of-way lines.

(6) No lots shall be established which do not provide safe, convenient access for public service, police, fire and rescue vehicles.

(7) Double frontage or through lots shall be avoided.

(8) No plat be so designed as to create a parcel, or lot, which is "landlocked," i.e., one that has no direct access to and frontage on a publicly dedicated street or private road.

(9) No plat shall be so designed as to create a remainder of a previously platted lot, or an unplatted tract of land, which is a substandard building site in accordance with the provisions of Miami 21.

(e) *Acceptance of dedication.* The dedication of public spaces shall not constitute an acceptance of the dedication by the city. The acceptance of

the dedication shall be indicated by a resolution of the city commission and by an indication on the plat of such acceptance.

(f) *Adjustments to design standards.* The supervisor of plats may authorize an adjustment to the design standards when in his/her opinion undue hardship may result from strict compliance with such standards. The standards may be adjusted to prevent hardship; provided, such adjustment will not have the effect of nullifying the intent and purpose of the overall community plan. In granting an adjustment, the supervisor of plats may prescribe any conditions that he/she deems necessary and desirable in the public interest. In making his/her findings the supervisor of plats shall take into account, among other factors, (i) the nature of the proposed use of the land and the existing use of the land and buildings, and (ii) the number of persons to reside or work in the proposed subdivision and the probable effect of the proposed subdivision upon traffic conditions in the vicinity. No adjustments may be granted unless the supervisor of plats finds that all four of the following conditions exist in regard to the land concerned:

(1) That there are special circumstances or conditions affecting the property and that strict compliance of the design standards would deprive the applicant of reasonable use of his/her land;

(2) That the adjustment is necessary for the preservation and enjoyment of a substantial property right of the applicant;

(3) That the granting of an adjustment will not be detrimental to the public welfare or injurious to the other property in the vicinity in which the property is situated; and

(4) That the adjustment will not unreasonably burden city services, including adjacent streets.

(Ord. No. 9584, § 1, 3-24-83; Ord. No. 9961, § 1, 2-14-85; Ord. No. 10330, § 1, 10-22-87; Ord. No. 10704, § 1, 2-7-90; Ord. No. 10730, § 1, 5-24-90; Ord. No. 10742, § 1, 6-28-90; Code 1980, § 54.5-12; Ord. No. 13467, § 3, 6-12-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13919, § 3, 9-24-20)

City Code cross references—Street names and numbering, § 54-121 et seq.; standard street widths, § 54-187.

Sec. 55-12. Required improvements.

Prior to the granting of the final approval by the city commission, the subdivider shall have installed or shall have furnished adequate bond of 115 percent of the cost of improvements, as set forth in writing to the subdivider by the supervisor of plats, for the ultimate installation of the following:

(1) *Permanent reference monuments.* Monuments shall be constructed and placed in accordance with F.S. ch. 177. Certification that monuments are in place, by a surveyor, registered in the state, must be received by the supervisor of plats in writing before any bond or surety will be released.

(2) *Streets.*

a. *Construction; inspection; approval.* All streets shall be constructed and surfaced in accordance with applicable standards and specifications of the city department of resilience and public works. Such construction shall be subject to inspection by the department of resilience and public works and issuance of necessary permits prior to construction. Where street construction complies with specifications, such installation shall be approved.

b. *Curbs, gutters and drainage.* Curbs, gutters, drainage and drainage structures which are required by the city department of resilience and public works shall be constructed in accordance with standards and specifications of the department of resilience and public works. Such construction shall be subject to the inspection of the department of

resilience and public works and issuance of necessary permits prior to construction.

c. *Seawalls and bulkheads.* Permanent-type bulkheads along the entire water frontage of a waterfront property and right(s)-of-way shall be constructed/reconstructed to be in compliance with current standards and specifications as set forth by the department of resilience and public works.

d. *Sidewalks.* Sidewalks shall be required in all residential, multiple-family, commercial and industrial areas adjacent to existing and newly dedicated street rights-of-way. Construction of sidewalks shall be subject to the inspection of the department of resilience and public works and issuance of necessary permits prior to construction.

e. *Street lighting.* Permanent street lighting shall be required for all building permit applications. All fixtures and poles shall be installed on public right-of-way, shall be of a type approved by the department of resilience and public works, and shall comply with the department's standards and bulletins.

f. *[Minimum design standards.]* All new bridges (vehicular, pedestrian, and others) shall follow the minimum design standards set forth by the American Association of State Highway and Transportation Officials Load Resistance and Factor Design bridge design specifications and the Florida Department of Transportation's Structures Design Guidelines. Coordination and permitting shall be conducted with all agencies required, including but not limited to South Florida Water Management District (SFWMD), the US Army Corps of Engineers (USACE), the Coast Guard, and utility companies.

g. *Fill.* Fill shall be placed in the entire subdivision to the elevations, after settlement, required by the department of resilience and public works or as indicated on the flood criteria maps prepared by Miami-Dade County, whichever is higher. The filling of land within any platted area contiguous to Biscayne Bay and all new or future islands or enlarged existing islands in Biscayne Bay must be constructed to standards set forth in section 54-46. The type of fill shall meet with the approval of the department of resilience and public works. Soil tests of the fill and the underlying material, in areas in which streets or other public facilities are to be located, shall be required. The fill for the balance of the subdivision may be certified by a registered engineer as to type and method of placement, or the engineer shall submit a statement as to type of fill to be supplied, method of placement, and required compaction, the latter statement being for information, not certification, purposes.

h. *Street signs.* Street name signs shall be placed at all street intersections within or abutting the subdivision. Such signs shall be of a type approved by the county and shall be placed in accordance with the standards of the county and the county manual of public works construction. The type of street signs and their location shall meet with the approval and inspection of the county's director of public works/waste management department.

i. *Postponement of improvements.* Those required street improvements or portions thereof, enumerated within subsections (2)a "Construction; inspection; approval" through (2)e "Street signs," above, may be postponed by the department of

resilience and public works with the filing of a covenant to run with the land, executed by the subdivider, guaranteeing the construction of the postponed improvements when these become necessary in the future.

(3) *Water supply system.*

a. *Domestic water supply.* The subdivider shall contact and make the necessary arrangements with Miami-Dade water and sewer department for construction, extension and/or upgrading of the domestic water supply system necessary to serve the area being platted. The final plat shall not be forwarded to the city commission for approval until notification has been received in writing by the department of resilience and public works from Miami-Dade water and sewer department that satisfactory arrangements have been made.

b. *Individual wells.* Individual wells for domestic water supply shall not be permitted. Deep wells for the disposal of on-site drainage of stormwater shall be constructed in accordance with requirements of the Miami-Dade county department of environmental resources management and shall be approved by them. On-site stormwater must be accommodated on site. Drainage from on-site sources into the public right-of-way shall not be permitted.

c. *Fire hydrants.* Where required by the fire chief, fire hydrants or fire wells shall be installed in all subdivisions in accordance with the uniform standards established by the city department of fire-rescue.

(4) *Sewage disposal system.*

a. *Connection to existing sanitary sewer.* The subdivider shall contact and make the necessary arrangements with the Miami-Dade county water and sewer department for construction, extension, and/or upgrading of the domestic water supply system necessary to serve the area being platted. On streets with existing sanitary sewers, each new lot in a subdivision shall be provided with a sanitary lateral connection. When necessary, the existing sanitary sewer shall be extended, and new lots shall be provided with a sanitary lateral connection. All construction shall comply with standards and specifications of the department of resilience and public works and Miami-Dade water and sewer department and shall be subject to the inspection by the department and subject to issuance of the necessary permits prior to construction.

b. *Septic tanks.* Where there is no sanitary sewer available, septic tanks may be permitted upon approval by the Florida Department of Health and Miami-Dade county department of regulatory and economic resources in accordance with the provisions of Chapter 24 of the Miami-Dade County Code. Septic tanks shall be installed in compliance with all of the requirements, specifications and standards of the county and state governing their use.

(5) *Underground electric and telecommunication lines.*

a. Except as expressly provided hereinafter, all utility lines including but not limited to those required for electrical power distribution, telephone and telegraph communication, street lighting and television signal service shall be installed underground. This section shall apply to all cables, conduits or wires forming part of an electrical distribution system within a subdivision, including service lines to individual properties; provided that it shall not apply to wires, conductors or

associated apparatus and supporting structures whose exclusive function is in transmission of electrical energy between generating stations, substations and transmission lines or other utility systems. Appurtenances such as transformer boxes, pedestal-mounted terminal boxes, and meter cabinets may be placed aboveground but shall be located in conformance with the requirements of the respective utility company. In areas zoned for industrial use, all electrical and communication distribution systems may be installed overhead, but the service conductors from the utility pole to the building (structure) shall be an underground service lateral. Easements shall be provided for the installation of utilities, or relocating existing facilities, in conformance with the respective utility company's rules and regulations. The supervisor of plats may waive the requirements for underground installations if the service to the adjacent area is overhead and it does not appear that further development will occur.

b. Any new service which is allowed by the provisions herein to be supplied by overhead utilities shall be connected to a service panel that is convertible for underground utility service at a future date.

c. The subdivider or developer shall pay the necessary costs, and make other necessary arrangements, for such underground installations with each of the persons, firms or corporations furnishing utility services involved. The final plat shall not be forwarded to the city commission until notification has been received in writing by the department of resilience and public works from the various utilities involved that satisfactory arrangements have been made.

(6) *Waiver provisions.* Any bond required herein shall be waived for governmental entities and agencies.

(Ord. No. 9584, § 1, 3-24-83; Ord. No. 10981, § 2, 4-30-92; Code 1980, § 54.5-13; Ord. No. 13467, § 3, 6-12-14; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13919, § 3, 9-24-20)

City Code cross references—Cable television, ch. 11; sewers, ch. 49.

Sec. 55-13. Construction plan.

(a) *Signed and sealed construction plans.* Upon approval of a plat, a letter listing the required subdivision improvements will be provided to the subdivider and/or his/her engineer. The department of resilience and public works requires signed and sealed construction plans to be submitted for the required subdivision improvements. The plans shall be the basis for preparing the estimate for the required bond.

(b) *Preparation.* The subdivider, or his/her engineer, shall confer with the department of resilience and public works to determine the standards and specifications which will govern the proposed improvements. The subdivider shall submit complete construction plans prepared by an engineer for the development of streets adjacent to the area for which application to plat has been submitted to the department of resilience and public works for their review and approval. The construction plans shall include the complete design of required sanitary sewer system, storm drainage system and the street system for the entire area to be subdivided. The subdivider shall do no construction work until his/her completed construction plans have been approved for permit by the department of resilience and public works. Reasonable time must be allotted for the proper review of the plans submitted.

(c) *Construction of improvements; employing engineer.* After construction plans have been filed and approved, the subdivider may construct the required improvements, subject to obtaining the required permits from the city and other private or public agencies. The department of resilience and public works shall be notified at least one week in advance of the date that such construction shall be commenced. Construction shall be performed under the supervision of the

department and shall at all times be subject to inspection by the department. However, this in no way shall relieve the subdivider and his/her engineer of close field supervision and final compliance with the approved plans and specifications. Where deemed necessary, the department of resilience and public works may require the subdivider to employ an engineer for complete supervision of the construction or installation of the improvements involved and may require progress reports and final certificates of the construction or installation from such engineer. The department shall establish regulations governing the inspections to be furnished by the developer or his/her engineer and may refuse to accept work which has been done without proper inspection or which does not meet specifications. No construction work shall be undertaken prior to obtaining the required permits.

(d) *Acceptance of improvements.* When construction is completed in accordance with the approved plan and specifications, and complies with the provisions of these regulations, the subdivider shall submit to the department of resilience and public works "as-built" drawings of the required subdivision improvements for inclusion in the files of the department. These as-built drawings shall be signed and sealed by a professional engineer or professional surveyor and mapper. On acceptance and approval of these drawings by the department, the subdivider shall be given written notice of approval and acceptance of the construction by the department of resilience and public works.

(e) *Bond in lieu of immediate construction.* In lieu of immediate construction of improvements the subdivider may file with the city a bond as set forth in section 55-9 in an amount established by the supervisor of plats to insure the city the actual satisfactory completion of construction of proposed improvements within a period of not more than one year from the date of such bond. All requests for extension of this time limit shall be in writing to the supervisor of plats and shall be accompanied by the necessary fee(s) as required by the Code of the city. Provisions may be made for extension of all such bonds, such extension to be as set forth in section 55-9, and commensurate with the progress of the development. No provision shall be made for reduction of such bonds. This bond shall also include a maintenance provision for one year covering all improvements by the subdivider. Bonds shall be subject to cancellation or release, only by the city upon written certification of the supervisor of plats. (Ord. No. 9534, § 1, 3-24-83; Code 1980, § 54.5-14; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13919, § 3, 9-24-20)

Sec. 55-14. Encroachments onto, into, below, and/or above rights-of-way, public easements, private easements, private platted alley, or emergency access easements; exceptions.

(a) No building or any other type of structure shall be permitted onto, into, below and/or above any right-of-way, public easement, private easement, or emergency access easement, except required or approved utility installations, or as may be permitted under the Florida Building Code or chapter 54 of the City Code, or as stated herein.

(b) The city commission, by resolution, may permit an encroachment which does not unduly restrict use of the right-of-way or public easement area where such encroachment is a necessary essential element in the construction of an otherwise authorized pedestrian and/or vehicular overpass above or underpass below said right-of-way, public easement or emergency access easement area subject to payment of a one-time user fee in accordance with subsection (c) and (f) herein below and to the recording of a covenant to run with the land executed by the property owner in accordance with subsection (d) herein below, with the payment by the owner of the requisite user fee including, but not limited to, the preparation and recording of said covenant. Notwithstanding, the city commission, by resolution, may grant a perpetual, exclusive easement (or an easement conveying a lesser interest as stated in the resolution) on an underpass below or aerial easement above said right-of-way, public easement or emergency access easement area in favor of the abutting property owner provided such use does not unduly restrict the use of the right-of-way, public easement or emergency access

easement area; the abutting property owner owns both sides of the public right-of-way, public easement or emergency access easement area; and the easement underpass or aerial easement is necessary for a transit oriented development project of city-wide or regional importance, subject to payment of a one-time user fee in accordance with subsections (c), (f), and (g) herein below, and subject to the recording of an easement or aerial easement to run with the land executed by the abutting property owner in accordance with subsection (g) herein below, with the concurrent payment by the owner of the requisite user fee including, but not limited to, the preparation and recording of said easement.

(c) Calculation of user fee. The user fee shall be calculated as follows:

(1) Property owner must obtain a certified appraisal for the land value of the two properties from a certified general appraiser approved by the city. The land value per square foot of building shall be determined by dividing the total market value of the land comprising the entire project site by the maximum amount of building square footage that can be constructed by right as permitted by the applicable city zoning code.

(2) The estimated value of the aerial or subterranean rights shall be determined by multiplying the land value per square foot of building determined in subsection (c)(1), by the total square footage of the proposed passageway(s) including multiple levels, or with respect to subsection (g) below, easement area or encroachment area.

(d) Covenant to run with the land. The covenant to run with the land (covenant) shall be in a form acceptable to the city attorney. The provisions of the covenant shall include but not be limited to:

(1) Maintenance of the overpass or underpass by the property owner in accordance with the Florida Building Code and the City Charter and Code.

(2) Restoration or removal of the encroachment by the property owner within 30 days of written notification by the director of the department of resilience and public works to properly maintain, restore, or remove the overpass or underpass, as applicable.

(3) In the event of failure of the property owner to restore, maintain or remove the overpass or underpass, when notified, the city manager may contract for the restoration or removal of the overpass or underpass, and place a special assessment lien against the owner's abutting private property for the unpaid cost of the restoration or removal. These unpaid costs and expenses incurred by the city or its agents shall constitute, and are hereby imposed as, special assessment liens against the abutting private real property of the owner, and until fully paid and discharged, or barred by law, shall remain liens equal in rank and dignity with liens of city and county ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved. Such fees shall become delinquent if not fully paid within 60 days after their due date. The total outstanding balance of delinquent fees and related charges shall bear an interest charge of one percent per month, on any and all of the outstanding balance of the fees due, and if not fully paid with all accrued interest by the due date will continue to accrue interest at the rate of one percent per month. Unpaid and delinquent fees, together with accrued interest, shall remain and constitute special assessment liens against the private property owner's abutting real property involved which is deriving a benefit under this chapter. Such special assessment liens for the repair, maintenance, removal or restoration costs and interest and costs thereon may be enforced by any of the methods provided in F.S. ch. 85, or in the alternative, foreclosure proceedings may be instituted

and prosecuted under the provisions of F.S. ch. 173, or the collection and enforcement of payment thereof may be accomplished by any other method authorized by law. The owner shall pay all costs of collection, including reasonable attorney fees, court costs, and abstracting and related lien expenses imposed by this chapter.

(4) Provision of an insurance policy, in an amount determined by the city's risk manager, naming the city as an additional insured for public liability and property damage. This insurance shall be in effect as long as the encroachment exists in the right-of-way, public easement or emergency access easement. If the property owner fails to continue to provide the insurance coverage, the city shall have the right to secure a similar insurance policy in its name and place a special assessment lien against the owner's abutting private property as set forth above in subsection (c)(3), for the total cost of the premium.

(5) The property owner shall hold harmless and indemnify the city, its officials and employees from any claims for damage or loss to property and injury to persons of any nature whatsoever arising out of the use, construction, maintenance or removal of the overpass or underpass and from and against any claims which may arise out of the granting of permission for the encroachment or any activity performed under the terms of the covenant.

(e) The city manager or designee may permit an encroachment onto, into, below, and/or above a private easement, private platted alley, or emergency access easement, where said encroachment is not a safety hazard, and subject to the criteria in subsections (1), (2) and (3) below:

(1) *Emergency access easements; alternate method for encroachments onto, into, below and/or above emergency access easements.*

a. *Applicability.* For encroachments onto, into, below and/or above emergency access easements shall be permitted as described herein.

b. *Initiating a request for an emergency access easement encroachment.* The city manager, or designee, the city commission, or a private applicant may initiate the request for encroachments onto, into, below and/or above an emergency access easement.

c. *Procedures.*

1. *Pre-application review.* The application for encroachment onto, into, below and/or above an emergency access easement shall be submitted for review to the supervisor of plats prior to applying for the encroachment approval.

2. *Application procedures.* After the pre-application review, a completed emergency access easement encroachment application package shall be submitted to the supervisor of plats. The application package shall consist of the following:

A. Completed application form;

B. Non-refundable application and notice fees are due pursuant to sections 2-269, 55-14(c), 62-156, and 62-22 of the Code if the encroachment onto, into, below and/or above the emergency access easement is requested by an applicant, other than any governmental agencies;

C. Legal description of all parcels of land abutting the emergency access easement proposed to be encroached upon;

D. List of all owners, including addresses, that abut the emergency access easement to be encroached pursuant to the most cur-

rent Miami-Dade County tax roll and dated no later than ten days prior to submission of the application;

E. Proof of ownership by the owners of the properties which are subject to the emergency access easement to be encroached upon; and

3. *Review process.*

A. Publication requirement. Notice of the plat and street committee meeting shall be published with the city clerk prior to the plat and street committee meeting.

B. Notice to those listed in subsection 55-14(e)(1)c.2.D. by United States Postal Service mail and posting at each entrance/exit way of the emergency access easement.

C. Plat and street committee review. The application shall be submitted to the plat and street committee at least 15 days prior to the next meeting. The plat and street committee shall determine whether the city currently uses the emergency access easement, including the city's public service vehicles, such as police, fire-rescue, solid waste and resilience and public works, during the past 12 months, in making its decision. The plat and street committee may permit an encroachment onto, into, below and/or above an emergency access easement, where said encroachment is not a safety hazard. A private applicant requesting such an encroachment onto, into, below and/or above an emergency access easement shall provide an executed hold harmless and indemnification agreement for the benefit of the city in a form acceptable to the city attorney. The plat and street committee shall make written findings of whether it recommends to unconditionally approve, approve with conditions, or deny the requested encroachment onto, into, below and/or above the emergency access easement. After issuance of the findings of fact and recommendations by the plat and street committee, applications for the encroachment shall be submitted for approval by the city manager, or designee.

D. Recording of instrument in the public record. A document as adopted by the plat and street committee shall be recorded in the public records of Miami-Dade County, Florida.

E. Authorization for city manager to correct any typographical and/or non-substantial errors. In the instance when a certified opinion of title is received and reviewed by the city attorney demonstrating that a typographical and/or non-substantial

error has occurred in the legal description of an emergency access easement that was encroached upon pursuant to this section, the city manager, or designee, shall be authorized to execute documents, in a form acceptable to the city attorney, to correct any defects in the instrument.

(2) Encroachments onto, into, below, and/or above a private easement shall be permitted as set forth herein. The city manager or designee may permit an encroachment onto, into, below, and/or above a private easement where said encroachment is not a safety hazard, subject to receipt by the city of (i) written consent of the holder(s) of the private easement(s), (ii) written releases from all benefited specified individuals or public or private entities, or a certification that no such benefited individuals or public or private entities exist within the easement, (iii) recommendations of approval from the departments of police, resilience and public works, fire-rescue, general services administration, solid waste, planning, building and zoning, or alternatively approval by the plat and street committee and (iv) an executed hold harmless and indemnification agreement by both the requesting private parties and the holder of the private easement (unless the holder of the easement is a utility) for the benefit of the city in a form acceptable to the city attorney, with the herein exceptions being subject to compliance with all other requirements of law. Any application made under this section must be accompanied by a non-refundable fee of $2,500.00. The property owner making this application shall additionally pay any recording and copying fees as established by the state, county, or city.

(3) Encroachments onto, into, below, and/or above a private alley shall be permitted as set forth herein. The city manager or designee may permit an encroachment which does not unduly restrict or prevent the use of a platted private alley where such encroachment is a necessary essential element in the construction of an otherwise authorized pedestrian and/or vehicular overpass above or underpass below said platted private alley area subject to receipt by the city of (i) written request from the owner(s) abutting the portion of the platted private alley where the encroachment is proposed, (ii) recommendations of approval from the departments of police, resilience and public works, fire-rescue, general services administration, solid waste, planning, building and zoning, or alternatively approval by the plat and street committee and (iii) an executed covenant to run with the land for the benefit of the city which shall include insurance and indemnification as set forth in subsections (d)(4) and (5) herein in a form acceptable to the city attorney with all other requirements of law.

(f) The user fee required under this section shall not apply to governmental entities and agencies, including state, county and city departments or instrumentalities that are exempted from payment of this user fee. The user fee required under this section shall not apply to transportation projects that are of regional importance that serve a public purpose, as determined by the city commission, and which operate in the tri-county (Miami-Dade, Broward, and Palm Beach County) area or a larger area, or to public transit and public agencies or entities providing rail related projects. The city reserves its right to provide, impose and collect such other municipal fees, charges, costs, or impositions as provided by applicable laws, codes and regulations on the development project.

(g) The recording of a perpetual, exclusive easement or aerial easement in favor of the abutting property owner, with acknowledgement of reciprocal agreement by abutting property owners regarding maintenance, indemnification and insurance in accordance with the following:

(1) Maintenance of the improvements in the easement area by the abutting property

owner in accordance with the Florida Building Code, the City Charter, the City Code, and other applicable laws and regulations.

(2) In the event of loss, damage or destruction to the improvements in the easement area, or any part thereof, so that it becomes a hazard to the health, safety or welfare of the public, the owner of the abutting property shall repair as soon as reasonably practicable to a safe condition, but in no event later than 365 days from the date of loss, damage or destruction. In the event of the failure of the property owner to restore, maintain, or remove the improvements in the easement area, within this prescribed period of time, the city manager may contract for the restoration of the improvements in the easement area, and place a special assessment lien against the owner's abutting private property for the unpaid cost of the restoration. These unpaid costs and expenses incurred by the city or its agents shall constitute, and are hereby imposed as special assessment liens against the abutting private real property of the owner. Such special assessment liens for the repair, maintenance or restoration costs and interest and costs thereon may be enforced by any of the methods provided in F.S. ch. 85, or in the alternative, foreclosure proceedings may be instituted and prosecuted under the provisions of F.S. ch. 170 and ch. 173, or the collection and enforcement of payment thereof may be accomplished by any other method authorized by law. The owner shall pay all costs of collection, including reasonable attorneys' fees, court costs, and abstracting and related lien expenses imposed by this chapter.

(3) Provision of an insurance policy, or policies, with coverage limits reasonably determined by the city's risk manager, listing the city as an additional insured on all applicable liability policies. This insurance shall be primary and noncontributory, and must remain in effect as long as the encroachment exists in the right-of-way, public easement or emergency access easement. If the property owner fails to continue to provide the insurance coverage, the city shall have the right to secure a similar insurance policy in its name and place a special assessment lien against the owner's abutting private property as set forth above in subsection (b), for the total cost of the premium, after providing the owner with 30 days' written notice of such failure to maintain the insurance required.

(4) The abutting property owner shall hold harmless, defend, and indemnify the city, its officials and employees, at the property owner's own cost and expense, from any claims for damage, destruction, or loss to property and injury or wrongful death to persons or any other civil action in any way arising from the granting and allowance the easement, and any claims arising from matters addressed in the easement, of any nature whatsoever arising out of the use, construction, condition, maintenance, restoration or removal of the overpass or underpass.

(h) The city commission, by resolution, may permit an encroachment into a public easement, other than a pedestrian or vehicular overpass, which does not unduly restrict the use thereof subject to the following:

(1) A recommendation of approval by the plat and street committee upon a finding that the granting of the encroachment will not be detrimental to the public welfare or injurious to any other property in the vicinity in which the encroachment is situated. A recommendation of denial by the plat and street committee may be appealed to the review committee as described herein upon written request by the applicant within 30 days of the plat and street committee's decision. Such request shall state with specificity the reasons the plat and street committee's recommendation should be overturned. The review committee shall be comprised

of the director of the department of resilience and public works (or the supervisor of plats in lieu thereof), the director of the departments of zoning, the director of the department of planning, the director of the department of building, and an assistant city manager as designated by the city manager. The review committee, acting by majority vote, shall either affirm the plat and street committee's denial or reverse its denial and grant the requested encroachment.

The decision of the review committee, which shall be rendered within 30 days after conclusion of the hearing, shall be final.

(2) Furnishing of notice by the property owner(s) to all utility companies with facilities in the easement.

(3) The execution by the property owner(s) of a hold harmless and indemnification agreement for the benefit of the city, in a form acceptable to the city attorney, which provides the following:

a. Adherence to the applicable portions of the Miami 21 Code, or any successor land development regulations of the city, as to the placement, design, and construction of any encroachment.

b. That no certificate of occupancy or certificate of completion, including temporary or partial certificates of occupancy or certificates of completion, may be issued for the property until:

1. For platted public easements, a plat vacating and closing said public easement is accepted by the city commission and recorded in the public records of Miami-Dade County, Florida;

2. For public easements created by instrument, the easement is moved, released, abandoned, or otherwise reconfigured such that the approved encroachment no longer encroaches into the same; or

3. The encroachment is removed.

c. That the encroachment is limited to that which is substantially in accordance with a specified set of approved construction plans, which plans have been reviewed and approved by the department of resilience and public works.

(Ord. No. 9584, § 1, 3-24-83; Ord. No. 10367, § 1, 1-14-88; Ord. No. 10730, § 1, 5-24-90; Ord. No. 11008, § 2, 10-8-92; Code 1980, § 54.5-15; Ord. No. 13060, § 2, 3-12-09; Ord. No. 13467, § 3, 6-12-14; Ord. No. 13535, § 2, 7-23-15; Ord. No. 13761, § 2, 4-12-18; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13821, § 2, 1-10-19; Ord. No. 14239, § 2, 12-14-23; Ord. No. 14423, § 2, 12-11-25; Ord. No. 14433, § 4, 1-8-26)

Editor's note—Ord. No. 14423, § 2, adopted Dec. 11, 2025, amended § 55-14 and in doing so changed the title of said section from "Encroachments onto, into, below, and/or above rights-of-way, public easements, private easements, or emergency access easements; exceptions" to "Encroachments onto, into, below, and/or above rights-of-way, public easements, private easements, private platted alley, or emergency access easements; exceptions," as set out herein.

Sec. 55-15. Vacation and closure of rights-of-way, platted easements, and emergency access easements by plat.

(a) *Procedure.* The vacation and closure of any rights-of-way or platted easements, and the reversion thereof to abutting property owners shall be accomplished only through the platting procedure as set forth in section 55-7, subsections (a) "Preliminary conference" through (c) "Filing copies of tentative plat and plat application;" however, the closure or vacation of any alley abutting only parcels of land zoned T3-R or T3-L (single-family residential) or T3-O (two-family residential) may be accomplished by an alternative method as set forth herein below. Additionally, unimproved alleys (alleys which have never been improved and remain in their natural state) in any T3 transect abutting any more intense transect may be vacated by the alternate method as well, as set forth below.

Further, any subdivider or applicant requesting to vacate and close a right(s)-of-way shall research and obtain a confirmation from the city's office of capital improvements and the department of resilience and public works regarding whether the city expended any funds for improvements on the right(s)-of-way proposed to be vacated and closed within the prior 50 years, except as to restricted funds required to be repaid regardless of the timeframe ("confirmation"). If the confirmation indicates that funds were expended, the city's finance department and office of management and budget will determine the total amount of the city's expenditure, specifically including expenditure of restricted funds (bond funds, grant funds, or otherwise) for such improvements as a separate line item. The amount of funds expended on the area proposed for vacation and closure shall be calculated as the ratio of the total cost of the entire project to the total square footage of the entire project multiplied by the square footage of the area proposed to be vacated. The city manager or his or her designee will issue a total expenditure, which shall specify the amount that the subdivider must repay to the city ("total expenditure"). Said confirmation and, if applicable, total expenditure must be provided to the city before the scheduling of a public hearing before the city commission regarding the vacation and closure. No application for public hearing shall be scheduled for city commission consideration without a confirmation and, if applicable, the total expenditure. Payment to the city of the amount indicated on the total expenditure shall be paid to the city before recordation of the final plat in accordance with section 55-8 of the City Code. For those plats where a right-of-way is to be closed and vacated and such former right(s)-of-way is made a part of a lot owned and used by a non-revenue generating governmental agency and used for a public purpose, the subdivider shall be exempt from payment of the total expenditures for so long as the lot(s) containing said right(s)-of-way remain owned and used by a non-revenue generating governmental agency for a public purpose and shall be pro-rated based upon the square footage of the right(s)-of-way to be contained in a lot owned and used by a non-revenue generating governmental agency and used for a public purpose, relative to that which is not. The city attorney may take any and all steps necessary to require repayment of the total expenditure upon the exemption no longer being applicable in order to maintain compliance with restrictions related to tax-exempt bond, restricted grant, and other funds. Any governmental entity availing itself of this exemption shall repay the total expenditure in full with the maximum statutory interest should that entity be found to not be in compliance with restrictions related to tax-exempt bonds, restricted grants, and other funds as it relates to the use of the property containing said former right(s)-of-way.

(b) *Plat and street committee review of tentative plat.* All tentative plats involving vacation and closure shall be reviewed for compliance with all technical requirements of this chapter by the plat and street committee, and including the following criteria:

(1) No tentative plat will be considered by the plat and street committee which includes only rights-of-way or easements to be vacated and closed. The properties on each side of the rights-of-way or easements to be vacated and closed shall be included in the plat, and all abutting property owners shall join in the plat and the disposition of the rights-of-way or easements shown.

(2) Vacation and closure of half the width of the right-of-way or easement shall not be permitted.

(3) Where the subdivider requests the vacation and closure of a portion of the right-of-way connecting two streets, he/she shall provide a cul-de-sac specified in section 55-11 "Design standards." This cul-de-sac shall be fully within the property being platted. All property owners abutting the right-of-way between the two streets shall join in the plat abandoning and disclaiming all right, title and interest in the portion of the right-of-way being closed except as provided in section 54-4.

(4) Where the subdivider requests the vacation and closure of a portion of an alley,

he/she shall provide on his/her property suitable access from the closed end of the alley to the nearest public street, or streets, as required by the plat and street committee. All property owners abutting the alley shall join in the plat as required in subsection (b)(3), except as otherwise specifically provided in section 54-4.

(c) *Further consideration for vacations and closure.* In addition to review for technical compliance, the plat and street committee shall also consider the request for vacation and closure with respect to the following:

(1) Is it in the public interest, or would the general public benefit from the vacation of the rights-of-way or easements?

(2) Is the general public no longer using the rights-of-way or easement, including public service vehicles such as trash and garbage trucks, police, fire or other emergency vehicles?

(3) Would there be no adverse effect on the ability to provide police, fire or emergency services?

(4) Would the vacation and closure of the rights-of-way or easements have a beneficial effect on pedestrian and vehicular circulation in the area?

(d) *Findings of fact and recommendations.* After review of the tentative plat, and if the tentative plat complies with the technical requirements of this chapter, the plat and street committee shall forward to the planning, zoning and appeals board and the subdivider, in writing, its findings of fact that the tentative plat is in conformance with the technical requirements of this chapter, and shall also include its recommendations based on consideration of those items in subsection (c). If the tentative plat does not comply with the technical requirements, the subdivider shall be notified, and further action shall be withheld until the tentative plat is corrected.

(e) *Alternate method for vacation and closure of platted easements.* The vacation and closure of platted private easements; platted public easements and platted emergency access easements, shall be accomplished by replatting the property as set forth in this section. Public hearings by the planning, zoning and appeals board and city commission are required, except in cases where waived by the city manager or his/her designee. Before the requirement for such public hearings may be waived, the applicant shall have obtained (i) written consent to vacate and close the platted private easement(s), platted public easement(s) or platted emergency access easement(s) from the holder(s) of the easement(s), (ii) written releases from all benefited specified individuals or public or private entities, or a certification that no such benefited individuals or public or private entities exist within the easement(s); and (iii) recommendations of approval from the departments of police, resilience and public works, fire-rescue, solid waste, planning, building and office of zoning. The written consent that must be obtained from the holder(s) of the easement(s) must specify that the holder(s) of the easement(s) consent(s) to the vacation and closure of the easement(s) and must specify whether the holder(s) of the easement(s) has (have) granted any type of interest in the easement(s) to a third party, and shall specify the third party's identity. In the event that a third party does have an interest in the easement(s), the applicant must also obtain the third party's written approval to vacate and close the easement(s). In addition, the applicant must submit an ownership and encumbrance search report prepared by a title company of the area encompassed by the easement(s) that is (are) to be vacated and closed.

(f) *Planning, zoning and appeals board's public hearing for vacation and closure of rights-of-way and platted easements.* After issuance of the findings of fact and recommendations by the plat and street committee, the subdivider shall make application to the hearing boards section for a public hearing by the city planning, zoning and appeals board for the vacation and closure. The procedure for public notice and public hearing shall be as set forth in sections 62-19 et seq., including the payment of the necessary fees as required by the Code.

(g) *City commission's public hearing for vacation and closure of rights-of-way or easements.* After public hearing before the planning, zoning

and appeals board and a recommendation by the board for or against the vacation and closure, a public hearing shall be held before the commission of the city. The procedure for public notice and public hearing shall be as set forth in sections 62-19 et seq., including the payment of any necessary fees as required by the Code. If the city expended any funds on the right(s)-of-way proposed to be vacated and closed pursuant to the confirmation provided by the city, the total amount of funds shall be indicated in the total expenditure and those funds shall be repaid to the city in full, except for those properties meeting the non-revenue generating governmental agency exception as provided in subsection 55-15(a) of the City Code.

(h) *Determination by city commission.* If the city commission determines that it is not in the public interest, the rights-of-way or easements shall not be closed, and the plat shall be denied. If the city commission approves the requested vacation and closure, the subdivider may proceed with the plat as set forth in sections 55-8 through 55-14.

Approval of the requested vacation and closure shall be valid for a period of four years and shall remain independent of the referenced tentative plat during this period. The approved final plat must be recorded within the four-year approval period of the requested vacation and closure. Any revised tentative plat submitted for review subsequent to the approved vacation and closure must be compatible with the approved vacation and closure, as determined by the plat and street committee. The tentative plat most recently approved by the plat and street committee shall be the official tentative plat of reference when submitting documents for final plat approval by the city commission.

(i) *Public alleys; alternative method for closure and vacation of public alleys abutting parcels of land zoned T3-R or T3-L (single-family residential) or T3-O (two-family residential) and unimproved public alleys in T3 transect zones which abut any more intense transect zones.*

(1) *Applicability.* For public alleys which only abut parcels of land zoned T3-R or T3-L (single-family residential) or T3-O (two-family residential). Any public alley which has a parcel of land abutting any side which is zoned with greater intensity than T3 must follow the procedure established in subsection (a) herein. However, unimproved alleys (alleys which have never been improved and remain in their natural state) in any T3 transect zone abutting any more intense transect zone may be vacated by the alternate method stated in this section. An alley lying between two streets shall not be vacated unless the entire portion of the alley between such streets is vacated and closed.

(2) *Initiating a request for alley closure.*

a. The city manager independently or at the direction of the city commission, may initiate the closure of a public alley abutting parcels of land zoned T3 (single-family and two-family residential) or unimproved alleys in T3 which abut any more intense transect zone.

b. A property owner whose property is abutting parcels of land zoned T3 (single-family and two-family residential) or unimproved public alleys in T3 which abut any more intense transect zone, may file an application.

(3) *Procedures.*

a. *Pre-application meeting.* Any property owner making application to vacate and close a publicly dedicated alley must meet with the supervisor of plats, or designee, and the director of planning and zoning, or designee, prior to applying for the vacation and closure. The purpose of the pre-application meeting is to acquaint the applicant with the procedures for vacating and closing an alley and to acquaint the supervisor of plats or designee with the proposed vacation.

b. *Application procedures.* After the pre-application meeting, the

applicant shall submit to the supervisor of plats, or designee, a completed publicly dedicated alley application package. The application package shall consist of the following:

1. Completed application form;
2. Non-refundable application fee pursuant to section 2-269;
3. Legal description of all parcels of land abutting alley proposed to be vacated and closed;
4. List of all owners, including addresses, that abut the alley to be vacated and closed pursuant to the most current Miami-Dade County Tax Roll and dated no later than ten days prior to submission of the application;
5. Proof of ownership by the applicant of the property which abuts the alley to be vacated and closed; and
6. Statement from applicant as to whether the general public currently uses the alley, including public service vehicles such as trash and garbage trucks, police, fire or other emergency vehicles during the past 12 months.

c. *Review process.*

1. *Publication requirement.* Notice of the plat and street committee meeting shall be published with the clerk of the city prior to the plat and street committee meeting. Notice of the public hearing before the planning, zoning and appeals board shall be published one time, in a newspaper of general circulation in the municipality at least ten days prior to the date of the planning, zoning and appeals board hearing.
2. Notice to other property owners by U.S. Mail and posting at each entrance/exit way of alley. Notice shall be sent via U.S. Mail, certified return receipt requested to all property owners that abut the proposed alley to be vacated and closed. Additional notice may be required as specified on the instrument of dedication of the public alley. The city shall also post notice of the public hearing at each entrance/exit of the alley.
3. *Plat and street committee review.* The application shall be submitted to the plat and street committee 15 days prior to the next meeting. The plat and street committee shall make a recommendation to the planning, zoning and appeals board, in writing, of its findings of fact and whether the plat and street committee recommends to unconditionally approve, approve with conditions, or deny the requested vacation and closure. After issuance of the findings of fact and recommendations by the plat and street committee, the applicant shall make application for a public hearing with the planning, zoning and appeals board.
4. *Planning, zoning and appeals board authority.* The planning, zoning and appeals board or its successor is designated as the authority to render decisions pertaining to the closure and vacation of alleys pursuant to the provisions of this section.
5. *Planning, zoning and appeals board determination.* Upon receipt of the plat and street committee's recommendation, the planning, zoning and

appeals board shall determine whether the requested vacation and closure may be granted because it is in the best interest of the public. Determination of the closure shall be based on whether the alley provides the public services. The planning, zoning and appeals board shall then by resolution approve, deny or approve with conditions, the requested vacation and closure if such action is determined to be in the best interest of the public. The planning, zoning and appeals board shall deny the request if the evidence does not support the vacation and closure would be in the best interest of the public and the primary reason for the closure is to provide a benefit for the applicant or adjacent property owners. The planning, zoning and appeals board may attach conditions to an approval including, but not limited to, access and utility easements reservation, landscaping, and public access easement. Confirmation and, if applicable, total expenditure, both as defined in subsection 55-15(a) of the City Code, and payment to the city of the amount indicated on the total expenditure, must be provided to the city before the scheduling of a public hearing before the planning, zoning and appeals board regarding the vacation and closure. No application for public hearing shall be scheduled for planning, zoning and appeals board consideration without a confirmation and, if applicable, the total expenditure and payment, except as provided in subsection 55-15(a) of the City Code.

6. *Appeal to the city commission.* Decisions of the planning, zoning and appeals board are to be deemed final unless, within 15 calendar days of the date of the board decision, a request for review by the city commission is made in the manner set forth in the zoning ordinance and City Code.

7. *Receipt of fees for approved alley closures and vacations.* Upon receipt of notification of alley closure and vacation approval, the applicant will submit such fees that are required for the publication of closure and vacation and recording fees pursuant to section 2-269.

8. *Automatic reservation of easement and procedure for release thereof.* The city shall automatically reserve an easement over, across and under said lands for the installation, maintenance and operation of any utility located or to be located in the alleys or portions thereof vacated and closed pursuant to this section. If the applicant desires that no easement be reserved, then as part of the application package referred to in subsection 55-15(i)(3)b., the applicant is to submit release letters from all utility companies stating that said utility company will release any interest in an easement for the alley being vacated and closed.

9. *Zoning of vacated alley.* The district use and area regulations governing the property abutting upon each side of such

alley shall be automatically extended to the reversionary line of the alley included within the vacation and closure, unless otherwise specified.

10. *Recording of instrument in the public record.* The proof of publication of notice of public hearing and the resolution as adopted, shall be recorded in the public records of Miami-Dade County, Florida.

11. *Authorization for city manager to correct any typographical and/or non-substantial errors.* In the instance when a certified opinion of title is received and reviewed by the city attorney demonstrating that a typographical and/or non-substantial error has occurred in the legal description of an alley or abutting parcels of land that was closed pursuant to this section, the city manager is authorized to execute documents, in a form acceptable to the city attorney, to correct any defects in the instrument.

(j) *Private alleys; alternative method for closure and vacation of private alleys abutting parcels of land zoned T3-R or T3-L (single-family residential) or T3-O (two-family residential) or unimproved private alleys in T3 transect zones which abut any more intense transect zones.*

(1) *Applicability.* This section applies to the closure and vacation of any private alley, which only abut parcels of land zoned T3-R or T3-L (single-family residential) or T3-O (two-family residential). Any private alley which has a parcel of land abutting any side which is zoned with greater intensity than T3, must follow the procedure established in this section. However, unimproved alleys (alleys which have never been improved and remain in their natural state) in any T3 transect zone abutting any more intense transect zone may be vacated by the alternate method stated in this section, as well. An alley lying between two streets shall not be closed and vacated unless the entire portion of the alley between such streets is closed and vacated.

(2) *Initiation of a request for alley closure.* A property owner whose property is abutting a particular private alley as described in subsection (j)(1) and by following the procedure as stated in subsection (j)(3) may file an application.

(3) *Procedures.*

a. *Pre-application meeting.* Any person proposing to vacate a privately dedicated alley must meet with the supervisor of plats, or designee, and the director of planning and zoning, or designee, prior to applying for the closure and vacation. The purpose of the pre-application meeting is to acquaint the applicant with the procedures for closing and vacating an alley and to acquaint the supervisor of plats, or designee, with the proposed vacation.

b. *Application procedures.* After the pre-application meeting, the applicant shall submit to the supervisor of plats, or designee, a completed privately dedicated alley application package. The application package shall consist of the following information:

1. Complete application form; application must be executed by all property owners which abut the private alley;

2. Receipt of non-refundable application fee pursuant to section 2-269;

3. Survey of private alley to be closed and vacated including all abutting parcels of land with zoning designations, certified by a professional surveyor and mapper. Also, the survey must include the legal descrip-

tion and acreage of alley proposed to be closed and vacated;

4. Proof of ownership from all the property owners that abut the private alley to be closed and vacated;

5. Releases from all utility companies and statement from applicant as to whether the general public currently uses the alley, including public service vehicles such as trash and garbage trucks, police, fire or other emergency vehicles during the past 12 months.

c. *Review process.*

1. *Publication requirement.* Notice of the plat and street committee meeting shall be published with the clerk of the city prior to the plat and street committee meeting.

2. *Plat and street committee review.* The application shall be submitted to the plat and street committee 15 days prior to the next meeting. The plat and street committee shall make a recommendation to the planning, zoning and appeals board, in writing, of its findings of fact and whether the plat and street committee recommends to the planning, zoning and appeals board that the city does or does not have any interest in the private alley. After issuance of the findings of fact and recommendations by the plat and street committee, the applicant shall make application to the hearings boards section, for a public hearing by the city planning, zoning and appeals board for the vacation and closure.

3. *Planning, zoning and appeals board authority.* The planning, zoning and appeals board or its successor is designated as the authority to render decisions pertaining to the closure and vacation of alleys pursuant to the provisions of this section.

4. *Planning, zoning and appeals board determination.* Upon receipt of the plat and street committee's recommendation, the planning, zoning and appeals board shall determine whether the city has any interest in the closure of the platted private alley and whether it is in the interest of the public good to consent to the closure and vacation of the private alley. The planning, zoning and appeals board shall by resolution consent, consent with conditions or object to the requested closure and vacation. The condition of the approval of the closure and vacation may be in the form of a reservation of easement. Confirmation and, if applicable, total expenditure, both as defined in subsection 55-15(a) of the City Code, and payment to the city of the amount indicated on the total expenditure, must be provided to the city before the scheduling of a public hearing before the planning, zoning and appeals board regarding the vacation and closure. No application for public hearing shall be scheduled for planning, zoning and appeals board consideration without a confirmation and, if applicable, the total expenditure and payment, except for those properties meeting the non-revenue

generating governmental agency exception as provided in subsection 55-15(a) of the City Code.

5. *Appeals to the city commission.* Decisions of the planning, zoning and appeals board are to be deemed final unless, within 15 calendar days of the date of the board decision, a request for review by the city commission is made in the manner set forth in the zoning code and City Code.

6. *Final resolution*. The final resolution shall be provided to the applicants for proper recordation in the public records of Miami-Dade County, Florida.

7. *Zoning of vacated alley.* The district use and area regulations governing the property abutting upon each side of such alley shall be automatically extended to the reversionary line of the area included within the closure and vacation, unless otherwise specified.

(k) *Waiver of fees.* The city manager may waive the vacation and alley closure fee required pursuant to subsection 62-22(a)(11) in instances where the subdivider, by plat, is dedicating for public use, right-of-way that is equal to or greater in size than that which is being vacated.

(l) *Emergency access easements; alternate method for closure and vacation of emergency access easements.*

(1) *Applicability.* The closure and vacation of emergency access easements shall be permitted as described herein.

(2) *Initiating a request for closure and vacation of an emergency access easement.* The city manager, or designee, the city commission, or a private applicant may initiate the request the closure and vacation of an emergency access easement.

(3) *Procedures.*

a. *Pre-application review.* The application for closure and vacation of an emergency access easement shall be submitted for review to the supervisor of plats prior to applying for the closure and vacation approval.

b. *Application procedures.* After the pre-application review, a completed emergency access easement closure and vacation application package shall be submitted to the supervisor of plats. The application package shall consist of the following:

1. Completed application form;

2. Non-refundable application and notice fees are due pursuant to sections 2-269, 55-14(c), 62-156, and 62-22 of the Code if the closure and vacation is requested by an applicant, other than any governmental agencies;

3. Legal description of all parcels of land abutting the emergency access easement proposed to be closed and vacated;

4. List of all owners, including addresses, that abut the emergency access easement to be closed and vacated pursuant to the most current Miami-Dade County tax roll and dated no later than ten days prior to submission of the application; and

5. Proof of ownership by the owners of the properties which are subject to the emergency access easement to be closed and vacated.

c. *Review process.*

1. Publication requirement. Notice of the plat and street committee meeting shall be

published with the city clerk prior to the plat and street committee meeting.

2. Notice to those listed in subsection (l)(3)b.4.—5. by United States Postal Service mail and posting at each entrance/exit way of the emergency access easement.

3. Plat and street committee review. The application shall be submitted to the plat and street committee at least 15 days prior to the next meeting. Confirmation and, if applicable, total expenditure, both as defined in subsection 55-15(a) of the City Code, and payment to the city of the amount indicated on the total expenditure, must accompany the application for the vacation and closure, except for those properties meeting the non-revenue generating governmental agency exception as provided in subsection 55-15(a) of the City Code. The plat and street committee shall determine whether the city currently uses the emergency access easement, including the city's public's service vehicles, such as police, fire-rescue, solid waste, and public works, during the past 12 months, in making its decision. The plat and street committee may permit the requested closure and vacation of the emergency access easement, where said closure and vacation is not a safety hazard. A private applicant requesting such a closure and vacation of an emergency access easements shall provide an executed hold harmless and indemnification agreement for the benefit of the city in a form acceptable to the city attorney. The plat and street committee shall make written findings of whether it recommends to unconditionally approve, approve with conditions, or deny the requested closure and vacation of the emergency access easement. After issuance of the findings of fact and recommendations by the plat and street committee, applications for the closure and vacation shall be submitted for approval by the city manager, or designee.

4. Recording of instrument in the public record. A document as adopted by the plat and street committee shall be recorded in the public records of Miami-Dade County, Florida.

5. Authorization for city manager to correct any typographical and/or non-substantial errors. In the instance when a certified opinion of title is received and reviewed by the city attorney demonstrating that a typographical and/or non-substantial error has occurred in the legal description of an emergency access easement that was closed pursuant to this section, the city manager, or designee, shall be authorized to execute documents, in a form acceptable to the city attorney, to correct any defects in the instrument.

(Ord. No. 9584, § 1, 3-24-83; Ord. No. 10742, § 1, 6-28-90; Code 1980, § 54.5-16; Ord. No. 11299, § 1, 9-14-95; Ord. No. 12140, § 1, 10-25-01; Ord. No. 12293, § 1, 11-19-02; Ord. No. 12453, § 2, 12-18-03; Ord. No. 12483, § 2, 1-22-04; Ord. No. 12615, § 2, 11-18-04; Ord. No. 13070, § 1, 6-11-09; Ord. No. 13228, § 2, 11-18-10; Ord. No. 13467, § 3, 6-12-14; Ord. No. 13676, § 2, 4-27-17;

Ord. No. 13761, § 2, 4-12-18; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13793, § 2, 10-11-18; Ord. No. 13843, § 2, 6-13-19)

Sec. 55-16. Consideration of easements and alleys when alleged to be abandoned as a matter of law.

(a) *General application and requirements to deem an easement or alley as abandoned.* An easement or alley may be deemed abandoned as a matter of law, following a recommendation by the plat and street committee, if properly approved by the city commission, and if the expiration of the easement is not properly addressed in the easement instruments. In determining if an easement or alley is abandoned, the following shall be considered:

(1) The departments of the city, or other governmental agencies who have permitting authority, have not issued any permits for utilities, communications, or similar uses within the easement or alley area in the last 30 years.

(2) The general public has not used the easement or alley for a public purpose for an associated or incidental purpose in the last 30 years. The 30 years shall be substantiated by documentation including, without limitation, affidavits based on personal knowledge, photographic evidence, tax cards and other evidence such as surveys attesting that there has been no use by the public.

(3) There are no records or documents that require the easement or alley to be opened for access or use by the general public, or that require denial of any private use within the easement.

(4) The city, or other governmental agencies who have permitting authority, have issued building permits allowing construction on or within the easement or alley.

(5) All written evidence submitted by the property owner to the resilience and public works department indicates that any public service or public purpose use of the easement or alley has been abandoned by the city or the general public, as applicable.

(6) The city has, at all relevant times in the past 30 years, collected ad valorem taxes and similar assessments, levies or impositions on the lots inclusive of the portion of the lots where the easement or alley is located.

(7) Written evidence demonstrating that the intention of the parties was to abandon the easement or alley.

(8) Such other factors as are recognized by the laws of the State of Florida to deem an easement or alley abandoned under the general laws of this state.

(9) This section is supplemental to any other remedies provided by the laws of the State of Florida such as judicial declaration that an easement or alley is abandoned or a quiet title action.

(b) *Additional documentation.* The property owner may have additional documents to support his or her allegation that the easement or alley has been abandoned and recognized as vacated. These documents must be promptly submitted to the resilience and public works department. The property owner will bear the burden to produce any additional documents at the request of the resilience and public works department. The resilience and public works department will only schedule hearings once the application is complete. The resilience and public works department may establish required documents for such application and it shall only be processed when such documents are submitted.

(c) *Repayment of funds expended by the city for improvements on the easement or alley proposed to be abandoned.* The property owner requesting the abandonment under this section shall research and obtain a confirmation as referenced in subsection 55-15(a) from the city's office of capital improvements and the department of resilience and public works regarding whether the city expended any funds for improvements on the easement or alley proposed to be abandoned within the prior 50 years, except as to restricted

funds required to be repaid regardless of the timeframe ("confirmation"). If the confirmation indicates that funds were expended, the city's finance department and office of management and budget will determine the amount of the city's expenditure, specifically including expenditure of restricted funds (bond funds, grant funds, or otherwise) for such improvements as a separate line item. The city manager or his or her designee will issue a total expenditure, which shall specify the amount that the applicant must repay to the city ("total expenditure"). Said confirmation and, if applicable, total expenditure, as well as proof of a cleared payment to the city in the amount indicated on the total expenditure, must accompany the application for public hearing before the city commission regarding the abandonment. No application for public hearing shall be accepted without a confirmation and, if applicable, the total expenditure, as well as proof of a cleared payment to the city in the amount indicated on the total expenditure. For requests for abandonment by a property owner that is a non-revenue generating governmental agency which uses the property burdened by the easement or adjacent to the alley, as applicable, for a public purpose, the total expenditure shall be calculated but not owed to the city. In lieu of payment, the resolution by the city commission pursuant to subsection (f) shall contain the applicable total expenditure and require repayment of that portion expended by the city within the prior 50 years from the time when said portion of the lot, no longer burdened by the easement or adjacent to the alley, as applicable, is no longer owned by a non-revenue generating governmental agency or used for a public purpose. The city attorney may take any and all steps necessary to require repayment of the total expenditure upon the exemption no longer being applicable, in order to maintain compliance with restrictions related to tax-exempt bonds, restricted grants, or other funds. The total expenditure shall be paid in full to the city within ten days with the maximum statutory interest when the property ceases to be owned by a non-revenue generating governmental entity, used for a public purpose, or found to not be in compliance with restrictions related to any tax-exempt bonds, restricted grants, or other funds as it relates to the use of the property containing said former easement or alley.

(d) *Receipt of fees.* Any application made under this section must be accompanied by a non-refundable fee of $2,500.00. The property owner making this application shall additionally pay any recording and copying fees as established by the state, county, or city.

(e) *City commission's public hearing for deeming an easement or alley abandoned as a matter of law.* Once the required criteria have been met, a public hearing shall be held before the city commission. The procedure for public notice and public hearing shall be as is followed by the department of resilience and public works for their public hearing agenda items.

(f) *Determination by the city commission.* If the city commission determines that abandonment interferes with a public interest, the easements or alleys shall not be considered abandoned and the request shall be denied. If the city commission approves the request by passage of a resolution, the property owner may record a certified copy of this resolution.

(Ord. No. 13467, § 3, 6-12-14; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13793, § 2, 10-11-18; Ord. No. 13843, § 2, 6-13-19; Ord. No. 14433, § 4, 1-8-26)

Chapter 56

TAXATION*

Article I. In General

Secs. 56-1—56-25. Reserved.

Article II. Public Service Taxes

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Sec. 56-27. Rate and amount of public service tax on purchase of public utility services except telecommunications service; levy of tax.
Sec. 56-28. Rate and amount of public service tax on purchase of telecommunications service; levy of tax.
Sec. 56-29. Collection of tax.
Sec. 56-30. Remittance of tax to city by seller.
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Sec. 56-32. Reports of deliveries for resale.
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Sec. 56-34. Violations of article.
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Sec. 56-61. Excise tax on casualty insurance premiums levied; when due and payable.
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*__Charter reference—__Taxation generally, §§ 3(a), 27, 39 et seq.

__City Code cross references—__Annual ad valorem tax levy in downtown development district, § 14-28; finance, ch. 18; local business taxes, § 31-49.

__County Charter references—__Assessment and collection of taxes, § 4.04; revenues from municipal franchise and utility taxes to belong to city, § 5.07.

__County Code cross reference—__Taxation, ch. 29.

__Case law reference—__Diversion of funds collected under tax authorized by Laws of Fla., ch. 18689 for general employee pension to other uses held improper. City of Miami v. Gates, 393 So. 2d 586.

__Law review references—__Article as to taxing powers of municipal corporations in Florida, 8 Miami L. Q. 262; article on Florida's state and local tax structure, 13 Fla. L. Rev. 518.

__State law references—__Municipal finance and taxation, F.S. § 166.201 et seq.; taxation and finance generally, F.S. ch. 192 et seq.; occupational license taxes, F.S. ch. 205.

Article V. Ad Valorem Tax Exemption For Enterprise Zone Businesses

Sec. 56-111. Definitions.
Sec. 56-112. Miami-Dade County's water and sewer department water and sewer connection charge exemption.

ARTICLE I. IN GENERAL

Secs. 56-1—56-25. Reserved.

ARTICLE II. PUBLIC SERVICE TAXES*

Sec. 56-26. Definitions.

For the purposes of this article the following words and phrases shall have the meanings respectively ascribed to them by this section:

Bottled gas: All types and kinds of natural, liquefied petroleum and manufactured gas for lighting, heating, cooking, power or any other purpose delivered to any purchaser thereof within the city.

Electricity: All electric current or energy for lighting, heating, cooking, power or any other purpose delivered to any purchaser thereof within the city.

Fuel oil: All bunker C oil, no. 1 and no. 2 fuel oil and kerosene or any combination thereof for lighting, heating, cooking, power or any other purpose delivered to any purchaser thereof within the corporate limits of the city.

Metered gas: All types and kinds of natural and manufactured gas for lighting, heating, cooking, power or any other purpose delivered to any purchaser thereof within the city.

Private communication service:

(1) A communication service furnished to a subscriber or user that entitles the subscriber or user to exclusive or priority use of a communication channel or groups of channels, or to the use of an intercommunication system for the subscriber's stations, regardless of whether such channel, groups of channels, or intercommunication system may be connected through switching with a local telephone service, a teletypewriter or computer exchange service or a toll telephone service;

(2) Switching capacity, extension lines, and stations or other associated services which are provided in connection with, and which are necessary or unique to the use of channels or systems described in subparagraph (1) of this definition; or

(3) The channel mileage which connects a telephone station located outside a local telephone system area with a central office in such local telephone system.

Purchase as to all public services except telecommunications services: Every act or transaction whereby possession of, utilization of, control over or title to electricity, water, metered gas, bottled gas, or fuel oil, and the duty and obligation to pay therefor, become vested in the purchaser within the city.

Purchase within the municipality as to telecommunications services:

(1) All local recurring service charges for services originating within the city; and

(2) All charges for Florida intrastate telecommunications services, which charges are paid within the city upon receipt of service within the city or are billed to a telephone number within the city or a telecommunications or other billing number or device within the city; or

(3) If the location of the telecommunications services provided cannot be determined, the total amount billed for such telecommunications services to a telephone or telephone number, a telecommunications number or device, or a customer's billing address located within the municipality.

Purchaser: Every person legally liable for the payment for electricity, metered gas, bottled gas or fuel oil delivered to him/her, or telecommunications service or water service rendered to him/her by a seller.

Seller: Every person delivering electricity, metered gas, bottled gas or fuel oil, or rendering telecommunications service or water service to any purchaser thereof.

*__State law reference__—Authority of city to levy public service tax, F.S. § 166.231.

Telecommunications service:

(1) Local telephone service, toll telephone service, telegram or telegraph service, teletypewriter or computer exchange service, or private communication service; or

(2) Cellular mobile telephone or telecommunications service, specialized mobile radio, and pagers and paging service, including but not limited to "beepers" and any other form of mobile and portable one-way or two-way communication, but does not include services or equipment incidental to telecommunications services enumerated in this paragraph such as maintenance of customer premises equipment, whether owned by the customer or not, or equipment sales or rental for which charges are separately stated, itemized, or described on the bill, invoice, or other tangible evidence of the provision of such service.

Teletypewriter or computer exchange service: The access from a teletypewriter, telephone, computer, or other data station of which such station is a part, and the privilege of intercommunication by such station with substantially all persons having teletypewriter, telephone, computer, or other data stations constituting a part of the same teletypewriter or computer exchange system, to which the subscriber or user is entitled upon payment of a charge or charges, whether such charge or charges are determined as a flat periodic amount, on the basis of distance and elapsed transmission time, or some other method. The term "teletypewriter or computer exchange service" does not include local telephone service or toll telephone service.

Toll telephone service:

(1) A telephonic-quality communication for which there is a toll charge which varies in amount with the distance and elapsed transmission time of each individual communication; or

(2) A service which entitles the subscriber or user, upon the payment of a periodic charge which is determined as a flat amount or upon the basis of total elapsed transmission time, to the privilege of an unlimited number of telephonic communications to or from all or a substantial portion of the persons having telephone or radio telephone stations in a specified area which is outside that local telephone system area in which the station provided with this service is located.

The term "toll telephone service" includes wide-area telephone service charges.

Water service: The water supply furnished to all consumers of the city by the Miami-Dade Water and Sewer Authority (or department) for retail use and not for resale.
(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-11; Ord. No. 13676, § 2, 4-27-17)

Sec. 56-27. Rate and amount of public service tax on purchase of public utility services except telecommunications service; levy of tax.

There is hereby levied and imposed by the city upon every purchase of electricity, metered gas, bottled gas, fuel oil, and water service, included in or reflected by any bill rendered by the seller to the purchaser, a public service tax which shall be determined as follows:

(1) When the seller, in accordance with his/her rules and regulations, renders a bill to the purchaser to cover purchases made during the period of time to which the bill is applicable, the amount of public service tax shall be ten percent, exclusive of governmental charges and taxes, shown on any such bill, due and payable on account of such purchases, of such total amount; provided, however, that fuel oil shall be taxed at a rate not to exceed $0.04 per gallon.

(2) In the use and application set out in this section, purchases of electricity, metered gas, bottled gas, fuel oil, and water service shall be considered and treated as constituting and being distinct and unrelated classes of purchases, and in the event that more than one such class shall be shown upon the same bill, the

amount of public service tax payable under this article shall be determined and computed for each such class separately.

(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 56-28. Rate and amount of public service tax on purchase of telecommunications service; levy of tax.

There is hereby levied and imposed by the city upon every purchase within the municipality of telecommunications service which originates and terminates in this state a public service tax in the amount of seven percent of the total amount charged for any telecommunications service, exclusive of governmental charges and taxes, shown on any bill rendered by the seller.

(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-13)

Sec. 56-29. Collection of tax.

(a) The seller is required and it shall be his/her duty to render to each purchaser bills covering all such purchases made, and the amount of such public service tax shall be entered and shown by the seller as a separate item on each such bill and shall become due and payable to the city whenever such bill becomes due and payable under the rules and regulations of the seller. Each such bill shall include purchases applicable to but one location, or to but one family or business where more than one family or business uses separate metered services at one location in the city.

(b) The purchaser is required and it shall be his/her duty to pay such public service tax to the seller, as agent to the city, at the time of the payment of each such bill, and in the event that the purchaser shall fail, neglect or refuse to pay such public service tax to the seller when such bill becomes due and payable, the seller is hereby empowered, to the extent permissible by state statute or regulatory agency with jurisdiction, to discontinue forthwith to make any further sales or to render any further service to the purchaser until the total amount, including such public service tax, shown upon such bill has been paid in full. The seller is hereby authorized and required and it shall be his/her duty to collect such public service tax from such purchaser at the time of the payment of each such bill and to remit the same to the finance department in accordance with the provisions of section 56-30; provided that the seller shall have the right and privilege of assuming and paying such public service tax himself/herself in lieu of collecting the same from the purchaser, and that whenever the seller shall fail or neglect to exert reasonable efforts to collect such public service tax from the purchaser within one year from the date of the bill on which such tax was or should have been imposed, the seller shall be deemed to have assumed such public service tax himself/herself and shall thereupon become liable for the payment of the amount thereof to the city to the same extent as if such public service tax had been collected from the purchaser, without further recourse to the purchaser therefor.

(c) This section shall be applicable to all bills for electricity, metered gas, bottled gas, fuel oil, telecommunications service and water service.

(d) For the purpose of compensating the seller of telecommunications services, the seller shall be allowed one percent of the amount of the tax collected and due to the municipality in the form of a deduction from the amount collected for remittance. The deduction shall be allowed as compensation for keeping of records and collection of tax and remitting the same.

(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-14; Ord. No. 13676, § 2, 4-27-17)

Sec. 56-30. Remittance of tax to city by seller.

Every seller is hereby required to execute and file not later than the 20th day of each month at the office of the finance department a sworn statement, on a form prescribed by such department, setting forth the amount of such public service tax to which the city became entitled under the provisions of this article on account of bills paid by purchasers during the preceding fiscal month, and contemporaneously with the filing of such statement, shall pay the amount of

such public service tax to the finance department to be deposited to the credit of the general fund of the city for utilization for such legal purposes as the city commission may from time to time determine.
(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-15)

Sec. 56-31. Records to be kept.

Every seller is hereby required to establish and maintain appropriate accounts and records showing in such detail as the director of finance may prescribe the amount of such public service tax payable to the city under the provisions of this article, and such accounts and records shall be open to inspection by the director of finance or his/her duly authorized agent at all reasonable times. Upon 60 days' notice, the city may require the seller to make all such records available for audit in the State of Florida, and the seller shall provide space and office facilities, including personnel, reasonably necessary to enable the city to perform such audit. Alternatively, the seller may choose, at its sole option, to pay travel expenses, meals and lodging and other reasonable expenses of the auditor chosen by the city to make such inspection and audit at the various offices within the United States and Canada, wherever such records are located. The director of finance is hereby authorized and empowered to promulgate from time to time such rules and regulations with respect to the establishment and maintenance of such accounts and records reasonably necessary to carry into effect the purpose and intent of the provisions of this article.
(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-16; Ord. No. 13676, § 2, 4-27-17)

Sec. 56-32. Reports of deliveries for resale.

Every manufacturer, distributor, wholesaler or seller who shall deliver electricity, metered gas, bottled gas, fuel oil, or water service to any seller or other person having a place of business in the city, or licensed to do business therein, to be sold or resold to ultimate purchasers, shall report to the director of finance semiannually, as of June 30 and December 31, the names and addresses of such sellers or other persons, and the quantities received by each of them during the preceding six months, such reports to be filed not later than one month after the close of each semiannual period.
(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-17)

Sec. 56-33. Recognition of expense in regulation of rates.

All reasonable expense incurred by a seller of public services other than telecommunications services and all reasonable expenses in excess of the compensation to the seller of telecommunications services set forth in subsection (d) of section 56-29 incurred by a seller of telecommunications service in making the collections and remittances and in fulfilling the duties prescribed by this article is hereby declared to be and to constitute an operating expense and shall be accorded full recognition as such in the establishment of rates and charges for rendering electricity, metered gas, bottled gas, fuel oil, telecommunications service or water service in the city.
(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-18)

Sec. 56-34. Violations of article.

It shall be unlawful and a violation of this article for any purchaser to evade the payment of the public service tax provided for in this article, or any part thereof, or to fail or neglect to pay such public service tax within the 30 days after the same has become due and payable; or for any seller to fail or refuse to pay to the city all amounts of public service tax payable to the city by the seller, or to fail or refuse to file the monthly sworn statement or to set forth any erroneous or false information therein with intent to defraud the city, or to refuse to permit the director of finance or his/her duly authorized agent to examine the accounts and records to be kept as required by section 56-31.
(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-19; Ord. No. 13676, § 2, 4-27-17)

Sec. 56-35. Exemptions and exceptions.

The provisions of this article shall not apply to:

(1) Purchases by any recognized church in this state for use exclusively for church purposes, an agency or instrumentality of the United States, the state, the county or the city. All exemptions pursuant to this paragraph (1) shall be specifically approved by the finance director on a tax exemption certificate which shall be initiated and completed by the purchaser and upon approval by the finance director, shall be provided to the seller indicating authorization of the exemption.

(2) Purchases of local telephone services or other telecommunications services for use in the conduct of a telecommunications service for hire or otherwise for resale. All exemptions pursuant to this paragraph (2) shall be specifically approved by the finance director on a tax exemption certificate which shall be initiated and completed by the purchaser and, upon approval by the finance director, shall be provided to the seller indicating authorization of the exemption.

(3) Any fuel adjustment charge, which charge shall be separately stated on each bill. The term "fuel adjustment charge" means all increases in the cost of utility services to the ultimate consumer resulting from an increase in the cost of fuel to the utility subsequent to October 1, 1973.

(4) Access charges, any customer access line charges paid to a local telephone company, public telephone charges collected on site and charges for any foreign exchange service or any private line service except when such services are used or sold as a substitute for any telephone company switched service or dedicated facility by which a telephone company provides a communication path.

(5) Any charges for telecommunications service as defined in subparagraph (2) of the definition of telecommunications service of section 56-26 except for monthly recurring customer service charges.

(6) Any bills for the purchase of 16 ounces or less of bottled gas in a container.

(7) Any bills for fuel oil sold for use in internal combustion engines or to a public or private utility, either for resale or for use as fuel in the generation of electricity.

(Ord. No. 10263, § 1, 4-30-87; Code 1980, § 55-20)

Secs. 56-36—56-60. Reserved.

ARTICLE III. EXCISE TAX ON INSURANCE PREMIUMS*

Sec. 56-61. Excise tax on casualty insurance premiums levied; when due and payable.

There is hereby assessed, imposed and levied on every insurance company, corporation or other insurer engaging in or carrying on the business of insuring with respect to casualty risks, as shown by the records of the state insurance commissioner, an excise or license tax in addition to any license tax or excise tax now levied by the city, which tax shall be in the amount of 0.85 percent of the gross amount of receipts of premiums from policy holders on all premiums collected on casualty insurance policies, covering property within the city. The license or excise tax levied by this section shall be due and payable annually on March 1 of each year.

(Code 1967, § 30-25; Code 1980, § 55-28)

State law reference—Insurance premium tax authorized, F.S. § 185.08.

***City Code cross reference—**Miami City Employees' Retirement System, special benefits and contributions on account of police officers, § 40-191 et seq.

Case law reference—Funds derived from the tax authorized under F.S. ch. 175 must be held, administered and used for the sole use and benefit of firefighters and their dependents, and may not be used for other purposes. City of Miami v. Carter, 105 So. 2d 5.

State law references—Insurance premium tax authorized, F.S. § 175.101; excise tax on casualty insurance premiums authorized, for payment to fund providing pension benefits to municipal police officers, F.S. § 185.08.

Sec. 56-62. Excise tax on property insurance premiums levied.

There is hereby assessed and imposed on every insurance company, corporation or other insurer in the city, engaged in or carrying on the business of insuring property against loss or damage by fire or tornado, an excise or license tax amounting to 1.85 percent of the gross amount of receipts of premiums from policy holders on all premiums collected on fire and tornado insurance policies covering property within the city.
(Code 1967, § 30-24; Code 1980, § 55-36)

Sec. 56-63. Collection and use of funds.

(a) All money derived from the taxes imposed by sections 56-61 and 56-62 is hereby appropriated to the city employees' retirement system for the benefit of the police and firefighters of the City of Miami.

(b) The excise tax provided for in this article shall be payable and collected in the manner provided for by state law providing for the creation and administration of a firefighter's and police officers' pension fund.

(c) The tax assessed and imposed under sections 56-61 and 56-62 shall be in addition to all other taxes now levied by the city, and is a tax collected by the state, which will hereafter be credited to the city under state law.
(Code 1967, § 30-24; Code 1980, § 55-36; Ord. No. 13676, § 2, 4-27-17)

City Code cross reference—Miami City Employees' Retirement System, special benefits and contributions on account of firefighters, § 40-191 et seq.

State law references—Excise tax on property insurance premiums authorized, for payment to fund providing pension benefits to municipal firefighters, F.S. § 175.101; excise tax on casualty insurance premiums, F.S. § 185.08.

Secs. 56-64—56-85. Reserved.

ARTICLE IV. HOMESTEAD EXEMPTION FOR SENIOR CITIZENS

Sec. 56-86. Additional homestead exemptions for persons 65 and older.

In accordance with Section 6(f), Article VII, of the Florida Constitution and F.S. § 196.075, as may be amended from time to time, any person 65 years or over who has legal or equitable title to real estate located within the city and maintains thereon his/her permanent residence, which residence qualifies for and receives homestead exemption pursuant to Section 6(a), Article VII, of the Florida Constitution, shall be entitled to make an application for the following additional homestead exemptions which if granted, shall apply to taxes levied by the city:

(1) $50,000.00 for any person whose household income does not exceed $20,000.00; or

(2) The amount of the assessed value of the property with a just value less than $250,000.00 for any person who has been the owner for at least 25 years, and whose household income does not exceed the income limitation set forth in F.S. § 196.075(3).

(Ord. No. 11847, § 2, 10-26-99; Ord. No. 12909, § 2, 4-12-07; Ord. No. 13361, § 2, 2-28-13)

Editor's note—Ord. No. 13361, § 2, adopted February 28, 2013, changed the title of section 56-86 from "Qualification" to "Additional homestead exemptions for persons 65 and older." The historical notation has been preserved for reference purposes.

Sec. 56-87. Application required; contents.

Every person claiming the additional homestead exemptions pursuant to this article must file an application therefore with the Miami-Dade County Property Appraiser not later than March 1 of each year for which such exemption is claimed. Such application shall include a sworn statement of household income for all members of the household and shall be filed on a form prescribed by the state department of revenue. On or before June 1 of each such year, every applicant must file supporting documentation with the property appraiser. Said documentation shall include copies of all federal income tax returns, wage and earning statements, and such other documentation as required by the property appraiser, including documentation necessary to verify the income received by all of the members of the household for the prior year.
(Ord. No. 11847, § 2, 10-26-99; Ord. No. 13361, § 2, 2-28-13)

Sec. 56-88. Filing date.

Failure to file the application and sworn statement by March 1 or failure to file the required supporting documentation by June 1 of any given year shall constitute a waiver of the additional exemption privilege for that year.
(Ord. No. 11847, § 2, 10-26-99)

Sec. 56-89. When available.

This additional exemption shall be available commencing with the year 2000 tax roll, and the property appraiser may begin accepting applications and sworn statements for the year 2000 tax roll as soon as the appropriate forms are available from the department of revenue.
(Ord. No. 11847, § 2, 10-26-99)

Sec. 56-90. Adjustment of annual income limitation.

Commencing January 1, 2001, and each January 1 thereafter, the $20,000.00 annual income limitation of this article shall be adjusted annually and applicable as of January 1 of that year. The annual income limitation shall be adjusted by the percentage of change in the average cost-of-living index for the calendar year immediately prior to that year. As used herein "index" shall be the average of the monthly consumer-price index figures for the stated period, for the United States as a whole, issued by the United States Department of Labor.
(Ord. No. 11847, § 2, 10-26-99)

Secs. 56-91—56-110. Reserved.

ARTICLE V. AD VALOREM TAX EXEMPTION FOR ENTERPRISE ZONE BUSINESSES*

Sec. 56-111. Definitions.

For the purposes of this article, the following terms are defined as follows:

City shall mean the City of Miami, Florida.

Enterprise zone shall mean the area located in the city which has been either designated as an enterprise zone pursuant to F.S. § 290.005, and approved by the secretary of commerce pursuant to F.S. § 290.0065, or has been authorized to be an enterprise zone pursuant to F.S. § 290.0065, and approved by the secretary of commerce pursuant to F.S. § 290.0065. The area comprising enterprise zones, as defined herein, is depicted on the map, as may be amended from time to time, maintained in the city clerk's office.

Expanding business shall mean any business, located in an enterprise zone, that increases operations on a site co-located with a commercial or industrial operation owned by the same business and which creates, or causes to be created, within the city, the number of new jobs required in section 56-113 to employ full-time employees at such location.

New business shall mean any business located in an enterprise zone, that begins operations on a site clearly separate from any other commercial or industrial operation owned by the same business and which creates, or causes to be created, within the city, the number of new jobs required under section 56-113, to employ additional full-time employees at such location.
(Ord. No. 13911, § 2, 7-9-20)

Sec. 56-112. Miami-Dade County's water and sewer department water and sewer connection charge exemption.

A new business or expanding business that otherwise meets all other eligibility requirements of sections 2-348 and 2-348.1 of the Miami-Dade County Code, as amended, shall be deemed to have received the ad valorem tax exemption authorized by this article for the sole purpose of applying to receive Miami-Dade County's water and sewer department water and sewer connection charge exemption pursuant to sections 2-348 and 2-348.1 of the Miami-Dade County Code, as amended. This is intended to satisfy the require-

*__Editor's note—__Ord. No. 13911, § 2, adopted July 9, 2020, amended article V in its entirety to read as herein set out. Formerly, article V, sections 56-110—56-122 pertained to similar subject matter, and derived from Ord. No. 12308, § 2, adopted December 12, 2002; Ord. No. 12814, § 2, adopted June 22, 2006; Ord. No. 12913, § 1, adopted May 10, 2007, and Ord. No. 13841, § 2, adopted May 23, 2019.

ment of subsection 2-348.1(b)(2) without requiring separate application by the new or expanding business to the city.
(Ord. No. 13911, § 2, 7-9-20)

Chapter 57

VEHICLES FOR HIRE*

Article I. In General

Secs. 57-1—57-25. Reserved.

Article II. Nonmotorized Vehicles For Hire

Sec. 57-26. Definitions.
Sec. 57-27. Local business tax receipt.
Sec. 57-28. Operations.
Sec. 57-29. Vehicles and animals.
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Sec. 57-31. Penalties.

Article III. Pedicabs For Hire

Sec. 57-32. Definitions.
Sec. 57-33. Prohibited streets.
Sec. 57-34. Annual pedicab decal; pedicab decal fee; required insurance.
Sec. 57-35. Rates to be displayed.
Sec. 57-36. Vehicle safety and equipment standards.
Sec. 57-37. Advertising on pedicabs.
Sec. 57-38. Number of pedicabs permitted; restrictions on monopolies.
Sec. 57-39. Driver's permit and related requirements.
Sec. 57-40. Prohibited conduct.
Sec. 57-41. Passenger receipt upon demand.
Sec. 57-42. Appeals of director decisions.
Sec. 57-43. Enforcement.
Sec. 57-44. Impoundment fees.
Sec. 57-45. Reserved.
Sec. 57-46. Special events operation.

***Charter reference—**Authority of city to regulate vehicles for hire, § 3(b), (hh).

City Code cross references—Solicitation agreements by dancehalls, etc., with taxicab owners, drivers, etc., prohibited, § 5-41; bus benches, § 54-86 et seq.

County Code cross references—Metro-Dade transit agency, § 2-145 et seq.; vehicles for hire, ch. 31.

ARTICLE I. IN GENERAL

Secs. 57-1—57-25. Reserved.

ARTICLE II. NONMOTORIZED VEHICLES FOR HIRE*

Sec. 57-26. Definitions.

For the purpose of this article:

Chauffeur is defined as every individual who drives or propels a vehicle in the city.

Nonmotorized vehicle for hire is defined as an animal-powered vehicle carrying passengers for hire in the city. The reference herein to "vehicle" shall mean a nonmotorized vehicle for hire. The term "animal" includes humans, horses and fowl.

Operator is defined as any person engaged in business as the owner or proprietor of a vehicle requiring a license under this article.

Person is defined as a natural individual, firm, trust, partnership, association, or corporation, in his/her or its own capacity or as administrator, conservator, executor, trustee, receiver, or other representative appointed by a court. Whenever the word "person" is used in any section of this article prescribing a penalty or fine as applied to partnerships or associations, the word shall include the partners (both general and limited) or members or employees thereof who are responsible for any violation of said section, and such word as applied to corporations shall include the officers, agents, or employees thereof who are responsible for any violation of said section.

Street is defined as any public street, avenue, road, boulevard, alley, lane, highway, sidewalk, public park, viaduct or other public place located in the city and established for the use of vehicles. (Ord. No. 10100, § 1(1), 4-22-86; Code 1980, § 56-211)

*__City Code cross references—__Animals, ch. 6; bicycles, ch. 8; licenses and miscellaneous business regulations, ch. 31; motor vehicles and traffic, ch. 35; streets and sidewalks, ch. 54.

Sec. 57-27. Local business tax receipt.

(a) *Requirement; tag.* It shall be unlawful to operate any vehicle on any street, alley, sidewalk, or public park within the city until the proper local business tax receipt, as set forth in City Code chapter 31, has been issued by the city manager or designee, at which time a metal or plastic tag shall be furnished, upon which tag shall be the words describing the kind of local business tax receipt, and the year for which the local business tax receipt is paid. Such tag shall be, at all times during the period for which the local business tax receipt is paid, securely affixed and attached in a conspicuous place on the left rear of each vehicle covered under the local business tax receipt.

(b) *Application.* The local business tax receipt referred to in subsection (a) hereof shall be issued in accordance with chapter 31 of the City Code. The application for a local business tax receipt, which application may be received as early as June 1 prior to the commencement of a license year which extends from September 30 to October 1, shall include the following, in addition to information required by the City Code:

(1) Name, home and business address of the applicant and the name and address of the owner, if other than the applicant, of every vehicle to be used in the applicant's business.

(2) The name, address, telephone number and form of business. If the applicant is a corporation, it shall also state the names, addresses and occupations of its officers, directors and major stockholders, and the names and addresses of any parent or subsidiary companies, the date and place of incorporation, and, if incorporated outside of the State of Florida, whether or not it is qualified to do business within the State of Florida. If the applicant is a corporation controlled by another corporation, the names, addresses and occupations of the officers, directors and major stockholders of the controlling corporation shall also be stated. If the applicant is a partnership or other unincorporated association, the names and addresses of

each member, whether active or inactive, shall be set forth, and if one or more partners or members are corporations, the names and addresses and occupations of such corporations' officers, directors and major stockholders shall also be stated. Evidence of registration of a fictitious name or trade name, if any, under which the applicant proposes to do business.

(3) A description of the proposed service to be provided by the applicant including the area of the city to be covered and times of operation.

(4) A description and photograph of the type of vehicle to be used in the operation of the business. The photograph shall accurately represent the vehicle in an operational mode.

(5) A certificate of inspection as required by section 57-29 hereof.

(6) A certificate of insurance as required by subsection (h) hereof.

(7) The proposed location of the business office for the vehicle operation, the proposed location for storage of the vehicles and the proposed location for sheltering or stabling of the animals.

(c) *Issuance.*

(1) Not later than 60 days after the filing of a completed application, and obtaining all applicable approvals and certificates for a vehicle local business tax receipt, the city manager or designee shall issue the local business tax receipt. If the local business tax receipt is denied, the applicant shall be provided with a statement of the reasons therefor, which reasons shall be entered in writing on the application.

(2) Upon receipt and acceptance of a completed application for a local business tax receipt, the city manager or designee shall forward a copy of said application to the police department. For all local business tax receipts covering non-human-powered, nonmotorized vehicles, the city manager or designee shall also forward copies of said application to the resilience and public works department, and the director of the department of off-street parking. Each official shall evaluate the application for public health, safety and welfare concerns as pertains to his/her department. If the applicant's plan for service meets with the official's approval, he/she shall report said approval in writing to the city manager or designee. If said plan or application does not meet with the approval of the reviewing official, he/she shall report such disapproval to the applicant and to the city manager or designee with the reasons for disapproval listed in writing. Should the application be disapproved by the chief of police, the director of the department of resilience and public works, or the director of the department of off-street parking, the application for local business tax receipt shall be denied, and no local business tax receipt to operate the business shall be issued to the applicant.

(3) Any applicant whose application for a permit has been denied may, within 30 days after said denial, appeal in writing to the city commission, which shall schedule a hearing thereon within 45 days after receipt of said appeal.

(d) *Denial, suspension and revocation.* Any local business tax receipt issued hereunder may be denied, suspended or revoked in accordance with the procedures contained in City Code chapter 31 for the following reasons:

(1) Fraud or misrepresentation contained in the application for the local business tax receipt.

(2) Where any operator has failed to comply with any of the provisions of this article or has willfully or knowingly violated any such provision.

(3) Where any operator has conducted the licensed business in such manner so as to create a public nuisance, or endanger the

public health, safety or welfare or, knowingly and unnecessarily, impede the flow of vehicular or pedestrian traffic.

(e) *No unlicensed driver permitted.* No operator holding a business tax receipt under this article shall knowingly permit any vehicle operated under such local business tax receipt to be driven, or propelled, except by a chauffeur holding a current driver's license issued by the Florida department of highway safety and motor vehicles.

(f) *Compliance with laws required.* Every applicant shall comply fully with all ordinances, rules, and regulations of the city, Dade County, and all statutes of the State of Florida, applicable thereto during the local business tax receipt period.

(g) *Renewal; duplicates.*

(1) All local business tax receipts are valid for the entire licensing period unless revoked or suspended prior to expiration. Application to renew a local business tax receipt shall be made no later than 30 days before the expiration of the current local business tax receipt; said application shall comply with all provisions required for issuance of local business tax receipts.

(2) If a local business tax receipt issued under this section is lost or destroyed, the local business tax receipt holder may obtain a duplicate upon payment of a $10.00 service charge.

(h) *Insurance.* For each vehicle there shall be maintained a policy or policies of liability insurance applicable to the type of vehicle licensed with at least a combined single limit for bodily injury or property damage liability of $500,000.00 per occurrence. A certificate of insurance indicating the liability amounts and the policy period must be on file with the city manager or designee prior to issuance of a local business tax receipt. The certificate should indicate that coverage extends to or beyond the licensing period.

(Ord. No. 10100, § 1(2), 4-22-86; Ord. No. 10179, § 1, 11-13-86; Code 1980, § 56-212; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13745, § 4, 2-22-18; Ord. No. 13792, § 1, 10-11-18)

Editor's note—Ord. No. 12885, § 1, adopted February 8, 2007, changed the title of § 57-27 from "Occupational license" to "Local business tax receipt." The historical notation has been preserved for reference purposes.

Sec. 57-28. Operations.

(a) *Restrictions.*

(1) Local business tax receipts covering non-human-powered, nonmotorized vehicles issued under the provisions of City Code chapter 31 to operators shall only be applicable within certain areas of the city during specific time periods. There shall be no operation of such vehicles between the hours of sundown and sunrise on both Fridays and Saturdays in the Central Coconut Grove District, an area bounded on the west by McDonald, on the east by Mary Street and South Bayshore Drive, on the north by Grand Avenue, and on the south by Main Highway. All approved areas, routes, hours and schedules of operation must be approved by the police department each time a local business tax receipt is issued or renewed. A thorough description, including maps, of the proposed route(s) to be served or utilized in transporting passengers, including a schedule of proposed rates and charges for each route or trip offered to passengers, must be submitted at time of local business tax receipt application and renewal, together with a thorough description, including maps, of the proposed route to be utilized in transporting the vehicles from the storage location to the passenger loading/unloading stations. The police department has the right to change, modify or revoke approved routes and/or hours at any time if in its determination the operation of a vehicle is unreasonably and negatively affecting the safety and

efficient flow of vehicular or pedestrian traffic; such action by the police department may be appealed, within 15 days from the date of such action, in writing to the city commission, which written appeal shall be filed in the office of the city clerk. The city commission shall schedule a hearing thereon within 45 days after receipt of said appeal by the city clerk.

The operator may, in writing, request the police department to change or modify the approved routes and/or hours, which requested change or modification shall be granted if the police department determines that such change is reasonable and has no negative effect upon the safety and efficient flow of vehicular and pedestrian traffic. Failure to grant the request within 15 days from the date such written request is filed in the office of the chief of police shall be subject to appeal. The appeal shall be to the city commission and must be in writing and filed in the office of the city clerk within 45 days from the date such original written request was filed in the office of the chief of police. The city commission shall schedule a hearing thereon within 45 days after receipt of said appeal by the city clerk.

(2) Local business tax receipts covering human-powered vehicles issued under the provisions of City Code chapter 31 to operators shall be applicable within certain areas of the city. All general areas, hours and schedules of operation must be approved by the police department each time a local business tax receipt is issued or renewed. A thorough description, including maps, if deemed necessary by the police department of the proposed areas to be served or utilized in transporting passengers, including a schedule of proposed rates and charges for each area or trip offered to passengers, must be submitted at time of local business tax receipt application and renewal. The city commission, after a public hearing which shall have been the subject of a published notice advertised in a newspaper of general circulation at least ten days in advance, has the right to change, modify or revoke approved areas and/or hours at any time if in its determination the operation of a vehicle is unreasonably and negatively affecting the safety and efficient flow of vehicular or pedestrian traffic.

The operator may, in writing, request the police department to change or modify the approved areas and hours, which requested change or modification shall be granted if the police department determines that such change is reasonable and has no negative effect upon the safety and efficient flow of vehicular and pedestrian traffic. Failure to grant the request within 15 days from the date such written request is filed in the office of the chief of police shall be subject to appeal. The appeal shall be to the city commission and must be in writing and filed in the office of the city clerk within 45 days from the date such original written request was filed in the office of the chief of police. The city commission shall schedule a hearing thereon within 45 days after receipt of said appeal by the city clerk.

(b) *Rates.* Vehicles shall be operated at rates which must be disclosed to passengers prior to departure on any trip or payments for said rates shall be subject to forfeiture.

(c) *Parking.*

(1) A vehicle, while waiting for customers, may be parked in any regularly marked parking and boarding zones. If the length of the vehicle is oversize, the use of two parking spaces is permitted, while waiting for passengers to board and exit the vehicle. All applicable meter charges must be paid. Parking on any sidewalk by non-human-powered vehicles is not permitted. Loading and unloading of human-powered vehicles on sidewalks is permitted, provided the sidewalk is wide

enough to accommodate said vehicles in addition to an unobstructed eight-foot pedestrian passageway.

(2) Public streets may be used during the process of loading and unloading vehicles from any truck or trailer, but said truck or trailer shall not be parked or stored except in regularly marked parking or storage areas.

(Ord. No. 10100, § 1(3), 4-22-86; Ord. No. 10179, § 1, 11-13-86; Code 1980, § 56-213; Ord. No. 12885, § 1, 2-8-07)

Sec. 57-29. Vehicles and animals.

(a) *Safety requirements generally.*

(1) All vehicles shall comply with the following requirements:

a. All equipment installed in any part of the vehicle shall be secured in order to prevent movement during transit and to prevent detachment in the event of a collision or overturn.

b. Vehicles must be operated in accordance with all provisions of state law regulating vehicles and their operation.

c. Passengers shall not be carried in excess of the vehicle's seating capacity, which is defined as the number of persons that can be seated on the seat of the carriage or vehicle. This definition is specifically intended to prohibit seating of passengers (except infants) on the laps of other passengers and/or on parts of the carriage not designated for use as passenger seating.

d. Safety equipment shall be required in accordance with F.S. ch. 316; such equipment shall be affixed to the vehicle.

(2) In the event any vehicle for which a local business tax receipt has been issued becomes unsafe for operation, or its body or seating facilities are so damaged, deteriorated or unclean as to render such vehicle unfit for public use, the said vehicle may be suspended for use by the chief of police until the said vehicle is made safe for operation and its body is repaired and painted and its seating facilities reconditioned or replaced as required by the police department.

(b) *Inspection certificate.*

(1) a. All vehicles shall be inspected and approved by the police department for operation prior to certification as being in compliance with the applicable provisions of subsection (a) hereof.

b. All inspection certificates shall be issued by the police department. The police department shall also furnish a decal to be affixed to the vehicle indicating the vehicle number and seating capacity.

c. During any period of vehicular repair not exceeding 72 hours, a substitute vehicle may be used without the necessity of the herein inspection or the presence of the accompanying decal.

(2) a. A certificate of soundness shall be required for each animal that will be pulling a vehicle. The certificate shall be issued by a veterinarian licensed in the State of Florida.

b. The certificate of soundness shall state that the animal, if a horse, has been tested within the past calendar year for the presence of equine infectious anemia and that the test results were negative; further said certificate shall state that the animal is free from infectious disease, in good health and fit for hack and vehicle service under this article.

c. Each animal shall thereafter be reexamined at intervals of no more than six months, and a certificate of soundness shall be issued by the examining veterinarian and filed with the city in order for such animal to remain in service. No animal

shall be used to draw an animal-drawn vehicle without such certificate of soundness certified and dated within any preceding six-month period.

(c) *Inspection and certificate fee.* An inspection fee of $25.00 per vehicle shall be paid to the city at the time of filing any local business tax receipt application; such fee is to be applied to the cost of administering the provisions of this article and is in addition to the local business tax receipt fee payable under the provisions of chapter 31 of the City Code.

(d) *Nonabuse of horses.*

(1) The driver of each horse-drawn vehicle shall make water available to every horse used to pull a vehicle at intervals not to exceed two hours.

(2) No vehicle being drawn by a horse shall be permitted to carry more than six passengers per horse, exclusive of the driver of said vehicle.

(3) No vehicle being drawn by a horse shall be permitted to operate upon the public streets of the city when the temperature is below 32 degrees Fahrenheit or above 90 degrees Fahrenheit as reported by the United States weather bureau.

(4) It shall be unlawful for any owner or driver to use whips, bits, or any other equipment which may cause injury to the horse being used to pull the vehicles.

(e) *Sanitation.* It shall be unlawful for the chauffeur of any non-human-powered vehicle to allow any excreta to be deposited and remain on any public street. The method of excreta control and disposition shall be by diaper, bucket and shovel, deodorizer, or other such means as approved by the resilience and public works department.

(Ord. No. 10100, § 1(4), 4-22-86; Code 1980, § 56-214; Ord. No. 12885, § 1, 2-8-07; Ord. No. 13792, § 1, 10-11-18)

Sec. 57-30. Chauffeurs.

(a) *Driver's permit required.*

(1) Any person desiring to drive or operate a vehicle upon the streets of the City of Miami shall submit to the chief of police a written application which shall contain the following information:

a. His/her name, address, telephone number, and age.

b. A statement that he/she is free of and does not have any disease or infirmity which might make him/her an unsafe or unsatisfactory driver.

c. A photocopy of a currently valid driver's license issued by the Florida department of highway safety and motor vehicles.

(2) An applicant for a driver's permit under this article, which shall be renewable annually upon the filing of an application as set forth in paragraph (a)(1) of this section, must not be less than 18 years of age, with no physical infirmities which might make the applicant an unsafe or unsatisfactory driver.

(3) In the event that any driver at any time ceases to meet the qualifications described above, or fails to satisfactorily correct any false statement made in the application, or fails to operate a vehicle in accordance with the provisions of this article, the chief of police shall be empowered to suspend the driver's permit until such time as the violations are corrected.

(b) *Prohibited conduct.* No vehicle chauffeur shall:

(1) Leave any non-human-powered vehicle unattended;

(2) Store, park or leave any vehicle overnight on any street or sidewalk, or park any vehicle other than in a regularly marked space, in conformance with the city, county and state parking regulations;

(3) Operate in an area or at a time other than the ones approved by the city;

(4) Use any noise-making device after 9:00 p.m., except during special events, and at no time shall such chauffeur use his/her traffic warning device on any vehicle, except to give necessary signals while in traffic; and any chauffeur who violates the provisions of this paragraph, upon written notice from the city manager or his/her authorized representative, shall remove said noise-making device from the vehicle or reduce the volume on such noise-making device so that the same shall not be in violation of this paragraph. Failure to comply with such notice shall also subject such chauffeur to other penalties as set forth in this article;

(5) Have his/her vehicle in motion while anyone is standing or while anyone is sitting anywhere other than in the passenger seats thereof;

(6) Collect fares, make change or take on or discharge passengers while the vehicle is in motion;

(7) Operate any vehicle in such a manner that would clearly jeopardize the safety of the passengers transported therein;

(8) Operate a vehicle in such a way as to intentionally impede automobile traffic or create a hazardous situation;

(9) Park the vehicle in a manner so as to disrupt the flow of automobile traffic on public streets, roads, and thoroughfares, or so as to impede the flow of pedestrian traffic;

(10) Operate a vehicle in disregard of any traffic control device;

(11) Operate a vehicle in disregard of applicable state traffic laws;

(12) Execute a turn at other than a street intersection;

(13) Obstruct vehicular and pedestrian traffic by unnecessarily weaving or changing lanes of travel;

(14) a. Operate, maneuver, incline, spin, tilt, tip, slope, or position a human-powered vehicle in any manner that would unnecessarily place passengers in any position other than seated upright;

b. Raise drawbars of rickshaws higher than the shoulders of the chauffeur at any time passengers are being carried in said human-powered vehicle;

(15) Operate vehicle upon the sidewalk portion of a public right-of-way; or

(16) Operate a vehicle in the wrong direction on a one-way street.

(Ord. No. 10100, § 1(5), 4-22-86; Ord. No. 10179, § 1, 11-13-86; Code 1980, § 56-215; Ord. No. 13676, § 2, 4-27-17)

Sec. 57-31. Penalties.

Any person violating the provisions of any section of this article shall, upon first conviction hereof, be fined not more than $500.00. Upon second conviction and subsequent convictions thereafter, any person violating the provisions hereof shall be fined not more than $500.00 or be imprisoned for not more than ten days, or shall be both fined and imprisoned. Each day that such violation shall continue shall constitute a separate offense.

(Ord. No. 10100, § 1(6), 4-22-86; Code 1980, § 56-216)

ARTICLE III. PEDICABS FOR HIRE

Sec. 57-32. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Darkness is defined as any time from one-half hour before sunset to one-half hour after sunrise and anytime when the visibility is not sufficient to render clearly discernible any person or vehicle on the public street at a distance of 1,000 feet.

Decal is defined as the numbered, limited business tax receipt issued by the city pursuant to Chapter 31 of the City Code to a pedicab owner that indicates that operation of the pedicab is permitted within the corporate city limits of the City of Miami. The decal shall be clearly displayed on the pedicab at all times.

Decal fee is defined as the business tax receipt fee which is commensurate with the personnel expense, records compilation, investigation, organization, verification and storage relative to the allowance and regulation of pedicabs within the city. The pedicab decal fee is set forth in Chapter 31 of the City Code and will be paid on an annual basis. The fee is a prerequisite to issuance of a decal to any eligible pedicab.

Director is defined as the director of resilience and public works unless otherwise specified.

Driver's license is defined as a license issued pursuant to the laws of the State of Florida to a chauffeur or driver which entitles a person to operate a nonmotorized vehicle for hire within the jurisdictional corporate city limits of the City of Miami.

Nonmotorized vehicle for hire as defined in section 57-26, is an animal-powered vehicle carrying passengers for hire in the city. The reference to "vehicle" in this article shall mean a pedicab.

Pedicab is defined as a device that has three or more wheels, that transports, or is capable of transporting passengers on seats attached to the device, that is propelled solely by human power, and that is used for transporting passengers "for hire," including for tips or any other forms of compensation or barter, regardless of whether a passenger is being transported.

Pedicab driver is defined as any person who operates, drives, or propels a pedicab within the city limits of the City of Miami. Every pedicab driver is required to have on their person a current driver's license issued by the State of Florida Department of Highway Safety and Motor Vehicles. The driver's license must be valid and in good standing anytime a pedicab driver operates a pedicab in the city.

Pedicab owner is defined as the person engaged in business as the owner, who may also be the pedicab driver, requiring a decal under this article.

Street is defined as any public street, avenue, road, boulevard, alley, lane, highway, sidewalk, public park, viaduct or other public place located in the city and established for the use of vehicles.
(Ord. No. 13102, § 1, 10-8-09; Ord. No. 13745, § 4, 2-22-18; Ord. No. 13792, § 1, 10-11-18)

Sec. 57-33. Prohibited streets.

Use of pedicabs will not be authorized on residential neighborhood streets. Use of pedicabs will not be authorized on state streets or county streets unless specifically approved by the respective agencies whose jurisdiction the streets fall. Proposed routes must be approved in writing by the resilience and public works director or designee.
(Ord. No. 13102, § 1, 10-8-09; Ord. No. 13792, § 1, 10-11-18)

Sec. 57-34. Annual pedicab decal; pedicab decal fee; required insurance.

(a) It shall be a violation for any person to operate a pedicab upon the streets of the city unless the pedicab owner has first obtained a decal as defined herein. This decal is issued upon a showing of compliance with this article and chapter 31 of the City Code.

(b) Such decal shall, at all times during the annual, one-year period for which it is valid, be securely attached to a clearly visible place on the left rear portion of the pedicab for which it was issued. Each decal shall be valid when issued by the city manager or designee and remain valid, regardless of issue date, until September 30th of the fiscal year in which it was issued. In addition to the decal fee, an applicant wishing to operate a pedicab without advertising shall submit an annual regulatory business fee of $250.00 per pedicab to defray the city's time, costs, process and expense necessary in administering the pedicab program under this article. An applicant wishing to operate a pedicab with advertising shall submit an annual regulatory business fee in the amount of $500.00 per pedicab for the cost

of administering the program, as well as the privilege of utilizing the streets for private advertising purposes. The fees imposed by this chapter are in addition to any additional business tax receipt(s) or decal fees that may be required by the city manager or designee for conducting any advertising activities. Fees shall not be prorated.

(c) Prior to obtaining a decal the pedicab owner shall submit a completed package with all applicable signatures to the city manager or designee. In addition to the above, the following information must be included with the submittal: Pedicab vehicular information, pedicab reference form provided by the city manager or designee, copy of a current and valid Florida driver's license for the applicant, list of all pedicab drivers, copy of current and valid Florida driver's license for each pedicab driver, decal fee, and a drawing detailing routes and other pertinent technical information required by the resilience and public works department.

(d) The pedicab owner shall maintain a commercial general liability policy in place with limits of at least $500,000.00 per occurrence, $1,000,000.00 aggregate with respect to bodily injury, including death, and property damage liability affording coverage for premises and operations liability, personal and advertising injury liability, and contractual and contingent liability exposures. The certificate of insurance must also include coverage for statutory workers' compensation coverage, if applicable, and shall further list the City of Miami as an additional insured with respect to general liability, and include 30 days on the cancellation provision, except for 10 days notice for non-payment of premium. Carriers providing this coverage must be authorized to transact business in the State of Florida and must possess a financial rating of at least (A-) with a financial strength of (V) or better in accordance to A.M. Best guidelines. Such certificate must be provided to the city risk management division/risk manager, or designee for approval prior to issuance or renewal of any decal. All certificates of insurance shall be kept in full force and effect at all times while any pedicab is operated within the city and must cover a period of not less than 12 months. Proof of this insurance (e.g. a declarations page or certificate of insurance) must be maintained within the pedicab at all times it is operated within the city.

(e) The pedicab owner will indemnify, defend, and hold harmless the City of Miami, its officials, employees and agents (collectively referred to as "indemnitees") and each of them from and against all losses, costs, claims, penalties, fines, expenses (including attorney's fees), liabilities (collectively referred to as "liabilities") by reason of any bodily injury to or death of any person or damage to or destruction or loss of any property arising out of, or resulting from, or in connection with this permit. The Pedicab owner further agrees to indemnify, defend and hold harmless the indemnitees from and against liability which may be asserted by an employee or former employee of the pedicab owner, or any of its subcontractors, for which liability to such employee or former employee would otherwise be limited to payments under workers' compensation or similar laws.

(Ord. No. 13102, § 1, 10-8-09; Ord. No. 13745, § 4, 2-22-18; Ord. No. 13792, § 1, 10-11-18)

Sec. 57-35. Rates to be displayed.

Each pedicab operated within the city shall prominently display, in an eight-inch by ten-inch frame covered with clear plastic, a card or sign, printed in plain, legible letters and numbers which shall state whether gratuities or donations are accepted and contain the schedule of rates for the transportation services offered by the pedicab driver; the decal number of such pedicab; and the name and work address of both the pedicab owner and the pedicab driver of such pedicab. No pedicab driver may charge a fee that is not so posted. A map showing the approved route shall also be displayed.

(Ord. No. 13102, § 1, 10-8-09)

Sec. 57-36. Vehicle safety and equipment standards.

(a) Pedicabs shall not be operated within the city except in compliance with all laws of the State of Florida, Miami-Dade County, and the City of Miami.

(b) Pedicabs shall be subject to Chapter 316, Florida Statutes, as amended.

(c) Any law enforcement officer of the city shall have the right to inspect or cause to be inspected any pedicab operating on any street in the city as often as may be necessary for the purposes of ascertaining and causing to be corrected any unsafe or unsanitary considerations or any violations of this article.

(d) No pedicab driver may operate a pedicab on any street unless the pedicab meets the following equipment and safety standards:

(1) *Pedicabs.* Pedicabs shall not exceed 120 inches in total length, and 52 inches in total width.

(2) *Tires.* Tires shall be of a size appropriate for the pedicab with no mismatched tires. There shall be no cuts to the tire or localized worn spots that expose the ply. No tire is permitted to be used when the tire has tread wear indicators that are visible.

(3) *Operational horn.* The pedicab shall be equipped with a fully operational horn or bell.

(4) *Brakes.* Each pedicab shall be equipped with an operational brake or brakes which enable the pedicab driver to stop the pedicab within 15 feet from a speed of ten miles per hour on dry, level, clean pavement. The brake systems shall demonstrate a reasonable total braking force when tested, using the "quick stop method".

(5) *Headlights, tail lights, mirrors, turn signals, and other requirements.* Every pedicab shall be equipped with the following operational equipment set forth in the subsections below:

a. A headlight capable of projecting a beam of white light for a distance at a minimum of 500 feet, which shall be clearly visible during darkness and which must be illuminated at all times during operation;

b. A red tail light affixed to the rear of the passenger compartment, which shall be clearly visible during darkness from a distance of at least 600 feet to the rear of the pedicab which must be illuminated at all times during operation;

c. A side mounted mirror affixed to the pedicab to reflect to the pedicab driver a view of the street for a distance of at least 200 feet from the rear of the pedicab;

d. A slow moving vehicle triangle on the rear of the pedicab or reflective tape which outlines the rear of the pedicab from edge to edge;

e. Turn signal lamps which indicators must be visible for a distance of at least 500 feet from the rear of the pedicab indicating right and left turns which must be utilized when turning.

(e) The company or trade name, individual or fictitious name of the pedicab owner shall be conspicuously displayed on the exterior of each pedicab. This will not be considered advertising.

(f) No more than one trailer or sidecar may be attached to any pedicab. Any such trailer or sidecar must be attached in a manner that meets the requirements of § 316.530(2), Florida Statutes, as amended.

(g) Ample storage areas for the pedicabs shall be provided at point of departure or arrival for any given route. Rental of metered parking spaces will require a separate permit from the Miami Parking Authority.
(Ord. No. 13102, § 1, 10-8-09)

Sec. 57-37. Advertising on pedicabs.

(a) Advertisements shall only be allowed on the manufactured body (e.g. transom) of the pedicab as permitted by this article and cannot exceed ten square feet of total area. Advertisements must be painted on or otherwise adhere as a coating to the body of the pedicab. No banners,

poles, flags, detached signs, panels, posters, boards, or any other addition of personality or object whatsoever will be permitted on a pedicab.

(b) The advertisements shall be presented, upon request, for inspection or viewing by the city at any time prior to the time the decal is applied for or during the decal period. Advertisements shall not be allowed to be added after the decal period, although it may be replaced with allowable advertisements subject to the same constraints and time limits as the advertising approved at the time the decal was issued. The regulatory annual business fee of $250.00 shall have been paid prior to the placement or replacement of any advertising, as applicable. A regulatory business fee as provided in this chapter must be applied for, approved and paid, prior to engaging in any advertising on the pedicab.

(c) No advertisement on a pedicab is allowed for alcoholic beverages, tobacco products, or adult entertainment as defined by the city zoning ordinance. The name, phone number, web address, and physical address of the pedicab owner and pedicab driver will not be considered advertisement that requires the additional city regulatory review and fee under this section.

(d) No advertisement (other than the company name as provided by this article) will be allowed on the trailer or sidecar.
(Ord. No. 13102, § 1, 10-8-09)

Sec. 57-38. Number of pedicabs permitted; restrictions on monopolies.

(a) No more than 100 decals will be issued and no more than 100 pedicabs, shall be permitted to operate within the city, on a city wide basis (excepting prohibited streets) at any time.

(b) Decals will be issued by the city manager or designee to eligible persons who meet all the requirements of this article and other applicable laws on a first come first serve basis.

(c) No one person as that word is defined in section 57-26 of this article may be the recipient of more than ten pedicab decals at any one time.

(d) No subsidiary, parent, or affiliated company (for purposes of this article meaning any company that has interlocking directors or officers, or any of the same person or directors or officers, or any person who owns five percent or more of the stock of the company) of any person who has current decals may operate a pedicab business in the city under this article.
(Ord. No. 13102, § 1, 10-8-09; Ord. No. 13745, § 4, 2-22-18)

Sec. 57-39. Driver's permit and related requirements.

(a) It shall be a violation for any person to operate a pedicab in or upon any street in the city unless such person has a valid Florida Driver's License in compliance with F.S. Chapter 322, as amended, and is at least 18 years of age.

(b) A copy of the driver's license of the pedicab driver shall be affixed to the pedicab in a location which is clearly visible from the passenger compartment of the pedicab.

(c) Each pedicab driver shall maintain, at all times, a current mailing address on file with the city manager or designee.

(d) The mere existence of a driver's license is not an allowance to operate a pedicab under this article. The decal must be active, current, in good standing and correct.
(Ord. No. 13102, § 1, 10-8-09; Ord. No. 13745, § 4, 2-22-18)

Sec. 57-40. Prohibited conduct.

The following acts by any pedicab driver are prohibited:

(a) Carrying more than four passengers, or while carrying a number of passengers that exceeds the number of passenger seats which such pedicab was designed to accommodate, or while any passenger is standing or while any passenger is sitting anywhere other than the passenger seat. Children under the age of five may be seated securely in the lap of another passenger and will not count as an additional passenger.

(b) While the pedicab is in motion, the pedicab driver shall not collect fares, make change, or embark or debark passengers.

(c) Any act that violates any city ordinance, county ordinance, or state law or disrupts the flow of vehicular traffic on public streets.

(d) Leaving the pedicab unattended.

(e) Operating, maneuvering, inclining, spinning, tilting, tipping, sloping or otherwise positioning a Pedicab in any manner that would unnecessarily place a passenger in other than an upright, seated position.

(f) Operating a pedicab upon a sidewalk portion of a public right-of-way, except at the direction of a law enforcement officer or when there are no visible pedestrians on that entire block.

(g) Operating a pedicab upon any street listed on the prohibited streets list established under this article.

(h) Operating a pedicab on any street with a posted speed limit of more than 30 miles per hour.

(i) Operating a pedicab with sound produced by radio, tape, CD, DVD, record player, or any other mechanical sound device or instrument from the pedicab so that the sound is plainly audible at a distance of 25 feet or more from the pedicab. The pedicab cannot have a loudspeaker or amplifier.

(j) Operating or riding more than two abreast, except when overtaking and passing a bicycle or vehicle proceeding in the same direction.

(k) Using indecent or profane language while operating a pedicab.

(l) Allowing any passenger or occupant of the pedicab to drink or consume alcoholic beverages or to possess an open container of alcoholic beverages.

(Ord. No. 13102, § 1, 10-8-09)

Sec. 57-41. Passenger receipt upon demand.

If requested by a passenger, the pedicab driver shall deliver to the person paying for the hiring of the same, at the time of such payment, a receipt therefore in legible writing containing the name of the pedicab driver, the decal number, the total amount paid, and the date of payment.
(Ord. No. 13102, § 1, 10-8-09)

Sec. 57-42. Appeals of director decisions.

All decisions of the director relative to this article are final and binding decisions. Decisions of the director may be appealed to the city manager. The appeal must be filed in writing within 30 days of the director's decision.
(Ord. No. 13102, § 1, 10-8-09)

Sec. 57-43. Enforcement.

(a) Pedicab drivers are subject to Chapters 316—322 of the Florida Statutes, as amended, and shall be issued traffic infractions for any violations.

(b) The decal shall be revoked for any violation of this article pursuant to the provisions of Chapter 31 of the City Code.
(Ord. No. 13102, § 1, 10-8-09)

Sec. 57-44. Impoundment fees.

Any pedicab operated in violation of this article may be seized and impounded by the city. The pedicab will be returned to the pedicab owner after direct personnel expense incurred by the city related to the pedicab impoundment, and any towing and storage fees have been satisfied. These items shall all constitute impoundment fees under this section. The pedicab shall be removed and will be returned only upon written confirmation by the impounding city agency or instrumentality that the pedicab is in compliance with this article and payment of all applicable fees.
(Ord. No. 13102, § 1, 10-8-09)

Sec. 57-45. Reserved.

Sec. 57-46. Special events operation.

The city commission may, by resolution, designate a particular event taking place in the

city as a special event. During a special event period, which shall not be longer than 15 days, pedicab owners within the particular area described in the resolution shall be subject to all of the requirements set forth in the Code for pedicab operations, except as follows:

(1) All pedicab drivers are required to have on their person a current driver's license issued by any state within the United State of America.

(2) Proposed routes must be approved in writing by the resilience and public works director or designee. If the proposed route is within the boundaries of the particular area described in the resolution, and the resilience and public works director or designee fails to approve the proposed route within five business days following receipt, the route shall be deemed approved.

(3) Any applicant wishing to operate a pedicab with advertising shall pay a regulatory business fee in the amount of $100.00 per pedicab for the cost of administering the program, as well as the privilege of utilizing the streets for private advertising purposes during the special event. This fee shall be in addition to any business tax receipt(s) or decal fees that may be required by the city manager or designee for conducting any advertising activities.

(4) Prior to obtaining a decal the pedicab owner shall submit a completed package with all applicable signatures to the city manager or designee. In addition to the above, the following information must be included with the submittal: Pedicab vehicular information, pedicab reference form provided by the city manager or designee, copy of a current and valid driver's license for the applicant, list of all pedicab drivers, copy of current and valid driver's license for each pedicab driver, decal fee, and a drawing detailing routes.

(5) Each pedicab operated within the special event area shall prominently display, in a five-inch by five-inch frame covered with clear plastic, a card or sign, printed in plain, legible letters and numbers which shall state whether gratuities or donations are accepted and contain the schedule of rates for the transportation services offered by the pedicab driver; the decal number of such pedicab; and the name and work address of both the pedicab owner and the pedicab driver of such pedicab. No pedicab driver may charge a fee that is not so posted. A map showing the approved route shall also be displayed.

(6) Pedicabs shall be exempt from the equipment requirements contained in subsections 57-36(5)(iii)—(v).

(7) Advertising, including wrap advertising, shall be allowed on a maximum of 26 square feet of the pedicab. No advertisement on a pedicab is allowed for tobacco products or adult entertainment products or establishments.

(8) No one person as that word is defined in section 57-26 may be the recipient of more than 20 pedicab decals at any one time.

(9) The city commission, by resolution, may modify the requirements set forth in this section as may be in the best interest of the city.

(Ord. No. 13231, § 1, 11-18-10; Ord. No. 13745, § 4, 2-22-18; Ord. No. 13792, § 1, 10-11-18)

Chapters 58—60

RESERVED

Chapter 61

WEAPONS*

Article I. In General

Secs. 61-1—61-25. Reserved.

Article II. Airguns

Sec. 61-26. Definitions.
Sec. 61-27. Dealer's license—Required.
Sec. 61-28. Same—Application.
Sec. 61-29. Same—Issuance; term.
Sec. 61-30. Same—Revocation.
Sec. 61-31. Sale or delivery to minors—Generally.
Sec. 61-32. Same—False representation as to age.
Sec. 61-33. Minors not to carry in public places; exception.
Sec. 61-34. Discharging in public places.
Sec. 61-35. Seizure and sale of airgun used in violation of section 61-33 or 61-34.

*__State law reference—__Weapons and firearms, F.S. ch. 790.

ARTICLE I. IN GENERAL

Secs. 61-1—61-25. Reserved.

ARTICLE II. AIRGUNS*

Sec. 61-26. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Airgun: Any gun, rifle or pistol by whatever name known which is designed to expel a projectile by the action of compressed air or gas, or by the action of a spring or elastic, but such term does not mean a firearm.

Dealer: Any person engaged in the business of selling at retail or renting airguns or projectiles therefor, and the term "licensed dealer" means any such person licensed under the provisions of this article, or any person regularly licensed to sell firearms.

Minor: Any person under the age of 18 years.
(Code 1967, § 61-14; Code 1980, § 61-24)

Sec. 61-27. Dealer's license—Required.

It shall be unlawful for any dealer, except a licensed dealer, to sell, lend, rent or otherwise transfer any airgun or projectile therefor. Dealers who are licensed to sell firearms shall not be required to obtain the special license to sell airguns, but shall comply with all other provisions of this article.
(Code 1967, § 61-15; Code 1980, § 61-25)

Sec. 61-28. Same—Application.

(a) Any dealer, other than a dealer licensed to sell firearms, desiring a license to sell, lend, rent or otherwise transfer airguns or projectiles therefor shall make application to the license division, which shall provide the necessary forms and shall prescribe by reasonable rules and regulations the information to be contained in such application.

(b) It shall be unlawful for any person to knowingly make any false statement in such an application.
(Code 1967, § 61-16; Code 1980, § 61-26)

Sec. 61-29. Same—Issuance; term.

Upon payment of the fee prescribed in chapter 31, the license division shall issue to the applicant a license to sell, lend, rent or otherwise transfer airguns or projectiles therefor, which license shall remain in force, subject to annual payment of the license fee, unless revoked in accordance with the provisions of this article. No license shall be issued to any applicant within two years after the revocation of a previous license.
(Code 1967, § 61-17; Code 1980, § 61-27)

Sec. 61-30. Same—Revocation.

(a) Violation by a dealer of any provisions of this article shall be sufficient cause for the revocation of the license issued under this article or his/her license to sell firearms, after written notice to the dealer by the license division and an opportunity to be heard. The dealer shall have the privilege of being represented by counsel at such hearing.

(b) Final conviction of a violation of any provision of this article shall automatically revoke and terminate any license issued under this article or any license to sell firearms. Upon a finding and judgment by a trial court against any dealer that he/she has been guilty of such a violation of any provision of this article, the license of such dealer shall be automatically suspended pending the final disposition of any appeal from such finding and judgment.
(Code 1967, § 61-18; Code 1980, § 61-28; Ord. No. 13676, § 2, 4-27-17)

Sec. 61-31. Sale or delivery to minors—Generally.

It shall be unlawful for any licensed dealer to sell, lend, rent or otherwise transfer an airgun or projectile therefor to any person whom the dealer

*__County Code cross reference—__Use of BB guns, etc., by child under 16, § 21-7.1.

__State law reference—__Use of BB guns, air- or gas-operated guns, etc., by child under 16, F.S. § 790.22.

knows or has reasonable cause to believe to be a minor, and it shall be unlawful for any other person to give, sell, rent, lend or otherwise transfer any airgun or projectile therefor to a minor, except where the relationship of parent and child, guardian and ward or adult instructor and pupil exists between such person and the minor.
(Code 1967, § 61-19; Code 1980, § 61-29)

Sec. 61-32. Same—False representation as to age.

It shall be unlawful for any person to falsely represent himself/herself as being over 18 years of age in order to purchase or otherwise obtain an airgun or projectile therefor.
(Code 1967, § 61-20; Code 1980, § 61-30; Ord. No. 13676, § 2, 4-27-17)

Sec. 61-33. Minors not to carry in public places; exception.

It shall be unlawful for any minor to carry any airgun on the streets, alleys, public roads or public lands of this city, unless accompanied by an adult.
(Code 1967, § 61-21; Code 1980, § 61-31)

Sec. 61-34. Discharging in public places.

It shall be unlawful for any person to discharge any airgun from or across any street, sidewalk, alley or public road of this city, or on or across any public land, except on a properly constructed target range.
(Code 1967, § 61-22; Code 1980, § 61-32)

Sec. 61-35. Seizure and sale of airgun used in violation of section 61-33 or 61-34.

Any officer making an arrest for a violation of section 61-33 or 61-34 shall take possession of the airgun found upon or in the possession of the person so arrested and shall retain the same until disposition of the offense. If the person is found guilty, the airgun shall be forfeited and the proper department shall sell, at public sale or otherwise, or dispose of the same and account for and pay over the proceeds as in case of fines collected. If such person is acquitted, the airgun shall be returned to the parent, guardian or instructor of the offender upon demand therefor.
(Code 1967, § 61-23; Code 1980, § 61-33)

Chapter 62

PLANNING AND ZONING*

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*__Editor's note—__Ord. No. 13311, § 2, adopted February 23, 2012, amended chapter 62 in its entirety to read as herein set out. Formerly, chapter 62 pertained to zoning and planning. See the Code Comparative Table for a complete derivation.

__Charter references—__Authority as to zoning, § 3(mm); city planning and zoning board, § 38.

__City Code cross references—__Planning, building and zoning department, § 2-201 et seq.; zoning certificates of use, inspection, §§ 2-207, 2-208; downtown development, ch. 14; environmental preservation, ch. 17; historic preservation, ch. 23.

__County Code cross reference—__Zoning, ch. 33.

__Law review references—__Articles as to zoning generally by municipal corporations in Florida, 8 Miami L. Q. 266, 10 Miami L. Q. 236; article on legal problems in municipal zoning, 6 Fla. L. Rev. 355; note as to aesthetic zoning, 18 Fla. L. Rev. 430.

__State law reference—__Local government comprehensive planning and land development regulation, F.S. § 163.3161 et seq.

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ARTICLE I. IN GENERAL

Sec. 62-1. Oath required when testifying on zoning matters.

Any person wishing to testify before the planning, zoning and appeals board, or city commission during its consideration of a matter arising from or under the provisions of Ordinance No. 11000, as amended, the prior zoning ordinance of the city, and Miami 21, the zoning ordinance effective May 20, 2010, before testifying shall declare that he or she will testify truthfully by taking an oath or making an affirmation to be administered by the city clerk or designee.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-2. Reconsideration of zoning and comprehensive plan amendments.

Notwithstanding any City Code provision to the contrary, actions of the city commission related to the denial or approval of applications pertaining to amendments to the zoning ordinance, comprehensive plan, or elements thereof shall not be the subject of a motion to reconsider which is made subsequent to the first regularly scheduled city commission meeting following the date such actions have been taken.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-2.1. Independent traffic and environmental impact studies.

The city requires independent traffic statements, traffic impact studies, and environmental impact studies performed by qualified independent providers registered and approved pursuant to the City Code and as indicated in this section below.

If a traffic statement or a traffic impact study is required by the city pursuant to the City Code or the city's zoning ordinance, it shall be performed by an independent provider pursuant to this section of the City Code. In addition, all developments and redevelopments that generate 20 or more peak hour trips based on the latest version of the ITE Trip Generation Manual will require a traffic statement by an independent provider pursuant to this section of the City Code. All independent traffic statements shall document the trip generation, site access, and provide a maneuverability diagram. Following a review of the traffic statement, the city reserves the right to require a traffic impact study to be performed by an independent provider pursuant to this section of the City Code. All traffic impact studies shall include, at a minimum, an estimation of the site-generated traffic, an assessment of its impact on the public street system and surrounding area, and identification of onsite and offsite improvements and/or mitigation efforts that may be needed as a result of the development.

If an environmental impact study is required by the city pursuant to the City Code or the city's zoning ordinance, it shall be performed by an independent provider pursuant to this section of the City Code. In addition, any acquisition, sale, or lease of city-owned property over $2,000,000.00 shall require an independent environmental impact study unless waived by four-fifths affirmative vote of the city commission.

Every development shall comply with this section of the City Code before a building permit is issued, including any phased permits. The city manager shall create a pool of qualified providers to conduct independent traffic statements, independent traffic impact studies, and independent environmental impact studies. The pool of providers shall be established through a competitive process which shall include pricing, when appropriate, pursuant to the city's procurement process as established by chapter 18 of the City Code; the Consultant's Competitive Negotiation Act ("CCNA"), F.S. § 287.055, as amended and as applicable; and subsequent approval by the city commission. The city manager or designee will assign such independent traffic statements and independent studies to members of the pool of providers on a rotating basis. All expenses incurred in the undertaking and conducting of the statements and independent studies shall solely be borne by the applicant of the proposed development. Prior to commencing a study, the applicant shall pay to the city an amount equal to 100 percent of the estimated expenses for the services of the provider set to perform the independent study. The applicant shall satisfy

any amount over and above the provider's estimated expenses prior to the issuance of the final report and the issuance of any building permit(s), including phased permits. No building permits, including phased permits, shall be issued on the development or any other property requested by the applicant until full payment is received. The applicant shall also show compliance with any traffic and environmental mitigation measures required by the city after review of any traffic statement, traffic impact study, or environmental impact study before a building permit is issued, including phased permits. Any provider that has participated within the preceding year in an application for any development for an applicant or is currently working for an applicant on any application is hereby prohibited from participating in the pool of providers conducting the statement or study for that applicant for one year after the completion of the engagement. (Ord. No. 13858, § 2, 9-12-19)

Sec. 62-2.2. Reserved.

Editor's note—Ord. No. 14396, § 2, adopted September 25, 2025, repealed the former section 62-2.2 in its entirety, which pertained to independent feasibility and economic impact studies, and derived from Ord. No. 13928, § 2, adopted October 8, 2020.

Section 3 of Ord. No. 14396 states the following: "After this repeal, the City shall not enforce the Economic Impact and Feasibility Studies requirement(s) of Section 62-2.2 of the City Code on any new entitlement or building applications nor any pending entitlement or building applications that have not already started the process; this repeal of Section 62-2.2 of the City Code shall apply, as applicable, to all applications pending at the time of the effective date of the repeal if such study(ies) have not yet been performed."

ARTICLE II. COMPREHENSIVE PLANNING

Sec. 62-3. Purpose and intent.

(a) Under authority conferred by the constitution and laws of Florida and of the City Charter it is the intent of the city to plan for the city's future development and, as an integral part of the total and continuing planning-process, to take such lawful actions as may be deemed necessary to implement the comprehensive planning program.

(b) The continuing comprehensive planning program contemplated by this chapter shall be a coordinated one, taking into account the factors and situations which bear on the course of present and future development and growth of the city, to the end that the present and future population of the city will be assured of a healthful, compatible and habitable living environment.

(c) The continuing comprehensive planning program and comprehensive plans that may be adopted may include, but are not to be deemed as limited to, principles and policies to be followed in:

(1) Future development of the city;

(2) Location, relocation and character of the various uses of land and water;

(3) Location, relocation and character of public and private open spaces and structures for recreation, amenity and cultural life;

(4) Modes and means of travel and transportation;

(5) Location and character of public buildings, services and facilities;

(6) Provision of necessary utilities;

(7) Development of standards for ecological and environmental quality;

(8) Planning for conservation, rehabilitation or replacement of housing;

(9) Treatment of areas, sites or structures of historical or archaeological import and significance;

(10) Density of population;

(11) Methods and policies for encouragement of cooperation of private persons and groups in the development, implementation and accomplishment of adopted comprehensive plans;

(12) Taxing and financial arrangements and long range capital improvement programs deemed necessary to implement the planning program; and

(13) Land use control and regulatory measures and other instruments deemed necessary to accomplish the aims and objectives of adopted comprehensive plans.

(d) Adopted plans may take the form of singular or multiple documents, maps, charts, graphs, statistical information, commentary, statements of purpose and intent or other forms recognizable as declaring the purpose and intent of the city in guiding the future growth and development of the city as a whole, a geographical classification thereof, or a functional classification thereof.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-4. Establishment of the planning, zoning and appeals board generally.

(a) To meet the-responsibilities under the continuous comprehensive planning program required by state statutes and this chapter, certain boards are established and given authority and responsibility as set out in this chapter and elsewhere in this Code. The board so established is the planning, zoning and appeals board.

(b) The city commission may by resolution create additional committees or instruments to serve in advisory or consultative capacities to the planning, zoning and appeals board.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-5. Administration generally.

Administrative authority and responsibility for the preparation, conduct and implementation of the continuing comprehensive planning program shall be as set out in state statutes, this chapter and elsewhere in this Code. Under the authority of the city manager, the planning and zoning department shall work in close coordination with the planning, zoning and appeals board and other appropriate city boards and departments in the preparation, conduct, review and implementation of the continuing comprehensive planning program.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-6. Effect of previously adopted comprehensive plan.

Any comprehensive plan or portion(s) thereof previously adopted by the city, shall remain in full force and effect until superseded by any plan(s), or portion thereof, adopted under this chapter.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-7. Preparation of the comprehensive plan.

(a) The planning and zoning department shall prepare comprehensive and coordinated plans for the development of the city, or a geographical or functional classification thereof, for review and recommendation by the planning, zoning and appeals board. Such plans, or substantial portions of plans as may relate to geographical or functional classifications thereof, shall be based on existing and anticipated needs, showing existing and proposed improvements and stating the principles according to which future development should proceed and the manner in which such development should be controlled. The plans, or portion thereof, shall be made with the general purpose of guiding and accomplishing a coordinated, adjusted and harmonious development of the city, or a geographical or functional classification thereof, which will, in accordance with existing and future needs, best promote public health, safety, comfort, order, appearance, convenience, morals and the general welfare and which will contribute to efficiency and economy in the process of development and future maintenance. The planning program shall include plans for future land use and may include plans for transportation, housing, recreation, utilities, community facilities, a long range financial program for public improvements, instruments for encouragement of cooperation between private groups and government, measures for implementation and such other matters as may be deemed necessary by the planning, zoning and appeals board and the city commission for the purpose of meeting the objectives of this chapter.

(b) The planning and zoning department shall keep the planning, zoning and appeals board informed of the progress and status of the work

involved in the continuous planning program and shall work closely with, consult with and seek the advice of the planning, zoning and appeals board and other appropriate city boards and departments in the preparation of plans or portion thereof under the continuing planning program.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-8. Procedures for amending the comprehensive plan.

(a) *Types of comprehensive plan amendments.* Comprehensive plan amendments may be any of the following:

(1) Comprehensive plan update or comprehensive amendment to a major portion thereof, pursuant to F.S. § 163.3161, as amended.

(2) A seven-year comprehensive plan amendment, resulting from and accompanied by an evaluation and appraisal letter, pursuant to F.S. § 163.3184(4) and 163.3191, as amended.

(3) A plan amendment, pursuant to F.S. § 163.3184(3), as amended, the expedited state review process. Data summaries and planning studies amplifying and clarifying policies that are consistent with the comprehensive plan are not amendments.

(4) Any small-scale plan amendments as described in F.S. § 163.3187, as amended.

(b) *Applications for plan amendments.* Applications may be made by:

(1) The city commission which may by motion, direct the planning and zoning departments to prepare an amendment for submissions and review by the planning, zoning and appeals board.

(2) The city manager.

(3) The planning and zoning department.

(4) The owner or agent or attorney for the owner of property, pursuant to subsection (a)(3) and based on the advice of the planning, and zoning department that a plan amendment is necessary.

Applications for plan amendments, as described in subsection (b)(3), and accompanied by a change of zoning to the same property can only be filed semiannually with the planning and zoning department up to, but no later than, 45 days before the first hearing of the planning zoning and appeals board in the month of March and up to, but no later than, 45 days before the first hearing of the planning zoning and appeals board in the month September. If accepted, the application will be scheduled for the planning, zoning and appeals board public hearing in the months of March and September, respectively, with the objective of utilizing the two plan amendment opportunities in a calendar year. For all other applications the planning and zoning department will schedule the amendment on an agenda of the planning, zoning and appeals board within 45 days of the acceptance of the application, except for the month of August. This procedural scheduling restriction shall not apply to applications by the city.

All applications for plan amendments shall be submitted in writing to the planning and zoning department's hearing boards section. Applications under subsection (b)(3) shall contain a notarized statement by the owner of the property, his/her agent or his/her attorney, that the facts as represented on the application are true and correct to the best of the owner's knowledge or that of his/her attorney or agent. Applications shall be accompanied by all pertinent information required by this article and which may be required for proper consideration of the matter, including an owner's affidavit, financial disclosure and a certified list of owners and their addresses of all properties within 500 feet of the subject property along with payment of all fees and advertising charges. Applications shall not be deemed as accepted by the planning and zoning departments unless all appropriate information is supplied to the satisfaction of the planning and zoning department, most particularly, the hearing boards section of the planning and zoning department.

No private application will be accepted unless, as required, a companion application for a change of zoning is also filed. Where companion applications are filed for both plan amendments and zoning amendments for the same property, pursuant to subsections (a)(3) and (4), only one set of owner affidavits, disclosure of ownership forms and property owners' list must be filed.

Where companion applications are filed for both plan amendments and zoning amendments pursuant to subsections (a)(3) and (4), the plan

amendment will be scheduled on an agenda of the planning, zoning and appeals board such that the public hearing occurs prior to the public hearing by the planning, zoning and appeals board on the zoning amendment.

(c) *Review and recommendation by the planning and zoning department.* All plan amendments shall be reviewed and recommended by the planning and zoning department. This finding will consider whether the land use, densities and intensities proposed are compatible with and further the objectives, policies, land uses, and densities and intensities in the comprehensive plan, provided further that the comprehensive plan shall be construed broadly to accomplish its stated purposes and objectives. Recommendations must be on file for public review ten days prior to public hearing. Applications will not be permitted to be revised within the ten-day period prior to the public hearing (and subsequently) unless the revision is made in public hearing with full disclosure.

(d) *Review and recommendation by the planning, zoning and appeals board.* The planning, zoning and appeals board, the local planning agency for the city, will conduct a public hearing. Notice shall be given of the public hearing as set out in subsections 62-20(1) and (4); in addition, the planning, zoning and appeals board may, for the particular hearing involved, give such additional notice as it may deem proper to the subject of the hearing and circumstances therein involved.

Upon completion of such hearing, the planning, zoning and appeals board may recommend to the city commission by a vote of not less than a supermajority of the board members present as defined in subsection 62-17(d), the adoption by the city commission of the plan update, or portion thereof or plan amendment, upon which the public hearing was held. The board resolution of recommendation shall refer expressly to the maps, descriptive material and other data intended by the planning, zoning and appeals board to form the whole or the part of the plans upon which the public hearing was held. Where the recommendation of the planning, zoning and appeals board is not in accord with earlier recommendations of the planning and zoning department, the planning and zoning department shall submit to the city commission its recommendation in the matter. When a plan update has been recommended, pursuant to subsections (a)(1) and (2), the action taken and the recommendation made by the planning, zoning and appeals board shall be recorded on the recommended plan, together with the signature of the executive secretary of the planning, zoning and appeals board, which shall be affixed thereto as certifying to the action taken and the recommendation made and the date of such action and recommendation; and the signature of the director of the department of planning and zoning, shall be affixed as certifying that the requisite hearing or hearings were held on the dates certified. The recommended copy of the plan update, or portion thereof or plan amendment, shall be a part of the permanent and public records of the planning, zoning and appeals board.

(e) *Adoption by the city commission.* The city commission shall hold at least two advertised public hearings on the proposed plan amendment. The first public hearing upon the updated plan or portion thereof or plan amendment shall be held within 60 days from the date of the planning, zoning and appeals board public hearing, unless the plan amendment is sponsored by the city. Notice of such public hearing by the city commission shall be given as set out in subsections 62-20(1) and (4) no less than ten days in advance of the public hearing. The first public hearing shall be held for the purpose of transmitting or not transmitting the plan amendment, as recommended by the city commission to the state land planning agency, allowing for review and written comment, as identified in F.S. ch. 163, except in the cases provided below where the first public hearing shall be held for the purpose of recommending approval or modifications to the amendment for the second public hearing, or rejecting the amendment. The city commission shall hold a second public hearing pursuant to procedures established in F.S. ch. 163 for adoption. The exceptions are:

(1) Comprehensive plan amendments directly related to proposed small scale development activities as defined by F.S. § 163.3187.

(2) Any other exceptions as may be defined by state law.

The city commission, upon receipt of written comments from the state land planning agency, shall hold a second public hearing for the purpose of adopting the plan amendment, and shall take legislative action within 180 days of receipt. The city commission shall review the written comments, if any, submitted by the state land planning agency and any other person, agency or government prior to taking legislative action. In the case of the exceptions listed above, upon an affirmative vote in the first public hearing the city commission shall hold a second public hearing for the purpose of adopting the plan amendment on a date scheduled by the planning and zoning department. In both cases the second public hearing shall be held on a weekday approximately ten days after the day that the second advertisement is published.

Upon such public hearing by the city commission, the plan amendments may be adopted, adopted with modifications, or rejected. Any comprehensive plan update, or portion thereof or plan amendment or modification thereto, shall become effective only upon adoption by ordinance by the affirmative vote of not less than three members of the city commission.

The city clerk shall transmit the comprehensive plan update or portion thereof or plan amendment, as adopted, to the state land planning agency within ten days of adoption.

The effective date of the adopting ordinance shall be the expiration date of the appeal period following the issuance of a notice of intent or other approval by the state land planning agency finding the amendment in compliance.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 62-9. Periodic review of the adopted comprehensive plan.

(a) Periodically, but not less often than once in seven years or more often than once in two years, the comprehensive plan shall be reviewed, evaluated and appraised by the planning and zoning department to determine if plan amendments are necessary to reflect changes in state requirements since the last update of the comprehensive plan. The planning and zoning department will notify the state land planning agency by letter as to its determination by a date established by the state land planning agency pursuant to F.S. § 163.3191.

(b) If amendments to the comprehensive plan are determined necessary, such amendments shall be prepared and transmitted for review within one year from the due date of the evaluation and appraisal letter to the state land planning agency pursuant to F.S. § 163.3184.

(c) The city shall, at a minimum once every seven years, evaluate and, as necessary, update the comprehensive plan to reflect changes in local conditions as encouraged by F.S. § 163.3191(3) pursuant to the amendment procedures in F.S. § 163.3184.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-10. Applicability of comprehensive plans after adoption.

(a) After a comprehensive plan or element or portion thereof has been adopted in conformity with state statute, all development undertaken by and all actions taken in regard to development orders by city agencies in regard to land covered by such plan or element shall be consistent with such plan or element as adopted.

(b) All land development regulations enacted or amended shall be consistent with the adopted comprehensive plan or element or portion thereof, and any land development regulations existing at the time of adoption which are not consistent with the adopted comprehensive plan or element or portion thereof shall be amended so as to be consistent. If an existing land development regulation is inconsistent, the city commission shall adopt a schedule for bringing the land development regulation into conformity with the provisions of the most recently adopted comprehensive plan or element or portion thereof.

(c) A development order or land development regulation shall be consistent with the comprehensive plan if the land uses, densities and/or intensities, and/or other aspects of develop-

ment permitted by such order or regulation are compatible with and further the objectives, policies, land uses, and densities or intensities in the comprehensive plan and if it meets all other criteria.

(d) A development approved or undertaken by city agencies shall be consistent with the comprehensive plan if the land uses, densities or intensities, capacity or size, timing and other aspects of the development are compatible with and further the objectives, policies, land uses, and densities or intensities in the comprehensive plan and if it meets all other criteria.

(e) Whenever a comprehensive plan update for the city as a whole, or for geographical or functional classifications thereof, has been finally adopted as set out in section 62-8, then and thenceforth no public street or park, other public way, ground, place, or space, public building or public structure or activity, or quasi-public structure or activity not in conformity with the adopted comprehensive plans or portion thereof shall be constructed, altered or authorized in the city unless the location and extent thereof shall have been submitted to the planning, zoning and appeals board for a report and its statement of approval or disapproval and the reasons therefore. Within 30 days after the request for such report has been received by the planning, zoning and appeals board or within such other time limits as may be agreed upon, the report shall either be made or failure of the planning, zoning and appeals board to act shall be deemed an approval. The planning, zoning and appeals board's report under this section may be overruled by the vote of three members of the city commission. In the event of an emergency declared by the city manager, a matter in question under this section may be considered directly by the city commission without reference to the planning, zoning and appeals board.

(f) After comprehensive plans for the city or a portion of such plans corresponding generally with a geographic or functional classification of the city have been adopted in the manner herein set out, no zoning ordinance, subdivision regulation or other land use control regulation shall be adopted, repealed or amended until such question has been referred to the planning, zoning and appeals board acting as the local planning agency and local land development regulation commission, for review and recommendation to the city commission; provided that this recommendation shall be made in a reasonable time not to extend beyond two regularly scheduled meetings of the planning, zoning and appeals board, otherwise the city commission may act on adoption, and provided, however, that this provision shall not apply to those hearings required to be held by the planning, zoning and appeals board under other city ordinances.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-11. Land development regulations.

The land development regulations of the city are as follows:

(1) Subdivision regulations (chapter 55 of this Code);

(2) Zoning ordinance of the city, which regulates signage, the use of land and water, ensures compatibility of adjacent uses and provides for open space;

(3) Miami-Dade County comprehensive development master plan protects potable water well fields (reference: The Code of Miami-Dade County, Florida, as amended);

(4) Coastal management element of the Miami comprehensive neighborhood plan and by reference; the State of Florida coastal construction control line and the federal coastal construction control line and the Federal Emergency Management Agency (FEMA) flood criteria maps regulate areas subject to seasonal and periodic flooding;

(5) Stormwater element: Miami comprehensive neighborhood plan; stormwater utility, section 18-291 et seq., and the downtown development, chapter 14, article IV of this Code, providing for drainage and stormwater management;

(6) Section 3(mm) of the Charter of the City of Miami, Florida, as amended (Waterfront Charter Amendment); conservation element, Miami comprehensive neighbor-

hood plan and chapter 17, Environmental preservation of this Code ensure the protection of environmentally sensitive lands designated in the Miami comprehensive neighborhood plan;

(7) The capital improvement element, Miami comprehensive neighborhood plan; chapter 13, impact fees; and downtown development, chapter 14 article IV of this Code, provide that public facilities and services that meet or exceed the standards established in the capital improvements element of the Miami comprehensive neighborhood plan are available when needed or that permits are conditioned on the availability of these services; no development order or permit shall be issued which results in a reduction of the level of service for the affected public facility below the level of service provided in the Miami comprehensive neighborhood plan; and

(8) Chapter 2, section 2-265, off-street parking guides and standards and subsection 2-205(b)(8), parking guides and standards; chapter 14, downtown development; and section 35-121 et seq., public off-street parking of this Code and the zoning ordinance of the city provide for safe and convenient traffic flow considering needed vehicle parking.

(9) Signage is regulated in chapters 2, 10, 38, 54 and 62 of this Code and in the zoning ordinance of the city.

(10) Article XIX of this chapter, establishing policies and procedures to implement the no net loss provision for park land contained within the parks, recreation and open space element within the Miami Comprehensive Neighborhood Plan.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13321, § 3, 5-24-12; Ord. No. 14213, § 2, 10-12-23)

Sec. 62-12. Fee for inspections and examinations of plans for compliance with the provisions of the city zoning ordinance.

There is hereby established the following fee per square foot of the building to be charged at the time the application is made for the construction of a new building, change of use of building, or an addition (proportional part of land area), for the purpose of examination of the plans and site development and subsequent inspections of the building site prior to the issuance of the certificate of occupancy and subsequent thereto to assure original and continued compliance with the provisions of the city zoning ordinance:

Single-family and duplexes: $0.20 per square foot with a minimum of $100.00.

All other uses: $0.16 per square foot of the building with a minimum of $300.00.

This fee shall be in addition to the building permit fee.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13915, § 6, 9-24-20; Ord. No. 13981, § 2, 3-25-21; Ord. No. 14430, § 2, 1-8-26)

Sec. 62-13. Appropriations, fees and other expenses.

The city commission may provide appropriations for salaries, fees and expenses necessary in the conduct of the work of the boards established by this chapter and for the departments and employees necessary in the conduct of the continuing planning program. Such monies and any other sums which may be made available through fees, gifts, state or federal grants, state or federal loans or other sources shall be expended in accordance with the established budgetary and fiscal procedures and practices of the city.

(Ord. No. 13311, § 2, 2-23-12)

ARTICLE III. PLANNING, ZONING AND APPEALS BOARD

Sec. 62-14. Establishment.

There is hereby established a board, to be known as the city planning, zoning and appeals board.

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-15. Functions, powers and duties generally.

(a) The planning, zoning and appeals board is an integral part of the total process of planning for the future development and growth of the

city. The board is to serve as an instrument of advice and recommendation in all phases and aspects of the comprehensive planning program authorized by Section 38 of the City Charter. With the assistance of the planning and zoning department, the functions, duties and powers of the planning, zoning and appeals board in the city's continuous comprehensive planning program shall be, in general:

(1) To acquire and maintain such information and materials as are necessary to an understanding of past trends, present conditions and forces at work to cause changes in these conditions. Such information and material may include, but is not to be limited to, maps and photographs of manmade and natural physical features of the city, statistics on past trends and present conditions with respect to population, property values, economic base, environmental factors, land use and such other information as is important or likely to be important in determining the amount, direction and kind of development and growth to be expected and planned for the city in the future.

(2) To review and to recommend to the city commission for adoption and from time to time recommend amendments and revisions to comprehensive and coordinated general plans, or portions thereof, for meeting present requirements and such future requirements as may be foreseen.

(3) To establish principles and policies for guiding action affecting future development in the city.

(4) To prepare and recommend to the city commission ordinances, regulations and other proposals promoting orderly development along the lines indicated as necessary and desirable by the comprehensive planning program.

(5) To conduct such public hearings as may be required to gather information and public reaction necessary for the drafting, establishment, maintenance and recommendation to the city commission for adoption of comprehensive plans or portions thereof and to conduct such public hearings as may be required on ordinances, codes and regulations related to plans made and their implementation; and to establish public committees or task forces when deemed necessary for the purpose of collecting and compiling information necessary to the planning program; or for the purpose of promoting and implementing the accomplishment of comprehensive plans in whole or in part.

(6) To make or cause to be made any necessary special studies on the location, adequacy and conditions of specific facilities in the city. These may include, but are not limited to, studies on housing, commercial and industrial conditions and public facilities, recreation, public and private utilities, conservation of natural resources, roads and traffic, transportation, parking and the like.

(7) When duly authorized by ordinance, to determine whether specific proposed developments conform to the principles and requirements of the planning program.

(8) To serve as an instrument for informing the city commission, other city departments and agencies and the public of the continuing comprehensive planning program and its purposes and status.

(9) To perform such other duties in connection with the comprehensive planning program as may lawfully be assigned to it.

(10) To review and make recommendations to the city commission on all developments of regional impact, in accordance with F.S. § 380.06.

(11) To act as the local planning agency pursuant to F.S. § 163.3174 and serve as the local land development regulation commission pursuant to F.S. § 163.3194(2).

(b) All city departments and employees shall, under the direction of city manager and upon request and within a reasonable time, furnish to

the planning zoning departments such available records or information as may be required in the

work. The planning, zoning and appeals board or representatives of the planning and zoning department may, in the performance of official duties, enter upon lands and make examinations or surveys in the same manner as other authorized city agents or employees and shall have other powers as are required for the performance of official functions in carrying out the purposes and responsibilities of the planning, zoning and appeals board and the comprehensive planning program.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-16. Appointments; qualifications.

(a) Nomination. Each city commissioner shall nominate candidates to serve the terms of two members of the planning, zoning and appeals board, taking into consideration the required qualifications for membership as provided herein.

(b) Terms of office. The terms of office shall be as provided under section 2-885.

(c) Qualifications. It is intended that members and alternate members of the planning, zoning and appeals board be persons of knowledge, experience, mature judgment, and background; having ability and desire to act in the public interest; and representing, insofar as may be possible, the various special professional training, experience, and interests required to make informed and equitable decisions concerning preservation and appropriate development of the physical environment. To that end, qualifications of members and the alternate member shall be as follows:

Eleven members and one alternate shall be from the electorate of the city with demonstrated knowledge and interest in the appropriate growth and development of the city.

(d) The city commission shall appoint the board members from the nominations made by each city commissioner, for ten members of the planning, zoning and appeals board. The mayor shall appoint one member and the alternate member. Appointees shall be persons in a position to represent the public interest, and no person shall be appointed having personal or private interests likely to conflict with the public interest. No person shall be appointed who:

(1) Has any interest in the profits or emoluments of any contract, job, work, or service for the city;

(2) Holds any elective office; or

(3) Is employed in a full-time capacity by any governmental authority in the county or the city, however a person so employed may be appointed if the city commission waives this restriction by a four-fifths affirmative vote of its membership.

Before making any appointment, the city commission shall determine that the person so appointed satisfies the requirements of sections 2-611 et seq., and no person shall be confirmed for any appointment who has not filed the statement required by section 2-615. In addition, the code of ethics of Miami-Dade County shall apply to members and the alternate member of the planning, zoning and appeals board.

(e) Persons appointed shall be electors of the city and otherwise meet the requirements of chapter 2, article XI.

(f) No member or alternate member of the planning, zoning and appeals board shall be confirmed in his/her appointment until he/she signs a statement agreeing to participate in at least one seminar on planning or zoning to be held in the state or elsewhere, and approved by the city, during the course of each calendar year he/she shall remain a member or alternate member of the board. Failure to meet this requirement each and every year after assuming board membership or alternate membership may be grounds for removal.

(g) Vacancies.

(1) Vacancies in the membership or alternate membership of the planning, zoning and appeals board shall be filled by the city commission and mayor by appointment in the manner herein set out and for the unexpired term of the member or alternate member affected, provided the city commission may appoint an alternate member

of the planning, zoning and appeals board to a vacancy as a full member of the board without resort to the procedural requirements of subsection (a).

(2) The executive secretary of the planning, zoning and appeals board shall notify the city clerk within ten days after a vacancy occurs, and the city clerk shall promptly transmit such information to the city commission for appropriate commission action as set out herein.

(h) Reserved.

(i) Removal. Members and alternate members of the planning, zoning and appeals board are removed if replaced by another member pursuant to this applicable sections of this section 62-16.

(j) Educational component. The city commission shall make provision for the payment of actual and necessary expenses, in accordance with city policy, for the attendance of each member and alternate member of the board at one local city-authorized planning or zoning seminar or conference each calendar year. The city manager, city attorney and city clerk shall coordinate and present or cause to be presented said seminar or conference and make such course available at least annually.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13340, § 1, 9-27-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13763, § 2, 4-12-18; Ord. No. 14130, § 2, 1-12-23)

Sec. 62-17. Proceedings of planning, zoning and appeals board.

(a) Officers and voting. The planning, zoning and appeals board shall select a chairperson and vice-chairperson from among its members and may create and fill such other offices as it may determine. All members, or the alternate member sitting in the place of a member, shall be required to vote on matters before the planning, zoning and appeals board, subject to the provisions of subsections (g) and (h) and applicable state statutes. The planning and zoning director shall attend all meetings of the board. The hearing boards section of the planning and zoning department, or its successor, shall be the executive secretary of the planning, zoning and appeals board.

(b) Rules of procedure. The planning, zoning and appeals board shall establish rules of procedure necessary to its governing and the conduct of its affairs, in keeping with the applicable provisions of state law, and the City Charter, ordinances and resolutions. Such rules of procedure shall be available in written form to persons appearing before the board and to the public upon request. Quasi-judicial procedures as provided in the zoning ordinance and as required by state law shall apply to its decisions and recommendations, including rezoning; special area plans; exceptions; variances; and appeal decisions by the board.

(c) Meetings. The planning, zoning and appeals board shall hold at least two regularly scheduled meetings each month, except the month of August, on days to be determined by the board. Other regularly scheduled meetings may be set by the board, and additional meetings may be held at the call of the chairperson and at such other times as the board may determine. Meetings that are not regularly scheduled shall not be held without at least ten days written notice to each member and the alternate member, provided that upon concurrence of the chairperson of the planning, zoning and appeals board and the city manager, an emergency meeting may be called at any time and with appropriate notice.

(d) Quorum; public records. Quorum requirements are governed by the provisions of section 2-887. However, no action to recommend adoption of amendments to the city comprehensive plan, or to recommend the amendment of the text of the Miami 21 Code, rezoning, or special area plan, or to approve an exception shall be taken without the concurring votes of a supermajority of board members present. Said supermajority consists of one more member than a simple majority. The executive secretary of the planning, zoning and appeals board shall keep minutes of board proceedings, showing the vote of each member or alternate member, if sitting for a member, or if absent or failing to vote under subsections (e) and (f), indicating such fact. It

shall be the responsibility of the executive secretary of the planning, zoning and appeals board to handle all procedural activities for all public hearings held by the board, including the preparation of minutes and official records of such hearings. The official records of such public hearings shall be filed with the city clerk.

(e) Status of alternate member. In the temporary absence or disability of a member, or in an instance where a member is otherwise disqualified to sit on a particular matter, the chairperson of the planning, zoning and appeals board, or the vice-chairperson in his/her absence, shall designate the alternate member to sit as a board member to obtain a full membership of 11 or, as nearly as possible, a full membership. When so acting, the alternate member shall have full rights of participation and voting as members; his/her vote shall be deemed that of a member in reaching a decision on a matter. In instances where the alternate member is not sitting as a member, he/she shall have the right to participate in board discussions and to ask questions, but he/she shall have no right to vote or make motions. Where the alternate member has been duly designated to sit as a member on a particular matter and consideration of that matter has begun, the alternate member shall continue to sit as a board member through disposition of the matter; and he/she shall not be replaced, should the member who was absent or unable to participate later be present.

(f) Disqualification of members or alternate. If any member of the planning, zoning and appeals board or the alternate member called on to sit in a particular matter shall find that his/her private or personal interests are involved in the matter coming before the board, he/she shall, prior to the opening of the hearing on the matter, disqualify himself/herself from all participation of whatsoever nature in the cause. Alternatively, he/she may be disqualified by the votes of not less than six members of the board, not including the member or alternate member about whom the question of disqualification has been raised. No member or alternate member of the planning, zoning and appeals board may appear before the city commission or planning, zoning and appeals board as agent or attorney for any other person.

(g) All city departments and employees shall, under the direction of city manager and upon request and within a reasonable time, furnish to the planning and zoning department such available records or information as may be required in the work of the planning, zoning and appeals board. The city manager shall assign a member of the resilience and public works department, planning and zoning department, neighborhood enhancement team, the code enforcement department and fire-rescue department, or their successors, to attend public hearings of the planning, zoning and appeals board and to advise the planning, zoning and appeals board when necessary, and to furnish information, reports and recommendations upon their request. The city attorney shall attend public hearings of the planning, zoning and appeals board to advise the board when necessary and to furnish information, reports and recommendations upon their request.

(h) The planning, zoning and appeals board or representative of the planning and zoning department may, in the performance of official duties, enter upon lands and make examinations or surveys in the same manner as other authorized city agents or employees and shall have other powers as are required for the performance of official functions in carrying out the purposes and responsibilities of the board.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 62-18. Powers and duties generally.

In furtherance of its quasi-judicial functions under section 62-15, the planning, zoning and appeals board shall have the following powers and duties:

(1) *Exceptions.* To grant exceptions with appropriate conditions and safeguards or to deny exceptions when not in harmony with the purpose and intent of the zoning ordinance of the city.

(2) *Variance.* To authorize upon application of such variance from the terms of the

zoning ordinance of the city as will not be contrary to the public interest where, owing to special conditions, a literal enforcement of the provisions of the zoning ordinance of the city would result in unnecessary and undue hardship.

(3) *Rescission.* The planning, zoning and appeals board, after public hearing, may rescind, modify or change any resolution heretofore or hereafter adopted granting a special permit, exception or variance, if, upon application filed at any time, after the granting of special permit, exception or variance, the planning and zoning director finds that there has been a violation of any conditions, restrictions or limitations in the subject resolution; provided, such a public hearing shall not be held until published notice (per section 62-20) has first been given; provided further, if the director, upon written request of any aggrieved party, refuses or fails to make such an application, such aggrieved party may request the city commission, through the city manager, to instruct the director to do so. Such decision of the planning, zoning and appeals board shall be final unless an appeal is instituted to the city commission within the time, and as prescribed for other appeals thereto.

(4) *Other matters.* To authorize and approve such other matters as shall be brought before the board pursuant to the zoning ordinance, City Charter and this Code.

(Ord. No. 13311, § 2, 2-23-12)

ARTICLE IV. NOTICE GENERALLY

Sec. 62-19. Public notice—Generally.

Where public notice is required, the type and the manner of public notice to be given shall be as set out in the zoning ordinance or section of the ordinance for the matter involved and as set out in section 62-20.

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-20. Same—Types.

The requirements for the types of public notice are as follows:

(1) *Newspaper publication.*

a. Publication of public notice in a newspaper shall consist of publication in a newspaper of general paid circulation in the municipality and of general interest and readership in the community, not one of limited subject matter. Such publications shall be made not less than ten days in advance of the public hearing. The applicant shall be charged the appropriate fee for the advertisement for the specific property seeking action by the planning, zoning and appeals board and the city commission.

b. When the publication of public notice pertains to comprehensive plan update or portion thereof or plan amendment, the advertisement shall state the date, time and place of the meeting, the subject of the meeting, and the place or places within city boundaries where the proposed amendment may be inspected by the public. The advertisement shall also advise interested parties that they may appear at the meeting and be heard regarding the transmittal or adoption of the comprehensive plan update or portion thereof or plan amendment.

c. Except for the planning, zoning and appeals board hearings, if the proposed comprehensive plan update or portion thereof or plan amendment changes the existing permitted land uses or changes land-use categories, the required advertisements shall be no less than one-quarter page in a standard size or a tabloid size newspaper, and the headline in the advertisement shall be in a type no smaller than 18 point. The advertisement shall not

be placed in that portion of the newspaper where legal notices and classified advertisements appear. The advertisement shall be published in a newspaper pursuant to this section.

d. The advertisement shall be in substantially the following form:

NOTICE OF CHANGE OF LAND USE

The City of Miami purposes to change the use of land within the area shown in the map in this advertisement.

A public hearing on the proposal will be held on _____ (date and time) at _____ (meeting place)..."

e. The advertisement shall contain a geographic location map which clearly indicates the area covered by the proposal. The map shall include major street names as a means of identification of the area.

(2) *Posting.* Posting is not required when the city, or its designee, initiates (a) a comprehensive plan or zoning ordinance encompassing the entire city or (b) a comprehensive plan amendment, change of plan designation, zoning ordinance amendment or change of zoning classification of private property which deals with more than five percent of the total land area of the city.

a. Where posting of a property is required, it shall be done at least ten days in advance of the hearing and shall consist of a sign to be posted on the land which shall measure at least three square feet in area, shall be of a color distinguishable from the surrounding landscape, and shall contain substantially the following language:

"A PUBLIC HEARING CONCERNING THE _____ OF THIS PROPERTY FROM _____ TO _____ WILL BE HELD BY THE (CITY COMMISSION, THE PLANNING, ZONING AND APPEALS BOARD, OR THE HISTORIC AND ENVIRONMENTAL PRESERVATION BOARD) OF THE CITY OF MIAMI. CALL (phone number) FOR INFORMATION."

or

"A PUBLIC HEARING INVOLVING A VARIANCE ON THIS PROPERTY TO (short statement of nature of variance requested) WILL BE HELD BY THE (CITY COMMISSION OR THE PLANNING, ZONING AND APPEALS BOARD) OF THE CITY OF MIAMI. CALL (phone number) FOR INFORMATION."

or

"A PUBLIC HEARING INVOLVING AN EXCEPTION ON THIS PROPERTY FOR THE PURPOSE OF (short statement of nature of request) WILL BE HELD BY THE (CITY COMMISSION OR THE PLANNING, ZONING AND APPEALS BOARD) OF THE CITY OF MIAMI. CALL (phone number) FOR INFORMATION."

or

"A PUBLIC HEARING INVOLVING THE APPEAL OF A ON THIS PROPERTY FOR THE PURPOSE OF (short statement of nature of request) WILL BE HELD BY THE (CITY COMMISSION OR THE PLANNING, ZONING AND APPEALS BOARD) THE CITY OF MIAMI. CALL (phone number) FOR INFORMATION."

b. The sign shall be erected in full view of the public on each street side of such land. Where large parcels of property are involved with street frontages extending over considerable distances, as many

signs shall be erected on a street frontage as may be deemed adequate to inform the public.

c. It shall be a misdemeanor in the second degree, punishable pursuant to F.S. §§ 775.082 and 775.083 for any unauthorized person to tamper with or remove the signs posted pursuant to this section.

(3) *Mail notice.*

a. Mail notice is required for all public hearing items to be considered by the planning, zoning and appeals board or the city commission, as the case may be.

b. Mail notice communicating the date, time, and place of the public hearing by the planning, zoning and appeals board or city commission, as the case may be, shall be mailed at least ten days in advance of the hearing to:

1. The owner(s) of the subject property or his/her designated agent or attorney, if any;

2. The appellant, if the hearing is an appeal;

3. The persons and organizations registered with the city manager's office, or the designated department, as regularly updated. Appeals shall be exempt; and

4. All owners of property within 300 feet of the property lines of the land for which the hearing is being held. In the case of condominiums, only one notice will be sent to the condominium association. Appeals shall be exempt.

For the purpose of the requirement for mail notice to the property owners within 300 feet of the property lines of the land for which the hearing is being held, the names and addresses of the property owners shall be deemed those appearing on the latest tax rolls listed with the Miami-Dade County Tax Collector at the time the application is accepted, as shown on the City of Miami's Planning Department's Zoning Interactive Mapping Tool ("GIS") or its succeeding software. City of Miami staff shall affirm that mail notice was given to the persons required under this section. The affirmation shall be conclusive of the giving of the mail notice.

No action taken by the planning, zoning and appeals board, or the city commission, as the case may be, shall be voided by the failure of an individual property owner to receive such notice.

c. Mail notice shall not be required when the city, or its designee, initiates (1) a comprehensive plan amendment or zoning ordinance encompassing the entire city, or (2) a comprehensive plan amendment, change of plan designation, zoning ordinance amendment, or change of zoning classification of private property which deals with more than five percent of the city.

d. The applicant, or appellant as applicable, shall be charged the appropriate fee for the mailing for public hearing applications and appeals, as per the fee schedule adopted by the city commission.

e. While the city will make an effort to provide, mail notice shall not be required during a declared local state of emergency, unless otherwise required by state law.

(4) *Electronic notifications.* Electronic notifications shall be provided as a courtesy.

a. Courtesy notice shall mean any electronic method of communica-

tion through a digital platform implemented or procured by the city to provide notice.

b. The platform through which electronic notifications will be provided will be approved by the city manager, or his/her authorized designee, and the procurement department where applicable.

(5) *Additional notice.* Additional notifications may be required by either the planning, zoning and appeals board or the city commission, as the case may be. Additional notice shall be charged to the applicant, or the appellant, as applicable, as may be deemed proper for the circumstances involved for the particular hearing, but such additional notice shall not be deemed as legally required. Where such additional notice is given, failure of an individual property owner or groups of property owners or residents to receive or be aware of such notice shall not void any action taken by planning, zoning and appeals board, or the city commission, as the case may be.

(6) *Administrative notice.* Administrative notice may be required by the Miami 21 Code, the planning director, or the zoning administrator, as applicable, for special permits. An applicant, or appellant as applicable, may be directed to provide mail notice to all abutting property owners of the subject property, including across a street or alley, by mail. In the case of condominiums, only one notice will be sent to the condominium association. Issuance of a special permit will not be precluded by reason of the failure of an adjacent property owner to receive an administrative notice.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 14339, § 2, 12-12-24)

ARTICLE V. COVENANTS AND AGREEMENTS BEFORE THE PLANNING, ZONING AND APPEALS BOARD

Sec. 62-21. Covenants/agreements proffered by applicants.

The planning, zoning and appeals board is authorized to entertain voluntary covenants/agreements proffered by applicants. However, notwithstanding the foregoing, no applicant or applicant's representative seeking a recommendation for approval of a permit, zoning change, or approval of a future land use plan ("FLUM") amendment to the comprehensive plan shall be permitted to argue or represent to the planning, zoning and appeals board that the property which is the subject of the application will be put to a specific use or uses or to exclude a use or uses authorized by the proposed land use designation, unless the applicant has submitted a restrictive covenant committing to such representation which has been submitted to and approved by the planning and zoning department and has received approval as to legal form by the office of the city attorney prior to consideration by planning, zoning and appeals board. The planning, zoning and appeals board may recommend approval of such covenant/agreement to the city commission relative to its recommendation of the application. The applicant shall be bound to the terms of the covenant and shall record it in the public records after final acceptance by the city.

(Ord. No. 13311, § 2, 2-23-12)

ARTICLE VI. ZONING AND PLANNING FEES

Sec. 62-22. Schedule of fees.

(a) All fees are non-refundable and shall not be waived, unless otherwise provided in this chapter. All fees are due as indicated at all times.

(b) Fee caps.

(1) The maximum application fee to be charged any governmental agency other than the city for any public hearing shall be $1,000.00 per hearing.

(2) The maximum application fee to be charged any religious institution or any institution of an eleemosynary character for any change of zoning or variance public hearing shall be $1,000.00 per hearing; any institution so applying shall submit a copy of a recent affirmation letter from the Internal Revenue Service as well as a copy of its articles of incorporation to the director of the planning department or his/her authorized designee(s) for review prior to acceptance of the application.

(c) Hardship waivers for administrative permits and covenants for residential structures.

(1) The hardship waiver for administrative permits and covenants for residential structures waives the requirement to pay the following fees: pre-application meeting fees, administrative application fees, and covenant application fees.

(2) To be eligible for a hardship waiver, an applicant must be the owner-occupant of the residential structure to be improved with the administrative permit or to be subject to the covenant being applied for. As the owner-occupant, the applicant has a current homestead Exemption as defined by F.S. (2020) § 196.031, verifiable by Miami-Dade County Property Appraiser records.

(d) All fees shall be paid in accordance with the city's finance department's procedures.

(e) All applicants, persons, or organizations requesting a public hearing on any other item shall pay the advertisement fee and the notice fee pursuant to section 62-22.

(f) Pre-application.

(1) All fees for pre-application meetings shall be invoiced and collected by the planning department or the office of zoning, as applicable, from the applicant before any work is initiated by city staff.

(2) Fifty percent of the pre-application fees will be credited towards the application fee if applied for within the required timeline, if applicable, or within 90 days. After 90 days, a new pre-application meeting must be conducted and new fees must be paid.

(3) Fees shall be set by the city commission, by resolution, which may be amended from time to time. A certified copy of the resolution setting forth current permit fees shall be on file with the city clerk and the director of planning and the director of zoning. An updated fee schedule shall be maintained electronically and can be accessed at the city's website.

(g) Administrative permit.

(1) All administrative permit fees shall be invoiced and collected by the planning department or the office of zoning, as applicable, from the applicant before any work is initiated by city staff, unless exempted by subsection (c).

(2) Fees shall be set by the city commission, by resolution, which may be amended from time to time. A certified copy of the resolution setting forth current permit fees shall be on file with the city clerk and the director of planning and the director of zoning. An updated fee schedule shall be maintained electronically and can be accessed at the city's website.

(h) Staff review.

(1) All fees in staff review shall be invoiced and collected by the planning department or the office of zoning, as applicable, from the applicant before any work is initiated by city staff.

(2) Non-refundable plan review fees in accordance with this chapter shall be paid upon completion of reviews and prior to issuance of any permits. In the case of an applicant cancelling an application or the city cancelling an application due to the applicant becoming non-responsive and ultimately abandoning a permit application after plan reviews are completed, fees will be not be refundable.

(3) Projects not approved after the sixth review shall be terminated with no refund of fees.

(4) Reserved.

(5) Fees shall be set by the city commission, by resolution, which may be amended from time to time. A certified copy of the resolution setting forth current permit fees shall be on file with the city clerk and the director of planning and the director of zoning. An updated fee schedule shall be maintained electronically and can be accessed at the city's website.

(i) Covenants (also includes releases, modifications, unities of title, covenants in lieu of unity of title, and similar documents).

(1) All fees in staff review of covenants shall be invoiced and collected by the planning department or the office of zoning, as applicable, from the applicant before any work is initiated by city staff.

(2) Fees shall be set by the city commission, by resolution, which may be amended from time to time. A certified copy of the resolution setting forth current permit fees shall be on file with the city clerk and the director of planning and the director of zoning. An updated fee schedule shall be maintained electronically and can be accessed at the city's website.

(j) Other services. Fees for various services provided by the planning department and office of zoning shall be set by the city commission, by resolution, which may be amended from time to time. A certified copy of the resolution setting forth current permit fees shall be on file with the city clerk and the director of planning and the director of zoning. An updated fee schedule shall be maintained electronically and can be accessed at the city's website.

(k) (1) Application requiring public hearing.

a. No less than 50 percent of public hearing fees shall be invoiced and collected by the planning department or office of zoning, as applicable, from the applicant at the time of pre-application submittal. This fee shall not be refunded once payment has been remitted to the city.

b. The remaining balance due for a submission requiring public hearing shall be invoiced and collected by hearing boards from the applicant no later than ten business days from the date on which the application was referred to hearing boards with the appropriate stamp from the electronic plans review system. This fee shall not be refunded once payment has been remitted to the city.

c. Applicants who have not remitted all of the public hearing fees invoiced by hearing boards within 180 days from the date on which the application was batch-stamped in the electronic plans review system (or successor system) and referred to hearing boards shall have their application terminated and closed. Applicants who wish to have their projects reconsidered after an application has been terminated must submit new applications and pay all applicable fees for those new applications.

(2) Fees shall be set by the city commission, by resolution, which may be amended from time to time. A certified copy of the resolution setting forth current permit fees shall be on file with the city clerk and the director of planning and the director of zoning. An updated fee schedule shall be maintained electronically and can be accessed at the city's website.

(l) Noticing, advertising, property posting fees for public hearings.

(1) One hundred percent of application fees shall be invoiced and collected by hearing boards from the applicant no later than ten business days from the date on which the application was referred by the planning department or office of zoning, as applicable, to hearing boards.

(2) Applicants who have not remitted 100 percent of noticing, advertising, and property posting fees within 135 days from the date on which the application was referred to hearing boards shall have their application terminated and closed on the 136th day.

(3) Public hearing mail notice, newspaper advertising, and property posting fees must be paid before being scheduled on an agenda.

(4) For every instance in which a decision-making body indefinitely defers an item at the request of an applicant, whether solely or jointly, the applicant shall bear the cost of all noticing, advertising, and posting of properties, as applicable.

(5) For every instance in which a decision-making body makes a motion initiated by the city, at the request of one of its members or the city administration, to indefinitely defer an item, the clerk to the board shall read the following fiscal impact statement on the record before the board decision-making body takes its vote: "Pursuant to Section 62-22 of the City Code, an indefinite deferral on this item will cost the City mail noticing, advertising, and posting of properties, as applicable."

(6) Fees shall be set by the city commission, by resolution, which may be amended from time to time. A certified copy of the resolution setting forth current permit fees shall be on file with the city clerk and the director of planning and the director of zoning. An updated fee schedule shall be maintained electronically and can be accessed at the city's website.

(m) Permits shall not be issued for a property with any outstanding code compliance violations, building violations, or any relevant city lien or invoice due and owing to the city. Permits required to cure life safety issues, permits which are required to bring outstanding violations into compliance, or permits for any properties owned by a governmental entity are exempted from this prohibition.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13798, § 5, 10-25-18; Ord. No. 13872, § 2, 11-21-19; Ord. No. 13915, § 6, 9-24-20; Ord. No. 13927, § 2, 10-8-20; Ord. No. 13981, § 3, 3-25-21; Ord. No. 14120, § 2, 11-17-22; Ord. No. 14139, § 3, 2-9-23; Ord. No. 14337, § 2, 12-12-24)

City Code cross references—Zoning certificate of use; fees for inspection and issuance of certificates, § 2-207; fees for inspection and examination of plans for compliance with zoning ordinance, § 2-208.

Sec. 62-23. Request for review and appeal.

(a) The city commission may initiate a request for review and such request shall be initiated only by duly adopted resolution of the commission.

(b) Fees, plus advertisement fee and notice fee shall be paid by the applicant or appellant, as applicable, prior to the item being rescheduled.

(c) Fees shall be set by the city commission, by resolution, which may be amended from time to time. A certified copy of the resolution setting forth current permit fees shall be on file with the city clerk and the director of planning and the director of zoning. An updated fee schedule shall be maintained electronically and can be accessed at the city's website.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13717, § 2, 12-14-17; Ord. No. 13927, § 2, 10-8-20; Ord. No. 14120, § 2, 11-17-22; Ord. No. 14337, § 2, 12-12-24)

Sec. 62-24. Fee payment deferred.

Notwithstanding any provisions to the contrary contained in this Code or the zoning ordinance relative to development activity in a redevelopment district duly designated as such by the city commission pursuant to the Community Redevelopment Act of 1969, as set forth in F.S. ch. 163, except for the cost of required advertising, notices and postings, special area plan fees (including constituent elements of said process such as rezonings, variances, exceptions, warrants and waivers and special permits) may be partially deferred for any amount above the minimum application fee as specified in article VI, section 62-156, until such time as the initial building permit for the subject property is requested or for a period of one year from the approval of the applicable process, whichever

occurs first. In order for said fees to be deferred, the subject property owner(s) shall provide the city with a recordable document acceptable to the city attorney, evidencing said financial obligation and placing a lien on the subject property for the amount of such deferred fees, said document shall be recorded at the permittee's expense immediately upon issuance of the approval of the applicable process by the city commission.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-25. Waiver and refund of fees.

(a) *Waiver of fees.* The fees required under this chapter may be waived by the director of planning or the zoning administrator, as applicable, for entities and agencies of the city.

(b) *Refund of fees.* Application, appeal, advertising, and noticing fees authorized by section 62-22 and section 62-23 shall not be refunded once remitted to the city.

(c) *Invoicing errors.* In the event that the planning department or office of zoning issues an invoice that includes errors of calculation or itemization, an adjustment of fees paid shall be permitted with the authorization of the planning director. The city's finance director shall make payment to the payee within 30 days of the planning director's authorization.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13927, § 2, 10-8-20; Ord. No. 14120, § 2, 11-17-22)

Editor's note—Ord. No. 13927, § 2, adopted October 8, 2020, changed the title of section 62-25 from "Waiver of fees" to "Waiver and refund of fees." The historical notation has been preserved for reference purposes.

ARTICLE VII. HISTORIC AND ENVIRONMENTAL PRESERVATION BOARD*

Sec. 62-26. Establishment.

There is hereby established a board, to be known as the city historic and environmental preservation board, for the purpose of carrying out the provisions of chapters 17 and 23 of the City Code and article 7 Ordinance 13114, Miami 21, the zoning ordinance of the city, as amended.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-27. Membership.

(a) *Composition; appointment.* The historic and environmental preservation board (hereinafter referred to as the "board") shall consist of nine members and one alternate member, to be appointed by the city commission.

(b) *Qualifications; conflicts of interest.* All members of the board shall be from the electorate of the city. No member shall have a conflict of interest relative to any matter or application before the board as defined by F.S. ch. 112, pt. III, entitled "Code of Ethics for Public Officers and Employees," or Section 2-11.1 of the Miami-Dade County Code, entitled "Miami-Dade County Conflict of Interest and Code of Ethics Ordinance," or chapter 2, article V, sections 2-611—2-619, Miami Code, entitled "Conflicts of Interest," as amended. No member shall have a voting conflict of interest under F.S. § 286.012, as amended. Members of the board shall not be transacting business with the city. It is intended that members and alternate members of the board established by this article be persons of knowledge, experience, mature judgment, and background, having ability and desire to act in the public interest and representing, insofar as may be possible, the various special professional training, experience, and interests required to make informed and equitable decisions concerning preservation and protection of the physical environment. To that end, qualifications of members and alternate members shall be as follows:

(1) One member shall be an architect who is or has been registered in the state.

(2) One member shall be a landscape architect who is or has been registered in the state.

(3) One member shall be a historian or architectural historian qualified by means of education or experience and having demonstrated knowledge and interest in county history or architectural history.

*__City Code cross references—__Environmental preservation, ch. 17; historic and environmental preservation board, § 17-29; preservation officer, § 17-30; historic preservation, ch. 23.

(4) One member shall be an architect or architectural historian having demonstrated knowledge and experience in architectural restoration and historic preservation.

(5) One member shall be an experienced real estate broker who is or has been licensed by the state.

(6) One member shall be a person experienced in the field of business and finance or law.

(7) Three members shall be citizens with demonstrated knowledge and interest in the historic and architectural heritage of the city and/or conservation of the natural environment, and may also qualify under any of the above categories.

(8) One alternate member shall qualify under one of the above categories.

(c) *Procedure for appointment.* No appointment shall be made by the city commission to membership on the board until the city clerk shall have given notice of the vacancy in a newspaper of general circulation in the city at least 30 days prior to the making of an appointment, and the city commission shall have solicited and encouraged public, professional, and citizen organizations having interest in and knowledge of the purpose and intent of the board to submit names of persons and their qualifications as prospective appointees to the board. At least five days prior to the making of any appointment, the city clerk shall publicly make announcement that the list of names submitted, together with a short statement of the qualifications of each person, is prepared and available for public inspection and consideration. In addition, the city clerk shall, at least five days prior to the making of any appointment, publicly make announcement that the names and qualifications of prospective nominees submitted by members of the city commission are available for public inspection and consideration. No person shall be appointed to membership or alternate membership on the board whose name and qualifications have not been made publicly available in the manner set out. In reaching a decision on any appointment, the city commission shall give due consideration to the qualifications thus submitted.

(d) *Terms of office.* Members and alternate members of the board shall be appointed for one-year terms or until the nominating commissioner leaves office, whichever occurs first. Members and alternate members may be reappointed to consecutive terms, subject to the procedures set forth in subsection (c) above.

(e) *Vacancies.* Vacancies in membership or alternate membership of the board shall be filled by the city commission in the manner set forth in subsection (c) above, and shall be only for the unexpired term of the member or alternate member affected.

(f) *Removal.* Members and alternate members of the board may be removed with or without cause by vote of not less than three members of the city commission; however, any member or alternate member of the board who fails to comply with the attendance requirements contained in section 2-886 of this Code shall be automatically removed in the manner prescribed under section 2-889 of this Code. Following said removal, the city commission shall fill the vacancy pursuant to subsection (e) above.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13777, § 3, 7-26-18)

Sec. 62-28. Functions, powers and duties, generally.

In addition to such other powers, duties, and authority as may be set forth elsewhere in this Code and in the zoning ordinance, the board is hereby authorized to:

(1) Maintain and update files from the county historic survey within the city for the purpose of identifying and preserving those properties and neighborhoods of special historic, aesthetic, architectural, archeological, paleontological, cultural, social, or political value or interest. It shall endeavor to improve and expand the survey with additional sites, documentary information, oral histories, and other such materials as may become available; and to periodically reevaluate

the survey to determine whether changing times and values warrant recognition of new or different areas of significance.

(2) Serve as a quasijudicial instrument to designate historic sites, historic resources, historic districts, and archeological zones pursuant to chapter 23 of the City Code.

(3) Serve as a quasijudicial instrument to approve or deny certificates of appropriateness pursuant to chapter 23 of the City Code and article 7 of the zoning ordinance.

(4) Serve as a quasijudicial instrument to approve or deny certificates of approval pursuant to chapter 17 of the City Code.

(5) Recommend to the city commission, in reference to specific properties or general programs, the use of preservation incentives such as, but not limited to, transfer of development rights, facade easements, financial assistance, public acquisition, building code amendments, and special zoning regulations.

(6) Maintain a record of unique environmentally significant lands or sites within the city.

(7) Increase public awareness of the value of historic and environmental preservation by developing and participating in public information programs.

(8) Make recommendations to the city commission concerning the utilization of grants from federal and state agencies or private groups and individuals, and utilization of city funds to promote the preservation of environmentally, historically, and aesthetically significant properties and neighborhoods.

(9) Promulgate standards for architectural review in addition to those general standards contained in chapter 23 of the City Code.

(10) Evaluate and comment upon decisions of other public agencies affecting the physical development and appearance of environmentally, historically, and aesthetically significant properties and neighborhoods.

(11) Contact public and private organizations and individuals and endeavor to arrange intervening agreements to ensure preservation of environmentally, historically, or aesthetically significant properties for which demolition is proposed.

(12) Promote and encourage communication and exchange of ideas and information between the board and owners of historically and environmentally significant properties, potential developers, public officials, financial institutions, etc.

(13) In the name of the city and with the consent of the city commission, apply for, solicit, receive, or expend any federal, state, or private grant, gift, or bequest of any funding, property, or interest in property in furtherance of the purposes of historic and environmental preservation.

(14) Approve historic markers and issue recognition to historic properties within the city.

(15) Adopt and amend rules of procedure.

(16) Advise the city commission on all matters related to the use, administration, and maintenance of city-owned historic properties and environmental preservation districts.

(17) Any other function which may be designated by ordinance, resolution or motion of the city commission.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13777, § 3, 7-26-18)

Sec. 62-29. Proceedings.

(a) *Officers.* The board shall select a chairperson and vice-chairperson from among its members to serve for a one-year term and may create and fill such other offices as it may deem necessary or desirable.

(b) *Rules of procedure.* The board shall establish rules of procedure necessary to its governing and the conduct of its affairs, in keeping with the applicable provisions of the City Charter, ordinances, and resolutions. Such rules of procedure shall be available in written form to persons appearing before the board and to the public upon request.

(c) *Meetings.* The board shall meet at least once per month, except August, with all meetings open to the public.

(d) *Quorum; voting.* Four members shall constitute a quorum. All decisions of the board shall require a concurring vote of a majority of the members present; however, all actions on designations pursuant to chapter 23 of the City Code shall require a concurring vote of at least five members of the board, and tie votes shall be construed as a denial of the subject motion.

(e) *Status of alternate member.* In the temporary absence or disability of a member, or in an instance where a member is otherwise disqualified to sit on a particular matter, the chairperson of the board, or the vice-chairperson in his/her absence, shall designate the alternate member to sit as a board member to obtain a full membership of nine or, as nearly as possible, a full membership. When so acting, the alternate member shall have full rights of participation and voting as members, and his/her vote shall be deemed that of a member in reaching a decision on a matter. In instances where the alternate member is not sitting as a member, he/she shall have the right to participate in board discussions and to ask questions, but he/she shall have no right to vote or make motions. Where the alternate member has been duly designated to sit as a member on a particular matter and consideration of that matter has begun, the alternate shall continue to sit as a board member through disposition of the matter, and he/she shall not be replaced should the member in whose stead he/she is sitting later be present.

(f) *Disqualification of members or alternate member.* If any member of the board or the alternate member called on to sit in a particular matter shall find that his/her private or personal interests are involved in the matter coming before the board, he/she shall, prior to the opening of the discussion on the matter, disqualify himself/herself from all participation of whatsoever nature in the cause; or he/she may be disqualified by the votes of not less than a majority of total membership of the board, not including the member or alternate member about whom the question of disqualification has been raised.

(g) *Assignment of personnel.* The city manager shall assign adequate staff for the board to carry out its responsibilities and duties, including but limited to, representatives from the departments of planning and zoning and law.

(h) *Public record.* Minutes of each board meeting shall be prepared by staff representatives assigned by the city manager, under the supervision and direction of the board. Copies of the minutes and all certificates issued by the board shall be filed with the planning and zoning department.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 62-30. Compensation.

Members and alternate members of the board shall serve without compensation, but shall be reimbursed for expenses necessarily incurred in the performance of their duties, subject to the prior approval of the director of the planning and zoning department.

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-31. Preservation officer.

The city manager shall appoint a person from the planning and zoning department to serve as preservation officer to assist the board. The appointee shall be experienced and knowledgeable in respect to architectural history, urban design, local history, landscape materials, site planning, and land use control regulations. In addition to such duties as may be set forth in chapters 17 and 23 of the City Code and article 7 of the zoning ordinance, the preservation officer shall:

(1) Schedule meetings of the board, prepare agendas, and ensure that proper notice is carried out by persons or departments assigned to such duties.

(2) Provide applicable advice, standards, guidelines, and procedures to prospective applicants for certificates of appropriateness in historic sites, historic districts, and archeological zones and for certificates of approval in environmental preservation districts.

(3) Upon receipt of a complete application for a certificate of appropriateness or certificate of approval, review such application, which may include a field check of the site and referral to other departments or agencies as necessary, to determine any adverse effect upon the public welfare; and approve or deny standard certificates of appropriateness and standard certificates of approval.

(4) Provide recommendations to the board on all proposed designations, special certificates of appropriateness, and special certificates of approval, as well as any other item requested by the board.

(5) Prepare summary reports of all decisions on special certificates of appropriateness and special certificates of approval, including criteria and conditions for approval or denial.

(6) Issue all approved certificates of appropriateness and certificates of approval.

(7) Review and approve all final development plans for historic sites, historic districts, archeological zones, and environmental preservation districts for compliance with terms and conditions of applicable certificates of appropriateness or certificates of approval, prior to issuance of any building permit.

(8) Maintain and update the "Official Historic and Environmental Preservation Atlas of the City of Miami, Florida" delineating historic sites, historic districts, archeological zones, and environmental preservation districts.

(9) Work with other departments, public agencies, and private groups as required to provide a continuing effort to protect and preserve significant elements of the man-made and the natural environment through public education and encouragement of sound preservation policies.

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-32. Schedule of fees.

(a) Public notice.

(1) Notice fees as set forth in subsection 62-22(l).

(2) Advertising fee for applications for homesteaded properties within T3 transects $0.00

(3) Advertising fee for applications within T4 transects or higher as set forth in subsection 62-22(l).

(b) All after-the-fact permits assessed at double normal rates.

(c) Standard certificate of appropriateness (COA) 0.00

(d) Special certificate of appropriateness (SCOA):

(1) Demolition 500.00

(2) New construction/relocation.

a. Single-family and duplex 200.00

b. Other and commercial 300.00

c. Plus $0.05 per square foot.

(3) Modifications.

a. Single-family and duplex 150.00

b. Other and commercial 250.00

c. Plus $0.05 per square foot.

(4) Waivers, exceptions, and exclusions.

a. Single-family and duplex 200.00

b. Other and commercial 300.00

c. Plus 65 percent of typical fee for permits otherwise requiring planning, zoning, and appeals board approval.

(e) Certificates of approval (CEA).

(1) Single-family and duplex... 75.00

(2) Other and commercial 150.00

(f) Special certificates of approval (SCEA).

(1) Single-family and duplex... 150.00

(2) Other and commercial 250.00

(g) Certificate to dig (CTD).

(1) Single-family and duplex... 75.00

(2) Other and commercial 150.00

(h) Archaeological monitoring.

First hour 100.00

Each additional hour 50.00

(1) Archaeological field work and excavation.

First hour 150.00

Each additional hour 65.00

(i) Special certificate to dig.

(1) Single-family and duplex... 150.00

(2) Other and commercial 250.00

(j) Time extensions.

(1) SCOA and COA: Max 12-month extension..... 75.00

(2) SCEA and CEA: Max 12-month extension..... 75.00

(3) SCTD and CTD: Max 12-month extension..... 75.00

(k) Designation report requests.

(1) Initial review of historic significance (preliminary evaluation)..... $150.00

Plus $0.05 per square foot of floor area under consideration.

(2) Individual property (final evaluation)..... 50.00

(l) Designation report requests: Districts.

(1) Up to 20 contributing resources 500.00

(2) Each additional contributing resource..... 50.00

(m) Transfer of development rights and density fees.

(1) Certificate of eligibility 200.00

(2) Conditional certificate of transfer: $300.00 plus $0.06 per square foot of floor lot area to be transferred.

(3) Plus $200.00 per unit of density to be transferred.

(n) Certificate of transfer if no conditional certificate of transfer issued..... 300.00

(1) Plus $0.06 per square foot of floor lot area to be transferred.

(2) Plus $200.00 per unit of density to be transferred.

(o) An additional amount equal to 15 percent of the value of the capital improvements pursuant to section 23-6 will be retained:

(1) Five percent for the historic preservation trust fund as per article XVII.

(2) Ten percent for the public benefits trust fund, particularly for affordable/workforce Housing as per article XIV, with priority of five percent for the city's senior rental assistance program, and five percent for the city's employee homeownership assistance program.

(p) Deferment or continuance of hearing.

(1) After the legal ad has been placed 150.00

(q) Appeals of designations for properties zoned T3-O to city commission 0.00

(r) Ad-valorem tax abatement application.

(1)	Residential.	
	a. Single-family and duplex	50.00
	b. Multi-family under 30 units	262.50
	c. More than 30 units	500.00
(2)	Commercial.	
	a. Under 10,000 sq. ft.	1,250.00.
	b. 10,001—50,000 sq. ft.	3,000.00
	c. 50,001—100,000 sq. ft.	6,000.00
	d. Over 100,000 sq. ft.	9,000.00
(3)	Mixed-use:	
	a. Combination of the above as applicable.	

(s) Any other permit requiring historic and environmental preservation board approval: $100.00 plus noticing pursuant to subsection 62-32(a), as applicable.

(t) Any other administrative permits: 50.00 plus noticing pursuant to subsection 62-32(a), as applicable.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13423, § 2, 12-12-13; Ord. No. 13872, § 2, 11-21-19; Ord. No. 14120, § 2, 11-17-22)

Secs. 62-33—62-220. Reserved.

ARTICLE VIII. RESERVED

Secs. 62-221—62-255. Reserved.

ARTICLE IX. URBAN DEVELOPMENT REVIEW BOARD

Sec. 62-256. Establishment.

There is hereby established a board, to be known as the city urban development review board (UDRB), for the purpose of recommending whether the design of developments and/or improvements pursuant to Miami 21 the zoning ordinance of the city, as amended or superseded, are in conformance with city guides and standards. (Ord. No. 13311, § 2, 2-23-12)

Sec. 62-257. Membership.

(a) *Composition; appointment.* The urban development review board shall consist of nine members and one alternate, to be appointed by the city commission.

(b) *Qualifications.* It is intended that members of the urban development review board shall be persons of knowledge, experience, mature judgment and background, having ability, special professional training and interest to act in the public interest in order to make informed and equitable decisions concerning architecture, urban, physical and site design. To that end, qualifications of board members shall be as follows:

(1) At least five members shall be architects registered in the state. Each member shall have had five years of experience after registration in the practice of his/her profession.

(2) Four other members shall be either architects or landscape architects registered in the state, and shall meet the same criteria as subsection (b)(1) above.

(3) The alternate member shall satisfy the qualifications set forth in subsection (b)(2) above.

(4) During the qualification process, professional organizations such as the American Society of Architects and the American Society of Landscape Architects shall be encouraged to submit names of persons and their qualifications to the city commission through the city manager.

(c) *Terms of office.* Members of the urban development review board shall be appointed to serve a term of one year or until the nominating commissioner leaves office, whichever occurs first. Notwithstanding the above, individual members may serve until their successor is appointed and qualified. After the initial term of appointment, no member of the board shall be reappointed to more than five consecutive terms thereafter.

(d) *Vacancies.* Vacancies in the membership of the urban development review board shall be filled by the city commission, and shall be only for the unexpired term of the member affected.

(e) *Removal.* Members of the urban development review board may be removed with or without cause by vote of not less than three members of the city commission; however, any member or alternate member of the board who fails to comply with the attendance requirements contained in section 2-886 of this Code shall be automatically removed in the manner prescribed under section 2-889 of this Code. Following said removal, the city commission shall fill the vacancy pursuant to subsection (d) above.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 62-258. Functions, powers and duties generally.

In addition to such other powers, duties and authority as may be set forth elsewhere in this Code and in the zoning ordinance, the urban development review board is hereby authorized to:

(1) Review and recommend to the director of planning and zoning, for approval, approval with conditions or disapproval of applications for applications for special permits within certain zoning districts as per section 5.6.4, section 7.1.1.2, and appendix A of the Miami 21 Code and to the city manager or his/her designee on applications for omni media tower permits, pursuant to chapter 7 of the City Code. Said review shall be pursuant to city guides and standards for administrative review referenced in subsection 2-205(b)(8), or such design guides contained in the requirements of the applicable zoning district text.

(2) Require submission to the board of all information as may be reasonably necessary for the board to evaluate completely the proposed structure of improvement.

(3) To recommend, from time to time, to the director of the planning and zoning department modifications and/or amendments to the city guides and standards.

(4) Adopt and amend rules of procedure.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 62-259. Proceedings.

(a) *Officers.* The urban development review board shall select a chairperson and vice-chairperson from among its members to serve for a one-year term commencing in January and may create and fill such other offices as it may deem necessary or desirable.

(b) *Rules of procedure.* The urban development review board shall establish rules of procedure necessary to its governing and the conduct of its affairs, in keeping with the applicable provisions of the City Charter, Code of Ordinances, and resolutions. Such rules of procedure shall be available in written form to persons appearing before the board and to the public upon request.

(c) *Meetings.* The urban development review board will meet once each month, except for August, unless the director of planning and zoning has no business to transact, in which instance there will be no regular meeting. The director of planning and zoning or the chairperson can call a special meeting upon five days' notice.

(d) *Voting; quorum.* All decisions and recommendations of the urban development review board shall require a concurring vote of a majority of the members present. Three members shall constitute a quorum. Tie votes shall result in the subject agenda item being continued to the next meeting of the board.

(e) *Public record.* Summary minutes of each urban development review board meeting shall be prepared by the urban development officer. The summary minutes shall be kept on file with the planning and zoning department.

(f) *Notice.* Notice of meetings will be posted five days in advance at the city administration building. No other advertisement or notification

is required, except as a courtesy as may be directed by the director of the planning and zoning department.

(g) *Assignment of staff.* The city manager shall assure that adequate staff is available from the planning department and, on an as-needed basis, from other departments such as law.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13578, § 2, 12-10-15)

Sec. 62-260. Urban development review board secretary.

(a) The city manager or his/her designee shall appoint a person from the planning and zoning department to serve as urban development review board secretary to assist the urban development review board. The appointee shall be experienced and knowledgeable in respect to architectural design, urban design, site planning and land use control regulations.

(b) In addition to such duties, the urban development secretary shall:

(1) Schedule meetings of the urban development review board, prepare agendas, and ensure that proper notice is given to applicants of board meetings.

(2) Provide appropriate information on projects, standards, guidelines, procedures and related materials to applicants for special permits which will be reviewed by the board.

(3) Prepare summary reports of board actions and transmit them to the director of planning as input to special permits.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Secs. 62-261—62-300. Reserved.

ARTICLE X. TREE TRUST FUND

Sec. 62-301. Intent.

It is intended that the "Tree Trust Fund" be established in order to facilitate the compliance of tree replacement requirements according to chapter 17 of this Code, to facilitate the receipt of equitable contributions for replacement trees, to enhance the tree canopy coverage throughout the city and to restore the loss of tree canopy cover in the city. Expenditures from this trust fund shall require authorization by the city manager, or his/her designee, upon written recommendations from the directors of the departments of planning and zoning, code enforcement, and/or resilience and public works.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 62-302. Trust fund payments.

Payments into the trust funds shall include, but shall not be limited to, monies collected pursuant to this chapter and chapter 17 of this Code.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-303. Established.

(a) There is hereby established a trust fund to be entitled the "Tree Trust Fund" (the "trust fund") to be maintained and administered by the city, into which funds shall be deposited and from which funds shall be withdrawn pursuant to this article to pay the procurement of replacement trees to restore the loss of tree canopy cover in the city and to enhance tree canopy coverage and shrubs through means which may include, but are not limited to the following activities by the city or its authorized agents:

(1) Not less than 80 percent of the trust fund shall be expended on tree replacement and restoration and enhancement of tree canopy coverage throughout the city during each fiscal year. These funds may be used for periodic distribution of saplings and shrubs to the public to enhance tree canopy coverage in the city. However, if the city manager, or his/her designee, determines that there are insufficient reserves in the trust fund to implement a viable tree replacement program, funds may be carried over to the next fiscal year.

(2) Not more than ten percent of the trust fund shall be expended on activities directly related to three replacement and

restoration and enhancement of tree canopy coverage throughout the city during each fiscal year, including, but not limited to, survey work, site inventory and analysis, landscape architectural design services, inspection services for new plantings, and other related project expenses and incidentals.

(3) Not more than ten percent of the trust fund shall be expended during each fiscal year to provide training for code inspectors and for administrative costs directly related to the notice requirements of chapter 17 of this Code. Said training shall be directly related to the implementation of chapter 17 of this Code, including, but not limited to, training to properly identify the different tree and palm species and to properly grade the quality standards for new trees and palms, including the knowledge of proper planting, pruning, and landscape maintenance techniques.

(b) Allowable expenditures undertaken pursuant to this chapter may be made by the city manager, or his/her designee, except that any trust fund expenditures in excess of $50,000.00 will require approval by the city commission.

(c) It is the intent of this article that prior to the expenditure of funds for the above listed items by the city manager, that due consideration is given to written recommendations from the directors of the departments of planning and zoning and/or resilience and public works.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 62-304. Funds made available; financial report.

(a) Funds deposited in the trust fund shall be made available to the city manager for implementation purposes; all disbursals of trust fund monies shall be made by the city manager, or his/her designee, in accordance with this chapter and chapter 17 of this Code, and after due consideration is given to the written recommendations of the directors of the departments of planning and zoning, code enforcement, and/or resilience and public works.

(b) A financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the city manager or his/her designee and presented to the city commission.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Secs. 62-305—62-320. Reserved.

ARTICLE XI. FEC CORRIDOR IMPROVEMENT TRUST FUND

Sec. 62-321. Intent.

It is intended that a "FEC Corridor Improvement Trust Fund" be established in order for additional funding to be made available for the development of an integrated transportation system, funding of civic spaces, implementation of certain economic development plans, and the development of streetscapes and increased housing opportunities within the FEC Corridor. Fees shall be paid into the trust fund as specified. Expenditures from this trust fund shall require authorization by the city commission upon written recommendations from the directors of the departments of planning and zoning, building, resilience and public works, capital improvements (CIP) and the office of transportation.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13792, § 1, 10-11-18)

Sec. 62-322. Established.

(a) There is established a trust fund to be entitled the "FEC Corridor Improvement Trust Fund" (the trust fund) to be maintained and administered by the city, into which funds shall be deposited and from which funds shall be withdrawn to facilitate the creation and implementation of programs to improve and develop an integrated public transportation system, current economic levels, housing

opportunities and streetscapes, through means which may include, but are not limited to, the following activities by the city administration:

(1) Implementation of a program for the development of a premium and connected transit system throughout the FEC Corridor, such as an electric/fuel cell trolley connecting the northern end of the FEC Corridor to the downtown Miami area, and for roadway improvements (including, but not limited to; remedying capacity and design issues of east-west connectors between Interstate 95 and Biscayne Boulevard) which can be utilized to promote revitalization and economic development.

(2) Implementation of a program providing for streetscape and public infrastructure improvement (including, but not limited to, landscaping, repaving of streets and sidewalks, development of street end pocket parks, bike paths, linear parks or trail systems, and planted medians) for those public rights-of-way in those areas where there is a need for improved pedestrian access and connectivity between neighborhoods and districts to the extent necessary as determined by the city commission with due consideration given to the recommendation of the directors of the departments of planning and zoning, building, resilience and public works, CIP and the office of transportation. Coordination of the implementation shall be processed through the city manager's office.

(3) Perform such other related activities as may be appropriate to carry out the intent of this article, including but not limited to, maintenance of streetscapes, funding for operations of civic spaces within Appendix C, SD-27 Midtown Miami Special District, of the Miami 21 Code, as may be deemed necessary by the city manager.

(b) It is the intent of this article that prior to expenditures pursuant to the above listed items by the city commission, that due consideration if given to written recommendations from the city manager, and directors of the departments of planning and zoning, building, resilience and public works, CIP and the office of transportation.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13792, § 1, 10-11-18)

Sec. 62-323. Prerequisite.

As a prerequisite to the purchase of bonus floor area ratio (FAR), as described in Zoning Ordinance 11000 or floor lot area (FLR) pursuant to the Miami 21 Code, the developer must improve its property with superior landscape and street furniture as described in the SD-27 design standards and as required by warrant.

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-324. Funds made available; financial report.

(a) Funds deposited into the trust fund shall be made available to the city manager for implementation purposes for properties located within the FEC Corridor as depicted in the FEC Corridor map on file with the planning and zoning department, all disbursals of trust fund monies shall be made by the city commission, after due consideration is given to the written recommendations of the city manager and the directors of the departments of planning and zoning, building, resilience and public works, CIP and the office of transportation.

(b) A financial report on the trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the city manager or his/her designee and presented to the city commission.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17; Ord. No. 13792, § 1, 10-11-18)

Sec. 62-325. Schedule of fees and charges.

The schedule of fees and charges to be assessed and paid into the trust fund is as follows:

Floor area ratio (FAR) bonus fees. Developers wishing to obtain bonus FAR area for properties located in the SD-27 district shall pay a one-time, nonrefundable fee of $12.40 per square foot of bonus floor area ratio (FAR) to

the city FEC Corridor Improvement Trust Fund as a prerequisite to obtaining a building permit.

(Ord. No. 13311, § 2, 2-23-12)

Secs. 62-326—62-400. Reserved.

ARTICLE XII. PARKS AND OPEN SPACE TRUST FUND

Sec. 62-401. Intent.

It is intended that the "Parks and Open Space Trust Fund" be established in order to facilitate the compliance of open space requirements according to Miami 21 as amended, the zoning ordinance of the city (the "zoning ordinance"), to facilitate the receipt of equitable contributions for mitigation of open space in the city. Expenditures from this trust fund shall require written authorization by the city manager, or his/her designee, upon written recommendations from the directors of the departments of planning and zoning and parks.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 62-402. Trust fund payments.

Payments into the "Parks and Open Space Trust Fund" shall include, but shall not be limited to, monies collected pursuant to section 3.14 of the zoning ordinance.

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-403. Established.

(a) There is hereby established a trust fund to be entitled the "Parks and Open Space Trust Fund" (the "trust fund") to be maintained and administered by the city, into which funds shall be deposited and from which funds shall be withdrawn pursuant to this article to pay the procurement of parks and open space or improvement of parks and open spaces in the city, through means which may include, but are not limited to the following activities by the city or its authorized agents:

(1) Not less than 80 percent of the trust fund shall be expended on acquisition of new parks and open space during each fiscal year. However, if the city manager, or his/her designee, determines that there are insufficient reserves in the trust fund to implement viable purchases of land, funds may be carried over to the next fiscal year.

(2) Not more than ten percent of the trust fund shall be expended on activities directly related to improvement of existing parks and open space during each fiscal year, including, but not limited to, survey work, site inventory and analysis, landscape architectural design services, inspection services for new plantings, and other related project expenses and incidentals.

(3) Not more than ten percent of the trust fund shall be expended during each fiscal year to provide for administrative costs directly related to the notice requirements of the zoning ordinance.

(b) Allowable expenditures undertaken pursuant to this chapter may be made by the city manager, or his/her designee, except that any trust fund expenditures in excess of $50,000.00 will require approval by the city commission. All trust fund expenditures made by the city manager or city commission, as applicable, shall only be made after a recommendation is made by the parks advisory board as to such expenditures. Notwithstanding the foregoing, the city commission may, by unanimous vote, approve or expedite any expenditure under this chapter.

(c) It is the intent of this article that prior to the expenditure of funds for the above listed items by the city manager, that due consideration is given to written recommendations from the parks advisory board and, if practicable, the directors of the departments of planning and zoning and parks.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 62-404. Funds made available; financial report.

(a) Funds deposited in the trust fund shall be made available to the city manager for implementation purposes, all disbursals of trust

fund monies shall be made by the city manager, or his/her designee, in accordance with this chapter and the zoning ordinance, and after due consideration is given to the written recommendations of the directors of the departments of planning and zoning and parks.

(b) A financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the city manager or his/her designee and presented to the city commission.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Secs. 62-405—62-519. Reserved.

ARTICLE XIII. PLANNING AND ZONING APPROVAL FOR TEMPORARY USES AND OCCUPANCIES; PERMIT REQUIRED*

DIVISION 1. RESERVED†

Secs. 62-520—62-526. Reserved.

DIVISION 2. TEMPORARY OCCUPANCY

Sec. 62-527. Intent.

A temporary permit system is hereby established to assure special examination, review, and findings by appropriate agents, agencies, or bodies of the city related to proposed temporary uses and occupancies within the city.

A temporary permit system is hereby established, to be administered by the city manager or designee, in order to provide special examination and review of temporary uses and occupancies by the appropriate departments of the city or related agencies.

Enforcement of this Code shall be by chapter 2, article X, Code enforcement or any other remedies as provided by law.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-528. Temporary occupancies in general.

(a) Temporary occupancies are those uses and occupancies within the city of limited duration that occur on private property, public property, or in a combination of public and private properties, that would require special review by the city. Temporary occupancies are those that are not expected to remain on a property for more than two years. Such uses are associated with land development or ongoing construction. They include, but are not limited to, temporary office use in connection with land development or construction activity, i.e. construction offices or security guard quarters; temporary parking for construction crews in connection to land development, storage facilities for construction equipment and materials; sales or leasing offices for newly constructed projects; construction trailers, fences, temporary encroachments, etc.

(1) A temporary permit would not be required for a use or occupancy required by the city.

(2) Where a temporary permit use is associated with land development or construction activity, such temporary permits authorizing construction related activities may only be authorized in conjunction with an active building permit for the approved project. No temporary permits shall be issued for construction activity that is not associated with a building permit for an approved development project.

(b) The limitation of two-year duration may be waived by an affirmative vote of the city commission, to permit more time for an individual use.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

*__Note—__The exhibits referred to in this article are not set out at length herein, but may be found on file in the office of the city clerk.

†__Editor's note—__Ord. No. 14357, § 3, adopted March 13, 2025, repealed the former division 1, sections 62-520—62-525 in its entirety, which pertained to temporary event permits and derived from Ord. No. 13311, § 2, adopted February 23, 2012, and Ord. No. 13148, § 14, adopted February 9, 2023.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 52 of this Code.

Sec. 62-529. Permit application process, possible determinations and referrals.

Applications shall for temporary occupancies shall be submitted and reviewed pursuant to the criteria and guidelines established in section 62-522 of this chapter.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-530. Informal notice and hearing.

No formal public notice and hearing are required in connection with temporary permits. However, the following is required:

(1) Notice required by applicant to adjacent property owners. At the time of initial application, the applicant shall notify all abutting property owners, including those abutting across the street or alley, in an approved city form, by certified mail, and shall submit the application with certified receipt(s).

In the case of adjacent condominiums, only one notice to the condominium association will be sent.

(2) Courtesy notice to registered neighborhood and/or homeowner associations. All neighborhood and/or homeowner associations that wish to receive a courtesy notice of temporary permit applications in their areas, shall register with the city manager's office or its designated city department on a yearly basis. Such registration shall consist of a letter to the city manager's office or its designated city department in which the association shall request such notification and shall specify the name, address, telephone number and electronic mail (E-mail) address of the official representative of the association, designated to receive said notice and a list of all the officers of said association.

(3) At the time of initial application, the applicant shall obtain the list of all registered neighborhood and/or homeowner associations from the city manager's office or its designated city department and shall notify the official representatives of all such registered associations in writing, by certified mail, of the application. The applicant shall submit with the application with said certified receipts.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 14138, § 14, 2-9-23)

Sec. 62-531. Withdrawal of application; effect of withdrawal.

An application for a temporary permit may be withdrawn by the applicant at any time prior to a decision without restrictions as to a resubmittal. But if withdrawn after the final decision has been issued, substantially the same application shall not be considered within 12 months of the date of withdrawal. An applicant who withdraws an application shall not be entitled to any refund of the application fee.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-532. Appeals.

Any person or persons, jointly or severally, aggrieved by the decision of the city manager or designee in granting, granting with conditions or safeguards, or denying a temporary permit, or any department or representative of the city, may seek review of decisions made by the planning, zoning and appeals board by filing such request with the office of hearing boards within 15 calendar days of the decision.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-533. Reserved.

DIVISION 3. TEMPORARY STRUCTURES IN CONJUNCTION WITH PERMANENT OUTDOOR RECREATIONAL USES OR RECREATIONAL FACILITIES

Sec. 62-534. Temporary structures.

(a) Intent. It is the intent of the city commission that the use of temporary structures be permissible on vacant land for the purposes of housing accessory office and restroom uses in conjunction with recreational uses on such land.

Recreational uses include uses for playgrounds, sports fields, passive park uses, recreation centers, and any other recreational purposes. Recreational facilities are facilities that support recreational uses or sporting and community uses.

(b) Permitted uses. Temporary mobile structures shall only be allowed for use as accessory office and restroom facilities in conjunction with outdoor recreational uses on vacant lands or vacant portions of land that allow such uses pursuant to the zoning ordinance of the city. In no event shall the temporary mobile structure(s), alone or combination with other temporary structures on the subject property, exceed 25 percent of the net lot area of the subject property.

(c) Procedures. The procedures established in division 2 for temporary permits will be followed in order to obtain permits for uses under this section.

(d) Irrespective of the limitations set forth in the zoning ordinance of the city, approvals for certificates of use shall be granted by the zoning administrator upon approval by the building official that such temporary structures have met all necessary criteria and have paid all fees for the use(s) being requested. These fees include, but are not limited to, payment of all applicable impact fees and solid waste fees in addition to all other applicable fees.

(e) The building official shall review all applications for temporary structures prior to their placement on any site. Such structures shall be certified as temporary mobile homes or manufactured homes structures by either the state department of motor vehicles (DMV) or the state department of community affairs (DCA).

(f) Renewals. The use of temporary structures shall require annual renewals by the building and zoning departments and shall only be in effect for one year at a time or until such time that the city commission repeals or sunsets these provisions. Failure to renew annually will result in code enforcement action.

(g) Enforcement. Enforcement of this Code shall be by chapter 2, article X, Code enforcement or any other remedies as provided by law. (Ord. No. 13311, § 2, 2-23-12)

Sec. 62-535. Temporary uses on vacant land.

(a) As provided for in section 62-529, temporary uses and occupancies are those uses and occupancies within the city of limited duration that occur on private property, public property, or in a combination of public and private properties, that would require special review by the city zoning administrator. Temporary uses and occupancies are those that are not expected to remain on a property for more than three consecutive years. For purposes of this section, temporary uses and occupancies on vacant land or unoccupied surface lots shall be limited to those uses and occupancies which contemplate temporary type structures, such as tents, kiosks, mobile or manufactured offices, temporary exhibition areas, and other similar structures and provide such things as food service establishments, arts, entertainment, cultural, civic, scientific, horticultural, recreational, vocational or educational uses. Any intensive commercial or industrial use or occupancy is strictly prohibited, unless expressly allowed by the zoning ordinance. Notwithstanding the provisions of section 62-529, uses and occupancies pursuant to this section shall have a limited duration of one year and can be extended annually administratively by the zoning administrator for a maximum of three years. Temporary uses on vacant land may be further extended beyond the three-year maximum by city commission. With the exception of such vacant parcels located within City Commission District 3 situated within the boundaries of Downtown Development Authority, as described in section 14-27 of the City Code, section 62-535 shall not apply in city commission district 3 due to the proximity of residential properties to vacant lands; however, temporary uses otherwise allowed in chapter 62, article XIII of the City Code, such as temporary event permits, may be granted in conformity with the applicable provisions of the City Code.

(b) A temporary permit must be obtained from the office of zoning for any property owner who wishes to have a temporary use on vacant land. Permit fees provided in article VI shall apply to all such permits and any extensions that may be granted.

(c) All uses shall be as set forth in the applicable transect zone as described in the zoning code of the city, as amended, and must comply with all local, state and federal laws. A temporary certificate of use must be obtained. A temporary permit that is issued allowing a temporary use shall replace the necessity of a waiver, warrant or exception that may be required for a permanent use pursuant to the zoning code.

(d) Any use that is allowed must provide sufficient parking on-site. If a temporary use abuts a T3 or T4-R transect zone, the applicant shall demonstrate, as part of the temporary permit application, where additional parking will be provided. Parking in a residential transect is strictly prohibited.

(e) As determined by the zoning administrator, a landscape plan to be approved by the department of planning shall be provided as part of the submittal for a temporary permit. The landscape plan shall substantially comply with the requirements of the Miami 21 zoning ordinance and shall include street tree plantings.

(f) Property owner permission. Any uses or occupancies pursuant to this section, shall require the applicant to obtain owner's permission, via notarized affidavit, in a form acceptable to the zoning administrator.

(g) The owner of any vacant land who wishes to avail him or herself of this section must be registered with the city pursuant to section 22-115.

(h) Review of applications shall be conducted in accordance with article XIII, division 2. Required documentation may include a survey, site plan, elevations, parking plan, and noise attenuation plan. Additional requirements, as deemed necessary, may be required.

(i) All violations shall be subject to enforcement via chapter 2, article X, Code enforcement and any other remedies as are provided by law, jointly and severally, including but not limited to the revocation of the permit, certificate of use, or business tax receipt.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13733, § 2, 1-11-18; Ord. No. 14366, § 2, 5-8-25)

Secs. 62-536—62-541. Reserved.

DIVISION 4. INTERIM PARKING

Sec. 62-542. Intent.

It is intended that this section allow for a mechanism which will enable conditionally, unimproved and partially improved lots in the city to be utilized, for accessory parking purposes in a temporary fashion or as a component of facilities which require parking on an event by event basis, without having to comply with permanent parking requirements on the proposed interim lots to accomplish this goal. As specified herein, proposals subject to this section shall also ensure that safety measures are implemented which will safeguard users of the subject facilities.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-543. Temporary permit required for approval.

An interim parking facility or interim parking shall be defined as a surface parking lot for which paving, drainage and marking of parking spaces as well as other improvements incidental to permanent parking lots shall not be required on a temporary basis. Notwithstanding the temporary nature of the parking, all interim parking must fully comply with the waterfront standards of the City Charter and the Miami 21 Code. Compliance timeframes as set forth herein or for any permit issued pursuant to this section shall begin to run from the date of issuance of the certificate of use or temporary certificate of use for the parking permit. Notwithstanding the temporary nature of any parking permit issued pursuant to this section, all properties wishing to avail themselves of this section shall be

unified by a unity of title or covenant in lieu of unity of title, as applicable and as more specifically set forth in the Miami 21 zoning code. All temporary parking lots approved pursuant to this section shall require noticing in the same manner as a warrant, as the same is defined in the Miami 21 zoning code.

There shall be five types of interim parking as follows:

Temporary special event parking;

Short-term event parking;

Interim special use parking;

Limited-term citywide parking program; and

Temporary parking—Urban central business district.

(1) *Temporary special event parking.* Temporary special event parking on unimproved interim parking lots, as defined herein, shall mean parking permitted pursuant to a temporary permit and only in conjunction with an approved special event that requires the additional parking to be accommodated on said lot(s).

(2) *Short-term event parking.* Short-term event parking means parking permitted as a conditional use on lots not zoned T3-R, T3-L, T3-O, T4-R, T5-R, or T6-R pursuant to the Miami 21 zoning code, within a 1,500-foot radius of the major public facility they are intended to serve, pursuant to a temporary permit subject to the applicable criteria in division 2, and only in conjunction with major public facilities such as major sports facilities, arenas, exhibition centers, performing arts centers and any other such major public facility whose scale and operation warrant the use of interim parking facilities on an event-by-event basis versus daily year-round use. However, no such short term event parking shall be located adjacent to, abutting or across the street from property zoned T3-R, T3-L, or T3-O.

Renewals may only be granted by the city manager or designee upon findings and recommendations by the director of the department of planning that such renewals are in the best interest of the city for reasons related to insufficient parking within proximity of a major public facility. At such time that renewals are granted, the city manager may include conditions to mitigate safety concerns that arise as reported by code enforcement or the city police department that pertain to the particular parking facility in question. Such mitigation requests of the applicant shall be limited to the following: (i) improvements to or addition of pavement and striping; (ii) erection of lighting to the site in compliance with applicable governing requirements; and (iii) the addition of aluminum or galvanized steel fencing around the parking lot's perimeter. Parking spaces provided as interim parking shall not be counted toward meeting required parking for any such major public facility, unless parking spaces are either owned, controlled, or under agreement for use by the major public facility it serves.

(3) *Interim special use parking.* Interim special use parking means parking permitted as a conditional use on a lot not zoned T3-R, T3-L, T3-O, T4-R, T5-R, or T6-R pursuant to the Miami 21 zoning code, within a 1,500-foot radius of the special uses they are intended to serve, pursuant to a temporary permit subject to the applicable criteria in division 2 above, and only in conjunction with uses such as special entertainment districts, historic districts which consist predominantly of properties with a zoning designation allowing for commercial uses as defined in the Miami 21 zoning code, government facilities or institutional uses whose scale and operation warrant the daily year round use of interim parking facilities rather than temporary special event uses. However, no such interim special use parking shall be located adjacent to, abutting or across the street from a property zoned T3-R, T3-L, or T3-O. Special use areas may also include other public or

private attractions and uses that are over ten acres in size that could benefit from interim parking such as a dog track, amusement park or flea market.

Yearly renewals for short-term event parking and interim special use parking may be issued annually by the city manager upon findings and recommendations by the director of the department of planning that such renewals are in the best interest of the city for reasons related to insufficient parking within proximity of the special uses. Renewals may include conditions to mitigate safety concerns that arise as reported by code enforcement or the city police department that pertain to the particular parking facility in question. Such mitigation requests of the applicant shall be limited to the following: (i) improvements to or addition of pavement and striping; (ii) erection of lighting to the site in compliance with applicable governing requirements; and (iii) the addition of aluminum or galvanized steel fencing around the parking lot's perimeter. Parking spaces provided under this type of interim parking facility shall not be counted toward meeting required parking for any such special use they serve, unless such parking facility is in full code compliance.

(4) *Limited-term citywide parking program.* The limited-term citywide parking program is a five-year temporary parking program that encourages the use of properties on a temporary basis to support parking needs of specific areas within the city. The limited-term citywide parking program permits parking as a conditional use on a lot not zoned T3-R, T3-L, T3-O, T4-R, T5-R, or T6-R pursuant to the Miami 21 zoning code and that has a minimum of 10,000 square feet in size pursuant to a temporary permit and subject to the applicable criteria in division 2. However, no such limited-term citywide parking program may be applied to property adjacent to, abutting, or across the street from property zoned T3-R, T3-L, or T3-O.

Parking spaces provided under this limited-term citywide parking program shall not be counted toward meeting required parking for any use they serve, unless such parking facility is in common ownership with the property it is intended to serve or unified with the property it is intended to serve by a covenant in lieu of unity of title or a unity of title.

Any parking lot participating in the limited-term citywide parking program shall be required to meet the requirements of Section 3(mm) of the City Charter and of Section 3.11 of the Miami 21 Code.

(5) *Temporary parking—Urban central business district.* Temporary commercial or non-commercial parking lots may be operated within the urban central business district, as depicted in Appendix LU-1 of the Miami Comprehensive Neighborhood Plan. Such lots may be operated independent of a primary use.

a. *Design requirements.* All temporary lots within the urban central business district shall adhere to the following minimum design requirements:

1. Parking lots shall be brought to grade with no less than one inch of asphalt over four-inch lime rock base; however, the resilience and public works director may require a six-inch lime rock base or thicker asphalt based upon the conditions at the site, the intensity at the site or, if trucks are intended to be parked on the site, that would require the additional support base.

2. Surface storm water shall not drain onto adjacent property or a public right-of-way. If the resilience and public works director determines that there

is insufficient area to accommodate drainage, additional measures may be required to adequately drain stormwater runoff.

3. A landscape plan that specifies and quantifies the existing and/or proposed plant material inclusive of mature shade trees, hedge material, ground cover and in-ground irrigation shall be submitted for review and approval by the planning director, according to the following criteria:
   A. At minimum, the plan shall indicate a three-foot wide, landscaped area bordering the surface area along a property line, street, alley or sidewalk.
   B. A hedge that is at least 36 inches in height at the time of planting shall be installed on the entire perimeter of the lot; hedges on street or alley frontages shall not exceed 42 inches in height at maturity.
   C. Landscaped areas shall require protection from vehicular encroachment. Car stops shall be placed at least two and one-half feet from the edge of the paved area.
   D. All landscaping that is placed on the lot shall be maintained in good condition so as to present a healthy, neat and orderly appearance.
4. Signs. One sign per street frontage is permitted. The maximum size of each sign shall be five square feet or 50 feet of street frontage. Such signs shall also include copy that indicates the name of the operator, the phone number of the operator to report complaints, and who can use the facility (i.e. whether it is open to the general public, private, valet or self-parking). Signage shall also comply with section 35-283 of the City Code.
5. All temporary parking lots shall comply with the lighting standards set forth in section 35-288 of the City Code.

Prior to the issuance of a building permit, the planning director shall approve the site and landscaping plans.

b. *Duration of temporary parking use; extensions.* Temporary parking lots shall not be permitted to exist for a period of greater than ten years from the date of certificate of occupancy or business tax receipt, whichever occurs first, regardless of ownership and approved in accordance with standards set forth herein, below, and in section 62-544 and the procedures utilized for the processing of a warrant in the Miami 21 Code. At the end of this period, or such extensions that may be granted as contemplated herein, if the lot continues to be used for the purposes of parking, a permanent lot shall be constructed in conformity with the governing regulations set forth in the City Code and land development regulations. However, prior to the expiration, or not later than 90 calendar days after the expiration of such approval, an applicant may request one initial extension of time for a period not to exceed three years by filing an application for a temporary parking use. In granting the initial extension of time, or considering an appeal from the planning director's decision regarding an extension of time, the planning director or planning,

zoning and appeals board, as the case may be, shall consider, among other things, whether the applicant has complied with all of the applicable requirements of these land development regulations, and any conditions imposed by the planning, zoning and appeals board, if any, during its period of operation.

After the first extension of time, and prior to expiration, or not later than 90 calendar days after the expiration of such approval, an applicant may request from the planning director not more than two extensions of time for periods not to exceed three years each. In considering such a request, the planning director shall consider the same criteria applied in his or her review of the initial request for approval of a temporary parking use.

At the end of all applicable extensions of time for a temporary parking lot, the lot shall cease to be used for parking and the asphalt and rock base shall be removed.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13427, § 3, 1-9-14; Ord. No. 13792, § 1, 10-11-18; Ord. No. 13854, § 3, 7-25-19; Ord. No. 14069, § 3, 6-9-22; Ord. No. 14138, § 14, 2-9-23)

Sec. 62-544. Considerations and standards.

In order to mitigate any potentially adverse effects that unimproved interim parking lots may have on adjacent areas, all such facilities intended to be utilized as described in sections this division, shall be required to maintain a park-like appearance to consist of fully sodded lots over an approved stabilized, below grade, pervious system or any other type of system which provides a honeycomb type stabilized base underneath the lot and therefore allows for parking on the sod while not impeding drainage.

In lieu of providing a park-like appearance as described above, a parking facility may be paved or consist of any combination of paving, gravel and grass upon approval by the city of a sufficient alternate drainage system. This requirement may also be met through the installation of porous asphalt, porous concrete, a plastic grid system or block pavers, only as approved by the zoning administrator and building director. Except for temporary special event parking (as defined above) associated with a temporary permit, all other interim parking shall comply with applicable ADA requirements as set forth in the Florida Building Code, as amended from time to time.

Interim parking may also be used for the temporary staging of miscellaneous equipment and/or vehicles necessary for any of the functions associated with an approved special event or an activity taking place in a major public facility subject to all applicable regulations and permits listed above.

All interim parking and staging activities permissible under this section shall be limited in duration to a time specified in the permit obtained. The duration shall run concurrently with the event or activity requiring said parking or staging, and may be expanded on a limited basis to allow for preparation, disassembly and activities related to that specific event or activity.

In addition to the considerations and standards listed generally in division 2, temporary permits for interim parking facilities shall also consider the following:

(1) Use of traffic monitors to facilitate vehicular flow into and out of such facilities during major events;

(2) Use of specialized lighting features to ensure safety when such facilities are proposed for evening use; and

(3) Use of perimeter fencing to assist in the control of access points and security of proposed lots while not in use.

(4) Surface interim parking lots, which are located within the areas general bounded in the formerly known SD-5, SD-6, SD-7, SD-20 areas or designated CRA areas of Southeast Overtown/Park West or Omni,

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will be required to comply with the conditions and criteria set forth in division 2 as applicable as conditions to the permits required herein or as conditions of time extensions granted by the city manager.

(5) All such interim parking lots may also be required to comply with any design standards and guidelines that may be in place for the specified area in which the parking lot is located (i.e. uniform signage, fencing and attendant kiosk standards).

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-545. Enforcement.

Enforcement of this Code shall be by chapter 2, article X, Code enforcement or any other remedies as provided by law.
(Ord. No. 13311, § 2, 2-23-12)

Secs. 62-546—62-600. Reserved.

DIVISION 5. MURALS

Sec. 62-601. Purpose of mural sign regulations; applicability; criteria.

Intent. It is the intent of the city commission that the display of art or graphics with minimal commercial message on buildings and walls be permitted within certain commercial and special districts of the city in order to aesthetically enhance otherwise blank walls and unoccupied buildings, and that the funds generated by permits issued with respect to such displays be utilized to ensure quality of life and prevention of visual clutter or blight. The display of art or graphics without a commercial message shall not be a mural pursuant to this article.

It is the intent of the city to comply with state and federal requirements as specified in the agreements executed with the Federal Highway Administration ("FHWA") and the State of Florida Department of Transportation ("FDOT") and to keep FDOT informed of issues pertaining to oversight of the mural ordinance to ensure effective control of the mural program within the city municipal boundaries in accordance with the agreement and determination of customary local use approved by City Commission Resolution Nos. 14-0024 and 14-0025, adopted January 23, 2014 (the "agreement").

The procedures established in this article will allow for the pre-qualification of applicants to display art or graphics on buildings and walls. Once qualified, such pre-qualified applicants will be allowed to file for a temporary permit (the "mural permit"), as further defined in this division.

Mural permits will be issued by the city manager or designee upon their determination that the applicant has complied with the criteria set forth in this division, including the payment of all required fees and contributions. To the extent permissible by law, all fees and contributions received by the city pursuant to the terms of this division shall be used to promote quality of life within the city and by regulating all murals to ensure that the city's residents are not exposed to visual blight or clutter.

Upon the award of a mural permit by the city manager or designee, the holder of such a mural permit shall be allowed to obtain all required building permits. Changes in art work or other relevant copy (including text or commercial messages) changes will only be permitted upon the approval of a subsequent copy change application for a change of copy.

Strict compliance with the provisions of this division must be maintained during the term of the mural permit. Failure of the qualified applicant to remain in compliance with the terms of this division shall result in the revocation of qualified applicant's entire mural permit inventory and the forfeiture of the right to apply for any subsequent mural permit(s).
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-602. Definitions.

For the purpose of this article, the following definitions shall apply:

Affiliate of any person, is any other person that controls, is controlled by or is under common control with the first person including, but not limited to, any owner, shareholder, member,

partner, officer, director or employee of the first person. For these purposes the term "control" shall mean the possession, directly or indirectly, of the power to direct or cause the direction of management, policies or activities of any person, whether through ownership of voting securities, by contract or otherwise.

Applicant is any person or entity who, pursuant to section 62-69, is seeking to be qualified by the city manager or designee to apply for a mural permit pursuant to this division.

Building compliance with applicable laws, etc. Each building/structure for which a mural permit has been issued shall be at the time of permit issuance is in full compliance with all applicable federal, state, county and city laws and regulations including, without limitation, building, life/safety, electrical, and similar technical codes, minimum housing, land use and zoning, sanitary, solid waste, storm water, water and sewer, and such other applicable laws as further the public health, safety and general welfare.

Commercial message includes any text or logos or representation of the business name or commercial product, except for a trademark, commercially recognized display, copyright or service mark of the sponsor; such commercial message may be of offsite products or businesses as applicable to the sponsorship. Text or letters displayed in an artistic format that do not spell a business name or commercial message shall not be calculated as a component of the commercial message.

Copy change application is an application by the holder of a mural permit to change the mural face.

Gateway sign is a sign marking the entrance to a neighborhood, park, or other designated historic, public or geographical areas.

Geographical area is the mural area, as amended by the Miami-Dade County Ordinance No. 12-09 and more particularly described in "Exhibit A" attached hereto and incorporated herein by reference, as amended from time to time by the city commission, and kept on file in the city clerk's office and the office of zoning.

Government-owned building is any building owned by the United States Government, the State of Florida (the "state"), Miami-Dade County (the "county"), the Miami-Dade School Board, the city, any dependent or independent special tax district, or any agency of any of the foregoing governments.

Indemnity, and hold harmless. This indemnity, and hold harmless, will be included in each permit application and location change application, and each applicant/permittee shall sign the page on which it appears. It shall be a condition precedent to the issuance of any such mural permit that the applicant/permittee shall assume all civil liability for the applicant's acts, omissions or commissions, and from all claims, suits or actions of any kind whatsoever arising out of or resulting from the issuance of the mural permit, location change, compliance with applicable laws or regulations, or the operations or activities of the applicant/permittee and shall, further, hold the city, its officials and/or employees, harmless for, and defend the city, its officials and/or employees against, any civil actions, statutory or similar claims, injuries or damages arising or resulting from this mural permit or the permitted work, even if it is alleged that the city, its officials and/or employees were negligent, unless such injuries or damages are ultimately proven to be the result of grossly negligent or willful acts or omissions on the part of the city, its officials and/or employees. The applicant shall insure that adequate safety precautions are in effect at all times during the term of the mural permit. This required indemnification and hold harmless shall survive the revocation or expiration of the mural permit and shall be included in the permit application. The applicant/permittee voluntarily and knowingly acknowledges that the granting of any such mural permit is sufficient, independent and valuable consideration for the giving of such indemnity, and hold harmless.

Licensee is any person or entity who holds or obtains or has been issued a state license for outdoor advertising.

Location change application is an application by the holder of a mural permit to change the location of a previously approved mural permit.

Lottery is the process described in section 62-605 for the approval of mural permits. The initial lottery date was May 12, 2008. New lotteries will be held when new mural permits become available.

Lottery winner is a person or entity who has won the right to apply for a mural permit pursuant to the lottery.

Mural is a painting or artistic work (including collage effects) composed of pictures or arrangements of color which has a limited commercial sponsorship message, advertises a commercial product and which is made directly onto, projected onto or attached to a building or a wall.

Mural face is the entire face of the mural including all text, artwork, and commercial sponsorship messages incorporated into a mural.

Mural permit is the temporary permit allowed by this division once all criteria described herein has been met.

New location is an available location for a mural placement where there is not currently an active mural permit and otherwise complies with the criteria of this division.

Park West entertainment district is the area between State Road 836 to the north and Northwest 7th Street to the South; and North Miami Avenue to the West and Biscayne Boulevard to the east.

Permittee is a person or entity who is the holder of an approved mural permit.

Permit fee is the annual permit fee paid for a mural permit.

Permit fee period begins every September 1. Payments that are due concurrently with the permit fee period are also due September 1.

Qualified applicant is any person or entity who, pursuant to section 62-603, has been qualified by the city manager or designee to enter the lottery and if selected apply for a mural permit, and is not an affiliate of another qualified applicant. All applications for qualification shall be submitted 30 days prior to any lottery.

Quarters, for purposes of this division are the periods beginning September 1, December 1, March 1, and June 1 of each year.

Small business enterprise is a business enterprise that qualifies as a small business enterprise pursuant to applicable state and federal laws and the rules and regulations of Miami-Dade County, as amended from time to time.

Wall is the exterior surface of a building capable of being occupied, including surfaces free of windows or devoid of occupants behind the area where the mural is to be placed. Surfaces constructed on roof tops (other than a roof parapet) shall not be considered walls for purposes of this article.

Wrap or *wrapped mural* is a mural which is continuous on two sides of the building and connects or touches on one side and has the same sponsor. A wrap shall have related paintings, artistic works, or commercial messages on both sides of the mural.

Notwithstanding anything herein to the contrary, subject to the conditions listed below and the written permission of the city manager or designee, murals will be permitted to be placed on walls with windows of commercial buildings only, and on the exterior walls of a parking garage or a parking pedestal provided that such murals:

(1) Are not directly facing residential units;

(2) Are made of perforated vinyl mesh or adhesive backing and are transparent to the occupants of the commercial building;

(3) Do not prevent the opening of windows intended to be opened; and

(4) Do not prevent ingress and egress. In no event, may a mural be placed so as to cover any residential units, including residential liners.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13390, § 2, 6-13-13; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-603. Qualified applicants; procedure for application; requirements.

In order to participate in a lottery to be held in accordance with the requirements of this division, each applicant must be approved as a qualified applicant. Once an applicant, is a qualified applicant, such applicant shall submit proof of status as a qualified applicant and information must be confirmed in order to allow them to participate in subsequent lotteries.

(a) An applicant shall submit an application to the city manager or designee for the purposes of qualifying said applicant as a qualified applicant 30 days prior to any lottery. Such application shall include the following:

(1) The name, address, phone number and other pertinent information of the applicant, and if the applicant is an entity, such as a corporation, limited liability company, or partnership, the names and business addresses of the principal officers, managers, and other persons who own more than five percent of the entity;

(2) Payment of a non-refundable, prequalification administrative fee in the amount of $500.00;

(3) Payment in full and delivery to the city finance director of a prequalification fee in the amount of $10,000.00 (the "qualification fee"). Payment must be made by cashier's check, certified check or United States Postal money order. The qualification fee shall be refunded to the applicant if the city manager or designee determines that the applicant does not qualify as a qualified applicant;

(4) Proof, reasonably satisfactory to the city risk management administrator, that the applicant has (and can maintain at all times) public liability insurance in the amount of $3,000,000.00;

(5) Proof in the form of a signed affidavit(s) stating that the applicant or in the case of an entity, that a majority of the applicant's principal officers or managers (each of whom shall submit a signed affidavit) has or have had experience in the outdoor advertising industry for a minimum of five years prior to the date of application;

(6) Proof in the form of copies of all required city and county business tax receipts, evidencing the fact that the applicant has an office or local presence within the city to ensure an immediate response in the event of an emergency;

(7) Proof in the form of copies of a memorandum of lease, sworn to by affidavit which indicates relevant information regarding control of the mural site and which shows that the applicant or its affiliate has executed and enforceable leases for a minimum of five mural sites within the geographic area;

(8) Proof that the applicant had gross revenue of at least $1,500,000.00 in the outdoor advertising industry during each of the two years preceding the date of the application;

(9) Proof that the applicant is in good standing with the city and the county for any pending code enforcement matters. No individual, business, building or property owner, or affiliate of an individual, business or building or property owner may apply for a mural permit if that person or entity has displayed an illegal mural, banner, sign or any type of outdoor advertising in the city by receiving a notice of violation, any summons to appear, or a ticket for any illegal mural, banner, sign, or any type of outdoor advertising in violation of chapter 62 or Miami 21 since, April 20, 2008, in

which event the site, building, or entity will be precluded from participating in the lottery;

(10) Proof that applicant will post a bond or letter or credit in the amount of $500,000.00 in a form reasonably acceptable to the city's department of risk management, at the time of issuance of the mural. The city shall be named as a beneficiary on the bond or letter of credit. The city shall be authorized to collect on the bond or letter of credit in the event the permittee is found to be in non-compliance with any provision of this article and any fines assessed in respect of such non-compliance are not paid within 30 days of the assessment or if the city is required to send personnel to ensure compliance with any provision of this article. The city shall be authorized to collect against the bond or letter of credit all fees, fines, and penalties; together with expenses incurred by it with respect to such personnel, including, but not limited to, the costs associated with the investigation and determination of the violation;

(11) Proof that the applicant has contracted with one or more small business enterprise(s) (as a consultant, joint-venture partner, vendor or otherwise) to which ten percent or more of the applicant's operating expenses would be paid in the event the applicant is approved as a qualified applicant and obtains a permit for a mural and that the applicant consents to submitting financial records demonstrating compliance with this provision; and

(12) Proof that the applicant is a licensee.

An individual, business, building owner, or affiliate of an individual, business, or building owner may not apply for a mural permit if that person or entity has failed to fully resolve and close any notice of violation or open code enforcement matter of any section of this Code or zoning ordinance as amended (the "zoning ordinance") prior to the submission of the application for participation in the lottery. Furthermore, if a prospective site or building has displayed a mural or outdoor advertising sign in violation of the zoning ordinance within five years prior to the date of the lottery, the qualified applicant shall tender, as a result of such non-compliance, a partially refundable fee in the amount of three times the qualification fee, of which $10,000.00 may be refunded, if the application is not approved.

Unless otherwise indicated, all proof required to be submitted by this section may be in the form of an affidavit signed by the applicant or a duly authorized representative of the applicant. Upon the submission of all items required to be submitted under this section 62-603, the city manager or designee shall review and approve or deny, no later than 30 days after its submission, the applicant's application for qualification as a qualified applicant. If the application is denied, the city manager or designee shall advise the applicant in writing of the reasons for the denial of the application. The applicant must cure all defects within 15 days of such notification.

(13) Proof that the applicant has no outstanding fees, fines, or liens for any amounts owed to the city, including, but not limited to, business tax receipt fees, certificate of use fees, code enforcement fines or liens, fire liens, unsafe structure fines or liens, or any other fee, fine, penalty, or lien due and owing to the city.

(b) Throughout the course of a year, any new applicant(s) can become a qualified applicant pursuant to subsection 62-603(a) above to be able to participate in a new lottery if a mural permit becomes available and a new lottery is announced. Once an applicant is certified as a qualified applicant, then that qualified applicant shall be permitted to participate in subsequent lottery(ies) without the need to reapply for qualification, but must show proof thereof as to the continued status as a qualified applicant.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-604. Mural permit required; application for a mural permit by a qualified applicant.

Murals may not be erected, hung, placed, posted, painted, displayed, or maintained in the city except as provided by this division. The city shall issue no more than 45 mural permits at any one time; however, no more than 25 mural permits may be issued at any one time and in any one city commission district. An applicant shall submit to the city manager or designee a single permit application listing each and every site sought to be permitted at such time.

A qualified applicant's permit application shall contain the following for each site sought to be permitted:

(1) Dimensioned elevation drawing and photo of the wall where the mural is to be located.

(2) A colored drawing or colored computer simulation depicting the mural face.

(3) Two photographs or two computer simulations depicting the wall and the mural superimposed on the wall.

(4) A certified spacing survey showing compliance with this article, if applicable.

(5) Copy of the city's zoning atlas where the mural is to be located.

(6) Payment of a non-refundable administrative fee in the amount of $500.00.

(7) A memorandum of lease, sworn to by affidavit, of an executed and enforceable lease for the site sought to be permitted.

(8) The address and the folio number of the subject building and the specific wall on the building upon which the mural would be attached.

(9) Proof that the building where the mural is to be placed is in compliance with applicable laws, as defined herein, and does not have any outstanding civil violations of this Code or any liens due to the city.

(10) Completion by the applicant of the city indemnity and hold harmless agreement as defined in this division, in a form approved to by the city attorney.

(11) Mural permits shall require the applicant notify: the abutting property owner(s) of the new location, the homeowner and neighborhood associations registered with the neighborhood enhancement team responsible for the new location, and the city commissioner of the district where a mural is proposed.

(12) Proof that the property, the building, and each individual wall where the mural is to be placed has not displayed an illegal mural, banner, sign, or any type of outdoor advertising in the city by receiving a notice of violation, any summons to appear, or a ticket for any illegal mural, banner, sign, or any type of outdoor advertising in violation of chapter 62 or Miami 21 since April 20, 2008.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13390, § 2, 6-13-13; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-605. Approval process for permit.

From time to time, as the need for a new lottery arises, the following shall be the procedure followed for the approval of a mural permit:

(1) The city manager or designee shall notify all qualified applicant(s) of the date and time of all lottery rounds. There shall be one lottery for each round of approvals commencing with the highest priority

site submitted by each qualified applicant. The number of rounds scheduled shall equal the greatest number of lease sites submitted in any single application.

(2) Each qualified applicant will receive one assigned number through the lottery process for each round.

(3) Each qualified applicant may only submit one application which shall include each distinct wall sought to be permitted. If more than one permit is sought, the qualified applicant shall list the walls sought to be permitted.

(4) An affiliate of a qualified applicant shall not be an affiliate of another qualified applicant.

(5) For each round, the city manager or designee shall review each qualified applicant's site in the order of assigned number pursuant to the lottery for each specific round. At the end of the selection made at each round, a qualified applicant may reprioritize the list of sites.

(6) In the numerical order assigned to each qualified applicant for a given round, the city manager or designee shall review the first priority site for each qualified applicant and shall conditionally approve sites meeting the required criteria. Thereafter, the city manager or designee shall, in the numerical order assigned to each qualified applicant for the immediate subsequent round, review for conditional approval a site listed by the qualified applicants and so on.

(7) In the event that a site is determined to not meet the required criteria, the next eligible site in the qualified applicant's list, if any, shall be reviewed for conditional approval.

(8) Locations will be approved until a maximum of 45 sites have been approved.

(9) Proof that each individual wall sought to be permitted exists and is fully built, and that the property, the building, and each individual wall where the mural is to be placed has not been used to display a illegal mural, banner, sign or any type of outdoor advertising in the city by receiving a notice of violation, any summons to appear, or a ticket for any illegal mural, banner, sign, or any type of outdoor advertising in violation of chapter 62 or Miami 21 since, April 20, 2008.

(10) The city manager or designee shall advise qualified applicants of the contingent approval of an application for a mural permit, and shall refer all such mural applications to the county for their determination of compliance with the county ordinance. Upon receipt by the city manager or designee of notice from the county confirming compliance with the county ordinance, and the payment of all applicable fees for each conditionally approved application, city manager or designee shall issue a mural permit for each approved site within 30 days from receipt of such notice from the county.

(11) Mural permits shall be granted to the qualified applicants only in accordance with the procedures set forth in this section 62-605.

(12) If a mural permit becomes available, a new lottery will be held during the first week of the following quarter.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-606. Criteria for issuing a mural permit.

As part of the review and qualification process, the city manager or designee shall apply the following criteria:

(1) *Geographical area.* No more than 45 mural permits may be issued and outstanding at any one time. Murals permits shall only be issued within the geographical area, as defined in section 62-602 above.

(2) *Zoning districts.* Murals shall only be permitted within portions of the following zoning districts: T5-O, T6-8, T6-12,

T6-24, T6-36, T6-48, T6-60, T6-80, CI, CI-HD, D1, D2, and D3 as described in the zoning ordinance. Murals outside these zoning districts shall be in violation of this Code and ordinances.

(3) *Spacing between murals and number of murals allowed per building.* A mural shall not be located within 300 feet of another legally permitted mural oriented towards the same side of a street or the State Highway, as applicable. The distance shall be measured in accordance with Rule 14-10.006(4), Florida Administrative Code ("F.A.C.")(2012)(i.e. measured along the edge of pavement of the main traveled way). The spacing requirement provided herein shall be reduced to 150 feet within the City Park West entertainment district.

If two murals are permitted for any one building, they must be on different sides of the building and each such mural shall be required to obtain a separate mural permit for each street front. This section shall not preclude a mural on one building which is contiguous on two sides of the building, commonly referred to as a wrap-around mural. A wrap-around mural shall be counted as one mural for purposes of fees and the maximum number of mural permits which may be issued pursuant to this division.

(4) *Spacing from single family residential district.* The distance of a mural located on any building shall be calculated by measuring the distance of the mural at ground level to the property line of any parcel designated as T-3. A mural shall not be located on a Wall that is within 300 feet of any property zoned T-3.

(5) *Spacing from billboards.* A mural shall not be located within 300 feet of a legally permitted billboard oriented toward the same side of a street or State Highway, as applicable, within the Geographical Area. The distance shall be measured in accordance with Rule 14-10.006(4), F.A.C. (2012). The spacing from mural to a billboard shall be reduced to 150 feet within the boundaries of the Park West entertainment district.

(6) *Mural size.* Murals shall be allowed to cover up to 80 percent of a wall, or 33 percent of a wall if the mural covers windows. In any event, a mural may not be greater than 10,000 square feet.

(7) *Mural commercial message size.* The mural face shall be predominantly pictorial with text limited to no more than 15 percent of the mural face to be written copy. Corporate logos on the mural as a stand-alone emblem and/or product, shall not be considered part of the written copy to be limited to 15 percent.

(8) *Illumination.* The illumination of a mural shall only be by indirect lighting, and shall only be permitted from 6:00 p.m. to midnight Standard Time and 7:00 p.m. to midnight Day Light Savings Time, and only in accordance with Miami-Dade County Code Sections 33-46 and 33-107, as amended.

(9) *Location.* Murals shall be placed only on walls.

(10) *Public safety.* Mural faces shall not have any moving or animated parts, or any other electronic movements, and shall not be illuminated in such a manner so as to cause glare or to impair the vision of motorists or otherwise distract motorists and interfere with their ability to safely operate their vehicles. Murals shall also comply with all applicable laws, rules and regulations of the federal, state and county governments; and in addition, any proposed amendments to this division shall be consistent with applicable federal, state and county laws and ordinances in effect at the time of such amendment.

In the event the National Hurricane Center issues a hurricane warning to the county, the permittee shall remove all murals within 24 hours of the issuance of a hurricane warning. In the event a mural is not so removed, enforcement

proceedings shall immediately commence pursuant to section 62-612 and chapter 2 of the City Code.

(11) *Adult content.* Adult content, as defined in the zoning ordinance, shall be prohibited on mural.

(12) *Unoccupied buildings.* A mural shall be permitted on an unoccupied building only if the building possesses a valid city permanent certificate of occupancy, certificate of use, or a 40-year certification, if applicable. In order to promote the use of efficient building spaces, when commercially viable, the holder of the mural permit shall work with the building owner and the building, zoning and planning departments so that as soon as commercially reasonable, the mural will not be the primary permit active at the location. If the holder of the mural permit fails to comply with such requirements, the mural permit holder will be required to transfer its mural permit from such building to another qualified location.

(13) *Term and recertification of each qualified applicant.* Once the mural permit is issued and continuously is in compliance with the fee provisions of sections 62-607 and 62-609, and all other provisions of this division, the mural permit will be valid. In the event that the permittee fails to comply with any provision in this division and/or is determined to be in violation in accordance with section 62-612, the specific mural permit(s) in violation shall be forfeited and available to be included in a lottery. The issuance of a mural permit under this division does not create a vested right or proprietary or compensable interest in any permit for any permittee. Any and all costs and fees associated with the acquisition of mural permits, shall be deemed acceptable to the permittee.

(14) All qualified applicants shall be required by September 1 of the fifth permit year, to re-certify all requirements in this division. This shall include a re-qualification fee in the amount of $1,500.00; proof of valid public liability insurance; copies of all current business tax receipts; proof of gross revenues; proof of current bond or letter of credit and proof that the permittee is in good standing with the city and county, including, but not limited to, Code violations. In the event that the permittee, is not able to comply with this recertification provision, the permittee's mural permits shall be revoked and included in a lottery.

(15) No mural permit or relocation shall be approved unless the property, the building, and each individual wall where the mural is to be placed has not displayed an illegal mural, banner, sign or any type of outdoor advertising in the city by receiving a notice of violation, any summons to appear, or a ticket for any illegal mural, banner, sign, or any type of outdoor advertising in violation of chapter 62 or Miami 21 since April 20, 2008.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13390, § 2, 6-13-13; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-607. Permit fees.

(1) *Permit fee.* The permittee shall pay an annual permit fee equal to $1.00 per square foot of mural face multiplied by 12 months per year for each mural permit which the fee shall, in no event, be less than the minimum $48,000.00 or greater than the maximum $120,000.00 per annum ("permit fee"). The initial mural permit fee shall be due in its entirety within ten business days of the approval of the mural permit. In the event any permit fee is not paid, the city shall immediately rescind the mural permit. The permit fee is in addition to any non-refundable fees charged pursuant to this article. When new mural permits are issued, the initial permit fee may be prorated accordingly by the city manager or designee in order to maintain conformity with the scheduled permit fee quarterly payments.

(2) *Renewal of permit fees.* The permittee shall pay an annual permit fee calculated in the following manner: The permit fee may be paid in quarterly installments, every three months, for a total of four payments per annum. Mural permits

shall be void if quarterly payments are not received within ten business days after each quarterly payment is due. First quarterly payment is due on September 1, then December 1, March 1 and June 1 of each year. The permit fee does not include copy change fees which are due in their entirety on September 1 of each year.

(3) *Annual administrative fee.* On September 1 of each year, permittees shall be required to pay an annual administrative fee for each mural permit equal to 1/24th of their annual permit fee.

Along with the first quarter permit fee due by September 1 of each year, each permittee shall submit demonstration of up to date documentation of public liability insurance as required in subsection 62-603(4), continued effectiveness of a bond or letter of credit in the amount of $500,000.00 as required in subsection 62-603(10) and affidavit of compliance with the subsection 62-603(9) requiring compliance with mural regulations. Late payments shall accrue interest at the rate of 18 percent for 45 days. If payment is not received by the 45th day, the city shall immediately rescind the mural permit.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-608. Approval by the city manager or designee.

The city manager or designee shall be responsible for the approval of all mural permits. The city manager or designee may approve, approve with modifications, or deny a permit application upon a finding that the application does or does not meet the applicable criteria set forth in this division.

The city manager or designee shall keep an updated map and photos depicting the locations of all approved mural permits.

A lottery winner shall submit a mural permit application with the applicable fees within 30 days of winning the lottery. Failure to do so, shall result in the rescission of the lottery award by the city manager or designee.

A permittee shall have 60 days from the issuance a mural permit to install a mural at the approved site. Should the permittee fail to install the permitted mural within the 60-day period, the city manager or designee shall rescind the mural permit.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-609. Copy change and location change applications.

(a) *Copy change application.* An annual copy change fee of $6,000.00 shall be paid for each permit. Thereafter, a permittee may change the mural face by filing a copy change application and paying related fees. Such application shall be submitted to the city manager or designee and include the following:

(1) A colored drawing or colored computer simulation depicting the mural face.

(2) Two photographs or two computer simulations depicting the wall and the mural superimposed on the wall.

(3) An affidavit from the permittee affirming that (a) the change of copy will be limited to a single commercial message; (b) the mural will be fastened in the same manner as the original mural permit; and (c) the permittee will comply with all other conditions of the mural permit.

The city manager or designee shall, within five business days after receipt of the copy change application, have the opportunity to deny with written notice. A copy change application that is not denied in the time provided shall be deemed an approval. A written denial shall be provided to the permittee indicating the reasons for the denial. The city manager or designee shall not approve a change to the mural face if such approval results in an increase of any of the linear dimensions of the previously permitted mural face.

(b) *Location change application.* A mural permit shall be transferable to a new location only if the permittee submits a location change application and such application are approved by

the city manager or designee. The city manager or designee shall approve such application only if:

(1) The location change is for cause, which shall be limited to:

a. The lease for the location of the mural permit is cancelled due to circumstances not within the permittee's control or that were not reasonably foreseeable to the permittee when it submitted its permit application or the lease is not renewed upon the natural expiration of the term of the lease;

b. The building or structure where the mural is located is demolished, sold, destroyed, or renovated; or

c. An intervening building or structure is constructed which substantially diminishes the visibility of the mural.

(2) The new location for the mural is approved by the city manager or designee in accordance with the provisions of sections 62-604 and 62-606.

(3) The permittee pays a non-refundable administrative fee in the amount of $500.00, and a location change fee in the amount of $1,000.00, which location change fee shall be refunded if the application is denied.

The city manager or designee shall, within 20 days after receipt of the location change application, approve or deny the location change application in accordance with the provisions of this article. A written denial shall be provided to the permittee indicating the reasons for the denial and refunding the location change fee.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-610. Assignment.

Upon the payment of a $2,500.00 assignment fee, a mural permit may be transferred to an entity found to be a qualified applicant by the city manager or designee. No applications for assignment will be received or processed if the assignor or assignee, or the mural proposed for transfer, has been issued a notice of violation, summons to appear, or ticket for any illegal mural, banner, sign, or any type of outdoor advertising in violation of chapter 62 or Miami 21.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-611. Exemptions.

Temporary permits for signs, not governed under this division, placed on government-owned buildings may be granted by the city manager or designee and shall be exempt from the provisions of this article. A temporary permit may only be granted for signs depicting special events with citywide or countywide significance, and shall be granted for a period not to 14 days, except that the city manager or designee may, for good cause, grant one extension for a period not to exceed ten days.

Other than as exempted above in this section 62-611, there shall be no exemption from this article for a mural placed on government-owned buildings, and such mural shall be subject to the provisions of this article, including, but not limited to, the maximum number of mural permits that may be issued by the city manager or designee.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-612. Enforcement.

Enforcement of this division shall be by chapter 2, article X, Code enforcement or any other remedies as provided by law and as further stated herein.

In the event of a violation of the terms of this division, including the erection of a mural without a permit, a civil penalty may be assessed or enforcement proceedings may be instituted with the city's code enforcement special masters. Each violation shall carry a civil penalty of $1,000.00 per day or such greater penalties as are permitted by the law. The city may employ all penalties and remedies set forth in chapter 2, article X entitled "Code enforcement." This provision is supplemental to all other remedies and penalties provided by law. Decisions of the code enforcement special master shall be final and may be

appealed to a court of competent jurisdiction within the times and in the manner provided by the Florida Rules of Appellate Procedure, and the laws of the state and this Code.

The city shall be authorized to collect against the bond or letter of credit all fees, fines and penalties, as well as all expenses incurred by the enforcement of this article.

In the event a permittee is found to be in non-compliance by the code enforcement board or special master of the city or the county equivalent for any mural located outside of the city, any and all mural permits issued to such permittee pursuant to this article shall be immediately rescinded and the permittee shall forfeit the right to apply for any subsequent mural permits. A notice of rescission shall be provided to the permittee, and require the permittee to remove all murals permitted pursuant to this division within five days of receipt of such notice. If the permittee fails to remove the mural(s) after receipt of such notice, enforcement proceedings and fines shall be immediately initiated in accordance with section 62-612.

A mural that has been erected without a valid mural permit shall be removed within 24 hours of the building owner's receipt of notification from the city that the mural is in violation of the City Code. The violation will be scheduled on the next available code enforcement board or special master agenda within 30 days. If the mural erected without a valid mural permit poses a threat to the public health, safety, or welfare, the city, by and through its designee, shall be permitted to enter the building premises in violation and remove the mural. In the event the code enforcement board or special master finds that the mural was not in compliance with City Code at the time the citation was issued, any fines shall accrue from the date of notification of the violation and shall not be mitigated or reduced by the city, the code enforcement board, and/or the special master. Removal of the mural after issuance of a notice of violation, summons to appear, or a ticket shall not be a defense or deemed to be compliance with the Code, and the code enforcement board or special master shall find a violation of City Code if the mural was not in compliance with City Code at the time of issuance of the notice of violation, summons to appear, or a ticket. If any property, building, or individual wall has displayed an illegal mural, banner, sign, or any type of outdoor advertising in the city by receiving a notice of violation, any summons to appear, or a ticket for any illegal mural, banner, sign, or any type of outdoor advertising in violation of chapter 62 or Miami 21, the property shall not thereafter be an eligible mural location for five years from the date of the issuance of the notice of violation, summons to appear, or a ticket. No applications or requests by for a mural permit, assignment, or any other request pursuant to this division shall be accepted or processed for a qualified applicant from the date of issuance of notice of violation, any summons to appear, or a ticket for any illegal mural, banner, sign, or any type of outdoor advertising in violation of chapter 62 or Miami 21. No individual or entity that has displayed an illegal mural, banner, sign, or any type of outdoor advertising in the city by receiving a notice of violation, any summons to appear, or a ticket for any illegal mural, banner, sign, or any type of outdoor advertising in violation of chapter 62 or Miami 21 shall be eligible to apply for a mural permit, assignment, or any other authorization pursuant to this division for five years from the date of the notice of violation, summons to appear, or a ticket.

Any costs incurred pursuant to this division, separate from code enforcement liens, incurred in the removal of murals shall be a special assessment lien imposed pursuant to this division and shall be a lien greater in dignity to all liens, excepting IRS ta liens. Special assessment liens created pursuant to this division may be discharged and satisfied by paying to the city the amount specified in the notice of lien, together with interest thereon from the date of the filing of the lien computed at the maximum statutory interest rate, together with the administrative costs, filing and recording fees and fees paid to file a satisfaction of the lien in the public records.

The violation for a mural erected without a valid mural permit shall be enforceable against any one or more of the following: the individual or entity operating the mural, the individual or

entity that erected the mural, the owner of the property upon which the mural is erected, the commercial sponsor that is the subject of the mural, or the individual or entity that owns or licenses the product advertised in the mural. For any mural erected without a valid mural permit, the code enforcement board or code enforcement special master shall apply a rebuttable presumption that any of one or more of these entities had knowledge that the mural was erected without a valid mural permit in violation of City Code, and may determine that the violation shall be enforced as multiple individual violations against each entity, with each individually and jointly and severally liable for penalties and compliance. In the case of individuals or entities determined to be in violation that do not own the property where the violation is determined to have occurred, monetary penalties shall be attached to any business tax receipt maintained by such individual or entity in the city, and payment of such penalties shall be required prior to renewal of any such business tax receipt.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13486, § 2, 10-23-14)

Sec. 62-613. Maintenance.

In the event a city code enforcement inspector finds that any mural permitted pursuant to this article is not being maintained in good repair or appears faced, torn, or in similar condition of deterioration, the code enforcement inspector shall send written notification of their findings to the permittee and the city manager or designee and shall order the permittee to repair the mural within ten days after receipt of such written notice. In the event the permittee fails to repair the mural to the satisfaction of the code enforcement inspector, the city manager or designee shall initiate proceedings to rescind the mural permit under section 62-612. Notice shall be effectuated pursuant to chapter 2, article X, Code enforcement.

The building owners shall assure that each building/structure for which a mural permit has been issued shall be throughout the term of the permit in full compliance with all applicable federal, state, county and city laws and regulations including, without limitation, building, life/safety, electrical, and similar technical codes, minimum housing, land use and zoning, sanitary, solid waste, storm water, water and sewer, and such other applicable laws as further the public health, safety and general welfare.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-614. Conflict.

Notwithstanding any city ordinance to the contrary, this article shall exclusively control the legality, permitting, and approval process for murals in the city. Only murals authorized by this division shall be permitted in the city. Any murals not so authorized are hereby prohibited.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-615. Rescission.

In the event this division is rescinded by the city commission in its entirety, all murals approved pursuant to this article shall be removed within 60 days from the date of such rescission or within the time for removal set forth in the county ordinance, whichever is sooner.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-616. Appeals.

Any decisions of the city manager or designee pursuant to this article may be appealed to the city commission.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-617. Opt-out provision.

The city opts-out of chapter 33, article 6, division 5 of the Miami-Dade County Code of Ordinances, as amended, per section 33-121.11 as applicable to murals, but expressly retains and adopts such regulations relating to other types of off-site advertising. The city has adopted the rules contained in this article, to regulate murals within the urban core and in proximity to expressways.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-618. Compliance with agreement and this article for customary use for local zoning for murals under the Highway Beautification Act.

Subject to compliance with all other city requirements, all murals which will become non-

conforming pursuant to the agreement and this division are subject to the following conditions unless revoked or rescinded by the city.

(a) Existing murals as of February 19, 2014 within the Park West entertainment district. Existing murals within the Park West entertainment district are depicted on a map maintained on file in the city clerk's office and the office of zoning. Murals which are legally permitted yet not in compliance with the spacing requirements set forth in the agreement and this division shall continue to be recognized as permissible mural locations and are deemed legally non-conforming with respect to spacing requirements until the mural permit is revoked, rescinded, or transferred to a new location.

(b) The permit number, date of issuance, and current location for all existing murals as of February 19, 2014 outside the Park West entertainment district are listed on Exhibit B.

On or before February 19, 2024, all murals listed on Exhibit B shall be recertified to confirm compliance with spacing requirements. The permittee shall submit a signed and sealed survey to prove compliance with the spacing requirements set forth in the agreement and this division on or before January 9, 2024.

In the event of a conflict as to spacing requirements between murals listed on Exhibit B, on or before January 23, 2024, the city shall issue notices of rescission of mural permits in the order of most recently issued mural permit first.
(Ord. No. 13486, § 2, 10-23-14)

DIVISION 6. BILLBOARDS

Sec. 62-618.1. Controlling provisions.

The provisions of this division shall supersede and control over the provisions of any other law, ordinance, rule or regulation of the city.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-618.2. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Billboard. A freestanding outdoor advertising sign, which is internally illuminated, externally illuminated or non-illuminated, is bulletin-size, poster-size, or any other size, and is supported by a sign structure; however, a media tower, as defined in section 10-2, shall not be considered a billboard.

Billboard, bulletin-size. An outdoor advertising sign 14 feet by 48 feet in dimension, not including embellishments.

Billboard, poster-size. An outdoor advertising sign 12 feet by 25 feet in dimension, not including embellishments.

Gateways. Those areas of the city designated on a map on file with the city clerk, incorporated herein by reference, where, irrespective of any other provision of law, billboards are not permitted. The gateways map is an attachment to City Commission Resolution No. 08-0258 and is labeled "08-00431-Exhibit 2."

LED or *light emitting diode.* A semiconductor diode that emits light when conducting current and is used in electronic equipment, especially for displaying readings on digital watches, calculators, displays, signs, etc.

Outdoor advertising sign. Sign where the sign copy does not pertain to the use of the property, a product sold on the property, or the sale or lease of the property on which the sign is displayed, and which does not identify the place of business operated on the property on which the sign is displayed as purveyor of the merchandise or services advertised on the sign.

Sign, internally (or directly) illuminated. A sign containing its own source of artificial light internally, and dependent primarily upon such source for visibility during periods of darkness.

Sign structure. A structure erected exclusively for the display or support of a billboard.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-618.3. New billboards prohibited.

Without exception, no new freestanding "billboards," as defined herein, shall be permitted anywhere within the territorial boundaries of the city.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-618.4. Relocation and reconstruction of existing billboards permitted.

Pursuant to the authority granted to the city by the Florida Legislature under F.S. § 70.20, to further the declared public goals of reducing the number of billboards within the city, including it's neighborhoods, to prevent the proliferation of illegally constructed billboards throughout the city, and to promote traffic safety, without the expenditure of public funds, unexpired permits for existing billboards, of any size, may be amended to authorize the relocation and reconstruction of a billboard, pursuant to a relocation and reconstruction agreement, on terms agreeable to the sign owner and the city.
(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-618.5. Relocation and reconstruction agreements—Requirements.

The following enumerated requirements must be contained in any relocation and reconstruction agreement authorized by this division. Except for the required terms, the city manager, or his/her designee, shall otherwise negotiate the terms of any relocation and reconstruction agreement deemed in the best interest of the city, and that reasonably advance the city's purposes and public goals as delineated in the preamble to this ordinance. No relocation and reconstruction agreement shall be effective without the prior approval of the city commission by resolution.

(1) An amended permit will only allow a relocated and reconstructed billboard along the following enumerated portions of the following interstate highways and state roadways:

a. North and south sides of State Road 836 between N.W. 7th Avenue and N.W. 45th Avenue;

b. North and south sides of State Road 112 West of Interstate I-95;

c. West and east side of Interstate I-95 between S.W. 1st Avenue and N.W. 81st Street;

d. North and south side of Interstate I-195 West of Biscayne Boulevard; and

e. North and south side of Interstate I-395 West of Biscayne Boulevard.

(2) Notwithstanding any provision of subsection (1) above, an amended permit shall not allow a billboard to be relocated and reconstructed: (a) along those portions of interstate highways and state roadways, which are located within those areas designated by the city as "gateways"; or (b) within the circular area defined by the 1,500-foot radius emanating from the point of intersection of the centerline of the Southbound lanes of Interstate 95 and the centerline of Coral Way.

(3) A permit may only be amended for a proposed relocated and reconstructed freestanding bulletin-size billboard, and then:

a. In the case of a proposed sign structure with one externally illuminated bulletin-size billboard sign face, in exchange for the removal of one existing, legal, and freestanding sign structure, with two bulletin-size billboard sign faces;

b. In the case of a proposed sign structure with two externally illuminated bulletin-size billboard sign faces, in exchange for the removal of two existing, legal, and freestanding sign structures, with two bulletin-size billboard sign faces each, and the corresponding surrender to the city, and the permanent cancellation of, the permit issued by the city for the billboards and sign structure not being amended;

c. In the case of a proposed sign structure with one LED or internally

illuminated bulletin-size billboard sign face, and one externally illuminated bulletin-size billboard sign face, in exchange for the removal of four existing, legal, and freestanding sign structures, with one or two bulletin-size billboard sign faces each, and the corresponding surrender to the city, and the permanent cancellation of, the permits issued by the city for the billboards and sign structure not being amended;

d. In the case of a proposed sign structure with two LED or internally illuminated bulletin-size billboard sign faces, in exchange for the removal of eight existing, legal, and freestanding sign structures, with one or two bulletin-size billboard sign faces each, and the corresponding surrender to the city, and the permanent cancellation of, the permits issued by the city for the billboards and sign structure not being amended;

(4) To satisfy the removal requirements in subsection (3) above, two poster-size billboards may be removed in place of each bulletin-size billboards required to be removed.

(5) Except for lands owned by any governmental entity, an amended permit shall not allow relocation and reconstruction of a billboard on land located in a zoning district more restrictive than T5-0.

(6) Billboards relocated and reconstructed pursuant to amended permits shall comply with all technical building codes and regulations, all setback requirements, all FDOT regulations, and all encroachment restrictions.

(7) All columns, foundations and overhangs for any billboard or sign structure relocated and reconstructed with an amended permit will be placed within the base building line, as provided in chapter 54, article V, for the property upon which it will be relocated and reconstructed.

(8) All billboards relocated and reconstructed with an amended permit shall be supported by sign structures of monopole construction and designed as per the example attached; I-beam construction is prohibited.

(9) During the existence of the pilot program authorized by F.S. § 479.07(9)(c), all billboards relocated and reconstructed with an amended permit shall be spaced no closer than 1,000 feet from the nearest billboard erected on the same side of the interstate, federal-aid primary or other highway, or road. Upon the expiration or repeal of the pilot program authorized by F.S. § 479.07(9)(c), all billboards thereafter relocated and reconstructed with an amended permit shall be spaced no closer than 1,500 feet from the nearest billboard erected on the same side of the interstate, federal-aid primary or other highway, or road.

(10) All billboards relocated and reconstructed with an amended permit shall require the written consent of the owner of the real property where it will be located. The sign owner shall bear the sole risk of finding, securing and maintaining the sites for billboards relocated and reconstructed pursuant to amended permits.

(11) Any and all rights acquired by the sign owner under an amended permit are not assignable, nor transferable, unless the assignee shall agree to be bound by the terms of the relocation and reconstruction agreement, and the assignment or other transfer is previously approved by resolution of the city commission.

(12) Any sign owner who, at the time of application, owns or operates an illegal billboard or an illegal sign structure within the city, shall not qualify for the amendment of a permit under this division.

(13) No billboard relocated and reconstructed by an amended permit shall have more than two billboard sign faces per sign structure.

(14) Embellishments to the size of a billboard relocated and reconstructed pursuant to an amended permit is prohibited.

(15) At the time the city is requested to sign-off on FDOT (Form 575), and prior to the city's execution of the aforesaid FDOT Form, the applicant must demonstrate site control of the signs to be removed under subsection (3) above.

(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 62-618.6. Reconstruction of existing billboards.

Notwithstanding any provision herein to the contrary, a currently existing, legal, freestanding billboard, whether bulletin or poster size, may be reconstructed in its existing location, or on the same parcel of property, pursuant to a reconstruction agreement between the sign owner and the city, approved by resolution of the city commission.

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-618.7. Relocation and reconstruction agreements—Previously existing agreements.

Prior to the effective date of Ord. No. 13181, pursuant to the powers granted the city under F.S. § 70.20, the city entered into relocation and reconstruction agreements, concerning billboards located within the city, on terms agreeable to the sign owners and the city, with the following sign owners: Carter Pritchett Hodges, Inc., d/b/a Carter Outdoor Advertising, Inc. ("Carter"); Clear Channel Outdoor, Inc. ("CCO"); and CBS Outdoor, Inc. ("CBS"). The terms of these preexisting relocation and reconstruction agreements between the city and Carter, the city and CCO, and the city and CBS, shall remain in full force and effect, the terms of which shall govern the billboard inventory enumerated in these agreements, and, furthermore, section 62-618.5 hereof shall not apply to those billboards.

(Ord. No. 13311, § 2, 2-23-12)

Secs. 62-618.8—62-618.20. Reserved.

DIVISION 7. RESERVED*

Secs. 62-618.21—62-618.33. Reserved.

DIVISION 8. TEMPORARY BANNERS

Sec. 62-619. Generally.

(a) A temporary banner shall be installed and maintained only as authorized by and in accordance with this division. A temporary banner includes any plaque, flag, piece of cloth, placard or the like, that is displayed for a period not to exceed 30 days and is related solely to an upcoming or currently occurring special event. A temporary banner not authorized pursuant to this division is strictly prohibited.

(b) Only one temporary banner is allowed per location per year.

(c) Any of the time limitations in this division may be waived by an affirmative vote of the city commission.

(d) A temporary banner related to an event, activity, exhibition, or performance at a not-for-profit or government owned building shall not be subject to the time limitation set forth in subsection (a) of this section.

(Ord. No. 13311, § 2, 2-23-12)

Sec. 62-620. Permitting process.

(a) Applications and permits. No temporary banner, unless exempted by the applicable provisions of the zoning ordinance, shall be erected, constructed, posted, painted, altered, maintained, or relocated, except as provided in this section

*__Editor's note—__Ord. No. 13553, § 1, adopted September 24, 2015, repealed the former division 7, sections 62-618.21—62-618.33 in its entirety, which pertained to omni media tower regulations, and derived from Ord. No. 13311, § 2, adopted February 23, 2012.

and until a temporary banner permit has been issued by the city manager or designee. Before any temporary banner permit is issued, an application for such permit shall be filed together with three sets of drawings or specifications (one to be returned to the applicant) as may be necessary to fully describe the location, method of construction, type of materials, manner of illumination, method of erection, securing or fastening, and duration of time the temporary banner will be displayed. As part of the review process for approval, the city manager or designee shall apply the following criteria:

(1) *Illumination.* A temporary banner which is illuminated shall only be allowed if the transect zone allows a permanent sign to be illuminated. Any temporary banner that is electrically illuminated shall require a separate building and electric permit and inspection. The illumination of a temporary banner shall occur only between the hours of 6:00 p.m. and midnight.

(2) *Size.* A temporary banner may cover up to 80 percent of a windowless wall, or 33 percent of a wall if the banner covers windows. No temporary banner shall exceed 5,000 square feet.

(3) *Location.* A temporary banner shall be erected solely at the location where the special event, which it is related to, is taking place or within 100 feet of such location.

(4) *Duration.* A temporary banner may be erected no more than 30 days prior to the commencement of the special event. However, in no event shall a temporary banner be erected more than 30 days.

(5) *Commercial message.* The temporary banner shall be predominantly pictorial with text limited to 25 percent of the banner face.

(6) *Public safety.* A temporary banner shall not have any moving or animated parts, electronic or otherwise, and shall not be illuminated so as to cause glare, impair the vision or distract motorists and may not interfere with motorists' ability to safely operate vehicles. In the event the National Hurricane Center issues a hurricane watch for Miami-Dade County, the permittee shall remove all temporary banners within 24 hours of the issuance of a hurricane watch. The city is authorized to remove a temporary banner in the event the permittee fails to do so. Should the city take such action, enforcement proceedings shall immediately commence pursuant to section 62-621 of this division.

(7) *Adult content.* Adult content, as defined in the zoning ordinance, shall be strictly prohibited on all temporary banners.

(b) Fees. An application fee payable to the city must be submitted at the time of application to cover the cost of reviewing the application and the implementation of these regulations based on the following schedule:

(1) $150.00 for any banner that is 100 square feet in size or less.

(2) $300.00 for any banner that is 101 square feet to 1,000 square feet.

(3) $500.00 for any banner that is 1,001 square feet to 2,000 square feet.

(4) $600.00 for any banner that is 2,001 square feet to 3,000 square feet.

(5) $700.00 for any banner that is 3,001 square feet to 4,000 square feet.

(6) $800.00 for any banner that is 4,001 square feet to 5,000 square feet.

(c) Notice. The applicant must send notice of the application in a form approved by the city, by certified mail, at the time of the initial application to the following parties:

(1) All adjacent property owners, including those abutting across the street or alley. In the case of adjacent condominiums, only one notice to the condominium association will be required.

(2) All neighborhood and homeowner associations which are registered with the city manager's office or its designated city

department on a yearly basis that wish to receive a courtesy notice of a temporary banner application in the area where the banner is to be placed.

(3) The district commissioner.

The applicant shall attach the certified mail receipts to the application upon submittal to the city manager or designee.

(d) Review of the application. The city manager or designee shall complete the review of a temporary banner permit application within 45 calendar days after filing, and shall render a decision for approval, approval with conditions, or denial within that time. The city manager or designee may refer the application to all appropriate departments and agencies for any recommendations. The city manager or designee shall review the comments and recommendations of the appropriate departments and agencies in rendering a decision. A determination of denial shall detail specific reasons for the denial. Failure by the city manager or designee to render a decision within 45 calendar days shall be deemed a denial, appealable as provided herein.

(e) The city may revoke the issuance of a temporary banner permit at any time and for any reason.

(f) If the temporary banner permit is denied or revoked, the applicant may file an appeal with the office of hearing boards within 15 days of the decision to deny or revoke said permit. Such appeal shall be heard at the next regular meeting of the planning, zoning and appeals board. Further appeal shall be as authorized pursuant to the Florida rules of court.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 14138, § 14, 2-9-23)

Sec. 62-621. Enforcement.

Failure to comply with the requirements of this division shall subject the violator to code enforcement pursuant chapter 2, article X, as amended, of the City Code as well as an immediate revocation of the temporary banner permit. This section is in addition to any and all other remedies and penalties as provided by law in order to compel compliance with the Code.
(Ord. No. 13311, § 2, 2-23-12)

DIVISION 9. FARMERS' MARKET PROGRAM

Sec. 62-622. Farmers' market program.

(a) *Intent.* In order to encourage economic and community development, promote the health of residents and provide access to nutritious substance, the following program is instituted.

(b) *Definitions.*

Electronic benefits transfer (EBT) is an electronic system that allows a recipient to authorize transfer of their government benefits from a federal account to a retailer account to pay for products received, such as SNAP benefits.

Farmer is a person who grows or has direction over a person who grows at least 75 percent of the products offered for sale at a farmers' market.

Farmers' market is an organized reoccurring operation at a designated location used by farmers of locally-grown products primarily for the distribution and sale of locally-grown agricultural products or a limited amount of non-agricultural locally-grown products. The sale of other food products at such markets shall not disqualify it as a farmers' market provided that such food products meet all applicable federal, state, and local health laws regulating the manufacture and sale of such food products. A farmers' market is not an event. The use of EBT/SNAP benefits at a farmers' market is encouraged.

Locally-grown is a product that is grown, raised, or cultivated within 100 miles of South Florida.

Temporary farmers' market permit is a permit as detailed by this division and in conjunction with division 2 and is valid for a period of six months.

Supplemental nutrition assistance program (SNAP) is a federal-assistance program, formerly

known as the Federal Food Stamp Program, which provides a means for low income individuals and families to buy nutritious food.

(c) *Permitting process.* Notwithstanding any contradictory language in the zoning ordinance, property owners who wish to host a farmers' market must submit an application for a temporary farmers' market permit to be approved by the city manager or designee at least 30 days prior to the date of the farmers' market pursuant to division 2. An applicant must submit a site plan detailing the location of all tables, booths, stands, onsite parking, landscaping, and restroom facilities. Spillover parking into any residential areas is strictly prohibited. Any temporary farmers' market permit may be extended for an additional six-month period for an additional fee as detailed below. No temporary farmers' market permit shall be issued to a property that has any outstanding code enforcement violations or city liens. An applicant who obtains a temporary farmers' market permit shall not be required to obtain a certificate of use or business tax receipt in order to operate pursuant to this section.

(d) *Location.* Farmers' markets shall only be authorized to operate on parcels of land with a minimum of 5,000 square feet.

(e) *Operation.* Farmers' markets shall only be authorized to operate between sunrise and sunset and shall not operate for more than three consecutive days in a week. Farmers' markets shall have to comply with all federal, state, and local regulations and requirements.

(f) *Fees.* Each temporary farmers' market permit for a farmers' market shall cost $500.00. If the farmers' market is hosted by a not-for-profit organization or an organization that accepts EBT/SNAP benefits, the fee shall be $250.00 per permit. The city shall request proof of status as a not-for-profit organization or acceptance of EBT/SNAP benefits. Any renewal of a temporary farmers' market permit shall cost the same as the original fee.

(g) *Enforcement.* All violations shall be subject to code enforcement pursuant to chapter 2, article X, and any other remedies as are provided by law, jointly and severally, including but not limited to the revocation of the permit.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13508, § 2, 3-26-15)

DIVISION 10. GARAGE SALES

Sec. 62-623. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Front yard means an open area extending the full width of the lot upon which the residence is located between the main residence and the front property line.

Garage sale means a sale at which tangible personal property is sold at a single family residence, multifamily residence, school, or place of worship. The term shall include, but not be limited to, "lawn sale," "attic sale," "rummage sale," or "yard sale."

Occurrence means the time-frame given in each individual permit for a period not to exceed two days.

Property owner means the person or entity having title to the real property in question, or the manager of the property when the property owner has authorized the manager to maintain and operate the property and has so informed the city manager's office or its designated city department in writing. For condominium buildings, the term "property owner" shall mean the condominium association.
(Ord. No. 13449, § 3, 4-24-14; Ord. No. 14138, § 14, 2-9-23)

Sec. 62-624. Permit.

(a) No property owner shall conduct a garage sale within the city without first obtaining a permit.

(b) All persons wishing to obtain a garage sale permit shall submit an application with the city manager's office or its designated city department. A permit may be obtained at no cost to the property owner.

(c) Applicants for garage sale permits must provide the following information to the city at the time of application:

(1) Name of the person conducting the garage sale or property owner at which the garage sale will be located if different from the person conducting the garage sale.

(2) Location where the garage sale is to be conducted.

(3) Number of days the garage sale is to be held.

(4) Dates of any garage sales at the subject location within the past 12 months.

(5) Length of time the applicant has resided at, or operated, the subject location.

(6) Owner(s) of the property to be sold if different from the person conducting the garage sale.

(7) Nature of the goods to be sold.

(8) Any previous violations of the City Code in the past 12 months and whether the fines were paid.

(d) Applications for garage sales to be located at multifamily residence buildings, schools, or places of worship must be accompanied by the written permission of the property owner.

(e) Applications for garage sales to be located at single family residences shall be accompanied by proof of residence, which may be a current driver's license, voter registration, or county tax assessor's bill.

(f) All garage sale permit requests must be made no later than 12:00 p.m. of the day prior to the requested date of the sale. Responses to the requests (i.e., permit approval or permit denial) will be issued to the applicant immediately upon review of the application.
(Ord. No. 13449, § 3, 4-24-14; Ord. No. 14138, § 14, 2-9-23)

Sec. 62-625. Conditions for issuance.

(a) A garage sale permit as required by section 62-624 shall be issued for a garage sale located in any one single-family residence, multifamily residence, school, or place of worship building on no more than two occurrences during any 12-month period.

(b) Each garage sale permit must be prominently displayed on the premises upon which the garage sale is held at all times while the sale is in progress.

(c) No garage sale permit shall be issued to a person who has conducted a garage sale without obtaining a permit within the preceding 12 months or who has outstanding unpaid fines imposed pursuant to chapter 2, article X, of the City Code, or to a person applying to conduct a garage sale from a premises where an unpermitted garage sale was conducted within the last 12 months.
(Ord. No. 13449, § 3, 4-24-14)

Sec. 62-626. Time of sale.

Garage sales shall be held only on weekends and holidays during daylight hours. Garage sale dates and time limitations may be waived by an affirmative vote of the city commission
(Ord. No. 13449, § 3, 4-24-14)

Sec. 62-627. Display of merchandise.

(a) All merchandise to be sold at a garage sale shall be displayed in an enclosed room, enclosed garage, or in a carport. At no time shall merchandise be displayed on a public right-of-way or swale area; however, if no enclosed garage or carport exists at the location, merchandise may be displayed on a private driveway, rear yard or portion of the front yard not to exceed 25 percent of the total front yard area. All items used or displayed at a garage sale shall be removed from unenclosed areas by the end of the last day of the sale.

(b) Notwithstanding the provisions of section 31-26 of the City Code, a local business tax receipt is not required in order to conduct a garage sale when a garage sale permit has been obtained.
(Ord. No. 13449, § 3, 4-24-14)

Sec. 62-628. Prohibited merchandise.

Merchandise to be sold at a garage sale shall be merchandise that has been previously used. It shall be prohibited to sell new merchandise or merchandise that is sold in bulk as from a carton, crate, bushel or other container commonly used in retail business. No garage sale permit shall be issued for the sale of merchandise prohibited by this section.
(Ord. No. 13449, § 3, 4-24-14)

Sec. 62-629. Signs.

(a) Signs advertising a garage sale shall not be displayed before 6:00 a.m. of the first day of the sale and shall be removed by 8:00 p.m. of the last day of the sale. A garage sale permit issued pursuant to section 62-624 shall be required in order to display any signs.

(b) No such signs shall be displayed on any public property or right-of-way, and all sign placement shall comply with the provisions set forth in section 54-9 of this Code.

(c) No more than two signs advertising a garage sale shall be permitted. Such signs shall not be larger than 12 inches by 18 inches each.

(d) Notwithstanding the provisions of Miami 21 or section 62-619 of this Code, up to two signs shall be allowed with a valid garage sale permit.
(Ord. No. 13449, § 3, 4-24-14)

Sec. 62-630. Enforcement.

Failure to comply with the requirements of this division shall subject the violator to code enforcement proceedings pursuant to chapter 2, article X, as amended, of the City Code as well as an immediate revocation of the garage sale permit. This section is in addition to any and all other remedies and penalties as provided by law in order to compel compliance with the Code.
(Ord. No. 13449, § 3, 4-24-14)

Secs. 62-631—62-640. Reserved.

ARTICLE XIV. PUBLIC BENEFITS TRUST FUND

Sec. 62-641. Public benefits trust fund; intent.

It is intended that the "Public Benefits Trust Fund" be established in order to collect the cash contributions made according to the Miami 21 Code, as amended, the zoning ordinance of the city, to supplement affordable/workforce housing, public parks and open space, and green building certification shortfalls.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13582, § 2, 12-10-15)

Sec. 62-642. Established.

(a) There is hereby established a trust fund to be entitled the "Public Benefits Trust Fund," into which funds shall be deposited pursuant to this article.

(b) The city commission, upon the manager's recommendation, shall annually allocate funds collected.

(c) All cash contributions allocated by the city commission to support affordable/workforce housing shall be deposited in the affordable housing trust fund for expenditures pursuant to the guidelines adopted by the city commission.

(d) All cash contributions allocated by the commission to support parks and open space shall be deposited in the parks and open space trust fund, as set forth herein, to be expended in accordance with the guidelines outlined therein.

(e) Ten percent of fees collected shall be allocated towards administrating the public benefits trust fund.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 14429, § 2, 1-8-26)

Sec. 62-643. Financial report.

Administration of and a financial report on trust fund receipts and expenditures shall be

prepared annually at the close of the fiscal year by the city manager or his/her designee and presented to the city commission.
(Ord. No. 13311, § 2, 2-23-12; Ord. No. 13676, § 2, 4-27-17)

Sec. 62-644. NRD-1 Public benefits trust fund; intent.

It is intended that the "NRD-1 Public Benefits Trust Fund" be established in order to collect cash contributions made according to the NRD-1 as established in the Miami 21 Code, as amended, the zoning ordinance of the city, to support reinvestment and supplement affordable housing, public parks and open space, and civic space or civil support space within the NRD-1 boundaries.
(Ord. No. 13582, § 2, 12-10-15; Ord. No. 14352, § 2, 2-13-25)

Sec. 62-645. Established.

(a) There is hereby established a trust fund to be entitled the "NRD-1 Public Benefits Trust Fund," into which funds shall be deposited pursuant to this article.

(b) Upon receipt of funds for any project within the NRD-1 boundaries, the city's department of finance shall transfer such funds into the NRD-1 public benefits trust fund. The NRD-1 public benefits trust fund shall be a qualified public depository held by the Business Improvement District ("BID"). The BID may invest surplus funds pursuant to the city's investment policy and F.S. § 218.415.

(c) The Wynwood BID shall, through a five-member committee of the BID, of which one member shall be directly appointed by the city commissioner from District 5, one member shall be directly appointed by the city commissioner from District 2, one member shall be appointed by the city commission, and two members shall be appointed by the BID Board and submitted to the city commission for confirmation, allocate within the NRD-1 boundaries funds collected for purposes consistent with section 62-644. The committee members shall serve three-year terms. Expenditure of funds and any actions in furtherance of the expenditure shall be consistent with the powers and duties of the BID, comply with city procedures for the acquisition of goods and services, and approved within the annual budget of the BID by the city commission.

(d) A minimum of 35 percent of funds collected in the NRD-1 public benefits trust fund shall be allocated towards affordable housing, and shall be expended pursuant to guidelines and procedures established by the city commission. At least 51 percent of the units provided by any affordable housing project awarded funds from the NRD-1 public benefits trust fund shall be restricted during the affordability period for a person or households with income at or below 80 percent of the median income for Miami-Dade County, Florida, as determined by the U.S. Department of Housing and Urban Development.

(e) The NRD-1 public benefits trust fund shall be established for a period of time commensurate with the Wynwood BID as set forth in section 2-1316, and thereafter shall be reviewed by the city commission every three years to determine whether the purposes of the NRD-1 public benefits trust fund have been satisfied, and upon such finding, the NRD-1 public benefits trust fund shall sunset and any funds to be collected and allocated, pursuant to this article and according to the Miami 21 Code, shall revert to the public benefits trust fund, as established in section 62-641 of the City Code.
(Ord. No. 13582, § 2, 12-10-15; Ord. No. 14352, § 2, 2-13-25)

Sec. 62-646. Financial report.

Administration of and a financial report on trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the BID for review and approval by the city commission prior to filing with the city clerk.
(Ord. No. 13582, § 2, 12-10-15)

Sec. 62-647. NRD-2 public benefits trust fund—Intent.

It is intended that the "NRD-2 Public Benefits Trust Fund" ("NRD-2 trust fund") be established in order to collect cash contributions made according to the Wynwood Norte Neighborhood Revitalization District ("NRD-2") as established in Ordinance No. 13114, the Zoning Ordinance of the City of Miami, Florida, as amended ("Miami 21 Code"), to support community reinvestment, including infrastructure to support local busi-

nesses providing neighborhood-oriented goods and services; to address climate change adaptation and resiliency; and to maintain and supplement affordable/workforce housing, public parks and open space, and civic space or civil support space within the NRD-2 boundaries.
(Ord. No. 13984, § 2, 3-25-21)

Sec. 62-648. Same—Established.

(a) The NRD-2 trust fund is hereby established into which funds shall be deposited pursuant to this article.

(b) Upon receipt of funds for any project within the NRD-2 boundaries pursuant to the Miami 21 Code, the city's department of finance shall deposit such funds into the NRD-2 trust fund.

(c) There is hereby established an NRD-2 trust fund committee ("committee") which shall meet, at a minimum, on an annual basis each fiscal year commencing in the fiscal year following the adoption of the NRD-2 trust fund for the primary purpose of recommending allocations of funds received into the NRD-2 trust fund for qualifying reinvestment consistent with the intent set forth in section 62-647 and the criteria contained herein to the city commission for formal approval by resolution.

(1) The committee shall include seven members, each serving one year terms.

a. One member shall be directly appointed by the district commissioner without further action of the city commission;

b. One member shall be directly appointed by the city mayor without further action of the city commission;

c. One member shall be appointed by the city commission;

d. One member shall be appointed by the Miami-Dade County Public Schools without further action of the city commission;

e. One member shall be appointed by the Miami-Dade County Department of Public Housing and Community Development, or its successor agency, without further action by the city commission; and

f. Two members shall be appointed by the Wynwood Community Enhancement Association and submitted to the city commission for confirmation.

(2) Each member shall meet at least one of the following criteria to qualify to serve on the committee:

a. A permanent resident within the NRD-2 boundaries;

b. A property owner of record within the NRD-2 boundaries; or

c. An employee or representative of a business or non-profit community-based organization located within the NRD-2 boundaries authorized to serve on its behalf.

(3) Committee meetings shall be staffed and attended by the city manager or designee.

(d) Expenditure of funds and any actions in furtherance of the expenditure shall be consistent with this article, the NRD-2 standards incorporated in the corresponding appendix to the Miami 21 Code, and all applicable criteria and guidelines adopted from time to time; shall comply with city procedures and laws for the acquisition of goods and services; and shall be approved within the annual budget by the city commission.

(e) A minimum of 35 percent of funds in the NRD-2 trust fund shall be allocated towards existing and new housing on an annual basis and shall be expended pursuant to guidelines and procedures established by the city commission.

(f) The NRD-2 trust fund shall be established for a period of ten years and shall be reviewed by the city commission upon expiration of the ten years and every three years thereafter to determine whether the purposes of the NRD-2 trust fund have been satisfied and upon such finding, the NRD-2 trust fund shall sunset and any funds to be collected and allocated pursuant

to this article and according to the Miami 21 Code shall revert to the public benefits trust fund established in section 62-641 of the City Code.
(Ord. No. 13984, § 2, 3-25-21)

Sec. 62-649. Same—Financial report.

A financial report on NRD-2 trust fund receipts and expenditures shall be prepared annually at the close of the fiscal year by the city manager for review and approval by the city commission and filed with the city clerk.
(Ord. No. 13984, § 2, 3-25-21)

ARTICLE XV. GROUP HOMES

Sec. 62-650. Regulation of group homes pursuant to state law.

(a) The intent of this article is to process the responsible and orderly placement of group homes with 14 persons or less, within the city, pursuant to F.S. chs. 419 or 429, as amended. It is also the intent of this article to monitor initial and continuing compliance of these group homes, on a yearly basis, with regard to state licensing, distance requirements, and compliance with all local, state, and federal laws.

(b) The city will maintain an updated database, within the department of planning and zoning, of all group homes within its municipal boundaries, especially those affecting residential areas, to be updated monthly with the latest information from all participating state agencies.
(Ord. No. 13393, § 2, 6-13-13)

Sec. 62-651. Application for group homes.

(a) Group homes pursuant to this article are defined as those assisted living facilities, community residential homes, adult day care centers, adult family care homes, treatment facilities, or similar group homes, pursuant to F.S. chs. 419 or 429, as amended.

(b) Applicants pursuant to this article are defined as those persons requesting a reservation for a particular location or an application for a particular location in which to open or run or continue to run a group home within the city.

(c) Any reservations or applications shall be reviewed as follows:

(1) Reservations or applications for a group home within the city shall be processed per location for a 180-day period while the applicant submits to the city the required state licensing documents, sworn distance surveys pursuant to F.S. ch. 419, as amended, the city application forms and supporting documents, and any other information requested by the city.

(2) The planning and zoning department will review the information and conduct an independent review of the following:

a. Compliance with the uniform fire safety standards pursuant to F.S. § 633.022, as amended, including but not limited to, a fire marshal inspection of the proposed location.

b. Compliance with the provisions of the Florida Building Code and city zoning ordinance (i.e. Building and zoning verification of the site).

1. The planning and zoning department and the building department will send city inspectors to the location to verify the use of the property is in compliance with the application.

2. Such inspection will include a review as to the amount of residents, uses, and compliance with the building and zoning codes.

c. Compliance with the state licensing agency's requirements;

1. The planning and zoning department will send a city inspector to the location to verify state licensing is valid;

2. The city inspector will follow up with the state agency regarding licensing verification.

d. Compliance with overconcentration (distance review) pursuant to F.S. ch. 419, as amended.

1. The planning and zoning department will send a city inspector to the location to verify and confirm the distance survey complies with F.S. ch. 419, as amended.

2. The city inspector will independently measure the distance requirements.

e. If the applicant requires additional time to process and submit all the requested information above, the reservation or application must be renewed for an additional 180 days. If the process is not completed within the two 180-day periods provided above, the reservation or application will expire and a new reservation or application cannot be processed on that property for 30 days.

f. Such review cost shall be as stated by the Miami-Dade County Code, as amended.

(Ord. No. 13393, § 2, 6-13-13)

Sec. 62-652. Annual zoning renewal for group homes.

(a) Group homes pursuant to F.S. chs. 419 or 429, as amended, shall be reviewed annually for compliance with local, state and federal laws.

(b) They shall be reviewed as follows:

(1) Pursuant to this article, once established as a group home, pursuant to F.S. chs. 419 or 429, as amended, there shall be annual zoning renewals.

(2) These annual zoning renewals are defined as yearly reviews requiring city inspections to receive annual zoning renewal letters after the initial first inspection to establish a group home.

(3) These inspections will ensure the following:

a. Continued compliance with the uniform fire safety standards pursuant to F.S. § 633.022, as amended, including but not limited to, a fire marshal inspection of the established location.

b. Continued compliance with the provisions of the Florida Building Code and city zoning ordinance (i.e. building and zoning verification of the site).

1. The planning and zoning department and the building department will send city inspectors to the location to verify the use of the property is in compliance with the original application.

2. Such inspection will also include a review as to the amount of residents, uses, and continued compliance with the building and zoning codes.

c. Continued compliance with the state licensing agency's requirements;

1. The planning and zoning department will send a city inspector to the location to verify state licensing is valid;

2. The city inspector will follow up with the state agency regarding licensing verification.

d. Continued compliance with overconcentration (distance review) pursuant to F.S. ch. 419, as amended.

1. The planning and zoning department will send a city inspector to the location to verify and confirm the distance survey complies with F.S. ch. 419, as amended.

2. The city inspector will independently measure the distance requirements.

e. The annual uniform fire safety standards inspections, annual building and zoning verification, annual state licensing verification (submittal of annual state license renewal to the city and verification), and annual distance overconcentration review costs shall be as stated by the Miami-Dade County Code, as amended.

(Ord. No. 13393, § 2, 6-13-13)

Sec. 62-653. Name change.

Request for name change on a site will require a new application and review as stated in section 62-651.

(Ord. No. 13393, § 2, 6-13-13)

ARTICLE XVI. ART IN PUBLIC PLACES

Sec. 62-654. Purpose and intent.

(a) This article shall be known, cited, and referred to as the "Public Art Program."

(b) It is the intent and purpose of the public art program to promote the general welfare of the community by uniting citizens through shared cultural and artistic experiences; to enhance the aesthetic diversity of the city through art integrated in architecture, infrastructure, and landscape; to chronicle the city's heritage through the collection and preservation of monuments, artifacts, objects, and documents; to create a cultural legacy for future generations through the curation and exhibition of high quality art; and to develop educational and cultural programs that will further the intent and purpose of the public art program.

(c) The requirements found in this article are design standards based upon the aesthetic needs of the city and its communities and are not intended to be either an impact fee or a tax.

(d) This article shall constitute a land development regulation of the city and any amendment shall be subject to a review and recommendation of the planning, zoning appeals board ("PZAB") and the art in public places board established below.

(e) All terms specified herein shall be as defined in the Miami 21 Code.

(Ord. No. 13657, § 2, 1-12-17)

Sec. 62-655. Art in public places board.

(a) *Establishment.* There is hereby established a board to be known as the city's art in public places board ("AIPPB"). The AIPPB shall consist of nine voting members and two alternate members whose membership, meetings, duties, and other responsibilities are described below.

(b) *Appointments; qualifications.*

(1) No appointment shall be made by the city commission to membership or alternate membership on the AIPPB until the city clerk has given at least 30 days' notice of the vacancies on the city's website and/or in a newspaper of general circulation in the city. The city commission shall solicit and encourage the members of the public and professional and citizen organizations within the area having interest in and knowledge of the purpose and functions of the AIPPB to apply for appointment. At least five days prior to the making of any appointment, the city clerk shall publicly notice the list of names submitted and the names of candidates submitted by the city commission, together with a short statement of the qualifications of each person, prepared and available for public inspection and consideration. No person shall be appointed to the AIPPB whose name and qualifications have not been made publicly available in the manner set out herein. In reaching a decision on an appointment, the city commission shall give due consideration to the qualifications of the candidates.

(2) Nomination and appointment. Each city commissioner shall appoint one board member, the mayor shall appoint one member, and the city commission at-large shall appoint three at large members and two alternate members subject to the criteria established herein. Appointees shall be persons in a position to represent

the public interest, and no person shall be appointed having personal or private interests likely to conflict with the public interest. No person shall be appointed who has any interest in the profits or emoluments of any contract, job, work, or service for the city or is otherwise not qualified pursuant to the provisions of chapter 2 of this Code. Before making any appointment, the city commission shall confirm that the person to be appointed has filed the statement required by section 2-615 of this Code.

(3) Terms of appointment. The terms of appointment shall be the latter of those terms provided in section 2-885 of this Code.

(4) Qualifications. It is intended that members and alternate members of the AIPPB be persons of knowledge, experience, mature judgment, and background; having ability and desire to act in the public interest; and representing, insofar as may be possible, the various special professional training, experience, and interests required to make informed and equitable decisions concerning development of an artistic, culturally enriching, and visually diverse physical environment. To that end, qualifications of members and alternate members shall be as follows:

a. All members shall have an interest and knowledge of the visual and performing arts and the artistic development of the city.

b. Eight board members must be knowledgeable and have a bachelor's, master's, or doctorate degree from an accredited university or college in fine arts, art education, museum curation, architecture, art history, architectural history, urban planning, urban design, landscape architecture, interior design, graphic or product design, music, real estate development, construction management, or finance. Additionally, the following shall apply to the same eight members:

1. Five members shall be chosen from the following fields: fine arts, art education, museum curation, architecture, art history, architectural history, urban planning, urban design, landscape architecture, interior design, and/or graphic or product design;
2. One member shall be a professional artist; and
3. Two members shall be from the following fields: finance, real estate development, and/or construction management.

c. One member and two alternate members must have an interest in the visual and performing arts. Neither of these members is required to have a bachelor's, master's, or doctorate degree. One alternate member shall be a representative of Miami-Dade County Public Schools. The superintendent of schools shall make a recommendation to the city commission on the appointment of the alternate member.

(5) Vacancies.

a. Vacancies in the membership or alternate membership of the AIPPB shall be filled by the city commission and mayor by appointment, in the manner set forth herein and for the unexpired term of the member or alternate member affected. The city commission may appoint an alternate member of the board to a vacancy as a full member of the board without resorting to the procedural requirements of subsection (b)(1) so long as the alternate member meets the qualifications of subsection (b)(4)c.

b. The executive secretary of the AIPPB shall notify the city clerk within ten

days after a vacancy occurs and the city clerk shall promptly transmit such information to the city commission for nomination and appointment in accordance with subsection (b)(1).

(6) Removal.

a. Members and the alternate members of the AIPPB may be removed for cause by not less than three affirmative votes of the city commission.

b. There is hereby established a point system. Each member, including alternate members, of the AIPPB who arrive after the beginning of the first agenda item or leaves before the termination of the last agenda item, at a regularly scheduled meeting of the AIPPB, shall receive one point. Any member of the AIPPB who accumulates more than seven points in one calendar year shall be brought to the attention of the city commission for its consideration of removal of the member.

c. Notwithstanding subsection (b)(6)b. above, any member or alternate member of the AIPPB who is absent, for whatever reason, from more than three or more meetings in one calendar year shall be brought to the attention of the city commission for consideration of removal of the member.

(c) *Functions, powers and duties.* The AIPPB, with the assistance and recommendations of the planning department, public art division, and all other city departments, as necessary, shall have the functions, duties, and powers as follows:

(1) To recommend the public art program guidelines and amendments to the public art program guidelines thereto to the city commission;

(2) To recommend the public art master plan and amendments to the public art master plan thereto to the city commission;

(3) To approve expenditures of the public art fund as proposed by the city manager or his/her designee;

(4) To approve, approve with conditions, or deny proposed installations, dedications, or donations of art, based on the public art program guidelines and the public art master plan, unless the proposed installations, dedications, or donations of art are approved by the city commission pending the approval of a finalized public art master plan and public art program guidelines; and

(5) To act on any other art in public places related matter as assigned by the city commission.

(6) Notwithstanding section 18-115, the AIPPB shall have the authority to accept donations of art in excess of $25,000.00 in accordance with this article.

(d) *Proceedings of the art in public places board ("AIPPB").*

(1) Officers and voting. The AIPPB shall select a chairperson and a vice-chairperson for one-year terms from among its members and may create and fill such other officers as it may determine. The planning director or his/her designee shall attend all meetings of the AIPPB. The office of hearing boards, or its successor, shall be the executive secretary of the AIPPB.

(2) Rules of procedure. The AIPPB shall establish rules of procedure necessary for its governing and the conduct of its affairs, in keeping with the applicable provisions of state law, the City Charter, the City Code, and all applicable resolutions. Such rules of procedure shall be available in written form to persons appearing before the AIPPB and to the public upon request and should be on file with the city clerk. For any quasi-judicial procedures, the provisions established in the Miami 21 Code, the zoning ordinance of the City of Miami, Florida, as amended ("Miami 21 Code"), shall control.

(3) Meetings. The AIPPB shall hold at least one regularly scheduled meeting each month, except the month of August. Other meetings may be set by the AIPPB, and additional meetings may be held at the call of the chairperson and at such other times as the AIPPB may determine. Meetings that are not regularly scheduled shall not be held without at least ten days' written notice. If the agenda for a regularly scheduled meeting does not contain any items which require action by the AIPPB, the executive secretary for the AIPPB may cancel the meeting.

(4) Quorum; public records. A majority of the members who have been appointed shall constitute a quorum. The office of hearing boards shall keep minutes of board proceedings, showing the vote of each member or alternate member, if sitting for a member, or if absent or failing to vote under subsection (d)(5) below, indicating such fact. It shall be the responsibility of the office of hearing boards to handle all procedural activities for all public hearings held by the AIPPB, including the preparation of detailed minutes and official records of such hearings. The official records of such public hearings shall be filed with the city clerk.

(5) Disqualification of members or alternate members. The AIPPB members shall comply with F.S. ch. 112, the Miami-Dade County Code of Ethics, and the City Code.

(6) All city departments and employees shall, under the direction of the city manager, and upon request and within a reasonable time, furnish to the public art division such available records or information as may be required of the AIPPB. The city manager shall assign a member of the resilience and public works department, planning and zoning department, capital improvement projects office, parks and recreation department, and fire-rescue department, or their successors, to attend public hearings of the AIPPB and to advise the AIPPB when necessary, and to furnish information, reports, and recommendations upon request of the AIPPB.

(7) The city attorney, or his/her designee, shall act as counsel and provide legal services to the AIPPB.

(8) The alternate members shall only vote in the event of a vacancy or absence of a regular member.

(Ord. No. 13657, § 2, 1-12-17; Ord. No. 13792, § 1, 10-11-18; Ord. No. 14047, § 2, 2-10-22)

Sec. 62-656. City commission.

The city commission, in addition to its duties and obligations under the City Charter, the City Code, and other applicable laws, shall have the following duties specifically in regard to the public art program:

(1) To appoint members to the AIPPB, as set forth in this article;

(2) To approve the public art program guidelines and amendments to the public art program guidelines upon recommendation of the AIPPB;

(3) To approve the public art master plan and amendments to the public art master plan upon recommendation of the AIPPB; and

(4) To hear appeals of decisions of the AIPPB related to installation, dedication, and donation of art.

(Ord. No. 13657, § 2, 1-12-17)

Sec. 62-657. Conflicts of interest.

No member of the AIPPB shall have his/her work of art considered or approved by the AIPPB during his/her term of service on the AIPPB or for one year thereafter.

(Ord. No. 13657, § 2, 1-12-17)

Sec. 62-658. Selections of works of art.

The AIPPB shall establish procedures and criteria for the commissioning, selection, and acquisition of art to be acquired using the resources available within the public art fund, and in accordance with the criteria and standards

set forth in the adopted public art master plan and the public art program guidelines. The city manager, or his/her designee, may only acquire each piece of art upon affirmative vote of the majority of the AIPPB. The city manager, or his/her designee, will negotiate appropriate contracts to acquire, insure, and maintain the art using available resources within the public art fund and the contract will be executed by the city manager subject to review and approval of the city attorney.

(1) *Selection process.* The AIPPB shall establish procedures for selecting art works to be purchased from the resources of the city's public arts fund. Those procedures can include the following:

a. Open competition;

b. Limited competition;

c. Invitation;

d. Direct purchase;

e. Donation; or

f. Any combination of the above.

(2) *Selection criteria.* In the selection process, the AIPPB shall consider the following:

a. Permanent and temporary works of art shall be located in areas where residents and visitors live and congregate and shall be publicly accessible and/or visible from public property or right-of-way (maximum visual accessibility to pedestrian or vehicular traffic);

b. Location in areas used by tourists, including the waterfront, parks, thoroughfares, and at public or governmental facilities shall be preferred;

c. The inherently intrusive nature of public art on the lives of those frequenting a public place. Artworks reflecting enduring artistic concepts, not transitory ones, should be sought;

d. The cultural and ethnic diversity of the city and South Florida without deviation from a standard of excellence;

e. The appropriateness to the site, permanence of the work in light of environmental conditions at the site, maintenance requirements, quality of the work, likelihood that the artist can successfully complete the work within the available funding, diversity of works already acquired by the city, and diversity of the artists whose work has been acquired by the city;

f. If the artwork too closely resembles a business logo or sign, has any commercial message or purpose, contains adult content as defined in the Miami 21 Code, and should, therefore, be rejected;

g. Any other criteria set forth in the public art program guidelines as amended from time to time;

h. Exhibition and sales history of the artist, as well as works of art in public collections and previous public art purchases or commissions;

i. The maintenance and insurance expense of the art;

j. The public health, safety, and welfare:

k. The ability to safely secure the art against high wind, inclement weather, or other acts of God; and

l. Whether the art may be reasonably maintained to last for a minimum life cycle of 25 years.

(Ord. No. 13657, § 2, 1-12-17)

Secs. 62-659, 62-660. Reserved.

Sec. 62-661. Creation of public art fund.

There is hereby created within the city a trust fund to be known as the City of Miami Public Art Fund. This public art fund shall be maintained by the city and shall be used for the acquisition, installation, improvement, maintenance, and

insurance of art, arts education programming, grants, and administrative costs of the public art program as follows:

(1) All monies received by the city pursuant to the requirements of the public art program or from endowments, gifts, or donations to the city designated for public art shall be placed in the public art fund. All monies within the public art fund shall be deposited, invested, expended, and accounted for as follows:

a. All monies received shall be deposited into the public art fund and shall not be commingled with non-public art related revenues of the city. All monies within the public art fund shall be expended solely for the purpose and intent of the public art program. Any interest income earned by the public art fund shall be expended or invested only for the purpose for which the money was originally accepted, collected, or received.

b. The public art fund shall be used for expenses associated with the selection, commissioning, acquisition, transportation, maintenance, repair, restoration, rehabilitation, appraisal, removal, insurance of art, development of education programming, community outreach, or advocacy with an emphasis in the visual and performing arts, grants, and administrative costs for the public art program. Once monies intended for the purpose of satisfying this article are deposited into the public art fund, the monies from separate, different development projects may be comingled. Monies within the public art fund can be dispersed, expended, invested, or granted in accordance with this article.

c. Ten percent of the fees collected annually shall be allocated towards the historic preservation trust fund under article XVIII.

d. Five percent of the fees collected annually shall be allocated towards cultural, education, community outreach, or advocacy purposes and may include social practice art, all designed to promote the visual and performing arts such as but not limited to youth based programming involving the city's arts and entertainment council, public academic institutions, or non-profit organizations. Fees allocated but not expended within a fiscal year shall be rolled over to the next fiscal year and allocated for the same purposes. The city's arts and entertainment council, public academic institutions, or non-profit organizations shall be allocated monies from the public art fund through a grant application process as described in the public art master plan. The public art division will review all grant applications and shall have the discretion to recommend approval or denial of grant applications to the AIPPB for expenditure of funds in accordance with the program guidelines.

e. Fifteen percent of the fees collected annually shall be allocated towards operating and administrative costs associated with the public art program, including but not limited to, staffing, marketing, programming, training, and outside consulting. Training shall be directly related to the implementation of this article and Article 11 of the Miami 21 Code. Fees allocated but not expended within a fiscal year shall be rolled over to the next fiscal year and allocated for the same purposes. The city manager or his/her designee shall have the authority to allocate and expend funds in accordance with this subsection e.

f. Seventy percent of the fees collected annually shall be allocated towards

the commissioning, selection, acquisition, display, maintenance, repair, restoration, rehabilitation, insurance of city-owned art, transportation, installation, removal, appraisal, collection, and exhibition of high-quality art in accordance with the public art master plan and the public art program guidelines. Fees allocated but not expended within a fiscal year shall be rolled over to the next fiscal year and allocated for the same purposes. For all expenditures in excess of $25,000.00 pursuant to this subsection f., the city manager or his/her designee shall be the applicant to the AIPPB in accordance with this article.

g. If tangible property purchased with monies from the public art fund is subsequently sold, the proceeds from the sale shall be returned to the public art fund.

(2) All funds shall be expended for public and municipal purposes in accordance with the terms of this article and Article 11 of the Miami 21 Code.

(Ord. No. 13657, § 2, 1-12-17; Ord. No. 13872, § 2, 11-21-19)

Sec. 62-662. Ownership and maintenance of artwork placed on site.

(a) Ownership of all art acquired by the city pursuant to the requirements of this article shall be vested in the city, which shall retain title to each work of art.

(b) Ownership of all art donated to the city pursuant to the requirements of this article shall be donated and titled to the city upon approval of the AIPPB.

(c) Stolen or illegally removed art, or art that is deemed destroyed by the public art division in consultation with an independent art appraiser, must be either:

(1) Replaced by the property owner within 120 days. Replaced Art shall be reviewed and approved by the AIPPB subject to the criteria set forth in this article, or

(2) The public art fee required under this article and the Miami 21 Code, based upon the current fee schedule and the current fair market value of the building, structure or improvement for which the art was required, as determined by an appraiser, must be paid within 30 days.

(Ord. No. 13657, § 2, 1-12-17)

ARTICLE XVII. COVENANTS FOR AFFORDABLE OR WORKFORCE HOUSING

Sec. 62-663. Requirements, enforcement provisions, and penalties for restrictive covenants associated with affordable or workforce housing related to development incentives, benefits, or bonuses.

Enforcement of this article shall be by chapter 2, article X of the City Code or any other remedies as provided by law and as further stated herein.

All covenants for affordable or workforce housing that may be associated with development incentives, benefits, or bonuses, shall be subject to the following requirements, enforcement procedures, and penalties. This includes any covenants associated with providing affordable or workforce housing voluntarily proffered with a request for a change of zoning.

(1) All such covenants shall only be released after the initial required term, according to the City Code or the Miami 21 Code, as applicable, by the city commission at a publicly noticed hearing, unless otherwise specified in the covenant. All costs, expenses, and fees associated with releasing the covenant at the publicly noticed hearing, shall be the sole responsibility of the party requesting the release unless the covenant being released is an individual covenant as defined herein.

(2) All such covenants shall include a provision that requires each affordable or workforce housing unit that is sold to

include a deed restriction, that the unit shall only be sold with a purchase cost equal to or less than the standards for those individuals whose income is at or below the area median income ("AMI"), as established in the covenant and shall further indicate that the unit shall only be rented to individuals whose income is at or below the AMI as established in the covenant. The deed restriction must specify the specific applicable AMI. All covenants shall also reference the requirements as stated in this section.

(3) Any violation or noncompliance of the covenant for affordable or workforce housing shall be immediately referred to code compliance department for enforcement proceedings, lien placement, and citations pursuant to chapter 2, article X of the City Code.

(4) Any violation or noncompliance of the covenant for affordable or workforce housing shall result in a monetary penalty to be deposited into the affordable housing trust fund. Such monetary penalty shall be assessed as a daily fine of $250.00 per day per violation until proof of compliance has been provided to the city. The monetary penalty shall not be subject to mitigation or otherwise modified by any body including, but not limited to the code enforcement board.

(5) Any violation or noncompliance of the covenant for affordable or workforce housing shall be referred to the city attorney's office for enforcement, including but not limited to injunctive relief and/or any other remedies in law or equity.

(6) The use of one remedy shall not preclude the use of another.

(7) All such covenants for affordable or workforce rental housing must include a provision that requires the covenantor to receive written authorization from the city manager prior to converting any rental housing units to homeownership units. In the event that the conversion is authorized, the city shall record covenants on individual units ("individual covenants") in a manner that creates the same amount of affordable or workforce homeownership units specified in the covenant for affordable or workforce housing. Each individual covenant must (i) specify the applicable AMI for any purchaser during the term of the individual covenant and (ii) expire on the same date as the covenant for affordable or workforce housing.

(8) Any modification of a covenant shall require approval of the city commission at a publicly noticed hearing, unless otherwise specified in the covenant. All costs, expenses, and fees associated with modifying the covenant at the publicly noticed hearing shall be the sole responsibility of the party requesting the modification unless the covenant being modified is an individual covenant as defined herein.

(9) Notwithstanding any language contained in this article or any language in the covenant, the city may administratively perform the following related to a document required by a United States Housing and Urban Development (HUD), Florida Housing Finance Corporation, Federal Housing Agency, Fannie Mae, Freddie Mac, any Miami-Dade County affordable housing program, or any other government-backed program financing or refinancing for a development where such document does not adversely impact the city's affordability requirements within the city's covenant, including but not limited to the area median income of the affordable units and the number of affordable units:

a. Authorize a partial release of a covenant as described herein, or

b. Approve a subordination of a covenant as described herein

Any such partial release or subordination as described in this section shall require a recommendation of approval and signature from the director of the

department of housing and community development, the planning director, the zoning administrator, and the city manager, or their designees, and be approved by the city attorney, or designee, as to legal form or correctness. The city manager shall provide written notice to the members of the city commission when such covenant is administratively released or subordinated. In the event that the partial release or subordination does not receive approval from all departments listed herein, such request may be placed on a city commission agenda.

(Ord. No. 13826, § 2, 3-14-19; Ord. No. 14113, § 2, 10-13-22)

Secs. 62-664—62-670. Reserved.

ARTICLE XVIII. HISTORIC PRESERVATION TRUST FUND*

Sec. 62-671. Purpose and intent.

It is intended that the "Historic Preservation Trust Fund" be established for funding to be made available for improvements to qualifying homes in T3 transects and historically designated resources.

(Ord. No. 13872, § 2, 11-21-19)

Sec. 62-672. Trust fund payments.

Payments into the trust fund shall include, but not be limited to, monies collected pursuant to chapter 62, article XVI, Art in public places, and chapter 23, Historic preservation.

(Ord. No. 13872, § 2, 11-21-19)

Sec. 62-673. Established.

(a) There is hereby established a trust fund titled "historic preservation trust fund" into which funds shall be deposited and disbursed pursuant to this article.

(b) Fees allocated and interest collected but not expended within a fiscal year shall be rolled over to the next fiscal year and allocated for the same purposes.

(c) Eighty percent or more of funds will be allocated towards improvements for qualifying homes in T3 transects and locally designated historic Resources pursuant to chapter 23.

(1) Funds to be allocated to private property shall be managed through a grant process administered by the planning department and the department of housing and community development in consultation with all other relevant city departments and any required external experts.

a. Grant funds shall be allocated based on the following criteria in order of importance:

1. Properties in T3 transects that are unable to sell development rights or density.
2. Economic hardship as measured by the income of property owner.
3. Age of the property owner with priority given to property owners over 60 years of age or older.
4. Ownership status with priority given:
   - First, to homesteaded property owners;
   - Second, to not-for-profit entities, organizations, or institutions providing affordable housing;
   - Third, for-profit entities, organizations, or institutions providing affordable housing;
   - Fourth, non-profit organizations;
   - Fifth, all other applicants;
5. Historic significance of the historic resource;

*__Editor's note—__Ord. No. 13872, § 2, adopted November 21, 2019, enacted provisions intended for use as article XVII, §§ 62-663—62-665. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as article XVIII, §§ 62-671—62-673.

6. Ability to complete work within a reasonable time frame.

b. The planning department will make recommendations to the director of the city's department of housing and community development, who will make a final determination for disbursement of funds.

c. Grant funds not expended within a reasonable time frame must be promptly returned to the city.

(2) Funds to be allocated to publicly-owned resources will be approved by the historic and environmental preservation board ("HEPB"). Publicly owned for this subsection shall mean owned by a governmental or public agency.

(d) Up to 20 percent of the fees collected annually may be allocated towards administrative costs and staffing associated with historic preservation.
(Ord. No. 13872, § 2, 11-21-19)

Secs. 62-674—62-699. Reserved.

ARTICLE XIX. PROCEDURES FOR NO NET LOSS POLICY FOR PARK LAND

Sec. 62-700. Intent.

It is intended that the following regulations be established to create procedures and more detailed standards for the conversion of park land within the city as required by Policy PR-2.1.1 of the Miami Comprehensive Neighborhood Plan. Furthermore, the conversion of park land will be subject to public procedures. It is intended that the city receive park lands of suitable park, recreational, or conservation value in terms of usefulness and location in accordance with the time frames set forth in subsection 62-702(4) of this Code simultaneous with the conversion or elimination of any existing park land.
(Ord. No. 14213, § 3, 10-23-23)

Sec. 62-701. Prohibition on issuance of inconsistent development orders.

No development order, as defined in F.S. § 163.3164(15), as amended, may be issued if such development order is inconsistent with this section, however a development order may be issued when consistent with the procedures in this section.
(Ord. No. 14213, § 3, 10-23-23)

Sec. 62-702. Procedures for conversion of park land.

In construing these provisions, the city manager or designee, is authorized to determine whether the converted park land and the replacement park land constitutes a park without regard to a property's zoning designation in Miami 21. No existing park land in the city may be converted to another use, rezoned out of civic space (CS) transect zone, or have its FLUM changed from the public parks and recreation category except upon compliance with the below procedures:

(1) Park land must be replaced by land of the same or greater area: may be calculated in the aggregate, and: provided in various locations and sizes provided that replacement properties for park land must be replaced with land a minimum of 20,000 square feet or 200 linear feet of street frontage or it shall not be utilized towards compliance with this division.

(2) Replacement park land must be dedicated or conveyed to the city, provided that replacement park land may be privately owned or owned by another governmental entity. In the event of a private property owner, a restrictive park use covenant, in a form approved by the city attorney, between the city and such private property owner shall be made that ensures the public's continued present and future usage of the property in a manner similar to other city parks. City-owned land located outside of the city limits that abuts an existing city park within the city limits may be utilized towards compliance with this section. No city-owned land may be used as replacement park land for purposes of this policy, with the exception of the replacement park land being used for a city-owned public facility;

(3) Replacement park land must meet the same or higher standard as the park land it is replacing with similar park, recreation, or conservation value in terms of usefulness and location, as recommended by the city manager or designee and approved by the city commission at a public hearing. For purposes of this section, replacement park land shall not be located on a roof top of a building. In determining the level of improvement needed, the city manager or designee may consider the appropriate replacement park type (urban, suburban, regional, etc.) and the types of improvements that are needed for such replacement park land to provide a similar or improved level of service to that neighborhood of the converted park land, including, but not limited to, access to city residents and its ability to provide new or improved passive or active recreation services; and

(4) Development orders or other agreements approved by the city commission which include conditions detailing steps to be taken for the conversion of the park land use to another use consistent with this Section shall be permitted. Permitting and construction of the park improvements to approved replacement park land shall commence within one year of approval of the development order and be available for use by the general public within three years of the conversion of the park land it replaces, unless extended by the city manager.

(Ord. No. 14213, § 3, 10-23-23)

Sec. 62-703. Inventory of converted park land.

It shall be the duty of the city manager or designee to maintain an inventory of converted park land and its corresponding replacement land which shall be kept on file with the department of planning and department of parks and recreation.

(Ord. No. 14213, § 3, 10-23-23)

ARTICLE XX. RESILIENCE TRUST FUND

Sec. 62-704. Resilience Trust Fund; intent.

It is intended that the "Resilience Trust Fund" be established in order to facilitate the increase of density as allowed under the Interpretation of the Future Land Use Map of the Miami Comprehensive Neighborhood Plan; to facilitate the receipt of contributions to offset impacts to public facilities, services, and infrastructure associated with development in the Coastal High Hazard Area ("CHHA") as defined by F.S. § 163.3178(2)(h); and to enhance overall resilience and resilient infrastructure throughout the city. Expenditures from this trust fund shall require authorization by the city manager, or his/her designee, upon written recommendations from the directors of the department of planning, office of zoning, office of capital improvements, department of resilience and public works, and/or the office of resilience and sustainability, or successor department.

(Ord. No. 14435, § 2, 1-8-26)

Sec. 62-705. Established.

(a) There is hereby established a trust fund to be entitled the "Resilience Trust Fund," to be maintained and administered by the city, into which funds shall be deposited and from which funds shall be withdrawn pursuant to this article to pay for infrastructure projects that result in reducing flooding, storm surge, or urban heat island effect.

(1) Examples of projects include, but are not limited to, pump stations, raising roadways, seawalls, bioswales, living shorelines, native shade tree plantings, native groundcover, green roofs, permeable pavements, rain gardens, parks and open spaces, and green walls. This list is not exhaustive.

(b) Funds must be spent within the same geographic area they are collected, which will be known as "resilience fund areas." Some exceptions are allowed. See section 62-706.

(c) Allowable expenditures undertaken pursuant to this chapter may be made by the city manager, or his/her designee, except that any trust fund expenditure in excess of $100,000.00 will require city commission approval.
(Ord. No. 14435, § 2, 1-8-26)

Sec. 62-706. Resilience fund areas.

(a) In order to ensure funds collected are spent in a rational and proportional nexus, the city hereby creates "resilience fund areas" ("RFAs").

(b) RFAs are sub-city geographies where funds collected must be spent.

(1) Money may be spent in adjacent RFAs when the scope of certain capital improvements projects spans multiple RFAs.

(2) Money may be spent outside of an RFA when the scope of certain capital improvements projects extends beyond the boundaries of the RFA in which the project originates. In these instances, at least 51 percent of the capital improvement project's footprint must be within an RFA.

(3) The following data points were used to create the RFAs: CHHA, Storm surge planning zones, future land use map, zoning atlas, watersheds, and population.

(4) Only properties that meet the criteria set out in the Miami 21 Zoning Code and located within an RFA can participate.

(c) A map of the resilience fund areas can be seen in on file with the planning department.

(1) RFAs can be added, combined, divided, expanded, or dissolved in the future by ordinance provided any of the data points used to create the RFAs have changed or the needs of the program change.
(Ord. No. 14435, § 2, 1-8-26)

Sec. 62-707. Contribution schedule.

Contribution amounts are calculated by deriving the average and median costs of recent stormwater and other relevant resilience projects per every property benefited per each project. Contributions are to be made using a multiplier of US dollars per residential unit. The contribution amount shall be published on the planning department's website as a memorandum signed by the planning director or his/her designee. The contribution amount shall be updated every five years to account for inflation/market changes.

(1) Applicants may qualify for a 15 percent discount on cash contributions through infrastructure contributions as specified below:

a. Infrastructure contributions must exceed the minimum requirements already established by the Zoning Code, City Code, State Statutes, building codes, and requirements specified by the department of resilience and public works, office of capital improvements, building department, planning department, and office of zoning.

b. Infrastructure contributions must not create conditions that can result in flooding or other stormwater deficiencies for neighboring properties.

c. The applicant must enter into an agreement with the City of Miami stipulating the details of the infrastructure provisions, in a form acceptable to the city attorney. The details of the agreement must include relevant and applicable documentation including, but not limited to, the scope of work, cost of work, boundary survey, and legal description of the area of work. This agreement is subject to approval by the city manager, and all relevant department directors, and be in a form acceptable to the city attorney, and must be recorded with Miami-Dade County and the city clerk. The recorded agreement is required to qualify for the cash contribution discount.

(2) Applicants may qualify for a 15 percent discount on cash contributions with the provision of affordable and workforce housing described below. To qualify for this discount, applicants must submit to the office of zoning a recorded covenant running with the land acceptable to the City of Miami confirming the property will meet the criteria outlined below for a period of no less than 30 years from the date of issuance of a final certificate of occupancy or temporary certificate of occupancy, whichever is first, and a certification from the city's department of housing and community development, or successor department, that the proposed development will provide:

a. A minimum of three percent of the dwelling units serving residents at or below 60 percent of the "AMI" as published by the United States Department of Housing and Urban Development annually;

b. A minimum of five percent of the dwelling units serving residents at or below 100 percent of the "AMI" as published by the United States Department of Housing and Urban Development annually; and

c. A minimum of two percent of the dwelling units serving residents at or below 120 percent of the "AMI" as published by the United States Department of Housing and Urban Development annually.

(Ord. No. 14435, § 2, 1-8-26)

Sec. 62-708. Financial reports.

Administration of and a financial report on trust fund receipts and expenditures shall be prepared annually at the close of fiscal year by the city manager or his/her designee and presented to the city commission.

(Ord. No. 14435, § 2, 1-8-26)

APPENDIX A

RESERVED*

*__Editor's note—__Ord. No. 11936, § 2, adopted June 8, 2000, repealed App. A, which pertained to Cable Television Licensing, and derived from Ord. No. 9567, § 1, Feb. 10, 1983; Ord. No. 9915, § 1, Oct. 10, 1984; Ord. No. 10035, § 1, Sept. 9, 1985; Ord. No. 10146, § 1, Sept. 11, 1986; Ord. No. 10678, § 1, Dec. 7, 1989.

APPENDIX B

FRANCHISES*

*__Editor's note—__At the city's direction, the Cable Television License, Ord. No. 9332, adopted Oct. 19, 1981, effective Nov. 19, 1981, has been set out separately, and in its entirety as amended, as appendix A of this Code.

Charter reference—Franchises and public utilities (including approval by voters, powers and rights of city retained, franchise subject to terms of charter and exclusive franchises prohibited), § 39.

City Code cross references—Streets and sidewalks, ch. 54.

The following franchises have been granted by the City of Miami.

Ord. No.	*Adoption Date*	*Description*
8309	9-10-74	City Gas Company of Florida granted a limited franchise for permission to erect, install, extend, maintain and operate a system of works, pipes, pipelines, etc. in the area bounded on the east by 27th Avenue as the same is extended north and south to the city limits and from 27th Avenue west to the western boundaries of the city, for the purpose of transporting, distributing and selling manufactured or natural gas to the city; effective date Nov. 5, 1974; 30-year term.
9064	1-24-80	Southern Bell Telephone and Telegraph Co. granted a franchise for permission to construct, operate and maintain necessary telephone equipment on public rights-of-way; in effect from and after Aug. 12, 1976, and expiring at midnight on Aug. 11, 2006.
9472	9- 9-82	Florida Power & Light Co. granted a franchise for permission to construct, maintain and operate electric light and power facilities on public rights-of-way, for the purpose of providing electricity to the city; effective date March 28, 1983; 30-year term.
10935	12- 5-91	Peoples Gas System, Inc., granted a franchise for permission to erect, install, extend, maintain, and operate a system of pipes, pipelines, etc., on public rights-of-way for the purpose of transporting, distributing and selling manufactured or natural gas to the city; effective date Jan. 5, 1992; 15-year term.
11662	5-26-98	FPL Energy Services, Inc. granted a franchise for permission to construct, operate and maintain a distribution system on public rights-of-way, for the purpose of delivering chilled water and steam to provide energy efficient heating and cooling to the city; effective date May 26, 1998; 37-year term.

CODE CASE LAW TABLE

This table of code case annotations shows the chapter titles, article titles, and sections at which appeal case annotations to the Code of Ordinances are set forth in part II of this volume.

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Berman v. *City of Miami,* 17 Fla. Supp. 72; *aff'd* 127 So.2d 683	31-49
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Nelson v. *State,* 157 Fla. 412, 26 So.2d 60	Ch. 4
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Voorhess v. *City of Miami,* 145 Fla. 402, 199 So. 313	Ch. 40, Art. IV

CODE COMPARATIVE TABLE

1967 CODE

This table gives the location within this Code of those sections of the 1967 Code, as codified in 1980 and as updated through November 17, 1994, which are included herein. Sections of the 1967 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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CODE COMPARATIVE TABLE

1980 CODE

This table gives the location within this Code of those sections of the 1980 Code, as updated through November 17, 1994, which are included herein. Sections of the 1980 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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11721	11-17-98	2	Added	2-207(a)(12), (13)
11722	11-17-98	2		2-811, 2-812
		3		2-892(4)a.5.
11723	11-17-98	1		2-33(e)
11724	11-17-98	1		2-33(j)
11725	11-17-98	1	Rnbd	10-4(b)(1)—(16) as (2)—(17)
			Added	10-4(b)(1)
11726	11-17-98	1	Added	18-106, 18-107
11727	11-17-98	2		2-466
			Added	2-467
				2-49
			Added	2-497.1
			Added	18-72.1
			Added	2-1145—2-1148
11729	11-17-98	1		40-250
				40-250(1)e.
11734	12- 8-98	2		14-52(c)
11735	12- 8-98	2	Added	2-892(4)d.9.
		3	Added	14-300—14-304
11736	12- 8-98	2	Added	14-310, 14-311
11742	1-12-99	2		2-892(4)d.
		3	Added	2-1150—2-1153
11743	1-12-99	2		40-241
				40-243
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				40-255
			Added	40-256(a)(4)
11746	1-12-99	1		22-116, 22-117
			Added	22-118
11750	1-12-99	2		38-8(a)
11752	1-26-99	2		40-191
				40-195(c)
				40-196(a), (b)
				40-202(7)
				40-203
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11753	2- 9-99	2	Rpld	2-1081—2-1096
11754	2- 9-99	1		13-138, 13-139
				13-144
11755	2- 9-99	2		2-612(a)
11771	2- 9-99	2		22-12(d)
11786	4-27-99	1		2-33(i)
11795	5-11-99	2	Added	10-5
		3	Added	54-17

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		4	Added	62-159
11797	5-11-99	2		2-892(4)
		3	Added	54-440—54-445
11800	6- 8-99	2		2-892(4)
		3		39-34(10)
		4		54-341, 54-342
11801	6- 8-99	2		2-887
				2-979(c)
11807	6-22-99	1		22-12
11810	6-22-99	2		4-2(a)
				4-13
11812	7-13-99	2		35-302—35-307
				35-309
			Added	35-312
11813	7-13-99	3—9	Added	35-341—35-347
11814	7-13-99	2		13-3(b)(5)
				13-6(5)
11815	7-13-99	2		38-63
11816	7-13-99	2		2-612(a)
11820	7-27-99	2		38-9
11822	7-27-99	2		40-97(a)(1)
11823	7-27-99	2		42-67—42-70
11825	7-27-99	2		31-50
11833	9-21-99	2		2-887
				2-892(4)
		3	Added	2-1144.1—2-1144.5
11834	9-21-99	2		53-181
11835	9-21-99	2		54-190(107)
11837	9-28-99	2		22-1, 22-2
				22-5(b)
				22-6
				22-12(a)
				22-12(c)
				22-14(b)
				22-18(b), (c)
				22-18(e)
				22-46—22-51
				22-53
				22-56
				22-58
				22-93(d)
11844	10-12-99	2	Rpld	40-88(e)
11845	10-12-99	1		22-12(a)
11846	10-26-99	2		50-310
11847	10-26-99	2	Added	56-86—56-90
11849	10-26-99	2		2-892(4)
		3	Added	22-170—22-174
11850	10-26-99	2		2-887
				2-1131(d)
11851	10-26-99	2	Added	2-37
11857	11-16-99	2		2-892(4)
11858	11-16-99	2		Ch. 42, Art. IV(note)
				42-102—42-104
			Added	42-116—42-118
11865	11-14-99	2		2-32(b)
				2-33(i)
11871	12-14-99	2		35-191—35-193

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11873	12-14-99	2		29-122(b)
11878	1-13-00	2		18-80(a)
11879	1-13-00	2		40-245(c)(2)
11880	1-13-00	2		54-190(38)
11881	1-13-00	2		38-8
11890	2-10-00	2	Rnbd	2-1145—2-1148 as 18-500—18-503
		3		2-467 2-497.1 18-72.1
		4	Added	18-541, 18-542
11904	3- 9-00	2		2-413
11908	4-13-00	1		2-612
11913	4-13-00	2		38-8
11915	4-13-00	2	Added	2-861, 2-862
11917	4-13-00	2		4-2
			Added	4-11(i)
11927	5-11-00	2	Rnbd	40-250(2) as (3)
			Added	40-250(2)
11926	5-11-00	2		54-190(137)
11931	5-25-00	2		35-224
11936	6- 8-00	2	Rpld	11-1—11-20, 11-51—11-62, 11-91—11-102, App. A §§ 101, 102, 201—211, 301—311, 401, 404—407, 501—505, 601—608, 701—710, 801—807, 901—908, 1001—1005, 1101—1107, 1201—1208, 1301, 1401—1411, 1501—1512, 1601—1610
		3	Added	11-1—11-34
11937	6-29-00	2	Rpld	54-411—54-429
			Added	54-411—54-428
11938	6-29-00	2		54-190
11940	7-20-00	2		2-923
11942	7-20-00	1		2-33
11944	7-27-00	2		40-202, 40-203
			Rnbd	40-202(6) and (7) as (5) and (6), 40-203(h)(2) as 40-203(h)(3)a., 40-203(h)(3) as (4)
11945	7-27-00	1		22-12
11946	7-27-00	2		54-190
11960	9-14-00	2		4-11
11979	10-12-00	2		2-946

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11982	10-26-00	2		2-887, 2-892,
			Added	2-1100—2-1104
11983	10-26-00	2		38-69
11995	11-16-00	2		2-694, 2-887, 2-892, 2-976
11996	11-16-00	2		18-298
11998	11-16-00	2		2-358, 53-1, 53-26, 53-86,
			Rpld	53-121
		3		2-892
		4	Added	53-121—53-127
11999	11-16-00	2		2-1152
12002	12-14-00	2		39-26,
			Added	39-37.1
12003	12-14-00	2		2-892,
		3	Added	38-230—38-242
12004	12-14-00	1		2-887, 53-126
12006	12-14-00	2	Added	37-6
12012	12-14-00	2		62-129
12016	1-11-01	1		2-885(a) 2-1152(d)
12018	1-25-01	2		62-156
12019	2- 8-01	2		2-923(a) 2-925
12024	2- 8-01	2		38-69(a)(1)
12026	2-22-01	2		18-500—18-502
12030	3- 8-01	2		10-4
12035	3-29-01	2		62-129(4)
12052	4-26-01	2		10-22
			Added	10-26
12053	4-26-01	2	Rpld	Ch. 54, Art. VII, §§ 54-261—54-269
			Added	Ch. 54, Art. VII, §§ 54-261—54-271
12055	4-26-01	2		53-181(4)
12056	4-26-01	2		19-2(title)
			Added	19-2(f—j)
12059	5-10-01	1		2-884(e)
12062	5-10-01	3	Added	18-556, 18-576—18-589, 18-601 18-616—18-620
12073	5-24-01	1		2-1013(a)(2)c., (a)(3)
12074	5-24-01	1		2-32(b) 2-33(j)
12077	6-14-01	2		2-892
			Added	2-1190—2-1195
12080	6-14-01	2		62-123(c)
12082	7-10-01	2	Added	2-892(4)(h)
		3	Added	Ch. 12.5, § 12.5-1 12.5-26—12.5-37

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12086	7-10-01	2	Added	2-892(4)(g)(2)
			Added	Ch. 2, Div. 13, §§ 2-1175—2-1181
12092	7-26-01	1		6-5
		2		6-41
12103	9-13-01	1	Added	18-102(b)(7, 8)
			Rnbd	18-102(b)(7) as 18-102(b)(9)
12105	9-13-01	2		19-7(c)
12106	9-13-01	2	Added	2-143(e)(5)
12110	9-13-01	2		12.5-27, 12.5-28
				12.5-30(c), (d)
12111	9-25-01	1	Rpld	40-241—40-263
			Added	40-241—40-266
				40-296
			Added	40-299
		2		ch. 40, art. IV, div. 3 (note)
12113	9-25-01	1		18-542(4)(b)
12114	9-13-01	1		22-12(a)
12131	10-11-01	1	Added	38-76
12134	10-11-01	1		2-33(e)
12139	10-11-01	2		12.5-30(d)(2)a.
12140	10-25-01	1		54-4(a), (b)
				55-15(b)(3), (4)
12141	10-25-01	1		18-75(a)
12146	10-11-01	1	Rpld	54-190(224)
12147	10-25-01	1		53-81(3)b., c., g.
12154	11-15-01	1		2-142
12155	11-15-01	1		10-3
			Added	10-4(b)(18)
12163	11-15-01	2		35-221(a), (b)
				35-222(a)
				35-224(a)(2), (3)
12175	1-10-02	1		2-142(c)
12177	1-10-02	2	Added	2-892(4)h.
			Rnbd	2-892(4)h. as 2-892(4)i.
		3	Added	2-1201—2-1207
12178	1-10-02	1		54-8
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				54-93
12179	1-10-02	1		2-887(b)
		2		54-140(d)(3)
12180	1-10-02	1		55-10(h)
12181	1-24-02	1		40-262(f)
12184	2-14-02	2		2-358(3)
				53-1(a)(1)
				ch. 53, art. III (title)
				53-151—53-154
				54-341(b)
12185	2-14-02	2		40-255(i)
12186	2-14-02	2		35-193
12188	2-14-02	1	Added	ch. 11.5, §§ 11.5-26—11.5-37
12189	2-14-02	1	Added	6-45

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12192	3- 7-02	2		ch. 2, art. XI, div. 10 (title)
			Rpld	2-1140—2-1143
		3	Added	2-1140—2-1143
		4	Rpld	2-892(4)d.8.
			Rnbd	2-892(4)d.9., 10. as 2-892(4)d.8., 9.
			Added	2-892(4)h.2.
12195	1-24-02	2		23-5(b)(4)b.3.
				23-5(c)(2)
			Added	23-5(c)(6)
12198	3- 7-02	2		2-1153
12201	3-14-02	1	Added	2-866(d)
				12.5-30(j)
				38-233(g)
				40-193(a)(1)d.3.
				40-243(a)(2)e.3.
12202	3-27-02	2		40-241
			Added	40-255(b)(3)
			Added	40-255(c)(6)
			Added	40-255(d)(9)
			Added	40-255(e)(12)
			Added	40-255(k)
			Rnbd	40-255(k) as 40-255(l)
			Added	40-256(a)(3)
			Rnbd	40-256(a)(3) as 40-256(a)(4)
12203	3-27-02	2		40-202(6)
				40-203(g)(3)
				40-203(p)
				40-203(q)(1), (2), (11), (13)
		3	Rpld	42-7
12207	4-11-02	1		10-22
12221	4-18-02	1		54-341—54-343
12222	4-18-02	1		12.5-30
12226	5- 9-02	2		40-74
12227	5- 9-02	1	Rpld	18-5
		2		2-892(4)d.
12228	5- 9-02	1		54-223
12230	5- 9-02	1		2-812(d)
				2-815(c)
				2-822(a)
12234.1	6-13-02	2	Added	2-892(4)h.3.
			Added	2-1215—2-1220
12235	6-13-02	1	Rpld	ch. 62, art. VIII
		2	Rpld	2-892(4)c.4.
			Rnbd as	2-892(4)c.5., (4)c.6 2-892(4)c.4., (4)c.5
12237	6-13-02	1		10-4(a), (b), (h)
12247	6-27-02	3		14-252
12249	6-27-02	1		40-255(l)
12251	7- 9-02	2	Added	2-892(4)h.4.
		3	Added	2-1231—2-1238
12257	7- 9-02	1		ch. 12.5, art. I, div. 2 title

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				12.5-26, 12.5-27
				12.5-29—12.5-32
			Added	12.5-33
			Rnbd as	12.5-33, 12.5-34 12.5-34, 12.5-35
			Added	12.5-36
			Rnbd as	12.5-35—12.5-37 12.5-37—12.5-39
12258	7-25-02	2		22-1, 22-2
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				22-52—22-57
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12271	8-22-02	2	Rpld	18-71—18-107
			Added	18-71—18-116
		3	Added	18-176.1—18-176.3
				18-180
12272	8-22-02	2	Added	2-817(h)
12274	9-11-02	1		40-291
				40-296
12275	9-11-02	1		40-296
12276	9-11-02	2		18-541, 18-542
12277	9-11-02	2		35-224
12285	10-10-02	1		ch. 42, art. IV, div. 2 title
				42-110
			Added	ch. 42, art. IV, div. 4
12286	10-10-02	1		54-270(a)
12293	11-19-02	1		55-15(h)
12295	11-19-02	2		13-2(b)(3), (b)(4)
			Added	13-2(b)(8)
				13-5
				13-6(3), (4)
			Added	13-6(8)
		3		13-53
				13-55
				13-57(1)
12299	11-19-02	1		2-1202
		2		2-1204
12307	12-12-02	2	Rpld	14-27
		3	Added	14-27
12308	12-12-02	2	Added	56-110—56-122
12310	12-12-02	1	Added	2-33(k)
			Rnbd as	2-33(k), (l) 2-33(l), (m)
12311	12-12-02	2		13-2(8)
				13-6(8)
12312	1- 9-03	1	Added	18-107(b)(9)
			Rnbd as	18-107(b)(9) 18-107(b)(10)
12313	1-23-03	2		2-1144.3(a)(1)

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12315	1-23-03	1		11.5-28(c)(4)
12349	3-27-03	2		18-87
12351	4-10-03	2	Rpld	Ch. 2, Art. IV, Div. 13, §§ 2-526—2-532
		3		2-526—2-531
12352	4-10-03	1	Added	2-33(n)
12353	4-10-03	2		18-542(7), (8)
12354	4-10-03	1		18-72(a)(1), (a)(2), (b)(1)
				18-73
12356	4-10-03	2		2-892
		3	Added	Ch. 12.5, Art. I, Div. 4, §§ 12.5-101—12.5-112
		3	Added	2-526—2-531
12360	5- 8-03	1		2-817(h)(1), (h)(3)
12363	5- 8-03	2		16-6(a)(4), (a)(5)
			Added	16-6(a)(6)
				16-6(b)(5), (b)(6)
			Added	16-6(b)(7)
			Added	16-7
12364	5- 8-03	1		2-887(b)
		2		54-342(c), (d)
			Added	54-342(g)
12372	6-12-03	2		62-61
12375	6-12-03	2	Rpld	4-2, 4-3
			Added	4-2, 4-3
			Added	4-14
12376	6-12-03	1	Added	54-342(c)(2)
			Rnbd	54-342(c)(2)—(c)(5)
			as	54-342(c)(3)—(c)(6)
				54-342(d)(1)
12378	6-12-03	2		2-885 (title)
			Added	2-885(c)
12379	6-12-03	1		11.5-28(c)(4)c.
12384	7-17-03	1	Added	42-112
12386	7-17-03	2		2-887(b)
			Rpld	2-892(4)b.5.
			Rpld	2-892(4)h.4.
			Added	2-892(4)i.
			Rnbd	2-892(4)i.
			as	2-892(4)j.
		3	Rpld	2-921—2-930
			Rpld	2-1231—2-1238
		4	Added	2-921—2-929
12388	7-17-03	2		29-123
				29-194(b)
12400	9-11-03	2		22-2(b)
				22-14
				22-93(d)
12401	9-11-03	1		2-612(a)
12403	9-11-03	2	Rpld	38-8
		3	Added	38-8
		4		53-1(a)
12404	9-11-03	2	Rpld	Ch. 12.5, Art. I, Div. 4, §§ 12.5-101—12.5-112

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		3	Added	2-892(4)j.2.
		4	Added	12.5-55—12.5-65
12408	9-25-03	1	Rpld	2-1175—2-1181
			Rpld	2-1190—2-1195
			Rpld	2-1215—2-1220
		2	Rpld	2-892(4)g.
			Rnbd	2-892(4)h.—j.
			as	2-892(4)g.—i.
			Rpld	2-892(4)g.3.
12409	9-25-03	1		2-33(c), (d)
12423	9-25-03	2	Added	16-8
12424	10- 9-03	1	Rpld	54-190(13)
12427	10-23-03	2		18-542(8)
12430	11-13-03	2	Added	54-6.1
12431	11-13-03	1		2-142(d)
12434	11-13-03	1		2-1152(a)(1), (d), (g)
12435	11-13-03	2		35-224
12438	11-13-03	2		35-191—35-193
			Added	35-194—35-196
12439	11-13-03	1	Added	38-116
12452	12-18-03	1		Ch. 8 (title)
				8-1, 8-2
			Added	8-6
			Rnbd	8-6
			as	8-7
12453	12-18-03	2		2-269 (title)
			Added	2-269(c)
				54-4(a)
				55-15(a)
			Added	55-15(i)
12455	12-18-03	2		4-3(a)(5)
12466	12-18-03	2		62-156(b)
12468	12-18-03	2	Added	Ch. 62, Art. XI, §§ 62-321—62-325
12470	1- 8-04	2		46-1
12471	1- 8-04	2		2-887(a)
				2-948 (title)
			Added	2-948(c)
12475	1-22-04	1		22-12(a)
12479	1-22-04	2		4-11(i)(5)
12483	1-22-04	2	Added	55-15(k)
12496	2-26-04	2		23-1—23-26
12497	2-26-04	2		62-188(2)
12498	2-26-04	1	Added	2-33(c)(8)
12500	3-11-04	2		2-817(h)
12501	3-11-04	1	Rpld	54-6.1
12505	3-25-04	2	Rpld	54-2
		3		54-1
				54-3
				54-6
			Added	54-6.2
12506	3-25-04	2	Rpld	38-67
		3		38-74
12499	2-26-04	2		31-35(b)(4)
12518	3-25-04	2		18-542(7)
12519	4- 8-04	2		2-887(b)
		3	Added	14-52(e)

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12520	4- 8-04	1		2-923(a)
12542	6-10-04	2		13-2(b)(4)
				13-6(4)
12547	6-24-04	2		2-811
				2-812(e)
				2-815
				2-815(a)—(g)
				2-816(a), (b), (d), (e)
				2-817(a)—(e), (g)
				2-818
				2-819(a), (b)
				2-821
			Rpld	2-822
				2-823(a), (d)(2), (d)(3)
				2-824
				2-825(a)(2), (c), (d)
				2-826(c), (d), (f)—(h), (j), (k), (m)—(p)
				2-828(a), (b)
			Added	2-829(c)
			Added	2-830
12549	6-24-04	2		54-190(30)
12563	7-22-04		Rpld	Ch. 35, Art. IX
		3—9	Added	Ch. 35, Art. IX
12587	9-23-04	2		54-190(132)
12588	9-23-04	1		35-301—35-309
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12589	9-23-04	2		13-2(b)(3), (4)
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12546	6-10-04	2		38-74
12564	7-22-04	1	Rpld	2-892(4)c.1.
			Rpld	2-892(4)d.6.
			Added	2-892(4)k.
		2		Ch. 35, Art. V (title)
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			Added	35-224(a)(7)—(a)(9)
			Rnbd	35-224(a)(7)
			as	35-224(a)(10)
		3		54-341(d)
			Rpld	54-342
		4	Added	Ch. 2, Art. XI, Div. 17, §§ 2-1250—2-1256
12582	9- 9-04	2	Added	54-6.3
12583	9- 9-04	2		38-74

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12586	9- 9-04	1		2-33(c)(7)
12599	10-14-04	2		22-1
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12614	11-18-04	2		62-159
12615	11-18-04	2		55-15(i), (j)
12616	11-18-04	1		2-267
12623	12- 9-04	1	Rpld	Ch. 2, Art. XI, Div. 9, §§ 2-1121—2-1134
		2	Rpld	Ch. 18, Art. X, §§ 18-556, 18-576—18-589, 18-601, 18-616—18-620
		3	Rpld	Ch. 14, Art. V, Div. 3, §§ 14-300—14-304
			Rpld	14-311
		4	Rpld	2-779
		5	Rpld	Ch. 54, Art. XII, §§ 54-441—54-444
		7		2-887(b)
			Rpld	2-892(4)d.4., (4)d.7.
			Rnbd	2-892(4)d.5—d.8
			as	2-892(4)d.4.—d.6
		8		14-310
12624	12- 9-04	2	Added	54-130(c)
			Rnbd	54-130(c)
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12637	12- 9-04	2	Added	Ch. 62, Art. X, §§ 62-301—62-304
12639	1-13-05	2		54-1
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12641	1-13-05	2		38-74
12642	1-13-05	1	Added	2-272(b)
			Rnbd	2-272(b)
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12643	1-13-05	1	Added	2-269(c)
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12663	3-10-05	1		10-4(d)
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12673	4-14-05	2		54-186
12675	4-14-05	2		62-156(d)
12678	4-28-05	2		Ch. 13, Art. III, §§ 13-51—13-65
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12683	5-12-05	2		31-35(b)(4)
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12692	6- 9-05	2		54-190(22), (24), (32), (33)
12694	6- 9-05	1		42-119
12695	6- 9-05	1		2-885
12698	6-23-05	1	Rpld	2-892(4)b.5.
			Rnbd	2-892(4)b.6., 7.
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			Rpld	2-892(4)d.2.
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12710	7- 7-05	2		54-6.3(f)
12711	7- 7-05	2		54-1
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12713	7- 7-05	2	Added	37-7(a)(1)
			Rnbd	37-7(a)(1), (2)
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12715	7-28-05	2		53-1(b)
12718	7-28-05	2		40-202(6)
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12719	7-28-05			62-156(d)
12727	9-22-05	2		18-541
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12738	11- 3-05	2		Ch. 38, Art. IV, Div. 2
12739	11- 3-05	2		2-1203(e)
12743	11-17-05	2		2-887(b)
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12744	11-17-05	1	Added	54-344
12745	12- 1-05	2		13-98(4), (7), (1)—(13), (15)
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12748	12-15-05	2	Added	2-892(4)j.3.
		3	Added	Ch. 2, Art. XI, Div. 18, §§ 2-1271—2-1284

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12751	12-15-05	2	Added	Ch. 62, Art. XII, §§ 62-401—62-404
12753	1-26-06	1		40-255(l)
12755	2- 9-06	2	Added	54-124(4)
12763	2- 9-06	2		55-7
12764	2- 9-06	1		40-296
12780	3- 9-08	2		18-89(b)
12781	3- 9-08	1		2-1253(1)
12782	3-23-06	2		54-190(33)
12787	4- 6-06	2	Added	Ch. 18, Art. X, §§ 18-556—18-559
12788	4- 6-06	2		55-10(h)
12802	5-11-06	1		20-3
12803	5-11-06	2	Added	2-207(f)(5)
12804	5-11-06	2	Added	Ch. 10, Art. III, §§ 10-27—10-46
12805	5-11-06	2		19-14(b)(c)
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12806	5-11-06	1		12.5-29(b)(10)
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12828	7-13-06	1		42-119
12834	9-12-06	2		10-5
12835	10-12-06	2		22-6(i), (j)
			Added	22-11(c) 22-50(a) 22-93
12851	9-28-06	2		Ch. 35, Art. V
12852	9-28-06	2		62-63(d)
12854	9-28-06	1		62-93(d)
12857	10-12-06	2		38-232(a), (b)(3)
12858	10-12-06	2		Ch. 2, Art. XI, Div. 7, §§ 2-1051—2-1056
		3	Rpld	2-892(4)a.6.
			Added	2-892(4)l.1.
12859	10-12-06	3	Rpld	2-892(4)j.1.
			Rnbd as	2-892(4)j.1., 2. 2-892(4)l.2.
		4	Rpld	Ch. 12.5, Art. I, Div. 2, §§ 12.5-26—12.5-39
			Added	Ch. 12.5, Art. I, Div. 2, §§ 12.5-26—12.5-39
12874	12-14-06	2		4-2 4-10 4-11(i)(5)i.
			Added	4-11(i)(5)j.
12884	2- 8-07	1	Rpld	37-1
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12886	2- 8-07	2		54-42(b)
12887	2- 8-07	1	Rpld	12.5-30(c)(5)
12888	2- 8-07	2	Rpld	Ch. 54, Art. III, §§ 54-86—54-94
12892	3- 8-07	2		2-612(title)

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12893	3- 8-07	2		2-143(c)
12901	3-22-07	1		62-301
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12902	3-22-07	2		2-811
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12905	4-12-07	2		14-52(b)(4)—(6)
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12906	4-12-07	2		2-884(e)
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				2-887(b)
12907	4-12-07	1		40-61
12908	4-12-07	1		2-1252
12909	4-12-07	2		56-86
12910	4-26-07	2	Added	Ch. 2, Art. IV, Div. 16, §§ 2-591—2-593
12913	5-10-07	1		56-111
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				56-113(a)
				56-114(a)
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12918	5-10-07	1	Added	2-8
12919	5-10-07	1		54-3
12926	6-14-07	2		29-89(a)
12927	6-14-07	2	Added	Ch. 23, Art. I(title)
			Added	Ch. 23, Art. II, §§ 23-7—23-29
12928	6-28-07	2	Added	11-34
		3		54-1
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		6	Added	54-311
12929	7-10-07	2		13-5
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12930	7-10-07	2	Added	10-23(7), (8)
12931	7-10-07	1		2-1252(a)
12937	8- 1-07	2	Added	50-344
12938	8- 1-07	1	Rpld	Ch. 2, Art. XI, Div. 11, §§ 2-1144.1—2-1144.5
		2	Rpld	2-892(4)e.2.
			Rnbd	2-892(4)e.3.
			as	2-892(4)e.2.
12939	8- 1-07	1		16-6(a)—(c)
12941	9-11-07	2		40-202(6)

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			Added	40-212
12949	10-11-07	2		18-84
12950	10-25-07	2		10-5(a)
12959	1-10-08	2		29-89(a)(4)
12967	2-14-08	2	Added	Ch. 2, Art. XI, Div. 11, §§ 2-1144.1—2-1144.5
		3		2-887
		4	Added	2-892(4)m.
12969	2-14-08	2		2-1013(a), (d)(4)
12970	2-14-08	2		2-1152
12971	2-14-08	2		54-1
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			Added	54-9.1—54-9.3
12972	2-14-08	2	Added	Ch. 22, Art. VIII, §§ 22-180—22-184
12973	2-14-08	2		4-3
12974	2-28-08	2	Added	Ch. 35, Art. X, §§ 35-348—35-364
		3		2-829
12976	3-13-08	2		2-1141(2)g.
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12977	3-13-08	2		2-829
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12978	5- 8-08	2	Added	10-4(b)(4)g.—i.
12979	4-10-08	2		54-190(268)
12980	4-10-08	1	Rpld	54-140
12982	4-10-08	1	Rpld	Ch. 12.5, Art. I, Div. 3, §§ 12.5-56—12.5-65
		2		2-892(4)j.
12983	4-10-08	2	Added	Ch. 62, Art. XIII, §§ 62-601—62-617
12984	4-10-08	2		2-814(c)
				2-817(b)
12986	4-10-08	2	Added	38-67
12992	5- 8-08	2		Ch. 50, Arts. I, II
			Rpld	50-119
				50-120(c), (d)
			Added	50-120(e)
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			Added	Ch. 50, Art. VI
12993	5- 8-08	2		40-203
12994	5- 8-08	1	Rpld	Ch. 53, Art. II, Div. 2, §§ 53-121—53-127
		2		2-892(4)f.
12995	5- 8-08	2	Added	6-41(b), (c)
			Rnbd	6-41(b)
			as	6-41(d)
12997	5-22-08	2	Added	37-8
13000	5-22-08	2		4-2(a)
				4-11(i)(5)j.
13001	6-12-08	2	Added	Ch. 22.5, Art. I, §§ 22.5-1—22.5-5
13002	6-12-08	2	Added	Ch. 22.5, Art. II, §§ 22.5-26—22.5-31
13003	6-12-08	2	Added	Ch. 22.5, Art. III, §§ 22.5-51—22.5-53
13004	6-12-08	3		38-60
		4	Added	38-243—38-247
13005	6-12-08	2		38-66
13006	6-12-08	2	Added	62-618
13008	6-26-08	2		Ch. 23, Art. I, §§ 23-1—23-6.3
13009	7-10-08	2		10-5
13010	7-10-08	1	Added	23-30
13012	7-24-08	2	Added	2-892(4)o.
		3	Added	Ch. 12.5, Art. I, Div. 5, §§ 12.5-131—12.5-139
13013	7-24-08	2		54-137(7)
13019	7-24-08	2		40-203(p), (q)
13020	7-24-08	2		4-2
			Added	4-11(k)
13030	10-16-08	2		2-892(4)o.
		3	Added	Ch. 2, Art. XI, Div. 19, §§ 2-1301—2-1308
13031	10-16-08	2	Rpld	Ch. 18, Art. IV, §§ 18-136—18-146
13032	10-16-08	2	Added	Ch. 10, Art. IV, §§ 10-61—10-69
		3		2-829
13036	11-13-08	2	Added	10-36(a), (b)
13037	11-13-08	2	Added	Ch. 40, Art. IV, Div. 5, §§ 40-321—40-329
13044	12-11-08	2		Ch. 22, Art. IV, §§ 22-113—22-120
13045	12-11-08	2	Added	18-117
13047	12-11-08	2		4-2(a)
			Added	4-11(l)
13050	1-29-09	2		4-2(a)
			Added	4-11(m)
13051	1-29-09	2		4-2

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			Added	4-11(n)
13059	3-12-09	2	Rpld	2-892(4)k.
			Rpld	Ch. 2, Art. XI, Div. 17, §§ 2-1250—2-1256
			Added	Ch. 2, Art. XI, Div. 17, §§ 2-1250—2-1263
		3		35-221(a)(5), (a)(6), (c)
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		4		54-341(d)
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			Rpld	54-343(6)
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13060	3-12-09	2		55-14
13062	5-14-09	2		54-190(253), (254)
13063	5-14-09	2		35-342
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13065	5-14-09	2		38-233(a), (b)
13066	5-14-09	2	Added	Ch. 2, Art. XI, Div. 20, §§ 2-1309—2-1315
		3	Added	2-892(4)l.3.
13070	6-11-09	1		55-15(h)
13071	6-11-09	2	Added	Ch. 22.5, Art. IV, §§ 22.5-71—22.5-75
13072	6-11-09	2		40-196(a)
13073	6-11-09	2	Added	Ch. 25, Art. I, §§ 25-1—25-3
13079	7- 9-09	1		4-1
13080	7- 9-09	2	Added	Ch. 22.5, Art. V, §§ 22.5-91—22.5-94
13081	7- 9-09	2	Added	Ch. 22.5, Art. VI, §§ 22.5-121—22.5-128
13086	9-10-09	2	Rpld	2-581, 2-582
			Added	2-581—2-584
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13088	9-24-09	2		42-120

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		2		40-246(b)(2)a.
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13091	9-24-09	1		40-191
			Added	40-196(a)(4)
			Rnbd	40-196(a)(4)
			as	40-196(a)(5)
				40-200(c)
				40-202(6)a.
				40-203(b), (c), (m), (p), (q)
				40-205(1)a.1., (2)
13099	9-24-09	1	Added	40-255(k)(11)
13101	9-29-09	1		40-246(a)(1)
13102	10- 8-09	1	Added	Ch. 57, Art. III, §§ 57-32—57-44
13103	10- 8-09	2		2-814(c)
				2-817(b)
13104	10- 8-09	2		4-42(b)
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13105	10- 8-09	2		39-26
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13106	10- 8-09	2		31-26—31-45
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			as	31-46—31-48
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13107	10- 8-09	2		18-542(11), (12)
13108	10- 8-09	2		2-207, 2-208
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13109	10-22-09	1		40-255(k)(11)
13110	10-22-09	2		18-557, 18-558
13111	10-22-09	2		40-296(a)—(c)
			Added	40-300
13112	10-22-09			40-249
			Rpld	40-250
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			Added	Ch. 40, Art. IV, Div. 6, § 40-351
13116	10-22-09	2		23-1(b)(4)

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			as	23-1(b)(6)—(9)
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			Added	23-6.4
13123	1-14-10	2	Rnbd	54-221—54-230
			as	54-222—54-231
			Added	54-221
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13323	6-14-12	1		2-815(d)
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13404	9-12-13	2	Added	Ch. 2, Art. XI, Div. 21, §§ 2-1316—2-1328
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13495	2-12-15	2	Added	37-11
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13929	10- 8-20	2		10-4(b)(5)
			Added	Ch. 10, Art. XI, §§ 10-143—10-146
13930	10- 8-20	2		1-16(c)
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13933	10-22-20	2		10-70
13934	10-22-20	2		18-72(a)(1), (b) 18-73 18-85(b)(1), (d), (f) 18-86(c)(3), (5) 18-118(a), (b), (d)(4), (6) 18-119(a), (b), (d)—(f)
13935	10-22-20	2	Added	10-9
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13949	12-10-20	2	Rpld	Ch. 14, Art. II, Div. 3, §§ 14-63—14-65
		3	Added	Ch. 54, Art. X, §§ 54-371—54-375
13950	12-10-20	2		2-817(b)
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13951	12-10-20	2		10-4(a), (b)(3)i.
13963	2-11-21	2		54-8
13964	2-11-21	1	Added	38-18(c)
13965	2-11-21	2		2-887
			Added	2-892(4)r.
		3	Added	Ch. 2, Art. XI, Div. 26, §§ 26-1360—2-1368
13966	2-25-21	2	Added	62-526
13967	2-25-21	2		2-887(b)
		3	Added	Ch. 2, Art. XI, Div. 8, §§ 2-1101—2-1108
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13968	2-25-21	2—6		54-224 (note)
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13970	2-25-21	2		10-4(b)(1)e.
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13979	3-25-21	2	Added	40-1(d)
13980	3-25-21	2		20-1
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13993	4-22-21	2	Added	31-51(h)
13994	5-13-21	2	Added	38-27
13995	5-13-21	2		4-2
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13996	5-13-21	2		Ch. 35, Art. V (title)
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14005	6-10-21	2	Added	Ch. 2, Art. XII, §§ 10-147—10-161
14006	6-10-21	2		22.5-130
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14008	6-10-21	2	Added	Ch. 10, Art. XIII, § 10-181
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14042	1-13-22	2		54-9(h)(1), (3), (i)
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14045	2-10-22	1	Added	55-10(h)
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14047	2-10-22	2		62-655(c)(4)
14053	3-10-22	2		40-249(b)
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14054	3-10-22	2		62-526
14057	3-10-22	2		2-817(b)(2), (d)
14059	4-14-22	2	Added	Ch. 38, Art. VII, §§ 38-249—38-255
14060	4-28-22	2		2-884(e)
14061	4-28-22	2	Added	13-16(d)(4)
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14078	7-28-22	2		2-208
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14086	9-13-22	4	Added	18-72(b)(23)
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14087	9-13-22	2	Added	2-33(o)
14088	9-13-22	2		2-33(l)
14089	9-13-22	2		2-1328.1(a), (b)(1)—(3), (c)(1)
14109	10-13-22	2		12.5-44(c)(1)
14111	10-13-22	2		54-138
14112	10-13-22	2	Added	38-33
14113	10-13-22	2	Added	62-663(9)
14114	10-13-22	2		38-233(a)—(c)
14115	10-13-22	2		31-51(b), (f)(1)
14116	10-27-22	2	Added	Ch. 18, Art. XIII, §§ 18-628—18-630
14117	10-27-22	2		36-4(c)
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14118	10-27-22	2	Added	23-6.2(h)(2)
			Rnbd	23-6.2(h)(2)—(4)
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14120	11-17-22	2		62-22(f)(4), (g)(3), (h)(5), (j)(2), (k)(3), (l)(1), (2), (5)
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14121	11-17-22	2		10-70—10-72
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14122	11-17-22	2		2-895
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14141	2- 9-23	2		22-93(d), (i)
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14150	2-23-23	2	Added	54-18
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14152	2-23-23	2		18-542(2)—(5), (10)—(12)
14153	2-23-23	2		36-4(e)(4)
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14181	6- 8-23	2	Added	38-14
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14192	7-27-23	2		10-6
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14194	7-27-23	2		10-101(m)(3)
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14208	9-28-23	2		10-101(l)(1)—(4)
14216	10-12-23	2		2-207(a)(10), (b)(1)a., c.
14220	10-26-23	2	Added	38-36
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14229	11-16-23	2	Added	10-104
14213	10-12-23	2	Added	62-11(10)
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14239	12-14-33	2		55-14(e)
14248	1-11-24	2	Added	40-1(e)
14249	1-11-24	2		31-51(h)
14256	2- 8-24	2		4-3(b)
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14240	12-14-23	2	Added	10-4(b)(2)c.5.
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14267	4-11-24	2		50-503(b)
14278	4-25-24	2		10-101(l)(2)c.
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14281	5- 9-24	2	Added	10-61(6)
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14284	5-23-24	2		2-779
14289	6-18-24	2	Added	38-37
14292	6-27-24	2		37-2(f)
14295	7-11-24	2		20-1
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14307	9-26-24	2		10-101(m)
14308	9-26-24	2		2-825(b), (d)
14317	9-26-24	2		54-137
14319	10-15-24	2		2-817(d)
14320	10-15-24	2	Added	Ch. 2, Art. III, Div. 5, § 2-160
14330	11-21-24	2		36-4(e)(2)—(4)
			Added	36-4(e)(5)
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			Added	36-5(d)(5)
14331	11-21-24	2		35-254(c)
14332	11-21-24	2		40-241
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			Rpld	Ch. 2, Art. XI, Div. 26, §§ 2-1360—2-1368
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14369	6-17-25	2	Added	36-4(f)
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14370	6-17-25	2		54-3(a), (e)(9)
14377	7-10-25	2	Added	2-214
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			Added	2-658(b)
14400	10- 9-25	2	Added	2-32(d)
14401	10- 9-25	2	Added	36-4(f)
			Added	36-5(e)
14402	10- 9-25	2		31-51(c)(4), (6), (d), (e)
14403	10-23-25	2	Added	Ch. 2, Art. IV, Div. 17, §§ 2-594—2-596
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